THE ABANDONED PROPERTIES (MANAGEMENT) ACT, 1975

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THE ABANDONED PROPERTIES (MANAGEMENT) ACT, 1975

ACT No. XX OF 1975

[12th February, 1975]

An Act provide for the [1][* *] management of certain properties*

WHEREAS it is expedient to provide for the [1][* * *] management of certain properties, and for matters connected therewith ;

AND WHEREAS the Proclamation of Emergency referred to in Article 280 of the Constitution is still in force;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This act may be called the Abandoned Properties ([1][* * *] Management) Act, 1975.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "abandoned property" means any property, movable or immovable (including share in industrial units and firms, investments, deposits, policies of insurance and all other interests and rights in or to or arising out of any such property), belonging to a specified person and includes any such property sold or transferred to, or placed under the supervision or control of, any other person on or after the sixteenth day of December, 1971, but does not include any ornaments or wearing apparel or any cooking vessels or other house-hold effects in the immediate possession of a specified person, not exceeding a total of rupees one thousand;

(b) "Administrator" means the Administrator appointed under section 5, and includes a Deputy Administrator;

(c) "Board" means the Board of Trustees constituted under section 4;

(d) "prescribed" means prescribed by rules;

(e) "rules" means rules made under this Act;

[1]Omitted by Act No. XLV of 1976, (w. e. f 12-2-75) ss. 2-3.

[1][(f) "specified person" means a person who, at any time before the sixteenth day of December, 1971, was a citizen of Pakistan domiciled in the territories which before the said day constituted the Province of East Pakistan and who, on or after that day, has ceased or ceases to be a citizen of Pakistan, and includes a company registered in the said territories the registered office of which has not been shifted in pursuance of the Companies (Shifting of Registered Office) Ordinance, 1972 (V of 1972).]

3. Vesting of abandoned property in Government.—All abandoned property shall vest and shall be deemed always to have vested in the Federal Government on and from the sixteenth day of December, 1971.

4. Board of Trustees.—(1) As soon as may be after the commencement of this Act, the Federal Government shall, by notification in the official Gazette, constitute a Board of Trustees consisting of a Chairman and such number of other Trustees as the Federal Government may specify in the notification, for the control and management of abandoned property.

(2) In discharging its functions, the Board shall be guided on questions of policy by the instructions, if any, given to it by the Federal Government which shall be the sole judge as to whether a question is a question of policy.

(3) The meetings of the Board shall be held at such intervals and at such time and place as the Chairman of the Board may determine.

(4) Subject to the rules, the Board may, with the previous approval of the Federal Government and by notification to the official Gazette, make regulations for regulating its procedure.

(5) At any time when the office of Chairman is vacant or the Chairman is absent or is unable to perform the functions of his office due to any other cause, the Federal Government may appoint any member of the Board to act as Chairman until a Chairman is appointed or, as the case may be, the Chairman resumes his functions.

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5. Appointment of Administrator and Deputy Administrators.—(1) For the purpose of carrying the provisions of this Act into effect, the Federal Government may, by notification in the official Gazette, appoint an Administrator for Pakistan and one or more Deputy Administrators for such areas as may be specified in the notification.

(2) The Administrator shall exercise his powers and perform his functions subject to the general supervision and control of the Board and shall be guided by any general or special order made by the Board.

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[1]Subs. by Act No. XLV of 1976, s. 4 (w. e. f. 12-2-1975).

6. Holding of abandoned property and its surrender, etc.—(1) Every person who is, or has at any time after the sixteenth day of December ,1971, been in possession, supervision or management of any abandoned property shall be deemed to hold or to have held, as the case may be, such property on behalf of the Board.

(2) As soon as may be, but not later than such date as may be notified by the Federal Government in the official Gazette, every person who is, or has at any time after the sixteenth day of December 1971, been in possession, supervision or management of any abandoned property or property which he knows or has reason to believe to be abandoned property, and whose authority or right to hold, occupy, supervise or manage such property has not been accepted or approved by the Administrator, shall submit to the Administrator, or to any person authorised by him in this behalf,—

(a) full information relating to such property, including the date since when, or the period for which, he had been in possession, supervision or management thereof; and

(b) a detailed account of the rents, profits, income and other moneys received or benefits derived from such property since the sixteenth day of December, 1971, or for the period he has been in possession, supervision or management thereof.

(3) Every person as aforesaid shall, as soon as may be, but not later than such date as may be notified by the Federal Government in the official Gazette, intimate to the Administrator in writing his willingness to surrender such property to the Administrator or to any person authorised by the Administrator in this behalf, and shall surrender the same if called upon by the Administrator or any person authorised as aforesaid.

7. Power of Administrator to take possession of abandoned property.—If any person who has purchased any abandoned property the sale of which has not been confirmed by the Administrator under section 13, or who is in possession, supervision or management of any abandoned property or property which he knows or has reason to believe to be abandoned property does not surrender such property to the Administrator or the person authorised by him in this behalf, then, without prejudice to any other action or penalty to which such person may otherwise be liable, the Administrator may use such force as is necessary for taking possession of such property and may for this purpose, after giving reasonable warning and facility to any woman not appearing in public to withdraw, remove or break open any lock, bolt or door, or do any other act necessary for the said purpose.

8. Payment to Administrator.—(1) Any amount due to a specified person or payable in respect of any abandoned property or property of which the Administrator has taken possession shall be paid to the Administrator by the person liable to pay the same.

(2) Any person who makes a payment under sub-section (1) shall be discharged from further liability to pay to the extent of the payment made.

9. Recovery of damages for unauthorised possession.—Any person who has been in possession or occupation of abandoned property in an unauthorised manner or is found to have

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misappropriated or unlawfully converted abandoned property to his own use or caused loss to it by his act or omission shall, without prejudice to any other action or penalty to which he may otherwise be liable, pay such damages as may be assessed by the Administrator:

Provided that no such damages shall be assessed by the Administrator without giving notice to such person and affording him an opportunity of being heard.

10. Exemption from legal process.—(1) Property which has vested in the Federal Government or of which possession has been taken by the Administrator shall be exempted from all legal process, including seizure, distress, ejectment, attachment or sale by any officer of a Court or any other authority, and no injunction or other order of whatever kind in respect of such property shall be granted or made by any Court or any other authority, and the Federal Government shall not be divested and the Administrator shall not be dispossessed of such property by operation of any law for the time being in force.

(2) Upon the commencement of this Act, any such legal process as aforesaid subsisting immediately before such commencement shall cease to have effect and all abandoned property in custody of any Court, or receiver, guardian or other officer or person appointed by it, shall, upon delivery of the same being called for by the Administrator, be delivered to the Administrator.

11. Publication of list of abandoned property.—The Administrator shall publish, by notification in the official Gazette, a list of abandoned property in any area.

12. Prohibition of transfers of property generally.—The Federal Government may, by notification in the official Gazette, declare that in such area with a view to preventing the unauthorised or surreptitious transfer of abandoned properties in any area in which a considerable number of such properties is believed to be situated, for such period as may be specified in the notification, the transfer of any property or class of property, or the creation of any right or interest therein or encumbrance thereon, shall be prohibited, and where any such declaration has been made, no such transfer or creation shall be made during that period in that area except with the previous approval in writing of the Administrator.

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13. Confirmation of transfers by specified persons.—(1) No creation or transfer of any right or interest in or encumbrance upon any property made in any manner whatsoever on or after the sixteenth day of December, 1971, by or on behalf of a specified person shall be effective so as to confer any right or remedy on any party thereto or on any person claiming under any such party, unless it is confirmed by the Administrator.

(2) An application for confirmation of such creation of any right or encumbrance or transfer as aforesaid as may be made to the Administrator within the prescribed period by any party thereto, or by any person claiming under or lawfully authorised by such party.

(3) The Administrator shall hold a summary inquiry into the application in the prescribed manner and may reject the application if he is of opinion that the creation or transfer—

(i) was not or has been entered into in good faith or for adequate consideration; or

(ii) ought for any other reason not to be confirmed.

(4) If the application is not rejected under sub-section (3), the Administrator may, with the prior approval of the Board, confirm the creation or transfer either unconditionally or subject to such terms and conditions as he thinks fit to impose.

14. Claims by interested persons.—(1) Any person claiming any right or interest in any property treated by the Administrator as abandoned property may prefer a claim to the Administrator on the ground that—

(a) the property is not abandoned property ; or

(b) his interest in the property has not been affected by the provisions of this Act.

(2) An application under sub-section (1) shall be made within the prescribed period being a period of not less than thirty days from the prescribed date.

(3) On receiving an application under sub-section (2), the Administrator shall hold a summary inquiry in the prescribed manner and, after taking such evidence as may be produced, shall pass an order stating the reasons therefor, rejecting the application or allowing it wholly or in part on such terms and conditions as he thinks fit to impose.

15. Appeal and revision.—(1) Any person aggrieved by an order or decision of the Administrator may, within the prescribed period, which shall not be less than twenty-one days, prefer an appeal to the Board.

(2) The Board may, after giving the appellant an opportunity of being heard, pass such order as it thinks fit.

(3) The Board may, at any time, either of its own motion or on the application of any person made within the prescribed period, call for the record of any proceeding under this Act which is pending before, or has been disposed of by the Administrator, for the purpose of satisfying itself as to the legality or propriety of any order passed in the said proceeding and may after perusal of the record pass such order in relation thereto as it thinks fit:

Provided that the Board shall not, under this sub-section, pass an order revising or modifying an order affecting any person without giving such person an opportunity of being heard.

(4) An order of the Board in an appeal or revision shall be final.

16. Powers and duties of the Administrator generally.—(1) The Administrator may take such measures as he considers necessary or expedient for the purpose of securing, administering and managing any abandoned property or property of which possession has been taken by him and may, for and such purpose as aforesaid, do all acts and incur all expenses necessary or incidental thereto.

(2) Without prejudice to the generality of the provisions contained it sub-section (1), the Administrator may—

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(a) carry on the business or undertaking of a specified person ;

(b) enter or authorise any person to enter on any land or premises to inspect any abandoned property;

(c) take all such measures as may be necessary to keep any abandoned property in good repair ;

(d) direct any person, notwithstanding anything contained in any other law for the time being in force relating to the disclosure of any information by a public servant or any other person, to furnish such return, account or other information in relation to any property and to produce such documents as the Administrator considers necessary for the discharge of his duties under this Act ;

(e) search, or authorise any other person to search, any building or place in which the Administrator has reason to believe that any abandoned property or any document tending to show that any person is a specified person or that any property is abandoned property is being kept or concealed and take possession thereof ;

(f) determine the rent to be recovered from a person found in unauthorised occupation of abandoned property for the period of such occupation ;

(g) create a charge on abandoned property ;

(h) incur or allow any expenditure to be incurred in the prescribed manner including the payment of taxes, duties, cesses and rates to the Government or to any local authority or of any debt due by a specified person or any claim against him after satisfying himself as to the genuineness of such due or claim;

(i) demolish or dismantle any abandoned property which in the opinion of the Administrator cannot be repaired ;

(j) evict with such force as may be necessary an unauthorised occupant of abandoned property or an occupant of such property to whom it has been let out by or on behalf of the Administrator and who makes default in paying the rent for such property or otherwise commits a breach of the terms on which it is let out ;

(k) [1][* * * * * * *]

[2][(l) invest in any security approved by the Federal Government in the manner as may be prescribed.]

(3) The Administrator shall exercise the powers and perform the functions assigned to him by or under this Act under the general supervision and control of the Board.

17. Evaluation of abandoned property.—(1) The Administrator may determine the value of any property of which possession has been taken by him or empower any officer to do so.

[1]Omitted by Finance Act, 2019 (Act No. V of 2019), s. 8.
[2]Added by the Finance Act, 2024 (Act No. X of 2024), s. 6.

(2) If it appears to the Board in any case that the value of any property determined under sub-section (1) is not proper, it may make necessary enquiry an the matter and pass such orders as it may think proper and the orders so passed shall be final.

18. Expenditure by Administrator how to be recouped.—Subject to the provisions of section 14, any expenditure incurred by the Administrator in the exercise of any power conferred by this Act shall, in relation to any abandoned property in respect of which it has been incurred, be a charge on such property and shall have priority over all other charges on the property and such expenditure may be met or recouped by the Administrator out of the income accruing from such property.

19. Maintenance of accounts by Administrator.—(1) The Administrator shall maintain a separate account of each abandoned property of which he has taken possession, and shall cause to be made therein entries of all receipts and expenditure in respect thereof [1][Any surplus of receipts over the actual expenditure in a year shall be remitted to the Federal Consolidated Fund.].

(2) The account shall be maintained in such form and in such manner as the Federal Government may direct.

(3) The Federal Government shall cause the account to be inspected and audited at such interval and by such persons as it may, in consultation with the Auditor General of Pakistan, determine.

20. Powers of Board and Administrator when holding an inquiry, etc.—(1) When holding an inquiry or hearing an appeal or revision under this Act, the Administrator, or as the case may be, the Board shall have the same powers as are vested in a Court under the Code of Civil Procedure, 1908 (Act V of 1908), when trying a suit, in respect of the following matters, namely:—

(a) enforcing the attendance of any person and examining him on oath or affirmation ;

(b) compelling the discovery and production of documents, articles and things ;

(c) issuing a commission for the examination of witnesses ;

(d) any prescribed matter.

(2) Every proceeding before the Administrator or the Board under this Act shall be deemed to be judicial proceeding within the meaning of sections 193 and 228 of the Pakistan Penal Code (Act XLV of 1860), and for the purposes of section 196 of that Code, the Administrator or the Board shall be deemed to be a Court within the meaning of sections 480 and 482 of the Code of Criminal Procedure, 1898 (Act V of 1898).

[1]Added by Finance Act, 2019 (Act No. V of 2019), s. 8.

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21. Recovery of arrears.—When any person is in default in making payment of any amount payable to the Administrator and under this Act or in pursuance of any rule, regulation or agreement made or entered into thereunder, the Administrator may, in accordance with the rules recover the amount [1][, alongwith interest thereon at such rate as the Federal Government may, by notification in the official Gazette, specify,], by one or more of the following modes, namely:

(a) attachment and sale, or sale without attachment, of any movable and immovable property of such person ; and

(b) appointment of a receiver for the management of the movable and immovable properties of such person.

22. Penalty and procedure.—(1) Any person who

(a) contravenes, or resists or interferes with the enforcement of the provisions of this Act or any rule or order made thereunder; or

(b) in an application or in any proceedings under this Act, furnishes or abets the furnishing of any information which he knows or has reason to believe to be false, or fraudulantly conceals or mis-represents facts, or abets such concealment or mis-representation,

shall be punishable with rigorous imprisonment for a term which may extend to three years, or with fine or with both.

(2) No Court shall take cognizance of any offence punishable under this Act save upon a complaint is writing made by an officer appointed under this Act and authorised by the Board in this behalf.

23. Bar of jurisdiction.—No court shall grant any injunction or make any order, nor shall any court entertain any proceeding, in relation to anything done under this Act.

24. Indemnity.—No suit, prosecution or other legal proceeding shall lie against the Federal Government, the Board, the Administrator, a Deputy Administrator or any other person for anything in good faith done or intended to be done under this Act.

25. Delegation of powers.—The Federal Government may, by notification in the official Gazette, direct that all or any of its powers under this Act shall, subject to such conditions, if any, as may be specified in the notification, be exercised also by such officer or authority as may be so specified.

26. Officers and servants.—The Board may appoint or employ such officers and servants as it considers necessary for the efficient performance of its functions, on such terms and conditions as it may determine.

[1]Ins. by Act No. XLV of 1976, s. 5 (w. e. f 12-2-1975).

27. Act to override other laws.—The provisions of this Act or any order or rule made thereunder shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force or in any instrument having effect by virtue of any such law and nothing contained in any law relating to the determination of the rent of any immovable property shall apply to any abandoned property.

28. Power to exempt.—The Federal Government may by notification in the official Gazette, exempt any person or class of persons or any property or class of property from the operation of all or any of the provisions of this Act.

29. Power of Federal Government to take action with regard to abandoned property.—[1][(1)] Federal Government may, for the purpose of regulating the administration [2][, or disposal in the public interest, by the way of transfer or otherwise,] of any abandoned property, make such orders or direct such action to be taken in relation thereto as in its opinion the circumstances of the case require and as is not inconsistent with any of the provisions of this Act.

(2) [3][* * * * * * *]

30. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make such rules as appear to it to be necessary for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the terms and conditions of service of the Administrator and Deputy Administrators ;

(b) the functions to be performed by the Administrator and the Deputy Administrators ;

(c) the manner in which entry or search under clause (b) or clause (e) of sub-section (2) of section 16 may be made or possession of any abandoned property may be taken by the Administrator ;

(d) the manner in which inquiries under this Act may be held ;

(e) the time within which application for confirmation under section 13 or preferring claim under section 14 may be made ;

(f) the income-tax authority who may issue a no-objection certificate under section 13 ;

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[1] Re-numbered by the Finance Act, 2019 (Act No. V of 2019), s. 8.
[2] Ins. by Act No. XLV of 1976, s. 6 (w. e. f. 12-2-75).
[3] Omitted by the Finance Act, 2024 (Act No. X of 2024), s. 6.

(g) the powers vested in a civil court which may be exercised by the Administrator when holding any inquiry under this Act ;

(h) the fees payable to the Administrator for the administration of abandoned property ; and

(i) the delegation of powers and functions of the Administrator to a Deputy Administrator or any other officer appointed under this Act.

31. [1][Omitted]

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[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.

THE ACTING AS AGENTS OF MOALLIMS (PROHIBITION) ORDINANCE, 1980

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THE ACTING AS AGENTS OF MOALLIMS (PROHIBITION) ORDINANCE, 1980

ORDINANCE No. L OF 1980

[*29th September*, 1980]

An Ordinance to prohibit persons from acting as agents of Moallims.

WHEREAS it is expedient to prohibit persons from acting as agents of *Moallims* and to provide for matters ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order 1977 (*CMLA Order No. 1 of 1977*), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement. —(1) This Ordinance may be called the Acting as Agents of *Moallims* (Prohibition) Ordinance, 1980.

(2) it extends to the whole of Pakistan

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless, there is anything repugnant in the subject or context,—

(a) "intending pilgrim" means a person intending to proceed to Saudi Arabia to perform Haj under Haj Policy announced every year by the Federal Government; and

(b) "*Moallim*" means a *Moallim* or *Daleel*, including a person or corporation, nominated and approved by the Government of the Kingdom of Saudi Arabia to act as *Kafeel* for Hajis during Haj season.

3. **List of *Moallims* and their selection.**—(1) The Federal government shall, keeping in view the welfare and convenience of the intending pilgrims, publish a list of *Moailims* from which an intending pilgrim may select a *Moallim* before proceeding for Haj from Pakistan and specify the manner in which a *Moallim* is to be so selected.

(2) Selection of a *Moallim* made under sub-section (1) shall be final and no intending pilgrim shall be authorised to change that selection at any subsequent stage.

4. **Acting as agents, etc. of *Moallims* prohibited.**—(1) No person or group of persons shall—

(a) act, or hold himself or itself out, as an agent, attorney or representative of any *Moallim* ; or

(b) solicit, or in any way attempt to solicit, the appointment or selection of any particular person as the *Moallim* of an intending pilgrim ; or

(c) for securing any personal or pecuniary advantage for himself or itself or for any other person on whose behalf he or it may be acting, seek—

(i) to compel or induce an intending pilgrim to appoint or select any particular person as his *Moallim* , or

(ii) to influence the choice of a *Moallim* by an intending pilgrim ; or

(d) establish an office for any of the purposes aforesaid.

(2) Whoever contravenes the provisions of sub-section (1) shall be punishable with simple imprisonment for a term which may extend to two years, or with fine which may extend to five thousand rupees, or with both.

(3) No court shall take cognizance of an offence punishable under sub-section (2) except upon a complaint in writing made by, or under the authority of, the Federal Government.

5. Power to make rules. The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

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THE AGRICULTURAL PESTICIDES ORDINANCE, 1971.

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THE AGRICULTURAL PESTICIDES ORDINANCE, 1971.

[1]ORDINANCE No. II of 1971

[25th January, 1971]

An Ordinance to regulate the import, manufacture, formulation, sale, distribution and use of pesticides.

WHEREAS it is expedient to regulate the import, manufacture, formulation, sale, distribution and use of pesticides and for matters ancillary thereto;

AND whereas the national interest of Pakistan in relation to the achievement of uniformity requires Central legislation in the matter;

NOW, THEREFORE, in pursuance of the Proclamation of the 25th day of March, 1969, read with the Provisional Constitution Order, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

CHAPTER I

INTRODUCTORY

1. Short title extent and commencement.—(1) This Ordinance may be called the Agricultural Pesticides Ordinance, 1971.

(2) It stands to the whole of Pakistan.

(3) It shall come into force at once.

2. Application of other laws not barred. The provisions of tins Ordinance shall be in addition to, and not in derogation of the provisions of the Pension Act, 1919 (XII of 1919), and any other law for the time being in force.

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3. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context, the expression—

[2][(a) "adulterated" in relation to a pesticide means a pesticide with which spurious, deleterious or harmful substance has been mixed or which is wholly or mainly ineffective for the purpose for which it is intended.]

[1]Validated by the Validation of Laws Act, 1975 (63 of 1975), s. 2 and Sch.
[2]Subs. by the Agricultural Pesticides (Amdt) Act 1997. (39 of 1997) s. 2, for cl.(a).

(b) "advertise" means to make known by publication or distribution of any advertisement, circular or other notice;

[1]* * * * * * *

(d) "Committee" means the Agriculture Pesticide Technical Advisory Committee constituted under this Ordinance;

(e) "formulation" means the process by which a pesticide is converted, by mixing with other substances, into a form in which it is ready to be used;

(f) "fungi" means all rusts smuts, mildews, moulds, yeasts, and similar forms of plant life prescribed in this behalf and includes bacteria affecting plant life;

(g) "Government Analyst" means a Government Analyst appointed under this Ordinance;

(h) "guarantee" means the statement indicating the strength, effectiveness and other qualities of [2]* * * a pesticide which an importer, manufacturer, formulator, vendor or person holding stock for sale of [2]* * * a pesticide is required to submit under the rules at the time of applying for the registration of the [3][pesticide];

(i) "Inspector" means an Inspector appointed under this Ordinance;

(j) "ingredient" means any material used in making a pesticide;

(k) "insect" means any of the small invertebrate animals commonly known as insects and includes such forms of animal life as may be prescribed;

(1) "label" means the written, printed or graphic matter on, or attached to, a pesticide or the immediate container thereof, and the outside container or wrapper of the retail package, if any, of the pesticide;

(m) "package" includes every container;

(n) "pesticide" means any substance or mixture of substances used or represented as a means for preventing.

destroying, repelling, mitigating or controlling, directly or indirectly, any insect, fungus, bacterial organism, nematodes, virus, weed, rodent, or other plant or animal pest; but does not include a substance which is a 'drug' within the meaning of the [4][Drug Act, 1976].

(o) "prescribed" means prescribed by rules made under this Ordinance;

(p) "registered" means registered under this Ordinance;

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[1]Cl. (c) omitted by the Agricultural Pesticides (Amdt.) Act, 1992 (19 of 1992), s. 2

[2]The words "a brand of omitted *ibid*..

[3]Subs, *ibid.*, for "brand".

[4]Subs, by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 4981),-s. 3 and Sch. II, for "Drugs Act, 1940.".

(q) "registration number" means a specific number assigned by the [1][Federal Government] to each registered [2]* * pesticide ;

(r) "rules" means rules made under this Ordinance; [3]*

[4][(rr) "sub-standard" when used with reference to a pesticide, means any pesticide the strength or purity of which fells below the professed or quality which is expressed on its label or under which it is sold or a pesticide any valuable ingredient of which has been wholly or partially extracted; and]

(s) "weed" means any plant which grows where not wanted.

CHAPTER II

IMPORT, MANUFACTURE, FORMULATION, SALE, DISTRIBUTION, AND USE OF PESTICIDES.

[5]**[4. Pesticides to be registered.** No person shall import, manufacture, formulate, sell, offer for sale, hold any stock for sale or in any manner advertised any pesticide which has not been registered in the manner provided by this Act or the rules framed thereunder:

Provided that the Federal Government may, by notification in the official gazette directed that the pesticide specified in the notification and not having a trade name will be imported only by a class or classes of importers as specified; except a pesticide having a trade name and registered in the country of manufacture which may be improved without undergoing the registration process but subject to the conditions notified from time to time by the Federal Government.]

5. Application for registration of pesticide. —(1) Any person intending to import, manufacture, formulate, sell, offer for sale, hold in stock for sale or advertise any [6]* * * pesticide may apply to the [7][Federal Government] for the registration of the [8][pesticide] under such name as he may indicate in the application.

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(2) An application under sub-section (1) shall be in such i form, be accompanied by such fee and contain such statements ! and information as may be prescribed.

(3) Where the person making an application under subsection (1) is not domiciled in Pakistan, the application shall, besides such person, be signed by his agent or representative in Pakistan.

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[1]Subs, by F.A.O., (P. O. No. 4 of 1975) Art. 2 and Table, for "Central Government".
[2]The words "brand of omitted by the Agricultural Pesticides (Amdt.) Act, 1992 (J9 of 1992), s. 2.
[3]The word "and" omitted by the Agricultural Pesticides (Amdt) Act 1997. (39 of 1997) s. 2, "
[4]New clause (rr) ins. *ibid*.,
[5]Subs. by Act 19 of 1992, s. 3, for section 4.
[6]The words "brand of a" omitted by the Agricultural Pesticides (Amdt) Act, 1992 (19 ofl992), s. 4.
[7]Subs. by F.A.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Table, for "Central Government".

[8]Subs, by Act 19 of 1992," s. 4 for "brand"

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(4) Upon the receipt of an application under sub-section (1), the [1][Federal Government] may register [2]* * * pesticide by the name indicated in the application, if it is satisfied that—

(a) the [3]["name of the pesticide"] is not such as would tend to deceive or mislead the purchaser with respect to the guarantee relating to the pesticide or its ingredients or the method of its preparation; or

(b) the guarantee relating to the pesticide or its ingredients is not the same as that of another registered [3]'[pesticide] [4][by the same manufacturer] or is not so similar thereto as to be likely to deceive; or

(c) it is effective for the purpose for which it is sold or represented to be effective; or

(d) it is not generally detrimental or injurious to vegetation, except weeds, or to human or animal health, even when applied according to directions.

(5) When it registers a [2]* * * pesticide on the application of any person, the [1][Federal Government] shall grant to him a certificate of registration in such form as may be prescribed.

6. Period for which registration shall be effective. The registration of a [5]* * * pesticide shall be effective from the date of its registration until the thirtieth day of June of the third year following the year of registration.

7. Cancellation of registration. If, at any time after the registration of [5]* * * a pesticide, the [1][Federal Government] is of opinion that the registration has been secured in violation of any of the provisions of this Ordinance or the rules or that the pesticide is ineffective against pests of hazardous to vegetation, other than weeds, or to human or animal life, the [1][Federal Government] may, after giving to the person on whose application it had been registered an opportunity of being heard, cancelled the registration.

8. Renewal of registration.—(1) The [1][Federal Government] may, on the application of the importer, manufacturer, formulator, vendor or stock holder of a registered [6]* * * pesticide in the guarantee or ingredients of which no change has taken place since the date of its registration, renew the registration of the [4][pesticide] for a further period of three years.

(2) An application under sub-section (1) shall be in such form and be accompanied by such fee as may be prescribed and shall be made before the expiration of the period for which the registration of [4][pesticide] is effective.

[1]Subs. by F.A.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Table, for "Central Government".
[2]The words "brand of omitted by the Agricultural Pesticides (Amdt.) Act, 1992 (J9 of 1992), s. 2.
[3]Subs, by Act 19 of 1992," s. 4 for "brand"
[4]Ins.by the Agricultural Pesticides (Amdt.) Ordinance, 1979 (12 of 1979), s. 2.
[5]The words "band of a omitted by the Agricultural Pesticides (Amdt.) Act, 1992 (19 of 1992), s. 5.
[6]The words "the band of omitted ibid., s. 6.

9. Importation may be prohibited.– If any pesticide imported into Pakistan is found to be adulterated or incorrectly or misleadingly tagged, labelled or named, or if its sale in any way contravenes any of the provisions of this Ordinance, the [1][Federal Government] may, by notification in the official Gazette, prohibit the further import of the pesticide into Pakistan.

10. Labelling of packages.— [2][(1)] No person shall sell or offer or expose for sale, or advertise or hold in stock for sale any pesticide unless each package containing the pesticide, and every tage or label durably attached thereto is [3]* * marked in printed characters in such form and in such manner as may be prescribed.

[4][(2) Any dealer wholeseller, retailer or an agent, who has been convicted of not less than offences under this Ordinance shall be black listed by the importer, manufacturer, distributor or formulator of the pesticide in question.].

11. Shortage and use of pesticides. No person shall store or use of any pesticide save in accordance with rules made under this Ordinance.

CHAPTER III

THE AGRICULTURE PESTICIDE TECHNICAL ADVISORY COMMITTEE, ETC.

12. The Agriculture Pesticide Technical Advisory Committee.—(1) As soon as may be after the commencement of this Ordinance, the [1][Federal Government] shall constitute a committee, to be called the Agriculture Pesticides Technical Advisory Committee, to advise the [1][Federal Government] on technical matters arising out of the administration of this Ordinance and to perform any other functions assigned to it by or under this Ordinance.

(2) The commitee shall consist of a Chairman and such number of Vice-Chairman and other members, being officers of the [1][Federal Government] or a Provincial Government or persons representing trade and industry engaged in pesticide business, as the [1][Federal Government] may appoint:

Provided that no officer of a Provincial Government and no person representing trade and industry so engaged in a Province shall be appointed otherwise than on the recommendation of the Government of the Province concerned.

(3) The names of the Chairman, the Vice-Chairman and the other members of the Committee shall be published in the official Gazette.

(4) The [1][Federal Government] shall appoint one of the members of the Committee, being an officer of that Government, to be the Secretary of the Committee for the period for which he is such a member.

(5) The non-official members of the Committee shall hold office for a term of three years and shall be eligible for re- appointment

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[1]Subs. by F.A.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Table, for "Central Government".
[2]Re-numbered by the Agricultural Pesticides (Amdt.) Act 1997, (39 of 1997) s. 3.
[3]The words "brnaded or" omitted ibid..
[4]New sub-section (2) added by the Agricultural Pesticide (Amdt.) Act 1997 (39 of 1997) s. 3. .

(6) A member of the Committee may, at any time, resign his office by writing under his hand addressed to the Chairman; but the seat of such member shall not be deemed to have fallen vacant unless the registration has been accepted by the Chairman with the previous approval of the [1][Federal Government.]

(7) A person appointed to fill a vacancy created by the registration or death of a member shall hold office for the residuce of the term of his predecessor.

(8) The Functions of the Committee may be exercised not-withstanding any vacancy in the membership thereof.

(9) The Committee shall have the power to regulate with the prior approval of the [1][Federal Government] the procedure for the conduct of its business.

(10) The Committee may appoint sub-committees consisting of specialists for the consideration of particular matters for such periods, not exceeding three years, as it may consider necessary.

13. Pesticide Laboratory.—(1) As soon as may be after the commencement of this Ordinance, the [1][Federal Government] shall set up a Pesticide laboratory [2][or, in consultation with the Provincial Government, declare a Provincial laboratory as Pesticide Laboratory which may be] suitably equipped to carry out the functions entrusted to it by or under this Ordinance.

(2) The Functions of the Pesticide Laboratory and the mode of submission of samples for analysis or test to the Laboratory shall be such as may be prescribed.

(3) The secrecy of the formulae of [3]* * pesticides, samples of which are submitted to the Pesticide Laboratory for analysis or test, shall be duly safeguarded in the manner prescribed.

14. Government Analyst. The [1][Federal Government] may, by notification in the official Gazette, appoint as many persons as it deems fit to be Government Analysts for pesticides and, where it appoints more than one persons to be Government Analysts, shall specify in the notification the local limits within which each one of them shall perform the functions of Government Analyst.

15. Inspectors. The [1][Federal Government] may, by notification in the official Gazette, appoint from amongst the officers of the [1]'[Federal Government] or a Provincial Government employed for work relating to plant protection such number as it deems fit to be Inspectors within such local limits as may be specified in the notification.

[1]Subs, by F.A.O., 1975 (P.O. No. 4 of 1975), Art, 2 and Table, for "Central " Government"
[2]Ins. by the Agriculture Pesticide (Amdt) Act 1992 (19 of 1992), s. 8.
[3]The words "brands of' omitted *ibid.,*

16. Powers of Inspectors. An Inspector may, within the local limits for which he is appointed, enter upon any premises where pesticides are kept or stored, whether in containers or in bulk, by or on behalf of the owner, including premises belonging to a bailee, such as a railway, a shipping company or any other carrier, and may take samples therefrom for examination. No compensation shall be payable for a reasonable quantity taken as a sample.—

17. Procedure of Inspectors.—(1) Where an Inspector takes a sample of a pesticide for the purpose of test or analysis under section 16, he shall intimate such purpose in writing in the prescribed form to the person from whose possession he takes it and, in the presence of such person (unless he wilfully absents himself), shall divide the sample into three portions and effectively seal and suitably mark the same and permit such person to add his own seal and mark to all or any of the portions so sealed and marked ;

Provided that, where the pesticide is made up in containers of small volume, instead of dividing a sample as aforesaid, the Inspector may, and if the pesticide be such that it is likely to deteriorate or be otherwise damaged by exposure shall, take three of the said containers after suitably marking the same and, where necessary, sealing them.

(2) The Inspector shall restore one portion of a sample so divided or one container, as the case may be, to the person from Whom he takes it, and shall retain the remainder and dispose of the same as follows:—

(i) he shall forthwith send one portion or container to the Government Analyst for test or analysis; and

(ii) he shall send the second portion or container to the [1][Federal Government].

18. Report of Government Analyst.—(1) The Government Analyst to whom a sample of any pesticide has been forwarded by an Inspector under sub-section (2) of section 17 deliver to the Inspector, in triplicate in the prescribed form assigned report of the result of the test or analysis conducted by him.

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(2) The Inspector shall deliver one copy of the report received by him to the person from whose possession the sample was taken and shall send one copy to the [1][Federal Government].

(3) Any document purporting to be a report signed by the Government Analyst of an analysis conducted by him under this Chapter shall be conclusive evidence of the particulars stated therein unless the person to whom the report has been delivered under sub-section (2) disputes the correctness of the analysis conducted by the Government Analyst and, within thirty days of the delivery of the report to him, places before the [1][Federal Government] evidence which in his opinion controverts the correctness of such analysis.

(4) Where the evidence placed before the [1][Federal Government] under sub-section (3) is such as would in its opinion justify a further investigation, it may cause a second part of the same sample to be analysed at the Pesticide Laboratory.

[1]Subs, by F.A.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Table, for "Central Government".

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(5) After the sample forwarded to it by the [1][Federal Government] has been analysed by the Pesticide Laboratory, the Laboratory shall record the result of the analysis in a certificate of analysis and forward the certificate to the [1][Federal Government].

(6) A certificate of analysis prepared by the Pesticide Laboratory shall be conclusive evidence of the facts stated therein.

19. Publication of results of test and analysis. The [1][Federal Government] may publish in such manner as it may deem fit the result of the test and analysis of a pesticide made by a Government Analyst or the Pesticide Laboratory under section 18 together with such other information relating thereto if any as it may consider necessary.

20. Purchaser of pesticide may have it tested or analysed.—(1) Any person who has purchased a pesticide may apply to a Government Analyst to conduct a test or analysis of the pesticide.

(2) An application under sub-section (1) shall be made in such form and manner and be accompanied by such fee as may be prescribed.

(3) The Government Analyst to whom an application is made in accordance with sub-section (2) shall conduct the test or analysis and issue to the applicant a report signed by him of the test or analysis.

CHAPTER IV

MISCELLANEOUS.

[2]**[21. Offences and penalties.**—(1) Any person who imports, manufactures, formu lates, sells, offers or exposes for sale, holds in stock for sale or advertises for sale an adulterated or sub-standard pesticide shall be guilty of an offence.

(2) The person guilty of an offence under sub-section (1) shall be punished,—

(a) in the case of an adulterated pesticide, in relation to a first offence with imprisonment for a term which shall not be less than one year or more than three years and with fine amounting to five hundred thousand rupees and for every subsequent offence with imprisonment for a term which shall not be less than two years or more than three years and with fine which shall not be less than five hundred thousand rupees or more than one million rupees; and

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[1]Subs, by F.A.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Table, for "Central Government."
[2]Subs, by the Agricultural Pesticides (Amdt.) Act 1997, (39 of 1997) s. 3. for section 21, which was previously amended by Act 19 of 1992, s. 9.

(b) in the case of a sub-standard pesticide, in relation to a first offence with imprisonment for a term which shall not be less than six months or more than two years and with fine which may extend to five hundred thousand rupees and for every subsequent offence with imprisonment which may extend to three years and with fine but shall not be less than the punishment given for the first offence.]

[1][21A. **Punishment for offences not provided for in section 2.** Any person who contravenes any of the provisions of this Ordinance or the rules for the contravention of which no other punishment is provided in this Ordinance, shall be punishable with fine which may extend to one hundred thousand rupees].

[2][22. **Manufacturer's warranty to dealers.** Whoever gives a false warranty to a dealer or purchaser in respect of adulterated or sub-standard pesticide shall, unless he proves that when he gave the warranty, he had good reason to believe the same to be true, be guilty of an offence punishable in the same manner and to the same extent as provided for under section 21.]

23. Unlawful use of registration number lowering of pesticidal value or hindering the Inspector from performing his duty. Any person who—

(a) unlawfully uses any registration number assigned or as if it had been assigned under this Ordinance, or

(b) wilfully alters the composition of a pesticide by mixing any other substance therewith after the said pesticide has been placed on the market by the manufacturer, importer or vendor, or

(c) wilfully obstructs, hinders, resists, or in any way opposes any Inspector in performing his duties under this Ordinance,

[3][shall be punishable,—

(i) in the case of an offence under clause (a) or (b) with imprisonment for a term which shall not be less than two years or more than three years and with fine which may extend to one million rupees; and

(ii) in the case of an offence under clause (c) with imprisonment for a term which may extend to six months and with fine which may extend to one hundred thousand rupees]:

24. Entry and seizure.—(1) If an Inspector has reason to believe that an offence punishable under this Ordinance or the rules made thereunder has been, is being or is about to be committed at any time or place, he may enter and search, such place and seize any pesticide, article or thing to which the offence relates found therein.

[1]New section 21A ins. by the Agricultural Pesticides (Amdt.) Act 1997, (39 of 1997) s. 5.
[2]Subs, ibid:, s. 6, for section 22, which was previously amended by Act 19 of 1992, s. 11
[3]Subs, by the Agricultural Pesticides (Amdt.) Act 1997 (39 of 1997), s. 7,for "certain words".

(2) Any pesticide, article or thing seized under sub-section (1) shall be disposed of in accordance with the decision of the Court before which the offender is prosecuted for a contravention of any of the provisions of this Ordinance or the rules.

[1][(3) An Inspector may apply to the District Magistrate, Additional District Magistrate, Sub-Divisional Magistrate of the District or Sub-Division or Tehsil or Taluka, as the case may be, for police assistance and such Magistrate may direct that an executive Magistrate shall accompany the Inspector alongwith a police party for the purpose of collecting sample for examination.].

25. Power of Court to order forfeiture. If any person is convicted of an offence punishable under this Ordinance committed by him in respect of any pesticide, article or thing, the Court convicting him may further direct that the pesticide, article or thing shall be forfeited to the [2][Federal Government.]

26. Cognizance of offences, etc.—(1) No court inferior to that of a Magistrate of the first class shall try an offence punishable under this Ordinance (Act V of 1898).

(2) Notwithstanding anything contained in section 32 of the Code of Criminal Procedure, 1898(Act V of 1898)., it shall be lawful for any Magistrate of the first class to pass any sentence authorised by this Ordinance even if such sentence exceeds his powers under the said section 32.

[3]**[26A. Cognizance and prosecution of offences.** The offences punishable under this Ordinance shall be cognizable and non-bailable but a police officer shall not register or investigate a case relating to an offence under this Ordinance except on a complaint by the Inspector and the Public Prosecutor shall be responsible for conducting prosecution of offences under this Ordinance.]

27. Power to try offences summarily. Any Magistrate of the first class or any bench of Magistrates invested with the powers of a Magistrate of the first class empowered for the time being to try in a summary way the offences specified in sub-section (1) of section 260 of the Code of Criminal procedure, 1898(Act V of 1898), may, on application, in this behalf being made by the prosecution, try in accordance with the provisions contained in sections 262 to 265 of that Code, any offence punishable under section 21.

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28. Indemnity. No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Ordinance or the rules.

29. Power to make rules.—(1) The [2][Federal Government] may, in consultation with the Agriculture Pesticide Technical Advisory Committee and after previous publication in the official Gazette, make rules for carrying the provisions of this Ordinance into effect.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :—

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[1]New sub-section (3) added by the Agricultural Pesticides (Amdt.) Act, 1997 (39 of 1997) s. 8.
[2]Subs. by F.A'.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Table, for "Central Government." ,
[3]New section 26A ins. by Act 39 of 1997. s. 9.

(a) the nomenclature of every form of plant and animal. life that shall be deemed to be insects, fungi or other plant or animal pests;

(b) the form in which an application for the registration of a [1]* * * pesticide or for the renewal of registration shall be made, the, information that shall be furnished therewith and the fee that shall accompany it;

(c) the procedure for the grant of certificates of registration of [2][pesticides not having a trade name or otherwise] and renewal of such registration and the form of such certificates;

(d) the language of the tags or label to be attached to the containers and packages containing pesticides and the character and location of the printing to be marked on such tags, labels and containers;

(e) the functions of the Pesticides Laboratory and the procedures to be followed by it in the performance of such functions, including—

(i) safeguarding of the secrecy of the formulae of any [3]* * *pesticides disclosed to it;

(ii) collection of samples of pesticides for test or analysis; and

(iii) the form in which its reports of tests or analysis shall be written;

(f) the methods of analysis to be followed, and the limits of variability to be allowed, by the Government Analyst as between the information marked on the container or on a label attached thereto or supplied to the purchaser when sold in bulk, and the results of the analysis;

(g) the qualifications and duties of the Government Analysts;

(h) the form in which an intimation of the purpose for which a sample is taken by an Inspector shall be given by him to the person from whose possession the sample is taken, the instruments to be employed, and the quantities to be taken, by an Inspector while taking samples for test or analysis and the manner in which they should be preserved and sent to the Government Analyst and the [4][Federal Government];

(i) the form in which an application shall be made by the purchaser of a pesticide to a Government Analyst for test or analysis of the pesticide, the manner in which a purchaser may send a pesticide for test or analysis to the Government Analyst, the information that shall be furnished with such application and the fee that shall accompany it;

[1]The words 'brand of a" omitted by the Agricultural Pesticides (Amdt.) Act 1992, (19 of 1992) s. 12.

[2]Subs, by the Agricultural Pesticides (Amdt.) Act. 1992 (19 of 1992), s: 12, for "brands of pesticides".
[3]The words "brands of" omitted ibid. 3See foot-note I. on page 930 supra.
[4]Subs. by F.A'.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Table, for "Central Government."

(j) the pesticides that are generally detrimental or injurious to vegetation, domestic animals or public health even when used according to directions;

(k) the pesticides that are to be labelled "Poison" and their antidotes;

(l) the requirements for the safe storage of pesticides ;

(m) the quantities of different [1] * * pesticides which a person may hold in stock at any one time and the premises in which, and the conditions subject to which, he may hold them in stock;

(n) the precautions for the protection of workers against risk of poisoning by pesticides arising from their working—

(i) in connection with the use of such pesticides in agriculture; or

(ii) on land on which such pesticides are being or have been used in agriculture;

(o) the restrictions or conditions as to the purposes for which, the circumstances in which, or the methods or means by which, a pesticide may be used;

(p) the restrictions or conditions involving a general prevention or limitation of the use of any pesticide in agriculture;

(q) the provision, and keeping available and in good order, of facilities for washing and cleaning and of other things needed for protecting persons, clothing, equipment and appliances from contamination with pesticides or for removing sources of contamination therefrom;

(r) the observance of precautions against poisoning by pesticides including the use of things provided in pursuance of the rules, and abstentions from eating, drinking and smoking in circumstances involving risk of poisoning by pesticides;

(s) intervals between, or limitations of, periods of exposure to risk of poisoning by pesticides;

(t) the observance of special precautions in the case of persons who, by reason of their state of health, age, or other circumstances, are subject to particular risk of poisoning by pesticides or of injury therefrom, or imposing, in case of persons so subject, prohibitions or restrictions on employment of workers ;

(u) the measures for detecting and investigating cases in which poisoning by pesticides has occurred;

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[1]The words "brands of by the Agricultural Pesticides (Amdt) Act, 1992 (19 of 1992) s. 12.

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(v) the provisions of effective facilities for prevention of poisoning by pesticides and first aid treatment; and

(w) the provision of instruction and training in the use of things provided in pursuance of the rules and in the observance of precautions against poisoning by pesticides.

30. Delegation of Powers. The [1][Federal Government] may, by notification in the official Gazette, direct that all or any of its powers under this Ordinance or the rules shall in such circumstances, and under such conditions, if any, as may be specified in the direction, be exercised also—

(a) by any officer or authority subordinate to the Federal Government, or

(b) by any Provincial Government or by any officer or authority subordinate to such Government.

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[1]Subs. by F.A'.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Table, for "Central Government"

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THE ANTI-DUMPING DUTIES ORDINANCE, 2000

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THE ANTI DUMPING DUTIES ORDINANCE, 2000

ORDINANCE NO. LXV of 2000

[22nd December, 2000]

An Ordinance to amend and consolidate the Law relating to imposition of anti dumping duties to offset such dumping

WHEREAS it is expedient to give effect in Pakistan to the provisions of Article VI of the General Agreement on Tariffs and Trade. 1994, and to the Agreement on implementation thereof and to amend and consolidate the law relating to imposition of anti-dumping duties to offset such dumping, to provide a framework for investigation and determination of dumping and injury in respect of goods imported into Pakistan and for matters ancillary thereto or connected therewith;

AND WHEREAS the imposition of anti-dumping duties to offset injurious dumping is in the public interest;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. I of 1999, read with the Provisional Constitution (Amendment) Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

PART I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Ordinance may be called the Anti-Dumping Duties Ordinance, 2000.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definition. In this Ordinance, unless there is anything repugnant in the subject or context:—

(a) "Appellate Tribunal" means the Appellate Tribunal established under section 64;

(b) "Commission" means the National Tariff Commission established under the National Tariff Commission Act, 1990 (Act VI of 1990);

(c) "country" means any country or territory whether a member of the World Trade Organisation or not and includes a customs union or separate customs territory;

(d) "domestic industry" means the domestic producers as a whole of a domestic like product or those of them whose collective output of that product constitutes a major proportion of the total domestic production of that product, except that when any such domestic producers are related to the exporters or importers, or are themselves importers of the allegedly dumped investigated product in such a case "domestic industry" shall mean the rest of the domestic producers.

Explanation.—For the purposes of this clause, producers shall be deemed to be related to exporters or importers only if—

(i) one of them directly or indirectly Controls the other;

(ii) both of them are directly or indirectly controlled by the same third person; or

(iii) together they directly or indirectly control a third person:

Provided that there are grounds for believing or suspecting that the effect of the relationship is such as to cause the producer concerned to behave differently from non-related producers and for that purpose one shall be deemed to control another when the former is legally or operationally in a position to exercise restraint or direction over the latter:

Provided further that, in exceptional circumstances, as may be determined by the Commission, domestic industry in relation to a product in question may be divided into two or more competitive markets and producers within each such market may be regarded as a separate industry if—

(i) the producers within such a market sell all or almost all of their production of the product in question in such a market; and

(ii) the demand in such a market is not to any substantial degree supplied by producers of the product in question located elsewhere in Pakistan;

(e) "domestic like product" means the domestically produced product which is a like product to an investigated product;

(f) "dumping margin" in relation to a product, means the amount by which its normal value exceeds its export price;

(g) "export price" means export price determined in accordance with Part IV of this Ordinance;

(h) "exporting country" means, save as provided in sub-section (3) of section 5, a country from which an investigated product is exported to Pakistan;

(i) "injury" means, unless otherwise specified, material injury to a domestic industry, threat of material injury to a domestic industry or material retardation of the establishment of a domestic industry, when dumped imports are causing such injury;

(j) "interested party" includes-

(i) any exporter or foreign producer of an investigated product;

(ii) any importer of an investigated product;

(iii) trade or business association a majority of the members of which are producers, exporters or importers of an investigated product;

(iv) the government of an exporting country;

(v) any producer of a domestic like product in Pakistan;

(vi) trade or business associations a majority of the members of which produce a domestic like product in Pakistan; and

(vii) such other person or group of persons as the Commission may, by notification in the official Gazette, specify;

(k) "investigated product" means a product which is subject to an anti-dumping investigation as described in the notice of initiation of the investigation;

(l) "investigation" means an investigation conducted under this Ordinance;

(m) "like product" means a product which is alike in all respects to an investigated product or, in the absence of such a product, another product which, although not alike in all respects, has characteristics closely resembling those of the investigated product;

(n) "normal value" means normal value determined in accordance with Part III of this Ordinance;

(o) "prescribed" means prescribed by rules made under this Ordinance; and

(p) "WTO" means the World Trade Organisation established pursuant to the Marrakesh Agreement concluded in Marrakesh, Morocco, on the 15th April 1994.

PART II
ANTI-DUMPING MEASURES

3. Levy of anti-dumping duty.—(1) The Commission shall, by notification in the official Gazette, impose anti-dumping measures on products imported into Pakistan when it determines, pursuant to an investigation initiated and conducted in accordance with the provisions of this Ordinance, that -

(a) an investigated product is dumped within the meaning of this Ordinance; and

(b) injury is being caused to domestic industry within the meaning of this Ordinance.

PART III
IDENTIFICATION OF DUMPING AND DETERMINATION OF NORMAL VALUE

4. Identification of dumping. For the purposes of this Ordinance, an investigated product shall be considered to be dumped if it is introduced into the commerce of Pakistan at a price which is less than its normal value.

5. Normal value based on prices in exporting country.—(1) Save as provided for in section 6, the Commission shall establish normal value of an investigated product on the basis of comparable price paid or payable, in the ordinary course of trade, for sales of a like, product when destined for consumption in an exporting country.

(2) Notwithstanding anything contained in sub-section (1), the Commission may establish normal value of an investigated product on the basis of comparable price paid or payable in the ordinary course of trade for sales of a like product when destined for consumption in the country of origin of the investigated product if—

(a) such products are not produced in an exporting country; or

(b) there is no comparable price for them in an exporting country.

(3) In the event the Commission decides to establish normal value on the basis of the country of origin of an investigated product pursuant to sub-section (2), any reference to an exporting country in this Ordinance shall be deemed to refer to the country of origin of the investigated product.

6. Normal value based on export price to a third country or on constructed value.—(1) When there are no sales of a like product in the ordinary course of trade in domestic market of an exporting country, or when such sales do not permit a proper comparison because of any particular market situation or low volume of the sales in the domestic market of the exporting country, the Commission shall establish normal value of an investigated product or the basis of either—

(a) a comparable price of the like product when exported to an appropriate third country provided that this price is representative; or

(b) the cost of production in the exporting country plus a reasonable amount for administrative, selling and general costs and for profits.

(2) Sales of a like product destined for consumption in domestic market of an exporting country or sales to an appropriate third country may be considered to be a sufficient quantity for the determination of normal value if such sales constitute five per cent or more of the sales of an investigated product to Pakistan:

Provided that the Commission shall apply a lower ratio if, on the basis of evidence submitted by interested parties or otherwise available to it, it is satisfied that sales at such lower ratio are nonetheless of sufficient magnitude to provide for a proper comparison.

7. Circumstances in which certain sales may be disregarded in determining normal value.— (I) The Commission may treat sales of a like product in domestic market of an exporting country or sales to a third country at prices below per unit, fixed and variable, cost of production plus administrative, selling and other costs as not being in the ordinary course of trade by reason of price and may disregard such sales in determining normal value only if the Commission determines that such sales were made-

(a) within an extended period of time which shall normally be a period of one year and in no case less than a period of six months;

(b) in substantial quantities; and

(c) at prices which do not provide for the recovery of all costs within a reasonable period of time.

(2) For the purposes of sub-clause (b) of sub-section (1), sales below per unit cost shall be deemed to be in substantial quantities if the Commission establishes that—

(a) a weighted average selling price of transactions under consideration for the determination of normal value is below a weighted average cost; or

(b) the volume of sales below per unit cost represents twenty per cent or more of the volume sold in transactions under consideration for the determination of normal value.

(3) If prices which are below per unit cost at the time of sale are above the weighted average cost for the period of investigation, the Commission shall consider such prices as providing for recovery of costs within a reasonable period of time.

8. Calculation of costs for the purposes of sections 6 and 7.—(1) For the purposes of sections 6 and 7, the Commission shall normally calculate costs on the basis of records kept by an exporter or a producer under investigation provided that such records are in accordance with the generally accepted accounting principles of an exporting country and reasonably reflect the costs associated with the production and sale of a like product.

(2) For the purposes of sections 6 and 7, the amounts for administrative, selling and general costs and for profits shall be based on actual data pertaining to production and sales

in the ordinary course of trade of a like product for consumption in an exporting country by any exporter or producer under investigation:

Provided that where the Commission is satisfied that such amounts cannot be determined on the basis set out in sub-section (2), the amounts may be determined on the basis of-

(a) the actual amounts incurred and realised by an exporter or a producer in question in respect of production and sales in domestic market of an exporting country of the same general category of products;

(b) the weighted average of the actual amounts incurred and realised by other exporters or producers subject to investigation in respect of production and sales of a like product in domestic market of an exporting country; or

(c) any other reasonable method provided that the amount for profit so established shall not exceed the profit normally realised by other exporters or producers on sales of products of the same general category in domestic market of an exporting country of a like product.

(3) The Commission shall consider all available evidence on the proper allocation of costs, including such information as is made available by any exporter or producer of a like product in the course of an investigation provided that such allocations have been historically utilised by the exporter or producer, in relation to establishing appropriate amortisation and depreciation periods and allowances for capital expenditures and other development costs, as the case may be.

(4) Unless already reflected in the cost allocations under this section, the Commission shall adjust costs appropriately for those non-recurring items of cost which benefit either future or current production or both, or, for circumstances in which costs during the period of investigation are affected by start-up operations. Such adjustment made for start-up operations shall reflect the costs at the end of the start-up period or, if that period extends beyond the period of investigation, the most recent costs which can reasonably be taken into account by the Commission during the investigation.

9. Exports from a country in which the government exercises sufficient control over economic decisions so that the domestic market does not operate freely.—(1) Where the Commission determines that the government of an exporting country exercises sufficient control over economic decisions so that domestic market of such exporting country does not operate freely, the Commission may, determine normal value on the basis of—

(a) a comparable price paid or payable, in the ordinary course of trade, for sales of a like product when destined for consumption in an appropriate market economy country;

(b) where the Commission determines that the provisions of clause (a) cannot be applied, a comparable price paid or payable, in the ordinary course of trade, for exports of a like product from an appropriate market economy country to other countries, including Pakistan;

(c) where the Commission determines that the provisions of clauses (a) and (b) cannot be applied, a price actually paid or payable in Pakistan for a domestic like product; duly adjusted if necessary to include a profit margin corresponding to the margin to be expected under the existing economic circumstances for the sector concerned; or

(d) where the Commission determines that the provisions of clauses (a), (b) and (c) cannot be applied, any other reasonable basis.

(2) In identifying an appropriate market economy country for the purposes of sub-section (1), the Commission shall take into account factors such as—

(a) similarity of the product in terms of materials and end use;

(b) similarity of production methods; and

(c) availability of necessary information to the Commission.

PART IV

DETERMINATION OF EXPORT PRICE

10. Export price. —(1) Save as provided for in sub-sections (2) and (3), an export price shall be a price actually paid or payable for an investigated product when sold for export from an exporting country to Pakistan.

(2) In cases where there is no export price or where it appears to the Commission that an export price is unreliable because of association or a compensatory arrangement between an exporter and an importer or a third party-

(a) the export price may be constructed on the basis of a price at which imported products are first resold to an independent buyer; or

(b) if the imported products are not resold to an independent buyer, or not resold in the condition as imported, on such reasonable basis as the Commission may determine.

(3) Where, the Commission determines normal value on the basis of the country of origin pursuant to sub-section (2) of section 5, an export price shall be a price actually paid or payable, as determined by the Commission, for an investigated product when sold for export in the country of origin of the investigated product.

PART V

COMPARISON BETWEEN NORMAL VALUE AND EXPORT PRICE

11. Comparison.—(1) To ensure a fair comparison between export price and normal value, the Commission shall, where possible, compare export price and normal value with the same characteristics in terms of level of trade, time of sale, quantities, taxes, physical characteristics, conditions and terms of sale and for delivery at the same place which shall

normally be at ex-factory level. Where an interested party demonstrates to the Commission that any of the factors set out in this sub-section or any other factors identified by such interested party affect price comparability, the Commission shall make due allowance for differences in such factors to the extent that the same affect price comparability.

(2)In cases where export price is constructed on the basis of a price at which imported products are first resold to an independent buyer pursuant to sub-clause (a) of sub-section (2) of section 10, allowances for costs including duties and taxes incurred between importation and resale, and a reasonable amount for profits accruing, may also be made. If in such cases price comparability has been affected, the Commission shall establish normal value at a level of trade equivalent to a level of trade of a constructed export price, or shall make due allowance as warranted under this section.

(3) The Commission shall indicate to the parties in question what information is necessary to ensure a fair comparison and shall not impose an unreasonable burden of proof on those parties.

12. Comparison methods.—(1) Subject to section 11, existence of dumping margin shall normally be established on the basis of a comparison of a weighted average normal value with a weighted average of prices of all comparable export transactions or by a comparison of normal value and export prices on a transaction-to-transaction basis.

(2) Normal value established on a weighted average basis may be compared to *prices* of individual export transactions if-

(a) the Commission *finds* a pattern of export prices, which differs significantly among different purchasers, regions or time periods; and

(b) the Commission provides an explanation as to why such differences cannot be taken into account appropriately by the use of a weighted average-to-weighted average or transaction-to-transaction comparison.

13. Currency conversion.—(1) Should the price comparison under sections 11 and 12 require a conversion of currencies, the Commission shall make such conversion *using* the rate of *exchange* on the date of sale.

(2) For the purposes of sub-section (1), the date of sale shall normally be the date of contract, purchase order, order confirmation or invoice, whichever establishes the material terms of sale.

(3) Notwithstanding anything in sub-sections (1) and (2), when a sale of foreign currency on forward markets is used in direct relation to an export sale, the Commission *shall* use the rate of exchange in the forward sale for all the related transactions.

(4) The Commission shall ignore fluctuations in *exchange rates* and shall allow exporters at least sixty days to have adjusted their export *prices* to *reflect sustained* movements in exchange rates during the period of investigation.

14. Individual dumping margin.—(1) The Commission shall determine an individual dumping margin for each known exporter or producer of an investigated product.

(2) Notwithstanding anything contained in sub-section (1), where the Commission is satisfied that the number of exporters, producers or importers, or types of products involved is so large as to make it impracticable to determine an individual dumping margin for each known exporter or producer concerned of an investigated product, the Commission may limit its examination to a reasonable number of interested parties or investigated products by using samples which are statistically valid on the basis of information available to the Commission at the time of selection, or to the largest percentage of volume of exports from the country in question which can reasonably be investigated.

(3) The selection of exporters, producers, importers or types of products shall normally be made by the Commission in consultation with the exporters, producers or importers concerned:

Provided that the final selection of the exporters, producers, importers or types of products shall rest with the Commission.

(4) In cases where the Commission has limited its examination as provided for in sub-sections (2) and (3), the Commission shall nevertheless determine an individual dumping margin for any exporter or producer who, voluntarily submits the necessary information in time for that information to be considered during the course of an investigation:

Provided that where the Commission determines that the number of exporters or producers is so large that individual examinations would be unduly burdensome to the Commission and prevent the timely completion of the investigation, the Commission may decline to determine an individual dumping margin on the basis of such voluntary responses and limit its examination to such exporters and producers selected pursuant to sub-section (2).

PART VI

DETERMINATION OF INJURY

15. Determination of injury.—(1) A determination of injury, for the purposes of this Ordinance, shall be based on an objective examination of all relevant factors by the Commission which may include but shall not be limited to-

(a) volume of dumped imports;

(b) effect of dumped imports on prices in domestic market for like products; and

(c) consequent impact of dumped imports on domestic producers of such products.

(2) With regard to volume of dumped imports, the Commission shall consider whether there has been a significant increase in dumped imports, either in absolute terms or relative to production or consumption in Pakistan.

(3) With regard to effect of dumped imports on prices in domestic market, the Commission shall consider whether-

(a) there has been a significant price undercutting by the dumped imports as compared with price of a domestic like product; or

(b) whether the effect of dumped imports is otherwise to depress prices to a significant degree or prevent price increases, which otherwise would have occurred, to a significant degree.

(4) No one or several of the factors identified in sub-section (2) or (3) shall be deemed to necessarily give decisive guidance and the Commission may take into account such other factors as it considers relevant for the determination of injury.

(5) In circumstances where domestic industry in relation to a product in question has been divided into two or more competitive markets, and producers within each such market are regarded as a separate industry under the second proviso to the explanation to clause (d) of section 2, injury may be found to exist even where a major portion of the total domestic industry does not suffer injury provided that, there is a concentration of dumped imports into such a market, and provided further that dumped imports are causing injury to the producers of all or almost all of the production within such market.

16. Cumulation. Where imports of a like product from more than one country are the subject of simultaneous investigations under this Ordinance, the Commission may cumulatively assess the effects of such imports on domestic industry only if it determines that-

(a) dumping margin in relation to an investigated product from each country is more than the negligible amount as specified in clause (a) of sub-section (3) of section 41, and volume of dumped imports from each investigated country is not less than the negligible quantity as specified in clause (b) of sub-section (3) of section 41; and

(b) a cumulative assessment of the effects of the imports is appropriate in the light of—

(i) the conditions of competition between the imports; and

(ii) the conditions of competition between the imports and a domestic like product.

17. Examination of impact of dumped imports on domestic industry.—(1) An examination of Impact of dumped imports on domestic industry concerned shall include an evaluation by the Commission of all relevant economic factors and indices having a bearing on the state of the domestic industry, including, but not limited to—

(a) actual and potential decline in sales, profits, output, market share, productivity, return on investments, or utilisation of capacity;

(b) factors affecting domestic prices;

(c) magnitude of dumping margin; and

(d) actual and potential negative effects on cash flow, inventories, employment, wages, growth, ability to raise capital or investments.

Explanation.—The list of factors specified in sub-section (1) shall not be exhaustive, nor shall one or several of these factors be deemed to necessarily give decisive guidance.

(2) The Commission shall assess effect of dumped imports in relation to production of a domestic like product in Pakistan when available data permit separate identification of that production on the basis of criteria of production process, producer's sales and profits:

Provided that if such separate identification of that production is not possible, the Commission shall assess effects of dumped imports by examination of the production of the narrowest group or range of products, which includes a domestic like product, for which necessary information can be provided.

18. Causation.—(1) The Commission shall satisfy itself that dumped imports are, through the effects of dumping, as provided in sections 15 and 17, causing injury within the meaning of this Ordinance. The consideration of a causal relationship between dumped imports and injury to domestic industry shall be based on an examination by the Commission of all relevant evidence before it.

(2) The Commission shall examine any known factors other than dumped imports which are injuring domestic industry and injuries caused by such other factors shall not be attributed by the Commission to the dumped imports.

(3) Factors which may be relevant for the purposes of an examination by the Commission pursuant to sub-section (2) may include the following, namely:-

(a) volume and price of imports not sold at dumping prices;

(b) contraction in demand or changes in the patterns of consumption;

(c) trade restrictive practices of and competition between foreign and domestic producers;

(d) Developments in technology; and

(e) Export performance and productivity of domestic industry.

19. Threat of material injury.—(1) In making a determination regarding existence of a threat of material injury, the Commission shall consider all relevant factors, including but not limited to, such factors as-

(a) a significant rate of increase of dumped imports into domestic market indicating the likelihood of substantially increased importation;

(b) Sufficient freely disposable, or an imminent and substantial increase in capacity of an exporter indicating the likelihood of substantially increased dumped exports to market in Pakistan, taking into account the availability of other export markets to absorb any additional exports;

(c) whether imports are entering at prices that shall have a significant depressing or suppressing effect on prices in Pakistan, and would likely increase demand for further imports; and

(d) inventories of an investigated product.

(2) No one of the factors specified in sub-section (1) by itself shall be deemed to necessarily give decisive guidance and in making a determination regarding a threat of material injury the Commission shall, on the basis of the totality of the factors considered, satisfy itself that further dumped exports are imminent and that, unless protective action is taken, material injury shall occur.

PART VII

INITIATION AND CONDUCT OF INVESTIGATIONS

20. **Requirement of a written application.**—(1) Subject to section 24 and save as provided for in section 25, an investigation by the Commission shall only be initiated upon a written application by or on behalf of domestic industry.

(2) An application under sub-section **(1)** shall-

(a) be submitted to the Commission in such manner, number and form and with such fee as may be prescribed;

(b) include evidence of dumping and injury within the meaning of this Ordinance as is reasonably available to the applicant; and

(c) contain such further information as may be prescribed.

21. Notice to government of exporting country. Upon receipt of an application compliant with the requirements of sections 20 and 24, the Commission shall promptly give notice to the government of each exporting country of the receipt of such application.

22. Withdrawal of application before initiation. An application under section 20 may be withdrawn prior to initiation, in which case it shall be considered not to have been made:

Provided that upon the withdrawal of an application any fee paid along with the application pursuant to clause (i) of sub-section (2) of section 20 shall stand forfeited in favour of the Commission.

23. Initiation of an investigation. —(1) Subject to section 24, the Commission shall examine accuracy and adequacy of evidence provided in an application to determine whether it is compliant with the requirements of section 20 and if so whether there is sufficient evidence to justify initiation of an investigation.

(2) An application under section 20 shall be rejected as soon as the Commission is satisfied that there is not sufficient evidence of either dumping or of any injury to justify initiation of an investigation.

(3) The Commission may seek additional information from an applicant before deciding whether to initiate an investigation and such information shall be provided by the applicant to the Commission within such time and in such manner as may be prescribed.

(4) When the Commission is satisfied that—

(a) an application under section 20 has been made by or on behalf of domestic industry; and

(b) there is sufficient evidence of dumping and injury within the meaning of this Ordinance, the Commission shall initiate an investigation.

(5) Where the Commission does not consider it appropriate to initiate an investigation, it shall inform all the applicants of the reasons for not initiating the investigation and shall inform the exporting country of its decision.

24. Application by or on behalf of domestic industry.—(1) For the purposes of section 20, an application shall be considered to have been made by or on behalf of domestic industry only if it is supported by those domestic producers whose collective output constitutes more than fifty per cent of the total production of a domestic like product produced by that portion of the domestic industry expressing either support for or opposition to the application.

(2) For the purposes of section 23, no investigation, shall be initiated when domestic producers expressly supporting an application account for less than twenty five percent of the total production of a domestic like product produced by domestic industry.

(3) In the case of fragmented industries involving an exceptionally large number of producers, the Commission may determine support and opposition for an application submitted under section 20 by using statistically valid sampling techniques.

25. **Self-initiation.** The Commission may, *suo moto,* initiate an investigation without having received a written application by or on behalf of domestic industry if it has sufficient evidence of dumping and injury, within the meaning of this Ordinance, to justify initiation of an investigation.

26. Imposition of anti-dumping measures on behalf of a third country.—(1) An application for imposition of anti-dumping measures may be made to the Commission on behalf of a third country by its authorities provided that—

(a) such application is supported by price information to show that imported goods are being dumped and by detailed information to show that such dumping is causing injury to domestic industry concerned in the third country; and

(b) the government of the third country affords all assistance to the Commission to obtain such further information as the Commission may require.

(2) In considering an application received under sub section (1), the Commission shall consider the effects of alleged dumping on the industry concerned as a whole in the third country and injury shall not be assessed in relation only to the effect of the alleged dumping on the industry's exports to Pakistan or on the industry's total exports of the product.

(3) The decision whether or not to initiate an investigation pursuant to an application received under sub-section (1) shall rest with the Commission:

Provided that the Commission shall not initiate such investigation until the Federal Government has requested and received approval for such an initiation from the Council for Trade in Goods of the WTO.

27. Notice of decision to initiate investigation.—(1) When the Commission has decided to initiate an investigation it shall—

(a) give notice to all exporters, importers and any representative associations of importers or exporters known to the Commission to be concerned, as well as representatives of the exporting country, the applicant and other interested parties known to the Commission to have an interest therein; and

(b) publish a copy of such notice in the official Gazette and in at least one issue each of a daily newspaper in the English language and a daily newspaper in the Urdu language having wide circulation in Pakistan.

(2) The notice of initiation of an investigation referred to in sub-section (1) shall be in such form and contain information as may be prescribed and the initiation of investigation shall be effective on the date on which such notice is published in the newspapers as provided for in clause (b) of sub-section (1).

28. Provision of copy of an application. Subject to the requirement to protect confidential information pursuant to section 31, the Commission shall, after initiation of an investigation, provide to any interested party the full text of the written application received by the Commission under sub-section (1) of section 20:

Provided that where the Commission determines that the number of interested parties is particularly high, the Commission shall only provide the full text of the written application received by it under sub-section (1) of section 20 to exporting country or to the relevant trade association of exporting country.

PART VIII

CONDUCT OF INVESTIGATIONS

29. **Duration of investigation.** The Commission shall, except in special circumstances, conclude an investigation within twelve months, and in no case more than eighteen months, after its initiation.

30. **Customs clearance.** Any proceedings or investigation under this Ordinance shall not hinder the procedures of customs clearance.

31. Confidentiality.—(1) Subject to sub-section (2), the Commission shall, during and after an investigation, keep confidential any information submitted to it and such information shall not be disclosed without specific permission of the party submitting it.

(2) Any information which is—

(a) by nature confidential, because its disclosure shall be of significant competitive advantage to a competitor, or because its disclosure would have a significantly adverse effect upon a person supplying the information, or upon a person from whom the information was acquired;

(b) determined by the Commission to be of a confidential nature for any other reason; or

(c) provided as confidential by parties to an investigation, shall, upon good cause shown be kept confidential by the Commission.

(3) The following types of information shall be deemed to be by nature confidential, unless the Commission determines that disclosure in a particular case would neither be of significant competitive advantage to a competitor nor have a significantly adverse effect upon a person supplying the information or upon a person from whom such information was acquired, namely:—

(a) business or trade secrets concerning the nature of a product, production processes, operations, production equipment, or machinery;

(b) information concerning financial condition of a company which is not publicly available; and

(c) information concerning costs, identification of customers, sales, inventories, shipments, or amount or source of any income, profit, loss or expenditure related to manufacture and sale of a product.

(4) Any party seeking any information to be kept confidential shall request for the same at the time the information is submitted, along with the reasons warranting confidentiality. The Commission shall consider such request expeditiously and inform the party submitting the information if it determines that the request for keeping the information confidential is not warranted.

(5) Any party submitting any information with the request to keep it confidential shall furnish non-confidential summary of all such information. Such summary may take the form of ranges or indexation of figures provided in the confidential version or marked deletions in text or in such other form as the Commission may require:

Provided that such non-confidential summary shall permit a reasonable understanding of the substance of the information submitted in confidence:

Provided further that any deletion in text shall, unless otherwise allowed by the Commission, only relate to names of the buyer or supplier.

(6) In exceptional circumstances, any party submitting confidential information may indicate that such information is not susceptible of summary, in which case a statement of the reasons why summarisation is not possible shall be provided. If the Commission concludes that the non-confidential summary, provided fails to satisfy the requirements of sub-section (5), it may determine that the request for keeping the information confidential is not warranted.

(7) If the Commission finds that a request for keeping the information confidential is not warranted, and if the supplier of such information is unwilling to make it public or to authorise the disclosure in generalised or summary form, the Commission shall disregard such information and return the same to the party submitting it.

(8) Subject to sub-section (9), notwithstanding anything contained in this Ordinance or in any other law for the time being in force, any confidential information received or obtained directly or indirectly, by the Commission pursuant to or in connection with an investigation shall not be subject to disclosure by the Commission to any Ministry, Division, department, agency or instrumentality of the Federal Government or a Provincial Government without the prior permission of the party submitting such confidential information.

(9) The provisions of sub-section (8) shall not preclude the supply of any information called for by the Appellate Tribunal pursuant to section 65:

Provided that the obligation to protect confidential information as provided for in this Chapter shall, *mutatis mutandis,* extends to the Appellate Tribunal.

32. **Reliance on best information available.**—(1) Subject to sub-section (2), if, at any time during an investigation, any interested party—

(a) refuses access to, or otherwise does not provide, necessary information within the period of time as may be prescribed; or

(b) otherwise significantly impedes the investigation, the Commission may reach preliminary and final determinations, whether affirmative or negative, on the basis of the best information available.

(2) The provisions of the Schedule to this Ordinance shall be followed in the application of sub-section (1).

(3) The Commission shall take due account of any difficulties experienced by interested parties, in particular, small companies, in supplying information requested by it and may, where it deems fit, provide such assistance as is practicable including, but not limited to, extension of any time period prescribed for submission of information under this Ordinance.

(4) The Commission shall satisfy itself of the accuracy of the information supplied by interested parties during the course of an investigation in such manner as may be prescribed.

33. Information to parties. The Commission shall provide an opportunity to all interested parties to see information submitted to it, which is not confidential and is relevant to the presentation of their case.

PART IX

INVESTIGATION PROCEDURES, PRELIMINARY AND FINAL DETERMINATIONS

34. Proposed schedule for investigation. The Commission shall, in a notice of initiation of an investigation referred to in section 27, include the proposed schedule for conduct of an investigation, including the proposed time limits for submission of written arguments, the proposed date for any hearing, if requested, the proposed date for preliminary determination, and the proposed date for final determination.

35. Acquisition of information by the Commission. The Commission shall solicit, gather, obtain, verify, accept and reject information for the purposes of an investigation in such manner as may be prescribed.

36. Assessments to be on the basis of data relating to defined periods.—(1) The Commission shall base its assessments, of dumping and injury on data relating to defined periods which shall be the periods for which information is required by the Commission.

(2) For the purposes of an investigation of dumping, an investigation period shall normally cover twelve months preceding the month of initiation of the investigation for which data is available and in no case the investigation period shall be shorter than six months.

(3) For the purposes of an investigation of injury, the investigation period shall normally cover thirty-six months:

Provided that the Commission may at its sole discretion, select a shorter or longer period if it deems it appropriate in view of available information regarding domestic industry and an investigated product.

37. Preliminary determination.—(1) The Commission shall make a preliminary determination of dumping and injury, if any, not earlier than sixty days and not later than one hundred and eighty days, after initiation of an investigation. Such preliminary determination shall be based on the information available to the Commission at that time.

(2) The Commission shall issue a notice of preliminary determination, whether affirmative or negative, which shall, subject to the requirements of section 31, set forth in sufficient detail the findings and conclusions reached on all issues of fact and law consider material. Such notice of preliminary determination may also contain such other information may be prescribed.

(3) The Commission shall publish a copy of the notice of preliminary determination the official Gazette and in at least one issue each of daily newspaper in the English language and a daily newspaper in the Urdu language having wide circulation in Pakistan.

(4) The Commission shall forward a copy of the notice preliminary determination to exporting country and to other known interested parties.

38. Written arguments. In an investigation, any interested party may submit written arguments to the Commission in such form and manner and within such time as may prescribed.

39. Final determination.—(1) The Commission shall normally make a final determination of dumping and injury within one hundred and eighty days of the date of publication of a notice of preliminary determination in the official Gazette under sub-section (3) of section 37.

(2) The final determination shall be based on information obtained by the Commission during the course of the investigation that has been disclosed by the interested parties:

Provided that the Commission shall not be precluded from taking into consideration information or data received or collected from any other source.

(3) The Commission shall, subject to the requirements for the protection of confidential information under section 31, issue a notice of the final determination, whether affirmative or negative, containing relevant information on the matters of fact and law and reasons that have led to the determination.

(4) Without prejudice to the generality of the provisions of sub-section (3) and in addition to such further information as may be prescribed, the notice of the final determination referred to in sub-section (3) shall specify:—

(a) the amount of the dumping margin, if any, found to exist and the basis for such determination;

(b) the amount of the definitive anti-dumping duties to be imposed; where applicable; and

(c) if definitive anti-dumping duties are to be collected with regard to the imports to which provisional measures were applied along with the reasons for the decision to do so.

(5) The Commission shall publish a copy of the notice of the final determination referred to in sub-section (3) in the official Gazette and in at least one issue each of a daily newspaper in the English language and a daily newspaper in the Urdu language having wide circulation in Pakistan:

Provided that such notice may, if the Commission deems it fit, only contain a summary of the salient features of the final determination:

Provided further that where the notice of the final determination contains only a summary of the salient features of the final determination, the Commission shall make available to any interested party applying for the same in writing a copy of the complete notice of final determination.

(6) The copy of the notice of the final determination shall be forwarded by the Commission to the exporting country and to other known interested parties.

PART X

TERMINATION OF INVESTIGATION WITHOUT ADOPTION OF MEASURES

40. Withdrawal of an application. An application submitted pursuant to section 20 may be withdrawn at any time after an investigation has been initiated, in which case the Commission shall terminate the investigation without imposition of any measures provided for in this Ordinance:

Provided that the Commission may, if it considers it fit to do so, continue an investigation notwithstanding the withdrawal of an application as provided for in this section in which event, the Commission may, subject to the provisions of this Ordinance, impose such measures as are provided for in this Ordinance.

41. Termination for insufficient evidence, negligible dumping margin or negligible volume. —(1) An investigation may be terminated at any time by the Commission if it is satisfied that there is not sufficient evidence of either dumping or injury to justify proceeding with an investigation.

(2) The Commission shall immediately terminate an investigation if it determines that dumping margin is negligible or that volume of dumped imports, actual or potential, or injury is negligible.

(3) For the purposes of sub-section (2)-

(a) dumping margin shall be considered to be negligible if it is less than two per-cent, expressed as a percentage of the export price; and

(b) volume of dumped imports shall normally be regarded as negligible if the volume of dumped imports of an investigated product is found to account for less than three per cent of total imports of a like product unless imports of the investigated product from all countries under investigation which individually account for less than three per cent of the total imports of a like product collectively account for more than seven per cent of imports of a like product.

42. **Notice of conclusion of an investigation without imposition of measures.**—(1) The Commission shall, subject to the requirements for the protection of confidential information under section 31, issue a notice of the conclusion of an investigation without imposition of measures which shall set forth in sufficient detail the findings and conclusions reached on all issues of fact and law considered material by the Commission including the matters of fact and law which have led to arguments being accepted or rejected.

(2) The Commission shall publish a copy of the notice of conclusion of an investigation without imposition of measures referred to in sub-section (1) in the official Gazette and summary thereof in at least one issue each of a daily newspaper in the English language and a daily newspaper in the Urdu language having wide circulation in Pakistan.

PART XI

PROVISIONAL MEASURES

43. **Imposition of provisional measures.**—(I) The Commission may impose provisional measures if it makes an affirmative preliminary determination of dumping and injury, and determines that provisional measures are necessary to prevent injury being caused during the course of an investigation:

Provided that provisional measures shall not be applied sooner than sixty days from the date of initiation of the investigation.

(2) A negative preliminary determination of dumping shall not automatically terminate an investigation, but no provisional measures shall be imposed in such case.

(3) The provisions of sections 51 and 52 shall be followed in the application of provisional measures.

44. Form of provisional measures. Provisional measures shall take the form of security by way of cash deposit in an amount equal to the provisionally determined dumping margin set forth in the notice of preliminary determination referred to in sub-section (2) of section 37:

Provided that release of a product concerned for free circulation in Pakistan shall be subject to provision of such security by way of cash deposit.

45. Duration of application of provisional measures. Provisional measures shall be applied for a period not exceeding four months:

Provided that the Commission may, upon request by exporters which the Commission considers to be representing a significant percentage of the trade involved, extend the period of application of provisional measures to a period not exceeding six months.

PART XII

PRICE UNDERTAKINGS

46. Acceptance of price undertaking.—(1) Where the Commission has made a preliminary affirmative determination of dumping and injury in accordance with the provisions of this Ordinance, the Commission may suspend or terminate an investigation without imposition of anti- dumping duties, whether preliminary or definitive, upon receipt of satisfactory price undertaking from an exporter to revise its prices or to cease export to the area in question at dumped prices so that the Commission is satisfied that injurious effect of dumping in question is eliminated:

Provided that the Commission shall not seek or accept any price undertaking from an exporter unless the Commission has made a preliminary affirmative determination of dumping and injury in accordance with the provisions of this Ordinance.

(2) Price increases under such price undertakings shall not be higher than necessary to eliminate dumping margin and shall be less than the provisionally determined dumping margin set forth in the notice of preliminary determination referred to in sub-section (2) of section 37 if, the Commission determines that such lesser price increase would be adequate to remove injury to domestic industry.

(3) The Commission may suggest price undertakings, but no exporter shall be forced to enter into any such undertaking and the fact that exporters do not offer such undertakings, or do not accept an invitation to do so, shall not prejudice consideration of the case by the Commission:

Provided that in such circumstances the Commission shall be free to determine that a threat of injury is more likely to be realised if the dumped imports continue.

47. Conditions for acceptance of price undertaking.—(1) Except in extraordinary circumstances, a price undertaking shall not be offered later than sixty days before the proposed date of final determination as set forth in a notice of initiation of an investigation in accordance with the provisions of section 34.

(2) Notwithstanding anything contained in this section, the decision to accept a price undertaking shall rest with the Commission.

Explanation.—The Commission may not accept a price undertaking if it considers the acceptance thereof to be impractical because the number of actual or potential exporters is too great, or for reasons of general policy or for any other reason.

(3) If the Commission decides not to accept a price undertaking, it shall provide to an exporter the reasons which have led it to consider acceptance of a price undertaking as inappropriate and the exporter may, not later than seven days from the submission of such reasons, submit its written response to the Commission on the reasons given by the Commission.

(4) The Commission may require an exporter from whom a price undertaking has been accepted, to provide, periodically, information relevant to the fulfilment of such undertaking, and to permit verification of such information. The communication of such information shall be subject to the provisions of section 31.

(5) Failure to provide any information requested by the Commission pursuant to sub section (4) shall be deemed to be a violation of a price undertaking.

(6) Where the Commission accepts a price undertaking or a price undertaking is terminated, it shall publish a notice to this effect in the official Gazette and in at least one issue each of a daily newspaper in the English language and a daily newspaper in the Urdu language having wide circulation in Pakistan. Such notice shall contain the non-confidential part of the price undertaking accepted, when applicable, and details of the findings and conclusions reached by the Commission on all the issues of fact and law considered material by the Commission and such other information as the Commission may determine necessary:

Provided that where the notice relates to acceptance by the Commission of a price undertaking it shall contain such further information as may be prescribed.

(7) A notice of acceptance of a price undertaking or termination thereof referred to in sub-section (6) shall be forwarded by the Commission to the country the product of which is the subject of such notice and to other interested parties known to have an interest therein.

(8) Where the Commission continues an investigation pursuant to sub-section (1) of section 48, it shall publish a notice of the continuation of the investigation, setting forth the proposed date for final determination, and any other modifications to the proposed schedule of the investigation as originally set out in the notice of initiation of the investigation in accordance with section 34:

Provided that the final determination in such case shall be made by the Commission no later than one hundred and eighty days from the date of publication of the notice of acceptance of a price undertaking referred to in sub-section (6) in the official Gazette.

48. Completion of an investigation.—(1) If one or more price undertakings are accepted by the Commission, it shall nevertheless complete an investigation of dumping and injury if it receives a request from an exporter in writing to continue such investigation, or where the Commission so decides of its own accord.

(2) In the event the Commission makes a negative determination of dumping or injury pursuant to an investigation continued under sub-section (1), a price undertaking in question shall automatically lapse except in a case where the Commission determines that such a determination is due in large part to the existence of such price undertaking in which case, the Commission may require that an undertaking be maintained for a reasonable period of time to be determined by the Commission.

(3) In the event the Commission makes an affirmative determination of dumping and injury pursuant to an investigation continued under sub-section (1), a price undertaking in question shall continue consistent with its terms and the provisions of this Ordinance.

49. Violation of price undertaking. If a price undertaking is violated or deemed to be violated, the Commission may, subject to the provisions of this Ordinance, take expeditious action, which may include immediate application of provisional measures using the best information available. In such cases, definitive duties may be levied in accordance with the provisions of this Ordinance on products imported for consumption not more than ninety days before the application of such provisional measures, except that any such retroactive assessment shall not apply to imports entered before such violation of the price undertaking.

PART XIII

IMPOSITION AND COLLECTION OF ANTI-DUMPING DUTIES

50. Mandatory Imposition of anti-dumping duty. When the Commission has established the existence of dumping and injury in accordance with the provisions of this Ordinance, it shall, by notification in the official Gazette, impose an anti-dumping duty in an amount equal to dumping margin established by the Commission.

51. Imposition and collection of anti-dumping duties.—(1) Anti-dumping duties, whether provisional or definitive, as the case may be, imposed under this Ordinance shall—

(a) take the form of *ad valorem* or specific duties:

Provided that provisional measures shall take the form of security by way of cash deposit;

(b) be imposed in addition to other import duties levied on an investigated product;

(c) be collected in the same manner as customs-duties under the Customs Act, 1969 (Act IV of 1969); or

(d) be levied and collected on a non-discriminatory basis on imports of such product from all sources found to be dumped and causing injury, except as to imports from those sources from which price undertakings have been accepted by the Commission in accordance with the provisions of Part XII of this Ordinance.

(2) Save as provided for in sub-section (3), the Commission shall establish an individual anti-dumping duty for each known exporter or producer of dumped imports.

(3) Subject to sub-sections (4) and (7), where the Commission has limited its examination of dumping margin in accordance with sub-sections (2) and (3) of section 14, any anti-dumping duty applied to imports from exporters or producers not included in an examination by the Commission shall not exceed a weighted average dumping margin established with respect to selected exporters or producers.

(4) The Commission shall disregard for the purposes of sub-section (3) any negligible margins, as defined in sub-section (3) of section 41, and margins established under the circumstances referred to in section 32.

(5) Save as provided for in sub-section (4) of section 14, the Commission shall apply individual anti-dumping duties to imports from any exporter or producer not included in an examination who has provided the necessary information during the course of an investigation.

(6) The Commission may apply a residual anti-dumping duty rate for imports from exporters and producers not known to the Commission at time of final determination at a rate which shall not exceed a weighted average of individual dumping margins established for exporters and producers examined during an investigation, excluding margins established in accordance with section 32.

(7) Where all dumping margins are established pursuant to section 32, the Commission shall use such alternative method of determining dumping margins for exporters or producers not included in its examination as it considers reasonable in the circumstances.

52. Refund of anti-dumping duties paid in excess of dumping margin.—(1) An importer shall be granted a refund of the actual amount of anti-dumping duties collected if the Commission determines that dumping margin, on the basis of which such anti-dumping duties were paid, has been eliminated or reduced to a level which is below the level of the anti-dumping duty in force.

(2) An importer may submit an application for refund of anti-dumping duties collected within any twelve months period to the Commission not later than sixty days from the end of such period.

(3) An application under sub-section (2) shall contain such information as may be prescribed.

Explanation.—When investigating an application for refund under this section, the Commission shall apply the relevant provisions of this Ordinance to its determinations. In particular, when determining whether and to what extent a refund should be made when an

export price is constructed on the basis of a price at which imported products are first, resold to an independent buyer due to the absence of export price or because it appears that the export price is unreliable pursuant to sub-section (2) of section 10, the Commission shall take account of any change in normal value, any change of costs incurred between importation and resale, and any movement in resale price which is duly reflected in subsequent selling prices, and shall calculate the export price with no deduction for the amount of anti-dumping duties paid when satisfactory evidence of the above is provided.

(4) The Commission shall provide an importer making an application under sub-section (2) with an explanation of the reasons for the decision concerning a request for refund.

(5) A refund of anti-dumping duties under this section shall normally take place within twelve months, and in no case later than eighteen months, after the date on which an application for refund compliant with the requirements of sub-section (3) is received by the Commission.

53. Anti-dumping duties and fees to be held in a non-lapseable personal ledger account.—(1) The Commission shall establish and maintain a non-lapseable personal ledger account in its name for the purposes of this Ordinance and all anti-dumping duties and fees collected under this Ordinance shall be held in such account.

(2) The account established under sub-section (1) shall be maintained and operated in such manner as may be prescribed.

PART XIV

RETROACTIVITY

54. Retroactive application of definitive anti-dumping duties in certain circumstances. A definitive anti-dumping duty may be collected on products, which were imported for consumption not more than ninety days prior to the date of application of provisional measures if, the Commission determines, for a dumped product in question, that—

(a) there is a history of dumping which caused injury or that the importer was, or should have been, aware that the exporter practices dumping and that such dumping would cause injury; and

(b) injury is caused by massive dumped imports of a product in a relatively short time which in the light of timing and volume of dumped imports and other circumstances including, but not limited to, a rapid build up of inventories of the imported product, is likely to seriously undermine the remedial effect of the definitive anti-dumping duty to be applied, provided that the importers concerned have been given an opportunity of being heard in respect of such proposed action.

55. Imposition of definitive anti-dumping duties retroactively.—(1) Where the Commission makes a final determination of injury but not of a threat thereof or of material retardation of the establishment of an industry or, in the case of a final determination of a threat of injury, where the Commission determines that the effect of dumped imports would, in the absence of provisional measures, have led to a determination of injury, definitive anti-dumping duties may be levied retroactively for the period for which provisional measures, if any, have been applied.

(2) If definitive anti-dumping duty imposed under sub-section (1) is higher than the amount of provisionally determined dumping margin set forth in the notice of preliminary determination referred to in sub-section (2) of section 37, the difference shall not be collected, and if such definitive anti dumping duty is lower than the amount of such provisionally determined dumping margin the difference shall be refunded by the Commission within forty-five days of such determination.

(3) Save as provided for in sub-section (1), where the Commission makes a determination of threat of injury or material retardation, but no injury has yet occurred, definitive anti-dumping duties may be imposed only from the date of the determination of threat of injury or material retardation and any cash deposit made during the period of application of provisional measures shall be refunded by the Commission within forty-five days of such determination.

(4) Where the Commission makes a negative final determination, any cash deposit made, during the period of application of provisional measures shall be refunded by the Commission within forty-five days of such determination.

56. Circumstances in which provisional measures and anti-dumping duties shall apply. Save as provided for in sections 49, 54 and 55, provisional measures and definitive anti-dumping duties shall only be applied to products which enter into Pakistan for consumption on or after the date of publication of a notice of affirmative preliminary or final determination in an investigation.

PART XV

DURATION AND REVIEW OF ANTI-DUMPING DUTIES AND PRICE UNDERTAKINGS

57. Duration of anti-dumping duty. Subject to the provisions of this Ordinance, any anti--dumping duty imposed under this Ordinance shall remain in force only as long as and to the extent necessary to counteract dumping, which is causing injury.

58. Review of anti-dumping duty.—(1) Any definitive anti-dumping duty imposed under this Ordinance shall be terminated on a date not later than five years from the date of its imposition or from the date of the most recent review under section 59, if such review has covered both dumping and injury.

(2) The Commission shall, not later than ninety days preceding the date of expiry of a definitive anti-dumping duty, publish a notice of impending expiry of such anti-dumping duty in the official Gazette and in at least one issue each of a daily newspaper in the English language and a daily newspaper in the Urdu language having wide circulation in Pakistan.

(3) A definitive anti-dumping duty shall not expire if the Commission determines, in a review initiated before the date of expiry on its own initiative or upon a duly substantiated request made by or on behalf of domestic industry within forty-five days from public notice of impending termination of the definitive anti-dumping duty concerned, that the expiry of such anti-dumping duty would be likely to lead to continuation or recurrence of dumping and injury and such anti-dumping duty shall remain in force pending the outcome of such a review.

59. Review for change of circumstances.—(1) The Commission shall review the need for continued imposition of anti-dumping duty, where warranted, on its own initiative or provided that a period of twenty-four months has elapsed since the imposition of definitive anti-dumping duty, upon a written request submitted by any interested party, which contains positive information substantiating the occurrence of changed circumstances justifying a need for a review including sufficient information to enable the Commission to calculate export price and normal value of a product in question.

(2) The Commission shall, upon initiation of a review under sub-section (1), publish a notice in the official Gazette and in at least one issue each of a daily newspaper in the English language and a daily newspaper in the Urdu language having wide circulation in Pakistan.

(3) In undertaking a review under sub-section (1), the Commission shall consider whether continued imposition of anti-dumping duty is necessary to offset dumping and whether injury would be likely to continue to recur if anti-dumping duty were removed or varied and if, as a result, the Commission determines that continued imposition of anti-dumping duty is no longer warranted it shall be terminated immediately.

(4) The Commission may require an applicant requesting a review under this section to fill in, an additional questionnaire provided by it requiring such information and for such period as the Commission deems necessary before such review is initiated in which case the review shall be initiated following the receipt by the Commission of such questionnaire duly filled in.

60. Newcomer review.—(1) If a product is subject to definitive anti-dumping duties, the Commission shall carry out a review for the purpose of determining individual dumping margins for any exporters or producers in an exporting country concerned who did not export the product to Pakistan during the period of investigation if such exporters or producers can show that they are not related to any of the exporters or producers in the exporting country who are subject to the anti-dumping duties on an investigated product.

(2) A review under sub-section (1) shall be initiated within thirty days following the date of receipt of an application for such review by any producer or exporter concerned and shall normally be completed within six months from its initiation and, in any event, no later than twelve months:

Provided that the Commission may require an applicant requesting a review under sub-section (1) to fill in an additional questionnaire provided by it requiring such information and for such period as the Commission deems necessary before such review is initiated in which case a review under sub-section (1) shall be initiated within thirty days following the receipt by the Commission of such questionnaire duly filled in.

(3) No anti-dumping measures shall be imposed on imports from any exporters or producers referred to in sub-section (1) while the review under sub-section (2) is being carried out:

Provided that the Commission may require a cash deposit in the amount of the residual anti-dumping duty rate determined pursuant to sub-section (5) of section 51 to ensure that should such a review result in a determination of dumping in respect of such producers or exporters, anti-dumping duties can be levied retroactively to the date of initiation of the review.

61. Duration and review of price undertaking. The provisions of sections 57, 58 and 59 shall apply, *mutatis mutandis,* to price undertakings accepted in accordance with Part XII of this Ordinance.

62. Evidence and procedure.—(1) The provisions of sections 27, 31, 32, 33, 35, 39, and 46 shall apply, *mutatis mutandis,* to any review carried out under Part XV of this Ordinance.

(2) Any review conducted under sections 58 and 59 shall be carried out expeditiously and shall normally be concluded within twelve months of the date of initiation of the review.

63. Anti-circumvention measures. If there is a change in the pattern of trade between any third country and Pakistan which stems from a practice, process or work for which there is insufficient due cause or economic justification, other than imposition of anti-dumping duty, and there is evidence that the remedial effects of such duty are being undermined in terms of the prices or quantities of the like goods, or both, and there is evidence of dumping in relation to normal values previously established for the like or similar goods, then the Commission may take action to prevent circumvention of the application of anti-dumping duties as may be prescribed.

PART XVI

APPEAL TO APPELLATE TRIBUNAL

64. Appeal to the Appellate Tribunal.—[1][(1) The Federal Government may, by notification in the Official Gazette,-

(a) establish an Appellate Tribunal consisting of three persons, one of such persons being a retired judge of the Supreme Court of Pakistan, who shall also be its Chairman and two persons of known integrity having experience and expertise in the fields of economics, international trade related issues and matters related to customs law and practice; or

(b) designate an existing Tribunal to be the Appellate Tribunal for the purposes of this Ordinance.

Explanations.- For the purpose of sub-section (1), the expression "existing Tribunal" means any Tribunal established by the Federal Government under any law for the time being in force"; and]

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[1]*Subs. by Act 23 of 2011, s. 2.*

(2) Any interested party may prefer an appeal to the Appellate Tribunal against—

(i) an affirmative or a negative final determination by the Commission; and

(ii) any final determination pursuant to a review.

[1]* * * * * * *

(4) The salary allowances and other terms and conditions of services of a person appointed to the Appellate Tribunal shall be such as may be determined by the Federal Government.

(5) Every appeal under sub-section (2) shall be filed within forty-five days from the date of the notice published in newspapers of an affirmative or a negative final determination by the Commission, as the case may be, and shall be in such form and contain such information as may be prescribed.

(6) In examining an appeal under sub-section (2), the Appellate Tribunal may make such further inquiry as it may consider necessary, and after giving an appellant and the Commission an opportunity of being heard, pass such order as it thinks fit, confirming, altering or annulling a determination of the Commission appealed against:

Provided that in examining an appeal, the Appellate Tribunal shall, as regards assessment of facts relating to an impugned determination of the Commission, determine on the basis of official record maintained by the Commission or any other documents relied upon by the Commission in reaching the determination appealed against, whether the establishment of facts by the Commission was proper and whether the Commission's evaluation of those facts was unbiased and objective. Where the Appellate Tribunal determines, that the Commission's establishment of facts was proper and its evaluation was unbiased and objective, it may confirm an impugned determination of the Commission subject to the condition that the Appellate Tribunal is satisfied that in reaching the impugned determination, the Commission complied with the relevant provisions of this Ordinance.

(7) An appeal under sub-section (2) shall be disposed of and the decision of the Appellate Tribunal pronounced, as expeditiously as possible but not later than ninety days from the date of receipt of an appeal compliant with the requirements of sub-section (5) except in extraordinary circumstances and on grounds to be recorded. The Appellate Tribunal shall hear the appeal from day to day.

(8) The decision of the Appellate Tribunal shall be in writing and shall give details of the issues raised in appeal and the arguments adopted by an appellant and the Commission, and shall give reasons for reaching its decision with reference to the provisions of this Ordinance and the facts of the case.

(9) The Appellate Tribunal shall provide copies of its decision to all the appellants and the Commission no later that five days from the date of rendering its decision.

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[1] *Omitted by Act 23 of 2011, s. 2.*

(10) The Appellate Tribunal may, if it deems necessary, require an appellant to provide security in such form as may be prescribed, at the time of filing of an appeal.

(11) The decision of the Appellate Tribunal shall be final and no further appeal shall lie therefrom:

Provided that the Appellate Tribunal may, if it thinks fit, accept an application from any party to an appeal in which the Appellate Tribunal has rendered its decision, for a clarification of any of the issues raised by the Appellate Tribunal in its decision:

Provided further that such application shall specify the precise issue in respect of which a clarification is sought and give reasons as to why a clarification is necessary and the Appellate Tribunal shall only accept such application if it is satisfied that a material issue discussed in its decision requires further clarification or elaboration and a party to be adversely affected by such clarification or elaboration shall also be given a notice before clarification or elaboration is made:

Provided further that no application under this sub-section shall be accepted by the Appellate Tribunal later than thirty days of its decision.

(12) The Appellate Tribunal shall perform its functions under this Ordinance in accordance with such procedures as may be prescribed.

65. **Powers of the Appellate Tribunal.** The Appellate Tribunal shall, for the purpose of deciding an appeal, be deemed to be a civil court and shall have the same powers as are vested in such court under, the Code of Civil Procedure 1908, (Act V of 1908) including the powers of-

(a) enforcing the attendance of any person and examining him on oath;

(b) compelling the production of documents; and

(c) issuing commission for the examination of witnesses and documents.

66 Power of the Appellate Tribunal to call for and examine record. The Appellate Tribunal may call for and examine the official records of an investigation conducted by the Commission and any other information or documents relied upon by the Commission in reaching a determination appealed against for the purpose of satisfying itself as to the legality of propriety of an impugned determination of the Commission.

PART XVII

MISCELLANEOUS

67. **Power to make rules.** The Federal Government may, by notification in the official Gazette, make rule's for carrying out the purposes of this Ordinance.

68. **Public servants.** The employees and other persons authorised to perform or exercise any function or power under this Ordinance or rendering services to the Commission as consultant or adviser shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code, 1860. (Act XLV of 1860).

69. **Failure to disclose correct information.** Any person who knowingly and wilfully provides false, misleading incorrect information to the Commission whether in an application received under this Ordinance, or Otherwise in connection with an investigation under this Ordinance, shall be guilty of an offence and shall on conviction be liable to imprisonment for a term which may extend to three years, or a fine not exceeding five million rupees, or both.

70. **Cognizance of offences.**—(1) Notwithstanding anything contained in the Code of Criminal procedure, 1898 (Act V of 1898) no other than a court of session shall have jurisdiction to try any person charged with an offence under section 69.

(2) No court of session shall take cognizance of an offence under sub-section (1) except on a complaint in writing made by order of, or authority from the Commission signed by any two members of the Commission.

71. Protection to persons prejudiced in employment because of assisting the Commission.—(1) An employer shall not-

(a) dismiss an employee, or prejudice an employee in his employment, because the employee has assisted the Commission in connection with an inquiry or investigation under this Ordinance; or

(b) dismiss or threaten to dismiss an employee, or prejudice or threaten to prejudice an employee in his employment, because the employee proposes to assist the Commission in connection with an inquiry or investigation under this Ordinance.

(2) For the purposes of sub-section (1), a person shall be taken to assist the Commission in connection with an inquiry if the person—

(a) gives information, whether orally or in writing, or gives documents, to the Commission in connection with an inquiry or investigation under this Ordinance; or

(b) gives evidence or produces documents, at an inquiry, investigation or hearing held under this Ordinance.

72. Appointment of advisers and consultants.—(1) Subject to sub-section (2), the Commission may, employ and pay consultants and agents, and technical, professional and other advisers, including bankers, economists, actuaries, accountants, lawyers and other persons to do any act required to be done in the exercise of its powers, the performance of its functions or for the better implementation of the purposes, of this Ordinance.

(2) The decision to employ and the terms and conditions of employment of external advisers and consultants pursuant to subsection (1) shall be made by the Commission in accordance with such policy guidelines as may be established by the Federal Government, in consultation with the Commission, from time to time.

73. Indemnity. No suit, prosecution or other legal proceedings shall lie against the Commission, the Chairman or any member of the Commission or any employee, consultant, agent or adviser of the Commission for anything which is in good faith done or intended to be done under this Ordinance or rules made thereunder.

74. **Removal of difficulties.** If any difficulties arise in giving effect to any of the provisions of this Ordinance, the Federal Government may make such order, not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary for the purpose of removing the difficulty:

Provided that no such power shall be exercised after the expiry of one year from the coming into force of this Ordinance.

75. Ordinance override other laws. The provisions of this Ordinance shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force, including, without limitation the National Tariff Commission Act, 1990 (Act VI of 1990) and the Customs Act, 1969. (Act IV of 1969).

76. Repeal. The Import of Goods (Anti-Dumping and Countervailing Duties) Ordinance. 1983 (Act III of 1983)and clause (ii) of section 4 of the National Tariff Commission Act, 1990(Act VII of 1990) are, hereby repealed.

77. Savings. Save as otherwise provided in this Ordinance, nothing in this Ordinance shall affect or be deemed to affect anything done, action taken, investigation or proceedings commenced, order, rule, regulation, appointment, document, or agreement made, fee directed, resolution passed, direction given, proceedings taken or instrument executed or issued under or pursuant to any law amended or repealed by this Ordinance, and any such thing, action investigation, proceedings, orders, rule, regulation, appointment, document, agreement, fee, resolution, direction, proceedings or instrument shall, if in force at the commencement of this Ordinance and not inconsistent with any of the provisions of this Ordinance, continue in force and have effect as if had been respectively done, taken, commenced, made, directed, passed, given, executed or issued under this Ordinance or the law as amended by this Ordinance.

THE SCHEDULE

[See section 32(2)]

BEST INFORMATION AVAILABLE

1. As soon as possible after initiation of an investigation, the Commission should specify in detail the information required from any interested party, and the manner in which that information should be structured by the interested party in its response. The Commission should also ensure that the interested party is aware that if information is not supplied within a reasonable time, the Commission shall be free to make determination on the basis of facts available, including those contained in an application for initiation of an investigation by domestic industry.

2. The Commission may also request an interested party to provide its response in a particular medium such as computer tape or computer language. Where such a request is made, the Commission should consider the reasonable ability of the interested party to respond in the preferred medium or computer language, and should not request the party to use for its response a computer system other than that used by the party. The Commission should not maintain a request for a computerised response if the interested party does not maintain computerised accounts and if presenting the response as requested would result in an unreasonable extra burden on the interested party or it would entail unreasonable additional cost and trouble. The Commission should not maintain a request for a response in a particular medium or computer language if the interested party does not maintain its computerised accounts in such medium or computer language and if presenting the response as requested would result in an unreasonable extra burden on the interested party or it would entail unreasonable additional cost and trouble.

3. All information which is verifiable, which is appropriately submitted so that it can be used in an investigation without undue difficulties, which is supplied in a timely fashion, and, where applicable, which is supplied in a medium or computer language requested by the Commission, should be taken into account when determinations are made. If a party does not respond in the preferred medium or computer language but the Commission finds that the circumstances set out in para 2 have been satisfied, any failure to respond in the preferred medium or computer language shall not be considered to significantly impede the investigation.

4. Where the Commission does not have the ability to process information if provided in a particular medium such as computer tape, the information should be supplied in the form of written material or any other form acceptable to the Commission.

5. If an information provided is not ideal in all respects, this shall not justify the Commission from disregarding it, provided an interested party has acted to the best of its ability.

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6. If evidence or information is not accepted by the Commission, the supplying party shall be informed forthwith of the reasons therefore, and shall be given an opportunity to provide further explanations within a reasonable period, as may be determined by the Commission, due account being taken of the time-limits of an investigation. If the explanations are considered by the Commission as not being satisfactory, the reasons for rejection of such evidence or information should be given in any published determinations.

7. If the Commission has to base its findings, including those with respect to normal value, on any information from a secondary source, including any information supplied in an application for initiation of an investigation, it shall do so with special circumspection. In such cases, the Commission shall, where practicable, check the information from other independent sources at their disposal, such as published price lists, official import statistics and customs returns, and from the information obtained from other interested parties during the investigation provided that if an interested party does not co-operate and thus relevant information is being withheld from the Commission, this situation may lead to a result which is less favourable to the party than if the party did co-operate.

THE ARBITRATION ACT, 1940

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[Repealed.]

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THE ARBITRATION ACT, 1940.

[1]ACT NO. X OF 1940

[11 March, 1940]

An Act to consolidate and amend the law relating to Arbitration.

WHEREAS it is expedient to consolidate and amend the law relating to arbitration in [2][Pakistan];

It is hereby enacted as follows :—

CHAPTER I

INTRODUCTORY

1. Short title, extent and commencement.—(1) This Act may be called the Arbitration Act, 1940.

[3][(2) It extends to the whole of Pakistan].

(3) It shall come into force on the 1st day of July, 1940.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context—

(a) "arbitration agreement" means a written agreement to submit present or future differences to arbitration, whether an arbitrator is named therein or not;

(b) "award" means an arbitration award;

(c) "Court" means a Civil Court having jurisdiction to decide the question forming the subject-matter of the reference if the same had been the subject-matter of a suit, but does not, except for the purpose of arbitration proceedings under section 21, include a Small Cause Court;

(d) "legal representative" means a person who in law represents the estate of a deceased person, and includes any person who intermeddles with the estate of the deceased, and, where a party acts in representative character, the person on whom the estate devolves on the death of the party so acting;

(e) "reference" means a reference to arbitration.

[1] For statement of Objects and Reasons, see Gazette of India, 1939, Pt. V, p. 142, ; for the Report of Select Committee, see ibid., 1940, Pt. V, p. 35.
This Act has been applied to Baluchistan, see Notification No. 168- N., dated the 17th October, 1940, Gazette of India, 1940, Pt. I, p. 1478; Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N. W. F. P., subject to certain modifications- see N.W.F..P (Upper Tananwal) (Excluded Area) Laws Regulation, 1950; and also extended to the Excluded Area of Upper Tanawal other than Phulera by the aforesaid Regulation, and declared to be in force in that area with effect from the 1st June, 1951, see N.W.F.P. Gazette, Ext., dated the 1st June, 1951.
It has been extended to the Leased Areas of Baluchistan by the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950).

[2] Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs., by A. O., 1949, for British India".

[3] Subs. by Ordinance 21 of 1960, s. 3 and Sch (with effect from the 14th October, 1955), for the original sub-section (2) as amended by A. O, 1949.

CHAPTER II

ARBITRATION WITHOUT INTERVENTION OF A COURT

3. Provisions implied in arbitration agreement. An arbitration agreement, unless a different intention is expressed therein, shall be deemed to include the provisions set out in the First Schedule in so far as they are applicable to the reference.

4. Agreement that arbitrators be appointed by third party. The parties to an arbitration agreement may agree that any reference thereunder shall be to an arbitrator or arbitrators to be appointed by a person designated in the agreement either by name or as the holder for the time being of any office or appointment.

5. Authority of appointed arbitrator or umpire irrevocable except by leave of Court. The authority of an appointed arbitrator or umpire shall not a revocable except with the leave of the Court unless a contrary intention is expressed in the arbitration agreement.

6. Arbitration agreement not to be discharged by death of party thereto.—(1) An arbitration agreement shall not be discharged by the death of any party thereto, either as respects the deceased or any other party, but shall in such event be enforceable by or against the legal representative of the deceased.

(2) The authority of an arbitrator shall not be revoked by the death of any party by whom he was appointed.

(3) Nothing in this section shall affect the operation of any law by virtue of which any right of action is extinguished by the death of a person.

7. Provisions in case of insolvency.—(1) Where it is provided by a term in a contract to which an insolvent is a party that any differences arising thereout or in connection therewith shall be referred to arbitration, the said term shall, if the receiver adopts the contract, be enforceable by or against him so far as it relates to any such differences.

(2) Where a person who has been adjudged an insolvent had, before the commencement of the insolvency proceedings, become a party to an arbitration agreement, and any matter to which the agreement applies is required to be determined in connection with, or for the purposes of the insolvency proceedings, then, if the case is one to which sub-section (1) does not apply, any other party to the agreement or the receiver may apply to the Court having jurisdiction in the insolvency proceedings for an order directing that the matter in question shall be referred to arbitration in accordance with the agreement, and the Court may, if it is of opinion that, having regard to all the circumstances of the case, the matter ought to be determined by arbitration, make an order accordingly.

(3) In this section the expression "receiver" includes an Official Assignee.

8. Power of Court to appoint arbitrator or umpire.—(1) In any of the following cases:—

(a) where an arbitration agreement provides that the reference shall be to one or more arbitrators to be appointed by consent of the parties, and all the parties do not, after differences have arisen, concur in the appointment or appointments; or

(b) if any appointed arbitrator or umpire neglects or refuses to act, or is incapable of acting, or dies, and the arbitration agreement does not show that it was intended that the vacancy should not be supplied, and the parties or the arbitrators, as the case may be, do not supply the vacancy; or

(c) where the parties or the arbitrators are required to appoint an umpire and do not appoint him;

any party may serve the other parties or the arbitrators, as the case may be, with a written notice to concur in the appointment or appointments or in supplying the vacancy.

(2) If the appointment is not made within fifteen clear days after the service of the said notice, the Court may, on the application of the party who gave the notice and after giving the other parties an opportunity of being heard, appoint an arbitrator or arbitrators or umpire, as the case may be, who shall have like power to act in the reference and to make an award as if he or they had been appointed by consent of all parties.

9. Power to party to appoint new arbitrator or, in certain cases, a sole arbitrator. Where an arbitrations agreement provides that a reference shall be to two arbitrators, one to be appointed by each party, then, unless a different intention is expressed in the agreement,—

(a) if either of the appointed arbitrators, neglects or refuses to act, or is incapable of acting or dies, the party who appointed him may appoint a new arbitrator in his place;

(b) if one party fails to appoint an arbitrator, either originally or by way of substitution as aforesaid, for fifteen clear days after the service by the other party of a notice in writing to make the appointment, such other party having appointed his arbitrator before giving the notice, the party who has appointed an arbitrator may appoint that arbitrator to act as sole arbitrator in the reference, and his award shall be binding on both parties as if he had been appointed by consent:

Provided that the Court may set aside any appointment as sole arbitrator made under clause (b) and either, on sufficient cause being shown, allow further time to the defaulting party to appoint an arbitrator or pass such other order as it thinks fit.

Explanation.— The fact that an arbitrator or umpire, after a request by either party to enter on and proceed with the reference, does not within one month comply with the request may constitute a neglect or refusal to act within the meaning of section 8 and this section.

10. Provisions as to appointment of three or more arbitrators.—(1) Where an arbitration agreement provides that a reference shall be to three arbitrators, one to be appointed by each party and the third by the two appointed arbitrators, the agreement shall have effect as if it provided for the appointment of an umpire, and not for the appointment of a third arbitrator, by the two arbitrators appointed by the parties.

(2) Where an arbitration agreement provides that a reference shall be to three arbitrators to be appointed otherwise than as mentioned in sub-section (1), the award of the majority shall, unless the arbitration agreement otherwise provides, prevail.

(3) Where an arbitration agreement provides for the appointment of more arbitrators than three, the award of the majority, or if the arbitrators are equally divided in their opinions, the award of the umpire shall, unless the arbitration agreement otherwise provides, prevail.

11. Power to Court to remove arbitrators or umpire in certain circumstances.—(1) The Court may, on the application of any party to a reference, remove an arbitrator or umpire who fails to use all reasonable dispatch in entering on and proceeding with the reference and making an award.

(2) The Court may remove an arbitrator or umpire who has misconducted himself or the proceedings.

(3) Where an arbitrator or umpire is removed under this section, he shall not be entitled to receive any remuneration in respect of his services.

(4) For the purposes of this section the expression "proceeding with the reference" includes, in a case where reference to the umpire becomes necessary, giving notice of that fact to the parties and to the umpire.

12. Power of Court where arbitrator is removed or his authority revoked.—(1) Where the Court removes an umpire who has not entered on the reference or one or more arbitrators (not being all the arbitrators), the Court may, on the application of any party to the arbitration agreement, appoint persons to fill the vacancies.

(2) Where the authority of an arbitrator or arbitrators or an umpire is revoked by leave of the Court, or where the Court removes an umpire who has entered on the reference or a sole arbitrator or all the arbitrators, the Court may, on the application of any party to the arbitration agreement, either—

(a) appoint a person to act as sole arbitrator in the place of the person or persons displaced, or

(b) order that the arbitration agreement shall cease to have effect with respect to the difference referred.

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(3) A person appointed under this section as an arbitrator or umpire shall have the like power to act in the reference and to make an award as if he had been appointed in accordance with the arbitration agreement.

13. Powers of arbitrator. The arbitrators or umpire shall, unless a different intention is expressed in the agreement, have power to—

(a) administer oath to the parties and witnesses appearing;

(b) state a special case for the opinion of the Court on any question of law involved, or state the award, wholly or in part, in the form of a special case of such question for the opinion of the Court;

(c) make the award conditional or in the alternative;

(d) correct in an award any clerical mistake or error arising from any accidental slip or omission;

(e) administer to any party to the arbitration such interrogatories as may, in the opinion of the arbitrators or umpire, be necessary.

14. Award to be signed and filed.—(1) When the arbitrators or umpire have made their award, they shall sign it and shall give notice in writing to the parties of the making and signing thereof and of the amount of fees and charges payable in respect of the arbitration and award.

(2) The arbitrators or umpire shall, at the request of any party to the arbitration agreement or any person claiming under such party or if so directed by the Court and upon payment of the fees and charges due in respect of the arbitration and award and of the costs and charges of filing the award, cause the award or signed copy of it, together with any depositions and documents which may have been taken and proved before them, to be filed in Court, and the Court shall thereupon give notice to the parties of the filing of the award.

(3) Where the arbitrators or umpire state a special case under clause (b) of section 13, the Court, after giving notice to the parties and hearing them, shall pronounce its opinion thereon and such opinion shall be added to, and shall form part of, the award.

15. Power of Court to modify award. The Court may by order modify or correct an award—

(a) Where it appears that a part of the award is upon a matter not referred to arbitration and such part can be separated from the other part and does not affect the decision on the matter referred; or

(b) Where the award is imperfect in form, or contains any obvious error which can be amended without effecting such decision; or

(c) Where the award contains clerical mistake or an error arising from an accidental slip or omission.

16. Power to remit award.—(1) The Court may from time to time remit the award or any matter referred to arbitration to the arbitrators or umpire for reconsideration upon such terms as it thinks fit—

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(a) where the award has left undetermined any of the matters referred to arbitration, or where it determines any matter not referred to arbitration and such matter cannot be separated without affecting the determination of the matters referred; or

(b) where the award is so indefinite as to be incapable of execution ; or

(c) where an objection to the legality of the award is apparent upon the face of it.

(2) Where an award is remitted under sub-section (1) the Court shall fix the time within which the arbitrator or umpire shall submit his decision to the Court:

Provided that any time so fixed may be extended by subsequent order of the Court.

(3) An award remitted under sub-section (1) shall become void on the failure of the arbitrator or umpire to reconsider it and submit his decision within the time fixed.

17. Judgment in terms of award. Where the Court sees no cause to remit the award or any of the matters referred to arbitration for reconsideration or to set aside the award, the Court shall, after the time for making an application to set aside the award has expired, or such application having been made, after refusing it, proceed to pronounce judgment according to the award, and upon the judgment so pronounced a decree shall follow, and no appeal shall lie from such decree except on the ground that it is in excess of, or not otherwise in accordance with, the award.

18. Power of Court to pass interim orders.— (1) Notwithstanding anything contained in section 17, at anytime after the filing of the award, whether notice of the filing has been served or not, upon being satisfied by affidavit or otherwise that a party has taken or is about to take steps to defeat, delay or obstruct the execution of any decree that may be passed upon the award, or that speedy execution of the award is just and necessary, the Court may pass such interim orders as it deems necessary.

(2) Any person against whom such interim orders have been passed may show cause against such orders, and the Court, after hearing the parties, may pass such further orders as it deems necessary and just.

19. Power to supersede arbitration where award becomes void or is set aside. Where an award has become void under sub-section (3) of section 16 or has been set aside, the Court may by order supersede the reference and shall thereupon order that the arbitration agreement shall cease to have effect with respect to the difference referred.

CHAPTER III

ARBITRATION WITH INTERVENTION OF A COURT WHERE THERE IS NO SUIT PENDING.

20. Application to file in Court arbitration agreement.—(1) Where any persons have entered into an arbitration agreement before the institution of any suit with respect to the subject-matter of the agreement or any part of it, and where a difference has arisen to which the agreement applies, they or any of them, instead of proceeding under Chapter II, may apply to a Court having jurisdiction in the matter to which the agreement relates, that the agreement be filed in the Court.

(2) The application shall be in writing and shall be numbered and registered as a suit between one or more of the parties interested or claiming to be interested as plaintiff or plaintiffs and the remainder as defendant or defendants, if the application has been presented by all the parties, or, if otherwise, between the applicant as plaintiff and the other parties as defendants.

(3) On such application being made, the Court shall direct notice thereof to be given to all parties to the agreement other than the applicants, requiring them to show cause within the time specified in the notice why the agreement should not be filed.

(4) Where no sufficient cause is shown, the Court shall order the agreement to be filed, and shall make an order of reference to the arbitrator appointed by the parties, whether in the agreement or otherwise, or, where the parties cannot agree upon an arbitrator, to an arbitrator appointed by the Court.

(5) Thereafter the arbitration shall proceed in accordance with, and shall be governed by, the other provisions of this Act so far as they can be made applicable.

CHAPTER IV

ARBITRATION IN SUITS

21. Parties to suit may apply for order or reference. Where in any suit all the parties interested agree that any matter in difference between them in the suit shall be referred to arbitration, they may at any time before judgment is pronounced apply in writing to the Court for an order or reference.

22. Appointment of arbitrator. The arbitrator shall be appointed in such manner as may be agreed upon between the parties.

23. Order of reference.—(1) The Court shall, by order, refer to the arbitrator the matter in difference which he is required to determine, and shall in the order specify such time as it thinks reasonable for the making of the award.

(2) Where a matter is referred to arbitration, the Court shall not, save in the manner and to the extent provided in this Act, deal with such matter in the suit.

24. Reference to arbitration by some of the parties. Where some only of the parties to a suit apply to have the matters in difference between them referred to arbitration in accordance with, and in the manner provided by section 21, the Court may, if it thinks fit, so refer such matters to arbitration (provided that the same can be separated from the rest of the subject-matter of the suit) in the manner provided in that section, but the suits shall continue so far as it relates to the parties who have not joined in the said application and to matters not contained in the said reference as if no such application had been made, and an award made in pursuance of such a reference shall be binding only on the parties who have joined in the application.

25. Provisions applicable to arbitrations under this Chapter. The provisions of the other Chapters shall, so far as they can be made applicable, apply to arbitrations under this Chapter:

Provided that the Court may, in any of the circumstances mentioned in Section 8, 10, 11 and 12, instead of filing up the vacancies or making the appointments, make an order superseding the arbitration and proceed with the suit, and where the Court makes an order superseding the arbitration under section 19, it shall proceed with the suit.

CHAPTER V

GENERAL

26. Application of Chapter. Save as otherwise provided in this Act, the provisions of this Chapter shall apply to all arbitrations.

[1]**[26-A. Award to set out reasons.—**(1) The arbitrators or umpire shall state in the award the reasons for the award in sufficient detail to enable the Court to consider any question of law arising out of the award.

(2) Where the award does not state the reasons in sufficient detail, the Court shall remit the award to the arbitrators or umpire and fix the time within which the arbitrator or umpire shall submit the award together with the reasons in sufficient detail:

Provided that any time so fixed may be extended by subsequent order of the Court.

(3) An award remitted under sub-section (2) shall become void on the failure of the arbitrators or umpire to submit it in accordance with the direction of the Court.]

27. Power of arbitrators to make an interim award.—(1) Unless a different intention appears in the arbitration agreement, the arbitrators or umpire may, if they think fit, make an interim award.

(2) All references in this Act to an award shall include references to an interim award made under sub-section (1).

28. Power to Court only to enlarge time for making award.—(1) The Court may, if it thinks fit, whether the time for making the award has expired or not and whether the award has been made or not, enlarge from time to time the time for making the award.

(2) Any provisions in an arbitration agreement whereby the arbitrators or umpire may, except with the consent of all the parties to the agreement, enlarge the time for making the award, shall be void and of no effect.

29. Interest on awards. Where and in so far as an award is for the payment of money the Court may in the decree order interest, from the date of the decree at such rate as the Court deems reasonable, to be paid on the principal sum as adjudged by the award and confirmed by the decree.

30. Grounds for setting aside award. An award shall not be set aside except on one or more of the following grounds, namely;—

(a) that an arbitrator or umpire has misconducted himself or the proceedings;

(b) that an award has been made after the issue of an order by the Court superseding the arbitration or after arbitration proceedings have become invalid under section 35;

(c) that an award has been improperly procured or is otherwise invalid.

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31. Jurisdiction.—(1) Subject to the provisions of this Act, an award may be filed in any Court having jurisdiction in the matter to which the reference relates.

(2) Notwithstanding anything contained in any other law for the time being in force and save as otherwise provided in his Act, all questions regarding the validity, effect or existence of an award or an arbitration agreement between the parties to the agreement or persons claiming under them shall be decided by the court in which the award under the agreement has been, or may be, filed, and by no other Court.

(3) All applications regarding the conduct of arbitration proceedings or otherwise arising out of such proceedings shall be made to the Court where award has been, or may be, filed, and to no other Court.

[1] Section 26A ins. by the Arbitration (Amdt.) Ordinance, 1981 (15 of 1981),s.2.

(4) Notwithstanding anything contained elsewhere in this Act or in any other law for the time being in force, where in any reference any application under his Act has been made in a Court competent to entertain it, that Court alone shall have jurisdiction over the arbitration proceedings and

all subsequent application arising out of that reference and the arbitration proceedings shall be made in that court and in no other Court

32. Bar to suit contesting arbitration agreement or award. Notwithstanding any law for the time being in force, no suit shall lie on any ground whatsoever for a decision upon the existence, effect or validity of an arbitration agreement or award, nor shall any arbitration agreement or award be set aside, amended, modified or in any way affected otherwise than as provided in this Act.

33. Arbitration agreement or award to be contested by application. Any party to an arbitration agreement or any person claiming under him desiring to challenge the existence or validity of an arbitration agreement or an award or to have the effect of either determined shall apply to the Court and the Court shall decide the question on affidavits :

Provided that where the Court deems it just and expedient, it may set down the application for hearing on other evidence also and it may pass such orders for the discovery and particulars as it may do in a suit [1][.]

[2]* * * * * * *

34. Power to stay legal proceedings where there is an arbitration agreement. Where any party to an arbitration agreement or any person claiming under him commences any legal proceedings against any other party to the agreement or any person claiming under him in respect of any matter agreed to be referred, any party to such legal proceedings may, at any time before filing a written statement or taking any other steps in proceedings, apply to the judicial authority before which the proceedings are pending to stay the proceedings; and if satisfied that there in no sufficient reason why the matter should not be referred in accordance with the arbitration agreement and that the applicant was, at the time when the proceedings were commenced, and still remains, ready and willing to do all things necessary to the proper conduct of the arbitration, such authority may make an order staying the proceedings.

35. Effect of legal proceedings on arbitration.—(1) No reference nor award shall be rendered invalid by reasons only of the commencement of legal proceedings upon the subject- matter of the reference, but when legal proceedings upon the whole of the subject matter of the reference have been commenced between all the parties to the reference and a notice thereof has been given to the arbitrators or umpire, all further proceedings in a pending reference shall, unless a stay of proceedings is granted under section 34, by invalid.

(2) In this section the expression "parties to the reference" includes any persons claiming under any of the parties and litigating under the same title.

36. Power of Court, to order that a provision making an award a condition precedent to an action shall not apply to a particular difference. Where it is provided (whether in the arbitration agreement or otherwise) that an award under an arbitration agreement shall be a condition precedent to the bringing of an action with respect to any matter to which the agreement applies, the Court, if it orders (whether under this Act or any other law) that the agreement shall cease to have effect as regards any particular difference, may further order that the said provision shall also cease to have effect as regards that difference.

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[1] Subs. and added by the Arbitration (Amdt.) Ordinance, 1977 (27 of 1977), s. 2 for colon, which was previously amended by Ordinance 12 of 1972, s. 2 and Sch., to read as above.

[2] Provisio omitted by Ordinance 12 of 1972, s. 2 and Sch.

37. Limitations.—(1) All the provisions of the Limitation Act, 1908 (IX of 1908), shall apply to arbitrations as they apply to proceedings in Court.

(2) Notwithstanding any term in an arbitration agreement to the effect that no cause of action shall accrue in respect of any matter required by the agreement to be referred until an award is made under the agreement, a cause of action shall, for the purpose of limitation, be deemed to have accrued in respect of any such matter at the time when it would have accrued but for that term in the agreement

(3) For the purposes of this section and of the Limitation Act, 1908 (IX of 1908), an arbitration shall be deemed to be commenced when one party to the arbitration agreement serves on the other parties thereto a notice requiring the appointment of an arbitrator, or where the arbitration agreement provides that the reference shall be to a person named or designated in the agreement, requiring that the difference be submitted to the person so named or designated.

(4) Where the terms of an agreement to refer future differences to arbitration provide that any claims to which the agreement applies shall be barred unless notice to appoint an arbitrator is given or an arbitrator is appointed or some other step to commence arbitration proceedings is taken within a time fixed by the agreement, and a difference arises to which the agreement applies, the Court, if it is of opinion that in the circumstances of the case undue hardship would otherwise be caused, and notwithstanding that the time so fixed has expired, may on such terms, if any, as the justice of the case may require, extend the time for such period as it thinks proper.

(5) Where the Court orders that an award be set aside or orders, after the commencement of an arbitration that the arbitration agreement shall cease to have effect with respect to the difference referred, the period between the commencement of the arbitration and the date of the order of the Court shall be excluded in computing the time prescribed by the Limitation Act, 1908 (IX of 1908), for the commencement of the proceedings (including 1908 arbitration) with respect to the difference referred.

38. Disputes as to arbitrator's remuneration or costs.—(1) If in any case an arbitrator or umpire refuses to deliver his award except on payment of the fees demanded by him, the Court may, on an application in this behalf, order that the arbitrator or umpire shall deliver the award to the applicant on payment into Court by the applicant of the fees demanded, and shall, after such inquiry, if any, as it thinks fit, further order that out of the money so paid into Court there shall be paid to the arbitrator or umpire by way of fees such sum as the Court may consider reasonable and that the balance of the money, if any, shall be refunded to the applicant.

(2) An application under sub-section (1) may be made by any party to the reference unless the fees demanded have been fixed by written agreement between him and the arbitrator or umpire, and the arbitrator or umpire shall be entitled to appear and be heard on any such application.

(3) The Court may make such orders as it thinks fit respecting the costs of an arbitration where any question arises respecting such costs and the award contains no sufficient provision concerning them.

CHAPTER VI

APPEALS

39. Appealable orders.—(1) An appeal shall lie from the following orders passed under this Act (and from no others) to the Court authorised by law to hear appeals from original decrees of the Court passing the order:—

An order—

(i) superseding an arbitration;

(ii) on an award stated in the form of a special cases;

(iii) modifying or correcting an award;

(iv) filing or refusing to file an arbitration agreement;

(v) staying or refusing to stay legal proceedings where there is an arbitration agreement;

(vi) setting aside or refusing to set aside an award:

Provided that the provisions of this section shall not apply to any order passed by a Small Cause Court.

(2) No second appeal shall lie from an order passed in appeal under this section, but nothing in this Section shall affect or take away any right to appeal to [1][the Supreme Court].

CHAPTER VII

MISCELLANEOUS

40. Small Cause Court not to have jurisdictions over arbitration save arbitrations in suit before it. A Small Cause Court shall have no jurisdiction over any arbitration proceedings or over any application arising there out save on application made under section 21.

41. Procedure and powers of Court. Subject to the provisions of this Act and of rules made thereunder—

(a) the provisions of the Code of Civil and Procedure, 1908 (V of 1908), shall apply to all proceedings before the Court, and to all appeals, under this Act, and

(b) the Court shall have, for the purpose of, and in relation to, arbitration proceedings, the same power of making orders in respect of any of the matters set out in the Second Schedule as it has for the purpose of, and in relation to, any proceedings before the Court:

Provided that nothing in clause (b) shall be taken to prejudice any power which may be vested in an arbitration or umpire for making orders with respect to any of such matters.

[1] Subs. by A.O., 1961, Art.2 and Sch., for "His Majesty in Council" (with effect from the 23rd March, 1956).

42. Service of notice by party or arbitrator. Any notice required by this Act to be served otherwise than through the Court by a party to an arbitration agreement or by an arbitrator or umpire

shall be served in the manner provided in the arbitration agreement, or if there is no such provision, either—

(a) by delivering it to the person on whom it is to be served, or

(b) by sending it by the post in a letter addressed to that person at his usual or last known place of abode or business in [1][Pakistan] and registered under Chapter VI of the Post Officer Act, 1898 (VI of 1898).

43. Power of Court to issue processes for appearance before arbitrator.— (1) The Court shall issue the same processes to the parties and witnesses whom the arbitrator or umpire desires to examine as the Court may issue in suits tried before it.

(2) Persons failing to attend in accordance with such process, or making any other default, or refusing to give their evidence, of guilty or any contempt to the arbitrator or umpire during the investigation of the reference, shall be subject to the like disadvantages, penalties and punishments by order of the Court on the representation of the arbitrator or umpire as they would incur for the like offices in suits tried before the Court.

(3) In this section the expression "processes" includes summonses and commissions for the examination of witnesses and summonses to produce documents.

44. Power to High Court to make rules. The High Court may make rules consistent with this Act as to—

(a) the filing of awards and all proceedings consequent thereon or incidental thereto;

(b) the filing and hearing of special cases and all proceedings consequent thereon or incidental thereto;

(c) the staying of any suit or proceeding in contravention of an arbitration agreement;

(d) the forms to be used for the purposes of this Act;

(e) generally, all proceedings in Court under this Act.

45. Government to be bound. The provisions of this Act shall be binding on the [2][Government].

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[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India"
[2] Subs. by A.O.,1961. Art.2, for "Crown" (with effect from the 23rd March, 1956).

46. Application of Act to statutory arbitrations. The provisions of this Act, except sub-section (1) of section 6 and section 7, 12, [1][,36] and 37, shall apply to every arbitration under any

other enactment for the time being in force, as if the arbitration were pursuant to an arbitration agreement and as if that other enactment were an arbitration agreement, except in so far as this Act is inconsistent with that other enactment or with any rules made thereunder.

47. Act to apply to all arbitrations. Subject to the provisions of section 46, and save in so far as is otherwise provided by any law for the time being in force, the provisions of this Act shall apply to all arbitrations and to all proceedings thereunder:

Provided that an arbitration award otherwise obtained may with the consent of all the parties interested be taken into consideration as a compromise or adjustment of a suit by any Court before which the suit is pending.

48. Saving for pending references. The provisions of this Act shall not apply to any reference pending at the commencement of this Act, to which the law in force immediately before the commencement of this Act shall, notwithstanding any repeal affected by this Act, continue to apply.

49. [Repeals and amendments] Rep. by the Repealing and Amending Act, 1945 (VI of 1945),s. 2 and First Schedule.

THE FIRST SCHEDULE

(See Section 3)

IMPLIED CONDITIONS OF ARBITRATION AGREEMENTS

1. Unless otherwise expressly provided, the reference shall be to a sole arbitrator.

2. If the reference is to an even number of arbitrators, the arbitrators shall appoint an umpire not later than one month from the latest date of their respective appointments.

3. The arbitrators shall make their award within four months after entering on the reference or after having been called upon to act by notice in writing from any party to the arbitration agreement or within such extended time as the Court may allow.

4. If the arbitrators have allowed their time to expire without making an award or have delivered to any party to the arbitration agreement or to the umpire a notice in writing stating that they cannot agree, the umpire shall forthwith enter on the reference in lieu of the arbitrators.

5. The umpire shall make his award within two months of entering on the reference or within such extended time as the Court may allow.

[1]Ins. by Repealing and Amending Act, 1942 (25 of 1942), s.3 and 2nd Sch.

6. The parties to the reference and all persons claiming under them shall subject to the provisions of any law for the time being in force, submit to be examined by the arbitrators or umpire on oath or affirmation in relation to the matters in difference and shall, subject as aforesaid, produce

before the arbitrators or umpire all books, deeds, papers, accounts writings and documents within their possession or power respectively, which may be required or called for, and do all other things which, during the proceedings on the reference, the arbitrators, or umpire may require.

7. The award shall be final and binding on the parties and persons claiming under them respectively.

` **8**. The cost of the reference and award shall be in the discretion of the arbitrators or umpire who may direct to, and by whom, and in what manner, such costs or any part thereof shall be paid, and may tax or settle the amount of costs to be so paid or any part thereof and may award costs to be paid as between legal practitioner and client.

THE SECOND SCHEDULE

(See Section 41)

POWERS OF COURT

1. The preservation, interim custody or sale of any goods which are subject matter of the reference.

2. Securing the amount in difference in the reference.

3. The detention, preservation or inspection of any property or thing which is the subject of the reference or as to which any question may arise therein and authorising for any of the aforesaid purposes any person to enter upon or into any land or building in the possession or any party to the reference, or authorising any samples to be taken or any observation to be made, or experiment to be tried, which may be necessary or expedient for the purpose of obtaining full information or evidence.

4. Interim injunctions or the appointment of a receiver.

5. The appointment of a guardian for a minor or person of unsound mind for the purposes of arbitration proceedings.

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THE THIRD AND FOURTH SCHEDULES. [ENACTMENTS REPEALED. ENACTMENTS AMENDED.] Rep. by the Repealing and Amending Act, 1945 (VI of 1945),s.2 and First Schedule.

THE BIRTHS, DEATHS AND MARRIAGES REGISTRATION ACT, 1886

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THE BIRTHS, DEATHS AND MARRIAGES REGISTRATION ACT, 1886

[1]ACT No. VI OF 1886

[*8th March*, 1886]

An Act to provide for the voluntary Registration of certain Births and Deaths, for the establishment of General Registry Offices for keeping Registers of certain Births, Deaths and Marriages, and for certain other purposes

WHEREAS it is expedient to provide for the voluntary registration of births and deaths among certain classes of persons, for the more effectual registration of those births and deaths and of the marriages registered under Act III of 1872 (XV of 1872), or the Christian Marriage Act, 1872, (XV of 1872) and of certain marriages registered under the Parsi Marriage and Divorce Act, 1865[2], (XV of 1865), and for the establishment of general registry offices for keeping registers of those births, deaths and marriages;

AND WHEREAS it is also expedient to provide for the authentication and custody of certain existing registers made otherwise than in the performance of a duty specially enjoined by the law of the country in which the registers were kept, and to declare that copies of the entries in those registers shall be admissible in evidence;

It is hereby enacted as follows:—

CHAPTER I
PRELIMINARY

1. Short title and commencement.—(1) This Act may be called the Births, Deaths and Marriages Registration Act, 1886; and

(2) It shall come into force on such day[3] as the [4][Provincial Government], by notification in the [5][official Gazette], directs.

[6][* * * * * * *]

2. Local extent. This Act extends[7] to [8][the whole of Pakistan] and applies also [9][to citizens of Pakistan in Acceding States].

[1]For Statement of Objects and Reasons, *see* "Gazette of India, 1885, Pt. V, p.12; for Report of the Select Committee, *see ibid*., 1886, Pt. IV, p. 103; and for Proceedings in Council, *see ibid*., 1885, Supplement, pp. 14 and 87, and ibid., 1886, p. 290.
This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; and also extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
This Act has been repealed to the extent of Islamabad Capital Territory, *see* Ord. No. 27 of 1981, s. 4 and 3rd Sch.
[2]*See* now the Parsi Marriage and Divorce Act, 1936 (3 of 1936).
[3]The 1st October, 1888, *see* Gazette of India, 1888, Pt. I, p. 336.
[4]Subs. by F.A.O., 1975, Art. 2 and Sch., for "Central Government", which was subs. by A.O.,1937, for "G. G. in C.".
[5]Subs. by A.O., 1937, for "Gazette of India".
[6]Sub-section (3) rep. by the Amending Act, 1891 (12 of 1891).
[7]It has been declared in force in Baluchistan by the British Baluchistan Laws Regulation (2 of 1913), s. 3 and Sch.
It has also been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gaz. of India, 1937, Pt. I, p. 1499.
[8]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*) for "all the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "the whole of British India".
[9]The original words "within the dominions of Princes and States in India in alliance with Her Majesty, to British subjects in those dominions" have successively been amended by A. O.,1937, the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., and A.O., 1961, Art. 2 and Sch, (*with effect from the 23rd March, 1956*), to read as above.

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3. Definition. In this Act, unless there is something repugnant in the subject or context,—

"sign" includes mark, when the person making the mark is unable to write his name:

"prescribed" means prescribed by a rule made [1]* * * under this Act: and

"Registrar of Births and Deaths" means a Registrar of Births and Deaths appointed under this Act.

4. Saving of local laws. Nothing in this Act, or in any rule made under this Act, shall affect any law heretofore or hereafter passed providing for the registration of births and deaths within particular local areas.

5. Powers exercisable from time to time. All powers conferred by this Act may be exercised from time to time as occasion requires.

CHAPTER II
GENERAL REGISTRY OFFICES OF BIRTHS, DEATHS AND MARRIAGES

6. Establishment of general registry offices and appointment of Registrars General.— (1) Each [2][Provincial Government]—

(a) shall establish[3] a general registry office for keeping such certified copies of registers of births and deaths registered under this Act, or marriages registered under Act III of 1872 (XV of 1872) (*to provide a form of marriage in certain cases*) or of the Christian Marriage Act, 1872, or, [4]* * *, under the Parsi Marriage and Divorce Act, 1865[5], (XV of 1865) as may be sent to it under this Act, or under any of the three last-mentioned Acts, as amended by this Act; and

(b) may appoint[6] to the charge of that office an officer, to be called the Registrar General of Births, Deaths and Marriages, for the territories under its administration:

[7][* * * * * * *]

7. Indexes to be kept at general registry office. Each Registrar General of Births, Deaths and Marriages shall cause indexes of all the certified copies of registers sent to his office under this Act, or under Act III of 1872 (XV of 1872), the Christian Marriage Act, 1872, (XV of 1872) or the Parsi Marriage and Divorce Act, 1865[5], (XV of 1865) as amended by this Act, to be made and kept in his office in the prescribed form.

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[1] The words "by the G.G. in C." rep. by A.O., 1937.
[2] Subs. by A.O.,1937, for "L. G.",
[3] For General Registry Offices established for different provinces, *see* local R. & O.
[4] The words "beyond the local limits of the ordinary original civil jurisdiction of the High Court of judicature at Bombay" omitted by A.O., 1949. Sch.
[5] *See* now the Parsi Marriage and Divorce Act, 1936 (3 of 1936).
[6] For Registrars General appointed for different provinces, *see* local R.&O.
[7] Sub-section (2) rep. by A.O., 1937.

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8. Indexes to be open to inspection. Subject to the payment of the prescribed fees, the indexes so made shall be at all reasonable times open to inspection by any person applying to inspect them, and copies of entries in the certified copies of the registers to which the indexes relate shall be given to all persons applying for them.

9. **Copies of entries to be admissible in evidence**. A copy of an entry given under the last foregoing section shall be certified by the Registrar General of Births, Deaths and Marriages, or by an officer authorized [1] in this behalf by the [2][Provincial Government], and shall be admissible in evidence for the purpose of proving the birth, death or marriage to which the entry relates.

10. Superintendence of registrars by Registrar General. Each Registrar General of Births, Deaths and Marriages shall exercise a general superintendence over the Registrars of Births and Deaths in the territories for which he is appointed.

CHAPTER III
REGISTRATION OF BIRTHS AND DEATHS

A.—Application of this Chapter

11. Persons whose births and deaths are registerable.—(1) The persons whose births and deaths shall, in the first instance, be registerable under this Chapter are the following namely:—

(a) in [3][the Provinces], the members of every race, sect or tribe to which the Indian Succession Act, 1865[4](X of 1865), applies, and in respect of which an order under section 332 of that Act is not for the time being in force, and all persons professing the Christian religion;

(b) in [5][Acceding States], [6][citizens of Pakistan] being members of a like race, sect or tribe or professing the Christian religion:

(2) But the [2][Provincial Government], by notification in the official Gazette, may [7]* * *extend the operation of this Chapter to any other class of persons either generally or in any local area.

B.—Registration Establishment

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[8]**12. Power for Provincial Government to appoint Registrars for its territories**. The [2][Provincial Government] may appoint, either by name or by virtue of their office, so many persons as it thinks necessary to be Registrars of Births and Deaths for such local areas within the territories under its administration as it may define and, if it sees fit, for any class of persons within any part of those territories.

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[1]For such authorizations, *see* local R.& O.

[2]Subs. by A.O., 1937, for "L.G.".

[3]The original words "British India" have successively been amended by A.O., 1949, Arts. 3 (2) and (4), the Repealing and Amending Ordinance 1961 (1 of 1961), s. 3 and 2nd Sch., and A.O., 1964, Art. 2 and Sch., to read as above.

[4]See now the Succession Act, 1925 (39 of 1925), s. 3.

[5]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., for "Indian States" which had been subs. by A.O., 1937, for "the dominions of Princes and States in India in alliance with Her Majesty"

[6]Subs. by A.O., 1961, Art. 2 and Sch., for "British subjects" (*with effect from the 23rd March, 1956*).

[7]The words "with the previous approval of the G. G. in C." were omitted by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I.

[8]As to Registrars appointed under this section, *see* different local Rules and Orders and Gen. R. & O.

13. Power for [1][Federal Government] to appoint Registrars for Acceding States. The [1][Federal Government] may, by notification in the [2][official Gazette], appoint, either by name or by virtue of their office, so many persons as [3][it] thinks necessary to be [4]Registrars of Births and Deaths for such local areas within [5][any Acceding to State] as [3][it] may define and, if [3][it] sees fit, for any class of persons within any part of [6][those States].

[7][* * * * * * *]

14. Registrar to be deemed a public servant. Every Registrar of Births and Deaths shall be deemed to be a public servant within the meaning of the Pakistan Penal Code (XLV of 1860).

15. [*Power to remove Registrars.*] *Rep. by A.O., 1937.*

16. Office and attendance of Registrar.— (1) Every Register of Births and Deaths shall have an office in the local area, or within the part of the territories or dominions, for which he is appointed.

(2) Every Registrar of Births and Deaths to whom the [8][Provincial Government] may direct this sub-section to apply shall attend at his office for the purpose of registering births and deaths on such days and at such hours as the Registrar General of Births, Deaths and Marriages may direct, and shall cause to be placed in some conspicuous place on or near the outer door of his office his name, with the addition of Registrar of Births and Deaths for the local area or class for which he is appointed, and the days and hours of his attendance.

17. Absence of Registrar or vacancy in his office.—(1) When any Registrar of Births and Deaths to whom the [8][Provincial Government] may direct this section to apply, [9]* * *, is absent, or when his office is temporarily vacant any person whom the Registrar General of Births, Deaths and Marriages appoints in this behalf, or, in default of such appointment, the Judge of the District Court within the local limits of whose jurisdiction the Registrar's office is situate, or such other officer as the [8][Provincial Government] appoints in this behalf, shall be the Registrar of Births and Deaths during such absence or until the [8][Provincial Government] fills the vacancy.

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[10][* * * * * * *]

(3) The Registrar General of Births, Deaths and Marriages shall report to the [8][Provincial Government] all appointments made by him under this section.

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which was previously subs. by A.O., 1937, for "G. G. in C.".
[2]Subs. by A.O., 1937, for "Gazette of India".
[3]Subs. *ibid.*, for "he".
[4]For Registrars of Births and Deaths appointed under this section for–
(1) Baluchistan Agency Territories, *see* Gazette of India, 1903, Pt. I, p. 916.
(2) Hyderabad State, *see* Gazette of India, 1889 and 1890, Pt. I, p. 621 and 468, respectively.
[5]Subs. by Act 26 of 1951, s. 4 and 3rd Sch., for "any Indian State" which had been subs. by A.O., 1937, for "the dominions of any Prince or State in India in alliance with Her Majesty".
[6]Subs. by A.O., 1937, for "those dominions".
[7]The proviso which was added by the Devolution, Act, 1920 (38 of 1920), s. 2 and Sch. I, rep. by A.O., 1937.
[8]Subs. by A.O., 1937, for "L. G.".
[9]The words "not being a Registrar of Births and Deaths for a local area in the town of Calcutta, Madras or Bombay" omitted by A.O., 1949, Sch.
[10]Sub-section (2) omitted, *ibid.*

18. Registrar books to be supplied and preservation of records to be provided for. The [1][Provincial Government] shall supply every Registrar of Births and Deaths with a sufficient number of register books of births and of register books of deaths, and shall make suitable provision for the preservation of the records connected with the registration of births and deaths.

C.—Mode of Registration

19. Duty of Registrar to registrar births and deaths of which notice is given. Every Registrar of Births and Deaths, on receipt of notice of a birth or death within the local area or among the class for which he is appointed, shall, if the notice is given within the prescribed time and in the prescribed mode by a person authorized by this Act to give the notice, forthwith make an entry of the birth or death in the proper register book:

Provided that—

(a) if he has reason to believe the notice to be in any respect false, he may refuse to register the birth or death until he receives an order from the Judge of the District Court directing him to make the entry and prescribing the manner in which the entry is to be made; and

(b) he shall not enter in the register the name of any person as father of an illegitimate child, unless at the request of the mother and of the person acknowledging himself to be the father of the child.

20. Persons authorised to give notice of birth. Any of the following persons give notice of a birth, namely:—

(a) the father or mother of the child;

(b) any person present at the birth;

(c) any person occupying, at the time of the birth, any part of the house wherein the child was born and having knowledge of the child having been in the house;

(d) any medical practitioner in attendance after the birth and having personal knowledge of the birth having occurred;

(e) any person having charge of the child.

21. Persons authorized to give notice of death. Any of the following persons may give notice of a death, namely:—

(a) any relative of the deceased having knowledge of any of the particulars required to be registered concerning the death;

(b) any person present at the death;

[1] Subs. by A.O., 1937, for "L. G."

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(c) any person occupying, at the time of the death, any part of the house wherein the death occurred and having knowledge of the deceased having died in the house;

(d) any person in attendance during the last illness of the deceased;

(e) any person who has seen the body of the deceased after death.

22. Entry of birth or deaths to be signed by person giving notice.—(1) When an entry of a birth or death has been made by the Registrar of Births and Deaths under section l9, the person giving notice of the birth or death must sign the entry in the register in the presence of the Registrar:

[1][Provided that it shall not be necessary for the person giving notice to attend before the Registrar or to sign the entry in the register if he has given such notice in writing and has furnished to the satisfaction of the Registrar such evidence of his identity as may be required by any rules made by the [2][Provincial Government] in this behalf.]

(2) Until the entry has been so signed [1][or the conditions specified in the proviso to sub-section (1) have been complied with], the birth or death shall not be deemed to be registered under this Act.

(3) When the birth of an illegitimate child is registered, and the mother and the person acknowledging himself to be the father of the child jointly request that that person may be registered as the father, the mother and that person must both sign the entry in the register in the presence of the Registrar.

23. Grant of certificate of registration of birth or death. The Registrar of Births made at the time of registering any birth or death by the person giving notice of the birth or death, and on payment by him of the prescribed fee, give to the applicant a certificate in the prescribed form, signed by the Registrar, of having registered the birth or death.

24. Duty of Registrars as to sending certified copies of entries in register books to Registrar General.—(1) Every Registrar of Births and Deaths in [3][Pakistan] shall send to the Registrar General of Births, Deaths and Marriages for the territories within which the local area or class for which he is appointed is situate or resides, at the prescribed intervals, a true copy certified by him, in the prescribed form, of all the entries of births and deaths in the register book kept by him since the last of those intervals:

Provided that in the case of Registrars of Births and Deaths who are clergymen of the Churches of England, Rome and Scotland, the Registrar may, if so directed by his ecclesiastical superior, send the certified copies in the first instance to that superior, who shall send them to the proper Registrar General of Births, Deaths and Marriages.

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[1]Ins. by the Births, Deaths and Marriages Registration (Amdt.) Act, 1911 (9 of 1911), s. 2.
[2]Subs. by A.O., 1937, for "L. G.".
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960),s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*) for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3 (2) and 4, for "British India".

In this sub-section "Church of England" and "Church of Scotland" mean the Church of England and the Church of Scotland as by law established respectively; and "Church of Rome" means the Church which regards the Pope of Rome as its spiritual head.

(2) The provisions of sub-section (1) shall apply to every Registrar of Births and Deaths in [1][any Acceding State] with this modification that the certified copies referred to in that sub-section shall be sent to such one of the Registrars General of Births, Deaths and Marriages as the [2][Federal Government], by notification[3] in the [4][official Gazette], appoints in this behalf.

[5][* * * * * * *]

25. Searches and copies of entries in register books.—(1) Every Registrar of Births and Deaths shall, on payment of the prescribed fees, at all reasonable times, al1ow searches to be, made in the register books kept by him and give a copy of any entry in the same.

(2) Every copy of an entry in a register book given under this section shall be certified by the Registrar of Births and Deaths and shall be admissible in evidence for the purpose of proving the birth or death to which the entry relates.

26. Exceptional provision for registration of certain births and deaths. Notwithstanding anything in section 19, the [6][Provincial Government] may make rules[7] authorizing Registrars of Births and Deaths, on conditions and in circumstances to be specified in the rules, to register births and deaths occurring outside the local areas or classes for which they are appointed.

D.—Penalty for False Information

27. Penalty for wilfully given false information. If any person wilfully makes, or causes to be made for the purpose of being inserted in any register of births or deaths, any false statement in connection with any notice of a birth or death under this Act, he shall be punished with imprisonment for a term which may extend to three years, or with fine, or with both.

E.—Correction of Errors

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28. Correction of entry in register of births or deaths.—(l) If it is proved to the satisfaction of a Registrar of Births and Deaths that any entry of a birth or death in any register kept by him under this Act is erroneous in form or substance, he may, subject to such rules [8]as may be made by the [6][Provincial Government] with respect to the conditions and circumstances on and in which errors may be corrected, correct the error by entry in the margin, without any alteration of the original entry, and shall sign the marginal entry and add thereto the date of the correction.

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[1]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), for "any Indian State" which had been subs. for "the dominions of any Prince or State in India in alliance with Her Majesty" by A.O., 1937.
[2]*See* foot-note 1 on p. 177, *supra*.
[3]For an instance of such notification, see Gazette of India, 1923, Pt. I, p. 204.
[4]Subs. by A.O., 1937, for "Gazette of India".
[5]The proviso added by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. I, rep. by A.O., 1937.
[6]Subs. by A.O., 1937, for the words "L. G.", which had been subs. for the words "G. G. in C." by the Births, Deaths and Marriages Registration (Amdt.) Act, 1911 (9 of 1911), s. 3.
[7]For rules made under s. 26 conjointly with ss. 28 and 36, *see* Gen. R. & O., and different local Rules and Orders. All rules made by the "G. G. in C." under this Act before 1911 shall be deemed to have been made by the Provincial Government, *see*. s. 6 of Act 9 of 1911.
[8]For rules made under s. 26 conjointly with ss. 28 and 36, *see* Gen. R. & O., and different local Rules and Orders. All rules made by the "G.G. in C." under this Act before 1911 shall be deemed to have been made by the Provincial Government, *see* s.6 of Act 9 of 1911.

(2) If a certified copy of the entry has already been sent to the Registrar General of Births, Deaths and Marriages, the Registrar of Births and Deaths shall make and send a separate certified copy of the original erroneous entry and of the marginal correction therein made.

CHAPTER IV
AMENDMENT Of' MARRIAGE ACTS

[*Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Schedule*]

CHAPTER V
SPECIAL PROVISIONS AS TO CERTAIN EXISTING REGISTERS

32. Permission to persons having custody of certain records to send them within one year to Registrar General. If any person in [1][Pakistan] or in [2][any Acceding State], has for the time being the custody of any register or record of birth, baptism, naming, dedication, death or burial of any persons of the classes referred to in section 11, sub-section (1), or of any register or record of marriage of any persons of the classes to which Act III of 1872 or the Christian Marriage Act, 1872(XV of 1872.), or the Parsi Marriage and Divorce Act, 1865[3](XV of 1865), applies, and if such register or record has been made otherwise than in performance of a duty specially enjoined by the law of the country in which the Register or record was kept, he may, [4][at any time before the first day of April 1891], send the register or record to the office of the Registrar General of Births, Deaths and Marriages for the territories within which he resides, or, if he resides within [5][any Acceding State], to such one of the Registrars General as aforesaid as the [6][Federal Government], by notification[7] in the [8][official Gazette], directs in this behalf:

[9][* * * * * * *]

33. Appointment of Commissioners to examine registers.— [10][(1) Any [11][Provincial Government] in the case of registers or records sent under section 32 to the Registrar General for the territories under its administration, and the [6][Federal Government], in the case of registers or records so sent to any other Registrar General appointed by [12][it] under the said section, may appoint so many persons as it [13]* * * thinks fit to be Commissioners for examining such registers or records.]

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3 (2) and 4, for "British India."

[2]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch. for "any Indian State" which had been subs. by A.O., 1937, for "the dominions of any Prince or State in India in alliance with Her Majesty".

[3]*See* now the Parsi Marriage and Divorce Act, 1936 (3 of 1936).

[4]Subs. for "within one year from the date on which this Act comes into force" by the Births, Deaths and Marriages Registration Act, (1886) Amendment Act, 1890 (16 of 1890), s. I.

[5]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., for "any Indian State" which had been subs. by A.O., 1937, for "the dominions of any Prince or State in India in alliance with Her Majesty".

[6]See foot-note 1 on p. 177, *supra.*

[7]For an instance of such notification, see Gazette of India, 1899, Pt. I, p.424.

[8]Subs. by A.O., 1937, for "Gazette of India.".

[9]Proviso which was inserted by the Devolution Act, 1920 (38 of 1920), s. 2, and Sch. I, and subsequently amended by A.O., 1937, omitted by A.O., 1949, Sch.

[10]Subs. by Act 38 of 1920 s. 2 and Sch. I, for the original sub-section (1)

[11]Subs. by A, O., 1937, for "L. G,".

[12]Subs, *ibid*., for "him".

[13]The words "or he, as the case may be," rep., *ibid.*

(2) The Commissioners so appointed shall hold office for such period as the [1][authority appointing them], by the order of appointment, or any subsequent order, directs.

34. Duties of Commissioners.—(1) The Commissioners appointed under the last foregoing section shall enquire into the state, custody and authenticity of every such register or record as may be sent to the Registrar General of Births, Deaths and Marriages under section 32;

and shall deliver to the Registrar General a descriptive list or descriptive lists of all such registers or records, or portions of registers or records, as they find to be accurate and faithful.

(2) The list or lists shall contain the prescribed particulars and refer to the registers or records, or to the portions of the registers or records, in the prescribed manner.

(3) The Commissioners shall also certify in writing, upon some part of every separate book or volume containing any such register or record, or portion of a register or record, as is referred to in any list or lists made by the Commissioners, that it is one of the registers or records, or portions of registers or records, referred to in the said list or lists.

35. Searches of lists prepared by Commissioners and grant of certified copies of entries.—(1) Subject to the payment of the prescribed fees, the descriptive list or lists of registers or records, or portions of registers or records, delivered by the Commissioners to the Registrar General of Births, Deaths and Marriages shall be, at all reasonable times, open to inspection by any person applying to inspect it or them, and copies of entries in those registers or records shall be given to all persons applying for them.

(2) A copy of an entry given under this section shall be certified by the Registrar General of Births, Deaths and Marriages, or by an officer or person [2]authorized in this behalf by the [3][Provincial Government] and shall be admissible in evidence for the purpose of proving the birth, baptism, naming, dedication, death, burial or marriage to which the entry relates.

[4]**[35A. Constitution of additional Commissions for purposes of this Chapter**.—(1) The [5][Federal Government] or the [3][Provincial Government] [6][may by notification in the official Gazette] appoint more Commissions[7] than one for the purposes of section 33, each such Commission consisting of so many and such members, and having its functions restricted to the disposal, under this Act and the rules thereunder, of such registers and records sent under section 32 to the Registrar General, as may be specified in the notification.

(2) If more Commissions than one are appointed in exercise of the power conferred by sub-section (1), then references in this Act to the Commissioners shall be construed as references to the members constituting a, Commission so appointed.]

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[1]Subs. by Act 38 of 1920, s. 2 and Sch., I, for "G. G. in C.".

[2]For such authorizations, *see* different local Rules and Orders.

[3]Subs. by A.O., 1937, for "L. G.".

[4]S. 35A was added by the Births, Deaths and Marriages Registration Act (1886) Amendment Act, 1890 (16 of 1890), s. 2, which was repealed by the Devolution Act, 1920 (38 of 1920), s. 3 and Sch. II. The present sub-section (1) was subs for the original sub-section by Act 38 of 1920, s. 2 and Sch. 1 and sub-section (2), which is the same as the original sub-section (2), was ins. by the Repealing and Amending Act, 1934 (24 of 1934) s. 2 and Sch. I.

[5]*See* foot-note 1 on p. 177, *supra*.

[6]Subs. by A.O., 1937, for "if he or it thinks fit, may by notification in the Gazette of India or the local official Gazette, as the case may be".

[7]For Commissioners appointed under this section, *see* Gen. R. & O.

CHAPTER VI
RULES

[1]**[36. Rules**.—[2][(1) The Provincial Government, for each Province, and the [3][Federal Government], for [4][citizens of Pakistan] in [5][Acceding States], may make rules to carry out the purposes of this Act.]

(2) In particular and without prejudice to the generality of the foregoing power, such rules may—

(*a*) fix the fees payable under this Act;

(*b*) prescribe the forms required for the purposes of this Act;

(*c*) prescribe the time within which, and the mode in which, persons authorized under this Act to give notice of a birth or death to a Registrar of Births and Deaths must give the notice;

(*d*) prescribe the evidence of identity to be furnished to a Registrar of Births and Deaths by persons giving notice of a birth or death in cases where personal attendance before such Registrar is dispensed with;

(*e*) prescribe the registers to be kept and the form and manner in which Registrars of Births and Deaths are to register births and deaths under this Act, and the intervals at which they are to send to the Registrar General of Births, Deaths and Marriages true copies of the entries of births and deaths in the registers kept by them;

(*f*) prescribe the conditions and circumstances on and in which Registrars of Births and Deaths may correct entries of births and deaths in registers kept by them;

(*g*) prescribe the particulars which the descriptive list or lists to be prepared by the Commissioners appointed under Chapter V are to contain, and the manner in which they are to refer to the registers or records, or portions of registers or records, to which they relate; and

(*h*) prescribe the custody in which those registers or records are to be kept.

(3) Every power to make rules conferred by this Act is subject to the condition of the rules being made after previous publication.

(4) All rules made under this Act shall be published in the [6][official Gazette], and on such publication shall have effect as if enacted in this Act.]

37. [*Procedure for making and publication of rules*.] *Rep by the Births, Deaths and Marriages Registration Amendment Act,* 1911 (*IX of* 1911), *s.* 5.

Date: 05-09-2024

[1]Subs. by the Births, Deaths and Marriages Registration (Amdt.) Act, 1911 (9 of 1911), s. 4, for the original section.
[2]Subs. by A.O., 1937, for the original sub-section.
[3]Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government".
[4]Subs. by A.O., 1961, Art. 2 and Sch., for "British subjects" (*with effect from the 23rd March, 1956*).
[5]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., for "Indian States".
[6]Subs. By A.O, 1937, for "local official Gazette."

THE CANAL AND DRAINAGE ACT, 1873

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THE CANAL AND DRAINAGE ACT, 1873

*[1]Act No. VIII OF 1873

[*11th February*, 1873]

An Act to regulate Irrigation, Navigation and Drainage [2]* * *

Preamble. WHEREAS, throughout the territories to which this Act extends, [3][the Provincial Government] is entitled to use and control for public purposes the water of all rivers and streams flowing in natural channels, and of all lakes and other natural collections of still water ; and whereas it is expedient to amend the law relating to irrigation, navigation and drainage in the said territories ; it is hereby enacted as follows :—

PART I
PRELIMINARY

1. Short title.—This Act may be called the [4]* * Canal and Drainage Act, 1873.

Local extent. It extends to [5][the Punjab]; and applies to all lands, whether permanently settled, temporarily settled, or free from revenue.

[6]* * * * * * *

2. [*Repeal of Acts*.] *Rep. by the Repealing Act*, 1873 *(XII of* 1873), *s.* 1 *and Sch., Pt.II.*

3. Interpretation-clause.—In this Act, unless there be something repugnant in the subject or context :–

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1872, Pt. V., p. 651; for Reports of Select Committee, *see ibid.* p. 747 and *ibid.*, Supplement, 1873, p. 223 ; for Proceedings in Council, *see ibid.*, Supplement, pp. 919, 956 and 1081; *ibid.*, 1873, Supplement, pp. 54,156,223,246 and 279.

This Act has been extended and amended in its application to the Divisions of Quetta and Kalat by West Pakistan Ord. No. 24 of 1964, ss. 2 and 3 (with effect from the 11th April, 1964).

The Act has been amended in the N.W.F.P. by N.W.F.P. Acts 3 of 1938 and 13 of 1948.

It has been declared not to apply to any canal which is included for the time being under Sch. I or Sch. II to the Punjab Minor Canals Act, 1905 (Pun Act 3 of 1905), *see* s. 2 (3) of that Act.

It has also been amended in its application to the Province of Punjab, *see* Punjab Act No. XIV of 1952, ss. 2 and 3.

It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified; *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.

The Act, as in force in the North-West Frontier Province immediately before the commencement of N.W.F.P. Regulation No. II of 1974, has been applied to the Provincially Administered Tribal Areas of Chitral, Dir, Kalam, Swat and Malakand Protected Area, by N.W.F.P. Regulation No. II of 1974, s.3 .

This Act has been amended to the extent of Islamabad Capital Territory, *see* Ordinance No. 27 of 1981, s. 5 and Sch. IV.

This Act has been repealed in its application to the Province of Balochistan, by Balochistan Ordinance No. 20 of 1980. s. 73.

[2]The words "in Northern India" omitted by A.O., 1949, Sch.

[3]Subs. by A.O., 1937, for "the Govt.".

*This act also been amended in its application to the province of N.W.F., by N.W.F.P., Ordinance No. V of 1980.

[4]The words "Northern India" omitted by A. O., 1937, Sch.

[5]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s, 8, for "West Punjab" which had been subs. by A.O., 1949, Sch for "the territories [which on the 11th February, 1873, were] respectively under the Govt. of the Lieutenant Governors of the North-Western Provinces and the Punjab, and under the administration of the Chief Commissioners of Oudh and the Central Provinces". The bracketted words were subs. by A.O., 1937, for " for the time being".

[6]Commencement clause rep. by the Repealing Act, 1874 (16 of 1874), s.1 Sch.

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(1) "**Canal".—** "Canal" includes—

(a) all canals, channels and reservoirs constructed, maintained or controlled by [1][the Provincial Government] for the supply or storage of water ;

(b) all works, embankments, structures, supply and escape channels connected with such canals, channels or reservoirs ;

(c) all water-courses as defined in the second clause of this section ;

(d) all parts of a river, stream, lake or natural collection of water or natural drainage-channel, to which the [2][Provincial Government] has applied the provisions of Part II of this Act ;

(2) **"Water-course".—**"water-course" means any channel which is supplied with water from a canal, but which is not maintained at the cost of [1][the Provincial Government], and all subsidiary works belonging to any such channel :

(3) **"Drainage-work".—**"drainage-work" includes escape-channels from a canal, dams, weirs, embankments, sluices, groins and other works for the protection of lands from flood or from erosion, formed or maintained by [3][the Provincial Government] under the provisions of Part VII of this Act, but does not include works for the removal of sewage from towns :

[4](4) **"Vessel".–** "vessel" includes boats, rafts, timber and other floating bodies :

[5](5) **"Commissioner".—**"Commissioner" means a Commissioner of a division, and includes any officer appointed under this Act to exercise all or any of the powers of a Commissioner :

[6](6) "**Collector".—**"Collector" means the head revenue-officer of a district and includes a Deputy Commissioner or other officer appointed under this Act to exercise all or any of the powers of a Collector :

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(7) **"Canal-officers".—**"Canal-officer" means an officer appointed under this Act to exercise control or jurisdiction over a canal or any part thereof :

"Superintending Canal-officer".—"Superintending Canal-officer" means an officer exercising general control over a canal or portion of a canal :

"Divisional Canal-officer".—"Divisional Canal-officer" means an officer exercising control over a division of a canal :

"Sub-divisional Canal-officer".—"Sub-Divisional Canal-officer" means an officer exercising control over a sub-division of a canal :

(8) **"District".—**"district" means a district as fixed for revenue-purposes.

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[1]Subs. by A. O., 1937, for "Govt.".
[2]Subs. *ibid.*, for "L. G.".
[3]Subs. *ibid.* for "the Govt.".
[4]*Cf.* definition in the General Clauses Act, 1897 (10 of 1897), s. 3 (56).
[5]In the N.W.F.P., for "Commissioner" *read* "Revenue Commissioner", *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 6 (1)(f).
[6]*Cf.* definition in the General Clauses Act, 1897 (10 of 1897), s. 3 (10).

4. Power to appoint officers. The [1][Provincial Government] may from time to time declare, by notification[2] in the official Gazette, the officers by whom, and the local limits within which, all or any of the owers or duties hereinafter conferred or imposed shall be exercised or performed.

All officers mentioned in section 3, clause (7), shall be respectively subject to the orders of such officers as the [1][Provincial Government] from time to time directs.

PART II
OF THE APPLICATION OF WATER FOR PUBLIC PURPOSES

5. Notification to issue when water supply is to be applied for public purposes.— Whenever it appears expedient to the [1][Provincial Government] that the water of any river or stream flowing in a natural channel, or of any lake or other natural collection of still water, should be applied or used by [3][the Provincial Government] for the purpose of any existing or projected canal or drainage-work, the [1][Provincial Government] may, by notification[4] in the official Gazette, declare that the said water will be so applied or used after a day to be named in the said notification, not being earlier than three months from the date thereof.

6. Powers of Canal-officer.—At any time after the day so named, any Canal-officer, acting under the orders of the [1][Provincial Government] in this behalf, may enter on any land and remove any obstructions, and may close any channels, and do any other thing necessary for such application or use of the said water.

7. Notice as to claims for compensation.—As soon as is practicable after the issue of such notification, the Collector shall cause public notice to be given at convenient places, stating that [3][the Provincial Government] intends to apply or use the said water as aforesaid, and that claims for compensation in respect of the matters mentioned in section 8 may be made before him.

8. Damage for which compensation shall not be awarded.—No compensation shall be awarded for any damage caused by—

(a) stoppage or diminution of percolation or floods ;

(b) deterioration of climate or soil ;

(c) stoppage of navigation, or of the means of drifting timber or watering cattle ;

(d) displacement of labour.

Matters in respect of which compensation may be awarded.—But compensation may be awarded in respect of any of the following matters :—

(e) stoppage or diminution of supply of water through any natural channel to any defined artificial channel, whether be above or under ground, in use at the date of the said notification ;

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[1]Subs. by A. O.,1937, for "L. G.".
[2]For such notifications, *see* the Punjab R. and O.
[3]Subs. by A.O., 1937, for "the Govt.".
[4]For such notifications issued in respect of certain rivers in the Punjab, *see* the Punjab R. and O.

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(f) stoppage or diminution of supply of water to any work erected for purposes of profit on any channel, whether natural or artificial, in use at the date of the said notification;

(g) stoppage or diminution of supply of water through any natural channel which has been used for purposes of irrigation within the five years next before the date of the said notification;

(h) damage done in respect of any right to a water-course or the use of any water to which any person is entitled under the [3][Limitation Act, 1908, (IX of 1908)], Part IV ;

(i) any other substantial damage, not falling under any of the above clauses (a), (b), (c) or (d), and caused by the exercise of the powers conferred by this Act, which is capable of being ascertained and estimated at the time of awarding such compensation.

In determining the amount of such compensation, regard shall be had to the diminution in the market-value, at the time of awarding compensation, of the property in respect of which compensation is claimed ; and, where such market-value is not ascertainable, the amount shall be reckoned at twelve times the amount of the diminution of the annual net profits of such property caused by the exercise of the powers conferred by this Act.

No right to any such supply of water as is referred to in clauses (e), (f) or (g) of this section, in respect of a work or channel not in use at the date of the notification, shall be acquired as against [1][the Provincial Government], except by grant or under the [5][Limitation Act, 1908 (IX of 1908)], Part IV;

and no right to any of the advantages referred to in clauses (a), (b) and (c) of this section shall be acquired, as against [1][the Provincial Government], under the same Part.

9. Limitation of claims.—No claim for compensation for any such stoppage, diminution or damage shall be made after the expiration of one year from such stoppage, diminution or damage unless the Collector is satisfied that the claimant had sufficient cause for not making the claim within such period.

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10. Enquiry into claims and amount of compensation.—The Collector shall proceed to enquire into any such claim, and to determine the amount of compensation, if any, which should be given to the claimant ; and sections [3][9 to 13 (inclusive), 19 to 20 (inclusive), and 22,25 to 27 (inclusive), 29 to 31 (inclusive), 45,51,52,54 and 55 of the Land Acquisition Act, 1894 (I of 1894)], shall apply to such inquiries:

Provided that, instead of the last clause of the said section 26, the following shall be read :— "The provisions of this section and of section 8 of the [4]* * Canal and Drainage Act, 1873, shall be read to every assessor in a language which he understands, before he gives his opinion as to the amount of compensation to be awarded" .

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[1]Subs. by A. O., 1937 for "the Govt.".
[2]*See* now the Limitation Act, 1908 (9 of 1908).
[3]Subs by ord. XXVII of 1981. s.5 and Sch IV only to the extent of (Islamabad Capital Territory).
[4]The words" Northern India" rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and 2nd Sch.
[5]Subs. by Ordinance XXVII of 1981, s. 3 and Sch. IV (only to the extent of Islamabad Capital Territory).

11. Abatement of rent on interruption of water-supply.—Every tenant holding under an unexpired lease, or having a right of occupancy, who is in occupation of any land at the time when any stoppage or diminution of water-supply, in respect of which compensation is allowed under section 8, takes place, may claim an abatement of the rent previously payable by him for the said land, on the ground that the interruption reduces the value of the holding.

12. Enhancement of rent on restoration of water-supply.—If a water-supply increasing the value of such holding is afterwards restored to the said land, the rent of the tenant may be enhanced, in respect of the increased value of such land due to the restored water-supply, to an amount not exceeding that at which it stood immediately before the abatement.

Such enhancement shall be on account only of the restored water-supply, and shall not affect the liability of the tenant to enhancement of rent on any other grounds.

13. Compensation when due.—All sums of money payable for compensation under this Part shall become due three months after the claim for such compensation is made in respect of the stoppage, diminution or damage complained of,

Interest. and simple interest at the rate of six per cent. per annum shall be allowed on any such sum remaining unpaid after the said three months, except where the non-payment of such sum is caused by the wilful neglect or refusal of the claimant to receive the same.

PART III
OF THE CONSTRUCTION AND MAINTENANCE OF WORKS

14. Power to enter and survey, etc. Any Canal officer, or other person acting under the general or special order of a Canal-officer,

may enter upon any lands adjacent to any canal, or through which any canal is proposed to be made, and undertake surveys or levels thereon ;

and dig and bore into the sub-soil ;

and make and set up suitable land-marks, level-marks, and water-gauges ;

and do all other acts necessary for the proper prosecution of any enquiry relating to any existing or projected canal under the charge of the said Canal-officer ;

Power to clear land. and, where otherwise such enquiry cannot be completed, such officer or other person may cut down and clear away any part of, any standing crop, fence or jungle ;

Power to inspect and regulate water-supply. and may also enter upon any land, building or water-course on account of which any water-rate is chargeable, for the purpose of inspecting or regulating the use of the water supplied, or of measuring the lands irrigated thereby or chargeable with a water-rate, and of doing all things necessary for the proper regulation and management of such canal :

Notice of intended entry into houses.—Provided that, if such Canal-officer or person proposes to enter into any building or enclosed court or garden attached to a dwelling house not

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supplied with water flowing from any canal he shall previously give the occupier of such building, court or garden at least seven days' notice in writing of his intention to do so.

Compensation for damage caused by entry.—In every case of entry under this section, the Canal-officer shall, at the time of such entry, tender compensation for any damage which may be occasioned by any proceeding under this section ; and, in case of dispute as to the sufficiency of the amount so tendered, he shall forthwith refer the same for decision by the Collector, and such decision shall be final.

15. Power to enter for repairs and to prevent accidents.—In case of any accident happening or being apprehended to a canal any Divisional Canal-officer or any person acting under his general or special orders in this behalf may enter upon any lands adjacent to such canal, and may execute all works which may be necessary for the purpose of repairing or preventing such accident.

Compensation for damage of land. In every such case such Canal-officer or person shall tender compensation to the proprietors or occupiers of the said lands for all damage done to the same. If such tender is not accepted, the Canal-officer shall refer the matter to the Collector, who shall proceed to award compensation for the damage as though the [1][Provincial Government] had directed the occupation of the lands under section [2][35 of the Land Acquisition Act, 1894 (I of 1894)].

16. Application by persons desiring to use canal-water. Any persons desiring to use the water of any canal may apply in writing to the Divisional or Sub-divisional Canal-officer of the division or sub-division of the canal from which the water course is to be supplied, requesting such officer to construct or improve a water-course at the cost of the applicants.

Contents of application. The application shall state the works to be undertaken, their approximate estimated cost, or the amount which the applicants are willing to pay for the same, or whether they engage to pay the actual cost as settled by the Divisional Canal-officer, and how the payment is to be made.

Liability of applicants for cost of works. When the assent of the Superintending Canal-officer is given to such application, all the applicants shall, after the application has been duly attested before the Collector, be jointly and severally liable for the cost of such works to the extent mentioned therein.

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Recovery of amount due. Any amount becoming due under the terms of such application, and not paid to the Divisional Canal-officer, or the person authorised by him to receive the same, on or before the date on which it becomes due, shall, on the demand of such officer, be recoverable by the Collector as if it were an arrear of land-revenue.

17. Government to provide means of crossing canals. There shall be provided, at the cost of [1][the Provincial Government], suitable means of crossing canals constructed or maintained at the cost of [1][the Provincial Government], at such places as the [3][Provincial Government] thinks necessary for the reasonable convenience of the inhabitants of the adjacent lands.

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[1]Subs. by A. O., 1937, for "L.G.".
See now the Land Acquisition Act, 1894 (1 of 1894) s. 35.
[2]Subs. by Ord XXVII of 1981, s.5 and Sch IV (only to the extent of Islamabad Capital Territory).
[3]Subs. by A. O., 1937, for "L.G.".

On receiving a statement in writing, signed by not less than five of the owners of such lands, to the effect that suitable crossings have not been provided on any canal, the Collector shall cause enquiry to be made into the circumstances of the case, and if he thinks that the statement is established, he shall report his opinion thereon for the consideration of the [1][Provincial Government] and the [1][Provincial Government] shall cause such measures in reference thereto to be taken as it thinks proper.

18. Persons using water course to construct works for passing water across roads, etc. The Divisional Canal-officer may issue an order to the persons using any water-course to construct suitable bridges, culverts or other works for the passage of the water of such watercourse across any public road, canal or drainage-channel in use before the said water-course was made, or to repair any such works.

Such order shall specify a reasonable period within which such construction or repairs shall be completed ;

If they fail, Canal-officer may construct. and if, after the receipt of such order, the persons to whom it is addressed do not, within the said period, construct or repair such works to the satisfaction of the said Canal-officer, he may, with the previous approval of the Superintending Canal-officer, himself construct or repair the same ;

And recover cost. and if the said persons do not, when so required, pay the cost of such construction or repairs as declared by the Divisional Canal officer, the amount shall, on the demand of the Divisional Canal-officer, be recoverable from them by the Collector as if it were an arrear of land revenue.

19. Adjustment of claims between persons jointly using water-course. If any person, jointly responsible with others for the construction or maintenance of a water-course, or jointly making of use of a water-course with others, neglects or refuses to pay his share of the cost of such construction or maintenance, or to execute his share of any work necessary for such construction or maintenance, the Divisional or Sub-divisional Canal-officer, on receiving an application in writing from any person injured by such neglect or refusal, shall serve notice on all the parties concerned that, on the expiration of a fortnight from the service, he will investigate the case ; and shall, on the expiration of that period, investigate the case accordingly, and make such order thereon as to him seems fit.

Such order shall be appealable to the [2]Commissioner, whose order thereon shall be final.

Recovery of amount found due. Any sum directed by such order to be paid within a specified period may, if not paid within such period, and if the order remains in force, be recovered by the Collector, from the person directed to pay the same, as if it were an arrear of land-revenue.

20. Supply of water through intervening water-course. Whenever application is made to a Divisional Canal-officer for a supply of water from a canal, and it appears to him expedient that such supply should be given and that it should be conveyed through some existing water-course, he shall give notice to the persons responsible for the maintenance of such water-course to show cause, on a day not less than fourteen days from the date of such notice, why the said supply should not be so conveyed: and, after making enquiry on such day, the Divisional Canal-officer shall determine whether and on what conditions the said supply shall be conveyed through such water-course.

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[1]Subs. by A. O., 1937, for "L.G.".

[2]In the N.W.F.P., for" Commissioner" read" Revenue Commissioner", *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 6(1) (f).

When such officer determines that a supply of canal-water may be conveyed through any water-course as aforesaid, his decision shall, when confirmed or modified by the Superintending Canal-officer, be binding on the applicant and also on the persons responsible for the maintenance of the said water-course.

Such applicant shall not be entitled to use such water-course until he has paid the expense of any alteration of such water-course necessary in order to his being supplied through it, and also such share of the first cost of such water-course as the Divisional or Superintending Canal-officer may determine.

Such applicant shall also be liable for his share of the cost of maintenance of such water-course so long as he uses it.

21. Application for construction of new water-course. Any person desiring the construction of a new water-course may apply in writing to the Divisional Canal-officer, stating—

(1) that he has endeavoured unsuccessfully to acquire, from the owners of the land through which he desires such water-course to pass, a right to occupy so much of the land as will be needed for such water-course ;

(2) that he desires the said Canal-officer, in his behalf and at his cost, to do all things necessary for acquiring such right;

(3) that he is able to defray all costs involved in acquiring such right and constructing such water-course.

22. Procedure of Canal-officer thereupon.—If the Divisional Canal-officer considers—

(1) that the construction of such water-course is expedient, and

(2) that the statements in the application are true,

he shall call upon the applicant to make such deposit as the Divisional Canal-officer considers necessary to defray the cost of the preliminary proceedings, and the amount of any compensation which he considers likely to become due under section 28 ;

and, upon such deposit being made, he shall cause enquiry to be made into the most suitable alignment for the said water-course, and shall mark out the land which, in his opinion, it will be necessary to occupy for the construction thereof, and shall forthwith publish a notice in every village through which the water -course is proposed to be taken, that so much of such land as belongs to such village has been so marked out, and shall send a copy of such notice to the Collector of every district in which any part of such land is situate.

23. Application for transfer of existing water-course. Any person desiring that an existing water-course should be transferred from its present owner to himself may apply in writing to the Divisional Canal-officer, stating—

(1) that he has endeavoured unsuccessfully to procure such transfer from the owner of such water-course ;

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(2) that he desires the said Canal-officer, in his behalf and at his cost, to do all things necessary for procuring such transfer;

(3) that he is able to defray the cost of such transfer.

Procedure thereupon. If the Divisional Canal-officer considers—

(a) that the said transfer is necessary for the better management of the irrigation from such water-course, and

(b) that the statements in the application are true,

he shall call upon the applicant to make such deposit as the Divisional Canal-officer considers necessary to defray the cost of the preliminary proceedings, and the amount of any compensation that may become due under the provisions of section 28 in respect of such transfer ;

and upon such deposit being made, he shall publish a notice of the application in every village, and shall send a copy of the notice to the Collector of every district through which such water-course passes.

24. Objections to construction or transfer applied for. Within thirty days from the publication of a notice under section 22 or section 23, as the case may be, any person interested in the land or water-course to which the notice refers may apply to the Collector by petition, stating his objection to the construction or transfer for which application has been made.

The Collector may either reject the petition or may proceed to inquire into the validity of the objection, giving previous notice to the Divisional Canal-officer of the place and time at which such inquiry will be held.

The Collector shall record in writing all orders passed by him under this section and the grounds thereof.

25. When applicant may be placed in occupation. If no such objection is made, or (where such objection is made) if the Collector over-rules it, he shall give notice to the Divisional Canal-officer to that effect, and shall proceed forthwith to place the said applicant in occupation of the land marked out or of the water-course to be transferred, as the case may be.

26. Procedure when objection is held valid. If the Collector considers any objection made as aforesaid to be valid he shall inform the Divisional Canal-officer accordingly ; and, if such officer sees fit, he may, in the case of an application under section 21, alter the boundaries of the land so marked out, and may give fresh notice under section 22; and the procedure hereinbefore provided shall be applicable to such notice, and the Collector shall thereupon proceed as before provided.

27. Procedure when Canal-officer disagrees with Collector. If the Canal-officer disagrees with the Collector, the matter shall be referred for decision to the [1]Commissioner.

Such decision shall be final, and the Collector, if he is so directed by such decision, shall, subject to the provisions of section 28, cause the said applicant to be placed in occupation of the land so marked out or of the water-course to be transferred, as the case may be.

[1]In the N.W.F.P. for "Commissioner" read "Revenue Commissioner" *see* the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 6(1) (f).

28. Expenses to be paid by applicant before receiving occupation. No such applicant shall be placed in occupation of such land or water-course until he has paid to the person named by the Collector such amount as the Collector determines to be due as compensation for the land or water-course so occupied or transferred, and for any damage caused by the marking out or occupation of such land, together with all expenses incidental to such occupation or transfer.

Procedure in fixing compensation. In determining the compensation to be made under section the Collector shall proceed under the provisions of the [1][Land Acquisition Act, 1894 (1 of 1894)] ; but he may, if the person to be compensated desires, award such compensation in the form of a rent-charge payable in respect of the land or water-course occupied or transferred.

Recovery of compensation and expenses. If such compensation and expenses are not paid when demanded by the person entitled to receive the same, the amount may be recovered by the Collector as if it were an arrear of land-revenue, and shall, when recovered, be paid by him to the person entitled to receive the same.

29. Conditions binding on applicant placed in occupation. When any such applicant is placed in occupation of land or of a water-course as aforesaid, the following rules and conditions shall be binding on him and his representative in interest :

First.— All works necessary for the passage across such water-course, or water-courses, existing previous to its construction and of the drainage intercepted by it, and for affording proper communications across it for the convenience of the neighboring lands, shall be constructed by the applicant, and be maintained by him or his representative in interest to the satisfaction of the Divisional Canal-officer.

Second.— Land occupied for a water-course under the provisions of section 22 shall be used only for the purpose of such water-course.

Third.— The proposed water-course shall be completed to the satisfaction of the Divisional Canal-officer within one year after the applicant is placed in occupation of the land.

In cases in which land is occupied or a water-course is transferred on the terms of a rent-charge.

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Fourth.— The applicant or his representative in interest shall, so long as he occupies such land or water-course, pay rent for the same at such rate and on such days as are determined by the Collector when the applicant is placed in occupation.

Fifth.— If the right to occupy the land cease owing to a breach of any of these rules, the liability to pay the said rent shall continue until the applicant or his representative in interest has restored the land to its original condition, or until he has paid, by way of compensation for any injury done to the said land, such amount and to such persons as the Collector determines.

Sixth.— The Collector may, on the application of the person entitled to receive such rent or compensation, determine the amount of rent due or assess the amount of such compensation ; and, if any such rent or compensation be not paid by the applicant or his representative in interest, the Collector may recover the amount, with interest thereon at the rate of six per cent. per annum from the date on which it became due, as if it were an arrear of land-revenue, and shall pay the same, when recovered, to the person to whom it is due.

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[1]Subs. by Ord. XXVII of 1981, s. 5 and Sch. IV (only to the extent of Islamabad Capital Territory).

If any of the rules and conditions prescribed by this section are not complied with,

or if any water-course constructed or transferred under this Act is disused for three years continuously,

the right of the applicant, or of his representative in interest, to occupy such land or water-course shall cease absolutely.

30. Procedure applicable to occupation for extensions and alterations.—The procedure hereinbefore provided for the occupation of land for the construction of a water-course shall be applicable to the occupation of land for any extension or alteration of a water-course, and for the deposit of soil from water-course clearances.

PART IV
OF THE SUPPLY OF WATER

31. In absence of written contract, water-supply to be subject to rules. In the absence of a written contract, or so far as any such contract does not extend, every supply of canal-water shall be deemed to be given at the rates and subject to the conditions prescribed by the rules to be made by the [1][Provincial Government] in respect thereof.

32. Conditions as to. Such contracts and rules must be consistent with the following conditions :—

(a) power to stop water supply; (a) The Divisional Canal-officer may not stop the supply of water to any water-course, or to any person, except in the following cases :—

(1) whenever and so long as it is necessary to stop such supply for the purpose of executing any work ordered by competent authority and with the previous sanction of the [1][Provincial Government];

(2) whenever and so long as any water-course is not maintained in such proper customary repair as to prevent the wasteful escape of water therefrom;

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(3) within periods fixed from time to time by the Divisional Canal-officer :

(b) Claims to compensation in case of failure or stoppage of supply; No claim shall be made against [2][the Provincial Government] for compensation in respect of loss caused by the failure or stoppage of the water in a canal, by reason of any cause beyond the control of [2][the Provincial Government] or of any repairs, alterations or additions to the canal, or of any measures taken for regulating the proper flow of water therein, or for maintaining the established course of irrigation which the Divisional Canal-officer considers necessary; but the person suffering such loss may claim such remission of the ordinary charges payable for the use of the water as is authorised by the [1][Provincial Government] :

(c) Claims on account of interruption from other causes; If the supply of water to any land irrigated from a canal be interrupted otherwise than in the manner described in the last preceding clause, the occupier or owner of such land may present a petition for compensation to the Collector for any loss arising from such interruption, and the Collector may award to the petitioner reasonable compensation for such loss :

[1]Subs. by A. O., 1937, for "L. G.".
[2]Subs. *ibid.*, for "the Govt.".

(d) Duration of supply; When the water of a canal is supplied for the irrigation of a single crop, the permission to use such water shall be held to continue only until that crop comes to maturity, and to apply only to that crop ; but, if it be supplied for irrigating two or more crops to be raised on the same land within the year, such permission shall be held to continue for one year from the commencement of the irrigation, and to apply to such crops only as are matured within that year :

(e) Sale of subletting of right to use canal water ; Unless with the permission of the Superintending Canal-officer, no person entitled to use the water of any canal, or any work, building or land appertaining to any canal, shall sell or sublet or otherwise transfer his right to such use :

Provided that the former part of this clause shall not apply to the use by a cultivating tenant of water supplied by the owner of a water-course for the irrigation of the land held by such tenant:

Transfer, with land, of contracts for water. But all contracts made between [1][he Provincial Government] and the owner or occupier of any immoveable property, as to the supply of canal-water to such property, shall be transferable therewith, and shall be presumed to have been so transferred whenever a transfer of such property takes place :

(f) No right acquired by user. No right to the use of the water of a canal shall be, or be deemed to have been, acquired under the [2]Indian Limitation Act, 1877(XV of 1877), Part IV, nor shall [1][the Provincial Government] be bound to supply any person with water except in accordance with the terms of a contract in writing.

PART V
OF WATER-RATES

33. Liability when person using unauthorisedly cannot be identified. If water supplied through a water-course be used in an unauthorized manner, and if the person by whose act or neglect such use has occurred cannot be identified,

the person on whose land such water has flowed if such land has derived benefit therefrom,

or if such person cannot be identified or if such land has not derived benefit therefrom, all the persons chargeable in respect of the water supplied through such water-course, shall be liable, or jointly liable, as the case may be, to the charges made for such use.

34. Liability when water runs to waste. If water supplied through a water-course be suffered to run to waste, and if, after enquiry by the Divisional Canal-officer, the person through whose act or neglect such water was suffered to run to waste cannot be discovered, all the persons chargeable in respect of the water supplied through such water-course shall be jointly liable for the charges made in respect of the water so wasted.

35. Charges recoverable in addition to penalties. All charges for the unauthorised use or for waste of water may be recovered in addition to any penalties incurred on account of such use or waste.

Decision of questions under sections 33 and 34. All questions under section 33 or section 34 shall be decided by the Divisional Canal-officer, subject to an appeal to the Head Revenue-officer of the district, or such other appeal as may be provided under section 75.

[1]Subs. by A. O., 1937, for "Govt.".
[2]*See* now the Limitation Act, 1908 (9 of 1908).

36. Charge on occupier for water, how determined. The rates to be charged for canal-water supplied for purposes of irrigation to the occupiers of land shall be determined by the rules[1] to be made by the [2][Provincial Government], and such occupiers as accept the water shall pay for it accordingly.

"Occupier's rate". A rate so charged shall be called the "occupier's rate".

[3][The rules[1] hereinbefore referred to may prescribe and determine what persons or classes of persons are to be deemed to be occupiers for the purposes of this section, and may also determine the several liabilities, in respect of the payment of the occupier's rate, of tenants and of persons to whom tenants may have sublet their lands or of proprietors and of persons to whom proprietors may have let the lands held by them, in cultivating occupancy.]

37. "Owner's rate". In addition to the occupier's rate, a rate to be called the "owner's rate" may be imposed, according to rules[4] to be made by the [2][Provincial Government], on the owners of canal irrigated lands, in respect of the benefit which they derive from such irrigation.

38. Amount of owner's rate. The owner's rate shall not exceed the sum which, under the rules for the time being in force for the assessment of land-revenue, might be assessed on such land on account of the increase in the annual value or produce thereof caused by the canal-irrigation. And, for the purpose of this section only, land which is permanently settled or held free of revenue shall be considered as though it were temporary settled and liable to payment of revenue.

39. Owner's rate, when not chargeable. No owner's rate shall be chargeable either on the owner or occupier of land temporarily assessed to pay land-revenue at irrigation-rates, during the currency of such assessment.

[5]**40. When occupier is to pay both owner's rate and occupier's rate.** If such land is occupied by the owner,

or if it is occupied by a tenant whose rent is not liable to enhancement on the ground that the value of the produce of the land or the productive powers of the land has or have been increased by irrigation, such owner or tenant shall pay the owner's rate as well as the occupier's rate.

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[5]**41. Power to make rules for apportioning owner's rate.** In the case of a tenant with a right of occupancy, the [2][Provincial Government] shall have power to make rules for dividing the owner's rate between such tenant and his landlord, proportionately to the extent of the beneficial interest of each in the Land.

[5]**42. When owner is to pay owner's rate.** If the owner of the land is not the occupier, but has power to enhance the rent of the occupier on the ground that the value of the produce or the productive powers of the land has or have been increased by irrigation ;

or if, when the amount of a rent was fixed, the land was irrigated from the canal,

the owner shall pay the owner's rate.

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[1]For instance of such notifications, *see* Punjab Gazette, 1903, Pt. I, pp. 223 and 224.
[2]Subs. by A. O., 1937, for "L.G.".
[3]Ins. by the Northern India Canal and Drainage (Amdt.) Act, 1899 (16 of 1899), s. 2.
[4]For rules for assessing owner's rates, *see* the Punjab R. and O.
[5]Ss. 40 to 43 have been rep. in the Punjab by the Punjab Tenancy Act, 1887 (16 of 1887), s. 3 and Sch.

[1]**43. Effect of introduction of canal irrigation on landlord's right to enhance.** If a revision of settlement is a ground for entertaining a suit for the enhancement of rent, the introduction of canal irrigation into any land shall have the same effect on the landlord's right to re-enhance the rent of a tenant with a right of occupancy of such land, as if a revision of settlement had taken place, under which the revenue payable in respect of such land had been increased.

44. Water-rate by whom payable when charged on land held by several owners. Where a water-rate is charged on land held by several joint owners, it shall be payable by the manager or other person who receives the rents or profits of such land, and may be deducted by him from such rents or profits before division, or may be recovered by him from the persons liable to such rate in the manner customary in the recovery of other charges on such rents or profits.

Recovery of charges

45. Certified dues recoverable as land-revenue. Any sum lawfully due under this Part, and certified by the Divisional Canal-officer to be so due, which remains unpaid after the day on which it becomes due, shall be recoverable by the Collector from the person liable for the same as if it were an arrear of land-revenue.

46. Power to contract for collection of canal-dues. The Divisional Canal-officer or the Collector may enter into an agreement with any person for the collection and payment to [2][the Provincial Government] by such person of any sum payable under this Act by a third party.

When such agreement has been made, such person may recover such sum by suit as though it were a debt due to him, or an arrear of rent due to him on account of the land, work or building in respect of which such sum is payable, or for or in which the canal-water shall have been supplied or used.

If such person makes default in the payment of any sum collected by him under this section, such sum may be recovered from him by the Collector under section 45; and, if such sum or any part of it be still due by the said third party, the sum or part so due may be recovered in like manner by the Collector from such third party.

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47. Lambardars may be required to collect canal-dues. The Collector may require the lambardar, or person under engagement to pay the land-revenue of any estate, to collect and pay any sums payable under this Act by a third party, in respect of any land or water in such estate.

Such sums shall be recoverable by the Collector as if they were arrears of land-revenue due in respect of the defaulter's share in such estate ;

and for the purpose of collecting such sums from the subordinate zemindars, raiyats, [3][tenants or sub-tenants], such lambardar or person may exercise the powers, and shall be subject to the rules, laid down in the law for the time being in force in respect to the collection by him of the rents of land or of shares of land-revenue.

The [4][Provincial Government] shall provide—

[1]Ss. 40 to 43 have been rep. in the Punjab by the Punjab Tenancy Act, 1887 (16 of 1887), s. 3 and Sch.
[2]Subs. by A. O., 1937, for "the Govt.".
[3]Subs. by the Northern India Canal and Drainage (Amdt.) Act, 1899 (16 of 1899), s. 3, for" or "tenants".
[4]Subs. by A. O., 1937, for "L. G. ".

(a) for remunerating persons collecting sums under this section ; or

(b) for indemnifying them against expenses properly incurred by them in such collection ; or

(c) for both such purposes.

48. Fines excluded from sections 45,46,47. Nothing in sections 45, 46 or 47 applies to fines.

PART VI
OF CANAL-NAVIGATION

49. Detainer of vessels violating rules. Any vessel entering or navigating any canal contrary to the rules made in that behalf by the [1][Provincial Government], or so as to cause danger to the canal or the other vessels therein, may be removed or detained, or both removed and detained, by the Divisional Canal-officer, or by any other person duly authorised in this behalf.

Liability of owners of vessels causing damage. The owner of any vessel causing damage to a canal, or removed or detained under this section, shall be liable to pay to [2][the Provincial Government] such sum as the Divisional Canal-officer, with the approval of the Superintending Canal-officer, determines to be necessary to defray the expenses of repairing such damage or of such removal or detention, as the case may be.

50. Recovery of fines for offences in navigating canals. Any fine imposed under this Act upon the owner of any vessel, or the servant or agent of such owner or other person in charge of any vessel, for any offence in respect of the navigation of such vessel, may be recovered either in the manner prescribed by the [3][Code of Criminal Procedure, 1898 (Act V of 1898)] or, if the Magistrate imposing the fine so directs, as though it were a charge due in respect of such vessel.

51. Power to seize and detain vessel on failure to pay charges. If any charge due under the provisions of this Part in respect of any vessel is not paid on demand to the person authorized to collect the same, the Divisional Canal-officer may seize and detain such vessel and the furniture thereof, until the charge so due, together with all expenses and additional charges arising from such seizure and detention, is paid in full.

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52. Power to seize cargo or goods, if charges due thereon are not paid. If any charge due under the provisions of this Part in respect of any cargo or goods carried in a Government vessel on a canal, or stored on or in lands or warehouses occupied for the purposes of a canal is not paid on demand to the person authorised to collect the same, the Divisional Canal-officer may seize such cargo or goods and detain them until the charge so due, together with all expenses and additional charges arising from such seizure and detention, is paid in full.

53. Procedure for recovery of such charges after seizure. Within a reasonable time after any seizure under section 51 or section 52, the said Canal-officer shall give notice to the owner or person in charge of the property seized that it, or such portion of it as may be necessary, will, on a day to be named in the notice, but not sooner than fifteen days from the date of the notice, be sold in satisfaction of the claim on account of which such property was seized, unless the claim be discharged before the day so named.

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[1]Subs. by A. O., 1937, for "L. G. ".
[2]Subs. *ibid.*, for "the Govt.".
[3]Subs. by Ord. XXVII of 1981, s.5 and Sch IV (only to the extent of Islamabad Capital Territory).

And, if such claim be not so discharged, the said Canal-officer may, on such day, sell the property seized or such part thereof as may be necessary to yield the amount due, together with the expenses of such seizure and sale :

Provided that no greater part of the furniture of any vessel or of any cargo or goods shall be so sold than shall, as nearly as may be, suffice to cover the amount due in respect of such vessel, cargo or goods.

The residue of such furniture, cargo or goods, and of the proceeds of the sale, shall be made over to the owner or person in charge of the property seized.

54. Procedure in respect of vessels abandoned and goods unclaimed. If any vessel be found abandoned in a canal, or any cargo or goods carried in a Government vessel on a canal, or stored on or, in lands or warehouses occupied for the purposes of a canal, be left unclaimed for a period of two months, the Divisional Canal-officer may take possession of the same.

The officer so taking possession may publish a notice that, if such vessel and its contents, or such cargo or goods, are not claimed previously to a day to be named in the notice, not sooner than thirty days from the date of such notice, he will sell the same ; and, if such vessel, contents, cargo or goods be not so claimed, he may, at any time after the day named in the notice, proceed to sell the same.

Disposal of proceeds of sale. The said vessel and its contents, and the said cargo or goods if unsold, or, if a sale has taken place, the proceeds of the sale, after paying all tolls, charges and expenses incurred by the Divisional Canal-officer on account of the taking possession and sale, shall be made over to the owner of the same, when his ownership is established to the satisfaction of the Divisional Canal-officer.

If the Divisional Canal-officer is doubtful to whom such property or proceeds should be made over, he may direct the property to be sold as aforesaid, and the proceeds to be paid into the district treasury, there to be held until the right thereto be decided by a Court of competent jurisdiction.

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PART VII
OF DRAINAGE

55. Power to prohibit obstructions or order their removal. Whenever it appears to the [1][Provincial Government] that injury to any land or the public health or public convenience has arisen or may arise from the obstruction of any river, stream or drainage-channel, such Government may, by [2]notification published in the official Gazette, prohibit, within limits to be defined in such notification, the formation of any obstruction, or may, within such limits, order the removal or other modification of such obstruction.

Thereupon so much of the said river, stream or drainage channel as is comprised within such limits shall be held to be a drainage-work as defined in section 3.

56. Power to remove obstructions after prohibition. The Divisional Canal-officer, or other person authorised by the [1][Provincial Government] in that behalf, may, after such publication issue an order to the person causing or having control over any such obstruction to remove or modify the same within a time to be fixed in the order.

[1]Subs. by A. O., 1937, for" L. G. ".
[2]For such notifications, *see* the Punjab R. and O.

If, within the time so fixed, such person does not comply with the order, the said Canal-officer may himself remove or modify the obstruction ; and if the person to whom the order was issued does not, when called upon, pay the expenses involved in such removal or modification, such expenses shall be recoverable by the Collector from him or his representative in interest as an arrear of land-revenue.

57. Preparation of schemes for works of improvement. Whenever it appears to the [1][Provincial Government] that any drainage-works are necessary for the improvement of any lands, or for the proper cultivation or irrigation thereof,

or that protection from floods or other accumulations of water, or from erosion by a river, is required for any lands,

the [1][Provincial Government] may cause a scheme for such drainage-works to be drawn up and published, together with an estimate of its cost and a statement of the proportion of such cost which [2][the Provincial Government] proposes to defray, and a schedule of the lands which it is proposed to make chargeable in respect of the scheme.

58. Powers of persons employed on such schemes.—The persons authorised by the [1][Provincial Government] to draw up such scheme may exercise all or any of the powers conferred on the Canal-officers by section 14.

59. Rate on lands benefited by works. An annual rate, in respect of such scheme, may be charged, according to rules to be made by the [1][Provincial Government], on the owners of all lands which shall, in the manner prescribed by such rules, be determined to be so chargeable.

Such rate shall be fixed, as nearly as possible, so as not to exceed either of the following limits :—

(1) six per cent. per annum on the first cost of the said works, adding thereto the estimated yearly cost of the maintenance and supervision of the same, and deducting therefrom the estimated income, if any, derived from the works, excluding the said rate :

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(2) in the case of agricultural land, the sum which under the rules then in force for the assessment of land-revenue, might be assessed on such land on account of the increase of the annual value or produce thereof caused by the drainage-work.

Such rate may be varied from time to time, within such maximum, by the [1][Provincial Government].

So far as any defect to be remedied is due to any canal, water-course, road or other work or obstruction, constructed or caused by the [1][Provincial Government] or by any person, a proportionate share of the cost of the drainage-works required for the remedy of the said defect shall be borne by such Government or such person, as the case may be.

60. Recovery of rate. Any such drainage-rate may be collected and recovered in manner provided by sections 45, 46 and 47 for the collection and recovery of water-rates.

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[1]Subs. by A. O., 1937, for" L. G. ".
[2]Subs. *ibid.*, for "the Govt.".

61. Disposal of claims to compensation. Whenever, in pursuance of a notification made under section 55, any obstruction is removed or modified,

or whenever any drainage-work is carried out under section 57, all claims for compensation on account of any loss consequent on the removal or modification of the said obstruction or the construction of such work may be made before the Collector, and he shall deal with the same in the manner provided in section 10.

62. Limitation of such claims. No such claim shall be entertained after the expiration of one year from the occurrence of the loss complained of, unless the Collector is satisfied that the claimant had sufficient cause for not making the claim within such period.

PART VIII
OF OBTAINING LABOUR FOR CANALS AND DRAINAGE-WORKS

63. Definition of "labourer".—For the purposes referred to in this Part, the word "labourer" includes persons who exercise any handicraft specified in rules to be made in that behalf by the [1][Provincial Government].

64. Power to prescribe number of labourers to be supplied by persons benefited by canal.—In any district in which a canal or drainage-work is constructed, maintained or projected by [2][the Provincial Government], the [1][Provincial Government] may, if it thinks fit, direct the Collector—

(a) to ascertain the proprietors, sub-proprietors or farmers whose villages or estates are or will be in the judgment of the Collector, benefited by such canal or drainage work, and

(b) to set down in a list, having due regard to the circumstances of the districts and of the several proprietors, sub-proprietors or farmers, the number of 1abourers which shall be furnished by any of the said persons, jointly or severally, from any such village or estate, for employment on any such canal or drainage-work when required as hereinafter provided.

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The Collector may, from time to time, add to or alter such list or any part thereof.

65. Procedure for obtaining labour for works urgently required.—Whenever it appears to a Divisional Canal-officer duly authorised by the [1][Provincial Government] that, unless some work is immediately executed, such serious damage will happen to any canal or drainage-work as to cause sudden and extensive public injury,

and that the labourers necessary for the proper execution thereof cannot be obtained in the ordinary manner within the time that can be allowed for the execution of such work so as to prevent such injury,

the said officer may require any person named in such list to furnish as many labourers (not exceeding the number which, according to the said list he is liable to supply) as to the said officer seems necessary for the immediate execution of such work.

Every requisition so made shall be in writing, and shall state—

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[1]Subs. by A. O., 1937, for "L. G.".
[2]Subs. *ibid.*, for "Govt.".

(a) the nature and locality of the work to be done ;

(b) the number of labourers to be supplied by the person upon whom the requisition is made ; and

(c) the approximate time for which and the day on which the labourers will be required ;

and a copy thereof shall be immediately sent to the Superintending Canal-officer for the information of the [1][Provincial Government].

The [1][Provincial Government] shall fix, and may from time to time alter the rates to be paid to any such labourers :

Provided that such rates shall exceed the highest rates for the time being paid in the neighbourhood for similar work.

In the case of every such labourer, the payment shall continue for the whole period during which he is, in consequence of the provisions of this Part, prevented from following his ordinary occupation.

[2]The [1][Provincial Government] may [3]* * * direct that the provisions of this Part shall apply, either permanently or temporarily (as the case may be), to any district or part of a district for the purpose of effecting necessary annual silt-clearances, or to prevent the proper operation of canal drainage-work being stopped or so much interfered with as to stop the established course of irrigation or drainage.

66. Liability of labourers under requisition.—When any requisition has been made on any person named in the said list, every labourer ordinarily resident within the village or estate of such person shall be liable to supply, and to continue to supply, his labour, for the purposes aforesaid.

PART IX
OF JURISDICTION

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67. Jurisdiction under this Act of Civil Courts.—Except where herein otherwise provided, all claims against [1][the Provincial Government] in respect of anything done under this Act may be tried by the Civil Courts ; but no such Court shall in any case pass an order as to the supply of canal-water to any crop sown or growing at the time of such order.

68. Settlement of differences as to mutual rights and liabilities of persons interested in water-course.—Whenever a difference arises between two or more persons in regard to their mutual rights or liabilities in respect of the use, construction or maintenance of a water-course, any such person may apply in writing to the Divisional Canal-officer stating the matter in dispute. Such officer shall thereupon give notice to the other persons interested that, on a day to be named in such notice, he will proceed to inquire into the said matter. And, after such inquiry, he shall pass his order thereon, unless he transfers (as he is hereby empowered to do) the matter to the Collector, who shall thereupon inquire into and pass his order on the said matter.

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[1]Subs. by A.O., 1937, for "L. G.".
[2]The paragraph has been repealed in the N.W.F.P. by N.W.F.P. Act, 3 of 1938.
[3]The words "with the previous sanction of the G.G. in C." rep. by the Decentralization Act, 1914 (4 of 1914).

Such order shall be final as to the use or distribution of water for any crop sown or growing at the time when such order is made, and shall thereafter remain in force until set aside by the decree of a Civil Court.

69. Power to summon and examine witnesses.—Any officer empowered under this Act to conduct any inquiry may exercise all such powers connected with the summoning and examining of witnesses as are conferred on Civil Courts by the [1][Code of Civil Procedure, 1908 (Act V of 1908)], and every such inquiry shall be deemed a judicial proceeding.

PART X
OF OFFENCES AND PENALTIES

70. Offences under Act.—Whoever, without proper authority and voluntarily, does any of the acts following, that is to say :—

(1) damages, alters, enlarges or obstructs any canal or drainage-work ;

(2) interferes with, increases or diminishes the supply of water in, or the flow of water from, through, over or under, any canal or drainage-work ;

(3) interferes with or alters the flow of water in any river or stream, so as to endanger, damage or render less useful any canal or drainage-work ;

(4) being responsible for the maintenance of a water course, or using a water-course, neglects to take proper precautions for the prevention of waste of the water thereof, or interferes with the authorised distribution of the water therefrom, or uses such water in an unauthorised manner ;

(5) corrupts or fouls the water of any canal so as to render it less fit for the purposes for which it is ordinarily used ;

(6) causes any vessel to enter or navigate any canal contrary to the rules for the time being prescribed by the [2][Provincial Government] for entering or navigating such canal ;

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(7) while navigating on any canal, neglects to take proper precautions for the safety of the canal and of vessels thereon ;

(8) being liable to furnish labourers under Part VIII of this Act, fails without reasonable cause, to supply or to assist in supplying the labourers required of him ;

(9) being a labourer liable to supply his labour under Part VIII of this Act, neglects, without reasonable cause, so to supply, and to continue to supply, his labour ;

(10) destroys or moves any level-mark or water-gauge fixed by the authority of a public servant ;

(11) passes, or causes animals or vehicles to pass, on or across any of the works, banks or channels of a canal or drainage-work contrary to rules made under this Act, after he has been desired to desist therefrom;

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[1]Subs. by Ord XXVII of 1981, s. 5 and Sch IV (only to the extent of Islamabad Capital Territory).
[2]Subs. by A. O., 1937, for "Govt.".

(12) violates any rule made under this Act, for breach whereof a penalty may be incurred,

Panalty. shall be liable, on conviction before a Magistrate of such class as the [1][Provincial Government] directs [2]in this behalf, to a fine not exceeding fifty rupees, or to imprisonment not exceeding one month, or to both.

71. Saving of prosecution under other laws.—Nothing herein contained shall prevent any person from being prosecuted under any other law for any offence punishable under this Act :

Provided that no person shall be punished twice for the same offence.

72. Compensation to person injured.—Whenever any person is fined for an offence under this Act, the Magistrate may direct that the whole or any part of such fine may be paid by way of compensation to the person injured by such offence.

73. Power to arrest without warrant.—Any person in charge of or employed upon any canal or drainage-work may remove from the lands or buildings belonging thereto, or may take into custody without a warrant and take forthwith before a Magistrate or to the nearest police-station, to be dealt with according to law, any person who, within his view, commits any of the following offences:—

(1) wilfully damages or obstructs any canal or drainage-work ;

(2) without proper authority interferes with the supply or flow of water in or from any canal or drainage-work, or in any river or stream, so as to endanger, damage or render less useful any canal or drainage-work.

74. Definition of "canal".—In this Part the word "canal" shall (unless there be something repugnant in the subject or context) be deemed to include also all lands occupied by [3][the Provincial Government] for the purposes of canals, and all buildings, machinery, fences, gates and other erections, trees, crops, plantations or other produce occupied by or belonging to [3][the Provincial Government] upon such lands.

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PART XI
OF SUBSIDIARY RULES

75. Power to make, alter and cancel rules.—The [1][Provincial Government] may, from time to time [4]* * * make rules[5] to regulate the following matters :—

(1) the proceedings of any officer who, under any provision of this Act, is required or empowered to take action in any matter ;

(2) the cases in which, and the officers to whom, and the conditions subject to which, orders and decisions given under any provision of this Act, and not expressly provided for as regards appeal, shall be appealable;

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[1]Subs. by A. O., 1937, for "L.G.".
[2]For notification empowering Magistrates of the second class to try offences under this section, *see* Punjab Local Rules and Orders.
[3]Subs. by A. O., 1937, for "L. G.".
[4]The words "subject to the control of the G.G. in C." rep. by the Devolution Act, 1920 (38 of 1920).
[5]For such rules, *see* the Punjab R. and O.

(3) the persons by whom, [1][and] the time, place or manner at or in which anything for the doing of which provision is made under this Act, shall be done;

(4) the amount of any charge made under this Act; and

(5) generally to carry out the provisions of this Act.

The [2][Provincial Government] may from time to time [3]* * * alter or cancel any rules so made.

Publication of rules. Such rules, alterations and cancelments shall be published in the [4][official Gazette], and shall thereupon have the force of law.

SCHEDULE

[*Rep. by the Repealing Act.* 1873 (*XII of* 1873) *s.* 1 *and Sch., Pt. II.*]

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Date: 16-09-2024

[1]Ins. by the Amending Act, 1891 (12 of 1891).
[2]Subs. by A. O., 1937, for "L.G.".
[3]The words "subject to the like control" rep. by Act 38 of 1920.
[4]Subs. by A. O., 1937, for "local official Gazette".

THE CANTONMENTS (REQUISITIONING OF IMMOVEABLE PROPERTY) ORDINANCE, 1948

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THE CANTONMENTS (REQUISITIONING OF IMMOVEABLE PROPERTY) ORDINANCE, 1948

ORDINANCE NO. IV OF 1948

[28th January, 1948]

WHEREAS an emergency has arisen which makes it necessary to requisition immoveable property within the limits of Cantonments for purposes other than of the Cantonment Boards.

NOW, THEREFORE, in exercise of the powers conferred by section 42 of the Government of India Act, 1935 (26 Geo. 5.,c.2.) [as adapted by the Pakistan (Provisional Constitution) Order, 1947 (O. 22 of 1947)] and of all other powers enabling him in that behalf, the Governor-General is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance may be cited as "The Cantonments (Requisitioning of Immoveable Property) Ordinance, 1948".

(2) It shall come into force at once and shall remain in force till it is withdrawn or ceases to operate.

(3) It extends to all the Cantonments excluding places of religious worship therein, in the territories of Pakistan.

2..—(1) If in the opinion of the [1][Federal Government] it is necessary or expedient so to do, the [1][Federal Government] may by order in writing requisition any immoveable property (excluding the places of religious worship) and may make such further orders as appear to it to be necessary or expedient in connection with requisitioning.

(2) Where the [1][Federal Government] has requisitioned any immoveable property under the preceding sub-section it may use or deal with the property in such manner as it thinks fit.

2A. [2][Omitted]

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3. —(1) Where any property requisitioned under section 2 is to be released from requisition, the [1][Federal Government] may after making such inquiry, if any, as it considers necessary, specify by order in writing, the person to whom possession of the property shall be given.

(2) The delivery of possession of the property to the person specified in an order made under sub-section (1) shall be a full discharge of the Government from all liability in respect of such delivery but shall not prejudice any rights in respect of the property which any other person may be entitled by due process of Law to enforce against the person to whom possession of the property is so delivered.

[1]Subs. by F.A.O., 1975.
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and Sch II.

(3) Where the person to whom possession of any property is to be given cannot be found and has no agent or other person empowered to accept delivery on his behalf, the Government shall cause a notice declaring that the property is released from requisitioning to be published in the official Gazette and to be affixed on some conspicuous part of the property.

(4) When a notice referred to under sub-section (3) is published in the official Gazette, the property specified in the notice shall cease to be subject to requisitioning on and from the date of such publication and shall be deemed to have been delivered to the person entitled to the possession thereof, and the Government shall not be liable for any compensation or other claim in respect of the property for any period after the date of the said notification.

4. Where any immoveable property is requisitioned under this Ordinance, there shall be paid compensation the amount of which shall be determined in the manner and in accordance with the principles hereinafter set out, that is to say—

(a) Where the amount of compensation can be fixed by agreement it shall be paid in accordance with such agreement.

(b) Where no such agreement can be reached the [1][Federal Government] shall under the rules to be framed by it, under this clause fix a reasonable amount of compensation. The rules so framed specifying the principles on which and the manner in which compensation is to be determined shall be notified in the official Gazette.

(c) The compensation fixed by the [1][Federal Government] under clause (b) above shall be final and no suit or appeal shall lie against Government before any court of law in that behalf.

5.—(1) The [1][Federal Government] may, with a view to carrying out the purposes of this Ordinance, by order require any person to furnish to such authority as may be specified in the order such information in his possession relating to any immoveable property as may be so specified.

(2) If any person fails to furnish the information required by order under sub-section (1) or furnishes any information which is false and which he either knows or has reason to believe to be false or does not believe to be true shall be punishable with imprisonment with a term which may extend to six months or with fine up to five hundred rupees or with both.

[2]**[5A**. The [1][Federal Government] may make rules for carrying out the purposes of this Ordinance.]

6. The [1][Federal Government] may take or cause to be taken such steps and use or caused to be used such force as may in the opinion of that Government be reasonably necessary for securing compliance with any order made by it under this Ordinance.

[1]Subs. by F.A.O., 1975.
[2] Ins. by Ordinance No. LVII of 1959, s.3.

7. The [1][Federal Government] may by order notified in the official Gazette, direct that any power conferred or any duty imposed on it by this Ordinance shall in such circumstances and under such conditions, if any, as may be specified in the direction be exercised or discharged by such officer as may be so specified.

8.—(1) No suit, prosecution or other legal proceedings shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Ordinance or any rules or order made thereunder.

(2) No suit or other legal proceedings shall lie against the Government for any damage caused or likely to be caused by anything in good faith done or intended to be done in pursuance of this Ordinance or any order made thereunder.

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RGN Date: 04-06-2024

[1]Subs. by F.A.O., 1975.

THE CANTONMENTS PURE FOOD ACT, 1966

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THE CANTONMENTS PURE FOOD ACT, 1966

ACT No. XVI of 1966

[*19th July, 1966*]

An Act to make provision for preventing the adulteration of food in cantonments.

WHEREAS it is expedient to make provision for preventing the adulteration of food in cantonments and for matters ancillary thereto ;

It is hereby enacted as follows :—

PART I

PRELIMINARY

1. Short title, extent and commencement.— (1) This Act may be called the Cantonments Pure Food Act, 1966.

(2) It extends to all the cantonments in Pakistan.

(3) It shall come into force at once.

2. Definition.— In this Act, unless there is anything repugnant in the subject or context,—

(1) "adulterated food" means an article of food—

(i) which is not of the nature, substance or quality which it purports or is represented to be, or

(ii) which contains any such extraneous substance as may affect injuriously the nature, substance or quality thereof, or

(iii) which is processed, mixed, coloured, powdered or coated with any other substance in contravention of the rules, or

(iv) any constituent of which has been wholly or in part abstracted so as to affect injuriously its nature, substance or quality, or

(v) which contains any poisonous or other ingredient which may render it injurious to health, or

(vi) the quality or purity of which does not conform to the prescribed standards, or

(vii) which, having been prepared, packed or kept under insanitary conditions, has been contaminated or become injurious to health and "adulteration" in relation to food, shall be construed accordingly ;

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(2) "banaspati" means such article of food resembling ghee as is prepared by hydrogenation of edible vegetable oil and contains no milk or animal fat;

(3) "butter" means an article of food derived exclusively from the milk of cow or buffalo, whether with or without salt or other prescribed preservative;

(4) "charbi" means an article of food which resembles ghee or banaspati, but contains animal fat other than milk fat ;

[1][(5) "Chemical Examiner" means the Chemical Examiner to the Provincial Government, and includes any other officer appointed by the Federal Government to be a Chemical Examiner for the purposes of this Act;]

(6) "cream" means that portion of the milk of cow or buffalo which is rich in fat and rises to the surface of milk on standing, or which has been separated by skimming or otherwise;

(7) "dahi" means the product obtained by lactic acid fermentation of milk ;

(8) "Director" means the Director of Military Lands and Cantonments ;

(9) "food" means any article used as food or drink for human consumption other than drugs or water, but not aerated water, and includes—

(i) any substance which is intended for use in the composition or preparation of food,

(ii) any flavouring matter or condiment,

(iii) any colouring matter intended for use in food, and

(iv) chewing gum and other products of like nature ;

Explanation I.—Water shall be deemed to be food if it is intended for use in the composition or preparation of food ;

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Explanation II.—An article shall not cease to be food by reason only that it is also capable of being used as a medicine ;

(10) "ghee" means ghee prepared exclusively from butter, cream or dahi ;

(11) "godown" means a place where articles of food are received or stored for sale or delivery to a customer or consignee and includes godowns of the railways and of the shipping or other transport agencies ;

(12) "Health Officer" means the Medical Officer or the Health Officer or the Assistant Health Officer of the Cantonment, and includes any other officer appointed by the [2][Federal Government] to be a Health Officer for the purposes of this Act ;

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[1]Subs. by F.A.O., 1975, Art. 2 and Sch., for cl.(5).
[2]Subs. by F.A.O., 1975, Art., 2 and Table, for "Central Government".

(13) "Inspector" means an Inspector appointed under section 15, and includes an *ex-officio* Inspector ;

(14) "local authority" means a Cantonment Board constituted under the Cantonments Act, 1924 (II of 1924);

(15) "margarine" means any food, whether mixed with butter or not, which resembles butter and is not milk-blended butter ;

(16) "milk" means the normal, clean and pure secretion obtained from the udders of a healthy cow, buffalo, goat or sheep whether boiled, pasteurized, homogenized or sterilized and includes standardized and toned milk ;

(17) "misbranded food" means an article of food—

(i) which is an imitation of, or a substitute for, or resembles in a manner likely to deceive, another article of food, and is sold or is intended to be sold under the name under which such other article is sold, or is not correctly labelled to indicate its true character, or

(ii) which is so coloured, flavoured, coated, powered or polished as to conceal the true nature thereof, or

(iii) which is contained in any package which, or the label of which, bears any statement, design or device regarding the ingredients or the substances contained therein, which is false or misleading in any material particular, or if the package is otherwise deceptive with respect to its contents, or

(iv) which is not properly packed and labelled in accordance with the rules ;

(18) "occupier" means the person who has control of the affairs of a factory, shop or godown and includes the manager or managing agent or any other person authorized to represent the occupier;

(19) "package" includes every article in which goods for carriage or for sale are cased, covered, enclosed, contained or packed ;

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(20) "pre-packed" means packed or made up in advance ready for retail sale in a wrapper or container ;

(21) "prescribed" means prescribed by rules ;

(22) "Public Analyst" means a Public Analyst appointed under section 17 ;

(23) "retail sale" means any sale to a person buying otherwise than for the purpose of re-sale ;

(24) "rules" means rules made under this Act ;

(25) "sale", in relation to food, means a transfer of ownership either by way of barter or in exchange for a price paid or promised or part paid or part promised ;

(26) "standardized milk" means milk which has been reduced to the prescribed level of milk fat by removal of fat ;

(27) "toned milk" means milk which has been standardized to the prescribed level of milk fat and solids not fat by addition of reconstituted milk solids ;

(28) "transit" includes all stages of transportation from the place of manufacture or other. source of origin to the consumer ; and

(29) "wholesale" means any sale other than retail sale.

PART II

GENERAL PROVISIONS

3. False warranty.— No person shall in respect of any food sold by him or given by him for sale to an agent give to the purchaser or the agent a false warranty in writing.

4. Prohibition of mixing, colouring, staining or powdering of food, etc.—(1) No person shall mix, colour, stain or powder or direct or permit any other person to mix, colour, stain or powder any food with any matter or ingredient—

(a) in contravention of the rules ; or

(b) so as to render the food injurious to health, with intent that the same may be sold in that state.

(2) No person shall keep or store for sale or sell or offer to sell any food so mixed, coloured, stained or powdered.

5. Prohibition of preparation, manufactured, sale, etc., of adulterated and other foods.— (1) No person shall, directly, or indirectly, himself or by any other person, prepare, manufacture, keep or store for sale, or sell or offer to sell,—

(i) any adulterated food;

(ii) any misbranded food ;

(iii) any article of food for the sale of which a licence is required otherwise than in accordance with the conditions of the licence ; or

(iv) any article of food in contravention of any other provision of this Act or the rules.

(2) The [1][Federal Government] may, by notification in the official Gazette, prohibit or regulate the keeping, in any factory or wholesale business premises in which such articles of food as are specified in the notification are manufactured or stored, of any substance which is likely to be used as an adulterant and is so specified.

[1]Subs. by F.A.O., 1975, Art, 2 and Table, for "Central Government".

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6. Manufacture import and sale of unwholesome food.— No person shall, directly or indirectly, himself or by any other person,—

(a) prepare, manufacture, keep or store for sale, or sell or offer to sell any food which is unsound, unwholesome, injurious to health or unfit for human consumption ; or

(b) import or export any food in such manner or in such condition as renders it or is likely to render it injurious to health.

7. Manufacture and sale of food not of proper nature or quality.— No person shall directly or indirectly, himself or by any other person,—

(a) prepare, manufacture, keep or store for sale, or sell or offer to sell, any food which is not of the nature, substance or quality which it purports or is represented to be ; or

(b) sell or offer to sell any food which is not of the nature, substance or quality demanded.

8. Pre-packed food.— No person shall keep or store for sale, or sell or offer to sell pre-packed food unless he has complied with the rules made in this behalf.

9. Import or manufacture etc., without complying with rules.— No person shall import, export, prepare, manufacture, keep or store for sale, or sell or offer to sell, any food, unless the rules providing for the mode of its manufacture, processing or preparation, packaging, labelling, consignment, delivery, standard of quality or fill of containers have been complied with.

10. Sale of banaspati margarine and charbi.— No person shall sell or offer to sell banaspati, margarine or charbi loose or from an open package:

Provided that banaspati may be so sold or offered for sale under a licence and subject to such conditions as may be prescribed in this behalf.

11. Licence for manufacture, storage and sale of goods.— (1) Except under a licence to be granted in such manner as may be prescribed no place shall be used—

(a) for the preparation, or the manufacturing, processing, blending, preserving, refrigerating, canning or bottling of any food ;

(b) for the business of a wholesale dealer in banaspati, charbi, ghee, or margarine, fish oil, mustard oil, cotton seed oil or other edible oils and such other foods as may be prescribed ;

(c) as a creamery, dairy or bakery ; or

(d) as a hotel, restaurant or eating-house:

Provided that the [1][Federal Government] may exempt any specified premises or class of premises from the operation of this section.

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(2) A licence granted under sub-section (1) shall be valid for a period of one year unless it is earlier cancelled or is renewed in such manner and on payment of such fee as may be prescribed.

(3) A licence granted under sub-section (1) may be cancelled or its renewal may be refused if—

(i) the licensee fails to maintain the register referred to in section 12 or is convicted of an offence under this Act, or

(ii) the premises are not maintained in such condition as may be prescribed.

(4) No person shall keep or store for sale, or sell or offer to sell, any food for human consumption unless he is in possession of such identification permit as may be prescribed.

12. Register for manufacture and wholesale business.— Every occupier of a place used for the preparation or manufacture, for the purposes of trade, of any such article of food as the [1][Federal Government] may, by notification in the official Gazette, specify in this behalf, and every wholesale dealer or his agent who stores any such article, shall keep and maintain a register in such form as may be prescribed, and such register shall be open to inspection by the inspector.

13. Food poisoning.— (1) If a Health Officer or an Inspector has reason to suspect that any food or any vessel or utensil with which food may come in contact is likely to cause food poisoning (acute, or cumulative) by chemical or bacteriological action, he may take a sample of such food or the vessel or utensil for analysis under this Act, and if he takes a sample, give notice to the person in charge of the food that, until the result of the analysis is known, the food or any specified portion thereof shall not be used for human consumption, and shall be kept or removed in the manner specified in the notice.

(2) If a Health Officer has reason to suspect that tuberculosis is likely to be caused by the consumption of milk supplied from any dairy or other source, he may, by notice to the person in charge of such dairy or source, prohibit the supply of milk from that dairy or source:

Provided that where, in the case of a dairy or other source, the Health Officer is of the opinion that certain remedial measures would effectively prevent the milk supplied from that dairy or source from being the cause of tuberculosis, the Health Officer shall,—

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(a) while issuing a notice prohibiting the supply of milk from such dairy or source, require the person in charge thereof to carry out such remedial measures as may be specified in the notice, and

(b) upon the application of the person in charge after he has carried out such remedial measures, cancel the notice.

(3) If a person is, in the opinion of the local authority, suffering from any communicable disease, the local authority may, by notice to such person, prohibit him from preparing, manufacturing, selling or offering to sell any article of food for human consumption until he obtains a certificate from the Health Officer to the effect that he is free from any communicable disease and produces such certificate to the local authority.

(4) A Health Officer may, by notice to any person handling articles of food in any hotel, restaurant, sweetmeat shop, or any other public eating place, require him to obtain and keep in his

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government."

possession a health certificate from a Health Officer to the effect that he is free from any communicable disease and to get it renewed from year to year, till such time as he continues so to handle such articles.

(5) Every person to whom a notice under this section has been given shall comply with such notice.

PART III

AUTHORITIES

14. Duty of local authorities.— It shall be the duty of every local authority to ensure compliance with the provisions of this Act within the territorial limits of such authority.

15. Appointment of Inspector.— (1) The Director may appoint Inspectors in respect of all or any specified food, and an Inspector so appointed shall have jurisdiction in such area as the Director may specify.

(2) Subject to any rules made in this behalf, a local authority shall appoint Inspectors in respect of all or any specified food, and an Inspector so appointed shall, unless the local authority otherwise directs, have jurisdiction within the limits of such local authority.

(3) The Health Officer and the Sanitary Inspector of a local authority and such persons in the service of Pakistan or holding such offices and posts in or under a local authority as the [1][Federal Government] may, by notification in the official Gazette, specify in this behalf, shall be ex officio Inspectors in respect of all foods within the limits of their respective jurisdiction.

(4) The Director may exercise the powers and perform the functions of an Inspector under this Act and any Deputy Director or Assistant Director or any other officer subordinate to the Director may exercise such powers and perform such functions of an Inspector within such area as the Director may, by order in writing, direct.

16. Powers of Inspector.— (1) An Inspector may detain and search any vehicle or package of any food intended for sale or in the course of delivery, if he has reason to suspect that the food therein carried or contained is injurious to health, unwholesome or unfit for human consumption or is not of the nature, substance or quality which it purports to be:

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Provided that nothing in this section shall authorize the detention of any vehicle belonging to the Railways.

(2) An Inspector may—

(i) enter into and inspect any market, godown, shop, stall or other place used for the storage or sale of any food intended for human consumption or for the preparation or manufacture of any such food for the purposes of trade or sale;

(ii) enter upon any premises for the purpose of exercising the powers of purchasing or taking a sample under section 18 and may in such premises inspect and examine any article of food and any apparatus or utensil used for preparing, manufacturing or containing such food ; and

[1]Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".

(iii) enter into and inspect any market, godown, shop, stall or other place used for the manufacture, storage or sale of any apparatus, utensil or vessel ordinarily used or intended to be used or likely to be used for preparing, manufacturing or containing any food.

(3) If any such food as is mentioned in sub-section (1) or clause (i) of sub-section (2) appears to the Inspector to be injurious to health, unwholesome, unfit for human consumption, or not of the nature, substance or quality which it purports to be, or as not fulfilling the prescribed conditions subject to which such food is to be prepared, manufactured, kept, stored or sold or if any such apparatus or utensil as is mentioned in clause (ii) of sub-section (2) is of such kind or in such state as to render any food prepared, manufactured or contained therein unwholesome or unfit for human consumption or injurious to health, he may seize and remove such food, apparatus or utensil to be dealt with as hereinafter provided.

(4) An Inspector may, instead of removing any food, apparatus or utensil seized under sub-section (3), leave the same in the custody of the person from whose possession, custody or control the same was seized or in such safe custody as he may deem fit, so as to be dealt with as hereinafter provided and may, at any time hereafter, remove the same to the custody of the local authority concerned.

(5) When any food, apparatus or utensil is seized under sub-section (3), it may be destroyed by the Inspector with the consent in writing of the owners or the person from whose possession, custody or control it is seized.

(6) if any food seized under sub-section (3) is of a perishable nature and is, in the opinion of the Inspector, unsound, unwholesome or unfit for human consumption, it may be destroyed without such consent but in the presence of two respectable witnesses.

(7) An Inspector shall prepare a statement of the food, apparatus or utensil seized and shall deliver a copy thereof to the local authority and to the person from whose custody the food, apparatus or utensil is seized or, if such person be not present, send such copy to him by post.

(8) Any person claiming anything seized under sub-section (3) may, within seven days of the seizure, complain to any Magistrate of the first class having jurisdiction at the place of seizure, and the Magistrate may, after making such enquiry as he may deem necessary, confirm or disallow such seizure, wholly or in part, and order such article, or the part or parts thereof of which seizure has been disallowed, to be restored to the claimant.

(9) If the Magistrate confirms the seizure, he may direct that the food, apparatus or utensil seized shall be—

(i) forfeited to the local authority ; or

(ii) destroyed or disposed of at the cost of the owner or person from whose possession, custody or control it was seized, in such manner as to prevent the same from being sold, or kept, or stored, or used as food or for the preparation or manufacture of, or for containing, any food.

(10) If no complaint is made within the period specified in sub-section (8), the article of food or the apparatus or utensil seized shall be forfeited to the local authority.

PART IV

FOOD ANALYSIS

17. Public Analyst.— The [1][Federal Government] may, by notification in the official Gazette, appoint a person to be a Public Analyst for the purposes of this Act for any area in respect of all or any specified food.

18. Purchase of Samples, etc.— (1) An Inspector may, for the purpose of analysis, purchase a sample of food—

(a) in transit,

(b) sold, offered for sale, hawked about, kept or stored or received for the purpose of preparing therewith any food, or

(c) kept or stored in a market, godown, shop, stall, hotel, restaurant or eating-house for the purpose of trade or sale or received therein for the purpose of preparing or manufacturing therewith any food.

(2) No person shall refuse to sell any food to an Inspector intending to purchase such food for the purpose of sub-section (1) in such reasonable quantity and from such container as he may ask for.

Explanation.—The purchase or sale of a sample of any food for the purpose of analysis under this Act shall be deemed to be purchased or sold for human consumption or use.

(3) If, in contravention of sub-section (2), any person refuses to sell, the Inspector may, without prejudice to any penalty to which such person may be liable for such contravention, seize such quantity of the food as may appear to him to be necessary, and shall give such person a certificate showing the price, nature and quantity of the food seized, the date, time and place of seizure, and, on demand being made in that behalf, the price of the food seized.

(4) The Inspector shall prepare, in such form as may be prescribed, a declaration in triplicate, containing full particulars, relating to the sample seized and such declaration shall be signed or marked both by the Inspector and the person from whose possession, custody or control the food has been seized and a copy thereof shall be given to such person.

(5) When a sample is taken from the stock in the possession of a commission agent, he shall be bound to give the name and such other particulars of the person on whose behalf such stock is held by him as the Inspector may require.

19. Right of private persons to have samples analysed.—(1) Any person may make an application in writing to an Inspector asking him to purchase a sample of such food and from such person as may be specified in the application and to submit such sample to the Public Analyst for analysis.

(2) The cost of the sample purchased and of the analysis done under sub-section (1) shall be payable by the person making the application:

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

Provided that, in case the sample is found by the Public Analyst to be adulterated, any amount paid by the applicant under this sub-section shall be refunded to him.

20. Action in respect of samples.— (1) An Inspector shall, as soon as he has purchased or seized any food with the intention of submitting the same for analysis, divide the food into three parts and mark, seal or fasten each such part in such manner as the nature of the food may require, and also permit the person from whom the sample is taken, if such person so desires, to affix his own seal or mark on each of the three parts.

(2) The Inspector shall—

(a) deliver one part of the food divided under sub-section (1) to the person from whom the food is purchased or seized ;

(b) retain with him one part for future comparison ; and

(c) submit one part to the Public Analyst, to be examined by him on payment of such fee as may be prescribed:

Provided that, where the sample is taken from any food which is about to be imported or in transit or at the place of delivery to the purchaser, consumer of consignee, or is unclaimed, the part of the sample to be delivered under clause (a) shall be retained by the Inspector, unless the name and address of the consignor appear on the container from which the sample is taken, in which case he shall forward that part of the sample to the consignor by registered post or otherwise, together with a notice informing him that the sample would be analysed by the Public Analyst.

21. Certificate of Public Analyst.— (1) The Public Analyst upon receiving sample of food from an Inspector shall, as soon as possible, analyse the same and issue to the Inspector a certificate in the prescribed form showing the result of the analysis.

(2) The person from whom the article so analysed was purchased or seized may, on payment of the prescribed fee, obtain from the Public Analyst a copy of the certificate issued under sub-section (1).

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(3) No person shall display or otherwise use any copy of the certificate for purposes of advertisement.

22. Power of Government to seize sample.— (1) The [1][Federal Government] may, in relation to any matter appearing to it to affect the general interest of the consumers of any food, direct any public servant to procure for analysis a sample of such food, and thereupon such public servant shall have all the powers of an Inspector.

(2) The public servant upon receiving the certificate of the Public Analyst shall take proceedings or cause proceedings to be taken as if he himself had caused such analysis to be made.

(3) The expenses incurred by the public servant in performing such duties shall be paid by the local authority.

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

PART V

PENALTIES AND PROCEDURE

23. Penalties.— (1) Whoever contravenes any of the provisions of section 3, 4, 5, 6, 7, 8, 9, 10, 11 or 13 shall be punished—

(a) for a first offence, with rigorous imprisonment for a term which may extend to six months and with fine which shall not be less than one hundred rupees or more than two thousand rupees and also with whipping ;

(b) for a second offence, with rigorous imprisonment for a term not less than three months and not more than two years and with fine which shall not be less than five hundred rupees or more than ten thousand rupees and also with whipping ; and

(c) for repeated offences or for offences of large scale adulteration or adulteration with injurious substances even in the first instance, with rigorous imprisonment for a term which shall not be less than three years or more than five years and with fine which shall not be less than five thousand rupees or more than one lakh rupees and also with whipping.

(2) Whoever contravenes any of the provisions of section 12, 18, 21 or 28 or of any rules shall be punished with imprisonment for a term which may extend to one year and with fine.

(3) Any person who attempts to contravene, or abets the contravention of any of the provisions mentioned in sub-section (1) or sub-section (2) shall be punishable with the same punishment as is provided for such contravention.

(4) All fines recovered under this Act shall be credited to the fund of the local authority within the limits of whose jurisdiction the offence for which the fine was imposed was committed.

(5) Where in the course of any business a person commits an offence under this Act and is convicted therefore under clause (b) or clause (c) of sub-section (1) and such business is carried on by him or by any other person of his behalf he or such other person shall, for a period of one year from the date of such conviction, prominently display on the premises in which such business is carried on a notice of the fact of such conviction, and, on his failing to so display such notice, shall be punishable with imprisonment for a term which may extend to three months or with fine or with both.

24. Power to try Summarily.— Any Magistrate for the time being empowered to try in a summary way the offences specified in sub-section (1) of section 260 of the Code of Criminal Procedure, 1898, may try summarily any offence made punishable under sub-section (1) and sub-section (2) of section 23 of this Act in accordance with the provisions of Chapter XXII of that Code.

25. Certain things to be presumed.— In every prosecution under this Act, the Court shall Presume—

(a) that any food found in the possession of any person who is or has been habitually found preparing, manufacturing, keeping, storing, selling or offering or exposing for sale or hawking about such food was being prepared, manufactured, kept, stored, sold, offered or exposed for sale or hawked about by such person ;

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(b) that any food commonly used for human consumption, kept, stored, sold or offered for sale, was kept, stored, sold or offered for sale for human consumption ;

(c) that any food commonly used for human consumption which is found on any premises used for the preparation or manufacture of such food was prepared or manufactured for human consumption ;

(d) that any substance capable of being used in the preparation or manufacture of any food commonly used for human consumption which is found on any premises in which such food is prepared or manufactured was intended to be used in the preparation or manufacture of such food ; and

(e) that any food is not of the nature, substance or quality it purports to be if it is deficient in any of its normal constituents to the extent specified in the rules or if any extraneous matter has been added to it in contravention of the rules.

26. Declaration under section 18 to be evidence.— A declaration signed or marked under sub-section (4) of section 18 may be produced as evidence of the facts contained therein in any inquiry, trial or other proceedings under this Act.

27. Certificate of Public Analyst to be evidence of act stated therein.— (1) The production in any inquiry, trial or other proceedings under this Act of a certificate under the hand of a Public Analyst in the form prescribed shall, until the contrary is proved, be sufficient to prove the facts therein stated.

(2) When any person is accused of an offence under this Act, he may request the Court to summon as a witness the Public Analyst who analysed the sample in respect of which he is accused of having committed an offence and the Court may, and, in every case in which the accused deposits in the Court a sum of money in accordance with the scale prescribed, shall, summon the Public Analyst, and if such person is acquitted, any sum of money so deposited shall be refunded to him.

28. Analysis by Chemical Examiner.— (1) The Court may of its own accord or on the request of the accused cause any food or sample of food to be sent for analysis to the Chemical Examiner who shall thereupon analyse the same and report the results of the analysis to the Court in the form prescribed and the cost of such analysis shall be paid by the accused if the Court so directs.

(2) The certificate of the Chemical Examiner shall, until the contrary is proved, be sufficient to prove the facts therein stated.

(3) No person shall display or otherwise use the report of the Chemical Examiner for purposes of advertisement.

29. What shall or shall not be a good defence.— (1) In any prosecution under this Act, it shall be no defence to allege—

(a) that the accused was ignorant of the nature, substance or quality of the food ; or

(b) that the purchaser having purchased only for purposes of analysis was not prejudiced,

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(2) The seller shall not be deemed to have committed an offence under this Act if he proves—

(a) that the food sold was purchased or obtained as agent by him with written warranty to the effect that it was of the same nature, substance or quality as that demanded by the purchaser ;

(b) that at the time he sold it he had no reason to believe that the food was not of such nature, substance or quality as that demanded by the purchaser ; and

(c) that he sold it in the same state in which he had purchased it.

(3) No evidence of a warranty under clause (a) of sub-section (2) shall be admissible on behalf of the seller unless—

(a) the seller has, within seven days of the service of the summons upon him, sent to the Inspector a copy of the warranty with a notice stating that he intends to rely on it and specifying the name and address of the person from whom he received it and has also sent a like notice of his intention to that person ; and

(b) such warranty is given by person Permanently residing or carrying on business in Pakistan.

(4) The Court shall summon the warrantor as a co-accused if it admits the warranty on behalf of the seller.

30. Forfeiture of food upon conviction.—In the case of any conviction under this Act, the Court may order that any food to which the conviction relates, together with all packages or utensils containing the same, shall be forfeited to the [1][Federal Government] or shall be disposed of in such manner as may be specified in the order.

31. Expenses of analysis.—When any person is convicted of an offence under this Act, the Court shall order that all fees and other expenses incidental to the analysis of any food in respect of which the conviction is made, which shall, in no case be less than thirty rupees, be paid by the person convicted, in addition to the fine which he may be sentenced to pay, and the amount of such fees and expenses shall be recovered as if it were a fine.

32. Trial of offence.—(1) No Court shall take cognizance of any offence punishable under this Act except on a report in writing of the facts constituting such offence made by an Inspector authorized in this behalf by the Director or the [1][Federal Government.]

(2) No Court inferior to that of a Magistrate of the first class shall try an offence under this Act.

[1]Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".

PART VI

MISCELLANEOUS

33. Indemnity.— No suit, prosecution or other legal proceedings shall lie against any person for anything which is in good faith done or intended to be done in pursuance of any provision of this Act or any rule, order or direction made or given thereunder.

34. Inspector, etc., to be public servant.—An Inspector while performing any of his functions under this Act and all other persons assisting him in the performance of such functions shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (XLV of 1860).

35. Power to make rules.— (1) The [1][Federal Government] may, by notification in the official Gazette, make rules for carrying out the purpose of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:

(a) the standards, specifications, normal constituents and quality of food ;

(b) the qualifications of persons who may be appointed Public Analysts for the purpose of this Act ;

(c) the regulation of appointment and qualifications of persons to be appointed as Inspectors ;

(d) the methods of analysis to be followed by Public Analysts for the analysis of any food and the form of the certificate ;

(e) the fees to be paid in respect of the analysis of any food by a Public Analyst ;

(f) the prohibition of use of any particular matter or ingredient in the preparation or manufacture of any food ;

(g) the conditions (including the addition of a colour or any other substance) subject to which any food shall be prepared, manufactured, kept, stored, sold or offered or exposed for sale ;

(h) the prohibition of keeping or storage for sale of foods other than those approved under the rules ;

(i) the cleanliness and freedom from contamination of any food in the course of its preparation, manufacture, storage, packing, carriage, delivery or exposure for sale, and the cleanliness or places, receptacles, packages, wrappings, appliances and vehicles used in such preparation, manufacture, storage, packing, carriage or delivery;

(j) the method in which labels shall be affixed, languages in which the labels shall be printed, and the symbols which shall be used for different kinds of foods ;

[1]Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".

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(k) the manner in which, and the conditions subject to which, a licence is to be granted under section 11;

(l) the form of the register to be kept under section 12 and the particulars to be entered therein ;

(m) the conditions for the maintenance of a dairy and the supply of dairy products ;

(n) the authorization of a person taking a sample of milk or any other food for the purpose of analysis to add preservatives to such sample for maintaining it in a suitable condition for the analysis, and the nature and method of addition of such preservatives;

(o) the prohibition of use or addition as a preservative or additive of any article, material or substance in the preparation or manufacture of any food for sale ;

(p) the fees for the grant of a licence under section 11;

(q) the fees for obtaining a health certificate under section 13;

(r) the fees to be deposited in Court for summoning a Public Analyst ;

(s) the manner in which a perishable food offered for sale shall be protected from contamination ; and

(t) any other matter which is to be or may be prescribed.

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Dated: 05.04.24

THE CANTONMENTS RENT RESTRICTION ACT, 1963

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THE CANTONMENTS RENT RESTRICTION ACT, 1963

Act No. XI OF 1963

[*27th April, 1963*]

An Act to make provisions for the control of rents of certain class of buildings within the limits of the Cantonment areas and for the eviction of tenants therefrom.

WHEREAS it is expedient to make provision for the control of rents of certain class of buildings within the limits of the cantonment areas, for the eviction of tenants therefrom and for matters connected therewith;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Cantonments Rent Restriction Act, 1963.

(2) It extends to all the cantonments in Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context:—

[1][(a) "Additional Controller" means an Additional Controller of Rent appointed under sub-section (2) of section 6;]

[2][(aa)] "building"" means any building or part of a building, whether residential or not, together with all fittings and fixtures therein, if any, and includes any gardens, grounds, garages and outhouses attached or appurtenant to such building or part, and vacant land, but does not include any place of religious worship;

(b) "Cantonment Board" means a Cantonment Board constituted under the Cantonments Act, 1924 (II of 1924);

(c) "commercial building" means a building used solely for the purposes of business or trade;

(d) "Controller" means a Controller of Rents appointed by the [3][Federal Government] under sub-section (1) of section 6 and includes an Additional Controller [4][* * *];

[1] Ins. by the Cantonments Rent Restriction (Amdt.) Ordinance, 1985 (IX of 1985), s.2.
[2] Re-lettered *ibid.*,
[3] Subs. by F.A. O., 1975, Art. 2 and Table, for "Central Government".
[4] Certain words omitted by the Cantonments Rent Restriction (Amdt.) Ordinance, 1985 (IX of 1985), s.2.

(e) "family" of a person means and includes a husband, wife, children, dependent parents, dependent brothers, unmarried or widowed sisters and a deceased son's widow and children residing with, and wholly dependent upon, that person;

(f) "a house" is said to be in a state of reasonable repair, when—

(i) all floors, walls, pillars, arches and roofs are sound and watertight,

(ii) all doors and windows are intact, properly painted or oiled, and provided with proper hooks or bolts or other necessary fastenings,

(iii) all rooms, outhouses and appurtenant buildings are properly colour-washed or white-washed, and

(iv) all electric, water and sanitary fittings, if any, are properly maintained and are safe, sound and without leakage;

(g) "Landlord" means any person for the time being entitled to receive rent in respect of any building whether on his own account or on behalf or for the benefit of any other persons, or as a trustee, guardian or receiver and includes a tenant who, being authorised under the terms of his lease so to do, sublets the building and every other person for the time being deriving title from the landlord;

(h) "prescribed" means prescribed by rules made under this Act;

(i) "residential building" means any building used for the purposes of residence and includes a hostel, boarding-house and residential hotel; and

(j) "tenant" means any person who undertakes or is bound to pay rent as consideration for the possession or occupation of a building by him or by any other person on his behalf, and includes:—

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(i) any person who continues to be in possession or occupation of the building after the termination of his tenancy; and

(ii) in the event of the death of the tenant, his heirs and successors and after the termination of the tenancy, his heirs and successors who continue to be in possession or occupation of the building.

3. Act not to apply to certain buildings.— Nothing contained in this Act shall apply to—

(a) any evacuee property as defined in the Pakistan (Administration of Evacuee Property) Act, 1957 (XII of 1957); and

(b) any property owned by the [1][Federal Government], any Provincial Government, Railway, Port Trust or Cantonment Board and any property owned, managed or controlled by any other local authority under the administrative control of the [1][Federal Government] or of any Provincial Government.

4. Power of exemption.—The [1][Federal Government] may, by notification in the official Gazette, direct that all or any of the provisions of this Act shall not apply to any cantonment or to any particular building or class of buildings or to buildings in any specific area.

5. Act to override other laws.—The provisions of this Act and any rule or order made thereunder shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force, or in any instrument or document.

6. Appointment of Controller.— (1) The [1][Federal Government] may, for purposes of this Act, by notification in the official Gazette, appoint a person to be the Controller of Rents for one or more cantonments.

(2) The [1][Federal Government] may also, by notification in the official Gazette, appoint a person to be the Additional Controller of Rents for one or more cantonments.

[2]**[6A. Applications to be filed with Controller.—** Every application under this Act shall be filed with the Controller who shall either hear it himself or assign it to an Additional Controller for hearing and disposal.

6B. Power of Controller to transfer cases.—The Controller may, either on an application or on his own motion, at any stage,—

(a) transfer any case pending before him to the Additional Controller for hearing and disposal; or

(b) withdraw any case pending in the court of an Additional Controller; and

(i) hear and dispose of the same himself, or

(ii) transfer it to another Additional Controller for hearing and disposal, or

(iii) retransfer the same for hearing or disposal to the Additional Controller from whom it was withdrawn.

Explanation. The power to transfer cases shall not be exercisable by the Additional Controller.”.

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for “Central Government”.
[2]Ins. by the Cantonments Rent Restriction (Amdt.) Ordinance, 1985 (IX of 1985), s.3.

[1][7. **Determination of fair rent.**—(l) The Controller shall, on an application by the tenant or landlord of building, fix fair rent for such building after holding such enquiry as he may think fit.

(2) The fair rent shall be fixed after taking into consideration the following factors, namely:—

(a) the rent of the same building or similar accommodation in similar circumstances prevailing in the locality at the time of, and during the period of twelve months prior to the date of, the making of the application;

(b) the rise, if any, in the cost of construction and of the repair and maintenance charges as well as changes in the existing taxes after the commencement of the tenancy; and

(c) the rental value of the building as entered in the latest assessment list of the Cantonment Board as proposed under section 72 of the Cantonments Act, 1924 (II of 1924).

(3) The fair rent fixed under this section shall be payable by the tenant from the date to be fixed by the Controller which shall not be earlier than the date of filing of the application.

(4) If the fair rent fixed under sub-section (2) exceeds the rent being paid by the tenant on the date of the filing of the application under this section, the maximum increase of rent payable by the tenant shall not be more than twenty-five percent of the rent already being paid by him.

(5) When the fair rent of a building has been fixed under this section, or where the rent of any building has been determined by an agreement between the landlord and the tenant, no further increase in such fair rent shall, during the continuance of tenancy be permissible within a period of three years from the date fixed by the Controller under sub-section (3) or from the date of the agreement, as the case may be, except in cases where some addition, improvement or alteration has been carried out at the landlord's expense and at the request of the tenant.

(6) The fair rent as increased on grounds of some addition, improvement or alteration made permissible under this section shall not exceed the fair rent payable under this Ordinance for a similar building in the same locality with such addition, improvement or alteration and it shall not be chargeable until such addition, improvement or alteration has been completed.

(7) Any dispute between the landlord and tenant in regard to any increase claimed on grounds of some addition, improvement or alteration made permissible under this section shall be decided by the Controller.]

8. Increase of fair rent in certain cases. — (l) Where the fair rent of the building has once been fixed under section 7, it shall not be increased with or without the consent of the tenant unless some addition, improvement or alteration otherwise than by way of ordinary or usual repair has been made in the building at the landlord's expense and, if the building be in the occupation of a tenant, at the tenant's request in writing, or unless a new tax has been imposed or an existing tax has been increased.

(2) Every dispute between a landlord and his tenant relating to the increase of rent under sub-section (1) shall be decided by the Controller:

[1]Subs. by the Cantonments Rent Restriction (Amdt.) Ordinance, 1985 (IX of 1985), s.4 for section7.

Provided that the Controller shall in no case allow any increase beyond seven and a half per centum of the cost of the addition, improvement or alteration made in the building or, beyond the amount of the additional tax payable by the landlord, as the case may be.

9. Landlord not to claim anything in excess of fair rent.— Save as provided in Section 8, where the fair rent of a building has been fixed under section 7 the landlord shall not claim or receive any premium or other like sum in addition to fair rent, or any rent in excess of such fair rent and any agreement or contract stipulating payment of any such premium, sum or excess rent shall to the extent of such stipulation be void:

Provided that nothing in this section shall affect any stipulation for or payment of advance rent for not exceeding three months.

10. Fine or premium not to be charged for grant, renewal or continuance of tenancy.— No landlord shall, in consideration of the grant, renewal or continuance of any tenancy of any building, require the payment of any fine, premium or any other like sum in addition to the rent.

11. Moneys which should not have been paid may be recovered.—Where, after the commencement of this Act, any sum not payable by a tenant under this Act has been paid by him, it may at any time within four months of the date of such payment be recovered by the tenant and may, without prejudice to any other mode of recovery be deducted by the tenant from the rent payable by him to the landlord.

12. Tenant to pay taxes.—Notwithstanding anything contained in any other law for the time being in force or in any agreement, the tenant shall be bound to pay the taxes due in respect of the building to the Cantonment Board, as required by section 65 of the Cantonments Act, 1924 (II of 1924), by making deductions from the rent payable by him.

13. Landlord not to interfere with amenities enjoyed by the tenant.— (l) No landlord shall, without just or sufficient cause cut off or withhold any of the amenities enjoyed by the tenant.

(2) A tenant in occupation of a building may, if the landlord has contravened the provisions of this section, make an application to the Controller complaining of such contravention.

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(3) If the Controller, on inquiry finds that the tenant has been in enjoyment of the amenities and that they were cut off or withheld by the landlord without just or sufficient cause, he shall make an order directing the landlord to restore such amenities, or authorising the tenant to provide the same and to incur such expense thereon as the Controller may specify, and any sum so spent by the tenant shall be adjustable against the rent payable by the tenant in respect of that building.

14. Restriction of conversion of residential buildings into commercial buildings and *vice versa*.—No person shall convert a residential building into a commercial building or *vice ve rsa*, except with the permission in writing of the Controller.

15. Failure by landlord to make necessary repairs.— If a landlord fails to keep a building in a state of reasonable repairs, or to make such repairs thereto, not being structural alterations, as may from time to time be necessary, it shall be competent for the Controller to direct, an application by the tenant, and after such inquiry as the Controller may think necessary that such repairs may be made by the tenant, and the cost thereof deducted from the rent payable by him:

Provided that nothing in this section shall enable the tenant to spend on repairs any amount exceeding three month's rent unless the Controller after making necessary inquiry is satisfied that such repairs are essential to render the building fit for occupation:

Provided further that where under the terms of the agreement of tenancy, a tenant is authorised to make repairs at the expense of the landlord no application under this section shall be necessary.

16. Reimbursement of expenses incurred on repairs under orders of a local authority.— (l) Where a local authority, in exercise of its functions under any law directs a landlord to make certain specified repairs to his building and the landlord fails to comply therewith, the tenant may at the direction of the local authority make such repairs.

(2) Where a tenant make any repairs in pursuance of a direction given under sub-section (1) he shall within three months of the completion of repairs submit to the local authority an account of the cost incurred by him, on such repairs and the local authority shall, after due verification, certify such costs, whereupon the tenant shall become entitled to deduct the amount of certified cost from the rent payable by him.

17. Eviction of tenant.— (l) After the commencement of this Act, no tenant, whether before or after the termination of his tenancy, shall be evicted from the building in his possession or occupation in execution of a decree passed after such commencement, except in accordance with the provisions of this section.

(2) A landlord who seeks to evict his tenant shall apply to the Controller for an order in that behalf, and the Controller may after giving the tenant a reasonable opportunity of showing cause against the application, make on order directing the tenant to put the landlord in possession, if he is satisfied that:—

(i) the tenant has not paid or tendered the rent to the landlord within fifteen days of the expiry of the time fixed in the agreement of tenancy for payment of rent, or in the absence of such agreement, within sixty days following the period for which the rent is due; or

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(ii) the tenant has, without the written consent of the landlord,—

(a) transferred his right under lease or sublet the building or any portion thereof, or

(b) used the building for a purpose other than that for which it was leased; or

(iii) the tenant has committed such acts as are likely to materially impair the value, look or utility of the building; or

(iv) the acts and conduct of the tenant have been a nuisance to the occupiers of buildings in the neighbourhood; or

(v) where the building is situated in a place other than a hill station, the tenant has ceased to occupy the building for a continuous period of four months without reasonable cause; or

(vi) the landlord intends to demolish the building for constructing a new building on the same site and has already obtained the necessary sanction for such construction from the Cantonment Board:

Provided that the Controller may give the tenant a reasonable time for putting the landlord in possession of the building and may extend such time so as not to exceed three months in the aggregate.

Explanation.— For the purpose of clause (i) the rent remitted by money order to the landlord or in case the landlord refuses to accept the rent deposited in the office of the Controller having jurisdiction in the area where the building is situate, shall be deemed to have been duly tendered.

(3) If the Controller is not satisfied as aforesaid he may make an order rejecting the application.

(4) A landlord may apply to the Controller for an order directing the tenant to put the landlord in possession,—

(a) in the case of a residential building, if:—

(i) he requires it in good faith for his own occupation or for the occupation of any member of his family; and

(ii) he or the member of his family, as the case may be, is not occupying any other residential building suitable for his needs at the time, in the Cantonment area concerned or in any local area in the vicinity thereof; and

(iii) he or the said member has not vacated such a building in the said area or vicinity without sufficient cause after the commencement of this Act; and

(b) in the case of a commercial building, if:—

(i) he requires it in good faith for his own use; and

(ii) he is not occupying in the Cantonment area concerned or in any local area in the vicinity thereof in which such building is situate for the purposes of his business any other such building suitable for his needs at the time; and

(iii) he has not vacated such a building in the said area or vicinity without sufficient cause after commencement of this Act:

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Provided that where the tenancy is for a specified period agreed upon between the landlord and the tenant, the landlord shall not be entitled to apply under this sub-section before the expiry of such period:

Provided further that when the landlord has obtained possession of a residential or a commercial building under the provisions of sub-clause (a) or sub-clause (b) he shall not be entitled to apply again for the possession of any other building under that sub-clause, unless the building of which he had previously taken possession has become unsuitable for his needs:

Provided also that this sub-section shall not apply to serais, hotels, dak-bungalows, lodging-houses, boarding-houses, residential clubs, restaurants, eating-houses, cafes, refreshment rooms and places of public recreation or resort or premises dealing in sales or production of materials of books of educational and cultural values except where the landlord requires any such building to carry on any such business of his own, in which case he may make an application under this sub-section after having served two years' notice on the tenant; but no building which is not, on the commencement of this Act being used for any of the aforesaid purposes, or has not after such commencement been left out expressly for any such purpose; shall be converted to any such purpose except with the consent in writing of the landlord.

(5) The Controller shall, if he is satisfied that the claim of the landlord under sub-section (4) is *bona fide* make an order directing the tenant to put the landlord in possession of the building on such date as may be specified by the Controller and if the Controller is not satisfied, he shall make an order rejecting the application:

Provided that the Controller may give the tenant a reasonable time for putting the landlord in possession of the building and may extend such time so as not to exceed three months in aggregate.

(6) Where the landlord who has obtained possession of a building in pursuance of an order made under sub-section (5) does not himself or where possession of the building has been obtained for any member of his family, such member does not occupy the building within one month of the date of obtaining its possession, the tenant who had been evicted may apply to the Controller for an order directing that the possession of such building be restored to him and the Controller may thereon make an order accordingly.

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(7) Where a landlord has obtained possession of a building in pursuance of an order under clause (vi) of sub-section (2) and does not have the building demolished within four months of the date of taking its possession, or does not construct the new building within a period of two years following the expiry of the said period of four months, he shall, unless he satisfies the Controller that he was prevented from having the building demolished or constructing the building within the said time by reasons beyond his control, be punished with imprisonment for a term which may extend to six months or with fine or with both.

(8) On the first hearing of proceeding under this section or as soon thereafter as may be put before the issues are framed, the Controller shall direct the tenant to deposit in his office before a specified date all the rent due from him, and also to deposit regularly till the final decision of the case, before the 5th day of each month, the monthly rent which subsequently becomes due, and if there be any dispute as to the amount of rent due, the Controller shall determine such amount approximately.

(9) If the tenant fails to deposit the amount of rent before the specified date or, as the case may be, before the 5th day of the month, his application, if he is a petitioner, shall be dismissed, or his defence, if he is a respondent, shall be struck off, and the landlord shall be put in possession of the building without any further proceedings.

(10) Where the Controller is satisfied that any application made by a landlord for the eviction of a tenant is frivolous or vexatious, the Controller may direct that compensation not exceeding one hundred rupees be paid by such landlord to the tenant.

(11) Notwithstanding anything contained in this Act or elsewhere, the [1][Federal Government] or the Provincial Government, a Railway, a Port Trust, a Cantonment Board or any other local authority may also apply to the Controller to seek eviction of the tenant from its building whether owned, hired or requisitioned, in the event of non-payment of rent within the period hereinbefore prescribed or for infringement of any of the terms of possession or occupation.

[2]**[17A. Eviction of tenants where the landlord is a salaried employee, widow or minor orphan.**— (l) Notwithstanding anything contained in this Act or any other law for time being in force,—

(a) in a case where the landlord has died; or

(b) in a case where the landlord is a salaried employee and has retired or is due to retire within a period of six months,

a notice in writing may be given by such landlord or the widow or minor child of the deceased landlord, as the case may be, to the tenant of a residential building informing him that he or she needs the building for personal use and requiring him to deliver vacant possession of the building within a period of two months from the date of receipt of the notice:

Provided that no application under this section shall be maintainable if it is made after six months from the date of the death of the landlord or, in the case of the retirement of a salaried person, before six months from, or after six months of, the date of his retirement:

Provided further that, in a case where the landlord has died or salaried person has retired before the commencement of this Ordinance, an application may be made within a period of six months from the date of such commencement.

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(2) The right to seek ejectment under sub-section (1) shall also be available to a landlord of a residential building who is the wife, husband or a minor child of a salaried employee referred to in sub-section (1).

(3) In the case of a landlord referred to in sub-section (1) or sub-section (2) who happens to be a landlord of more than one residential building, whether or not in the same locality, action as provided for in this section shall be competent in respect of one of such residential buildings only.

(4) A landlord referred to in clause (b) of sub-section (1) or in sub-section (2) who is in occupation of a residential building owned by him shall not be entitled to seek ejectment of a tenant from a residential building situated in the locality in which the building in occupation of the landlord is situated unless he offers the building in his occupation in exchange of the building in possession of the tenant on such terms and conditions and on payment of such rent as may be determined by the Controller:

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[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2] Ins. by the Cantonments Rent Restriction (Amdt.) Ordinance, 1985 (IX of 1985) s.5.

Provided that the benefit of exchange shall not be available to the tenant who refuses to accept the offer or the terms and conditions and the rate of rent determined by the Controller.

(5) A tenant who on receipt of the notice referred to in sub-section (1) fails to deliver vacant possession of the building to the landlord or to the widow or minor child of the deceased landlord within the time allowed in the notice shall be liable to be ejected summarily by the Controller on an application being made to him in this behalf.

(6) On an application made to him under sub-section (5), the Controller shall issue a notice to the tenant and, on being satisfied with the *bona fides* of the request of the landlord or the widow or minor child of the deceased landlord, shall order the summary ejectment of the tenant.

(7) A landlord or a widow or child of a deceased landlord referred to in sub-section (1) or sub-section (2) who, within one year of his or her having obtained possession of a building as provided for in sub-section (6), relets the building to any person other than the previous tenant shall be punishable with fine which may extend to five thousand rupees:

Provided that, if the amount of the annual rent for which the building is so relet exceeds five thousand rupees, the amount of fine shall be equal to the amount of annual rent.]

18. Registration of hotels, lodging-houses.—(1) Within a period of two months from the commencement of this Act or from the opening of any hotel or lodging-house, whichever is later, the owner of every hotel and lodging-house shall apply to the Controller for registration of his hotel or lodging-house and for determination of fair rates in relation thereto:

Provided the [1][Federal Government] may, by a special or general order, by notification in the official Gazette, exempt any hotel or lodging-house or class of hotels or lodging-houses from the provisions of this section.

(2) Any owner of a hotel or lodging-house who fails to get his hotel or lodging-house registered in compliance with sub-section (1) shall be punishable with fine which may extend to five hundred rupees.

19. Fixation of fair rates.— (l) The Controller may fix fair rates to be charged for board, lodging and other services provided in a hotel or boarding-house, at such amount as, having regard to all the circumstances, he deems just.

(2) A fair rate may be fixed separately for daily and monthly guests.

Explanation.— A guest who agrees to reserve accommodation for a period of one month or more shall be deemed to be a monthly guest and where the reservation is not for any specified period, or is for a period of less than one month, the guest shall be deemed to be a daily guest.

(3) The Controller may from time to time revise the fair rates determined by him under this section:

Provided that in case of reservation under an agreement or otherwise for a specified period no revision of fair rates shall be applicable.

(4) The Controller may also fix the minimum number of guests to be accommodated in each room or other unit of accommodation in a hotel or lodging-house:

[1]Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".

Provided that where accommodation in a hotel or lodging house is in the occupation of the Armed Forces of Pakistan, the appropriate authority of the Armed Forces shall be given an opportunity to state facts and its views with regard to the determination of fair rates before such rates are fixed:

Provided further that the Controller shall be empowered to fix fair rates for hotels, boarding-houses, lodging-houses and dak bungalows under the control of the Armed Forces or meant exclusively for the use of the Personnel of the Armed Forces.

20. Fair rates, etc., to be displayed.—The fair rates fixed by the Controller and the maximum number of guests who may be accommodated in each room or unit of accommodation in a hotel or lodging house shall be displayed in a conspicuous manner in the office and in the public-rooms, if any, of such hotel or lodging-house.

21. Eviction of guests from hotels, etc.—(l) Except as hereinafter provided, no guest shall be evicted from a hotel or lodging-house or refused board or other services so longs as he pays or is ready and willing to pay the fair rates.

(2) If the Controller is satisfied that:—

(a) a guest in a hotel or lodging-house has been guilty of conduct which is a nuisance or source of annoyance to other guest or persons living in the neighbourhood; or

(b) the accommodation he occupies is required by the owner or manager of the hotel or lodging-house;

the Controller may, if he considers that the requirement is genuine and reasonable, make an order authorising the owner or manager, as the case may be, to recover possession of the accommodation or part thereof occupied by such guest:

Provided that no such order shall be made unless the guest has been given a reasonable opportunity to show cause why such order should not be made:

Provided further that where there is an agreement for the stay of the guest for a specified period, he shall not be evicted before the expiry of that period.

22. Eviction of Government servants, etc.— Notwithstanding anything contained in any other provision of this Act no order of eviction shall be made under this Act against any person in the service of the [1][Federal Government], a Provincial Government, a Railway, a Port Trust, a Cantonment Board or any other local authority or of any corporation, company or authority rendering an essential service to the community, if his eviction would be detrimental to the public interest, provided eviction is not sought on the grounds referred to in clauses (i) to (iv) of sub-section (2) of section 17 [2][or under section 17A] or clause (a) of sub-section (2) of section 21 of this Act.

23. Decisions which have become final not to be re-opened.— The Controller shall summarily reject any application under sub-section (2) or under sub-section (4) of Section 17, [2][or under Section 17-A] which raises substantially the same issues as have been finally decided in a former proceeding under this Act.

[3] **[24. Appeal.**– (1) Any party aggrieved by an order, not being an interim order, made by the Controller may, within thirty days of such order, prefer an appeal to the High Court.

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[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2] Ins. by the Cantonments Rent Restriction (Amdt.) Ordinance, 1985 (IX of 1985), ss. 6 and 7.
[3] Subs. *ibid*., s. 8., for section 24.

(2) The High Court may, pending the final disposal of the appeal, make an order staying further proceedings or action on the order of the Controller:

Provided that no such order shall be made if the appeal has been preferred from an order made under sub-section (6) of Section 17-A.

(3) The High Court shall, after perusing the record of the case and giving the parties an opportunity of being heard and, if necessary, after making such further enquiry either by itself or by the Controller as it may deem fit, make an appropriate order which shall be final.

(4) No order of the Controller except by an appeal under this section, and no order of the Appellate Court made under this Act shall be called in question in any Court by any suit, appeal or other legal proceedings.]

25. Execution of orders.— (l) Every order made under section 13 [1][, section 17 or section 17A] and every order passed on appeal under section 24 shall be executed by a civil Court having jurisdiction in the area as if it were a decree of that Court.

(2) The provisions of Order XXI of the First Schedule to the Code of Civil Procedure, 1908 (Act V of 1908), shall, so far as may be, apply to the execution of orders made or deemed to have been made under this Act.

26. Landlord and tenant to furnish particulars.— Every landlord and every tenant of a building shall be bound to furnish to the Controller, or any person authorised by him in that behalf, such particulars in respect of such building as may be prescribed.

27. Procedure and powers of Controller.— No order under section 7, 8,13,15,17 or 19 of this Act shall be made by the Controller except after holding an inquiry.

(2) For the purposes of holding an inquiry under this Act, the Controller and the Appellate Court shall have the same owners as are vested in a court under the Code of Civil Procedure, 1908 (Act V of 1908), when trying a suit in respect of the following matters, namely:—

(a) summoning and enforcing attendance of any person and examining him on oath;

(b) compelling the discovery and production of any document and other' material evidence; and

(c) issuing a commission for the examination of witnesses.

(3) The proceedings of every inquiry shall be deemed to be judicial proceedings within the meaning of sections 193 and 228 of the Pakistan Penal Code (Act XLV of 1860).

(4) The Controller shall be deemed to be a court for the purposes of sections 480 and 482 of the Code of Criminal Procedure, 1898 (Act V of 1898) .

28. Penalties.— Whoever contravenes or fails to comply with any provisions of this Act or the rules made there under shall be punishable with fine which may extend to five hundred rupees.

[1] Subs. by the cantonments Rent Restriction (Amdt.) Ordinance, 1985 (IX of 1985), s. 9, for "or section 17".

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29. Cognizance of offence.—No Court shall take cognizance of offence under this Act except on a complaint made by the Controller in writing within three months of the date of the commission of the offence.

30. Controller to be a public servant.— A Controller shall be deemed to be a public servant within the meaning of Section 21 of the Pakistan Penal Code.

31. Indemnity.— No suit or other legal proceedings shall lie against the Controller or any person acting under his orders, in respect of any thing which is in good faith done or intended to be done under this Act.

32. Power to make rules.— The [1][Federal Government] may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

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Date: - 22.04.2024

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

THE CAPITAL OF THE REPUBLIC (DETERMINATION OF AREA) ORDINANCE, 1963

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THE CAPITAL OF THE REPUBLIC (DETERMINATION OF AREA) ORDINANCE, 1963

ORDINANCE NO. VI OF 1963

[26th *October,* 1963]

An Ordinance to determine the area of the Capital of the Republic

WHEREAS it is expedient to determine the area of the Capital of the Republic;

AND WHEREAS clause (1) of Article 211 of the Constitution provides that the Capital of the Republic shall be Islamabad situated in the District of Rawalpindi in the Province of West Pakistan at the site selected for the Capital of Pakistan before the enactment of the Constitution.

AND WHEREAS clause (2) of the said Article provides that the area of the Capital shall be determined by the Central Legislature, but shall not be less than two hundred square miles;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 29, and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title.— This Ordinance may be called the Capital of the Republic (Determination of Area) Ordinance, 1963.

2. Area of the Capital.— The area specified in the Schedule measuring three hundred and fifty square miles or thereabout within the district of Rawalpindi in the Province of [1][the Punjab] at the site selected for the Capital of Pakistan shall be the area of the Capital of the Republic.

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[1] Subs. by F.A.O., 1975, Art. 2 and Sch., for "West Pakistan".

THE SCHEDULE

[All Map References pertain to Grid-I]

Starting from a point, Map Reference MU 873568 near Nicholson Monument running east along the ridge of Margala Range *via* spot heights 2613, 2981, 3371, 3338 to Triangulation Point height 3352 Map Reference MU 979604 on the boundary line of districts Hazara and Rawalpindi. Then east along this boundary line to Triangulation Point height 5264 (near village Nilan Bhotu), Map Reference No. 191698 north-east along the Rawalpindi tehsil boundary to spot height 4949 Map Reference No. 223713, then south-east again along Rawalpindi tehsil boundary to the tehsil boundary and nala junction at Map Reference No. 227707, from here south-east along the nala to the junction in the nala at Map Reference No. 250701.From this junction south-east across the range of hills and *via* village Mangial Map Reference No. 268696 to village Karlot Map Reference No. 287693. From village Karlot south-east along the nala to nala and Kurang Nala junction and along Kurang nala to junction of Kurang Nala and Murree Road near village Chattar Parao at mile-stone 18 and 6 furlongs, Map Reference No. 304685. From here due east across country to the Rawalpindi tehsil boundary at Map Reference No. 310683 and south-east along the tehsil boundary to the junction of the tehsil boundary and Kurang nala at Map Reference No. 315676, then north-east along the Kurang nala to the junction of the nala and tehsil boundary at Map Reference No. 327678. From this junction south-east across country *via* spot height 2954 Map Reference No. 345664 across the range south-east to spot height 2276 Map Reference No. 358655 located near Rawalpindi tehsil boundary then south-east along the Rawalpindi tehsil boundary to junction of boundary and Gumrah Kas at Map Reference No. 369636. From this junction south-east across country to village Sambli Tijal on the river Soan, Map Reference No. 405615, then along river Soan and Rawalpindi tehsil boundary east up to the Map Reference No. 457595 (bend in the boundary) and south-east again along tehsil boundary to point at map Reference No. 424541 (400 yards south of the Lehtrar road) to a point down stream of the bridge on river Soan where this line joins the river Map Reference No. 367532. Then south along river Soan to a point Map Reference No. 367453 being the junction of the river with an eastern tributary. From here south-west across country to mile-stone 159 on G.T. Road map Reference No. 274323.Then north-west across country to a point Map Reference No. 156382, then east to a point Map Reference No. 223429 (a point on the western boundary of Islamabad Highway).Then north along the western boundary of Islamabad Highway to a point Map Reference No. 152532. From this point boundary line runs south-west across country along the outer line of I. J. Road to a point Map Reference No. 067473. Then north-west to a point Map Reference No. 054491 and south-west against a point map Reference 038480. From this point the boundary line runs concurrently with the north boundary line of right of way of G.T. road, eastern boundary of right of way of Golra Road to a point Map Reference No.036484 and then to the north eastern corner of Jerry Cane Factory. Then west to the north-west corner of Jerry Cane Factory along the northern and western boundary wall of the Jerry Cane Factory, till line again joins the northern boundary line of right of way of G.T. Road, at point Map Reference No. 033482. Then crossing the G.T. Road. Then south-east along the southern boundary line of right of way of G.T. Road to a point Map Reference No. 037479. From this point the boundary line runs south-east across the country to appoint Map Reference No. 049462. From this point the boundary runs south-west across country to a point Map Reference MU 981414, then north-west across country back to the starting point Map Reference MU 873568 near Nicholson Monument.

Date:-22.04.2024

THE CARRIAGE OF GOODS BY SEA ACT, 1925

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1. Short title and extent
2. Application of Rules
3. Absolute warranty of sea worthiness not to be implied in contracts to which Rules apply
4. Statement as to application of Rules to be included in bills of lading
5. Modification of Article VI of Rules in relation to goods carried in sailing ships and by prescribed routes
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7. Saving and operation

SCHEDULE

THE PAKISTAN CODE

THE CARRIAGE OF GOODS BY SEA ACT, 1925

ACT NO. XXVI OF 1925

[21st September, 1925]

An Act to amend the law with respect to the carriage of goods by sea

WHEREAS at the International Conference on Maritime Law held at Brussels in October, 1922, the delegates at the Conference, including the delegates representing His Majesty, agreed unanimously to recommend their respective Governments to adopt as the basis of a convention a draft convention for the unification of certain rules relating to bills of lading;

AND WHEREAS at a meeting held at Brussels in October, 1923, the rules contained in the said draft convention were amended by the Committee appointed by the said Conference;

AND WHEREAS provision has been made by the Carriage of Goods by Sea Act, 1924 (14 & 15 Geo, 5, c. 22.), that the said rules as so amended and as set out with modifications in the Schedule shall, subject to the provisions of that Act, have the force of law with a view to establishing the responsibilities, liabilities, rights and immunities attaching to carriers under bills of lading;

AND WHEREAS it is expedient that like provision should be made in [1][Pakistan]; it is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the [2][*] Carriage of Goods by Sea Act, 1925.

[1][(2) It extends to the whole of Pakistan.]

2. Application of Rules.—Subject to the provisions of this Act, the rules set out in the schedule (hereinafter referred to as "the Rules") shall have effect in relation to and in connection with the carriage of goods by sea in ships carrying goods from any port in [1][Pakistan] to any other port whether in or outside [1][Pakistan].

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3. Absolute warranty of sea worthiness not to be implied in contracts to which Rules apply.—There shall not be implied in any contract for the carriage of goods by sea to which the Rules apply any absolute undertaking by the carrier of the goods to provide a seaworthy ship.

4. Statement as to application of Rules to be included in bills of lading.—Every bill of lading, or similar document of title, issued in [1][Pakistan] which contains or is evidence of any contract to which the Rules apply, shall contain an express statement that it is to have effect subject to the provisions of the said Rules as applied by this Act.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[2]Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.

5. Modification of Article VI of Rules in relation to goods carried in sailing ships and by prescribed routes.—Article VI of the Rules shall, in relation to —

(a) the carriage of goods by sea in sailing ships carrying goods from any port in [1][Pakistan] to any other port whether in or out side [1][Pakistan], and

(b) the carriage of goods by sea in ships carrying goods from a port in [1][Pakistan] notified in this behalf in the [2][official gazette] by the [3][Federal Government] to a port [4][in] [5][India or Ceylon] specified in the said notification,

have effect as though the said Article referred to goods of any class instead of to particular goods and as though the proviso to the second paragraph of the said Article were omitted.

6. Modification of Rules 4 and 5 of Article III in relation to bulk cargoes.—Where under the custom of any trade the weight of any bulk cargo inserted in the bill of lading is a weight ascertained or accepted by a third party other than the carrier or the shipper and the fact that the weight is so ascertained or accepted is stated in the bill of lading, then, notwithstanding anything in the Rules, the bill of lading shall not be deemed to be *prima facie* evidence against the carrier of the receipt of goods of the weight so inserted in the bill of lading, and the accuracy thereof at the time of shipment shall not be deemed to have been guaranteed by the shipper.

7. Saving and operation.— (1) Nothing in this Act shall affect the operation of sections four hundred and forty six to four hundred and fifty, both inclusive, five hundred and two, and five hundred and three of the Merchant Shipping Act, 1894 (57 & 58 Vict, c. 60.), as amended by any subsequent enactment, or the operation of any other enactment for the time being in force limiting the liability of the owners of sea-going vessels.

(2) The Rules shall not by virtue of this Act apply to any contract for the carriage of goods by sea, before such day, not being earlier than the first day of January, 1926, as the [3][Federal Government] may, by notification in the [2][official Gazette], appoint, nor to any bill of lading or similar document of title issued, whether before or after such day as aforesaid, in pursuance of any such contract as aforesaid.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[2]Subs. by Adaptation Order, 1937.
[3]Subs. by the Federal Adaptation of laws Order, 1975 (P. O. No. 4 of 1975), Art. 2and Table.
[4]Ins. by Adaptation Order, 1961, Art. 2 and Sch. (*with effect from the 23rd march, 1956*).
[5]Subs. by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949).

SCHEDULE

RULES RELATING TO BILLS OF LADING

ARTICLE I

Definitions

In these Rules the following expressions have the meanings hereby assigned to them respectively, that is to say—

(a) "Carrier" includes the owner or the charterer who enters into a contract of carriage with a shipper :

(b) "Contract of carriage" applies only to contracts of carriage covered by a bill of lading or any similar document of title, in so far as such document relates to the carriage of goods by sea including any bill of lading or any similar document as aforesaid issued under or pursuant to a charter party from the moment at which such bill of lading or similar document of title regulates the relation between a carrier and a holder of the same :

(c) "Goods" includes goods, wares, merchandises, and articles of every kind whatsoever, except live animals and cargo which by the contract of carriage is stated as being carried on deck and is so carried:

(d) "Ship" means any vessel used for the carriage of goods by sea :

(e) "Carriage of goods" covers the period from the time when the goods are loaded on to the time when they are discharged from the ship.

ARTICLE II

Risks

Subject to the provisions of Article VI, under every contract of carriage of goods by sea the carrier, in relation to the loading, handling, stowage, carriage, custody, care, and discharge of such goods, shall be subject to the responsibilities and liabilities, and entitled to the rights and immunities hereinafter set forth.

ARTICLE III

Responsibilities and Liabilities

1. The carrier shall be bound, before and the beginning of the voyage, to exercise due diligence to —

(a) make the ship seaworthy:

(b) properly man, equip, and supply the ship:

(c) make the holds, refrigerating and cool chambers, and all other parts of the ship in which goods are carried, fit and safe for their reception, carriage and preservation.

2. Subject to the provisions of Article IV, the carrier shall properly and carefully load, handle, stow, carry, keep, care for and discharge the goods carried.

3. After receiving the goods into his charge, the carrier, or the master or agent of the carrier, shall on demand of the shipper, issue to the shipper a bill of lading showing among other things—

(a) The leading marks necessary for identification of the goods as the same are furnished in writing by the shipper before the loading of such goods start, provided such marks are stamped or otherwise shown clearly upon the goods if uncovered, or on the cases or coverings in which such goods are contained, in such a manner as should ordinarily remain legible until the end of the voyage:

(b) Either the number of packages or pieces, or the quantity, or weight, as the case may be, as furnished in writing by the shipper:

(c) The apparent order and condition of the goods:

Provided that no carrier, master or agent of the carrier, shall be bound to state or show in the bill of lading any marks, number, quantity, or weight which he has reasonable ground for suspecting not accurately to represent the goods actually received, or which he has had no reasonable means of checking.

4. Such a bill of lading shall be *prima facie* evidence of the receipt by the carrier of the goods as therein described in accordance with paragraph 3 (a), (b) and (c).

5. The shipper shall be deemed to have guaranteed to the carrier the accuracy at the time of shipment of the marks, number, quantity, and weight, as furnished by him, and the shipper shall indemnify the carrier against all loss, damages, and expenses arising or resulting from inaccuracies in such particulars. The right of the carrier to such indemnity shall in no way limit his responsibility and liability under the contract of carriage to any person other than the shipper.

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6. Unless notice of loss or damage and the general nature of such loss or damage be given in writing to the carrier or his agent at the port of discharge before or at the time of the removal of the goods into the custody of the person entitled to delivery thereof under the contract of carriage, or, if the loss or damage b not apparent, within three days, such removal shall be *prima facie* evidence of the delivery by the carrier of the goods as described in the bill of lading.

The notice in writing need not be given if the state of the goods has at the time of their receipt been the subject of joint survey or inspection.

In any event the carrier and the ship shall be discharged from all liability in respect of loss or damage unless suit is brought within one year after delivery of the goods or the date when the goods should have been delivered.

In the case of any actual or apprehended loss or damage, the carrier and the receiver shall give all reasonable facilities to each other for inspecting and tallying the goods.

7. After the goods are loaded the bill of lading to be issued by the carrier, master or agent of the carrier, to the shipper shall, if the shipper so demands, be a "shipped" bill of lading, provided that, if the shipper shall have previously taken up any document of title to such goods, he shall surrender the same as against the issue of the "shipped" bill of lading, but at the option of the carrier, such document of title may be noted at the port of shipment by the carrier, master, or agent with the name or names of the ship or ships upon which the goods have been shipped and the date or dates of shipment, and when so noted the same shall for the purpose of this Article be deemed to constitute a "shipped" bill of lading.

8. Any clause, covenant or agreement in a contract of carriage relieving the carrier or the ship from liability for loss or damage to or in connection with goods arising from negligence, fault or failure in the duties and obligations provided in this Article or lessening such liability otherwise than as provided in these Rules, shall be null and void and of no effect.

A benefit of insurance or similar clause shall be deemed to be a clause relieving the carrier from liability.

ARTICLE IV

Rights and Immunities

1. Neither the carrier nor the ship shall be liable for loss or damage arising or resulting from unseaworthiness unless caused by want of due diligence on the part of the carrier to make the ship seaworthy, and to secure that the ship is properly manned, equipped and supplied, and to make the holds, refrigerating and cool chambers and all other parts of the ship in which goods are carried fit and safe for their reception, carriage and preservation in accordance with the provisions of paragraph I of Article III.

Whenever loss or damage has resulted from unseaworthiness, the burden of proving the exercise of due diligence shall be on the carrier or other person claiming exemption under this section.

2. Neither the carrier nor the ship shall be responsible for loss or damage arising or resulting from —

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(a) act, neglect, or default of the master, mariner, pilot, or the servants of the carrier in the navigation or in the management of the ship:

(b) fire, unless caused by the actual fault or privity of the carrier:

(c) perils, dangers and accidents of the sea or other navigable waters :

(d) act of God:

(e) act of war:

(f) act of public enemies:

(g) arrest or restraint of prices, rules or people, or seizure under legal process :

(h) quarantine restriction:

(i) act or omission of the shipper or owner of the goods his agent, or representative :

(j) strikes or lock-outs or stoppage or restraint of labour from whatever cause, whether partial or general :

(k) riots and civil commotions :

(l) saving or attempting to save life or property at sea :

(m) wastage in bulk or weight or any other loss or damage arising from inherent defect, quality, or vice of the goods :

(n) insufficiency of packing :

(o) insufficiency or inadequacy of marks :

(p) latent defects not discoverable by due diligence :

(q) any other cause arising without the actual fault or privity of the carrier, or without the fault or neglect of the agents or servants of the carrier, but the burden of proof shall be on the person claiming the benefit of this exception to show that neither the actual fault or privity of the carrier not the default or neglect of the agents or servants of the carrier contributed to the loss or damage.

3. The shipper shall not be responsible for loss or damage sustained by the carrier or the ship arising or resulting from any cause without the act, fault or neglect of the shipper, his agents or his servants.

4. Any deviation in saving or attempting to save life or property at sea, or any reasonable deviation shall not be deemed to be an infringement or breach of these Rules or of the contract of carriage, and the carrier shall not be liable for any loss or damage resulting therefrom.

5. Neither the carrier nor the ship shall in any event be or become liable for any loss or damage to or in connection with goods in an amount exceeding 100/- per package or unit, or the equivalent of that sum in other currency, unless the nature and value of such goods have been declared by the shipper before shipment and inserted in the bill of lading.

This declaration if embodied in the bill of lading shall be *prima facie* evidence, bull shall not be binding or conclusive on the carrier.

By agreement between the carrier, master or agent of the carrier and the shipper another maximum amount than that mentioned in this paragraph may be fixed, provided that such maximum shall not be less than figure above named.

Neither the carrier nor the ship shall be responsible in any event for loss or damage to or in connection with goods if the nature or value thereof has been knowingly mis-stated by the shipper in the bill of lading.

6. Goods of an inflammable, explosive or dangerous nature to the shipment whereof the carrier, master or agent of the carrier, has not consented, with knowledge of their nature and

character, may at any time before discharge be landed at any place or destroyed or rendered innocuous by the carrier without compensation, and the shipper of such goods shall be liable for all damages and expenses directly or indirectly arising out of or resulting from such shipment.

If any such goods shipped with such knowledge and consent shall become a danger to the ship or cargo, they may in like manner be landed at any place or destroyed or rendered-innocuous by the carrier without liability on the part of the carrier except to general average, if any.

ARTICLE V

Surrender of Rights and Immunities, and Increase of Responsibilities and Liabilities.

A carrier shall be at liberty to surrender in whole or in part all or any of his rights and immunities or to increase any of his responsibilities and liabilities under the Rules contained in any of these Articles, provided such surrender or increase shall be embodied in the bill of lading issued to the shipper.

The provisions of these Rules shall not be applicable to charterparties, but if bills of lading are issued in the case of a ship under a charter party they shall comply with the terms of these Rules. Nothing in these Rules shall be held to prevent the insertion in a bill of lading of any lawful provision regarding general average.

ARTICLE VI

Special Conditions

Notwithstanding the provisions of the preceding Articles, a carrier, master or agent of the carrier, and a shipper shall in regard to any particular goods be at liberty to enter into any agreement in any terms as to the responsibility and liability of the carrier for such goods, and as to the rights and immunities of the carrier in respect of such goods, or his obligation as to seaworthiness, so far as this stipulation is not contrary to public policy, or the care or diligence of his servants or agents in regard to the loading, handling, stowage, carriage, custody, care, and discharge of the goods carried by sea, provided that in this case no bill of lading has been or shall be issued and that the terms agreed shall be embodied in a receipt which shall be a non-negotiable document and shall be marked as such.

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Any agreement so entered into shall have full legal effect :

Provided that this Article shall not apply to ordinary commercial shipments made in the ordinary course of trade, but only to other shipments where the character or condition of the property to be carried or the circumstances, terms and conditions under which the carriage is to be performed, are such as reasonably to justify a special agreement.

ARTICLE VII

Limitations on the Application of the Rules

Nothing herein contained shall prevent a carrier or a shipper from entering into any agreement, stipulation, condition, reservation or exemption as to the responsibility and liability of the carrier or the ship for the loss or damage to or in connection with the custody and care and handling of goods prior to the loading on and subsequent to the discharge from the ship on which the goods are carried by sea.

ARTICLE VIII

Limitation of Liability

The provisions of these Rules shall not affect the rights and obligations of the carrier under any Statute for the time being in force relating to the limitation of the liability of owners of sea-going vessels.

ARTICLE IX

The monetary units mentioned in these Rules are to be taken to be gold value.

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THE PAKISTAN CODE

Date: 03-02-2025

THE CARRIERS ACT, 1865

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PREMABLE

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2. Interpretation clause
3. Carriers not to be liable for loss of certain goods above one hundred rupees in value, unless delivered as such
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5. The person entitled to recover in respect of property lost or damaged may also recover money paid for its carriage
6. In respect of what property liability of carrier not limited or affected by public notice. Carriers, with certain exceptions, may limit liability by special contract
7. Liability of owner of railroad or tramroad constructed under Act XXII of 1863, not limited by special contract
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9. Plaintiffs, in suits for loss, damage, or non-delivery, not required to prove negligence or criminal act
10. Notice of loss or injury to be given within six months
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SCHEDULE

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THE CARRIERS ACT, 1865

[1]Act No. III OF 1865

[*14th February,* 1865]

An Act relating to the rights and liabilities of Common Carriers

Premable. WHEREAS it is expedient not only to enable common carriers to limit their liability for loss of or damage to property delivered to them to be carried but also to declare their liability for loss of or damage to such property occasioned by the negligence or criminal acts of themselves, their servants or agents; It is enacted as follows:—

1. Short title. This Act may be cited as the Carriers Act, 1865.

2. Interpretation clause. In this Act, unless there be something repugnant in the subject or context—

"Common carrier." "common carrier" denotes a person, other than the Government, engaged in the business of transporting for hire property from place to place, by land or inland navigation, for all persons indiscriminately:

[1]**"Person."** "person" includes any association or body of persons, whether incorporated or not.

[2][* * * * * * *]

3. Carriers not to be liable for loss of certain goods above one hundred rupees in value, unless delivered as such. No common carrier shall be liable for the loss of or damage to property delivered to him to be carried exceeding in value one hundred rupees and of the description contained in the Schedule to this Act, unless the person delivering such property to be carried, or some person duly authorized in that behalf, shall have expressly declared to such carrier or his agent the value and description thereof[3].

4. For carrying such property payment may be required at rates fixed by carrier. Every such carrier may require payment for the risk undertaken in carrying property exceeding in value one hundred rupees and of the description aforesaid, at such rate of charge as he may fix:

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[1]For Statement of Objects and Reasons, *see* Gazette of India, Extraordinary, dated 1st August, 1864 and for Proceedings relating to the Bill, *see ibid.*, Supplement, p. 497, and ibid., 1865, pp. 51, 64 and 65.

The Act has been declared to be in force in all the Provinces and the Capital of the Federation, except the Scheduled Districts, by the Laws Local Extent Act, 1874 (15 of 1874), s. 3.

It has been declared, by notification under s. 3(a) of the Scheduled Districts Act, 1874 (14 of 1874), to be in force in the following Scheduled Districts, namely:—

Sind. . . . . *See* Gazette of India, 1880, Pt. I. p. 672.

The Districts of Hazara, Peshawar, Kohat, Bannu, Dera Ismail Khan and Dera Ghazi Khan. *[Portions of the Districts of Hazara. Bannu. Dera Ismail Khan and Dera Ghazi Khan and the Districts of Peshawar and Kohat now form the N.W,F.P., see Gazette of India,* 1901, *Pt. I, p.* 857, and *ibid.*, 1902, *Pt. I, p.* 575].

It has also been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; and extended to the Excluded Area of Upper Tanawal N.W.F.P., other than Phulera with effect from such date and subject to such modifications as may be notified, *see* N.W.F.P. (Upper Tanawal) (excluded Area) Laws Regulation, 1950.

It has been rep. as to carriers by rail by the Indian Railways Act, 1879 (4 of 1879). For the Railway Act now in force, *see* the Railways Act, 1890 (9 of 1890).

[2]*Cf.* definition in s. 3(39) of the General Clauses Act, 1897 (10 of 1897).

[3]The paragraph relating to "number" was rep. by the Repealing and Amending Act, 1914 (10 of 1914).

[4]The earlier sections extend to Pakistan the principle embodied in the Carriers Act, 1830 (11 Geo. IV & I Wm. IV, c. 68). *See* Statement of Objects and Reasons quoted above.

Proviso. Provided that, to entitle such carrier to payment at a rate higher than his ordinary rate of charge, he shall have caused to be exhibited in the place where he carries on the business of receiving property to be carried, notice of the higher rate of charge required, printed or written in English and in the vernacular language of the country wherein he carries on such business.

5. The person entitled to recover in respect of property lost or damaged may also recover money paid for its carriage. In case of the loss or damage to property exceeding in value one hundred rupees and of the description aforesaid, delivered to such carrier to be carried, when the value and description thereof shall have been declared and payment shall have been required in manner provided for by this Act, the person entitled to recover in respect of such loss or damage shall also be entitled to recover any money actually paid to such carrier in consideration of such risk as aforesaid.

6. In respect of what property liability of carrier not limited or affected by public notice. Carriers, with certain exceptions, may limit liability by special contract. The liability of any common carrier for the loss of or damage to any property delivered to him to be carried, not being of the description contained in the Schedule to this Act, shall not be deemed to be limited or affected by any public notice; but any such carrier, not being the owner of a rail road or tram road constructed under the provisions of [1][the Land Acquisition Act, 1894.] I of 1984.

may, by special contract, signed by the owner of such property so delivered as last aforesaid or by some person duly authorized in that behalf by such owner, limit his liability in respect of the same.

[2]**7. Liability of owner of railroad or tramroad constructed under Act XXII of 1863, not limited by special contract. In what case owner of railroad or tramroad answerable for loss or damage.** The liability of the owner of any railroad or tramroad constructed under the provisions of the [1][Land Acquisition Act, 1894 (I of 1894).] for the loss of or damage to any property delivered to him to be carried, not being of the description contained in the Schedule to this Act, shall not be deemed to be limited or affected by any special contract; but the owner of such railroad or tramroad shall be liable for the loss of or damage to property delivered to him to be carried only when such loss or damage shall have been caused by negligence or a criminal act on his part or on that of his agents or servants.

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8. Common carrier liable for loss or damages caused by neglect or fraud of himself or his agent. Notwithstanding anything hereinbefore contained, every common carrier shall be liable to the owner for loss of or damage to any property delivered to such carrier to be carried where such loss or damage shall have arisen from the [3]* * criminal act of the carrier or any of his agents or servants [4][and shall also be liable to the owner for loss or damage to any such property other than property to which the provisions of section 3 apply and in respect of which the declaration required by that section has not been made, where such loss or damage has arisen from the negligence of the carrier or any of his agents or servants].

9. Plaintiffs, in suits for loss, damage, or non-delivery, not required to prove negligence or criminal act. In any suit brought against a common carrier for the loss, damage or non-delivery of goods entrusted to him for carriage, it shall not be necessary for the plaintiff to prove that such loss, damage or non-delivery was owing to the negligence or criminal act of the carrier, his servants or agents.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and II Sch., for certain words.
[2]S. 7 (so far as it relates to railways) has been rep. by the Railways Act, 1890 (9 of 1890), s. 72.
[3]The words "negligence or" rep. by the Carriers (Amendment) Act, 1921 (13 of 1921), s. 2.
[4]Ins. *ibid.*

[1]**[10. Notice of loss or injury to be given within six months.** No suit shall be instituted against a common carrier for the loss of, or injury to, goods entrusted to him for carriage, unless notice in writing of the loss or injury has been given to him before the institution of the suit and within six months of the time when the loss or injury first came to the knowledge of the plaintiff.]

[2]**[11. Power to Provincial Government to add to the Schedule.** The [3][Federal Government or the] [4][Provincial Government] may, by notification in the [5][official Gazette], add to the list of articles contained in the Schedule to this Act, and the Schedule shall, on the issue of any such notification, be deemed to have been amended accordingly.]

SCHEDULE

Gold and Silver coin.

Gold and silver in a manufactured or unmanufactured state.

Precious stones and pearls.

Jewellery.

Time pieces of any description.

Trinkets.

Bills and hundis.

Currency notes of the [6][Federal Government] or notes of any Banks, or securities for payment of money, English or Foreign.

Stamps and stamped paper.

Maps, prints, and works of art.

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Writings.

Title-deeds.

Gold or silver plate or plated articles.

Glass.

China.

Silk in a manufactured or unmanufactured state, and whether wrought up or not wrought up with other materials.

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[1]Ins. by the Indian Carriers Act, 1899 (10 of 1899), s. 2. The original section was rep. by the Railways Act, 1890 (9 of 1890).
[2]Ins. by Act 13 of 1921, s. 3.
[3]Ins. by Ordinance 27 of 1981, s. 3 and II Sch.
[4]Subs. by A. O., 1937, for "G. G. in C.".
[5]Subs. *ibid.*, for "Gazette of India".
[6]Subs. by F.A.O., 1975. Art. 2 and Sch., for "Central Government" which was previously subs. by A.O., 1937, for "G. of I", to read as above.

Shawls and lace.

Cloths and tissues embroidered with the precious metals or of which such metals form part.

Articles of ivory, ebony or sandal wood.

[1][Art pottery and all articles made of marble.

Furs.

Government securities.

Opium.

Coral.

Musk, *Itr*, Sandal wood oil, and other essential oils used in the preparation of *itr* or other perfumes.

Musical and scientific instruments.

Feathers.

Narcotic preparations of hemp.

Crude India-rubber.

Jade, Jade-stone and amber.

Gooroochand or Gooroochandan.

Cinematograph films and apparatus.

Zahir Mohra Khatai.]

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Date: 13-09-2024

[1]Ins. by Notification No. 5299, dated 14th October, 1922, *see* Gazette of India, 1922, Pt. I, p. 1235.

THE CASTE DISABILITIES REMOVAL ACT, 1850

CONTENTS

1. Law or usage which inflicts forfeiture of, effects, rights on change of religion or loss of caste to cease to be enforced

THE PAKISTAN CODE

[1][THE CASTE DISABILITIES REMOVAL ACT, 1850]

ACT No. XXI OF 1850

[11th April, 1850]

An Act for extending the principle of section 9, Regulation VII, 1832, of the Bengal Code throughout the Territories subject to the Government of the East India Company.

WHEREAS it is enacted by section 9, Regulation VII, 1832, of the Bengal Code[2], that "whenever in any civil suit the parties to such suit may be of different persuasions, when one party shall be of the Hindu and the other of the Muhammadan persuasion, or where one or more of the parties to the suit shall not be either of the Muhammadan or Hindu persuasions, the laws of those religions shall not be permitted to operate to deprive such party or parties of any property to which, but for the operation of such laws, they would have been entitled; and whereas it will be beneficial to extend the principle of that enactment throughout the territories subject to the Government of the East India Company; It is enacted as follows:-

1. Law or usage which inflicts forfeiture of, effects, rights on change of religion or loss of caste to cease to be enforced. So much of any law or usage now in force within the territories subject to the Government of the East India Company as inflicts on any person forfeiture of rights or property, or may be held in any way to impair or affect any right of inheritance, by reason of his or her renouncing, or having been excluded from the communion of, any religion, or being deprived of caste, shall cease to be enforced as law in the Courts of the East India Company, and in the Courts established by Royal Charter within the said territories.

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Date: 13-09-2024

[1]Short title given by the Short Titles Act, 1897 (14 of 1897).

This Act has been declared to be in force in all the Provinces and the Capital of the Federation, except the Scheduled Districts, by the Laws Local Extent Act, 1874 (15 of 1874), s. 3.

It has been declared, by notification under s. 3 (a) of Act 14 of 1874, to be in force in the following Scheduled Districts, namely :-

Sind . . . . .. See Gazette of India, 1880, Pt. I, p. 672.

The District of Peshawar, Hazara, Kohat, Bannu, Dera IsmaiI Khan and Dera Ghazi Khan, *[Portions of the Districts of Hazara, Bannu, Dera Ismail Khan and Dera Ghazi Khan and the Districts of Peshawar and Kohat, now form the N.W.F.P. See Gazette of India, 1901, Pt. I, p. 857, and ibid., 1902, Pt. I, p. 575].*

Applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications, and extended to the Excluded Area of Upper Tanawal (N. W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified–See N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.

This Act has been amended in its application to the Province of West Pakistan by the Caste Disabilities Removal (West Pakistan Amendment) Act,1963(W. Pak. Act 10 0f 1963), s.2 (with effect from the 12th July, 1963).

[2]Rep. by the Bengal Civil Courts Act, 1871 (6 of 1871), which was rep. by the Bengal North-Western Provinces and Assam Civil Courts Act, 1887 (12 of 1887).

THE CHARITABLE AND RELIGIOUS TRUSTS ACT, 1920

CONTENTS

1 Short title and extent.

2 Interpretation.

3 Power to apply to the Court in respect of trusts of a charitable or religious nature.

4 Contents and verification of petition.

5 Procedure on petition.

6 Failure of trustee to comply with order under section 5.

7 Powers of trustee to apply for directions.

8 Costs of petition under this Act.

9 Savings.

10 Power of Courts as to costs in certain suits against trustees of charitable and religious trusts.

11 Provisions of the code of Civil Procedure to apply.

12 Appeal.

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THE CHARITABLE AND RELIGIOUS TRUSTS ACT, 1920

[1]ACT No. XIV OF 1920

[20th March, 1920]

An Act to provide more effectual control over the administration of Charitable and Religious Trusts.

WHEREAS it is expedient to provide facilities for the obtaining of information regarding trusts created for public purposes of a charitable or religious nature, and to enable the trustees of such trusts to obtain the directions of a Court on certain matters, and to make special provision for the payment of the expenditure incurred in certain suits against the trustees of such trusts; It is hereby enacted as follows:

1. Short title and extent.—(1) This Act may be called the Charitable and Religious Trusts Act, 1920.

(2) It extends to [2][the whole of the Pakistan]:

Provided that the [3][Government of any Province] may, by notification in the [4][official Gazette] direct that this Act, or any specified part thereof, shall [5]not extend to [6][that Province or any specified area therein] or to any specified trust or class of trusts.

2. Interpretation. In this Act, unless there is anything repugnant in the subject or context, "the Court" means the Court of the District Judge [7][or any other Court empowered in that behalf by the [8][Provincial Government]] and includes the High Court in the exercise of its ordinary original civil jurisdiction.

3. Power to apply to the Court in respect of trusts of a charitable or religious nature. Save as hereinafter provided in this Act, any person having an interest in any express or constructive trust created or existing for a public purpose of a charitable or religious nature may apply by petition to the Court within the local limits of whose jurisdiction any substantial part of the subject matter of the trust is situate to obtain an order embodying all or any of the following directions, namely: —

(1) directing the trustee to furnish the petitioner through the Court with particulars as to the nature and objects of the trust, and of the value, condition, management and application of the subject-matter of the trust, and of the income belonging thereto, or as to any of these matters, and

[1] For Statement of Objects and Reasons, see Gazette of India, 1919 Pt. V, p. 88; for Report of Select Committee, see *ibid*., 1920, Pt. V, p. 85; and for Proceedings in Council, see *ibid*., 1919, Pt. VI, p. 879, and *ibid*.,1920, Pt. VI, pp. 49 and 787.
This Act has been rep. in the N.W.F.P by the N.W.F.P. Muslim Wakfs Act, 1947 (N.W.F.P. Act 22 of 1947), s. 37 and Sch. It has been extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera *with effect from* such date and subject to such modifications as may be notified. see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation. 1950.
[2] Subs. by Ordinance 21 of 1960, s. 3 and 2nd Sch. (*with effect from* the 14th October, 1955), for "all the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "the whole of British India".
[3] Subs. by A.O., 1937, for "G.G. in C."
[4] Subs. ibid., for "Gazette of India".
[5] For notification directing that this Act shall not extend to the N.W.F.P., see Gen. R. & O.
[6] Subs. by A.O., 1937, for "any specified Province or area".
[7] Ins. by the Charitable and Religious Trust (Amdt.) Act, 1923 (41 of 1923), s. 2.
[8] Subs. by A.O., 1937, for "L.G.".

(2) directing that the accounts of the trust shall be examined and audited:

Provided that no person shall apply for any such direction in respect of accounts relating to a period more than three years prior to the date of the petition.

4. Contents and verification of petition.—(1) The petition shall show in what way the petitioner claims to be interested in the trust, and shall specify, as far as may be, the particulars and the audit which he seeks to obtain.

(2) The petition shall be in writing and shall be signed and verified in the manner prescribed by the Code of Civil Procedure, 1908 (V of 1908), for signing and verifying plaints.

5. Procedure on petition.—(1) If the Court on receipt of a petition under section 3, after taking such evidence and making such inquiry, if any, as it may consider necessary, is of opinion that the trust to which the petition relates is a trust to which this Act applies, and that the petitioner has an interest therein, it shall fix a date for the hearing of the petition, and shall cause a copy thereof, together with notice of the date so fixed, to be served on the trustee and upon any other person to whom in its opinion notice of the petition should be given.

(2) On the date fixed for the hearing of the petition, or on any subsequent date to which the hearing may be adjourned, the Court shall proceed to hear the petitioner and the trustee, if he appears, and any other person who has appeared in consequence of the notice, or who it considers ought to be heard, and shall make such further inquiries, if any, as it thinks fit. The trustee may and, if so required by the Court, shall, at the time of the first hearing or within such time as the Court may permit, present a written statement of his case. If he does present a written statement, the statement shall be signed and verified in the manner prescribed by the Code of Civil Procedure, 1908 (V of 1908), for signing and verifying pleadings.

(3) If any person appears at the hearing of the petition and either denies the existence of the trust or denies that it is a trust to which this Act applies, and undertakes to institute within three months a suit for a declaration to that effect and for any other appropriate relief, the Court shall order a stay of the proceedings and, if such suit is so instituted, shall continue the stay, until the suit is finally decided.

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(4) If no such undertaking is given, or if after the expiry of the three months no such suit has been instituted, the Court shall itself decide the question.

(5) On completion of the inquiry provided for in sub-section (2), the Court shall either dismiss the petition or pass thereon such other order as it thinks fit:

Provided that, where a suit has been instituted in accordance with the provisions of sub-section (3), no order shall be passed by the Court which conflicts with the final decision therein.

(6) Save as provided in this section, the Court shall not try or determine any question of title between the petitioner and any person claiming title adversely to the trust.

6. Failure of trustee to comply with order under section 5.— If a trustee without reasonable excuse fails to comply with an order made under sub-section (5) of section 5, such trustee shall, without prejudice to any other penalty or liability which he may incur under any law for the time being in force, be deemed to have committed a breach of trust affording ground for a suit under the provisions of section 92 of the Code of Civil Procedure, 1908 (V of 1908); and any such suit may, so far as it is based on such failure, be instituted without the previous consent of the Advocate General.

7. Powers of trustee to apply for directions.—(1) Save as hereinafter provided in this Act, any trustee of an express or constructive trust created or existing for public purpose of a charitable or religious nature may apply by petition to the Court, within the local limits of whose jurisdiction any substantial part of the subject-matter of the trust is situate, for the opinion, advice or direction of the Court on any question affecting the management or administration of the trust property, and the Court shall give its opinion, advice or direction, as the case may be, thereon:

Provided that the Court shall not be bound to give such opinion, advice or direction on any question which it considers to be a question not proper for summary disposal.

(2) The Court on a petition under sub-section (1), may either give its opinion, advice or direction thereon forthwith, or fix a date for the hearing of the petition, and may direct a copy thereof, together with notice of the date so fixed, to be served on such of the persons interested in the trust, or to be published for information in such manner, as it thinks fit.

(3) On any date fixed under sub-section (2) or on any subsequent date to which the hearing may be adjourned, the Court, before giving any opinion, advice or direction, shall afford a reasonable opportunity of being heard to all persons appearing in connection with the petition.

(4) A trustee stating in good faith the facts of any matter relating to the trust in a petition under sub-section (1), and acting upon the opinion, advice or direction of the Court given thereon, shall be deemed, as far as his own responsibility is concerned, to have discharged his duty as such trustee in the matter in respect of which the petition was made.

8. Costs of petition under this Act.— The costs, charges and expenses of and incidental to any petition, and all proceedings in connection therewith, under the foregoing provisions of this Act, shall be in the discretion of the Court, which may direct the whole or any part of any such costs, charges and expenses to be met from the property or income of the trust in respect of which the petition is made, or to be borne and paid in such manner and by such persons as it thinks fit:

Provided that no such order shall be made against any person (other than the petitioner) who has not received notice of the petition and had a reasonable opportunity of being heard thereon.

9. Savings.— No petition under the foregoing provisions of this Act in relation to any trust shall be entertained in any of the following circumstances, namely:—

(a) if a suit instituted in accordance with the provisions of section 92 of the Code of Civil Procedure, 1908 (V of 1908), is pending in respect of the trust in question ;

(b) if the trust property is vested in the Treasurer of Charitable Endowments, the Administrator-General, the Official Trustee, or any Society registered under the Societies Registration Act, 1860 (XXI of 1860) ; or

(c) if a scheme for the administration of the trust property has been settled, or approved by any Court of competent jurisdiction, or by any other authority acting under the provision of any enactment.

[1]Certain words omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II.

10. Power of Courts as to costs in certain suits against trustees of charitable and religious trusts.—(1) In any suit instituted [1] * * * under section 92 of the Code of Civil Procedure, 1908 (V of 1908), the Court trying such suit may, if, on application of the plaintiff and after hearing the defendant and making such inquiry as it thinks fit, it is satisfied that such an order is necessary in the public interest, direct the defendant and either to furnish security for nay expenditure incurred or likely to be incurred by the plaintiff in instituting and maintaining such suit, or to deposit from any money in his hands as trustees of the trust to which the suit relates such sum as such Court considers sufficient to meet such expenditure in whole or in part.

(2) When any money has been deposited in accordance with an order made under sub-section (1), the Court may make over to the plaintiff the whole or any part of such sum for the conduct of the suit. Before making over any sum to the plaintiff, the Court shall take security from the plaintiff for the refund of the same in the event of such refund of the same in the event of such refund being subsequently ordered by the Court.

11. Provisions of the code of Civil Procedure to apply.—(1) The provisions of the Code of Civil Procedure, 1908 (V of 1908), relating to—

(a) the proof of facts by affidavit,

(b) the enforcing of the attendance of any person and his examination on oath,

(c) the enforcing of the production of documents, and

(d) the issuing of commissions,

shall apply to all proceedings under this Act, and the provisions relating to the service of summonses shall apply to the service of notices thereunder.

(2) The provisions of the said Code relating to the execution of decrees shall, so far they are applicable, apply to the execution of orders under this Act.

[**12. Appeal.—** Any person aggrieved by an order passed, or direction given under this Act, may, within ninety days of the date of such order or direction prefer an appeal to the High Court.]

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THE CHARITABLE ENDOWMENTS ACT, 1890

CONTENTS

1. Title, extent and commencement.

2. Definition.

3. Appointment and incorporation of Treasurer of Charitable Endowments.

3A. Definition of "appropriate Government", etc.

4. Orders vesting property in Treasurer.

5. Schemes for administration of property vested in the Treasurer.

6. Mode of applying for vesting orders and schemes.

7. Exercise by Governor General in Council of powers of Local Government.

8. Bare trusteeship of Treasurer.

9. Annual publication of list of properties vested in Treasurer.

10. Limitation of functions and powers of Treasurer.

11. Provisions for continuance of office of Treasurer in certain contingencies.

12. Transfer of property from one Treasurer to another.

13. Power to frame forms and make rules.

14. Indemnity to Government and Treasure.

15. Saving of provisions of the Official Trustees Act, 1913.

16. General controlling authority of Governor General in Council.

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THE CHARITABLE ENDOWMENTS ACT, 1890

[1] ACT No. VI OF 1890

[*7th March,* 1890]

An Act to provide for the Vesting and Administration of Property held in trust for charitable purposes.

WHEREAS it is expedient to provide for the vesting and administration of property held in trust for charitable purposes;

It is hereby enacted as follows :—

1. Title, extent and commencement.—(1) This Act may be called the Charitable Endowments Act, 1890.

[2][(2) It extends to the whole of Pakistan]; and

(3) It shall come into force on the first day of October, 1890.

2. Definition. In this Act, "charitable purpose" includes relief of the poor, education, medical relief and the advancement of any other object of general public utility, but does not include a purpose which relates exclusively to religious teaching or worship[3].

3. Appointment and incorporation of Treasurer of Charitable Endowments.— [4][(1) The [5][Federal Government] may appoint an officer of the Government by the name of his office to be Treasurer of Charitable Endowments for [6][Pakistan], and the Government of any Province may appoint an officer of the Government by the name of his office to be Treasurer of Charitable Endowments for the Province.]

(2) Such Treasurer shall, for the purposes of taking, holding and transferring moveable or immoveable property under the authority of this Act, be a corporation sole by the name of the Treasurer of Charitable Endowments for [7][[8][Pakistan] or, as the case may be, the Province], and, as such treasurer, shall have perpetual succession and a corporate seal, and may sue and be sued in his corporate name.

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1889, Pt. V, p. 137; for Report of the Select Committee, *see ibid*.. 1890, p. 65; and for Proceedings in Council, *see ibid*., 1889, Pt. VI, pp. 117 and 190, and *ibid*., 1890, Pt. VI, p. 37.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P. subject to certain modifications and also extended to the Excluded Area of Upper Tanawal (N. W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, *see* N. W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
This Act has been repealed in so far as it relates to charitable endowments the objects of which do not extend beyond the N.W.F.P. *see* the North- West Frontier Province Muslim Waqf Act, 1947 (22 of 1947), s. 37 and Sch.
It has been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499.
See also s. 8 of. the Charitable Funds (Regulation of Collections) Act, 1953 (31 of 1953).
[2]The existing sub-section (2) as amended by A. O., 1949, Arts. 3(2) and 4, the Burma Laws Act, 1898 (13 of 1898), s. 18 and Sch. V and Act (26 of 1951), s. 8, has been subs. by Ordinance 21 of 1960, s. 3 and 2nd Sch., (*with effect from 14th October, 1955*).
[3]*See* also s. 8 of the Charitable Funds (Regulation of Collections) Act, 1953 (31 of 1953).
[4]Subs. by A. O., 1937, for the original sub-section (1).
[5]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".
[6]Subs. by A. O., 1949, Sch., for "India".
[7]Subs. by A. O., 1937, for "the territories subject to the L.G.".
[8]Subs. by A. O., 1949, Sch; for "India".

[1]**[3A. Definition of "appropriate Government", etc**. In the subsequent provisions of this Act "the appropriate Government" means, as respects a charitable endowment, the objects of which do not extend beyond a single Province and are not objects to which the executive authority of the [2][Federal Government] extends, the Government of the Province, and as respects any other charitable endowment the [2][Federal Government.]

4. Orders vesting property in Treasurer.—(1) Where any property is held or is to be applied in trust for a charitable purpose, the [3][appropriate Government], if it thinks fit, may, on application made as hereinafter mentioned, and subject to the other provisions of this section, order, by [4]notification in the official Gazette, that the property be vested in the Treasurer of Charitable Endowments on such terms as to the application of the property or the income thereof as may be agreed on between the [3][appropriate Government] and the person or persons making the application, and the property shall thereupon so vest accordingly.

(2) When any property has vested under this section in a Treasurer of Charitable Endowments, he is entitled to all documents of title relating thereto.

[5][* * * * * * *]

(4) An order under this section vesting property in a Treasurer of Charitable Endowments shall not require or be deemed to require him to administer the property, or impose or be deemed to impose upon him the duty of a trustee with respect to the administration thereof.

5. Schemes for administration of property vested in the Treasurer.—(1) On application made as hereinafter mentioned, and with the concurrence of the person or persons making the application, the [3][appropriate Government], if it thinks fit, may settle a [6]scheme for the administration of any property which has been or is to be vested in the Treasurer of Charitable endowments, and may in such scheme appoint, by name or office, a person or persons, not being or including such Treasurer, to administer the property.

(2) On application made as hereinafter mentioned, and with the concurrence of the person or persons making the application, the [3][appropriate Government] may, if it thinks fit, modify any scheme settled under this section or substitute another scheme in its stead.

(3) A scheme settled, modified or substituted under this section shall, subject to the other provisions of this section, come into operation on a day to be appointed by the [2][appropriate Government] in this behalf, and shall remain in force so long as the property to which it relates continues to be vested in the Treasurer of Charitable Endowments or until it has been modified or another such scheme has been substituted in its stead.

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[1]Ins. by A. O., 1937.
[2]Subs, by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[3]Subs. by A. O., 1937, for "L.G.".
[4]For notifications issued under this section in conjunction with s. 5, *see* different local R. & O.
[5]Sub-section (3) rep. by A. O., 1937.
[6]For notification setting a scheme for the Administration of the Pakistan Army Endowment Fund Trust Fund, *see* Gazette of Pakistan, 1958, Pt. I, pp. 18 and 20.

(4) Such a scheme, when it comes into operation, shall supersede any decree or direction relating to the subject-matter thereof in so far as such decree or direction is in any way repugnant thereto, and its validity shall not be questioned in any Court, nor shall any Court give, in contravention of the provisions of the scheme or in any way contrary or in addition thereto, a decree or direction regarding the administration of the property to which the scheme relates:

[2][Provided that nothing in this sub-section shall be construed as precluding a Court from inquiring whether the Government by which a scheme was made was the appropriate Government.]

(5) In the settlement of such a scheme effect shall be given to the wishes of the author of the trust so far as they can be ascertained, and, in the opinion of the [1][appropriate Government], effect can reasonably be given to them.

(6) Where a scheme has been settled under this section for the administration of property not already vested in the Treasurer of Charitable Endowments, it shall not come into operation until the property has become so vested.

6. Mode of applying for vesting orders and schemes.—(1) The application referred to in the two last foregoing sections must be made,—

(a) if the property is already held in trust for a charitable purpose, then by the person acting in the administration of the trust, or, where there are more persons than one so acting, then by those persons or a majority of them; and

(b) if the property is to be applied in trust for such a purpose, then by the person or persons proposing so to apply it.

(2) For the purposes of this section the executor or administrator of a deceased trustee of property held in trust for a charitable purpose shall be deemed to be a person acting in the administration of the trust.

7. [Exercise by Governor General in Council of powers of Local Government.] Rep. by A.O., 1937.

8. Bare trusteeship of Treasurer.—(1) Subject to the provisions of this Act, a Treasurer of Charitable Endowments shall not, as such Treasurer, act in the administration of any trust whereof any of the property is for the time being vested in him under this Act.

(2) Such Treasurer shall keep a separate account of each property for the time being so vested in so far as the property consists of securities for money, and shall apply the property or the income thereof in accordance with the provision made in that behalf in the vesting order under section 4 or in the scheme, if any, under section 5, or in both those documents.

(3) In the case of any property so vested other than securities for money, such Treasurer shall, subject to any special order which he may receive from the authority by whose order the property became vested in him, permit the persons acting in the administration of the trust to have the possession, management and control of the property, and the application of the income thereof, as if the property had been vested in them.

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[1]Subs. by A. O; 1937, for "L.G.".
[2]Proviso ins. *ibid.*

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9. Annual publication of list of properties vested in Treasurer. A Treasurer of Charitable Endowments shall cause to be published annually in the [1][official Gazette], at such time as the [2][appropriate Government] may direct, a list of all properties for the time being vested in him under this Act and an abstract of all accounts kept by him under sub-section (2) of the last foregoing section.

10. Limitation of functions and powers of Treasurer.—(l) A Treasurer of Charitable Endowments shall always be a sole trustee, and shall not, as such Treasurer, take or hold any property otherwise than under the provisions of this Act, or subject to those provisions, transfer any property vested in him except in obedience to a decree divesting him of the property, or in compliance with a direction in that behalf issuing from the authority by whose order the property became vested in him.

(2) Such a direction may require the Treasurer to sell or otherwise dispose of any property vested in him, and, with the sanction of the authority issuing the direction, to invest the proceeds of the sale or other disposal of the property in any such security for money as is [3][specified in the direction], or in the purchase of immoveable property.

(3) When a Treasurer of Charitable Endowments is divested, by a direction of [4][the appropriate Government] under this section, of any property, it shall vest in the person or persons acting in the administration thereof and be held by him or them on the same trusts as those on which it was held by such Treasurer.

11. Provisions for continuance of office of Treasurer in certain contingencies. If the office held by an officer of the Government who has been appointed to be a Treasurer of Charitable Endowments is abolished or its name is changed, the [5][appropriate Government] may appoint the same or another officer of the Government by the name of his office to be such Treasurer, and thereupon the holder of the latter office shall be deemed for the purposes of this Act to be the successor in office of the holder of the former office.

[6][12. Transfer of property from one Treasurer to another. If by reason of any alteration of areas or by reason of the appointment of a Treasurer of Charitable Endowments for [7][Pakistan] or for any Province for which such a Treasurer has not previously been appointed or for any other reason it appears to the [8][Federal Government] that any property vested in a Treasurer of Charitable Endowments should be vested in another such Treasurer, that Government may direct that the property shall be so vested and thereupon it shall vest in that other Treasurer and his successors as fully and effectually for the purposes of this Act as if it had been originally vested in him under this Act .]

[9][13.Power to frame forms and make rules. [10][* * * * * * *]

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[1]Subs. by A. O., 1937, for "Local official Gazette".
[2]Subs. *ibid*., for "L.G.".
[3]Subs. by A.O., 1937, for "mentioned in section 4, sub-section (3), clause *(a), (b), (c), (d) or (e)*".
[4]Sub. *ibid*., for "the L. G. or the G. G. in C".
[5]Subs. ibid., for "L. G." which had been subs. for "G. G. in C." by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch. 1.
[6]Subs. by A.O., 1937, for the original s. 12.
[7]Subs. by A.O., 1949, Sch., for "India".
[8]Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government".
[9]Subs. by Act, 38 of 1920, s. 2 and Sch. I, for the original section 13.
[10]Sub-section (1) rep. by A.O.,1937.

(2) The [1][appropriate Government] my make rules consistent with this Act for—

(a) prescribing the fees to be paid to the Government in respect of any property vested under this Act in a Treasurer of Charitable Endowments;

(b) regulating the cases and the mode in which schemes or any modification thereof are to be published before they are settled or made under section 5;

(c) prescribing the forms in which accounts are to be kept by Treasurers of Charitable Endowments and the mode in which such accounts are to be audited; and

(d) generally carrying into effect the purposes of this Act]

14. Indemnity to Government and Treasure. No suit shall be instituted against the [2][Government] in respect of anything done or purporting to be done under this act, or in respect of any alleged neglect or omission to perform any duty devolving on the Government under this Act, or in respect of the exercise of, or the failure to exercise, any power conferred by this Act on the Government, nor shall any suit be instituted against a Treasurer of Charitable Endowments except for divesting him of property on the ground of its not being subject to a trust for a charitable purpose, or for making him chargeable with or accountable for the loss or misapplication of any property vested in him, or the income thereof, where the loss or misapplication has been occasioned by or through his wilful neglect or default.

[3]**[15. Saving of provisions of the Official Trustees Act, 1913**. Nothing in this Act shall be construed to impair the operation of the Official Trustees Act, 1913 (II of 1913)].

16. [General controlling authority of Governor General in Council.] Rep by the Devolution Act, 1920 (XXXVIII of 1920), s. 2 and Schedule. I, Pt. I.

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Date: 05-09-2024

[1]Subs. *ibid.*, for "L. G.".
[2]Subs. by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), for "Crown" which had been subs. by A.O; 1937, for "Govt.".
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for the existing section 15, which was amended by A. O., 1949 and Act 2 of 1913.

THE CHARITABLE FUNDS (REGULATION OF COLLECTIONS) ACT, 1953

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THE CHARITABLE FUNDS (REGULATION OF COLLECTIONS) ACT, 1953

[1]ACT NO. XXXI OF 1953

[3rd November, 1953]

An Act to provide for the regulation, administration and accounting of collections of charitable donations and for the prevention of frauds.

WHEREAS it is expedient to provide for the regulation, administration and accounting of collections of charitable donations and for the prevention of frauds ;

It is hereby enacted as follows :—

1. Short title, extent and commencement.— (1) This Act may be called the Charitable Funds (Regulation of Collection) Act, 1953.

(2) It extends to the [2][Karachi Division].

(3) It shall come into force at once.

2. Definitions. —In this Act, unless there is anything repugnant in the subject or the context,—

(a) "collect" and "collection" with their grammatical variations and cognate expressions mean and include appealing for, receiving, collecting and attempting to collect, whether directly or indirectly, any donations whether in money or in kind and whether form the public in a public manner or from particular individuals or otherwise, for any fund to which this Act applies ; but do not include more advice by any person not himself engaged in making the collection;

(b) "private fund" means a fund consisting of donations whether in money or in kind given by way of charity for the benefit of an individual or a family or a group of persons related to each other or connected with each other for some purpose, when the aggregate of the donation collected or to be collected in any year exceeds or is likely to exceed in value two hundred and fifty rupees but neither exceeds nor is likely to exceeds nor is likely to exceed five thousand rupees ;

(c) "charitable fund" means any fund consisting of donations whether in money or in kind given by way of charity —

[1]The Act has been applied to Baluchistan with effect on and from the 3rd day of November, 1953, see Gaz. of P., 1955, Pt. I, p. 28; and also extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order 1950 (G.G.O. 3 of 1950).
The Act has been amended in its application to the Province of West Pakistan by W.P. Act II of 1967.
[2]Subs. by A.O., 1964, Art. 2 and Sch.

(i) for the benefit of an individual or a family or a group of persons related to each other or connected with each other for some purpose, when the aggregate of the donations collected or to be collected in any year exceeds or is likely to exceed in value five thousand rupees ; or

(ii) for the benefit of any institution, association, society or undertaking of which the sole or a principal object is the establishment or maintenance or benefit of a mosque, dargah, orphanage, widows' home, educational institution or other similar establishment, or the relief of poverty, sickness or distress or any other educational, religious, benevolent or philanthropic purpose ;

(d) "promoter" fund of a means a person holding himself responsible for the due collection, custody, administration and accounting of the donations which it is intended or proposed to make for a private or a charitable fund;

(e) "collector" of a fund means a person actually engaged in collecting donations for a private or a charitable fund ;

(f) "recipient" of a fund means an individual, institution, association, society or undertaking for whose benefit a private or a charitable fund is or is to be collected;

(g) "declaration" means a declaration duly made as prescribed by the promoter or promoters of a private or a charitable fund and in force under the rules made under this Act, and stating:—

(i) the names and addresses of the promoters of the fund ;

(ii) the value of the donations which it is intended to collect ;

(iii) the names and addresses of the collectors of the fund ;

(iv) the names and addresses of the recipients of the fund :

(v) the objects and purpose for which the donations are to be utilized;

(vi) the names of the banks or the persons in whose custody the collections are to be kept ;

[1][(gg) "Commissioner" means the Commissioner of the Karachi Division ;]

(h) "sanctioning authority" means a person appointed by the [1][Commissioner] to be a sanctioning authority for the purpose of this Act ;

(i) "prescribed" means prescribed by rules made under this Act.

[1]Subs. by A.O., 1964, Art. 2 and sch.

3. Regulation of private and charitable funds.— (1) No person shall make any collection for any private fund or any charitable fund except in accordance with the provisions of this Act.

(2) Nothing in this Act shall apply to any donation made directly to any individual or individuals for the personal benefit of such individual or individuals.

4. Declarations of collections of private funds.— (1) No person shall make any collection for any private fund unless—

(a) before the commencement of the collection a declaration in respect of the private fund has been duly made in the prescribed form and been duly delivered by hand or by registered post, acknowledgement due, to the sanctioning authority, and

(b) his name and address is duly shown as a promoter or collector of the fund in the declaration.

5. Sanctioning of collection of charitable funds.— (1) No person shall make any collection for any charitable fund unless before the commencement of the collection a declaration in respect of the intended collection has been duly made and delivered to the sanctioning authority, and the sanctioning authority has sanctioned the collection in writing.

(2) The sanctioning authority may refuse to sanction the collection if the object of the collection appears to it to be immoral or contrary to public policy, or if the authority is not satisfied with regard to the bona fides of the persons proposing to make the collection, or if the authority is not satisfied with regard to the proper custody of the fund or the due administration of the fund for the purpose for which it is to be collected.

(3) The sanctioning authority may sanction the collection on such conditions as it may consider it necessary to impose for ensuring the proper custody of the fund and its due administration and utilization for the objects and purposes of the fund.

(4) When the collection of any fund is intended to be for the benefit of an institution, association, society or undertaking, the sanctioning authority, if it considers it necessary, may sanction the collection on the condition that the institution, association, society or undertaking shall be registered under the Societies Registration Act, 1860 (XXI of 1860), either before the commencement of the collection or within a specified period.

(5) If the sanctioning authority sanctions the collection, it shall issue or cause to be issued certificates, in the form and manner prescribed, to persons desirous of making the collection, authorising them to make the collection ; provided that the sanctioning authority may refuse to issue or to cause to be issued any such certificate, and may cancel any certificate which has been issued, to any person, if the sanctioning authority is not satisfied with regard to the bona fides of the person.

(6) No person shall collect any donation for any charitable fund unless he is in possession of a certificate duly issued to him and in force under sub-section (5) authorising him to make the collection.

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6. Maintenance and audit of accounts.— (1) Every promoter, collector and recipient of every fund or donation to which this Act applies shall maintain or cause to be maintained a true and proper account in the prescribed manner of the fund or donation collected.

(2) The accounts of all charitable funds shall be audited and submitted to the sanctioning authority in the prescribed manner and at prescribed times or intervals.

(3) The sanctioning authority may at any time for reasons to be stated in writing require by order any accounts of any charitable fund to be audited or re-audited by a specified auditor at the cost of any particular individual or individuals.

(4) The sanctioning authority may at any time inspect or cause to be inspected any accounts maintained under this section.

(5) Any person who dishonestly or frequently tampers with, conceals or destroys any records pertaining to the collection of any fund to which this Act applies shall be deemed to have contravened this Act and be punishable accordingly.

7. Misapplication of Funds.— (1) No part of any donations collected for any private or charitable fund shall be used for any purpose or object other than the purpose or object for which it was collected, except under the order of a competent court, or in the case of a charitable fund, of the Treasurer of Charitable Endowments.

(2) No charitable fund in the custody of any persons authorised to hold it shall be transferred to any other persons except with the permission in writing of the sanctioning authority or under the order of a court.

(3) If any part of any donations collected for any private or charitable fund is used to any purpose or object other than that for which it was collected, or is otherwise misapplied or misappropriated in any manner, every person concerned with the collection or administration of the fund, whether as a promoter, collector or a recipient, shall unless he proves that the misuse, misapplication or misappropriation accurred without his knowledge and that he had used all due diligence to prevent such misuse, misapplication or misappropriation, shall be deemed to have acted in contravention of this section and be punishable accordingly.

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8. Application of Act VI of 1890. —Notwithstanding anything contained in the Charitable Endowments Act, 1890, hereinafter referred to as "the said Act" every fund which is a charitable fund for the purposes of this Act shall be deemed to be a charitable endowment and the purpose of every such fund shall be deemed to be a charitable purpose for the purposes of the said Act, and the said Act shall apply accordingly.

9. Powers of sanctioning authority. —The sanctioning authority may at any time for reasons appearing to it to be sufficient cancel or alter any order made or direction given by it under this Act.

10. Appellate authority. —(1) The [1][Commissioner] may appoint a person to be the appellate authority for the purposes of this Act, and when there is no person so appointed, the [1][Commissioner] shall himself be the appellate authority.

[1]Subs. by A.O., 1964, Art. 2 and Sch.

(2) Any person who is dissatisfied with any order passed or direction given or refusal to make any order or give any direction by the sanctioning authority, may within thirty days of the order, direction or refusal, appeal against it to the appellate authority, and the appellate authority may thereupon make such order as it thinks fit in accordance with this Act.

11. Revision. —The [1][Commissioner] and when the order sought to be revised is passed by the [1][Commissioner] the [2][Provincial Government] may at any time revise any order made by the appellate authority or otherwise under this Act and pass such order in accordance with this Act as it deems proper.

12. Penalty for contraventions. —Any person who acts in contravention of any of the provisions of this Act or the rules made thereunder or of any order made, direction given or condition imposed under this Act shall be punished with imprisonment of either description for a term which may extend to six months or with fine or with both.

13. Offences cognizable, bailable and non-compoundable. —An offence punishable under this Act shall be cognizable, bailable and non-compoundable.

14. Prosecution subject to sanction by District Magistrate. —No prosecution under this Act shall be commences except with the previous sanction of the District Magistrate.

15. Jurisdiction of Magistrates. —No court inferior to that of a magistrate of the first class shall try an offence under this Act.

16. Application of other laws. —Save as provided, the provisions of this Act shall be in addition to and not in derogation of any other law for the time being in force.

17. Exemptions. —The [1][Commissioner] may by a general or a special order exempt any fund or any person, institution, association, society or undertaking from all or any of the provisions of this Act, and the exemption may be made subject to such conditions as the [1][Commissioner] may think proper.

18. Rules.— (1) The [1][Commissioner] with the prior consent of the [2][Provincial Government] shall by notification in the official Gazette make rules to carry out the purposes of this Act.

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(2) Without prejudice to the generality of the foregoing power, the rules may provide for___

(a) the form and contents of declarations and the verification of statements made therein;

(b) the periods for which declarations shall remain in force and the manner in which the periods may be extended or terminated;

(c) the form and manner in which receipts for donations may be given and the maintenance of proper vouchers for the purposes of the accounts;

[1]Subs. by A.O., 1964, Art. 2 and Sch.
[2]Subs. ibid.

(d) the maintenance of proper books of accounts and the auditing of the accounts;

(e) the periodical submission of statements of accounts ;

(f) the supervision, inspection and examination of accounts ;

(g) the payment of charges for forms of declarations, certificates, etc.

19. Protection of persons acting under this Act. —No prosecution, suit or legal proceeding shall bi instituted against any person in respect of anything which is in good faith done or intended to be done in pursuance of this Act.

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THE CHEMICAL FERTILIZERS (DEVELOPMENT SURCHARGE) ACT, 1973

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7. Power to make rules
8. Delegation of Powers
9. [Omitted]

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THE CHEMICAL FERTILIZERS (DEVELOPMENT SURCHARGE) ACT, 1973

Act No. XLI OF 1973

[27th June, 1973]

An Act to provide for the levy and collection of a development surcharge on chemical fertilizers and for matters connected therewith.

WHEREAS it is expedient to provide for the levy and collection of a development surcharge on chemical fertilizers and for matters connected therewith;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Chemical Fertilizers (Development Surcharge) Act, 1973.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "company" means any company engaged in the business of manufacturing chemical fertilizers ;

(b) "development surcharge" means the surcharge payable under section 3;

(c) "differential margin", in relation to a chemical fertilizer, means the amount by which the maximum sale price of that fertilizer exceeds its maximum retail selling price as in force immediately before the commencement of the Chemical Fertilizers (Development Surcharge) Ordinance, 1973 (*VI of 1973*), hereinafter referred to as the said Ordinance, or, as the case may be, the amount by which its maximum sale price exceeds the aggregate of its *ex*-factory price and the incidental charges;

(d) "*ex*-factory price", in relation to a chemical fertilizer produced by a factory, means such *ex*-factory price of that fertilizer as the Federal Government may, by notification in the official Gazette, declare to be the *ex*-factory price having regard to the cost of production of such factory;

(e) "incidental charges" means the aggregate of the freight by rail or road and such distribution costs as the Federal Government may, by notification in the official Gazette, fix;

(f) "landed cost", in relation to any chemical fertilizer, means the aggregate of *c.i.f.* value, duties, taxes, fees and other charges payable on or after the import of that fertilizer into Pakistan;

(g) "maximum sale price", in relation to a chemical fertilizer, means such retail price of that fertilizer, not exceeding 125 per cent, of its landed cost, as the Federal Government may, by notification in the official Gazette, declare to be the maximum sale price.

3. Levy of development surcharge.—(1) Subject to the provisions of this Act, every company shall pay to the Federal Government a development surcharge equal to the differential margin in respect of a chemical fertilizer produced by it, including a chemical fertilizer so produced and held in stock immediately before the commencement of the [1][said Ordinance].

(2) Subject as aforesaid, every stockist shall pay to the Federal Government a development surcharge equal to the differential margin in respect of a chemical fertilizer held by him in stock immediately before commencement of the said Ordinance.

4. Power to grant exemption from payment, authorise refund and procedure for collection and refund of surcharge.—(1) Subject to such conditions, limitations or restrictions as it may think fit to impose, the Federal Government may, in such general cases as it may prescribe by rules or in particular cases by special order, exempt a company from the payment of the development surcharge in respect of all or any of the fertilizers or authorise the refund in whole or in part of the development surcharge paid by a company.

(2) Subject to any rules made under this Act, the development surcharge shall be collected in the same manner as a duty of excise leviable under the Central Excises and Salt Act, 1944 (*I of 1944*), is collected.

5. Maximum sale price.—(1) Notwithstanding anything contained in any other law, no company or stockist shall sell any chemical fertilizer at a price higher than the maximum sale price.

(2) A contravention of sub-section (1) shall be deemed to be a contravention of an order made under the [1][Price Control and Prevention of Profiteering and Hoarding Act, 1977 (XXXIX of 1977)], and all the provisions of that Act shall have effect accordingly.

6. Allowance to be made for development surcharge for purposes of income-tax.— Notwithstanding anything contained in any other law, the amount of the development surcharge paid by a company or stockist under section 3 shall be an expenditure for which allowance is to be made in computing profits or gains under [1][subsection (1) of section 23 of the Income tax Ordinance (XXXI of 1979)].

7. Power to make rules.—The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

8. Delegation of Powers.—The Federal Government may, by notification in the official Gazette, direct that all or any of its powers under this Act or the rules made thereunder shall, in such circumstances and under such conditions, if any, as may be specified in the direction, be exercised also by an officer or authority subordinate to the Federal Government.

9. [1] [Omitted]

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[1]Subs. and omitted by the Federal Laws (Revision and Declaration) Ordinance 1981 (XXVII of 1981). s. 3 and Sch. II.

THE CIVIL AVIATION ORDINANCE, 1960

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THE CIVIL AVIATION ORDINANCE, 1960

[1]ORDINANCE No. XXXII OF 1960*

[*27th July, 1960*]

An Ordinance to make better provision for the control of manufacture, possession, use, operation, sale, import and export of aircraft, the control and regulation of air transport services, and the control and development of aerodromes in Pakistan.

WHEREAS it is expedient to make better provision for the control of manufacture, possession, use, operation, sale, import and export of aircraft, the control and regulation of air transport services, and the control and development of aerodromes in Pakistan;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. **Short title, extent and application**.—(1) This Ordinance may be called the Civil Aviation Ordinance, 1960.

(2) It extends to the whole of Pakistan, and applies to all citizens of Pakistan and persons on any aircraft registered in Pakistan, wherever such citizens or persons may be, and to all persons on any aircraft while in Pakistan, [2][and to all persons carrying on any business relating to or connected with, the purposes of this Ordinance.] but nothing in this Ordinance or the rules or in any order made thereunder—

(a) shall apply to or in respect of any aircraft belonging to or exclusively employed in the naval, military or air force of Pakistan, or persons employed in connection with any such aircraft, unless the [3][Federal Government], by notification in the official Gazette, applies to any such aircraft or person, with or without modification, any of the provisions of this Ordinance or the rules; or

(b) shall apply to or in respect of any lighthouse to which the Lighthouse Act, 1927 (XVII of 1927), applies, or prejudice or affect any right or power exercisable by any authority under that Act.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "aerodrome" means any areas of land or water designed, equipped, set apart or commonly used or intended to be used, either wholly or in part, for affording facilities for the landing and departure of aircraft, and includes all buildings, sheds, vessels, piers, and other structures thereon or appertaining thereto;

[1]This Ordinance has been temporarily amended during the continuance of the Defence of Pakistan Ordinance, 1965 (23 of 1965), *see* sub-section (7) of section 7 of the said Ordinance.
*Section 1,9,12 & 12A to 12F of the Civil Aviation Ordinance, 1960 (XXXI of 1960) has been amended/inserted to the extent of F.A.T.A. by S.R.O. 1312(I)/97, dt.25-11-97.
[2]Ins. by the Civil Aviation (Amdt.) Act, 1974 (46 of 1974), s.2.
[3]Subs. by the Civil Aviation (Amdt.) Act, 1974 (46 of 1974), s.4, for "Central Government".

(b) "aircraft" means any machine which can derive support in the atmosphere from reactions of the air, and includes balloons, whether captive or free, airships, kites, gliders and flying machines;

(c) "airport" means an aerodrome at which facilities have, in the opinion of the [1][Federal Government], been sufficiently developed to be of importance to civil aviation;

(d) "air transport service" means a service of aircraft for the purpose of effecting public transport of passengers, goods, mails and other things;

(e) "commercial flying" means flying for carriage by air of any passenger, mail or goods for hire or reward and such other flying for the purposes of any trade or business as may be specified by the [1][Federal Government] and "commercial flight" shall be construed accordingly;

(f) "export" means taking out of Pakistan;

(g) "import" means bringing into Pakistan;

(h) "landing area" means the part of the movement area intended for the landing or take off run of aircraft;

(i) "prescribed" means prescribed by rules;

(j) "purposes of civil aviation" include all purposes connected with air navigation except purposes of defence by air;

(k) "rules" means the rules made under this Ordinance.

3. Power to exempt, etc. The [1][Federal Government may, by notification in the official Gazette, either exempt from all or any of the provisions of this Ordinance any aircraft or class of aircraft, and any person or class of persons, or may direct that all or any of such provisions shall apply to any aircraft or person subject to such modifications or conditions as may be specified in the notification.

4. Power to make rules to implement certain International Conventions. The [1][Federal Government] may, by notification in the official Gazette, make such rules as appear to it to be necessary for carrying out the provisions of—

(a) the Convention on International Civil Aviation signed in Chicago on the seventh day of December, 1944, and any amendments of the Convention or annex thereto made in accordance with the provisions of Article 94 of the Convention;

(b) the Convention on International Recognition of Rights in Aircraft signed in Geneva on the nineteenth day of June, 1948, and any amendment thereto;

(c) the Convention on Damage caused by Foreign Aircraft to Third Parties on the Surface signed in Rome on the seventh day of October, 1952, and any amendment thereto; and

(d) any other treaty, agreement or convention between Pakistan and any other country or any decision taken at any international body relating to civil aviation.

[1]Subs. by the Civil Aviation (Amdt.) Act, 1974 (46 of 1974),s.4, for "Central Government".

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5. Power to make rules generally.— (1) The [1][Federal Government] may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for one or more of the following matters, that is to say,—

(a) the authorities by which any of the powers conferred by or under this Ordinance are to be exercised;

(b) the regulation of air transport services and commercial flying, and the prohibition of the use of aircraft in such services and in commercial flights except under the authority of, and in accordance with, a licence authorizing the establishment of any such service or flight;

(c) the information to be furnished by an applicant for, or the holder of, a licence authorizing the establishment of an air transport service to such authorities as may be prescribed;

(d) the licensing, inspection and regulation of aerodromes or airports, the conditions under which aerodromes or airports may be maintained, and the fees which may be charged for the use of, and for services provided at, such aerodromes or airports, and the prohibition or regulation of the use of unlicensed aerodromes or airports, and the regulation of conduct of persons at aerodromes or airports or in the vicinity of aerodromes or airports;

(e) the inspection and control of the manufacture, repair and maintenance of aircraft and of places where aircraft are manufactured, repaired or kept;

(f) the registration and marking of aircraft;

(g) the conditions under which aircraft may be flown, or may carry passengers, goods, mails and other things, or may be used for industrial purposes, and the certificates, licences or documents to be carried by aircraft;

(h) the inspection or supervision of aircraft for the purpose of enforcing the provisions of this Ordinance and the rules, and the facilities to be provided for such inspection or supervision;

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(i) the conditions subject to which persons may be engaged or employed in, or in connection with, air navigation;

(j) the licensing of persons employed in the operation, manufacture, repair or maintenance of aircraft and at aerodromes or airports;

(k) the conditions under which, and the aerodromes or airports to or from which, aircraft entering or leaving Pakistan may fly, and the conditions under which aircraft may fly over Pakistan or from one place in Pakistan to another;

(l) the prohibition of flight by aircraft over any specified area, either absolutely or at specified times, or subject to specified conditions and exceptions;

[1]Subs. by the Civil Aviation (Amdt.) Act, 1974 (46 of 1974),s.4, for "Central Government".

(m) the supply, supervision and control of air-route beacons, aerodrome or airport lights, and lights at or in the neighbourhood of aerodromes or airports and on or in the neighbourhood of air-routes;

(n) the formulation and observance of uniform standards in respect of obstruction clearances for areas adjoining the landing area at aerodromes and airports;

(o) the installation and maintenance of lights on private property in the neighbourhood of aerodromes or airports and on or in the neighbourhood of air-routes, by the owners or occupiers of such property, payment by the [1][Federal Government] for such installation and maintenance, and the supervision and control of such installation and maintenance, including the right of access to the property for such purpose, and the removal of lights, radio and electrical equipment and smoke producing apparatus which may endanger the safety of aircraft in the vicinity of aerodromes or airports;

(p) the regulation and making of signals and communications by or to aircraft, and by or to persons carried therein;

(q) the measures to be taken for securing the requirements of obstruction clearances at aerodromes and airports, for the safety, efficiency and regularity of air navigation and the safety of aircraft, passengers, goods, mails and other things carried therein, and for preventing aircraft from endangering other persons and property;

(r) the prohibition or regulation of carriage in aircraft of any specified article or substance;

(s) the issue and maintenance of log-books;

(t) the manner in which and the conditions subject to which any licence or certificate may be issued under this Ordinance or the rules, the examination and tests to be undergone in connection therewith, and the form, custody, production, endorsement, cancellation, suspension or surrender of any such licence or certificate, or of any log-book;

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(u) the fees to be charged in connection with any inspection, examination, test, certificate or licence, made, issued, or renewed under this Ordinance or the rules;

(v) the recognition, for the purposes of this Ordinance, of licences and certificates issued elsewhere than in Bangladesh relating to aircraft or to the qualifications of persons employed in the operation, manufacture, repair or maintenance of aircraft;

(w) the supply, for purposes of air navigation, of meteorological information by persons engaged or employed in connection with air navigation;

(x) the regulation of the use of the civil air ensign and any other ensign established by the [1][Federal Government] in connection with air navigation;

(y) any matter subsidiary or incidental to matters referred to in this sub-section.

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[1]Subs. by the Civil Aviation (Amdt.) Act, 1974 (46 of 1974),s.4, for "Central Government".

[1]**6. Power to make orders in times of war or emergency.—** 1) In the event of war or other emergency, or in the interests of public safety or tranquility, if the [2][Federal Government] is of opinion that the issue of all or any of the following orders is expedient, it may, by notification in the official Gazette,—

(a) cancel or suspend, either absolutely or subject to such conditions as it may think fit to specify in the order, all or any of the licences or certificates issued under this Ordinance or the rules;

(b) prohibit, either absolutely or subject to such conditions as it may think fit to specify in the order, or regulate in such manner as may be specified in the order, the flight of all or any aircraft or class of aircraft over the whole or any part of Pakistan ;

[3](c) prohibit, either absolutely or conditionally, or regulate the construction, maintenance or use of any aerodrome or airport, aircraft factory, flying-school or club, or place where aircraft are manufactured, repaired or kept, or any class or description thereof; and

(d) direct that any aircraft or class of aircraft or any aerodrome or airport, aircraft factory, flying-school or club, or place where aircraft are manufactured, repaired or kept, together with any machinery, plant, material or things used for the operation, manufacture, repair or maintenance of aircraft shall be delivered forthwith or within a specified time, for being placed at the disposal of the [2][Federal Government] to such authority and in such manner as it may specify in the order.

(2) Any person who suffers direct injury or loss by reason of any order made under clause (c) of sub-section (1) or by the delivery of any aircraft or class of aircraft in pursuance of clause (d) of that sub-section, shall be paid such compensation as may be determined by such authority as the [2][Federal Government] may appoint in this behalf.

(3) Any person interested in any such aerodrome or airport, aircraft factory, flying-school or club, or place where aircraft are manufactured, repaired or kept as is delivered in pursuance of clause (d) of sub-section (1) shall be paid compensation the amount of which shall be determined in the manner and in accordance with the principles hereinafter set out, that is to say,—

(a) where the amount of compensation can be fixed by agreement, it shall be paid in accordance with such agreement;

(b) where no such agreement can be reached, the [2][Federal Government] shall appoint as arbitrator a person qualified for appointment as Judge of High Court;

(c) the [2][Federal Government] may, in any particular case, nominate a person having expert knowledge as to the nature of the property acquired, to assist the arbitrator, and where such nomination is made, the person to be compensated may also nominate an assessor for the said purpose;

[1]for order made under this section see Gaz. of P. 1965, Ext. pp 1117-1118.
[2]Subs. by the Civil Aviation (Amdt.) Act, 1974 (46 of 1974),s.4, for "Central Government".
[3]For notification under this clause, *see* Gaz. of P.,1961, Ext., p.21.

(d) at the commencement of the proceedings before the arbitrator, the [1][Federal Government] and the person to be compensated shall state what in their respective opinions is a fair amount of compensation;

(e) the arbitrator in making his award shall have regard to—

(i) the provisions *mutatis mutandis* of sub-section (1) of section 23 of the Land Acquisition Act, 1894 (I of 1894); and

(ii) the permanent or temporary nature of the acquisition;

(f) an appeal shall lie to the High Court against the award of an arbitrator except in cases where the amount thereof does not exceed the amount prescribed in this behalf;

(g) save as provided in this sub-section or the rules, nothing in any law for the time being in force shall apply to arbitrations under this sub-section.

(4) The [1][Federal Government] may authorize such steps to be taken to secure compliance with any order made under sub-section (1) as appear to it to be necessary.

(5) Whoever knowingly disobeys, fails to comply with, or does any act in contravention of an order made under sub-section (1) shall be punishable with imprisonment for a term which may extend to three years, or with fine which may extend to five thousand rupees, or with both, and the court by which he is convicted may direct that the aircraft or thing, if any, in respect of which the offence has been committed, or any part of such thing, shall be forfeited to the [1][Federal Government].

[2]**[6A. Powers of the Federal Government to prohibit or regulate construction of buildings, planting of trees, etc**.— If the Federal Government is of opinion that it is necessary or expedient for the safety or aircraft operations, it may, by notification in the Official Gazette,—

(a) direct that no building or structure shall be constructed or erected, or no tree shall be planted on any land within such radius not exceeding fifteen kilometers from the aerodrome reference point, as may be specified in the notification, and where there is any building, structure or tree on such land, also direct owner or the person having control of such building, structure or tree to demolish such building or structure or, as the case may be, to cut trees within such period as may be specified in the notification; and

(b) direct that no building or structure higher than such height as may specified in the notification shall be constructed or erected, or no tree, which is likely to grow or ordinarily grows higher than such height as may be specified in the notification, shall be planted, on any land within such radius, not exceeding fifteen kilometers from the aerodrome reference point, as may be specified in the notification and where the height or any building or structure or tree on such land is higher than the specified height also direct the owner or the person having control of such building, structure or tree to reduce the height thereof so as not to exceed the specified height, within such period as may be specified in the notification.

[1]Subs. by the Civil Aviation (Amdt.) Act, 1974 (46 of 1974),s.4, for "Central Government".
[2]Ins. by Ordinance 11 of 2001, s.2.

(2) In specifying the radius under clause (a) or clause (b) of sub-section (1) and in specifying the height of any building structure or tree under the said clause (b), the Federal Government shall have regard to,—

(a) the nature of requirement of the safety of aircraft operations;

(b) the nature of the aircraft operated or likely to be operated in the aerodrome; and

(c) the international standards and recommended practice governing the operations or aircraft.

(3) Where any notification has been issued under sub-section (1) directing the owner or the person having control or any building, structure or tree to demolish such building or structure or to cut such tree or to reduce the height or any building, structure or tree, a copy of the notification containing such direction shall be served with a notice, on the owner or the person having the control of the building, structure or tree, as the case may be,—

(a) by delivering or tendering it to such owner or person; or

(b) if it cannot be so delivered or tendered, by delivering or tendering it to any officer of such owner or persons or any adult male member of the family of such owner or person or by affixing a copy thereof on the outer door or on some conspicuous part of the premises in which such owner or person is known to have last resided or carried on business or personally worked for gain; or failing service by these means; by registered post.

(4) every person shall be bound to comply with any direction contained in the notice and the notification issued under sub-section (1).

6B. Payment of Compensation.— If in consequence of nay direction contained in any notification, issued under sub-section (1) of section 6A, any person sustains any loss or damage, such person shall be paid compensation the amount of which shall be determined in the manner and in accordance with the principles set out in clauses (a) and (g) of sub-section (3) of section 6.

6C. Arbitrator to have certain powers of civil court.— The Arbitrator appointed under sub-section (3) of section 6, while holding arbitration proceedings under this Ordinance, shall have all the powers of a civil court, while trying a suit under the Code of Civil Procedure, 1908 (Act V of 1908), in respect of the following matters, namely:—

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) requiring the discovery and production of any document;

(c) reception of evidence on affidavits;

(d) requisitioning any public record from any court or office; and

(e) issuing commissions for examination of witnesses.

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6D. Penalty for failure to comply with direction issued under section 6A.—If any person willfully fails to comply with any direction contained in any notification issued under section 6A, he shall be punishable with imprisonment for a term which may extend to six months or with fine which may extend to one lakh rupees, or with both.

(2) Without prejudice to the provisions of sub-section (1), if any person fails to demolish any building or structure or cut any tree or fails to reduce the height or any building, structure or tree in pursuance of any direction contained in any notification issued under sub-section (1) of section 6A, within the period specified in the notification, then it shall be competent for the Manager of the aerodrome, or any officer authorized by the Federal Government in this behalf, with such assistance as many be required, to demolish such building or structure or cut such tree or reduce height or such building structure or tree.

(3) If any officer authorized to take action under sub-section (2) requires police assistance in the exercise of his power thereunder, he may send requisition to the officer-in-charge of a police station who shall, on such requisition, render such assistance.]

7. Power to make rules for investigation of accidents. [1]*[Repealed]*

8. Power to detain aircraft.— (1) Any authority authorized in this behalf by the [2][Federal Government] may detain any aircraft, if in the opinion of such authority—

(a) having regard to the nature of an intended flight, the flight of such aircraft would involve danger to persons in the aircraft or to any other person or property; or

(b) such detention is necessary to secure compliance with any of the provisions of this Ordinance or the rules or to prevent a contravention of any rule made under clause (i), (j) or (k) of sub-section (2) of section 5.

(2) The [2][Federal Government] may, by notification in the official Gazette, make rules regulating all matters incidental or subsidiary to the exercise of the powers conferred by sub-section (1).

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9. Power to make rules for protecting public health. The [2][Federal Government] may, by notification in the official Gazette, make rules for the prevention of danger arising to public health by the introduction or spread of any infectious or contagious disease from aircraft arriving or being at any aerodrome or airport and for the prevention of the conveyance of infection or contagion by means of any aircraft leaving an aerodrome or airport, and in particular and without prejudice to the generality of this provision may make, with respect to aircraft and aerodromes or airports or any specified aerodrome or airport, rules providing for any of the matters for which rules under sub-clauses (i) to (viii) of clause (p) of sub-section (1) of section 6 of the Ports Act, 1908 (XV of 1908), may be made with respect to vessels and ports.

[1]Repealed by the Pakistan Air Safety Investigation Act, 2023 (L of 2023), s.43.
[2]Subs. by the Civil Aviation (Amdt.) Act, 1974 (46 of 1974),s.4, for "Central Government".

10. Emergency powers for protection public health.— (1) If the [1][Federal Government] is satisfied that Pakistan or any part thereof is visited by, or threatened with, an outbreak of any dangerous epidemic disease, and that the ordinary provisions of the law for the time being in force are insufficient for the prevention of danger arising to public health through the introduction or spread of the disease by the agency of aircraft, the [1][Federal Government] may take such measures as it deems necessary to prevent such danger.

(2) In any such case the [1][Federal Government] without prejudice to the powers conferred by section 9, may, by notification in the official Gazette, make such provisional rules with respect to aircraft and persons travelling or goods, mails and other things carried therein, and aerodromes or airports, as it deems necessary in the circumstances.

(3) Notwithstanding anything contained in section 15, the power to make rules under sub-section (2) shall not be subject to the condition of previous publication, but such rules shall not remain in force for more than three months from the date of notification:

Provided that the [1][Federal Government] may, by special order, continue them in force for a further period or periods of not more than three months in all.

11. Penalty for flying so as to cause danger. Where an aircraft is flown in such manner as may cause unnecessary danger to any person or property on land or water, the pilot or the person in charge of the aircraft, and, unless he proves to the satisfaction of the court that the aircraft was so flown without his actual fault or privity, the owner thereof, shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Explanation.— In this section "owner" in relation to an aircraft includes any person by whom the aircraft is chartered at the time the offence is committed.

12. Wreck and salvage.—(1) The provisions of Part VII of the Merchant Shipping Act, 1923 (XXI of 1923), relating to wreck and salvage shall apply to an aircraft in, on or over, the sea or in tidal waters, or on or over the shores of the sea or tidal waters as they apply to ships, and the [1][Federal Government] may, by notification in the official Gazette, make such modifications of the said provisions in their application to aircraft as appear to it to be necessary or expedient.

(2) Any services rendered in assisting or in saving life from, or in saving the cargo or apparel of an aircraft in, on or over, the sea or in tidal waters, or on or over the shores of the sea or any tidal water, shall be deemed to be salvage in cases in which they would have been salvaged had they been rendered in relation to a ship, and where services are rendered by an aircraft to any property or person, salvour shall be entitled to the same reward for those services as he would have been entitled to had the aircraft been a ship.

(3) The provisions of sub-section (2) shall have effect notwithstanding that the aircraft concerned is a foreign aircraft and that the services in question are rendered elsewhere than within the limits of the territorial waters of Pakistan.

13. Use of patent. The provisions of section 42 of the Patents and Designs Act, 1911 (II of 1911), shall apply to the use of an invention on any aircraft not registered in Pakistan in like manner as they apply to the use of an invention in a foreign vessel.

[1]Subs. by the Civil Aviation (Amdt.) Act, 1974 (46 of 1974),s.4, for "Central Government".

14. [*Power to apply Customs Procedure*.] Rep. *by the Customs Act,* 1969 (4 *of* 1969), s.220 and 2nd *Sch.*

15. Provisions relating to rules.—(1) Rules may provide that a breach of any of them shall be punishable with imprisonment for a term not exceeding [1][six months or with fine not exceeding one lakh rupees] or with both.

(2) Save as provided in sub-section (3) of section 10, any power to make rules conferred by this Ordinance is subject to the condition of previous publication, and a period of not less than three weeks shall have elapsed between such publication and the making of the rules.

[2][(3) Rules may provide that, notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), or in any other law for the time being in force, any officer specified therein may try in a summary way in accordance with the provisions in sections 262 to 265 of the Code an offence of any breach of, or failure to comply with, any rule for the safety of aircraft, passengers, goods, mails or other things carried therein or for preventing aircraft from endangering other persons or property, or to compound any such offence for a sum not exceeding [1][one lakh rupees].

(4) An officer trying an offence in accordance with the rules made under sub-section (3) shall, for the purpose of the trial, be deemed to be Magistrate of the first class [1][specially empowered under section 30 of the] Code of Criminal Procedure, 1898 (Act V of 1898), and any sentence passed by such officer shall be deemed to be a sentence passed by such Magistrate.]

[4][**15A. Delegation of powers.** The [3][Federal Government] may, by notification in the official Gazette, direct that any power conferred upon it by this Ordinance or any rules made thereunder shall, in such circumstances and subject to such conditions, if any, as may be specified in the notification, be exercised by an officer or authority so specified.]

16. Penalty for abetment of offences and attempted offences. Whoever abets the commission of any offence under this Ordinance or the rules, or attempts to commit such offence and in such attempt does any act towards the commission of the offence, shall be liable to the punishment provided for the offence.

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17. Power of court to order forfeiture. Where any person is convicted of an offence for breach of any rule made under clause (l) or clause (r) of sub-section (2) of section 5, the court by which he is convicted may direct that the aircraft or article or substance, as the case may be in respect of which the offence has been committed, shall be forfeited to the [3][Federal Government].

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[1]Subs. by the Civil Aviation (Amdt.) Act, 1974 (46 of 1974),s.3

[2]Subs-section (3) and (4) added by the Civil Aviation (Amdt.) Act, 1966 (1 of 1966),s.2.

[3]Subs. by the Civil Aviation (Amdt.) Act, 1974 (46 of 1974), s.4, for "Central Government".

[4]Ins. by the Civil Aviation (Amdt.) Ordinance, 1971 (34 of 1971),s.2.

18. Bar to certain suits. No suit shall be brought in any civil court in respect of trespass or in respect of nuisance by reason only of the flight of aircraft over any property at a height above the ground which having regard to wind, whether and all the circumstances of the case is reasonable, or by reason only of the ordinary incidents of such flight.

19. Protection of acts done in good faith. No suit, prosecution or other legal proceeding shall lie against any person for anything in good faith done or intended to be done under this Ordinance or the rules.

20. [*Repeal.*] *Rep.by the Repealing and Amending Ordinance, 1965 (10 of 1965),s.2 and 1st Sch.*

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THE CODE OF CIVIL PROCEDURE, 1908

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THE CODE OF CIVIL PROCEDURE, 1908

[1]ACT NO V OF 1908

[21st March, 1908]

An Act to consolidate and amend the laws relating to the Procedure of the Courts of Civil Judicature.

WHEREAS it is expedient to consolidate and amend the laws relating to the procedure of the Courts of Civil Judicature; It is hereby enacted as follows:—

PRELIMINARY

1. Short title, commencement and extent.— This Act may be cited as the Code of Civil Procedure, 1908.

(2) It shall come into force on the first day of January, 1909.

[2][(3) It extends to the whole of Pakistan.]

[3][(4) The primary objective of this Code is to enable the Courts to-

(a) deal the cases justly and fairly;

(b) encourage parties to alternate dispute resolution procedure if it considers appropriate;

(c) save expends and time both of Courts and litigants; and

(d) enforce compliance with provision of the Code.]

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(1) "Code" includes rules:

(2) "decree" means the formal expression of an adjudication which, so far as regards the Court expressing it, conclusively determines the rights of the parties which regard to all or any of the matters in controversy in the suit and may be either preliminary or final. It shall be deemed to include the rejection of a plaint [4][,the determination of any question within section 144 and an order under rule 60, 98, 99, 101, or 103 of Order XXI], but shall not include—

(a) any adjudication from which an appeal lies as an appeal from an order, or

(b) any order of dismissal for default.

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[1]For statement of Objects and Reasons, *see* Gazette of India, 1907 Pt.V,p.179; for Report of the Select Committee, *see ibid*., 1908, Pt.V, p. 35; and for Proceedings in Council, *see ibid*., 1907, Pt. VI. P. 135 and *ibid*., 1908, pp.8, 12 and 212.
All references in the Act to His Majesty in Council shall be construed as references to the Federal Court, *see* the Federal Court (Enlargement of Jurisdiction) Act, 1949 (1 of 1950), s.6.
The Act has been extended and shall be deemed to have been so extended on the 14th October, 1955, to the whole of Pakistan by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch.
This Act has been amended in the Punjab by the Punjab Relief of Indebtedness Act, 1934 (Punjab 7 of 1934), Pt. VIII.
It has been extended by notification under ss.5 and 5A of the Scheduled Districts Act, 1874 (14 of 1874), to the following scheduled Districts:—
(1) The Province of Sindh: Bombay Government Gazette, Extraordinary, 1909, Pt. I and Gazette of India, 1909, Pt. I, p.32.
(2) Scheduled District in the Punjab: Gazette, of India, 1909, Pt. I, P. 33.
(3) The Districts of Peshawar, Hazara, Kohat, Bannu and Dera Ismail Khan composing the N.W.F.P, : *ibid*., Pt. II, p. 80.
It has been declared to be inforce in Balochistan by the British Balcohistan Laws Regulation, 1913 (II of 1913), s. 3 and First Schedule.
It has also been extended to the Leased Areas of Balochistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O.3 of 1950); and applied in the Federated Areas of Balochistan, *see* Gaz. of India 1937, pt. I, p. 1499.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extend the Act is applicable in the N.W.F.P., *see* N.W.F.P (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has also been extended to the Excluded Area of Upper Tanawal other than Phulera by the N.W.F.P. (Upper Tanwal) Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with affect from the 1st June, 1951, *see* N.W.F.P Gazette, Extraordinary, dated the 1st June, 1951.
The Act has, with certain modification, been applied to the Provincially Administered Tribal Areas of Chitral, Dir, Kalam, Swat and Malakand Protected Area by N.W.F.P Regulation No. 1 of 1974.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, No. XXI of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the Original sub-section (3), as amended by A.O., 1949.
[3]Ins. by Act No. VII of 2020, s. 2.
[4]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch., for "and the determination of any question within section 47 or section 144".

Explanation.— A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. It is final when such adjudication completely disposes of the suit. It may be partly preliminary and partly final:

(3) "decree-holder" means any person in whose favour a decree has been passed or an order capable of execution has been made:

(4) "district" means the local limits of the jurisdiction of a principal Civil Court of original jurisdiction (hereinafter called a "District Court"), and includes the local limits of the ordinary original civil jurisdiction of a High Court:

(5) "foreign Court" means a Court situate beyond the limits of [3][Pakistan] which has no authority in [1][Pakistan] and is not established or continued by [2][the [3][Federal Government] [4]***]:

(6) "foreign judgment" means the judgment of a foreign Court:

(7) "Government Pleader" includes any officer appointed by the [2][Provincial Government] to perform all or any of the functions expressly imposed by this Code on the Government Pleader and also any pleader acting under the directions of the Government Pleader:

(8) "Judge" means the presiding officer of a Civil Court:

(9) "judgment" means the statement given by the Judge of the grounds of a decree or order:

(10) "judgment-debtor" means any person against whom a decree has been passed or an order capable of execution has been made:

(11) "legal representative" means a person who in law represents the estate of a deceased person, and includes any person who intermeddles with the estate of the deceased and where a party sues or is sued in a representative character the person on whom the estate devolves on the death of the party so suing or sued:

(12) "mesne profits" of property means those profits which the person in wrongful possession of such property actually received or might with ordinary diligence have received therefrom, together with interest on such profits but shall not include profits due to improvements made by the person in wrongful possession:

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(13) "moveable property" includes growing crops:

(14) "order" means the formal expression of any decision of a Civil Court which is not a decree:

(15) "pleader" means any person entitled to appear and plead for another in Court, and includes an advocate, a vakil and an attorney of a High Court:

(16) "prescribed" means prescribed by rules:

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[1]Subs. by Ordinance, No. XXI of 1960, s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by Adaptation Order, 1949.
[2]Subs. by Adaptation Order, 1937.
[3]Subs. by Federal Adaptation Order, 1975 Art. 2 and Table.
[4]The words "or the Crown Representative" omitted by Adaptation Order, 1949.

(17) "public officer" means a person falling under any of the following descriptions, namely:—

(a) every Judge;

[1][*(b)* every person in the service of Pakistan;]

(c) every commissioned or gazetted officer in the military, [2][naval or air] forces of [3][Pakistan while in the service of the State] ;

(d) every officer of a Court of Justice whose duty it is, as such officer, to investigate or report on any matter of law or fact, or to make, authenticate or keep any document, or to take charge or dispose of any property, or to execute any judicial process, or to administer any oath, or to interpret, or to preserve order, in the Court, and every person especially authorised by a Court of Justice to perform any of such duties;

(e) every person who holds any office by virtue of which he is empowered to place or keep any person in confinement;

(f) every officer of [4][the Government] whose duty it is, as such officer, to prevent offences, to give information of offences, to bring offenders to justice, or to protect the public health, safety or convenience;

(g) every officer whose duty it is, as such officer, to take, receive, keep or expend any property on behalf of [4][the Government], or to make any survey, assessment or contract on behalf of [4][the Government], or to execute any revenue-process, or to investigate, or to report on, any matter affecting the pecuniary interest of 3[the Government], or to make, authenticate or keep any document relating to the pecuniary interests of [4][the Government] or to prevent the infraction of any law for the protection of the pecuniary interests of 3[the Government]; and

(h) every officer in the service or pay of [4][the Government], or remunerated by fees or commission for the performance of any public duty:

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(18) "rules" means rules and forms contained in the First Schedule or made under section 122 or section 125:

(19) "share in a corporation" shall be deemed to include stock, debenture stock, debentures or bonds: and

(20) "signed", save in the case of a judgment or decree, includes stamped.

[5][**3. Subordination of Courts.** For the purposes of this Code, the hierarchy and sub-ordination of Civil Courts shall be the same as prescribed in the West Pakistan Civil Courts Ordinance, 1962 (W.P. Ordinance No. II of 1962).]

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, No. XVII of 1981, s.3 and Second Sch., for sub-clause (b). The words in crotchets [Civil Service of Pakistan] which were amended by Ordinance 21 of 1960, s. 3 and 2nd sch. and Adaptation Order, 1949.
[2]Subs. by the Amending Act No. XXXV of 1934, s.2 and Sch.
[3]The words "His Majesty while serving under the Crown" as amended, by Act No. XXXV of 1934, s.2 and Sch. and Adaptation Order, 1937, have been subs. by Adaptation Order, 1961, Art, 2 and Sch. (*with effect from the 23rd March, 1956*.)
[4]Subs. by Adaptation Order, 1961, Art. 2 and Sch., (*with effect from the 23rd March, 1956*), for "the Crown" which had been subs., by Adaptation Order, 1937.
[5]Subs. by Act No. VII of 2020, s. 3.

4. Savings.—(1) In the absence of any specific provision to the contrary, nothing in this Code shall be deemed to limit or otherwise affect any special or local law now in force or any special jurisdiction or power conferred, or any special form of procedure prescribed, by or under any other law for the time being in force.

(2) In particular and without prejudice to the generality of the proposition contained in sub-section (1), nothing in this Code shall be deemed to limit or otherwise affect any remedy which a land-holder or landlord may have under any law for the time being in force for the recovery of rent of agricultural land from the produce of such land.

5. Application of the Code to the Revenue Courts.—(1) Where any Revenue Courts are governed by the provisions of this Code in those matters of procedure upon which any special enactment applicable to them is silent, the [1][Provincial Government] [2][* * *] may, by notification in the [1][official Gazette], declare that any portions of those provisions which are not expressly made applicable by this Code shall not apply to those Courts, or shall only apply to them with such modifications as the [1][Provincial Government] [3][* * *] may prescribe.

(2) "Revenue Court" in subsection (1) means a Court having jurisdiction under any local law to entertain suits or other proceedings relating to the rent, revenue or profits of land used for agricultural purposes, but does not include a Civil Court having original jurisdiction under this Code to try such suits or proceedings as being suits or proceeding of a civil nature.

[4][**6. Pecuniary Jurisdiction.**—Save in so far as is otherwise expressly provided, nothing herein contained shall operate to give any Court jurisdiction over suits the amount or value of the subject matter of which exceeds the pecuniary limits, if any, of its ordinary jurisdiction].

7. [5][* * * * * * *]

8. [*Presidency Small Cause Courts.*] *Omitted by A.O., 1949.*

PART I
SUITS IN GENERAL
JURISDICTION OF THE COURTS AND *Res Judicata*

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9. Courts to try all civil suits unless barred. The Courts shall (subject to the provisions herein contained) have jurisdiction to try all suits of a civil nature excepting suits of which their cognizance is either expressly or impliedly barred.

[1]Subs. by Adaptation Order, 1937.
[2]The words "with the previous sanction of the G.G. in C." omitted by the Devolution Act No. XXXVIII of 1920, s.2 and 1st Sch., Pt. I.
[3]The words "with the sanction aforesaid" omitted by Act No. XXXVIII of 1920, s.2 and 1st Sch., Pt. I.
[4]Subs. by Act XIX of 2023, s.2.
[5]Omitted by Act VII of 2020, s. 5.

Explanation.— A suit in which the right to property or to an office is contested is a suit of a civil nature, notwithstanding that such right may depend entirely on the decision of questions as to religious rites or ceremonies.

10. Stay of suit. No Court shall proceed with the trial of any suit in which the matter in issue is also directly and substantially in issue in a previously instituted suit between the same parties, or between parties under whom they or any of them claim litigating under the same title where such suit is pending in the same or any other Court in [1][Pakistan] having jurisdiction to grant the relief claimed, or in any Court beyond the limits of [1][Pakistan] established or continued by [2][the [3][Federal Government] [4]* * *] and having like jurisdiction, or before [5][the Supreme Court].

Explanation.— The pendency of a suit in a foreign Court does not preclude the Courts in [1][Pakistan] from trying a suit founded on the same cause of action.

11. *Res Judicata*. No Court shall try suit or issue in which the matter directly and substantially in issue has been directly and substantially in issue in a former suit between the same parties, or between parties under whom they or any of them claim, litigating under the same title, in a Court competent to try such subsequent suit or the suit in which such issue has been subsequently raised, and has been heard and finally decided by such Court.

Explanation I.— The expression "former suit" shall denote a suit which has been decided prior to the suit in question whether or not it was instituted prior thereto.

Explanation II.— For the purposes of this section, the competence of a Court shall be determined irrespective of any provisions as to a right of appeal from the decision of such Court.

Explanation III.— The matter above referred to must in the former suit have been alleged by one party and either denied or admitted, expressly or impliedly, by the other.

Explanation IV.— Any matter which might and ought to have been made ground of defence or attack in such former suit shall be deemed to have been a matter directly and substantially in issue in such suit.

Explanation V.— Any relief claimed in the plaint, which is not expressly granted by the decree, shall, for the purposes of this section, be deemed to have been refused.

Explanation VI.— Where persons litigate *bona fide* in respect of a public right or of a private right claimed in common for themselves and others, all persons interested in such right shall, for the purposes of this section, be deemed to claim under the persons so litigating.

[6][12. Bar to further suit.— (1)] Where a plaintiff is precluded by rules from instituting a further suit in respect of any particular cause of action, he shall not be entitled to institute a suit in respect of such cause of action in any Court to which this Code applies.

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[1]Subs. by the Central laws (Statute Reform) Ordinance, No. XXI of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[2]Subs. by Adaptation Order, 1937.
[3]Subs. by Federal Adaptation Order, 1975. Art.2 and Table.
[4]The words "or the Crown Representative" omitted by Adaptation Order, 1949.
[5]Subs. by Adaptation Order, 1961, Art. 2 and Sch. (*with effect from the 23rd March 1956*).
[6]S.12 was renumbered as sub-section (1) of that section by the Code of Civil Procedure (Amdt.) Ordinance, No. X of 1980, s. 2

[1][(2) Where a person challenges the validity of a judgment, decree or order on the plea of fraud, mis-representation or want of jurisdiction, he shall seek his remedy by making an application to the Court which passed the final judgment, decree or order and not by a separate suit.]

13. When foreign judgment not conclusive. A foreign judgment shall be conclusive as to any matter thereby directly adjudicated upon between the same parties or between parties under whom they or any of them claim litigating under the same title except—

(a) Where it has not been pronounced by a Court of competent Jurisdiction ;

(b) Where it has not been given on the merits of the case;

(c) Where it appears on the face of the proceedings to be founded on an incorrect view of international law or a refusal to recognise the law of [2][Pakistan] in cases in which such law is applicable;

(d) Where the proceedings in which the Judgment was obtained are opposed to natural justice ;

(e) Where it has been obtained by fraud ;

(f) Where it sustains a claim founded on a breach of any law in force in [2][Pakistan].

14. Presumption as to foreign judgment. The Court shall presume, upon the production of any document purporting to be a certified copy of a foreign Judgment, that such Judgment was pronounced by a Court of competent Jurisdiction, unless the contrary appears on the record ; but such presumption may be displaced by proving want of jurisdiction.

PLACE OF SUING

15. Court in which suits to be instituted. Every suit shall be instituted in the Court of the lowest grade competent to try it.

16. Suits to be instituted where subject-matter situate. Subject to the pecuniary or other limitations prescribed by any law, suits—

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(a) for the recovery of immoveable property with or without rent or profits,

(b) for the partition of Immoveable property,

(c) for foreclosure, sale or redemption in the case of a mortgage of or charge upon immoveable property,

(d) for the determination of any other right to or interest in immoveable property,

(e) for compensation for wrong to immoveable property,

(f) for the recovery of moveable property actually under distraint or attachment,

[1]Sub-section (2) added by the Code of Civil Procedure (Amdt.) Ordinance, No. X of 1980, s.2.
[2]Subs. by the Central Laws (statute Reform) Ordinance, No. XXI of 1960, s.3 and 2nd Sch. (*with effect from the 14th October, 1955*).

shall be instituted in the Court within the local limits of whose jurisdiction the property is situate, [1][, or, in the case of suits referred to in clause (c), at the place where the cause of action has wholly or partly arisen]:

Provided that a suit to obtain relief respecting, or compensation for wrong to, immoveable property held by or on behalf of the defendant may, where the relief sought can be entirely obtained through his personal obedience, be instituted either in the Court within the local limits of whose jurisdiction the property is situate [1][,or, in the case of suit referred to in clause (c), at the place where the cause of action has wholly or partly arisen], or in the Court within the local limits of whose jurisdiction the defendant actually and voluntarily resides, or carries on business, or personally works for gain.

Explanation.— In this section "property" means property situate in [2][Pakistan].

17. Suits for immoveable property situate within jurisdiction of different Courts. Where a suit is to obtain relief respecting, or compensation for wrong to, immoveable property situate with in the jurisdiction of different Courts, the suit may be instituted in any Court within the local limits of whose jurisdiction any portion of the property is situate:

Provided that, in respect of the value of the subject-matter of the suit, the entire claim is cognizable by such Court.

18. Place of institution of suit where local limits of jurisdiction, of Courts are uncertain.— (1) Where it is alleged to be uncertain within the local limits of the jurisdiction of which of two or more Courts any immoveable property is situate, any one of those Courts may, if satisfied that there is ground for the alleged uncertainty, record a statement to that effect and thereupon proceed to entertain and dispose of any suit relating to that property, and its decree in the suit shall have the same effect as if the property were situate within the local limits of its Jurisdiction :

Provided that the suit is one with respect to which the Court is competent as regards the nature and value of the suit to exercise Jurisdiction.

(2) Where a statement has not been recorded under subs-section (1), and an objection is taken before an appellate or revisional Court that a decree or order in a suit relating to such property was made by a Court not having jurisdiction where the property is situate, the appellate or revisional Court shall not allow the objection unless in its opinion there was, at the time of the institution of the suit, no reasonable ground for uncertainty as to the Court having jurisdiction with respect thereto and there has been a consequent failure of Justice.

19. Suits for compensation for wrongs to person or moveables. Where a suit is for compensation for wrong done to the person or to moveable property, if the wrong was done within the local limits of the Jurisdiction of one Court and the defendant resides, or carries on business, or personally works for gain, within the local limits of the Jurisdiction of another Court, the suit may be instituted at the option of the plaintiff in either of the said Courts.

[1]Ins. by the Code of Civil Procedure (Amdt.) Ordinance, No. XLIV of 1962, s.6.
[2]Subs. by the Central Laws (Statute Reform) ordinance, No. XXI of 1960, s.3 and 2nd Sch. (*with effect from the 14th October, 1955*).

Illustrations

(a) A, residing in [1][Karachi], beats B in [2][Quetta]. B may sue A either in [2][Quetta] or [1][Karachi].

(b) A, residing in [1][Karachi] publishes in [2][Quetta] statements defamatory of B. B may sue A either in [2][Quetta] or in [1][Karachi].

20. Other suits to be instituted where defendants reside or cause of action arises. Subject to the limitations aforesaid, every suit shall be instituted in a Court within the local limits of whose jurisdiction—

(a) the defendant, or each of the defendants where there are more than one, at the time of the commencement of the suit, actually and voluntarily resides, or carries on business, or personally works for gain ; or

(b) any of the defendants, where there are more than one, at the time of the commencement of the suit, actually and voluntarily resides, or carries on business, or personally works for gain, provided that in such case either the leave of the Court is given, or the defendants who do not reside, or carryon business, or personally work for gain, as aforesaid, acquiesce in such institution ; or

(c) the cause of action, wholly or in part, arises.

Explanation I.— Where a person has permanent dwelling at one place and also a temporary residence at another place, he shall be deemed to reside at both places in respect of any cause of action arising at the place where he has such temporary residence.

Explanation II.— A corporation shall be deemed to carry on business at its sole or principal office in [1][Pakistan] or, in respect of any cause of action arising at any place where it has also a subordinate office, at such place.

Illustrations

(a) A is a tradesman in [2][Lahore]. B carries on business in [1][Karachi], B, by his agent in [2][Lahore], buys goods of A and requests A to deliver them to the [1][Pakistan International Airways]. A delivers the goods accordingly in [2][Lahore]. A may sue B for the price of the goods either in [2][Lahore] where the cause of action has arisen, or in [1][Karachi], where B carries on business.

(b) A resides at [1][Murree], B at [2][Lahore], and C at [1][Karachi], A, B and C being together at [1][Bahawalpur], B and C make a joint promissory note payable on demand, and deliver it to A. A may sue B and C [1][Bahawalpur,] where the cause of action arose. He may also sue them at [2][Lahore], where B resides, or at [1][Karachi],

[1]Subs. by the Central Laws (Statute Reform) Ordinance, No. XXI of 1960, s.3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, No. XXVII of 1981, s.3 and 2nd Sch.

where C resides; but in each of these cases, if the non-resident defendant objects, the suit cannot proceed without the leave of the Court.

21. Objections to jurisdiction. No objection as to the place of suing shall be allowed by any appellate or revisional Court unless such objection was taken in the Court of first instance at the earliest possible opportunity and in all cases where issues are settled at or before such settlement, and unless there has been a consequent failure of justice.

22. Power to transfer suits which may be instituted in more than one Court. Where a suit may be instituted in any one of two or more Courts and is instituted in one of such Courts, any defendant, after notice to the other parties, may, at the earliest possible opportunity and in all cases where issues are settled at or before such settlement, apply to have the suit transferred to another Court, and the Court to which such application is made, after considering the objections of the other parties (if any), shall determine in which of the several Courts having jurisdiction the suit shall proceed.

23. To what Court application lies.— (1) Where the several Courts having jurisdiction are subordinate to the same Appellate Court, an application under section 22 shall be made to the Appellate Court.

(2) Where such Courts are subordinate to different appellate Courts but to the same High Court, the application shall be made to the said High Court.

(3) Where such Courts are subordinate to different High Courts, the application shall be made to the High Court within the local limits of whose jurisdiction the Court in which the suit is brought is situate.

24. General power of transfer and with drawl.— (1) On the application of any of the parties and after notice to the parties and after hearing such of them as desire to be heard, or of its own motion without such notice, the High Court or the District Court may at any stage—

(a) transfer any suit, appeal or other proceeding pending before it for trial or disposal to any Court subordinate to it and competent to try or dispose of the same, or

(b) withdraw any suit, appeal or other proceeding pending in any Court subordinate to it, and

(i) try or dispose of the same ; or

(ii) transfer the same for trial or disposal to any Court subordinate to it and competent to try or dispose of the same ; or

(iii) retransfer the same for trial or disposal to the Court from which it was withdrawn.

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(2) Where any suit or proceeding has been transferred or withdrawn under sub-section (1), the Court which thereafter tries such suit may, subject to any special directions in the case of an order of transfer, either retry it or proceed from the point at which it was transferred or withdrawn.

(3) For the purposes of this section, Courts of Additional and Assistant Judges shall be deemed to subordinate to the District Court.

(4) The Court trying any suit transferred or withdrawn under this section from a Court of Small Causes shall, for the purposes of such suit, be deemed to be a Court of Small Causes.

[1]**[24A. Appreance of parties on transfer of suits, etc.**— (1) Where any suit is transferred under section 22, or any suit, appeal or other proceeding is transferred or withdrawn under sub-section (1) of section 24 on the application of a party, the Court ordering the transfer or withdrawal shall fix a date for the appearance of the parties before itself, if the suit, appeal or other proceeding is to be tried or disposed of by itself, or before the Court to which the case is so transferred.

[1]S.24A ins. by the Code of Civil Procedure (Amdt.) Ordinance, No. XLIV of 1962, s.7.

(2) Where any suit, appeal or other proceeding is transferred from one Court to another, otherwise than on the application of a party, the parties thereto shall appear before the Court from which the suit, appeal or other proceedings is to be transferred, on the day already fixed for their appearance before that Court, and such Court shall then communicate the order of transfer to such parties and direct them to appear before the Court to which the suit, appeal or other proceeding is to be transferred, either on the same day, or on such earliest day as may be reasonable having regard to the distance at which the other Court is located.]

[1]**25**. [*Power of Provincial Government to transfer suits.*] *Omitted by the Central Laws (Statue Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955).*

INSTITUTION OF SUITS

[2]**[26. Institution of suit.**— Every suit shall be instituted by presentation of a plaint or in such other manner as may be prescribed.]

[2]**[26A-26D. * * * * * * *]**

SUMMONS AND DISCOVERY

27. Summons to defendants. Where a suit has been duly instituted, a summons may be issued to the defendant to appear and answer the claim [2][* * *] and may be served in manner prescribed.

[2]**[27A. * * * * * * *]**

28. Service of summons where defendant resides in another Province.— (1) A Summons may be sent for service in another Province to such Court and in such manner as may be prescribed by rules in force in that Province.

(2) The Court to which such summons is sent shall, upon receipt thereof, proceed as if it had been issued by such Court and shall then return the summons to the Court of issue together with the record (if any) of its proceedings with regard thereto.

[3]**[29. Service of foreign summonses.** Summonses [2][and other processes] issued by any Civil

[1]S. 25 was amended by Adaptation Order, 1937.
[2]Subs. and Omitted by Act No. XIX of 2023, s.3.
[3]Provisions of s.29 have been applied to—
(i)the Civil Courts in the Federation of Malaya in so far as the Chief Commissioner's Province of Baluchistan and the Capital of the Federation are concerned, *see* Gaz. of P., 1949, Pt.I, P.258 and *ibid*., Pt.II A, P. 68
(ii)all Civil and Revenue Courts of India; and service by any Civil or Revenue Court of India of any summons issued under the Code of Civil Procedure, 1908, by a Court of the Province of Sind shall be deemed to be valid, see Sind Government Gazette, Extraordinary, dated 3rd July, 1952. Pt. I, P. 437.
(iii)all Civil and Revenue Courts in India and Service by such Courts of any summons issued under the said Code by a Court in the N.W.F.P, Baluchistan or Karachi shall be deemed to be valid service, *see* N.W.F.P Government Gazette, 1952, Pt. I, P. 248 and Gaz., of P. 1952, Pt. I, P. 119 and *ibid*., Pt. VI, p. 126.
(iv)all Civil and Revenue Courts in India; and that service by such Courts of any summons issued under the said Code by a Court in Khairpur State shall be deemed to be valid service, see Khairpur State Gazette, Ext., 1952, dated the 18th September, 1952.
(v)all Civil and Revenue Courts in India; and service by such Courts of any summons issued under the said Code by a Court in the Bahawalpur State shall be deemed to be valid service, *see* Bahawalpur Govt. Gazette, dated the 2nd October, 1952.
(vi)all Civil and Revenue Courts of India; and service by any civil or Revenue Court in India, within whose jurisdiction the person to be served resides of any summons issued by a Court under the said Code shall be deemend to be valid service, see Punjab Gazette, Ext., 1951, dated the 1st September, 1951, p. 1743.
(vii)all Civil and Revenue Courts in the Union of Burma, in respect of Baluchistan; and service by such Courts of any summons issued under the said Code by a Court in Baluchistan shall be deemed to be valid service see Gaz. of P., Ext., 1954, p. 1873.
(viii)all Civil and Revenue Courts in the Union of Burma, in respect of Karachi; and service by such Courts of any summons issued under the said Code by a Court in Karachi shall be deemed to be valid service, *see* Gaz. of p., Extra., 1954, p. 1997.
(ix)all Civil and Revenue Courts of the Union of Burma; and service by such Courts of Summonss issued under the said Code by A Court in East Bengal shall be deemed to be valid service, *see* Dacca Gazette, Ext., dated 18th October, 1954, Pt. I, p. 3053.
(x)all Civil and Revenue Courts of the Union of Burma; and service by such Courts of any summons issued under the said Code by a Court in the N.W.F.P, shall be deemed to be valid service, *see* N.W.F.P, Gazette, 1954, Pt. I, p. 523.
(xi)all Civil and Revenue Courts of the Union of Burma; and service by such Courts of any summons issued under the said Code by a Court in the Province of Punjab, shall be deemed to be valid service, *see* Gaz. of Punjab, 1954, Pt. I, p. 843.
(xii)all Civil and Revenue Courts of the Union of Burma; and service by such Courts of any summons issued under the said Code by a Court in the Province of Sind, shall be deemed to be valid service, *w.e.f.* 18th October, 1954, *see* Gaz. of Sind, 1954, pt I, p. 940.
(xiii)all Civil and Revenue Courts in the Federal Republic of Germany; and service by such Courts of summons issued under the said Code by a Court in Baluchistan shall be deemed to be valid service, *see* Gaz. of P. 1955, Pt. I, p. 126.
(xiv)the summonses issued by any Civil or Revenue Courts in Pakistan may be sent to the Courts in the Union of Burma and served as if they had been issued by such Courts, *see* Gaz of 1955, P.I, p. 143.
(xv)service by any Court situated in Pakistan, of any summons issued by a Court of the Union of Burma shall be deemed to be valid service, *see* Gaz. of P., 1955, Pt. I, p. 143.
(xvi)all Civil and Revenue Courts in the Federal Republic of Germany an services by such Courts of any summons issued under the said Code by a Court in Karachi, shall be deemed to be valid service, with effect on and from the 1st June, 1955, *see* Gaz. Of P., 1955, Pt. VI, p. 102.
(xvii)all Civil and Revenue Courts in the Federal Republic of Germany; and service by such Courts of any summons issued under the said Code by a Court in the Province of East Bengal shall be deemed to be valid service *see* Dacca Gazette, 1955, Pt. I, p. 1051.
(xviii)all Civil Courts in Switzerland and the service by such Courts of any summons issued under the Code (C.Pr.C.) by a Court in the Province of W. Pakistan shall be deemed to be valid service, *see* W.P. Gaz., 1959, Ext. p. 843.
[2]Ins. by the Code of Civil Procedure (Amdt.) Act, 1940 (34 of 1940).

or Revenue Court situate [1][outside [2][Pakistan]] may be sent to the Courts [1][in [2][Pakistan]] and served as if they [3][were summonses] issued by such Courts:

[4][Provided that the Courts issuing such summonses [5][or processes] have been established or continued by the authority of the [6][Federal Government] [7][* * *] or that the Provincial Government [8][of the Province in which such summonses or processes are] to be served has by notification in the official Gazette declared the provisions of this section to apply to [9][such Courts].]

30. Power to order discovery and the like. Subject to such conditions and limitations as may be prescribed, the Court may, at any time, either of its own motion or on the application of any party,—

(a) make such orders as may be necessary or reasonable in all matters relating to the delivery and answering of interrogatories, the admission of documents and facts, and the discovery, inspection, production, impounding and return of documents or other material objects producible as evidence ;

(b) issue summonses to persons whose attendance is required either to give evidence or to produce documents or such other objects as aforesaid ;

(c) order any fact to be proved by affidavit.

31. Summons to witness. The provisions in sections 27, 28 and 29 shall apply to summonses to give evidence or to produce documents or other material objects.

32. Penalty for default. The Court may compel the attendance of any person to whom a summons has been issued under section 30 and for that purpose may—

(a) issue a warrant for his arrest ;

(b) attach and sell his property ;

(c) impose a fine upon him not exceeding [10][two thousand] rupees ;

(d) order him to furnish security for his appearance and in default commit him to [10][* * *] prison.

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JUDGMENT AND DECREE

33. Judgment and decree. The Court, after the case has been heard, shall pronounce judgment, and on such judgment [11][* * *] a decree shall follow.

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[1]Subs. by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949) Art. 3 and Sch.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, No. XXI of 1960, s.3 and 2nd Sch. (*w. e. f the 14th October, 1955*).
[3]Subs. by the Code of Civil Procedure (Amdt.) Act No. XXXIV of 1940, s. 2(1) (a) (ii).
[4]Subs. by Adaptation Order, 1937.
[5]Ins. by Act No. XXXIV of 1940, s. 2 (1) (b) (i).
[6]Subs. by Federal Adaptation Order, 1975, Art. 2 and Table.
7The words "or of the Crown Representative" omitted by Adaptation Order, 1949.
[8]Subs. by Act No. XXXIV of 1940, s.2 (1) (b) (ii) The substitution with the omission of the words "or processes" is to be deemed to have taken effect on the 1st day of April, 1937.
[9]Subs. *ibid.* s. 2 (1) (b) (iii) The substitution is to be deemed to have taken effect on the 1st April, 1937.
[10]Subs. & omitted by Act XIV of 1994, s. 6.
[11]Omitted by Act No. XIX of 2023, s. 7.

INTEREST

34. Interest.— (1) Where and in so far as a decree is for the payment of money, the Court may, in the decree, order interest at such rate as the Court deems reasonable to be paid on the principal sum adjudged, from the date of the suit to the date of the decree, in addition to any interest adjudged on such principal sum for any period prior to the institution of the suit, with further interest at such rate as the Court deems reasonable on the aggregate sum so adjudged, from the date of the decree to the date of payment, or to such earlier date as the Court thinks fit.

(2) Where such a decree is silent with respect to the payment of further interest on such aggregate sum as aforesaid from the date of the decree to the date of payment or other earlier date, the Court shall be deemed to have refused such interest, and a separate suit therefore shall not lie.

[1][**34A. Interest on public dues.**— (1) Where the Court is of opinion that a suit was instituted with intent to avoid the payment of any public dues payable by the plaintiff or on his behalf, the Court may, while dismissing such suit, make an order for payment of interest on such public dues at the rate of two per cent, above the prevailing bank rate.

(2) Where the court is of opinion that the recovery of any public dues from the plaintiff was unjustified, the Court may, while disposing of the suit, make an order for payment of interest on the amount recovered at the rate of two per cent, above the prevailing bank rate.

Explanation.— In this section,—

(a) "bank rate" means the bank rate determined and made public under the provisions of the State Bank of Pakistan Act, 1956 (XXXIII of 1956) ; and

(b) "public dues" includes the dues of any bank owned by the Federal Government or of any corporation or undertaking owned or controlled by the Federal Government or a Provincial Government or of any local authority.]

[2][**34B. Interest, etc. on dues of banking company.**— Where and in so far as a decree is for payment of money due to a banking company in repayment of a loan advanced by it, the Court shall, in the decree, provide for interest or return, as the case may be, on the judgment debt from the date of decree till payment—

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(a) in the case of interest-bearing loans, for interest at the contracted rate or at the rate of two per cent above the bank rate, whichever is the higher ;

(b) in the case of loans given on the basis of mark-up in price, lease, hire-purchase or service charges, for the contracted rate of mark-up, rental, hire or service charges, as the case may be, or at the latest rate of the banking company for similar loans, whichever is the higher ; and

(c) in the case of loans given on the basis of participation in profit and loss, for return at such rate, not being less than the annual rate of profit for the preceding six months paid by the banking company on term deposits of six months accepted by it on the basis of participation in profit and loss, as the court may consider just and reasonable in the circumstances of the case, keeping in view

[1]New section 34A was ins. by the Code of Civil Procedure (Amdt.) Ordinance, No. X of 1980) s.3.
[2]Section 34B ins. by the Code of Civil Procedure (Amdt.) Ordinance, No. LXIII of 1980, s. 2.

the profit-sharing agreement entered into between the banking company and the judgement debtor when the loan was contracted.

Explanation.— In this section in clause (a), "bank rate" has the same meaning as in section 34A.].

COSTS

[1][**35. Costs.**— (1) Subject to such conditions and limitations, as may be prescribed, and to the provisions of any law for the time being in force,—

(i) a party to any proceedings shall, before the announcement of final order, judgment or decree, file in the prescribed form, detail of actual costs of litigation, including but not limited to court fee, stamp fee, fee paid to counsel and all other ancillary or incidental expenses thereto;

(ii) the Court shall award the actual costs of litigation under clause (i) to the successful party with markup not exceeding the prescribed limit per annum, as notified by the State Bank of Pakistan, at the time of passing the order, judgement or decree;

(iii) the costs other than those mentioned in clause (i) shall be in the discretion of the Court; and

(iv) the Court shall have full power to determine out of what property such costs are to be paid and recovered and to give all necessary directions for the purpose aforesaid.

(2) The fact the Court has no jurisdiction in respect of the proceedings shall be no bar to the exercise of such powers under this section.

35A. Adjournment costs.— If, on the date fixed for hearing in any proceedings, a party to the proceedings or any other person, despite service of notice, fails to appear or comply with any order of the Court or mandatory provision of the Code or any other law for the time being in force, seeks an adjournment for such purpose, the Court shall, for sufficient cause and reasons to be recovered, grant such adjournment on the condition that such party or person shall pay to the other party, costs of adjournment which shall not be less than five thousand Rupees per adjournment or such higher amount as may be prescribed from time to time:

Provided that if the Court is satisfied that the adjournment being sought is on account of unavoidable reasons beyond the control of the party concerned, which reasons shall be recorded by the Court, the Court may grant adjournment without imposing adjournment cost:

Provided further that if the Court finds that there is a tendency of seeking repeated adjournments by any party on such grounds, the Court may not grant adjournment without imposing the adjournment costs as the Court may deem fit.

35B. Special costs.— (1) If in any proceedings, the Court finds that any averment made by any party is false or vexatious to the knowledge of such party, the Court shall award special costs to the opposite party against whom such averment has been made.

[1]Subs. by Act No. XVII of 2017, s. 2.

(2) The amount of any special costs awarded under sub-section (1) shall be taken into account in any subsequent suit for damages or compensation in respect of such claim or defence.

35C. General provisions as to costs.— The Government shall not be liable to costs under section 35, 35A and 35B.

Explanation.— In sections 35, 35A and 35B, the expression "proceedings" includes suit, appeal, review, revision, execution or any other proceedings and any matter incidental therto.]

PART II
EXECUTION
GENERAL

36. Application to orders. The provisions of this Code relating to the execution of decrees shall, so far as they are applicable, be deemed to apply to the execution of orders.

37. Definition of Court which passed a decree. The expression "Court which passed a decree," or words to that effect, shall, in relation to the execution of decrees, unless there is anything repugnant in the subject or context, be deemed to include,—

(a) where the decree to be executed has been passed in the exercise of appellate jurisdiction, the Court of first instance, and

(b) where the Court of first instance has ceased to exist or to have jurisdiction to execute it, the Court which, if the suit wherein the decree was passed was instituted at the time of making the application for the execution of the decree, would have Jurisdiction to try such suit.

COURTS BY WHICH DECREES MAY BE EXECUTED

38. Court by which decree may be executed. A decree may be executed either by the Court which passed it, or by the Court to which it is sent for execution.

39. Transfer of decree.— (1) The Court which passed a decree may, on the application of the decree-holder, send it for execution to another Court,—

(a) if the person against whom the decree is passed actually and voluntarily resides or carries on business, or personally works for gain, within the local limits of the jurisdiction of such other Court, or

(b) if such person has not property within the local limits of the jurisdiction of the Court which passed the decree sufficient to satisfy such decree and has property within the local limits of the jurisdiction of such other Court, or

(c) if the decree directs the sale or delivery of immoveable property situate outside the local limits of the Jurisdiction of the Court which passed it, or

(d) if the Court which passed the decree considers for any other reason, which it shall record in writing, that the decree should be executed by such other Court.

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(2) The Court which passed a decree may of its own motion send it for execution to any subordinate Court of competent jurisdiction.

40. Transfer of decree to Court in another Province. Where a decree is sent for execution in another Province, it shall be sent to such Court and executed in such manner as may be prescribed by rules in force in that Province.

41. Results of execution proceeding to be certified. The Court to which a decree is sent for execution shall certify to the Court which passed it the fact of such execution, or where the former Court fails to execute the same the circumstances attending such failure.

[1][42. Powers of Court in executing transferred decree.— (1)] The Court executing a decree sent to it shall have the same powers in executing such decree as if it had been passed by itself. All persons disobeying or obstructing the execution of the decree shall be punishable by such Court in the same manner as if it had passed the decree. And its order in executing such decree shall be subject to the same rules in respect of appeal as if the decree had been passed by itself.

[2][(2) Without prejudice to the generality of the foregoing provision, the Court executing a decree sent to it shall have the following powers, namely:—

(a) power under section 39 to transfer the decree to another Court, if necessary;

(b) Power under sub-section (1) of section 50 to permit execution to proceed against the legal representatives, of a deceased judgment debtor ;

(c) power under section 152 to correct clerical or arithmetical errors ;

(d) power under rule 16 of Order XXI to recognise the assignment of a decree ;

(e) power under sub rule (2) of rule 50 of Order XXI to grant leave to a decree holder to proceed against a person not already recognised as a partner in a firm in an execution proceeding against the firm ;

(f) power under clause *(b)* of sub-rule (1) of rule 53 of Order XXI to give notice of attachment of decree passed by another Court.]

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43. Execution of decrees passed by British Courts in places to which this Part does not extend or in foreign territory. Any decree passed by a Civil Court established in any [3][area in Pakistan] to which the provisions relating to execution do not extend, [4][* * *] may, if it cannot be executed within the jurisdiction of the Court by which it was passed, be executed in manner herein provided within the jurisdiction of any Court in [5][Pakistan].

[6]44. *[Omitted]*

[1]S. 42 renumbered as sub-section (1) of that section by the Code of civil Procedure (Amdt.) Ordinance, No. XLIV of 1962, s. 10.
[2]Sub-section (2) added *ibid*.
[3]Amended by Adaptation Order, 1949 and the Central Laws (Statute Refrom) Ordinance, No. XXI of 1960, s.3 and 2nd Sch. (with effect from the 14th October, 1955).
[4]The words "or by Court established or continued by the authority of the Federal Government in any Acceding State," omitted by the Federal Laws (Revision and Declration) Ordinance, No. XXVII of 1981, s. 3 and Second Sch.
[5]Subs. by the Central Laws (Statute Reform) Ordinance, No. XXI of 1960, s. 3 and 2nd Sch. (w. e. f the 14th October, 1955).
[6]Omitted by the Federal Laws (Revision and Declaration) Ordinance, No. XXVII of 1981, s. 3 and Second Schedule.

[1]**[44A. Execution of decrees passed by Courts in the United Kingdom and other reciprocating territory**.—(1) Where a certified copy of a decree of any of the superior Courts of the United Kingdom or any reciprocating territory has been filed in a District Court, the decree may be executed in [2][Pakistan] as if it had been passed by the District Court.

(2) Together with the certified copy of the decree shall be filed a certificate from such superior Court stating the extent, if any, to which the decree has been satisfied or adjusted and such certificate shall, for the purposes of proceedings under this section, be conclusive proof of the extent of such satisfaction or adjustment.

(3) The provisions of section 47 shall as from the filing of the certified copy of the decree apply to the proceedings of a District Court executing a decree under this section, and the District Court shall refuse execution of any such decree, if it is shown to the satisfaction of the Court that the decree falls within any of the exceptions specified in clauses (a) to (f) of section 13.

Explanation 1.— "Superior Courts", with reference to the United Kingdom, means the High Court in England, the Court of Session in Scotland, the High Court in Northern Ireland the Court of Chancery of the Country Palatine of Lancaster and the Court of Chancery of the County Palatine of Durham.

Explanation 2.— "Reciprocating territory" means [3][the United Kingdom and such other country or territory as] the [4][Federal Government] may, from time to time, by notification in the [5][official Gazette], declare[6] to be reciprocating territory for the purposes of this section; and "superior Courts", with reference to any such territory, means such Courts as may be specified in the said notification.

Explanation 3.— "Decree", with reference to a superior Court, means any decree or judgment of such Court under which a sum of money is payable, not being a sum payable in respect of taxes or other charges of a like nature or in respect of a fine or other penalty, and

(a) with reference to superior Courts in the United Kingdom, includes Judgments given and decrees made in any Court in appeals against such decrees or Judgments, but

(b) in no case includes an arbitration award, even if such award is enforceable as a decree or Judgment.]

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[1]S. 44A ins. by the Code of Civil Procedure (Amdt.) Act No. VIII of 1937. s. 2.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, No. XXI of 1960, s. 3 and 2nd Sch. (*w. e. f the 14th October, 1955*).
[3]Subs. by the Civil and Criminal Procedure Codes (Amdt.) Ordinance, No. LXVII 1962, s. 3.
[4]Subs. by Federal Adaptation Order, 1975, Art. 2 and Table.
[5]Subs. by Adaptation Order, 1937.
[6]The Central Govt. has declared Fiji to be a reciprocating territory and the Supreme Court of Fiji to be a Superior Court of the territory for the purposes of this section, *see* Gaz. of P., 1949, Pt. I, p. 275.
Certain Courts of Pakistan have been declared to be superior Courts for the purpose of Part I of the Foreign Judgments (Reciprocal Enforcement) Act, 1933 (23 Geo. 5, ch, 13), *see* Gaz. of P., 1953, Pt. I , pp. 143-44
The Central Government has declared the Colony of Singapore to be a reciprocating territory, and the Supreme Court of Singapore to be a superior Court of the territory for the purpose of this section. *see* Gaz. of P. 1954, Pt. I, p. 106.
Certain Courts in Pakistan have been declared to be superior Court for the purpose of section 5 of the Reciprocal Enforcement of Judgment Ordinance of Singapore, *see* Gaz. of P., 1954, Pt. I, p. 296.
The Central Government has declared the Australian Capital Territory to be a reciprocating territory, and the Supreme Court of Australian Capital Territory to be a superior Court of the territory for the purposes of this section, *see* Gaz. of P., 1957, Pt. I, p. 174.
The Central Government has declared "New Zealand including the Cook Islands (including Nive) and the Trust Territory of Western Samao" to be a reciprocating territory, and the Supreme Court of New Zealand to be a superior Court of that territory, for the purposes of this section (with effect from 7th August, 1958), *see* Gaz. of 1958 Pt. I, p. 455.
The Central Government has declared the Northern Territory of Australia to be reciprocating territory, and the Supreme Court of the said territory to be a superior Court of the territory for the purposes of this section, *see* Gaz. of P., 1959, Pt. I, p. 425.

45. [1][*Omitted*]

46. Precepts.—(1) Upon the application of the decree-holder the Court which passed the decree may, whenever it thinks fit, issue a precept to any other Court which would be competent to execute such decree to attach any property belonging to the judgment-debtor and specified in the precept.

(2) The Court to which a precept is sent shall proceed to attach the property in the manner prescribed in regard to the attachment of property in execution of a decree :

Provided that no attachment under a precept shall continue for more than two months unless the period of attachment is extended by an order of the Court which passed the decree or unless before the determination of such attachment the decree has been transferred to the Court by which the attachment has been made and the decree-holder has applied for an order for the sale of such property.

QUESTIONS TO BE DETERMINED BY COURT EXECUTING DECREE

47. Questions to be determined by the Court executing decree.—(1) All questions arising between the parties to the suit in which the decree was passed, or their representatives, and relating to the execution, discharge or satisfaction of the decree, shall be determined by the Court executing the decree and not by a separate suit.

(2) The Court may, subject to any objection as to limitation or jurisdiction, treat a proceeding under this section as a suit or a suit as a proceeding and may, if necessary, order payment of any additional court-fees.

(3) Where a question arises as to whether any person is or is not the representative of a party, such question shall, for the purposes of this section, be determined by the Court.

Explanation.—For the purposes of this section, a plaintiff whose suit has been dismissed and a defendant against whom a suit has been dismissed, are parties to the suit.

LIMIT OF TIME FOR EXECUTION

[2]**48. Execution barred in certain cases**.—(1) Where an application to execute a decree not being a decree granting an injunction has been made, no order for the execution of the same decree shall be made upon any fresh application presented after the expiration of [3][six years] from—

(a) the date of the decree sought to be executed, or,

(b) where the decree or any subsequent order directs any payment of money or the delivery of any property to be made at a certain date or at recurring periods, the date of the default in making the payment or delivery in respect of which the applicant seeks to execute the decree.

(2) Nothing in this section shall be deemed—

[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Second Schedule.
[2]This section has been amended in its application to Sind by the Sind Rural Credit and Land Transfer Act No. XLIX of 1947, s. 18.
[3]Subs. by the Law Reforms Ordinance, No. XII of 1972, s. 2 and Sch.

(a) to preclude the Court from ordering the execution of a decree upon an application presented after the expiration of the said term of [1][six years], where the judgment-debtor has, by fraud or force, prevented the execution of the decree at some time within [1][six years] immediately before the date of the application ;or

(b) to limit or otherwise affect the operation of article [2][183 of the First Schedule to the Limitation Act, 1908 (IX of 1908).]

TRANSFEREES AND LEGAL REPRESENTATIVES

49. Transferee. Every transferee of a decree shall hold the same subject to the equities (if any) which the Judgment-debtor might have enforced against the original decree-holder.

50. Legal representative.—(1) Where a judgment-debtor dies before the decree has been fully satisfied, the holder of the decree may apply to the Court which passed it to execute the same against the legal representative of the deceased.

(2) Where the decree is executed against such legal representative, he shall be liable only to the extent of the property of the deceased which has come to his hands and has not been duly disposed of ; and, for the purpose of ascertaining such liability, the Court executing the decree may, of its own motion or on the application of the decree-holder, compel such legal representative to produce such accounts as it thinks fit.

PROCEDURE IN EXECUTION

51. Powers of Court to enforce execution. Subject to such conditions and limitations as may be prescribed, the Court may, on the application of the decree-holder, order execution of the decree—

(a) by delivery of any property specifically decreed;

(b) by attachment and sale or by sale without attachment of any property ;

(c) by arrest and detention in prison ;

(d) by appointing a receiver ; or

(e) in such other manner as the nature of the relief granted may require:

[3][Provided that, [4][* * *] execution by detention in prison shall not be ordered unless, after giving the judgment-debtor an opportunity of showing cause why he should not be committed to prison, the Court, for reasons recorded in writing, is satisfied—

(a) that the judgment-debtor, with the object or effect of obstructing or delaying the execution of the decree,—

[1]Subs. by the Law Reform Ordinance, No. XII of 1972, s. 2 and Sch.
[2]Subs. by the Code of Civil Procedure (Amdt.) Act No. XXXIV of 1940, s. 3.
[3]Proviso and Explanation were ins. by the Code of Civil Procedure (Amdt.) Act No. XXI of 1936, s. 2.
[4]The words and commas, "where the decree is for the payment of money," were omitted by the Code of Civil Procedure (Amdt.) Ordinance, No. X of 1980), s. 4.

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(i) is likely to abscond or leave the local limits of the jurisdiction of the Court, or

(ii) has, after the institution of the suit in which the decree was passed, dishonestly transferred, concealed, or removed any part of his property, or committed any other act of bad faith in relation to his property ; or

(b) that the judgment-debtor has, or has had since the date of the decree, the means to pay the amount of the decree or some substantial part thereof and refuses or neglects or has refused or neglected to pay the same, or

(c) that the decree is for a sum for which the judgment-debtor was bound in a fiduciary capacity to account.

Explanation.— In the calculation of the means of the judgment-debtor for the purposes of clause (b), there shall be left out of account any property which, by or under any law or custom having the force of law for the time being in force, is exempt from attachment in execution of the decree.]

52. Enforcement of decree against legal representative.— (1) Where a decree is passed against a party as the legal representative of a deceased person, and the decree is for the payment of money out of the property of the deceased, it may be executed by the attachment and sale of any such property.

(2) Where no such property remains in the possession of the judgment-debtor and he fails to satisfy the Court that he has duly applied such property of the deceased as is proved to have come into his possession, the decree may be executed against the judgment-debtor to the extent of the property in respect of which he has failed so to satisfy the Court in the same manner as if the decree had been against him personally.

53. Liability of ancestral property. For the purposes of section 50 and section 52, property in the hands of a son or other descendant which is liable under Hindu law for the payment of the debt of a deceased ancestor, in respect of which a decree has been passed, shall be deemed to be property of the deceased which has come to the hands of the son or other descendant as his legal representative.

54. Partition of estate of seperation of share. Where the decree is for the partition of an undivided estate assessed to the payment of revenue to [1][the Government], or for the separate possession of a share of such an estate, the partition of the estate or the separation of the share shall be made by the Collector or any gazetted subordinate of the Collector deputed by him in this behalf, in accordance with the law (if any) for the time being in force relating to the partition, or the separate possession of shares, of such estates.

ARREST AND DETENTION

55. Arrest and detention.— (1) A judgment-debtor may be arrested in execution of a decree at any hour and on any day, and shall, as soon as practicable, be brought before the Court [2][which may make an order for his detention in prison to suffer simple imprisonment for a period not exceeding one year] :

[1]Amended by Adaptation Order, 1961, Art. 2 (*with effect from the 23rd March, 1956*), to read as above.
[2]Subs. by Ordinance, X of 1980, s. 5.

Provided, firstly, that, for the purpose of making an arrest under this section, no dwelling-house shall be entered after sunset and before sunrise:

Provided, secondly, that no outer door of a dwelling-house shall be broken open unless such dwelling-house is in the occupancy of the judgment-debtor and he refuses or in any way prevents access thereto, but when the officer authorised to make the arrest his duly gained access to any dwelling-house, he may break open the door of any room in which he has reason to believe the judgment-debtor is to be found:

Provided, thirdly, that, if the room is in the actual occupancy of a woman who is not the judgement-debtor and who according to the customs of the country does not appear in public, the officer authorised to make the arrest shall give notice to her that she is at liberty to withdraw, and, after allowing a reasonable time for her to withdraw and giving her reasonable facility for withdrawing, may enter the room for the purpose of making the arrest:

Provided, fourthly, that, where the decree in execution of which a judgment-debtor is arrested, is a decree for the payment of money and the judgment-debtor pays the amount of the decree and the costs of the arrest to the officer arresting him, such officer shall at once release him.

(2) The [1][Provincial Government] may, by notification in the [1][official Gazette], declare that any person or class of persons whose arrest might be attended with danger or inconvenience to the public shall not be liable to arrest in execution of a decree otherwise than in accordance with such procedure as may be prescribed by the [1][Provincial Government] in this behalf.

[2][(3) A judgment-debtor detained in prison under sub-section (1) shall not, merely by reason of undergoing such imprisonment, be discharged from his liability under the decree, but he shall not be liable to be re-arrested under the decree in execution of which he was so detained in prison.]

56. Prohibition of arrest or detention of women in execution of decree for money. Notwithstanding anything in this Part, the Court shall not order the arrest or detention in the [2][*] prison of a women in execution of a decree for the payment of money.

[3][**57**. *Subsistence Allowance*.] *Omitted by the Code of Civil Procedure (Amdt.) Ordinance, 1980 (X of 1980), s. 7.*

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[2][58. Release from detention.— Every person detained in prison in execution of a decree shall be released from such detention, before the expiry of the period of detention, if—

(a) the amount mentioned in the warrant for his detention is paid to the officer in charge of the prison ; or

(b) the decree against him is otherwise fully satisfied ; or

(c) the person on whose application he has been detained so requests:

[1]Subs. by Adaptation Order, 1937.
[2]Subs., omitted and amended by Ordinance, X of 1980, ss. 5, 6, 8.
[3]Amended by Adaptation Order, 1937.

Provided that he shall not be released from such detention without the order of the Court.]

[1]**59.** [*Release on ground of illness*.] *Omitted by the Code of Civil Procedure (Amdt.) Ordinance, 1980 (X of 1980), s. 9.*

ATTACHMENT

60. Property liable to attachment and sale in execution of decree.— (1) The following property is liable to attachment and sale in execution of a decree, namely, lands, houses or other buildings, goods, money, bank-notes, cheques, bills of exchange, hundis, promissory notes, Government securities, bonds or other securities for money, debts, shares in a corporation and, save as hereinafter mentioned, all other saleable property, moveable or immoveable, belonging to the judgment-debtor or over which, or the profits of which, he has a disposing power which he may exercise for his own benefit, whether the same be held in the name of the judgment-debtor or by another person in trust for him or on his behalf :

Provided that the following particulars shall not be liable to such attachment or sale, namely:—

(a) the necessary wearing-apparel, cooking vessels, beds and bedding of the judgment-debtor, his wife and children, and such personal ornaments as, in accordance with religious usage, cannot be parted with by any woman ;

(b) tools of artisans, and, where the judgment-debtor is an agriculturist, his implements of husbandry and such cattle and seed-grain as may, in the opinion of the Court, be necessary to enable him to earn his livelihood as such, and such portion of agricultural produce or of any class of agricultural produce as may have been declared to be free from liability under the provisions of the next following section;

(c) houses and other buildings (with the materials and the sites thereof and the land immediately appurtenant thereto and necessary for their enjoyment) belonging to an agriculturist and occupied by him ;

(d) books of account ;

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(e) a mere right to sue for damages ;

(f) any right of personal service ;

(g) stipends and gratuities allowed to [2][pensioners of the Government], or payable out of any service family pension fund notified[3] in the [4][official Gazette] by [4][the [5][Federal Government] or the Provincial Government] in this behalf, and political pensions ;

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[1]Amended by Adaptation Order, 1937.
[2]Amended by Adaptation Order, 1961, Art. 2 (*with effect from the 23rd March, 1956*), to read as above.
[3]For such Notification, see Gazette of India, 1909 Pt. I, p.5.
[4]Subs. by Adaptation Order, 1937.
[5]Subs. by Federal Adaptation Order, 1975, Art. 2 and Table.

[1][*(h)* the wages of labourers and domestic servants, whether payable in money or in kind ; [2][* * *] ;

[2][*(i)* salary to the extent of the first hundred rupees and one-half of the remainder:

Provided that where such salary is the salary of a [3][servant of the State] or a servant of a railway [4][*] or local authority, and the whole or any part of the portion of such salary liable to attachment has been under attachment, whether continuously or intermittently for a total period of twenty-four months, such portion shall be exempt from attachment until the expiry of a further period of twelve months and, where such attachment has been made in execution of one and the same decree, shall be finally exempt from attachment in execution of that decree ;]]

(j) the pay and allowances of persons to whom the [5][[6][Pakistan Army Act, 1952 (XXXIX of 1952)], [7][* * *] applies],[8][or of persons other than commissioned officers to whom the [9][Pakistan Navy Ordinance, 1961, (XXXV of 1961), applies] ;

(k) all compulsory deposits and other sums in or derived from any fund to which the Provident Funds Act,[1][1925 (XIX of 1925)], for the time being applies in so far as they are declared by the said Act not to be liable to attachment;

[1][*(l)* any allowance forming part of the emoluments of any [3][servant of the State] or of any servant of a railway [4][*] or local authority which the [10][appropriate Government] may by notification[11] in the [13][official Gazette] declare to be exempt from attachment, and any subsistence grant or allowance made to [13][any such servant] while under suspension ;]

(m) an expectancy of succession by survivorship or other merely contingent or possible right or interest ;

(n) a right to future maintenance ;

(o) any allowance declared by [14][any Pakistan law] to be exempt from liability to attachment or sale in execution of a decree ; and

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[1]Subs. and Ins. by Act, IX of 1937, s. 2.
[2]Subs. and omitted by Act, V of 1943, s. 2.
[3]Subs. by Adaptation Order, 1961, Art. 2 and Sch., (*with effect from the 23rd March,, 1956*).
[4]Omitted by Ordinance, XLIV of 1962, s. 13.
[5]Subs. by Adaptation Order, 1937.
[6]Subs. by Ordinance, XXI of 1960, s. 3 and 2nd Sch., (*with effect from the 14th October, 1955*).
[7]Omitted by Adaptation Order, 1949.
[8]Ins. by the amending Act, (XXXV of 1934), s. 2 and Sch.
[9]Subs. by Ordinance, XXVII of 1981, s. 3 and Second Sch.
[10]Subs. by Adaptation Order, 1937.
[11]For notification exempting certain allowances payable to any public officers in the service of the Central Government, or any servant of a Federal Railway or of a cantonment authority or of the port authority of a major port, for attachment, see G. of I. Judicial Department Notification No. 186/37, dated 2nd October, 1940, published in the supplement to Gen. R. & O., Pt. II, Vol. VI, p.253.
[12]Subs. by Adaptation Order, 1937.
[13]Subs. by Act V of 1943, s. 2.
[14]Amended by Adaptation Order, 1937, and Adaptation Order, 1949, to read as above.

(p) where the judgment-debtor is a person liable for the payment of land-revenue, any moveable property which, under any law for the time being applicable to him, is exempt from sale for the recovery of an arrear of such revenue.

[1]*[Explanation 1]*.—The particulars mentioned in clauses *(g), (h), (i), (j), (l)* and *(o)* are exempt from attachment or sale whether before or after they are actually payable, [1][and in the case of salary other than salary of a [2][servant of the State] or a servant of a railway [3][*] or local authority the attachable portion thereof is exempt from attachment until it is actually payable].

[1][*Explanation 2.*— In clauses *(h)* and *(i)*, "salary" means the total monthly emoluments, excluding any allowance declared exempt from attachment under the provisions of clause *(l)*, derived by a person from his employment whether on duty or on leave.]

[4][*Explanation 3.*— In clause *(l)* "appropriate Government" means—

(i) as respects any [5][person] in the service of the [6][Federal Government], or any servant [6][of railway or] [3][* * *] of a cantonment authority or of the port authority of a major port, the [6][Federal Government] ;

[7][* * * * * * *]

(iii) as respects any other [2][servant of the State] or a servant of any [8][* * *] local authority, the Provincial Government.]

(2) Nothing in this section shall be deemed__

[9][*] to exempt houses and other buildings (with the materials and the sites thereof and the lands immediately appurtenant thereto and necessary for their enjoyment) from attachment or sale in execution of decrees for rent of any such house, building, site or land, [*][3]

[9][* * * * * * *]

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[1]Subs., re-numbered by Act No. IX of 1937, s. 2.
[2]Subs. by Adaptation Order, 1961, Art, 2 and Sch. (*with effect from the 23rd March,, 1956*),
[3]Omitted by Ordinance, No. XLIV of 1962, s. 13.
[4]Ins. by Adaptation Order, 1937.
[5]Subs. by Act 5 of 1943, s.2.
[6]Subs. by Federal Adaptation Order, 1975, Art. 2 and Table.
[7]Omitted by Adaptation Order, 1949.
[8]Omitted by Federal Adaptation Order, 1975, Art. 2 and Sch. (*with effect from the 14th August, 1973*).
[9]Rep. by Act No. X of 1914, s. 3 and 2nd Sch.

61. Partial exemption of agricultural produce. The [1][Provincial Government][2]* * * may, by general or special order published in the [3][official Gazette, declare that such portion of agricultural produce, or of any class of agricultural produce, as may appear to the [1][Provincial Government] to be necessary for the purpose of providing until the next harvest for the due cultivation of the land and for the support of the judgment-debtor and his family, shall, in the case of all agriculturists or of any class of agriculturists, be exempted from liability to attachment or sale in execution of a decree.

62. Seizure of property in dwelling-house.—(1) No person executing any process under this Code directing or authorizing seizure of moveable property shall enter any dwelling-house after sunset and before sunrise.

(2) No outer door of a dwelling-house shall be broken open unless such dwelling-house is in the occupancy of the judgment-debtor and he refuses or in any way prevents access thereto, but when the person executing any such process has duly gained access to any dwelling-house, he may break open the door of any room in which he has reason to believe any such property to be.

(3) Where a room in a dwelling-house is in the actual occupancy of a woman who, according to the customs of the country, does not appear in public, the person executing the process shall give notice to such woman that she is at liberty to withdraw ; and, after allowing reasonable time for her to withdraw and giving her reasonable facility for withdrawing, he may enter such room for the purpose of seizing the property, using at the same time every precaution, consistent with these provisions, to prevent its clandestine removal.

63. Property attached in execution of decrees of several Courts.—(1) Where property not in the custody of any Court is under attachment in execution of decrees of more Courts than one, of the Court which shall receive or realize such property and shall determine any claim thereto and any objection to the attachment thereof shall be the Court of highest grade, or, where there is no difference in grade between such Courts, the Court under whose decree the property was first attached.

(2) Nothing in this section shall be deemed to invalidate any proceeding taken by a Court executing one of such decrees.

64. Private alienation of property after attachment to be void. Where an attachment has been made, any private transfer or delivery of the property attached or of any interest therein and any payment to the judgment-debtor of any debt, dividend or other monies contrary to such attachment, shall be void as against all claims enforceable under the attachment.

Explanation.—For the purposes of this section, claims enforceable under an attachment include claims for the rateable distribution of assets.

SALE

65. Purchaser's title. Where immoveable property is sold in execution of a decree and such sale has become absolute, the property shall be deemed to have vested in the purchaser from the time when the property is sold and not from the time when the sale becomes absolute.

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[1]Subs. by Adaptation Order, 1937.
[2]Rep. by Act No. XXXVIII of 1920, s. 2 and Sch. Pt. I.
[3]Subs. by Adaptation Order, 1937.

66. Suit against purchaser not maintainable on ground of purchase being on behalf of plaintiff.— (1) No suit shall be maintained against any person claiming title under a purchase certified by the Court in such manner as may be prescribed on the ground that the purchase was made on behalf of the plaintiff or on behalf of some one through whom the plaintiff claims.

(2) Nothing in this section shall bar a suit to obtain a declaration that the name of any purchaser certified as aforesaid was inserted in the certificate fraudulently or without the consent of the real purchaser, or interfere with the right of a third person to proceed against that property, though ostensibly sold to the certified purchaser, on the ground that it is liable to satisfy a claim of such third person against the real owner.

[1][67. Power for Provincial Government to make rules as to sales of land in execution of decrees for payment of money.— (1)] The [2][Provincial Government] [3][* * *], may, by notification in the [2][official Gazette], make rules for any local area imposing conditions in respect of the sale of any class of interests in land in execution of decrees for the payment of money, where such interests are so uncertain or undetermined as, in the opinion of the [2][Provincial Government], to make it impossible to fix their value.

[1][(2) When on the date on which this Code came into operation in any local area, any special rules as to sale of land in execution of decrees were in force therein, the [2][Provincial Government] may, by notification in the [2][official Gazette], declare such rules to be in force, or may, [3][* * *] by a like notification, modify the same.

Every notification issued in the exercise of the powers conferred by this sub-section shall set out the rules so continued or modified.]

DELEGATION TO COLLECTOR OF POWER TO EXECUTE DECREES AGAINST IMMOVEABLE PROPERTY

68. Power to prescribe rules for transferring to Collector execution of certain decrees. The [2][Provincial Government] may, [3][* * *], declare, by notification in the [2][official Gazette], that in any local area the execution of decrees in cases in which a Court has ordered any immoveable property to be sold, or the execution of any particular kind of such decrees, or the execution of decrees ordering the sale of any particular kind of, or interest in, immoveable property, shall be transferred to the Collector.

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69. Provisions of Third Schedule to apply. The provisions set forth in the Third Schedule shall apply to all cases in which the execution of a decree has been transferred under the last preceding section.

70. Rules of procedure.— (1) The [2][Provincial Government] may make rules consistent with the aforesaid provisions—

(a) for the transmission of the decree from the Court to the Collector, and for regulating the procedure of the Collector and his subordinates in executing the same, and for retransmitting the decree from the Collector to the Court ;

[1]Re-numbered by Act No. I of 1914, s. 3.
[2]Subs. by Adaptation Order, 1937.
[3]Omitted by Act No. XXXVIII of 1920, s.2 and First Sch., Pt.I.

(b) conferring upon the Collector or any gazatted subordinate of the Collector all or any of the powers which the Court might exercise in the execution of the decree if the execution thereof had not been transferred to the Collector ;

(c) providing for orders made by the Collector or any gazatted subordinate of the Collector, or orders on appeal with respect to such orders, being subject to appeal to, and revision by, superior revenue-authorities as nearly as may be as the orders made by the Court, or orders made on appeal with respect to such orders, would be subject to appeal to, and revision by, appellate or revisional Courts under this Code or other law for the time being in force if the decree had not been transferred to the Collector.

(2) Jurisdiction of Civil Courts barred. A power conferred by rules made under sub-section (1) upon the Collector or any gazatted subordinate of the Collector, or upon any appellate or revisional authority, shall not be exercisable by the Court or by any Court in exercise of any appellate or revisional jurisdiction which it has with respect to decrees or orders of the Court.

71. Collector deemed to be acting judicially. In executing a decree transferred to the Collector under section 68 the Collector and his subordinates shall be deemed to be acting judicially.

72. Where Court may authroise Collector to stay public sale of land.—(1) Where in any local area in which no declaration under section 68 is in force the property attached consists of land or of a share in land, and the Collector represents to the Court that the public sale of the land or share is objectionable and that satisfaction of the decree may be made within a reasonable period by a temporary alienation of the land or share, the Court may authorise the Collector to provide for such satisfaction in the manner recommended by him instead of proceeding to a sale of the land or share.

(2) In every such case the provisions of sections 69 to 71 and of any rules made in pursuance thereof shall apply so far as they are applicable.

DISTRIBUTION OF ASSESTS

73. Proceeds of execution sale to be rateably distributed among decree-holders.—(1) Where assets are held by a Court and more persons than one have, before the receipt of such assets, made application to the Court for the execution of decrees for the payment of money passed against the same judgment-debtor and have not obtained satisfaction thereof, the assets, after deducting the costs of realization, shall be rateably distributed among all such persons :

Provided as follows:—

(a) where any property is sold subject to a mortgage or charge, the mortgagee or incumbrancer shall not be entitled to share in any surplus arising from such sale;

(b) where any property liable to be sold in execution of a decree is subject to a mortgage or charge, the Court may, with the consent of the mortgagee or incumbrancer, order that the property be sold free from the mortgage or charge, giving to the mortgagee or incumbrancer the same interest in the proceeds of the sale as he had in the property sold ;

(c) where any immoveable property is sold in execution of a decree ordering its sale for the discharge of an incumbrance thereon, the proceeds of sale shall be applied—

first, in defraying the expenses of the sale ;
secondly, in discharging the amount due under the decree ;

thirdly, in discharging the interest and principal monies due on subsequent incumbrances (if any) ; and

fourthly, rateably among the holders of decrees for the payment of money against the judgment debtor, who have, prior to the sale of the property, applied to the Court which passed the decree ordering such sale for execution of such decrees, and have not obtained satisfaction thereof.

(2) Where all or any of the assets liable to be rateably distributed under this section are paid to a person not entitled to receive the same, any person so entitled may sue such person to compel him to refund the assets.

(3) Nothing in this section affects any right of [1][the Government].

RESISTANCE TO EXECUTION

[2]**[74. Resistance to execution**.— (1) Where the Court is satisfied that the holder of a decree for the possession of property or a purchaser of property sold in execution of a decree has been resisted or obstructed in obtaining possession of the property by the judgment-debtor or any other person on his behalf and that such resistance or obstruction was without any just cause, the Court may, at the instance of the decree-holder or the purchaser, order the judgment-debtor or such other person to undergo simple imprisonment for a term which may extend to thirty days and may further direct that the decree-holder or the purchaser be put into possession of the property.

(2) Notwithstanding anything contained in sub-section (1), where a judgment-debtor or any other person resists or obstructs the execution of a decree, the Court may direct the officer in charge of the police-station within whose jurisdiction the judgment-debtor or such other person resides or where the property to which the decree relates is situate to provide the necessary police assistance for the execution of the decree.]

PART III

INCIDENTAL PROCEEDINGS

COMMISSIONS

75. Power of Court to issue commissions. Subject to such conditions and limitations as may be prescribed, the Court may issue a commission—

(a) to examine any person ;

(b) to make a local investigation ;

(c) to examine or adjust accounts ; or

(d) to make a partition.

[3]**[75A.** * * * * * * *]

[1]The original words "the Government" were first subs. by Adaptation Order, 1937, and then amended by A.O., 1961, Art. 2 (*w. e. f 23rd March, 1956*).
[2]Subs. by the Code of Civil Procedure (Amdt.) Ordinance, 1980 (X of 1980), s. 10.
[3]Omitted by Act XIX of 2023, s.8.

76. Commission to another Court.—(1) A commission for the examination of any person may be issued to any Court (not being a High Court) situate in a Province other than the Province in which the Court of issue is situate and having jurisdiction in the place in which the person to be examined resides.

(2) Every Court receiving a commission for the examination of any person under sub-section (1) shall examine him or cause him to be examined pursuant thereto, and the commission, when it has been duly executed, shall be returned together with the evidence taken under it to the Court from which it was issued, unless the order for issuing the commission has otherwise directed, in which case the commission shall be returned in terms of such order.

77. Letter of request. In lieu of issuing a commission the Court may issue a of letter of request to examine a witness residing at any place not within [1][Pakistan].

78. Commissions issued by foreign Courts. [2][Subject to such conditions and limitations as may be prescribed,] the provisions as to the execution and return of commissions for the examination of witnesses shall apply to commissions issued by [2][or at the instance of]—

(a) Courts situate beyond the limits of [1][Pakistan] and established or continued by the authority of [3][* * *] [4][the [5][Federal Government] [6]* * *], or

[7][* * * * * * *]

(c) Courts of any State or country outside Pakistan.].

PART V

SUITS IN PARTICULAR CASES

SUITS BY OR AGAINST [8][THE GOVERNMENT] OR PUBLIC OFFICERS IN THEIR OFFICIAL CAPACITY

[9][79. Suits by or against the Government.—[10][* * *] In a Suit by or against the [11][Government] the authority to be named as plaintiff or defendant, as the case may be, shall be—

(a) in the case of a suit by or against the [5][Federal Government], [12][Pakistan];

(b) in the case of a suit by or against a Provincial Government, the Province ; and

[13][* * * * * * *]

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*w. e. f the 14th October, 1955*).
[2]Ins. by the Code of Civil Procedure (Amdt.) Act, 1932 (X of 1932), section 2.
[3]Omitted by the Central Laws (Adaptation) Order, 1961 (P.O No.1 of 1961), Art. 2 and Sch. (*w. e. f the 23rd march, 1956*).).
[4]Subs. by Adaptation Order, 1937.
[5]Subs. by F.A.O. 1975, Art. 2 and Table.
[6]The words "or of the Crown Representative" omitted by Adaptation Order, 1949.
[7]Clause (b) as amended by A.O., 1949 and Act 10 of 1932, s.2, has been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and Second Sch.,
[8]The original words "the Government" were first subs. by Adaptation Order, 1937, and then amended by Adaptation Order, 1961, Art. 2 (*w. e. f the 23rd March, 1956*) to read as above.
[9]Subs. by Adaptation Order, 1937, for the original s.79.
[10]The words and figures "Subject to the provisions of sections 179 and 185 of the Government of India Act, 1935," omitted by the Federal Laws (Revision and Declaration) Act, 1951, (XXVII of 1951), s.3 and 2nd Sch.
[11]Subs. by Adaptation Order, 1961, Art. 2. (*w. e. f the 23rd March, 1956*).
[12]The original words "the Governor-General in Council before the establishment of the Federation of India, and thereafter, the Federation" have successively been amended by Adaptation Order, 1949, Act 26 of 1951, s.3 and 2nd Sch. and the Code of Civil Procedure (Amdt.) Ordinance, 1962 (XLIV of 1962), s. 14.
[13]Cl. (c) omitted by Adaptation Order, 1949.

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[1][**80. Notice.**— (1) A suit may be instituted against the Government or against a Public officer, in respect of any act purporting to be done by such public officer in his official capacity, after the expiration of two months next after notice in writing has been delivered to or left at the office of, —

(a) in the case of a suit against the [2][Federal Government], a Secretary to that Government;

(b) (i) in the case of a suit against the Provincial Government other than a suit relating to the affairs of a Railway, a Secretary to that Government or the Collector of the District; and

(ii) in the case of a suit against the [3][Federal Government] relating to the affairs of a Railway, the General Manager of the Railway concerned,

and in the case of a public officer, delivered to him or left at his office stating the cause of action, the name, description of place of residence of the plaintiff and the relief which he claims ; and the plaint shall contain a statement that such notice has been so delivered or left.

(2) Where any such suit is instituted without delivering or leaving such notice as aforesaid or before the expiration of the said period of two months or where the plaint does not contain a statement that such notice has been so delivered or left, the plaintiff shall not be entitled to any costs if settlement as regards the subject-matter of the suit is reached or the Government or the public officer concedes the plaintiff's claim, within the period of two months from the date of the institution of the suit :

Provided that in a suit instituted without such notice, the Court shall allow not less than three months to the Government to submit its written statement.]

81. Exemption from arrest and personal appearance. In a suit instituted against a public officer in respect of any act purporting to be done by him in his official capacity—

(a) the defendant shall not be liable to arrest nor his property to attachment otherwise than in execution of a decree, and,

(b) where the Court is satisfied that the defendant cannot absent himself from his duty without detriment to the public service, it shall exempt him from appearing in person.

82. Execution of decree. — (1) Where the decree is against [4][the Government] or against a public officer in respect of any such act as aforesaid, a time shall be specified in the decree within which it shall be satisfied ; and, if the decree is not satisfied within the time so specified, the Court shall report the case for the orders of the [5][Provincial Government].

(2) Execution shall not be issued on any such decree unless it remains unsatisfied for the period of three months computed from the date of such report.

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[6][SUITS BY ALIENS AND BY OR AGAINST FOREIGN RULERS, AMBASSADORS AND ENVOYS]

83. When aliens may sue.— (1) Alien enemies residing [7][in Pakistan] with the permission of the [8][Federal Government], and alien friends, may sue in the Courts [9][in the Provinces], as if they were [10][citizens of Pakistan].

(2) No alien enemy residing [7][in Pakistan] without such permission, or residing in a foreign country, shall sue in any of such Courts.

[1]The original s. 80 has successively been amended by A.O., 1937, the Code of Civil Procedure (Amdt.) Act, 1948 (VII of 1948), s. 2, Adaptation Order, 1949, Adaptation Order, 1961, Art. 2 (w. e. f. the 23rd March, 1956) and Ord. 44 of 1962, s.15. to read as above.
[2]Subs. by F.A.O., 1975, Art. 2 and Table.
[3]Subs. by F.A.O. 1975, Art. 2 and Sch. (*with effect form the 14th August, 1973*).
[4]Amended by A.O., 1961, Art. 2 (*with effect from the 23rd march, 1956*).
[5]Subs. by A.O., 1937.
[6]Subs. by the Code of civil Procedure (Amdt.) Ordinance, 1960 (22 of 1960), s.2, for "SUITS BY ALIENS AND BY OR AGAINST FOREIGN RULERS AND RULERS OF ACCEDING STATES" as amended by A.O., 1937 and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s.4 and 3rd Sch.
[7]Subs. by A.O., 1949.
[8]Subs. by F.A.O., 1975, Art. 2 and Table.
[9]Subs. by A.O., 1949.
[10]Subs. by A.O., 1961, Art. 2 and Sch., (*with effect from the 23rd March, 1956*).

Explanation.—Every person residing in a foreign country the Government of which is at war with [1][, or engaged in military operations against,] [2][Pakistan], and carrying on business in that country without a license in that behalf under the hand [3][* * *] of a Secretary to the [4][Federal Government] shall, for the purpose of sub-section (2), be deemed to be an alien enemy residing in a foreign country.

84. When foreign States may sue.— (1) A foreign State may sue in any Court [5][in the Provinces] :

Provided that such State has been recognized by [6][* * *] the [7][Federal Government]:

Provided, also, that the object of the suit is to enforce a Private right vested in the head of such State or in any officer of such State in his public capacity.

(2) Every Court shall take judicial notice of the fact that a foreign State has or has not been recognized by [6][* * *] the [7][Federal Government].

85. Persons specially appointed by Government to prosecute or defend for Ruler of foreign State.— [8][(1) Persons specially appointed by order of the [7][Federal Government] at the request of the Ruler of any foreign State, or at the request of any person competent, in the opinion of the [7][Federal Government], to act on behalf of such Ruler, to prosecute or defend any suit on his behalf, shall be deemed to be the recognized agents by whom appearances, acts and applications under this Code may be made or done on behalf of such Ruler.]

[9][* * * * * * *]

(2) An appointment under this section may be made for the purpose of a specified suit or of several specified suits, or for the purpose of all such suits as it may from time to time be necessary to prosecute or defend on behalf of the [10][Ruler].

(3) A person appointed under this section may authorise or appoint persons to make appearances and applications and do acts in any such suit or suits as if he were himself a party thereto.

[11]**86.** [*Suits against Rulers.*] *Repealed by the State Immunity Ordinance, 1981 (VI of 1981), s.19.*

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86A. Suits against diplomatic agents.— (1) No proceeding in any Court shall lie against a diplomatic agent except in a case relating to—

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[1]Ins. by the code of Civil Procedure (Amdt.) Act, 1965 (19 of 1965), s.2.
[2]Subs. by A.O., 1949.
[3]The words "of one of His Majesty's Secretaries of State or" omitted, *ibid*.
[4]Subs. by F.A.O., 1975, Art. 2 and Table.
[5]Subs. by A.O., 1949.
[6]The words "His majesty or by" omitted by A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956).
[7]Subs. by F.A.O., 1975, Art.2 and Table.
[8]Subs. and shall be deemed to have been so subs. on the 14th day of October, 1955, by the Code of Civil Procedure (Amdt.) Ordinance, 1960 (22 of 1960), s.3, for the existing sub-section (1), as amended by A.O., 1949 and the Central laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch.
[9]The *Explanation* which had been ins. by A.O., 1937, omitted by A.O. 1949.
[10]Subs. and shall be deemed to have been so subs. on the 14th day of October, 1955, by Ordinance 22 of 1960, s.3.
[11]This section was previously amended from time to time by various enactments.

(a) any private immoveable property situated in Pakistan held by him in his private capacity and not on behalf of the sending State for the purpose of the mission ;

(b) a succession in which the diplomatic agent is involved as executor, administrator, heir or legatee as a private person and not on behalf of the sending State;

(c) any professional or commercial activity exercised by the diplomatic agent in Pakistan outside his official functions.

(2) No measures of execution shall be taken in respect of a diplomatic agent except in cases which come under clauses (a), (b) and (c) of sub-section (1) and in which such measures can be taken without infringing the inviolability of his person or of his residence.

(3) The initiation of any proceedings in a Court by a diplomatic agent shall preclude him from invoking immunity from jurisdiction under this section in respect of any counter-claim directly connected with the principal claim.

(4) The immunity of a diplomatic agent under sub-section (1) or sub-section (2) may be waived by the sending State; and any such waiver shall be express.

(5) Waiver of immunity in respect of any proceedings shall not be held to imply waiver of immunity in respect of any measure of execution for which a separate waiver shall be necessary.

(6) In this section, 'diplomatic agent' in relation to a State means the head of the mission in Pakistan of that State and includes a member of the staff of that mission having diplomatic rank.]

[1]**87.** [*Style of Rulers as Parties to suits*.] *Repealed by the State Immunity Ordinance, 1981 (VI of 1981), s. 19.*

[2][* * *]

[3]**87A.** [*Application of sections 85 and 86 to Rulers of Acceding States, etc*.] *Omitted by the Code of Civil Procedure (Amdt.) Act, 1972 (II of 1972), s.2.*

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INTERPLEADER

88. Where inter pleader suit may be instituted. Where two or more persons claim adversely to one another the same debt, sum of money or other property, moveable or immoveable, from another person, who claims no interest therein other than for charges or costs and who is ready to pay or deliver it to the rightful claimant, such other person may institute a suit of' interpleader against all the claimants for the purpose of obtaining a decision as to the person to whom the payment or delivery shall be made and of obtaining indemnity for himself :

Provided that where any suit is pending in which the rights of all parties can properly be decided, no such suit of interpleader shall be instituted.

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[1]This section was previously amended by various enactments from time to time.
[2]The heading "SUITS AGAINST RULERS OF ACCEDING AND MERGED STATES" as ins. by Ord. 22 of 1960, s.6, has been omitted by the Code of Civil Procedure (Amdt.) Act, 1972 (2 of 1972), s.2.
[3]S.87A was ins. by ord. 22 of 1960, s. 6.

PART V

SPECIAL PROCEEDINGS

ARBITRATION

89. [*Arbitration.*] *Omitted by the Arbitration Act, 1940 (X of 1940), s. 49 and Third Schedule.*

[1]**[89A.** ***Alternate dispute resolution***.— The Court may, where it considers necessary, having regard to the facts and circumstances of the case, with the object of securing expeditious disposal of a case, in or in relation to a suit, adopt with the consent of the parties alternate dispute resolution method, including mediation and conciliation].

SPECIAL CASE

90. Power to state case for opinion of Court. Where any persons agree in writing to state a case for the opinion of the Court, then the Court shall try and determine the same in the manner prescribed.

SUITS RELATING TO PUBLIC MATTERS

91. Public nuisances.— (1) In the case of a public nuisance the Advocate General, or two or more persons having [2][with the leave of the Court], may institute a suit, though no special damage has been caused, for a declaration and injunction or for such other relief as may be appropriate to the circumstances of the case.

(2) Nothing in this section shall be deemed to limit or otherwise affect any right of suit which may exist independently of its provisions.

92. Public charities.— (1) In the case of any alleged breach of any express or constructive trust created for public purposes of a charitable or religious nature, or where the direction of the Court is deemed necessary for the administration of any such trust, the Advocate General, or two or more persons having an interest in the trust and having obtained the [2][with the leave of the Court], may institute a suit, whether contentious or not, in the principal Civil Court of original jurisdiction or in any other Court empowered in that behalf by the [3][Provincial Government] within the local limits of whose jurisdiction the whole or any part of the subject-matter of the trust is situate, to obtain a decree—

(a) removing any trustee ;

(b) appointing a new trustee ;

(c) vesting any property in a trustee ;

(d) directing accounts and inquiries ;

(e) declaring what proportion of the trust-property or of the interest therein shall be allocated to any particular object of the trust ;

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[1]Ins. by ord. 34 of 02, s. 2.
[2]Subs. by Act No. XLVIII of 2016, s.2.
[3]Subs. by A.O., 1937.

(f) authorising the whole or any part of the trust-property to be let, sold, mortgaged or exchanged ;

(g) settling a scheme ; or

(h) granting such further or other relief as the nature of the case may require.

(2) [1][* * *] [1][No] suit claiming any of the reliefs specified in sub-section (1) shall be instituted in respect of any such trust as is therein referred to except in conformity with the provisions of that sub- section.

93. Exercise of powers of Advocate General. The powers conferred by sections 91 and 92 on the Advocate General may, [2][* * *] , be, with the previous sanction of the [3][Provincial Government], exercised also by the Collector or by such officer as the [3][Provincial Government], may appoint in this behalf.

PART VI

SUPPLEMENTAL PROCEEDINGS

94. Supplemental Proceedings. In order to prevent the ends of justice from being defeated the Court may, if it is so prescribed,—

(a) issue a warrant to arrest the defendant and bring him before the Court to show cause why he should not give security for his appearance, and if he fails to comply with any order for security commit him to the civil prison ;

(b) direct the defendant to furnish security to produce any property belonging to him and to place the same at the disposal of the Court or order the attachment of any property ;

(c) grant a temporary injunction and in case of disobedience commit the person guilty thereof to the civil prison and order that his property be attached and sold ;

(d) appoint a receiver of any property and enforce the performance of his duties by attaching and selling his property ;

(e) make such other interlocutory orders as may appear to the Court to be just and convenient.

95. Compensation, for obtaining arrest, attachment or injunction on in sufficient grounds.— (1) Where, in any suit in which an arrest or attachment has been effected or a temporary injunction granted under the last preceding section,—

(a) it appears to the Court that such arrest, attachment or injunction was applied for on insufficient grounds, or

[1]Omitted and subs. by Act No. XLVIII of 2016, s.3.
[2]The words "outside the Presidency-towns" omitted by A.O., 1949.
[3]Subs. by A.O., 1937.

(b) the suit of the plaintiff fails and it appears to the Court that there was no reasonable or probable ground for instituting the same,

the defendant may apply to the Court and the Court may, upon such application, award against the plaintiff by its order such amount, not exceeding [1][ten] thousand rupees, as it deems a reasonable compensation to the defendant for the expense or injury caused to him :

Provided that a Court shall not award, under this section, an amount exceeding the limits of its pecuniary jurisdiction.

(2) An order determining any such application shall bar any suit for compensation in respect of such arrest, attachment or injunction.

PART VII

APPEALS

APPEALS FROM ORIGINAL DECREES

[2]**[96. Appeal from original decree**.— Save where otherwise expressly provided in the body of this Code or by any other law for the time being in force, an appeal shall lie from every decree passed by any Court exercising original jurisdiction to the Court authorized to hear appeal from the decisions of such Court.

(2) An appeal may lie from an original decree passed *ex-parte.*

(3) No appeal shall lie from a decree passed by the Court with consent of the parties.]

97. Appeal from final decree where no appeal from preliminary decree. Where any party aggrieved by a preliminary decree passed after the commencement of this Code does not appeal from such decree, he shall be precluded from disputing its correctness in any appeal which may be preferred from the final decree.

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98. Decision where appeal heard by two or more Judges.— (l) where an appeal is heard by a Bench of two or more Judges, the appeal shall be decided in accordance with the opinion of such Judges or of the majority (if any) of such Judges.

(2) Where there is no such majority which concurs in a judgment varying or reversing the decree appealed from, such decree shall be confirmed :

Provided that where the Bench hearing the appeal is composed of two judges belonging to a Court consisting of more than two Judges, and the Judges composing the Bench differ in opinion on a point of law, they may state the point of law upon which they differ and the appeal shall then be heard upon that point only by one or more of the other Judges, and such point shall be decided according to the opinion of the majority (if any) of the Judges who have heard the appeal, including those who first heard it.

[3][(3) Nothing in this section shall be deemed to alter or otherwise affect any provision of the letters patent of any High Court.]

[1]Subs. by Act XIV of 1994, s.8.
[2]Subs. by Act XIX of 2023, s.9.
[3]Sub-section (3) ins. by the Repealing and Amending Act, 1928 (18 of 1928), s.2 and First Sch.

99. No decree to be reversed or modified for error or irregularity not affecting merits or jurisdiction. No decree shall be reversed or substantially varied, nor shall any case be remanded, in appeal on account of any misjoinder of parties or causes of action or any error, defect or irregularity in any proceedings in the suit, not affecting the merits of the case or the jurisdiction of the Court.

APPEALS FROM APPEALATE DECREES

[1]**[100. Second appeal.**—(1) Save where otherwise expressly provided in the body of this Code or in any other law, for the time being in force, an appeal shall lie to the High Court from every decree passed in appeal by any Court subordinate to that High Court, on any of the following grounds, namely:—

(a) the decision being contrary to law or to some usage having the force of law;

(b) the decision having failed to determine some material issue of law or usage having the force of law; or

(c) a substantial error or defect in the procedure provided by this Code or by any other law for the time being in force, which may possibly have produced error or defect in the decision of the case upon the merits.

101. Second appeal on no other grounds.—No second appeal shall lie except on the grounds mentioned in section 100.

102. No second appeal in certain cases.—No second appeal shall lie in any suit except when the amount or value of the subject matter of the original suit does not exceed the amount or value as may be prescribed.

103. Power of High Court to determine issues of fact.—In any second appeal, the High Court may, if the evidence on the record is sufficient, determine any issue of fact necessary for disposal of the appeal which has not been determined by the lower appellate Court or which has been wrongly determined by such Court by reason of any illegality, omission, error or defect such as is referred to in sub-section (1) of section 100.]

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APPEALS FROM ORDERS

104. Orders from which appeal lies.—(1) An appeal shall lie from the following orders, and save as otherwise expressly provided in the body of this Code or by any law for the time being in force, from no other orders:—

[2][* * * * * * *]

[3][*(f)* an order under section 35A;

(ff) an order under section 47;]

[4][(fff) an order under section 91 or section 92 refusing leave to institute a suit;]

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[1]Subs by Act No. XIX of 2023, s.10.
[2]Cls. (a) to (f) omitted by the Arbitration Act No. X of 1940, s. 49 and 3rd Sch.
[3]Subs. by Ord. 12 of 1972, s.2 and Sch., for cl. (*ff*) which was previously ins. by the Civil Procedure (Amdt.) Act No. *IX of 1922*, s. 3.
[4]Ins. by Act No. XLVIII of 2016, s.4.

(g) an order under section 95;

(h) an order under any of the provisions of this Code imposing a fine or directing the arrest or detention in the civil prison of any person except where such arrest or detention is in execution of a decree;

(i) any order made under rules from which an appeal is expressly allowed by rules:

[1][Provided that no appeal shall lie against any order specified in clause [2][(f)] save on the ground that no order, or an order for the payment of a less amount, ought to have been made.]

(2) No appeal shall lie from any order passed in appeal under this section.

105. Other orders.— (1) Save as otherwise expressly provided, no appeal shall lie from any order made by a Court in the exercise of its original or appellate jurisdiction; but, where a decree is appealed from, any error, defect or irregularity in any order, affecting the decision of the case, may be set forth as a ground of objection in the memorandum of appeal.

(2) Notwithstanding anything contained in sub-section (1), where any party aggrieved by an order of remand made after the commencement of this Code from which an appeal lies does not appeal therefrom, he shall thereafter be precluded from disputing its correctness.

[3]**[106. What Courts to hear appeals.** Where an appeal from any order is allowed, it shall lie to the Court to which an appeal would lie from the decree in the suit in which such order was made, or where such order is made by a Court (not being a High Court) in the exercise of appellate jurisdiction, then to the High Court.]

GENERAL PROVISIONS RELATING TO APPEALS

107. Powers of Appellate Court.— (1) Subject to such conditions and limitations as may be prescribed, an Appellate Court shall have power—

(a) to determine a case finally;

(b) to remand a case;

(c) to frame issues and refer them for trial;

(d) to take additional evidence or to require such evidence to be taken.

(2) Subject as aforesaid, the Appellate Court shall have the same powers and shall perform as nearly as may be the same duties as are conferred and imposed by this Code on Courts of original jurisdiction in respect of suits instituted therein.

108. Procedure in appeals from appellate decrees and orders. The provisions of this Part relating to appeals from original decrees shall, so far as may be, apply to appeals—

(a) from appellate decrees, and

(b) from orders made under this Code or under any special or local law in which a different procedure is not provided.

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[1]Proviso ins. by the Civil Procedure (Amdt.) Act No. IX of 1922, s. 3.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, No. XXVII of 1981, s. 3 and Second Sch.
[3]Subs. by Act No. XIX of 2023, s. 11.

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[1]APPEALS TO THE [2][SUPREME COURT]

[3][**109. When appeals, lie to the Supreme Court.** An appeal from a judgment, decree or final order of a High Court shall lie to the Supreme Court—

(a) if the amount or value or the subject-matter of the dispute in the Court of first instance was and also in appeal is (unless varied by an Act of Parliament) fifty thousand rupees or upward and the judgment, decree or final order appealed from has varied or set aside the judgment, decree or final order of the Court immediately below; or

(b) if the judgment, decree or final order involves, directly or indirectly, some claim or question respecting property of the like amount or value and the judgment, decree or final order appealed from has varied or set aside the judgment, decree or final order of the Court immediately below; or

(c) if the High Court certifies that the case involves a substantial question of law as to the interpretation of the Constitution.]

[4]110.[*Omitted*].

111. Bar of certain appeals. Notwithstanding anything contained in section 109, no appeal shall lie to [5][the Supreme Court]:

(a) from the decree or order of one Judge of a High Court [6][* * *], or of one Judge of a Division Court, or of two or more Judges of such High Court, or of a Division Court constituted by two or more Judges of such High Court, where such Judges are equally divided in opinion and do not amount in number to a majority of the whole of the Judges of the High Court at the time being ; or

[7][(b) from any decree from which, under section 102, no second appeal lies.]

[8]111A. [*Omitted*].

112. Savings.— [9][(1) Nothing contained in this Code shall be deemed—

(a) to affect the powers of the Supreme Court under Article [10][191 of the Constitution or any other provision thereof] ; or

(b) to interfere with any rules made by the Supreme Court, and for the time being in force, for the presentation of appeals to that Court, or their conduct before that Court.]

[1]*See* also the Federal Court (Enlargement of Jurisdiction) Act No. I of 1950, s. 6 and the Privy council (Abolition of Jurisdiction) Act, 1950, s. 9.
[2]Subs. by Adaptation Order, 1961, Art. 2 and sch., (*with effect from the 23rd March, 1956*).
[3]The original s. 109 has successively been amended by the Central Laws (Statute Reform) Ordinance, No. XXI of 1960, s.3 and 2nd Sch. (with effect from the 14th October, 1955), Adaptation Order, 1961, Art.2 and Sch. (with effect from the 23rd March, 1956), and Federal Adaptation Order, 1975, Art.2 and Sch. (with effect from the 14th August,1973), to read as above.
[4]*Omitted* by Federal Adaptation Order, 1975, Art. 2 and Sch. (with effect from the 14th August, 1973).
[5]Subs. by Adaptation Order, 1961, Art. 2 and Sch., (*with effect from the 23rd March, 1956*).
[6]Amended by Adaptation Order, 1937 and Act No. XIII of 1916. Sch., have been Omitted by Adaptation Order, 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*).
[7]Subs. by Act No. XIX of 2023, s.12.
[8]Omitted by the Federal Court Act, 1941 (XXI of 1941), s. 2.
[9]Subs. by Adaptation Order 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*).
[10]Amended by Adaptation Order, 1964, Art. 2 and Sch. and Federal Adaptation Order, 1975, Art. 2 and Sch. (*with effect from the 14th August, 1973*).

(2) Nothing herein contained applies to any matter of criminal or admiralty or vice-admiralty

jurisdiction, or to appeals from orders and decrees of Prize Courts.

PART VIII
REFERENCE, REVIEW AND REVISION

113. Reference to High Court. Subject to such conditions and limitations as may be prescribed, any Court may state a case and refer the same for the opinion of the High Court, and the High Court may make such order thereon as it thinks fit.

[1]**[114. Review.**— (1) Subject as aforesaid, any person considering himself aggrieved by a degree or order from which—

(a) an appeal is allowed by this Code, but from which no appeal has been preferred; or

(b) no appeal is allowed by this Code,

may apply for a review of judgment to the Court which passed the degree or made the order, and the Court may make such order thereon as it think fit.]

[1]**[115. Revision.**— (1) A High Court may call for the record of any case which has been decided by any Court subordinate to that High Court and in which no appeal lies thereto, and if such subordinate Court appears—

(a) to have exercised a jurisdiction not vested in it by law; or

(b) to have failed to exercise a jurisdiction so vested; or

(c) to have acted in the exercise of its jurisdiction illegally or with material irregularity,

the High Court may make such order in the case as it thinks fit:

Provided that where a person makes an application under this sub-section, he shall, in support of such application, furnish copies of the pleadings, documents and order of the subordinate Court and the High Court shall, except for reasons to be recorded, dispose of such application without calling for the record of the subordinate Court:

Provided further that such application shall be made within ninety days of the decision of the subordinate Court which shall provide a copy of such decision within three days thereof and the High Court shall dispose of such application within six months.

(2) A District Court may exercise the powers conferred on the High Court by sub-section (1) in respect of any case decided by a Court subordinate to that District Court in which no appeal lies and the amount or value of the subject-matter whereof does not exceed the limits of the appellate jurisdiction of the District Court.

(3) If an application under sub-section (1) in respect of a case within the competence of the District Court has been made either to the High Court or the District Court, no further such application shall be made to either of them.

(4) No proceedings in revision shall be entertained by the High Court against an order made under sub-section (2) by the District Court.]

[1]Subs. by Act No. XIX of 2023, s. 13-14.

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PART IX

SPECIAL PROVISION RELATING TO [1][* *] HIGH COURTS

116. Part to apply only to certain High Courts. This Part applies only to High Courts [2][* * *]

117. Application of Code to High Courts. Save as provided in this Part or in Part X or in rules, the provisions of this Code shall apply to [1][*] High Courts.

118. Execution of decree before ascertainment of costs. Where any [3]* High Court considers it necessary that a decree passed in the exercise of its original civil jurisdiction should be executed before the amount of the costs incurred in the suit can be ascertained by taxation, the Court may order that the decree shall be executed forthwith, except as to so much thereof as relates to the costs;

and, as to so much thereof as relates to the costs, that the decree may be executed as soon as the amount of the costs shall be ascertained by taxation.

119. Unauthorised persons not to address Courts. Nothing in this Code shall be deemed to authorise any person on behalf of another to address the Court in the exercise of its original civil jurisdiction, or to examine witnesses, except where the Court shall have in the exercise of the power conferred by its charter authorised him so to do, or to interfere with the power of the High Court to make rules concerning advocates, vakils and attorneys.

120. Provisions not applicable to High Court in original civil jurisdiction.– (1) The following provisions shall not apply to the High Court in the exercise of its original civil jurisdiction, namely, sections 16, 17 and 20.

[4][* * * * * * *]

PART X

RULES

121. Effect of rules in First Schedule. The rules in the First Schedule shall have effect as if enacted in the body of this Code until annulled or altered in accordance with the provisions or this Part.

122. Power of certain High Courts to make rules. [4][The High Courts] [5][* * *] may, from time to time after previous publication, make rules regulating their own procedure and the procedure of the Civil Courts subject to their superintendence, and may by such rules annul, alter or add to all or any of the rules in the First Schedule.

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[1]Omitted by the Central Laws (Statute Reform) Ordinance, No. XXI of 1960, s.3 and 2nd Sch. (*with effect from the 14th October,1955*).
[2]Amended by Adaptation Order., 1937 and Act No. XIII of 1916, Sch., have been omitted by Ordinance No. XXI of 1960. s.3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[3]Sub-section (2) omitted by the Presidency-towns Insolvency Act No. III of 1909, s. 127 and Third Sch.
[4]Subs. by the Central Laws (Statute Reform) ordinance, No. XXI of 1960,s. 3 ad 2nd Sch. (*with effect from the 14th October, 1955*) and the Government of India Act, 1935'' as amended by Adaptation Order, 1937, Adaptation Order, 1949 and the Oudh Courts (Supplementary) Act No. XXXII of 1925, s.2 and Sch.
[5]Omitted by the Repealing and Amending Act No. XI of 1923, s. 3 and Second Sch. and subs. by the repealing and Amending Act No. XVIII of 1919, s. 2 and First Sch.

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123. Constitution of Rules Committees in certain Provinces.— (1) A Committee, to be called the Rule Committee, shall be constituted at [1][the town which is the usual place of sitting of each of the High Courts [2][* * *] [3][* * *] referred to in section 122].

(2) Each such Committee shall consist of the following persons, namely:—

(a) three Judges of the High Court established at the town at which such Committee is constituted, one of whom at least has served as a District Judge or [4]* * * a Divisional Judge for three years,

[5][* * * * * * *]

[5][*(c)* two advocates practising in that Court, and]

(d) a Judge of a Civil Court subordinate to the High Court,

[5][* * * * * * *]

(3) The members of each such Committee shall be appointed by the Chief Justice [6][* * *] who shall also nominate one of their member to be President:

Provided that, if the Chief Justice [6][* * *] elects to be himself a member of a Committee, the number of other Judges appointed to be members shall be two, and the Chief Justice [6][* * *] shall be the President of the Committee.

(4) Each member of any such Committee shall hold office for such period as may be prescribed by the Chief Justice [6][* * *] in this behalf; and whenever any member retires, resigns, dies or ceases to reside in the Province in which the Committee was constituted, or becomes incapable of acting as a member of the Committee, the said Chief Justice [6][* * *] may appoint another person to be a member in his stead.

(5) There shall be a Secretary to each such Committee, who shall be appointed by the Chief Justice [6][* * *] and shall receive such remuneration as may be provided in this behalf [7][by the Provincial Government].

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124. Committee to report to High Court. Every Rule Committee shall make a report to the High Court established at the town at which it is constituted on any proposal to annul, alter or add to the rules in the First Schedule or to make new rules, and before making any rules under section 122 the High Court shall take such report into consideration.

[8]**125.** [*Omitted*].

[1]Subs. by the Amending Act No. XIII 1916, s. 2 and Sch.
[2]Ins. by Act No. XXXII of 1925, s. 2 and Sch., were omitted by Adaptation Order, 1949.
[3]Omitted by Act No. XI of 1923, s. 2 and First Sch and previously subs by Act No. XVIII of 1919, s. 2 and First Sch.
[4]Subs. by s. 2 and First Sch. of Act No. XVIII of 1919, and were subsequently omitted by s. 3 and Second Sch. of Act No. XI of 1923.
[5]Clause (b) omitted, clause (c) subs., and clause (e) omitted by the Federal Laws (Revision and Declaration) Ordinance, No. XVII of 1981, s. 3 and Second Sch.
[6]Omitted by the Central Laws (Statute Reforms) Ordinance, No. XXI of 1960, s. 3 and 2nd Sch. (with effect from the 14th October, 1955).
[7]Subs. by Adaptation Order, 1937.
[8]Omitted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), S.3 and 2nd Sch. (with effect from the 14th October, 1955).

[1]**[126. Rules to be subject to approval**. Rules made under the foregoing provisions shall be subject to the previous approval of the Government of the Province in which the Court whose procedure the rules regulate is situate or, if that Court is not situate in any Province, to the previous approval of the [2][Federal Government].

127. Publication of rules. Rules so made and [3][approved] shall be published in the [4][official Gazette * * *], and shall from the date of publication or from such other date as may be specified have the same force and effect, within the local limits of the jurisdiction of the High Court which made them, as if they had been contained in the First Schedule.

128. Matters for which rules may provide.—(1) Such rules shall be not inconsistent with the provisions in the body of this Code, but, subject thereto, may provide for any matters relating to the procedure of Civil Courts.

(2) In particular, and without prejudice to the generality of the powers conferred by sub-section (1), such rules may provide for all or any of the following matters, namely:—

(a) the service of summonses, notices and other processes by post or in any other manner either generally or in any specified areas, and the proof of such service;

(b) the maintenance and custody, while under attachment, of live-stock and other moveable property, the fees payable for such maintenance and custody, the sale of such live-stock and property, and the proceeds of such sale;

(c) procedure in suits by way of counterclaim, and the valuation of such suits for the purposes of jurisdiction;

(d) procedure in garnishee and charging orders either in addition to, or in substitution for, the attachment and sale of debts ;

(e) procedure where the defendant claims to be entitled to contribution or indemnity over against any person whether a party to the suit or not;

(f) summary procedure—

(i) in suits in which the plaintiff seeks only to recover a debt or liquidated demand in money payable by the defendant, with or without interest, arising on a contract express or implied; or

on an enactment where the sum sought to be recovered is a fixed sum of money or in the nature of a debt other than a penalty; or

on a guarantee, where the claim against the principle is in respect of a debt or a liquidated demand only; or

on a trust; or

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[1]Subs. by Adaptation Order, 1937, for s. 126 as amended by the Amending Act No. XIII of 1916, Sch.
[2]Subs. by Federal Adaptation Order, 1975, Art.2 and Sch. which had been subs. by Adaptation Order, 1961, Art. 2 (*with effect from the 23rd March, 1956*).
[3]Subs. by the Repealing and Amending Act No. XXVII of 1917, s. 2 and First Sch.
[4]Subs. by Adaptation Order, 1937, para 4 (1).

(ii) in suits for the recovery of immoveable property, with or without a claim for rent or mesne profits, by a landlord against a tenant whose term has expired or has been duly determined by notice to quit, or has become liable to forfeiture for non-payment of rent, or against persons claiming under such tenant;

(g) procedure by way of originating summons;

(h) consolidation of suits, appeals and other proceedings;

(i) delegation to any Registrar, Prothonotary or master or other official of the Court of any judicial, quasi-judicial and non-judicial duties; and

(j) all forms, registers, books, entries and accounts which may be necessary or desirable for the transaction of the business of Civil Courts.

[1][(3) The High Court shall make rules, not inconsistent with the provisions of this Code, for case management and scheduling conferences binding the parties to follow the schedules and timelines prescribed therein.]

129. Power of [2][*] the High Courts to make rules as to their original civil procedure. Notwithstanding anything in this Code, any High Court [3][* * *] may make such rules not inconsistent with [4][its Letters Patent] to regulate its own procedure in the exercise of its original civil jurisdiction as it shall think fit, and nothing herein contained shall affect the validity of any such rules in force at the commencement of this Code.

[5]**130.** [*Omitted*].

131. Publication of rules. Rules made in accordance with section 129 [6][* * *] shall be published in the [7][official Gazette * * *] and shall from the date of publication or from such other date as may be specified have the force of law.

PART XI

MISCELLANEOUS

132. Exemption of certain women from personal appearance.— (1) Women who, according to the customs and manners of the country[7] ought not to be compelled to appear in public shall be exempt from personal appearance in Court.

(2) Nothing herein contained shall be deemed to exempt such women from arrest in execution of civil process in any case in which the arrest of women is not prohibited by this Code.

[1]Ins. by Act No. VII of 2020, s. 16.
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, No. XVII of 1981, s. 3 and Second Sch.
[3]Amended by Adaptation Order, 1937 and the Amending Act No. XIII of 1916, Sch., have been omitted by the Central Laws (Statute Reform) Ordinance, No. XXI of 1960, s.3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[4]Subs. by Ordinance, No. XXI of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[5]Omitted by Adaptation Order, 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956).
[6]Omitted by Adaptation Order, 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*).
[7]Subs. by Adaptation Order, 1937, para 4(1).

133. Exemption of other persons.— (1) The [1][Provincial Government] may, by notification[2] in the [1][official Gazette], exempt from personal appearance in Court any person whose rank, in the opinion of such Government, entitles him to the privilege of exemption.

(2) The names and residences of the persons so exempted shall, from time to time, be forwarded to the High Court by the [1][Provincial Government] and a list of such persons shall be kept in such Court, and a list of such persons as reside within the local limits of the jurisdiction of each Court subordinate to the High Court shall be kept in such subordinate Court.

(3) Where any person so exempted claims the privilege of such exemption, and it is consequently necessary to examine him by commission, he shall pay the costs of that commission, unless the party requiring his evidence pays such costs.

134. Arrest other than in execution of decree. The provisions of sections 55, 57 and 59 shall apply, so far as may be, to all persons arrested under this Code.

135. Exemption from arrest under civil process.— (1) No Judge, Magistrate or other judicial officer shall be liable to arrest under civil process while going to, presiding in, or returning from, his Court.

(2) Where any matter is pending before a tribunal having jurisdiction therein, or believing in good faith that it has such jurisdiction, the parties thereto, their pleaders, mukhtars, revenue-agents and recognized agents, and their witnesses acting in obedience to a summons, shall be exempt from arrest under civil process other than process issued by such tribunal for contempt of Court while going to or attending such tribunal for the purpose of such matter, and while returning from such tribunal.

(3) Nothing in sub-section (2) shall enable a judgment-debtor to claim exemption from arrest under an order for immediate execution or where such judgment-debtor attends to show cause why he should not be committed to prison in execution of a decree.

[3][135A. Exemption of members of Legislative bodies from arrest and detention under civil process.— (1) No person shall be liable to arrest or detention in prison under civil process—

[6][(a) if he is member of a [4][*] Legislature [4][* * *] [5][* * *] ,during the continuance of any meeting of such Legislature [4][* *];]

(b) if he is a member of any committee of such [1][Legislature [4]* * *], during the continuance of any meeting of such committee;

[6][* * * * * * *]

[1]Subs. by Adaptation Order, 1937.
[2]For such notifications, see the different local Rules and Orders.
[3]S. 135A ins. by the Legislative Members Exemption Act, 1925 (23 of 1925), s.3.
[4]Omitted by Adaptation Order, 1949.
[5]Omitted by Adaptation Order, 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956).
[6]The original cl. (c) was first subs. by Adaptation Order, 1937 and then omitted by Adaptation Order, 1949.

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and during the fourteen days before and after such meeting or sitting.

(2) A person released from detention under sub-section (1) shall, subject to the provisions of the said sub-section, be liable to re-arrest and to the further detention to which he would have been liable if he had not been released under the provisions of sub-section (1).]

136. Procedure where person to be arrested or property to be attached is outside district.— (1) Where an application is made that any person shall be arrested or that property shall be attached under any provision of this Code not relating to the execution of decrees, and such person resides or such property is situate outside the local limits of the jurisdiction of the Court to which the application is made, the Court may, in its discretion, issue a warrant of arrest or make an order of attachment, and send to the District Court within the local limits of whose jurisdiction such person or property resides or is situate a copy of the warrant or order, together with the probable amount of the costs of the arrest or attachment.

(2) The district Court shall, on receipt of such copy and amount, cause the arrest or attachment to be made by its own officers, or by a Court subordinate to itself, and shall inform the Court which issued or made such warrant or order of the arrest or attachment

(3) The Court making an arrest under this section shall send the person arrested to the Court by which the warrant of arrest was issued, unless he shows cause to the satisfaction of the former Court why he should not be sent to the latter Court, or unless he furnishes sufficient security for his appearance before the latter Court or for satisfying any decree that may be passed against him by that Court, in either of which cases the Court making the arrest shall release him.

[1][* * * * * * *]

137. Language of subordinate Courts.— (1) The language which, on the commencement of this Code, is the language of any Court subordinate to a High Court shall continue to be the language of such subordinate Court until the [2][Provincial Government] otherwise directs.

(2) The [2][Provincial Government] may declare what shall be the language of any such Court and in what character applications to and proceedings in such Courts shall be written.

(3) Where this Code requires or allows anything other than the recording of evidence to be done in writing in any such Court, such writing may be in English; but if any party or his pleader is unacquainted with English a translation into the language of the Court shall, at his request, be supplied to him; and the Court shall make such order as it thinks fit in respect of the payment of the costs of such translation.

138. Power of High Court to require evidence to be recorded in English.— (1) The [3][High Court] may, by notification in the [2][official Gazette], direct with respect to any Judge specified in the notification, or failing under a description set forth therein, that evidence in cases in which an appeal is allowed shall be taken down by him in the English language and in manner prescribed.

(2) Where a Judge is prevented by any sufficient reason from complying with a direction under sub-section (1), he shall record the reason and cause the evidence to be taken down in writing from his dictation in open Court.

[1]Amended by Adaptation Order, 1937, has been omitted by Adaptation Order, 1949.
[2]Subs. by Adaptation Order, 1937.
[3]Subs. by the Decentralization Act, No. IV of 1914, s.2 and Sch., Pt. I.

139. Oath on affidavit by whom to be administered. In the case of any affidavit under this Code—

(a) any Court or Magistrate, or

(b) any officer or other person whom a High Court may appoint in this behalf, or

[1](c) any officer appointed by any other Court which the [2][Provincial Government] has generally or specially empowered in this behalf,

may administer the oath to the deponent.

140. Assessors in causes of savages, etc.— (1) In any Admiralty or Vice-Admiralty cause of salvage, towage or collision, the Court, whether it be exercising its original or its appellate jurisdiction, may, if it thinks fit, and shall upon request of either party to such cause, summon to its assistance, in such manner as it may direct or as may be prescribed, two competent assessors; and such assessors shall attend and assist accordingly.

(2) Every such assessor shall receive such fees for his attendance, to be paid by such of the parties as the Court may direct or as may be prescribed.

[3][**141. Miscellaneous proceedings.**— The procedure provided in this Code with regard to suits shall be followed, as far as it can be made applicable, in all proceedings in any Court of civil jurisdiction.]

142. Orders and notices to be in writing. All orders and notices served on or given to any person under the provisions of this Code shall be in writing.

143. Postage. Postage, where chargeable on a notice, summons or letter issued under this Code and forwarded by post, and the fee for registering the same, shall be paid within a time to be fixed before the communication is made:

Provided that the [2][Provincial Government] [4][* * *] may remit such postage, or fee, or both, or may prescribe a scale of court-fees to be levied in lieu thereof.

144. Application for restitution.— (1) Where and in so far as a decree is varied or reversed, the Court of first instance shall, on the application of any party entitled to any benefit by way of restitution or otherwise, cause such restitution to be made as will, so far as may be, place the parties in the position which they would have occupied but for such decree or such part thereof as has been varied or reversed; and, for this purpose, the Court may make any orders, including orders for the refund of costs and for the payment of interest, damages, compensation and mesne profits, which are properly consequential on such variation or reversal.

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[1]Gaz. Of P. 1956, Pt. 1. p. 294.
[2]Subs. by Adaptation Order, 1937.
[3]Subs. by Act No. XIX of 2023, s.15.
[4]Omitted by the Devolution Act, No. XXXVIII of 1920), s.2 and first Sch., Pt.I.

(2) No suit shall be instituted for the purpose of obtaining any restitution or other relief which could be obtained by application under sub-section (1).

145. Enforcement of liability of surety. Where any person has become liable as surety—

(a) for the performance of any decree or any part thereof, or

(b) for the restitution of any property taken in execution of a decree, or

(c) for the payment of any money, or for the fulfillment of any condition imposed on any person, under an order of the Court in any suit or in any proceedings consequent thereon,

the decree or order may be executed against him, to the extent to which he has rendered himself personally liable, in the manner herein provided for the execution of decrees, and such person shall, for the purposes of appeal, be deemed a party within the meaning of section 47:

Provided that such notice as the Court in each case thinks sufficient has been given to the surety.

146. Proceedings by or against representatives. Save as otherwise provided by this Code or by any law for the time being in force, where any proceeding may be taken or application made by or against any person, then the proceeding may be taken or the application may be made by or against any person claiming under him.

147. Consent or agreement by person under disability. In all suits to which any person under disability is a party, any consent or agreement, as to any proceeding shall, if given or made with the express leave of the Court by the next friend or guardian for the suit, have the same force and effect as if such person, were under no disability and had given such consent or made such agreement.

148. Enlargement of time. Where any period is fixed or granted by the Court for the doing of any act prescribed or allowed by this Code, the Court may, in its discretion, from time to, enlarge such period, even though the period originally fixed or granted may have expired.

149. Power to make up deficiency of court-fees. Where the whole or any part of any fee prescribed for any document by the law for the time being in force relating to court-fees has not been paid, the Court may, in its discretion, at any stage, allow the person, by whom such fee is payable, to pay the whole or part, as the case may be, of such court-fee; and upon such payment the document, in respect of which such fee is payable, shall have the same force and effect as if such fee had been paid in the first instance.

150. Transfer of business. Save as otherwise provided, where the business of any Court is transferred to any other Court, the Court to which the business is so transferred shall have the same powers and shall perform the same duties as those respectively conferred and imposed by or under this Code upon the Court from which the business was so transferred.

151. Saving of inherent powers of Court. Nothing in this Code shall be deemed to limit or otherwise affect the inherent power of the Court [1][to be exercised after recording reasons] to make

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[1]Ins. by Act No. VII of 2020, s.18.

such orders as may be necessary for the ends of justice or to prevent abuse of the process of the Court.

152. Amendment of judgments, decrees or orders. Clerical or arithmetical mistakes in judgments, decrees or orders or errors arising therein from any accidental slip or omission may at any time be corrected by the Court either of its own motion or on the application of any of the parties.

153. General power to amend. The Court may at any time, and on such terms as to costs or otherwise as it may think fit, amend any defect or error in any proceeding in a suit; and all necessary amendments shal1 be made for the purpose of determining the real question or issue raised by or depending on such proceeding.

154. [1][*Omitted*].

155. [2][*Omitted*].

156. [3][*Repeals*.]

157. Continuance of orders under repealed enactments. Notifications published, declarations and rules made, places appointed, agreements filed, scales prescribed, forms framed, appointments made and powers conferred under Act VIII of 1859 or under any Code of Civil Procedure or any Act amending the same or under any other enactment hereby repealed shall, so far as they are consistent with this Code, have the same force and effect as if they had been respectively published, made, appointed, filed, prescribed, framed and conferred under this Code and by the authority empowered thereby in such behalf.

158. Reference to Code of Civil Procedure and other repealed enactments. In every enactment or notification passed or issued before the commencement of this Code in which reference is made to or to any Chapter or section of Act VIII of 1859 or any Code of Civil Procedure or any Act amending the same or any other enactment hereby repealed, such reference shall, so far as may be practicable, be taken to be made to this Code or to its corresponding Part, Order, section or rule.

[4]**[159. Saving of proceedings.**— All proceedings instituted prior to the commencement of the Code of Civil Procedure (Amendment) Act, 2023 (Act of 2023) shall be deemed to be the proceedings of, and dealt in accordance with, the provisions of this Code which existed prior to the aforesaid commencement.

Explanation.— In this section, the expression "proceedings" includes suit, appeal, review, revision, execution applications or any other proceedings and any matter incidental thereto.]

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[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, No. XXVII of 1981, s.3and Second Sch.
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, No. XXVII of 1981, s.3 and Second Sch.
[3]Rep. by the Second Repealing and Amending Act No. XVII of 1914, s.3 and Second Sch.
[4]Subs. by Act No. XIX of 2023, s. 16.

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THE FIRST SCHEDULE

(*See* section 121)

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ORDER I

PARTIES TO SUITS

1. Who may be joined as plaintiffs. All Persons may be joined in one suit as plaintiffs in whom any right to relief in respect of or arising out of the same act or transaction or series of acts or transactions is alleged to exist, whether jointly, severally or in the alternative, where, if such persons brought separate suits, any common question of law or fact would arise.

2. Power of Court to order separate trials. Where it appears to the Court that any joinder of plaintiffs may embarrass or delay the trial of the suit, the Court may put the plaintiffs to their election or order separate trials or make such other order as may be expedient.

3. Who may be joined as defendants. All persons may be joined as defendants against whom any right to relief in respect of or arising out of the same act or transaction or series of acts or transactions is alleged to exist, whether jointly, severally or in the alternative, where, if separate suits were brought against such persons, any common question of law or fact would arise.

4. Court may give judgement for or against one or more of joint parties. Judgment may be given without any amendment—

(a) for such one or more of the plaintiffs as may be found to be entitled to relief, for such relief as he or they may be entitled to;

(b) against such one or more of the defendants as may be found to be liable, according to their respective liabilities.

5. Defendant need not be interested in all the relief claimed. It shall not be necessary that every defendant shall be interested as to all the relief claimed in any suit against him.

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6. Joinder of parties liable on same contract. The plaintiff may, at his option, join as parties to the same suit all or any of the persons severally, or jointly and severally, liable on any one contract, including parties to bills of exchange, hundis and promissory notes.

7. When plaintiff in doubt from whom redress is to be sought. Where the plaintiff is in doubt as to the person from whom he is entitled to obtain redress, he may join two or more defendants in order that the question as to which of the defendants is liable, and to what extent, may be determined as between all parties.

8. One person may sue or defend on behalf of all in same interest.— (1) Where there are numerous persons having the same interest in one suit, one or more of such persons may, with the permission of the Court, sue or be sued, or may defend, in such suit, on behalf of or for the benefit of all persons so interested. But the Court shall in such case give, at the plaintiff's expense, notice of the institution of the suit to all such persons either by personal service or, where from the number of persons or any other cause such service is not reasonably practicable, by public advertisement, as the Court in each case may direct.

(2) Any person on whose behalf or for whose benefit a suit is instituted or defended under sub-rule (1) may apply to the Court to be made a party to such suit.

9. Misjoinder and nonjoinder. No suit shall be defeated by reason of the misjoinder or non-joinder of parties, and the Court may in every suit deal with the matter in controversy so far as regards the rights and interests of the parties actually before it.

10. Suit in name of wrong plaintiff.—(1) Where a suit has been instituted in the name of the wrong person as plaintiff or where it is doubtful whether it has been instituted in the name of the right plaintiff, the Court may at any stage of the suit, if satisfied that the suit has been instituted through a bona fide mistake, and that it is necessary for the determination of the real matter in dispute so to do, order any other person to be substituted or added as plaintiff upon such terms as the Court thinks just.

(2) Court may strike out or add parties. The Court may at any stage of the proceedings, either upon or without the application of either party, and on such terms as may appear to the Court to be just, order that the name of any party improperly joined, whether as plaintiff or defendant, be struck out, and that the name of any person who ought to have been joined, whether as plaintiff or defendant, or whose presence before the Court may be necessary in order to enable the Court effectually and completely to adjudicate upon and settle all the questions involved in the suit, be added.

(3) No person shall be added as a plaintiff suing without a next friend or as the next friend of a plaintiff under any disability without his consent.

(4) Where defendant added, plaint to be amended. Where a defendant is added, the plaint shall, unless the Court otherwise directs, be amended in such manner as may be necessary, and amended copies of the summons and of the plaint shall be served on the new defendant and, if the Court thinks fit, on the original defendant.

(5) Subject to the provisions of the [1][Limitation Act, 1908 (IX of 1908)], section 22, the proceedings as against any person added as defendant shall be deemed to have begun only on the service of the summons.

11. Conduct of suit. The Court may give the conduct of the suit to such person as it deems proper.

12. Appearance of one of several plaintiffs of defendants for others.— (1) where there are more plaintiffs than one, any one or more of them may be authorized by any other of them to appear, plead or act for such other in any proceeding ; and in like manner, where there are more defendants than one, any one or more of them may be authorized by any other of them to appear, plead or act for such other in any proceeding.

(2) The authority shall be in writing signed by the party giving it and shall be filed in Court.

13. Objections as to non-joinder or misjoinder. All objections on the ground of non-joinder or misjoinder of parties shall be taken at the earliest possible opportunity and, in all cases where issues are settled, at or before such settlement, unless the ground of objection has subsequently arisen, and any such objection not so taken shall be deemed to have been waived.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Second Sch., for "Indian Limitation Act, 1877 (15 of 1877)".

ORDER II

FRAME OF SUIT

1. Frame of suit. Every suit shall as far as practicable be framed so as to afford ground for final decision upon the subjects in dispute and to prevent further litigation concerning them.

2. Suit to include the whole claim.—(1) Every suit shall include the whole of the claim which the plaintiff is entitled to make in respect of the cause of action; but a plaintiff may relinquish any portion of his claim in order to bring the suit within the jurisdiction of any Court.

(2) Relinquishment of part of claim. Where a plaintiff omits to sue in respect of, or intentionally relinquishes, any portion of his claim, he shall not afterwards sue in respect of the portion so omitted or relinquished.

(3) Omission to sue for one of several reliefs. A person entitled to more than one relief in respect of the same cause of action may sue for all or any of such reliefs ; but if he omits, except with the leave of the Court, to sue for all such reliefs, he shall not afterwards sue for any relief so omitted.

Explanation.—For the purposes of this rule an obligation and a collateral security for its performance and successive claims arising under the same obligation shall be deemed respectively to constitute but one cause of action.

Illustration

A lets a house to B at a yearly rent of Rs.1,200. The rent for the whole of the years 1905, 1906 and 1907 is due and unpaid. A sues B in 1908 only for the rent, due for 1906. A shall not afterwards sue B for the rent due for 1905 or 1907.

3. Joinder of causes of action.—(1) Save as otherwise provided, a plaintiff may unite in the same suit several causes of action against the same defendant, or the same defendants jointly; and any plaintiffs having causes of action in which they are jointly interested against the same defendant or the same defendants jointly may unite such causes of action in the same suit.

(2) Where causes of action are united, the jurisdiction of the Court as regards the suit shall depend on the amount or value of the aggregate subject-matters at the date of instituting the suit.

4. Only certain claims to be joined for recovery of immoveable property. No cause of action shall, unless with the leave of the Court, be joined with a suit for the recovery of immoveable property, except—

(a) claims for mesne profits or arrears of rent in respect of the property claimed or any part thereof;

(b) claims for damages for breach of any contract under which the property or any part thereof is held; and

(c) claims in which the relief sought is based on the same cause of action:

Provided that nothing in this rule shall be deemed to prevent any party in a suit for foreclosure or redemption from asking to be put into possession of the mortgaged property.

5. Claims by or against executor, administrator or heir. No claim by or against an executor, administrator or heir, as such, shall be joined with claims by or against him personally, unless the last mentioned claims are alleged to arise with reference to the estate in respect of which the plaintiff or defendant sues or is sued as executor, administrator or heir, or are such as he was entitled to, or liable for, jointly with the deceased person whom he represents.

6. Power of Court to order separate trials. Where it appears to the Court that any causes of action joined in one suit cannot be conveniently tried or disposed of together, the Court may order separate trials or make such other order as may be expedient.

7. Objections as to misjoinder. All objections on the ground of misjoinder of causes of action shall be taken at the earliest possible opportunity and, in all cases where issues arc settled, at or before such settlement, unless the ground of objection has subsequently arisen, and any such objection not so taken shall be deemed to have been waived.

ORDER III

RECOGNIZED AGENTS AND PLEADERS

1. Appearances etc., may be in person, by recognized agent or by pleader. Any appearance, application or act in or to any Court, required or authorized by law to be made or done by a party in such Court, may, except where otherwise expressly provided by any law for the time being in force, be made or done by the party in person, or by his recognized agent, or by a pleader [1][appearing, applying or acting, as the case may be,] on his behalf:

Provided that any such appearance shall, if the Court so directs, be made by the party in person.

2. Recognized agents. The recognized agents of parties by whom such appearances, applications and acts may be made or done are—

(a) persons holding powers-of-attorney, authorizing them to make and do such appearances, applications and acts on behalf of such parties ;

(b) persons carrying on trade or business for and in the names of parties not resident within the local limits of the jurisdiction of the Court within which limits the appearance, application or act is made or done, in matters connected with such trade or business only, where no other agent is expressly authorized to make and do such appearances, applications and acts.

3. Service of process on recognized agent.— (1) Processes served on the recognized agent of a party shall be as effectual as if the same had been served on the party in person, unless the Court otherwise directs.

(2) The provisions for the service of process on a party to a suit shall apply to the service of process on his recognized agent.

[2][**4. Appointment of pleader**.— (1) No pleader shall act for any person in any Court, unless he

[1]Subs. by the Code of Civil Procedure (Second Amdt.) Act, 1926 (22 of 1926) s.2, for "duly appointed to act".
[2]Subs. by the Code of Civil Procedure (Second Amdt.) Act, 1926 (22 of 1926), s.2, for the original rule 4.

has been appointed for the purpose by such person by a document in writing signed by such person or by his recognized agent or by some other person duly authorized by or under a power-of-attorney to make such appointment.

(2) Every such appointment shall be filed in Court and shall be deemed to be in force until determined with the leave of the Court by a writing signed by the client or the pleader, as the case may be, and filed in Court, or until the client or the pleader dies, or until all proceedings in the suit are ended so far as regards the client.

(3) For the purposes of sub-rule (2) an application for review of judgment, an application under section 144 or section 152 of this Code, any appeal from any decree or order in the suit and any application or act for the purpose of obtaining copies of documents or return of documents produced or filed in the suit or of obtaining refund of monies paid into the Court in connection with the suit shall be deemed to be proceedings in the suit.

(4) The High Court may, by general order, direct that, where the person by whom a pleader is appointed is unable to write his name, his mark upon the document appointing the pleader shall be attested by such person and in such manner as may be specified by the order.

(5) No pleader who has been engaged for the purpose of pleading only shall plead on behalf of any party, unless he has filed in Court a memorandum of appearance signed by himself and stating—

(a) the names of the parties to the suit,

(b) the name of the party for whom he appears, and

(c) the name of the person by whom he is authorized to appear:

Provided that nothing in this sub-rule shall apply to any pleader engaged to plead on behalf of any party by any other pleader who has been duly appointed to act in Court on behalf of such party.]

5. Service of process on pleader. Any process served on the pleader of any party or left at the office or ordinary residence of such pleader, and whether the same is for the personal appearance of the party or not, shall be presumed to be duly communicated and made known to the party whom the pleader represents, and, unless the Court otherwise directs, shall be as effectual for all purposes as if the same had been given to or served on the party in person.

6. Agent to accept service.— (1) Besides the recognized agents described in rule 2 any person residing within the jurisdiction of the Court may be appointed an agent to accept service of process.

(2) Appointment to be in writing and to be filed in Court. Such appointment may be special or general and shall be made by an instrument in writing signed by the principal, and such instrument or, if the appointment is general, a certified copy thereof shall be filed in Court.

ORDER IV

INSTITUTION OF SUITS

1. Suit to be commenced by plaint.— (1) Every suit shall be instituted by presenting a plaint to the Court or such officer as it appoints in this behalf.

(2) Every plaint shall comply with the rules contained in Orders VI and VII, so far as they are applicable.

2. Register of suits. The Court shall cause the particulars of every suit to be entered in a book to be kept for the purpose and called the register of civil suits. Such entries shall be numbered in every year according to the order in which the plaints are admitted.

ORDER V

ISSUE AND SERVICE OF SUMMONS

Issue of Summons

1. Summons.— (1) When a suit has been duly instituted a summons may be issued to the defendant to appear and answer the claim on a day to be therein specified:

Provided that no such summons shall be issued when the defendant has appeared at the presentation of the plaint and admitted the plaintiff's claim.

(2) A defendant to whom a summons has been issued under sub-rule (1) may appear—

(a) in person, or

(b) by a pleader duly instructed and able to answer all material questions relating to the suit, or

(c) by a pleader accompanied by some person able to answer all such questions.

(3) Every such summons shall be signed by the Judge or such officer as he appoints, and shall be sealed with the seal of the Court.

2. Copy or statement annexed to Summons. Every summons shall be accompanied by a copy of the plaint or, if so permitted, by a concise statement.

3. Court may order defendant or plaintiff to appear in person.— (1) Where the Court sees reason to require the personal appearance of the defendant, the summons shall order him to appear in person in Court on the day therein specified.

(2) Where the Court sees reason to require the personal appearance of the plaintiff on the same day, it shall make an order for such appearance.

4. No party to be ordered to appear in person unless resident within certain limits. No party shall be ordered to appear in person unless he resides—

(a) within the local limits of the Court's ordinary original jurisdiction, or

(b) without such limits but at a place less than fifty or (where there is railway or steamer communication or other established public conveyance for five-sixths of the distance between the place where he resides and the place where the Court is situate) less than two hundred miles distance from the court-house.

5. Summons to be either to settle issues or for final disposal. The Court shall determine, at the time of issuing the summons, whether it shall be for the settlement of issues only, or for the final disposal of the suit ; and the summons shall contain a direction accordingly:

Provided that, in every suit heard by a Court of small Causes, the summons shall be for the final disposal of the suit.

6. Fixing day for appearance of defendant. The day for the appearance of the defendant shall be fixed with reference to the current business of the Court, the place of residence of the defendant and the time necessary for the service of the summons; and the day shall be so fixed as to allow the defendant sufficient time to enable him to appear and answer on such day.

7. Summons to order defendant to produce documents relied on by him. The summons to appear and answer shall order the defendant to produce all documents in his possession or power upon which he intends to rely in support of his case.

8. On issue of summons for final disposal, defendant to be directed to produce his witnesses. Where the summons is for the final disposal of the suit, it shall also direct the defendant to produce, on the day fixed for his appearance, all witnesses upon whose evidence he intends to rely in support of his case.

Service of Summons

9. Delivery or transmission of summons for service.— (1) Where the defendant resides within the jurisdiction of the Court in which the suit is instituted, or has an agent resident within that jurisdiction who is empowered to accept the service of the summons, the summons shall, unless the Court otherwise directs, be delivered or sent to the proper officer to be served by him or one of his subordinates.

(2) The proper officer may be an officer of a Court other than that in which the suit is instituted, and, where he is such an officer, the summons may be sent to him by post or in such other manner as the Court may direct.

[1][(3) Unless the Court otherwise directs, the proper officer or an officer authorised by him in this behalf shall cause the service of summons and return it to the Court within fifteen days of issue of summons.]

10. Mode of service. Service of the summons shall be made by delivering or tendering a copy thereof signed by the Judge or such officer as he appoints in this behalf, and sealed with the seal of the Court.

[2]**[10-A. Service by post**.— (1) Simultaneously with the issue of summons under rule 9, there shall be sent, unless otherwise ordered by the Court, to the defendant, by registered post, acknowledgment due, another copy of the summons signed and sealed in the manner provided in rule 10.

[1]Added by Act. XIV of 1994, s.11
[2]Rule 10-A ins. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch.

(2) An acknowledgment purporting to be signed by the defendant of the receipt of the registered communication or endorsement by a postal employee that the defendant refused to take delivery of the same shall be deemed by the Court issuing the summons to be *prima facie* proof of service of summons.]

11. Service on several defendants. Save as otherwise prescribed, where there are more defendants than one, service of the summons shall be made on each defendant.

12. Service to be on defendant in person when practicable or on his agent. Wherever it is practicable, service shall be made on the defendant in person, unless he has an agent empowered to accept service, in which case service on such agent shall be sufficient.

13. Service on agent by whom defendant carries on business.—(1) In a suit relating to any business or work against a person who does not reside within the local limits of the jurisdiction of the Court from which the summons is issued, service on any manager or agent, who, at the time of service, personally carries on such business or work for such person within such limits, shall be deemed good service.

(2) For the purpose of this rule the master of a ship shall be deemed to be the agent of the owner or charterer.

14. Service on agent in charge in suits for immoveable property. Where in a suit to obtain relief respecting, or compensation for wrong to, immoveable property, service cannot be made on the defendant in person, and the defendant has no agent empowered to accept the service, it may be made on any agent of the defendant in charge of the property.

15. Where service may be on male member of defendant's family. Where in any suit the defendant cannot be found and has no agent empowered to accept service of the summons on his behalf, service may be made on any adult male member of the family of the defendant who is residing with him.

Explanation.—A servant is not a member of the family within the meaning of this rule.

16. Person served to sign acknowledgment. Where the serving officer delivers or tenders a copy of the summons to the defendant personally, or to an agent or other person on his behalf, he shall require the signature of the person to whom the copy is so delivered or tendered to an acknowledgment of service endorsed on the original summons.

17. Procedure when defendant refuses to accept service, or cannot be found. Where the defendant or his agent or such other person as aforesaid refuses to sign the acknowledgment, or where the serving officer, after using all due and reasonable diligence, cannot find the defendant, and there is no agent empowered to accept service of the summons on his behalf, nor any other person on whom service can be made, the serving officer shall affix a copy of the summons on the outer door or some other conspicuous part of the house in which the defendant ordinarily resides or carries on business or personally works for gain, and shall then return the original to the Court from which it was issued, with a report endorsed thereon or annexed thereto stating that he has so affixed the copy, the circumstances under which he did so, and the name and address of the person (if any) by whom the house was identified and in whose presence the copy was affixed.

18. Endorsement of time and manner of service. The serving officer shall, in all cases in which the summons has been served under rule 16, endorse or annex, or cause to be endorsed or

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annexed, on or to the original summons, a return stating the time when and the manner in which the summons was served, and the name and address of the person (if any) identifying the person served and witnessing the delivery or tender of the summons.

19. Examination of serving officer. Where a summons is returned under rule 17, the Court shall, if the return under that rule has not been verified by the affidavit of the serving officer, and may, if it has been so verified, examine the serving officer on oath, or cause him to be so examined by another Court, touching his proceedings, and may make such further inquiry in the matter as it thinks fit; and shall either declare that the summons has been duly served or order such service as it thinks fit.

20. Substituted service. [1][(1) Where the Court is satisfied that there is reason to believe that the defendant is keeping out of the way for the purpose of avoiding service, or that for any other reason the summons cannot be served in the ordinary way, the Court shall order for service of summons by—

(a) affixing a copy of the summons at some conspicuous part of the house, if any, in which the defendant is known to have last resided or carried on business or personally worked for gain; or

(b) any electronic device of communication which may include telegram, telephone, phonogram, telex, fax, radio and television; or

(c) urgent mail service or public courier services; or

(d) beat of drum in the locality where the defendant resides; or

(e) publication in press; or

(f) any other manner or mode as it may think fit:

Provided that the Court may order the use of all or any of the aforesaid manners and modes of service simultaneously.]

(2) Effects of substituted service. Service substituted by order of the Court shall be as effectual as if it had been made on the defendant personally.

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(3) Where service substituted, time for appearance to be fixed. Where service is substituted by order of the Court, the Court shall fix such time for the appearance of the defendant as the case may require [1][which shall not ordinarily exceed fifteen days.]

21. Service of summons where defendant resides within jurisdiction of another Court. A summons may be sent by the Court by which it is issued, whether within or without the province, either by one of its officers or by post to any Court (not being the High Court) having jurisdiction in the place where the defendant resides.

22. [*Service within Presidency towns of summons issued by Courts outside*.] *Omitted by A. O., 1949.*

[1]Subs and added by Act. XIV of 1994, s.11.

23. Duty of Court to which summons is sent. The Court to which a summons is sent under rule 21 [1][* * *] shall, upon receipt thereof, proceed as if it had been issued by such Court and shall then return the summons to the Court of issue, together with the record (if any) of its proceedings with regard thereto.

24. Service on defendant in prison. Where the defendant is confined in a prison, the summons shall be delivered or sent by post or otherwise to the officer in charge of the prison for service on the defendant.

25. Service where defendant resides out of Pakistan and has no agent. Where the defendant resides out of [2][Pakistan] and has no agent in [2][Pakistan] empowered to accept service, the summons shall [3][except in the cases mentioned in rule 26A] be addressed to the defendant at the place where he is residing and sent to him by post, if there is postal communication between such place and the place where the Court is situate.

[4]26. Service in foreign territory through Political Agent or Court. Where—

(a) in the exercise of any foreign [5][or extra provincial jurisdiction vested in the [6][Federal Government]], a Political Agent has been appointed, or a Court has been established or continued, with power to serve a summons issued by a Court under this Code in any foreign territory in which the defendant resides, or

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[1]The words and figures "or rule 22" omitted by A.O., 1949.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

[3]Ins. by the Code of Civil Procedure (Amdt.) Act, 1950 (68 of 1950), s.2 (*with effect from the 1st September, 1951*).

[1]Provisions of s.29 have been applied to—

(i)the Civil Courts in the Federation of Malaya in so far as the Chief Commissioner's Province of Baluchistan and the Capital of the Federation are concerned, *see* Gaz. of P., 1949, Pt.I, P.258 and *ibid*., Pt.II A, P. 68

(ii)all Civil and Revenue Courts of India; and service by any Civil or Revenue Court of India of any summons issued under the Code of Civil Procedure, 1908, by a Court of the Province of Sind shall be deemed to be valid, see Sind Government Gazette, Extraordinary, dated 3rd July, 1952. Pt. I, P. 437.

(iii)all Civil and Revenue Courts in India and Service by such Courts of any summons issued under the said Code by a Court in the N.W.F.P, Baluchistan or Karachi shall be deemed to be valid service, *see* N.W.F.P Government Gazette, 1952, Pt. I, P. 248 and Gaz., of P. 1952, Pt. I, P. 119 and *ibid*., Pt. VI, p. 126.

(iv)all Civil and Revenue Courts in India; and that service by such Courts of any summons issued under the said Code by a Court in Khairpur State shall be deemed to be valid service, see Khairpur State Gazette, Ext., 1952, dated the 18th September, 1952.

(v)all Civil and Revenue Courts in India; and service by such Courts of any summons issued under the said Code by a Court in the Bahawalpur State shall be deemed to be valid service, *see* Bahawalpur Govt. Gazette, dated the 2nd October, 1952.

(vi)all Civil and Revenue Courts of India; and service by any civil or Revenue Court in India, within whose jurisdiction the person to be served resides of any summons issued by a Court under the said Code shall be deemend to be valid service, see Punjab Gazette, Ext., 1951, dated the 1st September, 1951, p. 1743.

(vii)all Civil and Revenue Courts in the Union of Burma, in respect of Baluchistan; and service by such Courts of any summons issued under the said Code by a Court in Baluchistan shall be deemed to be valid service see Gaz. of P., Ext., 1954, p. 1873.

(viii)all Civil and Revenue Courts in the Union of Burma, in respect of Karachi; and service by such Courts of any summons issued under the said Code by a Court in Karachi shall be deemed to be valid service, *see* Gaz. of p., Extra., 1954, p. 1997.

(ix)all Civil and Revenue Courts of the Union of Burma; and service by such Courts of Summonss issued under the said Code by A Court in East Bengal shall be deemed to be valid service, *see* Dacca Gazette, Ext., dated 18th October, 1954, Pt. I, p. 3053.

(x)all Civil and Revenue Courts of the Union of Burma; and service by such Courts of any summons issued under the said Code by a Court in the N.W.F.P, shall be deemed to be valid service, *see* N.W.F.P, Gazette, 1954, Pt. I, p. 523.

(xi)all Civil and Revenue Courts of the Union of Burma; and service by such Courts of any summons issued under the said Code by a Court in the Province of Punjab, shall be deemed to be valid service, *see* Gaz. of Punjab, 1954, Pt. I, p. 843.

(xii)all Civil and Revenue Courts of the Union of Burma; and service by such Courts of any summons issued under the said Code by a Court in the Province of Sind, shall be deemed to be valid service, *w.e.f.* 18th October, 1954, *see* Gaz. of Sind, 1954, pt I, p. 940.

(xiii)all Civil and Revenue Courts in the Federal Republic of Germany; and service by such Courts of summons issued under the said Code by a Court in Baluchistan shall be deemed to be valid service, *see* Gaz. of P. 1955, Pt. I, p. 126.

(xiv)the summonses issued by any Civil or Revenue Courts in Pakistan may be sent to the Courts in the Union of Burma and served as if they had been issued by such Courts, *see* Gaz of 1955, P.I, p. 143.

(xv)service by any Court situated in Pakistan, of any summons issued by a Court of the Union of Burma shall be deemed to be valid service, *see* Gaz. of P., 1955, Pt. I, p. 143.

(xvi)all Civil and Revenue Courts in the Federal Republic of Germany an services by such Courts of any summons issued under the said Code by a Court in Karachi, shall be deemed to be valid service, with effect on and from the 1st June, 1955, *see* Gaz. Of P., 1955, Pt. VI, p. 102.

(xvii)all Civil and Revenue Courts in the Federal Republic of Germany; and service by such Courts of any summons issued under the said Code by a Court in the Province of East Bengal shall be deemed to be valid service *see* Dacca Gazette, 1955, Pt. I, p. 1051.

(xviii)all Civil Courts in Switzerland and the service by such Courts of any summons issued under the Code (C.Pr.C.) by a Court in the Province of W. Pakistan shall be deemed to be valid service, *see* W.P. Gaz., 1959, Ext. p. 843.

[5]Subs. by A.O., 1949, for "jurisdiction vested in His Majesty or in [the Central Govt. or the Crown Representative]". The words in crotchet had been subs., for "the G.G in C." by A.O., 1937.

[6]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

[1][(b) [2][the Provincial Government] has, by notification in the [3][official Gazette], declared[4], in respect of any Court situate in any such territory and not established or continued in the exercise of any such jurisdiction as aforesaid, that service by such Court of any summons [5][issued under this Code by a Court of the Province] shall be deemed to be valid service,]

the summons may be sent to such Political Agent or Court, by post or otherwise, for the purpose of being served upon the defendant ; and, if the Political Agent or Court returns the summons with an endorsement signed by such Political Agent or by the Judge or other officer of the Court that the summons has been served on the defendant in manner hereinbefore directed, such endorsement shall be deemed to be evidence of service.

[6][26A. Service on civil public officer or on servant of railway company or local authority, in India. where the defendant is a servant (not belonging to the military, naval or air forces) of any Government in India, or a servant of a railway company or local authority in India, the summons together with a copy of it to be retained by the defendant shall be sent, with a request that it may be served on the defendant,—

(a) in the case of a defendant serving in connection with the affairs of the Government of India or a servant of a Railway in India, to the Secretary to the Government of India in the Ministry of Home Affairs, and

(b) in the case of a defendant serving in connection with the affairs of any other Government in India, or in the case of a servant of a local authority in India, to the Home Secretary to that Government or, as the case may be, to the Home Secretary to the Government in whose territories the local authority has its jurisdiction.]

27. Service on civil public officer or on servant of railway company or local authority. Where the defendant is a public officer (not belonging to [7][the armed forces of Pakistan] [8][* * *], or is the servant of a railway company or local authority, the Court may, if it appears to it that the summons may be most conveniently so served, send if for service on the defendant to the head of the office in which he is employed, together with a copy to be retained by the defendant.

28. Service on soldiers, sailors or airmen. Where the defendant is a soldier, [9][sailor] [10][or airman], the Court shall send the summons for service to his commanding officer together with a copy to be retained by the defendant.

[1]Subs. by the Second Repealing and Amending Act, 1914 (17 of 1914), s.2 and First Sch., for the original cl. (b).
[2]Subs. by A.O., 1937, for "the G.G. in C.".
[3]Subs. *ibid*., for "Gazette of Inda".
[4]Service by any Civil Court in the Federation of Malaya, of any summons issued under the Code of Civil Procedure by a Court of the Chief Commissioners' Provinces of Baluchistan and Karachi, shall be deemed to be valid service, see Gaz. Of P., dated the 29th February, 1952 Pt. I, p. 144, and *ibid*., dated the 14th March, 1952, Pt. IIA, p. 60.
[5]Subs. by A.O., 1937, for "issued by a Court under this Code".
[6]S.26A ins. by the Code of Civil Procedure (Amdt.) Act, 1950 (68 of 1950), s.3 (*with effect from the 1st September, 1951*).
[7]Subs. by A.O., 1961, Art 2 and Sch. (*with effect from the 23rd March, 1956*), for "His Majesty's military, [naval or air] forces". The words in crotchets had been subs. by the Repealing and Amending Act, 1927 (10 of 1927), s.2 and 1st Sch., "or naval".
[8]The words "or His Majesty's Indian Marine Service" omitted by the Amending Act, 1934 (35 of 1934), s.2 and Sch.
[9]Ins. *ibid*.
[10]Ins. by Act 10 of 1927, s.2 and 1s Sch.

29. Duty of person to whom summons is delivered or sent for services.— (1) Where a summons is delivered or sent to any person for service under rule 24, rule 27 or rule 28, such person shall be bound to serve it, if possible, and to return it under his signature, with the written acknowledgement of the defendant, and such signature shall be deemed to be evidence of service.

(2) Where from any cause service is impossible, the summons shall be returned to the Court with a full statement of such cause and of the steps taken to procure service, and such statement shall be deemed to be evidence of non-service.

30. Substitution of letter for summons.— (1) The Court may, notwithstanding anything herein before contained, substitute for a summons a letter signed by the Judge or such officer as he may appoint in this behalf, where the defendant is, in the opinion of the Court, of a rank entitling him to such mark of consideration.

(2) A letter substituted under sub-rule (1) shall contain all the particulars required to be stated in a summons, and, subject to the provisions of sub-rule (3), shall be treated in all respects as a summons.

(3) A letter so substituted may be sent to the defendant by post or by a special messenger selected by the Court, or in any other manner which the Court thinks fit; and, where the defendant has an agent empowered to accept service, the letter may be delivered or sent to such agent.

ORDER VI

PLEADINGS GENERALLY

1. Pleading. "Pleading" shall mean plaint or written statement.

2. Pleading to state material facts and not evidence. Every pleading shall contain, and contain only, a statement in a concise form of the material facts on which the party pleading relies for his claim or defence, as the case may be, but not the evidence by which they are to be proved, and shall, when necessary, be divided into paragraphs, numbered consecutively. Dates, sums and numbers shall be expressed in figures.

3. Forms of pleading. The forms in Appendix A when applicable, and where they are not applicable forms of the like character, as nearly as may be, shall be used for all pleadings.

4. Particulars to be given where necessary. In all cases in which the party pleading relies on any misrepresentation, fraud, breach of trust, willful default, or undue influence, and in all other cases in which particulars may be necessary beyond such as are exemplified in the forms aforesaid particulars (with dates and items if necessary) shall be stated in the pleading.

5. Further and better statement, or particulars. A further and better statement of the nature of the claim or defence, or further and better particulars of any matter stated in any pleading, may in all cases be ordered, upon such terms, as to costs and otherwise, as may be just.

6. Condition precedent. Any condition precedent, the performance or occurrence of which is intended to be contested, shall be distinctly specified in his pleading by the plaintiff or defendant, as the case may be; and, subject thereto, an averment of the performance or occurrence of all conditions precedent necessary for the case of the plaintiff or defendant shall be implied in his pleading.

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7. Departure. No pleading shall, except by way of amendment, raise any new ground of claim or contain any allegation of fact inconsistent with the previous pleadings of the party pleading the same.

8. Denial of contract. Where a contract is alleged in any pleading, a bare denial of the same by the opposite party shall be construed only as a denial in fact of the express contract alleged or of the matters of fact from which the same may be implied, and not as a denial of the legality or sufficiency in law of such contract.

9. Effect of document to be stated. Wherever the contents of any document are material, it shall be sufficient in any pleading to state the effect thereof as briefly as possible, without setting out the whole or any part thereof, unless the precise words of the document or any part thereof are material.

10. Malice, knowledge, etc. Wherever it is material to allege malice, fraudulent intention, knowledge or other condition of the mind of any person, it shall be sufficient to allege the same as a fact without setting out the circumstances from which the same is to be inferred.

11. Notice. Wherever it is material to allege notice to any person of any fact, matter or thing, it shall be sufficient to allege such notice as a fact, unless the form or the precise terms of such notice, or the circumstances from which such notice is to be inferred, are material.

12. Implied contract or relation. Whenever any contract or any relation between any persons is to be implied from a series of letters or conversations or otherwise from a number of circumstances, it shall be sufficient to allege such contract or relation as a fact, and to refer generally to such letters, conversations or circumstances without setting them out in detail. And if in such case the person so pleading desires to rely in the alternative upon more contracts or relations than one as to be implied from such circumstances, he may state the same in the alternative.

13. Presumptions of law. Neither party need in any pleading allege any matter of fact which the law presumes in his favour or as to which the burden of proof lies upon the other side unless the same has first been specifically denied (e.g., consideration for a bill of exchange where the plaintiff sues only on the bill and not for the consideration as a substantive ground of claim).

14. Pleading to be signed. Every pleading shall be signed by the party and his pleader (if any): Provided that where a party pleading is, by reason of absence or for other good cause, unable to sign the pleading, it may be signed by any person duly authorized by him to sign the same or to sue or defend on his behalf.

15. Verification of pleadings.— (1) Save as otherwise provided by any law for the time being in force, every pleading shall be verified [1][on oath or solemn affirmation] at the foot by the party or by one of the parties pleading or by some other person proved to the satisfaction of the Court to be acquainted with the facts of the case.

(2) The person verifying shall specify, by reference to the numbered paragraphs of the pleading, what he verifies of his own knowledge and what he verifies upon information received and believed to be true.

(3) The verification shall be signed by the person making it and shall state the date on which and the place at which it was signed.

[1]Ins. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch.

16. Striking out pleadings. The Court may at any stage of the proceedings order to be struck out or amended any matter in any pleading which may be unnecessary or scandalous or which may tend to prejudice, embarrass or delay the fair trial of the suit.

17. Amendment of pleadings. The Court may at any stage of the proceedings allow either party to alter or amend his pleadings in such manner and on such terms as may be just, and all such amendments shall be made as may be necessary for the purpose of determining the real questions in controversy between the parties.

18. Failure to amend after order. If a party who has obtained an order for leave to amend does not amend accordingly within the time limited for that purpose by the order, or if no time is thereby limited then within fourteen days from the date of the order, he shall not be permitted to amend after the expiration of such limited time as aforesaid or of such fourteen days, as the case may be, unless the time is extended by the Court.

ORDER VII

PLAINT

1. Particulars to be contained in plaint. The plaint shall contain the following particulars:—

(a) the name of the Court in which the suit is brought;

(b) the name, description and place of residence of the plaintiff;

(c) the name, description and place of residence of the defendant, so far as they can be ascertained;

(d) where the plaintiff or the defendant is a minor or a person of unsound mind, a statement to that effect;

(e) the facts constituting the cause of action and when it arose;

(f) the facts showing that the Court has jurisdiction;

(g) the relief which the plaintiff claims;

(h) where the plaintiff has allowed a set-off or relinquished a portion of his claim, the amount so allowed or relinquished; and

(i) a statement of the value of the subject-matter of the suit for the purposes of jurisdiction and of court-fees, so far as the case admits.

2. In money suits. Where the plaintiff seeks the recovery of money, the plaint shall state the precise amount claimed:

But where the plaintiff sues for mesne profits, or for an amount which will be found due to him on taking unsettled accounts between him and the defendant, the plaint shall state approximately the amount sued for.

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3. Where the subject-matter of the suit is immoveable property. Where the subject-matter of the suit is immoveable property, the plaint shall contain a description of the property sufficient to identify it, and, in case such property can be identified by boundaries or numbers in a record of settlement of survey, the plaint shall specify such boundaries or numbers.

4. When plaintiff sues as representative. Where the plaintiff sues in a representative character the plaint shall show not only that he has an actual existing interest in the subject-matter, but that he has taken the steps (if any) necessary to enable him to institute a suit concerning it.

5. Defendant`s interest and liability to be shown. The plaint shall show that the defendant is or claims to be interested in the subject-matter, and that he is liable to be called upon to answer the plaintiff's demand.

6. Grounds of exemption from limitation law. Where the suit is instituted after the expiration of the period prescribed by the law of limitation, the plaint shall show the ground upon which exemption from such law is claimed.

7. Relief to be specifically stated. Every plaint shall state specifically the relief which the plaintiff claims either simply or in the alternative, and it shall not be necessary to ask for general or other relief which may always be given as the Court may think just to the same extent as if it had been asked for. And the same rule shall apply to any relief claimed by the defendant in his written statement.

8. Relief founded on separate grounds. Where the plaintiff seeks relief in respect of several distinct claims or causes of action founded upon separate and distinct grounds, they shall be stated as far as may be separately and distinctly.

9. Procedure of admitting plaint.— [1][(1)The plaintiff shall endorse on the plaint, or annex thereto, a list of the documents (if any) which he has produced along with it.

(1A) The plaintiff shall present with his plaint—

(a) as many copies on plain paper of the plaint as there are defendants, plus two extra copies, unless the Court, by reason of the length of the plaint or the number of the defendants, or for any other sufficient reason, permits him to present a like number of concise statements of the nature of the claim made, or of the relief claimed in the suit, in which case he shall present such statements; and

(b) draft forms of summons and fees for the service thereof.]

(2) Concise statements. Where the plaintiff sues, or the defendant or any of the defendants is sued, in a representative capacity, such statements shall show in what capacity the plaintiff or defendant sues or is sued.

(3) The plaintiff may, by leave of the Court, amend such statements so as to make them correspond with the plaint.

(4) The chief ministerial officer of the Court shall sign such list and copies or statements if, on examination, he finds them to be correct.

[1]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch., for the original sub-rule (1).

10. Return of plaint.— (1) The plaint shall at any stage of the suit be returned to be presented to the Court in which the suit should have been instituted.

(2) Procedure on returning plaint. On returning a plaint the Judge shall endorse thereon the date of its presentation and return, the name of the party presenting it, and a brief statement of the reasons for returning it.

11. Rejection of plaint. The plaint shall be rejected in the following cases:—

(a) where it does not disclose a cause of action:

(b) where the relief claimed is under valued, and the plaintiff, on being required by the Court to correct the valuation within a time to be fixed by the Court, fails to do so:

(c) where the relief claimed is properly valued, but the plaint is written upon paper insufficiently stamped, and the plaintiff, on being required by the Court to supply the requisite stamp-paper within a time to be fixed by the Court, fails to do so:

(d) where the suit appears from the statement in the plaint to be barred by any law.

12. Procedure on rejecting plaint. Where a plaint is rejected the Judge shall record an order to that effect with the reasons for such order.

13. Where rejection of plaint does not preclude presentation of fresh plaint. The rejection of the plaint on any of the grounds hereinbefore mentioned shall not of its own force preclude the plaintiff from presenting a fresh plaint in respect of the same cause of action.

Documents relied on in Plaint

14. Production of document on which plaintiff sues.— (1) Where a plaintiff sues upon a document in his possession or power, he shall produce it in Court when the plaint is presented, and shall at the same time deliver the document or a copy thereof to be filed with the plaint.

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(2) List of other documents. Where he relies on any other documents (whether in his possession or power or not) as evidence in support of his claim, he shall enter such documents in a list to be added or annexed to the plaint.

15. Statement in case of documents not in plaintiff's possession or power. Where any such document is not in the possession or power of the plaintiff, he shall, if possible, state in whose possession or power it is.

16. Suits on last negotiable instruments. Where the suit is founded upon a negotiable instrument, and it is proved that the instrument is lost, and an indemnity is given by the plaintiff, to the satisfaction of the Court, against the claims of any other person upon such instrument, the Court may pass such decree as it would have passed if the plaintiff had produced the instrument in Court when the plaint was presented, and had at the same time delivered a copy of the instrument to be filed with the plaint.

17. Production of shop-book.— (1) Save in so far as is otherwise provided by the Bankers' Books Evidence Act, 1891 (XVIII of 1891), where the document on which the plaintiff sues is an entry in a shop-book or other account in his possession or power the plaintiff shall produce the book, or account at the time of filing the plaint, together with a copy of the entry on which he relies.

(2) Original entry to be marked and returned. The Court, or such officer as it appoints in this behalf shall forthwith mark the document for the purpose of identification; and, after examining and comparing the copy with the original, shall, if it is found correct, certify it to be so and return the book, to the plaintiff and cause the copy to be filed.

18. Inadmissibility of document not produced when plaint filed.— (1) A document which ought to be produced in Court by the plaintiff when the plaint is presented, or to be entered in the list to be added or annexed to the pliant, and which is not produced, or entered accordingly, shall not, without the leave of the Court, be received in evidence on his behalf at the hearing of the suit.

(2) Nothing in this rule applies to documents produced for cross-examination of the defendant's witnesses, or in answer to any case set up by the defendant or handed to a witness merely to refresh his memory.

[1]**[19. Address to be filed with plaint**.— (1) Every plaint or original petition shall be accompanied by a proceeding giving an address at which service of notice, summons or other process may be made on the plaintiff or petitioner.

(2) Plaintiffs or petitioners subsequently added shall immediately on being so added file a proceeding of this nature.

(3) The address filed under this rule shall be entered in the Register of suits maintained under Order IV, rule 2.

20. Nature of address to be filed. An address for service filed under the preceding rule shall be within the local limits of the District Court within which the suit or petition is filed, or of the District Court within which the party ordinarily resides.

21. Consequences of failure to file address. Where a plaintiff or petitioner fails to file an address for service [2][the court may direct him to file such address and if he fails to do so after giving him opportunity], he shall be liable to have his suit dismissed or his petition rejected by the Court *suo moto* or any party may apply for an order to that effect, and the Court may make such order as it thinks just.

22. Procedure when party not found at the place of address.— (1) Where a party is not found at the address given by him for service and no agent or adult male member of his family on whom a notice, summons or other process can be served is present, a copy of the notice, summons or other process shall be fixed to the outer door of the house.

(2) If, on the date fixed, such party is not present, another date shall be fixed and a copy of the notice, summons or other process shall be sent to the said address by registered post, and such service shall be deemed to be as effectual as if the notice, summons or other process had been personally served.

[1]Rules 19 to 26 added by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch.
[2]Added by S.R.O. 579(1)/2014, dt: 18-6-2014.

23. Service on pleader. Where a party engages a pleader, notices, summons or other processes for service on him shall be served in the manner prescribed by Order III, rule 5, unless the Court directs service at the address for service given by the party.

24. Change of address. A party who desires to change the address for service given by him as aforesaid shall file a verified petition, and the Court may direct the amendment of the record accordingly. Notice of such petition shall be given to such other parties to the suit as the Court may deem it necessary to inform, and may be either served upon the pleaders for such parties or be sent to them by registered post, as the Court thinks fit.

25. Service by other modes. Nothing in these rules shall prevent the Court from directing the service of a notice, summons or other process in any other manner, if, for any reasons, it thinks fit to do so.

26. List of legal representatives of Plaintiff.—(1) In every suit of the nature referred to in rule 3, Order XXII, the plaint shall be accompanied by a statement giving—

(a) the names and addresses of the persons whom, in the event of the death of the plaintiff, may be made a party as his legal representatives;

(b) the name and address of the person who, in the event of the death of the plaintiff, shall intimate such fact to the Court, furnish the Court with the names, particulars and addresses of the legal representatives of the plaintiff and make an application for the legal representatives to be made a party.

(2) A plaintiff may at any time—

(a) file in the Court an amended list, of his presumptive legal representatives;

(b) nominate another person, in the place of the person nominated under clause *(b)* of sub-rule (1), for the purposes of that clause.

(3) A nomination made under clause (b) of sub-rule (1) shall, unless varied under clause (b) of sub-rule (2) remain in force throughout the pendency of the suit and any proceedings arising therefrom, including appeal, revision and review.].

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ORDER VIII

WRITTEN STATEMENT AND SET-OFF

1. Written statement. The defendant may, and, if so required by the Court, shall, at or before the first hearing or within such time as the Court may permit, present a written statement of his defence [:][1]

[2][Provided that the period allowed for filing the written statement shall not ordinarily exceed [3][thirty] days.]

[1]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch. for full-stop.
[2]Proviso added *ibid*.
[3]Subs. by Act. XIV of 1994, S.11.

2. New facts must be specially pleaded. The defendant must raise by his pleading all matters, which show the suit not to be maintainable, or that the transaction is either void or voidable in point of law, and all such grounds of defence as, if not raised, would be likely to take the opposite party by surprise, or would raise issues of fact not arising out of the plaint, as, for instance, fraud, limitation, release, payment, performance, or facts showing illegality.

3. Denial to be specific. It shall not be sufficient for a defendant in his written statement to deny generally the grounds alleged by the plaintiff, but the defendant must deal specifically with each allegation of fact of which he does not admit the truth, except damages.

4. Evasive denial. Where a defendant denies an allegation of fact in the plaint, he must not do so evasively, but answer the point of substance. Thus, if it is alleged that he received a certain sum of money, it shall not be sufficient to deny that he received that particular amount, but he must deny that he received that sum or any part thereof, or else set out how much he received. And if an allegation is made with diverse circumstances, it shall not be sufficient to deny it along with those circumstances.

5. Specific denial. Every allegation of fact in the plaint, if not denied specifically or by necessary implication, or stated to be not admitted in the pleading of the defendant, shall be taken to be admitted except as against a person under disability:

Provided that the Court may in its discretion require any fact so admitted to be proved otherwise than by such admission.

6. Particular of set-off to be given in written statement.— (1) Where in a suit for the recovery of money the defendant claims to set-off against the plaintiff's demand any ascertained sum of money legally recoverable by him from the plaintiff, not exceeding the pecuniary limits of the jurisdiction of the Court, and both parties fill the same character as they fill in the plaintiff's suit, the defendant may, at the first hearing of the suit, but not afterwards unless permitted by the Court, present a written statement containing the particulars of the debt sought to be set-off.

(2) Effect of Set-off. The written statement shall have the same effect as a plaint in a cross-suit so as to enable the Court to pronounce a final judgement in respect both of the original claim and of the set-off: but this shall not affect the lien, upon the amount decreed, of any pleader in respect of the costs payable to him under the decree.

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(3) The rules relating to a written statement by a defendant apply to a written statement in answer to a claim of set-off.

Illustrations

(a) A bequeaths Rs.2,000 to B and appoints C his executor and residuary legatee. B dies and D takes out administration to B's effect. C pays Rs.1,000 as surety for D: then D sues C for the legacy. C cannot set-off the debt of Rs.1,000 against the legacy, for neither C nor D fills the same character with respect to the legacy as they fill with respect to the payment of the Rs.1,000.

(b) A dies intestate and in debt to B.C takes out administration to A's effects and B buys part of the effects from C. In a suit for the purchase- money by C against B, the latter cannot set- off the debt against the price, for C fills two different characters, one as the vendor to B, in which he sues B, and the other as representative to A.

(c) A sues B on a bill of exchange. B alleges that A has wrongfully neglected to insure B's goods and is liable to him in compensation which he claims to set-off. The amount not being ascertained cannot be set-off.

(d) A sues B on a bill of exchange for Rs.500, B holds a judgment against A for Rs.1,000. The two claims being both definite pecuniary demands may be set-off.

(e) A sues B for compensation on account of trespass. B holds a promissory note for Rs.1,000 from A and claims to set-off that amount against any sum that A may recover in the suit. B may do so for, as soon as A recovers, both sums as definite pecuniary demands.

(f) A and B sue C for Rs.1,000, C cannot set-off a debt due to him by A alone.

(g) A sues B and C for Rs.1,000. B cannot set-off a debt due to him alone by A.

(h) A owes the partnership firm of B and C Rs.1,000. B dies, leaving C surviving. A sues C for a debt of Rs.1,500 due in his separate character. C may set-off the debt of Rs.1,000.

7. Defence or set-off founded on separate grounds. Where the defendant relies upon several distinct grounds of defence or set-off founded upon separate and distinct facts, they shall be stated, as far as may be, separately and distinctly.

8. New ground of defence. Any ground of defence which has arisen after the institution of the suit or the presentation of a written statement claiming a set-off may be raised by the defendant or plaintiff, as the case may be, in his written statement.

9. Subsequent Pleadings. No pleading subsequent to the written statement of a defendant other than by way of defence to a set-off shall be presented except by the leave of the Court and upon such terms as the Court thinks fit, but the Court may at any time require a written statement or additional written statement from any of the parties and fix a time for presenting the same.

10. Procedure when party fails to present written statement called for by Court. Where any party from whom a written statement is so required fails to present the same within the time fixed by Court, the Court may pronounce judgment against him, or make such order in relation to the suit as it thinks fit.

[1]**[11. Address for service**.— (1) Every party, whether original, added or substituted, who appears in any suit or other proceeding, shall, on or before the date fixed in the summons, notice or other process served on him, file in Court a proceeding stating his address for service.

(2) Such address shall be entered in the Register of suits to be maintained under Order IV, rule 2.

(3) Rules 20, 23, 24 and 25 of Order VII shall apply, so far as may be, to addresses for service filed under this rule.

[1]Rules 11, 12 and 13 added by the Law Reforms Ordinance, 1972 (12 of 1972) s.2 and Sch.

12. Consequences of failure to file address.— (1) Where a party fails to file an address for service as provided in the preceding rule, [1][the court may direct him to file such address and if he fails to do so after giving him opportunity to file the address] he shall be liable to have his defence, if any, struck out and to be placed in the same position as if he had not defended.

(2) The Court may pass an order under sub-rule (1) suo moto or on the application of any party.

13. List of legal representatives of defendant.— (1) In every suit of the nature referred to in rule 4, Order XXII, the written statement shall be accompanied by a statement giving—

(a) the names and addresses of the persons who, in the event of the death of the defendant, may be made a party as his legal representatives;

(b) the name and address of the person, who in the event of the death of the defendant, shall intimate such fact to the Court, furnish the Court with the names, particulars and addresses of the legal representatives of the defendant and make an application for the legal representatives to be made a party.

(2) A defendant may at any time—

(a) file in the Court an amended list of his presumptive legal representatives.

(b) nominate another person, in the place of the person nominated under clause (b) of sub-rule (1), for the purposes of that clause.

(3) A nomination made under clause (b) of sub-rule (1) shall, unless varied under clause (b) of sub- rule (2), remain in force throughout the pendency of the suit and any proceedings arising therefrom, including appeal, revision or review.]

ORDER IX

APPEARANCE OF PARTIES AND CONSEQUENCE OF NON-APPEARANCE

1. Parties to appear on day fixed in summons for defendant to appear and answer. On the day fixed in the summons for the defendant to appear and answer, the parties shall be in attendance at the Court-house in person or by their respective pleaders, and the suit shall then be heard unless the hearing is adjourned to a future day fixed by the Court.

2. Dismissal of suit where summons not served in consequence of plaintiff's failure to pay costs. Where on the day so fixed it is found that the summons has not been served upon the defendant in consequence of the failure of the plaintiff to pay the court-fee or postal charges (if any) chargeable for such service, the Court may make an order that the suit be dismissed:

Provided that no such order shall be made although the summons has not been served upon the defendant, if on the day fixed for him to appear and answer he attends in person or by agent when he is allowed to appear by agent.

[1]Added by SRO 579(1)/2014, dated 18-06-2014

3. Where neither party appears, suit to be dismissed. Where neither party appears when the suit is called on for hearing, the Court may make an order that the suit be dismissed.

4. Plaintiff may bring fresh suit or Court may restore suit to file. Where a suit is dismissed under rule 2 or rule 3, the plaintiff may (subject to the law of limitation) bring a fresh suit; or he may apply for an order to set the dismissal aside, and if he satisfies the Court that there was sufficient cause for his not paying the court-fee and postal charges (if any) required within the time fixed before the issue of the summons, or for his non-appearance, as the case may be, the Court shall make an order setting aside the dismissal and shall appoint a day for proceeding with the suit.

5. Dismissal of suit where plaintiff, after summons returned unserved, fails for three months to apply for fresh summons.— [1][(1) Where, after a summons has been issued to the defendant, or to one of several defendants, and returned unserved, the plaintiff fails, for a period of three months from the date of the return made to the Court by the officer ordinarily certifying to the Court returns made by the serving officers, to apply for the issue of a fresh summons the Court shall make an order that the suit be dismissed as against such defendant, unless the plaintiff has within the said period satisfied the Court that—

(a) he has failed after using his best endeavours to discover the residence of the defendant who has not been served, or

(b) such defendant is avoiding service of process, or

(c) there is any other sufficient cause for extending the time, in which case the Court may extend the time for making such application for such period as it thinks fit.]

(2) In such case the plaintiff may (subject to the law of limitation) bring a fresh suit.

6. Procedure when only plaintiff appears.—(1) Where the plaintiff appears and the defendant does not appear when the suit is called on for hearing, then—

(a) **When summons duly served.** if it is proved that the summons was duly served, the Court may proceed *ex parte* [2][and pass decree without recording evidence;]

(b) **When summons not duly served.** if it is not proved that the summons was duly served, the Court shall direct a second summons to be issued and served on the defendant;

(c) **When summons served, but not in due time**. if it is proved that the summons was served on the defendant, but not in sufficient time to enable him to appear and answer on the day fixed in the summons, the Court shall postpone the hearing of the suit to a future day to be fixed by the Court, and shall direct notice of such day to be given to the defendant.

(2) Where it is owing to the plaintiff's default that the summons was not duly served or was not served in sufficient time, the Court shall order the plaintiff to pay the costs occasioned by the postponement.

7. Procedure where defendant appears on day of adjourned hearing and assigns good cause for previous non-appearance. Where the Court has adjourned the hearing of the suit *ex-parte*, and the defendant, at or before such hearing, appears and assigns good cause for his previous non-

[1]Subs. by the Code of Civil Procedure (Amdt.) Act, 1920 (24 of 1920), s.2, for the original sub-rule (1).
[2]Ins. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch.

appearance, he may, upon such terms as the Court directs as to costs or otherwise, be heard in answer to the suit as if he had appeared on the day fixed for his appearance.

8. Procedure where defendant only appears. Where the defendant appears and the plaintiff does not appear when the suit is called on for hearing, the Court shall make an order that the suit be dismissed, unless the defendant admits the claim, or part thereof, in which case the Court shall pass a decree against the defendant upon such admission, and, where part only of the claim has been admitted, shall dismiss the suit so far as it relates to the remainder.

9. Decree against plaintiff by default bars fresh suit.— (1) Where a suit is wholly or partly dismissed under rule 8, the plaintiff shall be precluded from bringing a fresh suit in respect of the same cause of action. But he may apply for an order to set the dismissal aside, and if he satisfies the Court that there was sufficient cause for his non-appearance when the suit was called on for hearing, the Court shall make an order setting aside the dismissal upon such terms as to costs or otherwise as it thinks fit, and shall appoint a day for proceeding with the suit.

(2) No order shall be made under this rule unless notice of the application has been served on the opposite party.

[1](3) The provisions of section 5 of the Limitation Act, 1908 (IX of 1908), shall apply to applications under sub-rule (1)].

10. Procedure in case of non-attendance of one or more of several plaintiffs. Where there are more plaintiffs than one, and one or more of them appear, and the others do not appear, the Court may, at the instance of the plaintiff or plaintiffs appearing, permit the suit to proceed in the same way as if all the plaintiffs had appeared, or make such order as it thinks fit.

11. Procedure in case of non-attendance of one or more of several defendants. Where there are more defendants than one, and one or more of them appear, and the others do not appear, the suit shall proceed, and the Court shall, at the time of pronouncing judgment, make such order as it thinks fit with respect to the defendants who do not appear.

12. Consequence of non-attendance, without sufficient cause shown, of party ordered to appear in person. Where a plaintiff or defendant, who has been ordered to appear in person, does not appear in person, or show sufficient cause to the satisfaction of the Court for failing so to appear, he shall be subject to all the provisions of the foregoing rules applicable to plaintiffs and defendants, respectively, who do not appear.

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Setting aside Decree Ex Parte

[2][13. Setting aside decree *ex-parte* against defendant.— (1)] In any case in which a decree is passed *ex parte* against a defendant, he may apply to the Court by which the decree was passed for an order to set it aside; and if he satisfies the Court that the summons was not duly served, or that he was prevented by any sufficient cause from appearing when the suit was called on for hearing, the Court shall make an order setting aside the decree as against him upon such terms as to costs, payment into Court or otherwise as it thinks fit, and shall appoint a day for proceeding with the suit:

Provided that where the decree is of such a nature that it cannot be set aside as against such defendant only it may be set aside as against all or any of the other defendants also [:][3]

[3][Provided further that no decree passed *ex parte* shall be set aside merely on the ground of any irregularity in the service of summons, if the Court is satisfied, for reason to be recorded, that the defendant had knowledge of the date of hearing in sufficient time to appear on that date and answer the claim.]

[1]New sub-rule (3) added by the Code of Civil Procedure (Amdt.) Ordinance, 1980 (10 of 1980), s. 14.
[2]Rule 13 re-numbered as sub-rule (1) of that rule by the Code of Civil Procedure (Amdt.) Ordinance, 1980 (10 of 1980), s. 14.
[3]Subs. and added by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch.

[1][(2) The provisions of section 5 of the Limitation Act, 1908 (IX of 1908), shall apply to applications under sub-rule (1)].

14. No decree to be set aside without notice to opposite party. No decree shall be set aside on any such application as aforesaid unless notice thereof has been served on the opposite party.

ORDER X

EXAMINATION OF PARTIES BY THE COURT

1. Ascertainment whether allegations in pleadings are admitted or denied. At the first hearing of the suit the Court shall ascertain from each party or his pleader whether he admits or denies such allegations of fact as are made in the plaint or written statement (if any) of the opposite party, and as are not expressly or by necessary implication admitted or denied by the party against whom they are made. The Court shall record such admissions and denials.

[2]**[1A.** The Court may adopt any lawful procedure not inconsistent with the provisions of this Code to—

(i) Conduct preliminary proceedings and issue orders for expediting processing of the case;

(ii) issue, with the consent of parties, commission to examine witnesses, admit documents and take other steps for the purpose of trial;

(iii) adopt, with the consent of parties, any alternative method of dispute resolution including mediation, conciliation or any such other means.]

2. Oral examination of party or companion of party. At the first hearing of the suit, or at any subsequent hearing, any party appearing in person or present in Court, or any person able to answer any material questions relating to the suit by whom such party or his pleader is accompanied, [3][shall] be examined orally by the Court; and the Court may, if it thinks fit, put in the course of such examination questions suggested by either party.

3. Substance of examination to be written. The substance of the examination shall be reduced to writing by the Judge, and shall form part of the record.

4. Consequence of refusal or inability of pleader to answer.—(1) Where the pleader of any party who appears by a pleader or any such person accompanying a pleader as is referred to in rule 2, refuses or is unable to answer any material question relating to the suit which the Court is of opinion that the party whom he represents ought to answer, and is likely to be able to answer if interrogated in person, the Court may postpone the hearing of the suit to a future day and direct that such party shall appear in person on such day.

(2) If such party fails without lawful excuse to appear in person on the day so appointed, the Court may pronounce judgment against him, or make such order in relation to the suit as it thinks fit.

ORDER XI

DISCOVERY AND INSPECTION

1. Discovery by interrogatories. In any suit the plaintiff or defendant by leave of the Court may deliver interrogatories in writing for the examination of the opposite parties or any one or more of such parties, and such interrogatories when delivered shall have a note at the foot thereof stating which of such interrogatories each of such persons is required to answer: Provided that no party shall deliver more than

[3]Sub-rule (2) added by Ord. 10 of 1980, s. 14.
[2]Ins. by ord. 34 of 02, s.3.
[3]Subs. by Act XIV of 1994, s.11

one set of interrogatories to the same party without an order for that purpose: Provided also that interrogatories which do not relate to any matters in question in the suit shall be deemed irrelevant, notwithstanding that they might be admissible on the oral cross-examination of a witness.

2. Particular interrogatories to be submitted. On an application for leave to deliver interrogatories, the particular interrogatories proposed to be delivered shall be submitted to the Court. In deciding upon such application, the Court shall take into account any offer, which may be made by the party sought to be interrogated to deliver particulars, or to make admissions, or to produce documents relating to the matters in question, or any of them, and leave shall be given as to such only of the interrogatories submitted as the Court shall consider necessary either for disposing fairly of the suit or for saving costs.

3. Costs of interrogatories. In adjusting the costs of the suit inquiry shall at the instance of any party be made into the propriety of exhibiting such interrogatories, and if it is the opinion of the taxing officer or of the Court, either with or without an application for inquiry, that such interrogatories have been exhibited unreasonably, vexatiously, or at improper length, the costs occasioned by the said interrogatories and the answers thereto shall be paid in any event by the party in fault.

4. Forms of interrogatories. Interrogatories shall be in Form No.2 in Appendix C, with such variations as circumstances may require.

5. Corporations. Where any party to a suit is a corporation or a body of persons, whether incorporated or not, empowered by law to sue or be sued, whether in its own name or in the name of any officer or other person, any opposite party may apply for an order allowing him to deliver interrogatories to any member or officer of such corporation or body, and an order may be made accordingly.

6. Objections to interrogatories by answer. Any objection to answering any interrogatory on the ground that it is scandalous or irrelevant or not exhibited bona fide for the purpose of the suit, or that the matters inquired into are not sufficiently material at that stage, or on any other ground, may be taken in the affidavit in answer.

7. Setting aside and striking out interrogatories. Any interrogatories may be set aside on the ground that they have been exhibited unreasonably or vexatiously, or struck out on the ground that they are prolix, oppressive, unnecessary or scandalous; and any application for this purpose may be made within seven days after service of the interrogatories.

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8. Affidavit in answer, filing. Interrogatories shall be answered by affidavit to be filed within ten days, or within such other time as the Court may allow.

9. Forms of affidavit in answer. An affidavit in answer to interrogatories shall be in Form No.3 in Appendix C, with such variations as circumstances may require.

10. No exception to be taken. No exception shall be taken to any affidavit in answer, but the sufficiency or otherwise of any such affidavit objected to as insufficient shall be determined by the Court.

11. Order to answer or answer further. Where any person interrogated omits to answer, or answers insufficiently, the party interrogating may apply to the Court for an order requiring him to answer, or to answer further, as the case may be. And an order may be made requiring him to answer or answer further, either by affidavit or by viva voce examination, as the Court may direct.

12. Application for discovery of documents. Any party may, without filing any affidavit, apply to the Court for an order directing any other party to any suit to make discovery on oath of the

documents which are or have been in his possession or power, relating to any matter in question therein. On the hearing of such application the Court may either refuse or adjourn the same, if satisfied that such discovery is not necessary, or not necessary at that stage of the suit, or make such order, either generally or limited to certain classes of documents, as may, in its discretion, be thought fit: Provided that discovery shall not be ordered when and so far as the Court shall be of opinion that it is not necessary either for disposing fairly of the suit or for saving costs.

13. Affidavit of documents. The affidavit to be made by a party against whom such order as is mentioned in the last preceding rule has been made, shall specify which (if any) of the documents therein mentioned he objects to produce, and it shall be in Form No.5 in Appendix C, with such variations as circumstances may require.

14. Production of documents. It shall be lawful for the Court, at any time during the pendency of any suit, to order the production by any party thereto, upon oath, of such of the documents in his possession or power, relating to any matter in question in such suit, as the Court shall think right; and the Court may deal with such documents, when produced, in such manner as shall appear just.

15. Inspection of documents referred to in pleadings or affidavits. Every party to a suit shall be entitled at any time to give notice to any other party, in whose pleadings or affidavits reference is made to any document, to produce such document for the inspection of the party giving such notice, or of his pleader, and to permit him or them to take copies thereof; and any party not complying with such notice shall not afterwards be at liberty to put any such document in evidence on his behalf in such suit unless he shall satisfy the Court that such document relates only to his own title, he being a defendant to the suit, or that he had some other cause or excuse which the Court shall deem sufficient for not complying with such notice, in which case the Court may allow the same to be put in evidence on such terms as to costs and otherwise as the Court shall think fit.

16. Notice to produce. Notice to any party to produce any documents referred to in his pleading or affidavits shall be in Form No.7 in Appendix C, with such variations as circumstances may require.

17. Time for inspection when notice given. The party to whom such notice is given shall, within ten days from the receipt of such notice, deliver to the party giving the same a notice stating a time within three days from the delivery thereof at which the documents, or such of them as he does not object to produce, may be inspected at the office of his pleader, or in the case of bankers' books or other books of account or books in constant use for the purposes of any trade or business, at their usual place of custody, and stating which (if any) of the documents he objects to produce, and on what ground. Such notice shall be in Form No.8 in Appendix C, with such variations as circumstances may require.

18. Order for inspection.—(1) Where the party served with notice under rule 15 omits to give such notice of a time for inspection or objects to give inspection, or offers inspection elsewhere than at the office of his pleader, the Court may, on the application of the party desiring it, make an order for inspection in such place and in such manner as it may think fit: Provided that the order shall not be made when and so far as the Court shall be of opinion that it is not necessary either for disposing fairly of the suit or for saving costs.

(2) Any application to inspect documents, except such as are referred to in the pleadings, particulars or affidavits of the party against whom the application is made or disclosed in his affidavit of documents, shall be founded upon an affidavit showing of what documents inspection is sought, that the party applying is entitled to inspect them, and that they are in the possession or power of the other party. The Court shall not make such order for inspection of such documents when and so far as

the Court shall be of opinion that it is not necessary either for disposing fairly of the suit or for saving costs.

19. Verified copies.— (1) Where inspection of any business books is applied for the Court may, if it thinks fit, instead of ordering inspection of the original books, order a copy of any entries therein to be furnished and verified by the affidavit of some person who has examined the copy with the original entries, and such affidavit shall state whether or not there are in the original book any and what erasures, interlineations or alterations: Provided that, notwithstanding that such copy has been supplied, the Court may order inspection of the book from which the copy was made.

(2) Where on an application for an order for inspection privilege is claimed for any document, it shall be lawful for the Court to inspect the document for the purpose of deciding as to the validity of the claim of privilege.

(3) The Court may, on the application of any party to a suit at any time, and whether an affidavit of documents shall or shall not have already been ordered or made, make an order requiring any other party to state by affidavit whether any one or more specific documents, to be specified in the application, is or are, or has or have at any time been, in his possession or power; and, if not then in his possession, when he parted with the same and what has become thereof. Such application shall be made on an affidavit stated that in the belief of the deponent the party against whom the application is made has, or has at some time had, in his possession or power the document or documents specified in the application, and that they relate to the matters in question in the suit, or to some of them.

20. Premature discovery. Where the party from whom discovery of any kind or inspection is sought objects to the same, or any part thereof, the Court may, if satisfied that the right to the discovery or inspection sought depends on the determination of any issue or question in dispute in the suit, or that for any other reason it is desirable that any issue or question in dispute in the suit should be determined before deciding upon the right to the discovery or inspection, order that such issue or question be determined first, and reserve the question as to the discovery or inspection.

21. Non-compliance with order for discovery. Where any party fails to comply with any order to answer interrogatories, or for discovery or inspection of documents, he shall, if a plaintiff, be liable to have his suit dismissed for want of prosecution, and, if a defendant, to have his defence, if any, struck out, and to be placed in the same position as if he had not defended, and the party interrogating or seeking discovery or inspection may apply to the Court for an order to that effect, and an order may be made accordingly.

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22. Using answers to interrogatories at trial. Any party may, at the trial of a suit, use in evidence any one or more of the answers or any part of an answer of the opposite party to interrogatories without putting in the others or the whole of such answer: Provided always that in such case the Court may look at the whole of the answers, and if it shall be of opinion that any others of them are so connected with those put in that the last-mentioned answers ought not to be used without them, it may direct them to be put in.

23. Order to apply to minors. This order shall apply to minor plaintiffs and defendants, and to the next friends and guardians for the suit of persons under disability.

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ORDER XII

ADMISSIONS

1. Notice of admission of case. Any party to a suit may give notice, by his pleading, or otherwise in writing, that he admits the truth of the whole or any part of the case of any other party.

2. Notice to admit documents. Either party may call upon the other party to admit any document, saving all just exceptions; and in case of refusal or neglect to admit, after such notice, the costs of proving any such document shall be paid by the party so neglecting or refusing, whatever the result of the suit may be, unless the Court otherwise directs; and no costs of proving any document shall be allowed unless such notice is given, except where the omission to give the notice is, in the opinion of the Court, a saving of expense.

3. Form of notice. A notice to admit documents shall be in Form No.9 in Appendix C, with such variations as circumstances may require.

4. Notice to admit facts. Any party may, by notice in writing, at any time not later than nine days before the day fixed for the hearing, call on any other party to admit, for the purposes of the suit only, any specific fact or facts mentioned in such notice. And in case of refusal or neglect to admit the same within six days after service of such notice, or within such further time as may be allowed by the Court, the costs of proving such fact or facts shall be paid by the party so neglecting or refusing, whatever the result of the suit may be, unless the Court otherwise directs: Provided that any admission made in pursuance of such notice is to be deemed to be made only for the purposes of the particular suit, and not as an admission to be used against the party on any other occasion or in favour of any person other than the party giving the notice: Provided also that the Court may at any time allow any party to amend or withdraw any admission so made on such terms as may be just.

[1][**4A. Power of Court to record admission of documents and facts.**— Notwithstanding that no notice to admit documents or facts has been given under Rules 2 and 4 respectively, the Court may, at any stage of the proceedings before it, of its own motion, call upon any party to admit any document or fact and shall in such a case, record whether the party admits or refuses or neglects to admit such document or fact.]

5. Forms of admission. A notice to admit facts shall be in Form No.10 in Appendix C, and admissions of facts shall be in Form No.11 in Appendix C, with such variations as circumstances may require.

6. Judgment on admissions. Any party may, at any stage of a suit, where admissions of fact have been made, either on the pleadings, or otherwise, apply to the Court for such judgment or order as upon such admissions he may be entitled to, without waiting for the determination of any other question between the parties: and the Court may upon such application make such order, or give such judgment, as the Court may think just.

7. Affidavit of signature. An affidavit of the pleader or his clerk, of the due signature of any admissions made in pursuance of any notice to admit documents or facts, shall be sufficient evidence of such admissions, if evidence thereof is required.

[1]Added by No. 300 Rules/XI-Y-26, dated 2nd October, 2001.

8. Notice to produce documents. Notice to produce documents shall be in Form No.12 in Appendix C, with such variations as circumstances may require. An affidavit of the pleader, or his clerk, of the service of any notice to produce, and of the time when it was served, with a copy of the notice to produce, shall in all cases be sufficient evidence of the service of the notice, and of the time when it was served

9. Costs. If a notice to admit or produce specifies documents which are not necessary, the costs occasioned thereby shall be borne by the party giving such notice.

ORDER XIII

PRODUCTION, IMPOUNDING AND RETURN OF DOCUMENTS

1. Documentary evidence to be produced at first hearing.—(1) The parties or their pleaders shall produce, at the first hearing of the suit, all the documentary evidence of every description in their possession or power, on which they intend to rely, and which has not already been filed in Court, and all documents which the Court has ordered to be produced.

(2) The Court shall receive the documents so produced: Provided that they are accompanied by an accurate list thereof prepared in such form as the High Court directs.

[1][(3) On production of documents under this rule, the Court may call upon the parties to admit or deny the documents produced in the Court and record their admission or, as the case may be, denial.]

2. Effect of non-production of documents. No documentary evidence in the possession or power of any party which should have been but has not been produced in accordance with the requirements of rule 1 shall be received at any subsequent stage of the proceedings unless good cause is shown to the satisfaction of the Court for the non-production thereof; and the Court receiving any such evidence shall record the reasons for so doing.

3. Rejection of irrelevant or inadmissible documents. The Court may at any stage of the suit reject any document which it considers irrelevant or otherwise inadmissible, recording the ground of such rejection.

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4. Endorsement on documents admitted in evidence.—(1) Subject to the provisions of the next following sub-rule, there shall be endorsed on every document which has been admitted in evidence in the suit the following particulars, namely:—

(a) the number and title of the suit,

(b) the name of the person producing the document,

(c) the date on which it was produced, and

(d) a statement of its having been so admitted;

and the endorsement shall be signed or initiated by the judge.

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[1]Added by Act XIV of 1994, S.11.

(2) Where a document so admitted is an entry in a book, account or record, and a copy thereof has been substituted for the original under the next following rule, the particulars aforesaid shall be endorsed on the copy and the endorsement thereon shall be signed or initialled by the Judge.

5. Endorsements on copies of admitted entries in books, accounts and records.— (1) Save in so far as is otherwise provided by the Banker's Books Evidence Act, 1891 (XVIII of 1891), where a document admitted in evidence in the suit is an entry in a letter-book, or a shop-book or other account in current use, the party on whose behalf the book or account is produced may furnish a copy of the entry.

(2) Where such a document is an entry in a public record produced from a public office, or by a public officer, or an entry in a book or account belonging to a person other than a party on whose behalf the book, or account is produced, the Court may require a copy of the entry to be furnished—

(a) where the record, book or account is produced on behalf of a party, then by that party, or

(b) where the record, book or account is produced in obedience to an order of the Court acting of its own motion, then by either or any party.

(3) Where a copy of an entry is furnished under the foregoing provisions of this rule, the Court shall, after causing the copy to be examined, compared and certified in manner mentioned in rule 17 of Order VII, mark the entry and cause he book, account or record in which it occurs to be returned to the person producing it.

6. Endorsements on documents rejected as inadmissible in evidence. Where a document relied on as evidence by either party is considered by the Court to be inadmissible in evidence, there shall be endorsed thereon the particulars mentioned in clauses (a), (b) and (c) of rule 4, sub-rule (1) together with a statement of its having been rejected, and the endorsement shall be signed or initialed by the Judge.

7. Recording of admitted and return of rejected documents.— (1) Every document which has been admitted in evidence or a copy thereof where a copy has been substituted for the original under rule 5, shall form part of the record of the suit.

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(2) Documents not admitted in evidence shall not form part of the record and shall be returned to the persons respectively producing them.

8. Court may order any document to be impounded. Notwithstanding anything contained in rule 5 or rule 7 of this Order or in rule 17 of Order VII, the Court may, if it sees sufficient cause, direct any document or book produced before it in any suit to be impounded and kept in the custody of an officer of the Court, for such period and subject to such conditions as the Court thinks fit.

9. Return of admitted documents.— (1) Any person, whether a party to the suit or not, desirous of receiving back any document produced by him in the suit and placed on the record shall, unless the document is impounded under rule 8, be entitled to receive back the same,—

(a) where the suit is one in which an appeal is not allowed, when the suit has been disposed of, and

(b) where the suit is one in which an appeal is allowed, when the Court is satisfied that the time for preferring an appeal has elapsed and that no appeal has been

preferred or, if an appeal has been preferred, when the appeal has been disposed of:

Provided that a document may be returned at any time earlier than that prescribed by this rule if the person applying therefor delivers to the proper officer a certified copy to the substituted for the original and undertakes to produce the original if required to do so:

Provided also that no document shall be returned which, by force of the decree, has become wholly void or useless.

(2) On the return of a document admitted in evidence, a receipt shall be given by the person receiving it.

10. Court may send for papers from its own records or from other Courts.—(1) The Court may of its own motion, and may in its discretion upon the application of any of the parties to a suit, send for, either from its own records or from any other Court, the record of any other suit or proceeding, and inspect the same.

(2) Every application made under this rule shall (unless the Court otherwise directs) be supported by an affidavit showing how the record is material to the suit in which the application is made, and that the applicant cannot without unreasonable delay or expense obtain a duly authenticated copy of the record or of such portion thereof as the applicant requires, or that the production of the original is necessary for the purposes of justice.

(3) Nothing contained in this rule shall be deemed to enable the Court to use in evidence any document which under the law of evidence would be inadmissible in the suit.

11. Provisions as to documents applied to material objects. The provisions herein contained as to documents shall, so far as may be, apply to all other material objects producible as evidence.

ORDER XIV

SETTLEMENT OF ISSUES AND DETERMINATION OF SUIT ON ISSUES OF LAW OR ON ISSUES AGREED UPON

1. Framing of issues.—(1) Issues arise when a material proposition of fact or law is affirmed by the one party and denied by the other.

(2) Material propositions are those propositions of law or fact which a plaintiff must allege in order to show a right to sue or a defendant must allege in order to constitute his defence.

(3) Each material proposition affirmed by one party and denied by the other shall form the subject of a distinct issue.

(4) Issues are of two kinds: *(a)* issues of fact, *(b)* issues of law.

(5) At the first hearing of the suit the Court shall, after reading the plaint and the written statements if any, and after such examination of the parties as may appear necessary, ascertain upon what material propositions of fact or of law the parties are at variance, and shall thereupon proceed to frame and record the issues on which the right decision of the case appears to depend.

(6) Nothing in this rule requires the Court to frame and record issues where the defendant at the first hearing of the suit makes no defence.

2. Issue of law and fact. Where issues both of law and of fact arise in the same suit, and the Court is of opinion that the case or any part thereof may be disposed of on the issues of law only, it shall try those issues first, and for that purpose may, if it thinks fit, postpone the settlement of the issues of fact until after the issues of law have been determined.

3. Materials from which issues may be framed. The Court may frame the issues from all or any of the following materials—

(a) allegations made on oath by the parties, or by any persons present on their behalf, or made by the pleaders of such parties;

(b) allegations made in the pleadings or in answers to interrogatories delivered in the suit;

(c) the contents of documents produced by either party.

4. Court may examine witnesses or documents before framing issues. Where the Court is of opinion that the issues cannot be correctly framed without the examination of some person not before the Court or without the inspection of some document not produced in the suit, it may adjourn the framing of the issues to a future day, and may (subject to any law for the time being in force) compel the attendance of any person or the production of any document by the person in whose possession or power it is by summons or other process.

5. Power to amend, and strike out, issues.— (1) The Court may at any time before passing a decree amend the issues or frame additional issues on such terms as it thinks fit,. and all such amendments or additional issues as may be necessary for determining the matters in controversy between the parties shall be so made or framed.

(2) The Court may also, at any time before passing a decree, strike out any issues that appear to it to be wrongly framed or introduced.

6. Questions of fact or law may by agreement be stated in form of issues. Where the parties to a suit are agreed as to the question of fact or of law to be decided between them, they may state the same in the form of an issue, and enter into an agreement in writing that, upon the finding of the Court in the affirmative or the negative of such issue,—

(a) a sum of money specified in the agreement or to be ascertained by the Court, or in such manner as the Court may direct, shall be paid by one of the parties to the other of them, or that one of them be declared entitled to some right or subject to some liability specified in the agreement;

(b) some property specified in the agreement and in dispute in the suit shall be delivered by one of the parties to the other of them, or as that other may direct; or

(c) One or more of the parties shall do or abstain from doing some particular act specified in the agreement and relating to the matter in dispute.

7. Court, if satisfied that agreement was executed in good faith, may pronounce judgment. Where the Court is satisfied, after making such inquiry as it deems proper,—

(a) that the agreement was duly executed by the parties,

(b) that they have a substantial interest in the decision of such question as aforesaid, and

(c) that the same is fit to be tried and decided,

it shall proceed to record and try the issue and state its finding or decision thereon in the same manner as if the issue had been framed by the Court;

And shall, upon the finding or decision on such issue, pronounce judgment according to the terms of the agreement; and, upon the judgment so pronounced, a decree shall follow.

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ORDER XV

DISPOSAL OF THE SUIT AT THE FIRST HEARING

1. Parties not at issue. Where at the first hearing of a suit it appears that the parties are not at issue on any question of law or of fact, the Court may at once pronounce judgment.

2. One of several a defendants not at issue. Where there are more defendants than one, and any one of the defendants is not at issue with the plaintiff on any question of law or of fact, the Court may at once pronounce judgment for or against such defendant and the suit shall proceed only against the other defendants.

3. Parties at issue.— (1) Where the parties are at issue on some question of law or of fact, and issues have been framed by the Court as hereinbefore provided, if the Court is satisfied that no further argument or evidence than the parties can at once adduce is required upon such of the issues as may be sufficient for the decision of the suit, and that no injustice will result from proceeding with the suit forthwith, the Court may proceed to determine such issues, and, if the finding thereon is sufficient for the decision, may pronounce judgment accordingly, whether the summons has been issued for the settlement of issues only or for the final disposal of the suit:

Provided that, where the summons has been issued for the settlement of issues only, the parties or their pleaders are present and none of them objects.

(2) Where the finding is not sufficient for the decision, the Court shall postpone the further hearing of the suit, and shall fix a day for the production of such further evidence, or for such further argument as the case requires.

4. Failure to provide evidence. Where the summons has been issued for the final disposal of the suit and either party fails without sufficient cause to produce the evidence on which he relies, the Court may at once pronounce judgment, or may, if it thinks fit, after framing and recording issues adjourn the suit for the production of such evidence as may be necessary for its decision upon such issues.

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ORDER XVI

SUMMONING AND ATTENDANCE OF WITNESSES

[1]**[1. Summons to attend to give evidence or produce documents.**— (1) Not later than seven days after the settlement of issues, the parties shall present in Court a [2][, certificate of readiness to produce evidence, along with a] list of witnesses whom they propose to call or produce either to give evidence or to produce documents.

(2) A party shall not be permitted to call or produce witnesses other than those contained in the said list, except with the permission of the Court and after showing good cause for the omission the said witnesses from the list; and the Court grants such permission, it shall record reasons for so doing.

(3) On application to the Court or such officer as it appoints in this behalf, the parties may obtain summons for persons whose attendance is required in Court:

Provided that no summons shall be issued for service on a person under rule 8 unless an application in that behalf is made not later than fourteen days prior to the date fixed for the hearing of the suit and the necessary expenses for the summoning of such person are deposited]

2. Expenses of witness to be paid into Court on applying for summons.— (1) The party applying for a summons shall, before the summons is granted and within a period to be fixed, pay into Court such a sum of money as appears to the Court to be sufficient to defray the travelling and other expenses of the person summoned in passing to and from the Court in which he is required to attend, and for one day's attendance.

(2) Experts. In determining the amount payable under this rule, the Court may, in the case of any person summoned to give evidence as an expert, allow reasonable remuneration for the time occupied both in giving evidence and in performing any work of an expert character necessary for the case.

(3) Scale of expenses. Where the Court is subordinate to a High Court, regard shall be had, in fixing the scale of such expenses, to any rules made in that behalf.

3. Tender of expenses to witness. The sum so paid into Court shall be tendered to the person summoned, at the time of serving the summons, if it can be served personally.

4. Procedure where insufficient sum paid in.— (1) Where it appears to the Court or to such officer as it appoints in this behalf that the sum paid into Court is not sufficient to cover such expenses or reasonable remuneration, the Court may direct such further sum to be paid to the person summoned as appears to be necessary on that account, and, in case of default in payment, may order such sum to be levied by attachment and sale of the moveable property of the party obtaining the summons ; or the Court may discharge the person summoned, without requiring him to give evidence ; or may both order such levy and discharge such person as aforesaid.

(2) Expenses of witness detained more than one day. Where it is necessary to detain the person summoned for a longer period than one day, the Court may, from time to time, order the party at whose instance he was summoned to pay into Court such sum as is sufficient to defray the expenses of his

[1]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch., for the original rule 1.
[2]Ins. by Act. XIV of 1994, S.11.

detention for such further period, and, in default of such deposit being made, may order such sum to be levied by attachment and sale of the movable property of such party ; or the Court may discharge the person summoned without requiring him to give evidence; or may both order such levy and discharge such person as aforesaid.

5. Time, place and purpose of attendance to be specified in summons. Every summons for the attendance of a person to give evidence or to produce a document shall specify the time and place at which he is required to attend, and also whether his attendance is required for the purpose of giving evidence or to produce a document, or for both purposes; and any particular document which the person summoned is called on to produce, shall be described in the summons with reasonable accuracy.

6. Summons to produce document. Any person may be summoned to produce a document, without being summoned to give evidence; and any person summoned merely to produce a document shall be deemed to have complied with the summons if he causes such document to be produced instead of attending personally to produce the same.

7. Power to require persons present in Court to give evidence or produce document. Any person present in Court may be required by the Court to give evidence or to produce any document then and there in his possession or power.

[1]**[7A. Service of summons by parties.**— (1) Except where it appears to the Court that a summons under this Order should be served by the Court in the same manner as a summons to a defendant, the Court shall make over for service all summons under this Order to the party applying therefore.

(2) The service shall be effected by or on behalf of such party by delivering or tendering to the witness in person a copy thereof signed by the Judge or such officer as he appoints in this behalf and sealed with the seal of the Court.

(3) Rules 16 and 18 of Order V shall apply to summons personally served under this rule, as though the person effecting service were a serving officer.].

[2]**[8. Service of summons by Court.** Every summons under this Order, not being a summons made over to a party for service under rule 7A of this Order, shall be served as nearly as may be in the same manner as a summons to a defendant, and the rules in Order V as to proof of service shall apply thereto.].

9. Time for serving summons. Service shall in all cases be made a sufficient time before the time specified in the summons for the attendance of the person summoned, to allow him a reasonable time for preparation and for travelling to the place at which his attendance is required.

10. Procedure where witness fails to comply with summons.— (1) Where a person to whom a summons has been issued either to attend to give evidence or to produce a document fails to attend or to produce the document in compliance with such summons, the Court shall, if the certificate of the serving-officer has not been verified by affidavit, and may, if it has been so verified, examine the serving-officer on oath, or cause him to be so examined by another Court, touching the service or non- service of the summons.

[1]Rule 7A ins. by the Law Reforms Ordinance 1972 (12 of 1972), s.2 and Sch.
[2]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch., for the original rule 8.

(2) Where the Court sees reason to believe that such evidence or production is material, and that such person has without lawful excuse, failed to attend or to produce the document in compliance with such summons or has intentionally avoided service, it may issue a proclamation requiring him to attend to give evidence or to produce the document at a time and place to be named therein ; and a copy of such proclamation shall be affixed on the outer door or other conspicuous part of the house in which he ordinarily resides.

(3) In lieu of or at the time of issuing such proclamation, or at any time afterwards, the Court may, in its discretion, issue a warrant, either with or without bail, for the arrest of such person, and may make an order for the attachment of his property to such amount as it thinks fit not exceeding the amount of the costs of attachment and of any fine which may be imposed under rule 12:

Provided that no Court of Small Causes shall make an order for the attachment of immovable property.

11. If witness appears attachment may be withdrawn. Where, at any time after the attachment of his property, such person appears and satisfies the Court,—

(a) that he did not, without lawful excuse, fail to comply with the summons or intentionally avoid service, and

(b) where he has failed to attend at the time and place named in a proclamation issued under the last preceding rule, that he had no notice of such proclamation in time to attend,

the Court shall direct that the property be released from attachment, and shall make such order as to the costs of the attachment as it thinks fit.

12. Procedure if witness fails to appear. The Court may, where such person does not appear, or appears but fails so to satisfy the Court, impose upon him such fine not exceeding [1][two thousand] rupees as it thinks fit, having regard to his condition in life and all the circumstances of the case, and may order his property, or any part thereof, to be attached and sold or, if already attached under rule 10, to be sold for the purpose of satisfying all costs of such attachment, together with the amount of the said fine, if any:

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Provided that, if the person whose attendance is required pays into Court the costs and fine aforesaid, the Court shall order the property to be released from attachment.

13. Mode of attachment. The provisions with regard to the attachment and sale of property in the execution of a decree shall, so far as they are applicable be deemed to apply to any attachment and sale under this Order as if the person whose property is so attached were a judgment-debtor.

14. Court may of its accord summon as witnesses strangers to suit. Subject to the provisions of this Code as to attendance and appearance and to any law for the time being in force, where the Court at any time thinks it is necessary to examine any person other than a party to the suit and not called as a witness by a party to the suit, the Court may, of its own motion, cause such person to be summoned as a witness to give evidence, or to produce any document in his possession, on a day to be appointed, and may examine him as a witness or require him to produce such document.

[1]Subs. by Act XIV of 1994, S.11

15. Duty of persons summoned to give evidence or produce document. Subject as last aforesaid whoever is summoned to appear and give evidence in a suit shall attend at the time and place named in the summons for that purpose, and whoever is summoned to produce a document shall either attend to produce it, or cause it to be produced, at such time and place.

16. When they may depart.—(1) A person so summoned and attending shall, unless the Court otherwise directs, attend at each hearing until the suit has been disposed of.

(2) On the application of either party and the payment through the Court of all necessary expenses (if any), the Court may require any person so summoned and attending to furnish security to attend at the next or any other hearing or until the suit is disposed of and, in default of his furnishing such security, may order him to be detained in the civil prison.

17. Application of rules 10 to 13. The provisions of rules 10 to 13 shall, so far as they are applicable, be deemed to apply to any person who having attended in compliance with a summons departs, without lawful excuse, in contravention of rule 16.

18. Procedure where witness apprehended cannot give evidence or produce document. Where any person arrested under a warrant is brought before the Court in custody and cannot, owing to the absence of the parties or any of them, give the evidence or produce the document which he has been summoned to give or produce, the Court may require him to give reasonable bail or other security for his appearance at such time and place as it thinks fit, and, on such bail or security being given, may release him, and, in default of his giving such bail or security, may order him to be detained in the civil prison.

[1]**[19. No witness to be ordered to attend in person unless resident within certain limits.** A person shall not be asked by a Court to attend in person to give evidence unless he resides at any place in Pakistan.].

20. Consequence of refusal of party to give evidence when called on by Court. Where any party to a suit present in Court refuses, without lawful excuse, when required by the Court, to give evidence or to produce any document then and there in his possession or power, the Court may pronounce judgment against him or make such order in relation to the suit as it thinks fit.

21. Rules as to witnesses to apply to parties summoned. Where any party to a suit is required to give evidence or to produce a document, the provisions as to witnesses shall apply to him so far as they are applicable.

ORDER XVII

ADJOURNMENTS

1. Court may grant time and adjourn hearing.— (1) The Court may, if sufficient cause is shown, at any stage of the suit grant time to the parties or to any of them, and may from time to time adjourn the hearing of the suit.

2. Costs of adjournment. In every such case the Court shall fix a day for the further hearing of the suit, and may make such order as it thinks fit with respect to the costs occasioned by the adjournment:

[1]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch., for the original rule 19.

Provided that, when the hearing of evidence has once begun, the hearing of the suit shall be continued from day to day until all the witnesses in attendance have been examined, unless the Court finds the adjournment of the hearing beyond the following day to be necessary for reasons to be recorded.

2. Procedure if parties fails to appear on day fixed. Where, on any day to which the hearing of the suit is adjourned, the parties or any of them fail to appear, the Court may proceed to dispose of the suit in one of the modes directed in that behalf by Order IX or make such other order as it thinks fit.

3. Court may proceed not withstanding either party fails to produce evidence, etc. Where any party to a suit to whom time has been granted fails to produce his evidence, or to cause the attendance of his witnesses, or to perform any other act necessary to the further progress of the suit, for which time has been allowed, the Court may, notwithstanding such default, proceed to decide the suit forthwith.

[1]**[4. Appearance of parties on the day next after holiday.** Where a suit or proceeding is set down for a day which is a holiday, the parties thereto shall appear in the Court on the day next following that day, or, when two or more successive days are holidays, on the day next following the last of such successive days, and the Court may then either proceed with the suit on such day, or fix some other day thereafter.

5. Appearance of parties on the day when the presiding officer is absent. When on any day the presiding officer of the Court is absent by reason of illness or any other cause, the parties to the suit or proceeding set down for that day (notwithstanding the knowledge that the presiding officer would be absent) shall appear in the Court in the Court-house on that day and the ministerial officer of the Court authorized in that behalf shall hand over to the parties slips of paper specifying the other date fixed for proceeding with the suit or proceeding and signed by him.].

ORDER XVIII

HEARING OF THE SUIT AND EXAMINATION OF WITNESSES

1. Right to begin. The plaintiff has the right to begin unless the defendant admits the facts alleged by the plaintiff and contends that either in point of law or on some additional facts alleged by the defendant the plaintiff is not entitled to any part of the relief which he seeks, in which case the defendant has the right to begin.

2. Statement and production of evidence.—(1) On the day fixed for the hearing of the suit or on any other day to which the hearing is adjourned, the party having the right to begin shall state his case and produce his evidence in support of the issues which he is bound to prove.

(2) The other party shall then state his case and produce his evidence (if any) and may then address the Court generally on the whole case.

(3) The party beginning may then reply generally on the whole case.

3. Evidence where several issues. Where there are several issues, the burden of proving some of which lies on the other party, the party beginning may, at his option, either produce his evidence on those issues or reserve it by way of answer to the evidence produced by the other party ; and, in the

[1]Rule 4 and 5 were added by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch.

latter case, the party beginning may produce evidence on those issues after the other party has produced all his evidence, and the other party may then reply specially on the evidence so produced by the party beginning ; but the party beginning will then be entitled to reply generally on the whole case.

4. Witnesses to be examined in open Court. The evidence of the witnesses in attendance shall be taken orally in open Court in the presence and under the personal direction and superintendence of the Judge.

5. How evidence shall be taken in appealable cases. In cases in which an appeal is allowed the evidence of each witness shall be taken down in writing, in the language of the Court, by or in the presence and under the personal direction and superintendence of the Judge, not ordinarily in the form of question and answer, but in that of a narrative, and, when completed, shall be read over in the presence of the Judge and of the witness, and the Judge shall, if necessary, correct the same, and shall sign it

6. When deposition to be interpreted. Where the evidence is taken down in a language different from that in which it is given, and the witness does not understand the language in which it is taken down, the evidence as taken down in writing shall be interpreted to him in the language in which it is given.

7. Evidence under section 138. Evidence taken down under section 138 shall be in the form prescribed by rule 5 and shall be read over and signed and, as occasion may require, interpreted and corrected as if it were evidence taken down under that rule.

8. Memorandum when evidence not taken down by judge. Where the evidence is not taken down in writing by the Judge, he shall be bound, as the examination of each witness proceeds, to make a memorandum of the substance of what each witness deposes, and such memorandum shall be written and signed by the Judge and shall form part of the record.

9. When evidence may be taken in English. Where English is not the language of the Court, but all the parties to the suit who appear in person, and the pleaders of such as appear by pleaders, do not object to have such evidence as is given in English taken down in English, the Judge may so take it down.

10. Any particular question and answer may be taken down. The Court may, of its own motion or on the application of any party or his pleader, take down any particular question and answer, or any objection to any question, if there appears to be any special reason for so doing.

11. Questions objected to and allowed by Court. Where any question put to a witness is objected to by a party or his pleader, and the Court allows the same to be put, the Judge shall take down the question, the answer, the objection and the name of the person making it, together with the decision of the Court thereon.

12. Remarks on demeanour of witnesses. The Court may record such remarks as it thinks material respecting the demeanour of any witness while under examination.

13. Memorandum of evidence in un-appealable cases. In cases in which an appeal is not allowed, it shall not be necessary to take down the evidence of the witnesses in writing at length ; but the Judge, as the examination of each witness proceeds, shall make a memorandum of the substance of what he deposes, and such memorandum shall be written and signed by the Judge and shall form part of the record.

14. Judge unable to make such memorandum to record reasons of his inability.— (1) Where the Judge is unable to make a memorandum as required by this Order, he shall cause the reason of such inability to be recorded, and shall cause the memorandum to be made in writing from his dictation in open Court.

(2) Every memorandum so made shall form part of the record.

15. Power to deal with evidence taken before another Judge.— (1) Where a Judge is prevented by death, transfer or other cause from concluding the trial of a suit, his successor may deal with any evidence or memorandum taken down or made under the foregoing rules as if such evidence or memorandum had been taken down or made by him or under his direction under the said rules and may proceed with the suit from the stage at which his predecessor left it.

(2) The provisions of sub-rule (1) shall, so far as they are applicable, be deemed to apply to evidence taken in a suit transferred under section 24.

16. Power to examine witness immediately.— (1) Where a witness is about to leave the jurisdiction of the Court, or other sufficient cause is shown to the satisfaction of the Court why his evidence should be taken immediately, the Court may, upon the application of any party or of the witness, at any time after the institution of the suit, take the evidence of such witness in manner hereinbefore provided.

(2) Where such evidence is not taken forthwith and in the presence of the parties, such notice as the Court thinks sufficient, of the day fixed for the examination, shall be given to the parties.

(3) The evidence so taken shall be read over to the witness, and, if he admits it to be correct, shall be signed by him, and the Judge shall, if necessary, correct the same, and shall sign it, and it may then be read at any hearing of the suit.

17 Court may recall and examine witness. The Court may at any stage of a suit recall any witness who has been examined and may (subject to the law of evidence for the time being in force) put such questions to him as the Court thinks fit.

18 Power of Court to inspect. The Court may at any stage of a suit inspect any property or thing concerning which any question may arise.

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ORDER XIX

AFFIDAVITS

1. Power to order any point to be proved by affidavit. Any Court may at any time for sufficient reason order that any particular fact or facts may be proved by affidavit, or that the affidavit of any witness may be read at the hearing, on such conditions as the Court thinks reasonable:

Provided that where it appears to the Court that either party *bona fide* desires the production of a witness for cross-examination, and that such witness can be produced, and order shall not be made authorizing the evidence of such witness to be given by affidavit.

2. Power to order attendance of deponent for cross examination.— (1) Upon any application evidence may be given by affidavit, but the Court may, at the instance of either party, order the attendance for cross-examination of the deponent.

(2) Such attendance shall be in Court, unless the deponent is exempted from personal appearance in Court, or the Court otherwise directs.

3. Matters to which affidavit shall be confined.— (1) Affidavits shall be confined to such facts as the deponent is able of his own knowledge to prove, except on interlocutory applications, on which statements of his belief may be admitted : Provided that the grounds thereof are stated.

(2) The cost of every affidavit which shall unnecessarily set forth matter of hearsay or argumentative matter, or copies of or extracts from documents, shall (unless the Court otherwise directs) be paid by the party filing the same.

ORDER XX

JUDGMENT AND DECREE

[1]**[1. Judgment when pronounced.**— (1) On completion of evidence, the Court shall fix a date, not exceeding fifteen days, for hearing of arguments of parties.

(2) The Court shall, after the case has been heard, pronounce judgment in open Court, either at once or on some future day not exceeding thirty days, for which due notice shall be given to the parties or their advocates.]

2. Power to pronounce judgment written by judge's predecessor. A Judge may pronounce a judgment written but not pronounced by his predecessor.

3. Judgment to be signed. The judgment shall be dated and signed by the Judge in open Court at the time of pronouncing it and, when once signed, shall not afterwards be altered or added to, save as provided by section 152 or on review.

4. Judgment of Small Cause Courts.— (1) Judgments of a Court of Small Causes need not contain more than the points for determination and the decision thereon.

(2) Judgments of other Courts. Judgments of other Courts shall contain a concise statement of the case, the points for determination, the decision thereon, and the reasons for such decision.

5. Court to state its decision on each issue. In suits in which issues have been framed, the Court shall state its finding or decision, with the reasons therefore, upon each separate issue, unless the finding upon any one or more of the issues is sufficient for the decision of the suit.

6. Contents of decree.— (1) The decree shall agree with the judgment ; it shall contain the number of the suit, the names and descriptions of the parties, and particulars of the claim, and shall specify clearly the relief granted or other determination of the suit.

(2) The decree shall also state the amount of costs incurred in the suit, and by whom or out of what property and in what proportions such costs are to be paid.

(3) The Court may direct that the costs payable to one party by the other shall be set-off against any sum which is admitted or found to be due from the former to the latter.

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[1]Subs. by Act XIV of 1994, s.11.

7. Date of decree. The decree shall bear date the day on which the judgment was pronounced, and, when the Judge has satisfied himself that the decree, has been drawn up in accordance with the judgment, he shall sign the decree.

8. Procedure where Judge has vacated office before signing decree. Where a Judge has vacated office after pronouncing judgment but without signing the decree a decree drawn up in accordance with such judgment may be signed by his successor or, if the Court has ceased to exist, by the Judge of any Court to which such Court was subordinate.

9. Decree for recovery of immovable property. Where the subject-mater of the suit is immovable property, the decree shall contain a description of such property sufficient to identify the same, and where such property can be identified by boundaries or by numbers in a record of settlement or survey, the decree shall specify such boundaries or numbers.

10. Decree for delivery of movable property. Where the suit is for moveable property, and the decree is for the delivery of such property, the decree shall also state the amount of money to be paid as an alternative if delivery cannot be had.

11. Decree may direct payment by installments.— (1) Where and in so far as a decree is for the payment of money, the Court may for any sufficient reason at the time of passing the decree order that payment of the amount decreed shall be postponed or shall be made by installments, with or without interest, notwithstanding anything contained in the contract under which the money is payable.

(2) Order, after decree, for payment by instalments. After the passing of any such decree the Court may, on the application of the judgment-debtor and with the consent of the decree-holders, order that payment of the amount decreed shall be postponed or shall be made by installments on such terms as to the payment of interest, the attachment of the property of the judgment-debtor, or the taking of security from him, or otherwise, as it thinks fit.

12. Decree for possession and mesne profits.— (1) Where a suit is for the recovery of possession of immovable property and for rent or mesne profits, the Court may pass a decree—

(a) For the possession of the property;

(b) For the rent or mesne profits which have accrued on the property during a period prior to the institution of the suit or directing an inquiry as to such rent or mesne profits;

(c) Directing an inquiry as to rent or mesne profits from the institution of the suit until—

(i) the delivery of possession to the decree-holder;

(ii) the relinquishment of possession by the judgment-debtor with notice to the decree- holder through the Court; or

(iii) the expiration of three years from the date of the decree, whichever event first occurs.

(2) Where an inquiry is directed under clause(b) or clause (c), a final decree in respect of the rent or mesne profits shall be passed in accordance with the result of such inquiry.

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13. Decree in administration suit.— (1) Where a suit is for an account of any property and for its due administration under the decree of the Court, the Court shall, before passing the final decree, pass a preliminary decree, ordering such accounts and inquiries to be taken and made, and giving such other directions as it thinks fit.

(2) In the administration by the Court of the property of any deceased person, if such property proves to be insufficient for the payment in full of his debts and liabilities, the same rules shall be observed as to the respective rights of secured and unsecured creditors and as to debts and liabilities provable, and as to the valuation of annuities and future and contingent liabilities respectively, as may be in force for the time being, within the local limits of the Court in which the administration suit is pending with respect to the estates of persons adjudged or declared insolvent; and all persons who in any such case would be entitled to be paid out of such property, may come in under the preliminary decree, and make such claims against the same as they may respectively be entitled to by virtue of this Code.

14. Decree in pre-emption suit.— (1) Where the Court decrees a claim to pre-emption in respect of a particular sale of property and the purchase-money has not been paid into Court, the decree shall—

(a) specify a day on or before which the purchase-money shall be so paid, and

(b) direct that on payment into Court of such purchase-money, together with the costs (if any) decreed against the plaintiff, on or before the day referred to in clause (a), the defendant shall deliver possession of the property to the plaintiff, whose title thereto shall be deemed to have accrued from the date of such payment, but that, if the purchase-money and the costs (if any) are not so paid, the suit shall be dismissed with costs

(2) Where the Court has adjudicated upon rival claims to pre-emption, the decree shall direct,—

(a) if and in so far as the claims decreed are equal in degree, that the claim of each pre-emptor complying with the provisions of sub-rule (1) shall take effect in respect of a proportionate share of the property including any proportionate share in respect of which the claim of any pre-emptor failing to comply with the said provisions would, but for such default, have taken effect ; and

(b) if and in so far as the claims decreed are different in degree, that the claim of the inferior pre-emptor shall not take effect unless and until the superior pre-emptor has failed to comply with the said provisions.

15. Decree in suit for dissolution of partnership. Where a suit is for the dissolution of a partnership, or the taking of partnership accounts, the Court, before passing a final decree, may pass as preliminary decree declaring the proportionate shares of the parties, fixing the day on which the partnership shall stand dissolved or be deemed to have been dissolved, and directing such accounts to be taken, and other acts to be done, as it thinks fit.

16. Decree in suits for account between principal and agent. In a suit for an account of pecuniary transactions between a principal and an agent, and in any other suit not herein-before provided for, where it is necessary, in order to ascertain the amount of money due to or from any party, that an account should be taken, the Court shall, before passing its final decree, pass a preliminary decree directing such accounts to be taken as it thinks fit.

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17. Special directions as to accounts. The Court may either by the decree directing an account to be taken or by any subsequent order give special directions with regard to the mode in which the account is to be taken or vouched and in particular may direct that in taking the account the books of account in which the accounts in question have been kept shall be taken as *prima facie* evidence of the truth of the matters therein contained with liberty to the parties interested to take such objection thereto as they may be advised.

18. Decree in suit for partition of property or separate possession of a share therein. Where the Court passes a decree for the partition of property or for the separate possession of a share therein, then,—

(1) if and in so far as the decree relates to an estate assessed to the payment of revenue to the Government, the decree shall declare the rights of the several parties interested in the property, but shall direct such partition or separation to be made by the Collector, or any gazetted subordinate of the Collector deputed by him in this behalf, in accordance with such declaration and with the provisions of section 54;

(2) if and in so far as such decree relates to any other immoveable property or to moveable property, the Court may, if partition or separation cannot be conveniently made without further inquiry, pass a preliminary decree declaring the rights of the several parties interested in the property and giving such further directions as may be required.

19. Decree when set-off is allowed.— (1) Where the defendant has been allowed a set-off against the claim of the plaintiff, the decree shall state what amount is due to the plaintiff and what amount is due to the defendant, and shall be for the recovery of any sum which appears to be due to either party.

(2) Appeal from decree relating to set-off. Any decree passed in a suit in which a set-off is claimed shall be subject to the same provisions in respect of appeal to which it would have been subject if no set-off had been claimed.

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(3) The provisions of this rule shall apply whether the set-off is admissible under rule 6 of Order VIII or otherwise.

20. Certified copies of the judgment and decree to be furnished. Certified copies of the judgment and decree shall be furnished to the parties on application to the Court, and at their expense.

ORDER XXI

EXECUTION OF DECREES AND ORDERS

Payment under Decree

1. Modes of paying money under decree.— (1) All money payable under a decree shall be paid as follows, namely:—

(a) into the Court whose duty it is to execute the decree; or

(b) out of Court to the decree-holder [1][through a bank or by postal money order or evidence by writing signed by the decree- holder or his authorized agent] ; or

(c) otherwise as the Court which made the decree directs.

(2) Where any payment is made under clause (a) of sub-rule (1), notice of such payment shall be given to the decree-holder.

2. Payment out of Court to decree holder.—(1) Where any money payable under a decree of any kind is paid out of Court, or the decree is otherwise adjusted in whole or in part to the satisfaction of the decree-holder, the decree-holder shall certify such payment or adjustment to the Court whose duty it is to execute the decree, and the Court shall record the same accordingly.

(2) The judgment-debtor also may inform the Court of such payment or adjustment, and apply to the Court to issue a notice to the decree-holder to show cause, on a day to be fixed by the Court, why such payment or adjustment should not be recorded as certified; and if, after service of such notice, the decree-holder fails to show cause why the payment or adjustment should not be recorded as certified, the Court shall record the same accordingly.

[2][(3) Any payment not made in the manner provided in rule 1 or any adjustment not made in writing shall not be recognized by the Court executing the decree.]

Courts executing Decrees

3. Lands situate in more than one jurisdiction. Where immoveable property forms one estate or tenure situate within the local limits of the jurisdiction of two or more Courts, any one of such Courts may attach and sell the entire estate or tenure.

4. [*Transfer to Court of Small Causes.*] *Omitted by the A.O., 1949.*

5. Mode of transfer. Where the Court to which a decree is to be sent for execution is situate within the same district as the Court which passed such decree, such Court shall send the same directly to the former Courts. But, where the Court to which the decree is to be sent for execution is situate in a different district, the Court which passed it shall send it to the District Court of the district in which the decree is to be executed.

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6. Procedure where Court desires that its own decree shall be executed by another Court. The Court sending a decree for execution shall send—

(a) a copy of the decree;

(b) a certificate setting forth that satisfaction of the decree has not been obtained by execution within the jurisdiction of the Court by which it was passed, or, where the decree has been executed in part, the extent to which satisfaction has been obtained and what part of the decree remains unsatisfied; and

(c) a copy of any order for the execution of the decree, or, if no such order has been made, a certificate to that effect.

[1]Ins. by the Law Reforms Ordinance, 1972 (12 of 1972), S.2 and Sch.
[2]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch., for the original sub-rule (3).

7. Court receiving copies of decree, etc., to file same without proof. The Court to which a decree is so sent shall cause such copies and certificates to be filed, without any further proof of the decree or order for execution, or of the copies thereof, unless the Court, for any special reasons to be recorded under the hand of the Judge, requires such proof.

8. Execution of decree or order by Court to which it is sent. Where such copies are so filed, the decree or order may, if the Court to which it is sent is the District Court, be executed by such Court or be transferred for execution to any subordinate Court of competent jurisdiction.

9. Execution by High Court of decree transferred by other Court. Where the Court to which the decree is sent for execution is a High Court, the decree shall be executed by such Court in the same manner as if it had been passed by such Court in the exercise of its ordinary original civil jurisdiction.

Application for Execution

10. Application for execution. Where the holder of a decree desires to execute it, he shall apply to the Court which passed the decree or to the officer (if any) appointed in this behalf, or if the decree has been sent under the provisions hereinbefore contained to another Court then to such Court or to the proper officer thereof.

11. Oral application.—(1) Where a decree is for the payment of money the Court may, on he oral application of the decree-holder at the time of the passing of the decree, order immediate execution thereof by the arrest of the judgment-debtor, prior to the preparation of a warrant if he is within the precincts of the Court.

(2) Written application. Save as otherwise provided by sub-rule (1), every application for the execution of a decree shall be in writing, signed and verified by the applicant or by some other person proved to the satisfaction of the Court to be acquainted with the facts of the case, and shall contain in a tabular form the following particulars, namely:—

(a) the number of the suit ;

(b) the names of the parties ;

(c) the date of the decree ;

(d) whether any appeal has been preferred from the decree ;

(e) whether any, and (if any), what, payment or other adjustment of the matter in controversy has been made between the parties subsequently to the decree ;

(f) whether any, and (if any) what, previous applications have been made for the execution of the decree, the dates of such applications and their results ;

(g) the amount with interest (if any) due upon the decree, or other relief granted thereby, together with particulars of any cross-decree, whether passed before or after the date of the decree sought to be executed ;

(h) the amount of the costs (if any) awarded ;

(i) the name of the person against whom execution of the decree is sought ; and

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(j) the mode in which the assistance of the Court is required, whether—

(i) by the delivery of any property specifically decreed ;

(ii) by the attachment and sale, or by the sale without attachment, of any property ;

(iii) by the arrest and detention in prison of any person ;

(iv) by the appointment of a receiver ;

(v) otherwise, as the nature of the relief granted may require.

(3) The Court to which an application is made under sub-rule (2) may require the applicant to produce a certified copy of the decree.

12. Application for attachment of moveable property not in judgment-debtor's possession. Where an application is made for the attachment of any movable property belonging to a judgment- debtor but not in his possession, the decree- holder shall annex to the application an inventory of the property to be attached, containing a reasonably accurate description of the same.

13. Application for attachment of immoveable property to contain particulars. Where an application is made for the attachment of any immoveable property belonging to a judgment-debtor, it shall contain at the foot—

(a) a description of such property sufficient to identify the same and, in case such property can be identified by boundaries or numbers in a record of settlement or survey, a specification of such boundaries or numbers ; and

(b) a specification of the judgment-debtor's share or interest in such property to the best of the belief of the applicant, and so far as he has been able to ascertain the same.

14. Power to require certified extract from Collector`s register in certain cases. Where an application is made for the attachment of any land which is registered in the office of the Collector, the Court may require the applicant to produce a certified extract from the register of such office, specifying the persons registered as proprietors of, or as possessing any transferable interest in, the land or its revenue, or as liable to pay revenue for the land and the shares of the registered proprietors.

15. Application for execution by joint decree holder.—(1) Where a decree has been passed jointly in favour of more persons than one, any one or more of such persons may, unless the decree imposes any condition to the contrary, apply for the execution of the whole decree for the benefit of them all, or, where any of them has died, for the benefit of the survivors and the legal representatives of the deceased.

(2) Where the Court sees sufficient cause for allowing the decree to be executed on an application made under this rule, it shall make such order as it deems necessary for protecting the interests of the persons who have not joined in the application.

16. Application for execution by transferee of decree. Where a decree or, if a decree has been passed jointly in favour of two or more persons, the interest of any decree-holder in the decree is transferred by assignment in writing or by operation of law, the transferee may apply for execution of the decree to the Court which passed it ; and the decree may be executed in the same manner and

subject to the same conditions as if the application were made by such decree-holder:

Provided that, where the decree, or such interest as aforesaid, has been transferred by assignment, notice of such application shall be given to the transferor and the judgment-debtor, and the decree shall not be executed until the Court has heard their objections (if any) to its execution:

Provided also that, where a decree for the payment of money against two or more persons has been transferred to one of them, it shall not be executed against the others.

17. Procedure on receiving application for execution of decree.— (1) On receiving an application for the execution of a decree as provided by rule 11, sub-rule(2), the Court shall ascertain whether such of the requirements of rules 11 to 14 as may be applicable to the case have been complied with ; and, if they have not been complied with, the Court may reject the application, or may allow the defect to be remedied then and there or within a time to be fixed by it.

(2) Where an application is amended under the provisions of sub-rule (1), it shall be deemed to have been an application in accordance with law and presented on the date when it was first presented.

(3) Every amendment made under this rule shall be signed or initiated by the Judge.

(4) When the application is admitted, the Court shall enter in the proper register a note of the application and the date on which it was made, and shall, subject to the provisions hereinafter contained, order execution of the decree according to the nature of the application:

Provided that, in the case of decree for the payment of money, the value of the property attached shall, as nearly as may be, correspond with the amount due under the decree.

18. Execution in case of cross-decrees.— (1) Where applications are made to a Court for the execution of cross-decrees in separate suits for the payment of two sums of money passed between the same parties and capable of execution at the same time such Court, then—

(a) if the two sums are equal, satisfaction shall be entered upon both decrees; and

(b) if the two sums are unequal, execution may be taken out only by the holder of the decree for the larger sum and for so much only as remains after deducting the smaller sum, and satisfaction for the smaller sum shall be entered on the decree for the larger sum as well as satisfaction of the decree for the smaller sum.

(2) This rule shall be deemed to apply where either party is an assignee of one of the decrees and as well in respect of judgment-debts due by the original assignor as in respect of judgment-debts due by the assignee himself.

(3) This rule shall not be deemed to apply unless—

(a) the decree-holder in one of the suits in which the decrees have been made is the judgment- debtor in the other and each party fills the same character in both suits; and

(b) the sums due under the decree are definite.

(4) The holder of a decree passed against several persons jointly and severally may treat it as a cross-decree in relation to a decree passed against him singly in favour of one or more of such persons.

Illustrations

(a) A holds a decree against B for Rs1,000. B holds a decree against A for the payment of Rs.1,000 in case A fails to deliver certain goods at a future day. B cannot treat his decree as a cross-decree under this rule.

(b) A and B, co-plaintiffs, obtain a decree for Rs.1,000 against C, and C obtains a decree for Rs.1,000 against B. C cannot treat his decree as a cross-decrees under this rule.

(c) A obtains a decree against B for Rs.1,000. C who is a trustee for B, obtains a decree on behalf of B against A for Rs.1, 000. B cannot treat C's decree as a cross-decree under this rule.

(d) A, B, C, D, and E are jointly and severally liable for Rs.1,000 under a decree obtained by F. A obtains a decree for Rs.100 against F singly and applies for execution to the Court in which the joint-decree is being executed, F may treat his joint-decree as a cross-decree under this rule.

19. Execution in case of cross-claims under same decree. Where application is made to a Court for the execution of a decree under which two parties are entitled to recover sums of money from each other, then,—

(a) if the two sums are equal, satisfaction for both shall be entered upon the decree; and

(b) if the two sums are unequal, execution may be taken out only by the party entitled to the larger sum and for so much only as remains after deducting the smaller sum, and satisfaction for the smaller sum shall be entered upon the decree.

20. Cross-decrees and cross-claims in mortgage suits. The provisions contained in rules 18 and 19 shall apply to decrees for sale in enforcement of a mortgage or charge.

21. Simultaneous execution. The Court may, in its discretion, refuse execution at the same time against the person and property of the judgment-debtor.

22. Notice to show cause against execution in certain cases.— (1) Where an application for execution is made—

(a) more than one year after the date of the decree, or

(b) against the legal representative of a party to the decree,

[1][or where an application is made for execution of a decree filed under the provisions of section 44A,] the Court executing the decree shall issue a notice to the person against whom execution is applied for requiring him to show cause, on a date to be fixed, why the decree should not be executed against him:

Provided that no such notice shall be necessary in consequence of more than one year having elapsed between the date of the decree and the application for execution if the application is made within one year from the date of the last order against the party against whom execution is applied for,

[1]Ins. by the Code of Civil Procedure (Amdt.) Act, 1937 (8 of 1937), section 3.

made on any previous application for execution, or in consequence of the application being made against the legal representative of the judgment-debtor, if upon a previous application for execution against the same person the Court has ordered execution to issue against him.

(2) Nothing in the foregoing sub-rule shall be deemed to preclude the Court from issuing any process in execution of a decree without issuing the notice thereby prescribed, if, for reasons to be recorded, it considers that the issue of such notice would cause unreasonable delay or would defeat the ends of justice.

23. Procedure after issue of notice.— (1) Where the person to whom notice is issued under the last preceding rule does not appear or does not show cause to the satisfaction of the Court why the decree should not be executed, the Court shall order the decree to be executed.

(2) Where such person offers any objection to the execution of the decree, the Court shall consider such objection and make such order as it thinks fit.

[1][Objection to Execution

23-A. Deposit of decretal amount, etc. An objection by the judgment-debtor to the execution of a decree shall not be considered by the Court unless—

(a) in the case of a decree for the payment of money, he either deposits the decretal amount in Court or furnishes security for its payment; and

(b) in the case of any other decree, he furnishes security for the due performance of the decree.].

Process for Execution

24. Process for Execution.— (1) When the preliminary measures (if any) required by the foregoing rule have been taken, the Court shall, unless it sees cause to the contrary, issue its process for the execution of the decree.

(2) Every such process shall bear date the day on which it is issued, and shall be signed by the Judge or such officer as the Court may appoint in this behalf, and shall be sealed with the seal of the Court and delivered to the proper officer to be executed.

(3) In every such process a day shall be specified on or before which it shall be executed.

25. Endorsement on process.— (1) The officer entrusted with the execution of the process shall endorse thereon the day on, and the manner in, which it was executed, and, if the latest day specified in the process for the return thereof has been exceeded, the reason of the delay, or, if it was not executed, the reason why it was not executed, and shall return the process with such endorsement to the Court.

(2) Where the endorsement is to the effect that such officer is unable to execute the process, the Court shall examine him touching his alleged inability, and may, if it thinks fit, summon and examine witnesses as to such inability, and shall record the result.

[1]Rule 23A and heading ins. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch.

Stay of Execution

26. When Court may stay execution.— (1) The Court to which a decree has been sent for execution shall, upon sufficient cause being shown, stay the execution of such decree for a reasonable time, to enable the judgment-debtor to apply to the Court by which the decree was passed, or to any Court having appellate jurisdiction in respect of the decree or the execution thereof, for an order to stay execution, or for any other order relating to the decree or execution which might have been made by such Court of first instance or appellate Court if execution had been issued thereby, or if application for execution had been made thereto.

(2) Where the property or person of the judgment-debtor has been seized under an execution the Court which issued the execution may order the restitution of such property or the discharge of such person pending the result of the application.

[1][* * * * * * *]

27. Liability of judgment debtor or discharged. No order of restitution or discharge under rule 26 shall prevent the property or person of a judgment-debtor from being retaken in execution of the decree sent for execution.

28. Order of Court which passed decree or of appellate Court to be binding upon Court applied to. Any order of the Court by which the decree was passed, or of such Court of appeal as aforesaid, in relation to the execution of such decree, shall be binding upon the Court to which the decree was sent for execution.

29. Stay of execution pending suit between decree-holder and judgment-debtor. Where a suit is pending in any Court against the holder of a decree of such Court, on the part of the person against whom the decree was passed, the Court may, on such terms as to security or otherwise, as it thinks fit, stay execution of the decree until the pending suit has been decided.

Mode of Execution

30. Decree for payment of money. Every decree for the payment of money, including a decree for the payment of money as the alternative to some other relief, may be executed by the detention in [2][* * *] prison of the judgment-debtor, or by the attachment and sale of his property, or by both.

31. Decree for specific moveable property.— (1) Where the decree is for any specific moveable, or for any share in a specific moveable, it may be executed by the seizure, if practicable, of the moveable or share, and by the delivery thereof to the party to whom it has been adjudged, or to such person as he appoints to receive delivery on his behalf, or by the detention in [2][* * *] prison of the judgment-debtor, or by the attachment of his property, or by both.

(2) Where any attachment under sub-rule (1) has remained in force for six months, if the judgment debtor has not obeyed the decree and the decree holder has applied to have the attached property sold, such property may be sold, and out of the proceeds the Court may award to the decree-holder, in cases where any amount has been fixed by the decree to be paid as an alternative to delivery of moveable property, such amount, and, in other cases, such compensation as it thinks fit, and shall pay the balance (if any) to the judgment debtor on his application.

[1]Sub-rule (3) omitted by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch.
[2]Omitted by Act XIV of 1994, s.11.

(3) Where the judgment-debtor has obeyed the decree and paid all costs of executing the same which he is bound to pay, or where, at the end of six months from the date of the attachment, no application to have the property sold has been made, or, if made, has been refused, the attachment shall cease.

32. Decree for specific performance for restitution of conjugal rights, or for an injuction.— (1) Where the party against whom a decree for the specific performance of a contract, or for restitution of conjugal rights, or for an injunction, has been passed, has had an opportunity of obeying the decree and has willfully failed to obey it, the decree may be enforced [1][in the case of a decree for restitution of conjugal rights by the attachment of his property or, in the case of a decree for the specific performance of a contract or for an injunction] by his detention in [2][* * *] prison, or by the attachment of his property, or by both.

(2) Where the party against whom a decree for specific performance or for an injunction has been passed is a corporation, the decree may be enforced by the attachment of the property of the corporation, or, with the leave of the Court, by the detention in [2][* * *] prison of the directors or other principal officers thereof, or by both attachment and detention.

(3) Where any attachment under sub-rule (1) or sub-rule (2) has remained in force for one year, if the judgment-debtor has not obeyed the decree and the decree-holder has applied to have the attached property sold, such property may be sold ; and out of the proceeds the Court may award to the decree-holder such compensation as it thinks fit, and shall pay the balance (if any) to the judgment-debtor on his application.

(4) Where the judgment debtor has obeyed the decree and paid all costs of executing the same which he is bound to pay, or where, at the end of one year from the date of the attachment, no application to have the property sold has been made, or if made has been refused, the attachment shall cease.

(5) Where a decree for the specific performance of a contract or for an injunction has not been obeyed, the Court may, in lieu of or in addition to all or any of the processes aforesaid, direct that the act required to be done may be done so far as practicable by the decree-holder or some other person appointed by the Court, at the cost of the judgment-debtor and upon the act being done the expenses incurred may be ascertained in such manner as the Court may direct and may be recovered as if they were included in the decree.

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Illustration

A, a person of little substance, erects a building which renders uninhabitable a family mansion belonging to B. A, in-spite of his detention in prison and the attachment of his property, declines to obey a decree obtained against him by B and directing him to remove the building. The Court is of opinion that no sum realizable by the sale of A's property would adequately compensate B for the depreciation in the value of his mansion. B may apply to the Court to remove the building and may recover the cost of such removal from A in the execution-proceedings.

[1]Ins. by the Code of Civil Procedure (Amdt.) Act, 1923 (29 of 1923), s.2.
[2]Omitted by Act. XIV of 1994, s.11.

33. Discretion of Court in executing decrees for restitution of conjugal rights.— (1) Notwithstanding anything in rule 32, the Court, either at the time of passing a decree [1][against a husband] for the restitution of conjugal rights or at any time afterwards, may order that the decree [2][shall be executed in the manner provided in this rule].

(2) Where the Court has made an order under sub-rule (1) [3][* * *], it may order that, in the event of the decree not being obeyed within such period as may be fixed in this behalf, the judgment-debtor shall make to the decree-holder such periodical payments as may be just, and, if it thinks fit, require that the judgment-debtor shall, to its satisfaction, secure to the decree-holder such periodical payments.

(3) The Court may from time to time vary or modify any order made under sub-rule (2) for the periodical payment of money, either by altering the times of payment or by increasing or diminishing the amount, or may temporarily suspend the same as to the whole or any part of the money so ordered to be paid, and again revive the same, either wholly or in part as it may think just.

(4) Any money ordered to be paid under this rule may be recovered as though it were payable under a decree for the payment of money.

34. Decree for execution of document, or endorsement of negotiable instruments.— (1) Where a decree is for the execution of a document or for the endorsement of a negotiable instrument and the judgment-debtor neglects or refuses to obey the decree, the decree-holder may prepare a draft of the document or endorsement in accordance with the terms of the decree and deliver the same to the Court.

(2) The Court shall thereupon cause the draft to be served on the judgment-debtor together with a notice requiring his objections (if any) to be made within such time as the Court fixes in this behalf.

(3) Where the judgment-debtor objects to the draft, his objections shall be stated in writing within such time, and the Court shall make such order approving or altering the draft, as it thinks fit.

(4) The decree-holder shall deliver to the Court a copy of the draft with such alterations (if any) as the Court may have directed upon the proper stamp-paper if a stamp is required by the law for the time being in force; and the Judge or such officer as may be appointed in this behalf shall execute the documents so delivered.

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(5) The execution of a document or the endorsement of a negotiable instrument under this rule may be in the following form, namely:—

"C.D., Judge of the Court of
(or as the case may be), for A. B., in a suit by E.F. against A.B.",

and shall have the same effect as the execution of the document or the endorsement of the negotiable instrument by the party ordered to execute or endorse the same.

(6) The Court, or such officer as it may appoint in this behalf, shall cause the document to be registered if its registration is required by the law for the time being in force or the decree-holder desires to have it registered, and may make such order as it thinks fit as to the payment of the expenses of the registration.

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[1]Ins. by the Code of Civil Procedure (Amdt.) Act, 1923 (29 of 1923).
[2]Subs. *ibid*., for "shall not be executed by detention in prison".
[3]The words "and the decree-holder is the wife" omitted, by the Code of Civil Procedure (Amdt.) Act, 1923 (29 of 1923).

35. Decree for immoveable property.— (1) Where a decree is for the delivery of any immoveable property, possession thereof shall be delivered to the party to whom it has been adjudged, or to such person as he may appoint to receive delivery on his behalf, and, if necessary, by removing any person bound by the decree who refuses to vacate the property.

(2) Where a decree is for the joint possession of immoveable property, such possession shall be delivered by affixing a copy of the warrant in some conspicuous place on the property and proclaiming by beat of drum, or other customary mode, at some convenient place, the substance of the decree.

(3) Where possession of any building or enclosure is to be delivered and the person in possession, being bound by the decree, does no afford free access, the Court, through its officers, may, after giving reasonable warning and facility to any woman not appearing in public according to the customs of the country to withdraw, remove or open any lock or bolt or break open any door or do any other act necessary for putting the decree-holder in possession.

36. Decree for delivery of immoveable property when in occupancy of tenant. Where a decree is for the delivery of any immoveable property in the occupancy of a tenant or other person entitled to occupy the same and not bound by the decree to relinquish such occupancy, the Court shall order delivery to be made by affixing a copy of the warrant in some conspicuous place on the property, and proclaiming to the occupant by beat of drum or other customary mode, at some convenient place, the substance of the decree in regard to the property.

Arrest and Detention in* [1]*[* *]* *Prison

37. Discretionary power to permit judgment-debtor to show cause against detention in prison.— (1) Notwithstanding anything in these rules, where an application is for the execution of a decree for the payment of money by the arrest and detention in [1][* *] prison of a judgment-debtor who is liable to be arrested in pursuance of the application, the Court [2][shall], instead of issuing a warrant for his arrest, issue a notice calling upon him to appear before the Court on a day to be specified in the notice and show cause why he should not be [1][detained in] prison :

[3][Provided that such notice shall not be necessary if the Court is satisfied, by affidavit, or otherwise, that, with the object or effect of delaying the execution of the decree, the judgment-debtor is likely to abscond or leave the local limits of the jurisdiction of the Court.]

(2) Where appearance is not made in obedience to the notice, the Court shall, if the decree-holder so requires, issue a warrant for the arrest of the judgment-debtor.

38. Warrant for arrest to direct judgment-debtor to be brought up. Every warrant for the arrest of a judgment-debtor shall direct the officer entrusted with its execution to bring him before the Court with all convenient speed, unless the amount which he has been ordered to pay, together with the interest thereon and the cost (if any) to which he is liable, be sooner paid.

39. [1][* * * * * * *]

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[1]Omitted and Subs. by Act XIV of 1994, s.11
[2]Subs. by the Code of Civil Procedure (Amdt.) Act, 1936 (21 of 1936), s.3, for "may".
[3]Proviso ins. *ibid*.

[1]**[40. Proceedings on appearance of judgment-debtor in obedience to notice or after arrest**.—(1) When a judgment-debtor appears before the Court in obedience to a notice issued under rule 37, or is brought before the Court after being arrested in execution of a decree for the payment of money, the Court shall proceed to hear the decree-holder and take all such evidence as may be produced by him in support of his application for execution, and shall then give the judgment-debtor an opportunity of showing cause why he should not be [2][detained in] prison.

(2) Pending the conclusion of the inquiry under sub-rule (1) the Court may, in its discretion, order the judgment-debtor to be detained in the custody of an officer of the Court or release him on his furnishing security to the satisfaction of the Court for his appearance when required.

(3) Upon the conclusion of the inquiry under sub-rule (1) the Court may, subject to the provisions of section 51 and to the other provisions of this Code, make an order for the detention of the judgment-debtor in [2][* *] prison and shall in that event cause him to be arrested if he is not already under arrest:

Provided that in order to give the judgment-debtor an opportunity of satisfying the decree, the Court may, before making the order of detention, leave the judgment-debtor in the custody of an officer of the Court for a specified period not exceeding fifteen days or release him on his furnishing security to the satisfaction of the Court for his appearance at the expiration of the specified period if the decree be not sooner satisfied.

(4) A judgment-debtor released under this rule may be re-arrested.

(5) When the Court does not make an order of detention under sub-rule (3), it shall disallow the application and, if the judgment-debtor is under arrest, direct his release.]

Attachment of Property

41. Examination of judgment-debtor as to his property. Where a decree is for the payment of money the decree-holder may apply to the Court for an order that—

(a) the judgment-debtor, or

(b) in the case of a corporation, any officer thereof, or

(c) any other person,

be orally examined as to whether any or what debts are owing to the judgment-debtor and whether the judgment-debtor has any and what other property or means of satisfying the decree ; and the Court may make an order for the attendance and examination of such judgment-debtor, or officer or other person, and for the production of any books or documents.

42. Attachment in case of decree for rent or mesne profits or other matter, amount of which to be subsequently determined. Where a decree directs an inquiry as to rent or mesne profits or any other matter, the property of the judgment-debtor may, before the amount due from him has been ascertained, be attached, as in the case of an ordinary decree for the payment of money.

[1]Subs. by the Code of Civil Procedure (Amdt.) Act, 1936 (21 of 1936), s.4, for the original rule 40.
[2]Subs. and Omitted by Act XIV of 1994, s.11

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43. Attachment of moveable property other than agricultural produce, in possession of judgment-debtor. Where the property to be attached is movable property, other than agricultural produce, in the possession of the judgment-debtor, the attachment shall be made by actual seizure, and the attaching officer shall keep the property in his own custody or in the custody of one of his subordinates, and shall be responsible for the due custody thereof:

Provided that, when the property seized is subject to speedy and natural decay, or when the expense of keeping it in custody is likely to exceed its value, the attaching officer may sell it at once.

44. Attachment of agricultural produce. Where the property to be attached is agricultural produce, the attachment shall be made by affixing a copy of the warrant of attachment,—

(a) where such produce is a growing crop, on the land on which such crop has grown, or

(b) where such produce has been cut or gathered, on the threshing-floor or place for treading out grain or the like or fodder-stack on or in which it is deposited,

and another copy on the outer door or on some other conspicuous part of the house in which the judgment-debtor ordinarily resides or, with the leave of the Court, on the outer door or on some other conspicuous part of the house in which he carries on business or personally works for gain or in which he is known to have last resided or carried on business or personally worked for gain ; and the produce shall thereupon be deemed to have passed into the possession of the Court.

45. Provisions as to agricultural produce under attachment.— (1) Where agricultural produce is attached, the Court shall make such arrangements for the custody thereof as it may deem sufficient and, for the purpose of enabling the Court to make such arrangements, every application for the attachment of a growing crop shall specify the time at which it is likely to be fit to be cut or gathered.

(2) Subject to such conditions as may be imposed by the Court in this behalf either in the order of attachment or in any subsequent order, the judgment-debtor may tend, cut, gather and store the produce and to any other act necessary for maturing or preserving it; and if the judgment-debtor fails to do all or any of such acts, the decree-holder may, with the permission of the Court and subject to the like conditions, do all or any of them either by himself or by any person appointed by him in this behalf, and the costs incurred by the decree-holder shall be recoverable from the judgment-debtor as if they were included in, or formed part of, the decree.

(3) Agricultural produce attached as a growing crop shall not be deemed to have ceased to be under attachment or to require re-attachment merely because it has been severed from the soil.

(4) Where an order for the attachment of a growing crop has been made at a considerable time before the crop is likely to be fit to be cut or gathered, the Court may suspend the execution of the order for such time as it thinks fit, and may, in its discretion make a further order prohibiting the removal of the crop pending the execution of the order of attachment.

(5) A growing crop which from its nature does not admit of being stored shall not be attached under this rule at any time less than twenty days before the time at which it is likely to be fit to be cut or gathered.

46. Attachment of debt, share and other property not in possession of judgment debtor.— (1) In the case of—

(a) a debt not secured by a negotiable instrument,

(b) a share in the capital of a corporation,

(c) other moveable property not in the possession of the judgment-debtor, except property deposited in, or in the custody of, any Court,

the attachment shall be made by a written order prohibiting,—

(i) in the case of the debt, the creditor from recovering the debt and the debtor from making payment thereof until the further order of the Court;

(ii) in the case of the share, the person in whose name the share may be standing from transferring the same or receiving any dividend thereon;

(iii) in the case of the other moveable property except as aforesaid, the person in possession of the same from giving it over to the judgment-debtor.

(2) A copy of such order shall be affixed on some conspicuous part of the court-house and another copy shall be sent in the case of the debt, to the debtor, in the case of the share, to the proper officer of the corporation, and, in the case of the other movable property (except as aforesaid), to the person in possession of the same.

(3) A debtor prohibited under clause (i) of sub-rule (1) may pay the amount of his debt into Court, and such payment shall discharge him as effectually as payment to the party entitled to receive the same.

47. Attachment of share in moveables. Where the property to be attached consists of the share or interest of the judgment-debtor in moveable property belonging to him and another as co-owners, the attachment shall be made by a notice to the judgment-debtor prohibiting him from transferring the share or interest or charging it in any way.

48. Attachment of salary or allowances of public officer or servant of railway company or local authority.— (1) Where the property to be attached is the salary or allowance of a [1][servant of the State] or of a servant of a company or local authority, the Court, whether the judgment-debtor or the disbursing officer is or is not within the local limits of the Court's jurisdiction, may order that the amount shall, subject to the provisions of section 60, be withheld from such salary or allowances either in one payment or by monthly instalments as the Court may direct; and, upon notice of the order to such officer as [2][the appropriate Government may by notification in the official Gazette] appoint [3][in this behalf,—

(a) where such salary or allowances are to be disbursed within the local limits to which this Code for the time being extends, the officer or other person whose duty it is to disburse the same shall withhold and remit to the Court the amount due under the order, or the monthly installments, as the case may be;

[1]The original words "public officer" were first subs. by the Code of Civil Procedure (Amdt.) Act, 1943, (5 of 1943) s.3, and then amended by A.O. , 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*), to read as above.
[2]Subs. by the Repealing and Amending Act, 1942 (25 of 1942), s. 3 and Second Sch., for "the Central Governemnt or the Provincial Governemnt may by notification in their official Gazette" which had been subs., by A.O., 1937, for "the Govt. may by notification in the Gazette of India or in the local official Gazette, as the case may be."
[3]Subs. by the Code of Civil Procedure (Amdt.) Act, 1939 (26 of 1939), s.2, for certain words.

(b) where such salary or allowances are to be disbursed beyond the said limits, the officer or other person within those limits whose duty it is to instruct the disbursing authority regarding the amount of the salary or allowances to be disbursed shall remit to the Court the amount due under the order, or the monthly installments, as the case may be, and shall direct the disbursing authority to reduce the aggregate of the amounts from time to time be disbursed by the aggregate of the amounts from time to time remitted to the Court.]

(2) Where the attachable proportion of such salary or allowances is already being withheld and remitted to a Court in pursuance of a previous and unsatisfied order of attachment, the officer appointed by [1][the appropriate Government] in this behalf shall forthwith return the subsequent order to the Court issuing it with a full statement of all the particulars of the existing attachment.

(3) Every order made under this rule, unless it is returned in accordance with the provisions of sub- rule (2), shall, without further notice or other process, bind [2][the appropriate Government] or the railway company or local authority, as the case may be, while the judgment debtor is within the local limits to which this Code for the time being extends and while he is beyond those limits if he is in receipt of any salary or allowances payable out of [3][the revenues of the [4][Federal Government] or a Provincial Government] or the funds of a railway company carrying on business in any part of [5][Pakistan] or local authority in [5][Pakistan]; and [2][the appropriate Government] or the railway company or local authority, as the case may be, shall be liable for any sum paid in contravention of this rule.

[6][*Explanation*.— In this rule "appropriate Government" means—

(i) as respects any [7][person] in the service of the [4][Federal Government], or any servant [8]* * * of a cantonment authority or of the port authority of a major port, the [4][Federal Government] ;

[9][* * * * * * *]

(iii) as respects any other [10][Servant of the State] or a servant of any [11][*]railway or local authority, the Provincial Government.]

49. Attachment of partnership property.— (1) Save as otherwise provided by this rule, property belonging to a partnership shall not be attached or sold in execution of a decree other than a decree passed against the firm or against the partners in the firm as such.

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[1]Subs. by Act 25 of 1942, for "the Central or the Provincial Govt., as the case maybe" which were subs. by A.O., 1937, for "the Gvot.".
[2]Subs. by the Repealing and Amending Act, 1942 (25 of 1942), for "the Central Government or the Provincial Government" which was subs. by A.O., 1937, for "the Government".
[3]Subs. by A.O., 1961, Art. 2 and Sch. (*with effect from the 23rd March 1956*) for "His Majesty's [Pakistan Revenues]". The words in crotchets were subs. by A.O., 1949, for "Indian revenues".
[4]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federataion" which had been subs. by A.O., 1949, for "British India".
[6]Explanation added by Act 25 of 1942, s.3 and Second Sch.
[7]Subs. by the Code of Civil Procedure (Amdt.) Act, 1943 (5 of 1943) s.3, for "public officer".
[8]The words "of a* Railway or" omitted by A.O., 1964, Art. 2 and Sch. The asterisk denotes the omission of "Federal" by A.O., 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*).
[9]Cl. (ii) omitted by A.O., 1949.
[10]The original words "public officer" were first subs. by Act 5 of 1943, s.3 and then amended by A.O., 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*), to read as above.
[11]The word "other" omitted by A.O., 1964, Art. 2 and Sch.

(2) The Court may, on the application of the holder of a decree against a partner make an order charging the interest of such partner in the partnership property and profits with payment of the amount due under the decree, and may, by the same or a subsequent order, appoint a receiver of the share of such partner in the profits (whether already declared or accruing) and of any other money which may be coming to him in respect of the partnership, and direct accounts and inquiries and make an order for the sale of such interest or other orders as might have been directed or made if a charge had been made in favour of the decree-holder by such partner, or as the circumstances of the case may require.

(3) The other partner or partners shall be at liberty at any time to redeem the interest charged, or, in the case of a sale being directed, to purchase the same.

(4) Every application for an order under sub-rule (2) shall be served on the judgment-debtor and on his partners or such of them as are within[1][Pakistan].

(5) Every application made by any partner of the judgment-debtor under sub-rule (3) shall be served on the decree-holder and on the judgment-debtor, and on such of the other partners as do not join in the application and as are within [1][Pakistan].

(6) Service under sub-rule (4) or sub-rule (5) shall be deemed to be service on all the partners, and all orders made on such applications shall be similarly served.

50. Execution of decree against firm.— (1) Where a decree has been passed against a firm, execution may be granted—

(a) against any property of the partnership;

(b) against any person who has appeared in his own name under rule 6 or rule 7 of Order XXX or who has admitted on the pleadings that he is, or who has been adjudged to be, a partner ;

(c) against any person who has been individually served as a partner with a summons and has failed to appear:

Provided that nothing in this sub-rule shall be deemed to limit or otherwise affect the provisions of section 247 of the Contract Act, 1872 (IX of 1872).

(2) Where the decree-holder claims to be entitled to cause the decree to be executed against any person other than such a person as is referred to in sub-rule (1), clauses (b) and (c), as being a partner in the firm, he may apply to the Court which passed the decree for leave, and where the liability is not disputed, such Court may grant such leave, or, where such liability is disputed, may order that the liability of such person be tried and determined in any manner in which any issue in a suit may be tried and determined.

(3) Where the liability of any person has been tried and determined under sub-rule (2), the order made thereon shall have the same force and be subject to the same conditions as to appeal or otherwise as if it were a decree.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14 October, 1955*), for "the Province and the Capital of the Federation" which had been subs. by A.O, 1949, for "British India".

(4) Save as against any property of the partnerships, a decree against a firm shall not release, render liable or otherwise affect any partner therein unless he has been served with a summons to appear and answer.

51. Attachment of negotiable instruments. Where the property is a negotiable instrument not deposited in a Court, nor in the custody of a public officer, the attachment shall be made by actual seizure, and the instrument shall be brought into Court and held subject to further orders of the Court.

52. Attachment of property in custody of Court or public officer. Where the property to be attached is in the custody of any Court or public officer, the attachment shall be made by a notice to such Court or officer, requesting that such property, and any interest or dividend becoming payable thereon, may be held subject to the further orders of the Court from which the notice is issued:

Provided that, where such property is in the custody of a Court, any question of title or priority arising between the decree-holder, and any other person, not being the judgment-debtor; claiming to be interested in such property by virtue of any assignment, attachment or otherwise, shall be determined by such Court.

53. Attachment of decrees.— (1) Where the property to be attached is a decree, either for the payment of money or for sale in enforcement of a mortgage or charge, the attachment shall be made,—

(a) if the decrees were passed by the same Court, then by order of such Court, and

(b) if the decree sought to be attached was passed by another Court, then by the issue to such other Court of a notice by the Court which passed the decree sought to be executed, requesting such other Court to stay the execution of its decree unless and until—

(i) the Court which passed the decree sought to be executed cancels the notice, or

(ii) the holder of the decree sought to be executed or his judgment-debtor applies to the Court receiving such notice to execute its own decree.

(2) Where a Court makes an order under clause (a) of sub-rule (1), or receives an application under sub-head (ii) of clause (b) of the said sub-rule, it shall, on the application of the creditor who has attached the decree or his judgment-debtor, proceed to execute the attached decree and apply the net proceeds in satisfaction of the decree sought to be executed.

(3) The holder of a decree sought to be executed by the attachment of another decree of the nature specified in sub-rule (1) shall be deemed to be the representative of the holder of the attached decree and to be entitled to execute such attached decree in any manner lawful for the holder thereof.

(4) Where the property to be attached in the execution of a decree is a decree other than a decree of the nature referred to in sub-rule (1), the attachment shall be made, by a notice by the Court which passed the decree sought to be executed, to the holder of the decree sought to be attached, prohibiting him from transferring or charging the same in any way; and, where such decree has been passed by any other Court, also by sending to such other Court a notice to abstain from executing the decree sought to be attached until such notice is cancelled by the Court from which it was sent.

(5) The holder of a decree attached under this rule shall give the Court executing the decree such information and aid as may reasonably be required.

(6) On the application of the holder of a decree sought to be executed by the attachment of another decree, the Court making an order of attachment under this rule shall give notice of such order to the judgment-debtor bound by the decree attached; and no payment or adjustment of the attached decree made by the judgment-debtor in contravention of such order after receipt of notice thereof, either through the Court or otherwise, shall be recognized by any Court so long as the attachment remains in force.

54. Attachment of immoveable property.— (1) Where the property is immoveable, the attachment shall be made by an order prohibiting the judgment-debtor from transferring or charging the property in any way, and all persons from taking any benefit from such transfer or charge.

(2) The order shall be proclaimed at some place on or adjacent to such property by beat of drum or other customary mode, and a copy of the order shall be affixed on a conspicuous part of the property and then upon a conspicuous part of the court-house, and also, where the property is land paying revenue to the Government, in the office of the Collector of the district in which the land is situate.

55. Removal of attachment after satisfaction of decree. Where—

(a) the amount decreed with costs and all charges and expenses resulting from the attachment of any property are paid into Court, or

(b) satisfaction of the decree is otherwise made through the Court or certified to the Court, or

(c) the decree is set aside or reversed,

the attachment shall be deemed to be withdrawn, and, in the case of immovable property, the withdrawal shall, if the judgment-debtor so desires, be proclaimed at his expense, and a copy of the proclamation shall be affixed in the manner prescribed by the last preceding rule.

56. Order for payment of coin or currency notes to party entitled under decree. Where the property attached is current coin or currency notes, the court may, at any time during the continuance of the attachment, direct that such coin or notes, or a part thereof sufficient to satisfy the decree, be paid over to the party entitled under the decree to receive the same.

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57. Determination of attachment. Where any property has been attached in execution of a decree but by reason of the decree-holder's default the Court is unable to proceed further with the application for execution, it shall either dismiss the application or for any sufficient reason adjourn the proceedings to a future date. Upon the dismissal of such application the attachment shall cease.

Investigation of Claims and Objections

58. Investigation of claims to, and objections to attachment of, attached property.— (1) Where any claim is preferred to, or any objection is made to the attachment of, any property attached in execution of a decree on the ground that such property is not liable to such attachment, the Court shall proceed to investigate the claim or objection with the like power as regards the examination of the claimant or objector, and in all other respects, as if he was a party to the suit:

[1][Provided that no such investigation shall be made where it appears to the Court that the claim or objection (whether made before or after the sale) has been designedly or unnecessarily delayed, or was not made within a reasonable time or within one year of the date of the first attachment of the said property in the execution of the said decree, whichever is earlier, unless the claimant or objector—

(a) proves title acquired in good faith and for consideration subsequent to the date of the first attachment ;

(b) Proves that his predecessors-in-interest, whether their interest existed at the time of such attachment or was acquired thereafter, fraudulently omitted to make a claim or objection ; and

(c) impleads all such predecessors-in-interest, as parties.].

(2) Postponement of sale. Where the property to which the claim or objection applies has been advertised for sale, the Court ordering the sale may postpone it pending the investigation of the claim or objection.

[2]**[59. Evidence to be adduced by claimant.** The claimant or objector must adduce evidence to show that at the date of the attachment he had a title to, or right or interest in, the property attached.

60. Release of property from attachment. Where upon the said investigation the Court is satisfied that the claimant or objector had a title to, or right or interest in, the said property and the said property was not, by reason of such title, right or interest, wholly or partly liable to attachment, the Court shall make an order releasing the property, wholly, or, as the case may be, to such extent as it is not so liable, from attachment.

61. Continuance of attachment subject to claim of encumbrancer. Where the Court is satisfied that the property is subject to mortgage or charge in favour of some person, and thinks fit to continue the attachment, it may do so subject to such mortgage or charge.

62. Questions relating to rights, etc., of claimant in attached property to be decided by Court. All questions relating to the right, title or interest of the claimant or objector in the attached property shall be adjudicated upon and determined by the Court and no separate suit shall lie to establish such title, right or interest.].

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63. [*Saving of suits to establish right to attached property*.] *Omitted by the Law Reforms Ordinance, 1972 (XII of 1972), s.2 and Sch]*.

Sale Generally

64. Power to order property attached to be sold and proceeds to be paid to person entitled. Any Court executing a decree may order that any property attached by it and liable to sale, or such portion thereof as may seem necessary to satisfy the decree, shall be sold, and that the proceeds of such sale, or a sufficient portion thereof, shall be paid to the party entitled under the decree to receive the same.

65. Sales by whom conducted and how made. Save as otherwise prescribed, every sale in execution of a decree shall be conducted by an officer of the Court or by such other person as the Court may appoint in this behalf, and shall be made by public auction in manner prescribed.

[1]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch., for the original proviso.
[2]Subs. *ibid.* for the original rules 59-62.

66. Proclamation of sales by public auction.—(1) Where any property is ordered to be sold by public auction in execution of a decree, the Court shall cause a proclamation of the intended sale to be made in the language of such Court.

(2) Such proclamation shall be drawn up after notice to the decree-holder and the judgment-debtor and shall state the time and place of sale, and specify as fairly and accurately as possible—

(a) the property to be sold ;

(b) the revenue assessed upon the estate or part of the estate, where the property to be sold is an interest in an estate or in part of an estate paying revenue to the Government;

(c) any incumbrance to which the property is liable;

(d) the amount for the recovery of which the sale is ordered; and

(e) every other thing which the Court considers material for a purchaser to know in order to judge of the nature and value of the property.

(3) Every application for an order for sale under this rule shall be accompanied by a statement signed and verified in the manner hereinbefore prescribed for the signing and verification of pleadings and containing, so far as they are known to or can be ascertained by the person making the verification, the matters required by sub-rule (2) to be specified in the proclamation.

(4) For the purpose of ascertaining the matters to be specified in the proclamation, the Court may summon any person whom it thinks necessary to summon and may examine him in respect to any such matters and require him to produce any document in his possession or power relating thereto.

67. Mode of making proclamation.—(1) Every proclamation shall be made and published, as nearly as may be, in the manner prescribed by rule 54, sub-rule (2).

(2) Where the Court so directs, such proclamation shall also be published in the [1][official Gazette] or in a local newspaper, or in both, and the costs of such publication shall be deemed to be costs of the sale.

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(3) Where property is divided into lots for the purpose of being sold separately, it shall not be necessary to make a separate proclamation for each lot unless proper notice of the sale cannot, in the opinion of the Court, otherwise be given.

68. Time of sale. Save in the case of property of the kind described in the proviso to rule 43, no sale hereunder shall, without the consent in writing of the judgment-debtor, take place until after the expiration of at least thirty days in the case of immoveable property, and of at least fifteen days in the case of moveable property, calculated from the date on which the copy of the proclamation has been affixed on the court-house of the Judge ordering the sale.

69. Adjournment or stoppage of sale.—(1) The Court may, in its discretion, adjourn any sale hereunder to a specified day and hour, and the officer conducting any such sale may in his discretion adjourn the sale, recording his reasons for such adjournment:

[1]Subs. by A.O., 1937, for "local official Gazette".

Provided that, where the sale is made in, or within the precincts of, the court-house, no such adjournment shall be made without the leave of the Court.

(2) Where a sale is adjourned under sub-rule (1) for a longer period than seven days, a fresh proclamation under rule 67 shall be made, unless the judgment-debtor consents to waive it.

(3) Every sale shall be stopped if, before the lot is knocked down, the debt and costs (including the costs of the sale) are tendered to the officer conducting the sale, or proof is given to his satisfaction that the amount of such debt and costs has been paid into the Court which ordered the sale.

70. Saving of certain sales. Nothing in rules 66 to 69 shall be deemed to apply to any case in which the execution of a decree has been transferred to the Collector.

71. Defaulting purchaser answerable for loss on re-sale. Any deficiency of price which may happen on a re-sale by reason of the purchaser's default, and all expenses attending such re-sale, shall be certified to the Court or to the Collector or subordinate of the Collector, as the case may be, by the officer or other person holding the sale, and shall, at the instance of either the decree holder or the judgment-debtor, be recoverable from the defaulting purchaser under the provisions relating to the execution of a decree for the payment of money.

72. Decree holder not to bid for or buy property without permission.— (1) No holder of a decree in execution of which property is sold shall, without the express permission of the Court, bid for or purchase the property.

(2) Where decree-holder purchases, amount of decree may be taken as payment. Where a decree-holder purchases with such permission, the purchase-money and the amount due on the decree may, subject to the provisions of section 73, be set-off against one another, and the Court executing the decree shall enter up satisfaction of the decree in whole or in part accordingly.

(3) Where a decree-holder purchases, by himself or through another person, without such permission, the Court may, if it thinks fit, on the application of the judgment-debtor or any other person whose interests are affected by the sale, by order, set aside the sale; and the costs of such application and order, and any deficiency of price which may happen on the re-sale and all expenses attending it, shall be paid by the decree-holder.

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73. Restriction on bidding or purchase by officers. No officer or other person having any duty to perform in connection with any sale shall, either directly or indirectly bid for, acquire or attempt to acquire any interest in the property sold.

Sale of Moveable Property

74. Sale of agricultural produce.— (1) Where the property to be sold is agricultural produce, the sale shall be held,—

(a) if such produce is a growing crop, on or near the land on which such crop has grown, or,

(b) if such produce has been cut or gathered, at or near the threshing-floor or place for treading out grain or the like or fodder-stack on or in which it is deposited:

Provided that the Court may direct the sale to be held at the nearest place of public resort, if it is of opinion that the produce is thereby likely to sell to greater advantage.

(2) Where, on the produce being put up for sale,—

(a) a fair price, in the estimation of the person holding the sale, is not offered for it, and

(b) the owner of the produce or a person authorized to act in his behalf applies to have the sale postponed till the next day or, if a market is held at the place of sale, the next market-day,

the sale shall be postponed accordingly and shall be then completed, whatever price may be offered for the produce.

75. Special provisions relating to growing crops. (1) Where the property to be sold is a growing crop and the crop from its nature admits of being stored but has not yet been stored, the day of the sale shall be so fixed as to admit of its being made ready for storing before the arrival of such day, and the sale shall not be held until the crop has been cut or gathered and is ready for storing.

(2) Where the crop from its nature does not admit of being stored, it may be sold before it is cut and gathered, and the purchaser shall be entitled to enter on the land, and to do all that is necessary for the purpose of tending and cutting an or gathering it.

76. Negotiable instruments and shares in corporations. Where the property to be sold is a negotiable instrument or a share in a corporation, the Court may, instead of directing the sale to be made by public auction, authorize the sale of such instrument or share through a broker.

77. Sale by public auction.— (1) Where moveable property is sold by public auction the price of each lot shall be paid at the time of sale or as soon after as the officer or other person holding the sale directs, and in default of payment the property shall forthwith be re-sold.

(2) On payment of the purchase-money, the officer or other person holding the sale shall grant a receipt for the same, and the sale shall become absolute.

(3) Where the moveable property to be sold is a share in goods belonging to the judgment-debtor and a co-owner, and two or more persons, of whom one is such co-owner, respectively bid the same sum for such property or for any lot, the bidding shall be deemed to be the bidding of the co-owner.

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78. Irregularity not to vitiate sale, but any person injured may sue. No irregularity in publishing or conducting the sale of moveable property shall vitiate the sale; but any person sustaining any injury by reason of such irregularity at the hand of any other person may institute a suit against him for compensation or (if such other person is the purchaser) for the recovery of the specific property and for compensation in default of such recovery.

79. Delivery of moveable property, debts and shares.— (1) Where the property sold is moveable property of which actual seizure has been made, it shall be delivered to the purchaser.

(2) Where the property sold is moveable property in the possession of some person other than the judgment-debtor, the delivery thereof to the purchaser shall be made by giving notice to the person in possession prohibiting him from delivering possession of the property to any person except the purchaser.

(3) Where the property sold is a debt not secured by a negotiable instrument, or is a share in a corporation, the delivery thereof shall be made by a written order of the Court prohibiting the creditor

from receiving the debt or any interest thereon, and the debtor from making payment thereof to any person except the purchaser, or prohibiting the person in whose name the share may be standing from making any transfer of the share to any person except the purchaser, or receiving payment of any dividend or interest thereon, and the manager, secretary or other proper officer of the corporation from permitting any such transfer or making any such payment to any person except the purchaser.

80. Transfer of negotiable instruments and shares.— (1) Where the execution of a document or the endorsement of the party in whose name a negotiable instrument or a share in a corporation is standing is required to transfer such negotiable instrument or share, the Judge or such officer as he may appoint in this behalf may execute such document or make such endorsement as may be necessary, and such execution or endorsement shall have the same effect as an execution or endorsement by the party.

(2) Such execution or endorsement may be in the following form, namely:—

A.B by C.D., Judge of the Court of (*or as the case may be*), in a suit by E.F against A.B.

(3) Until the transfer of such negotiable instrument or share, the Court may, by order, appoint some person to receive any interest or divided due thereon and to sign a receipt for the same; and any receipt so signed shall be as valid and effectual for all purposes as if the same had been signed by the party himself.

80. Vesting order in case of other property. In case of any moveable property not hereinbefore provided for, the Court may make an order vesting such property in the purchaser or as he may direct; and such property shall vest accordingly.

Sales of immovable property

82. What Courts may order sales. Sales of immovable property in execution of decrees may be ordered by any Court other than a Court of Small Causes.

83. Postponement of sale to enable judgment debtor to raise amount of decree.—(1) Where an order for the sale of immoveable property has been made, if the judgment-debtor can satisfy the Court that there is reason to believe that the amount of the decree may be raised by the mortgage or lease or private sale of such property, or some part thereof, or of any other immoveable property of the judgement-debtor, the Court may, on his application, postpone the sale of the property comprised in the order for sale on such terms and for such period as it thinks proper, to enable him to raise the amount.

(2) In such case the Court shall grant a certificate to the judgment-debtor authorizing him within a period to be mentioned therein, and notwithstanding anything contained in section 64, to make the proposed mortgage, lease or sale:

Provided that all monies payable under such mortgage, lease or sale shall be paid, not to the judgment-debtor, but, save in so far as a decree-holder is entitled to set off such money under the provisions of rule 72, into Court:

Provided also that no mortgage, leases or sale under this rule shall become absolute until it has been confirmed by the Court.

(3) Nothing in this rule shall be deemed to apply to a sale of property directed to be sold in execution of a decree for sale in enforcement of a mortgage of, or charge on, such property.

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84. Deposit by purchaser and re-sale on default.— (1) On every sale of immoveable property the person declared to be the purchaser shall pay immediately after such declaration a deposit of twenty- five per cent on the amount of his purchase-money to the officer or other person conducting the sale, and in default of such deposit, the property shall forthwith be re-sold.

(2) Where the decree-holder is the purchaser and is entitled to set-off the purchase-money under rule 72, the Court may dispense with the requirements of this rule.

85. Time for payment in full of purchase money. The full amount of purchase-money payable shall be paid by the purchaser into Court before the Court closes on the fifteenth day from the sale of the property:

Provided that, in calculating the amount to be so paid into Court, the purchaser shall have the advantage of any set-off to which he may be entitled under rule 72.

86. Procedure in default of payment. In default of payment within the period mentioned in the last preceding rule, the deposit may, if the Court thinks fit, after defraying the expenses of the sale, be forfeited to the Government, and the property shall be re-sold, and the defaulting purchaser shall forfeit all claim to the property or to any part of the sum for which it may subsequently be sold.

87. Notification on re-sale. Every re-sale of immoveable property, in default of payment of the purchase-money within the period allowed for such payment, shall be made after the issue of a fresh proclamation in the manner and for the period hereinbefore prescribed for the sale.

88. Bid of co-sharer to have preference. Where the property sold is a share of undivided immoveable property and two or more persons, of whom one is a co-sharer, respectively bid the same sum for such property or for any lot, the bid shall be deemed to be the bid of the co-sharer.

89. Application to set aside sale on deposit.— (1) Where immoveable property has been sold in execution of a decree, any person, either owning such property or holding an interest therein by virtue of a title acquired before such sale, may apply to have the sale set aside on his depositing in Court,—

(a) for payment to the purchaser, a sum equal to five per cent of the purchase-money, and

(b) for payment to the decree-holder, the amount specified in the proclamation of sale as that for the recovery of which the sale was ordered, less any amount which may, since the date of such proclamation of sale, have been received by the decree-holder.

(2) Where a person applies under rule 90 to set aside the sale of his immoveable property, he shall not, unless he withdraws his application, be entitled to make or prosecute an application under this rule.

(3) Nothing in this rule shall relieve the judgement-debtor from any liability he may be under in respect of costs and interest not covered by the proclamation of sale.

90. Application to set aside sale on ground of irregularity or fraud.— (1) Where any immoveable property has been sold in execution of a decree, the decree-holder, or any person entitled to share in a rateable distribution of assets, or whose interests are affected by the sale, may apply to

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the Court to set aside the sale on the ground of a material irregularity or fraud in publishing or conducting it:

Provided that no sale shall be set aside on the ground of irregularity or fraud unless upon the facts proved the Court is satisfied that the applicant has sustained substantial injury by reason of such irregularity or fraud [:][1]

[2][Provided further that no such application shall be entertained unless the applicant deposits such amount, not exceeding twenty per cent of the sum realised at the sale, or furnishes such security, as the Court may direct.]

91. Application by purchaser to set aside sale on ground of judgment debtor having no saleable interest. The purchaser at any such sale in execution of a decree may apply to the Court to set aside the sale, on the ground that the judgment-debtor had no saleable interest in the property sold.

92. Sale when to become absolute or be set aside.— (1) Where no application is made under rule 89, rule 90 or rule 91, or where such application is made and disallowed, the Court shall make an order confirming the sale, and thereupon the sale shall become absolute.

(2) Where such application is made and allowed, and where, in the case of an application under rule 89, the deposit required by that rule is made within thirty days from the date of sale, the Court shall make an order setting aside the sale:

Provided that no order shall be made unless notice of the application has been given to all persons affected thereby.

(3) No suit to set aside an order made under this rule shall be brought by any person against whom such order is made.

93. Return of purchase-money in certain cases. Where a sale of immoveable property is set aside under rule 92, the purchaser shall be entitled to an order for repayment of his purchase-money, with or without interest as the Court may direct, against any person to whom it has been paid.

94. Certificate to purchaser. Where a sale of immoveable property has become absolute, the Court shall grant a certificate specifying the property sold and the name of the person who at the time of sale is declared to be the purchaser. Such certificate shall bear date the day on which the sale became absolute.

95. Delivery of property in occupancy of judgment-debtor. Where the immoveable property sold is in the occupancy of the judgment-debtor or of some person on his behalf or of some person claiming under a title created by the judgment debtor subsequently to the attachment of such property and a certificate in respect thereof has been granted under rule 94, the Court shall, on the application of the purchaser, order delivery to be made by putting such purchaser or any person whom he may appoint to receive delivery on his behalf in possession of the property, and, if need be, by removing any person who refuses to vacate the same.

96. Delivery of property in occupancy of tenant. Where the property sold is in the occupancy of a tenant or other person entitled to occupy the same and a certificate in respect thereof has been

[1]Subs. by the Law Reforms Ordinance 1972 (12 of 1972), s.2 and Sch., for full-stop.
[2]Proviso added *ibid*.

granted under rule 94, the Court shall, on the application of the purchaser, order delivery to be made by affixing a copy of the certificate of sale in some conspicuous place on the property, and proclaiming to the occupant by beat of drum or other customary mode, at some convenient place, that the interest of the judgment-debtor has been transferred to the purchaser.

Resistance to Delivery of Possession to Decree-holder Or Purchaser

97. Resistance or obstruction to possession of immoveable property.—(1) Where the holder of a decree for the possession of immoveable property or the purchaser of any such property sold in execution of a decree is resisted or obstructed by any person in obtaining possession of the property, he may make an application to the Court complaining of such resistance or obstruction.

(2) The Court shall fix a day for investigating the matter and shall summon the party against whom the application is made to appear and answer the same.

98. Resistance or obstruction by judgment debtor. Where the Court is satisfied that the resistance or obstruction was occasioned without any just cause by the judgment-debtor or by some other person at his instigation, it shall direct that the applicant be put into possession of the property, and where the applicant is still resisted or obstructed in obtaining possession, the Court may also, at the instance of the applicant, order the judgment-debtor, or any person acting at his instigation, to be detained in [1][* *] prison for a term which may extend to thirty days.

99. Resistance or obstruction by bona fide claimant. Where the Court is satisfied that the resistance or obstruction was occasioned by any person (other than the judgment-debtor) claiming in good faith to be in possession of the property on his own account or on account of some person other than the judgment-debtor, the Court shall make an order dismissing the application.

100. Dispossession by decree-holder or purchaser.—(1) Where any person other than the judgment-debtor is dispossessed of immovable property by the holder of a decree for the possession of such property or, where such property has been sold in execution of a decree, by the purchaser thereof, he may make an application to the Court complaining of such dispossession.

(2) The Court shall fix a day for investigating the matter and shall summon the party against whom the application is made to appear and answer the same.

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101. Bona fide claimant to be restored to possession. Where the Court is satisfied that the applicant was in possession of the property on his own account or on account of some person other than the judgement-debtor, it shall direct that the applicant be put into possession of the property.

102. Rules not applicable to transferee *lite bendente*. Nothing in rules 99 and 101 shall apply to resistance or obstruction in execution of a decree for the possession of immoveable property by a person to whom the judgment-debtor has transferred the property after the institution of the suit in which the decree was passed or to the dispossession of any such person.

[2]**[103. Certain orders conclusive and suit barred.** All questions arising as to title, right or interest in, or possession of immoveable property between an applicant under rule 97 and the opposite party, or between an applicant under rule 100 and the opposite party, shall be adjudicated upon and determined by the Court, and no separate suit shall lie for the determination of any such matter.].

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[1]Omitted by Act XIV of 1994, s.11.
[2]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch. for the original rule 103.

ORDER XXII

DEATH, MARRIAGE AND INSOLVENCY OF PARTIES

1. No abatement by party's death, if right to sue survives. The death of a plaintiff or defendant shall not cause the suit to abate if the right to sue survives.

2. Procedure where one of several plaintiffs or defendants dies and right to sue survives. Where there are more plaintiffs or defendants than one, and any of them dies, and where the right to sue survives to the surviving plaintiffs or plaintiffs alone, or against the surviving defendant of defendants alone, the Court shall cause an entry to that effect to be made on the record, and the suit shall proceed at the instance of the surviving plaintiff, or plaintiffs, or against the surviving defendant or defendants.

3. Procedure in case of death of one of several plaintiffs or of sole plaintiff.—(1) Where one of two or more plaintiffs dies and the right to sue does not survive to the surviving plaintiffs alone [1][, or on receipt of an intimation of the death of such plaintiff from the person nominated by him for that purpose under rule 26, Order VII], or a sole plaintiff or sole surviving plaintiff dies and the right to sue survives, the Court, on an application made in that behalf, shall cause the legal representative of the deceased plaintiff to be made a party and shall proceed with the suit.

[2][(2) Where within the time allowed by law no application is made or intimation is given under sub-rule (1), the Court may proceed with the suit, and any order made or judgment pronounced in such suit shall, notwithstanding the death of such plaintiff, have the same force and effect as if it had been made or pronounced before the death took place.]

4. Procedure in case of death of one of several defendants or of sole defendant.—(1) Where one of two or more defendants dies and the right to sue does not survive against the surviving defendant or defendants alone 1[,or on receipt of an intimation of the death of such defendant from the person nominated by him for that purpose under rule 13, Order VIII], or a sole defendant or sole surviving defendant dies and the right to sue survives, the Court ,on an application made in that behalf, shall cause the legal representative of the deceased defendant to be made a party and shall proceed with the suit.

(2) Any person so made a party may make any defence appropriate to his character as legal representative of the deceased defendant.

[2][(3) When within the time limited by law no application is made or intimation is given under sub- rule (1), the Court may proceed with the suit, and any order made or judgment pronounced in such suit shall, notwithstanding the death of such defendant, have the same force and effect as if it had been pronounced before the death took place.].

[3][(4) It shall not be necessary to substitute the legal representatives of any such defendant who has failed to file a written statement or has failed to appear and contest the suit at the hearing; and judgment may in such case be pronounced against the said defendant notwithstanding his death, and such judgment shall have the same force and effect as if had been pronounced before his death took place.].

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[1]Ins. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch. for the original rule 103.
[2]Sbus. *ibid*., s.2, for the original sub-rule (3).
[3]Sub-rule (4) added *ibid*.

5. Determination of question as to legal representative. Where a question arises as to whether any person is or is not the legal representative of a deceased plaintiff or a deceased defendant, such question shall be determined by the Court.

6. No abatement by reason of death after hearing. Notwithstanding anything contained in the foregoing rules, whether the cause of action survives or not, there shall be no abatement by reason of the death of either party between the conclusion of the hearing and the pronouncing of the judgment, but judgment may in such case be pronounced notwithstanding the death and shall have the same force and effect as if it had been pronounced before the death took place.

7. Suit not abated by marriage of female party.— (1) The marriage of a female plaintiff or defendant shall not cause the suit to abate, but the suit may notwithstanding be proceeded with to judgment, and, where the decree is against a female defendant, it may be executed against her alone.

(2) Where the husband is by law liable for the debts of his wife the decree may, with the permission of the Court, be executed against the husband also; and, in case of judgment for the wife, execution of the decree may, with such permission, be issued upon the application of the husband, where the husband is by law entitled to the subject-matter of the decree.

8. When plaintiff's insolvency bars suit.— (1) The insolvency of a plaintiff in any suit which the assignee or receiver might maintain for the benefit of his creditors, shall not cause the suit to abate, unless such assignee or receiver declines to continue the suit or (unless for any special reason the Court otherwise directs) to give security for the costs thereof within such time as the Court may direct.

(2) Procedure where assignee fails to continue suit or give security. Where the assignee or receiver neglects or refuses to continue the suit and to give such security within the time so ordered, the defendant may apply for the dismissal of the suit on the ground of the plaintiff's insolvency, and the Court may make an order dismissing the suit and awarding to the defendant the costs which he has incurred in defending the same to be proved as a debt against the plaintiff's estate.

[1]**[9. Effect of dismissal.—** (1) When a suit is dismissed under rule 8, no fresh suit shall be brought on the same cause of action.

(2) Any person claiming to be the legal representative of a deceased plaintiff or defendant or the assignee or the receiver in the case of an insolvent plaintiff may apply to the Court for setting aside any order made or judgment pronounced by it in his absence; and if it is proved that he was prevented by any sufficient cause from continuing the suit or defending the suit, as the case may be, the Court shall set aside the order or the judgment ,upon such terms as to costs or otherwise as it thinks fit.].

[2][(3) The provisions of section 5 of the Limitation Act, 1908, (IX of 1908) shall apply to applications under sub-rule (2).].

10. Procedure in case of assignment before final order in suit.— (1) In other cases of an assignment, creation or devolution of any interest during the pendency of a suit, the suit may, by leave of the Court, be continued by or against the person to or upon whom such interest has come or devolved.

[1]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch., for the Original rule 9.
[2]Sub-rule (3) added by the Civil Procedure (Amdt.) Act, 1990 (4 of 1990), s.2.

(2) The attachment of a decree pending an appeal therefrom shall be deemed to be an interest entitling the person who procured such attachment to the benefit of sub-rule (1).

11. Application of Order to appeals. In the application of this Order to appeals, so far as may be, the word "Plaintiff" shall be held to include an appellant, the word "defendant" a respondent, and the word "suit" an appeal.

12. Application of Order to proceedings. Nothing in rules 3, 4 and 8 shall apply to proceedings in execution of a decree or order.

ORDER XXIII

WITHDRAWAL AND ADJUSTMENT OF SUITS

1. Withdrawal of suit or abandenment of part of claim.— (1) At any time after the institution of a suit the plaintiff may, as against all or any of the defendants, withdraw his suit or abandon part of his claim.

(2) Where the Court is satisfied—

(a) that a suit must fail by reason of some formal defect, or

(b) that there are other sufficient grounds for allowing the plaintiff to institute a fresh suit for the subject-matter of a suit or part of a claim.

it may, on such terms as it thinks fit, grant the plaintiff permission to withdraw from such suit or abandon such part of a claim with liberty to institute a fresh suit in respect of the subject-matter of such suit or such part of a claim.

(3) Where the plaintiff withdraws from a suit, or abandons part of a claim, without the permission referred to in sub-rule (2), he shall be liable for such costs as the Court may award and shall be precluded from instituting any fresh suit in respect of such subject-matter or such part of the claim.

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(4) Nothing in this rule shall be deemed to authorise the Court to permit one of several plaintiffs to withdraw without the consent of the others.

2. Limitation law not affected by first suit. In any fresh suit instituted on permission granted under the last preceding rule, the plaintiff shall be bound by the law of limitation in the same manner as if the first suit had not been instituted.

3. Compromise of suit. Where it is proved to the satisfaction of the Court that a suit has been adjusted wholly or in part by any lawful agreement or compromise, or where the defendant satisfies the plaintiff in respect of the whole or any part of the subject-matter of the suit, the Court shall order such agreement, compromise or satisfaction to be recorded, and shall pass a decree in accordance therewith so far as it relates to the suit.

4. Proceedings in execution of decrees not affected. Nothing in this Order shall apply to any proceedings in execution of a decree or order.

ORDER XXIV

PAYMENT INTO COURT

1. Deposit by defendant of amount in satisfaction of claim. The defendant in any suit to recover a debt or damages may, at any stage of the suit, deposit in Court such sum of money as he considers a satisfaction in full of the claim.

2. Notice of deposit. Notice of the deposit shall be given through the Court by the defendant to the plaintiff, and the amount of the deposit shall (unless the Court otherwise directs) be paid to the plaintiff on his application.

3. Interest on deposit not allowed to plaintiff after notice. No interest shall be allowed to the plaintiff on any sum deposited by the defendant from the date of the receipt of such notice, whether the sum deposited is in full of the claim or falls short thereof.

4. Procedure where plaintiff accepts deposit as satisfaction in part.—(1) Where the plaintiff accepts such amount as satisfaction in part only of his claim, he may prosecute his suit for the balance; and, if the court decides that the deposit by the defendant was a full satisfaction of the plaintiff's claim, the plaintiff shall pay the costs of the suit incurred after the deposit and the costs incurred previous thereto, so far as they were caused by excess in the plaintiff's claim.

(2) Procedure where he accepts it as satisfaction in full. Where the plaintiff accepts such amount as satisfaction in full of his claim, he shall present to the Court a statement to that effect, and such statement shall be filed and the Court shall pronounce judgment accordingly; and, in directing by whom the costs of each party are to be paid, the Court shall consider which of the parties is most to blame for the litigation.

Illustrations

(a) A owes B Rs.100. B sues A for the amount, having made no demand for payment and having no reason to believe that the delay caused by making A demand would place him at a disadvantage. On the plaint being filed, A pays the money into Court. B accepts it in full satisfaction of his claim, but the Court should not allow him any costs, the litigation being presumably groundless on his part.

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(b) B sues A under the circumstances mentioned in illustration *(a)*. On the plaint being filed. A disputes the claim. Afterwards A pays the money into Court. B accepts it in full satisfaction of his claim. The Court should also give B his costs of suit, A's conduct having shown that the litigation was necessary.

(c) A owes B Rs 100, and is willing to pay him that sum without suit. B claims Rs.150 and sues A for that amount. On the plaint being filed A pays Rs.100 into Court and disputes only his liability to pay the remaining Rs. 50. B accepts the Rs. 100 in full satisfaction of his claim. The Court should order him to pay A's costs.

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ORDER XXV

SECURITY FOR COSTS

1. When security for costs may be required from plaintiff.— (1) Where, at any stage of a suit, it appears to the Court that a sole plaintiff is, or (when there are more plaintiffs than one) that all the plaintiffs are residing out of [1][Pakistan], and that such plaintiff does not, or that no one of such plaintiff's does, possess any sufficient immoveable property within [1][Pakistan] other than the property in suit, the Court may, either of its own motion or on the application of any defendant, order the plaintiff or plaintiffs, within a time fixed by it, to give security for the payment of all costs incurred and likely to be incurred by any defendant.

(2) Residence out of Pakistan. Whoever leaves [1][Pakistan] under such circumstances as to afford reasonable probability that he will not be forthcoming whenever he may be called upon to pay costs shall be deemed to be residing out of [1][Pakistan] within the meaning of sub-rule (1).

(3) On the application of any defendant in a suit for the payment of money, in which the plaintiff is a woman, the Court may at any stage of the suit make a like order if it is satisfied that such plaintiff does not possess any sufficient immoveable property within [1][Pakistan].

2. Effect of failure to furnish security.— (1) In the event of such security not being furnished within the time fixed, the Court shall make an order dismissing the suit unless the plaintiff or plaintiffs are permitted to withdraw therefrom.

(2) Where a suit is dismissed under this rule, the plaintiff may apply for an order to set the dismissal aside, and, if it is proved to the satisfaction of the Court that he was prevented by any sufficient cause from furnishing the security within the time allowed, the Court shall set aside the dismissal upon such terms as to security, costs or otherwise as it thinks fit, and shall appoint a day for proceeding with the suit.

(3) The dismissal shall not be set aside unless notice of such application has been served on the defendant.

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ORDER XXVI

COMMISSIONS

Commissions to Examine Witnesses

1. Cases in which Court may issue commission to examine witness. Any court may in any suit issue a commission for the examination on interrogatories or otherwise of any person resident within the local limits of its jurisdiction who is exempted under this Code from attending the Court or who is from sickness or infirmity unable to attend it.

2. Order for commission. An order for the issue of a commission for the examination of a witness may be made by the Court either of its own motion or on the application, supported by affidavit or otherwise, of any party to the suit or of the witness to be examined.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

3. Where witness resides within Court's jurisdiction. A commission for the examination of a person who resides within the local limits of the jurisdiction of the Court issuing the same may be issued to any person whom the Court thinks fit to execute it.

4. Persons for whose examination commission may issue.— (1) Any Court may in any suit issue a commission for the examination of—

(a) any person resident beyond the local limits of its jurisdiction ;

(b) any person who is about to leave such limits before the date on which he is required to be examined in Court ; and

(c) [1][any person in the service of the [2][State]] who cannot, in the opinion of the Court, attend without detriment to the public service.

(2) Such commission may be issued to any Court, not being a High Court, within the local limits of whose jurisdiction such person resides, or to any pleader or other person whom the Court issuing the commission may appoint.

(3) The Court on issuing any commission under this rule shall direct whether the commission shall be returned to itself or to any subordinate Court.

5. Commission or request to examine witness not within Pakistan. Where any Court to which application is made for the issue of commission for the examination of a person residing at any place not within [3][Pakistan] is satisfied that the evidence of such person is necessary, the Court may issue such commission or a letter of request.

6. Court to examine witness pursuant to commission. Every Court receiving a commission for the examination of any person shall examine him or cause him to be examined pursuant thereto.

7. Return of commission with depositions of witnesses. Where a commission has been duly executed, it shall be returned, together with the evidence taken under it, to the Court from which it was issued, unless the order for issuing the commission has otherwise directed, in which case the commission shall be returned in terms of such order ; and the commission and the return thereto and the evidence taken under it shall (subject to the provisions of the next following rule) form part of the record of the suit.

8. When depositions may be read in evidence. Evidence taken under a commission shall not be read as evidence in the suit without the consent of the party against whom the same is offered, unless—

(a) the person who gave the evidence is beyond the jurisdiction of the Court, or dead or unable from sickness or infirmity to attend to be personally examined, or exempted from personal appearance in Court, or is a [1][person in the service of the [2][State]] who cannot, in the opinion of the Court, attend without detriment to the public service, or

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[1]Subs. by A.O. 1937.
[2]Subs. by A.O. 1961, Art. 2 and Sch.
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

(b) the Court in its discretion dispenses with the proof of any of the circumstances mentioned in clause (a), and authorises the evidence of any person being read as evidence in the suit, notwithstanding proof that the cause for taking such evidence by commission has ceased at the time of reading the same.

Commissions for Local Investigations

9. Commissions to make local investigations. In any suit in which the Court deems a local investigation to be requisite or proper for the purpose of elucidating any matter in dispute, or of ascertaining the market value of any property, or the amount or any mesne profits or damages or annual net profits, the Court may issue a commission to such person as it thinks fit directing him to make such investigation and to report thereon to the Court:

Provided that, where the [1][Provincial Government] has made rules as to the person to whom such commission shall be issued, the Court shall be bound by such rules.

10. Procedure of Commissioner.— (1) The Commissioner, after such local inspection as he deems necessary and after reducing to writing the evidence taken by him, shall return such evidence, together with his report in writing signed by him to the Court.

(2) Report and depositions to be. The report of the Commissioner and the evidence taken by him (but not the evidence without the report) shall be evidence in the suit and shall form part of the record ; but the Court or,

with the permission of the Court, any of the parties to the suit may examine the Commissioner personally in open Court touching any of the matters referred to him or mentioned in his report, or as to his report, or as to the manner in which he has made the investigation.

(3) Where the Court is for any reason dissatisfied with the proceedings of the Commissioner, it may direct such further inquiry to be made as it shall think fit.

Commissions to examine Accounts

11. Commission to examiner adjust accounts. In any suit in which an examination or adjustment of accounts is necessary, the Court may issue a commission to such person as it thinks fit directing him to make such examination or adjustment.

12. Courts to give Commissioner necessary instructions.—(1) The Court shall furnish the Commissioner with such part of the proceedings and such instructions as appear necessary, and the instructions shall distinctly specify whether the Commissioner is merely to transmit the proceedings which he may hold on the inquiry, or also to report his own opinion on the point referred for his examination.

(2) Proceedings and report to be evidence. Court may direct further inquiry. The proceedings and report (if any) of the Commissioner shall be evidence in the suit, but where the Court has reason to be dissatisfied with them, it may direct such further inquiry as it shall think fit.

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[1]Subs. by A.O. 1937, for "L.G.".

Commissions to make Partitions

13. Commission to make partition of immoveable property. Where a preliminary decree for partition has been passed, the Court may, in any case not provided for by section 54, issue a commission to such person as it thinks fit to make the partition or separation according to the rights as declared in such decree.

14. Procedure of Commissioner.— (1) The Commissioner shall, after such inquiry as may be necessary, divide the property into as many shares as may be directed by the order under which the commission was issued, and shall allot such shares to the parties, and may, if authorised thereto by the said order, award sum to be paid for the purpose of equalizing the value of the shares.

(2) The Commissioner shall then prepare and sign a report or the Commissioners (where the commission was issued to more than one person and they cannot agree) shall prepare and sign separate reports appointing the share of each party and distinguishing each share (if so directed by the said order) by metes and bounds. Such report or reports shall be annexed to the commission and transmitted to the Court; and the Court, after hearing any objections which the parties may make to the report or reports, shall confirm, vary or set aside the same.

(3) Where the Court confirms or varies the report or reports it shall pass a decree in accordance with the same as confirmed or varied; but where the Court sets aside the report or reports it shall either issue a new commission or make such other order as it shall think fit.

General Provisions

15. Expenses of Commission to be paid into Court. Before issuing any commission under this Order, the Court may order such sum (if any) as it thinks reasonable for the expenses of the commission to be, within a time to be fixed, paid into Court by the party at whose instance or for whose benefit the commission is issued.

16. Powers of Commissioners. Any commissioner appointed under this Order may, unless otherwise directed by the order of appointment,—

(a) examine the parties themselves and any witness whom they or any of them may produce, and any other person whom the Commissioner thinks proper to call upon to give evidence in the matter referred to him;

(b) call for and examine documents and other things relevant to the subject of inquiry;

(c) at any reasonable time enter upon or into any land or building mentioned in the order.

17. Attendance and examination of witnesses before Commissioner.— (1) The provisions of this Code relating to the summoning, attendance and examination of witnesses, and to the remuneration of, and penalties to be imposed upon, witnesses, shall apply to persons required to give evidence or to produce documents under this order whether the commission in execution of which they are so required has been issued by a Court situate within or by a Court situate beyond the limits of [1][Pakistan], and for the purpose of this rule the Commissioner shall be deemed to be a Civil Court.

(2) A Commissioner may apply to any Court (not being a High Court) within the local limits of whose jurisdiction a witness resides for the issue of any process which he may find it necessary to

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

issue to or against such witness, and such Court may, in its discretion, issue such process as it considers reasonable and proper.

18. Parties to appear before Commissioner.— (1) Where a commission is issued under this Order, the Court shall direct that the parties to the suit shall appear before the Commissioner in person or by their agents or pleaders.

(2) Where all or any of the parties do not so appear, the Commissioner may proceed in their absence.

[1][*Commissions issued at the instance of Foreign Tribunals*]

19. Cases in which High Court may issue commission to examine witness.— (1) If a High Court is a satisfied—

(a) that a foreign Court situated in a foreign country wishes to obtain the evidence of a witness in any proceeding before it,

(b) that the proceeding is of a civil nature, and

(c) that the witness is residing within the limits of the High Court's appellate jurisdiction,

it may, subject to the provisions of rule 20, issue a commission for the examination of such witness.

(2) Evidence may be given of the matters specified in clauses *(a)*, *(b)* and *(c)* of sub-rule (1)—

(a) by a certificate signed by the consular officer of the foreign country of the highest rank in [2][Pakistan] and transmitted to the High Court through the [3][Federal Government], or

(b) by a letter of request issued by the foreign Court and transmitted to the High Court through the [3][Federal Government], or

(c) by a letter of request issued by the foreign Court and produced before the High Court by a party to the proceeding.

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20. Application for commission. The High Court may issue a commission under rule 19—

(a) upon application by a party to the proceeding before the foreign Court, or

(b) upon an application by a law officer of the [4][Provincial Government] acting under instructions from the [4][Provincial Government].

21. To whom commissions may be issued. A commission under rule 19 may be issued to any Court within the local limits of whose jurisdiction the witness resides, or, where [4][* * *] the witness resides within the local limits of [4][the ordinary original civil jurisdiction of the High Court], to any person whom the Court thinks fit to execute the commission.

[1]Ins. by the Code of Civil Procedure (Amdt.) Act, 1932 (X of 1932), s.3.
[2]Subs. by A.O., 1949.
[3]Subs. F.A.O., 1975 Art. 2 and Table.
[4]Subs. and rep. by A.O., 1937.

22. Issue, execution and return of commissions and transmission of evidence to foreign Court. The provisions of rules 6, 15, 16, 17 and 18 of this Order in so far as they are applicable shall apply to the issue, execution and return of such commissions, and when any such commission has been duly executed it shall be returned, together with the evidence taken under it, to the High Court, which shall forward it to the [1][Federal Government], along with the letter of request for transmission to the foreign Court.]

ORDER XXVII

SUITS BY OR AGAINST [2][THE GOVERNMENT] OR PUBLIC OFFICERS IN THEIR OFFICIAL CAPACITY

1. Suits by or against Government. In any suit by or against [3][the Government], the plaint or written statement shall be signed by such person as [3][the Government] may, by general or special order, appoint in this behalf, and shall be verified by any person whom [2][the Government] may so appoint and who is acquainted with the facts of the case.

[4]2. Persons authorised to act for Government. Persons being *ex-officio* or otherwise authorised to act for [3][the Government] in respect of any judicial proceeding shall be deemed to be the recognized agents by whom appearances, acts and applications under this Code may be made or done on behalf of [3][the Government].

3. Plaints in suits by or against Government. In suits by or [5][against the Government], instead of inserting in the plaint the name and description and place of residence of the plaintiff or defendant, it shall be sufficient to insert [6][the appropriate name as provided in section 79, [7][* * *]].

[8][4. Agent for Government to receive process. The [9][Government] pleader in any Court shall be the agent of the [9][Government] for the purpose of receiving processes against the [9][Government] issued by such Court.]

5. Fixing of day for appearance on behalf of Government. The Court, in fixing the day for [3][the Government] to answer to the plaint, shall allow a reasonable time for the necessary communication [10][with the Government] through the proper channel, and for the issue of instructions to the [11][Government pleader] to appear and answer on behalf of [3][the Government] [12][* * *], and may extend the time at its discretion.

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[1]Subs. by F.A.O., 1975, Art. 2 and Table.
[2]Amended by A.O., 1961, Art. 2 and Sch (*with effect from the 23rd March, 1956*) to read as above.
[3]The original words "the Secretary of State for India in Council" were first subs. by A.O., 1937 and then amended by A.O., 1961, Art. 2 and Sch (*with effect from the 23rd March, 1956*) to read as above.
[4]For notifn. under this rule, *see* Gaz. of P., 1956, Pt. I, P. 486.
[5]The original words "against the Secretary of State for India in Council" were first subs by A.O., 1937 and then amended by A.O., 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*), to read as above.
[6]Subs. by A.O., 1937, for the words "The Secretary of State for India in Council".
[7]The words; "or, if the suit is against the Secretary of State," the words "the Secretary of State," omitted by A.O., 1949.
[8]Subs. by A.O., 1937, for the orignal rule.
[9]Subs. by A.O., 1961, Art. 2 and Sch. for "Crown" (*with effect from the 23rd Marach, 1956*).
[10]The original words "with the Government" were first subs. by A.O., 1937 and then amended by A.O., 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*), to read as above.
[11]The original words "Governemnt pleader" were first subs. by A.O., 1937, and than amended by A.O., 1961, Art.2 and Sch. (*with effect from the 23rd March, 1956*) to read as above.
[12]The words "or the Government" omitted by A.O., 1949.

6. Attendance of person able to answer questions relating to suit against Government. The Court may also, in any case in which the [1][Government pleader] is not accompanied by any person on the part of [2][the Government], who may be able to answer any material questions relating to the suit, direct the attendance of such a person.

7. Extension of time to enable public officer to make reference to Government.— (1) Where the defendant is a public officer and, on receiving the summons, considers it proper to make a reference to [3][the Government] before answering the plaint, he may apply to the Court to grant such extension of the time fixed in the summons as may be necessary to enable him to make such reference and to receive orders thereon through the proper channel.

(2) Upon such application the Court shall extend the time for so long as appears to it to be necessary.

[4]8. Procedure in suits against public officer.— (1) Where [5][the Government] undertakes the defence of a suit against a public officer [6][the Government pleader], upon being furnished with authority to appear and answer the plaint, shall apply to the Court, and upon such application the Court shall cause a note of his authority to be entered in the register of civil suits.

(2) Where no application under sub-rule (1) is made by [7][the Government pleader] on or before the day fixed in the notice for the defendant to appear and answer, the case shall proceed as in a suit between private parties:

Provided that the defendant shall not be liable to arrest, nor his property to attachment otherwise than in execution of a decree.

[8][8A. No security to be required from Government or a public officer in certain cases. No such security as is mentioned in rules 5 and 6 of Order XLI shall be required from the [5][Government] or, where the [5][Government] has undertaken the defence of the suit, from any public officer sued in respect of an act alleged to be done by him in his official capacity.

8B. Definitions of "Government" and "Government pleader. In this Order "[5][Government]" and "[5][Government]" pleader means respectively—

(a) in relation to any suit by or against [9][* * *] the [10][Federal Government], or against a public officer in the service of that Government, the [10][Federal Government] and such pleader as that Government may appoint whether generally or specially for the purposes of this Order;

(b) [11][* * * * * *]

[1]The original words "Governemnt pleader" were first subs. by A.O., 1937, and than amended by A.O., 1961, Art.2 and Sch. (*with effect from the 23rd March, 1956*) to read as above.
[2]The original words "the Secretary of State for India in Council" were first subs. by A.O., 1937 and then amended by A.O., 1961, Art. 2 and Sch (with effect from the 23rd March, 1956). to read as above.
[3]The orignal words "the Government were first subs. by A.O., 1937, and then amended by A.O., 1961, Art.2 and Sch. (with effect from the 23rd March, 1956) to read as above.
[4]For notifn. Under these rules, see Gaz. Of P. 1956, Pt. 1, p. 486.
[5]Subs. by A.O., 1961, Art. 2 and Sch. for "Crown" (*with effect from the 23rd Marach, 1956*).
[6]The original words "the Government pleader" have successively been amended by A.O., 1937, and A.O., 1961, Art. 2 and Sch. (with effect the 23rd March, 1956), to read as above.
[7]The original words "the Government pleader" have successively been amended by A.O., 1937, and A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956), to read as above.
[8]Rules 8A and 8B were ins. by A.O., 1937.
[9]The words "the Secretary of State or "omitted by A.O., 1949.
[10]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[11]Cl. (b) omitted by A.O., 1949.

(c) in relation to any suit by or against a Provincial Government or against a public officer in the service of a Province, the Provincial Government and the Government pleader, or such other pleader as the Provincial Government may appoint, whether generally or specially, for the purposes of this Order.]

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[1][ORDER XXVIIA

SUITS INVOLVING [2][ANY SUBSTANTIAL QUESTION AS TO THE INTERPRETATION OF CONSTITIONAL LAW].

1. Notice to the Advocate General. In any suit in which it appears to the Court that [2][any substantial question as to the interpretation of constitutional law] is involved, the Court shall not proceed to determine that question until after notice has been given to the [2][Attorney General for Pakistan] if the question of law concerns the [3][Federal Government] and to the Advocate-General of the Province if the question of law concerns a Provincial Government.

2. Court may add Government as party. The Court may at any stage of the proceedings order that the [3][Federal Government] or a Provincial Government shall be added as a defendant in any suit involving [2][any substantial question as to the interpretation of constitutional law] if the [2][Attorney General for Pakistan] or the Advocate General of the Province as the case may be, whether upon receipt of notice under rule 1, or otherwise, applies for such addition and the Court is satisfied that such addition is necessary or desirable for the satisfactory determination of the question of law involved.

3. Costs when Government added as party. Where under rule 2 Government is added as a defendant in a suit, [2][the Attorney General,] the Advocate-General or the Government shall not be entitled to or liable for costs in the Court which ordered the addition unless the Court having regard to all the circumstances of the case for any special reason otherwise orders.

4. Application of Order to appeals. In the application of this Order to appeals the word "defendant" shall be held to include a respondent and the word "suit" an appeal.].

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ORDER XXVIII

SUITS BY OR AGAINST MILITARY [4][OR NAVAL] MEN [7][OR AIRMEN]

1. Officers, soldiers, sailors or airmen who cannot obtain leave may authorise any person to sue or defend for them.— (1) Where any officer, [6][soldier, sailor or airman] actually [2][in the service of the State] in [7][such] capacity is a party to a suit, and cannot obtain leave of absence for the purpose of prosecuting or defending the suit in person, he may authorise any person to sue or defend in his stead.

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[1]Order XXVIIA ins. by the code of Civil Procedure (Amdt.) Act, 1942 (23 of 1942), s.2
[2]Subs. and Ins. by A.O., 1961, Art. 2 and Sch (*with effect from the 23rd March, 1956*).
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[4]Ins. by the Amending Act, 1934 (35 of 1934), s. 2 and Sch.
[5]Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s.2 and 1st Sch.
[6]The words "soldier or airman" were subs. by Act, 10 of 1927, s.2 and 1st Sch., for the words "or soldier" and the word "sailor" was ins. by Act 35 of 1934, s.2 and Sch.
[7]Subs. by Act 35 of 1934, s.2 and Sch., for "a military or air-force" The words "or air-force" had been ins. by Act 10 of 1927, s.2 and 1st Sch.

(2) The authority shall be in writing and shall be signed by the officer, [1][soldier, sailor or airman] in the presence of (a) his commanding officer, or he next subordinate officer, if the party is himself the commanding officer, or (b) where the officer, [1][soldier, sailor or airman] is serving in military, [1][naval,] [2][or air force] staff employment, the head or other superior officer of the office in which he is employed. Such commanding or other officer shall countersign the authority, which shall be filed in Court.

(3) When so filed the countersignature shall be sufficient proof that the authority was duly executed, and that the officer, [1][soldier, sailor or airman] by whom it was granted could not obtain leave of absence for the purpose of prosecuting or defending the suit in person.

Explanation.—In this Order the expression "commanding officer" means the officer in actual command for the time being of any regiment, corps, [1][ship,] detachment or depot to which the officer,[1][soldier, sailor or airman] belongs.

2. Person so auhtorised may act personally or appoint pleader. Any person authorised by an officer, [1][soldier, sailor or airman] to prosecute or defend a suit in his stead may prosecute or defend it in person in the same manner as the officer, [1][soldier, sailor or airman] could do if present; or he may appoint a pleader to prosecute or defend the suit on behalf of such officer, [1][soldier, sailor or airman].

3. Service on person so authorised, or on his pleader to be good service. Processes served upon any person authorised by an officer, [1][soldier, sailor or airman] under rule 1 or upon any pleader appointed as aforesaid by such person shall be as effectual as if they had been served on the party in person.

ORDER XXIX

SUITS BY OR AGAINST CORPORATIONS

1. Subscription and verification of pleading. In suits by or against a corporation, any pleading may be signed and verified on behalf of the corporation by the secretary or by any director or other principal officer of the corporation who is able to depose to the facts of the case.

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2. Service on corporation. Subject to any statutory provision regulating service of process, where the suit is against a corporation, the summons may be served—

(a) on the secretary, or on any director, or other principal officer of the corporation, or

(b) by leaving it or sending it by post addressed to the corporation at the registered office, or if there is no registered office then at the place where the corporation carries on business.

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[1]Sus. and Ins. by Act 35 of 1934, s.2 and Sch.
[2]Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s.2 and 1st Sch.

3. Power to require personal attendance of officer of corporation. The Court may, at any stage of the suit, require the personal appearance of the secretary or of any director, or other principal officer of the corporation who may be able to answer material questions relating to the suit.

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ORDER XXX

SUITS BY OR AGAINST FIRMS AND PERSONS CARRYING ON BUSINESS IN NAMES OTHER THAN THEIR OWN.

1. Suing of partners in name of firm.—(1) Any two or more persons claiming or being liable as partners and carrying on business in [1][Pakistan] may sue or be sued in the name of firm (if any) of which such persons were partners at the time of the accruing of the cause of action, and any party to a suit may in such case apply to the Court for a statement of the names and addresses of the persons who were, at the time of the accruing of the cause of action, partners in such firm, to be furnished and verified in such manner as the Court may direct.

(2) Where persons sue or are sued as partners in the name of their firm under sub-rule (1), it shall, in the case of any pleading or other document required by or under this Code to be signed, verified or certified by the plaintiff or the defendant, suffice if such pleading or other document is signed, verified or certified by any one of such persons.

2. Disclosure of partner's names.— (1) Where a suit is instituted by partners in the name of their firm, the plaintiffs or their pleader shall, on demand in writing by or on behalf of any defendant, forthwith declare in writing the names and places of residence of all the persons constituting the firm on whose behalf the suit is instituted.

(2) Where the plaintiffs or their pleader fail to Comply with any demand made under sub-rule (1), all proceedings in the suit may, upon an application for that purpose, be stayed upon such terms as the Court may direct.

(3) Where the names of the partners are declared in the manner referred to in sub-rule (1), the suit shall proceed in the same manner, and the same consequences in all respects shall follow, as if they had been named as plaintiffs in the plaint:

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Provided that all the proceedings shall nevertheless continue in the name of the firm.

3. Service. Where persons are sued as partners in the name of their firm, the summons shall be served either—

(a) upon any one or more of the partners, or

(b) at the principal place at which the partnership business is carried on within [1][Pakistan] upon any person having, at the time of service, the control or management of the partnership business there,

as the Court may direct ; and such service shall be deemed good service upon the firm so sued, whether all or any of the partners are within or without [1][Pakistan]:

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*).

Provided that, in the case of a partnership which has been dissolved to the knowledge of the plaintiff before the institution of the suit, the summons shall be served upon every person within [1][Pakistan] whom it is sought to make liable.

4. Right of suit on death of partner.— (1) Notwithstanding anything contained in section 45 of the Contract Act, 1872 (IX of 1872), where two or more persons may sue or be sued in the name of a firm under the foregoing provisions and any of such persons dies, whether before the institution or during the pendency of any suit, it shall not be necessary to join the legal representative of the deceased as a party to the suit.

(2) Nothing in sub-rule (1) shall limit or otherwise affect any right which the legal representative of the deceased may have—

(a) to apply to be made a party to the suit, or

(b) to enforce any claim against the survivor or survivors.

5. Notice in what capacity served. Where a summons is issued to a firm and is served in the manner provided by rule 3, every person upon whom it is served shall be informed by notice in writing given at the time of such service, whether he is served as a partner or as a person having the control or management of the partnership business, or in both characters, and, in default of such notice, the person served shall be deemed to be served as a partner.

6. Appearance of partners. Where persons are sued as partners in the name of their firm, they shall appear individually in their own names, but all subsequent proceedings shall, nevertheless, continue in the names of the firm.

7. No appearance except by partners. Where a summons is served in the manner provided by rule 3 upon a person having the control or management of the partnership business, no appearance by him shall be necessary unless he is a partner of the firm sued.

8. Appearance under protest. Any person served with summons as a partner under rule 3 may appear under protest, denying that he is a partner, but such appearance shall not preclude the plaintiff from otherwise serving a summons on the firm and obtaining a decree against the firm in default of appearance where no partner has appeared.

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9. Suits between co-partners. This Order shall apply to suits between a firm and one or more of the partners therein and to suits between firms having one or more partners in common; but no execution shall be issued in such suits except by leave of the Court, and, on an application for leave to issue such execution, all such accounts and inquiries may be directed to be taken and made and directions given as may be just.

10. Suit against person carrying on business in name other than his own. Any person carrying on business in a name or style other than his own name may be sued in such name or style as if it were a firm name ; and, so far as the nature of the case will permit, all rules under this Order shall apply.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

ORDER XXXI

SUITS BY OR AGAINST TRUSTEES, EXECUTORS AND ADMINISTRATORS

1. Representation of beneficiaries in suits concerning property vested in trustees etc. In all suits concerning property vested in a trustee, executor or administrator, where the contention is between the persons beneficially interested in such property and a third person, the trustee, executor or administrator shall represent the persons so interested, and it shall not ordinarily be necessary to make them parties to the suit. But the Court may, if it thinks fit, order them or any of them to be made parties.

2. Joinder of trustees, executors and administrators. Where there are several trustees, executors or administrators, they shall all be made parties to a suit against one or more of them:

Provided that the executors who have not proved their testator's will, and trustees, executors and administrators outside [1][Pakistan], need not be made parties.

3. Husband of married executrix not to join. Unless the Court directs otherwise, the husband of a married trustee, administratrix or executrix shall not as such be a party to a suit by or against her.

ORDER XXXII

SUITS BY OR AGAINST MINORS AND PERSONS OF UNSOUND MIND

1. Minor to sue by next friend. Every suit by a minor shall be instituted in his name by a person who in such suit shall be called the next friend of the minor.

2. Where suit is instituted without next friend, plaint to be taken off the file.—(1) Where a suit is instituted by or on behalf of a minor without a next friend, the defendant may apply to have the plaint taken off the file, with costs to be paid by the pleader or other person by whom it was presented.

(2) Notice of such application shall be given to such person, and the Court, after hearing his objections (if any), may make such order in the matter as it thinks fit.

3. Guardian for the suit to be appointed by Court for minor defendant.—(1) Where the defendant is a minor, the Court, on being satisfied of the fact of his minority, shall appoint a proper person to be guardian for the suit for such minor.

(2) An order for the appointment of a guardian for the suit may be obtained upon application in the name and on behalf of the minor or by the plaintiff.

(3) Such application shall be supported by an affidavit verifying the fact that the proposed guardian has no interest in the matters in controversy in the suit adverse to that of the minor and that he is a fit person to be so appointed.

(4) No order shall be made on any application under this rule except upon notice to the minor and to any guardian of the minor appointed or declared by an authority competent in that behalf, or,

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

where there is no such guardian, upon notice to the father or other natural guardian of the minor, or, where there is no father or other natural guardian, to the person in whose care the minor is, and after hearing any objection which may be urged on behalf of any person served with notice under this sub-rule.

[1][(5) A person appointed under sub-rule (1) to be guardian for the suit for a minor shall, unless his appointment is terminated by retirement, removal or death, continue as such throughout all proceedings arising out of the suit including proceedings in any appellate or revisional Court and any proceedings in the execution of a decree.].

4. Who may act as next friend or be appointed guardian for the suit.—(1) Any person who is of sound mind and has attained majority may act as next friend of a minor or as his guardian for the suit:

Provided that the interest of such person is not adverse to that of the minor and that he is not, in the case of a next friend, a defendant, or, in the case of a guardian for the suit, a plaintiff.

(2) Where a minor has a guardian appointed or declared by competent authority, no person other than such guardian shall act as the next friend of the minor or be appointed his guardian for the suit unless the Court considers for reasons to be recorded, that it is for the minor's welfare that another person be permitted to act or be appointed, as the case may be.

(3) No person shall without his consent be appointed guardian for the suit.

(4) Where there is no other person fit and willing to act as guardian for the suit, the Court may appoint any of its officers to be such guardian, and may direct that the costs to be incurred by such officer in the performance of his duties as such guardian shall be borne either by the parties or by any one or more of the parties to the suit, or out of any fund in Court in which the minor is interested, and may give directions for the repayment of allowance of such costs as justice and the circumstances of the case may require.

5. Representation of minor by next friend or guardian for the suit.—(1) Every application to the Court on behalf of a minor, other than an application under rule 10, sub-rule (2), shall be made by his next friend or by his guardian for the suit.

(2) Every order made in a suit or on any application, before the Court in or by which a minor is in any way concerned or affected, without such minor being represented by a next friend or guardian for the suit, as the case may be, may be discharged and, where the pleader of the party at whose instance such order was obtained knew, or might reasonably have known, the fact of such minority, with costs to be paid by such pleader.

6. Receipt by next friend or guardian for the suit of property under decree for minor.—(1) A next friend or guardian for the suit shall not, without the leave of the Court, receive any money or other movable property on behalf of a minor either—

(a) by way of compromise before decree or order, or

(b) under a decree or order in favour of the minor.

[1]Sub-section (3) ins. by the Code of Civil Procedure (Third Amdt.) Act, 1937 (XVI of 1937), s.2.

(2) Where the next friend or guardian for the suit has not been appointed or declared by competent authority to be guardian of the property of the minor, or, having been so appointed or declared, is under any disability known to the Court to receive the money or other moveable property, the Court shall, if it grants him leave to receive the property, require such security and give such directions as will, in its opinion, sufficiently protect the property from waste and ensure its proper application.

7. Agreement or compromise by next friend or guardian for the suit.—(1) No next friend or guardian for the suit shall, without the leave of the Court, expressly recorded in the proceedings, enter into any agreement or compromise on behalf of a minor with reference to the suit in which he acts as next friend or guardian.

(2) Any such agreement or compromise entered into without the leave of the Court so recorded shall be voidable against all parties other than the minor.

8. Retirement of next friend.—(1) Unless otherwise ordered by the Court, a next friend shall not retire without first procuring a fit person to be put in his place and giving security for the costs already incurred.

(2) The application for the appointment of a new next friend shall be supported by an affidavit showing the fitness of the person proposed, and also that he has no interest adverse to that of the minor.

9. Removal of next friend.—(1) Where the interest of the next friend of a minor is adverse to that of the minor or where he is so connected with a defendant whose interest is adverse to that of the minor as to make it unlikely that the minor's interest will be properly protected by him, or where he does not do his duty, or, during the pendency of the suit, ceases to reside within [1][Pakistan], or for any other sufficient cause, application may be made on behalf of the minor or by a defendant for his removal; and the Court, if satisfied of the sufficiency of the cause assigned, may order the next friend to be removed accordingly, and make such other order as to costs as it thinks fit.

(2) Where the next friend is not a guardian appointed or declared by an authority competent in this behalf, and an application is made by a guardian so appointed or declared, who desires to be himself appointed in the place of the next friend, the Court shall remove, the next friend unless it considers, for reasons to be recorded by it, that the guardian ought not to be appointed the next friend of the minor, and shall thereupon appoint the applicant to be next friend in his place upon such terms as to the costs already incurred in the suit as it thinks fit.

10. Stay of proceedings on removal, etc., of next friend.—(1) On the retirement, removal or death of the next friend of a minor, further proceedings shall be stayed until the appointment of a next friend in his place.

(2) Where the pleader of such minor omits, within a reasonable time, to take steps to get a new next friend appointed, any person interested in the minor or in the matter in issue may apply to the Court for the appointment of one, and the Court may appoint such person as it thinks fit.

11. Retirement, removal or death of guardian for the suit.—(1) Where the guardian for the suit desires to retire or does not do his duty, or where other sufficient ground is made to appear, the Court may permit such guardian to retire or may remove him, and may make such order as to costs as it thinks fit.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

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(2) Where the guardian for the suit retires, dies or is removed by the Court during the pendency of the suit, the Court shall appoint a new guardian in his place.

12. Course to be followed by minor plaintiff or applicant on attaining majority.— (1) A minor plaintiff or a minor not a party to a suit on whose behalf an application is pending shall, on attaining majority, elect whether he will proceed with the suit or application.

(2) Where he elects to proceed with the suit or application, he shall apply for an order discharging the next friend and for leave to proceed in his own name.

(3) The title of the suit or application shall in such case may be corrected so as to read henceforth thus:—

"A. B., late a minor, by C.D., his next friend, but now having attained majority."

(4) Where he elects to abandon the suit or application, he shall, if a sole plaintiff or sole applicant, apply for an order to dismiss the suit or application on repayment of the costs incurred by the defendant or opposite party or which may have been paid by his next friend.

(5) Any application under this rule may be made *ex parte*: but no order discharging a next friend and permitting a minor plaintiff to proceed in his own name shall be made without notice to the next friend.

13. Where minor co-plaintiff attainig majority desires to repudiate suit.— (1) Where a minor co-plaintiff on attaining majority desires to repudiate the suit, he shall apply to have his name struck out as co-plaintiff; and the Court, if it finds that he is not a necessary party, shall dismiss him from the suit on such terms as to costs or otherwise as it thinks fit.

(2) Notice of the application shall be served on the next friend, on any co-plaintiff and on the defendant.

(3) The costs of all parties of such application, and of all or any proceedings theretofore had in the suit, shall be paid by such persons as the Court directs.

(4) Where the applicant is a necessary party to the suit, the Court may direct him to be made a defendant.

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14. Unreasonable or improper suit.— (1) A minor on attaining majority may, if a sole plaintiff, apply that a suit instituted in his name by his next friend be dismissed on the ground that it was unreasonable or improper.

(2) Notice of the application shall be served on all the parties concerned; and the Court, upon being satisfied of such unreasonableness or impropriety, may grant the application and order the next friend to pay the costs of all parties in respect of the application and of anything done in the suit, or make such other order as it thinks fit.

15. Application of rules to persons of unsound mind. The provisions contained in rules 1 to 14, so far as they are applicable, shall extend to persons adjudged to be of unsound mind and to persons who though not so adjudged are found by the Court on inquiry, by reason of unsoundness of mind or mental infirmity, to be incapable of protecting their interests when suing or being sued.

[1]**[16. Certain laws not to be affected.** Nothing in this Order shall be construed to affect or in any way derogate from the provisions of any local law for the time being in force relating to suits by or against minors or by or against lunatics or other persons of unsound mind.]

ORDER XXXIII

SUITS BY PAUPERS

1. Suits may be instituted in *forma pauperis*. Subject to the following provisions, any suit may be instituted by a pauper.

Explanation.— A person is a "pauper" when he is not possessed of sufficient means to enable him to pay the fee prescribed by law for the plaint in such suit, or, where no such fee is prescribed, when he is not entitled to property worth [2][one thousand] rupees other than his necessary wearing-apparel and the subject-matter of the suit.

2. Contents of application. Every application for permission to sue as a pauper shall contain the particulars required in regard to plaints in suits: a schedule of any moveable or immoveable property belonging to the applicant, with the estimated value thereof, shall be annexed thereto; and it shall be signed and verified in the manner prescribed for the signing and verification of pleadings.

3. Presentation of application. Notwithstanding anything contained in these rules, the application shall be presented to the Court by the applicant in person, unless he is exempted from appearing in Court, in which case the application may be presented by an authorised agent who can answer all material questions relating to the application, and who may be examined in the same manner as the party represented by him might have been examined had such party attended in person.

4. Examination of applicant.— (1) Where the application is in proper form and duly presented, the Court may, if it thinks fit, examine the applicant ,or his agent when the applicant is allowed to appear by agent, regarding the merits of the claim and the property of the applicant.

(2) If presented by agent, Court may order applicant to be examined by commission. Where the application is presented by an agent, the Court may, if it thinks fit, order that the applicant be examined by a commission in the manner in which the examination of an absent witness may be taken.

5. Rejection of applications. The Court shall reject an application for permission to sue as a pauper—

(a) where it is not framed and presented in the manner prescribed by rules 2 and 3, or

(b) where the applicant is not a pauper, or

(c) where he has, within two months next before the presentation of the application, disposed of any property fraudulently or in order to be able to apply for permission to sue as a pauper, or

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and second Sch.
[2]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch.

(d) where his allegations do not show a cause of action, or

(e) where he has entered into any agreement with reference to the subject-matter of the proposed suit under which any other person has obtained an interest in such subject-matter.

6. Notice of day for receiving evidence of applicants pauperism. Where the Court sees no reason to reject the application on any of the grounds stated in rule 5, it shall fix a day (of which at last ten day's clear notice shall be given to the opposite party and the Government pleader) for receiving such evidence as the applicant may adduce in proof of his pauperism, and for hearing any evidence which may be adduced in disproof thereof.

7. Procedure at hearing.— (1) On the day so fixed or as soon thereafter as may be convenient, the Court shall examine the witnesses (if any) produced by either party, and may examine the applicant or his agent, and shall make a memorandum of the substance of their evidence.

(2) The Court shall also hear any argument which the parties may desire to offer on the question whether, on the face of the application and of the evidence (if any) taken by the Court as herein provided, the applicant is or is not subject to any of the prohibitions specified in rule 5.

(3) The Court shall then either allow or refuse to allow the applicant to sue as a pauper.

8. Procedure if application admitted. Where the application is granted, it shall be numbered and registered, and shall be deemed the plaint in the suit, and the suit shall proceed in all other respects as a suit instituted in the ordinary manner, except that plaintiff shall not be liable to pay any court-fee (other than fee payable for service of process) in respect of any petition, appointment of a pleader or other proceeding connected with the suit.

9. Dispaupering. The Court may, on the application of the defendant, or of the Government pleader, of which seven day's clear notice in writing has been given to the plaintiff, order the plaintiff to be dispaupered—

(a) if he is guilty of vexatious or improper conduct in the course of the suit;

(b) if it appears that his means are such that he ought not to continue to sue as a pauper; or

(c) if he has entered into any agreement with reference to the subject-matter of the suit under which any other person has obtained an interest in such subject-matter.

10. Costs where pauper succeeds. Where the plaintiff succeeds in the suit, the Court shall calculate the amount of court-fees which would have been paid by the plaintiff if he had not been permitted to sue as a pauper; such amount shall be recoverable by the [1][Provincial Government] from any party ordered by the decree to pay the same, and shall be a first charge on the subject-matter of the suit.

[1]Subs. by A.O., 1937, for "Govt."

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11. Procedure where pauper fails. Where the plaintiff fails in the suit or is dispaupered, or where the suit is withdrawn or dismissed,—

(a) because the summons for the defendant to appear and answer has not been served upon him in consequence of the failure of the plaintiff to pay the court fee or postal charges (if any) chargeable for such service, or

(b) because the plaintiff does not appear when the suit is called on for hearing,

the Court shall order the plaintiff, or any person added as a co-plaintiff to the suit, to pay the court fees which would have been paid by the plaintiff if he had not been permitted to sue as a pauper.

[1][**11A. Procedure where pauper suit abates.** Where the suit abates by reason of the death of the plaintiff or of any person added as a co-plaintiff the Court shall order that the amount of court-fees which would have been paid by the plaintiff if he had not been permitted to sue as a pauper shall be recoverable by the Provincial Government from the estate of the deceased plaintiff.]

12. Provincial Government may apply for payment or court-fees. The [2][Provincial Government] shall have the right at any time to apply to the Court to make an order for the payment of court-fees under rule 10, [2][rule 11 or rule 11-A].

13. Provincial Government to be deemed a party. All matters arising between the [2][Provincial Government] and any party to the suit under rule 10, rule 11, [2][rule 11A] or rule 12 shall be deemed to be questions arising between the parties to the suit within the meaning of section 47.

[3][**14. Recovery of amount of court-fees.** Where an order is made under rule 10, rule 11 or rule 11A the Court shall forthwith cause a copy of the decree or order to be forwarded to the Collector, who may, without prejudice to any other mode of recovery, recover the amount of court-fees specified therein from the person or property liable for the payment as if it were an arrear of land revenue.]

15. Refusal to allow applicant to sue as pauper to bar subsequent application of like nature. An order refusing to allow the applicant to sue as a pauper shall be a bar to any subsequent application of the like nature by him in respect of the same right to sue; but the applicant shall be at liberty to institute a suit in the ordinary manner in respect of such right, provided that he first pays the costs (if any) incurred by the [2][Provincial Government] and by the opposite party in opposing his application for leave to sue as a pauper.

16. Costs. The costs of an application for permission to sue as a pauper and of an inquiry into pauperism shall be costs in the suit.

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[1]Rule 11A ins. by the Code of Civil Procedure (Second Amdt.) Act, 1942 (24 of 1942), s.2.
[2]Subs. by A.O., 1937.
[3]Subs. by Act 24 of 1942, s.2, for the Original s. 14.

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ORDER XXXIV

SUITS RELATING TO MORTGAGES OF IMMOVEABLE PROPERTY

1. Parties to suits for foreclosure, sale and redemption. Subject to the provisions of this Code, all persons having an interest either in the mortgage-security or in the right of redemption shall be joined as parties to any suit relating to the mortgage.

Explanation.— A puisne mortgagee may sue for foreclosure or for sale without making the prior mortgagee a party to the suit; and a prior mortgagee need not be joined in a suit to redeem a subsequent mortgage.

1[2. Preliminary decree in foreclosure suit. In a suit for foreclosure, if the plaintiff succeeds, the Court shall pass a preliminary decree—

(a) Ordering that an account be taken of what was due to the plaintiff at the date of such decree for—

(i) principal and interest on the mortgage,

(ii) the costs of suit, if any, awarded to him, and

(iii) other costs, charges and expenses properly incurred by him up to that date in respect of his mortgage-security, together with interest thereon; or

(b) declaring the amount so due at that date; and

(c) directing—

(i) that, if the defendant pays into Court the amount so found or declared due on or before such date as the Court may fix within six months from the date on which the Court confirms and countersigns the account taken under clause (a), or from the date on which such amount is declared in Court under clause (b), as the case may be, and thereafter pays such amount as may be adjudged due in respect of subsequent costs, charges and expenses as provided in rule 10, together with subsequent interest on such sums respectively as provided in rule 11, the plaintiff shall deliver up to the defendant, or to such person as the defendant appoints, all documents in his possession or power relating to the mortgaged property, and shall, if so required, re-transfer the property to the defendant at his cost free from the mortgage and from all encumbrances created by the plaintiff or any person claiming under him, or, where the plaintiff claims, by derived title, by those under whom he claims, and shall also, if necessary, put the defendant in possession of the property; and

(ii) that, if payment of the amount found or declared due under or by the preliminary decree is not made on or before the date so fixed, or the defendant fails to pay within such time as the Court may fix, the

[1]Rules 2 to 8 were subs. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (XXI of 1929), s.4.

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amount adjudged due in respect of subsequent costs, charges, expenses and interest, the plaintiff shall be entitled to apply for a final decree debarring the defendant from all right to redeem the property.

(2) The Court may, on good cause shown and upon terms to be fixed by the Court, from time to time, at any time before a final decree is passed, extend the time fixed for the payment of the amount found or declared due under sub-rule (1) or of the amount adjudged due in respect of subsequent costs, charges, expenses and interest.

(3) Where, in a suit for foreclosure, subsequent mortgagees or persons deriving title from, or subrogated to the rights of, any such mortgagees are joined as parties, the preliminary decree shall provide for the adjudication of the respective rights and liabilities of the parties to the suit in the manner and form set forth in Form No.9 or Form No.10, as the case may be, of Appendix D with such variations as the circumstances of the case may require.

3. Final decree in foreclosure suit.—(1) Where, before a final decree debarring the defendant from all right to redeem the mortgaged property has been passed, the defendant makes payment into Court of all amounts due from him under sub-rule (1) of rule 2, the Court shall, on application made by the defendant in this behalf, pass a final decree—

(a) ordering the plaintiff to deliver up the documents referred to in the preliminary decree,

and, if necessary,—

(b) ordering him to re-transfer at the cost of the defendant the mortgaged property as directed in the said decree, and also, if necessary,—

(c) ordering him to put the defendant in possession of the property.

(2) where payment in accordance with sub-rule (1) has not been made, the Court shall, on application made by the plaintiff in this behalf, pass a final decree declaring that the defendant and all persons claiming through or under him are debarred from all right to redeem the mortgaged property and also, if necessary, ordering the defendant to put the plaintiff in possession of the property.

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(3) On the passing of a final decree under sub-rule (2), all liabilities to which the defendant is subject in respect of the mortgage or on account of the suit shall be deemed to have been discharged.

4. Preliminary decree in suit for sale.—(1) In a suit for sale, if the plaintiff succeeds, the Court shall pass a preliminary decree to the effect mentioned in clauses (a), (b) and (c) (i) of sub-rule (1) of rule 2, and further directing that, in default of the defendant paying as therein mentioned, the plaintiff shall be entitled to apply for a final decree directing that the mortgaged property or a sufficient part thereof be sold, and the proceeds of the sale (after deduction therefrom of the expenses of the sale) be paid into Court and applied in payment of what has been found or declared under or by the preliminary decree due to the plaintiff, together with such amount as may have been adjudged due in respect of subsequent costs, charges, expenses and interest, and the balance, if any, be paid to the defendant or other persons entitled to receive the same.

(2) The Court may, on good cause shown and upon terms to be fixed by the Court, from time to time, at any time before at final decree for sale is passed, extend the time fixed for the payment of the amount found or declared due under sub-rule (1) or of the amount adjudged due in respect of subsequent costs, charges, expenses and interest.

(3) Power to decree sale in foreclosure suit. In a suit for foreclosure in the case of an anomalous mortgage, if the plaintiff succeeds, the Court may, at the instance of any party to the suit or of any other person interested in the mortgage-security or the right of redemption, pass a like decree (in lieu of a decree for foreclosure) on such terms as it thinks fit, including the deposit in Court of a reasonable sum fixed by the Court to meet the expenses of the sale and to secure the performance of the terms.

(4) Where, in a suit for sale or a suit for foreclosure in which sale is ordered, subsequent mortgagees or persons deriving title from, or subrogated to the rights of, any such mortgagees are joined as parties, the preliminary decree referred to in sub-rule (1) shall provide for the adjudication of the respective rights and liabilities of the parties to the suit in the manner and form set forth in Form, No.9, Form No.10 or Form No.11, as the case may be, of Appendix D with such variations as the circumstances of the case may require.

5. Final decree in suit for sale.— (1) Where, on or before the day fixed or at any time before the confirmation of a sale made in pursuance of a final decree passed under sub-rule (3) of this rule, the defendant makes payment into Court of all amounts due from him under sub-sule (1) of rule 4, the Court shall, on application made by the defendant in this behalf, pass a final decree or, if such decree has been passed, an order—

(a) ordering the plaintiff to deliver up the documents referred to in the preliminary decree,

and if necessary,—

(b) ordering him to transfer the mortgaged property as directed in the said decree, and,

also, if necessary,—

(c) ordering him to put the defendant in possession of the property.

(2) where the mortgaged property or part thereof has been sold in pursuance of a decree passed under sub-rule (3) of this rule, the Court shall not pass an order under sub-rule (1) of this rule, unless the defendant, in addition to the amount mentioned in sub-rule (1), deposits in Court for payment to the purchaser a sum equal to five per cent of the amount of the purchase-money paid into Court by the purchaser.

Where such deposit has been made, the purchaser shall be entitled to an order for re-payment of the amount of the purchase-money paid into Court by him, together with a sum equal to five per cent, thereof.

(3) Where payment in accordance with sub-rule (1) has not been made, the Court shall, on application made by the plaintiff in this behalf, pass a final decree directing that the mortgaged property or a sufficient part thereof be sold, and that the proceeds of the sale be dealt with in the manner provided in sub-rule (1) of rule 4.

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6. Recovery of balance due on mortgage in suit for sale. Where the net proceeds of any sale held under the last preceding rule are found insufficient to pay the amount due to the plaintiff, the Court, on application by him may, if the balance is legally recoverable from the defendant otherwise than out of the property sold, pass a decree for such balance.

7. Preliminary decree in redemption suit.— (1) In a suit for redemption, if the plaintiff succeeds, the Court shall pass a preliminary decree—

(a) ordering that an account be taken of what was due to the defendant at the date of such decree for—

(i) principal and interest on the mortgage,

(ii) the costs of suit, if any, awarded to him, and

(iii) other costs, charges and expenses properly incurred by him up to that date, in respect of his mortgage security, together with interest thereon; or

(b) declaring the amount so due at that date; and

(c) directing—

(i) that, if the plaintiff pays into Court the amount so found or declared due on or before such date as the Court may fix within six months from the date on which the Court confirms and countersigns the account taken under clause (a), or from the date on which such amount is declared in Court under clause (b), as the case may be, and thereafter pays such amount as may be adjudged due in respect of subsequent costs, charges and expenses as provided in rule 10 together with subsequent interest on such sums respectively as provided in rule 11, the defendant shall deliver up the plaintiff, or to such person as the plaintiff appoints, all documents in his possession or power relating to the mortgaged property, and shall, if so required, re-transfer the property to the plaintiff at his cost free from the mortgage and from all encumbrances created by the defendant or any person claiming under him, or where the defendant claims by derived title, by those under whom he claims, and shall also if necessary, put the plaintiff in possession of the property; and

(ii) that, if payment of the amount found or declared due under or by the preliminary decree is not made on or before the date so fixed, or the plaintiff fails to pay, within such time as the Court may fix, the amount adjudged due in respect of subsequent costs, charges, expenses, and interest, the defendant shall be entitled to apply for a final decree—

(a) in the case of a mortgage other than a usufructuary mortgage, a mortgage by conditional sale, or an anomalous mortgage the terms of which provide for foreclosure only and not for sale, that the mortgaged property be sold, or

(b) in the case of a mortgage by conditional sale or such an anomalous mortgage as aforesaid, that the plaintiff be debarred from all rights to redeem the property.

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(3) The Court may, on good cause shown and upon terms to be fixed by the Court, from time to time, at any time before the passing of a final decree for foreclosure or sale, as the case may be, extend the time fixed for the payment of the amount found or declared due under sub-rule (1) or of the amount adjudged due in respect of subsequent costs, charges, expenses and interest.

8. Final decree in redemption suit.— (1) Where, before a final decree debarring the plaintiff from all right to redeem the mortgaged property has been passed or before the confirmation of a sale held in pursuance of a final decree passed under sub-rule (3) of this rule, the plaintiff makes payment into Court of all amounts due from him under sub-rule (1) of rule 7, the Court shall, on application made by the plaintiff in this behalf, pass a final decree or, if such decree has been passed an order—

(a) ordering the defendant to deliver up the documents referred to in the preliminary decree.

and, if necessary,—

(b) ordering him to re-transfer at the cost of the plaintiff the mortgaged property as directed in the said decree,

and, also, if necessary,—

(c) ordering him to put the plaintiff in possession of the property.

(2) Where the mortgaged property or a part thereof has been sold in pursuance of a decree passed under, sub-rule (3) of this rule, the Court shall not pass an order under sub-rule (1) of this rule, unless the plaintiff, in addition to the amount mentioned is sub-rule (1), deposits in Court for payment to the purchaser a sum equal to five per cent of the amount of the purchase-money paid into Court by the purchaser.

Where such deposit has been made, the purchaser shall be entitled to an order for repayment of the amount of the purchase-money paid into Court by him, together with a sum equal to five per cent thereof.

(3) Where payment in accordance with sub-rule (1) has not been made, the Court shall, on application made by the defendant in this behalf,—

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(a) in the case of a mortgage by conditional sale or of such an anomalous mortgage as is hereinbefore referred to in rule 7, pass a final decree declaring that the plaintiff and all persons claiming under him are debarred from all right to redeem the mortgaged property and, also, if necessary, ordering the plaintiff to put the defendant in possession of the mortgaged property; or

(b) in the case of any other mortgage, not being a usufructuary mortgage, pass a final decree that the mortgaged property or a sufficient part thereof be sold, and the proceeds of the sale (after deduction therefrom of the expenses of the sale) be paid into Court and applied in payment of what is found due to the defendant, and the balance, if any, be paid to the plaintiff or other persons entitled to receive the same.]

[1][**8A Recovery of balance due on mortgage in suit for redemption.** Where the net proceeds of any sale held under the last preceding rule are found insufficient to pay the amount due to the defendant, the Court, on application by him, may, if the balance is legally recoverable from the plaintiff otherwise than out of the property sold, pass a decree for such balance.]

9. Decree where nothing is found due or where mortgagee has been over paid. Notwithstanding anything hereinbefore contained, if it appears, upon taking the account referred to in rule 7, that nothing is due to the defendant or that he has been overpaid, the Court shall pass a decree directing the defendant, if so required, to re-transfer the property and to pay to the plaintiff the amount which may be found due to him: and the plaintiff shall, if necessary, be put in possession of the mortgaged property.

[1][**10. Costs of mortgagee subsequent to decree.** In finally adjusting the amount to be paid to a mortgagee in case of a foreclosure, sale or redemption, the Court shall, unless in the case of costs or the suit the conduct of the mortgagee has been such as to disentitle him thereto, add to the mortgage-money such costs of the suit and other costs, charges and expenses as have been properly incurred by him since the date of the preliminary decree for foreclosure, sale or redemption up to the time of actual payment.

11. Payment of interest. In any decree passed in a suit for foreclosure, sale or redemption, where interest is legally recoverable, the Court may order payment of interest to the mortgagee as follows, namely:—

(a) interest upto the date on or before which payment of the amount found or declared due is under the preliminary decree to be made by the mortgagor or other person redeeming the mortgage—

(i) on the principal amount found or declared due on the mortgage, at the rate payable on the principal, or, where no such rate is fixed, at such rate as the Court deems reasonable,

(ii) on the amount of the costs of the suit awarded to the mortgagee, at such rate as the Court deems reasonable from the date of the preliminary decree, and

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(iii) on the amount adjudged due to the mortgagee for costs, charges and expenses properly incurred by the mortgagee in respect of the mortgage-security up to the date of the preliminary decree and added to the mortgage money at the rate agreed between the parties, or, failing such rate, at the same rate as is payable on the principle, or failing both such rates, at nine per cent per annum; and

(b) subsequent interest up to the date of realization or actual payment at such rate as the Court deems reasonable—

(i) on the aggregate of the principal sums specified in clause (a) and of the interest thereon as calculated in accordance with that clause; and

[1]Ins. by the Transfer of Property (Amdt.) Supplementary Act, 1919 (21 of 1929), ss.5-6.

(ii) on the amount adjudged due to the mortgagee in respect of such further costs, charges and expenses as may be payable under rule 10.]

12. Sale of property subject to prior mortgage. Where any property the sale of which is directed under this Order is subject to a prior mortgage, the Court may, with the consent of the prior mortgagee, direct that the property be sold free from the same, giving to such prior mortgagee the same interest in the proceeds of the sale as he had in the property sold.

13. Application of proceeds.— (1) Such proceeds shall be brought into Court and applied as follows:—

first, in payment of all expenses incident to the sale or properly incurred in any attempted sale;

secondly, in payment of whatever is due to the prior mortgagee on account of the prior mortgage, and of costs, properly incurred in connection therewith;

thirdly, in payment of all interest due on account of the mortgage in consequence whereof the sale was directed, and of the cost of the suit in which the decree directing the sale was made;

fourthly, in payment of the principal money due on account of that mortgage; and

lastly, the residue (if any) shall be paid to the person proving himself to the interested in the property sold, or if there are more such persons than one, then to such persons according to their respective interests therein or upon their joint receipt.

(2) Nothing in this rule or in rule 12 shall be deemed to affect the powers conferred by section 57 of the Transfer of Property Act, 1882 (IV of 1882).

14. Suit for sale necessary for bringing mortgaged property to sale.— (1) Where a mortgagee has obtained a decree for the payment of money in satisfaction of a claim arising under the mortgage, he shall not be entitled to bring the mortgaged property to sale otherwise than by instituting a suit for sale in enforcement of the mortgage, and he may institute such suit notwithstanding anything contained in Order II, rule 2.

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(2) Nothing in sub-rule (1) shall apply to any territories to which the Transfer of Property Act, 1882 (IV of 1882), has not been extended.

[1][**15. Mortgages by the deposit of title-deeds and charges.** All the provisions contained in this Order which apply to a simple mortgage shall, so far as may be, apply to a mortgage by deposit of title- deeds within the meaning of section 58, and to a charge within the meaning of section 100 of the Transfer of Property Act, 1882 (IV of 1882)]

———

[1]Subs. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (XXI of 1929), s.7.

ORDER XXXV

INTERPLEADER

1. Plaint in interpleader-suits. In every suit of interpleader the plaint shall, in addition to other statements necessary for plaints, state—

(a) that the plaintiff claims no interest in the subject-matter in dispute other than for charges or costs;

(b) the claims made by the defendants severally ; and

(c) that there is no collusion between the plaintiff and any of the defendants.

2. Payment of thing claimed into Court. Where the thing claimed is capable of being paid into Court or placed in the custody of the Court, the plaintiff may be required to so pay or place it before he can be entitled to any order in the suit.

3. Procedure where defendant issuing plaintiff. Where any of the defendants in an interpleader-suit is actually suing the plaintiff in respect of the subject-matter of such suit, the Court in which the suit against the plaintiff is pending shall, on being informed by the Court in which the interpleader-suit has been instituted, stay the proceedings as against him; and his costs in the suit so stayed may be provided for in such suit; but if, and in so far as, they are not provided for in that suit, they may be added to his costs incurred in the interpleader-suit.

4. Procedure at first hearing.— (1) At the first hearing the Court may—

(a) declare that the plaintiff is discharged from all liability to the defendants in respect of the thing claimed, award him his costs, and dismiss him from the suit; or

(b) if it thinks that justice or convenience so require, retain all parties until the final disposal of the suit.

(2) Where the Court finds that the admissions of the parties or other evidence enable it to do so, it may adjudicate the title to the thing claimed.

(3) Where the admissions of the parties do not enable the Court so to adjudicate, it may direct—

(a) that an issue or issues between the parties be framed and tried, and

(b) that any claimant be made a plaintiff in lieu of or in addition to the original plaintiff,

and shall proceed to try the suit in the ordinary manner.

5. Agents and tenants may not institute interpleader suits. Nothing in this Order shall be deemed to enable agents to sue their principals, or tenants to sue their landlords, for the purpose of compelling them to interplead with any persons other than persons making claim through such principals or the landlords.

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Illustrations

(a) A deposits a box of jewels with B as his agent. C alleges that the jewels were wrongfully obtained from him by A, and claims them from B. B cannot institute an interpleader-suit against A and C.

(b) A deposits a box of jewels with B as his agent. He then writes to C for the purpose of making the jewels a security for a debt due from himself to C. A afterwards alleges that C's debt is satisfied, and C alleges the contrary. Both claim the jewels from B. B may institute an interpleader-suit against A and C.

6. Charge for plaintiff's costs. Where the suit is properly instituted the Court may provide for the costs of the original plaintiff by giving him a charge on the thing claimed or in some other effectual way.

ORDER XXXVI

SPECIAL CASE

1. Power to state case for Court opinion.— (1) Parties claiming to be interested in the decision of any question of fact or law may enter into an agreement in writing stating such question in the form of a case for the opinion of the Court, and providing that, upon the finding of the Court with respect to such question,—

(a) a sum of money fixed by the parties or to be determined by the Court shall be paid by one of the parties to the other of them ; or

(b) some property, movable or immovable, specified in the agreement, shall be delivered by one of the parties to the other of them; or

(c) one or more of the parties shall do, or refrain from doing, some other particular act specified in the agreement.

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(2) Every case stated under this rule shall be divided into consecutively numbered paragraphs, and shall concisely state such facts and specify such documents as may be necessary to enable the Court to decide the question raised thereby.

2. Where value of subject-matter must be stated. Where the agreement is for the delivery of any property, or for the doing, or the refraining from doing, any particular act, the estimated value of the property to be delivered, or to which the act specified has reference, shall be stated in the agreement.

3. Agreement to be filed and regietered as suit.— (1) The agreement, if framed in accordance with the rules hereinbefore contained, may be filed in the Court which would have jurisdiction to entertain a suit, the amount or value of the subject-matter of which is the same as the amount or value of the subject-matter of the agreement.

(2) The agreement when so filed, shall be numbered and registered as a suit between one or more of the parties claiming to be interested as plaintiff or plaintiffs, and the other or the others of them as defendant or defendants; and notice shall be given to all the parties to the agreement, other than the party or parties by whom it was presented.

4. Parties to be subject to Court's jurisdiction. Where the agreement has been filed, the parties to it shall be subject to the jurisdiction of the Court and shall be bound by the statements contained therein.

5. Hearing and disposal of case.—(1) The case shall be set down for hearing as a suit instituted in the ordinary manner, and the provisions of this Code shall apply to such suits so far as the same are applicable.

(2) Where the Court is satisfied, after examination of the parties or after taking such evidence as it thinks fit,—

(a) that the agreement was duly executed by them,

(b) that they have a *bona fide* interest in the question stated therein, and

(c) that the same is fit to be decided,

it shall proceed to pronounce judgement thereon, in the same way as in an ordinary suit, and upon the judgement so pronounced a decree shall follow.

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ORDER XXXVII

SUMMARY PROCEDURE ON NEGOTIABLE INSTRUMENTS

[1]**[1. Application of Order.** This order shall apply only to the High Court [2][, to the District Court, and to any other Civil Court notified in this behalf by the High Court].]

2. Institution of summary suits upon bills of exchange, etc.—(1) All suits upon bills of exchange, hundies or promissory notes may, in case the plaintiff desires to proceed hereunder, be instituted by presenting a plaint in the form prescribed; but the summons shall be in Form No.4 in Appendix B or in such other form as may be from time to time prescribed.

(2) In any case in which the plaint and summons are in such forms, respectively the defendant shall not appear or defend the suit unless he obtains leave from a Judge as hereinafter provided so to appear and defend; and, in default of his obtaining such leave or of his appearance and defence in pursuance thereof, the allegations in the plaint shall be deemed to be admitted, and the plaintiff shall be entitled to a decree—

[3][(a) for the principal sum due on the instrument and for interest calculated in accordance with the provisions of section 79 or section 80, as the case may be, of the Negotiable Instruments Act, 1881, (XXVI of 1881) up to the date of the institution of the suit, or for the sum mentioned in the summons, whichever is less, and for interest up to the date of the decree at the same rate or at such other rate as the Court thinks fit; and

[1]The original rule 1 has successively been amended by A.O., 1937 A.O., 1949, the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*) and the civil Procedure and Limitation (Amdt.) Ordinance, 1961 (9 of 1961), s.2, to read as above.
[2]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch. for "and to the District Court".
[3]Subs. by the Negotiable Instruments (Interest) Act, 1926 (30 of 1926), section 4, for certain original words.

(b) for such subsequent interest, if any, as the Court may order under section 34 of this Code; and

(c) for such sum for costs as may be prescribed:

Provided that, if the plaintiff claims more than such fixed sum for costs, the costs shall be ascertained in the ordinary way.

(3) A decree passed under this rule may be executed forthwith.]

3. Defendant showing defence on merit to have leave to appear.— (1) The Court shall, upon application by the defendant, give leave to appear and to defend the suit, upon affidavits which disclose such facts as would make it incumbent on the holder to prove consideration, or such other facts as the Court may deem sufficient to support the application.

(2) Leave to defend may be given unconditionally or subject to such terms as to payment into Court, giving security, framing and recording issues or otherwise as the Court thinks fit.

[1][(3) The provisions of section 5 of the Limitation Act, 1908 (IX of 1908), shall apply to applications under sub-rule (1),].

4. Power to set aside decree. After decree the Court may, under special circumstances, set aside the decree, and if necessary stay or set aside execution, and may give leave to the defendant to appear to the summons and to defend the suit, if it seems reasonable to the Court so to do, and on such terms as the Court thinks fit.

5. Power to order bill, etc., to be deposited with officer Court. In any proceedings under this Order the Court may order the bill, hundi or note on which the suit is founded to be forthwith deposited with an officer of the Court, and may further order that all proceedings shall be stayed until the plaintiff gives security for the costs thereof.

6. Recovery of cost of nothing non-acceptance of dishonoured bill or note. The holder of every dishonoured bill of exchange or promissory note shall have the same remedies for the recovery of the expenses incurred in noting the same for non-acceptance or non-payment, or otherwise, by reason of such dishonour, as he has under this Order for the recovery of the amount of such bill or note.

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7. Procedure suits. Save as provided by this Order, the procedure in suits hereunder shall be the same as the procedure in suits instituted in the ordinary manner.

ORDER XXXVIII

ARREST AND ATTACHMENT BEFORE JUDGMENT

Arrest before Judgment

1. Where defendant may be called upon to furnish security for appearnce. Where at any stage of a suit, other than a suit of the nature referred to in section 16, clauses (a) to (d), the Court is satisfied, by affidavit or otherwise,—

[1]Added by the Code of Civil Procedure (Amdt.), Ordinance, 1980 (X of 1980), s.14.

(a) that the defendant, with intent to delay the plaintiff, or to avoid any process of the Court or to obstruct or delay the execution of any decree that may be passed against him,—

(i) has absconded or left the local limits of the jurisdiction of the Court, or

(ii) is about to abscond or leave the local limits of the jurisdiction of the Court, or

(iii) has disposed of or removed from the local limits of the jurisdiction of the Court his property or any part thereof, or

(b) that the defendant is about to leave [1][Pakistan] under circumstances affording reasonable probability that the plaintiff will or may thereby be obstructed or delayed in the execution of any decree that may be passed against the defendant in the suit,

the Court may issue a warrant to arrest the defendant and bring him before the Court to show cause why he should not furnish security for his appearance:

Provided that the defendant shall not be arrested if he pays to the officer entrusted with the execution of the warrant any sum specified in the warrant as sufficient to satisfy the plaintiff's claim; and such sum shall be held in deposit by the Court until the suit is disposed of or until the further order of the Court.

2. Security.—(1) Where the defendant fails to show such cause the Court shall order him either to deposit in Court money or other property sufficient to answer the claim against him, or to furnish security for his appearance at any time when called upon while the suit is pending and until satisfaction of any decree that may be passed against him in the suit, or make such order as it thinks fit, in regard to the sum which may have been paid by the defendant under the proviso to the last preceding rule.

(2) Every surety for the appearance of a defendant shall bind himself, in default of such appearance, to pay any sum of money which the defendant may be ordered to pay in the suit.

3. Procedure on application by surety to be discharged.—(1) A surety for the appearance of a defendant may at any time apply to the Court in which he became such surety to be discharged from his obligation.

(2) On such application being made, the Court shall summon the defendant to appear or, if it thinks fit, may issue a warrant for his arrest in the first instance.

(3) On the appearance of the defendant in pursuance of the summons or warrant, or on his voluntary surrender, the Court shall direct the surety to be discharged from his obligation, and shall call upon the defendant to find fresh security.

4. Procedure where defendant fails to furnish security or find fresh security. Where the defendant fails to comply with any order under rule 2 or rule 3, the Court may commit him to [2][* * *] prison until the decision of the suit or, where a decree is passed against the defendant, until the decree has been satisfied:

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".
[2]Omitted by Act XIV of 1994, s.11.

Provided that no person shall be detained in prison under this rule in any case for a longer period than six months, nor for a longer period than six weeks when the amount or value of the subject-matter of the suit does not exceed fifty rupees:

Provided also that no person shall be detained in prison under this rule after he has complied with such order.

Attachment before Judgment

5. Where defendant may be called upon to furnish security for production of property.— (1) Where, at any stage of a suit, the Court is satisfied, by affidavit or otherwise, that the defendant, with intent to obstruct or delay the execution of any decree that may be passed against him—

(a) is about to dispose of the whole or any part of his property, or

(b) is about to remove the whole or any part of his property from the local limits of the jurisdiction of the Court,

the Court may direct the defendant, within a time to be fixed by it, either to furnish security, in such sum as may be specified in the order, to produce and place at the disposal of the Court, when required, the said property or the value of the same, or such portion thereof as may be sufficient to satisfy the decree, or to appear and show cause why he should not furnish security.

(2) The plaintiff shall, unless the Court otherwise directs, specify the property required to be attached and the estimated value thereof.

(3) The Court may also in the order direct the conditional attachment of the whole or any portion of the property so specified.

6. Attachment where cause not shown or security not furnished.— (1) Where the defendant fails to show cause why he should not furnish security, or fails to furnish the security required, within the time fixed by the Court, the Court may order that the property specified, or such portion thereof as appears sufficient to satisfy any decree which may be passed in the suit, be attached.

(2) Where the defendant shows such cause or furnishes the required security, and the property specified or any portion of it has been attached, the Court shall order the attachment to be withdrawn, make such other order as it thinks fit.

7. Mode of making attachment. Save as otherwise expressly provided, the attachment shall be made in the manner provided for the attachment of property in execution of a decree.

8. Investigation of claim to property attached before judgment. Where any claim is preferred to property attached before judgment, such claim shall be investigated in the manner hereinbefore provided for the investigation of claims to property attached in execution of a decree for the payment of money.

9. Removal of attachemnt when security furnished or suit dismissed. Where an order is made for attachment before judgment, the Court shall order the attachment to be withdrawn when the defendant furnishes the security required, together with security for the costs of the attachment, or when the suit is dismissed.

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10. Attachment before judgment not to affect rights of strangers nor bar decree-holder from applying for sale. Attachment before judgment shall not affect the rights, existing prior to the attachment, of persons not parties to the suit, nor bar any person holding a decree against the defendant from applying for the sale of the property under attachment in execution of such decree.

11. Property attached before judgment not to be re-attached in execution of decree. Where property is under attachment by virtue of the provisions of this Order and a decree is subsequently passed in favour of the plaintiff, it shall not be necessary upon an application for execution of such decree to apply for a re-attachment of the property.

12. Agricultural produce not attachable before judgment. Nothing in this Order shall be deemed to authorise the plaintiff to apply for the attachment of any agricultural produce in the possession of an agriculturist, or to empower the Court to order the attachment or production of such produce.

[1][**13. Small Cause Court not to attach immoveable property.** Nothing in this Order shall be deemed to empower any Court of Small Causes to make an order for the attachment of immovable property.]

ORDER XXXIX

TEMPORARY INJUNCTIONS AND INTERLOCUTORY ORDERS

Temporary Injunctions

1. Cases in which temporary injunction may be granted. Where in any suit it is proved by affidavit or otherwise—

(a) that any property in dispute in a suit is in danger of being wasted, damaged or alienated by any party to the suit, or wrongfully sold in execution of a decree, or

(b) that the defendant threatens, or intends, to remove or dispose of his property with a view to defraud his creditors.

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the Court may by order grant a temporary injunction to restrain such act, or make such other order for the purpose of staying and preventing the wasting, damaging, alienation, sale, removal or disposition of the property as the Court thinks fit, until the disposal of the suit or until further orders.

2. Injunction to restrain repetition or continuance of breach.—(1) In any suit for restraining the defendant from committing a breach of contract or other injury of any kind, whether compensation is claimed in the suit or not, the plaintiff may, at any time after the commencement of the suit, and either before or after judgment, apply to the Court for a temporary injunction to restrain the defendant from committing the breach of contract or injury complained of, or any breach of contract or injury of a like kind arising out of the same contract or relating to the same property or right.

(2) The Court may by order grant such injunction, on such terms as to the duration of the injunction, keeping an account, giving security or otherwise, as the Court thinks fit.

[1]Ins. by the Small Cause Courts (Attachment of Immovable Property) Act, 1926 (I of 1926), s.4.

(3) In case of disobedience, or of breach of any such terms, the Court granting an injunction may order the property of the person guilty of such disobedience or breach to be attached, and may also order such person to be detained in [1][* * *] prison for a term not exceeding six months, unless in the meantime the Court directs his release.

(4) No attachment under this rule shall remain in force for more than one year, at the end of which time, if the disobedience or breach continues, the property attached may be sold, and out of the proceeds the Court may award such compensation as it thinks fit, and shall pay the balance, if any, to the party entitled thereto.

[1][(2A) An interim injunction passed under rules 1 or 2 in the absence of defendant shall not ordinarily exceed fifteen days:

Provided that such injunction may be extended for failure of its service on the defendant when such failure is not attributable to the plaintiff or when the defendant seeks time for defence of application for injunction.

(2B) The order of injunction made under rules 1 or 2 after hearing the parties or after notice to the defendant shall cease to have effect on the expiration of six months unless extended by the Court after hearing the parties again and for reasons to be recorded for such extension:

Provided that report of such extension shall be submitted to the High Court.]

[2][**3. Before granting injunction Court to direct notice to opposite party.** The Court shall in all cases, before granting an injunction direct notice of the application for the same to be given to the opposite-party:

[3][Provided that, except in the case of sale of goods for default in payment, at the stipulated time, of a debt in respect of which the goods were pledged with any bank, or where the injunction is to be granted against Government or a Government servant as such or any statutory authority, board or corporation set up or established by Government in any case not involving the ejectment of any person from, or the demolition of, any premises, the Court may, where it appears that the object of granting injunction would be defeted by the delay, dispense with such notice:

Provided further that the period of notice under this rule to Government or a Government servant as such or any statutory authority, board or corporation set up or established by Government shall not be less than two days nor exceed seven days.]

4. Order for injunction may be discharged, varied or set aside. Any order for an injunction may be discharged, or varied, or set aside by the Court, on application made thereto by any party dissatisfied with such order.

[4][**4A. Injunction to cease to be in force after certain period.** An injunction granted by a Court in a suit which seeks to question the validity or legal effect of any order made, proceedings taken or act done by any authority or person, which has been made, taken or done, or purports to have been made, taken or done, under any law which is specified in Part I of the First Schedule to the Constitution or relates to, or is connected with, assessment or collection of public revenues shall cease to have effect on the expiration of a period of [5][six months] following the day on which it is made,

[1]Omitted and Ins. by Act XIV of 1994,s.11.
[2]Subs. by the civil Procedure and Limitation (Amdt.) Ordinance, 1961 (9 of 1961), s.2, for the original rule3.
[3]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch. for the original provisos.
[4]Rule 4A ins. by the code of Civil Procedure (Amdt.) Act, 1976 (15 of 1976), s.2.
[5]Subs. by the code of Civil Procedure (Amdt.) Ordinance, 1977 (25 of 1977), s.2,f or "sixty days".

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unless the case is finally decided, or the injunction is discharged or set aside, by the Court earlier.

Explanation.— In this rule, 'public revenues' includes the dues of any bank owned by the Federal Government or of any corporation or undertaking owned or controlled by the Federal Government or a Provincial Government.]

5. Injuction to corporation binding on its officers. An injunction directed to a corporation is binding not only on the corporation itself, but also on all members and officers of the corporation whose personal action it seeks to restrain.

Interlocutory Orders

6. Power to order interim sale. The Court may, on the application of any party to a suit, order the sale, by any person named in such order, and in such manner and on such terms as it thinks fit, of any movable property, being the subject-matter of such suit, or attached before judgment in such suit, which is subject to speedy and natural decay, or which for any other just and sufficient cause it may be desirable to have sold at once.

7. Detention, preservation, inspection, etc., of subject-matter of suit.—(1) The Court may, on the application of any party to a suit, and on such terms as it thinks fit,—

(a) make an order for the detention, preservation or inspection of any property which is the subject-matter of such suit, or as to which any question may arise therein;

(b) for all or any of the purposes aforesaid authorise any person to enter upon or into any land or building in the possession of any other party to such suit; and

(c) for all or any of the purposes aforesaid authorise any samples to be taken, or any observation to be made or experiment to be tried, which may seem necessary or expedient for the purpose of obtaining full information or evidence.

(2) The provisions as to execution of process shall apply, *mutatis mutandis*, to persons authorised to enter under this rule.

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8. Application for such orders to be after notice.— (1) An application by the plaintiff for an order under rule 6 or rule 7 may be made after notice to the defendant at any time after institution of the suit.

(2) An application by the defendant for a like order may be made after notice to the plaintiff at any time after appearance.

9. When party may be put in immediate possession of land the subject-matter of suit. Where land paying revenue to Government, or a tenure liable to sale, is the subject matter of a suit, if the party in possession of such land or tenure neglects to pay the Government revenue, or the rent due to the proprietor of the tenure, as the case may be, and such land or tenure is consequently ordered to be sold, any other party to the suit claiming to have an interest in such land or tenure may, upon payment of the revenue or rent due previously to the sale (and with or without security at the discretion of the Court), be put in immediate possession of the land or tenure;

and the Court in its decree may award against the defaulter the amount so paid, with interest thereon at such rate as the Court thinks fit, or may charge the amount so paid, with interest thereon at such rate as the Court orders, in any adjustment of accounts which may be directed in the decree passed in the suit.

10. Deposit of money, etc., in Court. Where the subject-matter of a suit is money or some other thing capable of delivery, and any party thereto admits that he holds such money or other thing as a trustee for another party, or that it belongs or is due to another party, the Court may order the same to be deposited in Court or delivered to such last-named party, with or without security, subject to the further direction of the Court.

ORDER XL

APPOINTMENT OF RECEIVERS

1. Appointment of recievers.— (1) Where it appears to the Court to be just and convenient, the court may by order—

(a) appoint a receiver of any property, whether before or after decree;

(b) remove any person from the possession or custody of the property;

(c) commit the same to the possession, custody or management of the receiver; and

(d) confer upon the receiver all such powers, as to bringing and defending suits and for the realization, management, protection, preservation and improvement of the property, the collection of the rents and profits thereof, the application and disposal of such rents and profits, and the execution of documents as the owner himself has, or such of those powers as the Court thinks fit.

(2) Nothing in this rule shall authorise the Court to remove from the possession or custody of property any person whom any party to the suit has not present right so to remove.

2. Remuneration. The Court may by general or special order fix the amount to be paid as remuneration for the service of the receiver.

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3. Duties. Every receiver so appointed shall—

(a) furnish such security (if any) as the Court thinks fit, duly to account for what he shall receive in respect of the property;

(b) submit his accounts at such periods and in such form as the Court directs;

(c) pay the amount due from him as the Court directs; and

(d) be responsible for any loss occasioned to the property by his wilful default or gross negligence.

4. Enforcement of receiver's duties. Where a receiver—

(a) fails to submit his accounts at such periods and in such form as the Court directs, or

(b) fails to pay the amount due from him as the Court directs, or

(c) occasions loss to the property by his wilful default or gross negligence,

the Court may direct his property to be attached and may sell such property, and may apply the proceeds to make good any amount found to be due from him or any loss occasioned by him, and shall pay the balance (if any) to the receiver.

5. When Collector may be appointed receiver. Where the property is land paying revenue to the Government, or land of which the revenue has been assigned or redeemed and the Court considers that the interest of those concerned will be promoted by the management of the Collector, the Court may, with the consent of the Collector, appoint him to be receiver of such property.

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ORDER XLI

APPEALS FROM ORIGINAL DECREES

1. Form of appeal. What to accompany memorandum.— (1) Every appeal shall be preferred in the form of a memorandum signed by the appellant or his pleader and presented to the Court or to such officer as it appoints in this behalf. The memorandum shall be accompanied by a copy of the decree appealed from and (unless the Appellate Court dispenses therewith) of the judgment on which it is founded.

(2) Contents of memorandum. The memorandum shall set forth, concisely and under distinct heads, the grounds of objection to the decree appealed from without any argument or narrative; and such grounds shall be numbered consecutively.

2. Grounds which may be taken in appeal. The appellant shall not, except by leave of the Court, urge or be heard in support of any ground of objection not set forth in the memorandum of appeal; but the Appellate Court, in deciding the appeal, shall not be confined to the grounds of objection set forth in the memorandum of appeal or taken by leave of the Court under this rule:

Provided that the Court shall not rest its decision on any other ground unless the party who may be affected thereby has had a sufficient opportunity of contesting the case on that ground.

3. Rejection or amendment of memorandum.— (1) Where the memorandum of appeal is not drawn up in the manner hereinbefore prescribed, it may be rejected, or be returned to the appellant for the purpose of being amended within a time to be fixed by the Court or be amended then and there.

(2) Where the Court rejects any memorandum, it shall record the reasons for such rejection.

(3) Where a memorandum of appeal is amended, the Judge, or such officer as he appoints in this behalf, shall sign or initial the amendment.

4. One of several plaintiffs or defendants may obtain reversal of whole decree where it proceeds on ground common to all. Where there are more plaintiffs or more defendants than one in a suit, and the decree appealed from proceeds on any ground common to all the plaintiffs or to all the defendants, any one of the plaintiffs or of the defendants may appeal from the whole decree, and thereupon the Appellate Court may reverse or vary the decree in favour of all the plaintiffs or defendants, as the case may be.

Stay of Preceding and of Execution

5. Stay by Appellate Court.— (1) An appeal shall not operate as a stay of proceedings under a decree or order appealed from except so far as the Appellate Court may order, nor shall execution of a decree be stayed by reason only of an appeal having been preferred from the decree; but the Appellate Court may for sufficient cause order stay of execution of such decree.

(2) Stay by Court which passed the decree. Where an application is made for stay of execution of an appealable decree before the expiration of the time allowed for appealing therefrom, the Court which passed the decree may on sufficient cause being shown order the execution to be stayed.

(3) No order for stay of execution shall be made under sub-rule (1) or sub-rule (2) unless the Court making it is satisfied—

(a) that substantial loss may result to the party applying for stay of execution unless the order is made;

(b) that the application has been made without unreasonable delay; and

(c) that security has been given by the applicant for the due performance of such decree or order as may ultimately be binding upon him.

(4) Notwithstanding anything contained in sub-rule(3), the Court may make an *ex parte* order for stay of execution pending the hearing of the application.

6. Security in case of order for execution of decree appealed from.— (1) Where an order is made for the execution of a decree from which an appeal is pending, the Court which passed the decree shall, on sufficient cause being shown by the appellant, require security to be taken for the restitution of any property which may be or has been taken in execution of the decree or for the payment of the value of such property and for the due performance of the decree or order of the Appellate Court, or the Appellate Court may for like cause direct the Court which passed the decree to take such security.

(2) Where an order has been made for the sale of immovable property in execution of a decree, and an appeal is pending from such decree, the sale shall, on the application of the judgment-debtor to the Court which made the order, be stayed on such terms as to giving security or otherwise as the Court thinks fit until the appeal is dispose of.

[1]7. [*No security to be required from the Government or a public officer in certain cases.*] *Rep. by A.O., 1937.*

8. Exercise of powers in appeal from order made in execution of decree. The powers conferred by Rules 5 and 6 shall be exercisable where an appeal may be or has been preferred not from the decree but from an order made in execution of such decree [:][2]

[2][Provided that, where such appeal has been preferred by the judgment-debtor, he shall be required, unless the Court is of opinion that *prima facie* the appeal is one which must succeed owing to an error apparent on the face of the record,—

[1]*See* Order XXVII, rule 8A, supra.
[2]Subs. and added by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch. For, full-stop.

(a) in the case of a decree for the payment of money, to deposit the decretal amount or to furnish security for its payment; and

(b) in the case of any other decree, to furnish security for the due performance of the decree.]

Procedure on Admission of Appeal

9. Registry of memorandum of appeal.— (1) Where a memorandum of appeal is admitted, the Appellate Court or the proper officer or that Court shall endorse thereon the date of presentation, and shall register the appeal in a book to be kept for the purpose.

(2) Register of Appeals. Such book shall be called the Register of Appeals.

10. Appellate Court may require appellant to furnish security for costs.— (1) The Appellate court may, in its discretion, either before the respondent is called upon to appear and answer or afterwards on the application of the respondent, demand from the appellant security for the costs of the appeal, or of the original suit, or of both:

Where appellant resides out of Pakistan. Provided that the Court shall demand such security in all cases in which the appellant is residing out of [1][Pakistan], and is not possessed of any sufficient immovable property within [1][Pakistan] other than the property (if any) to which the appeal relates.

(2) Where such security is not furnished within such time as the Court orders, the Court shall reject the appeal.

11. Power to dismiss appeal without sending notice to Lower Court.— (1) The Appellate Court, after sending for the record if it thinks fit so to do, and after fixing a day for hearing the appellant or his pleader and hearing him accordingly if he appears on that day, may dismiss the appeal without sending notice to the Court from whose decree the appeal is preferred and without serving notice on the respondent or his pleader.

(2) If on the day fixed or any other day to which the hearing may be adjourned the appellant does not appear when the appeal is called on for hearing, the Court may make an order that the appeal be dismissed.

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(3) The dismissal of an appeal under this rule shall be notified to the Court from whose decree the appeal is preferred.

12. Day for hearing appeal.— (1) Unless the Appellate Court dismisses the appeal under rule 11, it shall fix a day for hearing the appeal.

(2) Such day shall be fixed with reference to the current business of the Court, the place of residence of the respondent, and the time necessary for the service of the notice of appeal, so as to allow the respondent sufficient time to appear and answer the appeal on such day.

13. Appellate Court to give notice to Court whose decree appealed from.— (1) Where the appeal is not dismissed under rule 11, the Appellate Court shall send notice of the appeal to the Court from whose decree the appeal is preferred.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955).

(2) Transmission of papers to Appellate Court. Where the appeal is from the decree of a Court, the records of which are not deposited in the Appellate Court, the Court receiving such notice shall send with all practicable dispatch all material papers, in the suit, or such papers as may be specially called for by the Appellate Court.

(3) Copies of exhibits in Court whose decree appealed from. Either party may apply in writing to the Court from whose decree the appeal is preferred, specifying any of the papers in such Court of which he requires copies to be made; and copies of such papers shall be made at the expense, of and given to, the applicant.

14. Publication and service of notice of day for hearing appeal.— (1) Notice of the day fixed under rule 12 shall be affixed in the Appellate Court-house, and a like notice shall be sent by the Appellate Court to the Court from whose decree the appeal is preferred, and shall be served on the respondent or on his pleader in the Appellate Court in the manner provided for the service on a defendant of a summons to appear and answer; and all the provisions applicable to such summons, and to proceedings with reference to the service thereof, shall apply to the service of such notice.

(2) Appellate Court may itself cause notice to be served. Instead of sending the notice to the Court from whose decree the appeal is preferred, the Appellate Court may itself cause the notice to be served on the respondent or his pleader under the provisions above referred to.

15. Contents of notice. The notice to the respondent shall declare that, if he does not appear in the Appellate Court on the day so fixed the appeal will be heard *ex parte*.

Procedure on Hearing

16. Right to begin.— (1) On the day fixed, or on any other day to which the hearing may be adjourned, the appellant shall be heard in support of the appeal.

(2) The Court shall then, if it does not dismiss the appeal at once, hear the respondent against the appeal, and in such case the appellant shall be entitled to reply.

17. Dismissal of appeal for appellant's default.— (1) Where on the day fixed, or on any other day to which the hearing may be adjourned, the appellant does not appear when the appeal is called on for hearing, the Court may make an order that the appeal be dismissed.

(2) Hearing appeal *ex-parte*. Where the appellant appears and the respondent does not appear, the appeal shall be heard *ex parte.*

18. Dismissal of appeal where notice not served in consequences of appellant's failure to deposit costs. Where on the day fixed, or on any other day to which the hearing may be adjourned, it is found that the notice to the respondent has not been served in consequence of the failure of the appellant to deposit, within the period fixed, the sum required to defray the cost of serving the notice, the Court may make an order that the appeal be dismissed:

Provided that no such order shall be made although the notice has not been served upon the respondent, if on any such day the respondent appears when the appeal is called on for hearing.

19. Readmission of appeal dismissed for default.— [1][(1)] Where an appeal is dismissed under rule11, sub-rule (2), or rule 17 or rule 18, the appellant may apply to the Appellate Court for the

[1]Re-numbered as sub-rule (1) of that rule by the Code of Civil Procedure (Amendt.) Act, 1990 (4 of 1990), s.2.

re-admission of the appeal; and where it is proved that he was prevented by any sufficient cause from appearing when the appeal was called on for hearing or from depositing the sum so required, the Court shall re-admit the appeal on such terms as to costs or otherwise as it thinks fit.

(2) The provisions of section 5 of the Limitation Act 1908 (IX of 1908) shall apply to an application for re-admission of an appeal dismissed under sub-rule (2) of rule 11 or sub-rule (1) of rule 17.

20. Power to adjourn hearing and direct persons appearing interested to be made respodents. Where it appears to the Court at the hearing that any person who was a party to the suit in the Court from whose decree the appeal is preferred, but who has not been made a party to the appeal, is interested in the result of the appeal, the Court may adjourn the hearing to a future day to be fixed by the Court and direct that such person be made a respondent.

21. Rehearing on application of respondent against whom *ex-parte* decree made.— [1][(1)] Where an appeal is heard ex parte and judgment is pronounced against the respondent, he may apply to the Appellate Court to re-hear the appeal; and, if he satisfies the Court that the notice was not duly served or that he was prevented by sufficient cause from appearing when the appeal was called on for hearing, the Court shall re-hear the appeal on such terms as to costs or otherwise as it thinks fit to impose upon him.

[2][(2) The provisions of section of 5 of the Limitation Act, 1908 (IX of 1908) shall apply to applications under sub-rule (1)].

22. Upon hearing, respondent may be object to decree as if he had preferred separate appeal.— (1) Any respondent, though he may not have appealed from any part of the decree, may not only support the decree on any of the grounds decided against him in the Court below, but take any cross- objection to the decree which he could have taken by way of appeal, provided he has filed such objection in the Appellate Court within one month from the date of service on him or his pleader of notice of the day fixed for hearing the appeal, or within such further time as the Appellate Court may see fit to allow.

(2) Form of objection and provisions applicable thereto. Such cross-objection shall be in the form of a memorandum and the provisions of rule 1, so far as they relate to the form and contents of the memorandum of appeal shall apply thereto.

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(3) Unless the respondent files with the objection a written acknowledgment from the party who may be affected by such objection or his pleader of having received a copy thereof, the Appellate Court shall cause a copy to be served, as soon as may be after the filing of the objection, on such party or his pleader at the expense of the respondent.

(4) Where, in any case in which any respondent has under this rule filed a memorandum of objection, the original appeal is withdrawn or is dismissed for default, the objection so filed may nevertheless be heard and determined after such notice to the other parties as the Court thinks fit.

(5) The provisions relating to pauper appeals shall, so far as they can be made applicable, apply to an objection under this rule.

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[1]Re-numbered as sub-rule (1) of that rule by the Code of Civil Procedure (Amendt.) Act, 1990 (4 of 1990),s.2.
[2]Sub-rule (2) added *ibid*.

23. Remand of case by Appellate Court. Where the Court from whose decree an appeal is preferred has disposed of the suit upon a preliminary point and the decree is reversed in appeal, the Appellate Court may, if it thinks fit, by order remand the case, and may further direct what issue or issues shall be tried in the case so remanded, and shall send a copy of its judgment and order to the Court from whose decree the appeal is preferred, with directions to re-admit the suit under its original number in the register of civil suits, and proceed to determine the suit; and the evidence (if any) recorded during the original trial shall, subject to all just exceptions, be evidence during the trial after remand.

24. Where evidence on record sufficient. Appellate Court may determine case finally. Where the evidence upon the record is sufficient to enable the Appellate Court to pronounce judgment, the Appellate Court may, after resettling the issues, if necessary, finally determine the suit, notwithstanding that the judgment of the court from whose decree the appeal is preferred has proceeded wholly upon some ground other than that on which the Appellate Court proceeds.

25. Where Appellate Court may frame issues and refer them for trial to Court whose decree appealed from. Where the court from whose decree the appeal is preferred has omitted to frame or try any issue, or to determine any question of fact, which appears to the Appellate Court essential to the right decision of the suit upon the merits, the Appellate Court may, if necessary, frame issues, and refer the same for trial to the Court from whose decree the appeal is preferred, and in such case shall direct such Court to take the additional evidence required;

and such court shall proceed to try such issues, and shall return the evidence to the Appellate Court together with its findings thereon and the reasons therefor.

26. Findings and evidence to be put on record. Objections to findings.— (1) Such evidence and findings shall form part of the record in the suit; and either party may, within a time to be fixed by the Appellate Court, present a memorandum of objections to any findings.

(2) Determination of appeal. After the expiration of the period so fixed for presenting such memorandum the Appellate Court shall proceed to determine the appeal.

27. Production of additional evidence in Appellate Court.—(1) The parties to an appeal shall not be entitled to produce additional evidence, whether oral or documentary, in the Appellate Court. But if—

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(a) the Court from whose decree the appeal is preferred has refused to admit evidence which ought to have been admitted, or

(b) the Appellate Court requires any document to be produced or any witness to be examined to enable it to pronounce judgment, or for any other substantial cause,

the Appellate Court may allow such evidence or document to be produced, or witness to be examined.

(2) Wherever additional evidence is allowed to be produced by an Appellate Court, the Court shall record the reason for its admission.

28. Mode of taking additional evidence. Wherever additional evidence is allowed to be produced, the Appellate Court may either take such evidence, or direct the Court from whose decrees the appeal is preferred, or any other subordinate Court, to take such evidence and to send it when taken to the Appellate Court.

29. Points to be defined and recorded. Where additional evidence is directed or allowed to be taken, the Appellate Court shall specify the points to which the evidence is to be confined, and record on its proceedings the points so specified.

Judgment in Appeal

30. Judgment when and where pronounced. The Appellate Court, after hearing the parties or their pleaders and referring to any part of the proceedings whether on appeal or in the Court from whose decree the appeal is preferred, to which reference maybe considered necessary, shall pronounce judgment in open Court, either at once or on some future day of which notice shall be given to the parties or their pleaders.

31. Contents, date and signature of judgment. The judgment of the Appellate Court shall be in writing and shall state—

(a) the points for determination;

(b) the decision thereon;

(c) the reasons for the decision; and,

(d) where the decree appealed from is reversed or varied, the relief to which the appellant is entitled;

and shall at the time that it is pronounced be signed and dated by the Judge or by the Judges concurring therein.

32. What judgment may direct. The judgment may be for confirming, varying or reversing the decree from which the appeal is preferred, or, if the parties to the appeal agree as to the form which the decree in appeal shall take, or as to the order to be made in appeal, the Appellate Court may pass a decree or make an order accordingly.

33. Power of Court of Appeal. The Appellate Court shall have power to pass any decree and make any order which ought to have been passed or made and to pass or make such further or other decree or order as the case may require, and this power may be exercised by the Court notwithstanding that the appeal is as to part only of the decree and may be exercised in favour of all or any of the respondents or parties although such respondents or parties may not have filed any appeal or objection:

[1][Provided that the Appellate Court shall not make any order under section 35A, in pursuance of any objection on which the Court from whose decree the appeal is preferred has omitted or refused to make such order.]

Illustration

A claims a sum of money as due to him form X or Y, and in a suit against both obtains a decree against X. X appeals and A and Y are respondents. The Appellate Court decides in favour of X. It has power to pass a decree against Y.

[1]Proviso ins. by the civil Procedure (Amdt.) Act, 1922 (9 of 1922), which under s. 1(2) thereof may be brought into force in any Province by the Provincial Government on any specified date. The Act has been brought into force in the Punjab, and Sind.

34. Dissent to be recorded. Where the appeal is heard by more Judges that one, any Judge dissenting from the judgment of the Court shall state in writing the decision or order which he thinks should be passed on the appeal, and he may state his reasons for the same.

Decree in Appeal

35. Date and contents of decree.— (1) The decree of the Appellate Court shall bear date the day on which the judgment was pronounced.

(2) The decree shall contain the number of the appeal, the names and descriptions of the appellant and respondent, and a clear specification of the relief granted or other adjudication made.

(3) The decree shall also state the amount of costs incurred in the appeal, and by whom, or out of what property, and in what proportions such costs and the costs in the suit are to be paid.

(4) The decree shall be signed and dated by the Judge or Judges who passed it:

Judge dissenting from judgment need not sign decree. Provided that where there are more Judges than one and there is a difference of opinion among them, it shall not be necessary for any Judge dissenting from the judgment of the Court to sign the decree.

36. Copies of judgment and decree to be furnished parties. Certified copies of the judgment and decree in appeal shall be furnished to the parties on application to the Appellate Court and at their expense.

37. Certified copy of decree to be sent to Court whose decree appealed from. A copy of the judgment and of the decree, certified by the Appellate Court or such officer as it appoints in this behalf, shall be sent to the Court which passed the decree appealed from and shall be filed with the original proceedings in the suit, and an entry of the judgment of the Appellate Court shall be made in the register of civil suits.

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ORDER XLII

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APPEALS FROM APPELLATE DECREES

1. Procedure. The rules of Order XLI shall apply, so far as may be, to appeals from Appellate decrees.

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ORDER XLIII

APPEALS FROM ORDERS

1. Appeals from Orders. An appeal shall lie from the following orders under the provisions of section 104, namely:—

(a) an order under rule 10 of Order VII returning a plaint to be presented to the proper Court;

(b) an order under rule 10 of Order VIII pronouncing judgment against a party;

(c) an order under rule 9 of Order IX rejecting an application (in a case open to appeal) for an order to set aside the dismissal of a suit;

(d) an order under rule 13 of Order IX rejecting an application (in a case open to appeal) for an order to set aside a decree passed ex parte;

(e) an order under rule 4 of Order X pronouncing judgment against a party;

(f) an order under rule 21 of Order XI;

(g) an order under rule 10 of Order XVI for the attachment of property;

(h) an order under rule 20 of Order XVI pronouncing judgment against a party;

(i) an order under rule 34 of Order XXI on an objection to the draft of a document or of an endorsement;

[1][(ii) an order under rule 62 or rule 103 of Order XXI relating to the right, title or interest of the claimant or objector in attached property;]

(j) an order under rule 72 or rule 92 of Order XXI setting aside or refusing to set aside a sale;

(k) an order under rule 9 of Order XXII refusing to set aside the abatement or dismissal of a suit;

(l) an order under rule 10 of Order XXII giving or refusing to give leave;

(m) an order under rule 3 of Order XXIII recording or refusing to record an agreement, compromise or satisfaction;

(n) an order under rule 2 of Order XXV rejecting an application (in a case open to appeal) for an order to set aside the dismissal of a suit;

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(o) an order [2][under rule 2, rule 4 or rule 7] of Order XXXIV refusing to extend the time for the payment of mortgage-money;

(p) an order in interpleader-suits under rule 3, rule 4 or rule 6 of Order XXXV;

(q) an order under rule 2, rule 3 or rule 6 of Order XXXVIII;

(r) an order under rule 1, rule 2, rule 4 or rule 10 of Order XXXIX;

(s) an order under rule 1 or rule 4 of Order XL;

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[1]Cl. (ii), added by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch.
[2]Subs. by the Transfer of Property (Amdt.) Supplementary Act, 1930 (16 of 1930), s.2, for "under rule 3 or rule 8".

(t) an order of refusal under rule 19 of Order XLI to readmit, or under rule 21 of Order XLI to re-hear an, appeal;

(u) an order under rule 23 of Order XLI remanding a case where an appeal would lie from the decree of the Appellate Court;

(v) an order made by any Court other than a High Court refusing the grant of a certificate under rule 6 of Order XLV;

(w) an order under rule 4 of Order XLVII granting an application for review.

2. Procedure. The rules of Order XLI shall apply, so far as may be, to appeals from orders.

[1]**3. Notice before presentation of appeal.**— (1) Where an appeal against an order is preferred during the pendency of a suit, the appellant shall, before presenting the appeal, give notice of such appeal to the respondent or his advocate by delivering a copy of the memorandum and grounds of appeal alongwith a copy of the order appealed against [2][either personally or through registered post acknowledgement due and the postal or other receipt shall be filed with the memorandum of appeal for the record of the appellate Court.]

(2) On receipt of notice referred to in sub-rule (1), the respondent may, with the permission of the Court, appear before it and contest the appeal and may be awarded costs on dismissal of the appeal in *limine*.

4. Application of Rule 3. The provisions of rule 3 shall, *mutatis mutandis*, apply to all applications filed before an appellate Court during the pendency of a suit.]

ORDER XLIV

PAUPER APPEALS

1. Who may appeal as pauper. Any person entitled to prefer an appeal, who is unable to pay the fee required for the memorandum of appeal, may present an application accompanied by a memorandum of appeal, and may be allowed to appeal as a pauper subject, in all matters, including the presentation of such application, to the provisions relating to suits by paupers, in so far as those provisions are applicable:

Procedure on application for admission of appeal. Provided that the Court shall reject the application unless, upon a perusal thereof and of the judgment and decree appealed from, it sees reason to think that the decree is contrary to law or to some usage having the force of law, or is otherwise erroneous or unjust.

2. Inquiry into pauperism. The inquiry into the pauperism of the applicant may be made either by the Appellate Court or under the order of the Appellate Court by the Court from whose decision the appeal is preferred:

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[1]New sub-rules 3 and 4 added by the Code of Civil Procedure (Amdt.), Ordinance, 1980 (10 of 1980), s.14.
[2]Subs. by Act XIV of 1994,s.II.

Provided that, if the applicant was allowed to sue or appeal as a pauper in the Court from whose decree the appeal is preferred, no further inquiry in respect of his pauperism shall be necessary, unless the Appellate Court sees cause to direct such inquiry.

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ORDER XLV

APPEALS TO THE [1][SUPREME COURT]

[2][**1. "Decree" defined.** In this Order, unless there is something repugnant in the subject or context, the expression "decree" shall include a judgment or a final Order.]

2. Application to Court whose decree complained of. Whoever desires to appeal to [1][the Supreme Court] shall apply by petition to the Court whose decree is complained of.

3. Certificate as to value or fitness.— [2][(1) A petition made under rule 2 shall briefly state the grounds of appeal and pray for a certificate.]

(2) Upon receipt of such petition, the Court shall direct notice to be served on the opposite party to show cause why the said certificate should not be granted [:][2]

[2][Provided that no notice shall be directed to be served on or given to the opposite party or to the legal representative of a deceased opposite party in a case where such opposite party did not appear either at the hearing in the Court whose decree is complained of or at any proceedings subsequent to the decree of that Court.]

[2][(3) The Court may, if the opposite party in response to the notice issued under sub-rule (2) appears, after hearing both the parties, or if the opposite party does not appear in response to such notice, then after hearing the party making the petition, grant or refuse the certificate.

(4) If on the date fixed for the hearing, the party making the petition does not appear and the opposite party appears in response to such notice or if both the parties do not appear on such date, the petition shall be dismissed.

4. Consolidation of suits. For the purposes of pecuniary valuation, suits involving substantially the same questions for determination and decided by the same judgment may be consolidated: but suits decided by separate judgments shall not be consolidated, notwithstanding that they involve substantially the same questions for determination.

5. Remission of dispute to Court of first instance. In the event of any dispute arising between the parties as to the amount or value of the subject-matter of the suit in the Court of first instance, or as to the amount or value of the subject matter in dispute on appeal to [1][the Supreme Court], the Court to which a petition for a certificate is made under rule 2 may, if it thinks fit, refer such dispute for report to the Court of first instance, which last-mentioned Court shall proceed to determine such amount or value and shall return its report together with the evidence to the Court by which the reference was made.

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[1]Subs. by A.O, 1961, Art. 2 and Sch., for "King in Council" (*with effect from the 23rd March, 1956*).
[2]Subs. and added by F.A.O., 1975, Art, 2 and Sch. (*with effect from the 14th August, 1973*), for the original rule1.

6. [*Effect of refusal of certificate.*] *Omitted by F.A.O., 1975 Art.2 and Sch.*

7. Security and deposit required on grant of certificate.— (1) Where the certificate is granted, the applicant shall within [1][ninety days or such further period, not exceeding sixty days, as the Court may upon cause shown allow] from the date of the decree complained of, or within six weeks from the date of the grant of the certificate, whichever is the later date,—

(a) furnish security [1][in cash or in Government securities] for the costs of the respondent, and

(b) deposit the amount required to defray the expense of translating, transcribing, indexing [2][, printing] and transmitting to [2][the Supreme Court] a correct copy of the whole record of the suit, except—

(1) formal documents directed to be excluded by any [5][Rule of the Supreme Court] in force for the time being;

(2) papers which the parties agree to exclude;

(3) accounts, or portions of accounts, which the officer empowered by the Court for that purpose considers unnecessary, and which the parties have not specifically asked to be included; and

(4) such other documents as the High Court may direct to be excluded:

[1][Provided that the Court at the time of granting the certificate may, after hearing any opposite party who appears, order on the ground of special hardship that some other form of security may be furnished:

Provided further, that no adjournment shall be granted to an opposite party to contest the nature of such security.]

[2][* * * * * * *]

8. Admission of appeal and procedure thereon. Where such security has been furnished and deposit made to the satisfaction of the Court, the Court shall—

(a) declare the appeal admitted,

(b) give notice thereof to the respondent,

(c) transmit to [2][the Supreme Court] under the seal of the Court a correct copy of the said record, except as aforesaid, and

(d) give to either party one or more authenticated copies of any of the papers in the suit on his applying therefore and paying the reasonable expenses incurred in preparing them.

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[1]Subs. by the Indian Limitation and Code of Civil Procedure (Amdt.) Act, 1920 (26 of 1920), s.3, for "six months".
[2]Ins. by A.O., 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*).

9. Revocation of acceptance of security. At any time before the admission of the appeal the Court may, upon cause shown, revoke the acceptancy of any such security, and make further directions thereon.

9-A. [*Power to dispense with notices in case of deceased parties*.] *Omitted by F.A.O. 1975, Art.2 and Sch.*

10. Power to order further security or payment. Where at any time after the admission of an appeal but before the transmission of the copy of the record, except as aforesaid, to [1][the Supreme Court], such security appears inadequate,

or further payment is required for the purpose of translating, transcribing, printing, indexing or transmitting the copy of the record, except as aforesaid,

the Court may order the appellant to furnish, within a time to be fixed by the Court, other and sufficient security, or to make, within like time, the required payment.

11. Effect of failure to comply with order. Where the appellant fails to comply with such order, the proceedings shall be stayed,

and the appeal shall not proceed without an order in this behalf of [1][the Supreme Court],

and in the meantime execution of the decree appealed from shall not be stayed.

12. Refund of balance deposit. When the copy of the record, except as aforesaid, has been transmitted to [1][the supreme Court], the appellant may obtain a refund of the balance (if any) of the amount which he has deposited under rule 7.

13. Powers of Court of pending appeal.— (1) Notwithstanding the grant of a certificate for the admission of any appeal, the decree appealed from shall be unconditionally executed, unless the Court otherwise directs.

(2) The Court may, if it thinks fit, on special cause shown by any party interested in the suit, or otherwise appearing to the Court,—

(a) impound any moveable property in dispute or any part thereof, or

(b) allow the decree appealed from to be executed, taking such security from the respondent as the Court thinks fit for the due performance of any order which [1][the Supreme Court] may make on the appeal, or

(c) stay the execution of the decree appealed from, taking such security from the appellant as the Court thinks fit for the due performance of the decree appealed from, or of any order which 1[the Supreme Court] may make on the appeal, or

(d) place any party seeking the assistance of the Court under such conditions or give such other direction respecting the subject-matter of the appeal, as it thinks fit, by the appointment of a receiver or otherwise.

[1]Subs. by A.O., 1961, Art. 2 and Sch., for "His Majesty in Council" (with effect from the 23rd March, 1956).

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14. Increase of security found Inadequate.— (1) Where at any time during the pendency of the appeal the security furnished by either party appears inadequate, the Court may, on the application of the other party, require further security.

(2) In default of such further security being furnished as required by the Court,—

(a) if the original security was furnished by the appellant, the Court may, on the application of the respondent, executes, the decree appealed from as if the appellant had furnished no such security;

(b) if the original security was furnished by the respondent, the Court shall, so far as may be practicable, stay the further execution of the decree, and restore the parties to the position in which they respectively were when the security which appears inadequate was furnished, or give such direction respecting the subject-matter of the appeal as it thinks fit.

15. Procedure to enforce orders of the Supreme Court.— (1) Whoever desires to obtain execution of any order of [1][the Supreme Court] shall apply by petition, accompanied by a certified copy of the decree passed or order made in appeal and sought to be executed, to the Court from which the appeal to [1][the Supreme Court] was preferred.

(2) Such Court shall transmit the order of [1][the Supreme Court] to the Court which passed the first decree appealed from, or to such other Court as [1][the Supreme Court] by such order may direct, and shall (upon the application of either party) give such directions as may be required for the execution of the same; and the Court to which the said order is so transmitted shall execute it accordingly, in the manner and according to the provisions applicable to the execution of its original decrees.

[2]* * * * * * *

[3][(4) Unless [1][the Supreme Court] is pleased otherwise to direct, no order of [1][the Supreme Court] shall be inoperative on the ground that no notice has been served on or given to the legal representative of any deceased opposite party or deceased respondent in a case, where such opposite party or respondent did not appear either at the hearing in the Court whose decree was complained of or at any proceedings subsequent to the decree of that Court, but such order shall have the same force and effect as if it had been made before the death took place.]

16. Appeal from order relating to execution. The orders made by the Court which executes the order of3[the Supreme Court], relating to such execution, shall be appealable in the same manner and subject to the same rules as the orders of such Court relating to the execution of its own decrees.

[4]**17.** [*Appeals to the Federal Court*]. *Omitted by the Federal Court Act 1941 (XXI of 1941), S.2.*

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[1]Subs. by A.O., 1961, Art. 2 andSch., for "His Majesty in Council" (*with effect from the 23rd March, 1956*).
[2]Sub-rule (3) omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Second Sch., which was previously amended by various enacments, from time to time.
[3]Sub-section (4) ins. by the Indian Limitation and Code of Civil Procedure (Amdt.) Act, 1920 (26 of 1920), s.5.
[4]This section was ins. by A.O., 1937.

ORDER XLVI

REFERENCE

1. Reference of question to High Court. Where, before or on the hearing of a suit or an appeal in which the decree is not subject to appeal, or where, in the execution of any such decree, any question of law or usage having the force of law arises, on which the Court trying the suit or appeal, or executing the decree, entertains reasonable doubt, the Court may, either of its own motion or on the application of any of the parties, draw up a statement of the facts of the case and the point on which doubt is entertained, and refer such statement with its own opinion on the point for the decision of the High Court.

2. Court may pass decree contingent upon decision of High Court. The Court may either stay the proceedings or proceed in the case notwithstanding such reference, and may pass a decree or make an order contingent upon the decision of the High Court on the point referred;

but no decree or order shall be executed in any case in which such reference is made until the receipt of a copy of the judgment of the High Court upon the reference.

3. Judgment of High Court to be transmitted, and case disposed of accordingly. The High Court, after hearing the parties if they appear and desire to be heard, shall decide the point so referred, and shall transmit a copy of its judgment, under the signature of the Registrar, to the Court by which the reference was made; and such Court shall, on the receipt thereof, proceed to dispose of the case in conformity with the decision of the High Court.

4. Costs of reference to High Court. The costs (if any) consequent on a reference for the decision of the High Court shall be costs in the case.

5. Power to alter etc., decree, of Court making reference. Where a case is referred to the High Court under rule 1, the High Court may return the case for amendment, and may alter, cancel or set aside any decree or order which the Court making the reference has passed or made in the case out of which the reference arose, and make such order as it thinks fit.

6. Power to refer to High Court questions as jurisdiction in small causes.— (1) Where at any time before judgment a Court in which a suit has been instituted doubts whether the suit is cognizable by a Court of Small Causes or is not so cognizable, it may submit the record to the High Court with a statement of its reasons for the doubt as to the nature of the suit.

(2) On receiving the record and statement, the High Court may order the Court either to proceed with the suit or to return the plaint for presentation to such other Court as it may in its order declare to be competent to take cognizance of the suit.

7. Power to District Court to submit for revision proceedings had under mistake as to jurisdiction in small causes.— (1) Where it appears to a District Court that a Court subordinate thereto has, by reason of erroneously holding a suit to be cognizable by a Court of Small Causes or not to be so cognizable, failed to exercise a jurisdiction vested in it by law, or exercised a Jurisdiction not so vested, the District Court may, and if required by a party shall, submit the record to the High Court with a statement of its reasons for considering the opinion of the subordinate Court with respect to the nature of the suit to be erroneous.

THE PAKISTAN CODE

(2) On receiving the record and statement the High Court may make such order in the case as it thinks fit.

(3) With respect to any proceedings subsequent to decree in any case submitted to the High Court under this rule, the High Court may make such order as in the circumstance appears to it to be just and proper.

(4) A Court subordinate to a District Court shall comply with any requisition which the District Court may make for any record or information for the purpose of this rule.

———

ORDER XLVII

REVIEW

1. Application for review of judgment.— (1) Any person considering himself aggrieved—

(a) by a decree or order from which an appeal is allowed, but from which no appeal has been preferred.

(b) by a decree or order from which no appeal is allowed, or

(c) by a decision on a reference from a Court of Small Causes,

and who, from the discovery of new and important matter or evidence which, after the exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or order made, or on account of some mistake or error apparent on the face of the record, or for any other sufficient reason, desires to obtain a review of the decree passed or order made against him, may apply for a review of judgment to the Court which passed the decree or made the order.

(2) A party who is not appealing from a decree or order may apply for a review of judgment notwithstanding the pendency of an appeal by some other party except where the ground of such appeal is common to the applicant and the appellant, or when, being respondent, he can present to the Appellate Court the case on which he applies for the review.

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2. To whom applications for review may be made. An application for review of a decree or order of a Court, not being a High Court, upon some ground other than the discovery of such new and important matter or evidence as is referred to in rule 1 or the existence of a clerical or arithmetical mistake or error apparent on the face of the decree, shall be made only to the Judge who passed the decree or made the order sought to be reviewed; but any such application may, if the Judge who passed the decree or made the order has ordered notice to issue under rule 4, sub-rule (2), proviso, *(a)* be disposed of by his successor.

3. Form of applications for review. The provisions as to the form of preferring appeal shall apply, *mutatis mutandis,* to applications for review.

4. Application where rejected.— (1) Where it appears to the Court that there is not sufficient ground for a review, it shall reject the application.

(2) Application where granted. Where the Court is of opinion that the application for review should be granted, it shall grant the same:

Provided that—

(a) no such application shall be granted without previous notice to the opposite party, to enable him to appear and be heard in support of the decree or order, a review of which is applied for : and

(b) no such application shall be granted on the ground of discovery of new matter or evidence which the applicant alleges was not within his knowledge, or could not be adduced by him when the decree or order was passed or made, without strict proof of such allegation.

5. Application for review in Court consisting of two or more Judges. Where the Judge or Judges, or any one of the Judges, who passed the decree or made the order, a review of which is applied for, continues or continue attached to the Court at the time when the application for a review is presented, and is not or are not precluded by absence or other cause for a period of six months next after the application from considering the decree or order to which the application refers, such Judge or Judges or any of them shall hear the application, and no other Judge or Judges of the Court shall hear the same.

6. Application where rejected.— (1) Where the application for a review is heard by more than one Judge and the Court is equally divided, the application shall be rejected.

(2) Where there is a majority, the decision shall be according to the opinion of the majority.

7. Oder of rejection not appealable. Objections to order granting application.— (1) An order of the Court rejecting the application shall not be appealable; but an order granting an application may be objected to on the ground that the application was—

(a) in contravention of the provisions of rule 2,

(b) in contravention of the provisions of rule 4, or

(c) after the expiration of the period of limitation prescribed therefore and without sufficient cause.

THE PAKISTAN CODE

Such objection may be taken at once by an appeal from the order granting the application or in any appeal from the final decree or order passed or made in the suit.

(2) Where the application has been rejected in consequence of the failure of the applicant to appear, he may apply for an order to have the rejected application restored to the file, and, where it is proved to the satisfaction of the Court that he was prevented by any sufficient cause from appearing when such application was called on for hearing, the Court shall order it to be restored to the file upon such terms as to costs or otherwise as it thinks fit, and shall appoint a day for hearing the same.

(3) No order shall be made under sub-rule (2) unless notice of the application has been served on the opposite party.

8. Registry of application garnted, and order for re-hearing. When an application for review is granted, a note thereof shall be made in the register and the Court may at once re-hear the case or make such order in regard to the re-hearing as it thinks fit.

[1]**[9. Bar of certain applications**.— (1) No application to review an order made on an application for a review or a decree or order passed or made on a review shall be entertained.

(2) Nothing in this Order shall apply to any judgment pronounced or order made by the Supreme Court.]

ORDER XLVIII

MISCELLANEOUS

1. Process to be served at expense of party issuing.— (1) Every process issued under this Code shall be served at the expense of the party on whose behalf it is issued, unless the Court otherwise directs.

(2) Costs of service. The court-fee chargeable for such service shall be paid within a time to be fixed before the process is issued.

2. Orders and notices how served.— All orders, notices and other documents required by this Code to be given to or served on any person shall be served in the manner provided for the service of summons.

3. Use of forms in appendices.— The forms given in the appendices, with such variation as the circumstances of each case may require, shall be used for the purposes therein mentioned.

ORDER XLIX

[2]*HIGH COURTS

1. Who may serve processes of High Court. Notice to produce documents, summonses to witnesses, and every other judicial process, issued in the exercise of the original civil jurisdiction of the High Court, and of its matrimonial, testamentary and intestate jurisdictions, except summonses to defendants, writs of execution and notices to respondents may be served by the attorneys in the suits, or by persons employed by them, or by such other persons as the High Court, by any rule or order, directs.

2. Saving in respect of High Courts. Nothing in this schedule shall be deemed to limit or otherwise affect any rules in force at the commencement of this Code for the taking of evidence or the recording of judgment and orders by a [2]* High Court.

3. Application of rules. The following rules shall not apply to any [2]* High Court in the exercise of its ordinary or extraordinary original civil jurisdiction, namely:—

---

[1]Subs. by F.A.O., 1975, Art. 2 and Sch., for the original rule 9.

[2]The word "Chartered" omitted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*).

(1) rule 10 and rule 11, clauses *(b)* and *(c)*, of Order VII;

(2) rule 3 of Order X;

(3) rule 2 of Order XVI;

(4) rules 5,6,8,9,10,11,13,14,15 and 16 (so far as relates to the manner of taking evidence) of Order XVIII;

(5) rules 1 to 8 of Order XX; and

(6) rule 7 of Order XXXIII (so far as relates to the making of a memorandum);

and rule 35 of Order XLI shall not apply to any such High Court in the exercise of its appellate jurisdiction.

ORDER L

PROVINCIAL SMALL CAUSE COURTS

1. Provincial Small Cause Courts. The provisions hereinafter specified shall not extend to Courts constituted under the Provincial Small Cause Courts Act, 1887 (IX of 1887), [1][* * *] or to Courts exercising the jurisdiction of a Court of Small Causes [2][under the said Act], that is to say—

(a) so much of this schedule as relates to—

(i) suit excepted from the cognizance of a Court of Small Causes or the execution of decrees in such suits;

(ii) the execution of decrees against immoveable property or the interest of a partner in partnership property;

(iii) the settlement of issues; and

(b) the following rules and orders,—

Order II, rule 1 (frame of suit) ;

Order X, rule 3 (record of examination of parties);

Order XV, except so much of rule 4 as provides for the pronouncement at once of judgment ;

Order XVIII, rules 5 to 12 (evidence);

Order XLI to XLV (appeals);

Order XLVII, rules 2,3,5,6,7 (review);

Order LI.

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[1]The words and figures "or under the Berar Small Cause Courts Law, 1905" which were ins. by the Berar Laws Act, 1941 (IV of 1941), s.2 and Third Sch., have been omitted by A.O., 1949.
[2]The original words "under that Act" have successively been amended by Act IV of 1941, and A.O., 1949, to read as above.

ORDER LI

[PRESIDENCY SMALL CAUSE COURTS]

Omitted by the A.O., 1949.

APPENDIX A

PLEADINGS

(1) TITLES OF SUITS

IN THE COURT OF

A.B. (*add description and residence*) .. .. .. *Plaintiff*

Against

C. D. (*add description and residence*) .. .. .. *Defendant*

(2) Description of Parties in Particular Cases

[1][[2]* * *Pakistan or the Province of, as the case may be.]

The Advocate General of

The Collector of

The State of

THE PAKISTAN CODE

The A.B., Company, Limited, having its registered office at

A.B., a public officer of the C.D. Company.

A.B., (*add description and residence*), on behalf of himself and all other creditors of C.D., late of (*add description and residence*).

A.B., (*add description and residence*), on behalf of himself and all other holders of debentures issued by the Company, Limited

[1]Amended by A.O., 1937 and A.O., 1949.
[2]The words "the Federation of" have been omitted by A.O., 1961, Art. 2 andSch. (*with effect from the 23rd March, 1956*).

The Official Receiver.

_____

A.B., a minor (*add description and residence*), by C.D., [or by the Court of Wards], his next friend.

_____

A.B., (*add description and residence*), a person of unsound mind [or of weak mind], by C.D., his next friend.

_____

A.B,, a firm carrying on business in partnership at.

A.B. (*add description and residence*), by his constituted attorney C.D (add description and residence).

_____

A.B. (*add description and residence*), Shebait of Thakar.

A B. (*add description and residence*) executor of C.D., deceased.

A.B. (*add description and residence*), heir of C.D., deceased.

_____

(3) Plaints

No. 1

MONEY LENT

(*Title*)

A.B., the above-named plaintiff, states as follows:—

1. On the day of 19 , he lent the defendant rupees repayable on the day of .

2. The defendant has not paid the same, except rupees paid on the day of 19 .

[*If the plaintiff claims exemption from any law of limitation, say:*—]

3. The plaintiff was a minor [*or* insane] from the day of till the day of .

4. [*Facts showing when the cause of action arose and that the court has jurisdiction*].

5. The value of the subject-matter of the suit for the purpose of jurisdiction is rupees and for the purpose of court-fee is rupees.

THE PAKISTAN CODE

6. The plaintiff claims rupees, with interest at percent from the day of 19 .

———

NO. 2

MONEY OVER PAID

(*Title*)

A.B., the above named plaintiff, states as follows:—

1. On the day of 19 , the plaintiff agreed to buy and the defendant agreed to sell bars of silver at annas per tola of fine silver.

2. The plaintiff procured the said bars to be assayed by *E.F.*, who was paid by the defendant for such assay, and E.F. declared each of the bars to contain 1,500 tolas of fine silver, and the plaintiff accordingly paid the defendant rupees.

3. Each of the said bars contained only 1,200 tolas of fine silver, of which fact the plaintiff was ignorant when he made the payment.

4. The defendant has not repaid the sum so overpaid.

[*As in paras 4 and 5 of Form No. 1 and Relief claimed*].

———

NO. 3.

GOODS SOLD AT A FIXED PRICE AND DELIVERED

(*Title*)

THE PAKISTAN CODE

A.B., the above-named plaintiff, states as follows:—

1. On the day of 19 , *E.F.* sold and delivered to the defendant [one hundred barrels of flour, or the goods mentioned in the schedule hereto annexed, or sundry goods].

2. The defendant promised to pay rupees for the said goods on delivery [*or* on the day of , *some day before the plaint was filed*].

3. He has not paid the same.

4. *E.F.* died on the day of 19 By his last will he appointed his brother, the plaintiff, his executor.

[*As in paras 4 and 5 of Form No. 1*]

7. The plaintiff as executor or *E.F.* claims [*Relief claimed*].

NO 4

GOODS SOLD AT A REASONABLE PRICE AND DELIVERED

(*Title*)

A.B., the above-named plaintiff, states as follows:—

1. On the day of 19 , plaintiff sold and delivered to the defendant [*sundry articles of house-furniture]*, but no express agreement was made as to the price.

2. The goods were reasonably worth rupees.

3. The defendant has not paid the money.

[*As in paras 4 and 5 of Form No. 1, and Relief claimed*].

NO. 5

GOODS MADE AT DEFENDANT'S REQUEST, AND NOT ACCEPTED

(*Title*)

A B., the above-named plaintiff, states as follows:—

1. On the day of 19 , *E.F*. agreed with the plaintiff that the plaintiff should make for him [six tables and fifty chairs] and that E.F,. should pay for the goods on delivery rupees.

2. The plaintiff made the goods, and on the day of 19 , offered to deliver them to *E.F*…, and has ever since been ready and wiling so to do.

3. *E.F*. has not accepted the goods or paid for them.

[*As in paras 4 and 5 of Form No. 1, and Relief claimed*]

THE PAKISTAN CODE

NO. 6

DEFICIENCY UPON A RE-SALE [GOODS AT AUCTION]

(*Title*)

A.B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the plaintiff put up at auction sundry [*goods*], subject to the condition that all goods not paid for and removed by the purchaser within [*ten days*] after the sale should be re-sold by auction on his account, of which condition the defendant had notice.

2. The defendant purchased [*one crate of crockery*] at the auction at the price of rupees.

3. The plaintiff was ready and willing to deliver the goods to the defendant on the date of the sale and for [*ten days*] after.

4. The defendant did not take away the goods purchased by him, nor pay for them within [*ten days*] after the sale, nor afterwards.

5. On the day of 19 , the plaintiff re-sold the [*crate of crockery*], on account of the defendant, by public auction, for rupees.

6. The expenses attendant upon such re-sale amounted to rupees.

7. The defendant has not paid the deficiency thus arising, amounting to rupees.

[*As in paras 4 and 5 of Form No. 1, and Relief claimed*].

———

NO. 7

SERVICES AT REASONABLE RATE

(*Title*)

A.B., the above-named plaintiff, states as follows:—

1. Between the day of 19 , and the day of 19 , plaintiffs [*executed sundry drawings, designs and diagrams*) for the defendant , at his request; but no express agreement was made as to the sum to be paid for such services.

2. The services were reasonably worth rupees.

3. The defendant has not paid the money.

THE PAKISTAN CODE

[*As in paras 4 and 5 of Form No. 1, and Relief claimed*].

———

NO. 8

SERVICES AND MATERIALS AT A REASONABLE COST

(*Title*)

A B., the above-named plaintiff, states as follows:—

1. On the day of 19 , at , the plaintiff built a house [known as No. , in], and furnished the materials therefore, for the defendant, at his request, but no express agreement was made as to the amount to be paid for such work and materials.

2. The work done and materials supplied were reasonably worth rupees.

3. The defendant has not paid the money.

[*As in paras's 4 and 5 Form No. 1,and Relief claimed*]

NO. 9

USE AND OCCUPATION

(*Title*)

A.B., the above-named plaintiff, executor of the will of X. Y., deceased, states as follows:—

1. That the defendant occupied the [house No. , Street], by permission of the said *X.Y.* from the day 19 , until the day of 19 , and no agreement was made as to payment for the use of the said premises.

2. That the use of the said premises for the said period was reasonable worth rupees.

3. The defendant has not paid the money.

[*As in paras 4 & 5 of Form No. 1*]

4. The plaintiff as executor of *X.Y.*, claims [*Relief claimed*].

NO. 10

ON AN AWARD

(*Title*)

THE PAKISTAN CODE

A. B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the plaintiff and defendant, having a difference between them concerning [a demand of the plaintiff for the price of ten barrels of oil which the defendant refused to pay], agreed in writing to submit the difference to the arbitration of *E. F.* and *G.H.*, and the original document is annexed hereto.

2. On the day of 19 ,the arbitrators awarded that the defendant should [pay the plaintiff rupees].

3. The defendant has not paid the money.

[*As in para 4 and 5 of Form No. 1, and relief claimed*].

NO. 11

ON A FOREIGN JUDGMENT

(*Title*)

A. B., the above-named plaintiff states as follows:—

1. On the day of 19 , at in the State [*or* Kingdom] of ,the Court of that State [*or* Kingdom], in a suit therein pending between the plaintiff and defendant, duly adjudged that the defendant should pay to the plaintiff rupees, with interest from the said date,

2. The defendant has not paid the money.

[*As in paras 4 and 5 of Form No 1, and Relief claimed*].

NO. 12

AGAINST SURETY FOR PAYMENT OF RENT

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. On the day of 19 , *E. F.* hired from the plaintiff for the term of years, the [house No. Street], at the annual rent of rupees, payable [monthly].

2. The defendant agreed, in consideration of the letting of the premises to *E.F.*, to guarantee the punctual payment of the rent.

3. The rent for the month of 19 , amounting to rupees, has not been paid.

THE PAKISTAN CODE

[*If, by the terms of the agreement, notice is required to be given to the surety, add:—*]

4. On the day of 19, the plaintiff gave notice to the defendant of the non-payment of the rent, and demanded payment thereof.

5. The defendant has not paid the same.

[*As in paras 4 and 5 of Form No. 1, and Relief claimed*]

NO. 13

BREACH OF AGREEMENT TO PURCHASE LAND

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the plaintiff and defendant entered into an agreement, and the original document is hereto annexed.

[**Or,** on the day of 19 , the plaintiff and defendant mutually agreed that the plaintiff should sell to the defendant and that the defendant should purchase from the plaintiff forty bighas of land in the village of for rupees.]

2. On the day of 19 , the plaintiff, being then the absolute owner of the property [and the same being free from incumbrances as was made to appear to the defendant], tendered to the defendant a sufficient instrument of transfer of the same [*or*, was ready and willing, and is still ready and willing, and offered, to transfer the same to the defendant by a sufficient instrument] on the payment by the defendant of the sum agreed upon.

3. The defendant has not paid the money.

[*As in paras 4 and 5 of Form No. 1, and relief claimed*]

———

NO. 14

NOT DELIVERING GOODS SOLD

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. On the day of 19, the plaintiff and defendant mutually agreed that the defendant should deliver (one hundred barrels of flour) to the plaintiff on the day of 19 , and that the plaintiff should pay therefore rupees on delivery.

2. On the [said] day the plaintiff was ready and willing, and offered, to pay the defendant the said sum upon delivery of the goods.

3. The defendant has not delivered the goods, and the plaintiff has been deprived of the profits which would have accrued to him from such delivery.

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*]

———

THE PAKISTAN CODE

NO. I5

WRONGFUL DISMISSAL

(*Title*)

A.B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the plaintiff and defendant mutually agreed that the plaintiff should serve the defendant as [an accountant, *or* in the capacity of foreman, or *as the case may be*], and that the defendant should employ the plaintiff as such for the term of [one year] and pay him for his services rupees [monthly].

2. On the day of 19, the plaintiff entered upon the service of the defendant and has ever since been, and still is, ready and willing to continue in such service during the remainder of the said year whereof the defendant always has had notice.

3. On the day of 19 , the defendant wrongfully discharged the plaintiff, and refused to permit him to serve as aforesaid, or to pay him for his services.

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*]

NO. 16

BREACH OF CONTRACT TO SERVE

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the plaintiff and defendant mutually agreed that the plaintiff should employ the defendant at an [annual] salary of rupees, and that the defendant should serve the plaintiff as [an artist] for the term of [one year].

2. The plaintiff has always been ready and willing to perform his part of the agreement [and on the day of 19, offered so to do.]

3. The defendant [entered upon] the service of the plaintiff on the above mentioned day, but afterwards on the day of 19 , he refused to serve the plaintiff as aforesaid.

[*As in paras. 4 and 5 of form No. 1, and Relief claimed*]

NO. 17

AGAINST A BUILDER FOR DEFECTIVE WORKMANSHIP

(*Title*)

A.B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the plaintiff and defendant entered into an agreement, and the original document is hereto annexed, [*or state the tenor of the contract of*].

[2. The plaintiff duly performed all the conditions of the agreement on his part.]

3. The defendant [built the house referred to in the agreement in a bad and unworkmanlike manner].

[*As in paras 4 and 5 of Form No. 1, and Relief claimed*]

———

NO.18

ON A BOND FOR THE FIDELITY OF A CLERK

(*Title*)

A.B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the plaintiff took *E.F.*, into his employment as a clerk.

2. In consideration thereof, on the day of 19, the defendant agreed with the plaintiff that if *E.F.*, should not faithfully perform his duties as a clerk to the plaintiff, or should fail to account to the plaintiff for all monies, evidences of debt or other property received by him for the use of the plaintiff, the defendant would pay to the plaintiff whatever loss he might sustain by reason thereof, not exceeding rupees.

[*Or*, 2. In consideration thereof, the defendant by his bond of the same date bound himself to pay the plaintiff the penal sum of rupees, subject to the condition that if *E.F.* should faithfully perform his duties as clerk and cashier to the plaintiff and should justly account to the plaintiff for all monies, evidences of debt or other property which should be at any time held by him in trust for the plaintiff, the bond should be void.]

[*Or*. 2. In consideration thereof on the same date the defendant executed of a bond in favour of the plaintiff, and the original document is hereto annexed.]

3. Between the day of l9, and the day of 19, *E.F*. received money and other property, amounting to the value of rupees, for the use of the plaintiff for which sum he has not accounted to him, and the same still remains due and unpaid.

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*]

———

NO. 19

BY TENANT AGAINST LANDLORD, WITH SPECIAL DAMAGE

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the defendant, by a registered instrument, let to the plaintiff [the house No. , Street] for the term of years, contracting with the plaintiff, that he, the plaintiff, and his legal representatives should quietly enjoy possession thereof for the said term.

2. All conditions were fulfilled and all things happened necessary to entitle the plaintiff to maintain this suit.

3. On the day of 19 , during the said term, *E. F.*, who was the lawful owner of the said house, lawfully evicted the plaintiff therefrom, and still withholds the possession thereof from him.

4. The plaintiff was thereby [prevented from continuing the business of a tailor at the said place, was compelled to expend rupees in moving, and lost the custom of *G.H.*, and *I. J.*, by such removal].

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*]

———

NO. 20

ON AN AGREEMENT OF INDEMNITY

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the plaintiff and defendant, being partners in trade under the style of *A.B.* and *C. D.*, dissolved the partnership, and mutually agreed that the defendant should take and keep all the partnership property, pay all debts of the firm and indemnify the plaintiff against all claims that might be upon him on account of any indebtedness of the firm.

THE PAKISTAN CODE

2. The plaintiff duly performed all the conditions of the agreement on his part.

3. On the day of 19 , [a judgment was recovered against the plaintiff and defendant by E. F., in the High Court of Judicature at , upon a debt due from the firm to *E.F.*, and on the day of 19 ,] the plaintiff paid rupees [in satisfaction of the same].

4. The defendant has not paid the same to the plaintiff].

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*]

———

NO. 21

PROCURING PROPERTY BY FRAUD

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the defendant, for the purpose of inducing the plaintiff to sell him certain goods, represented to the plaintiff that [he, the defendant, was solvent, and worth rupees over all his liabilities].

2. The plaintiff was thereby induced to sell [and deliver] to the defendant, [dry goods] of the value of rupees.

3. The said representations were false [*or state the particular falsehoods*] and were then known by the defendant to be so.

4. The defendant has not paid for the goods. [*Or, if the goods were not delivered*.] The plaintiff, in preparing and shipping the goods and procuring their restoration, expended rupees.

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*]

———

NO. 22

FRAUDULENTLY PROCURING CREDIT TO BE GIVEN TO ANOTHER PERSON

(*Title*)

A,B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the defendant represented to the plaintiff that *E.F.* was solvent and in good credit, and worth rupees over all his liabilities [*or* that *E. F.* then held a responsible situation and was in good circumstances, and might safely be trusted with goods on credit].

2. The plaintiff was thereby induced to sell to *E.F.* [rice] of the value of rupees [on months credit].

3. The said representations were false and were then known by the defendant to be so, and were made by him with intent to deceive and defraud the plaintiff [*or* to deceive and injure the plaintiff].

4. *E. F.* [did not pay for the said goods at the expiration of the credit aforesaid, *or*] has not paid for the said rice, and the plaintiff has wholly lost the same.

[*As in paras 4 and 5 of Form No. 1, and Relief claimed*]

———

THE PAKISTAN CODE

NO. 23

POLLUTING THE WATER UNDER THE PLAINTIFF'S LAND

(*Title*)

A.B., the above named plaintif, states as follows:—

1. The plaintiff is, and at all the times hereinafter mentioned was, possessed of certain land called and situate in and of a well therein, and of water in the well, and was entitled to the use and benefit of the well and of the water therein, and to have certain springs and streams of water which flowed and ran into the well to supply the same to flow or run without being fouled or polluted.

2. On the day of 19 , the defendant wrongfully fouled and polluted the well and the water therein and the springs and streams of water which flowed into the well.

3. In consequence the water in the well became impure and unfit for domestic and other necessary purposes, and the plaintiff and his family are deprived of the use and benefit of the well and water.

[*As in paras. 4 and 5 of Form No, 1 and Relief claimed*]

NO. 24

CARRYING ON A NOXIOUS MANUFACTURE.

(*Title*)

A. B., the above-named plaintiff, states as follows:

1. The plaintiff is, and at all the times hereinafter mentioned was, possessed of certain lands called , situated in .

2. Ever since the day of 19, the defendant has wrongfully caused to issue from certain smelting works carried on by the defendant large quantities of offensive and unwholesome smoke and other vapours and noxious matter, which spread themselves over and upon the said lands and corrupted the air, and settled on the surface of the lands.

3. Thereby the trees, hedges, herbage and crops of the plaintiff growing on the lands were damaged and deteriorated in value, and the cattle and live-stock of the plaintiff on the lands became unhealthy, and many of them were poisoned and died.

4. The plaintiff was unable to graze the lands with cattle and sheep as he otherwise might have done, and was obliged to remove his cattle, sheep and farming-stock therefrom, and has been prevented from having so beneficial and healthy a use and occupation of the lands as he otherwise would have had.

[*As in paras. 4 and 5 of Form No. 1. and Relief claimed*]

THE PAKISTAN CODE

NO. 25

OBSTRUCTING A RIGHT OF WAY

(*Title*)

A.B., the above-named plaintiff, states as follows:—

1. The plaintiff is, and at the time hereinafter mentioned was, possessed of [a house in the village of] .

2. He was entitled to a right of way from the [house] over a certain field to a public highway and back again from the highway over the field to the house, for himself and his servants [with vehicles, *or* on foot] at all times of the year.

3. On the day of 19 , defendant wrongfully obstructed the said way, so that the plaintiff could not pass [with vehicles, or on foot, or in any manner] along the way [and has ever since wrongfully obstructed the same].

4. (*State special damage, if any*).

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*].

———

NO. 26

OBSTRUCTING A HIGHWAY

(*Title*)

1. The defendant wrongfully dug a trench and heaped up earth and stones in the public highway leading from to so as to obstruct it.

2. Thereby the plaintiff, while lawfully passing along the said highway, fell over the said earth and stones [*or* into the said trench] and broke his arm, and suffered great pain, and was prevented from attending to his business for a long time, and incurred expense for medical attendance.

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*]

———

NO 27

DIVERTING A WATER-COURSE

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. The plaintiff is, and at the time hereinafter mentioned was, possessed of a mill situated on a [stream] known as the , in the village of , district of .

2. By reason of such possession the plaintiff was entitled to the flow of the stream for working

the mill.

3. On the day of 19 , the defendant, by cutting the bank of the stream, wrongfully diverted the water thereof, so that less water ran into the plaintiff's mill.

4. By reason thereof the plaintiff has been unable to grind more than sacks per day, whereas, before the said diversion of water, he was able to grind sacks per day.

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*]

———

NO. 28

OBSTRUCTING A RIGHT TO USE WATER IRRIGATION

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. Plaintiff is, and was at the time hereinafter mentioned, possessed of certain lands situate, etc., and entitled to take and use a portion of the water of a certain stream for irrigating the said lands.

2. On the day 19 , the defendant prevented the plaintiff from taking and using the said portion of the said water as aforesaid, by wrongfully obstructing and diverting the said stream.

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*]

———

NO. 29

INJURIES CAUSED BY NEGLIGENCE ON A RAILROAD

THE PAKISTAN CODE

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the defendants were common carriers of passengers railway between and .

2. On that day the plaintiff was a passenger in one of the carriages of the defendants on the said railway.

3. While he was such passenger, at [or near the station of or between the stations of and], a collision occurred on the said railway caused by the negligence and unskillfullness of the defendants' servants, whereby the plaintiff was much injured [having his leg broken, his head cut, etc., and state the special damage, if any as], and incurred expense for medical attendance, and is permanently disabled from carrying on his former business as a [salesman].

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*]

[*Or thus*:—2. On that day the defendants by their servants so negligently and unskillfully drove and managed an engine and a train of carriages attached thereto upon and along the defendants' railway which the plaintiff was then lawfully crossing, that the said engine and train were driven and struck against the plaintiff, whereby, etc., *as* in para 3.]

———

NO. 30

INJURIES CAUSED BY NEGLIGENT DRIVING

(*Title*)

A. B., above-named plaintiff, states as follows:—

1. The plaintiff is a shoemaker, carrying on business at . The defendant is a merchant of .

2. On the day of 19 , the plaintiff was walking [1][westward] along [1][Bunder Road], in the City of [1][Karachi], at about 3 o'clock in the afternoon. He was obliged to cross [1][Wood Street], which is a street running into [1][Bunder Road] at right angles. While he was crossing this street, and just before he could reach the foot-pavement on the further side thereof, a carriage of the defendant's drawn by two horses under the charge and control of the defendant's servants, was negligently, suddenly and without any warning turned at a rapid and dangerous pace out of [1][wood Street] into [1][Bunder Road]. The pole of the carriage struck the plaintiff and knocked him down, and he was much trampled by the horses.

3. By the blow and fall and trampling the plaintiff's left arm was broken and he was bruised and injured on the side and back, as well as internally, and in consequence thereof the plaintiff was for four months ill and in suffering, and unable to attend to his business, and incurred heavy medical and other expenses, and sustained great loss of business and profits.

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed*]

THE PAKISTAN CODE

———

[1]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s.4 and Third Sch., for "southward".

NO. 31

FOR MALICIOUS PROSECUTION

(*Title*)

[*A.B.*, the above-named plaintiff, states as follows:—

1. On the day of 19 , the defendant obtained a warrant of arrest from [a Magistrate of the said City, or as the case may be]on a charge of , and the plaintiff was arrested thereon, and imprisoned for [days, or hours, and gave bail in the sum of rupees to obtain his release].

2. In so doing the defendant acted maliciously and without reasonable or probable cause.

3. On the day of 19 , the Magistrate dismissed the complaint of the defendant and acquitted the plaintiff.

4. Many persons, whose names are unknown to the plaintiff, hearing of the arrest, and supposing the plaintiff to be a criminal, have ceased to do business with him; *or* in consequence of the said arrest, the plaintiff lost his situation as clerk to one *E. F.* ; or in consequence the plaintiff suffered pain of body and mind, and was prevented from transacting his business, and was injured in his credit, and incurred expense in obtaining his release from the said imprisonment and in defending himself against the said complaint.

[*As in paras. 4 and 5 of Form No. 1, and Relief claimed.*]

No. 32

MOVEABLES WRONGFULLY DETAINED

(*Title*)

THE PAKISTAN CODE

A. B., the above-named plaintiff states as follows:—

1. On the day of 19 , plaintiff owned [*or state facts showing a right to the possession*] the goods mentioned in the schedule hereto annexed [*or describe the goods*], the estimated value of which is rupees.

2. From that day until the commencement of this suit the defendant has detained the same from the plaintiff.

3. Before the commencement of the suit, to wit, on the day of 19 , the plaintiff demanded the same from the defendant, but he refused to deliver them.

[***As in paras. 4 and 5 of Form No. 1***]

6. The plaintiff claims—

(1) delivery of the said goods, or rupees, in case delivery cannot be had ;

(2) rupees Compensation for the detention thereof.

———

The Schedule

———

NO. 33

AGAINST A FRAUDULENT PURCHASER AND HIS TRANSFEREE WITH NOTICE

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the defendant *C.D.*, for the purpose of inducing the plaintiff to sell him certain goods, represented to the plaintiff that [he was solvent, and worth rupees over all his liabilities].

2. The plaintiff was thereby induced to sell and deliver to *C. D.* [one hundred boxes of tea], the estimated value of which is rupees.

3. The said representations were false, and were then known by *C.D.* to be so [*or* at the time of making the said representations, *C.D.* was insolvent, and knew himself to be so].

4. *C.D.* afterwards transferred the said goods to the defendant *E. F.* without consideration [*or* who had notice of the falsity of the representation].

[*As in paras. 4 and 5 of Form No. 1*]

7. The plaintiff claims—

(1) delivery of the said goods, or rupees, in case delivery cannot be had;

(2) rupees compensation for the detention thereof.

THE PAKISTAN CODE

———

NO. 34

RESCISSION OF A CONTRACT ON THE GROUND OF MISTAKE

(*Title*)

A.B., the above-named plaintiff, states as follows:—

1. On the day of 19 , the defendant represented to the plaintiff that a certain piece of ground belonging to the defendant, situated at , contained [ten bighas].

2. The plaintiff' was thereby induced to purchase the same at the price of rupees in the belief that the said representation was true, and signed an agreement of which the original is hereto annexed. But the land has not been transferred to him.

3. On the day of 19 , the plaintiff paid the defendant rupees as part of the purchase- money.

4. That the said piece of ground contained in fact only [five bighas].

[*As in paras. 4 and 5 of Form No. 1*]

7. The plaintiff claims—

(1) rupees, with interest from the day of 19,

(2) that the said agreement be delivered up and cancelled.

NO. 35

AN INJUNCTION RESTRAINING WASTE

(*Title*)

A.B., the above named plaintiff, states as follows:—

1. The plaintiff is the absolute owner of [describe the property].

2. The defendant is in possession of the same under a lease from the Plaintiff.

3. The defendant has [cut down a number of valuable trees, and threatens to cut down many more for the purpose of sale] without the consent of the plaintiff.

[*As in paras. 4 and 5 of Form No. 1*]

6. The plaintiff claims that the defendant be restrained by injunction from committing or permitting any further waste on the said premises.

[*Pecuniary compensation may also be claimed*]

THE PAKISTAN CODE

NO. 36

INJUNCTION RESTRAINING NUISANCE

(*Title*)

A.B., the above named plaintiff, states as follows:—

1. Plaintiff is, and at all the times hereinafter mentioned was, the absolute owner of [the house No. , Street [1][Karachi]].

[1]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951),s.4 and third Sch.

2. The defendant is, and at all the said times was, the absolute owner of [a plot of ground in the same street].

3. On the day of 19 , the defendant erected upon his said plot a slaughter-house, and still maintains the same; and from that day until the present time has continually caused cattle to be brought and killed there [and has caused the blood and offal to be thrown into the street opposite the said house of the plaintiff].

[4. In consequence the plaintiff has been compelled to abandon the said house, and has been unable to rent the same.]

[As in paras 4 and 5 of Form No. 1]

7. The plaintiff claims that the defendant be restrained by injunction from committing or permitting any further nuisance.

NO. 37

PUBLIC NUISANCE

(*Title*)

A. B., the above named plaintiff, states as follows:—

1. The defendant has wrongly heaped up earth and stones on a public road known as street at so as to obstruct the passage of the public along the same and threatens and intends unless restrained from so doing, to continue and repeat the said wrongful act.

2. The plaintiff has obtained the consent in writing of the Advocate General [*or* of the Collector or other officer appointed in this behalf] to the institution of this suit.

[*As in paras. 4 and 5 of Form No. 1*]

5. The plaintiff claims—

(1) a declaration that the defendant is not entitled to obstruct the passage of the public along the said public road;

(2) an injunction restraining the defendant from obstructing the passage of the public along the said public road and directing the defendant to remove the earth and stones wrongfully heaped up as aforesaid.

NO. 38

INJUNCTION AGAINST THE DIVERSION OF WATER-COURSE

(*Title*)

A.B., the above-named plaintiff, states as follows:—

[*As in Form No. 27*]

The plaintiff claims that the defendant be restrained by injunction from diverting the water as aforesaid.

THE PAKISTAN CODE

No. 39

RESTORATION OF MOVEABLE PROPERTY THREATENED WITH DESTRUCTION, AND FOR AN INJUNCTION

(*Title*)

A.B., the above-named plaintiff, states as follows:—

1. Plaintiff is, and at all times hereinafter mentioned was, the owner of [a portrait of his grand-father which was executed by an eminent painter] and of which no duplicate exists [*or state any facts showing that the property is of a kind that cannot be replaced by money*].

2. On the day of 19 , he deposited the same for safe-keeping with the defendant.

3. On the day of 19 , he demanded the same from the defendant and offered to pay all reasonable charges for the storage of the same.

4. The defendant refuses to deliver the same to the plaintiff and threatens to conceal, dispose of, cut or injure the same if required to deliver it up.

5. No pecuniary compensation would be an adequate compensation to the plaintiff for the loss of the [painting].

[*As in paras.4 and 5 of Form No. 1*]

8. The plaintiff claims—

(1) that the defendant be restrained by injunction from disposing of injuring or concealing the said [painting] ;

(2) that he be compelled to deliver the same to the plaintiff.

_____

THE PAKISTAN CODE

No. 40

INTERPLEADER

(*Title*)

A.B., the above-named plaintiff, states as follows:—

1. Before the date of the claims hereinafter mentioned *G. H.* omitted with the plaintiff [*describe the property*] for [safe-keeping].

2. The defendant *C. D.* claims the same [under an alleged assignment thereof to him from *G.H*].

3. The defendant *E. F.* also claims the same [under an order of *G. H*. transferring the same to him].

4. The plaintiff is ignorant of the respective rights of the defendants.

5. He has no claim upon the said property other than for charges and costs , and is ready and willing to deliver it to such persons as the Court shall direct.

6. The suit is not brought by collusion with either of the defendants.

[*As in paras.4 and 5 of Form No.1*]

9. The plaintiff claims—

(1) that the defendants be restrained, by injunction, from taking any proceedings against the plaintiff in relation thereto;

(2) that they be required to interplead together concerning their claims to the said property;

[(3) that some person be authorised to receive the said property pending such litigation;]

(4) that upon delivering the same to such [person] the plaintiff be discharged from all liability to either of the defendants in relation thereto.

_____

No. 41

ADMINISTRATION BY CREDITOR ON BEHALF OF HIMSELF AND ALL OTHER CREDITORS.

(*Title*)

A. B. the above-named plaintiff, states as follows:—

1. *E. F.* late of , was at the time of his death, and his estate still is, indebted to the plaintiff in the sum of [here insert nature of debt and security, if any].

2. *E. F.* died on or about the day of .
By his last will, dated the day of he appointed *C. D.* his executor [*or* devised his estate in trust, etc., or died intestate, *as the case may be*].

3. The will was proved by *C. D.* [or letters of administration were granted, etc.]

4. The defendant has possessed himself of the movable [and immovable *or* the proceeds of the immovable] property of *E. F.*, and has not paid the plaintiff his debt.

[*As in paras. 4 and 5 of Form No. 1*]

7. The plaintiff claims that an account may be taken of the movable [and immovable] property of *E.F.*, deceased, and that the same may be administered under the decree of the Court.

_____

THE PAKISTAN CODE

No. 42

ADMINISTRATION BY SPECIFIC LEGATEE

(*Title*)

[*Alter form No. 41 thus*]—

[*Omit paragraph 1 and commence paragraph 2*] *E .F*., late of died on or about the day of . By his last will, dated the day of he appointed *C. D*. his executor, and bequeathed to the plaintiff [*here state the specific legacy*].

For paragraph 4 substitute—

The defendant is in possession of the movable property of *E.F*., and, amongst other things, of the said [*here name the subject of the specific bequest*].

For the commencement of paragraph 7 substitute—

The plaintiff claims that the defendant may be ordered to deliver to him the said [*here name the subject of the specific bequest*], or that, etc.

_____

NO. 43

ADMINISTRATION BY PECUNIARY LEGATEE

(*Title*)

[*Alter Form No. 41 thus*]—

[Omit paragraph 1 and substitute for paragraph 2] *E. F*., late of died on or about the day of he appointed *C. D*. his executor, and bequeathed to the plaintiff a legacy of rupees.

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In paragraph 4 substitute "legacy" for "debt".

Another Form

(Title)

E. F., the above named plaintiff, states as follows :—

1. *A. B*. of *K* in the died on the day of . By his last will, dated the day of, he appointed the defendant and *M. N*. ,[who died in the testator's lifetime] his executors, and bequeathed his property, whether movable or immovable, to his executors in trust, to pay the rents and income thereof to the plaintiff for his life; and after his decease, and in default of his having a son who should attain twenty-one, or a daughter who should attain that age or marry, upon trust as to his immovable property for the person who would be the testator's heir-at-law, and as to his movable property for the persons who would be the testator's next-of-kin if he had died intestate at the time of the death of the plaintiff, and such failure of his issue as aforesaid.

2. The will was proved by the defendant on the day of .The plaintiff has not been married.

3. The testator was at his death entitled to movable and immovable property; the defendant entered into the receipt of the rents of the immovable property and got in the movable property; he has sold some part of the immovable property.

[As in paras. 4 and 5 of Form No. 1]

6. The plaintiff claims—

(1) to have the movable and immovable property of *A. B.*, administered in this Court and for that purpose to have all proper directions given and accounts taken;

(2) Such further or other relief as the nature of the case may require.

No. 44

EXECUTION OF TRUSTS

(*Title*)

A. B., the above-named plaintiff, states as follows :—

1. He is one of the trustees under an instrument of settlement bearing date on or about the day of made upon the marriage of *E. F.* and *G. H.*, the father and mother of the defendant [or an instrument of transfer of the estate and effects of E. F. for the benefit of C. D., the defendant and the other creditors of E. F.].

2. *A. B.* has taken upon himself the burden of the said trust, and is in possession of (*or* of the proceeds of) the movable and immovable property transferred by the said instrument.

THE PAKISTAN CODE

3. *C. D.* claims to be entitled to a beneficial interest under the instruments.

[*As in paras 4 and 5 of Form No. 1*]

6. The plaintiff is desirous to account for all the rents and profits of the said immovable property [and the Proceeds of the sale of the said, *or* of part of the said, immovable property, *or* movable, or the proceeds of the sale of, or of part of, the said movable property, *or* the profits accruing to the plaintiff as such trustee in the execution of the said trust]; and The prays that the Court will take the accounts of the said trust, and also that the whole of the said trust estate may be administered in the Court for the benefit of *C.D.*, the defendant, and all other persons who may be interested in such administration, in the presence of *C.D.* and such other persons so interested as the Court may direct, or that *C.D.* may show good cause to the contrary.

[*N. B.— Where the suit is by a beneficiary, the plaint may be modelled, mutatis mutandis on the plaint by a legatee*].

No. 45

FORECLOSURE OR SALE

(*Title*)

A. B., the above-named plaintiff, states as follows :—

1. The plaintiff is mortgagee of lands belonging to the defendent.

2. The following are the particulars of the mortgage:—

(a) (date);

(b) (names of mortgagor and mortgagee);

(c) (sum secured);

(d) (rate of Interest);

(e) (Property subject to mortgage);

(f) (*amount now due*);

(g) *if (the plaintiff's title is derivative, state shortly the transfers or devolution under which he claims).*

(*If the plaintiff is mortgagee in possession, add*)

3. The plaintiff took possession of the mortgaged property on the day of and is ready to account as mortgagee in possession from that time.

[*As in paras.4 and 5 of Form No. 1*]

6. The plaintiff claims—

(1) payment, or in default [sale or] foreclosure [and possession];

[*Where Order 34, rule 6, applies*.]

(2) In case the proceeds of the sale are found to be insufficient to pay the amount due to the plaintiff, then that liberty be reserved to the plaintiff to apply for a decree for the balance.

———

No. 46

REDEMPTION

(*Title*)

A. B., the above-named plaintiff, states as follows :—

1. The plaintiff is mortgagor of lands of which the defendant is mortgagee.

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2. The following are the particulars of the mortgage:—

(a) (date) ;

(b) names of mortgagor and mortgagee);

(c) (sum secured);

(d) (rate of interest);

(e) (property subject to mortgage);

(f) (*If the plaintiff's title is derivative, state shortly the transfers or, devolution under which he claims*).

(*If the defendant is mortgagee in possession, add*)

3. The defendant has taken possession [or has received the rents] of the mortgaged property.

[As in paras. 4 and 5 of Form No. 1]

6. The plaintiff claims to redeem the said property and to have the same reconveyed to him [and to have possession thereof].

NO. 47

SPECIFIC PERFORMANCE (NO. 1)

(*Title*)

A.B., the above named-plaintiff, states as follows:—

1. By an agreement dated the day of and signed by the defendant, he contracted to buy of [*or* sell to] the plaintiff certain immovable property therein described and referred to, for the sum of rupees.

2. The plaintiff has applied to the defendant specifically to perform the agreement on his part, but the defendant has not done so.

3. The plaintiff has been and still is ready and willing specifically to perform the agreement on his part of which the defendant has had notice.

[*As in paras 4 and 5 of Form No. 1*]

6. The plaintiff claims that the Court will order the defendant specifically to perform the agreement and to do all acts necessary to put the plaintiff in full possession of the said property [or to accept a transfer and possession of the said property] and to pay the costs of the suit.

NO. 48

SPECIFIC PERFORMANCE (No.2)

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. On the day of 19, the plaintiff and defendant entered into an agreement, in writing, and the original document is hereto annexed.

The defendant was absolutely entitled to the immovable property described in the agreement.

2. On the day of 19 , the plaintiff tendered rupees to the defendant, and demanded a transfer of the said property by a sufficient instrument.

3. On the day 19 , the plaintiff again demanded such transfer [*Or* the defendant refused to transfer the same to the plaintiff.]

4. The defendant has not executed any instrument of transfer.

5. The plaintiff is still ready and willing to pay the purchase-money of the said property to the defendant.

[*As in paras 4 and 5 of Form No. 1*]

8. The plaintiff claims—

(1) That the defendant transfers the said property to the plaintiff by a sufficient instrument [*following the terms of the agreement*] ;

(2) rupees compensation for withholding the same.

THE PAKISTAN CODE

NO. 49

PARTNERSHIP

(*Title*)

A. B., the above-named plaintiff, states as follows:—

1. He and *C.D.*, the defendant have been for years [or months] past carrying on business together under articles of partnership in writing [*or* under a deed, *or* under a verbal agreement].

2. Several disputes and differences have arisen between the plaintiff and defendant as such partners whereby it has become impossible to carry on the business in partnership with advantage to the partners. [*Or* the defendant has committed the following breaches of the partnership articles:—

(1)

(2)

(3)

[*As in paras. 4 and 5 of Form No. 1*]

5. The plaintiff claims—

(1) dissolution of the partnership ;

(2) that accounts be taken ;

(3) that a receiver be appointed.

(*N. B.— In suits for the winding-up of any partnership, omit the claim for dissolution; and instead insert a paragraph stating the facts of the partnership having been dissolved*).

---

(4) Written Statements

General Defenses

Denial.— The defendant denies that (*set out facts*).

The defendant does not admit that (set out facts).

The defendant admits that but says that

Protest.— The defendant denies that he is a partner in the defendant firm of

The defendant denies that he made the contract alleged or any contract with the plaintiff. The defendant denies that he contracted with the plaintiff as alleged or at all.

The defendant admits assets but not the plaintiff's claim.

THE PAKISTAN CODE

The defendant denies that the plaintiff sold to him the goods mentioned in the plaint or any of them.

Limitation.— The suit is barred by article or article of the Second Schedule to the [1][Limitation Act, 1908 (IX of 1908)].

Jurisdiction.— The Court has no jurisdiction to hear the suit on the ground that (*set forth the grounds*).

On the day of a diamond ring was delivered by the defendant to and accepted by the plaintiff in discharge of the alleged cause of action.

Insolvency.— The defendant has been adjudged an insolvent.

The plaintiff before the institution of the suit was adjudged an insolvent and the right to sue vested in the receiver.

---

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Second Sch.

Minority.— The defendant was a minor at the time of making the alleged contract.

Payment into Court.— The defendant as to the whole claim (*or* as to Rs. , part of the money claimed, (*or as the case may be*) has paid into Court Rs. and says that this sum is enough to satisfy the plaintiff's claim [*or* the part aforesaid].

Performance remitted.— The performance of the promise alleged was remitted on the (Date).

Rescission.— The contract was rescinded by agreement between the plaintiff and defendant.

Res Judicata.— The plaintiff's claim is barred by the decree in suit (*give the reference*).

Estoppel.— The plaintiff is estopped from denying the truth of (*insert statements as to which estoppel is claimed*) because (*here state the facts relied on as creating the estoppel*).

Ground of defense subsequent to institution of suit.— Since the institution of the suit, that is to say, on the day of

(*set out facts*).

NO. 1

DEFENCE IN SUITS FOR GOODS SOLD AND DELIVERED

1. The defendant did not order the goods.

2. The goods were not delivered to the defendant.

3. The price was not Rs.

[*or*]

4. } Except as to Rs. same as { 1.
5. } { 2.
6. } { 3.

7. The defendant [*or A.B.,* the defendant's agent] satisfied the claim by payment before suit to the plaintiff [*or* to C. D., the plaintiff's agent] on the day of 19 .

8. The defendant satisfied the claim by payment after suit to the plaintiff on the day of 19 .

No. 2

DEFENCE IN SUITS ON BONDS

1. The bond is not the defendant’s bond.

THE PAKISTAN CODE

2. The defendant made payment to the plaintiff on the day according to the condition of the bond.

3. The defendant made payment to the plaintiff after the day named and before suit of the principal and interest mentioned in the bond.

No. 3

DEFENCE IN SUITS ON GUARANTEES

1. The principal satisfied the claim by payment before suit.

2. The defendant was released by the plaintiff giving time to the principal debtor in pursuance of a binding agreement.

No. 4.

DEFENCE IN ANY SUIT FOR DEBT

1. As to Rs. 200 of the money claimed, the defendant is entitled to set off for goods sold and delivered by the defendant to the plaintiff.

Particulars are as follows:-

		Rs.
1907, January, 25th		150
February, 1st		50
	Total	200

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2. As to the whole [*or* as to Rs. , part of the money claimed the defendant made tender before suit of Rs. and has paid the same into Court.

No. 5.

DEFENCE IN SUITS FOR INJURIES CAUSED BY NEGLIGENT DRIVING

1. The defendant denies that the carriage mentioned in the plaint was the defendant's carriage, and that it was under the charge or control of the defendant's servants. The carriage belonged to of Street,[1][Karachi], livery stable keepers employed by the defendant to supply him with carriages and horses; and the person under whose charge and control the said carriage was, was the servant of the said.

[1]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s.4 and Third Sch., for "Calcutta".

2. The defendant does not admit that the said carriage was turned out of [1][Wood Street] either negligently, suddenly or without warning, or at a rapid or dangerous pace.

3. The defendant says the plaintiff might and could, by the exercise of reasonable care and diligence have seen the said carriage approaching him, and avoided any collision with it.

4. The defendant does not admit the statements contained in the third paragraph of the plaint.

No. 6.

DEFENCE IN ALL SUITS FOR WRONGS

1. Denial of the several acts [*or* matters] complained of.

No. 7.

DEFENCE IN SUITS FOR DETENTION OF GOODS

1. The goods were not the property of the plaintiff.

2. The goods were detained for a lien to which the defendant was entitled Particulars are as follows:—

3. 1907, May 3rd, To carriage of the goods claimed from [1][Lahore] to [1][Karachi]:—

45 maunds at Rs. 2 per maund .. .. .. Rs. 90.00

No. 8

DEFENCE IN SUITS FOR INFRINGEMENT OF COPYRIGHT

1. The plaintiff is not the author [*assignee, etc.*]

2. The book was not registered.

3. The defendant did not infringe.

---

[1]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s.4 and Third Sch.

NO. 9

DEFENCE IN SUITS FOR INFRINGEMENT TRADE MARK

1. The trade mark is not the plaintiff's.

2. The alleged trade mark is not a trade mark.

3. The defendant did not infringe.

NO. 10

DEFENCES IN SUITS RELATING TO NUISANCES

1. The plaintiff's lights are not ancient [or deny his other alleged prescriptive rights].

2. The plaintiff's lights will not be materially interfered with by the defendant's buildings.

3. The defendant denies that he or his servants pollute the water [*or* do what is complained of].

[*If the defendant claims the right by prescription or otherwise to do what is complained of, he must say so, and must state the grounds of the claim, i.e. whether by prescription, grant or what*].

4. The plaintiff has been guilty of laches of which the following are particulars:-

1870 Plaintiff's mill began to work.

1871. Plaintiff's came into possession.

1883. First complaint.

5. As to the plaintiff's claim for damages the defendant will rely on the above grounds of defence, and says that the acts complained of have not produced any damage to the plaintiff. [*If other grounds are relied on, they must be stated, e.g., limitation as to past damage*.]

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NO. 11

DEFENCE TO SUIT FOR FORECLOSURE

1. The defendant did not execute the mortgage.

2. The mortgage was not transferred to the plaintiff (*if more than one transfer is alleged, say which is denied*).

3. The suit is barred by article of the second schedule to the [1][Limitation Act, 1908 (IX of 1908)].

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Second Sch.

4. The following payments have been made, viz:—

		Rs.
(*Insert date*)_____,	.. .. ..	1,000
(*insert date*)_____,	.. .. ..	500

5. The plaintiff took possession on the of , and has received the rents ever since.

6. That plaintiff released the debt on the of .

7. The defendant transferred all his interest to *A. B*. by a document dated.

_____

NO. 12

DEFENCE TO SUIT FOR REDEMPTION

1. The plaintiff's right to redeem is barred by article of the second schedule to the [1][Limitation Act, 1908 (IX of 1908)].

2. The plaintiff transferred all interest in the property to *A. B.*

3. The defendant, by a document dated the day of transferred all his interest in the mortgaged debt and property comprised in the mortgage to *A. B.*

4. The defendant never took possession of the mortgaged property, or received the rents thereof.

(*If the defendant admits possession for a time only, he should state the time and deny possession beyond what he admits*).

_____

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NO. 13

DEFENCE TO SUIT FOR. SPECIFIC PERFORMANCE

1. The defendant did not enter into the agreement.

2. A. B. was not the agent of the defendant (*if alleged by plaintiff*).

3. The plaintiff has not performed the following conditions—(*Conditions*)

4. The defendant did not—(*alleged acts of part performance*).

5. The plaintiff's title to the property agreed to be sold is not such as the defendant is bound to accept by reason of the following matter—(*State why*).

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and Second Sch.

6. The agreement is uncertain in the following respects—(*State them*).

7. (*or*) the plaintiff has been guilty of delay.

8. (*or*) The plaintiff has been guilty of fraud (*or misrepresentation*).

9. (*or*) The agreement is unfair.

10. (*or*) The agreement was entered into by mistake.

11. The following are particulars of (7), (8), (9), (10), (*or as the case may be*).

12. The agreement was rescinded under conditions of Sale, No. 11 (*or by mutual agreement*).

(*in cases where damages are claimed and the defendant disputes his liability to damages, he must deny the agreement or the alleged breaches, or show whatever other ground of defence he intends to rely on, e.g., the Indian Limitation Act, accord and satisfaction, release, fraud, etc.*).

NO. 14

DEFENCES IN ADMINISTRATION SUIT BY PECUNIARY LEGATEE

1. A. B.'s will contain a charge of debts ; he died insolvent ; he was entitled at his death to some immovable property which the defendant sold and which produced the net sum of Rs.
,and the testator had some movable property which the defendant got in, and which produced the net sum of Rs.

2. The defendant applied the whole of the said sums and the sum of Rs. which the defendant received from rents of the immovable property in the payment of the funeral and testamentary expenses and some of the debts of the testator.

3. The defendant made up his accounts and sent a copy thereof to the plaintiff on the day of 19 , and offered the plaintiff free access to the vouchers to verify such accounts, but he declined to avail himself of the defendant's offer.

4. The defendant submits that the plaintiff ought to pay the costs of this Suit.

NO. 15

PROBATE OF WILL IN SOLEMN FORM

1. The said will and codicil of the deceased were not duly executed according to the provisions of the [1]Indian Succession Act, 1865 (X of 1865) [*or* of the Hindu Wills Act, 1870 (XXI of 1870)].

2. The deceased at the time the said will and codicil respectively purport to have been executed, was not of sound mind, memory and understanding.

---

[1]*See* now the Succession Act, 1925 (39 of 1925).

3. The execution of the said will and codicil was obtained by the undue influence of the plaintiff [and others acting with him whose names are at present unknown to the defendant].

4. The execution of the said will and codicil was obtained by the fraud of the plaintiff, such fraud so far as is within the defendant's present knowledge, being [*state the nature of the fraud*].

5. The deceased at the time of the execution of the said will and codicil did not know and approve of the contents thereof [*or* of the contents of the residuary clauses in the said will, *as the case may be*].

6. The deceased made his true last will, dated the 1st January, 1873, and there, by appointed the defendant sole executor thereof.

The defendant claim—

(1) that the Court will pronounce against the said will and codicil propounded by the plaintiff ;

(2) that the Court will decree probate of the will of the deceased, dated the 1st January, 1873, in solemn form of law.

_____

NO. 16.

PARTICULARS (O. 6 , r. 5)

(*Title of suit*)

Particulars. The following are the particulars of (here state the matters in respect of which particulars have been ordered) delivered pursuant to the order of the of

(*Here set out the particulars ordered in paragraphs if necessary*)

_____

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APPENDIX B

PROCESS

_____

NO. 1

SUMMONS FOR DISPOSAL OF SUIT. (O. 5, r. 1, 5)

(Title)

To

[*Name, description and place of residence*]

WHEREAS ;

has instituted a suit against you for you are hereby summoned to appear in this court in person or by a pleader duly instructed, and able to answer all material questions relating to the suit, or who shall be accompanied by some person able to answer all such questions, on the day of 19, at o'clock in the noon, to answer the claim; and as the day fixed for your appearance is appointed for the final disposal of the suit, you must be prepared to produce on that day all the witnesses upon whose evidence and all the documents upon which you intend to rely in support of your defence.

Take notice that, in default of your appearance on the day before mentioned, the suit will be heard and determined in your absence.

GIVEN under my hand and the seal of the Court, this day of 19.

Judge.

NOTICE.—1. Should you apprehend your witnesses will not attend of their own accord, you can have a summons from this Court to compel the attendance of any witness, and the production of any document that you have a right to call upon the witness to produce, on applying to the Court and on depositing the necessary expenses.

2. If you admit the claim, you should pay the money into Court together with the costs of the suit, to avoid execution of the decree, which may be against your person or property, or both.

No. 2

SUMMONS FOR SETTLEMENT OF ISSUES, (O. 5, rr. 1, 5)

(*Title*)

To

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[*Name, description and place of residence*]

WHEREAS

has instituted a suit against you for you are hereby summoned to appear in this Court in person, or by a pleader duly instructed, and able to answer all material questions relating to the suit, or who shall be accompanied by some person able to answer all such questions, on the day of 19 , o' clock in the noon, to answer the claim; and you are directed to produce on that day all the documents upon which you intend to rely in support of your defence [1][and to file on or before that date your written statement].

Take notice that, in default of your appearance on the day before mentioned, the suit will be heard and determined in your absence.

[1]Ins. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch.

GIVEN under my hand and the seal of the Court, this day of 19 . *Judge.*

NOTICE.—1. Should you apprehend your witnesses will not attend of their own accord, you can have a summons from this Court to compel the attendance of any witness, and the production of any document that you have a right to call upon the witness to produce, on applying to the Court and on depositing the necessary expenses.

2. If you admit the claim, you should pay the money into Court together with the costs of the suit, to avoid execution of the decree, which may be against your person or property, or both.

———

NO. 3

SUMMONS TO APPEAR IN PERSON (O. 5, r. 3)

(*Title*)

To

[*Name, description and place of residence*]

WHEREAS has instituted a suit against you for you are hereby summoned to appear in this court in person on the day of 19 , at o'clock in the noon, to answer the claim: and you are directed to produce on that day all the documents upon which you intend to rely in support of your defence.

Take notice that, in default of your appearance on the day before mentioned, the suit will be heard and determined in your absence.

GIVEN under my hand and the seal of the Court this day of 19 . *Judge.*

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———

NO. 4

SUMMONS IN SUMMARY SUIT ON NEGOTIABLE INSTRUMENT (O. 37, r. 2)

(*Title*)

To,

[*Name, description and place of residence*]

WHEREAS has institute a suit against you under Order XXXVII of the Code of Civil Procedure, 1908, for Rs. , balance of principal and interest due to him as the of a which a copy is hereto annexed, you are hereby summoned to obtain leave from the Court within ten days from the service hereof to appear and defend the suit, and within such time to cause an appearance to be entered for you. In default whereof the plaintiff will be entitled at any time after the expiration of such ten days to obtain a decree for any sum

not exceeding the sum of Rs. and the sum of Rs. for costs [1][together with such interest, if any, from the date of the institution of the suit as the Court may order].

Leave to appear may be obtained on an application to the Court supported by affidavit or declaration showing that there is a defence to the suit on the merits or that it is reasonable that you should be allowed to appear in the suit.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge.

NO. 5

NOTICE TO PERSON WHO, THE COURT CONSIDERS, SHOULD BE ADDED AS CO-PLAINTIFF (O. I, r. 10)

(*Title*)

To

[*Name, description and place of residence*]

WHEREAS has instituted the above suit against for and whereas it appears necessary that you should be added as a plaintiff in the said suit in order to enable the Court effectually and completely to adjudicate upon and settle all the questions involved:

Take notice that you should on or before the day of 19 , signify to this Court whether you consent to be so added.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge.

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NO. 6

SUMMONS TO LEGAL REPRESENTATIVE OF A DECEASED DEFENDANT (O. 22, r. 4)

(*Title*)

To

WHEREAS the plaintiff instituted a suit in this Court on the day of 19 , against the defendant who has since deceased, and whereas the said plaintiff has made an application to this Court alleging that you are the legal representative of the said deceased, and desiring that you be made the defendant in his stead:

---

[1]Ins. by the Negotiable Instruments (Interest) Act, 1926 (30 of 1926), s.4.

You are hereby summoned to attend in this Court on the day of 19 , at A.M. to defend the said suit and: in default of your appearance on the day specified, the said suit will be heard and determined in your absence.

GIVEN under my hand and the seal of the Court, this day of 19.

Judge.

NO. 7

ORDER FOR TRANSMISSION OF SUMMONS FOR SERVICE IN THE JURISDICI ION OF ANOTHER COURT (O. 5, r. 21)

(*Title*)

TO

WHEREAS it is stated that defendant/witness in the above suit is at present residing in : it is ordered that a summons returnable on the day of 19 , be forwarded to the Court of for service on the said defendant/witness with a duplicate of this proceeding.

The court-fee of chargeable in respect to the summons has been realized in this Court in stamps.

Dated 19 .

Judge.

NO. 8

ORDER FOR TRANSMISSION OF SUMMONS TO BE SERVED ON A PRISONER (O. 5, r. 24)

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(*Title*)

To

The Superintendent of the Jail at

UNDER the provisions of Order V, rule 24, of the Code of Civil Procedure, 1908, a summons in duplicate is herewith forwarded for service on the defendant who is a prisoner in jail. You are requested to cause a copy of the said summons to be served upon the said defendant and to return the original to this Court signed by the said defendant, with a statement of service endorsed thereon by you.

Judge

NO. 9

ORDER FOR TRANSMISSION OF SUMMONS TO BE SERVED ON A PUBLIC SERVANT OR SOLDIER. (O. 5, rr. 27, 28)

(*Title*)

To

UNDER the provisions of Order V, rule 27 (or 28, as the case may be), of the Code of Criminal Procedure, 1908, a summons in duplicate is herewith forwarded for service on the defendant who is stated to be serving under you. You are requested to cause a copy of the said summons to be served upon the said defendant and to return the original to this Court signed by the said defendant, with a statement of service endorsed thereon, by you.

Judge.

_____

NO. 10

TO ACCOMPANY RETURNS OF SUMMONS OF ANOTHER COURT (O. 5, r. 23)

(*Title*)

Read proceeding from the forwarding for service on in Suit No. of 19 of that Court.

Read Serving officer's endorsement stating that the and proof of the above having been duly taken by me on the oath of and it is ordered that the be returned to the with a copy of this proceeding.

Judge.

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NOTE.— This form will be applicable to process other summons, the service which may have to be effected in the same manner.

_____

No. 11

AFFIDAVIT OF PROCESS TO ACCOMPANY RETURN OF A SUMMONS OR NOTICE (O. 5, r. 18)

(*Title*)

The Affidavit of son of I. make oath/affirm and say as follows:—

(1) I am a process-server of this Court.

(2) On the day of 19 , I received a summons/notice issued by the Court of

in Suit No. of 19 in the said Court, dated the day of 19 , for service on .

(3) the said was at the time personally known to me and I served the said summons/notice on him/her on the day of 19 , at about o'clock in the noon at by tendering a copy thereof him/her and requiring his/her signature to the original summons/notice.

(a)

(b)

(a) Here state whether the person served signed or refused to sign the process, and in whose presence.

(b) Signature of process-server.

or,

(3) The said not being personally known to me accompanied me to and pointed out to me a person whom he stated to be the said , and I served the said summons/notice on his/her on the day of 19, at about o'clock in the noon at by tendering a copy thereof to him /her and requiring his/her signature to the original summons/notice.

(a)

(b)

(a) Here state whether the person served signed or refused to sign the process and in whose presence.

(b) Signature of process-server.

or,

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(3) The said and the house in which he ordinarily resides being personally known to me, I went to the said house, in and thereon the day of 19 , at about o'clock in the noon, I did not find the said.

(a)

(b)

(a) Enter fully and exactly the manner in which the process was served, with special reference to Order 5, rule 15 and 17.

(b) Signature of process-server.

or,

(3) One accompanied me to and there pointed out to me which he said was the house in which ordinarily resides. I did not find the said there.

(a)

(b)

(a) Enter fully and exactly the manner in which the process was served, with special reference to Order 5, rules 15 and 17.

(b) Signature of process-server.

or,

If substituted service has been ordered, state fully and exactly the manner in which the summons was served with special reference to the terms of the order for substituted service.

Sworn/Affirmed by the said before me this day of 19 .

Empowered under section 139 of the Code of Civil Procedure, 1908 to administer the oath to deponents.

NO. 12

[NOTICE TO DEFENDANT (O. 9, r. 6)]

(*Title*)

To

[*Name, description and place of residence*]

WHEREAS this day was fixed for the hearing of the above suit and a summons was issued to you and the plaintiff has appeared in this Court and you did not so appear, but from the return of the Nazir it has been proved to the satisfaction of the Court that the said summons was served on you but not in sufficient time to enable you to appear and answer on the day fixed in the said summons;

Notice is hereby given to you that the hearing of the suit is adjourned this day and that the day of 19 is now fixed for the hearing of the same; in default of your appearance on the day last mentioned the suit will be heard and determined in your absence.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge.

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No. 13

SUMMONS TO WITNESS (O. 16, rr. 1, 5)

(*Title*)

To

WHEREAS your attendance is required to on behalf of the in the above suit, you are hereby required [personally] to appear this Court on the day of 19 , at o'clock in the forenoon, and to bring with you [*or* to send to this Court].

A sum of Rs. , being your travelling and other expenses and subsistence allowance for one day, is herewith sent. If you fail to comply with this order without lawful excuse, you will be subject to the consequences of non-attendance laid down in rule 12 of Order XVI of the Code of Civil Procedure, 1908.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge.

NOTICE.— (1) If you are summoned only to produce a document and not to evidence, you shall be deemed to have complied with the summons if you cause such document to be produced in this Court on the day and hour aforesaid.

(2) If you are detained beyond the day aforesaid, a sum of Rs. will be tendered to you for each day's attendance beyond the day specified.

_____

NO. 14.

PROCLAMATION REQUIRING ATTENDANCE OF WITNESS (O. 16, r. 10)

(*Title*)

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To

WHEREAS it appears from the examination on oath of the serving officer that the summons could not be served upon the witness in the manner prescribed by law: and whereas it appears that the evidence of the witness is material, and he absconds and keeps out of the way for the purpose of evading the service of the summons : This proclamation is therefore, under rule 10 of Order XVI of the Code of Civil Procedure, 1908, issued requiring the attendance of the witness in this Court on the day of 19 at o'clock in the forenoon and from day to day until he shall have leave to depart; and if the witness fails to attend on the day and hour aforesaid he will be dealt with according to law.

GIVEN Under my hand and the seal of the Court, this day of 19 .

Judge.

NO. 15

PROCLAMATION REQUIRING ATTENDANCE OF WITNESS. (O. 16, r. 10)

(*Title*)

To,

WHEREAS it appears from the examination on oath of the serving officer that the summons has been duly served upon the witness, and whereas it appears that the evidence of the witness is material and he has failed to attend in compliance with such summons : This proclamation is therefore, under rule 10 of Order XVI of the Code of Civil Procedure, 1908, issued, requiring the attendance of the witness in this Court on the day of 19 at o'clock in the forenoon, and from day to day until he shall have leave to depart; and if the witness fails to attend on the day and hour aforesaid he will be dealt with according to law.

GIVEN under my hand and the seal of the Court this day of 19.

Judge

NO. 16

WARRANT OF ATTACHMENT OF PROPERTY OF WITNESS (O. 16, r. 10)

(*Title*)

To

The Bailiff of the Court.

WHEREAS the witness cited by has not, after the expiration of the period limited in the proclamation issued for his attendance, appeared in Court ; you are hereby directed to hold under attachment property belonging to the said witness to the value of and to submit a return, accompanied with an inventory thereof, within days.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

NO. 17

WARRANT OF ARREST OF WITNESS. (O. 16, r. 10)

(*Title*)

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To

The Bailiff of the Court.

WHEREAS has been duly served with a summons but has failed to attend [absconds and keeps out of the way for the purpose of avoiding service of a summons] ; You are hereby ordered to arrest and bring the said before the Court.

You are further ordered to return this warrant on or before the day of 19 with an endorsement certifying the day on and the manner in which it has been executed, or the reason why it has not been executed.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

NO. 18

WARRANT OF COMMITTAL (O. 16, r. 16)

(*Title*)

To

The Officer in charge of the Jail at .

WHEREAS the plaintiff (or defendant) in the above-named suit has made application to this Court that security be taken for the appearance of to give evidence (or to produce a document), on the day of 19 ; and whereas the Court has called upon the said to furnish such security, which he has failed to do ; This is to require you to receive the said into your custody in the civil prison and to produce him before this Court at on the said day and on such other day or days as may be hereafter ordered.

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GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

NO. 19.

WARRANT OF COMMITTAL. (O. 16, r. 18)

(*Title*)

To

The Officer in charge of the Jail at

WHEREAS , whose attendance is required before this Court in the above-named case to give evidence (*or* to produce a document) ,has been arrested and brought before the Court in custody; and whereas owing to the absence of the plaintiff (*or* defendant), the said cannot give such evidence (*or* produce such document); and whereas the Court has called upon the said to give security for his appearance on the day of 19 , at which he has failed to do; This is to require you to receive the said into your custody in the civil prison and to produce him before this Court at on the day of 19 .

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

APPENDIX C

DISCOVERY, INSPECTION AND ADMISSION

NO 1

ORDER FOR DELIVERY OF INTERROGATORIES (O. 11, r. 1)

In the Court of

Civil Suit No. of 19 .

A. B. .. .. *Plaintiff,*

against

C.D., E.F. and *G. H* .. .. *Defendants*

Upon hearing and upon reading the affidavit of filed the day of 19 ; It is ordered that the be at liberty to deliver to the interrogatories in writing, and that the said do answer the interrogatories as prescribed by Order XI, rule 8, and that the costs of this application be

---

NO 2

INTERROGATORIES. (O. 11, r. 4)

(*Title as in No. 1, supra*)

Interrogatories on behalf of the above-named [plaintiff or defendant C. D.] for the examination

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of the above-named [*defendant E.F. and G.H. or plaintiff*].

1. Did not, etc.

2. Has not, etc.

etc., etc., etc.,

[*The defendant E. F. is required to answer the interrogatories numbered*.]

[*The defendant G.H. is] required to answer the interrogatories numbered.*

NO. 3

ANSWER TO INTERROGATORIES. (O. 11, r. 9)

(*Title as in No. 1, supra*)

The answer of the above-named defendant E. F. to the interrogatories for his examination by the above-named plaintiff.

In answer to the said interrogatories, I, the above named E. F., make oath and say as follows:—

1. }
2. } Enter answers to interrogatories in paragraph numbered consecutively.

3. I object to answer the interrogatories numbered on the ground that [*state grounds of objection*].

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NO. 4

ORDER FOR AFFIDAVIT AS TO DOCUMENTS. (O. 11, r. 12)

(*Title as in No. 1, supra*)

Upon hearing ; It is ordered that the do within days from the date of this order, answer on affidavit stating which documents are or have been in his possession or power relating to the matter in question in this suit, and that the costs of this application be

---

NO. 5.

AFFIDAVIT AS TO DOCUMENTS. (O. 11, r. 13)

(*Title as in No. 1, supra*)

I, the above-named defendant C. D., make oath and say as follows :—

1. I have in my possession or power the documents relating to the matters in question in this suit set forth in the first and second parts of the first schedule hereto.

2. I object to produce the said documents set forth in the second part of the first schedule hereto [*state grounds of objection*].

3. I have had but have not now, in my possession or power the document relating to the matters in question in this suit set forth in the second schedule hereto.

4. The last-mentioned documents were last in my possession or power on [*state when and what has become of them and in whose possession they now are*].

5. According to the best of my knowledge, information and belief I have not now, and never had, in my possession, custody or power, or in the possession, custody or power of my pleader or agent, or in the possession, custody or power of any other person on my behalf, any account, book of account, voucher, receipt, letter, memorandum, paper or writing, or any copy of or extract from any such document, or any other document whatsoever, relating to the matters in question in this suit or any of them, or wherein any entry has been made relative to such matters or any of them, other than and except the documents set forth in the said first and second schedules hereto.

———

NO. 6

ORDER TO PRODUCE DOCUMENTS FOR INSPECTION. (O. 11, r. 14)

(*Title as in No. 1, supra*)

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Upon hearing and upon reading the affidavit of filed the day of 19 ; It is ordered that the do, at all reasonable times , on reasonable notice, produce at situate at , the following documents, namely, ,and that the be at liberty to inspect and peruse the documents so produced, and to make notes of their contents. In the meantime, it is ordered that all further proceedings to be stayed and that the costs of this application be.

———

NO. 7

NOTICE TO PRODUCE DOCUMENTS. (O. 11, r. 16)

(*Title as in No. 1, supra*)

Take notice that the [*plaintiff or defendant*] requires you to produce for his inspection the following documents referred to in your [plaint *or* written statement *or* affidavit, dated the day of 19].

[*Describe documents required*.]

(X.Y., Pleader for the

To Z., Pleader for the

_____

NO. 8

NOTICE TO INSPECT DOCUMENTS. (O. 11, r. 17)

(*Title as in No. 1, supra*)

Take notice that you can inspect the documents mentioned in your notice of the day of 19 [*except the documents numbered in that notice*] at [*insert place of inspection*] on Thursday next, the instant, between the hours of 12 and 4 o'clock.

Or, that the [*plaintiff or defendant*] objects to giving you inspection of documents mentioned in your notice of the day of 19, on the ground that [*state the ground*] :-

_____

No. 9

NOTICE TO ADMIT DOCUMENTS. (O. 12, r. 3)

(*Title as in No. 1, supra*)

Take notice that the plaintiff [*or* defendant] in this suit proposes to adduce in evidence the several documents hereunder specified, and that the same may be inspected by the defendant [or plaintiff], his pleader or agent, at on between the hours of ; and the defendant [*or* plaintiff], is hereby required, within forty-eight hours from the last-mentioned hour, to admit that such of the said documents as are specified to be originals were respectively written, signed or executed, as they purport respectively to have been ; that such as are specified as copies are true copies ; and such documents as are stated to have been served, sent or delivered were so served, sent or delivered, respectively, saving all just exceptions to the admissibility of all such documents as evidence in this suit.

G. H. pleader, [*or agent*]
for plaintiff [or defendant].

To E. F., *pleader* [*or agent*] *for defendant* [or *plaintiff*].

[*Here describe the documents and specify as to each document whether it is original or a copy*].

_____

NO. 10

NOTICE TO ADMIT FACTS. (O. 12, r. 5)

(*Title as in No. 1, supra*)

Take notice that the plaintiff [*or* defendant] in this suit requires the defendant [*or* plaintiff] to admit, for the purposes of this suit only, the several facts respectively hereunder specified ; and the defendant [*or* plaintiff] is hereby required, within six days from the service of this notice, to admit the said several facts, saving all just exceptions to the admissibility of such facts as evidence in this suit.

G. H., *pleader* [or *agent*] *for plaintiff* [or *defendant*]

To E.F., *pleader* [or *agent*] *for defendant* [or *plaintiff*].

The facts, the admission of which is required, are—

1. That M. died on the 1st January, 1890.

2. That he died intestate.

3. That N. was his only lawful son.

4. That O. died on the 1st April, 1896.

5. That O. was never married.

NO. 11

ADMISSON OF FACTS PURSUANT TO NOTICE. (O. 12, r. 5)

(*Title as in No. 1, supra*)

The defendant [*or* plaintiff] in this suit, for the purposes of this suit only, hereby admits the several facts respectively hereunder specified, subject to the qualifications or limitations, if any, hereunder specified, saving all just exceptions to the admissibility of any such facts, or any of them, as evidence in this suit:

Provided that this admission is made for the purposes of this suit only, and is not an admission to be used against the defendant [*or* plaintiff] on any other occasion or by any one other than the plaintiff [*or* defendant, *or* party requiring the admission].

E. F., *pleader* [or *agent*] *for defendant* [or *plaintiff*].

To G. H., *pleader* [or *agent*] *for plaintiff* [or *defendant*].

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Facts admitted.	Qualifications or limitations, if any, subject to which they are admitted.
1. That M. died on the 1st January, 1890.	1.
2. That he died intestate ..	2.
3. That N. was his lawful son ..	3. But not that he was his only lawful son.
4. That O. died	4. But not that he died on the 1st April, 1896.
5. That O. was never married. ..	5.

NO. 12

NOTICE TO PRCDUCE (GENERAL FORM). (o. 12, r. 8)

(*Title as in No. 1, supra*)

Take notice that you are hereby required to produce and show to the Court at the first hearing of this suit all books, papers, letters, copies of letters and other writings and documents in your custody, possession or power, containing any entry, memorandum or minute relating to the matters in question in this suit, and particularly.

G. H., *pleader* [or *agent*] *for plaintiff* [or *defendant*].

To E. F., *pleader* [or *agent*] *for defendant* [or *plaintiff*].

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APPENDIX D

DECREES

NO. 1

DECREE IN ORIGINAL SUIT. (O. 20, rr. 6, 7)

(*Title*)

Claim for

THIS suit coming on this day for final disposal before in the presence of for the plaintiff and of for the defendant, it is ordered and decreed that and that the sum of Rs. be paid by the to the on account of the costs of this suit, with interest thereon at the rate of per

cent per annum from this date to date of realization.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

Costs of Suits

Plaintiff				**Defendant**			
	Rs.	**A.**	**P.**		**Rs**	**A.**	**P.**
1. Stamp for plaint ..				Stamp for power ..			
2. Do. for power ..				Do. for petition..			
3. Do for exhibits ..				Pleader's fee ..			
4. Pleader's fee on Rs.				Subsistence for witnesses			
5. Subsistence for witnesses.				Service of process			
6. Commissioner's fee				Commissioner's fee			
7. Service of process ..							
Total				Total			

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NO. 2.

SIMPLE MONEY DECREE. (Section 34)

(*Title*)

Claim for

THIS suit coming on this day for final disposal before in the presence of for the plaintiff and of for the defendant, it is ordered that the do pay to the the sum of Rs. with interest thereon at the rate of per cent per annum from to the date of realization of the said sum and do also pay Rs. , the costs of this suit, with interest thereon at the rate of per cent per annum from this date to the date of realization.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

Plaintiff				Defendant			
	Rs.	**A.**	**P.**		**Rs.**	**A.**	**P.**
1. Stamp for plaint ..				Stamp for power ..			
2. Do. for power ..				Do. for petition ..			
3. Do for exhibits ..				Pleader's fee ..			
4. Pleader's fee on Rs.				Subsistence for witnesses			
5. Subsistence for witnesses.				Service of process			
6. Commissioner's fee				Commissioner’s fee			
7. Service of process							
Total ..				Total ..			

[1][NO. 3

PRELIMINARY DECREE FOR FORECLOSURE

(Order XXXIV, rule. 2.— Where accounts are directed to be taken)

(*Title*)

This suit coming on this day, etc.; It is hereby ordered and decreed that it be referred to as the Commissioner to take the accounts of following:—

(i) an account of what is due on this date to the plaintiff for principal and interest on his mortgage mentioned in the plaint (such interest to be computed at the rate payable on the principal or where no such rate is fixed, at six per cent, per annum or at such rate as the Court deems reasonable) ;

[1]Forms 3 to 11 were subs. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (21 of 1929), s. 8 and Sch., for the original forms.

(ii) an account of the income of' the mortgaged property received up to this date by the plaintiff or by any other person by the order or for the use of the plaintiff or which without the willful default of the plaintiff or such person might have been so received;

(iii) an account of all sums of money properly incurred by the plaintiff up to this date for costs, charges and expenses (other than the costs of the suit) in respect of the mortgage-security, together with interest thereon (such interest to be computed at the rate agreed between the parties, or, failing such rate, at the same rate as is payable on the principal, or, failing both such rates, at nine per cent.per annum) ;

(iv) an account of any loss or damage caused to the mortgaged property before this date by any act or omission of the plaintiff which is destructive of, or permanently injurious to, the property or by his failure to perform any of the duties imposed upon him by any law for the time being in force or by the terms of the mortgage-deed.

(2) And it is hereby further ordered and decreed that any amount received under clause (ii) or adjudged due under clause (iv) above, together with interest thereon, shall first be adjusted against any sums paid by the plaintiff under clause (iii) together with interest thereon, and the balance, if any, shall be added to the mortgage-money or, as the case may be, be debited in reduction of the amount due to the plaintiff on account of interest on the principal sum adjudged due and thereafter in reduction or discharge of the principal.

(3) And it is hereby further ordered that the said Commissioner shall present the account to this Court with all convenient despatch after making all just allowances on or before the day of and that upon such report of the Commissioner being received, it shall be confirmed and countersigned, subject to such modification as may be necessary after consideration of such objections as the parties to the suit may make.

(4) And it is hereby further ordered and decreed—

(i) that the defendant do pay into Court on or before the day of , or any later date up to which time for payment may be extended by the Court, such sum as the Court shall find due, and the sum of Rs. for the costs of the suit awarded to the plaintiff ;

(ii) that, on such payment and on payment thereafter before such date as the Court may fix of such amount as the Court may adjudge due in respect of such costs of the suit and such costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11 of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, the plaintiff shall bring into Court all documents in his possession or power relating to the mortgaged property in the plaint mentioned, and all such documents shall be delivered over to the defendant, or to such person as he appoints, and the plaintiff shall, if so required, re-convey or re-transfer the said property free from the said mortgage and clear of and from all incumbrances created by the plaintiff or any person claiming under him or any person under whom he claims and free from all liability whatsoever arising from the mortgage or this suit and shall, if so required, deliver up to the defendant quiet and peaceable possession of the said property.

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(5) And it is hereby further ordered and decreed that, in default of payment as aforesaid, the plaintiff shall be at liberty to apply to the Court for a final decree that the defendant shall thenceforth stand absolutely debarred and foreclosed of and from all right to redeem the mortgaged property described in the Schedule annexed hereto and shall, if so required, deliver up to the plaintiff quiet and peaceable possession of the said property; and that the parties shall be at liberty to apply to Court from time to time as they may have occasion, and on such application or otherwise the Court may give such directions as it thinks fit.

_____

SCHEDULE

Description of the mortgaged property

_____

NO. 3A

PRELIMINARY DECREE FOR FORECLOSURE

(Order XXXIV, rule 2.-Where the Court declares amount due)

(*Title*)

This suit coming on this day etc. ; It is hereby declared that the amount due to the plaintiff on his mortgage mentioned in the plaint calculated up to this day of is the sum of Rs. for principal, the sum of Rs. for interest on the said principal, the sum of Rs. for costs, charges and expenses (other than the costs of the suit) properly incurred by the plaintiff in respect of the mortgage security, together with interest thereon, and the sum of Rs. for the costs of the suit awarded to the plaintiff, making in all the sum of Rs.

2. And it is hereby ordered and decreed as follows:—

(i) that the defendant do pay into Court on or before the day of or any later date up to which time for payment may be extended; by the Court of the said sum of Rs.

(ii) that, on such payment and on payment thereafter before such date as the Court may fix of such amount as the Court may adjudge due in respect of such costs of the suit, and such costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11 of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, the plaintiff shall bring into Court all documents in his possession or power relating to the mortgaged property in the plaint mentioned, and all such documents shall be delivered over to the defendant, or to such person as he appoints, and the plaintiff shall, if so required, re-convey or re-transfer the said property free from the said mortgage and clear of and from all incumbrances created by the plaintiff or any person claiming under him or any person under whom he claims and free from all liability whatsoever arising from the mortgage or this suit and

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shall, if so required, deliver up to the defendant quiet and peaceable possession of the said property.

3. And it is hereby further ordered and decreed that, in default of payment as aforesaid, the plaintiff may apply to the Court for a final decree that the defendant shall thenceforth stand absolutely debarred and foreclosed of and from all right to redeem the mortgaged property described in the Schedule annexed hereto and shall, if so required, deliver up to the plaintiff quiet and peaceable possession of the said property; and that the parties shall be at liberty to apply to the Court from time to time as the may have occasion, and on such application or otherwise the Court may give such directions as it thinks fit.

_____

SCHEDULE

Description of the mortgage property

_____

No. 4

FINAL DECREE FOR FORECLOSURE

(Order XXXIV, rule 3)

(*Title*)

Upon reading the preliminary decree passed in this suit on the day of and further orders (if any) dated the day of and the application of the plaintiff dated the day of for a final decree and after hearing the parties and it appearing that the payment directed by the said decree and orders has not been made by the defendant or any person on his behalf or any other person entitled to redeem the said mortgage :

It is hereby ordered and decreed that the defendant and all persons claiming through or under him be and they are hereby absolutely debarred and foreclosed of and from all right of redemption of and in the property in the aforesaid preliminary decree mentioned ; *[and *(if the defendant be in possession of the said mortgaged property)* that the defendant shall deliver to the plaintiff quiet and peaceable possession of the said mortgaged property].

2. And it is hereby further declared that the whole of the liability whatsoever of the defendant upto this day arising from the said mortgage mentioned in the plaint or from this suit is hereby discharged and extinguished.

_____

*Words not required to be deleted.

No 5

PRELIMINARY DECREES FOR SALE

(Order XXXIV, rule 4.— Where accounts are directed to be taken)

(*Title*)

THIS suit coming on this day, etc.; it is hereby ordered and decreed that it be referred to as the Commissioner to take the accounts following:—

(i) an account of what is due on this date to the plaintiff for principal and interest on his mortgage mentioned in the plaint (such interest be computed at the rate payable on the principal or where no such rate is fixed, at six per cent. per annum or at such rate as the Court deems reasonable) ;

(ii) an account of the income of the mortgaged property received up to this date by the plaintiff or by any other person by the order or for the use of the plaintiff or which without the willful default of the plaintiff or such person might have been so received;

(iii) an account of all sums of money properly incurred by the plaintiff up to this date for costs, charges and expenses (other than the costs of the suit) in respect of the mortgage-security, together with interest thereon (such interest to be computed at the rate agreed between the parties, or, failing such rate, at the same rate as is payable on the principal, or, failing both such rates, at nine per cent. per annum) ;

(iv) an account of any loss or damage caused to the mortgaged property before this date by any act or omission of the plaintiff which is destructive of, or permanently injurious to, the property or by his failure to perform any of the duties imposed upon him by any law for the time being in force or by the terms of the mortgage deed.

2. And it is hereby further ordered and decreed that any amount received under clause (ii) or adjudged due under clause (iv) above, together with interest thereon, shall first be adjusted against any sums paid by the plaintiff under clause (iii), together with interest thereon, and the balance, if any, shall be added to the mortgage-money or, as the case may be, be debited in reduction of the amount due to the plaintiff on account of interest on the principal sum adjudged due and thereafter in reduction or discharge of the principal.

3. And it is hereby further ordered that the said Commissioner shall present the account to this Court with all convenient despatch after making all just allowances on or before the day of , and that upon such report of the Commissioner being received, it shall be confirmed and countersigned, subject to such modification as may be necessary after consideration of such objections as the parties to the suit may make.

4. And it is hereby further ordered and decreed—

(i) that the defendant do pay into Court on or before the day of or any later date up to which time for payment may be extended by the Court, such sum as the Court shall find due and the sum of Rs. for

the costs of the suit awarded to the plaintiff;

(ii) that, on such payment and on payment thereafter before such date as the Court may fix of such amount as the Court may adjudge due in respect of such cost of the suit, and such costs, charges and expenses as may be payable under rule 10, together with such sub- sequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, the plaintiff shall bring into Court all documents in his possession or power relating to the mortgaged property in the plaint mentioned, and all such documents shall be delivered over to the defendant, or to such person as he appoints, and the plaintiff shall, if so required. re-convey or re-transfer the said property free from the mortgage and clear of and from all in cumbrances created by the plaintiff or any person claiming under him or any person under whom he claims and shall, if so required, deliver up to the defendant quiet and peaceable possession of the said property.

5. And it is hereby further ordered and decreed that, in default of payment as aforesaid, the plaintiff may apply to the Court for a final decree for the sale of the mortgaged property; and on such application being made the mortgaged property or a sufficient part thereof shall be directed to be sold; and for the purposes of such sale the plaintiff shall produce before the Court, or such officer as it appoints, all documents in his possession or power relating to the mortgaged property.

6. And it is hereby further ordered and decreed that, the money realised by such sale shall be paid into Court and shall be duly applied (after deduction therefrom of the expenses of the sale) in payment of the amount payable to the plaintiff under this decree and under any further orders that may be passed in this suit and in payment of any amount which the Court may adjudge due to the plaintiff in respect of such costs of the suit, and such costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, and that the balance, if any, shall be paid to the defendant or other persons entitled to receive the same.

7. And it is hereby further ordered and decreed that, if the money realised by such sale shall not be sufficient for payment in full of the amount payable to the plaintiff as aforesaid, the plaintiff shall be at liberty (where such remedy is open to him under the terms of his mortgage and is not barred by any law for the time being in force) to apply for a personal decree against the defendant for the amount of the balance; and that the parties are at liberty to apply to the Court from time to time as they may have occasion, and on such application or otherwise the Court may give such directions at it thinks fit.

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SCHEDULE

Description of the mortgaged property

No. 5A

PRELIMINARY DECREE FOR SALE

(Order XXXIV, rule 4.— When the Court declares the amount due)

(*Title*)

THIS suit coming on this day, etc. ; It is hereby declared that he amount due to the plaintiff on the mortgage mentioned in the plaint calculated up to this day of is the sum of Rs. for principal, the sum of Rs. for interest on the said principal, the sum of Rs. for costs, charges and expenses (other than the costs of the suit) properly incurred by the plaintiff in respect of the mortgage-security, together with interest thereon, and the sum of Rs. for the costs of the suit awarded to the plaintiff, making in all the sum of Rs.

.

And it is hereby ordered and decreed as follows :—

(i) that the defendant do pay into Court on or before the day of or any later date up to which time for payment may be extended by the Court, the said sum of Rs. ;

(ii) that, on such payment and on payment thereafter before such date as the Court may fix of such amount as the Court may adjudge due in respect of such costs of the suit and such costs, charges and expenses as may be payable under rule 10, together with such sub- sequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, the plaintiff shall bring into Court all documents in his possession or power relating to the mortgaged property in the plaint mentioned, and all such documents shall be delivered over to the defendant, or to such person as he appoints, and the plaintiff shall, if so required, reconvey or retransfer the said property free from the said mortgage and clear of and from all incumbrances created by the plaintiff or any person claiming under him or any person under whom he claims and shall, if so required, deliver up to the defendant quiet and peaceable possession of the said property.

3. And it is hereby further ordered and decreed that, in default of payment as aforesaid, the plaintiff may apply to the Court for a final decree for the sale of the mortgaged property; and on such application being made, the mortgaged property or a sufficient part thereof shall be directed to be sold; and for the purposes of such sale the plaintiff shall produce before the Court or such officer as it appoints all documents in his possession or power relating to the mortgaged property.

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4. And it is hereby further ordered and decreed that the money realised by such sale shall be paid into Court and shall be duly applied,(after deduction there from of the expenses of the sale) in payment of the amount payable to the plaintiff under this decree and under any further orders that may be passed in this suit and in payment of any amount which the Court may adjudge due to the plaintiff in respect of such costs of the suit, and such costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, and that the balance, if any, shall be paid to the defendant or other persons entitled to receive the same.

5. And it is hereby further ordered and decreed that, if the money realised by such sale shall not be sufficient for payment in full of the amount payable to the plaintiff as aforesaid, the plaintiff shall be at liberty (where such remedy is open to him under the terms of his mortgage and is not barred by any law for the time being in force) to apply for the personal decree against the defendant for the amount of the balance; and that the parties are at liberty to apply to the Court from time to time as they may have occasion, and on such application or otherwise the Court may give such directions as it thinks fit.

———

SCHEDULE

Description of the mortgaged property

No. 6

FINAL DECREE FOR SALE

(Order XXXIV, rule 5)

(*Title*)

Upon reading the preliminary decree passed in this suit on the day of and further orders (if any) dated the day of and the application of the plaintiff dated the day of for a final decree and after hearing the parties and it appearing that the payment directed by the said decree and orders has not been made by the defendant or any person on his behalf or any other person entitled to redeem the mortgage ;

It is hereby ordered and decreed that the mortgaged property in the aforesaid preliminary decree mentioned or a sufficient part thereof be sold, and that for the purposes of such sale the plaintiff shall produce before the Court or such officer as it appoints all documents in his possession or on power relating to the mortgaged property.

2. And it is hereby further ordered and decreed that the money realised by such sale shall be paid into the Court and shall be duly applied (after deduction therefrom of the expenses of the sale) in payment of the amount payable to the plaintiff under the aforesaid preliminary decree and under any further orders that may have been passed in this suit and in payment of any amount which the Court may have adjudged due to the plaintiff for such costs of the suit including the costs of this application and such costs, charges and expenses as may be payable under rule 10. together with such subsequent interest as may be payable under rule 11, of, Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908 and that the balance if any, shall be paid to the defendant or other persons entitled to receive the same.

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No. 7

PRELIMINARY DECREE FOR REDEMPTION WHERE ON DEFAULT OF PAYMENT BY MORTGAGOR A DECREE FOR FORECLOSURE IS PASSED.

(Order XXXIV, rule 7.— Where accounts are directed to be taken)

(*Title*)

This suit coming on this day, etc. ; It is hereby ordered and decreed that it be referred to as the Commissioner to take the accounts follwoing:—

(i) an account of what is due on this date to the defendant for principal and interest on the mortgage mentioned in the plaint (such interest to be computed at the rate payable on the principal or where no such rate is fixed, at six per cent. per annum

or at such rate as the Court deems reasonable) ;

(ii) an account of the income of the mortgaged property received up to this date by the defendant or by any other person by order or for the use of the defendant or which without the wilful default of the defendant or such person might have been so received;

(iii) an account of all sums of money properly incurred by the defendant up to this date for costs, charges and expenses (other than the costs of the suit) in respect of the mortgage- security together with interest thereon (such interest to be computed at the rate agreed between the parties, or, failing such rate, at the same rate as is payable on the principal, or, failing both such rates, at nine per cent. per annum) ;

(iv) an account of any loss or damage caused to the mortgaged property before this date by any act or omission of the defendant which is destructive of, or permanently injurious to, the property or by his failure to perform any of the duties imposed upon him by any law for the time being in force or by the terms of the mortgage-deed.

2. It is hereby further ordered and decreed that any amount received under clause (ii) or adjudged due under clause (iv) above, together with interest thereon, shall be adjusted against any sums paid by the defendant under clause (iii) together with interest thereon, and the balance, if any, shall be added to the mortgage-money or, as the case may be, be debited in reduction of the amount due to the defendant on account of interest on the principal sum adjudged due and thereafter in reduction or discharge of the principal.

3. And it is hereby further ordered that the said Commissioner shall present the account to this Court with all convenient dispatch after making all just allowances on or before the day of , and that upon such report of the Commissioner being received, it shall be confirmed and countersigned, subject to such modification as may be necessary after consideration of such objections as the parties to the suit may make.

4. And it is hereby further ordered and decreed—

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(i) that the plaintiff do pay into Court on or before the day of , or any later date up to which time for payment may be extended by the Court, such sum as the Court shall find due and the sum of Rs. for the costs of the suit awarded to the defendant;

(ii) that, on such payment, and on payment thereafter before such date as the Court may fix of such amount as the Court may adjudge due in respect of such costs of the suit and such costs, charges and expenses as may be payable under rule 10, together with such sub- sequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil procedure, 1908, the defendant shall bring into Court all documents in his possession or power relating to the mortgaged property in the plaint mentioned, and all such documents shall be delivered over to the plaintiff, or to such person as he appoints, and the defendant shall, if so required, re-convey or re-transfer the said property free from the said mortgage and clear of and from all incumbrances created by the defendant or any person claiming under him or any

person under whom he claims and free from all liability whatsoever arising from the mortgage or this suit and shall, if so required, deliver up to the plaintiff quiet and peaceable possession of the said property.

5. And it is hereby further ordered and decreed that, in default of payment as aforesaid, the defendant shall be at liberty to apply to the Court for a final decree that the plaintiff shall thenceforth stand absolutely debarred and foreclosed of and from all right to redeem the mortgaged property described in the Schedule annexed hereto and shall, if so required, deliver up to the defendant quiet and peaceable possession of the said property; and that the parties shall be at liberty to apply to the Court from time to time as they may have occasion, and on such application or otherwise the Court may give such directions as it thinks fit.

_____

SCHEDULE

Description of the mortgaged property

_____

No. 7A

PRELIMINARY DECREE FOR REDEMPTION WHERE ON DEFAULT OF PAYMENT BY MORTGAGOR A DECREE FOR SALE IS PASSED.

(Order XXXIV, rule 7.— Where accounts are directed to be taken)

(*Title*)

THIS suit coming on this day, etc. ; it is hereby ordered and decreed that it be referred to as the Commissioner to take the accounts following:—

(i) an account of what is due on this date to the defendant for principal and interest on the mortgage mentioned in the plaint (such interest to be computed at the rate payable on the principal or where no such rate is fixed, at six per cent. per annum or at such rate as the Court deems reasonable) ;

(ii) an account of the income of the mortgaged property received up to this date by the defendant or by any other person by the order or for the use of the defendant or which without the wilful default of the defendant or such person might have been so received;

(iii) an account of all sums of money properly incurred by the defendant up to this date for costs, charges and expenses (other than the costs of the suit) in respect of the mortgage- security together with interest thereon (such interest to be computed at the rate agreed between the parties, or, failing such rate, at the same rate as is payable on the principal, or, failing both such rates, at nine per cent. per annum) ;

(iv) an account of any loss or damage caused to the mortgaged property before this date by any act or omission of the defendant which is destructive of, or permanently injurious to, the property or by his failure to perform any of the

duties imposed upon him by any law for the time being in force or by the terms of the mortgage-deed.

2. And it is hereby further ordered and decreed that any amount received under clause (ii) or adjudged due under clause (iv) above, together with interest thereon, shall first be adjusted against any sums paid by the defendant under clause (iii) together with interest thereon, and the balance, if any, shall be added to the mortgage-money, or, as the case may be, be debited in reduction of the amount due to the defendant on account of interest on the principal sum adjudged due and thereafter in reduction or discharge of the principal.

3. And it is hereby further ordered that the said Commissioner shall present the account to this Court with all convenient despatch after making all just allowances on or before the day of , and that, upon such report of the Commissioner being received, it shall be confirmed and countersigned, subject to such modification as may be necessary after consideration of such objections as the parties to the suit may make.

4. And it is hereby further ordered and decreed—

(i) that the plaintiff do pay into Court on or before the day of or any later date up to which time for payment may be extended by the Court, such sum as the Court shall find due and the sum of Rs. for the costs of the suit awarded to the defendant;

(ii) that, on such payment and on payment thereafter before such date as the Court may fix of such amount as the Court may adjudge due in respect of such costs of the suit and such costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, the defendant shall bring into Court all documents in his possession or power relating to the mortgaged property in the plaint mentioned, and all such documents shall be delivered over to the plaintiff, or to such person as he appoints, and the defendant shall, if so required, re-convey or re-transfer the said property free from the said mortgage and clear of and from all incumbrances created by the defendant or any person claiming under him or any person under whom he claims and shall, if so required, deliver up to the plaintiff quiet and peaceable possession of the said property.

5. And it is hereby further ordered and decreed that, in default of payment as aforesaid, the defendant may apply to the court for a final decree for the sale of the mortgaged property; and on such application being made, the mortgaged property or a sufficient part thereof shall be directed to be sold; and for the purposes of such sale the defendant shall produce before the Court or such officer as it appoints, all documents in his possession or power relating to the mortgaged property.

6. And it is hereby further ordered and decreed that the money realised by such sale shall be paid into Court and shall be duly applied (after deduction therefrom of the expenses of the sale) in payment of the amount payable to the defendant under this decree and under any further orders that may be passed in this suit and in payment of any amount which the Court may adjudge due to the defendant in respect of such costs of the suit and such costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, and that the balance, if any, shall be paid to the plaintiff or other persons entitled to receive the same.

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7. And it is hereby further ordered and decreed that, if the money realised by such sale shall not be sufficient for payment in full of the amount payable to the defendant as aforesaid, the defendant shall be at liberty (where such remedy is open to him under the terms of his mortgage and is not barred by any law for the time being in force to apply for a personal decree against the plaintiff for the amount of the balance; and that the parties are at liberty to apply to the Court from time to time as they may have occasion, and on such application or otherwise the Court may give such directions as it thinks fit.

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SCHEDULE

Description of the mortgaged property

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No. 7B

PRELIMINARY DECREE FOR REDEMPTION WHERE ON DEFAULT OF PAYMENT BY MORTGAGOR A DECREE FOR FORECLOSURE IS PASSED.

(Order XXXIV, rule 7.– Where the Court declares the amount due)

(*Title*)

THIS suit coming on this day, etc.; It is hereby declared that the amount due to the defendant on the mortgage mentioned in the plaint calculated up to this day of is the sum of Rs. for principal, the sum of Rs. for interest on the said principal principal, the sum of Rs. for costs, charges and expenses (other than the costs of the suit) properly incurred by the defendant in respect of the mortgage-security together with interest thereon, and the sum of Rs., for the costs of the suit awarded to the defendant, making in all the sum of Rs.

2. And it is hereby ordered add decreed as follows :–

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(i) that the plaintiff do pay into Court on or before the day of or any later date up to which time for payment may be extended by the Court the said sum of Rs. ;

(ii) that, on such payment and on payment thereafter before such date as the Court may fix of such amount as the Court may adjudge due in respect of such costs of the suit and such costs, charges and expenses as maybe payable under rule 10, together with such subsequent interest as maybe payable under rule 11 of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, the defendant shall bring into Court all documents in his possession or power relating to the mortgaged property in the plaint mentioned, and all such documents shall be delivered over to the plaintiff, or to such person as he appoints, and the defendant shall, if so required, reconvey or retransfer the said property free from the said mortgage and clear of and from all incumbrances created by the defendant or any person claiming under him or any person under

whom he claims, and free from all liability whatsoever arising from the mortgage or this suit and shall, if so required, deliver up to the plaintiff quiet and peaceable possession of the said property.

3. And it is hereby further ordered and decreed that, in default of payment as aforesaid, the defendant may apply to the Court for a final decree that the plaintiff shall henceforth stand absolutely debarred and foreclosed of and from all right to redeem the mortgaged property described in the Schedule annexed hereto and shall, if so required, deliver up to the defendant quiet and peaceable possession of the said property; and that the parties shall be at liberty to apply to the Court from time to time as they may have occasion, and on such application or otherwise the Court may give such directions as it thinks fit.

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SCHEDULE

Description of the mortgaged property

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No. 7C

PRELIMINARY DECREE FOR REDEMPTION WHERE ON DEFAULT OF PAYMENT BY MORTGAGOR A DECREE FOR SALE IS PASSED.

(Order XXXIV, rule 7.— Where the Court declares the amount due)

(*Title*)

THIS suit coming on this day, etc.; It is hereby declared that the amount due to the defendant on the mortgage mentioned in the plaint calculated up to this day of is the sum of Rs. for principal, the sum of Rs. for interest on the said principal, the sum of Rs. for costs, charges and expenses (other than the costs of the suit) properly incurred by the defendant in respect of the mortgage-security together with interest thereon, and the sum of Rs. for the cost of this suit awarded to the defendant, making in all the sum of Rs.

THE PAKISTAN CODE

2. And it is hereby ordered and decreed as follows :—

(i) that the plaintiff do pay into Court on or before the day of or any later date up to which time the payment may be extended by the Court the said sum of Rs. ;

(ii) that, on such payment and on payment thereafter before such date as the Court may fix of such amount as the Court may adjudge due in respect of such costs of the suit and such costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, the defendant shall bring into Court all documents in his possession or power relating to the mortgaged property in the plaint mentioned, and all such documents shall be delivered over to the plaintiff, or such person as he appoints, and the defendant shall, if so required, reconvey or retransfer the

said property to the plaintiff free from the said mortgage and clear of and from all incumbrances created by the defendant or any person claiming under him or any person under whom he claims and shall, if so required, deliver up to the plaintiff quiet and peaceable possession of the said property.

3. And it is hereby further ordered and decreed that, in default of payment as aforesaid, the defendant may apply to the Court for a final decree for the sale of the mortgaged property; and on such application being made, the mortgaged property or a sufficient part thereof shall be directed to be sold; and for the purposes of such sale the defendant shall produce before the Court or such officer as it appoints all documents in his possession or power relating to the mortgaged property.

4. And it is hereby further ordered and decreed that the money realised by such sale shall be paid into Court and shall be duly applied (after deduction therefrom of the expenses of the sale) in payment of the amount payable to the defendant under this decree and under any further orders that may be passed in this suit and in payment of any amount which the Court may adjudge due to the defendant in respect of such costs of the suit and such costs, charges and expenses as may be payable under rule 10 together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, and that the balance, if any, shall be paid to the plaintiff or other persons entitled to the same.

5. And it is hereby further ordered and decreed that if the money realised by such sale shall not be sufficient for the payment in full of the amount payable to the defendant as aforesaid, the defendant shall be at liberty (where such remedy is open to him under the terms, of the mortgage and is not barred by any law for the time being in force) to apply for a personal decree against the plaintiff for the amount of the balance; and that the parties are at liberty to apply to the court from time to time as they may have occasion, and on such application or otherwise the Court may give such directions as it thinks fit.

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SCEHDULE

Description of the mortgaged property

THE PAKISTAN CODE

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No. 7D

FINAL DECREE FOR FORECLOSURE IN A REDEMPTION SUIT ON DEFAULT OF PAYMENT BY MORTGAGOR.

(Order XXXIV, rule 8)

(*Title*)

Upon reading the preliminary decree in this suit on the day of and further orders (if any) dated the day of and the application of the defendant dated the day of for a final decree and after hearing the parties, and it appearing that the payment as directed by the said decree and orders has not been made by the plaintiff or any person on his behalf or any other person entitled to redeem the mortgage :

It is hereby ordered and decreed that the plaintiff and all persons claiming through or under him be and they are hereby absolutely debarred and foreclosed of and from all right of redemption of and in the property in the aforesaid preliminary decree mentioned *[and (*if the plaintiff be in possession of that said mortgaged property*) that the plaintiff shall deliver to the defendant quiet and peaceable possession of the said mortgaged property].

2. And it is hereby further declared that the whole of the liability whatsoever of the plaintiff up to this day arising from the said mortgage mentioned in the plaint or from this suit is hereby discharged and extinguished.

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No. 7E

FINAL DECREE FOR SALE IN A REDEMPTION SUIT ON DEFAULT OF PAYMENT BY MORTGAGOR.

(Order XXXIV, rule 8)

(*Title*)

Upon reading the preliminary decree passed in this suit on the day of and further orders (if any) dated the day of , and the application of the defendant dated the day of , for a final decree and after hearing the parties, and it appearing that the payment as directed by the said decree and orders has not been made by the plaintiff or any person on his behalf or any other person entitled to redeem the mortgage :

It is hereby ordered and decreed that the mortgaged property in the aforesaid preliminary decree mentioned or a sufficient part thereof be sold and that for the purposes of such sale the defendant shall produce before the Court, or such officer as it appoints, all documents in his possession or power relation to the mortgaged property.

2. And it is hereby further ordered and decreed that the money realised by such sale shall be paid into Court and shall be duly applied (after deduction therefrom of the expenses of the sale) in payment of the amount payable to the defendant under the aforesaid preliminary decree and under any further orders that may have been passed in this suit and in payment of any amount which the Court may have adjudged due to the defendant for such costs of this suit including the costs of this application and such costs, charges and expenses as may be payable under rule 10, together with the subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, and that the balance, if any, shall be paid to the plaintiff or other persons entitled to receive the same.

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*Words not required to be deleted.

No. 7F

FINAL DECREE IN A SUIT FOR FORECLOSURE, SALE OR REDEMPTION WHERE THE MORTGAGOR PAYS THE AMOUNT OF THE DECREE.

(Order XXXIV, rules 3, 5 and 8)

(*Title*)

THIS suit coming on this day for further consideration and it appearing that on the day of the mortgagor or , the same being a person entitled to redeem, has paid into Court all amounts due to the mortgagee under the preliminary decree dated the day of ; It is hereby ordered and decreed that:—

(i) The mortgagee do execute a deed of reconveyance of the property in the aforesaid preliminary decree mentioned in favour of the mortgagor *[or, as the case may be, who has redeemed the property] or an acknowledgment of the payment of the amount due in his favour;

(ii) The mortgagee do bring into Court all documents in his possession and power relating to the mortgaged property in the suit.

And it is hereby further ordered and decreed that, upon the mortgagee executing the deed of reconveyance or acknowledgment in the manner aforesaid,—

(i) The said sum of Rs. be paid out of Court to the mortgagee;

(ii) the said deeds and documents brought into the Court be delivered out of Court to the mortgagor *[or the person making the payment] and the mortgagee do, when so required, concur in registering, at the cost of the mortgagor *[or other person making the payment], the said deed of reconveyance or the acknowledgment in the office of the Sub-Registrar of ;and

(iii) *[if the mortgagee, plaintiff or defendant, as the case may be, is in possession of the mortgaged property] that the mortgagee do forthwith deliver possession of the mortgaged property in the aforesaid preliminary decree mentioned to the mortgagor *[or such person as aforesaid who has made the payment].

No. 8

DECREE AGAINST MORTGAGOR PERSONALLY FOR BALANCE AFTER THE SALE OF THE MORTGAGED PROPERTY.

(Order XXXIV, rules 6 and 8A)

(*Title*)

*Words not required to be deleted.

Upon reading the application of the mortgagee (the plaintiff or defendant, as the case may be) and reading the final decree passed in the suit on the day of and the Court being satisfied that the net proceeds of the sale held under the aforesaid final decree amounted to Rs. and have been paid to the applicant out of the Court on the day of and that the balance now due to him under the aforesaid decree is Rs.

And whereas it appears to the Court that the said sum is legally recoverable from the mortgagor (plaintiff or defendant, as the case may be) personally;

It is hereby ordered and decreed as follows:—

That the mortgagor (plaintiff or defendant, as the case may be) do pay to the mortgagee (defendant or plaintiff, as the case may be) the said sum of Rs. with further interest at the rate of six per cent. per annum from the day of (the date of payment out of Court referred to above) up to the date of realization of the said sum, and the costs of this application.

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No. 9

PRELIMINARY DECREE FOR FORECLOSURE OR SALE

[Plaintiff ..	..	..	..	.. 1st Mortgagee.
Defendant No. 1 ..	..	*vs.*	..	Mortgagor.
Defendant No. 2 ..	..	..	..	2nd Mortgagee.]

(Order XXXIV, rules 2 and 4)

(*Title*)

The suit coming on this day, etc.; it is hereby declared that the amount due to the plaintiff on the mortgage mentioned in the plaint calculated up to this day of is the sum of Rs. for principal, the sum of Rs. for the interest on the said principal, the sum of Rs. for costs, charges and expenses (other than the costs of the suit) incurred by the plaintiff in respect of the mortgage-security with interest thereon and the sum of Rs. for the costs of this suit awarded to the plaintiff, making in all, the sum of Rs.

(*Similar declarations to be introduced with, regard to the amount due to defendant No.2 in respect of his mortgage if the mortgage-money due thereunder has become payable at the date of the suit*).

2. It is further declared that the plaintiff is entitled to payment of the amount due to him in priority to defendant No. 2 *[or (if there are several subsequent mortgagees) that the several parties hereto are entitled in the following order to the payment of the sums due to them respectively].

*Words not required to be deleted.

3. And it is hereby ordered and decreed as follows :—

(i) (a) that defendants or one of them do pay into Court on or before the day of or any later date up to which time for payment has been extended by the Court the said sum of Rs. due to the plaintiff; and

(b) that defendant No.1 do pay into Court on or before the day of or any later date up to which time for payment has been extended by the Court the said sum of Rs. due to defendant No. 2; and

(ii) that, on payment of the sum declared to be due to the plaintiff by defendants or either of them in the manner prescribed in clause (i) (a) and on payment thereafter before such date as the Court may fix of such amount as the Court may adjudge due in respect of such costs of the suit and such costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, the plaintiff shall bring into Court all documents in his possession or power relating to the mortgaged property in the plaint mentioned, and all such documents shall be delivered over to the defendant No. (Who has made the payment), or to such person as he appoints, and the plaintiff shall, if so required, re-convey or re-transfer the said property free from the said mortgage and clear of and from all incumbrances created by the plaintiff or any person claiming under him or any person under whom he claims, and also free from all liability whatsoever arising from the mortgage or this suit and shall, if so required, deliver up to the defendant No. (who has made the payment) quiet and peaceable possession of the said property.

(*Similar declarations to be introduced, if defendant No.1 pays the amount found or declared to be due to defendant No.2 with such variations as may be necessary having regard to the nature of his mortgage.*)

4. And it is hereby further ordered and decreed that in default of payment as aforesaid of the amount due to the plaintiff, the plaintiff shall be at liberty to apply to the Court for a final decree—

(i) *[*in the case of a mortgage by conditional sale or an anomalous mortgage where the only remedy provided for the mortgage-deed is foreclosure and not sale*] that the defendants jointly and severally shall thenceforth stand absolutely debarred and foreclosed of and from all right to redeem the mortgaged property described in the Schedule annexed hereto and shall, if so required, deliver to the plaintiff quiet and peaceable possession of the said property; or

(ii) *[*in the case of any other mortgage*] that the mortgaged property or a sufficient part thereof shall be sold; and that for the purposes of such sale the plaintiff shall produce before the Court or such officer as it appoints, all documents in his possession or power relating to the mortgaged property; and

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*Words not required to be deleted.

(iii) * [*in the case where a sale is ordered under clause 4 (ii) above*] that the money realised by such sale shall be paid into Court and be duly applied (after deduction there-from of the expenses of the sale) in payment of the amount payable to the plaintiff under this decree and under any further orders that may have been passed in this suit and in payment of the amount which the Court may adjudge due to the plaintiff in respect of such costs of this suit and such costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908. and that the balance, if any, shall be applied in payment of the amount due to defendant No. 2; and that if any balance be left, it shall be paid to the defendant No.1 or other persons entitled to receive the same; and

(iv) That, if the money realised by such sale shall not be sufficient for payment in full of the amounts due to the plaintiff and defendant No. 2, the plaintiff or defendant No.2 or both of them, as the case may be, shall be at liberty (when such remedy is open under the terms of their respective mortgages and is not barred by any law for the time being in force) to apply for a personal decree against defendant No.1 for the amounts remaining due to them respectively.

5. And it is hereby further ordered and decreed—

(a) that if defendant No.2 pays into Court to the credit of this suit the amount adjudged due to the plaintiff, but defendant No.1 makes default in the payment of the said amount, defendant No.2 shall be at liberty to apply to the Court to keep the plaintiffs mortgage, alive for his benefit and to apply for a final decree (*in the same manner as the plaintiff might have done under clause 4 above*)—

*[(i) that defendant No.1 shall thenceforth stand absolutely debarred and foreclosed of and from all right to redeem the mortgage property described in the Schedule annexed hereto and shall, if so required, deliver up to defendant No.2 quiet and peaceable possession of the said property;] or

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*[(ii) that the mortgaged property or a sufficient part thereof be sold and that for the purposes of such sale defendant No.2 shall produce before the Court or such officer as it appoints, all documents in his possession or power relating to the mortgaged property;]

and (b) (if on the application of defendant No. 2 such a final decree for foreclosure is passed), that the whole of the liability of defendant No.1 arising from the plaintiff's mortgage or from the mortgage of defendant No.2 or from this suit shall be deemed to have been discharged and extinguished.

6. And it is hereby further ordered and decreed *[*in the case where a sale is ordered under clause 5 above*]—

*Words not required to be deleted.

(i) that the money realized by such sale shall be paid into Court and be duly applied (after deduction therefrom of the expenses of the sale) first in payment of the amount paid by defendant No. 2 in respect of the plaintiff's mortgage and the costs of the suit in connection therewith and in payment of the amount which the Court may adjudge due in respect of subsequent interest on the said amount; and that the balance, if any, shall then be applied in payment of the amount adjudged due to defendant No. 2 in respect of his own mortgage under this decree and any further orders that may be passed and in payment of the amount which the Court may adjudge due in respect of such costs of this suit and such costs, charges and expenses as may be payable to defendent No. 2 under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, and that the balance, if any, shall be paid to defendant No.1 or other persons entitled to receive the same; and

(ii) that, if the money realised by such sale shall not be sufficient for payment in full of the amount due in respect of the plaintiff's mortgage or defendant No. 2's mortgage, defendant No. 2 shall be at liberty (where such remedy is open to him under the terms of his mortgage and is not barred by any law for the time being in force) to apply for a personal decree against defendant No.1 for the amount of the balance.

7. And it is hereby further ordered and decreed that the parties are at liberty to apply to the Court from time to time as they may have occasion, and on such application or otherwise the Court may give such directions as it thinks fit.

SCHEDULE

Description of the mortgaged property.

No. 10

PRELIMINARY DECREE FOR REDEMPTION OF PRIOR MORTGAGE AND FORECLOSURE OR SALE ON SUBSEQUENT MORTGAGE.

Plaintiff .. .. 2nd Mortgagee,

vs.

Defendant No.1 ... . Mortgagor

Defendant No.2 ... . 1st Mortgagee]

The suit coming on this day, etc.; It is hereby declared that the amount due to defendant No.2 on the mortgage mentioned in the plaint calculated up to this day of is the sum of Rs. for principal, the sum of Rs. for interest on the said principal, the sum of Rs. for costs, charges and expenses (other than the costs of the suit) properly incurred by defendant No. 2 in respect of the mortgage-security with interest thereon and the sum of

*Words not required to be deleted.

Rs. for the costs of this suit awarded to defendant No.2, making in all the sum of Rs.

(*Similar declarations to be introduced with regard to the amount due from defendant No.1 to the plaintiff in respect of his mortgage if the mortgage money due there-under has become payable at the date of the suit.*)

2. It is further declared that defendant No. 2 is entitled to payment of the amount due to him in priority to the plaintiff *[or (if there are several subsequent mortgagees) that the several parties hereto are entitled in the following order to the payment of the sums due to them respectively:-]

3. And it is hereby ordered and decreed as follows :—

(i)(a) that the plaintiff or defendant No. 1 or one of them do pay into Court on or before the day of or any later date up to which time for payment has been extended by the Court the said sum of Rs. due to defendant No. 2; and

(b) that defendant No.1 do pay into Court on or before the day of or any later date up-to which time for payment has been extended by the Court the said sum of Rs. due to the plaintiff ; and

(ii) that, on payment of the sum declared due to defendant No. 2 by the plaintiff and defendant No.1 or either of them in the manner prescribed in clause (i) (a) and on payment thereafter before such date as the Court may fix of such amount as the Court may adjudge due in respect of such costs of the suit and such costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, defendant No. 2 shall bring into Court all documents in his possession or power relating to the mortgaged property in the plaint mentioned, and all such documents shall be delivered over to the plaintiff or defendant No.1 (whoever has made the payment), or to such person as he appoints, and defendant No. 2 shall, if so required, re-convey or re-transfer the said property free from the said mortgage and clear of and from all in-cumbrances created by defendant No.2 or any person claiming under him or any person under whom he claims, and also free, from all liability whatsoever arising from the mortgage or this suit and shall, if so required, deliver up to the plaintiff or defendant No.1 (whoever has made the payment) quiet and peaceable possession of the said property.

(*Similar declarations to be introduced, if defendant No.1 pays the amount found or declared due to the plaintiff with such variations as may be necessary having regard to the nature of his mortgage*.)

4. And it is hereby further ordered and decreed that in default of payment as aforesaid, of the amount due to defendant No.2, defendant No.2 shall be at liberty to apply to the Court that the suit be dismissed or for a final decree—

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*Words not required to be deleted.

(i) *[*in the case of mortgage by conditional sale or an anomalous mortgage where the only remedy provided for in the mortgage deed is foreclosure and not sale*] that the plaintiff and defendant No.1 jointly and severally shall thenceforth stand absolutely debarred and foreclosed of and from all right to redeem the mortgaged property described in the Schedule annexed hereto and shall, if so required, deliver to the defendant No.2 quiet and peaceable possession of the property; or

(ii) *[*in the case of any other mortgage*] that the mortgaged property or a sufficient part thereof shall be sold; and that for the purposes of such sale defendant No.2 shall produce before the Court or such officer as it appoints, all documents in his possession or power relating to the mortgaged property; and

(iii) *[*in the case where a sale is ordered under clause 4(ii) above*] that the money realized by such sale shall be paid into Court and be duly applied (after deduction therefrom of the expenses of the sale) in payment of the amount payable to defendant No. 2 under the decree and any further orders that may be passed in this suit and in payment of the amount which the Court may adjudge due to defendant No.2 in respect of such costs of the suit and such costs, charges and expenses as may be payable to the plaintiff under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, and that the balance, if any, shall be applied in payment of the amount due to the plaintiff and that, if any balance be left, it shall be paid to defendant No.1 or other persons entitled to receive the same; and

(iv) that, if the money realized by such sale shall not be sufficient for payment in fun of the amounts due to defendant No.2 and the plaintiff, defendant No.2 or the plaintiff or both of them, as the case may be, shall be at liberty (when such remedy is open under the terms of their respective mortgages and is not barred by any law for the time being in force) to apply for a personal decree against defendant No. 1 for the amounts remaining due to them respectively.

5. And it is hereby further ordered and decreed,—

(a) that, if the plaintiff pays into Court to the credit of this suit the amount adjudged due to defendant No.2 but defendant No.1 makes default in the payment of the said amount, the plaintiff shall be at liberty to apply to the Court to keep defendant No. 2's mortgage alive for his benefit and to apply for a final decree

(*in the same manner as the defendant No.2 might have done under clause 4 above*)—

*[*(i)* that defendant No.1 shall thenceforth stand absolutely debarred and foreclosed of and from all right to redeem the mortgaged property described in the Schedule annexed hereto and shall, if so required, deliver up to the plaintiff quiet and peaceable possession of the said property;] or

[(ii)* that the mortgaged property or a sufficient part thereof be sold and that for the purposes of such sale the plaintiff shall produce before the Court or such officer as it appoints, all documents in his possession or power relating to the mortgaged property;]

*Words not required to be deleted.

and (b) (if on the application of defendant No.2 such a final decree for foreclosure is passed), that the whole of the liability of defendant No.1 arising from the plaintiff's mortgage or from the mortgage of defendant No.2 or from this suit shall be deemed to have been discharged and extinguished.

6. And it is hereby further ordered and decreed (*in the case where a sale is ordered under clause 5 above*)—

(i) that the money realised by such sale shall be paid into Court and be duly applied (after deduction there-from of the expenses of the sale) first in payment of the amount paid by the plaintiff in respect of defendant No. 2's mortgage and the costs of the suit in connection therewith and in payment of the amount which the Court may adjudge due in respect of subsequent interest on the said amount; and that the balance, if any, shall then be applied in payment of the amount adjudged due to the plaintiff in respect of his own mortgage under this decree and any further orders that may be passed and in payment of the amount which the Court may adjudge due in respect of such costs of the suit and such costs, charges and expenses as may be payable to the plaintiff under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, and that the balance, if any, shall be paid to defendant No.1 or other persons entitled to receive the same; and

(ii) that, if the money realised by such sale shall not be sufficient for payment in full of the amount due in respect of defendant No. 2's mortgage or the plaintiff's mortgage, defendant No. 2 shall be at liberty (where such remedy is open to him under the terms of his mortgage and is not barred by any law for the time being in force) to apply for a personal decree against defendant No.1 for the amount of the balance.

7. And it is hereby further ordered and decreed that the parties are at liberty to apply to the Court from time to time as they may have occasion, and on such application or otherwise the Court may give such directions as it thinks fit.

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SCHEDULE

Description of the mortgaged property

No. 11

PRELIMINARY DECREE FOR SALE

[Plaintiff .. ..Sub or derivative mortgagee.

Vs

Defendant No.1 .. .. Mortgagor.

Defendant No.2 .. .. Original mortgagee.]

(Order XXXIV, rule 4)

(*Title*)

This suit coming on this day, etc.; It is hereby declared that the amount due to defendant No.2 on his mortgage calculated up to this day of is the sum of Rs. for principal, the sum of Rs. for interest on the said principal, the sum of Rs. for costs, charges and expenses (other than the costs of the suit) in respect of the mortgage- security together with interest thereon and the sum of Rs. for the costs of the suit awarded to defendant No.2, making in all the sum of Rs.

(*Similar declarations to be introduced with regard to the amount due from defendant No.2 to the plaintiff in respect of his mortgage.*)

2. And it is hereby ordered and decreed as follows:—

(i) that defendant No.1 do pay into Court on or before the said day of or any later date up to which time for payment may be extended by the Court the said sum of Rs. due to defendant No. 2.

(*Similar declarations to be introduced with regard to the amount due to the plaintiff, defendant No. 2 being at liberty to pay such amount.*)

(ii) that, on payment of the sum declared due to defendant No. 2 by defendant No.1 in the manner prescribed in clause 2 (i) and on payment thereafter before such date as the Court may fix of such amount as the Court may adjudge due in respect of such costs of the suit and such costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, the plaintiff and defendant No. 2 shall bring into Court all documents in their possession or power relating to the mortgaged property in the plaint mentioned, and all such documents (except such as relate only to the sub-mortgage) shall be delivered over to defendant No. 1, or to such person as he appoints, and defendant No. 2 shall, if so required, re-convey or re-transfer the property to defendant No.1 free from the said mortgage clear of and from all in-cumbrances created by defendant No.2 or any person claiming under him or any person under whom he claims, and free from all liability arising from the mortgage or this suit and shall, if so required, deliver up to defendant No.1 quiet and peaceable possession of the said property; and

(iii) that, upon payment into the Court by defendant No.1 of the amount due to defendant No.2, the plaintiff shall be at liberty to apply for payment to him of the sum declared due to him together with any subsequent costs of the suit and other costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, and that the balance, if any, shall then be paid to defendant No. 2; and that if the amount paid into the Court be not sufficient to pay in full the sum due to the plaintiff, the plaintiff

shall be at liberty (if such remedy is open to him by the terms of the mortgage and is not barred by any law for the time being in force) to apply for a personal decree against defendant No.2 for the amount of the balance.

3. And it is further ordered and decreed that if defendant No.2 pays into Court to the credit of this suit the amount adjudged due to the plaintiff shall bring into the Court all documents, etc. [as in sub- clause (ii) of clause 2].

4. And it is hereby further ordered and decreed that, in default of payment by defendants Nos. 1 and 2 as aforesaid, the plaintiff may apply to the court for a final decree for sale, and on such application being made the mortgaged property or a sufficient part thereof shall be directed to be sold; and that for the purposes of such sale the plaintiff and defendant No.2 shall produce before the Court or such officer as it appoints, all documents in their possession or power relating to the mortgaged property.

5. And it is hereby further ordered and decreed that the money realised by such sale shall be paid into Court and be duly applied (after deduction therefrom of the expenses of the sale) first in payment of the amount due to the plaintiff as specified in clause 1 above with such costs of the suit and other costs, charges and expenses as may be payable under rule 10, together with such subsequent interest as may be payable under rule 11, of Order XXXIV of the First Schedule to the Code of Civil Procedure, 1908, and that the balance, if any, shall be applied in payment of the amount due to defendant No.2; and that, if any balance be left, it shall be paid to defendant No.1 or other persons entitled to receive the same.

6. And it is hereby further ordered and decreed that, if the money realised by such sale shall not be sufficient for payment in full of the amounts payable to the plaintiff and defendant No.2, the plaintiff or defendant No.2 or both of them, as the case may be, shall be at liberty (if such remedy is open under their respective mortgages and is not barred by any law for the time being in force) to apply for a personal decree against defendant No.2 or defendant No.1 (as the case may be) for the amount of the balance.

7. And it is hereby further ordered and decreed that, if defendant No.2 pays into Court to the credit of this suit the amount adjudged due to the plaintiff, but defendant No.1 makes default in payment of the amount due to defendant No.2, defendant No.2 shall be at liberty to apply to the Court for a final decree for foreclosure or sale (as the case may be)-(*dec1arations in the ordinary from to be introduced according to the nature of defendant No. 2's mortgage and the remedies open to him there-under*).

8. And it is hereby further ordered and decreed that the parties are as liberty to apply to the Court as they may have occasion and on such application or otherwise the Court may give such directions as it thinks fit.]

SCHEDULE

[Description of the mortgaged property]

No. 12

DECREE FOR RECTIFICATION OF INSTRUMENT

(*Title*)

It is hereby declared that the , dated the day of 19, does not truly express the intention of the parties to such .

And it is decreed that the said . be rectified by

_____

No. 13

DECREE TO SET ASIDE A TRANSFER IN FRAUD OF CREDITORS

(*Title*)

It is hereby declared that the , dated the day of 19 , and made between and , is void as against the plaintiff and all other the creditors, if any, of the defendant.

_____

No. 14

INJUNCTION AGAINST PRIVATE NUISANCE

(*Title*)

LET the defendant , his agents, servants and workmen, be perpetually restrained from burning, or causing to be burnt, any bricks on the defendant's plot of land marked B in the annexed plan, so as to occasion a nuisance to the plaintiff as the owner or occupier of the dwelling-house and garden mentioned in the plaint as belonging to and being occupied by the plaintiff.

_____

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No. 15

INJUNCTION AGAINST BUILDING HIGHER THAN OLD LEVEL

(*Title*)

LET the defendant , his contractors, agents and workmen, be perpetually restrained from continuing *to* erect upon his premises in any house or building of a greater height than the buildings which formerly stood upon his said premises and which have been recently pulled down, so or in such manner as to darken, injure or obstruct such of the plaintiff's windows in his said premises as arc ancient lights.

_____

No. 16

INJUNCTION RESTRAINING USE OF PRIVATE ROAD

(*Title*)

LET the defendant , his agents, servants and workmen, be perpetually restrained from using or permitting to be used any part of the lane at , the soil of which belongs to the plaintiff, as a carriage way for the passage of carts, carriages or other vehicles, either going to or from the land marked B in the annexed plan or for any purpose whatsoever.

———

No. 17

PRELIMINARY DECREE IN AN ADMINISTRATION-SUIT

(*Title*)

It is ordered that the following accounts and inquiries be taken and made; that is to say:—

In creditor's suit:—

1. That an account be taken of what is due to the plaintiff and all other the creditors of the deceased.

In suits by legatees—

2. That an account be taken of the legacies given by the testator's will.

In suit by next-of-kin—

3. That an inquiry be made and account taken of what or of what share, if any, the plaintiff is entitled to as next-of-kin [*or* one of the next-of-kin] of the intestate.

[After the first paragraph, the decree will, where necessary, order, in a creditor's suit, inquiry and accounts for legatees, heirs-at-law and next-of-kin. In suits by claimants other than creditors, after the first paragraph, in all cases, an order to inquire and take an account of creditors will follow the first paragraph and such of the others as may be necessary will follow, omitting the first formal words. The form is continued as in a creditor's suit.]

4. An account of the funeral and testamentary expenses.

5. An account of the moveable property of the deceased comes to the hands of the defendant, or to the hands of any other person by his order or for his use.

6. An inquiry what part (if any) of the moveable property of the deceased is outstanding and undisposed of.

7. And it is further ordered that the defendant do, on or before the day of next, pay into Court all sums of money which shall be found to have come to his hands or to the hands of any person by his order or for his use.

THE PAKISTAN CODE

8. And that if the *shall find it necessary for carrying out the objects of the suit to sell any part of the moveable property of the deceased that the same be sold accordingly, and the proceeds paid into Court.

9. And that Mr. E.F. be receiver in the suit (*or proceeding*) and receive and get in all outstanding debts and outstanding moveable property of the deceased, and pay the same into the hands of the *(and shall give security by bond for the due performance of his duties to the amount of rupees).

10. And it is further ordered that if the moveable property of the deceased be found insufficient for carrying out the objects of the suit, then the following further inquiries be made, and accounts taken, that is to say—

(a) an inquiry what immoveable property the deceased was seized of or entitled to at the time of his death;

(b) an inquiry what are the incumbrances (if any) affecting the immoveable property of the deceased or any part thereof;

(c) an account, so far as possible, of what is due to the several incumbrances, and to include a statement of the priorities of such of the incumbrances as shall consent to the sale hereinafter directed.

11. And that the immoveable property of the deceased, or so much thereof as shall be necessary to make up the fund in Court sufficient to carry out the object of the suit, be sold with the approbation of the judge, free from incumbrances (if any) of such incumbrancers as shall consent to the sale and subject to the incumbrances of such of them as shall not consent.

12. And it is ordered that G.H. shall have the conduct of the sale of the immoveable property, and shall prepare the conditions and contracts of sale subject to the approval of the *and that in case any doubt or difficulty shall arise the papers shall be submitted to the judge to settle.

13. And it is further ordered that, for the purpose of the inquiries hereinbefore directed, the *shall advertise in the newspapers according to the practice of the Court, or shall make such inquiries in any other way which shall appear to the *to give the most useful publicity to such inquiries.

THE PAKISTAN CODE

14. And it is ordered that the above inquiries and accounts be made and taken, and that all other acts ordered to be done be completed, before the day of , and that the *do certify the result of the inquiries, and the accounts, and that all other acts ordered are completed, and have his certificate in that behalf ready for the inspection of the parties on the day of

15. And, lastly, it is ordered that this suit [*or proceeding*] stand adjourned for making final decree to the day of [such part only of this decree is to be used as is applicable to the particular case.]

———

*Here insert name of proper officer.

No. 18

FINAL DECREE IN AN ADMINISTRATION-SUIT BY A LEGATEE

(*Title*)

1. It is ordered that the defendant do, on or before the day of , pay into Court the sum of Rs. , the balance by the said certificate found to be due from the said defendant on account of the estate of , the testator, and also the sum of Rs. for interest, at the rate of Rs. per cent. per annum, from the day of to the day of , amounting together to the sum of Rs.

2. Let the *of the said Court tax the costs of the plaintiff and defendant in this suit, and let the amount of the said costs, when so taxed, be paid out of the said sum of Rs. ordered to be paid into Court as aforesaid, as follows :—

(a) The costs of the plaintiff to Mr. , his attorney [*or* pleader] or and the costs of the defendant to Mr. ,his attorney [*or* pleader].

(b) And (*if any debts are due*) with the residue of the said sum of Rs. after payment of the plaintiff's and defendant costs as aforesaid, let the sums found to be owing to the several creditors mentioned in the schedule to the certificate, of the * , together with subsequent interest on such of the debts as bear interest, be paid; and, after making such payments; let the amount coming to the several legatees mentioned in the schedule, together with subsequent interest (to be verified as aforesaid), be paid to them.

3. And if there should then be any residue, let the same be paid to the residuary legatee.

———

No. 19

PRELIMINARY DECREE IN AN ADMINISTRATION-SUIT BY A LEGATEE WHERE AN EXECUTOR IS HELD PERSONALLY LIABLE FOR THE PAYMENT 0F LEGACIES.

(*Title*)

THE PAKISTAN CODE

1. It is declared that the defendant is personally liable to pay the legacy of Rs. bequeathed to the plaintiff;

2. And it is ordered that an account be taken of what is due for principal and interest on the said legacy;

3. And it is also ordered that the defendant do, within weeks after the date of the certificate of the * , pay to the plaintiff the amount of what the *shall certify to be due for principal and interest;

4. And it is ordered that the defendant do pay the plaintiff his costs of suit, the same to be taxed in case the parties differ.

———

*Here insert name of proper officer.

No. 20

FINAL DECREE IN AN ADMINISTRATION-SUIT BY NEXT-OF-KIN

(*Title*)

1. LET the *of the said Court tax the costs of the plaintiff and defendant in this suit, and let the amount of the said plaintiff's costs, when so taxed, be paid by the defendant to the plaintiff out of the sum of Rs. , the balance by the said certificate found to be due from the said defendant on account of the personal estate of E.F. the intestate, within one week after the taxation of the said cost by the said * , and let the defendant retain for her own use out of such sum her costs, when taxed.

2. And it is ordered that the residue of the said sum of Rs. , after payment of the plaintiff's and defendants costs as aforesaid, be paid and applied by defendant as follows :-

(a) Let the defendant, within one week after the taxation of the said costs by the *as aforesaid, pay one-third share of the said residue to the plaintiffs *A.B.*, and *C.D.*, his wife, in her right as the sister and one of the next-of-kin of the said E.F., the intestate.

(b) Let the defendant retain for her own use on other third share of the said residue, as the mother and one of the next-of-kin of the said E.F., the intestate.

(c) And let the defendant, within one week after the taxation of the said cost by the *as aforesaid, pay the remaining one-third share of the said residue to *G.H.*, as the brother and the other next-of-kin of the said *E.F.*, the intestate.

No. 21

PRELIMINARY DECREE IN A SUIT FOR DISSOLUTION OF PARTNERSHIP AND THE TAKING OF PARTNERSHIP ACCOUNTS

THE PAKISTAN CODE

(*Title*)

IT is declared that the proportionate shares of the parties in the partnership are as follows:—

It is declared that this partnership shall stand dissolved [or shall be deemed to have been dissolved] as from the day of ,and it is ordered that the dissolution thereof as from that day be advertised in the Gazette, etc.

And it is ordered that be the receiver of the partnership estate and effects in this suit and do get in all the outstanding book-debts and claims of the partnership.

And it is ordered that the following accounts be taken:—

1. An account of the credits, property and effects now belonging to the said partnership;

*Here insert name of proper officer.

2. An account of the debts and liabilities of the said partnership;

3. An account of all dealings and transactions between the plaintiff and defendant, from the foot of the settled account exhibited in this suit and marked (A), and not disturbing any subsequent settled accounts:

And it is ordered that the good will of the business heretofore carried on by the plaintiff and defendant as in the plaint mentioned, and the stock-in-trade, be sold on the premises, and that the *may, on the application of any of the parties, fix a reserved bidding for all or any of the lots at such sale, and that either of the parties is to be at liberty to bid at the sale.

And it is ordered that the above accounts be taken, and all the other acts required to be done be completed, before the day of , and that the *do certify the result of the accounts, and that all other acts are completed, and have his certificate in that behalf ready for the inspection of the parties on the day of .

And, lastly, it is ordered that this suit stand adjourned for making a final decree to the day of .

No. 22

FINAL DECREE IN A SUIT FOR DISSOLUTION OF PARTNERSHIP AND THE TAKING OF PARTNERSHIP ACCOUNTS.

(*Title*)

IT is ordered that the fund now in Court, amounting to the sum of Rs. , be applied as follows :—

1. In payment of the debts due by the partnership set forth in the certificate of the

*amounting in the whole to Rs.

2. In payment of the costs of all parties in this suit, amounting to Rs.

[*These costs must be ascertained before the decree is drawn up*]

3. In payment of the sum of Rs. to the plaintiff as his share of the partnership-assets, of the sum of Rs. , being the residue of the said sum of Rs. now in Court, to be defendant as his share of the partnership-assets.

[*Or*, and that the remainder of the said sum of Rs. be paid to the said plaintiff (or defendant) in part payment of the sum of Rs. certified to be due to him in respect of the partnership-accounts.]

4. And that the defendant [*or* plaintiff] do on or before the day of pay to the plaintiff [*or* defendant] the sum of Rs. being the balance of the said sum Rs. due to him, which will then remain due.

*Here insert name of proper officer.

No. 23

RECOVERY OF LAND AND MESNE PROFITS

(*Title*)

IT is hereby decreed as follows :—

1. That the defendants do put the plaintiff in possession of property specified in the schedule hereunto annexed.

2. That the defendant do pay to the plaintiff the sum of Rs. with interest thereon at the rate of per cent. per annum to the date of realization on account of mesne profits which have accrued due prior to the institution of the suit.

Or

2. That an inquiry be made as to the amount of mesne Profits which have accrued due prior to the institution of the suit.

3. That an inquiry be made as to the amount of mesne profits from the institution of the suit until [the delivery possession to the decree-holder]

[The relinquishment of Possession by the judgment debtor will notice to the decree-holder through the Court [the expiration of three years from the date of the decree].

———

APPENDIX E

EXECUTION

No. 1

NOTICE TO SHOW CAUSE WHY A PAYMENT OR ADJUSTMNET SHOULD NOT BE RECORDED AS CERTIFIED (O. 21, r.2)

(*Title*)

THE PAKISTAN CODE

To

WHEREAS in execution of the decree in the above-named suit has applied to this Court that the sum of Rs. recoverable under the decree has been paid/adjusted and should be recorded as certified, this is to give you notice that you are to appear before this Court on the day of 19 , to show cause why the Payment/ Adjustment aforesaid should not be recorded as certified.

Given under my hand and the seal of the Court, this of day of 19 .

———

No. 2

PRECEPT (Section 46)

(*Title*)

UPON hearing the decree-holder it is ordered that this precept be sent to the Court of at under section 46 of the Code of Civil Procedure, 1908, with directions to attach the property specified in the annexed schedule and to hold the same pending any application which may be made by the decree- holder for execution of the decree.

Dated the day of 19 ,

Judge

_____

No. 3

ORDER SENDING DECREE FOR EXECUTION TO ANOTHER COURT (O. 21, r. 6)

(O.21, r.6)

(*Title*)

WHEREAS the decree-holder in the above suit has applied to this Court for a certificate to be sent to the Court of at execution of the decree in the above suit by the said Court, alleging that the judgment-debtor resides or has property within the local limits of the jurisdiction of the said Court, and it is deemed necessary and proper to send a certificate to the said Court under Order XXI, rule 6, of the Code of Civil Procedure, 1908, it is

Ordered :

That a copy of this order be sent to with a copy of the decree and of any order which may have been made for execution of the same and a certificate of non-satisfaction.

Dated the day of 19 .

Judge

_____

No. 4

CERTIFICATE OF NON-SATISFICATION OF DECREE, (O. 21, r.6)

(*Title*)

CERTIFIED that no (*1*) satisfaction of the decree of this Court in Suit No. of 19 , a copy which is hereunto attached, has been obtained by execution within the jurisdiction of this Court.

Dated the day of 19 .

Judge

(1) *If partial, strike out "no" and state to what extent.*

NO. 5

CERTIFICATE OF EXECUTION OF DECREE TRANSFERRED TO ANOTHER COURT (O. 21, r. 6)

(*Title*)

Number of suit and the Court by which decree was passed.	**Names of parties.**	**Date of application for execution.**	**Number of the execution case.**	**Process issued and dates of service thereof.**	**Costs of execution.**	**Amount realized.**	**How the case is disposed of.**	**Remarks.**
1	2	3	4	5	6	7	8	9
					Rs. a.p	*Rs. a.p.*		

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Signature of Muharrir in charge. *Signature of Judge*

NO. 6

APPLICATION FOR EXECUTION OF DECREE. (0.21, r. 11)

in the Court of

I , decree-holder, hereby apply for execution of the decree herein below set forth:—

No. of suit.	Names of parties.	Date of decree.	Whether any appeal preferred from decree.	Payment or adjustment made, if any.	Previous application, if any, with date and result.	Amount with interest duer upon the decree or other relief granted thereby together with particulars of any cross decree.	Amount of costs, if any, awarded.	Against whom to be executed.	Mode in which the assistance of the Court is required.
1	2	3	4	5	6	7	8	9	10
789 of 1897	A.B- Plaintiff .. :: :: :: :: C.D- Defendant .. :: :: ::	October 11th, 1897 . .	No.	None	Rs. 72-4 recorded on application, dated the 4th March. 1899	Rs. 314-8-2 principal [interest at 6 per cent per annum, from date of decree till payment].	Rs. A.P. As awarded in the decree :: 47 10 4 Subsequently incurred :: :: 8 2 0 Total 55 12 4	Against the defendant C.D.	[*When attachment and sale of moveable property is sought*] I pray that the total amount of Rs. [together with interest on the principal sum up to date of payment] and the costs of taking out this execution, be realized by attachment and sale of defendant`s moveable property as per annexed list and paid to me. [*When attachment and sale of immoveable property is sought.*] I pray that the total amount of Rs. [together with interest on the principal sum up to date of payment] and the costs of taking out this execution be realized by the attachment and sale of defendant's immoveable property specified at the foot of this application and paid to me.

THE PAKISTAN CODE

I declare that what is stated herein is true to the best of my knowledge and belief.

Signed , *decree-holder*.

Dated the day of 19 ,

The undivided one-third share of the judgment-debtor in a house situated in the village of , value Rs. 40, and bounded as follows:—

East by G's house; west by H's house; south by public road; north by private land and J's house.

I declare that what is stated in the above description is true to the best of my knowledge and belief, and so far as I have been able to ascertain the interest of the defendant in the property therein specified.

Signed , *decree-holder*

No.7

NOTICE TO SHOW CAUSE WHY EXECUTION SHOULD NOT ISSUE. [1][(0.21, r. 16)]

(*Title*)

To

WHEREAS has made application to this Court for execution of decree in Suit No. of 19 , on the allegation that the said decree has been transferred to him by assignment, this is to give you notice that you are to appear before this Court on the day of 19 , to show cause why execution should not be granted.

GIVEN under my hand and the seal of the Court, this day of 19.

Judge

THE PAKISTAN CODE

No.8

WARRANT OF ATTACHMENT OF MOVEABLE PROPERTY IN EXECUTION OF A DECREE FOR MONEY (0.21, r. 30)

(*Title*)

To

The Bailiff of the Court.

[1]Subs. by the Repealing and Amending Act, 1914 (10 of 1914), s.2 and First Sch., for "(O.21, r.22)".

WHEREAS was ordered by Decree of this Court passed on the day of 19 , in Suit No. of 19 , to pay to the plaintiff the sum of Rs. as noted in the margin; and whereas the said sum of Rs. has not been paid; These are to command you to attach the moveable property of the said as set forth the on the schedule hereunto annexed, or which shall be pointed out to you by the said , and unless the said shall pay to you the said sum of Rs. together with Rs. , the costs of this attachment, to hold the same until further orders from this Court.

Decree			
Principal ..			
Interest Cost..			
Costs of execution			
Further interest			
Total			

You are further commanded to return this warrant on or before the day of 19 , with an endorsement certifying the day on which and manner in which it has been executed, or why it has not been executed.

GIVEN under my hand and the seal of the Court, this day of 19,

Schedule *Judge*

No.9

WARRANT FOR SEIZURE OF SPECIFIC MOVEABLE PROPERTY ADJUDGED BY DECREE. (0. 21, r. 31)

THE PAKISTAN CODE

(*Title*)

To

The Bailiff of the Court.

WHEREAS was ordered by decree of this Court passed on the day of 19 , in Suit No. of 19, to deliver to the plaintiff the moveable property (*or* a share in the moveable property) specified in the schedule hereunto annexed, and whereas the said property (*or* share) has not been delivered;

These are to command you to seize the said moveable property (*or* a share of the said moveable property) and to deliver it to the plaintiff or to such person as he may appoint in his behalf.

GIVEN under my hand and the seal of the Court, this day of 19 .

Schedule *Judge*

No.10

NOTICE TO STATE OBJECTIONS TO DRAFT OF DOCUMENT. (O. 21, r. 34)

(*Title*)

To

TAKE notice that on the day of 19 , the decree-holder in the above suit presented an appli- cation to this Court that the Court may execute on your behalf a deed of , whereof a draft is hereunto annexed, of the immoveable property specified hereunder, and that the day of 19 , is appointed for the hearing of the said application, and that you are at liberty to appear on the said day and to state in writing any objection to the said draft.

Description of Property

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 11

WARRANT TO THE BAILIFF TO GIVE POSSESSION OF LAND, ETC. (O. 21, r. 35)

(*Title*)

To

The Bailiff of the Court.

WHEREAS the under mentioned property in the occupancy of has been decreed to the plaintiff in this suit. You are hereby directed to put the said in possession of the same, and you are hereby authorized to remove any person bound by the decree who may refuse to vacate the same.

GIVEN under my hand and the seal of the Court, this day of 19.

Schedule *Judge*

No. 12

NOTICE TO SHOW CAUSE WHY WARRANT OF ARREST SHOULD NOT ISSUE(O.21, r. 37)

(*Title*)

To

WHEREAS has made application to this Court for execution of decree in Suit No. of 19 , by arrest and imprisonment of your person, you are hereby required to appear

before this Court on the day of 19 , to show cause why you should not be committed to [1][* *] prison in execution of the said decree.

GIVEN under my hand and the seal of the Court, this day of 19 ,

Judge

No. 13

WARRANT OF ARREST IN EXECUTION. (O. 21, r. 38)

(*Title*)

To

The Bailiff of the Court.

WHEREAS was adjudged by a decree of the Court in Suit No. of 19 , dated the day of 19 , to pay to the decree-holder the sum of Rs. as noted in the margin, and whereas the said sum of Rs. has not been paid to the said decree-holder in satisfaction of the said decree; These are to command you to arrest the said judgment-debtor and unless the said judgment-debtor shall pay to you the said sum of Rs. together with Rs. for the costs of executing this process, to bring the said defendant before the Court with all convenient speed.

You are further commanded to return this warrant on or before the day of . 19 , with an endorsement certifying the day on which and manner in which it has been executed, or the reason why it has not been executed.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

THE PAKISTAN CODE

Decree			
Principal .. Interest .. Cost .. Execution ..			
Total			

---

[1]Omitted by Act XIV of 1994, s. 11.

No. 14

WARRANT OF COMMITTAL OF JUDGEMENT-DEBTOR TO JAIL. (O. 21 , r. 40)

(*Title*)

To

The Officer in charge of the Jail at .

WHEREAS who has been brought before this Court this day of 19 , under a warrant in execution of a decree which was made and pronounced by the said Court on the day of 19 , and by which decree it was ordered that the said should pay ; And whereas the said has not obeyed the decree nor satisfied the Court that he is entitled to be discharged from custody; You are hereby [1][* * *] commanded and required to take and receive the said into [2][**] prison and keep him imprisoned therein for a period not exceeding or until the said decree shall be fully satisfied, or the said shall be otherwise entitled to be released according to the terms and provisions of section 58 of the Code of Civil Procedure, 1908 [2][* * * * *].

GIVEN under my signature add the seal of the Court, this day of 19 .

Judge

No. 15

ORDER FOR THE RELEASE OF A PERSON IMPRISONED IN EXECUTION OF A DECREE

(Sections 58, 59)

(*Title*)

THE PAKISTAN CODE

To

The Officer in charge of the Jail at

UNDER orders passed this day, you are hereby directed to set free judgment-debtor now in your custody.

Dated

Judge

---

[1]The word and "commas in the name of the King-Emperor of India,"have been omitted by A.O. 1961, Art.2 and Sch., (*with effect from the 23rd March, 1956*). 2Omitted by Act XIV of 1994, s. 11.
[2]Omitted by Act XIV of 1994, s.11.

No. 16

ATTACHMENT IN EXECUTION

PROHIBITORY ORDER, WHERE THE PROPERTY TO BE ATTACHED CONSISTS OF MOVEABLE PROPERTY TO WHICH THE DEFENDANT IS ENTITLED SUBIECT TO A LIEN OR RIGHT OF SOME OTHER PERSON TO THE IMMEDIATE POSSESSION THEREOF. (O. 21, r. 46)

(*Title*)

To

WHEREAS

has failed to satisfy a decree passed against on the day of 19 , in Suit No. of 19 , in favour of for Rs. ; It is ordered that the defendant be, and is hereby, prohibited and restrained until the further order of this Court, from receiving from the following property in the possession of the said that is to say ,to which the defendant is entitled, subject to any claim of the said ,and the said is hereby prohibited and restrained, until the further order of this Court, from delivering the said property to any person or persons whomsoever.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 17 ATTACHMENT IN EXECUTION

PROHIBITORY ORDER, WHERE THE PROPERTY CONSISTS OF DEBTS NOT SECURED BY NEGOTIABLE INSTRUMENTS.

(O. 21, r. 46)

THE PAKISTAN CODE

(*Title*)

To

WHEREAS

has failed to satisfy a decree passed against on the day of 19 , in Suit No. of 19, in favour of for Rs. ; It ordered that the defendant be, and is hereby, prohibited and restrained, until the further order of this Court, from receiving from you a certain debt alleged now to be due from you to the said defendant, namely, and that you, the said , be, and you are hereby, prohibited and restrained, until the further order of this Court from making payment of the said debt, or any part thereof, to any person, whomsoever or otherwise than into this Court.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 18

ATTACHMENT IN EXECUTION

PROHIBITORY ORDER, WHERE THE PROPERTY CONSISTS OF SHARES IN THE CAPITAL OF A CORPORATION. (O. 21, r. 46)

(*Title*)

To

Defendant and

to Secretary of Corporation,

WHEREAS has failed to satisfy a decree passed against on the day of 19 ,in Suit No. of 19 , in favour of , for Rs. It is ordered that you, the defendant, be, and you are hereby, prohibited and restranied, until the further order of this Court, from making any transfer of shares in the aforesaid Corporation, namely, ,or from receiving payment of any dividends thereon; and you, ,the Secretary of the said Corporation, are hereby prohibited and restrained from permitting any such transfer or making any such payment.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 19

ORDER TO ATTACH SALARY OF PIBLIC OFFICER OR SERVANT OF RAILWAY COMPANY OR LOCAL AUTHORITY. (O. 21, r. 48)

(*Title*)

THE PAKISTAN CODE

TO

WHEREAS

Judgment-debtor in the above-named case, is a (*describe office of judgment-debtor*) receivinig his salary (or allowance) at your hands; and whereas , decree- holder in the said case, has applied in this Court for the attachment of the salary (or allowances) of the said to the extent of due to him under the decree; You are hereby required to withhold the said sum of from the salary of the said in monthly instalments of ,and to remit the said sum (or monthly instalments) to this Court.

GIVEN under my hand and the seal of the Court; this day of 19 .

Judge

No. 20

ORDER OF ATACHMENT OF NEGOTIABLE INSTRUMENT. (O. 21, r. 51)

(*Title*)

To

The Bailiff of the Court.

WHERBAS an order has been passed by this Court on the day of 19 , for the attachment of ;You are hereby directed to seize the said and bring the same into Court.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 21

ATTACHMENT

PROHIBITORY ORDER WHERE THE PROPERTY CONSISTS OF MONEY OR OF ANY SECURITY IN THE CUSTODY OF A COURT OF JUSTICE OR

[1][PUBLIC OFFICER]. (O. 21, r. 52)

(*Title*)

To

SIR,

The plaintiff having applied, under rule 52 of Order XXI of the Code of Civil Procedure1908, for an attachment of certain money now in your hands (*here state how the money is supposed to be in the hands of the person addressed on what account, etc*.), I request that you will hold the said money of subject to the further order of this Court

I have the honour to be,

SIR.

Your most obedient Servant,

Judge

Dated the day of 19 .

---

[1]Subs. by A.O., 1937, for "officer of Government".

No. 22

NOTICE OF ATTACHMENT OF A DECREE TO THE COURT WHICH PASSED IT. (O. 21, r. 53)

(*Title*)

To

The Judge of the Court of SIR,

I have the honour to inform you that the decree obtained in your Court on the day of 19 , by in Suit No. of 19 , in which he was and was has been attached by this Court on the application of the in the suit specified above. You are therefore requested to stay the execution of the decree of your Court until you receive an intimation from this Court that the present notice has been cancelled or until execution of the said decree is applied for by the holder of the decree now sought to be executed or by his judgment-debtor.

I have the honour, etc.,

Judge

Dated the day of 19 .

_____

No. 23

NOTICE OF ATTACHMENT OF A DECREE TO THE HOLDER OF THE DECREE. (O. 21, r. 53)

(*Title*)

To

THE PAKISTAN CODE

WHEREAS an applitation has been made in this Court by the decree-holder in the above suit for the attachment of a decree obtained by you on the day of 19 ,in the Court of in Suit No. of 19 , in which was and was ; It is ordered that you, the said , be, and you are hereby, prohibited and restrained, until the further order of this Court, from transferring or charging the same in any way.

GIVEN under my hand and the seal of the Court, this day of 19.

Judge

_____

No. 24

ATTACHMENT IN EXECUTION

PROHIBITORY ORDER WHERE THE PROPERTY CONSISTS OF IMMOVEABLE PROPERTY (O. 21, r. 54)

(*Title*)

To

Defendant.

WHEREAS you have failed to satisfy a decree passed against you on the day of 19 , in Suit No. of 19 , in favour of for Rs. ; It is ordered that you, the said , be, and you are hereby, prohibited and restrained, until the further order of this Court, from transferring or charging the property specified in the schedule hereunto annexed, by sale, gift or otherwise, and that all person be, and that they are hereby, prohibited from receiving the same by purchase, gift or otherwise.

GIVEN under my hand and the seal of the Court, this day of 19 .

Schedule

Judge

No. 25

PLAINTIFF, ETC., OF MONEY, E.T.C. IN THE HANDS OF A THIRD PARTY. (O. 21, r. 56)

(*Title*)

THE PAKISTAN CODE

To

WHEREAS the following property has been attached in execution of a decree in Suit No. of 19 ,passed on the day of 19 , in favour of for Rs. ; it is ordered that the property so attached, consisting of Rs. in money and Rs. in currency-notes, or a sufficient part thereof to satisfy the said decree, shall be paid over by you, the said to .

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 26

NOTICE TO ATTACHING CREDITOR. (O. 21, r. 58)

(*Title*)

To

WHEREAS has made application to this Court for the removal of attachment on placed at your instance in execution of the decree in Suit No. of 19 , this is to give you notice to appear before this Court on , the day of 19 , either in person or by a pleader of the Court duly instructed to support your claim, as attaching creditor.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 27

WARRANT OF SALE OF PROPERTY IN EXECUTION OF A DECREE FOR MONEY (O. 21, r, 66)

(*Title*)

To,

The Bailiff of the Court.

THESE are to command you to sell by auction, after giving days previous notice, by affixing the same in this Court-house, and after making due proclamation, the property attached under a warrant from this Court, dated the day of 19 ,in execution of a decree in favour of in Suit No. of 19 , or so much of the said property as shall realize the sum of Rs. , being the of the said decree and costs still remaining unsatisfied.

You are further commanded to return this warrant on or before the day of 19 , with an endorsement certifying the manner in which it has been executed, or the reason why it has not been executed.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 28.

NOTICE OF THE DAY FIXED FOR SETTLING A SALE PROCLAMATION (O. 21, r. 66)

(*Title*)

To

the decree Judgment-debtor

WHEREAS in the above-named suit , holder, has applied for the sale of ; You are hereby informed that the day of 19 has been fixed for settling the terms of the proclamation of sale.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 29

PROCLAMATION OF SALE, (O. 21, r. 66)

(*Title*)

Notice is hereby given that, under rule 64 of Order XXI of the Code of Civil Procedure, 1908, an order has been passed by this Court for the sale of (1) Suit No. of the attached property mentioned in the annexed 19 ,decided by the schedule, in satisfaction of the claim of the decree of in which holder in the suit (1) mentioned in the margin was plaintiff and amounting with costs and interest up to date of was defendant sale to the sum of.

The sale will be by public auction, and the property will be put up for sale in the lots specified in the schedule. The sale will be of the property of the judgment-debtors above-named as mentioned in the schedule below ; and the liabilities and claims attaching to the said property, so far as they have been ascertained, are those specified in the schedule against each lot.

In the absence of any order of postponement, the sale will be held by at the monthly sale commencing at o'clock on the at . In the event, however, of the debt above specified and of the costs of sale being tendered or paid before the knocking down of any lot, the sale will be stopped.

THE PAKISTAN CODE

At the sale the public generally are invited to bid, either personally or by duly authorised agent. No bid by, or on behalf of, the judgment-creditors above-mentioned, however, will be accepted, nor will any sale to them be valid without the express permission of the Court previously given. The following are the further.

Conditions of Sale

1. The particulars specified in the schedule below have been stated to the best of the information of the Court, but the Court will not be answerable for any error, mis-statement or omission in this proclamation.

2. The amount by which the biddings are to be increased shall be determined by the officer conducting the sale. In the event of any dispute arising as to the amount bid, or as to the bidder, the lot shall at once be again put up to auction.

3. The highest bidder shall be declared to be the purchaser of any lot, provided always that he is legally qualified to bid, and provided that it shall be in the discretion of the Court or officer holding

the sale to decline acceptance of the highest bid when the price offered appears so clearly inadequate as to make it advisable to do so.

4. For reasons recorded, it shall be in the discretion of the officer conducting the sale to adjourn it subject always to the provisions of rule 69 of Order XXI.

5. In the case of moveable property, the price of each lot shall be paid at the time of sale or as soon after as the officer holding the sale directs, and in default of payment the property shall forthwith be again put up and re-sold.

6. In the case of immoveable property, the person declared to be the purchaser shall pay immediately after such declaraticn a deposit 25 per cent on the amount of his purchase-money to the officer conducting the sale, and in default of such deposit the property shall forthwith be put up again and re-sold.

7. The full amount of the purchase-money shall be paid by the purchaser before the Court closes on the fifteenth day after the sale of the property, exclusive of such day, or if the fifteenth day be a Sunday or other holiday, then on the first office day after the fifteenth day.

8. In default of payment of the balance of purchase-money within the period allowed, the propetty shall be re-sold after the issue of a fresh notification of sale. The deposit, after defraying the expenses of the sale, may, if the Court thinks fit, be forfeited to Governrnent and the defaulting purchaser shall forfeit all claim to the property or to any part of the sum for which it may be subsquently sold.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

Schedule of Property

No. of lot	**Description of property to be sold, with the name of each owner where there are more judgment debtors than one.**	**The revenue assessed upon the estate or part of the estate if the property to be sold is an interest in an estate or a part of an estate paying revenue to Government.**	**Detail of any incumbrances to which the property is liable.**	**Claims, if any, which have been put forward to the property and any other known particulars bearing on its nature and value.**

THE PAKISTAN CODE

No. 30

ORDER ON THE NAZIR FOR CAUSING SERVICE OF PROCLAMATION OF SALE (O. 21, r. 66)

(*Title*)

To

The Nazir of the Court.

WHEREAS an order has been made for the sale of the property of the judgment-debtor specified in the schedule hereunder annexed, and whereas the day of 19 , has been fixed for the sale of the said property copies of the proclamation of sale are by this warrant made over to you, and you are hereby ordered to have the proclamation published by beat of drum within each of the properties specified in the said schedule, to affix a copy of the said proclamation on a conspicuous part of each of the said properties and afterwards on the Court-house, and then to submit to this Court a report showing the dates on which and the manner in which the proclamations have been published.

Dated the day of 19 .

Schedule

Judge

No. 31

CERTIFICATE BY OFFICER HOLDING A SALE OF THE DEFICIENCY OF PRICE ON A RE-SALE OF PROPERTY BY REASON OF THE PURCHASER'S DEFAULT.

(O. 21, r.71)

THE PAKISTAN CODE

(*Title*)

Certified that at the re-sale of the property in execution of the decree in the above-named suit, in consequence of default on the part of , purchaser there was a deficiency the price of the said property amounting to Rs. , and that the expenses attending such resale amounted to Rs. , making a total of Rs. , which sum is recoverable from the defaulter.

Dated the day of 19 .

Officer holding the sale

No. 32

NOTICE TO PERSON IN POSSESSION OF MOVEABLE PROPERTY SOLD IN EXECUTION (O, 21, r. 79)

(*Title*)

To

WHEREAS has become the purchaser at a public sale in execution of the decree in the above suit of now in your possession, you are hereby prohibited from delivering possession of the said to any person except the said .

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 33

PROHIBITORY ORDER AGAINST PAYMENT OF DEBTS SOLD IN EXECUTING TO ANY OTHER THAN THE PURCHASER. (O. 21, r. 79)

(*Title*)

To and to

WHEREAS has become the purchaser at a public sale in execution of the decree in the above suit of

being debts due from you to you

; It is ordered that you be, and you are hereby, prohibited from reciving, and you from making payment of, the said debt to any person or persons except the said

GIVEN under the hand and seal of the Court, this day of 19 .

Judge

No. 34

PROHIBITORY ORDER AGAINST THE TRANSFER OF SHARE SOLD IN EXECUTION. (O.21, r. 79).

(*Title*)

To and , Secretary of

Corporation.

THE PAKISTAN CODE

WHEREAS has become the purchaser at a public sale in execution of the decree, in the above suit, of certain shares in the above Corporation, that is to say, of standing in the name of you ;It is ordered that you be, and you hereby, prohibited from making any transfer of the said shares to any person except the said the purchaser aforesaid, or from receiving any dividends thereon ; and you , Secretary of the said Corporation from permitting any such transfer or making any such payment to any person, except the said the purchaser aforesaid.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 35

CERTIFICATE TO JUDGMENT-DEBTOR AUTHORISING HIM TO MORTGAGE, LEASE OR SELL PROPERTY, (O. 21, r. 83).

(*Title*)

WHEREAS in execution of the decree passed in the above suit an order was made on the day of 19 , for the sa1e of the under-mentioned property of the judgment-debtor ,and whereas the Court has, on the application of the said judgment-debtor, postponed the said sale to enable him to raise the amount of the decree by mortgage, lease or private sale of the said property or of some part thereof :

This is to certify that the Court doth hereby authorise the said judgment-debtor to make the proposed mortgage, lease or sale within a period of from the date of this certificate ; provided that all monies payable under such mortgage, lease or sale shall be paid into this Court and not to the said judgment-debtor.

Description of property

THE PAKISTAN CODE

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 36

CAUSE WHY SALE SHOULD NOT BE SET ASIDE. (O. 21, rr. 90, 92)

(*Title*)

To

WHEREAS the under-mentioned property was sold on the day of 19 , in execution of the decree passed in the above-named suit, and whereas , the decree-holder [*or* judgment-debtor], has applied to this Court to set aside the sale of the said property on the ground of a material irregularity [or fraud] in publishing [or conducting] the sale, namely that

Take notice that if you have any cause to show why the said application should not be granted you should appear with your proofs in this Court on the day of 19 , when the said application will be heard and determined.

GIVEN under my hand and the seal of the Court, this day of 19 .

Description of property

Judge

No. 37

NOTICE TO SHOW CAUSE WHY SALE SHOULD NOT BE SET ASIDE.

(O 21, rr. 90, 92)

(*Title*)

To

WHEREAS , the purchaser of the under-mentioned property sold on the day of 19 , in execution of the decree passed in the above-named suit, has applied to this Court to set aside the sale of the said property on the ground that ,the judgment-debtor, had no saleable interest therein:

Take notice that if you have any cause to show why the said application should not be granted, you should appear with your proofs in this Court on the day of 19 ,when the said application will be heard and determined.

GIVEN under my hand and the seal of the Court, this day of 19 .

Description of property

Judge

No. 38

CERTIFICATE OF SALE OF LAND. (O. 21, r. 94)

(*Title*)

THIS is to certify that has been declared the purchaser at a sale by public auction on the day of 19 , of in execution of decree in this suit, and that the said sale has been-duly confirmed by this Court.

GIVEN under my hand and the seal of the Court, this day of 19 ,

Judge

No. 39

ORDER FOR DELIVERY TO CERTIFIED PURCHASER OF LAND AT A SALE IN EXECUTION. (O. 21, r. 95)

(*Title*)

To

The Bailiff of the Court.

WHEREAS has become the certified purchaser of at a sale in execution of decree in suit No. of 19 ; You are hereby ordered to put the said ; the certified purchaser, as aforesaid, in possession of the same.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 40

SUMMONS TO APPEAR AND ANSWER CHARGE OF OBSTRUCTING EXECUTION OF DECREE. (O. 21, r. 97)

THE PAKISTAN CODE

(*Title*)

To

WHEREAS , the

decree-holder in the above suit, has complained to this Court that you have resisted (or obstructed) the officer charged with the execution of the warrant for possession :

You are hereby summoned to appear in this Court on the day of 19 at A.M., to answer the said complaint.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 41

WARRANT OF COMMITAL. (O. 21, r.98)

(*Title*)

To

The Officer in Charge of the Jail at

WHEREAS the under-mentioned property has been decreed to ,the plaintiff in this suit, and whereas the Court is satisfied that without any just cause resisted [or obstructed] and is still resisting [or obstructing] the said in obtaining possession of the property, and whereas the said has made application to this Court that the said be committed to [1][* *] prison;

You are hereby commanded and required to take and receive the said into [1][* *] prison and to keep him imprisoned therein for the period of days.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge.

No. 42

AUTHORITY OF THE COLLECTOR TO STAY PUBLIC SALE OF LAND, (Section 72)

(*Title*)

To

, Collector of .

THE PAKISTAN CODE

SIR,

In answer to your communication No. , dated representing that the sale in execution of the decree in this suit of land situate within your district is objectionable, I have the honour to inform you that you are authorised to make provision for the satisfaction of the said decree in the manner recommended by you.

I have the honour to be

SIR,

Your obedient servant,

Judge

[1]Omitted by Act. XIV of 1994, s.11.

APPENDIX F

SUPPLEMENTAL PROCEEDINGS

No.1

WARRANT OF ARREST BEFORE JUDGMENT (O. 38, r. 1)

(*Title*)

To

The Bailiff of the Court.

WHEREAS , the plaintiff in the above suit, claims the sum of Rs. as noted in the margin, and has proved to the satisfaction of the Court that there is probable cause for believing that the defendant is about to ;These are to command you to demand and receive from the said the sum of Rs. as sufficient to satisfy the plaintiff's claim, and unless the said sum of Rs. is forth with delivered to you by or on behalf of the said to take the said into custody, and to bring him before this Court, in order that he may show cause why he should not furnish security to the amount of Rs. for his personal appearance before the Court, until such time as the said suit shall be fully and finally disposed of, and until satisfaction of any decree that may be passed against him in the suit.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge.

Principal ..			
Interest ..			
Costs ..			
Total ..			

THE PAKISTAN CODE

No.2

SECURITY FOR APPEARANCE OF A DEFENDANT ARRESTED BEFORE JUDGMENT (O. 38, r. 2)

(*Title*)

WHEREAS at the instance of , the plaintiff in the above suit, the defendant, has been arrested and brought before the Court ;

And whereas on the failure of the said defendant to show cause why he should not furnish security for his appearance, the Court has ordered him to furnish such security :

Therefore I have voluntarily become surety and do hereby bind myself, my heirs and executors, to the said

Court, that the said defendant shall appear at any time when called upon while the suit is pending and until satisfaction of any decree that may be passed against him in the said suit; and in default of such appearance I bind myself, my heirs and executors, to pay to the said Court, at its order, any some of money that may be adjudged against the said defendant in the said suit.

Witness my hand at this day of 19 .

(Signed)

Witnesses

1.

2.

No.3

SUMMONS TO DEFENDANT TO APPEAR ON SURETY'S APPLICATION FOR DISCHARGE, (O. 38, r. 3)

(*Title*)

To

WHEREAS , who became surety on the day of 19 , for your appearance in the above suit, has applied to this Court to be discharged from his obligation :

Your are hereby summoned to appear in this Court in person on the day of 19 ,at A.M., when the said application will be heard and determined.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 4

ORDER FOR COMMITTAL. (O. 38, r. 4)

(*Title*)

To

WHEREAS , plaintiff in this suit, has made application to the Court that security be taken for the appearance of , the defendant, to answer any judgment that may be passed against him in the suit; and whereas the Court has called upon the defendant to furnish such security, or to offer a sufficient deposit in lieu of security, which he has failed to do: it is ordered that the said defendant be committed to [1][**] prison until the decision of the suit or, if judgment be pronounced against him, until satisfaction of the decree.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No.5

ATTACHMENT BEFORE JUDGMENT, WITH ORDER TO CALL FOR SECURITY FOR FULFILMENT OF DECREE. (O. 38, r. 5)

(*Title*)

To

The Bailiff of the Court.

WHEREAS has proved to the satisfaction of the Court that the defendant in the above suit ;

These are to command you to call upon the said defendant on or before the day of 19 either to furnish security for the sum of rupees to produce and place at the disposal of this Court when required or the value thereof, or such portion of the value as may be sufficient to satisfy any decree that may be passed against him ; or to appear and show cause why he should not furnish security ; and you are further ordered to attach the said and keep the same under safe and secure custody until the further order of the Court; and you are further commanded to return this warrant on or before the day of 19 with an endorsement certifying the date on which and the manner in which it has been executed or the reason why it has not been executed.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

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[1]Ommitted by Act XIV of 1994, s.11.

No. 6

SECURITY FOR THE PRODUCTION OF PROPERTY. (O. 38, r.5)

(*Title*)

WHEREAS at the instance of , the plaintiff in the above suit, the defendant has been directed by the Court to furnish security in the sum of Rs. to produce and place at the disposal of the Court the property specified in the schedule hereunto annexed ;

Therefore I have voluntarily become surety and do hereby bind myself, my heirs and executors, to the said Court, that the said defendant shall produce and place at the disposal of the Court, when required, the property specified in the said schedule, or the value of the same, or such portion thereof as may be sufficient to satisfy the decree ; and in default of his so doing, I bind myself, my heirs and executors, to pay to the said Court, at its order, the said sum of Rs. or such sum not exceeding the said sum as the said Court may adjudge.

Schedule

Witness my hand at this day of 19 .

(Signed)

Witnesses

1.

2.

No.7

ATTACHMENT BEFORE JUDGMENT, ON PROOF OF FAILURE TO FURNISH SECURITY.

(O. 38, r. 6)

(*Title*)

THE PAKISTAN CODE

To

The Bailiff of the Court.

WHEREAS , the plaintiff in this suit has applied to the Court to call upon , the defendant, to furnish security to fulfill any decree that may be passed against him in the suit, and whereas the Court has called upon the said to furnish such security, which he has failed to do ; These are to command you to attach , the property of the said ,and keep the same under safe and secure custody until the further order of the Court ; and you are further commanded to return this warrant on or before the day of 19 , with an endorsement certifying the date on which and the manner in which it has been executed, or the reason why it has not been executed.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No. 8

TEMPORARY INJUCTIONS. (O, 39, r. 1)

(*Title*)

Upon motion made unto this Court by , pleader of [*or* Counsel for] the plaintiff A.B., and upon reading the petition of the said plaintiff in this matter filed [this day] *or* the plaint filed in this suit on the day of ,or the written statement of the said plaintiff filed on the day of] and upon hearing the evidence of and in support thereof [*if after notice and defendant not appearing : add*, and also the evidence of as to service of notice of this motion upon the defendant C.D.] : This Court doth order that an injuction be awarded to restrain the defendant C.D., his servants, agents and workmen, from pulling down, or suffering to be pulled down, the house in the plaint in the said suit of the plaintiff mentioned [or in the written statement, or petition, of the plaintiff and evidence at the hearing of this motion mentioned], being No.9, Oilmongers Street, Hindupur, in the Taluk of , and from selling the materials whereof the said house is composed, until the hearing of this suit or until the further order of this Court.

Dated this day of 19 .

Judge

[*Where the injunction is sought to restrain the negotiation of a note or bill the ordering part of the order may run thus :—*]

to restrain the defendants and

from parting without of the custody of them or any of them or endorsing, assigning or negotiating the promissory note [*or* bill of exchange] in question, dated on or about the , etc., mentioned in the plaintiff's plaint [*or* petition] and the evidence heard at this motion until the hearing of this suit, or until the further order of this Court.

THE PAKISTAN CODE

[*In Copyright cases*] to restrain the defendant C.D., his servants, agents or workmen, from printing, publishing or vending a book, called , or any part thereof, until the, etc.

[*Where part only of a book is to be restrained*]

to restrain the defendant C. D., his servants, agents or workmen, from printing, publishing, selling or otherwise disposing of such parts of the book in the plaint [or petition and evidence, etc] mentioned to have been published by the defendant as hereinafter specified, namely, that part of the said book which is entitled and also that part which is entitled [*or* which is contained in page to page both inclusive] until , etc.

[*In Patent cases*] to restrain the defendant CD., his agents, servants and workmen, from making or vending any perforated bricks [*or as the case may be*] upon the principle of the inventions in the plaintiff's plaint [*or* petition, etc., or written statement, etc.,] mentioned, belonging to the plaintiff's or either of them, during the remainder of the respective terms of the patents in the plaintiff's plaint [*or as the case may be*] mentioned, and from counterfeiting, imitating or resembling the same inventions, or either of them, or making any addition thereto, or

subtraction therefrom, until the hearing, etc.

[*In cases of Trademarks*] to restrain the defendant C.D., his servants, agents or workmen, from selling, or exposing for sale, or procuring to be sold, any composition or blacking [*or as the case may be*] described as or purporting to be blacking manufactured by the plaintiff A.B., in bottles having affixed thereto such labels as in the plaintiff's plaint [*or* petition, etc.] mentioned, or any other labels so contrived or expressed as, by colourable initation or otherwise, to represent the composition or blacking sold by the defendant to be the same as the composition or blacking manufactured and sold by the plaintiff A.B., and from using trade-cards so contrived or expressed as to represent that any composition or blacking sold or proposed to be sold by the defendant is the same as the composition or blacking manufactured or sold by the plaintiff A.B., until the, etc.

[*To restrain a partner from in any way interfering in the business*]

to restrain the defendant C.D., his agents and servants, from entering into any contract, and from accepting, drawing, endorsing or negotiating any bill of exchange, note or written security in the name of the partnership-firm of B, and D., and from contracting any debt, buying and selling any goods, and from making or entering into any verbal or written promise, agreement or undertaking, and from doing, or causing to be done, any act, in the name or on the credit of the said partnership-firm of B. and D., or whereby the said partnership firm can or may in any manner become or be made liable to or for the payment of any sum of money, or for the performance of any contract, promise or undertaking until the, etc.

No. [1][9]

APPOINTMENT OF A RECEIVER. (O. 40, r. 1)

(*Title*)

To

WHEREAS has been attached in execution of a decree passed in the above suit on the day of 19 , in favour of ; You are hereby (subject to your giving security to the satisfaction of the Court) appointed receiver of the said property under Order XL of the Code of Civil Procedure, 1908, with full powers under the provisions of that Order.

You are required to render a due and proper account of your receipts and disbursements in respect of the said property on . You will be entitled to remuneration at the rate of per cent. upon your receipts under the authority of this appointment.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

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[1]The number of the form, originally misprinted as 6, was corrected by the Repealing and Amending act, 1914 (10 of 1914), s.2 and First Sch.,

No. [1][10]

BOND TO BE GIVEN BY RECEIVER, (O. 40, r. 3)

(*Title*)

KNOW [all men by these presents, that we, and and , are jointly and severally bound to of the Court of in Rs. to be paid to the said or his successor in office for the time being. For which payment to be made we bind ourselves, and each of us, in the whole, our and each of our heirs, executors and administrators, jointly and severally, by these presents.

Dated this day of 19 .

Whereas a plaint has been filed in this Court by against for the purpose of [*here insert the object of suit*] :

And whereas the said has been appointed, by order of the above-mentioned Court, to receive the rents and profits of the immovable property and to get in the outstanding moveable property of in the said plaint named:

Now the condition of this obligation is such, that if the above-bounden shall duly account for all and every the sum and sums of money which he shall so receive on account of the rents and profits of the immovable property, and in respect of the moveable property, of the said at such periods as the said Court shall appoint, and shall duly pay the balances which shall from time to time be certified to be due from him as the said Court hath directed or shall hereafter direct, then this obligation shall be void, otherwise it shall remain in full force.

Signed and delivered by the above-bounden in the presence of .

Note.— If deposit of money is made, the memorandum thereof should follow the terms of the condition of the bound.

APPENDIX G

APPEAL, REFERENCE AND REVIEW

No.1

MEMORANDUM OF APPEAL (O. 41, r. I)

(*Title*)

The above-named appeals to

the Court at from the decree of in Suit No. of 19 , dated the day of 19 ,and sets forth the following grounds of objection to the decree appealed from, namely :—

[1]The number of the form, originally misprinted as 7, was corrected by the Repealing and Amending Act, 1914 (10 of 1914), s. 2 and First Sch.,

No.2

SECURITY BOND TO BE GIVEN ON ORDER BEING MADE TO STAY EXECUTION OF DECREE.

(O.41, r. 5)

(*Title*)

To

This security bond on stay of execution of decree executed by witnesseth:—

That , the plaintiff in Suit No. of 19 , having sued , the defendant, in this Court and a decree having been passed on the day of 19 in favour of the plaintiff, and the deffendant having preferred an appeal from the said decree in the Court, the said appeal is still pending.

Now the plaintiff decree-holder having applied to execute thc decree, the defendant has made an application praying for stay of exection and has called upon to furnish security. Accordingly I, of my own free will, stand security to the extent of Rs. , mortgaging the properties specified in thc schedule hereunto annexed, and covenant that if the decree of the first Court be confirmed or varied by the Appellate Court the said defendant shall duly act in accordance with the decree of the Appellate Court and shall pay whatever may be payable by him thereunder, and if he should fail therein then any amount so payable shall be realized from the properties hereby mortgaged, and if the proceeds of the sale of the said properties are insuficient to pay the amount due, I and my legal representatives will be personally liable to pay the balance. To this effect I execute this seucrity bond, this day of 19 .

Schedule

(Signed)

Witnessed by

1.

2.

THE PAKISTAN CODE

———

No. 3

SECURITY BOND TO BE GIVEN DURING THE PENDENCY OF APPEAL (O. 41, r. 6)
(O.41, r.6)

(*Title*)

To

THIS security bond on stay of execution of decree executed by Witnesseth :—

That , the plaintiff in Suit No. of 19 , having sued ,the defendant, in this Court and a decree having been passed on the day of 19 in favour of the plaintiff, and the defendant having preferred an appeal from the said decree in the Court, the said appeal is still pending.

Now the plaintiff decree-holder has applied for execution of the said decree and has been called upon to furnish security. Accordingly I, of my own free will, stand security to the extent of Rs. , mortgaging the properties specified in the schedule hereunto annexed, and covenant that if the decree of the first Court be reversed or varied by the Appellate Court, the plaintiff shall restore any property which may be or has been taken in execution of the said decree and shall duly act in accordance with the decree of the appellate Court and shall pay whatever may be payable by him thereunder, and if he should fail therein then any amount so payable shall be realized from the properties hereby mortgaged, and if the proceeds of the sale of the said properties are insufficient to pay the amount due, I and my legal representatives will be personally liable to pay the balance. To this effect I execute this security bond this day of 19 .

Schedule

(Signed)

Witnessed by

1.

2.

No. 4

SECURITY FOR COSTS OF APPEAL. (O. 41, r. 10)

(*Title*)

THE PAKISTAN CODE

To

THIS security bond for costs of appeal executed by witnesseth :—

This appellant has preferred an appeal from the decree in Suit No. of 19 ,against the respondent, and has been called upon to furnish security. Accordingly I, of my own free will, stand security for the costs of the appeal, mortgaging the properties specified in the schedule hereunto annexed-I shall not transfer the said properties or any part thereof, and in the event of any default on the part of the appellant, I shall duly carry out any order that may be made against me with regard to payment of the costs of appeal. Any amount so payable shall be realized from the properties hereby mortgaged, and if the proceeds of the sale of the said properties are insufficient to pay the amount due, I and my legal representatives will be personally liable to pay the balance.To this effect I execute this security bond this day of 19 .

(Signed)

Witnessed by

1.

2.

No. 5

INTIMATION OF LOWER COURT OF ADMISSION OF APPEAL. (O. 41, r. 13)

(*Title*)

To

You are hereby directed to take notice that the in the above suit, has preferred an appeal to this Court from the decree passed by you therein on the day of 19 .

You are requested to said with all practicable despatch all matatterial papers in the suit.

Dated the day of 19 .

Judge

No.6

NOTICE TO RESPONDENT OF THE DAY FIXED FOR THE HEARING OF THE APPEAL

THE PAKISTAN CODE

(O. 41, r. 14)

(*Title*)

APPEAL from the of the Court of dated the day of 19 .

To

Respondent.

TAKE notice that an appeal from the decree of in this case has been presented by and registered in this Court, and that the day of 19 has been fixed by this Court for the hearing of this appeal.

If no appearance is made on your behalf by yourself, your pleader, or by some one by law authorised to act for you in this appeal, it will be heard and decided in your absence.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

[*Note.— If a stay of execution has been ordered, intimation should be given of the fact on this notice*.]

No.7

NOTICE TO A PARTY TO A SUIT NOT MADE A PARTY TO THE APPEAL BUT JOINED BY THE COURT AS A RESPONDENT.

(O. 41, r, 20)

(*Title*)

To

WHEREAS you were a party in suit No. of 19 , in the Court of , and whereas the has preferred an appeal to this Court from the decree passed against him in the said suit and it appears to this Court that you are interested in the result of the said appeal :

This is to give you notice that this Court has directed you to be made a respondent in the said appeal and has adjourned the hearing thereof till the day of 19 , at A.M. If no appearance is made on your behalf on the said day and at the said hour the appeal will be heard and decided in your absence.

GIVEN under my hand and the seat of the Court, this day of 19 .

Judge

THE PAKISTAN CODE

NO. 8

MEMORANDUM OF CROSS OBJECTIONS. (O. 41, r. 22)

(*Title*)

WHEREAS the has preferred an appeal to the Court at from the decree of in Suit No. of 19 ,dated the day of 19 , and whereas notice of the day fixed for hearing the appeal was served on the on the day of 19. the files this memorandum of cross objection under rule 22 of Order XLI of the Code of Civil Procedure, 1908, and sets forth the following grounds of objection to the decree appealed from, namely :—

No. 9

DECREE IN APPEAL.

(O. 41, r. 35)

(*Title*)

Appeal No. of 19 from the decree of the Court of dated the day of 19 .

Memorandum of Appeal

Plaintiff Defendant

The above-named appeals to the Court at from the decree in the above suit-dated the day of 19 , for the following reasons, namely:—

This appeal coming on for hearing on the day of 19 , before ,in the presence of for the appellant and of for the respondent, it is ordered—

The costs of this appeal, as detailed below, amounting to Rs. ,are to be paid by . The costs of the original suit are to be paid by

GIVEN under my hand this day of 19 .

Judge

Costs of Appeal

Appellant	**Amount**			**Respondent**	**Amount**		
	Rs.	a.	p.		Rs.	a.	p.
1. Stamp for memorandum of appeal				Stamp for power			
2. Do. for power ..				Do. for petition Service			
3. Service of processes				of processes			
4. Pleader`s fee on Rs.				Pleader`s fee on Rs.			
Total ..				Total ..			

THE PAKISTAN CODE

No. 10

APPLICATION TO APPEAL in forma pauperis (O. 44, r. 1)

(*Title*)

I the above-named, present the accompanying memorandum of appeal from the decree in the above suit and apply to be allowed to appeal as a pauper.

Annexed is a full and true schedule of all the moveable and immoveable property belonging to me with the estimated value thereof.

Dated the day of 19 .

(Signed)

Note.— Where the application is by the plaintiff he should state whether he applied and was allowed to sue in the Court of first instance as a pauper.

No. 11

NOTICE OF APPEAL in forma pauperis (O. 44, r. 1)

(*Title*)

WHEREAS the above-named has applied to be allowed to appeal as a pauper from the decree in the above suit dated the day of 19 and whereas the day of 19 , has been fixed for hearing the application, notice is hereby given to you that if you desire to show cause why the applicant should not be allowed to appeal as a pauper an opportunity will be given to you of doing so on the afore-mentioned date.

GIVEN under my hand and the seal of the Court, this day of 19 .

THE PAKISTAN CODE

Judge

No. 12

NOTICE TO SHOW CAUSE WHY A CERTIFICATE OF APPEAL TO THE [1][SUPREME COURT] SHOULD NOT BE GRANTED.(O. 45, r. 3)

(*Title*)

To

Take notice that has applied to this Court for a certificate that as regards amount or value and nature the above case fulfils the requirements of section 110 of the Code of Civil Procedure, 1908, or that it is otherwise a fit one for appeal to the [1][Supreme Court].

[1]Subs. by A.O., 1961, Art.2 and Sch., (*with effect from the 23rd March, 1956*).

The day of 19 is fixed for you to show cause why the Court should not grant the certificate asked for.

GIVEN under my hand and the seal of the Court, this day of 19 .

Registrar

No. 13

NOTICE TO RESPONDENT OF ADMISSION OF APPEAL TO THE [1][SUPREME COURT] (O. 45, r. 8)

(*Title*)

To

WHEREAS , the

in the above case, has furnished the security and made the deposit required by Order XLV, rule 7, of the Code of Civil Procedure, 1908 :

Take notice that the appeal of the said to the [1][Supreme Court] has been admitted on the day of 19 .

GIVEN under my hand and the seat of the Court, this day of 19 .

Registrar

No. 14

NOTICE TO SHOW CAUSE WHY A REVIEW SHOULD NOT BE GRANTED (O. 47, r. 4)

THE PAKISTAN CODE

(*Title*)

To

TAKE notice that has applied to this Court for a review of its decree passed on the day of 19 in the above case. The day of 19 is fixed for you to show cause why the Court should not grant a review of its decree in this case

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

---

[1]Subs. by A.O., 1961, Art.2 and Sch., (*with effect from the 23rd March, 1956*).

APPENDIX H

MISCELLANEOUS

———

No.1

AGREEMENT OF PARTIES AS TO ISSUES TO BE TRIED (O. 14, r. 6)

(*Title*)

WHEREAS we, the parties, in the above suit, are agreed as to the question of fact [*or* of law] to be decided between us and the point at issue between us is whether a claim founded on a bond, dated the day of 19 and filed as Exhibit in the said suit, is or is not beyond the statute of limitation (*or state the point at issue whatever it may be*) :

We therefore severally bind ourselves that, upon the finding of the Court in the negative [*or* affirmative] of such issue, will pay to the said the sum of Rs. (*or* such suit as the Court shall hold to be due thereon, and I, the said , will accept the said sum of Rs. (*or* such as the Court shall hold to be due) in full satisfaction of my claim on the bond aforesaid [*or* that upon such finding I, the said , will do or abstain from doing, etc., etc]

Plaintiff
Defendant

Witnesses—

1.

2.

Dated the day of 19 .

———

THE PAKISTAN CODE

No. 2

NOTICE OF APPLICATION FOR THE TRANSFER OF A SUIT TO ANOTHER COURT FOR TRIAL (SECTION 24)

In the Court of the District Judge of No. of 19

To

WHEREAS an application, dated the day of 19 has been made to this Court by the in Suit No. 19 now pending in the Court of the at , in which is plaintiff and is defendant, for the transfer of the suit for trial to the Court of the at

You are hereby informed that the day of 19 has been fixed

for the hearing of the application, when you will be heard if you desire to offer any objection to it.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

_____

No. 3

NOTICE OF PAYMENT INTO COURT. (O. 24, r. 2)

(*Title*)

TAKE notice that the defendant has paid into Court Rs. and says that that sum is sufficient to satisfy the plaintiff`s claim in full.

X. Y., Pleader for the defendant.

To Z., Pleader for the plaintiff

_____

No.4

NOTICE TO SHOW CAUSE. (GENERAL FORM)

(*Title*)

To,

WHEREAS the above-named has made application to this Court that .

You are hereby warned to appear in this Court in person or by a pleader duly instructed on the day of 19 , at o'clock in the forenoon, to show cause against the application, failing wherein, the said application will be heard and determined *ex parte.*

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

_____

No.5

LIST OF DOCUMENTS PRODUCED BY PLAINTIFF (O. 13, r.1)
DEFENDANT

(*Title*)

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No.	Description of documents	Date, if any, which the document bears	Signature of party or pleader
1	2	3	4

_____

No.6

NOTICE TO PARTIES OF THE DAY FIXED FOR EXAMINATION OF A WITNESS ABOUT TO LEAVE THE JURISDICTION. (O. 18, r. 16)

(*Title*)

To

Plaintiff (or defendant).

WHEREAS in the above suit application has been made to the Court by that the examination of , a witness required by the said , in the said suit may be taken immediately ; and it has been shown to the Court's satisfaction that the said witness is about to leave the Court's jurisdiction (*or any other good and suffi- cient cause to be stated*):

TAKE notice that the examination of the said witness will be taken by the Court on the day of 19 .

Dated the day of 19 .

Judge

_____

No.7

COMMISSION TO EXAMINE ABSENT WITNESS. (O. 26, rr. 4, 18)

(*Title*)

To

WHEREAS the evidence of is required by the in the above suit ; and whereas ; you are requested to take the evidence on interrogatories [*or viva voce*] of such witness , and you are hereby appointed Commissioner for that purpose. The evidence will be taken in the presence of the parties or their agents if in attendance, who will be at liberty to question the witness on the points specified, and you are further requested to make return of such evidence as soon as it may be taken.

Process to compel the attendance of the witness will be issued by any Court having jurisdiction on your application.

A sum of Rs. , being your fee in the above, is herewith forwarded.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

No.8

LETTER OF REQUEST (O. 26, r. 5)

(***Title***)

(Heading:—To the President and Judges of, etc., etc., or *as the case may be*)

WHEREAS a suit is now pending in the in which A. B. is plaintiff and C.D. is defendant ; And the said suit the plaintiff claims.

And whereas it has been represented to the said Court that it is necessary for the purposes of justice and for the due determination of the matters in dispute between the parties, that the following persons should be examined as witnesses upon oath touching such matters, that is to say :

THE PAKISTAN CODE

E. F., of

G., H., of and

I. J., of

And it appearing that such witnesses are resident within the jurisdiction of your honourable Court;

Now I , as the of the said Court, have the honour to request, and do hereby request, that for the reasons aforesaid and for the assistance of the said Court, you as the President and Judges of the said ,or some one or more of you, will be pleased to summon the said witness (and such other witnesses as the agents of the said plaintiff and defendant shall humbly request you in writing so to summon) to attend at such time and place as you shall appoint before some one or more of you or such other person as according to the procedure of your Court is competent to take the examination of witnesses, and that you will cause such witnesses to be examined upon the interrogatories which accompany this letter of request (*or*

viva voce) touching the said matters in question in the presence of the agents of the plaintiff and defendant, or such of them as shall, on due notice given, attend such examination.

And I further have the honour to request that you will be pleased to cause the answers of the said witnesses to be reduced into writing, and all books, letters, papers and documents produced upon such examination to be duly marked for identification, and that you will be further pleased to authenticate such examination by the seal of your tribunal, or in such other way as is in accordance with your procedure, and to return the same, together with such request in writing, if any, for the examination of other witnesses to the said Court.

(*Note.*— If the request is directed to a Foreign Court, the words "through [1][the [2][Federal Government]] for transmission" should be inserted after the words "other witnesses" in the last line of this form.)

No. 9

COMMISSION FOR A LOCAL INVESTIGATION, OR TO EXAMINE ACCOUNTS (O. 26, rr. 9, 11)

(*Title*)

To

WHEREAS it is deemed requisite, for the purposes of this suit, that a commission for should be issued; You are hereby appointed Commissioner for the purpose of Process to compel the attendance before you of any witnesses, or for the production of any documents whom or which you may desire to examine or inspect, will be issued by any Court having jurisdiction on your application.

A sum of Rs. , being your fee in the above, is herewith forwarded.

GIVEN under my hand and the seal the Court, this day of 19 .

Judge

THE PAKISTAN CODE

No. 10

COMMISSION TO MAKE A PARTITION. (O. 26, r. 13)

(*Title*)

To

WHEREAS it is deemed requisite for the purposes of this suit that a commission shouId be issued to make the partition or separation of the property spceified in and according to the rights as declared in, the decree of this Court dated the day of 19; you are here by appointed Commissioner for the said purpose and are directed to make such inquiry as may be necessary, to divide the said property according to the best of your skill and judgment in the shares

[1]Subs. by A.O., 1949.
[2]Subs. by F.A.O., 1975, Art. 2 and Table.

set out in the said decree, and to a lot such shares to the several parties. You are hereby authorised to award sums to be paid to any party by any other party for the purpose of equalizing the value of the shares.

process to compel the attendance before you of any witness, or for the production of any documents, whom or which you may desire to examine or inspect, will be issued by any Court having jurisdiction on your application.

A sum of Rs. , being your fee in the above, I herewith forwarded.

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

_____

No. 11

NOTICE TO MINOR DEFENDANT AND GUARDIAN. (O. 32, r. 3)

(*Title*)

To

Minor Defendant. Natural Guardian.

Here inset the name of the guardian

WHEREAS an application has been presented on the part of the plaintiff in the above suit for the appointment of a guardian for the suit to the minor defendant, you, the said minor, and you (1) ,are hereby required to take notice that unless within days from the service upon you of this notice, an application is made to this Court for the appointment of you (1) or of some friend of you, the minor, to act as guardian for the suit, the Court will proceed to appoint some other person to act as a guardian to the minor for the purposes of the said suit.

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GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

_____

No. 12

NOTICE TO OPPOSITE PARTY OF DAY FIXED FOR HEARING EVIDENCE OF PAUPERISM. (O. 33, r. 6)

(*Title*)

To

WHEREAS has applied to this Court for permission to institute a suit against in *forma pauperis* under Order XXXIII of the Code of Civil

Procedure, 1908; and whereas the Court sees no reason to reject the application; and whereas he day of 19 has been fixed for receiving such evidence as the applicant may adduce in proof of his pauperism and for hearing any evidence which may be adduced in disproof thereof:

Notice is hereby given to you under rule 6 of Order XXXIII that in case you may wish to offer any evidence to disprove the pauperism of the applicant, you may do so on appearing in this Court on the said day of 19

GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

_____

No. 13

NOTICE TO SURETY OF HIS LIABILITY UNDER A DECREE

(Section145)

(*Title*)

To

WHEREAS you did on become liable as surety for the performance of any decree which might be passed against the said defendant in the above suit; and whereas a decree was passed on the day of 19 against the said defendant for the payment of , and whereas application has been made for execution of the said decree against you :

Take notice that you are hereby required on or before the day of 19 to show cause why the said decree should not be executed against you, and if no sufficient cause shall be, within the time specified, shown to the satisfaction of the Court, an order for its execution will be forthwith issued in the terms of the said application.

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GIVEN under my hand and the seal of the Court, this day of 19 .

Judge

_____

No. 14

REGISTER OF CIVIL SUITS (O. 4. r. 2.)

Court of the of at

REGISTER OF CIVIL SUITS IN THE YEAR 19

		Plaintiff			Defendant			Claim			Appearance			Judgment			Appeal		Execution						Return of Execution
Date of Presentation of plaint	Number of suit.	Name.	Description.	Place of residence.	Name.	Description.	Place of residence.	Particulars.	Amount or value.	When the cause of action accrued.	Day for parties to appear.	Plaintiff.	Defendant.	Date.	For whom.	For what or amount.	Date of decision of appeal	Judgment in appeal.	Date of application.	Date of order.	Against whom.	For what and amount, of money.	Amount of costs.	Amount paid into Court.	Arrested.	Minute of other Return than Payment or Arrrest, and date of every Return.

NOTE.—Where there are numerous plaintiffs, or numerous defendants, the name of the first plaintiff only, or the first defendant only, as the case may be need be entered in the register.

No. 15

REGISTER OF APPEALS (O. 41, r. 9)

—

COURT (*OR* HIGH COURT) AT

REGISTER OF APPEALS FROM DECREES IN THE YEAR 19

	Date of memorandum.	
	Number of appeal.	
	Name.	Appellant
	Description.	
	Place of residence.	
	Name.	Respondent
	Description.	
	Place of residence.	
	Of what Court.	Decree appealed from
	Number of Original Suit.	
	Particulars.	
	Amount or value.	
	Day for parties to appear.	Appearance
	Appellant.	
	Respondent.	
	Date.	Judgment
	Confirmed, reversed or varied.	
	For what or amount.	

THE SECOND SCHEDULE.—[*Arbitration*] *Rep. by the Arbitration Act, 1940 (X of 1940), s. 49 and Third Schedule*

———

THE THIRD SCHEDULE

(See section 69)

EXECUTION OF DECREES BY COLLECTORS

1. Powers of Collector. Where the execution of a decree has been transferred to the Collector under section 68, he may—

(a) proceed as the Court would proceed when the sale of immoveable property is postponed in order to enable the judgment-debtor to raise the amount of the decree ; or

(b) raise the amount of the decree by letting in perpetuity, or for a term on payment of a premium, or by mortgaging, the whole or any part of the property ordered to be sold ; or

(c) sell the property ordered to be sold or so much thereof as may be necessary.

2. Procedure of Collector in special cases. Where the execution of a decree, not being a decree ordering the sale of immoveable property in pursuance of a contract specifically affecting the same, but being a decree for the payment of money in satisfaction of which the Court has ordered the sale of immoveable property, has been so transferred, the Collector, if, after such inquiry as he thinks necessary, he has reason to believe that all the liabilities of the judgment-debtor can be discharged without a sale of the whole of his available immoveable property, may proceed as hereinafter provided.

3. Notice to be given to decree holders and to persons having claims on property.— (1) In any such case as is referred to in paragraph 2, the Collector shall publish a notice, allowing a period of sixty days from the date of its publication for compliance and calling upon—

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(a) every person holding a decree for the payment of money against the judgment-debtor capable of execution by sale of his immoveable property and which such decree holder desires to have so executed, and every holder of a decree for the payment of money in execution of which proceedings for the sale of such property are pending, to produce before the Collector a copy of the decree, and a certificate from the Court which passed or is executing the same, declaring the amount recoverable thereunder ;

(b) every person having any claim on the said property to submit to the Collector a statement of such claim, and to produce the documents (if any) by which it is evidenced.

(2) Such notice shall be published by being affixed on a conspicuous part of the Court-house of the Court which made the original order for sale, and in such other places (if any) as the Collector thinks fit ; and where the address of any such decree-holder or claimant is known, a copy of the notice shall be sent to him by post or otherwise.

4. Amount of decrees for payment of money to be ascertained, and immoveable property available for their satisfaction.— (1) Upon the expiration of the said period, the Collector shall appoint a day for hearing any representations which the judgment-debtor and the decree-holders or claimants (if any) may desire to make, and for holding such inquiry as he may deem necessary for informing himself as to the nature and extent of such decrees and claims and of the judgment-debtor's immoveable property, and may, from time to time, adjourn such hearing and inquiry.

(2) Where there is no dispute as to the fact or extent of the liability of the judgment-debtor to any of the decrees or claims of which the Collector is informed, or as to the relative priorities of such decrees or claims, or as to the liability of any such property for the satisfaction of such decrees or claims, the Collector shall draw up a statement, specifying the amount to be recovered for the discharge of such decrees, the order in which such decrees and claims are to be satisfied, and the immoveable property available for that purpose.

(3) Where any such dispute arises, the Collector shall refer the same, with a statement thereof and his own opinion thereon, to the Court which made the original order for sale, and shall, pending the reference, stay proceedings relating to the subject thereof. The Court shall dispose of the dispute if the matter thereof is within its jurisdiction, or transmit the case to a competent Court for disposal, and the final decision shall be communicated to the Collector, who shall then draw up a statement as above provided in accordance with such decision.

5. Where District Court may issue notices and hold inquiry. The Collector may, instead of himself issuing the notices and holding the inquiry required by paragraphs 3 and 4, draw up a statement specifying the circumstances of the judgment-debtor and of his immoveable property so far as they are known to the Collector or appear in the records of his office, and forward such statement to the District Court ; and such Court shall thereupon issue the notices, hold the inquiry and draw up the statement required by paragraphs 3 and 4 and transmit such statement to the Collector.

6. Effect of decision of Court as to dispute. The decision by the Court of any dispute arising under paragraph 4 or paragraph 5 shall, as between the parties thereto, have the force of and be appealable as a decree.

7. Scheme for liquidation of decrees for payment of money.— (1) Where the amount to be recovered and the property available have been determined as provided in paragraph 4 or paragraph 5, the Collector may,—

THE PAKISTAN CODE

(a) if it appears that the amount cannot be recovered without the sale of the whole of the property available, proceed to sell such property ; or

(b) if it appears that the amount with interest (if any) in accordance with the decree, and, when not decreed, with interest (if any) at such rate as he thinks reasonable, may be recovered without such sale, raise such amount and interest (notwithstanding the original order for sale)—

(i) by letting in perpetuity or for a term, on payment of a premium, the whole or any part of the said property ; or

(ii) by mortgaging the whole or any part of such property ; or

(iii) by selling part of such property ; or

(iv) by letting on farm, or managing by himself or another, the whole or any part of such property for any term not exceeding twenty years from the date of the order of sale ; or

(v) partly by one of such modes, and partly by another or others of such modes.

(2) For the purpose of managing the whole or any part of such property, the Collector may exercise all the powers of its owner.

(3) For the purpose of improving the saleable value of the property available or any part thereof, or rendering it more suitable for letting or managing, or for preserving the property from sale in satisfaction of an incumbrance, the Collector may discharge the claim of any incumbrancer which has become payable or compound the claim of any incumbrancer whether it has become payable or not, and, for the purpose of providing funds to effect such discharge or composition, may mortgage, let or sell any portion of the property which he deems sufficient. If any dispute arises as to the amount due on any incumbrance with which the Collector proposes to deal under this clause, he may institute a suit in the proper Court, either in his own name or the name of the judgment-debtor, to have an account taken, or he may agree to refer such dispute to the decision of two arbitrators, one to be chosen by each party, or of an umpire to be named by such arbitrators.

(4) In proceeding under this paragraph the Collector shall be subject to such rules consistent with this Act as may, from time to time, be made in this behalf by the [1][Provincial Government.]

8. Recovery of balance (if any) after letting or management. Where, on the expiration of the letting or management under paragraph 7, the amount to be recovered has not been realized, the Collector shall notify the fact in writing to the judgment-debtor or his representative in interest, stating at the same time that, if the balance necessary to make up the said amount is not paid to the Collector within six weeks from the date of such notice, he will proceed to sell the whole or a sufficient part of the said property ; and, if on the expiration of the said six weeks the said balance is not so paid, the Collector shall sell such property or part accordingly.

9. Collector to render accounts to Court.—(1) The Collector shall, from time to time, render to the Court which made the original order for sale an account of all monies which come to his hands and of all charges incurred by him in the exercise and performance of the powers and duties conferred and imposed on him under the provisions of this schedule, and shall hold the balance at the disposal of the Court.

(2) Such charges shall include all debts and liabilities from time to time due to [2][the Government] in respect of the property or any part thereof, the rent (if any) from time to time due to a superior holder in respect of such property or part, and, if the Collector so directs, the expenses of any witnesses summoned by him.

[1]Subs. by A.O., 1937.
[2]The original words "the Government" were first subs. by A.O., 1937, and then amended by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), to read as above.

(3) The balance shall be applied by the Court—

(a) in providing for the maintenance of such members of the judgment-debtor's family (if any) as are entitled to be maintained out of the income of the property, to such amount in the case of each member as the Court thinks fit ; and

(b) where the Collector has proceeded under paragraph 1, in satisfaction of the original decree in execution of which the Court ordered the sale of immoveable property, or otherwise as the Court may under section 73 direct ; or

(c) where the Collector has proceeded under paragraph 2,—

(i) in keeping down the interest on incumbrances on the property;

(ii) where the judgment-debtor has no other sufficient means of subsistence, in providing for his subsistence to such amount as the Court thinks fit ; and

(iii) in discharging rateably the claims of the original decree-holder and any other decree- holders who have complied with the said notice, and whose claims were included in the amount ordered to be recovered.

(4) No other holder of a decree for the payment of money shall be entitled to be paid out of such property or balance until the decree-holders who have obtained such order have been satisfied, and the residue (if any) shall be paid to the judgment-debtor or such other person as the Court directs.

10. Sales how to be conducted. Where the Collector sells any property under this schedule, he shall put it up to public auction in one or more lots, as he thinks fit, and may—

(a) fix a reasonable reserved price for each lot;

(b) adjourn the sale for a reasonable time whenever, for reasons to be recorded, he deems the adjournment necessary for the purpose of obtaining a fair price for the property ;

(c) buy in the property offered for sale, and re-sell the same by public auction or private contract, as he thinks fit.

11. Restrictions as to alienation by judgment debtor or his representative, and Prosecution of remedies by decree-holders.— (1) So long as the Collector can exercise or perform in respect of the judgment-debtor's immoveable property, or any part thereof, any of the powers or duties conferred or imposed on him by paragraphs 1 to 10, the judgment-debtor or his representative in interest shall be incompetent to mortgage, charge, lease or alienate such property or part except with the written permission of the Collector, nor shall any Civil Court issue any process against such property or part in execution of a decree for the payment of money.

(2) During the same period no Civil Court shall issue any process of execution either against the judgment-debtor or his property in respect of any decree for the satisfaction whereof provision has been made by the Collector under paragraph 7.

(3) The same period shall be excluded in calculating the period of limitation applicable to the execution of any decree affected by the provisions of this paragraph in respect of any remedy of which the decree-holder has been temporarily deprived

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12. Provision where property is in several districts. Where the property of which the sale has been ordered is situate in more districts than one, the powers and duties conferred and imposed on the Collector by paragraphs 1 to 10 shall be exercised and performed by such one of the Collectors of the said districts as the [1][Provincial Government] may by general rule or special order direct.

13. Powers of Collector to compel attendance and production. In exercising the powers conferred on him by paragraphs 1 to 10 the Collector shall have the powers of a Civil Court to compel the attendance of parties and witnesses and the production of documents.

THE FOURTH SCHEDULE.—[*Enactments amended.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Second Schedule.*

THE FIFTH SCHEDULE.—[*Enactments repealed.*] *Rep. by the Second Repealing and Amending Act, 1914 (XVII of 1914), s. 3 and Second Schedule.*

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Date: 10-09-2024

[1]subs. by A.O., 1937.

THE CONCILIATION COURTS ORDINANCE, 1961

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PART I

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THE CONCILIATION COURTS ORDINANCE, 1961.

[1]ORDINANCE NO. XLIV OF 1961

[*28th November, 1961*]

An Ordinance to make provision for the establishment of Conciliation Courts.

WHEREAS it is expedient to make provision for the establishment of Conciliation Courts to enable people to settle certain disputes through conciliation, and for matters connected therewith;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Conciliation Courts Ordinance, 1961.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such date[2] as the [3][Federal Government] may, by notification in the Official Gazette, appoint in this behalf.

2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "cognizable offence" means a cognizable offence as defined in section 4 of the Code of Criminal Procedure, 1898 (**Act V of 1898**);

(b) "Conciliation Court" means a Conciliation Court constituted under this Ordinance;

[4][(c) "Controlling Authority" means [5][an officer appointed by Government to be the Controlling Authority for purposes of this Ordinance.]

(it extends only to the Islamabad Capital Territory)

(c) "Controlling Authority" means [Sessions Judge].

(d) "decree" means a decree as defined in section 2 of the Code of Civil Procedure, 1908 (**Act V of 1908**) ;

(e) "District Judge" shall include an Additional District Judge, a Subordinate Judge and a Civil Judge ;

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[1]The Ordinance has been amended in its application to the Province of West Pakistan by West Pakistan Act 13 of 1963, s. 2 (with from the 15th July, 1963); and by West Pakistan Ordinance XI of 1966, ss. 3, 15 and 16 (with effect from the 4th April, 1966).
The Ordinance has been extended to the Tribal Areas of Quetta Division by West Pakistan Regulation No. I of 1964, s.2 (with effect from the 25th August,1964).
This Ordinance has been repealed in its application to the Province of Punjab, by Punjab Act No. XXXIV of 1975, s. 233.
This Ordinance has been amended to the extent of Islamabad Capital Territory, see Ordinance No. XXVII of 1981, s. 5 and 4th Sch.
[2]The 1st day of March, 1962, see Gaz. of P., 1962, Ext., p. 234c.
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[4]Subs. ibid., Art. 2 and Sch., for cl. (c).
[5]Subs. by the Conciliation Courts (Amdt.) Ordinance, 1982 (18 of 1982), s. 2, for "the Deputy Commissioner".

(f) "Government" in relation to any local area in a Province, means the Provincial Government, and in relation to Cantonments, the [1][Federal Government] ;

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(f) "Government", in relation to any local area in a Province, means the Provincial Government, and in relation to Cantonments [and the Islamabad Capital Territory,] the Federal Government.

[2][(ff) "law relating to local government" means the Punjab Local Government Ordinance, 1979 (Punjab Ordinance No. VI of 1979), the Sind Local Government Ordinance, 1979 (Sind Ordinance No. XII of 1979), the North-West Frontier Province Local Government Ordinance, 1979 (N.W.F.P. Ordinance No. IV of 1979), the Baluchistan Local Government Ordinance, 1980 (Baluchistan Ordinance No. II of 1980), the Capital Territory Local Government Ordinance, 1979 (XXXIX of 1979), or, as the case may be, the Cantonments Act, 1924 (II of 1924) ;]

(g) "party" shall include any person whose presence as such is considered necessary for a proper decision of the dispute and whom the Conciliation Court adds as a party to such dispute ;

[3][(h) "prescribed" means prescribed by rules made under this Ordinance ;

(i) "Union Council" means a Union Council constituted under a law relating to local government and, except in the Schedule, includes a Town Committee so constituted;

(ii) "ward" means a ward, an electoral unit or an electoral ward of a city, municipality or cantonment constituted under a law relating to local government.]

3. Cases referable to conciliation.—(1) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), or in the Code of Civil Procedure, 1908 (Act V of 1908),—

(a) all cases falling under Part I of the Schedule shall, save as otherwise provided, hereinafter be referred to conciliation under this Ordinance, and no civil or criminal court shall have jurisdiction to try any such case ; and

(b) any of the cases falling under Part II of the Schedule may be so referred if all the parties thereto agree to such a reference.

(2) The following cases relating to matters falling under Section B of Part I of the Schedule or under Section B of Part II thereof shall be excluded from conciliation, namely:—

(a) cases in which the interest of a minor is involved;

(b) cases where provision for arbitration has been made in a contract between the parties ;

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Cl. (ff) ins. ibid.
[3]Subs. by the Conciliation Courts (Amdt.) Ordinance, 1982. (18 of 1982) s. 2 for cls (h) and (i).

(c) cases by or against the [1][Federal] or a Provincial Government or a public corporation or a public servant acting in the discharge of his duty ;

(d) cases which according to the customary law of a community are referable to a community *panchayat*.

[2][(3) Government may, by notification in the official Gazette, amend the Schedule so as to—

(a) add thereto any class of cases relating to such disputes between private parties as are of a local nature and are capable of settlement by compromise ;

(b) omit any entry therefrom ; or

(c) alter or modify any entry therein.]

(4) Nothing in this section shall apply to cases relating to an offence specified in the Schedule if the accused had previously been convicted of a cognizable offence.

4. Application for constitution of a Conciliation Court.—(1) Where a case is, under this Ordinance, referable to conciliation, any party to the dispute may, in the prescribed manner, and on payment of the prescribed fee, apply to the Chairman of the Union Council concerned [3][or, as the case may be, to the member representing the ward or, in the case of a ward which has more members than one, to such one of them as may be determined in the prescribed manner;] for the constitution of a Conciliation Court for the settlement of the disputes, and unless the Chairman [3][or, as the case may be, the member], for reasons to be recorded in writing, rejects the application, he shall proceed to constitute, in the prescribed manner, a Conciliation Court for the purpose:

Provided that no application under this section shall be made against a person of unsound mind.

(2) Any person aggrieved by an order of rejection under sub-section (1) may, on the ground that the order is *mala fide* or substantially unjust, prefer, in the prescribed manner and within the prescribed time, an application for revision to the Controlling Authority, or to such other authority as may be prescribed.

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(2) Any person aggrieved by an order of rejection under sub-section (1) may, on the ground that the order is *mala fide* or substantially unjust, prefer, in the prescribed manner and within the prescribed time, an application for revision to the controlling Authority or to such other authority as may be prescribed [if the case relates to a matter falling under Section A of Part I of the Schedule or to the District Judge, if the case relates to a matter falling under Section B thereof].

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central".
[2]Subs. by the Ord (18 of 1982) s. 3, for sub-section (3).
[3]Ins by the Conciliation Courts (Amdt.) Ordinance, 1982 (18 of 1982) s. 4.

5. Conciliation Courts, their composition, etc.—(1) A Conciliation Court shall be a body consisting of a Chairman and two representatives to be nominated, in the prescribed manner; by each of the parties to the dispute[.][1]

[2]* * * * * * *

(2) The Chairman of the Union Council [3][or, as the case may be, the member representing the ward, or, in the case of a ward which has more members than one, such one of them as may be determined in the prescribed manner,] shall be the Chairman of the Conciliation Court, but where he is, owing to illness or any other cause, unable to act as Chairman, or does not, on account of any personal consideration, wish to do so, or his impartiality is challenged by any party to the dispute, any other person appointed in the prescribed manner, not being a person nominated by any party, shall be the Chairman of the Court.

(3) If either party to the dispute consists of more than one person, the Chairman shall call upon the persons constituting that party to nominate the two representatives on its behalf, and if they fail so to nominate, shall authorize any one of such persons to do so, and thereupon the person so authorized shall alone have the right to nominate such representatives.

(4) Where representatives required under this section to be nominated are not nominated within the prescribed time, then,—

(a) if the case falls under Part I of the Schedule, the Conciliation Court shall, without such representatives, be deemed to have been validly constituted for the purposes of this Ordinance, and conciliation shall proceed accordingly; and

(b) if the case falls under Part II of the Schedule, the [4][Court] shall issue a certificate that conciliation has failed.

6. Jurisdiction of Conciliation Courts, etc.—(1) Subject to the provision of sub-section (2), a Conciliation Court shall be constituted and shall have jurisdiction to try a case only when the parties to the dispute ordinarily reside within the [5][jurisdiction of the same Union Council] in which the offence has been committed or the cause of action has arisen.

[6][(2) Where one of the parties to a dispute ordinarily resides, and the offence has been committed or the cause of action has arisen, in one ward of a city, municipality or cantonment, and the other party ordinarily resides in another ward of the same city, municipality or cantonment, then, a Conciliation Court may be constituted in the ward in which the offence has been committed or, as the case may be, the cause of action has arisen.]

[1]Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch. for colon.
[2]Proviso omitted ibid.
[3]Ins. by Ord.18 of 1982, s. 5.
[4]Subs. by the Conciliation Courts (Amdt.) Ordinance, 1982 (18 of 1982), s. 5, for "Chairman".
[5]Subs. ibid., s. 6, for "limits of the Union".
[6]Subs. ibid., for sub-section (2).

7. Power of Conciliation courts to wards compensation.—(1) Save as otherwise provided in this Ordinance, a Conciliation Court shall have no power to pass a sentence of imprisonment or fine, but if it holds a person guilty of an offence specified in the Schedule, it may order the accused to pay to the aggrieved person compensation the amount of which may not exceed [1][five hundred] rupees, but if the offence is one punishable under section 428 or section 429 of the Pakistan Penal Code (Act XLV of 1860), the amount of compensation may exceed [1][five hundred] rupees but not [2][one thousand] rupees.

(2) In a case relating to a matter falling under Section B of Part I of the Schedule or under Section B of Part II thereof, the Conciliation Court shall have the power to order payment of money up to the amount specified therein in respect of such matter or delivery of property to the person entitled thereto.

8. Finality of the decisions of Conciliation Courts.—

[3]* * * * * * *

(2) [4][Any party may, within thirty days of the decision of a Conciliation Court], apply, in the prescribed manner,—

(a) to the Controlling Authority, if the case relates to a matter falling under Section A of that Part, or (it extends only to the Islamabad Capital Territory)

(a) to the Controlling Authority, if the case relates to a matter falling under [Section A of Part I of the Schedule].

(b) to the District Judge, if the case relates to a matter falling under Section B thereof, and the Controlling Authority or the District Judge, as the case may be, if satisfied that there has been a failure of justice, may set aside or modify the decision, or direct that the dispute be referred back to the Conciliation Court for reconsideration.

(3) If the decision of Conciliation Court is not unanimous, and the case falls under Part II of the Schedule, the Court shall issue a certificate that conciliation has failed.

(4) Notwithstanding anything in any law any matter decided by a Conciliation Court in accordance with the provisions of this Ordinance shall not be tried in any Court, including a Conciliation Court.

9. Enforcement of decree.—(1) Where a Conciliation Court decides to award compensation to a person or to order the delivery of property, it shall pass a decree in such form and in such manner as may be prescribed, and shall enter the particulars thereof in the prescribed register.

[1]Subs. ibid s. 7, for "two hundred and fifty".
[2]Subs. ibid., for "five hundred".
[3]Sub-section (1) omitted by the Law Reforms Ordinance, 1972 (12 of 1972), s. 2 and Sch.,
[4]Subs. ibid., for certain words.

(2) If any money is paid or any property is delivered in the presence of the Conciliation Court in satisfaction of the decree, it shall enter the fact of payment or delivery, as the case may be, in the aforesaid register.

(3) Where a decree relates to payment of compensation and the decretal amount is not paid within the prescribed time, the same shall, if the Chairman of the Conciliation Court so directs, be recovered as arrears of land revenue, and, on recovery, shall be paid to the decree holder.

(4) Where the satisfaction of a decree can be had otherwise than by payment of compansation, the decree may be presented for execution to such civil Court as the District Judge may, by special or general order, direct, and such court shall thereupon proceed to execute the decree as if it were a decree passed by itself.

(5) A Conciliation Court may, if it thinks fit, direct that the amount of compensation be paid in such instalments as it may fix.

10. Procedure on failure of conciliation. Where a certificate is issued that conciliation has failed, either under clause (b) of sub-section (4) of section 5 or under sub-section (3) of section 8, any party to the dispute may seek its remedy in the court in which it would in law be entitled to seek such remedy if this Ordinance had not been promulgated.

11. Power of Conciliation Courts to summon witnesses, etc.—(1) A Conciliation Court may issue summons to any person to appear and give evidence, or to produce or cause the production of any document:

Provided that—

(a) no person who is exempt from personal appearance in Court under sub-section (1) of section 133 of the Code of Civil Procedure, 1908 (Act V of 1908), shall be required to appear in person ;

(b) a Conciliation Court may refuse to summon a witness or to enforce a summons already issued against a witness when in the opinion of the Court the attendance of the witness cannot be procured without such delay, expense or inconvenience as in the circumstances would be unreasonable ;

(c) a Conciliation Court shall not require any person living beyond its jurisdiction to give evidence or to produce or cause the production of a document unless such sum of money is deposited for payment to him as the Court would think sufficient for defraying his travelling and other expenses.

(2) If any person to whom a Conciliation Court has issued summons to appear and give evidence or to produce or cause the production of any document before it wilfully disobeys such summons, the Conciliation Court may take cognizance of such disobedience, and, after giving such person an opportunity to explain, sentence him to a fine not exceeding twenty-five rupees.

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12. Contempt of Conciliation Courts. A person shall be guilty of contempt of a Conciliation Court if he, without lawful excuse, —

(a) offers any insult to the Conciliation Court or any member thereof while the Court is functioning as such ; or

(b) causes any interruption in the work of the Conciliation Court ; or

(c) fails to produce or deliver a document when ordered by the Conciliation Court to do so ; or

(d) refuses to answer any question of the Conciliation Court which he is bound to answer; or

(e) refuses to take oath to state the truth or to sign any statement made by him when required by the Conciliation Court to do so ; and the Conciliation Court may, without any complaint having been made to it, forthwith try such person for such contempt and sentence him to a fine not exceeding fifty rupees.

13. Recovery of fine.—(1) Where a Conciliation Court imposes a fine under section 11 or section 12 and such fine is not immediately paid, it shall record an order stating the amount of fine imposed and the fact that it has not been paid, and shall forward the same to the nearest Judicial Magistrate who shall proceed to recover it in accordance with the provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), as if it were a fine imposed by himself, and such Magistrate may also sentence the accused to imprisonment in default of payment of such fine.

(2) All fines paid to a Conciliation Court under sections 11 and 12, or collected on behalf of a Conciliation Court under this section, shall form part of the funds of the 1[local council] concerned.

[2][*Explanation*.—In this sub-section, "local council" means a Union Council, Town Committee, Municipal Corporation, Municipal Committee, Metropolitan Corporation or, as the case may be, Cantonment Board constituted under a law relating to local government.]

14. Limitation, etc., in certain cases. Where a case relating to a matter falling under Section B of Part II of the Schedule is referred to conciliation and conciliation fails, and the case is subsequently taken to a Civil Court, in computing the period of limitation prescribed therefore by or under any law for the time being in force, the time spent on conciliation proceedings, commencing from the date of the application made under section 4 and ending on the day the certificate of failure of conciliation is issued, shall, notwithstanding anything in the Limitation Act, 1908 (IX of 1908), be excluded.

15. Procedure.—(1) Save as otherwise expressly provided by or under this Ordinance, the provisions of the Evidence Act, 1892 (I of 1892), the Code of Criminal Procedure, 1898 (Act V of 1898), and of the Code of Civil Procedure, 1908 (Act V of 1908), shall not apply to proceedings before any Conciliation Court.

(2) Sections 8 to 11 of the Oaths Act, 1873 (X of 1873), shall apply to all proceedings before Conciliation Courts.

[1]Subs. by the Conciliation Courts (Amdt.) Ordinance, 1982 (18 of 1982), s. 8, for "Union Council".
[2]Explanation added ibid.

16. No appearance through counsel.—(1) Notwithstanding anything contained in the Legal Practitioners Act, 1873 (XVIII of 1879), no legal practitioner shall be permitted to appear on behalf of any party to a dispute before any Conciliation Court or before any Controlling Authority or other authority exercising powers under this Ordinance.

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16. [No appearance through Counsel.]— (1) Notwithstanding anything contained in the [Legal Practitioners and Bar Councils Act, 1973 (XXXV of 1979), no legal practitioner shall be permitted to appear on behalf of any party to a dispute before any Conciliation Courts or before any Controlling Authority or other authority exercising powers under this Ordinance.

(2) If a person required under this Ordinance to appear before a Conciliation Court is a *purdanashin* lady, the Conciliation Court may permit her to be represented by a duly authorized agent who shall in no case be a paid agent.

17. Transfer of certain cases.—(1) Where the Controlling Authority is of the opinion that the circumstances of a case relating to a matter falling under Section A of Part I of the Schedule or under Section A of Part II thereof and pending before a Conciliation Court are such that the public interest and the ends of justice demand its trial in a Criminal Court, the said Authority may, notwithstanding anything contained in this Ordinance, withdraw the same from the Conciliation Court and direct that it be referred to the Criminal Court for trial and disposal.

(2) A Conciliation Court may, if it is of the opinion that in a case relating to a matter as aforesaid and pending before it the ends of justice demand a punishment for the accused, forward the case to the Criminal Court for trial and disposal.

18. Investigation by police. Nothing in this Ordinance shall prevent the police from investigating a cognizable case by reason of the fact that the case relates to an offence specified in Section A of Part I of the Schedule, but if any such case is taken to a criminal Court such Court may, if it thinks fit, direct that it be referred to conciliation under this Ordinance.

19. Pending cases. This Ordinance shall not apply to cases referable under this Ordinance to conciliation which, immediately before the coming into force of this Ordinance, are pending in any civil or criminal Court, and such cases shall be disposed of by those Courts as if this Ordinance had not been promulgated:

Provided that if all the parties to any such case agree to have the same decided by a Conciliation Court, the proceedings thereof shall terminate, and the case shall be referred to conciliation in accordance with the provisions of this Ordinance.

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19. [Pending Cases.] shall be omitted.

20. Power to exempt. Government may, by notification in the official Gazette, exempt any area or areas, or any case or class of cases, or any community from the operation of all or any of the provisions of this Ordinance.

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21. Power to make rules. Government may, by notification in the Official Gazette, make rules to carry into effect the provisions of this Ordinance.

SCHEDULE

PART I

Section A— Criminal cases

(1) Sections 143 and 147 of the Pakistan Penal Code (Act XLV of 1860), read with the Third or the Fourth clause of section 141 of that Code, when the common object of the unlawful assembly is to commit an offence under section 323, or 426 or 447 of that Code, and when not more than ten persons are involved in the unlawful assembly.

(2) Sections 160, 323, 334, 341, 342, 352, 358, 426, 447, 504, 506 (first part), 508, 509 and 510, Pakistan Penal Code.

(3) Sections 403, 406, 417 and 420, Pakistan Penal Code, when the amount in respect of which the offence is committed does not exceed one hundred rupees.

(4) Section 427, Pakistan Penal Code, when the value of the property involved does not exceed one hundred rupees.

(5) Sections 428 and 429, Pakistan Penal Code, when the value of the animal does not exceed one hundred rupees.

(6) Sections 24, 26 and 27 of the Cattle-trespass Act, 1871 (I of 1871).

(7) Attempts to commit or the abetment of the commission of any of the above offences.

Section B— Civil cases

1. Suit for the recovery of money due on contracts, receipts or other documents.
2. Suit for the recovery of movable property, or for the value thereof.
— In the case of Union Councils,
— when the amount claimed, or the
— price of movable property, does
— not exceed 1[one thousand] rupees
— ; and
3. Suit for compensation for wrongfully taking or damaging movable property.
4. Suit for damages by cattle trespass.
— In the case of [2][Town Committees,
— Municipal Corporations, Municipal Committees, — Metropolitan Corporations and
— Cantonment Boards] when the amount claimed, — or the price of movable property, does — not exceed 3[ten thousand] rupees.

[1]Subs. by the Conciliation Courts (Amdt.) Ordinance, 1982 (18 of 1982), s. 9, for "five hundred".
[2]Subs. ibid., for "Union and Town Committees".
[3]Subs. ibid., for "one thousand".

PART II

Section A— Criminal cases

(1) Sections 324, 343, 355, 357, 427, 430, 448, 461, 498, 500, 501 and 502, Pakistan Penal Code (**Act XLV of 1860**).

(2) Section 379, Pakistan Penal Code, when the value of the property involved does not exceed two hundred and fifty rupees.

(3) Sections 380 and 381, Pakistan Penal Code, when the value of the property involved does not exceed one hundred rupees.

(4) Sections 403, 406, 417 and 420, Pakistan Penal Code, when the amount in respect of which the offence is committed exceeds one hundred rupees, but does not exceed two hundred and fifty rupees.

(5) Section 408, Pakistan Penal Code, when the value of the property involved does not exceed one hundred rupees.

(6) Section 411, Pakistan Penal Code, when the value of the property involved does not exceed two hundred and fifty rupees.

(7) Sections 428 and 429, Pakistan Penal Code, when the value of the animal exceeds one hundred rupees but does not exceed five hundred rupees.

(8) Section 451, Pakistan Penal Code, when the offence is committed with the intention of committing any of the offences mentioned in Section A of Part I of this Schedule or in this section.

(9) Attempts to commit or the abetment of the commission of any of the above offences.

Section B— Civil cases

All civil cases (excepting those mentioned in Section B of Part I of this Schedule), in which the value of the claim does not exceed [1][twenty-five thousand] rupees.

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[1]*Subs. by the Conciliation Courts (Amdt.) Ordinance, 1982 (18 of 1982), s. 9, for "ten thousand".*

THE CONTRACT ACT, 1872

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THE CONTRACT ACT, 1872

ACT NO. IX OF 1872

[25th *April*, 1872]

Preamble: WHEREAS it is expedient to define and amend certain parts of the law relating to contracts; It is hereby enacted as follows:—

PRELIMINARY

1. Short title. This Act may be called the [1][*] Contract Act, 1872.

Extent and Commencement. It extends to [2][the whole of Pakistan]; and it shall come into force on the first day of September, 1872.

Enactments repealed. [3][* * *] Nothing herein contained shall affect the provisions of any Statute, Act or Regulation not hereby expressly repealed, nor any usage or custom of trade, nor any incident of any contract, not inconsistent with the provisions of this Act.

2. Interpretation clause. In this Act the following words and expressions are used in the following senses, unless a contrary intention appears from the context :—

(a) When one person signifies to another his willingness to do or to abstain from doing anything, with a view to obtaining the assent of that other to such act or abstinence, he is said to make a proposal:

(b) When the person to whom the proposal is made signifies his assent thereto, the proposal is said to be accepted. A proposal, when accepted becomes a promise:

(c) The person making the proposal is called the "promisor," and the person accepting the proposal is called the "promisee":

(d) When, at the desire of the promisor, the promisee or any other person has done or abstained from doing, or does or abstains from doing, or promises to do or to abstain from doing, something, such act or abstinence or promise is called a consideration for the promise:

(e) Every promise and every set of promises, forming the consideration for each other, is an agreement:

(f) Promises which form the consideration or part of the consideration for each other are called reciprocal promises:

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[1]Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 & Sch..
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955).
[3]Rep. by the Repealing and Amending Act, 1914 (X of 1914), s. 3 and 2nd Sch.

(g) An agreement not enforceable by law is said to be void:

(h) An agreement enforceable by law is a contract:

(i) An agreement which is enforceable by law at the option of one or more of the parties thereto, but not at the option of the other or others, is a voidable contract:

(j) A contract which ceases to be enforceable by law becomes void when it ceases to be enforceable.

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CHAPTER I
OF THE COMMUNICATION, ACCEPTANCE AND REVOCATION OF PROPOSALS

3. Communication, acceptance and revocation of proposals. The communication of proposals, the acceptance of proposals, and the revocation of proposals and acceptances, respectively, are deemed to be made by any act or omission of the party proposing, accepting or revoking by which he intends to communicate such proposal, acceptance or revocation, or which has the effect of communicating it.

4. Communication when complete. The communication of a proposal is complete when it comes to the knowledge of the person to whom it is made.

The communication of an acceptance is complete,—

has against the proposer, when it is put in a course of transmission to him, so as to be out of the power of the acceptor;

as against the acceptor, when it comes to the knowledge of the proposer.

The communication of a revocation is complete,—

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as against the person who makes it, when it is put into a course of transmission to the person to whom it is made, so as to be out of the power of the person who makes it;

as against the person to whom it is made, when it comes to his knowledge.

Illustrations

(a) A proposes, by letter, to sell a house to B at a certain price.

The communication of the proposal is complete when B receives the letter.

(b) B accepts A's proposal by a letter sent by post.

The communication of the acceptance is complete,—

as against A, when the letter is posted ;

as against B, when the letter is received by A.

(c) A revokes his proposal by telegram.

The revocation is complete as against A when the telegram is despatched. It is complete as against B when B receives it.

B revokes his acceptance by telegram. B's revocation is complete as against B when the telegram is despatched, and as against A when it reaches him.

5. Revocation of proposals and acceptances. A proposal may be revoked at any time before the communication of its acceptance is complete as against the proposer, but not afterwards.

An acceptance may be revoked at any time before the communication of the acceptance is complete as against the acceptor, but not afterwards.

Illustrations

A proposes, by a letter sent by post, to sell his house to B.
B accepts the proposal by a letter sent by post.
A may revoke his proposal at any time before or at the moment when B posts his letter of acceptance, but not afterwards.

B may revoke his acceptance at any time before or at the moment when the letter communicating it reaches A, but not afterwards.

6. Revocation how made. A proposal is revoked—

(1) by the communication of notice of revocation by the proposer to the other party ;

(2) by the lapse of the time prescribed in such proposal for its acceptance, or, if no time is so prescribed, by the lapse of a reasonable time, without communication of the acceptance ;

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(3) by the failure of the acceptor to fulfill a condition precedent to acceptance; or

(4) by the death or insanity of the proposer, if the fact of his death or insanity comes to the knowledge of the acceptor before acceptance.

7. Acceptance must be absolute. In order to convert a proposal into a promise, the acceptance must—

(1) be absolute and unqualified ;

(2) be expressed in some usual and reasonable manner, unless the proposal prescribes the manner in which it is to be accepted. If the proposal prescribes a manner in which it is to be accepted, and the acceptance is not made in such manner, the proposer may, within a reasonable time after the acceptance is communicated to him, insist that his proposal shall be accepted in the prescribed manner, and not otherwise; but if he fails to do so, he accepts the acceptance.

8. Acceptance by performing, conditions, or receiving consideration. Performance of the conditions of a proposal, or the acceptance of any consideration for a reciprocal promise which may be offered with a proposal, is an acceptance of the proposal.

9. Promises, express and implied. In so far as the proposal or acceptance of any promise is made in words, the promise is said to be express. In so far as such proposal or acceptance is made otherwise than in words, the promise is said to be implied.

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CHAPTER II
OF CONTRACTS, VOIDABLE CONTRACTS AND VOID AGREEMENTS

10. What agreements are contracts. All agreements are contracts if they are made by the free consent of parties competent to contract, for a lawful consideration and with a lawful object, and are not hereby expressly declared to be void.

Nothing herein contained shall affect any law in force in [1][Pakistan], and not hereby expressly repealed, by which any contract is required to be made in writing or in the presence of witnesses, or any law relating to the registration of documents.

11. Who are competent to contract. Every person is competent to contract who is of the age of majority according to the law to which he is subject, and who is of sound mind, and is not disqualified from contracting by any law to which he is subject.

12. What is a sound mind for the purposes of contracting. A person is said to be of sound mind for the purpose of making a contract if, at the time when he makes it, he is capable of understanding it and of forming a rational judgment as to its effect upon his interests.

A person who is usually of unsound mind, but occasionally of sound mind, may make a contract when he is of sound mind.

A person who is usually of sound mind, but occasionally of unsound mind, may not make a contract when he is of unsound mind.

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Illustrations

(a) A patient in a lunatic asylum, who is at intervals of sound mind, may contract during those intervals.

(b) A sane man, who is delirious from fever or who is so drunk that he cannot understand the terms of a contract or form a rational judgment as to its effect on his interests, cannot contract whilst such delirium or drunkenness lasts.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955).

13. "Consent" defined. Two or more persons are said to consent when they agree upon the same thing in the same sense.

14. "Free consent" defined. Consent is said to be free when it is not caused by—

(1) coercion, as defined in section 15, or

(2) undue influence, as defined in section 16, or

(3) fraud, as defined in section 17, or

(4) misrepresentation, as defined in section 18, or

(5) mistake, subject to the provisions of sections 20, 21 and 22.

Consent is said to be so caused when it would not have been given but for the existence of such coercion, undue influence, fraud, misrepresentation or mistake.

15. "Coercion" defined. "Coercion" is the committing, or threatening to commit, any act forbidden by the Pakistan Penal Code (XLV of 1860) or the unlawful detaining, or threatening to detain, any property, to the prejudice of any person whatever, with the intention of causing any person to enter into an agreement.

*Explanation***.**—It is immaterial whether the Pakistan Penal Code (XLV of 1860) is or is not in force in the place where the coercion is employed.

Illustration

A, on board an English ship on the high seas, causes B to enter into an agreement by an act amounting to criminal intimidation under the Pakistan of Penal Code (XLV of 1860).

A afterwards sues B for breach of contract at [1][Karachi].

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A has employed coercion, although his act is not an offence by the law of England, and although section 506 of the Pakistan Penal Code was not in force at the time when or place where the act was done.

[2][**16. "Undue influence" defined**.—(1) A contract is said to be induced by "undue influence" where the relations subsisting between the parties are such that one of the parties is in a position to dominate the will of the other and uses that position to obtain an unfair advantage over the other.

(2) In particular and without prejudice to the generality of the foregoing principle, a person is deemed to be in a position to dominate the will of another—

(a) where he holds a real or apparent authority over the other or where he stands in a fiduciary relation to the other: or

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), S. 3 and 2nd Sch.
[2]Subs. by Act No. VI of 1899, s. 2.

(b) where he makes a contract with a person whose mental capacity is temporarily or permanently affected by reason of age, illness, or mental or bodily distress.

(3) Where a person who is in a position to dominate the will of another, enters into a contract with him, and the transaction appears, on the face of it or on the evidence adduced, to be unconscionable, the burden of proving that such contract was not induced by undue influence shall lie upon the person in a position to dominate the will of the other.

Nothing in this sub-section shall affect the provisions of section 111 of the Evidence Act, 1872. (I of 1872).]

Illustrations

(a) A having advanced money to his son, B, during his minority, upon B's coming of age obtains, by misuse of parental influence, a bond from B for a greater amount than the sum due in respect of the advance. A employs undue influence.

(b) A, a man enfeebled by disease or age, is induced, by B's influence over him as his medical attendant, to agree to pay B an unreasonable sum for his professional services. B employs undue influence.

(c) A, being in debt to B, the money-lender of his village, contracts a fresh loan on terms which appear to be unconscionable. It lies on B to prove that the contract was not induced by undue influence.

(d) A applies to a banker for a loan at a time when there is stringency in the money market. The banker declines to make the loan except at an unusually high rate of interest. A accepts the loan on these terms. This is a transaction in the ordinary course of business, and the contract is not induced by undue influence.

17. "Fraud" defined. "Fraud" means and includes any of the following acts committed by a party to a contract, or with his connivance, or by his agent, with intent to deceive another party thereto or his agent, or to induce him to enter into the contract :—

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(1) the suggestion, as a fact, of that which is not true, by one who does not believe it to be true ;

(2) the active concealment of a fact by one having knowledge or belief of the fact;

(3) a promise made without any intention of performing it ;

(4) any other act fitted to deceive ;

(5) any such act or omission as the law specially declares to be fraudulent.

Explanation.—Mere silence as to facts likely to affect the willingness of a person to enter into a contract is not fraud, unless the circumstances of the case are such that, regard being had to them, it is the duty of the person keeping silence to speak, or unless his silence is, in itself, equivalent to speech.

Illustrations

(a) A sells, by auction, to B, a horse which A knows to be unsound. A says nothing to B about the horse's unsoundness. This is not fraud in A.

(b) B is A's daughter and has just come of age. Here, the relation between the parties would make it A's duty to tell B if the horse is unsound.

(c) B says to A—"If you do not deny it, I shall assume that the horse is sound." A says nothing. Here A's silence is equivalent to speech.

(d) A and B, being traders, enter upon a contract. A has private information of a change in prices which would affect B's willingness to proceed with the contract. A is not bound to inform B.

18. "Misrepresentation" defined. "Misrepresentation" means and includes—

(1) the positive assertion, in a manner not warranted by the information of the person making it, of that which is not true, though he believes it to be true ;

(2) any breach of duty which, without an intent to deceive, gains an advantage to the person committing it, or any one claiming under him, by misleading another to his prejudice or to the prejudice of any one claiming under him ;

(3) causing, however innocently, a party to an agreement to make a mistake as to the substance of the thing which is the subject of the agreement.

19. Voidability of agreements without free consent. When consent to an agreement is caused by coercion, [1][* *] fraud or misrepresentation, the agreement is a contract voidable at the option of the party whose consent was so caused.

A party to a contract, whose consent was caused by fraud or misrepresentation, may, if he thinks fit, insist that the contract shall be performed, and that he shall be put in the position in which he would have been if the representations made had been true.

Exception.—If such consent was caused by misrepresentation or by silence, fraudulent within the meaning of section 17, the contract, nevertheless, is not voidable, if the party whose consent was so caused had the means of discovering the truth with ordinary diligence.

Explanation.—A fraud or misrepresentation which did not cause the consent to a contract of the party on whom such fraud was practised, or to whom such misrepresentation was made, does not render a contract voidable.

Illustrations

(a) A, intending to deceive B, falsely represents that five hundred maunds of indigo are made annually at A's factory, and thereby induces B to buy the factory. The contract is voidable at the option of B.

[1]Rep. by Act No. VI of 1899, s. 3.

(b) A, by a misrepresentation, leads B erroneously to believe that five hundred maunds of indigo are made annually at A's factory. B examines the accounts of the factory, which show that only four hundred maunds of indigo have been made. After this B buys the factory. The contract is not voidable on account of A's misrepresentation.

(c) A fraudulently informs B that A's estate is free from incumbrance. B thereupon buys the estate. The estate is subject to a mortgage. B may either avoid the contract, or may insist on its being carried out and the mortgage-debt redeemed.

(d) B, having discovered a vein of ore on the estate of A, adopts means to conceal, and does conceal, the existence of the ore from A. Through A's ignorance B is enabled to buy the estate at an under-value. The contract is voidable at the option of A.

(e) A is entitled to succeed to an estate at the death of B ; B dies : C, having received intelligence of B's death, prevents the intelligence reaching A, and thus induces A to sell him his interest in the estate. The sale is voidable at the option of A.

[1]**[19A. Power to set aside contract induced by undue influence**. When consent to an agreement is caused by undue influence, the agreement is a contract voidable at the option of the party whose consent was so caused.

Any such contract may be set aside either absolutely or, if the party who was entitled to avoid it has received any benefit thereunder, upon such terms and conditions as to the Court may seem just.

Illustrations

(a) A's son has forged B's name to a promissory note. B, under threat of prosecuting A's son, obtains a bond from A for the amount of the forged note. If B sues on this bond, the Court may set the bond aside.

(b) A, a money-lender, advances Rs. 100 to B, an agriculturist, and, by undue influence, induces B to execute a bond for Rs. 200 with interest at 6 per cent. per month. The Court may set the bond aside, ordering B to repay the Rs. 100 with such interest as may seem just.]

20. Agreement void where both parties are under mistake as to matter of fact. Where both the parties to an agreement are under a mistake as to a matter of fact essential to the agreement, the agreement is void.

Explanation.—An erroneous opinion as to the value of the thing which forms the subject-matter of the agreement is not to be deemed a mistake as to a matter of fact.

[1]Ins. by Act No. VI of 1899, s. 3.

Illustrations

(a) A agrees to sell to B a specific cargo of goods supposed to be on its way from England to [1][Karachi]. It turns out that, before the day of the bargain, the ship conveying the cargo had been cast away and the goods lost. Neither party was aware of the facts. The agreement is void.

(b) A agrees to buy from B a certain horse. It turns out that the horse was dead at the time of the bargain, though neither party was aware of the fact. The agreement is void.

(c) A, being entitled to an estate for the life of B, agrees to sell it to C. B was dead at the time of the agreement, but both parties were ignorant of the fact. The agreement is void.

21. Effect of mistakes as to law. A contract is not voidable because it was caused by a mistake as to any law in force in [1][Pakistan]; but a mistake as to a law not in force in [1][Pakistan] has the same effect as a mistake of fact.

[2][* * * * * * *]

Illustration

A and B make a contract grounded on the erroneous belief that a particular debt is barred by the [1][Pakistan] Law of Limitation: the contract is not voidable.

[3][* * * * * * *]

22. Contract caused by mistake of one party as to matter of fact. A contract is not voidable merely because it was caused by one of the parties to it being under a mistake as to a matter of fact.

23. What considerations and objects are lawful and what not. The consideration or object of an agreement is lawful, unless—it is forbidden by law; or

is of such a nature that, if permitted, it would defeat the provisions of any law ; or

is fraudulent ; or

involves or implies injury to the person or property of another; or the Court regards it as immoral, or opposed to public policy.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955).
[2]Omitted by Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Sch.
[3]Rep. by the Repealing and Amending Act, 1917 (XXIV of 1917), s. 3 and 2nd Sch.

In each of these cases, the consideration or object of an agreement is said to be unlawful. Every agreement of which the object or consideration is unlawful is void.

Illustrations

(a) A agrees to sell his house to B for 10,000 rupees. Here B's promise to pay the sum of 10,000 rupees is the consideration for A's promise to sell the house, and A's promise to sell the house is the consideration for B's promise to pay the 10,000 rupees. These are lawful considerations.

(b) A promises to pay B 1,000 rupees at the end of six months; if C, who owes that sum to B, fails to pay it. B promises to grant time to C accordingly. Here the promise of each party is the consideration for the promise of the other party and they are lawful considerations.

(c) A promises, for a certain sum paid to him by B, to make good to B the value of his ship if it is wrecked on a certain voyage. Here A's promise is the consideration for B's payment and B's payment is the consideration for A's promise and these are lawful considerations.

(d) A promises to maintain B's child and B promises to pay A 1,000 rupees yearly for the purpose. Here the promise of each party is the consideration for the promise of the other party. They are lawful considerations.

(e) A, B and C enter into an agreement for the division among them of gains acquired, or to be acquired, by them by fraud. The agreement is void as its object is unlawful.

(f) A promises to obtain for B an employment in the public service, and B promises to pay 1,000 rupees to A. The agreement is void, as the consideration for it is unlawful.

(g) A, being agent for a landed proprietor, agrees for money, without the knowledge of his principal, to obtain for B a lease of land belonging to his principal. The agreement between A and B is void, as it implies a fraud by concealment by A, on his principal.

(h) A promises B to drop a prosecution which he has instituted against B for robbery, and B promises to restore the value of the things taken. The agreement is void, as its object is unlawful.

(i) A's estate is sold for arrears of revenue under the provisions of an Act of the Legislature, by which the defaulter is prohibited from purchasing the estate. B, upon an understanding with A, becomes the purchaser, and agrees to convey the estate to A upon receiving from him the price which B has paid. The agreement is void, as it renders the transaction, in effect, a purchase by the defaulter, and would so defeat the object of the law.

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(j) A, who is B's mukhtar, promises to exercise his influence, as such, with B in favour of C, and C promises to pay 1,000 rupees to A. The agreement is void, because it is immoral.

(k) A agrees to let her daughter to hire to B for concubinage. The agreement is void, because it is immoral, though the letting may not be punishable under the Pakistan Penal Code (XLV of 1860).

Viod Agreements

24. Agreements void, if considerations and objects unlawful in part. If any part of a single consideration for one or more objects, or anyone or any part of anyone of several considerations for a single object, is unlawful, the agreement is void.

Illustration

A promises to superintend, on behalf of B, a legal manufacture of indigo, and an illegal traffic in other articles. B promises to pay to A a salary of 10,000 rupees a year. The agreement is void, the object of A's promise and the considerations B's promise being in part unlawful.

25. Agreement without consideration void, unless it is in writing and registered, or is a promise to compensate for something done, or is a promise to pay a debt barred by limitation law. An agreement made without consideration is void, unless—

(1) it is expressed in writing and registered under the law for the time being in force for the registration of [1][documents], and is made on account of natural love and affection between parties standing in a near relation to each other ; or unless

(2) it is a promise to compensate, wholly or in part, a person who has already voluntarily done something for the promisor, or something which the promisor was legally compellable to do; or unless

(3) it is a promise, made in writing and signed by the person to be charged therewith, or by his agent generally or specially authorized in that behalf, to pay wholly or in part a debt of which the creditor might have enforced payment but for the law for the limitation of suits.

In any of these cases, such an agreement is a contract.

Explanation 1.—Nothing in this section shall affect the validity, as between the donor and donee, of any gift actually made.

Explanation 2.—An agreement to which the consent of the promisor is freely given is not void merely because the consideration is inadequate; but the inadequacy of the consideration may be taken into account by the Court in determining the question whether the consent of the promisor was freely given.

[1]Subs. by the Amending Act, 1891 (XII of 1891) s. 2 and 2nd Sch.

Illustrations

(a) A promises, for no consideration, to give to B Rs. 1,000. This is a void agreement.

(b) A, for natural love and affection, promises to give his son, B, Rs. 1,000. A puts his promise to B into writing and registers it. This is a contract.

(c) A finds B's purse and gives it to him. B promises to give A Rs. 50. This is a contract.

(d) A supports B's infant son. B promises to pay A's expenses in so doing. This is a contract.

(e) A owes B Rs. 1,000, but the debt is barred by the Limitation Act. A signs a written promise to pay B Rs. 500 on account of the debt. This is a contract.

(f) A agrees to sell a horse worth Rs. 1,000 for Rs. 10. A's consent to the agreement was freely given. The agreement is a contract notwithstanding the inadequacy of the consideration.

(g) A agrees to sell a horse worth Rs. 1,000 for Rs. 10. A denies that his consent to the agreement was freely given.

The inadequacy of the consideration is a fact which the Court should take into account in considering whether or not A's consent was freely given.

26. Agreement in restraint of marriage void. Every agreement in restraint of the marriage of any person, other than a minor, is void.

27. Agreement in restraint of trade void. Every agreement by which any one is restrained from exercising a lawful profession, trade or business of any kind, is to that extent void.

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Exception 1.—**Saving of agreement not to carry on business of which good-will is sold**. one who sells the good-will of a business may agree with the buyer to refrain from carrying on a similar business, within specified local limits, so long as the buyer, or any person deriving title to the good-will from him, carries on a like business therein : Provided that such limits appear to the Court reasonable, regard being had to the nature of the business.

[1][* * * * * *]

28. Agreements in restraint of legal proceedings void. Every agreement, by which any party thereto is restricted absolutely from enforcing his rights under or in respect of any contract, by the usual legal proceedings in the ordinary tribunals, or which limits the time within which he may thus enforce his rights, is void to that extent.

Exception 1.—**Saving of contract to refer to arbitration dispute that may arise**.—This section shall not render illegal a contract by which two or more persons agree that any dispute which may arise between them in respect of any subject or class of subjects shall be referred to arbitration, and that only the amount awarded in such arbitration shall be recoverable in respect of the dispute so referred.

[1]Rep. by the Partnership Act, 1932 (IX of 1932), s. 73 and Sch. ll.

Suits barred by such Contracts. [1]When such a contract has been made, a suit may be brought for its specific performance, and if a suit, other than for such specific performance, or for the recovery of the amount so awarded, is brought by one party to such contract against any other such party in respect of any subject which they have so agreed to refer, the existence of such contract shall be bar to the suit.

Exception 2.—**Saving of contract to refer questions that have already arisen**.—Nor shall this section render illegal any contract in writing, by which two or more persons agree to refer to arbitration any question between them which has already arisen, or affect any provision of any law in force for the time being as to references to arbitration.

29. Agreements void for uncertainty. Agreements, the meaning of which is not certain, or capable of being made certain, are void.

Illustrations

(a) A agrees to sell to B "a hundred tons of oil". There is nothing whatever to show what kind of oil was intended. The agreement is void for uncertainty.

(b) A agrees to sell to B one hundred tons of oil of a specified description, known as an article of commerce. There is no uncertainty here to make the agreement void.

(c) A, who is a dealer in cocoanut-oil only, agrees to sell to B "one hundred tons of oil". The nature of A's trade affords an indication of the meaning of the words, and A has entered into a contract for the sale of one hundred tons of Cocoanut-oil.

(d) A agrees to sell B "all the grain in my granary at [2][Rahimyarkhan]". There is no uncertainty here to make the agreement void.

(e) A agrees to sell to B "one thousand maunds of rice at a price to be fixed by C". As the price is capable of being made certain, there is no uncertainty here to make the agreement void.

(f) A agrees to sell to B "my white horse for rupees five hundred or rupees one thousand". There is nothing to show which of the two prices was to be given. The agreement is void.

30. Agreements by way of wager void. Agreements by way of wager are void ; and no suit shall be brought for recovering anything alleged to be won on any wager, or entrusted to any person to abide the result of any game or other uncertain event on which any wager is made.

Exception in favour of certain prizes for horse-racing. This section shall not be deemed to render unlawful a subscription, or contribution, or agreement to subscribe or contribute, made or entered into for or toward any plate, prize or sum of money, of the value or amount of five hundred rupees or upwards, to be awarded to the winner or winners of any horse race.

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[1]Repealed by the Specific Relief Act, 1877 (I of 1877).
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955).

Section 294A of the Pakistan Penal Code not affected. Nothing in this section shall be deemed to legalize any transaction connected with horse-racing, to which the provisions of section 294A of the Pakistan Penal Code (XLV of 1860) apply.

[1][**30A. Agreements collateral to wagering agreements void**. All agreements knowingly made to further or assist the entering into, effecting or carrying out, or to secure or guarantee the performance, of any agreement void under section 30, are void.

30B. No suit for recovery of money, commission etc., in respect of void agreements. No suit or other proceeding shall lie for the recovery of—

(a) any sum of money paid or payable in respect of any agreement void under section 30A, or

(b) any commission, brokerage, fee or reward in respect of knowingly effecting or carrying out, or aiding in effecting or carrying out, of any such agreement or of any sum of money otherwise claimed or claimable in respect thereof, or

(c) any sum of money knowingly paid or payable on account of any person by way of commission, brokerage, fee, reward or other claim in respect of any such agreement.

30C. Payment by guardian, executor etc., in respect of void agreements not to be allowed credit. No guardian, executor, administrator, heir or personal representative of any minor or deceased person, as the case, may, be shall be entitled to or allowed any credit in his account for or in respect of any payment made by him on behalf of such minor or deceased person in respect of any such agreement, or any such commission, brokerage, fee, reward or claim as is referred to in sections 30A and 30B.]

CHAPTER III
OF CONTINGENT CONTRACTS

31. "Contingent contract" defined. A "contingent contract" is a contract to do or not to do something, if some event, collateral to such contract, does or does not happen.

Illustration

A contracts to pay B Rs. 10,000 if B's house is burnt. This is a contingent contract.

32. Enforcement of contracts contingent on an event happening. Contingent contracts to do or not to do anything if an uncertain future event happens cannot be enforced by law unless and until that event has happened.

If the event becomes impossible, such contracts become void.

Illustrations

(a) A makes a contract with B to buy B's horse if A survives C. This contract cannot be enforced by law unless and until C dies in A's lifetime.

[1]Ins. by the Ordinance No. XLVII 47 of 1960, s. 2.

(b) A makes a contract with B to sell a horse to B at a specified price, if C, to whom the horse has been offered, refuses to buy him. The contract cannot be enforced by law unless and until C refuses to buy the horse.

(c) A contracts to pay B a sum of money when B marries C. C dies without being married to B. The contract becomes void.

33. Enforcement of contracts contingent on an event not happening. Contingent contracts to do or not to do anything if an uncertain future event does not happen can be enforced when the happening of that event becomes impossible, and not before.

Illustration

A agrees to pay B a sum of money if a certain ship does not return. The ship is sunk. The contract can be enforced when the ship sinks.

34. When event on which contract is contingent to be deemed impossible, if it is the future conduct of a living person. If the future event on which a contract is contingent is the way in which a person will act at an unspecified time, the event shall be considered to become impossible when such person does anything which renders it impossible that he should so act within any definite time, or otherwise than under further contingencies.

Illustration

A agrees to pay B a sum of money if B marries C.

C marries D. The marriage of B to C must now be considered impossible, although it is possible that D may die and that C may afterwards marry B.

35. When contracts become void which are contingent on happening of specified event within fixed time. Contingent contracts to do or not to do anything if a specified uncertain event happens within a fixed time become void if, at the expiration of the time fixed, such event has not happened, or if, before the time fixed, such event becomes impossible.

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When contracts may be enforced which are contingent on specified event not happening within fixed time. Contingent contracts to do or not to do anything if a specified uncertain event does not happen within a fixed time may be enforced by law when the time fixed has expired and such event has not happened or, before the time fixed has expired, if it becomes certain that such event will not happen.

Illustrations

(a) A promises to pay B a sum of money if a certain ship returns within a year. The contract may be enforced if the ship returns within the year, and becomes void if the ship is burnt within the year.

(b) A promises to pay B a sum of money if a certain ship does not return within a year. The contract may be enforced if the ship does not return within the year, or is burnt within the year.

36. Agreement contingent on impossible events void. Contingent agreements to do or not to do anything, if an impossible event happens, are void, whether the impossibility of the event is known or not to the parties to the agreement at the time when it is made.

Illustrations

(a) A agrees to pay B 1,000 rupees if two straight lines should enclose a space. The agreement is void.

(b) A agrees to pay B 1,000 rupees if B will marry A's daughter C. C was dead at the time of the agreement. The agreement is void.

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CHAPTER IV

OF THE PERFORMANCE OF CONTRACTS

Contracts which must be performed

37. Obligation of parties to contracts. The parties to a contract must either perform, or offer to perform, their respective promises, unless such performance is dispensed with or excused under the provisions of this Act, or of any other law.

Promises bind the representatives of the promisors in case of the death of such promisors before performance, unless a contrary intention appears from the contract.

Illustrations

(a) A promises to deliver goods to B on a certain day on payment of Rs. 1,000. A dies before that day. A's representatives are bound to deliver the goods to B, and B is bound to pay the Rs. 1,000 to A's representatives.

(b) A promises to paint a picture for B by a certain day, at a certain price. A dies before the day. The contract cannot be enforced either by A's representatives or by B.

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38. Effect of refusal to accept offer of performance. Where a promisor has made an offer of performance to the promisee, and the offer has not been accepted, the promisor is not responsible for non-performance, nor does he thereby lose his rights under the contract.

Every such offer must fulfil the following conditions :—

(1) it must be unconditional :

(2) it must be made at a proper time and place, and under such circumstances that the person to whom it is made may have a reasonable opportunity of ascertaining that the person by whom it is made is able and willing there and then to do the whole of what he is bound by his promise to do :

(3) if the offer is an offer to deliver anything to the promisee, the promisee must have a reasonable opportunity of seeing that the thing offered is the thing which the promisor is bound by his promise to deliver.

An offer to one of several joint promisees has the same legal consequences as an offer to all of them.

Illustration

A contracts to deliver to B at his warehouse, on the 1st March, 1873, 100 bales of cotton of a particular quality. In order to make an offer of a performance with the effect stated in this section, A must bring the cotton to B's warehouse, on the appointed day, under such circumstances that B may have a reasonable opportunity of satisfying himself that the thing offered is cotton of the quality contracted for, and that there are 100 bales.

39. Effect of refusal of party to perform promise wholly. When a party to a contract has refused to perform, or disabled himself from performing, his promise in its entirety, the promisee may put an end to the contract, unless he has signified, by words or conduct, his acquiescence in its continuance.

Illustrations

(a) A, a singer, enters into a contract with B, the manager of a theatre, to sing at his theatre two nights in every week during the next two months, and B engages to pay her 100 rupees for each night's performance. On the sixth night A wilfully absents herself from the theatre. B is at liberty to put an end to the contract.

(b) A, a singer, enters into a contract with B, the manager of a theatre, to sing at his theatre two nights in every week during the next two months, and B engages to pay her at the rate of 100 rupees for each night. On the sixth night A wilfully absents herself. With the assent of B, A sings on the seventh night. B has signified his acquiescence in the continuance of the contract, and cannot now put an end to it, but is entitled to compensation for the damage sustained by him through A's failure to sing on the sixth night.

By whom Contracts must be performed

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40. Person by whom promise is to be performed. If it appears from the nature of the case that it was the intention of the parties to any contract that any promise contained in it should be performed by the promisor himself, such promise must be performed by the promisor. In other case, the promisor or his representatives may employ a competent person to perform it.

Illustrations

(a) A promises to pay B a sum of money. A may perform this promise, either by personally paying the money to B or by causing it to be paid to B by another; and, if A dies before the time appointed for payment, his representatives must perform the promise, or employ some proper person to do so.

(b) A promises to paint a picture for B. A must perform this promise personally.

41. Effect of accepting performance from third person. When a promisee accepts performance of the promise from a third person, he cannot afterwards enforce it against the promisor.

42. Devolution of Joint liabilities. When two or more persons have make a joint promise, then, unless a contrary intention appears by the contract, all such persons during their joint lives, and after the death of any of them, his representative jointly with the survivor or survivors, and after the death of the last survivor, the representatives of all jointly, must fulfill the promise.

43. Any one of joint promisors may be compelled to perform. When two or more persons make a joint promise, the promisee may, in the absence of express agreement to the contrary, compel any [1][one or more] of such joint promisors to perform the whole of the promise.

Each promisor may compel contribution. Each of two or more joint promisors may compel every other joint promisor to contribute equally with himself to the performance of the promise, unless a contrary intention appears from the contract.

Sharing of loss by default in contribution. If any one of two or more joint promisors makes default in such contribution, the remaining joint promisors must bear the loss arising from such default in equal shares.

Explanation.—Nothing in this section shall prevent a surety from recovering from his principal, payments made by the surety on behalf of the principal, or entitle the principal to recover anything from the surety on account of payments made by the principal.

Illustrations

(a) A, B and C jointly promise to pay D 3,000 rupees. D may compel either A or B or C to pay him 3,000 rupees.

(b) A, B and C jointly promise to pay D the sum of 3,000 rupees. C is compelled to pay the whole. A is insolvent, but his assets are sufficient to pay one-half of his debts. C is entitled to receive 500 rupees from A's estate, and 1,250 rupees from B.

(c) A, B and C are under a joint promise to pay D 3,000 rupees. C is unable to pay anything, and A is compelled to pay the whole. A is entitled to receive 1,500 rupees from B.

(d) A, B and C are under a joint promise to pay D 3,000 rupees, A and B being only sureties for C. C fails to pay. A and B are compelled to pay the whole sum. They are entitled to recover it from C.

44. Effect of release of one joint promisor. Where two or more persons have made a joint promise, a release of one of such joint promisors by the promisee does not discharge the other joint promisor or joint promisors; neither does it free the joint promisors so released from responsibility to the other joint promisor or joint promisors.

[1]Subs. by the Amending Act, 1891 (XII of 1891).

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45. Devolution of joint rights. When a person has made a promise to two or more persons jointly, then, unless contrary intention appears from the contract, the right to claim performance rests, as between him and them, with them during their joint lives, and, after the death of any of them, with the representative of such deceased person jointly with the survivor or survivors, and, after the death of the last survivor, with the representatives of all jointly.

Illustration

A, in consideration of 5,000 rupees lent to him by B and C, promises B and C jointly to repay them that sum with interest on a day specified. B dies. The right to claim performance rests with B's representative jointly with C during C's life, and after the death of C with the representatives of B and C jointly.

Time and Place for Performance

46. Time for performance of promise where no application is to be made and no time is specified. Where, by the contract, a promisor is to perform his promise without application by the promisee, and no time for performance is specified, the engagement must be performed within a reasonable time.

Explanation.—The question "what is a reasonable time" is, in each particular case, a question of fact.

47. Time and place for performance of promise where time is specified and no application to be made. When promise is to be performed on a certain day, and the promisor has undertaken to perform it without application by the promisee, the promisor may perform it at any time during the usual hours of business on such day and at the place at which the promise ought to be performed.

Illustration

A promises to deliver goods at B's warehouse on the first January. On that day A brings the goods to B's warehouse, but after the usual hour for closing it, and they are not received. A has not performed his promise.

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48. Application for performance on certain day to be at proper time and place. When a promise is to be performed on a certain day, and the promisor has not undertaken to perform it without application by the promisee, it is the duty of the promisee to apply for performance at a proper place and within the usual hours of business.

Explanation.—The question "what is a proper time and place" is, in each particular case a question of fact.

49. Place for performance of promise where no application to be made and no place fixed for performance. When a promise is to be performed without application by the promisee, and no place is fixed for the performance of it, it is the duty of the promisor to apply to the promisee to appoint a reasonable place for the performance of the promise, and to perform it at such place.

Illustration

A undertakes to deliver a thousand maunds of jute to B on a fixed day. A must apply to B to appoint a reasonable place for the purpose of receiving it, and must deliver it to him at such place.

50. Performance in manner or at time prescribed or sanctioned by promisee. The performance of any promise may be made in any manner, or at any time which the promisee prescribes or sanctions.

Illustrations

(a) B owes A 2,000 rupees. A desires B to pay the amount to A's account with C, a banker. B, who also banks with C, orders the amount to be transferred from his account to A's credit, and this is done by C. Afterwards, and before A knows of the transfer, C fails. There has been a good payment by B.

(b) A and B are mutually indebted. A and B settle an account by setting off one item against another, and B pays A the balance found to be due from him upon such settlement. This amounts to a payment by A and B, respectively, of the sums which they owed to each other.

(c) A owes B 2,000 rupees. B accepts some of A's goods in reduction of the debt. The delivery of the goods operates as a part payment.

(d) A desires B, who owes him Rs. 100, to send him a note for Rs. 100 by post. The debt is discharged as soon as B puts into the post a letter containing the note duly addressed to A.

Performance of Reciprocal Promises

51. Promisor not bound to perform unless reciprocal promisee ready and willing to perform. When a contract consists of reciprocal promises to be simultaneously performed, no promisor need perform his promise unless the promisee is ready and willing to perform his reciprocal promise.

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Illustrations

(a) A and B contract that A shall deliver goods to B to be paid for by B on delivery.

A need not deliver the goods, unless B is ready and willing to pay for the goods on delivery.

B need not pay for the goods, unless A is ready and willing to deliver them on payment.

(b) A and B contract that A shall deliver goods to B at a price to be paid by instalments, the first instalment to be paid on delivery.

A need not deliver, unless B is ready and willing to pay the first instalment on delivery.

B need not pay the first instalment, unless A is ready and willing to deliver the goods on payment of the first instalment.

52. Order of performance of reciprocal promises. Where the order in which reciprocal promises are to be performed is expressly fixed by the contract, they shall be performed in that order; and, where the order is not expressly fixed by the contract, they shall be performed in that order which the nature of the transaction requires.

Illustrations

(a) A and B contract that A shall build a house for B at a fixed price. A's promise to build the house must be performed before B's promise to pay for it.

(b) A and B contract that A shall make over his stock-in-trade to B at a fixed price, and B promises to give security for the payment of the money, A's promise need not be performed until the security is given, for the nature of the transaction requires that A should have security before he delivers up his stock.

53. Liability of party preventing event on which the contract is to take effect. When a contract contains reciprocal promises, and one party to the contract prevents the other from performing his promise, the contract becomes voidable at the option of the party so prevented; and he is entitled to compensation from the other party for any loss which he may sustain in consequence of the non-performance of the contract.

Illustration

A and B contract that B shall execute certain work for A for a thousand rupees. B is ready and willing to execute the work accordingly, but A prevents him from doing so. The contract is voidable at the option of B ; and, if he elects to rescind it, he is entitled to recover from A compensation for any loss which he has incurred by its non-performance.

54. Effect of default as to that promise which should be first performed, in contract consisting of reciprocal promises. When a contract consists of reciprocal promises, such that one of them cannot be performed, or that its performance cannot be claimed till the other has been performed, and the promisor of the promise last mentioned fails to perform it, such promisor cannot claim the performance of the reciprocal promise, and must make compensation to the other party to the contract for any loss which such other party may sustain by the non-performance of the contract.

Illustrations

(a) A hires B's ship to take in and convey, from [1][Karachi] to the Mauritius, a cargo to be provided by A, B receiving a certain freight for its conveyance. A does not provide any cargo for the ship. A cannot claim the performance of B's promise, and must make compensation to B for the loss which B sustains by the non-performance of the contract.

(b) A contracts with B to execute certain builder's work for a fixed price. B supplying the scaffolding and timber necessary for the work. B refuses to furnish any scaffolding or timber, and he work cannot be executed. A need

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Sch.

not execute the work, and B is bound to make compensation to A for any loss caused to him by the non-performance of the contract.

(c) A contracts with B to deliver to him, at a specified price, certain merchandise on board a ship which cannot arrive for a month, and B engages to pay for the merchandise within a week from the date of the contract. B does not pay within the week. A's promise to deliver need not be performed, and B must make compensation.

(d) A promises B to sell him one hundred bales of merchandise, to be delivered next day, and B promises A to pay for them within a month. A does not deliver according to his promise. B's promise to pay need not be performed, and A must make compensation.

55. Effect of failure to perform at fixed time, in contract in which time is essential. When a party to a contract promises to do a certain thing at or before a specified time, or certain things at or before specified times, and fails to do any such thing at or before the specified time, the contract, or so much of it as has not been performed, becomes voidable at the option of the promisee, if the intention of the parties was that time should be of the essence of the contract.

Effect of such failure when time is not essential. If it was not the intention of the parties that time should be of the essence of the contract, the contract does not become voidable by the failure to do such thing at or before the specified time; but the promisee is entitled to compensation from the promisor for any loss occasioned to him by such failure.

Effect of acceptance of performance at time other than that agreed upon. If, in case of a contract voidable on account of the promisor's failure to perform his promise at the time agreed, the promisee accepts performance of such promise at any time other than that agreed, the promisee cannot claim compensation for any loss occasioned by the non-performance of the promise at the time agreed, unless, at the time of such acceptance he gives notice to the promisor of his intention to do so.

56. Agreement to do impossible act. An agreement to do an act impossible in itself is void.

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Contract to do act afterwards becoming impossible or unlawful. A contract to do an act which, after the contract is made, becomes impossible, or, by reason of some event which the promisor could not prevent, unlawful, becomes void when the act becomes impossible or unlawful.

Compensation for loss through non-performance of act known to be impossible or unlawful. Where one person has promised to do something which he knew, or, with reasonable diligence, might have known, and which the promisee did not know to be impossible or unlawful, such promisor must make compensation to such promisee for any loss which such promisee sustains through the non-performance of the promise.

Illustrations

(a) A agrees with B to discover treasure by magic. The agreement is void.

(b) A and B contract to marry each other. Before the time fixed for the marriage, A goes mad. The contract becomes void.

(c) A contracts to marry B, being already married to C, and being forbidden by the law to which he is subject to practise polygamy. A must make compensation to B for the loss caused to her by the non-performance of his promise.

(d) A contracts to take in cargo for B at a foreign port. A's Government afterwards declares war against the country in which the port is situated. The contract becomes void when war is declared.

(e) A contracts to act at a theatre for six months in consideration of a sum, paid in advance by B. On several occasions A is too ill to act. The contract to act on those occasions becomes void.

57. Reciprocal promise to do things legal, and also other things illegal. Where persons reciprocally promise, firstly, to do certain things which are legal, and, secondly, under specified circumstances, to do certain other things which are illegal, the first set of promises is a contract, but the second is a void agreement.

Illustration

A and B agree that A shall sell B a house for 10,000 rupees, but that, if B uses it as a gambling house, he shall pay A 50,000 rupees for it.

The first set of reciprocal promises, namely, to sell the house and to pay 10,000 rupees for it, is a contract.

The second set is for an unlawful object, namely, that B may use the house as a gambling house, and is a void agreement.

58. Alternative promise, one branch being illegal. In the case of an alternative promise, one branch of which is legal and the other illegal, the legal branch alone can be enforced.

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Illustration

A and B agree that A shall pay B 1,000 rupees for which B shall afterwards deliver to A either rice or smuggled opium.

This is a valid contract to deliver rice, and a void agreement as to the opium.

Appropriation of Payments

59. Application of payment, where debt to be discharged is indicated. Where a debtor, owing several distinct debts to one person, makes a payment to him, either with express intimation, or under circumstances implying that the payment is to be applied to the discharge of some particular debt, the payment, if accepted, must be applied accordingly.

Illustrations

(a) A owes B, among other debts, 1,000 rupees upon a promissory note which falls due on the first June. He owes B no other debt of that amount. On the

first June A pays to B 1,000 rupees. The payment is to be applied to the discharge of the promissory note.

(b) A owes to B, among other debts the sum of 567 rupees. B writes to A and demands payment of this sum. A sends to B 567 rupees. This payment is to be applied to the discharge of the debt of which B had demanded payment.

60. Application of payment, where debt to be discharged is not indicated. Where the debtor has omitted to intimate and there are no other circumstances indicating to which debt the payment is to be applied, the creditor may apply it at his discretion to any lawful debt actually due and payable to him from the debtor, whether its recovery is or is not barred by the law in force for the time being as to the limitation of suits.

61. Application of payment where neither party appropriates. Where neither party makes any appropriation the payment shall be applied in discharge of the debts in order of time whether they are or are not barred by the law in force for the time being as to the limitation of suits. If the debts are of equal standing, the payment shall be applied in discharge of each proportionably.

Contracts which need not be performed

62. Effect of novation, rescission and alteration of contract. If the parties to a contract agree to substitute a new contract for it, or to rescind or alter it, the original contract need not be performed.

Illustrations

(a) A owes money to B under a contract. It is agreed between A, B and C that B shall thenceforth accept C as his debtor, instead of A. The old debt of A to B is at an end, and a new debt from C to B has been contracted.

(b) A owes B 10,000 rupees. A enters into an arrangement with B, and gives B a mortgage of his (A's) estate for 5,000 rupees in place of the debt of 10,000 rupees. This is a new contract and extinguishes the old.

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(c) A owes B 1,000 rupees under a contract. B owes C 1,000 rupees. B orders A to credit C with 1,000 rupees in his books, but C does not assent to the arrangement. B still owes C 1,000 rupees, and no new contract has been entered into.

63. Promisee may dispense with or remit performance of promise. Every promisee may dispense with or remit, wholly or in part, the performance of the promise made to him, or may extend the time for such performance, or may accept instead of it any satisfaction which he thinks fit.

Illustrations

(a) A promises to paint a picture for B. B afterwards forbids him to do so. A is no longer bound to perform the promise.

(b) A owes B 5,000 rupees. A pays to B, and B accepts, in satisfaction of the whole debt, 2,000 rupees paid at the time and place at which the 5,000 rupees were payable. The whole debt is discharged.

(c) A owes B 5,000 rupees. C pays to B 1,000 rupees, and B accepts them, in satisfaction of his claim on A. This payment is a discharge of the whole claim.

(d) A owes B, under a contract, a sum of money, the amount of which has not been ascertained. A, without ascertaining the amount, gives to B, and B, in satisfaction thereof, accepts, the sum of 2,000 rupees. This is a discharge of the whole debt, whatever may be its amount.

(e) A owes B 2,000 rupees, and is also indebted to other creditors. A makes an arrangement with his creditors, including B, to pay them a [1][composition] of eight annas in the rupee upon their respective demands. Payment to be of 1,000 rupees is a discharge of B's demand.

64. Consequences of rescission of voidable contract. When a person at whose option a contract is voidable rescinds it, the other party thereto need not perform any promise therein contained in which he is promisor. The party rescinding a voidable contract shall, if he have received any benefit thereunder from another party to such contract, restore such benefit, so far as may be, to the person from whom it was received.

65. Obligation of person who has received advantage under void agreement or contract that becomes void. When an agreement is discovered to be void, or when a contract becomes void, any person who has received any advantage under such agreement or contract is bound to restore it, or to make compensation for it to the person from whom he received it.

Illustrations

(a) A pays B 1,000 rupees in consideration of B's promising to marry C, A's daughter. C is dead at the time of the promise. The agreement is void, but B must repay A the 1,000 rupees.

(b) A contracts with B to deliver to him 250 maunds of rice before the first of May. A delivers 130 maunds only before that day, and none after. B retains the 130 maunds after the first of May. He is bound to pay A for them.

(c) A, a singer, contracts with B, the manager of a theatre, to sing at his theatre for two nights in every week during the next two months, and B engages to pay her a hundred rupees for each night's performance. On the sixth night, A wilfully absents herself from the theatre, and B, in consequence, rescinds the contract. B must pay A for the five nights on which she had sung.

(d) A contracts to sing for B at a concert for 1,000 rupees, which are paid in advance. A is too ill to sing. A is not bound to make compensation to B for the loss of the profits which B would have made if A had been able to sing, but must refund to B the 1,000 rupees paid in advance.

[1]Subs. by the Amending Act 1891 (XII of 1891), s. 2 and 2nd Sch.

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66. Mode of communicating or revoking rescission of voidable contract. The rescission of a voidable contract may be communicated or revoked in the same manner, and subject to the same rules, as apply to the communication or revocation of a proposal.

67. Effect of neglect of promisee to afford promisor reasonable facilities for performance. If any promisee neglects or refuses to afford the promisor reasonable facilities for the performance of his promise, the promisor is excused by such neglect or refusal as to any non-performance caused thereby.

Illustration

A contracts with B to repair B's house.

B neglects or refuses to point out to A the places in which his house requires repair.

A is excused for the non-performance of the contract if it is caused by such neglect or refusal.

CHAPTER V
OF CERTAIN RELATIONS RESEMBLING THOSE CREATED BY CONTRACT

68. Claim for necessaries supplied to person incapable of contracting, or on his account. If a person, incapable of entering into a contract, or any one whom he is legally bound to support, is supplied by another person with necessaries suited to his condition in life, the person who has furnished such supplies is entitled to be reimbursed from the property of such incapable person.

Illustrations

(a) A supplies B, a lunatic, with necessaries suitable to his condition in life. A is entitled to be reimbursed from B's property.

(b) A supplies the wife and children of B, a lunatic, with necessaries suitable to their condition in life. A is entitled to be reimbursed from B's property.

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69. Reimbursement of person paying money due by another in payment of which he is interested. A person who is interested is the payment of money which another is bound by law to pay, and who therefore pays it, is entitled to be reimbursed by the other.

Illustration

B holds land in [1][Sind], on a lease granted by A, the zamindar. The revenue payable by A to the Government being in arrear, his land is advertised for sale by the Government. Under the revenue law, the consequence of such sale will be the annulment of B's lease. B, to prevent the sale and the consequent annulment of his own lease, pays to the Government the sum due from A. A is bound to make good to B the amount so paid.

70. Obligation of person enjoying benefit of non-gratuitous act. Where a person lawfully does anything for another person, or delivers anything to him, not intending to do so gratuitously, and such other person enjoys the benefit thereof, the latter is bound to make compensation to the former in respect of, or to restore, the thing so done or delivered.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Sch.

Illustrations

(a) A, a tradesman, leaves goods at B's house by mistake. B treats the goods as his own. He is bound to pay A for them.

(b) A saves B's property from fire. A is not entitled to compensation from B, if the circumstances show that he intended to act gratuitously.

71. Responsibility of finder of goods. A person who finds goods belonging to another and takes them into his custody, is subject to the same responsibility as a bailee.

72. Liability of person to whom money is paid or thing delivered by mistake or under coercion. A person to whom money has been paid or anything delivered by mistake or under coercion, must repay or return it.

Illustrations

(a) A and B jointly owe 100 rupees to C. A alone pays the amount to C and B, not knowing this fact, pays 100 rupees over again to C. C is bound to repay the amount to B.

(b) A railway company refuses to deliver up certain goods to the consignee, except upon the payment of an illegal charge for carriage. The consignee pays the sum charged in order to obtain the goods. He is entitled to recover so much of the charge as was illegally excessive.

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CHAPTER VI
OF THE CONSEQUENCES OF BREACH OF CONTRACT

73. Compensation for loss or damage caused by breach of contract. When a contract has been broken, the party who suffers by such breach is entitled to receive, from the party who has broken the contract, compensation for any loss or damage caused to him thereby, which naturally arose in the usual course of things from such breach, or which the parties knew, when they made the contract, to be likely to result from the breach of it.

Such compensation is not to be given for any remote and in direct loss or damage sustained by reason of the breach.

Compensation for failure to discharge obligation resembling those created by contract. When an obligation resembling those created by contract has been incurred and has not been discharged, any person injured by the failure to discharge it is entitled to receive the same compensation from the party in default, as if such person had contracted to discharge it and had broken his contract.

Explanation.—In estimating the loss or damage arising from a breach of contract, the means which existed of remedying the inconvenience caused by the non-performance of the contract must be taken into account.

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Illustrations

(a) A contracts to sell and deliver 50 maunds of saltpetre to B, at a certain price to be paid on delivery. A breaks his promise. B is entitled to receive from A, by way of compensation, the sum, if any, by which the contract price falls short of the price for which B might have obtained 50 maunds of saltpetre of like quality at the time when the saltpetre ought to have been delivered.

(b) A hires B's ship to go to [1][Karachi], and there take on board, on the first of January, a cargo which A is to provide and to bring it to [1][Chittagong], the freight to be paid when earned. B's ship does not go to [1][Karachi], but A has opportunities of procuring suitable conveyance or the cargo upon terms as advantageous as those on which he had chartered the ship. A avails himself of those opportunities, but is put to trouble and expense in doing so. A is entitled to receive compensation from B in respect of such trouble and expense.

(c) A contracts to buy of B, at a stated price, 50 maunds of rice, no time being fixed for delivery. A afterwards informs B that he will not accept the rice if tendered to him. B is entitled to receive from A, by way of compensation, the amount, if any, by which the contract price exceeds that which B can obtain for the rice at the time when A informs B that he will not accept it.

(d) A contracts to buy B's ship for 60,000 rupees, but breaks his promise. A must pay to B, by way of compensation, the excess, if any, of the contract price over the price which B can obtain for the ship at the time of the breach of promise.

(e) A, the owner of a boat, contracts with B to take a cargo of jute to [1][Mymensingh], for sale at that place, starting on a specified day. The boat owing to some avoidable cause, does not start at the time appointed, whereby the arrival of the cargo at [1][Mymensingh] is delayed beyond the time when it would have arrived if the boat had sailed according to the contract. After that date, and before the arrival of the cargo, the price of jute falls. The measure of the compensation payable to B by A is the difference between the price which B could have obtained for the cargo at [1][Mymensingh] at the time when it would have arrived if forwarded in due course, and its market price at the time when it actually arrived.

(f) A contracts to repair B's house in a certain manner, and receives payment in advance. A repairs the house, but not according to contract. B is entitled to recover from A the cost of making the repairs conform to the contract.

(g) A contracts to let his ship to B for a year, from the first of January, for a certain price. Freights rise, and, on the first of January, the hire obtainable for the ship is higher than the contract price. A breaks his promise. He must pay to B, by way of compensation, a sum equal to the difference between the contract price and the price for which B could hire a similar ship for a year on and from the first of January.

(h) A contracts to supply B with a certain quantity of iron at a fixed price, being a higher price than that for which A could procure and deliver the iron. B wrongfully refuses to receive the iron. B must pay to A, by way of compensation, the difference between the contract price of the iron and the sum for which A could have obtained and delivered it.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch. (with effect from the 14th October 1955).

(i) A delivers to B, a common carrier, a machine, to be conveyed, without delay, to A's mill informing B that his mill is stopped for want of the machine. B unreasonably delays the delivery of the machine, and A, in consequence, loses a profitable contract with the Government. A is entitled to receive from B, by way of compensation, the average amount of profit which would have been made by the working of the mill during the time that delivery of it was delayed, but not the loss sustained through the loss of the Government contract.

(j) A, having contracted with B to supply B with 1,000 tons of iron at 100 rupees a ton, to be delivered at a stated time, contracts with C for the purchase of 1,000 tons of iron at 80 rupees a ton, telling C that he does so for the purpose of performing his contract with B. C fails to perform his contract with A, who cannot procure other iron, and B, in consequence, rescinds the contract. C must pay to A 20,000 rupees, being the profit which A would have made by the performance of his contract with B.

(k) A contracts with B to make and deliver to B, by a fixed day, for a specified price, a certain piece of machinery. A does not deliver the piece of machinery at the time specified, and, in consequence of this, B is obliged to procure another at a higher price than that which he was to have paid to A, and is prevented from performing a contract which B had made with a third person at the time of his contract with A (but which had not been then communicated to A), and is compelled to make compensation for breach of that contract. A must pay to B by way of compensation, the difference between the contract price of the piece of machinery and the sum paid by B for another, but not the sum paid by B to the third person by way of compensation.

(l) A, a builder, contracts to erect and finish a house by the first of January, in order that B may give possession of it at that time to C, to whom B has contracted to let it. A is informed of the contract between B and C. A builds the house so badly that, before the first of January, if falls down and has to be rebuilt by B, who, in consequence, loses the rent which he was to have received from C, and is obliged to make compensation to C for the breach of his contract. A must make compensation to B for the cost of rebuilding the house, for the rent lost, and for the compensation made to C.

(m) A sells certain merchandise to B, warranting it to be of a particular quality, and B, in reliance upon this warranty, sells it to C with a similar warranty. The goods prove to be not according to the warranty, and B becomes liable to pay C a sum of money by way of compensation. B is entitled to be reimbursed this sum by A.

(n) A contracts to pay a sum of money to B on a day specified. A does not pay the money on that day; B, in consequence of not receiving the money on that day, is unable to pay his debts, and is totally ruined. A is not liable to make good to B anything except the principal sum he contracted to pay, together with interest up to the day of payment.

(o) A contracts to deliver 50 maunds of saltpeter to B on the first of January, at a certain price. B afterwards, before the first of January, contracts to sell the

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saltpeter to C at a price higher than the market price of the first of January. A breaks his promise. In estimating the compensation payable by A to B, the market price of the first of January, and not the profit which would have arisen to B from the sale to C, is to be taken into account.

(p) A contracts to sell and deliver 500 bales of cotton to B on a fixed day, A knows nothing of B's mode of conducting his business. A breaks his promise, and B, having no cotton, is obliged to close his mill. A is not responsible to B for the loss caused to B by the closing of the mill.

(q) A contacts to sell and deliver to B, on the first of January, certain cloth, which B intends to manufacture into caps of a particular kind, for which there is no demand, except at that season. The cloth is not delivered till after the appointed time, and too late to be used that year in making caps. B is entitled to receive from A, by way of compensation, the difference between the contract price of the cloth and its market price at the time of delivery, but not the profits which he expected to obtain by making caps, nor the expenses which he has been put to in making preparation for the manufacture.

(r) A, a ship-owner, contracts with B to convey him from [1][Karachi] to Sydney in A's ship, sailing on the first of January, and B pays to A, by way of deposit, one-half of his passage-money. The ship does not sail on the first of January, and B, after being, in consequence, detained in [1][Karachi] for some time, and thereby put to some expense, proceeds to Sydney in another vessel, and, in consequence, arriving too late in Sydney, loses a sum of money. A is liable to repay to B his deposit, with interest, and the expense to which he is put by his detention in [1][Karachi] and the excess, if any, of the passage-money paid for the second ship over that agreed upon for the first, but not the sum of money which B lost by, arrivaing in Sydney too late.

74. Compensation for breach of contract where penalty stipulated for. [2][When a contract has been broken, if a sum is named in the contract as the amount to be paid in case of such breach, or if the contract contains any other stipulation by way of penalty, the party complaining of the breach is entitled, whether or not actual damage or loss is proved to have been caused thereby, to receive from the party who has broken the contract reasonable compensation not exceeding the amount so named or, as the case may be, the penalty stipulated for.

Explanation.—A stipulation for increased interest from the date of default may be a stipulation by way of penalty.]

Exception.—When any person enters into any bail-bond, recognizance or other instrument of the same nature, or, under the provisions of any law, or under the orders of the [3][Federal Government] or of any [4][Provincial Government], gives any bond for the performance of any public duty or act in which the public are interested, he shall be liable, upon breach of the condition of any such instrument, to pay the whole sum mentioned therein.

[1]Subs. by the the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Sch.
[2]Subs. by Act No. VI of 1899, s. 4.
[3]Subs. by the Federal Adaptation of Laws Order, 1975(P. O. No. 4 of 1975), Art.2 and Table.
[4]Subs. by A. O., 1937.

Explanation.—A person who enters into a contract with Government does not necessarily thereby undertake any public duty, or promise to do an act in which the public are interested.

Illustrations

(a) A contracts with B to pay B Rs. 1,000, if he fails to pay B Rs. 500 on a given day. A fails to pay B Rs. 500 on that day. B is entitled to recover from A such compensation, not exceeding Rs. 1, 000, as the Court considers reasonable.

(b) A contracts with B that, if A practises as a surgeon within [1][Peshawar], he will pay B Rs. 5,000. A practises as a surgeon in [1][Peshawar]. B is entitled to such compensation, not exceeding Rs. 5,000 as the Court considers reasonable.

(c) A gives a recognizance binding him in a penalty of Rs. 500 to appear in Court on a certain day. He forfeits his recognizance. He is liable to pay the whole penalty.

[2]*[(d)* A gives B a bond for the repayment of Rs. 1,000 with interest at 12 per cent, at the end of six months, with a stipulation that in case of default, interest shall be payable at the rate of 75 per cent. from the date of default. This is a stipulation by way of penalty, and B is only entitled to recover from A such compensation as the Court considers reasonable.

(e) A, who owes money to B, a money-lender, undertakes to repay him by delivering to him 10 maunds of grain on a certain date, and stipulates that, in the event of his not delivering the stipulated amount by the stipulated date, he shall be liable to deliver 20 maunds. This is a stipulation by way of penalty, and B is only entitled to reasonable compensation in case of breach.

(f) A undertake to repay B a loan of Rs. 1,000 by five equal monthly installments with a stipulation that, in default of payment of any installment, the whole shall become due. This stipulation is not by way of penalty, and the contract may be enforced according to its terms.

(g) A borrows Rs. 100 from B and gives him a bond for Rs. 200 payable by five yearly instalments of Rs. 40, with a stipulation that, in default of payment of any instalment, the whole shall become due. This a stipulation by way of penalty.]

75. Party rightfully rescinding contract entitled to compensation. A person who rightly rescinds a contract is entitled to compensation for any damage which he has sustained through the non-fulfilment of the contract.

Illustration

A, a singer, contracts with B, the manager of a theatre, to sing at his theatre for two nights in every week during the next two months, and B engages to pay her 100 rupees for each night's performance. On the sixth night, A willfully absents herself from the theatre, and B, in consequence, rescinds the contract. B is entitled to claim compensation for the damage which he has sustained through the non-fulfilment of the contract.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Sch.
[2]Ins. by Act No. VI of 1899, s. 4.

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CHAPTER VII

[1][* * * * * * *]

CHAPTER VIII

OF INDEMNITY AND GUARANTEE

124. "Contract of indemnity" defined. A contract by which one party promises to save the other from loss caused to him by the conduct of the promisor himself, or by the conduct of any other person, is called a "contract of indemnity".

Illustration

A contracts to indemnify B against the consequences of any proceedings which C may take against B in respect of a certain sum of 200 rupees. This is a contract of indemnity.

125. Rights of indemnity-holder when sued. The promisee in a contract of indemnity, acting within the scope of his authority, is entitled to recover from the promisor—

(1) all damages which he may be compelled to pay in any suit in respect of any matter to which the promise to indemnify applies;

(2) all costs which he may be compelled to pay in any such suit if, in bringing or defending it, he did not contravene the orders of the promisor, and acted as it would have been prudent for him to act in the absence of any contract of indemnity, or if the promisor authorized him to bring or defend the suit;

(3) all sums which he may have paid under the terms of any compromise of any such suit, if the compromise was not contrary to the orders of the promisor, and was one which it would have been prudent for the promisee to make in the absence of any contract of indemnity, or if the promisor authorized him to compromise the suit.

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126. "Contract of guarantee", "surety", "principal debtor" and "creditor". A "contract of guarantee" is a contract to perform the promise, or discharge the liability, of a third person in case of his default. The person who gives the guarantee is called the "surety": the person in respect of whose default the guarantee is given is called the "principal debtor", and the person to whom the guarantee is given is called the "creditor". A guarantee may be either oral or written.

127. Consideration for guarantee. Anything done, or any promise made, for the benefit of the principal debtor may be a sufficient consideration to the surety for giving the guarantee.

Illustrations

(a) B requests A to sell and deliver to him goods on credit. A agrees to do so, provided C will guarantee the payment of the price of the goods. C promises to guarantee the payment in consideration of A's promise to deliver the goods. This is a sufficient consideration for C's promise.

(b) A sells and delivers goods to B. C afterwards requests A to forbear to sue B

[1]Rep. by the Sale of Goods Act, 1930 (III of 1930), s. 65.

for the debt for a year, and promises that if he does so, C will pay for them in default of payment by B. A agrees to forbear as requested. This is a sufficient consideration for C's promise.

(c) A sells and delivers goods to B. C afterwards, without consideration, agrees to pay for them in default of B. The agreement is void.

128. Surety's liability. The liability of the surety is co-extensive with that of the principal debtor, unless it is otherwise provided by the contract.

Illustration

A guarantees to B the payment of a bill of exchange by C, the acceptor. The bill is dishonoured by C. A is liable not only for the amount of the bill but also for any interest and charges which may have become due on it.

129. "Continuing guarantee". A guarantee which extends to a series of transactions is called a "continuing guarantee".

Illustrations

(a) A, in consideration that B will employ C in collecting the rent of B's zamindari, promises B to be responsible, to the amount of 5,000 rupees, for the due collection and payment by C of those rents. This is a continuing guarantee.

(b) A guarantees payment to B, a tea-dealer, to the amount of £ 100, for any tea he may from time to time supply to C. B supplies C with tea to above the value of £ 100, and C pays B for it. Afterwards B supplies C with tea to the value of £ 200. C fails to pay. The guarantee given by A was a continuing guarantee, and he is accordingly liable to B to the extent of £100.

(c) A guarantees payment to B of the price of five sacks of flour to be delivered by B to C and to be paid for in a month. B delivers five sacks to C. C pays for them. Afterwards B delivers four sacks to C, which C does not pay for. The guarantee given by A was not a continuing guarantee, and accordingly he is not liable for the price of the four sacks.

130. Revocation of continuing guarantee. A continuing guarantee may at any time be revoked by the surety, as to future transactions, by notice to the creditor.

Illustrations.

(a) A, in consideration of B's discounting, at A's request, bills of exchange for C, guarantees to B, for twelve months, the due payment of all such bills to the extent of 5,000 rupees. B discounts bills for C to the extent of 2,000 rupees. Afterwards, at the end of three months, A revokes the guarantee. This revocation discharges A from all liability to B for any subsequent discount. But A is liable to B for the 2,000 rupees, on default of C.

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(b) A guarantees to B, to the extent of 10,000 rupees, that C shall pay all the bills that B shall draw upon him. B draws upon C. C accepts the bill. A gives notice of revocation. C dishonours the bill at maturity. A is liable upon his guarantee.

131. Revocation of continuing guarantee by surety's death. The death of the surety operates, in the absence of any contract to the contrary, as a revocation of a continuing guarantee, so far as regards future transactions.

132. Liability of two persons primarily liable, not affected by arrangement between them that one shall be surety on other's default. Where two persons contract with a third person to undertake a certain liability, and also contract with each other that one of them shall be liable only on the default of the other, the third person not being a party to such contract, the liability of each of such two persons to the third person under the first contract is not affected by the existence of the second contract, although such third person may have been aware of its existence.

Illustration

A and B make a joint and several promissory note to C. A makes it, in fact, as surety for B, and C knows this at the time when the note is made. The fact that A, to the knowledge of C, made the note as surety for B, is no answer to a suit by C against A upon the note.

133. Discharge of surety by variance in terms of contract. Any variance, made without the surety's consent, in the terms of the contract between the principal [1][debtor] and the creditor, discharges the surety as to transactions subsequent to the variance.

Illustrations

(a) A becomes surety to C for B's conduct as a manager in C's bank. Afterwards, B and C contract, without A's consent, that B's salary shall be raised, and that he shall become liable for one-fourth of the losses on overdrafts. B allows a customer to overdraw, and the bank loses a sum of money. A is discharged from his suretyship by the variance made without his consent, and is not liable to make good this loss.

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(b) A guarantees C against the misconduct of B in an office to which B is appointed by C, and of which the duties are defined by an Act of the Legislature. By a subsequent Act, the nature of the office is materially altered. Afterwards, B misconducts himself. A is discharged by the change from future liability under his guarantee, though the misconduct of B is in respect of a duty not affected by the later Act.

(c) C agrees to appoint B as his clerk to sell goods at a yearly salary, upon A's becoming surety to C for B's duly accounting for moneys received by him as such clerk. Afterwards, without A's knowledge or consent, C and B agree that B should be paid by a commission on the goods sold by him and not by a fixed salary. A is not liable for subsequent misconduct of B.

(d) A gives to C a continuing guarantee to the extent of 3,000 rupees for any oil supplied by C to B on credit. Afterwards B becomes embarrassed, and, without the knowledge of A, B and C contract that C shall continue to supply

[1]Ins. by the Repealing and Amending Act, 1917 (XXIV of 1917), s. 2 and Sch., I.

B with oil for ready money, and that the payments shall be applied to the then existing debts between B and C. A is not liable on his guarantee for any goods supplied after this new arrangement.

(e) C contracts to lend B 5,000 rupees on the 1st March. A guarantees repayment. C pays the 5,000 rupees to B on the 1st January. A is discharged from his liability, as the contract has been varied in as much as C might sue B for the money before the 1st of March.

134. Discharge of surety by release or discharge of principal debtor. The surety is discharged by any contract between the creditor and the principal debtor, by which the principal debtor is released, or by any act or omission of the creditor, the legal consequence of which is the discharge of the principal debtor.

Illustrations

(a) A gives a guarantee to C for goods to be supplied by C to B. C supplies goods to B, and afterwards B becomes embarrassed and contracts with his creditors (including C) to assign to them his property in consideration of their releasing him from their demands. Here B is released from his debt by the contract with C, and A is discharged from his suretyship.

(b) A contracts with B to grow a crop of indigo on A's land and to deliver it to B at a fixed rate, and C guarantees A's performance of this contract. B diverts a stream of water which is necessary for irrigation of A's land and thereby prevents him from raising the indigo. C is no longer liable on his guarantee.

(c) A contracts with B for a fixed price to build a house for B within a stipulated time, B supplying the necessary timber. C guarantees A's performance of the contract. B omits to supply the timber. C is discharged from his suretyship.

135. Discharge of surety when creditor compounds with, gives time to, or agrees not to sue, principal debtor. A contract between the creditor and the principal debtor, by which the creditor makes a composition with, or promises to give time to, or not to sue, the principal debtor discharges the surety, unless the surety assents to such contract.

136. Surety not discharged when agreement made with third person to give time to principal debtor. Where a contract to give time to the principal debtor is made by the creditor with a third person, and not with the principal debtor, the surety is not discharged.

Illustration

C, the holder of an overdue bill of exchange drawn by A as surety for B, and accepted by B, contracts with M to give time to B. A is not discharged.

137. Creditor's forbearance to sue does not discharge surety. Mere forbearance on the part of the creditor to sue the principal debtor or to enforce any other remedy against him does not, in the absence of any provision in the guarantee to the contrary, discharge the surety.

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Illustration

B owes to C a debt guaranteed by A. The debt becomes payable. C does not sue B for a year after the debt has become payable. A is not discharged from his suretyship.

138. Release of one co-surety does not discharge others. Where there are co-sureties, a release by the creditor of one of them does not discharge the others; neither does it free the surety so released from his responsibility to the other sureties.

139. Discharge of surety by creditor's act or omission impairing surety's eventual remedy. If the creditor does any act which is inconsistent with the rights of the surety, or omits to do any act which his duty to the surety requires him to do, and the eventual remedy of the surety himself against the principal debtor is thereby impaired, the surety is discharged.

Illustrations

(a) B contracts to build a ship for C for a given sum, to be paid by installments as the work reaches certain stages. A becomes surety to C for B's due performance of the contract. C, without the knowledge of A, prepays to B the last two instalments. A is discharged by this prepayment.

(b) C lends money to B on the security of a joint and several promissory note made in C's favour by B, and by A as surety for B, together with a bill of sale of B's furniture, which gives power to C to sell the furniture, and apply the proceeds in discharge of the note. Subsequently, C sells the furniture, but, owing to his misconduct and wilful negligence, only a small price is realized. A is discharged from liability on the note.

(c) A puts M as apprentice to B, and gives a guarantee to B for M's fidelity. B promises on his part that he will, at least once a month, see M make up the cash. B omits to see this done as promised, and M embezzles. A is not liable to B on his guarantee.

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140. Rights of surety on payment or performance. Where a guaranteed debt has become due, or default of the principal debtor to perform a guaranteed duty has taken place, the surety, upon payment or performance of all that he is liable for, is invested with all the rights which the creditor had against the principal debtor.

141. Surety's right to benefit of creditor's securities. A surety is entitled to the benefit of every security which the creditor has against the principal debtor at the time when the contract of suretyship is entered into, whether the surety knows of the existence of such security or not; and, if the creditor loses, or, without the consent of the surety, parts with such security, the surety is discharged to the extent of the value of the security.

Illustrations

(a) C advances to B, his tenant, 2,000 rupees on the guarantee of A. C has also, a further security for the 2,000 rupees by a mortgage of B's furniture. C cancels the mortgage. B becomes insolvent, and C sues A on his guarantee. A is discharged from liability to the amount of the value of the furniture.

(b) C, a creditor, whose advance to B is secured by a decree, receives also a guarantee for that advance from A. C afterwards takes B's goods in execution under the decree, and then, without the knowledge of A, withdraws the execution. A is discharged.

(c) A, as surety for B, makes a bond jointly with B to C, to secure a loan from C to B. Afterwards, C obtains from B a further security for the same debt. Subsequently, C gives up the further security. A is not discharged.

142. Guarantee obtained by misrepresentation invalid. Any guarantee which has been obtained by means of misrepresentation made by the creditor, or with his knowledge and assent, concerning a material part of the transaction, is invalid.

143. Guarantee obtained by concealment invalid. Any guarantee which the creditor has obtained by means of keeping silence as to material circumstances is invalid.

Illustrations

(a) A engages B as clerk to collect money for him. B fails to account for some of his receipts, and A in consequence calls upon him to furnish security for his duly accounting. C gives his guarantee for B's duly accounting. A does not acquaint C with B's previous conduct. B afterwards makes default. The guarantee is invalid.

(b) A guarantees to C payment for iron to be supplied by him to B to the amount of 2,000 tons. B and C have privately agreed that B should pay five rupees per ton beyond the market price, such excess to be applied in liquidation of an old debt. This agreement is concealed from A. A is not liable as a surety.

144. Guarantee on contract that creditor shall not act on it until co-surety joins. Where a person gives a guarantee upon a contract that the creditor shall not act upon it until another person has joined in it as co-surety, the guarantee is not valid if that other person does not join.

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145. Implied promise to indemnify surety. In every contract of guarantee there is an implied promise by the principal debtor to indemnify the surety; and the surety is entitled to recover from the principal debtor whatever sum he has rightfully paid under the guarantee, but no sums which he has paid wrongfully.

Illustrations

(a) B is indebted to C, and A is surety for the debt. C demands payment from A, and on his refusal sues him for the amount. A defends the suit, having reasonable grounds for doing so, but is compelled to pay the amount of the debt with costs. He can recover from B the amount paid by him for costs, as well as the principal debt.

(b) C lends B a sum of money, and A, at the request of B, accepts a bill of exchange drawn by B upon A to secure the amount. C, the holder of the bill, demands payment of it from A, and, on A's refusal to pay, sues him upon the bill. A, not having reasonable grounds for so doing, defends the suit, and has

to pay the amount of the bill and costs. He can recover from B the amount of the bill, but not the sum paid for costs, as there was no real ground for defending the action.

(c) A guarantees to C, to the extent of 2,000 rupees, payment for rice to be supplied by C to B. C supplies to B rice to a less amount than 2,000 rupees, but obtains from A payment of the sum of 2,000 rupees in respect of the rice supplied. A cannot recover from B more than the price of the rice actually supplied.

146. Co-sureties liable to contribute equally. Where two or more persons are co-sureties for the same debt or duty, either jointly or severally, and whether under the same or different contracts, and whether with or without the knowledge of each other, the co-sureties, in the absence of any contract to the contrary, are liable, as between themselves, to pay each an equal share of the whole debt, or of that part of it which remains unpaid by the principal debtor.

Illustrations

(a) A, B and C are sureties to D for the sum of 3,000 rupees lent to E. E makes default in payment. A, B and C are liable, as between themselves, to pay 1,000 rupees each.

(b) A, B and C are sureties to D for the sum of 1,000 rupees lent to E, and there is a contract between A, B and C that A is to be responsible to the extent of one-quarter, B to the extent of one-quarter and C to the extent of one-half. E makes default in payment. As between the sureties, A is liable to pay 250 rupees, B 250 rupees, and C 500 rupees.

147. Liability of co-sureties bound in different sums. Co-sureties who are bound in different sums are liable to pay equally as far as the limits of their respective obligations permit.

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(a) A, B and C, as sureties for D, enter into three several bonds, each in a different penalty, namely, A in the penalty of 10,000 rupees, B in that of 20,000 rupees, C in that of 40,000 rupees, conditioned for D's duly accounting to E. D makes default to the extent of 30,000 rupees. A,B and C are each liable to pay 10,000 rupees.

(b) A, B and C, as sureties for D, enter into three several bonds, each in a different penalty, namely, A in the penalty of 10,000 rupees, B in that of 20,000 rupees, C in that of 40,000 rupees, conditioned for D's duly accounting to E. D makes default to the extent of 40,000 rupees. A is liable to pay 10,000 rupees, and B and C 15,000 rupees each.

(c) A, B and C, as sureties for D, enter into three several bonds, each in a different penalty, namely, A in the penalty of 10,000 rupees, B in that of 20,000 rupees, C in that of 40,000 rupees, conditioned for D's duly accounting to E. D makes default to the extent of 70,000 rupees. A, B and C have to pay each the full penalty of his bond.

CHAPTER IX
OF BAILMENT

148. "Bailment", "bailor", and "bailee" defined. A "bailment" is the delivery of goods by one person to another for some purpose, upon a contract that they shall, when the purpose is accomplished, be returned or otherwise disposed of according to the directions of the person delivering them. The person delivering the goods is called the "bailor". The person to whom they are delivered is called the "bailee".

Explanation.—If a person already in possession of the goods of another contracts to hold them as a bailee, he thereby becomes the bailee, and the owner becomes the bailor, of such goods although they may not have been delivered by way of bailment.

149. Delivery to bailee how made. The delivery to the bailee may be made by doing anything which has the effect of putting the goods in the possession of the intended bailee or of any person authorized to hold them on his behalf.

150. Bailor's duty to disclose faults in goods bailed. The bailor is bound to disclose to the bailee faults in the goods bailed, of which the bailor is aware, and which materially interfere with the use of them, or expose the bailee to extraordinary risks; and if he does not make such disclosure, he is responsible for damage arising to the bailee directly from such faults.

If the goods are bailed for hire, the bailor is responsible for such damage, whether he was or was not aware of the existence of such faults in the goods bailed.

Illustrations

(a) A lends a horse, which he knows to be vicious, to B. He does not disclose the fact that the horse is vicious. The horse runs away. B is thrown and injured. A is responsible to B for damage sustained.

(b) A hires a carriage of B. The carriage is unsafe, though B is not aware of it, and A is injured. B is responsible to A for the injury.

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151. Care to be taken by bailee. In all cases of bailment the bailee is bound to take as much care of the goods bailed to him as a man of ordinary prudence would, under similar circumstances, take of his own goods of the same bulk, quality and value as the goods bailed.

152. Bailee when not liable for loss, etc., of thing bailed. The bailee, in the absence of any special contract, is not responsible for the loss, destruction or deterioration of the thing bailed, if he has taken the amount of care of it described in section 151.

153. Termination of bailment by bailee's act inconsistent with conditions. A contract of bailment is avoidable at the option of the bailor, if the bailee does any act with regard to the goods bailed, inconsistent with the conditions of the bailment.

Illustration

A lets to B, for hire, a horse for his own riding. B drives the horse in his carriage. This is, at the option of A, a termination of the bailment.

154. Liability of bailee making unauthorized use of goods bailed. If the bailee makes any use of the goods bailed, which is not according to the conditions of the bailment, he is liable to make compensation to the bailor for any damage arising to the goods from or during such use of them.

Illustrations

(a) A lends a horse to B for his own riding only. B allows C, a member of his family, to ride the horse. C rides with care, but the horse accidentally falls and is injured. B is liable to make compensation to A for the injury done to the horse.

(b) A hires a horse in [1][Karachi] from B expressly to march to [1][Hyderabad]. A rides with due care, but marches to [1][Khairpur] instead. The horse accidentally falls and is injured. A is liable to make compensation to B for the injury to the horse.

155. Effect of mixture, with bailor's consent, of his goods with bailee's. If the bailee, with the consent of the bailor, mixes the goods of the bailor with his own goods, the bailor and the bailee shall have an interest, in proportion to their respective shares, in the mixture thus produced.

156. Effect of mixture, without bailor's consent, when the goods can be separated. If the bailee, without the consent of the bailor, mixes the goods of the bailor with his own goods, and the goods can be separated or divided, the property in the goods remains in the parties respectively; but the bailee is bound to bear the expense of separation or division, and any damage arising from the mixture.

Illustration

A bails 100 bales of cotton marked with a particular mark to B, without A's consent mixes the 100 bales with other bales of his own, bearing a different mark. A is entitled to have his 100 bales returned, and B is bound to bear all the expense incurred in the separation of the bailes, and any other incidental damage.

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157. Effect of mixture, without bailor's consent, when the goods cannot be separated. If the bailee, without the consent of the bailor, mixes the goods of the bailor with his own goods, in such a manner that it is impossible to separate the goods bailed from the other goods and deliver them back, the bailor is entitled to be compensated by the bailee for the loss of the goods.

Illustration

A bails a barrel of Cape flour worth Rs. 45 to B. B, without A's consent mixes the flour with country flour of his own, worth only Rs. 25 a barrel. B must compensate A for the loss of his flour.

158. Repayment by bailor of necessary expenses. Where, by the conditions of the bailment, the goods are to be kept or to be carried, or to have work done upon them by the bailee for the bailor, and the bailee is to receive no remuneration, the bailor shall repay to the bailee the necessary expenses incurred by him for the purpose of the bailment.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s.3 and 2nd Sch., (with effect from the 14th October, 1955).

159. Restoration of goods lent gratuitously. The lender of a thing for use may at any time require its return, if the loan was gratuitous, even though he lent it for a specified time or purpose. But, if, on the faith of such loan made for a specified time or purpose, the borrower has acted in such a manner that the return of the thing lent before the time agreed upon would cause him loss exceeding the benefit actually derived by him from the loan, the lender must, if he compels the return, indemnify the borrower for the amount in which the loss so occasioned exceeds the benefit so derived.

160. Return of goods bailed on expiration of time or accomplishment of purpose. It is the duty of the bailee to return, or deliver according to the bailor's directions, the goods bailed, without demand, as soon as the time for which they were bailed has expired, or the purpose for which they were bailed has been accomplished.

161. Bailee's responsibility when goods are not duly returned. If, by the default of the bailee, the goods are not returned, delivered or tendered at the proper time, he is responsible to the bailor for any loss, destruction or deterioration of the goods from that time.

162. Termination of gratuitous bailment by death. A gratuitous bailment is terminated by the death either of the bailor or of the bailee.

163. Bailor entitled to increase or profit from goods bailed. In the absence of any contract to the contrary, the bailee is bound to deliver to the bailor, or according to his directions, any increase or profit which may have accrued from the goods bailed.

Illustration

A leaves a cow in the custody of B to be taken care of. The cow has a calf B is bound to deliver the calf as well as the cow to A.

164. Bailor's responsibility to bailee. The bailor is responsible to the bailee for any loss which the bailee may sustain by reason that the bailor was not entitled to make the bailment, or to receive back the goods or to give directions, respecting them.

165. Bailment by several joint owners. If several joint owners of goods bail them, the bailee may deliver them back to, or according to the directions of, one joint owner without the consent of all, in the absence of any agreement to the contrary.

166. Bailee not responsible on re-delivery to bailor without title. If the bailor has no title to the goods, and the bailee, in good faith, delivers them back to, or according to the directions of, the bailor, the bailee is not responsible to the owner in respect of such delivery.

167. Right of third person claiming goods bailed. If a person, other than the bailor, claims goods bailed, he may apply to the Court to stop the delivery of the goods to the bailor, and to decide the title to the goods.

168. Right of finder of goods; may sue for specific reward offered. The finder of goods has no right to sue the owner for compensation for trouble and expense voluntarily incurred by him to preserve the goods and to find out the owner; but he may retain the goods against the owner until he receives such compensation; and, where the owner has offered a specific reward for the return of goods lost, the finder may sue for such reward, and may retain the goods until he receives it.

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169. When finder of thing commonly on sale may sell it. When a thing which is commonly the subject of sale is lost, if the owner cannot with reasonable diligence be found, or if he refuses, upon demand, to pay the lawful charges of the finder, the finder may sell it—

(1) when the thing is in danger of perishing or of losing the greater part of its value, or,

(2) when the lawful charges of the finder, in respect of the thing found, amount to two-thirds of its value.

170. Bailee's particular lien. Where the bailee has, in accordance with the purpose of the bailment, rendered any service involving the exercise of labour or skill in respect of the goods bailed, he has, in the absence of a contract to the contrary, a right to retain such goods until he receives due remuneration for the services he has rendered in respect of them.

Illustrations

(a) A delivers a rough diamond to B, a jeweller, to be cut and polished, which is accordingly done. B is entitled to retain the stone till he is paid for the services he has rendered.

(b) A gives cloth to B, a tailor, to make into a coat. B promises A to deliver the coat as soon as it is finished, and to give a three months' credit for the price. B is not entitled to retain the coat until he is paid.

171. General lien of bankers, factors, wharfingers, attorneys and policy brokers. Bankers, factors, wharfingers, attorneys of a High Court and policy-brokers may, in the absence of a contract to the contrary, retain, as a security for a general balance of account, any goods bailed to them; but no other persons have a right to retain, as a security for such balance, goods bailed to them, unless there is an express contract to that effect.

Bailments of Pledges

172. "Pledge," "pawnor", and "pawnee" defined. The bailment of goods as security for payment of a debt or performance of a promise is called "pledge". The bailor is in this case called the "pawnor". The bailee is called the "pawnee".

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173. Pawnee's right of retainer. The pawnee may retain the goods pledged, not only for payment of the debt or the performance of the promise, but for the interest of the debt, and all necessary expenses incurred by him in respect of the possession or for the preservation of the goods pledged.

174. Pawnee not to retain for debt or promise other than that for which goods pledged. **Presumption incase of subsequent advances.** The pawnee shall not, in the absence of a contract to that effect retain the goods pledged for any debt or promise other than the debt or promise for which they are pledged; but such contract, in the absence of anything to the contrary, shall be presumed in regard to subsequent advances made by the pawnee.

175. Pawnee's right as to extraordinary expenses incurred. The pawnee is entitled to receive from the pawnor extraordinary expenses incurred by him for the preservation of the goods pledged.

176. Pawnee's right where pawnor makes default. If the pawnor makes default in payment of the debt, or performance, at the stipulated time of the promise, in respect of which the goods were

pledged, the pawnee may bring a suit against the pawnor upon the debt or promise, and retain the goods pledged as a collateral security; or he may sell the thing pledged, on giving the pawnor reasonable notice of the sale.

If the proceeds of such sale are less than the amount due in respect of the debt or promise, the pawnor is still liable to pay the balance. If the proceeds of the sale are greater than the amount so due, the pawnee shall pay over the surplus to the pawnor.

177. Defaulting pawnors' right to redeem. If a time is stipulated for the payment of the debt, or performance of the promise, for which the pledge is made, and the pawnor makes default in payment of the debt or performance of the promise at the stipulated time, he may redeem the goods pledged at any subsequent time before the actual sale of them; but he must, in that case, pay, in addition, any expenses which have arisen from his default.

[1][**178. Pledge by mercantile agent**. Where a mercantile agent is, with the consent of the owner, in possession of goods or the documents of title to goods, any pledge made by him, when acting in the ordinary course of business of a mercantile agent, shall be as valid as if he were expressly authorized by the owner of the goods to make the same; provided that the pawnee acts in good faith and has not at the time of the pledge notice that the pawnor has not authority to pledge.

Explanation.—In this section, the expressions 'mercantile agent' and 'documents of title' shall have the meanings assigned to them in the Sale of Goods Act, 1930 (III of 1930).

178A. Pledge by person in possession under voidable contract. When the pawnor has obtained possession of the goods pledged by him under a contract voidable under section 19 or section 19A, but the contract has not been rescinded at the time of the pledge, the pawnee acquires a good title to the goods, provided he acts in good faith and without notice of the pawnor's defect of title.]

179. Pledge where pawnor has only a limited interest. Where a person pledges goods in which he has only a limited interest, the pledge is valid to the extent of that interest.

Suits by Bailees or Bailors against Wrong-doers

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180. Suit by bailor or bailee against wrongdoer. If a third person wrongfully deprives the bailee of the use or possession of the goods bailed, or does them any injury, the bailee is entitled to use such remedies as the owner might have used in the like case if no bailment had been made; and either the bailor or the bailee may bring a suit against a third person for such deprivation or injury.

181. Apportionment of relief or compensation obtained by such suits. Whatever is obtained by way of relief or compensation in any such suit shall, as between the bailor and the bailee, be dealt with according to their respective interests.

[1]Subs. by Act No. IV of 1930, s. 2.

CHAPTER X
AGENCY

Appointment and Authority of Agents

182. "Agent" and "principal" defined. An "agent" is a person employed to do any act for another or to represent another in dealings with third persons. The person for whom such act is done, or who is so represented, is called the "principal".

183. Who may employ agent. Any person who is of the age of majority according to the law to which he is subject, and who is of sound mind, may employ an agent.

184. Who may be an agent. As between the principal and third persons any person may become an agent, but no person who is not of the age of majority and of sound mind can become an agent, so as to be responsible to his principal according to the provisions in that behalf herein contained.

185. Consideration not necessary. No consideration is necessary to create an agency.

186. Agent's authority may be expressed or implied. The authority of an agent may be expressed or implied.

187. Definitions of express and implied authority. An authority is said to be express when it is given by words spoken or written. An authority is said to be implied when it is to be inferred from the circumstances of the case; and things spoken or written, or the ordinary course of dealing, may be accounted circumstances of the case.

Illustration

A owns a shop in [1][Quetta], living himself in [1][Karachi], and visiting the shop occasionally. The shop is managed by B, and he is in the habit of ordering goods from C in the name of A for the purposes of the shop, and of paying for them out of A's funds with A's knowledge. B has an implied authority from A to order goods from C in the name of A for the purposes of the shop.

188. Extent of agent's authority. An agent having an authority to do an act has authority to do every lawful thing which is necessary in order to do such act.

An agent having an authority to carry on a business has authority to do every lawful thing necessary for the purpose, or usually done in the course of conducting such business.

Illustrations

(a) A is employed by B, residing in London, to recover at [2][Karachi] a debt due to B. A may adopt any legal process necessary for the purpose of recovering the debt, and may give a valid discharge for the same.

(b) A constitutes B his agent to carry on his business of a ship-builder. B may purchase timber and other materials, and hire workmen, for the purposes of carrying on the business.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Sch.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960, s. 3 and 2nd Sch. (with effect from the 14th October, 1955).

189. Agent's authority in an emergency. An agent has authority, in an emergency, to do all such acts for the purpose of protecting his principal from loss as would be done by a person of ordinary prudence, in his own case, under similar circumstances.

Illustrations

(a) An agent for sale may have goods repaired if it be necessary.

(b) A consigns provisions to B at [1][Lahore], with directions to send them immediately to C at [1][Rawalpindi], B may sell the provisions at [1][Lahore], if they will not bear the journey to [1][Rawalpindi] without spoiling.

Sub-Agents

190. When agent cannot delegate. An agent cannot lawfully employ another to perform acts which he has expressly or impliedly undertaken to perform personally, unless by the ordinary custom of trade a sub-agent may, or, from the nature of the agency, a sub-agent must, be employed.

191. "Sub-agent" defined. A "sub-agent" is a person employed by, and acting under the control of, the original agent in the business of the agency.

192. Representation of principal by sub-agent properly appointed. Where a sub-agent is properly appointed, the principal is, so far as regards third persons, represented by the sub-agent, and is bound by and responsible for his acts, as if he were an agent originally appointed by the principal.

Agent's responsibility for sub-agent. The agent is responsible to the principal for the acts of the sub-agent.

Sub-agent's responsibility. The sub-agent is responsible for his acts to the agent, but not to the principal, except in case of fraud or wilful wrong.

193. Agent's responsibility for sub-agent appointed without authority. Where an agent, without having authority to do so, has appointed a person to act as a sub-agent, the agent stands towards such person in the relation of a principal to an agent, and is responsible for his acts both to the principal and to third persons; the principal is not represented by or responsible for the acts of the person so employed, nor is that person responsible to the principal.

194. Relation between principal and person duly appointed by agent to act in business of agency. Where an agent, holding an express or implied authority to name another person to act for the principal in the business of the agency, has named another person accordingly, such person is not a sub-agent, but an agent of the principal for such part of the business of the agency as is entrusted to him.

Illustrations

(a) A directs B, his solicitor, to sell his estate by auction, and to employ an auctioneer for the purpose. B names C, an auctioneer, to conduct the sale. C is not a sub-agent, but is A's agent for the conduct of the sale.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Sch.

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(b) A authorises B, a merchant in [1][Chittagong], to recover the moneys due to A from C & Co. B instructs D, a solicitor, to take legal proceedings against C & Co. for the recovery of the money. D is not a sub-agent, but is solicitor for A.

195. Agent's duty in naming such person. In selecting such agent for his principal, an agent is bound to exercise the same amount of discretion as a man of ordinary prudence would exercise in his own case; and, if he does this, he is not responsible to the principal for the acts or negligence of the agent so selected.

Illustrations

(a) A instructs B, a merchant, to buy a ship for him. B employs a ship surveyor of good reputation to choose a ship for A. The surveyor makes the choice negligently and the ship turns out to be unseaworthy and is lost. B is not, but the surveyor is, responsible to A.

(b) A consigns goods to B, a merchant, for sale. B in due course, employs an auctioneer in good credit to sell the goods of A, and allows the auctioneer to receive the proceeds of the sale. The auctioneer afterwards becomes insolvent without having accounted for the proceeds. B is not responsible to A for the proceeds.

Ratification

196. Right of person as to acts done for him without his authority. **Effect of ratification**. Where acts are done by one person on behalf of another, but without his knowledge or authority, he may elect to ratify or to disown such acts. If he ratify them, the same effects will follow as if they had been performed by his authority.

197. Ratification may be expressed or implied. Ratification may be expressed or may be implied in the conduct of the person on whose behalf the acts are done.

Illustrations

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(a) A, without authority, buys goods for B. Afterwards B sells them to C on his own account; B's conduct implies a ratification of the purchase made for him by A.

(b) A, without B's authority lends B's money to C. Afterwards B accepts interest on the money from C. B's conduct implies a ratification of the loan.

198. Knowledge requisite for valid ratification. No valid ratification can be made by a person whose knowledge of the facts of the case is materially defective.

199. Effect of ratifying unauthorized act forming part of a transaction. A person ratifying any unauthorised act done on his behalf ratifies the whole of the transaction of which such act fromed a part.

200. Ratification of unauthorized act cannot injure third person. An act done by one person on behalf of another, without such other person's authority, which, if done with authority,

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960, (XXI of 1960), s.3 and 2nd Sch., (w.e.f. 14-10-1955).

would have the effect of subjecting a third person to damages, or of terminating any right or interest of a third person, cannot, by ratification, be made to have such effect.

Illustrations

(a) A, not being authorized thereto by B, demands, on behalf of B, the delivery of a chattel, the property of B, from C, who is in possession of it. This demand cannot be ratified by B, so as to make C liable for damages for his refusal to deliver.

(b) A holds a lease from B, terminable on three months' notice. C, an unauthorized person, gives notice of termination to A. The notice cannot be ratified by B, so as to be binding on A.

Revocation of Authority

201. Termination of agency. An agency is terminated by the principal revoking his authority; or by the agent renouncing the business of the agency; or by the business of the agency being completed ; or by either the principal or agent dying or becoming of unsound mind; or by the principal being adjudicated an insolvent under the provisions of any Act for the time being in force for the relief of insolvent debtors.

202. Termination of agency where agent has an interest in subject matter. Where the agent has himself an interest in the property which forms the subject-matter of the agency, the agency cannot, in the absence of an express contract, be terminated to the prejudice of such interest.

Illustrations

(a) A gives authority to B to sell A's land, and to pay himself, out of the proceeds, the debts due to him from A. A cannot revoke this authority, nor can it be terminated by his insanity or death.

(b) A consigns 1,000 bales of cotton to B, who has made advances to him on such cotton, and desires B to sell the cotton, and to repay himself, out of the price, the amount of his own advances. A cannot revoke this authority, nor is it terminated by his insanity or death.

203. When principal may revoke agent's authority. The principal may, save as is otherwise provided by the last preceding section, revoke the authority given to his agent at any time before the authority has been exercised so as to bind the principal.

204. Revocation where authority has been partly exercised. The principal cannot revoke the authority given to his agent after the authority has been partly exercised so far as regards such acts and obligations as arise from acts already done in the agency.

Illustrations

(a) A authorizes B to buy 1,000 bales of cotton on account of A, and to pay for it out of A's money remaining in B's hands. B buys 1,000 bales of cotton in his own name, so as to make himself personally liable for the price. A cannot revoke B's authority so far as regards payment for the cotton.

(b) A authorizes B to buy 1,000 bales of cotton on account of A, and to pay for it out of A's moneys remaining in B's hands. B buys 1,000 bales of cotton in A's name and so as not to render himself personally liable for the price. A can revoke B's authority to pay for the cotton.

205. Compensation for revocation by principal or renunciation by agent. Where there is an express or implied contract that the agency should be continued for any period of time, the principal must make compensation to the agent, or the agent to the principal, as the case may be, for any previous revocation or renunciation of the agency without sufficient cause.

206. Notice of revocation or renunciation. Reasonable notice must be given of such revocation or renunciation; otherwise the damage thereby resulting to the principal or the agent, as the case may be, must be made good to the one by the other.

207. Revocation and renunciation may be expressed or implied. Revocation and renunciation may be expressed or may be implied in the conduct of the principal or agent respectively.

Illustration

A empowers B to let A's house. Afterwards A lets it himself. This is an implied revocation of B's authority.

208. When termination of agent's authority takes effect as to agent, and as to third persons. The termination of the authority of an agent does not, so far as regards the agent, take effect before it becomes known to him, or, so far as regards third persons, before it becomes known to them.

Illustrations

(a) A directs B to sell goods for him, and agrees to give B five per cent. commission on the price fetched by the goods. A afterwards, by letter, revokes B's authority. B, after the letter is sent, but before he receives it, sells the goods for 100 rupees. The sale is binding on A, and B is entitled to five rupees as his commission.

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(b) A, at [1][Quetta], by letter, directs B to sell for him some cotton lying in a warehouse in [2][Karachi], and afterwards, by letter, revokes his authority to sell, and directs B to send the cotton to [1][Quetta]. B, after receiving the second letter, enters into a contract with C, who knows of the first letter, but not of the second, for the sale to him of the cotton. C pays B the money, with which B absconds. C's payment is good as against A.

(c) A directs B, his agent, to pay certain money to C. A dies, and D takes out probate to his will. B, after A's death, but before hearing of it, pays the money to C. The payment is good as against D, the executor.

209. Agent's duty on termination of agency by principal's death or insanity. When an agency is terminated by the principal dying or becoming of unsound mind, the agent is bound to take, on behalf of the representatives of his late principal, all reasonable steps for the protection and preservation of the interests entrusted to him.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and 2nd Sch.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960, s. 3 and 2nd Sch. (w. e. f. the 14th October, 1955).

210. Termination of sub-agent's authority. The termination of the authority of an agent causes the termination (subject to the rules herein contained regarding the termination of an agent's authority) of the authority of all sub agents appointed by him.

Agent's Duty to Principal

211. Agent's duty in conducting principal's business. An agent is bound to conduct the business of his principal according to the directions given by the principal, or, in the absence of any such directions, according to the custom which prevails in doing business of the same kind at the place where the agent conducts such business. When the agent acts otherwise, if any loss be sustained, he must make it good to his principal, and, if any profit accrues, he must account for it.

Illustrations

(a) A, an agent engaged in carrying on for B a business, in which it is the custom to invest from time to time, at interest, the moneys which may be in hand, omits to make such investment. A must make good to B the interest usually obtained by such investments.

(b) B, a broker, in whose business it is not the custom to sell on credit, sells goods of A on credit to C, whose credit at the time was very high. C, before payment, becomes insolvent. B must make good the loss to A.

212. Skill and diligence required from agent. An agent is bound to conduct the business of the agency with as much skill as is generally possessed by persons engaged in similar business, unless the principal has notice of his want of skill. The agent is always bound to act with reasonable diligence, and to use such skill as he possesses; and to make compensation to his principal in respect of the direct consequences of his own neglect, want of skill or misconduct, but not in respect of loss or damage which are indirectly or remotely caused by such neglect, want of skill or misconduct.

Illustrations

(a) A, a merchant in [1][Islamabad], has an agent, B, in London to whom a sum of money is paid on A's account, with orders to remit. B retains the money for a considerable time. A, in and consequence of not receiving the money, becomes insolvent. B is liable for the money and interest from the day on which it ought to have been paid, according to the usual rate, and for any further direct loss—as e.g., by variation of rate of exchange—but not further.

(b) A, an agent for the sale of goods, having authority to sell on credit, sells to B on credit, without making the proper and usual enquiries as to the solvency of B. B, at the time of such sale, is insolvent. A must make compensation to his principal in respect of any loss thereby sustained.

(c) A, an insurance-broker employed by B to effect an insurance on a ship, omits to see that the usual clauses are inserted in the policy. The ship is afterwards lost. In consequence of the omission of the clauses nothing can be recovered from the underwriters. A is bound to make good the loss to B.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Sch.

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(d) A, a merchant in England, directs B, his agent at [1][Karachi], who accepts the agency, to send him 100 bales of cotton by a certain ship. B, having it in his power to send the cotton, omits to do so. The ship arrives safely in England. Soon after her arrival the price of cotton rises. B is bound to make good to A the profit which he might have made by the 100 bales of cotton at the time the ship arrived, but not any profit he might have made by the subsequent rise.

213. Agent's accounts. An agent is bound to render proper accounts to his principal on demand.

214. Agent's duty to communicate with principal. It is the duty of an agent, in cases of difficulty, to use all reasonable diligence in communicating with his principal, and in seeking to obtain his instructions.

215. Right of principal when agent deals, on his own account, in business of agency without principal's consent. If an agent deals on his own account in the business of the agency, without first obtaining the consent of his principal and acquainting him with all material circumstances which have come to his own knowledge on the subject, the principal may repudiate the transaction, if the case shows either that any material fact has been dishonestly concealed from him by the agent, or that the dealings of the agent have been disadvantageous to him.

Illustrations

(a) A directs B to sell A's estate. B buys the estate for himself in the name of C. A, on discovering that B has bought the estate for himself, may repudiate the sale, if he can show that B has dishonestly concealed any material fact, or that the sale has been disadvantageous to him.

(b) A directs B to sell A's estate. B, on looking over the estate before selling it, finds a mine on the estate which is unknown to A. B informs A that he wishes to buy the estate for himself, but conceals the discovery of the mine. A allows B to buy in ignorance of the existence of the mine. A, on discovering that B knew of the mine at the time he bought the estate, may either repudiate or adopt the sale at his option.

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216. Principal's right to benefit gained by agent dealing on his own account in business of agency. If an agent, without the knowledge of his principal, deals in the business of the agency on his own account instead of on account of his principal, the principal is entitled to claim from the agent any benefit which may have resulted to him from the transaction.

Illustration

A directs B, his agent, to buy a certain house for him. B tells A it cannot be bought, and buys the house for himself. A may, on discovering that B has bought the house, compel him to sell it to A at the price he gave for it.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (w.e.f. 14-10-1955).

217. Agent's right of retainer out of sums received on principal's account. An agent may retain, out of any sums received on account of the principal in the business of the agency, all moneys due to himself in respect of advances made or expenses properly incurred by him in conducting such business, and also such remuneration as may be payable to him for acting as agent.

218. Agent's duty to pay sums received for principal. Subject to such deductions, the agent is bound to pay to his principal all sums received on his account.

219. When agent's remuneration becomes due. In the absence of any special contract, payment for the performance of any act is not due to the agent until the completion of such act; but an agent may detain moneys received by him on account of goods sold, although the whole of the goods consigned to him for sale may not have been sold, or although the sale may not be actually complete.

220. Agent not entitled to remuneration for business misconducted. An agent who is guilty of misconduct in the business of the agency is not entitled to any remuneration in respect of that part of the business which he has misconducted.

Illustrations

(a) A employs B to recover 1,00,000 rupees from C, and to lay it out on good security. B recovers the 1,00,000 rupees and lays out 90,000 rupees on good security, but lays out to 10,000 rupees on security which he ought to have known to be bad, whereby A loses 2,000 rupees. B is entitled to remuneration for recovering the 1,00,000 rupees and for investing the 90,000 rupees. He is not entitled to any remuneration for investing the 10,000 rupees, and he must make good the 2,000 rupees to B.

(b) A employs B to recover 1,000 rupees from C. Through B's misconduct the money is not recovered. B is entitled to no remuneration for his services, and must make good the loss.

221. Agent's lien on principal's property. In the absence of any contract to the contrary, an agent is entitled to retain goods, papers and other property, whether moveable or immoveable, of the principal received by him, until the amount due to himself for commission, disbursements and services in respect of the same has been paid or accounted for to him.

Principal's Duty to Agent

222. Agent to be indemnified against consequences of lawful acts. The employer of an agent is bound to indemnify him against the consequences of all lawful acts done by such agent in exercise of the authority conferred upon him.

Illustrations

(a) B, at Singapur, under instructions from A of [1][Chittagong] contracts with C to deliver certain goods to him. A does not send the goods to B, and C sues B for breach of contract. B informs A of the suit, and A authorizes him to defend the suit. B defends the suit, and is compelled to pay damages and costs, and incurs expenses. A is liable to B for such damages, costs and expenses.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (w. e. f. the 14th October 1955).

(b) B, a broker at [1][Chittagong], by the orders of A, a merchant there contracts with C for the purchase of 10 casks of oil for A. Afterwards A refuses to receive the oil, and C sues B. B informs A, who repudiates the contract altogether. B defends, but unsuccessfully, and has to pay damages and costs and incurs expenses. A is liable to B for such damages, costs and expenses.

223. Agent to be indemnified against consequences of acts done in good faith. Where one person employs another to do an act, and the agent does the act in good faith, the employer is liable to indemnify the agent against the consequences of that act, though it cause an injury to the rights of third persons.

Illustrations

(a) A, a decree-holder and entitled to execution of B's goods, requires the officer of the Court to seize certain goods, representing them to be the goods of B. The officer seizes the goods, and is sued by C, the true owner of the goods. A is liable to indemnify the officer for the sum which he is compelled to pay to C, in consequence of obeying A's directions.

(b) B, at the request of A, sells goods in the possession of A, but which A had no right to dispose of. B does not know this, and hands over the proceeds of the sale to A. Afterwards C, the true owner of the goods, sues B and recovers the value of the goods and costs. A is liable to indemnify B for what he has been compelled to pay to C and for B's own expenses.

224. Non-liability of employer of agent to do a criminal act. Where one person employs another to do an act which is criminal, the employer is not liable to the agent, either upon an express or an implied promise, to indemnify him against the consequences of that Act.

Illustrations

(a) A employs B to beat C, and agrees to indemnify him against all consequences of the act. B thereupon beats C, and has to pay damages to C for so doing. A is not liable to indemnify B for those damages.

(b) B, the proprietor of a newspaper, publishes, at A's request, a libel upon C in the paper, and A agrees to indemnify B against the consequences of the publication, and all costs and damages of any action in respect thereof. B is sued by C and has to pay damages, and also incurs expenses. A is not liable to B upon the indemnity.

225. Compensation to agent for injury caused by principal's neglect. The principal must make compensation to his agent in respect of injury caused to such agent by the principal's neglect or want of skill.

Illustration

A employs B as a bricklayer in building a house, and puts up the scaffolding himself. The scaffolding is unskillfully put up, and B is in consequence hurt. A must make compensation to B.

[1]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (w. e. f. the 14th October 1955).

Effect of agency on contract with third persons

226. Enforcement and consequences of agent's contracts. Contracts entered into through an agent, and obligations arising from acts done by an agent, may be enforced in the same manner, and will have the same legal consequences, as if the contracts had been entered into and the acts done by the principal in person.

Illustrations

(a) A buys goods from B, knowing that he is an agent for their sale, but not knowing who is the principal. B's principal is the person entitled to claim from A the price of the goods, and A cannot, in a suit by the principal, set off against that claim a debt due to himself from B.

(b) A, being B's agent with authority to receive money on his behalf, receives from C a sum of money due to B. C is discharged of his obligation to pay the sum in question to B.

227. Principal how far bound, when agent exceeds authority. When an agent does more than he is authorized to do, and when the part of what he does, which is within his authority, can be separated from the part which is beyond his authority, so much only of what he does as is within his authority is binding as between him and his principal.

Illustration

A, being owner of a ship and cargo, authorizes B to procure an insurance for 4,000 rupees on the ship. B procures a policy for 4,000 rupees on the ship, and another for the like sum on the cargo. A is bound to pay the premium for the policy on the ship, but not the premium for the policy on the cargo.

228. Principal not bound when excess of agent's authority is not separable. Where an agent does more than he is authorized to do, and what he does beyond the scope of his authority cannot be separated from what is within it, the principal is not bound to recognize the transaction.

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Illustration

A authorizes B to buy 500 sheep for him. B buys 500 sheep and 200 Iambs for one sum of 6,000 rupees. A may repudiate the whole transaction.

229. Consequences of notice given to agent. Any notice given to or information obtained by the agent, provided it be given or obtained in the course of the business transacted by him for the principal, shall, as between the principal and third parties, have the same legal consequences as if it had been given to or obtained by the principal.

Illustrations.

(a) A is employed by B to buy from C certain goods, of which C is the apparent owner, and buys them accordingly. In the course of the treaty for the sale, A learns that the goods really belonged to D, but B is ignorant of that fact, B is

not entitled to set off a debt owing to him from C against the price of the goods.

(b) A is employed by B to buy from C goods of which C is the apparent owner. A was, before he was so employed, a servant of C, and then learnt that the goods really belonged to D, but B is ignorant of that fact. In spite of the knowledge of his agent, B may set off against the price of the goods a debt owing to him from C.

230. Agent cannot personally enforce, nor be bound by, contracts on behalf of principal. In the absence of any contract to that effect, an agent cannot personally enforce contracts entered into by him on behalf of his principal, nor is he personally bound by them.

Presumption of contract to contrary. Such a contract shall be presumed to exist in the following cases :—

(1) where the contract is made by an agent for the sale or purchase of goods for a merchant resident abroad:

(2) where the agent does not disclose the name of his principal :

(3) where the principal, though disclosed, cannot be sued.

231. Rights of parties to a contract made by agent not disclosed. If an agent makes a contract with a person who neither knows, nor has reason to suspect, that he is an agent, his principal may require the performance of the contract; but the other contracting party has, as against the principal, the same rights as he would have had as against the agent if the agent had been principal.

If the principal discloses himself before the contract is completed, the other contracting party may refuse to fulfill the contract, if he can show that, if he had known who was the principal in the contract, or if he had known that the agent was not a principal, he would not have entered into the contract.

232. Performance of contract with agent supposed to be principal. Where one man makes a contract with another, neither knowing nor having reasonable ground to suspect that the other is an agent, the principal, if he requires the performance of the contract, can only obtain such performance subject to the rights and obligations subsisting between the agent and the other party to the contract.

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Illustration

A, who owes 500 rupees to B, sells 1,000 rupees, worth of rice to B. A is acting as agent for C in the transaction, but B has no knowledge nor reasonable ground of suspicion that such is the case. C cannot compel B to take the rice without allowing him to set off A's debt.

233. Right of person dealing with agent personally liable. In cases where the agent is personally liable, a person dealing with him may hold either him or his principal, or both of them, liable.

Illustration

A enters into a contract with B to sell him 100 bales of cotton, and afterwards discovers that B was acting as agent for C. A may sue either B or C, or both, for the price of the cotton.

234. Consequence of inducing agent or principal to act on belief that principal or agent will be held exclusively liable. When a person who has made a contract with an agent induces the agent to act upon the belief that the principal only will be held liable, or induces the principal to act

upon the belief that the agent only will beheld liable, he cannot afterwards hold liable the agent or principal respectively.

235. Liability of pretended agent. A person untruly representing himself to be the authorized agent of another, and thereby inducing a third person to deal with him as such agent, is liable, if his alleged employer does not ratify his acts, to make compensation to the other in respect of any loss or damage which he has incurred by so dealing.

236. Person falsely contracting as agent not entitled to performance. A person with whom a contract has been entered into in the character of agent is not entitled to require the performance of it if he was in reality acting, not as agent, but on his own account.

237. Liability of principal inducing belief that agent's unauthorized acts were authorized. When an agent has, without authority, done acts or incurred obligations to third persons on behalf of his principal, the principal is bound by such acts or obligations if he has by his words or conduct induced such third persons to believe that such acts and obligations were within the scope of the agent's authority.

Illustrations

(a) A consigns goods to B for sale, and gives him instructions not to sell under a fixed price. C, being ignorant of B's instructions, enters into a contract with B to buy the goods at a price lower than the reserved price. A is bound by the contract.

(b) A entrusts B with negotiable instruments endorsed in blank. B sells them to C in violation of private orders from A. The sale is good.

238. Effect, on agreement, of misrepresentation or fraud by agent. Misrepresentations made, or frauds committed, by agents acting in the course of their business for their principals, have the same effect on agreements made by such agents as if such misrepresentations or frauds had been made or committed by the principals; but misrepresentations made, or frauds committed, by agents, in matters which do not fall within their authority, do not affect their principals.

Illustrations

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(a) A, being B's agent for the sale of goods, induces C to buy them by a misrepresentation, which he was not authorized by B to make. The contract is voidable, as between B and C, at the option of C.

(b) A, the captain of B's ship, signs bills of lading without having received on board the goods mentioned therein. The bills of lading are void as between B and the pretended consignor.

CHAPTER XI

[1][* * * * * * *]

SCHEDULE

[2][* * * * * * *]

Date: 12-02-2025

[1]Rep. by the Partnership Act, 1932 (IX of 1932), s. 73 and 2nd Sch.
[2]Rep. by the Repealing and Amending Act, 1914 (X of 1914), s. 3 and 2nd Sch.

THE CO-OPERATIVE FARMING ACT, 1976

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THE CO-OPERATIVE FARMING ACT, 1976

ACT NO. LII OF 1976

[*19th July, 1976*]

An Act to provide for the formation, working and promotion of co-operative farming

WHEREAS it is expedient to provide for the formation, working and promotion of co-perative farming and setting up of allied agro-based industries on the basis of self-help and mutual aid amongst the farmers and matters ancillary thereto or connected therewith ;

AND WHEREAS the Provincial Assemblies of the Provinces of Baluchistan, the North-West Frontier, the Punjab and Sind have passed resolutions under clause (1) of Article 144 of the Constitution of the Islamic Republic of Pakistan to the effect that Parliament may, by law, regulate the formation, working and promotion of co-operative farming and setting up of allied agro-based industries on the basis of self-help and mutual aid amongst the farmers ;

It is hereby enacted as follows:—

CHAPTER I
PRELIMINARY

1. Shot title, extent and commencement.—(1) This Act may be called the Co-operative Farming Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Act to override other laws.—The provisions of this Act and the rules shall have effect notwithstanding anything contained in the Co-operative Societies Act, 1925 (Act VII of 1925), or in any other law for the time being in force relating to the rights of landlords and tenants.

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3. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) 'agricultural year' has the same meaning as in the West Pakistan Land Revenue Act, 1967 (W. P. Act No. XVII of 1967) ;

(b) 'bye-laws' means bye-laws registered under this Act ;

(c) 'committee' means the managing committee of a society ;

(d) 'co-operative farm' means the total land pooled by the members of a society ;

(e) 'District Co-operative Council' means a District Co-operative Council formed under section 39 ;

(f) 'District Co-operative Federation' means a District Co-operative Federation of Co-operative Farming Societies formed under section 35 ;

(g) 'member' means a member of a society ;

(h) 'National Co-operative Council' means the National Co-operative Council constituted under section 43 ;

(i) 'nation building department' means the departments which the Provincial Government may, by notification in the official Gazette, designate as such for the purposes of this Act ;

(j) 'net profits' means net profits as defined in sub-section (3) of section 87C of the Companies Act, 1913 (VII of 1913) ;

(k) 'office-bearers' means the Chairman, Vice-Chairman, Secretary and Treasurer of a Committee ;

(l) 'prescribed' means prescribed by rules ;

(m) 'produce index units' means the measures in terms of which the comparative productivity of an area of land of a particular kind in a particular assessment circle or area is computed and expressed for the purposes of the schemes relating to the re-settlement of displaced persons on land and, in respect of any assessment circle or area where no such units have been determined, such measures as may be prescribed ;

(n) 'produce income' means the total income derived from all earnings of the co-operative farm before deducting any expenses ;

(o) 'Provincial Co-operative Council' means a Provincial Co-operative Council formed under section 41;

(p) 'Provincial Co-operative Federation' means a Provincial Co-operative Federation of Co-operative Farming Societies formed under section 37 ;

(q) 'Registrar' means a person appointed to perform the duties of Registrar of Co-operative Societies under the Co-operative Societies Act, 1925 (Act VII of 1925), and includes an officer authorised by Government to perform the duties of Registrar under this Act ;

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(r) 'rules' means rules made under this Act ;

(s) 'society' means a co-operative farming society registered under this Act ;

(t) 'tenant' means tenant as defined in the Punjab Tenancy Act, 1887 (Punjab Act No. XVI of 1887) ; and

(u) 'value' in relation to land, means the value as evaluated under section 13.

CHAPTER II
REGISTRATION OF SOCIETIES

4. Conditions of registration.—(1) A co-operative farming society which fulfils the following conditions may apply to the Registrar for registration under this Act, namely :—

(a) it consists of not less than twenty members ;

(b) the total land pooled by its members is—

(i) in the case of the Provinces of Baluchistan, the Punjab and Sind, not less than five hundred acres ; and

(ii) in case of the North-West Frontier Province, not less than three hundred acres ; and

(c) the land pooled by its members forms one contiguous farm.

(2) An application under sub-section (1) shall be made in such form, and be accompanied by such documents, as may be prescribed.

5. Procedure of registration.—If, after making such enquiry as he considers necessary, the Registrar is satisfied that a co-operative farming society applying for registration is eligible for registration under this Act, and that the bye-laws proposed to be framed by it are not inconsistent with any of the provisions of this Act, or the rules, he shall register it, and its bye-laws, within fifteen days from the receipt of its application.

6. Evidence of registration.—A certificate of registration signed by the Registrar shall be conclusive evidence that the society mentioned therein is duly registered, unless it is proved that the registration of the society has been cancelled.

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7. Amendment of the bye-laws of a society.—(1) No amendment of the bye-laws of a society shall be effective unless it is registered with the Registrar.

(2) If the Registrar is satisfied that an amendment of the bye-laws proposed to be made by a society is not inconsistent with any of the provisions of this Act or the rules he shall register the amendment.

CHAPTER III
MEETINGS

8. General meeting.—Every society shall call an annual general meeting of its members and not less than one other general meeting in an agricultural year.

9. Special general meeting.—(1) On a requisition signed by not less than one-fifth of the total number of members of a society, the Chairman shall call a special general meeting of the society within thirty days of the receipt of the requisition.

(2) If the Chairman does not call the meeting within the time specified in sub-section (1), the Registrar shall direct the Chairman to call the meeting within a period of seven days and, if the Chairman fails to do so, may himself call the meeting.

CHAPTER IV
MANAGING COMMITTEE AND RIGHTS AND LIABILITIES OF MEMBERS.

10. Managing committee of a society.—(1) Each member shall have one vote irrespective of the area of the land pooled by him ; provided that in case of a deceased member all his heirs who want to remain members shall be registered and shall have the right to vote.

(2) The members shall, in their annual general meeting, elect, by majority of votes,—

(a) a managing committee consisting of not less than seven and not more than eleven members, including the office-bearers ; and

(b) one representative for the District Co-operative Federation.

(3) A member of a committee, including an office-bearer, and the representative shall, unless he resigns or is removed from office earlier, hold office for a term of two years.

(4) No member of a committee or an office-bearer or the representative shall hold office for more than two consecutive terms.

(5) Subject to such decisions, if any, as may be taken in a general meeting of a society, the management of the affairs of a society shall vest in the committee.

(6) A member of a committee, including an office-bearer or the representative, may be removed from office by a resolution passed by a majority of the total number of members of a society in an annual general meeting or a meeting requisitioned for this purpose by not less than one-third of the total number of members.

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(7) Any member of a committee, including an office-bearer, may by writing under his hand addressed to the Chairman, resign his office.

11. Pooling of land.—(1) Every member shall, subject to the provisions of clause (c) of sub-section (1) of section 4, pool his entire holding without affecting his ownership of the holding in any way :

Provided that a member or group of members owning a subsistence holding may retain for his or their personal use an area not exceeding—

(a) in the case of Baluchistan, two acres ; and

(b) in the case of the other Provinces, one acre :

Provided further that a member or group of members pooling more than a subsistence holding may retain for his or their personal use such area not exceeding—

(a) in the case of Baluchistan, four acres, and

(b) in the case of the other Provinces, two acres ;

as may be determined by the committee :

Provided further that the location of the area to be so retained may be determined by the committee :

Provided further that a member owning less than a subsistence holding shall not be entitled to retain any land for his personal use.

Explanation.— In this section, 'subsistence holding' shall have the same meaning as in the Land Reforms Regulation, 1972.

(2) All land pooled for a co-operative farm by members shall, for the purposes of management, vest in the society.

12. Liability of members.—The liability of a member shall be limited to the value of the land pooled by him.

13. Evaluation of land, etc.—(1) The land pooled by each member for a co-operative farm shall be evaluated by the Managing Committee according to its quality and area on the basis of produce index units.

(2) If any land pooled by a member for a co-operative farm contains orchards, ponds or any other immovable structures, the value of the orchards, ponds and other structures shall be assessed by the Managing Committee and added to the shares of such member :

Provided that trees other than orchards shall continue to be the property of the member and the value thereof shall not be assessed or added to his share :

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Provided further that, if the committee decides to remove such trees or structures standing on any land, such trees or structures shall be removed on payment to the owner of such land of such compensation as may be determined by the committee.

14. Withdrawal from membership.—(1) A member who has been a member of a society for not less than three years may, by notice under his hand addressed to the Chairman and delivered to him by the thirty-first day of March in any year, withdraw from membership of the society.

(2) Where, due to the death of a member, the rights and liabilities of the member devolve upon his legal heirs or successors and any of the heirs or successors is a minor the rights and liabilities of the minor shall be the rights and liabilities of his guardian until such time as the minor attains majority.

(3) A minor referred to in sub-section (2) may, after he attains majority, withdraw from the membership of the society in the manner provided for in sub-section (1) if the land owned by him has formed part of the co-operative farm for not less than three years.

(4) On a member withdrawing from the membership of a society—

(a) he shall cease to be member on and from the first day of July following the day on which he gives notice of his withdrawal ;

(b) the land pooled by him shall revert to him on the aforesaid day subject to any encumbrances that may have been created on it by the society, to such extent as may be determined by the society ;

(c) he shall not be entitled to any share in the Development Fund or to any right or interest in anything established or purchased out of that Fund ; and

(d) he shall pay to the society, towards the cost of tubewells installed, residential houses, sheds or other structures raised, or improvements done, on his land by the society, such amount, and in such manner, as may be determined by the society.

(5) As soon as may be after a person ceases to be a member, his name shall be notified to the Registrar for removal from membership.

15. Admission of new members.—(l) Subject to the other provisions of this Act, a committee may admit to the membership of the society any owner of land who pools his land :

Provided that no owner of land shall be so admitted except after the close of the agricultural year during which the society is registered.

(2) As soon as may be after an owner of land is admitted as a member under sub- section (1), his name shall be notified to the Registrar.

CHAPTER V
PRIVILEGES AND LIABILITES OF SOCIETIES

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16. Societies to be bodies corporate.—A society shall be a body corporate by the name under which it is registered, having perpetual succession and a common seal, with power to hold property, both movable and immovable, and shall by the said name sue and be sued.

17. Office of society.—Every society shall have its office at such place within the co-operative farm as it may decide.

18. Copy of Act, etc., to be open to inspection.—Every society shall keep open to inspection at all reasonable times at the registered address of the society, free of charge,—

(a) a copy of this Act,

(b) a copy of the rules governing such society,

(c) a copy of the bye-laws of such society, and

(d) a register of its members.

19. Liability in respect of encumbrances on land.—Where the land pooled by a member is subject to any encumbrances, such encumbrances shall continue to be the liability of such member.

20. Audit and accounts.—(1) The accounts of a society shall be maintained in the prescribed manner, shall be audited every year by an auditor or auditors appointed at each Annual General Meeting out of a list of auditors prepared by the Registrar and shall be laid before the Annual General Meeting for adoption.

(2) An auditor appointed under sub-section (1) shall have power—

(a) to summon at the time of audit any officer, agent, servant and member, past or present, of the society whom he has reason to believe can give material information in regard to any transaction of the society or the management of its affairs ; and

(b) to require the production of a book or document relating to the affairs of, or any cash or security belonging to, the society, by the officer, agent, servant or member believed by the auditor to be in possession of such book, document, cash or security.

(3) An auditor appointed under sub-section (1) shall hold office until the next Annual General Meeting and shall paid such fees as may be determined by the Annual General Meeting.

21. Transfer of interest on death of a member.—On the death of a member, the rights, interests and liabilities of the member shall devolve on the legal heirs or successors of the member and such legal heirs or successors shall become the members of the society in place of the deceased member.

CHAPTER VI
PROPERTY AND FUNDS OF THE SOCIETY

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22. Assets of the Society.—(1) A society shall have its own assets consisting of its properties built or acquired out of the Development Fund and such funds and properties as may be prescribed.

(2) A society may purchase any land or other property for the purposes of setting up its office or any agro-based industry or for such other projects of public utility.

(3) Subject to such limits as may be prescribed, a society may, in so far as may be necessary for the purposes of the society, borrow money on the security of its property or of land forming part of the co-operative farm.

(4) Where a society borrows money on the security of its property and also of the land forming part of the co-operative farm, the society shall, as far as practicable, repay the loan obtained by it on the security of such land in priority to the other loans.

23. Provisions for Reserve Fund, Development Fund and other expenses.—(1) Every society shall maintain a Reserve Fund and a Development Fund.

(2) The Reserve Fund shall be utilized to meet natural calamities affecting the co-operative farm or other property of the society and for such other purposes, and in such manner, as the committee may determine.

(3) The Development Fund shall be utilized for the development of the co-operative farm and establishment of agro-based industries, hospitals and schools and for such other purposes as may be determined by the society.

(4) Every society may recover from the produce income of the co-operative farm sufficient amount to meet its office expenditure, for the contribution it has to make to the District Co-operative Federation and for the payment of fees to the auditors and of such travelling allowance and daily allowance to its representatives for attending meetings of the District Co-operative Federation as it may from time to time determine.

24. Distribution of produce income of co-operative farm.—Out of the produce income of the co-operative farm the direct expenses on account of agricultural inputs, including seeds, fertilizers, pesticides, water charges, land revenue, maintenance of tractors, tubewells farm animals and agricultural implements, consumption of electricity, depreciation on fixed assets and the expenses referred to in sub-section (4) of section 23, shall first be deducted and the balance shall be distributed as follows, namely :—

(a) not less than five per cent each for the Reserve Fund and Development Fund shall be set apart ; and

(b) of the remaining amount, forty per cent shall be distributed amongst the members in proportion to the value of the land pooled by them and sixty per cent amongst the workers, including working members, and other staff working on the farm according to the quality and quantity of the work done, as determined by the committee.

25. Distribution of profits.—The net profits of a society from sources other than the co-operative farm shall be distributed as follows, that is to say,—

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(a) one-third shall be set apart for credit to the Development Fund and repayment of loans, in such proportion as may be determined by the society ; and

(b) the remaining two-thirds shall be distributed amongst the members in proportion to the value of the land pooled by them.

26. Rights of tenants, etc.—(1)The tenants of the land pooled by a member for a co-operative farm shall stand ejected from such land upon its being so pooled.

(2) The tenants ejected from any land by virtue of sub-section (1) shall be given preference in providing employment on the co-operative farm or in the agro-based industries of the society and, if a member withdraws from the society or the society is wound up, the tenancy rights of such tenants shall stand restored.

CHAPTER VII
LIQUIDATION AND WINDING UP

27. Winding up.—(1) If one third of the total number of members of a society apply to the Chairman of the District Co-operative Federation for winding up the society and the Chairman, after such enquiry as he may deem fit, is of the opinion that the society ought to be wound up, he may issue an order directing it to be wound up, and when necessary may appoint a liquidator for the purpose from amongst the members of the District Co-operative Federation and fix his remuneration.

(2) A copy of an order passed under sub-section (1) shall be sent to the Registrar.

28. Winding up if membership is reduced.—(1) Where the membership of a society is reduced to less than twenty members or the area of the co-operative farm is reduced to less than the minimum area specified in clause (b) of sub-section (1) of section 4, the Chairman of the District Co-operative Federation may, after allowing the society a period of sixty days to make up the deficiency by order in writing direct that the society be wound up, and when necessary, may appoint a liquidator for the purpose from amongst the members of the District Co-operative Federation and fix his remuneration.

(2) A copy of an order passed under sub-section (1) shall be sent to the Registrar.

29. Effect of winding up.—When a society is wound up—

(a) the standing crop of the co-operative farm shall be harvested and the produce income distributed in accordance with the provisions of this Act ;

(b) the land comprising the co-operative farm shall revert to the members together with improvements, if any, made by the society and subject to the encumbrances, if any, created thereon by the society and subject to payment by each member of the cost of such improvements on his land as at the time of the winding up ;

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(c) after all the liabilities of the society have been met, the assets of the society, including the Reserve Fund, shall, subject to clause (d), be divided amongst the members in proportion to the value of the land pooled by them ; and

(d) the hospitals, schools and other social institutions, if any, established by the society shall stand transferred to, and vest in, the District Co-operative Federation and shall be managed by it in accordance with schemes prepared by it and approved by the Provincial Co-operative Federation.

30. Power of Chairman of District Co-operative Federation to assess damage.—Where, in the course of the winding up of a society, it appears that any person who has taken part in the organisation or management of the society or any past or present member or office-bearer of a committee or officer of the society has misapplied or retained or become liable or accountable for any money or property of the society or has been guilty of breach of trust in relation to the society, the Chairman of the District Co-operative Federation may, of his own motion or on the application of a liquidator or any other interested person, hold an inquiry into the conduct of such person, member

or officer and make an order requiring him to repay or restore the money or property or any part thereof respectively with interest at such rate as the Chairman thinks just, or to contribute such sum to the assets of the society by way of compensation in regard to the misapplication, retainer or breach of trust as the Chairman thinks just.

31. Bar of suit.—Save as is otherwise provided in the Act, no civil court shall have jurisdiction in respect of any matter arising out of any proceedings under this Act or connected with the winding up of a society nor shall any suit or other legal proceedings lie or be proceeded with against the society, except by the leave of the Chairman of the Provincial Co-operative Council and subject to such terms as he may impose.

32. Arbitration.—(1) If any dispute with regard to the business of a society other than a dispute regarding disciplinary action taken by the society or its committee against a paid servant of the society, arises—

(a) between the members or past members of a society, or persons claiming through a member or past member ; or

(b) between the members or past members or persons so claiming and any past or present office-bearer ; or

(c) between the society or its committee and any past or present member of the society ; or

(d) between the society or its committee and any past or present office-bearer of the society ;

it shall be reported to the Chairman of the District Co-operative Federation, who shall refer it for decision to not more than three arbitrators appointed by him from amongst the members of the District Co-operative Federation.

(2) Any party aggrieved by the award of the arbitrators under sub-section (1) may, within one month of the date of the communication of the order, prefer an appeal to the District Judge.

(3) The award of arbitrators, or an award passed in appeal by the District Judge under sub-section (2), shall, subject to the provisions of section 54, be final and shall not be liable to be called in question in any court.

33. Attachment before award.—Where a dispute has been referred to arbitration under section 32 and the arbitrators are satisfied on inquiry or otherwise that a party to such arbitration is, with intent to delay or obstruct the execution of any award that may be made, about to dispose off the whole or any part of his property, the arbitrators may direct the conditional attachment of the said property and such attachment shall have the same effect as if made by a competent civil court.

34. Recoveries of dues.—Every award made under section 32, every order passed in appeal under that section, and every order passed under section 5 shall be deemed to be a decree of a civil court and shall be executed in the same manner as a decree of such court.

CHAPTER VIII

FEDERATION OF THE SOCIETIES

35. District Co-operative Federation.—(1) In each district in which not less than two societies are in existence, there shall be formed a District Co-operative Federation of Co-operative Farming Societies which shall consist of one representative from each society in the district.

(2) Each District Co-operative Federation shall elect at its general meeting its office-bearers, including the Chairman, two representatives for the District Co-operative Council and one representative for the Provincial Co-operative Federation, provided that till such time as the requisite number of representatives mentioned in sub-section (1) are available, two or more representatives shall carry out the responsibilities of all the required office-bearers.

(3) The office-bearers, including the Chairman, and representatives shall hold office for a term of two years.

(4) A representative for a District Co-operative Council or a Provincial Co-operative Federation may, by writing under his hand addressed to the Chairman of the District Co-operative Council or, as the case may be, the Provincial Co-operative Federation, resign his office.

(5) The District Co-operative Federation may make bye-laws relating to its meeting and procedure and the performance of its functions.

36. Fund and functions of District Co-operative Federation.—(1) A District Co-operative Federation shall have a fund to which shall be credited the contributions received by it from the societies and out of which shall be defrayed the contributions it shall make to the Provincial Co-operative Federation and the office and other expenses of the District Co-operative Federation.

(2) A District Co-operative Federation shall deal with matters of mutual interest to the societies in the district and make recommendations to the District Co-operative Council on matters with which the Provincial Government is concerned.

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37. Provincial Co-operative Federation.—(1) There shall be formed in each Province a Provincial Federation of Co-operative Farming Societies which shall consist of one representative from each of the District Co-operative Federations within the Province.

(2) Each Provincial Co-operative Federation shall elect in its general meeting its office-bearers, including the Chairman, five representatives for the Provincial Co-operative Council and one representative for the National Co-operative Council.

(3) A representative shall hold office for a term of one year.

(4) A representative for a Provincial Co-operative Council or the National Co-operative Council, may, by writing under his hand addressed to the Chairman of the Provincial Co-operative Council or, as the case may be, the National Co-operative Council, resign his office.

(5) The Provincial Co-operative Federation may make bye-laws relating to its meeting and procedure and the performance of its functions.

38. Fund and functions of the Provincial Co-operative Federation.—(1) A Provincial Co-operative Federation shall have a fund to which shall be credited the contributions received by it from the District Co-operative Federations and out of which shall be defrayed its office and other expenses.

(2) The functions of the Provincial Co-operative Federation shall be to deal with matters of mutual interest to the societies in the Province and make recommendations to the Co-operative Council on matters with which the Provincial Government is concerned.

39. District Co-operative Council.—(1) There shall be formed in each district a District Co-operative Council which shall consist of the heads of the nation-building departments in the district and two representatives of the District Co-operative Federation. Provided that, pending the availability of the representatives of the District Co-operative Federation, the District Co-operative Council may consist of only the heads of the said departments.

(2) The elected Chairman of the District Council established under the Provincial Law relating to local government shall be the *ex-officio* Chairman of the District Co-operative Council.

(3) Pending the election of the Chairman of the District Co-operative Council referred to in sub-section (2) the Chairman shall be appointed by the Provincial Government from amongst the members of the council.

(4) The District Co-operative Council may make bye-laws relating to its meetings and procedure and the performance of its functions.

40. Functions of the District Co-operative Council.—(l) A District Co-operative Council shall, of its own motion or on the recommendation of the District Co-operative Federation, co-ordinate the services of the different nation-building departments and the District Co-operative Federation and extend all possible assistance to the societies within the district.

(2) A District Co-operative Council shall review the decisions taken by it from time to time, the progress of co-operative farming movement within the district and suggest measures for its improvement and future development.

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(3) The Provincial Government shall make available to a District Co-operative Council such funds as the Provincial Government may consider adequate for enabling the Council to perform its functions.

41. Provincial Co-operative Council.—(1) There shall be formed in each Province a Provincial Co-operative Council which shall consist of all the Secretaries to the Provincial Government in the nation-building departments and five representatives of the Provincial Co-operative Federation.

(2) The Provincial Minister dealing with the matters relating to co-operation shall be the *ex-officio* Chairman of the Provincial Co-operative Council and the Secretary of the department dealing with such matters shall be the *ex-officio* Secretary of the Council.

(3) The Provincial Co-operative Council may make bye-laws relating to its meetings and procedure and the performance of its functions.

42. Functions of the Provincial Co-operative Council.—(1) The Provincial Co-operative Council shall co-ordinate the activities of all the District Co-operative Councils within the Province, ensure uniformity of policy throughout the Province and perform at the Provincial level the functions assigned by section 40 to the District Co-operative Council at the district level.

(2) The Provincial Government will make available to the Provincial Co-operative Council such funds as the Provincial Government may consider adequate for enabling the Council to perform its functions.

43. National Co-operative Council.—(1) As soon as may be after the commencement of this Act the Federal Government shall constitute the National Co-operative Council which shall consist of the following members, namely:—

(a) the Federal Minister-in-charge of the Ministry dealing with matters relating to co-operatives, who shall be the Chairman of the Council ;

(b) the Provincial Ministers dealing with matters relating to Co-operation in each Province ;

(c) one representative of each of the Provincial Co-operative Federation ; and

(d) such other members as the Federal Government may appoint :

Provided that, for the first constitution of the National Co-operative Council, the members referred to in clause (c) shall be nominated by the Chairman of the Council.

(2) The National Council may make bye-laws relating to its meetings and procedure and the performance of its functions.

44. Functions of the National Co-operative Council.—(1) The National Co-operative Council shall co-ordinate the activities of the Provincial Co-operative Councils and ensure uniformity of policy in all the Provinces by laying down policy guidelines for the working of the Provincial Co-operative Councils and the District Co-operative Councils.

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(2) The National Co-operative Council shall review its decisions taken from time to time and the progress of the co-operative movement in all the Provinces and suggest measures for its over-all future development.

(3) The National Co-operative Council shall also maintain liaison between the Federal and Provincial nation-building departments and arrange for the holding of national and international seminars on various aspects of co-operative farming.

(4) The Federal Government shall make available to the National Co-operative Council such funds as the Federal Government may consider adequate for enabling the Council to perform its functions.

CHAPTER IX
INSPECTION OF AFFAIRS

45. Inquiry by Chairman District Co-operative Federation.—(1) The Chairman of the District Co-operative Federation may, of his own motion, by himself or by a person duly authorised by him in writing in this behalf hold an inquiry into the constitution, working and financial condition of a society.

(2) The Chairman of the District Co-operative Federation shall hold such an inquiry as is contemplated in sub-section (1) of this section—

(a) on the application of a majority of the committee of the society, or

(b) on the application of one-third of the members of the society.

(3) All officers and members of the society whose affairs are investigated shall furnish such information in their possession in regard to the affairs of the society as the person holding the inquiry may require.

(4) The result of any inquiry under this section shall be communicated to the society whose affairs have been investigated.

46. Inspection of books of indebted society.—(1) The Chairman of the District Co-operative Federation may, on the application of a creditor of a society, inspect or direct some person authorized by him by order in writing in this behalf to inspect the books of the society :

Provided that the applicant—

(a) satisfies the Chairman that the debt is a sum then due, and that he has demanded payment thereof and has not received satisfaction within a reasonable time ; and

(b) deposits with the Chairman such sum as security for the costs of the proposed inspection as the Chairman may require.

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(2) The Chairman shall communicate the result of any such inspection to the creditor.

47. Power of Chairman, District Co-operative Federation to exercise powers under section 30 in the course of an inquiry or inspection.—Where, in the course of any inquiry under section 45 or an inspection under section 46, it appears to the Chairman of the District Co-operative Federation that there exists any such ground as is specified in section 30, he may of his own motion or on the application of the person authorized by him under section 45 or section 46, exercise the powers specified in section 30.

48. Costs of inquiry.—Where an inquiry is held under section 45 or an inspection is made under section 46, the Chairman of the District Co-operative Federation may apportion the costs, or such part of the costs, as he may consider proper between the society, the members of creditor demanding the inquiry or inspection, the officers or former officers, and the members or past members of the society :

Provided that—

(a) no order of apportionment of the costs shall be made under this section unless the society or person liable to pay the costs thereunder has or have been heard or has or have had a reasonable opportunity of being heard ; and

(b) the Chairman shall record the grounds on which the costs were apportioned.

49. Recovery of costs.—Any sum awarded by way of costs under section 48 may be recovered, on application by the Chairman of the District Co-operative Federation to a Magistrate having jurisdiction in the place where the person from whom the money is claimable actually and voluntarily resides, or carries on business, by the distress and sale of any movable property within the limits of the jurisdiction of such Magistrate belonging to such person, and such Magistrate shall proceed to recover the same in the same manner as if it were a fine imposed by himself.

CHAPTER X
MISCELLANEOUS

50. Amalgamation or transfer of societies.—(1) Any two or more societies may, with the approval of the District Co-operative Federation, by resolution passed by a three-fourths majority of the members present at a special general meeting of each such society held for the purpose, amalgamate as a single society :

Provided that each member has had fifteen clear days' notice of the resolution and the date of the meeting.

(2) An amalgamation referred to in sub-section (1) may be effected without a dissolution, or a division of the funds, of the amalgamating societies and the resolution of the societies concerned shall on such amalgamation, be a sufficient conveyance to vest the assets and liabilities of the amalgamating societies in the amalgamated society.

(3) Any society may, by a resolution passed in accordance with the procedure laid down in sub-section (1) transfer its assets and liabilities to any other society which is prepared to accept them :

Provided that, when any such amalgamation or transfer of assets and liabilities involves the transfer of its liabilities by any society to any other society, it shall not be made without giving three months' notice to the creditors of both or such societies :

Provided further that if a creditor of any of the societies concerned objects to such amalgamation or transfer of assets and liabilities and gives written notice to that effect to the society or societies concerned one month before the date fixed for the amalgamation or transfer, the amalgamation or transfer shall not be made until the dues of such creditor have been satisfied.

51. Powers to exempt from stamp duty or registration fee, etc.—The Provincial Government may, by notification in the official Gazette, reduce or remit—

(a) the stamp-duty with which, under any law for the time being in force, any instruments executed by or on behalf of a society or by an officer or member

and relating to the business of the society, or security bonds executed by or on behalf of officers or servants of a society, or awards of the arbitrators under this Act, are chargeable ; and

(b) any fee payable under the law relating to the registration of documents or to court-fees for the time being in force.

52. Exemption from Income-tax.—The earnings of a society and the dividend paid by it to its members shall be exempt from income-tax.

53. Notice necessary in suits.—No suit shall be instituted against a society or any of the office-bearers in respect of any act relating to the buiness of the society until the expiration of three months next, after notice in writing has been given to the Chairman of the District Co-operative Federation.

54. Power of revision.—The Chairman of the Provincial Co-operative Council may, of his own motion or otherwise call for the record of any case or proceedings under this Act for the purpose of satisfying himself as to the correctness, legality or propriety of any decision or order passed by any authority, and may pass such order in relation thereto as he may think fit :

Provided that no order shall be passed under this section revising or modifying an order affecting any person unless such person has been afforded an opportunity of being heard.

55. Transitional provisions.—(1) Till such time as the District Co-operative Federation is formed in a District and its Chairman has been elected,—

(a) the powers and functions of the District Co-operative Federation under this Act and the rules shall be exercised and performed by the District Co-operative Council ; and

(b) the powers and functions of the Chairman under this Act and the rules shall be exercised and performed by the Chairman of the District Co-operative Council.

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(2) Till such time as the Provincial Co-operative Federation is formed in a Province, its powers and functions under this Act and the rules shall be exercised and performed by the Provincial Co-operative Council.

56. Power to make rules.—The Provincial Government may make rules for carrying out the purposes of this Act.

[1]**57. Repeal.—**The Co-operative Farming Ordinance, 1976 (XXII of 1976), is hereby repealed.

RGN Date: 18-09-2024

[1]This section has been omitted to the extent of Islamabad Capital Territory by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 5 and 4th Schedule.

THE COOPERATIVE SOCIETIES (REPAYMENT OF LOANS) ORDINANCE, 1960

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1. Short title, extent and commencement
2. Definitions
3. Repayment of Loans, etc.
4. Determination of liability to repay, etc.
5. Power of Registrar when making inquiry
6. Power to make Rules
7. Penalty
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THE COOPERATIVE SOCIETIES (REPAYMENT OF LOANS) ORDINANCE, 1960

ORDINANCE NO. XXXIV OF 1960

[15th August, 1960]

An Ordinance to provide for the repayment of certain unsecured loans or loans insufficiently secured.

WHEREAS it is expedient to provide for the repayment of such loans taken from Cooperative Banks and other Cooperative Societies as have not been secured or are insufficiently secured ;

Now, THEREFORE, in pursuance of the Proclamation of the seventh day of October 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Cooperative Societies (Repayment of Loans) Ordinance, 1960.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context—

(a) "Cooperative Bank" means a Cooperative Society established for carrying on banking business and having as its principal object the financing of other Cooperative Societies, and includes cooperative societies known as Banking Unions and Zamindari Banks ;

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(b) "Cooperative Society" means a society which, having as its object the promotion of the common interests of its members in accordance with cooperative principles or having been established with the object of facilitating the operation of such a society, is registered under the Cooperative Societies Act, 1912 (II of 1912), or under any other law for the time being in force relating to the registration of cooperative societies ;

(c) "loan" means loan, whether of money or in kind, which has not been secured or is insufficiently secured and taken—

(i) from a cooperative society, not being a Cooperative Bank, by any person other than a member of such society, or

(ii) from a Cooperative Bank by any person, including any member thereof, but not a cooperative society, and includes any transaction which, in the opinion of the Registrar, is in substance a loan as aforesaid ;

Explanation.—A loan is "insufficiently secured" if it is not secured by mortgage, pledge, hypothecation or assignment of such property of the borrower or of his surety or of both as, in the case of a loan not exceeding thirty thousand rupees, the cooperative society concerned, and, in the case of a loan exceeding thirty thousand rupees, the Registrar, may think adequate.

[1][(d) "Registrar" means, —

(i) in relation to a cooperative society in the Islamabad Capital Territory, the Registrar of Cooperative "Societies appointed by the Federal Government for that territory; and

(ii) in relation to a co-operative Society in a Province, the Registrar of Cooperative Societies of the Province.]

3. Repayment of Loans, etc.—Notwithstanding anything contained in any other law for the time being in force, or in any agreement or other instrument, every loan repayable on any day earlier than one year preceding the commencement of this Ordinance and every loan any instalment whereof was payable as aforesaid and has not been so paid, shall unless repaid earlier, be repaid and secured in the following manner, that is to say—

(a) not less than twenty per cent. of the loan repayable as aforesaid shall be paid within six months from the commencement of this Ordinance ; and

(b) the balance of the loan after payment as aforesaid shall, within two months from the expiry of the period mentioned in clause (a), be secured by mortgage, pledge, hypothecation or assignment of such property of the borrower or of his surety or of both as, in the case of a loan not exceeding thirty thousand rupees, the cooperative society concerned, and, in the case of a loan exceeding thirty thousand rupees, the Registrar, may think adequate, and shall be repaid in such instalments within a period not exceeding two years from the commencement of this Ordinance as the cooperative society or the Registrar, as the case may be, directs :

Provided that the Registrar may, if he considers necessary, in cases in which not less than fifty per cent. of the loan has been repaid within the aforesaid period of two years, extend the period by a further period, and such further period shall not exceed six months.

4. Determination of liability to repay, etc.—(1) Every cooperative society shall, within thirty days of the commencement of this Ordinance, or within such further period as the Registrar may, in special circumstances, allow, furnish to the Registrar full information in respect of all cases of loans required to be repaid or secured under section 3.

(2) On receipt of information under sub-section (1) in respect of any loan, the Registrar shall cause notice to be issued to the borrower requiring him to repay and secure the loan in accordance with the provisions of section 3.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s.5. and Sch. IV. (Amended to the extent of Islamabad Capital Territory).

(3) Where any borrower to whom notice under sub-section (2) is issued does not admit the loan, or any liability arising therefrom, he shall, within thirty days of the receipt of notice, or within such further period as the Registrar may, in special circumstances, allow, submit, either personally or by registered post (acknowledgement due), a written statement to that effect to the Registrar, who thereupon shall cause notice to be issued to the cooperative society concerned, and shall, after making such inquiry as he considers necessary, and giving the parties reasonable opportunity of being heard, decide the matter.

(4) The decision of the Registrar under sub-section (3) shall be final, and shall not be called in question in any court.

5. Power of Registrar when making inquiry.—The Registrar shall, for the purpose of making any inquiry under this Ordinance, have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (Act V of 1908), when trying a suit, in respect of the following matters, namely :—

(a) summoning and enforcing the attendance of any person and examining him on oath ;

(b) requiring the discovery or production of any document ;

(c) requisitioning any public record from any court or office ;

(d) issuing commissions for the examination of witnesses ;

(e) appointing guardians or next friends of persons who are minors or of unsound mind ;

(f) adding legal representatives of deceased borrowers or sureties ;

(g) substituting the names of rightful parties ;

(h) consolidation of cases ; and

(i) any other matter which may be prescribed by rules made under section 6.

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6. Power to make Rules.—The [1][Provincial Government] may, by notification in the official Gazette, make rules to carry out the purposes of this Ordinance.

7. Penalty.—Whoever contravenes any of the provisions of this Ordinance or the rules made thereunder shall be punishable with imprisonment for a term which may extend to two years, or with fine, or with both.

8. Procedure.—No court shall take cognizance of any case under this Ordinance except on a complaint in writing made by the Registrar.

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RGN Date: 03-07-2024

[1]Subs. by A. O., 1964, Art. 2 and Sch.

THE COUNTERVAILING DUTIES ORDINANCE, 2001

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THE COUTERVAILING DUTIES ORDINANCE, 2001

ORDINANCE No. I OF 2001

[*3rd January, 2001*]

An Ordinance to amend and consolidate the law relating to imposition of countervailing duties to offset subsidies.

WHEREAS it is expedient and to give effect in Pakistan to the provisions of Articles VI and XVI of the General Agreement on Tariffs and Trade, 1994, and to the Agreement on Subsidies and Countervailing Measures and to amend and consolidate the law relating to imposition of countervailing duties to offset such subsidies, to provide a framework for investigation and determination of such subsidies and injury in respect of goods imported into Pakistan and matters ancillary thereto or connected therewith;

AND WHEREAS the imposition of countervailing duties to offset injurious subsidization is in the public interest;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitutional (Amendment) Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

PART I

PRELIMINARY

1. **Short title, extent and commencement.–** (1) This Ordinance may be called the Countervailing Duties Ordinance, 2001.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.– In this Ordinance, unless there is anything repugnant in the subject or context,–

(a) **"**Agreement on Subsidies" means the Agreement on Subsidies and Countervailing Measures included in Annex (1A) to the Final Act of the Results of the Uruguay Round concerning the Implementation of Article XVI of the General Agreement on Tariffs and Trade, 1994;

(b) **"**Appellate Tribunal" means the Appellate Tribunal established under the Anti-Dumping Ordinance, 2000 (LXV of 2000);

(c) **"**application" means an application submitted to the Commission pursuant to sub-section (1) of section 11;

(d) **"**association" means a trade organisation as defined in the Trade Organisations Ordinance, 1961(XLV of 1961), which has been granted or deemed to have been granted a licence thereunder;

(e) **"**Commission" means the National Tariff Commission established under the National Tariff Commission Act, 1990 (VI of 1990);

(f) **"**country" means any country or territory whether a member of the World Trade Organisation or not and includes a customs union or customs territory;

(g) **"**countervailing measures" means any measures that may be taken by the Commission under this Ordinance including imposition of countervailing duties, whether provisional or definitive, or the acceptance of an undertaking;

(h) **"**definitive countervailing duty" means a duty imposed by the Commission under section 16, sub-section (15) of section 14 or sub-section (2) of section 17;

(i) **"**domestic industry" means the domestic producers as a whole of a like product or those of them whose collective output of that product constitutes a major proportion of the total domestic production of that product, except that when any such domestic producers are related to the exporters or importers, or are themselves importers of the allegedly subsidised product, in such a case "domestic industry" shall mean the rest of the domestic producers.

Explanation.–For the purposes of this clause, producers shall be deemed to be related to exporters or importers only if –

(i) one of them directly or indirectly controls the other;

(ii) both of them are directly or indirectly controlled by the same third person; or

(iii) together they directly or indirectly control a third person:

Provided that there are grounds for believing or suspecting that the effect of the relationship is such as to cause the producer concerned to behave differently from non-related producers and for that purpose one shall be deemed to control another when the former is legally or operationally in a position to exercise restraint or direction over the latter:

Provided further that, in exceptional circumstances, as may be determined by the Commission, the domestic industry in relation to a product

in question may be divided into two or more competitive markets and producers within each such market may be regarded as a separate industry if–

(i) the producers within such a market sell all or almost all of their production of the product in question in such a market; and

(ii) he demand in such a market is not to any substantial degree supplied by producers of the product in question located elsewhere in Pakistan;

(j) "exporting country" means a country granting subsidy in respect of an investigated product, which country may be either –

(i) the country of origin of the investigated product; or

(ii) where the investigated product is not exported directly to Pakistan but is transported through an intermediate country, such intermediate country;

(k) "government" means the government or any public body within the territory of an exporting country;

(l) "injury" means, unless otherwise specified, material injury to a domestic industry, threat of material injury to a domestic industry or material retardation of the establishment of a domestic industry, when subsidised imports are causing such injury;

(m) "interested party" includes –

(i) an exporter, foreign producer, an importer of an investigated product or an association a majority of the members of which are producers, exporters or importers of such product;

(ii) a producer of a like product in Pakistan or an association a majority of the members of which produce a like product in Pakistan; and

(iii) such other person or group of persons as the Commission may, by notification in the official Gazette, specify;

(n) "investigated product" means a product which is subject to an investigation under this Ordinance;

(o) "investigation" means an investigation conducted under this Ordinance;

(p) "like product" means a product which is alike in all respects to an investigated product or, in the absence of such a product, another product which, although not alike in all respects, has characteristics closely resembling those of the investigated product;

(q) "prescribed" means prescribed by rules made under this Ordinance;

(r) "provisional countervailing duty" means a duty imposed by the Commission under section 13;

(s) "public notice" means a notice published by the Commission in at least one issue each of a daily newspaper in the English language and a daily newspaper in the Urdu language having wide circulation in Pakistan;

(t) "Schedule" mean the Schedule to this Ordinance;

(u) "subsidy" means a subsidy as defined in section 4 and "subsidization" shall be construed accordingly; and

(v) "WTO" means the World Trade Organisation established pursuant to the Marrakesh Agreement concluded in Marrakesh, Morocco, on the 15th April, 1994.

PART II

COUNTERVAILING MEASURES

3. Levy of countervailing duty.– (1) Where the Commission determines in accordance with the provisions of this Ordinance that any exporting country pays or bestows, directly or indirectly, any subsidy upon the manufacture or production therein or the exportation therefrom of any investigated product including any subsidy on transportation of such product and such subsidy causes injury then, upon the importation of any such product into Pakistan, the Commission shall, by notification in the official Gazette, impose a countervailing duty thereon as provided for in this Ordinance.

(2) For the purposes of this Ordinance, a product shall be considered to be subsidised if it benefits from a countervailable subsidy as provided for in section 4 and 5.

(3) A subsidy may be granted by a government of the country of origin of an investigated product or by the government of an intermediate country from which the investigated product is exported to Pakistan.

(4) Notwithstanding anything contained in this Ordinance, where an investigated product is not directly imported from the country of origin but exported to Pakistan from an intermediate country, the provisions of this Ordinance shall be fully applicable and such transaction shall, where considered appropriate by the Commission, by regarded as having taken place between the country of origin of the investigated product and Pakistan.

PART III

DEFINITION OF SUBSIDY, COUNTERVAILABLE AND

NON-COUNTERVAILABLE SUBSIDIES

4. Circumstances in which subsidy shall be deemed to exist.– A subsidy shall be deemed to exist if –

(a) there shall be financial contribution by a government, where –

(i) the government practice involves direct transfer of funds including grants, loans and equity infusion, or potential direct transfer of funds or liabilities, or both;

(ii) government revenue that is otherwise due is foregone or not collected including fiscal incentives such as tax credits:

Provided that exemption of an exported product from duties or taxes borne by a like product when destined for domestic consumption, or remission of such duties or taxes in amounts not in excess of those which have accrued, shall not be deemed to be a subsidy provided that such exemption is granted in accordance with the provisions of the First, Second and Third Schedules;

(iii) the government provides goods or services other than general infrastructure or purchases goods; or

(iv) the government makes payments to a funding mechanism, or entrusts or directs a private body to carry out one or more of the type of functions specified in sub-clauses (i), (ii) and (iii) which would normally be vested in the government and the practice in, no real sense, differs from practices normally followed by governments;

(b) there is any form of income or price support within the meaning of Article XVI of the General Agreement on Tariffs and Trade, 1994; and

(c) a benefit is thereby conferred.

5. Countervailable subsidies.– (1) A subsidy shall be subject to countervailing measures under this Ordinance only if the Commission determines that such subsidy is specific in accordance with the principles set out in sub-sections (2), (3), (4) and (5).

(2) In order to determine whether a subsidy is specific to an enterprise, industry or a group of enterprises or industries, hereinafter referred to as "certain enterprises", within the jurisdiction of a granting authority, the Commission shall apply the following principles, namely:-

(a) where the granting authority, or the legislation pursuant to which the granting authority operates, explicitly limits access to a subsidy to certain enterprises, such subsidy shall be specific;

(b) where the granting authority, or the legislation pursuant to which the granting authority operates, establishes objectives criteria or conditions governing the eligibility for, and the amount of, a subsidy, specificity shall not exist, provided that the eligibility is automatic and that such criteria and conditions are strictly adhered to;

Explanation.– For the purposes of clause (b), objective criteria or conditions mean criteria or conditions which are neutral, which do not favour certain enterprises over other, and which are economic in nature and horizontal in application, such as, number of employees or size of enterprise. Such criteria or conditions must be clearly set out by law, regulation, or other official document, so as to be capable of verification; and

(c) if, notwithstanding any appearance of non-specificity resulting from the application of the principles laid down in sub-clauses (a) and (b), there are reasons to believe that the subsidy may in fact be specific, the following other factors may be considered by the Commission, namely:–

(i) use of a subsidy programme by a limited number of certain enterprises;

(ii) predominant use by certain enterprises;

(iii) granting of disproportionately large amounts of subsidy to certain enterprises; and

(iv) manner in which discretion has been exercised by the granting authority in the decision to grant a subsidy;

Explanation.– For the purposes of clause (c), information on the frequency with which applications for a subsidy are refused or approved and the reasons for such decisions shall, in particular, be considered.

(3) In applying the provisions of sub-clause (c) of sub-section (2), the Commission shall take into account the extent of diversification of economic activities within the jurisdiction of a granting authority and the length of time during which subsidy programme has been in operation.

(4) A subsidy which is limited to certain enterprises located within a designated geographical region within the jurisdiction of a granting authority shall be specific.

(5) The setting or changing of generally applicable tax rates by all levels of the government entitled to do so shall not be deemed to be a specific subsidy.

(6) Notwithstanding anything contained in sub-section (2), (3), (4) and (5), the following subsidies shall be deemed to be specific, namely:–

(a) subsidies contingent, in law or in fact, whether solely or as one of several other conditions, upon export performance, including those illustrated in the First Schedule:

Provided that subsidies shall be considered by the Commission to be contingent in fact upon export performance when the facts demonstrate that granting of a subsidy, without having been made legally contingent upon export performance, is in fact tied to actual or anticipated exportation or export earnings:

Provided further that the mere fact that a subsidy is accorded to enterprises which export shall not for that reason alone be considered by the Commission to be an export subsidy for the purposes of this sub-clause; and

(b) subsidies contingent, whether solely or as one of several other conditions, upon the use of domestic over imported goods.

(7) Any determination of specificity by the Commission under this section shall be substantiated on the basis of positive evidence.

6. Non-countervailable subsidies.– (1) The following subsidies shall not be subjected to countervailing measures under this Ordinance, namely:–

(a) subsidies which are not specific as determined in accordance with the provisions of section 5;

(b) subsidies which are specific in accordance with the provisions of section 5 but which meet the conditions set out in sub-section (2), (4) or (6) as read with sub-section (3), (5) and (7); and

(c) the element of subsidy which may exist in any of the measures listed in the Fourth Schedule:

Provided that the provisions of this sub-clause shall cease to apply on the first day of January, 2004.

(2) Subsidies for research activities conducted by firms or by higher education or research establishments on a contract basis with firms shall not be subject to countervailing measures under this Ordinance, if the subsidies cover not more than seventy-five per cent of the costs of industrial research or fifty per cent of the costs of pre-competitive development activity, provided that such subsidies are limited exclusively to–

(a) personnel costs such as researchers, technicians and other supporting staff employed exclusively in the research activity;

(b) costs of instruments, equipment, land and buildings used exclusively and permanently except, when disposed of on a commercial basis, for the research activity;

(c) costs of consultancy and equivalent services used exclusively for the research activity including bought-in research, technical knowledge, patents or otherwise;

(d) additional overhead costs incurred directly as a result of the research activity; and

(e) other running costs such as those of materials, supplies and the like incurred directly as a result of the research activity.

(3) For the purpose of sub-section (2) –

(a) allowable levels of non-countervailable subsidy shall be established by reference to the total eligible costs incurred over the duration of an individual project and in the case of programmes which span both industrial research and pre-competitive development activity, allowable level of non-countervailable subsidy shall not exceed a simple average of the allowable levels of non-countervailable subsidy applicable to the above two categories, calculated on the basis of all eligible costs as set forth in sub-clauses (a) to (e) of sub-section (2);

(b) the term "industrial research" means planned research or critical investigation aimed at discovery of new knowledge, with the objective that such knowledge may be useful in developing new products, processes, services, or in bringing about a significant improvement to existing products, processes or services; and

(c) the term "pre-competitive development activity" means translation of industrial research findings into a plan, blueprint or design for new, modified or improved products, processes or services, whether intended for sale or for use, including creation of a first prototype which would not be capable of commercial use and, may further include conceptual formulation and design of products, processes or services, alternatives and initial demonstration or pilot projects, provided that the same projects cannot be converted or used for industrial application or commercial exploitation but, shall exclude routine or periodic alterations to existing products, production lines, manufacturing processes, services, and other ongoing operations even though those alterations may represent improvements.

(4) Subsidies to disadvantaged regions within the territory of an exporting country given pursuant to a general framework of regional development, which would be non-specific if the criteria set out in section 5 were applied to each eligible region concerned, shall not be subject to countervailing measures under this Ordinance, provided that–

(a) each disadvantaged region is a clearly designated contiguous geographical area with a definable economic and administrative identity; and

(b) the region is regarded as disadvantaged on the basis of neutral and objective criteria, indicating that the region's difficulties arise out of more than temporary circumstances; such criteria being clearly set out by law, regulation, or other official document, so as to be capable of verification.

Explanation.– The criteria mentioned in sub-clause (b) shall include a measurement of economic development which shall be based on at least one of the following factors, namely:–

(i) either income per capita, or household income per capita, or Gross Domestic Product per capita, which must not be above eighty-five per cent of the average for the territory of an exporting country; or

(ii) unemployment rate, which must be at least one hundred and ten per cent of the average for the territory of an exporting country as measured over a

three-years period. Such measurement, however, may be a composite one and may include other factors.

(5) For the purposes of the sub-section (4) –

(a) a "general framework of regional development" means that regional subsidy programmes are part of an internally consistent and generally applicable regional development policy and that regional development subsidies are not granted in isolated geographical points having no, or virtually no, influence on the development or a region; and

(b) "neutral and objective criteria" means criteria which do not favour certain regions beyond what is appropriate for elimination or reduction of regional disparities within the framework of a regional development policy.

Explanation.– Regional subsidy programmes shall include ceilings on the amount of subsidy which can be granted to each subsidized project. Such ceilings must be differentiated according to the different levels of development of eligible regions and must be expressed in terms of investment costs or the cost of job creation. Within such ceilings, the distribution of subsidy shall be sufficiently broad and even to avoid predominant use of a subsidy by, or granting of disproportionately large amounts of subsidy to, certain enterprises.

(6) Subsidies to promote adaptation of existing facilities to new environmental requirements imposed by either law or regulation, or both which, result in greater constraints and financial burden on firms shall not be subject to countervailing measures under this Ordinance, provided that subsidy–

(a) is a one-off non-recurring measure;

(b) is limited to twenty percent of the cost of adaptation;

(c) does not cover the cost of replacing and operating a subsidized investment which, must be fully borne by the entity;

(d) is directly linked to and proportionate to an entity's planned reduction of nuisances and pollution, and does not cover any manufacturing cost savings which may be achieved; and

(e) is available to all entities which can either adopt new equipment or production processes, or both.

(7) For the purpose of sub-section (6) the term "existing facilities" means facilities having been in operation for at least two years at the time when new environmental requirements are imposed.

PART IV

CALCULATION OF THE AMOUNT OF

COUNTERVAILABLE SUBSIDY

7. Calculation of amount of countervailable subsidy.– (1) The amount of countervailable subsidy, for the purposes of this Ordinance, shall be calculated by the Commission in terms of any benefit conferred on a recipient which is found to exist during an investigation period for subsidization which period, shall normally be the most recent accounting year of the beneficiary but may be any other period of at least six months prior to initiation of an investigation for which reliable financial and other relevant data are available.

(2) In determining the amount of countervailable subsidy the Commission shall apply the following principles to calculate any benefit conferred on the recipient as referred to in sub-section (1), namely:–

(a) government provisions of equity capital shall not be considered to confer any benefit, unless an investment can be regarded as inconsistent with the usual investment practice including, for the provision of risk capital of private investors in the territory of an exporting country;

(b) a loan by a government shall not be considered to confer any benefit, unless there is a difference between the amount that a firm receiving the government loan pays on it and the amount that the firm would pay for a comparable commercial loan which the firm could actually obtain on the market, in which event the benefit shall be the difference between these two amounts;

(c) a loan guarantee by a government shall not be considered to confer any benefit, unless there is a difference between the amount that a firm receiving the guarantee pays on the loan guaranteed by the government and the amount that the firm would pay for a comparable commercial loan in the absence of the guarantee, in which case the benefit shall be the difference between these two amounts, adjusted for any difference in fees; and

(d) a provision of goods or services or purchase of goods by a government shall not be considered to confer any benefit, unless the provision is made for less than adequate remuneration or the purchase is made for more than adequate remuneration, and the adequacy of remuneration shall be determined in relation to prevailing market conditions for the product or service in question in the country of provision or purchase including price, quality, availability, marketability, transportation and other conditions of purchase or sale.

8. General provisions on calculation of countervailable subsidies.– (1) Subject to sub-section (2), the amount of countervailable subsidies shall be determined by the Commission in terms of subsidization per unit of an investigated product exported to Pakistan and in establishing such amount the following elements may be deducted from the total subsidy, namely:–

(a) any fee or other costs necessarily incurred in order to qualify for or, to obtain a subsidy; and

(b) export taxes, duties or other charges levied on export of an investigated product to Pakistan specifically intended to offset a subsidy.

(2) Where an interested party claims a deduction under sub-section (1) such party shall prove to the Commission that the claim is justified.

(3) Where a subsidy is not granted by reference to the quantities manufactured, produced, exported or transported, the amount of countervailable subsidy shall be determined by allocating the value of the total subsidy, as appropriate, over the level of production, sales or exports of the products concerned during an investigation period for subsidization.

(4) Where a subsidy can be linked to acquisition or future acquisition of fixed assets, the amount of countervailable subsidy shall be calculated by spreading the subsidy across a period which reflects normal depreciation of such assets in the industry concerned, and the amount so calculated which is attributable to an investigation period, including that which derives from fixed asset acquired before such period, shall be allocated as provided for in sub-section (2):

Provided that where assets are non-depreciating, a subsidy shall be valued as an interest-free loan, and be treated in accordance with the provisions of sub-clause (b) of sub-section (2) of section 7.

(5) Where a subsidy cannot be linked to acquisition of fixed assets, the amount of any benefit received during an investigation period shall, in principle, be attributed to this period, and allocated as provided for in sub-section (2), unless special circumstances arise justifying attribution over a different period.

PART V

DETERMINATION OF INJURY

9. Determination of injury.– (1) A determination of injury by the Commission shall be based on positive evidence and shall involve an objective examination of–

(a) volume of any subsidised imports and their effect on prices in domestic market for like products; and

(b) consequent impact of subsidised imports on domestic industry.

Explanation.– With regard to volume of any subsidised imports, consideration shall be given by the Commission to whether there has been a significant increase in subsidised imports, either in absolute terms or relative to production or consumption in Pakistan. With regard to effect of any subsidised imports on prices, consideration shall be given by the Commission to whether there has been significant price undercutting by the subsidised imports as compared with the price of a like product of domestic industry, or whether the effect of such imports is otherwise to depress prices to a significant degree or prevent price increases which would otherwise

have occurred, to a significant degree, provided that no one or more of these factors shall be deemed to necessarily give decisive guidance.

(2) Where imports of a product from more than one country are simultaneously subject to an investigation, the effects of such imports may be cumulatively assessed by the Commission only if it determines that—

(a) the amount of countervailable subsidies established in relation to the imports from each country is negligible as defined in sub-section (3) of section 15 and that the volume of imports from each country is not negligible; and

(b) a cumulative assessment of the effects of the imports is appropriate in the light of conditions of competition between imported products and the conditions of competition between the imported products and a like domestic product.

(3) An examination by the Commission of an impact of subsidised imports on a domestic industry concerned may include an evaluation of all relevant economic factors and indices having a bearing on the state of the domestic industry including the fact that the domestic industry is still in the process of recovering from the effects of past subsidisation or dumping, the magnitude of the amount of countervailable subsidies, actual and potential decline in sales, profits, output, market share, productivity, return on investments, utilisation of capacity, factors affecting domestic prices, actual and potential negative effects on cash flow, inventories, employment, wages, growth, ability to raise capital or investments and, in the case of agriculture, whether there has been an increased burden on Government support programmes.

(4) The Commission shall satisfy itself that subsidised imports are, through the effects of subsidies, as set forth in sub-sections (1) and (3), causing injury within the meaning of this Ordinance. The consideration of a causal relationship between subsidised imports and injury to domestic industry shall be based on an examination by the Commission of all relevant evidence before it.

(5) The Commission shall examine known factors other than subsidised imports which are injuring domestic industry to ensure that injury caused by such other factors is not attributed to subsidised imports. Such other factors may include factors such as the volume and prices of non-subsidised imports, contraction in demand or changes in patterns of consumption, restrictive trade practices of and competition between a third country and domestic producers, developments in technology and export performance and productivity of domestic industry.

(6) The effect of subsidised imports shall be assessed by the Commission in relation to the production by domestic industry of a like product when available data permits separate identification of that production on the basis of such criteria as the production process, producers' sales and profits:

Provided that where such separate identification of that production is not possible, the effects of subsidised imports shall be assessed by the Commission by examination of the production of the narrowest group or range of products including a like product, for which the necessary information can be provided.

(7) A determination of a threat of material injury by the Commission shall be based on facts and not merely on allegation, conjecture or remote possibility and any change in circumstances which would create a situation in which subsidy would cause injury must be foreseen and imminent.

(8) In making a determination regarding the existence of a threat of material injury, the Commission shall take into consideration factors such as–

(a) the nature of subsidy or subsidies in question and any trade effects likely to arise therefrom;

(b) any significant rate of increase of subsidised imports into a domestic market indicating the likelihood of substantially increased imports;

(c) sufficient freely disposable capacity of an exporter or an imminent substantial increase in such capacity indicating the likelihood of substantially increased subsidised exports into Pakistan, account being taken of the availability of other export markets to absorb any additional exports;

(d) whether imports are entering at prices that would, to a significant degree, depress prices or prevent price increases which otherwise would have occurred and would probably increase demand for further imports; and

(e) inventories of an investigated product.

Explanation.– None of the factors specified in sub-section (8) by itself shall be deemed to necessarily give decisive guidance but the totality of the factors considered by the Commission must lead to the conclusion that further subsidised exports are imminent and that, unless protective action is taken, material injury will occur.

10. **Further circumstances in which injury may be found to exist.–** (1) Where domestic industry in relation to a product in question has been divided into two or more competitive markets and the producers within each such market regarded as a separate industry in accordance with the second proviso to clause (i) of section 2, injury may be found to exist even where a major portion of the total domestic industry does not suffer injury provided that, there is a concentration of subsidised imports into such a separated market, and provided further that the subsidised imports are causing injury to the producers of all or almost all of the production within such market.

(2) Where injury is found to exist in the circumstances referred to in sub-section (1), the exporters or the government granting countervailable subsidies shall be given an opportunity to offer an undertaking in accordance with section 14 in respect of the region concerned or to cease exporting at subsidised prices to the region concerned prior to any countervailing measures being applied by the Commission under this Ordinance.

(3) In the circumstances referred to in sub-section (2), special account shall be taken by the Commission of any interest of the region and if an adequate undertaking is not offered promptly or if the situations set out in sub-section (13) and (14) of section 14 apply, a

provisional or definitive countervailing duty may be imposed by the Commission in respect of domestic industry as a whole.

(4) The provisions of sub-section (6) of section 9 shall apply to this section.

PART VI

INVESTIGATION

11. **Initiation of investigation.–** (1) Save as provided for in sub-section (11), the Commission shall initiate an investigation to determine the existence, degree and effect of any alleged subsidy only upon receipt of a written application by or on behalf of domestic industry.

(2) An application shall be submitted to the Commission with such fee as may be prescribed and shall include sufficient evidence of the existence of countervailable subsidies including, if possible, of their amount, and of injury within the meaning of this Ordinance and shall contain such information as is reasonably available to an applicant on the following, namely:–

(a) identity of the applicant and a description of the volume and value of domestic production of a like product by the applicant;

Provided that where an application is made on behalf of domestic industry, the application shall identify the industry on behalf of which the application is made by a list of all known domestic producers of the like product or, association of domestic producers of the like product and, to the extent possible, a description of the volume and value of domestic production of the like product accounted for by such producers;

(b) a complete description of an allegedly subsidised product including its current customs tariff classification number as contained in the First Schedule to the Customs Act, 1969 (IV of 1969), the name of exporting country, identity of each known exporter or foreign producer, and a list of known persons importing the product in question;

(c) evidence with regard to the existence, amount, nature and countervailability of subsidy in question; and

(d) information on changes in volume of allegedly subsidised imports, the effect of those imports on prices of a like product in domestic market and the consequent impact of the imports on domestic industry as demonstrated by relevant factors and indices having a bearing on the state of domestic industry, such as those listed in the explanation to sub-section (1) of section 9, and in sub-section (3) of section 9.

(3) The Commission shall, to the extent possible, examine the accuracy and adequacy of the evidence provided in an application to determine whether it is compliant with the requirements of sub-section (2) and in order to determine whether there is sufficient evidence to justify initiation of an investigation.

(4) An investigation may be initiated by the Commission in order to determine whether or not the alleged subsidies are specific in accordance with the principles set out in section 5.

(5) An investigation may also be initiated by the Commission in respect of subsidies which are non-countervailable in accordance with the provisions of section 6 in order to determine whether or not the conditions set out therein have been met.

(6) If a subsidy is granted pursuant to a subsidy programme which has been notified in advance of its implementation to the WTO Committee on Subsidies and Countervailing Measures in accordance with Article 8 of the Agreement on Subsidies and in respect of which the said Committee has failed to determine that the relevant conditions laid down in Article 8 of the Agreement on Subsidies have not been met, an investigation shall not be initiated by the Commission in respect of a subsidy granted pursuant to such a programme, unless an infringement of Article 8 of the Agreement on Subsidies has been ascertained by the competent WTO Dispute Settlement Body or through arbitration as provided in Article 8(5) of the Agreement on Subsidies.

(7) An investigation may be initiated by the Commission in respect of measures of any type listed in the Fourth Schedule, to the extent that they contain an element of subsidy as defined in section 4, in order to determine whether the measures in question fully conform to the provisions of the Fourth Schedule.

(8) An investigation shall not be initiated by the Commission pursuant to sub-section (1) unless the Commission is satisfied, on the basis of an examination as to the degree of support for, or opposition to, an application expressed by domestic producers of a like product, that the application has been made by or on behalf of domestic industry.

(9) An application shall be considered to have been made by or on behalf of domestic industry if it is supported by those domestic producers whose collective output constitutes more than fifty percent of the total production of a like product produced by that portion of domestic industry expressing either support for or opposition to the application:

Provided that no investigation shall be initiated by the Commission when domestic producers expressly supporting an application account for less than twenty-five percent of the total production of a like product produced by domestic industry.

(10) The Commission shall, as soon as possible after receipt of a properly documented application in accordance with the requirements of section 11, and in any event before initiation of an investigation, give notice to an exporting country, which shall be invited for consultations with the aim of clarifying the situation as to matters referred to in sub-section (2) and arriving at a mutually agreed solution.

(11) The Commission may, *suo moto*, initiate an investigation without having received a written application by or on behalf of domestic industry if it has sufficient evidence of the existence of countervailable subsidies and injury within the meaning of this Ordinance.

(12) The evidence both of subsidy and of injury shall be considered simultaneously by the Commission in the decision on whether or not to initiate an investigation and an

application shall be rejected where there is insufficient evidence of either countervailable subsidies or of injury to justify initiation of an investigation:

Provided that an investigation shall not be initiated against countries whose imports represent a market share of below one per cent unless such countries collectively account for three per cent or more of domestic consumption.

(13) An application may be withdrawn by an applicant prior to initiation of an investigation by the Commission, in which case it shall, subject to the provisions of sub-section (1) of section 15, be deemed not to have been made:

Provided that upon withdrawal of an application any fee paid by an applicant pursuant to sub-section (2) shall stand forfeited in favour of the Commission.

(14) Where, after consultation with an exporting country as provided for in sub-section (10), the Commission is satisfied that there is sufficient evidence to justify initiating an investigation, the Commission shall give notice of such decision by means of a public notice of initiation of an investigation, and the initiation of an investigation shall be effective on the date on which such notice is published.

(15) Where the Commission does not consider it appropriate to initiate an investigation it shall inform an applicant of its decision.

(16) The public notice of initiation of an investigation referred to in sub-section (14) shall announce initiation of an investigation, indicate the product and countries concerned, give a summary of the information received, provide that all relevant information is to be communicated to the Commission, state the periods within which any interested party may make itself known, present its views in writing and submit information if such views and information are to be taken into account during the investigation and shall also state the period within which interested parties may apply to be heard by the Commission in accordance with sub-section (4) of section 12.

(17) The Commission shall advise any exporters, importers and any association of importers or exporters known to it to be concerned, as well as an exporting country and an applicant, of initiation of an investigation and, subject to the requirements of section 29, provide the full text of an application to the known exporters and to the authorities of an exporting country, and make it available upon request to other interested parties involved:

Provided that, where the Commission determines that the number of exporters involved is particularly high, the full text of a written complaint may instead be provided by the Commission only to the authorities of an exporting country or to a relevant association.

(18) An investigation shall not hinder the procedures of customs clearance.

12. **Principles governing investigation.–** (1) Following initiation of an investigation, the Commission shall commence an investigation and such investigation shall cover both subsidisation and injury which, shall be investigated simultaneously

(2) For the purpose of a representative finding, an investigation period shall be selected by the Commission which, in the case of subsidisation shall, normally cover an

investigation period provided for in section 7 and information relating to a period subsequent to the investigation period shall not, normally, be taken into account by the Commission.

(3) Parties receiving questionnaires from the Commission used in a countervailing duty investigation shall be given at least thirty days to reply and such time limit for exporters shall be counted from the date of receipt of the questionnaire which, for this purpose shall be deemed to have been received one week from the day on which it was sent to a respondent or transmitted to an appropriate diplomatic representative of an exporting country:

Provided that where a party shows due cause for an extension to the satisfaction of the Commission, an extension of not more than thirty days may be granted by the Commission at its discretion.

(4) Any interested party which has made itself known in accordance with sub-section (16) of section 11 shall be heard by the Commission if it has, within the period prescribed in a public notice of initiation of an investigation made a written request for hearing showing that it is an interested party likely to be affected by the result of an investigation and that there are particular reasons why it should be heard.

(5) Opportunities shall, on request, be provided for any importers, exporters and an applicant, which have made themselves known in accordance with sub-section (16) of section 11 and the government of an exporting country to meet those parties having adverse interests, so that opposing views may be presented and rebuttal arguments offered. Provision of such opportunities shall take account of the need to preserve confidentiality and of convenience to the parties. There shall be no obligation on any party to attend such meeting and failure to do so shall not be prejudicial to that party's case. Oral information provided under this sub-section shall only be taken into account by the Commission to the extent that the same is subsequently confirmed in writing and provided to the Commission.

(6) Without prejudice to the provisions of section 42, an applicant, the government of an exporting country, importers and exporters and their representative associations, which have made themselves known in accordance with sub-section (16) of section 11, may, upon written request, inspect all information made available to the Commission by any party to an investigation, as distinct from internal documents prepared by the Commission, which is relevant to presentation of their cases and is not confidential within the meaning of section 29, and that it is used in an investigation. Such parties may respond to such information and their comments shall be taken into consideration wherever they are sufficiently substantiated in a response.

(7) Save as provided for in section 28, any information which is supplied by interested parties and upon which findings are based shall, to the extent possible, be examined for accuracy by the Commission.

(8) An investigation shall, whenever possible, be concluded within one year and in no event later than eighteen months from its initiation, in accordance with the findings made pursuant to section 14 for undertakings or the findings made pursuant to section 16 for definitive action.

(9) Throughout an investigation, the Commission shall afford an exporting country a reasonable opportunity to continue consultations with a view to clarifying the factual situation and arriving at a mutually agreed solution:

Provided that the Commission may continue an investigation during such consultations.

(10) The Commission shall allow industrial users of an investigated product in Pakistan, and representative consumer organisations in cases where the investigated product is commonly sold at retail level in Pakistan to provide to the Commission, in writing, no later than two months after initiation of an investigation, information concerning matters relevant to the investigation regarding subsidisation dumping and injury

PART VII

PROVISIONAL COUNTERVAILING MEASURES

13. **Provisional countervailing duties.–** (1) Provisional countervailing duty shall be imposed by the Commission if–

(a) an investigation has been initiated by the Commission in accordance with section 11;

(b) a public notice of initiation of an investigation has been given and interested parties have been given adequate opportunities to submit information and make comments in accordance with sub-section (16) of section 11; and

(c) a provisional affirmative determination has been made by the Commission that a subsidy exists and that there is consequent injury to domestic industry.

(2) A provisional countervailing duty shall be imposed no earlier than sixty days from initiation of an investigation but no later than nine months from initiation of the investigation and shall be in an amount equal to the total amount of countervailable subsidies as provisionally established by the Commission.

(3) A provisional countervailing duty shall be in the form of cash deposit equal to the amount of the provisionally calculated amount of subsidisation:

Provided that the release of a product concerned for free circulation in Pakistan shall be subject to provisions of such cash deposit.

(4) A provisional countervailing duty shall be imposed for a period not exceeding four months.

PART VIII

UNDERTAKINGS AND TERMINATION WITHOUT

MEASURES

14. **Undertakings.–** (1) An investigation may be terminated by the Commission without imposition of provisional or definitive countervailing duties upon receipt of a satisfactory voluntary undertaking under which –

(a) an exporting country agrees to eliminate or limit subsidy or take other measures concerning its effects; or

(b) any exporter undertakes to revise its prices or to cease exports in question as long as such exports benefit from countervailable subsidies, so that the Commission is satisfied that the injurious effect of the subsidies is eliminated.

(2) Price increases under such undertakings shall not be higher than those which are necessary to offset the amount of countervailable subsidies and shall be less than the amount of countervailable subsidies if such increases would be adequate to remove injury to domestic industry.

(3) Undertakings may be suggested by the Commission but no country or exporter shall be obliged to enter into such an undertaking and the fact that countries or exporters do not offer such undertakings, or do not accept an invitation to do so, shall in no way prejudice the outcome of an investigation by the Commission:

Provided that the Commission may in such circumstances determine that a threat of injury is more likely to be realised if the subsidised imports continue.

(4) Undertakings shall not be sought or accepted by the Commission from countries or exporters unless a provisional affirmative determination of subsidisation and injury caused by such subsidisation has been made by the Commission.

(5) Save in exceptional circumstances, undertakings may not be offered later than the end of the period during which representations may be made pursuant to sub-section (7) of section 30.

(6) The decision to accept an undertaking shall rest with the Commission.

***Explanation*.–** The Commission may not accept a price undertaking if it considers the acceptance thereof to be impractical because the number of actual or potential exporters is too great or for reasons of general policy or for any other reason.

(7) An exporting country or exporter concerned may be provided with the reasons for which it is proposed to reject an offer of an undertaking and may be given an opportunity to make comments thereon and the reasons for rejection shall be set out in a definitive decision by the Commission.

(8) Parties which offer an undertaking shall be required to provide a non-confidential version of such undertaking so that it may be made available to interested parties to an investigation.

(9) If an undertaking is accepted by the Commission, it shall nevertheless complete an investigation if it receives a request from an exporting country or exporter in writing to continue such investigation or where the Commission so decides on its own accord.

(10) In the event the Commission makes a negative determination of subsidisation and injury pursuant to an investigation continued under sub-section (9), an undertaking in question shall automatically lapse except in cases where the Commission determines that such a determination is due in large part to the existence of such undertaking in which case the Commission may require that such undertaking be maintained for a reasonable period of time to be determined by the Commission.

(11) In the event the Commission makes an affirmative determination of subsidisation and injury pursuant to an investigation continued pursuant to sub-section (9), an undertaking in question shall continue consistent with the provisions of this Ordinance.

(12) The Commission may require any country or exporter from whom an undertaking has been accepted to provide, periodically, information relevant to the fulfilment of such undertaking and to permit verification of such information.

(13) Failure to provide any information requested by the Commission pursuant to sub-section (12) shall be deemed to be a violation of an undertaking in question.

(14) Where undertakings are accepted from certain exporters during the course of an investigation, they shall, for the purpose of sections 19, 20, 21 and 23 be deemed to take effect from the date on which the investigation is concluded for an exporting country.

(15) If an undertaking is violated or deemed to be violated, the Commission may, subject to the provisions of this Ordinance, take expeditious actions, which may include immediate application of provisional measures using the best information available. In such cases, a definitive countervailing duty may be levied in accordance with the provisions of this Ordinance on products entered for domestic consumption not more than ninety days before the application of such provisional measures, except that any such retroactive assessment shall not apply to imports entered before such violation of the undertaking.

15. Termination of investigation without measures.– (1) Where an application is withdrawn, an investigation shall be terminated by the Commission:

Provided that the Commission may, if it considers it fit to do so, continue an investigation notwithstanding the withdrawal of an application in which event, the Commission may, subject to the provisions of this Ordinance, impose such measures as are provided for in this Ordinance.

(2) Where, the Commission determines in accordance with the provisions of sub-sections (3), (4), (5), (6) and (7), that the amount of countervailable subsidies is negligible or, where the volume of subsidised imports, whether actual or potential, or injury is negligible then it shall immediately terminate an investigation.

(3) The amount of countervailable subsidies shall be considered to be negligible if such amount is less than one per cent ad valorem, except that –

(a) in the case of investigations concerning imports from developing countries the negligible subsidy threshold shall be two per cent ad valorem; and

(b) for those developing countries which are referred to in the Fifth Schedule and other developing countries which are members of the WTO and which have completely eliminated export subsidies, the negligible subsidy threshold shall be three per cent ad valorem.

(4) Where the application of sub-section (3) depends on elimination of export subsidies, it shall apply from the date on which elimination of export subsidies is notified to the WTO Committee on Subsidies and Countervailing Measures pursuant to the Agreement on Subsidies, and for so long as export subsidies are not granted by a developing country concerned:

Provided that this provision shall expire on the first day of January, 2003:

Provided further that it is only an investigation that shall be terminated where the amount of countervailable subsidies is below the relevant level for individual exporters who shall remain subject to investigation by the Commission under this Ordinance and may be re-investigated in any subsequent review carried out for a country concerned pursuant to sections 19 and 20.

(5) Injury shall normally be regarded as negligible where the market share of any imports is less than the amounts set out in the proviso to sub-section (12) of section 11.

(6) In the case of an investigation concerning imports from developing countries, the volume of subsidised imports shall be considered negligible if it represents less than four per cent of the total imports of a like product in Pakistan, unless imports from developing countries whose individual shares of total imports represent less than four per cent collectively account for more than nine per cent of the total imports of a like product in Pakistan.

(7) In the case of an investigation concerning imports from countries other than developing countries, the volume of subsidised imports shall be considered negligible if it represents less than three per cent of the total imports of a like product in Pakistan, unless imports from such countries under investigation which individually account for less than three per cent of the total imports of a like product in Pakistan collectively account for more than seven per cent of imports of the like product in Pakistan.

PART IX

DEFINITIVE COUNTERVAILING DUTIES

16. Imposition of definitive countervailing duties.– (1) Where the Commission has established the existence of countervailable subsidies and injury caused thereby, a definitive countervailing duty shall be imposed by the Commission, unless the subsidy in question is withdrawn or it has been demonstrated to the satisfaction of the Commission that the subsidies no longer confer any benefit on any exporters involved.

(2) A definitive countervailing duty shall be an amount equal to the amount of countervailable subsidies from which any exporters have been found to benefit, as established by the Commission in accordance with the provisions of this Ordinance.

(3) A definitive countervailing duty shall be imposed in an appropriate amount in each case, on a non-discriminatory basis, on imports of a product from all sources found to benefit from countervailable subsidies and causing injury except as to imports from those sources from which undertakings under section 14 have been accepted by the Commission.

(4) When the Commission has limited its examination in accordance with section 27, any definitive countervailing duty applied to imports from exporters or producers which have made themselves known in accordance with section 27 but were not included in an examination shall not exceed the weighted average amount of countervailable subsidies established for parties in a sample.

(5) For the purposes of sub-section (4), the Commission shall disregard any negligible amounts of countervailable subsidies and amounts of countervailable subsidies established in the circumstances referred to in section 28.

(6) Individual duties shall be applied to imports from any exporter or producer for which an individual amount of subsidisation has been calculated as provided for in section 27.

PART X

RETROACTIVITY

17. **Retroactivity.–** (1) Save as otherwise provided in this section, provisional and definitive countervailing duties shall only be applied to products which enter Pakistan for consumption after the time when the requirements set out in sub-section (1) of section 13 and sub-section (1) of section 16, as the case may be, have been fulfilled.

(2) Where the Commission makes a final determination of injury, but not of a threat thereof or of material retardation of the establishment of an industry or, in the case of a final determination of a threat of injury, where the Commission determines that the effect of subsidised imports would, in the absence of provisional measures, have led to a determination of injury, definitive countervailing duties shall be levied by the Commission retroactively for the period for which provisional duty, if any, have been applied.

(3) If a definitive countervailing duty imposed by the Commission pursuant to sub-section (2) is higher than a provisional countervailing duty, the difference shall not be collected:

Provided that where a definitive countervailing duty is lower than a provisional countervailing duty, the duty difference shall be refunded by the Commission in an expeditious manner.

(4) Save as provided for in sub-section (3), where the Commission makes a determination of threat of injury or material retardation but, no injury has yet occurred, a definitive countervailing duty shall be imposed by the Commission only from the date of the determination of threat of injury or material retardation and any cash deposit provided during

the period of application of provisional countervailing duty shall be refunded by the Commission in an expeditious manner.

(5) Where the Commission makes a negative final determination any cash deposit provided during the period of application of provisional countervailing duties shall be refunded by the Commission in an expeditious manner

(6) A definitive countervailing duty shall be imposed by the Commission on products, which were imported for consumption not more than ninety days prior to the date of application of provisional countervailing duty if, the Commission determines, for an investigated product in question, that injury which is difficult to repair, is caused by massive imports in a relatively short period of a product benefiting from a countervailable subsidy and the Commission deems it necessary to impose such duty in order to preclude the recurrence of such injury.

PART XI

DURATION, REVIEWS AND REFUNDS, AND GENERAL PROVISIONS

18. **Duration of definitive countervailing duty.–** Subject to the provisions of this Ordinance, a definitive countervailing duty imposed pursuant to this Ordinance shall remain in force only as long as, and to the extent that, it is necessary to counteract countervailable subsidies which are causing injury.

19. **Expiry reviews.–** (1) A definitive countervailing duty shall expire after five years from its imposition or five years from the date of the most recent review which has covered both subsidisation and injury, unless it is determined in a review that the expiry would be likely to lead to a continuation or recurrence of subsidisation and injury. Such an expiry review may be initiated, on an initiative of the Commission or, upon a request made by or on behalf of domestic producers, and the measure in question shall remain in force pending the outcome of such review.

(2) An expiry review shall be initiated by the Commission upon request made by or on behalf of domestic producers where such request contains sufficient evidence that the expiry of a measure in question would be likely to result in a continuation or recurrence of subsidisation and injury.

***Explanation*.–** Such a likelihood may, for example, be indicated by evidence of continued subsidisation and injury or evidence that the removal of injury is partly or solely due to the existence of measures or evidence that the circumstances of exporters, or market conditions, are such that they would indicate the likelihood of further injurious subsidisation.

(3) In carrying out investigations under this section, the Commission shall provide any exporters, importers, an exporting country and domestic producers with the opportunity to amplify, rebut or comment on the matters set out in a review request, and conclusions shall be reached by the Commission with due account taken of all relevant and duly documented evidence presented in relation to the question as to whether the expiry of measures would be likely, or unlikely, to lead to the continuation or recurrence of subsidisation and injury.

(4) The Commission shall notify an impending expiry by a public notice which shall be published at an appropriate time, as determined by the Commission, in the final year of the period of application of a measure in question and a public notice announcing the actual expiry of a measure under this section shall also be published by the Commission.

20. Interim reviews.– (1) The need for continued imposition of measures under this Ordinance may also be reviewed, where warranted on an initiative of the Commission or, provided that a period of at least twenty-four months has elapsed since the imposition of definitive countervailing duty, upon a request by any exporter, importer or by domestic producers or an exporting country which contains sufficient evidence substantiating the need for such an interim review.

(2) An interim review under sub-section (1) shall be initiated by the Commission where a request contains sufficient evidence that the continued imposition of a measure is no longer necessary to offset countervailable subsidy or that injury would be unlikely to continue or recur if a measure were removed or varied, or that an existing measure is not, or is no longer, sufficient to counteract countervailable subsidy which is causing injury:

Provided that the Commission may require an applicant requesting a review under sub-section (1) to fill in an additional questionnaire provided by it requiring such information and for such period as the Commission deems necessary before such review is initiated in which case the review shall be initiated following the receipt by the Commission of such questionnaire duly filled in.

(3) In carrying out investigations pursuant to this section, the Commission may, in addition to other factors considered relevant by it, consider whether the circumstances with regard to subsidisation and injury have changed significantly, or whether existing measures are achieving the intended results in removing an injury previously established under section 9.

21. Accelerated reviews.– (1) Any exporter whose exports are subject to a definitive countervailing duty but who was not individually investigated during an original investigation for reasons other than a refusal to co-operate with the Commission, shall be entitled, upon request, to an accelerated review in order that the Commission may promptly establish an individual countervailing duty rate for that exporter provided that such review shall be initiated after domestic producers have been given an opportunity to comment.

(2) The Commission may require an applicant requesting a review under sub-section (1) to fill in an additional questionnaire provided by it before such review is initiated in which case a review under sub-section (1) shall be initiated following the receipt by the Commission of such questionnaire duly filled in.

22. Refunds.– (1) Notwithstanding anything contained in section 19, an importer may apply to the Commission for refund of duties collected where it is shown that the amount of countervailable subsidies, on the basis of which duties were paid, has been either eliminated or reduced to a level which is below the level of the duty in force.

(2) An importer may submit an application for refund of countervailing duties collected within any twelve months period to the Commission no later than sixty days from the end of such period.

(3) An application for refund shall be considered to be duly supported by evidence only where it contains precise information on the amount of refund of countervailing duties claimed and all customs documentation relating to the calculation and payment of such amount and includes evidence, for a representative period, of the amount of countervailable subsidies for any exporter or producer to which the duty applies:

Provided that, where the importer is not associated with any exporter or producer concerned and such information is not immediately available, or where any exporter or producer is unwilling to release it to an importer, the application for refund shall contain a statement from the exporter or producer that the amount of countervailable subsidies has been reduced or eliminated, as specified in this section, and that the relevant supporting evidence will be provided to the Commission:

Provided further that where such evidence is not forthcoming from any exporter or producer within a reasonable period of time, as determined by the Commission, the application shall be rejected by the Commission.

(4) The Commission shall determine whether and to what extent an application should be granted, or it may decide at any time to initiate an interim review, whereupon any information and findings from such review, carried out in accordance with the provisions applicable for such review, shall be used to determine whether and to what extent a refund is justified.

(5) A refund of countervailing duties under this section shall normally take place within twelve months, and in no circumstances more than eighteen months after the date on which a request for a refund, duly supported by evidence, has been made by an importer of a product subject to countervailing duty.

23. General provisions on reviews and refund.– (1) The provisions of sections 11 and 12, excluding those relating to time limits, shall *mutatis mutandis* apply to any review carried out pursuant to sections 19, 20 and 21.

(2) Any review pursuant to sections 19, 20 or 21 shall be carried out by the Commission expeditiously and shall normally be concluded within twelve months of the date of initiation of the review.

(3) Where a review pursuant to section 20 is in progress at the end of the period of application of a measure as defined in section 19, the measure shall also be investigated under the provisions of section 19.

(4) In any review or refund investigation carried out pursuant to sections 19 to 22, the Commission shall, provided that circumstances have not changed, apply the same methodology as in an investigation which led to the duty, with due account being taken of sections 7, 8 and 27.

24. Circumvention.– (1) Countervailing duties imposed pursuant to this Ordinance may be extended by the Commission to imports from third countries of like products, or parts thereof, if the Commission determines that circumvention of the measures in force is taking place.

(2) For the purposes of sub-section (1), circumvention shall mean a change in the pattern of trade between third countries and Pakistan which stems from a practice, process or work for which there is insufficient cause or economic justification other than an imposition of a duty, and where there is evidence that the remedial effects of a duty are being undermined in terms of either the prices or quantities of like products, or both, and that either the imported like product or parts thereof, or both, still benefit from subsidy.

25. General provisions.– (1) Countervailing duties, provisional or definitive, as the case may be, imposed under this Ordinance shall –

(a) take the form of *ad valorem* or specific duties:

Provided that provisional countervailing shall take the form of cash deposits equal to the amount of a provisionally calculated amount of subsidisation.

(b) be imposed in addition to other import duties levied on an investigated product; and

(c) be collected in the same manner as customs-duties under the Customs Act, 1969 (IV of 1969).

(2) No product shall be subject to both anti-dumping duties under the Anti-Dumping Duties Ordinance, 2000 (LXV of 2000), and countervailing duties under this Ordinance for the purpose of dealing with one and the same situation arising from dumping or from export subsidisation.

(3) The decisions regarding imposition of provisional or definitive countervailing duties, and notices regarding acceptance of undertakings or terminating an investigation, shall be published by the Commission in a public notice which shall contain, in particular, and with due regard to the protection of confidential information in accordance with section 29, the names of exporters, if possible, or of the countries involved, a description of the product and a summary of the facts and considerations relevant to subsidy and injury determinations and in each case, a copy of the said notice shall be sent to the known interested parties.

(4) The provisions of sub-section (3) shall apply, *mutatis mutandis*, to reviews under this Ordinance.

(5) The Commission shall establish and maintain a non-lapseable personal ledger account in its name for the purpose of this Ordinance and all duties and fees payable under and collected pursuant to this Ordinance shall be held in such account.

(6) The account established under sub-section (5) shall be maintained and operated in such manner as may be prescribed.

PART XII

VERIFICATION VISITS, SAMPLING, NON-COOPERATION, CONFIDENTIALITY AND DISCLOSURE

26. Verification visits.– (1) The Commission may, where it considers it appropriate, carry out visits to examine the records of importers, exporters, traders, agents, producers, trade associations and organisations, to verify information provided on subsidisation and injury:

Provided that in the absence of a proper and timely reply a verification visit may not be carried out.

(2) The Commission may carry out investigations in third countries as required, provided that–

(a) it obtains consent of an entity concerned;

(b) it gives notice to a country in question; and

(c) the country in question does not object to an investigation.

(3) As soon as consent of an entity concerned has been obtained the Commission shall give notice to an exporting country of the name and address of the entity to be visited and the dates agreed.

(4) An entity concerned shall be advised of the nature of information to be verified during verification visits and of any further information which needs to be provided during such visits:

Provided that this shall not preclude the Commission from requiring further information or verification.

27. Sampling.– (1) Where the Commission determines that the number of complainants, exporters or importers, types of product or transactions is large, the Commission may limit an investigation to –

(a) a reasonable number of parties, products or transactions by using samples which are statistically valid on the basis of information available at the time of selection; or

(b) to the largest representative volume of any production, sales or exports which can reasonably be investigated within the time available.

(2) The selection of parties, types of products or transactions made under this section shall rest with the Commission:

Provided that preference shall be given by the Commission to choosing a sample in consultation with, and with the consent of, the parties concerned:

Provided further that such parties make themselves known and make sufficient information available to the Commission, within three weeks of initiation of an investigation, to enable a representative sample to be chosen.

(3) In cases where the examination has been limited in accordance with this section, an individual amount of countervailable subsidisation shall, nevertheless, be calculated by the Commission for any exporter or producer not initially selected who submits the necessary information within the time limits provided for in this Ordinance except where the Commission determines that the number of exporters or producers is so large that individual examinations would be unduly burdensome and would prevent completion of an investigation within the applicable time limits.

(4) Where the Commission has decided to undertake a sample as provided for in this section and there is a degree of non-cooperation by some or all of the parties selected which is likely to materially affect the outcome of an investigation, a new sample may be selected by the Commission:

Provided that if a material degree of non-cooperation persists or there is insufficient time to select a new sample, the relevant provisions of section 28 shall apply.

28. Non-cooperation.– (1) Where any interested party refuses access to, or otherwise does not provide, necessary information within the time limits provided in this Ordinance, or significantly impedes an investigation, provisional or final determinations, whether affirmative or negative, may be made by the Commission on the basis of the facts available.

(2) Where the Commission establishes that any interested party has supplied false or misleading information, such information shall be disregarded and use may be made by the Commission of the facts available.

(3) Where any information submitted by an interested party is not ideal in all respects it shall nevertheless not be disregarded by the Commission:

Provided that the Commission is satisfied that any deficiencies are not such as to cause undue difficulty in arriving at a reasonably accurate finding and that the information is appropriately submitted in good time and is verifiable, and that the party has acted to the best of its ability.

(4) If evidence or information is not accepted by the Commission, a supplying party shall be informed forthwith of the reasons therefor and shall be granted an opportunity to provide further explanations within such time limit as the Commission may specify

(5) If determinations, including those regarding the amount of countervailable subsidies, are based on the provisions of sub-section (1) including any information supplied in an application it shall, where practicable and with due regard to the time limits of an investigation, be checked by the Commission by reference to information from other independent sources which may be available including published price lists, official import statistics and customs returns, or information obtained from other interested parties during the investigation.

(6) If an interested party does not co-operate, or co-operates only partially so that relevant information is thereby withheld, the result may be less favourable to the party than if it had co-operated.

29. Confidentiality.– (1) Subject to sub-section (2), the Commission shall, during and after an investigation, keep confidential any information submitted to it and such information shall not be disclosed without specific permission of the party submitting it.

(2) Information which is –

(a) by nature confidential, because its disclosure shall be of significant competitive advantage to a competitor, or because its disclosure would have a significantly adverse effect upon a person supplying the information, or upon a person from whom the information was acquired, or where the Commission determines such information to be of a confidential nature for any other reason; or

(b) provided on a confidential basis by parties to an investigation, shall, upon good cause shown, be treated as confidential by the Commission.

(3) The following types of information shall be deemed to be by nature confidential, unless the Commission determines that disclosure in a particular case would neither be of significant competitive advantage to a competitor nor have a significantly adverse effect upon a person supplying an information or upon a person from whom such information was acquired, namely:–

(a) business or trade secrets concerning the nature of a product, production processes, operations, production equipment, or machinery;

(b) information concerning financial condition of a company, which is not publicly available; and

(c) information concerning costs, identification of customers, sales, inventories, shipments, or amount or source of any income, profit, loss or expenditure related to the manufacture and sale of a product.

(4) Any party seeking any information to be kept confidential shall request for the same at the time the information is submitted, along with the reasons warranting confidentiality. The Commission shall consider such requests expeditiously and inform the party submitting the information if it determines that the request for keeping the information confidential is not warranted.

(5) Any party submitting any information with the request to keep it confidential shall furnish a non-confidential summary thereof. Such summary may take the form of ranges or indexation of figures provided in a confidential version, or marked deletions in text or in such other form as the Commission may require:

Provided that such non-confidential summary shall permit a reasonable understanding of the substance of any information submitted in confidence:

Provided further that the deletion in text shall, unless otherwise allowed by the Commission, only relate to names of any buyer or supplier.

(6) In exceptional circumstances, parties may indicate that information for which confidentiality is sought is not susceptible of summary, in which case a statement of the reasons why summarisation is not possible shall be provided:

Provided that where the Commission concludes that a non-confidential summary provided fails to satisfy the requirements of sub-section (5), it may determine that the request for keeping an information confidential is not warranted.

(7) If the Commission finds that a request for keeping an information confidential is not warranted, and if the supplier of the information is unwilling to make the information public or to authorise the disclosure in generalised or summary form, the Commission shall disregard such information, and return the information concerned to the party submitting it.

(8) Save for sub-section (10), notwithstanding anything contained in this Ordinance or in any other law for the time being in force, any confidential information received or obtained, directly or indirectly, by the Commission pursuant to or in connection with an investigation shall not be subject to disclosure by the Commission to any Ministry, Division, department, agency or instrumentality of the Federal Government or a Provincial Government without the prior permission of the party submitting such confidential information.

(9) Information received pursuant to this Ordinance shall be used only for the purpose for which it was requested.

(10) The provisions of sub-section (8) shall not preclude the supply of information called for by the Appellate Tribunal pursuant to section 33:

Provided that the obligation to protect confidential information as provided for in this Chapter shall, *mutatis mutandis*, extend to the Appellate Tribunal.

30. Disclosure.– (1) Any applicant, importer and exporter and their representative association and an exporting country may request disclosure by the Commission of the details underlying the essential facts and considerations on the basis of which provisional countervailing duties have been imposed:

Provided that requests for such disclosure shall be made in writing immediately following imposition of provisional countervailing duties and in any event no later than fifteen days thereof and a disclosure by the Commission shall be made in writing as soon as possible thereafter

(2) The parties specified in sub-section (1) may request for a final disclosure by the Commission of the essential facts and considerations on the basis of which it is intended to recommend imposition of definitive countervailing duties, or termination of an investigation or proceedings without imposition of duties, particular attention being paid to disclosure of any facts or considerations which are different from those used for any provisional countervailing duties.

(3) Requests for final disclosure shall be addressed to the Commission in writing and be received, in cases where provisional countervailing duty has been applied, not later than one month after imposition of that duty.

(4) Where a provisional countervailing duty has not been imposed, parties shall be provided with an opportunity to request final disclosure within such time limits as may be determined by the Commission.

(5) Final disclosure shall be given in writing and shall be made, with due regard to the protection of confidential information pursuant to section 29, as soon as possible and, normally, not later than one month prior to a definitive determination.

(6) Where the Commission is not in a position to disclose certain facts or considerations at that time, these shall be disclosed as soon as possible thereafter. Disclosure shall not prejudice any subsequent decision which may be taken by the Commission but where such decision is based on any different facts and considerations these shall be disclosed as soon as possible.

(7) Representations which are made after a final disclosure is given, shall be taken into consideration only if received within such period as may be determined by the Commission in each case, which shall be at least ten days, due consideration being given to the urgency of the matter.

31. Relationships between countervailing duty measures and multilateral remedies.– Where an investigated product is made subject to any countermeasures imposed following recourse to the dispute settlement procedures provided for in the Agreement on Subsidies and such measures are appropriate to remove the injury caused by any countervailable subsidies, any countervailing duty imposed with regard to such product under this Ordinance shall immediately be terminated by the Commission.

PART XIII

APPEAL TO THE APPELLATE TRIBUNAL

32. Appeal to the Appellate Tribunal.– (1) Without prejudice to the provisions of section 64 of the Anti-Dumping Ordinance, 2000 (LXV of 2000), the Appellate Tribunal shall also exercise jurisdiction under sub-section (2).

(2) Any interested party may prefer an appeal to the Appellate Tribunal against—

(i) an affirmative or negative final determination by the Commission; and

(ii) any final determination pursuant to a review.

(3) Every appeal under sub-section (2) shall be filed within forty-five days from the date of publication in newspapers of a public notice of any affirmative or negative final determination by the Commission, as the case may be, and shall be in such form and contain such information as may be prescribed.

(4) In examining an appeal under sub-section (2), the Appellate Tribunal may make such further inquiry as it may consider necessary, and after giving the Commission and an appellant an opportunity of being heard, pass such order as it thinks fit, confirming, altering or annulling a determination of the Commission appealed against.

(5) An examining an appeal, the Appellate Tribunal shall as regards assessment of the facts relating to an impugned determination of the Commission, determine on the basis of official record maintained by the Commission or any other documents relied upon by the Commission in reaching a determination appealed against, whether the establishment of the facts by the Commission was proper and whether the Commission's evaluation of those facts was unbiased and objective. Where the Appellate Tribunal determines that the Commission's establishment of the facts was proper and its evaluation was unbiased and objective, it shall confirm an impugned determination of the Commission provided that the Appellate Tribunal is satisfied that in reaching the impugned determination, the Commission complied with the relevant provisions of this Ordinance.

(6) An appeal under sub-section (2) shall be disposed of and the decision of the Appellate Tribunal pronounced, as expeditiously as possible but not later than ninety days from the date of receipt of an appeal compliant with the requirements of sub-section (3), except in extraordinary circumstances and on grounds to be recorded. The Appellate Tribunal shall hear the appeal from day to day.

(7) The decision of the Appellate Tribunal shall be in writing and shall give details of the issues raised in appeal and the arguments adopted by an appellant and the Commission, and shall give reasons for reaching its decision with reference to the provisions of this Ordinance and the facts of the case.

(8) The Appellate Tribunal shall provide copies of its decision to all the appellants and the Commission no later than five days from the date of rendering its decision.

(9) The Appellate Tribunal may, if it deems necessary, require an appellant to provide security in such form as may be prescribed, at the time of filing of an appeal.

(10) The decision of the Appellate Tribunal shall be final and no further appeal shall lie therefrom:

Provided that the Appellate Tribunal may, if it thinks fit, accept an application from any party to an appeal in which the Appellate Tribunal has rendered its decision, for a clarification of any of the issues raised by the Appellate Tribunal in its decision:

Provided further that such application shall specify the precise issue in respect of which a clarification is sought and give reasons as to why a clarification is necessary and the Appellate Tribunal shall only accept such application if it is satisfied that a material issue discussed in its decision requires further clarification or elaboration:

Provided further that the party likely to be adversely affected by such clarification shall also be given a notice by the Appellate Tribunal:

Provided also that no application under this sub-section shall be accepted by the Appellate Tribunal later that thirty days of its decision.

(11) The Appellate Tribunal shall perform its functions under this Ordinance in accordance with such procedures as may be prescribed.

33. Power of the Appellate Tribunal to call for and examine record.– The Appellate Tribunal may call for and examine any records of an investigation conducted by the Commission and any other information or documents relied upon by the Commission in reaching a determination appealed against for the purpose of satisfying itself as to the legality or propriety of an impugned determination of the Commission.

PART XVI

MISCELLANEOUS

34. Power to make rules.– (1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for the manner in which any investigation may be conducted, the manner in which an investigated product may be identified, the factors to which regard shall be had in any such investigation, the manner of assessment, levy and collection of any countervailing duty, whether preliminary or definitive, and for all matters connected with an investigation.

35. Public servants.– The employees and other persons authorised to perform or exercise any function or power under this Ordinance or rendering services to the Commission as consultant or adviser shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code, 1860(Act XLV of 1860).

36. Failure to disclose correct information offence.– Any person who knowingly and wilfully provides false, misleading or incorrect information to the Commission whether in an application received under this Ordinance or, otherwise in connection with an investigation under this Ordinance, shall be guilty of an offence and shall on conviction be liable to imprisonment for a term which may extend to three years, or a fine not exceeding five million rupees, or both.

37. Cognizance of offences.– (1) Notwithstanding anything contained in the Code of Criminal procedure, 1898(Act V of 1898), no court other than a court of session shall have jurisdiction to try any person charged with an offence under section 36.

(2) No court of session shall take cognizance of an offence under this Ordinance except upon a complaint in written made by the Commission or an officer authorised by it, and signed by any two members of the Commission.

38. Protection to persons prejudiced in employment because of assisting the Commission.– (1) An employer shall not—

(a) dismiss an employee, or prejudice an employee in his employment, because the employee has assisted the Commission in connection with an inquiry or investigation under this Ordinance; or

(b) dismiss or threaten to dismiss an employee, or prejudice or threaten to prejudice an employee in his employment, because the employee proposes to assist the Commission in connection with an inquiry or investigation under this Ordinance.

(2) For the purposes of sub-section (1), a person shall be taken to assist the Commission in connection with an inquiry if the person –

(a) gives information, whether orally or in writing, or gives documents, to the Commission in connection with an inquiry or investigation under this Ordinance; or

(b) gives evidence, or produces documents, at an inquiry, investigation or hearing held under this Ordinance.

39. Public file to be maintained for interested party and access thereto.– (1) The Commission shall establish and maintain a file relating to each investigation or review pursuant to this Ordinance and subject to the requirement to protect confidential information under section 29, the Commission shall place in such file–

(a) all public notices relating to an investigation or review;

(b) all materials, including questionnaires, responses to questionnaires, and written communications submitted to the Commission;

(c) all other information developed or obtained by the Commission; and

(d) any other documents the Commission deems appropriate for disclosure to an interested party.

(2) The file to be maintained under sub-section (1) shall be available to any interested party for review and copying at the offices of the Commission, during such time as the Commission may specify, throughout the course of an investigation or review and any appeal under section 32.

40. Official file to be maintained by the Commission.– (1) The Commission shall establish and maintain an official file relating to each investigation or review pursuant to this Ordinance and shall place in such file –

(a) all materials, papers and documents, confidential or otherwise, including questionnaires, responses to questionnaires, and written communications submitted to or by the Commission in connection with an investigation or review;

(b) all documents relating to or setting out any calculations made by the Commission in connection with an investigation or review;

(c) all internal correspondence or memoranda of the Commission relating to or in connection with an investigation or review that are relevant to the calculation of dumping margin or determination of injury including, any

correspondence with or between any other Ministry, Division, department, agency or instrumentality of the Federal Government or any Provisional Government;

(d) any other information developed, obtained or relied on by the Commission in connection with an investigation or review; and

(e) any other document or information that the Commission deems appropriate for placing in the official file.

(2) The file to be maintained under sub-section (1) shall only be for the internal use of the Commission and for the Appellate Tribunal in connection with an appeal under section 32.

41. Appointment of advisers and consultants.– (1) Subject to sub-section (2), the Commission may, employ and pay consultants and agents and technical, professional and other advisers, including bankers, economists, actuaries, accountants, lawyers and other persons to do any act required to be done in the exercise of its powers, the performance of its functions or for the better implementation of the purposes of this Ordinance.

(2) The decision to employ and the terms and conditions of employment of external advisers and consultants pursuant to sub-section (1) shall be made by the Commission in accordance with such policy guidelines as may be established by the Federal Government, in consultation with the Commission, from time to time.

42. Indemnity.– No suit, prosecution or other legal proceedings shall lie against the Commission, the Chairman or any member of the Commission or any employee, consultant, agent or adviser of the Commission in respect of anything which is in good faith done or intended to be done under this Ordinance or rules made thereunder.

43. Removal of difficulties.– The Federal Government may for the purpose of removing any difficulties in relation to any matters under this Ordinance, make such orders as may appear to it to be necessary for the purpose of removing the difficulty:

Provided that no such power shall be exercised after the expiry of two years from the commencement of this Ordinance.

44. Ordinance to override other laws.– The provisions of this Ordinance shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force, including, without limitation, the National Tariff Commission Act, 1990(VI of 1990) and the Customs Act, 1969(IV of 1969).

THE FIRST SCHEDULE

[*See* section 5(6) (a)]

ILLUSTRATIVE LIST OF EXPORT SUBSIDIES

1. In this Schedule, unless there is anything repugnant in the subject or context,–

(a) "commercially available" means that the choice between domestic and imported products is unrestricted and depends only on commercial considerations;

(b) "direct taxes" means taxes on wages, profits, interests, rents, royalties, and all other forms of income, and taxes on the ownership of real property;

(c) "cumulative indirect taxes" means indirect taxes which are multi-staged taxes levied where there is no mechanism for subsequent crediting of the tax if goods or services subject to tax at one stage of production are used in a succeeding state of production;

(d) "import charges" means tariffs, duties, and other fiscal charges that are levied on imports;

(e) "indirect taxes" means sales, excise, turnover, value added, franchise, stamp, transfer, inventory and equipment taxes, border taxes and all taxes other than direct taxes and import charges;

(f) "prior-stage indirect taxes" means those indirect taxes levied on goods or services used directly or indirectly in making a product;

(g) "remission" of taxes includes the refund or rebate of taxes; and

(h) "remission or drawback" includes the full or partial exemption or deferral of import charges:

Provided that deferral may not amount to an export subsidy where, for example, appropriate interest charges are collected.

2. The following is an illustrative list of export subsidies, namely:-

(a) any provision by a government of direct subsidies to a firm or an industry contingent upon export performance;

(b) currency retention schemes or any similar practices which involve a bonus on exports;

(c) internal transport and freight charges on export shipments, provided or mandated by a government, on terms more favourable than for domestic shipments;

(d) any provision by a government or its agencies either directly or indirectly through government-mandated schemes, of imported or domestic products or services for use in the production of exported goods, on terms or conditions more favourable than for provision of like or directly competitive products or services for use in the production

of goods for domestic consumption, if, in the case of products, such terms or conditions are more favourable than those commercially available on world markets to their exporters;

(e) any full or partial exemption, remission, or deferral specifically related to exports, of direct taxes or social welfare charges paid or payable by industrial or commercial enterprises;

(f) any allowance of special deductions directly related to exports or export performance, over and above those granted in respect of production for domestic consumption, in calculation of the base on which direct taxes are charged;

(g) any exemption or remission, in respect of the production and distribution of exported products, of indirect taxes in excess of those levied in respect of production and distribution of like products when sold for domestic consumption;

(h) any exemption, remission or deferral of prior-stage cumulative indirect taxes on goods or services used in the production of exported products in excess of any exemption, remission or deferral of like prior-stage cumulative indirect taxes on goods or services used in the production of like products when sold for domestic consumption; provided, however, that prior-stage cumulative indirect taxes may be exempted, remitted or deferred on exported products even when not exempted, remitted or deferred on like products when sold for domestic consumption, if any prior-stage cumulative indirect taxes are levied on inputs that are consumed in the production of an exported product making normal allowance for waste. This clause shall be interpreted in accordance with the guidelines on consumption of inputs in a production process contained in the Second Schedule. For the avoidance of doubt, the provisions of this clause shall not apply to value-added tax systems and border-tax adjustment in lieu thereof and the provisions of clause (g) shall exclusively cover issues relating to excessive remission of value-added taxes;

(i) any remission or drawback of import charges in excess of those levied on imported inputs that are consumed in the production of an exported product, making normal allowance for waste; provided, however, that in particular cases a firm may use a quantity of home market inputs equal to, and having the same quality and characteristics as, the imported inputs as a substitute for them in order to benefit from this provision if the import and the corresponding export operations both occur within a reasonable time period, not to exceed two years. This clause shall be interpreted in accordance with the guidelines on consumption of inputs in the production process contained in the Second Schedule and the guidelines in the determination of substitution drawback systems as export subsidies contained in the Third Schedule;

(j) any provision by a government or, special institutions controlled by a government, of export credit guarantee or insurance programmes, of insurance or guarantee programmes against increases in the cost of exported products or of exchange risk programmes, at premium rates which are inadequate to cover long-term operating costs and losses of the programmes;

(k) any grant by a government or special institutions controlled by or acting under the authority of a government, or both, of export credits at rates below those which they

actually have to pay for the funds so employed or, would have to pay if they borrowed on international capital markets in order to obtain funds of the same maturity and other credit terms and denominated in the same currency as an export credit or, the payment by them of all or part of the costs incurred by exporters or financial institutions in obtaining credits, insofar as they are used to secure a material advantage in the field of export credit terms. Provided, however, that if a country which is a member of the WTO is a party to an international undertaking on official export credits to which at least twelve original such members are parties as of the first day of January, 1979, or, a successor undertaking which has been adopted by those original members, or if in practice a country which is member of the WTO applies the interest rates provisions of the relevant undertaking, an export credit practice which is in conformity with those provisions shall not be considered an export subsidy; and

(l) any other charge on a public account constituting an export subsidy in the sense of Article XVI of the General Agreement on Tariffs and Trade, 1994.

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THE SECOND SCHEDULE

(*See* the First Schedule)

GUIDELINES ON CONSUMPTION OF INPUTS IN THE PRODUCTION PROCESS

1. For the purposes of this Schedule "inputs consumed in the production process" means inputs physically incorporated, energy, fuels and oil used in a production process and catalysts which are consumed in the course of their use to obtain an exported product.

2. Indirect tax rebate schemes can allow for exemption, remission or deferral of prior-stage cumulative indirect taxes levied on inputs that are consumed in the production of an exported product making normal allowance for waste. Similarly, drawback schemes can allow for the remission or drawback of import charges levied on inputs that are consumed in the production of an exported product making normal allowance for waste.

3. The illustrative list of export subsidies in the First Schedule makes reference to the term "inputs that are consumed in the production of the exported product" in clauses (h) and (i) of para 2 thereof. Pursuant to clause (h) of para 2 of the First Schedule, indirect tax rebate schemes can constitute an export subsidy to the extent that they result in exemption, remission or deferral of prior-stage cumulative indirect taxes in excess of the amount of such taxes actually levied on inputs that are consumed in the production of an exported product. Pursuant to clause (i) of para 2 of the First Schedule, drawback schemes can constitute an export subsidy to the extent that they result in a remission or drawback of import charges in excess of those actually levied on inputs that are consumed in the production of an exported product. Both the said clauses stipulate that normal allowance for waste must be made in findings regarding consumption of inputs in the production of an exported product. Clause (i) of para 2 of the First Schedule also provides for substitution, where appropriate.

4. In examining whether inputs are consumed in the production of an exported product, as part of a countervailing duty investigation pursuant to this Ordinance, the Commission should normally proceed on the following basis, namely:—

(a) where it is alleged that an indirect tax rebate scheme, or a drawback scheme, conveys a subsidy by reason of over-rebate or excess drawback of indirect taxes or import charges on inputs consumed in the production of an investigated product, the Commission shall normally first determine whether the government of an exporting country has in place and applies a system or procedure to confirm which inputs are consumed in the production of an exported product and in what amounts. Where such a system or procedure is determined to be applied, the Commission shall normally then examine the system or procedure to see whether it is reasonable and effective for the purpose intended, and based on generally accepted commercial practices in the country of export. The Commission may deem it necessary to carry out, in accordance with section 26, certain practical tests in order to verify information or to satisfy itself that the system or procedure is being effectively applied;

(b) where there is no such system or procedure, or where it is not reasonable, or where it is instituted and considered reasonable but is found not to be applied or not to be applied effectively, a further examination by an exporting country based on the actual inputs involved will normally need to be carried out in the context of determining whether an excess payment occurred. If the Commission deems it necessary, a further examination may be carried out in accordance with clause (a) of this para;

(c) the Commission must normally treat inputs as physically incorporated if such inputs are used in the production process and are physically present in a product exported, and an input need not be present in a final product in the same form in which it entered the production process;

(d) in determining the amount of a particular input that is consumed in the production of an exported product, a "normal allowance for waste" must normally be taken into account by the Commission, and such waste must normally be treated as consumed in the production of an exported product. The term "waste" refers to that portion of a given input which does not serve an independent function in the production process, is not consumed in the production of an exported product, for reasons such as inefficiencies, and is not recovered, used or sold by the same manufacturer; and

(e) the Commission's determination of whether the claimed allowance for waste is "normal" shall normally take into account the production process, the average experience of an industry in the country of export, and other technical factors, as appropriate. The Commission shall bear in mind that an important question is whether the authorities in an exporting country have reasonably calculated the amount of waste, when such an amount is intended to be included in a tax or duty rebate or remission.

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THE THIRD SCHEDULE

(*See* the First Schedule and Second Schedule)

GUIDELINES IN THE DETERMINATION OF SUBSTITUTION DRAWBACK SYSTEMS AS EXPORT SUBSIDIES

1. Drawback systems can allow for refund or drawback of import charges on inputs which are consumed in a production process of another product and where export of this latter product contains domestic inputs having the same quality and characteristics as those submitted for imported inputs. Pursuant to clause (i) of para 2 of the First Schedule, substitution drawback systems can constitute an export subsidy to the extent that they result in an excess drawback of import charges levied initially on imported inputs for which drawback is being claimed.

2. In examining any substitution drawback system as part of a an investigation the Commission shall normally proceed on the following basis, namely:–

(a) clause (i) of para 2 of the First Schedule stipulates that home market inputs may be substituted for imported inputs in the production of a product for export provided such inputs are equal in quantity to, and have same quality and characteristics as, imported inputs being substituted. The existence of a verification system or procedure is important because it enables the government of an exporting country to ensure and demonstrate that the quantity of inputs for which drawback is claimed does not exceed the quantity of similar products exported, in whatever form, and that there is no drawback of import charges in excess of those originally levied on imported inputs in question;

(b) where it is alleged that a substitution drawback system conveys a subsidy, the Commission shall normally first proceed to determine whether the government of an exporting country has in place and applies a verification system or procedure. Where such a system or procedure is determined to be applied, the Commission shall normally then examine the verification procedures to see whether they are reasonable and effective for the purpose intended, and based on generally accepted commercial practices in the country of export. To the extent that any procedures are determined to meet this test and are effectively applied, no subsidy will be presumed to exist. It may be deemed necessary by the Commission to carry out, in accordance with section 26, certain practical tests in order to verify information or to satisfy itself that verification procedures are being effectively applied;

(c) where there are no verification procedures, or where they are not reasonable, or where such procedures are instituted and considered reasonable but are found not be actually applied or not be applied effectively, there may be a subsidy. In such cases, further examination by an exporting country based on actual transactions involved would need to be carried out to determine whether an excess payment occurred. If the

Commission deems it necessary, a further examination mat be carried out in accordance with clause (b); and

(d) the existence of a substitution drawback provision under which exporters are allowed to select particular import shipments on which drawback is claimed shall not of itself be considered by the Commission to convey a subsidy.

3. An excess drawback of import charges within the meaning of clause (i) of para 2 of the First Schedule, would be deemed to exist where a government paid interest on any monies refunded under its drawback schemes, to the extent of an interest actually paid or payable.

THE FOURTH SCHEDULE

[*See* sections 6(1)(c) and 11(7)]

Explanation.– This Schedule has been set out on the basis of Annex 2 to the Agreement on Agriculture included in Annex (1A) to the Final Act of the Results of the Multilateral Trade Negotiations of the Uruguay Round. Any terms or expressions which are not explained herein or which are not self-explanatory are to be interpreted in the context of that Agreement.

DOMESTIC SUPPORT: THE BASIS OF EXEMPTION FROM THE REDUCTION COMMITMENTS

1. Any domestic support measures for which exemption from the reduction commitments is claimed shall meet the fundamental requirement that they have no, or at the most minimal, trade-distorting effects or effects on production. Accordingly, all measures for which exemption is claimed shall, in addition to a policy specific criteria and conditions set out below, conform to the following basic criteria, namely:–

(a) the support in question shall be provided through a publicly-funded government programme including government revenue foregone, not involving transfers from consumers; and

(b) the support in question shall not have the effect of providing price support to producers.

Government Service Programmes

2. General services.– Any policies in this category involve expenditures or, revenue foregone, in relation to programmes which provide services or benefits to agriculture or a rural community. They shall not involve direct payments to producers or processors. Such programmes, which include but are not restricted to the following list, shall meet the general criteria stipulated in para 1 and policy-specific conditions where set out below, namely:–

(a) research, including general research, research in connection with environmental programmes, and research programmes relating to particular products;

(b) pest and disease control, including general and product-specific pest and disease control measures, such as early-warning systems, quarantine and eradication;

(c) raining services, including both general and specific training facilities;

(d) xtension and advisory services, including the provision of means to facilitate transfer of information and results of research to producers and consumers;

(e) inspection services, including general inspection services and an ispection of particular products for health, safety, grading or standardisation purposes;

(f) marketing and promotion services, including market information, advice and promotion relating to particular products but excluding expenditure for unspecified purposes that could be used by sellers to reduce their selling price or confer a direct economic benefit to purchasers; and

(g) nfrastructural services, including, electricity reticulation, roads and other means of transport, market and port facilities, water supply facilities, dams and drainage schemes, and infrastructural works associated with environmental programmes. In all cases the expenditure shall be directed to the provision or construction of capital works only, and shall exclude subsidised provision of on-farm facilities other than for reticulation of generally available public utilities. It shall not include subsidies to inputs or operating costs, or preferential user charges.

3. Public stockholding for food security purposes.– (1) Any expenditure or, revenue foregone, in relation to accumulation and holding of stocks of products which form an integral part of a food security programme identified in national legislation. This may include government aid to private storage of products as part of such a programme.

(2) The volume and accumulation of such stocks shall correspond to predetermined targets related solely to food security. The process of stock accumulation and disposal shall be financially transparent. Food purchases by a government shall be made at current market prices and sales from food security stocks shall be made at no less than the current domestic market price for a product and quality in question.

4. Domestic food aid.—igibility to receive the food aid shall be subject to clearly-defined criteria related to nutritional objectives. Such aid shall be in the form of direct

provision of food to those concerned or the provision of means to allow eligible recipients to buy food either at market or at subsidised prices. Food purchases by a government shall be made at current market prices and the financing and administration of the aid shall be transparent.

5. Direct payments to producers.– Support provided through direct payments or, revenue foregone, including payments in kind, to producers for which exemption from reduction commitments as claimed shall meet the basic criteria stipulated in para 1, plus specific criteria applying to individual types of direct payment as set out in paras 6 to 13. Where exemption from reduction is claimed for any existing or new type of direct payment other than those specified in paras 6 to 13, it shall conform to criteria stipulated in sub-paras (2) to (5) of para 6, in addition to the general criteria set out in para 1.

6. Decoupled income support.– (1) Eligibility for such payments shall be determined by clearly-defined criteria such as income, status as a producer or landowner, factor use or production level in a defined and fixed base period.

(2) The amount of such payments in any given year shall not be related to, or based on, the type or volume of production including, livestock units undertaken by a producer in any year after the base period.

(3) The amount of such payments in any given year shall not be related to, or based on, the prices, whether domestic or international, applying to any production undertaken in any year after the base period.

(4) The amount of such payments in any given year shall not be related to, or based on, the factors of production employed in any year after the base period.

(5) No production shall be required in order to receive such payments.

7. Government financial participation in income insurance and income safety-net programmes.– (1) Eligibility for such payments shall be determined by an income loss, taking into account only income derived from agriculture, which exceeds thirty per cent of average gross income or the equivalent in net income terms, excluding any payments from the same or similar schemes, in the preceding three-year period or a three-year average based on the preceding five-year period, excluding the highest and the lowest entry. Any producer meeting this condition shall be eligible to receive the payments.

(2) The amount of such payments shall compensate for less than seventy per cent of the producer's income loss in the year the producer becomes eligible to receive this assistance.

(3) The amount of any such payments shall relate solely to income, it shall not relate to the type or volume of production including, livestock units, undertaken by the producer, or to the prices, whether domestic or international, applying to such production, or to the factors of production employed.

(4) Where a producer receives in the same year payments pursuant to this para and pursuant to para 8 (relief from natural disasters), the total of such payments shall be less than one hundred per cent of the producer's total loss.

8. Payments, made either directly or by way of a government financial participation in crop insurance schemes, for relief from natural disasters.– (1) Eligibility for such payments shall arise only following a formal recognition by government authorities that a natural or like disaster including, disease outbreaks, pest infestations, nuclear accidents, and war on the territory of the Member concerned, has occurred or is occurring, and shall be determined by a production loss which exceeds thirty per cent of the average of production in the preceding three-year period or a three-year average based on the preceding five-year period, excluding the highest and the lowest entry.

(2) Payments made following a disaster shall be applied only in respect of losses of income, livestock including, payments in connection with veterinary treatment of animals, land or other production factors due to a natural disaster in question.

(3) Payments shall compensate for not more than the total cost of replacing such losses and shall not require or specify the type or quantity of future production.

(4) Payments made during a disaster shall not exceed the level required to prevent or alleviate further loss as defined in sub-para (2).

(5) Where a producer receives in the same year payments pursuant to this para and pursuant to para 7 (income insurance and income safety-net programmes), the total of such payments shall be less than one hundred per cent of the producer ’s total loss.

9. Structural adjustment assistance provided through producer retirement programmes.– (1) Eligibility for such payments shall be determined by reference to clearly defined criteria in programmes designed to facilitate the retirement of persons engaged in marketable agricultural production, or their movement to non-agricultural activities.

(2) Payments shall be conditional upon the total and permanent retirement of the recipients from marketable agricultural production.

10. Structural adjustment assistance provided through resource retirement programmes.– (1) Eligibility for such payments shall be determined by reference to clearly defined criteria in programmes designed to remove land or other resources, including livestock, from marketable agricultural production.

(2) Payments shall be conditional upon the retirement of land from marketable agricultural production for a minimum of three years, and in the case of livestock on its slaughter or definitive permanent disposal.

(3) Payments shall not require or specify any alternative use for such land or other resources which involves the production of marketable agricultural products.

(4) Payments shall not be related to either type or quantity of production or to the prices, whether domestic or international, applying to production undertaken using land or other resources remaining in production.

11. Structural adjustment assistance provided through investment aids.– (1) Eligibility for such payments shall be determined by reference to clearly-defined criteria in government programmes designed to assist the financial or physical restructuring of a producer's operations in response to objectively demonstrated structural disadvantages. Eligibility for such programmes may also be based on a clearly defined government programme for re-privatisation of agricultural land.

(2) The amount of such payments in any given year shall not be related to, or based on, the type or volume of production including, livestock units, undertaken by a producer in any year after the base period other than as provided for under sub-para (5).

(3) The amount of such payments in any given year shall not be related to, or based on, the prices, whether domestic or international, applying to any production undertaken in any year after the base period.

(4) The payments shall be given only for such period of time necessary for realisation of an investment in respect of which they are provided.

(5) The payments shall not mandate or in any way designate the agricultural products to be produced by the recipients except to require them not to produce a particular product.

(6) The payments shall be limited to the amount required to compensate for structural disadvantage.

12. Payments under environmental programmes.– (1) Eligibility for such payments shall be determined as part of a clearly-defined government environmental or conservation programme and be dependent on the fulfilment of specific conditions under the government programme, including conditions related to production methods or inputs.

(2) The amount of payment shall be limited to the extra costs or loss of income involved in complying with the government programme.

13. Payments under regional assistance programmes.– (1) Eligibility for such payments shall be limited to producers in disadvantaged regions. Each such region must be a clearly designated contiguous geographical area with a definable economic and administrative identity, considered as disadvantaged on the basis of neutral and objective criteria clearly spelt out in a law or regulation and indicating that the region's difficulties arise out of more than temporary circumstances.

(2) The amount of such payments in any given year shall not be related to, or based on, the type or volume of production including, livestock units, undertaken by the producer in any year after the base period other than to reduce that production.

(3) The amount of such payments in any given year shall not be related to, or based on, the prices, whether domestic or international, applying to any production undertaken in any year after the base period.

(4) Payments shall be available only to producers in eligible regions, but generally available to all producers within such regions.

(5) Where related to production factors, payments shall be made at a degressive rate above a threshold level of the factor concerned.

(6) The payments shall be limited to the extra costs or loss of income involved in undertaking agricultural production in a specified area.

14. For the purpose of para 3, governmental stockholding programmes for food security purposes in developing countries whose operation is transparent and conducted in accordance with officially published objective criteria or guidelines shall be considered to be in conformity with the provisions of this para, including programmes under which stocks of foodstuffs for food security purposes are acquired and released at administered prices, provided that the difference between the acquisition price and the external reference price is accounted for in the Aggregate Measure of Support.

15. For the purposes of paras 3 and 4, the provision of foodstuffs at subsidised prices with the objective of meeting food requirements of urban and rural poor in developing countries on a regular basis at reasonable prices shall be considered to be in conformity with the provisions of this para.

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FIFTH SCHEDULE

[*See* section 15(3)(b)]

The developing countries referred to in clause (b) of sub-section (3) of section 15 are as under, namely: –

(a) least-developed countries designated as such by the United Nations which are members of the WTO; and

(b) each of the following developing countries which are members of the WTO shall be subject to the provisions which are applicable to developing countries pursuant to clause (b) of sub-section (3) of section 15 until Gross National Product per capita, as determined on the basis of the most recent data available from the International Bank for Reconstruction and Development, has reached United States Dollars One Thousand per annum, namely:–

(i) Bolivia;

(ii) Cameroon;

(iii) Congo;

(iv) Cote d'Ivoire;

(v) Dominican Republic;

(vi) Egypt;

(vii) Ghana;

(viii) Guatemala;

(ix) Guyana;

(x) India;

(xi) Indonesia;

(xii) Kenya;

(xiii) Morocco;

(xiv) Nicaragua;

(xv) Nigeria;

(xvi) Pakistan;

(xvii) Philippines;

(xviii) Senegal;

(xix) Sri Lanka; and

(xx) Zimbabwe

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THE COURT-FEES ACT, 1870

Act No. VII of 1870

[11th *March*, 1870]

CHAPTER I

PRELIMINARY

1. Short title. This Act may be called the Court-fees Act, 1870.

Extent of Act. It extends to [1][the whole of Pakistan].

Commencement of Act. And it shall come into force on the first day of April, 1870.

[2][**1A. Definition of "Appropriate Government".** In this Act "the Appropriate Government" means, in relation to fees or stamps relating to documents presented or to be presented before any officer serving under the [3][Federal Government,] that Government, and in relation to any other fees or stamps, the Provincial Government.]

2. [4][* * * * * * *]

2. [5][* * * * * * *]

CHAPTER II

FEES IN THE HIGH COURTS [1][* * * * * * *]

3. Levy of fees in High Courts on their original sides. The fees payable for the time being to the clerks and officers (other than the sheriffs and attorneys) of the [1][High Courts];

or chargeable in each of such Courts under No. 11 of the first, and Nos.7, 12, 14, [6][*], 20 and 21 of the second schedule to this Act annexed ;

[7][* * * * * * *]

shall be collected in manner hereinafter appearing.

4. Fees on documents filed, etc., in High Courts in their extraordinary jurisdiction ; No document of any of the kinds specified in the first or second schedule to this Act annexed, as chargeable with fees, shall be filed, exhibited or recorded in, or shall be received or furnished by, any of the [1][*] High Courts in any case coming before such Court in the exercise of its extraordinary original civil jurisdiction ;

or in the exercise of its extraordinary original criminal jurisdiction ;

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[1]Subs. and omitted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[2]Ins. by A. O., 1937.
[3]Subs. by Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[4]Rep. by A. O., 1937.
[5]Rep. by the Repealing Act, 1870 (XIV of 1870).
[6]Rep. by the Amending Act, 1891 (XII of 1891).
[7]Omitted by Adaptation of Central Acts and Ordinance Order, 1949, (Order No. 4 of 1949), Art. 3 and Sch.

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in their appellate jurisdiction; or in the exercise of its jurisdiction as regards appeals from the [1][judgments (other than judgments passed in the exercise of the ordinary original Civil Jurisdiction of the Court) of one] or more Judges of the said Court, or of a division Court ;

or in the exercise of its jurisdiction as regards appeals from the Courts subject to its superintendence ;

as Courts of reference and revision. or in the exercise of its jurisdiction as a Court of reference or revision ;

unless in respect of such document there be paid a fee of an amount not less than that indicated by either of the said schedules as the proper fee for such document.

5. Procedure in case of difference as to necessity or amount of fee. When any difference arises between the officer whose duty it is to see that any fee is paid under this Chapter and any suitor or attorney, as to the necessity of paying a fee or the amount thereof, the question shall, when the difference arises in any of the [2][*] High Courts, be referred to the taxing-officer, whose decision thereon shall be final, except when the question is, in his opinion, one of general importance, in which case he shall refer it to the final decision of the Chief Justice of such High Court, or of such Judge of the High Court as the Chief Justice shall appoint either generally or specially in this behalf.

[2][* * * * * * *]

The Chief Justice shall declare who shall be taxing-officer within the meaning of the first paragraph of this section.

CHAPTER III

FEES IN OTHER COURTS AND IN PUBLIC OFFICES

6. Fees on documents filed, etc., in Mufassal Courts or in public offices. Except in the Courts hereinbefore mentioned, no document of any of the kinds specified as chargeable in the first or second schedule to this Act annexed shall be filed, exhibited or recorded in any Court of Justice, or shall be received or furnished by any public officer, unless in respect of such document there be paid a fee of an amount not less than that indicated by either of the said schedules as the proper fee for such document.

7. Computation of fees payable in certain suits. The amount of fee payable under this Act in the suits next hereinafter mentioned shall be computed as follows : —

i. for money In suits for money (including suits for damages or compensation, or arrears of maintenance of annuities, or of other sums payable periodically)— according to the amount claimed:

ii. for maintenance and annuities. In suits for maintenance and annuities or other sums payable periodically—according to the value of the subject-matter of the suit, and such value shall be deemed to be ten times the amount claimed to be payable for one year :

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[1]Subs. by Act No. XIX of 1922, s. 2.
[2]Omitted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).

iii. for moveable property having a market value; In suits for moveable property other than money, where the subject-matter has a market-value—according to such value at the date of presenting the plaint :

iv. In suits—

(a) **for moveable property of no market-value ;** for moveable property where the subject-matter has no market-value, as, for instance, in the case of documents relating to title,

(b) **to enforce a right to share in joint family property ;** to enforce a right to share in any property on the ground that it is joint family property,

(c) **for a declaratory decree and consequential relief ;** to obtain a declaratory decree or order, where consequential relief is prayed,

(d) **for an injunction;** to obtain an injunction,

(e) **for easements ;** for a right to some benefit (not herein otherwise provided for) to arise out of land, and

(f) **or accounts ;** for accounts—

according to the amount at which the relief sought is valued in the plaint or memorandum of appeal :

in all such suits the plaintiff shall state the amount at which he values the relief sought, [1][* * *] :

v. for possession of lands, houses and gardens ; In suits for the possession of land, houses and gardens—

according to the value of the subject-matter ; and such value shall be deemed to be—

where the subject-matter is land, and—

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(a) where the land forms an entire estate, or a definite share of an estate, paying annual revenue to Government,

or forms part of such an estate and is recorded in the Collector's register as separately assessed with such revenue,

and such revenue is permanently settled—
ten times the revenue so payable :

(b) where the land forms an entire estate, or a definite share of an estate, paying annual revenue to Government, or forms part of such estate and is recorded as aforesaid ;

[1]Rep. by the Amending Act, 1891 (XII of 1891), s. 2 and 1st Sch.

and such revenue is settled, but not permanently—
five times the revenue so payable :

(c) where the land pays no such revenue, or has been partially exempted from such payment, or is charged with any fixed payment in lieu of such revenue,

and nett profits have arisen from the land during the year next before the date of presenting the plaint—

fifteen times, such net profits :

but where no such net profits have arisen therefrom— the amount at which the Court shall estimate the land with reference to the value of similar land in the neighbourhood :

(d) where the land forms part of an estate paying revenue to Government, but is not a definite share of such estate and is not separately assessed as above-mentioned—the market-value of the land :

[1][* * * * * * *]

Explanation.—The word "estate" as used in this paragraph means any land subject to the payment of revenue, for which the proprietor or farmer or raiyat shall have executed a separate engagement to Government, or which, in the absence of such engagement, shall have been separately assessed with revenue :

(e) **for houses and gardens ;** where the subject-matter is a house or garden— according to the market-value of the house or garden :

vi. to enforce a right of pre-emption ; In suits to enforce a right of pre-emption— according to the value (computed in accordance with paragraph v of this section) of the land, house or garden in respect of which the right is claimed :

vii. for interest of assignee of land-revenue ; In suits for the interest of an assignee of land-revenue fifteen times his nett profits as such for the year next before the date of presenting the plaint :

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viii. to set aside an attachment ; In suits to set aside an attachment of land or of an interest in land or revenue—according to the amount for which the land or interest was attached :

Provided that, where such amount exceeds the value of the land or interest, the amount of fee shall be computed as if the suit were for the possession of such land or interest.

ix. to redeem ; In suits against a mortgagee for the recovery of the property mortgaged,

to foreclose ; and in suits by a mortgagee to foreclose the mortgage,

or, *w*here the mortgage is made by conditional sale, to have the sale declared absolute—

according to the principal money expressed to be secured by the instrument of mortgage.

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[1]Omitted by the adaptation of Central Acts and Ordinance Order, 1949 **(**Order No. 4 of 1949), Art. 3 and Sch.

x. for specific performance ; In suits for specific performance—

(a) of a contract of sale—according to the amount of the consideration :

(b) of contract of mortgage—according to the amount agreed to be secured :

(c) of a contract of lease—according to the aggregate amount of the fine or premium (if any) and of the rent agreed to be paid during the first year of the term :

(d) of an award—according to the amount or value of the property in dispute :

xi. between landlord and tenant. In the following suits between landlord and tenant : —

(a) for the delivery by a tenant of the counterpart of a lease,

(b) to enhance the rent of a tenant having a right of occupancy,

(c) for the delivery by a landlord of a lease,

[1]*(cc)* for the recovery of immoveable property from a tenant, including a tenant holding over after the determination of a tenancy,

(d) to contest a notice of ejectment,

(e) to recover the occupancy of [1][immoveable property] from which a tenant has been illegally ejected by the landlord, and

(f) for abatement of rent—

according to the amount of the rent of the [1][immoveable property] to which the suit refers payable for the year next before the date of presenting the plaint.

[2][xii. In suits not expressly provided for in this section, according to the value claimed, but such value shall not be less than a value which would attract a Court-fee of less than fifteen rupees.]

8. Fee on memorandum of appeal against order relating to compensation. The amount of fee payable under this Act on a memorandum of appeal against an order relating to compensation under any Act for the time being in force for the acquisition of land for public purposes shall be computed according to the difference between the amount awarded and the amount claimed by the appellant.

9. Power to ascertain net profits or market-value. If the Court sees reason to think that the annual net profits or the market-value of any such land, house or garden as is mentioned in section 7, paragraphs 5 and 6, have or has been wrongly estimated, the Court may, for the purpose of computing the fee payable in any suit therein mentioned, issue a commission to any proper person directing him to make such local or other investigation as may be necessary, and to report thereon to the Court.

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[1]Ins. and subs. by Act No. VI of 1905, s. 2.
Added by Ordinance No. LII of 1962, s. 2.

10. Procedure where net profits or market-value wrongly estimated.— i. If in the result of any such investigation the Court finds that the net profits or market-value have or has been wrongly estimated, the Court, if the estimation has been excessive, may in its discretion refund the excess paid as such fee : but, if the estimation has been insufficient, the Court shall require the plaintiff to pay so much additional fee as would have been payable had the said market-value or net profits been rightly estimated.

ii**.** In such case the suit shall be stayed until the additional fee is paid. If the additional fee is not paid within such time as the Court shall fix, the suit shall be dismissed.

iii**.** [1][* * * * * * *]

11.—Procedure in suits for mesne profits or account when amount decreed exceeds amount claimed. [2][(1)] In suits for mesne profits or for immoveable property and mesne profits, or for an account, if the profits or amount decreed are or is in excess of the profits claimed or the amount at which the plaintiff valued the relief sought, the decree shall not be executed until the difference between the fee actually paid and the fee which would have been payable had the suit comprised the whole of the profits or amount so decreed shall have been paid to the proper officer.

Where the amount of mesne profits is left to be ascertained in the course of the execution of the decree, if the profits so ascertained exceed the profits claimed, the further execution of the decree shall be stayed until the difference between the fee actually paid and the fee which would have been payable had the suit comprised the whole of the profits so ascertained is paid. If the additional fee is not paid within such time as the Court shall fix, the suit shall be dismissed.

[2][**Refund where amount decreed is less than amount claimed.—**(2) Where in any such suit as is referred to in sub-section (1) the Court-fee paid is found to be in excess of the amount of fee which would be payable if the suit had been valued at the amount decreed, the decree-holder shall be entitled to the refund of the excess of Court-fee paid by him.]

12. Decision of question as to valuation.— i. Every question relating to valuation for the purpose of determining the amount of any fee chargeable under this chapter on a plaint or memorandum of appeal shall be decided by the Court in which such plaint or memorandum, as the case may be, is filed, and such decision shall be final as between the parties to the suit.

ii. But whenever any such suit comes before a Court of appeal reference or revision, if such Court considers that the said question has been wrongly decided to the detriment of the revenue, it shall require the party by whom such fee has been paid to pay so much additional fee as would have been payable had the question been rightly decided, and the provisions of section 10, paragraph ii, shall apply.

[1]Rep. by the Amending Act, 1891 (XII of 1891), s. 2 and 1st Sch.
[2]Nnumbered and added by Ordinance No. LII of 1962. s. 3.

13. Fee paid on memorandum of appeal. If an appeal or plaint, which has been rejected by the lower Court on any of the grounds mentioned in the [1][Code of Civil Procedure, 1908 (Act V of 1908)], is ordered to be received, or if a suit is remanded in appeal, on any of the grounds mentioned in [1][rule 23 of Order XLI of the First Schedule to the said Code] for a second decision by the lower Court, the Appellate Court shall grant to the appellant a certificate, authorizing him to receive back from the Collector the full amount of fee paid on the memorandum of appeal :

Provided that if, in the case of a remand in appeal, the order of remand shall not cover the whole of the subject-matter of the suit, the certificate so granted shall not authorize the appellant to receive back more than so much fee as would have been originally payable on the part or parts of such subject-matter in respect whereof the suit has been remanded.

14. Refund of fee on application for review of judgment. Where an application for a review of judgment is presented on or after the ninetieth day from the date of the decree, the Court, unless the delay was caused by the applicant's laches, may, in its discretion, grant him a certificate authorizing him to receive back from the Collector so much of the fee paid on the application as exceeds the fee which would have been payable had it been presented before such day.

15. **Refund where Court reverses or modifies its former decision on ground of mistake.** Where an application for a review of judgment is admitted, and where, on the rehearing, the Court reverses or modifies its former decision on the ground of mistake in law or fact, the applicant shall be entitled to a certificate from the Court authorizing him to receive back from the Collector so much of the fee paid on the [2][application] as exceeds the fee payable on any other application to such Court under the second schedule to this Act, No.1, clause *(b)* or clause *(d)*.

But nothing in the former part of this section shall entitle the applicant to such certificate where the reversal or modification is due, wholly or in part, to fresh evidence which might have been produced at the original hearing.

16. [3][* * * * * * *]

17. **Multifarious suits.** Where a suit embraces two or more distinct subjects, the plaint or memorandum of appeal shall be chargeable with the aggregate amount of the fees to which the plaints or memoranda of appeal in suits embracing separately each of such subjects would be liable under this Act.

Nothing in the former part of this section shall be deemed to affect the power conferred by the [1][Code of Civil Procedure, 1908 **(**Act V of 1908)], section 9.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II Sch.
[2]Subs. by Act No. XX of 1870, s. 1.
[3]Rep. by the Code of Civil Procedure, 1908 **(**V of 1908).

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18. **Written examinations of complainants.** When the first or only examination of a person who complains of the offence of wrongful confinement, or of wrongful restraint, or of any offence other than an offence for which police officers may arrest without a warrant, and who has not already presented a petition on which a fee has been levied under this Act, is reduced to writing under the provisions of the [1][Code of Criminal Procedure, 1898 (Act V of 1898)] the complainant shall pay a fee of eight annas, unless the Court thinks fit to remit such payment.

19. Exemption of certain documents. Nothing contained in this Act shall render the following documents chargeable with any fee :—

i. Power-of-attorney to institute or defend a suit when executed by an officer, warrant-officer, non-commissioned officer or private of [2][the Pakistan Army] not in civil employment.

ii. [3][* * * * * * *]

iii. Written statements called for by the Court after the first hearing of a suit.

iv. [4][* * * * * * *]

v. [5][* * * * * * *]

vi. [5][* * * * * * *]

vii. [5][* * * * * * *]

viii. Probate of a will, letters of administration, [6][and, save as regards debts and securities, a certificate under [5][Sind Regulation VIII of 1827]], where the amount or value of the property in respect of which the probate or letters or certificate shall be granted does not exceed one thousand rupees.

ix. Application or petition to a Collector or other officer making a settlement of land-revenue, or to a Board of Revenue, or a Commissioner of Revenue, relating to matters connected with the assessment of land or the ascertainment of rights thereto or interests therein, if presented previous to the final confirmation of such settlement.

x. Application relating to a supply for irrigation of water belonging to Government.

xi. Application for leave to extend cultivation, or to relinquish land, when presented to an officer of land-revenue by a person holding, under direct engagement with Government, land of which the revenue is settled, but not permanently.

xii. Application for service of notice of relinquishment of land or of enhancement of rent.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII *of* 1981) s. 3 and II Sch.
[2]Subs. by the Central Laws (Adaptation) Order, 1961, (P.O. No. 1 of 1961), Art. 2 and Sch., (*with effect from the 23rd March, 1956*).
[3]Rep. by the Amending Act, 1891 (XII of 1891).
[4]Rep. by the Cantonments Act, 1889 (XIII of 1889).
[5]Omitted by the Adaptation of Central Acts and Ordinance Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.
[6]Subs. by s. 13 (2) of the Succession Certificate Act, 1889 (VII *of* 1889).
[7]Subs. by Ord. XXVII of 1981, s. 3 and II Sch.

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xiii. Written authority to an agent to distrain.

xiv. First application (other than a petition containing a criminal charge or information) for the summons of a witness or other person to attend either to give evidence or to produce a document or in respect of the production or filing of an exhibit not being an affidavit made for the immediate purpose of being produced in Court.

xv. Bail-bonds in criminal cases, recognizances to prosecute or give evidence, and recognizances for personal appearance or otherwise.

xvi. [1][* * * * * * *]

xvii. Petition by a prisoner, or other person in duress or under restraint of any Court or its officers.

xviii. Complaint of a public servant (as defined in the Pakistan Penal Code (Act XLV of 1860), a municipal officer, or an officer or servant of a Railway Company.

xix. Application for permission to cut timber in Government forests, or otherwise relating to such forests.

xx. Application for the payment of money due by Government to the applicant.

xxi. Petition of appeal [2][* * * * *] against any municipal tax.

xxii. Applications for compensation under any law for the time being in force relating to the acquisition of property for public purposes.

xxiii. [1][* * * * * * *]

xxiv. [3][Petitions under the Christian Marriage Act, 1872 (XV of 1872), sections 45 and 48.]

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[4][CHAPTER IIIA

PROBATES, LETTERS OF ADMINISTRATION AND CERTIFICATES OF ADMINISTRATION.

19A. Relief where too high a Court-fee has been paid. Where any person on applying for the probate of a will or letters of administration has estimated the property of the deceased to be of greater value than the same has afterwards proved to be, and has consequently paid too high a court-fee thereon, if, within six months after the true value of the property has been ascertained, such person produces the probate or letters to the Chief Controlling Revenue-authority [5][for the local area] in which the probate or letters has or have been granted,

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[1]Omitted by the Adaptation of Central Acts and Ordinance Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II Sch.
[3]Subs. by the Indian Christian Marriage Act, 1872 (XV of 1872), s. 2.
[4]Ins. by the Probate and Administration Act, 1875 (XIII of 1875), s. 6.
[5]Subs. by Act No. X of 1901, s. 3.

and delivers to such Authority a particular inventory and valuation of the property of the deceased, verified by affidavit or affirmation,

and if such Authority is satisfied that a greater fee was paid on the probate or letters than the law required,

the said Authority may—

(a) cancel the stamp on the probate or letters if such stamp has not been already cancelled ;

(b) substitute another stamp for denoting the court-fee which should have been paid thereon ; and

(c) make an allowance for the difference between them as in the case of spoiled stamps, or repay the same in money, at his discretion.

19B. Relief where debts due from a deceased person have been paid out of his estate. Whenever it is proved to the satisfaction of such Authority that an executor or administrator has paid debts due from the deceased to such an amount as, being deducted out of the amount or value of the estate, reduces the same to a sum which, if it had been the whole gross amount or value of the estate, would have occasioned a less court-fee to be paid on the probate or letters of administration granted in respect of such estate than has been actually paid thereon under this Act,

such Authority may return the difference, provided the same be claimed within three years after the date of such probate or letters.

But when, by reason of any legal proceeding, the debts due from the deceased have not been ascertained and paid, or his effects have not been recovered and made available, and in consequence thereof the executor or administrator is prevented from claiming the return of such difference within the said term of three years, the said Authority may allow such further time for making the claim as may appear to be reasonable under the circumstances.

19C. Relief in case of several grant. Whenever [1][*] a grant of probate or letters of administration has been or is made in respect of the whole of the property belonging to an estate, and the full fee chargeable under this Act has been or is paid thereon, no fee shall be chargeable under the same Act when a like grant is made in respect of the whole or any part of the same property belonging to the same estate.

Whenever such a grant has been or is made in respect of any property forming part of an estate, the amount of fees then actually paid under this Act shall be deducted when a like grant is made in respect of property belonging to the same estate, identical with or including the property to which the former grant relates.

[1]Rep. by the Amending Act, 1891 (XII of 1891), s. 2 and 1st Sch.

19D. Probates declared valid as to trust-property though not covered by court-fee. The probate of the will or the letters of administration of the effects of any person deceased heretofore or hereafter granted shall be deemed valid and available by his executors or administrators for recovering, transferring or assigning any moveable or immoveable property whereof or whereto the deceased was possessed or entitled, either wholly or partially as a trustee, notwithstanding the amount or value of such property is not included in the amount or value of the estate in respect of which a court-fee was paid on such probate or letters of administration.

19E. Provision for case where too low a court-fee has been paid on probates, etc. Where any person on applying for probate or letters of administration has estimated the estate of the deceased to be of less value than the same has afterwards proved to be, and has in consequence paid too low a court-fee thereon, the Chief Controlling Revenue-authority [1][for the local area] in which the probate or letters has or have been granted may, on the value of the estate of the deceased being verified by affidavit or affirmation, cause the probate or letters of administration to be duly stamped on payment of the full court-fee which ought to have been originally paid thereon in respect of such value and of the further penalty, if the probate or letters is or are produced within one year from the date of grant, of five times, or, if it or they is or are produced after one year from such date, of twenty times, such proper court-fee, without any deduction of the court-fee originally paid on such probate or letters :

Provided that, if the application be made within six months after the ascertainment of the true value of the estate and the discovery that too low a court-fee was at first paid on the probate or letters, and if the said Authority is satisfied that such fee was paid in consequence of a mistake or of its not being known at the time that some particular part of the estate belonged to the deceased, and without any intention of fraud or to delay the payment of the proper court-fee, the said Authority may remit the said penalty and cause the probate or letters to be duly stamped on payment only of the sum wanting to make up the fee which should have been at first paid thereon.

19F. Administrator to give proper security before letters stamped under section 19E. In case of letters of administration on which too low a court-fee has been paid at first, the said Authority shall not cause the same to be duly stamped in manner aforesaid until the administrator has given such security to the Court by which the letters of administration have been granted as ought by law to have been given on the granting thereof in case the full value of the estate of the deceased had been then ascertained.

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19G. Executors, etc., not paying full court-fee on probates, etc., within six months after discovery of underpayment. Where too low a court-fee has been paid on any probate or letters of administration in consequence of any mistake, or of its not being known at the time that some particular part of the estate belonged to the deceased, if any executor or administrator acting under such probate or letters does not, within six months [2][***] after the discovery of the mistake or of any effects not known at the time to have belonged to the deceased, apply to the said Authority and pay what is wanting to make up the court-fee which ought to have been paid at first on such probate or letters, he shall forfeit the sum of one thousand rupees and also a further sum at the rate of ten rupees per cent. on the amount of the sum wanting to make up the proper court-fee.

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[1]Subs. by Act No. X of 1901, s. 3.
[2]Rep. by the Amending Act, 1891 (XII of 1891), s. 2 and 1st Sch.

[1][**19H. Notice of applications for probate or letters of administration to be given to Revenue-authorities, and procedure thereon.—**(1) Where an application for probate or letters of administration is made to any Court other than a High Court, the Court shall cause notice of the application to be given to the Collector.

(2) Where such an application as aforesaid is made to a High Court, the High Court shall cause notice of the application to be given to the Chief Controlling Revenue-authority [2][for the local area in which the High Court is situated].

(3) The Collector within the local limits of whose revenue-jurisdiction the property of the deceased or any part thereof is, may at any time inspect or cause to be inspected and take or cause to be taken copies of, the record of any case in which application for probate or letters of administration has been made ; and if, on such inspection or otherwise, he is of opinion that the petitioner has under-estimated the value of the property of the deceased, the Collector may, if he thinks fit, require the attendance of the petitioner (either in person or by agent) and take evidence and inquire into the matter in such manner as he may think fit, and, if he is still of opinion that the value of the property has been under-estimated, may require the petitioner to amend the valuation.

(4) If the petitioner does not amend the valuation to the satisfaction of the Collector, the Collector may move the Court before which the application for probate or letters of administration was made, to hold an inquiry into the true value of the property :

Provided that no such motion shall be made after the expiration of six months from the date of the exhibition of the inventory required by [3][section 277 of the Indian Succession Act, 1925 (XXXIX of 1925)] [3][* * * * * * *]

(5) The Court, when so moved as aforesaid, shall hold, or cause to be held, an inquiry accordingly, and shall record a finding as to the true value, as near as may be, at which the property of the deceased should have been estimated. The Collector shall be deemed to be a party to the inquiry.

(6) For the purposes of any such inquiry, the Court or person authorized by the Court to hold the inquiry may examine the petitioner for probate or letters of administration on oath (whether in person or by commission), and may take such further evidence as may be produced to prove the true value of the property. The person authorized as aforesaid to hold the inquiry shall return to the Court the evidence taken by him and report the result of the inquiry, and such report and the evidence so taken shall be evidence in the proceeding, and the Court may record a finding in accordance with the report, unless it is satisfied that it is erroneous.

(7) The finding of the Court recorded under sub-section (5) shall be final, but shall not bar the entertainment and disposal by the Chief Controlling Revenue-authority of any application under section 19E.

(8) The [4][Provincial Government] may make rules for the guidance of Collectors in the exercise of the powers conferred by sub-section (3).

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[1]Added by Act No. XI of 1899, s. 2.
[2]Subs. by Act X of 1901, s. 3.
[3]Subs. and omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and II Sch.
[4]Subs. by A. O., 1937.

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19I.— Payment of court-fees in respect of probates and letters of administration.— (1) No order entitling the petitioner to the grant of probate or letters of administration shall be made upon an application for such grant until the petitioner has filed in the Court a valuation of the property in the form set forth in the third schedule, and the Court is satisfied that the fee mentioned in No. 11 of the first schedule has been paid on such valuation.

(2) The grant of probate or letters of administration shall not be delayed by reason of any motion made by the Collector under section 19H, sub-section (4).

19J. Recovery of penalties etc.—(1) Any excess fee found to be payable on an inquiry held under section 19H, sub-section (6), and any penalty or forfeiture under section 19G, may, on the certificate of the Chief Controlling Revenue-authority, be recovered from the executor or administrator as if it were an arrear of land-revenue by any Collector [1][* * *].

(2) The Chief Controlling Revenue-authority may remit the whole or any part of any such penalty or forfeiture as aforesaid, or any part of any penalty under section 19E or of any court-fee under section 19E in excess of the full court-fee which ought to have been paid.

19K. Sections 6 and 28 not to apply to probate or letters of administration. Nothing in section 6 or section 28 shall apply to probates or letters of administration.]]

CHAPTER IV

PROCESS-FEES

20. Rules as to cost of processes. The High Court shall, as soon as may be, make rules as to the following matters :—

i. The fees chargeable for serving and executing processes issued by such Court in its appellate jurisdiction, and by the other Civil and Revenue Courts established within the local limits of such jurisdiction ;

ii. the fees chargeable for serving and executing processes issued by the Criminal Courts established within such limits in the case of offences other than offences for which police-officers may arrest without a warrant ; and

iii. the remuneration of the peons and all other persons employed by leave of a Court in the service or execution of processes.

The High Court may from time to time alter and add to the rules so made.

Confirmation and publication of rules. All such rules, alterations and additions shall, after being confirmed by the [2][Provincial Government] [3][* * *] be published in the [2][official Gazette], and shall thereupon have the force of law.

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[1]Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.
[2]Subs. by A. O., 1937.
[3]Rep. by the Devolution Act, 1920 (XXXVIII of 1920), s. 2 and Sch. I.

Until such rules shall be so made and published, the fees now leviable for serving and executing processes shall continue to be levied, and shall be deemed to be fees leviable under this Act.

21. Tables of process-fees. A table in the English and Vernacular languages, showing the fees chargeable for such service and execution, shall be exposed to view in a conspicuous part of each Court.

22. Number of peons in District and subordinate Courts. Subject to rules to be made by the High Court and approved by the [1][Provincial Government] [2][* * *],

every District Judge and every Magistrate of a District shall fix, and may from time to time alter, the number of peons necessary to be employed for the service and execution of processes issued out of his Court and each of the Courts subordinate thereto,

Number of peons in Mufassal Small Cause Courts. and for the purposes of this section, every Court of Small Causes established under Act No. [3][IX of 1887] [3][* * * * * * *] shall be deemed to be subordinate to the Court of the District Judge.

23. Number of peons in Revenue Courts. Subject to rules to be framed by the Chief Controlling Revenue-authority and approved by the [1][Provincial Government] [2][* * *] every officer performing the functions of a Collector of a District shall fix, and may from time to time alter, the number of peons necessary to be employed for the service and execution of processes issued out of his Court or the Courts subordinate to him.

24. [4][* * * * * * *]

CHAPTER V

OF THE MODE OF LEVYING FEES

25. Collection of fees by stamps. All fees referred to in section 3 or chargeable under this Act shall be collected by stamps.

26. Stamps to be impressed or adhesive. The stamps used to denote any fees chargeable under this Act shall be impressed or adhesive, or partly impressed and partly adhesive, as the [1][Appropriate Government] may, by notification in the [1][official Gazette] from time to time direct.

27. Rules for supply, number, renewal and keeping accounts of stamps. The [1][Appropriate Government] may, from time to time, make rules for regulating—

[1]Subs. by A. O., 1937.
[2]Rep. by Act No. XXXVIII of 1920, s. 2 and Sch. I.
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II Sch.
[4]Rep. by the Repealing and Amending Act, 1891 (XII of 1891).

(a) the supply of stamps to be used under this Act ;

(b) the number of stamps to be used for denoting any fee chargeable under this Act ;

(c) the renewal of damaged or spoiled stamps ; and

(d) the keeping accounts of all stamps used under this Act :

Provided that, in the case of stamps used under section 3 in a High Court, such rules shall be made with the concurrence of the Chief Justice of such Court.

All such rules shall be published in the [1][official Gazette], and shall thereupon have the force of law.

28. Stamping documents inadvertently recieved. No document which ought to bear a stamp under this Act shall be of any validity, unless and until it is properly stamped.

But, if any such document is through mistake or inadvertence received, filed or used in any Court or office without being properly stamped, the presiding Judge or the head of the office, as the case may be, or, in the case of a High Court, any Judge of such Court, may, if he thinks fit, order that such document be stamped as he may direct ; and, on such document being stamped accordingly, the same and every proceeding relative thereto shall be as valid as if it had been properly stamped in the first instance.

29. Amended document. Where any such document is amended in order merely to correct a mistake and to make it conform to the original intention of the parties, it shall not be necessary to impose a fresh stamp.

30. Cancellation of stamp. No document requiring a stamp under this Act shall be filed or acted upon in any proceeding in any Court or office until the stamp has been cancelled.

Such officer as the Court or the head of the office may from time to time appoint shall, on receiving any such document, forthwith effect such cancellation by punching out [2][the crescent and star] so as to leave the amount designated on the stamp untouched, and the part removed by punching shall be burnt or otherwise destroyed :

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[3][* * * * * * *]

CHAPTER VI

MISCELLANEOUS

31. [4][* * * * * * *]

32. [5][* * * * * * *]

[1]Subs. by A. O., 1937.
[2]Subs. by Act, 1951 (XIII of 1951), s. 2.
[3]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II Sch.
[4]Rep. by the Code of Criminal Procedure (Amendment) Act, 1923 (XVIII of 1923), s. 163.
[5]Rep. by the Repealing and Amending Act, 1891 (XII of 1891).

33. Admission in criminal cases of documents or which proper fee has not been paid.– Whenever the filing or exhibition in a Criminal Court of a document in respect of which the proper

fee has not been paid is, in the opinion of the presiding Judge, necessary to prevent a failure of justice, nothing contained in section 4 or section 6 shall be deemed to prohibit such filing or exhibition.

[1][**34. Sale of stamps.**—(1) The [2][Appropriate Government] may from time to time make rules for regulating the sale of stamps to be used under this Act, the persons by whom alone such sale is to be conducted, and the duties and remuneration of such persons.

(2) All such rules shall be published in the [2][official Gazette], and shall thereupon have the force of law.

(3) Any person appointed to sell stamps who disobeys any rule made under this section, and any person not so appointed who sells or offers for sale any stamp, shall be punished with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.]

35. Power to reduce or remit fees. The [2][Appropriate Government] may, from time to time by notification in the [2][official Gazette] reduce or remit in the whole or in any part of [3][the territories under its administration] all or any of the fees mentioned in the first and second schedules to this Act annexed, and may in like manner cancel or vary such order.

[4][**35A. Variation of rates.**—(1) The *ad valorem* fees leviable on the institution of suits specified in Schedule I [as amended before the promulgation of the Court-fees (Amendment) Ordinance, 1962, by any Central or Provincial Act] shall be reduced by fifteen per–centum where the value of the subject-matter exceeds two thousand rupees but does not exceed fifteen thousand rupees ; and shall be increased by fifteen per centum where the value of the subject-matter exceeds fifteen thousand rupees.

(2) The amount of fee leviable after reduction of increase provided for in sub-section (1) shall be calculated to the nearest rupee or half rupee, whichever it may be.]

36. Saving of fees to certain officers of High Courts. Nothing in Chapters II and V of this Act applies [5][* * * * * * *] to the fees which any officer of a High Court is allowed to receive in addition to a fixed salary.

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[1]Subs. by Act No. XII of 1891, s. 2 and 1st Sch.
[2]Subs. by A. O., 1937.
[3]Subs. by Act No. XXXVIII of 1920, s. 2 and Sch. I.
[4]Ins. by Ordinance No. LII of 1962, s. 4.
[5]Omitted by Adaptation of Central Acts and Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.

SCHEDULE I

Ad valorem fees

Number	——	Proper Fee
1. Plaint [1][written statement pleading a set off or counter-claim] or memorandum of appeal (not otherwise provided for in this Act) [1][or of cross-objection] presented to any Civil or Revenue Court except those mentioned in section 3.	[2]When the amount or value of the subject-matter in dispute does not exceed five rupees.	Six annas.
	When such amount or value exceeds five rupees, for every five rupees, or part thereof, in excess of five rupees, up to one hundred rupees.	Six annas.
	When such amount or value exceeds one hundred rupees, for every ten rupees, or part thereof, in excess of one hundred rupees, up to one thousand rupees.	Twelve annas.
	When such amount or value exceeds one thousand rupees, for every one hundred rupees, or part thereof in excess of one thousand rupees, up to five thousand rupees.	Five rupees.
	When such amount or value exceeds five thousand rupees, for every two hundred and fifty rupees, or part thereof, in excess of five thousand rupees, up to ten thousand rupees.	Ten rupees.
	When such amount or value exceeds ten thousand rupees, for every five hundred rupees, or part thereof, in excess of ten thousand rupees, up to twenty thousand rupees	Fifteen rupees.
	When such amount or value exceeds twenty thousand rupees, for every one thousand rupees, or part thereof, in excess of twenty thousand rupees, up to thirty thousand rupees.	Twenty rupees.

[1]Ins. by the Code of Civil Procedure, 1908 (Act V of 1908), s. 155 and the Fourth schedule.

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Number	——	Proper Fee
	When such amount or value exceeds thirty thousand rupees, for every two thousand rupees, or part thereof, in excess of thirty thousand rupees, up to fifty thousand rupees.	Twenty rupees.
	When such amount or value exceeds fifty thousand rupees, for every five thousand rupees, or part thereof, in excess of fifty thousand rupees:	Twenty five rupees.
	Provided that the maximum fee leviable on a plaint or memorandum of appeal shall be three thousand rupees.	
2. Plaint [1][* * *] in a suit for possession under [2][the Specific Relief Act, 1877, section 9].	..	A fee of one-half the amount prescribed in the foregoing scale.
3. [3][* * * * * * *]	..	
4. Application for review of judgment, if presented on or after the ninetieth day from the date of the decree.	..	The fee leviable on the plaint or memorandum of appeal.
5. Application for review of judgment, if presented before the ninetieth day from the date of the decree.	..	One-half of the fee leviable on the plaint or memorandum of appeal.
	When such judgment or order is passed by any Civil Court other than a High Court, or by the presiding officer of any Revenue Court or Office, or by any other Judicial or Executive Authority—	
6. Copy or translation of a judgment or order not being, or having the force of, a decree.	(a)—If the amount or value of the subject-matter is fifty or less than fifty rupees.	Four annas.
	(b)—If such amount or value exceeds fifty rupees.	Eight annas.

[1]Rep. by Act No. XX of 1870.
[2]Subs. by the Amending Act, 1891 (XII *of* 1891).
[3]Rep. by Act No. VIII of 1871.

Number	_____	Proper Fee
7. Copy of a decree or order having the force of a decree.	When such judgment or order is passed by a High Court.	One rupee.
	When such decree or order is made by any Civil Court other than a High Court, or by any Revenue Court—	
	(a)—If the amount or value of the subject-matter of the suit wherein such decree or order is made is fifty or less than fifty rupees.	Eight annas.
	(b)—If such amount or value exceeds fifty rupees.	One rupee.
	When such decree or order is made by a High Court.	Four rupees.
8. Copy of any document liable to stamp-duty under the [1][Stamp Act, 1899 (II of 1879)], when left by any party to a suit or proceeding in place of the original withdrawn.	(a)—When the stamp-duty chargeable on the original does not exceed eight annas.	The amount of the duty chargeable on the original.
9. Copy of any revenue or judicial proceeding or order not otherwise provided for by this Act, or copy of any account, statement, report or the like, taken out of any Civil or Criminal or Revenue Court or Office, or from the office of any chief officer charged with the executive administration of a Division.	(b)—In any other case For every three hundred and sixty words or fraction of three hundred and sixty words.	Eight annas. Eight annas.
10. [2][* * * * * * *]		

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981). s. 3 and II Sch.
[2]Rep. by the Guardians and Wards Act, 1890 (VIII of 1890).

Number	_____	Proper Fee
	[2][When the amount or value of the property in respect of which the grant of probate or letters is made exceeds one thousand rupees, but does not exceed ten thousand rupees. When such amount or value exceeds ten thousand rupees, but does not exceed fifty thousand rupees.	Two *per centum* on such amount or value. Two and one-half *per centum on* such amount or value.
[1][11. Probate of a will letters of administration with or without will annexed.	When such amount or value exceeds fifty thousand rupees : Provided that when, after the grant of a certificate under the [3][Succession Act, 1925(XXXIX of 1925)], or under the Regulation of the [1][Sind Code, No. VIII of 1827,] in respect of any property included in an estate, a grant of probate or letters of administration is made in respect of the same estate, the fee payable in respect of the latter grant shall be reduced by the amount of the fee paid in respect of the former grant.	Three *per centum* on such amount or value.]

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[1]Ins. by the Succession Certificate Act, 1889 (VII of 1889), s. 13.
[2]Subs. by Act No. VII of 1910, s. 2.
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and 2nd Sch.

Number		Proper Fee
12. Certificate under the [1][Succession Act, 1925 (XXXIX of 1925).] .	In any case	Two *per centum* on the amount or value of any debt or security specified in the certificate under section 8 of the Act, and three *per centum* on the amount or value of any debt or security to which the certificate is extended under section 10 of the Act. NOTE—(1) The amount of a debt is its amount, including interest on the day on which the inclusion of the debt in the certificate is applied for, so far as such amount can be ascertained. (2) Whether or not any power with respect to a security specified in a certificate has been conferred under the Act ; and where such a power has been so conferred, whether the power is for the receiving of interest or dividends on, or for the negotiation or transfer of the security, or for both purposes, the value of the security is its market-value on the day on which the inclusion of the security in the certificate is applied for, so far as such value can be ascertained.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance. 1981(XXVII of 1981), s.3 and II Sch.

THE PAKISTAN CODE

Number	———	Proper Fee
12A. Certificate under the Regulation of the [1][Sind Code, No. VIII of 1827].	[2][(1) As regards debts and securities.	The same fee as would be payable in respect of a certificate under the [1][Succession Act, 1925 (XXXIX of 1925)] or in respect of an extension of such a certificate, as the case may be.
	(2) As regards other property in respect of which the certificate is granted—	
	When the amount or value of such property exceeds one thousand rupees, but does not exceed ten thousand rupees.	Two *per centum* on such amount or value.
	When such amount or value exceeds ten thousand rupees, but does not exceed fifty thousand rupees.	Two and one-half *per centum* on such amount or value.
	When such amount or value exceeds fifty thousand rupees.	Three *per centum* on such amount or value.]]
13. Application to [1][*******] the [1][Board of Revenue] for the exercise of its revisional jurisdiction under section 84 of the Punjab Tenancy Act, 1887 (XVI of 1887).	When the amount or value of the subject-matter in dispute does not exceed twenty-five rupees.	Two rupees.
	When such amount or value exceeds twenty-five rupees.	The fee leviable on a memorandum of appeal.
[3][13A. Application to a High Court for the exercise of its revisional jurisdiction under section 115 of the Code of Civil Procedure, 1908.	Where the application is for revision of an order and the amount or value of the subject-matter is less than two thousand rupees.	Seven rupees and fifty paisa.
	Where the application is for the revision of an order and the amount or value of the subject-matter is two thousand rupees or more.	Fifteen rupees.
	Where the application is for the revision of an appellate decree.	The fee leviable on a memorandum of appeal.]

[1]Subs and omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II Sch.
[2]Subs. by Act No. VII of 1910, s. 2 (ii).
[3]Ins. by Ordinance No. LII of 1962, s. 5.

Number	———	Proper Fee
14. [1][* * * * * * *]		
15. [2][* * * * * * *]		

Table of rates of ad valorem fees leviable on the institution of suits

When the amount or value of the subject-matter exceeds	But does not exceed	Proper Fee
Rs.	Rs.	Rs. A. P.
..	5	0 6 0
5	10	0 12 0
10	15	1 2 0
15	20	1 8 0
20	25	1 14 0
25	30	2 4 0
30	35	2 10 0
35	40	3 0 0
40	45	3 6 0
45	50	3 12 0
50	55	4 2 0
55	60	4 8 0
60	65	4 14 0
65	70	5 4 0
70	75	5 10 0
75	80	6 0 0
80	85	6 6 0
85	90	6 12 0
90	95	7 2 0
95	100	7 8 0
100	110	8 4 0
110	120	9 0 0
120	130	9 12 0
130	140	10 8 0
140	150	11 4 0
150	160	12 0 0
160	170	12 12 0
170	180	13 8 0
180	190	14 4 0
190	200	15 0 0

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[1]Rep.by A.O., 1937.
[2]Rep. by the Repealing and Amending Act, 1923 (XI of 1923), s. 3 and 2nd Sch.

When the amount or value of the subject-matter exceeds.	But does not exceed	Proper Fee
Rs.	Rs.	Rs. A. P.
200	210	15 12 0
210	220	16 8 0
220	230	17 4 0
230	240	18 0 0
240	250	18 12 0
250	260	19 8 0
260	270	20 4 0
270	280	21 0 0
280	290	21 12 0
290	300	22 8 0
300	310	23 4 0
310	320	24 0 0
320	330	24 12 0
330	340	25 8 0
340	350	26 4 0
350	360	27 0 0
360	370	27 12 0
370	380	28 8 0
380	390	29 4 0
390	400	30 0 0
400	410	30 12 0
410	420	31 8 0
420	430	32 4 0
430	440	33 0 0
440	450	33 12 0
450	460	34 8 0
460	470	35 4 0
470	480	36 0 0
480	490	36 12 0
490	500	37 8 0
500	510	38 4 0
510	520	39 0 0
520	530	39 12 0
530	540	40 8 0
540	550	41 4 0
550	560	42 0 0
560	570	42 12 0
570	580	43 8 0
580	590	44 4 0
590	600	45 0 0
600	610	45 12 0
610	620	46 8 0
620	630	47 4 0
630	640	48 0 0
640	650	48 12 0
650	660	49 8 0
660	670	50 4 0

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670	680	51 0 0
680	690	51 12 0
690	700	52 8 0
700	710	53 4 0
710	720	54 0 0
720	730	54 12 0
730	740	55 8 0
740	750	56 4 0
750	760	57 0 0
760	770	57 12 0
770	780	58 8 0
780	790	59 4 0
790	800	60 0 0
Rs.	Rs.	Rs. A. P.
800	810	60 12 0
810	820	61 8 0
820	830	62 4 0
830	840	63 0 0
840	850	63 12 0
850	860	64 8 0
860	870	65 4 0
870	880	66 0 0
880	890	66 12 0
890	900	67 8 0
900	910	68 4 0
910	920	69 0 0
920	930	69 12 0
930	940	70 8 0
940	950	71 4 0
950	960	72 0 0
960	970	72 12 0
970	980	73 8 0
980	990	74 4 0
990	1,000	75 0 0
1,000	1,100	80 0 0
1,100	1,200	85 0 0
1,200	1,300	90 0 0
1,300	1,400	95 0 0
1,400	1,500	100 0 0
1,500	1,600	105 0 0
1,600	1,700	110 0 0
1,700	1,800	115 0 0
1,800	1,900	120 0 0
1,900	2,000	125 0 0
2,000	2,100	130 0 0
2,100	2,200	135 0 0
2,200	2,300	140 0 0
2,300	2,400	145 0 0
2,400	2,500	150 0 0
2,500	2,600	155 0 0
2,600	2,700	160 0 0

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2,700	2,800	165 0 0
2,800	2,900	170 0 0
2,900	3,000	175 0 0
3,000	3,100	180 0 0
3,100	3,200	185 0 0
3,200	3,300	190 0 0
3,300	3,400	195 0 0
3,400	3,500	200 0 0
3,500	3,600	205 0 0
3,600	3,700	210 0 0
3,700	3,800	215 0 0
3,800	3,900	220 0 0
3,900	4,000	225 0 0
4,000	4,100	230 0 0
4,100	4,200	235 0 0
4,200	4,300	240 0 0
4,300	4,400	245 0 0
4,400	4,500	250 0 0
4,500	4,600	255 0 0
4,600	4,700	260 0 0
4,700	4,800	265 0 0
4,800	4,900	270 0 0
4,900	5,000	275 0 0
5,000	5,250	285 0 0
5,250	5,500	295 0 0
5,500	5,750	305 0 0
5,750	6,000	315 0 0
6,000	6,250	325 0 0
6,250	6,500	335 0 0
6,500	6,750	345 0 0
6,750	7,000	355 0 0
7,000	7,250	365 0 0
7,250	7,500	375 0 0
7,500	7,750	385 0 0
7,750	8,000	395 0 0
8,000	8,250	405 0 0
8,250	8,500	415 0 0
8,500	8,750	425 0 0
8,750	9,000	435 0 0
9,000	9,250	445 0 0
9,250	9,500	455 0 0
9,500	9,750	465 0 0
9,750	10,000	475 0 0
10,000	10,500	490 0 0
10,500	11,000	505 0 0
11,000	11,500	520 0 0
11,500	12,000	535 0 0
12,000	12,500	550 0 0
12,500	13,000	565 0 0
13,000	13,500	580 0 0

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13,500	14,000	595 0 0
14,000	14,500	610 0 0
14,500	15,000	625 0 0
15,000	15,500	640 0 0
15,500	16,000	655 0 0
16,000	16,500	670 0 0
16,500	17,000	685 0 0
17,000	17,500	700 0 0
17,500	18,000	715 0 0
18,000	18,500	730 0 0
18,500	19,000	745 0 0
19,000	19,500	760 0 0
19,500	20,000	775 0 0
20,000	21,000	795 0 0
21,000	22,000	815 0 0
22,000	23,000	835 0 0
23,000	24,000	855 0 0
24,000	25,000	875 0 0
25,000	26,000	895 0 0
26,000	27,000	915 0 0
27,000	28,000	935 0 0
28,000	29,000	955 0 0
29,000	30,000	975 0 0
30,000	32,000	995 0 0
32,000	34,000	1,015 0 0
34,000	36,000	1,035 0 0
36,000	38,000	1,055 0 0
38,000	40,000	1,075 0 0
40,000	42,000	1,095 0 0
42,000	44,000	1,115 0 0
44,000	46,000	1,135 0 0
46,000	48,000	1,155 0 0
48,000	50,000	1,175 0 0
50,000	55,000	1,200 0 0
55,000	60,000	1,225 0 0
60,000	65,000	1,250 0 0
65,000	70,000	1,275 0 0
70,000	75,000	1,300 0 0
75,000	80,000	1,325 0 0
80,000	85,000	1,350 0 0
85,000	90,000	1,375 0 0
90,000	95,000	1,400 0 0
95,000	1,00,000	1,425 0 0
1,00,000	1,05,000	1,450 0 0
1,05,000	1,10,000	1,475 0 0
1,10,000	1,15,000	1,500 0 0
1,15,000	1,20,000	1,525 0 0
1,20,000	1,25,000	1,550 0 0
1,25,000	1,30,000	1,575 0 0
1,30,000	1,35,000	1,600 0 0

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1,35,000	1,40,000	1,625 0 0
1,40,000	1,45,000	1,650 0 0
1,45,000	1,50,000	1,675 0 0
1,50,000	1,55,000	1,700 0 0
1,55,000	1,60,000	1,725 0 0
1,60,000	1,65,000	1,750 0 0
1,65,000	1,70,000	1,775 0 0
1,70,000	1,75,000	1,800 0 0
1,75,000	1,80,000	1,825 0 0
1,80,000	1,85,000	1,850 0 0
1,85,000	1,90,000	1,875 0 0
1,90,000	1,95,000	1,900 0 0
1,95,000	2,00,000	1,925 0 0
2,00,000	2,05,000	1,950 0 0
2,05,000	2,10,000	1,975 0 0
2,10,000	2,15,000	2,000 0 0
2,15,000	2,20,000	2,025 0 0
2,20,000	2,25,000	2,050 0 0
2,25,000	2,30,000	2,075 0 0
2,30,000	2,35,000	2,100 0 0
2,35,000	2,40,000	2,125 0 0
2,40,000	2,45,000	2,150 0 0
2,45,000	2,50,000	2,175 0 0
2,50,000	2,55,000	2,200 0 0
2,55,000	2,60,000	2,225 0 0
2,60,000	2,65,000	2,250 0 0
2,65,000	2,70,000	2,275 0 0
2,70,000	2,75,000	2,300 0 0
2,75,000	2,80,000	2,325 0 0
2,80,000	2,85,000	2,350 0 0
2,85,000	2,90,000	2,375 0 0
2,90,000	2,95,000	2,400 0 0
2,95,000	3,00,000	2,425 0 0
3,00,000	3,05,000	2,450 0 0
3,05,000	3,10,000	2,475 0 0
3,10,000	3,15,000	2,500 0 0
3,15,000	3,20,000	2,525 0 0
3,20,000	3,25,000	2,550 0 0
3,25,000	3,30,000	2,575 0 0
3,30,000	3,35,000	2,600 0 0
3,35,000	3,40,000	2,625 0 0
3,40,000	3,45,000	2,650 0 0
3,45,000	3,50,000	2,675 0 0
3,50,000	3,55,000	2,700 0 0
3,55,000	3,60,000	2,725 0 0
3,60,000	3,65,000	2,750 0 0
3,65,000	3,70,000	2,775 0 0
3,70,000	3,75,000	2,800 0 0
3,75,000	3,80,000	2,825 0 0
3,80,000	3,85,000	2,850 0 0

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3,85,000	3,90,000	2,875 0 0
3,90,000	3,95,000	2,900 0 0
3,95,000	4,00,000	2,925 0 0
4,00,000	4,05,000	2,950 0 0
4,05,000	4,10,000	2,975 0 0
4,10,000	. .	3,000 0 0

SCHEDULE II

Fixed fees

Number	———	Proper Fee
1. Application or petition.	*(a)*—When presented to any officer of the Customs or Excise Department or to any Magistrate by any person having dealings with the Government, and when the subject-matter of such application relates exclusively to those dealings. or when presented to any officer of land-revenue by any person holding temporarily settled land under direct engagement with Government, and when the subject-matter of the application or petition relates exclusively to such engagement; or when presented to any Municipal Commissioner under any Act for the time being in force for the conservancy or improvement of any place, if the application or petition relates solely to such conservancy or improvement; or when presented to any Civil Court other than a	One anna.

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Number	———	Proper Fee
	principal Civil Court of original jurisdiction, [1][* * *], or to any Court of Small Causes constituted under Act No. [2][IX of 1887] or to a Collector or other officer of revenue in relation to any suit or case in which the amount or value of the subject-matter is less than fifty rupees; or when presented to any Civil, Criminal or Revenue Court, or to any Board or executive officer for the purpose of obtaining a copy or translation of any judgment, decree or order passed by such Court, Board or officer, or of any other document on record in such Court or Office.	One anna.
	(*b*) When containing a complaint or charge of any offence other than an offence for which police-officer may, under the Criminal Procedure Code, arrest without warrant, and presented to any Criminal Court ; or when presented to a Civil, Criminal or Revenue Court, or to a Collector, or any Revenue officer having jurisdiction equal or subordinate to a Collector, or to any Magistrate in his executive capacity, and not otherwise provided for by this Act ;	Eight annas.

[1]Rep. by the Cantonments Act, 1889 (XIII of 1889).
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II Sch.

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Number	———	Proper Fee
	or to deposit in Court revenue or rent ; or for determination by a Court of the amount of compensation to be paid by a landlord to his tenant.	Eight annas.
	(c)—When presented to a [1][* * *] Chief Controlling Revenue or Executive Authority, or to a Commissioner of Revenue or Circuit, or to any chief officer charged with the executive administration of a Division and not otherwise provided for by this Act.	One rupee.
	(*d*)—When presented to a High Court.	Two rupees.
[2][1A. Application to any Civil Court that records may be called for from another Court.	When the Court grants the application and is of opinion that the transmission of such records involves the use of the post.	Twelve annas in addition to any fee levied on the application under clause *(a)*, clause *(b)* or clause *(d)* of article 1 of this Schedule.]
2. Application for leave to sue as a pauper.	..	Eight annas.
3. Application for leave to appeal as a pauper.	*(a)*—When presented to a District Court.	One rupee.
	(b)—When presented to a Commissioner or a High Court.	Two rupees.

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[1]Omitted by the Central Adaptation of Laws Order, 1964, (P. O. No. 1 of 1964), Art. 2 and Sch.
[2]1ns. by Act No. XIV of 1911, s. 2.

Number	———	Proper Fee
4. Plaint or memorandum of appeal in a suit to obtain possession under [1][* * *] [2][the [3][Mukhtiarkars Courts Act, 1906(Sind Act II of 1906)]].		
5. Plaint or memorandum of appeal in a suit to establish or disprove a right of occupancy.		
[4][6. Bail-bond or other instrument of obligation given in pursuance of an order made by a Court or Magistrate under any section of the Code of Criminal Procedure, 1898 (V of 1898), or the Code of Civil Procedure, 1908 (V of 1908) and not otherwise provided for by this Act.]		Eight annas.
7. Undertaking under section 49 of the Divorce Act (IV of 1869).		
8. [5][* * * * * * *]		
9. [6][* * * * * * *]		
10. Mukhtarnama or Wakalatnama.	When presented for the conduct of any one case—	
	(a)—to any Civil or Criminal Court other than a High Court, or to any Revenue Court, or to any Collector or Magistrate, or other executive officer, except such as are mentioned in clauses *(b)* and *(c)* of this number.	Eight annas.

[1]Omitted by the Federal of Central Acts & Ordinances Order, 1949 (Order No. 4 of 1949), Art. 3 and Sch.
[2]Subs. by the Amending Act, 1891 (XII of 1891).
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II Sch.
[4]Subs. by the Second Repealing and Amending Act, 1914 (XVII of 1914), s. 2.
[5]Rep. by the Repealing and Amending Act, 1891 (XII of 1891).
[6]Rep. by Act No. XII of 1891.

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Number	———	Proper Fee
10. Namaarnama or Wakalat—*contd*.	*(b)*—to a Commissioner of Revenue, Circuit or Customs or to any officer charged with the executive administration of a Division, not being the Chief Revenue or Executive Authority.	One rupee.
	(c)—to a High Court, [1][* *] Board of Revenue, or other Chief Controlling Revenue or Executive Authority.	Two rupees.
11. Memorandum of appeal when the appeal is not [2][* * *] from a decree or an order having the force of a decree, and is presented —	*(a)*—to any Civil Court other than a High Court, or to any Revenue Court or Executive Officer other than the High Court or Chief Controlling Revenue or Executive Authority.	Eight annas.
	[3][(aa)—to the Central Board of Revenue under [4][section 193 of the Customs Act, 1969 (IV of 1969)] or section 35 of the Central Excises and Salt Act, 1944.]	Twenty-five rupees.
12. Caveat.	(b)—to a High Court or [1][* * *] Chief Controlling Executive or Revenue Authority.	Two rupees
[4][* * *	* *	* *]
[4][* * *	* *	* *]
15. [5][* * * * * **]		

[1]Omitted by the Central Adaptation of Laws Orders, 1964 (P. O. I of 1964), Art. 2 and Schedule.
[2]Omitted by s. 155, (Sch. 4) of the Code of Civil Procedure, 1908 (Act V of 1908).
[3]Ins. by the Finance Act, 1952 (IV of 1952), s. 2.
[4]Subs. and omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II Sch.
[5]Rep. by Act V of 1908.

Number	———	Proper Fee
16. [1][* * *]		
17. Plaint or memorandum of appeal in each of the following suits :—		
i. to alter or set aside a summary decision or order of any of the Civil Courts not established by Letters Patent or of any Revenue Court :		
ii. to alter or cancel any entry in a register of the names of proprietors of revenue paying estates :		Ten rupees
iii. to obtain a declaratory decree where no consequential relief is prayed :		
iv. to set aside an award :		
v. to set aside an adoption :		
vi. every other suit where it is not possible to estimate at a money-value the subject-matter in dispute, and which is not otherwise provided for by this Act.		
18. Application under section 326 of the Code of Civil Procedure.		
[1][19. Agreement in writing stating a question for the opinion of the Court under the Code of Civil Procedure, 1908 (V of 1908).]		
20. Every petition under the Divorce Act, 1869 (IV of 1869), except petitions under section 44 of the same Act, and every memorandum of appeal under section 55 of the same Act.		Twenty rupees.
21. Plaint or memorandum of appeal under the Parsi Marriage and Divorce Act, 1865(XV of 1865).		

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[1]Rep. by Act No. VI of 1889, s. 18.
[2]Subs by the Code of Civil Procedure, 1908 (Act V of 1908), s. 155, and Sch. IV.

[1]SCHEDULE III

(*See* section 19 I)

FORM OF VALUATION (TO BE USED WITH SUCH MODIFICATIONS, IF ANY AS MAY BE NECESSARY).

IN THE COURT OF

Re Probate of the Will of *(or administration of the*), *deceased.*

Property and credits of

I { *solemnly affirm* / make oath }

and say that I am the executor (or one of the executors or one of the next-of-kin) of , deceased, and that I have truly set forth in Annexure A to this affidavit all the property and credits of which the above-named deceased died possessed or was entitled to at the time of his death, and which have come or are likely to come, to my hands.

2. I further say that I have also truly set forth in Annexure B all the items I am by law allowed to deduct.

3. I further say that the said assets, exclusive only of such fast-mentioned items, but inclusive of all rents, interest, dividends and increased values since the date of the death of the said deceased, are under the value of

ANNEXURE A

VALUATION OF THE MOVEABLE AND IMMOVEABLE PROPERTY OF DECEASED.	Rs.	A.	P.
Cash in the house and at the banks, household goods, wearing-apparel, books, plate, jewels, etc.			
(State estimated value according to best of Executor's or Administrator's belief.)			
Property in Government securities transferable at the Public Debt Office.			
(State description and value at the price of the day ; also the interest separately, calculating it to the time of making the application.)			
Immoveable property consisting of			
(State description, giving, in the case of houses, the assessed value, if any, and the number of years' assessment the market-value is *estimated at, and, in the case of land, the area, the market-value and all rents that have accrued).*			

[1]Added by Act No. XI of 1899, s. 3.

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	Rs.	A.	P.
Leasehold property			
(If the deceased held any leases for years determinable, state the number of years' purchase the profit rents are estimated to be worth and the value of such, inserting separately arrears due at the date of death and all rents received or due since that date to the time of making the application.)			
Property in public companies			
(State the particular and the value calculated at the price at the day ; also the interest separately, calculating it to the time of making the application.)			
Policy of insurance upon life, money out on mortgage and other securities, such as bonds, mortgages, bills, notes and other securities for money.			
(State the amount of the whole ; also the interest separately, calculating it to the time of making the application.)			
Book debts .. .. *(Other than bad.)*			
Stock in trade			
(State the estimated value, if any.)			
Other property not comprised under the foregoing heads *(State the estimated value, if any.)*			
TOTAL ..			
Deduct amount shown in Annexure B not subject to duty			
NET TOTAL ..			

ANNEXURE B

SCHEDULE OF DEBTS, ETC.

	Rs.	A.	P.
Amount of debts due and owing from the deceased, payable by law out of the estate.			
Amount of funeral expenses			
Amount of mortgage incumbrances			
Property held in trust not beneficially or with general power to confer a beneficial interest.			
Other property not subject to duty			
Total ..			

SCH. III [1][* * * * * * *]

[1]Omitted by repealing Act, 1870 (XIV of 1870), s. 1.

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Date: 03-02-2025

THE DIPLOMATIC AND CONSULAR OFFICERS (OATHS AND FEES) ACT, 1948

CONTENTS

1. Short title and commencement.
2. Definitions.
3. Powers as to oaths and notarial acts abroad.
4. Powers to fix fees.
5. Exhibition of tables of fees.
6. Penalty for taking excessive fees.
7. Punishments for offence under this Act.
8. Trail of offences.
9. Power to make rules.

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THE DIPLOMATIC AND CONSULAR OFFICERS (OATHS AND FEES) ACT, 1948

[1]ACT NO. XXI OF 1948

[8th January, 1949]

An Act to provide for the administration of oaths by diplomatic and consular Officers and to prescribe the fees leviable in respect of certain of their official duties.

WHEREAS it is expedient to provide for the administration of oaths by diplomatic and consular officers and for the levy of fees in respect of certain official duties performed by them;

It is hereby enacted as follows:—

1. Short title and commencement.— (1) This Act may be called the Diplomatic and Consular Officers (Oaths and Fees) Act, 1948.

(2) It shall come into force at once, and shall be deemed to have taken effect from the fifteenth day of August, 1947.

2. Definitions. — In this Act, unless there is anything repugnant in the subject or context,—

[2][(a) "consular officer" includes consul, consular agent, consul-general, honorary consul, proconsul and vice-consul; and

(b) "diplomatic officer" includes ambassador, agent, agent-general, assistant high commissioner, attache of a diplomatic mission, charged' affaires, commissioner, counsellor, deputy high commissioner, diplomatic secretary, high commissioner and minister.]

3. Powers as to oaths and notarial acts abroad.— (1) Every diplomatic or consular officer [3][of Pakistan exercising his functions in any foreign country or place, or any such diplomatic or consular officer of a foreign country as is in writing authorized in this behalf by the [2][Federal Government] in relation to any foreign country or place,] may in that country or place administer [4][either online or in physical form] any oath or affirmation and take any affidavit and also do any notarial act which any notary public may do within the territories of Pakistan, and every such oath, affirmation, affidavit and notarial act administered, sworn or done by or before any such person shall be as effectual as if duly administered, sworn or done by or before any lawful authority in any part of Pakistan.

(2) Any document purporting to have affixed, impressed or subscribed thereon or thereto the seal and signature of any person authorised by this section to administer an oath in testimony of any oath, affirmation, affidavit or act being administered, sworn or done by or before him, shall be admitted in evidence without proof of the seal or signature being the seal or signature of that person, or of the official character of that person.

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[1]For Statement of Objects and Reasons, *see* Gaz. Of P., 1948, Pt. V p. 124.

[2]Subs. and shall be deemed always to have been so subs. by the Diplomatic and Consular Officers (Oath and Fees) Ordinance, 1960 (12 of 1960), s. 2, for the original cls. (a) and (b), as amended by the Diplomatic and Consular Officers (Oaths and Fees) Amendment Act, 1949 (3 of 1949), s. 2.

[3]Subs. and shall be deemed always to have been so subs. by the Diplomatic and Consular Officers (Oaths and Fees) Ordinance, 1960 (12 of 1960), s. 3, for the original words "exercising his functions in any foreign country or place".

[4] Ins. by Diplomatic and Consular Officers (Oath and Fees) (Amendment) Act, 2022 (XXI of 2022), s. 2.

4. Powers to fix fees.— The [5][Federal Government] shall have power to fix tables of fees to be charged in respect of any act done in the execution of his office by a consular officer or by a diplomatic officer entrusted with consular duties, and to make regulations in accordance with which fees shall be levied, accounted for and applied or may be remitted.

(2) Tables of any fees so fixed and any regulations[6] so made shall be published in the official Gazette.

5. Exhibition of tables of fees.— (1) Tables of the fees mentioned in the preceding section shall be exhibited prominently at every customs port, land customs station and customs aerodrome.

(2) Every consular officer and diplomatic officer entrusted with consular functions shall exhibit the aforesaid tables of fees in his office prominently and shall permit them to be inspected by any person wishing to do so.

6. Penalty for taking excessive fees.— No consular officer or diplomatic officer entrusted with consular duties shall, save as may be provided in the aforesaid regulations, ask for or take any fee or reward for any act done in the execution of his office, and if he does so he shall, without prejudice to any other liability, be punishable for every such offence with fine which may extend to Rs. 3,000.

7. Punishments for offence under this Act.— (1) Whoever swears falsely in any oath or affidavit taken or made in accordance with the provisions of this Act shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

(2) Whoever forges or fraudulently alters the seal or signature of any person authorised by or under this Act to administer an oath or tenders in evidence, or otherwise uses, any affidavit having any seal or signature so forged or counterfeited or fraudulently altered knowing the same to be forged counterfeited or fraudulently altered, shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

8. Trail of offences.— Except as hereinafter provided, any offence under this Act may be inquired into dealt with, tried and punished in any Province of Pakistan in which the person charged with the offence is or is apprehended or is in custody in the same manner and to the same extent as if the offence had been committed within the Province where he is, or is apprehended or is in custody;

Provided that no Court shall take cognizance of an offence under this Act with which any consular officer or diplomatic officer is charged except upon complaint in writing made by a person authorised in this behalf by general or special order of the [7][Federal Government].

[8][**9. Power to make rules**.— The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.]

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[5] Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government".
[6] For the Consular Fees Regulations, 1963, *see* Gaz. of P., 1963, Pt. I pp. 327-330.
[7] Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government".
[8] Added by Diplomatic and Consular Officers (Oath and Fees) (Amendment) Act, 2022 (XXI of 2022), s. 3.

THE DIPLOMATIC AND CONSULAR PRIVILEGES ACT, 1972.

CONTENTS

1. Short title, extent and commencement
2. Provisions of Conventions to have force of law
3. Restriction of privileges and immunities
4. Certificate of Federal Government
5. Power to amend Schedules
6. Repeal

THE PAKISTAN CODE

THE DIPLOMATIC AND CONSULAR PRIVILEGES ACT, 1972.

[1]ACT NO. IX OF 1972

[*10th September, 1972*]

An Act to give effect in Pakistan to the Vienna Convention on Diplomatic Relations, 1961, and the Vienna Convention on Consular Relations, 1963.

WHEREAS Pakistan has acceded to the Vienna Convention on diplomatic Relations, 1961, and the Vienna Convention on consular Relations, 1963 ;

AND WHEREAS it is necessary to give effect in Pakistan to the said Vienna Conventions;

It is hereby enacted as follows:

1. Short title, extent and commencement.—(1) This Act may be called the Diplomatic and Consular Privileges Act, 1972.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Provisions of Conventions to have force of law.— (1) Notwithstanding anything to the contrary contained in any other law for the time being in force, the provisions of the Vienna Convention on Diplomatic Relations, 1961, set out in the First Schedule and Vienna Convention on Consular Relations, 1963, set out in the Second Schedule shall, subject to the other provisions of this Act, have the force of law in Pakistan.

(2) For the purposes of Article 32 of the Convention set out in the First Schedule, a waiver by the head of the mission of any State or any person for the time being performing his functions shall be deemed to be a waiver by that State.

(3) For the purposes of Articles 45 of the Convention set out in the Second Schedule and of that Article as applied by Article 58 of that Convention, a waiver shall be deemed to have been expressed by a State if it has been expressed by the head of the diplomatic mission of that State or by any person for the time being performing his functions or, if there is no such mission, by the head of the consular post concerned.

(4) Articles 35, 36 and 40 of the Convention set out in the First Schedule and Articles 50, 51, 52, 54, 62 and 67 of the Convention set out in the Second Schedule, shall be construed as granting any privilege or immunity which they require to be granted.

3. Restriction of privileges and immunities. If it appears to the Federal Government that the privileges and immunities, accorded to the mission or a consular post of Pakistan in the territory of any State, or to persons connected with that mission or consular post, are less than those conferred by this Act on the mission or a consular post of that State or on persons connected with that mission or consular post, the Federal Government may, by notification in the official Gazette, withdraw such of the privileges and immunities so conferred from the mission of that State or, as the case may be, from

[1]For Statement of Objects and Reasons, *see* Gaz. of P., Ext., Pt. III, p. 380.

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all or any of the consular posts of that State, or from such persons connected therewith as it may deem it.

4. Certificate of Federal Government. If any question arises whether or not any person is entitled to any privilege or immunity under this Act, a certificate issued by or under the authority of the Federal Government stating any fact relating to that question shall be conclusive evidence of that fact.

5. Power to amend Schedules. The Federal Government may, by notification in the official Gazette, amend either of the Schedules in conformity with any amendment duly made in the provisions of the Convention set out therein.

6. Repeal. The Diplomatic and Consular Privileges Ordinance, 1972 (XV of 1972), is hereby repealed.

THE FIRST SCHEDULE

[See section 2(1)]

ARTICLE 1

For the purposes of the present Convention, the following expressions shall have the meanings hereunder assigned to them:

(a) the "head of the mission" is the person charged by the sending State with the duty of acting in that capacity;

(b) the "members of the mission" are the head of the mission and the members of the staff of the mission;

(c) the "members of the staff of the mission" are the members of the diplomatic staff, of the administrative and technical staff and of the service staff of the mission;

(d) the "members of the diplomatic staff" are the members of the staff of the mission having diplomatic rank;

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(e) a "diplomatic agent" is the head of the mission or a member of the diplomatic staff of the mission;

(f) the "members of the administrative and technical staff" are the members of the staff of the mission employed in the administrative and technical service of the mission;

(g) the "members of the service staff" are the members of the staff of the mission in the domestic service of the mission;

(h) a "private servant" is a person who is in the domestic service of a member of the mission and who is not an employee of the sending State;

(i) the "premises of the mission" are the buildings or parts of buildings and the land ancillary thereto, irrespective of ownership, used for the purposes of the mission including the residence of the head of the mission.

ARTICLE 22

1. The premises of the mission shall be inviolable. The agents of the receiving State may not enter them, except with the consent of the head of the mission.

2. The receiving State is under a special duty to take all appropriate steps to protect the premises of the mission against any intrusion or damage and to prevent any disturbance of the peace of the mission or impairment of its dignity.

3. The premises of the mission, their furnishings and other property thereon and the means of transport of the mission shall be immune from search, requisition, attachment or execution.

ARTICLE 23

1. The sending State and the head of the mission shall be exempt from all national, regional or municipal dues and taxes in respect of the premises of the mission, whether owned or leased, other than such as represent payment for specific service rendered.

2. The exemption from taxation referred to in this Article shall not apply to such dues and taxes payable under the law of the receiving State by persons contracting with the sending State or the head of the mission.

ARTICLE 24

The archives and documents of the mission shall be inviolable at any time and wherever they may be.

ARTICLE 27

1. The receiving State shall permit and protect free communication on the part of the mission for all official purposes. In communicating with the Government and the other missions and consulates of the sending State wherever situated, the mission may employ all appropriate means, including diplomatic couriers and messages in code or cypher. However, the mission may install and use a wireless transmitter only with the consent of the receiving State.

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2. The official correspondence of the mission shall be inviolable. Official correspondence means all correspondence relating to the mission and its functions.

3. The diplomatic bag shall not be opened or detained.

4. The packages constituting the diplomatic bag must bear visible external marks of their character and may contain only diplomatic documents or articles intended for official use.

5. The diplomatic courier who shall be provided with an official document indicating his status and the number of package constituting the diplomatic bag, shall be protected by the receiving State in the performance of his function. He shall enjoy personal inviolability and shall not be liable to any form of arrest or detention.

6. The sending State or the mission may designate diplomatic couriers *ad-hoc*. In such cases the provisions of paragraph 5 of this Article shall also apply, except that the immunities therein mentioned shall cease to apply when such a courier has delivered to the consignee the diplomatic bag in his charge.

7. A diplomatic bag may be entrusted to the captain of a commercial aircraft scheduled to land at an authorized port of entry. He shall be provided with an official document indicating the number of packages constituting the bag but he shall not be considered to a diplomatic courier. The mission may sent one of its members to take possession of the diplomatic bag directly and freely from the captain of the aircraft.

ARTICLE 28

The fees and charges levied by the mission on the course of its official duties shall be exempt from all dues and taxes.

ARTICLE 29

The person of a diplomatic agent shall be inviolable. He shall not be liable to any from of arrest or detention. The receiving State shall treat his with due respect and shall take all appropriate steps to prevent any attack on his person, freedom or dignity.

ARTICLE 30

1. The private residence of a diplomatic agent shall enjoy the same inviolability and protection as the premises of the mission.

2. His papers, correspondence and, except as provided in paragraph 3 of Article 31, his property shall likewise enjoy inviolability.

ARTICLE 31

1. A diplomatic agent shall enjoy immunity from the criminal jurisdiction of the receiving State. He shall also enjoy immunity from its civil and administrative jurisdiction, except in the case of:

(a) a real action relating to private immovable property situated in the territory of the receiving State, unless he holds it on behalf of the sending State for the purposes of the mission;

(b) an action relating to succession in which the diplomatic agent is involved as executor, administrator, heir or legatee as a private person and not on behalf of the sending State:

(c) an action relating to any professional or commercial activity exercised by the diplomatic agent in the receiving State outside his official functions.

2. A diplomatic agent is not obliged to give evidence as a witness.

3. No measures of execution may be taken in respect of a diplomatic agent except in the cases coming under sub-paragraphs (a), (b) and (c) of paragraph 1 of this Article, and provided that the measures concerned can be taken without infringing the inviolability of his person or of his residence.

4. The immunity of a diplomatic agent from the jurisdiction of the receiving State does not exempt him from the jurisdiction of the sending State.

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ARTICLE 32

1. The immunity from jurisdiction of diplomatic agents and of persons enjoying immunity under Article 37 may be waived by the sending State.

2. The waiver must always be express.

3. The initiation of proceedings by a diplomatic agent or by a person enjoying immunity from jurisdiction under Article 37 shall preclude him from invoking immunity from jurisdiction in respect of any counter-claim directly connected with the principal claim.

4. Waiver of immunity from jurisdiction in respect of civil of administrative proceedings shall not be held to imply waiver of immunity in respect of the execution of the judgment, for which a separate waiver shall be necessary.

ARTICLE 33

1. Subject to the provisions of paragraph 3 of this Article, a diplomatic agent shall with respect to services rendered for the sending State be exempt from social security provisions which may be in force in the receiving State.

2. The exemption provided for in paragraph 1 of this Article shall also apply to private servants who are in the sole employ of a diplomatic agent, on condition:

(a) that they are not nationals of or permanently resident in the receiving State; and

(b) that they are covered by the social security provisions which may be in force in the sending State or a third State.

3. A diplomatic agent who employs persons to whom the exemptions provided for in paragraph 2 of this Article does not apply shall observe the obligations which the social security provisions of the receiving State impose upon employers.

4. The exemptions provided for in paragraph 1 and 2 of this Article shall not preclude voluntary participation in the social security system of the receiving State provided that such participation is permitted by that State.

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5. The provisions of this Article shall not affect bilateral or multilateral agreements concerning social security concluded previously and shall not prevent the conclusion of such agreements in the future.

ARTICLE 34

A diplomatic agent shall be exempt from all dues and taxes personal or real, national, regional or municipal except:

(a) indirect taxes of a kind which are normally incorporated in the price of goods or services;

(b) dues and taxes on private immovable property situated in the territory of the receiving State, unless he holds it on behalf of the sending State for the purposes of the mission;

(c) estate, succession or inheritance duties levied by the receiving State, subject to the provisions of paragraph 4 of Article 39;

(d) dues and taxes on private income having source in the receiving State and capital taxes on investments made in commercial undertakings in the receiving State;

(e) charges levied for specific services rendered;

(f) registration, court or record fees, mortgage dues and stamp duty, with respect to immovable property, subject to the provisions of Article 23.

ARTICLE 35

The receiving State shall exempt diplomatic agents from all personal service, from all public service of any kind whatsoever, and from military obligations such as those connected with requisitioning, military contribution and billeting.

ARTICLE 36

1. The receiving State shall, in accordance with such laws and regulations as it may adopt, permit entry of and agent exemption from all customs duties, taxes and related charges other than charges for storage and, similar services, on:

(a) articles for the official use of the mission;

(b) articles for the personal use of a diplomatic agent or members of his family forming part of his household, including articles intended for his establishment.

2. The personal baggage of a diplomatic agent shall be exempt from inspection, unless there are serious grounds for presuming that it contains articles not covered by the exemptions mentioned paragraph 1 of this Article, or articles the import of export of which is prohibited by the law or controlled by the quarantine regulations of the receiving State. Such inspection shall be conducted only in the presence of the diplomatic agent or of his authorised representative.

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ARTICLE 37

1. The members of the family of a diplomatic agent forming part of his house-hold shall, if they are not nationals of the receiving State, enjoy the privileges and immunities specified in Articles 29 to 36.

2. Members of the administrative and technical staff of the mission, together with members of their families forming part of their respective households, shall, if they are not nationals of or permanently resident in the receiving State, enjoy the privileges and immunities specified in Articles 29 to 35, except that the immunity from civil and administrative jurisdiction of the receiving State specified in paragraph 1 of Article 31 shall not extend to acts performed outside the course of their duties. They shall also enjoy the privileges specified in Article 36, paragraph 1, in respect of articles imported at the time of first installation.

3. Members of the service staff of the mission who are not nationals of or permanently resident in the receiving State shall enjoy immunity in respect of acts performed in the course of their duties,

exemption from dues and taxes on the emoluments they receive by reason of their employment and the exemption contained in Article 33.

4. Private servants of members of the mission shall, if they are not nationals of or permanently resident in the receiving State, be exempt from dues and taxes on the emoluments they receive by reasons of their employment. In order respects, they made enjoy reasons of their employment. In other respects, they may enjoy privileges and immunities only to the extent admitted by the receiving State. However, the receiving State must exercise its jurisdiction over those persons in such a manner as not to interfere unduly with the performance of the functions of the mission.

ARTICLE 38

1. Except in so for as additional privileges and immunities may be granted by the receiving State, a diplomatic agent who is a national of or permanently resident in that State shall enjoy only immunity from jurisdiction, and inviolability, in respect of official acts performed in the exercise of his functions.

2. Other members of the staff of the mission and private servants who are nationals of or permanently resident in the receiving State shall enjoy privileges and immunities only to the extent admitted by the receiving State. However, the receiving State must exercise its jurisdiction over those persons in such a manner as not to interfere unduly with the performance of the functions of the mission.

ARTICLE 39

1. Every person entitled to privileges and immunities shall enjoy them from the moment he enters the territory of the receiving State on proceeding to take up his post or, if already in its territory, from the moment when his appointment is notified to the Ministry of Foreign Affairs or such other Ministry as may be agreed.

2. When the functions of a person enjoying privileges and immunities have come to an end, such privileges and immunities shall normally cease at the moment when he leaves the country, or on expiry of a reasonable period in which to do so, but shall subsist until that time, even in case of armed conflict. However, with respect to acts performed by such a person in the exercise of his functions as a member of the mission, immunity shall continue to subsist.

3. In case of the death of a member of the mission, the members of his family shall continue to enjoy the privileges and immunities to which they are entitled until the expiry of a reasonable period in which to leave the country.

4. In the event of the death of a member of the mission, not a national of or permanently resident in the receiving State or of a member of his family forming part of his household, the receiving State shall permit the withdrawal of the movable property of the deceased, with the exception of any property acquired in the country the export of which was prohibited at the time of his death. Estate, succession and inheritance duties shall not be levied on movable property the presence of which in the receiving state was due solely to the presence there of the deceased as a member of the mission or as a member of the family of a member of the mission.

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ARTICLE 40.

1. If a diplomatic agent passes through or is in the territory of a third State, which has granted him a passport visa if such visa was necessary, while proceeding to take up or return to his post, or when returning to his own country, the third State shall accord him inviolability and such other immunities as may be required to ensure his transit or return.

2. The same shall apply in the case of any members of his family enjoying privileges or immunities who are accompanying the diplomatic agent, or traveling separately to join him or to return to their country.

3. In circumstances similar to those specified in paragraph 1 of this Article, third States shall not hinder the passage of members of the administrative and technical or services staff of a mission, and of members of their families, through their territories.

4. Third States shall accord to official correspondence and other official communications in transit, including messages in code or cypher, the same freedom and protection as is accorded by the receiving State. They shall accord to diplomatic couriers who have been granted a passport visa if such visa was necessary, and diplomatic bags in transit the same inviolability and protection as the receiving State is bound to accord.

5. The obligations of thirds States under paragraphs 1, 2 and 3 of this Article shall also apply to the persons mentioned respectively in those paragraphs, and to official communications and diplomatic bags, whose presence in the territory of the third States is due to *force majeure.*

THE SECOND SCHEDULE

[*See* section 2 (1)]

ARTICLE 1

DEFINITIONS

1**.** For the purposes of the present Convention, the following expressions shall have the meanings hereunder assigned to them

(a) "Consular post" means any consulate-general Consulate, vice-consulate or consular agency ;

(b) "consular district" means the area assigned to a consular post for the exercise of consular functions ;

(c) "head of consular post" means the persons charged with the duty of acting in that capacity ;

(d) "consular officer" means any person, including the, head of a consular post, entrusted in that capacity with the exercise of consular functions ;

(e) "consular employee" means any person employed in the administrative or technical service of a consular post ;

(f) "member of the service staff" means any person employed in the domestic service of a consular post ;

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(g) "members of the consular post" means consular officers, consular employees and members of the service staff;

(h) "members of the consular staff" means consular officers, other than the head of the consular post, consular employees and members of the service staff;

(i) "member of the private staff" means a person who is employed exclusively in the private service of a member of the consular post ;

(j) "consular premises" mean the buildings or parts of buildings and the land ancillary thereto, irrespective of ownership, used exclusively for the purposes of the consular post;

(k) "consular archives" includes all the papers, documents, correspondence, books, films, tapes and registers of the consular post, together with the cyphers and codes, the card-indexes and any article of furniture intended for their protection or safekeeping.

2. Consular officers are of two categories, namely career consular officers and honorary consular officers. The provisions of Chapter II of the present Convention apply to consular posts headed by career consular officers, the provisions of Chapter II govern consular posts headed by honorary consular officer.

3. The particular status of members of the consular posts who are nationals or permanent residents of the receiving States is governed by Article 71 of the present Convention.

ARTICLE 5

CONSULAR FUNCTIONS

Consular functions consist in:—

(a) protecting in the receiving State the interests of the sending State and of its nationals, both individuals and bodies corporate, within the limits permitted by international law ;

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(b) furthering the development of commercial, economic, cultural and scientific relations between the sending State and the receiving State and otherwise promoting friendly relations between them in accordance with the provisions of the present Convention ;

(c) ascertaining by all lawful means conditions and developments in the commercial, economic, cultural and scientific life of the receiving State, reporting thereon to the Government of the sending State and giving information to persons interested ;

(d) issuing passports and travel documents to national of the sending State, and visas or appropriate documents to persons wishing to travel to the sending State;

(e) helping and assisting nationals, both individuals and bodies corporate, of the sending State;

(f) acting as notary and civil registrar and in capacities of a similar kind, and performing certain functions of an administrative nature, provided that there is nothing contrary thereto in the laws and regulations of the receiving State;

(g) safeguarding the interests of nationals, both individuals and bodies corporate, of the sending State in cases of succession *mortis causa* in territory of the receiving State, in accordance with the laws and regulations of the receiving State ;

(h) safeguarding, within the limits imposed by the laws and regulations of the receiving State, the interest of minors and other persons lacking full capacity who are nationals of the sending State, particularly where any guardianship or trusteeship is required with respect to such persons;

(i) subject to the practices and procedures obtaining in the receiving State, representing or arranging appropriate representation for nationals of the sending State before the tribunals and other authorities of the receiving State, for the purpose of obtaining, in accordance with the laws and regulations of the receiving State, provisional measures for the preservation of the rights and interests of these nationals, where because of absence or any other reason, such nationals are unable at the proper time to assume the defence of their rights and interests ;

(j) transmitting judicial and extra-judicial documents or executing letters rogatory or commissions to take evidence for the courts of the sending State in accordance with international agreements in force or, in the absence of such international agreements, in any other manner, compatible with the laws and regulations of the receiving State ;

(k) exercising rights of supervision and inspection provided for in the laws and regulations of the sending States, in respect of vessels having the nationality of the sending State, and of aircraft registered in that State, and in respect of their crews;

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(l) extending assistance to vessels and aircraft mentioned in sub- paragraph (k) of this Article , and to their crews, taking statements regarding the voyage of a vessel examining and stamping the ships papers, and, without prejudice to the powers of the authorities of the receiving State, conducting investigations into any incidents which occurred during the voyage, and settling disputes of any kind between the master, the officers and the sea-men in so far as this may be authorised by the laws and regulations of the sending State ;

(m) performing any other functions entrusted to a consular post by the sending State which are not prohibited by the laws and regulations of the receiving State or to which no objection is taken by the receiving State or which are referred to in the international agreements in force between the sending State and the receiving State.

ARTICLE 15

TEMPORARY EXERCISE OF THE FUNCTIONS OF THE HEAD OF A CONSULAR POST.

1. If the head of a consular post is unable to carry out his functions or the position of head of consular post is vacant, an acting head of post may act provisionally as head of the consular post.

2. The full name of the acting head of post shall be notified either by the diplomatic mission of the sending State or, if that State has no such mission in the receiving State, by the head of the consular post, or, if he is unable to do so, by a competent authority of the sending State, to the Ministry for Foreign Affairs of the receiving State or to the authority designated by that Ministry. As a general rule, this notification shall be given in advance. The receiving State may make the admission as acting head of post of a person who is neither a diplomatic agent not a consular officer of the sending State in the receiving State conditional on its consent.

3. The competent authorities of the receiving State shall afford assistance and protection to the acting head of post. While he is in charge of the post, the provisions of the present Convention shall apply to him on the same basis as to the head of the consular post concerned. The receiving State shall not, however, be obliged to grant ot an acting head of post any facility, privilege or immunity which the head of the consular post enjoys only subject to conditions not fulfilled by the acting head of post.

4. When, in the circumstances referred to in paragraph 1 of this Article, a member of the diplomatic staff of the diplomatic mission of the sending State in the receiving State is designated by the sending State as an acting head of post, he shall, if the receiving State does not object thereto, continue to enjoy diplomatic privileges and immunities.

ARTICLE 17

PERFORMANCE OF DIPLOMATIC ACTS BY CONSULAR OFFICERS.

1. In a State where the sending State has no diplomatic mission and is not represented by a diplomatic mission of a third State, a consular officer may, with the consent of the receiving State, and without affecting his consular status, be authorised to perform diplomatic acts. The performance of such acts by a consular officer shall not confer upon him any right to claim diplomatic privileges and immunities.

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2. A consular officer may, after notification addressed to the receiving State, act as representative of the Sending State to any inter-Governmental organization. When so acting, he shall be entitled to enjoy any privileges and immunities accorded to such a representative by customary international law or by international agreements; however, in respect of the performance by him of any consular junction, he shall not be entitled to any greater immunity from jurisdiction than that to which a consular officer is entitled under the present Convention.

CHAPTER. II—FACILITIES, PRIVILEGES AND IMMUNITIES RELATING TO CONSULAR POSTS, CAREER CONSULAR OFFICER AND OTHER MEMBERS OF A CONSULAR POST.

SECTION I.**—FACILITIES, PRIVILEGES AND IMMUNITIES RELATING TO A CONSULAR POST**.

ARTICLE 31

INVIOLABEILITY OF THE CONSULAR PREMISES

1. Consular premises shall be inviolable to the extent provided in this Article.

2. The authorities of the receiving State shall not enter that part of the consular premises which is used exclusively for the purpose of the work of the consular post except with the consent of the head of the consular post or of his designee or of the head of the diplomatic mission of the sending State. The consent of the head of the consular post may, however, be assumed in case of fire or other disaster requiring prompt protective action.

3. The consular premises, their furnishings, the property of the consular post and its means of transport shall be immune from any form of requisition for purposes of national defence or public utility. If expropriation is necessary for such purposes, all possible steps shall be taken to avoid impending the performance of consular functions, and prompt adequate and effective compensation shall be paid to the sending State.

ARTICLE 32

EXEMPTION FROM TAXATION OF CONSULAR PREMISES.

1. Consular premises and the residence of the career head of consular post of which the sending State or any person acting on its behalf is the owner or lessee shall be exempt from all national, regional or municipal dues and taxes whatsoever, other than such as represent payment for specific services rendered.

2. The exemption from taxation referred to in paragraph 1 of this Article shall not apply to such dues and taxes if, under the law of the receiving State, they are payable by the person who contracted with the sending State or with the person acting on its behalf.

ARTICLE 33

INVIOLABILITY OF THE CONSULAR ARCHIVES AND DOCUMENTS

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The consular archives and documents shall be inviolable at all times and wherever they may be.

ARTICLE 35

FREEDOM OF COMMUNICATION

1. The receiving State shall permit and protect freedom of communication on the part of the consular post for all official purposes. In communicating with the Government, the diplomatic missions and other consular posts, wherever situated, of the sending State, the consular post may employ all appropriate means, including diplomatic or consular, couriers, diplomatic on consular bags and messages in code or cypher. However, the consular post may install and use a wireless transmitter only with the consent of the receiving State.

2. The official correspondence of the consular post shall be inviolable. Official correspondence means all correspondence relating to the consular post and its functions.

3. The consular bag shall be neither open nor detained. Nevertheless, if the competent authorities of the receiving State have serious reason to believe that the bag contains something other than the correspondence, documents or articles referred to in paragraph 4 of this Article, they may request that the bag be opened in their presence by an authorised representative of the sending State. If this request is refused by the authorities of the sending State, the bag shall be returned to its place of origin.

4. The packages constituting the consular bag shall bear visible external marks of their character and may contain only official correspondence and documents or articles intended exclusively for official use.

5. The consular courier shall be provided with an official document indicating his status and the number of packages constituting the consular bag. Except with the consent of the receiving State he shall be neither a national of the receiving State, not, unless he is a national of the sending State, a permanent resident of the receiving State. In the performance of his functions he shall be protected by the receiving State. He shall enjoy personal inviolability and shall not be liable to any form of arrest or detention.

6. The sending state, its diplomatic missions and its consular posts may designate consular couriers *ad hoc.* In such cases the provisions of paragraph 5 of this Article shall also apply except that the immunities therin mentioned shall cease to apply when such a courier has delivered to the consignee the consular bag in his charge.

7. A consular bag may be entrusted to the captain of a shop or of a commercial aircraft scheduled to land at an authorized port of entry. He shall be provided with an official document indicating the number of packages constituting the bag, by the shall not be considered to be a consular courier. By arrangement with the appropriate local authorities, the consular post may send one of its m embers to take possession of the bag directly and freely from the captain of the shop or of the aircraft.

ARTICLE 39

CONSULAR FEES AND CHARGES

1. The consular post may levy in the territory of the receiving State the fees and charges provided by the laws and regulations of the sending State for consular acts.

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2. The sums collected in the form of the fees and charges referred in the paragraph 1 of this Article, and the receipts for such fees and charges, shall be exempt from all dues and taxes in the receiving State.

SECTION II.—**FACILITIES, PRIVILEGES AND IMMUNITIES RELATING TO CAREER CONSULAR OFFICERS AND OTHER MEMEBERS OF A CONSULAR POST.**

ARTICLE 41

PERSONAL INVIOLABILITY OF CONSULAR OFFCERS

1. Consular officers shall not be liable to arrest or detention pending trial, except in the case of a grave crime and pursuant to a decision by the competent judicial authority.

2. Except in the case specified in paragraph 1 of this Article, consular officers shall not be committed to prison or liable to any other form of restriction on their personal freedom save in execution of a judicial decision of final effect.

ARTICLE 43

IMMUNITY FROM JURISDICTION

1. Consular officers and consular employees shall not be amenable to the jurisdiction of the judicial or administrative authorities of the receiving State in respect of acts performed in the exercise of consular functions.

2. The provisions of paragraph 1 of this Article shall not, however, apply in respect of a Civil action either :

(a) arising out of a contract concluded by a consular officer or a consular employee in which he did not contract expressly or impliedly as an agent of the sending State; or

(b) by a third party for damage arising from an accident in the receiving State caused by a vehicle, vessel or aircraft.

ARTICLE 44

LIABILITY OT GIVE EVIDENCE

1. Members of a consular post may be called upon to attend as witnesses in the course of judicial or administrative proceedings. A consular employee or a member of the service staff shall not, except in the case mentioned in paragraph 3 of this Article, decline to give evidence. If a consular officer should decline to do so, no coercive measure or penalty may be applied to him.

2. The authority requiring the evidence of a consular officer shall avoid interference with the performance of his functions. It may, when possible, take such evidence at his residence or at the consular post or accept a statement from him in writing.

3. Members of consular post are under no obligation to give evidence concerning matters connected with the exercise of their functions or to produce official correspondence and documents relating thereto. They are also entitled to decline to give evidence as expert witnesses with regard to the law of the sending State.

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ARTICLE 45

WAIVER OF PRIVILEGES AND IMMUNITIES

1. The sending State may waive, with regard to a member of the consular post any of the privileges and immunities provided for in Articles 41, 43 and 44.

2. The waiver shall in all cases be express, except as provided in paragraph 3 of this Article, and shall be communicated to the receiving State in writing.

3. The initiation of proceedings by a consular officer or a consular employee in a matter where he might enjoy immunity from jurisdiction under Article 43 shall preclude him from invoking immunity from jurisdiction in respect of any counterclaim directly connected with the principal claim.

4. The waiver of immunity from jurisdiction for the purposes of civil or administrative proceedings shall not be deemed o imply the waiver of immunity form the measures of execution resulting form the judicial decision ; in respect of such measures, a separate waiver shall be necessary.

ARTICLE 48

SOCIAL SECURITY EXEMPTION

1. Subject to the provisions of paragraph 3 of this Article, members of the consular post with respect to services rendered by them for the sending State and members of their families forming part of their households, shall be exempt from social security provisions which may be in force in the receiving State.

2. The exemption provided for in paragraph 1 of this Article shall apply also to members of the private staff who are in the sole employ of members of the consular post, on condition:-

(a) that they are not nationals of or permanently resident in the receiving State; and

(b) that they are covered by the social security provisions which are in force in the sending State or a third State.

3. Members of the consular post who employ persons to whom the exemption provided for in paragraph 2 of this Article does not apply shall observe the obligations which the social security provisions of the receiving State impose upon employers.

4. The exemption provided for in paragraph 1 and 2 of this Article shall not preclude voluntary participation in the social security system of the receiving State, provided that such participation is permitted by that State.

ARTICLE 49

EXEMPTION FROM TAXATION

1. Consular officers and consular employees and members of their families forming part of their households shall be exempt form all dues and taxes, personal or real, national, regional or municipal, except:

(a) indirect taxes of a kind which are normally incorporated in the price of goods or services ;

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(b) dues or taxes on private immovable property situated in the territory of the receiving State, subject to the provisions of Article 32;

(c) estate, succession or inheritance duties, and duties on transfers, levied by the receiving State, subject to the provisions of paragraph (b) of Article 51;

(d) dues and taxes on private income, including capital gains, having its source in the receiving State and capital taxes relating to investments made in commercial or financial undertakings in the receiving State;

(e) charges levied for specific services rendered;

(f) registration, court or record fees, mortgage dues and stamp duties, subject to the provisions of Article 32.

2. Members of the service staff shall be exempt form dues and taxes on the wages which they receive for their services.

3. Members of the consular post who employ persons whose wages or salaries are not exempt from income tax in the receiving State shall observe the obligations which the laws and regulations of that State impose upon employers concerning the levying of income tax.

ARTICLE 50

EXEMPTION FROM CUSTOMS DUTIES AND INSPECTION

1. The receiving State shall, in accordance with such laws and regulations as i9t may adopt, permit entry of and grant exemption form all customs duties, taxes, and related charges other than charges for storage cartage and similar services, on :

(a) articles for the official use of the consular post;

(b) articles for the personal use of a consular officer or members of his family forming part of his household, including articles intended for his establishment. The articles intended for consumption shall not exceed the quantities necessary for direct utilization by the persons concerned.

2. Consular employees shall enjoy the privileges and exemptions specified in paragraph 1 of this Article in respect of articles imported at the time of first installation.

3. Personal baggage accompanying consular officers and members of their families forming part of their households shall be exempted from inspection. It may be inspected only if there is serious reason to believe that it contains articles other than those referred to in sub-paragraph (b) of paragraph 1 of this Article, or articles the import or export of which is prohibited by the laws and regulations of the receiving State or which are subject to its quarantine laws and regulations. Such inspection shall be carried out in the presence of the consular officer or member of his family concerned.

ARTICLE 51

ESTATE OF A MEMBER OF THE CONSULAR POST OR OF A MEMBER OF HIS FAMILY

In the event of the death of a member of the consular post or of a member of his family forming part of his household, the receiving State:-

(a) shall permit the export of the movable property of the deceased, with the exception of any such property acquired in the receiving State the export of which was prohibited at the time of his death ;

(b) shall not levy national, regional or municipal estate, succession or inheritance duties, and duties on transfers, on movable property the presence of which in the receiving State was due solely to the presence in that State of the deceased as a member of the consular post or as a member of the family of a member of the consular post.

ARTICLE 52

EXEMPTION FROM PERSONAL SERVICES AND CONTRIBUTIONS

The receiving State shall exempt members of the consular post and members of their families forming part of their households from all personal services, from all public service of any kind

whatsoever, and from military obligations such as those connected with requisitioning, military contributions and billeting.

ARTICLE 53

BEGINNING AND END OF CONSULAR PRIVILEGES AND IMMUNITIES

1. Every member of the consular post shall enjoy the privileges and immunities provided in the present Convention from the moment he enters the territory of the receiving State on proceeding to take up his post or if already in its territory from the moment when he enters on his duties with the consular post.

2. Members of the family of a member of the consular post forming part of his household and members of his private staff shall receive the privileges and immunities provided in the present Convention from the date from which he enjoys privileges and immunities in accordance with paragraph 1 of this Article or from the date of their entry into the territory of the receiving State or from the date of their becoming a member of such family or private staff, whichever is the latest.

3. When the functions of a member of the consular post have come to an end, his privileges and immunities and those of a member of his family forming part of his household or a member of his private staff shall normally cease at the moment when the person concerned leaves the receiving State or on the expiry of a reasonable period in which to do so whichever is the sooner, but shall subsist until that time, even in case of armed conflict. In the case of the persons referred to in paragraph 2 of this Article, their privileges and immunities shall come to an end when they cease to belong to the household or to be in the service of a member of the consular post provided, however, that if such persons intend leaving the receiving State within a reasonale period thereafter, their privileges and immunities shall subsist until the time of their departure.

4. However, with respect to acts performed by a consular officer or a consular employee in the exercise of his functions, immunity from jurisdiction shall continue to subsist without limitation of time.

5. In the event of the death of a member of the consular post, the members of his family forming part of his household shall continue to enjoy the privileges and immunities accorded to them until they leave the receiving State or until the expiry of a reasonable period enabling them to do so, whichever is the sooner.

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ARTICLE 54

OBLIGATIONS TO THIRD STATES

1. If a consular officer passes through or is in the territorry of a third State, which has granted him a visa, if visa was necessary,while proceeding to take up or return to his post or when returning to the sending State, the third state shall accord to him all immunities provided for by the other Articles of the present Convention as may be required to ensure his transit or return. The same shall apply in the case of any member of his family forming part of his household enjoying such privileges and immunities who are accompanying the consular officer of travelling separately to join him or to return to the sending State.

2. In circumstances similar to those specified in paragraph 1 of this Article, third State shall not hinder the transit through their territory of other members of the consular post or of members of their families forming part of their households.

3. Third State shall accord to official correspondence and to other official communications in transit, including messages in code or cypher, the same freedom and protection as the receiving State is bound to accord under the present Convention. They shall accord to consular couriers who have been granted a visa, if a visa was necessary, and to consular bags in transit, the same inviolability and protection as the receiving State is bound to accord under the present Convention.

4. The obligations of third States under paragraphs 1, 2 and 3 of the this Article shall also apply to the persons mentioned respectively in those paragraphs, and to official communications and to consular bags, whose presence in the territory of the third State is due to force majeure.

ARTICLE 55

RESPECT FOR THE LAWS AND REGULATIONS OF THE RECEIVING STATE

1. The consular premises shall not be used in any manner incompatible with the exercise of consular functions.

2. The provisions of paragraph 2 of this Article shall not exclude the possibility of offices of other institutions or agencies being installed in part of the building in which the consular premises are situated, provided that the premises assigned to them are separate from those used by the consular post. In that event, the said offices shall not, for the purposes of the present Convention, be considered to form part of the consular premises.

ARTICLE 57

SPECIAL PROVISONS CONCERNING PRIVATE GAINFUL OCCUPATION.

1. Privileges and immunities provided in this Chapter shall not be accorded:

(a) to consular employees or to members of the services staff who carry on any private gainful occupation in the receiving State;

(b) to members of the family of a person referred to in sub-paragraph (a) of this paragraph or to members of his private staff;

(c) to members of the family of a memeber of a consular post who themselves carry on any private gainful occupation in the receiving State.

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CHAPTER III.—**REGIME RELATING TO HONORARY CONSULAR OFFICERS AND CONSULAR POSTS HEADED BY SUCH OFFICERS**

ARTICLE 58

GENERAL PROVISIONS RELATING TO FACILITIES, PRIVILEGES AND IMMUNITIES

1. Articles 35 and 39, paragraph 3 of Article 54 and Paragraphs 2 and 3 of Article 55 shall apply to consular posts headed by an honorary consular officer. In addition, the facilities privileges and immunities of such consular posts shall be governed by Articles 60, 61 and 62.

2. Article 43, paragraph 3 of Article 44, Articles 45 and 53 shall apply to honorary consular officers. In addition, the facilities, privileges and immunities of such consular officers shall be governed by Articles 66 and 67,

3. Privileges and immunities provided in the present Convention shall not be accorded to members of the family of an honorary consular officer or of a consular employee employed at a consular post headed by an honorary consular officer.

Article 60

EXEMPTION FROM TAXATION OF CONSULAR PREMISES

1. Consular premises of a consular post headed by an honorary consular officer of which the sending State is the owner or lessee shall be exempt from all national, regional or municipal dues and taxes whatsoever, other than such as represent payment for specific services rendered.

2. The exemption from taxation referred to in paragraph 1 of this Article shall not apply to such dues and taxes, if under the laws and regulations of the receiving State, they are payable by the person who contracted with the sending State.

Article 61

INVIOLABILITY OF CONSULAR ARCHIVES AND DOCUMENTS

The consular archives and documents of a consular post headed by an honorary consular officer shall be inviolable at all times and wherever they may be, provided that they are kept separate from other papers and documents and, in particular, from the private correspondence of the head of a consular post and of any person working with him, and from the materials, books or documents relating to their profession or trade.

Article 62

EXEMPTION FROM CUSTOMS DUTIES

The receiving State shall, in accordance with such laws and regulations as it may adopt, permit entry of and grant exemption from all customs duties, taxes, and related charges other than charges for storage, cartage and similar services on the following articles, provided that they are for the official use of consular post headed by an honorary consular officer: coasts-of-arms, flags, signboards, seals and stamps, books, official printed matter, office furniture, office equipment and similar articles supplied by or at the instance of the sending State to the consular post.

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Article 66

EXEMPTION FROM TAXATION

An honorary consular officer shall be exempt from all dues and taxes on the remuneration and emoluments which he receives from the sending State in respect of the exercise of consular functions.

Article 67

EXEMPTION FROM PERSONAL SERVICES AND CONTRIBUTIONS

The receiving State shall exempt honorary consular officers from all personal services and from all public services of any kind whatsoever and from military obligations such as those connected with requisitioning military contributions and billeting.

CHAPTER IV

General Provisions

Article 70

EXERCISE OF CONSULAR FUNCTIONS BY DIPLOMATIC MISSIONS

1. The provisions of the present Convention apply also, so far as the context permits to the exercise of consular functions by a "diplomatic mission.

2. The names of members of a diplomatic mission assigned to the consular section or otherwise charged with the exercise of the consular functions of the mission shall be notified to the Ministry for Foreign Affairs of the receiving State or to the authority designated by that Ministry.

4. The privileges and immunities of the members of a diplomatic mission referred to in paragraph 2 of this Article shall continue to be governed by the rules of international law concerning diplomatic relations.

Article 71

NATIONALS OR PERMANENT RESIDENTS OF THE RECEIVING STATE

1. Except in so far as additional facilities, privileges and immunities may be granted by the receiving State, consular officers who are nationals of or permanently resident in the receiving State shall enjoy only immunity from jurisdiction and personal inviolability in respect of official acts performed in the exercise of their functions, and the privilege provided in paragraph 3 of Article 44.

2. Other members of the consular post who are nationals of or permanently resident in the receiving State and members of their families, as well as members of the families of consular officers referred to in paragraph 1 of this Articles, shall enjoy facilities, privileges and immunities only in so far as these are granted to them by the receiving State. Those members of the families of members of the consular post and those members of the private staff who are themselves nationals of or permanently resident in the receiving State shall likewise enjoy facilities, privileges and immunities only in so far as these are granted tc them by the receiving State.

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Date: 11-11-2024

THE DIPLOMATIC IMMUNITIES (COMMONWEALTH COUNTRIES REPRESENTATIVES) ACT, 1957

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Immunity of chief representative
4. Immunity of member of staff or family
5. Rules for grant of consular immunity
6. Waiver of immunity
7. Certificate regarding immunity
8. Rules

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THE DIPLOMATIC IMMUNITIES (COMMONWEALTH COUNTRIES REPRESENTATIVES) ACT, 1957

ACT NO. XXIX OF 1957

[30th *April,* 1957]

An Act to declare and confer certain immunities on representatives in Pakistan of Commonwealth Countries and on certain other persons.

WHEREAS it is expedient to declare and confer certain immunities upon representatives in Pakistan of Commonwealth Countries and on certain other persons and to provide for certain other matters;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Diplomatic Immunities (Commonwealth Countries Representatives) Act, 1957.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Act unless there is anything repugnant in the subject or context:—

(a) "chief representative" means a person whether known by the title of High Commissioner or by any other title, who for the time being is recognized by the Government of Pakistan as the chief representative in Pakistan of a Commonwealth Country for the purposes of this Act ;

(b) "envoy" means the envoy of a foreign sovereign power duly accredited in Pakistan ;

(c) "member of the family" of a person means his wife and his unmarried children below the age of twentyone, when resident with him ;

(d) "prescribed" means prescribed by rules made under this Act ;

(e) "staff" of a chief representative includes every person employed by the chief representative but not servants employed by a member of the staff ;

(f) "the official staff" of a chief representative means officials employed in a representative capacity directly under the orders of the chief representative.

3. Immunity of chief representative.— A chief representative is and shall be entitled to the immunity from suit and legal process, and to the inviolability of residence, official premises and official archives, to which he would be entitled if he were an envoy.

4. Immunity of member of staff or family.— (1) Subject to sub-section (2) a person who is,—

(a) a member of the family of a chief representative,

(b) a member of the staff of a chief representative, or

(c) a member of the family of a member of the official staff of a chief representative,

is and shall be entitled to the immunity from suit and legal process to which he would be entitled if the chief representative were an envoy.

(2) When a person who is a member of the staff of a chief representative is or is deemed to be a citizen of Pakistan—

(a) that person is and shall be entitled to immunity under this Act only in respect of things done or omitted to be done in the course of the performance of his duties as a member of that staff ; and

(b) a member of the family of that person is not by reason only of his being a member of that family entitled to any immunity under this Act.

5. Rules for grant of consular immunity.— The President may make rules providing that any person who holds any prescribed office in the service of the Government of a prescribed part of the Commonwealth shall, on being recognized by the Government of Pakistan in the prescribed manner as a person entitled to the immunity from suit and legal process and to the inviolability of official premises and official archives to which he would be entitled if he were a consular officer of a foreign sovereign power, be so entitled.

6. Waiver of immunity.— (1) A chief representative may waive any right to immunity or inviolability to which—

(a) he or a member of his family,
(b) a member of his staff, or
(c) a member of the family of a member of his official staff may be entitled under this Act.

(2) A person may waive any right to immunity or inviolability which has been conferred on him under the rules.

7. Certificate regarding immunity.— (1) The Government may issue in the prescribed manner a certificate certifying any fact relevant to the question whether a person is or is not entitled under this Act or the rules made thereunder to immunity from suit or legal process or to inviolability of residence, official premises or official archives.

(2) A certificate issued under sub-section (1) shall be conclusive evidence in any legal proceedings of the facts certified in the certificate.

8. Rules.— (1) The President may make rules for the purpose of carrying out the purposes of this Act.

(2) Without prejudice to the generality of the foregoing power the rules may provide that, if the President is of the opinion that persons representing Pakistan in any country within the

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Commonwealth are not accorded treatment corresponding to the treatment accorded to persons representing that country in Pakistan, the recognition of any representative of that country for the purposes of this Act and the immunities and inviolabilities to which the representatives or other persons of that country are otherwise entitled under this Act or the rules made thereunder shall cease, or that the immunities and inviolabilities shall be curtailed to the extent and in the manner prescribed.

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THE DIPLOMATIC IMMUNITIES (CONFERENCES WITH COMMONWEALTH COUNTRIES) ACT, 1963

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2. Definitions
3. Application of Act reciprocal
4. Compilation and Publication of lists
5. Diplomatic Immunities of Commonwealth Representatives attending Conferences in Pakistan
6. List to be conclusive proof of right to Immunities

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THE DIPLOMATIC IMMUNITIES (CONFERENCES WITH COMMONWEALTH COUNTRIES) ACT, 1963

ACT No. II of 1963

[3rd *April,* 1963]

An Act to provide for conferring certain immunities on representatives of governments of Commonwealth countries attending conferences in Pakistan and on their official staffs.

WHEREAS it is expedient to provide for conferring certain immunities on representatives of Governments of Commonwealth countries attending conferences in Pakistan and on their official staffs;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Diplomatic Immunities (Conferences with Commonwealth Countries) Act, 1963.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "envoy" means the envoy of a foreign sovereign power duly accredited in Pakistan;

(b) "list" means a list compiled and published under section 4, and includes any amendment of such list ;

(c) "official staff" means officials employed directly under the orders of a representative included in a list ;

(d) "Secretary" means the Secretary to the Government of Pakistan in the Ministry concerned with the convening or sponsoring of a conference.

3. Application of Act reciprocal.—If the [1][Federal Government] is satisfied that the government of any country within the Commonwealth has made provision for extending to the representatives of the Government of Pakistan attending conferences in that country and their official staff immunities similar to those provided for in this Act, it may, by notification in the official Gazette, declare that this Act applies to such country, and thereupon the provisions of this Act shall during the period such notification remains in force, apply accordingly.

4. Compilation and Publication of lists.— (1) Where a conference is held in Pakistan and is attended by representatives of the Government of Pakistan and of the government or governments of one or more countries to which this Act applies, the Secretary shall compile, and cause to be published in the official Gazette, a list of the representatives of such government or governments and members of their official staffs, showing separately—

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(a) the representatives ; and

(b) the members of the official staffs—

(i) who are not citizens of Pakistan, or who are not deemed to be such citizens ; and

(ii) who are, or are deemed to be, such citizens.

(2) Whenever it appears to the Secretary that any person ceases or begins to be qualified for inclusion in a list, he may amend the list and cause the amendment, or, if he thinks fit, an amended list, to be published in the official Gazette.

(3) Every list or amendment published under this section in relation to any conference shall include a statement of the date from which the list or amendment takes or took effect.

5. Diplomatic Immunities of Commonwealth Representatives attending Conferences in Pakistan.—(1) Every representative who is for the time being included in a list shall, subject to the provisions of sub-section (3), be entitled to the immunity from suit and legal process, and to the inviolability of residence, official premises and official archives, to which he would be entitled if he were an envoy.

(2) Every member of the official staff who is for the time being included in a list shall, subject to the provisions of sub-section (3), be entitled to the immunity from suit and legal process to which he would be entitled if the representative under whose orders he is employed were an envoy.

(3) Where a representative or a member of an official staff is or is deemed to be a citizen of Pakistan, he shall not, except in respect of things done or omitted to be done in the course of the performance of his duties as such representative or member, be entitled to the immunity mentioned in sub-section (1) or, as the case may be, sub-section (2).

6. List to be conclusive proof of right to Immunities.— If any question arises as to whether any person is or was included or not included at any time among the persons entitled to any immunity under this Act, the official Gazette containing the list as effective for the time being, shall be conclusive proof of the fact that the person is or was so included or not so included.

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THE PAKISTAN CODE

Dated: - 04.01.2024

THE DRAMATIC PERFORMANCES ACT, 1876

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THE DRAMATIC PERFORMANCES ACT, 1876

[1]Act No. XIX OF 1876

[*16th December, 1876*]

An Act for the better control of public dramatic performances

Preamble.— WHEREAS it is expedient to empower the Government to prohibit public dramatic performances which are scandalous, defamatory, seditious or obscene; it is hereby enacted as follows:–

1. **Short title.** This Act may be called the Dramatic Performances Act. 1876.

2. **Local extent.** It extends to [2][the whole of Pakistan].

[3]* * * * * * *

2. "Magistrate" defined.— In this Act "Magistrate" means, [4]* * * the Magistrate of the district.

3. Power to prohibit certain dramatic performances. Whenever the [5][Provincial Government] is of opinion that any play, pantomime or other drama performed or about to be performed in a public place is—

(a) of a scandalous or defamatory nature, or

(b) likely to excite feelings of disaffection to the Government established by law in [6][Pakistan], or

(c) likely to deprave and corrupt persons present at the performance,

the [5][Provincial Government], [7]* * * or such Magistrate as it may empower in this behalf, may by order prohibit the performance.

Explanation.— Any building or enclosure to which the public are admitted to witness a performance on payment of money shall be deemed a "public place" within the meaning of this section.

4. Power to serve order of prohibition. Penalty for disobeying order. A copy of any such order may be served on any person about to take part in the performance so prohibited, or on the owner or occupier of any house, room or place in which such performance is intended to take place; and any person on whom such copy is served, and who does, or willingly permits, any act in disobedience to such order, shall be punished on conviction before a Magistrate with imprisonment for a term which may extend to three months, or with fine, or with both.

[1]For the Statement of Objects and Reasons, *see* Gazette of India, 1876, Pt. V, p. 347 : for Proceedings in Council, *see ibid.,* Supplement, pp. 328, 343 and 1341.
This Act has been declared to be in force in the Balochistan, *see* the Balochistan Laws Regulation, 1913 (Reg. 2 of 1913), s. 3, as amended by Regulation No. 5 of 1939.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from 14th October, 1955*), for "all the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3 (2) and 4, for "the whole of British India".
[3]The words "And it shall come into force at once" rep. by the Repealing and Amending Act, 1914 (10 of 1914).
[4]The words "in the Presidency-towns, a Magistrate of Police, and else where" omitted by A. O., 1949, Sch.
[5]Subs. by A. O., 1937 for "L. G.".
[6]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), for "British India [or British Burma]". The words in brackets had been ins. by A.O., 1937.
[7]The words "or outside the Presidency-towns the Provincial Government" omitted by A.O., 1949, Sch.

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5. Power to notify order. Any such order may be notified by proclamation, and a written or printed notice thereof may be stuck up at any place or places adapted for giving information of the order to the persons intending to take part in or to witness the performance so prohibited.

6. Penalty for disobeying prohibition. Whoever after the notification of any such order-

(a) takes part in the performance prohibited thereby or in any performance substantially the same as the performance so prohibited, or

(b) in any manner assists in conducting any such performance, or

(c) is, in wilful disobedience to such order, present as a spectator during the whole or any part of any such performance, or

(d) being the owner or occupier, or having the use of any house, room or place, opens, keeps or uses the same for any such performance, or permits the same to be opened, kept or used for any such performance,

shall be punishable on conviction before a Magistrate with imprisonment for a term which may extend to three months, or with fine, or with both.

7. **Power to call for information.** For the purpose of ascertaining the character of any intended public dramatic performance, the [1][Provincial Government] or such officer as it may specially empower in this behalf, may apply to the author, proprietor or printer of the drama about to be performed, or to the owner or occupier of the place in which it is intended to be performed, for such information as the [1][Provincial Government] or such officer thinks necessary.

Every person so applied to shall be bound to furnish the same to the best of his ability, and whoever contravenes this section shall be deemed to have committed an offence under section 176 of the Pakistan Penal Code (XLV of 1860).

8. Power to grant warrant to Police to enter and arrest and seize. If any Magistrate has reason to believe that any house, room or place is used, or is about to be used, for any performance prohibited under this Act, he may, by his warrant, authorize any officer of Police to enter with such assistance as may be requisite, by night or by day, and by force, if necessary, any such house, room or place, and to take into custody all persons whom he finds therein, and to seize all scenery, dresses and other articles found therein and reasonably suspected to have been used, or to be intended to be used, for the purpose of such performance.

9. Saving of prosecutions under Penal Code, sections 124 A and 294. No conviction under this Act shall bar a prosecution under section 124A or section 294 of the Pakistan Penal Code (XLV of 1860).

[2]10. **Power to prohibit dramatic performance in any local area, except under license.** Whenever it appears to the [1][Provincial Government] that the provisions of this section are required in any local area, it may [3]* * * declare, by notification in the [4][official Gazette], that such provisions are applied to such area from a day to be fixed in the notification.

[1]Subs. by A. O., 1937, for "L. G".
[2]The provision of section 10 shall apply to the whole of the N.W.F.P., with effect from the 4th January, 1955, for certain conditions, *see* Gazette of N.W.F.P., 1955, Pt. I., p. 7.
[3]The words "with the sanction of the G.G. in C." rep. by the Decentralization Act, 1914 (4 of 1914).
[4]Subs. by A. O., 1937, for "local official Gazette".

On and after that day, the [1][Provincial Government] may order that no dramatic performance shall take place in any place of public entertainment within such area, except under a license to be granted by such [1][Provincial Government], or such officer as it may specially empower in this behalf.

The [1][Provincial Government] may also order that no dramatic performance shall take place in any place of public entertainment within such area, unless a copy of the piece, if and so far as it is written, or some sufficient account of its purport, if and so far as it is in pantomime, has been furnished, not less than three days before the performance, to the [1][Provincial Government] or to such officer as it may appoint in this behalf.

A copy of any order under this section may be served on any keeper of a place of public entertainment; and if thereafter he does, or willingly permits, any act in disobedience to such order, he shall be punishable on conviction before a Magistrate with imprisonment for a term which may extend to three months, or with fine, or with both.

11. [*Powers exercisable by Governor-General.*] *Rep. by A.O., 1937.*

12. Exclusion of performance at religious festivals. Nothing in this Act applies to any *jatras* or performances of a like kind at religious festivals.

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Date: 16-09-2024

[1]Subs. by A.O., 1937, for "L.G.".

THE EASEMENTS ACT, 1882

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THE EASEMENTS ACT, 1882

[1]ACT No. V OF 1882

[17th February, 1882]

An Act to define and amend the Law relating to Easements and Licenses.

Preamble. WHEREAS it is expedient to define and amend the law relating to easements and licenses; It is hereby enacted as follows:—

PRELIMINARY

1. Short title. This Act may be called the [2][*] Easements Act, 1882.

[*Local Extent.*] *Omitted by A. O.*, 1949, *Schedule.*

Commencement. And it shall come into force on the first day of July, 1882.

2. Savings. —Nothing herein contained shall be deemed to affect any law not hereby expressly repealed; or to derogate from—

(a) any right of the [3][Government] to regulate the collection, retention and distribution of the water of rivers and streams flowing in natural channels, and of natural lakes and ponds, or of the water flowing, collected, retained or distributed in or by any channel or other work constructed at the public expense for irrigation;

(b) any customary or other right (not being a license) in or over immoveable property which the [3][Government], the public or any person may possess irrespective of other immoveable property; or

(c) any right acquired, or arising out of a relation created, before this Act comes into force.

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3. [*Construction of certain references to Act XV of* 1877 *and Act IX of* 1871.] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981, (27 *of* 1981), *s.*3 *and Sch. II.*

CHAPTER I

OF EASEMENTS GENERALLY

4. "Easement" defined. —An easement is a right which the owner or occupier of certain land possesses, as such, for the beneficial enjoyment of that land, to do and continue to do something, or to prevent and continue to prevent something being done, in or upon, or in respect of, certain other land not his own.

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[1]This Act had been extended to Sindh which was administered by the Governor of Bombay in Council by Act VIII of 1891.
This Act had been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; and also extended to the Excluded Area of Upper Tanawal (N. W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950. This Act has been extended to the whole of Pakistan by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October.* 1955).
[2]Omitted by A. O., 1949, Sch.
[3]Subs. by A. O., 1961, Art. 2.

Dominant and servient heritages and owners. —The land for the beneficial enjoyment of which the right exists is called the dominant heritage, and the owner or occupier thereof the dominant owner; the land on which the liability is imposed is called the servient heritage, and the owner or occupier thereof the servient owner.

Explanation.-In the first and second clauses of this section, the expression "land" includes also things permanently attached to the earth: the expression "beneficial enjoyment" includes also possible convenience, remote advantage, and even a mere ame nity ; and the expression "to do something" includes removal and appropriation by the dominant owner, for the beneficial enjoyment of the dominant heritage, of any part of the soil of the servient heritage or anything growing or subsisting thereon.

Illustrations

(a) A, as the owner of a certain house, has a right of way thither over his neighbour B's land for purposes connected with the beneficial enjoyment of the house. This is an easement.

(b) A, as the owner of a certain house, has the right to go on his neighbour B's land, and to take water for the purposes of his household out of a spring therein, This is an easement.

(c) A, as the owner of a certain house, has the right to conduct water from B's stream to supply the fountains in the garden attached to the house. This is an easement.

(d) A, as the owner of a certain house and farm, has the right to graze a certain number of his own cattle on B's field, or to take, for the purpose of being used in the house, by himself, his family, guests, lodgers and servants, water or fish out of C's tank, or timber out of D's wood, or to use, for the purpose of manuring his land, the leaves which have fallen from the trees on E's land. These are easements.

(e) A dedicates to the public the right to occupy the surface of certain land for the purpose of passing and re-passing. This right is not an easement.

(f) A is bound to cleanse a watercourse running through his land and keep it free from obstruction for the benefit of B, a lower riparian owner. This is not an easement.

5. Continuous and discontinuous, apparent and non-apparent, easements. —Easements are either continuous or discontinuous, apparent or non-apparent.

A continuous easement is one whose enjoyment is, or may be, continual without the act of man.

A discontinuous easement is one that needs the act of man for its enjoyment.

An apparent easement is one the existence of which is shown by some permanent sign which, upon careful inspection by a competent person, would be visible to him.

A non-apparent easement is one that has no such sign.

Illustrations

(a) A right annexed to B's house to receive light by the windows without obstruction by his neighbor A. This is a continuous easement.

(b) A right of way annexed to A's house over D's land. This is a discontinuous easement.

(c) Rights annexed to A's land to lead water thither across D's land by an aqueduct and to draw off water thence by a drain. The drain would be discovered upon careful inspection by a person conversant with such matters. These are apparent easements.

(d) A right annexed to A's house to prevent B from building on his own land. This is a non-apparent easement.

6. Easement for limited time or on condition. —An easement may be permanent, or for a term of years or other limited period, or subject to periodical interruption, or exercisable only at a certain place, or at certain times, or between certain hours, or for a particular purpose, or on condition that it shall commence or become void or voidable the happening of a specified event or the performance or non-performance of a specified act.

7. Easements restrictive of certain rights. —Easements are restrictions of one or other of the following rights (namely):-

(a) **Exclusive right to enjoy.** The exclusive right of every owner of immoveable property (subject to any law for the time being in force) to enjoy and dispose of the same and all products thereof and accessions thereto.

(b) **Rights to advantages arising from situation.** The right of every owner of immoveable property (subject to any law for the time being in force) to enjoy a, without disturbance by another the natural advantages a arising from its situation.

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Illustrations of the rights above referred to

(a) The exclusive right of every owner of land in a town to build on such land, subject to any municipal law for the time being in force.

(b) The right of every owner of land that the air passing thereto shall not be unreasonably polluted by other persons.

(c) The right of every owner of a house that his physical comfort shall not be interfered with materially and unreasonably by noise or vibration caused by any other person. *(d)* The right of every owner of land to so much light and air as pass vertically thereto.

(e) The right of every owner of land that such land, in its natural condition, shall have the support naturally rendered by the subjacent and adjacent soil of another person.

Explanation. —Land is in its natural condition when it is not excavated and not subjected to artificial pressure; and the "subjacent and adjacent soil" mentioned in this illustration means such soil only as in its natural condition would support the dominant heritage in its natural condition.

(f) The right of every owner of land that, within his own limits, the water which naturally passes or percolates by, over or through his land shall not, before so passing or percolating, be unreasonably polluted by other persons.

(g) The right of every owner of land to collect and dispose within his own limits of all water under the land which does not pass in a defined channel and all water on its surface which does not pass in a defined channel.

(h) The right of every owner of land that the water of every natural stream which passes by, through or over his land in a defined natural channel shall be allowed by other persons to flow within such owner's limits without interruption and without material alteration in quantity, direction, force or temperature; the right of every owner of land abutting on a natural lake or pond into or out of which a natural stream flows, that the water of such lake or pond shall be allowed by other persons to remain with in such owner's limit without material alteration in quantity or temperature.

(i) The right of every owner of upper land that water natural1y rising in, or falling, on such land, and not passing in defined channels, shall be a1lowed by the owner of adjacent lower land to run naturally thereto.

(j) right of every owner of land abutting on a natural stream, lake or pond to use and consume its water for drinking, household purposes and watering his cattle and sheep; and the right of every such owner to use and consume the water for irrigating such land and for the purposes of any manufactory situate thereon: Provided that he does not thereby cause material injury to other like owners.

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Explanation.-A natural stream is a stream, whether permanent or intermittent, tidal or tideless, on the surface of land or underground, which flows by the operation of nature only and in a natural and known course.

CHAPTER II

THE IMPOSITION, ACQUISITION AND TRANSFER OF EASEMENTS

8. Who may impose easements. —An easement may be imposed by anyone in the circumstances, and to the extent, in and to which he may transfer his interest in the heritage on which the liability is to be imposed.

Illustrations

(a) A is tenant of B's land under a lease for an unexpired term of twenty years, and has power to transfer his interest under the lease. A may impose an easement on the land to continue during the time that the lease exists or for any shorter period.

(b) A is tenant for his life of certain land with remainder to B absolutely. A cannot, unless with B's consent, impose an easement thereon which will continue after the determination of his life-interest.

(c) A, B and C are co-owners of certain land. A cannot, without the consent of B and C, impose an easement on the land or on any part thereof.

(d) A and B are lessees of the same lessor, A of a field X for a term of five years, and B of a field Y for a term of ten years. A's interest under his lease is transferable; B's is not. A may impose on X, in favour of B, a right of way terminable with A's lease.

9. Servient owners. —Subject to the provisions of section 8, a servient owner may impose on the servient heritage any easement that does not lessen the utility of the existing easement. But he cannot, without the consent of the dominant owner, impose an easement on the servient heritage which would lessen such utility.

Illustrations

(a) A has, in respect of his mill, a right to the uniterrupted flow thereto from sunrise to noon of the water of B's stream. B may grant to C the right to divert the water of the stream from noon to sunset: Provided that A's supply is not thereby diminished.

(b) A has, in respect of his house, a right of way over B's land. B may grant to C, as the owner of a neighbouring farm, the right to feed his cattle on the grass growing on the way: Provided that A's right of way is not thereby obstructed.

10. Lessor and mortgagor. —Subject to the provisions of section 8, a lessor may impose, on the property leased, any easement that does not derogate from the rights of the lessee as such, and a mortgagor may impose, on the property mortgaged, any easement that does not render the security insufficient. But a lessor or mortgagor cannot, without the consent of the lessee or mortgagee, impose any other easement on such property, unless it be to take effect on the termination of the lease or the redemption of the mortgage.

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Explanation.-A security is insufficient within the meaning of this section unless the value of the mortgaged property exceeds by one-third, or, if consisting of buildings, exceeds by one-half, the amount for the time being due on the mortgage.

11. Lessee. —No lessee or other person having a derivative interest may impose on the property held by him as such an easement to take effect after the expiration of his own interest, or in derogation of the right of the lessor or the superior proprietor.

12. Who may acquire easements. —An easement may be acquired by the owner of the immoveable property for the beneficial enjoyment of which the right is created, or on his behalf, by any person in possession of the same.

One of two or more co-owners of immoveable property may, as such, with or without the consent of the other or others, acquire an easement for the beneficial enjoyment of such property.

No lessee of immoveable property can acquire, for the beneficial enjoyment of other immoveable property of his own, an easement in or over the property comprise in his lease.

13. Easements of necessity and *quasi* easements. —Where one person transfers or bequeaths immoveable property to another, —

(a) if an easement in other immoveable property of the transferor or testator is necessary for enjoying the subject of the transfer or bequest, the transferee or legatee shall be entitled to such easement; or

(b) if such an easement is apparent and continuous and necessary for enjoying the said subject as it was enjoyed when the transfer or bequest took effect, the transferee or legatee shall, unless a different intention is expressed or necessarily implied, be entitled to such easement;

(c) if an easement in the subject of the transfer or bequest is necessary for enjoying other immoveable property of the transferor or testator, the transferor or the legal representative of the testator shall be entitled to such easement; or

(d) if such an easement is apparent and continuous and necessary for enjoying the said property as it was enjoyed when the transfer or bequest took effect, the transferor, or the legal representative of the testator, shall, unless a different intention is expressed or necessarily implied, be entitled to such easement.

Where a partition is made of the joint property of several persons,—

(e) if an easement over the share of one of them is necessary for enjoying the share of another of them, the latter shall be entitled to such easement, or

(f) if such an easement is apparent and continuous and necessary for enjoying the share of the latter as it was enjoyed when the partition took effect, he shall, unless a different intention is expressed or necessarily implied, be entitled to such easement.

The easements mentioned in this section, clauses (a), (c) and (e), are called easements of necessity.

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Where immoveable property passes by operation of law, the persons from and to whom it so passes are, for the purpose of this section, to be deemed, respectively, the transferor and transferee.

Illustrations

(a) A sells B a field then used for agricultural purposes only. It is in accessible except by passing over A's adjoining land or by trespassing on the land of a stranger. B is entitled to a right of way, for agricultural purposes only, over A's adjoining land to the field sold.

(b) A, the owner of two fields, sells one to B, and retains the other. The field retained was, at the date of the sale, used for agricultural purposes only, and is inaccessible except by passing over the field sold to B. A is entitled to a right of way, for agricultural purposes only, over B's field to the field retained.

(c) A sells B a house with windows overlooking A's land, which A retains. The light which passes over A's land to the window is necessary for enjoying the

house as it was enjoyed when the sale took effect. B is entitled to the light, and A cannot afterwards obstruct it by building on his land.

(*d*) A sells B a house with windows overlooking A's land. The light passing over A's land to the windows is necessary for enjoying the house as it was enjoyed when the sale took effect. Afterwards A sells the land to C. Here C cannot obstruct the light by building on the land, for he takes it subject to the burdens to which it was subject in A's hands.

(*e*) A is the owner of a house and adjoining land. The house has windows overlooking the land. A simultaneously sells the house to B and the land to C. The light passing over the land is necessary for enjoying the house as it was enjoyed when the sale took effect. Here A impliedly grants B a right to the light, and C takes the land subject to the restriction that he may not build so as to obstruct such light.

(*f*) A is the owner of a house and adjoining land. The house has windows overlooking the land. A, retaining the house, sells the land to B, without expressly reserving any easement. The light passing over the land is necessary for enjoying the house as it was enjoyed when the sale took effect. A is entitled to the light, and B cannot build on the land so as to obstruct such light.

(*g*) A, the owner of a house, sells B a factory built on adjoining land. B is entitled, as against A, to pollute the air, when necessary, with smoke and vapours from the factory.

(*h*) A, the owner of two adjoining houses, Y and Z, sells Y to B, and retains Z. B is entitled to the benefit of all the gutters and drains common to the two houses and necessary for enjoying Y as it was enjoyed when the sale took effect, and A is entitled to the benefit of all the gutters and drains common to the two houses and necessary for enjoying Z as it was enjoyed when the sale took effect.

(*i*) A, the owner of two adjoining buildings, sells one to B, retaining the other. B is entitled to a right to lateral support from A's building, and A is entitled to a right to lateral support from B's building.

(*j*) A, the owner of two adjoining buildings, sells one to B and the other to C. C is entitled to lateral support from B's building, and B is entitled to lateral support from C's building.

(*k*) A grants lands to B for the purpose of building a house thereon. B is entitled to such amount of lateral and subjacent support from A's land as is necessary for the safety of the house.

(l) Under the [1][Land Acquisition Act, 1894(I of 1894)], a Railway Company compulsorily acquires a portion of B's land for the purpose of making a siding. The Company is entitled to such amount of lateral support from B's adjoining land as is essential for the safety of the siding.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and 2nd Sch.

(*m*) Owing to the partition of joint property, A becomes the owner of an upper room in a building, and B becomes the owner of the portion of the building immediately beneath it. A is entitled to such amount of vertical support from B's portion as is essential for the safety of the upper room.

(*n*) A lets a house and grounds to B for a particular business. B has no access to them other than by crossing A's land. B is entitled to a right of way over that land suitable to the business to be carried on by B in the house and grounds.

14. Direction of way of necessity.— When [1][a right] to a way of necessity is created under section 13, the transferor, the legal representative of the testator, or the owner of the share over which the right is exercised, as the case may be, is entitled to set out the way; but it must be reasonably convenient for the dominant owner.

When the person so entitled to set out the way refuses or neglects to do so, the dominant owner may set it out.

15. Acquisition by prescription. —Where the access and use of light or air to and for any building have been peaceably enjoyed therewith, as an easement, without interruption, and for twenty years,

and where support from one person's land or things affixed thereto has been peaceably received by another person's land subjected to artificial pressure or by things affixed thereto, as an easement, without interruption, and for twenty years,

and where a right of way or any other easement has been peaceably and openly enjoyed by any person claiming title thereto, as an easement, and as of right, without interruption, and for twenty years, the right to such access and use of light or air, support or other easement shall be absolute.

Each of the said periods of twenty years shall be taken to be a period ending within two years next before the institution of the suit wherein the claim to which such period relates is contested.

Explanation I. —Nothing is an enjoyment within the meaning of this section when it has been had in pursuance of an agreement with the owner or occupier of the property over which the right is claimed, and it is apparent from the agreement that such right has not been granted as an easement, or, if granted as an easement, that it has been granted for a limited period, or subject to a condition on the fulfilment of which it is to cease.

Explanation II. —Nothing is an interruption within the meaning of this section unless where there is an actual cessation of the enjoyment by reason of an obstruction by the act of some person other than the claimant, and unless such obstruction is submitted to or acquiesced in for one year after the claimant has notice thereof and of the person making or authorizing the same to be made.

Explanation III. —Suspension of enjoyment in pursuance of a contract between the dominant and servient owners is not an interruption within the meaning of this section.

Explanation IV. —In the case of an easement to pollute water, the said period of twenty years begins when the pollution first prejudices perceptibly the servient heritage.

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[1]Subs. by the Amending Act No. XII of 1891.

When the property over which a right is claimed under this section belongs to [1][the Government], this section shall be read as if, for the words "twenty years" the words "sixty years" were substituted.

Illustrations

(*a*) A suit is brought in 1883 for obstructing a right of way. The defendant admits the obstruction, but denies the right of way. The plaintiff proves that the right was peaceably and openly enjoyed by him, claiming title thereto as an easement and as of right, without interruption, from 1st January, 1862, to 1st January, 1882. The plaintiff is entitled to judgment.

(*b*) In a like suit the plaintiff shows that the right was peaceably and openly enjoyed by him for twenty years. The defendant proves that for a year of that time the plaintiff was entitled to possession of the servient heritage as lessee thereof and enjoyed the right as such lessee. The suit shall be dismissed, for the right of way has not been enjoyed "as an easement" for twenty years.

(*c*) In a like suit the plaintiff shows that the right was peaceably and openly enjoyed by him for twenty years. The defendant proves that the plaintiff on one occasion during the twenty years had admitted that the user was not of right and asked his leave to enjoy the right. The suit shall be dismissed, for the right of way has not been enjoyed "as of right" for twenty years.

16. Exclusion in favour of reverionser of servoient heritage. —Provided that, when any land upon, over or from which any easement has been enjoyed or derived has been held under or by virtue of any interest for life or any term of years exceeding three years from the granting thereof, the time of the enjoyment of such easement during the continuance of such interest or term shall be excluded in the computation of the said last-mentioned period of twenty years, in case the claim is, within three years next after the determination of such interest or term, resisted by the person entitled, on such determination, to the said land.

A sues for a declaration that he is entitled to a right of way over B's land. A proves that he has enjoyed the right for twenty-five years; but B shows that during ten of these years C had a life-interest in the land; that on C's death B became entitled to the land; and that within two years after C's death he contested A's claim to the right. The suit must be dismissed, as A, with reference to the provisions of this section, has only proved enjoyment for fifteen years.

17. Rights which cannot be acquired by prescription. —Easements acquired under section 15 are said to be acquired by prescription, and are called prescriptive rights.

None of the following rights can be so acquired:-

Illustration

(a) a right which would tend to the total destruction of the subject of the right, or the property on which, if the acquisition were made, liability would be imposed;

(b) a right to the free passage of light or air to an open space of ground;

[1]Subs. by A.O., 1961, Art 2.

(c) a right to surface-water not flowing in a stream and not permanently collected in a pool, tank or otherwise;

(d) a right to underground water not passing in a defined channel.

18. Customary easements. —An easement may be acquired in virtue of a local custom. Such easements are called customary easements.

Illustrations

(*a*) By the custom of a certain village every cultivator of village land is entitled, as such, to graze his cattle on the common pasture. A, having become the tenant of a plot of uncultivated land in the village, breaks up and cultivates that plot. He thereby acquires an easement to graze his cattle in accordance with the custom.

(*b*) By the custom of a certain town no owner or occupier of a house can open a new window therein so as substantially to invade his neighbour's privacy. A builds a house in the town near B's house. A thereupon acquires an easement that B shall not open new win downs in his house so as to command a view of the portions of A's house which are ordinarily excluded from observation, and B acquires a like easement with respect to A's house.

19. Transfer of dominant heritage passes easement. —Where the dominant heritage is transferred or devolves, by act of parties or by operation of law, the transfer or devolution shall, unless a contrary intention appears, be deemed to pass the easement to the person in whose favour the transfer or devolution takes place.

Illustration

A has certain land to which a right of way is annexed. A lets the land to B for twenty years. The right of way vests in B and his legal representative so long as the lease continues.

CHAPTER III

THE PAKISTAN CODE

THE INCIDENTS OF EASEMENTS

20. Rules controlled by contract or title. —The rules contained in this chapter are controlled by any contract between the dominant and servient owners relating to the servient heritage, and by the provisions of the instrument or decree, if any, by which the easement referred to was imposed.

Incidents of customary easements. And when any incident of any customary easement is inconsistent with such rules, nothing in this chapter shall affect such incident.

21. Bar to use unconnected with enjoyment. —An easement must not be used for any purpose not connected with the enjoyment of the dominant heritage.

Illustrations

(*a*) A, as owner of a farm Y, has a right of way over B's land to Y. Lying beyond Y, A has another farm Z, the beneficial enjoyment of which is not necessary for

the be neficial enjoyment of Y. He must not use the easement for the purpose of passing to and from Z.

(*b*) A, as owner of a certain house, has a right of way to and from it. For the purpose of passing to and from the house, the right may be used, not only by A, but by the members of his family, his guests, lodgers, servants, workmen, visitors and customers; for this is a purpose connected with the enjoyment of the dominant heritage. So, if A lets the house, he may use the right of way for the purpose of collecting the rent and seeing that the house is kept in repair.

22. Exercise of easement. Confinement of exercise of easement. —The dominant owner must exercise his right in the mode which is least onerous to the servient owner; and, when the exercise of an easement can without detriment to the dominant owner be confined to a determinate part of the servient heritage, such exercise shall, at the request of the servient owner, be so confined.

Illustrations

(*a*) A has a right of way over B's field. A must enter the way at either end and not at any intermediate point.

(*b*) A has a right annexed to his house to cut thatching-grass in B's swamp. A, when exercising his easement, must cut the grass so that the plants may not be destroyed.

23. Right to alter mode of enjoyment. —Subject to the provisions of section 22, the dominant owner may, from time to time, alter the mode and place of enjoying the easement, provided that he does not thereby impose any additional burden on the servient heritage.

***Exception*.—** The dominant owner of a right of way cannot vary his line of passage at pleasure, even though he does not thereby impose any additional burden on the servient heritage.

Illustrations

(*a*) A, the owner of a saw-mill, has a right to a flow of water sufficient to work the mill. He may convert the saw-mill into a corn-mill, provided that it can be worked by the same amount of water.

(*b*) A has a right to discharge on B's land the rain-water from the eaves of A's house. This does not entitle A to advance his eaves if, by so doing, he imposes a greater burden on B's land.

(*c*) A, as the owner of a paper-mill, acquires a right to pollute a stream by pouring in the refuse-liquor produced by making in the mill paper from rags. He may pollute the stream by pouring in similar liquor produced by making in the mill paper by a new process from bamboos, provided that he does not substantially increase the amount, or injuriously change the nature, of the pollution.

(*d*) A, a riparian owner, acquires, as against the lower riparian owners, a prescriptive right to pollute a stream by throwing sawdust into it. This does not entitle A to pollute the stream by discharging into it poisonous liquor.

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24. Right to do acts to secure enjoyment. —The dominant owner is entitled[1], as against the servient owner, to do all acts necessary to secure the full enjoyment of the easement, but such acts must be done at such time and in such manner as, without detriment to the dominant owner, to cause the servient owner as little inconvenience as possible; and the dominant owner must repair, as far as practicable, the damage (if any) caused by the act to the servient heritage.

Accessory rights. Rights to do acts necessary to secure the full enjoyment of an easement are called accessory rights.

Illustrations

A has an easement to lay pipes in B's land to convey water to A's cistern. A may enter and dig the land in order to mend the pipes, but he must restore the surface to its original state.

(*b*) A has an easement of a drain through B's land. The sewer with which the drain communicates is altered. A may enter upon B's land and alter the drain, to adapt it to the new sewer, provided that he does not thereby impose any additional burden on B's land.

(*c*) A, as owner of a certain house, has a right of way over B's land. The way is out of repair, or a tree is blown down and falls across it. A may enter on B's land and repair the way or remove the tree from it.

(*d*) A, as owner of a certain field, has a right of way over B's land. B renders the way impassable. A may deviate from the way and pass over the adjoining land of B, provided that the deviation is reasonable.

(e) A, as owner of a certain house, has a right of way over B's field. A may remove rocks to make the way.

(f) A has an easement of support from B's wal1. The wall gives way. A may enter upon B's land and repair the wall.

(g) A has an easement to have his land flooded by means of a dam in B's stream. The dam is half swept away by an inundation. A may enter upon B's land and repair the dam.

25. Liability for expenses necessary for preservation of easement. —The expenses incurred in constructing works, or making repairs, or doing any other act necessary for the use of preservation of an easement, must be defrayed by the dominant owner.

26. Liability for damage from want of repair. —Where an easement is enjoyed by means of an artificial work, the dominant owner is liable to make compensation for any damage to the servient heritage arising from the want of repair of such work.[2]

27. Servient owner not bound to do anything. —The servient owner is not bound to do anything for the benefit of the dominant heritage, and he is entitled, as against the dominant owner, to use the servient heritage in any way consistent with the enjoyment of the easement: but he must not do any act tending to restrict the easement or to render its exercise less convenient.

[1]But *see* s. 36, *infra,* as to abatement of obstruction of easement.
[2]But *see* s. 50, *infra,* as to extinguishment or suspension of easement.

Illustrations

(*a*) A, as owner of a house, has a right to lead water and send sewage through B's land. B is not bound, as servient owner, to clear the watercourse or scour the sewer.

(*b*) A grants a right of way through his land to B as owner of a field. A may feed his cattle on grass growing the way, provided that B's right of way is not thereby obstructed; but he must not build a wall at the end of his land so as to prevent B from going beyond it, nor must he narrow the way so as to render the exercise of the right less easy than it was at the date of the grant.

(*c*) A, in respect of his house, is entitled to an easement of support from B's wall. B is not bound, as servient owner, to keep the wall standing and in repair. But he must not pull down or weaken the wall so as to make it incapable of rendering the necessary support.

(*d*) A, in respect of his mill, is entitled to a watercourse through B's land. B must not derive stakes so as to obstruct the watercourse.

(*e*) A, in respect of his house, is entitled to a certain quantity of light passing over B's land. B must not plant trees so as to obstruct the passage to A's windows of that quantity of light.

28. Extent of easements. —With respect to the extent of easements and the mode of their enjoyment, the following provisions shall take effect:

Easement of necessity. An easement of necessity is co-extensive with the necessity as it existed when the easement was imposed.

Other easements. The extent of any other easement and the mode of its enjoyment must be fixed with reference to the probable intention of the parties and the purpose for which the right was imposed or acquired.

In the absence of evidence as to such intention and purpose—

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Right of way.

(a) a right of way of any one kind does not include a right of way of any other kind:

Right to light or air acquired by grant.

(b) the extent of a right to the passage of light or air to a certain window, door or other opening, imposed by a testamentary or non-testamentary instrument, is the quantity of light or air that entered the opening at the time the testator died or the non-testamentary instrument was made:

Prescriptive right to light or air.

(c) the extent of a prescriptive right to the passage of light or air to a certain window, door or other opening is that quantity of light or air which has been

accustomed to enter that opening during the whole of the prescriptive period irrespectively of the purposes for which it has been used:

Prescriptive right to pollute air or water.

(d) the extent of a prescriptive right to pollute air or water is the extent of the pollution at the commencement of the period of user on completion of which the right arose: and

Other prescriptive rights.

(e) the extent of every other prescriptive right and the mode of its enjoyment must be determined by the accustomed user of the right.

29. Increase of easement. —The dominant owner cannot, by merely altering or adding to the dominant heritage, substantially increase an easement.

Where an easement has been granted or bequeathed so that its extent shall be proportionate to the extent of the dominant heritage, if the dominant heritage is increased by alluvion, the easement is proportionately increased, and, if the dominant heritage is diminished by diluvion, the easement is proportionately diminished.

Save as aforesaid, no easement is affected by any change in the extent of the dominant or the servient heritage.

Illustrations

(*a*) A, the owner of a mill, has acquired a prescriptive right to divert to his mill part of the water of a stream. A alters the machinery of his mill. He cannot thereby increase his right to divert water.

(*b*) A has acquired an easement to pollute a stream by carrying on a manufacture on its banks by which a certain quantity of foul matter is discharged into it. A extends his works and thereby increases the quantity discharged. He is responsible to the lower riparian owners for injury done by such increase.

(*c*) A, as the owner of a farm, has a right to take, for the purpose of manuring his farm, leaves which have fallen from the trees on B's land. A buys a field and unites it to his farm. A is not thereby entitled to take leaves to manure this field.

30. Partition of dominant heritage. —Where a dominant heritage is divided between two or more persons, the easement becomes annexed to each of the shares, but not so as to increase substantially the burden on the servient heritage: Provided that such annexation is consistent with the terms of the instrument, decree or revenue-proceeding (if any) under which the division was made, and, in the case of prescriptive rights, with the user during the prescriptive period.

Illustrations

(*a*) A house to which a right of way by a particular path is annexed is divided into two parts, one of which is granted to A, the other to B. Each is entitled, in respect of his part, to a right of way by the same path.

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(*b*) A house to which is annexed the right of drawing water from a well to the extent of fifty buckets a day is divided into two distinct heritages, one of which is granted to A, the other to B. A and B are each entitled, in respect of his heritage, to draw from the well fifty buckets a day; but the amount drawn by both must not exceed fifty buckets a day.

(*c*) A, having in respect of his house an easement of light, divides the house into three distinct heritages. Each of these continues to have the right to have its windows unobstructed.

31. Obstruction in case of excessive user. —In the case of excessive user of an easement the servient owner may, without prejudice to any other remedies to which he may be entitled, obstruct the user, but only on the servient heritage: Provided that such us er cannot be obstructed when the obstruction would interfere with the lawful enjoyment of the easement.

Illustration

A, having a right to the free passage over B's land of light to four windows, six feet by four, increases their size and number. It is impossible to obstruct the passage of light to the new windows without also obstructing the passage of light to the ancient windows. B cannot obstruct the excessive user.

CHAPTER IV

THE DISTURBANCE OF EASEMENTS

32. Right to enjoyment without disturbance. —The owner or occupier of the dominant heritage is entitled to enjoy the easement without disturbance by any other person.

Illustration

A, as owner of a house, has a right of way over B's land. C unlawfully enters on B's land, and obstructs A in his right of way. A may sue C for compensation, not for the entry, but for the obstruction.

33. Suit for disturbance of easement. —The owner of any interest in the dominant heritage, or the occupier of such heritage, may institute a suit for compensation for the disturbance of the easement or of any right accessory thereto; provided that the disturbance has actually caused substantial damage to the plaintiff.

Explanation I. —The doing of any act likely to injure the plaintiff by affectin g the evidence of the easement, or by materially diminishing the value of the dominant heritage, is substantial "damage within the meaning of this section and section 34.

Explanation II. —Where the easement disturbed is a right to the free passage of light passing to the openings in a house, no damage is substantial within the meaning of this section unless it falls within the first *Explanation,* or interferes materially with the physical comfort of the plaintiff, or prevents him from carrying on his accustomed business in the dominant heritage as beneficially as he had done previous to instituting the suit.

Explanation III. —Where the easement disturbed is a right to the free passage of air to the openings in a house, damage is substantial within the meaning of this section if it interferes materially with the physical comfort of the plaintiff, though it is not injurious to his health.

Illustrations

(*a*) A places a permanent obstruction in a path over which B, as tenant of C's house, has a right of way. This is substantial damage to C, for it may affect the evidence of his reversionary right to the easement.

(*b*) A, as owner of a house, has a right to walk along one side of B's house. B builds a verandah overhanging the way about ten feet from the ground, and so as not to occasion any Inconvenience to foot-passengers using the way. This is not substantial damage to A.

34. When cause of action arises for removal of support. —The removal of the means of support to which a dominant owner is entitled does not give rise to a right to recover compensation unless and until substantial damage is actually sustained.

35. Injunction to restrain disturbance. —Subject to the provisions of the Specific Relief Act,

1877 (I of 1877), sections 52 to 57 (both inclusive), an injunction may be granted to restrain the disturbance of an easement–

(a) if the easement is actually disturbed–when compensation for such disturbance might be recovered under this Chapter:

(b) if the disturbance is only threatened or intended–when the act threatened or intended must necessarily, if performed, disturb the easement.

36. Abatement of obstruction of easement. —Notwithstanding the provisions of section 24, the dominant owner cannot himself abate a wrongful obstruction of an easement.

CHAPTER V

THE EXTINCTION, SUSPENSION AND REVIVAL OF EASEMENTS

37. Extinction by dissolution of right of servient owner. —When, from a cause which preceded the imposition of an easement, the person by whom it was imposed ceases to have any right in the servient heritage, the easement is extinguished.

Exception.-Nothing in this section applies to an easement lawfully imposed by a mortgagor in accordance with section 10.

Illustrations

(*a*) A transfers [1][Ulipur] to B on condition that he does not marry C. B imposes an easement on [1][U1ipur]. Then B marries C. B's interest in [1][Ulipur] ends, and with it the easement is extinguished.

(*b*) A, in 1860 let [1][Ulipur] to B for thirty years from the date of the lease. B, in 1861, imposes an easement on the land in favour of C, who enjoys the easement peaceably and openly as an easement without interruption for twenty-nine years. B's interest [1][Ulipur] then ends, and with it C's easement.

[1]Subs. by the Central Laws (Statute Reform) Ordinance No. XXI of 1960, s. 3 and 2nd Sch.

(*c*) A and B, tenants of C, have permanent transferable interests in their respective holdings. A imposes on his holding an easement to draw water from a tank for the purpose of irrigating B's land. B enjoys the easement for twenty years. Then A's rent falls int o arrear and his interest is sold. B's easement is extinguished.

(*d*) A mortgages [1][Ulipur] to B, and lawfully imposes an easement on the land in favour of C in accordance with the provisions of section 10. The land is sold to D in satisfaction of the mortgage-debt. The easement is not thereby extinguished.

38. Extinction by release. —An easement is extinguished when the dominant owner releases it, expressly or impliedly, to the servient owner.

Such release can be made only in the circumstances and to the extent in and to which the dominant owner can alienate the dominant heritage.

An easement may be released as to part only of the servient heritage.

Explanation I. —An easement is impliedly released—

(a) where the dominant owner expressly authorizes an act of a permanent nature to be done on the servient heritage, the necessary consequence of which is to prevent his future enjoyment of the easement, and such act is done in pursuance of such authority;

(b) where any permanent alteration is made in the dominant heritage of such a nature as to show that the dominant owner intended to cease to enjoy the easement in future.

Explanation II. —Mere non-user of an easement is not an implied release within the meaning of this section.

Illustrations

(a) A, B and C are co-owners of a house to which an easement is annexed. A, without the consent of B and C, releases the easement. This release is effectual only as against A and his legal representative.

(b) A grants B an easement over A's land for the beneficial enjoyment of his house. B assigns the house to C. B then purports to release the easement. The release is ineffectual.

(*c*) A, having the right to discharge his eavesdroppings into B's yard, expressly authorizes B to build over this yard to a height which will interfere with the discharge. B builds accordingly. A's easement is extinguished to the extent of the interference.

[1]Subs. by the Central Laws (Statute Reform) Ordinance No. XXI of 1960), s. 3 and 2nd Sch.

(*d*) A, having an easement of light to a window, builds up that window with bricks and mortar so as to manifest an intention to abandon the easement permanently. The easement is impliedly released.

(*e*) A, having a projecting roof by means of which he enjoys an easement to discharge eavesdropping on B's land, permanently alters the roof so as to direct the rain -water into a different channel and discharge it on C's land. The easement is impliedly released.

39. Extinction by revocation. —An easement is extinguished when the servient owner, in exercise of a power reserved in this behalf, revokes the easement.

40. Extinction on expiration of limited period or happening of dissolving condition. —An easement is extinguished where it has been imposed for a limited period, or acquired on condition that it shall become void on the performance or non -performance of a specified act, and the period expires or the condition is fulfilled.

41. Extinction on termination of necessity. —An easement of necessity is extinguished when the necessity comes to an end.

Illustration

A grants B a field inaccessible except by passing over A's adjoining land. B afterwards purchases a part of that land over which he can pass to his field. The right of way over A's land which B had acquired is extinguished.

42. Extinction of useless easement. —An easement is extinguished when it becomes incapable of being at any time and under any circumstances beneficial to the dominant owner.

43. Extinction by permanent change in dominant heritage. —Where, by any permanent change in the dominant heritage, the burden on the servient heritage is materially increased and cannot be reduced by the servient owner without interfering with the lawful enjoyment of the easement, the easement is extinguished, unless-

(a) it was intended for the beneficial enjoyment of the dominant heritage, to whatever extent the easement should be used; or

(b) the injury caused to the servient owner by the change is so slight that no reasonable person would complain of it ; or

(c) the easement is an easement of necessity.

Nothing in this section shall be deemed to apply to an easement entitling the dominant owner to support of the dominant heritage.

44. Extinction on permanent alteration of servient heritage by superior force. —An easement is extinguished where the servient heritage is by superior force so permanently altered that the dominant owner can no longer enjoy such easement:

Provided that, where a way of necessity is destroyed by superior force, the dominant owner has a right to another way over the servient heritage; and the provisions of section 14 apply to such way.

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Illustrations

(*a*) A grants to B, as the owner of a certain house, a right to fish in a river running through A's land. The river changes its course permanently and runs through C's land. B's easement is extinguished.

(*b*) Access to a path over which A has a right of way is permanently cut off by an earthquake. A's right is extinguished.

45. Extinction by destruction of either heritage. —An easement is extinguished when either the dominant or the servient heritage is completely destroyed.

Illustration

A has a right of way over a road running along the foot of a sea-clilf. The road is washed away by a permanent encroachment of the sea. A's easement is extinguished.

46. Extinction by unity of ownership. —An easement is extinguished when the same person becomes entitled to the absolute ownership of the whole of the dominant and servient heritages.

Illustrations

(*a*) A, as the owner of a house, has a right of way over B's field. A mortgages his house and B mortgages his field to C. Then C forecloses both mortgages and becomes thereby absolute owner of both house and field. The right of way is extinguished.

(*b*) The dominant owner acquires only part of the servient heritage: the easement is not extinguished, except in the case illustrated in section 4l.

(*c*) The servient owner acquires the dominant heritage in connection with a third person: the easement is not extinguished.

(*d*) The separate owners of two separate dominant heritages jointly acquire the heritage which is servient to the two separate heritages: the easements are not extinguished.

(*e*) The joint owners of the dominant heritage jointly acquire the servient heritage: the easement is extinguished.

(*f*) A single right of way exists over two servient heritages for the beneficial enjoyment of a single dominant heritage. The dominant owner acquires one only of the servient heritages. The easement is not extinguished.

(*g*) A has a right of way over B's road. B dedicates the road to the public. A's right of way is not extinguished.

47. Extinction by non-enjoyment. —A continuous easement is extinguished when it totally ceases to be enjoyed as such for an unbroken period of twenty years.

A discontinuous easement is extinguished when, for a like period, it has not been enjoyed as such.

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Such period shall be reckoned, in the case of a continuous easement, from the day on which its enjoyment was obstructed by the servient owner, or rendered impossible by the dominant owner; and, in the case of a discontinuous easement, from the day on which it was last enjoyed by any person as dominant owner:

Provided that if, in the case of a discontinuous easement, the dominant owner, within such period, registers, under the [1][Registration Act, 1908(XVI of 1908)], a declaration of his intention to retain such easement, it shall not be extinguished until a period of twenty years has elapsed from the date of the registration.

Where an easement can be legally enjoyed only at a certain place, or at certain times or between certain hours, or for a particular purpose, its enjoyment during the said period at another place, or at other times, or between other hours, or for another purpose, does not prevent its extinction under this section.

The circumstance that, during the said period, no one was in possession of the servient heritage, or that the easement could not be enjoyed, or that a right accessory thereto was enjoyed, or that the dominant owner was not aware of its existence, or that he enjoyed it in ignorance of his right to do so, does not prevent its extinction under this section.

An easement is not extinguished under this section–

(a) where the cessation is in pursuance of a contract between the dominant and servient owners;

(b) where the dominant heritage is held in co-ownership, and one of the co-owners enjoys the easement within the said period, or

(c) where the easement is a necessary easement.

Where several heritages are respectively subject to rights of way for the benefit of a single heritage, and the ways are continuous, such rights shall, for the purposes of this section, be deemed to be a single easement.

Illustration

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A has, as annexed to his house, rights of way from the high road thither over the heritages X and Z and the intervening heritage Y. Before the twenty years expire, A exercises his right of way over X. His rights of way over Y and Z are not extinguished.

48. Extinction of accessory rights. —When an easement is extinguished, the rights (if any) accessory thereto are also extinguished.

Illustration

A has an easement to draw water from B's well. As accessory thereto he has a right of way over B's land to and from the well. The easement to draw water is extinguished under section 47. The right of way is also extinguished.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and 2nd Sch.

49. Suspension of easement. —An easement is suspended when the dominant owner becomes entitled to possession of the servient heritage for a limited interest therein, or when the servient owner becomes entitled to possession of the dominant heritage for a limited interest therein.

50. Servient owner not entitled to require continuance. —The servient owner has no right to require that an easement be continued; and, notwithstanding the provisions of section 26, he is not entitled to compensation for damage caused to the servient heritage in consequence of the extinguishment or suspension of the easement, if the dominant owner has given to the servient owner such notice as will enable him, without unreasonable expense, to protect the servient heritage from such damage.

Compensation for damage caused by extinguished or suspension. Where such notice has not been given, the servient owner is entitled to compensation for damage caused to the servient heritage in consequence of such extinguishment or suspension.

Illustration

A, in exercise of an easement, diverts to his canal the water of B's stream. The diversion continues for many years, and during that time the bed of the stream partly fills up. A then abandons his easement, and restores the stream to its ancient course. B's land is consequently flooded B sues A for compensation for the damage caused by the flooding. It is proved that A gave B a month's notice of his intention to abandon the easement, an d that such notice was sufficient to enable B, without unreasonable expense, to have prevented the damage. The suit must be dismissed.

51. Revival of easement. —An easement extinguished under section 45 revives (*a*) when the destroyed heritage is, before twenty years have expired, restored by the deposit of alluvion; (*b*) when the destroyed heritage is a servient building and before twenty years have ex pired such building is rebuilt upon the same site; and (*c*) when the destroyed heritage is a dominant building and before twenty years have expired such building is rebuilt upon the same site and in such a manner as not to impose a greater burden on the servient heritage.

An easement extinguished under section 46 revives when the grant or bequest by which the unity of ownership was produced is set aside by the decree of a competent Court. A necessary easement extinguished under the same section revives when the unity of ownership ceases from any other cause.

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A suspended easement revives if the cause of suspension is removed before the right is extinguished under section 47.

Illustration

A, as the absolute owner of field Y, has a right of way thither over B's field Z. A obtains from B

a lease of Z for twenty years. The easement is suspended so long as A remains lessee of Z. But when A assigns the lease to C, or surrenders it to B, the right of way revives.

CHAPTER VI

LICENSES

52. "License" defined. —Where one person grants to another, or to a definite number of other persons, a right to do, or continue to do, in or upon the immoveable property of the grantor, something

which would, in the absence of such right, be unlawful, and such right does not amount to an easement or an interest in the property, the right is called a license.

53. Who may grant license. —A license may be granted by anyone in the circumstances and to the extent in and to which he may transfer his interests in the property affected by the license.

54. Grant may be express or implied. —The grant of a license may be express or implied from the conduct of the grantor, and an agreement which purports to create an easement, but is ineffectual for that purpose, may operate to create a license.

55. Accessory licenses annexed by law. —All licenses necessary for the enjoyment of any interest, or the exercise of any right, are implied in the constitution of such interest or right. Such licenses are called accessory licenses.

Illustration

A sells the trees growing on his land to B. B is entitled to go on the land and take away the trees.

56. License when transferable. —Unless a different intention is expressed or necessarily implied, a license to attend a place of public entertainment may be transferred by the licensee; but, save as aforesaid, a license cannot be transferred by the licensee or exercised by his servants or agents.

Illustrations

(*a*) A grants B a right to walk over A's field whenever he pleases. The right is not annexed to any immoveable property of B. The right cannot be transferred.

(*b*) The Government grant B a license to erect and use temporary grain sheds on Government land. In the absence of express provisions to the contrary, B's servants may enter on the land for the purpose of erecting sheds, erect the same, deposit grain therein and remove grain therefrom.

57. Grantor's duty to disclose defects. —The grantor of a license is bound to disclose to the licensee any defect in the property affected by the license, likely to be to be dangerous to the person or property of the licensee, of which the grantor is, and the licensee is not, aware.

58. Grantor's duty not to render property unsafe. —The grantor of a license is bound not to do anything likely to render the property affected by the license dangerous to the person or property of the licensee.

59. Grantor's transferee not bound by license. —When the grantor of the license transfers the property affected thereby, the transferee is not as such bound by the license.

60. License when revocable. —A license may be revoked by the grantor, unless– (a) it is coupled with a transfer of property and such transfer is in force:

(b) the licensee, acting upon the license, has executed a work of a permanent character and incurred expenses in the execution.

61. Revocation express or implied. —The revocation of a license may be express or implied.

Illustrations

(*a*) A, the owner of a field, grants a license to B to use a path across it. A, with intent to revoke the license, locks a gate across the path. The license is revoked.

(*b*) A, the owner of a field, grants a license to B to stack hay on the field. A lets or sells the field to C. The license is revoked.

62. License when deemed revoked. —A license is deemed to be revoked–

(*a*) when, from a cause preceding the grant of it, the grantor ceases to have any interest in the property affected by the license:

(*b*) when the licensee releases it, expressly or impliedly, to the grantor or his representative:

(*c*) where it has been granted for a limited period, or acquired on condition that it shall become void on the performance or non-performance of a specified act, and the period expires or the condition is fulfilled:

(*d*) where the property affected by the license is destroyed or by superior force so permanently altered that the licensee can no longer exercise his right:

(*e*) where the licensee becomes entitled to the absolute ownership of the property affected by the license:

(*f*) where the license is granted for a specified purpose and the purpose is attained, or abandoned, or becomes impracticable:

(*g*) where the license is granted to the licensee as holding a particular office, employment or character, and such of office employment or character ceases to exists:

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(h) where the license totally ceases to be used as such for an unbroken period of twenty years, and such cessation is not in pursuance of a contract between the grantor and the licensee:

(i) in the case of an accessory license, when the interest or right to which it is accessory ceases to exist.

63. Licensee's rights on revocation. —Where a license is revoked, the licensee is entitled to a reasonable time to leave the property affected thereby and to remove any goods which be has been allowed to place on such property.

64. Licensee's rights on eviction. —Where a license has been granted for a consideration, and the licensee, without any fault of his own, is evicted by the i grantor before he has fully enjoyed, under the license, the right for which he contracted, he is entitled to recover compensation from the grantor.

THE ENEMY PROPERTY (CONTINUANCE OF EMERGENCY PROVISIONS) ORDINANCE, 1969

CONTENTS

1. Short title, extent and commencement
2. Continuance of certain emergency provisions
3. Effect of rules, etc. inconsistent with other enactments
4. Delegations
5. Savings as to orders, etc.
6. Protection of action taken under rules

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THE ENEMY PROPERTY (CONTINUANCE OF EMERGENCY ROVISIONS) ORDINANCE, 1969

ORDINANCE NO. I OF 1969

[16th February, 1969]

AN

ORDINANCE

to provide for the continuance of certain provisions of the Defence of Pakistan Rules relating to the control of trading with enemy and control of enemy firms, and the administration of the property belonging to them.

WHEREAS it is expedient to provide for the continuance of certain provisions of the Defence of Pakistan Rules relating to the control of trading with enemy and control of enemy firms, and the administration of the property belonging to them;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred by Article 29 of the Constitution and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement. — (1) This Ordinance may be called the Enemy Property (Continuance of Emergency Provisions) Ordinance, 1969.

(2) It extends to the whole of Pakistan and applies to all citizens of Pakistan, and persons in the service of Government, wherever they may be.

(3) It shall come into force on the day on which the Defence of Pakistan Ordinance, 1965 (XXIII of 1965), ceases to have effect under clause (7) of Article 30 of the Constitution.

2. Continuance of certain emergency provisions.—Notwithstanding the Defence of Pakistan Ordinance, 1965 (XXIII of 1965), ceasing to have effect.

(a) the provisions of the Defence of Pakistan Rules mentioned in the first column of the Schedule to this Ordinance shall continue in force, and shall have effect subject to the modifications specified in the second column thereof;

(b) any order or other instrument made or deemed to be made under or in pursuance of any of the said provisions and in force immediately before the commencement of this Ordinance shall continue in force so far as consistent with the provisions as continued in force by this section and be deemed to be made under or in pursuance of the provisions so continued in force.

3. Effect of rules, etc. inconsistent with other enactments.—The provisions of the Defence of Pakistan Rules as continued in force by section 2 and all orders made or deemed to be made under such provisions shall have effect notwithstanding anything inconsistent therewith contained in any enactment other than this ordinance or in any instrument having effect by virtue of any enactment other than this Ordinance.

4. Delegations. —(1) The [1][Federal Government] may by order direct that any power or duty which by or under any of the provisions as continued in force by section 2 is conferred or imposed upon the [1][Federal Government] shall in such circumstances and under such conditions, if any, as may be specified in the direction be exercised or discharged—

(a) by any officer or authority subordinate to the [1][Federal Government], or

(b) by any Provincial Government or by any officer or authority subordinate to such Government, or

(c) by any other authority.

(2) A Provincial Government may by order direct that any power or duty which has been directed under sub-section (1) to be exercised or discharged by the Provincial Government shall, in such circumstances and under such conditions, if any, as may be specified in the direction, be exercised or discharged by any officer or authority, not being an officer or authority subordinate to the [1][Federal Government].

(3) All orders delegating any power or duty conferred or imposed by any of the provisions continued in force by section 2 made by the [1][Federal Government] before the commencement of this Ordinance and in force immediately before such commencement shall continue in force and be deemed to be made by the [1][Federal Government] under this section.

5. Savings as to orders, etc. —(1) Notwithstanding the Defence of Pakistan Ordinance, 1965 (XXIII of 1965), ceasing to have effect and anything contained in any other law, treaty or agreement for the time being in force or any other instrument having the force of law, all orders and notifications issued and action taken before the commencement of this Ordinance relating to the entry, exit or transit, of traffic to or from any country by rail, road or river transport shall continue in force and shall have effect as if issued or taken under this Ordinance.

(2) No order made or deemed to be made in exercise of any power conferred by or under any of the provisions continued in force by section 2 shall be called in question in any court.

(3) Where an order purports to have been made and signed by any authority in exercise of any power conferred by or under any of the aforesaid provisions, a court shall, within the meaning of the Evidence Act, 1872 (I of 1872), presume that such order was so made by that authority.

6. Protection of action take under rules.—(1) No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of any of the provisions continued in force by section 2 or any order made or deemed to be made thereunder.

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[1]Subs. by Federal Adaptation of Laws Order, 1975, (P.O No. 4 of 1975), Art. 2 and Table.

(2) No suit or other legal proceeding shall lie against the Government for any damage caused or likely to be caused by any thing in good faith done or intended to be done in pursuance of any of the provisions continued in force by section 2 or any order made or deemed to be made thereunder.

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(*See* section 2)

Provisions of the Defence of Pakistan Rules continued in force

	Number and title of Rule	Modification
1.	Short title.	——
3.	Interpretation.	Sub-rule (2) and (3) shall be omitted.
5.	Non-compliance with these rules or orders made thereunder.	
161.	Definition.	—
162.	Prohibition of trading with the enemy.	—
163.	Control of rights, etc., in respect of trading with the enemy.	—
164.	Power to appoint Controllers, etc., of Enemy Trading.	—
165.	Power of Controllers, etc., of Enemy Trading.	—
166.	Supervision of suspected business.	—
167.	Penalty for failure to comply with orders of Controllers, etc.	—
168.	Penalty for concealment, destruction, etc., of books or documents.	—
169.	Definitions.	—
170.	Prohibition of trade with enemy firms and purchase of enemy currency.	—
171.	Power to appoint Controllers, etc., of enemy firms.	—
172.	Powers of Controllers, etc., of enemy firms.	—
173.	Supervision of suspected business.	—
174.	Supervision of firms suspected to be enemy firms.	—
175.	Penalty of failure to comply with orders of Controller, etc.	—
176.	Penalty for concealment, destruction, etc., of books or documents.	—
177.	Contracts with enemy firms.	—
178.	Transfer of property to or by enemy firms.	—
179.	Transfer and allotment of securities to or by enemy firms.	—
180.	Transfer of negotiable instruments, and actionable claims by enemy firms.	—
181.	Power to carry on business of enemy firms.	—
182.	Collection of debt of enemy firms and administration of property.	—
183.	Power to control and wind up certain business.	—
183-A.	Constitution of Board for certain purposes.	—
185.	Power to obtain information.	—
186.	False statements.	—
187.	Power to require production of books.	—
194.	Attempts, etc., to contravene the rules.	—
195.	Offences by corporations.	—
197.	Burden of proof in certain cases.	—
205.	Cognizance of contravention of the rules.	Sub-rules (3) and (4) shall be omitted.

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RGN Dated: - 01.04.2024

THE EVACUEE TRUST PROPERTIES (MANAGEMENT AND DISPOSAL) ACT, 1975

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19. Computation of Limitation
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EVACUEE TRUST PROPERTIES (MANAGEMENT AND DISPOSAL) ACT, 1975

[1]ACT No. XIII OF 1975

[*25th January, 1975*]

An Act to provide for the management and disposal of evacuee properties attached to charitable, religious or educational trusts or institutions.

WHEREAS it is expedient to provide for the management and disposal of evacuee properties attached to charitable, religious or educational trusts or institutions ;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Evacuee Trust Properties (Management and Disposal) Act, 1975.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once and shall be deemed to have taken effect on the first day of July, 1974.

2. Definitions.—(1) In this Act, unless there is anything repugnant in the subject or context,—

(a) "Act" means the Displaced Persons (Compensation and Rehabilitation) Act, 1958 (XXVIII of 1958), or the Disabled Persons (Land Settlement) Act, 1958 (XLVII of 1958), as the case may be;

(b) "Board" means the Evacuee Trust Property Board constituted under section 3 ;

(c) "Chairman" means the Chairman of the Board ;

(d) evacuee trust property" means the evacuee trust properties attached to charitable, religious or educational trusts or institutions or any other properties which form part of the Trust Pool constituted under this Act ;

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(e) "member" means a member of the Board ;

(f) "public dues" includes arrears of rent or any charges due in respect of any evacuee trust property ;

(g) "regulations" means regulations made under this Act ;

(h) "rules" means rules made under this Act ;

(i) "rural area" means the area other than the urban area ;

(j) "scheme" means a scheme for the management and disposal of evacuee trust property ;

(k) "Secretary" means the Secretary to the Board ; and

[1]For Statement of Objects and Reasons, see Gaz. of P., 1974, Ext., Pt.III, p.1085

(l) "urban area" means the area situated within the limits of a municipal corporation, a municipal committee, a notified area committee, a town area committee, a small town committee, a sanitary committee or a cantonment as those limits existed on the fourteenth day of August, 1947.

(2) All other words and expressions used but not defined in this Act shall have the same meaning as in the Registration of Claims (Displaced Persons) Act, 1956 (III of 1956), the Pakistan Rehabilitation Act, 1956 (XLII of 1956), the Pakistan Administration of Evacuee Property Act, 1957 (XII of 1957) the Displaced Persons (Compensation and Rehabilitation) Act, 1958 (XXVIII, of 1958),or the Displaced Persons (Land Settlement) Act, 1958 (XLVII of 1958).

3. Constitution of the Board.—(1) The Federal Government shall constitute a Board, to be known as the Evacuee Trust Property Board, for the management and disposal of evacuee trust property.

(2) The Board shall be a body corporate by the name aforesaid having perpetual succession and a common seal, with power to acquire, hold and dispose of property, both movable and immovable, and to contract, and shall. by the said name sue and be sued.

(3) The Board shall consist of a Chairman and such members as the Federal Government may, by notification in the official Gazette, appoint.

(4) The Chairman shall be appointed by the Federal Government on such terms and conditions as it may determine, shall hold office during the pleasure of the Federal Government and shall be the administrative and executive head of the Board.

(5) A member shall, unless he earlier resigns his office under sub-section (6) or is removed under sub-section (7), hold office for a period of three years on such terms and conditions as the Federal Government may determine.

(6) A member may at any time, resign his office by writing under his hand addressed to the Federal Government.

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(7) The Federal Government shall have the power to remove any member if he—

(i) is disqualified for employment in, or dismissed from; the service of Pakistan; or

(ii) is, or at any time has been, convicted of an offence; involving moral turpitude; or

(iii) is, or at any time has been, adjudicated an insolvent ; or

(iv) is of unsound mind and has been so declared by a competent Court ; or

(v) absents himself from three consecutive meetings of the Board without any reasonable cause ; or

(vi) is found by the Federal Government to be acting in any manner prejudicial to the objects of this Act or any scheme.

4. Functions of the Board.—(1) The general supervision and control of all evacuee trust property shall, subject to any directions that may be given by the Federal Government, vest in the Board, and the Board shall take such action as it deems fit for the proper management, maintenance and disposal of such property in accordance with the provisions of this Act and the rules, scheme, or directions made or issued thereunder.

(2) In particular and without prejudice to the generality of the foregoing power, the functions of the Board shall be—

(a) to maintain a complete and authentic record of all evacuee trust property;

(b) to prepare and submit, by the 31st of May each year, to the Federal Government for its approval, the annual budget estimates alongwith detailed statements of receipts and expenditure;

(c) to buy out of surplus income, if any, or by taking loan from any statutory corporation, with the approval of the Federal Government, any other property which may be considered to be beneficial for promoting the objects of this Act or any scheme;

[1][(d) to sell, dispose of, or transfer to such person or body, and on such terms and conditions, as the Federal Government may direct or, with the prior approval of the Federal Government, make an endowment of, or otherwise manage evacuee trust property consistent with the objects of this Act or a scheme or for any other object approved by the Federal Government;].

(e) to mortgage or lease any evacuee trust property in accordance with the instructions of the Federal Government;

(f) to assess or reassess the rent or lease amount of the evacuee trust property;

(g) with the prior approval of the Federal Government, to extinguish a trust or to wind up an institution the original object of which has wholly or partly ceased to exist;

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(h) to incur expenditure on repairs or maintenance of holy shrines not exceeding such amount as the Federal Government may approve;

(i) to maintain religious shrines and provide facilities for the pilgrims;

(j) to set up, or make grants-in-aid to, orphanages, leper houses, widow houses, poor houses and educational, vocational, technical or health institutions and hospitals subject to the general control and directions of the Federal Government;

(k) to order sealing of any evacuee trust property in an appropriate case pending payment of the Board's dues by the person concerned;

(l) to undertake development programmes for increasing the productivity of agricultural land forming part of the Trust Pool and for enhancing the commercial value of an evacuee trust property;

[1]Subs. by the Evacuee Trust Properties (Management and Disposal) (Amdt.) Ordinance, 1984 (39 of 1984),s.2.

(m) to invest money, with the prior approval of the Federal Government, for any other social welfare or charitable purpose;

(n) to set up, with the prior approval of the Federal Government, any industrial or commercial undertaking;

(o) to enter upon and inspect evacuee trust property;

(p) to appoint such staff on such terms and conditions as may be approved by the Federal Government consistent with the sanctioned budget;

(q) to exercise financial and administrative control over offices attached to or under it;

(r) to prepare a scheme or schemes with the prior approval of the Federal Government for promoting the objects of this Act; and

(s) to institute and defend suits and proceedings in a court of law.

5. Meetings of the Board.—(1) Save as hereinafter provided, the Board shall regulate the procedure for its meetings.

(2) The meetings of the Board shall be called by the Chairman on such date, time and place as he may deem fit:

Provided that not less than one meeting shall be held in every two months.

(3) The Chairman shall1preside at every meeting of the Board.

(4) If the Chairman is absent from any meeting, the members present shall elect one from amongst themselves to preside at the meeting; and the member so elected shall at that meeting exercise all the powers of the Chairman.

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6. Vesting of evacuee trust property. All evacuee trust property shall vest in the Federal Government.

7. Trust Pool. For the purposes of management, maintenance and disposal of evacuee trust property a Trust Pool consisting of the following shall be constituted, namely:

(a) all evacuee trust property which immediately before the commencement of this Act formed part of the Trust Pools constituted under the Acts;

(b) any evacuee property declared under section 8 to be evacuee trust property;

(c) Government property or any other property exchanged with any evacuee trust property;

(d) any property purchased or constructed by the Board;

(e) sale proceeds of any evacuee trust property;

(f) all profits and income received or derived from any evacuee trust property;

(g) all rents and other amounts received, realized or recoverable in respect of evacuee trust property.

8. Declaration of Property as evacuee trust property.—(1) If a question arises whether an evacuee property is attached to a charitable, religious or educational trust or institution or not, it shall be decided by the Chairman whose decision shall be final and shall not be called in question in any Court.

(2) If the decision of the Chairman under sub-section (1) is that an evacuee property is evacuee trust property, he shall, by notification in the official Gazette, declare such property to be evacuee trust property.

(3) If a property is declared to be evacuee trust property under sub-section (2), the Chairman may pass an order canceling the allotment or alienation, as the case may be, take possession and assume administrative control, management and maintenance thereof:

Provided that no declaration under sub-section (2) or order under sub-section (3) shall be made or passed in respect of any property without giving the persons having interest in that property a reasonable opportunity of being heard.

9. Exemption of property in Trust Pool from process. No evacuee trust property shall be liable to be proceeded against for any claim in any manner whatsoever in execution of any decree or order or by any other process of Court or other authority.

10. Validation of certain transfers.—(1) An immovable evacuee trust property, —

(a) if situated in a rural area and utilised *bona fide* under any Act prior to June, 1964, for allotment against the satisfaction of verified claims; and

(b) if situated in an urban area and utilised *bona fide* under any Act for transfer against the satisfaction of verified claims in respect of which Permanent Transfer Deeds were issued prior to June, 1968,

shall be deemed to have been validly transferred by sale to the Chief Settlement Commissioner, and the sale proceeds thereof shall be re-imbursed to the Board and shall form part of the Trust Pool.

(2) If a question arises whether a transaction referred to in sub-section (1) is *bona fide* or not, it shall be decided by the Chairman whose decision shall be final and shall not be called in question in any Court.

(3) If it is decided that a transaction referred to in sub-section (1) is not *bona fide*, the Chairman may pass an order canceling the allotment or transfer of such property;

Provided that no decision under sub-section (2) or order under sub-section (3) shall be taken or passed in respect of any property without giving the person affected a reasonable opportunity of being heard.

11. Appointment and functions of Secretary.—(1) The Federal Government shall appoint a person to be Secretary to the Board on such terms and conditions as it may determine.

(2) Subject to the provisions of this Act, the Secretary shall discharge his functions and perform his duties under the general superintendence, and control of the Chairman.

12. Appointment and duties of officers and staff.—(1) The Chairman may, with the prior approval of the Federal Government and on such terms and conditions as the Board may determine, appoint administrators, Deputy Administrators and Assistant Administrators, and may also appoint such other officers and staff as may be necessary for the efficient performance of the functions of the Board.

(2) The Chairman may, by general or special order, provide for the distribution or allocation of work to be performed by the persons appointed under sub-section (1).

13. Officers and staff to be public servants. All persons appointed under this Act, shall, subject to any special contract to the contrary, be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

14. Bar of jurisdiction. Save as otherwise provided in this Act, no civil court shall have jurisdiction in respect of any matter which the Federal Government or an officer appointed under this Act is empowered under this Act to determine, and no injunction, process or order shall be granted or issued by any Court or other authority in respect of any action taken or to be taken in exercise of any power conferred by or under this Act.

15. Protection of action taken in good faith. No suit, prosecution or other legal proceeding shall lie against then Federal Government, the Board or any person appointed under this Act in respect of anything which is in good faith done or intended to be done in pursuance of this Act or any rules, scheme or order made thereunder.

16. Appeal. Save as otherwise provided in this Act, any person aggrieved by an order passed under this Act may, within fifteen days of the passing of such order, prefer an appeal__

(a) in the case of an order passed by an Assistant Administrator or a Deputy Administrator, to the Administrator; and

(b) in the case of an order passed by an administrator, not being an order passed in appeal by the Administrator confirming an order of an Assistant Administrator or a Deputy Administrator, to the Chairman.

17. Revision. The Federal Government may at any time, of its own, motion or otherwise, call for the record of any case or proceedings under this Act, which is pending or in which the Chairman, an Administrator, a Deputy Administrator or an Assistant Administrator has passed an order, for the purpose of satisfying itself as to the correctness, legality or propriety of such an order, and may pass such order in relation thereto as the Federal Government thinks fit:

Provided that the record of any case or proceedings in which the Chairman, an Administrator, a Deputy Administrator or an Assistant Administrator has passed an order shall not be called for under this section on the application of any aggrieved person made after the expiration of fifteen days from the date of such order.

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18. Power to transfer cases. The Chairman may, at any stage, by order in writing, transfer a case pending before an Administrator or a Deputy Administrator or an Assistant Administrator to any other Administrator, Deputy Administrator or Assistant Administrator, as the case may be, and, the officer to whom it is so transferred may, subject to such direction, if any, as may be given in the order of transfer, proceed from the stage at which the' case was so transferred.

19. Computation of limitation. In computing the period of limitation provided for in sections 16 and 17 the provisions of sections 5 and 12 of the Limitation Act, 1908 (IX of 1908), shall apply.

20. Form of appeal or revision. An appeal under section 16 and an: application for revision shall be presented in such form and manner as may be specified by rules.

21. Power of Chairman etc., as civil court.(1) The Federal Government or any person authorized by it, the Chairman and every officer appointed under this Act shall, for the purposes of making any enquiry or hearing any appeal or revision under this Act, have the same powers as are vested in a civil Court under the Code of Civil Procedure, 1908 (Act V of 1908), when trying a suit in respect of the following matters, namely :—

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) requiring the discovery and production of any documents;

(c) requisitioning any public record from any Court or office;

(d) issuing commissions for the examination of witnesses;

(e) appointing guardians or next friends of persons who are minors or of unsound mind;

(f) adding legal representatives of deceased applicants or claimants, as parties;

(g) restoration of cases dismissed for default;

(h) substituting the names of the rightful claimants;

(i) consolidation of cases;

(j) any other matter which may be prescribed by rules made under this Act.

(2) The Chairman and every officer appointed under this Act shall be deemed to be a Court for the purposes of sections 480 and 482 of the Code of Criminal Procedure, 1898 (Act V of 1898), and any proceedings before the Chairman or any such officer shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 of the Pakistan Penal Code (Act XLV of 1860) and for the purposes of sections 196, 199 and 200 thereof.

22. Penalty for Concealment of evacuee trust property. Any person who is in occupation or possession of any property which he knows or has reason to believe to be an evacuee trust property and conceals or misrepresents facts regarding such property or misappropriates the proceeds

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of such property or abets such concealment, misrepresentation or misappropriation shall be punishable with imprisonment for a term which may extend to three years and with fine.

23. Cognizance of offence by courts. No Court shall take cognizance of an offence punishable under this Act save upon a complaint in writing made by the Federal Government or an officer appointed under this Act.

24. Recovery of arrears. Any sum due to the Board in respect of any evacuee trust property which is not paid within thirty days of its having become due shall be recoverable as an arrear of land revenue.

25. Ejectment. The Chairman, an Administrator, a Deputy Administrator, or an Assistant Administrator may eject or cause to be ejected any person in possession or occupation of any evacuee trust property whose possession or occupation is not authorised by or under any of the provisions of this Act or who contravenes or may have contravened any of the terms and conditions under which the property is held by him, or who has failed to pay public dues, or has willfully caused damage to any such property or any person in occupation or possession of any evacuee trust property which is required for an object which is considered to be a public purpose by the Federal Government, after giving him notice, and for the purposes of such ejectment may use or cause to be used such force as may be considered necessary.

26. Delegation of powers.—(1) The Federal Government may, by notification in the official Gazette, delegate any of its powers under this Act to such authority or person and subject to such conditions, if any, as may be specified in the notification.

(2) Subject to the provisions of this Act and the rules, the Board may by resolution delegate all or any of its powers to the Chairman, or any officer or authority, subject to such conditions, if any, as may be specified in the resolution.

(3) Subject to the provisions of this Act and the rules the Chairman may by order in writing delegate all or any of his powers under this Act to an Administrator, a Deputy Administrator or an Assistant Administrator subject to such conditions, if any, as may be specified in the order.

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(4) Any order passed by an Administrator, a Deputy Administrator or an Assistant Administrator, in exercise of any power delegated to him under sub-section (3), shall be subject to the provisions of sections 16 and 17 in the same manner and to the same extent as any other order passed by an Administrator, a Deputy Administrator or an Assistant Administrator, as, the case may be, is so subject.

27. Appearance by counsel or agent. Any person who is entitled or required to attend before the Chairman or any other authority in connection with any proceeding under this Act, otherwise than when called upon to attend personally for examination on oath or affirmation, may attend or be represented by his duly authorised agent, and any application, appeal or revision may be presented by counsel or such agent.

Explanation.— In this section, "counsel" means an Advocate or any, person entitled or allowed to plead in any civil court.

28. Power to make rules. The Federal Government may, by notification, in the official Gazette, make rules for carrying out the purposes of this Act.

29. Power to make regulations. The Board may with the approval of the Federal Government, make regulations regarding appointments, promotions, conditions of service, pensionary and other benefits in respect of the officers and staff of the Board.

30. Preparation of scheme for management etc. Subject to the provisions of this Act and the rules, the Board shall, with the prior approval of the Federal Government, prepare one or more schemes for the management, maintenance and disposal of evacuee trust property and for the efficient performance of its functions.

31. Act to override other laws. The provisions of this Act and any rule or scheme or order made thereunder shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force or in any instrument having effect by virtue of such law.

32. Savings. Anything done, action taken, appointment made, order passed, rule or scheme made, notification or instruction issued, or purporting to have been done, taken, made, passed or issued by or under the provisions of either Act immediately before the commencement of this Act shall be deemed to have been done, taken, made, passed or issued under this Act and shall have effect accordingly.

33. [*Repeal.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981),s.3 and Sch., II.*

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THE FATAL ACCIDENTS ACT, 1855

CONTENTS

1. Suit for compensation to the family of a person for loss occasioned to it by his death by actionable wrong

2. Not more than one suit to be brought. Claim for loss to estate may be added

3. Plaintiff shall deliver particulars, etc.

4. Interpretation-clause

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[1][THE [2]*FATAL ACCIDENTS ACT, 1855]

Act No. XIII OF 1855

[27th March, 1855]

An Act to provide compensation to families for loss occasioned by the death of a person caused by actionable wrong.

Preamble. WHEREAS no action or suit is now maintainable in any Court against a person who, by his wrongful act, neglect or default, may have caused the death of another person, and it is often-times right and expedient that the wrong-doer in such case should be answerable in damages for the injury so caused by him ; It is enacted as follows:–

1. Suit for compensation to the family of a person for loss occasioned to it by his death by actionable wrong. Whenever the death of a person shall be caused by wrongful act, neglect or default, and the act, neglect or default is such as would (if death had not ensued) have entitled the party injured to maintain an action and recover damages in respect thereof, the party who would have been liable if death had not ensued shall be liable to an action or suit for damages, notwithstanding the death of the person injured, and although the death shall have been caused under such circumstances as amount in law to felony or other crime.

[3]* * * Every such action or suit shall be for the benefit of the wife, husband, parent and child, if any, of the person whose death shall have been so caused, and shall be brought by and in the name of the executor, administrator or representative of the person deceased;

and in every such action the Court may give such damages as it may think proportioned to the loss resulting from such death to the parties respectively, for whom and for whose benefit such action shall be brought; and the amount so recovered, after deducting all costs and expenses, including the costs not recovered from the defendant, shall be divided amongst the before mentioned parties, or any of them, in such shares as the Court by its judgment or decree shall direct.

2. Not more than one suit to be brought. Claim for loss to estate may be added. Provided always that not more than one action or suit shall be brought for, and in respect of the same subject-matter of complaint [4]* * *: Provided that, in any such action or suit, the executor, administrator or representative of the deceased may insert a claim for and recover any pecuniary loss to the estate of the deceased occasioned by such wrongful act, neglect or default, which sum, when recovered, shall be deemed part of the assets of the estate of the deceased.

3. Plaintiff shall deliver particulars, etc. The plaint in any such action or suit shall give a full particular of the person or persons for whom, or on whose behalf, such action or suit shall be brought, and of the nature of the claim in respect of which damages shall be sought to be recovered.

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[1]Short title given by the Short Titles Act, 1897 (14 of 1897).
This Act is based on the Fatal Accidents Act, 1846 (9 & 10 Vict., c. 93).
It has been declared to be in force in all the Provinces and the Capital of the Federation, except the Scheduled Districts, by the Laws Local Extent Act, 1874 (15 of 1874), s. 3.
It has been declared by notification under s. 3(a) of the Scheduled Districts Act, 1874 (14 of 1874), to be in force in the following Scheduled Districts, namely:-
Sind …….See Gazette of India, 1880, Pt. I, p. 672.
The Scheduled Districts of the Punjab (some of these and portions of others now form the N.W.F.P),-See Gazette of India, 1881, Pt. I, p.483.
[2]The word "Indian" omitted by A. O. 1949, Sch.
[3]The words "And it is enacted further that" rep. by the Repealing and Amending Act, 1914 (10 of 1914), Sch. II.
[4]The words "and that every such action shall be brought within twelve calendar months after the death of such deceased person" rep. by the Indian Limitation Act, 1871 (9 of 1871). For limitation, *see* now the Limitation Act, 1908 (9 of 1908).

4. Interpretation-clause. The following words and expressions are intended to have the meanings hereby assigned to them respectively, so far as such meanings are not excluded by the context or by the nature of the subject-matter; that is to say [1]* * * the word "person" shall apply to bodies politic and corporate; and the word "parent" shall include father and mother[2] and grand-father and grand-mother; and the word "child" shall include son and daughter and grandson and grand-daughter and step-son and step-daughter.

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[1]Certain words rep. by Act 10 of 1914, Sch. II.
[2]Step-father and step-mother are designedly omitted.

THE FOREIGN EXCHANGE (TEMPORARY RESTRICTIONS) ACT, 1998

CONTENTS

1. Short title, extent and commencement
2. Restriction on withdrawal of foreign exchange etc.
3. Certain protection to remain unaffected
4. Power to make rules
5. Repeal and saving

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THE FOREIGN EXCHANGE (TEMPORARY RESTRICTIONS) ACT, 1998

ACT No. IV OF 1998

An Act to provide for dealings in foreign exchange

WHEREAS it is necessary to impose certain temporary restrictions for and inrelation to foreign exchange;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Foreign Exchange (Temporary Restrictions) Act, 1998.

(2) It extends to the whole of Pakistan.

(3) It shall be deemed to have come into force on the twenty-eighth day of May, 1998.

2. Restriction on withdrawal of foreign exchange etc. —Notwithstanding anything contained in the Protection of Economic Reforms Act, 1992 (XII of 1992), orin any other law for the time being in force, or in any agreement or contract, it is hereby provided that the right to hold, sell, withdraw, transfer, pay or take out foreign exchange held by any person in Pakistan as on the twenty-eighth day of May, 1998, (the "specified date") without the prior permission of the State Bank of Pakistan shall remain suspended:

Provided that there shall be no legal restriction on any person converting his foreign exchange held as above into rupees at the officially notified rate of exchange.

Explanation.—For the purpose of this section "foreign exchange" means foreign exchange held in a foreign currency account or in such other form as the Federal Government may specify.

3. Certain protection to remain unaffected.—(1) Subject to the provisions of this Act all the protections and immunities conferred in terms of the Protection of Economic Reforms Act, 1992 (XII of 1992), shall remain unaffected.

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(2) The Federal Government may—

(a) make provision for the grant of further concessions for, or in relation to, amounts converted from the foreign exchange referred to in section 2 held as on the specified date into rupees, or assets acquired therefrom; and

(b) issue financial instruments including bonds of varying maturities against the aforesaid foreign exchange which shall carry with them not less than the same entitlements, protections and immunities, as the foreign exchange held on the aforesaid date save and except for the right to immediate repayment in foreign exchange.

4. Power to make rules.—(1) The Federal Government by rules empower theState Bank of Pakistan to—

(a) pass general orders suspending the right of persons to repayment except in rupees in relation to the foreign exchange referred to in section 2 as on the specified date;

(b) make provision for the payment of profit to persons holding foreign exchange referred to in section 2 as on the specified date in foreign exchange or in rupees; and

(c) classify citizen of Pakistan on the basis of their status being resident or non-resident of Pakistan or other persons on the basis of residence or nationality or otherwise for the purpose aforesaid.

(2) Pending the framing of rules under subsection (1) withdrawals, remittances or payments in foreign exchange shall be made with the prior permission of the State Bank of Pakistan.

5. Repeal and saving.—(1) The Foreign Exchange (Temporary Restrictions) Ordinance, 1998 (VII of 1998), is hereby repealed.

(2) Any rules, orders or instructions regarding foreign exchange made or issued by the Federal Government or the State Bank of Pakistan and in force before the commencement of this Act shall, in so far as such rules, orders or instructions are not inconsistent with the provisions of this Act, be deemed to have been made or issued under this Act.

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THE FOREIGNERS ACT, 1946

CONTENTS

SECTIONS:

1. Short title and extent.
2. Definitions.
3. Power to make orders.
4. Internees.
5. Change of name.
6. Obligations of masters of vessels, etc.
7. Obligation of hotel keepers and others to furnish particulars.
8. Determination of nationality.
9. Burden of proof.
10. Power to exempt from application of Act.
11. Power to give effect to orders, directions, etc.
12. Power to delegate authority.
13. Attempts, etc., to contravene the provisions of this Act, etc.
13A. Prohibition of assisting illegal entry.
13B. Prohibition to employ an illegal entrant.
14. Penalties.
14A. Restriction on release on bail.
14B. Deportation pending trial or undergoing sentence of imprisonment.

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14C. Custody pending deportation.

14D. Registration of illegal immigrants.

15. Protection to persons acting under this Act.

16. Application of other laws not barred.

17. Repeal.

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THE FOREIGNERS ACT, 1946

[1]ACT NO. XXXI OF 1946

[*23rd November, 1946*]

An Act to confer upon the [2][Federal Government] certain powers in respect of foreigners.

WHEREAS it is expedient to provide for the exercise by the [2][Federal Government] of certain powers in respect of the entry of foreigners into [3][Pakistan], their presence therein and their departure therefrom;

It is hereby enacted as follows:—

1. Short title and extent.—(1) This Act may be called the Foreigners Act, 1946.

[4][(2) It extends to the whole of Pakistan.]

2. Definitions. In this Act-

[5][(a) "foreigner" means a person who is not a citizen of Pakistan;]

(b) "prescribed" means prescribed by orders made under this Act(4 & 5 GCO 17);

(c) "specified" means specified by direction of a prescribed authority.

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1946, Pt. V, p. 254.

This Act has been applied to Baluchistan, see Gazette of India, 1946, Pt. I, p. 1913; and also to all tribal areas with certain conditions, see ibid., 1947, Pt. 1, p. 343.

The Act has been extended to-

(a) the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950);

(b) the Baluchistan States Union, *see* the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953);

(c) the Khairpur State, *see* the Khairpur (Federal Laws) (Extension) Order, 1953 (G. G. O. 5 of 1953); and

(d) the State of Bahawalpur, *see* the Bahawalpur (Extension of Federal Laws) Order, 1953 (G. G. O. 11 of 1953), as amended.

The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.

The Act, rules, notifns. and orders made under it, have been applied to the Tribal Areas or to the parts of those areas to which they have not been already applied, *see* the Tribal Areas (Application of Acts) Reg., 1965, Gaz. of P., 1965, Ext., pp. 1016-1018.

[2]Subs. by the Preventive Detention Laws Amendment Act, 1975 (44 of 1975), s. 3, for "Central Government".

[3]Subs. by the Adaptation (Security Laws) Order, 1956 (P.O. No. 8 of 1956), Art. 2 and Sch. *(with effect from the 23rd March, 1956)*, for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960) s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2) as amended by A. O. 1949 and P. O No. 8 of 1956.

[5]Subs. by the Foreigners (Amdt.) Act 1957 (35 of 1957) s. 2 for the original cl. (a) as amended by A. O. 1949 and P. O. No. 8 of 1956.

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3. Power to make orders.—(1) The [1][Federal Government] may by order[2] make provision, either generally or with respect to all foreigners or with respect to any particular foreigner or any prescribed class or description of foreigner, for prohibiting, regulating or restricting the entry of foreigners into [3][Pakistan] or their departure therefrom or their presence or continued presence therein.

(2) In particular and without prejudice to the generality of the foregoing power, orders made under this section may provide that the foreigner-

(a) shall not enter [3][Pakistan], or shall enter [3][Pakistan] only at such times and by such route and at such port or place and subject to the observance of such conditions on arrival as may be prescribed;

(b) shall not depart from [3][Pakistan], or shall depart only at such times and by such route and from such port or place and subject to the observance of such conditions on departure as may be prescribed ;

(c) shall not remain in [3][Pakistan] or in any prescribed area therein;

(d) shall remove himself to, and remain in, such area in [3][Pakistan] as may be prescribed;

(e) shall comply with such conditions as may be prescribed or specified—

(i) requiring him to reside in a particular place;

(ii) imposing any restrictions on his movements;

(iii) requiring him to furnish such proof of his identity and to report such particulars to such authority in such manner and at such time and place as may be prescribed or specified;

(iv) requiring him to allow his photograph and finger impressions to be taken and to furnish specimens of his handwriting and signature to such authority and at such time and place as may be prescribed or specified;

(v) requiring him to submit himself to such medical examination by such authority and at such time and place as may be prescribed or specified;

(vi) prohibiting him from association with persons of a prescribed or specified description;

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[1]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (44 of 1975) s. 3, for "Central Government".

[2]For the Foreigners Order 1951, *see* Gaz. of P. 1951; Pt I pp 611-614; for the Enemy Foreigners Order, 1965, *see ibid.,* 1965. Ext. pp. 1019-1023; and for the Foreigners (Paroless) Order, 1965, *see ibid.,* 1965, Ext., pp. 1027-1029.

[3]Subs. by the Adaption (Security Laws) Order, 1956 (P. O No. 8 of 1956) Art. 2 and Sch. (*with effect from 23rd March, 1956*), for the "Provinces and the Capital of the Federation" which had been subs. by A. O., 1949 , for "British India".

[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960) s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for the original sub-section (2) as amended by A.O. 1949 and P.O. No. 8 of 1956.

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(vii) prohibiting him from engaging in activities of a prescribed or specified description;

(viii) prohibiting him from using or possessing prescribed or specified articles;

(ix) otherwise regulating his conduct in any such particular as may be prescribed or specified;

(f) shall enter into a bond with or without sureties for the due observance of, or as an alternative to the enforcement of, any or all prescribed or specified restrictions or conditions;

[1][(g) shall be arrested and in the interest of the defence or the external affairs or the security of Pakistan, or any part thereof, detained or confined.]

[2][(3) An order made under sub-section (2) may make provision for such incidental and supplementary matters as may, in the opinion of the [3][Federal Government], be expedient or necessary for giving effect to the provisions of this Act.

(4) The provisions of [4][clause (b) of sub-section (1) of sub-section 3 of the Security of Pakistan Act, 1952 (XXXV of 1952), and those of [5][sub-section (2) of section 6 and] section 6A of that Act, shall mutatis mutandis apply in relation to a person detained under this Act as they apply in relation to a person detained under that Act.]

4. Internees.—(1) Any foreigner (hereinafter referred to as an internee) in respect of whom there is in force any order made under clause (g) of sub-section (2) of section 3, directing that he be detained or confined, shall be detained or confined in such place and manner and subject to such condition as to maintenance, discipline and the punishment of offences and breaches of discipline as the [3][Federal Government] may from time to time determine[6].

(2) Any foreigner (hereinafter referred to as a person on paid) in respect of whom there is in force an order under clause (e) of sub-section (2) of section 3 requiring him to reside at a place set apart for the residence under supervision of a number of foreigners, shall while residing therin be subject to such conditions as to maintenance, discipline and the punishment of offences and breaches of discipline as the [3][Federal Government] may from time to time by order determine.

(3) No person shall—

(a) knowingly assist an internee or a person on a parole to escape from custody or the place set apart for his residence, or knowingly harbour an escaped internee or person on parole, or

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[1]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (44 of 1975), s. 3, for cl. (g). This clause was previously amended by various enactments.
[2]Sub-sections (3) and (4) ins. by Act 4 of 1962, s. 3.
[3]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".
[4]Subs. by Act 44 of 1975, s. 3 for "sub-section" (2) of section 6".
[5]Ins. Ibid.
[6]For the Enemy Foreigners Order 1965, see Gaz., of P., 1965, Ext., pp. 1019-1023 and for the Internees (Discipline and offences) Regulation 1965, see Ibid, 1965, Ext., pp. 1024-1027.

(b) give an escaped internee or a person on parole any assistance with intent thereby to prevent, hinder on interfere with apprehension of the internee or the person on parole.

(4) The [1][Federal Government] may by order[2] provide for regulating access to, and the conduct of persons in, places in [4][Pakistan] where internees or persons on parole are detained or restricted, as the case may be, and for prohibiting or regulating to dispatch an conveyance from outside such places to or internees or persons on parole therein of such articles as may be prescribed.

5. Change of name.—(1) No foreigner who was in [3][Pakistan] on the date on which this Act came into force shall, while in [3][Pakistan] after that date, assume or use or purport to assume or use for any purpose any name other than that by which he was ordinarily known immediately before the said date.

(2) Where, after the date on which this Act came into force, any foreigner carries on or purports to carry on (whether along or in association with any other person) any trade or business under any name or style, other than that under which that trade or business was being carried on immediately before the said date, he shall, for the purposes of sub-section (1), be deemed to be using a name other than that by which he was ordinarily known immediately before the said date.

(3) In relation to any foreigner who, not having been in [3][Pakistan] on the date on which this Act came into force, thereafter enters [3][Pakistan], sub-sections (1) and (2) shall have effect as if for any reference in those sub-sections to the date on which this Act came into force there were substituted a reference to the date on which the first enters [3][Pakistan] thereafter.

(4) For the purposes of this section—

(a) the expression "name" includes a surname, and

(b) a name shall be deemed to be changed if the spelling thereof is altered.

(5) Nothing in this section shall apply to the assumption or use—

(a) of any name in pursuance of a [4]* * * permission granted by the [1][Federal Government]; or

(b) by any married woman, of her husband's name.

6. Obligations of masters of vessels, etc.—(1) The master of any vessel landing or embarking at a port in [5][Pakistan], passengers coming to or going from that port by sea and the pilot of any aircraft landing or embarking at any place in [5][Pakistan], passengers coming to or going from that place by air, shall furnish to such person and in such manner as may be prescribed a return giving the prescribed particulars with respect to any passengers or members of the crew, who are foreigners.

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[1]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (44 of 1975), s. 3, for "Central Government".

[2]For an Order imposing restrictions on communication, etc. with the person detained or confined by an order under cl. (g) of sub-section (2) of s. 3, see S. R. O. No . 145 (R)/ 65, dated the 10th September 1965, Gaz. of P., 1965, Ext., p. 1029.

[3]Subs. by the Adaption (Security Laws) Order, 1956 (P. O No. 8 of 1956), Art. 2 and Sch. (with effect from 23rd March , 1956), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949 , for "British India".

[4]The original words "Royal license or" omitted by the Adaptation (Security Laws) Order, 1956 (P. O. No. 8 of 1956), Art. 2 and Sch. (with effect from the 23rd March, 1956).

[5]Subs. by P. O. No.8 of 1956, Art. 2 and Sch., (with effect from the 23rd March, 1956), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

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(2) Any [1][District Coordination Officer or any officer authorized by Federal Government or] [2]* * * and any Superintendent of Police may, for any purpose connected with the enforcement of this Act or any order made thereunder, require the master of any such vessel or the pilot of any such aircraft to furnish such information as may be prescribed in respect of passengers or members of the crew on such vessel or aircraft, as the case may be.

(3) Any passenger on such vessel or such aircraft and any member of the crew of such vessel or aircraft shall furnish to the master of the vessel or the pilot of the aircraft, as the case may be, any information required by him for the purpose of furnishing the return referred to in sub- section (1) or for furnishing the information under sub-section (2).

(4) For the purposes of this section—

(a) "master of a vessel, and "pilot of any aircraft" shall include any person authorised by such master or pilot as the case may be, to discharge on his behalf any of the duties imposed on him by this section;

(b) "passenger" means any person not being a *bona fide* member of the crew, travelling or seeking to travel on a vessel or aircraft.

7. Obligation of hotel keepers and others to furnish particulars.—(1) It shall be the duty of the keeper of any premises whether furnished or unfurnished, where lodging or sleeping accommodation is provided for reward, to submit to such person and in such manner such information in respect of foreigners accommodated in such premises, as may be prescribed.

Explanation. The information referred to in this sub-section may relate to all or any of the foreigners accommodated at such premises and may be required to be submitted periodically or at any specific time or occasion.

(2) Every person accommodated in any such premises shall furnish to the keeper thereof a statement containing such particulars as may be required by the keeper for the purpose of furnishing the information referred to in sub-section (1).

(3) The keeper of every such premises shall maintain a record of the information furnished by him under sub-section (1) and of the information obtained by him under sub-section (2) and such record shall be maintained in such manner and preserved for such period as may be prescribed and shall at all times be open to inspection by any police officer or by a person authorised in this behalf by the [1][District Coordination officer or any officer authorised by the Federal Government].

8. Determination of nationality.—(1) When a foreigner is recognised as a national by the law of more than one foreign country or where for any reason it is uncertain what nationality if any is to be ascribed to a foreigner, that foreigner may be treated as the national of the country with which he appears to the prescribed authority to be most closely connected for the time being in interest or sympathy or if he is of uncertain nationality, of the country with which he was last so connected:

Provided that where a foreigner acquired a nationality by birth, he shall, except where the [3][Federal Government] so directs either generally or in a particular case, be deemed to retain that nationality unless he proves to the satisfaction of the said authority that he has subsequently acquired by naturalization or otherwise some other nationality and still recognised as entitled to protection by the Government of the country whose nationality he has so acquired.

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[1]Subs. by Ord. 44 of 02, s. 2 & 3.

[2]The words "any Commissioner of Police or, where there is no Commissioner of Police," omitted by A. O., 1949.

[3]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (44 of 1975), s. 3, for "Central Government".

(2) A decision as to nationality given under sub-section (1) shall be final and shall not be called in question in any Court:

Provided that the [1][Federal Government], either of its own motion or on an application by the foreigners concerned, may revise any such decision.

9. Burden of proof. lf in any case not falling under section 8 any question arises with reference to this Act or any order made or direction given thereunder, whether any person is or is not a foreigner or is or is not a foreigner of a particular class or description the onus of proving that such person is not a foreigner or is not a foreigner of such particular class or description, as the case may be, shall, notwithstanding anything contained in the Evidence Act, 1872 (I of 1872), lie upon such person.

[2]10. Power to exempt from application of Act. The [1][Federal Government] may by order [3]declare that any or all of the provisions of this Act or the orders made there under shall not apply, or shall apply only with such modifications or subject to such conditions as may be specified, to or in relation to any individual foreigner or any class or description of foreigner.

11. Power to give effect to orders, directions, etc.—(1) Any authority empowered by or under or in pursuance of the provisions of this Act to give any direction or to exercise any other power, may, in addition to any other action expressly provided for in this Act, take, or cause to be taken such steps and use, or caused to be used, such force as may, in its opinion, be reasonably necessary for securing compliance with such direction or for preventing or rectifying any breach thereof, or for the effective exercise of such power, as the case may be.

(2) Any police officer may take such steps and use force as may, in his opinion, be reasonably necessary for securing compliance with any order made or direction given under or in pursuance of the provisions of this Act or for preventing or rectifying any breach of such order or direction.

(3) The power conferred by this section shall be deemed to conferred upon any person acting in exercise thereof a right of access to any land or other property whatsoever.

12. Power to delegate authority. Any authority upon which any power to make or give any direction, consent or permission or to do any other act is conferred by this Act or by any order[4] made there under may, unless express provision is made to the contrary, in writing authorise, conditionally or otherwise, any authority subordinate to it to exercise such power on its behalf, and thereupon the said subordinate authority shall, subject to such conditions as may be contained in the authorisation, be deemed to be the authority upon which such power is conferred by or under this Act.

13. Attempts, etc., to contravene the provisions of this Act etc.—(1) Any person who attempts to contravene, or abets or attempts to abet, or does any act preparatory to, a contravention, of, the provisions of this Act or of any order made or direction given thereunder, or fails to comply with any direction given in pursuance of any such order, shall be deemed to have contravened the provisions of this Act.

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[1]Subs. by the Preventive Detention Laws (Amendment) Act, 1975 (44 of 1975), s. 3, for "Central Government".

[2]For instance of notification issued under this section, see Gaz. of P., 1954, Pt. I, p. 264; ibid., 1960, Pt. I, p. 534; and ibid., 1960, Ext., p. 1585a.

[3]For the Enemy Foreigners Order, 1965, see Gaz. of P., 1965, Ext., PP. 1019-1023.

[4]For the Foreigners (Parolees) Order, 1965, see Gaz. of P., 1965, Ext. pp. 1027-1029.
For instance of notifications issued under this section, see Gaz. of P. 1965, Ext., p. 1029.

(2) Any person who, the knowing or having reasonable cause to believe that any other person has contravened the provisions of this Act or of any order made or direction given thereunder, gives that other person any assistance with intent thereby to prevent hinder or otherwise interfere with his arrest, trial or punishment for the said contravention shall be deemed to have abetted that contravention.

(3) The master of any vessel or the pilot of any aircraft, as the case may be, by means of which any foreigner enters or leaves [1][Pakistan] in contravention of any order made under, or direction given in pursuance of, section 3 shall, unless he proves that he exercised all due diligence to prevent that said contravention, be deemed to have contravened this Act.

[2][**13A. Prohibition of assisting illegal entry.** No one shall make or carry out arrangements for security or facilitating the entry into to Pakistan of any one whom he knows, or has reasonable cause for believing to be an illegal entrant.

13B. Prohibition to employ an illegal entrant. No one shall knowingly employ or provide employment to a person who has no permission to stay in Pakistan.]

[2][**14. Penalties.**—(1) where any person contravenes any provisions of this Act, or of any order made thereunder, or any direction given in pursuance of this Act or order, he shall, except as otherwise provided herein, be punished with imprisonment for a term which may extend to three years and shall also be liable to fine, and if such person has entered into a bond in pursuance of clause (f) of sub-section (2) of section 3, his bond shall be liable to be forfeited, and any person bound thereby shall be liable to pay the penalty thereof, or show cause to the satisfaction of the convicting court as to why such penalty should not be paid.

(2) Where any person knowingly enters into Pakistan illegally, he shall be guilty of an offence under this Act and shall be punished with imprisonment for a term which may extend to ten years and fine which may extend to ten thousand rupees.]

[2][**14A. Restriction on release on bail.** Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), hereinafter referred to as the Code, any person accused of an offence punishable under sub-section (2) of section 14 shall not be released on bail if there appear reasonable grounds for believing that he has been guilty of such an offence.

14B. Deportation pending trial or undergoing sentence of imprisonment. Notwithstanding anything contained in this Act, the Code or any other law for the time being in force, a foreigner having no permission to stay in Pakistan or for whose deportation arrangements have been made by the Federal Government, may, if his presence in Pakistan is not required in connection with any other case,—

(i) with the consent of the Federal Government, be permitted by the Court trying him for any offence under this Act to depart from Pakistan; or

(ii) under the order of the Federal Government , be permitted to depart from Pakistan while he is undergoing any sentence passed under this Act.

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[1]Subs. by the Adaption (Security Laws) Order, 1956 (P. O. No. 8, of 1956), Art. 2 and Sch. (with effect from 23rd March, 1956), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

[2]Ins. and Subs by Ord. XXV of 2000, ss. 2-4 .

14C. Custody pending deportation. A foreigner, having no permission to stay in Pakistan, who has been convicted and sentenced to imprisonment under this Act shall not be released on the expiry of the sentence and shall continue to remain in custody for a period not exceeding three months to enable arrangements for his deportation to be finalized.

[1][**14D. Registration of illegal immigrants.**—(1) Any foreigner who, before commencement of this Act, has no permission to stay in Pakistan shall for registration be required to make application on the format and in the manner as may be prescribed and shall be registered on that application by the National Database and Registration Authority established under the National Database and Registration Authority Ordinance, 2000 (VIII of 2000).

(2) The Federal Government may permit a foreigner, registered under sub-section (1), to work in Pakistan at such place, for such period and on payment of such fee as may be prescribed.]

15. Protection to persons acting under this Act. No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Act.

16. Application of other laws not barred. The provisions of this Act shall be in addition to, and not in derogation of, the provisions of the Registration of Foreigners Act, 1939 (XVI of 1939) the [2][Passport Act, 1974 (XX of 1974)], and of any other enactment for the time being in force.

[1][**17. Repeals.**—(1) The Alien Registration Authority (Composition and Functions) Order, 2001 is hereby repealed.

(2) On repeal under sub-section (1), all assets and liabilities of the Alien registration Authority shall stand transferred to the National Database and Registration Authority and shall be regulated under the National Database and Registration Authority Ordinance, 2000 (VIII of 2000).]

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[1]Subs. and added by Act No. XX of 2016, s. 2 and 3.

[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II, for "Passport Act, 1920".

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THE GENERAL CLAUSES ACT, 1897

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THE GENERAL CLAUSES ACT, 1897

[1]Act No. X OF 1897

[11th March, 1897]

An Act to consolidate and extend the General Clauses Acts, 1868 and 1887.

WHEREAS it is expedient to consolidate and extend the General Clauses Acts, 1868 (I of 1868) and 1887 (I of 1887); it is hereby enacted as follows: —

PRELIMINARY

1. Short title.—(1) This Act may be called the General Clauses Act, 1897;

[2][* * * * * * *]

2. *[Repeal.].Rep. by the Repealing and Amending Act,* 1903 *(I of* 1903), *s.* 4 *and Schedule III.*

GENERAL DEFINITIONS

3. Definitions. In this Act, and in all [3][Central Acts] and Regulations made the commencement of this Act, unless there is anything repugnant in the subject or context,—

(1) **"Abet."** "abet", with its grammatical variations and cognate expressions, shall have the same meaning as in the Pakistan Penal Code (Act XLV of 1860).

[4][* * * * * * *]

(2) "**Act."** "act", used with reference to an offence or a civil wrong, shall include a series of acts, and words which refer to acts done extend also to illegal omissions:

(3) **"Affidavit."** "affidavit" shall include affirmation and declaration in the case of persons by law allowed to affirm or declare instead of swearing:

[5][* * * * * * *]

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1897, Pt. V, p. 38; for Report of the Select Committee, *see ibid.*, p. 77 ; and for Proceedings in Council, see *ibid.* Pt. VI, pp. 35, 40, 56 and 76.
This Act has been declared to be in force in Baluchistan by the British Baluchistan Laws Regulation, 1913 (2 of 1913).
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; and also extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O.3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499.
The Act has been extended to the whole of Pakistan and shall be deemed to have been so extended on the 14th day of October, 1955, *see* the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and Second Sch.
The provisions of this Act have been extended to the Special Areas of West Pakistan by West Pakistan Regulation No.1 of 1961 *(with effect .from the 13th September,* 1961).
[2]The word "and" in sub-section (1) and the whole of sub-section (2) rep. by the Repealing & and Amending Act. 1914 (10 of 1914), s. 3 and Sch. II.
[3]Subs. by .A. 0. 1937. for "Acts of the G.G. in C.".
[4]C1. (1a) as amended by A. 0., 1949, Sch., has been omitted by the Federal Laws (Revision and Declaration), Ordinance, 1981 (27 of 1981) s. 3 and 2nd Sch.
[5]Cls. *(3a)* and *(3b)* as amended by Act 10 of 1914, s. 2 and Sch. I, Act 24 of 1917, s. 2 and Sch. I, Act 18 of 1928, s. 2 and Sch. I, A.O., 1937, and Ord. 21 of 1960, s. 3 and 2nd Sch. *(w.e.f. 14th October,* 1955), has been omitted by Ord. 27 of 1981, s. 3 and 2nd Sch.

(3c) **"Baluchistan."** "Baluchistan" shall mean the territories comprised in the Chief Commissioner's Province of Baluchistan immediately before the fourteenth day of October, 1955 [1][,] [1][and after the first day of July, 1970, the Province of Baluchistan, comprising the territories mentioned in the Schedule to the Province of West Pakistan (Dissolution) Order, 1970:]

[2][* * * * * * *]

(4) **"Barrister."** "barrister" shall mean a barrister of England or Ireland, or a member of the Faculty of Advocates in Scotland:

[3][* * * * * * *]

[4][* * * * * * *]

[5][* * * * * * *]

[6][* * * * * * *]

[7][* * * * * * *]

[8][(7) **"British India."** "British India" shall mean, as respects the period before the [9]commencement of Part III of the Government of India Act, 1935 (26 Geo.5.2.), all territories and places within His Majesty's dominions which were for the time being governed by His Majesty through the Governor General of India or through any Governor or officer subordinate to the Governor General of India, and as respects any period after that date [10][and before the establishment of the Federation of Pakistan] means all territories for the time being comprised within the Governors' Provinces and the Chief Commissioners' Provinces, except that a reference to British India in an Indian law passed or made before the [9]commencement of Part III of the Government of India Act, 1935 (26 Geo.5.2.), shall not include a reference to Berar:]

(8) **"British possession."** "British possession" shall mean any part of Her Majesty's dominions, exclusive of the United Kingdom, and, where parts of those dominions are under both a central and a local legislature, all parts under the Central Legislature shall, for the purposes of this definition, be deemed to be one British possession:

[11][* * * * * * *]

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[1]Subs.and added by F. A. 0., 1975, Art. 2 and Sch.
[2]El. (3d) omitted by Ord. 27 of 1981, s. 3 and Sch. II.
[3]*C1.* (5) as amended by Act 10 of1914, s. 2 and Sch. I and Act 24 of 1917, s. 2 and Sch. I, has been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981, (27 of 1981) s. 3 and 2nd Sch.
[4]C1. (5a) relating to "Berar", which was ins. by A.O., 1937, rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and 2nd Sch.
[5]Cl. (5b) relating to "Bihar and Orissa Act", which was first ins. as c1. (5a) by the Repealing and Amending Act, 1914 (10 of 1914), s. 2 and Sch. I and then re-numbered as c1. (5b) by A. 0., 1937, rep. by the Federal Laws (Revision and Declaration) Act, 1951, (26 of 1951), s. 3 and 2nd Sch.
[6]CI. (5c) which was ins. by A. 0., 1937, rep. by Act. 26 of 1951, s. 3 and 2nd Sch.
[7]CI. (6) as amended by various enactments has been omitted by the Federal Laws (Revision and Declarations) Ordinance, 1981, (27 of 1981), s. 3 and 2nd Sch.
[8]Subs. by A.O., 1937, for the original clause (7).
[9]*I.e.*, the 1st April, 1937.
[10]Ins. by the Pakistan (Adaptation of Existing Pakistan Laws) Order, 1947 (G. G. O. 20 of 1947).
[11]Cl. (8a) relating to "Burma Act" which was ins. by the Amending Act, 1903 (1 of 1903), s. 3 and Sch. II, rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of1951), s. 3 and 2nd Sch.

[1][(8aa) **"Central Act."** "Central Act" shall mean an Act of the Central lagislature, and shall include, except in section 5, an Act made by the Governor General under section 67 B of the Government of India Act, [2][* * *:]

[3][(8ab) **"Federal Government."** " [4][Federal Government]" shall—

(a) in relation to anything done before the [5]commencement of Part III of the Government of India Act, 1935 (26 Geo.5.2.), mean the Governor General in Council or the authority competent at the relevant date to exercise the functions corresponding to those subsequently exercised by the Governor General;

(b) in relation to anything done after the [5]commencement of Part III of the said Act, but before the establishment of the Federation of Pakistan, mean, as respects matters with respect to which the Governor General was by or under the provisions of the said Act then in force required to act in his discretion, the Governor General and as respects other matters, the Governor General in Council; [6][*]

(c) in relation to anything done [7][* * *] after the establishment of the Federation of Pakistan [8][but before the twenty-third day of March, 1956], mean the Governor General; and shall include—

(i) in relation to functions entrusted under sub-section (1) of section 124 of the said Act to the Government of a Province, the Provincial Government acting within the scope of the authority given to it under that sub-section; and

(ii) in relation to the administration [9][before the fourteenth day of October, 1955,] of a Chief Commissioner's Province, the Chief Commissioner acting within the scope of the authority given to him under sub section (3) of section 94 of the said Act [10][;] [11] *

[1]Ins. by A. 0., 1937.
[2]The words and figures "or section 44 of the Government of India Act, 1935" omitted by the Pakistan (Adaptation of Existing PakistanLaws) Order, 1947 (G. G. O. 20 of 1947).
[3]Subs. *ibid.*, for clause (8ab), which had been ins. by A. 0., 1937.
[4]Subs. by F.A.O. , 1975 for Art. 2 and Table for, "Central Government"
[5]i.e., the 1st April, 1937
[6]The word "and" omitted by A. 0., 1961, Art. 2 and Sch. *(with effect from the 23rd March,* 1956).
[7]The words "or to be done" omitted *ibid. (with effect from the 23rd March,* 1956).
[8]Ins. *ibid. (with effect from the 23rd March,* 1956).
[9]Ins. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and Second Sch. *(with effect from the 14th October,* 1955).
[10]Sub,. by A. 0.,1961, Art. 2 and Sch., for the full stop *(with effect from the 23rd March,* 1956).
[11]Omitted, subs. and added by F.A.O., 1975, Art. 2 and Sch.

[1][(d) in relation to anything done or to be done, after the twenty-third day of March, 1956, mean the President; and shall inc1ude in relation to functions entrusted to the Government of a Province, the Provincial Government acting within the scope of the authority given to it by the President [2][; and]]

[2][(e) in relation to anything done or to be done, after the fourteenth day of August, 1973, mean the Prime Minister and the Federal Ministers; and shall include in relation to functions entrusted to the Government of a Province, the Provincial Government acting within the scope of the authority given to or power conferred on it by the Federal Government;]

[3][(8ac) **"Central Legislature."** "Central Legislature" shall mean the Governor General in Council acting in a legislative capacity under the Government of India Act, 1833 (3&4, will.4), the Government of India Act, 1853(c. 85 16&17 vict.), The Indian Councils Act, 1861 to 1909 (c. 95.&6.), or any of those Acts, or the Government of India Act, 1915(Geo.5,c.61,26), the Indian Legislature acting under the Government of India Act, or the Government of India Act, 1935 (Geo.5,c.2), or the Federal Legislature acting under the Government of India Act, 1935, [4][or the Parliament acting under the Constitution [5][of 1956 or the Central Legislature acting under the Constitution of 1962] [6][or the Federal Legislature acting under the Interim Constitution of 1972, or Parliament acting under the Constitution of 1973] as the case may require :]

[7][* * * * * *]

[8][* * * * * *]

(9) **"Chapter."** "Chapter" shall mean a Chapter of the Act or Regulation in which the word occurs:

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[1]Subs.-clause (d) ins. by A.O., 1961, Art. 2 and Sch. *(with effect from the 23rd March,* 1956).
[2]Subs and Added by F.A.O., 1975, Art.2 and Sch.
[3]CI. (8ac) ins. by A. 0., 1937.
[4]Certain words ins, by A. 0.,1961, Art. 2 and Sch. *(with effect from the 23rd March,* 1956).
[5]Ins. by A. 0., 1964, Art. 2 and Sch.
[6]Ins. by F. A. 0., 1975, Art. 2 and Sch.
[7]Cl. (8b) relating to "Central Provinces Act" which was ins. by the Second Repealing and Amending Act, 1914 (17 of 1914), s. 2 and Sch. I, rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and 2nd Sch.
[8]CI. (8c) relating to "Central Provinces and Berar Act", which was ins. by A. 0.,1937, rep. by Act 26 of 1951, s. 3, and II Sch.

[1][(9a) **"Chief Revenue Authority."** "Chief Revenue Authority" shall mean the Board of Revenue of a Province:]

[2][(10) **"District Officer (Revenue)."** shall means the chief officer in charge of revenue administration of a District:]

[3][* * * * * * *]

(12) **"Commencement."** "commencement", used with reference to an Act or Regulation, shall [4]mean the day on which the Act or Regulation comes into force:

[5][* * * * * * *]

[6][(13a) **"Constitution."** "Constitution" means the Constitution of the Islamic Republic of Pakistan brought into force on the [3][fourteenth day of August, 1973] :]

[8][(14) **"Consular Officer."** "Consular officer" shall include consul-general, consul, vice-consul, consular agent pro-consul and any person for the time being authorized to perform the duties of consul-general, consul, vice-consul or consular agent:]

[9][* * * * * * *]

(15) **"District Judge."** "District Judge" shall mean the Judge of a principal Civil Court of original jurisdiction, but shall not include a High Court in the exercise of its ordinary or extraordinary original civil jurisdiction:

(16) **"Document."** "document" shall include any matter written, expressed or described upon any substance by means of letters, figures or marks, or by more than one of those means which is intended to be used, or which may be used, for the purpose of recording that matter:

[10][* * * * * * *]

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[1]Subs. by A. 0., 1964, Art. 2 and Sch., for (9a), which was first ins. by A. 0., 1937 and subsequently amended by the Pakistan (Adaptation of Existing Pakistan Laws) Order, 1947 (G.G.O. 20 of 1947), Act 26 of 1951, s.3 and 2nd Sch., the Central Laws (Statute Reform) Ordinance,1960 (21 of 1960), s. 3 and 2nd Sch., A. 0.,1961, Art. 2 and sch; and the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch.

[2]Subs. by The General Clauses (Amdt.) Ordinance, 2001(Ord. No. XXXVI of 2001), s. 2. Except in Islamabad Capital territory where it shall come into force on such date as the Federal Government may, by notification in the official Gazette, Specify. Ord. 36 of 2001, s. 2 (w.e.f. 14-08-2001).

[3]Clause (11) relating to "colony", which was amended by various enactments have been omitted by Federal Laws (Revision and Declaration) Ordinance, 1981, (27 of 1981) s. 3 and 2nd Sch.

[4]See section 5 on page 458, *infra*.

[5]Omitted by The General Clauses (Amdt.) Ordinance, 2001(Ord. No. XXXVI of 2001), s.2 (w.e.f 14-08-01).

[6]Cl. (13a) ins. by A.0., 1961, Art. 2 and Sch. *(with effect from the 23rd March,* 1956).

[7]Subs. by F.A.0, 1975, Art. 2 and Sch., for "eighth day of June, 1962" which was previously subs. by A.0., 1964, Art. 2 and Sch.,for "twenty third day of March, 1956", to read as above.

[8]*Cf.* the Consular Salaries and Fees Act, 1891 (54 & 55 Vict., c. 36), s.3.

[9]*Cls.* (l4a) (14b) (l4c), (14d), (14e), (14f) and (14g), which were first ins. by A.0., 1937, and then amended by the Pakistan (Adaptation of Existing Pakistan Laws) Order, 1947 (G. G. O. 20 of 1947), Sch., omitted by A.0., 1961 Art. 2 and Sch. *(with effect from the 23rd March,* 1956).

[10]Clauses (16a), (16b) and (16c) which were ins. by Act 10 of 1914, G.G.O. 20 of 1947 and A.0., 1961 respectively, have been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 981), s.3. and 2nd Sch.

(17) **"Enactment."** "enactment" shall include a Regulation (as hereinafter defined) and any Regulation of the Bengal, [1][*] or Bombay Code, and shall also include any provision contained in any Act or in any such Regulation as aforesaid:

(18) **"Father."** "father ", in the case of anyone whose- personal law permits adoption, shall include an adoptive father:

[2][* * * * * * *]

[3][(19) **"Financial year."** "financial year" means—

(a) as respects the period before the first day of April, 1959, the year commencing on the first day of April and ending on the thirty first day of March;

(b) as respects the period from the first day of April, 1959, to the thirtieth day of June, 1959, both days inclusive, that period ; and

(c) thereafter, the year commencing on the first day of July and ending on the thirtieth day of June :]

[4](20) **"Good faith."** a thing shall be deemed to be done in "good faith" where it is in fact done honestly, whether it is done negligently or not:

[5][(21) **"Government."** "Government" or "the Government" shall include both the [6][Federal Government] and any Provincial Government:]

[7][* * * * * * *]

(25) **"Immoveable property."** "immoveable property" shall include land, benefits to arise out of land, and things attached to the earth, or permanently fastened to anything attached to the earth:

(26) **"Imprisonment."** "imprisonment" shall mean imprisonment of either description as defined in the Pakistan Penal Code (Act XLV of 1860):

[8][(27) **"India."** "India" shall mean—

(a) as respects any period before the establishment of the Federation of Pakistan, British India together with all territories of any Indian ruler then under the suzerainty of His Majesty, all territories under the suzerainty of such an Indian ruler, and the tribal areas; and

(b) as respects any period after the establishment of the Federation of Pakistan all territories for the time being included in the Dominion of India [9][or the Union of India] :]

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[1]The word "Madras" omitted by G.G.O. 20 *of* 1947, Sch.
[2]Clauses (18a) and (18b) relating to "Federal Government," and "Federal Railway Authority" respectively omitted *ibid.*
[3]Subs. by the General Clauses (Amdt.) Ordinance, 1959 (14 of 1959), [section 2, for the original clause 19.
[4]*Cf.* the Pakistan Penal Code (Act 45 of 1860), s. 52, the Bills of Exchange Act. 1882 (45 & 46 Vict., c. 61), s. 90, and the Sale of Goods Act,1893 (56 & 57 Viet., c. 71, s. 62). For discussion in Council regarding this clause, *see* Gazette of India, 1897, Part VI, pp. 56 to 62 and 76 to 79.
[5]Subs. by A.O., 1937, for the original definition.
[6]Subs. by F.A.0.,1975, Art. 2 and Table, for "Central Government".
[7]Cl. (21a) to (24) previously amended by various enactments have been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981) s. 3 and 2nd Sch.
[8]Subs. by G.G.O. 20 of 1947, Sch., for clause (27) which had been subs. for the original clause by A. 0., 1937.
[9]Ins. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and Second Sch. *(with effect from the 14th October*, 1955).

[1][* * * * * * *]

[2][* * * * * * *]

(28) **"Local authority."** "local authority" shall mean a municipal committee, district board, body of port commissioners or other authority legally entitled to, or entrusted by the Government with, the control or management of a municipal or local fund:

[3][* * * * * * *]

(31) **"Magistrate."** "Magistrate" shall include every person exercising all or any of the powers of a Magistrate under the Code of Criminal Procedure for the time being in force:

(32) **"Master" (of a ship).** "master", used with reference to a ship, shall mean any person (except a pilot or harbour-master) having for the time being control or charge of the ship:

(33) **"Month."** "month" shall mean a month reckoned according to the British calendar:

(34) **"Moveable property."** "moveable property" shall mean property of every description, except immoveable property:

[4][(34a1) **"North-West Frontier."** "North-West Frontier" shall mean the territories comprised in the North-West Frontier Province immediately before the fourteenth day of October, 1955 [5][,]] [5][and on or after the first-day of July, 1970, the North West Frontier Province comprising the territories mentioned in the Schedule to the Province of West-Pakistan (Dissolution) Order, 1970:]

[6][(34a) **"North-West Frontier Province Act."** "North-West Frontier Province Act" shall mean an Act made by the local Legislature or the Governor of the North-West Frontier Province under the Government of India Act, or by the Provincial Legislature or the Governor of the North-West Frontier Province under the Government of India Act, (26 Geo.5, c.2.), 1935:]

[7][* * * * * * *]

(36) **"Oath."** "oath" shall include affirmation and declaration in the case of persons by law allowed *to* affirm *or* declare instead of swearing:

(37) **"Offence."** "offence" shall mean any act or omission made punishable by any law for the time being in force:

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[1]CI. (27a) relating to "Indian Law", which was ins. by A. 0., 1937, omitted by the Pakistan (Adaptation of Existing Pakistan Laws) Order, 1947 (G.G.O. 20 of 1947).

[2]Clauses (27b) and (27c) previously amended by various enactments have been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.

[3]CI. (29) defining "L. G.", rep. by A.O., 1937 and cl. (30) defining "Madras Act" rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and 2nd Sch.

[4]CI, (34a1). ins. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October*, 1955).

[5]Subs. and added by F.A.O., 1975, Art. 2 and Sch.

[6]Ins. by A.0., 1937.

[7]Clause (35) defining "North-Western Provinces and Oudh Act" rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and 2nd Sch.

[1][(37a) **"Official Gazette."** "official Gazette" or "Gazette" shall mean the Gazette of [2][Pakistan], or, as the case may be, the official gazette of a Province:]

[3][(37b) **"Pakistan Law."** "Pakistan law" shall mean any Act, Ordinance, Regulation, rule, order, bye-law or any other instrument which has or had the force of law in Pakistan or any part thereof; but does not include an Act of Parliament of the United Kingdom or any Order-in-Council, rule or other instrument made thereunder;]

[4][* * * * * * *]

(38) **"Part."** "Part" shall mean a Part of the Act or Regulation in which the word occurs:

(39) **"Person."** "person" shall include any company or association or body of individuals, whether incorporated or not:

[5][(40) **"Political Agent."** "Political Agent" shall,—

(a) as respects the period before the fourteenth day of October, 1955, mean the principal officer by what-ever name called representing the [6][Federal Government] in an Acceding State or group of Acceding States or in any territory or place in the Tribal Areas [7][and as respects the period after the twenty first day of April, 1972, mean the principal officer by whatever name called representing the Federal Government in the Federally Administered Tribal Areas]; and

(b) as respects the period after the thirteenth-day of October, 1955, [8][and before the twenty- first day of April, 1972,] mean the principal officer by whatever name called (i) representing the [9][Federal Government] in an Acceding State or (ii) representing the Provincial Government in the [10][Tribal Areas] [8] [and as respects the period after the twenty-first day of April, 1972, mean the principal officer by whatever name called representing the Federal Government in the Federally Administered Tribal Areas and the Provincial Government in the Provincially Administered tribal Areas] :]

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[1]Ins. by A. O., 1937.
[2]Subs. by the Pakistan (Adaptation of Existing Pakistan Laws) Order, 1947 (G.G.O. 20 of 1947), Sch., for "India".
[3]Clause (37b) which was originally ins. by G.G.O. 20 of 1947 and subsequently Subs. by A. 0.,1961, Art. 2 and Sch. have been subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.
[4]Cl. (37b) relating *to* "Orrisa Act" omitted by the General Clauses (Arndt.) Act, 1951 (27 of 1951), s. 2 *(with effect from the 14th August,* 1947).
[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October,* 1955), for clause (40), which was ins. by A.O., 1949, Sch. [The original clause (40) as amended by A. 0., 1937, had been omitted by the Pakistan (Adaptation of Existing Pakistan Laws) Order, 1947 (G.G.O. 20 of 1947), Sch.]
[6]Subs. by F.A.O., 1975, *Art.* 2 and Table, for "Central Government".
[7]Subs. *ibid.*, Art. 2 and Sch., *for* "or 1eased areas".
[8]Ins. by F.A.O., 1975, Art. 2 and Sch.
[9]Subs. ibid, Art. 2 and Table, *for* "Central Government".
[10]Subs. by A. 0., 1964, Art. 2 and Sch., for "Special Areas".

[1][* * * * * * *]

[2][* * * * * * *]

[3][(43ai) **"Provincial Act."** "Provincial Act" shall mean an Act made by the Governor in Council, or Chief Commissioner in Council, Lieutenant-Governor in Council, or Chief Commissioner in Council of a Province under any of the Indian Councils Acts or the Government of India Act, 1915 or an Act made by the local Legislature or the Governor of a Province under the Government of India Act, or an Act made by the Provincial Legislature or Governor of a Province under the Government of India Act, 1935 (26 Geo. 5,c.2), or an Act made by the Provincial Legislature established or continued under the Constitution [4][of 1956 or an Act made by the Provincial Legislature established under the Constitution of 1962] [7][or an Act passed by a Provincial Assembly established under the Interim Constitution of 1972, or the Constitution of 1973] :]

*[5][(43a) **"Provincial Government".** "Provincial Government"—

[6][(a) as respects anything done after the establishment of the Federation of Pakistan but before the fourteenth day of October, 1955, shall mean in a Governor's Province, the Governor, and in a Chief Commissioner's Province, the [8][Federal Government] ;

(aa) as respects anything done or to be done after the thirteenth day of October, 1955, shall mean the Governor, and where the administration of any area [9][vested in the Governor General or vests in the President],the [10][Federal Government];]

[11][(aaa) as respects any thing done or to be done after the fourteenth day of August, 1973, shall mean the Chief Ministers and the Provincial Ministers and shall include, in relation to functions entrusted to the Federal Government, the Federal Government acting within tile scope of authority given to it by the Provincial Government] ;

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[12][(aaaa) as respects anything done or to be done after the thirtieth day of June, 1970, in relation to the Islamabad Capital Territory under any law coming into force after that day, shall mean the Federal Government;]

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[1]CI. (41) defining "Presidency town" omitted by G.G.O. 20 of 1947 Sch.
[2]Clauses (42) and (43) which were amended by A. 0., 1937, Ord. 21 of 1960, A. 0., 1961, have been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), S. 3 and 2nd Sch.
[3]Ins. by A. 0., 1961, Art. 2 and Sch. *(with effect from the 23rd March,*1956).
[4]Ins. by A. 0., 1964, Art. 2 and Sch.
[5]Subs. by the Pakistan (Adaptation of Existing Pakistan Laws) Order, 1947 (G.G.0. 20 of 1947), Sch., for the. clause (43a), which was ins. by A. 0., 1937.
[6]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch., for sub-clause (a) *(with effect from the 14th October. 1955)*
*The Chief Administrator to be Provincial Government in respect Islamabad Capital Territory, Please see S.R.O 1316 (I)/80, dated 31-12-1980, read with P.O. 18 of 1980.
[7]Ins.by F.A.O, 1975, Art.2 and Sch.
[8]Subs.ibid, Art.2 and Table, for "Central Government".
[9]Subs. by A.O., 1961, Art. 2 and Sch., *for "*vests in the Governor General" *(with effect from* the *23rd March,* 1956).
[10]Subs. by F.A.O., 1975, Art. 2 and Table, *for "*Central Government ".
[11]Ins. ibid., Art. 2 and Sch.
[12]Ins. by the General Clauses (Amdt.) Ord., 1979 (32 of 1979), s. 2.

(b) as respects anything done before the establishment of the Federation of Pakistan, but after the [1][commencement of Part III of the Government of India Act, 1935 (26 Geo. 5,c.2), shall mean in a Governor's Province, the Governor acting or not acting in his discretion, and exercising or not exercising his individual judgment, according to the provision in that behalf made by and under the said Act, and in a Chief Commissioner's Province, the [4][Federal Government] ; and

(c) as respects anything done before the commencement of Part III of the said Act, shall mean the authority or person authorized at the relevant date to administer executive government in the Province in question:]

(44) **"Public nuisance."** "public nuisance" shall mean a public nuisance as defined in the Pakistan Penal Code (Act XLV of 1860).

[2][* * * * * * *]

(45) **"Registered."** "registered", used with reference to a document, shall mean registered in [3][a Province] under the law for the time being in force for the registration of documents:

(46) **"Regulation."** "Regulation" shall mean a Regulation made [5][by the [6][Federal Government] under the Government of India Act, 1870, [7][or the Government of India Act, 1915,] [8][or the Government of India Act,] [5][or under section 95 or section 96 of the Government of India Act, 1935] [9][or by the Governor under Article 103 or Article 104 of the Constitution. of 1956, or by the President or by the Governor under Article 223 of the Constitution of 1962] [10][,][10][or by the President or by the Governor under Article 247 of the Constitution of 1973:]

(47) **"Rule."** "rule" shall mean a rule made in exercise of a power"] conferred by any enactment, and shall include a regulation made as a rule under any enactment:

(48) **"Schedule."** "schedule" shall mean a schedule to the Act or Regulation in which the word occurs:

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[1]*I.e.*, the 1st April, 1937.
[2]C1s. (44al) and (44a) which were amended by various enactments have been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981, (27 of 1981), s. 3 and 2nd Sch.
[3]Subs. by the Pakistan (Adaptation of Existing Pakistan Laws) Order, 1947 (G.G.O. 20 of 1947), Sch., for "British India".
[4]Subs.by F.A.O,1975, Art 2 and Table for "Central Government"
[5]Ins. by A.0., 1937.
[6]Subs. by F.A.O., 1975 Art. 2 and Table, for "Central Government".
[7]Added by the Repealing and Amending Act, 1917 (24 of 1917), s. 2 and Sch. I.
[8]Ins., by Act 18 of 1928, s. 2 and Sch. I.
[9]Ins. by A. 0., 1964, Art. 2 and Sch.
[10]Subs. and added by F.A.O., 1975 Art. 2 and Sch.

[1][(49) **"Scheduled District."** "Scheduled District" shall mean a "Scheduled District" as defined in the Scheduled Districts Act, 1874 (XV of 1874):

(50) **"Section."** "section" shall mean a section of the Act or Regulation in which the word occurs:

(51) **"Ship."** "ship" shall include every description of vessel sed in navigation not exclusively propelled by oars:

(52) **"Sign."** "sign", with its grammatical variations and cognate expressions, shall, with reference to a person who is unable to write his name, include "mark", with its grammatical variations and cognate expressions:

[2][* * * * * * *]

(53) **"Son."** "son", in the case of any one whose personal law permits adoption, shall include an adopted son:

[3][* * * * * * *]

(54) **"Sub-section."** "sub-section" shall mean a sub-section of the section in which the word occurs:

[4][* * * * * * *]

(55) **"Swear."** "swear", with its grammatical variations and cognate expressions, shall include affirming and declaring in the case of persons by law allowed to affirm or declare instead of swearing:

[5][(55a) **"Tribal Areas."** "Tribal Areas" shall

(i) as respects the period after the first day of July, 1970 mean the areas in Pakistan which immediately before that day were the Tribal Area and include—

(a) the Tribal Areas of Baluchistan and the North-West Frontier Province; and

(b) the former States of Amb, Chitral, Dir and Swat;

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[1]This clause was first amended by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October*, 1955) and then revived, retrospectively by the Repealing and Amending Ordinance, 1961 (l of 1961), s. 3 and 2nd Sch.

[2]Cls. (52al) and (52a) which were ins. by A. 0., 1937 and Ord. 21 of 1960 and amended by F.A.O., 1975, have been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.

[3]Cl. (53a), relating to "Special Areas" which was ins., by Ord. 21 of 1960, s. 3 and 2nd Sch. *(with effect from the* 14*th October*, 1955), has been omitted by A. 0.,1964, Art. 2 and Sch.

[4]Clause (54a), which was ins. by A. 0.,1937 and subs. by A. 0., 1961, have been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981). s. 3 and 2nd Sch.

[5]Clause (55a) defining "United Provinces Act" which was originally ins. by the Amending Act, 1903 (I of 1903), s. 3, Sch. II, repealed by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and 2nd Sch., and again ins by A.O., 1964, Art. 2 and Sch., have been subs. by F.A.O., 1975, Art. 2 and Sch.

(ii) as respects the period on or after the tenth day of January 1964, and before the first day of July, 1970 mean the areas in the Province of West Pakistan which, on the thirteenth day of October, 1955, were—

(a) the Tribal Areas of Baluchistan the Punjab and the North-West Frontier; and

(b) the States of Amb, Chitral, Dir and Swat;

(iii) as respects the period on or after the eight day of June, 1962, and before the tenth day of January, 1964, mean the areas in the Province of West Pakistan which, on the thirteenth day of October, 1955, were—

(a) the Tribal Areas of Baluchistan, the Punjab and the North-West Frontier ; and

(b) the States of Amb, Chitral, Dir and Swat and the area in the Province of East Pakistan known as Chittagong Hill Tract;

(iv) as respects the period on or after the twenty-third day of March, 1956, and before the eight day of June, 1962, mean the areas of the Province of West Pakistan which immediately before the commencement of the Establishment of West Pakistan Act, 1955, were—

(a) the Tribal Areas of Baluchistan, the Punjab and the North-West Frontier; and

(b) the States of Amb, Chitral, Dir and Swat; and

(v) as respects the period before the twenty-third day of March, 1956, mean the areas in Pakistan which immediately before that day were the Tribal Areas and include—

(a) the Tribal Areas of Baluchistan, the Punjab and the North-West Frontier Province; and

(b) the States of Amb, Chitral, Dir and Swat.]

[1](56) **"Vessel".** "vessel" shall include any ship or boat or any other description of vessel used in navigation.

[2][* * * * * * *]

[3](57) **"Will".** "will" shall include a codicil and every writing making a voluntary posthumous disposition of property:

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[1]Cf. s. 742 of the Merchant Shipping Act, 1894 (57 & 58 Vict., c. 60). This definition supplements the definition of ship in clause (51), *supra*. *See* also definition of vessel in s. 48 of the Pakistan Penal Code (Act 45 of 1860), and in s. 3 (4) of the Canal and Drainage Act, 1873 (8 of 1873) and ins. 2 (g) of the Customs Act, 1969 (4 of 1969).

[2]CIs. (56a) and (56aa) which were ins. by G.G.O. 20 of 1947 and Ord. 21 of 1960 respectively, have been omitted by Ord. 27 of 1981, s. 3 and 2nd Sch.

[3]Cf. the definition of "will " in section 2 of the Succession Act, 1925 (39 of 1925).

[1](58) **"Writing."** expressions referring to "writing" shall be construed as including references to printing, lithography, photography and other modes of representing or reproducing words in a visible form: and

(59) **"Year."** "year" shall mean a year reckoned according to the British calendar.

4. Application of foregoing definitions to previous enactments.—(1)The definitions in section 3 of the following words and expressions, that is to say, "affidavit", "barrister", [2][* *] "District Judge", "father", [2][* * *] [3][* * *] [2][* *] "immoveable property", "imprisonment", [2][* *] "Magistrate", "month", "moveable property", "oath", "person", "section", ,"son", "swear", "will" and "year" apply also, unless there is anything repugnant in the subject or context, to all [4][Central Acts] made after the third day of January, 1868, and to all Regulations made on or after the fourteenth day of January, 1887.

(2) The definitions in the said section of the following words .and expressions, that is to say, "abet", "Chapter", "commencement", "financial year", "local authority", "master", "offence", "part", "public nuisance", "registered", "schedule", "ship", "sign", "sub -section" and "writing" apply also, unless there is anything repugnant in the subject or context, to all [5][Central Acts] and Regulations made on or after the fourteenth day of January, 1887.

[6][**4A. Application of certain definitions to all Pakistan Laws. —** [7][(1) The definitions in section 3 of the expressions "British India", "Central Act", "[8][Federal Government", Central Legislature", "Chief Revenue Authority", "Gazette", "High Court", "India", "Official Gazette", "Pakistan law", and "Provincial Government" apply also, unless there is anything repugnant in the subject or context, to all Pakistan laws.].

[9][* * * * * * *]

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[1]Cf. s. 20 of the Interpretation Act, 1889 (52 & 53 Vict., c. 63).
[2]The words "British India", "G. of I.", "High Court" and "L. G." rep. by A.O.,1937.
[3]The words "Her Majesty" or the Queen' rep. *by* the Repealing and Amending Act, 1919 (18 pf 1919), s. 3 and Sch. II.
[4]Subs. by A.O., 1937, for "Acts of the G.G in C.".
[5] Subs. by A.O., 1937, for "Acts of the G. G. in C.".
[6]Ins. *ibid.*
[7]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for sub-section (1), which was pre-viously amended by various enactments.
[8]Subs. by F.A.O., 1975, Art. 2 and Sch., for "Central Government".
[9]Sub-sections (2) and (3) which were amended by various enactments have been omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981) s. 3 and 2nd Sch.

GENERAL RULES OF CONSTRUCTION

5. Coming into operation of enactments.— [1][(1) Where any Central Act is not expressed to come into operation on any particular day, then it shall come into operation on the day on which it receives the assent,—

(a) in the case of a Central Act made before the twenty-third day of March, 1956, of the Governor-General, and

(b) in the case of a Central Act made after that date, of the President.]

[2][* * * * * * *]

(3) Unless the contrary is expressed, a [3][Central Act] or Regulation shall be construed as coming into operation immediately on the expiration of the day preceding its commencement.

[4]**5A.** [*Coming into operation of Governor-General's Act.] Omitted by the Pakistan (Adaptation of Existing Pakistan Laws) Order,* 1947 (*G. G.* O. *20 of* 1947), *Schedule.*

6. Effect of repeal. Where this Act, or any [2][Central Act] or Regulation made after the commencement of this Act, repeals any enactment hitherto made or hereafter to be made, then, unless a different intention appears, the repeal shall not–

(a) revive anything not in force or existing at the time at which the repeal takes effect; or

(b) affect the previous operation of any enactment so repealed or anything duly done or suffered thereunder; or

(c) affect any right, privilege, obligation or liability acquired, accrued or incurred under any enactment so repealed; or

(d) affect any penalty, forfeiture or punishment incurred in respect of any offence committed against any enactment so repealed; or

(e) affect any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid;

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced, and any such penalty, forfeiture or punishment may be imposed as if the repealing Act or Regulation had not been passed.

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[1]Subs. by A. O., 1961, Art. 2 and Sch. *(with effect from the 23rd March,*1956), for the original sub-section (1), as amended by A. O., 1937.
[2]Sub-section (2), which was first subs. by the Repealing and Amending Act, 1917 (24 of 1917), s. 2 and Sch. I, and then amended by A. O., 1937 and the Pakistan (Adaptation of Existing Pakistan Laws) Order, 1947 (G. G.O. 20 of 1947), Sch., omitted by A. O., 1961. Art. 2 and Sch. *(with effect from the 23rd March,*.1956).
[3]Subs. by A. O., 1937. for "Act of the G.G. in C.".
[4]S. 5*A* was ins. by A. O., 1937.

[1][**6A. Repeal of Act making textual amendment in Act or Regulation.** Where any [2][Central Act] or Regulation made after the commencement of this Act repeals any enactment by which the text of any [2][Central Act] or Regulation was amended by the express omission, insertion or substitution of any matter, then, unless a different intention appears, the repeal shall not affect the continuance of any such amendment made by the enactment so repealed and in operation at the time of such repeal.]

[3]**7. Revival of repealed enactments.** (1) In any [2][Central Act] or Regulation made after the commencement of this Act, it shall be necessary, for the purpose of reviving, either wholly or partially, any enactment wholly or partially repealed, expressly to state that purpose.

(2) This section applies also to all [4][Central Acts] made after the third day of January, 1868, and to all Regulations made on or after the fourteenth day of January, 1887.

[5][**8. Construction of references to repealed enactments.—** (1)] [6]Where this Act, or any [2][Central Act] or Regulation made after the commencement of this Act, repeals and re-enacts, with or without modification, any provision of a former enactment, then references in any other enactment or in any instrument to the provision so repealed shall, unless a different intention appears, be construed as references to the provision so re-enacted.

[7][* * * * * * *]

9. Commencement and termination of time.—(1) In any [8][Central Act] or Regulation made after the commencement of this Act, it shall be sufficient, for the purpose of excluding the first in a series of days or any other period of time, to use the word "from", and, for the purpose of including the last in a series of days or any other period of time, to use the word "to".

(2) This section applies also to all [9][Central Acts] made after the third day of January, 1868, and to all Regulations made on or after the fourteenth day of January, 1887.

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[1]Ins. by the General Clauses (Amdt.) Act, 1936 (19 of 1936), s. 2.
[2]Subs. by A. O., 1937, for "Act of the G. G. in C.".
[3]*Cf*, s. 11 of the Interpretation Act, 1889 (52 & 53 Vict., c. 63).
[4]Subs. by A. O.,1937, for "Acts of the G. G. in C.".
[5]The original s. 8 was renumbered as sub-section (1) of that section by the Repealing and Amending Act, 1919(18 of 1919), s. 2 and Sch. I.
[6]*Cf*, s. 38 (1) of the Interpretation Act, 1889 (52 &53 Vict., c. 63).
[7]Sub-section (2) which was ins. by Act 18 of 1919 s. 2 and Sch. I, have been omitted by the Federal Laws (Revision and Declaration) Ordinance,1981 (27 of 1981), s. 3 and 2nd Sch.
[8]Subs. by A. O.,1937, for "Act of the G. G. in C.".
[9]Subs. *ibid.*, for "Acts of the G. G. in C."

10. Computation of time.— (1) Where, by any [3][Central Act] or Regulation made after the commencement of this Act, any act or proceeding is directed or allowed to be done or taken in any Court or office on a certain day or within a prescribed period, then, if the Court or office is closed on that day or the last day of the prescribed period, the act or proceeding shall be considered as done or taken in due time if it is done or taken on the next day afterwards on which the Court or office is open:

Provided that nothing in this section shall apply to any act or proceeding to which the [1][Limitation Act, 1908] (IX of 1908), applies.

(2) This section applies also to all [4][Central Acts] and Regulations made on or alter the fourteenth day of January, 1887.

[2]**11**. **Measurement of distances.** In the measurement of any distance, for the purposes of any [3][Central Act] or Regulation made after the commencement of this Act, that distance shall, unless a different intention appears, be measured in a straight line on a horizontal plane.

12. Duty to be taken prorate in enactments. Where, by any enactment now in force or hereafter to be in force, any duty of customs or excise, or in the nature thereof, is leviable on any given quantity, by weight, measure or value of any goods or merchandize, then a like duty is leviable according to the same rate on any greater or less quantity.

13. Gender and number. In all [4][Central Acts] and Regulations, unless there is anything repugnant in the subject or context,—

(1) words importing the masculine gender shall be taken to include females; and

(2) words in the singular shall include the plural, and *vice versa.*

[5]**13A.** *[References to the Sovereign.] Omitted by A. O.,* 1961, *Art.* 2 *and Sch.* (*with effect from the 23rd March*, 1956).

POWERS AND FUNCTIONARIES

14. Powers conferred to be exercisable from time to time.— (1) Where, by any [6][Central Act] or Regulation made after the commencement of this Act, any power is conferred [7]* * * , then, [8][unless a different intention appears], that power may be exercised from time to time as occasion requires.

(2) This section applies also to all [9] [Central Acts] and Regulations made on or after the fourteenth day of January, 1887.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "Indian Limitation Act, 1877".
[2]*Cf.* s. 34 of the Interpretation Act, 1889(52 & 53 Vict., c. 63).
[3]Subs.by A.O.,1937 for "Act of the G.G. in C".
[4]Subs.ibid., for "Acts of the G.G. in C".
[5]S.13A was ins. by the Repealing and Amending Act, 1919 (18 of 1919), s. 2 and Sch. I, and then amended by A. O., 1937.
[6]Subs. by A. O., 1937, for "Act of the G.G. in C.".
[7]The words " on the Govt." rep. by Act 18 of 1919, s. 2 and Sch. I.
[8]Ins. *ibid.*
[9]Subs. by A. O., 1937, for "Acts of the G. G. in C.".

15. Power to appoint to include power to appoint *ex officio*. Where, by any [3][Central Act] or Regulation, a power to appoint any person to fill any office or execute any function is conferred, then, unless it is otherwise expressly provided, any such appointment, if it is made after the commencement of this Act, may be made either by name or by virtue of office.

16. Power to appoint to include power to suspend or dismiss. Where, by any [3][Central Act] or Regulation, a power to make any appointment is conferred, then, unless a different inten tion appears, the authority having [1][for the time being] power to make the appointment shall also have power to suspend or dismiss any person appointed [2][whether by itself or any other authority] in exercise of that power.

17. Substitution of functionaries.— (1) In any [3][Central Act] or Regulation made after the commencement of this Act, it shall be sufficient, for the purpose of indicating the application of a law to every person or number of persons for the time being executing the functions of an office, to mention the official title of the officer at present executing the functions, or that of the officer by whom the functions are commonly executed. .

(2) This section applies also to all [3][Central Acts] made after the third day of January, 1868, and to all Regulations made on or after the fourteenth day of January, 1887.

18. Successors.— (1) In any [3][Central Act] or Regulation made after the commencement of this Act, it shall be sufficient, for the purpose of indicating the relation of a law to the successors of any functionaries or of corporations having perpetual succession, to express its relation to the functionaries or corporations.

(2) This section applies also to all [3][Central Acts] made after the third day of January, 1868, and to all Regulations made on or after the fourteenth day of January, 1887.

19. Official chiefs and subordinates.—(1) In any [3][Central Act] or Regulation made after the commencement of this Act, it shall be sufficient, for the purpose of expressing that a law relative to the chief or superior of an office shall apply to the deputies or subordinates lawfully performing the duties of that office in the place of their superior, to prescribe the duty of the superior.

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(2) This section applies also to all [3][Central Acts] made after the third day of January, 1868, and to all Regulations made on or after the fourteenth day of January, 1887.

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[1]Ins. by the Repealing and Amending Act, 1928 (18 of 1928), s. 2. and Sch. I.
[2]Subs. *ibid.*, for " by it".
[3]Subs. by A.O., 1937, for "Acts of the G.G. in C".

PROVISIONS AS TO ORDERS, RULES, ETC., MADE UNDER ENACTMENTS.

[1]**20. Construction of orders, etc., issued under enactments.** Where, by any [9][Central Act] or Regulation, a power to issue any [2][notification], order, scheme, rule, form or bye-law is conferred, then expressions used in the [2][notification], order, scheme, rule, form or bye-law, if it is made after the commencement of this Act, shall, unless there is anything repugnant in the subject or context, have the same respective meanings as in the Act or Regulation conferring the power.

[3][**20A. Rules and Order, etc., to be published.—** All rules, Orders, regulations and circulars having the effect of law made or issued under any enactment shall be published in the official Gazette.]

[4]**21. Power to make, to include power to add to, amend, vary or rescind, orders, rules or bye-laws.** Where, by any [9][Central Act] or Regulation, a power to [5][issue notifications], orders, rules, or bye-laws is conferred, then that power includes a power, exercisable in the like manner and subject to the like sanction and conditions (if any), to add to, amend, vary or rescind any [6][notifications], orders, rules or bye-laws so [7][issued].

[8]**22. Making of rules or bye-laws and issuing or orders between passing and commencement of enactment.** Where, by any [9][Central Act] or Regulation which is not to come into force immediately on the passing thereof, a power is conferred to make rules or bye-laws, or to issue orders with respect to the application of the Act or Regulation, or with respect to the establishment of any Court or office or the appointment of any Judge or officer thereunder, or with respect to the person by whom, or the time when, or the place where, or the manner in which, or the fees for which, anything is to be done under the Act or Regulation, then that power may be exercised at any time after the passing of the Act or Regulation; but rules, bye-laws or orders so made or issued shall not take effect till the commencement of the Act or Regulation.

23. Provisions applicable to making of rules or bye-laws after previous publication. Where, by any [10][Central Act] or Regulation, a power to make rules or bye-laws is expressed to be given subject to the condition of the rules or bye-laws being made after previous publication, then the following provisions shall apply, namely:—

(1) the authority having power to make the rules or bye-laws shall, before making them, publish a draft of the proposed rules or bye-laws for the information of persons likely to be affected thereby;

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[1]*Cf.* s. 31 of the Interpretation Act, 1889 (52 & 53 Vict.,.c. 63).
[2]Ins. by the Amending Act, 1903 (1 of 1903), s. 3 and Sch. II.
[3]Ins. by The General Clause (Amdt.) Ordinance, 2002 (Ord. XXXIII of 2002), s. 2.
[4]*Cf.* s. 32 (3) of the Interpretation Act, 1889 (52 & 53 Vict.,c. 63).
[5]Subs. by Act 1 of 1903, s. 3 and Sch. II, for " make".
[6]Ins. *Ibid.*
[7]Subs. *ibid.*, for " made".
[8]*Cf.* s. 37 of the Interpretation Act, 1889 (52 & 53 Viet., c. 63).
[9]Subs.by A.O., 1937, for "Act of the G.G. in C".
[10]Subs. by A. O., 1937, for "Act of the G. G. in C.".

(2) the publication shall be made in such manner as that authority deems to be sufficient, or, if the condition with respect to previous publication so requires, in such manner as the [1][Federal Government] or the [2][Provincial Government] prescribes;

(3) there shall be published with the draft a notice specifying a date on or after which the draft will be taken into consideration;

(4) the authority having power to make the rules or bye-laws, and, where the rules or bye-laws are to be made with the sanction, approval or concurrence of another authority, that authority also, shall consider any objection or suggestion which may be received by the authority having power to make the rules or bye-laws from any person with respect to the draft before the date so specified;

(5) the publication in the [3][official Gazette] of a rule or bye-law purporting to have been made in exercise of a power to make rules or bye-laws after previous publi-cation shall be conclusive proof that the rule or bye-law has been duly made.

24. Continuation, of orders, etc., issued under enactments repealed and re-enacted. Where any [5][Central Act] or Regulation is, after the commencement of this Act, repealed and re-enacted with or without modification, then, unless it is otherwise expressly provided, any [4][appointment, notification], order, scheme, rule, form or bye-law [4][made or] issued under the repealed Act or Regulation, shall, so far as it is not inconsistent with the provisions re-enacted, continue in force, and be deemed to have been [4][made or] issued under the provisions so re-enacted, unless and until it is superseded by any [4][appointment, notification], order, scheme, rule, form or bye-law [4][made or] issued under the provisions so re-enacted [6][and when any [7][Central Act) or Regulation, which, by a notification under [8][any law], has been extended to any local area, has, by a subsequent notification, been withdrawn from and re-extended to such area or any part thereof, the provisions of such Act or Regulation shall be deemed to have been repealed and re-enacted in such area or part within the meaning of this section].

[9]**[24A. Exercise of power under enactments.—**(1) Where, by or under any enactment, a power to make any order or give any direction is conferred on any authority, office or person such power shall be exercised reasonably, fairly, justly and for the advancement of the purposes of the enactment.

[1]The words " Central Government", which were previously subs. by A.O., 1937, for "G. G. in C." have been further subs. by F.A.O., 1975, Art. 2 and Table, to read as above.
[2]Subs. by A. O., 1931, for " L. G.".
[3]Subs. *ibid.*, for " Gazette".
[4]Ins. by the Amending Act, 1903 (I of 1903), s. 3 and Sch.II.
[5]Subs. By A.O., 1937, for "Act of the G.G. in C".
[6]Ins. by the Second Repealing and Amending Act, 1914 (17 of 1914), section 2 and Sch. I.
[7]Subs. by A. O.,1937, for "Act of the G. G. in C.".
[8]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for" section 5 or 5A of the Scheduled Districts Act, 1874, or any like law".
[9]Ins. by the Act of The General Clauses (Amdt.) Act, 1997 (Act No. XI of 1997), s.2.

(2) The authority, office or person making any order or issuing any direction under the powers conferred by or under any enactment shall, so far as necessary or appropriate, give reasons for making the order or, as the case may be, for issuing the direction and shall provide a copy of the order or as the case may be, the direction to the person affected prejudicially.]

MISCELLANEOUS

25. Recovery of fines. Sections 63 to 70 of the Pakistan Penal Code and the [1]provisions of the Code of Criminal Procedure for the time being in force in relation to the issue and the execution of warrants for the levy of fines shall apply to all fines imposed under any Act Regulation, rule or bye-law unless the Act, Regulation, rule or bye-law contains an express provision to the contrary.

26. Provision as to offences punishable under two or more enactments.—Where an act or omission constitutes an offence under two or more enactments, then the offender shall be liable to be prosecuted and punished under either or any of those enactments, but shall not be liable to be punished twice for the same offence.

[2]**27. Meaning of service by post.—**Where any [5][Central Act] or Regulation made after the commencement of this Act authorizes or requires any document to be served by post, whether the expression" "serve" or either of the expressions "give" or "send" or any other expression is used, then, unless a different intention appears, the service shall be deemed to be effected by properly addressing, pre-paying and posting by registered post, a letter containing the document, and, unless the contrary is proved, to have been effected at the time at which the letter would be delivered in the ordinary course of post.

[3]**28. Citation of enactments.—** (1) In any [5][Central Act] or Regulation, and in any rule, bye-law, instrument or document, made under, or with reference to, any such Act or Regulation, any enactment may be cited by reference to the title or short title (if any) conferred thereon or by reference to the number and year thereof, and any provision in an enactment may be cited by reference to the section or sub-section of the enactment in which the prevision is contained.

(2) In this Act and in any [5][Central Act] or Regulation made after the commencement of this Act, a description or citation of a portion of another enactment shall, unless a different intention appears, be construed as including the word, section or other part mentioned or referred to as forming the beginning and as forming the end of the portion comprised in the description or citation.

[5]**29. Saving for previous enactments, rules and bye-laws.** The provisions of this Act respecting the construction of Acts, Regulations, rules or bye-laws made after the commence ment of this Act shall not affect the construction of any Act, Regulation, rule or bye-law made before the commencement of this Act, although the Act, Regulation, rule or bye-law is continued or amended by an Act, Regulation, tule or bye-law made after the commencement of this Act.

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[1]*See* the Code of Criminal Procedure, 1898 (5 of 1898), s. 386 *et, seq.*
[2]*Cf.* the Interpretation Act, 1889 (52 & 53 Viet., c. 63), s. 26.
[3]*Cf. ibid.*, s.35.
[4]Subs. by A.O., 1937. For "Act of the G.G. in C".
[5]*Cf.* the Interpretation Act, 1889 (52 & 53 Vict., c.63), s. 40.

[1][**30. Application of Act to Ordinances.** In this Act the expression "[2][Central Act]" wherever it occurs, except in section 5, and the word "Act" in clauses (9), (12), (38), (48) and (50) of section 3 and in section 25 shall be deemed to include an Ordinance made and promulgated by the [3][Governor General] under section 23 of the Indian Councils Act, 1861 [4][or section 72 of the Government of India Act, 1915] [5][or section 42 [6][* * *] of the Government of India Act, 1935 [7][or an Ordinance made and promulgated by the President on or after the twenty-third day of March, 1956]].] [24&25 Vict., c.67; 5&6 Geo.5, c.61; 26 Geo.5, c.21.]

[7][**31. Application of Act to orders made by the President.** The provisions of this Act shall apply for the interpretation of any Order made by the President on or after the twenty third day of March, 1956, as they apply for the interpretation of a Central Act, as if every such Order were a Central Act.]

[8][* * * * * * *]

THE SCHEDULE.—[ENACTMENTS REPEALED.] *Rep. by the Amending Act, 1903* (*I of 1903), s.* 4 *and Schedule III.*

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[1]Ins. by the Second Repealing and Amending Act, 1914 (17 of 1914),s. 2 and Sch I.
[2]Sub. by A. O., 1937, for "Act of the G. G. in C.".
[3]Subs. and shall be deemed to. have been so. subs. on the twenty-third day of March, 1956, by the Repealing and Amending Ordinance,1965 (10 of 1965), s. 3 and 2nd Sch. for "President" which had been subs. by A. O.,
1961, Art. 2, for the words "Governor General" *(with effect from the 23rd, March,* 1956).
[4]Ins. by the Repealing and Amending Act, 1917 (24 of 1917), s. 2 and Sch. I.
[5]Ins. by A. O., 1937.
[6]The words and figures "or section 43 omitted by the Pakistan (Adaptation of Existing Pakistan Laws) Order, 1947 (G. G. O. 20 of 1947), Sch.
[7]Added by the General Clauses (Second Amdt.) Ordinance, 1959 (37 of 1959), ss. 2 and 3.
[8]Ss. 30A and 31 regarding "Application of Act to Acts made by the Governor General" and "Construction of references to Local Government of a Province " which were ins. by the Repealing and Amending Act, 1923 (11 of 1923), s. 2 and Sch. I and the Repealing and Amending Act, 1920 (31 of 1920), s. 2 and Sch. I, respectively, were rep. by A. O., 1937.

THE GOVERNMENT TENANTS (NORTH-WEST FRONTIER) ACT, 1893

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1. Short title and extent
2. Definition
3. Application of Act
4. Issue of statements of conditions of tenancies
5. Maintenance of registers of tenancies
6. Entry in register and signature thereof on grant of tenancy
7. Effect of signature of entry.
8. Transfer of rights of tenants
9. Sums due in respect to tenancy recoverable as arrears of land revenue

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THE GOVERNMENT TENANTS (NORTH-WEST FRONTIER) ACT, 1893

[1]ACT No. III OF 1893

[3rd February, 1893]

An Act to provide for the grant of Special Tenancies in [2] Government lands in the [3][North-West Frontier [4]*].*

WHEREAS it is expedient to provide for the grant by the Government of special tenancies in [2]* lands in the [3][North-West Frontier [4]*] which are the property of the Government [5]* * *;

It is hereby enacted as follows:

1. Short title and extent. [6][—(1) This Act may be called the Government Tenants (North-West Frontier [4]*) Act, 1893.

(2) It extends to [7]* * * the North-West Frontier [4]*.]

2. Definition. In this Act, unless there is something repugnant in the subject or context, "Deputy Commissioner" includes also any officer appointed by the [8][Provincial Government] to perform all or any of the functions of the Deputy Commissioner under this Act.

3. Application of Act. The [8][Provincial Government] may, by notification in the official Gazette, apply the provisions of this Act to any tract of land which is the property of the [9][Government] [10]* * *.

4. Issue of statements of conditions of tenancies. When this Act has been so applied to any tract, the [8][Provincial Government] may issue a statement or statements of the conditions on which it is willing to grant to tenants lands situate in such tract.

5. Maintenance of registers of tenancies.—(1) When any such statement has been issued for any tract, the Deputy Commissioner shall, in manner hereinafter provided, open and maintain for such tract a register or registers of tenancies granted on the conditions prescribed in such statement.

(2) Every such register shall have prefixed thereto a copy of the statement of conditions to which it relates, and shall be in such form and shall contain such particulars as to the tenancies registered therein as the [11][Provincial Government] may prescribe.

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[1]For Statement of Objects and Reasons, *see* Gaz. of India, 1893, Pt. V, p. 14; for Proceedings in Council, *see* ibid., Pt. VI, pp. 12 and 35.
[2]The word "certain" rep. by Act 14 of 1896, s. 1(1).
[3]Subs. by the Second Repealing and Amending Act, 1914 (17 of 1914), s. 2 and Sch. I, for "Punjab".
[4]The word "Province" omitted by the Central Laws (Statute Refrom) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., (*with effect from the 14th October, 1955),*
[5]The words "and are wholly or partly irrigable from Government canals" rep. by Act 14 of 1896, s, 1 (2).
[6]Subs. by Act 17 of 1914, s. 2 and Sch. I, for the original section 1.
[7]The words "the territories for the time being administered by the Chief Commissioner of" rep. by A.O., 1937,
[8]Subs. *ibid.*, for "L. G.".
[9]Subs. by A. O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), for "Crown" which had been subs. by A. O., 1937, for "Govt.".
[10]The words "and is wholly or partly irrigable from a canal the property of the Government" rep. by Act 14 of 1896, s. 1(3).
[11]Subs. by A.O., 1937, for "L. G.".

6. Entry in register and signature thereof on grant of tenancy. Before a tenancy is granted to any person in any such tract, the prescribed particulars regarding the proposed grant shall be duly entered in the appropriate register, and the entry shall be signed by the proposed tenant and by the Deputy Commissioner.

7. Effect of signature of entry. When any entry in any such register has been so signed as directed in the last foreging section, the person signing the same as proposed tenant and his successors in interest shall, notwithstanding any previous agreement or anything contained in the Punjab Tenancy Act, 1887, (XVI of 1887) or the Hazara Tenancy Regulation, 1887 (Reg. XIII of 1887), or any other enactment now in force, be deemed to have accepted and to hold the lands described in such entry as a tenant from the [1][Government] on the conditions prescribed in the statement prefixed to such register.

8. Transfer of rights of tenants. The rights or interests vested in a tenant by or under this Act shall not be capable of being attached or sold in execution of a decree or order of any Court or in any insolvency proceedings, nor shall they or any of them, without the previous consent in writing of the Financial Commissioner, be transferred or charged by any sale, gift, mortgage or other private contract.

9. Sums due in respect to tenancy recoverable as arrears of land revenue. All sums due to the [1][Government] in respect of a tenancy granted in pursuance of this Act shall be recoverable as if they were arrears of land revenue due from the tenant in respect of such tenancy.

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Date: 05-09-2024

[1]Subs. by A.O. ,1961, Art. 2, (*with effect from the 23rd March, 1956*) , for "Crown", which had been subs. by A.O., 1937, for "Govt.".

THE IMPORT OF GOODS (PRICE EQUALIZATION SURCHARGE) ACT, 1967

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1. Short title, extent and commencement
2. Definitions
3. Levy of price equalization surcharge
3A. Power to authorize repayment of surcharge
4. Determination of highest landed cost
5. Procedure for collection of price equalization surcharge
6. Power to make rules
6A. Power to amend Schedule
7. [Omitted]

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THE IMPORT OF GOODS (PRICE EQUALIZATION SURCHARGE) ACT, 1967

ACT No. III OF 1967

[3rd June, 1967]

An Act to levy an additional duty for equalization of prices of certain imported goods.

Whereas it is expedient to levy an additional duty for equalization of prices of certain goods imported at different prices under different conditions and from different countries and to provide for matters ancillary thereto;

It is hereby enacted as follows: —

1. Short title, extent and commencement. —(1) This Act may be called the Import of Goods (Price Equalization Surcharge) Act, 1967.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. —In this Act, unless there is anything repugnant in the subject or context,—

(a) "highest rate", in relation to any specified goods imported in any shipping period, means the highest rate of landed cost declared in relation to such goods under sub-section (1) of section 4;

(b) "landed cost", in relation to any specified goods, means the aggregate of the c.i.f. value, duties, taxes, fees and other charges payable on or for the import of such goods into Pakistan;

(c) "price equalization surcharge" means the additional duty levied under section 3;

[1][(d) 'shipping period' means the period beginning on the first day of July and ending on the thirtieth day of June or such other period as the Federal Government may, from time to time, by notification in the official Gazette, declare to be a shipping period for the purposes of this Act:

Provided that, in the case of a notification issued under sub-section (I) of section 4 which declares the highest rate of landed cost in relation to any specified goods imported in any shipping period following a date mentioned in the notification, the shipping period shall be deemed to be the period beginning on the date so mentioned and ending on the date specified in any subsequent notification as the beginning of a new shipping period in relation to such goods.]

(e) 'specified goods' means such of the goods specified in the Schedule as the [1][Federal Government] may, by notification in the official Gazette, declare to be the goods which shall be subject to the levy of the price equalization surcharge.

[1]Subs. by Act No. XXIX of 1975, ss. 2-3.

3. Levy of price equalization surcharge.—There shall be levied on the specified goods imported in any shipping period into Pakistan after the 22nd day of April, 1966, or, if the [1][Federal Government] in respect of any specified goods by order so directs, after such later date as may be specified therein, whose rate of landed cost is lower than the highest rate, an additional duty as price equalization surcharge at the rate by which the rate of the landed cost of such goods falls short of the highest rate.

[2]**[3A. Power to authorize repayment of surcharge.**—Subject to such conditions, limitations or restrictions as it may think fit to impose, the [1][Federal Government] may, in such general cases as it may prescribed by rules or in particular cases by special order, authorise the repayment in whole or in part of the price equalisation surcharge paid on the importation of any goods of such classes or descriptions as may be prescribed in the rules or specified in the special order, as the case may be.]

4. Determination of highest landed cost. —(1) The [1][Federal Government] shall determine and, by notification in the official Gazette, declare, in relation to every specified goods imported in any shipping period, the highest rate of landed cost of such goods.

(2) For the purpose of determining the highest rate, every importer of specified goods shall furnish at such time such papers, documents or information relating to the import of such goods, as the [1][Federal Government] may direct.

(3) Whoever fails or neglects to comply with any direction under sub-section (2) shall be deemed to have contravened the provisions of the Imports and Exports (Control) Act, 1950 (XXXIX of 1950), and shall be punishable under section 5 of that Act.

5. Procedure for collection of price equalization surcharge.—Subject to [3][rules made under this Act, if any] the price equalization surcharge shall be collected in the same manner as [4][a duty] payable under the [4][Customs Act, 1969 (IV of 1969)] is collected and the provisions of the [4][said Act] shall, so far as may be, apply to the levy [2][, collection and repayment] of such surcharge.

6. Power to make rules.—(1) The [1][Federal Government] may make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for—

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(a) the [3][*] [2][, collection and repayment] of the price equalization surcharge;

(b) the delivery of goods on the giving of security for payment of such surcharge or on any other conditions;

(c) the manner of payment [2][and repayment] of such surcharge; and

(d) such other matters as may be necessary for carrying out the purposes of this Act.

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[1]Subs. by Act No. XXIX of 1975, s. 2.
[2]Ins. and subs. by the Finance Act No. XI of 1968, s. 12.
[3]Subs. and omitted by Act No. XLIV of 1974, ss. 2-3.
[4]Subs. by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, Sch. II.

[1][**6A. Power to amend Schedule.**—The [2][Federal Government] may, by notification in the official Gazette, make any addition to or omission from the list of goods specified in the Schedule.]

7. [3][Omitted]

SCHEDULE

[4][* * *]

5. Galvanized plain sheets.

6. G.C. Sheets.

7. M.S. Plates.

8. M.S. Sheets.

9. Cement.

[4][* * *]

12. Raw material requirements of the industrial units of the following sectors, namely: —

(a) Steel and non-ferrous casting,

(b) Steel construction,

(c) Electrical equipment,

(d) Diesel engine, and

(e) Tube-well and pumping equipment.

[4][* * *]

[5][15. Synthetic Rubber].

[4][* * *]

[6][18. Sulphur.]

19. [4][* * *]

[7][20. Tallow.]

[4][* * *]

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RGN Date: 29-05-2024

[1]Ins. by the Finance Act No. XI of 1968, s.12.
[2]Subs. by Act No. XXIX of 1975, s.2.
[3]Omitted by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, sch. II.
[4]Omitted by S.R.O. 1033 (I) / 74 dated 8th July, 1974.
[5]Added by S.R.O. 157 (I) 169, see Gaz. of p., 1969, Ext., (Islamabad),p.577.
[6]Added by S.R.O. 198 (I) / 69.
[7]Added by S.R.O. 151 (I)/71, dated 6-5-71, see Gaz. cl.p., 1971, Ext., p.465.

THE INTELLECTUAL PROPERTY ORGANIZATION OF PAKISTAN ACT, 2012

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THE INTELLECTUAL PROPERTY ORGANIZATION OF PAKISTAN ACT, 2012

ACT NO. XXII OF 2012

[6th Dec, 2012]

An Act to provide for the establishment of Intellectual Property Organization of Pakistan

WHEREAS Intellectual Property Rights including copyrights, trade-marks, patents, designs, lay-out, designs of integrated circuits, trade secrets and other intellectual property laws; supported by other laws are powerful tools for economic growth. The protection of these and similar intellectual property rights of the citizens is essential to foster creative thinking, stimulate creativity, provide incentives for technological innovations, and attract investment;

AND WHEREAS it is expedient to establish the Intellectual Property Organization of Pakistan to provide for the institutional arrangement in the state setup for taking up exclusively and comprehensively all subjects and matters relating to intellectual property rights in an integrated manner and for matters connected therewith or incidental thereto;

It is hereby enacted as follows—

1. Short title, extent and commencement.—(1) This Act may be called the Intellectual Property Organization of Pakistan Act, 2012.

(2) It extends to the whole of Pakistan.

(3) It shall come into force with effect from the 28th August, 2012 except the provisions of section 15, 16, 17, 18 and 19 which shall come into force on such date as the Federal Government may, by notification in the official Gazette, appoint.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Board" means the Policy Board constituted under Section 4;

(b) "Chairman" means the Chairman of the Organization appointed under Section 9;

(c) "Code" means the Code of Criminal Procedure, 1898 (Act V of 1898) or Code of Civil Procedure (Act V of 1908), as the case may be;

(d) "Director General" means the Director-General appointed under Section 12;

(e) "employee" means any officer or staff of the Organization excluding a person hired on daily wages or contingent basis;

(f) "Fund" means the fund established under Section 26;

(g) "Intellectual Property" includes a trademark, patent, industrial design, layout-design (topographies) of integrated circuits, copyright and related rights and all other ancillary rights;

(h) "Intellectual Property Laws" means the laws specified in the Schedule;

(i) "Member" means a member of the Board;

(j) "offence" means an offence as defined in Intellectual Property Laws;

(k) "Organization" means the Intellectual Property Organization of Pakistan established under Section 3;

(l) "prescribed" means prescribed by rules;

(m) "rules" means the rules made under this Act;

(n) "regulations" means the regulations made under this Act;

(o) "Secretary" means the Director-General of the Organization;

(p) "Schedule" means the schedules to this Act; and

(q) "Tribunal" means an Intellectual Property Tribunal established under Section 16.

3. Establishment of the Organization.—(1) There shall be established an Organization to be known as Intellectual Property Organization of Pakistan to carry out the purposes of this Act.

(2) The Organization shall be an autonomous body having perpetual succession and a common seal with powers, subject to the provisions of this Act, to hold and dispose of property both movable and immovable and shall by the said name sue and be sued and may enter into contracts, acquire, purchase, take, hold, enjoy, covey, assign, surrender, yield up charge, mortgage, demise, reassign, transfer or otherwise dispose of or deal with, any movable or immovable property of every description or any interest vested in it, upon such terms as it deems fit.

(3) The head office of the Organization shall be in Islamabad. The Organization may establish and close down offices, with approval of the Board, at such places in Pakistan, as it considers appropriate.

4. Policy Board.—(1) The Federal Government shall, by notification in the official Gazette, constitute a Policy Board of the Organization consisting of the Chairman and fourteen other Members as specified in sub-section (2).

(2) The Board shall consist of the following, namely:-

(a) five Member from the public sector who shall be the,—

(i) Secretary to the Government of Pakistan, Cabinet Division, *ex-officio;*

(ii) Secretary to the Government of Pakistan, Interior Division, *ex-officio;*

(iii) Secretary to the Government of Pakistan, Commerce Division, *ex officio*;

(iv) Secretary to the Government of Pakistan, Information and Broadcasting Division, *ex-officio;* and

(v) Chairman, Federal Board of Revenue, *ex-officio*;

(b) five Members to be appointed by the Federal Government from private sector; and

(c) four Members from the provinces, as recommended by the Provincial Governments to be appointed by the Federal Government. Eligibility criteria of these Members shall be specified by the Federal Government, by notification in official Gazette, in consultation with the Chairman.

(3) The Chairman shall be the Chairman of the Board.

(4) The Director-General shall also act as Secretary of the Board.

(5) If any Member specified in clause (a) of sub-section (2) is absent or is unable to attend a meeting of the Board, he may authorize an officer, not below the rank an officer of BPS-20 of his Division.

(6) The Chairman shall, in the event of a tie, have a casting vote.

(7) The Members from private sector shall be appointed by the Federal Government for a term of three years and shall be eligible for re-appointment for a second term of three years.

(8) In case of death, resignation or removal of a Member another person may be appointed as a Member for the term specified at sub-section (7).

(9) No person shall be appointed or continued as a Member if he,—

(a) has been convicted of an offence involving moral turpitude; or

(b) has been or is adjudged insolvent;

(c) is incapable of discharging his duties by reason of physical, psychological or mental unfitness and has been declared so by a registered medical practitioner appointed by the Federal Government; and

(d) deemed incapable of carrying out his responsibilities for any other reason.

5. Powers of the Federal Government.—Notwithstanding anything contained in this section the Federal Government may, by notification in the official Gazette, increase or decrease the number of Members of the Board and issue directions to the Organization.

6. Functions etc., of the Board.—(1) The Board shall be responsible for setting of objectives and policy guidelines of the Organization.

(2) Subject to the provisions of the Act, in particular and without prejudice to the generality of sub-section (1), the Board shall,—

(a) take policy decisions as well as advise the Federal Government on all matters relating to—

(i) developing processes, service structure and propose rules for the services specifically designed to ensure protection of intellectual property laws in Pakistan;

(ii) ensuring implementation of intellectual property rights in Pakistan in coordination with concerned agencies; and

(iii) expressing its opinion in writing on any policy matter referred to it by the Federal Government or the Organization;

(b) consider and approve policies, plans and programmes of the Organization;

(c) consider and approve, with or without modification, any regulations, with respect to implementation of policy decisions proposed to be made by the Organization under this Act;

(d) formulate procedures and necessary framework for utilization of funds generated or acquired through services, donations, investments or grants, etc.;

(e) specify and propose fees, penalties and other charges chargeable by the Organization with the approval of Federal Government for carrying out the purposes of this Act; and

(f) exercise all such powers and perform all such functions as are conferred or assigned to it under this Act.

(3) All policy decisions, including the change in the previously established policy, in respect of all and any matters within the jurisdiction of the Organization shall be made only by the Board.

(4) All policy decisions and directives of the Board shall be published in the official Gazette.

7. Delegation of powers.—The Board may, by general or special order in writing subject to such limitations, restrictions or conditions, delegate all or any of its powers and functions to the Chairman.

8. Meetings of the Board.—(1) The meetings of the Board shall be convened by and under the directions of the Chairman:

Provided that the Federal Government may direct convening of a meeting of the Board at any time, on any matter requiring a decision by the Board.

(2) The Board shall meet as often as may be necessary for the performance of its functions but it shall meet not less than two times in a calendar year.

(3) A simple majority of the total membership shall constitute the quorum for a meeting of the Board. Agenda of the meeting shall be presented only once the quorum is complete. The decision in the Board shall be adopted by simple majority of the Members present and voting.

(4) Subject to the provisions of this Act, the procedure and conduct of business of the Board shall be regulated by the regulations.

(5) No act or proceedings of the Board shall be invalid by reason only of the existence of a vacancy in the constitution of the Board.

(6) In case the Chairman is absent or his office is vacant for any reason, the Secretary Cabinet Division shall chair the meetings of the Board.

9. Chairman.—(1) There shall be a Chairman of the Organization to be appointed by the Federal Government for a term of three years.

(2) The Chairman shall be entitled to such privileges and perquisites as may be prescribed.

(3) The Chairman may resign from his office at any time by notice in writing addressed to the Federal Government.

(4) A vacancy in the Organization caused by the death or resignation of the Chairman shall be filled by the Federal Government within ninety days of the occurrence of such vacancy.

(5) The Chairman may, by general or special order in writing, subject to such limitations, restrictions or conditions, delegate all or any of his powers and functions to the Director-General including the powers delegated to him under Section 7.

10. Privileges and perquisites of the Members.—The Members other than public sector Members shall be entitled to such privileges and perquisites as may be prescribed.

11. Functions and powers of the Chairman.—(1) The Chairman shall preside the meetings of the Board.

(2) The Chairman shall supervise and oversee the Director-General in the performance of his duties and responsibilities under this Act and shall guide and direct him, as deemed necessary.

(3) The Chairman shall exercise all such powers and perform all such functions as are conferred or assigned to him under this Act.

12. Director-General.—(1) There shall be a Director-General of the Organization who shall be appointed by the Federal Government in consultation with the Chairman on such terms and conditions as may be prescribed.

(2) A person shall not be appointed as a Director-General unless he is a Federal Government officer of not below the rank of BPS 21.

(3) The Director-General shall be the functional head of the Organization and shall be responsible for day to day administration of the affairs of the Organization.

(4) The Director-General shall comply with such directions and decisions of the Federal Government, Chairman or the Board issued from time to time.

(5) The Director-General shall assist the Chairman in formulating policy framework to update the Organization and to fulfill obligations of the State on the subject to be presented before the Board for approval.

(6) The Director-General shall be competent in managing the human resource and other resources of the Organization in the light of Act and the decisions of the Federal Government, Chairman and the Board.

13. Powers and functions of the Organization.—The powers and functions of the Organization shall be to,—

(i) administer and coordinate all Government systems for the protection and strengthening of intellectual property laws, rules and regulations made thereunder;

(ii) manage or implement measures and standards on any matter related to or connected with Intellectual Property;

(iii) accredit or certify any person as intellectual property agent;

(iv) levy such charges or fees for services and facilities provided by the Organization and its constituent offices with the approval of Federal Government;

(v) carry out such other works or activities as may be deemed by the Organization to be necessary, with a view to making the best use of the assets of the Organization;

(vi) coordinate, monitor or engage, in conjunction with other authorities, international agencies or organizations, in any study, training or cooperation project related to intellectual property;

(vii) enter into contracts for the supply of goods or services or materials or for the execution of works as may be necessary for the discharge of any of its duties and functions;

(viii) control, manage, supervise, direct and coordinate the working of all intellectual property offices established under intellectual property laws and any other office or registry established under intellectual property laws to be notified by the Federal Government and any other registry or office as prescribed;

(ix) evolve and maintain a system to provide access to public documents and information relating to any intellectual property kept or maintained by the Organization;

(x) advise the Federal Government on policy relating to intellectual property rights;

(xi) plan for development and upgradation of the intellectual property infrastructure and capacity in Pakistan;

(xii) promote education and research in the field of intellectual property;

(xiii) advise the Federal Government regarding the international negotiations in the area of intellectual property;

(xiv) engage in human resource development and training of its officers and staff;

(xv) promote awareness about intellectual property issues in the public and private sector through print and electronic media, etc;

(xvi) liaise and interact with counterpart intellectual property related organizations in other countries for capacity building and exchange of information;

(xvii) propose and initiate intellectual property rights legislation for the protection of intellectual property rights in Pakistan;

(xviii) initiate and monitor the enforcement and protection of intellectual property rights through designated law enforcement agencies of the Government, Federal or Provincial, and collect related data and information;

(xix) initiate and conduct inquires, investigations and proceedings related to offences in the prescribed manner;

(xx) refer matters and complaints, related to offences under the laws specified in the Schedule, to the concerned law enforcement agencies and authorities as may be necessary for the purposes of this Act;

(xxi) advice any person, legal or natural, on any matters related to intellectual property rights including compliance, enforcement and infringement thereof;

(xxii) develop working manuals, references, materials and procedures in order to assist in improving the protection of intellectual property rights;

(xxiii) engage in intellectual property rights advocacy;

(xxiv) coordinate the implementation of foreign-aided technical assistance projects on intellectual property;

(xxv) attend foreign funded international forums, conferences, meetings or training programmes etc., with the approval of Federal Government;

(xxvi) work for ratification of instruments as suited to the best national interest; and

(xxvii) perform and carry out any such other acts, things or functions relating to intellectual property assigned to it by the Board or the Federal Government.

14. Intellectual property rights advocacy.—The Organization shall promote intellectual property through advocacy which, among others, shall include,—

(a) creating awareness and imparting training about intellectual property issues and taking such other actions as may be necessary for the protection of intellectual property rights;

(b) reviewing policy frameworks for intellectual property rights and making suitable recommendations for amendments to other laws that affect intellectual property rights in Pakistan to the Federal Government and Provincial Governments;

(c) holding open hearings on any matter affecting the state of intellectual property rights in Pakistan or affecting the State's commercial activities in this regard and expressing publicly an opinion with respect to the issue;

(d) posting on its website inquiries under review and completed, educational material etc; and

(e) coordinating with trade associations and other related organizations or *fora* for awareness and implementation of the laws mentioned in the schedule.

***15. Trial of offences.**—Notwithstanding anything contained in any other law for the time being in force, an accused shall be tried and prosecuted for an offence in the Tribunal and the case shall be heard from day to day and shall be disposed of within ninety days.

16. Establishment of Intellectual Property Tribunals.—**(1) The Federal Government may, by notification in the official Gazette, establish as many Tribunals as it considers necessary to exercise jurisdiction under this Act, appoint a Presiding Officer for each of such Tribunal and where it establishes more Tribunals than one, it shall specify in the notification the territorial limits within which each of the Tribunal shall exercise its jurisdiction.

*(2) Where more than one Tribunal has been established to exercise jurisdiction in the same territorial limits, the Federal Government shall define the territorial limits of each such Tribunal.

*(3) Where more than one Tribunal has been established in the same or different territorial limits, the High Court may, if it considers it expedient to do so in the interest of justice or for the convenience of the parties or of the witnesses, transfer any case from one Tribunal to another.

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*Came into force on 29th December, 2015 by S.R.O No. 1330(I)/2015.

**Came into force on and from the 2nd December, 2014 by S.R.O No. 1330(I)/2015.

[*](4) A Presiding Officer of the Tribunal shall be appointed by the Federal Government after consultation with the Chief Justice of the High Court concerned in which the Tribunal is established and no person shall be appointed a Presiding Officer of a Tribunal unless he,—

(a) has been a judge of High Court; or

(b) is or has been a District and Sessions Judge; or

(c) is an advocate qualified for an appointment as a Judge of the High Court.

[**](5) A Tribunal shall hold its sitting at such places within its territorial jurisdiction as may be determined by the Federal Government.

[***](6) A Presiding Officer of a Tribunal, not being a District and Sessions Judge, shall be appointed for a term of three years from the date on which he enters upon his office.

[****](7) The salary, allowances and other terms and conditions of service, of a person appointed as a Presiding Officer of a Tribunal shall be as may be determined by the Federal Government.

[*****](8) A person, not being a District and Sessions Judge, appointed as a Presiding Officer of a Tribunal may, by notice in writing under his hand addressed to the Federal Government, resign from his office.

[*****](9) A Presiding Officer shall not be removed or transferred from his office before the completion of term of office without the consultation of the Chief Justice of the High Court concerned.

[*****](10) A Presiding Officer shall be eligible for re-appointment for a similar term and shall cease to hold office on attaining the age of sixty five years or the expiry of term, whichever is earlier.

[*****](11) The Tribunal may, if it so requires, be assisted in technical aspects of intellectual property rights involved in any case by an expert who has experience and expertise in the matters of intellectual property rights.

[*****](12) Remuneration of the expert, and the party or parties by whom the same shall be payable shall be determined by the Tribunal keeping in view the circumstances of each case.

[*****]**17. Powers of the Tribunals.**—(1) Subject to the provisions of the Act, the Tribunal shall,—

(a) in the exercise of its civil jurisdiction, have all the powers vested in a Civil Court under the Code of Civil Procedure, 1908 (Act V of 1908);

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[*]Came into force on and from 8th September, 2015 by S.R.O No. 1330(I)/2015.
[**] Came into force on and from 2nd December, 2014 by S.R.O No. 1330(I)/2015.
[***] Came into force on and from 30th September, 2015 by S.R.O No. 1330(I)/2015
[****]Came into force on and from 30th September, 2015 by S.R.O No. 1330(I)/2015
[*****]Came into force on 29th December, 2015 by S.R.O No. 1330(I)/2015

(b) in the exercise of its criminal jurisdiction, try offences made punishable under this Act and shall, for this purpose have the same powers as are vested in a Court of Sessions under the Code of Criminal Procedure, 1898 (Act V of 1898);

(2) The Tribunal shall in all matters with respect to which the procedure has not been provided for in this Act, follow the procedure laid down in the Code.

(3) All proceedings before the Tribunal shall, be deemed to be judicial proceedings within the meaning or Sections 193 and 228 of the Pakistan Penal Code (Act XLV of 1860).

(4) Subject to sub-section (5), no Court other than a Tribunal shall have or exercise any jurisdiction with respect to any matter to which the jurisdiction of the Tribunal extends under this Act.

(5) Nothing in sub-section (4) shall be deemed to affect any proceedings pending before such Court immediately before the coming into force of this Act.

(6) All suits and proceedings pending in any Court instituted under intellectual property laws shall stand transferred to, and be heard und disposed of by, the Tribunal having jurisdiction under this Act. On transfer of proceedings under this sub-section, the parties shall appear before the Tribunal concerned on the date previously fixed.

(7) In respect of proceedings transferred to the Tribunal under sub-section (6), the Court shall proceed from the stage which the proceedings had reached immediately prior to the transfer and shall not be bound to recall and re-hear any witness and may act on the evidence already recorded or produced before a Court from which the proceedings were transferred.

***18. Jurisdiction of the Tribunals.**—(1) All suits and other civil proceedings regarding infringement of intellectual property laws shall be instituted and tried in the Tribunal.

(2) Notwithstanding anything contained in any other law for the time being in force, the Tribunal shall have exclusive jurisdiction to try any offence under intellectual property laws.

***19. Appeals from Court.**—Any person aggrieved by the final judgment and order of the Tribunal under this Act may, within thirty days of the final judgment or order of the Tribunal, prefer an appeal to the High Court having territorial jurisdiction over the Tribunal.

20. Authentication of orders and other instruments of the Organization.—All orders, decisions and all other instruments issued by the Organization shall be authenticated only by the signatures of such officer or officers who are authorized by the Director-General in this behalf.

21. Prohibition of use of certain names, marks, seals, etc.—No person shall use any—

(a) name, mark or seal, which may resemble the name, marks or seal of the Organization or certain the expression or any abbreviation of such expression; or

*Came into force on 29th December, 2015 by S.R.O No. 1330(I)/2015

(b) mark or intellectual property in relation to any article or process containing the expression Organization of Pakistan or any abbreviation of such expression.

22. Exercise of powers of the Organization by other bodies.—The Federal Government may, in consultation with the Organization, by Notification in the official Gazette, direct that any power exercisable by the Organization under this Act shall, in relation to such matters and subject to such conditions as may be specified in the direction, be exercisable also by such body or such organization as may be specified in the notification.

23. Certain matters to be kept confidential.—Any information coming into notice of the Organization or any of its officers in relation to any article or process, subject to the provision of this Act or any other law for the time being in force shall be treated as confidential and shall not be communicated or revealed to any person:

Provided that nothing in this section shall apply to the disclosure of any information for the purpose of prosecution under this Act.

24. Appointment of officers, etc., by the Organization.—(1) The Organization may, with the prior approval of the Board, create posts and appoint such officers, employees, experts and consultants, on such terms and conditions as may be prescribed.

(2) The Director-General shall be empowered for transfers and postings of all the officers, employees and servants of the Organization, the Trademarks Registry, Copyright Office, Patent Office and any other office established under intellectual property laws as he deems fit and appropriate for proper and efficient working of the Organization.

(3) The civil servants working in the Organization shall be governed by the Civil Servants Act, 1973 (LXXI of 1973), and rules made thereunder unless absorbed in the Organization.

25. Members and officers, etc., to be public servants.—The Chairman, Director General, officers, employees, experts and consultants of the Organization shall, when acting or purporting to act in pursuance of any of the provisions of this Act, be deemed to be public servants within the meaning of Section 21 of the Pakistan Penal Code (Act XLV of 1860).

26. Intellectual Property Organization of Pakistan Fund.—(1) There shall be established a fund to be known as Intellectual Property Organization of Pakistan Fund which shall vest in the Organization and shall be utilized by the Organization to meet charges in connection with its functions under this Act including the payment of salaries provident fund, loans and advances, staff welfare assistance package, and other remuneration to the Chairman, Director-General, officers, employees, experts and consultants of the Organization and payment against hired services of and for the Organization. The Fund may also be used for workshops, seminars and other event arranged by the organization regarding intellectual property rights.

(2) The Fund shall be financed from the following, sources, namely:-

(a) grants and loans made by the Federal Government or a Provincial Government;

(b) loans, aid and donations from the national or international agencies;

(c) revenue earned from the levy of various charges or fees, etc; and

(d) income and profits derived from the investments made by the Organization.

(3) The Fund shall be kept in one or more accounts maintained by the Organization, in local or foreign currency, in any scheduled bank in Pakistan and shall be operated in accordance with the directions of the Board.

27. Budget.—The Organization shall, in respect of each financial year submit for approval of the Federal Government, on such date as may be prescribed, a statement of the estimated receipts and expenditure, including requirements of foreign exchange for the next financial year.

28. Audit and Accounts.—(1) The accounts of the Organization shall be maintained in the manner prescribed by the Controller General of Accounts.

(2) The Auditor-General of Pakistan shall conduct audit of the accounts of the Organization.

(3) A copy of the audit report shall be sent to the Federal Government alongwith the comments of the Organization.

(4) The Federal Government may issue directions to the Organization for the rectification of any item objected to by the Auditor-General of Pakistan and the Organization shall comply with such directions.

29. Power to amend the Schedule.—The Federal Government may, in consultation with the Board, amend the Schedule so as to add any entry thereto or modify or omit any entry therefrom.

30. Submission of yearly reports and returns.—(1) Within three months of the conclusion of each financial year, the Board shall submit an Annual Report together with a copy of statement of accounts of the Organization certified by the auditors and a copy of the auditors' report to the Federal Government in respect of the activities of the Board including the status of its existing programmes, projects and further plans formulated in furtherance of its aims and objectives.

(2) The Federal Government may require the Organization to submit it to,—

(a) any return, statement, estimate, statistics or other information regarding any matter under the control of the Organization;

(b) a report on any subject with which the Organization is concerned; and

(c) a copy of any document in the charge of the Organization.

31. Protection of action taken under the Act.—No suit, prosecution or other legal proceeding shall lie against the Federal Government, the Board or the Organization or any person acting under the Federal Government or the Organization for anything which is in good faith done or intended to be done in pursuance of this Act or any rule or regulation made thereunder.

32. Exemption from any provision of this Act.—The Federal Government may, by notification in the official Gazette, exempt any article or class of articles from the operation of all or any of the provisions of this Act.

33. Policy directives.—The Federal Government may, as and when it considers necessary, issue policy directives to the Board in respect of its role and functions and the compliance of such directives shall be binding on the board.

34. Power to make rules.—The Organization may, with the approval of Federal Government, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

35. Power to make regulations.—The Organization may, with the prior approval of the Board and by notification in the official Gazette, make regulations not inconsistent with this Act or the rules made thereunder to carry out the purposes of this Act.

36. Integration of the Trade Marks Registry, Copyright Office and Patent Office.— Notwithstanding anything contained in any other law for the time being in force and upon the commencement of this Act, the Trademarks Registry, Copyright Office and Patent Office hereinafter referred to as the said offices shall become part of the Organization,—

(a) all assets rights, powers, authorities and privileges and all properties, movable and immovable, cash and bank balance, reserve funds, investment and all other interest and rights in, or arising out of such properties and all debts, liabilities and obligations of whatever kind of the said offices subsisting immediately before their integration shall stand transferred to and vest in the Organization;

(b) all officers and other employees, of the said offices shall, not withstanding anything contained in any law or in any agreement, deed, document or other instrument, shall stand absorbed and transferred to the Organization and shall be deemed to have been appointed or engaged by the Organization in accordance with the terms and conditions which shall not be less favorable than in the said offices; and no officer or other employee whose services are so absorbed and transferred shall be entitled to any compensation because of such absorption or transfer. Such officers and other employees shall have the option either to remain civil servants, or to be employees of the Organization. The option once exercised shall be irrevocable. After exercising the option, the employee or employees shall cease to be a civil servant for all purposes and shall be entitled to such remuneration, allowances and other terms and conditions of the employment as are applicable to the employees of the Organization. In the event of such a person opting to remain as a civil servant, he shall continue to be governed by Civil Servants Act 1973 (LXXI of 1973) and the rules made thereunder in all matters. The Organization shall contribute to the pension, gratuity and final payment of provident fund in accordance with the rules as applicable lo the civil servant;

(c) all debts and obligations incurred or contracts entered into or rights acquired and all matters and things engaged to be done by, with or for the said offices

before their integration, shall be deemed to have been incurred, entered into, acquired or engaged to be done by or for, the Organization; and

(d) all suits and other legal proceedings instituted by or against the said offices before their integration shall be deemed to be suits, and proceedings by or against the Organization and may be proceeded or Otherwise dealt with accordingly.

37. Authorities to assist and aid the Organization.—All concerned law enforcement agencies and authorities in the Federation and the Provinces shall be under an obligation to provide and render full and complete assistance to the Organization as the Chairman or Director-General may deem fit and proper to demand or require for carrying out the purposes of this Act.

38. Removal of difficulties.—In case any difficulty arises in giving effect to this Act, the Federal Government may, for the purposes of removing such difficulty, make such order as it considers expedient and any such order shall be deemed to be, and given effect to, as a part of the provisions of this Act.

39. Act to override other laws.—The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force.

THE SCHEDULE

[see Section 2(h)]

(1) The Trade Marks Ordinance, 2001 (XIX of 2001).

(2) The Copyright Ordinance, 1962 (XXXIV of 1962).

(3) The Patents Ordinance, 2000 (LXI of 2000).

(4) The Registered Designs Ordinance, 2000 (XLV of 2000).

(5) The Registered Layout-Designs of Integrated Circuits Ordinance, 2000 (XLIX of 2000).

(6) Sections 478, 479, 480, 481, 482, 483, 485, 486, 487, 488 and 489 of Pakistan Penal Code (Act XLV of 1860).

THE INTEREST ACT, 1839

CONTENTS

PREAMBLE

1. Power of Court to allow interest

THE PAKISTAN CODE

[1][THE INTEREST ACT, 1839]

[2]ACT NO. XXXII OF 1839

[30th December, 1839]

An Act concerning the allowance of Interest in certain Cases

Preamble. WHEREAS it is expedient to extend to the territories under the Government of the East India Company, as well within the jurisdiction of Her Majesty's Courts as elsewhere, the provisions of the [3]Statute 3rd and 4th William IV, chapter 42 (3 & 4 will.4,0, c.42.), section 28, concerning the allowance of interest in certain-cases;

1. Power of Court to allow interest. It is, therefore, hereby enacted that, upon all debts or sums certain payable at a certain time or otherwise, the Court before which such debts or sums may be recovered may, if it shall think fit, allow interest to the creditor at a rate not exceeding the current rate of interest from the time when such debts or sums certain were payable, if such debts or sums be payable by virtue of some written instrument at a certain time ; or if payable otherwise, then from the time when demand of payment shall have been made in writing, so as such demand shall give notice to the debtor that interest will be claimed from the date of such demand until the term of payment : provided that interest shall be payable in all cases in which it is now payable by law.

THE PAKISTAN CODE

[1]Short title given by the Short Titles Act, 1897 (14 of 1897).

[2]This Act has been declared to be in force in all the Provinces and the Capital of the Federation, except the Scheduled Districts, by the Laws Local Extent Act, 1874 (15 of 1874), s. 3. It has been declared by notification under s. 3(a) of the Scheduled Districts, Act, 1874 (14 of 1874) to be in force in the following Scheduled Districts namely:–

Sind *see* Gazette of India, 1880, Pt. I, p. 672.

The Districts of Hazara, Peshawar, Kohat, Bannu, Dera Ismail Khan and Dera Ghazi Khan. (Portions of the Districts of Hazara, Bannu, Dera Ismail Khan and Dera Ghazi Khan and the Districts of Peshawar and Kohat now form the N.W.F.P.), *see* Gazette of India, 1901, Pt.I,p. 857 and *ibid*., 1902, Pt. I, p. 575; but its application has been barred in that part of the Hazara District known as Upper Tanawal by the Hazara (Upper Tanawal) Regulation, 1900 (2 of 1900),s . 3, *see* Gazette of India, 1886, Pt. I, p. 48.

[3]Short title, "The Civil Procedure Act, 1833" *see* the Short Titles Act, 1896 (59 & 60 Vict., c. 14).

ISLAMABAD CONSUMERS PROTECTION ACT, 1995

CONTENT

SECTIONS:

1. Short title, extent and commencement.
2. Definitions.
3. The Council.
4. Meetings of the Council.
5. Objects and functions of the Council.
6. Authority.
7. Prohibition of false advertisement etc.
8. Procedure for disposal of the complaints.
8A. Power to try summarily.
9. Penalties.
10. Appeal.
11. Immunity of the Council, etc.
12. Rules.

THE PAKISTAN CODE

ISLAMABAD CONSUMERS PROTECTION ACT, 1995

ACT NO. III OF 1995

An Act to provide for promotion and protection of the interest of consumers

WHEREAS sit is expedient to provide for promotion and protection of the interests of consumers and for matters connected therewith and incidental thereto ;

It is hereby enacted as follows :—

1. Short title, extent and commencement.—(1) This Act may be called the Islamabad Consumers Protection Act, 1995.

(2) It extends to the Islamabad Capital Territory.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Authority" means the Court of Sessions, Islamabad;

(b) "complaint" means—

(i) a consumer;

(ii) a consumer's association; and

(iii) the Federal Government, Chief Commissioner, Islamabad Capital Territory, Capital Development Authority, or any person or agency authorized by the aforesaid on their behalf to file complaint before the Authority;

(c) "consumer" means any person who—

(i) buys goods for a consideration which has been paid or partly paid and partly promised to be paid or under any system of deferred payment or hire purchase and includes any user of such goods but does not include a person who obtains such goods for re-sale or for any commercial purpose; or

(ii) hires any goods or services for a consideration which has been paid or promised or partly paid and partly promised or under any system of deferred payment and includes any beneficiary of such services.

(d) "Council" means the Consumers' Protection Council, Islamabad; established under section 3;

(e) "Services" includes services of any description which is made available to potential users and includes the provision of facilities in connection with banking, financing, insurance, transport, manufacturing, processing, accountancy, supply of electrical, mechanical or any other form of energy, boarding or lodging, entertainment, medicine, education, construction

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work, amusement, catering, security, or purveying a news or other information, and similar other services, but does not include the rendering of any service free of charge or under the contract of personal service; and

(f) "unfair trade practice" means a trade practice which, for the purpose of sale, use or supply of any goods, or for provision of any service or for their promotion, adopts one or more of the following practices, causes loss or injury though hoarding, black-marketing, adulteration, selling of expired drugs, food items and commodities unfit for human consumption, or charging for the goods and service in excess of the prices fixed by an authority authorized to do so under any law for the time being in force or in furtherance of such sale, use or supply makes any statement, whether orally or in writing, or by chalking on walls or through sign-boards or neon-sign or by distributing pamphlets or by publication in any manner, including through electronic media, by—

(i) falsely representing that the goods or, as the case may be, services are of a particular standard, quality, quantity, grade, composition, style or mode;

(ii) falsely representing any rebuilt, second-hand, renovated, reconditioned or old goods as new goods;

(iii) falsely representing that the goods or, as the case may be, services have sponsorship or approval of the competent agency or authority or possesses specified characteristics, performance, accessories, uses or benefits which such goods or services do not have;

(iv) falsely representing that the goods or services offered fulfil the prescribed standard fixed by local or international authorities;

(v) giving misleading representation of the need for, or the usefulness of any goods or services;

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(vi) falsely giving to the public any warrantly or guarantee of the performance, specification, required ingredients, efficacy or length of life of a product or any goods that is not based on an adequate or proper tests thereof;

(vii) falsely offering for sale or on lease any premises, house, shop or building with specified facilities or with the promise to deliver possession thereof within a specified period or without any escalation in price or by falsely representing that such premises, house, shop or building is being sold, built or constructed in accordance with the approved plans, specification and approval of the concerned authorities;

(viii) misleading the public concerning the price at which a product or products or goods or services have been, or are ordinarily sold or provided;

(ix) giving false or misleading facts regarding facilities available in the private educational institutions or falsely representing that such institutions have proper approval of the concerned authorities;

(x) falsely representing for provision of services by professionals and experts, including by doctors, engineers, advocates, mechanics, teachers, hakeems and spiritual healers;

(xi) giving false or misleading facts disparaging the goods, services or trade of another person, firms, company or business concern;

(xii) advertising for the sale or supply at a bargain price of goods or services which are not intended to be offered for sale or supply at such price;

(xiii) offering of gifts, prizes or other items with the intention of not providing them as offered or creating the impression that something is being given or offered free of charge when it is fully or partly covered by the amount charged in the transaction; and

(xiv) falsely gives description of commodities and services offered through mail order.

3. The Council.—(1) As soon as may be, after the commencement of this Act, the Federal Government may, by notification in the official Gazette, establish the Consumers Protection Council, Islamabad.

(2) The Council shall consist of the following :—

(i)	The Chairman, to be appointed by the Federal Government from amongst prominent social workers permanently residing at Islamabad.	*Chairman*
(ii)	Members of Parliament representing Islamabad Capital Territory;	*Member*
(iii)	Chief Commissioner, Islamabad Capital Territory, Islamabad;	*Member*
(iv)	Chairman, Capital Development Authority;	*Member*
(v)	three representatives of the Consumers Associations in Islamabad;	*Member*
(vi)	a representative of the Ministry of Interior who shall not be below the rank of Joint Secretary;	*Member*
(vii)	a representative of the shopkeepers, vendors or manufacturers as recommended by the Chamber of Commerce and Industries, Islamabad;	*Member*
(viii)	a representative of the Finance Division who shall not be below the rank of Joint Secretary;	*Member*

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(ix)	a representative of the Ministry of Health who shall not be below the rank of Joint Secretary;	*Member*
(x)	a representative of Ministry of Food, Agriculture and Livestock who shall not be below the rank of Joint Secretary;	*Member*
(xi)	a representative of the Ministry of Industries and production who shall not be below the rank of Joint Secretary;	*Member*
(xii)	a lady social worker permanently residing at Islamabad to be appointed by the Federal Government.	*Member*

(3) The existence of a vacancy in, or defect in the constitution of, the Council shall not invalidate any act or proceedings of the Council.

4. Meetings of the Council. — (1) The Council shall meet as and when necessary and at such time and place as the Chairman may fix:

Provided that not more than a period of two months shall intervene between the two meetings of the Council.

(2) In absence of the Chairman, the Members present in the meeting shall elect one of the members to act as Chairman.

(3) The quorum of the meeting of the Council shall be four members.

5. Objects and functions of the Council, etc.—(1) The objects and functions of the Council shall be to determine, promote and protect rights of consumers, including—

(a) the right of protection against marketing of goods which are hazardous to life and property;

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(b) the right of information about the quality, quantity, potency, purity, standard and price of goods and services;

(c) the right of access to a variety of goods at competitive prices;

(d) the right for redressal against unfair trade practices of unscrupulous exploitation of consumers;

(e) the right of Consumers' education; and

(f) the right of easy availability of essential services.

(2) The Council shall be responsible for formulation of the policies for promotion and protection of the rights of consumers, fair and honest trade practices by the manufacturers, producers and suppliers of goods and services in relation to interest of consumers and their effective implementation;

(3) For promotion and protection of the interests of consumers, the Council shall coordinate

between the Government, manufacturers, producers, suppliers and consumers.

6. Authority.—(1) The Authority shall receive complaints of the consumers and those made on behalf of the council for investigation and determination thereof.

(2) The Police, Capital Development Authority and other agencies of the Federal Government and Islamabad Capital Territory Administration shall act in aid of the Authority for performance of its functions under this Act.

7. Prohibition of false advertisement etc.—(1) Notwithstanding anything contained in any other law for the time being in force, no company, firm or person shall advertise in any manner not authorised by law for the sale or hiring of goods or services or any property, movable or immovable, or solicit deposits for repayment at higher rates of profits or interest and thereby causes loss to any consumer, whether financial or otherwise.

(2) Notwithstanding any punishment provided for making misrepresentation, false or misleading advertisement in any other law for the time being in force, the company, firm or a person making such advertisement shall be liable to pay such compensation as the Authority may direct for causing loss to the person affected by such advertisement.

8. Procedure for disposal of the complaints.—(1) A complainant may in respect of any goods sold or delivered or any service provided or supplied or against any unfair trade practice file a complaint with the Authority.

(2) The Council may, in the case of any unfair trade practice coming to its notice, directly make complaint to the Authority through an officer authorised by it.

(3) Where on examination of the complaint received under sub- section (1) or sub-section (2), the Authority is of the opinion that any right of the consumer has been infringed, it shall cause the notice of the complaint to be served on the respondent who shall be required to give his reply within a period of seven days.

(4) After considering the complaint and the reply of the respondent and after providing the parties and opportunity of being heard, or if no reply is received and after such enquiry as the Authority may deem appropriate it may pass such orders as the circumstance may require.

[1]**[8A. Power to try summarily**.**—**(1)Without prejudice to the foregoing provisions and in addition to the powers exercisable by the Authority where any right of a consumer is infringed or contravened by way of profiteering, hoarding, black- marketing, adulteration of food items, selling of expired items of food and other item unfit for human consumption or charging for goods and services in excess of the prices fixed by the competent authority under any law for the time being in force, it shall be tried by a special Magistrate appointed under section 14A of the Code of Criminal Procedure, 1898, (Act VI of 1898) in a summary manner as provided in sections 262 to 265 of the said Code:

Provided that sub-section (2) of section 265, shall not apply.

(2) If a Special Magistrate has reason to believe that any infringement or contravention of any right of consumer as stated in sub-section (1) punishable under this Act has been committed by any person, he may enter the place or premises where the infringement or contravention has been committed and try the same or the spot and punish the defaulter within imprisonment which may extend to six months or fine which may extend to fifty thousand rupees or with both.

[1]Insert sec.8A by Act III of 2012, s.2

(3) Any person aggrieved by the order of special Magistrate may, within fifteen days prefer an appeal to the Authority.]

9. Penalties.—(1) Where any right of consumer required to be protected under section 5 of the Act is in any way infringed, the person responsible for such infringement shall be punished with imprisonment which may extend to two years, or with fine which may extend to forty thousand rupees, or with both.

(2) Whoever makes advertisement through print or electronic-media or by chalking on walls or in any other manner in contravention of section 7, he shall be punished with imprisonment which may extend to two years, or with fine which may extend to thirty thousand rupees, or with both.

(3) The Authority may, where it deems appropriate, order for payment of compensation to the consumer to the extent the consumer has suffered any damage or loss through any unfair trade practice.

(4) The Authority may, where it deems necessary for protection of the rights of other consumers, order for confiscation of any goods or material or direct for their destruction.

10. Appeal. An appeal against the order of Authority shall lie to the High Court and the provisions of the Code of Criminal Procedure, 1898 (V of 1898) in respect of appeals to the High Court shall, *mutatis mutandis*, apply.

11. Immunity of the Council, etc. No suit, prosecution and other legal proceedings shall lie against the Council, its members, the Authority and other officers and authorities acting under the directions of the Council or, as the case may be, the Authority in expect of anything done under the provisions of this Act or any rules or orders made thereunder.

12. Rules. The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

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THE LEGAL REPRESENTATIVES' SUITS ACT, 1855

CONTENTS

1. Executors may sue and be sued in certain cases for wrongs committed in lifetime of deceased

2. Death of either party not to abate suit

THE PAKISTAN CODE

[1][THE LEGAL REPRESENTATIVES' SUITS ACT, 1855]

ACT No. XII OF 1855

[27th March, 1855]

An Act to enable Executors, Administrators or Representatives to sue and be sued for certain wrongs[2]

WHEREAS it is expedient to enable executors, administrators or representatives in certain cases to sue and be sued in respect of certain wrongs which, according to the present law, do not survive to or against such executors, administrators or representatives; It is enacted as follows:—

1. Executors may sue and be sued in certain cases for wrongs committed in lifetime of deceased. An action may be maintained by the executors, administrators or representatives of any person deceased for any wrong committed in the time of such person, which has occasioned pecuniary loss to his estate, for which wrong an action might have been maintained by such person, so as such wrong shall have been committed within one year before his death [3]* * *; and the damages, when recovered, shall be part of the personal estate of such person:

and further, an action may be maintained against the executors or administrators or heirs or representatives of any person deceased for any wrong committed by him in his lifetime for which he would have been subject to an action, so as such wrong shall have been committed within one year before such person's death [4]* * * ; and the damages to be recovered in such action shall, if recovered against an executor or administrator bound to administer according to the English law, be payable in like order of administration as the simple contract debts of such person.

2. Death of either party not to abate suit. No action commenced under the provisions of this Act shall abate by reason of the death of either party, but the same may be continued by or against the executors, administrators or representatives of the party deceased:

Provided that, in any case in which any such action shall be continued against the executors, administrators or representatives of a deceased party, such executors, administrators or representatives may set up a want of assets as a defence to the action, either wholly or in part, in the same manner as if the action had been originally commenced against them.]

Date: 13-09-2024

[1]Short title given by the Short Titles Act, 1897 (14 of 1897).

This Act has been declared to be in force in all the Provinces and the Capital of the Federation, except the Scheduled Districts, by the Laws Local Extent Act, 1874 (15 of 1874), s. 3.

It has been declared, by notification under s. 3 (a) of the Scheduled Districts Act, 1874 (14 of 1874), to be in force in the following Scheduled Districts, namely:-

Sind .. .. . . See Gazette of India, 1880, pt. I, p. 672.

The Districts of Hazara, Peshawar, Kohat, Bannu, Dera Ismail Khan and Dera Ghazi Khan. [Portions of the Districts of Hazara, Bannu, Dera Ismail Khan and Dera Ghazi Khan and the Districts of Peshawar and Kohat now from the N.W.F.P., see Gazette of India, 1901, Pt. I, p. 857, and ibid., 1902 Pt. I, p. 575; but its application to that part of the Hazara District known as Upper Tanawal has been barred by the Hazara (Upper Tanawal) Regulation, 1900 (2 of 1900)]-See Gazette of India, 1886, Pt. I, p. 48.

[2]See the Civil Procedure Act, 1833 (3 & 4 Will. 4, c. 42), s. 2.

[3]The words "and provided such action shall be brought within one year after the death of such person" rep. by the Indian Limitation Act, 1871 (9 of 1871), Sch. I. For limitation, see now the Limitation Act, 1908 (9 of 1908).

[4]The words "and so as such action shall be commenced within two years after the committing of the wrong" rep. by Act 9 of 1871, s. 2. For limitation, see now Act 9 of 1908.

THE LIMITATION (EMERGENCY AND WAR CONDITIONS) ACT, 1965

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Extension of limitation in affected areas
4. Extension of limitation for suits etc., in certain circumstances

THE PAKISTAN CODE

THE LIMITATION (EMERGENCY AND WAR CONDITIONS) ACT, 1965

ACT NO. XVIII or 1965

[2nd *December,* 1965]

An Act to extend the period of limitation in certain cases

WHEREAS it is necessary to extend the period of limitation prescribed by law for suits, appeals, applications and other proceedings or for doing any act or thing by the period during which it is not possible to institute suits or proceedings prefer appeals or make applications or to do any act or thing due to the displacement of persons from certain areas or due to persons having been detained in enemy territory in circumstances attributable to war or armed hostilities;

AND WHEREAS the national interest of Pakistan in relation to the achievement of uniformity within the meaning of clause (2) of Article 131 of the Constitution requires [1][Federal] legislation in the matter;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Limitation (Emergency and War Conditions) Act, 1965.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once and shall be deemed to have taken effect on the sixth day of September, 1965.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "affected area" means any area which the [1][Federal Government] may by notification in the official Gazette, declare to be an area affected by circumstances attributable to war or armed hostilities, and any such notification may be issued so as to have retrospective effect;

(b) "enemy subject" means any individual who possesses the nationality of a State which is at war with, or engaged in armed hostilities against, Pakistan, or who, having possessed such nationality at any time, has lost it without acquiring another nationality, or any body of persons constituted or incorporated in or under the laws of such State;

(c) "enemy territory" means any area under the sovereignty of, or administered by, or for the time being in the occupation of, a State which is at war with, or engaged in armed hostilities against, Pakistan, not being an area in the occupation of Pakistan, and includes any area which the [1][Federal Government] may, by notification in the official Gazette, declare, either generally or in respect of any particular period, to be enemy territory for the purposes of this Act ; and

[1]Subs. by F.A.O. 1975, Art, 2 and Table for "Central Government".

(d) "period of limitation" means,—

(*a*) in relation to a suit, appeal or application, the period of limitation prescribed therefor by the Limitation Act, 1908 (IX of 1908), or by or under any other law for the time being in force ; and

(*b*) in relation to any act or thing required to be done by any person by or under any law for the time being in force, the period within which such act or thing is required to be done.

3. Extension of limitation in affected areas.—Where a period of limitation within which any suit, appeal or application could have been instituted, preferred or made, or any act or thing could have been done, by a person displaced from any area, or before a court or other authority situated in any area, expires while such area is an affected area, such suit, appeal or application may be instituted, preferred or made, or such act or thing may be done, by such person, notwithstanding anything contained in the Limitation Act, 1908 (IX of 1908), or in any other law for the time being in force, within six months of such area ceasing to be an affected area.

Explanation.—Any person who was residing, carrying on business or working for gain, in any area, immediately before such area became an affected area, and has, while such area continues to be an affected area, left it and is, for that reason, unable to reside, carry on business or work for gain therein, shall, for the purposes of this section be deemed to be a person displaced from an affected area.

4. Extension of limitation for suits etc., in certain circumstances.—Where any person who could have instituted a suit, preferred an appeal or made an application, or could have done any act or thing required to be done by or under any law for the time being in force, has been detained in enemy territory in circumstances attributable to war or armed hostilities and the period of limitation expires while such person is so detained, such suit, appeal or application may be instituted, preferred or made, or such act or thing may be done, by such person, notwithstanding anything contained in the Limitation Act, 1908 (IX of 1908), or in any other law for the time being in force, within six months, of such person ceasing to be so detained:

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Provided that, where a person has been so detained for two or more periods, those periods shall be treated, for the purpose of this section, as one continuous period beginning with the beginning of the first period and ending with the end of the last period:

Provided further that this section shall not apply to suits instituted to enforce rights of pre-emption or to suits, appeals or applications of any description which may be instituted by enemy subjects.

———————

RGN Date:-18.04.2024

THE LIMITATION ACT, 1908

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THE LIMITATION ACT, 1908

[1]ACT NO. IX OF 1908

[7th August, 1908]

An Act to consolidate and amend the law for the Limitation of Suits, and for other purposes.

WHEREAS it is expedient to consolidate and amend the law relating to the limitation of suits, appeals and certain applications to Courts; and whereas it is also expedient to provide rules for acquiring by possession the ownership of easements and other property; It is hereby enacted as follows :-

PART I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the [2]*Limitation Act, 1908.

[3][(2) It extends to the whole of Pakistan.]

(3) This section and section 31 shall come into force at once. The rest of this Act shall come into force on the first day of January, 1909.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(1) "applicant" includes any person from or through whom an applicant derives his right to apply:

[4][(2) "bill of exchange" has the same meaning as in section 5 of the Negotiable Instruments Act, 1881 (XXVI of 1881), and includes a hundi and a cheque,]

(3) "bond" includes any instrument whereby a person obliges himself to pay money to another on condition that the obligation shall be void if a specified act is performed, or is not performed, as the case may be :

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[1] For Statement of Objects and Reasons, *see* Gazette of India, 1908, Pt. V, p. 22 ; for Report of the Select Committee, *see ibid.*, 1908, Pt. V, p. 223 ; and for Proceedings in Council, *see ibid.*, 1908, Pt. VI, pp. 2, 13, 37 and 145.
The Act has been declared to be in force in Baluchistan by the British Baluchistan Laws Regulation, 1913 (2 of 1913), s. 3.
It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950), and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has also been extended to the Excluded Area of Upper Tanawal other than Phulera by the N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from the 1st June, 1951, *see* N.W.F.P. Gazette, Ext., dated the 1st June, 1951.
The Act, as inforce in the North West Frontier Province immediately before the commencement of N.W.F.P. Regulation No. II of 1974, has been applied to the Provincially Administered Tribal Areas of Chitral, Dir, Kalam, Swat, and Malakand Protected Area, by N.W.F.P. Regulation No. II of 1974, s. 3.

[2]The word "Indian" omitted by A. O., 1949.

[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3. and 2nd Sch. (*with effect from the 14th October 1955*), for the original sub-section (2) as amended by A. O., 1949 .

[4]Subs. by the Limitation (Amdt.) Ordinance, 1980 (62 of 1980), s. 2, for the original clause (2).

(4) "defendant" includes any person from or through whom a defendant derives his liability to be sued:

(5) "easement" includes a right not arising from contract, by which one person is entitled to remove and appropriate for his own profit any part of the soil belonging to another or anything growing in, or attached to or subsisting upon, the land of another:

(6) "foreign country" means any country other than [1][Pakistan [2]* * *]:

(7) "good faith" : nothing shall be deemed to be done in good faith which is not done with due care and attention:

(8) "plaintiff" includes any person from or through whom a plaintiff derives his right to sue :

[3][(9)] "promissory note" has the same meaning as in the Negotiable Instruments Act, 1881 (XXVI of 1881);]

(10) "suit" does not include an appeal or an application: and

(11) "trustee" does not include a benamidar, a mortgagee remaining in possession after the mortgage has been satisfied, or a wrong-doer in possession without title.

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PART II

LIMITATION OF SUITS, APPEALS AND APPLICATIONS

3. Dismissal of suits, etc., instituted, etc., after period of limitation. Subject to the provisions contained in sections 4 to 25 (inclusive), every suit institute, appeal preferred, and application made, after the period of limitation prescribed therefore by the first schedule shall be dismissed, although limitation has not been set up as a defence.

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Explanation.— A suit is instituted, in ordinary cases, when the plaint is presented to the proper officer; in the case of a pauper, when his application for leave to sue as a pauper is made; and, in the case of a claim against a company which is being wound up by the Court, when the claimant first sends in his claim to the official liquidator.

4. Where Court is closed when period expires. Where the period of limitation prescribed for any suit, appeal or application expires on a day when the Court is closed, the suit, appeal or application may be instituted, preferred or made on the day that the Court re-opens.

[1]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and Third Sch., for "British India".
[2]The comma and words "but includes an Acceding state" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 2 and Second Sch.
[3]Subs. by Ordinance 62 of 1980, s.2, for the original clause (9).

5. Extension of period in certain cases. Any appeal or application for [1][a revision or] a review of judgment or for leave to appeal or any other application to which this section may be made applicable [2][by or under any enactment] for the time being in force may be admitted after the period of limitation prescribed therefor, when the appellant or applicant satisfies the Court that he had sufficient cause for not preferring the appeal or making the application within such period.

Explanation.— The fact that the appellant or applicant was misled by any order, practice or judgment of the High Court in ascertaining or computing the prescribed period of limitation may be sufficient cause within the meaning of this section.

[3]* * * * * * *

6. Legal disability.— (1) Where a person entitled to institute a suit [4][or proceeding] or make an application for the execution of a decree is, at the time from which the period of limitation is to be reckoned, a minor, or insane, or an idiot, he may institute the suit [4][or proceeding] or make the application within the same period after the disability has ceased, as would otherwise have been allowed from the time prescribed therefore in the third column of the first schedule [1][or in section 48 of the Code of Civil Procedure, 1908 (Act V of 1908)].

(2) Where such person is, at the time from which the period of limitation is to be reckoned, affected by two such disabilities, or where, before his disability has ceased, he is affected by another disability, he may institute the suit or make the application within the same period, after both disabilities have ceased, as would otherwise have been allowed from the time so prescribed.

(3) Where the disability continues up to the death of such person, his legal representative may institute the suit or make the application within the same period after the death as would otherwise have been allowed from the time so prescribed.

(4) Where such representative is at the date of the death affected by any such disability, the rules contained in sub-sections (1) and (2) shall apply.

Illustrations

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(a) The right to sue for the hire of a boat accrues to A during his minority. He attains majority four years after such accruer. He may institute his suit at any time within three years from the date of his attaining majority.

(b) A right to sue accrues to Z during his minority. After the accruer, but while Z is still a minor, he becomes insane. Time runs against Z from the date when his insanity and minority cease.

(c) A right to sue accrues to X during his minority. X dies before attaining majority, and is succeed by Y, his minor son. Time runs against Y from the date of his attaining majority.

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[1]Ins. by the Limitation (Amdt.) Ordinance, 1962 (43 of 1962), s. 2.
[2]Subs. by the Indian Limitation (Amdt.) Act, 1922 (10 of 1922), s. 2, for "by any enactment or rule".
[3]A section 5A was temporarily ins. here for a period of six months with effect from the 13th February 1948, *see* the Negotiable Instruments. Act (Temporary Amdt.) Ordinance, 1948 (6 of 1948), s. 3 and the Ministry of Finance Notification No. D. 2702-F/48, dated the 11th May, 1948, Gazette of Pakistan, 1948, Pt. I. p. 258.
[4]Ins. by Ord. 43 of 1962, s. 3.

7. Disability of one of several plaintiffs or applicants. Where one of several persons jointly entitled to institute a suit [1][or proceeding] or make an application for the execution of a decree is under any such disability, and a discharge can be given without the concurrence of such person, time will run against them all: but, where no such discharge can be given, time will not run as against any of them until one of them becomes capable of giving such discharge without the concurrence of the others or until the disability has ceased.

Illustrations

(a) A incurs a debt to a firm of which B, C and D are partners. B is insane, and C is a minor. D can give a discharge of the debt without the concurrence or B and C. Time runs against B, C and D.

(b) A incurs a debt to a firm of which E, F and G are partners. E and F are insane, and G is a minor. Time will not run against any of them until either E or F becomes sane, or G attains majority.

[2]**8. Special exceptions.** Nothing in section 6 or in section 7 applies to suits to enforce rights of pre-emption, or shall be deemed to extend, for more than three years from the cessation of the disability or the death of the person affected thereby, the period within which any suit must be instituted or application made.

Illustrations

(a) A, to whom a right to sue for a legacy has accrued during his minority, attains majority eleven years after such accruer. A has, under the ordinary law, only one year remaining within which to sue. But under section 6 and this section an extension of two years will be allowed him, making in all a period of three years from the date of his attaining majority, within which he may bring his suit.

(b) A right to sue for an hereditary office accrues to A who at the time is insane. Six years after the accruer A recovers his reason. A has six years, under the ordinary law, from the date when his insanity ceased within which to institute a suit. No extension of time will be given him under section 6 read with this section.

(c) A right to sue as landlord to recover possession from a tenant accrues to A, who is an idiot. A dies three years after the accruer, his idiocy continuing up to the date of his death. A's representative in interest has, under the ordinary law, nine years from the date of A's death within which to bring a suit. Section 6 read with this section does not extend that time, except where the representative is himself under disability when the representation devolves upon him.

[1]Ins. by the Limitation (Amdt.) Ordinance, 1962 (43 of 1962), s. 3.
[2] Ins. by the Indian Limitation (Amdt.) Act, 1929 (1 of 1929),s.2.

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9. Continuous running of time. Where once time has begun to run, no subsequent disability or inability to sue stops it :

Provided that where letters of administration to the estate of a creditor have been granted to his debtor, the running of the time prescribed for a suit to recover the debt shall be suspended while the administration continues.

10. Suits against express trustees and their representatives. Notwithstanding anything hereinbefore contained, no suit against a person in whom property has become vested in trust for any specific purpose, or against his legal representatives or assigns (not being assigns for valuable consideration), for the purpose of following in his or their hands such property or the proceeds thereof, or for an account of such property or proceeds
shall be barred by any length of time.

[1][For the purposes of this section any property comprised in a Hindu, Muhammadan or Buddhist religious or charitable endowment shall be deemed to be property vested in trust for a specific purpose, and the manager of any such property shall be deemed to be the trustee thereof.]

11. Suits on foreign contracts.— (1) Suits instituted in [2][Pakistan] on contracts entered into in a foreign country are subject to the rules of limitation contained in this Act.

(2) No foreign rule of limitation shall be a defence to a suit instituted in [2][Pakistan] on a contract entered into in a foreign country, unless the rule has extinguished the contract and the parties were domiciled in such country during the period prescribed by such rule.

PART III

COMPUTATION OF PERIOD OF LIMITATION

12. Exclusion of time in legal proceedings.—(1) In computing the period of limitation prescribed for any suit, appeal or application, the day from which such period is to be reckoned shall be excluded.

(2) In computing the period of limitation prescribed for an appeal, an application for leave to appeal and an application for a review of judgment, the day on which the judgment complained of was pronounced, and the time requisite for obtaining a copy of the decree, sentence or order appealed from or sought to be reviewed, shall be excluded.

(3) Where a decree is appealed from or sought to be reviewed, the time requisite for obtaining a copy of the judgment on which it is founded shall also be excluded.

(4) In computing the period of limitation prescribed for an application to set aside an award, the time requisite for obtaining a copy of the award shall be excluded.

[1]Ins. by the Indian Limitation (Amdt.) Act, 1929 (1 of 1929),s. 2.
[2]Subs. by the Central laws (Statute) Reform Ordinance, 1960 (21 of 1960) s.3 and 2nd Sch., for "the Province and Capital of the Federation" which had been subs. by A.O., 1949, for British India.

[1][(5) For the purposes of sub-sections (2), (3) and (4), the time requisite for obtaining a copy of the decree, sentence, order, judgment or award shall be deemed to be the time intervening between the day on which an application for the copy is made and the day actually intimated to the applicant to be the day on which the copy will be ready for delivery.]

13. Exclusion of time of defendants, absence from Pakistan and certain other territories. In computing the period of limitation prescribed for any suit, the time during which the defendant has been absent from [2][Pakistan] and from the territories beyond [2][Pakistan] under the administration of [3][the [4][Federal Government]] [5]* * * shall be excluded.

14. Exclusion of time of proceeding *Bona fide* in Court without jurisdiction.—(1) In computing the period of limitation prescribed for any suit, the time during which the plaintiff has been prosecuting with due diligence another civil proceeding, whether in a Court of first instance or in a Court of appeal, against the defendant, shall be excluded, where the proceeding is founded upon the same cause of action and is prosecuted in good faith in a Court which, from. defect of jurisdiction, or other cause of a like nature, is unable to entertain it.

(2) In computing the period of limitation prescribed for any application, the time during which the applicant has been prosecuting with due diligence another civil proceeding, whether in a Court of first instance or in a Court of appeal, against the same party for the same relief shall be excluded, where such proceeding is prosecuted in good faith in a Court which, from defect of jurisdiction, or other cause of a like nature, is unable to entertain it.

Explanation I.— In excluding the time during which a former suit or application was pending, the day on which that suit or application was instituted or made, and the day on which the proceedings therein ended, shall both be counted.

Explanation II.— For the purposes of this section, a plaintiff or an applicant resisting an appeal shall be deemed to be prosecuting a proceeding.

Explanation III.—For the purposes of this section misjoinder of parties or of cause of action shall be deemed to be a cause of a like nature with defect of jurisdiction.

15. Exclusion of time during which proceedings are suspended.—(1) In computing the period of limitation prescribed for any suit or application for the execution of a decree, the institution or execution of which has been stayed by injunction or order, the time of the continuance of the injunction or order, the day on which it was issued or made and the day on which it was withdrawn, shall be excluded.

(2) In computing the period of limitation prescribed for any suit of which notice has been given in accordance with the requirements of any enactment for the time being in force, the period of such notice shall be excluded.

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[1]Added by Act XIII of 1991, s.2

[2]Subs. by the Central laws (Statute) Reform Ordinance, 1960 (21 of 1960) s.3 and 2nd Sch., for "the Province and Capital of the Federation" which had been subs. by A.O., 1949, for British India.

[3]Subs. by A.O., 1937 for "the Govt".

[4]Subs. by F.A.O., 1975, Art.2 and Table, for "Central Government".

[5]The words "or the Crown Representative" omitted by A. O. 1949.

16. Exclusion of time during which proceedings to set aside execution sale are pending. In computing the period of limitation prescribed for a suit for possession by a purchaser at a sale in execution of a decree, the time during which a proceeding to set aside the sale has been prosecured shall be excluded.

17. Effect of death before right to sue accrues.—(1) Where a person, who would, if he were living, have a right to institute a suit or make an application, dies before the right accrues, the period of limitation shall be computed from the time when there is a legal representative of the deceased capable of instituting or making such suit or application.

(2) Where a person against whom, if he were living, a right to institute a suit or make an application would have accrued dies before the right accrues, the period of limitation shall be computed from the time when there is a legal representative of the deceased against whom the plaintiff may institute or make such suit or application,

(3) Nothing in sub-sections (1) and (2) applies to suits to enforce rights of pre-emption or to suits for the possession of immoveable property or of an hereditary office.

18. Effect of fraud. Where any person having a right to institute a suit or make an application has, by means of fraud, been kept from the knowledge of such right or of the title on which it is founded,

or where any document necessary to establish such right has been fraudulently concealed from him

the time limited for instituting a suit or making an application—

(a) against the person guilty of the fraud or accessory thereto, or

(b) against any person claiming through him otherwise than in good faith and for a valuable consideration,

shall be computed from the time when the fraud first became known to the person injuriously affected thereby, or, in the case of the concealed document, when he first had the means of producing it or compelling its production.

19. Effect of acknowledgment in writing.—(1) Where, before the expiration of the period prescribed for a suit or application respect of any property or right, an acknowledgment of liability in respect of such property or right has been made in writing signed by the party against whom such property or right is claimed, or by some person through whom he derives title or liability, a fresh period of limitation shall be computed from the time which the acknowledgment was so signed.

(2) Where the writing containing the acknowledgment is undated, oral evidence may be given of the time when it was signed; but, subject to the provisions of the Evidence Act. 1872 (I of 1872) oral evidence of its contents shall not be received.

Explanation I.— For the purposes of this section an acknowledgment may be sufficient though it omits to specify the exact nature of the property or right, or avers that the time for payment, delivery, performance or enjoyment has not yet come, or is accompanied by a refusal to pay, deliver, perform or permit to enjoy, or is coupled with a claim to a set-off, or is addressed to a person other

than the person entitled to the property or right.

Explanation II.— For the purposes of this section, "signed" means signed either personally or by an agent duly authorized in this behalf.

Explanation III.— For the purposes of this section an application for the execution of a decree or order is an application in respect of a right.

20. Effect of payment on account of debt or of interest on legacy.—[1][(1) Where payment on account of a debt or of interest on a legacy is made before the expiration of the prescribed period by the person liable to pay the debt or legacy, or by his duly authorised agent, a fresh period of limitation shall be computed from the time when the payment was made:]

[2][Provided that [3]* * * an acknowledgment of the payment appears in the handwriting of, or in a writing signed by, the person making the payment.]

(2) Effect to receipt of procedure of mortgaged land. Where mortgaged land is in the possession of the mortgagee, the receipt of the rent or produce of such land shall be deemed to be a payment for the purpose of sub-section (1).

Explanation.— Debt includes money payable under a decree or order of Court.

21. Agent of person under disability.—(1) The expression "agent duly authorized in his behalf," in sections 19 and 20, shall, in the case of a person under disability, include his lawful guardian, committee or manager, or an agent duly authorised by such guardian, committee or manager to sign the acknowledgment or make the payment.

(2) Acknowledgement or payment by one of several joint contractors, etc. Nothing in the said sections renders one of several joint contractors, partners, executors or mortgagees chargeable by reason only of a written acknowledgment signed or of a payment made by, or by the agent of, any other or others of them.

[4][(3) For the purposes of the said sections.—

(a) an acknowledgment signed, or a payment made, in respect of any liability, by, or by the duly authorised agent of, any widow or other limited owner of property who is governed by the Hindu law, shall be a valid acknowledgment or payment, as the case may be, as against a reversioner succeeding to such liability; and

(b) where a liability has been incurred by, or on behalf of, a Hindu undivided family as such, an acknowledgment or payment made by, or by the duly authorised agent of, the manager of the family for the time being shall be deemed to have been made on behalf of the whole family.]

[1]Subs. by the Indian Limitation (Amdt.) Act, 1942 (16 of 1942), s. 2, for the original sub-section (1).
[2]Subs. by the Indian Limitation (Amdt.) Act, 1927 (1 of 1927), s. 2 for the original proviso.
[3]The commas and words "save in the case of payment of interest made before the 1st day of January, 1928," omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch.,
[4]Sub-section (3) ins. by the Indian Limitation (Amdt.) Act, 1927 (1 of 1927), s. 3.

22. Effect of substituting or adding new plaintiff or defendant.— (1) Where, after the institution of a suit, a new plaintiff or defendant is substituted or added, the suit shall, as regards him, be deemed to have been instituted when he was so made a party.

(2) Nothing in sub-section (1) shall apply to a case where a party is added or substituted owing to an assignment or devolution of any interest during the pendency of a suit or where a plaintiff is made a defendant or a defendant is made a plaintiff.

23. Continuing breaches and wrongs. In the case of a continuing breach of contract and in the case of a continuing wrong independent of contract, a fresh period of limitation begins to run at every moment of the time during which the breach or the wrong, as the case may be, continues.

24. Suit for compensation for act not actionable without special damage. In the case of a suit for compensation for an act which does not give rise to a cause of action unless some specific injury actually results therefrom, the period of limitation shall be computed from the time when the injury results.

Illustration

A owns the surface of a field. B owns the subsoil. B digs coal thereout without causing any immediate apparent injury to the surface, but at last the surface subsides. The period of limitation in the case of a suit by A against B runs from the time of the subsidence.

25. Computation of time mentioned in instruments. All instruments shall, for the purposes of this Act, be deemed to be made with reference to the Gregorian calendar.

Illustrations

(a) A Hindu makes a promissory note bearing a Native date only, and payable four months after date. The period of limitation applicable to a suit on the note runs from the expiration of four months after date computed according to the Gregorian calendar.

(b) A Hindu makes a bond, bearing a Native date only, for the repayment of money within one year. The period of limitation applicable to a suit on the bond runs from the expiration of one year after date computed according to the Gregorian calendar.

PART IV

ACQUISITION OF OWNERSHIP BY POSSESSION

26. Acquisition of right to easements.—(1) Where the access and use of light or air to and for any building have been peaceably enjoyed therewith as an easement, and as of right, without interruption, and for twenty years,

and where any way or watercourse, or the use of any water, or any other easement (whether affirmative or negative) has been peaceably and openly enjoyed by any person claiming title thereto as an easement and as of right without interruption, and for twenty years,

the right to such access and use of light or air, way, watercourse, use of water, or other easement shall be absolute and indefeasible.

Each of the said periods of twenty years shall be taken to be a period ending within two years next before the institution of the suit wherein the claim to which such period relates contested.

(2) Where the property over which a right is claimed under sub-section (1) belongs to the [1][the Government], that sub-section shall be read as if for the words "twenty years" the words "sixty years" were substituted.

Explanation.— Nothing is an interruption within the meaning of this section, unless where there is an actual discontinuance of the possession or enjoyment by reason of an obstruction by the act of some person other than the claimant, and unless such obstruction is submitted to or acquiesced in for one year after the claimant has notice thereof and of the person making or authorizing the same to be made.

Illustrations

(a) A suit is brought in 1911 for obstructing a right of way. The defendant admits the obstruction, but denies the right of way. The plaintiff proves that the right was peaceably and openly enjoyed by him, claiming title thereto as an easement and as of right, without interruption from 1st January 1890 to 1st January 1910. The plaintiff is entitled to judgment.

(b) In a like suit the plaintiff shows that the right was peaceably and openly enjoyed by him for twenty years. The defendant proves that the plaintiff, on one occasion during the twenty years, had asked his leave to enjoy the right. The suit shall be dismissed.

27. Exclusion in favour of reversioner of Servient tenement. Where any land or water upon, over or from which any easement has been enjoyed or derived has been held under or by virtue of any interest for life or any term of years exceeding three years from the granting thereof, the time of the enjoyment of such easement during the continuance of such interest or term shall be excluded in the computation of the period of twenty years in case the claim is, within three years next after the determination of such interest or term, resisted by the person entitled, on such determination, to the said land or water.

Illustration

A sues for a declaration that he is entitled to a right of way over B's land. A proves that he has enjoyed the right for twenty-five years; but B shows that during ten of these years C, Hindu widow, had a life interest in the land, that on C's death B became entitled to the land, and that within two years after C's death he contested A's claim to the right. The suit must be dismissed, as A, with reference to the provisions of this section, has only proved enjoyment for fifteen years.

[2]**28.** * * * * * * *

PART V

SAVINGS AND REPEALS

29. Savings.— [3][**(**1) Nothing in this Act shall affect section 25 of the contract Act, 1872 (IX of 1872).

[1]The word "Govt." was first subs. by A. O., 1937 and then amended by A. O., 1961, Art. 2 and Sch. (*with effect from the 23rd March,* 1956). to read as above.
[2]Omitted by Act II of 1995,s 2.
[3]Subs. by the Indian Limitation (Amdt.) Act, 1922 (10 of 1922), s. 3, for the original sub-section (1).

(2) Where any special or local law prescribes for any suit, appeal or application a period of limitation different from the period prescribed therefor by the first schedule, the provisions of section 3 shall apply, as if such period were prescribed therefor in that schedule, and for the purpose of determining any period of limitation prescribed for any suit, appeal or application by any special or local law—

(a) the provisions contained in section 4, sections 9 to 18, and section 22 shall apply only in so far as, and to the extent to which, they are not expressly excluded by such special or local law; and

(b) the remaining provisions of this Act shall not apply.]

[1][(3)] Nothing in this Act shall apply to suits under the Divorce Act (IV of 1869).

[1][(4)] Sections 26 and 27 and the definition of "easement" in section 2 shall not apply to cases arising in territories to which the Easements Act, 1882 (V of 1882), may for the time being extend.

30 and 31. [*Provision for suits for which the period prescribed is shorter than that prescribed by the Indian Limitation Act,* 1877. *Provision for suits by certain mortgagees in territories mentioned in the Second Schedule.*] *Rep. by the Repealing and Amending Act,* 1930 *(VIII of 1930),* s. 3 *and Second Schedule.*

32. [*Repeals.*] *Rep. by the Second Repealing and Amending Act,* 1914 *(XVII of* 1914), s. 3 *and Second Schedule.*

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[1]The original sub-sections (2) and (3) were re-numbered as (3) and (4), by the Indian Limitation (Amdt.) Act, 1922 (10 of 1922), s. 3.

THE FIRST SCHEDULE

(See section 3)

FIRST DIVISION : SUITS

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part I.—Thirty days.	
1.— To contest an award of the Board of Revenue Under the Waste Lands (Claims) Act, 1863 (XXII of 1863).	Thirty days ..	When notice of the award is delivered to the plaintiff.
	Part II.—Ninety days.	
2.— For compensation for doing or for omitting to do an act alleged to be in pursuance of any enactment in force for the time being in [1][Pakistan.]	Ninety days. ..	When the act or omission takes place.
	Part III.—Six months.	
3.— Under the Specific Relief Act, 1877 (I of 1877), section 9, to recover possession of immoveable property.	Six months. ..	When the dispossession occurs.
[2]* * *	*	* * *

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Province and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".
[2]Article 4 relating to suits under the Employers and Workmen (Disputes) Act, 1860, omitted by the Repealing and Amending Act, 1937 (20 of 1937) s.3 and Second Schedule.

THE FIRST SCHEDULE.—*contd.*

FIRST DIVISION : SUITS—*contd.*

Description of suit.	Period of limitation.	Time from which period beings to run.
	[1][Part IV.—One year].	
5.— Under the summary procedure referred to in section 128 (2) (f) of the Code of Civil Procedure, 1908 (V of 1908) [2][where the provision of such summary procedure does not exclude the ordinary procedure in such suits[3]* *].	[4][One year] ..	When the debt or liquidated demand becomes payable or when the property becomes recoverable.
	[5]* * *	
6.— Upon a Statute, Act, Regulation or Byelaw, for a penalty or forfeiture.	One year ..	When the penalty or forfeiture is incurred.
7.— For the wages of a household servant, artisan or labourer [6]* * *.	[7][One year] ..	When the wages accrue due.
8.— For the price of food or drink sold by the keeper of a hotel, tavern or lodging house.	[7][One year] ..	When the food or drink is delivered.

[1] Ins. by the Indian Limitation (Amdt.) Act, 1925 (30 of 1925), s.2.
[2] Added ibid.
[3] The words "and under Order XXXVII of the said Code" omitted by the Civil Procedure and Limitation (Amdt.) Ordinance, 1961 (9 of 1961).
[4] Subs. by Act 30 of 1925, s.2, for "Six months."
[5] The heading "Part IV.—One year" omitted, ibid.
[6] The words "not provided for by this Schedule, Article 4" omitted by the Repealing and Amending Act, 1939 (34 of 1939) s.2 and First Sch.
[7] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part IV.—One year—contd.	
9.— For the price of lodging.	[1][One year] ..	When the price becomes payable.
10.—To enforce a right of pre-emption whether the right is founded on law, or general usage, or on special contract.	[1][One year]. ..	When the purchaser takes, under the sale sought to be impeached, physical possession of the whole of the property sold, or where the subject of the sale does not admit of physical possession, when the instrument of sale is registered.
11.—By a person, against whom any of the following orders has been made to establish the right which he claims to the property comprised in the order :	[1][One year]. ..	The date of the order.
(1) Order under the Code of Civil Procedure, 1908 (V of 1908), on a claim preferred to, or an objection made to the attachment of, property attached in execution of a decree;		
[2]* * *		
11A.—By a person against whom an order has	[1][One year]. …	The date of the order.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[2] Clause (2) omitted by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s.3 and Second Sch.

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Description of suit.	Period of limitation.	Time from which period beings to run.
	Part IV.—One year—contd.	
been made under the Code of Civil Procedure, 1908 (V of 1908), upon an application by the holder of a decree for the possession of immoveable property or by the purchaser of such property sold in execution of a decree complaining of resistance or obstruction to the delivery of possession thereof, or upon an application by any person dispossessed of such property in the delivery of possession thereof to the decree-holder or purchaser, to establish the right which he claims to the present possession of the property comprised in the order.		
12.— To set aside any of the following sales :-	[1][One year] ..	When the sale is confirmed, or would otherwise have become final and conclusive had no such suit been brought.
(a) sale in execution of a decree of a Civil Court;		
(b) sale in pursuance of a decree or order of a Collector or other officer of revenue;		

[1]Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part IV.—One year—contd.	
(c) sale for arrears of Government revenue, or for any demand recoverable as such arrears;.		
(d) sale of a patni taluo sold for current arrears of rent.		
Explanation.—In this article "patni" includes any intermediate tenure saleable for current arrears of rent.		
13.—To alter or set aside a decision or order of a Civil Court in any proceeding other than a suit.	[1][One year]. ..	The date of the final decision or order in the case by a Court competent to determine it finally.
14.—To set aside any act or order of an officer of Government in his official capacity, not herein otherwise expressly provided for.	[1][One year]. ..	The date of the act or order.
15.—Against Government to set aside any attachment, lease or transfer of immoveable property by the revenue-authorities for arrears of Government revenue.	[1][One year]. ..	When the attachment, lease or transfer is made.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto"

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FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part IV.—One year—contd.	
16.—Against Government to recover money paid under protest in satisfaction of a claim made by the revenue authorities on account of arrears of revenue or on account of demands recoverable as such arrears.	[1][One year]. ..	When the payment is made.
17.—Against Government for compensation for land acquired for public purposes.	[1][One year]. ..	The date of determining the amount of the compensation.
18.—Like suit for compensation when the acquisition is not completed.	[1][One year]. ..	The date of the refusal to complete.
19.—For compensation for false imprisonment.	[1][One year]. ..	When the imprisonment ends.
20.—By executors, administrators or representative under the Legal Representatives' Suits Act, 1855 (XII of 1855).	[1][One year]. ..	The date of the death of the person wronged.
21.—By executors, administrators or representatives under the Fatal Accidents Act, 1855 (XIII of 1855).	[1][One year]. ..	The date of the death of the person killed.
22.—For compensation for any other injury to the person.	[1][One year]. ..	When the injury is committed.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto"

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part IV.—One year—contd.	
23.—For compensation for a malicious prosecution.	[1][One year] ..	When the plaintiff is acquitted, or the prosecution is otherwise terminated.
24.—For compensation for libel.	[1][One year] ..	When the libel is published.
25.—For compensation for slander.	[1][One year] ..	When the words are spoken, or, if the words are not actionable in themselves, when the special damage complained of results.
26.—For compensation for loss of service occasioned by the seduction of the plaintiff's servant or daughter.	[1][One year] ..	When the loss occurs.
27.—For compensation for inducing a person to break a contract with the plaintiff.	[1][One year] ..	The date of the breach.
28.—For compensation for and illegal, irregular or excessive distress.	[1][One year] ..	The date of the distress.
29.—For compensation for wrongful seizure for moveable property under legal process.	[1][One year] ..	The date of the seizure.
30.—Against a carrier for compensation for losing or injuring goods.	[1][One year] ..	When the loss or injury occurs.
31.—Against a carrier for compensation for non delivery of, or delay in delivering, goods.	[1][One year] ..	When the goods ought to be delivered.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

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THE FIRST SCHEDULE.—contd.

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part V.—Two years.	
32.—Against one who having a right to use property for specific purposes, perverts it to other purposes.	Two years ..	When the perversion first becomes known to the person injured thereby.
33.—Under the Legal Representatives' Suits Act, 1855 (XII of 1855), against an executor.	[1][Two years] ..	When the wrong complained of is done.
34.—Under the same Act against an administrator.	[1][Two years] ..	Ditto.
35.—Under the same Act against any other representative.	[1][Two years] ..	Ditto.
36.—For compensation for any malfeasance, misfeasance or nonfeasance independent of contract and not herein specially provided for.	[1][Two years] ..	When the malfeasance, misfeasance or nonfeasance takes place.
	Part VI.—Three years.	
37.—For compensation for obstructing a way or a watercourse.	Three years ..	The date of the obstruction.
38.—For compensation for diverting a water course.	[1][Three years]	The date of the diversion.
39.—For compensation for trespass upon immoveable property.	[1][Three years]	The date of the trespass.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

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THE FIRST SCHEDULE.—contd.

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VI.—Threeyears—contd.	
40.—For compensation for infringing copyright or any other exclusive privilege.	[1][Three years]	The date of the infringement.
41.—To restrain waste ..	[1][Three years]	When the waste begins.
42.—For compensation for injury caused by an injunction wrongfully obtained.	[1][Three years]	When the injunction ceases.
43.—Under the [2][Succession Act, 1925 (XXXIX of 1925), section 360 or section 361,] to compel a refund by a person to whom an executor or administrator has paid a legacy or distributed assets.	[1][Three years]	The date of the payment or distribution.
44.—By a ward who has attained majority, to set aside a transfer or property by his guardian.	[1][Three years]	When the ward attains majority.
[3] * * *	*	* * *

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[2] Subs. by the Repealing and Amending Act, 1930 (8 of 1930), s.2 and First Sch., for "Indian Succession Act, 1865, section 320 or section 321, or under the Probate and Administration Act, 1881, section 139 or section 140".
[3] Articles 45 and 46 omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Second Sch.

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Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VI.—Three years-contd.	
47.—By any person bound by an order respecting the possession of immoveable property made under the Code of Criminal Procedure, 1898 (V of 1898), [2]* * * or by any one claiming under such person, to recover the property comprised in such order.	[1][Three years]	The date of the final order in the case.
48.—For specific moveable property lost or acquired by theft, or dishonest mis-appropriation or conversion, or for compensation for wrongfully taking or detaining the same.	[1][Three years]	When the person having the right to be possession of the property first learns in whose possession it is.
[3][48A.—To recover moveable property conveyed or bequeathed in trust, deposited or pawned, and afterwards bought from the trustee, depositary or pawnee for a valuable consideration.	Three years ..	When the sale becomes known to the plaintiff.
[3][48B.—To set aside sale of moveable property comprised in a Hindu, Muhammadan or Buddhist religious or charitable endowment, made by a manager thereof for a valuable consideration.	Three years ..	When the sale becomes known to the plaintiff.]

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[2] The words, commas and figures "or the Mamlatdars' Courts Act, 1906," omitted by A.O., 1949.
[3] Entries 48A and 48B ins. by the Indian Limitation (Amdt.) Act, 1929 (1 of 1929), s.3.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VI.—Three years—contd.	
49.—For other specific moveable property, or for compensation for wrongfully taking or injuring or wrongfully detaining the same.	[1][Three years]	When the property is wrongfully taken or injured, or when the detainer's possession becomes unlawful.
50.—For the hired of animals, vehicles, boats or household furniture.	[1][Three years]	When the hire becomes payable.
51.—For the balance of money advanced in payment of goods to be delivered.	[1][Three years]	When the goods ought to be delivered.
[2]52.—For the price of goods sold and delivered, where no fixed period of credit is agreed upon.	[1][Three years]	The date of the delivery of the goods.
[2]53.—For the price of goods sold and delivered to be paid for after the expiry of a fixed period of credit.	[1][Three years]	When the period of credit expires.
54.—For the price of goods sold and delivered to be paid for by a bill of exchange, no such bill being given.	[1][Three years]	When the period of the proposed bill elapses.
55.—For the price of trees or growing crops sold by the plaintiff to the defendant where no fixed period of credit is agreed upon.	[1][Three years]	The date of the sale.
56.—For the price of work done by the plaintiff for the defendant at his request, where no time has been fixed or payment.	[1][Three years]	When the work is done.
[2]57.—For money payable for money lent.	[1][Three years]	When the loan is made.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[2] For period of limitation for these and certain other suits in the Province of the Punjab, see the Punjab Loans Limitation Act, 1904 (Punjab 1 of 1904), and s.29 (1) (b) of this Act.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VI.—Three years—contd.	
58.—Like suit when the lender has given a cheque for the money.	[1][Three years]	When the cheque is paid.
[2]59.—For money lent under an agreement that it shall be payable on demand.	[1][Three years]	When the loan is made.
60.—For money deposited under an agreement that it shall be payable on demand, including money of a customer in the hands of his banker so payable.	[1][Three years]	When the demand is made.
[2]61.—For money payable to the plaintiff for money paid for the defendant.	[1][Three years]	When the money is paid.
62.—For money payable by the defendant to the plaintiff for money received by the defendant for the plaintiff's use.	[1][Three years]	When the money is received.
[2]63.—For money payable for interest upon money due from the defendant to the plaintiff.	[1][Three years]	When the interest becomes due.
[2]64.—For money payable to the plaintiff for money found to be due from the defendant to the plaintiff on accounts stated between them.	[1][Three years]	When the accounts are stated in writing signed by the defendant or his agent duly authorized in this behalf, unless where the debt is, by a simultaneous agreement in writing signed as aforesaid, made payable at a future time, and then when that time arrives.
[3][64A.—Under Order XXXVII of the Code of Civil Procedure.	Three years	When the debt becomes payable.].

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[2] See foot-note1 under article 52, supra.
[3] Articles 64A ins. by the Civil Procedure and Limitation (Amdt.) Ordinance, 1961 (9 of 1961), s.3.

THE FIRST SCHEDULE.—contd.

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VI.—Three years—contd.	
65.—For compensation for breach of a promise to do anything at a specified time, or upon the happening of a specified contingency.	[1][Three years]	When the time specified arrives or the contingency happens.
[2]66.—On a single bond, where a day is specified for payment.	[1][Three years]	The day so specified.
[2]67.—On a single bond, where no such day is specified.	[1][Three years]	The date of executing the bond.
[2]68.—On a bond subject to a condition.	[1][Three years]	When the condition is broken.
[2]69.—On a bill of exchange or promissory note payable at a fixed time after date.	[1][Three years]	When the bill or note falls due.
[2]70.—On a bill of exchange payable at sight or after sight, but not at a fixed time.	[1][Three years]	When the bill is presented.
[2]71.—On a bill of exchange accepted payable at a particular place.	[1][Three years]	When the bill is presented at that place.
72.—On a bill of exchange or promissory note payable at a fixed time after sight or after demand.	[1][Three years]	When the fixed time expires.
73.—On a bill of exchange or promissory note payable on demand and not accompanied by any writing restraining or postponing the right to sue.	[1][Three years]	The date of the bill or note.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[2] See foot-note 1 under article 52, supra.

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VI.—Three years—contd.	
74.—On a promissory note or bond payable by instalments.	[1][Three years]	The expiration of the first term of payment as to the part then payable; and for the other parts the expiration of the respective terms of payment.
75.—On a promissory note or bond payable by instalments, which provides that if default be made in payment of one or more instalments, the whole shall be due.	[1][Three years]	When the default is made, unless where the payee or obligee waives the benefit of the provision, and then when fresh default is made in respect of which there is not such waiver.
[2]76.—On a promissory note given by the maker to a third person to be delivered to the payee after a certain event should happen.	[1][Three years]	The date of the delivery to the payee.
[2]77.—On a dishonoured foreign bill where protest has been made and notice give.	[1][Three years]	When the notice is given.
[2]78.—By the payee against the drawer of a bill of exchange which has been dishonoured by non-acceptance.	[1][Three years]	The date of the refusal to accept.
[2]79.—By the acceptor of an accommodation – bill against the drawer.	[1][Three years]	When the acceptor pays the amount of the bill.
[2]80.-Suit on a bill of exchange, promissory note or bond not herein expressly provided for.	[1][Three years]	When the bill, note or bond becomes payable.
81.—By a surety against .. the principal debtor.	[1][Three years]	When the surety pays the creditor.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[2] See foot-note 1 under article 52, supra.

THE FIRST SCHEDULE.—contd.

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VI.—Three years—contd.	
82.—By a surety against a co-surety.	[1][Three years]	When the surety pays any thing in excess of his own share.
83.—Upon any other contract to indemnify.	[1][Three years]	When the plaintiff is actually damnified.
84.—By an attorney or vakil for his cost of a suit or a particular business, there being no express agreement as to the time when such costs are to be paid.	[1][Three years]	The date of the termination of the suit or business, or (Where the attorney or vakil property discontinues the suit or business) the date of such discontinuance.
85.—For the balance due on a mutual, open and current account, where there have been reciprocal demands between the parties.	[1][Three years]	The close of the year in which the last item admitted or proved is entered in the account; such year to be computed as in the account.
86.—[2][*(a)* On a policy of insurance when the sum insured in payable after proof of the death has been given to or received by the insurers.	[1][Three years]	[2][*(a)* The date of the death of the deceased.
(b) On a policy of insurance when the sum insured is payable after proof of the loss has been given to or received by the insurers.]		(b) The date of the occurrence causing the loss.]
87.—By the assured to recover premia paid under a policy voidable at the election of the insurers.	[1][Three years]	When the insurers elect to avoid the policy.
88.—Against a factor for an account.	[1][Three years]	When the account is during the continuance of the agency, demanded and refused or, where no such demand is made when the agency terminates.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[2] Subs. for the original entry, by s. 122 of the Insurance Act, 1938 (4 of 1938), as a mended by the Insurance (Amdt.) Act, 1941 (13 of 1941), s. 68.

THE FIRST SCHEDULE.—contd.

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VI.—Three years—contd.	
89.—By a principal against his agent for moveable property received by the latter and not accounted for.	[1][Three years]	Ditto.
90.—Other suits by principals against agents for neglect or misconduct.	[1][Three years]	When the neglect or misconduct becomes known to the plaintiff.
91.—To cancel or set aside an instrument not otherwise provided for.	[1][Three years]	When the facts entitling the plaintiff to have the instrument cancelled or set aside become known to him.
92.—To declare the forgery of an instrument issued or registered.	[1][Three years]	When the issue or registration becomes known to the plaintiff.
93.—To declare the forgery of an instrument attempted to be enforced against the plaintiff.	[1][Three years]	The date of the attempt.
94.—For property which the plaintiff has conveyed while insane.	[1][Three years]	When the plaintiff is restored to sanity, and has knowledge of the conveyance.
95.—To set aside a decree obtained by fraud, or for other relief on the ground of fraud.	[1][Three years]	When the fraud becomes known to the party wronged.
96.—For relief on the ground of mistake.	[1][Three years]	When the mistake becomes known to the plaintiff.
97.—For money paid upon an existing consideration which afterwards fails.	[1][Three years]	The date of the failure.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

THE FIRST SCHEDULE.—contd.

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VI.—Three years—contd.	
98.—To make good out of the general estate of a deceased trustee the loss occasioned by a breach of trust.	[1][Three years]	The date of the trustee's death, or, if the loss has not then resulted, the date of the loss.
99.—For contribution by a party who has paid the whole or more than his share of the amount due under a joint decree, or by a sharer in a joint estate who has paid the whole or more than his share of the amount of revenue due from himself and his co-sharers.	[1][Three years]	The date of the payment in excess of the plaintiff's own share.
100.—By a co-trustee to enforce against the estate of a deceased trustee a claim for contribution.	[1][Three years]	When the right to contribution accrues.
101.—For a seaman's wages.	[1][Three years]	The end of the voyage during which the wages are earned.
102.—For wages not other wise expressly provided for by this schedule.	[1][Three years]	When the wages accrue due.
103.— By a [2][Muslim] for exigible dower *(mu'ajjal).*	[1][Three years]	When the dower is demanded and refused or (where, during the continuance of the marriage no such demand has been made, when the marriage is dissolved by death or divorce.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
2 Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".

THE FIRST SCHEDULE.—contd.

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VI.—Three years—contd.	
104. —By a [1][Muslim] for deferred dower *(mu'wajjal)*.	[2][Three years]	When the marriage is dissolved by death or divorce.
105. —By a mortgagor after the mortgage has been satisfied, to recover surplus collections received by the mortgagee.	[2][Three years]	When the mortgagor re-enters on the mortgaged property.
106. —For an account and a share of the profits of a dissolved partnership.	[2][Three years]	The date of the dissolution.
107. —By the manager of a joint estate of an undivided family for contribution, in respect of a payment made by him on account of the estate.	[2][Three years]	The date of the payment.
108. —By a lessor for the value of trees cut down by his lessee contrary to the terms of the lease.	[2][Three years]	When the trees are cut down.
109. —For the profits of immoveable property belonging to the plaintiff which have been wrongfully received by the defendant.	[2][Three years]	When the profits are received.
110. —For arrears of rent .. 111.—	[2][Three years]	When the arrears become due.
By a vendor of immoveable property for personal payment of unpaid purchase money.	[2][Three years]	The time fixed for completing the sale, or (where the title is accepted after the time fixed for completion) the date of the acceptance.
112.—For a call by a company registered under any Statute or Act.	[2][Three years]	When the call is payable.

[1] Subs. by F.A.O., 1975 Art.2 and Table, for "Muhammadan".
[2]Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

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Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VI.—Threeyears—contd.	
113.—For specific performance of a contract.	[1][Three years]	The date fixed for the performance, or, if no such date is fixed, when the plaintiff has notice that performance is refused.
114.—For the rescission of a contract.	[1][Three years]	When the facts entitling the plaintiff to have the contract rescinded first become known to him.
115.—For compensation for the breach of any contract, express or implied, not in writing registered and not herein specially provided for.	[1][Three years]	When the contract is broken, or (where there are successive breaches) when the breach in respect of which the suit is instituted occurs, or (where the breach is continuing) when it ceases.
	Part VII.—Six years.	
116.—For compensation for the breach of a contract in writing registered.	Six years	When the period of limitation would begin to run against a suit brought on a similarly contract not registered.
117.—Upon a foreign judgment as defined in the Code of Civil Procedure, 1908 (V of 1908).	[1][Six years]	The date of the judgment.
118.—To obtain a declaration that an alleged adoption is invalid, or never, in fact, took place.	[1][Six years]	When the alleged adoption becomes known to the plaintiff.
119.—To obtain a declaration that an adoption is valid.	[1][Six years]	When the rights of the adopted son, as such, are interfered with.
120.—Suit for which no period of limitation is provided elsewhere in this schedule.	[1][Six years]	When the right to sue accrues.
	Part VIII—Twelve years.	
121.—To avoid incumbrances or under-tenures in an entire estate sold for arrears of	[1][Twelve years]	When the sale becomes final and conclusive.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

THE FIRST SCHEDULE.—contd.

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VIII.—contd.	
Government revenue, or in a patni taluq or other saleable tenure sold for arrears of rent.	Twelve years	
122.—Upon a judgment obtained in [1][Pakistan], or a recognizance.	[2][Twelve years]	The date of the judgment or recognizance.
123.—For a legacy or for a share of a residue bequeathed by a testator, or for a distributive share of the property of an intestate.	[2][Twelve years]	When the legacy or share becomes payable or deliverable.
124.—For possession of an hereditary office.	[2][Twelve years]	When the defendant takes possession of the office adversely to the plaintiff. *Explanation*.—An hereditary office is possessed when the profits thereof are usually received, or (if there are no profits) when the duties thereof are usually performed.
125.—Suit during the life of a Hindu or [3][Muslim] female by a Hindu or [3][Muslim] who, if the female died at the date of instituting the suit, would be entitled to the possession of land, to have an alienation of such land made by the female declared to be void except for here life or until her remarriage.	[2][Twelve years]	The date of the alienation.

[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch, (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

[2] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

[3] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".

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THE FIRST SCHEDULE.—contd.

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VIII.—Twelve Years—contd.	
126.—By a Hindu governed by the law of the Mitakshara to set aside his father's alienation of ancestral property.	[1][Twelve years]	When the alience takes possession of the property.
127.—By a person excluded from joint family property to enforce a right to share therein.	[1][Twelve years]	When the exclusion becomes known to the plaintiff.
128.—By a Hindu for arrears of maintenance.	[1][Twelve years]	When the arrears are payable.
129.—By a Hindu for a declaration of his right to maintenance.	[1][Twelve years]	When the right is denied.
130.—For the resumption or assessment of rent-free land.	[1][Twelve years]	When the right to resume or assess the land first accrues.
131.—To establish a periodically recurring right.	[1][Twelve years]	When the plaintiff is first refused the enjoyment of the right.
132.—To enforce payment of money charged upon immoveable property.	[1][Twelve years]	When the money sued for becomes due.
[2][*Explanation*.—For the purposes of this article—		
(a) the allowance and fees respectively called *malikana* and *haqqs*, and		
(b) the value of any agricultural or other produce the right to receive which is secured by a charge upon immoveable property, [3][and		

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[2] Subs. by the Indian Limitation (Amdt.) Act, 1927 (1 of 1927), s.4 (1), for the original *Explanation.*
[3] Ins. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (21 of 1929) s. 9.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VIII.— Twelve Years—contd.	
(c) advances secured by mortgage by deposit of title-deeds], shall be deemed to be money charged upon immoveable property.],		
[1]* * *	*	* * *
134.—To recover possession of immoveable property conveyed or bequeathed in trust or mortgaged and afterwards transferred by the trustee or mortgagee for a valuable consideration.	[2][Twelve years]	[3][When the transfer becomes known to the plaintiff.]
[4][134A.—To set aside a transfer of immoveable property comprised in a Hindu, [5][Muslim] or Buddhist religious or charitable endowment, made by a manager thereof for a valuable consideration.	Twelve years	When the transfer becomes known to the plaintiff.
134B.—By the manager of a Hindu, [5][Muslim] or Buddhist religious or charitable endowment to recover possession of immoveable property comprised in the endowment which has been transferred by a previous manager for valuable consideration.	Twelve years	The death, resignation or removal of the transferor.

[1] Article 133 omitted by the Indian Limitation (Amdt.) Act, 1929 (1 of 1929), s.3.
[2] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[3] Subs. by Act 1 of 1929, s.3, for "the date of the transfer".
[4] Articles 134A, 134B and 134C, ins. by the Indian Limitation (Amdt.) Act, 1929 (1 of 1929), s.3.
[5] Subs. by F.A.O., 1975, Art.2 and Table, for "Muhammadan".

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VIII.— Twelve Years—contd.	
134C.—By the manager of a Hindu, [1][Muslim] or Buddhist religious or charitable endowment to recover possession of moveable property comprised in the endowment which has been sold by a previous manager for a valuable consideration.	Twelve years	The death, a resignation or removal of the seller.]
135.—Suit instituted in a Court [2][other than a High Court] by a mortgage for possession of immoveable property mortgaged.	[3][Twelve years]	When the mortgagor's right to possession determine.
136.—By a purchaser at a private sale for possession of immoveable property sold when the vendor was out of possession at the date of the sale.	[3][Twelve years]	When the vendor is first entitled to possession.
137.—Like suit by a purchaser at a sale in execution of a decree when the judgment debtor was out of possession at the date of the sale.	[3][Twelve years]	When the judgment-debtor is first entitled to possession.
138.—Like suit by a purchaser at a sale in execution of a decree, when the judgment debtor was in possession at the date of the sale.	[3][Twelve years]	The date when the sale becomes absolute.
139.—By a landlord to recover possession from a tenant.	[3][Twelve years]	When the tenancy is determined.

[1] Subs. by F.A.O, 1975, Art. 2 and Table, for "Muhammadan".
[2] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., for "not established by Royal Charterl" (*with effect from the 14th October, 1955*).
[3] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part VIII.—Twelve Years—contd.	
140.— By a remainderman, a reversioner (other than a landlord) or a devisee, for possession of immoveable property.	[1][Twelve years]	When his estate falls into possession.
141.— Like suits by a Hindu or [2][Muslim] entitled to the possession of immoveable property on the death of a Hindu or [2][Muslim] female.	[1][Twelve years]	When the female dies.
142.— For possession of immoveable property when the plaintiff while in possession of the property, has been dispossessed or has discontinued the possession.	[1][Twelve years]	The date of the dispossession or discontinuance.
143.—Like suit, when the plaintiff has become entitled by reason of any forfeiture or breach of condition.	[1][Twelve years]	When the forfeiture is incurred or the condition is broken.
[3]* * *	*	* * *
	Part IX.—Thirty years.	
145.—Against a depositary or pawnee to recover	Thirty years	The date of the deposit or pawn.

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[2] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".
[3]Omitted by Act. II of 1995, s.3.

THE PAKISTAN CODE

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part IX.—Thirty Years.—contd.	
moveable property deposited or pawned.		
146.— Before a [1][High Court] in the exercise of its ordinary original civil jurisdiction by a mortgagee to recover from the mortgagor the possession of immoveable property mortgaged.	[2][Thirty years]	When any part of the principal or interest was last paid on account of the mortgage-debt.
146A.—By or on behalf of any local authority for possession of any public street or road or any part thereof from which it has been dispossessed or of which it has discontinued the possession.	[2][Thirty years]	The date of the dispossession or discontinuance.
	Part X.—Sixty years.	
147.— By a mortgagor for foreclosure or sale.	Sixty years	When the money secured by the mortgage becomes due.
148.— Against a mortgagee to redeem or to recover possession of immoveable property mortgaged.	[2][Sixty years]	When the right to redeem or to recover possession accrues : Provided that all claims to redeem arising under instruments of mortgage

[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. for "Court established by Royal Charter" (*with effect from the 14th October, 1955*).
[2] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

THE PAKISTAN CODE

THE FIRST SCHEDULE.—contd.

FIRST DIVISION : SUITS—contd.

Description of suit.	Period of limitation.	Time from which period beings to run.
	Part X.—Sixty Years—contd.	of immoveable property situate in Lower, Burma which had been executed before the first day of May, 1863, shall be governed by the rules of limitation in force in that Province immediately before the same day.
149.—[1][Any suit by or on behalf of the [3][Federal Government] or any [Provincial Government] [4][except a suit before the [5][Supreme Court] in the exercise of its original jurisdiction].	[2][Sixty years] ..	When the period of limitation would begin to run under this Act against a like suit by a private person.

SECOND DIVISION : APPEALS

Description of Appeal.	Period of limitation.	Time from which period begins to run.
150.— Under the Code of Criminal Procedure, 1898 (V of 1898, from a sentence of death passed by a Court of Session [6][or by a High Court in the exercise of its original Criminal Jurisdiction].	[7][Thirty days] ..	The date of the sentence.

[1] The original words "Any suit by or on behalf of the Secretary of State for India in Council," have successively been amended by A.O., 1937, and A.O., 1949, to read as above.
[2] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".
[3] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[4] Ins. by the Indian Limitation (Amdt.) Act, 1937 (14 of 1937), s.2.
[5] Subs. by A.O., 1961, Art. 2 and Sch., for "Federal Court" (*with effect from the 23rd March, 1956*).
[6] Added by the Criminal Procedure Amdt. Act, 1943 (26 of 1943), s.8.
[7] Subs. by the Limitation (Amdt.) Act, 2023, S.2.

THE PAKISTAN CODE

THE FIRST SCHEDULE.—contd.

SECOND DIVISION : APPEALS—contd.

Description of Appeal.		Period of limitation.	Time from which period beings to run.
[1]*	* *	*	* * *
151.—	From a decree or order of [2][a High Court] in the exercise of its original jurisdiction.	Twenty days ..	The date of the decree or order.
152.—	Under the Code of Civil Procedure, 1908 (V of 1908), to the Court of a District Judge.	Thirty days ..	The date of the decree or order appealed from.
153.—	Under the same Code to a High Court from an order of a Sub-ordinate Court refusing leave to appeal to [4][the Supreme Court.]	[3][Thirty days]	The date of the order.
154.—	Under the Code of Criminal Procedure, 1898 (V of 1898), to any Court other than a High Court.	[3][Thirty years]	The date of the sentence or order appealed from.
155.—	Under the same Code to a High Court, except in the cases provided for by article 150 and article 157.	Sixty days ..	The date of the sentence or order appealed from.

[1] Article 150A which was inserted by the Criminal Law Amdt. Act, 1923 (12 of 1923), s. 42 has been omitted by the Criminal law (Extinction of Discriminatory Privileges) Act, 1949 (2 of 1950), s.2 and Sch.

[2] The original words "any of the High Courts of Judicature at Fort William, Madras and Bombay or the Chief Court of the Punjab or the Chief Court of Lower Burma" have successively been amended by the Repealing and Amending Act, 1930 (8 of 1930), A.O., 1937, A.O., 1949 and the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), to read as above.

[3] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

[4] Subs. by .A.O., 1961, Art. 2 and Sch., for "His Majesty in Council" (*with effect from the 23rd March, 1956*).

THE FIRST SCHEDULE.—contd.

SECOND DIVISION : APPEALS—contd.

Description of Appeal.	Period of limitation.	Time from which period beings to run.
156.— Under the Code of Civil Procedure, 1908 (V of 1908), to a High Court, except in the cases provided for by article 151 and article 153.	Ninety days ..	The date of the decree or order appealed from.
157.— Under the Code of Criminal Procedure, 1898 (V of 1898), from an order of acquittal.	Six months ..	The date of the order appealed from.

THIRD DIVISION : APPLICATIONS.

Description of application.	Period of limitation.	Time from which period begins to run.
[1][158.— Under the Arbitration Act, 1940 (X of 1940), to set aside an award or to get an award remitted for reconsideration.	Thirty days ..	The date of service of the notice of filling of the award.]
159.— For leave to appear and defend a suit under summary procedure referred to in section 128 (2)(f) [2][or under Order XXXVII] of the [3][Code of Civil Procedure, 1908 (V of 1908)].	[4][Ten days] ..	When the summons in served.
160.— For an order under the same Code, to restore to the file an application for review	Fifteen days ..	When the application for review is rejected.

[1] Subs. (*from the 1st July, 1940*) by the Arbitration Act, 1940 (10 of 1940), s. 49 (2) and Fourth Sch., for Art. 158 which was previously amended by the Repealing and Amending Act, 1919 (18 of 1919), s.2 and First Sch.
[2] Ins. by the Indian Limitation (Amdt.) Act, 1925 (30 of 1925), s.3
[3] Subs. by Act 10 of 1940, Fourth Sch., for "same Code" (*from 1st July, 1940*).
[4] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First Sch., for "Ditto".

Description of application.		Period of limitation.	Time from which period beings to run.
	rejected in consequence of the failure of the applicant to appear when the application was called on for hearing.		
161.—	For a review of judgment by a [1]* Court of Small Causes [2]* * * or by a Court invested with the jurisdiction of a [1]* Court of Small Causes when exercising that jurisdiction.	[3][Fifteen days]	The date of the decree or order.
162.—	For a review of judgment by [4][a High	Twenty days	The date of the decree or order.

[1] The word "provincial" omitted by the Berar Laws Act, 1941 (4 of 1941), s.2 and Third Sch. (*with effect from the 1st August, 1941*).

[2] The parentheses and words "(other than Presidency Small Cause Court)" which were ins. ibid. (*with effect from the 1st August, 1941*), have been omitted by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s.3 and Second Sch.

[3] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and 1st Sch., for "Ditto".

[4] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955), for "any of *[the following Courts, namely] the †[High Court of East Bengal, the High Court, at Lahore] and the Chief Court of Sind".* Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s.2 and First Sch. *The original words were "High Courts of Judicature at Fort William, Madras, and Bombay or the Chief Court of the Punjab or the Chief Court of Lower Burma". The Sind Courts (Supplementary) Act, 1926 (34 of 1926) which was to come into force on the commencement of the Sind Courts Act, 1926 (Bom. 7 of 1926), directed the insertion of the words "or the Chief Court of Sind" after the word "Bombay". Though this amendment had not come into force the words "Bombay, Lahore and Rangoon and the Chief Court of Sind" were subs. for the words "and Bombay or the Chief Court of Sind or the Chief Court of the Punjab or the Chief Court of Lower Burma" by Act 10 of 1927, s.2 and First Sch. for the words "Lahore and Rangoon".

THE FIRST SCHEDULE.—contd.

THIRD DIVISION : APPLICATIONS—contd.

Description of application.	Period of limitation.	Time from which period beings to run.
Court] in the exercise of its original jurisdiction.		
[1]* *	* *	* * *
163.— By a plaintiff, for an order to set aside a dismissal for default of appearance or for failure to pay costs of service of process or to furnish security for costs.	Thirty days ..	The date of the dismissal.
164.— By a defendant, for an order to set aside a decree passed *ex parte*.	[2][Thirty days] ..	The date of the decree or where the summons was not duly served, when the applicant has knowledge of the decree.
165.— Under the Code of Civil Procedure, 1908 (V of 1908) by a person dispossessed of immoveable property and disputing the right of the decree holder or purchaser at a sale in execution of a decree to be put into possession.	[2][Thirty days] ..	The date of the dispossession.

the words "Lahore, Rangoon and Nagpur" were subs. by the C.P. Courts (Supplementary) Act, 1935 (8 of 1935), s.2 and Sch., and the word "Rangoon" was omitted by A.O., 1937. Lastly A.O., 1949, substituted "High Courts of Judicature at Fort William, Madras, Bombay, Lahore and Nagpur" by "High Court of East Bengal, the High Court at Lahore".

[1] Article 162A as ins. by the Limitation (Amdt.) Ordinance, 1962 (43 of 1962), s.5 has been omitted by the Limitation (Amdt.) Act, 1965, (11 of 1965), s.2.

[2] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First[t] Sch., for "Ditto".

THE PAKISTAN CODE

THIRD DIVISION : APPLICATION—contd.

Description of application.		Period of limitation.	Time from which period beings to run.
166.—	Under the same Code to set aside a sale in execution of a decree [1][including any such application by a Judgment-debtor.]	[2][Thirty days] ..	The date of the sale.
167.—	Complaining of resistance or obstruction to delivery of possession of immoveable property decreed or sold in execution of a decree.	[2][Thirty days] ..	The date of the resistance or obstruction.
168.—	For the readmission of an appeal dismissed for want of prosecution.	[2][Thirty days] ..	The date of the dismissal.
169.—	For the re-hearing of an appeal heard *ex parte*.	[2][Thirty days] ..	The date of the decree in appeal, or, where notice of the appeal was not duly served, when the applicant has knowledge of the decree.
170.—	For leave to appeal as a pauper.	[2][Thirty days] ..	The date of the decree appealed from.
171.—	Under the Code of Civil Procedure, 1908 (V of 1908), [3][by the legal representative of a deceased plaintiff or defendant for setting aside an order or Judgment made or pronounced in his absence].	Sixty days..	[4][The date of the order or judgment]
172.—	Under the same Code by the assignee or the receiver of an insolvent plaintiff or appellant for an order to set aside the dismissal of a suit or an appeal.	[2][Sixty days] ..	The date of the order of dismissal.

[1] Ins. by the Indian Limitation (Amdt.) Act, 1927 (1 of 1927), s.4 (2).
[2] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), s.2 and First, Sch., for "Ditto".
[3] Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch., for "an order to set aside an abatement".
[4] Subs. *ibid*., s.2 and Sch., for "the date of the abatement".

THE PAKISTAN CODE

THE FIRST SCHEDULE.—contd.

THIRD DIVISION : APPLICATIONS —contd.

Description of application.	Period of limitation.	Time from which period beings to run.
173.— For a review of judgment except in the cases provided for by article 161 and article 162.	Ninety days ..	The date of the decree or order.
174.— For the issue of a notice under the same Code, to show cause why any payment made out of Court of any money payable under a decree or any adjustment of the decree should not be recorded as certified.	[1][Ninety days]	When the payment or adjustment is made.
175.— For payment of the amount of a decree by installments.	Six months ..	The date of the decree.
176.— Under the same Code to have the legal representative of a deceased plaintiff or of a deceased appellant made a party.	[2][Ninety days]	The date of the death of the deceased plaintiff or appellant.
177.— Under the same Code to have the legal representative of a deceased defendant or of a deceased respondent made a party.	[1][Ninety days]	The date of the death of the deceased defendant or respondent.
[3][178.—Under the Arbitration Act, 1940 (X of 1940), for the filling in Court of an award.	Ninety days ..	The date of service of the notice of making of the award].

[1] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), for "Ditto".
[2] Subs. by the Indian Limitation and Code of Civil Procedure (Amdt.) Act, 1920 (26 of 1920), s.2, for "Ditto".
[3] Subs. by the Arbitration Act, 1940 (10 of 1940), Fourth Sch., for the original Art. 178 (*with effect from the 1st July, 1940*).

THE PAKISTAN CODE

THE FIRST SCHEDULE.—contd.

THIRD DIVISION : APPLICATION—contd.

Description of application.	Period of limitation.	Time from which period beings to run.
179.— By a person desiring to appeal under the [1][Code of Civil Procedure, 1908 (V of 1908)] to [2][the Supreme Court] for leave to appeal.	[3][Ninety days]	The date of the decree appealed from.
180.— By a purchaser of immoveable property at a sale in execution of a decree for delivery of possession.	Three years ..	When the sale becomes absolute.
181.— Applications for which no period of limitation is provided elsewhere in this schedule or by section 48 of the Code of Civil Procedure, 1908 (V of 1908).	[4][Three years]	When the right to apply accrues.
[5]* * *	*	* * *
183.— To enforce a judgment, decree or order of any [6][High Court] in the exercise of its ordinary original civil jurisdiction, or an	[7][Six years] ..	When a present right to enforce the judgment, decree or order accrues to some person capable of releasing the right :

[1] Subs. by the Arbitration Act, 1940 (10 of 1940), Fourth Sch., for "same Code" (*with effect from the 1st July, 1940*).
[2] Subs. by A.O., 1961, Art. 2 and Sch. for "His Majesty in Council" (*with effect from the 23rd March, 1956*).
[3] Subs. by the Indian Limitation and Code of Civil Procedure (Amdt.) Act, 1920 (26 of 1920), s.2, for "Ditto".
[4] Subs. by the Repealing and Amending Act, 1923 (11 of 1923), for "Ditto".
[5] Article 182 omitted by the Law Reforms Ordinance, 1972 (12 of 1972) s.2 and Sch., which was previously amended by Ord. 43 of 1962, s.5.
[6] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. for "Court established by Royal Charter" (*with effect from the 14th October, 1955*).
[7] Subs. by the Law Reforms Ordinance, 1972 (12 of 1972), s.2 and Sch., for "Twelve years".

THE FIRST SCHEDULE.—contd.

THIRD DIVISION : APPLICATION—contd.

Description of application.	Period of limitation.	Time from which period beings to run.
order of [1][the supreme Court].		Provided that when the judgment, decree or order has been revived, or some part of the principal money secured thereby, or some interest on such money has been paid, or some acknowledgment of the right thereto has been given in writing signed by the person liable to pay such principal or interest or his agent, to the person entitled thereto or his agent, the twelve years shall be computed from the date of such revivor, payment or acknowledgment or the latest of such revivors, payments or acknowledgments, as the case may be.

THE SECOND SCHEDULE.—[TERRITORIES REFERRED TO IN SECTION 31.] Rep. by the Repealing and Amending Act, 1930 (VIII of 1930), s.3 and Second Schedule.

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THE THIRD SCHEDULE.—[ENACTMENTS REPEALED.]
Rep. by the Second Repealing and Amending Act, 1914 (XVII of 1914), s.3 and Second Schedule.

THE PAKISTAN CODE

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[1] Subs. by F.A.O. 1961, Art. 2 and Sch., for "His Majesty in Council" (*with effect from the 23rd March, 1956*).

THE MAJORITY ACT, 1875

CONTENTS

Preamble

1. Short title
   Local extent
   Commencement and operation

2. Savings

3. Age of majority of persons domiciled in Pakistan

4. Age of majority how computed

THE PAKISTAN CODE

THE MAJORITY ACT, 1875

[1]ACT No. IX OF 1875

[*2nd March*, 1875]

An Act to amend the Law respecting the age of majority

Preamble. WHEREAS, in the case of person domiciled in [2][Pakistan], it is expedient to prolong the period of nonage, and to attain more uniformity and certainty respecting the age of majority than now, exists; It is hereby enacted as follows:—

1. Short title.—This Act may be called the [3]* Majority Act, 1875.

Local extent. [4][It extends to the whole of Pakistan;

Commencement and operation. and it shall come into force and have effect only on the expiration of three months from the passing thereof.

2. Savings. Nothing herein contained shall affect—

(a) the capacity of any person to act in the following matters (namely), marriage, dower, divorce and adoption;

(b) the religion or religious rites and usages of any class of [5][citizens of] [6][Pakistan]; or

[7]* * * * * * *

3. Age of majority of persons domiciled in Pakistan. Subject as aforesaid, [8][every minor of whose person or property or both a guardian, other than a guardian for a suit within the meaning of [9][Order XXXII of the First Schedule to the Code of Civil Procedure, 1908 (Act V of 1908)], has been or shall be appointed or declared by any Court of Justice before the minor has attained the age of eighteen years, and every minor of whose property the superintendence has been or shall be assumed by any Court of Wards before the minor has attained that age] shall, notwithstanding anything contained in. the [10][Succession Act, 1925 (XXXIX of 1925)] or in any other enactment, be deemed to have attained his majority when he shall have completed his age of twenty-one years and not before.

THE PAKISTAN CODE

[1]For the Statement of Objects and Reasons, *see* Gazette of India. 1874. Pt. V, p. 153; for Proceedings in Council, *see ibid.,* Supplement, p. 668, and Extra Supplement, dated 12th May, 1874, p.4, and *ibid.,* 1875, Supplement. p.333.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications, *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has been extended to the Excluded Area of Upper Tanawal other than (N.W.F.P.) Phulera by the N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from 1st June, 1951, *see* N.W.F.P. Gazette, Extraordinary, dated 1st June. 1951.
This Act has been declared to be in force in Balochistan, by the British Balochistan Laws Regulation, 1913 (2 of 1913).
It has been extended to the Leased Areas of Balochistan. *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and also applied in the Federated Areas of Balochistan *see* Gazette of India, 1937, Pt. I, p. 1499.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd sch., *(with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "British India".
[3]The word "Indian" omitted by A.O., 1949, Sch.
[4]Tbe original para. as amended by A.O. 1937, A.O., 1949. Arts. 3(2) and 4, and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and III Sch., has been subs. by Ord. 21 of 1960. s. 3 and 2nd Sch. (*with effect from the 14th October. 1951*) to read as above.
[5]Subs by A.O., 1961, Art. 2 and Sch: for "Her Majesty's subject in" (*with effect from the 23rd March. 1956*).
[6]Subs by A.O., 1949, Sch., for "India".
[7]C1ause (c) omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and II[nd] Sch.
[8]Subs by the Guardians and Wards Act,1890 (8 of 1890), s. 52, for "every minor of whose person or property a guardian has been or shall be appointed by any Court of Justice, and every minor under the jurisdiction of any Court of Wards".
[9]Subs. by Ord. 27 of 1981, s.3 and 2nd Sch., for "Chapter XXXI of the Code of Civil Procedure".
[10]Subs. *ibid.* for "Indian Succession Act (No. X of 1865)".

Subject as aforesaid, every other person domiciled [1][Pakistan] shall be deemed to have attained his majority when he shall have completed his age of eighteen years and not before.

4. Age of majority how computed. In computing the age of any person, the day on which he was born is to be included as a whole day, and he shall be deemed to have attained majority, if he falls within the first paragraph of section 3, at the beginning of the twenty-first anniversary of that day, and if he falls within the second paragraph of section 3, at the beginning of the eighteenth anniversary of that day.

Illustrations

(*a*) Z is born in [2][Pakistan] on the first day of January [3][1949], and has a [4][Pakistan] domicile. A guardian of his person is appointed by a Court of Justice. Z attains majority at the first moment of the first day of January [5][1970].

(*b*) Z is born in [6][Pakistan] on the twenty-ninth day of February [7][1948] and has a [8][Pakistan] domicile. A guardian of his property is appointed by a Court of Justice, Z attains majority at the first moment of the twenty eighth day of February [9][1969].

(*c*) Z is born on the first day of January [10][1948]. He acquires a domicile in [6][Pakistan]. No guardian is appointed of his person or property by any Court of Justice, nor is he under the Jurisdiction or any Court of Wards. Z attains majority at the first moment of the first day of January [11][1966].

THE PAKISTAN CODE

Date: 16-09-2024

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation", which had been subs. by A.O. 1949. Arts 3(2) and 4 for "British India".
[2]Subs. by Ord. 27 of 1981 s. 3 and 2nd Sch., for "the provinces" which was subs. by A.O. 1949, Sch., for "British India".
[3]Subs. by the Federal Laws (Revision and Declaration) Act. 1951 (26 of 1951), s. 4 and III Sch., for "1850".
[4]Subs. *ibid.,* for "British Indian".
[5]Subs. *ibid., for*"1871".
[6]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and IInd Sch., for "the Provinces" which was subs. by A. O., 1949, Sch., for "British India".
[7]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and III Sch., for "1852)".
[8]Subs. *ibid.,* for "British India".
[9]Subs. *ibid.,* for "1873".
[10]Subs. *ibid.,* for "1850".
[11]Subs. *ibid.,* for "1868".

THE MARRIAGES VALIDATION ACT, 1892

CONTENTS

1. [Commencement.]
2. Definition
3. Validation of irregular marriages
4. Validation of records of irregular marriages
5. Application of Act to marriages under Act V of 1865
6. Penalty for solemnizing irregular marriages

THE PAKISTAN CODE

[1][THE MARRIAGES VALIDATION ACT, 1892]

ACT No. II OF 1892

[29th January, 1892]

An Act to validate certain marriages solemnized under Part VI of the Christian Marriage Act, 1872.

WHEREAS provision is made in Part VI of the Christian Marriage Act, 1872, (XV of1872) for the solemnization of marriages between persons of whom both are Native Christians, but not of marriages between persons of whom one only is a Native Christian;

And whereas persons licensed under section 9 of the said Act have in divers parts of [2][Pakistan] through ignorance of the law, permitted marriages to be solemnized in their presence under the said Part between persons of whom one is a Native Christian and the other is not a Native Christian;

And whereas it is expedient that such marriages, having been solemnized in good faith, should be validated;

It is hereby enacted as follows:–

1. [*Commencement*.] *Rep. by the Repealing and Amending Act, 1914 (10 of 1914).*

2. Definition. In this Act the expression "Native Christian" has the same meaning as in the Christian Marriage Act, 1872 (XV of 1872).

3. Validation of irregular marriages. All marriages which have already been solemnized under Part VI of the Christian Marriage Act, 1872, (XV of 1872) between persons of whom one only was a Native Christian, shall be as good and valid in law as if such marriages had been solemnized between persons of whom both were Native Christians:

Provided that nothing in this section shall apply to any marriage which had been judicially declared to be null and void, or to any case where either of the parties has, since the solemnization of such marriage and prior to the commencement of this Act, contracted a valid marriage.

4. Validation of records of irregular marriages. Certificates of marriages which are declared by the last foregoing section to be good and valid in law, and register-books, and certified copies of true and duly authenticated extracts therefrom, deposited in compliance with the law for the time being in force, in so far as the register-books and extracts relate to such marriages as aforesaid, shall be received as evidence of such marriages as if such marriages had been solemnized between persons of whom both were Native Christians.

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[1]Short title given by the Short Titles Act, 1897 (14 of 1897).
For Statement of Objects and Reasons, see Gazette of India,.1891 , Pt. V. p. 142; for Report of the Select Committee, see ibid., 1892, Pt. V, p, 5 and for Proceedings in Council, see ibid., 1891, Pt. VI, p. 117, and ibid., 1892, Pt. VI, ,p.l1.
This Act has been declared to be in force in Baluchistan by the British Baluchistan Laws Regulation, 1913 (2 of 1913).
It has also been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1953) ; and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.
This Act has been and shall be deemed to have been extended to the whole of Pakistan by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960) , s. 3 and 2nd Sch. (with effect from the 14th October, 1955).
[2]Subs. *ibid*, (*with effect from the 14th October, 1955*) for "the Provinces and the Capital of the Federation" which had been subs, by A. O.,1949, Arts. .3 (2) .and 4, for "British India." .

5. Application of Act to marriages under Act V of 1865. References in this Act to the Christian Marriage Act, 1872, (XV of 1872) shall, so far as may be requisite, be construed as applying also to the corresponding portions of the [1]Indian Marriage Act 1865 (V of 1865)

6. Penalty for solemnizing irregular marriages. If any person licensed under section 9 of the said Act to grant certificates of marriage between Native Christians shall at any time after the commencement of this Act solemnize or affect to solemnize any marriage under Part VI of the said Act or grant any such certificate as therein: mentioned, knowing that one of the parties to such marriage or affected marriage was at the date of such solemnization not a Christian, he shall be liable to have his license cancel1ed, and in addition thereto he shall be deemed to have been guilty of an offence prohibited by section 73 of the said Act, and shall be punishable accordingly.

THE PAKISTAN CODE

Date: 05-09-2024

[1]Rep. (except as to Straits Settlements) by the Christian Marriage Act, 1872 (15 of 1872).

THE MESNE PROFITS AND IMPROVEMENTS ACT, 1855

CONTENTS

1. No person chargeable with rent *bona fide* paid to holder under defective title

2. Value of improvements made by *bona fide* holders under defective titles secured to them

THE PAKISTAN CODE

[1][THE MESNE PROFITS AND IMPROVEMENTS ACT, 1855]

ACT No XI OF 1855

[27th March, 1855]

An Act relating to mesne profits and to improvements made by holders under defective titles [2]* * *.

WHEREAS it is expedient, [2]* * * *to limit the liability for mesne profits* and to secure to *bona fide* holders under defective titles the value of improvements made by them; It is enacted as follows:-

1. [3]No person chargeable with rent *bona fide* paid to holder under defective title. [1]No person shall be chargeable with any rents or profits of any immovable property which he has *bona fide* paid over to any person of whom he *bona fide* held the same, notwithstanding it may afterwards appear that the person to whom such payment was made had no right to receive such rents or profits.

2. Value of improvements made by *bona fide* holders under defective titles secured to them. If any person shall erect any building or make an improvement upon any lands held by him *bona fide* in the belief that he had an estate in fee-simple, or other absolute estate, and such person, his heirs or assigns, or his or their under-tenants, be evicted from such lands by any person having a better title, the person who erected the building or made the improvement, his heirs or assigns, shall be entitled either to have the value of the building or improvement so erected or made during such holding and in such belief, estimated and paid or secured to him or them, or, at the option of the person causing the eviction, to purchase the interest of such person in the lands at the value thereof, irrespective of the value of such building or improvement:

Amount how fixed. Provided that the amount to be paid or secured in respect of such building or improvement shall be the estimated value of the same at the time of such eviction.

3. [*Act to apply only to cases governed by English Law.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance*, 1981 (XXVII of 1981), s. 3 and Sch. II.

THE PAKISTAN CODE

Date: 13-09-2024

[1]Short title given by the Short Titles Act, 1897 (14 of 1897).

The Act has been declared to be in force in all the Provinces and the Capital of the Federation, except the Scheduled Districts, by the Laws Local Extent Act, 1874 (15 of 1874), s. 3.

It has been declared, by notification under s. 3 (a) of the Scheduled Districts Act, 1874 (14 of 1874), to be in force in the following Scheduled Districts, namely:-

Sind. . . .. See Gazette of India, 1880, Pt. I, p. 672.

The Districts of Hazara, Peshawar, Kohat, Bannu, Dera Ismail Khan and Dera Ghazi Khan. [Portions of the Districts of Hazara, Bannu, *Dera Ismail Khan and Dera Ghazi Khan and the Districts of Peshawar and Kohat now form the N.W.F.P., see Gazette of India, 1901, Pt. I, p. 857 and ibid., 1902, Pt. I, p. 575; but its application to that portion of the Hazara District known as Upper Tanawal has been barred by the Hazara (Upper Tanawal) Regulation, 1900 (2 of 1900)]-See* Gazette of India, 1886, Pt. I, p. 48.

[2]Certain words omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II.

[3]The words in italics in the title and in the preamble, together with s. 1 rep. in places to which the Transfer of Property Act, 1882 (4 of 1882), extends or is extended-*See* Act 4 of 1882; s. 2 and Sch.

THE MULTI-UNIT CO-OPERATIVE SOCIETIES ACT, 1942

CONTENTS

1. Short title, extent and application
2. Co-operative societies to which this Act applies registered before commencement of this Act
3. Co-operative societies to which this Act applies registered after commencement of this Act
3A. Co-operative Societies to which this Act applies registered in the Federal Capital
4. Appointment and powers of Central Register of Co-operative Societies
5. Penalty for failure to furnish information required under this Act
6. Power of Federal Government to make rules

THE PAKISTAN CODE

THE MULTI-UNIT CO-OPERATIVE SOCIETIES ACT, 1942

[1]ACT NO. VI OF 1942

[*2nd March, 1942*]

An Act to provide for the incorporation, regulation and winding up of co-operative societies with objects not confined to one Province.

WHEREAS it is expedient to provide for the incorporation, regulation and winding up of co-operative societies with objects not confined to one Province;

It is hereby enacted as follows :—

1. Short title extent and application.—(1) This Act may be called the Multi-unit Co-operative Societies Act, 1942.

[2][(2) It extends to the whole of Pakistan.]

(3) It applies to all co-operative societies with objects not confined to one Province incorporated before the commencement of this Act under the Co-operative Societies Act, 1912, (II of 1912), or under any Act relating to co-operative societies in force in any Province, and to all co-operative societies with objects not confined to one Province to be incorporated after the commencement of this Act.

2. Co-operative societies to which this Act applies registered before commencement of this Act.—(1) A co-operative society to which this Act applies which has been registered in any Province under the law relating to co-operative societies in force in that Province shall be deemed in any other Province to which its objects extend to be duly registered in that other Province under the law there in force relating to co-operative societies, but shall, save as provided in sub-sections (2) and (3), be subject for all the purposes of registration, control and dissolution to the law relating to co-operative societies in force for the time being in the Province in which it is actually registered.

(2) Where any such co-operative society has established before the commencement of this Act or establishes after the commencement of this Act a branch or place of business in a Province other than that in which it is actually registered, it shall, within six months from the commencement of this Act or the date of establishment of the branch or place of business, as the case may be, furnish the Registrar of Co-operative Societies of the Province in which such branch or place of business is situated a copy of its registered bye-laws, and shall at any time it is required to do so by the said Registrar submit any returns and supply any information which the said Registrar might require to be submitted or supplied to him by a co-operative society actually registered in that Province.

[1]For Statement of Objects and Reasons, *see* Gazette of India, 1942, Pt. V, p. 17.
The Act has been applied to Baluchistan, *see* Notification No. 54-F, dated the 9th April, 1942, Gazette of India, 1942, Pt. I, p. 682.
It has been extended to the Leased Areas of Baluchistan by the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950).
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2), as amended by A. O., 1949.

(3) The Registrar of Co-operative Societies of the Province in which a branch or place of business such as is referred to in sub-section (2) is situated may exercise in respect of that branch or place of business any powers of audit and of inspection which he might exercise in respect of a co-operative society actually registered in the Province.

3. Co-operative societies to which this Act applies registered after commencement of this Act.—(1) A society which might, if its objects were confined to one Province, be registered as a co-operative society in any Province under the law relating to co-operative societies in force in that Province, shall, notwithstanding that its objects are not confined to the Province in which its principal place of business is to be situated, be deemed for the purposes of registration as a co-operative society to be situated wholly in that Province, and may be registered by the Registrar of Co-operative Societies of that Province in accordance with the law relating to co-operative societies for the time being in force in that Province, and if so registered shall be deemed in any other Province to which its objects extend to be duly registered in that other Province under the law there in force relating to co-operative societies but shall, save as provided in sub-sections (2) and (3), be subject for all the purposes of registration, control and dissolution to the law relating to co-operative societies in force for the time being in the Province in which it is actually registered.

(2) Where any such co-operative society establishes a branch or place of business in a Province other than that in which it is actually registered, it shall within six months from the date of establishment of the branch or place of business furnish to the Registrar of Co-operative Societies of the Province in which such branch or place of business is situated a copy of its registered bye-laws, and shall at any time it is required to do so by the said Registrar submit any returns and supply any information which the said Registrar might require to be submitted or supplied to him by a co-operative society actually registered in that Province.

(3) The Registrar of Co-operative Societies of the Province in which a branch or place of business such as is referred to in sub-section (2) is situated may exercise in respect of that branch or place of business any powers of audit and of inspection which he might exercise in respect of a co-operative society actually registered in that Province.

[1]**[3A. Co-operative Societies to which this Act applies registered in the Federal Capital.—**(1) A society which might, if its objects were confined to the Federal Capital, be registered as a co-operative society in the Federal Capital under the law relating to co-operative societies in force therein, shall, notwithstanding that its objects are not confined to the Federal Capital, be deemed for the purpose of registration as a co-operative society to be situated wholly in the Federal Capital , and may be registered, in accordance with the law relating to co-operative societies for the time being in force in the Federal Capital, by the Registrar of Co-operative Societies of the Federal Capital appointed by the Federal Government, and if so registered shall be deemed in any Province to which its objects extend to be duly registered in that Province under the law there in force relating to co-operative societies but shall, save as provided in sub-sections (2) and (3), be subject for all the purposes of registration, control and dissolution to the law relating to co-operative societies in force for the time being in the Federal Capital, reference in that law to "Registrar" being construed as a reference to the said Registrar of Co-operative Societies appointed by the Federal Government.

[1]Ins. by the Multi-unit Co-operative Societies (Amdt.) Ordinance, 1979 (5 of 1979),s.2.

(2) Where any such co-operative society establishes a branch or place of business in any Province, it shall within six months from the date of establishment of the branch or place of business furnish to the Registrar of Co-operative Societies of the Province in which such branch or place of business is situated a copy of its registered bye-laws, and shall at any time it is required to do so by the said Registrar submit any returns and supply any information which the said Registrar might require to be submitted or supplied to him by a co-operative society actually registered in that Province.

(3) The Registrar of Co-operative Societies of the Province in which a branch or place of business such as is referred to in sub-section (2) is situated may exercise in respect of that branch or place of business any powers of audit and of inspection which he might exercise in respect of a co-operative society actually registered in that Province.]

4. Appointment and powers of Central Registrar of Co-operative Societies.—(1) The [2][Central] Government may, if it thinks fit, appoint a [2][Central] Registrar of Co-operative Societies.

(2) The [2][Central] Registrar of Co-operative Societies, if appointed, shall exercise in respect of any co-operative society to which this Act applies, to the exclusion of Provincial Registrars, the powers and functions exercisable by the Registrar of Co-operative Societies of the Province in which such society is actually registered.

5. Penalty for failure to furnish information required under this Act. If any co-operative society fails to furnish the information which it is required to furnish by or under sub-section (2) of section 2 or sub-section (2) of section 3, or to submit any return required to be submitted under either of those sub-sections, the society, and any officer or member of the society responsible for the failure, shall each be liable to fine which may extend to fifty rupees, and the registration of the society may, at the discretion of the Registrar of Co-operative Societies of the Province in which the society is actually registered, be cancelled.

6. Power of [1][Federal Government] to make rules.—The [2][Federal] Government may, by notification in the official Gazette, make rules for carrying into effect the provisions of this Act.

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[1]Subs by F. A. O., 1975, Art. 2 and Table, for "Central Government".
[2]Subs. for "Central" by pb.A.O.,0.1.00. 1974

THE MUSSALMAN WAKF VALIDATING ACT, 1913

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4. Wakfs not to be invalid by reason of remoteness of benefit to poor, etc.
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THE MUSSALMAN WAKF VALIDATING ACT, 1913

[1]ACT No. VI of 1913

[7th March, 1913]

An Act to declare the rights of Mussalmans to make settlements of property by way of " wakf " in favour of their families, children and descendants.

WHEREAS doubts have arisen regarding the validity of wakfs created by persons professing the Mussalman, faith in favour of themselves, their families, children and descendants and ultimately for the benefit of the poor or for other religious, pious or charitable purposes; and whereas it is expedient to remove such doubts; It is hereby enacted as follows—

1. Short title and extent.— (1) This Act may be called the Mussalman Wakf Validating Act, 1913.

[2][(2) It extends to the whole of Pakistan.]

[3][(3) It shall be deemed to apply to wakfs created before its commencement :

Provided that nothing herein contained shall be deemed in any way to affect any right, title, obligation or liability already acquired, accrued or incurred before the twenty-fifth day of July, 1930.]

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(1) " Wakf " means the permanent dedication by a person professing the [4][Muslim] faith of any property for any purpose recognized by the [4][Muslim] law as religious, pious or charitable.

(2) " Hanafi [4][Muslim] " means a follower of the [4][Muslim], faith who conforms to the tenets and doctrines of the Hanafi school of [4][Muslim] law.

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3. Power of [4][Muslims] to create certain wakfs. It shall be lawful for any person professing the [4][Muslim] faith to create a wakf which in all other respects is in accordance with the provisions of [4][Muslim] law, for the following among other purposes:—

(a) for the maintenance and support wholly or partially of his family, children or descendants, and

(b) where the person creating a wakf is a Hanafi [4][Muslim], also for his own maintenance and support during is lifetime or for the payment of his debts out of the rents and profits of the property dedicated:

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1911, Pt. V, p. 107; for Report of Select Committee, *see ibid*., 1913, Pt. V, p.39; and for Proceedings in Council, see ibid., 1911, Pt. VI, p.402 and ibid., 1913, Pt. VI, pp.29, 65 and 147.
This act has been amended to the extent of Islamabad Capital Territory, *see* Ord. 27 of 1981, s. 5 and 4th Sch.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2) as amended by A.O., 1949, Arts. 3 (2) and 4.
[3]New sub-section (3) added by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Sch. II.
[4]Subs. by F.A.O, 1975, Art. 2 and Table, for "Mussalman" and "Mussalmans".

Provided that the ultimate benefit is in such cases expressly or impliedly reserved for the poor or for any other purpose recognised by the [1][Muslim] law as a religious, pious or charitable purpose of a permanent character.

4. Wakfs not to be invalid by reason of remoteness of benefit to poor, etc. No such wakf shall be deemed to be invalid merely because the benefit reserved therein for the poor or other religious, pious or a permanent nature is postponed until after the extinction of the family, children or descendants of the person creating the wakf.

5. Saving of local and sectarian custom. Nothing in this Act shall affect any custom or usage whether local or prevalent among [1][Muslims] of any particular class or sect.

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Date: 11-09-2024

[1]Subs. by F.A.O, 1975, Art. 2 and Table, for "Mussalman" and "Mussalmans".

THE NATIONAL HIGHWAY AUTHORITY ACT, 1991

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THE NATIONAL HIGHWAY AUTHORITY ACT, 1991

*ACT NO. XI OF 1991

[16th June, 1991]

An Act to establish a National Highway Authority

WHEREAS it is expedient to establish a National Highway Authority for planning, development, operation and maintenance of National Highways and strategic roads and to provide for matters connected therewith or incidental thereto;

It is hereby enacted as follows: —

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the National Highway Authority Act, 1991.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Auditor General" means the Auditor General of Pakistan;

(b) "Authority" means the National Highway Authority established under section 3;

(c) "Board" means the Executive Board of the Authority;

[1][(ca) "CDWP" means the Central Development Working Party;]

[2][(d) "chief executive officer" means the chief executive officer of the Authority;]

(e) "Council" means the National Highway Council;

[1][(ea) "ECNEC" means the Executive Committee of the National Economic Council;]

[2][(eb) "executive member" means a member of the Board;]

[2][(f) "member" means member of the Council;]

[2][(fa) "motorway" means a fully controlled access road designed and built for high speed mobility of motor traffic ensuring international safety standards which

*This Act shall apply to FATA, *vide* S.R.O. No. 488 (I)/ 98, dated 26-5-1998, with certain amendments in sections, 12 and 19. Also applied to NA, vide S.R.O., 446(I)/2000, dated 5-7-2000.
[1]Ins. by Ordinance No. XXXI of 2001, s. 2.
[2]Subs. and ins. by Act No. IX of 2024, s. 2.

does not serve the properties bordering on it except at special points, has separate carriageway for the two directions of traffic separate from each other either by a divided strip not intended for traffic or by other means, does not cross at level with any road, railway, tramway, cycle track or footpath and declared motorway by, the Federal Government by notification in official Gazette and specified in Part III of the Schedule;

(fb) "motorway link road" means a fully controlled access road as described in clause (fa) including slip roads or ramps leading to an from motorways;]

[1][(g) "National Highway" means a highway primarily designed for inter-provincial or cross-border connectivity and placed under the jurisdiction of the Authority by the Federal Government by notification in the official Gazette and specified in Part I of the Schedule or any other strategic road and motorway included in Part II and Part III of the Schedule respectively and declared as such by the Federal Government by notification in the official Gazette;]

[1][(h) "Chairman" means Chairman of the Council;]

(i) "Regulations" means regulations framed under this Act;

(j) "Right of Way" (ROW) means the land acquired for the purpose of construction of a National Highway or any other road assigned to the Authority;

(k) "road" means a road including land within the right of way and all works, such as, carriageways, cartways, footpaths berms, side drains, culverts, bridges, tunnels, fences, posts, sign boards, plantation and lighting arrangements, intersections and medians assigned to the Authority;

(l) "rules" means rules made under this Act; [2][and]

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[1][(la) "Schedule" means the Schedule to this Act;

(lb) "SOE Act" means the State-Owned Enterprises (Governance and Operations) Act, 2023 (VII of 2023);]

[1][(m) "strategic road" means a road having strategic importance or defense requirements not limited to cross-border connectivity as specified in Part II of the Schedule after having been declared as such by the Federal Government by notification in the official Gazette on the recommendations of the Council.]

(n) [1][* * * * * * *]

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[1]Subs. and ins. by Act No. IX of 2024, s. 2.
[2]Added and omitted by Ordinance No. XXXI of 2001, s. 2.

CHAPTER II

ESTABLISHMENT AND MANAGEMENT OF THE AUTHORITY

3. Establishment of National Highway Authority.—(1) As from the commencement of this Act there shall be established for carrying out the purposes of this Act, an Authority to be known as the National Highway Authority.

(2) The Authority shall be a body corporate having perpetual succession and a common seal with power to acquire, hold and dispose of property, and may by its name sue and be sued.

(3) The headquarters of the Authority shall be at Islamabad.

[1][(4) Notwithstanding anything contained in this Act, the SOE Act, including sections 12, 15 and 22 thereof, shall apply to the provisions of this Act and in case of any inconsistency between the provisions of this Act and the SOE Act, the provisions of the SOE Act shall prevail.

(5) The Authority shall be governed by the Council which shall act as the Board as defined in sub-clause (ii) of clause (b) of section 2 of the SOE Act.]

4. Purpose and functions of Authority.—The purpose and functions of the Authority shall be to plan, promote, organise and implement programmes for construction, development operation, repairs and maintenance of [1][national highways, motorways and strategic roads] specially entrusted to it by the Federal Government, or by a Provincial Government or other authority concerned.

[1][5. National Highway Council.—(1) There stands established the National Highway Council consisting of—

S.No.	Membership	Status
(1)	**(2)**	**(3)**
(a)	One of the independent Members appointed by the Federal Government.	Chairman
(b)	Secretary of the Finance Division or his nominee not below the rank of Additional Secretary or equivalent	Member *ex-officio*
(c)	Secretary of the Planning, Development and Special Initiatives Division or his nominee not below the rank of Additional Secretary or equivalent	Member *ex-officio*
(d)	Secretary of the Communications Ministry or his nominee not below the rank of Additional Secretary or equivalent	Member *ex-officio*
(e)	Chief Executive Officer	Member
(f)	Five independent members to be appointed by the Federal Government from private sector, each of whom shall have the requisite skills, competence, knowledge, experience and approach so that the Council as a group includes core competencies and diversity to assist the Authority in achieving its primary and other objectives	Member-(Independent)

[1]Added and Subs. by Act No. IX of 2024, ss.3-5.

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(2) Subject to the provisions of the SOE Act in this behalf, the Federal Government may, by notification in the official Gazette, increase or decrease the number of members of the Council subject to having the independent Members in majority and that the quorum rules are adjusted accordingly.

(3) Subject to the provisions of the SOE Act in this behalf, the general policy direction of the Authority shall vest in the Council.

(4) Not less than fifty percent of total membership of the Council including not less than three independent and one *ex-officio* member shall constitute quorum for a meeting of the Council.

(5) The meeting of the Council shall be presided by the Chairman and in case of his absence the meeting shall be presided by such a member as the Chairman may nominate.

(6) Decisions of the Council shall be taken in accordance with sub-section (2) of section 22 of the SOE Act.

(7) The Council may constitute committees with its chairmanship along with their terms of reference from amongst its members and may assign to it the business on which the committee shall make its recommendations for approval by the Council and quorum for meeting of each such committee shall be fifty percent and a fraction shall be rounded as one member.

(8) The Chairman of the Council shall be responsible for leading the Council and ensuring its effective functioning and continuous development and shall not involve in day-to-day operations of the Authority.]

[1][**6. Powers and function of the Council.**—(1) The Council shall exercise its powers and perform its functions in accordance with the provisions of this Act and the provisions of the SOE Act with regard to a Board being apex body.

(2) In addition to the powers and functions provided for in sub-section (1), the Council shall—

(a) approve five years' plans or such other plans, recommended by the executive board, in consultation with relevant stakeholders for construction and development of national highways, motorways and strategic roads specially entrusted to the Authority by the Federal Government or by a Provincial Government or other entity;

(b) approve the annual maintenance plan recommended by the executive board for national highways, motorways, and strategic roads;

(c) lay down national policies and guidelines to be followed by the Authority in the performance of its functions; and

(d) approve annual development and non-development budget on recommendation of the executive board.]

[1][**7. Executive Board.**—(1) For exercising its powers and performing its functions, the Council shall be assisted by an Executive Board consisting of—

[1]Subs. by Act No. IX of 2024, s

S.No.	Membership	Status
(1)	**(2)**	**(3)**
(a)	Chief executive officer	Chairperson
(b)	Member (Planning) of the Authority	Executive Member
(c)	Member (Engineering) of the Authority	Executive Member
(d)	Member (Aided Projects) of the Authority	Executive Member
(e)	Member (Public Private Partnership Projects) of the Authority	Executive Member
(f)	Member (Finance) of the Authority	Executive Member
(g)	Member (Administration) of the Authority	Executive Member

(2) The chief executive officer shall be the chief executive of the Authority appointed by the Council by the three-fourth majority resolution including vote of *ex-officio* members under a performance-based contract as per the criteria set by Council who shall—

(a) be responsible for the management of the Authority and for its procedures in financial and other matters under delegation from the board and subject to the oversight and directions of the Council;

(b) ensure the proper implementation of strategies and policies approved by the Council; and

(c) put in place appropriate arrangements to ensure that funds and resources are properly safeguarded and are used economically, efficiently and effectively and in accordance with the Authority's plan, the primary objective and all statutory obligations.

(3) The chief executive officer, or in his absence a member of the Executive Board authorized by him on his behalf, shall preside meetings of the Executive Board.

(4) Fifty percent of its total membership shall constitute quorum for meetings of the Board, a fraction shall be rounded as one member.

(5) Decision by majority of the members present and voting shall be construed as decision of the Executive Board.]

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[1][**8. Powers and functions of the Executive Board.**—The executive board shall exercise its powers and perform its functions in accordance with the provisions of this Act, including to—

(a) consider and recommend, in consultation with relevant stakeholders, proposals for schemes and projects;

(b) consider and approve award of contracts for works, services and goods;

(c) recommend the annual maintenance plan for national highways, motorways, and strategic roads;

(d) consider and review progress reports of the Authority;

(e) recommend to the Council for approval annual development and non-development budget;

(f) recommend schemes and projects to be funded through toll and other receipts from operation of national highways, motorways and strategic roads; and

(g) perform such other functions as may be assigned to it by the Council.]

[1]Subs. by Act No. IX of 2024, s. 8.

9. [1][**Chief Executive Officer], his duties, functions and powers.**—(1) The Council shall appoint the [1][Chief Executive Officer] who shall be the Chief Executive of the Authority and shall exercise such powers and perform such functions as may be specified by the Council.

(2) The [1][Chief Executive Officer] shall receive such salary and allowances and be subject to such conditions of service as may be determined by the Council.

[2][(3) The [1][Chief Executive Officer] shall have the power to approve projects of emergent nature, maintenance, rehabilitation and construction affecting traffic movement and safety of structures up to fifty million rupees and to recommend for approval proposals, schemes and projects exceeding fifty million rupees to the Executive Board.

(4) The [1][Chief Executive Officer], on the recommendations of the Executive Board, shall have the power to divert funds from one approved project to another only within a financial year's allocation.]

CHAPTER III
POWERS AND DUTIES OF THE AUTHORITY

10. The powers of the Authority.—(1) The Authority may take such measures and exercise such powers as it considers necessary or expedient for carrying out the purposes of this Act.

(2) Without prejudice to the generality of the powers conferred by sub-section (1), the Authority may for the purpose of carrying out the purposes of this Act—

(i) advice the Federal Government on matters relating to [1][national highways, motorways and strategic roads];

(ii) acquire any land in accordance with legal procedure and obtain and dispose of movable and immovable property or interests therein:

(iii) undertake any work specified in sub-sections (1) and (2) of section 11;

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(iv) incur expenditure on works specified in clause (iii);

(v) procure plant, machinery, instruments and materials required for its use;

(vi) enter into and perform all such contracts as it may consider necessary;

(vii) levy, collect or cause to be collected tolls on [1][national highways, motorways and strategic roads] and such other roads as may be entrusted to it and bridges thereon;

(viii) licence facilities on roads under its control on such terms as it deems fit;

(ix) determine a building line between which and the ROW it shall not be lawful without the consent of the Authority to construct or maintain any structure or make any excavation;

[1]Subs. by Act No. IX of 2024, ss. 9-10.
[2]Added by Ordinance No. XXXI of 2001, s. 7

(x) cause studies, surveys, experiments and technical researches to be made or contribute towards the cost of any such studies, surveys, experiments or technical researches made by any other agency;

(xi) exercise power to award negotiated contracts for projects to be undertaken through Private Sector Financing programme;

(xii) seek and obtain advice and assistance for the preparation and execution of any plan, programme or project;

(xiii) raise funds (local and foreign) through borrowing, floating of bonds, sharing or leasing of assets or any other means, from time to time;

Provided that a foreign loan shall be negotiated in consultation with the relevant Ministry of the Government of Pakistan;

(xiv) perform any other function supplemental, incidental or consequential to the purposes and functions aforesaid [1][; and]

[1][(xv) takeover ROW of the roads declared as [2][national highways, motorways and strategic roads] with the consent of provinces and approval of the Federal Cabinet and Provinces shall simultaneously effect the mutation free of cost and without any liability or condition.]

11. Plans and schemes.—(1) The Authority shall prepare a master plan for the development, construction, operation and maintenance of [2][national highways, motorways and strategic roads] in Pakistan for the approval of the Council.

(2) The Authority may frame a scheme or schemes for all or any of the following matters, namely:—

(i) construction, expansion, operation and development of [2][national highways, motorways and strategic roads];

(ii) research and development in the field of Highways;

(iii) training of the Authority's employees;

(iv) welfare of the Authority's employees; and

(v) any other matter pertaining to the purposes and functions of the Authority or incidental thereto.

12. Powers to eject unauthorized occupants.—Subject to rules, the Authority shall have power to summarily eject any unauthorised occupant of National Highway or strategic road or proposed site thereof and demolish and remove any structure thereon, and to use such force, including police force, as may be necessary for the purpose and to recover the cost thereof from the person responsible for such occupation or obstruction.

[1]Subs. and added by Ordinance No. XXXI of 2001, s. 8.
[2]Subs. by Act No. IX of 2024, ss. 10-11.

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CHAPTER IV

ESTABLISHMENT

13. Appointment of officers, servants etc.—(1) The Authority may from time to time employ such officers and servants, or appoint such experts or consultants, as it may consider necessary for the performance of its functions, on such terms and conditions as it may deem fit.

(2) Notwithstanding any thing contained in sub-section (1), any rules made, or orders or instructions issued, by the Authority, or in the terms and conditions of service of any person employed by or serving under the Authority, the Authority may at any time terminate the services of any person, after giving him not less than sixty days notice or pay for the period by which such notice falls short of sixty days.

(3) Service under the Authority is hereby declared to be service of Pakistan and every person holding a post under the Authority, not being a person who is on deputation to the Authority from any province, shall be deemed to be a civil servant for the purposes of the Service Tribunals Act, 1973.

14. Recruitment and condition of service.—The Authority shall, with the approval of the Council, prescribe the procedure for appointment and terms and conditions of service of its officers and servants.

15. [1][Chief Executive Officer], etc., to be deemed to be public servants.—The [1][Chief Executive Officer], [1][Executive Members], officers and servants of the Authority shall, when acting or purporting to act in pursuance of any of the provisions of this Act, be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (XLV of 1860).

16. Delegation of powers to [1][Chief Executive Officer], etc.—The Authority may by general or special order delegate to the [1][Chief Executive Officer], a [1][Executive Member] or officer of the conditions as it may think fit to impose.

17. Industrial Relations Ordinance, 1969 (XXIII of 1969), not to apply.—Nothing contained in the Industrial Relations Ordinance, 1969 (XXIII of 1969), shall apply to, or in relation to, the Authority.

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18. Persons serving National Highways Board.—(1) Any person on deputation to the National Highways Board immediately before the constitution of the Authority shall, on the constitution of the Authority, be deemed to be on deputation to the Authority on the same terms and conditions of service to which he was entitled in the National Highways Board.

(2) Employees of the National Highways Board immediately before the constitution of the Authority, including a person on deputation to any other organization in Pakistan or abroad, may, on the constitution of the Authority, opt to become an employee of the Authority.

(3) An employee exercising an option under sub-section (2) shall become an employee of the Authority on such terms and conditions as may be prescribed by rules or regulations.

(4) The Federal Government shall contribute to the pension, gratuity and final payment of provident fund of a person absorbed in the Authority under sub-section (3) in accordance with the rules of the Federal Government in force at the time of such absorption.

[1]Subs. by Act No. IX of 2024, ss. 12-13.

19. Authority to be local authority.—The Authority shall be deemed to be a local authority for the purpose of borrowing money under the Local Authorities Loans Act 1914 (IX of 1914).

CHAPTER V

REPORTS AND STATEMENTS

20. Submission of yearly reports and returns, etc.— (1) The Authority shall submit to the Federal Government, as soon as possible after the end of every financial year but before the last day of September next following, a report on the conduct of its affairs for that year.

(2) A copy of the report mentioned in sub-section (1), together with a copy of the audit report, shall be placed by the Federal Government before the National Assembly and the National Assembly shall refer the same to its Committee on Public Accounts for scrutiny and examination.

(3) The Committee on Public Accounts shall scrutinies and examine the reports referred to it under sub-section (2) in the same manner as, and shall in respect thereof, perform the same functions and exercise the same powers as are required by it to be performed and exercised in respect of appropriation accounts of the Federal Government and the report of the Auditor General thereon.

(4) The Federal Government may require the Authority to furnish it with—

(i) any return, statement, estimate, statistics or other information regarding any matter under the control of the Authority; or

(ii) a report on any such matter; or

(iii) a copy of any document in the charge of the Authority;

and the Authority shall comply with every such requisition.

CHAPTER VI

THE PAKISTAN CODE

FINANCE

21. National Highway Authority Fund.—(1) There shall be formed a non-lapsable fund vesting in the Authority known as the "National Highway Authority Fund", to be utilized by the Authority to meet charges in connection with its functions under this Act including the payment of salaries and other remuneration to the Chairman, Members, officers, servants, experts and consultants of the Authority.

(2) The National Highway Authority Fund shall be kept in scheduled banks and shall be operated according to rules and regulations of the Authority.

(3) [1][The National Highway Authority Fund shall have to its credit] all funds received by the Authority from which the Authority can incur expenditure related to its functions including—

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[1]Subs. by Ordinance No. XXXI of 2001, s. 9.

(i) loans obtained from the Federal Government;

(ii) other loans obtained by the Authority;

(iii) grants made by the Federal Government;

(iv) income from tolls;

(v) funds provided by the Federal Government;

(vi) foreign aid, grants and loans negotiated and raised by the Authority;

(vii) all other sums received by the Authority, such as fees, damages costs, refunds, forfeitures, sale proceeds, lease money, rentals and fines;

(viii) income from the sale of assets, land or vehicles; and

(ix) funds from floating bonds, shares or through any other means.

22. Maintenance of accounts.—The Authority shall maintain complete and accurate books of accounts in such forms as may be prescribed by it.

23. Annual statement of accounts.—In the month of January each year, the Authority shall submit to the Federal Government for approval a statement of the estimated receipts and expenditure in respect of the next financial year.

24. Audit.—(1) The accounts of the Authority shall be audited every year by the Auditor-General in such manner as may be prescribed by the Federal Government.

(2) Copies of the audit report shall be sent to the Authority and, with the comments of the Authority, to the Federal Government and shall also be available for public inspection.

(3) The Authority shall carry out any directive issued by the Federal Government for rectification on an audit objection.

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CHAPTER VII

MISCELLANEOUS

25. Recovery of arrears due as arrears of land revenues.— Any sum due to the Authority shall be recoverable as an arrear of land revenue.

26. Land acquisition.—The acquisition of any land or any interest in land for the Authority or for any project under this Act shall be deemed to be acquisition for a public purpose within the meaning of the Land Acquisition Act, 1894 (I of 1894), and the provisions of the said Act shall apply accordingly.

27. Transfer of rights and liabilities.— (1) As from the commencement of this Act all assets and liabilities and all rights and obligations of the National Highways Board and the Directorate General National Highways shall stand transferred to the Authority.

(2) All contracts made by the National Highway Board the Directorate General National Highway shall be deemed to be contracts made by the Authority.

28. Authentication of orders and other instruments of the Authority.—All orders, decisions and other instruments of the Authority shall be authenticated by the signature of the Chairman and any other Member or any officer of the Authority authorised by it in this behalf.

29. Power to enter.—Subject to any regulations made in this behalf, any person generally or specially authorised by the Authority in this behalf may, whenever it is necessary so to do for any of the purposes of this Act at all reasonable times, enter upon any land or premises, and

(i) make any inspection survey, measurement, valuation or enquiry;

(ii) take levels;

(iii) dig or bore into sub-soil;

(iv) set out boundaries and intended lines of work;

(v) mark such levels, boundaries and lines by placing marks and cutting trenches; and

Provided that no such person shall enter any boundary or any enclosed court or garden attached to a dwelling-house except with the consent of the [1][occupant] thereof for obtaining which at least twenty-four hours notice in writing of his intention to do so has been given to the [1][occupant].

30. Indemnity, etc.— (1) Nothing in this Act shall be construed as imposing upon the Authority, either directly or indirectly, any duty enforceable by proceedings before any court.

(2) No suit, prosecution or other legal proceedings shall lie against the Authority, the Chairman or any Member, officer, servant, expert, or consultant of the Authority in respect of any damage caused or likely to be caused or anything done or intended to be done in good faith under this Act or the rules or regulations.

31. Rules.—The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

32. Regulations.—The Authority may make regulations, not inconsistent with the rules, on all matters for which regulations are expedient.

[2][33. Removal of difficulties.—If a difficulty arises in giving effect any of the provisions of this Act, the Federal Government may make such order, not inconsistent with the provisions of this Act and the State-Owned Enterprises (Governance .and Operations) Act, 2023 (VII of 2023), as may appear to be necessary for the purpose of removing the difficulty.]

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[1]Subs. by Ordinance No. XXXI of 2001, s.10.

[2]Subs. by Act No. IX of 2024, s.14.

THE SCHEDULE

[See section 2(g) and (m)]

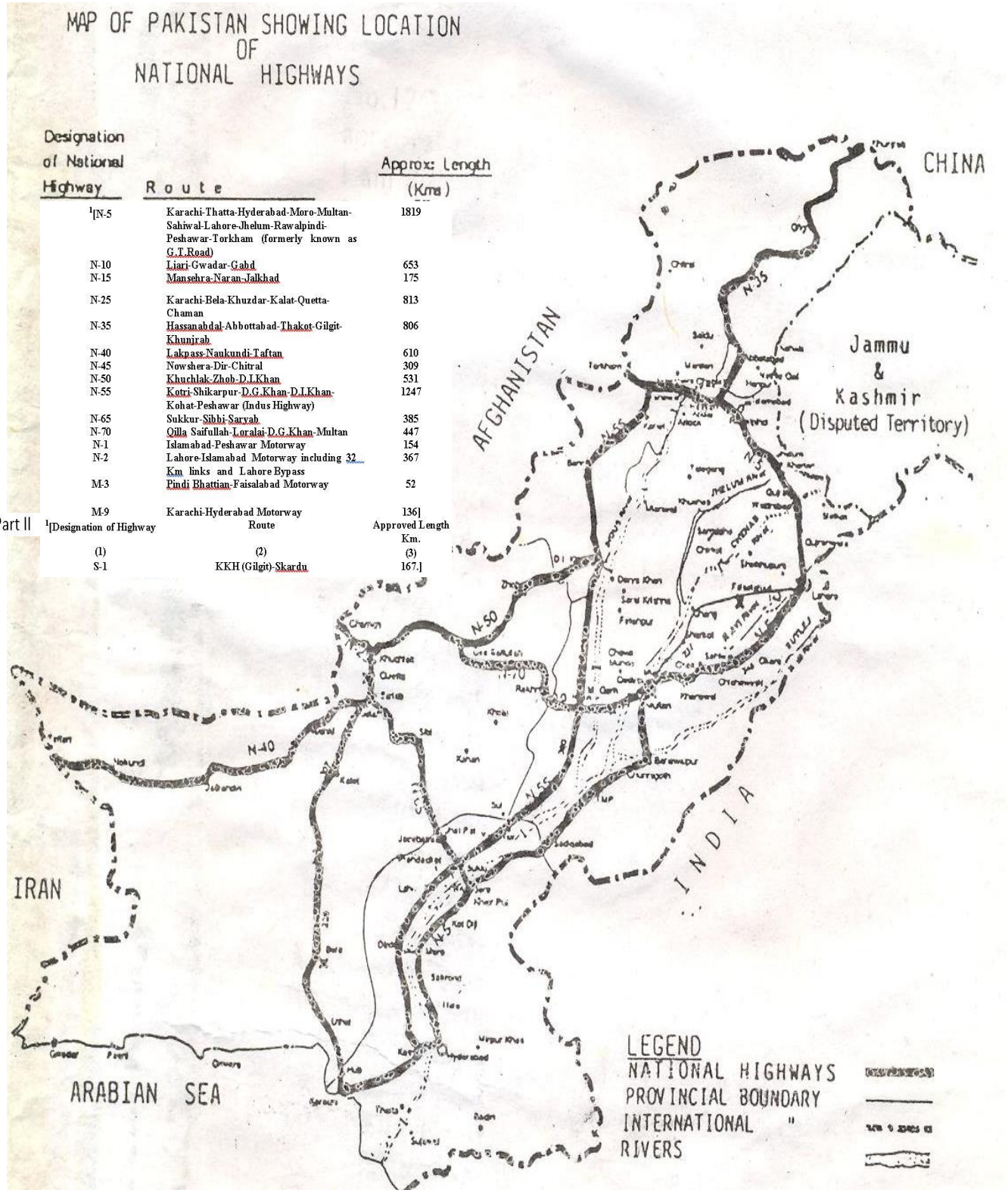
Part - I

MAP OF PAKISTAN SHOWING LOCATION OF NATIONAL HIGHWAYS

Designation of National Highway	Route	Approx: Length (Kms)
[1][N-5	Karachi-Thatta-Hyderabad-Moro-Multan-Sahiwal-Lahore-Jhelum-Rawalpindi-Peshawar-Torkham (formerly known as G.T.Road)	1819
N-10	Liari-Gwadar-Gabd	653
N-15	Mansehra-Naran-Jalkhad	175
N-25	Karachi-Bela-Khuzdar-Kalat-Quetta-Chaman	813
N-35	Hassanabdal-Abbottabad-Thakot-Gilgit-Khunjrab	806
N-40	Lakpass-Naukundi-Taftan	610
N-45	Nowshera-Dir-Chitral	309
N-50	Khuchlak-Zhob-D.I.Khan	531
N-55	Kotri-Shikarpur-D.G.Khan-D.I.Khan-Kohat-Peshawar (Indus Highway)	1247
N-65	Sukkur-Sibhi-Saryab	385
N-70	Qilla Saifullah-Loralai-D.G.Khan-Multan	447
N-1	Islamabad-Peshawar Motorway	154
N-2	Lahore-Islamabad Motorway including 32 Km links and Lahore Bypass	367
M-3	Pindi Bhattian-Faisalabad Motorway	52
M-9	Karachi-Hyderabad Motorway	136]

Part II

[1][Designation of Highway	Route	Approved Length Km.
(1)	(2)	(3)
S-1	KKH (Gilgit)-Skardu	167.]



RGN Date: 03-09-2024

[1]Subs. and Added by Ordinance No. XXXI of 2001, s.12.

THE NATIONAL HIGHWAYS SAFETY ORDINANCE, 2000

ORDINANCE No. XL of 2000

[*2nd September, 2000*]

An Ordinance to provide for safe driving on the national highways

WHEREAS it is expedient to provide for safe driving on the national highways and for matters connected therewith or incidental thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as well as order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance :—

CHAPTER I.—**PRELIMINARY**

1. Short title, extent and commencement:—(1) This Ordinance may be called the National Highways Safety Ordinance, 2000.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definition:— (1) In this Ordinance, unless there is anything repugnant in the subject or context,-

(i) "ambulance" means a vehicle designed for the carriage of sick, wounded or invalid persons or animals;

(ii) "animal drawn vehicle" means a road vehicle designed and constructed primarily for carrying persons or goods and is propelled solely by one or more domestic animals;

(iii) "axle weight" means in relation to an axle of a motor vehicle the total weight transmitted by the several wheels attached to the axle to the surface whereon the vehicle rests;

(iv) "bicycle" means any road vehicle having at least two wheels propelled solely by muscular energy of the person on that vehicle;

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(v) "board" means the Medical Board constituted under sub-section (3) of section 4;

(vi) "carriage-way" means the part of the road normally used by vehicular traffic;

(vii) "certificate of registration" means the certificate issued by a competent authority to the effect that a motor vehicle has been registered in accordance with law for the time being in force;

(viii) "contract carriage" means a road vehicle which carries a passenger or passengers for hire or reward under a contract expressed or implied for the use of the vehicle as a whole at or for a fixed or agreed rate or sum and from one point to another without stopping to pick up or set down along the line of route passengers not included in the contract and includes a motor cab notwithstanding that the passengers may pay separate fares;

(ix) "cycle tract" means the portion of road partitioned by curbings, guardrails and other similar structures or road marking set aside for bicycle passage;

(x) "delivery vehicle" means "any goods vehicle the registered laden weight of which does not exceed twenty-five thousand kilograms.

(xi) "driver" means any person who drives a motor vehicle or an animal drawn vehicle on a national highway;

(xi) "fares" means the amount prescribed or agreed for a journey by a stage carriage and includes sums payable for a season ticket or in respect of the hire of a contract carriage;

(xiii) "footpath" means the portion of a road partitioned by curbings, guardrails and other similar structures or road markings intended for pedestrian passage;

(xiv) "good" include livestock and anything (other than equipment ordinarily used with the vehicle) carried by a vehicle except living persons but does not include luggage or personal effects carried in a road or in a, trailer attached to a vehicle or the personal luggage of passengers traveling in the vehicle;

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(xv) "goods vehicles" means any motor vehicle constructed or adapted for use for the carriage of goods, or any motor vehicle including any animal drawn vehicle not so constructed or adapted when used for the carriage of goods, solely or in addition to passengers;

(xvi) "Government" means the Federal Government;

(xvii) "gross vehicle weight" means load of all axles of a goods vehicle transmitted by several wheels attached to all axles to the surface whereon the wheels rest;

(xviii) "heavy transport vehicle" means a transport vehicle, the registered axle weight of which exceeds five thousand kilograms, or the registered laden weight of which exceeds six thousand five hundred kilograms;

(xix) "intersection" means any level crossroads, junction or fork including the open areas formed by such crossroads, junctions or forks;

(xx) "invalid carriage" means a motor vehicle the unladen weight of which .does not exceed one thousand kilograms specially designed and constructed and not merely adapted, for the use of a person suffering from some physical defect or disability and used solely by or for such a person;

(xxi) "laden weight" means the actual weight of the vehicle as loaded with the crew and passengers and the load carried on it;

(xxii) "Lane" means any one of the longitudinal strips into which the carriage-way is divisible, whether or not defined by longitudinal road markings, which is wide enough for one moving line of motor vehicles other than motor cycles;

(xxiii) "level crossing" means any level intersection between a road and railway;

(xxiv) "licence" means the document issued by a competent authority authorizing the person specified therein to drive a motor vehicle of any specified class or description or any animal drawn vehicle;

(xxv) "licensing authority" means an authority empowered to grant licences under this Ordinance;

(xxvi) "light transport vehicle" means any public service vehicle other than a motor cab, or any goods vehicle other than a heavy transport vehicle or a delivery van;

(xxvii) "locomotive" means a motor vehicle which is itself not constructed to carry any load (other than equipment used for the purpose of propulsion), the unladen weight of which exceeds seven thousand kilograms but does not include a road roller;

(xxviii)"moped" means any two-wheeled or three-Wheeled vehicle which is fitted with an internal combustion engine having a cylinder capacity not exceeding fifty cubic centimeters and maximum design speed not exceeding fifty kilometers per hour;

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(xxix) "motor cab" means any motor vehicle constructed, adapted or used to carry not more than four passengers excluding the driver, used for hire or reward, but does not include a motor cycle, an invalid persons carriage or a moped;

(xxx) "motor car" means any motor vehicle constructed, adapted or used to carry not more than six passengers excluding driver not used for hire or reward but does not include motor cycle, invalid persons carriage or a moped;

(xxxi) "motor cycle" means any two wheeled vehicle, with or without a side car which is equipped with a propelling engine but does not include a moped;

(xxxii) "motor rickshaw" means any motor vehicle with three wheels, constructed, adapted or used to carry not more than four persons including the driver, the unladen weight of which does not exceed eight hundred fifty kilograms;

(xxxiii)"motor vehicle" means any mechanically propelled vehicle which is normally used for carrying persons or goods by road or for drawing, on the road, vehicles used for the carriage of persons or goods;

(xxxiv)"motorway" means a road especially designed and built for motor vehicles which does not serve the properties bordering on it except at special points and has separate carriageways for the two directions of the traffic and does not cross at , level with any road, railway, tramway, cycle track or footpath;

(xxxv) "national highway" means a national highway as defined in the National Highway Authority Act, 1991; (XI of 1991) and includes a road declared to be a national highway under the said Act;

(xxxvi)"overlaking" course means a manoeuvre when a vehicle passes the side of another vehicle by changing its course and then proceeding to the front of the said vehicle;

(xxxvii)"owner" means the person in whose name the road vehicle is registered and includes—

(a) a transferee of the vehicle from such persons;

(b) in relation to a road vehicle which is the subject of a hire purchase agreement, the person in possession of the vehicle under that agreement;

(c) where the person in whose name the road vehicle is registered or the person in possession of the road vehicle under a hire purchase agreement is

(i) a minor, the guardian of such a minor;

(ii) a company registered under the Companies Ordinance, 1984, (XLVII of 1984) the directors of such company;

(iii) a society registered under the Societies Registration Act, 1860, (XXI of 1860) or under any law relating to co-operative societies, the principal officer of such society by whatever designation known;

(iv) a firm, all the partners of such firm ; and

(v) any other association of persons, all the members of such association:

Provided that where such company, firm, society or other association of persons has given notice to the registering authority that it has nominated a director, partners, office-bearer, member or officer, as the case may be, of the company, firm, society or association to be the person nominated shall alone be deemed to be the owner for the purposes of this Ordinance;

(xxxviii) "parking" means that a vehicle is stationary for any reason other than the need to avoid interference with another road user or collision with an obstruction or to comply with traffic regulations, and if the period during which the vehicle is stationary is not limited to the time required to pick up or set down persons or goods;

(xxxix) "passenger" means every person including any employee of the owner or permit-holder traveling in the motor vehicle;

(xl) "pedestrians crossing" means that portion of a road marked by road signs or road markings and set aside for pedestrians to use for crossing the road;

(xli) "patrol post" means a police post on a national highway having jurisdiction within the area specified by the Government;

(xlii) "permit" means the document issued by the Provincial Transport Authority, or a Regional Transport Authority, authorizing the use of a transport vehicle as a contract carriage or stage carriage, or authorizing, the owner as a private carrier to use such vehicle;

(xliii) "police officer" mean a police officer in uniform ;

(xliv) "prescribed" means prescribed by rules made under this Ordinance;

(xlv) "private carrier" means an owner of a transport vehicle other than a public carrier who uses that vehicle solely for the carriage of goods which are his property or the carriage of which is necessary for the purposes of his business not being a business of providing a transport;

(xlvi) "public carrier" means an owner of a transport vehicle who transports or undertakes to transport goods, to any public place whether for hire or reward and includes any person, body, association or company engaged in the business of carrying goods of persons associated with that person, body, association or company for the purposes of having their goods transported;

(xlvii) "public service vehicle" means any road vehicle used or adapted to be used for the carriage of passengers for hire or reward and includes a motor cab or contract carriage;

(xlviii) "registered laden weight" means in respect of any vehicle the total weight certified and registered by the registering authority as permissible for that vehicle;

(xlix) "registering authority" means any authority empowered to register road vehicles under this Ordinance;

(l) "road" means any portion of the strip designed or ordinarily used by vehicular traffic inclusive of shoulders;

(li) "road marking" means a marking which points out restrictions with reference to traffic on a road and the lines of tracks, points and stones drawn on the surface of a road; .

(lii) "road sign" means a sign board which points out a regulation or direction concerning the traffic on a road;

(liii) "road vehicle" means any motor vehicle designed and constructed for operating on road including animal drawn vehicle and bicycle;

(liv) "Schedule" means a Schedule to this Ordinance;

(lv) "shoulder" means that long and narrow portion of ground separate from the vehicular road, at the edge of a road or a roadside where no side-walk is established or set aside as passage for pedestrians or reserved for stoppage of motor vehicles;

(Ivi) "signal" means a device which is operated by electric power and gives indications for traffic control by appropriate lights;

(lvii) "single axle weight" means load of an axle of a goods vehicle transmitted by several wheels attached to that axle to the surface whereon the wheels rest;

(lviii) "stage carrier" means a road vehicle carrying or adapted to carry more than six persons excluding the driver which carries passengers for hire or reward at separate fares paid or for individual passengers either for the whole journey or for stages of the journey;

(lix) "tandem axle weight" means load of a twin-axle (two axles centre-to-centre spaced between forty to forty eight inches) of a goods vehicle transmitted by the several wheels attached to that twin-axle assembly to the surface whereon the wheels rest;

(Ix) "tractor" means motor vehicle which is not itself constructed to carry any load other than equipment used for the purpose of propulsion the unladen weight of which does not exceed seven thousand kilograms but does not include a road-roller;

(lxi) "traffic signs" includes all signals, signs posts or other devices for the information, guidance or direction of divers of road vehicles;

(lxii) "trailer" means any vehicle other than a side-car and intended to be drawn by a goods vehicle for the carriage of goods;

(Ixiii) "transport vehicle" means a public service vehicle, a goods vehicle, a locomotive or a tractor other than a tractor with or without trailer used solely for agricultural purposes;

(lxiv) "tridem axle weight" means the load of a tri-axle (three axles, the outer two axles centre-to-centre spaced between eighty to ninety-six inches) of a goods vehicle transmitted by the several wheels attached to tri-axle assembly to the surface whereon the wheels rest;

(lxv) "tyre pressure" means inflation pressure of tyres of goods vehicles;

(Ixvi) "unladen weight" means the weight of a vehicle or trailer, including all equipment ordinarily used within the vehicle or trailer when working, but excluding the weight of the driver or attendant; and where alternative parts or bodies are used, the unladen weight of the vehicle means the weight, of the vehicle with the heaviest such alternative part or body;

(lxvii) "weigh station" means stations incorporating static and weigh-in-motion (WIM) devices installed to measure and enforce legal load limits; and

(lxviii) "weight" means the total weight transmitted for the time being by the wheels of a vehicle to the surface on which the vehicle rests.

(2) The words and expressions used, but not defined in this Ordinance, shall have the meanings respectively assigned to them in the Provincial Motor Vehicles Ordinance, 1965. (W.P Ord XIX of 1965.)

CHAPTER II.—LICENSING

3. Prohibition on driving without licence:—No person shall drive a road vehicle or animal drawn vehicle on a national highway unless he holds and carries on his person a valid driving licence issued to drive the particular class and type of vehicle.

4. Age limit in connection with driving of road vehicle:— (1) No person shall drive on a national highway—

(a) a motor cycle or a motor car, otherwise than as a paid employee unless he has attained the age of eighteen years;

(b) a transport vehicle, a public service vehicle, a motor car or an animal drawn vehicle as a paid employee unless he has attained the age of twenty-one years, and

(c) a transport vehicle above the age of sixty years.

(2) No fresh licence for a transport vehicle shall be issued unless the licence bears an effective endorsement by the licensing authority that the person holding such a licence has furnished a certificate in form "B" signed by the Chairman of the Medical Board as specified in the First Schedule..

(3) The Government may constitute Medical Boards as specified in the Second Schedule which shall meet periodically on a pre designated time, day and place to test and certify persons as required under this Ordinance.

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5. Owners of road vehicles not to permit any person to drive in contravention of section 3 or section 4:—No owner or person incharge of a road vehicle shall cause or permit any person, who does not satisfy the provision of section 3 or section 4, to drive any vehicle.

6. Grant of licence:— (1) Any person who is not disqualified under section 4 for driving a road vehicle, and who is not for the time being disqualified for holding or obtaining a licence, may apply to the prescribed licensing authority for the issue of a licence.

(2) Every application under sub-section (1) shall be in Form "A" as set forth in the First Schedule and shall be signed by, or bear the thumb impression of the applicant in two places, and contain the information specified therein.

(3) Where the application is for a licence to drive a transport vehicle, or where in any other case the licensing authority for reasons to be stated in writing so requires, the application shall be accompanied by a medical certificate in Form "B" signed by the Chairman of the Medical Board as laid down in the First Schedule.

(4) Every application for a licence to drive a motor vehicle or an animal drawn vehicle shall be accompanied by three copies of resent passport size photograph of the applicant.

(5) If from the application, or from the medical certificate referred to in sub-section (3), it appears that the applicant is suffering from any disease or disability which is likely to be a source of danger to the public or to the passengers the licensing authority shall refuse to issue the licence, provided that the applicant may, except where he suffers from a disease or disability specified in the Third Schedule, request to be subjected to a test of his fitness or ability to drive a motor vehicle of a particular construction or design, and if he passes such test to the satisfaction of the licensing authority and is not otherwise, disqualified, the licensing authority shall grant him a licence to drive such vehicle as the licensing authority may specify in the licence.

(6) No licence shall be issued to any applicant unless he passes to the satisfaction of the licensing authority the tests of competence specified in the Fourth Schedule and possesses a personal copy of the most recent official version of the Highway and Motorway Code.

(7) The test of competence of driving skills shall be carried out in a vehicle of the class to which the application refers and for the purposes of Part-IV of the Fourth Schedule a person who passes the test in driving-

(a) a heavy transport vehicle shall be deemed to have also passed the test in driving any motor vehicle other than a motorcycle or an earthmoving or road construction machinery; and
(b) a light transport vehicle shall be deemed also to have passed the test in driving a motor car, a motor cab and a delivery van.

(8) No licence shall be issued to any applicant to drive a heavy transport vehicle unless he has held for a period of not less than three years, immediately preceding the making of the application, an effective licence to drive a road vehicle other than a motorcycle, an invalid person's carriage or a road-roller.

(9) When application has been duly made to the prescribed licensing authority and the applicant has satisfied such authority of his knowledge of the signs, rules, physical fitness and of his competence to park and drive the vehicle of the class to which the applicant refers and has paid the prescribed fee, the authority shall grant the applicant a licence unless—

(a) the applicant is disqualified under section 4 for driving a road vehicle or is for the time being disqualified for holding or obtaining a licence;

(b) the licensing authority is satisfied that from the medical test it appears that he is suffering from any disease or disability specified in the Third Schedule or any other disease or disability which is likely to cause the diving by him of a road vehicle to be a source of danger to the public or to the passengers; and

(c) an endorsement refused under clause (a) shall be effective for a period of twelve months from the date thereof but the said period may, from time to time, be extended by the licensing authority by a further period of twelve months at any one time by recording reasons in writing.

7. Form a contents licence:— (1) Every licence to drive a road vehicle shall contain the information required in Form "C" of the First Schedule and shall have affixed thereto one of the photographs along with the signature or thumb impression given on the application for licence.

(2) A licence shall specify whether the holder is entitled to drive as a paid employee and whether he is entitled to drive a public service vehicle and shall further be expressed as entitling the holder to drive a road vehicle of one or more of the following classes, namely:—

(a) Motorcycle upto 80 cc

(b) Motorcycle more than 80 cc

(c) Three wheeler

(d) Invalid person's carriage

(e) Motor car/motor cab

(f) Light transport vehicle

(g) Heavy transport vehicle

(h) Road construction machinery

(i) Tractor/agricultural machinery

(j) A vehicle of a specified description (description to be attached).

8. Additions to licence:— (1) Any person holding a licence issued under this Ordinance who is not for the time being disqualified for holding or obtaining a licence may apply in Form "D", as set forth in the First Schedule, to the licensing authority for the addition of any class of vehicles to the licence specified in sub-section (2) of section 7.

(2) The provisions of section 6 shall apply to an application under this section as if the application were for the grant of a licence under that section to drive the class of vehicle which the applicant desires to be added to his licence.

(3) No fee, other than a fee for the test of competence to drive, shall be charged for an addition to a licence under this section.

9. Extent of validity of licence:—A licence issued under this Ordinance shall be effective throughout Pakistan.

10. Currency of licence:—A licence issued under this Ordinance shall be effective initially for one year and for five years thereafter.

11. Renewal of licence:— (1) The competent authority may, on an application made to it, renew a licence issued under this Ordinance in accordance with the prescribed procedure.

(2) A licence to drive a transport vehicle shall not be renewed so as to be effective for any period after the expiry of five years from the date of the medical certificate furnished by the licence

holder under section 4 unless he furnishes a fresh medical certificate in Form "B" as specified in the First Schedule.

(3) An application for the renewal of a licence shall be in Form "E", as set forth in the First Schedule, and shall contain the declaration required therein provided that if the applicant does not, or is unable to, subscribe to the said declaration, the provision of sub-section (5) of section 6 shall apply.

(4) The fee payable for the renewal of a licence shall be as prescribed and enhanced fee may be prescribed where the application for renewal is made more than thirty days from the date of expiry of the licence:.

Provided that if the application for renewal as made more than one year after the expiry of the licence, the licensing authority may refuse to renew the licence unless the applicant undergoes, and passes to its satisfaction, the test of competence specified in the Fourth Schedule.

(5) When the authority renewing the licence is not the authority which issued the licence it shall intimate the fact of renewal to the authority which issued the licence.

12. Cancellation of licence on grounds of disease or disability:— (1) Notwithstanding anything contained in section 10 or section 11 the licensing authority may, at any time, require the older of a licence—

(a) to furnish a fresh medical certificate in Form "B" as set forth in the First Schedule and signed by the Chairman of the Medical Board as specified in the Fourth Schedule if the licensing authority has reasonable grounds to believe that the holder of the licence is, due to any disease or disability, unfit to drive a road vehicle; and

(b) to undergo driving competence tests as set forth in Parts I to IV of the Fourth Schedule provided he has previously not been subjected to such test under this Ordinance, if he is not a paid employee and if he is a paid employee, the time elapsed is not less than five years. "

(2) If the holder of the licence fails to produce the medical certificate or is unable to pass the test, the licensing authority may cancel or refuse to renew his licence till such time the holder of the licence produces the medical certificate, or passes the test, to the satisfaction of the licensing authority.

(3) When the authority cancelling or refusing to renew the licence is not the authority which issued the licence, it shall intimate the fact of cancellation or refusal to renew the licence to the authority which issued the licence.

13. Order refusing to issue or renew a licence and appeals:— (1) Where the licensing authority refuses to issue or renew a licence or cancels any licence, it shall do so by an order communicated to the applicant or the licence holder, as the case may be, giving reasons in writing for such refusal or cancellation.

(2) Upon the issue of any such order the person affected, if he is the holder of a licence, shall forthwith surrender his licence to the licensing authority and the licensing authority shall, if no appeal is preferred against its order as provided in sub-section (3), or where any appeal has been preferred and dismissed, invalidate the licence or cause it to be invalidated.

(3) Any person aggrieved by an order referred to in sub-section (1) may, within thirty days of the service on him of the order, prefer an appeal to the prescribed authority whose decision thereon shall be final.

14. Power of licencing authority to disqualify for holding a licence:— (1) If a licensing authority is satisfied, after giving an opportunity of being heard, that any person—

(a) is a habitual drug addict;

(b) is a habitual criminal;

(c) is using or has used a motor vehicle in the commission of a cognizable offence;

(d) has by his previous conduct as driver of a road vehicle shown that his driving is likely to be attended with danger to the public; or

(e) is a habitual drunkard,

it may, for reasons to be recorded in writing, by order disqualify that person for a specified period for holding or obtaining a licence. Upon the issue of any such order the person affected, if he is the holder of a licence, shall forthwith surrender his licence to the licensing authority making the order, if the licence has not already been surrendered, and the licensing authority shall record the order of disqualification on the licence and keep it in safe custody until the disqualification has expired or has been removed.

(2) Any person aggrieved by an order of a licensing authority under this section may, within thirty days of the service on him of the order, prefer appeal to the prescribed authority and such appellate authority shall give notice to the licensing authority and hear either party if so required by that party and make such inquiry into the matter as it thinks fit and an order made by any such appellate authority shall be final.

15. Power of court to order disqualification:—The court taking cognizance of any offence under this Ordinance may, in addition to imposing any other punishment authorized by law, disqualify the convict from driving any or all classes of road vehicles for such period as it may specify.

16. Effect of disqualification order:— (1) A person in respect of whom any disqualification order as made under this Ordinance shall be debarred to the extent, and for the period, specified in such order from holding or obtaining a licence and the licence, if any, held by such person on the date of the order shall cease to be effective during such period.

(2) The operation of a disqualification order made under section 15 shall not be suspended or postponed while an appeal is pending against such order or against the conviction as a result of which such order is made unless the appellate court so directs.

(3) Any person in respect of whom any disqualification order has been made for a period longer than six months, may at any time, after expiry of six months from the date of the order, apply to the court or other authority, by which the order was made, to remove the disqualification and the court or authority, as the case may be, having regard to all the circumstances of the case, remove or vary the order of disqualification:

Provided that, where an application has been made under this section, a second application thereunder shall not be entertained before the expiry of a further period of three months.

17. Power to make rules:— (1) The Government may, in consultation- with National Highways and Pakistan Motorway Police, by notification in the official Gazette, make Rules for the purpose of carrying into effect the provisions of this Chapter.

(2) Without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely:—

(a) the appointment, establishment, jurisdiction, control and functions of licensing, renewal and other authorities;

(b) the conduct and hearing of appeals that may be preferred under this Chapter, the fees to be paid in respect of such appeals and the refund of such fees;

(c) the issue of duplicate licence to replace licences lost, destroyed or mutilated, the replacement of photographs which have become absolete and the issuance of temporary licences to persons receiving instruction in driving and the fees to be charged thereof;

(d) testing of applicants for licences, the fees to be charged thereof and conditions of eligibility including educational qualification;

(e) the practical and physical tests as indicated in the Fourth Schedule.

(f) the exemption of persons or prescribed classes of persons from payment of all or any portion of the fees payable under this Chapter.

(g) the authorities which can suspend or cancel a licence; and

(h) the licensing of schools and establishments for the instruction of drivers of motor vehicles, facilities to be provided, fees to be paid, syllabus to be taught and qualifications of the instructional staff.

CHAPTER III.—REGISTRATION OF ROAD VEHICLES

18. Road vehicles not to be driven without registration.—(1) No person shall drive any road vehicle and no owner of a road vehicle shall cause or permit the vehicle to be driven on any national highway for the purpose of carrying passengers or goods unless the vehicle is registered in accordance with this Chapter and the vehicle carries a registration mark displayed in the prescribed manner.

Explanation.—A road vehicle shall not be deemed to be registered in accordance with this Chapter if the certificate or registration has been suspended or cancelled.

(2) Nothing in this section shall apply to a road vehicle while being driven within the limits of jurisdiction of a registering authority to, or from, the officially designated place of registration for the purpose of being registered under sections 19, 21, 35, or 36 or to a road vehicle exempted from the provisions of this Chapter while in the possession of a dealer in road vehicles.

REGISTRATION WHERE TO BE MADE

19. Registration where to be made:— (1) Subject to the provisions of sections 21, 35 and 36, every owner of a road vehicle shall cause the vehicle to be registered by the registering authority of the district unless the Government establishes such an authority by notification, in which he has his residence or place of business or in which the vehicle is normally kept.

(2) Government may, by rules made under section 38 require that any certification of registration, issued under the provisions of this Ordinance, shall be presented, within a prescribed period to a specified registering, licensing and vehicle fitness authority for entry therein of such further particulars of the vehicle as such authority may for the purpose of this Ordinance deem fit to record.

REGISTRATION HOW TO BE MAD.

20. Registration how to be made:— (1) An application by, or on behalf of, the owner of a road vehicle for registration shall be in Form "F, as set forth in the First Schedule, and shall contain the information required therein and shall be accompanied by the prescribed fee.

(2) The registering authority shall issue to the owner of a road vehicle registered by it a certificate of registration in Form "G', as set forth in the First Schedule, and shall enter in a record to be kept by it particulars of such certificate.

(3) The registering authority shall assign to the vehicle for display thereon a distinguishing mark (in this Ordinance referred to as the registration mark) consisting of numerals, or of numerals and letters, subject to the condition that the registration mark has been duly notified in the official Gazette.

(4) Government may, by a notification in the official Gazette, direct that road vehicles registered before the commencement of this Ordinance shall be assigned new registration marks within such period and according to such procedure as may be specified in the notification.

21. Temporary Registration:— (1) Notwithstanding anything contained in section 19 the owner of a road vehicle may apply in the prescribed manner to any registering authority to have the vehicle temporarily registered and thereupon such registering authority shall issue to the owner of the vehicle a temporary certificate of registration and assign to the vehicle a temporary mark of registration.

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(2) A registration made under sub-section (1) shall be valid only for a period of one month and shall not be renewable.

22. Production of vehicle at the time of registration:—The registering authority may, before proceeding to register a road vehicle, require the person applying for registration of the vehicle to produce the vehicle either before itself or such authority as Government may, by order, appoint for this purpose in order that the registering authority may satisfy itself that the particulars contained in the application are true and that the vehicle complies with the requirements of Chapter IV and the rules made thereunder.

23. Refusal of registration:— (1) The registering authority may, for reasons to be recorded in writing, refuse to register any road vehicle, if—

(a) the vehicle is mechanically so defective as to render its use unsafe;

(b) the vehicle does not comply with the requirements of Chapter IV, or the rules made thereunder;

(c) the applicant fails to furnish particulars of previous registration of the vehicle if any; or

(d) the applicant fails to produce before the registering authority,—

(i) where the vehicle has been previously registered under law relating to the registration of road vehicles in force at any place in Pakistan, a letter of authority or a certificate of transfer from the person shown as owner in the last registration certificate in respect of such vehicle;

(ii) where the vehicle has been imported from any place out of Pakistan, has not been previously registered at any place in Pakistan, an import license for the vehicle; or

(e) where the documents submitted by the applicant are suspected to be false.

(2) Where a registering authority refuses to register a road vehicle, it shall furnish to the applicant free of cost a copy of the reasons for refusal.

24. Validity of registration:— (1) Subject to the provisions of section 25 and sub-, section (4) of section 20, a road vehicle registered by a competent authority, in any part of Pakistan under any law relating to road vehicles in force in such part, shall not be required to be registered under this Ordinance:

Provided that there is in force in respect of the vehicle a certificate conforming to, and containing substantially the same particulars as, the certificate of registration issued by such competent authority in respect of such vehicle.

(2) A certificate complying with the requirements of the proviso to sub-section (1) shall be effective throughout the, country as if it were a certificate of registration issued under this Ordinance and the provisions of this Ordinance shall apply thereto.

(3) Nothing in sub-section (1) shall apply to any road vehicle previously registered in the country if the certificate of registration of the vehicle is, for the time being, suspended or cancelled for any reason other than that of permanent removal of the vehicle from the country.

25. Assignment of fresh registration mark on removal to another Province:— (1) When a road vehicle, not required to be registered in any part of Pakistan by virtue of sub-section (1) of section 29, is kept in the area for a period exceeding twelve months, the owner of the vehicle shall apply to the registering authority, within whose jurisdiction the vehicle then is, for the assignment of a new registration mark and shall present the certificate of registration of the vehicle to the registering authority.

(2) The registering authority, to which application is made under sub-section (1), shall assign the vehicle a registration mark in accordance with sub-section (3) of section 20 to be carried thenceforth on the vehicle and shall enter the mark upon the certificate of registration of the vehicle before returning to the applicant and shall also, in communication with the registering authority by whom the vehicle was previously registered, arrange for the transfer or the registration of the vehicle from the records of that registering authority to its own records.

26. Change of residence or place of business:— (1) If the owner of the road vehicle ceases to reside or has shifted place of business at the address recorded in the certificate of registration of the vehicle, he shall, within thirty days of any such change of address, intimate his new address to the registering authority by which the certificate of registration was issued, or, if the new address is within the jurisdiction of another registering authority, to that other registering authority and shall at the same time forward the certificate of registration to the registering authority in order that the new address may be entered therein.

(2) A registering authority other than the original registering authority making any such entry, shall communicate the altered address to the original registering authority.

(3) Nothing in sub-section (1) shall apply where the change of the address recorded in the certificate of registration is due to a temporary absence not intended to exceed one year in duration or where the road vehicle is neither used nor removed from the address recorded in the certificate of registration.

27. Transfer of ownership:— (1) Within thirty days of the transfer of ownership of any road vehicle registered under this chapter, the transferor shall initiate, through a registered letter, the transfer to the original registration authority and the transferee shall forward the certificate of registration of the vehicle to that registering authority within whose jurisdiction he ordinarily resides together with the prescribed fee in order that particulars of the transfer of ownership may be entered therein.

(2) A registering authority other than the original registering authority making any such entry shall communicate the transfer of ownership to the original registering authority.

28. Alteration in road vehicle:— (1) If a road vehicle is so altered that the particulars contained in the certificate of registration are no longer accurate, the owner of the vehicle shall, within fourteen days of the making of any such alteration, report the alteration to the registering authority within whose jurisdiction he resides and shall forward the certificate of registration of the vehicle to that registering authority with the prescribed fee in order that particulars of the alteration may be entered therein:

Provided that it shall not be necessary to report any change in the unladen weight of the road vehicle consequent on the addition or removal of fittings or accessories, if such change does not exceed two per cent of the weight entered in the certificate of registration.

(2) A registering authority other than the original registering authority making any such entry shall communicate the details of the entry to the original registering authority.

29. Suspension of registration:— (1) A registering authority or any other prescribed authority may, after giving the owner an opportunity of being heard and for reasons to be recorded in writing, suspend the registration certificate of a road vehicle if,—

(a) the vehicle is not insured as required under this Ordinance.

(b) any fees or taxes payable in respect of the vehicle under this Ordinance or the rules made thereunder, or under any other law have remained unpaid for a period exceeding three months form the date of such fees or taxes were due;

(c) in the case of a transport vehicle, if it is not covered by a valid certificate of fitness;

(d) the authority has reasons to believe that the vehicle is in such a condition that its use in a public place would constitute a danger to the public, or that it fails to comply with the requirements of Chapter IV or of the rules made thereunder;

(e) a substantially false statement has been made in the application for registration of the vehicle; or

(f) the registration certificate has been deliberately defaced or mutilated or unauthorized additions or alterations have been made therein;

and such suspension shall remain in force till such time the deficiencies have been rectified and the grounds, on which suspension was made, no longer exists.

(2) A registering authority, or any prescribed authority, may, after giving the owner an opportunity of being heard and for reasons to be recorded in writing, suspend for a period not exceeding six months, the certificate of registration of a vehicle if—

(a) it is satisfied that the vehicle is used for subversive activities against the State;

(b) the vehicle is used for hire or reward without obtaining a permit from the competent authority; or

(c) it is established in a court that the vehicle has been used by the owner or with his knowledge or connivance in the commission of a cognizable offence punishable with imprisonment of five years or more.

(3) An authority other than a registering authority, shall when making a suspension order under sub-section (I), intimate in writing the fact of suspension and the reasons therefor to the registering authority within whose jurisdiction the vehicle is at the time of the suspension.

(4) A registering authority, or other prescribed authority, suspending the registration certificate of a road vehicle under this section shall communicate the fact of suspension together with the reasons therefor in writing to the owner of the vehicle, and the owner shall thereupon forthwith surrender to that authority the certificate of registration and any other document issued to authorize the use of the vehicle in a public place.

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(5) Where the registration of a road vehicle has been suspended under sub-section (1) for a period of not less than one month, the registering authority, within whose jurisdiction the vehicle was at the time the registration was suspended, shall, if it is not the original registering authority, inform the original authority about the suspension and when the suspension is continued without interruption for a period of not less than six months, the registering authority within whose jurisdiction the vehicle was at the time the registration was suspended, may, if it is the original registering authority cancel the registration and if it is not the original registering authority shall forward the certificate of registration and any other document surrendered under sub-section (4) to that authority which may cancel it forthwith.

(6) The certificate of registration and any other document surrendered under sub-section (4) shall be returned to the owner when the order suspending registration is rescinded.

30. Cancellation of registration:— (1) If a road vehicle has been destroyed, or has been rendered permanently incapable of use, the owner shall within a period not exceeding fifteen days report the fact to the registering authority, within whose jurisdiction he resides, and shall forward to

that authority the certificate of the vehicle together with any document issued to authorize the use of the vehicle in a public place.

(2) The registering authority shall, if it is the original registering authority, cancel the registration and the certificate of registration or, if it. is not the original authority shall forward the report and the certificate of registration to the original registering authority and that authority shall cancel the registration and the certificate of registration forthwith.

(3) Any registering authority may order the examination of a road vehicle within its jurisdiction by such authority as it may appoint and, if upon such examination and after giving the owner an opportunity of being heard, it is satisfied that the vehicle is in such a condition that its use in a public place would constitute a danger to the public and that it is beyond reasonable repair, may, for reasons to be recorded in writing, cancel the registration of the vehicle.

(4) If the registering authority is satisfied that a road vehicle has been permanently removed out of the Province, it shall cancel the registration of the vehicle and inform the owner of such vehicle accordingly.

(5) A registering authority or any prescribed authority cancelling the registration of a road vehicle under this section shall communicate the fact, together with the reasons therefor, in writing to the owner of the vehicle, and the owner of the vehicle shall thereupon forthwith surrender to that authority the certificate of registration of the vehicle and any other document issued to authorize the use of the vehicle in a public place.

(6) A registering authority making an order of cancellation under this section shall, if it is the original registering authority, cancel the certificate of registration and the entry relating to the vehicle in its record, and if it is not the original registering authority, intimate in writing the fact of cancellation, and the reasons therefor, and forward the certificate of registration and any other document surrendered to it to the original registering authority, and that authority shall cancel the certificate of registration and the entry, relating to the road vehicle in its records forthwith.

Explanation.—The expression "original registering authority", hereinafter used, means the registering authority in whose records the registration of the vehicle is recorded.

31. Appeals:— (1) Any owner of a road vehicle aggrieved by an order of refusal to register a road vehicle made under section 23 or by an order of suspension or cancellation of registration made under section 29 or section 30 or to issue a certificate under sub-section (1) of section 34 or by an order of cancellation of the fitness certificate made under sub-section (3) of section 34 may, within thirty days of the date on which he has received notice of such order, prefer appeal against the order in the prescribed manner to the prescribed authority.

(2) The appellate authority shall give notice of the appeal to the original authority, and after giving opportunity of being heard to the original authority and the appellant either personally or by pleader pass such orders, as it may think fit.

32. Special requirement for registration of transport vehicle:— (1) A registering authority shall refuse to register a transport vehicle, other than a motor cab unless the application for registration is accompanied by a document in Form "H", as set forth in the First Schedule, signed by the maker of the vehicle or an assembler duly authorized by the maker in this behalf stating the maximum laden weight and maximum weights for which the vehicle is and the several axles are designed.

(2) Where a transport vehicle or chassis, as the case may be, has affixed to it a metal plate, bearing the stamp of the maker or assembler and identified as appertaining to the particular vehicle or chassis to which it is attached, which contains the particulars specified in sub-section (1), that plate may at the discretion of a registering authority be deemed to be the document referred to in that sub-section.

33. Special particulars to be recorded on registration of transport vehicle:—A registering authority, when registering a transport vehicle other than a motor-cab, shall enter in the record of registration and shall also enter in the certificate of registration of the vehicle the following particulars, namely:—

(a) the unladen weight of the vehicle;

(b) the number, nature and size of the tyres attached to each wheel;

(c) the laden weight of the vehicle and the axle weights pertaining to the several axles thereof, determined in accordance with the load ratings approved by the Provincial Transport Authority;

(d) if the vehicle is used or adapted to be used for the carriage of passengers solely, or in addition to goods, the number of passengers for whom accommodation is provided.

34. Certificate of fitness of transport vehicle:— (1) Subject to the provisions of section 35 a transport vehicle shall not be deemed to be validly registered for the purposes of section 18 unless it carries a certificate of fitness in Form "I" as set forth in the First Schedule, issued by the prescribed authority, to the effect that the vehicle complies for the time being with all requirements of Chapter IV and the rules made thereunder, and where the prescribed authority refuses to issue such certificate it shall supply the owner of the vehicle with its reasons in writing for such refusal free of any charge.

(2) Subject to the provisions of sub-section (3), a certificate of fitness shall remain effective for one year unless a shorter period, not being in any case less than six months, is specified in the certificate by the authority issuing the certificate.

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(3) The prescribed authority may, for reasons to be recorded in writing, cancel a certificate of fitness at any time, if satisfied that the vehicle to which if relates no longer complies with any one or more of the requirements of this Ordinance and the rules made thereunder and on such cancellation the certificate of registration of the vehicle and any permit granted in respect of the vehicle shall be deemed to be suspended until a new certificate of fitness has been obtained.

(4) The certificate of fitness shall automatically become invalid if the vehicle is involved in an accident resulting in loss of property damage exceeding five thousand rupees or personal injuries requiring hospitalization or death.

35. Registration of vehicles being the property of the Government:— (1) Authority designated by the Government may register any road vehicle which is the property, or for the time being under the exclusive control of the Government and any vehicle so registered shall not so long as it remains the property or under the exclusive control of the Government require to be registered otherwise than under this Ordinance.

(2) A transport vehicle registered under this Ordinance shall carry a certificate of fitness issued by the prescribed authority.

(3) An authority registering a vehicle under sub-section (1) shall assign to it a registration mark and shall issue a certificate in respect of the vehicle that the vehicle has been registered under this section.

(4) If a vehicle registered under this section ceases to be the property or under the exclusive control of the Government, the provisions of section 19 shall thereupon apply.

(5) The authority registering a vehicle under sub-section (1) shall furnish to the Government all information regarding the nature, overall dimensions and axle weight of the vehicle as the Government may require.

36. Special registration of vehicles:—Notwithstanding anything contained, in this Chapter Government may, by rules, prescribe a special procedure for the registration of any class, or type or category of road vehicles, or road vehicles belonging to a specified class of persons, or individuals.

37. Application of Chapter to trailers:— (1) The registration mark assigned to a trailer shall be displayed in the prescribed manner on the vehicle.

(2) No person shall drive a road vehicle to which a trailer or trailers are attached unless the registration mark of the vehicle so driven is displayed in the prescribed manner on the trailer or on the last trailer in the train, as the case may be.

38. Power to make rules:— (1) Government may in consultation with National Highways and Pakistan Motorway Police, by notification in the official Gazette, make rules for the purpose of carrying into effect the provision of this Chapter.

(2) Without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the appointment, establishment, functions and jurisdiction of registering and other prescribed authorities;

(b) the conduct and hearing of appeals that may be preferred under this chapter, the fees to be paid in respect of such appeals and the refund of such fees;

(c) the issue of certificates of registration and certificates of fitness and duplicate of such certificates to replace certificates lost, destroyed or mutilated;

(d) the temporary registration of road vehicles and the issue of temporary certificates of registration and marks;

(e) the manner in which registration marks and the particulars referred to in section 33 and other prescribed particulars shall be exhibited;

(f) the authorizing of workshops of the authorized dealers to issue certificates of fitness in respect of vehicles handled by them, the licensing of such workshops, their inspection, the terms and conditions and the period for which, and the authorities by whom, the licence may be granted and renewed and the fees to be paid for grant and renewal of the licences;

(g) the. fees to be charged for the issue or alteration of certificates of registration, for certificates of fitness, for registration marks and for the examination or inspection of road vehicles and the refund of such fees;

(h) the exemption of prescribed persons or prescribed classes of persons from payment of all or any portion of the fees payable under this Chapter;

(i) the forms, other than those set-forth in the First Schedule, to be used for the purpose of this Chapter;

(j) the communications between registering authorities of particulars of certificates of registration and by owners of vehicles registered outside the federal territory of particulars of such vehicles and of their registration;

(k) the particulars to be furnished by the owner of any road vehicle to the registering authority, upon the transfer of possession of the road vehicle under the terms of a hiring agreement;

(l) the extension of the validity of certificates of fitness pending consideration of application for their renewal;

(m) the exemption from the provisions of this Chapter and the conditions and fees for exemption of road vehicles in the possession of dealers;

(n) the exemption of road-rollers, graders and other vehicles designed and used solely for the construction, repair and cleaning of roads from all or any of the provisions of this chapter and the rules made thereunder, and the conditions governing such exemption of light goods vehicles from the provisions of section 34 and the conditions governing such exemption;

(o) requiring the owner of a road vehicle not registered within the Federal Territory, which is brought into or is for the time being in the territory, to furnish to the prescribed authority such information with respect to the road vehicles and its registration as may be prescribed; and

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(p) licensing of the dealers of the road vehicles, fee to be paid, facilities to be provided, forms to be filled and returns to be submitted.

CHAPTER IV.—CONSTRUCTION, EQUIPMENT AND MAINTENANCE OF ROAD VEHICLES

39. General provision regarding construction and maintenance:—Every motor vehicle, bicycle or animal drawn vehicle shall be so constructed as to be at all times conforming to the specifications laid down under law.

40. Power to make rules:— (1) Government may, in consultation with National Highways and Pakistan Motorway Police, by notification in the official Gazette, make rules regarding the construction, equipment and maintenance of motor vehicles, trailers, bicycles and animal drawn vehicles.

(2) Without prejudice to the generality of the foregoing power, Government may make rules governing any of the following matters either generally in respect of motor vehicles, trailers, bicycles and animal drawn vehicles or in particular circumstances, namely:—

(a) the width, height, length and overhead of vehicles and of the loads to be carried therein;

(b) seating arrangements in public service vehicles and the protection of passengers against the weather and collision;

(c) the size, nature and condition of tyres;

(d) brakes and steering mechanism;

(e) the use of safety glass;

(f) signaling appliances, lamps and reflectors;

(g) speed governors;

(h) the emission of smoke, visible gases, ashes, grit or oil;

(i) the reduction of noise emitted by or caused by vehicles;

(j) prohibiting or restricting the use of audible signals at certain times or in certain places;

(k) prohibiting the carrying of appliances likely to cause annoyance or danger;

(1) the periodical testing and inspection of vehicles by prescribed authorities;

(m) the particulars, other than registration marks, to be exhibited;

(n) the use of the trailers or semi-trailers with motor vehicles;

(o) prohibiting or requiring the painting in particular description or for particular purposes or in particular areas;

(p) registration, control and supervision of vehicle repair establishments; and

(q) the use of safety belt.

CHAPTER V—**CONTROL OF TRAFFIC**

41. No fault accident compensation insurance:— (1) No owner of a road vehicle shall use, or permit to be used, and no driver of such vehicle shall drive, or cause or permit to be driven, the vehicle on a national highway unless it is covered by an insurance of "No Fault Accident. Compensation" by a registered insurance company. This will not apply to a road vehicle covered by the Pakistan Transporter's Mutual Assistance Co-operative Society, Pakistan Automobile Association or any other road transport co-operative society so recognized by the prescribed authority in this behalf.

(2) The claimant for compensation under this section shall not be required to plead and establish that the death or permanent disablement resulted from the fault of the owner/driver of the vehicle.

42. Limits of speeds:— (1) No person shall drive a road vehicle, or cause or allow a road vehicle to be driven, on a national highway at a speed exceeding the maximum speed fixed for the type of vehicle by or under this Ordinance, or by or under any other law for the time being in force:

Provided that such maximum speed shall in no case exceed the maximum fixed for the vehicle in the Fifth Schedule.

(2) The Government, or any agency authorized in this behalf may, on a report from the National Highways and Pakistan Motorway Police restrict the -speed of motor vehicles in the interest of public safety, or convenience or because of the nature of any road or bridge fix such lower speed limit as it thinks fit, for road vehicles or any specified class of motor vehicles either generally or in a particular area or on a particular road or roads, and where any such restrictions are imposed, cause appropriate traffic signs to be placed or erected under section 46 at suitable places in such area or on or near such road or bridge, as the case may be.

43. Limits of weight and limitation on use:— (1) No transport vehicle shall be driven in such a state that the total weight of the vehicle and its load including the weight of any trailer drawn by the vehicle and the load carried thereon or in such state that the weight carried on any axle of the vehicle or trailer exceeds the limits specified in the Sixth Schedule.

(2) The Government may prescribe conditions for the issue of permits for heavy transport vehicles and may prohibit or restrict the use of such vehicles in any area or route within the area.

(3) Except as may be otherwise prescribed, no person shall drive, or cause or allow to be driven, on a national highway any road vehicle which is not fitted with pneumatic tyres or fails to carry reflective emergency warning triangle signs.

(4) No person shall drive or cause or allow to be driven on a national highway any motor vehicle or trailer—

(a) the unladen weight of which exceeds the unladen weight specified in the certificate of registration;

(b) the laden Weight of which exceeds the maximum laden weight specified in the certificate of registration; or

(c) any axle weight which exceeds the maximum axle weight specified for that axle in the certificate of registration.

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(5) Where the driver, or person in charge, of a motor vehicle or trailer, drives it in contravention of sub-sections (2), (3) or (4) and is not the owner, the court adjudicating the matter may, on proper evidence, presume that the offence was committed with the knowledge, or under the orders, of the owner of the motor vehicle or trailer.

44. Power to have vehicle weighed:—Any police officer in uniform, or any person authorized by the Government in this behalf, may, if he has reason to believe that a goods vehicle or trailer is being used in contravention of sub-section (4) of section 43, require the driver to convey the vehicle to the nearest weighing device for weighment; and if the vehicle is found to contravene the provisions of that sub-section, he may, by order in writing, direct the driver to convey the vehicle or trailer to the nearest place, where facilities exist for the storage of goods, and not to remove the vehicle or trailer from that place until the laden weight or axle weight has been reduced or the vehicle has otherwise been treated so that it complies with the aforesaid provisions.

45. Power to restrict the use of vehicle:—The Government, or any agency authorized by it in this behalf, if satisfied that it is necessary in the interest of public safety or convenience, or because of the nature of any road or bridge, may prohibit, or restrict, subject to such exceptions and conditions as may be specified, the driving of motor vehicles or of any specified class of motor vehicles or the use of trailers either generally in a specified area or on a specified road or bridge and when any such prohibition or restriction is imposed, shall cause appropriate traffic signs to be placed or erected under section 46 at suitable places in such area or on or near such road or bridge as the case may be.

46. Power to erect traffic signs:— (1) The Government, or any agency authorized by it in this behalf, may cause or permit traffic signs to be placed or erected on any national highway for the purpose of regulating road vehicle traffic.

(2) Traffic signs erected under this Chapter shall be of the size, colour and type and shall have meaning set forth in the Seventh Schedule, but the Government, or any authority empowered by it in this behalf, may make or authorize the addition to any sign set forth in the said Schedule of transcription of the words, letters or figures thereon in such script as the Government may deem fit:

Provided that the transcriptions shall be of similar size and colour to the words, letters or figures set forth in the said Schedule.

(3) The Government, or any agency authorized under sub-section (1), may erect additional signs which in its opinion are necessary for regulating road vehicle traffic and ensuring road safety.

(4) The Government, a police officer in uniform or any agency, authorized under sub-section (1), may remove or cause to be removed any sign or advertisement which, in its opinion, is so placed as to obscure any traffic sign from view, or is so similar in appearance to a traffic sign as to be misleading or is otherwise considered a traffic hazard.

47. Parking place and halting stations:—The Government, or any agency authorized by it in this behalf, may, on the recommendation of the National Highways and Pakistan Motorway Police determine places at which motor vehicles including animal drawn vehicles and bicycles may stop either indefinitely, or for a specified period of time, and may determine the places and service areas on national highways at which public service vehicles may stop for a longer time than is necessary for taking up and setting down of passengers.

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48. Power to remove vehicle obstructing traffic:— (1) A police officer in uniform may remove, or cause to be removed, in the prescribed manner, any motor vehicle, animal drawn vehicle and bicycle parked or standing in a position or at a place in contravention of the provisions of the Eight Schedule relating to parking which in his opinion may obstruct or cause danger to other road users.

(2) No obstruction in any form, manner or mode, including unauthorized barrier shall be placed on any national highway except in connection with an authorized, public work undertaken after approval of National Highways and Pakistan Motorway Police of the area and after following the instructions laid down, by it for sign posting, placing visible lighted markings. Any police officer in uniform shall have the same powers in. removing these obstructions as in the case of motor vehicles under sub-section (1).

49. Duty to obey traffic signs:— (1) Every driver, of a motor vehicle, in charge of an animal drawn vehicle, rider of a bicycle or a pedestrian shall drive the vehicle and use the national highway in conformity with any indication given by a mandatory or a regulatory sign including road markings set forth in Parts II, III and V of the Seventh Schedule applicable to it and shall comply with all

directions given by any electrical traffic signaling device or by any police officer in uniform engaged in the regulation of traffic. .

(2) In sub-section (1) "mandatory traffic sign" and "regulatory traffic sign" shall include any circular disk displaying a device, word or figure and having a red border, erected for the purpose of regulating road vehicle traffic under sub-section (1).

(3) Provisions of this section shall not apply to a fire engine and ambulance on emergency run or a police vehicle on duty.

50. Signals and signaling devices:—The driver of a road vehicle driving on a national highway-shall on the occasions specified in the Ninth Schedule make the signal specified therein:

Provided that the signals of an intention to turn to the right or left or to stop may be given by a mechanical or an electrical device of a prescribed nature affixed to the vehicle.

51. Emission of smoke, vapour or grease and noise:— (1) No road vehicle shall be given on a national highway which emits any smoke, visible vapour, grit, sparks, ashes, cinders, or oily substance the emission of which could be prevented or avoided by taking reasonable steps or the exercise of reasonable care or the emission of which might cause damage or annoyance to other persons or property or endanger the safety of any other user of a national highway.

(2) No motor vehicle shall be driven on a national highway fitted with a multi-toned horn giving a succession of different notes or with any other sound-producing device giving an unduly harsh, shrill, loud or alarming noise.

52. Vehicle with left hand control:—No person shall drive, or cause to be driven on a national highway any road vehicle with left hand steering control unless it is fitted with a plate indicating "Left Hand Drive" at the rear of the vehicle.

53. Leaving vehicle in dangerous position:—No person in charge of a road vehicle shall cause or allow the vehicle or any trailer to remain at rest on any national highway in such a position or in such a condition or in such circumstances as to cause danger, obstruction or undue inconvenience to other users of the national highway.

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54. Riding on running boards:—No person driving, or being in charge of a motor vehicle, on a national highway shall carry any person or permit any person to carry, and no person shall permit himself to be carried, on the running board or otherwise than within the body of the vehicle.

55. Obstruction to driver:— No person driving a road vehicle on a national highway shall allow any person to stand or sit or be placed in such manner or position as to hamper the diver in control of the vehicle.

56. Stationary vehicle:—No person driving or being in charge of a motor vehicle on a national highway shall cause or allow the vehicle to remain stationary in any public place unless there is in the driver's seat a person duly licensed to drive the vehicle or unless the mechanism has been stopped and brakes applied or such other measures taken to ensure that the vehicle cannot be accidentally put into motion in the absence of the driver.

57. Two wheeled motor vehicle:— (1) No driver of a motorcycle driving on a national highway shall carry more than one person in addition to himself and no person shall allow himself to

be carried otherwise than sitting on a proper seat securely fixed to the motorcycle behind the driver's seat.

(2) No person shall drive or be carried on a motorcycle except when he is wearing a crash helmet.

58. Duty to produce licence and certificate of registration:— (1) The driver of a road vehicle on a national highway shall, on demand by any police officer in uniform or any person authorized by the Government in this behalf, produce his driving licence, certificate or insurance and the certificate of registration of the vehicle and where the vehicle is a transport vehicle, the certificate of fitness and the permit of the vehicle for examination.

(2) If the certificate of registration, certificate of insurance or licence is not at the time in possession of the person on whom demand is made, it shall be a sufficient compliance with this section if such person provides the original documents referred to in sub-section (1) within fifteen days at the concerned patrol post or to the same police officer:

Provided that the provisions of this sub-section (2) shall not apply to a driver driving as a paid employee or to the driver of a transport vehicle or to any person required to produce the certificate of registration or the certificate of fitness of a transport vehicle.

59. Duty of driver to stop in certain cases:—The driver of a road vehicle driving on a national highway shall cause the vehicle to stop and remain stationary so long as may reasonably be necessary—

(a) when required to do so by any police officer in uniform;

(b) when the vehicle is involved in the occurrence of an accident to a person, animal or vehicle or damage to any property, whether the driving or management of the vehicle was or was not the cause of the accident or damage; or

(c) at road works or in emergencies when stoppage of traffic might become necessary and he shall give his name and address and the address of the owner of the vehicle to any person affected by the accident provided that such person also furnishes his name and address to that person.

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60. Duty of give information:— (1) The owner of a road vehicle the driver of which is accused of an offence under this Ordinance shall, on demand by a police officer in uniform or any other person authorized in this behalf by the Government, give all information regarding the name, address and the licence held by the driver which is in his possession or could by the exercise of due diligence be ascertained by him.

(2) The driver of a road vehicle shall, on the demand by a person giving his own name and address and alleging that the driver has committed an offence punishable under this Ordinance, give his name and address to that person. .

61. Duty of driver in case of accident and injury to a person or damage to property:—When any accident occurs on a national highway in which a road vehicle is involved, the driver of the vehicle or other person in charge of the vehicle shall—

(a) if any person is injured as a result of such accident, take all reasonable steps to secure medical attention for the person so injured, and if necessary, convey him to the nearest hospital, unless the injured person or his guardian, in case he is a minor, desires otherwise;

(b) if any animal is injured as result of such accident, take steps and endeavour to locate and report the matter to the owner or custodian of the animal so injured and take all reasonable steps to secure medical aid, if necessary, for the animal;

(c) if any damage has been caused to any property as a result of such accident, take reasonable steps to report the damage to the party sustaining the damage;

(d) give on demand by a police officer in uniform any information required by such officer relating to the occurrence; or if no such officer is present, report the circumstances of occurrence at the nearest patrol post as soon as possible and in any case within twenty four hours of the occurrence; and

(e) park his vehicle in such a manner and also erect warning signs so that his vehicle does not pose any hazard or danger to other users of the national highway.

62. Inspection of vehicle in accident:—When any accident occurs on a national highway in which a road vehicle is involved, any police officer in uniform or any person authorized in this behalf by the Government, may inspect the vehicle and for that purpose enter at any reasonable time any premises where the vehicle is stationed and may remove the vehicle for examination:

Provided that the place to which the vehicle is removed shall be intimated to the owner of the vehicle and the vehicle shall be returned without unnecessary delay and in no case later than forty-eight hours of its removal.

63. Railway crossing:—The driver of a road vehicle who desires to pass over a Railway Level Crossing shall cause the vehicle to come to a complete stop before the crossing and shall not attempt to pass over the crossing unless he has made sure by looking both ways, to the left and right, and listening to the audible signal or siren of the train, that no train is likely to approach from either side, when his vehicle is going over the crossing.

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64. Power to make rules:— (1) The Government may, in consultation with National Highways and Pakistan Motorway Police, by notification in the official gazette, make rules for carrying into effect the provisions of this Chapter.

(2) Without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters relating to national highways or road vehicles to be driven on a national highway, namely:—

(a) the nature of the mechanical or electrical signaling devices which may be installed on road vehicles;

(b) erection of electrical traffic signaling devices, and the types of such devices that may be installed;

(c) removal and the safe custody of vehicles including their loads which have broken down or which have been left standing or have been abandoned on roads;

(d) installation and use of weighing devices;

(e) exemption from all or any of the provision of this Chapter of emergency vehicles and other special classes of vehicles subject to such conditions as may be prescribed;

(f) standardization of limits of load and passengers for animal drawn vehicles;

(g) prohibiting movement of certain dangerous cargoes until specific safety conditions for transportation have been fulfilled;

(h) prevention of danger, injury or annoyance to the public or any person, or of danger or injury to property or of obstruction to traffic;

(i) terms and conditions for societies and associations to provide exemption from the provision of 'No Fault Accident Compensation Insurance Coverage for its members under section 41, determine the procedure for 'no fault compensation; and.

(j) fix speed limits within the parameters as laid down in the Fifth Schedule.

CHAPTER VI.—**OFFENCES, PENALTIES AND PROCEDURE**

65. Offence relating to licences:— (1) Whoever, being disqualified for holding or obtaining a licence, drives a motor vehicle or animal drawn vehicle, without valid licence, on a national highway shall be punishable with imprisonment for a term which may extend to six months or with fine which may extend to one thousand rupees, or with both.

(2) The police officer taking cognizance of the offence under sub-section (1) may bar the driver from driving the vehicle and impound the vehicle.

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66. Driving at excessive speed:— (1) Whoever drives a road vehicle on a national highway in contravention of the speed limits specified in the Fifth Schedule shall be punished with imprisonment, or with fine, or with both, as specified in the Tenth and the Twelfth Schedules, as the case may be.

(2) No person shall be convicted of an offence punishable under sub-section (1) unless the estimate of the speed is obtained by the use of some mechanical or electronic device.

67. Driving recklessly or dangerously:—Whoever drives a road vehicle on a national highway at a speed or in a manner which is dangerous to human life or property having regard to traffic, road, weather or other prevailing conditions, shall be punishable with imprisonment for a term which may extend to one month or with fine which shall not be less then five hundred rupees and may extend to one thousand rupees, or with both.

68. Driving while under the influence of alcohol or drugs:— (1) Whoever drives or attempts to drive a road vehicle on a national highway while under the influence of alcohol or a drug to such an

extent as to be incapable of exercising proper control over the vehicle, shall be punishable with imprisonment for a term which may extend to one month or with fine which shall not be less than five thousand rupees and may extend to ten thousand rupees, or with both.

(2) No person shall be convicted of an offence punishable under sub-section (1) unless the extent of the influence is determined by a medical practitioner authorized by the Government.

69. Driving when mentally or physically unfit:— (l) Whoever drives a road vehicle on a national highway when he is suffering from a disease or disability to render his driving of the vehicle to be a source of danger to the public shall be punishable with imprisonment for a term which may extend to one month or fine which shall not be less than five hundred rupees and may extend to one thousand rupees, or with both.

(2) No person shall be convicted of an offence punishable under sub-section (1) unless so determined by the Medical Board as set out in the Second Schedule.

70. Racing and trial of speed:—Whoever without the written consent of the prescribed authority, permits or takes part in a race or trial of speed on a national highway between road vehicles shall be punishable with imprisonment for a term which may extend to one month or with fine which shall not be less than one thousand rupees and may extend to two thousand rupees, or with both.

71. Punishment for abetment of certain offences:—Whoever abets the commission of an offence under sections 60, 65, 66, 67, 68, 69 and 70 shall be punishable with the punishment provided for the offence.

72. Using vehicle in unsafe condition:—Whoever drives or causes or allows to be driven on any national highway a road vehicle of a trailer in a condition which is liable to render the vehicle unsafe, and a source of danger to himself and other users, shall be punishable with imprisonment for a term which may extend to one month or with fine which shall not be less than five hundred rupees and may extend to one thousand rupees, or with both.

73. Using vehicle with shaded glasses:—Whoever drives or causes or allows to be driven on a national highway, a road vehicle with shaded glass shall be punishable with imprisonment for a term which may extend to one month or with fine which shall not be less than five hundred rupees and may extend to two thousand rupees, or with both.

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74. Offences relating to construction of vehicle:—Whoever being a fabricator, assembler, dealer or importer of road vehicles, fabricates, assembles, sells or delivers a road vehicle or trailer in such a condition that the use thereof on a national highway would be dangerous or unsafe shall be punishable with imprisonment for a term which may extend to six months or with fine which shall not be less than five hundred rupees and may extend to one thousand rupees, or with both:

Provided that no person shall be convicted under this section if he proves that he had reasonable cause to believe that the vehicle would not be used on a national highway until it had been put into a condition in which it might lawfully be so used.

75. Offences relating to weights:— (1) Whoever drives a transport vehicle or causes or allows a transport vehicle to be driven on a national highway carrying in excess of fifteen per cent of the permissible load for a goods vehicle as laid down in the Sixth Schedule and in excess of thirty per cent of the number of passengers prescribed for a passenger carrier, shall be punished with imprisonment

for a term which may extend to one month or with fine which shall not be less than one thousand rupees and may extend to five thousand rupees, or with both.

(2) The police officer in uniform, taking cognizance of an offence under sub-section (1), shall direct unloading of the excessive goods and passengers before allowing the vehicle to proceed.

76. Offences relating to accidents:— (1) Whoever contravenes the provisions of clause (b) of sub-section (1) of section 59 or any of the provisions of section 61 or furnishes any information required to be furnished thereunder which he knows to be false shall be punishable with imprisonment for a term which may extend to six months or with fine which shall not be less than one thousand rupees and may extend to two thousand rupees, or with both.

(2) Whosoever is proved guilty of causing an accident by committing violation of any provision of this Ordinance which results in only property damage of less than two thousand rupees shall pay compensation equal to the cost of the property thus damaged or twice the cost of repair to the aggrieved person.

(3) Whosoever suffers a property damage exceeding two thousand rupees or injury requiring medical treatment due to an accident shall report to the nearest patrol post the details of the accident within forty-eight hours, failing which he shall be punishable with a fine which may extend to five hundred rupees.

(4) The driver of a road vehicle or other person in charge of the vehicle involved in the accident resulting in death, bodily injury or property damage to other users of a national highway shall report the accident to the nearest patrol post and police station within twenty-four hours failing which he shall be punishable with imprisonment for a term which may extend to one month or with fine which shall not be less than one thousand rupees and may extend to two thousand rupees, or with both.

77. Offences relating to disobedience of orders, obstruction and refusal of information:— Whoever wilfully disobeys any direction lawfully given by a police officer in uniform or any person or authority empowered under this Ordinance to give such direction or obstructs any person or authority in the discharge of any functions which such person or authority is required or empowered under this Ordinance to discharge or being required by, or under, this Ordinance to supply any information withholds such information or gives information which he knows to be false, if no other penalty is provided for the offence, shall be punishable with imprisonment for a term which may extend to six months or with fine which shall not be less than one thousand rupees and may extend to two thousand rupees, or with both.

78. Offences relating to prohibited appliances:—Whoever carries in a road vehicle on a national highway any appliance the carrying of which is prohibited by rules made under section 64, shall be punished with fine which shall not be less than five hundred rupees and may extend to one thousand rupees and such appliances shall be forfeited to the Government.

79. Offences relating to traffic safety rules:— (1) No person shall drive a road vehicle on a national highway in contravention of rules laid down in the Eighth Schedule or as laid down by the Government.

(2) Whoever drives a road vehicle on a national highway in contravention of the provisions of the Tenth Schedule shall be liable to punishment as specified in the said Schedule.

(3) Any person who drives or operates a vehicle in contravention of sub-section (1) and the provisions of the Twelfth Schedule shall be punishable with such fine as laid down in the said Schedule.

(4) The Government may, in consultation with the National Highways and Pakistan Motorway Police, by notification in the official Gazette, amend the provisions of the Twelfth Schedule so as to add any entry thereto or modify and entry therein.

(5) A police officer in uniform, or any other person so authorized by the Government, acting under sub-sections (2) and (3) shall draw up a charge sheet in quadruplicate specifying the amount of fine therein, and shall—

(a) forthwith deliver one copy thereof to the offender and obtain his signature or thumb impression or mark, as the case may be, as token of its receipt, wherever possible;

(b) within twenty-four hours forward the second copy of the charge sheet to the prescribed agency where the offender has to deposit the fine;

(c) within twenty-four hours forward the third copy of the charge sheet to the central accounting office; and

(d) retain the fourth copy for record.

(6) Whoever is accused of violation of any provision of the Twelfth Schedule by a police officer in uniform, or any person authorized by the Government in this behalf, may within ten days, if he does not want to contest the charge, pay the prescribed fine in the manner specified in the citation paper and obtain the necessary receipt thereof.

(7) Where an accused person pleads guilty and pays the prescribed fine and has complied with the provisions of sub-section (6), no further action in respect of the offence shall be taken against him.

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(8) If the fine is not paid in the manner provided in sub section (6), the police officer drawing up the charge shall take registration or licence into custody and lodge a complaint against the offender before the court having jurisdiction to try the offence.

80. General provision for punishment of offences not otherwise provided for:—Whoever contravenes any provision of this Ordinance or of any rules made thereunder shall, if no other penalty is provided for the offence under this Ordinance, be punished with fine which may extend to five hundred rupees, and if having been previously convicted of such an offence, for every such subsequent offence to a fine which may extend to one thousand rupees.

81. Power of arrest without warrant:— (1) A police officer in uniform may arrest without warrant any person who commits in his view any of the following offences, namely:—

(a) Driving when disqualified;

(b) fleeing the scene of accident involving his vehicle;

(c) wilful disobedience or obstruction of lawful orders;

(d) driving a transport vehicle without a valid driving license, fitness certificate, registration certificate, route permit or certificate of insurance;

(e) taking part in an unauthorized race or trial of speed;

(f) overtaking by heavy transport vehicles dangerously or where prohibited;

(g) driving at a speed thirty per cent in excess of the specified speed limit;

(h) failing to stop when directed by a police officer in uniform to do so; and

(i) driving recklessly, dangerously or under influence of drugs or alcohol.

(2) A police officer arresting without warrant, the driver of a goods vehicle shall, if the circumstances so require, take or cause to be taken any steps he may consider proper for the temporary disposal and safe custody of the vehicle and goods.

(3) A police officer arresting without warrant the driver of a passenger vehicle shall, if the. circumstances so require, take or cause to be taken any steps he may consider proper for the temporary disposal and safe custody of the vehicle and for the transportation of passengers in the same vehicle to their destination.

82. Power of police officer to seize documents:—No police officer shall seize documents of any vehicle for any minor violation of the provisions of this Ordinance unless so ordered by a court or under written orders of an officer of not below the rank of Superintendent of Police of the National Highways and Pakistan Motorway Police, unless he has sufficient reasons to believe that the document is forged.

83. Power to detain vehicle:—Any police officer in uniform, or. other person authorized in this behalf by the Government, may if he has reason to believe that a motor vehicle has been, or is being, used without a valid registration, a valid permit or in contravention of any provision of sections 27, 41, 51, 67, 68, 69, 70, 71, 72, 73, 74, 75, 76 and 78 may seize and detain the vehicle and for this purpose take, or cause to be taken, any steps he may consider proper for the temporary safe custody of the vehicle.

84. Particular of summons:—The court taking cognizance of an offence under sub-section (8) of section 79 shall, except for reasons to be recorded in writing, state upon the summons to be served on the accused persons that he—

(a) shall appear in person, with or without an advocate; or

(b) may, at a specified date prior to the hearing of the . charge, plead guilty to the charge by registered letter and remit the fine to the court.

85. In the case of an accident:— (1) caused by a public transport vehicle resulting in grievous injury or loss of life, it shall be presumed that there has been negligence of the obligation to observe safety procedures on the part of the public transport driver unless the contrary is proved.

(2) In the event of such an accident the public transport vehicle shall be impounded by a police officer in uniform and not given on supardari, except in exceptional cases by the National Highways and Pakistan Motorway Police.

86. Point system for traffic violations:— (1) Whosoever is proved guilty of contravention of the rules specified in the Eighth Schedule shall, in addition to penalties provided under this Ordinance, also be charged with points indicated against each offence under the Eleventh Schedule.

(2) When points accumulated against any person exceed ten within a two years' period, he shall be issued a warning listing the reported violations.

(3) When the points accumulated within a two years period exceed twenty, the licence of such person shall be suspended by a Superintendent Police of the National Highways and Pakistan Motorway Police for a period of six months, extendable by another six months.

87. Compensation for death, injury or damage, etc:— (1) If a person suffers death, or injury to his person or damage to his property on account of the use of a road vehicle on a national highway, the insurance company or, as the case may be, the Pakistan Transporters Mutual Assistance Co-operative Society, the Pakistan Automobile Association or any other road transport co-operative society referred to in section 41 and in case the vehicle is not covered by any of the above insurers, the owner of such vehicle shall pay such compensation as may be prescribed by the Government,—

(a) in the case of death, to.the legal heirs of the deceased person; or

(b) in the case of injury to person or damage to the property, to the person who suffered the injury or damage, within thirty days of the accident..

(2) If the insurer or the owner of the vehicle fails to pay the compensation under sub-section (1), the compensation shall be recoverable in accordance with the provisions of sections 67A and 67G of the Provincial Motor "vehicles Ordinance, 1965. (W.P Ord. No. XIX of 1965)

(3) The compensation payable under sub-section (1) shall not debar the person to receive any additional sum which the person may be entitled to receive under any other law for the time being in force.

(4) Any contract for the conveyance of a passenger in any motor vehicle shall, so far as it purports to negate or restrict the liability of any person in respect of any claim made against that person in respect of the death of, or bodily injury to, the passenger who is being carried in, any conditions shall, with respect of the enforcement of any such liability, be null and void.

88. Jurisdiction and procedure:—Notwithstanding anything contained in the Code of Criminal Procedure, 1898. (Act V of 1898)

(a) an offence under this Ordinance shall be cognizable;

(b) no Magistrate other than a Magistrate of the first class shall try an offence under this Ordinance; and

(c) a Magistrate trying an offence under this Ordinance shall have power to try such offence summarily in accordance with the procedure laid down for summary trial in the said Court.

89. Power to make rules:— (1) The Government may, in consultation with National Highways and Pakistan Motorway Police, by notification in the official Gazette, make rules for the carrying into effect the provisions of this Chapter.

(2) Without prejudice to the generality of the foregoing powers, rules under this section may be made with respect to an or any of the following matters, namely:—

(a) the procedure for deposit of fine under section 79 and its disbursement as reward to the National Highways and Pakistan Motorway Police;

(b) the procedure to be adopted for operation of the provision of section 87;

(c) fitness period for all classes of vehicles; and

(d) any other matter which may be prescribed.

CHAPTER VII**.—ESTABLISHMENT OF A POLICE FOR MOTORWAYS AND NATIONAL HIGHWAYS**

90. Establishment of a Police for National Highway. **:**— (1) The Government may establish a police force for performing police and traffic control functions on motorways and national highways and within such other territorial limits as it may, by notification in the official Gazette, specify.

(2) The police force established under sub-section (1) shall exercise all powers of a Station House Officer under the Code of Criminal Procedure, 1898, (Act V of 1898) Police Act 1861 (Act V of 1861) and shall—

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(a) regulate and control traffic on the national highways and prevent obstructions thereon;

(b) keep order on the national highways and prevent the contravention of any rule, regulation or order made under this Ordinance or any other law in force;

(c) maintain law and order on the national highways and take cognizance of offences committed thereon;

(d) determine and regulate the category and type of traffic permissible at particular times keeping in view the road, weather and other conditions;

(e) render all possible assistance to national highways users;

(f) undertake initial investigation in respect of offences committed on national highways and then transfer the cases to the concerned police station for investigation. Restrict or stop local police from investigation and transfer of case back to National Highways and Pakistan Motorway Police;

(g) plan, budget and manage publicity, information and . education campaigns for the purposes of maintaining good order and safety on the national highways;

(h) keep the highways clear from any encroachment and keep a look out for suspicious persons and criminals;

(i) take into possession any abandoned property for its disposal under the law;

(j) provide security to the travelers;

(k) develop and maintain a transport research cell and laboratory for the purpose of carrying into effect the provisions of this Ordinance;

(l) act as the advisory body to the National Highway Authority for proper planning, building and development of national highways;

(m) examine the feasibility, desirability and necessity of various facilities, hoardings, advertisements, etc. on or along the national highways form the security and traffic standpoint in order to achieve the objectives of this Ordinance, and take appropriate measures for its removal, closure or regulation;

(n) enlist and maintain motor vehicle examiners for checking mechanical fitness of transport vehicles and issue no objection certificates for registration and route permits in respect of vehicles plying on national highways;

(o) inspect and oversee installation of such other facilities on or along the national highways as are necessary for ensuring good order and safety of the public;

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(p) employ experts and enter into contracts including service contracts for the purposes of this Ordinance;

(q) establish a competent licensing authority and driver testing facility;

(r) promote the setting-up of proper driver training schools in the private sector and co-ordinate their inspection and supervision through Provinces;

(s) assist the Provinces in setting up such driving schools; and

(t) perform such other functions as the Government may, from time to time, require;

(3) Without prejudice to the powers conferred on it by or under this Ordinance, the Government may, in relation to the National Highways and Pakistan Motorway Police exercise all powers, which under the Police Act, 1861 (Act V of 1861) and the Code of Criminal Procedure, 1898, (Act V of 1898) are exercisable by a Provincial Government in relation of the provincial police.

91. Assistance National Highways and Pakistan Motorway Police:—All officers of the Police and Civil Armed Forces are empowered and required to assist the National Highways and Pakistan Motorway Police in discharge of its functions under this Ordinance.

92. Superintendence and administration of National Highways and Pakistan Motorway Police:—The head of the National Highways and Pakistan Motorway Police shall be an Inspector General, who shall exercise all powers of an Inspector General of Police under Police Act, 1861, (Act V of 1861) and administer the force in accordance with the provisions of this Ordinance and rules made thereunder.

93. Power to make rules:— (1) The Inspector General of Police, in consultation with the Government, may, by notification in the Official Gazette, make rules for carrying into effect the provisions of this Chapter.

(2) Without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely:—

(a) for the efficient and effective discharge of duties by the force;

(b) discipline, apparel, recruitment, induction, promotion, transfer and appointment;

(c) procedure for employing experts and entering into contracts with various agencies;

(d) procedure for investigation of offences, regulation of traffic and evaluation of facilities, hoardings and route permits;

(e) manner, mode and type of licences for the national highways;

(f) the manner in which rewards may be given to the members of the National Highways and Pakistan Motorway Police for rendering commendable services; and

(g) any other matter which may be prescribed.

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CHAPTER VIII**.—MISCELLANEOUS**

94. Appointment of Magistrate:—Notwithstanding anything contained in the Code of Criminal Procedure, 1898, (Act V of 1898) the Government may, for the purposes of this Ordinance, appoint any person to be a Magistrate of the first class within the meaning of the said Code for carrying into effect the provisions of this Ordinance.

95. Licencing malpractice:—If, during the course of trial of an offence relating to an accident, the court is of opinion that the accident took place because of the incompetence on the part of the driver with regard to his driving skills, knowledge of rules and lack of physical fitness or due to mechanical defects of the vehicle, it may, in addition to legal action, charge the authority issuing the driving

licence, mechanical fitness certificate or medical certificate with negligence of duty and report the matter to the head of the department of the delinquent authority for disciplinary action.

96. Indemnity:—No suit, prosecution or other legal proceeding shall lie against any person for anything in good faith done or purported to be done under this Ordinance or the rules made thereunder.

97. Ordinance not to derogate other laws:—The provisions of this Ordinance shall be in addition to, and not in derogation of, any other law for the time being in force.

98. Power to make rules:—The Government may, by notification in the official Gazette, make rules for carrying into effect the provisions of this Chapter.

99. Removal of difficulties:—If any difficulty arises in giving effect to any of the provisions of this Ordinance, the federal Government may make such orders not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary for the purpose of removing the difficulty.

THE FIRST SCHEDULE
FORM A
[See section 6(2)]

FORM OF APPLICATION FOR LICENCE TO DRIVE A ROAD VEHICLE
APPLICATION SECTION I

I apply for a licence to drive as paid employee/otherwise than as paid employee including/excluding public service vehicle/vehicles of the following description:—

Photograph of applicants

(a) Motorcycle upto 80 cc
(b) Motorcycle more than 80 cc
(c) Three wheeler
(d) Invalid persons carriage
(e) Motor car/motor cab
(f) Light transport vehicle
(g) Heavy transport vehicle
(h) Road construction machinery
(i) Tractor/agricultural machinery
(j) A vehicle of a specified description (description to be attached)

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Section II

PARTICULARS TO BE FURNISHED BY THE APPLICANT

Photograph of applicants

1. Name
2. Father's name
3. Date of birth
4. Identity card No Blood group.....

5. Permanent address Ph: No.....
6. Present address Emergency precautions
7. Particulars of any licence previously held
No..... Date..... Place of issue Type..
8. Particulars of every previous major conviction....,
9. Particulars of every previous disqualification
10. Detail of any disease/debility, physical, mental or otherwise likely to render one unfit for driving or impairment of vision, depth perception, hearing, night vision, colour distinction, etc.
I declare that to the best of my knowledge, information and belief the above particulars and declaration are true.

Signature and thumb impression of applicant.

Section III

FORM OF MEDICAL CERTIFICATE FOR A LICENCE TO DRIVE A VEHICLE OTHER THAN A TRANSPORT VEHICLE

Photograph of applicants

1. Is the applicant suffering from epilepsy/vertigo or any mental ailment likely to impair his driving ability
2. Does the applicant suffer from any heart applicant or lung disorder which might hinder his performance as a driver?
3. (a) Is there any defect of vision If so, has it been corrected?
(b) Can the applicant readily distinguish the pigmentary colours red, amber and green
(c) Does the applicant suffer from night blindness?
(d) Does the applicant suffer from a degree of deafness which would prevent his hearing the ordinary sound signals?
4. Has the applicant any deformity or loss of limbs which would interfere with the efficient performance of his duties as driver?
5. Does he show any evidence of being addicted to the excessive use of alcohol or drugs?
6. Is he generally fit as regards (a) bodily health, and (b) eyesight?
7. Marks of identification
8. Blood group

……
Signature of registered medical practitioner

Name.....
Seal.....

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SECTION IV

CERTIFICATE OF TEST OF DRIVING COMPETENCE

The applicant has passed/failed in the test specified in the Fourth Schedule in the national Highways Safety Ordinance 2000. The test was conducted on a road vehicle of the type ……on……day of the month of 20....

.....……
Signature of testing authority

FORM B
[See section 6(3)]
FORM OF MEDICAL CERTIFICATE FOR A LICENCE TO DRIVE ANY TRANSPORT VEHICLE,

Medical Board to conduct the medical examination and issue a certificate under its signature and seal on the form prescribed at Section III of Form A to be signed by the Chairman and Members of the Medical Board.

FORM C
[See section 7(1)]
PARTICULARS TO BE RECORDED ON LICENCE

Photograph of applicants

1. Licence No.....
2. Name.....
3. Father's name.....
4. Permanent address.....
5. Present address..... ...
6. Identity Card No..... Blood group.....
7. Date of birth..... Ph : No.....
8. Type of vehicle allowed to drive Emergency precautions.....
9. Whether or not allowed to drive as paid employee.....
10. Whether or not allowed to drive a public service vehicle.....……..

……..
Specimen thumb impression
signature of the holder

…….
Signature, Seal and Designation and
of Licensing Authority

[See section 86]
ENDORSEMENT

Endorsement of punishments to be made by punching the licence as prescribed under law and rules.

[See section 11]

THE PAKISTAN CODE

RENEWAL

On expiry of a licence the applicant shall apply to the competent authority for renewal on Form E and pay the prescribed fee.

FORM D
[See section 8(1)]
FORM OF APPLICATION FOR THE ADDITION OF A NEW CLASS OF VEHICLE TO A DRIVING LICENCE

1. Name .....
2. Father's Name .....
3. Class of vehicle(s) for which licence required …….....
4. Any information/particulars at variance with that provided in Section II of Form A. …….....
5. Previous licence No. (to be attached) …….....

Note:

(a) Three passport size photographs to be attached.

(b) In case the licence is for additional class of vchicle(s), the original licence will be retained by the Licencing Authority and a fresh licence issued.

……..
Signature and thumb impression of the applicant.

FORM E

[See section 11(3)]

FORM OF APPLICATION FOR RENEWAL OF DRIVING LICENCE

I hereby apply for a renewal of the licence, which was issued to me on……the day of..... by the licensing Authority titled.....

THE PAKISTAN CODE

1. No. and particulars of the licence being surrendered
2. Name
3. Father's name
4. Permanent address
5. Present address
6. Identity Card No
7. Date of birth Blood group.....
8. Type of licence required Ph:No.....
9. Particulars of every previous major conviction Emergency precautions…….

10. Particulars of every previous disqualification

…….

11. Detail of any disease/debility, physical, mental or otherwise likely to render one unfit for driving or impairment of vision, depth perception, hearing, night vision, colour distinction, etc.

I declare that to the best of my knowledge, information and belief the above particulars and declaration arc true:

…….

Signature or thumb impression of the applicant.

THE PAKISTAN CODE

FORM F

[See section 20(1)]

FORM OF APPLICATION FOR THE REGISTRATION OF ROAD VEHICLE

1.Name ……..
2. Father's Name ……..
3.Address ……..
(a) Permanent ……..
(b)Temporary …..……
(c) Business ……..……
4. Identity Card No ……..
5. Class of vehicle ……..……
6. Type of body ……..
7. Maker's name ……..
8. Year of Manufacture ……..
9. Number of cylinders ……..
10. Horse power ……..
11. Wheel base ……..
12. Chasis number ……..
I3. Engine number ……..
14. Seating capacity ……..
15. unladen weight ……..

Particulars to be completed only in the case of transport vehicle other than motor cabs.

16. Number, description and size …… of tyres
    (a) front axle ……..
    (b) rear axle……
    (c) any other axle ……
17. Maximum laden weight ……
18. Maximum axle weight ……
    (a) front axle ……
    (b) rear axle……
    (c) any other axle ……

Where a second trailer or additional trailers are to be registered with an articulated motor vehicle, the following particulars are to be furnished for each such trailer:

19. Type of body……
20. Unladen weight ……
21. Number, description and size of tyres on the axle : ……
22. Maximum axle weight……

Date ……20

.....
Signature and thumb impression of applicant.

THE PAKISTAN CODE

FORM G

[See section 20(2)]

FORM OF CERTIFICATE OF REGISTRATION OF VEHICLE

Registered No …….
Name …….
Permanent address …….
Identity Card No …….
Detailed description: …….
1. Class of vehicle …….
2. Maker's name …….
3. Type of body : …….
4. Year of manufacture …….
5. Number of cylinders …….
6. Chasis number …….
7. Engine number …….
8. Horse power …….
9. Wheel base …….
10. Seating capacity (Including driver) …….
11. Unladen weight …….

Additional particulars in the case of all transport vehicles other than motor cabs.

12. Registered laden weight …….
13. Number, description and size of tyres ……. (a) front axle …….
(b) rear axle …….
(c) any other axle …….
14. Registered axle weight …….
(a) front axle …….
(b) rear axle …….
(c) any other axle …….

Additional trailers registered with an articulated vehicle:

15. Type of body …….

THE PAKISTAN CODE

16. Unladen weight …….
17. Number, description and size of tyres on the axle ……
18. Maximum axle weight …….

Date..... 20

.....……
Signature of Registering Authority

FORM H

[See section 32(1)]

DOCUMENT TO BE FURNISHED BY THE MAKER OR AUTHORIZED ASSEMBLER IN THE CASE OF TRANSPORT VEHICLES OTHER THAN MOTOR CABS

Certified that the vehicle Chasis No……..Engine No……manufactured by..... in the..... has a wheel base of..... and is designed for maximum weights as follow when filled with the tyre-equipment specified below:—

Maximum laden weight..... kgs
Maximum weight front axle..... kgs.
Maximum weight rear axle..... .'..... kgs.
Maximum weight any other axle..... kgs.
Tyres:—
Front wheels .....
Rear wheels .....
Other wheels .....
Dated..... 20

.....
Signature of Authorized Assembler/Maker

FORM I
[See section 34(1) and section 39]

CERTIFICATE OF FITNESS FOR TRANSPORT VEHICLES

Vehicle No.....is certified as complying with the provisions of Chapter III and IV of the National Highways Safety Ordinance, 2000 and the rules made thereunder. This Certificate will expire on.....…….

THE PAKISTAN CODE

Affidavit: If during the course of trial of an offence relating to an accident by the court it is established that the accident took place because of the mechanical defect in the vehicle, which was deliberately/ignored/overlooked by me, I shall be charged with negligence of the duty and abetment of the offence, I shall be punishable with a fine which may extend from Rs. 500 to Rs. 1000 and/or imprisonment which may extend upto six months.

Dated. ,.....

.....
Signature and designation of Inspecting Authority

THE SECOND SCHEDULE

[See section 4(3)

MEDICAL BOARD

For the purpose of section 4, the Medical Board shall consist of die following, namely:-

(a)	Medical Superintendent	Chairman
(b)	Physician	Member
(c)	Optometrist	Member

THE THIRD SCHEDULE
[See section 6(5)]

DISEASES AND DISABILITIES DISQUALIFYING A PERSON FOR OBTAINING A LICENCE TO DRIVE A ROAD VEHICLE

1. Epilepsy.
2. Lunacy.
3. Heart disease likely to produce sudden attack of giddiness or fainting.
4. Inability to distinguish with each eye at a distance of twenty-five meters in good daylight (with the aid of glasses, if worm) a series of seven letters and numerals in white on a black ground of the same size and arrangement as those of the registration mark of a motor car.
5. A degree of deafness, which prevents the applicant from hearing, without hearing aids, the ordinary sound, signals.
6. Colour blindness or inability readily to distinguish the pigmentary colours red, amber and green.
7. Night blindness.
8. Addiction to excessive use of alcohol or drugs.

THE FOURTH SCHEDULE

THE PAKISTAN CODE

[See section 6(6) and section 11(4)]

TEST OF COMPETENCE TO DRIVE

PART I

Sign test :—The candidate shall satisfy the examiner that he knows the meaning of the traffic signs specifically in the Seventh Schedule by giving nine correct answers to ten questions asked.

PART II

Rule test :—The candidate shall satisfy the examiner that he is cognizant of the provisions of the Eighth Schedule and rules laid down by the Government and can give correct answers to questions pertaining to the traffic safety rules and regulations. The candidate if he can read and write shall give written answers and if he is not literate he shall be tested orally.

PART III

Physical fitness :—The candidate shall satisfy the examiner that he does not suffer from any disease or disability whereby his driving is likely to be a source of danger to the public, particularly vision, colour blindness, field vision, depth perception and hearing.

PART IV

Driving test :—The candidate shall satisfy the examiner that he is well conversant with all the instructions and rules governing parking, road test, starting stopping, turning, backing, traffic signals, signs and road markings, overtaking up or down hill, speed, attitude towards other road users, etc.

THE FIFTH SCHEDULE
[See section 42]

MAXIMUM PERMISSIBLE SPEED LIMITS

Type of Highways	Minimum Kilometer per hour		Minimum Kilometer per hour
(A) Rural area			
Motorway	upto	130	65
4-lane highway	"	110	"
3-lane Highway	"	90	"
2-lane road	"	80	"
Single lane road	"	70	"
Gravel road	"	50	"
(B) Urban Area			
Motorway	upto	110	50
4-lane highway	"	90	"
3-lane road	"	80	"
2-lane road	"	70	"
Single lane road	"	55	"
Gravel road	"	40	"

THE PAKISTAN CODE

THE EIGHTH SCHEDULE

[See sections 48(1) and 79(1)]

PART I

FOR ALL NATIONAL HIGHWAY USERS

(1) No person shall push another person while boarding or alighting a bus or other vehicle.

(2) No passenger shall board or alight a bus or other transport vehicle at a place other than recognized bus stop and till the vehicle has come to a complete stop except at an intersection.

(3) The guardian of minor children shall make sure that a minor child does not play on or near a national highway or crosses the national highway alone.

(4) The passengers in a transport vehicle shall not distract the attention of the driver in any way that may hamper his driving.

(5) The passenger in a transport vehicle, other than the driver, shall always enter or get off from the left side.

(6) No road user shall act in a manner, which is likely to cause inconvenience or obstruction to another road user or damage to property.

PART II

FOR DRIVERS OF ROAD VEHICLES

The driver of a road vehicle shall:-

THE PAKISTAN CODE

(i) not drive or cause to be driven, a motor vehicle unless it is in fit mechanical and technical condition and fulfils body building requirements as per rules.

(ii) observe the prescribed limits while hauling wide and protruding loads and marks the ends of the load with red flag by day and red light by night.

(iii) observe the speed limits as indicated by an appropriate sign or as laid down in the Fifth Schedule.

(iv) give appropriate light or manual signals before starting, stopping, slowing down, turning or changing lanes, clearly, correctly and well in time as laid down in the Sixth Schedule.

(v) not drive a vehicle without seat belts and properly functioning lights and indicators.

(vi) ensure that his view through the rear-view mirror is not obstructed in any way.

(vii) keep the rear screen of the vehicle, if installed, clear at all times.

(viii) not engage in any action which is likely to distract his attention or impair his driving concentration in any manner.

(ix) keep well to the left of the road on a two lane road but give pedestrians, cyclists and other slow moving traffic sufficient room.

(x) keep a slow moving vehicle in the extreme left lane.

(xi) when passing on-coming traffic on a two-way road move over to the left half of the road and yield right-of-way on the right half to the traffic approaching from the opposite direction.

(xii) drive the vehicle on the left of the road on two lane two-way road except when making a legitimate overtaking maneuver.

(xiii) while following another vehicle maintain a minimum safe distance equal to one meter for every two km per hour of speed, i.e. thirty meters if the speed is sixty kilometres per hour.

(xiv) before crossing a level crossing with no gates bring his vehicle to a complete stop, look both ways and listen to make sure no train is approaching.

(xv) not attempt to cross a level crossing when the gates or barriers are closed and shall not attempt to pass through half opened gate.

(xvi) not attempt to gain a forward position by "Jumping the Queue" if traffic in front is held-up.

(xvii) give way to ambulance, fire engine and police vehicle, funeral precession and other emergency vehicle on emergency run.

THE PAKISTAN CODE

(xviii) not cross a single or double unbroken continuous lines marked on the road under any circumstances except when getting in or out of premises or a side road.

(xix) may cross a pair of parallel lines, one continuous and one broken, provided the line near to driver side is broken, there is no vehicle approaching from the opposite direction and overtaking can be safely completed.

(xx) not cross parallel lines for overtaking if the continuous line is near to driver side even if no vehicle is approaching from the opposite direction.

(xxi) not use indicators for any purpose other than to signal turning, lane changing maneuver or emergency.

(xxii) not overtake another vehicle by crossing the center, line on multi-lane road with no central reserve (median) whether or not marked on the road.

(xxiii) not occupy the extreme right lane for overtaking purposes on a three-lane road with two-way traffic.

(xxiv) on a multi-lane road before overtaking make sure-

(a) that no driver who is following him has begun to overtake him;

(b) that the driver ahead of him in the same lane has not given indication to overtake the vehicle in front of him; and

(c) that the lane he is about to take is clear for a sufficient distance, having regard to the difference between the speed of his vehicle and the vehicle being overtaken.

(xxv) overtake only on the right except when the driver in front has signaled right turn.

(xxvi) stop and give way to vehicles proceeding up hill while going down a narrow hill road.

(xxvii) not pull out sharply from behind or cut in front immediately while overtaking another vehicle,

(xxviii) obey and observe all traffic signs and signals.

(xxix) obey the signals of the traffic police officer in uniform even if they are in contravention of any rule.

(xxx) while turning right, give way to the traffic approaching from opposite direction.

(xxxi) give way to traffic approaching from his immediate right.

(xxxii) give way to the traffic in the round about.

THE PAKISTAN CODE

(xxxiii) not operate a radio, tape/cassette recorder, etc. while driving in a public place. If the vehicle is fitted with television-type receiving equipment, it should be so located that the viewer or screen is not visible from the driver's seat.

(xxxiv) not reverse his vehicle on a main road or within a school zone.

(xxxv) not use full headlight from dusk to dawn on undivided roads within built-up areas.

(xxxvi) turn on the lights from sunset to sunrise or when there is insufficient natural light due to mist, fog, rain, dust storm or snow.

(xxxvii) not turn on the headlights if the vehicle is stationed or parked.

(xxxviii) dip his headlights when approaching on-coming vehicle on undivided road or driving close behind another vehicle at nighttime:

(xxxix) give signal of his intention by flashing headlights a few times at night time before overtaking a vehicle.

(xl) not drive a vehicle fitted with lights, except those specified in the rules.

(xli) not stop his vehicle where it endangers or obstructs the traffic and shall not park on the black top portion of the highway outside the city limits.

(xlii) not open the door of a vehicle until the vehicle has stopped and he has made sure that it shall not cause any danger or inconvenience to other road users on the road or footpath. This also applies to passengers.

(xliii) switch on parking lights while parking outside the city limits at night.

(xliv) in case of a breakdown or other emergency stop outside the city limits, park his vehicle on the shoulders if one exists, turn on hazard lights and place an advance warning sign (a red reflecting triangle) 50-100 meters before the place of stopping.

(xiv) on a four lane highway keep in the left hand lane unless he is going to over take, or turn right, or pass parked vehicles.

(xlvi) while joining a multi lane national highway give way to traffic already on that highway and merge with the traffic on the national highway so as not to hamper or endanger the flow of traffic.

(xlvii) remain in the extreme left lane while driving heavy transport vehicle or any vehicle drawing a trailer, on a multi-lane highway.

(xlviii) while driving a motorcycle, scooter or moped and the pillion rider wear a safety helmet.

(xlix) not be without a warning triangle.

THE PAKISTAN CODE

PART III
PARKING

The driver of a road vehicle, motorcycle, animal drawn vehicle, moped or bicycle shall not park or let his vehicle stand,-

(i) within ten meters of a road intersection.

(ii) within three meters of a fire hydrant.

(iii) more than 0.5 metre from a curb.

(iv) less than 0.5 metre behind or in front of another parked vehicle.

(v) on a footpath.

(vi) at a bus stop.

(vii) in front of any drive way or blocking passage to a premises.

(viii) in "No Parking" zone. .

(ix) on the black topped part of the road where there is a shoulder.

(x) opposite or nearly opposite another standing vehicle or other obstruction (e.g. road repairs).

(xi) on the wrong side of the road.

(xii) near the crest of a hill.

(xiii) on a bridge.

(xiv) within ten meters of railway level crossing.

(xv) on the grass verge.

PART IV

FOR DRIVERS OF ANIMAL DRAWN VEHICLES

(1) The driver of animal drawn vehicle shall:—

(i) always keep close to the left edge of the road even if it appears clear of traffic.

(ii) give hand-signal clearly and well in time before stopping, turning or changing direction.

(iii) observe all limits of load and passengers as prescribed by the municipal and local authorities.

THE PAKISTAN CODE

(iv) not allow a minor or unauthorized person to take charge of his vehicle.

(v) not drive at night unless equipped with at least one lamp displaying a white light visible from a distance of 600 ft. to the front of the said vehicle and two red reflectors visible from a distance of 600 ft. to the rear.

(vi) observe all the rules applicable to road vehicles as laid down in Part II which are relevant in his case.

(vii) while hauling wide and protruding loads, mark the ends of his load with a red flag by day and with a red light by night.

PART V

FOR CYCLISTS

(1) The driver of cycle shall:—

(i) not ride a bicycle unless he has made sure that the cycle is in good mechanical condition particularly the brakes and tyres.

(ii) hold the handle bar of the bicycle with both hands except while signaling to turn and keep his feet on the pedals.

(iii) not hold on to another road vehicle, animal drawn vehicle or another cyclist.

(iv) not carry any passenger except a minor child less than twelve years

(v) not lead an animal while riding his bicycle.

(vi) use the cycle path where provided. If there is no cycle track, the driver of a bicycle shall ride along the left edge of the road. The driver of a cycle may however use a footpath if specially permitted by a traffic sign.

(vii) stop, change course or turn only after giving proper signals well in time.

(viii) carry a white light in front and a. clearly visible reflector in the rear while riding at night time.

(ix) ride in single file.

(x) observe all traffic sings, signals and rules especially those regarding overtaking, turning, passing and crossing.

(xi) get down while turning right at a major intersection in urban area and cross the road as a pedestrian.

THE PAKISTAN CODE

PART VI
FOR PERSONS INCHARGE OF ANIMALS

(1) The person incharge of animals shall:—

(i) make sure that the road is clear before he lets or takes animals on the road.

(ii) keep the animals being led or driven as far to the left side of the road as possible.

(iii) cause the animal to use the cattle creeps or overhead ramp where provided.

(iv) carry alight when herding, riding or leading animals after dark.

PART VII
FOR DRIVING ON MOTORWAY

(1) Entry of animal drawn vehicles, farm machinery including tractor, harvester, etc. and construction machinery including roller and bulldozers on any part of the motorway including slipway and shoulders, etc. is prohibited.

(2) Do not walk along any part of the motorway including shoulders and slipway except:-

(i) In case of emergency, walk on the shoulders to reach the nearest point for help;

(ii) to retrieve an object which is a source of hazard to the traffic, provided approaching traffic is at a safe distance and it is not a very busy motorway.

(3) Do not enter the motorway except at the designated points. When joining the motorway, approach from the slip road on the left, check the traffic already on the motorway, adjust your speed, look over the right shoulder or outside mirror and join only when there is a safe gap between you and the approaching traffic.

(4) Always drive, in the assigned lane except when necessary to overtake. Do not weave in and out of lanes.

(5) Transport vehicles and vehicles drawing a trailer are prohibited to use any lane other then the extreme left lane except for overtaking or when otherwise unavoidable in the interest of safety.

(6) Park only in the areas specially designated for the purpose and in the service areas.

(7) Do not park on any part of the motorway including shoulder, slipway or central reserve.

(8) In case of breakdown, move the vehicle immediately on to the shoulder, turn on the hazard warning lights and place the red warning triangle 50-100 meters back from the rear of the vehicle.

(9) Change lane only when it is necessary and do not change more than one lane at a time.

THE PAKISTAN CODE

(10) Never reverse or drive in the direction opposite to the traffic, even on the shoulders or slipway.

(11) Do not cross the central reserve (median) to make U-Turn.

(12) Do not drive slower than the posted minimum speed limit unless dictated by the traffic conditions.

(13) Do not overtake using extreme left lane or the shoulder.

(14) Overtake only on the right unless traffic is moving in queues and the queue on your right is moving slower. Do not move to a lane on your left to overtake.

(15) Take special care at road works. One or more lanes may be closed to traffic. Slow down and merge with traffic on adjoining lanes only when a safe gap becomes available. Do not force your way into other traffic.

(16) Do not stop on a slip road or on any other part of the motorway (including shoulder) to pick up or set down anyone.

(17) Leave the motorway by a slip road on your left when a sign indicates so. Move into it well before reaching you exit and stay in it. Signal left in good time and slow down to the exit speed of the slipway or ramp.

(18) All the rules other than those concerning particular class of road users or situations apply to motorway driving.

(19) Do not use any kind of phone inside a vehicle in any manner, which is likely to adversely affect driving concentration.

THE NINTH SCHEDULE

THE PAKISTAN CODE

[See section 50]

HAND SIGNALS

1. Right turn :—When about to turn to the right or to drive to the right hand side of the national highway a driver shall extend his right arm in a horizontal position outside of and to the right of his vehicle with the palm of the hand turned to the front.

2. Left turn :—When about to turn to the left or to drive on the left-hand side of the national highway, a driver shall extend his right arm and rotate it in an anti-clockwise direction.

3. Slow down :—When about to slow down, a driver shall extend his right arm with the palm downward and to the right of the vehicle and shall move the arm so extended up and down several times in such a manner that the signals can be seen by the driver of any vehicle which may be behind him.

4. Stop.When about to stop, a driver shall raise his right forearm vertically outside of and to the right of the vehicle, palm to the front

THE TENTH SCHEDULE

MAJOR VIOLATIONS AND PENALTIES

SI.No.	Violation	Fine	Imprisonment
1.	Driving when disqualified	Up to Rs.1,000	Up to six months
2.	Obtaining or applying for a driving licence without disclosing particulars of endorsement.	Rs.500--1,000	Up to six months
3.	Offences relating to construction of vehicle	Rs.500--1,000	Up to six months
4.	Offences relating to permits	Rs.1,000--2,000	Up to six months
5.	Overloading of goods 15 % in excess of permissible limits.	Rs.1000—5000	Up to one month
6.	Overloading of passengers 30°% in excess of permissible limits.	Rs.1,000--5,000	Up to one month
7.	Offences relating to accidents	Rs.1000—2000	Up to six months
8.	Taking vehicle without lawful Authority.	Rs.1,000--2000	Up to six months
9.	Unauthorized interference with vehicles.	Rs.500--1000	Up to six months
10.	Wilful disobedience or obstruction of lawful orders.	Rs.1000—2000	Up to six months
11.	Altering a licence or using an altered or forged licence.	Rs.1000-3000	Up to six months
12.	Driving a transport vehicle without obtaining a licence or without a licence which is effective or without a licence applicable to the vehicle driven.	Rs.500--1000	Up to one month
13.	Taking part in unauthorized race	Rs.1000—2000	Up to one month

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or trial or speed.		
14. Overtaking by, transport vehicle dangerously where prohibited.	Rs.500--1000	Up to one month
15. Driving at speed forty kph higher than specified.	Rs.750--1500	Up to one month
16. Driving a transport vehicle not covered by a certificate of fitness.	Rs.500—1000	Up to three month
17. Failing to stop when ordered police officer in uniform.	Rs.500--1000.	Up to one month by a
18. Driving when mentally or physically unfit to drive or under influence of drug or alcohol.	Rs.5000—10000	Up to one month
19. Driving recklessly.	Rs.500--1000.	Up to one month

THE ELEVENTH SCHEDULE

[See section 86]

POINT SYSTEM FOR TRAFFIC VIOLATIONS

Sl. No.	Violation	Points
1.	Causing an accident which results in:	
	(a) Death.	15
	(b) Serious bodily injury.	10
	(c) Minor bodily injury,	8
	(d) Property damage.	6
2.	Failing to stop on the occurrence of an accident.	10
3.	Driving with a suspended licence.	10
4.	Overloading passenger or goods in excess of permissible limit, to the extent of 30%0	6
5.	Driving without a licence valid for the vehicle driven.	6

THE PAKISTAN CODE

6. Driving under influence of drugs alcohol.	8
7. Failure to observe traffic signals:	6
(a) Red light (b) Flashing light.	4
8. Driving at speed in excess of permissible limits by 40 km/hr.	6
9. Overtaking dangerously or where prohibited.	6
10. Reckless driving.	6
11 Failure to stop when ordered by a Police Officer in uniform.	6
12 Driving wrong way in one way road	4
13 Failure to stop at a stop sign	4
14. Improper crossing of railway tracks.	4
15Failure to yield the right-of-way to other vehicles	4
16. Driving at night without proper lights	4
17. Interfering, etc. with an emergency vehicle	4
18. Driving a vehicle without proper authority.	4
19. Taking prohibited U-turn.	2
20. Disobeying yield sign,	2
21. Failure to yield the right-of-way to pedestrian	2
22. Following too closely or cutting in too sharply.	2
23. Driving with rear screen covered	2
24. Jumping traffic queue.	2
25. Driving on the wrong side of the road.	2
26.Failing to dip headlight for other traffic.	2
27. Using turn indicator for any purpose other than turning.	2
28. Reversing where prohibited.	2

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29. Failing to observe lighting hours	2
30 Failure to observe silence zone.	2
31. Loading in excess of the restriction on dimension of goods.	2
32. Towing violations	2
33. Failure to protect beginner drivers, etc.	2
34.Changing lane or turning without giving proper signal.	2
35. Careless driving.	2
36. Obstructing traffic.	2
37. Improper turn (turn from wrong lane)	2
38. Failure to stop for a school bus or emergency vehicle.	2
39. Improper loading of goods.	2
40, Other violations as, listed in Part I and Part III of Eighth Schedule.	1
41. Defective brakes	3
42. Defective steering	3
44. Tyre-over/under inflated.	3
45. Tyre - tread less than prescribed.	3
46. Tyre - different types on different axles.	3
47. Condition/load likely to cause nuisance.	3
48. Provisional licence holder deriving on national highway.	3
49. Contravening double white lines.	3
50. Contravening height restriction.	3
51. Stopping on zebra crossing.	3
52. Motorcycle passenger not sitting astride.	3

THE PAKISTAN CODE

THE TWELFTH SCHEDULE

[See section 79(3) and (4)]

STANDARD PENALTIES

PART I

MOVING VIOLATIONS

Sl. No.	Violation	Points
1.	Exceeding speed limits by less than forty kph	Rs.750
2.	Carrying passenger in a public service vehicle less than 30% in excess of the permissible limits.	Rs.1,500
3.	Failure to observe traffic signals:	
	—— Amber Flashing	Rs.200
	——Red Flashing	Rs.200
	——Red Light	Rs.300
4.	Carry goods less than 15 % in excess of permissible load.	Rs.1000
5.	Overtaking where prohibited	Rs.300
6.	Failure to yield the right-of-way to other vehicles.	Rs.300
7.	Interfering with an emergency vehicle.	Rs.500
8.	Loading in excess of the restriction of dimension of goods.	Rs.500
9.	Driving at night without proper lights	Rs.1000
10.	Driving on the wrong side of the road	Rs.500
11.	Disobeying stop sign	Rs.500
12.	Improper crossing of railway track	Rs.500
13.	Following too closely or cutting in too sharply.	Rs.300
14.	Driving with rear screen covered:	
	(i) Partially	Rs.150
	(ii) Fully	
15.	Jumping traffic queue	

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16. Failing to dip headlight for other traffic.	
17. Driving wrong way in one way street	
18. Using turn indicator for any purpose other than those prescribed.	
19. Plying where prohibited.	Rs.500
20. Improper loading of goods	Rs.500
21.Failing to observe lighting hours	Rs.500
22. Obstructing traffic	Rs.500
23. Failure to observe slow sign	Rs.200
24. Driver of motorcycle without safety helmet	Rs.200
25. Failure to stop for a school bus.	Rs.200
26. Prohibited lane changing	Rs.200
27. Disobeying yield sign	Rs.200
28. Failure to protect beginner drivers, etc.	Rs.200
29. Failure to yield the right of way to pedestrian.	Rs.300
30.Careless driving	Rs.300
31. Driving without driving licence	Rs.750
32. Driving an un-registered vehicle.	Rs.500
33. Driving a motor vehicle without a certificate of "No fault insurance" coverage.	Rs.1000
34. Carrying passengers in dangerous position in a transport vehicle.	Rs.750
35. Opening doors dangerously	Rs.200
36. Improper turn (turn from wrong lane)	Rs.300
37. Improper lane usage (lane straddling)	Rs.200
38. Driving vehicle emitting smoke, visible vapours, grit; sparks, ashes or oily substance	Rs.500

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39. Using horn in silence zone.	Rs.200
40. Driving motor vehicle producing unduly harsh, shrill loud or alarming noise.	Rs.300
41. Improper U-turn	Rs.300
42. Other violations listed in Parts I and II of the Eighth Schedule.	Rs.300

PART II

PARKING VIOLATIONS

1. More than 0.5 metre from the curb	Rs.200
2. Parking on a sidewalk	Rs.200
3. Less than 0.5 metre from another car	Rs.200
4. Parking on a zebra crossing	Rs.300
5.Less than 3 metres from fire hydrant	Rs.200
6.Less than 10 metres from a stop sign	Rs.200
7.Less than 10 metres from intersection	Rs.300
8.Parking in a "No Parking" Zone	Rs.300
9.Parking in front of an entrance to premises	Rs.300
10. Parking on a bus stop	Rs.200
11. Parking on a bridge	Rs.300
12.Parking on the road pavement outside municipal limit	Rs.200
13.Parking on a footpath	Rs.200
14. Parking on or near the brow of a hill	Rs.200
15. Parking on grass verges	Rs.200

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THE NATIONAL ZAKAT FOUNDATION (MERGER IN THE BAIT-UL-MAL) ORDINANCE, 2001

CONTENTS

1. Short title and commencement
2. Definitions
3. Merger of Foundation in the Bait-ul-Mal
4. Transfer etc., of employees of the Foundation

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THE NATIONAL ZAKAT FOUNDATION (MERGER IN THE BAIT-UL-MAL) ORDINANCE, 2001

ORDINANCE No. XVIII OF 2001

[*6th April, 2001*]

An Ordinance to provide for merger of the National Zakat Foundation in the Bait-ul-Mal

WHEREAS it is expedient to merger of the National Zakat Foundation in Bait-ul- Mal, and for matter connected therewith or ancillary thereto;

AND WHEREAS the National Assembly and the Senate stands suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999 and the Provisional Constitution Order No. 1 of 1999.

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE**,** in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999 and the Provisional-Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order 9 of 1999, and in exercise of all other powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Order tray be called the National Zakat Foundation (Merger in the Bait-ul-Mal) Ordinance, 2001.

(2) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context—

(a) "appointed day" means the 31st day of March, 2001;

(b) "Bait-ul-Mal" means the Bait-ul-Mal established under the Pakistan Bait-ul- Mal Act, 1991 (1 of 1992); and

(c) "Foundation" means the National Zakat Foundation established vide Notification No.S.R.0.162(1)/82, dated the 18th February, 1982.

3. Merger of Foundation in the Bait-ul-Mal.— (1) Notwithstanding anything contained in any other law for the time being in force the in the Bait-ul-Mal and assets, properties, movable and immovable, debts, rights and liabilities of whatever kind to which the Foundation, immediately before the appointed day was entitled or subject shall vest in Bait-ul-Mal and become the property, rights and liabilities of the Bait-ul-Mal;

(2) All contracts, bonds, agreements, power of attorneys, grants and all other instruments of whatever kind subsisting, owed or incurred by the Foundation or to which the Foundation may have been a party or which relate or connected with the Foundation shall remain in force and effect against

the Bait-ul-Mal as they were before the appointed day against the Foundation as if instead of Foundation the Bait-ul-Mal had been a party thereto.

(3) All suits, appeals or other legal proceedings of whatever nature by or against or relating to the Foundation which shall be pending on the appointed day in any Court, Tribunal or other authority shall be continued, prosecuted and in force in the same manner and to the same would have been continued, prosecuted or enforced, by Foundation as if this Ordinance would not have been promulgated, against the Bait-ul-Mal and the same shall not abate, be discontinued any way prejudiced or affected by the provisions of this Ordinance.

4. Transfer etc., of employees of the Foundation.— (1) Notwithstanding anything contained in any law or terms and conditions of service, agreement, contracts or other instrument, every person employed in, or under, the Foundation immediately before the appointed day including persons on deputation to other organizations shall stand transferred to and become an employee of, the Bait-ul-Mal on the same terms and conditions, including remuneration, tenure of service, rights and privileges as to pension and gratuity and other matters as we're applicable to him immediately before the appointed day, until his employment in the Bait-ul-Mal is terminated in accordance with his condition of service or his terms and conditions as are altered, by regulation, which shall not be less favourable than those by which was governed immediately before his transfer to the Bait-ul-Mal.

(2) Any person referred to in sub-section (1) who is on deputation with the Foundation shall continue in the employment of Bait-ul-Mal on deputation in accordance with the terms of his deputation:

Provided that if, within three months from the commencement of this Ordinance, he opts to be transferred to the service of Bait-ul-Mal on the terms and conditions referred to in sub-section (1) he shall stand so transferred.

(3) Any person referred to in sub-section (1), may, within three months, from the commencement of this Ordinance, opt not to be transferred to the service of Bait-ul-Mal and the option so exercised shall be final.

(4) The service of an employee who opts under sub-section (3) not to be transferred to the Bait-ul-Mal shall stand terminated on the day on which his option is accepted by the Bait- ul-Mal and he shall be entitled to be paid by the Bail-ul-Mal compensation equal to three months remuneration.

Explanation.— The compensation payable to an employee in this subsection shall be in addition to and not in derogation of his right as to pension, gratuity, provident fund money or other benefit to which he may be entitled under his conditions of service.

(5) The terms of service of an employee under sub-section (4) shall be deemed to be discharged from service owing to abolition of a permanent post for the purpose of admissibility to compensation/pension.

(6) No person referred to in sub-section (1) who stands transferred to Bait-ul-Mal shall, notwithstanding anything contained in any law, contract, agreement, or terms of conditions of service, be entitled to compensation because of his transfer.

THE NATURAL GAS (DEVELOPMENT SURCHARGE) ORDINANCE, 1967

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Levy of Development surcharge
4. Allowance to be made for Development surcharge for purposes of Income-Tax
5. Maximum Sale Price
6. Cognizance of offence
7. Power to make rules
8. Power to amend schedule

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THE NATURAL GAS (DEVELOPMENT SURCHARGE) ORDINANCE, 1967

[1]ORDINANCE No. I OF 1967

[23rd May, 1967]

An Ordinance to provide for the levy and collection of a development surcharge on natural gas and for matters connected therewith.

WHEREAS it is expedient to provide for the levy and collection of a development surcharge on natural gas and for matters connected therewith.

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate legislation necessary;

NOW THEREFORE, in exercise of the powers conferred by clause (1) of Article 29 of the Constitution and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:

1. Short title, extent and commencement.— This Ordinance may be called the Natural Gas (Development Surcharge) Ordinance, 1967.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Ordinance unless there is anything repugnant in the subject or context,

(1) "company" means a company specified in the Schedule;

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(2) "development surcharge" means the surcharge payable under section 3;

(3) "differential margin" means the amount by which the fixed sale price exceeds the prescribed price;

[2][(4) "fixed sale price" means such sale price and tariff, not exceeding [3][forty] rupees per deca cubic metre], as the [4][Federal Government] may, from time to time, by notification in the official Gazette, declare to be the fixed sale price for the purposes of this Ordinance; and different prices and tariffs may be so declared in relation to different companies and different consumers.]

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[1]Approved by the National Assembly of Pakistan on the 23rd March, 1967, see Gaz. of P., 1967, Ext. (Rawalpindi), dated the 23rd May, 1967, p. 263.
[2]Subs. by the Finance Ordinance, 1969 (16 of 1969), s. 13, for clause (4), (*with effect from the first day of July, 1969*).
[3]Subs. by Act 7 of 1990, s. 5.
[4]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(5) "natural gas" means gas obtained from bore holes and wells consisting primarily of hydrocarbons;

(6) "prescribed price" means such sale price and tariff as the [4][Federal Government] may, in accordance with the Natural Gas Rules, 1960, by notification in the official Gazette, declare, in respect of any period, whether before or after the commencement of this Ordinance to be the prescribed price for the purpose of this Ordinance.

3. Levy of Development Surcharge.— Every company shall [1][collect and] pay to the [2][Federal Government] a development surcharge equal to the differential margin in respect of natural gas sold by it after thirty-first day of May, 1964.

(2) The development surcharge in respect of natural gas sold before the commencement of this Ordinance shall be paid within such time after such commencement as may be specified by the [2][Federal Government] or any officer authorised by it in this behalf.

(3) [3][An amount at the rate of [4][fifteen] per cent per annum shall be payable in addition to the] amount due under sub-section (1) or under sub-section (2), if the amount is not paid within the time specified for such payment [:][5]

[5][Provided that the Federal Government may, subject to such conditions or restrictions as it may think fit to impose, by notification in the official Gazette, grant only [6][two time] exemption to any company from the requirement to pay additional amount payable under this sub-section, and a notification issued under this proviso shall be effective from the date specified therein notwithstanding the date of its issue in the official Gazette [:][6]

[6][Provided further that exemption given to any company under the foregoing proviso shall always be supported by reasons justifying such exemption issued with the approval of the Secretary and Minister for Petroleum and Natural Resources Division.]

4. Allowance to be made for Development Surcharge for purposes of Income-Tax. The amount paid by a company as development surcharge shall be an expenditure for which allowance is to be made under [7][section [5][20] of the Income Tax Ordinance, [5][2001] [5][(XLIX of 2001)] in computing the profits or gains of that company.

5. Maximum Sale Price. No company shall sell or offer for sale natural gas at a price higher than the fixed sale price.

(2) Where any company contravenes the provisions of sub-section (1) , every director, manger, secretary or other officer who was in charge of, and was responsible to, the company for

[1]Ins. By Finance Act XVII of 2012, s. 3 (w.e.f. 01-07-2012).
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[3]Subs. by the Natural Gas (Development Surcharge) (Amdt.) Ordinance, 1981 (10 of 1981) s. 3, for certain words.
[4]Subs. by Act I of 03, s. 4.
[5]Subs. and added by Finance Act IV of 2007, s. 5 (w.e.f. 01-07-2007).
[6]Subs. and added by Finance Act XVII of 2012, s. 3 (w.e.f. 01-07-2012).
[7]Subs. by the Federal Laws (Revision and Declaration) Ordinance 1981 (27 of 1981), s. 3 and Sch., II, for certain words.

the conduct of its business or for the management of its sales at the time the contravention was committed, shall, unless he proves that the contravention was committed without his knowledge or that he exercised all due diligence to prevent such contravention, be guilty of an offence punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

6. Cognizance of offence. No court shall take cognizance of an offence under this Ordinance save on a complaint in writing made by or under the authority of the [1][Federal Government].

7. Power to make rules. The [1][Federal Government] may, by notification in the official Gazette, make [2]rules for carrying out the purposes of this Ordinance

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for–

(a) the manner and time of payment of development surcharge; and

(b) any other matter for which provision is, in the opinion of the [1][Federal Government], necessary for carrying into effect the provisions of this Ordinance.

8. Power to amend Schedule. The [1][Federal Government] may, by notification in the official Gazette, make such amendments and modifications in the Schedule as it thinks fit.

[3][SCHEDULE

1. Sui Northern Gas Pipelines Limited.

2. Sui Northern Gas Company Limited.

3. Mari Gas Company Limited.]

[4][4. Pakistan Petroleum Limited.]

[5][5. Tullow Pakistan (Development) Limited.]

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]For such rules see, Gaz. of P., 1967, Ext., p. 54, dated 8-2-1967.
[3]Subs. by S.R.O. No. 426(I)/89, dt. 24-4-89, for the Schedule, which was previously amended by various S.R.O. Notifications from time to time.
[4]Added by S.R.O. No. 797 (I)/89, dt. 29-7-1989.
[5]Added by S.R.O. No. 1126(I)/99, dt. 29-10-1999.

THE NATURALIZATION ACT, 1926

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3. Grant of certificate of naturalization
4. Contents and form of application
5. Grant of certificate
6. Oath of allegiance
7. Effect of grant of certificate and taking of oath
8. Revocation of certificate
9. Effect of revocation of certificate
10. Declaration of alienage
11. Inquires
12. Oaths and affidavits
13. Power to make rule
14. Limitation to the grant of naturalization under this Act

14A. [Omitted]

14B. Application to certificates granted before partition

14C. Validation of certain certificates

15. [Repealed]

The Schedule [Repealed]

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THE NATURALIZATION ACT, 1926

ACT No. VII OF 1926

[26th *February*, 1926]

An Act to consolidate and amend the law relating to the naturalization in [1][Pakistan] of aliens resident therein.

WHEREAS it is expedient to consolidate and amend the law relating to the naturalization in [1][Pakistan] of aliens resident therein;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the [2][*] Naturalization Act, 1926.

[1][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date as the [3][Federal Government] may, by notification in the [4][official Gazette], appoint.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) [5][* * * * * *]

(b) "certificate of naturalization" means a certificate of naturalization granted under this Act; and

[1][(c) "minor" means, notwithstanding anything in the Majority Act, 1875 (IX of 1875), any person who has not completed his age of twenty-one years.]

3. Grant of certificate of naturalization.—(1) [4][The [6][Director General, Immigration and Passports]] may grant a certificate of naturalization to any person who makes an application in this behalf and satisfies [4][the [6][Director General, Immigration and Passports]]—

[1]Subs. by Act No. XXIII of 1951, ss. 2, 3 and 4.
[2]Omitted by the Adaptation of Central Acts and Ordinances Order, 1949 (O. No. 4 of 1949).
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. 4 of 1975), Art. 2 and Table.
[4]Subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.
[5]Omitted by Act No. LXI of 1952, s. 2.
[6]Subs. by Act No. XVI of 2025, s.2.

(*a*) that he is not a minor;

[1][(*b*) that he is neither a citizen of Pakistan nor a subject of any state of which a citizen of Pakistan is prevented by or under any law from becoming a subject by naturalisation;]

[2][(*c*) that he has resided in Pakistan throughout the period of twelve months immediately preceding the date of the application, and has, during the seven years immediately preceding the said period of twelve months, resided in Pakistan for a period amounting in the aggregate to not less than four years;]

(*d*) that he is of good character;

(*e*) that he has an adequate knowledge of a language which has been declared by [3][the [4][Federal Government]] by notification in the [3][official Gazette], to be [3][one of the principal vernaculars of [6][Pakistan]] ; and

(*f*) that he intends, if the application is granted, to reside in [5][Pakistan] or to enter or continue in the service of the [6][State] [7][in Pakistan]:

Provided that nothing in clause (*c*) or clause (*f*) shall apply in the case of a woman who was a [3][citizen of Pakistan] previously to her marriage to a person not a [3][citizen of Pakistan] and whose husband has died or whose marriage has been dissolved.

(2) Nothing in this section shall be deemed to prevent the grant of a certificate of naturalization to any person to whom a certificate of naturalization has been issued under the Indian Naturalization Act, 1852 (XXX of 1852).

4. Contents and form of application.—(1) Every application for a certificate of naturalization of shall be in writing and shall state, to the best of the knowledge and belief of the applicant,—

(*a*) his age;

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(*b*) his place of birth;

(*c*) his place of residence;

(*d*) his profession, trade, or occupation;

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[1]Subs. by Act No. LXI of 1952, s. 3.
[2]Subs. by Act No. XLIV of 1957, s. 2.
[3]Subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.
[4]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[5]Subs. by Act No. XXIII of 1951, s. 5.
[6]Subs. by the Central Laws (Adaptation) Order, 1961 (P. O. No. 1 of 1961), Art 2 and Sch. (*with effect from the 23rd March, 1956*).
[7]Subs. by the Adaptation of Central Acts and Ordinances Order, 1949 (O. No. 4 of 1949), Art. 3 and Sch.

(*e*) full particulars regarding his qualifications in respect of the matters referred to in clauses (*a*) to (*f*) of sub-section (1) of section 3;

(*f*) whether he has at any time previously applied for the grant of a certificate of naturalization under [1][* * *] this Act [2][* * *];

(*g*) whether any such application has been rejected;

(*h*) whether any such certificate has been granted to him; and

(*i*) whether any such certificate granted to him has been revoked [3][or whether he has been deprived of his citizenship under the Pakistan Citizenship Act, 1950 [2][* * *]].

(2) Every such application shall be signed by the applicant and shall be accompanied by an affidavit sworn by him verifying that the statements contained therein are true to the best of his knowledge and belief.

(3) [4][The [5][Director General, Immigration and Passports]] shall satisfy [5][himself] as to the truth of the statements contained in the application, and for this purpose may cause to be made such further inquiry, if any, and may require such further evidence, if any, either, by affidavit or otherwise as [5][he] thinks necessary.

5. Grant of certificate—(1) If [4][the [5][Director General, Immigration and Passports]] is satisfied that the applicant is qualified under section 3 for the grant of a certificate of naturalization and is otherwise a fit person for the grant of such certificate, [5][he] may grant a certificate reciting the qualifications of the applicant for such grant and conferring upon him all the rights, privileges and capacities of naturalization under this Act, except such rights, privileges or capacities, if any, as may specifically be withheld by the certificate.

(2) Any such certificate may, if the applicant so requests, include the name of any minor child of the applicant, not being by birth [2][a citizen of Pakistan] who was born before the date of the certificate and is for the time being resident in [3][Pakistan] and under the control of the applicant; and shall grant to any child so included all the rights, privileges and capacities of naturalization under this Act, except such rights, privileges or capacities, if any, as may specifically be withheld by the certificate.

[5][(3) An appeal against the orders of Director General, Immigration and Passports under this section shall lie to Secretary of the administrative division and his decision shall be final.]

6. Oath of allegiance.—Every person to whom a certificate of naturalization has been granted shall, within thirty days, from the date of the grant thereof, take and subscribe the following oath, namely:—

"I, A. B., of
do hereby swear (*or* affirm) that I will be faithful and bear true allegiance to [3][the Constitution of Pakistan]":

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[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ord. No. XXVII of 1981), s. 3 and Sch. II.
[2]Omitted and subs. by Act No. LXI of 1952, ss. 4 and 5.
[3]Added and subs. by Act No. XXIII of 1951, ss. 6, 7 and 8.
[4]Subs.by the Government of India (Adaptation of Indian Laws) Order, 1937.
[5]Subs. by Act No. XVI of 2025, ss.3 and 4.

Provided that [1][the [2][Secretary of the administrative division]] may extend the time allowed under this section in any case in which [2][he] is satisfied that failure to take and subscribe the oath within that time was due to sufficient cause.

[3][**7. Effect of grant of certificate and taking of oath.**—(1) No certificate of naturalisation shall have effect until the person to whom it is granted has taken and subscribed the oath prescribed by section 6, but upon the taking and subscribing of such oath such person, and any child of any such person who has been included in the certificate under sub-section (2) of section 5, shall be deemed to be citizens of Pakistan and be entitled to all the rights, privileges and capacities of a citizen of Pakistan born within Pakistan, except such rights, privileges or capacities, if any, as may have been withheld from them respectively by the certificate, and shall within Pakistan be subject to all the obligations, duties and liabilities of a citizen of Pakistan ; and the wife of any such person to whom a certificate of naturalisation is granted after the commencement of the Indian Naturalization (Amendment) Act, 1935, shall, if not already a citizen of Pakistan, in like manner be so deemed and be so entitled and so subject, if within one year, or such longer period as the [2][Secretary of the administrative division] may in special circumstances allow, from the date of the taking and subscribing of such oath by her husband, she makes to the [2][Secretary of the administrative division] a declaration that she desires to be deemed to be a citizen of Pakistan, and if she is an alien as defined in the Pakistan Citizenship Act, 1951, obtains a certificate of domicile under that Act, and takes and subscribes the oath prescribed by section 6 of this Act.

(2) When the person to whom a certificate of naturalisation has been granted has taken and subscribed the oath prescribed by section 6, any wife thereafter married by, and any child thereafter born to, such person shall, if she or he is not a citizen of Pakistan and if such person aforesaid at the date of the marriage or birth, as the case may be, retains any rights, privileges or capacities of a citizen of Pakistan under this Act, be entitled, subject, in the case of a wife, to her making to the [4][Federal Government] a declaration as provided in sub-section (1) and, if necessary, upon obtaining the certificate of domicile and making and subscribing the oath as further provided in that sub-section, to the same rights, privileges and capacities, and be subject to the same obligations, duties and liabilities, to which such person aforesaid was at that date entitled and subject.]

8. Revocation of certificate.—(1) [1][Where the [2][Secretary of the administrative division]] is satisfied that a certificate of naturalization granted under this Act [5][* * *]] was obtained by false representation or fraud or by concealment of material circumstances, or that the person to whom the certificate has been granted has shown himself by act or speech to be disaffected or disloyal to [6][Pakistan], [1][the [2][Secretary of the administrative division]] shall, by order in writing, revoke the certificate.

(2) Without prejudice to the foregoing provisions, [1][the [2][Secretary of the administrative division]] shall, by order in writing, revoke such a certificate of naturalization as aforesaid in any case in which [2][he] is satisfied that the person to whom the certificate was granted—

(*a*) has, during any war in which [6][Pakistan] is engaged unlawfully traded or communicated with the enemy, or with a subject of an enemy state, or been engaged in, or associated with, any business which is to his knowledge carried on in such a manner as to assist the enemy in such war; or

[1]Subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.
[2]Subs. by Act No. XVI of 2025, ss. 5, 6 and 7.
[3]Subs. by Act No. LXI of 1952, s. 6.
[4]Subs. by the Federal Laws Adaptation of Laws Order, 1975(P. O. No. 4 of 1975), Art. 2 and Table.
[5]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ord. No.XXVII of 1981), s. 3 and Sch. II.
[6]Subs. by Act No. XXIII of 1951, s. 10.

(*b*) has, within five years of the date of the grant of the certificate, been sentenced by any Court [1][in Pakistan] [2][* * *] to imprisonment for a term of not less than twelve months, or to pay a fine of not less than one thousand rupees; or

(*c*) was not of good character at the date of the grant of the certificate; or

[3][(*d*) has since the grant of the certificate been, for a period of not less than seven years, ordinarily resident out of Pakistan otherwise than as a representative of a citizen of Pakistan, or of a Pakistan firm or company or a Pakistan institution, or in the service of a Government in Pakistan or in the armed forces of Pakistan, and has not maintained substantial connection with Pakistan; or]

(*e*) remains, according to the law of a state at war with [4][Pakistan], a subject of that state; and that the continuance of the certificate is not conducive to the public good.

(3) [5][* * * * * * *]

(4) [5][The [6][Secretary of the administrative division]] may, if [6][he] thinks fit, before making an order under this section, refer the case for such inquiry as is hereinafter specified, and, in any case to which sub-section (1) or clause (*a*), clause (*c*) or clause (*e*) of sub-section (2) applies, [5][the [6][Secretary of the administrative division]] shall by notice given to or sent by post to the last known address of, the holder of the certificate, give him an opportunity of claiming that the case be referred for such inquiry, and, if the holder so claims in accordance with the notice, [5][the [6][Secretary of the administrative division]] shall refer the case for inquiry accordingly.

(5) An inquiry under this section shall be held by such person or persons and in such manner as [5][the [6][Secretary of the administrative division]] may direct in each case.

(6) Where a certificate is revoked under this section, the revocation shall have effect from such date as may be directed by [5][the [6][Secretary of the administrative division]], and thereupon the certificate shall be given up and cancelled; and any person who, without reasonable cause the burden of proving which shall lie upon him, fails to give up his certificate within one month from the aforesaid date, shall be punishable with fine, which may extend to one thousand rupees.

(7) For the purposes of this section, any person who has acquired any of the rights, privileges or capacities of naturalization under sub-section (2) of section 5 or sub-section (2) of section 7 by reason of the grant to his parent of a certificate of naturalization, may, after he has attained majority, be deemed to be a person to whom a certificate of naturalization has been granted.

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[1]Ins. by the Central Laws Adaptation Order, 1961 (P. O. 1 of 1961), Art. 2 and Sch. (*with effect from the 23rd March, 1956*).
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ord. No. XXVII of 1981), s. 3 and Sch. II.
[3]Subs. by Act No. LXI of 1952, s. 7.
[4]Subs. by Act No. XXIII of 1951, s. 10.
[5]Omitted and subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.
[6]Subs. by Act No. XVI of 2025, s.7.

9. Effect of revocation of certificate.—(1) Where a certificate is revoked under section 8, the former holder thereof shall cease to be deemed to be a [1][citizen of Pakistan].

(2) On such revocation, [2][the [3][Secretary of the administrative division]] may, by order in writing direct that the wife and minor children (or any of them) of the person whose certificate is revoked shall cease to be deemed to be [1][citizens of Pakistan]; but where no such direction is made, the status of the wife and minor children of the person whose certificate is revoked shall not be affected by the revocation:

[1][Provided that no such order shall be made in the case of a wife unless by reason of the acquisition by her husband of a new nationality she has also acquired that nationality:]

Provided [4][further] that, in the case of a wife who [1][was, or, if the Pakistan Citizenship Act, 1951, had been in force at the date of her birth, would have been, by birth a citizen of Pakistan], no such order as aforesaid shall be made, unless [2][the [3][Secretary of the administrative division]] is satisfied that, if she had held a certificate of naturalization in her own right, the certificate could properly have been revoked under section 8, and the provisions of that section as to referring cases for inquiry shall apply to the making of any such order as they apply to the revocation of a certificate.

10. Declaration of alienage.—(1) A declaration of alienage in such manner as may be prescribed by rules made under this Act may be made,—

(*a*) within one year of his attaining majority, by any child who has acquired any of the rights, privileges or capacities of naturalization under sub-section (2) of section 5; or sub-section (2) of section 7; or

(*b*) within six months from the date of the revocation of a certificate under section 8, or of the death of, or of the dissolution of her marriage with, the holder of any such certificate as is therein referred to, by the wife of the person whose certificate has been revoked, or who has died, or whose marriage to her has been dissolved, as the case may be.

(2) Where a declaration of alienage has been made in the manner aforesaid, the person making the same, and the wife of any such person, and any children of any such person who are minors and are not by birth [1][citizens of Pakistan], shall cease to be deemed to be [1][citizens of Pakistan]:

[4][Provided that the wife of any such person shall not cease to be deemed to be a [1][citizen of Pakistan] under this sub-section, unless by reason of the acquisition by her husband of a new nationality she has also acquired that nationality.]

11. Inquires. Every person making an inquiry under the orders [2][the [3][Director General, Immigration and Passports]] under sub-section (3) of section 4, and every person appointed to hold an inquiry under sub-section (5) of section 8, shall be deemed to be a public servant within the meaning of the [1][Pakistan] Penal Code (XLV of 1860), and shall for the purposes of such inquiry have the same powers as are vested in a Court under the Code of Civil Procedure, 1908 (V of 1908),

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[1]Subs. by Act No. LXI of 1952, ss. 8 and 9.
[2]Subs. by the Government of India (Adaptation of Indian Laws) Order, 1937.
[3]Subs. by Act No. XVI of 2025, ss. 8 and 9.
[4]Ins. and added by Act No. I of 1935, ss. 3 and 4.
[5]Subs. by Act No. XXIII of 1951, s. 11.

when trying a suit, in respect of the following matters :—

(i) enforcing the attendance of any person and examining him on oath;

(ii) compelling the production of documents and material objects; and

(iii) issuing commissions for the examination of witnesses; and every such inquiry shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 of the [1][Pakistan] Penal Code (XLV of 1860).

12. Oaths and affidavits.—(1) All oaths and affidavits for the purposes of this Act shall be sworn before a Magistrate or such other person as may be appointed in this behalf by [2][the [3][Director General, Immigration and Passports]].

(2) The Magistrate or other person by whom an oath of allegiance is administered under section 6 shall grant to the person making the same a certificate in writing of his having taken and subscribed such oath and of the date of his taking and subscribing the same, and shall forward to [2][the [3][Director General, Immigration and Passports]] the oath so taken and subscribed, together with a copy of such certificate.

13. Power to make rules.—(1) [2][The [4][Federal Government]] may, [2][* * *], by notification in the [2][official Gazette], make rules, to give effect to the provisions of this Act.

(2) In particular and without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely:—

(*a*) the form or forms in which certificates of naturalization shall be granted, and the manner in which they shall be recorded;

(*b*) the manner in which declarations of alienage shall be made and recorded.

(*c*) the recording of oaths of allegiance; and

(*d*) the fees which may be imposed for the issue of any certificate, whether of naturalization or otherwise, granted under this Act.

14. Limitation to the grant of naturalization under this Act.—Nothing contained in this Act shall be deemed to entitle to any of the rights, privileges or capacities of a [5][citizen of Pakistan] the child of any person who is himself so entitled by reason only of the inclusion of his name in a certificate of naturalization under sub-section (2) of section 5 or of the grant of a certificate of naturalization to his parent.

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[1]Subs. by Act No. XXIII of 1951, s. 11.
[2]Subs. and omitted by the Government of India (Adaptation of Indian Laws) Order, 1937.
[3]Subs. by Act No. XVI of 2025, s 10.
[4]Subs. by the Federal Adaptation of Laws Order, 1975(P. O. No. 4 of 1975), Art. 2 and Table.
[5]Subs. by Act No. LXI of 1952, s. 10.

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14A. [1][* * * * * * *]

[2][**14B. *Application to certificates granted before Partition.***—The provisions of this Act shall, on or after the fifteenth day of August 1947, continue to apply, as respects [3][* * *] Pakistan, to certificates granted under this Act or under the Indian Naturalisation Act, 1852, before that day by the Local Government or Provincial Government of any Province which or any part of which was included in the Dominion of India on that day, and any such certificates may after that day be revoked as respects [3][* * *] Pakistan accordingly.]

[4][**14C. Validation of certain certificates.**—Any certificate granted under the Indian Naturalization Act, 1852, or under this Act before the commencement of the Naturalisation (Amendment) Act, 1952, and standing unrevoked as respects Pakistan at the commencement of the last-named Act, shall be deemed to be a certificate of naturalisation under this Act as amended by the Naturalisation (Amendment) Act, 1952 (LXI of 1952).]

15. [5][* * * * * * *]

THE SCHEDULE

[5][* * * * * * *]

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Date: 08-07-2025

[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ord. No. XXVII of 1981), s. 3 and Sch. II.
[2]Ins. by the Adaptation of Central Acts and Ordinances Order, 1949 (P. O. 4 of 1949). Art. 2 and Sch.
[3]Omitted by Act No. XXIII of 1951, s. 13.
[4]Added by Act No. LXI of 1952, s. 11.
[5]Repealed by the Repealing Act, 1927 (XII of 1927) s. 2 and Sch.

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THE NEGOTIABLE INSTRUMENTS ACT, 1881

[1]ACT NO XXVI OF 1881

[*9th December*, 1881]

An Act to define and amend the law relating to Promissory Notes, Bills of Exchange and Cheques

Preamble.

WHEREAS it is expedient to define and amend the law relating to promissory notes, bills of exchange and cheques; It is hereby enacted as follows: —

CHAPTER I
PRELIMINARY

1. Short title. This Act may be called the Negotiable Instruments Act, 1881.

Local extent. Saving of usages relating to hundis, etc. Commencement. [2][It extends to the whole of Pakistan]; but nothing herein contained affects [3][the provisions of sections 24 and 35 of the State Bank of Pakistan Act, 1956 (XXXIII of 1956)]; and it shall come into force on the first day of March, 1882.

[4][**1A**. **Application of the Act.** Every negotiable instrument shall be governed by the provisions of this Act, and no usage or custom at variance with any such provision shall apply to any such instrument.]

2. [*Repeal of enactments.*] *Rep. by the Amending Act,* 1891 *(XII of* 1891).

[5]**[3. Interpretation-clause.—** In this Act, unless there is anything repugnant in the subject or context,**—**

(a) "accommodation party" means a person who has signed a negotiable instrument as a maker, drawer, acceptor or indorser without receiving the value thereof and for the purpose of lending his name to some other person;

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1876, p. 1836 ; for the Reports of the Select Committee, *see ibid.*, 1877, Pt. V, p. 321, 1878, Pt. V, p. 145 ; 1879, Pt. V, p. 75 ; 1881, Pt. V, p. 85 ; for discussions in Council, *see ibid.*, 1876, Supplement, p. 1081 ; and *ibid.*, 1881, Supplement, p. 1409.

This Act has been declared to be in force in Balochistan by the British Balochistan Laws Regulation, 1913 (2 of 1913), s. 3.

For summary procedure on negotiable instruments, *see* the Code of Civil Procedure, 1908 (Act 5 of 1908), Sch. I, Order XXXVII.

This Act has been extended to—

(a) the Leased Areas of Balochistan, *see* the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950); and applied in the Federated Areas of Balochistan, *see* Gaz. of India, 1937, Pt. I, p. 1499 ;

(b) the Balochistan States Union, *see* the Balochistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953), as amended by the Balochistan States Union (Federal Laws) (Extension) (Second Amendment) Order, 1953 (G. G. O. 19 of 1953); and

(c) the State of Bahawalpur, *see* the Bahawalpur (Extension of Federal Laws) Order, 1953 (G. G. O. 11 of 1953), as amended.

The Act has been and shall be deemed to has been brought into force in Gwadur with effect from the 8th September, 1958 by the Gwadur (Application of Central Laws) Ordinance,1960 (37 of 1960), s. 2.

The Act, as in force in the North-West Frontier Province immediately before the commencement of N.W.F.P. Regulation No. II of 1974, has been applied to the Provincially Administered Tribal Areas of Chitral, Dir, Kalam, Swat and Malakand Protected Area, by N.W.F.P. Regulation, No. II of 1974, s.3.

The Act and the rules, notifications and order made thereunder, as in force in N.W.F.P. before the 15th July, 1975, have been applied to the Districts of Chitral, Dir, Swat and Malakand Protected Area of the N.W.F.P., by Regulation No. III of 1975, s. 2 and Sch.

[2]Subs. by the Negotiable Instruments (Amdt.) Act, 1957 (5 of 1958), s.2 (with effect from the 14th October, 1955), for "It extends to [all the Provinces and the Capital of the Federation]". The words in crotchets were subs. by A. O., 1949, Arts. 3(2) and 4, for "the whole of British India".

[3] Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 2 ,for certain original words. .

[4]S.1A,ins.*ibid.*,s.3.

[5] Subs. *ibid.*, s. 4, for the original section as amended by the Decentralization Act, 1914 (4 of 1914), s. 2 and Sch., Pt. I, A. O., 1937 and the Negotiable Instruments (Amdt.) Act, 1957 (5 of 1958), s. 3.

(b) "banker" means a person transacting the business of accepting, for the purpose of lending or investment, of deposits of money from the public, repayable on demand or otherwise and withdrawable by cheque, draft, order or otherwise, and includes any Post Office Savings Bank;

(c) "bearer" means a person who by negotiation comes into possession of a negotiable instrument, which is payable to bearer;

(d) "delivery" means transfer of possession, actual or constructive, from one person to another;

(e) "issue" means the first delivery of a promissory note, bill of exchange or cheque complete in form to a person who takes it as a holder;

(f) "material alteration" in relation to a promissory note, bill of exchange or cheque includes any alteration of the date, the sum payable, the time of payment, the place of payment, and, where any such instrument has been accepted generally, the addition of a place of payment without the acceptor's assent; and

(g) "notary public" includes any person appointed by the [1][Federal Government] to perform the functions of notary public under this Act and a notary appointed under the Notaries Ordinance, 1961 (XIX of 1961)]

CHAPTER II
OF NOTES, BILLS AND CHEQUES

4. "Promissory note." A "promissory note" is an instrument in writing (not being a bank-note or a currency-note) containing an unconditional undertaking, signed by the maker, to pay [2][on demand or at a fixed or determinable future time] a certain sum of money only to, or to the order of, a certain person, or to the bearer of the instrument.

Illustrations

A signs instruments in the following terms:

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(a) "I promise to pay B or order Rs. 500."

(b) "I acknowledge myself to be indebted to B in Rs. 1,000 to be paid on demand, for value received."

(c) "Mr. B, I O U Rs. 1,000."

(d) "I promise to pay B Rs. 500 and all other sums which shall be due to him."

(e) "I promise to pay B Rs. 500, first deducting thereout any money which he may owe me."

[1] Subs. by F.A.O., 1975, Art, 2 and Table, for "Central Government".
[2]Certain words ins. by Ord. 49 of 1962, s. 5.

(f) "I promise to pay B Rs. 500 seven days after my marriage with C."

(g) "I promise to pay B Rs. 500 on D's death, provided D leaves me enough to pay that sum."

(h) "I promise to pay B Rs. 500 and to deliver to him my black horse on 1st January next."

The instruments respectively marked (a) and (b) are promissory notes. The instruments respectively marked (c), (d), (e), (f), (g) and (h) are not promissory notes.

5. "Bill of exchange". A "bill of exchange" is an instrument in writing containing an unconditional order, signed by the maker, directing a certain person to pay [1][on demand or at a fixed or determinable future time] a certain sum of money only to, or to the order of, a certain person or to the bearer of the instrument.

A promise or order to pay is not "conditional," within the meaning of this section and section 4, by reason of the time for payment of the amount or any instalment thereof being expressed to be on the lapse of a certain period after the occurrence of a specified event which, according to the ordinary expectation of mankind, is certain to happen, although the time of its happening may be uncertain.

The sum payable may be "certain," within the meaning of this section and section 4, although it includes future interest [2][or return in any other form] or is payable at an indicated rate of exchange, or is [3][payable at the current rate of exchange, and although it is to be paid in stated instalments and contains a provision that on default of payment of one or more instalments or interest [2][or return in any other form], the whole or the unpaid balance shall become due].

[4][A promise or order to pay is not 'conditional' nor is the sum payable 'uncertain' within the meaning of this section or section 4 by reason of the sum payable being subject to adjustment for profit or loss, as the case may be, of the business of the maker.]

[5][Where the person intended can reasonably be ascertained from the promissory note or the bill of exchange, he is a "certain person" within the meaning of this section and section 4, although he is misnamed or designated by description only.

An order to pay out of a particular fund is not unconditional within the meaning of this section; but an unqualified order to pay, coupled with—

(a) an indication of a particular fund out of which the drawee is to reimburse himself or a particular account to be debited to the amount, or

(b) a statement of the transaction which gives rise to the note or bill, is unconditional.

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[1] Ins. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 6.
[2] Ins. by the Negotiable Instrument (Amdt.) Ordinance, 1980 (61 of 1980), s. 2.
[3] Subs. by Ord. 49 of 1962, s. 6, for "according to the course of exchange, and although the instrument provides that, on default of payment of an instalment, the balance unpaid shall become due".
[4] New paragraph ins. by Ord. 61 of 1980, s. 2.
[5] Subs. by Ord. 49 of 1962, s. 6, for the original paragraph.

Where the payee is a fictitious or non-existing person the bill of exchange may be treated as payable to bearer.].

6. "Cheque". A "cheque" is a bill of exchange drawn on a specified banker and not expressed to be payable otherwise than on demand.

7. "Drawer." "Drawee". The maker of a bill of exchange or cheque is called the "drawer;" the person thereby directed to pay is called the "drawee."

"Drawee in case of need." When in the bill or in any indorsement thereon the name of any person is given in addition to the drawee to be resorted to in case of need, such person is called a "drawee in case of need."

"Acceptor". After the drawee of a bill has signed his assent upon the bill, or, if there are more parts thereof than one, upon one of such parts, and delivered the same, or given notice of such signing to the holder or to some person on his behalf, he is called the " acceptor."

"Acceptor for honour". [1][When a bill of exchange has been noted or protested for non-acceptance or for better security,] and any person accepts it *supra protest* for honour of the drawer or of any one of the indorsers, such person is called an "acceptor for honour."

"Payee". The person named in the instrument, to whom or to whose order the money is by the instrument directed to be paid, is called the "payee."

[2][**8. "Holder".** The "holder" of a promissory note, bill of exchange or cheque means the payee or indorsee who is in possession of it or the bearer thereof but does not include a beneficial owner claiming through a *benamidar*.

Explanation.— Where the note, bill or cheque is lost and not found again, or is destroyed, the person in possession of it or the bearer thereof at the time of such loss or destruction shall be deemed to continue to be its holder.]

[3][**9. "Holder in due course".** "Holder in due course" means any person who for consideration becomes the possessor of a promissory note, bill of exchange or cheque if payable to bearer, or the payee or indorsee thereof, if payable to order, before it became overdue, without notice that the title of the person from whom he derived his own title was defective.

Explanation.— For the purposes of this section the title of a person to a promissory note, bill of exchange or cheque is defective when he is not entitled to receive the amount due thereon by reason of the provisions of section 58.]

10. "Payment in due course". "Payment in due course" means payment in accordance with the apparent tenor of the instrument in good faith and without negligence to any person in possession thereof under circumstances which do not afford a reasonable ground for believing that he is not entitled to receive payment of the amount therein mentioned.

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[1]Subs. by the Negotiable Instruments Act, 1885 (2 of 1885), s. 2, for "When acceptance is refused and the bill is protested for non-acceptance."
[2]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 7, for the original section.
[3]Subs. *ibid.*, s. 8, for the original section, as amended by the Negotiable Instruments (Amdt.) Act, 1919 (8 of 1919), s. 2.

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11. Inland instrument. A promissory note, bill of exchange or cheque drawn or made in [1][Pakistan], and made payable in, or drawn upon any person resident in, [1][Pakistan] shall be deemed to be an inland instrument.

12. Foreign instrument. Any such instrument not so drawn, made or made payable shall be deemed to be a foreign instrument.

13. "Negotiable instrument". [2][(1) A "negotiable instrument" means a promissory note, bill of exchange or cheque payable either to order or to bearer.

Explanation (i).— A promissory note, bill of exchange or cheque is payable to order which is expressed to be so payable or which is expressed to be payable to a particular person, and does not contain words prohibiting transfer or indicating an intention that it shall not be transferable.

Explanation (ii).— A promissory note, bill of exchange or cheque is payable to bearer which is expressed to be so payable or on which the only or last indorsement is an indorsement in blank.

Explanation (iii).—Where a promissory note, bill of exchange or cheque, either originally or by indorsement, is expressed to be payable to the order of a specified person, and not to him or his order, it is nevertheless payable to him or his order at his option.]

[3][(2) A negotiable instrument may be made payable to two or more payees jointly or it may be made payable in the alternative to one of two, or one or some of several payees.]

14. Negotiation. When a promissory note, bill of exchange or cheque is transferred to any person, so as to constitute that person the holder thereof, the instrument is said to be negotiated.

15. Indorsement. When the maker or holder of a negotiable instrument signs the same, otherwise than as such maker, for the purpose of negotiation, on the back or face thereof or on a slip of paper annexed thereto, or so signs for the same purpose a stamped paper intended to be completed as a negotiable instrument, he is said to indorse the same, and is called the "indorser."

16. "Indorsement in blank" and "in full".—[4][(1)] If the indorser signs his name only, the indorsement is said to be "in blank," and if he adds a direction to pay the amount mentioned in the instrument to, or to the order of, a specified person, the indorsement is said to be "in full," and the person so specified is called the "indorsee" of the instrument.

"Indorsee." [4][(2) The provisions of this Act relating to a payee shall apply with the necessary modifications to an indorsee.]

17. Ambiguous instruments. Where an instrument may be construed either as a promissory note or bill of exchange, the holder may at his election treat it as either, and the instrument shall be thenceforward treated accordingly.

18. Where amount is stated differently in figures and words. If the amount undertaken or ordered to be paid is stated differently in figures and in words, the amount stated in words shall be the amount undertaken or ordered to be paid [5][:]

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[1]Subs. by the Negotiable Instruments (Amdt.) Act, 1957 (5 of 1958), s. 4 (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3 (2) and 4, for "British India".
[2]Subs. by the Negotiable Instruments (Amdt.) Act, 1919 (8 of 1919), s. 3, for the original sub-section.
[3]Ins. by the Negotiable Instruments (Amdt.) Act, 1914 (5 of 1914), s. 2.
[4]Ins. *Ibid*., s. 3.
[5]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 9, for the full-stop.

[1][Provided that if the words, are ambiguous or uncertain, the amount may be ascertained by referring to the figures.]

[2][**19. Instruments payable on demand.** A promissory note or bill of exchange is payable on demand,—

(a) where it is expressed to be so, or to be payable at sight or on presentment; or

(b) where no time for payment is specified in it ; or

(c) where the note or bill accepted or indorsed after it is overdue, as regards the person accepting or indorsing it.]

[3][**20. Inchoate stamped instruments.—**(1) Where one person signs and delivers to another a paper stamped in accordance with the law relating to stamp duty chargeable on negotiable instruments, either wholly blank or having written thereon an incomplete negotiable instrument, in order that it may be made, or completed into a negotiable instrument he thereby gives *prima facie* authority to the person who receives that paper to make or complete it, as the case may be, into a negotiable instrument for the amount, if any, specified therein, or, where no amount is specified, for any amount, not exceeding, in either case, the amount covered by the stamp.

(2) The person so signing shall, subject to the provisions of sub-section (3), be liable upon such instrument, in the capacity in which he signed the same, to any holder in due course, for the amount specified in the instrument or filled up therein:

Provided that no person other than a holder in due course shall receive from the person so signing the paper anything in excess of the amount intended by him to be paid thereunder.

(3) In order that any such instrument may on completion be enforceable against any person who became a party thereto before such completion, it must be filled up within a reasonable time and strictly in accordance with the authority given:

Provided that if any such instrument after completion is negotiated to a holder in due course, it shall be valid and effectual for all purposes in his hands, and he may enforce it as if it had been filled up within a reasonable time and strictly in accordance with the authority given.]

21. "At sight". "On presentment." "After sight". [4]* * * The expression "after sight" means, in a promissory note, after presentment for sight, and, in a bill of exchange, after acceptance, or noting for non-acceptance, or protest for non-acceptance.

[5][21A. When note or bill payable on demand is overdue. A promissory note or bill of exchange payable on demand shall be deemed to be overdue when it appears on the face of it to have been in circulation for an unreasonable length of time.

[1]Proviso added by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 9.
[2]Subs. *ibid.*, s. 10, for the original section.
[3]Subs. *ibid.*, s.11, for the original section, as amended by A.O., 1949, Arts. 3(2) and 4 and the Negotiable Instruments (Amdt.) Act, 1957 (5 of 1958), s.4 (with effect from the 14th October, 1955).
[4]The words "In a promissory note or bill of exchange the expression 'at sight' and 'on presentment' mean on demand" , omitted by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 12.
[5]Ss. 21A, 21B and 21 C, ins. *ibid.*, s. 13.

21B. A note or bill payable at a determinable future time. A promissory note or bill of exchange is payable at a determinable future time within the meaning of this Act if it is expressed to be payable—

(a) at a fixed time after date or sight; or

(b) on or at a fixed time after the occurrence of a specified event which is certain to happen, though the time of its happening may be uncertain.

21C. Anti-dating and post-dating. A promissory note, bill of exchange or cheque is not invalid by reason only that it is anti-dated or post-dated:

Provided that the anti-dating or post-dating does not involve any illegal or fraudulent purpose or transaction.]

22. "Maturity". The maturity of a promissory note or bill of exchange is the date at which it falls due.

Days of grace. Every promissory note or bill of exchange which is not expressed to be payable on demand, at sight or on presentment is at maturity on the third day after the day on which it is expressed to be payable.

23. Calculating maturity of bill or note payable so many months after date or sight. In calculating the date at which a promissory note or bill of exchange, made payable a stated number of months after date or after sight, or after a certain event, is at maturity, the period stated shall be held to terminate on the day of the month which corresponds with the day on which the instrument is dated, or presented for acceptance or sight, or noted for non-acceptance, or protested for non-acceptance, or the event happens, or, where the instrument is a bill of exchange made payable a stated number of months after sight and has been accepted for honour, with the day on which it was so accepted. If the month in which the period would terminate has no corresponding day, the period shall be held to terminate on the last day of such month.

Illustrations

(a) A negotiable instrument, dated 29th January 1878, is made payable at one month after date. The instrument is at maturity on the third day after the 28th February 1878.

(b) A negotiable instrument, dated 30th August 1878, is made payable three months after date. The instrument is at maturity on the 3rd December 1878.

(c) A promissory note or bill of exchange, dated 31st August 1878, is made payable three months after date. The instrument is at maturity on the 3rd December 1878.

24. Calculating maturity of bill or note payable so many days after date or sight. In calculating the date at which a promissory note or bill of exchange made payable a certain number of days after date or after sight or after a certain event is at maturity, the day of the date, or of presentment for acceptance or sight, or of protest for non-acceptance, or on which the event happens, shall be excluded.

25. When day of maturity is a holiday. When the day on which a promissory note or bill of exchange is at maturity is a public holiday, the instrument shall be deemed to be due on the next preceding business day.

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[1][*Explanation*— The expression "public holiday" shall mean the day or days declared by the Federal Government, by notification in the official Gazette, to be public holidays.]

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CHAPTER III
PARTIES TO NOTES, BILL AND CHEQUES

26. Capacity to make, etc., promissory notes, etc. Every person capable of contracting, according to the law to which he is subject, may bind himself and be bound by the making, drawing, acceptance, indorsement, delivery and negotiation of a promissory note, bill of exchange or cheque.

Minor. [2][Where such an instrument is made, drawn or negotiated by a minor, the making, drawing or negotiation entitles the holder to receive payment of such instrument and to enforce it against any party thereto other than the minor.]

Nothing herein contained shall be deemed to empower a corporation to make, indorse or accept such instruments except in cases in which, under the law for the time being in force, they are so empowered.

27. Agency. Every person capable of binding himself or of being bound, [3][by the making, drawing, acceptance or negotiation of a negotiable instrument], may so bind himself or be bound by a duly authorized agent acting in his name.

A general authority to transact business and to receive and discharge debts does not confer upon an agent the power of accepting or indorsing bills of exchange so as to bind his principal.

An authority to draw bills of exchange does not of itself import an authority to indorse.

[4][**27A. Authority of partners.** A partner acting in the firm name may bind the firm by the making, drawing, acceptance or negotiation of a negotiable instrument to the extent authorized by law relating to partnership for the time being in force.]

[5][**28. Liability of agent signing.—**(1) Where a person signs a promissory note, bill of exchange or cheque without adding to his signature words indicating that he signs it as an agent for and on behalf of a principal or in a representative character, he is personally liable thereon but the mere addition to his signature of words describing him as an agent or as filling a representative character does not exempt him from personal liability.

(2) Notwithstanding anything contained in sub-section (1), any person signing a promissory note, bill of exchange or cheque for and on behalf of the principal is not liable to a person who induces him to sign upon the belief that the principal alone would be held liable.]

[6][**28A. Transferor by delivery and transferee.—**(1) Where the holder of a negotiable instrument payable to bearer negotiates it by delivery without indorsing it, he is called a "transferor by delivery".

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[1]Subs. by Act 38, of 1997, s.2.
[2]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 14, for the original paragraph.
[3]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 15, for "as mentioned in section 26".
[4]Section 27A ins. *ibid.*, s. 16.
[5]Subs. *ibid.*, s. 17, for the original section.
[6]Section 28A, ins. *ibid.*, s. 18.

(2) A transferor by delivery is not liable on the instrument.

(3) A transferor by delivery who negotiates a negotiable instrument thereby warrants to his immediate tarnsferee, being a holder for consideration, that the instrument is what it purports to be, that he has a right to transfer it, and that at the time of transfer he is not aware of any defect which renders it valueless.]

29. Liability of legal representative signing. A legal representative of a deceased person who signs his name to a promissory note, bill of exchange or cheque is liable personally thereon unless he expressly limits his liability to the extent of the assets received by him as such.

[1][**29A. Signature essential to liability.** No person is liable as maker, drawer, indorser or acceptor of a promissory note, bill of exchange or cheque who has not signed it as such:

Provided that where a person signs any such instrument in a trade or assumed name he is liable thereon as if he had signed it in his own name.

29B. Forged or unauthorized signature. Subject to the provisions of this Act, where a signature on a promissory note, bill of exchange or cheque is forged or placed thereon without the authority of the person whose signature it purports to be, the forged or unauthorized signature is wholly inoperative, and no right to retain the instrument or to give a discharge therefor or to enforce payment thereof against any party thereto can be acquired through or under that signature, unless the party against whom it is sought to retain or enforce payment of the instrument is precluded from setting up the forgery or want of authority:

Provided that nothing in this section shall effect the ratification of an unauthorized signature not amounting to a forgery.

29C. Stranger signing instrument presumed to be indorser. A person placing his signature upon a negotiable instrument otherwise than as maker, drawer or acceptor is pre-sumed to be an indorser unless he clearly indicates by appropriate words his intention to be bound in some other capacity.]

[2][**30. Liability of drawer.—**(1) (a) The drawer of a bill of exchange by drawing it, engages that on due presentment it shall be accepted and paid according to its tenor, and that if it be dishonoured, he will compensate the holder or any indorser who is compelled to pay it; and

(b) the drawer of a cheque by drawing it, engages that in the case of dishonour by the drawee he will compensate the holder:

Provided that due notice of dishonour of the bill or cheque has been given to or received by the drawer as hereinafter provided.

(2) The drawee of a bill of exchange is not liable thereon until acceptance in the manner provided by this Act.]

31. Liability of drawee of cheque. The drawee of a cheque having sufficient funds of the drawer in his hands properly applicable to the payment of such cheque must pay the cheque when duly required so to do, and, in default of such payment, must compensate the drawer for any loss or damage caused by such default.

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[1]Ss. 29A, 29B and 29C, ins. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962) s. 19.
[2]Subs. *ibid.*, s. 20, for the original section 30.

[1][**32. Liability of maker of note and acceptor of bill.—**(1) In the absence of a contract to the contrary, the maker of a promissory note, by making it, and the acceptor before maturity of a bill of exchange by accepting it, engages that he will pay it according to the tenor of the note or his acceptance respectively, and in-default of such payment, such maker or acceptor is bound to compensate any party to the note or bill or any loss or damage sustained by him and caused by such default.

(2) The acceptor of a bill of exchange at or after maturity, by accepting it, engages to pay the amount thereof to the holder on demand.]

33. Only drawee can be acceptor except in need or for honour. No person except the drawee of a bill of exchange, or all or some of several drawees, or a person named therein as a drawee in case of need, or an acceptor for honour, can bind himself by an acceptance.

34. Acceptance by several drawees not partners. Where there are several drawees of a bill of exchange who are not partners, each of them can accept it for himself, but none of them can accept it for another without his authority.

35. Liability of indorser. [2][In the absence of a contract to the contrary, the indorser of a negotiable instrument, by indorsing it, engages that on due presentment it shall be accepted and paid according to its tenor and that if it be dishonoured he will compensate the holder or subsequent indorser who is compelled to pay it for any loss or damage caused to him by such dishonour.]

Every indorser after dishonour is liable as upon an instrument payable on demand.

36. Liability of prior parties to holder in due course. Every prior party to a negotiable instrument is liable thereon to a holder in due course until the instrument is duly satisfied.

37. Maker, drawer and acceptor principals. The maker of a promissory note or cheque, the drawer of a bill of exchange until acceptance, and the acceptor are, in the absence of a contract to the contrary, respectively liable thereon as principal debtors, and the other parties thereto are liable thereon as sureties for the maker, drawer or acceptor, as the case may be.

38. Prior party a principal in respect of each subsequent party. As between the parties so liable as sureties, each prior party is, in the absence of a contract to the contrary, also liable thereon as a principal debtor in respect of each subsequent party.

Illustration

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A draws a bill payable to his own order on B who accepts. A afterwards indorses the bill to C, C to D, and D to E. As between E and B, B is the principal debtor, and A, C and D are his sureties. As between E and A, A is the principal debtor, and C and D are his sureties. As between E and C, C is the principal debtor and D is his surety.

[3][**38A. Liability of accommodation party and position of accommodation party.—**(1) An accommodation party is liable on a negotiable instrument to a holder in due course, notwithstanding that when such holder took the instrument he knew such party to be an accommodation party.

(2) An accommodation party to a negotiable instrument, if he has paid the amount thereof, is entitled to recover such amount from the party accommodated.]

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[1]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 21. for the original section 32.
[2]Subs. *ibid.*, s. 22. for the original paragraph.
[3]S. 38A, ins. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962). s. 23.

39. Suretyship. When the holder of an accepted bill of exchange enters into any contract with the acceptor which, under section 134 or 135 of the Contract Act, 1872 (IX of 1872), would discharge the other parties, the holder may expressly reserve his right to charge the other parties, and in such case they are not discharged.

40. Discharge of indorser's liability. When the holder of a negotiable instrument, without the consent of the indorser, destroys or impairs the indorser's remedy against a prior party, the indorser is discharged from liability to the holder to the same extent as if the instrument had been paid at maturity.

Illustration

A is the holder of a bill of exchange made payable to the order of B, which contains the following indorsements in blank:—

First indorsement, "B".
Second indorsement, "Peter Williams."
Third indorsement, "Wright & Co."
Fourth indorsement, "John Rozario."

This bill A puts in suit against John Rozario and strikes out, without John Rozario's consent, the indorsements by Peter Williams, and Wright & Co. A is not entitled to recover anything from John Rozario.

41. Acceptor bound although indorsement forged. An acceptor of a bill of exchange already indorsed is not relieved from liability by reason that such indorsement is forged, if he knew or had reason to believe the indorsement to be forged when he accepted the bill.

42. Acceptance of bill drawn in fictitious name. An acceptor of a bill of exchange drawn in a fictitious name and payable to the drawer's order is not, by reason that such name is fictitious, relieved from liability to any holder in due course claiming under an indorsement by the same hand as the drawer's signature, and purporting to be made by the drawer.

43. Negotiable instrument made, etc. without consideration. A negotiable instrument made, drawn, accepted, indorsed or transferred without consideration, or for a consideration which fails, creates no obligation of payment between the parties to the transaction. But if any such party has transferred the instrument with or without indorsement to a holder for consideration, such holder, and every subsequent holder deriving title from him, may recover the amount due on such instrument from the transferor for consideration or any prior party thereto.

Exception I.—No party for whose accommodation a negotiable instrument has been made, drawn, accepted or indorsed can, if he have paid the amount thereof, recover thereon such amount from any person who became a party to such instrument for his accommodation.

Exception II.—No party to the instrument who has induced any other party to make, draw, accept, indorse or transfer the same to him for a consideration which he has failed to pay or perform in full shall recover thereon an amount exceeding the value of the consideration (if any) which he has actually paid or performed.

44. Partial absence or failure of money consideration. When the consideration for which a person signed a promissory note, bill of exchange or cheque consisted of money, and was originally absent in part or has subsequently failed in part, the sum which a holder standing in immediate relation with such signer is entitled to receive from him is proportionally reduced.

Explanation.— The drawer of a bill of exchange stands in immediate relation with the acceptor. The maker of a promissory note, bill of exchange or cheque stands in immediate relation with the payee, and the indorser with his indorsee. Other signers may by agreement stand in immediate relation with a holder.

Illustration

A draws a bill on B for Rs. 500 payable to the order of A. B accepts the bill, but subsequently dishonours it by non-payment. A sues B on the bill. B proves that it was accepted for value as to Rs. 400. and as an accommodation to the plaintiff as to the residue. A can only recover Rs. 400.

45. Partial failure of consideration not consisting of money. Where a part of the consideration for which a person signed a promissory note, bill of exchange or cheque, though not consisting of money, is ascertainable in money without collateral enquiry, and there has been a failure of that part, the sum which a holder standing in immediate relation with such signer is entitled to receive from him is proportionally reduced.

[1][**45A. Holder's right to duplicate of lost bill.** Where a bill of exchange has been lost before it is overdue, the person who was the holder of it may apply to the drawer to give him another bill of the same tenor, giving security to the drawer, if required, to indemnify him against all persons whatever in case the bill alleged to have been lost shall be found again.

If the drawer on request as aforesaid refuses to give such duplicate bill, he may be compelled to do so.]

CHAPTER IV
OF NEGOTIATION

46. Delivery. The making, acceptance or indorsement of a promissory note, bill of exchange or cheque is completed by delivery, actual or constructive.

As between parties standing in immediate relation, delivery to be effectual must be made by the party making, accepting or indorsing the instrument or by a person authorized by him in that behalf.

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As between such parties and any holder of the instrument other than a holder in due course, it may be shown that the instrument was delivered conditionally or for a special purpose only, and not for the purpose of transferring absolutely the property therein.

A promissory note, bill of exchange or cheque payable to bearer is negotiable by the delivery thereof.

A promissory note, bill of exchange or cheque payable to order is negotiable by the holder by indorsement and delivery thereof.

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[1]S. 45A ins. by the Negotiable Instruments Act, 1885 (2 of 1885), s. 3.

47. Negotiation by delivery. Subject to the provisions of section 58, a promissory note, bill of exchange or cheque payable to bearer is negotiable by delivery thereof.

Exception.—A promissory note, bill of exchange or cheque delivered on condition that it is not to take effect except in a certain event is not negotiable (except in the hands of a holder for value without notice of the condition) unless such event happens.

Illustrations

(a) A, the holder of a negotiable instrument payable to bearer, delivers it to B's agent to keep for B. The instrument has been negotiated.

(b) A, the holder of negotiable instrument payable to bearer, which is in the hands of A's banker, who is at the time the banker of B, directs the banker to transfer the instrument to B's credit in the banker's account with B. The banker does so, and accordingly now possesses the instrument as B's agent. The instrument has been negotiated, and B has become the holder of it.

48. Negotiation by indorsement. Subject to the provisions of section 58, a promissory note, bill of exchange or cheque [1][payable to order] is negotiable by the holder by indorsement and delivery thereof.

[2][**49. Conversion of indorsement in blank into indorsement in full.** When a negotiable instrument has been indorsed in blank, any holder may, without signing his own name, convert the blank indorsement into an indorsement in full by writing above the indorser's signature a direction to pay the amount to or to the order of himself or some other person; and the holder does not thereby incur the responsibility of an indorser.]

[3][**50. Effect of indorsement.—**(1) Subject to the provisions of this Act relating to restrictive, conditional and qualified indorsement, the indorsement of a negotiable instrument followed by delivery transfers to the indorsee the property therein with the right of further negotiation.

(2) An indorsement is restrictive which either—

(a) restricts or excludes the right to further negotiate the instrument; or

(b) constitutes the indorsee an agent of the indorser to indorse the instrument or to receive its contents for the indorser or for some other specified person:

Provided that the mere absence of words implying right to negotiate does not make the indorsement restrictive.]

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[1]Subs. by the Negotiable Instruments (Amdt.) Act, 1919 (8 of 1919), s. 4, for "payable to the order of a specified person or to a specified person or order".
[2]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 24, for the original section 49.
[3]Subs. *ibid*., s. 25, for the original section 50.

Illustrations

B signs the following indorsements on different negotiable instruments payable to bearer :—

(a) "Pay the contents to C only."

(b) "Pay C for my use."

(c) "Pay C or order for the account of B."

(d) "The within must be credited to C."

These indorsements exclude the right of further negotiation by C.

(e) "Pay C."

(f) "Pay C value in account with the Oriental Bank."

(g) "Pay the contents to C, being part of the consideration in a certain deed of assignment executed by C to the indorser and others."

These indorsements do not exclude the right of further negotiation by C.

51. Who may negotiate. Every sole maker, drawer, payee or indorsee, or all of several joint makers, drawers, payees or indorsees, of a negotiable instrument may, if the negotiability of such instrument has not been restricted or excluded as mentioned in section 50, indorse and negotiate the same.

Explanation.— Nothing in this section enables a maker or drawer to indorse or negotiate an instrument, unless he is in lawful possession or is holder thereof; or enables a payee or indorsee to indorse or negotiate an instrument, unless he is holder thereof.

Illustration

A bill is drawn payable to A or order. A indorses it to B, the indorsement not containing the words "or order" or any equivalent words. B may negotiate the instrument.

52. Indorser who excludes his own liability or makes it conditional. The indorser of a negotiable instrument may, by express words in the indorsement, exclude his own liability thereon, or make such liability or the right of the indorsee to receive the amount due thereon depend upon the happening of a specified event, although such event may never happen.

Where an indorser so excludes his liability and afterwards becomes the holder of the instrument, all intermediate indorsers are liable to him.

[1][Where the right of an indorsee to receive the amount due on the negotiable instrument is made dependent in the aforesaid manner the condition is valid only as between the indorser and the indorsee.

Where the indorsement of a negotiable instrument purports to be conditional, the payer may disregard the condition, and payment to the indorsee is valid whether the condition has been fulfilled or not.]

[1]Added by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 26.

Illustrations

(a) The indorser of a negotiable instrument signs his name adding the words—"Without recourse".

Upon this indorsement he incurs no liability.

(b) A is the payee and holder of a negotiable instrument. Excluding personal liability by an indorsement "without recourse," he transfers the instrument to B, and B indorses it to C, who indorses it to A. A is not only reinstated in his former rights, but has the rights of an indorsee against B and C.

[1][**53. Holder claiming through holder in due course.** (1) A holder who derives his title through a holder in due course, and who is not himself a party to any fraud or illegality affecting the negotiable instrument, has all the rights therein of that holder in due course as regards the acceptor and all parties to the instrument prior to that holder.

(2) Where the title of the holder is defective,—

(a) if he negotiates the instrument to a holder in due course, that holder obtains a good and complete title to the instrument; and

(b) if he obtains payment of the instrument, the person who pays him in due course gets a valid discharge for the instrument.]

[2][**53A. Rights of holder in due course.** A holder in due course holds the negotiable instrument free from any defect of title of prior parties, and free from defences available to prior parties among themselves, and may enforce payment of the instrument for the full amount thereof against all parties liable thereon.]

54. Instrument indorsed in blank. Subject to the provisions hereinafter contained as to crossed cheques, a negotiable instrument indorsed in blank is payable to the bearer thereof even although originally payable to order.

55. Conversion of indorsement in blank in to indorsement in full. If a negotiable instrument, after having been indorsed in blank, is indorsed in full, the amount of it cannot be claimed from the indorser in full, except by the person to whom it has been indorsed in full, or by one who derives title through such person.

[3][**56. Requisites of indorsement.—**(1) Negotiation by indorsement must be of the entire instrument.

(2) An indorsement which purports to transfer to the indorsee only a part of the amount payable, or which purports to transfer the instrument to two or more indorsees severally, is not vaild as a negotiation of the instrument; but where such amount has been paid in part, a note to that effect may be indorsed on the instrument, which may then be indorsed for the balance.]

[1]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 27, for the original section 53.
[2]S. 53A ins. *ibid.*, s. 28.
[3]Subs. *ibid.*, s. 29. for the original section 56.

57. Legal representative cannot by delivery only negotiate instrument indorsed by deceased. The legal representative of a deceased person cannot negotiate by delivery only a promissory note, bill of exchange or cheque payable to order and indorsed by the deceased but not delivered.

[1][**57A. Negotiation of instrument to party already liable thereon.** Where a negotiable instrument is negotiated back before maturity to the maker or drawer or a prior indorser or to the acceptor, such party may, subject to the provisions of this Act, re-issue and further negotiate the instrument, but he is not entitled to enforce payment of the instrument against any intervening party to whom he was previously liable.

57B. Rigts of holder. A holder may receive payment in due course under a negotiable instrument and furhter negotiate it in the manner provided by this Act; he may also sue on such instrument in his own name.]

[2][**58. Defective title.** When a promissory note, bill of exchange or cheque has been lost or has been obtained from any maker, drawer, acceptor or holder thereof by means of an offence or fraud, or for an unlawful consideration, neither the person who finds or so obtains the instrument nor any possessor or indorsee who claims through such person is entitled to receive the amount due thereon from such maker, drawer, acceptor or holder, unless such possessor or indorsee is, or some person through whom he claims was, a holder thereof in due course.]

59. Instrument acquired after dishonour or when overdue. The holder of a negotiable instrument, who has acquired it after dishonour, whether by non-acceptance or nonpayment, with notice thereof, or after maturity, has only, as against the other parties, the rights thereon of his transferor [3][and is subject to the equities to which the transferor was subject at the time of acquisition by such holder]:

Accommodation note or bill. Provided that any person who, in good faith and for consideration, becomes the holder, after maturity, of a promissory note or bill of exchange made, drawn or accepted without consideration, for the purpose of enabling some party thereto to raise money thereon, may recover the amount of the note or bill from any prior party.

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Illustration

The acceptor of a bill of exchange, when he accepted it, deposited with the drawer certain goods as a collateral security for the payment of the bill, with power to the drawer to sell the goods and apply the proceeds in discharge of the bill if it were not paid at maturity. The bill not having been paid at maturity, the drawer sold the goods and retained the proceeds, but indorsed the bill to A. A's title is subject to the same objection as the drawer's title.

[1]Sections 57A and 57B ins. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 30.
[2]Subs. *ibid.*, s. 31, for the original section 58.
[3]Ins. *ibid.*,s.32.

60. Instrument negotiable till payment or satisfaction. A negotiable instrument may be negotiated (except by the maker, drawee or acceptor after maturity) until payment or satisfaction thereof by the maker, drawee or acceptor at or after maturtiy, but not after such payment or satisfaction.

CHAPTER V
OF PRESENTMENT

61. Presentment or acceptance. A bill of exchange payable after sight must, if no time or place is specified therein for presentment, be presented to the drawee thereof for acceptance, if he can, after reasonable search, be found, by a person entitled to demand acceptance, within a reasonable time after it is drawn, and in business hours on a business day. In default of such presentment, no party thereto is liable thereon to the person making such default.

If the drawee cannot, after reasonable search, be found, the bill is dishonoured.

If the bill is directed to the drawee at a particular place, it must be presented at that place; and if at the due date for presentment he cannot, after reasonable search, be found there, the bill is dishonoured.

[1][Where authorized by agreement or usage, a presentment through the post office by means of a registered letter is sufficient.]

62. Presentment of promissory note for sight. A promissory note, payable at a certain period after sight, must be presented to the maker thereof for sight (if he can, after reasonable search, be found) by a person entitled to demand payment, within a reasonable time after it is made and in business hours on a business day in default of such presentment, no party thereto is liable thereon to the person making such default.

63. Drawees time for deliberation. The holder must, if so required by the drawee of a bill of exchange presented to him for acceptance, allow the drawee [2][forty eight] hours (exclusive of public holidays) to consider whether he will accept it.

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64. Presentment for payment. [3][Subject to the provisions of section 76, promissory notes], bills of exchange and cheques must be presented for payment to the maker, acceptor or drawee thereof respectively, by or on behalf of the holder as hereinafter provided. In default of such presentment, the other parties thereto are not liable thereon to such holder.

[4]* * * * * * *

Exception.— Where a promissory note is payable on demand and is not payable at a specified place, no presentment is necessary in order to charge the maker thereof [5][,nor is presentment necessary to charge the acceptor of a bill of exchange].

[5][The provisions of this section are without prejudice to the provisions relating to presentment for acceptance in the case of a bill of exchange.

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[1]Ins. by the Negotiable Instruments Act, 1885 (2 of 1885), s. 4.
[2]Subs. by the Negotiable Instruments (Amdt.) Act, 1921 (12 of 1921) s. 2, for "twenty-four".
[3]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 33, for "Promissory notes" .
[4]The second paragraph which was ins. by the Negotiable Instruments Act, l885 (2 of 1885), s. 4 have been omitted by Ord. 49 of 1962, s. 33.
[5]Added *ibid.*

Explanation.— Where there are several persons, not being partners liable on the negotiable instrument, as makers, acceptors or drawees, as the case may be, and no place of payment is specified, presentment must be made to them all.]

65. Hours for presentment. Presentment for payment must be made during the usual hours of business, and, if at a banker's, within banking hours.

66. Presentment for payment of instrument payable after date or sight. A promissory note or bill of exchange, made payable at a specified period after date or sight thereof, must be presented for payment at maturity.

67. Presentment for payment of promissory note payable by instalments. A promissory note payable by instalments must be presented for payment on the third day after the date fixed for payment of each instalment; and non-payment on such presentment has the same effect as non-payment of a note at maturity.

68. Presentment for payment of instrument payable at specified place and not elsewhere. A promissory note, bill of exchange or cheque made, drawn or accepted payable at a specified place and not elsewhere must, in order to charge any party thereto, be presented for payment at that place.

69. Instrument payable at specified place. A promissory note or bill of exchange made, drawn or accepted payable at a specified place must, in order to charge the maker or drawer thereof, be presented for payment at that place.

70. Presentment where no exclusive place specified. A promissory note or bill of exchange, not made payable as mentioned in sections 68 and 69, must be presented for payment [1][at the address of the maker, acceptor or drawee given in the instrument, and if no such address is given] at the place of business [2][(if known), or at the ordinary residence (if known)], of the maker, drawee or acceptor thereof, as the case may be.

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71. Presentment when maker etc., has no known place of business or residence. If the maker, drawee or acceptor of a negotiable instrument has no known place of business or [3]* residence, and no place is specified in the instrument for presentment for acceptance or payment, such presentment may be made to him in person wherever he can be found.

[4][*Explanation.*— In this section and sections 68 and 69, " specified place" means a place sufficiently described so as to enable the person presenting the instrument to locate it.]

[5][**71A. What constitutes valid presentment and mode of presentment.—**(1) To constitute a valid presentment it shall be sufficient if instead of the original negotiable instrument a copy thereof certified to be true by the holder is delivered to the person liable thereon, either personally or by registered post or by other effective means.

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[1]Ins. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 34.
[2]Subs. *ibid.*, s. 34, for " (if any), or at the usual residence".
[3]The word " fixed" omitted *ibid.*, s. 35.
[4]*ExpIanation* added, *ibid.*
[5]Section 71A ins. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 36.

(2) If, after such delivery, the person liable to pay so demands, the holder shall allow him to inspect the original negotiable instrument during the hours of business of the holder, and if the holder fails to do so within a reasonable time, the presentment shall be deemed to be invalid.]

72. Presentment of cheque to charge drawer. [1][Subject to the provisions of section 84,] a cheque must, in order to charge the drawer, be presented at the bank upon which it is drawn before the relation between the drawer and his banker has been altered to the prejudice of the drawer.

73. Presentment of cheque to charge any other person. A cheque must, in order to charge any person except the drawer, be presented within a reasonable time after delivery there of by such person.

74. Presentment of instrument payable on demand. Subject to the provisions of section 31, a negotiable instrument payable on demand must be presented for payment within a reasonable time after it is received by the holder.

75. Presentment by or to agent, representative of deceased or assignee of insolvent. Presentment for acceptance or payment may be made to the duly authorised agent of the drawee, maker or acceptor, as the case may be, or, where the drawee, maker or acceptor has died, to his legal representative, or, where he has been declared an insolvent, to his assignee.

[2][**75A. Excuse for delay in presentment for acceptance or payment.** Delay in presentment [3][for acceptance or payment] is excused if the delay is caused by circumstances beyond the control of the holder, and not imputable to his default, misconduct or negligence. When the cause of delay ceases to operate, presentment must be made within a reasonable time.]

[4]* * * * * * *

76. When presentment unnecessary. No presentment for payment is necessary and the instrument [5][shall be deemed to be dishonoured] at the due date for presentment, in any of the following cases:—

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(a) if the maker, drawee or acceptor intentionally prevents the presentment of the instrument, or,

if the instrument being payable at his place of business, he closes such place on a business day during the usual business hours, or,

if the instrument being payable at some other specified place, neither he nor any person authorized to pay it attends at such place during the usual business hours, or

if the instrument not being payable at any specified place, he cannot after due search be found;

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[1]Ins. by the Negotiable Instruments (Amdt.) Act, 1897 (6 of 1897), s. 2.
[2]S.75A Ins. by the Negotiable Instruments (Amdt.) Act, 1920 (25 of 1920), s. 2.
[3]Subs. by the Negotiable Instruments (Amdt.) Act, 1921 (12 of 1921), s. 3, for "for payment" .
[4]A new section 75B was temporarily inserted by the Negotiable Instruments Act (temporary Amdt.) Ordinance, 1948 (6 of 1948).
[5]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962) s. 37, for "is dishonoured".

(b) as against any party sought to be charged therewith, if he has engaged to pay notwithstanding non-presentment;

(c) as against any party if, after maturity, with knowledge that the instrument has not been presented—

he makes a part payment on account of the amount due on the instrument, or promises to pay the amount due thereon in whole or in part,

or otherwise waives his right to take advantage of any default in presentment for payment;

(d) as against the drawer, if the drawer could not suffer damage from the want of such presentment [1][;]

[2][(e) where the drawee is a fictitious person;

(f) as regards an indorser, where the negotiable instrument was made, drawn or accepted for the accommodation of that indorser and he had reason to expect that the instrument would not be paid if presented; and

(g) where, after the exercise of reasonable diligence, presentment as required by this Act cannot be effected.

Explanation.— The fact that the holder has reason to believe that the negotiable instrument will, on presentment, be dishonoured does not dispense with the necessity for presentment.]

77. Liability of banker for negligently dealing with bill presented for payment. When a bill of exchange accepted payable at a specified bank has been duly presented there for payment and dishonoured, if the banker so negligently or improperly keeps, deals with or delivers back such bill as to cause loss to the holder, he must compensate the holder for such loss.

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CHAPTER VI
OF PAYMENT AND INTEREST

78. To whom payment should be made. Subject to the provisions of section 82, clause (c), payment of the amount due on a promissory note, bill of exchange or cheque must, in order to discharge the maker or acceptor, be made to the holder of the instrument.

[3][**79. Interest or return in any other form when rate specified or not specified.** Subject to the provisions of any law for the time being in force relating to the relief of debtors, and without prejudice to the provisions of section 34 of the Code of Civil Procedure, 1908, (Act V of 1908)—

[1]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962) s. 37, for full-stop.
[2]Cls. (e), (f) and (g) and Explanation, added *ibid.*
[3]Subs. by the Negotiable Instruments (Amdt.) Ordinance 1962 (49 of 1962). s. 38, for the original section 79.

(a) when interest [1][or return in any other form] at a specified rate is expressly made payable on a promissory note or bill of exchange and no date is fixed from which interest [1][or return in any other form] is to be paid, interest [1][or return in any other form] shall be calculated at the rate specified, on the amount of the principal money due thereon, from the date of the note, or, in the case of a bill, from the date on which the amount becomes payable, until tender or realisation of such amount, or until the date of the institution of a suit to recover such amount;

(b) when a promissory note or bill of exchange is silent as regards interest or does not specify the rate of interest,

on the amount of the principal money due thereon shall, notwithstanding any collateral agreement relating to interest between any parties to the instrument, be allowed and calculated at the rate of six per centum per annum from the date of the note, or, in the case of a bill, from the date on which the amount becomes payable, until tender or realization of the amount due thereon, or until the date of the institution of a suit to recover such amount [:][2]

[3][Provided that in the case of an amount due on an instrument where the return is on bases other than interest, the return on the amount due, when no rate of return is specified in the instrument, shall be calculated at the following rate :—

(i) in the case of return on the basis of mark-up in price, lease, hire-purchase or service charges, at the contracted rate of mark-up, rental, hire or service charges, as the case may be; and

(ii) in the case of return on the basis of participation in profit and loss, at such rate as the Court may consider just and reasonable in the circumstances of the case, keeping in view the profit-sharing agreement entered into between the banking company and the judgement debtor when the loan was contracted;]

[4][(c) notwithstanding the provisions of clauses (a) and (b), return on an amount due on an instrument where the return is on bases other than interest shall be allowed from the date it becomes due till the date it is actually paid.]

80. Interest when no rate specified. When no rate of interest is specified in the instrument, interest on the amount due thereon shall, [5][notwithstanding any agreement relating to interest between any parties to the instrument,] be calculated at the rate of six per centum per annum from the date at which the same ought to have been paid by the party charged until tender or realization of the amount due thereon or until such date after the institution of a suit to recover such amount as the Court directs [6][:]

[1]Ins. by the Negotiable Instruments (Amdt.) Ordinance, 1980 (61 of 1980), s. 3.
[2]Subs by the Negotiable Instruments (Amdt.) Ordinanee, 1980 (61 of 1980), s, 3. for full stop.
[3]Proviso added *ibid.*
[4]Clause (c) ins. *ibid.*
[5]Subs. by the Negotiable Instruments (Interest) Act, 1926 (30 of 1926) s. 2 for "except in cases provided for by the Code of Civil Procedure, section 532".
[6]Subs. by Ord. 61 of 1980, s. 4 for full-stop.

[1][Provided that in the case of an amount due on an instrument where the return is on bases other than interest return on the amount due, when no rate of return is specified in the instrument, shall be calculated at the following rate, and shall be allowed from the date it becomes due till the date it is actually paid :—

(a) in the case of return on the basis of mark-up in price, lease, hire-purchase or service charges, at the contracted rate of mark-up, rental, hire or service charges, as the case may be ; and

(b) in the case of return on the basis of participation in profit and loss, at such rate as the Court may consider just and reasonable in the circumstances of the case, keeping in view the profit-sharing agreement entered into between the banking company and the judgement debtor when the loan was contracted.]

Explanation.—When the party charged is the indorser of an instrument dishonoured by non-payment, he is liable to pay interest [2][or return in any other form, as the case may be,] only from the time that he receives notice of the dishonour.

81. Delivery of instrument on payment, or indemnity in case of loss. Any person liable to pay, and called upon by the holder thereof to pay, the amount due on a promissory note, bill of exchange or cheque is before payment entitled to have it shown, and is on payment entitled to have it delivered up, to him, or, if the instrument is lost or cannot be produced, to be indemnified against any further claim thereon against him.

CHAPTER VII
OF DISCHARGE FROM LIABILITY ON NOTES, BILLS AND CHEQUES

82. Discharge from liability. The maker, acceptor or indorser respectively of a negotiable instrument is discharged from liability thereon–

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(a) **by cancellation;** to a holder thereof who cancels such acceptor's or indorser's name with intent to discharge him, and to all parties claiming under such holder;

(b) **by release;** to a holder thereof who otherwise discharges such maker, acceptor or indorser, and to all parties deriving title under such holder after notice of such discharge;

(c) **by payment.** to all parties thereto, if the instrument is payable to bearer, or has been indorsed in blank, and such maker, acceptor or indorser makes payment in due course of the amount due thereon.

[1]Proviso ins. by the Negotiable Instruments (Amdt.) Ordinance, 1980 (61 of 1980), s. 4.
[2]Ins. *ibid.*

83. Discharge by allowing drawee more than forty-eight hours to accept. If the holder of a bill of exchange allows the drawee more than [1][forty-eight] hours, exclusive of public holidays, to consider whether he will accept the same, all previous parties not consenting to such allowance are thereby discharged from liability to such holder.

[2][**84. When cheque not duly presented and drawer damaged thereby.—**(1) Where a cheque is not presented for payment within a reasonable time of its issue, and the drawer or person on whose account it is drawn had the right, at the time when presentment ought to have been made, as between himself and the banker, to have the cheque paid and suffers actual damage through the delay, he is discharged to the extent of such damage, that is to say, to the extent to which such drawer or person is a creditor of the banker to a larger amount than he would have been if such cheque had been paid.

(2) In determining what is a reasonable time, regard shall be had to the nature of the instrument, the usage of trade and of bankers, and the facts of the particular case.

(3) The holder of the cheque as to which such drawer or person is so discharged shall be a creditor, in lieu of such drawer or person, of such banker to the extent of such discharge and entitled to recover the amount from him.]

Illustrations

(a) A draws a cheque for Rs. 1,000, and, when the cheque ought to be presented has funds at the bank to meet it. The bank fails before the cheque is presented. The drawer is discharged, but the holder can prove against the bank for the amount of the cheque.

(b) A draws a cheque at [3][Sialkot] on a bank in [4][Quetta]. The bank fails before the cheque could be presented in ordinary course. A is not discharged, for he has not suffered actual damage through any delay in presenting the cheque.

85. Cheque payable to order.—[5][(1)] Where a cheque payable to order purports to be endorsed by or on behalf of the payee, the drawee is discharged by payment in due course.

[6][(2) Where a cheque is originally expressed to be payable to bearer, the drawee is discharged by payment in due course to the bearer thereof, notwithstanding any endorsement whether in full or in blank appearing thereon, and notwithstanding that any such endorsement purports to restrict or exclude further negotiation.]

[7]**[85A. Draft drawn by one branch of a bank on another payable to order.** Where any draft, that is, an order to pay money, drawn by one office of a bank upon another office of the same bank for a sum of money payable to order on demand, purports to be endorsed by or on behalf of the payee, the bank is discharged by payment in due course.]

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[1]Subs. by the Negotiable Instruments (Amdt.) Act, 1921 (12 of 1921), s. 2, for " twenty-four".
[2]Subs. by the Negotiable Instruments Act, (Amendment) Act, 1897 (6 of 1897), s. 3, for the original section.
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3, and 2nd Sch., for " Umballa" (with effect from the 14th October, 1955).
[4]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1980 (27 of 1980), s. 3 and IInd Sch., for "Chittagong" which was subs. by Ord. 21 of 1960,s. 3 and 2nd Sch. for " Calcutta" (with effect from the 14th October, 1955).
[5]Section 85 re-numbered as sub-section (1) of section 85 by the Negotiable Instruments (Amdt.) Act, 1934 (17 of 1934), s. 2.
[6]Sub-section (2) added, *ibid.*
[7]Section 85A ins. by the Negotiable Instruments (Amdt.) Act, 1930 (25 of 1930), s.2.

86. Parties not consenting discharged by qualified or limited acceptance. If the holder of a bill of exchange acquiesces in a qualified acceptance, or one limited to part of the sum mentioned in the bill, or which substitutes a different place or time for payment, or which, where the drawees are not partners, is not signed by all the drawees, all previous parties whose consent is not obtained to such acceptance are discharged as against the holder and those claiming under him, unless on notice given by the holder they assent to such acceptance.

Explanation.—An acceptance is qualified—

(a) where it is conditional, declaring the payment to be dependent on the happening of an event therein stated;

(b) where it undertakes the payment of part only of the sum ordered to be paid;

(c) where, no place of payment being specified on the order it undertakes the payment at a specified place, and not otherwise or elsewhere; or where, a place of payment being specified in the order, it undertakes the payment at some other place and not otherwise or elsewhere;

(d) where it undertakes the payment at a time other than that at which under the order it would be legally due.

87. Effect of material alteration. Any material alteration of a negotiable instrument renders the same void as against anyone who is a party thereto at the time of making such alteration and does not consent thereto, unless it was made in order to carry out the common intention of the original parties;

Alteration by indorsee. and any such alteration, if made by an indorsee, discharges his indorser from all liability to him in respect of the consideration thereof.

The provisions of this section are subject to those of sections 20, 49, 86 and 125.

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88. Acceptor indorser bound notwithstanding previous alteration. An acceptor or indorser of a negotiable instrument is bound by his acceptance or indorsement notwithstanding any previous alteration of the instrument.

89. Payment of instrument on which alteration is not apparent. Where a promissory note, bill of exchange or cheque has been materially altered but does not appear to have been so altered,

or where a cheque is presented for payment which does not at the time of presentation appear to be crossed or to have had a crossing which has been obliterated,

payment thereof by a person or banker liable to pay, and paying the same according to the apparent tenor thereof at the time of payment and otherwise in due course, shall discharge such person or banker from all liability thereon; and such payment shall not be questioned by reason of the instrument having been altered or the cheque crossed.

[1][**90. Extinguishment of rights of action on bill in acceptor's hands.** The maker, drawer, acceptor or indorser of negotiable instrument is discharged from liability thereon when the person liable thereon as principal debtor becomes the holder thereof at or after its maturity.

(2) When the holder of an accepted bill of exchange enters into any contract with the acceptor of the nature referred to in section 39, the other parties are discharged, unless the holder has expressly reserved his right to charge them.]

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CHAPTER VIII
OF NOTICE OF DISHONOUR

91. Dishonour by non-acceptance. A bill of exchange is said to be dishonoured by non-acceptance when the drawee, or one of several drawees not being partners, makes default in acceptance upon being duly required to accept the bill, or where presentment is excused and the bill is not accepted.

Where the drawee is incompetent to contract, or the acceptance is qualified, the bill may be treated as dishonoured.

92. Dishonour by non-payment. A promissory note, bill of exchange or cheque is said to be dishonoured by non-payment when the maker of the note, acceptor of the bill or drawee of the cheque makes default in payment upon being duly required to pay the same.

93. By and to whom notice should be given. When a promissory note, bill of exchange or cheque is dishonoured by non-acceptance or non-payment, the holder thereof, or some party thereto who remains liable thereon, must give notice that the instrument has been so dishonoured to all other parties whom the holder seeks to make severally liable thereon, and to some one of several parties whom he seeks to make jointly liable thereon.

[2][When a bill of exchange is dishonoured by non-acceptance the drawer or any indorser to whom such notice is not given is discharged; but the rights of a holder in due course subsequent to the omission to give notice shall not be prejudiced by that omission.

When a bill of exchange is dishonoured by non-acceptance and due notice of dishonour is given, it shall not be necessary to give notice of a subsequent dishonour by non-payment, unless the bill shall, in the meantime, have been accepted.]

Nothing in this section renders it necessary to give notice to the maker of the dishonoured promissory note or the drawee or acceptor of the dishonoured bill of exchange or cheque.

94. Mode in which notice may be given. Notice of dishonour may be given to a duly authorized agent of the person to whom it is required to be given, or, where he has died, to his legal representative, or, where he has been declared an insolvent, to his assignee; may be oral or written; may, if written, be sent by post; and may be in any form; but it must inform the party to whom it is given, either in express terms or by reasonable intendment, that the instrument has been dishonoured, and in what way, and that he will be held liable thereon; and it must be given within a reasonable time after dishonour, at the place of business or (in case such party has no place of business) at the residence of the party for whom it is intended.

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[1]Subs. by the Negotiable Instruments (Amdt.) Ordinance 1962 (49 of 1962), s. 39, for the original section 90.
[2]Ins. *ibid*., s.40.

If the notice is duly directed and sent by post and miscarries, such miscarriage does not render the notice invalid.

95. Party receiving must transmit notice of dishonour. Any party receiving notice of dishonour must, in order to render any prior party liable to himself, give notice of dishonour to such party within a reasonable time, unless such party otherwise receives due notice as provided by section 93.

96. Agent for presentment. When the instrument is deposited with an agent for presentment, the agent is entitled to the same time to give notice to his principal as if he were the holder giving notice of dishonour, and the principal is entitled to a further like period to give notice of dishonour.

97. When party to whom notice given is dead. When the party to whom notice of dishonour is despatched is dead, but the party despatching the notice is ignorant of his death, the notice is sufficient.

98. When notice of dishonour is unnecessary. No notice of dishonour is necessary—

(a) when it is dispensed with by the party entitled thereto;

(b) in order to charge the drawer when he has countermanded payment;

(c) when the party charged could not suffer damage for want of notice;

(d) when the party entitled to notice cannot after due search be found; or the party bound to give notice is, for any other reason, unable without any fault of his own to give it ;

(e) to charge the drawers when the acceptor is also a drawer;

(f) in the case of a promissory note which is not negotiable;

(g) when the party entitled to notice, knowing the facts, promises unconditionally to pay the amount due on the instrument.

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CHAPTER IX
OF NOTING AND PROTEST

99. Noting. When a promissory note or bill of exchange has been dishonoured by non-acceptance or non-payment, the holder may cause such dishonour to be noted by a notary public upon the instrument, or upon a paper attached thereto, or partly upon each.

Such note must be made within a reasonable time after dishonour, and must specify the date of dishonour, the reason, if any, assigned for such dishonour, or, if the instrument has not been expressly dishonoured, the reason why the holder treats it as dishonoured, and the notary's charges.

100. Protest. When a promissory note or bill of exchange has been dishonoured by non-acceptance or non-payment, the holder may, within a reasonable time, cause such dishonour to be noted and certified by a notary public. Such certificate is called a protest.

Protest for better security. When the acceptor of a bill of exchange has become insolvent, or his credit has been publicly impeached, before the maturity of the bill, the holder may, within a reasonable time, cause a notary public to demand better security of the acceptor, and on its being refused may, within a reasonable time, cause such facts to be noted and certified as aforesaid. Such certificate is called a protest for better security.

101. Contents of protest. A protest under section 100 must contain—

(a) either the instrument itself, or a literal transcript of the instrument and of everything written or printed thereupon;

(b) the name of the person for whom and against whom the instrument has been protested;

(c) a statement that payment or acceptance, or better security, as the case may be, has been demanded of such person by the notary public; the terms of his answer, if any, or a statement that he gave no answer or that he could not found;

(d) when the note or bill has been dishonoured, the place and time of dishonour, and, when better security has been refused, the place and time of refusal;

(e) the subscription of the notary public making the protest;

(f) in the event of an acceptance for honour or of a payment for honour, the name of the person by whom, of the person for whom, and the manner in which, such acceptance or payment was offered and effected.

[1][A notary public may make the demand mentioned in clause (c) of this section either in person or by his clerk or, where authorized by agreement or usage, by registered letter.]

102. Notice of protest. When a promissory note or bill of exchange is required by law to be protested, notice of such protest must be given instead of notice of dishonour, in the same manner and subject to the same conditions; but the notice may be given by the notary public who makes the protest.

103. Protest for non-payment after dishonour by non-acceptance. All bills of exchange drawn payable at some other place than the place mentioned as the residence of the drawee, and which are dishonoured by non-acceptance, may, without further presentment to the drawee, be protested for non-payment in the place specified for payment, unless paid before or at maturity.

104. Protest of foreign bills. Foreign bills of exchange must be protested for dishonour when such protest is required by the law of the place where they are drawn.

[2][**104A. When noting equivalent to protest.** For the purposes of this Act, where a bill or note is required to be protested within a specified time or before some further proceeding is taken, it is sufficient that the bill has been noted for protest before the expiration of the specified time or the has been demanded of such person by the notary public; the terms of his answer, if any, or a statement that he gave no answer or that he could not be taking of the proceeding; and the formal protest may be extended at any time thereafter as of the date of the noting.]

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[1]Ins. by the Negotiable Instruments Act, 1885 (2 of 1885), s. 5.
[2]Section 104A ins. *ibid*.,s.6.

CHAPTER X
OF REASONABLE TIME

105. Reasonable time. In determining what is a reasonable time for presentment for acceptance or payment, for giving notice of dishonour and for noting, regard shall be had to the nature of the instrument and the usual course of dealing with respect to similar instruments; and, in calculating such time, public holidays shall be excluded.

106. **Reasonable time of giving notice of dishonour.** If the holder and the party to whom notice of dishonour is given carry on business or live (as the case may be) in different places, such notice is given within a reasonable time if it is despatched by the next post or on the day next after the day of dishonour.

If the said parties carry on business or live in the same place, such notice is given within a reasonable time if it is despatched in time to reach its destination on the day next after the day of dishonour.

107. Reasonable time for transmitting such notice. A party receiving notice of dishonour, who seeks to enforce his right against a prior party, transmits the notice within a reasonable time if he transmits it within the same time after its receipt as he would have had to give notice if he had been the holder.

CHAPTER XI
OF ACCEPTANCE AND PAYMENT FOR HONOUR AND REFERENCE IN CASE OF NEED.

108. Acceptance for honour. When a bill of exchange has been noted or protested for non-acceptance or for better security, any person not being a party already liable thereon may, with the consent of the holder, by writing on the bill, accept the same for the honour of any party thereto.

[1]* * * * * * *

109. How acceptance for honour must be made. A person desiring to accept for honour must, [2][by writing on the bill under his hand,] declare that he accepts under protest the protested bill for the honour of the drawer or of a particular indorser whom he names, or generally for honour;

[3]* * *.

110. Acceptance not specifying for whose honour it is made. Where the acceptance does not express for whose honour it is made, it shall be deemed to be made for the honour of the drawer.

111. Liability of acceptor for honour. An acceptor for honour binds himself to all parties subsequent to the party for whose honour he accepts to pay the amount of the bill if the drawee do not: and such party and all prior parties are liable in their respective capacities to compensate the acceptor for honour for all loss or damage sustained by him in consequence of such acceptance.

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[1]The second paragraph of the section was rep. by the Negotiable Instruments Act, 1885 (2 of 1885), s. 7.
[2]Subs. *ibid.*, s. 8, for "in the presence of a notary public subscribe the bill with his own hand and".
[3]The words "and such declaration must be recorded by the notary in his register" rep. *ibid.*

But an acceptor for honour is not liable to the holder of the bill unless it is presented, or (in case the address given by such acceptor on the bill is a place other than the place where the bill is made payable) forwarded for presentment, not later than the day next after the day of its maturity.

112. When acceptor for honour may be charged. An acceptor for honour cannot be charged unless the bill has at its maturity been presented to the drawee for payment, and has been dishonoured by him, and noted or protested for such dishonour.

113. Payment for honour. When a bill of exchange has been noted or protested for non-payment, any person may pay the same for the honour of any party liable to pay the same, provided that the person so paying [1][or his agent in that behalf] has previously declared before a notary public the party for whose honour he pays, and that such declaration has been recorded by such notary public.

114. Right of payer for honour. Any person so paying is entitled to all the rights, in respect of the bill, of the holder at the time of such payment, and may recover from the party for whose honour he pays all sums so paid, with interest thereon and with all expenses properly incurred in making such payment.

115. Drawee in case of need. Where a drawee in case of need is named in a bill of exchange, or in any indorsement thereon, the bill is not dishonoured until it has been dishonoured by such drawee.

116. Acceptance and payment without protest. A drawee in case of need may accept and pay the bill of exchange without previous protest.

CHAPTER XII
OF COMPENSATION

117. Rules as to compensation. The compensation payable in case of dishonour of a promissory note, bill of exchange or cheque, by any party liable to the holder or any indorsee, shall [2] * * *be determined by the following rules :—

(a) the holder is entitled to the amount due upon the instrument, together with the expenses properly incurred in presenting, noting and protesting it ;

(b) when the person charged resides at a place different from that at which the instrument was payable, the holder is entitled to receive such sum at the current rate of exchange between the two places;

(c) an indorser who, being liable, has paid the amount due on the same is entitled to the amount so paid with interest at six per centum per annum from the date of payment until tender or realization thereof, together with all expenses caused by the dishonour and payment;

(d) when the person charged and such indorser reside at different places, the indorser is entitled to receive such sum at the current rate of exchange between the two places;

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[1]Ins. by the Negotiable Instruments Act, 1885 (2 of 1885), s.9.
[2]Certain words were omitted by the Negotiable Instruments (Interest) Act, 1926 (30 of 1926), s.3.

(e) the party entitled to compensation may draw a bill upon the party liable to compensate him, payable at sight or on demand, for the amount due to him, together with all expenses properly incurred by him. Such bill must be accompanied by the instrument dishonoured and the protest thereof (if any). If such bill is dishonoured, the party dishonouring the same is liable to make compensation thereof in the same manner as in the case of the original bill.

CHAPTER XIII
SPECIAL RULES OF EVIDENCE

118. Presumptions as to negotiable instruments. Until the contrary is proved, the following presumptions shall be made:

(a) **of consideration;** that every negotiable instrument was made or drawn for consideration, and that every such instrument, when it has been accepted, indorsed, negotiated or transferred, was accepted, indorsed, negotiated or transferred for consideration;

(b) **as to date;** that every negotiable instrument bearing a date was made or drawn on such date;

(c) **as to time of acceptance;** that every accepted bill of exchange was accepted within a reasonable time after its date and before its maturity;

(d) **as to time of transfer;** that every transfer of a negotiable instrument was made before its maturity;

(e) **as to order of indorsement;** that the indorsements appearing upon a negotiable instrument were made in the order in which they appear thereon;

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(f) **as to stamp;** that a lost promissory note, bill of exchange or cheque was duly stamped;

(g) **that holder is a holder in due course.** that the holder of a negotiable instrument is a holder in due course: provided that, where the instrument has been obtained from its lawful owner, or from any person in lawful custody thereof, by means of an offence or fraud, or has been obtained from the maker or acceptor thereof by means of an offence or fraud, or for unlawful consideration, the burthen of proving that the holder is a holder in due course lies upon him.

119. Presumption on proof of protest. In a suit upon an instrument which has been dishonoured, the Court shall, on proof of the protest, presume the fact of dishonour, unless and until such fact is disproved.

120. Estoppel against denying original validity of instrument. No maker of a promissory note, and no drawer of a bill of exchange or cheque, and no acceptor of a bill of exchange for the honour of the drawer, shall, in a suit thereon by a holder in due course, be permitted to deny the validity of the instrument as originally made or drawn.

121. Estoppel against denying capacity of payee to indorse. No maker of a promissory note and no acceptor of a bill of exchange [1][payable to order] shall, in a suit thereon by a holder in due course, be permitted to deny the payee's capacity, at the date of the note or bill, to indorse the same.

122. Estoppel against denying signature or capacity of prior party. No indorser of a negotiable instrument shall, in a suit thereon by a subsequent holder, be permitted to deny the signature or capacity to contract of any prior party to the instrument.

CHAPTER XIV
[2][SPECIAL PROVISIONS RELATING TO CHEQUES]

[3][**122A. Revocation of banker's authority.** The duty and authority of a banker to pay a cheque drawn on him by his customer are determined by−

(1) countermand of payment ;

(2) notice of the customer's death;

(3) notice of adjudication of the customer as an insolvent.]

123. Cheque crossed generally. Where a cheque bears across its face an addition of the words "and company" or any abbreviation thereof, between two parallel transverse lines, or of two parallel transverse lines simply, either with or without the words "not negotiable", that addition shall be deemed a crossing and the cheque shall be deemed to be crossed generally.

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[4][**123A. Cheque crossed "account payee".**— (1) Where a cheque crossed generally bears across its face an addition of the words "account payee" between the two parallel transverse lines constituting the general crossing, the cheque, besides being crossed generally, is said to be crossed "account payee".

(2) When a cheque is crossed "account payee"—

(a) it shall cease to be negotiable; and

(b) it shall be the duty of the banker collecting payment of the cheque to credit the proceeds thereof only to the account of the payee named in the cheque.]

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[1]Subs. by the Negotiable Instruments (Amdt.) Act, 1919 (8 *of* 1919), s. 5, for "payable to, or to the order of, a specified person".
[2]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 41, for the original heading "OF CROSSED CHEQUES".
[3]Section 122A ins. *ibid.*, s.*42*.
[4]Section 123A ins. *ibid.*, s. 43.

124. Cheque crossed specially. Where a cheque bears across its face an addition of the name of a banker, either with or without the words "not negotiable", that addition shall be deemed a crossing, and the cheque shall be deemed to be crossed specially, and to be crossed to that banker.

125. Crossing after issue. Where a cheque is uncrossed, the holder may cross it generally or specially.

Where a cheque is crossed generally, the holder may cross it specially.

Where a cheque is crossed generally or specially, the holder may add the words "not negotiable".

Where a cheque is crossed specially, the banker to whom it is crossed may again cross it specially to another banker, his agent, for collection.

[1][When an uncrossed cheque, or a cheque crossed generally, is sent to a banker for collection, he may cross it specially to himself.]

[2][**125A**. **Crossing a material part of a cheque.** A crossing authorized by this Act is a material part of the cheque; it shall not be lawful for any person to obliterate, or, except as authorized by this Act, to add to or alter, the crossing.]

126. Payment of cheque crossed generally. Where a cheque is crossed generally, the banker on whom it is drawn shall not pay it otherwise than to a banker.

Payment of cheque crossed specially. Where a cheque is crossed specially, the banker on whom it is drawn shall not pay it otherwise than to the banker to whom it is crossed, or his agent for collection.

127. Payment of cheque crossed specially more than once. Where a cheque is crossed specially to more than one banker, except when crossed to an agent for the purpose of collection, the banker on whom it is drawn shall refuse payment thereof.

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128. Payment in due course of crossed cheque. Where the banker on whom a crossed cheque is drawn [3][in good faith and without negligence pays it, if crossed generally, to a banker, and if crossed specially, to the banker to whom it is crossed or his agent for collection, being a banker], the banker paying the cheque, and (in case such cheque has come to the hands of the payee) the drawer thereof, shall respectively be entitled to the same rights, and be placed in the same position in all respects, as they would respectively be entitled to and placed in if the amount of the cheque had been paid to and received by the true owner thereof.

129. Payment of crossed cheque out of due course. Any banker paying a cheque crossed generally otherwise than to a banker, or a cheque crossed specially otherwise than to the banker to whom the same is crossed, or his agent for collection, being a banker, shall be liable to the true owner of the cheque for any loss he may sustain owing to the cheque having been so paid [4][:]

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[1]New paragraph ins. by the Negotiable Instruments (Amdt.) Ordinance, 1962(49 of 1962), s. 44.
[2]Section 125A ins. *ibid.*, s. 45.
[3]Subs. *ibid.*, s. 46, for " has paid the same in due course".
[4]Subs. *ibid.*, s. 47, for the full-stop.

[1][Provided that where a cheque is presented for payment which does not at the time of presentment appear to be crossed, or to have had a crossing which has been obliterated, added to or altered otherwise than as authorized by this Act, the banker paying the cheque in good faith and without negligence shall not be responsible or incur any liability nor shall the payment be questioned, by reason of the cheque having been crossed, or of the crossing having been obliterated or having been added to or altered otherwise than as authorized by this Act, and of payment having been made otherwise than to a banker or to the banker to whom the cheque is or was crossed, or to his agent for collection, being a banker, as the case may be.]

130. Cheque bearing "not negotiable". A person taking a cheque crossed generally or specially, bearing in either case the words "not negotiable," shall not have, and shall not be capable of giving, a better title to the cheque than that which the person from whom he took it had.

131. Non-liability of banker receiving payment of cheque. [2][Subject to the provisions of this Act relating to cheques crossed "account payee" , where a banker in good faith and without negligence receives payment for a customer of a cheque crossed generally or specially to himself, and the customer has no title or a defective title thereto, the banker shall not, incur any liability to the true owner of the cheque by reason only of having received such payment.]

[3][*Explanation.*— A banker receives payment of a crossed cheque for a customer within the meaning of this section notwithstanding that he credits his customer's account with the amount of the cheque before receiving payment thereof.]

[4][**131A. Application of Chapter to drafts.** The provisions of this Chapter shall apply to any draft, as defined in section 85A, as if the draft were a cheque.]

[5][**131B. Protection to banker crediting cheque crossed "account payee".** Where a cheque is delivered for collection to a banker which does not at the time of such delivery appear to be crossed "account payee", or to have had a crossing "account payee" which has been obliterated or altered, the banker, in good faith and without negligence collecting payment of the cheque and crediting the proceeds thereof to a customer, shall not incur any liability by reason of the cheque having been crossed "account payee", or of such crossing having been obliterated or altered, and of the proceeds of the cheque having been credited to a person who is not the payee thereof.

131C. Cheque not operating as assignment of funds. A cheque, of itself, does not operate as an assignment of any part of the funds to the credit of the drawer with the banker.]

[1]Proviso added by the Negotiable Instruments (Amdt.) Ordinance, 1962(49 of 1962), s.47.
[2]Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 48, for the original paragraph.
[3] *Explanation* ins. by the Negotiable Instrument (Amdt.) Act, 1922 (18 of 1922), s. 2.
[4] Section 131A was added by the Negotiable Instruments (Amdt.) Act,1947 (33 of 1947), s. 2.
[5] Sections 131B and 131C ins. by Ord. 49 of 1962, s. 49.

CHAPTER XV
[1][SPECIAL PROVISIONS RELATING TO BILLS OF EXCHANGE]

[2][**131D. Several drawees.** A bill of exchange may be addressed to two or more drawees, whether they are partners or not; but an order addressed to two drawees, in the alternative, or to two or more drawees in succession, is not a bill of exchange.

131E. In whose favour a bill may be drawn. A bill of exchange may be drawn payable to, or to the order of, the drawer; or it may be drawn payable to, or to the order of, the drawee.

131F. When presentment for acceptance is necessary. A bill of exchange, in order to fix the acceptor with liability, must be presented for acceptance before it is presented for payment.

l31G. When presentment excused. Presentment for acceptance is excused, and a bill of exchange may be treated as dishonoured by non-acceptance—

(a) where the drawee is dead or is insolvent or is a fictitious person or a person not having capacity to contract by bill of exchange;

(b) where, at the due date for presentment, the drawee cannot, after reasonable search, be found at the place at which the bill is to be presented;

(c) where, after the exercise of reasonable diligence such, presentment cannot be effected;

(d) where, although the presentment has been irregular, acceptance has been refused on some other ground.

131H. Holder's right of recourse against drawer and indorsers. Subject to the provisions of this Act, when a bill of exchange is dishonoured by non-acceptance, an immediate right of recourse against the drawer and indorsers accrues, to the holder, and no presentment for payment is necessary.

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131I. Holder may refuse qualified acceptance. The holder of a bill of exchange may refuse to take a qualified acceptance, and if he does not obtain an unqualified acceptance may treat the bill as dishonoured by non-acceptance.]

132. Set of bills. Bills of exchange may be drawn in parts, each part being numbered and containing a provision that it shall continue payable only so long as the others remain unpaid. All the parts together make a set; but the whole set constitutes only one bill, and is extinguished when one of the parts, if a separate bill, would be extinguished.

Exception.— When a person accepts or indorses different parts of the bill in favour of different persons, he and the subsequent indorsers of each part are liable on such part as if it were a separate bill.

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[1] Subs. by the Negotiable Instruments (Amdt.) Ordinance, 1962 (49 of 1962), s. 50, for the original heading "OF BILLS IN SETS".
[2]Sections 131D, 131E, 131F,131G, 131H and 131I, ins. *ibid*,. s. 51.

133. Holder of first acquired part entitled to all. As between holders in due course of different parts of the same set he who first acquired title to his part is entitled to the other parts and the money represented by the bill.

CHAPTER XVI
OF INTERNATIONAL LAW

[1][**134. Law governing liability of parties to a foreign instrument.** In the absence of a contract to the contrary and subject to the provisions of section 136, in the case of a foreign promissory note, bill of exchange or cheque,—

(a) the law of the place where the instrument was made or drawn, or accepted or negotiated shall determine—

(i) the capacity of the parties ; and

(ii) the validity of the instrument or, as the case may be, of its acceptance or negotiation:

Provided that such instrument shall not be invalid or inadmissible in evidence by reason only that it was not stamped or not sufficiently stamped according to the law of the place where it was made or drawn ;

(b) the law of the place where such instrument is payable shall determine,—

(i) the liability of all parties thereto;

(ii) the duties of the holder with respect to presentment for acceptance or payment;

(iii) the date of maturity of the instrument;

(iv) what constitutes dishonour ;

(v) the necessity for and sufficiency of a protest or notice of dishonour ;

(vi) all questions relating to payment and satisfaction including the currency in which and the rate of exchange at which the instrument is to be paid.]

Illustration

A bill of exchange was drawn by A in California, where the rate of interest is 25 per cent., and accepted by B, payable in Washington, where the rate of interest is 6 per cent. The bill is endorsed in [2][Pakistan], and is dishonoured. An action on the bill is brought against B in [2][Pakistan]. He is liable to pay interest at the rate of 6 percent only; but, if A is charged as drawer, A is liable to pay interest at the rate of 25 per cent.

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[1]Subs. by the Negotiable Instmments (Amdt.) Ordinance, 1962 (49 of 1962), s. 52, for the original section 134.

[2] Subs. by the Negotiable Instruments (Amdt.) Act, 1957 (5 of 1958), s.6 (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3 (2) and 4, for "Britith India" .

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135. [*Law of place of payment governs dishonour.*] *Omitted by the Negotiable Instruments (Amdt.) Ordinance,* 1962 *(XLIX of* 1962) *s.* 53.

136. Instrument made, etc., outside Pakistan, but in accordance with their Law. If a negotiable instrument is made, drawn, accepted or indorsed [1][outside [2][Pakistan]], but in accordance with the law of [2][Pakistan], the circumstance that any agreement evidenced by such instrument is invalid according to the law of the country wherein it was entered into does not invalidate any subsequent acceptance or indorsement made thereon [3][within [2][Pakistan]].

137. Presumption as to foreign law. The law of any [4]* * * foreign country regarding promissory notes, bills of exchange and cheques shall be presumed to be the same as that of [2][Pakistan], unless and until the contrary is proved.

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[5][CHAPTER XVII
NOTARIES PUBLIC

138. Power to appoint notaries public. The [6][Federal Government] may, from time to time, by notification in the official Gazette, appoint any person, by name or by virtue of his office, to be a notary public under this Act and to exercise his functions as such with in any local area, and may, by like notification, remove from office any notary public appointed under this Act.

[7]**139. Power to make rules for notaries public.** The [6][Federal Government] may, from time to time, by notification in the official Gazette, make rules consistent with this Act for the guidance and control of notaries public appointed under this Act, and may, by such rules (among other matters) fix the fees payable to such notaries.]

***SCHEDULE*.—**[*Enactments repealed.*] *Rep. by the Amending Act,* 1891 *(XII of 1891).*

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[1]Subs. by A.O., 1949, Sch., read with Art. 4, for "out of British India".
[2]Subs. by the Negotiable Instruments (Admt.) Act, 1957 (5 of 1958), s. 6, for "the Provinces and the Capital of the Federation" (with effect from the 14th October, 1955).
[3]Subs. by A.O., 1949, Sch., read with Art. 4, for "in British India".
[4]The words "Acceding State or" which were ins. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., omitted by Act No.5 of 1958, s. 6 (with effect from the 14th October, 1955).
[5]Ch. XVII was added by the Negotiable Instruments Act, 1885 (2 of 1885), s. 10.
[6]Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government" which was subs. by A.O., 1937, for" L.G." which has been subs., for" G.G. in C" by the Decentralization Act, 1914 (4 of 1914), s. 2 and Sch., Part I.
[7]For rules under this section, *see* Notification No. 1433, dated 30th September, 1886, Gazette of India, 1886. Part I, p.548.

THE NOTARIES ORDINANCE, 1961

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THE NOTARIES ORDINANCE, 1961

ORDINANCE NO. XIX OF 1961

[14th June, 1961]

An Ordinance to provide for and to regulate the profession of notaries in Pakistan

WHEREAS it is expedient to provide for and to regulate the profession of notaries in Pakistan;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf the President is pleased to make and promulgate the following Ordinance:

1. Short title, extent and commencement.—(1) This Ordinance may be called the Notaries Ordinance, 1961.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such date [1]as the [2] [Provincial Government] may, by notification in the official Gazette, appoint.

2. Definitions. In this Ordinance, unless the context otherwise requires,—

(a) "instrument" includes every document by which any right or liability is, or purports to be, created, transferred, modified, limited, extended, suspended, extinguished or recorded;

[3][(b) "Legal practitioner" means a legal practitioner as defined in the Legal Practitioners and Bar Councils Act, 1973 (XXV of 1973);]

(c) "notary" means a person appointed as such under this Ordinance:

[4] * * * * * * *

(d) "prescribed" means prescribed by rules made under this Ordinance;

(e) "Register" means a Register of Notaries to be maintained under section 4.

(3). Power to appoint notaries. The [5] * * * Provincial Government, for the whole or any part of the Province may, appoint as notaries any legal practitioners or other persons who possesssuch qualifications as may be prescribed.

4. Registers.—(1) The [6]* * * Provincial Government shall maintain, in such form as may be prescribed, a Register of the notaries appointed by that Government and entitled to Practice as such under this Ordinance.

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[1] This Ordinance has been brought into force in the Province of West Pakistan except the Tribal Areas with effect from the 5th January, 1966, see Gazette of West Pakistan, 1966, Ext., p. 33h.

[2] Subs. by A.O., 1964, Art. 2 and Sch., for "Central Government".

[3] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), S 3 and Sch., II.

[4] Proviso omitted ibid.

[5] The words "Central Government" for the whole or any part of Pakistan, and the "omitted by A.O., 1964, Art. 2 and Sch.

[6] The words "Central Government and the" omitted ibid.

(2) Every such Register shall include the following particulars about the notary whose name is entered therein, namely:

(a) his full name, date of birth, residential and professional address;

(b) the date on which his name is entered in the Register;

(c) his qualification; and

(d) any other particulars which may be prescribed.

5. Entry of names in the Register and issue or renewal of certificates of practice. Every notary who intends to practise as such shall, on payment to the [1] [Provincial Government] of the prescribed fee, if any, be entitled—

(a) to have his name entered in the Register maintained by that Government under section 4, and

(b) to a certificate authorizing him to practise for a period of three years from the date on which the certificate is issued to him.

[2][(2) Every such notary who wishes to continue to practise after the expiry of the period of three years referred to in clause (b) of sub-section (1) shall, at such time before expiry of the said period as may be prescribed, submit to the Provincial Government an application for renewal of his certificate of practice accompanied by the prescribed fee.

(3) On receipt of an application under sub-section (2) from a notary, the Provincial Government may, if, after such inquiry as it may deem fit, it is satisfied that the conduct of the notary during the preceding three years has been unobjectionable, renew the certificate of practice for a period of three years.

(4) A person who has been in practice as a notary for a continuous period of six years shall not beappointed as a notary unless a period of not less than three years has elapsed since the expiry of the period for which his certificate of practice was renewed.]

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6. Annual publication of lists of notaries. The [3] * * * Provincial Government shall, not later than the end of January each year, publish in the official Gazette a list of notaries appointed by that Government and in practice at the beginning of that year together with such details pertaining to them as may be prescribed.

7. Seal of notaries. Every notary shall have and use, as occasion may arise, a seal of such formand design as may be prescribed.

8. Functions of notaries.— (1) A notary may do all or any of the following acts by virtue of his office, namely:

(a) verify, authenticate, certify or attest the execution of any instrument;

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[1] Subs. ibid., for "Government appointing him".

[2] Subs. by the Notaries (Amdt.) Ordinance, 1984 (51 of 1984), s. 2, for sub-section (2), which was previously amended by A.O., 1964, Art. 2 and Sch.

[3] The words "Central Government and every" omitted by A.O., 1964, Art 2. and Schedule.

(b) present any promissory note, hundi or bill of exchange for acceptance or payment or demand better security;

(c) note or protest the dishonour by non-acceptance or non-payment of any promissory note, hundi or bill of exchange or protest for better security or prepare acts of honour under the Negotiable Instruments Act, 1881 (XXVI of 1881), or serve notice of such note or protest;

(d) note and draw up ship's protest, boat's protest or protest relating to demurrage and other commercial matters;

(e) administer oath to, or take affidavit from, any person;

(f) prepare bottomry and respondantia bonds, charter parties and other mercantile documents;

(g) prepare, attest or authenticate any instrument intended to take effect in any country or place outside Pakistan in such form and language as may conform to the law of the place where such deed is intended to operate;

(h) translate, and verify the translation of, any document from one language into another;

(i) any other act which may be prescribed.

(2) No act specified in subsection (1) shall be deemed to be a notarial act except when it is done by a notary under his signature and official seal.

9. Bar of practice without certificate.—(1) Subject to the provisions of this section, no person shall practise as a notary or do any notarial act under the official seal of a notary unless he holds a certificate of practice in force issued to him under section 5:

Provided that nothing in this sub-section shall apply to the presentation of any promissory note, hundi or bill of exchange for acceptance or payment by the clerk of a notary acting on behalf of such notary.

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[1]* * * * * *

10. Removal of names from Register. The [2][Provincial Government] may, by order, remove from the Register maintained by it under section 4 the name of the notary if he

(a) makes a request to that effect; or

(b) has not paid any prescribed fee required to be paid by him; or

(c) is an undischarged insolvent; or

(d) has been found, upon inquiry in the prescribed manner, to be guilty of such professional orother misconduct as, in the opinion of the Government, renders him unfit to practise as a notary.

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[1]Sub-section (2) omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II.

[2]Subs. by A.O., 1964, Art. 2 and Sch., for "Government appointing any notary".

11. Construction of references to notaries public in other laws. Subject to the provisions of section 16, any reference to a notary public in any other law shall be construed as a reference to a notary entitled to practise under this Ordinance.

12. Penalty for falsely representing to be a notary, etc. Any person who—

(a) falsely represents that he is a notary without being appointed as such, or

(b) practises as a notary or does any notarial act in contravention of section 9, shall be punishable with imprisonment for a term which may extend to three months, or with fine, or with both.

13. Cognizance of offence.—(1) No court shall take cognizance of any offence committed by a notary in the exercise or purported exercise of his functions under this Ordinance save upon complaint in writing made by an officer authorized by the [1]* * * Provincial Government by general or special order in this behalf.

(2) No magistrate other than a magistrate of the first class shall try an offence punishable under this Ordinance.

14. Reciprocal arrangements for recognition of notarial acts done by foreign notaries. If the [2][Federal Government] is satisfied that by the law or practice of any country or place outside Pakistan, the notarial acts done by notaries within Pakistan are recognised for all or any limited purposes in that country or place, the [2][Federal Government] may, by notification in the official Gazette, declare that the notarial acts lawfully done by notaries within such country or place shall be recognised within Pakistan for all purposes or, as the case may be, for such limited purposes as may be specified in the notification.

15. Power to make rules.—(1) The [1] [Provincial Government] may, by notification in the official Gazette, make rules to carry out the purposes of this Ordinance.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:

(a) the qualifications of a notary, the form and manner in which applications for appointment as a notary may be made and the disposal of such applicants;

(b) the certificates, testimonials or proofs as to character, integrity, ability and competence which any person applying for appointment as a notary may be required to furnish;

(c) the fees payable for appointment as a notary and for the issue and renewal of a certificate of practice, and exemption, whether wholly or in part, from such fees in specified classes of cases;

(d) the fees payable to a notary for doing any notarial act;

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[1]Subs. by A.O., 1964, Art. 2 and Sch., for "Central Government".

(e) the form of Registers and the particulars to be entered therein;

(f) the form and design of the seal of a notary;

(g) the manner in which inquiries into allegations or professional or other misconduct of notaries may be made;

(h) the acts which a notary may do in addition to those specified in section 8 and the manner in which a notary may perform his functions.

16. Saving of Act XXVI of 1881. Nothing in this Ordinance affects the provisions of the Negotiable Instruments Act, 1881 (XXVI of 1881), or any appointment made in pursuance of section 138 of that Act or the powers of any person so appointed.

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THE OATHS ACT, 1873

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SCHEDULE

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THE OATHS ACT, 1873

[1]ACT NO.X OF 1873

[8*th April*, 1873]

An Act to consolidate the law relating to Judicial Oaths, and for other purposes.

Preamble. WHEREAS it is expedient to consolidate the law relating to judicial oaths, affirmations and declarations, and to repeal the law relating to official oaths, affirmations and declarations; It is hereby enacted as follows:—

I.—PRELIMINARY

1.Short title. This Act may be called the [2]* Oaths Act, 1873.

Local extent. [3][It extends to the whole of Pakistan.]

[4]* * * * * * *

2. [*Repeal of enactments.*] *Rep. by the Repealing Act*, 1873 *(XII of* 1873).

[5]**[3. Saving of certain oaths and affirmations.** Nothing herein contained applies to proceedings before Courts Martial, or to oaths, affirmations or declarations prescribed by or under any law [6][or] President' warrants [7]* for the time being in force.]

II.—AUTHORITY TO ADMINISTER OATHS AND AFFIRMATIONS

4. Authority to administer oaths and affirmations.- The following Courts and persons are authorized to administer, by themselves or by an officer empowered by them in this behalf, oaths and affirmations in discharge of the duties or in exercise of the powers imposed or conferred upon them respectively by law:—

(a) all Courts and persons having by law or consent of parties authority to receive evidence;

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[8][(b) the Commanding Officer of any military, naval or air force station or ship occupied by the Armed Forces of Pakistan, provided that the oath or affirmation is administered within the limits of the station or on the ship.]

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[1]For the Statement of Objects and Reasons, *see* Gazette of India, 1873, Pt. V, p. 17 ; for Proceedings in Council, *see ibid.*, 1872, Supplement, p. 889; *ibid.*, 1873, Supplement, pp. 3, 233, 235 to 246, 281,395, and 410 ; *ibid.*, 1873, Extra Supplement, pp. 1 to 8.
This Act has been declared to be in force in Balochistan by the British Balochistan Laws Regulation, 1913 (2 of 1913), s. 3.
This Act has been extended to the Leased Areas of Balochistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Balochistan, *see* Gazette of India, 1937, Part I, page 1499.
[2]The word" Indian" omitted by A. O., 1949, Sch.
[3]Para.2 of section 1, as amended by A. O., 1937, A. O.,1949 and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and III Sch., has been subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th Oct*, 1955).
[4]The commencement clause was rep. by the Repealing Act, 1876 (12 of 1876).
[5]The original section 3 has successively been amended by the Indian Oaths (Amdt.) Act, 1919 (6 of 1919), s. 2, A.O., 1937, A.O., 1949, Sch., and A.O., 1961, Art. 2 and Sch. *(with effect from the 23rdMarch*, 1956). to read as above.
[6]Ins. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981). s.3 and IInd Sch.
[7]The word "or" omitted *ibid.*
[8]Clause (b) as amended by Act 35 of 1934, s. 2 and Sch,. Act 10 of 1927, s. 2 and Sch. I and A. O., 1961. Art. 2 (w.e.f. 14-10-1955), has been subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and IInd Sch.

Provided—

(1) that the oath or affirmation be administered within the limits of the station, and

(2) that the oath or affirmation be such as a Justice of the Peace is competent to administer in [1][Pakistan].

III.—PERSONS BY WHOM OATHS OR AFFIRMATIONS MUST BE MADE

5. Oaths or affirmations to be made by. Oaths or affirmations shall be made by the following persons:—

(a) **witnesses;** all witnesses, that is to say, all persons who may law fully be examined, or give, or be required to give, evidence by or before any Court or person having by law or consent of parties authority to examine such persons or to receive evidence; [and][2]

(b) **interpreters;** interpreters of questions put to, and evidence given by, witnesses [:][3]

[4]* * * * * * *

Jurors. [5][Provided that where the witness is a child under twelve years of age, and the Court or person having authority to examine such witness is of opinion that, though he understands the duty of speaking the truth, he does not understand the nature of an oath or affirmation, the foregoing provisions of this section and the provisions of section 6 shall not apply to such witness, but in any such case the absence of an oath or affirmation shall not render inadmissible any evidence given by such witness nor affect the obligation of the witness to state the truth.]

Nothing herein contained shall render it lawful to administer, in a criminal proceeding, an oath or affirmation to the accused person, [6][unless he is examined as a witness for the defence,] or necessary to administer to the official interpreter of any Court, after he has entered on the execution of the duties of his office, an oath or affirmation that he will faithfully discharge those duties.

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[7]**[6. Oath by a Muslim or by a non-Muslim who has no abjection.**—(1) Where the witness or interpreter is a Muslim, he shall make an oath.

(2) Where the witness or interpreter is not a Muslim, he shall make an oath or, if he has an objection to making an oath, an affirmation.]

IV.—FORMS OF OATHS AND AFFIRMATIONS

7. Forms of oaths and affirmations. All oaths and affirmations made under section 5 shall be administered according to such forms as the High Court may from of time to time prescribe.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance. 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India".
[2]The word "and" added by Ordinance 27 of 1981 s. 3 and IInd Sch.
[3]Subs. *ibid.*, for "; and"
[4]Clause (c) omitted *ibid.*,
[5]Provisions ins. by *ibid* Indian Oaths (Arndt.) Act, 1939 (39 of 1939).
[6]Ins. by Ord. 27 of 1981, s. 3 and 2nd Sch.
[7]Subs. *ibid,* for the original section 6.

And until any such forms are prescribed by the High Court, such oaths and affirmations shall be administere1 according to the forms now in use.

[1]* * * * * * *

8. Power of Court to tender certain oaths. If any party to, or witness in, any judicial proceeding offers to give evidence on oath or solemn affirmation in any form common amongst, or held binding by, persons of the race or persuasion to which he belongs, and not repugnant to justice or decency, and not purporting to affect any third person, the Court may, if it thinks fit, notwithstanding anything herein before contained, tender such oath or affirmation to him.

9. Court may ask party or witness whether he will make oath proposed by opposite party. If any party to any judicial proceeding offers to be bound by any such oath or solemn affirmation as is mentioned in section 8, if such oath or affirmation is made by the other party to, or by any witness in, such proceeding, the Court may, if it thinks fit, ask such party or witness, or cause him to be asked, whether or not he will make the oath or affirmation:

Provided that no party or witness shall be compelled to attend personally in Court solely for the purpose of answering such question.

10. Administration of oath if accepted. If such party or witness agrees to make such oath or affirmation, the Court may proceed to administer it, or, if it is of such a nature that it may be more conveniently made out of Court, the Court may issue a commission to any person to administer it, and authorize him to take the evidence of the person to be sworn or affirmed and return it to the Court.

11. Evidence conclusive as against person offering to be bound. The evidence so given shall, as against the person who offered to be bound as aforesaid, be conclusive proof of the matter stated.

12. Procedure in case of refusal to make oath. If the party or witness refuses to make the oath or solemn affirmation referred to in section 8, he shall not be compelled to make it, but the Court shall record, as part of the proceedings, the nature of the oath or affirmation proposed, the facts that he was asked whether he would make it, and that he refused it, together with any reason which he may assign for his refusal.

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MISCELLANEOUS

13. Proceedings and evidence not invalidated by omission of oath or irregularity. No omission to take any oath or make any affirmation, no substitution of anyone for any other of them, and no irregularity whatever, in the form in which anyone of them is administered, shall invalidate any proceeding or render inadmissible any evidence whatever, in or in respect of which such omission, substitution or irregularity took place, or shall affect the obligation of a witness to state the truth.

14. Persons giving evidence bound to state the truth. Every person giving evidence on any subject before any Court or person hereby authorized to administer oaths and affirmations shall be bound to state the truth on such subject[2].

[1]The *Explanation* to section 7 was rep. by the Lower Burma Courts Act, 1900 (6 of 1900), s. 48 and IInd Sch.
[2]Cf. the Pakistan Penal Code (Act 45 of 1860), s. 191.

15. [*Amendment of Penal Code, ss.* 178 *and* 181.] *Rep. by the Repealing Act,* 1938 (I *of* 1938), *s.* 2 and *Sch.*

16. Official oaths abolished. Subject to the provisions of sections 3 and 5, no person appointed to any office shall, before entering on the execution of the duties of his office, be required to make any oath, or to make or subscribe any affirmation or declaration whatever.

SCHEDULE. [*Rep. by the Repealing Act,* 1873 *(XII of* 1873).]

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Date: 16-09-2024

THE PAKISTAN CITIZENSHIP ACT, 1951

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SCHEDULE

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THE PAKISTAN CITIZENSHIP ACT, 1951

[1]ACT NO. II of 1951

[13th *April*, 1951]

An Act to provide for Pakistan citizenship

WHEREAS it is expedient to make provision for citizenship of Pakistan;

It is hereby enacted as follows:—

1. Short title and commencement.— (1) This Act may be called the Pakistan Citizenship Act, 1951.

(2) It shall come into force at once.

2. Definitions. In this Act—

"alien" means a person who is not a citizen of Pakistan or a Commonwealth citizen;

"Indo-Pakistan sub-continent" means India as defined in the Government of India Act, 1935 (26 Geo.5, c.2.), as originally enacted;

"minor" means, notwithstanding anything in the Majority Act, 1875 (IX of 1875), any person who has not completed the age of twentyone years;

"prescribed" means prescribed by rules made under this Act; [2][*]

[2]["Commonwealth citizen" means a person who has the status of a Commonwealth citizen under the British Nationality Act, 1948 (11 & 12, Geo.6, c.56.)

"British protected person" means a person who has the status of a British protected person for the purposes of the British Nationality Act, 1948 (11 & 12 Geo.c.56).]

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3. Citizenship at the date of commencement of this Act. At the commencement of this Act, every person shall be deemed to be a citizen of Pakistan—

(a) who or any of whose parents or grandparents was born in the territory now included in Pakistan and who after the fourteenth day of August, 1947, has not been permanently resident in any country outside Pakistan; or

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[1]This Act shall, during the continuance of the Defence of Pakistan Ordinance, 1971 (XXX of 1971), have effect subject to the provision of section 7 (4) of that Ordinance.
It has also been brought into force in Baluchistan with effect on and from the 13th day of April, 1951, *see* Gazette of Pakistan, 1952, Pt. I, p. 218; applied in the Federated Areas of Baluchistan, *see ibid.*, 1953, Pt. I, p. 152; extended to the Leased Areas of Baluchistan by the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); extended to the Khairpur State by the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O. 5 of 1953); extended to the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953) ; extended to the State of Bahawalpur by the Bahawalpur (Extension of Federal Laws) Order, 1953 (G.G.O. 11 of 1953), as amended; and also brought in to force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application for Central Laws) Ordinance, 1960 (37 of 1960), s. 2.
[2]Omitted and subs. by Act No. V of 1952, s. 2.

(b) who or any of whose parents or grandparents was born in the territories included in India on the thirtyfirst day of March, 1937, [1][and who, except in the case of a person who was in the service of Pakistan or of any Government or Administration in Pakistan at the commencement of this Act, has] or had his domicile within the meaning of Part II of the Succession Act, 1925 (XXXIX of 1925), as in force at the commencement of this Act, in Pakistan or in the territories now included in Pakistan; or

(c) who is a person naturalised as a British subject in Pakistan; and who, if before the date of the commencement of this Act he has acquired the citizenship of any foreign State, has before that date renounced the same by depositing a declaration in writing to that effect with an authority appointed or empowered to receive it; [1][or]

[1][(d) who before the commencement of this Act migrated to the territories now included in Pakistan from any territory in the Indo-Pakistan sub-continent outside those territories with the intention of residing permanently in those territories]

[1][* * * * * * *]

4. Citizenship by birth. Every person born in Pakistan after the commencement of this Act shall be a citizen of Pakistan by birth:

Provided that a person shall not be such a citizen by virtue of this section if at the time of his birth—

(a) his father possesses such immunity from suit and legal process as is accorded to an envoy of an external sovereign power accredited in Pakistan and is not a citizen of Pakistan; or

(b) his father is an enemy alien and the birth occurs in a place then under occupation by the enemy.

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5. Citizenship by descent. Subject to the provisions of section 3 a person born after the commencement of this Act shall be a citizen of Pakistan by descent if his [2][parent] is a citizen of Pakistan at the time of his birth:

Provided that if the [2][parent] of such person is a citizen of Pakistan by descent only, that person shall not be a citizen of Pakistan by virtue of this section unless—

(a) that person's birth having occurred in a country outside Pakistan the birth is registered at a Pakistan Consulate or Mission in that country, or where there is no Pakistan Consulate or Mission in that country [1][at the prescribed Consulate or Mission or] at a Pakistan Consulate or Mission in the country nearest to that country; or

(b) that person's [2][parent] is, at the time of the birth, in the service of any Government in Pakistan.

[1]Subs., ins. and omitted by Act No. V of 1952, ss. 3-4.
[2]Subs. by Ord. No. XIII of 2000, s. 2.

6. Citizenship by migration.— (1) The [1][Federal Government] may, upon his obtaining a certificate of domicile under this Act, register as a citizen of Pakistan by migration any person who [2][after the commencement of this Act and before the first day of January, 1952, has migrated] to the territories now included in Pakistan from any territory in the Indo-Pakistan sub-continent outside those territories, with the intention of residing permanently in those territories:

Provided that the [1][Federal Government] may, by general or special order, exempt any person or class of persons from obtaining a certificate of domicile required under this sub-section.

(2) Registration granted under the preceding sub-section shall include, besides the person himself, his wife, if any, unless his marriage with her has been dissolved, and any minor child of his dependent whether wholly or partially upon him.

7. Persons migrating from the territories of Pakistan. Notwithstanding anything in sections 3, 4 and 6, a person who has after the first day of March, 1947, migrated from the territories now included in Pakistan to the territories now included in India shall not be a citizen of Pakistan under the provisions of these sections:

Provided that nothing in this section shall apply to a person who, after having so migrated to the territories now included in India has returned to the territories now included in Pakistan under a permit for resettlement or permanent return issued by or under the authority of any law for the time being in force.

8. Rights of citizenship of certain persons resident abroad. [1][(1)] The [1][Federal Government] may, upon application made to it in this behalf, register as a citizen of Pakistan any person who, or whose father or whose father's father, was born in the Indo-Pakistan sub-continent and who is ordinarily resident in a country outside Pakistan at the commencement of this Act, if he has, unless exempted by the [1][Federal Government] in this behalf, obtained a certificate of domicile:

Provided that a certificate of domicile shall not be required in the case of any such person who is out of Pakistan under the protection of a Pakistan passport, or in the case of any such person whose father or whose father's father is at the commencement of this Act residing in Pakistan or becomes, before the aforesaid application is made, a citizen of Pakistan.

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[1][(2) A subject of the State of Jammu and Kashmir who, being under the protection of a Pakistan passport, is resident in the United Kingdom or such other country as the Federal Government may, by notification in the official Gazette, specify in this behalf, shall, without prejudice to his rights and status as a subject of that State, be deemed to be, and always to have been, a citizen of Pakistan.]

9. Citizenship by naturalisation. The [1][Federal Government] may, upon an application made to it in that behalf by any person who has been granted a certificate of naturalisation under the Naturalisation Act, 1926 (VII of 1926), register that person as a citizen of Pakistan by naturalization:

Provided that the [1][Federal Government] may register any person as a citizen of Pakistan without his having obtained a certificate of naturalisation as aforesaid.

10. Married women.— (1) Any woman who by reason of her marriage to a [2][British subject] before the first day of January, 1949, has acquired the status of a [2][British subject] shall, if her husband becomes a citizen of Pakistan, be a citizen of Pakistan.

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[1]Subs., renumbered and added by Act No. XLVIII of 1973, ss. 2-3.
[2]Subs. by Act No. V of 1952, ss. 5-6.

(2) Subject to the provisions of sub-section (1) and sub-section (4) a woman who has been married to a citizen of Pakistan or to a person who but for his death would have been a citizen of Pakistan under section 3, 4 or 5 shall be entitled, on making application therefor to the [1][Federal Government] in the prescribed manner and, if she is an alien, on obtaining a certificate of domicile and taking the oath of allegiance in the form set out in the Schedule to this Act, to be registered as a citizen of Pakistan whether or not she has completed twentyone years of her age and is of full capacity.

(3) Subject as aforesaid, a woman who has been married to a person who, but for his death, could have been a citizen of Pakistan under the provisions of sub-section (1) of section 6 (whether he migrated as provided in that sub-section or is deemed under the proviso to section 7 to have so migrated) shall be entitled as provided in sub-section (2) subject further, if she is an alien, to her obtaining the certificate and taking the oath therein mentioned.

(4) A person who has ceased to be a citizen of Pakistan under section 14 or who has been deprived of citizenship of Pakistan under this Act shall not be entitled to be registered as a citizen thereof under this section but may be so registered with the previous consent of the [1][Federal Government].

11. Registration of minors.— (1) The [1][Federal Government] may, upon application to it in this behalf made in the prescribed manner by a parent or guardian of a minor child of a citizen of Pakistan, register the child as a citizen of Pakistan.

(2) The [1][Federal Government] may, in such circumstances as it thinks fit, register any minor as a citizen of Pakistan.

12. Citizenship by registration to begin on date of registration. Any person registered as a citizen of Pakistan shall be such a citizen from the date of his registration.

13. Citizenship by incorporation of territory. If any territory becomes a part of Pakistan the [2][President] may, by order, specify the persons who shall be citizens of Pakistan by reason of their connection with that territory; and those persons shall be citizens of Pakistan from such date and upon such conditions, if any, as may be specified in the order.

14. Dual citizenship or nationality not permitted.— (1) Subject to the provisions of this section if any person is a citizen of Pakistan under the provisions of this Act, and is at the same time a citizen or national of any other country, he shall, unless [3][* * *] he makes a declaration according to the laws of that other country renouncing his status as citizen or national thereof, cease to be a citizen of Pakistan.

[3][(1A) Nothing in sub-section (1) applies to a person who has not attained twenty-one years of his age.]

(2) Nothing in [3][sub-section (1)] shall apply to any person who is a subject of an acceding State so far as concerns his being a subject of that State.

[4][(3) Nothing in sub-section (1) shall apply, or shall be deemed ever to have applied at any stage, to a person who, being or having at any time been, a citizen of Pakistan, is also the citizen of the

[1]Subs. by Act No. XLVIII of 1973, s. 3.
[2]Subs. by the Central Laws (Adaptation) Order, 1961 (P. O. No. 1 of 1961), Art. 2 and Table.
[3]Omitted, ins. and subs. by Act No. V of 1952, s. 7.
[4]Added by Act No. XVII of 1972, s. 2.

United Kingdom and Colonies or of such other country as the Federal Government may, by notification in the official Gazette, specify in this behalf.

(4) Nothing in sub-section (1) shall apply to a female citizen of Pakistan who is married to a person who is not a citizen of Pakistan.]

[1][**14A. Renunciation of citizenship**.— (1) If any citizen of Pakistan residing outside Pakistan, who is not a minor and—

(*a*) is also a citizen or national of another country, or

(*b*) has been given by the competent authority of another country any valid document assuring him of the grant of the citizenship or nationality of that other country upon renouncing his citizenship of Pakistan,

makes in the prescribed manner a declaration renouncing his citizenship of Pakistan, the declaration shall be registered by the prescribed authority, and upon such registration that person shall cease to be a citizen of Pakistan:

Provided that, if any such declaration is made during any war in which Pakistan may be engaged, registration thereof shall be withheld until the Federal Government otherwise directs.

(2) Where a male person ceases to be a citizen of Pakistan under sub-section (1)—

(*a*) every such minor child of that person as is residing outside Pakistan shall thereupon cease to be a citizen of Pakistan;

Provided that any such child may, within one year of his completing the age of twenty-one years, make a declaration that he wishes to resume the citizenship of Pakistan and shall upon the making of such declaration become a citizen of Pakistan; and

(*b*) every such minor child of that person as is residing in Pakistan shall continue to be a citizen of Pakistan.]

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[2][(3) Subject to notification by the Federal Government in the official Gazette under sub-section (3) of section 14, any person who has renounced citizenship of Pakistan under sub-section (1), may resume citizenship of Pakistan by making a declaration in the prescribed manner and upon making of such declaration he may thereupon become a citizen of Pakistan.

(4) Where declaration under sub-section (3) is made by a person, every minor child of such person whose citizenship has ceased under sub-section (2) may thereupon become a citizen of Pakistan.]

[3][**14B. Certain persons to be citizens of Pakistan.**— A person who, being a subject of the State of Jammu and Kashmir, has migrated to Pakistan with the intention of residing therein until such time as the relationship between Pakistan and that State is finally determined shall, without prejudice to his status as such subject, be a citizen of a Pakistan.]

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[1]Ins. by Act No. XVII of 1972, s. 3.
[2]Added by Act No. XXIII of 2025, s.2.
[3]Ins. and shall be deemed to have been so inserted on the twentieth day of April, 1972, by Act No. XXXIX of 1973, s. 2.

15. Persons becoming citizens to have the status of Commonwealth citizens. Every person becoming a citizen of Pakistan under this Act shall have the status of a Commonwealth citizen.

16. Deprivation of citizenship.— (1) A citizen of Pakistan shall cease to be a citizen of Pakistan if he is deprived of that citizenship by an order under the next following sub-sections.

(2) Subject to the provisions of this section the [1][Federal Government] may by order deprive any such citizen of his citizenship if it is satisfied that he obtained his certificate of domicile or certificate of naturalisation [2][under the Naturalisation Act, 1926] by means of fraud, false representation or the concealment of any material fact, or if his certificate of naturalization [2][under the naturalization Act, 1926] is revoked.

(3) Subject to the provisions of this section the [1][Federal Government] may by order deprive any person who is a citizen of Pakistan by naturalisation of his citizenship of Pakistan if it is satisfied that that citizen—

(a) has shown himself by any act or speech to be disloyal or disaffected to the Constitution of Pakistan; or

(b) has, during a war in which Pakistan is or has been engaged, unlawfully traded or communicated with the enemy or engaged in or associated with any business that was to his knowledge carried on in such a manner as to assist the enemy in that war; or

(c) has within five years of being naturalised been sentenced in any country to imprisonment for a term of not less than twelve months.

(4) The [1][Federal Government] may on an application being made or on its own motion by order deprive any citizen of Pakistan of his citizenship if it is satisfied that he has been ordinarily resident in a country outside Pakistan for a continuous period of seven years [2][beginning not earlier than the commencement of this Act] and during that period has neither—

(i) been at any time in the service of any Government in Pakistan or of an international organisation of which Pakistan has, at any time during that period been a member; nor

(ii) registered annually in the prescribed manner at a Pakistan Consulate or Mission or in a country where there is no Pakistan Consulate or Mission [2][at the prescribed Consulate or Mission or] at a Pakistan Consulate or Mission in a country nearest to the country of his residence his intention to retain Pakistan Citizenship.

(5) The [1][Federal Government] shall not make an order depriving a person of citizenship under this section unless it is satisfied that it is in the public interest that that person should not continue to be a citizen of Pakistan.

(6) Before making an order under this section the [1][Federal Government] shall give the person against whom it is proposed to make the order notice in writing informing him of the grounds on which it is proposed to make the order and calling upon him to show cause why it should not be made.

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[1]Subs. by Act No. XLVIII of 1973, s. 3.
[2]Ins. by Act No. V of 1952, s. 8.

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(7) If it is proposed to make the order on any of the grounds specified in sub-sections (2) and (3) of this section and the person against whom it is proposed to make the order applies in the prescribed manner for an inquiry, the [1][Federal Government] shall, and in any other case may, refer the case to a committee of inquiry consisting of a chairman, being a person possessing judicial experience, appointed by the [1][Federal Government] and of such other members appointed by the [1][Federal Government] as it thinks proper.

[2][**16A. Certain persons to lose and others to retain citizenship**.— (1) All persons who, at any time before the sixteenth day of December, 1971, were citizens of Pakistan domiciled in the territories which before the said day constituted the Province of East Pakistan and who—

(i) were residing in those territories on that day and are residing therein since that day voluntarily or otherwise shall cease to be citizens of Pakistan;

(ii) were residing in Pakistan on that day but after that day voluntarily migrated to those territories shall cease to be citizens of Pakistan;

(iii) were residing in Pakistan on that day and are voluntarily residing therein since that day shall continue to be citizens of Pakistan;

(iv) were residing in those territories on that day but voluntarily came to Pakistan after that day with the approval of the Federal Government shall continue to be citizens of Pakistan:

Provided that any persons referred to in clause (i) whose repatriation to Pakistan has been agreed to by the Federal Government and who have not been so repatriated before the commencement of Pakistan Citizenship (Amendment) Ordinance, 1978, shall continue to be citizens of Pakistan.

(2) Any person who, at any time before the sixteenth day of December, 1971, was a citizen of Pakistan domiciled in the territories which before the said day constituted the Province of East Pakistan and who, being under the protection of a Pakistan passport, was on that day, or is, residing in any country beyond those territories shall not be deemed to be a citizen of Pakistan unless, upon an application made by him to the Federal Government in this behalf, the Federal Government has granted him a certificate that at the date of the certificate he is a citizen of Pakistan.]

17. Certificate of domicile. The [1][Federal Government] may upon an application being made to it in the prescribed manner containing the prescribed particulars grant a certificate of domicile to any person in respect of whom it is satisfied that he has ordinarily resided in Pakistan for a period of not less than one year immediately before the making of the application, and has acquired a domicile therein.

18. Delegation of powers. The [1][Federal Government] may, by order notified in the official Gazette, direct that any power conferred upon it or duty imposed on it by this Act shall, in such circumstances, and under such conditions, if any, as may be specified in the direction, be exercised or discharged by such authority or officer as may be specified.

[1]Subs. by Act No. XLVIII of 1973, s. 3.
[2]Ins. by Ordinance No. XI of 1978, s.2.

19. Cases of doubt as to citizenship.— (1) Where a person with respect to whose citizenship a doubt exists, whether on a question of law or fact, makes application in that behalf to the [1][Federal Government], the [1][Federal Government] may grant him a certificate that at the date of the certificate he is a citizen of Pakistan.

(2) The certificate, unless it is proved to have been obtained by fraud, false representation or concealment of any material fact, shall be conclusive evidence of the fact recorded in it.

20. Acquisition of Pakistan citizenship by citizens of Commonwealth countries. The [1][Federal Government] may upon such terms and conditions as it may by general or special order specify register a [2][Commonwealth citizen or a British protected person] as a citizen of Pakistan.

21. Penalties. Any person who in order to obtain or prevent the doing of anything under the Act makes any statement or furnishes any information which is false in any material particular and which he knows or has reasonable cause to believe to be false, or does not believe to be true, shall be deemed to have committed an offence punishable under section 177 of the Pakistan Penal Code (Act XLV of 1860).

22. Interpretation.— (1) For the purposes of this Act a person born abroad a registered ship or aircraft, or abroad an unregistered ship or aircraft of the Government of any country shall be deemed to have been born in the place in which the ship or aircraft was registered or as the case may be in that country.

(2) Any reference in this Act to the status or description of the father of a person at the time of that person's birth shall, in relation to a person born after the death of his father be construed as a reference to the status or description of the father at the time of the father's death ; and where that death occurred before, and the birth occurs after the commencement of this Act, the status or description which would have been applicable to the father had he died after the commencement of this Act shall be deemed to be the status or description applicable to him at the time of his death.

23. Rules.— (1) The [1][Federal Government] may frame rules for carrying into effect the provisions of this Act.

(2) No rule framed under this Act shall have effect unless published in the official Gazette.

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SCHEDULE

(Form of Oath or affirmation)

(Section 10)

"I (name) of (address) do hereby swear (or affirm) that I will be faithful and bear true allegiance to the Constitution of Pakistan".

RGN Date: 03-09-2025

[1]Subs. by Act No. XLVIII of 1973, s. 3.
[2]Subs. by Act No. V of 1952, s. 9.

THE PAKISTAN COINAGE ACT, 1906

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24. [Repealed.]

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[Repealed.]

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THE PAKISTAN COINAGE ACT, 1906

[1]ACT No. III OF 1906

[2nd March, 1906]

An Act to consolidate and amend the law relating to Coinage and the Mint.

WHEREAS it is expedient to consolidate and amend the law relating to Coinage and the Mint; It is hereby enacted as follows :—

PRELIMINARY

[2]**[1. Short title and extent.** —(1) This Act may be called the Pakistan Coinage Act.

(2) It extends to the whole of Pakistan.]

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "deface", with its grammatical variations and cognate expressions, includes clipping, filing, stamping or such other alteration of the surface or shape of a coin as is readily distinguishable from the effects of reasonable wear ;

(b) "the Mint" includes the Mints now existing and any which may hereafter be established ;

(c) "prescribed" includes prescribed by a rule made under this Act ;

(d) "remedy" means variation from the standard weight and fineness ; and

(e) "standard weight" means the weight prescribed for any coin.

3. Power to establish and abolish Mints. The [3][Federal Government] may, by notification in the [4][official Gazette], —

(a) establish a Mint at any place at which a Mint does not for the time being exist; and

(b) abolish any Mint, whether now existing or hereafter established.

[5][* *]

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[1] For Statement of Objects and Reasons, *see* Gazette of India, 1905, Part. V, p. 32; for Report of the Select Committee, *see ibid.*, 1906, Part. V, p. 9; and for Proceedings in Council, *see ibid.*, 1905, Part VI, p. 142 ; *ibid.*, 1906, Part VI, p. 28.
This Act has been declared to be in force in—
(1) Upper Tanawal, an excluded area in N.W.F.P., by N.W.F.P. Regulation I of 1941;
It has been extended to the Leased Areas of Baluchistan, *see* the Leased Areas(Laws) Order, 1950 (G.G.O. 3 of 1950) ; and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499.
It has also been extended to the Baluchistan States Union, *see* the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953), as amended by the Baluchistan States Union (Federal Laws) (Extension) (Second Amdt.) Order, 1953 (G.G.O. 19 of 1953).
It has also been extended to the Khairpur State, *see* G.G.O. 5 of 1953, as amended by G.G.O. 24 of 1953.
It has also been extended to the State of Bahawalpur by the Bahawalpur (Extension of Federal Laws) Order, 1953 (G.G.O. 11 of 1953), as amended by the Bahawalpur (Extension of Federal Laws) (Amdt.) Order, 1953 (G.G.O. 21 of 1953).
It has also been extended to the Baluchistan by Baluchistan Laws Reg. II of 1913, s. 3.
The Act has been and shall be deemed to have been brought into force in Gawadur with effect from the 8th September, 1958 by the Gawadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.

[2] Subs. by the Pakistan (Monetary System and Reserve Bank) Order, 1947 (G.G.O. 21 *of* 1947), Art. 10, for the original section 1.

[3] Subs. by the Pakistan Coinage (Amdt.) Act, 1975 (23 of 1975), s. 2, for "Central Government", which bad been subs. by A. O., 1937, for "G. G. in C "

[4] Subs. by A. O., 1937, for "Gazette" of India".

[5] The Heading "Silver Coinage" omitted by the Indian Coinage (Amdt) Act, 1947 (28 of 1947), S.2.

4 and 5. [*Silver Coins. Standard weight and fineness.*] *Rep. by the Indian Coinage (Amendment) Act*, 1947 (28 *of* 1947), *s.* 2.

[1][**COINAGE**

[1]6. Denominations, dimensions, designs and composition of coins. Coins may be coined at the Mint [2][, or at a mint outside Pakistan,] for issue under the authority of the [3][Federal Government], of such denominations [6][nor less then one rupee] [4][* * *] of such dimensions and designs, and of such metals or of mixed metals of such composition as the [3][Federal Government] may, by [5][notification in the official Gazette, determine.]

[7]**[7. Standard weight and remedy.** The standard weight of the coins of any denomination coined under the provisions of section 6, and the remedy allowed in the making of such coins shall be such as may be prescribed in this behalf by the [9][Federal Government.]]

[7][8 and 9.[* * * * * * *]
[9][* * *]

10 to 12. [*Power to direct coining and to prescribe dimensions and designs. Demonetization of sovereign and half sovereign. Silver coin when a legal tender*.] *Rep. by the Indian Coinage (Amendment) Act*, 1947 *(XXVIII of* 1947).

[10][13. Coins when a legal tender. —(1) The coins issued under the authority of section 6 shall be legal tender in payment or on account for any sum:

Provided that the coin has not been defaced and has not lost weight so as to be less than such weight as may be prescribed in its case.

(2) All the gold or silver coins issued under the Act on or after the 1st day of January, 1976, shall continue as before to be legal tender in payment or on account for any sum:

Provided that the coin has not been defaced and has not lost more than one-fortieth of weight as specified below:—

(a) in case of gold,—

(i) 33.437 grams in the case of three thousand rupee coin issued in 1976 to commemorate the conservation of Astor Markhor;

(ii) 9 grams in the case of one thousand rupee coin issued in 1977 to commemorate the Islamic Summit Conference;

(iii) 4.5 grams in the case of five hundred rupee coin issued in 1976 to celebrate the 100th birth anniversary of Quaid e Azam Muhammad Ali Jinnah; and

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[1] S. 6 and the heading above it, subs. Indian Coinage (Amdt) Act, 1947 (28 of 1947, s. 3, for the original heading and s. 6, as subsequently amended.
[2] Ins. by Act 23 of 1975, s. 3.
[3] Subs. *ibid.*, s. 2, for "Central Government" .
[4] The words "not higher than one rupee" omitted *ibid.*, s. 3.
[5] For instances of such notifications, *see* Gaz. of P., 1960, Ext., pp 1253 1355, *ibid.* 1963, Ext., pp 89-90 and *ibid.*, 1964, Ext., pp. 141-144.
[6] Ins by Act X of 2013, s.2.
[7] Subs. by the Indian Coinage (Amdt.) Ordinance, 1942 (4 of 1942). s. 2, for sections 7,8 and 9. For instances of notification under section 7, *see* Gaz. of P., 1952, Pt, I., pp. 212-213, *ibid.*, 1960, Ext., p. 1353, *ibid.*, 1963, Ext., p. 91, and *ibid.*, 1964, Ext., p. 142.
[8]Subs.by the Pakistan Coinage (Amdt.) Act, 1975 (23 of 1975), s. 2, for "Central Government".
[9] The heading "*Dimensions and Designs of Coins*". was omitted by the Indian Coinage (Amdt,) Act, 1947 (28 of 1947), s. 4.
[10]Subs. by Act No. X of 2013, s. 3.

(iv) 3.64 grams in the case of five hundred rupee coin issued in 1977 to celebrate the 100th birth anniversary of Allama Iqbal; and

(b) in case of silver,—

(i) 28.28 grams in case of one hundred rupee coin issued in 1976 to commemorate conservation of Western Trogopan;

(ii) 20.44 grams in the case of one hundred rupee coin issued in 1976 to celebrate the 100th birth anniversary of Quaid e Azam Muhammad Ali Jinnah;

(iii) 20.44 grams in the case of one hundred rupee coin issued in 1977 to commemorate the Islamic Summit Conference;

(iv) 20.40 grams in the case of one hundred rupee coin issued in 1977 to celebrate the 100th birth anniversary of Allama Iqbal; and

(v) 35 grams in the case of one hundred fifty rupee coin issued in 1976 to commemorate the conservation of Gharial Crocodile.]

[1]14.[* * * * * * *]

15. [*Coin made under former Acts.*] *Rep. by the Indian Coinage (Amendment) Act*, 1947 (*XXVIII of* 1947).

[2]**[15A. Power to call in coin.** Notwithstanding anything contained in [3][section 13,] the [4][Federal Government] may, by [5]notification in the [6][official Gazette], call in, with effect from such date as may be specified in the notification, any coin, of whatever date or denomination, referred to in [7][that section] [8][* * *] and on and from the date so specified such coin shall cease to be a legal tender [9][save to such extent as may be specified in the notification].

[10][* * * * * * *]

[11]**[15AA. Decimal coinage**.— State Bank of Pakistan shall exchange coins of paisa 1, 2, 5,10,25 and 50, already issued by the Federal Government, till such date as notified by the State Bank of Pakistan; thereafter, these coins shall cease to be legal tender.]

[11][**15B** * * * * * * *]

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[1] By the Indian Coinage (Amdt.) Ordinance, 1942 (4 of 1942), section 14 and the original section 13 were together substituted by a single section 13 which has again been subs. by the Indian Coinage (Amdt.) Act, 1947 (28 of 1947), s. 5.
[2] S. 15A ins. by the Indian Coinage (Amdt.) Act, 1924 (10 of 1924), s. 3.
[3] Subs. by Act 28 of 1947, s. 7, for "section 12, section 13, or section 15".
[4] Subs. by the Pakistan Coinage (Amdt.) Act, 1975 (23 of 1975), s. 2, for "Central Government", which had been subs. by A. O., 1937, for "G.G. in C." .
[5] For instance of notifications, *see* Gaz. of P., 1963, Pt. I., p. 234, *ibid.*, 1964, Pt. I., p. 340.
[6] Subs. by A. O., 1937, for "Gazette of India".
[7] Subs. by Act 28 of 1947, s. 7,for "any of those sections" .
[8] The words "other than the rupee and half-rupee referred to in sub-section (1) of section 12" , omitted by the Indian Coinage (Second Amdt.) Ordinance, 1940 (12 of 1940), s. 2.
[9] Subs. *ibid.*, for the words "save at a Government currency office".
[10]Proviso Omitted, ibid.
[11] Ins & Omitted by Act X *of 2013, ss 4 & 5.*

DIMINISHED, DEFACED AND COUNTERFEIT [1][*] COINS

16. Power to certain persons to cut diminished or defaced silver coins. Where any silver coin which has been coined and issued under the authority of the [2][Federal Government] is tendered to any person authorised by the [2][Federal Government] [3][* * *] to act under this section, and such person has reason to believe that the coin—

(a) has been diminished in weight so as to be more than such percentage below standard weight as may be prescribed as the limit of reasonable wear, or

(b) has been defaced,

he shall, by himself or another, cut or break the coin.

17. Procedure in regard to coin cut under section 16 (a). A person cutting or breaking coin under the provisions of clause (a) of section 16 shall observe the following procedure, namely:—

(a) if the coin has been diminished in weight so as to be more than such percentage below standard weight as may be prescribed as the limit of reasonable wear, but not more than such further percentage as may be prescribed in this behalf, he shall either return the pieces to the person tendering the coin, or, if such person so requests, shall receive and pay for the coin at such rates as may be prescribed in this behalf; and

(b) if the coin has been diminished in weight so as to be more than such further percentage below standard weight so prescribed as aforesaid, he shall return the pieces to the person tendering the coin, who shall bear the loss caused by such cutting or breaking.

18. Procedure in regard to coin cut under section 16 (b). A person cutting or breaking coin under the provisions of clause (b) of section 16 shall observe the following procedure, namely:—

(a) if such person has reason to believe that the coin has been fraudulently defaced, he shall return the pieces to the person tendering the coin, who shall bear the loss caused by such cutting or breaking;

(b) if such person has not reason to believe that the coin has been fraudulently defaced, he shall receive and pay for the coin at its nominal value.

Explanation.—For the purposes of this section a coin which there is reason to believe has been defaced by sweating shall be deemed to have been fraudulently defaced.

19. Procedure in regard to coin which is liable to be cut under both clause (a) and clause (b) of section 16. If a coin is liable to be cut or broken under the provisions of both clause (a) and clause (b) of section 16, the person cutting or breaking the coin shall deal with it,—

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[1]The word "SILVER" omitted by the Indian Coinage (Amdt.) Act, 1919 (21 of 1919), s. 6.

[2] Subs. by the Pakistan Coinage (Amdt.) Act, 1975 (23 of 1975), s.2, for "Central Government", which had been subs. by A. O., 1937, for "G.G. in C." .

[3] The words "or by the L. G." omitted by A. O., 1937.

(a) if he has reason to believe that the coin has been fraudulently defaced, under clause (a) of section 18, and

(b) in other cases, under section 17.

20. Power to certain persons to cut counterfeit or fraudulently defaced coin and procedure in regard to coin so cut. Where any [1][* * *] coin purporting to be coined or issued under the authority of the [2][Federal Government] is tendered to any person authorised by the [2][Federal Government] [3][* * *] to act under this section, and such person has reason to believe that the coin is counterfeit [4][or has been fraudulently defaced], he shall by himself or another cut or break the coin, and may at his discretion either return the pieces to the tenderer, who shall bear the loss caused by such cutting or breaking, or [5][in the case of silver coin] receive and pay for the coin according to the value of the silver bullion contained in it.

SUPPLEMENTAL PROVISIONS

21. Power to make rules.—(1) The [2][Federal Government] may make [6]rules to carry out the purposes and objects of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may—

[7][* * * * * * *]

(*b*) provide for the guidance of persons authorised to cut or break coin under sections 16 and 20.

(*c*) determine the percentage of diminution in weight below standard weight not being less [8][than two per cent in the case of silver coins or five per cent. in the case of pure nickel coins,] which shall be the limit of reasonable wear.

(*d*) prescribe the further percentage referred to in clause (a) of section 17, and the rates at which payments shall be made in the case of coins falling under the same clause; [9][*]

[9][* * * * * * *]

(3) Every such rule shall be published in the [10][official Gazette], and on such publication shall have effect as if enacted in this Act.

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[1] The words "silver or other" omitted by the Indian Coinage (Amdt.) Act, 1947 (28 of 1947), s. 8.
[2] Subs. by the Pakistan Coinage (Amdt.) Act, 1975 (23 of 1975), s. 2. for "Central Government" which had been subs. by A. O.,1937, for "G. G. in C".
[3] The words "or by the L. G." omitted, by A. O., 1937.
[4] Ins. by Act 28 of 1947, s. 8.
[5] Ins. by the Indian Coinage.(Amdt.) Act, 1919 (21 of 1919), s. 6 (2).
[6] For instances of rules, s*ee* Gaz. of P., 1960, Ext., p. 1355 *ibid.,* 1963, Ext., p. 91 and *ibid.,* 1964. Ext., p. 142.
[7] Clause (*a*) omitted by the Indian Coinage (Amdt.) Act, 1947 (28 of 1947), s. 9.
[8] Subs. *ibid.,* for "in any case than two percent.".
[9] The word "and" and clause (*e*) rep. by the Currency Act, 1927 (4 of 1927), s. 2..
[10] Subs. by A. O.,1937, for "Gazette of India".

22. Bar of suits. No suit or other proceeding shall lie against any person in respect of anything in good faith done, or intended to be done, under or in pursuance of the provisions of this Act.

23. Saving of making of other coins at Mints. Nothing in this Act shall be deemed to prohibit or restrict the making at the Mint of coins intended for issue as money by the Government of any territories beyond the limits of [1][Pakistan].

24. [*Saving of copper coins.*] *Rep. by the Indian Coinage (Amendment) Act,* 1947 *(XXVIII of* 1947), s. *10.*

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THE SCHEDULE.—[*Enactments repealed.*] *Rep. by the Repealing and Amending Act,* 1914 *(X of* 1914), *Schedule II.*

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[1] The original words "British India" have successively been amended by A. O., 1949, Arts. 3(2) and 4, A. O., 1964. Art. 2 and Sch. and the Repealing and Amending Ordinance, 1965 (10 of 1965), s. 3 and 2nd Sch., to read above.

THE PAKISTAN CURRENCY ACT, 1950

CONTENTS

1. Short title, extent and commencement
2. Interpretation
3. Power to issue one-rupee notes
4. Punishment for counterfeiting, etc., one rupee notes
5. [Omitted]

THE PAKISTAN CODE

THE PAKISTAN CURRENCY ACT, 1950

[1]ACT No. XXIX OF 1950

[11th April, 1950]

An Act to provide for the issue and putting into circulation of Government of Pakistan one-rupee notes

WHEREAS it is expedient that Government of Pakistan one-rupee notes should be issued and put into circulation ;

It is hereby enacted as follows :—

1. Short title, extent and commencement. (1) This Act may be called the Pakistan Currency Act, 1950.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once and shall be deemed to have taken effect from the date from which the Pakistan Currency Ordinance, 1948 (XIII of 1948)[2], came into force.

2. Interpretation. In this Act, unless there is anything repugnant in the subject or context,—

"Pakistan one-rupee note" means a one-rupee note issued by the Government of Pakistan [3][* * *].

[3]**[3. Power to issue one-rupee notes.** Notwithstanding anything contained in any law for the time being in force, the Federal Government may issue Pakistan one-rupee notes and any such note shall be current in Pakistan in the same manner and to the same extent and as fully as the rupee coin called the Government rupee issued under the provisions of the Pakistan Coinage Act (XIII of 1906), and shall be legal tender in Pakistan for the payment of any amount until such time as they are called in by the Federal Government].

4. Punishment for counterfeiting, etc., one rupee notes. The provisions of sections 489A, 489B, 489C and 489D of the Pakistan Penal Code (XLV of 1860) shall apply in respect of notes issued under this Act as they apply in respect of currency notes and bank notes.

5. [3][Omitted]

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RGN Date: 18-09-2024

[1]The Act has been—

(i) applied to Baluchistan, *see* Gaz. of P.,1952, Pt. 1, p. 154;
(ii) applied in the Federated Areas of Baluchistan, *see* Gaz. of P., 1953, Pt. 1, p. 152;
(iii) extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950);
(iv) extended to the Baluchistan States Union, *see* the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953);
(v) extended to the State of Bahawalpur, *see* the Bahawalpur (Federal Laws) (Extension) Order, 1952 (G. G. O. 11 of 1952) ; and
(vi) extended to the Khairpur State, *see* the Khairpur (Federal Laws) (Extension) Order, 1953 (G. G. O. 5 of 1953).
This Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (Ordinance No. XXXVII of 1960), s. 2.
The Act, Rules, Notifns. and orders made under it, have been applied to the Tribal Areas or to the parts of those areas to which they have not been already applied, *see* the Tribal Areas (Application of Acts) Reg., 1965, Gaz. of P,,1965, Ext., pp. 1016-1018.
[2]Rep. by this Act.
[3]Omitted and subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and 2nd Sch.

THE PAKISTAN ENVIRONMENTAL PROTECTION ACT, 1997

CONTENTS

1 Short title, extent and commencement.

2 Definitions.

3 Establishment of the Pakistan Environmental Protection Council.

4 Functions and powers of the Council.

5 Establishment of the Pakistan Environmental Protection Agency.

6 Functions of the Federal Agency.

7 Powers of the Federal Agency.

8 Establishment, powers and functions of the Provincial Environmental Protection Agencies.

9 Establishment of the Provincial Sustainable Development Funds.

10 Management of the Provincial Sustainable Development Fund.

11 Prohibition of certain discharges or emissions.

12 Initial environmental examination and environmental impact assessment.

13 Prohibition of import of hazardous waste.

14 Handling of hazardous substances.

15 Regulation of motor vehicles.

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THE PAKISTAN ENVIRONMENTAL PROTECTION ACT, 1997

ACT NO. XXXIV OF 1997

An Act to provide for the protection, conservation, rehabilitation and improvement of the environment, for the prevention and control of pollution, and promotion of sustainable development

WHEREAS, it is expedient to provide for the protection, conservation, rehabilitation and improvement of the environment, prevention and control of pollution, promotion of sustainable development, and for matters connected therewith and incidental thereto;

It is hereby enacted as follows:

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Environmental Protection Act, 1997.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(i) "adverse environmental effect" means impairment of, or damage to, the environment and includes—

(a) impairment of, or damage to, human health and safety or to biodiversity or property;

(b) pollution; and

(c) any adverse environmental effect as may be specified in the regulations;

(ii) "agricultural waste" means waste from farm and agricultural activities including poultry, cattle farming, animal husbandry, residues from the use of fertilizers, pesticides and other farm chemicals;

(iii) "air pollutant" means any substance that causes pollution of air and includes soot, smoke, dust particles, odor, light, electro-magnetic, radiation, heat, fumes, combustion exhaust, exhaust gases, noxious gases, hazardous substances and radioactive substances;

(iv) "biodiversity" or "biological diversity" means the variability among living organisms from all sources, including *inter alia* terrestrial, marine and other aquatic ecosystems and the ecological complexes of which they are part; this includes diversity within species, between species and of ecosystems;

(v) "Council" means the Pakistan Environmental Protection Council established under section 3;

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(vi) "discharge" means spilling, leaking, pumping, depositing, seeping, releasing, flowing out, pouring, emitting, emptying or dumping;

(vii) "ecosystem" means a dynamic complex of plant, animal and micro-organism communities and their non-living environment interacting as a functional unit;

(viii) "effluent" means any material in solid, liquid or gaseous form or combination thereof being discharged from industrial activity or any other source and includes a slurry, suspension or vapour;

(ix) "emission standards" means the permissible standards established by the Federal Agency or a Provincial Agency for emission of air pollutants and noise and for discharge of effluents and waste;

(x) "environment" means—

(a) air, water and land;

(b) all layers of the atmosphere;

(c) all organic and inorganic matter and living organisms;

(d) the ecosystem and ecological relationships;

(e) buildings, structures, roads, facilities and works;

(f) all social and economic conditions affecting community life; and

(g) the inter-relationships between any of the factors in sub-clauses (a) to (f);

(xi) "environmental impact assessment" means an environmental study comprising collection of data, prediction of qualitative and quantitative impacts, comparison of alternatives, evaluation of preventive, mitigatory and compensatory measures, formulation of environmental management and training plans and monitoring arrangements, and framing of recommendations and such other components as may be prescribed;

(xii) "Environmental Magistrate" means the Magistrate of the First Class appointed under section 24;

(xiii) "Environmental Tribunal" means the Environmental Tribunal constituted under section 20;

(xiv) "Exclusive Economic Zone" shall have the same meaning as defined in the Territorial Waters and Maritime Zones Act, 1976 (LXXXII of 1976);

(xv) "factory" means any premises in which industrial activity is being undertaken;

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(xvi) "Federal Agency" means the Pakistan Environmental Protection Agency established under section 5, or any Government Agency, local council or local authority exercising the powers and functions of the Federal Agency;

(xvii) "Government Agency" includes—

(a) a division, department, attached department, bureau, section, commission, board, office or unit of the Federal Government or a Provincial Government;

(b) a developmental or a local authority, company or corporation established or controlled by the Federal Government or Provincial Government;

(c) a Provincial Environmental Protection Agency; and

(d) any other body defined and listed in the Rules of Business of the Federal Government or a Provincial Government;

(xviii) "hazardous substance" means—

(a) a substance or mixture of substances, other than a pesticide as defined in the Agricultural Pesticides Ordinance, 1971 (II of 1971), which, by reason of its chemical activity or toxic, explosive, flammable, corrosive, radioactive or other characteristics causes, or is likely to cause, directly or in combination with other matters, an adverse environmental effect; and

(b) any substance which may be prescribed as a hazardous substance;

(xix) "hazardous waste" means waste which is or which contains a hazardous substance or which may be prescribed as hazardous waste, and includes hospital waste and nuclear waste;

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(xx) "historic waters" means such limits of the waters adjacent to the land territory of Pakistan as may be specified by notification under section 7 of the Territorial Waters and Maritime Zones Act, 1976 (LXXXII of 1976);

(xxi) "hospital waste" includes waste medical supplies and materials of all kinds, and waste blood, tissue, organs and other parts of the human and animal bodies, from hospitals, clinics and laboratories;

(xxii) "industrial activity" means any operation or process for manufacturing, making, formulating, synthesising, altering, repairing, ornamenting, finishing, packing or otherwise treating any article or substance with a view to its use, sale, transport, delivery or disposal, or for mining, for oil and gas exploration and development, or for pumping water or sewage, or for generating,

transforming or transmitting power or for any other industrial or commercial purposes;

(xxiii) "industrial waste" means waste resulting from an industrial activity;

(xxiv) "initial environmental examination" means a preliminary environmental review of the reasonably foreseeable qualitative and quantitative impacts on the environment of a proposed project to determine whether it is likely to cause an adverse environmental effect for requiring preparation of an environmental impact assessment;

(xxv) "local authority" means any agency set-up or designated by the Federal Government or a Provincial Government by notification in the official Gazette to be a local authority for the purposes of this Act;

(xxvi) "local council" means a local council constituted or established under a law relating to local government;

(xxvii) "motor vehicle" means any mechanically propelled vehicle adapted for use upon land whether its power of propulsion is transmitted thereto from an external or internal source, and includes a chassis to which a body has not been attached, and a trailer, but does not include a vehicle running upon fixed rails;

(xxviii) "municipal waste" includes sewage, refuse, garbage, waste from abattoirs, sludge and human excreta and the like;

(xxix) "National Environmental Quality Standards" means standards established by the Federal Agency under clause (e) of sub-section (1) of section 6 and approved by the Council under clause(c) of sub-section (1) of section 4;

(xxx) "noise" means the intensity, duration and character of sounds from all sources, and includes vibration;

(xxxi) "nuclear waste" means waste from any nuclear reactor or nuclear plant or other nuclear energy system, whether or not such waste is radioactive;

(xxxii) "person" means any natural person or legal entity and includes an individual, firm, association, partnership, society, group, company, corporation, co-operative society, Government Agency, non-governmental organization, community-based organization, village organization, local council or local authority and, in the case of a vessel, the master or other person having for the time being the charge or control of the vessel;

(xxxiii) "pollution" means the contamination of air, land or water by the discharge or emission of effluents or wastes or air pollutants or noise or other matter which either directly or indirectly or in combination with other discharges or substances alters unfavourably the chemical, physical, biological, radiational,

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thermal or radiological or aesthetic properties of the air, land or water or which may, or is likely to make the air, land or water unclean, noxious or impure or injurious, disagreeable or detrimental to the health, safety, welfare or property of persons or harmful to biodiversity;

(xxxiv) "prescribed" means prescribed by rules made under this Act;

(xxxv) "project" means any activity, plan, scheme, proposal or undertaking involving any change in the environment and includes—

(a) construction or use of buildings or other works;

(b) construction or use of roads or other transport systems;

(c) construction or operation of factories or other installations;

(d) mineral prospecting, mining, quarrying, stone-crushing, drilling and the like;

(e) any change of land use or water use, and

(f) alteration, expansion, repair, decommissioning or abandonment of existing buildings or other works, roads or other transport systems, factories or other installations;

(xxxvi) "proponent" means the person who proposes or intends to undertake a project;

(xxxvii) "Provincial Agency" means a Provincial Environmental Protection Agency established under section 8;

(xxxviii) "regulations" means regulations made under this Act;

(xxxix) "rules" means rules made under this Act;

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(xl) "sewage" means liquid or semi-solid wastes and sludge from sanitary conveniences, kitchens, laundries, washing and similar activities and from any sewerage system or sewage disposal works;

(xli) "standards" means qualitative and quantitative standards for discharge of effluents and wastes and for emission of air pollutants and noise either for general applicability or for a particular area, or from a particular production process, or for a particular product, and includes the National Environmental Quality Standards, emission standards and other standards established under this Act and the rules and regulations made thereunder;

(xlii) "sustainable development" means development that meets the needs of the present generation without compromising the ability of future generations to meet their needs;

(xliii) "territorial waters" shall have the same meaning as defined in the Territorial Waters and Maritime Zones Act, 1976 (LXXXII of 1976);

(xliv) "vessel" includes anything made for the conveyance by water of human beings or of goods; and

(xlv) "waste" means any substance or object which has been, is being or is intended to be, discarded or disposed of, and includes liquid waste, solid waste, waste gases, suspended waste, industrial waste, agricultural waste, nuclear waste, municipal waste, hospital waste, used polyethylene bags and residues from the incineration of all types of waste.

3.Establishment of the Pakistan Environmental Protection Council.-—(1) The Federal Government shall, by Notification in the Official Gazette establish a council to be known as the Pakistan Environmental Protection Council consisting of—

(i) Prime Minister or such other person as the Prime Minister may nominate in this behalf.	*Chairperson.*
(ii) Minister In charge of the Ministry or Division dealing with the subject of environment.	*Vice-Chairperson*
(iii) Chief Ministers of the Provinces.	*Members*
(iv) Ministers In charge of the subject of environment in the Provinces.	*Members*
(v) Such other persons not exceeding thirty-five as the Federal Government may appoint, of which at least twenty shall be non-official including five representatives of the Chambers of Commerce and Industry and industrial associations and one or more representatives of the Chambers of Agriculture, the medical and legal professions, trade unions, and non-governmental organizations concerned with the environment and development, and scientists, technical experts and educationists.	*Members*
(vi) Secretary to the Government of Pakistan, in- charge of the Ministry or Division dealing with the subject of environment.	*Member/ Secretary.*

(2) The Members of the Council, other than *ex-officio* members, shall be appointed in accordance with the prescribed procedure and shall hold office for a term of three years.

(3) The Council shall frame its own rules of procedure.

(4) The Council shall hold meetings as and when necessary, but not less than two meetings shall be held in a year.

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(5) The Council may constitute committees of its members and entrust them with such functions as it may deem fit, and the recommendations of the committees shall be submitted to the Council for approval.

(6) The Council or any of its committees may invite any technical expert or representative of any Government Agency or non-governmental organization or other person possessing specialized knowledge of any subject for assistance in performance of its functions.

4. Functions and powers of the Council.—(1) The Council shall, —

(a) co-ordinate and supervise enforcement of the provisions of this Act;

(b) approve comprehensive national environmental policies and ensure their implementation within the framework of a national conservation strategy as may be approved by the Federal Government from time to time;

(c) approve the National Environmental Quality Standards;

(d) provide guidelines for the protection and conservation of species, habitats, and biodiversity in gener and non-renewable resources;

(e) coordinate integration of the principles and concerns of sustainable development into national development plans and policies; and

(f) consider the National Environmental Report and give appropriate directions thereon.

(2) The Council may, either itself or on the request of any person or organization, direct the Federal Agency or any Government Agency to prepare, submit, promote or implement projects for the protection, conservation, rehabilitation and improvement of the environment, the prevention and control of pollution, and the sustainable development of resources, or to undertake research in any specified aspect of environment.

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5. Establishment of the Pakistan Environmental Protection Agency.—(1) The Federal Government shall, by notification in the official Gazette, establish the Pakistan Environmental Protection Agency, to exercise the powers and perform the functions assigned to it under the provisions of this Act and the rules and regulations made thereunder.

(2) The Federal Agency shall be headed by a Director-General, who shall be appointed by the Federal Government on such terms and conditions as it may determine.

(3) The Federal Agency shall have such administrative, technical and legal staff as the Federal Government may specify, to be appointed in accordance with such procedure as may be prescribed.

(4) The powers and functions of the Federal Agency shall be exercised and performed by the Director-General.

(5) The Director-General may, by general or special order, delegate any of these powers and functions to staff appointed under sub-section (3).

(6) For assisting the Federal Agency in the discharge of its functions, the Federal Government shall establish Advisory Committees for various sectors, and appoint as members thereof eminent representatives of the relevant sector, educational institutions, research institutes and non-governmental organizations.

6. Functions of the Federal Agency.—(1) The Federal Agency shall,—

(a) administer and implement the provisions of this Act and the rules and regulations made thereunder;

(b) prepare, in coordination with the appropriate Government Agency and in consultation with the concerned sectoral Advisory Committees, national environmental policies for approval by the Council;

(c) take all necessary measures for the implementation of the national environmental policies approved by the Council;

(d) prepare and publish an Annual National Environment Report on the state of the environment;

(e) prepare or revise and establish the National Environmental Quality Standards with approval of the Council:

Provided that before seeking approval of the Council, the Federal Agency shall publish the proposed National Environmental Quality Standards for public opinion in accordance with the prescribed procedure; and

(f) ensure enforcement of the National Environmental Quality Standards;

(g) establish standards for the quality of the ambient air, water and land, by Notification in the official Gazette, in consultation with the Provincial Agency concerned;

Provided that—

(i) different standards for discharge or emission from different source and for different areas and conditions may be specified;

(ii) where standards are less stringent than the National Environmental Quality Standards prior approval of the Council shall be obtained;

(iii) certain areas, with the approval of the Council, may exclude from carrying out specific activities, projects from the application of such standards;

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(h) co-ordinate environmental policies and programmes nationally and internationally;

(i) establish systems and procedures for surveys, surveillance, monitoring, measurement, examination, investigation, research, inspection and audit to prevent and control pollution, and to estimate the costs of cleaning up pollution and rehabilitating the environment in various sectors;

(j) take measures to promote research and the development of science and technology which may contribute to the prevention of pollution, protection of the environment, and sustainable development;

(k) certify one or more laboratories as approved laboratories for conducting tests and analysis and one or more research institutes as environmental research institutes for conducting research and investigation, for the purposes of this Act;

(l) identify the needs for, an initiate legislation in various sectors of the environment;

(m) render advice and assistance in environmental matters, including such information and data available with it as may be required for carrying out the purposes of this Act:

Provided that the disclosure of such information shall be subject to the restrictions contained in the proviso to sub-section (3) of section 12 ;

(n) assist the local councils, local authorities, Government Agencies and other persons to implement schemes for the proper disposal of wastes so as to ensure compliance with the standards established by it;

(o) provide information and guidance to the public on environmental matters ;

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(p) recommend environmental courses, topics, literature and books for incorporation in the curricula and syllabi of educational institutions ;

(q) promote public education and awareness of environmental issues through mass media and other means, including seminars and workshops ;

(r) specify safeguards for the prevention of accidents and disasters which may cause pollution, collaborate with the concerned person in the preparation of contingency plans for control of such accidents and disasters, and co-ordinate implementation of such plans ;

(s) encourage the formation and working of non-governmental organizations, community organizations and village organizations to prevent and control pollution and promote sustainable development;

(t) take or cause to be taken all necessary measures for the protection, conservation, rehabilitation and improvement of the environment, prevention and control of pollution and promotion of sustainable development; and

(u) perform any function which the Council may assign to it.

(2) The Federal Agency may,—

(a) undertake inquiries or investigation into environmental issues, either of its own accord or upon complaint from any person or organisation;

(b) request any person to furnish any information or data relevant to its functions;

(c) initiate with the approval of the Federal Government, requests for foreign assistance in support of the purposes of this Act and enter into arrangements with foreign agencies or organizations for the exchange of material or information and participate in international seminars or meetings;

(d) recommend to the Federal Government the adoption of financial and fiscal programmes, schemes or measures for achieving environmental objectives and goals and the purposes of this Act, including—

(i) incentives, prizes awards, subsidies, tax exemptions, rebates and depreciation allowances; and

(ii) taxes, duties, cesses and other levies;

(e) establish and maintain laboratories to help in the performance of its functions under this Act and to conduct research in various aspects of the environment and provide or arrange necessary assistance for establishment of similar laboratories in the private sector; and

(f) provide or arrange, in accordance with such procedure as may be prescribed, financial assistance for projects designed to facilitate the discharge of its functions.

7. Powers of the Federal Agency.—Subject to the provisions of this Act, the Federal Agency may—

(a) lease, purchase, acquire, own, hold, improve, use or otherwise deal in and with any property both movable and immovable;

(b) sell, convey, mortgage, pledge, exchange or otherwise dispose of its property and assets;

(c) fix and realize fees, rates and charges for rendering any service or providing any facility information or data under this Act or the rules and regulations made thereunder;

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(d) enter into contracts, execute instruments, incur liabilities and do all acts or things necessary for proper management and conduct of its business;

(e) appoint with the approval of the Federal Government and in accordance with such procedures as may be prescribed, such advisers, experts and consultants as it considers necessary for the efficient performance of its functions on such terms and conditions as it may deem fit;

(f) summon and enforce the attendance of any person and require him to supply any information or document needed for the conduct of any enquiry or investigation into any environmental issue;

(g) enter and inspect and under the authority of a search warrant issued by the Environmental Tribunal or Environmental Magistrate, search at any reasonable time, any land, building, premises, vehicle or vessel or other place where or in which, there are reasonable grounds to believe that an offence under this Act has been or is being committed ;

(h) take samples of any materials, products, articles or substances or of the effluents, wastes or air pollutants being discharged or emitted or of air, water or land in the vicinity of the discharge of emission;

(i) arrange for test and analysis of the samples at a certified laboratory;

(j) confiscate any article used in the commission of the offence where the offender is not known or cannot be found within a reasonable time:

Provided that the power under clauses (f), (h), (i) and (j) shall be exercised in accordance with the provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), or the rules made under this Act and under the direction of the Environmental Tribunal or Environmental Magistrate; and

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(k) establish a National Environmental Coordination Committee comprising the Director-General as its chairman and the Director-Generals of the Provincial Environmental Protection Agencies and such other persons as the Federal Government may appoint as its members to exercise such powers and perform such functions as may be delegated or assigned to it by the Federal Government for carrying out the purposes of this Act and for ensuring inter provincial co-ordination in environmental policies.

8. Establishment, powers and functions of the Provincial Environmental Protection Agencies.—(1) Every Provincial Government shall, by notification in the official Gazette, establish an Environmental Protection Agency, to exercise such powers and perform such functions as may be delegated to it by the Provincial Government under sub-section (2) of section 26.

(2) The Provincial Agency shall be headed by a Director-General who shall be appointed by the Provincial Government on such terms and conditions as it may determine.

(3) The Provincial Agency shall have such administrative, technical and legal staff as the Provincial Government may specify, to be appointed in accordance with such procedure as may be prescribed.

(4) The powers and functions of the Provincial Agency shall be exercised and performed by the Director-General.

(5) The Director-General may, by general or special order, delegate any of these powers and functions to staff appointed under sub-section (3).

(6) For assistance of the Provincial Agency in the discharge of its functions, the Provincial Government shall establish sectoral Advisory Committees for various sectors and appoint members from amongst eminent representatives of the relevant sector, educational institutions, research institutes and non-governmental organizations.

9. Establishment of the Provincial Sustainable Development Funds.—(1) There shall be established in each Province a Sustainable Development Fund.

(2) The Provincial Sustainable Development Fund shall be derived from the following sources, namely:—

(a) grants made or loans advanced by the Federal Government or the Provincial Governments;

(b) aid and assistance, grants, advances, donations and other non-obligatory funds received from foreign governments, national or international agencies, and non-governmental organizations; and

(c) Contributions from private organizations, and other persons.

(3) The Provincial Sustainable Development Fund shall be utilized in accordance with such procedure as may be prescribed for—

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(a) providing financial assistance to the projects designed for the protection, conservation, rehabilitation and improvement of the environment, the prevention and control of pollution, the sustainable development of resources and for research in any specified aspect of environment; and

(b) any other purpose which in the opinion of the Board will help achieve environmental objectives and the purposes of this Act.

10. Management of the Provincial Sustainable Development Fund.—(1) The Provincial Sustainable Development Fund shall be managed by a Board known as the Provincial Sustainable Development Fund Board consisting of—

(i) Chairman, Planning and Development Board/Additional Chief Secretary Planning and Development Department.	*Chairperson*
(ii) such officers of the Provincial Governments not exceeding six as the Provincial Government may appoint, including Secretaries in charge of the Finance, Industries and Environment Department.	*Members*
(iii) such non-official persons not exceeding ten as the Provincial Government may appoint including representatives of the Provincial Chamber of Commerce and Industry, non-governmental organizations, and major donors.	*Members*
(iv) Director-General of the Provincial Agency.	*Member/Secretary*

(2) In accordance with such procedure and such criteria as may be prescribed, the Board shall have the power to—

(a) sanction financial assistance for eligible projects ;

(b) invest moneys held in the Provincial Sustainable Development Fund in such profit-bearing Government bonds, savings schemes and securities as it may deem suitable ; and

(c) take such measures and exercise such powers as may be necessary for utilization of the Provincial Sustainable Development Fund for the purposes specified in sub-section (3) of section 9.

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(3) The Board shall constitute committees of its members to undertake regular monitoring of projects financed from the Provincial Sustainable Development Fund and to submit progress reports to the Board which shall publish an Annual Report incorporating its annual audited accounts, and performance evaluation based on the progress reports.

11. Prohibition of certain discharges or emissions.—(1) Subject to the provisions of this Act and the rules and regulations made thereunder no person shall discharge or emit or allow the discharge or emission of any effluent or waste or air pollutant or noise in an amount, concentration or level which is in excess of the National Environmental Quality Standards or, where applicable, the standards established under sub-clause (i) of clause (g) of sub-section (1) of section 6.

(2) The Federal Government levy a pollution charge on any person who contravenes or fails to comply with the provisions of sub-section (1), to be calculated at such rate, and collected in accordance with such procedure as may be prescribed.

(3) Any person who pays the pollution charge levied under subs-section (2) shall not be charged with an offence with respect to that contravention or failure.

(4) The provisions of sub-section (3) shall not apply to projects which commenced industrial activity on or after the thirtieth day of June, 1994.

12. Initial environmental examination and environmental impact assessment.—(1) No proponent of a project shall commence construction or operation unless he has filed with the Federal Agency an initial environmental examination or, where the project is likely to cause an adverse environmental effect, an environmental impact assessment, and has obtained from the Federal Agency approval in respect thereof.

(2) The Federal Agency shall—

(a) review the initial environmental examination and accord its approval, or require submission of an environmental impact assessment by the proponent; or

(b) review the environmental impact assessment and accord its approval subject to such conditions as it may deem fit to impose, or require that the environmental impact assessment be re-submitted after such modifications as may be stipulated, or reject the project as being contrary to environmental objectives.

(3) Every review of an environmental impact assessment shall be carried out with public participation and no information will be disclosed during the course of such public participation which relates to—

(i) trade, manufacturing or business activities, processes or techniques of a proprietary nature, or financial, commercial, scientific or technical matters which the proponent has requested should remain confidential, unless for reasons to be recorded in writing, the Director-General of the Federal Agency is of the opinion that the request for confidentiality is not well-founded or the public interest in the disclosure outweighs the possible prejudice to the competitive position of the project or its proponent; or

(ii) international relations, national security or maintenance of law and order, except with the consent of the Federal Government; or

(iii) matters covered by legal professional privilege.

(4) The Federal Agency shall communicate its approval or otherwise within a period of four months from the date the initial environmental examination or environmental impact assessment is filed complete in all respects in accordance with the prescribed procedure, failing which the initial environmental examination or, as the case may be, the environmental impact assessment shall be deemed to have been approved, to the extent to which it does not contravene the provisions of this Act and the rules and regulations made thereunder.

(5) Subject to sub-section (4) the Federal Government may in a particular case extend the aforementioned period of four months if the nature of the project so warrants.

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(6) The provisions of sub-sections (1), (2), (3), (4) and (5) shall apply to such categories of projects and in such manner as may be prescribed.

(7) The Federal Agency shall maintain separate Registers for initial environmental examination and environmental impact assessment projects, which shall contain brief particulars of each project and a summary of decisions taken thereon, and which shall be open to inspection by the public at all reasonable hours and the disclosure of information in such Registers shall be subject to the restrictions specified in sub-section (3).

13. Prohibition of import of hazardous waste.—No person shall import hazardous waste into Pakistan and its territorial waters, Exclusive Economic Zone and historic waters.

14. Handling of hazardous substances.—Subject to the provisions of this Act, no person shall generate, collect, consign, transport, treat, dispose of, store, handle or import any hazardous substance except—

(a) under a licence issued by the Federal Agency and in such manner as may be prescribed; or

(b) in accordance with the provisions of any other law for the time being in force, or of any international treaty, convention, protocol, code, standard, agreement or other instrument to which Pakistan is a party.

15. Regulation of motor vehicles.—(1) Subject to the provisions of this Act and the rules and regulations made thereunder, no person shall operate a motor vehicle from which air pollutants or noise are being emitted in an amount, concentration or level which is in excess of the National Environmental Quality Standards, or where applicable the standards established under clause (g) of sub-section (1) of section 6.

(2) For ensuring compliance with the standards mentioned in sub-section (1), the Federal Agency may direct that any motor vehicle or class of vehicles shall install such pollution control devices or other equipment or use such fuels or undergo such maintenance or testing as may be prescribed.

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(3) Where a direction has been issued by the Federal Agency under sub-section (2) in respect of any motor vehicles or class of motor vehicles, no person shall operate any such vehicle till such direction has been complied with.

16. Environmental protection order.—(1) Where the Federal Agency or a Provincial Agency is satisfied that the discharge or emission of any effluent, waste, air pollutant or noise, or the disposal of waste, or the handling of hazardous substances, or any other act or omission is likely to occur, or is occurring or has occurred in violation of the provisions of this Act, rules or regulations or of the conditions of a licence, and is likely to cause, or is causing or has caused an adverse environmental effect, the Federal Agency or, as the case may be, the Provincial Agency may, after giving the person responsible for such discharge emission, disposal, handling, act or omission an opportunity of being heard, by order direct such person to take such measures that the Federal

Agency or Provincial Agency may consider necessary within such period as may be specified in the order.

(2) In particular and without prejudice to the generality of the foregoing power, such measures may include—

(a) immediate stoppage, preventing, lessening or controlling the discharge, emission, disposal, handling, act or omission, or to minimize or remedy the adverse environmental effect;

(b) installation, replacement or alteration of any equipment or thing to eliminate or control or abate on a permanent or temporary basis, such discharge, emission, disposal, handling, act or omission;

(c) action to remove or otherwise dispose of the effluent, waste, air pollutant, noise, or hazardous substances; and

(d) action to restore the environment to the condition existing prior to such discharge, disposal, handling , act or omission, or as close to such condition as may be reasonable in the circumstances, to the satisfaction of the Federal Agency or, Provincial Agency.

(3) Where the person, to whom directions under sub-section (1) are given, does not comply therewith, the Federal Agency or Provincial Agency may, in addition to the proceeding initiated against him under this Act or the rules and regulations, itself take or cause to be taken such measures specified in the order as it may deem necessary, and may recover the costs of taking such measures from such person as arrears of land revenue.

17. Penalties.—(1) Whoever contravenes or fails to comply with the provisions of sections 11, 12, 13, or section 16 or any order issued thereunder shall be punishable with fine which may extend to one million rupees, and in the case of a continuing contravention or failure, with an additional fine which may extend to one hundred thousand rupees for everyday during which such contravention or failure continues and where such contravention or failure continues:

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Provided that if contravention of the provisions of section 11 also constitutes contravention of the provisions of section 15, such contravention shall be punishable under sub-section (2) only.

(2) Whoever contravenes or fails to comply with the provisions of section 14 or 15 or any rule or regulation or conditions of any licence, any order or direction issued by the Council or by the Federal Agency or Provincial Agency shall be punishable with fine which may extend to one hundred thousand rupees, and in case of continuing contravention, or failure with an additional fine which extend to one thousand rupees for every day during which such contravention continues.

(3) Where an accused has been convicted of an offence under sub-section (1) and (2), the Environmental Tribunal and Environmental Magistrate shall, in passing sentence, take into account the extent and duration of the contravention or failure constituting the offence, and the attendant circumstances.

(4) Where an accused has been convicted of an offence under sub-section (1) and the Environmental Tribunal is satisfied that as a result of the commission of the offence monetary benefits have accrued to the offender, the Environmental Tribunal may order the offender to pay, in addition to the fines under sub-section (1), further additional fine commensurate with the amount of the monetary benefits.

(5) Where a person convicted under sub-section (1) or sub-section (2); and had been previously convicted for any contravention under this Act, the Environmental Tribunal or, as the case may be, Environmental Magistrate may, in addition to the punishment awarded thereunder—

(a) endorse a copy of the order of conviction to the concerned trade or industrial association, if any, or the concerned Provincial Chamber of Commerce and Industry or the Federation of Pakistan Chambers of Commerce and Industry ;

(b) sentence him to imprisonment for a term which may extend up to two years;

(c) order the closure of the factory;

(d) order confiscation of the factory, machinery, and equipment, vehicle, material or substance, record or document or other object used or involved in contravention of the provisions of the Act:

Provided that for a period of three years from the date of commencement of this Act, the sentence of imprisonment shall be passed only in respect of persons who have been previously convicted for more than once for any contravention of sections 11, 13, 14 or 16 involving hazardous waste;

(e) order such person to restore the environment at his own cost, to the conditions existing prior to such contravention or as close to such conditions as may be reasonable in the circumstances to the satisfaction of the Federal Agency or, as the case may be, Provincial Agency; and

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(f) order that such sum be paid to any person as compensation for any loss, bodily injury, damage to his health or property suffered by such contravention.

(6) The Director-General of the Federal Agency or of a Provincial Agency or an officer generally or specially authorised by him in this behalf may, on the application of the accused compound an offence under this Act with the permission of the Environmental Tribunal or Environmental Magistrate in accordance with such procedure as may be prescribed.

(7) Where the Director-General of the Federal Agency or of a Provincial Agency is of the opinion that a person had contravened any provision of this Act, he may, subject to the rules, by notice in writing to that person require him to pay to the Federal Agency or, as the case may be, Provincial Agency an administrative penalty in the amount set out in the notice for each day the contravention continues; and a person who pays an administrative penalty for a contravention shall not be charged under this Act with an offence in respect of such contravention.

(8) The provisions of sub-sections (6) and (7) shall not apply to a person who has been previously convicted of offence or who has compounded an offence under this Act or who has paid an administrative penalty for a contravention of any provision of this Act.

18. Offences by bodies corporate.—Where any contravention of this Act has been committed by a body corporate, and it is proved that such offence has been committed with the consent or connivance or, or is attributed to any negligence on the part of, any director, partner, manager, secretary or other officer of the body corporate, such director, partner, manager, secretary or other officer of the body corporate, shall be deemed guilty of such contravention along with the body corporate and shall be punished accordingly:

Provided that in the case of a company as defined under the Companies Ordinance, 1984 (XLVII of 1984), only the Chief Executive as defined in the said Ordinance shall be liable under this section.

Explanation.—For the purposes of this section, "body corporate" includes a firm, association of persons and a society registered under the Societies Registration Act, 1860 (XXI of 1860), or under the Cooperative Societies Act, 1925 (VII of 1925).

19. Offences by Government Agencies, local authorities or local councils.—Where any contravention of this Act has been committed by any Government Agency, local authority or local council, and it is proved that such contravention has been committed with the consent or connivance of, or is attributable to any negligence on the part of the Head or any other officer of the Government Agency, local authority or local council, such Head or other officer shall also be deemed guilty of such contravention along with the Government Agency, local authority or local council and shall be liable to be proceeded against and punished accordingly.

20. Environmental Tribunals.—(1) The Federal Government may, by notification in the official Gazette, establish as many Environmental Tribunals as it considers necessary and, where it establishes more than one Environmental Tribunal, it shall specify territorial limits within which, or the class of cases in respect of which, each one of them shall exercise jurisdiction under this Act.

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(2) An Environmental Tribunal shall consist of a Chairperson who is, or has been, or is qualified for appointment as, a Judge of the High Court to be appointed after consultation with the Chief Justice of the High Court and two members to be appointed by the Federal Government of which at least one shall be a technical member with suitable professional qualifications and experience in the environmental field as may be prescribed.

(3) For every sitting of the Environmental Tribunal, the presence of the Chairperson and not less than one Member shall be necessary.

(4) A decision of an Environmental Tribunal shall be expressed in terms of the opinion of the majority of its members, including the Chairperson, or if the case has been decided by the Chairperson and only one of the members and there is a difference of opinion between them, the decision of the Environmental Tribunal shall be expressed in terms of the opinion of the Chairperson.

(5) An Environmental Tribunal shall not, merely by reason of a change in its composition, or the absence of any member from any sitting, be bound to recall and rehear any witness who has given evidence and may act on the evidence already recorded by, or produced, before it.

(6) An Environmental Tribunal may hold its sittings at such places within its territorial jurisdiction as the Chairperson may decide.

(7) No act or proceeding of an Environmental Tribunal shall be invalid by reason only of the existence of a vacancy in, or defect in the constitution of, the Environmental Tribunal.

(8) The terms and conditions of service of the Chairperson and members of the Environmental Tribunal shall be such as may be prescribed.

21. Jurisdiction and powers of Environmental Tribunals.—(1) An Environmental Tribunal shall exercise such powers and perform such functions as are, or may be, conferred upon or assigned to it by or under this Act, or the rules and regulations made thereunder.

(2) All contravention punishable under sub-section (1) of section 17 shall exclusively be triable by an Environmental Tribunal.

(3) An Environmental Tribunal shall not take cognizance of any offence triable under sub-section (2) except on a complaint in writing by--

(a) the Federal Agency or any Government Agency or local council ; and

(b) any aggrieved person, who has given notice of not less than thirty days to the Federal Agency or the Provincial Agency concerned of the alleged contravention and of his intention to make a complaint to the Environment Tribunal.

(4) In exercise of its criminal jurisdiction, the Environmental Tribunal shall have the same powers as are vested in the Court of Session under the Code of Criminal Procedure, 1898 (Act V of 1898).

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(5) In exercise of the appellate jurisdiction under section 22 the Environmental Tribunal shall have the same powers and shall follow the same procedure as an appellate court in the Code of Civil Procedure, 1908 (Act V of 1908).

(6) In all matters with respect to which no procedure has been provided for in this Ordinance, the Environmental Tribunal shall follow the procedure laid down in the Code of Civil Procedure, 1908 (Act V of 1908).

(7) An Environmental Tribunal may, on application filed by any officer duly authorised in this behalf by the Director-General of the Federal Agency or Provincial Agency, issue bailable warrant for the arrest of any person against whom reasonable suspicion exists of his having been involved in contravention punishable under sub-section (1) of section 17:

Provided that such warrant shall be applied for, issued and executed in accordance with the provisions of the Code of Criminal Procedure, 1898 (Act V of 1898):

Provided further that if the person arrested executes a bond with sufficient sureties in accordance with the endorsement on the warrant, he shall be released from custody, failing which he shall be taken or sent without delay to the officer-in-charge of the nearest police station.

(8) All proceedings before the Environmental Tribunal shall be deemed to be judicial proceedings within the meaning of sections 193 and 228 of the Pakistan Penal Code (Act XLV of 1860) and the Environmental Tribunal shall be deemed to be a court for the purposes of sections 480 and 482 of the Code of Criminal Procedure, 1898 (Act V of 1898).

(9) No Court other than an Environmental Tribunal shall have or exercise any jurisdiction with respect to any matter to which the jurisdiction of an Environmental Tribunal extends under this Act or the rules and regulations made thereunder.

(10) Where the Environmental Tribunal is satisfied that a complaint made to it under subsection (3) is false and vexatious to the knowledge of the complainant, it may, by an order, direct the complainant to pay to the person complained against such compensatory costs which may extend to one hundred thousand rupees.

22. Appeals to the Environmental Tribunal.—(1) Any person aggrieved by any order or direction of the Federal Agency or any Provincial Agency under any provision of this Act and rules or regulations made thereunder may prefer an appeal with the Environmental Tribunal within thirty days of the date of communication of the impugned order or direction to such person.

(2) An appeal to the Environmental Tribunal shall be in such form, contain such particulars and be accompanied by such fees as may be prescribed.

23. Appeals from orders of the Environmental Tribunal.—(1) Any person aggrieved by any final order or by any sentence of the Environmental Tribunal passed under this Act may, within thirty days of communication of such order or sentence, prefer an appeal to the High Court.

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(2) An appeal under sub-section (1) shall be heard by a Bench of not less than two Judges.

24. Jurisdiction of Environmental Magistrates.—(1) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), or any other law for the time being in force, but subject to the provisions of this Act, all contraventions punishable under sub-section (2) of section 17 shall exclusively be triable by a judicial Magistrate of the first class as Environmental Magistrate especially empowered in this behalf by the High Court.

(2) An Environmental Magistrate shall be competent to impose any punishment specified in subsections (2) and (4) of section 17.

(3) An Environmental Magistrate shall not take cognizance of an offence triable under subsection (1) except on a complaint in writing by—

(a) the Federal Agency, Provincial Agency, or Government Agency or local council; and

(b) any aggrieved person.

25. Appeals from orders of Environmental Magistrates.—Any person convicted of any contravention of this Act or the rules or regulations by an Environmental Magistrate may, within thirty days from the date of his conviction, appeal to the Court of Sessions, whose decision thereon shall be final.

*26. **Power to delegate.—**(1) The Federal Government may, by notification in the official Gazette, delegate any of its or of the Federal Agency's powers and functions under this Act and the rules and regulations made thereunder to any Provincial Government, any Government Agency, local council or local authority.

(2) The Provincial Government may, by [1]notification in the official Gazette, delegate any of its or of the Provincial Agency's powers or functions under this Act and the rules and regulations made thereunder to any Government Agency of such Provincial Government or any local council or local authority in the Province.

27. Power to give directions.—In the performance of their functions under this Act—

(a) the Federal Agency and Provincial Agencies shall be bound by the directions given to them in writing by the Federal Government; and

(b) a Provincial Agency shall be bound by the directions given to it in writing by the Provincial Government.

28. Indemnity.—No suit, prosecution or other legal proceedings shall lie against the Federal or Provincial Governments, the Council, the Federal Agency or Provincial Agencies, the Directors-General of the Federal Agency and the Provincial Agency, members, officers, employees, experts, advisors, committees or consultants of the Federal or Provincial Agencies or the Environmental Tribunal or Environmental Magistrates or any other person for anything which is in good faith done or intended to be done under this Act or the rules or regulations made thereunder.

29. Dues recoverable as arrears of land revenue.—Any dues recoverable by the Federal Agency or Provincial Agency under this Act, or the rules or regulations made thereunder shall be recoverable as arrears of land revenue.

30. Act to over-ride other laws.—The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force.

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*For such powers delegated to Maritime Security Agency, Pl. see SRO No. 9 (KE)/05, dated 02-02-2005.

[1]See S.R.O. 1251 to 1254(I)/98, dt.27-10-98.

31. Power to make rules.—The Federal Government may, by Notification in the official Gazette, make rules for carrying out the purposes of this Act including rules for implementing the provisions of the international environmental agreements, specified in the Schedule to this Act.

32. Power to amend the Schedule.—The Federal Government may, by Notification in the official Gazette, amend the Schedule so as to add any entry thereto or modify or omit any entry therein.

33. Power to make regulations.—(1) For carrying out the purposes of this Act, the Federal Agency may, by Notification in the official Gazette and with the approval of the Federal Government, make regulations not inconsistent with the provisions of this Act or the rules made thereunder.

(2) In particular and without prejudice to the generality of the foregoing power, such regulations may provide for—

(a) submission of periodical reports, data or information by any Government Agency, local authority or local council in respect of environmental matters;

(b) preparation of emergency contingency plans for coping with environmental hazards and pollution caused by accidents, natural disasters and calamities;

(c) appointment of officers, advisors, experts, consultants and employees;

(d) levy of fees, rates and charges in respect of services rendered, actions taken and schemes implemented;

(e) monitoring and measurement of discharges and emissions;

(f) categorization of projects to which, and the manner in which, section 12 applies;

(g) laying down of guidelines for preparation of initial environmental examination and environmental impact assessment and Development of procedures for their filing, review and approval;

(h) providing procedures for handling hazardous substances; and

(i) installation of devices in, use of fuels by, and maintenance and testing of motor vehicles for control of air and noise pollution.

34. Repeal, savings and succession.—(1) The Pakistan Environmental Protection Ordinance, 1983 (XXXVII of 1983) is hereby repealed.

(2) Notwithstanding the repeal of the Pakistan Environmental Protection Ordinance, 1983 (XXVII of 1983), any rules or regulations or appointments made, orders passed, notifications issued, powers delegated, contracts entered into, proceedings commenced, rights acquired liabilities incurred, penalties, rates, fees or charges levied, things done or action taken under any provisions of that Ordinance shall, so far as they are not inconsistent with the provisions of this Act, be deemed to

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have been made, passed, issued, delegated, entered into, commenced, acquired, incurred, levied, done or taken under this Act.

(3) On the establishment of the Federal Agency and Provincial Agencies under this Act, all properties, assets and liabilities pertaining to the Federal Agency and Provincial Agencies established under that Ordinance shall vest in and be the properties, assets and liabilities, as the case may be, of the Federal Agency and Provincial Agency established under this Act.

SCHEDULE

(*See section* 31)

1. International Plant Protection Convention, Rome, 1951.
2. Plant Protection Agreement for the South-East Asia and Pacific Region (as amended), Rome, 1956.
3. Agreement for the Establishment of a Commission for Controlling the Desert Locust in the Eastern Region of its Distribution Area in South-West Asia (as amended), Rome, 1963.
4. Convention on Wetlands of International Importance Especially as Waterfowl Habitat, Ramsar, 1971 and its amending Protocol, Paris, 1982.
5. Convention Concerning the Protection of World Cultural and Natural Heritage (World Heritage Convention), Paris, 1972.
6. Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES), Washington, 1973.
7. Convention on the Conservation of Migratory Species of Wild Animals, Bonn, 1979.
8. Convention on the Law of the Sea, Montego Bay, 1982.
9. Vienna Convention for the Protection of the Ozone Layer, Vienna, 1985.
10. Montreal Protocol on Substances that Deplete the Ozone Layer, Montreal, 1987 and amendments thereto.
11. Agreement on the Network of Aquaculture Centers in Asia and the Pacific, Bangkok, 1988.
12. Convention on the Control of Transboundary Movements of Hazardous Waste and Their Disposal, Basel, 1989.
13. Convention on Biological Diversity, Rio De Janiero, 1992.
14. United Nations Framework Convention on Climate Change, Rio De Janiero, 1992.

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THE PAKISTAN MERCHANT SHIPPING ORDINANCE, 2001

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THE PAKISTAN MERCHANT SHIPPING ORDINANCE, 2001

ORDINANCE No. LII OF 2001

[3rd October,2001]

AN
ORDINANCE
to consolidate and amend the law relating to merchant shipping

WHEREAS it is expedient to consolidate and amend the law relating to merchant shipping and to provide for matters connected therewith and incidental thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999 and the Provisional Constitution Order No.1 of 1999 read with the Provincial Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

PART I

CHAPTER 1.—PRELIMINARY

1**. Short title, extent, application and commencement**.—(1) This Ordinance may be called the Pakistan Merchant Shipping Ordinance, 2001.

(2) It extends to the whole of Pakistan.

(3) Save as otherwise expressly provided, this Ordinance shall apply to—

(a) all Pakistani ships wherever they may be;

(b) all ships deemed to be registered under this Ordinance wherever they may be; and

(c) all other ships while in a port or place in, or within the territorial waters or within the exclusive economic zone specified in section 6 of the Territorial Waters and Maritime Zones Act, 1976 (LXXXII of 1976) :

Provided that the provisions of this Ordinance shall not apply to—

(i) any ship, commissioned for service, in the Pakistan Navy or, while employed otherwise than for commercial use in the service of Government, any other ship belonging to Government; or

(ii) any ship belonging to any foreign State while employed otherwise than for commercial use in the service of such State.

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(4) It shall come into force at once.

2. **Definitions**.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(1) "apprentice" means a person appointed for training to the sea service under this Ordinance, whether called an apprentice or a cadet, or by any other name whatever;

(2) "bareboat or demise charter" means the hiring of a ship for a period where the charter appoints ship's master and crew and pay all running expenses of a ship and has a right to have the vessel registered in his name;

(3) "cargo ship" means a ship which is not a passenger ship;

(4) "coasts" includes coasts of creeks and tidal waters;

(5) "coasting ship" means a ship which is exclusively employed in trading coast-wise within Ports or places in Pakistan or any marine areas specified in the Pakistan Territorial Waters and Maritime Zones Act, 1976 (LXXXII of 1976), or any other law for the time being in force and between such ports or places, as the Federal Government, may, from time to time, notify;

(6) "coasting trade" means the carriage by sea of passengers or goods between ports or places in areas specified in clause (5);

(7) "collision regulations" means the regulations made under section 411;

(8) "company" means a company as defined in clause (7) of sub-section (1) of section 2 of the Companies Ordinance, 1984 (XLVII of 1984), and includes—

(a) a body corporate constituted or established by or under any Pakistan law; and

(b) any partnership or association of persons, whether incorporated or not;

(9) "Customs collector" means any of the officers of Customs appointed under section 3 of the Customs Act, 1969 (IV of 1969), and for the time being in separate charge of a customs port as defined in section 2 thereof;

(10) "distressed seaman" means a seaman engaged under this Ordinance who, by reason of having not being properly discharged or left behind from or ship- wrecked in any ship at any port or place outside port of engagement in Pakistan, is in distress there;

(11) "effects", in relation to a seaman, includes clothes and documents;

(12) "equipment", in relation to a ship, includes boats, tackle, pumps, apparel, furniture, life saving appliances, of every description, spars, masts, rigging and sails, fog signals, lights, shapes and signals of distress, medicines and medical and surgical stores and appliances, charts, radio installations, appliances for preventing detecting or extinguishing fires, buckets, compasses, axes, lanterns, loading and discharging gears

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and appliances of all kinds, and all other stores or articles belonging to or to be used in connection with or necessary for the navigation and safety of the ship and pollution prevention;

(13) "fishing vessel" means vessel used commercially for catching fish, whales, seals, walrus or other living resources of the sea;

(14) "foreign-going ship" means a ship, not being a coasting ship or a home-trade ship, employed in trading between any port or place in Pakistan and any other port or place or between ports or places outside Pakistan;

(15) "free board" means, in the case of any ship which is marked with a deck line, the height from the water to the upper edge of the deck line, and, in the case of any other ship, the height amidships from the water to the upper edge of the deck from which the depth of hold as stated in the register is measured;

(16) "gross", in relation to tonnage of vessel, means the gross tonnage of the vessel as registered under this Ordinance;

(17) "High Court", in relation to a vessel means the High Court within the limits of whose appellate jurisdiction—

(a) the port of registry of the vessel is situated;

(b) the vessel is for the time being; or

(c) the cause of action wholly or in part arises;

(18) "home-trade ship" or "home-trade passenger ship" means ship employed in trading between ports and places in Pakistan or between any port and place in Pakistan to or from an area within the extremities not exceeding five hundred nautical miles from a point on the Pakistani coast and including Gulf of Oman not beyond *Ras-ul-Hadd* and ports or places in the Gulf;

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(19) "Load Line Convention" means the International Convention Load Lines 1966, as amended from time to time;

(20) "Maritime Board" means a Board convened under section 481;

(21) "master" includes any person, other than a pilot appointed by the owner, having command or charge of any ship and includes the person who replaces him as master;

(22) "*nakhuda*" means the person in command or charge of a sailing vessel or modern crafts of primitive build;

(23) "net", in relation to tonnage of a vessel, means the net tonnage of the vessel as registered under this Ordinance;

(24) "nuclear ship" means a ship provided with a nuclear power plant;

(25) "owner" means—

(a) in relation to a registered ship, the person or persons and companies who are for the time being shown as owners in the Register Book maintained under this Ordinance;

(b) in relation to any other ship, the persons and companies to whom the ship or a share in the ship belongs;

(c) in relation to a sailing vessel or a fishing vessel, the persons or companies to whom the vessel belongs; and

(d) in relation to any ship, in addition to the person who owns the ship, includes also the bareboat charterer and any other person who operates the ship and to whom the owners responsibilities have been formally assigned;

(26) "Pakistan consular officer" means a consul-general, consul, vice-consul, pro-consul or consular agents appointed as such by the Federal Government and includes—

(a) any person authorised by the Federal Government to perform the functions of any of them; and

(b) a seamen's Welfare Officer performing the functions of a Pakistan Consular Officer under Part IV;

(27) "Pakistani ship" means a ship registered as such under this Ordinance;

(28) "passenger" means any person carried on board a ship except—

(a) a person employed or engaged in any capacity on board the ship on the business of the ship;

(b) a person on board the ship either in pursuance of the obligation laid upon the master to carry shipwrecked, distressed or other persons, or by reason of any circumstance which neither the master nor the charterer, if any, could have prevented or forestalled; or

(c) a child under one year of age;

(29) "passenger ship" means a ship carrying more than twelve passengers;

(30) "pilgrim" means a person going to or returning from the Kingdom of Saudi Arabia for or after performing Hajj, and includes any such passenger who is returning without having actually landed in the Kingdom of Saudi Arabia;

(31) "pilgrim of the lowest class" means a pilgrim for whom no separate accommodation in any cabin, smoke-room or saloon is reserved;

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(32) "pilgrim ship" means a special trade passenger ship carrying or about to carry pilgrims from or to any port or place in Pakistan to or from any port or place in the Red Sea or any port declared as such by the Federal Government;

Provided that no ship carrying passengers other than pilgrims of the lowest class and having on board pilgrims of the lowest class in a less proportion than one pilgrim for every one hundred tonnes of the gross tonnage of the ship shall be deemed to be a pilgrim ship within the meaning of this Ordinance;

(33) "port of registry", in relation to a ship, a sailing vessel or a fishing vessel, means the port at which she is registered or is to be registered;

(34) "prescribed" means prescribed by rules made under this Ordinance;

(35) "proper return port", in relation to a master, seaman or apprentice discharged of left behind, means the port at which the master, seaman or apprentice was engaged or the port agreed to as such by the master, seaman or apprentice, as the case may be;

(36) "radio installation" means radio equipment, as prescribed;

(37) "ratification" means the act of acceptance of international Convention or instruments relating to merchant shipping including but not limited to safety of life at sea, protection of marine environment etc., and any amendments thereto by the Government of Pakistan and the depositing of instrument of ratification or accession to such Convention with the international body concerned and the expression "ratified" shall be construed accordingly;

(38) "sailing vessel" means any description of vessel which is—

(a) fitted exclusively with sails, or

(b) provided with sufficient sail area for navigation under sails alone and, if fitted with mechanical means of propulsion, such means are meant for auxiliary purposes only;

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(39) "safety Convention" means any international safety Convention, treaty or agreement ratified by Pakistan insofar as it relates to the safety of life at sea;

(40) "safety convention certificate" means—

(i) a passenger ship safety certificate;

(ii) a special trade passenger ship safety certificate;

(iii) a special trade passenger ship space certificate;

(iv) a cargo ship safety construction certificate;

(v) a cargo ship safety equipment certificate;

(vi) a cargo ship safety radio certificate;

(vii) an exemption certificate;

(viii) a nuclear passenger ship safety certificate;

(ix) a nuclear cargo ship safety certificate issued under Parts VI, X or, as the case may be, Part XIV;

(x) any other certificates as may be prescribed;

(41) "surveyor' means a person appointed under section 4 and includes a nautical surveyor, ship surveyor or an engineer surveyor;

(42) "salvage" means the rendering of assistance to ships in danger, to any things on board and to things floating, sunk or washed ashore;

(43) "salvor" means, in the case of salvage services rendered by the officers or crew or part of the crew of any ship belonging to the Federal Government, the person in command of that ship;

(44) "sea-going", in relation to a vessel, means a vessel proceeding to sea beyond such limits as may be specified by the Federal Government by notification in the official Gazette;

(45) "Seaman" means a person employed or engaged, or to be employed or engaged, for service in any capacity on board any ship, but does not include master, pilot or apparentice;

(46) "second hand", in relation to a fishing vessel, means the person next in authority to the skipper of the vessel;

(47) "ship" includes every description of vessel used in navigation not propelled by oars;

(48) "skipper" means the person in command of a fishing vessel or in charge of the navigation of such vessel;

(49) "special trade" means the conveyance of large number of special trade passengers by sea on international voyages within the area specified under the Special Trade Agreement;

(50) "Special Trade Agreement" means the Special Trade Passenger Ships Agreement signed at London on the fourth day of October, 1971;

(51) "special trade passenger" means a passenger carried in special trades in spaces on the weather deck, upper deck, or between decks which accommodate more than eight passengers;

(52) "special trade passenger ship" means a mechanically propelled passenger ship carrying more than fifty special trade passengers;

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(53) “tidal water” means any part of the sea and any part of a river within the ebb and flow of the tide at ordinary spring tides, but does not include a harbour;

(54) “valid international load line certificate” means a certificate purporting to have been issued in accordance with the Load Line Convention in respect of a ship, other than a Pakistani ship, by the competent authority in the country in which the ship is registered;

(55) “valid safety convention certificate” means a certificate purporting to have been issued in accordance with the Safety Convention in respect of a ship, not being a Pakistani ship, by the competent authority in the country in which the ship is registered;

(56) “vessel” includes a ship, boat, sailing vessel, fishing vessel and any other description of vessel used or intended to be used in navigation and includes dynamically supported craft, submersibles and fixed or floating platforms;

(57) “voyage”, in relation to a ship, means the whole distance between the ship's port or place of departure and her final port or place of arrival;

(58) wages” includes emoluments;

(59) “wreck” includes the following when found in the sea or in the tidal waters or on the shores thereof, namely:—

(a) goods which have been cast or fall into the sea and then sink and remain under water;

(b) goods which have been cast or fall into the sea and remain floating on the surface;

(c) goods which are sunk in the sea, but are attached to a floating object in order that they may be found again;

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(d) goods which are thrown away or abandoned; and

(e) a vessel abandoned without hope or intention of recovery; and

(60) “young person” means a person under eighteen years of age.

CHAPTER 2.—MERCANTILE MARINE DEPARTMENT

3. **Office of Mercantile Marine Department.**—(1) The Federal Government may establish and maintain an office of the Mercantile Marine Department at the port of Karachi and at such other port as may be deemed necessary.

(2) The office of the Mercantile Marine Department at the port of Karachi shall be in the charge of a Principal Officer and the office at any other port shall be in the charge of such officer as the Federal Government may appoint in this behalf.

(3) The Principal Officer may, in addition to any other functions, perform all or any of the functions of a surveyor under this Ordinance.

(4) The Federal Government may appoint a Chief Nautical Surveyor and a Chief Engineer and Ship Surveyor to perform such duties under this Ordinance as may be assigned to them by the Federal Government and to supervise the performance of surveyors.

4. **Surveyors**.—(1) The Federal Government may, by notification in the official Gazette, appoint for each office established under section 3 as many persons, as it may think fit, possessing such qualifications as may be prescribed in this behalf, to be surveyors for the purposes of this Ordinance

(2) The surveyor shall perform his functions under this Ordinance under the general supervision and control of the Principal Officer.

5. **Radio Inspectors.**—(1) The Federal Government may, by notification in the official Gazette, appoint as many Radio Inspectors as it may consider necessary for the purpose of securing that the requirements of this Ordinance and the rules made thereunder relating to radio installation and radio service are complied with.

(2) The radio inspector shall perform his function under this Ordinance under the general supervision and control of the Principal Officer.

CHAPTER 3.—SHIPPING OFFICES

6. **Shipping Offices**.—(1) The Federal Government shall maintain a shipping office at every port in Pakistan where there was a shipping office immediately before the commencement of this Ordinance and may establish and maintain such office at any other port as it may deem necessary.

(2) For every shipping office, the Federal Government shall appoint a Shipping Master and may appoint such Deputy Shipping Masters as it may consider necessary possessing such qualifications as may be prescribed.

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(3) A Shipping Master and a Deputy Shipping Master shall, in the performance of their functions, be subject to the general supervision and control of the Federal Government or of such other authority as the Federal Government may, by general or special order, direct.

(4) All acts done by or before a Deputy Shipping Master shall have the same effect, as if done by or before a Shipping Master.

7. **Conduct of business of shipping office at other office.**—(1) The Federal Government may direct that where at any port there is no shipping office established, the whole or any part of the business of a Shippng Office shall be conducted at such office and be committed to such officer at that office as the Federal Government may specify; and thereupon such business shall be conducted accordingly.

(2) For the purposes of this Ordinance, an office at which the business of a shipping office is conducted under sub section (1) shall be deemed to be a shipping office and the officer to whom such business is committed under that sub-section shall be deemed to be a Shipping Master.

8. **Duties of the Shipping Master**.—The duties of a Shipping Master shall, in general in respect of Pakistani ships, be—

(a) to superintend and afford facilities for engagement and discharge of' seamen in the manner provided in this Ordinance and the rules made thereunder;

(b) to perform such other functions relating to seamen, apprentices and ships as are, by or under this Ordinance or by general or special order of the Federal Government, assigned to a Shipping Master.

9. **Fees for engagement or discharge of seamen.—**(1) In respect of all engagements and discharges of seamen, the owner of a ship or master so engaging or discharging shall pay to the Shipping Master such fee as the Federal Government may, by notification in the official Gazette, fix; and the Shipping Master may decline to act in any case until such fee has been paid.

(2) A copy of the scale of fees for the time being payable under sub-section (1) shall be affixed at some conspicuous place in the Shipping Office.

10. **Seamen's Welfare Officers.**—(1) The Federal Government may appoint Seamen's Welfare Officers at such ports or places in Pakistan as it may consider necessary.

(2) A Seamen's Welfare Officer appointed under sub-section (1) shall, under the general supervision and control of the Federal Government or of such other authority as the Federal Government may, by general or special order, direct, perform at any port or place in Pakistan, such functions in relation to welfare of seaman as may be assigned to him by the Federal Government.

PART II
REGISTRATION AND NATIONALITY
CHAPTER 4.—REGISTRATION

11. **Application.**—This Chapter shall not apply to sailing vessels or fishing vessels nor to such ships registered under the Inland Mechanically Propelled Vessels Act, 1917 (I of 1917), as are not sea-going.

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12. **Restriction on acquisition of ship**.—(1) No citizen of Pakistan, nor any company shall acquire any ship for registration under Pakistan flag unless qualified to do so under this Ordinance.

(2) No Pakistani ship shall, except with prior permission in writing from the Federal Government be converted, modified or altered in such manner so as to change the character of the ship.

(3) Whoever contravenes or attempts to contravene the provisions of sub-section (1) or sub-section (2) shall be liable to a fine which may extend to one hundred thousand rupees and any transaction made in contravention of any such provisions shall be void.

13. **Qualification for registration of Pakistani ships.**—(I) For the purposes of this Ordinance, a ship may be registered as a Pakistani ship if it is owned by persons of the following description, namely:—

(a) citizens of Pakistan by birth or by migration;

(b) persons having acquired citizenship of Pakistan by registration under the Pakistan Citizenship Act, 1951 (II of 1951);

(c) companies having their principal place of business in Pakistan and which conduct operation and management of the ship from Pakistan; or

(d) any individual or company permitted by Federal Government.

(2) A ship on bareboat or demise charter for a period of not less than six months may be registered as a Pakistani ship in the name of a persons provided that such a person falls under any of the description given in clauses (a) to (d) of sub-section (1) and subject to condition as may be prescribed.

(3) A bareboat charter registry may be kept suspended for a period of charter, where Pakistani ships are bareboat chartered out to a person other than Pakistani Nationals on conditions as prescribed.

(4) Citizens of Pakistan by birth or by migration or Companies have their principal place of business in Pakistan which are conducting operation and management of ships from Pakistan or any other individual Company permitted by Federal Government, may obtain Second Registry of ships or other crafts registered abroad in their names provided that this Registry shall be for such period as the Government may prescribe.

14. **Obligation to register ships.**—(1) Ships owned by citizens of Pakistan and companies shall be registered under this Ordinance.

(2) A ship required by this Ordinance to be registered may be detained until the master of the ship, if so required, produces the certificate of registry in respect of the ship.

15. **Exemption from registry.**—The following ships shall be exempted from registry under this Ordinance, namely :—

(a) Ships not exceeding fifteen tonnes net registered tonnage employed solely in navigation on the rivers or coasts of Pakistan within which the managing owners of the ships are resident;

(b) Ships not exceeding thirty tonnes net registered tonnage and not having a whole or fixed deck, and employed solely in fishing or trading coastwise on the shores of Pakistan; and

(c) Ships belonging to Government of Pakistan except where expressly provided by notification in official Gazette.

16. **Registrars of Pakistani ships and ports of registry.**—(1) The following persons shall be registrars of Pakistani ships—

(a) at the port of Karachi and Port Muhammad Bin Qasim, the Principal Officer of the Mercantile Marine Department, Karachi, or a person duly authorised by the Federal Government; and

(b) at any other port, such authority as the Federal Government may, by notification in the official Gazette, appoint to be the registrar of ships.

(2) A registrar shall not be liable to damages or otherwise for any loss accruing to any person by reason of his any act or default in his capacity of registrar unless the same has happened through his neglect or wilful act.

(3) The ports of Karachi, Muhammad Bin Qasim and such other ports in Pakistan as the Federal Government may, by notification in Official Gezette, specify in this behalf, shall be the, ports of registry at which Pakistani ships may be registered under this Ordinance.

17. **Provisions for entries in register book.—** Every registrar of Pakistani ships shall keep a book to be called the register book and entries in that book shall be made in accordance with the following provisions, namely:—

(a) The property in a ship shall be divided into sixty-four shares;

(b) subject to the provisions of this Ordinance with respect to joint owners or owners by transmission, not more than sixty-four individuals shall be entitled to be registered at the same time as owners of any one ship; but this rule shall not affect the beneficial title or any number of persons or of any company represented by or claiming under or through any registered owner or joint owner;

(c) a person shall not be entitled to be registered as owner of a fractional part of a saher in a ship; but any number of persons not exceeding five may be registered as joint owners of a ship or of any shares therein;

(d) joint owners shall be considered as constituting one person only as regards the persons entitled to be registered, and shall not be entitled to dispose in severely of any interest in a ship or in any share therein in respect of which they are registered; and

(e) a company may be registered as owner by its name.

18. **Measurement of ships**.—Every Pakistani ship shall before registry have her tonnage ascertained in the prescribed manner.

19. **Marking of ships.—**Every Pakistani ship shall before registry be marked permanently and conspicuously in the prescribed manner.

20. **Entry of particulars in register book**.—As soon as the requirements of this Ordinance, preliminary to registry, have been complied with the registrar shall enter in the register book, the following particulars respecting the ship namely: —

(a) the name of the ship and the previous name and registry, if any, and the name of the port to which she belongs;

(b) the details comprised in the surveyor's certificate;

(c) the particulars respecting her origin stated in the declaration of ownership;

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(d) the name and description of his registered owner or owner, and if there are more owners than one, the proportions in which they are interested in her; and

(e) international call sign of the ship, if assigned.

21. **Port of Registry**.—The port at which a Pakistani ship is registered for the time being shall be deemed her port of registry and the port to which she belongs.

22. **Certificate of Registry**.—On completion of the registry of a Pakistani ship, the registrar shall grant a certificate of registry containing the particulars respecting her entered in the register book with the name of her master.

23. **Custody and use of certificate**.—(1) The certificate of registry shall be used only for the lawful navigation of the ship, and shall not be subject to detention by reason of any title, lien, charge, or interest whatever had or claimed by any owner, mortgagees, or other person to, on, or in the ship.

(2) No person, whether interested in the ship or not, who has in his possession or under his control the certificate of registry of a ship shall refuse or omit, without reasonable cause, to deliver such certificate on demand to the person entitled to the custody thereof for the purposes of the lawful navigation of the ship, or to any registrar, officer of customs, or other person entitled by law to require such delivery.

(3) Any judge or any court, taking cognizance of the matter, may, by order, summon the person so refusing or omitting to deliver the certificate to appear before such judge or court, and to be examined touching such refusal, and unless it is proved to the satisfaction of such Judge or court that there was reasonable cause for such refusal, the offender shall be liable to a fine which may extend to one hundred thousand rupees, but if it is shown to such judge or court that the certificate is lost, the person summoned shall be discharged, and the judge or court shall certify that the certificate of registry is lost.

(4) If the person so refusing is proved to have absconded so that the order of a judge or process of a court cannot be served on him, or if he persists in not delivering up the certificate, the Judge or court shall certify the fact, and the same proceeding may then be taken as in the case of a certificate mislaid, lost, or destroyed, or as near thereto as circumstances permit.

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24. **Penalty for use of improper certificate**.—If the master or owner of a Pakistani ship uses or attempts to use for her navigation a certificate of registry not legally granted in respect of the ship, he shall be liable to a fine which may extend to one hundred thousand rupees and the ship shall be liable to forfeiture.

25. **Power to grant duplicate certificate**.—The registrar of the port of registry of a Pakistani ship may, on the delivery up to him of the defaced or multilated certificate of registry of a ship, grant a duplicate certificate in lieu thereof.

26. **Provision for loss of certificate.—**(1) In the event of the certificate of registry of a Pakistani ship being mislaid, lost or destroyed, the registrar of her port of registry shall grant a duplicate certificate of registry in lieu of her original certificate.

(2) If the port, having a Pakistani registrar or consular officer, at which the ship is at the time of the event referred to in sub section (1) or first arrives after the event—

(a) is outside Pakistan, where the ship is registered in Pakistan; or

(b) where the ship is registered at a port of registry under this Ordinance, is not that port; then the master of the ship, or some other person having knowledge of the facts of the case, shall make a declaration stating the facts of the case, and the names and descriptions of the registered owners of such ship to the best of the declarant's knowledge and belief, and the registrar or consular officer, as the case may be, shall thereupon grant a provisional certificate, containing a statement of the circumstances under which it is granted.

(3) Such registrar of Consular officer shall forward a copy of the certificate at the first convenient opportunity to the registrar of shipping, Mercantile Marine Department, Karachi, who upon receipt will issue a duplicate certificate of registry within thirty days of the receipt. The Master upon receipt of the duplicate certificate of registry, shall return the provisional certificate to the registrar of the Consular officer.

27. **Endorsement of change of master on certificate.—**Where the master of a Pakistani ship is changed, the registrar, or if there is none the Pakistan consular officer, at the port where the change occurs, shall endorse and sign on the certificate of registry a memorandum of the change, and shall forthwith report the change to the Registrar of Shipping, Mercantile Marine Department, Karachi, and any officer of customs at any port in Pakistan may refuse to permit any person to do any act there as master of a Pakistani ship unless his name is inserted in or endorsed on her certificate of registry as her last appointed master.

28. **Endorsement of change of ownership.—**(1) Whenever a change occurs in the registered ownership of a ship, the change of ownership shall be endorsed on her certificate of registry either by the registrar of the ship's port of registry or by the registrar of any port at which the ship arrives who has been advised of the change by the registrar of the ship's port of registry.

(2) The master shall, for the purpose of such endorsement by the registrar of the ship's port of registrar of the ship's port of registry, deliver the certificate of registry to the registrar, forthwith after the change if the change occurs when the ship is at her port of registry, and if it occurs during her absence from that port and the endorsement under this section is not made before her return, then upon her first return to that port.

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(3) The registrar of any port, not being the ship's port of registry, who require to make an endorsement under this section may for that purpose require the master of the ship to deliver to him the ship's certificate of registry so that the ship may not thereby detained and the master shall deliver the same accordingly.

(4) If the master fails to deliver to the registrar the certificate of registry required by this section he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

29. **Provisional certificate for ships becoming Pakistani owned abroad.—**If at a port outside Pakistan, and not being a port of registry established under this Ordinance, a ship becomes the property of persons qualified to own a Pakistani ship, the Pakistan consular officer there may grant to her master, on his application, a provisional certificate, stating—

(a) the name of the ship;

(b) the time and place of her purchase and the names of her purchasers;

(c) the name of her master; and

(d) the particulars respecting her tonnage, build and description which he is able to obtain,

and shall forward a copy of the certificate at the first convenient opportunity to the Registrar of Shipping, Mercantile Marine Department, Karachi, who upon receipt will issue a certificate of registry.

30. **Temporary passes in lieu of certificates of registry.—**Where it appears to the Federal Government that by reason of special circumstances it would be desirable that permission should be granted to any Pakistani ship to pass, without being previously registered, from one port in Pakistan to any other port in Pakistan, the Federal Government may grant a pass accordingly, and that pass shall, for the time and within the limits therein mentioned, have the same effect as a certificate of registry.

31. **Transfer of ships or shares.—**(1) A registered ship or a share therein, when disposed of to any person shall be transferred by bill of sale.

(2) The bill of sale shall contain such description of the ship as is contained in the surveyor's certificate or some other description sufficient to identify the ship to the satisfaction of the registrar and shall be executed by the transferor in the presence of and the attested by at least two witnesses.

32. **Declaration of transfer.—**Where a registered ship, or a share therein, is transferred the transferee shall not be entitled to be registered as owner thereof until he or, in the case of a company, the person authorized by this Ordinance to make declarations on behalf of the company, has made and signed a declaration, in this Ordinance called a declaration of transfer, referring to the ship, and containing—

(a) a statement of the qualification of the transferee to own a Pakistani ship, or if the transferee is a company of such circumstances of the constitution and business thereof as prove it to be qualified to own a Pakistani ship; and

(b) a declaration that, to the best of his knowledge and belief, no unqualified person or body of persons is entitled as owner to any legal or beneficial interest in the ship or any share therein.

33. **Registry of transfer.—**(1) Every bill of sale for the transfer of a registered ship, or of a share therein, when duly executed, shall be produced to the registrar or her port of registry with the declaration of transfer and the registrar shall thereupon enter in the register book the name of the transferee as owner of the ship or share, as the case may be, and shall endorse on the bill of sale the fact of that entry having been made with the day and hour thereof.

(2) Bills of sale of a ship, or of a share therein, shall be entered in the register book in the order of their production to the registrar.

34. **Transmission of property in ship on death, bankruptcy, marriage, etc.—**(1) Where the property in a registered ship, or share therein, is transmitted to a person qualified to own a

Pakistani ship on the marriage, death, or bankruptcy of any registered owner, or by any lawful means other than by a transfer under this Ordinance—

(a) that person shall authenticate the transmission by making and signing a declaration, in this Ordinance called a declaration of transmission, identifying the ship and containing statements required to be contained in a declaration of transfer, or as near thereto as circumstances admit, and also a statement of the manner in which and the person to whom the property has been transmitted.

(b) if the transmission takes place by virtue of marriage, the declaration shall be accompanied by a copy of the register of the marriage or other legal evidence of celebration thereof, and shall declare the identity of the female owner;

(c) if the transmission is consequent on bankruptcy, the declaration of transmission shall be accompanied by proof of such claim; or

(d) if the transmission is consequent on death, the declaration of transmission shall be accompanied by a succession certificate, probate or letters of administration under the Succession Act, 1925 (XXXIX of 1925), or a duly certified copy thereof.

(2) The registrar, on receipt of the declaration of transmission so accompanied, shall enter in the register book the name of the person entitled under the transmission as owner of the ship or share the property in which has been transmitted, and, where there are more persons than one, shall enter the names of all those persons, but those persons, however numerous, shall, for the purpose of the provision of this Ordinance with respect to the number of persons entitled to be registered as owners, be considered as one person.

35. **Order for sale on transmission to unqualified person.—**(1) Where the property in a registered ship, or share therein, is transmitted on marriage, death, bankruptcy or otherwise to a person not qualified to own a Pakistani ship, then—

(a) if the ship is registered in Pakistan the High Court; or

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(b) if the ship is registered in a port of registry established by this Ordinance, the principal civil court having jurisdiction,

may on application by or on behalf of the unqualified person, order a sale of the property so transmitted and direct that the proceeds of the sale, after deducting the expenses thereof, be paid to the person entitled under such transmission or otherwise as the Court may direct.

(2) The court may require any evidence in support of the application it thinks necessary and may make such order thereon and on such terms and conditions it thinks just or may refuse to make the order.

(3) Every such application for sale must be made within four weeks after the occurrence of the event on which the transmission has taken place or within such further time, not exceeding one year from the date of the occurrence, as the court may allow.

(4) If such an application is not made within the time aforesaid, or if the court refuses an order for sale, the ship or share transmitted shall thereupon be subject of forfeiture under this Ordinance.

36. **Transfer of ship on sale by order of court.—**Where any court, whether under the preceding sections or otherwise, orders the sale of any ship or share therein, the order of the court shall contain a declaration vesting in some person named by the court the right to transfer that ship or share, and that person shall thereupon be entitled to transfer the ship or share in the same manner and to the same extent as if he were the registered owner thereof; and every registrar shall obey the requisition of the person so named in respect of any transfer to the same extent as if such person were the registered owner.

37. **Power of court to prohibit transfer.—**Where the ship is registered in Pakistan the High Court and in the case of a port of registry established outside Pakistan under this Ordinance, the principal Civil Court having jurisdiction, may if it thinks fit, without prejudice to the exercise of any other power, on the application of any interested person make an order prohibiting for a time specified any dealing with a ship or any share therein and the court may make the order thereon on such terms or conditions it thinks just, or may refuse to make the order, or may discharge the order when made, with or without costs and every registrar, without being made a party to the proceeding, shall on being served with the order obey the same.

38. **Mortgage of ship or share.—**(1) A registered ship or a share therein may be made a security for a loan or other valuable consideration and upon production of instrument creating the security (in this Ordinance called a mortgage), the registrar of the ship's port of registry shall record it in the register book. The instrument creating the security shall have a summary attached in the prescribed form to be recorded by the registrar.

(2) Mortgages shall be recorded by the registrar in the order in time in which they are produced to him for that purpose, and the registrar shall by memorandum under his hand notify on each mortgage that it has been recorded by him stating the day and hour of that record.

39. **Entry of discharge of mortgage.—**Where a registered mortgage is discharged, the registrar shall, on the production of the mortgage deed, with a receipt for the mortgage money endorsed thereon, duly signed and attested, make an entry in the register book to the effect that the mortgage has been discharged, and on that entry being made the estate if any, which passed to the mortgagee shall vest in the person in whom (having regard to intervening acts and circumstances, if any), it would have vested, if the mortgage had not been made.

40. **Priority of mortgage.—**If there are more mortgages than one registered in respect of the same ship or share, the mortgagees shall, notwithstanding any express, implied, or constructive notice, have priority according to the date at which each mortgage is recorded in the register book and not according to the date of each mortgage itself.

41. **Mortgagees not treated as owner.—**Except as far as may be necessary for making a mortgaged ship or share available as a security for the mortgage debt, the mortgagee shall not, by reason of the mortgage, be deemed the owner of the ship or share nor shall the mortgagor be deemed to have ceased to be the owner thereof.

42. **Mortgagee to have power of sale.—**Every registered mortgagee shall have power if the mortgage money or any part of it is due or if there is any material breach of the security

instrument by mortgagor to sell the ship or share in respect of which he is registered, and to give effectual receipts for the purchase money; but where there are more persons than one registered as mortgagees of the same ship or share, a subsequent mortgagee shall not, except under the order of a court of competent jurisdiction, sell the ship or share without the concurrence of every prior mortgagee.

43. **Mortgage not affected by bankruptcy.—**A registered mortgage of a ship or share shall not be affected by any act of bankruptcy committed by the mortgagor after the date of the record of the mortgage notwithstanding that the mortgagor at the commencement of his bankruptcy had the ship or share in his possession, order, or disposition, or was the reputed owner thereof, and the mortgage shall be preferred to any right, claim, or interest therein of the other creditors of the bankrupt or any trustee or assignee on their behalf.

44. **Transfer of mortgages.—**A registered mortgage of a ship or share may be transferred to any person and the instrument effecting the transfer shall be in the prescribed form or as near thereto as circumstances permit, and on the production of such instrument the registrar shall record it by entering in the register book the name of the transferee as mortgagee of the ship or share, and shall by memorandum under his hand notify on the instrument of transfer that it has been recorded by him stating the day and hour of the record.

45. **Transmission of interest in mortgage by death, bankruptcy or marriage, etc.—** (1) Where the interest of a mortgagee in a ship or share is transmitted on marriage, death, or bankruptcy, or by any lawful means, other than by a transfer under this Ordinance, the transmission shall be authenticated by a declaration of the person to whom the interest is transmitted, containing a statement of the manner in which and the person to whom the property has been transmitted, and shall be accompanied by the like evidence as is by this Ordinance required in case of a corresponding transmission of the ownership of a ship or share.

(2) The registrar, on the receipt of the declaration and the production of the evidence, shall enter the name of the person entitled under the transmission in the register book as mortgagee of the ship or share.

46. **Powers of mortgage and sale.—**A registered owner, if desirous by way of mortgage or sale of the ship or share in respect which he is registered at any place out of the country in which the port of registry of the ship is situated, may apply to the registrar, and the registrar shall thereupon enable him to do so by granting a certificate of mortgage or a certificate of sale.

47. **Requisites for certificates of mortgage and sale**.—Before a certificate of mortgage or sale is granted, the applicant shall state to the registrar, and the registrar shall enter in the register book, the following particulars, namely:—

(a) The name of the person by whom the power mentioned in the certificate is to be exercised, and in the case of a mortgage the maximum amount of charge to be created if it is intended to fix any such maximum; and in the case of a sale the minimum price at which a sale is to be made if it is intended to fix any such minimum;

(b) the place where the power is to be exercised, or if no place is specified, a declaration that it may be exercised anywhere, subject to the provisions of this Ordinance; and

(c) the limit of time within which the power may be exercised.

48. **Restrictions on certificates of mortgage and sale.—**A Certificate of mortgage or sale shall not be granted so as to authorise any mortgage or sale to be made and if the port of registry of the ship is situated in Pakistan, at any place within Pakistan or if the port of registry is established outside Pakistan, by order under this Ordinance, at that port, or within such adjoining area as is specified in the order; or by any person not named in the certificate.

49. **Power of the Federal Government in case of loss of certificate of mortgage or sale.—** On proof at any time to the satisfaction of the Federal Government that a certificate of mortgage or sale is lost or destroyed, or so obliterated to be useless, and that the power thereby given have never been exercised, or if they have been exercised, then on proof of the several matters and things that have been done thereunder, the registrar may, with the sanction of the Federal Government either issue a new certificate, or direct such entries be made in the register books, or such other things be done as might have been made or done as if the loss, destruction, or obliteration had not taken place.

50. **Revocation of certificates of mortgage and sale.—**(1) A registered owner of any ship or share therein in respect of which a certificate of mortgage or sale has been granted specifying the places where the power thereby given is to be exercised, may, by an instrument under his hand, authorize the registrar by whom the certificate was granted to give notice to the registrar or Pakistan consular officer at every such place that the certificate is revoked.

(2) Notice shall thereupon be given accordingly and shall be recorded by the registrar or Pakistan consular officer receiving it, and after it is recorded the certificate shall be deemed to be revoked and of no effect so far as respects any mortgage or sale to be thereafter made at that place.

(3) The notice, after it has been recorded, shall be exhibited to every person applying for the purpose of effecting or obtaining a mortgage or transfer under the certificate.

(4) A registrar or Pakistan consular officer on recording any such notice shall state to the registrar by whom the certificate was granted whether any previous exercise of the power to which such certificate refers has taken place.

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51. **Registry of alterations, registry anew and transfer of registry.—**(1) When a registered ship is so altered as not to correspond with the particulars relating to her tonnage or description contained in the register book, then, if the alteration is made at any port having a registrar, that registrar, or if it is made elsewhere, the registrar of the first port having a registrar at which the ship arrives after the alteration, shall, on application being made to him and on receipt of a certificate from the proper surveyor stating the particulars of the alteration, either cause the alteration to be registered or direct that the ship be registered a new.

(2) On failure to register a new ship or to register an alteration of a ship so altered as aforesaid, that ship shall be deemed not duly registered and shall not be recognised as a Pakistan ship.

52. **Provisional certificate and endorsement.—**(1) Where any registrar not being the registrar of the ship's port of registry. On an application as to an alteration in a ship directs the

ship to be registered anew, he shall either grant a provisional certificate, describing the ship as altered, or provisionally endorse the particulars of the alteration on the existing certificate.

(2) Every such provisional certificate or certificate provisionally endorsed, shall within ten days after the first subsequent arrival of the ship at her port of discharge in Pakistan. if she is registered in Pakistan, at a her port of discharge in or, if she is registered at a port of registry established outside Pakistan under this Ordinance, at that port, be delivered up to the registrar thereof, and that registrar shall cause the ship to be registered anew.

(3) The registrar granting a provisional certificate under this section or provisionally endorsing a certificate shall add to the certificate or endorsement a statement that the same is made provisionally, and shall send a report of the particulars of the case to the registrar of the ship's port of registry, containing a similar statement as the certificate or endorsement.

53. **Registry anew on change of ownership.—**Where the ownership of any ship is changed the registrar of the port at which the ship is registered may, on the application of the owners of the ship, register the ship anew although registration anew is not required under this Ordinance.

54. **Restrictions on re-registration of abandoned ships.—**Where a ship has ceased to be registered as a Pakistani ship by reason of having been wrecked or abandoned, or for any reason other than capture by the enemy or transferred to a person not qualified to own a Pakistani ship, the ship shall not be re-registered until she has at the expense of the applicant for registration, been surveyed by a surveyor and certified by him to be seaworthy.

55. **Provision for cases of infancy or other incapacity.—**Where by reason of infancy, lunacy, or any other cause any person interested in any ship or any share therein, is incapable of making any declaration or doing anything required or permitted by this Ordinance to be made or done in connection with the registry of the ship or share, the guardian or committee, if any, of that person or, if there is none, any person appointed on application made on behalf of the incapable person, or of any other person interested, to any court having jurisdiction in respect of the property of such persons, may make such declaration or a declaration as nearly corresponding on behalf of the incapable person; and all acts done by the substitute shall be as effectual as if done by the person for whom he is substituted.

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56. **Equities not included by Ordinance.—**The expression "beneficial interest", where used in this part of this Ordinance, includes interests arising under a contract and other equitable interests; and it is hereby declared that without prejudice to the provisions of this Ordinance preventing notice of trusts from being entered in the register book or receive by the registrar, and without prejudice to the powers of disposition and of giving receipts conferred by this Ordinance on registered owners and mortgagees and without prejudice to the provisions of this Ordinance relating to the exclusion of unqualified persons from the ownership of Pakistani ships, interests arising under contract or other equitable interests may be enforced by or against owners and mortgagees of ships in respect of their interest therein the same manner as in respect of any other personal property.

57. **Liability of owners.—**Where any person is beneficially interested otherwise than by way of mortgage in any ship or share in a ship registered in the name of some other person as owner, the person so interested shall, as well as the registered owner, be subject to all pecuniary penalties imposed by this or any other Ordinance on the owners of ships or shares therein, so nevertheless that proceedings may be taken for the enforcement of any such penalties against both or either of the aforesaid parties with or without joining the other of them.

58. **Ship's managing owner or manger to be registered.—**(1) The name and address of the managing owner, for the time being of every ship registered at a port in Pakistan, shall be registered at the custom house of that port.

(2) Where there is no managing owner there shall be so registered the name of the ship's husband or other person to whom the management of the ship is entrusted by or on behalf of the owner; and any person whose name is so registered shall, for the purposes of this Ordinance, be under the same obligations and subject to the same liabilities as if he were the managing owner.

(3) If default is made in complying with this section the owner shall be liable, or if there are more owners than one each owner shall be liable in proportion to his interest in the ship, to a fine which may extend to fifty thousand rupees each time the ship leaves any port in Pakistan.

59. **Forgery of documents.—**If any person forges, or fraudulently alters, or assists in forging or fraudulently altering, or procures to be forged or fraudulently altered, any of the following documents, namely, any register book, builder's certificate, surveyor's certificate, certificate of registry, declaration of bill of sale, instrument of mortgage, or certificate of mortgage or sale under this Part of this Ordinance, or any entry or endorsement required by this Part of this Ordinance to be made in or on any of those documents, that person shall in respect of each offence be punishable with imprisonment which shall not be less than three months and with fine which may extend to five hundred thousand rupees.

60. **False declaration.—**(1) If any person in the case of any declaration made in the presence of or produced to a registrar under this Part or in any document or other evidence produced to such registrar,—

(a) wilfully makes, or assists in making, or procures to be made any false statement concerning the title to or ownership of, or the interest existing in any ship, or any share in a ship; or

(b) utters, produces, or makes use of any declaration or document containing any such false statement knowing the same to be false, shall, in respect of each offence, be liable to a fine which may extend to fifty thousand rupees.

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(2) If any person wilfully makes a false declaration touching the qualification of himself, or of any other person or of any corporation to own a Pakistani ship or any share therein, he shall, for each offence, be liable to a fine which may extend to fifty thousand rupees and the ship or share shall be liable to forfeiture to the extent of the interest therein of the declarant unless it is proved that the declaration was made without authority of any person or corporation on whose behalf the declaration is made.

61. **National character of ship to be declared before clearance.—**(1) An officer of customs, or appropriate designated authority for this purpose, shall not grant a clearance or transire for any ship until the master of such ship has declared to that officer the name of the country to which he claims that she belongs, and that officer shall thereupon inscribe that name on the clearance or transire.

(2) If a ship attempts to proceed to sea without such clearance or transire, she may be detained until the declaration is made.

62. **Penalty for concealment of Pakistan character or assumption of foreign character.** —If the master or owner of a Pakistani ship does anything or permits anything to be done, or carries or permits to be carried any papers or documents, with intent to conceal the Pakistani character of the ship from any person entitled by any law, for the time being in force, to enquire into the same, or with intent to assume a foreign character, or with intent to deceive any person so entitled as aforesaid, the ship shall be liable to forfeiture and the master, if he commits or is privy to the commission of the offence, shall in respect of each offence be liable to a fine which may extend to one hundred thousand rupees.

63. **Penalty for acquiring ownership if unqualified.—**If an unqualified person acquires as owner, otherwise than be such transmission as here in before provided, any interest either legal or beneficial in a ship using a Pakistani flag and assuming the Pakistani character, that interest shall be liable to forfeiture.

64. **Liabilities of ships not recognized as Pakistani ships.—**where it is declared by this Ordinance that a Pakistani ship shall not be recognized as a Pakistani ship, that ship shall not be entitled to any benefits, privileges or protection usually enjoyed by Pakistani ships nor to use the Pakistan flag or assume the Pakistani national character, but so far as regards the payment of dues, the liabilities to fines and forfeiture, and the punishment of offence committed on board such ship, or by any persons belonging to her, such ship shall be dealt with in the same manner in all respects as if she were a recognised Pakistani ship.

65. **National colours for ships.—**(1) The Federal Government may, by notification in the official Gazette, declare the proper national colours for Pakistani ships.

(2) If any distinctive colours, other than those declared under sub-section (1), are hoisted on board any Pakistani ship the owner of the ship, unless he proves that they were hoisted without his knowledge or consent, the master of the ship and every person hoisting such colours shall be liable to a fine which may extend to ten thousand rupees.

(3) Any commissioned officer of the Pakistan Navy, Principal Officer, any Customs Collector, or any Pakistan consular officer, may board any ship on which any colours in contravention of this Ordinance are hoisted and seize and take away the colours which shall be forfeited to the Federal Government.

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66. **Penalty for unduly assuming Pakistani character.**—(1) If a person uses the Pakistan flag and assumes the Pakistani national character on board a ship owned in whole or in part by any persons not qualified to own a Pakistani ship, for the purpose of making the ship appear to be a Pakistani ship, the ship shall be liable to forfeiture under this Ordinance unless the assumption has been for the purpose of escaping capture by any enemy or by a foreign ship of war on the exercise of some belligerent right.

(2) In any proceeding for enforcing any such forfeiture the burden of proving a title to use the Pakistani flag and assume the Pakistani national character shall lie upon the person using and assuming the same.

67. **Pakistani ships to hoist proper national colours in certain cases.—**(1) A Pakistani ship shall hoist the proper national colours—

(a) on a signal being made to her by any vessel of the Pakistan Navy;

(b) on entering or leaving any foreign port; and

(c) if the net tonnage is fifty or more, on entering or leaving any Pakistani port.

(2) The master of a ship in respect of which the provisions of sub-section (1) are not complied with, shall be liable to a fine which may extend to ten thousand rupees.

68. **Saving for Pakistan Navy.—**The provisions of this Ordinance with respect to colours worn by merchant ships shall not affect any other powers of the Pakistan Navy in relation thereto.

69. **Recognition of tonnage measurement of ships of foreign country.**—(1)Whenever it appears to the Federal Government that the tonnage regulations applicable in a foreign country are equivalent to those adopted under this Ordinance, the Federal Government may order that the ships of that country shall, without being re-measured in Pakistan, be deemed to be of the tonnage denoted in their certificates of registry or other national papers, in the same manner, to the same extent, and for the same purposes as the tonnage denoted in the certificate of registry of a Pakistani ship and any space shown by the certificate of registry, or other national papers of any such ships as deducted from the tonnage shall, where a similar deduction in the case of Pakistani ship depends on compliance with any conditions or on the compliance being evidenced in any manner, be deemed to comply with those conditions, and to be so evidenced, unless a surveyor of ships certifies to the Federal Government that the construction and the equipment of the ship as respects that space do not come up to the standard which would be required if the ship were a Pakistani ship registered in Pakistan.

(2) The Federal Government may limit the time during which the order shall remain in operation and make the order subject to such conditions and qualifications, if any, as it may deem expedient.

(3) If it is made to appear to the Federal Government that the tonnage of any foreign ship as measured by the rules of the country, to which she belongs, materially differs from that which would be her tonnage if measured under rules applicable in Pakistan, the Federal Government may order that notwithstanding any order for the time being in force under this section any of the ships of that country may, for all or any of the purposes of this Ordinance, be re-measured in accordance with rules applicable in Pakistan.

70. **Space occupied by deck cargo to be liable to dues.**—(1) If any Pakistani or foreign ship other than a home-trade ship carries as deck cargo, that is to say, in any uncovered space upon deck or in any covered space not included in the cubical contents forming the ship's registered tonnage, timber, stores, or other goods, all dues payable on the ship's tonnage shall be payable as if there were added to the ship's registered tonnage the tonnage of the space occupied by those goods at the time at which the dues become payable.

(2) The space so occupied shall be deemed to be the space limited by the area occupied by the goods and by straight lines enclosing a rectangular space sufficient to include the goods.

(3) The tonnage of the space shall be declared by the Master, and if misdeclared be ascertained by an officer of the Mercantile Marine Department or of Customs in manner directed and when so ascertained shall be entered by him in a memorandum which he shall deliver to the

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master and the master shall, when the said dues are demanded, produce that memorandum in like manner as if it were the certificate of registry or, in the case of a foreign ship, the document equivalent to a certificate of registry, and in default shall be liable to the same penalty as if he had failed to produce the said certificate or document.

(4) Nothing in this section shall apply to any ship employed exclusively in trading or going from place to place in any river or inland water of Pakistan or to deck cargo carried by a ship while engaged in the coasting trade in Pakistan.

71. **Surveyors and regulations for measurement of ships.—**All duties in relation to the survey and measurement of ships shall be performed by surveyors of ships in the prescribed manner.

72. **Levy of tonnage rates under local laws on the registered tonnage.—**Any persons having powers to levy tonnage rates on ships may, if they think fit, with the consent of the Federal Government, levy those tonnage rates upon the registered tonnage of the ships as determined by the tonnage regulations adopted in Pakistan, notwithstanding that any local law under which those rates are levied provides for levying the same upon some different system of tonnage measurement.

73. **Close of registry.** The owner of a registered ship may sell, dispose of or dismantle the ship by following the prescribed procedure for closing the registry otherwise he shall be liable to a fine which may extend to one hundred thousand rupees.

74. **Powers to make rules in respect of matters in this Part.**—(1) The Federal Government may, by notification in the official Gazette, make rules to carry out the purpose of this part.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :—

(a) the manner in which the tonnage of any ship shall be ascertained, whether for the purpose of registration or otherwise including the mode of measurement;

(b) the recognition for the purpose of ascertaining the tonnage of any ship or for any other purpose, of any tonnage certificate granted in respect of any ship in other country, not being a country with which Pakistan has entered into an agreement in this behalf, including the conditions and restrictions subject to which such recognition may be granted;

(c) the manner in which the surveys of ships shall be conducted and the form of certificates to be issued by a surveyor;

(d) the manner in which ships shall be marked;

(e) the form in which any document or instrument required by or under this Part to be prepared or executed and the particulars which it should contain;

(f) the persons by whom and authorities before which any declaration required by this Part shall be made, and the circumstances in which any such declaration may be waived and other evidence accepted;

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(g) the returns that shall be made by registrars to the Federal Government or to such other authority as the Federal Government may appoint and the form in which and the intervals at which such returns shall be made;

(h) the procedure for registration, marking, naming or alteration of the names of Pakistani ships;

(i) the fees that may be levied and the actual expenses, if any, incurred by Federal Government in the performance of its functions under this part and the manner in which such fees and expenses shall be collected or recovered;

(j) the manner in which registrars and other authorities may exercise their powers under this part or maintain the register book and other books and registers;

(k) the manner in which ships belonging to Federal Government to which the provisions of this part may be made applicable; and

(l) any other matter which may be or is to be prescribed.

PART III
COASTAL SHIPPING
CHAPTER 5.—CONTROL OF SHIPPING

75. **Application**.—This Part applies only to such sea-going ships propelled by mechanical power as are not less than one hundred and fifty tons gross or of such other tonnage as the Federal Government may, by notification in the official Gazette, fix.

76. **International shipping operators.**—(1) All Pakistani shipping operators and foreign shipping operators shall, subject to the provisions of section 79, be entitled to participate in the coastal shipping.

(2) The Federal Government may exclude or restrict operators from countries, to be specified in the official Gazette, to participate in the coastal shipping to, and from, Pakistan.

77. **Government cargo.—**The carriage of Government cargo between a foreign and Pakistani port and *vice versa* may be reserved for Pakistani shipping operators provided Pakistani ships operate from such ports.

78. **Requirements for participation in coastal shipping**.—(1) Pakistani shipping operators, wishing to participate in the coastal shipping, shall be adequately insured against all professional liabilities and be registered as such with the Federal Government.

(2) A foreign shipping operator, wishing to participate in the coastal shipping, shall be adequately insured against all professional liabilities and have an agent in Pakistan.

79. **Power to fix shipping rates**.—(1) The Federal Government may, by order published in the Official Gazette, fix in the prescribed manner, the rates at which any Pakistani ship may be hired

and the rates which may be charged for the carriage of passengers or cargo by any ship engaged in the coasting trade of Pakistan.

(2) If the Federal Government considers that with a view to enabling it to fix the rates under sub-section (1) it is necessary or expedient so to do, it may constitute a Shipping Rates Advisory Board in the prescribed manner for the purpose of advising it ; and such Board may be constituted either generally or for a particular case or route or in respect of rates for the carriage of passengers or cargo or both.

(3) Where an order fixing the rates to be charged for hire or for the carriage of passengers or cargo has been published under sub-section (1) no owner, master or agent of a ship shall charge rates in excess of the rates so fixed.

(4) The Federal Government may determine a period to be observed between the notification and changes which may be different for different shipping service.

(5) The power to make rules conferred by sub-section (1) shall, except on the first occasion of the exercise thereof, be subject to the conditions of previous publication.

[1][79A. **Regulation and determination of port charges by Shipping Companies and Shipping Agents etc.**

(1) The Federal Government shall regulate and determine port charges and other local charges, other than the charges leviable under Ports Act, 1908 (XV of 1908), to be levied by the Shipping Companies and Shipping Agents in respect of the Cargo handled at ports.

(2) Notwithstanding anything contained in any other law for the time being in force, the licenses to Shipping Companies, Shipping Agents and Non-vessels Operating Carriers and Cargo Consolidation shall only be issued after grant of NOC from the Shipping Rates Advisory Board constituted under sub-section (2) of section 79 or by any authority authorized by the Board.

(3) Only those Shipping Companies and Shipping Agents, Non-vessels Operating Carriers and Cargo Consolidators who are registered with the Ports and Shipping Wing of Communications Division shall be allowed to work in the ports.

Explanation. For the purpose of this section "port" means the port specified in the First Schedule to the Ports Act, 1908 (XV of 1908) or any port which may be notified by the Federal Government for the purpose of this section.

(4) In the case of default under sub-section (1) or sub-section (2), by any Shipping Company, Shipping Agent, Non-vessel Operating Carrier or Cargo Consolidation, the Federal Government shall have the power to cancel the registration, forfeit the security or impose penalty or fine as may be prescribed.]

[1]Ins. by the Pakistan Marchant Shipping (Amdt.) Ordinance, 2002 (47 of 2002) s. 2.

80. **Duty to notify tariffs and other transport conditions**.—A shipping operator in the coastal shipping shall notify at request freight rates and other transport conditions to the representative shippers' organizations.

81. **Duty to provide conference agreement.—**The shipping operators in the coastal shipping who operate within the framework of a liner conference, shall provide the Federal Government with a copy of the liner conference agreement as soon as possible after it has been concluded or amended.

82. **Power to disapprove conference agreement.**—(1) The Federal Government may disapprove a liner conference agreement or clauses therein, if—

(a) the agreement or clauses therein contravene obligations contained in section 76 or 77;

(b) the agreement has not been provided in accordance with section 81;

(c) the agreement or clauses therein are not in accordance with obligations contained in international agreements to which the Federal Government is a party; and

(d) the agreement provides for such high rates for the carrying out of the liner service as to seriously jeopardize the interests of the shippers.

(2) The Federal Government shall notify its decision in writing to the shipping operators and the representative shippers' organizations involved stating the grounds for disapproval.

(3) If the Federal Government has disapproved the provisions of any agreement relating to freight rates or other transport conditions, the previous freight rates or conditions shall apply to the agreement.

83. **Prohibition on compliance with disapproved agreement.—**As soon as the Federal Government has notified disapproval of an agreement, or any part thereof, in accordance with sub-section (2) of section 82, the parties shall not comply with the agreement or, as the case may be, the disapproved part thereof.

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84. **Prohibition to contravene cargo sharing measures**.— No person shall transport cargo, provide sailing or use of ships of tonnage in contravention of rules made under this Ordinance.

85. **Representative Organizations**.—For the purposes of this Ordinance, the Federal Government may, by notification in Official Gazette, designate representative organizations of ship owners and shippers.

86. **Power to call for information**.—(1) The Shipping Authority may, by notice served personally or by post, require the master, owner or agent of any ship to furnish within the period specified in the notice; information regarding any of the following matters, namely :-

(a) The classes of passengers and cargo which the ship is about to carry or is capable of carrying or has carried during any period specified in this behalf in the notice; and

(b) any other matter which may be prescribed.

87. **Power of Shipping Authority to enter ship**.—Where, the Shipping Authority is of opinion that directions given under this Ordinance are not being compiled with, it may enter or authorize any other person to enter on board any ship and require relevant documents for examination.

88. **Penalty**.—If any person, on whom a notice has been served under section 86, fails to furnish the information required within the specified time or in furnishing such information makes any statement which he knows to be false in any material particular. shall be liable to imprisonment which shall not be less than three month and fine which may extend to five hundred thousand rupees.

89. **Power to make rules**.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Part.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :—

(a) the manner in which rates shall be fixed under sub-section (1) of section 79;

(b) the Constitution and functions of the Board constituted under sub-section (2) of section 79 and the procedure for discharge of its functions;

(c) the matters regarding which information may be required to be furnished under section 86;

(d) the procedure for determining minimum or maximum number of sailing per year;

(e) the determination of number and type of ship and the amount of tonnage to be used;

(f) the description of government cargo;

(g) cargo sharing and recognition of national shipping line;

(h) the freight rates for the carriage of Government cargo; and

(i) any other matter which may or is to be prescribed.

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PART IV
MANNING OF SHIP
CHAPTER 6.—CERTIFICATE OF COMPETENCY

90. **Application**. This Part applies only to sea-going ship propelled by electricity or other mechanical power.

91. **Ships to be provided with certificated officers**.—(1) Every Pakistani ship when going to sea from any port or place shall be provided with minimum number of duly certificated officers and ratings for various categories of ships as may be prescribed by the Federal Government.

(2) The Federal Government may, by order, exempt, subject to such terms and conditions as it may think fit to impose, any ship or class of ship from any of the manning requirements as set out under sub-section (1).

(3) Nothing in this section which relates to engineers shall apply to any ship to which the provisions of the Inland Mechanically Propelled Vessels Act, 1917 (I of 1917), apply as long as such ship is employed on voyages confined to ports or places within the same province.

(4) If any person—

(a) having been engaged as one of the officers mentioned in sub-section (1) goes to sea as such officer without being duly certificated or, as the case may be, approved, or

(b) employs a person as an officer without ascertaining that the person so employed is duly certificated or, as the case may be approved: shall, for each offence, be liable to fine which may extend to fifty thousand rupees.

92. **When officers or ratings deemed to be certificated**.—(1) Subject to the provisions of section 100, an officer or rating shall not be deemed duly certificated under this Ordinance unless he holds a certificate of a grade appropriate to his station in the ship or of a higher grade granted or deemed to have been so granted in accordance with this Ordinance.

(2) The Federal Government may, if it considers necessary or expedient so to do permit, by order in writing, any person, not being a person otherwise duly certificated who satisfies the prescribed requirements, to act in a capacity higher than that for which he is so certificated, and a person so permitted shall be deemed to have been duly certificated to act in that capacity for so long as the order remains in force, but nothing herein shall permit anyone to act as a master unless he holds Class I Master Mariner Certificate or a certificate of lower grade with suitable endorsement appropriate for the class of ship or as Chief Engineer required under this Ordinance to hold a certificate not lower than Class I Chief Engineer Certificate.

93. **Grades of certificates of competency**.—(1) Certificates of competency and other certificates including endorsements to the qualified officers of any description or qualified seamen of any description shall be granted in accordance with this Ordinance for each of the following grades, namely:—

(a) Master of foreign-going ship or certificate of competency (Deck Officer) Class I Master Mariner;

(b) first Mate of foreign-going ship or certificate of competency (Deck Officer) class II;

(c) second Mate of foreign-going ship or certificate of competency (Deck Officer) class III.

(d) certificate of competency (Deck Officer) class IV;

(e) first class engineer or certificate of competency (Chief Engineer Officer) class I;

(f) second class engineer or certificate of competency (Second Engineer Officer) class II;

(g) certificate of competency (Marine Engineer Officer) class III;

(h) certificate of competency (Marine Engineer Officer) class IV;

(i) master home trade endorsement;

(j) master coastal trade endorsement;

(k) tug master endorsement;

(1) certificate of qualification as master of a foreign-going tug;

(m) skipper;

(n) chief engineer officer endorsement;

(o) dangerous cargoes such as crude liquid petroleum or petroleum products or liquid chemical or liquefied gases endorsement; and

(p) certificates or endorsements to seamen as required by the international conventions from time to time.

(2) Certificates of competency specified in clauses, (b), (c) and (d) of sub-section (1) may be endorsed in accordance with this Ordinance for all or any of the following, namely:—

(a) master (home trade);

(b) master (coasting ship); or

(c) tug master; and

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(d) certificates of competency specified in clauses (f), (g) and (h) of sub-section (1) may be endorsed in accordance with this Ordinance for Chief Engineer Officer endorsement.

(3) A certificate of competency granted for the grade of engineer officer shall state whether it entitles the holder to act as engineer of ships fitted with steam engines or of ships fitted with any other type of engines, and the holder shall not be entitled to act as engineer of a ship fitted with a type of engine not stated in the certificate.

(4) A certificate of competency (Deck Officer) class I shall entitle the lawful holder thereof to go to sea as a master in any class of ship and a certificate of competency suitably endorsed for master (home trade) shall entitle the lawful holder thereof to go to sea in corresponding grade in a coasting ship.

(5) If it appears to the Federal Government that certificates of competency for grades other than those set out in sub-section (1) may be granted, it may, by notification in the official Gazette, specify the other grades in respect of which certificates of competency may be granted.

94. **Examinations for certificates**.—The Federal Government, or a person duly authorized by it in this behalf, shall appoint persons for the purpose of examining the qualifications of persons desirous of obtaining certificates of competency or endorsements under this Ordinance.

95. **Grant of certificates on passing examination**.—The Federal Government or any person authorised by it under section 94, shall grant to every applicant, who is duly reported by the examiners to have passed the examination satisfactorily and to have given satisfactory evidence of his sobriety, experience and ability and general good conduct on board ship, such certificate of competency and appropriate endorsements of the case requires:

Provided that the Federal Government may, in any case in which it has reason to believe that the report has been unduly made, require, before granting a certificate, a re-examination of the applicant or a further inquiry into his testimonials and character.

96. **Certificate of competency for Naval Officer.—** Subject to rules made under section 105 of this Ordinance a person, not being in Pakistan Naval reserve—

(a) who has attained the rank of Lieutenant Commander in the Executive Branch of the Pakistan Navy and has completed not less than three and a half years watch-keeping service actually at sea may be granted a certificate of competency (Deck Officer) class I;

(b) who has attained the rank of Lieutenant Commander or Lieutenant in the engineering branch of the Pakistan Navy and has completed, if a Lieutenant Commander not less than three and a half years, and if a Lieutenant not less than twenty-one months' watch-keeping service at sea, may be granted a certificate of competency (Engineer Officer) Class I and Class II respectively.

97. **Form of certificates**.—Every certificate of competency granted under this Ordinance shall be in the prescribed form and shall be made in duplicate, and one copy shall be delivered to the person entitled to the certificate and the other shall be kept by the Federal Government and recorded in the prescribed manner.

98. **Record of orders affecting certificates**.—A note of all orders made under this Ordinance for suspending, canceling, altering or otherwise affecting any certificate of competency shall be entered on the copy of the certificate kept by the Federal Government.

99. **Loss of certificate**.—Whenever a master, mate, or engineer proves to the satisfaction of the Federal Government that he has, without any fault on his part, lost or been deprived of a certificate of competency granted to him under this Ordinance, the Federal Government shall, on payment of the prescribed fee, if any, cause a copy of the certificate, to which by the record kept in accordance with this Ordinance he appears to be entitled, to be granted to him, and such copy shall have all the effect of the original.

100. **Recognition of certificates of competency granted in other countries.—**Where the law in force in a foreign country provides for the examination of and grant of certificates of

competency to, persons intending to act a masters, mates or engineers on board ships, and the Federal Government is satisfied that—

(a) the examinations are so conducted a to be equally efficient with the examinations for the same purpose in Pakistan under this Ordinance;

(b) the certificates are granted on such principles as to show the like qualifications and competency as those granted under this Ordinance;

(c) the certificates are liable to be cancelled or suspended for like reasons and in like manner of those granted under this Ordinance; and

(d) the certificates granted under this Ordinance are accepted or recognised in that foreign country as equivalent to the corresponding certificates granted under the law of that country, the Federal Government may, by notification in the official Gazette, declare that any certificate of competency granted under the laws in force in that foreign country and specified in notification, shall, subject to such conditions, if any, as the Federal Government may think fit to impose, be recognised as equivalent to the corresponding certificates of competency granted under this Ordinance, and that all or any of the provisions of this Ordinance relating to certificates of competency granted under this Ordinance shall apply to such certificates.

101. **Restriction on employment of aliens**.—Notwithstanding the provisions of section 100, no person, who is not for the time being a citizen of Pakistan, shall be employed to act as master, mate or engineer of any Pakistani ship except with the previous permission in writing of the Federal Government and in giving such permission the Federal Government may impose such conditions as to duration of employment or otherwise as it may think fit.

102. **Production of certificates and other documents of qualifications.**—Any person serving or engaged to serve in any ship to which this section applies and holding any certificate or other document which is evidence that he is qualified for the proposes of this Ordinance, shall on demand produce it to any shipping master, surveyor or proper officer, and if he is not himself the master, to the master of the ship; and if he fails to do so without reasonable cause he shall be liable on summary conviction to a fine which may extend to ten thousand rupees.

103. **Power to cancel or suspend certificates.**—If it appears to the Federal Government that the holder of a certificate of competency granted under this Ordinance has obtained it on false or erroneous information, it may, without prejudice to any other penalty to which such holder may be liable, cancel or suspend such certificate:

Provided that no order under this section shall be passed by the Federal Government unless the person concerned has been given an opportunity of making a representation against the proposed order.

104. **Penalty.**— If any person—

(a) forges or fraudulently alters, or assists in forging or fraudulently altering, or procures to be forged or fraudulently altered, any certificate of competency or an official copy of any such certificate; or

(b) makes, assists in making, or procures to be made any false representation for the purpose of procuring either for himself or for any other person a certificate of competency; or

(c) fraudulently uses a certificate of competency, or a copy thereof, which has been forged, altered, cancelled or suspended, or to which he is not entitled; or

(d) fraudulently lends his certificate of competency or allows it to be used by any other person:

he shall, for each offence, be punishable with imprisonment which shall not be less than three months and fine which may extend to five hundred thousand rupees.

105. **Power to make rules as to grant of certificates of competency.**—The Federal Government may, by notification in the official Gazette, make rules to regulate the grant of certificates of competency and the endorsements thereon under this Ordinance and may by such rules.—

(a) provide for the conduct of the examination of persons desirous of obtaining certificates of competency as masters, mates, engineers, ratings and the endorsements thereon;

(b) prescribe the qualifications required of persons for the grant of certificates of competency and the endorsements thereon;

(c) fix the fees to be paid by applicants for examinations or for the issue of duplicate certificates;

(d) prescribe the form of such certificates and the manner in which copies thereof are to be kept and recorded; and

(e) any other matter which it is necessary to prescribe.

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CHAPTER 7.—APPRENTICESHIP TO SEA SERVICE

106. **Assistance for apprenticeship to sea service.**—All Shipping Masters shall give to persons desirous apprenticing boys not under seventeen years of age for training to the sea service or requiring apprentices not under that age for the sea service, such assistance as may be in their power, and may receive from those persons such fees as may be prescribed.

107. **Special provisions as to apprenticeship to sea service.**—(1) The apprenticeship of any boy to the sea service shall be by contract in writing between the apprentice or, if he is a minor, his guardian on his behalf, and the persons taking the apprentice.

(2) Every contract under sub-section (1) shall be executed in duplicate in such form and in such manner as may be prescribed.

(3) Every such contract made in Pakistan and every assignment or cancellation thereof, and where the apprentice bound deserts or dies the fact of the desertion or death shall be recorded in the manner provided in section 108.

108. **Manner in which contract, etc. is to be recorded.**—(1)The person to whom an apprentice to the sea service is bound for the purpose of the record, shall—

(a) transmit to the Shipping Master both copies of the contract within seven days of the execution thereof and the Shipping Master shall record one copy and endorse the fact that it has been so recorded on the other and return the same to such person; and

(b) notify to the Shipping Master any assignment or cancellation of the contract and the desertion or death of the apprentice, within seven days of its occurrence, if it occurs within Pakistan, or as soon as circumstances permit, if it occurs elsewhere.

(2) If any person fails to comply with any of the requirements of sub-section (1) he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

109. **Production of contracts to persons before voyage in ship.**—(1) The master of a ship shall, before carrying an apprentice to sea from a port or place in Pakistan, cause the apprentice to appear before the Shipping Master before whom the crew are engaged, and shall produce to him the contract by which the apprentice is bound and every assignment thereof.

(2) The name of the apprentice with the date of the contract and of the assignments thereof, if any, and the names of the ports at which the same have been registered shall be entered on the agreement with the crew.

(3) If a master fails, without reasonable cause, to comply with any of the requirements of this section, he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

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CHAPTER 8. —EMPLOYMENT OF YOUNG PERSONS

110. **Employment of young persons.—**No person under fifteen years of age shall be engaged or carried to sea to work in any capacity in any ship except—

(a) in a school ship, or training ship in accordance with the prescribed conditions;

(b) in a ship in which all persons employed are members of one family; or

(c) where such person is to be employed on nominal wages and shall be under the protection of his father or other adult near male relative.

111. **Engagement of young persons as trimmer or stoker.**—(1) Save as otherwise provided in sub-sections (2) and (3), no young person shall be engaged or carried to sea to work as a trimmer or stoker in any ship.

(2) Sub-section (1) shall not apply—

(a) to any work of trimming or stoking done by a young person in a school ship or training ship in accordance with the prescribed conditions; or

(b) to any work of trimming or stoking done by a young person in a ship which is mainly propelled otherwise than by steam; or

(c) to the engagement or carrying to sea of a young person over sixteen years of age to work as a trimmer or stoker on a home trade ship in accordance with the prescribed conditions.

(3) Where in any port a trimmer or stoker is required for any ship, other than a home trade ship or coasting ship, and no person over eighteen years of age is available, two young persons over sixteen years of age may be engaged and carried to sea to do the work which would otherwise have been done by one person over eighteen years of age.

(4) There shall be included in every agreement with the crew in ships to which this section applies a short summary of the provisions of this section.

112. **Medical examination of young persons**.—(1) Save as otherwise provided in sub-section (2), no young person shall be engaged or carried to sea to work in any capacity in any ship unless there has been delivered to the master a certificate granted by a prescribed authority that the young person is physically fit to be employed in that capacity.

(2) Sub-section (1) shall not apply—

(a) to the employment of a young person in a ship in which all persons employed are members of one family; or

(b) where the Shipping Master, on the ground of urgency, has authorised a young person to be engaged and carried to sea, without certificate required by sub-section (1) being delivered to the master, and young person is not employed beyond the first port at which the ship in which he is so engaged calls except in accordance with the provisions of sub-section (1).

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(3) A certificate of physical fitness required by sub-section (1) shall remain in force for two years only from the date on which it is granted.

(4) The Shipping Master may require the master of any ship to produce for inspection any medical certificate delivered to him under sub-section (1).

113. **Penalty for false representation by parent or guardian**.—If any young person is engaged to work in any capacity in a ship in contravention of section 110, section 111, or section 112, on a false representation by his parent or guardian, or any other person, that the young person is of an age at which such engagement is not in contravention of any of those sections, such parent or guardian shall be liable to a fine which may extend to five thousand rupees.

114. **Penalty for contravention of sections 110, 111 and 112**.—1f any young person is carried to sea to work in contravention of section 110, section 111 or section 112 or if any master refuses or neglects to produce for inspection any certificate of physical fitness delivered to him,

when required so to do, under sub-section (4) of section 112 he shall, for each such offence, be liable to a fine which may extend to five thousand rupees.

115. **Maintenance of list or register of young persons in a ship and penalty for failure to maintain or produce for inspection register of such persons.—**(1) There shall be included in every agreement with the crew of every ship whether a Pakistani ship or not which engages young persons in Pakistan a list of young persons who are members of the crew, together with particulars of the dates of their birth, and, in the case of any ship where there is no agreement, the master shall maintain a register of young persons with particulars of the dates of their birth and of the dates on which they became or ceased to be members of the crew.

(2) The shipping Master may require the master of any ship where there is no such agreement as aforesaid to produce for inspection the register maintained under sub-section (1).

(3) If any master fails to maintain the register required to be maintained under sub-section (1), or refuses or neglects to produce such register for inspection when required so to do under sub-section (2), he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

116. **Power to make rules.—**The Federal Government may, by notification in the official Gazette, make rules prescribing.

(a) the conditions of employment of young persons, in any capacity, in school ships and training ships, and the authorities by whom and the manner in which the inspection of their work shall be carried out;

(b) the conditions of employment of young persons as trimmers or stokers in home trade ships and coasting ships;

(c) the authorities whose certificates of physical fitness shall be accepted for the purposes of section 112; and

(d) the form of the register of young persons to be maintained in ships where there is no agreement with the crew.

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CHAPTER 9. —ENGAGEMENT OF SEAMEN

117. **Rules relating to engagement of seaman and maritime labour.**—(1) Subject to the other provisions of this Ordinance, the Federal Government may, by notification in the official Gazette, make rules regulating the engagement of seamen and other matters affecting maritime labour generally so far as they relate to Pakistani ships.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following maters, namely :-

(a) the establishment of one or more maritime services and welfare boards and the constitution, composition and functions thereof;

(b) the registration of seamen, and the fees to be charged by the Shipping Master for the issue of registration books and other forms to them; and

(c) the principles and procedure to be followed by ship owners in engaging and promoting seamen.

118. **Supply of seamen in contravention of this Ordinance prohibited.**—(1) A person shall not engage, supply or employ for the purpose of engaging or supplying a seaman to be entered on board any Pakistani ship unless that person is the owner or master of the ship or is *bona fide* servant and in the constant employment of owner, or is a shipping Master or Deputy Shipping Master or an agent licensed under section 119.

(2) A person shall not receive or accept to be entered on board any Pakistani ship any seaman if that person knows that the seaman has been engaged or supplied in contravention of sub-section (1).

(3) If a person contravenes the provisions of sub-section (1) or sub-section (2) he shall, for each offence, be liable to a fine which may extend to one hundred thousand rupees.

119. **Manning agent**.—(1) No person shall act in Pakistan as a manning agent unless it is a company licensed as a manning agent with the Federal Government.

(2) The Federal Government may, by notification in the official Gazette, make rules specifying conditions of the manning agent.

120. **Seamen to be in possession of seamen's service book.**—(1) No person shall engage any Pakistani seaman at any port or place in Pakistan except in a coasting ship of a gross tonnage of less than two hundred so long as such coasting ship is employed on voyages confined to ports or places within the same Province unless the seaman is in possession of a seamen's service book issued in Pakistan by a Shipping Master in a form as may be prescribed, or a valid Pakistan international passport.

(2) If a person engages any seaman in contravention of sub-section (1), he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

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121. **Loss of seamen's service book**.— Whenever a seaman proves to the satisfaction of a Shipping Master that the continuous discharge certificate issued to him has, without any fault on his part, been lost, torn or defaced, or that he has otherwise been deprived of-it, the Shipping Master shall, on payment of the prescribed fee, if any, issue to the seaman a copy of the certificate to which he may be entitled and such copy shall have all the effect of the original.

122. **Cancellation of seamen's service book**.—(1) Notwithstanding anything contained elsewhere in this Ordinance, the Shipping Master may suspend, cancel, or confiscate the seamen's service book of any seaman who is shown, to the satisfaction of the Shipping Master, to have deserted his ship or is found guilty of smuggling, theft, misbehavior or is in breach of agreement or such other offence as may, in the opinion of the Shipping Master, make him unsuitable for employment on board a ship.

(2) Any person aggrieved by an order under sub-section (1) may, within ninety days from the date of receipt of such order, prefer an appeal to the Federal Government.

(3) An appeal under sub-section (2) shall be preferred and disposed of in such form and manner as may be prescribed.

123. **Certificate of physical fitness**.—(1) No person shall engage any Pakistani seaman other than master and officers at any port or place in Pakistan, nor carry to sea any such seaman other than Master and officers in any ship from any such port or place unless the seaman, other than Master and officers, are in possession of a certificate in the prescribed form issued by the prescribed authority to the effect that he is physically fit to be employed in the capacity in which he is to serve.

(2) The Federal Government may make rules for carrying into effect the provisions of this section and the rules so made may provide for-

(a) the standard of physical fitness required of seamen or different classes of seamen having regard to the age of the seamen and the nature of duties to be performed by them;

(b) the nature of the medical examination of seamen and the authority by whom the medical examination shall be conducted;

(c) the form and the contents of the certificates of physical fitness and the period of their validity; and

(d) the medical authority by whom a seaman who has been refused a certificate of physical fitness in the first instance may be re-examined, and the fee payable for such re-examination.

(3) If any person engages or carries any seaman in contravention of sub-section (1), he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

(4) An owner, master or agent may, prior to engaging a seaman who is in possession of a valid certificate of physical fitness, have him examined by any registered medical practitioner.

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124. **Rules relating to safe manning.**—(1) The Federal Government may, by notification in the official Gazette, make rules regulating the issuance of minimum safe manning certificate to ships of any class or type, provided any shortage of the officers or ratings listed in such certificate owing to unavoidable circumstances during a voyage shall not render her undermanned for the purposes of this Ordinance until the voyage is completed.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matter, namely :—

(a) the rating of seamen other than officers;

(b) the minimum and maximum age limits, qualifications and experience required for each rating; and

(c) the number of each rating to be carried on board a ship having regard to her tonnage, mode of propulsion, daily consumption of fuel, number of passengers she is certified to carry and the life saving appliances carried thereon.

125. **Agreement with crew**.—(1) The master of every Pakistani ship, except a coasting ship of a gross tonnage of less than two hundred so long as such coasting ship is employed on voyages confined to ports or places within the same Province shall enter into an agreement in accordance with this Ordinance with every seaman whom he engages at, and carries to sea as one of his crew from, any port or place in Pakistan.

(2) The master of a ship who neglect or fails to enter into an agreement required by sub-section (1) shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

126. **Forms and contents of agreement.**—(1) An agreement with the crew made under section 125 shall be in the form approved by the Federal Government, and shall be dated at the time of the first signature thereof, and shall be signed.—

(a) where the ship is at the port or place of engagement. by the master before any seaman signs the same; and

(b) where the ship is not at the port or place of engagement, by the owner or the owner's agent before the master signs it and by the master before the seaman is on board.

(2) An agreement with the crew made under section 125 shall contain as terms thereof the following particulars, namely :—

(a) the name of the ship or ships with the official number or numbers in which each seaman undertakes to serve;

(b) either the nature and, as far as practicable, the duration of the intended voyage or engagement, or maximum period of the voyage or engagement and the places or ports of the world, if any, to which the voyage or engagement is not to extend;

(c) the time at which each seaman is to be on board or to being work;

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(d) the capacity in which each seaman is to serve;

(e) the amount of wages which each seaman is to receive;

(f) a scale of the provisions which are to be furnished to each seaman, such scale being not less than the prescribed scale;

(g) any regulations as to conduct on board and as to fines, short allowance, or provision or other lawful punishments for misconduct, which have been sanctioned by the Federal Government as regulations proper to be adopted, and which the parties agree to adopt;

(h) payment of compensation for personal injury or death caused by accident arising out of or in course of employment;

(i) where it is agreed that the services of any Pakistani seaman shall end at any port or place outside Pakistan, a stipulation to provide him either fit employment on board some other ship bound to the port or place at which he was engaged or to such other port or place in Pakistan as may be mutually agreed upon, or a passage free of charge to any such port or place; and

(j) stipulations relating to such other matters as may be prescribed.

(3) The agreement with the crew made under section 125 shall provide that in the event of a dispute arising outside Pakistan in respect of any matter touching the agreement, such dispute shall be referred to the Pakistan consular officer whose decision thereon shall be binding on the parties until the return of the ship to the port or place in Pakistan at which the seaman is to be discharged.

(4) the agreement with the crew made under section 125 shall be so framed as to admit of such stipulations, to be adopted at the will of the master and seamen in each case respecting the advance of wages or supply of warm clothing and similar other matters, as are not inconsistent with the provisions of any law for the time being in force relating to merchant shipping.

(5) If a master enters into an agreement with any seaman for a scale of provisions less than the prescribed scale he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

127. **Engagement in Pakistan of seamen for foreign ships**.— If the master, owner or agent of a foreign ship engages seamen from any port or place in Pakistan, it shall not be necessary for such seaman to enter into an agreement under section 125 of this Ordinance.

128. **Special provisions with regard to agreements with crew of Pakistani foreign-going ships.**—(1) The following provisions shall have effect with respect to the agreement with the crew made in Pakistan in the case of Pakistani foreign-going ships, namely :—

(a) The agreement shall, subject to the provisions of this Ordinance, as to substitute, be signed by each seamen in the presence of a Shipping Master;

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(b) the Shipping Master shall cause the agreement to be read over and explained to each seaman, in a language understood by him, or shall otherwise ascertain that each seaman understands the same before he signs it, and shall attest each signature;

(c) when the crew is first engaged, the agreement shall be signed in duplicate, and one part shall be retained by the Shipping Master, and the other part shall be delivered to the master, and shall contain a special place or form for the descriptions and signatures of substitutes or persons engaged subsequently to the first departure of the ship;

(d) when a substitute is engaged in the place of a seaman who has duly signed the agreement and whose services are lost, within twenty four hours of the ship's putting to sea by desertion, death, or other unforeseen cause, the engagement shall, if practicable, be made before a Shipping Master, and if not practicable, the master shall, before the ship puts to sea, if practicable, and, if not, as soon

afterwards as possible, cause the agreement to be read over and explained to the substitute, and the substitute shall thereupon sign the same in the presence of a witness who shall attest the signature;

(e) the agreement may be made for a voyage of the ship or, if the voyages of the ship average less than six months in duration, may, subject to the provisions of sub-section (2), be made to extend over two or more voyages; and agreements so made are in this Ordinance referred to as running agreements;

(f) on every return to a port or place in Pakistan before the final termination of a running agreement, the master shall discharge or engage before the Shipping Master at such port or place any seaman whom he is required by law so to discharge or engage, and shall upon every such return endorse on the agreement a statement that no such discharges or engagements have been made or are intended to be made before the ship leaves such port or place or, as the case may be, that all those made have been made as required by law; and

(g) the master shall deliver the running agreement so endorsed to the Shipping Master, and the Shipping Master shall. if the provisions of this Ordinance relating to agreements have been complied with, sign the endorsement and return the agreement to the master.

(2) A running agreement shall not extend beyond the expiration of the period of six months from the date on which it was executed, or beyond the first arrival of the ship at her port or place of destination in Pakistan after the expiration of that period, or beyond the discharge of cargo consequent upon such arrival, whichever of these dates shall be the latest:

Provided that no such agreement shall continue in force if, after the expiration of the period of six months from the date on which it was executed, the ship proceeds on a voyage from a port or place outside Pakistan to any other such port or place which is not on the direct route or a customary route to her port or place of destination in Pakistan:

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Provided further that every such agreement shall, in addition to any other particulars required by law, contain such stipulations, as the Federal Government may direct, for the discharge of the crew and payment of their wages for securing their return to the port or place at which they were shipped or to some other port or place in Pakistan, and for other purpose, on the termination of the agreement at a port or place outside Pakistan under the foregoing proviso.

(3) If any master wilfully makes a false statement in any such endorsement as is referred to in clause (f) of sub-section (1), he shall for each offence, be liable to a fine which may extend to ten thousand rupees.

129. **Renewal of running agreements in certain cases.**—(1) When a running agreement has been made with the crew of a foreign-going Pakistani ship and the ship arrives after the expiration of a period of six months from the date on which it was executed at a port or place of destination in Pakistan which is not the port or place at which the crew have agreed to be discharged, the master may, with the previous sanction of the Shipping Master, renew the agreement with the crew, or may be required by the Shipping Master so to renew the agreement for the voyage from such

port or place of destination to the port or place in Pakistan at which the crew have agreed to be discharged.

(2) If the master of the ship is required by the Shipping Master to renew the agreement as aforesaid and refuses so to renew it, any expenses which may be incurred by the Federal Government for the subsistence of the crew and their conveyance to the port or place at which they have agreed to be discharged shall be a charge upon the ship, and shall be recoverable as if they were expenses incurred in respect of distressed seamen under the provisions of this Ordinance.

130. **Special provisions as to agreements with crew of home trade or coasting ships.**—(1) The following provisions shall have effect with respect to the agreements with crew of home trade ships or coasting ships for which an agreement with the crew is required under this Ordinance, namely:—

(a) An agreement for service in a home-trade ship or a coasting ship for which an agreement is required by section 125, not being a ship engaged exclusively on the work of any harbour, pilotage or local authority, shall be made for a single ship and the crew engaged before a Shipping Master as provided in this Ordinance for foreign-going ships; and such agreement may be made to extend over two or more voyages so that it shall terminate either within six months of the date on which it was executed or on the first arrival of the ship at her port or place of destination in Pakistan after the expiry of that period or on discharge of cargo consequent upon such arrival, whichever of these dates shall be the latest:

Provided that if such agreement expires while the ship is not in a port or place in Pakistan, the agreement shall remain in force until the ship is again in such port or place;

(b) an agreement, if any, for service in coasting ship for which an agreement is not required by section 125 shall not extend beyond the next following the thirtieth day of June or the thirty-first day of December or the first arrival of the ship at her final port or place of destination in Pakistan after such date, or the discharge of cargo consequent on such arrival; and

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(c) an agreement for service in two or more coasting ships belonging to the same owner may be made by the owner instead of by a master and the provisions of this Ordinance with respect to the making of the agreement shall apply accordingly.

(2) Notwithstanding anything contained in clause (b) or clause (c), the owner of two or more coasting ships or his agent may enter into time agreements in the form sanctioned by the Federal Government with individual seaman to serve in any one or more such ship, belonging to such owner and such agreements may extend beyond the next following the thirtieth day of June or the thirty-first day of December.

131. **Changes in crew to be reported**.—(1) The master of every Pakistani ship the crew of which has been engaged before a Shipping Master shall, before finally leaving Pakistan, sign and send to the nearest Shipping Master a full and accurate statement in the form sanctioned by the Federal Government, of every change which takes place in his crew before finally leaving Pakistan, and that statement shall be admissible in evidence.

(2) Nothing in sub-section (1) shall be construed as enabling the master to engage, except in accordance with the other provisions of this Ordinance, any seaman as an additional member of the crew.

(3) If any master fails without any reasonable cause to comply with the requirement of sub-section (1), he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

132. **Certificates as to agreements with crew of foreign going and home trade ships.**—(1) In the case of a Pakistani foreign going ship or a Pakistani home trade ship, on the due execution of an agreement with the crew in accordance with this ordinance, and also when, in the case of a Pakistani foreign going ship, the agreement is a running agreement, on compliance by the master, before the second and every subsequent voyage made after the first commencement of the agreement with the provisions of this Ordinance respecting that agreement, the Shipping Master shall grant the master of the ship a certificate to that effect.

(2) The master of every such ship as aforesaid shall, before proceeding to sea, produce that certificate to the Customs Collector whose duty is to grant a port clearance.

(3) No Customs Collector shall clear any such ship outwards without production of such certificate; and, if any ship attempts to go to sea without a clearance, the Custom Collector may detain her until the certificate is produced.

(4) The master of such ship shall within forty-eight hours after the ship's arrival at the port or place where the crew is to be discharged deliver such agreement to a Shipping Master at that port or place; and the Shipping Master shall thereupon give to the master a certificate to that effect; and no Customs Collector shall clear any such ship in wards without the production of such certificate.

(5) If any master fails, without reasonable cause, to comply with any of the provisions of this section, he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

133. **Certificate as to agreement with crew of coasting ship**.—(1) The master or owner of a Pakistani coasting ship for which an agreement with the crew is required under this Ordinance shall, within twenty-one days after the thirtieth day of June and the thirty-first day of December in every year, or, if the ship is not at any port or place in Pakistan within that period, within forty-eight hours of her next arrival at a port or place in Pakistan, deliver to a Shipping Master in Pakistan every agreement made within the six months next preceding such days respectively.

(2) The Shipping Master on receiving such agreement shall give the master or owner of the ship a certificate to that effect; and no Customs Collector shall grant a port clearance for any such ship without production of the certificate, and if any such ship attempts to go to sea without such clearance, the Customs Collector may detain her until the certificate is produced.

(3) Any master or owner who fails, without reasonable cause, to comply with any of the provisions of this section shall, for each offence, be liable to a fine which may extend to five thousand rupees.

134. **Copy of agreement with crew to be made accessible to the crew.**—(1) The master shall, at the commencement of every voyage of engagement, cause a legible copy of the agreement with the crew and, if necessary, a translation thereof in a language understood by the majority of the crew (omitting the signatures), to be placed or posted up in such a part of the ship to be accessible to the crew.

(2) Any master who fails, without reasonable cause, to comply with the provisions of sub-section (1) shall, for each offence, be liable to a fine which may extend to five thousand rupees.

135. **Alteration in agreement with the crew**.—Every erasure, interlineations or alteration in any agreement with the crew (except additions made for the purpose of shipping substitutes or persons engaged subsequently to the first departure of the ship) shall be wholly inoperative, unless proved to have been made with the consent of all the persons interested in such erasure, interlineations or alteration by the written attestation, if made in Pakistan, of some Shipping Master, or, if made elsewhere, of a Pakistan consular officer.

136. **List of crew to be furnished to Shipping Master**.—(1) The master or owner of every Pakistani ship, not being a ship engaged exclusively on the work of any harbour, pilotage or local authority, and the master of every ship, other than a Pakistani ship, while in a port or place in Pakistan, shall make out and sign a list (in this ordinance referred to as the list of crew) in such form and containing such particulars as may be prescribed and different forms may be prescribed for different classes of ships.

(2) The list of crew relating to a ship, except a Pakistani coasting ship, shall be delivered to the Shipping Master at the port or place where the ship happens to be as soon after arrival as possible and before departure.

(3) The list of crew relating to a Pakistani coasting ship shall be delivered or transmitted by the master or owner to a Shipping Master in Pakistan or within twenty-one days after, the thirtieth day of June and the thirty-first day of December in each year; and the Shipping Master shall give to such master or owner a certificate of such delivery or transmission, and any such ship may be detained, and shall not be cleared in wards by the Customs Collector until the certificate is produced.

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(4) Any master or owner who fails, without reasonable cause to comply with any of the provisions of this section shall, for each offence, be liable to a fine which may extend to five thousand rupees.

137. **Power to prohibit engagement of specified Pakistani seamen**.— The Federal Government or an officer authorised by it in this behalf may, by order in writing, stating the reasons thereof, prohibit any person from engaging, in Pakistan or in any specified part thereof, any citizen of Pakistan or any person domiciled in Pakistan to serve as a seaman on any ship specified in such order.

138. **Power to board ships and muster seamen**.—(1) For the purpose of preventing seamen from being taken on board any ship at any port in Pakistan contrary to the provisions of this ordinance, any Shipping Master or Deputy Shipping Master may enter at any time on board any such ship upon which he has reason to believe that seamen have been shipped, and may muster and examine the seamen employed therein.

(2) If the master or any other person obstructs any Shipping Master or Deputy Shipping Master in the execution of his duty under this section, he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

139. **Forged seamen's service book**.— If any person who—

(a) forges any seamen's service book or certificate of physical fitness, or a copy of any such certificate; or

(b) fraudulently alters any entry in any seamen's service book or a certificate of physical fitness; or

(c) fraudulently uses any seamen's service book or a certificate of physical fitness which is forged or altered or does not belong to him, he shall, for each offence, be liable to a fine which may extend to fifty thousand rupees.

CHAPTER 10. —DISCHARGE OF SEAMEN

140. **Discharge of seamen before Shipping Master**.—(1) When a seaman serving in a foreign going ship or home trade ship is, on the termination of his engagement. discharged in Pakistan, he shall, whether the agreement with the crew be an agreement for the voyage or a running agreement, be discharged in the manner provided by this Ordinance in the presence of a Shipping Master.

(2) The provisions of sub-section (I) shall apply in relation to the discharge of seamen serving in any Pakistani coasting ship for which an agreement is required under this Ordinance as they apply in relation to the discharge of seamen serving in a foreign going ship or home trade ship:

Provided that this sub-section shall not apply where a seaman is discharged from a ship under an agreement made in accordance with section 128 for service in two or more ships for the purpose of being engaged in another ship to which the agreement relates.

(3) If the master or owner of a Pakistani coasting ship for which an agreement with the crew is not required under this ordinance so desires, the seamen of that ship may be discharged in the same manner as seamen discharged from a foreign going ship or home trade ship.

(4) If any master, or owner or owner's agent acts in contravention of any of the provisions of this section, he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

141. **Entries to be made in seamen's service book and return of certificates of competency to Officers on discharge**.—(1) If a seaman is discharged from a ship in Pakistan, either on his discharge or on payment of his wages, the master shall enter in the seamen's service book, discharge of the seaman under his signature and particulars specifying the period of the seaman's service and the date and place of his discharge.

(2) The master shall upon the discharge of every certificated officer whose certificate of competency has been delivered to, and retained, by him return the certificate to the officer.

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(3) If a master acts in contravention of sub-section (1), or fails, without reasonable cause, to return the certificate of competency to the officer concerned as required by sub-section (2), he shall for each offence, be liable to a fine which may extend to ten thousand rupees.

142. **Discharge of a seaman abroad.**—(1) When the master of a Pakistani ship discharges a seaman at any port or place outside Pakistan, except at a port or place in a country in which the seaman was engaged, the provisions of this Ordinance respecting the discharge of seaman in Pakistan shall apply subject to the following modifications, namely:—

(a) at a port or place having a Pakistani consular officer:—

(i) the master shall not discharge a seaman except with the previous sanction of the Pakistan consular officer endorsed on the agreement with the crew nor unless the law in force at such port or place prohibits it, otherwise than in the presence of that officer;

(ii) the Pakistan consular officer to whom an application is made for sanction under clause (i) shall examine the grounds on which the seaman is proposed to be discharged, and may grant or refuse sanction as he thinks just, but shall not unreasonably refuse such sanction; and

(iii) if a copy of the report as required by sub-section (1) of section 141 is endorsed on the seaman's continuous discharge certificate, the Pakistan consular officer shall verify the same; and

(b) at a port or place where there is no Pakistan consular officer the master may himself, if not contrary to any law in force in such port or place, discharge a seaman and shall, if the seaman so desires, endorse on his continuous discharge certificate the report as required by sub-section (1) of section 141.

(2) As soon as may be after a seaman has been discharged under sub-section (1), the master shall sign and send to the Shipping Master before whom the crew was engaged a full and accurate statement in the form sanctioned by the Federal Government of the seaman so discharged.

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(3) If a master acts in contravention of this section he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

143. **Discharge of seamen and apprentices on change of ownership**.—(1) Where a Pakistani ship is transferred or disposed of at any port or place outside Pakistan, every seaman and apprentice belonging to that ship shall be discharged at that port or place unless the seaman or apprentice consents in writing in the presence of the Pakistan consular officer to complete the voyage of the ship if continued.

(2) Where a seaman or apprentice is so discharged, the provisions of this Ordinance as to continuous discharge certificate and the repatriation of the seaman or apprentice to a proper return port shall apply as if the service of the seaman or apprentice had terminated otherwise than by the consent of the seaman to be discharged during the currency of the agreement.

144. **Transmission of documents on transfer of seaman from one ship to another.**—(1) Where a seaman is transferred under his agreement from one ship to another the master of the

ship from which the seaman is transferred shall, as soon as practicable, transmit to the master of the other ship all documents in his possession relating to the seaman.

(2) If the master fails, without reasonable cause, to comply with sub-section (1) he shall, for each offence, be liable to a, fine which may extend to five thousand rupees.

145. **Repatriation of seamen and apprentices on termination of service abroad.—**(1) When the service of a seaman or apprentice terminates, without the consent of the seaman or apprentice at a port or place outside Pakistan, and before the expiration of the period for which the seaman was engaged or the apprentice was bound, the master or owner of the ship shall, in addition to any other relative obligation imposed on either of them under this Ordinance, make adequate provision for the maintenance of the seaman or apprentice according to his rank or rating, and for the return of that seaman or apprentice to a proper return port.

(2) If the master or owner fails without reasonable cause to comply with sub-section (1), the expenses of maintenance and of the journey to the proper return port shall, if defrayed by the seaman or apprentice, be recoverable as wages due to him, and if defrayed by a Pakistan consular officer, be regarded as expenses failing within the provisions of sub-section (2) of section 181.

Explanation.—Inability to provide the said expenses shall not, for the purposes of this sub-section, be regarded as reasonable case.

146. **Leaving behind in Pakistan a seaman or apprentice shipped abroad.**—(1) The master of a ship shall not discharge at any port or place in Pakistan a seaman or apprentice shipped outside Pakistan unless he previously obtains sanction in writing of a Shipping Master, but such sanction shall not be refused when the seaman or apprentice is discharged on the expiration of the period for which the seaman was engaged or the apprentice was bound.

(2) Subject to the provisions of sub-section (1), the sanction may be given or refused at the discretion of the Shipping Master and whenever it is refused the reasons for so refusing it shall be recorded by him.

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147. **Leaving behind a seaman or apprentice by masters of Pakistani ships.**—(1) the Master of a Pakistani ship shall not leave a seaman or apprentice behind at any port or place outside Pakistan except where the seaman or apprentice is discharged in accordance with this Ordinance, unless he previously obtains from Pakistan consular officer a certificate endorsed on the agreement with the crew and stating the cause of the seaman or apprentice being left behind.

(2) The Pakistan consular officer to whom an application is made, for a certificate under which the seaman or apprentice is to be left behind, may grant or refuse the certificate as he thinks just.

(3) As soon as may be, after a seaman or apprentice is left behind under subsection (1), the master shall sign and send to the Shipping Master before whom the crew was engaged a full and accurate statement in the form sanctioned by the Federal Government of the seaman or apprentice so left behind.

(4) If a master acts in contravention of any of the provisions of this section, he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

148. **Wages and other property of seaman or apprentice left behind Pakistani ships abroad.**—(1) If a seaman or apprentice belonging to a Pakistani ship is left behind at any port or place outside Pakistan, the master of the ship shall enter in the official log book a statement of the amount due to the seaman or apprentice in respect of wages at the time when he was left behind and of all property left on board by him, and shall take such property into his charge.

(2) Within forty-eight hours after the arrival at the port in Pakistan at which the voyage terminates, the master shall deliver to the Shipping Master—

(a) a statement of the amount due to the seaman or apprentice in respect of wages, and of all property left on board by him; and

(b) a statement, with full particulars, of any expenses that may have been caused to the master or owner of the ship by the absence of the seaman or apprentice, where the absence is an offence punishable under section 204: and if required by the Shipping Master to do so shall furnish such vouchers as are reasonably required to verify the statements.

(3) The master shall at the time when he delivers the statements referred to in sub-section (2) to the Shipping Master also deliver to him the amount due to the seaman or apprentice in respect of wages and the property that was left on board by him, and the Shipping Master shall give to the master a receipt therefor in the prescribed form.

(4) The master shall be entitled to be reimbursed out of the wage, or property referred to in clause (a) of sub-section (2) such expenses shown in the statement referred to in clause (b) of that sub-section as appear to the Shipping Master to be properly chargeable.

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CHAPTER 11. —WAGES OF SEAMEN

(A) PAYMENT OF WAGES

149. **Master to deliver account of wages**.—(1) The Master of every ship shall, before paying off or discharging a seaman under this Ordinance, deliver at the time and in the manner provided by this Ordinance a full and true account in a form sanctioned by the Federal Government of the seaman wages and of all deductions to be made therefrom on any account whatever.

(2) The said account shall be delivered—

(a) where the seaman is not discharged before Shipping Master, to the seaman himself not less than twenty-four hours before his discharge or payment off; and

(b) where the seaman is to be discharged before the Shipping Master, either to the seaman himself, at or before the time of his leaving the ship, or to the Shipping Master not less than twenty-four hours before the discharge or payment off.

(3) If the master of a ship fails, without reasonable cause, to comply with this section, he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

150. **Deduction from wages of seamen.**—(1) A deduction from the wages of a seaman shall not be allowed unless it is included in the account delivered in pursuance of this Ordinance except in respect of a matter happening after the delivery.

(2) The master shall, during the voyage, enter the various matters in respect of which the deductions are made, with the amount of the respective deductions as they occur in a book to be kept for that purpose, and shall, if required, produce the book at the time of the payment of wages and also upon the hearing before any competent authority of any complaint or question relating to that payment.

151. **Disrating of seamen.—**(1) Where the master of a ship disrates a seaman, he shall forthwith enter or cause to be entered in the official log-book a statement of the disrating, and furnish the seaman with a copy of the entry; and any reduction of wages consequent on the disrating shall not take effect until the entry has been so made and the copy so furnished.

(2) Any reduction of wages consequent on the disrating of a seaman shall be deemed to be a deduction from wages within the meaning of sections 149 and 150.

152. **Deductions on account of provident fund, etc.**—(1) Notwithstanding anything contained elsewhere in this Ordinance, or in any other law for the time being in force, a deduction may be made from the wages of a seaman either monthly or at the end of a voyage as applicable in each case, on account of provident fund, pension, social insurance, gratuity or any other fund approved by the Federal Government for the purpose.

(2) The Federal Government may make rules with regard to the manner in which the deductions from the wages may be made and the amount of such deductions for the purposes of such fund, and the collection, deposit, withdrawal, administration, disbursement, expenditure and other ancillary matters relating thereto.

153. **Payment of wages before Shipping Master.**—(1) Where a seaman is discharged before a Shipping Master in Pakistan, the master or owner of the ship shall pay the wages of the seaman through, or in the presence of, the Shipping Master unless a competent court otherwise directs; and in such a case, if the master or owner pays the wages in the other manner, he shall be liable to a fine which may extend to ten thousand rupees.

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(2) If the master or owner, of a home-trade ship of a gross tonnage of less than two hundred, so desires he may pay the wages of the seaman of that ship in the same manner as a seaman discharged from a foreign-going ship is paid.

154. **Time of payment of wages**.—(1) The master or owner of every ship discharging a seaman under this Ordinance shall pay to every seaman his wages within five days of the seamen's discharge and the seaman shall at the time of his discharge, be entitled to be paid on this account a sum equal to his balance or wages due to him.

(2) If the seaman consents, the final settlement of his wages may be left to the Shipping Master, and the receipt of the Shipping Master shall in that case operate as if it were a release given by the seaman in accordance with this Chapter.

(3) In the event of the seaman's wages or any part thereof not being settled under sub-section (2), then unless the delay is due to the act or default of the seaman or to any

reasonable dispute as to liability or to any other cause not being the wrongful act or default of the owner or master, the seamen's wages shall continue to run and be payable until the time of the final settlement thereof.

(4) If the Master or owner, except in a case where final settlement of wages is left to a Shipping Master under sub-section (2), fails, without reasonable cause, to make payment as required by sub-section (1), he shall pay to the seaman such sum not exceeding the amount of two days' pay for each of the days during which the payment is delayed the Shipping Master may, in each case, decide.

(5) Any sums payable under sub-section (4) may be recovered as wages.

155. **Settlement of wages**.—(1) Where a seaman is discharged and the settlement of his wages completed before a Shipping Master, he shall sign in the presence of the Shipping Master a release in a form sanctioned by the Federal Government of all claims in respect of the past voyage or engagement, and the release shall also be signed by the master or owner of the ship and attested by the Shipping Master.

(2) The release so signed and attested shall be retained by the Shipping Master and shall operate as a mutual discharge and settlement of all demands between the parties thereto in respect of the past voyage or engagement.

(3) A copy of the release, certified under the hand of the Shipping Master to be a true copy, shall, on payment of the prescribed fee, be given by him to any party thereto requiring the same, and such copy shall be receivable in evidence upon any future question touching such claims, and shall have all the effect of the original of which it purports to be a copy.

(4) Where the settlement of a seaman's wages is by this Ordinance required to be completed through or in the presence of, a Shipping Master, no payment, receipt or settlement made otherwise than in accordance with this Ordinance shall operate or be admitted as evidence of the release or satisfaction of any claim.

(5) Upon any payment being made by a master before a Shipping Master, the Shipping Master shall, if required, sign and give to the master a statement of the whole amount so paid, and this statement shall, as between the master and his employer, be admissible as evidence that the master has made the payments therein mentioned.

(6) Notwithstanding anything contained in the preceding sub-sections a seaman may except from the release signed by him, any specified claim or demand against the master or owner of the ship, and a note of any claim or demand so excepted shall be entered upon the release; and the release shall not operate as a discharge and settlement of any claim or demand so noted, nor shall sub-section (4) apply to any payment, receipt or settlement made with respect to any such claim or demand.

156. **Decision of disputes by Shipping Master**.—(1) Where under the agreement with the crew any dispute arises at any port in Pakistan between the master, owner or agent of a ship and any of the crew of the ship, it shall be submitted to the Shipping Master-

(a) where the amount in dispute does not exceed five thousand rupees, at the instance of either party to the dispute; and

(b) in any other case, if both parties to the dispute agree in writing to submit the dispute to the Shipping Master.

(2) The Shipping Master shall hear and decide the dispute so submitted and an award made by him upon the submission shall be conclusive as to the rights of the parties, and any document purporting to be such submission or award shall be *prima face* evidence thereof:

Provided that if, in any case, the Shipping Master is of opinion that any question of law is involved he may refer the case for opinion of the High Court.

(3) An award made by a Shipping Master under this section may be enforced by a Magistrate in the same manner as an order for the payment of wages made by a Magistrate under this Ordinance.

(4) Nothing in the Arbitration Act, 1940 (X of 1940), shall apply to any matter submitted to a Shipping Master for decision under this section.

157. **Power of Shipping Master to require production of ship's papers.**—(1) In any proceedings under this Ordinance before a Shipping Master relating to the wages, claims or discharge of a seaman, the Shipping Master may require the owner or his agent or the master or any mate or other member of the crew to produce any log-books, papers, or other documents in his possession or power relating to any matter in question in the proceedings, and may require the attendance of, and examine on the matter, any of those persons being then at or near the place.

(2) If any person so required fails, without reasonable cause, to comply with the requisition, he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

158. **Rate of exchange for payment of seamen in Pakistan**.—Where a seaman or apprentice has agreed with the master of a ship for payment of his wages in Pakistan or other currency, and payment of or on account of, his wages, if made in any currency other than that stated in the agreement shall, notwithstanding anything in the agreement, be made at the rate of exchange for the time being current at the place where the payment is made.

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(B) RIGHTS OF SEAMEN IN RESPECT OF WAGES

159. **Right to wages and provisions**.—A seaman's right to wages and provisions shall be taken to begin either at the time at which he commences work or at the time specified in the agreement for his commencement of work or presence on board, whichever first happens.

160. **Wages not to depend on freight**.—(1) The right to wages shall not depend on the earning of freight, and every seaman and apprentice who would be entitled to demand and recover any wages if the ship in which he has served had earned freight, shall, subject to all other rules of law and conditions applicable to the case, be entitled to demand and recover the same notwithstanding that freight has not been earned; but in all cases of wreck or loss of the ship, proof that the seaman has not exerted himself to the utmost to save the ship, cargo and stores shall bar his claim to wages.

(2) Where a seaman or apprentice who would but for death be entitled by virtue of this section to demand and recover any wages dies before the wages are paid, they shall be paid and

applied in manner provided by this Ordinance with respect to the wages of a seaman who dies during a voyage.

161. **Wages on termination of service by wreck, illness, etc.**—(1) Where the service of any seaman engaged under this Ordinance terminates before the date contemplated in the agreement by reason of the wreck, loss or abandonment of the ship or by reason of his being left on shore at any place outside Pakistan under a certificate granted under this Ordinance of his unfitness or inability to proceed on the voyage, the seaman shall be entitled to receive,—

(a) in the case of wreck, loss or abandonment of this ship,—

(i) wages at the rate to which he was entitled at the date of termination of his service for the period from the date his service is so terminated until he is returned to and arrives at a proper return port, or for a period of one month, whichever be longer; and

(ii) compensation for the loss of his effects,—

(a) in the case of a seaman employed on a home-trade ship, of not less than one month's wages; and

(b) in the case of seaman employed on a foreign going ship, of not less than three month's wages; and

(b) in the case of unfitness or inability to proceed on the voyage, wages for the period from the date his service is terminated until he is returned to and arrives at a proper return port subject to such limits as may be prescribed.

(2) A seaman shall not be entitled to receive any wages under sub-clause (i) of clause (a) of sub-section (1) if he declines to avail himself of the repatriation arrangements made by, or on behalf of, the owner and approved by the Pakistan consular officer concerned, nor shall a seaman be entitled to receive such wages in respect of any period during which—

(a) he was, or could have been suitably employed, or

(b) through negligence he failed to apply to the proper authority for relief as a distressed or destitute seaman.

(3) This section shall apply to every person employed or engaged in any capacity on board any ship and for the time being entered on the ship's articles of agreement and to every master, pilot and apprentice, as it applies to a seaman.

162. **Wages not to accrue during refusal or imprisonment.—** A seaman or apprentice shall not be entitled to wages for any time during which he unlawfully refuses or neglects to work when so required nor, unless the Court hearing the case otherwise directs, for any period during which he is lawfully imprisoned for any offence committed by him.

163. **Compensation to seamen.—** If a seaman having signed an agreement is discharged otherwise than in accordance with the terms thereof before the commencement of the voyage or before one month's wages are earned, without fault on his part justifying that discharge and without his consent, he shall be entitled to receive from the master or owner, in addition to any wages he

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may have earned, due compensation for the damage caused to him by the discharge not exceeding one month's wages, and may recover that compensation as if it were wages duly earned.

164. **Restriction on sale of and charges upon wages**.—(1) As respects wages due or accruing to a seaman or apprentice—

(a) they shall not be subject to attachment by order of any Court;

(b) an assignment or sale thereof made prior to the accruing thereof shall not bind the person making the same;

(c) a power-of-attorney or authority for the receipt thereof shall not be irrevocable; and

(d) a payment of wages shall be valid in law notwithstanding any previous sale or assignment of those wages or any attachment or encumbrance thereof.

(2) The provisions of clauses (b) and (c) of sub-section (1) shall not apply to so much of the wages of a seaman as have been or are hereafter assigned by way of contribution to any fund approved in this behalf by the Federal Government, the main purpose of which is the provision of benefits for seamen on retirement; and the provisions of clauses (a) and (d) of sub-section (1) shall not apply to anything done or to be done for giving effect to such an assignment.

(3) Nothing in this section shall affect the provisions of this Ordinance or any other law for the time being in force with respect to allotment notes.

165. **Summary proceedings for wages**.—A seaman or apprentice or a person duly authorised on his behalf may, as soon as any wages due to him become payable, use for the same in a summary manner before any magistrate exercising jurisdiction in or near the place at which his service has terminated or at which he has been discharged or at which any person upon whom the claim is made is or resides, and the order made by the magistrate in the matter shall be final.

166. **Restrictions on suits for wages.—** A proceeding for the recovery of wages shall not be instituted by, or on behalf of, any seaman or apprentice in any Civil Court—

(a) where the owner of the ship is adjudged bankrupt or declared insolvent;

(b) where the ship is under arrest or is sold by the authority of any Court; or

(c) where a Magistrate under the authority of this Ordinance refers a claim to the Court.

(C) ADVANCES AND ALLOTMENT OF WAGES

167. **Advances and allotments**.—(1) Any agreement with the crew may contain a stipulation for payment to a seaman, conditional on his going to sea in pursuance of the agreement, of a sum not exceeding the amount of one month's wages payable to the seaman under the agreement.

(2) Stipulations for the allotment of a seaman's wages may be made in accordance with this Ordinance.

(3) Save as aforesaid an agreement by or on behalf of the employer of a seaman for the payment of money to or on behalf of the seaman conditional on his going to sea from any port in Pakistan shall be void, and no money paid in satisfaction or in respect of any such agreement shall be deducted from the seaman's wages and a person shall not have any right of action, suit or set-off against the seaman or his assignee in respect of any money so paid or purporting to have been so paid.

(4) No seaman, who has been lawfully engaged and has received under his agreement an advance payment shall, wilfully or through misconduct, fail to attend his ship or desert therefrom before the payment becomes really due to him.

(5) Where it is shown to the satisfaction of the Shipping Master that a seaman lawfully engaged has wilfully or through misconduct failed to join the ship, the Shipping Master may withhold any of the seaman's certificate of discharge for such period as he may think fit, and while a seaman's certificate of discharge is so withheld, the Shipping Master may refuse to furnish copies of any such certificate or certified extracts therefrom.

168. **Stipulations as to allotment notes.**—(1) Any stipulation made by a seaman at the commencement of a voyage for the allotment of any part of his wages during his absence shall be inserted in the agreement with the crew, and shall state the amounts and times of the payments to be made.

(2) A seaman may require that a stipulation be inserted in the agreement for the allotment, by means of an allotment note, of any part, not exceeding two-thirds, of his wages in favour either of a relative of the seaman, or some member of his family, or a Saving Bank or a fund approved by the Federal Government, to be named in the note.

(3) Allotment notes shall be in the form as the Federal Government may prescribe.

169. **Payment of sums allotted**.—(1) The owner or any agent who has authorised the drawing of an allotment note shall pay or remit to the persons nominated in this behalf by the seaman the amount mentioned in such note, and inform the Shipping Master that this has been done.

(2) If any owner or agent fails to pay, or remit as aforesaid, any such amount the Shipping Master shall demand the sums due under the allotment note and if the owner or agent fails to pay such sums to the Shipping Master, the Shipping Master may sue for and recover the same with costs:

Provided that no such sum shall be recoverable if it is shown to the satisfaction of the Court or Magistrate trying the case that the seaman has forfeited or ceased to be entitled to the wages out of which the allotment was to have been paid, but the seaman shall be presumed to be duly earning his wages unless the contrary is shown to the satisfaction of the Court or Magistrate either by the official statement of the change in the crew caused by his absence made and signed by the master as by this Ordinance is required, or by a certified copy of some entry in the official log-book to the effect that he has died or left the ship, or by a credible letter from the master of the ship

to the same effect, or by such other evidence, of whatever description, as the Court or Magistrate may consider sufficient.

(3) The Shipping Master on receiving any such sum as aforesaid shall pay it over to the person, bank or fund named in that behalf in the allotment note.

(4) All such receipts and payment shall be entered in a book to be kept for the purpose, and all entries in the said book shall be authenticated by the signature of a Shipping Master.

(5) The said book shall, at all reasonable times be open to the inspection of the parties concerned.

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CHAPTER 12. —PROPERTY OF DECEASED SEAMEN

170. **Master to take charge of the effects of deceased seaman.**—(1) If any seaman or apprentice engaged on any ship, the voyage of which is to terminate in Pakistan, dies during that voyage, the master of the ship shall immediately report the death to the Shipping Master at the port of engagement of the seaman and take charge of any money or effects belonging to the seaman or apprentice which are on board the ship.

(2) The master may, if he thinks fit, cause any effects to be sold by public auction.

(3) The master shall enter in the official log-book the following particulars, namely:

(a) A Statement of the amount of money and description of the effects;

(b) in the case of a sale, a description of each article sold and the sum received for each; and

(c) a statement of the sum due to the deceased for wages and of the amount of deduction, if any, to be made from the wages.

(4) The said money, effects, proceeds of sale of effects and balance of wages are in this Ordinance referred to as the property of the seaman or apprentice.

171. **Disposal of property of seaman who dies during the voyage.**—(1) Where a seamen or apprentice dies as aforesaid and the ship, before coming to a port in Pakistan, touches and remains for more than forty-eight hours at some port elsewhere the master shall report the case to the Pakistan consular officer at such port and shall give to that officer any information he requires as to the destination of the ship and probable length of the voyage.

(2) The Pakistan consular officer may, if he thinks it expedient require the property of the seaman or apprentice to be delivered and paid to him and shall thereupon give to the master a receipt thereof and endorse under his hand upon the agreement with the crew such particulars with respect thereto as the Federal Government may require.

(3) The receipt shall be produced by the master to the Shipping Master within forty-eight hours after his arrival at his port of destination in Pakistan.

(4) Where a seaman or apprentice dies as aforesaid and the ship proceeds at once to a port in Pakistan without touching and remaining as aforesaid at a port elsewhere or the Pakistan consular

officer does not require the delivery and payment of the property as aforesaid the master shall, within forty-eight hours after his arrival at his port of destination in Pakistan, pay and deliver the property to the Shipping Master at that port.

(5) A deduction claimed by the master in such account shall not be allowed unless verified by an entry in the official log-book, and also by such vouchers, if any, as may be reasonably required by the Shipping Master.

(6) A Shipping Master in Pakistan shall grant to a master, upon due compliance with such provisions of this section as relate to acts to be done at the port of destination, a certificate to that effect.

172. **Liability of master in respect of property of deceased seamen, etc.**—(1) If the master fails to comply with the provisions of this Ordinance with respect to taking charge of the property of a deceased seamen or apprentice, or to making in the official logbook the proper entries relating thereto, or to the payment or delivery of such property, he shall, notwithstanding any penalty to which he may be liable under this Ordinance, be accountable for the property to the Shipping Master as aforesaid and shall pay and deliver the same accordingly; and shall in addition be punishable, for each offence, with fine not exceeding three times the value of the property not accounted for or, if such value is not ascertained, with fine which may extend to ten thousand rupees.

(2) The property may be recovered in the same Court and manner in which the wages of seamen may be recovered under this Ordinance.

173. **Property of deceased seamen left abroad but not on board ship.—** If any seaman or apprentice on a Pakistani ship, or engaged in Pakistan on any other ship, the voyage of which is to terminate in Pakistan, dies at any place outside Pakistan leaving any money or effects not on board the ship, the Pakistan consular officer at or near the place shall claim and take charge of such money and other effects, hereinafter referred to as the property of a deceased seaman or apprentice.

174. **Dealing with property of deceased seamen**.—(1) A Pakistani consular officer or a Shipping Master to whom the effects of a deceased seaman or apprentice are delivered or who takes charge of such effects under this Ordinance may, if he thinks fit, sell the effects and the proceeds of any such sale shall be deemed to form part of the property of the deceased seaman or apprentice.

(2) Before selling any valuables comprised in the said effects, such officer or Shipping Master shall endeavor to ascertain the wishes of the next-of-kin of the deceased seaman or apprentice as to the disposal of such valuables and shall, if practicable and lawful, comply with such wishes.

(3) A Pakistan consular officer to whom any property of a deceased seaman or apprentice is delivered or who takes charge of any such property under this Ordinance, shall remit the property to the Shipping Master at the port of engagement of the deceased seaman or apprentice in such manner and shall render such accounts in respect thereof as may be prescribed.

175. **Recovery of wages, etc., of seamen lost with their ship.**—(1) Where a seaman or apprentice is lost with the ship to which he belongs, the Federal Government or such officer as

the Federal Government may appoint in this behalf, may recover the wages and the compensation due to him from the owner, master or agent of the ship in the same Court and in the same manner in which seaman's wages are recoverable, and shall deal with these wages in the same manner as with the wages and compensation due to other deceased seamen or apprentices under this Ordinance.

(2) In any proceeding for the recovery of the wages and compensation, if it is shown by some official records or by other evidence that the ship has, twelve months or upwards before the institution of the proceeding, left any port, she shall, unless it is shown that she has been heard of within twelve months after the departure, be deemed to have been lost with all hands on board either immediately after the time she was last heard of or at such later time as the Court hearing the case may think probable.

(3) Any duplicate agreement or list of the crew made out, or statement of a change of the crew delivered under this Ordinance at the time of last departure of the ship from Pakistan, or a certificate purporting to be a certificate from a Pakistan consular officer at any port of Pakistan, stating that certain seamen or apprentices were shipped in the ship from the said port shall be, in the absence of proof to the contrary, sufficient proof that the seaman or apprentices therein named as belonging to the ship were on board at the time of the loss.

176. **Property of seamen dying in Pakistan**.—If a seaman or apprentice dies in Pakistan and is at the time of his death entitled to claim from the master or owner of the ship in which he has served any effects or unpaid wages, the master, owner or agent shall pay and deliver or account for such property to the Shipping Master at the port where the seaman or apprentice was discharged or was to have been discharged or to such other officer as the Federal Government may direct.

177. **Payment over property of deceased seamen be Shipping Master.—**Where any property of a deceased seaman or apprentice is paid or delivered to a Shipping Master, the Shipping Master after deducting for expenses incurred in respect of that seaman or apprentice or of his property such sums as he thinks proper to allow, may—

(a) pay and deliver the residue to any claimants who can prove themselves to the satisfaction of the said Shipping Master to be entitled thereto, and the said Shipping Master shall be thereby discharged from all further liability in respect of the residue so paid or delivered; or

(b) if he thinks fit so to do, require probate or letters of administration or a certificate under the Succession Act, 1925 (XXXIX of 1925), to be taken out, and thereupon pay and deliver the residue to the legal representative of the deceased.

178. **Disposal of unclaimed property of deceased seamen.**—(1) Where no claim to the property of a deceased seamen or apprentice received by a Shipping Master is substantiated within one year from the receipt thereof by such Shipping Master, the Shipping Master shall cause such property to be sold and pay the proceeds of the sale into the public treasury.

(2) If, after any money has been so paid into the public treasury, and claim is made thereto, then if the claim is established to the satisfaction of the Shipping Master, the amount, or so much as shall appear to be due to the claimant, shall be paid to him and if the claim is not so established, it shall be rejected and the claimant may thereupon apply by petition to the High Court which shall, after taking evidence either orally or on affidavit make such order on the petition as shall seem just:

Provided that, after the expiration of six years from the receipt of such property by the Shipping Master, no claim to such property shall be entertained by the Shipping Master without the sanction of the Federal Government.

CHAPTER 13. —DISTRESSED SEAMEN

179. **Application of Chapter to apprentices**.— This Chapter shall apply to apprentices as it applies to seamen.

180. **Power to make rules with respect to distressed seamen.—**The Federal Government may make rules with respect to the relief, maintenance and return to a proper return port of a shipwrecked seamen found in distress at any place in or out of Pakistan, and with respect to the circumstances in which and the conditions subject to which, seamen may be relieved and provided with passages, and generally for carrying out the purposes of this Chapter; and a distressed seaman shall not have any right to be relieved, maintained or sent to a proper return port except in the cases and to the extent and on the conditions as may be prescribed.

181. **Relief and maintenance of distressed seamen**.—(1) The Pakistan consular officer at or near the place outside Pakistan where a seaman is in distress shall, on application being made to him by or on behalf of the distressed seaman, provide in accordance with rules made in this behalf for the return of the seaman to a proper return port and also for his necessary clothing and maintenance until his arrival at such port.

(2) Where any expenses, other than excepted expenses are incurred by or on behalf of the Federal Government on account of a distressed seaman either for his maintenance, necessary clothing, conveyance to a proper return port, or in case of death, for his burial or otherwise in accordance with this Ordinance, those expenses, together with the wages, if any, due to the seaman, shall be a charge upon the ship, whether a Pakistani ship or not, to which the distressed seaman belonged, and shall be a debt due to the Federal Government from the master of the ship or from the owner of the ship for the time being, or, where the ship has been lost, from the person who was the owner of the ship at the time of the loss, or where the ship has been transferred to some person not being a citizen of Pakistan, either from the owner for the time being or from the person who was the owner of the ship at the time of the transfer, and also, if the ship be a ship other than a Pakistani ship, from the person, whether principal or agent, who engaged the seaman for service in the ship.

(3) All excepted expenses incurred by, or on behalf of, the Federal Government in accordance with the provisions of this Ordinance shall constitute a debt due to the Federal Government for which the seaman in respect of whom they were incurred and the owner or agent of the ship to which that seaman belonged at the time of his discharge or other event which resulted in his becoming a distressed seaman shall be jointly and severally liable; and the owner or agent shall be entitled to recover from the seaman any amount paid by the owner or agent to the Federal Government in settlement or part settlement of such debt, and may apply to the satisfaction of his claim so much as may be necessary of any wages due to the seaman.

(4) All excepted expenses incurred in accordance with the provisions of this Ordinance in respect of any distressed seaman by the owner or agent of the ship to which the seaman belonged at the time of his discharge or other event which resulted in his becoming a distressed seaman shall constitute a debt due to the owner or agent for which the seaman shall be liable; and the owner or

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agent may apply to the satisfaction of his claim so much as may be necessary of any wages due to the seaman, but shall not be entitled to recover from the seaman any repatriation expenses other than excepted expenses.

(5) In any proceedings for the recovery of any expenses which in terms of sub-section (2) or sub-section (3) are a debt due to the Federal Government, the production of an account of the expenses and proof of payment thereof by, or on behalf of, or under the direction of, the Federal Government shall be *prima facie* evidence that the expenses were incurred in accordance with the provisions of this Ordinance by or on behalf of the Federal Government.

(6) Any debt which may be due to the Federal Government under this section may be recovered by any officer authorised by it in writing in this behalf from the person concerned in the same manner in which wages may be recovered by seamen.

(7) For the purpose of this section, "excepted expenses" are expenses incurred in cases where the certificate of the proper authority obtained on leaving a seaman behind states, or the Federal Government is otherwise satisfied, that the cause of the seaman being left behind is desertion, disappearance, imprisonment for misconduct, or discharge from the ship on the ground of misconduct, or otherwise due to the fault of the seamen.

182. **Mode of providing for return of seamen to proper port**.—(1) A seaman may be sent to a proper return port by reasonable route either by sea or land or if necessary by air or partly by any one and partly by any other of these modes.

(2) Provision shall be made for the return of the seaman as to the whole of the route if it is by sea, or as to any part of the route which is by sea by placing the seaman on board a Pakistani ship which is in want of men to make up its complement, or, if that is not practicable, by providing the seaman with a passage in any ship, whether a Pakistani ship or not, or with the money for his passage and, as to any part of the route which is by land or air, by paying the expenses of his journey and of his maintenance during the journey or providing him with means to pay those expenses.

(3) Where the master of a ship is required under this Chapter to provide for the return of a discharged seaman to a proper return port, the master may, instead of providing the seamen's passage or the expenses of his journey or of providing the seamen with means to pay his passage or those expenses, deposit with the Pakistan consular officer such sum as that officer considers sufficient to defray the expenses of the return of the seaman to a proper return port.

183. **Receiving distressed seamen on ships.**—(1) The master of a Pakistani ship shall receive on board his ship and afford passage and maintenance to all distressed seamen whom he is required by the Pakistan consular officer or the Shipping Master to take on board his ship, and shall during the passage provide every such distressed seaman with accommodation equal to that normally provided for the crew of the ship and subsistence proper to the rank or rating of the said distressed seaman:

Provided that the master of the ship shall not be required to receive on board his ship a distressed seaman in terms of this section if the Pakistan consular officer or the Shipping Master is satisfied that accommodation is not and cannot be made available for such seaman.

(2) If the master of any such ship, when required so to do under sub-section (1), fails or refuses to receive on board his ship, or to give a passage or subsistence to, or to provide for, a distressed seaman, he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

184. **Pakistan Consular officer of Shipping Master to decide return port to or route by which seaman is to be sent.—**If in any case question arises as to what return port a seaman is to be sent to or as to the route by which he should be sent, it shall be decided by the Pakistan consular officer or the Shipping Master, as the case may be, supervising the repatriation and in deciding any such question regard shall be made both to the convenience of the seaman and to the expense involved, and also, where that is the case, to the fact that a Pakistani ship which is in want of men to make up its complement is about to proceed to a proper return port.

185. **Provisions as to taking distressed seamen on ships**.—(1) Where a distressed seaman is for the purpose of his return to a proper return port placed on board a Pakistani ship, the Pakistan consular officer or the Shipping Master by whom the seaman is so placed shall endorse on the agreement with the crew of the ship particulars of the seaman so placed on board.

(2) On the production of a certificate signed by the Pakistan consular officer or the Shipping Master, as the case may be, by whose directions distressed seamen were received on board, specifying the number and the names of the distressed seamen and the time when each of them was received on board, and on a declaration made by the master stating the number of days during which each distressed seaman has received subsistence, the full complement of his crew and the actual number of seamen employed on board his ship and every variation in that number, whilst the distressed seamen received maintenance, the master shall be entitled to be paid in respect of the subsistence and passage of every seaman so conveyed and provided for by him, exceeding the number, if any, wanted to make up the complement of his crew, such sum for each day as the Federal Government may, by rules made in this behalf, allow.

186. **What shall be evidence of distress**.—In any proceeding under this Chapter, a certificate of the Federal Government, or of such officer as the Federal Government may specify in this behalf, to the effect that the seaman named therein is distressed shall be conclusive evidence that such seaman is a distressed seaman within the meaning of this Ordinance.

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CHAPTER 14. —PROVISIONS AND ACCOMMODATION FOR SEAMEN AND THEIR HEALTH

187. **Ships to have sufficient provisions and water**.—(1) All Pakistani ships and all ships for which seamen have been engaged in Pakistan shall have on board sufficient provisions and water of good quality and fit for the use of the crew according to the scale specified in the agreement with the crew.

(2) If any person making an inspection under section 197 finds that provisions or water are of bad quality and unfit for use or deficient in quantity, he shall signify it in writing to the master of the ship, and may, if he thinks fit, detain the ship until the defects are remedied to his satisfaction,

(3) If the master does not thereupon provide other proper provisions or water in lieu of any provisions so signified to be of bad quality and unfit for use, or does not procure the requisite quantity of any provisions or water so signified to be deficient in quantity or uses any provisions

or water so signified to be of bad quality and unfit for use, he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

(4) The person making the inspection shall enter a statement of the result of the inspection in the official log-book, and shall, if he is not the Shipping Master, send a report thereof to the Shipping Master and that report shall be admissible in evidence in any legal proceeding.

(5) If the inspection was made in pursuance of a request by members of the crew and the person making the inspection certifies in the statement of the result of the inspection that there was no reasonable ground for the request, every member of the crew who made the request shall be liable to forfeit to the owner out of his wages a sum not exceeding one week's wages.

(6) If a master fails to furnish provisions to a seaman in accordance with the agreement entered into by him and the court considers the failure to be due to the neglect or default of the master, or if a master furnishes to a seaman provisions which are bad in quality or unfit for use, such master shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

(7) Nothing in sub-section (6) shall affect any claim for compensation under section 188.

188. **Allowance for short or bad provisions**.—(1) In either of the following cases.—

(a) if, during the voyage, the allowance of any of provisions for which a seaman has by his agreement stipulated is reduced, or

(b) if it is shown that any of those provisions are or have during the voyage been bad in quality or unfit for use;

the seaman shall receive by way of compensation for that reduction or bad quality according to the time of its continuance such sums as may be prescribed, to be paid to him in addition to, and to be recoverable as, wages.

(2) If it is shown to the satisfaction of the Court before which the case is tried that any provisions, the allowance of which has been reduced, could not be procured or supplied in proper quantity and equivalent substitutes were supplied in liue thereof, the Court shall take those circumstances into consideration and modify or refuse the compensation as the justice of the case requires:

Provided that, if the amount of compensation claimed does not exceed five hundred rupees in respect of any one seaman, the Shipping Master may, on application of either party settle the compensation as if it were a dispute submitted to him under section 156 and the decision of the Shipping Master in the matter shall be final.

189. **Pakistani foreign going ships to carry duly certificated cooks**.—(1) Every Pakistani foreign-going ship going to sea from any port or place in Pakistan shall be provided with and carry a duly certificated cook.

(2) A cook shall not be deemed to be duly certificated within the meaning of this section unless he is the holder of a certificate of competency in cooking granted by or under the authority of, or recognised by, the Federal Government on such terms and conditions as may be prescribed in this behalf.

190. **Medicines to be provided and kept on board certain ships.**—(1) All Pakistani foreign-going ships and all home-trade ships shall have always on board a sufficient supply of medicines and appliances suitable for diseases and accidents likely to happen on sea voyages according to such scale as the Federal Government may, from time to time, by notification in the Official Gazette, fix in respect of a ship or class of ships.

(2) Every such ship shall also carry such medical guide containing instructions for dispensing the medicines and using the appliances as may be approved by the Federal Government.

(3) The Federal Government may, by notification in the Official Gazette, make rules for the proper maintenance and care of medicines chests, their contents and their regular inspection.

(4) The master of a ship in respect of which the provisions of this section or of any rules made thereunder are contravened shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

191. **Certain ships to carry medical officers.**—(1) Every foreign-going ship, on hundred persons (including the crew) or upwards, shall have on board as part of her complement a medical officer possessing such qualifications as may be prescribed.

(2) If any such ship does not carry on board a duly qualified medical officer the ship shall be detained until such medical officer is provided.

(3) Nothing in this section shall apply to any special trade passenger ship including a pilgrim ship.

192. **Weights and measures on board.**—(1) The master of a ship shall keep on board proper weights and measures for determining the qualities of the several provisions and articles served out and shall allow the same to be used at the time of serving out the provisions and articles in the presence of witnesses whenever any dispute arises about the quantities.

(2) If the master of a ship fails, without reasonable cause, to comply with sub-section (1), he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

193. **Expenses of medical attendance in case of illness**.—(1) If the master of, or a seaman or apprentice belonging to, a Pakistani ship receives any hurt or injury or suffers from any illness (not being a hurt, injury or illness due to his own wilful act or default or his own misbehavior), resulting in his being discharged or left behind at a place other than his proper return port, the expenses of providing the necessary surgical and medical advice, attendance and treatment and medicine, and also the expenses of the maintenance of the master, seaman or apprentice until he is cured, or dies, or is brought back to the port from which he was shipped or other port agreed upon after receiving the necessary medical treatment, and of his conveyance to that port, and in case of death, the expenses, if any, of his burial or cremation shall be defrayed by the owner of the ship without any deduction on that account from his wages.

(2) If the master, seaman or apprentice is on account of any illness or injury temporarily removed from his ship, at a port other than his proper return port, for the purpose of preventing infection or otherwise for the convenience of the ship, and subsequently returns to his duty, the expenses of removal and of providing the necessary surgical and medical advice, attendance and

treatment and medicine and of his maintenance while away from the ship, shall be defrayed in like manner.

(3) The expenses of all medicines and surgical and medical advice, attendance and treatment, given to a master, seaman or apprentice, while on board his ship, shall be defrayed in like manner.

(4) Where any expenses referred to in sub-sections (1), (2) and (3) have been paid by the master, seaman or apprentice himself, the same may be recovered as if they were wages duly earned, and, if any such expenses are paid by the Federal Government, the amount shall be a charge upon the ship and may be recovered with full costs of suit by the Federal Government.

194. **Power to make rules 'with respect to crew accommodation.**—(1) The Federal Government may, by notification in the official Gazette, make rules with respect to the crew accommodation to be provided in ships; and different provisions may be made for different classes of ships and different classes of persons.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely.—

(a) the minimum space for each person which must be provided in any ship to which the rules apply by way of sleeping accommodation for seamen and apprentices and the maximum number of persons by whom any specified part of such sleeping accommodation may be used;

(b) the position in any such ship in which the crew accommodation or any part thereof may be located and the standards to be observed in the construction, equipment and furnishing of any such accommodation;

(c) the submission to such authority as be specified in this behalf of plans and specifications of any works proposed to be carried out for the provisions or alteration of any such accommodation and the authorization of that authority to inspect any such works;

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(d) the maintenance and repair of any such accommodation and the prohibition or restriction of the use of any such accommodation for purposes other than those for which it is designed; and

(e) the manner as to how ships registered or under construction at the commencement of any such rules may be dealt with after such commencement.

(3) If any person making an inspection under section 197 finds that the crew accommodation is unsanitary or is not in accordance with the provisions of this Ordinance, he shall signify it in writing to the master of the ship and may, if he thinks fit, detain the ship until the defects are remedied to his satisfaction.

Explanation.–In this section, the expression "crew accommodation" includes sleeping rooms, mess room, sanitary accommodation, hospital accommodation, recreation accommodation, store rooms and catering accommodation provided for the use of seamen, not being accommodation which is also used by, or provided for the use of passengers.

(4) The Federal Government may exempt any ship or class of ships from the requirements of any rules made under this section either absolutely or subject to such conditions as it may consider fit.

195**. Inspection of crew accommodation when a ship is re-registered.—**Whenever a ship to which the rules made under section 194 apply, is registered or re-registered in Pakistan, or the crew accommodation of a ship has been substantially altered or reconstructed, or a complaint in respect of crew accommodation has been made in accordance with the rules, and on such other occasions as may be required under the rules, a surveyor shall inspect the crew accommodation and satisfy himself that the requirements of crew accommodation have been duly complied with.

196. **Bedding, towels, etc., to be provided**.—(1) The owner of every Pakistani ship shall supply or cause to be supplied to every seaman for his personal use such clothing, bedding, towels, mess utensils and other articles of such quality and according to such scales as may be prescribed.

(2) If any requirement of sub-section (1) is not complied with in the case of any ship the owner thereof, unless he proves that the non-compliance was not caused by his inattention, neglect or wilful default, shall be liable to a fine which may extend to five thousand rupees.

197. **Inspection of provisions, water and medicines**.—(1) A Shipping Master, surveyor, Seamen's Welfare Officer, Port Health Officer, Pakistan consular officer or other officer duly appointed in this behalf by the Federal Government at any port—

(a) in the case of any ship upon which seamen have been shipped at that port, may at any time; and

(b) in the case of a Pakistani ship, may at any time, and, if the master or three or more of the crew so request, shall enter on board the ship and inspect—

(i) the provisions and water;

(ii) the medicines and appliances;

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(iii) the weights and measures; and

(iv) the crew accommodation,

with which the ship is required to be provided by or under this Ordinance.

(2) If any person making an inspection under this section finds that the crew accommodation is unsanitary or is not in accordance with the provisions of this Ordinance, he shall signify it in writing to the master and may, if he thinks fit, detain the ship until the defects are remedied to his satisfaction.

198. **Inspection by master of provisions, water and accommodation at sea.—**The master of every Pakistani ship while at sea shall, at least once in a week, cause an inspection to be made of the provisions and water provided for the use of the seamen and apprentices and the crew accommodation, for the purpose of ascertaining whether the same are being maintained in

accordance with the requirements of this Ordinance, and the person making the inspection shall enter a statement of the result of the inspection in a separate book kept for the purpose.

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CHAPTER 15. —DISCIPLINE OF SEAMEN AND APPRENTICES

199. **Definitions**.–(1) In this Chapter unless there is anything repugnant in the subject or context—

(a) "officer" means an officer qualified for the purposes of section 93 of this Ordinance or duly certificated under the Merchant Shipping Law previously in force; and

(b) "seaman" does not include an officer.

200. **Master's power of arrest.**—The master of any ship registered in Pakistan may cause any person on board the ship to be put under restraint if, and for so long as, it appears to him necessary or expedient in the interest of safety or for the preservation of good order or discipline on board the ship.

201. **Maintenance of discipline.**—The master shall have the power and authority to give any command or order to any officer or seaman or apprentice or other person on board which he considers to be necessary for the maintenance of discipline among seamen on board generally or for the navigation or safety of the vessel or for the safety of the person or property on board, and every such command or order shall be obeyed and carried out by the person to whom it is given.

202. **On change of master, documents to be handed over to successor.**—(1) The master of any Pakistani ship who, during the progress of a voyage, is removed or superseded or for any other reason quits the ship, and is succeeded in the command by some other person holding appropriate certificate of competency, shall deliver to his successor all documents relating to the navigation of the ship, including the information required to be carried under section 334 and 388, and the crew thereof which are in his custody; and such successor shall, immediately on assuming the command of the ship, enter in the official log-book a list of the document so delivered to him.

(2) It is hereby declared that for the purpose of sub-section (1) the documents relating to the navigation of the ship shall include documents (i) safety certificates; (ii) safety construction certificate; (iii) international load line certificate; (iv) safety equipment certificates; (v) safety radio telegraphy certificate; (vi) safety radio telephony certificate; (vii) exemption certificates, and (viii) certificate of registry or any other documents that may be prescribed.

(3) The master of a ship who fails to deliver the documents as required by sub-section (1) shall be liable to a fine which may extend to ten thousand rupees.

203. **Misconduct endangering life or ship**.—If a master, officer, seaman or apprentice belonging to a Pakistani ship, by wilful breach of duty or by neglect of duty or by reason of drunkenness or under influence of drug—

(a) does any act tending to the immediate loss or destruction of, or serious damage to, the ship or tending immediately to endanger the life or limb of a person belonging to, or on board, the ship; or

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(b) refuses or omits to do any lawful act proper and requisite to be done by him for preserving the ship from immediate loss or destruction of; or serious damage to, or for preserving any person belonging to, or on board, the ship from immediate danger to life or limb,

he shall, for every such offence, be punishable with imprisonment for a term which may extend to two years, or with a fine which may extend to ten thousand rupees, or with both.

204. **Desertion and absence without leave.**—(1) No officer, apprentice or seaman lawfully engaged shall—

(a) desert his ship; or

(b) neglect or refuse, without reasonable cause, to join the ship or to proceed to sea in his ship or be absent without leave at any time within twenty-four hours of the ship's sailing from a port either at the commencement or during the progress of a voyage, or be absent at any time without leave and without sufficient reason from his ship or from his duty.

(2) For the purposes of sub-section (1), the fact that the ship on which an officer or the seaman or apprentice is engaged or to which he belongs is unseaworthy shall be deemed to be a reasonable cause

Provided that the officer or seaman or apprentice has, before failing or refusing to join his ship of to proceed to sea in his ship or before absenting himself or being absent from the ship, as the case may be, complained to the master or a Shipping Master, Surveyor, Seamen's Welfare Officer, Port Health Officer, Pakistan consular officer or any other officer at any port duly authorised in this behalf by the Federal Government, that the ship is unseaworthy.

205. **Power to suspend deserter's seamen's service book.**—If it is shown to the satisfaction of a proper officer that any officer, seaman or apprentice has deserted his ship has absented himself without leave and without sufficient reason from his ship or from his duty, the proper officer shall forthwith mike a report to that effect to the Shipping Master who may thereupon direct that the seaman's certificate of discharge or seamen's service book shall be withheld for such period as may be specified in the direction.

206. **Conveyance of deserter or imprisoned seaman or apprentice on board ship.**—(1) If an officer, seaman or apprentice is guilty of the offence of desertion or of absence without leave or otherwise absents himself from his ship without leave the master or any mate or the owner may convey him on board his ship, and may for that purpose use such force, including police force, as may be necessary and every police officer shall render all such assistance as may be required of him.

(2) If the officer, seaman or apprentice so requires, he shall first be taken before a Court competent to take cognizance of the case to be dealt with according to law.

(3) If it appears to the Court before whom the case is brought that the officer, seaman or apprentice has been conveyed on board or taken before the Court on improper or insufficient grounds, that Court may punish the master, mate or owner, as the case may be, with a fine which

may extend to five thousand rupees and such punishment shall be a bar to any action for false imprisonment against the master, mate or owner.

(4) If, either at the commencement or during the progress of any voyage, an officer, seaman or apprentice engaged in a Pakistani ship commits outside Pakistan, the offence of desertion or absence without leave or any offence against discipline, the master, any mate, the owner or agent of the owner may, if and so far as the laws in force in the place will permit, arrest him without first procuring a warrant.

(5) No person shall convey on board an officer, seaman or apprentice on improper or insufficient grounds.

207. **Power of Court to order offender to be taken on board ship**.—Where an officer, seaman or apprentice is brought before a Court on the ground of desertion or of absence without leave or of any offence against discipline and the master or the owner or his agent, so requires, the Court, may in lieu of committing and sentencing him for the offence, cause him to be conveyed on board his ship for the purpose of proceeding on the voyage, or deliver him to the master or any mate of the ship or the owner or his agent to be by them so conveyed, and may in such case order any costs and expenses properly incurred by or on behalf of, the master or owner by reason of the conveyance to be paid by the offender and, if necessary, to be deducted from any wages which he has then earned or by virtue of his then existing engagements may afterwards be earned.

208. **General offences against discipline.—**If an officer, seaman or an apprentice commits any of the following offences (in this Ordinance referred to as offences against discipline) he shall, notwithstanding anything in the Code of Criminal procedure, 1898 (Act V of 1898), be liable to be tried in a summary way and punished as follows, namely—

(i) if he quits the ship without leave after her arrival at her port of delivery and before she is placed in security he shall be liable to forfeit out of his wages a sum not exceeding one month's pay;

(ii) if he is guilty of wilful disobedience to any lawful command, he shall be liable to forfeit out of his wages a sum not exceeding fourteen days' pay;

(iii) if he is guilty of continued wilful disobedience to lawful commands or continued wilful neglect of duty, he shall be liable for every twenty-four hours' continuance of such disobedience or neglect, to pay a sum not exceeding one month's pay or any expenses which may have been properly incurred in hiring a substitute;

(iv) if he assaults any person on board the ship, he shall be liable to a fine which may extend to ten thousand rupees;

(v) if he combines with any of the crew to disobey lawful commands or to neglect duty or to impede the navigation of the ship or the progress of the voyage he shall be liable to imprisonment for a term which may extend to one year, or fine which may extend to ten thousand rupees, or with both;

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(vi) if he wilfully damages his ship or commits criminal misappropriation or breach of trust in respect of, or wilfully damages any of, her stores or cargo he shall be liable to imprisonment for a term which may extend to one year, or fine which may extend to ten thousand rupees or with both, and shall also be liable to forfeit out of his wages a sum equal to the loss thereby sustained; and

(vii) if he is convicted of any act of smuggling whereby loss or damage is occasioned to the master or owner of the ship, he shall be liable to pay to that master or owner a sum sufficient to reimburse the loss or damage, and the whole or a proportionate part of his wages may be retained in satisfaction on account of that liability without prejudice to any other remedy.

209. **Report of desertion and absence without leave**.—(1) Whenever any officer, seaman or apprentice not shipped in Pakistan deserts or otherwise absents himself in Pakistan without leave from a Pakistani ship in which he is engaged to serve, the master of the ship shall, within forty-eight hours of discovering such desertion or absence, report the same to the Shipping Master or to such other officer as the Federal Government may appoint in this behalf, unless in the meantime the deserter or absentee returns.

(2) Any master who wilfully neglects to comply with the provisions of sub-section (1) shall be liable to a fine which may extend to five thousand rupees.

210. **Entries and certificates of desertion abroad.**—(1) In every case of desertion from a Pakistani ship whilst she is at any place outside Pakistan the master shall make in the official log book an entry of the desertion which shall be signed by him and also by a mate or one of the crew and shall produce the entry to the Pakistan consular officer who shall thereupon make and certify a copy of the entry.

(2) The master shall forthwith transmit such copy to the Shipping Master at the port at which the seaman was shipped, and the Shipping Master shall if required, cause the same to be produced in any legal proceeding.

(3) Such copy, if purporting to be so made and certified as aforesaid, shall, in any legal proceeding relating to such desertion, be admissible in evidence.

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211. **Facilities for proving desertion in proceeding for forfeiture of wages.**—(1) Whenever a question arises whether the wages of any officer, seaman or apprentice are forfeited for desertion from a ship, it shall be sufficient for the person insisting on the forfeiture to show that the officer, seaman or apprentice was duly engaged in or belonged to the ship, and either that he left the ship before the completion of the voyage or engagement or, if the voyage was to terminate in Pakistan and the ship has not returned, that he is absent from her and that an entry of his desertion has been duly made in the official log-book.

(2) the desertion shall thereupon, so far as relates to any forfeiture of wages under this Chapter, be deemed proved, unless the officer, seaman or apprentice can produce a proper certificate of discharge or can otherwise show to the satisfaction of the Court that he had sufficient reasons for leaving his ship.

212. **Application of forfeiture**.—(1) Where any wages or effects are under this Ordinance forfeited for desertion from a ship, they shall be applied towards reimbursing the expenses

caused by the desertion to the master or the owner of the ship and subject to that reimbursement shall be paid into the public treasury and credited to the account of the Federal Government.

(2) For the purpose of such re-imbursement the master or the owner or his agent may, if the wages are earned subsequent to desertion, recover them in the same manner as the deserter could have recovered them if not forfeited; and the Court in any legal proceeding relating to such wages may order them to be paid accordingly.

213. **Decisions of questions for forfeiture and deductions in suits for wages.—**Any question concerning the forfeiture of or deductions from the wages of any officer, a seaman or apprentice may be determined in any proceeding lawfully instituted with respect to those wages notwithstanding that the offence in respect of which the question arises, through by this Ordinance made punishable by imprisonment as well as forfeiture, has not been the subject of any criminal proceeding.

214. **Payment of fines imposed under agreement to Shipping Master**.—(1) Every fine imposed on any officer, seaman or apprentice for any act of misconduct for which his agreement imposes a fine shall be deducted and paid over as follows, namely:—

(a) if the offender is discharged at any port or place in Pakistan, and the offence and such entries in respect thereof as aforesaid, are proved to the satisfaction of the Shipping Master before whom the offender is discharged, the master or owner shall deduct such fine from the wages of the offender and pay the same over to such Shipping Master; and

(b) if the officer, seaman or apprentice is discharged at any port or place outside Pakistan and the offence and such entries as aforesaid are proved to the satisfaction of the Pakistan consular officer by whose sanction he is so discharged, the fine shall thereupon be deducted as aforesaid, and an entry of such deduction shall then be made in the official log-book and signed by such officer and on the return of the ship to Pakistan the master or owner shall pay over such fine to the Shipping Master before whom the crew is discharged.

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(2) If any master or owner neglects or refuses to pay over the fine, he shall, for each offence, be liable to a fine which may extend to fifty thousand rupees.

215. **Penalty for enticing to desert**.—If a person by any means whatever persuades or attempts to persuade any officer, seaman or apprentice to neglect or refuse to join or proceed to sea in or desert from his ship, or otherwise to absent himself from his duty, he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

216. **Penalty for harboring deserters**.—If a person wilfully harbours or secrets any officer, seaman or apprentice who has wilfully neglected or refused to join or has deserted from his ship, knowing or having reason to believe the officer, seaman or apprentice to have so done, he shall, for each offence, be liable to a fine which may extend to ten thousand.

217. **Penalties on stowaways and discipline of stowaways and seamen carried under compulsion**.—(1) If a person secrets himself and goes to sea in a ship without the consent of either the owner, agent or master, or of a mate, or of the person in charge of the ship or of any

other person entitled to give that consent, he shall be liable to a fine which may extend to ten thousand rupees.

(2) Every person who goes to sea in a ship without such consent as aforesaid and every sea faring person whom the master of a ship is under this Ordinance or any other law compelled to take on board and convey shall, so long as he remains in the ship, be subject to the same laws and regulations for preserving disciplines and to the same fines and punishments for offences constituting or tending to a breach of discipline as if he were a member of, and had signed the agreement with, the crew.

(3) The master of any Pakistani ship arriving at any port or place in or outside Pakistan and the master of any ship other than a Pakistani ship arriving at any port or place in Pakistan shall, if any person has gone to sea on that ship without the consent referred to in sub-section (1), report the fact in writing to the Shipping Master or the Pakistan Consular Officer as soon as may be after the arrival of the ship.

218. **Unauthorised presence on board ship**.—Where a ship registered in Pakistan or any other country is in a port in Pakistan and a person who is neither in Government service nor authorised by law to do so—

(a) goes on board the ship without the consent of the master or of any other person authorised to give it: or

(b) remains on board the ship after being requested to leave by the master, Police or an officer of the customs;

he shall be liable to a fine which may extend to five thousand rupees.

219. **Procedure where officer, seaman or apprentice not shipped in Pakistan is imprisoned on complaint of master**.—(1) If any officer, seaman or apprentice who is not shipped in Pakistan is imprisoned on complaint made by, or on behalf of the master or owner of the ship for any offence for which he has been sentenced to imprisonment for a term not exceeding one month, then—

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(a) while such imprisonment lasts, no person shall, without the previous sanction in writing of the Federal Government or of such officer as it may appoint in this behalf, engage any citizen of Pakistan to serve as an officer, a seaman or an apprentice on board such ship; and

(b) the Federal Government or such officer as it may appoint in this behalf may tender such officer, seaman or apprentice to the master or owner of the ship in which he is engaged to serve, and may, if such master or owner, without assigning reasons satisfactory to the Federal Government or to such officer as aforesaid, refuses to receive on board any officer: seaman or apprentice so tendered, require the master or owner to deposit in the local Shipping Office—

(i) the wages due to such officer, seaman or apprentice and his money and effects; and

(ii) such sum as may, in the opinion of the Federal Government or such officer as aforesaid, be sufficient to defray the cost of the passage of such officer or seaman or apprentice to the port at which he was shipped according to the scale of costs usual in the case of distressed seaman.

(2) If any person wilfully disobeys the prohibition contained in clause (a) of sub- section (1), he shall be liable to a fine which may extend to five thousand rupees.

(3) If any master or owner refuses or neglects to deposit any wages, money, effects or sum when so required under clause (b) of sub-section (1), he shall be liable to a fine which may extend to five thousand rupees.

220. **Power to send on board officer or seaman or apprentice not shipped in Pakistan who is undergoing imprisonment.**—If any officer or seaman or apprentice who is not shipped in Pakistan is imprisoned for any offence for which he has been sentenced to imprisonment for a term not exceeding one month and his services are required on board his ship during his imprisonment but before the expiration of the period of his engagement, any Magistrate may on the application of the master or owner or his agent, notwithstanding that the period of his imprisonment has not terminated, cause the officer, seaman or apprentice to be conveyed on board the ship for the purpose of proceeding on the voyage, or to be delivered to the master or any mate of the ship, or to the owner or his agent to be by them so conveyed.

221. **Deserters from foreign ships**.—(1) Where it appears to the Federal Government that due facilities are or will be given by the Government of any country outside Pakistan for recovering and apprehending officers or seamen or apprentices who desert from Pakistani ships in that country, the Federal Government may, by notification in the official Gazette, stating that such facilities are or will be given, declare that this section shall apply to officers, apprentices or seamen belonging to ships of such country, subject to such limitations or conditions as may be specified in the notification.

(2) Where this section applies to officers or seamen or apprentices belonging to ships of any country and any officer, seaman or apprentice deserts from any such ship, when within Pakistan any Court that would have had cognizance of the matter if the officer, seaman or apprentice had deserted from a Pakistani ship shall, on the application of a consular officer of that country, aid in apprehending the deserter and for that purpose may, on information given on oath, issue a warrant for his apprehension and on proof of the desertion order him to be conveyed on board his ship or delivered to the master or mate of his ship or to the owner of the ship or his agent to be so conveyed and any such warrant or order may be executed accordingly.

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CHAPTER 16. —LITIGATION AGAINST SEAMEN

222. **Definitions.—**(1) In this Chapter unless there is anything repugnant in the subject or context—

(a) "Court" means a Civil or Revenue Court;

(b) "proceeding" includes any suit, appeal or application; and

(c) "Shipping Master" means—

(i) in the case of a seaman, the Shipping Master for the port at which the serving seaman entered into or is believed to have entered into an agreement, or where there is no such agreement, for the port to which the serving seaman has returned or is expected to return on the completion of his last voyage; and

(ii) in the case of masters and apprentices referred to in section 230, the Shipping Mater for the port at which the agreements with the crew of the ship were opened.

(2) For the purposes of this Chapter, a seaman shall be deemed to be a serving seaman during any period commencing on the day on which he enters into an agreement and ending thirty days after the day on which he is finally discharged from such agreement.

223. **Particulars to be furnished in plaints, etc.—**If any person presenting any plaint, application or appeal to any Court has reason to believe that any adverse party is a serving seaman, he shall make a statement accordingly in the plaint, application or appeal.

224. **Power of Collector to intervene in case of an unrepresented seaman.**—If any Collector has reason to believe that any seaman who ordinarily resides or has property in his District, and who is party to any proceeding pending before any Court, is unable to appear therein or is a serving seaman, the Collector may certify the facts in the prescribed manner to the Court.

225. **Notice to be given in case of unrepresented seaman.—**(1) If a Collector has certified under section 224, or if a Court has reason to believe that a seaman who is a party to any proceeding before the Court is unable to appear therein or is a serving seaman, the Court shall suspend the proceeding and shall give notice thereof in the prescribed manner to the Shipping Master:

Provided that nothing in this sub-section shall be deemed to require the Court to suspend the proceeding—

(a) if the proceeding is one instituted or made by the seaman, alone or conjointly with others, with the object of enforcing a right of pre-emption, or

(b) if the interests of the seaman in the proceeding are, in the opinion of the Court, either identical with those of any other party thereto and adequately represented by such other party, or merely of a formal nature.

(2) If it appears to the Court before which any proceeding is pending that a seaman though not a party to the proceeding is materially concerned in the outcome of the proceeding and that his interests are likely to be prejudiced by his inability to attend, the Court may suspend the proceeding and shall give notice thereof in the prescribed manner to the Shipping Master.

226. **Postponement of proceedings.—**(1) If, on receipt of a notice under section 227, the Shipping Master certifies to the Court in the prescribed manner that the seaman is a serving seaman, the Court shall postpone the proceeding in respect of the seaman for the prescribed period or, if no period has been prescribed, for such period as it thinks fit:

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Provided that if, by reason of the continued absence of the seaman, the question of any further postponement of the proceedings in respect of the seaman arises, the Court shall in deciding the question have regard to the purposes of this Chapter.

(2) If the Shipping Master either certifies that the seaman is not for the time being serving seaman or fails within two months from the date of the receipt of the notice under section 227 to certify that the seaman is a serving seaman, the Court may, if it thinks fit, continue the proceeding.

227. **Power to set aside decrees and orders passed against serving seaman.—**(1) Where in any proceeding before a Court a decree or order has been passed against any seaman while he was a serving seaman, the seaman, or, if he dies while he is a serving seaman, his legal representatives, may apply to the Court to have the decree or order set aside, and if the Court, after giving an opportunity to the opposite party of being heard, is satisfied that the interests of justice require that the decree or order should be set aside as against the seaman, the Court shall, subject to such conditions, if any, as it thinks fit to impose, make an order accordingly and may, if it appears that any opposite party in the proceeding has failed to comply with the provisions of section 223, award, subject to such conditions as may be prescribed, damages against such opposite party.

(2) The period of limitation for an application under sub-section (1) shall be sixty days from the date on which the seaman first ceases to be serving seaman after the passing of the decree or order or where the summons or notice was not duly served on the seaman in the proceeding in which the decree or order was passed, from the date on which the applicant had knowledge of the decree or order, whichever is later; and the provisions of section 5 of the Limitation Act, 1908 (IX of 1908), shall apply to such applications.

(3) Where the decree or order in respect of which an application under sub-section (1) is made is of such a nature that it cannot be set aside as against the seaman only, it may be set aside as against all or any of the parties against whom it was made.

(4) Where a Court sets aside a decree or order under this section, it shall appoint a day for proceeding with the suit, appeal or application, as the case may be, in respect of which the decree or order was passed.

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228. **Modifications of law of limitation where seaman is a party.—**In computing the period of limitation provided in section 227, or in the Limitation Act, 1908 (IX of 1908), or in any other law for the time being in force, for any suit, appeal or application to a Court to which a seaman is a party, the period or periods during which the seaman has been a serving seaman, and, if the seaman has died while he was serving seaman, the period from the date of his death to the date on which his next of kin was first informed by the Shipping Master or otherwise, of his death, shall be excluded:

Provided that this section shall not apply in the case of any suit, appeal or application instituted or made with the object of enforcing a right of pre-emption except in such areas and in such circumstances as the Federal Government may, be notification in the official Gazette, specify in this behalf.

229. **Reference in matters of doubt to Shipping Master.—**If any Court is in doubt whether, for the purposes of section 227 or section 228, a seaman is or was at any particular time or

during any particular period a serving seaman, it may refer the question to the Shipping Master, and the certificate of the Shipping Master shall be conclusive evidence on the question.

230. **Provisions of this Chapter to apply to master and apprentices.—**The provisions of this Chapter shall apply to a master and an apprentice as they apply to a seaman, except that—

(a) a master shall be, deemed to be a "serving seaman" during any period commencing on the day on which he assumes command of the ship and ending thirty days after the date on which he finally relinquishes such command; and

(b) an apprentice shall be deemed to be a "serving seaman" during any period commencing on the day on which he joins a ship and ending thirty days after the date on which he leaves such ship.

231. **Power to make rules.—**(1) The Federal Government, after consultation with the High Court, may, by notification in the official Gazette, make rules to carry out the purposes of this Chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the manner and form in which any notice or certificate under this Chapter shall be given;

(b) the period for which proceedings or any class of proceedings shall be postponed under sub-section (1) of section 226;

(c) the conditions subject to which damages may be awarded under sub-section (1) of section 228 and the amount of such damages; and

(d) any other matter which is to be or may be prescribed.

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CHAPTER 17 A.—UNIFORM

232. **Uniforms to be prescribed.**—(1) The Federal Government may, by notification in the official Gazette, make rules prescribing the uniforms (hereinafter referred to as the standard uniform) which a person employed on a Pakistani ship shall be entitled to wear; and a different standard uniform may be prescribed for persons of different positions or ranks.

(2) A person entitled to wears standard uniform shall, if so required by the rules but subject to the provisions of this Chapter, wear the standard uniform appropriate to his position or rank.

233. **Certificated officers may wear uniforms while employed.**—A persons holding a certificate of competency issued under this Ordinance and a citizen of Pakistan holding a certificate of competency recognised under section 100, being temporarily un-employed, shall be entitled to wear the standard uniform appropriate to the rank in which he was last employed.

234. **Uniforms when not to be worn.—**A person entitled to wear the standard uniform shall not wear it while he is employed ashore other than as Marine Superintendent or Engineer Superintendent.

235. **Persons not to be dressed partly in uniform.—**A person entitled, to wear the standard uniform shall not, when on board a Pakistani ship in a port or on shore, be dressed partly in uniform and partly not in uniform.

236. **Penalties.—**(1) If any person who is required to wear the standard uniform does not so wear it, he shall be liable to a fine which may extend to five thousand rupees.

(2) If any person, not being so entitled, wears the standard uniform or any part thereof or any dress having the appearance or bearing any of the distinctive marks of the standard uniform, he shall be liable to a fine which may extend to five thousand rupees.

(3) If a person wear the standard uniform in such a manner or under such circumstances as to be likely to bring contempt on the uniform, he shall be liable to a fine which may extend to five thousand rupees:

Provided that nothing in this sub-section shall apply to the wearing of such uniform in the course or for the purpose of a stage play or representation or any other performance if the uniform is not worn in such a manner or under such circumstances as to bring it into contempt.

(4) If any person entitled to wear the standard uniform when on board a Pakistani ship in a port or on shore appears dressed partly in uniform and partly not in uniform under such circumstances as to be likely to bring contempt on the uniform, or, being entitled to wear the uniform appropriate to a particular rank or position, wears the uniform appropriate to some higher rank or position, he shall be liable to a fine which may extend to five thousand rupees.

B. —COMPLAINTS BY SEAMEN AND APPRENTICES

237. **Facilities for making complaints.—**(1) If a seaman or apprentice, whilst on board ship, states to the master that he desires to make a complaint against him on any of the crew, when in Pakistan to the Shipping Master or a Magistrate, and when outside Pakistan to a Pakistan consular officer, the master shall, as soon as the service of the ship, may permit—

(a) if the ship is then at a place where there is an authority to whom the complaint is sought to be made, after such statement; and

(b) if the ship is not then at such a place, after her first arrival at such a place,

allow the complainant to go ashore or send him ashore in proper custody so that he may be enabled to make the complaint.

(2) If any master fails without reasonable cause to comply with the provisions of this section, he shall, for each offence, be able to a fine which may extend to five thousand rupees.

C. —PROTECTION OF SEAMEN AND APPRENTICES

238. **Salvage reward invalid.—**Subject to the provisions of this Ordinance, a salvage reward payable to a seaman or apprentice made prior to the accruing thereof shall not bind the person

making the same, and power-of-attorney or authority for the receipt of any such salvage shall not be irrevocable.

239. **Debts not recoverable till the conclusion of agreed services.**—A debt incurred by any seaman after he has engaged to serve shall not be recoverable until the service agreed for is concluded.

240. **Inspection of seamen's lodging houses.**—A Shipping Master, Seamen's Welfare Officer or any officer duly authorised in this behalf may, at any time inspect any place where seaman may be lodged and either prohibit such lodging or require that persons of improper character be excluded from such lodging or that the accommodation, sanitary conditions and other matters connected with the proper maintenance of such lodging be brought up to a prescribed standard.

241. **Prohibition again taking out property from ship.**—(1) No person shall, while a ship is at any port or place in Pakistan, take out of the ship any property of the seaman or apprentice except under the direction of the seaman or apprentice and with the permission of the master.

(2) Whoever contravenes the provisions of sub-section (1) shall be liable to a fine which may extend to five thousand rupees.

242. **Seamen's property not to be detained.**—(1) If a person receives or takes into his possession or under his control any money or other property of a seaman or apprentice and does not return the same or pay the value thereof when required by the seaman or apprentice subject to deduction of such amounts as may be justly due to him from the seaman or apprentice in respect of boarding or lodging or otherwise, or absconds therewith, he shall for each offence, be liable to a fine which may extend to ten thousand rupees.

(2) Any Court imposing a fine under sub-section (1) may direct the amount of such money or the value of the property subject to such deduction as aforesaid, if any, or the property itself, to be forthwith paid or delivered to the seaman or apprentice.

243. **Ship not to be boarded without permission before seamen leaves.**—Where a ship has arrived at a port or place in Pakistan at the end of a voyage and any person, not being in the service of the Government or not being duly authorized by law for the purpose, goes on board the ship without the permission of the master before the seaman lawfully leave the ship at the end of their engagement or are discharged (whichever happens last), the master of the ship may take such person into custody and deliver him up forthwith to a police officer to be taken before a Magistrate to be dealt with according to the provisions of this Ordinance.

D. —RESCISSION OF CONTRACTS

244. **Power of Court to rescind contract between master, owner or agent and seaman or apprentice.**—Where a proceeding is instituted in any Court in relation to any dispute between the master, owner or agent of a ship and a seaman or apprentice, arising out of or incidental to their relation as such, or is instituted for the purpose of this section, the Court, if, having regard to all the circumstances of the case, thinks it just to do so, may rescind any contract between the master or owner or agent and the seaman or apprentice upon such terms as the Court may deem fit; and this power shall be in addition to any power it may have in the exercise of any other jurisdiction which the Court can exercise independently of this section.

E. —MARITIME ADVISORY COMMITTEE

245. **Constitution and functions of Central Maritime Advisory Committee.**—(1) The Federal Government may, by notification in the official Gazette, constitute a Maritime Advisory Committee, consisting of such representatives of ship owners, seaman and the Federal Government as it may deem fit.

(2) The functions of the Committee shall be—

(a) to prevent and adjust differences between ship owners and seaman;

(b) to advise the Federal Government on any improvements to be made in the system of recruitment of seaman;

(c) to advise the Federal Government on the improvements or modifications to be made in the term and conditions of employment of seamen, such as, standardization of their rates or wages, hours of work, manning scale, and similar other matters;

(d) to advise the Federal Government on the steps to be taken for ameliorating unemployment among seamen; and

(e) to advise the Federal Government on any other matter relating to seaman which may be referred to it.

F. —NATIONAL WELFARE. BOARD FOR SEAMEN

246. **Constitution of National Welfare Board for seamen.**—(1) The Federal Government may, by notification in the official Gazette, constitute an advisory board to be called the National Welfare Board for seamen, hereinafter referred to as the Board, for the purpose of advising the Federal Government on the measures to be taken for promoting the welfare of seaman (whether ashore or on board ship) generally and in particular the following, namely:—

(a) the establishment of hostels or boarding and lodging houses for seamen;

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(b) the establishment of clubs, canteens, libraries and other like amenities for the benefit of seamen;

(c) the establishment of hospitals for seamen of the provision of medical treatment for seamen; and

(d) the provision of educational and other facilities.

(2) The Federal Government may, by notification in the official Gazette, make rules providing for–

(a) the composition of the Board and the term of office of members thereof;

(b) the procedure to be followed in the conduct of business by the Board;

(c) the travelling and other allowances payable to members of the Board;

(d) the levy of fees payable by owners of ships at such rates as may be prescribed (which may be at different rates for different classes of ships) for the purpose of providing amenities to seaman and for taking other measures for the welfare of seamen;

(e) the procedure by which any such fees may be collected or recovered and the manner in which proceeds of such fees, after deduction of the cost of collection, shall be utilized for the purpose specified in clause (d); and

(f) any other matter which it is necessary to prescribe.

PART V. —PASSENGER SHIPS

CHAPTER 18. —SURVEY OF PASSENGER SHIPS

247. **Application.**—(1) This part applies to sea-going passenger ships propelled by electricity or other mechanical power, but such provisions of chapter 19 as relate to special trade passenger ships, except section 271, shall not apply to—

(a) any such ship not carrying more than fifty special trade passengers; or

(b) any such ship not intended to carry special trade passengers to or from any port or place in Pakistan.

(2) Notwithstanding anything contained in sub-section (1), the Federal Government may declare that all or any of the provisions of Chapter 19 shall apply to sailing ships, or any class of sailing ships, carrying more than fifteen special trade passengers.

Explanation.—For any of the purposes of this Part, a passenger over the age of one year shall be reckoned as one special trade passenger.

248. **No ship to carry passengers without a certificate of survey.**—No ship shall take on board, or carry between ports or places in Pakistan or to any port or place outside Pakistan, more than twelve passengers unless she has a certificate of survey in force and applicable to the voyage on which she is about to proceed or the service on which she is about to be employed.

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249. **Powers of Federal Government to exempt certain ships.**—The Federal Government may, by notification in the official Gazette, declare that all or any of the provisions of this Chapter relating to the survey of ships shall not apply in the case of any specified ship or class of ships, or shall apply thereto with such modifications as the Federal Government may direct.

250. **No port clearance until certificate of survey produced.**—No officer of Customs shall grant a port clearance, nor shall any pilot be assigned, to any ship for which a certificate of survey is required until after the production by the owner or master thereof such certificate in force and applicable to the voyage on which she is about to proceed and the service on which she is about to be employed.

251**. Power to detain ship not having certificate of survey.**—If any ship for which a certificate of survey is required leaves or attempts to leave any port of survey without a certificate, any Officer of Customs or any pilot on board the ship may detain her until she obtains a certificate.

252. **Owner or Agent responsible for survey.**—The owner or agent of every passenger ship for which a certificate of survey is required shall cause it to be surveyed in the prescribed manner.

253**. Powers of surveyors.**—(1) For the purposes of a survey under this Ordinance, any surveyor may, at any reasonable time, go on board a ship and may inspect the ship and any part thereof, and the machinery, equipment or articles on board thereof:

Provided that a surveyor shall not, except to the extent necessary for the purposes of this sub-section, hinder the loading or unloading of the ship or detain or delay her from proceeding on any voyage.

(2) The owner, master and officers of the ship shall afford to the surveyor all rea-sonable facilities for a survey, and all such information respecting the ship and her machinery and equipments, or any part thereof, respectively, as he reasonably requires.

254. **Fees in respect of surveys.**—Before a survey under this chapter is commenced, the owner, agent or master of the ship to be surveyed shall pay to such officer, as the Federal Government may appoint in this behalf–

(a) a fee calculated on the tonnage of the ship according to the prescribed rates; and

(b) such additional fee, in respect of the expenses, (if any), of the journey of the surveyor to the port, as the Federal Government may, by notification in the official Gazette, direct.

255. **Powers of the Federal Government to direct those two or more surveyors be employed.**—A survey shall ordinarily be made by one surveyor, but two or more surveyor, may be employed if the Federal Government, by order in writing, so directs either generally in the case of all ships at any port of survey, or specially in the case of any particular ship or class of ships at any such port.

256. **Division of duties when two or more surveyors employed.**—When a survey is made by two or more surveyors, of the surveyor making the survey shall perform a prescribed portion of the duties assigned by this Chapter or the rules made thereunder to a surveyor making a survey.

257. **Declaration of survey.**—When a survey is completed, the surveyor making it shall forthwith, if satisfied that he can with propriety do so, give to the owner or master of the ship surveyed a declaration of survey in the prescribed form containing the following particulars, namely:

(a) that the hull and machinery of the ship are sufficient for the service intended and in good condition;

(b) that the equipment of the ship is in such condition and the certificates of the master, mate or mates, and engineer or engineers and of the radio operators are such as required by this Ordinance and by other law for the time being in force and applicable to the ship;

(c) the time for which the hull, machinery and equipment of the ship will be sufficient.

(d) the voyages or class of voyages on which, as regards construction, machinery and equipment, the ship is in the Surveyor's judgement fit to ply;

(e) the number of passengers which the ship is, in the judgement of the surveyor, fit to carry, distinguishing, if necessary, between the respective numbers to be carried on the deck and in the cabins and in different parts of the deck and cabins; the number to be subject to such conditions and variations, according to the time of year, the nature of the voyage, the cargo carried or other circumstances as the case requires; and

(f) any other prescribed particulars.

258. **Sending of declaration by owner or master.**—(1) The owner or master to whom a declaration of survey is given shall, within fourteen days after the date of the receipt thereof, send the declaration to such officer as the Federal Government may appoint in this behalf.

(2) If the owner or master fails to comply with the provisions of sub-section (1), he shall be liable to a fine which may extend to five thousand rupees.

(3) The penalty imposed under sub-section (2) shall be paid at the time of the delivery of the certificate of survey to the officer appointed under sub-section (1).

259. **Grant of certificate of survey by Federal Government.**—(1) Upon the receipt of a declaration of survey, the Federal Government shall, if satisfied that the provisions of this Chapter have been complied with, cause a certificate, in duplicate, to be prepared and delivered, through such officer at the port at which the ship was surveyed as the Federal Government may appoint in this behalf, to the owner or master of the ship surveyed , on his applying and paying the sums, if any, prescribed as payable on delivery of a certificate.

(2) A certificate granted under this section shall be in the prescribed form, shall contain a statement to the effect that the provisions with respect to the survey of the ship and the transmission of the declaration of survey in respect thereof have been complied with, and shall set forth-

(a) the particulars concerning the ship which clauses (c), (d) and (e) of section 257 require the declaration of survey to contain; and

(b) any other prescribed particulars.

(3) When a certificate relating to a ship is ready for delivery the Federal Government shall cause notice thereof to be given by post or otherwise to the owner or master of the ship.

260. **Powers of the Federal Government to order a second survey.**—(1) If a surveyor, or surveyors, making a survey refuse to give a declaration of survey under-section 257 with regard to any ship, or give a declaration with which the owner, agent or master of the ship surveyed is dissatisfied, the Federal Government may, on the application of the owner, agent or master, and on payment by him of such fee, not exceeding twice the amount of the fee for the previous survey, as the Federal Government may require, direct any other surveyor or surveyors to survey the ship.

(2) The Surveyor or surveyors so directed shall forthwith survey the ship, and may, after the survey, either refuse to give a declaration or give such declaration as under the circumstances seems

to them proper; and the decision of the surveyor or surveyors shall, subject to the other provisions of this Chapter, be final.

261. **Ships with certificates of survey or certificates of partial survey granted outside Pakistan.**—(1) When a ship is required to be furnished with a certificate of survey and the Federal Government is satisfied by the production of a certificate of survey—

(a) that the ship has been officially surveyed at a port in a country outside Pakistan;

(b) that the requirement of this Ordinance are proved, by that survey, to have been substantially compiled with; and

(c) that certificates of survey granted under this Chapter are accepted in such country in lieu of the corresponding certificates required under the laws in force in that country, the Federal Government may, if it thinks fit, dispense with any further survey of the ship in respect of the requirements so complied with, and give a certificate which shall have the same effect as a certificate given after survey.

(2) When the Federal Government has, by notification in the official Gazette, declared that it is satisfied that an official survey at a port in a country outside Pakistan specified in the declaration is such as to prove that the requirements of this Ordinance have been substantially complied with, any person authorised by the Federal Government in this behalf may exercise the power, to dispense with a survey and to give a certificate, conferred on the Federal Government by sub-section (1) in the case of any ship furnished with a valid certificate of survey granted at such port.

(3) The provisions of sub-section (1) shall be applicable in the case of ships furnished with valid certificates of partial survey including docking certificates, as if they were ships furnished with like certificates granted at ports in countries outside Pakistan subject to the modification that the powers of the Federal Government under the said sub-section may be exercised by any person authorised by the Federal Government in this behalf.

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262. **Duration of certificate of survey.**—A certificate of survey shall not be in force—

(a) after the expiration of one year or as prescribed from the date thereof;

(b) after the expiration of the period, as specified, for which the hull, boilers, engines or any of the equipment have been stated in the certificate to be sufficient; or

(c) after notice has been given by the Federal Government to the owner, agent or master of the ship to which the certificate relates that the Federal Government has cancelled or suspended it.

263. **Cancellation or suspension of certificate of survey by Federal Government.**—Any certificate of survey may be cancelled or suspended by the Federal Government if it has reason to believe—

(a) that the declaration by the surveyor of the sufficiency and good condition of the hull, boilers, engines or any of the equipment of the ship has been fraudulently or erroneously made; or

(b) that the certificate has otherwise been issued upon false or erroneous information.

264. **Alterations in ships subsequent to grant of certificate of survey and additional surveys.**—(1) The owner, agent or master of a ship in respect of which a certificate of survey has been granted and is in force shall, as soon as possible after any alteration is made in the ship's hull, equipment or machinery, give written notice to such person as the Federal Government may direct containing full particulars of the alteration.

(2) If the owner, agent or master of a ship, without reasonable cause, neglects to give the notice required by sub-section (1), he shall be liable to a fine which may extend to ten thousand rupees.

(3) If the Federal Government has reason to believe that since the making of the last declaration of survey in respect of a ship—

(a) any such alteration as aforesaid has been in the hull, equipment or machinery of the ship; or

(b) the hull, equipment or machinery of the ship have sustained any injury or are otherwise insufficient,

the Federal Government may require the ship to be again surveyed to such extent as it may think fit, and, if such requirement is not complied with, may cancel any certificate of survey in respect of the said ship.

265. **Delivery of expired or cancelled certificate.—**(1) Every certificate of survey granted, or deemed to have been granted, which has expired, or has been cancelled or suspended, shall be delivered up to such person as the Federal Government may direct.

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(2) If the owner, agent or master of a ship, without reasonable cause, neglects or refuses to deliver up a certificate as required by sub-section (1), he shall be liable to a fine which may extend to five thousand rupees.

266. **Certificate of survey to be affixed in conspicuous part of ship.**—(1) The owner, agent or master of every ship for which a certificate of survey has been granted shall forthwith, on the receipt of the certificate, cause one of the duplicates thereof to be affixed, and kept affixed so long as the certificate remains in force and the ship is in use, on some conspicuous part of the ship where it may be easily read by all persons on board thereof.

(2) If the certificate is not so kept affixed, the owner, agent and master shall each be liable to a fine which may extend to five thousand rupees.

267. **Ship not to carry passengers in contravention of the Ordinance.**—(1) No ship on any voyage shall carry or attempt to carry any passenger in contravention of section 248, or shall have on board or in any part thereof a number of passengers which is greater than the number set

forth in the certificate of survey as the number of passengers which the ship or the part thereof is fit to carry on that voyage.

(2) The owner, agent and of a master of a ship in respect of which the provisions of sub-section (1) are contravened shall each be liable to a fine which may extend to one hundred thousand rupees.

268. **Offenses in connection with passenger ships.**—(1) If, in the case of a ship for which a certificate of survey has been granted, any person—

(a) being drunk or disorderly has been on that account refused admission thereto by the owner or any person in his employ and, after having the amount of his fare (if he has paid it) returned or tendered to him nevertheless persists in attempting to enter the ship; or

(b) being drunk or disorderly on board the ship is requested by the owner or any person in his employ to leave the ship at any place in Pakistan at which he can conveniently do so, and after having the amount of his fare (if he has paid it) returned or tendered to him, does not comply with the request; or

(c) on board the ship after warning by the master or other officer thereof, molests or continues to molest any passenger; or

(d) having gone onboard the ship at any place and being requested, on account of the ship being full, by the owner or any person in his employ to leave the ship, before it has departed from that place and having had the amount of his fare (if he has paid it) returned or tendered to him, does not comply with the request; or

(e) travels or attempts to travel in the ship without first paying his fare and with intent to avoid payment thereof; or

(f) on arriving in the ship at the place for which he has paid his fare knowingly and wilfully refuses or neglects to quit the ship; or

(g) on board the ship fails when requested by the master or other officer thereof either to pay his fare or to exhibit such ticket or other receipt, if any showing the payment of his fare as is usually given to persons travelling by and paying fare for the ship,

he shall be liable to a fine which may extend to five thousand rupees but such punishment shall not prejudice the recovery of the fare, if any, payable by him.

(2) If any person on board any such ship wilfully does or causes to be done anything in such a manner as to obstruct or injure any part of the machinery, tackle of the ship or to obstruct, impede or molest the crew or any of them in the navigation or management of the ship or otherwise in the execution of their duty on or about the ship, he shall be liable to a fine which may extend to ten thousand rupees but such punishment shall not prejudice the recovery from him, by way of damages, of all losses and expenses suffered or incurred by the ship on account of his conduct.

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(3) The master or other officer of any such ship and all persons called by him to his assistance may, without warrant, detain any person who commits any offence thereunder and whose name and address are unknown to the master or officer and convey the offender with all convenient despatch before the nearest Magistrate to be dealt with according to law.

269. **Power to exclude drunken passengers from passenger ships.—**The master of any passenger ship may refuse to receive on board thereof any person who by reason of drunkenness or otherwise is in such a state or misconduct himself in such manner as to cause annoyance or injury to passengers on board, and if any such person is on board, may put him on shore at any convenient place; and a person so refused admittance or put on shore shall not be entitled to the return of any fare he has paid.

270. **Power to make rules.—**(1) The Federal Government may, by notification in the Official Gazette, make rules to regulate making of surveys.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the times and places at which, and the manner in which, surveys are to be made;

(b) the requirements as to construction, machinery, equipment and marking of sub-division load lines, which are to be fulfilled before a declaration of survey may be granted;

(c) the duties of the surveyor making a survey, and where two or more surveyors are employed, the respective duties of each of the surveyors employed;

(d) the form in which the declarations of survey and certificates of survey are to be made, and the nature of the particulars which are to be stated therein respectively; and (e) the rates according to which the fees payable in respect of surveys are to be calculated in the case of all or any of the ports of survey and sums payable on delivery of certificate.

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(e) the rates according to which the fees payable in respect of surveys are to be calculated in the case of all or any of the ports of survey and sums payable on delivery of certificate.

CHAPTER 19. —SPECIAL TRADE PASSENGERS SHIPS

271. **Special trade passenger ships to be mechanically propelled.—**(1) No ship shall carry more than fifty special trade passengers unless she is propelled wholly by electricity or other mechanical means of power.

(2) The owner, agent and master of a ship in respect of which the provisions of sub-section (1) are contravened shall each be liable to a fine which may extend to fifty thousand rupees.

272. **Places appointed by Federal Government.—**(1) A special trade passenger ship shall not depart or proceed on a voyage from or receive on board or discharge special trade passengers at, any port or place within Pakistan other than a port or place appointed in this behalf by the Federal Government.

(2) After a ship has departed or proceeded on a voyage from a port or place so appointed, a person shall not be received on board as a special trade passenger except at some other port or place so appointed.

273. **Notice to be given on day of departure.—**(1) The owner, agent or master of a special trade passenger ship intending to depart or proceed on a voyage from a port or place appointed under section 272 shall give notice to an officer appointed in this behalf by the Federal Government stating that the ship is to carry special trade passengers and also specifying her destination and the time at which it is proposed to depart or proceed.

(2) The notice under sub-section (1) shall be given not less than twenty-four hours before the time of the ship's departure or proceeding on a voyage, if in Pakistan, at the original port from which she departs or proceeds on a voyage, and, in other cases, at the first port in Pakistan at which she touches.

(3) The owner, agent and master of a ship in respect of which the provisions of sub-section (l) are not complied with shall each be liable to a fine which may extend to five thousand rupees.

274. **Power to enter on and inspect ship.**—After receiving the notice under section 273, the officer or a person authorised by him may at all times enter on the ship and inspect her and her fittings and the provisions and stores on board.

275. **Special trade safety and space certificate.**—(1) If after inspection and survey the Federal Government is satisfied in respect of a special trade passenger ship that the ship complies with the requirements of the rules mentioned in sub-sections (2) and (3), it shall, on an application by the owner or master of the ship, cause, in addition to the certificates referred to in section 342, to be prepared and delivered to the owner or master, a special trade passenger ship safety certificate and a special trade passenger ship space certificate.

(2) A special trade passenger ship safety certificate shall be in the prescribed form and shall state that the ship has been surveyed and complies with the rules annexed to the Special Trade Agreement applicable to a voyage within the special trade area.

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(3) A special trade passenger ship space certificate shall be in the prescribed form, shall indicate the name of the ship, her distinctive number or letters, port of registry, gross tonnage, date on which keel was laid and space available for accommodation of special trade passengers, and shall state that the ship has been surveyed and that the spaces shown have been found to comply with the requirements of the rules annexed to the Protocol on Space Requirements for Special Trade Passenger Ship, 1973, being a complementary to the Special Trade Agreement.

(4) A certificate issued under sub-section (2) or sub-section (3) shal remain in force for a period of one year from the date of issue or for such period as may be specified therein.

276. **Ship not to sail without certificate A and B.**—(1) A ship intended to carry special trade passengers, between ports or places in Pakistan shall not commence a voyage from any port or place appointed under sub-section (1) of section 272 unless the master holds certificates to the effects mentioned in sections 277 and 278.

(2) A ship intended to carry special trade passengers from or to port or place in Pakistan to or from a port or place outside Pakistan shall not commence a voyage from any port or place appointed under sub-section (I) of section 272 unless the master holds—

(i) a passenger ship safety certificate;

(ii) an exemption certificate;

(iii) a special trade passenger ship safety certificate;

(iv) a special trade passenger ship space certificate; and

(v) a certificate referred to in section 278.

(3) The officer of Customs whose duty it is to grant a port-clearance for the ship shall not grant it unless the master holds the appropriate certificate for the voyage specified in sub-section (1), or as the case may be in sub-section (2).

277. **Contents of certificate A.**—(1) The first of the certificates, referred to in sub-section (1) of section 276 (hereinafter called certificate A) shall be in the prescribed form and contain such particulars as may be prescribed.

(2) In particular, and without prejudice to the generality of the foregoing provisions, certificate A shall contain the following statements and particular, namely:—

(i) that the ship is seaworthy;

(ii) that the ship is properly equipped fitted and ventilated;

(iii) the number of special trade passenger the ship is certified to carry; and

(iv) such other particulars as may be prescribed.

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(3) Certificate A shall remain in force for a period of one year from the date of issue or for such shorter period as may be specified therein.

278. **Contents of certificate B.**— The second of the certificates, referred to in sub-section (1) of section 276 (hereinafter called certificate B) shall be in the prescribed form and shall state—

(a) the voyage which the ship is to make and the intermediate ports, is any, at which she it to touch;

(b) that she has the proper complement of officers and seamen;

(c) that the master holds—

(i) a certificate of survey and certificate A; or

(ii) a passenger ship safety certificate accompanied by an exemption certificate, a special trade passenger ship safety certificate and a special trade passenger ship space certificate; or

(iii) a nuclear passenger ship safety certificate;

(d) that she has on board such number of medical officers licensed in the prescribed manner and such number of medical attendants, if any, as may be prescribed;

(e) that food, fuel and fresh water over and above what is necessary for the crew, and the other things, if any, prescribed for special trade pasengers ships, have been placed on board, of the quality prescribed, properly packed, and sufficient to supply the special trade passengers on board during the voyage which the ship is to make (including such detention in quarantine as may be probable) according to the prescribed scale;

(f) if the ship is to make a voyage in a season of foul weather prescribed as such and to carry upper-deck-passengers, that she is furnished with sufficient bulwarks and double awnings or with other sufficient protection against the weather;

(g) the number of cabins and special trade passengers embarked at the port of embarkation; and

(h) such other particulars, if any, as may be prescribed for special trade passengers.

279. **Customs Collector or officer of Customs not to grant port-clearance certificate**.—The Customs collector or any officer of Customs shall not grant a port clearance to a ship intended to carry special trade passengers unless the master thereof holds certificate B issued under section 278.

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280. **Survey of ship.**—After receiving the notice under section 273 the certifying officer may, if he thinks fit, cause the ship to be surveyed at the expense of the master or owner by a surveyor, who shall report to him whether the ship is in his opinion, seaworthy and properly equipped, fitted and ventilated for the service of which she is to be employed:

Provided that he shall not cause a ship holding a valid certificate referred to in sub clauses (i), (ii) or (iii) of clause (c) of section 278 to be surveyed unless, by reason of the ship having met with damage or having undergone alterations, or on other reasonable grounds, he considers it likely that she may be found unseaworthy or not properly equipped, fitted or ventilated for the service on which she is to be employed.

281. **Discretion as to grant of certificate B.**—(1) Save as provided in sub-sections (2) and (3), it shall be in the discretion of the certifying officer to grant or withhold certificate B and, when he withholds the certificate, he shall communicate the reasons thereof to the person concerned.

(2) The certifying officer shall not grant certificate B if he has reason to believe that the weather conditions are likely to be adverse or that the ship has on board any cargo likely from its quality, quantity or of stowage to prejudice the health or safety of the special trade passengers.

(3) In the exercise of his discretion, the certifying officer shall be subject to the control of the Federal Government and of any authority appointed by it in this behalf.

282. **Copy of certificate to be exhibited.**—The master or owner of a special trade passenger ship shall post up in a conspicuous part of the ship, so as to be visible to persons on board thereof, a copy of each of the certificates granted under this Chapter in respect of the ship, and shall keep those copies so posted up throughout the voyage.

283. **Ship taking additional passengers at intermediate places.**—If any special trade passenger ship performing a voyage between ports or places in Pakistan takes additional special trade passengers on board at an intermediate port or place, the master shall obtain from the certifying officer at that port or place a supplementary certificate stating—

(a) the number of special trade passengers so taken on board; and

(b) that food, fuel and fresh water over and above what is necessary for the crew and the other things, if any, prescribed for such a ship, have been placed on board, of the quality prescribed, properly packed and sufficient to supply the special trade passengers on board during the voyage which the ship is to make, including such detention in quarantine as may be probable, according to the prescribed scale:

Provided that no such supplementary certificate shall be necessary if the certificate B held by the master of the ship states that food, fuel and fresh water over and above what is necessary for the crew, and the other things, if any, prescribed for such ships, have been placed on board, of the quality prescribed, properly packed and sufficient to supply the full number of special trade passengers which she is capable of carrying, and the master obtains thereon from the certifying officer an endorsement showing the number of passengers taken on board, and the number of passengers discharged, at that port or place.

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284. **Statements concerning passengers.**—(1) The master of a special trade passenger ship departing or proceeding on a voyage from any port or place in Pakistan to any port or place outside Pakistan shall sign a statement in duplicate, specifying the total number and the respective sexes of all the special trade passengers, and the number of the crew, and shall deliver them to the certifying officer who shall thereupon, after having first satisfied himself that the numbers are correct, countersign and return to the master one of the statements.

(2) The master of a special trade passenger ship shall—

(a) if after the ship has departed or proceeded on such a voyage any additional special trade passengers are received on board at a port or place within Pakistan appointed in this behalf under section 272; or

(b) if the ship upon her voyage touches or arrives at any such port or place, having previously received on board additional special trade passengers at any port or place outside Pakistan, obtain a fresh certificate to the effect of

certificate B from the certifying officer at the said port or place within Pakistan and shall make and deliver an additional statement specifying the total number and the respective sexes of all the additional passengers.

285. **Deaths on voyage.**—(1) When a special trade passenger ship reaches her port or place of destination after performing a voyage between ports or places in Pakistan, the master shall notify to such officer as the Federal Government may appoint in this behalf, the date and the supposed cause of death of every passenger who may die on the voyage.

(2) The master of a special trade passenger ship performing a voyage between a port or place in Pakistan to a port or place outside Pakistan shall note in writing on the statement returned to him under sub-section (1) of section 284 and on any additional statement referred to in sub-section (2) of that section, the date and the supposed cause of death of any special trade passenger who may die on the voyage, and shall, when the ship arrives at her port or place of destination or at any port or place where it may be intended to discharge special trade passengers, and before any passenger leaves the ship, produce the statement with any addition made thereto—

(a) where such port or place is in Pakistan, to the certifying officer or the Customs-Collector; and

(b) where such port or place is outside Pakistan, to Pakistan consular officer.

286. **Special trade passenger ships to carry medical officers.—**Every ship carrying special trade passenger shall be provided with a hospital with such medical stores and equipment as may be prescribed and shall have on board as part of her complement—

(a) where the number of special trade passengers carried does not exceed one hundred, at least one medical officer possessing such qualifications as may be prescribed; and

(b) where the number of such passenger exceeds one hundred, in addition to a medical officer, such number of medical attendants as may be prescribed.

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287. **Penalty for non-compliance with certain provisions.—**If a master, owner or agent of a special trade passenger ship—

(a) fails, without reasonable cause, the burden of proving which shall lie upon him, to obtain any such supplementary certificate as is mentioned in section 283; or

(b) fails to comply with any of the requirement of sections 274, 282, 284 or 286; or

(c) wilfully makes any false entry or note in or on any statement referred to in sections 284 or 285, he shall be liable to fine which may extend to fifty thousand rupees.

288. **Penalty for bringing passengers from any foreign port in excess of authorised number.—**If a ship carrying special trade passengers from any port or place beyond Pakistan to any port or place in Pakistan has on board a number of passengers greater either than the number

allowed for the ship, by or under this Chapter, or than the number allowed by the licence or certificate, if any, granted in respect of the ship at her port or place of departure, the master and owner shall, for every special trade passenger in excess of that number, be each liable to a fine which may extend to fifty thousand rupees.

289. **Penalty for failing to supply special trade passengers with prescribed provisions.—** (1) If the master of a special trade passenger ship, or any contractor employed by him for the purpose, without reasonable cause, the burden of proving which shall lie upon him, omits to supply to any special trade passenger the prescribed allowance of food, fuel and water, he shall be liable to a fine which may extend to five thousand rupees for every special passenger who has sustained detriment by the omission to supply the prescribed provisions.

(2) Where, under the terms of the ticket issued to a special trade passenger, he is not entitled to the supply of food as fore said; sub-sections (1) shall have effect in relation to such passenger as if reference therein to "food" were omitted.

290. **Penalty for ship unlawfully departing or receiving passengers on board.—**(1) If a special trade passenger ship departs or proceeds on a voyage from, or discharges special trade passengers at any port or place within Pakistan in contravention of the provisions of this Chapter, or if a person is received as a special trade passenger on board any such ship in contravention of any such provision, the master or owner shall, for every special trade passenger carried in the ship, or for every special trade passenger so discharged or received on board, be liable to a fine which may extent to ten thousand rupees.

(2) The Customs-Collector, if he has reasonable grounds to believe that the master or owner of a ship has contravened the provision of sub-section (1), may seize and detain the ship, whenever found in any port or place within Pakistan, until such contravention has been adjudicated and the payment of the fines, if any, imposed on the master or owner with all costs has been enforced.

291. **Penalty for fraudulent alteration in ship after certificate obtained.—**If the master of a special trade passenger ship after having obtained any of the certificate mentioned in this Chapter fraudulently does or suffers to be done anything where by a certificate becomes inapplicable to the altered state of the ship, or her special trade passengers or other matters to which the certificate relates, he shall be liable to a fine which may extend to one hundred thousand rupees.

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292. **Number of passengers on board not to exceed that allowed by or under this Chapter.—**(1) No special trade passenger ship on any voyage shall carry or attempt to carry a number of special trade passengers which is greater than the number allowed for the ship by or under this Chapter.

(2) The owner, agent and master of a ship in respect of which the provisions of sub-section (1) are contravened shall each be liable to a fine which may extend to one hundred thousand rupees.

293. **Penalty for discharging special trade passengers at any port or place other than that contracted for.—**If the master of special trade passenger ship discharges any special trade passenger at any port or place other than the port or place contracted for by the passenger, except with his previous consent, or except when the discharge is made necessary by perils of the sea or other unavoidable accident, the master shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

294. **Penalty for making voyage in contravention of contract.—**If a special trade passenger ship, otherwise than by reason of perils of sea or other unavoidable accident, touches at any port or place in contravention of any express or implied contract or engagement with the special trade passengers with respect to the voyage which the ship was to make and the time which that voyage was to occupy, whether the contract or engagement was made by public advertisement or otherwise, the master and owner shall each be liable to a fine which may extend to ten thousand rupees.

295. **Forwarding of passengers by Pakistan Consular Officers.—**(1) If any special trade passenger from a ship which is on a voyage from any port or place in Pakistan finds himself, without any neglect or default of his own, at any port or place outside Pakistan other than the port or place for which the ship was originally bound or at which he has contracted to be discharged, the Pakistan consular officer at or near that port or place may forward the passenger to his intended destination, unless the master, owner or agent of the ship within forty-eight hours of the arrival of the passenger gives to that officer a written undertaking to forward the passenger within four weeks thereafter to his original destination and forwards him accordingly within that period.

(2) A passenger so forwarded by a Pakistan consular officer shall not be entitled to the return of his passage money or to any compensation for loss of passage.

296. **Recovery of expenses incurred in forwarding passengers.—**(1) All expenses incurred under section 295 by a Pakistan consular officer in respect of the forwarding of a passenger to his destination, including the cost of maintaining the passenger until he is forwarded to his destination, shall be a debt due to the Federal Government jointly and severally from the owner, charterer, agent and master of the ship on board which the passenger had embarked.

(2) In any proceeding for the recovery of that debt a certificate purporting to be under the hand of the Pakistan consular officer and stating the circumstances of the case and the total amount of the expenses shall be *prima facie* evidence of the amount of the expenses and of the fact that the same were duly incurred.

297. **Information to be sent to ports of embarkation and dis-embarkation.—**(1) The officer appointed by the Federal Government in this behalf, at any port or place within Pakistan at which a special trade passenger ship touches or arrives, shall send any particulars which he may deem important respecting the special trade passenger ship, and the special trade passengers carried therein, to the officer at the port or place from which the ship commenced her voyage, and to the officer at any other port or place within Pakistan where the special trade passengers or any of them embarked or are to be disembarked.

(2) The officer aforesaid may go on board any such ship and inspect herein order to ascertain whether the provisions of this Chapter as to the number of special trade passengers and other matters have been complied with.

298. **Information sent under section 297, etc., to be admissible in evidence.—**In any proceeding for the adjudication of any penalty incurred under this Chapter, any document purporting to be particulars sent under sub-section (1) of section 297 or a copy of the proceedings of any court of law duly authenticated, and also any like document purporting to be made and signed by a Pakistan consular officer shall be received in evidence, if it appears to have been officially transmitted to any officer at or near the place where the proceeding under this Chapter is held.

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299. **Power to make rules as to special trade passenger ships.—**(1) The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of this chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the classification of voyages with reference to the distance between the port of departure and the port of destination, the duration of the voyage or any other consideration which the Federal Government may think fit to take into account for the purpose;

(b) the seasons of fair weather and seasons of foul weather for purposes of any voyage;

(c) the space to be allowed for special trade passengers, in respect of different classes of voyages and for seasons of fair and foul weather;

(d) the disallowance of any space considered unsuitable by the surveyor for the carriage of special trade passengers;

(e) the space to be set apart for alleyways, passages and the like;

(f) the provision of airing space for special trade passengers;

(g) the scale according to which dining rooms, latrines, wash places, baths, dressing rooms and other amenities are to be provided;

(h) the provision of separate accommodation for women and children;

(i) the prohibition or regulation of the carriage of cargo in any space reserved for passengers;

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(j) where the deck on which special trade passengers are accommodated is not covered with wood, the nature of the sheathing to be provided in the space reserved for passengers;

(k) the disposal of baggage of passengers on board ship and the provisions of separate space in the between decks for the storage of light baggage;

(l) the conditions under which passengers may be allowed to be carried in the upper deck in seasons of foul weather;

(m) the provision of bunks for special trade passengers or for any proportion of such passengers on any specified classes of voyage, and the size ad other particulars relating to the bunks to be so provided;

(n) the scale on which food and water are to be supplied to passengers or to any class of passengers, and the quality of the food, fuel and water;

(o) the nature and extent of hospital accommodation and the medical stores and other appliances and fittings to be provided on board for maintaining health, cleanliness and decency;

(p) the licensing and appointment of medical officers and attendants in cases where they are required by this Chapter to be carried;

(q) the anchors and cables to be provided on board;

(r) the instruments to be supplied for purposes of navigation;

(s) the functions of the master, medical officer, if any, and other officers of the ship during the voyage;

(t) the access of between decks passengers to the upper-deck;

(u) the local limits within which, at the time and mode at and in which passengers are to be embarked or disembarked at any port or place appointed under this Chapter in that behalf;

(v) the time within which any ship of a specified class is to depart or proceed on her voyage after commencing to take passengers on board;

(w) the conditions under which live-stock may be allowed to be carried; and

(x) the licensing, supervision and control of persons engaged in assisting persons to obtain special trade passenger accommodation in ships departing or proceeding from any port or place in Pakistan and prohibition of unlicensed persons from being so engaged.

CHAPTER 20. — PILGRIM SHIPS

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300. **Application of certain provisions of Chapter 19 to pilgrim ships.—**The provisions of sections 272 to 282 (both inclusive) and sections 289 to 298 (both inclusive) shall, so far as they are not inconsistent with a provisions of this Chapter, shall apply to pilgrim ships as they apply to special trade passenger ships, and for the purpose of such application—

(a) all references therein to special trade passenger ships and special trade passengers shall be construed as references to pilgrim ships and to pilgrims respectively; and

(b) clauses (f) and (g) of section 278 shall be deemed to have been omitted.

301. **Pilgrim ships to be mechanically propelled.—**(1) No ship shall be employed, or proceed on a voyage, as a pilgrim ship unless she is propelled wholly by electricity or other mechanical means of power.

(2) The owner, agent and master of a ship in respect of which the provisions of sub-section (1) are contravened shall each be liable to a fine which may extend to fifty thousand rupees.

302. **Accommodation, etc; for pilgrims.—**(1) The Federal Government may, by rules, determine the number of pilgrims to be carried on any pilgrim ship and the accommodation to be provided for each pilgrim on board such ship.

(2) Every pilgrim ship shall have reserved for the use of the pilgrims on board gratuitously by day and by night so much of the upper-deck space as is not required for the airing space of the crew or for permanent structures and, subject to any rules made in this behalf, such space may be allotted among the different classes of pilgrims in such proportion as may be thought fit:

Provided that the upper-deck space available for pilgrims shall in no case be less than 0.56 square metres (six square feet) for each pilgrim of each class.

303. **Disposal of pilgrims baggage.—**The baggage of all pilgrims shall be disposed of on board in such manner as may be prescribed.

304. **Hospital accommodation.—**There shall be a regularly appointed hospital on board every pilgrim ship, offering such conditions of security, health and space, and capable of accommodating such number, not exceeding five per cent of the pilgrims embarked as may be prescribed.

305. **Statement concerning pilgrims to be delivered before ship departs.—**The master of every pilgrim ship departing or proceeding on a voyage from any port in Pakistan shall sign a statement in duplicate in the prescribed form specifying the total number and the number of each sex of all the pilgrims embarked and the number of the crew, and such other particulars as may be prescribed, and shall deliver both copies to the certifying officer who shall thereupon, after having first satisfied himself that the entries are correct, countersign and return to the master one of the copies.

306. **Death on voyage.—**The master of every pilgrim ship shall note in writing on the copy of the statement returned to him under section 305, and on any additional statement to be made under section 307, the date and the supposed cause of death of any pilgrim who may die on the voyage, and shall when the pilgrim ship arrives at her port or place of destination or any port or place at which it may be intended to discharge pilgrims, and before any pilgrims disembark, produce the statement, with any additions made thereto—

(a) where such port or place is in Pakistan, to the certifying officer or the officer of Customs; and

(b) where such port or place is outside Pakistan, to the Pakistan consular officer.

307. **Pilgrim ship taking additional pilgrims at intermediate place.—**The master of a pilgrim ship shall—

(a) if, after the ship has departed or proceeded on her voyage, any additional pilgrims are received on board at a port or place within Pakistan appointed in this behalf under section 272; or

(b) if the ship upon her voyage touches or arrives at any such port or place, having previously received on board additional pilgrims at any place beyond

Pakistan, obtain a fresh certificate on the lines of certificate B from the certifying officer at the said port or place, within Pakistan and shall make and deliver an additional statement, in duplicate in the prescribed form in respect of such additional pilgrims.

308. **Statement concerning pilgrims to be delivered before pilgrims disembark in Pakistan.—**The master of every pilgrim ship arriving at any port or place in Pakistan at which it may be intended to discharge pilgrims shall, before any pilgrims disembark, deliver to the certifying officer appointed thereat, a statement signed by him specifying the total number and the number of each sex of all the pilgrims on board and the number of the crew and such other particulars as may be prescribed.

309. **Penalty for not complying with requirements as to statements concerning pilgrims, etc.—**If the master of a pilgrim ship fails to comply with any of the requirements of section 305, or section 306, or section 308 as to the statements concerning pilgrims, or wilfully makes any false entry or note in or on any such statement, or fails to obtain any such fresh certificate or to make any such statement of the number of additional pilgrims as is mentioned in section 307, he shall, in respect of each offence, be liable to a fine which may extend to ten thousand rupees.

310. **Certain pilgrim ships to carry medical officers and attendants.—**(1) Every pilgrim ship carrying pilgrims and crew exceeding one hundred in number shall have on board a medical officer possessing such qualifications as may be prescribed, and, if the number of pilgrims and crew carried exceeds one thousand, a second medical officer similarly qualified, and if the aforesaid number exceeds two thousand, a third medical officer similarly qualified, and also in all cases such attendants as may be prescribed; and such medical officers and attendants shall give their services free to all pilgrims on board.

(2) If medical officers and attendants are not carried on a pilgrim ship in accordance with the provisions of sub-section (1), the master, owner and agent shall each be liable to a fine which may extend to fifty thousand rupees.

(3) Any medical officer or attendants on a pilgrim ship who charges any pilgrim on such ship for his services shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

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311. **Medical officer's diaries and reports.—** Every medical officer on a pilgrim ship shall keep such diaries and shall submit such reports or other returns as may be prescribed.

312. **Bond where pilgrim ship proceeds on outward voyage.—**(1) Port–clearance shall not be granted from any port in Pakistan to any pilgrim ship unless the master, owner or agent and two sureties resident in Pakistan have executed, in favour of the Federal Government, a joint and several bond for the sum of fifty thousand rupees covering all voyages which may be made by the ship in the current pilgrim season, conditioned that—

(a) the master and medical officer, as the case may be, shall, comply with the provisions of this Chapter and the rules made thereunder; and

(b) the master, owner or agent, as the case may be, shall pay any sum claimed by the Federal Government under section 318.

(2) A bond may be given under this section covering any or all of the pilgrim ships owned by one owner, and in such case the amount of the bond shall be fifty thousand rupees for each ship covered.

313. **Medical inspection and permission required before embarkation of pilgrims.—**(1) No pilgrim shall be received on board any pilgrim ship at any port or place in Pakistan unless and until he or she has been medically inspected, at such time and place, and in such manner, as the Federal Government may fix in this behalf, nor until the certifying officer has given permission for the embarkation of pilgrims to commence.

(2) So far as may be practicable, and subject to any rules made in this behalf, the medical inspection of female pilgrims shall be carried out by women.

(3) No pilgrim shall be received on board any pilgrim ship unless he or she produces medical certificates signed by persons, who, in the opinion of the officer making an inspection under this section, are duly qualified to grant such certificates, showing that such pilgrim has been, within such period before embarkation, inoculated or vaccinated against any such disease as may be prescribed.

(4) If, in the opinion of the officer making an inspection under this section, any pilgrim is suffering from cholera or choleraic indisposition, or any dangerously infectious or contagious disease, or shows any signs of the same or any other suspicious symptoms, such pilgrim shall not be permitted to embark.

(5) All articles which have been contaminated by persons suffering from cholera or choleraic indisposition, or any dangerously infectious or contagious disease or are suspected of having been so contaminated shall, before being taken on board a pilgrim ship, be disinfected, under the supervision of a medical officer appointed by the Federal Government for the purpose, in such manner as may be prescribed.

(6) If the master of any ship knowingly receives on board any pilgrim or contaminated articles in contravention of any of the provisions of this section, he shall be liable to a fine which may extend to ten thousand rupees.

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314. **Medical inspections after embarkation in certain cases.— (1)** If in any case a pilgrim ship does not proceed on her voyage within forty-eight hours after all the pilgrims have been received on board, and there is reason to suspect that any person on board is suffering from cholera or choleraic indisposition or any dangerously infectious or contagious disease, a medical inspection of all persons on board may be held in such manner as the Federal Government may direct.

(2) If on such inspection any person is found to be suffering from cholera or choleraic indisposition or any dangerously infectious or contagious disease, or shows any signs of the same or any other suspicious symptoms, he shall, together with all articles belonging to him, be at once removed from the ship.

(3) If the master knowingly keeps on board any pilgrim or article ordered to be removed under this section, he shall be liable to a fine which may extend to ten thousands rupees.

315. **Returan passage to be secured.—** No pilgrim shall be received on board any pilgrim ship at any port or place in Pakistan unless he—

(a) is in possession of a return ticket; or

(b) has deposited in the prescribed manner such sum for the purpose of defraying the cost of a return ticket as the Federal Government may, by notification in the official Gazette, specify

Provided that the officer authorised in the behalf by the Federal Government may, if he is satisfied that it is inexpedient in the special circumstances of the case to enforce all or any of the above requirements, exempt any pilgrim from the same.

316. **Issue or production of tickets.—** (1) Every pilgrim travelling on a pilgrim ship shall be entitled, on payment of his passage-money and fulfilment of other prescribed conditions, if any, to receive a ticket in the prescribed form, and shall be bound to produce it to such officers and on such occasions as may be prescribed and otherwise to deal with it in the prescribed manner:

Provided that no pilgrim who has not been exempted under the proviso to section 315 shall be given a ticket other than a return ticket unless he has made the deposit required by that section.

(2) Any ticket issued to a pilgrim for a voyage on a pilgrim ship shall entitle him to receive food and water, on the scale and of the quality prescribed and necessary medicines and medical treatment free of further charge, throughout the voyage.

317. **Refund of deposits and passage–money.—**(1) Every pilgrim prevented from embarking under section 313 or removed from the ship under section 314 shall be entitled to the refund of any passage-money which he may have paid, and of any deposit which he may have made under section 315.

(2) Any pilgrim who, within two months of his sailing from Pakistan, satisfies the Pakistan consular officer at Jeddah that he intends to remain in the Kingdom of Saudi Arabia, or to return to Pakistan by a route other than the route by which he came from Pakistan, shall be entitled to a refund of any deposit made by him under section 315 or, if he is in possession of a return ticket, to a refund of half the passage-money paid by him.

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(3) Where any pilgrim dies in the Kingdom of Saudi Arabia or on the voyage thereto, any person nominated by him in this behalf in writing in the prescribed manner, or, if no person has been so nominated his legal representative shall be entitled to a refund of any deposit made by such pilgrim under section 315, or, if such pilgrim was in possession of a return ticket, to a refund of the passage-money paid by such pilgrim.

(4) Where any pilgrim fails to return to Pakistan from the Kingdom of Saudi Arabia within six months of his sailing from Pakistan, or returns to Pakistan by a route other than the route by which he came from Pakistan, he or any person nominated by him in this behalf in writing in the prescribed manner shall be entitled to a refund of any deposit made by such pilgrim under section 315, or, if such pilgrim was in possession of a return ticket, to a refund of half the passage-money paid by such pilgrim except where such deposit or passage-money has already been refunded under this section.

(5) Refunds under sub-sections (1), (2), (3) and (4) of deposits shall be subject to such conditions and of passage-money to such deductions and conditions as may be prescribed.

318. **Unclaimed deposits and passage money to vest in Federal Government. —** (1) All deposits made under section 315 which have been unclaimed for the prescribed period shall vest in the Federal Government.

(2) If any pilgrim entitled to a refund of passage-money under sub-section (1) of section 317, does not claim such refund within the prescribed period, or if any pilgrim who has purchased a return ticket does not on the basis of such ticket obtain a return passage from the Kingdom of Saudi Arabia within the prescribed period and the value of the return half of such ticket has not been refunded under sub-sections (2) or (3) or (4) of the aforesaid section, such passage-money or value shall vest in the Federal Government.

(3) Unclaimed deposits and passage-money vesting in the Federal Government under sub-section (1) or sub-section (2) shall be made over to such authority administering any fund maintained for the assistance of pilgrims as the Federal Government may, by general or special order, designate in this behalf.

319. **Cost of return journey of pilgrims on ships other than those for which return ticket is available.—** (1) The master, owner or agent of a pilgrim ship shall make all arrangements for ensuring the return *ex*-Jeddah, within a period of sixty days after the *Hajj* day, of all pilgrims in possession of return tickets issued in Pakistan who are carried to the Kingdom of Saudi Arabia by such ship:

Provided that, for the purpose of computing the said period of sixty days, no period shall be taken into account during which the ship is prevented from carrying pilgrims on the return passage by reason of the port of Jeddah having been declared by proper authority to be infected, or by reason of war, disturbance, or any other cause not arising from any act or default of the master, owner or agent.

(2) Where any such pilgrim who has notified to the prescribed authority in the prescribed manner his desire to embark for the return voyage is, owing to his inability to obtain accommodation within the period of sixty days aforesaid, detained at Jeddah beyond the said period, the master, owner or agent of the ship in which such pilgrim was carried to the Kingdom of Saudi Arabia shall pay to the Federal Government in respect of such pilgrim such sum not exceeding double the sum received by the master, owner or agent in respect of the return ticket as the Federal Government claims as the cost of repatriating the pilgrim, together with a sum of fifty rupees for each day after the expiry of the period aforesaid during which the pilgrim has been detained at Jeddah.

(3) A certificate of such detention purporting to be made and signed by the Pakistan consular officer at Jeddah shall be received in evidence in any court in Pakistan without proof of the signature or of the official character of the person who has signed the same.

320. **Notice of proceeding of pilgrim ship on voyage.—** (1) The master, owner or agent of any ship which is intended to proceed on a voyage as a pilgrim ship from any port or place in Pakistan shall before advertising such ship for the conveyance of pilgrims or offering to convey any pilgrim by such ship or selling or permitting any person to sell a passage ticket to any pilgrim for conveyance by such ship, supply to the prescribed officer (hereinafter referred to as the Port Hajj Officer) at the port or place from which the ship is to commence the voyage, and at each port or place in Pakistan at which it is to touch for the purpose of receiving pilgrims on board, full particulars as to the class, tonnage and age of the ship, the maximum number of passage tickets of

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each class to be issued, the maximum price of each class of ticket, the date on which the ship is to depart or proceed on a voyage from that port or place, the ports, if any, at which it is to touch, the place of its destination, and the probable date of its arrival thereat.

(2) The master, owner or agent shall supply to the Port Hajj Officer, within three days from the date of demand, such further information in regard to the matters mentioned in sub-section (1) as that officer may in writing demand from him.

(3) The master, owner or agent of a pilgrim ship shall, at such time not being less than ten days preceding the date of departure or proceeding on voyage of the ship from any port or place in Pakistan as may be prescribed, advertise at such port or place in the prescribed manner—

(a) the place of destination of the ship;

(b) the proposed date of departure or proceeding on voyage from that port or place which shall be the date communicated to the Port Hajj Officer under sub-section (1); and

(c) the price of each class of passage tickets, which shall not be in excess of the price communicated to the Port Hajj Officer under sub-section (1).

(4) A master, owner or agent of a pilgrim ship who—

(a) without reasonable cause, the burden of proving which shall lie upon him, fails or refuses to supply any particulars or information which he is by or under this section required to supply, or supplies false particulars or information; or

(b) advertises any ship for the conveyance of pilgrims, or offers to convey pilgrims by any ship, or sells or promises or permits any person to sell passage tickets to pilgrims for conveyance by any ship, without having first supplied the particulars required by sub-section (1) and in accordance with the provisions of that sub-section; or

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(c) advertises a date of departure or proceeding on voyage from any port or place other than the date communicated to the Port Hajj Officer at that port or place under sub-section (1), or advertises a price for passage tickets at that port or place in excess of the price so communicated; or

(d) offers to convey pilgrims by any ship from any port or place in Pakistan or sells or promises or permits any person to sell passage tickets to pilgrims for conveyance by a ship from any such port or place without having made advertisement, as required by sub-section (3), of the matters specified in that sub-section ; or

(e) sells or permits an person to sell to any pilgrim any passage ticket at a price in excess of the price communicated to the Port Hajj Officer under sub–section (1), shall be liable to a fine which may extend to ten thousand rupees.

321. **Compensation for delay in departing or proceeding on voyage.—** (1) If a pilgrim ship fails to depart or proceed on voyage from any port or place on the date advertised under sub-section (3) of section 320, the master, owner or agent shall be liable to pay as compensation to each pilgrim who has paid his passage money on or before such date the stum of fifty rupees for each completed day during which the departure or proceeding on voyage of the ship is delayed after that date:

Provided that such compensation shall not be payable in respect of any period during which the departure of the ship is impossible owing to any cause not arising from the act or default of the master, owner or agent, the burden of proving which shall lie on the master, owner or agent:

Provided further that where compensation has been paid or has become payable to any pilgrim in respect of delay in the departure or proceeding on voyage of the ship from any port or place and the departure or proceeding on voyage of the ship from any other port or place is thereafter delayed, the pilgrim shall be entitled to compensation only in respect of any period by which the duration of such further delay exceeds, the duration of the delay in respect of which he has already received or become entitled to compensation.

(2) In the event of such failure, the master, owner or agent shall be bound forth-with to inform the Port Hajj Officer at the port or place at which the delay occurs of the number of passage tickets of each class which have been issued for the voyage on or before the advertised date of departure or proceeding on voyage.

(3) Any sum payable to the pilgrims as compensation under sub-section (1) shall be paid to the Port Hajj Officer at the port or place at which the delay occurs by the master, owner or agent on receipt by him of a notice from that officer specifying the sum payable; and the Port Hajj Officer shall, in such manner as may be prescribed, pay to each such pilgrim the compensation paid in respect of his detention:

Provided that, if an objection is made by the master, owner or agent that the sum specified in any such notice or any part of such sum is not payable by him, the sum paid or, as the case may be, the balance thereof remaining after payment to the pilgrims entitled thereto of compensation the right to which is not in dispute, shall be held in deposit until the objection has been decided:

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Provided further that if, for any reason, the compensation due to any pilgrim cannot be paid to him at the time of embarkation or at or before the time of his disembarkation at the port of his destination, the sum so remaining unpaid shall be made over to such authority as is referred to in sub-section (3) of section 318.

(4) If the master, owner or agent objects that the sum specified in the notice issued under sub-section (3) or any part thereof is not payable by him, he may, at the time of payment of such sum, give to the Port Hajj Officer notice of his objection, together with a statement of the grounds thereof, and the Port Hajj Officer shall thereupon either cancel or modify the aforesaid notice in accordance with the objection and refund the sum held in deposit under sub-section (3), or refer the objection for decision to a Magistrate of the first class exercising jurisdiction at the port or place at which the ship is delayed whose decision on such reference shall be final.

(5) If the Magistrate decides on a reference under sub-section (4) that any sum held in deposit is not payable as compensation under sub-section (1), such sum shall be refunded to the master, owner or agent, as the case may be.

(6) On the failure of any pilgrim ship to depart or proceed on voyage from any port or place on the date advertised under sub-section (3) of section 320, the Port Hajj Officer at that port or place shall forthwith give notice of such failure to the officer authorised to grant port-clearance to ships thereat, and such officer shall refuse port clearance to the pilgrim ship until the master, owner or agent produces to him a certificate of the Port Hajj Officer that all sums payable by way of compensation under this section up to the day on which the ship is to depart or proceed on voyage have been paid.

(7) Nothing in this section or in section 324 shall apply to any advertisement made before the time prescribed under sub-section (3) of section 320, and intended to give the public information of the approximate date of the departure or proceeding on voyage of a pilgrim ship, where such advertisement clearly states that the date so advertised is approximate only and that the corrct proposed date shall be advertised later.

322. **Substitution of ships.—**Notwithstanding anything contained in section 320 or section 321, where any ship which has been advertised under sub-section (3) of section 320 for the conveyance of pilgrims has been or is likely to be delayed beyond the advertised date of departure or proceeding on voyage, the owner or agent may, with the permission in writing of the Federal Government, substitute for it any other ship which is capable of carrying not less than the same number of pilgrims of each class, and where the ship is substituted with such permission the advertisement shall be deemed to have been made in respect of the ship so substituted, and all the provisions of those sections shall apply accordingly in respect of such ship.

323. **Sanitary taxes payable by the master.—**The master of every pilgrim ship shall be bound to pay the whole amount of the sanitary taxes imposed by lawful authority at the ports visited and such amount shall be included in the cost of the tickets issued to the pilgrims.

324. **Power to exempt ship from provisions of Chapter 20.—**(1) The Federal Government may subject to such conditions as it thinks fit, exempt any ship or class of ships from any provisions of this Chapter relating to pilgrim ships.

(2) In imposing a condition under this section, the Federal Government may direct that a breach of it shall be liable to a fine which may extend to ten thousand rupees.

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325. **Appointment of officers.—** The Federal Government shall appoint such persons as it thinks fit to exercise the powers and perform duties which are conferred and imposed by this Chapter or may be conferred and imposed thereunder.

326. **Power to make rules.—**(1) The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of this Chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the principles to be followed for determining the number of pilgrims to be carried on any pilgrim ship;

(b) the provision of bunks and the size and other particulars relating to the bunks to be so provided;

(c) the allotment of the upper-deck space between various classes of pilgrims;

(d) the amount and distribution of the baggage of the pilgrims;

(e) the boats, anchors and cables to be provided on board pilgrim ships;

(f) the instruments to be supplied for purposes of navigation;

(g) the fittings and other appliances to be provided in the upper and between–decks for the comfort and convenience of pilgrims;

(h) the basic scale on which, and the manner in which cooked and uncooked food and water are to be supplied to pilgrims, and the quality of such food and water;

(i) the kinds of food to be provided for pilgrims on payment, in addition to the food to be supplied in accordance with the basic scale, and the charges which may be made for the same;

(j) the quality, quantity and storage of the cargo to be carried;

(k) the nature and the extent of the hospital accommodation and the medical stores, disinfectants, and other appliances and fittings to be provided on board free of charge to pilgrims for maintaining health, cleanliness and decency;

(l) the form of the statements to be furnished by the master under sections 205 and 308 and the particulars to be entered therein;

(m) the manner in which provisional bookings may be made, the acceptance of deposits for such bookings and the forfeiture of any part of the deposit in cases in which any such bookings are cancelled;

(n) the appointment of medical officers and other attendants in cases where they are required by this Chapter to be carried, and the diaries, reports and other returns to be kept or submitted by such medical officers;

(o) the manner in which contaminated articles shall be disinfected before being taken on board a pilgrim ship;

(p) the manner in which, and the persons by whom, the medical inspection of women shall be carried out;

(q) the manner in, which deposits shall be made for the purposes of section 315 and any matter in respect of which provision is, in the opinion of the Federal Government, necessary or expedient for the purpose of giving effect to the provisions of that section;

(r) the supply of tickets to intending pilgrims, the form of such tickets and the conditions and other matters to be specified thereon, and the amount of the sanitary taxes to be included in the cost thereof;

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(s) the refund of deposits and passage money under section 317 and the manner in which persons shall be nominated under that section for the purpose of entitling them to a refund;

(t) the period after which unclaimed passage-money and desposits liable to be refunded shall vest in the Federal Government and the purposes to which sums so vesting shall be applied;

(u) the manner in which the proposed date of departure or proceeding on voyage shall be advertised under section 320, the manner in which payment shall be made under section 322 to pilgrims and to the Port Hajj Officer ; and the procedure to be followed by masters, owners or agents and by Port Hajj Officers and Magistrates in proceedings under that section;

(v) the functions of the master, medical officer or officers, if any, and other officers during the voyage;

(w) the local limits within which, and the time and mode at and in which, pilgrims shall be received on board or discharged at any port or place appointed under this Chapter in that behalf;

(x) the time within which a pilgrim ship shall depart or proceed on her voyage after commencing to take pilgrims on board; and

(y) prohibition of pilgrim being received on board any pilgrim ship, unless he is in possession of a passport or a pilgrims pass ; the issue of pilgrims passes, and the form of and fees which may be charged for such passes.

(3) If the master or a medical officer, if any, of a pilgrim ship without reasonable cause, the burden of proving which shall lie upon him, contravenes, or omits or neglects to comply with any rule made under this section he shall in respect of each offence, be liable to a fine which may extend to ten thousand rupees.

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PART VI—SAFETY

CHAPTER 21.— CONSTRUCTION OF SHIPS AND SAFETY EQUIPMENT, ETC.

327. **Countries to which the safety and Load Line Convention apply.**—(1) The Federal Government, if satisfied—

(a) that the Government of any country has accepted or denounced the Safety Convention or the Load Line Convention; or

(b) that the Safety Convention or, as the case may be, the Load Line Convention extends or has ceased to extend to any territory;

may, by notification in the official Gazette, make a declaration to that effect.

328. **Construction of passenger ships.**—(1) The Federal Government may, by notification in the official Gazette, make rules, prescribing the requirements that the hull, equipment and machinery of Pakistani passenger ships shall comply with.

(2) The rules made under sub-section (1) shall include such requirements as appear to the Federal Government to implement the provisions of the Safety Convention prescribing the requirements that the hull, equipment and machinery of passgenger ships shall comply with, except so far as those provisions are implemented by the rules for the life saving and fire fighting appliances, the radio rules or the collision regulations.

(3) The powers conferred on the Federal Government by this section shall be in addition to the powers conferred by any other provisions enabling it to prescribe the requirements that passenger ship shall comply with.

329. **Construction of cargo ships.—**(1) Every sea-going Pakistani ship of a gross tonnage of not less than five hundred, or of such lower tonnage as the Federal Government may by notification in the official Gazette, specify, not being a passenger ship, shall be constructed in accordance with such specifications, and shall be surveyed to such extent, in such manner and at such intervals as may be prescribed.

(2) The provisions of this section shall apply, in the same manner as they apply to a Pakistani ship, to every other ship of a gross tonnage of not less than five hundred while she is within any port or place in Pakistan.

(3) This section does not apply to vessels to which the provisions of the Inland Mechanically Propelled Vessels Act, 1917 (I of 1917), apply so long as such vessels are engaged on voyages confined to ports within one Province or do not proceed to sea beyond the limits specified under clause (4) of section 2.

330. **Power to make Rules with respect to the construction and survey of cargo ships, etc.**—(1) The Federal Government may, by notification in the official Gazette, make rules, prescribing the requirements for the hull, equipment and machinery of ships to which section 329 applies, and the requirements of survey thereof.

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(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the extent of surveys and the manner in which and the intervals at which surveys shall be made;

(b) the requirements as to construction, machinery and equipment;

(c) the form and manner in which declaration of surveys shall be issued and transmitted and the particulars which shall be stated therein;

(d) the fees that may be charged for surveys made under these rules; and

(e) such other matters as may be necessary for carrying out purposes of section 329.

331. **Power to make rules as to life saving and fire fighting appliances, etc.**—(1) The Federal Government may, by notification in the official Gazette, make rules prescribing the life saving appliances and fire fighting appliances to be carried by every Pakistani ship going to sea from any port or place.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matter, namely:—

(a) The arranging of ships into classes, having regard to the services in which they are employed, the nature and duration of the voyage and the number of persons carried ;

(b) the number description, mode of construction of the boats, life-rafts, line-throwing appliances, life-jackets and life-buoys to be carried by ships according to the classes in which the ships are arranged ;

(c) the equipment to be carried by any such boats and rafts the method to be provided to lower the boats and other life saving appliances into the water, including oil for use in stormy weather ;

(d) the provision in ships of a proper supply of lights in extinguishable in water and fitted for attachment to life-buoys ;

(e) the quantity, quality and, description of buoyant apparatus to be carried on board ships either in addition to or in substitution for boats, life-rafts, life-jackets and life buoys ;

(f) the position and means of securing the boats, life-rafts, life-jackets, life-buoys and buoyant apparatus ;

(g) the marking of boats, life-rafts, and buoyant apparatus so as to show their dimensions and the number of persons authorised to be carried on them;

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(h) the manning of life-boats and the qualifications and certificates of life–boatmen ;

(i) the provision to be made for mustering the persons on board and for embarking them in the boats (including provision for the lighting of, and the means of ingress to, and exit from, different parts of the ship) ;

(j) the provision of suitable means situated outside the engine room whereby any discharge of water into the boats can be prevented ;

(k) the assignment of specific duties to each member of the crew in case of emergency ;

(l) the methods to be adopted and the appliances to be carried in ships for the prevention, detection and extinction of fire ;

(m) the provision in ships of plans and other information relating to the means of preventing, detecting, controlling and extinguishing outbreaks of fire ;

(n) the practice in ships of boat-drills and fire-drills ; and the recording of such drills in the vessels log books ;

(o) the provision in ships of means of making effective distress signals by day and by night ;

(p) the provision in ships, engaged on voyages in which pilots are likely to be embarked, of suitable pilot ladders and hoists, and of ropes, lights and other appliances designed to make the use of such ladders or hoists safe ;

(q) the periodical examination and maintenance of any appliances or equipment required by any rules made under this Ordinance, to be carried by ships ;

(r) the manner in which a notice given under sub-section (2) of section 330 shall be communicated to the officers of Customs ; and

(s) the charging of fees for the grant of the certificate referred to in sub-section (3) of section 332, the amount of such fees and the manner in which they shall be recoverable.

332. **Inspection of life saving appliances, etc.**—(1) A Surveyor may at any reasonable time inspect any ship, to which the provisions of sections 328, 330 and 331 apply, for the purpose of seeing that the ship complies with the requirements of the rules as to life saving appliances and fire fighting appliances.

(2) If the surveyor finds that the ship does not comply with the aforementioned requirements, he shall give to the master or owner notice in writing pointing out in what respect the ship fails to comply with them and what in his opinion is required to be done for compliance with them.

(3) Every notice so given shall be communicated in the prescribed manner to the officers of Customs of any port or place at which the ship may seek to obtain port-clearance and the ship shall be detained until a declaration signed by the surveyor to the effect that the ship complies with the requirements of the rules as to life saving appliances and fire fighting appliances is produced.

(4) Such fees as may be prescribed shall be charged for the grant of the certificate referred to in sub-section (3).

333. **Control of water-tight openings.—** The Federal Government may, by notification in the Official Gazette, make rules in respect of ships for which a passenger ship certificate of survey is required by Part V to regulate all or any of the following matters, namely:—

(a) the closing and keeping closed of openings in ships, hulls and in water-tight bulkheads;

(b) the securing, keeping in place and inspecting contrivances for closing any such opening as aforesaid;

(c) the operation of mechanisms of contrivances for closing any such openings as aforesaid and drills in connection with the operation thereof;

(d) the exhibition of plans and other information relating to the boundaries of water-tight compartments, the openings therein, the means of closing such openings and the arrangements for correcting any list due to flooding; and

(e) the entries to be made in the official log-book or other record to be kept of any of the matters aforesaid.

334. **Stability information and damage control.—**(1) There shall be carried on board every Pakistani ship such information in writing about the stability as may be prescribed for the guidance of the master in loading and ballasting the ship, and, also in maintaining sufficient stability to enable the ship to withstand damage.

(2) The aforesaid information shall be in such form as may be approved by the Federal Government (which may approve the provision of the information in the form of a diagram or drawing only) and shall be based on the determination of the ship's stability by means of an inclining test of the ship :

Provided that the Federal Government may allow the information to be based on a similar determination of the stability of a sister ship :

Provided further that in the case of a ship specifically designed for the carriage of liquids or ore in bulk, or of any class of such ships, the Federal Government may allow the inclining test to be dispensed with if it is satisfied from the information available in respect of similar ships that the ship's proportions and arrangements are such as to ensure more than sufficient stability in all probable loading conditions.

(3) Whenever the accuracy of the information provided under sub-section (1) is materially affected by alterations made to the ship, information shall be replaced by fresh information of the nature specified in that sub-section and, in any such case, the Federal Government may require a fresh inclining test of the ship.

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(4) When any information under this section is provided for any passenger ship the owner shall send a copy thereof to the officer appointed under section 258.

(5) The requirements of sub-section (1) so far as they relates to the carriage of stability information shall be applicable to foreign ships when such ships are in a port or place in Pakistan.

(6) If any such ship proceeds, or attempts to proceed, to sea without having on board such information as aforesaid, the owner or the master of the ship shall be liable to a fine which may extend to ten thousand rupees.

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CHAPTER 22. — RADIO INSTALLATION, RADIO EQUIPMENT AND NAVIGATIONAL EQUIPMENT

335. **Requirements of radio installation and radio equipment.**—(1) Every sea-going Pakistani ship, shall be provided with radio installation and radio equipment as specified by the Safety Convention.

(2) The Federal Government may, exempt any ship from any of the requirements specified in sub-section (1), under exceptional circumstances.

(3) The master or owner of any such ship, in respect of which the provisions of sub-section (1) are not complied with, shall be liable to a fine which may extend to ten thousand rupees.

336. **Requirements as to radio direction finding apparatus.**—(1) Every Pakistani ship of a gross tonnage of sixteen hundred and upwards shall be provided with a radio direction finding apparatus of the prescribed description.

(2) The Federal Government may, by order in writing and subject to such conditions and restrictions as may be specified therein, exempt any ship, under five thousand tons gross tonnage from the obligations imposed by sub-section (1), if it is satisfied having regard to the area or areas in which the ship is engaged on a voyage or voyages and the value of radio direction finder as a navigational instrument and as an aid to locating ships, aircraft or survival craft that such compliance would be unreasonable or unnecessary.

(3) The master or owner of any such ship, in respect of which the provision of sub-section (1) are not complied, with shall be liable to a fine which may extend to ten thousand rupees.

337. **Radio log.**—(1) Every ship equipped under the provision of section 335 shall maintain a radio log in which shall be recorded such particulars connected with radio communication service as may be prescribed.

(2) The provisions of section 425 shall apply to the radio log kept under sub-section (1) as if it were an official logbook.

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338. **Inspection, etc.**—(1) A radio inspector may inspect any ship for the purpose of seeing that she is properly provided with radio installation and certificated operators and watchers in conformity with this Chapter and for this purpose may go on board any ship at all reasonable times and do all things necessary for such inspection and may also require the master of the ship to supply him with any information which it is in the power of the master to supply for the purposes of the provisions of this Chapter relating to radio installation and radio service including the production of any certificate granted under this Part in respect of the installation, and of the certificates of the operators on the ship :

Provided that if a valid safety convention certificate is produced in respect of any ship, other than a Pakistani ship, the inspection shall be limited to seeing that the ship is provided with radio installation and that the number of certificated operators corresponds substantially with the particulars stated in the certificate and such operators are familiar with operational procedures.

(2) If a radio inspector finds that a ship is not so provided, he shall give to the master or owner notice in writing pointing out the deficiency, and also pointing put what in his opinion is requisite to remedy the same.

(3) Every notice given under sub-section (2) shall be communicated, in the prescribed manner, to the officer of Customs of any port or place at which the ship may seek to obtain port-clearance, and the officer of Customs to whom a notice is so communicated shall order that the ship be detained until a certificate under the hand of a Radio Inspector is produced to the effect that the ship is properly provided with a radio installation and certificated operators in conformity with this Chapter.

(4) The provisions of this section shall applying relation to such portable radio apparatus as boats or life-rafts may be required to carry by rules made under section 331 as they apply in relation to radio installation of a ship.

339. **Requirements as to navigational equipment.**—(1) Every Pakistani ship when going to sea shall be provided with such navigational equipment as are required to be carried under the Safety Convention:

Provided that the Federal Government may exempt from the operation of this sub-section any ship of gross tonnage of less than five hundred, not being a passenger ship, if it is of opinion that, having regard to the nature of the voyages on which the ship is engaged, the provision of a gyro-compass is unnecessary or unreasonable.

(2) All reasonable steps shall be taken to maintain the equipment mentioned in sub-section (1) in an efficient condition but the malfunction of such equipment shall not render the ship un-seaworthy nor shall it be considered as a reason for delaying the ship in ports, where repair facilities are not readily available.

340. **Application of chapter to foreign ships.—** The provisions of this chapter shall apply to ships other than Pakistani ships while such ships are in any port or place in Pakistan in the same manner as they apply to Pakistani ships.

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341. **Power to make rules.**—(1) The Federal Government may, by notification in the Official Gazette, make rules to carry out the provisions of this Chapter.

(2) In particulars, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the nature of navigation equipment and radio installation or navigational aids to be provided and of the radio service to be maintained, the form of the radio log and the particulars to be entered therein, and the number, grades and qualifications of certificated operators to be carried;

(b) the requirements for such portable radio apparatus as boats and life-rafts may be required to carry by the rules made under section 331;

(c) the manner in which a notice given under sub-section (2) of section 338 shall be communicated to the Customs Collector; and

(d) the fees for the grant of the certificate referred to in sub-section (3) of section 338, the amount of such fees and the manner in which they shall be recoverable.

CHAPTER 23. —SEFTEY CONVENTION CERTIFICATE

342. **Passenger ship safety certificate.**—(1) Upon the receipt of a declaration of survey granted under Part V in respect of a passenger ship for which a certificate of passenger ship safety certificate is required by this part, the Federal Government, if it is satisfied—

(a) that the ship complies fully with the requirements of rules made under section 328 and other provisions of this Ordinance, and the rules made under sections 331 and 341 applicable to such ship and is properly provided with lights and shapes and means of making of fog signals required by the collision regulations, may issue a passenger ship safety certificate in respect of the ship; and

(b) that there is in force in respect of the ship an exemption certificate granted under section 347 and that the ship complies with all the requirements specified in clause (a) other than those from which the ship is exempt under that certificate, may endorsed the passenger ship safety certificate in respect of the ship, and deliver to the owner or master of the ship through the Principal Officer or such other officer as the Federal Government may appoint in this behalf.

(2) The passenger ship safety certificate shall be in the prescribed form and shall state that the ship complies with the requirements of the Safety Convention.

343. **Cargo ship safety equipment certificate.**—(1) If the Federal Government is satisfied in respect of a Pakistani cargo ship of a gross tonnage of five hundred or more that the ship complies with the requirements of the rules made under sections 331 and 341 applicable to such ship, and that the ship is properly provided with lights and shapes and means of making fog signals required by the Collision Regulations, the Federal Government shall, on an application by the owner or master of the ship, cause to be issued if the ship complies fully with the aforesaid requirements, a cargo ship safety equipment certificate:

Provided that if there is in force in respect of the ship an exemption certificate granted under section 347 and if the ship complies with all the aforesaid requirements other than those from which the ship is exempt under that certificate and is properly provided with lights and shapes and means of making fog signals required by the Collision Regulations, a qualified cargo ship safety equipment certificate.

(2) The cargo ship safety equipment certificate shall be in the prescribed form and shall state that the ship complies with all the requirements of the Safety Convention as to equipment and that she is provided with lights and shapes and means of making fog signals as required by the collision regulations.

344. **Cargo ship equipment certificate.—**If the Federal Government is satisfied in respect of any Pakistani cargo ship of gross tonnage of less than five hundred that the ship complies with the

provisions of this Ordinance and the rules made thereunder relating to life saving and fire fighting appliances applicable to such ship and is provided with lights and shapes and the means of making fog and distress signals required by the collision regulations, the Federal Government may issue in respect of such ship a certificate in the prescribed form to be called a cargo ship equipment certificate.

345. **Cargo ship safety radio certificates.**—(1) If the Federal Government is satisfied in respect of a Pakistani ship, other than a passenger ship, which is required by the provisions of section 335 to be provided with radio installation and which is intended to ply on voyage from or to any port or place in Pakistan to or from any port or place outside Pakistan that the ship complies with all the provisions as to radio installation and radio service applicable to such ship under Chapter 22, the Federal Government shall on an application by the owner or master of the ship, cause to be issued, through the Principal Officer or such other officer as it may appoint in this behalf,—

(a) if the ship is provided with radio equipment, a cargo ship safety radio certificate; or

(b) if there is in force in respect of the ship referred to in clause (a), an exemption certificate granted under section 347 and if the ship complies with all the aforesaid requirements other than those from which the ship is exempt under that certificate, the cargo ship safety radio certificate may be endorsed.

(2) The cargo ship safety radio certificate shall be in the prescribed form and shall state that the ship complies with such of the requirements of the Safety Convention as are applicable to the ship.

346. **Cargo ship safety construction certificate.**—(1) If the Federal Government, or a person authorised by it in this behalf, is satisfied on receipt of a declaration of survey in respect of a Pakistani cargo ship to which section 329 applies that the ship complies with all the provisions of the rules made under section 330 and applicable to such ship and to such voyages as she is to be engaged on, the Federal Government or such person shall, on the application, of the owner, cause to be issued in respect of the ship,—

(a) if the ship is of a gross tonnage of not less than five hundred and is intended to ply on voyages from or to any port or place in Pakistan to or from any port or place outside Pakistan, a cargo ship safety construction certificate showing that she complies with the said rules; or

(b) if there is in force in respect of the ship, an exemption certificate granted under section 347 and the ship complies with the aforesaid requirement other than those from which the ship is exempt under that certificate, the cargo ship safety construction certificate may be endorsed.

(2) The cargo ship safety construction certificate shall be in the prescribed form and shall state that the ship complies with such of the requirements of the Safety Convention as to hull, equipments and machinery as are applicable to the ship.

347. **Issuance of Exemption certificate or any other certificate.**—(1) The Principal Officer, or an officer authorised by the Federal Government in this behalf, shall, on an application by the owner or master of any Pakistani ship in regard to which the Federal Government has

made an order of exemption under sub-section (2) of section 335, or under sub-section (2) of section 336, or which is exempt from any of the provisions of the rules made under sections 328, 330, 331 and 341, issue in the prescribed form an exemption certificate in respect of such ship.

(2) The Federal Government may issue any other certificate not mentioned in this part and which is required to be issued to give effect to the provision of the Safety Convention.

348. **Duration of certificates.**—(1) A cargo ship safety equipment certificate issued under this Part, shall be in force for twenty-four months from the date of its issue or for such period as may be specified in the certificate.

(2) A cargo ship safety construction certificate shall be in force for a period not exceeding five years from the date of its issue or for such shorter period as may be specified in the certificate.

(3) An exemption certificate issued under section 347 shall be in force for the period for which the certificate to which it relates remains in force or for such shorter period as may be specified in the exemption certificate.

(4) Any certificate issued under this Part not specified in sub-sections (1), (2) or (3) shall be in force for twelve months from the date of its issue or for such shorter period as may be specified in the certificate.

(5) The Federal Government or any person authorised by it in this behalf may grant an extension of any certificate issued under this Part in respect of a Pakistani ship,_

(a) where the ship is away from Pakistan on the date when the certificate would, but for the extension have expired, for such period not exceeding five months from the said date as may be sufficient to enable the ship to return to the port in Pakistan at which it is to be surveyed ; and

(b) in any other case, for a period not exceeding one month from the said date;

Provided that any extension granted under clause (a) shall cease to be operative upon the ship's arrival at the port referred to in that clause:

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Provided further that no extension shall be granted under clause (b) in respect of a certificate extended under clause (a).

(6) Notwithstanding anything contained in this section a certificate issued under this Part shall not remain in force after notice is given by the authority issuing the certificate to the owner or master of the ship in respect of which it has been issued, that authority has cancelled the certificate.

349. **Modification of passenger ship safety certificate in respect of life saving appliances.**—(1) If a Pakistani ship, in respect of which a passenger ship safety certificate or a special trade passenger ship safety certificate issued under section 342 is in force has on board in the course of a particular voyage a total number of persons less than the number stated in the certificate to be the number for which the life saving appliances on the ship provide, the owner or master of the ship may obtain from the authority issuing the certificate, or any person authorised by the authority for the purpose, a memorandum to be attached to the certificate stating the total number of persons

carried on the ship on that voyage and the modifications which may be made for the purpose of that voyage in the particulars with respect to life saving appliances stated in the certificate.

(2) Where a valid passenger ship safety certificate or special trade passenger ship safety certificate is produced in respect of a passenger ship other than a Pakistani ship and there is attached to the certificate a memorandum which–

(a) has been issued by or under the authority of the Government of the country in which the ship is registered; and

(b) modifies for the purpose of any particular voyage, in view of the number of persons actually carried on that voyage, the particulars stated in the certificate with respect to life saving appliances ; the certificate shall have effect for the purpose of that voyage as if it were modified in accordance with the memorandum.

350. **Recognition of certificates issued outside Pakistan.—**A valid safety convention certificate issued in respect of a ship other than a Pakistani ship by the Government of the country to which the ship belongs shall, subject to such rules as the Federal Government may make in this behalf, have the same effect in Pakistan as the corresponding certificate issued in respect of a Pakistani ship under this Part.

351. **Issue of certificates to foreign ships in Pakistan.—**The Federal Government may, at the request of the Government of a country to which the Safety Convention applies, cause an appropriate safety convention certificate to be issued in respect of a ship registered or to be registered in that country, if it is satisfied in like manner as in the case of a Pakistani ship that such certificate can properly be issued, and where a certificate is issued at such a request it shall contain a statement that it has been so issued.

352. **Issue by foreign Governments of certificates to Pakistani ships.**—(1) The Federal Government may request the Government of a country, to which the. Safety Convention applies, to issue an appropriate safety convention certificate in respect of a ship registered or to be registered in Pakistan and a certificate issued in pursuance of such a request and containing a statement that it has been so issued shall have effect for the purpose of this Ordinance as if it had been issued by the Federal Government.

(2) When the Federal Government requests the Government of a country to issue any such certificates as aforesaid and that Government is not willing to issue, such certificate until exemption certificate in respect of certain condition is granted by the Federal Government, the Federal Government may issue that exemption certificate.

353. **Prohibition on proceeding to sea without certificates.**—(1) No Pakistani ship shall proceed to sea, accept on voyages between ports or places situated within Pakistan, unless that ship holds appropriate valid certificates applicable to that ship issued under the provision of this chapter and any other certificates required under safety convention—

(2) No Pakistani ship shall proceed on any voyage between ports or places situated within Pakistan unless there is in force in respect of the ship such certificate or certificates as may be prescribed being a certificate or certificates which by the terms thereof is or are applicable to the

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voyage on which the ship is about to proceed and to the trade in which she is for the time being engaged.

(3) The master of every ship, to which this section applies, shall produce to the officer of Customs from whom a port clearance for the ship is sought the certificate or certificates required by the foregoing provisions of this section to be in force when the ship made under section 125 proceeds to sea, and port clearance shall not be granted and the ship may be detained until the said certificate or certificates are so produced.

(4) Without prejudice to any other liability under this Ordinance of the master or owner of the ship, if any ship to which this section applies proceeds or attempts to proceed to sea in contravention of any of the foregoing provisions of this section, the master or owner shall, for each offence, be punishable, in the case of a passenger ship, with fine which may extend to fifty thousand rupees and in the case of any other ship with fine which may extend to ten thousand rupees.

(5) Where an exemption certificate issued under section 347 in respect of any ship to which this section applies specifies any conditions on which the certificate is issued and any of those conditions is contravened, the master or owner of the ship shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

354. **Delegation of powers to perform certain functions.—**The Federal Government may, by order in writing, authorize any recognised organization to perform all or any of the functions under sections 342, 343, 345, 346 and 347 in respect of any ship or class of ships.

355. **Production of certificates by ships other than Pakistani ships.**—(1) The master of every ship other than a Pakistani ship, being a passenger ship or being any other ship of a gross tonnage of five hundred or upwards, belonging to a country to which the Safety Convention applies, shall produce valid safety Convention certificates to the officer of Customs from whom a port clearance for the ship is sought in respect of a voyage from a port or place in Pakistan to a port or place outside Pakistan and port clearance shall not be granted and the ship may be detained until such a certificate is so produced.

(2) Where any such ship, other than a passenger ship, as is referred to in sub-section (1), is of a gross tonnage of less than five hundred but not less than three hundred, the master shall be required to produce only valid safety convention certificates equivalent to those issued under section 345 and the other provisions of sub-section (1) shall apply accordingly.

(3) Where a valid safety convention certificate is produced in respect of a ship, other than a Pakistani ship, the ship shall not be deemed to be unsafe for the purposes of section 394 by reason of the defective condition of her hull, equipments or machinery unless it appears that the ship cannot proceed to sea without danger to the passengers or crew owing to the facts that the actual condition of the ship does not correspond substantially with the particulars stated in the certificate and when there are clear grounds for believing that the master or crew are not familiar with essential ship-board procedures relating to the safety of ship.

356. **Application of sections to certificates.—**The provisions of sections 263 to266 shall apply to and in relation to every certificate issued under sections 342 to 347 and section (2) of section 353 in the same manner as they apply to and in relation to a certificate of survey.

357. **Power of Federal Government to make rules.**—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may prescribe—

(a) the form of the certificates referred to in sections 342 to 347 and sub-section (2) of section 353 ; and any other certificate required to be issued under the provisions of the Safety Convention; and

(b) the charging of fees for the grant of such certificates, the amount of such fees, and the manner in which they shall be recoverable.

CHAPTER 24. — LOAD LINES

358. **Ships exempt from provisions relating to load lines.**—(1) Save as otherwise provided in this section, the provisions of this Chapter relating to load lines shall apply to all sailing vessels as they apply to ships, and accordingly, the expression "ship" in the said provisions of this Chapter shall be construed as including a sailing vessel.

(2) The provisions of this Chapter relating to load lines shall not apply to—

(a) ships of war;

(b) any ship solely engaged in fishing;

(c) any pleasure yacht not engaged in trade;

(d) any existing ship of a gross tonnage of less than one hundred and fifty; and

(e) any new ship of less than twenty-four meters (79 ft) in length.

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(3) The Federal Government may, on such conditions, not inconsistent with the rules made under section 357, as it may think fit, exempt from the provisions of this Chapter relating to load lines—

(a) any ship plying between the near neighbouring ports of two or more countries if the Federal Government and the Governments of those countries are satisfied that the sheltered nature and conditions of the voyage between those ports make it unreasonable or impracticable to apply such provisions to ships so plying;

(b) any ship plying between near neighbouring ports of the same country if the Federal Government is satisfied as aforesaid;

(c) any ship which embodies features of a novel kind, if the Federal Government is satisfied that the application of the provisions of this Chapter relating to load lines to such a ship might seriously impede research into development of such features and their incorporation in ships and the Federal Government and

the Governments of the countries to be visited by the ship are satisfied that the ship complies with safety requirements which are adequate for the purposes for which the ship is intended and are such as to ensure the overall safety of the ship; and

(d) any ship which is not normally engaged on voyages to ports outside Pakistan but which is exceptional circumstances is required to undertake such voyage if the Federal Government is satisfied that the ship complies with safety requirements which are adequate for such voyage.

359. **Power to make rules as to load lines.**—(1) The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of this Chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) survey and periodical inspection of ships;

(b) determining of free-board deck in relation to any ship and marking on each side of the ship to indicate the position of that deck by a mark, hereinafter referred to as a "deck line";

(c) determination in relation to a ship by reference to deck line and free boards of the position in which each side of the ship is to be marked with lines hereinafter referred to as "load lines", to indicate the maximum depths to which the ship may be loaded in various circumstances;

(d) conditions, hereinafter referred to as the "conditions to assignments", on which load lines may be assigned;

(e) requirements, relevant to the assignment of free-boards, in respect of hulls, superstructures, fittings and appliances;

(f) particulars to be recorded in relation to matters referred to in clauses (d) and (e) and the manner in which they shall be recorded;

(g) the circumstances in which a ship during the continuance of the assignment of free-boards assigned to, if any, shall be deemed for the purposes of the provisions of this Chapter to comply with the conditions of assignment;

(h) the form in which an international load line certificate, a Pakistan load line certificate, an international load line exemption certificate and a Pakistan load line exemption certificate shall be issued;

(i) the period during which an exemption certificate shall remain in force; and

(j) the extension and termination of the period for which an exemption certificate was issued.

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360. **Marking of deck line and load lines.**—(1) No new Pakistani ship to which the load lines convention applies and not being exempt from the provision of this Chapter, shall proceed to sea unless—

(a) the ship has been surveyed in accordance with the load line rules ;

(b) the ship complies with the conditions of assignment; and

(c) the ship is marked with a deck line and with load lines in accordance with the load line rules.

(2) No existing Pakistani ship, to which the load line convention applies and not being exempt from the provisions of this Chapter, shall proceed to see unless—

(a) the ship has been surveyed in accordance with the load line rules;

(b) the ship complies with the conditions of assignment or with such lesser related requirements as were applicable to her immediately before such commencement; and

(c) the ship is marked with a deck line and with load lines in accordance with the load line rules or the deck line and load lines have been marked in the position required by the rules in force immediately before such commencement.

(3) If any ship proceeds or attempts to proceed to sea in contravention of this section, the master and the owner thereof shall, for each offence, be liable to a fine which may extend to fifty thousand rupees.

(4) Any ship attempting to proceed to sea without being surveyed and marked as required by this section may be detained until she has been so surveyed and marked, and any ship which does not comply with the conditions of assignment to the extend required in her case shall be deemed to be unsafe for the purpose of section 382.

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361. **Alterations after survey.—**Where any survey, under this Part, of a ship for the purpose of assignment and marking of load lines has been completed, then, notwithstanding anything contained in this Ordinance, the owner, agent or master of the ship shall not make, or caused to be made, any alteration in the structure, equipment, arrangement, material or scantlings covered by the survey without the prior written permission of the Federal Government or a person authorised by that Government in this behalf.

362. **Submersion of load line.—**A Pakistani ship, not being exempt from the provisions of this Part, shall not be so loaded that the appropriate load line on each side of the ship, that is to say, the load line indicating or purporting to indicate the maximum depth to which the ship is for the time being entitled under the load line rules, to be loaded, is submerged if the ship is in salt water and has no list or would be submerged if the ship were in salt water and had no list.

363. **Submersion of sub-division load lines in case of passenger ships.—**Where a Pakistani passenger ship has been marked with sub-division load lines, that is to say, load lines indicating the depth to which the ship may be loaded having regard to the extent to which the ship is sub-divided and the space for the time being allotted to passengers, and when the appropriate sub-

division load lines that is to say, the sub-division load line appropriate to the space for the time being allotted to passengers on the ship, is lower than the load line indicating the maximum depth to which the ship is for the time being entitled under the provisions of this Chapter to be loaded, the ship shall not be so loaded that the appropriate load line on each side of the ship is submerged if the ship is in salt water and has no list or would be submerged if the ship were in salt water and had no list.

364. **Penalty for submersion of load lines and sub-division load lines.**—(1) If any ship is loaded in contravention of section 362 or section 363 the owner and master thereof shall, for each offence, be liable to a fine which may extend to one hundred thousand rupees.

(2) Without prejudice to any proceedings under this Ordinance, any ship which is loaded in contravention of section 366 or section 367 may be detained until the ship ceases to be so loaded.

365. **Offences in relation to marks.**—(1) If the owner or master of a Pakistani ship which has been marked in accordance with the foregoing provisions of this Chapter, fails without reasonable cause, to keep the ship so marked ; or any person conceals, removes, alters, defaces or obliterates, or suffers any person under his control to conceal, remove, alter, deface or obliterate any mark placed on any such ship in accordance with the foregoing provisions of this Chapter except with the authority of a person entitled under the load line rules to authorize the alteration of the mark, or except for the purpose of escaping capture by an enemy or by a foreign ship of war in the exercise of some belligerent right ; he shall, for each offence, be liable to a fine which may extend to fifty thousand rupees.

366. **Inspection of ships with respect to load lines.**—Any surveyor authorized in this behalf by the Federal Government may inspect any Pakistani ship for the purpose of seeing that the provisions of this Chapter have been complied with, and for this purpose may go on board the ship at all reasonable times and do all things necessary for the proper inspection of the ship and may also require the master of the ship to supply him with any information which is in the power of the master to supply for that purpose, including the production of any certificate granted under this Part in respect of the ship.

CHAPTER 25. — LOAD LINE CERTIFICATE

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367. **Issue, duration and extension of load line certificate.**—(1) Where a Pakistani ship has been surveyed and marked in accordance with the provisions of Chapter 24 and complies with the conditions of assignment to the extent required in her case by those provisions, there shall be issued to the owner of the ship on his application and on payment of the prescribed fees,—

(a) in the case of a ship of a gross tonnage of not less than one hundred and fifty, and in the case of a ship not less than twenty-four metres (79 feet), in length on which the load line Convention applies, a certificate to be called an international load line certificate; and

(b) in the case of any other ship, a certificate to be called a Pakistan load line certificate.

Provided that no certificate under thus sub-section shall be issued in respect of a ship before the expiry of the similar certificate last issued.

(2) Every such certificate shall be issued either by the Federal Government or by a recognised organization authorised by it in this behalf and shall be issued in such form and manner as may be prescribed by the load line rules.

(3) The Federal Government may request the Government of a country to which the Load Line Convention applies, to issue a load line certificate in the form of an international load line certificate under that Convention in respect of a Pakistani ship, and a certificate issued in pursuance of such a request and maintaining a statement that it has been so issued shall have effect for the purposes of this Chapter as if it had been issued by the Federal Government.

(4) Where in respect of a ship a certificate issued under this section and for the time being in force is produced—

(a) the ship shall be deemed to have been surveyed in accordance with the load line rules; and

(b) if lines are marked on the ship corresponding in number description to the deck line and load lines as required by the load line rules and the position of those lines so marked corresponds with the position of the deck line and load lines specified in the certificate, the ship shall be deemed to be marked as required by those rules.

(5) Every load line certificate issued by, or under the authority of, the Federal Government shall, unless it is extended in accordance with the provisions of sub-section (6), expire at the end of such period, not exceeding five years from the date of its issue or as maybe specified therein.

(6) Any such load line certificate may, after a survey not less effective than the survey required by the load line rules before the issue of the certificate, be extended by the Federal Government or by a person authorised by it to issue a load line certificate, for such period not exceeding five months as the Federal Government or the person extending the certificate thinks fit:

Provided that no certificate in respect of a ship shall be extended if there have been such alterations in the structure, equipment, arrangements, materials or scantlings as to affect the free-board originally assigned to the ship.

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(7) An extension of a certificate under sub-section (6) shall be endorsed on the certificate in the manner provided by the load line rules.

(8) The Federal Government may cancel any such load line certificate in force in respect of a ship if it has reason to believe that—

(a) material alterations have taken place in the hull or superstructures of the ship which effect the position of the load lines; or

(b) the fittings and appliances for the protection of openings, the guard rails, the freeing ports or the means of access to the crew's quarters have not been maintained on the ship in as effective a condition as they were in, when the certificate was issued; or

(c) the markings of the deck line and load lines on the ship have not been properly maintained.

(9) The owner of a ship in respect of which any such certificate has been issued shall, so long as the certificate remains in force, cause the ship to be periodically inspected in such manner and at such intervals as may be prescribed by the load line rules; and if the ship is not caused to be so inspected, the Federal Government shall cancel the certificate.

(10) Where any such load line certificate has expired or been cancelled, the Federal Government may require the owner or master of the ship to which the certificate relates to deliver up the certificate as it directs, and the ship may be detained until such requirement has been complied with, and if the owner or master fails without reasonable cause to comply with such requirement, he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

(11) On the survey of any ship in pursuance of this section there shall be paid by the owner of the ship such fee may be prescribed.

368. **Issue, duration and cancellation of exemption certificates, etc.**—(1) Where the Federal Government exempts a ship under section 358 there shall be issued to the owner of the ship, on payment of the prescribed fee, if any,—

(a) in the case of a ship referred to in sub-section (3) of section 358, an exemption certificate to be called an international load line exemption certificate; and

(b) in the case of any other ship, an exemption certificate to be called a Pakistan load line exemption certificate.

(2) An exemption certificate under sub-section (1) shall be issued by the Federal Government, or an officer authorised by it in this behalf, in such form and manner as may be prescribed.

(3) An exemption certificate issued under sub-section (1) shall remain in force for such period as may be prescribed.

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(4) The owner of a ship in respect of which any such exemption certificate is issued shall, so long as the certificate remains in force cause the ship to be periodically inspected in such manner and at such intervals as may be prescribed.

(5) The Federal Government shall cancel any such exemption certificate if the ship in respect of which it was issued is not caused to be inspected as required by sub-section (4) or if any of the conditions on which the exemption was granted under section 358 has been violated or if the exemption has ceased to be in force.

(6) Where any such exemption certificate in respect of a ship has ceased to be in force or been cancelled, the exemption granted under section 358 shall be deemed to have been withdrawn and the owner or master shall deliver up the certificate to the Federal Government ; and the ship may be detained until the certificate is so delivered up.

(7) The owner or master of a ship, if he fails without reasonable cause to deliver up the exemption certificate as required by sub-section (6), shall be liable to a fine it may extend to fifty thousand rupees.

369. **Ship not to proceed to sea without certificate.**—(1) No Pakistani ship shall proceed to sea unless there is in force in respect of the ship a load line certificate issued under section 367 or load line exemption certificate issued under section 368.

(2) The master of every Pakistani ship shall produce to the officer of Customs from whom a port clearance for the ship is sought, the certificate which is required by subsection (1) to be in force when the ship proceeds to sea, and port clearance shall not be granted, and the ship may be detained, until that certificate is so produced.

(3) The master of any ship which proceeds or attempts to proceed to sea in contravention of this section shall, for each offence, be liable to a fine which may extend to fifty thousand rupees.

370. **Publication of load line certificates and particulars relating to depth of loading.**—(1) When a load line certificate has been issued in pursuance of the foregoing provisions of this Chapter in respect of a Pakistani ship other than a home-trade ship not exceeding a gross tonnage of two hundred—

(a) the owner of the ship shall forthwith on receipt of the certificate cause it to be framed and posted up in some conspicuous place on board the ship, and to be kept so framed and posted up and legible so long as the certificate remains in force and the ship is in use; and

(b) the master of the ship, before making any other entry in any official log-book, shall enter or cause to be entered therein, the particulars as to the position of deck line and load lines specified in the certificate.

(2) Before any such ship leaves any dock, wharf, harbour or other place for the purpose of proceeding to sea, the master thereof shall—

(a) enter or cause to be entered in the official log-book such particulars relating to the depth to which the ship is for the time being loaded as the Federal Government may by rules made in this behalf prescribe; and

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(b) cause a notice, in such form and containing such of the particulars as may be required by the said rules, to be posted up in some conspicuous place on board the ship and to be kept so posted up and legible until the ship arrives at some other dock, wharf, harbour or place:

Provided that the Federal Government may by the said rules exempt home-trade ships or any class of home-trade ships from the requirements of clause (b).

(3) if the owner or master of any ship fails to comply with the provisions of this section, he shall, for each offence be liable to a fine which may extend to five thousand rupees.

371. **Insertion of particulars as to load lines in agreements with crew.**—(1) When an agreement with the crew of any ship in respect of which a load line certificate is in force is signed by any member of the crew, the master of the ship shall insert in the agreement the particulars as to the position of the deck line and load lines specified in the certificate, and if he fails to do so, he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

(2) In the case of a ship required by this Ordinance to engage its crew before a Shipping Master, the Shipping Master shall not proceed with the engagement of the crew until—

(a) there is produced to him a load line certificate for the time being in force in respect of the ship; and

(b) he is satisfied that the particulars required by this section have been inserted in the agreement with the crew.

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CHAPTER 26. — SPECIAL PROVISIONS RELATING TO LOAD LINES AS TO FOREIGN SHIP

372. **Load lines certificates of ships other than Pakistani ships.**—(1) The Federal Government may, at the request of a country to which the Load Line Convention applies, issue an international load line certificate in respect of a ship of that country if it is satisfied in like manner as in the case of a Pakistani ship that it can properly issue the certificate, and where a certificate is issued at such a request, it shall contain a statement that it has been so issued.

(2) The Federal Government shall, as soon as may be, after the issue of a certificate in respect of a ship under sub-section (1), forward to the Government, at whose request such certificate was issued, a copy each of the certificate, the survey report used in computing the free-board of the ship and of the computations.

373. **Recognition of load line and exemption certificates issued outside Pakistan.—**An international load line certificate or, as the case may be, an International load line exemption certificate issued in respect of any ship other than Pakistani ship by the Government of the country to which the ship belongs shall, subject to such rules as the Federal Government may make rules in this behalf, have the slime effect in Pakistan as a load line certificate, or as the case may be, an international load line exemption certificate issued in respect of a Pakistani ship under this Part.

374. **Inspection and control of foreign ships belonging to countries to which Load Line Convention applies.**—(1) Any surveyor authorised in this behalf by the Federal Government may, at any reasonable time, go on board any ship other than a Pakistani ship carrying cargo or passengers and belonging to a country to which the Load Line Convention applies, when such ship is within any port or place in Pakistan, for the purpose of demanding the production of any load line certificate, or, as the case may be, international load line exemption certificate for the time being in force in respect of the ship:

Provided that such ship is an existing ship of one hundred and fifty tons gross or more or a new ship of twenty-four meters or more in length.

(2) If a valid international load line certificate is produced to the surveyor on such demand, the surveyor's powers of inspecting the ship with respect to load line shall be limited to seeing—

(a) that the ship is not loaded beyond the limits allowed by the certificate;

(b) that the position of the load lines on the ship corresponds with the position specified in the certificate;

(c) that no material alterations have taken place in the hull or superstructure of the ship which affect the position of the load lines; and

(d) that the fittings and appliances for the protection of openings, the guard rails, the freeing ports and the means of access to the crews quarters have been maintained on the ship in as effective a condition as they were in when the certificate was issued.

(3) If a valid international load line exemption certificate is produced to the surveyor on demand made under sub-section (1), the surveyor's powers of inspecting the ship with respect to load lines shall be limited to seeing that the conditions stipulated in the certificate are complied with.

(4) If it is found on any such inspection that the ship is loaded beyond the limits allowed by the certificate, the ship may be detained and the provisions of section 400 shall apply.

(5) If it is found on any such inspection that the load lines on the ship are not in the position specified in the certificate, the ship may be detained until the matter has been rectified to the satisfaction of the surveyor.

(6) If it is found on any such inspection that the ship has been so materially altered in respect of the matters referred to in clauses (c) and (d) of sub-section (2) or, as the case may be, sub-section (3) that the ship is manifestly unfit to proceed to sea without danger to human life, the ship shall be deemed to be unsafe for the purpose of section 400:

Provided that where the ship has been detained, the Federal Government shall order the ship to be released as soon as it is satisfied that the ship is fit to proceed to sea without danger to human life.

(7) If a valid international load line certificate or, as the case may be international load line exemption certificate is not produced to the surveyor on such demand as aforesaid the surveyor shall have the same power of inspecting the ship, for the purpose of seeing that the provisions of this Part relating to load lines have been complied with, as if the ship were a Pakistani ship.

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(8) For the purposes of this section, a ship shall be deemed to be loaded beyond the limits allowed by the certificate if she is so loaded as to submerge in salt water, when the ship has no list the appropriate load line on each side of the ship, that is to say, the load line appearing by the certificate to indicate the maximum depth to which the ship is for the time being entitled under the Load Line Convention to be loaded.

375. **Certificate of ship other than Pakistani ships to be produced to Customs.—**The master of every ship other than a Pakistani ship, carrying cargo or passengers and belonging to a country to which the Load Line Convention applies shall produce to the officer of Customs from whom a port-clearance for the ship at any port in Pakistan is sought—

(a) in a case where port clearance is sought in respect of a voyage to a port or place outside Pakistan, a valid international load line certificate or a valid international load line exemption certificate; and

(b) In a case where port clearance is sought in respect of any other voyage, a valid international load line exemption certificate or a valid Pakistan load line

certificate or Pakistan load line exemption certificate, and port clearance shall not be granted and the ship may be detained until the certificate is so produced in pursuance of this section.

376. **Marking of deck line and load lines of ships other than Pakistani ships.—**The provisions of section 360 shall apply to ships other than Pakistani ships proceeding or attempting to proceed to sea from ports or places in Pakistani as they apply to Pakistani ships subject to the following modifications, namely:—

(a) the said section shall not apply if a valid international load line certificate or a valid international load line exemption certificate is produced in respect of the ship; and

(b) subject to the provisions of clause (a), a ship which does not comply with the conditions of assignment to the extent required in her case by section 374 shall be deemed to be unsafe for the purpose of section 400.

377. **Submersion of load lines of ships other than Pakistani ships.—**The provisions of sections 362, 363 and 364 shall apply to ships other than Pakistani ships, while they are within any port or place in Pakistan as they apply to Pakistani ships subject to the following modifications, namely:—

(a) no ship carrying cargo or passengers and belonging to country to which the Load Line Convention applies, shall be detained and no proceedings shal be taken against the owner or master thereof, by virtue of the said sections except after an inspection by a surveyor as provided by section 374; and

(b) the expression "the appropriate load line" in relation to any ship other than a Pakistani ship shall mean,—

(i) in the case of a ship in respect of which there is produced on such an inspection as aforesaid a valid international load line certificate, the load line appearing by the certificate to indicate the maximum depth to which the ship is for the time being entitled under the Load Line Convention to be loaded; and

(ii) in any other case, the load line which corresponds with the load line indicating the maximum depth to which the ship is for the time being entitled under the load line rules to be loaded, or, if no load line on the ship corresponds as aforesaid, the lowest load line thereon.

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378. **Inspection of ships belonging to non-convention countries.—**The provisions of section 366 shall apply, in the same manner as they apply to Pakistani ships, to all other ships while they are within any port or place in Pakistan except ships to which the provisions of section 374 apply.

379. **Load line certificates and load line exemption certificates of ships other than Pakistani ships.** —(1) The provisions of this Part relating to the issue, effect, duration, renewal and cancellation of Pakistan load line certificates or, as the case may be, Pakistan load

line exemption certificates shall apply to ships other than Pakistani ships as they apply to Pakistani ships subject to the following modifications, namely:—

(a) any such certificate may be issued in respect of any such ship as in respect of a Pakistani ship provided that any such certificate issued in respect of a ship of a gross tonnage of one hundred and fifty or upwards carrying cargo or passengers and belonging to a country to which the Load Line Convention applies shall only be valid so long as the ship is not plying on voyages from or to any port or place in Pakistan to or from any port or place outside Pakistan and shall be endorsed with a statement to that effect and shall be cancelled by the Federal Government if it has reason to believe that the ship is so plying; and

(b) the survey required for the purpose of seeing whether the certificate should remain in force shall take place when required by the Federal Government.

(2) If the Federal Government is satisfied—

(a) that the provision has been made for the fixing, marking and certifying of load lines by the law in force in any country outside Pakistan with respect to ships or any class or description bf ships of that country and has also been so made or has been agreed to be so made for recognising Pakistan load line certificate or, as the case may be, Pakistan load line exemption certificate as having the same effect in ports or places of that country as certificates issued under the said provisions; and

(b) that the said provision for the fixing, marking and certifying load lines is based on the same principles as the corresponding provisions of this Part relating to load lines and is equally effective, it may, by notification in the official Gazette, direct that the load line certificates or load line exemption certificate issued in pursuance of the said provisions or in respect of ships of that class or description of ships of that country, shall have the same effect for the purpose of this Part as Pakistan load line certificates or, as the case may be, Pakistan load line exemption certificates:

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Provided that such direction shall not apply to ships of gross tonnage of one hundred and fifty or upwards carrying cargo or passengers and belonging to countries to which the Load Line Convention applies, if such ships are engaged in plying on voyages from or to any port or place in Pakistan to or from port or place outside Pakistan.

380. **Certificates to be produced to Customs by ships, other than Pakistani ships, belonging to non-Convention countries.—**The master of every ship belonging to a country to which the Load Line Convention does not apply shall produce to the officer of Customs from whom a port clearance for the ship is sought, either a Pakistan load line certificate or, as the case may be, Pakistan load line exemption certificate or a certificate having effect under this Ordinance as such a certificate, being a certificate for the time being in force in respect of the ship, and port clearance shall not be granted and the ship may be detained until the certificate required by this section is so produced

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CHAPTER 27. — CARRIAGE OR SPECIAL CARGOES

381. **Power to make rules in respect of timber cargo.**—(1) The Federal Government may, by notification in the official Gazette, make rules as to the conditions on which timber may be carried as cargo in any uncovered space on the deck of any Pakistani ship or any other ship within any port or place in Pakistan, hereinafter referred to as the timber cargo rules, and as to the conditions on which any other cargo may be carried.

(2) The timber cargo rules may prescribe a special load line to be used only when the ship is carrying timber as cargo on deck and the conditions on which such special load line may be assigned and may further prescribe, either generally or with reference to particular voyages or seasons, the manner and position in which such timber is to be towed and the provisions which are to be made for the safety of the crew.

(3) Any surveyor authorised in this behalf by the Federal Government may, at any reasonable time, inspect any ship carrying timber as cargo in any uncovered space on her deck for the purpose of seeing whether the timber cargo rules have been complied with.

(4) The owner or master of a ship who contravenes any provisions of the rules made under the preceding sub-sections shall be liable to a fine which may extend to fifty thousand rupees.

(5) The foregoing provisions of this section and the timber cargo rules shall apply to ships other than Pakistani ships while they are within Pakistani jurisdiction as they apply to Pakistani ships.

382. **Carriage of dangerous goods.**—(1) The Federal Government may, by notifiction in the official Gazette, make rules for regulating, in the interest of safety, the carriage of dangerous goods in ships.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for the classification of such goods, the packing, marking and stowing of such goods or any class of such goods, and the fixing of the maximum quantity of any such class of goods which may be carried in different ships or classes of ships, and such other matters relating to dangerous goods as required to be provided for implementing the provisions of the Safety Convention.

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(3) The owner, master or agent of a ship carrying or intending to carry any dangerous goods as cargo and about to make a voyage from a port or place in Pakistan shall furnish in advance the prescribed particulars of the ship and the cargo to the Principal Officer, or to such other officer as may be specified, for the purpose.

(4) A surveyor may inspect the ship for the purpose of ensuring that the rules made under this section are complied with.

(5) If any of the rules made under this section is not complied with in relation to any ship, the owner or master of the ship shall be liable to a fine which may extend to fifty thousand rupees and the ship shall be deemed for purposes of this Part to be an unsafe ship.

(6) This section shall apply, in the same manner as it applies to Pakistani ships, to ships other than Pakistani ships while they are within any port in Pakistan or are embarking or disembarking passengers or are loading or discharging cargo or fuel within Pakistan jurisdiction.

Explanation.— In this section the expression "dangerous goods" means goods which by reason of the nature, quantity or mode of stowage are either singly or collectively liable to endanger the life or the health of persons on or nearer the ship or to imperil the ship and includes all substances within the meaning of the expression "explosive" as defined in the Explosives Act, 1884 (IV of 1884), and any other goods which the Federal Government may, by notification in the official Gazette, specify as dangerous goods but shall not include,—

(a) any fog or distress signals or other stores or equipment required to be carried by the ship under this Ordinance or the rules regulations there under; and

(b) particular cargoes carried in ships specially built or converted as a whole for that purpose, such as tankers.

383. **Restrictions on carriage of dangerous goods**.—(1) A person shall not send or attempt to send by any vessel, Pakistani or foreign, and a person not being the master or owner of the vessel, shall not carry or attempt to carry in any such vessel, any dangerous goods, without distinctly marking their nature on the outside of the package containing the same, and giving written notice of the nature of those goods and of the name and address of the sender or carrier thereof to the master or owner of the vessel at or before the time of sending the same to be shipped or taking the same on board the vessel.

(2) If any person fails, without reasonable cause to comply with this section, he shall, for each offence, be liable to a fine which may extend to fifty thousand rupees or if he shows that he was merely an agent in the shipment of any such goods as aforesaid, and was not aware and did not suspect and had no reason to suspect that the goods shipped by him were of a dangerous nature, he shall be liable to a fine which may extend to five thousand rupees.

384. **Penalty for misdescription of goods.**—(1) No person shall knowingly send or attempt to send by or carry or attempt to carry in any vessel, Pakistani or foreign, dangerous goods under false description, nor shall falsely describe the sender or carrier thereof.

(2) If any person contravenes the provisions of sub-section (1) he shall be liable to imprisonment for a term which shall not be less than three months and fine not exceeding five hundred thousand rupees.

385. **Power to deal with goods suspected of being dangerous.**—(1) The master or owner of any Pakistani or foreign vessel, may refuse to take on board any package or parcel which he suspects to contain any dangerous goods, and may require it to be opened to ascertain the fact.

(2) Where any dangerous goods or any goods which, in the opinion of the master or owner of the vessel, are dangerous goods, have been sent or brought abroad any Pakistani or foreign vessel, without being marked as aforesaid, or without such notice having been given as aforesaid, the master or owner of the vessel may cause those goods to be delivered ashore together with any package or receptacle in which they are contained and the expenditure involved in such operation shall be recoverable from the owner or owners of the goods or suppliers.

386. **Forfeiture of dangerous goods improperly sent or carried.**—(1) Where any dangerous goods have been sent or carried, or attempted to be sent or carried, on board any Pakistani or foreign vessel, without being marked as aforesaid or without such notice having been given as

aforesaid, or under a false description, or with a false description of the sender or carrier thereof, any court having jurisdiction may declare those goods and any package of receptacle in which they are contained, to be dangerous goods, and they shall thereupon be forfeited and when forfeited shall be disposed of as the Court directs.

(2) The Court shall have, and may exercise, the aforesaid powers of forfeiture and disposal notwithstanding that the owner of the goods has not committed any offence under the provisions of this Ordinance relating to dangerous goods, and is not before the court, and has not received notice of the proceedings, and notwithstanding that there is no evidence to show to whom the goods belong; nevertheless the court may, in its discretion, require such notice as it may direct to be given to the owner or shipper of the goods before they are forfeited.

387. **Saving for other enactments relating to dangerous goods.—**The provisions of this Part of this Ordinance relating to the carriage of dangerous goods shall be in addition to, and not in derogation of, any other law for a time being in force.

388. **Grain loading plan.**—(1) No grain shall be loaded on board any Pakistani ship anywhere unless there is in force in respect of such ship a grain loading plan approved under sub-section (3) or sub-section (4).

(2) The grain loading plan shall be in such form and contain such particulars as the stability of the ship, circumstances of loading on departure and arrival, the main characteristics of the fittings used to prevent the shifting of cargo and such other matters as may be prescribed, having regard to the rules made under sub-section (7) of section 389.

(3) Save as otherwise provided in sub-section (4) the grain loading plan shall be submitted to the Federal Government for approval and that Government may, having regard to the rules made under sub-section (7) of section 389, the stability of the ship and the circumstances of loading on departure and arrival, approve the plan with such modifications, if any, as it may deem necessary.

(4) The Federal Government may request the Government of a country to which the Safety Convention applies to approve the grain loading plan of a Pakistani ship and an approval given in pursuance of such a request and containing a statement that it has been so given shall have effect for the purposes of this section as if the approval had been given by the Federal Government.

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(5) The Federal Government may, at the request of the Government of a country to which the Safety Convention applies approve the grain loading plan of a ship registered in that country if the Federal Government is satisfied, in the like manner as in the case of Pakistani ship, that such approval can properly be given and where approval is given at such a request, it shall contain a statement that it has been so given.

(6) If the master, owner or agent fails to comply with the provisions of sub-section (1) he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

389. **Carriage of grain.**—(1) Where grain is loaded on board any Pakistani ship or is loaded on board any ship within any port or place in Pakistan, all necessary and reasonable precautions shall be taken to prevent the grain from shifting; and if such precautions are not taken, the owner or the master of the ship or any agent of the owner who was charged with the loading or with sending the ship to sea laden with grain, shall be liable to a fine which may extend to one hundred

thousand rupees and the ship shall be deemed for the purposes of this Part to be unsafe by reason of improper loading.

(2) Where any ship which is loaded with grain outside Pakistan without all necessary and reasonable precautions having been taken to prevent the grain from shifting, enters any port or place in Pakistan so laden, the owner or the master of the ship shall be liable to a fine which may extend to one hundred thousand rupees and the ship shall be deemed for the purposes of this Part to be unsafe by reason of importer loading.

(3) Where grain is loaded on board a Pakistani ship in accordance with a grain loading plan approved under section 388 or where grain is loaded on board any other ship in accordance with a grain loading plan approved by or on behalf of the Government of the country in which that ship is registered, the ship shall be deemed, for the purposes of sub-sections (1) and (2), to have been loaded with all necessary and reasonable precautions.

(4) On the arrival at a port or place in Pakistan from a port or place outside Pakistan of any ship carrying a cargo of grain, the master shall cause to be delivered at the office of the Principal Officer or to such other officer as may be specified by the Federal Government in this behalf, a notice stating,—

(a) the draught of water and free board of the said ship after the loading of the cargo was completed at the final port of loading;

(b) the kind of grain carried and quantity thereof stated in cubic meters, cubic feet, quarters, bushels or tons weight; and

(c) the mode in which the grain is stowed and the precautions taken to prevent the grain from shifting and where the grain has been stowed in accordance with the ships' grain loading plan, if any, that it has been so stowed.

(5) If the master fails to deliver the notice required by sub-section (4), or if on any such notice makes any statement that he knows to be false in a material particular, or recklessly makes a statement that is false in a material particular, he shall be liable to a fine which may extend to ten thousand rupees.

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(6) A surveyor or any other person authorised in this behalf, by general or special order of the Federal Government, may for securing the observance of the provisions of this section inspect a ship carrying a cargo of grain and the mode in which such cargo is stowed therein and require the production of the grain loading plan of the ship.

(7) The Federal Government may, by notification in the official Gazette, make rules prescribing in relation to grain loading plans and the loading of ships generally or of ships of any class specifying the precautions to be taken, and when such precautions have been prescribed, they shall be treated for the purposes of this section to be included in the expression "necessary and reasonable precautions".

(8) In this section and section 388 the expression "grain" includes wheat, maize (corn), oats, rye, barley, rice, pulses and seeds, and processed form thereof, and the expression "ship carrying a cargo of grain" means a ship carrying a quantity of grain exceeding one-third of the ship's registered tonnage reckoning two tones by weight of grain as equivalent to one unit of

registered tonnage, or where the height of grain carried in any compartment exceeds one-third of the height of that compartment.

390. **Carriage of bulk cargoes other than grain, etc.**—(1) The Federal government may, by notification in the official Gazette, make rules in relation to the loading of bulk cargoes, other than grain as defined in sub-section (8) of section 389 and oil in bulk, on any Pakistani ship or in any ship within any port or place in Pakistan.

(2) The owner or master of a ship in respect of which the provisions of any of the rules made under sub-section (1) are contravened shall be liable to a fine which may extend to ten thousand rupees.

CHAPTER 28. — UNSEAWORTHY AND UNSAFE SHIPS

391. **Unseaworthy ship defined.—**A ship is "Unseaworthy" within the meaning of this Ordinance when the materials of which she is made, her construction, the qualifications of the crew including officers, the weight, description and stowage of the cargo and ballast, the condition of her hull and equipment, boilers and machinery are not such as to render her in every respect fit for the proposed voyage or service.

392. **Unseaworthy ships not to be sent to sea.**—(1) Every person who sends or attempts to send a Pakistani ship to sea from any port or place in Pakistan in such an Unseaworthy state that the life of any person is likely to be thereby endangered shall, unless he proves that he used all reasonable means to ensure her being sent to sea in a seaworthy state, or that her going to sea in such an Unseaworthy state was, under the circumstances reasonable and justifiable, be liable to imprisonment for a term which shall not be less than three months and fine not exceeding five hundred thousand rupees.

(2) Every master of a Pakistani ship who knowingly takes such ship to sea in such an Unseaworthy state that the life of any person is likely to be thereby endangered shall, unless he proves that her going to sea in such an Unseaworthy state was, under the circumstances reasonable and justifiable, be liable to a fine which may extend to one hundred thousand rupees.

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(3) For the purpose of giving such proof, every person charged under this section may give evidence in the same manner as any other witness.

(4) No prosecution under this section shall be instituted except by, or with the consent of, the Federal Government.

393. **Obligation of ship owner to crew with respect to seaworthiness.**—(1) In every contract of service, express or implied, between the owner of a Pakistani ship and the master or any seaman there of, there shall be implied, notwithstanding any agreement to the contrary, an obligation on the owner of the ship, that such owner, and the master, and every agent charged with the loading of the ship or the preparing thereof for sea, or the sending thereof to sea, shall use all reasonable means to ensure the seaworthiness of the ship for the voyage at the time when the voyage commences, and to keep her in a seaworthy condition during the voyage.

(2) For the purpose of seeing that the provisions of this section have been complied with, the Federal Government may, either at the request of the owner or otherwise, arrange for a survey of the hull, equipment or machinery of any sea-going ship by a surveyor.

394. **Power to detain unsafe ship and procedure for detention.**—(1) Where a Pakistani ship in any port or place to which the Federal Government may specially extend this section is an unsafe ship, that is to say, is by reason of the defective condition of her hull, equipment or machinery, or by reason of under manning or by reason of over loading or improper loading, unfit to proceed to sea without serious danger to human life, having regard to the nature of the service for which she is intended, such ship may be provisonally detained for the purpose of being surveyed and either finally detained or released as follows, namely:—

(a) the Federal Government, if it has reason to believe, on complaint or otherwise, that anysuch ship is unsafe, may order the ship to be provisionally detained as an unsafe ship for the purpose of being surveyed;

(b) a written statement of the grounds of such detention shall be forthwith served on the master of such ship;

(c) when the Federal Government orders that a ship be provisionally detained, it shall either refer the matter to the Court of Survey for the port where the ship is detained, or forthwith appoint some competent person to survey such ship and report thereon; and, on receiving the report, may either order the ship to be released, or if in its opinion the ship is unsafe, may order her to be finally detained, either absolutely or until the performance of such conditions with respect to the execution of repairs or alterations, or the unloading or reloading of cargo, as the Federal Government thinks necessary for the protection of human life;

(d) before an order for final detention is made, a copy of the report shall be served upon the master of the ship, and within seven days after such service, the owner or master may appeal against such report, in the manner prescribed, to the Court of Survey for the port where the ship is detained;

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(e) where a ship has been provisionally detained and a person has been appointed under this section to survey such ship, the owner or master of the ship, at any time before such person makes that survey, may require that he shall take with him as assessor such person as the owner or master may select, being a person named in the list of assessors for the Court of Survey or if there is no such list or if it is impracticable to procure the attendance of any person named in such list, a person of nautical engineering or of other special skill and experience. If the surveyor and assessor agree that the ship should be detained or released, the Federal Government shall cause the ship to be detained or released accordingly, and the owner or master shall have no right of appeal. If the surveyor and assessor differ in their report, the Federal Government may act as if the requisition had not been made, and the owner or master shall have a right of such appeal touching the report of the surveyor as is here in before provided in this section;

(f) where a ship has been provisionally detained, the Federal Government may, at anytime if it thinks it expedient, refer the matter to the Court of Survey for the port where the ship is detained; and

(g) the Federal Government may, at any time if satisfied that a ship detained under this section is not unsafe, order her to be released either upon or without any conditions.

(2) A Principal Officer or any other person appointed by the Federal Government for the purpose (in this Ordinance referred to as a Detaining Officer), shall have the same power as the Federal Government has under this section of ordering that a ship be provisionally detained for the purpose of being surveyed, and of appointing a person to survey her; and, if he thinks that a ship so detained by him is not unsafe, a detaining officer may order her to be released.

(3) A detaining officer shall forthwith report to the Federal Government any order made by him for the detention or release of a ship.

(4) A ship detained under this section shall not be released by reason of her ceasing to be a Pakistani ship subsequent to her detention.

(5) A detaining officer, for the purpose of this Chapter, may

(a) go on board any ship and may inspect the same or any part thereof, or any of the machinery, equipment and cargo on board thereof, and require the unloading or removal of any cargo, ballast or tackle, not unnecessarily detaining or delaying her from discharging, unloading or proceeding on any voyage;

(b) by summons under his hand, require the attendance of all such persons as he thinks fit to call before him, examine such persons, and, by a like summons, require returns in writing to any inquiries he thinks fit to make;

(c) require and enforce the production of all books, papers or documents which he considers important; and

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(d) administer oaths, or in lieu of administering an oath, require every person examined by him to make and subscribe a declaration of the truth of the statements made by him in his examination.

395. **Liability of Federal Government for costs and damages when ship wrongly detained.—** If it appears that there was no reasonable and probable cause, by reason of the condition of the ship or the act or default of the owner or the master, for the provisional detention of a ship, the Federal Government shall be liable to pay to the owner of the ship his costs of, and incidental to, the detention and suvey of the ship and also compensation for any loss or damage sustained by him by reason of the detention or survey.

396. **Liability of ship owner for costs when ship rightly detained.—**If a ship is finally detained under this Chapter, or if it appears that a ship provisionally detained was at the time of such detention unsafe, or if a ship is detained in pursuance of any provisions of this Chapter which provide for the detention of a ship until a certain event occurs, the owner of the ship

shall be liable to pay to the Federal Government the costs of, and incidental to, the detention and survey of the ship; and the ship shall not be released until such costs are paid.

397. **Method of calculating costs of detention and survey.—**For the purposes of this Ordinance, the costs of, and incidental to, any proceeding before a Court of Survey, and a reasonable amount in respect of the remuneration of the surveyor or any person appointed to represent the Federal Government before the Court, shall be deemed to be part of the costs of the detention and survey of the ship.

398. **Power to require from complainant security for costs.—**When a complaint is made to the Federal Government or a Detaining officer that a Pakistani ship is unsafe, it shall be in the discretion of the Federal Government or the Detaining officer, as the case may be, to require the complainant to give security to the satisfaction of the Federal Government or the detaining officer for the costs and compensation which such complainant may become liable to pay as hereinafter mentioned.

Provided that, where the complaint is made by one-fourth being not less than three, of the seamen belonging to the ship, and is not in the opinion of the Federal Government or the Detaining Officer frivolous or vexatious, such security shall not be required, and the Federal Government or the Detaining Officer shall, if the complaint is made in sufficient time before the sailing of the ship, take proper steps to ascertain whether the ship ought to be detained under this Chapter.

399. **Costs, etc., payable by Federal Government to be recovered from complainant.—** Where a ship is detained in consequence of any complaint and the circumstances are such that the Federal Government is liable under this Chapter to pay to the owner of the ship any costs or compensation, the complainant shall be liable to pay to Federal Government all such costs and compensation as the Federal Government incurs, or is liable to pay, in respect of the detention and survey of the ship.

400. **Application to ships other than Pakistani ships of provisions as to detention.—** When a ship other than a Pakistani ship is in a port in Pakistan and is, whilst at the port, unsafe by reason of—

(a) the defective condition of her hull, equipment, machinery, unsafe operational procedure or by reason of over-loading or improper loading;

(b) the condition of the ship, or any part thereof, or the stability is such that it cannot proceed to sea without danger to the ship or the persons on board;

(c) the ship is unsafe by reason of under manning, its loading condition or because of it carries too many passengers; and

(d) the provisions, water or medical stores are of such quality and quantity that this endangers the safety or health of persons on board; the provisions of this chapter with respect to the detention of ships shall apply to that ship as if she were as Pakistani ship, with the following modifications, namely :–

(i) copy of the order for the provisional detention of the ship shall forthwith be served on the consular officer for the country to which the ship belongs at or nearest to the port in which such ship is detained;

(ii) the consular officer, at the request of the owner or master of the ship, may require that the person appointed by the Federal government to survey the ship shall be accompanied by such person as the consular officer may select, and in that case, if the surveyor and that person agree, the Federal Government shall cause the ship to be detained or released accordingly; but, if they differ, the Federal Government may act as if the requisition had not been made, and the owner and master shall have the like right of appeal to a Court of Survey touching the report of the surveyor as is here in before provided in the case of a Pakistani ship; and

(iii) where the owner or master of the ship appeals to the Court of Survey, the consular officer, at the request of the owner or master, may appoint a competent person to be assessor in the case in lieu of the assessor who if the ship were a Pakistani ship, would be appointed otherwise than by the Federal Government.

401. **Detention, etc., of foreign ships in cases to which section 400 does not apply.—** Where any ship other than a Pakistani ship is detained under this Part in any case to which the provisions of section 400 do not apply, or where any proceedings are taken under this Part against the master or owner of any such ship, notice shall forthwith be served on the consular officer for the country to which the ship belongs at or nearest to the port where the ship is for the time being, and such notice shall specify the grounds on which the ship has been detained or the proceedings have been taken.

402. **Exemption of ships from certain provisions of the Chapter.——**Nothing in this-Chapter shall apply to any ship other than a Pakistani ship while it is within any port in Pakistan if it would not have been within such port but for stress of whether or any other circumstances that neither the master nor the owner nor the charter, if any, of the ship could have prevented or forestalled.

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PART VII.—NAVIGATION, COLLISIONS AND ACCIDENTS

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CHAPTER 29. — NAVIGATION

403. **Method of giving helm order.**—(1) No person on any Pakistani ship shall, when the ship is going ahead give helm or steering order containing the word “starboard” or “right” or any equivalent of “starboard” or “right” unless he intends that the head of the ship shall move to the right or give a helm or steering order containing the word “port” or “left” or any equivalent of “port” or “left” unless he intends that the head of the ship shall move to the left.

(2) Any person who contravenes the provisions of this section shall, for each offence, be liable to a fine which may extend to five thousand rupees.

404. **Duty to report dangers to navigation.—**(1) The master of a Pakistani ship on meeting with—

(a) dangerous ice;

(b) a dangerous derelict;

(c) a tropical storm;

(d) air temperatures below freezing point associated with gale force winds causing severe ice accretion on the superstructure of the ship;

(e) winds of force ten or above on the Beauport scale for which no storm warning has been received; or

(f) any other direct danger to navigation,

shall send information accordingly by all means of communication at his disposal, and in accordance with such rules as the Federal Government may make in this behalf, to ships in the vicinity and to such authorities on shore as may be prescribed by those rules.

Explanation.—For the purposes of this section, the expression "tropical storm" means a hurricane, typhoon, cyclone or other storm of a similar nature, and the master of a ship shall be deemed to have met with a tropical storm if he has reason to believe that there is such a storm in the vicinity.

(2) If the master of a ship fails to comply with th provisions of this section he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

405. **Careful navigation near ice.—**(1) When ice is reported on or near his course, the master of every Pakistani ship shall proceed at a moderate speed or alter his course so as to pass well clear of the danger zone.

(2) If the master of any such ship fails to comply with the provisions of this section, he shall be liable to a fine which may extend to five thousand rupees.

406. **Obligation to render assistance on receiving signal of distress.—**(1) The master of a Pakistani ship on receiving at sea a signal of distress or information from any source that a vessel or aircraft is in distress shall proceed with all speed to the assistance of the persons in distress (informing them if possible that he is doing so) unless he is unable or in the special circumstances of the case considers it unreasonable or unnecessary to do so or unless he is released from such obligation under the provisions of sub-section (3) or sub-section (4).

(2) Where the master of any ship in distress has requisitioned any Pakistani ship that has answered his call, it shall be the duty of the master of the requisitioned ship to comply with the requisition by continuing to proceed with all speed to the assistance of the persons in distress unless he is released from the obligation under the provisions of sub-section (4).

(3) The master shall be released from the obligation imposed by sub-section (1) as soon as he is informed of the requisition of one or more ships other than his own and that the requisition is being complied with by the ship or ships requisitioned.

(4) The master shall be released from the obligation imposed by sub-section (1), if his ship has been requisitioned from the obligation imposed by sub-section (2), if he is informed by the persons in distress that assistance is no longer required.

(5) If the master of any Pakistani ship on receiving at sea a signal of distress or information from any source that a vessel or aircraft is in distress is unable or in the special circumstances of the case considers it unreasonable or unnecessary to go to the assistance of the persons in distress, he shall forthwith cause a statement to be entered in the official log-book or, if there is no official log-book, cause other record to be kept of his reasons for not going to the assistance of those persons; and if he fails to do so he shall be liable to a fine which may extend to tell thousand rupees.

(6) The master of every Pakistani ship for which an official log book is required shall enter or cause to be entered in the official log-book every signal of distress or message that a vessel, aircraft or person is in distress at sea.

(7) Any master, failing to comply with the provisions of sub-section (1) or sub-section (2), shall be liable to a fine which may extend to fifty thousand rupees.

407. **Power to make rules.—**The Federal Government may, by notification in the official Gazette, make rules prescribing—

(a) the manner of communicating information regarding dangers to navigation, and the authorities on shore to whom such information is to be communicated;

(b) the signals which shall be signals of distress and of urgency respectively;

(c) the circumstances in which, and the purposes for which any such signal is to be used and the circumstances in which it is to be revoked; and

(d) the speed at which any message sent by radio telegraphy or by any other means in connection with such signal is to be transmitted.

408. **Ships to carry certain navigational instruments, etc.—**(1) Every Pakistani ship shall be provided with such navigational and meteorological instruments, equipment (in addition to those referred to in section 339), and publications including charts, directions or information as appear necessary or expedient for the safe operation of ship, as the Federal Government may by rules prescribe, and such rules may also prescribe the manner in which such instruments and equipment shall be maintained.

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(2) The Principal Officer or surveyor may go on board any ship and inspect the instruments, equipment and publications maintained under sub-section (1) with a view to satisfying himself that the provisions of that sub-section have been duly complied with.

(3) If the Principal Officer or surveyor is of opinion that the provisions of sub-section (1) are not being complied with by any Pakistani ship, he may detain the ship until such time as those provisions have been duly complied with.

409. **Signalling lamps.—**(1) Every Pakistani ship, being a ship of a gross tonnage of over one hundred and fifty, shall, when proceeding to sea from any port or place in Pakistan, be provided with a signalling lamp of the type approved by the Federal Government..

(2) If any ship proceeds or attempts to proceed to sea in contravention of this section, the owner or master thereof shall, for each offence, be liable to a fine which may extend to five thousand rupees.

410. **Meteorological observations to be recorded, etc.—**(1) Every Pakistani ship shall make meteorological observations at such intervals and record the same in such meteorological log as may be prescribed.

(2) Any Pakistani ship or ships required by the Federal Government to do so shall transmit meteorological reports at such times and to such authorities as may be appointed in this behalf

(3) The master of a ship in respect of which the provisions of sub-section (1) or sub-section (2) are contravened shall be liable to a fine which may extend to five thousand rupees.

CHAPTER 30. — COLLISIONS AND ACCIDENTS

411. **Collision regulations.—**(1) The Federal Government may, by notification in the official Gazette, make regulations for the prevention of collisions at sea, and may thereby regulate the lights and shapes to be carried and exhibited, the fog and distress signals to be carried and used, and the steering and sailing rules to be observed by Pakistani ships, and by sailing vessels and fishing vessels registered in Pakistan.

(2) The collision regulations, together with the provisions of sections 412 and 413 shall also be observed, while within Pakistan jurisdiction, by all ships other than Pakistani ships and by all sailing vessels and fishing vessels not registered in Pakistan, and, in any case arising in any court in Pakistan concerning matters arising within Pakistan jurisdiction, such ships and vessels shall, for the purpose of application of the collision regulations and the said provisions, be treated as if they were Pakistani ships or sailing vessels or fishing vessels registered in Pakistan, as the case may be.

412. **Observance of collision regulations.**—(1) The owner or master of every ship and the owner, *nakhuda* or skipper of every sailing vessel or fishing vessel shall observe the collision regulations and shall not carry or exhibit any lights or shapes, or use any fog or distress signals, other than those required by the said regulations.

(2) Any person who contravenes the provisions of sub-section (1) shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

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(3) If any damage to person or property arises from the non-observance by any such ship or vessel of any of the collision regulations, the damage shall be deemed to have been occasioned by the wilful default of the person in charge of the ship or the vessel, as the case may be, at the time unless it is shown to the satisfaction of the Court that the circumstances of the case made a departure from the regulations necessary.

413. **Inspection of lights and shapes, etc.—**(1) A surveyor, or such other person as may be appointed by the Federal Government in this behalf, may inspect any ship whether a Pakistani ship or not, and any sailing vessel or fishing vessel whether registered in Pakistan or not, for the purpose of seeing that the ship or vessel is properly provided with lights and shapes and the means of making fog and distress signals in conformity with the collision regulations, and, if the surveyor or such other person finds that the ship or vessel is not so provided with, he shall give to the owner or to the master, *nakhuda* or skipper, as the case may be, notice in writing, pointing out the deficiency, and also what is, in his opinion, requisite in order to remedy the same.

(2) Every notice so given shall be communicated in the prescribed manner to the officer of Customs at any port or place from which such ship or vessel may seek to clear; and no officer of Customs to whom such communication is made shall grant such ship or vessel a port clearance or allow her to proceed to sea without a certificate under the hand of some person appointed as aforesaid to the effect that the ship or vessel is properly provided with lights and shapes and with the means of making fog and distress signals in accordance with the said regulations.

414. **Saving for rules of navigation in harbour, etc.—**Nothing in this Ordinance shall affect the operation of any rules concerning lights and signals to be carried, or the steps for avoiding collisions to be taken, by vessels navigating the waters of any harbour, river or other inland navigation, made, whether before or after the commencement of this Ordinance, under any law for the time being in force.

415. **Duty of master to assist in case of collision.—**(1) In every case of collision between two ships, the master or person in charge of each ship, in and so far as he can do so without danger to his own ship, crew and passengers, if any, shall—

(a) render to the other ship, her master, crew and passengers, if any, Such assistance as may be practicable and may be necessary to save them from any danger caused by the collision and stay by the other ship until he has ascertained that she has no need of further assistance; and

(b) give to the master or person in charge of the other ship the name of his own ship and of the port to which she belongs and also the names of the ports from which she comes and to which she is bound.

(2) if the master or person in charge fails, without reasonable cause, to comply with this section he shall, for each offence, be liable to a fine which may extend to fifty thousand rupees and if he is a certificated officer, an inquiry into his conduct may be held, and his certificate suspended or cancelled.

416. **Collision to be entered in official-log.—**(1) In every case of collision in which it is practicable so to do, the master of every ship concerned shall, immediately after the occurrence, cause a statement thereof and of the circumstances under which the same occurred to be entered in the official log-book, if any, and the entry shall be signed by the master and also by one of the officers or one of the crew.

(2) If a master fails to comply with this section, he shall be liable to a fine which may extend to five thousand rupees.

417. **Report to Federal Government of accidents to ships.—**(1) When a ship has sustained or caused any accident occasioning loss of life or any serious injury to any person or has received any material damage affecting her seaworthiness or her efficiency either in her hull or is so altered in any part of her machinery as not to correspond with the particulars contained in any of the certificates issued under this Ordinance in respect of the ship, the owner or master shall, within twenty-four hours after the happening of the accident or damage or as soon thereafter as possible, transmit to the Federal Government, or the nearest Principal Officer, a report of the accident or damage and of the probable cause thereof stating the name of the ship, her official number, if any, her port of registry and the place where she is.

(2) If the owner or master fails, without reasonable cause, to comply with this section he shall be liable to a fine which may extend to five thousand rupees.

418. **Notice of loss of Pakistani ship to be given.—**(1) If the owner or agent of any Pakistani ship has reasons, owing to the non-appearance of the ship or to any other circumstance, to apprehend that the ship has been wholly lost, he shall, as soon as conveniently may be, send to the Federal Government notice in writing of the loss and of the probable cause thereof stating the name of the ship, her official number, if any, and her port of registry.

(2) If the owner or agent fails, without reasonable cause, to comply with this section he shall be liable to a fine which may extend to five thousand rupees.

419. **Division of loss in case of collision.—**(1) Whenever by the fault of two or more ships damage or loss is caused to one or more of them or to the cargo of one or more of them or to any property on board one or more of them, the liability to make good the damage or loss shall be in proportion to the degree in which each ship was at fault:

Provided that—

(a) if, having regard to all the circumstances of the case, it is not possible to establish different degrees of fault, the liability shall be apportioned equally;

(b) nothing in this section shall operate so as to render any ship liable for any loss or damage to which her fault has not contributed; and

(c) nothing in this section shall affect the liability of any person under any contract or shall be construed as imposing any liability upon any person from which he is exempted by any contract or by any provision of law, or as affecting the right of any person to limit his liability in the manner provided by law.

(2) For the purposes of this Chapter, references to damage or loss by the fault of a ship shall be construed as including references to any salvage or other expenses, consequent upon that fault, recoverable in law by way of damages.

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420. **Damages for personal injuries.—**(1) Whenever loss of life or personal injuries are suffered by any person on board a ship owing to the fault of that ship and of any other ship or ships, the liability of the owners of the ships concerned shall be joint and several.

(2) Nothing in this section shall be construed as depriving any person of any right of defence on which, independently of this section, he might have relied in any action brought against him by the person injured, or any person entitled to sue in respect of such loss of life, or shall affect the right of any person to limit his liability in cases to which this section relates in the manner provided by law.

421. **Right of contribution.—**(1) Whenever loss of life or personal injuries are suffered by a person on board a ship owing to the fault of that ship and of any other ship or ships, and a proportion of the damages is recovered from the owner, of one of the ships which exceeds the proportion in which she was in fault, the said owner may recover by way of contribution the amount

of the excess from the owners of the other ship or ships to the extent to which those ships were respectively in fault:

Provided that no amount shall be so recovered which could not by reason of any statutory or contractual limitation of, or exemption from, liability, or which could not for any other reason, have been recovered in the first instance as damages by the persons entitled to sue thereof.

(2) In addition to any other remedy provided by law, the person entitled to any contribution under sub-section (1) shall, for the purpose of recovering the contribution, have, subject to the provisions of this Ordinance, the same rights and powers as the persons entitled to sue for damages in the first instance.

422. **Power to make rules for maritime communication.—**(1) The Federal Government may, by notification in the official Gazette, make rules to ensure that the maritime emergency and safety communication shall be carried out in a satisfactory manner.

(2) rules made under sub-section (1) may regulate, *inter-alia*, the provision of necessary facilities and, the assignment of radio frequencies, and may provide for the training and certification of personnel in charge of the maritime communications in a coastal radio station.

423. **Power to make regulations for search and rescue.—**(1) The Federal Government may, by notification in official Gazette, make regulations to ensure that the necessary arrangements are made in Pakistan for coast watching and for the rescue of persons in distress at sea.

(2) Regulations made under sub-section (1) shall include provisions on the establishment, operation and maintenance of such maritime safety facilities as are deemed practicable and necessary having regard to the density of the sea-going traffic and the navigational dangers, and shall, so far as possible, afford adequate means of locating and rescuing such persons and shall provide for the training and certification of personnel involved in search and rescue operations.

PART VIII.—OFFICIAL LOGS

CHAPTER 31.—OFFICIAL LOGS

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424. **Official logs to be kept and to be dated.—**(1) Except in the case of a coasting ship not exceeding a gross tonnage of two hundred and a sailing vessel or fishing vessel, an official log in the prescribed form shall be kept in every Pakistani ship and in every other ship which carries any Pakistani seamen engaged in Pakistan.

(2) The official log shall be kept distinct from the ordinary ship's log.

(3) Any entry required by this ordinance in the official log-book shall be made as soon as possible after the occurrence to which it relates, and if not made on the same day as that occurrence, shall be made and dated so as to show the date of the occurrence and of the entry respecting it; and if made in respect of an occurrence happening before the arrival of the ship at her final port of discharge, shall not be made more than twenty-four hours after that arrival.

(4) Save as otherwise provided in this Ordinance every entry in the official log-book shall be signed by the master and by the mate or some other member of the crew and also—

(a) if it is an entry of illness, injury or death, shall be signed by the surgeon or medical practitioner on board, if any; and

(b) if it is an entry of wages due to, or of the sale of the effects of, a seaman or apprentice who dies, shall be signed by some other member of the crew.

(5) Every entry made in an official log-book in the manner provided by this Ordinance shall be admissible in evidence.

425. **Entries required to be made in official log-book.—**The master of every Pakistani ship for which an official log is required shall enter or cause to be entered in the official log-book the following matters, namely:—

(i) every conviction by a Court or other authority of a member of his crew, and the punishment inflicted;

(ii) every offence committed by a member of his crew, and, if the offence is one for which it is intended to prosecute or to enforce a forfeiture or to exact a fine together which such statement concerning the reading over of that entry, and concerning the reply, if any, made to the charge as is by this Ordinance required;

(iii) every offence for which punishment is inflicted on board and the punishment inflicted thereof;

(iv) a statement of the conduct, character and qualifications, and a report on the quality of work of each member of his crew, or a statement, with reasons, that he declines to give an opinion on those particulars;

(v) every case of illness or injury happening to a member of the crew with the nature thereof, and the medical treatment adopted, if any;

(vi) every case of death happening on board and the cause thereof;

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(vii) every birth happening on board with the sex of the infant and the names of the parents;

(viii) every marriage taking place on board with the names and ages of the parties;

(ix) the name of every seaman or apprentice who ceases to be a member of the crew otherwise than by death, with the place, time, manner and cause thereof;

(x) the wages due to any seaman or apprentice who dies, or otherwise ceases to be a member of the crew, during the voyage, and the gross amount of all deductions to be made therefrom;

(xi) the money or other property taken over of any seaman or apprentice who dies during the voyage and the sale of such effects, if any, indicating a statement of each article sold and of the sum received for it ;

(xii) every disrating of seaman along with a statement of disrating and of the fact that a copy of the entry has been furnished to the seaman ;

(xiii) a statement of the effects left onboard by a seaman who is left behind out of Pakistan and the amount due to him on account of wages at the time he was left behind;

(xiv) a record of examination of provisions and water and the result of such examination;

(xv) a record of inspection of crew accommodation and the result of such inspection ;

(xvi) every collision with any other ship and the circumstances under which the same occurred;

(xvii) every fire or boiler explosion occurring on the ship and the circumstances under which the same occurred;

(xviii) a statement of any damage sustained by the ship or cargo as a result of any fire, boiler explosion, perils of the seas or any other reason during the voyage.

(xix) a statement of the nature and amount of cargo jettisoned for the safety of the crew, passengers or the ship ;

(xx) the time of closing and opening the hinged doors, portable plates, side scuttles, gangway, cargo and coaling ports and other openings which are required by any rules made under this Ordinance to be kept closed during navigation;

(xxi) a record of all drills and inspections required by any rules made under this Ordinance with an explicit record of any defects disclosed; and, if boat drill and fire drill are not practiced on board the reasons why boat drill and fire drill were not practiced as required by such rules.

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(xxii) a statement by the master that he has, before the commencement of voyage, made an inspection as to whether the ship is in all respects seaworthy, safe and in a fit condition to proceed to sea ;

(xxiii) the particulars as to the position of the deck line and load lines specified in the load line certificate ;

(xxiv) such particulars relating to the depth to which the ship is loaded before leaving any place for the purpose of proceeding to sea as may be required by any rules made under this Ordinance;

(xxv) a statement by the master that he had not found any stowaway on board before the commencement of the voyage;

(xxvi) the tonnage of the space, measured in accordance with any rules made under this ordinance, occupied by goods carried as, deck cargo;

(xxvii) any order made by a Maritime Board;

(xxviii) every signal of distress or message that a vessel, aircraft or person is in distress at sea, received by the master;

(xxix) any occasion when the master has been unable to go to the assistance of any vessel or aircraft of person in distress at sea together with his reasons for the inability;

(xxx) a list of documents delivered to him on taking commend of the ship; and

(xxxi) any other mater which may be prescribed for entry in the official log-book.

426. **Entries required to be made in official log-book of every other ship which carries Pakistani seamen.—**The master of every ship, not being a Pakistani ship, for which an official log is required, shall enter or cause to be entered in the official log-book only such of the matters specified in clauses (i) to (vi) and clauses (ix) to (xv) of section 425, as relate to the Pakistani seamen engaged in Pakistan as member of his crew provided that entry is witnessed by any other Pakistani officer or Pakistani crew, if any.

427. **Offences in respect of official log.—**(1) If an official log-book is not kept in the manner required by this Ordinance, or if an entry required by this Ordinance to be made there in is not made at the time and in the manner required, the master shall, if no other penalty is provided by this Ordinance, for each offence, be liable to a fine which may extend to five thousand rupees.

(2) If any person makes for procures to be made or assists in making any entry in any official log-book in respect of any occurrence happening previously to the arrival of the ship at her final port of discharge more than twenty-four hours after such arrival, he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

(3) If any person wilfully destroys or mutilates or renders illegible any entry in any official log-book, or wilfully makes or procures to be made or assists in making a false or fraudulent entry in, or omission from, an official log-book, he shall be liable to a fine which may extend to five thousand rupees.

428. **Delivery of official logs.—**(1) The master of every foreign-going ship for which an official log-book is required to be kept shall, within forty-eight hours after the ship's arrival at her final port of destination in Pakistan or upon the discharge of the crew, whichever first happens, deliver the official log-book of the voyage to the Shipping Master before whom the crew is discharged.

(2) The master or owner of every home-trade ship, and of every coasting ship, for which an official log is required to be kept shall, within twenty-one days of the thirtieth day of June and the thirty-fast day of December in every year, transmit or deliver to some Shipping Master in Pakistan the official log-book for the preceding half-year.

(3) If the master or owner of a ship fails, without reasonable cause, to comply with the section, he shall be liable to a fine which may extend to five thousand rupees.

429. **Official logs to be sent to Shipping Master in the case of transfer or loss of ships.—**(1) If for any reason the official log ceases to be required in respect of a ship, the master or owner of the ship shall, if the ship is then in Pakistan, within one month, and, if she is elsewhere, within six months, after the cessation, deliver or transmit to the Shipping Master at the port or place where the crew was engaged the official log-book duly completed up to the time of the cessation.

(2) If a ship for which an official log is required to be kept is lost or abandoned, the master or owner thereof shall, if practicable, and as soon as possible, deliver or transmit to the Shipping Master at the port or place where the crew was engaged the official log-book duly completed up to the time of the loss or abandonment.

(3) If the master or owner of the ship fails, without reasonable cause to comply with the provisions of this section he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

430. **Power to call for official logs.—**(1) The Federal Government or the Maritime Board, or any Principal Officer, surveyor, Shipping Master or Pakistan consular officer may, by order in writing at any time, call for the official log book of a ship for the purpose of inspection of the entries made therein, and the master or owner of the ship shall, unless the official log-book has already been called for under this section, produce the same at the time and place specified in the order.

(2) If the master or owner fails, without reasonable cause, to comply with an order made under sub-section (1), he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

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PART IX.—FISHING AND SAILING VESSELS

CHAPTER 32.—FISHING VESSELS

431. **Application of Chapter.—**This Chapter applies to sea-going fishing vessels propelled by mechanical means only.

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432. **Ascertainment of tonnage.—** For the purpose of this Chapter, the tonnage of fishing vessels shall be such as may be ascertained in accordance with rules made for the ascertainment of tonnage under Part II except that in the case of a power driven trawler such tonnage shall be her gross tonnage.

433. **Registration of fishing vessels.—**(1) Every fishing vessel to which this Chapter applies shall be registered in accordance with the provisions of this section.

(2) A fishing vessel registered at any time before the commencement of this Chapter at any port in Pakistan under any law for the time being in force shall, for a period of one year from such commencement or for such further period as may be specified in this behalf by the Federal Government, be required to be registered under this Chapter and be recognised as a fishing vessel registered in Pakistan and, if she is not registered under this Chapter within such period, shall be liable to be forfeited to the Federal government.

(3) The owner of every fishing vessel shall make an application in the prescribed form to the Registrar for the grant to him of a certificate of registry in respect of the vessel, and shall cause the tonnage of the vessel to be ascertained in the prescribed manner.

(4) The registrar, to be called the fishing vessel's registry, may make such inquiry as he thinks fit with respect to the particulars contained in the application, and shall enter in a register, the following particulars in respect of the vessel, namely:—

(a) the name of the vessel, the place where she was built, and the port to which she belongs;

(b) her tonnage ascertained;

(c) type of engines;

(d) the name, occupation and address of the owner;

(e) the letter and number assigned to the vessel;

(f) the mortgages, if any, effected by the owner in respect of the vessel; and

(g) such other particulars as may be prescribed.

(5) After the particulars in respect of the vessel have been entered in the fishing vessel's register under sub-section (4), the Registrar shall grant to the applicant a certificate of registry in the prescribed form on payment of a fee according to such scale as may be prescribed having regard to the tonnage of the vessel.

(6) A fishing vessel which is required to be registered under this Chapter but is not so registered shall be detained by the Principal Officer, Surveyor or a officer of Customs until the certificate of registry is produced by the owner or any other person in charge of the vessel.

434. **Effect of registration of fishing vessels.—(**1) In all proceedings under this Ordinance against the owner or skipper of, or any person belonging to, any vessel entered in the fishing vessel's register, or for the recovery of damages for injury done to such vessel, the register shall be conclusive evidence that the person entered there in at any date as owner of the vessel was at that date the owner thereof, and that the vessel is a Pakistani sea going fishing vessel.

(2) This section shall not prevent any proceedings being instituted against any person not so entered who is beneficially interested in the vessel nor shall it affect the rights of the owners among themselves, if there be more than one owner, or the rights of any owner entered in the register against any person not so entered who is beneficially interested in the vessel.

(3) Save as aforesaid, entry in the fishing vessel's register shall not confer, take away, or affect any title to, or interest in, any such vessel.

435. **Particulars relating to fishing vessels to be painted.—**(1) The owner of a vessel registered under section 433 shall paint or cause to be painted permanently in the prescribed manner on some conspicuous part of the vessel, the name by which the vessel has been registered, the letter

and number assigned by the registrar, and the port to which she belongs, and shall ensure that the vessel remains so painted.

(2) If the owner contravenes any of the provisions of sub-section (1), he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

436. **Change of name.—**A change of name of a fishing vessel registered under section 433 shall not be made except in accordance with the rules made for change of name under Part II, and when so effected, shall be entered in the fishing vessel's register.

437. **Change of ownership.—**(1) No person shall transfer or acquire any fishing vessel registered under this Chapter or any interest herein without the previous approval in writing of the Federal Government or an officer authorized by it in this behalf; and any transaction effected in contravention of this section shall be void and unenforceable.

(2) Every change of ownership shall be reported, jointly by the registered owner and the new owner, to the registrar in the prescribed form, and the registrar shall make such inquiry as he thinks fit with respect to the change of ownership, and shall thereupon enter the name of the new owner in the fishing vessel's register and endorse the certificate of registry accordingly.

(3) Whoever contravenes any of the provisions of this section, shall, for each offence, be liable to a fine which may extend to fine thousand rupees.

438. **Mortgages of fishing vessels.—**(1) Every mortgage of a fishing vessel or of any interest therein effected after the commencement of this Chapter shall be registered with the registrar.

(2) Every mortgage of a fishing vessel or any interest therein effected before the commencement of this Chapter shall, if subsisting at such commencement, be registered with the registrar within six months thereof unless it is earlier discharged.

(3) The registrar shall enter every such mortgage in the fishing vessel's register in the order in which it is registered with him.

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(4) If there are more mortgages than one recorded in respect of the same fishing vessel or interest therein the mortgages shall, notwithstanding any express, implied or constructive notice, have priority according to the date on which each mortgage is registered with the registrar and not according to the date of each mortgage itself:

Provided that nothing contained in this sub-section shall affect the relative priorities as they existed immediately before the commencement of this Ordinance as between mortgages of the same vessel or interest therein effected before such commencement which are registered in accordance with the provisions of sub-section (2).

439. **Registration of alterations.—**(1) When a fishing vessel is so altered as not to correspond with the particulars relating to her entered in the certificate of registry, the owner of such vessel shall make a report of such alteration to the registrar of the port where the vessel is registered, and the registrar shall either cause the alteration to be registered or direct that the vessel be registered a new, in accordance with such rules as may be made in this behalf.

(2) If the owner fails to comply with the provisions of this section, he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

440. **Transfer of registry.—**The registry of a fishing vessel may be transferred from one port to another in Pakistan on the application of the owner of the vessel, in accordance with such rules as may be made in this behalf.

441. **Entries in register relating to vessel lost, etc; to stand closed.—**(1) If a fishing vessel is lost, destroyed or rendered permanently unfit for service, the owner of such vessel shall, with the least practicable delay, report the fact to the registrar of the port where the vessel is registered and also forward to him along with the report the certificate of registry in respect of the vessel; and thereupon the registrar shall make an entry to that effect in the fishing vessel's register and upon the making of such entry the entries in the register relating to the registration of the vessel shall be considered as closed except so far as they relate to any unsatisfied mortgage entered therein.

(2) If the owner fails to comply with any of the provisions of this section, he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

442. **Certificate of inspection.—**(1) No fishing vessel of twelve meters in length and over shall ply or proceed to sea unless a certificate of inspection applicable to the intended voyage is in force.

(2) A certificate of inspection in respect of fishing vessel shall specify :—

(a) the name and tonnage of the vessel;

(b) the name, occupation and address of the owner;

(c) the name of the skipper and engine driver;

(d) the type of engine;

(e) the maximum number of crew that may be carried;

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(f) the limits within which the vessel may be used for purposes of fishing;

(g) the particulars of life saving and fire appliances, lights and shapes, and the means of making fog and distress signals carried on board; and

(h) that her hull, machinery and equipment are in good condition:

Provided that where in respect of a vessel a fishing vessel safety certificate has been issued under section 443 the particulars in clause (g) need not be specified.

(3) A certificate of inspection shall be in force from the date of its issue for two years or for such shorter period as may be specified therein.

(4) Whereat at any time after the issue of a certificate of inspection in respect of a fishing vessel, the Federal Government has reason to believe that the vessel is not fit to ply or proceed to sea, or that the vessel has undergone material alteration or has met with an

accident, it may, after giving the owner an opportunity of making a representation, cancel such certificate.

(5) A fresh certificate of inspection shall not be issued until the requirements of section 439 have been satisfied and the vessel has been inspected and the authority making the inspection is satisfied that the vessel is fit to ply or proceed to sea.

443. **Fishing vessel safety certificate and exemption certificate.—**(1) Where in respect of a fishing vessel of twenty four meters in length and over, including vessels also processing their catch, the Federal Government is satisfied that the vessel has been surveyed in the prescribed manner, it may cause a fishing vessel safety certificate to be issued in respect of the vessel.

(2) Where in respect of any such ship referred to in sub-section (1) an exemption is granted to vessel as per rules made under section 449 the Federal Government may cause a fishing vessel exemption certificate to be issued in addition to the certificate prescribed in sub-section (1).

(3) The fishing vessel safety certificate and the fishing vessel exemption certificate shall be in the prescribed form.

(4) A fishing vessel safety certificate shall be in force for five years from the date of its issue and shall not be extended for more than one year subject to the periodical and intermediate surveys as required by the rules made under section 449.

(5) A fishing vessel exemption certificate shall not be valid for a period longer than the period of the fishing vessel safety certificate.

444. **Port clearance not to be given.—**No officer of customs shall grant a port clearance to any fishing vessel until after the production of certificate of inspection, if applicable and also the fishing vessel safety certificate or, as the case may be, fishing vessel exemption certificate in respect of a fishing vessel of twenty-four meters in length and over.

445. **Fraudulent use of certificate of registry, certificate of inspection or safety certificate, etc.—**(1) No person shall use or attempt to use the certificate of registry, the certificate of inspection, the safety certificate, or, as the case may be, the exemption certificate granted in respect of a fishing vessel for any purpose other than the lawful navigation of the vessel.

(2) No person shall use or attempt to use for the navigation of a fishing vessel a certificate of registry, a certificate of inspection or a fishing vessel safety certificate, or as the case may be, a fishing vessel exemption certificate not granted in respect of that vessel.

(3) No person who has in his possession or under his control the certificate of registry or the certificate of inspection of a fishing vessel or a fishing vessel safety certificate, or as the case may be, fishing vessel exemption certificate shall refuse or fail without reasonable cause to deliver such certificate on demand to the owner of the vessel.

(4) If any person contravenes any of the provisions of this section, he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

446. **Life saving appliances, etc.—**Every fishing vessel shall be provided with such life saving and fire appliances as may be required by rules made for the provisions of such appliances

under Part VI, and shall be equipped with lights and shapes and the means of making fog and distress signals in accordance with the collision regulations.

447. **Skippers and engine drivers to be duly certificated.—**(1) No fishing vessel of a gross tonnage of twenty-five or upwards shall proceed to sea unless the skipper and engine driver is duly certificated by the Federal Government, nor shall any person not so certificated accept any such employment in respect of any such vessel.

(2) The Federal Government may make rules providing for—

(a) the manner in which and the conditions upon which such certificates shall be granted ;

(b) the suspension and cancellation of such certificates ; and

(c) the inquiries and investigation into the conduct of the holders of such certificates.

(3) Any person who—

(a) having been engaged as a skipper or engine driver, goes to sea as such without being duly certificated, or

(b) employs a person in contravention of sub-section (1) without ascertaining that the person is duly certificated, shall for each offence, be liable to a fine which may extend to five thousand rupees.

448. **Statement relating to crew to be maintained.—**(1) Every owner or skipper of a sea-going fishing vessel shall maintain or cause to be maintained in the prescribed form a statement of the crew of the vessel.

(2) Every change of crew of the vessel shall be entered in the statement maintained under sub-section (1).

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(3) A copy of such statement and of every change therein shall be communicated as soon as possible to the registrar at the port where the vessel is registered.

(4) If the owner or skipper fails to comply with any of the provisions of this section, he shall for each offence, be liable to a fine which may extend to five thousand rupees.

449. **Power to make rules.—**(1) The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of this Chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the form in which applications for certificates of registry shall be made and the particulars which such applications should contain ;

(b) the form in which certificate of registry and certificates of inspection may be issued ;

(c) the manner in which fishing vessels shall be surveyed including their periodical and the intermediate surveys ;

(d) the form and the manner in which fishing vessel safety certificate and the fishing vessel exemption certificate are to be issued ;

(e) the issue of duplicate copies of certificates of registry, certificates of inspection, fishing vessel safety certificate and fishing vessel exemption certificate when the originals are destroyed, lost, mislaid, mutilated or defaced ;

(f) the manner in which and the time within which, reports for the registration of alterations in the certificates of registry shall be made, the endorsements of the particulars of alteration on such certificates, the grant of provisional certificates where vessels are directed to be registered anew, the period for which provisional certificates shall be valid and all other matters ancillary to the registration of alterations ;

(g) the form and manner in which applications for the transfer of registry from one port to another in Pakistan shall be made, and the procedure to be followed by the registrar in connection with such transfer ;

(h) the form and manner in which change of ownership is to be reported, and the procedure to be followed in connection with such change ;

(i) the construction, equipment, machinery and other matters relating to the safety of the vessels ;

(j) the fees which may be levied for the issue or re-issue of certificate of registry or certificate of inspection and for all purposes of this Chapter and the minimum in which such fees may be recovered ; and

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(k) any other matter which is to be or may be prescribed under this Chapter.

CHAPTER 33.—SAILING VESSELS

450**. Application of Chapter.—**Save as otherwise provided, this Chapter applies to every sea-going sailing vessel owned by a citizen of Pakistan or a company which fulfils the conditions set out in section 13.

451. **Decision of question whether a vessel is a sailing vessel.—**Any question as to whether or not a vessel is a sailing vessel for the purposes of this Chapter shall be referred to the Federal Government whose decision there-on shall be final.

452. **Certificate of registry.—**(1) Every sailing vessel shall be registered in accordance with the provisions of this section

(2) A sailing vessel registered at any time before the commencement of this Chapter at any port in Pakistan under any law for the time being in force shall, for a period of one year from such commencement or for such further period as may be specified in this behalf by the Federal Government, be deemed to have been registered under this Chapter and be recognised as a sailing vessel registered in Pakistan and if she is not re-registered under this Chapter within such period shall be liable to be forfeited to the Federal Government.

(3) The owner of every sailing vessel shall make an application in the prescribed form to the registrar for the grant to him of a certificate of registry in respect of the vessel, and shall cause the tonnage of the vessel to be ascertained in the prescribed manner.

(4) The registrar may make such inquiry as he thinks fit with respect to the particulars contained in such application and shall enter in a register, hereinafter referred to as called the sailing vessel's register, the following particulars in respect of the vessel, namely:—

(a) the name of the sailing vessel, place where she was built and the port to which she belongs ;

(b) the rig, type and tonnage of the vessel ;

(c) the name, occupation and address of the owner ;

(d) the number assigned to the vessel ;

(e) the mortgages, if any, effected by the owner in respect of the vessel ; and

(f) such other particulars are as my be prescribed.

(5) After the particulars in respect of the vessel have been entered in the sailing vessel's register under sub-section (4), the registrar shall grant to the applicant a certificate of registry in the prescribed form on payment of a fee according to such scale as may be prescribed having regard to the tonnage of the vessel.

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(6) A sailing vessel which is required to be registered under this Chapter but is not so registered shall be detained by the Principal Officer, surveyor or officer of Customs until the certificate of registry is produced.

453. **Change of name of sailing vessel.—** A change of name of a sailing vessel registered under section 452 shall not be made except in accordance with the rules made in this behalf.

454. **Prevention of overloading or overcrowding —**(1) The Federal Government may, by notification in the official Gazette, make rules to regulate the carriage of cargo or passengers in sailing vessels and the protection of life and property on board such vessels.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the assignment of freeboard to sailing vessels ;

(b) the marking of such free board on such vessels and the maintenance of such markings ;

(c) the survey of the space allotted to passengers on board such vessels ; and

(d) the scale and type of accommodation to be provided for each passenger.

(3) Any sailing vessel attempting to ply or proceed to sea without free board markings or any sailing vessel which has been so loaded as to submerge such markings may be detained by the Principal Officer, surveyor or officer of Customs until free board makings are made in accordance with the rules made under sub-section (1) or the vessel is so loaded that such markings are not submerged.

(4) Nothing in this section relating to survey of spaces allotted to passengers or the scale or type of accommodation to be provided for each passenger shall apply to any sailing vessel which has been surveyed under Part V, nor shall anything in this section relating to free board apply to any sailing vessel in respect of which a load line has been assigned under Part VI.

(5) If any sailing vessel arrives at a port or place in Pakistan with a number of passengers in excess of the number which the vessel is certified to carry, or arrives at such port or place with the free board markings submerged, the owner and *nakhuda* shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

455. **Certificate of inspection.—**(1) No sailing vessel shall ply or proceed to sea unless a certificate of inspection applicable to the intended voyage is in force.

(2) A certificate of inspection in respect of a sailing vessel shall specify—

(a) the name and tonnage of the vessel ;

(b) the names of the owner and *nakhuda* of the vessel ;

(c) the maximum number of the crew and the maximum number of passengers that may be carried ;

(d) the limits within which the vessel may be used for purposes of trading ;

(e) the particulars of the free board assigned to the vessel;

(f) the particulars of life saving and fire appliances, lights, shapes and means of making fog and distress signals carried on board ; and shall contain a statement to the effect that her hull, rigging and equipment, including auxiliary machinery, if any, are in good condition.

(3) A certificate of inspection shall be in force for two years from the date of its issue or for such shorter period as tray be specified therein:

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Provided that where a sailing vessel is on a voyage outside Pakistan at the time of expiry of the certificate, the certificate shall continue to be valid until her first arrival at a port or place in Pakistan after the expiry of such period.

(4) No officer of Customs shall grant a port clearance until after the production by the owner or *nakhuda* there of, of a certificate of inspection in respect of the vessel.

(5) Where at any time after the issue of a certificate of inspection in respect of a sailing vessel, the Federal Government has reason to believe that the vessel is not fit to ply or proceed to sea, it may, after giving the owner an opportunity of making a representation, cancel such certificate.

(6) Where at any time after the issue of a certificate of inspection a sailing vessel has undergone material alteration or has met with an accident or, where the certificate of inspection of a sailing vessel has been cancelled under sub-section (5) and an application is made for the re-issue of such certificate, the registrar may, before re-issuing the certificate or issuing a fresh certificate, as the case may be, cause such vessel to be inspected; and if the authority inspecting the vessel reports that she is not fit to ply or proceed to sea or that her hull, rigging and equipment, including auxiliary machinery, if any, are defective, such certificate shall not be re-issued or issued until the vessel is, in the opinion of such authority, fit to ply or proceed to sea or the defect is rectified to the satisfaction of such authority.

456. **Inquiry into jettisoning of cargo.—**(1) If any owner or *nakhuda* of a sailing vessel in the course of her voyage has jettisoned or claims to have jettisoned the whole or any part of the cargo of the vessel on account of abnormal weather conditions or for any other reason, he shall, immediately after arrival of the vessel at any port or place in Pakistan, give notice of such jettisoning to the Principal Officer at such port, or, where there is no such officer, to such other officer as may be appointed by the Federal Government in this behalf ; and such notice shall contain full particulars of the cargo jettisoned and the circumstances under which such jettisoning took place.

(2) When any such officer receives notice under sub-section (1) or has reason to believe that the cargo of any sailing vessel in his port has been jettisoned, he shall forthwith report in writing to the Federal Government the information he has received and may proceed to make an inquiry into the matter.

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457. **Foreign sailing vessels not to engage in coasting trade without permission—**(1) A sailing vessel not owned by a citizen of Pakistan or a company which fulfils the conditions set out in section 13 shall not engage in the coasting trade of Pakistan without the previous permission in writing of the Federal Government.

(2) The Federal Government may, when granting such permission, impose such terms and conditions as it thinks fit and may require the owner or other person in charge of the vessel to deposit such amount as it thinks necessary for the due fulfillment of such terms and conditions.

(3) No Officer of Customs shall grant a port clearance to a sailing vessel not registered under this Chapter which engages or attempts to engage in the coasting trade of Pakistan until after the production by the owner or person in charge thereof of the permission under sub-section (1).

458. **Detention of overloaded foreign sailing vessels.—**(1) The provisions of sub-section (5) of section 454 shall apply to any sailing vessel registered in any country other than Pakistan which arrives in a port or place in Pakistan in an overloaded condition.

(2) A sailing vessel shall be deemed to be in an over-loaded condition for the purposes of this section—

(a) where the vessel is loaded beyond the limit specified in any certificate issued in the country in which she is registered ; or

(b) in case where no such certificate has been issued in respect of the vessel where the actual free board of the vessel is less than the free board which would have been assigned to her had she been registered under this Chapter.

(3) Any such vessel which is in an overloaded condition and is about to proceed from a port or place in Pakistan may be detained until she ceases to be in an overloaded condition; but nothing herein contained shall affect the liability of the person in charge of the vessel in respect of such overloading under any other provision of this Ordinance.

459. **Application to sailing vessels of certain provisions relating to ships and fishing vessels.** —(1) The provisions of sections 427, 437, 438, 439, 440, 441, 445, 446, and 448 shall, *mutatis mutandis*, apply to sailing vessels as they apply to fishing vessels.

(2) The Federal Government may, by notification in official Gazette, direct that any other provisions of this Ordinance which do not expressly apply to sailing vessels shall also apply to such vessels subject to such conditions, exceptions and modifications, if any, as may be specified in the notification.

460. **Powers to make rules respecting sailing vessels.—**(1) The Federal Government may, be notification in the official Gazette, make rules to carry out the purposes of this Chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may, besides providing for all or any of the matters specified in section 449 in so far as such matters relate to sailing vessels, provide for all or any of the following matters, namely:—

(a) the manner in which the tonnage of sailing vessel shall be ascertained ;

(b) the manner in which free board is to be assigned to sailing vessels and the free board markings are to be made;

(c) the form and manner in which applications for the change of name of sailing vessels shall be made and the procedure to be followed by the registrar in connection with such change ;

(d) the criteria by which sailing vessels may be classified for the purpose of determining the limits within which they may be used for purposes of trading;

(e) the survey of space provided for passengers of sailing vessels and the scale and type of accommodation to be provided for such passengers ; and

(f) any other matter which is to be or may be prescribed under this Chapter.

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PART X.— NUCLEAR SHIPS

CHAPTER 34.—NUCLEAR SHIPS

461. **Application of Ordinance to nuclear ships.—**(1) This Part applies only to nuclear ships.

(2) Notwithstanding anything contained in this Ordinance, a nuclear ship shall not be required to obtain or produce any certificate referred to in sub-clauses (i) to (xiii) or clause (36) of section 2 or, as the case may be, any like valid safety convention certificate.

(3) The Federal Government may, by notification in the official Gazette, direct that any of the provisions of this Ordinance (other than the provisions of this Part and the provisions of section 605) specified in the notification.

(a) Shall not apply to nuclear ships; or

(b) shall apply to nuclear ships, only with such exceptions, modifications and adoptations as may be specified in the notification.

462. **Nuclear passenger ship safety certificates and nuclear cargo ship safety certificates.—**(1) If in respect of any Pakistani nuclear passenger or cargo ship the Federal Government is satisfied that the ship has been surveyed in accordance with this Ordinance and has been inspected by a person appointed in this behalf by the Federal Government and has complied with such special requirement, if any, as that person has, after such inspections, specified, the Federal Government may issue—

(a) in the case of a passenger ship, a nuclear passenger ship safety certificate; and

(b) in the case of a cargo ship, a nuclear cargo ship safety certificate.

(2) A certificate issued under sub-section (1) shall be in force for a period of twelve months from the date of issue or for such shorter period as may be specified in the certificate.

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463. **Prohibition of proceeding to sea without certificates—(**1) No Pakistani nuclear ship shall proceed on a voyage from port or place in Pakistan to any port or place outside Pakistan unless there is in force in respect of the ship.

(a) a nuclear passenger ship safety certificate, if she is passenger ship; and

(b) a nuclear cargo ship safety certificate, of she is a cargo ship.

(2) The master of a ship to which this section applies shall produce to the officer of Customs from whom a port clearance for the ship is demanded the certificate required by sub-section (1) when the ship proceeds to sea and the port clearance shall not be granted and the ship may be detained until the said certificate is so produced.

(3) If a Pakistani nuclear ship proceeds or attempts to proceed to sea in contravention of sub-section (1) the master or owner shall, for each offence, be liable to a fine which may extend to one hundred thousand rupees.

464. **Safety assessment and operating manual.—**(1) Every Pakistani nuclear ship shall have on board a safety assessment and an operating manual in such form and containing such particulars and approved by such authority as may be prescribed.

(2) The safety assessment and the operating manual shall be prepared, maintained and kept up to date in such manner as may be prescribed.

(3) if a Pakistani nuclear ship fails to comply with sub-section (1) the master, owner or agent shall, for each offence, be liable to a fine which may extend to one hundred thousand rupees.

465. **Foreign nuclear ships to give advance notice of arrival.—**(1) No nuclear ship, other than a Pakistani ship, shall enter the territorial waters of Pakistan unless the master, owner or agent thereof has given such advance notice of the ship's intended arrival in Pakistan as may be prescribed, to such authority as may be specified by the Federal Government, and has forwarded along with the notice a true copy of the ship's safety assessment to that authority.

(2) If on the examination and evaluation of the ship's safety assessment the authority referred to in sub-section (1) is of the opinion that the entry of the ship will involve unreasonable radiation and other hazards to the crew, passengers, members of the public, waterways, food or water resources, he may direct the nuclear ship not to enter the territorial waters of Pakistan and the ship shall comply with such direction.

(3) If a nuclear ship other than a Pakistani ship enters the territorial waters of Pakistan in contravention of this section the master shall, for each offence, be liable to a fine which may extend to one hundred thousand rupees.

466. **Control on arrival of nuclear ship.—**(1) The master of every nuclear ship shall, on arrival at a port in Pakistan, give notice of the ship's arrival in the prescribed form to such authority as the Federal Government may specify in this behalf.

(2) Any person authorised in this behalf (herein-after referred to as the authorised person), by general or special order of the Federal Government, may go on board such ship for the purpose of verifying that she has on board a valid nuclear passenger ship safety certificate or, as the case may be, nuclear cargo ship safety certificate and for the purpose of satisfying himself after examining the safety assessment and operating manual and such other things as he deems fit that there are no unreasonable radiation or other hazards to the crew, passengers, members of the public, waterways, food or water resources.

(3) If the authorized person is satisfied after such examining that there are no unreasonable radiation or other hazards to the crew, passengers, members of the public, waterways, food or water resources, he may issue a certificate to that effect.

(4) If the master of a nuclear ship fails to give notice required by sub-section (1) he shall, for each offence, be liable to a fine which may extend to fifty thousand rupees.

467**. Notice of accidents to nuclear ships.—**(1) Where a Pakistani nuclear ship meets with an accident and such accident is likely to lead to environmental hazards, the master of the ship shall forth with give notice of the accident.—

(a) to such officer or authority as may be specified in this behalf by the Federal

Government; and

(b) if the ship is in, or intends to enter, the territorial waters of a foreign State, also the appropriate Government authority of the State.

(2) Where a nuclear ship, other than a Pakistani ship, meets with an accident of the nature specified in sub-section (1), while she is in the territorial waters of, or at a port, in Pakistan the master of the ship shall forthwith give notice of the accident to the officer or authority specified under clause (a) of sub-section (1).

(3) On receipt of a notice under sub-section (1) or sub-section (2), the officer or authority, specified under clause (a) of sub-sections (1), shall issue such directions as may be deemed necessary and expedient in the circumstances of the case and investigate into the causes of the accident in such manner as may be prescribed.

(4) A copy of the directions issued under sub-section (3) and a report of the findings of the investigation shall be sent to the Federal Government within such time as may be prescribed.

(5) Where a nuclear ship other than a Pakistani ship meets with an accident of the nature specified in sub-section (1) at any port or place outside Pakistan and intends to enter the territorial waters of Pakistan in a damaged condition, the master of such ship shall give notice of the nature of the accident and the condition of the ship in such form as may be prescribed to the officer or authority specified under clause (a) of sub-section (1) and shall comply with such directions as that officer or authority may give.

(6) If the master of a nuclear ship fails to give the notice required by sub-section (1) or (5) or fails to comply with any directions issued under such sub-sections he shall, for each offence, be liable to a fine which may extend to fifty thousand rupees.

(7) The provisions of this section are in addition to and not in derogation of the provisions of Part XI of this Ordinance.

468. **Application of certain section to or in relation to certain certificates under section 462.—**The provisions of section 263 to 266 (inclusive) shall, so far as may be, apply to and in relation to every certificate issued by the Federal Government under section 462 in the same manner as they apply to and in relation to a certificate of survey.

469. **Power to make rules.—**(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this part.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters namely:—

(a) the design construction and standards of inspection and assembly of the react-or installations of nuclear ships;

(b) the standards of safety of nuclear ships;

(c) the manner of survey of nuclear ships;

(d) the forms in which certificates under this Part may be issued;

(e) the form and mariner in which the safety assessment and operating manual of a nuclear ship are to be prepared, maintained and kept up to date and the particulars to be contained therein;

(f) the form of notices under this Part and the time when such notices shall be given;

(g) the manner in which investigations may be made into causes of accidents to a nuclear ship;

(h) the special precautions to be taken against unreasonable radiation or other nuclear hazards to the crew, passengers and other persons, to waterways and to food and water resources;

(i) the manner in which radio-active waste from nuclear ships is stowed posed of;

(j) the manner in which the reactor fuelling defuelling and refuelling and maintenance of nuclear ships are to be carried out;

(k) the special training for and qualifications of master, officers and seamen of nuclear ships;

(l) the special requirements relating to approach, entry into, stay in or departure from, a Pakistani port of a nuclear ship;

(m) the procedure to be followed for determining the operational conditions of a nuclear ship;

(n) the protection and closure of the reactor installation of nuclear ships in the case of a collision, grounding, fire, leakage of radio-active material or other accident;

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(o) the fees to be charged for any inspection survey or certificate under this Part; and

(p) any other matter which has to be or may be prescribed.

PART XI.—INQUIRIES AND INVESTIGATIONS

CHAPTER 35.—SHIPPING CASUALTIES

470. **Shipping casualties and report thereof.—**(1) For the purpose of inquiries and investigations under this Part, a shipping casualty shall be deemed to occur when-

(a) on or near the coasts of Pakistan including the territorial waters or in the Pakistan exclusive zone thereof, any ship is lost, abandoned, stranded or materially damaged;

(b) any ship causes loss or material damage to any other ship on or near such coasts, or within such waters;

(c) any loss of life ensues by reason of any casualty happening to or on board any ship on or near those coasts or within such waters;

(d) in any place, any such loss, abandonment, stranding, material damage or casualty occurs to, or on board of, any Pakistani ship, and any competent witness thereof is found in Pakistan; or

(e) any Pakistani ship is lost or is supposed to have been lost, and any evidence is obtainable in Pakistan as to the circumstances under which she proceeded to sea or was last heard of.

(2) In the cases mentioned in clauses (a), (b) and (c) of sub-section (1), the master, pilot, harbour master or other person in charge of the ship, or (where two or more ships are concerned) in charge of each ship, at the time of shipping casualty, shall give immediate notice of the shipping casualty to the officer appointed in this behalf by the Federal Government and if such offcer is not the Principal Officer himself, he shall inform the nearest Principal Officer of the shipping casualty.

(3) In the case mentioned in clause (d) of sub-section (1) where the master of the ship concerned, or (except in the case of a loss) where the ship concerned proceeds to any place in Pakistan from the place where the shipping casualty has occurred, the master of the ship shall, on arriving in Pakistan, give immediate notice of the shipping casualty to the nearest Principal Officer.

(4) Any person bound to give notice under this section and wilfully failing to give the same shall be liable to a fine which may extend to ten thousand rupees.

471. **Preliminary inquiry into shipping casualties.—(**1) When ever any Principal Officer receives, by notice as aforesaid or otherwise, credible information that a shipping casualty has occurred, he shall forthwith communicate in writing the information to the Federal Government and may proceed to make a preliminary inquiry into the casualty.

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(2) Notwithstanding the provisions of sub-section (1) the Federal Government may appoint any person to hold a preliminary inquiry respecting any shipping casualty.

(3) Any person, making an inquiry under this section, may—

(a) go on board any ship and inspect the same or any part thereof, or any of them machinery, boats, equipment or articles on board thereof, to which the provisions of this ordinance apply, without unnecessarily detaining or delaying her from proceeding on any voyage;

(b) enter and inspect any premises the entry or inspection of which appears to him to be necessary for the purpose of the inquiry;

(c) by summons under his hand, require the attendance of all such persons as he thinks fit to call before him and examine for such purpose, and require answers or returns to any inquiries he thinks fit to make;

(d) require and enforce the production of all books, papers or documents which he considers important for such purpose; and

(e) administer oaths, or, in lieu of requiring or administering an oath, require any person examined by him to make and subscribe a declaration of the truth of statements made by him in his examination.

(4) An Officer making a preliminary inquiry under this section shall send a report thereof to the Federal Government or such authority as may be appointed for this purpose by the Federal Government.

472. **Application to Court for a formal inquiry.—**(1) Where in any case it appears to the Federal Government that an inquiry should be made respecting a shipping casualty, whether a preliminary inquiry under section 471 has been held or not, it may direct an officer to make an application to a Court empowered under sub-section (2) to make a formal inquiry into such casualty, and upon the making of such application the Court shall make such inquiry.

(2) Magistrates of the first class specially empowered by the Federal Government shall have jurisdiction to make inquiry into shipping casualties under this Chapter.

(3) The Courts to make any such inquiry shall hold the same with the assistance of one or more assessors of nautical, engineering, or other special skill or knowledge, to be appointed out of a list of persons for the time being approved for the purpose by the Federal Government in such manner as may be prescribed.

(4) Where an inquiry involves or appears or is likely to involve any question as to the cancelling or suspension of the certificate of a master, mate, or engineer, the court shall hold the inquiry with the assistance of not less than two assessors having experience in the merchant service.

473. **Power of Court to inquire into charges against masters, mates and engineers**.—(1) A Court making an inquiry under section 472 may inquire into any charge of incompetency or misconduct arising, in the course of the inquiry, against any master, mate or engineer, as also into any charge of a wrongful act or default on his part and causing the shipping casualty.

(2) In every case in which any such charge, whether of incompetency or misconduct, or of a wrongful act or default, as aforesaid, arises against any master, mate or engineer, in the course of an inquiry, the Court shall, before the commencement of the inquiry, cause to be furnished to him a statement of the case upon which the inquiry has been directed.

474. **Person accused to be heard.—**For the purpose of an inquiry by a Court under this Chapter into any charge against a master, mate or engineer, the Court may summon him to appear, and shall give him full opportunity of snaking a defense either in person or otherwise.

475. **Powers of Courts as to evidence and regulation of proceedings.—**For the purpose of any inquiry under this Chapter, the Court making the inquiry, so far as relates to compelling the attendance and examination of witnesses and the production of documents and the regulations of the proceedings, shall have the same powers as are exercisable by that Court in the exercise of its criminal jurisdiction.

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476. **Assessors.—**(1) The list of persons approved by the Federal Government as assessors for the purpose of formal inquiry into shipping casualties shall remain in force for three years only, but persons whose names are on any such list may be approved for any subsequent list.

(2) The assessors shall attend during the inquiry and deliver their opinions in writing, to be recorded on the proceedings, but the exercise of all powers conferred on the Court by this Chapter or any other law for the time being in force shall rest with the Court.

(3) The Federal Government may amend the list so to add any name thereto or omit any name therefrom.

477. **Power to arrest witnesses and enter ships, etc.—**(1) If any Court making an inquiry under this Chapter thinks it necessary for obtaining evidence that any person should be arrested, it may issue a warrant for his arrest, and may, for the purpose of effecting the arrest, authorize any officer, subject, nevertheless, to any general or special instructions from the Federal Government, to enter any vessel, and any officer so authorised may, for the purpose of enforcing the entry, call to his aid any officer of police or Customs or any other person.

(2) Where any officer of police, Customs or any other person is called under sub-section (1), it shall be the duty of such officer or person to render all such assistance as may be required by the Court.

478. **Power to commit for trial and bind over making the witnesses.—**Whenever, in the course of any such inquiry, it appears that any person has committed within the jurisdiction of any Court in Pakistan an offence punishable under any law in force in Pakistan, the Court making the inquiry may, subject to such rules consistent with this Ordinance as the High Court may, from time to time, make, cause him to be arrested, or commit him, or hold him to bail, to take his trial before the proper Court, and may bind over any person to give evidence at the trial, and may, for the purposes of this section exercise all its powers as a criminal court.

479. **Report by Court to Federal Government.—**(1) The Court shall, in the case of all investigations or inquiries under this Chapter, transmit to the Federal Government a full report of the conclusions at which it has arrived together with the evidence; and may make such recommendations as it may deem fit in regard to the matters inquired into including a recommendation for the cancellation or suspension of any certificate of competency.

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(2) Where the inquiry affects a master, mate or engineer of a ship other than a Pakistani ship who holds a certificate under the law of a country other than Pakistan, the Federal Government may transmit a copy of the report together with the evidence to the proper authority in that country.

480. **Investigation into causes of explosion or fire on board ship, etc.—**(1) Whenever any explosion or fire occurs on board any ship on or near the coasts of Pakistan including the territorial waters thereof or anywhere else on board any Pakistani ship, the Federal Government may direct that an investigation into the causes of explosion or fire be made by such person or persons as it thinks fit.

(2) The person or persons referred to in sub-section (1) may go on board the ship on which the explosion or fire has occurred with all necessary workmen and labourers and remove any portion of the ship, or of the machinery thereof, for the purpose of investigation, and shall report to the

Federal Government or the person duly appointed by it, as the case may be, what in his, or their, opinion was the cause of the explosion or fire.

481. **Power of Federal Government to direct inquiry into charges of incompeteney or misconduct.—**(1) If the Federal Government has reason to believe that there are grounds for charging any master, mate or engineer with incompetency, misconduct, drunkenness or tyranny, otherwise than in the course of an inquiry under section 472, the Federal Government—

(a) if the master, mate or engineer holds a certificate under this Ordinance, in any case; and.

(b) if the master, mate or engineer holds a certificate under the law of a country other than Pakistan, in any case where the incompetency or misconduct has occurred on board a Pakistani ship, may transmit a statement of the case to any Court having jurisdiction under section 472 which is at or nearest to the place, where it may be convenient for the parties and witnesses to attend, and direct that Court to make an inquiry into that charge.

(2) Notwithstanding the provisions of sub-section (1), the Federal Government may, where it considers expedient to do, appoint a person to make an inquiry if it has reason to believe that any master, mate or engineer is, due to incompetency or misconduct, unfit to discharge his duties, or that, in the case of a collision, has failed to render such assistance or information as is required by section 415 and transmit a statement of the case to such person.

(3) Before commencing an inquiry under this section the Court or the person appointed under sub-section (2), shall cause the master, mate or engineer so charged to be furnished with a copy of the statement transmitted by the Federal Government.

(4) Where the inquiry is made by a person appointed under sub-section (2), that person, for the purpose of the inquiry, shall have all such powers as are specified in sub-section (3) of section 471, and shall give a report of the case to the Federal Government:

Provided that no such inquiry shall be made without giving the master, mate or engineer concerned an opportunity of making a representation.

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482. **Provisions of this Chapter to apply to certain other vessels.—**The provisions of this Chapter relating to inquiries shall, *mutatis mutandis*, apply to fishing vessels as they apply to any other ship, and the provisions of clause (b) of sub-section (1) and sub-section (2) of section 470 and sections 471 and 472 shall likewise apply to a ship belonging to the Pakistan Navy, or belonging to the Navy of any other country, where the loss or material damage is caused by such ship, or where such ship is involved in a collision with any ship to which this Ordinance applies on or near the coasts of Pakistan including the territorial waters thereof.

CHAPTER 36.—MARITIME BOARDS

483. **Convening of Maritime Boards outside Pakistan.** Whenever, outside Pakistan—

(a) a complaint is made to a Pakistan consular officer, or a senior officer of any ship of the Pakistan Navy in the vicinity hereinafter referred to as “naval

officer", by the master or any member of the crew of a Pakistani ship, and such complaint appears to the Pakistan consular officer or naval officer, as the case may be, to require immediate inquiry; or

(b) the interests of the-owner of a Pakistani ship or if the cargo thereof appears to a Pakistan consular officer or naval officer, as the case may be, to require such inquiry; or

(c) an allegation of incompetency or misconduct is made to a Pakistan consular officer of navel officer against the master, mate or an engineer of a Pakistani ship; or

(d) any Pakistani ship is lost, abandoned or stranded at or near the place where a Pakistan consular officer or a naval officer may be, or whenever the crew, or part of the crew, of any Pakistani ship which has been lost, abandoned or stranded arrives at that place; or

(e) any loss of life or any serious injury to any person occurred on board a Pakistani ship at or near that place.

The Pakistan consular officer or naval officer, as the case may be, may, in his discretion, convene a Maritime Board to inquire into the said complaint or allegation or the matter affecting the said interest or the cause of the loss, abandonment or the stranding of the ship, or of the loss if life or of the injury to the person.

484. **Constitution and procedure of Maritime Board.—**(1) A Maritime Board shall consist of the officer convening the Board and two other members.

(2) The two other members of the Maritime Board shall be appointed by the officer convening the Maritime Board from among persons conversant with maritime or mercantile affairs.

(3) The Officer convening the Maritime Board shall be the presiding officer thereof.

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(4) A Maritime Board shall, subject to the provisions of this Ordinance, have power to regulate its own procedure.

485. **Decisions of Maritime Boards to be by majority.—**Where there is a difference of opinion among members of the Maritime Board, the decision of the majority of the members shall be the decision of the Board.

486. **Powers of Maritime Boards.—**(1) While making an inquiry under this Chapter, a Maritime Board may exercise all or any of the powers specified in sub-section (3) of section 471, as may be necessary in the circumstances of the case.

(2) A Maritime Board may, after inquiring into and hearing the case—

(a) if it is of opinion that the safety of a Pakistani ship or her cargo or crew, or the interest of the owner of a Pakistani ship or of the owner of the cargo requires it, remove the master and appoint another qualified person to act in his stead;

(b) if it is of opinion that any master, mate or engineer of a Pakistani ship is incompetent or has been guilty of any act of misconduct; or in a case of collision has failed to render such assistance or information as is required by section 413 or that loss, abandonment or stranding of or serious damage to any ship, or loss of life or serious injury to any person, has been caused by the wrongful act or default of any master, mate or engineer of a Pakistani ship, suspend the certificate of that master, mate or engineer for a specified period:

Provided that no such certificate shall be suspended unless the master, mate or engineer concerned has been furnished with a statement of the case in respect of which an inquiry has been ordered, and he has been given an opportunity of making a defence either in person or otherwise—

(c) discharge a seaman from a Pakistani ship and order the wages of any seaman so discharged or any part of those wages to be forfeited;

(d) decide any questions as to wages, fines or forfeitures arising between any of the parties to the proceedings;

(e) direct that any or all of the costs incurred by the master or owner of a Pakistani ship, or on the maintenance of a seaman or apprentice while in prison outside Pakistan, shall be paid out of, and deducted from, the wages of that seaman or apprentice, whether then or subsequently earned;

(f) if it considers such a step expedient, order a survey to be made of any Pakistani ship which is subject of inquiry; and

(g) order the costs of proceedings before it, or any part of those costs, to be paid by any of the parties thereto, and may order any person making a frivolous or unjustified complaint to pay compensation for any loss or delay caused thereby; and any costs or compensation so ordered to be paid by any person shall be paid by that person accordingly, and may be recovered in the same manner in which wages of seamen are recoverable, or may be deducted from the wages due to that person.

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(3) All orders made by a Maritime Board shall, whenever practicable, be entered in the official log-book of the ship which is the subject of inquiry, or of the ship on board whereof the casualty or occurrence or conduct inquired into took place, and be signed by the presiding officer of the Board.

(4) A Maritime Board shall, in the case of every inquiry under this Chapter, transmit to the Federal Government a full report of the conclusions at which it has arrived together with the evidence and any orders passed under this section.

487. **Penalty for obstructing proceedings before Maritime Boards.—**If any person wilfully and without due cause obstructs the conduct of any hearing or inquiry by any Maritime Board he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

488. **Application of Chapter.—**The provisions of this Chapter shall apply to all Pakistani ships, whether registered or deemed to have been registered under this Ordinance, or not so registered, and their owners, masters and crew.

CHAPTER 37.—CANCELLATION AND SUSPENSION OF CERTIFICATES

489. **Power of Federal Government to cancel, suspend, etc. Certificates of master, mate or engineer.—**Any certificate which has been granted by the Federal Government under this Ordinance to any master, mate or engineer may be cancelled, or for a specified period suspended, by the Federal Government in the following cases namely:—

(a) if, on receipt of a report under sub-section (4) of section 471 or under sub-section (4) of section 481 the Federal Government considers cancellation or suspension necessary; or

(b) if, on an inquiry made by any Court, tribunal or other authority for the time being authorised by the legislative authority in any country outside Pakistan, the Court, tribunal or other authority reports that the master, mate or engineer is incompetent or has been guilty of any gross act of misconduct, drunkenness or tyranny, or in a case of collision has failed to render assistance, or to give such information as is referred to in section 415, or that the loss, stranding or abandonment of, or damage to, any ship or loss of life has been caused by his wrongful act or default; or

(c) if the master, mate or engineer is proved to have been convicted —

(i) of any offence under this Ordinance or of any non-bailable offence committed under any other law for the time being in force in Pakistan; or

(ii) of an offence committed outside Pakistan, which if committed in Pakistan, would be a non-bailable offence.

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490. **Delivery of cancelled or suspended certificates.—**(1) A master, mate or engineer whose certificate has been cancelled or suspended by the Federal Government, or has been suspended by a Maritime Board, shall deliver his certificate—

(a) If suspended by a Maritime Board, to that Board on demand;

(b) if not so demanded, or it is cancelled or suspended by the Federal Government, to the Federal Government, or to such officer as the Federal Government may direct.

(2) If a master, mate or engineer fails to comply with this section, he shall, for each offence, be liable to a fine which may extend to five thousand rupees.

491. **Effect of cancellation or suspension of certificate.—**The cancellation or suspension of a certificate by the Federal Government, or the suspension of a certificate by a Maritime Board, shall—

(a) if the certificate was issued under this Ordinance, be effective everywhere and in respect of all ships; and

(b) if the certificate was issued outside Pakistan, be effective—

(i) within Pakistan and the territorial waters of Pakistan in respect of all ships; and

(ii) outside Pakistan, in respect of Pakistani ships only.

492. **Suspended certificates not to be endorsed.—**If the certificate of a master, mate or engineer is suspended under this Part by the Federal Government, or by a Maritime Board, no endorsement shall be made to that effect on the said certificate.

493. **Power of Federal Government to cancel or suspend other certificates.—**(1) Notwithstanding anything contained in this Ordinance, the Federal Government may after making an inquiry, cancel or suspend any certificate granted by it under this Ordinance, if, in its opinion, the holder is, or has become unfit to act in the grade for which the certificate was granted to him:

Provided that no order under this section shall be passed by the Federal Government unless the person concerned has been given an opportunity of making a representation against the order proposed.

(2) The provisions of clause (b) of sub-section (1) and sub-section (2) of section 481 shall apply to certificates cancelled or suspended under this section.

494. **Re-hearing.—**(1) The Federal Government may, either of its own motion or on receipt of an application from any person required by an order under section 486, 489 or section 493 in respect of any case in which an inquiry has been made under this Part, order the case to be re-heard, either generally or as to any part thereof, by any person or persons, or by any Court, specially appointed or empowered for the purpose, and shall, in respect of each case, so order—

(a) if new and important evidence which could not be produced at the inquiry has been discovered; or

(b) if, for any other reason there has, in its opinion, been a miscarriage of justice.

(2) An application under sub-section (1) shall be made in such form, within such time and on payment of such fees, and a case shall be re-heard in such manner as may be prescribed.

(3) The provisions of sub-section (3) of 471, sections 474, 478 and 479 shall, so as far as may be, apply to every case re-heard under this section as if the re-hearing were an inquiry referred to therein.

495. **Power of Federal Government to revoke cancellation, etc.—**(1) The Federal Government may, in any case ordered to be re-heard under section 494 on receipt of the report of re-hearing and in any case not so ordered, at any time, if it thinks the justice of the case so required,—

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(a) revoke any order of cancellation or suspension made by it under section 489 or set aside any order or suspension made by a Maritime Board under clause (b) of subsection (2) of section 486; or

(b) shorten or lengthen the period of suspension ordered by it under section 489 or by a Maritime Board; or

(c) grant, without examination, a new certificate of the same or any lower grade in the case of any certificate cancelled or suspended by it under section 489 or suspended by a Maritime Board under clause (b) of sub-section (2) of section 486

(2) A certificate granted under clause (c) of sub-section (1) shall have the same effect as if it had been granted after examination.

CHAPTER 38.—COURTS OF SURVEY AND SCIENTIFIC REFEREES

496. **Appeal to Court of Survey.—**(1) If a surveyor, authorized to inspect a ship,—

(a) makes a statement in his report of inspection with which the owner or his agent or the master of the ship is dissatisfied; or

(b) gives notice under this Ordinance of any defect in any ship; or

(c) declines to give any certificate under this Ordinance; the owner, master or agent, as the case may be, subject to the provisions of sub-section (2) and of section 500, prefer appeal to a Court of Survey.

(2) Whenever a surveyor inspects any ship, he shall, if the owner, master or agent of the ship so requires, be accompanied on the inspection by some person nominated by the owner, master or agent, as the case may be, and if the person so nominated agrees with the surveyor as to the statement made or the notice given by the suveyor or the refusal by the surveyor to give a certificate, there shall be no appeal to a Court of Survey from that statement, notice or refusal.

497. **Constitution of Court of Survey.**—(1) A Court of Survey for a port shall consist of a Judge, sitting with two assessors.

(2) The "Judge" shall be a District Judge, a Judge of Court of Small Causes, a Magistrate of the first class or other fit person appointed in this behalf by the Federal Government either generally or for any specified case.

(3) The assessors shall be persons of nautical engineering or other special skill or experience.

(4) Subject to the provisions of Part VI as regards ships, other than Pakistani ships, one of the assessors shall be appointed by the Federal Government either generally or for any specified case and the other shall be summoned by the Judge, in the manner prescribed, out of a list of persons prepared by the Federal Government for the purpose from time to time, or, if there is no such list or if it is impracticable to procure the attendance of any person named in such list, shall be appointed by the Judge.

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498. **Powers and procedure of Court of Survey.**—(1) The Judge shall, on receiving notice of an appeal or a reference from the Federal Government, immediately summon the assessors to meet forthwith in the prescribed manner.

(2) The Court of Survey shall hear every case in open Court.

(3) The Judge and each assessor shall, for the purposes of this Ordinance, have the same powers of inspection, and of enforcing the attendance of witnesses and the production of evidence as are by this Ordinance conferred on a detaining officer.

(4) The Judge may appoint any competent person to survey the ship and report thereon to the Court.

(5) The Judge shall have the same powers as the Federal Government has to order the ship to be released or finally detained; but unless one of the assessors concurs in an order for the detention of the ship, the ship shall be released.

(6) The owner and master of the ship and any person appointed by the owner or master and also any person appointed by the Federal Government may attend any inspection or survey made in pursuance of this section.

(7) The Judge shall report the proceedings of the Court in each case to the Federal Government in the manner prescribed, and each assessor shall either sign such report or report to the Federal Government the reasons for his dissent.

499. **Power to make rules.**—(1) The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of the Chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :—

(a) the procedure before a Court of Survey;

(b) the requiring, on an appeal, of security for costs and damages;

(c) the amount and application of fees; and

(d) the ascertainment, in case of dispute, of the proper amount of costs.

500. **Reference in difficult cases to scientific persons.**—(1) If the Federal Government is of opinion that an appeal to a Court of Survey involves a question of construction or design or a scientific difficulty or important principle, it may refer the matter to such one or more out of a list of scientific referees to be from time to time prepared by the Federal Government as may appear to possess the special qualifications necessary for the particular case and may be selected by agreement between a person duly appointed by the Federal Government in this behalf and the appellant, or in default of any such agreement, by the Federal Government; and thereupon the appeal shall be determined by the referee or referees instead of by the Court of Survey.

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(2) The Federal Government, if the appellant in any such appeal so requires and gives security to its satisfaction to pay the costs of, and incidental to, the reference, shall refer such appeal to a referee or referees selected as aforesaid.

(3) The referee or referees shall have the same powers as a Judge of the Court of Survey.

PART XII.— WRECK AND SALVAGE

CHAPTER 39.—WRECK

501. **Receivers of wreck.—**(1) The Federal Government may, by notification in the official Gazette, appoint any person to be receiver of wreck (here in after referred to as the receiver) to receive and take possession of wreck, and to perform such duties connected therewith as are hereinafter mentioned, within such local limits as may be specified in the notification.

(2) A receiver may, by order in writing, direct that all or any of his functions under this Part shall, in such circumstances and subject to such conditions, if any, as may be specified in the order, be discharged by such person as may be so specified, and any person, while discharging any such functions shall be deemed to be a receiver for the purposes of this Ordinance.

502. **Duty of receiver where vessel is in distress.—**(1) Where any vessel is wrecked, stranded or in distress at any place on or near the coasts of Pakistan including the territorial waters thereof, the receiver within the limits of whose jurisdiction the place is situated shall, upon being informed of the same, forthwith proceed there, and upon his arrival shall take command of all persons present and shall assign such duties and give such directions to each person as he thinks fit for the preservation of the vessel and of the lives of persons belonging to the vessel and of its cargo and equipment:

Provided that the receiver shall not interfere between the master and the crew of the vessel in reference to the management thereof unless he is requested to do so by the master.

(2) If any person wilfully disobeys the directions of the receiver he shall be liable to a fine which may extend to five thousand rupees.

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503. **Power of receiver in case of vessel in distress.—**(1) The receiver may, with a view to saving the ship wrecked persons, the vessel, cargo or equipment—

(a) require such persons as he thinks necessary to assist him;

(b) require the master of any vessel near at hand to give such aid with his men or vessel as may be in his power; and

(c) demand the use of any vehicles or an aircraft that may be near at hand.

(2) If any person refuses without reasonable cause to comply with any such requisition or demand, he shall for each offence, be liable to a fine which may extend to ten thousand rupees.

504. **Power to pass over adjoining lands and order removal of the wreck and penalties for non-compliance.—**(1) Whenever a vessel is wrecked, stranded or in distress as aforesaid, all persons may, for the purpose of rendering assistance to the vessel, or of saving the lives

of the ship wrecked persons, or of saving the cargo or equipment of the vessel, unless there is some public road equally convenient, pass and re-pass either with or without vehicles or animals, over any adjoining lands without being subject to interruption by the owner or occupier, so that they do as little damage as possible, and may also, on the like condition, deposit on those lands any cargo or other article recovered from the vessel.

(2) Any damage sustained by an owner or occupier in consequence of the exercise of the rights given by this section, shall be a charge on the vessel, cargo or articles in respect of or by which the damage is occasioned and the amount payable, in respect of the damage shall, in case of dispute, be determined, and shall, in default of payment, be recoverable, in accordance with the provisions of section 165.

(3) If the owner or occupier of any land—

(a) impedes or hinders any person in the exercise of the rights given by this section by locking his gates, or refusing, upon request, to open the same, or otherwise; or

(b) impedes or hinders the deposit of any cargo or other articles recovered from the vessel as aforesaid on the land; or

(c) prevents or endeavors to prevent any such cargo or other article from remaining deposited on the land for a reasonable period until it can be removed to a safe place of deposit; he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

(4) Where—

(a) the receiver determines that salvaging a certain wreck, where due to its location, its salvage and or cleaning of pollution so caused by the wreck is a must; is likely to cost more than the expected proceeds of the wreck, he may order removal of the wreck and cleaning of the pollution at the cost of the owners, insurers, underwriters and local agents as he may deemed fit; or

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(b) a person, persons or a body corporate made responsible by the receiver of wrecks fails to comply with his orders under clause (a) they shall each be punishable with imprisonment which may extend to five years and fine not exceeding the amount likely to be incurred on removal of the wreck and cleaning of the pollution.

505. **Power of receiver to suppress plunder and disorder by force.—**(1) Whenever a vessel is wrecked, stranded or in distress as aforesaid, and any person plunders, creates disorder or obstructs the preservation of the vessel or of the shipwrecked persons or of the cargo or equipment of the vessel, the receiver may take such steps and use such force as he may consider necessary for the supression of any such plundering, disorder or obstruction, and may for that purpose command any person to assist him.

(2) If any person is killed, maimed or hurt by reason of his resisting the receiver or any person acting under the orders of the receiver in the execution of his duties under this Chapter,

neither the receiver nor the person acting under his orders shall be liable to any punishment, or to pay any damages by reason of the person being so killed, maimed or hurt.

506. **Procedure to be observed by persons finding wreck.—**(1) Any person finding and taking possession of any wreck within any local limits for which a receiver has been so appointed, or bringing within such limits any wreck which has been found and taken possession of elsewhere, shall, as soon as practicable,—

(a) if he be the owner thereof, give the receiver notice in writing of the finding thereof and of the marks by which such wreck is distinguished; and

(b) if he be not the owner of such wreck, deliver the same to the receiver of wreck.

(2) Any person who omitting to give notice of the finding of, or to deliver, any wreck to the receiver as required by sub-section (1) shall be liable to a fine which may extend to ten thousand rupees and, in the case of omission to deliver any wreck, shall, in addition to such fine, forfeit all claim to salvage, and pay to the owner of such wreck if the same is claimed, or if the same is unclaimed, to the Federal Government, a penalty not exceeding twice the value of such wreck.

507. **Investigation of certain matters in respect of vessels wrecked.—**(1) Whenever any vessel is wrecked, stranded or in distress as aforesaid, the receiver within the local limits of whose jurisdiction the vessel is wrecked, stranded or in distress may conduct an investigation into all or any of the following matters, namely:—

(a) the name and description of the vessel;

(b) the names of the masters and of the owners of the vessel;

(c) the names of the owners of the cargo;

(d) the ports from and to, which the vessel was bound;

(e) the occasion of wrecking, stranding or distress of the vessel;

(f) the services rendered; and

(g) such other matters or circumstances relating to the vessel, the cargo or the equipment, as the receiver thinks necessary.

(2) The receiver making an investigation under this section shall have such powers as are specified in sub-section (3) of section 471.

(3) A record shall be kept of the investigation made, and the receiver shall send a report to the Federal Government immediately the investigation is concluded.

508. **Penalty for taking wreck at time of casualty.—**(1) Where a vessel is wrecked, stranded, or in distress at any place on or near the coasts of Pakistan including the territorial waters thereof, any cargo or other articles belonging to or separated from the vessel, which may be washed on shore or otherwise post or taken from the vessel shall be delivered to the receiver.

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(2) If any person, whether the owner or not, secrets or keeps possession of any such cargo or article, or refuses to deliver the same to the receiver, or any person authorized by him to demand the same, he shall, for each offence, be liable to a fine which may extend to ten thousand rupees.

(3) The receiver or any person authorized as aforesaid, may take any such cargo or articles by force from the person so refusing to deliver the same.

509. **Taking wreck to foreign port.—**If any person takes into any foreign port any vessel, stranded, derelict, or otherwise in distress, found on or near the coasts of Pakistan including the territorial waters thereof, or any part of the cargo or equipment of the vessel, or anything belonging thereto, or any wreck found within those limits, without the permission in writing of the Federal Government, he shall be liable to a fine which may extend to five hundred thousand rupees.

510. **Notice to be given by receiver.—**The receiver shall, as soon as may be, after taking possession of any wreck, publish a notification in such manner and at such place as the Federal Government may, by general or special order, direct, containing a description of the wreck and the time at which and the place where the same was found.

511. **Wrecks may in certain cases be sold.—**(1) If, after publication of such notification or notice the wreck is unclaimed or if the person claiming the same fails to pay the amount due for salvage and for charges incurred by the receiver in respect thereof, the receiver may sell such wreck in his custody by public auction, if of a perishable nature, forthwith, and if not of a perishable nature, at any period not less than two months after such notification or notice as aforesaid.

(2) Irrespective of the fact whether a casualty on Pakistan coasts and in navigable channels has been declared a wreck or not; if it poses a danger to navigation, the receiver shall cause the owners, agents or underwriters to immediately mark such casualty in a prescribed manner at their own cost and shall also bear all costs of transmission of the information regarding the danger so posed to navigation.

(3) Such casualties or wrecks which in any way impede safe navigation, anchorage or fishing, so determined; shall be caused to be removed within six months of their taking place at the cost of the owners, agents or underwriters of the casualty or wreck; the Federal Government, or a person duly authorised by it in this behalf, shall have the right to confiscate other vessels and properties of the owners, agents or underwriters to meet the costs of removal of the casualty or wreck and in addition to collect suitable fine as may be determined by the Federal Government if removal is delayed beyond the specified time.

(4) Damage caused to other craft, property or personnel due to presence of the casualty or wreck itself; shall be the responsibility of the owners, agents or underwriters of the initial casualty or wreck, unless it is proved to the satisfaction of the Federal Government that all possible care had been exercised to avoid such damage.

512. **Proceeds how applied.—**The proceeds of such sale as referred to in section 511, shall, after defraying all expenses thereof including salvage charges, be held by the receiver for the same purposes arid subject to the same claims, rights and liabilities as set out hereinafter in this Ordinance.

513. **Removal of wreck by harbour or conservancy authority.—**(1) Where any vessel is sunk, stranded, or abandoned in any harbour or tidal water under the control of a harbour or

conservancy authority, or in or near any approach thereto, in such manner, is in the opinion of the authority, to be, or likely to become, an obstruction or danger to navigation or threat to environment and marine life that authority may—

(a) take possession of, and raise, remove, or destroy the whole or any part of the vessel;

(b) light or mark or buoy any such vessel or part until the raising, removal, or destruction thereof;

(c) give information to masters and agents of ships entering, moving within or leaving the port; and

(d) sell, in such manner as it thinks fit, any vessel or part so raised, and also any other property, recovered by it, in the course of exercise of its powers under this section, and out of the proceeds of the sale reimburse itself for the expenses incurred by it in relation thereto and hold the surplus, if any, of the proceeds in trust for the persons entitled thereto.

Provided that a sale shall not, except in the case of property which is of a perishable nature or which would deteriorate in value by delay, be made under this section until at least seven clear days' notice of the intended sale has been given by advertisement in some newspaper circulating in or near the area over which the authority has control:

Provided further that, at any time before any property is sold under this section, the owner thereof shall be entitled to have the same delivered to him on payment to the authority of the fair market value thereof, to be ascertained by agreement between the authority and the owner, or failing agreement by some person to be named for the purpose by the Federal Government whose decision in this regard shall be final and the sum paid to the authority as the value of any property under this proviso shall for the purposes of this section, be deemed to be the proceeds of sale of that property.

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(2) Where any vessel is sunk, stranded or abandoned in the territorial waters or exclusive economic zone beyond the harbour limits, the Federal Government may, if it is of the opinion that the vessel may cause an obstruction or danger to navigation or a threat to environment and or marine life, take measures specified in sub-section (1).

514. **Claims of owners to wrecks.—**(1) The owner of any wreck in the possession of the receiver upon establishing his claim to the same to the satisfaction of the receiver within six months from the time at which the wreck came into the possession of the receiver shall, upon paying the salvage and other charges be entitled to have the wreck, if not sold, or the balance of the proceeds thereof if sold, delivered to him.

(2) Where any articles belonging to or forming part of a vessel other than a Pakistani ship which has been wrecked or belonging to and forming part of the cargo of such vessel are found on or near the coasts of Pakistan or are brought into any port or place in Pakistan, the consular officer of the country in which the vessel is registered or, in the case of cargo, the country to which the owners of the cargo may have belonged shall, in the absence of the owner and of the master or

other agent of the owner, be deemed to be the agent of the owner, with respect to the custody and disposal of the articles.

(3) Where the owner of the wreck does not appear and claim the balance of the proceeds of sale within six months from the date of sale, the said balance shall vest in the Federal Government.

515. **Interfering with wrecked vessel or wreck.—**(1) A person shall not, without the leave of the master, board or endeavour to board any vessel which is wrecked, stranded, or in distress, unless that person is, or acts by command of, the receiver or a person lawfully acting as such and, if he does so, shall be liable to be removed from the vessel or repelled by the master of the vessel by force.

(2) No person shall—

(a) impede or hinder, or endeavour in any way to impede or hinder, the saving of any vessel stranded or in danger of being stranded, or otherwise in distress on or near the coasts of Pakistan including the territorial waters thereof, or of any part of the cargo or equipment of the vessel, or of any wreck;

(b) secret any wreck, or deface or obliterate any marks thereon; or

(c) wrongfully carry away or remove any part of a vessel stranded or in danger of being stranded, or otherwise in distress, on or near such coasts or within those waters, or any part or the cargo of equipment of the vessel, or any wreck.

(3) if any person acts in contravention of this section, he shall, for each offence, be liable to a fine which may extend to ten thousand rupees in addition to any other punishment to which he may otherwise be liable.

516. **Search warrants where wreck is concealed.—**Where a receiver suspects or receives information that any wreck is secreted or is in the possession of some person who is not the owner thereof, or that any wreck is otherwise improperly dealt with, he may apply to the nearest Magistrate for a search warrant, and that Magistrate shall grant such warrant and the receiver, by virtue thereof, may enter any house or other place wherever situated and also any vessel and search for, seize and detain any such wreck there found.

517. **Right of Federal Government to unclaimed wreck.—**The unclaimed wreck found anywhere in Pakistan, except where it has, by law, been granted to any other person, shall vest in the Federal Government.

518. **Notice of unclaimed wreck to be given to persons entitled.—**(1) Where any person is entitled for his own use to unclaimed wreck found in any place within the jurisdiction of a receiver, he shall deliver to the receiver a statement containing the particulars of his title, and an address to which notices may be sent.

(2) When a statement has been so delivered and the title proved to the satisfaction of the receiver, the receiver shall, on taking possession of any wreck found in a place to which the statement refers, send, within forty-eight hours, at the address delivered a description of the wreck and any marks by which it is distinguished.

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519. **Disposal of unclaimed wreck.—**Where no owner establishes a claim to any wreck found in Pakistan and in the possession of a receiver, within six months after it came into his possession, the wreck shall be dealt with as follows, that is to say:

(a) if the wreck is unclaimed by any person who has delivered a statement under section 518 to the receiver and has proved to the satisfaction of the receiver his title to receive unclaimed wreck found in the place where that wreck was found, the wreck, after payment of all expenses, costs, fees, and salvage due in respect thereof, shall be delivered to him; or

(b) if the wreck is not claimed by any such person as aforesaid, the receiver shall sell the same and shall pay to the Federal Government the proceeds of the sale, after deduction therefrom the expenses of the sale, and any other expenses incurred by him, and his fees, and paying there out to the salvors such amount of salvage as the Federal Government may, in each case, or by any general rules, determine.

520. **Disputed title to unclaimed wreck.—**(1) where any dispute arises between any person who has delivered a statement under section 518 and the receiver respecting title to wreck found in any place, or where more persons than one claim title to that wreck and a dispute arises between them as to that title, that dispute may be referred and determined in the same manner as if it were a dispute as to the salvage to be determined summarily under this Part.

(2) If any party to the dispute is unwilling to have the same so referred, or, where it is so referred, is dissatisfied with the decision, he may, within three months after the expiration of a year from the time when the wreck has come into the receiver's hands, or from the date of the decision, as the case may be, institute proceedings in any Court having jurisdiction in the matter for establishing his title.

521. **Delivery of unclaimed wreck by receivers not to prejudice title.—** Upon delivery of wreck or payment of the proceeds of sale of wreck by a receiver in pursuance of the provisions of this Chapter, the receiver shall be discharged from all liability in respect thereof, but the delivery shall not prejudice or affect any question which may be raised by third parties concerning the right or title to the wreck, or concerning the title to the place on which the wreck was found.

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522. **Duty to report wreck.—**(1) The master of s ship present in Pakistan territorial waters shall immediately report to the nearest port authority any wreck of which he has knowledge and which has not been marked on a nautical chart.

(2) The provisions of sub-section (1) shall apply also to the operator of a platform in Pakistan territorial waters or the Pakistan exclusive economic zone.

523. **Liability for damage to waterways or related water areas structure.—**The owner of s ship shall be liable for any damage caused by the ship to waterways or related water areas, structures, except if and to the extent that the owner proves that the damage—

(a) resulted from force majeure;

(b) was caused by the gross negligence or actions done with intent to cause damage on behalf of any authority responsible for the establishment or

maintenance of lights or other navigational aids in the exercise of that function; or

(c) was caused by gross negligence, or actions, done with intent to cause damage, of a pilot or vessel traffic service personnel in the exercise of their functions.

524. **Liability for reasonable costs.—**(1) The owner of a ship involved in a maritime casualty shall be wholly or partly liable for the reasonable costs of removal of wreck pursuant to section 513 and salvage measures taken under sections 517 and 518 except if and to the extent that the owner proves that the casualty was caused by gross negligence or actions done with intent to cause damage by or on behalf of any government authority in performance of its functions.

(2) Reasonable costs for wreck removal measures shall include the reasonable costs made for notification and publication of the wreck's position, and the reasonable costs for removal lighting, marking, buoying, guarding and transporting the wreck.

525. **Unseaworthy ships brought to Pakistani water without prior permission.—**If any ship or craft, which in the opinion of the Federal Government is unseaworthy as regards her hull, propelling machinery, rig, equipment, manning, life saving and fire fighting appliances, etc., and is brought to Pakistani waters or Pakistani port approaches without prior permission and conditions; the Federal Government may order removal of the same as in case of a wreck in clause (a) of sub-section (4) of section 504 and in case of non-compliance deal with the same as in case of a wreck under clause (b) of sub-section (4) thereof or confiscate the ship or craft in favour of the Federal Government or if it deems fit impose any or both the punishments.

CHAPTER 40.—SALVAGE

526. **Salvage payable for saving life, cargo or wreck.**—(1) Where services are rendered—

(a) wholly or in part within the territorial waters of Pakistan in saving life from any vessel or, elsewhere in saving life from a vessel registered in Pakistan; or

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(b) in assisting a vessel or saving the cargo or equipment of a vessel which is wrecked, stranded or in distress at any place on or near the coasts of Pakistan including the territorial waters thereof; or

(c) by any person other than the receiver in saving any wreck; there shall be payable to the salvor by the owner of the vessel, cargo, equipment or wreck, a reasonable sum for salvage having regard to all the circumstances of the case.

(2) Salvage in respect of the preservation of life when payable by the owner of the vessel shall be payable in priority to all other claims for salvage.

(3) Where services have been rendered for the purpose of containing or abating pollution, the salvor shall be entitled to recover reasonable compensation from the owner or, as the case may be, the charterer or the operator of the vessel.

(4) Where salvage services are rendered by or on behalf of the Government or by a vessel of the Pakistan Navy, Maritime Security Agency or the commander or crew of any such vessel, the Government, the commander or the crew, as the case may be, shall be entitled to compensation and shall have the same rights and remedies in respect of those services as any other salvor.

(5) Any dispute arising concerning the amount under this section hall be determined upon application made by either of the parties to the dispute—

(a) to the District Judge, where the amount claimed does not exceed twenty-five thousand rupees; or

(b) to the High Court, where the amount claimed exceeds twenty-five thousand rupees.

(6) Where there is any dispute as to the persons who are entitled to the salvage amount under this section, the District Judge or the High Court, as the case may be, shall decide the dispute, and if there are more persons than one entitled to such amount, the District Judge or the High Court shall apportion the amount thereof among such persons.

(7) The costs of, and incidental to, all proceedings before the District Judge or the High Court under this section shall be in the discretion of the District Judge or the High Court, and the District Judge or the High Court shall have full powers to determine by whom or out of what property and to what extent such costs are to be paid and to give all necessary directions for the purpose aforesaid.

527. **Savings.** Nothing in this Part shall—

(a) affect any treaty or arrangement with any foreign country to which Pakistan is a party with reference to the disposal of the proceeds of wrecks on their respective coasts; or

(b) affect the provisions of section 29 of the Ports Act, 1908 (XV of 1908), or entitle any person to salvage in respect of any property recovered by creeping or sweeping in contravention of that section.

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528. **Instructions to prevent harmful consequences.**—(1) When the measures taken by the master or the owner of a ship which is involved in a maritime casualty do not sufficiently prevent, mitigate or eliminate the harmful consequences of the maritime casualty, the Federal Government may for that purpose give instructions to the owner or charterer or operator, as the case may be, and the persons rendering assistance, requiring—

(a) the presence of the ship and its cargo in a particular place or area;

(b) the ship and its cargo to move a particular place or area;

(c) assistance to be rendered to the ship or its cargo; and

(d) grounding of the ship in a particular location;

529. **Measures to prevent harmful consequences.**—(1) If in the opinion of the Federal Government, the instructions do not result in sufficient prevention, mitigation or elimination of the harmful consequences of the maritime casualty, the Federal Government may direct—

(a) taking of measures relating to the matters specified in section 528;

(b) taking over control of the ship; and

(c) removing, sinking or destroying the ship as well as eliminating, removing, jettisoning, sinking or destroying its cargo.

(2) In respect of a ship which has been stranded, sunk or been grounded in or near a route or road stead or in or on a pier or other coastal public water works, the Federal Government may only take the measures provided in section 513 unless the stranding, sinking or grounding was a consequence of measures taken pursuant to section 528.

530. **Proportionality of instructions and measures.—**The Federal Government shall ensure that instructions issued and measures taken pursuant to sections 528 and 529 are—

(a) proportionate to the actual or threatened damage, taking into account—

(i) the extent and probability of imminent damage if those measures are not taken;

(ii) the likelihood of those measures being effective; and

(iii) the extent of damage which may be caused by such measures;

(b) reasonably necessary to achieve sufficient prevention, mitigation or elimination of the harmful consequences of the maritime casualty; and

(c) not unnecessarily in conflict with the rights and interests of a flag State, other States and of any natural or juristic persons.

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531. **Consultation.**—(1) Except in cases of extreme urgency requiring immediate action, the Federal Government shall consult the flag State and the owner, or as the case may be, the charterer or operator of the ship prior to giving instructions or taking measures in respect of a foreign ship.

(2) Prior to taking measures in respect of a ship present in the exclusive economic zone of another coastal State, the Federal Government shall consult the competent authorities of that State.

532. **Duty to co-operate.—**The master and the owner of the ship and the persons rendering assistance shall carry out instructions issued pursuant to section 528 and shall co-operate with measures taken pursuant to section 529.

533. **Power to make rules respecting wreck and salvage.**—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Part.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the procedure to be followed by a receiver of wreck in respect of the taking possession of wrecks and their disposal ;

(b) the fees payable to receiver of wreck in respect of the work done by him ;

(c) the procedure to be followed for dealing with claims relating to ownership of wrecks ;

(d) the appointment of values in salvage cases ;

(e) the principles to be followed in awarding salvage and the apportioning of salvage; having regards to the international practices ;

(f) the procedure to be followed for dealing with claims for salvage ;

(g) the detention of property in the custody of a receiver of wreck for the purpose of enforcing payment of salvage;

(h) any other matter which is to be or may be prescribed.

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PART XIII.—LIABILITY OF SHIPOWNERS

CHAPTER 41.—LIMITATION OF LIABILITY OF SHIPOWNERS

534. **Scope.**—(1) This Chapter shall apply whenever any person referred to in section 535 seeks to limit his liability before a court in Pakistan or seeks to procure the release of a ship or other property or the discharge of any security given in Pakistan.

(2) Subject to sub-section (3), this chapter shall not apply to—

(a) ships constructed for or adapted to and engaged in drilling at sea ;

(b) floating platforms constructed for the purpose of exploring or exploiting the natural resources of the sea bed or its subsoil ; and

(c) air-cushioned vehicles.

(3) The Federal Government may, by notification in the official Gazette, apply any or all the provisions of this Chapter to any ship, platform or vehicle referred to in sub-section (2) and fix limits of liability the ships which may deviate from the limits set for other ships under this chapter.

535. **Persons entitled to limit liability.**—(1) Ship owners and salvors may limit their liability in accordance with the provisions of this chapter in relation to claims which are set out in section 536.

Explanation.—For the purposes of sub-section (1)—

(a) "ship owner" means the owner and includes the charterer, manager and operator of any ship ; and

(b) "salvor" means any person rendering services in direct connection with salvage operations.

(2) If any claims set out in section 537 are made against any person for whose act, neglect or default the ship owner or salvor is responsible, such person shall be entitled to avail himself of the limitation of liability provided for in this chapter.

(3) In this chapter the liability of a ship owner shall include liability in action brought against the ship herself.

(4) An insurer of liability for claims which are subject to limitation in accordance with the rules made under this Chapter shall be entitled to the benefits of this Chapter to the same extent as the assured himself.

(5) The act of invoking limitation of liability shall not constitute an admission of liability.

536. **Claims subject to limitation.**—(1) Subject to sections 537 and 538, thefollowing claims, whatever the basis of liability may be, shall be subject to limitation of liability, namely : —

(a) claims in respect of loss of life or personal injury or loss of, or damage to, property, including damage to harbour works, basins and waterways and aids to navigation, occurring on board or in direct connection with the operation of the ship or with salvage operations and consequential loss resulting therefrom;

(b) claims in respect of loss resulting from delay in the carriage by sea of cargo, passengers or their luggage ;

(c) claims in respect of other loss resulting from infringement of rights other than contractual rights, occurring in direct connection with the operation of the ship or salvage operations ; and

(d) claims of a person other than the person liable in respect of measures taken in order to avert or minimise loss for which the person liable may limit his liability in accordance with this Chapter, and further loss caused by such measures.

(2) Claims set out in sub-section (1), except in clause (d) thereof, shall be subject to limitation of liability even if brought by way of recourse or for indemnity under a contract or otherwise, or by way of a direct action against the insurer, if any, of the person liable in respect of the claim.

537. **Claims excepted from limitation.**—(1) The provisions of this chapter shall not apply to—

(a) claims for salvage or contribution in general average ;

(b) claims for oil pollution damage ;

(c) claims subject to any international convention or any Pakistan law governing or prohibiting limitation of liability for nuclear damage ;

(d) claims against the ship owner of a nuclear ship for nuclear damage ;

(e) claims by a servant of the ship owner or salvor whose duties are connected with the ship or salvage operations, including claims of their heirs, dependants or other persons entitled to make such claims; if the contract of service between the ship owner or salvor and such servants is governed by Pakistan law or, in case Pakistan law is not applicable, if under the applicable law the ship owner or salvor is not entitled to limit his liability in respect of such claims, or if he is by such law only permitted to limit his liability to an amount greater than that provided for under section 541 ;

(f) claims in respect of the raising, removal, destruction or the rendering harmless of a ship which is sunk, wrecked, stranded or abandoned including anything that is or has been on board such ship; and

(g) claims in respect of the removal, destruction or the rendering harmless of the cargo of the ship.

538. **Conduct barring limitation.—**A person liable shall not be entitled to limit his liability if it is proved that the loss resulted from his personal act, or omission, committed with intent to cause such loss recklessly and with knowledge that such loss would probably result.

539. **Counter-claims.—**Where a person entitled to limitation of liability under this chapter has a claim against the claimant arising out of the same occurrence, their respective claims shall be set off against each other and the provisions of this chapter shall only apply to the balance, if any.

540. **Applications of the limits.—**The limits of liability determined in accordance with sections 541 and 542 shall apply to Pakistani and foreign ships.

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541. **General limits of liability.**—(1) The limits of liability for claims other than those mentioned in section 542, arising on any distinct occasion, shall be calculated as follows—

(a) in respect of claims for loss of life or personal injury—

(i) 333,000 units of account for a ship with a tonnage not exceeding 500 tons;

(ii) for a ship with a tonnage in excess thereof, the following amount in addition to that mentioned in sub-clause (i) —

for each ton from 501 to 3,000 tons, 500 units of account ;

for each ton from 3,001 to 30,000 tons, 333 units of account ;

for each ton from 30,001 to 70,000 tons 250 units of account; and

for each ton in excess of 70,000 tons, 167 units of account; and

(b) in respect of any other claims—

(i) 167,000 units of account for a ship with a tonnage not exceeding 500 tons; and

(ii) for a ship with a tonnage in excess thereof the following amount in addition to that mentioned in sub-clause (i) —

for each ton from 501 to 30,000 tons, 167 units of account ;

for each ton from 30,001 to 70,000 tons, 125 units of account ; and

for each ton in excess of 70,000 tons, 83 units of account.

(2) In the application of sub-section (1) to a ship with a tonnage of less than 300 tons that sub-section shall have effect as if—

(a) in clause (a), in sub-clause (i), for the figure "333,000" the figure "166,667" were substituted; and

(b) in clause (b), in sub-clause (i), for the figure "167000" the figure "83,333" were substituted.

(3) Where the amount calculated in accordance with clause (a) of sub-section (1) is not sufficient to pay the claims mentioned therein in full, the amount calculated in accordance with clause (b) thereof shall be available for payment of the unpaid balance of claims and such unpaid balance shall rank rate ably with such claims mentioned in clause (b) of sub-section (1).

(4) Claims in respect of damage to harbour works, basins and waterways and aids to navigation shall have priority over all other claims.

(5) The limit of liability for any salvor not operating from any ship or for any salvor operating solely on the ship to, or in respect of which, he is rendering salvage services, shall be calculated according to a tonnage of 1,500 tons.

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(6) For the purpose of this Chapter the ship's tonnage shall be the gross tonnage calculated in accordance with this Ordinance.

542. **Limit for passenger claims.**—(1) In respect of claims arising on any distinct occasion for loss of life or personal injury to passengers of a ship, the limit of liability of the ships owner thereof shall be in the amount of 46,666 units of accounts multiplied by the number of passenger which the ship is authorised to carry according to the passenger ship safety certificate issued in accordance with this Ordinance but not exceeding twenty-five million units of account.

(2) For the purpose of this section "claims for loss of life or personal injury to passengers on a ship" means any such claims brought by or on behalf of any person carried, in that ship,—

(a) under a contract of carriage of passengers by sea; or

(b) who, with the consent of the carrier, is accompanying a vehicle, live animals or other goods which are covered by a contract for the carriage of goods.

543. **Unit of account.**—(1) The unit of account referred to in sections 541 and 542 is the Special Drawing right as defined by the International Monetary Fund and the amounts mentioned in the aforesaid sections shall be converted into Pakistan currency by the Federal Government on the basis of the value of the currency on the date of the constitution of a limitation fund under Section 545 or when payment is made or such security, as the court may recognise as equivalent to the payment, given.

(2) The value in Special Drawing Rights of the national currency shall be calculated according to the method for valuation applied by the International Monetary Fund in effect at the date in question under sub-section (1), for its operations and transactions as certified by the State Bank of Pakistan.

544. **Aggregation of claims.**—(1) the limits of liability determined in accordance with section 530 shall apply to the aggregate of all claims which arise on any distinct occasion—

(a) against the person or persons mentioned in Explanation to sub-section (1) of section 535 and any person for whose act, neglect or default he or they are responsible; or

(b) against the ship owner of a ship rendering salvage services from that ship and the salvors operating from such ship and any person for whose act, neglect or default he or they are responsible; or

(c) against the salvor or salvors who are not operating from a ship or who are operating solely on a ship to, or in respect of which, the salvage services are rendered and any person for whose act, or default he or they are responsible.

(2) The limits of liability determined in accordance with section 542 shall apply to the aggregate of all claims subject thereto which may arise on any distinct occasion against the person or persons mentioned in the Explanation to sub-section (I) of section 535.

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545. **Limitation of fund and consolidation of claims against owners.**—(1) where any liability is alleged to have been incurred by the owner of a vessel in respect of claims arising out of an occurrence and the aggregate of the claims exceeds or is likely to exceed the limits of liability of the owner under sections 541 or 542, then the owner may apply to the High Court for the setting up of a Limitation Fund for the total sum representing such limits of liability.

(2) The High Court, to which the application is made under sub-section (1), may determine the amount of the owner’s liability and require him to deposit such amount with the High Court or furnish such security in respect of the amount as in the opinion of the High Court is satisfactory and the amount so deposited or secured shall constitute a Limitation Fund, hereinafter referred to as the Fund for the purpose of the claims referred to in sub-section (1) and shall be utilised only for the payment of such claims.

(3) After the Fund has been constituted, no person entitled to claim against it shall be entitled to exercise any right against any other assets of' the owner in respect of his claim against cite Fund, if that Fund is actually available for the benefit of the claimant.

(4) Subject to the provision of this Part, the High Court may distribute the amount constituting the Fund rateably amongst the several claimants and may stay any proceedings pending in any other court in relation to the same matter and may proceed in such manner and subject to such rules of the High court as to making persons interested parties to the proceedings, and as to the exclusion of any time levied claims, and as to requiring security from the owner, and as to payment of any costs, as the High Court thinks fit.

(5) Where the owner establishes that he has paid in whole or in part any claim in respect of which he can limit his liability under section 536, the High Court shall place him in the same position and to the same extent in relation to the Fund as the claimant whose claim he has paid.

(6) Where the owner has established that he may at a later date be requiring to pay in whole or in part, any of the claims under this Part, which could be settled from the Fund, the High Court may notwithstanding the foregoing provisions of this section order that a sufficient sum may be provisionally set aside for the purpose to enable the owner to enforce his claim against the Fund at a later date in accordance with the provisions of subsection (4).

(7) If the owner is entitled to make a claim against a claimant arising out of the same occurrence, their respective claims shall be set off against each other and the provisions of this Chapter shall only apply to the balance, if any.

546. **Release of ships, etc.**—(1) Where a vessel or other property is detained in connection with a claim which appears to the High Court to be founded on a liability to which a limit set by section 541 or 542 applies, or security is given to prevent or obtain release from such detention the High Court may, if the guarantee was given in a port which, in relation to the claim, is the relevant port, order the release of the vessel, property or security if the conditions specified in sub-section (2) are satisfied; and where the release is ordered, the person on whose application it is ordered shall be deemed to have submitted to the jurisdiction of the High Court to adjudicate upon the claim.

(2) the conditions referred to in sub-section (1) are—

(a) that security which in the opinion of the High Court is satisfactory (in this section referred to as "guarantee") has previously been given whether in Pakistan or elsewhere, in respect of the said liability or any other liability incurred on the same occasion and the High Court is satisfied that if the claim is established, the amount for which the guarantee was given or such part thereof as corresponds to the claim will be actually available to the claimant; and

(b) that either the guarantee is for an amount not less than the said limit or further security is given which, together with the guarantee is for an amount not less that that limit;

(3) For the purposes of this section—

(a) a guarantee given by the giving of security in more than one country shall be deemed to have been given in the country in which security was last given;

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(b) any question whether the amount of any security is (either by itself or together with any other amount) not less than any limit set by section 541 or 542 shall be decided as at the time at which the security is given ; and

(c) where part only of the amount for which a guarantee was given will be available to a claimant that part shall not be taken to correspond to his claim if any other part may be available to a claimant in respect of a liability to which no limit is set as mentioned in sub-section (1).

547. **Application to ships in course of completion or construction, etc.—**The provisions of this Chapter relating to limitation of liability to owners shall extend and apply to the owners, builders or other persons having an interest in any vessel built in any port or place in Pakistan from and including the launching of such vessel until the registration thereof in accordance with the provisions of this Ordinance, as they apply in relation to the owner of a vessel registered under this Ordinance.

548. **Power to make rules.—**The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this chapter.

CHAPTER 42. —LIENS FOR WAGES

549. **Seamen's lien for wages, etc.**—(1) A seaman shall have a lien on the ship, and shall not by any agreement forfeit his lien on the ship, or be deprived of any remedy for the recovery of his wages to which in the absence of the agreement he would be entitled, and shall not by any agreement abandon his right to wages in case of the loss of the ship or abandon any right that he may have or obtained in the nature of salvage, and every stipulation in any agreement inconsistent with any provisions of this Ordinance, shall be void.

(2) Nothing in this section shall apply to a stipulation made by the seamen belonging to any ship which according to the terms of the agreement, is to be employed on salvage service with respect to the remuneration to be paid to them for such service to be rendered by that ship to any other ship.

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550. **Master's lien.**—(1) The master of a ship shall, so far as the case permits, have the same rights, liens and remedies for the recovery of his wages as a seaman has under this Ordinance, or by any law or custom having the force of law.

(2) The master of a ship, and every person lawfully acting as master of a ship by reason of the decease or incapacity from illness of the master of the ship, shall so far as the case permits, have the rights, liens and remedies for the recovery of disbursement or liabilities properly made or incurred by him on account of the ship as the master has for the recovery of his wages.

(3) If in any proceeding in any court having jurisdiction touching the claim of a master in respect of wages, or of such disbursements, or liabilities as aforesaid, any right of set-off or counter-claim is set up, the Court may enter into and adjudicate upon all questions, and settle all accounts then arising or outstanding and unsettled between the parties to the proceedings, and may direct payment of any balance found to be due.

551. **Priorities.—**The seaman's lien under section 549 shall have precedence over all other liens or charges on the ship, and the master's lien under section 550 shall have precedence likewise except over that of a seaman.

PART XIV

CHAPTER 43.—PREVENTION OF POLLUTION FROM SHIPS

552. **Definitions.—**In this Part unless there is anything repugnant in the subject or context—

(a) "chemical tanker" means a ship constructed or adapted primarily to carry a cargo of noxious liquid substances in bulk and includes an oil tanker when it is carrying a cargo or part cargo of noxious liquid substances in bulk ;

(b) "convention" means the International Convention for the Prevention of Pollution from Ships, 1973, as modified by the Protocol of 1978, relating thereto (MARPOL 73/78), as amended from time to time ;

(c) "convention country" means any country in respect to which the convention referred to in clause (b) in force and includes any country to which such convention extends ;

(d) "Director-General" means the Director-General of the Ports and Shipping Wing, Ministry of Communications;

(e) "Discharge", in relation to harmful substances of effluents containing such substances, means any release howsoever caused from a ship and includes any escape, disposal, spilling, leaking, pumping, emitting or emptying except—

(i) dumping within the meaning of the convention on the Prevention of Marine Pollution by Dumping of Wastes and Other Matter, signed at London on the 13th November, 1972 ; or

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(ii) release of harmful substances directly arising from the exploration, exploitation and associated off-shore processing of sea-bed mineral resources; or

(iii) release of harmful substances for purposes of legitimate scientific research into pollution abatement or control ;

(f) "existing ship" means any ship which is not a new ship ;

(g) "garbage" means all kinds of victual, domestic and operational waste excluding fresh fish and parts thereof, generated during the normal operation of the ship and liable to be disposed of continuously or periodically ;

(h) "harmful substance" means oil and other substances which if introduced into the sea or other water areas is liable to create hazards to human health or

harm living resources and marine life and damage amenities or to interfere with other legitimate uses of the sea or other water areas ;

(i) "instantaneous rate of discharge of oil content" means the rate of discharge of oil in litres per hour at any instant divided by the speed of the ship in knots at the same instant ;

(j) "marine environment" means the navigable waters of Pakistan and the land and resources therein and thereunder; the water and fishery resources of any area over which Pakistan asserts exclusive fishery management authority; the sea-bed and sub soil of the outer continental shelf of Pakistan, the resources thereof and the waters superjacent thereto; and the recreational; economic; and scenic values of waters and resources ;

(k) "nearest land" means the nearest land the base link from which the territorial sea of the territory in question is established in accordance with international law ;

(l) "new ship" means a ship—

(i) for which the building contract was placed after the 31st December, 1975 ; or

(ii) in the absence of a building contract, the keel which was laid or was at a similar stage of construction after the 30th June, 1976 ;

(iii) the delivery of which was after the 31st December, 1979; and

(iv) which has undergone a major conversion—

(a) for which the contract was placed after the 31st December, 1975 ; or

(b) in the absence of a contact, construction work of which was begun after the 30th June, 1976 ; or

(c) which completed after the 31st December, 1976 ;

(m) Noxious liquid substances means any substances defined as such in the Convention ;

(n) "oil" means petroleum in any form including crude oil, fuel oil, sludge, oil refuse and refined products ;

(o) "oily mixture" means a mixture with any oil content ;

(p) "oil tanker' means a ship constructed or adapted primarily to carry oil in bulk in its cargo spaces and includes combination carries and any "chemical tanker", When it is carrying a cargo or a part cargo of oil in bulk;

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(q) "off-shore installation" means an installation whether mobile or fixed, which is used or is intended to be used for under-water exploration or exploitation of crude oil, petroleum or other similar mineral oils, under lease, licence or any other form of contractual arrangement and includes.

(a) any installation which could be moved from place to place under its own motive power or otherwise; and

(b) a pipe-line ;

(r) "sewage" means—

(a) drainage and other wastes from any form of toilets and urinals ;

(b) drainage from medical premises (dispensary, sick bay, etc;) *via* wash basin, wash tubs and scuppers located in such premises ;

(c) drainage from spaces containing living animals ; or

(d) other waste waters when mixed with the drainages specified above ;

(s) "ship" means any vessel of any type whatsoever operating in the marine environment and includes hydrofoil boats, air-cushion vehicles, submersibles, floating craft (self propelled or not) and fixed or floating platforms; and

(t) "special area" means a sea area where, for recognised technical reasons in relation to its oceanographical and ecological condition and to the particular character of its traffic, the adoption of special mandatory methods for the prevention of sea pollution is required and defined as such in the convention.

553. **International pollution prevention certificates.—**(1) Each Pakistani oil tanker of one hundred and fifty gross tons and above and each other Pakistani ship of four hundred gross tons and above ; or of such other type or tonnage as is specified in the convention or any Pakistani chemical tanker shall have on board a valid international oil pollution prevention certificate ; or international pollution prevention certificate for the carriage of noxious liquid substances in bulk as the case may be or any other certificate required under the convention.

(2) Each oil tanker of one hundred and fifty gross tons and above, or of such type or tonnage as is specified in the convention and each other ship of four hundred gross tons and above, or any chemical tanker, operated under the authority of a convention country other than Pakistan shall have on board valid certificates mentioned in sub-section (1).

(3) The certificates required by sub-section (1) shall be in the prescribed form issued by the Federal Government, or by any organizations authorized by the Federal Government in this behalf, after a satisfactory survey in the prescribed manner.

(4) The certificates issued under the provisions of sub-section (1) shall be issued for a period prescribed by the Federal Government, which shall not exceed five years from the date of issue ; except where —

(a) significant alternations have taken place in the construction, equipment, fittings, or arrangements required by the pollution prevention requirements, without the approval of the Federal Government of any other organization authorized by the Federal Government ;

(b) surveys as required under the convention are not carried out; and

(c) transfer of the ship to the flag of another country has taken place, the certificate shall cease to be valid.

(5) No officer of Customs shall grant a port clearance to a Pakistani ship specified in sub-section (1) or to a ship specified in sub-section (2), until after the production by master or owner of the ship of international oil pollution prevention certificate; or international pollution prevention certificate for the carriage of noxious liquid substances in bulk, as the case may be or any other certificate required under the convention.

554. **Prevention of pollution by sewage and garbage from ships.—**(1) The discharge of sewage and disposal of garbage into the sea from any ship is prohibited except as specified under the convention.

(2) The Federal Government may, in respect of a Pakistani ship, issue with an international sewage pollution prevention certificate for the prescribed period which shall not exceed five years from the date of issue thereof after satisfactory survey in the prescribed manner.

(3) Garbage management plan and garbage record book shall be maintained as required under the convention.

(4) If sewage or garbage is discharged or disposed of into the sea in contravention of sub-section (1), the master or the owner of the ship shall be liable to a fine which may extended to ten thousand US dollars.

(5) The provisions of this section shall take effect from such date as the Federal Government may by notification in the official Gazette, appoint.

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555. **Prohibition against oil pollution from ships.—**(1) No oil or oily mixture or harmful substance shall be is charged into the sea from any Pakistani ship or a foreign ship unless the condition specified in the convention are satisfied—

(2) Every ship of gross tonnage of less than four hundred tons other than oil tanker shall be equipped as far as practicable and reasonable with installations to ensure the storage of oil residues on board and their discharge to reception facilities.

(3) If oil or oily mixture or harmful substance is discharged in contravention of sub-section (1) the master or the owner of the ship shall be liable to imprisonment which shall not be less than two years and fine which shall not be less than fifty thousand US dollars but may extend to one million US dollars, and, in the case of a continuing contravention or failure with an additional fine which may extend to ten thousand US dollars for every day after the first during which such contravention or failure continue,.

(4) The Federal Government, or an officer generally or specifically authorised by it in this behalf, may compound any offence under this section.

556. **Prohibition against pollution due to discharge of noxious liquid substances from ships.—**(1) No noxious liquid substances shall be discharged into the sea from a Pakistani ship or a foreign ship unless the condition specified in the Convention are satisfied.

(2) If noxious liquid substances or their residues are discharged in contravention of this section, the master or the owner of the ship shall be liable to imprisonment for a term which shall not be less than two years and fine which shall not be less than fifty thousand US dollars, but may extend to one million US dollar.

557. **Special Powers.—**(1) Any person specially authorised by the Federal Government, may order any vessel in a port or place in Pakistan, or in the navigable waters of Pakistan, to operate or anchor in such manner as he may direct if—

(a) he has reasonable cause to believe such vessel does not comply with any regulation issued under this Ordinance, or any other law for the time being in force;

(b) by reason of weather, visibility, sea conditions, port congestion, other hazardous circumstances, or the condition of such vessel, he is satisfied that such directive is justified in the interest of safety;

(c) he determines that such vessel does not satisfy the conditions for entry in port if such—

(i) vessel has a history of accident, pollution incidents, or serious repair problems which in the opinion of the Federal Government or person authorised by it, render such vessel unsafe or may create a threat to the marine environment; or

(ii) vessel fails to comply with any regulation issued under this Ordinance, as amended, or under any other laws for the time being in force;

(iii) vessel discharges oil or hazardous material in violation of any law of Pakistan or in a manner and quantities inconsistent with the provisions of any treaty or convention to which the Pakistan Government is a party;

(iv) vessel does not comply with any applicable vessel traffic service requirements;

(v) vessel is manned by one or more officers who are licensed or certificated by a certificating State which the Federal Government or person authorised by it, has determined, does not have standards for licensing and certification of seafarers which are comparable to or more stringent than Pakistan's standards or international standards which are accepted by the Government of Pakistan;

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(vi) vessel is not manned in compliance with manning levels prescribed by the Federal Government, or person authorised by it to be necessary to ensure the safe navigation of the vessel; and

(vii) vessel while underway, does not have at least one licensed or certificated Deck Officer on the navigation bridge capable of clearly understanding marine (nautical) terminology.

(2) The Federal Government, or person authorised by it, may allow provisional entry of a vessel not in compliance with clause (c) of sub-section (1), if the owner or operator of such vessel proves, to the satisfaction of the Federal Government, or person authorised, that such vessel is not unsafe or a threat to the marine environment, and if such entry is necessary for the safety of the vessel or persons abroad.

558. **Exceptions in cases of emergencies.—**Nothing in sections 555 and 556 shall apply to—

(a) the discharge into the sea of oil or oily mixture or noxious liquid substances or other harmful substances mixture containing such substances necessary for the purpose of securing the safety of a ship or saving life at sea; and

(b) the discharge into the sea of oil or oily mixture or noxious liquid substances or other harmful substances mixture containing such substances resulting from damage to a ship or its equipment if—

(i) all reasonable precautions have been taken after the occurrence of the damage or discovery of the discharge for the purpose of preventing or minimizing the discharge;

(ii) the owner or the master acted neither with intent to cause damage nor recklessly and with knowledge that damage would probably result; and

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(iii) the discharge into the sea of noxious liquid substances or mixtures containing such substances, approved by the Federal Government, when being used for the purpose of combating specific pollution incidents in order to minimize the damage from pollution.

559. **Equipment in ships to prevent pollution.—**(1) For the purpose of preventing or reducing discharges of oil and oily mixtures into the sea, and for cleaning, removing of dispersing any oil and oily mixture already discharged, the Federal Government may make rules requiring Pakistani ships to be fitted with such equipment and to comply with such other requirements (including requirement for preventing the escape of fuel oil or heavy diesel oil into bilges) as may be prescribed.

(2) If a Pakistani ship is not fitted with equipment as required by sub-section (1) the master, owner, operator or the agent shall be liable to a fine which may extend to five hundred thousand rupees and in case of a continuing offence with an additional fine which may extend to five thousand rupees for every day during which such offence continues after first conviction.

560. **Oil record book.—**(1) Each oil tanker, of one hundred and fifty gross tons and above, and ship of four hundred gross tons and above, other than an oil tanker, and manned fixed or floating drilling rig or other platform to which this part applies, shall maintain an oil record book part-I (machinery space operations). An oil tanker of one hundred and fifty gross tons and above or a non-oil tanker that carries two hundred cubic meters or more of oil in bulk, shall also maintain an oil record book part-II (cargo ballast operations).

(2) The form and manner in which the oil record book shall be maintained, the nature of the entries to be made there in, the time and circumstances in which such entries shall be made, the custody and disposal thereof and all other matters relating thereto shall be such as may be prescribed having regard to the provisions of the convention.

(3) If the master of an oil tanker or other ship fails to maintain an oil record book as required by this section shall, for each offence, be liable to a fine which may extend to one hundred thousand rupees.

(4) If any person wilfully destroys or mutilates or renders illegible or prevents the making of, any entry in the oil record book or makes or causes to be made a false entry in such book in contravention of any rule made under this section, he shall for each offence, be liable to a fine which may extend to five hundred thousand rupees.

561. **Cargo record book for chemical tankers.—**Each chemical tanker to which this chapter applies shall maintain a cargo record book, whether as part of the ship's official log-book or otherwise, in the prescribed form.

562. **Inspection and control of ships with respect to prevention of pollution.—**(1) A surveyor or any person appointed in this behalf by the Federal Government may, at any reasonable time, go on board a ship for the purpose of—

(a) ensuring that the prohibitions, restrictions and obligations imposed by or under the convention are complied with;

(b) satisfying himself about the adequacy of the measures taken to prevent the escape of oil or oily mixture or noxious liquid substances or any other harmful substances from the ship including appropriate operational practices specified in the convention;

(c) ascertaining the circumstances relating to an alleged discharge of oil or oily mixture or of noxious liquid substances or any other harmful substances from the ship in contravention of the provisions of the convention;

(d) investigating and apportioning responsibility whenever information is received regarding the existence of visible traces of oil or contamination by noxious liquid substances or any other harmful substances on or below the surface of water in the immediate vicinity of a ship or its wake; and

(e) inspecting the oil record book, cargo record book or any other relevant record.

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(2) The surveyor or any such person may, if necessary, make, without unduly delaying the ship, a true copy of any entry in the oil or cargo record book of the ship, and may require the master of the ship to certify the copy to be a true copy and such copy shall be admissible as evidence of the facts stated therein.

563. **Information regarding contravention of the provisions of the convention.—**(1) If, on report from a surveyor or other person authorised to inspect a vessel under section 562, the Federal Government is satisfied that any provision of the Convention has been contravened anywhere by a foreign ship being a ship to which the provisions of the Convention apply, it shall transmit particulars of the alleged contravention to the Government of the country to which the ship belongs.

(2) On receipt of information from the Government of any country which has ratified the Convention that a Pakistani ship has contravened any provision of the Convention, the Federal Government shall investigate the matter and, if satisfied that any provision of this Part, or any rule made thereunder has been contravened, take appropriate action against the owner or master and intimate such Government of the action so taken.

564. **Oil reception facilities at ports in Pakistan.—**(1) Notwithstanding anything contained in any other law for the time being in force, in respect of every port in Pakistan, the powers of the port authority shall include the power to provide oil reception facilities.

(2) A port authority providing oil reception facilities or a person providing such facilities by arrangement with the port authority, may make charges for the use of facilities at such rates and may impose such conditions in respect of the use thereof as may be approved, by notification in the Official Gazette, by the Federal Government in respect of the port.

(3) Where the Federal Government is satisfied that there are no oil reception facilities at any port in Pakistan or that the facilities available at such port are not adequate for enabling ships calling at such port to comply with the requirements of the convention, the Federal Government may, after consultation with the port authority in charge of such port, direct by order in writing such authority to provide or arrange for the provision of such oil reception facilities as may be specified in the order.

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Explanation.—For the purposes of this section "port authority" means the Conservator of the port within the meaning of section 7 of the Ports Act, 1908 (XV of 1908).

565. **Reception facilities for noxious liquid substances in Pakistan.—**The Federal Government shall ensure that the ships using its ports, terminals or repair, ports shall have—

(a) cargo loading and unloading ports and terminals with facilities adequate for reception of residues and mixtures containing noxious liquid substances; and

(b) ship repair ports undertaking repairs of chemical tankers with facilities adequate for the reception of residues and mixtures containing noxious liquid substances.

566. **Pollution from shipping casualties.—**(1) If an accident occurs involving any ship in or outside Pakistan waters and the Federal Government is of opinion that oil or oily mixture or harmful substances from such ship may cause pollution or damage to the marine environment on a

large scale in Pakistan waters, it may give such directions to the master, owner, charterer salvor or agent of the ship as it considers necessary to avoid, reduce or neutralize such pollution and damage of the marine environment.

(2) If a master, owner, charterer, salvor or agent fails to comply with the directions given under sub-section (1) he shall, for each offence, be liable to imprisonment which shall not be less than two years and fine which may extend to one million US dollars.

567. **Prohibition of dumping.—**The dumping of wastes or other matter prescribed as such is prohibited and any person acting in contravention of this section shall be liable to imprisonment which shall not be less than two years and fine which may extend to one million US dollars.

568. **Permits for dumping.—**(1) The dumping of wastes or other matter not specified in section 567 is prohibited unless a prior special permit has been issued by the Federal Government.

(2) Any person acting in contravention to this section shall be liable to a fine which may extend to five hundred thousand rupees and imprisonment for a term which shall not be less than three months.

569. **Prohibition of loading without permit.—**(1) The loading of wastes or other matter on board a ship in a Pakistani port with the intention of subsequent dumping anywhere at sea is prohibited and any person acting in contravention of this section shall be liable to a fine which may extend to five hundred thousand rupees and imprisonment for a term which shall not be less than three months.

(2) The provisions of sub-section (1) shall not apply to substances referred to in section 568 in respect of which, prior to the loading, a permit has been issued by the Federal Government under sub-section (l) thereof.

570. **Exemption.—**The provisions of sections 567 and 568 shall not apply when, for security and safety of human life or of ships in cases of force majeure caused by stress or weather, or in any case which constitutes a danger to human life or a real threat to ships, dumping appears to be the only way of averting the threat and if there is every probability that the damage consequent upon such dumping will be less than would otherwise occur, and such dumping shall be so conducted as to minimize the occurrence of damage to human or marine life and shall be reported forthwith by the master to the Federal Government.

571. **Issuance of special permit.—**The Federal Government may issue a special permit for dumping wastes, in emergencies, posing serious risk to human health and admitting no other feasible solution.

572. **Conditions to permits.—**When issuing a permit under sections 568 and 569, the Federal Government may attach such conditions and restrictions, as may be necessary for the protection of the marine environment or the safety and health of persons.

573. **Recognition of foreign permits.—** A permit for the dumping or wastes or other matter issued by a competent authority in a foreign country may be recognized by the Federal Government as permit deemed to have been issued in accordance with section 568.

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574. **Recovery and liability.—**(1) The Federal Government may order the owner or master of a ship who has contravened the provisions of sections 567 and 568, or who has dumped wastes in accordance with section 570, to recover, practicable, the wastes or other matter which were dumped if such wastes or other matter constitute a serious threat to the marine environment or the safety of human life or navigation and the costs of such recovery shall be borne by the owner of the ship.

(2) The Federal Government may recover from the owner of the ship which has contravened the provisions of sections 567 and 568, or which has dumped wastes in accordance with section 570, all reasonable costs incurred by the Government in the recovery of the wastes or other matter referred to sub-section (1).

575. **Power to make rules.—**(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Part.

(2) In particular, and without any prejudice to the generality of the provisions of sub-section (1), such rules may provide for any of the following matters, namely:—

(a) the form and the manner in which the international oil pollution prevention certificate or international pollution prevention certificate for noxious liquid substances in bulk or any other certificate required under the convention shall be issued and any extensions thereof granted;

(b) the form and the manner in which the oil record book, cargo record book or any other relevant record shall be maintained;

(c) the mode or the manner of construction of new ships and any structural alterations in the existing ships for the purpose of giving effect to the provisions of section 559;

(d) the manner in which investigation may be made by the Federal Government for the purpose of sub-section (2) of section 563;

(e) the authorities which may, in individual cases, allow exemptions from the provisions of this Part and specify conditions for such exemptions;

(f) form of application for permits and the issue, refusal and cancellation of permits for dumping; and

(g) fees which may be levied for the issue of any certificate or permit under this Part.

PART XV.—PROCEDURAL AND MISCELLANEOUS

CHAPTER 44.—PROCEDURE

576. **Certain persons to be deemed public servant.**—The following persons shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code, 1860 (Act XLV of 1860) namely: —

(a) every Principal Officer, Surveyor, Shipping Maters, Radio Inspector, Registrar appointed under this Ordinance;

(b) every person appointed under section 94 for the purpose of examining the qualifications of persons desirous of obtaining certificates of competency under this Ordinance;

(c) every person appointed under this Ordinance to report information as to shipping casualties;

(d) every judge, assessor, scientific referee or other person acting under Part XI;

(e) every person authorised under this Ordinance to make an inquiry or investigation under Part XI and all persons whom he calls to his aid;

(f) every person directed to make an investigation into an explosion or fire on board ship under section 480;

(g) every presiding officer and member of a Maritime Board convened under section 483;

(h) every receiver of wreck and all persons whom he calls to his aid; and

(i) every other officer or person appointed under this Ordinance to perform any functions thereunder.

577. **Jurisdiction.—**No Court inferior to that of a magistrate of the first class shall try any offence under this Ordinance or any rule or regulation made thereunder.

578. **Place of trial.—**Any person committing any offence under this Ordinance or any rule or regulation made thereunder may be tried for the offence in any place in which he may be found, or which the Federal Government may, by notification in the Official Gazette, direct in this behalf, or in any other place in which he might be tried under any other law for the time being in force.

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579. **Enforcement of penalties in certain cases.—**The penalties to which masters and owners of special trade passenger ships and pilgrim ships are liable under part V, shall be enforced only on information laid at the instance of the certifying officer, or, at the port or place where there is no such officer, at the instance of such other officer as the Federal Government may specify in this behalf.

580. **Special provision regarding punishment.—**Notwithstanding anything contained in section 32 of the Code of Criminal Procedure, 1898 (Act V of 1898), a Magistrate of the first class may pass any sentence authorised by, or under, this Ordinance on any person convicted of an offence under this Ordinance or rule or regulation made thereunder.

581. **Offences by companies.—**(1) If the person committing an offence under this Ordinance is a company, every person who, at the time the offence was committed, was in charge of, and was responsible to, the company for the conduct of the business of the company, as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing in this sub-section shall render any such person liable to any punishment under this Ordinance if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of such offence.

(2) Notwithstanding anything contained in sub-section (1), where an offence under this Ordinance has been committed by a company, and it is proved that the offence was committed with the consent or connivance of, or is attributable to any neglect on the part of, any director, partner, manager, secretary or other officer of the company, such director, partner, manager, secretary or other officer shall also be deemed to be guilty of that offence, and shall be liable to be proceeded against and punished accordingly.

582**. Depositions to be received in evidence when witnesses cannot be produced.—**(1) Whenever, in the course of any legal proceeding under this Ordinance instituted at any place in Pakistan before any Court or magistrate, or before any person authorised by law or by consent of parties to receive evidence, the testimony of any witness is required in relation to the subject matter, and the defendant or the person accused, as the case may be, after being allowed a reasonable opportunity for so doing, does not produce the witness before the Court, Magistrate or person so authorized, any deposition previously made by the witness in relation to the same subject matter before any Court, Judge or Magistrate in Pakistan, or, if elsewhere, before a maritime Board or before any Pakistan consular officer, shall be admissible in evidence if—

(a) the deposition is authenticated by the signature of the presiding officer of the Court or of the Judge or Magistrate or of the presiding officer of the Maritime Board or of the Pakistan consular officer, before whom it is made;

(b) the defendant or the person accused had an opportunity by himself or his agent of cross-examining the witness; and

(c) the proceeding is criminal, on proof that the deposition was made in the presence of the person accused.

(2) It shall not be necessary in any case to prove the signature or official character of the person appearing to have signed such deposition; and a certificate by such person that the defendant or the person accused had an opportunity of cross-examining the witness, and that the deposition, if made in a criminal proceeding was made in the presence of the person accused, shall unless the contrary is proved, be sufficient evidence that he had that opportunity and that it was so made.

583. **Survey of ships alleged by seamen to be unseaworthy.—**(1) Whenever, in any proceeding against any seaman or apprentice belonging to any ship for the offence of desertion or absence without leave it is alleged by one-fourth, or if their number exceeds twenty by not less than five, or the seaman belonging to the ship, that the ship is by reason of unseaworthiness, over loading, improper loading, defective equipment, or for any other reason, not in a fit condition to proceed to sea, or that the accommodation in the ship is insufficient, the Court, having cognizance of the case shall take such means as may be in its power to satisfy itself concerning the truth or otherwise of the allegation, and shall for that purpose receive the evidence of the person making the same, and may summon any other witness whose evidence it may think it desirable to hear, and shall, if satisfied that the allegation is groundless, adjudicate in the case, but if not so satisfied shall before adjudication cause the ship to be surveyed.

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(2) A seaman or apprentice charged with desertion, or with absence without leave, shall not have any right to apply for a survey under this section unless he has before deserting or absenting without leave complained to the master of the circumstances so alleged in justification.

(3) For the purposes of this section the Court shall require any surveyor or, if such surveyor cannot be obtained without unreasonable expense or delay, then any other competent person appointed by the Court, and having no interest in the ship, her freight or cargo, to survey the ship, and to answer any question concerning her which the Court thinks fit to put.

(4) Such surveyor or other person shall survey the ship, and make his written report to the Court, including an answer to every question put to him by the Court, and the Court shall cause the report to be communicated to the parties, and, unless the opinions expressed in the report are proved to the satisfaction of the Court to be erroneous, shall determine the questions before it in accordance with those opinions.

(5) Any person making a survery under this section shall, for the purposes thereof, have all such powers as are specified in sub-section (3) of section 471.

(6) The costs, if any, of the survey shall be determined in accordance with the scale of feet the Federal Government may, by notification in the official Gazette, fix in this behalf.

(7) If it is proved that the ship is in a fit condition to proceed to sea, or that the accommodation is sufficient, as the case may be, the costs of the survey shall be paid by the person upon whose demand, or in consequence of whose allegation, the survey was made, and may be deducted by the master or owner out of the wages due or to become due to that person, and shall be paid over to the Federal Government.

(8) If it is proved that the ship is not in a fit condition to proceed to sea, or that the accommodation is insufficient, as the case may be, the master or owner of the ship shall pay the costs of the survey to the Federal Government, and shall also be liable to pay to the seaman or apprentice who has beets detained in consequence of the said proceeding before the Court under this section such compensation for his detention as the Court may award.

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584. **Jurisdiction over ships laying off coasts.—**Where any area within which any Court or Magistrate has jurisdiction, either under this Ordinance or under any other law for any purpose whatsoever, is situated on the coast of any sea, or abutting on or Projecting any bay, channel, lake, river, or other navigable water, every such Court or Magistrate shall have jurisdiction over any vessel being on, or lying or passing off, that coast, or being in or near that bay, channel, lake, river, or navigable water, and over all persons on board that vessel or for the time being belonging thereto, in the same manner as if the vessel or persons were within the limits of the original jurisdiction of the Court or Magistrate.

585. **Jurisdiction in case of offences on board.—**Where any person, being a citizen of Pakistan is charged with having committed any offence on board any Pakistani ship on the high seas, or in any foreign port or harbour, or on board any ship other than a Pakistani ship to which he does not belong, or, not being a citizen of Pakistan, is charged with having committed any offence on board any Pakistani ship on the high seas, and that person is found within the jurisdiction of any Court or Magistrate which would have had jurisdiction to take cognizance of the offence if it had been committed on board a Pakistani ship within the limits of its or his ordinary jurisdiction shall have jurisdiction to try the offence as if it had been so committed.

586. **Power to detain foreign ship that has occasioned damage.—**(1) Whenever any damage has in any part of the world been caused to property belonging to the Government, or to any citizen of Pakistan or a company, by a ship other than a Pakistani ship, and at any time thereafter that ship is found in any port or place in Pakistan including the territorial waters thereof, the High Court may, upon the application of any person who alleges that the damage was caused by the misconduct or want of skill of the master or any member of the crew of the ship, issue an order directed to any Principal Officer, officer of Customs or other person named in the order, requiring him to detain the ship until such time as the owner, master or consignee thereof has satisfied any claim in respect of the damage, or has given security to the satisfaction of the High Court to pay all costs and damages that may be awarded in any legal proceedings that may be instituted in respect of the damage, and the officer or person to whom the order is directed shall detain the ship accordingly.

(2) Whenever it appears that, before an application can be made under this section, the ship in respect of which the application is to be made will have departed from Pakistan or the territorial waters thereof, any Principal Officer or officer of Customs may detain the ship for such time as to allow the application to be made and the result thereof to be communicated to the officer detaining the ship, and that officer shall not be liable for any costs or damages in respect of the detention unless the same is proved to have been made without reasonable grounds.

(3) In any legal proceedings in relation to any such damage as aforesaid, the person giving security shall be made a defendant and shall, for the purpose of such proceedings, be deemed to be the owner of the ship that has occasioned the damage.

587. **Enforcing detention of ship.—**(1) Where under this Ordinance a ship is authorised, or ordered, to be detained, any commissioned officer of the Pakistan Navy, or any Principal Officer or officer of Customs may detain the ship.

(2) If any ship after detention, or after service on the master of any notice of, or order for, such detention, proceeds to sea before she is released by competent authority, the master of the ship shall be liable to a fine which may extend to ten thousand rupees.

(3) When a ship so proceeding to sea takes to sea, when on board thereof in the execution of his duty, any person authorised under this Ordinance to detain or survey the ship, the owner, master or agent of such ship shall each be liable to pay all expenses of, and incidental to, such person being so taken to sea, and shall also be liable to a fine which may extend to fifty thousand rupees.

(4) When any owner, master or agent is convicted of an offence under sub-section (3), the Magistrate convicting him may inquire into and determine the amount payable on account of expenses by such owner, master or agent under that sub-section, and may direct that the same shall be recovered from him in the manner provided for the recovery of fines.

588. **Levy of wages, etc. by distress of moveable property.—**When an order under this Ordinance for the payment of any wages or other money is made by a Shipping Master or a Magistrate or other officer or authority, and the money is not paid at the time or in the manner directed, the sum mentioned in the order, with such further sum as may be thereby awarded for costs, may be levied by distress and sale of the moveable property of the person directed to pay the same under a warrant to be issued for that purpose by a Magistrate.

589. **Levy of wages, fines etc. by sale of ship.—**Where any Court or Magistrate or other officer or authority has power under this Ordinance to make an order directing payment to be made of any seaman's wages, fine, or, other sums of money, then if the person so directed to pay the same is the master, owner or agent of a ship and the same is not paid at the time or in the manner directed by the order, the Court or Magistrate or Officer or authority, as the case may be, may, in addition to any other power it or he may have for the purpose of compelling payment by warrant, direct the amount remaining unpaid to be levied by distress and sale of the ship and her equipment.

590. **Notice to be given to consular representative of proceedings taken in respect of foreign ship.—**If any ship other than a Pakistani ship is detained under this Ordinance, or if any proceedings are taken under this Ordinance against the master, owner or agent of any such ship, notice shall forthwith be served on the consular officer of the country in which the ship is registered, at or nearest to the port where the ship is for the time being, and such notice shall specify the grounds on which the ship has been detained or the proceedings have been taken.

591. **Service of documents.—**Where for the purposes of this Ordinance any document is to be served on any person, that document may be served—

(a) in any case, by delivering a copy thereof personally to the person to be served, or by leaving the same at his place of abode or by post;

(b) if the document is to be served on the master of a ship, where there is one. or on a person belonging to a ship, by leaving the same for him on board that ship, with the person being or appearing to be in command or charge of the ship; and

(c) if the document is to be served on the master of a ship where there is no master and the ship is in Pakistan, on the managing owner of the ship; or, if there is no managing owner, on some agent of the owner residing in Pakistan, or where no such agent is known or can be found, by affixing a copy thereof to the mast of the ship.

592. **Proof of attestation not required.—**Where any document is required by this Ordinance to be executed in the presence of, or to be attested by, any witness that document may be proved by the evidence of any person who is able to bear witness to the requisite facts without calling the attesting witness or the attesting witnesses or any of them.

593. **Fines to compensate for damages.—**A Magistrate or a Court imposing a fine under this Ordinance may, if he thinks fit, direct the whole or any part thereof to be applied in compensating any person for any detriment which he may have sustained by the act or default in respect of which the fine is imposed or in or towards payment of the expenses of the prosecution.

CHAPTER 45.—MISCELLANEOUS

594. **Shipping Development Fund.—**(1) The Federal Government may, by notification in the Official Gazette, form a fund to be called the Shipping Development Fund (hereinafter referred to as the Fund) to be applied towards meeting the expenses of operating the Fund and for granting loans and financial assistance in any other form—

(a) to persons of the description mentioned in section 13—

(i) for the acquisition and maintenance of ships, including modification, reconstruction and renovation thereof ; and

(ii) for meeting any short term requirements.

(b) to Pakistani shipyards for the construction of new ships.

(2) The Federal Government may, by notification in the Official Gazette, make rules providing for—

(a) the constituting of a committee for the management of the Fund and the manner and mode of its working and memberships;

(b) the manner and mode of the payments into the Fund;

(c) the exemption from liability to pay any taxes by the committee referred to in clause (a) ; and

(d) any other matter which is considered necessary for the smooth operation of the Fund and the management of the committee referred to in clause (a).

595. **Fees for establishing training institutions.**—(1) For the purpose of establishing or financing institutions for training in the various trades, professions and callings provided for in this Ordinance, there shall be paid, in the prescribed manner, a monthly fee by the owner of every Pakistani ship at such rate as may be prescribed, not exceeding ten rupees per one hundred units of gross tonnage and different rates may be prescribed for different classes of ships.

(2) If any owner fails or refuses to pay such fee, any Principal Officer may detain the ship, in respect of which the fee has not been paid in accordance with the provisions of sub-section (1), until such time as the fee payable in respect thereof has been duly paid.

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(3) The Federal Government may, by notification in the official Gazette, make rules providing for—

(a) the appointment of a committee to administer the proceeds of the fees paid or collected under this section;

(b) the rates of such fees;

(c) the manner in which such fees shall be paid or collected; and

(d) such other matter as may be considered, necessary for carrying out the purposes of this section.

596. **Inquiry into cause of death on board Pakistani ship.**—(1) If any person dies on board a Pakistani foreign-going ship, the Shipping Master at the port where the crew of the ship is discharged, or the Shipping Master at any earlier port of call in Pakistan shall, on the arrival of the ship at that port, inquire into the cause of death, and shall make in the official log-book an

endorsement to the effect, either that the statement of the cause of death in the log-book is in his opinion true, or the contrary, according to the result of the inquiry.

(2) If, in the course of any such inquiry, it appears to the Shipping Master that a death has been caused on board the ship by violence or other unlawful act, he shall either report the matter to the Federal Government or, if the emergency of the case so require, take immediate steps for bringing the offender to trial.

(3) For the purposes of an inquiry under this section the Shipping Master shall have all such powers as are specified in sub-section (3) of section 471.

597. **Power to appoint examiners and to make rules as to qualifications of surveyors.—** The Federal Government may appoint competent persons for the purposes of examining the qualification of persons desirous of practicing the profession of a surveyor at any port in Pakistan, and may make rules—

(a) for the conduct of such examinations and the qualifications required ;

(b) for the grant of certificates to qualified persons ;

(c) for the fees to be paid for such examinations and certificates ;

(d) for holding inquiries into charges of incompetency and misconduct on the part of holders of such certificates; and

(e) for the suspension and cancellation of such certificates.

598. **No person to practise as surveyor unless qualified.—**No person shall practise the profession of a surveyor in any port in Pakistan unless he holds a certificate granted under section 597:

Provided that nothing herein contained shall prevent any person employed by a classification society which the Federal Government may, by notification in the official Gazette, specify in this behalf, from discharging any of the duties of such employment. or apply to any person specially exempted by the Federal Government from the operation of this section.

599. **Penalty for practising as surveyor without certificate.—**Any person practising the profession of a surveyor in contravention of the provisions of section 598 shall, for each offence, be punishable with fine which may extend to five thousand rupees, and shall not be entitled to maintain any suit for any fee or reward for anything done by him.

600. **Powers of person appointed or authorised to survey ships.—**Any person appointed or authorised under this Ordinance to survey any ship may, in the execution of his duties, go on board the ship and inspect the same and every part thereof, and the machinery, equipment and cargo, and may require the unloading or removal of any cargo, ballast or equipment.

601. **Decision of consular officer to be final until ship returns to the final port of discharge in Pakistan.—**The decision of a Pakistan consular officer on any matter under this Ordinance shall be final and shall not be called in question in any Court or before any authority

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until the ship in respect of, or in relation to, which such decision is taken, returns to the final port of discharge in Pakistan.

602. **Penalty for hindering or obstructing execution of duties, etc.—**If any person hinders or obstructs any Judge, assessor, officer or other person who is empowered by this Ordinance to conduct an inquiry or investigation or to go on board, survey, inspect or detain a ship, or otherwise impedes him in the execution of his duties or the exercise of his powers under this Ordinance, he shall, for each offence, be liable to a fine which may extend to fifty thousand rupees.

603. **General power to make rules or regulations and penalty for breach thereof.—**(1) Without prejudice to any power to make rules or regulations contained elsewhere in this Ordinance, the Federal Government may, by notification in the official Gazette, make rules or regulations to carry out the purposes of this Ordinance.

(2) In making a rule or regulation under this Ordinance, the Federal Government may direct that any breach of the provisions thereof shall, unless a penalty for such breach has been expressly provided in this Ordinance, be liable to a fine which may extend to ten thousand rupees and, if the breach is a continuing one, with an additional fine which may extend to five thousand rupees for every day after the first during which such breach continues.

604. **Power to appoint officers to try certain offences, etc.—**(1) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), or any other law for the time being in force, the Federal Government may, by notification in the official Gazette, appoint one or more officers to try, within such local areas as may be specified therein, an offence of any breach of, or failure to comply with, any rule for the safety of ship or of crew, passengers, goods, mails and other things carried thereon, or for preventing ships from endangering other ships, persons or property ; and any such officer trying an offence shall, for the purpose of the trial, be deemed to be a Magistrate of the first class appointed under the Code and any proceedings before, and any sentence passed by him shall have effect accordingly.

(2) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), an officer appointed under sub-section (1) may try an offence in a summary way in accordance with the procedure laid down for summary trial in the said Code.

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(3) Where an officer has been appointed under sub-section (1) to try an offence specified therein, no court other than such officer shall try such offence.

605. **Power to exempt ships from the provisions of the Ordinance.—**Notwithstanding anything contained in this Ordinance, the Federal Government may, upon such conditions. if any, as it may think fit to impose, exempt any ship from any specified requirement contained in, or prescribed in pursuance of, this Ordinance, or dispense with the observance of any such requirement in the case of any ship, if it is satisfied that, that requirement has been substantially complied with or that compliance with the requirement is unnecessary in the circumstances of the case.

606. **Power to constitute committees to advise on rules, regulations and scales of fees.—**(1) The Federal Government may, if it thinks fit, constitute one or more committees consisting of such number of persons as it may appoint thereto representing the interests principally affected or having special knowledge of the subject matter, for the purpose of advising it when

considering the making or alteration of any rules, regulations or scales of fees under this Ordinance or for any other purpose connected with this Ordinance.

(2) There shall be paid to the members of any such committee such travelling and other allowances as the Federal Government may fix.

(3) Committees may be constituted under this section to advise the Federal Government either generally as regards any rules, regulations or scales of fees or as regards any class or classes of rules, regulations or scales of fees in particular or for any other purpose connected with this Ordinance.

607. **Protection of persons acting under Ordinance.—**No suit or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Ordinance.

608. **Removal of difficulties.—**If any difficulty arises in giving effect to the provisions of this Ordinance, in so far as they relate to any Conventions referred to in this Ordinance, the Federal Government may, by notification in the official Gazette, make such provisions not in-consistent with the provisions of this Ordinance, as appear to be necessary or expedient for removing the difficulty and giving effect to the provisions of such Convention:

Provided that no such order shall be made under this section after the expiry of three years from the coming into force of this Ordinance.

609. **Power to make rules with respect to maritime international conventions.—** The Federal Government may, by notification in the official Gazette, make rules, not in-consistent with the provisions of this Ordinance, or the rules or regulations made thereunder, for implementing the provisions of the maritime international conventions ratified by Pakistan.

PART XVI

CHAPTER 46.—REPEALS AND SAVINGS

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610. **Repeals and savings.—**(1) Subject to the provisions of sub-section (2), the laws specified in Part I of the Schedule to this Ordinance, and the enactments specified in Part II thereof in so far as they extend to, and operate as part of the laws of Pakistan or any part thereof, are hereby repealed.

(2) Notwithstanding the repeal of any enactment by sub-section (1)—

(a) any notification, rule, regulation, bye-law, order or exemption issue, made or granted under any such enactment shall have effect as if it had been issued, made or granted under the corresponding provision of this Ordinance ;

(b) any official appointed and any body elected or constituted under any such law shall continue and shall he deemed to have been, appointed, elected or constituted, as the case may be, under the corresponding provision of this Ordinance ;

(c) any document referring to any enactment hereby repealed shall be construed as referring, as far as may be, to this Ordinance, or to the corresponding provision of this Ordinance ;

(d) mortgages of ships recorded in any register book maintained at any port of Pakistan under any enactment hereby repealed shall be deemed to have been recorded in the register book maintained under the corresponding provision of this Ordinance; and

(e) any licence, certificate of competency or survey, A or B certificates, safety certificate,, radio telegraphy certificate, radio telephone certificate, safety equipment certificate, exemption certificate, international or Pakistan load line certificate, or document issued made or granted under any enactment hereby repealed shall be deemed to have been issued, made or granted under this Ordinance and shall, unless cancelled in pursuance of the provisions of this Ordinance, continue in force until the date specified in the certificate or document.

THE SCHEDULE

(*See* section 610)

ENACTMENTS REPEALED

(A) PART I.– PAKISTAN LAWS

1. The Coasting Vessels Act, 1838 (XIX of 1838).
2. The Registration of Ships Act, 1841 (X of 1841).
3. The Registration of Ships Act, 1841 Amendment Act, 1850 (XI of 1850).
4. The Merchant Shipping Act, 1923 (XXI of 1923).
5. The Merchant Seamen (Litigation) Act, 1946 (XXI of 1946).
6. The Merchant Shipping (National Colours) Act, 1949 (V of 1950).
7. The Control of Shipping Ordinance, 1959 (XIII of 1959).

B. PART II

1. Merchant Shipping Act, 1894 (57 & 58 Vic. c. 60).
2. Merchant Shipping Act, 1897 (60 & 61 Vic. c. 59).
3. Merchant Shipping (Liability of Ship owners) Act, 1898 (61 & 62 Vic. c. 14).
4. Merchant Shipping (Mercantile Marine Fund) Act, 1898 (61 & 62 Vic. c. 44).

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5. Merchant Shipping (Liability of Ship owners and others) Act, 1900 (63 & 64 Vic. c. 32).

6. Merchant Shipping Act, 1906 (6 Edw 7 c. 48).

7. Merchant Shipping Act, 1907 (7 Edw 7 c. 52).

8. Merchant Shipping (Seamen's Allotment) Act, 1911 (1 to 2 Geo 5 c. 8).

9. Merchant Shipping Act, 1911 (1 & 2 Geo. 5 c. 42).

10. Merchant Shipping (Certificates) Act, 1914 (1 & 2 Geo. 5 c. 57).

11. Merchant Shipping (Certificates) Act, 1914 (4 & 5 Geo. Sc. 42).

12. Merchant Shipping (Salvage) Act, 1916 (7 & 7 Geo. 5 c. 41).

13. Merchant Shipping (Wireless Telegraphy) Act, 1919 (9 & 10 Geo. 5 c. 38).

14. Merchant Shipping Act, 1921 (11 & 12 Geo. 5 c. 28).

15. Merchant Shipping Acts (Amendment) Act, 1923 (13 & 14 Geo. 5 c. 40).

16. Merchant Shipping (Equivalent Provisions) Act, 1925 (15 & 16 Geo. 5 c. 37).

17. Merchant Shipping (Safety and Load Line Conventions) Act, 1932 (22 & 23 Geo. 5 c. 9).

18. Merchant Shipping Act. 1937 (1 Edw. 8 & 1 Geo. 6 c. 23).

19. Merchant Shipping (Superannuation Contribution) Act, 1937 (1 Geo. 6 c. 4).

20. Merchant Shipping (Salvage) Act, 1940 (3 & 4 Geo. 6 c. 43).

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RGN Dated- 08-10-2025

THE PAKISTAN TELECOMMUNICATION (RE-ORGANIZATION) ACT, 1996

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51. [*Omitted*]

52. Application of Trusts Act, 1882

53. Winding-up of the Trust

CHAPTER VIII

MISCELLANEOUS

54. National Security

55. Liability of the Federal Government

56. [*Omitted*]

57. Power to make rules

58. Ordinance to override other laws

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THE PAKISTAN TELECOMMUNICATION (RE-ORGANIZATION) ACT, 1996

[13th October, 1996]

ACT No. XVII OF 1996

An Act to provide for re-organisation of telecommunication system

WHEREAS it is expedient to provide for re-organisation of telecommunication system in Pakistan by establishing the Pakistan Telecommunication Authority, the Frequency Allocation Board, National Telecommunication Corporation and the Pakistan Telecommunication Employees Trust, regulation of telecommunication industry, transfer of telecommunication services to private sector and for matter connected therewith or incidental thereto ;

It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Telecommunication (Re-organisation) Act, 1996.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act unless there is anything repugnant in the subject or context,–

[1][(a) "Access Promotion Contribution (APC)" means the payments made by LDI Licensees to LL Licensees or to the Universal Service Fund pursuant to the rules made under this Act;]

[1][(ab) "appropriate Government" means—

(i) in relation to a right of way owned or managed by any person, local authority within its territory, corporations or other public bodies created by or under any provincial law, the respective Provincial Government; and

(ii) in relation to any, right of way owned or managed by any person, local authority not within any province or corporation or other bodies created by or under any Federal law, the Federal Government;

(ac) "Approved Crypto Apparatus" means the hardware or software or combination of both, or the ciphering facilities, used for conversion of plain text into cypher text and *vice versa* and of which Federal Government has granted approval and the Electronic Certification Accreditation Council established under section 18 of the Electronic Transaction Ordinance, 2002(LI of 2002), has granted accreditation certificate for its use for private sector;

[1]Subs & ins by Act No. II of 2006, s. 2

(ad) "Authority" means the Pakistan Telecommunication Authority established under section 3;]

(b) "basic telephone service" means the provision of any telecommunication service which consists of—

(i) two-way live voice telephone service, in digital form or otherwise, over any public fixed switched network or between base stations or switches or modes of any public mobile switched network;

(ii) real-time transmission or reception of facsimile images over a public fixed switched network;

(iii) international telephony service; and

(iv) the lease of circuits for the provision of the services specified in sub-clauses (i), (ii) and (iii);

(c) "Board" means Frequency Allocation Board established under section 42;

(d) "Company" means the Pakistan Telecommunication Company Limited established and incorporated in accordance with section 34;

(e) "Corporation" means the Pakistan Telecommunication Corporation established under the Pakistan Telecommunication Corporation Act, 1991 (XVIII of 1991);

(f) "effective date" for the Authority, Board, Company, National Telecommunication Corporation, or the Trust means the date on which property, right and liabilities of the Corporation are vested under section 35 in the Authority or, as the case may be, Board, Company, National Telecommunication Corporation or the Trust;

[1][(fa) "Federal Government" means the Federal Government in the Ministry of Information Technology and Telecommunication Division, unless for any specific purpose specified otherwise by notification in the official Gazette notification or amendment in the Rules of Business, 1973;]

(g) "intelligence" means any speech, sound, data, signal, writing, image or video;

(h) "licence" means an authorization granted by the Authority for the establishment, operation or maintenance of any telecommunication system or provision of any telecommunication service;

(i) "international telephony service" means any direct or indirect telecommunication service, whether or not in digital form, conveyed by any means between a point in Pakistan and a point in another country, other than radio/broadcasting or television broadcasting;

(j) "licencee" means the grantee or holder of a licence;

[1]Ins by Act No. II of 2006, s. 2

(k) "network termination point" means any point of termination on a telecommunication system at which terminal equipment may be connected;

(l) "National Telecommunication Corporation" means the corporation to be established under section 41;

(m) "prescribed" means prescribed by rules made under this Act;

[1][(ma) "Private Right of way" means the right of way which is owned, managed, maintained or repaired by anyone other than a public authority;

(mb) "Public Authority", in relation to right of way, means the local authority, corporation, provincial or Federal Government or any other public body which owns that right of way or which is responsible for its maintenance, repair or management;

(mc) "Public Right of way" means the right of way which is owned, managed, maintained or repaired by a public authority;]

(n) "public switched network" means a telecommunication system which allows intelligence to be switched between members of the public;

(o) "public fixed switched network" means any public switched network other than a public mobile switched network;

(p) "public mobile switched network" means a public switched network using wireless [1][intelligence] where the terminal equipment used for the emission or reception of intelligence may be connected to the network [1][could be] used while in motion;

(q) "regulations" means the regulations made under this Act;

[1][(qa) "R&D Fund" means the Research and Development Fund established under sub-section (1) of section 33C;

(qb) "Right of Way" means a right belonging to any person or public authority to pass over land or property of other person to provide telecom license services;

(qc) "scarce resources" means radio frequency spectrum, right of way and numbering;]

(r) "telecommunication equipment" means switches, equipment, wires, cables, apparatus, poles, structures, ducts, man-holes and other tangible property, software and data, other than terminal equipment, comprising any telecommunication system or used in connection with any telecommunication service;

(s) "terminal equipment" means any apparatus directly or indirectly connected to any network termination point and used for sending, processing or receiving intelligence;

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[1]Ins & subs. by Act No. II of 2006, s. 2.

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(t) "telecommunication employees" means the employees of the Corporation who are transferred to the employment of the Company under this Act, other than those to whom sub-section (3) of section 36 applies, and all persons, who, on the effective date for the Company, were employees of the Corporation, the former Telegraph and Telephone Department of the Federal Government and are receiving, or are entitled to receive, pensionary benefits from the Corporation;

(u) "telecommunication system" means any electrical, electro-magnetic, electronic, optical or optio-electronic system for the emission, conveyance, switching or reception of any intelligence within, or into, or from, Pakistan, whether or not that intelligence is subjected to re-arrangement, computation or any other process in the course of operation of the system, and includes a cable transmission system, a cable television transmission system and terminal equipment;

(v) "telecommunication service" means a service consisting in the emission, conveyance, switching or reception of any intelligence within, or into, or from, Pakistan by any electrical, electro-magnetic, electronic, optical or optio-electronic system, whether or not the intelligence is subjected to re-arrangement, computation or any other process in the course of the service;

[2][(va) **"Tribunal"** means the Telecommunication Appellate Tribunal established under section 7A.]

(w) "Trust" means the Pakistan Telecommunication Employees Trust established under section 44;

(x) "trustees" means the board of trustees of the Trust;

[1][(xa) "USF" means the Universal Service Fund established under sub-section (1) of section 33A;]

(y) "video" means any visual images which are such that sequences of them may be seen as moving images;

(z) "wireless telegraphy apparatus" shall have the same meaning as assigned to it in The Wireless Telegraphy Act, 1933 (XVII of 1933).

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CHAPTER II

PAKISTAN TELECOMMUNICATION AUTHORITY

3. Establishment of Pakistan Telecommunication Authority.–(1) As soon as may be, after the commencement of this Act, the Federal Government shall, by notification in the official Gazette, establish an authority to be known as the Pakistan Telecommunication Authority which shall be a body corporate, having perpetual succession and a common seal with powers, subject to the provisions of this Act, to acquire and hold property, both movable and immovable, and to sue and be sued by its name.

[1]Ins by Act No. II of 2006, s. 2.
[2]Ins. by Act No. XXV of 2024, s. 2

(2) The Authority shall consist of three members one of whom shall be a professional telecommunication engineer and other shall be a financial expert, to be appointed by the Federal Government for a term of four years and shall be eligible for appointment for a similar term or terms [1][:].

[1][Provided that the Federal Government may increase the number of members of the Authority and prescribe their qualifications and mode of appointment.]

(3) The Federal Government shall, from amongst the members appointed under sub-section (2), appoint a member to be the Chairman of the Authority.

(4) A member of the Authority shall not have any direct or indirect financial interest in, or have business connection with any person, any establishment or firm which renders telecommunication services in Pakistan or abroad or supplies telecommunication equipment to any telecommunication sector in Pakistan or abroad.

Explanation.— For the purpose of this sub-section, any involvement of the spouse or any blood relation of any member of the Authority with any telecommunication establishment or firm shall be considered as a direct financial interest or connection of the member with such establishment or firm.

(5) A member of the Authority may resign from his office by writing in his hand addressed to the Federal Government, or may be removed from his office if, on an inquiry by the Federal Public Service Commission, he is found unable to perform the functions of his office because of mental or physical disability or misconduct, including corruption and dishonesty.

(6) In case of death, resignation or removal of a member of the authority, another person may be appointed as such member for the term specified at sub-section (2).

[1][(7) The member of the Authority shall be paid the salary and shall be entitled to the privileges of an officer in MP-II and the Chairman shall be paid the salary and be entitled to the privileges of an officer in MP-I.]

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[1][(8) The powers of the Authority in the matters relating to its administration and the staff of the Authority shall be exercised by the Chairman, including those mentioned in section 10, in accordance with regulations made by the Authority pursuant to sub-section (3) of section 10 and other relevant regulations made by the Authority from time to time.]

(9) The decision of the Authority shall, subject to sub-section (8), be taken with the concurrence of the majority of its members.

[1][(10) Notwithstanding anything contained in sub-section (8), no act, proceeding or any decision of the Authority shall be invalid by reason only of the existence of a vacancy in, or a defect in the constitution of, the Authority.]

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[1]Subs. and added by Act No. II of 2006, s. 3.

4. Functions of the Authority.— (1) The Authority shall—

(a) regulate the establishment, operation and maintenance of telecommunication systems and the provision of telecommunication services in Pakistan;

(b) receive and expeditiously dispose of applications for the use of radio-frequency spectrum;

(c) promote and protect the interests of users of telecommunication services in Pakistan;

(d) promote the availability of a wide range of high quality, efficient, cost effective and competitive telecommunication services throughout Pakistan;

(e) promote rapid modernization of telecommunication systems and telecommunication services;

(f) investigate and adjudicate on complaints and other claims made against licensees arising out of alleged contraventions of the provisions of this Act, the rules made and licences issued thereunder and take action accordingly;

(g) make recommendations to the Federal Government on policies with respect to international telecommunications, provision of support for participation in international meetings and agreements to be executed in relation to the routing of international traffic and accounting settlements; [1][*]

(h) perform such other functions as the Federal Government may, from time to time, assign to it [;][1]

[1][(i) regulate arrangements amongst telecommunication service providers of sharing their revenue derived from provision of telecommunication service;

(j) ensure effective compliance by licensees with Universal Service Obligations;

(k) regulate Access Promotion Contribution;

(l) settle disputes between licensees; and

(m) regulate competition in the telecommunication sector and protect consumer rights.]

5. Powers of the Authority. — (1) The Authority shall exercise all powers as shall enable it to effectively perform its functions specified in section 4.

(2) In particular, and without prejudice to the generality of the foregoing power, the Authority shall—

[1]Omitted, subs. and added by Act No. II of 2006, s. 3

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(a) grant and renew licences for any telecommunication system and any telecommunication service on payment of such fees as it may, from time to time specify;

(b) monitor and enforce licences;

(c) receive applications for the use of radio frequency spectrum and, subject, where applicable, to grant of licences under clause (a), refer such applications to the Board for assignment of spectrum within a period of thirty days;

(d) modify licences or conditions thereof in accordance with section 21 or section 22;

(e) establish or modify accounting procedure for licences and regulate tariffs for telecommunication service in accordance with sections 25 and 26;

(f) regulate the transfer of licences;

(g) prescribe standards for telecommunication equipment and terminal equipment, certify compliance of such equipment with prescribed standards, and issue approvals of terminal equipment and of approved installers under section 29;

(h) provide guidelines for, and determine, the terms of inter-connection arrangements between licensees where the parties to those arrangements are unable to agree upon such terms;

(i) carry out inspections of telecommunication equipment and any premises owned or occupied by the licensees and summon any person for investigation and an enquiry;

(j) appoint an Administrator in circumstances provided in section 23;

(k) develop national telecommunication numbering plans;

(l) collect information with respect to telecommunications within and outside Pakistan and review the impact thereof;

(m) enter into contracts;

(n) acquire, lease, encumber, dispose of, exchange, vest or otherwise deal with any movable or immovable property or any interest therein; [*][1]

[1]Omitted by Act No. II of 2006, s, 5.

(o) issue regulations for exercising its powers and performance of its functions [1][;]

[1][(p) levy fee and other charges at such rates and in respect of such services as may be fixed by it from time to time not exceeding the limits as specified by a Committee of the Cabinet;

(q) regulate the allocation of revenues from international telephony service, other than revenues from leased circuits, between interconnecting licensees that handle international telephony service and between any such licensee; and

(r) if it considers it appropriate to do so, undertake an auction, on such terms and conditions as the Authority may determine from time to time, or other open and transparent competitive process to determine eligibility for licensing the Board's allocated or assigned specific portions of the radio frequency spectrum.]

6. Responsibilities of the Authority.—In exercising its functions and powers under this Act, the Authority shall ensure that—

(a) rights of licensees are duly protected;

(b) all of its decisions and determinations are made promptly, in an open equitable, non-discriminatory, consistent and transparent manner;

(c) all applications made to it are disposed of expeditiously;

(d) the persons affected by its decisions or determinations are given a due notice thereof and provided with an opportunity of being heard:

[1][(e) fair competition in the telecommunication sector exists and is maintained; and]

(f) the interests of users of telecommunication services are duly safeguarded and protected.

[2]**[7. Appeals.**—(1) A person aggrieved by any decision or order of the Authority, on the ground that it is contrary to the provisions of this Act, may, within thirty days of the receipt of such decision or order, prefer an appeal to the Tribunal and the Tribunal shall decide such appeal within ninety days.]

(2) A person aggrieved by any decision or order of any officer of the Authority acting under the delegated powers of the Authority may, within thirty days of the receipt of the decision or order, appeal to the Authority in prescribed manner and the Authority shall decide such appeal within thirty days.

[2][(3) No suit or other legal proceedings shall be brought in any civil court or court exercising power of the civil court against any order, decision, notice issued by the Authority under this Act or in respect of any matter which falls within the jurisdiction of the Tribunal and to determine and to adjudicate. Any civil court or court exercising power of civil court shall not grant injunction in respect of any action taken or intended to be taken by the Tribunal in pursuance of its jurisdiction.]

[1][* * * * * * *]

[1]Subs. added and omitted by Act No. II of 2006, ss. 5, 6 and 7.
[2]Subs. and added by Act No. XXV of 2024, s. 3

[1]**[7A. Establishment of the Tribunal.**—(1) The Federal Government shall, by notification in the official Gazette, establish Tribunal for the purpose of exercising jurisdiction under this Act and the Prevention of Electronic Crime Act, 2016 (XL of 2016), [and] the Tribunal consist of following three members:—

(a) No person shall be appointed as a chairperson of the Appellate Tribunal unless he

(i) has been a Judge of a High Court; or

(ii) is or has been an advocate having for a period of not less than fifteen years' active practice of conducting cases before a High Court;

(b) one member with masters level professional degree in electrical, electronics, telecommunications, information and communication technology or information security or other related subjects with at least ten years of relevant experience including at least five years experience at senior management level in the public or private sector; and

(c) one member with master's level professional degree in finance, commerce, economics, charted accountancy or other related subject with at least ten years of relevant experience including at least five years experience at senior management level in the public or private sector.

(2) The Federal Government may increase or decrease the number of members of the Tribunal and prescribe their qualification and mode of appointment of the new-members.

(3) The Tribunal shall be assisted by such officers and other staff members as may be appointed by the division to which business of the Tribunal stands allocated and their terms and conditions of service shall be regulated in accordance with the Civil Servant Act, 1973 (LXXI of 1973) and rules made there under.

(4) The Tribunal shall, for the purposes of hearing and deciding appeal under this Act and the Prevention of Electronic Crime Act, 2016 (XL of 2016), have the same powers as are vested in a civil court trying a suit under the Code of Civil Procedure, 1908 (Act V of 1908), in respect of—

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) requiring the discovery and production of documents and material objects

(c) receiving evidence on affidavits; and

(d) issuing commissions for examination of witnesses and documents.

(5) The Chairperson and members of the Tribunal shall be appointed by the Federal Government in the prescribed manner.

(6) The Chairperson and members shall hold office for a period of four years and shall be eligible for re-appointment for a similar term or terms and shall cease to hold office on attaining the age of sixty-eight years or on the expiry of the term, unless renewed, whichever is earlier.

Ins. by Act No. XXV of 2024. s. 4

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(7) A person shall not be appointed as Chairperson or a member, or remain as Chairperson or such member, of the Tribunal unless he—

(a) is a citizen of Pakistan;

(b) is not of the age exceeding sixty-four years on the date of his appointment;

(c) has not been declared by a competent court of law as un-discharged insolvent or his petition for the same is not pending adjudication;

(d) has not been declared by a competent court of law of un-sound mind or insane;

(e) has not been convicted by a competent court of law for an offence, involving moral turpitude, fraud, dishonesty or corruption;

(f) is not incapable of dis-charging his duties by reasons or physical or mental un-fitness and has not been so declared by a duly constituted medical board; and

(g) is not, or while appointed as member does not become, an officer or a director of a company.

(8) The Chairperson and members shall disclose the conflict of interest, direct or indirect, at or within the time provided for such disclosure under this Act and the Pervention of Electronic Crime Act, 2016 (XL of 2016).

(9) Where a retired Judge of a High Court is appointed as chairperson, he shall be entitled to the salary, perks, and privileges as were last drawn by him as such Judge.

(10) Where an advocate is appointed as chairperson, he shall be entitled to the salary, perks and privileges as are admissible to a person appointed in MP-I scale of the Federal Government.

(11) The members shall be entitled to the salary, perks and privileges as are admissible to a person appointed in MP-I scale of the Federal Government.

(12) The chairperson or a member may by writing under his hand addressed to the Federal Government with a notice it not less than thirty days resign from his office and shall continue to perform his duties till acceptance of his resignation.

(13) The Federal Government for the purpose of practice and procedure of the Tribunal may, from time to time, by notification in the official Gazette, prescribe rules.

(14) Until such rules are prescribed under sub-section (13), the Tribunal may adopt the procedure laid down by the Islamabad High Court for filing an adjudication upon first appeal.

(15) Subject to the provision of this Act, the jurisdiction of the Tribunal may be exercised by the bench, or the benches thereof. The Chairperson may constitute or re-constitute a bench or benches accordingly.

(16) The decision of the Tribunal shall be taken with concurrence or by the majority of its members, as the case may-be:

Provided that in case of difference in opinion as to the decision to be given on any point the matter shall be referred to the Chairperson for the constitution of full bench.

(17) All appeals in respect of any mater under jurisdiction of the Tribunal but pending before any High Court immediately before commencement of the Establishment of Telecommunication Appellate Tribunal Ordinance, 2023 (VIII of 2023) shall stand transferred to the Tribunal on said commencement. Where any appeal stands transferred from any High Court to the Tribunal, the High

Court shall within a period of one month of the said commencement, transfer record of such appeal to the Tribunal.

(18) The Chairperson and members of the Tribunal shall be public servants within the meaning of section 21 of the Pakistan Penal Code, 1860 (Act XV of 1860)

7B. Appeal to Supreme Court.—Any person aggrieved by an order of the Tribunal may within sixty days thereof prefer an appeal to the Supreme Court]

8. Powers of the Federal Government to issue policy directives. (1) The Federal Government may, as and when it considers necessary, issue policy directives to the Authority, not inconsistent with the provisions of the Act, on the matters relating to telecommunication policy referred to in sub-section (2), and the Authority shall comply with such directives.

(2) The matters on which the Federal Government may issue policy directives shall be—

(a) the number and term of the licenses to be granted in respect of telecommunication systems which are public switched networks, telecommunication services over public switched networks and international telecommunication services, and the conditions on which those Licenses should be granted; [1][*]

[1][(aa) framework for telecommunication sector development and scarce resources;]

(b) the nationality, residence and qualifications of persons to whom licences for public switched networks may be issued or transferred or the persons by whom licensees may be controlled; and

(c) requirements of national security and of relationships between Pakistan and the Government of any other country or territory outside Pakistan and other States or territories outside Pakistan.

[1][(2A) Notwithstanding anything contained in sub-section (2), the Cabinet, or any committee authorized by the Cabinet, may issue any policy directive on any matter related to telecommunication sector, not inconsistent with the provisions of this Act, and such directives shall by binding on the Authority.]

(3) The Federal Government may, from time to time, call for reports on the activities of the Authority and Board and provide for representation in meetings of international telecommunication organizations.

[1][**9. Delegation of powers.** The Authority may, by general or special order, delegate any of its powers, functions or duties as it may deem fit, from time to time, to the Chairman, member, or any of its officers subject to such conditions as it may deem fit to impose;

Provided that the delegation of such powers, functions or duties shall not include the powers, functions or duties under clause (a), (d), (e), (f), (h), (n) and (o) of section 5.]

10. Appointment of employees. (1) For performance of its functions, the Authority may, from time to time, employ [1][* * *] such persons and on such terms and conditions as it may consider necessary.

(2) Without prejudice to the generality of the foregoing powers, the Authority may—

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[1]Omitted, ins and subs. by Act No. II of 2006, ss. 8, 9 and 10.

(a) appoint and remove its employees and exercise discipline and control over them;

(b) regulate and manage its internal organization, set up divisions within the Authority and make appropriate appointments to those divisions; and

(c) appoint advisory bodies, consultants and advisors on contract to advise the Authority in relation to its functions or powers.

(3) The Authority may make regulations for appointment, promotion, termination and other terms and conditions of employment of its employees.

11. Members and employees. The members and employees of the Authority shall be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

12. Budget statement. (1) The Authority shall, in respect of each financial year, prepare its own budget and submit to the Federal Government three months before the commencement of every financial year for[1][information].

(2) The budget statement shall specifically state the estimated receipts and expenditure and sums which are likely to be required by the Authority from the Federal Government for the relevant financial year.

(3) Any surplus of receipts over the actual expenditure in a year shall be remitted to the Federal Consolidated Fund and any deficit from the actual expenditure shall be made up by the Federal Government.

13. Pakistan Telecommunication Authority Fund.–(1) There shall be a fund to be known as the "Pakistan Telecommunication Authority Fund" which shall vest in the Authority and shall be utilized by the Authority to meet all its expenses and charges in connection with its functions under this Act, including the payment of salaries and other remuneration to its employees.

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(2) The bank accounts of the Pakistan Telecommunication Authority Fund shall be maintained with the National Bank of Pakistan.

(3) The Pakistan Telecommunication Authority Fund shall be financed from the following sources, namely:—

(a) fees and other amounts received by the Authority;

(b) grants from the Federal Government and the Provincial Governments, including an initial grant of fifty million rupees by the Federal Government;

(c) loans obtained from the Federal Government;

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[1] Subs. by Act II No. of 2006, s. 11.

(d) sale proceeds of bonds issued under the authority of the Federal Government; and

(e) loans and foreign aid obtained by the Authority with the approval of the Federal Government.

14. Maintenance of accounts. The accounts of the Authority shall be maintained in such form and in such manner as the Federal Government may determine in consultation with the Auditor-General of Pakistan.

15. Audit.–(1) The accounts of the Authority shall be audited at the close of each financial year by the Auditor-General of Pakistan.

(2) The Authority shall produce such accounts, books and documents and furnish such explanations and information as the Auditor-General or any officer authorized by him in this behalf may require for the purpose of audit.

(3) Copies of the Auditor-General's report on the accounts shall be provided to the Authority and the Federal Government and shall also be available for public inspection.

(4) The Authority may, in addition to the audit under sub-section (1), cause its accounts to be audited by any other external auditors.

16. Authority to be deemed to be a local authority. For the purpose of borrowing money, the Authority shall be a local authority within the meaning of the Local Authorities Loans Act, 1914 (IX of 1914), and any work undertaken in exercise of its powers under this Act shall be deemed to be a 'work' under that Act.

17. Liability of the Federal Government to be limited. The liability of the Federal Government under this Act to the creditors of the Authority shall be limited to the extent of any grants made by it and the loans raised by the Authority with the approval of the Federal Government.

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18. Submission of yearly report, returns, etc.–(1) As soon as possible after the end of every financial year but before the last day of September next following, the Authority shall submit a report to the Federal Government on the conduct of its affairs, including action taken for protection of consumers interests, for that year.

(2) A copy of the report specified in sub-section (1) together with a copy of the audit report referred to in section 15 shall be placed before the National Assembly within three months after the finalization of the audit report by the Auditor General.

(3) The Public Accounts Committee of the National Assembly may scrutinise and examine the reports referred to in sub-section (2) in the same manner as it examines and scrutinises the reports of various Ministries and Divisions of the Federal Government.

(4) For the purpose of carrying on its functions under this Act, the Federal Government may require the Authority to supply any return, statement, estimate, statistics or other information in respect of any matter under the control of the Authority or a copy of any document in the custody of the Authority.

19. [1][* * * * * * *]

CHAPTER III

LICENSING

20. Licensing of telecommunication services.— (1) No person shall establish, maintain or operate any telecommunication system or provide any telecommunication service unless he has obtained a licence under this Act:

Provided that no licence shall be required for—

(a) provision of terrestrial wireless radio broadcasting and Television broadcasting within Pakistan;

(b) the establishment, maintenance or operation of a telecommunication system or the provision of any telecommunication service which does not include or use any wireless telegraphy apparatus and is not connected to any other telecommunication system and where all the telecommunication equipment comprised in the former system is established or provided by a person for his own use and under his own control and is situated either in a single set of premises in single occupation within a single unbroken boundary or in a vehicle, vessel, aircraft or hovercraft ;

(c) the operation by an individual of a telecommunication system which is wholly under his control and all information conveyed by it is solely for his own domestic purposes;

(d) the operation of a telecommunication system or provision of a telecommunication service by the police, national security or armed forces; or

(e) the connection by any person of terminal equipment to a telecommunication system other than a public switched network or for its connection to a public switched network if such equipment is approved for connection to that network; or

(f) national and international telecommunication systems of the Ministry of Foreign Affairs, Intelligence Bureau and Inter-Services Intelligence Directorate of the Government of Pakistan.

(2) No licensee shall establish, maintain or operate any telecommunication system or provide any telecommunication service which is not authorized under the licence.

[1]Omitted by the Finance Act, 1997 (XXII of 1997),s.10.

Explanation. Any breach of this sub-section shall, for the purposes of this Act, the rules or the licence, be treated as a contravention of the conditions of the licence.

21. Exclusive power of the Authority to grant licenses.— (1) All licenses referred to in section 20 shall be granted by the Authority which, in considering any application shall take into account the following factors, namely:—

(a) the technical and financial resources of the applicant;

(b) the public interest and benefits to users of telecommunication services; and

(c) policy directives of the Federal Government issued under section 8 above.

(2) A licence granted by the Authority under this section may be granted either to a person, class of persons, company or corporation.

(3) [1] [* * * * * * *] [1][No] licence shall confer exclusive rights.

(4) Every licence granted under this Act may, *inter alia,* contain—

(a) conditions requiring the licensee to adhere to the provisions of this Act and the rules and regulations made thereunder;

(b) conditions requiring the licensee to pay the fees for grant or renewal of the licence;

(c) conditions requiring the licensee to allow inspection by the Authority of any premises or telecommunication equipment, wherever situated, and to furnish to the Authority such information as may be required by the Authority;

(d) restrictions as to the types of telecommunication system or telecommunication service to be provided by the licensee, the area and period of operation and the types of telecommunication equipment that may be included in its telecommunication system;

(e) obligation to ensure that only terminal equipment which is approved for connection to the telecommunication system in question is so connected;

(f) obligation to monitor use of the licensed telecommunication service or telecommunication system and to disconnect telecommunication service from any user who, after written notice, misuses it.

[1]Omitted and Subs. by Act No. II of 2006, s. 12.

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(g) obligation to provide telecommunication services to particular persons or areas to meet minimum standards for quality and grade of service requirements;

(h) obligation not to interrupt service except for failure of the customer to comply with his contractual obligations or out of genuine technical necessity or by reason of circumstances to which section 54 applies;

(i) restrictions on the licensee giving undue preference to, or unfairly discriminating against, any person;

(j) restrictions or limitations on transfer or assignment of the licence;

(k) conditions relating to the preservation or the transfer or disposition of telecommunication equipment and other assets used in connection with any public switched network; [1][*]

(l) obligations for protection of consumers interest [1][;]

[1][(m) conditions requiring the licensee to contribute to Research and Development Fund and Universal Service Fund; and

(n) conditions as to the security provided by a licensee to support the fulfillment of the licensee's obligations in the licence, and the realization on such security by the Authority.]

(5) Subject to sub-section (7) and section 39 any person who, on commencement of this Act, holds an authorization, licence or permit validly issued under any law in force on that date for the establishment, maintenance or operation of any telecommunication system or the provision of any telecommunication service shall, unless it is contrary to the provisions of this Act and the rules and regulations made thereunder, be deemed to hold a licence in accordance with the provisions of this Act for a period of twelve months from the commencing date.

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(6) Every person deemed to be a licensee under sub-section (5) shall, within three months from the commencement of this Act, supply to the Authority full details of his authorization, licence or permit, as the case may be, and apply for continuance of the licence under this Act.

(7) Where the Authority, on reviewing the authorization, licence or permit referred to in sub-section (6), is satisfied that such authorization, licence or permit, as the case may be, had been validly issued under the laws, rules or regulations in force at the commencement of this Act, the Authority shall, within nine months of the date of the application made to it, issue an order that the person authorized thereunder, licensee or the permit-holder shall be a licensee under this Act till the expiry of the term of the authorization, licence or permit with such modifications thereto as the Authority may consider appropriate.

(8) If the Authority is not satisfied that an authorization, licence or permit referred to in sub-section (5) was validly issued for any reason, it shall, by an order, direct that the deemed licence shall expire from the date of such order.

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[1]Omitted, subs. and added by Act No. II of 2006, s. 12.

(9) The Authority shall maintain a register of licences, showing applications for licences received, enforcement orders relating to licence issued and details of licences revoked.

(10) The register referred to in sub-section (9) shall be open to public inspection and a person may obtain a copy thereof subject to payment of such fee as may be prescribed by regulations.

22. Modification of licence conditions.— (1) Subject to sub-section (2), the Authority shall have the right to modify a licence or its conditions with the consent of the licensee[1][.]

[1][* * * * * * *]

[1][(2) If the Authority and a licensee cannot agree to modification proposed by the Authority to a licence condition, the Authority and the licensee shall resolve their difference or dispute through consultation and negotiation. If the licensee and the Authority fail to amicably resolve such difference or dispute, either party may make an application to the High Court or a Tribunal established by the Federal Government for the purpose and the [2][Tribunal which shall exercise jurisdiction to adjudicate and settle all matters connected therewith and in exercise of such jurisdiction, the Tribunal] shall follow the procedure, as nearly as possible, as provided in the Code of Civil Procedure, 1908 (Act V of 1908):

Provided that no such amendment shall vary the tenure or scope of a licence.]

[1][(3) After the expiry of the initial or renewed term, the licence may be renewed on terms and conditions consistent with the policy directive, if any, of the Federal Government at the relevant time.]

23. Issue of enforcement orders and penalties.—(1) Where a licensee contravenes any provision of this Act or the rules made thereunder or any term or condition of the licence, the Authority [2][or any of its officers not below the rank of Director] may by a written notice require the license to show cause within thirty days as to why an enforcement order may not be issued.

(2) The notice referred to in sub-section (1) shall specify the nature of the contravention and the steps to be taken by the licensee to remedy the contravention.

(3) Where a licensee fails to—

(a) respond to the notice referred to in sub-section (1); or

(b) satisfy the Authority [1][or any of its officer not below the rank of Director] about the alleged contravention; or

(c) remedy the contravention within the time allowed by the Authority [1][or any of its officers not below the rank of Director], the Authority [1][or any of its officers not below the rank of Director] may, by an order in writing and giving reasons—

(i) levy fine which may extend to three hundred and fifty million rupees; or

(ii) suspend or terminate the licence, impose additional conditions or appoint an Administrator to manage the affairs of the licensee, but only if the contravention is grave or persistent.

(4) Without prejudice to the provisions of sub-section (1) and sub-section (3), the Authority [1][or any of its officers not below the rank of Director] may, by an order in writing, suspend or terminate a licence or appoint an Administrator, if the licensee—

[1]Subs, omitted, added and ins. by Act No. II of 2006, ss.13 and 14.
[2]Subs. by Act No. XXV of 2024, s. 5

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(a) becomes insolvent or a receiver is appointed in respect of a substantial part of the assets;

(b) being an individual, become insane or dies.

Explanation. For the purpose of this section, the Administrator shall be appointed from amongst the persons having professional knowledge and experience of telecommunication.

[1][**23A. Fines and penalties to be credited to the Federal Consolidated Fund.—** All fines and penalties recovered by the Authority shall be credited to the Federal Consolidated Fund.]

24. Powers of Administrator.−(1) An Administrator appointed under sub-section (3) or sub-section (4) of section 23 shall have such powers relating to the management of the licensee, the preservation of assets and for the purpose of remedying any contravention of the conditions of any licence and for ensuring compliance with any orders issued by the Authority as may be prescribed.

(2) Having satisfied that the contravention leading to the appointment of Administrator has been remedied or the order of the Authority has been complied with the Authority shall withdraw the order appointing the Administrator and the Administrator shall forthwith hand over the management of the licensee to the person from whom such management was taken.

(3) The Authority or the Administrator shall not be liable for any loss or damages caused by any act or omission of the Administrator undertaken in good faith.

25. Accounting procedures, investments and contracts.—(1) The Authority may require any licensee to establish and maintain specified accounting procedure in order to enable the Authority to obtain all relevant information required for determining the tariff under section 26 or for exercise any other power of the Authority under section 5.

(2) Accounting procedures once established may only be modified by the Authority after providing reasons and an opportunity of being heard to the licensee.

(3) No licensee shall enter into any agreement or arrangement which is inconsistent with any obligation of the licensee under this Act, the rules or any condition attaching to its licence; and any such agreement or arrangement shall to such extent be void.

26. Tariffs.—The level of tariffs for telecommunication service including basic telephone service shall be regulated by the Authority in accordance with the regulations and the following general principles, namely:—

(a) the regulations shall be made with a view to achieving the greatest possible degree of pricing flexibility and stability compatible with safeguarding and protecting the interests of consumers;

(b) the regulations shall apply equally to comparable providers or users of any regulated telecommunication service;

(c) the criteria used for the establishment of tariff shall regularly be published three months before the criteria is adopted;

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[1] Ins. by Act No. XVII of 2012, s. 11.

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(d) tariffs shall be at a level which provides a reasonable rate of return on investments taking into account the cost of operation; and

(e) there shall be no cross-subsidization of other telecommunication services by basic telephone service.

27. Privileges of licensee of public switched network.−(1) Every licensee of public switched network shall subject to the conditions of the licence, be entitled to such rights and privileges as were available to the Federal Government and the Corporation on the commencing day in respect of telecommunication services and telecommunication system under the Easement Act, 1882 (V of 1882), Telegraph Act, 1885 (XIII of 1885), the Pakistan Telecommunication Corporation Act, 1991 (XVIII of 1991); or any other law for the time being in force.

(2) For the purpose of the Land Acquisition Act, 1894 (I of 1894), acquisition of land or any interest in land by a licensee of a public switched network for the purposes of the licence shall be deemed to be acquisition for a "public purpose".

[1]**[27A.Right of Way.—**(1) For the purpose of the installation or maintenance of its telecommunication equipment or for the purpose of establishing or maintaining its telecommunication system, every licensee shall, subject to the conditions provided in this section and the policy directive issued by the Federal Government under section 8, have the right to share any public Right of Way or Private Right of Way.

(2) In order to enjoy the rights granted by this section, the licensee shall request the owner of such Right of Way to approve the mode of execution of the works it proposes to undertake. If the owner of such Right of Way does not respond to such request within a period of thirty days, such request shall be deemed to have been granted. While granting such request the owner of the Right of Way may impose such conditions as to the payment of fees and the mode or timing of the execution of such work as may be reasonable in the circumstances:

Provided that any right granted by this section shall be exercised equitably, ensuring proper compensation of the owner of Right of Way and the access so provide to the licensee will not adversely affect the owner of the Right of Way.

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(3) The licensee shall exercise the powers conferred by this section in such a manner as to cause minimal interference of the enjoyment of the Right of Way by the owner or other users thereof and if no fee are to be paid by the licensee to the owner of Right of Way, the licensee shall make reasonable reparation to the owner of such Right of Way.

(4) The fee payable by a licensee to a public Authority, for the use of a Public Right of Way, shall be such reasonable amount as is assessed by the Public Authority after taking all relevant factors into consideration, including the laws applicable to the Public Authority and the relevant laws applicable in the district in which such Right of Way is situated.

[1]Ins. by Act No. II of 2006, s. 15.

(5) In consideration of the use of Private Right of Way, the licensee shall pay such fee to the owner of such Private Right of Way as may be mutually agreed between the licensee and such owner or in the absence of such agreement, such reasonable amount as may be demanded by the owner of such Private Right of Way.

(6) In the event of a dispute as to the refusal by the owner of a Right of Way to allow a licensee to exercise its powers under this section or the reasonableness of any condition imposed by the owner of the relevant Right of Way, the same shall be referred, by an application, to the appropriate Government who shall decide the matter referred to it within a period of sixty days.

(7) The appropriate Government shall nominate any officer not below the rank of Secretary to act on behalf of the appropriate Government under this section through a notification in the official Gazette within sixty days of the commencement of the Pakistan Telecommunication (Re-organization) (Amendment) Act, 2006.]

28. National standards.—(1) The Authority may, with the approval of the Federal Government, notify regulations for establishing national standards for telecommunication equipment:

Provided that the Authority may specify differerence standards for different classes of telecommunication equipment and may establish procedure for testing thereof:

Provided further that subject to the national standards established under this sub-section and the conditions of the licence, the Authority shall not restrict the type of telecommunication equipment that may be used for the establishment, maintenance or operation of telecommunication systems or the provision of telecommunication services.

(2) In determining the standards referred to in subsection (1), the Authority shall have regard to the need for a safe, modern and efficient telecommunication environment and interoperability of network.

29. Terminal equipment and approved installers.—(1) No terminal equipment shall directly or indirectly be connected to a public switched network unless it has been approved by the Authority or an agency appointed by the Authority in this behalf subject to such conditions as it may impose, including conditions limiting its connection to specified types of telecommunication systems.

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(2) The Authority may, by regulations, specify technical standards for terminal equipment and procedure for approving test equipment and for testing any terminal equipment and to certify that it complies with the relevant technical standards.

(3) No person may install any telecommunication equipment as part of, or connect terminal equipment (other than by a plug-into-socket connection) to any public switched network except in accordance with regulations made by the Authority.

(4) The Federal Government may make rules requiring manufacturers, importers and dealers in terminal equipment to mark such equipment and indicate in advertising therefor whether or not the terminal equipment is approved for connection to a public switched network.

(5) The Authority shall maintain a register of all terminal equipment and installers thereof approved under this section acid shall be open to public inspection.

30. Recovery of arrears, etc. All fees, fines or other amounts due or payable to the Authority may be recovered as arrears of land revenue.

31. Offences and penalties.— (1) Whoever—

(a) establishes, maintains or operates a telecommunication system or telecommunication service or possesses any wireless telegraphy apparatus or carries on any other activity in contravention of this Act or the rules or regulations made thereunder, the Wireless Telegraphy Act, 1933 (XV of 1933), or the conditions of a licence;

(b) knowingly or having reason to believe that any telecommunication system or telecommunication service has been established or is maintained or is being operated in contravention of this Act, transmits or receives any intelligence by means thereof, or performs any service incidental thereto;

(c) dishonestly obtains any telecommunication service, with the intent to avoid payment of a charge applicable to the provision of that service;

(d) unauthorisedly transmits through a telecommunication system or telecommunication service any intelligence which he knows or has reason to believe to be false, fabricated, indecent or obscene;

(e) engaged in the operation of a public switched network otherwise than in the course of his duty intentionally modifies or interferes with the contents of a message sent by means of that network;

(f) prevents or obstructs the transmission or delivery of any intelligence through a telecommunication system or telecommunication service;

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(g) intercepts, acquaints himself with the contents of any intelligence or unauthorisedly discloses to any person the contents of such intelligence;

(h) commits mischief;

(i) damages, removes, interferes or tampers with any telecommunication equipment;

(j) unauthorisedly deciphers the contents of any message transmitted over a public switched network;

(k) assaults or intentionally obstructs a person engaged in the operation of a public switched network or the establishment, maintenance or operation of telecommunication services over a public switched network or intentionally obstructs the course of business of that person;

(1) intentionally contravenes the rules made under subsection (4) of section 29:

(m) intentionally obstructs an officer of the Authority or the Board in the exercise of his functions or powers under this Act in relation to the inspection of ally premises or telecommunication equipment or who, after ten days written notice, fails or refuses without due cause to provide any information which the Authority or the Board is entitled to obtain under this Act or the rules or regulations made thereunder [1][*]

[1][(n) makes unauthorized use of radio frequency spectrum where authorization from the Board is required.]

shall be guilty of an offence under this Act.

(2) Every offence specified in sub-section (1) shall be punishable with imprisonment which may extend to [1][three] years, or with fine which may extend to ten million rupees. or with both.

(3) Whosoever conspires to commit or attempts to commit or aids or abets the commission of any offence punishable under this Act shall be liable to same punishment as is provided in subsection (2).

(4) Where the Court imposes fine under subsection (2), it may direct that whole or any part thereof shall be paid to the person who has suffered any mental or monetary loss because of commission of any offence specified in subsection (1).

(5) No Court shall take cognizance of any offence punishable under this Act except on a complaint in writing by an officer authorized by the Authority or the Board.

(6) Where the accused is a Company registered under the Companies Ordinance, 1984 (XLVII of 1984), every Executive Director, Chief Executive, Principal Officer and Secretary of such Company shall be liable to the punishment specified in subsection (2) and the summons for the trial of the case shall be served on the Chief Executive, Principal Officer or the Secretary of that Company in accordance with the provisions of the Code of Criminal Procedure, 1898 (Act V of 1898).

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32. Warrants for search.— (1) Where on information furnished by the Authority or Board, the Court has reason to believe that any unlicensed telecommunication system, wireless telegraphy apparatus or unapproved terminal equipment [1][or unapproved crypto apparatus] is being kept or concealed or any unlicenced telecommunication service is provided, [1][or any lincensed service is being used against the interest of national security and public safety] it may issue a search warrant; and the person to whom such warrant is directed, may enter the premises, vessel, aircraft, or hovercraft [1][or place] where such telecommunication system, wireless telegraphy apparatus or terminal equipment [1][or crypto apparatus] is allegedly kept or concealed or unlicensed telecommunication service is provided [1][or any licensed service being used against the interest of national security and public safety] therefrom carry out search and inspection thereof and seize such telecommunication system, wireless telegraph apparatus or terminal equipment [1][or crypto apparatus].

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[1]Omitted, added, subs and ins. by the Act No. II of 2006, ss.16 and 17.

(2) Any telecommunication equipment, wireless telegraphy apparatus or terminal equipment seized under subsection (1) having no ostensible owner shall vest to the Authority, or as the case may be, the Board.

33. Indemnity. No suit, prosecution or other legal proceedings shall lie against the Authority or any member or employee of the Authority in respect of anything done or intended to be done by the Authority in good faith under this Act.

[1][CHAPTER III A

SPECIAL FUNDS

33A. Establishment of USF.—(1) As soon as may be, after the commencement of the Pakistan Telecommunication (Amendment) Act, 2006, the Federal Government shall, by notification in the Official Gazette, establish a Fund to be called the Universal Service Fund hereinafter to as USF.

(2) The USF shall be under the control of the Federal Government and therein shall be credited any sums of money mentioned under sub-section 4.

(3) The balance to the credit of the USF shall not lapse at thhe end of financial year.

(4) The USF shall consist of—

(a) grant made by the Federal Government and the Provincial Governments;

(b) prescribed contribution by licensees;

[2][* * * * * * *]

(d) loans obtained from the Federal Government; and

(e) grants and endowments received from other agencies.

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33B. Administration and utilization of USF.—(1) The Federal Government shall have the power to administer the USF in such manner as may be prescribed.

(2) The USF shall be utilized exclusively for providing access to telecommunication services to people in the un-served, under-served, rural and remote areas and other expenditure to be made and incurred by the Federal Government in managing USF.

(3) The Federal Government shall be responsible for the co-ordination and ensuring timely utilization and release of sums in accordance with the criteria as may be prescribed.

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[1]Ins. by Act No. II of 2006, s. 18

[2]Omitted by finance Act, 2014 (Act No. IX of 2014), s. 5 (*w.e.f* 1-3-2014)

33C. Research and Development Fund.— (1) As soon as may be, after the commencement of the Pakistan Telecommunication (Re-organization) (Amendment) Act,2006, the Federal Government may by notification in the Official Gazette, establish a Fund to be called the Research and Development Fund.

(2) The Research and Development Fund shall be under the control of the Federal Government and therein shall credited any sums of money mentioned under sub-section (4).

(3) The balance to the credit of the Research and Development Fund shall not lapse at the end of the financial year

(4) The Research and Development Fund shall consist of—

(a) grants made by the Federal Government;

(b) prescribed contribution by licensees;

(c) loans obtained from the Federal Government; and

(d) grants and endowments received from other agencies.

33D. Administration and utilization of Research and Development Fund.— (1) The Federal Government shall have the power to administer the Research and Development Fund in such manner as may be prescribed.

(2) The Fund shall be utilized exclusively for prescribed research and development activities in the field related to Information and Communication Technology and other expenditure incurred by the Federal Government in managing Research and Development Fund.

(3) The Federal Government may co-ordinate with relevant entities to ensure timely utilization and release of sums in accordance with the criteria as may be prescribed.

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33E. Audit and public information.—(1) The accounts of USF and Research and Development Funds shall be—

(a) maintained in such form and manner as the Federal Government may determine; and

(b) audited by a chartered Accountant as defined in the Chartered Accountants Ordinance 1961 (X of 1961), and the Auditor-General of Pakistan.

(2) The Federal Government shall, after the end of every financial year, submit to National Assembly the audited annual statement of accounts of both the Funds, together with the report of the Auditor-General of Pakistan.

(3) The Federal Government shall also publish after the end of every year a report on the state of universal service and research and development and on its activities in this regard during that year.]

CHAPTER IV

PAKISTAN TELECOMMUNICATION COMPANY LIMITED

34. Establishment of the Company, etc.— (1) As soon as may be, after the commencement of this Act, the Federal Government shall establish a Company to be known as the Pakistan Telecommunication Company, limited by shares and cause it to be incorporated under the Companies Ordinance, 1984 (XLVII of 1984), with the principal object of provision of domestic and international telecommunication and related services consistent with the provisions of this Act.

(2) The Federal Government shall nominate seven persons to subscribe to the Memorandum and Articles of Association of the Company.

(3) Initially, all shares of the Company shall be issued to, or held in trust for, the President of the Islamic Republic of Pakistan.

(4) The Federal Government may, whenever it thinks appropriate, transfer its shares in the Company to private investors or general public on such terms and conditions and in such manner as it may determine.

(5) No person shall, except and to the extent permitted by the Articles of Association of the Company, control directly or indirectly, the right to cast on a poll ten percent or more of the votes at a general meeting of the Company.

(6) The Federal Government shall, immediately on incorporation of the Company, fix a date by a notice in the official Gazette for election of the Board of Directors of the Company consisting of seven directors in accordance with the provisions of the Companies Ordinance, 1984 (XLVII of 1984):

Provided that, notwithstanding the election of the Board of Directors of the Company, the Board of Directors appointed under section 4 of the Pakistan Telecommunication Act, 1991 (XVIII of 1991), shall continue to function until the effective date for the Company.

35. Vesting of the rights, property and liabilities of the Corporation.— (1) The Federal Government may, by orders, direct that all or any property, rights and liabilities to which the Corporation was entitled or subject to immediately before such orders, and identified therein, shall, on such terms and conditions as the Federal Government may determine, vest in—

(a) the Company;

(b) the National Telecommunication Corporation;

(c) the Authority;

(d) the Trust; or

(e) the Board through the Federal Government,

and become the property, rights and liabilities of the respective entity.

(2) An order issued under sub-section (1) shall specify the employees of the Corporation who shall, as from the effective date of the order, be transferred to and become employees of the entity referred to in the order:

Provided that such order shall not vary the terms and conditions of service of such employees to their disadvantage.

(3) An order issued under sub-section (1) in favour of the Company shall provide for—

(a) the continuation by the Company of the operations and undertaking of the Corporation on the same basis as were carried on immediately prior to the date of the order save in respect of the operations and undertakings to be carried on by the National Telecommunication Corporation pursuant to section 41; and

(b) the dissolution of Corporation as from the effective date of the order.

(4) In consideration of the vesting in the Company of the property of the Corporation, the Company shall issue such securities in the name of the President of the Islamic Republic of Pakistan as the Federal Government may direct.

(5) Unless an order so directs, the property vested under sub-section (1) shall be free from any charge, burden hypothecation or encumbrances to which it may be subject at the effective date of the order.

(6) If any property of the Corporation vests in the Company subject to any charge, burden, hypothecation or encumbrance, the same shall be deemed to be on the assets of the Company and the provisions of section 121 of the Companies Ordinance, 1984 (XLVII of 1984), shall apply to such charge, burden, hypothecation or encumbrances as if it had been created on the assets of the Company on the effective date for the Company.

(7) If any property of the Corporation vests in the National Telecommunication Corporation, the Authority or the Trust subject to any charge, burden, hypothecation or encumbrance, the same shall be the first charge by way of hypothecation in favour of the creditor.

(8) In this section, "property" includes assets, rights and entitlements of every description and nature wherever situated and "liabilities" includes duties, obligations, loans incumbrance, claims and charges of every description and nature (actual or contingent), whether or not they are capable, under any law of Pakistan or of any other State or under any agreement or otherwise, or being vested, transferred or assigned by the Corporation.

(9) No stamp duty shall be payable under any law for the time being in force on or in relation to the transfer or vesting of property of the Corporation under any order issued under subsection (1).

36. Terms and conditions of service of employees.–(1) No person transferred to the Company pursuant to subsection (2) of section 35, hereinafter referred to as "Transferred Employee", shall be entitled to any compensation as a consequence of transfer to the Company:

Provided that the Federal Government shall guarantee the existing terms and conditions of service and rights, including pensionary benefits of the Transferred Employees.

(2) Subject to subsection (3), the terms and conditions of service of any Transferred Employee shall not be altered adversely by the Company except in accordance with the laws of

Pakistan or with the consent of the Transferred Employees and the award of appropriate compensation

(3) At any time within one year from the effective date of the order vesting property of the Corporation in the Company, the Federal Government may, with the prior written agreement of a Transferred Employee require him to be transferred to or revert him back and be employed by the Authority, National Telecommunication Corporation, Trust or the Federal Government on the same terms and conditions to which he was entitled immediately before such transfer.

(4) Subject to proviso to subsection (1) of section 45 on transfer of a Transferred Employee under sub-section (3), the Federal Government shall assume responsibility for his pensionary benefits without recourse to the Pension Fund referred to in that section.

(5) Under the order vesting property of the Corporation in the Company, the Federal Government shall require the Company to assume the responsibility of pensionary benefits of the telecommunication employees and the Company shall not alter such pensionary benefits without the consent of the individuals concerned and the award of appropriate compensation.

37. Special provisions. For the purposes of this Act, the Company shall be exempt from the provisions of sections 62, 77,[1][*] 178, 187, 206 and 235 of the Companies Ordinance. 1984 (XLVII of 1984) and further, notwithstanding anything contained in the Companies Ordinance, 1984 (XLVII of 1984), the Federal Government may, by notification in the official Gazette, exempt the Company from the application of such other provisions of that Ordinance, as may be specified in this regard.

[1][**37A. Company shares deemed validly issued.—** The "A" ordinary shares and "B" ordinary shares issued by the Company shall be deemed to be validly issued in terms of the Companies Ordinance, 1984 (XLVII of 1984)]

38. Exemption from taxes, audit, etc.—(1) The Company shall not, till the 30th June, 1999, be liable to pay any income-tax, super tax or wealth tax on its income, profits or gains.

(2) The value ascribed to the property vested in the Company by the Federal Government under the order made under section 35 shall represent the actual acquisition cost of the property for the purposes of taxation and depreciation.

(3) Notwithstanding anything contained in the Pakistan (Audit and Accounts) Order, 1973 (XXI of 1973), the accounts of the Company shall not be audited by the Auditor-General of Pakistan, but shall be subject to audit in accordance with the provisions of the Companies Ordinance, 1984 (XLVII of 1984)

39. Licence to the Company.— (1) With effect from the effective date for the Company, the Company shall be entitled, until issue of any licence under sub-section (2), to the same authorizations as the Corporation enjoyed immediately prior to that date.

[1]Omitted and ins. by Act No. II of 2006, ss. 19 and 20.

(2) Within six months of the commencing date of this Act, the Authority shall grant a licence to the Company in Pakistan, excluding the Northern Areas, Azad Jammu and Kashmir, for a period of twenty-five years on payment of licence fee determined by the Authority.

(3) No licences to provide basic telephone service shall be issued by the Authority for a period of seven years from the effective date referred to in section 35 vesting property in the Company other than to the National Telecommunication Corporation and the Company.

40. Special Communication Organization. Notwithstanding anything contained in section 39, the telecommunication services within the Northern Areas and Azad Jammu and Kashmir shall be operated by the Special Communication Organization and the Authority shall issue a licence to the Organization accordingly.

CHAPTER V

NATIONAL TELECOMMUNICATION CORPORATION

41. National Telecommunication Corporation.−(1) As soon as may be but not later than thirty days from the commencing day of this [1][Act], the Federal Government shall establish a corporation to be known as the National Telecommunication Corporation which shall be a body corporate, having perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire and hold property, both movable and immovable, and shall sue and be sued by its name.

(2) The National Telecommunication Corporation shall be managed by a Management Board consisting of a Chairman and two other members, to be appointed by the Federal Government.

(3) The Authority shall grant licence to the National Telecommunication Corporation for provision of telecommunication services within Pakistan on a non-exclusive basis only to the armed forces, defence projects, Federal Government, Provincial Governments or such other Governmental agencies or Governmental institutions as the Federal Government may determine; and during the exclusivity period of the Company specified in 'section 39, the National Telecommunication Corporation shall not sell its capacity on the telecommunication system to any person other than such Government agencies or the Company.

(4) The National Telecommunication Corporation shall have the power to—

(a) appoint, promote, remove and exercise discipline and control over its staff;

(b) set-up its internal organizations, including bureaus, divisions or offices and make appointments thereto;

(c) enter into contracts;

[1]Subs. by Act No. II of 2006, s. 21.

(d) acquire, lease, encumber, dispose of, exchange, invest or otherwise deal with any movable or immovable property or any interest therein or thereto; and

(e) levy and collect fee and other charges for the service provided by it at such rates as may be determined by the Federal Government.

(5) For the purpose of its functions, the National Telecommunication Corporation may, subject to regulations made by it providing for procedure of appointment, promotion, termination and terms and conditions of service, employ such persons, as it may consider necessary.

(6) The officers and employees of the National Telecommunication Corporation shall, for the purpose of this Act, be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860), and the Industrial Relations Ordinance, [1][2002 (XCI of 2002)], shall not apply.

(7) The National Telecommunication Corporation shall, in respect of each financial year, prepare its own budget and submit it for the approval of the Federal Government before the 1st June every year.

(8) The budget statement, referred to in subsection (8), shall "specifically state the estimated receipts, current and development expenditure and the sums which arc likely to be required by the National Telecommunication corporation, if any, from the Federal Government for the relevant financial year.

(9) Any surplus of receipts over the actual expenditure in a year shall be remitted to the Federal Consolidated Fund and any deficit from actual expenditure shall be made up by the Federal Government.

(10) There shall be a fund to be known as the "National Telecommunication Corporation Fund" which shall vest in the National Telecommunication Corporation and shall be used by the National Telecommunication Corporation to meet all its expenses and charges in connection with its functions under this Act, including the payment of salaries and other remuneration to its employees.

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(11) The National Telecommunication Corporation Fund shall consist of—

(i) grants made by the Federal Government and the Provincial Governments and Corporation;

(ii) loans obtained from the Federal Government;

(iii) sale proceeds of bonds issued under the authority of the Federal Government;

(iv) loans obtained with the special or general sanction of the Federal Government; and

(v) all other sums received and charges collected by the National Telecommunication Corporation.

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[1]Subs. by Act No. II of 2006, s. 21.

(12) The accounts of the National Telecommunication Corporation shall be maintained in such form and manner as the Federal Government may determine in consultation with the Auditor-General of Pakistan who shall be responsible for audits of the accounts of National Telecommunication Corporation.

(13) For the purpose of audit, the National Telecommunication Corporation shall produce such accounts and books and connected documents and furnish such explanations and information, as the Auditor-General, or any officer authorized by him on this behalf may require.

(14) Copies of the audit report shall be sent to the National Telecommunication Corporation and to the Federal Government and shall also be available for public inspection.

(15) The National Telecommunication Corporation shall comply with any directive issued by the Federal Government or the Public Accounts Committee of the National Assembly for the rectification of an audit objection.

(16) The National Telecommunication Corporation may, in addition to the audit by the Auditor-General, cause its accounts to be audited by internal or other external auditors.

(17) The National Telecommunication Corporation may, with the approval of the Federal Government, by notification in the official Gazette, make regulations for the management and operation of its business and activities.

(18) Notwithstanding anything contained in any other law for the time being in force, the National Telecommunication Corporation shall not, for a period of three years from the date of its establishment, be liable to pay any tax on its income, assets, turnover and sales under the Income Tax Ordinance 1979 (XXXI of 1979), the Wealth Tax Act ,1963 (XV of 1963) and the Sales Tax Act, 1990, and shall, for a similar period be entitled to such exemptions from custom-duties as the corporation was entitled immediately before the establishment of National Telecommunication Corporation.

CHAPTER VI

THE PAKISTAN CODE

FREQUENCY ALLOCATION BOARD

42. Frequency Allocation Board.— (1) The Federal Government shall, by a Notification in the official Gazette, establish a Frequency Allocation Board to take over the functions performed by the Pakistan Wireless Board which shall, from the date of such notification, stand dissolved.

(2) The Board shall be funded by funds provided by the Authority in the prescribed manner.

(3) The Board shall make regulations, with the approval of the Federal Government, governing the manner in which the Board may function and exercise its powers.

43. Powers and functions of the Board. — (1) The Board shall have exclusive authority to allocate and assign portions of the radio frequency spectrum to the Government, providers of telecommunication services and telecommunication systems, radio and television broadcasting operations, public and private wireless operators and others.

(2) The Board shall consist of—

[1][(i) Chairman who shall be appointed by the Federal Government;]

(ii) One Executive Director appointed by the Federal Government, who shall be its Vice-Chairman;

(iii) the Chairman of the Authority; and

(iv) a nominee each of the Ministry of Defence (Corps of Signals), Ministry of Information and Broadcasting and Ministry of Interior [1][,Information Technology and Telecommunication Division and Pakistan Electronic Media Regulatory Authority:]

[1][Provided that the Federal Government may increase the number of members of the Board and may prescribe their qualifications and mode of appointment.]

(3) The Vice-Chairman shall be an employee of the Board who shall devote his full time to the business of the Board and shall not hold any other office or position during his tenure as such Vice-Chairman.

(4) In exercise of its powers under subsection (1), the Board shall be guided by the applicable recommendations of the International Telecommunication Union or any of its standing committees of organizations including the International Consultative Committee on Telecommunication, International Consultative Committee on Radio, the International Frequency Registration Board and other similar international organizations.

(5) Every application for allocation and assignment of radio frequency spectrum shall, in the first instance, be made to the Authority which shall, after such inquiry as it may deem appropriate, refer the application to the Board within thirty days from receipt of such application.

(6) On receipt of application under subsection (5), the Board shall classify the telecommunication services and may allocate or assign specific frequencies to the applicant:

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Provided that the Board shall intimate the applicant status of the application within three months.

(7) The Board may, with the approval of the Federal Government, make regulations, for exercising its powers and performance of its business.

CHAPTER VII

PAKISTAN TELECOMMUNICATION EMPLOYEES TRUST

44. Establishment of the Pakistan Telecommunication Employees Trust.— (1) As soon as may be, after the commencement of this Act, the Federal Government shall, by notification in the official Gazette, establish a trust to be called the Pakistan Telecommunication Employees Trust.

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[1]Subs. and added by Act No. II of 2006, s. 22

(2) The Trust shall be a body corporate, having perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire and hold property, both movable and immovable, and shall sue and be sued by its name.

(3) The Trust shall be managed by a Board of Trustees consisting of six trustees, three to be appointed by the Federal Government and three by the Company, for a period of three years, unless earlier removed by the appointing authority.

(4) The trustees shall be eligible for re-appointment for a similar term or terms specified in subsection (3).

(5) The trustees may appoint—

(a) a Chairman of the Board of Trustees from amongst themselves;

(b) the Manager of the Trust;

(c) an Actuary:

Provided that the first Chairman of the Board of Trustees shall be selected from amongst the trustees appointed by the Federal Government and shall, unless removed on the charges of physical or mental infirmity or misconduct, including corruption and dishonesty remain in the office of Chairman for the first twelve months of his tenure as a Trustee.

(6) A Trustee may resign from his office by writing in his hand addressed to the Board of Trustees.

(7) In case of a vacancy being created due to the death, resignation or removal of a Trustee, the appointing authority referred to in subsection (3) may appoint another person in his place as Trustee for the unexpired term.

(8) The Manager and Actuary of the Trust shall be entitled to such remuneration and perquisites as the Board of Trustees may determine.

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(9) The Board of Trustees may, with the approval of the Federal Government and by notification in the official Gazette, make rules for the management and conduct of business of the Trust.

45. Pension Fund.— (1) The Federal Government shall, by notification in the official Gazette, order that from the effective date, all assets of the Pakistan Telecommunication Corporation Employees Pension Fund as created by a Trust Deed dated, the 2nd April, 1994, hereinafter referred to as the "Pension Fund", and such liabilities as are specified in the notification, shall vest in and shall become the assets and liabilities of the Trust:

Provided that [1][*pro rata*] of the accrued liability determined on the 30th June, 1995, specified in the notification shall be paid to the Federal Government in twelve monthly installments in respect of telecommunication employees or Transferred Employees transferred to the Pakistan Telecommunication Authority, Frequency Allocation Board, National Telecommunication Corporation and Federal Government.

[1]Subs. by Act No. II of 2006, s. 23.

(2) The Company shall contribute to the Pension Fund the amount determined by the Actuary representing the unfunded proportion of the accrued pension liabilities which shall be assumed by the Company from the effective date specified in the order made under section 35.

(3) The Pension Fund shall consist of—

(a) amounts received from the Pakistan Telecommunication Corporation Employees Pension Fund referred to in subsection (1);

(b) contribution to be paid by the Company under subsection (2);

(c) annual contribution to be paid by the Company at the commencement of each financial year;

(d) investments and the profits, gains and other returns accrued on such investments; and

(e) donations and other contributions by individuals or any aid-giving agencies.

46. Functions and powers of the Trust.— (1) For carrying out the purposes of the Trust, the Board of Trustees shall–

(a) take over and assume the liability of the Pension Fund, including contributions of the Company to the Pension Fund;

(b) obtain payment from the Company of the amount determined by Actuary as representing the unfunded proportion of the accrued pension liabilities to be discharged by the Company;

(c) determine, at the commencement of each financial year, the amount to be contributed to the Pension Fund by the Company; and

(d) make provision for the payment of pensions to telecommunication employees to the extent of their entitlement.

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(2) In performance of its functions, the Board of Trustees shall—

(a) have the exclusive right to determine the amounts, if any, payable in respect of pension benefits to the telecommunication employees;

(b) administer and operate the Pension Fund;

(c) specify and certify the requirements to be fulfilled for payments of the pensions to be made from the Pension Fund;

(d) appoint, promote, remove and exercise discipline and control over its employees;

(e) enter into contracts;

(f) acquire, lease, encumber, dispose of, exchange, invest or otherwise deal with any movable or immovable property or any interest therein; and

(g) exercise all such powers as may be necessary or incidental to the performance of any of its functions or the exercise of any of its powers.

(3) The Manager of the Board of Trustees shall be responsible for administrative control of the employees of the Trust and day to day working of the Trust as may be assigned to him by the Board of Trustees.

47. Decision of the Trust, etc.— (1) The decision of the Board of Trustees shall be taken by majority of the votes of the trustees present in a meeting to be called by the Chairman of the Trust:

Provided that such majority votes shall include at least one trustee appointed by the Federal Government and one Trustee appointed by the Company.

(2) All meetings of the Board of Trustees shall be presided over by its Chairman or, in his absence, by another Trustee selected by the trustees amongst themselves. The quorum of the meeting of the Board of Trustees shall be four Trustees out of which two shall represent the Federal Government and the other two by the Company:

Provided that the Chairman of the Board of Trustees shall have no casting vote.

(3) No act or proceeding of the Trust shall be invalid by reason only of the existence of a vacancy in, or a defect in, the constitution of the Board of Trustees.

(4) The Board of Trustees shall, by resolution, determine the procedure for appointment, promotion and termination and other terms of employment of the employees of the Trust.

48. Delegation of Powers. The Board of Trustees may, by a resolution, delegate to any officer of the Trust any of its powers of functions under this Act, subject to such conditions as it may deem fit to impose.

49. Budget.—(1) The Board of Trustees shall, in respect of each financial year, prepare its own budget specifying the estimated receipts and the sums which are likely to be required by the trust for the payments to be made in the relevant financial year.

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(2) Any surplus of receipts over the amount specified in the budget in a financial year shall be credited to the Pension Fund and any deficit from the estimated amount specified in the annual budget shall be made up from the Pension Fund.

50. Audit.–(1) The accounts of the Trust shall be audited at the close of each financial year by independent auditors.

(2) The Trust shall produce such accounts, books and documents and furnish explanations and information as the auditors may require for the purpose of audit.

(3) Copies of the Auditor's report on the accounts shall be furnished to the Federal Government, Company and the Trust.

51. [1][* * * * * * *]

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[1]Omitted by Act No. IV of 1999, s. 26.

52. Application of Trusts Act, 1882.— (1) The provisions of Chapters III, IV, V, VI (other than section 60 thereof, in so far as it provides that a person domiciled abroad is not a proper person for the purposes of that section) and VII of the Trusts Act, 1882 (II of 1882), to the extent not inconsistent with the provisions of this Act, shall apply to the Trust and the Board of Trustees to the same extent that they apply to a trust and "Trustees" as defined in section 3 of the said Act.

(2) For the purposes of the Trusts Act, 1882, the "author of the Trust" shall be the Federal Government and Company, the "Trustees" shall be the Trustees appointed under section 45, "beneficiaries" shall be the telecommunication employees, the "trust property" or "trust money" shall be the Pension Fund, "beneficial interest" shall be the right of the telecommunication employees specified in the rules made under, this Chapter and the "instrument of trust" shall be this Act and such rules.

(3) The accounts of the Trust shall be kept and maintained with the National Bank of Pakistan or such other bank as the Trustees may determine.

53. Winding-up of the Trust.–(1) The Trust shall be wound up by the Federal Government on the recommendation of the Board of Trustees and the certification by the Actuary that no pension payment is required to be made from the Pension Fund.

(2) The balance of the Pension Fund shall, on the winding up of the Trust, be paid to the Federal Government and the Company pro-rata of the assets of the Pakistan Telecommunication Corporation Employees Fund and contributions made from time to time by the Company.

CHAPTER VIII

MISCELLANEOUS

54. National Security.–(1) Notwithstanding anything contained in any law for the time being in force, in the interest of national security or in the apprehension of any offence, the Federal Government may authorise any person or persons to intercept calls and messages or to trace calls through any telecommunication system.

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(2) During a war or hostilities against Pakistan by any foreign power or internal aggression or for the defence or security of Pakistan, the Federal Government shall have preference and priority in telecommunication systems over any licensee.

(3) Upon proclamation of emergency by the President, the Federal Government may suspend or modify all or any order or licences made or issued under this Act or cause suspension of operation, functions or services of any licensee for such time as it may deem necessary:

Provided that the Federal Government may compensate any licensee whose facilities or services are affected by any action under this sub-section.

55. Liability of the Federal Government. The Federal Government shall not be responsible for any loss or damage which may occur as a consequence of any act or omission of a licensee.

56. [1][* * * * * * *]

57. Power to make rules.— (1) For carrying out the purposes of this Act [2][* * *] the Federal Government may, from time to time, by notification in the official Gazette, make rules not inconsistent with this Act.

(2) Without prejudice to the foregoing powers the Federal Government may make rules—

(a) extending the categories of telecommunication systems or telecommunication services for which a licence is not required under section 20;

[2][(ab) the manner in which the USF and Research and Development funds may be administered;

(ac) the criteria based on which sums may be released from USF and Research and Development funds;

(ad) preventing, prohibiting, and remedying the effects of anticompetitive conduct by licensees;

(ae) regulating agreements or arrangements by licensees in respect of international telephony service;

(af) requiring licensees that handle international telephony service to make payments (i) to prescribed categories of licensees that terminate international telephony service calls in Pakistan in form of APC and (ii) to USF in respect of international telephony service calls that prescribed categories of licensees terminate in Pakistan;

(ag) enforcing national security measure in telecommunication sector; and

(ah) regarding lawful interception.]

(b) [3][* * * * * * *]

(c) restricting or prohibiting the use of any public switched network for signalling purposes in circumstances in which charges otherwise payable may be avoided or reduced, or the advertising of means or services for such use.

58. Ordinance to override other laws. The provisions of this Act shall have effect notwithstanding anything contained in the Telegraph Act, 1885 (XIII of 1885), the Wireless Telegraphy Act, 1933 (XVII of 1933), or any other law containing any provision inconsistent to this Act.

59. Repeal and savings.– (1) The Pakistan Telecommunication Corporation Act, 1991 (XVII of 1991), The Pakistan Telecommunication (Re-Organization) Ordinance, 1996 (LXXVII of 1996), and the Ministry of Communications, Government of Pakistan, Notifications numbering 5(4)/95-PTC, dated the 7th August, 1995, are hereby repealed.

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[1]Omitted by Act No. IV of 1999, s. 26.
[2]Omitted and Ins. by Act No. II of 2006, s. 24.
[3]Omitted by Ordinance No. LI of 2002,s. 28.

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(2) Notwithstanding anything contained hereinbefore, all orders made, actions taken, vesting orders or Notifications issued, property, assets and liabilities of the Corporation vested or transferred and the employees of the Corporation transferred to the Pakistan Telecommunication Authority, Frequency Allocation Board, Pakistan Telecommunication Company Limited, National Telecommunication Corporation or Pakistan Telecommunication Employees Trust, under any of the powers conferred or vested under the Pakistan Telecommunication (Re-Organization) Ordinance, 1995 (CXV of 1995), the Pakistan Telecommunication (Re-Organization) Ordinance, 1996 (XXX of 1996), the Pakistan Telecommunication (Re-Organization) Ordinance, 1996 (LXXVII of 1996) shall be deemed always to have been lawfully and validly made, taken, issued, vested or transferred under the provisions of this Act and shall continue to be in force unless amended, varied, withdrawn, rescinded or annulled by a person or authority competent to do so under this Act.

THE PAKISTAN CODE

RGN Date: 19-11-2024

THE PAKISTAN TOURIST GUIDES ACT, 1976

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1. Short title, extent and commencement
2. Definitions
3. Committee
4. Licensing of tourist guides
5. Code of conduct
6. Suspension or cancellation of licence
7. Prohibition to act as a tourist guide
8. Service charges of tourist guides
9. Penalty and procedure
10. Power to exempt
11. Delegation of powers
12. Power to make rules

THE PAKISTAN CODE

THE PAKISTAN TOURIST GUIDES ACT, 1976

ACT No. XXVI OF 1976

[11th *May*, 1976]

An Act to provide for the regulation and control of the profession of tourist guides

WHEREAS it is necessary and expedient to provide for the regulation and control of the profession of tourist guides;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Tourist Guides Act, 1976.

(2) It extends to the whole of Pakistan and applies to all tourist guides wherever they may be.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Committee" means the Tourist Guide Regulatory Committee set up under section 3 ;

(b) "licence" means licence issued under section 4;

(c) "prescribed" means prescribed by rules;

(d) "rules" means rules made under this Act; and

(e) "tourist guide" means a person licensed as such under section 4.

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3. Committee.—(1) As soon as may be after the commencement of this Act, the Federal Government shall set up a committee to be known as the Tourist Guide Regulatory Committee consisting of a Chairman and such other members as the Federal Government may appoint.

(2) The Chairman and other members of the Committee shall hold office during the pleasure of the Federal Government on such terms and conditions as the Federal Government may determine.

(3) The Committee shall perform the following functions, namely:—

(a) advise the Federal Government in the implementation of the provisions of this Act and the rules;

(b) assist the Federal Government in the preparation of the code of conduct for tourist guides; and

(c) such other functions as are in consonance with provisions of this Act and which the Federal Government may entrust to it.

4. Licensing of tourist guides.—(1) Any person operating or intending to operate as tourist guide shall apply to the Federal Government on the prescribed form for grant of a licence.

(2) On receipt of an application under sub-section (1), the Federal Government may, after holding the prescribed tests and on payment of the prescribed fee by the applicant, issue to the applicant, if he qualifies in such tests, a licence in the prescribed form.

(3) The Federal Government shall maintain a register in which the names and addresses of all tourist guides shall be entered.

(4) The licence shall, unless earlier suspended or cancelled under section 6, remain valid for a period of three years and may be renewed after every three years in the prescribed manner on payment of the prescribed fee.

5. Code of conduct.—The Federal Government shall, in consultation with the Committee, prescribe a code of conduct for tourist guides.

6. Suspension or cancellation of licence.—(1) The Federal Government may, after affording a tourist guide an opportunity of showing cause against the action proposed to be taken against him, suspend or cancel the licence of the tourist guide if he—

(a) violates the terms and conditions of the licence; or

(b) violates the code of conduct.

(2) (a) A tourist guide aggrieved by the decision or order under sub-section (1) of an officer or authority other than the Federal Government may prefer an appeal to the Federal Government within the prescribed time and in the prescribed manner and the orders of the Federal Government in such appeal shall be final.

(b) The Federal Government may at any time of its own motion or on an application of any tourist guide aggrieved by any decision or order passed by the Federal Government under this Act or the rules, within the prescribed time and in the prescribed manner, pass such order as it think fit:

Provided that no order against a tourist guide shall be passed unless he has been given an opportunity of showing cause against it and of being heard.

7. Prohibition to act as a tourist guide.—Except as otherwise provided in the Act, no person shall hold himself out or act, as a tourist guide unless he holds a licence.

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8. Service charges of tourist guides.—(1) The Federal Government shall, from time to time by notification in the official Gazette, fix the maximum rates of charges to which a tourist guide shall be entitled for the services rendered by him.

(2) A tourist guide shall not demand from any person to whom he has rendered any service as such any amount in excess of the maximum charges fixed under sub-section (1) for that service.

(3) The guides employed on a fixed salary on a wholetime basis by any travel agency licensed under a law for the regulation and control of the profession of travel and tourist agencies shall not charge any fee from a tourist.

9. Penalty and procedure.—(1) Whoever—

(a) being a person to whom no licence has been issued, or

(b) being a person whose licence has been cancelled or is for the time being suspended,

holds himself out, or acts, as a tourist guide or otherwise contravenes the provisions of this Act or the rules or, being a tourist guide, contravenes the terms or conditions of the licence issued to him or of a notification issued under sub-section (1) of section 8, or violates the prescribed code of conduct, shall be punishable with fine which may extend to five hundred rupees.

(2) Any Magistrate for the time being empowered to try in a summary way the offences specified in sub-section (1) of section 260 of the Code of Criminal Procedure, 1898 (Act V of 1898), may try summarily an offence punishable under this Act in accordance with the provisions of Chapter XXII of that Code.

(3) No court shall take cognizance of an offence punishable under this Act except upon a complaint made in writing by or under the authority of the Federal Government.

10. Power to exempt.—The Federal Government may exempt any class of persons from the operation of all or any of the provisions of this Act, subject to such conditions, if any, as it may deem fit.

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11. Delegation of powers.—The Federal Government may, by notification in the official Gazette, direct that all or any of its powers under this Act shall, under such conditions, if any, as may be specified, be exercisable also—

(a) by an officer or authority subordinate to the Federal Government, or

(b) by a Provincial Government or any Officer or authority subordinate to such Government.

12. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the fees payable for the issue and renewal of a licence;

(b) the form in which an application for a licence is to be made;

(c) the form of the licence;

(d) the code of conduct; and

(e) the conditions to which a licence shall be subject.

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RGN Date: 02-03-2026

THE PARTITION ACT, 1893

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2. Power to Court to order sale instead of division in partition suits
3. Procedure when sharer undertakes to buy
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7. Procedure to be followed in case of sales
8. Orders for sale to be deemed decrees
9. Saving of power to order partly partition and partly sale.
10. Application of Act to pending suits

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THE PARTITION ACT, 1893

[1]Act No. IV OF 1893

[9th March, 1893]

An Act to amend the Law relating to Partition

WHEREAS it is expedient to amend the law relating to partition;

It is hereby enacted as follows :–

1. Title, extents and saving.—(1) This Act may be called the Partition Act, 1893;

[2][(2) It extends to the whole of Pakistan]; *

[3][* * * * * * *]

(4) But nothing herein contained shall be deemed to affect any local law providing for the partition of immoveable property paying revenue to Government.

2. Power to Court to order sale instead of division in partition suits. Whenever in any suit for partition in which, if instituted prior to the commencement of this Act, a decree for partition might have been made, it appears to the Court that, by reason of the nature or the property to which the suit relates, or of the number of the shareholders therein or of any other special circumstance, a division of the property cannot reasonably or conveniently be made, and that a sale of the property, and distribution, of the proceeds would be more beneficial for all the shareholders, the court may, if it thinks fit, on the request of any of such shareholders interested individually or collectively to the extent of one moiety or upwards, direct a sale of the property and a distribution of the proceeds.

3. Procedure when sharer undertakes to buy.—(1) If, in any case in which the Court is requested under the last foregoing section to direct a sale, any other shareholder applies for leave to buy at a valuation the share or shares of the party or parties asking for a sale, the Court shall order a valuation of the share or shares in such manner as it may think fit and offer to sell the same to such shareholder at the price so ascertained, and may give all necessary and proper directions in that behalf.

(2) If two or more shareholders severally apply for leave to buy as provided in sub- section (1), the Court shall order a sale of the share or shares to the shareholder who offers to pay the highest price above the valuation made by the Court.

(3) If no such shareholder is willing to buy such share or shares at the price so ascertained, the applicant or applicants shall be liable to pay all costs of or incident to the application or applications.

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[1]For Statement of Objects and Reasons, *see* Gaz. of India, 1892, Pt V. p. 46; for Report of the Select Committee, *see ibid*., 1893, Pt. V, p. 51 and for Proceeding in Council, *see ibid*., 1893, Pt VI, pp.38 and 49.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th october,1955*), for the original sub-section (2), as amended by A.O., 1949.

[3]The word "and" at the end of sub-section (2), and sub-section (3), rep. by the Repealing and Amending Act, 1914 (10 of 1914), s. 3 .and Sch. II.

4. Partition suit by transferee of share in dewelling house.—(1) Where a share of a dwelling-house belonging to an undivided family has been transferred to a person who is not a member of such family and such transferee sues for partition, the Court shall, if any member of the family being a shareholder shall undertake to buy the share of such transferee, make a valuation of such share in such manner as it thinks fit and direct the sale of such share to such shareholder, and may give all necessary and proper directions in that behalf.

(2) If in any case described in sub-section (1) two or more members of the family being such shareholders severally undertake to buy such share, the Court shall follow the procedure prescribed by sub-section (2) of the last foregoing section.

5. Representation of parties under disability. In any suit for partition a request for sale may be made or an undertaking, or application for leave, to buy may be given or made on behalf of any party under disability by any person authorised to act on behalf of such party in such suit, but the Court shall not be bound to comply with any such request, undertaking or application unless it is of opinion that the sale or purchase will be for the benefit of the party under such disability.

6. Reserved bidding and bidding by shareholder.— (1) Every sale under section 2 shall be subject to a reserved bidding, and the amount of, such bidding shall be fixed by the Court in such manner as it may think fit and may be varied from time to time.

(2) On any such sale any of the shareholders shall be at liberty to bid at the sale on such terms as to non-payment of deposit or as to setting off or accounting for the purchase-money or any part thereof instead of paying the same as to the Court may seem reasonable.

(3) If two or more persons, of whom one is a shareholder in the property, respectively advance the same sum at any bidding at such sale, such bidding shall be deemed to be the bidding of the shareholder.

7. Procedure to be followed in case of sales. Save as hereinbefore provided, when any property is directed to be sold under this Act, the following procedure shall, as far as practicable, be adopted, namely :-

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[1]* * * * * * *

(b) if the property be sold under a decree or order of any other Court, such procedure as the High Court may from time to time by rules prescribe in this behalf, and until such rules are made, the procedure prescribed in the [2][Code of Civil Procedure, 1908 (Act V of 1908)] in respect of sales in execution of decrees.

8. Orders for sale to be deemed decrees. Any order for sale made by the Court under section 2, 3 or 4 shall be deemed to be a decree within the meaning of section 2 of the [2][Code of Civil Procedure, 1908 (Act V of 1908)].

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[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981, (27 of 1981), s. 3 and 2nd Sch.
[2]Subs. *ibid*., for "Code of Civil Procedure.".

9. Saving of power to order partly partition and partly sale. In any suit for partition the Court may, if it shall think fit, make a decree for a partition of part of the property to which the suit relates and a sale of the, remainder under this Act.

10. Application of Act to pending suits. This Act shall apply to suits instituted before the commencement thereof, in which no scheme for the partition of the property has been finally approved by the Court.

THE PAKISTAN CODE

Date: 05-09-2024

UNDER PROOF READING

THE PARTNERSHIP ACT, 1932

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THE PARTNERSHIPACT, 1932

[1]ACT No. IX OF 1932

[8th April, 1932]

An Act to define and amend the law relating to partnership

WHEREAS it is expedient to define and amend the law relating to partnership ;

It is hereby enacted as follows :—

CHAPTER I
PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the [2]* Partnership Act, 1932.

[3][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on the 1st day of October, 1932, except section 69, which shall come into force on the 1st day of October, 1933.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) an "act of a firm" means any act or omission by all the partners, or by any partner or agent of the firm which gives rise to a right enforceable by or against the firm ;

(b) "business" includes every trade, occupation and profession ;

(c) "prescribed" means prescribed by rules made under this Act ;

(d) "third party" used in relation to a firm or to a partner therein means any person who is not a partner in the firm ;and

(e) expressions used but not defined in this Act and defined in the Contract Act, 1872 (IX of 1872), shall have the meanings assigned to them in that Act.

3. Application of provisions of ACT IX of 1872.—The unrepealed provisions of the Contract Act, 1872 (IX of 1872), save in so far as they are inconsistent with the express provisions of this Act, shall continue to apply to firms.

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[1] For Statement of Objects and Reasons and for Report of Special Committee, see Gazette of India, 1931. Pt. V, p. 31; for Report of Select Committee, see ibid., 1932, Pt.V, p. 1.
The Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N. W.F.P., and extended to the Excluded Area of Upper Tanawal (N.W.F.P) other than Phulera with effect from such date and subject to such modifications as may be notified, see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950. It has also been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950) ; and also applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499. This Act has been extended to the Baluchistan States Union, see the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953), as amended by the
Baluchistan States Union (Federal Laws) (Extension) (Second Arndt.) Order, 1953 (G. G. O. 19 of 1953).)

[2] The word "Indian" omitted by A. O., 1949.

[3] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., (with effect from the 14th October, 1955), for the original sub-section (2) as amended by A. O.,1949, and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8.

CHAPTER II
THE NATURE OF PARTNERSHIP

4. Definition of "partnership", "partner", "firm" and "firm name".— "Partnership" is the relation between persons who have agreed to share the profits of a business carried on by all or any of them acting for all.

Persons who have entered into partnership with one another are called individually "partners" and collectively "a firm", and the name under which their business is carried on is called the "firm name".

5. Partnership not created by status.— The relation of partnership arises from contract and not from status ;

and, in particular, the members of a Hindu undivided family carrying on a family business as such, or a Burmese Buddhist husband and wife carrying on business as such are not partners in such business.

6. Mode of determining existence of partnership.— In determining whether a group of persons is or is not a firm, or whether a person is or is not a partner in a firm, regard shall be had to the real relation between the parties, as shown by all relevant facts taken together.

Explanation 1.—The sharing of profits or of gross returns arising from property by persons holding a joint or common interest in that property does not of itself make such persons partners.

Explanation 2.—The receipt by a person of a share of the profits of a business, or of a payment contingent upon the earning of profits or varying with the profits earned by a business, does not of itself make him a partner with the persons carrying on the business ; and in particular, the receipt of such share or payment—

(a) by a lender of money to persons engaged or about to engage in any business,

(b) by a servant or agent as remuneration,

(c) by the widow or child of a deceased partner, as annuity, or

(d) by a previous owner or part owner of the business, as consideration for the sale of the goodwill or share thereof,

does not of itself make the receiver a partner with the persons carrying on the business.

[1][6A. Act not to apply to certain relationships.— Nothing contained in this Act not to apply to certain relationships. Nothing contained in this Act shall apply to a relationship created by any agreement between a banking company and a person or group of persons providing for sharing of profit and losses arising from or relating to the provision by the banking company of finance to such person or group of persons.

Explanation. For the purposes of this section, "banking company" "and finance" shall have the same meaning as in the banking Tribunals Ordinance, 1984.]

7. Partnership at will.— Where no provision is made by contract between the partners for the duration of their partnership, or for the determination of their partnership, the partnership is "partnership at will".

8. Particular Partnership.— A person may become a partner with another person in particular adventures or undertakings.

[1] Ins. by the Banking and Financial Services (Amdt. of Laws) Ordinance, 1984 (57 of 1984),s.2 and Sch.,

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CHAPTER III

RELATIONS OF PARTNERS TO ONE ANOTHER

9. General duties of partners.— Partners are bound to carry on the business of the firm to the greatest common advantage, to be just and faithful to each other, and to render true accounts and full information of all things affecting the firm to any partner or his legal representative.

10. Duty to indemnify for loss caused by fraud.— Every partner shall indemnify the firm for any loss caused to it by his fraud in the conduct of the business of the firm.

11. Determination of rights and duties of partners by contract between the partners.—(1) Subject to the provisions of this Act, the mutual rights and duties of the partners of a firm may be determined by contract between the Partners, and such contract may be expressed or may be implied by a course of dealing.

Such contract may be varied by consent of all the partners, and such consent may be express or may be implied by a course of dealing.

(2) Agreements in restraint of trade. Notwithstanding anything contained in section 27 of the Contract Act, 1872 (IX of 1872), such contracts may provide that a partner shall not carry on any business other than that of the firm while he is a partner.

12. The conduct of the business.— Subject to contract between the partners—

(a) every partner has a right to take part in the conduct of the business ;

(b) every partner is bound to attend diligently to his duties in the conduct of the business ;

(c) any difference arising as to ordinary matters connected with the business may be decided by a majority of the partners, and every partner shall have the right to express his opinion before the matter is decided, but no change may be made in the nature of the business without the consent of all the partners ; and

(d) every partner has a right to have access to and to inspect and copy any of the books of the firm.

13. Mutual rights and liabilities.— Subject to contract between the partners—

(a) a partner is not entitled to receive remuneration for taking part in the conduct of the business ;

(b) the partners are entitled to share equally in the profits earned, and shall contribute equally to the losses sustained by the firm ;

(c) where a partner is entitled to interest on the capital subscribed by him such interest shall be payable only out of profits ;

(d) a partner making, for the purposes of the business, any payment or advance beyond the amount of capital he has agreed to subscribe, is entitled to interest thereon at the rate of six per cent, per annum ;

(e) the firm shall indemnify a partner in respect of payment made and liabilities incurred by him—

(i) in the ordinary and proper conduct of the business and

(ii) in doing such act, in an emergency, for the purpose of protecting the firm from loss, as would be done by a person of ordinary prudence, in his own case, under similar circumstances ; and

(f) a partner shall indemnify the firm for any loss caused to it by his wilful neglect in the conduct of the business of the firm.

14. The property of the firm.— Subject to contract between the partners, the property of the firm includes all property and rights and interests in property originally brought into the stock of the firm, or acquired, by purchase or otherwise, by or for the firm, or for the purposes and in the course of the business of the firm, and includes also the goodwill of the business.

Unless the contrary intention appears, property and rights and interests in property acquired with money belonging to the firm are deemed to have been acquired for the firm.

15. Application of the property of the firm.— Subject to contract between the partners, the property of the firm shall be held and used by the partners exclusively for the purposes of the business.

16. Personal profits earned by partners.— Subject to contract between the partners,—

(a) if a partner derives any profit for himself from any transaction of the firm, or from the use of the property or business connection of the firm or the firm name, he shall account for that profit and pay it to the firm ;

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(b) if a partner carries on any business of the same nature as and competing with that of the firm, he shall account for and pay to the firm all profits made by him in that business.

17. Rights and duties of partners after a change in the firm.— Subject to contract between the partners,—

(a) where a change occurs in the constitution of a firm, the mutual rights and duties of the partners in the reconstituted firm remain the same as they were immediately before the change, as far as may be ; after the expiry of the term of the firm, and

(b) where a firm constituted for a fixed term continues to carry on business after the expiry of that term, the mutual rights and duties of the partners remain the same as they were before the expiry, so far as they may be consistent with the incidents of partnership at will; and

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Where additional undertaking are carried out.

(c) where a firm constituted to carry out one or more adventures or undertakings carries out other adventures or undertakings, the mutual rights and duties of the partners in respect of the other adventures or undertakings are the same as those in respect of the original adventures or undertakings.

CHAPTER IV

RELATIONS OF PARTNERS TO THIRD PARTIES

18. Partner to be agent of the firm.— Subject to the provisions of this Act, a partner is the agent of the firm for the purposes of the business of the firm.

19. Implied authority of partner as agent of the firm.— (1) Subject to the provisions of section 22, the act of a partner which is done to carry on, in the usual way, business of the kind carried on by the firm, binds the firm.

The authority of a partner to bind the firm conferred by this section is called his "implied authority".

(2) In the absence of any usage or custom of trade to the contrary, the implied authority of a partner does not empower him to—

(a) submit a dispute relating to the business of the firm to arbitration,

(b) open a banking account on behalf of the firm in his own name,

(c) compromise or relinquish any claim or portion of a claim by the firm,

(d) withdraw a suit or proceeding filed on behalf of the firm,

(e) admit any liability in a suit or proceeding against the firm,

(f) acquire immoveable property on behalf of the firm,

(g) transfer immoveable property belonging to the firm, or

(h) enter into partnership on behalf of the firm.

20. Extension and restriction of partner's implied authority.—The partners in a firm may, by contract between the partners, extend or restrict the implied authority of any partner.

Notwithstanding any such restriction, any act done by a partner on behalf of the firm which falls within his implied authority binds the firm, unless the person with whom he is, dealing knows of the restriction or does not know or believe that partner to be a partner.

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21. Partner's authority in an emergency.— A partner has authority, in an emergency, to do all such acts for the purpose of protecting the firm from loss as would be done by a person of ordinary prudence, in his own case, acting under similar circumstances and such acts bind the firm.

22. Mode of doing act to bind firm.— In order to bind a firm, an act or instrument done or executed by a partner or other person on behalf of the firm shall be done or executed in the firm name, or in any other manner expressing or implying an intention to bind the firm.

23. Effect of admissions by a partner. An admission or representation made by a partner concerning the affairs of the firm is evidence against the firm, if it is made in the ordinary course of business.

24. Effect of notice to acting partner.— Notice to a partner who habitually acts in the business of the firm of any matter relating to the affairs of the firm operates as notice to the firm, except in the case of a fraud on the firm committed by or with the consent of that partner.

25. Liability of a partner for acts of the firm.— Every partner is liable, jointly with all the other partners and also severally, for all acts of the firm done while he is a partner.

26. Liability of the firm for wrongful acts of a partner.— Where, by the wrongful act or omission of a partner acting in the ordinary course of the business of a firm, or with the authority of his partners, loss or injury is caused to any third party, or any penalty is incurred, the firm is liable therefor to the same extent as the partner.

27. Liability of firm for misapplication by partners.—Where

(a) a partner acting within his apparent authority receives money or property from a third party and misapplies it, or

(b) a firm in the course of its business receives money or property from a third party, and the money or property is misapplied by any of the partners while it is in the custody of the firm,

the firm is liable to make good the loss.

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28. Holding out.— (1) Any one who by words spoken or written or by conduct represents himself, or knowingly permits himself to be represented, to be a partner in a firm, is liable as a partner in that firm to any one who has on the faith of any such representation given credit to the firm, whether the person representing himself or represented to be a partner does or does not know that the representation has reached the person so giving credit.

(2) Where after a partner's death the business is continued in the old firm name, the continued use of that name or of the deceased partner's name as a part thereof shall not of itself make his legal representative or his estate liable for any act of the firm done after his death.

29. Rights of transferee of a partner's interest.— (1) A transfer by a partner of his interest in the firm, either absolute or by mortgage, or by the creation by him of a charge on such interest, does not entitle the transferee, during the continuance of the firm, to interfere in the conduct of the business, or to require accounts, or to inspect the books of the firm, but entitles the transferee only to receive the share of profits of the transferring partner, and the transferee shall accept the account of profits agreed to by the partners.

(2) If the firm is dissolved or if the transferring partner ceases to be a partner, the transferee is entitled as against the remaining partners to receive the share of the assets of the firm to which the transferring partner is entitled, and, for the purpose of ascertaining that share, to an account as from the date of the dissolution.

30. Minors admitted to the benefits of partnership.— (1) A person who is a minor according to the law to which he is subject may not be a partner in a firm, but, with the consent of all the partners for the time being, he may be admitted to the benefits of partnership.

(2) Such minor has a right to such share of the property and of the profits of the firm as may be agreed upon, and he may have access to and inspect and copy any of the accounts of the firm.

(3) Such minor's share is liable for the acts of the firm, but the minor is not personally liable for any such act.

(4) Such minor may not sue the partners for an account or payment of his share of the property or profits of the firm, save when severing his connection with the firm, and in such case the amount of his share shall be determined by a valuation made as far as possible in accordance with the rules contained in section 48:

Provided that all the partners acting together or any partner entitled to dissolve the firm upon notice to other partners may elect in such suit to dissolve the firm, and thereupon the Court shall proceed with the suit as one for dissolution and for settling accounts between the partners, and the amount of the share of the minor shall be determined along with the shares of the partners.

(5) At any time within six months of his attaining majority, or of his obtaining knowledge that he had been admitted to the benefits of partnership, whichever date is later, such person may give public notice that he has elected to become or that he has elected not to become a partner in the firm, and such notice shall determine his position as regards the firm :

Provided that, if he fails to give such notice, he shall become a partner in the firm, on the expiry of the said six months.

(6) Where any person has been admitted as a minor to the benefits of partnership in a firm, the burden of proving the fact that such person had no knowledge of such admission until a particular date after the expiry of six months of his attaining majority shall lie on the persons asserting that fact.

(7) Where such person becomes a partner,

(a) his rights and liabilities as a minor continue up to the date on which he becomes a partner, but he also becomes personally liable to third parties for all acts of the firm done since he was admitted to the benefits of partnership, and

(b) his share in the property and profits of the firm shall be the share to which he was entitled as a minor.

(8) Where such person elects not to become a partner,

(a) his rights and liabilities shall continue to be those of a minor under this section up to the date on which he gives public notice,

(b) his share shall not be liable for any acts of the firm done after the date of the notice, and

(c) he shall be entitled to sue the partners for his share of the property and profits in accordance with sub-section (4).

(9) Nothing in sub-sections (7) and (8) shall affect the provisions of section 28.

CHAPTER V

INCOMING AND OUTGOING PARTNERS

31. Introduction of a partner.— (1) Subject to contract between the partners and to the provisions of section 30, no person shall be introduced as a partner into a firm without the consent of all the existing partners.

(2) Subject to the provisions of section 30, a person who is introduced as a partner into a firm does not thereby become liable for any act of the firm done before he became a partner.

32. Retirement of a partner.— (1) A partner may retire—

(a) with the consent of all the other partners,

(b) in accordance with an express agreement by the partners, or

(c) where the partnership is at will, by giving notice in writing to all the other partners of his intention to retire.

(2) A retiring partner may be discharged from any liability to any third party for acts of the firm done before his retirement by an agreement made by him with such third party and the partners of the reconstituted firm, and such agreement may be implied by a course of dealing between such third party and the reconstituted firm after he had knowledge of the retirement.

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(3) Notwithstanding the retirement of a partner from a firm, he and the partners continue to be liable as partners to third parties for any act done by any of them which would have been an act of the firm if done before the retirement, until public notice is given of the retirement :

Provided that a retired partner is not liable to any third party who deals with the firm without knowing that he was a partner.

(4) Notices under sub-section (3) may be given by the retired partner or by any partner of the reconstituted firm.

33. Expulsion of a partner.—(1) A partner may not be expelled from a firm by any majority of the partners, save in the exercise in good faith of powers conferred by contract between the partners.

(2) The provisions of sub-sections (2), (3) and (4) of section 32 shall apply to an expelled partner as if he were a retired partner.

34. Insolvency of a partner.— (1) Where a partner in a firm is adjudicated an insolvent he ceases to be a partner on the date on which the order of adjudication is made, whether or not the firm is thereby dissolved.

(2) Where under a contract between the partners the firm is not dissolved by the adjudication of a partner as an insolvent, the estate of a partner so adjudicated is not liable for any act of the firm and the firm is not liable for any act of the insolvent, done after the date on which the order of adjudication is made.

35. Liability of estate of deceased partner.— Where under a contract between the partners the firm is not dissolved by the death of a partner, the estate of a deceased partner is not liable for any act of the firm done after his death.

36. Rights of outgoing partner to carry on competing business.— (1) An outgoing partner may carry on a business competing with that of the firm and he may advertise such business, but, subject to contract to the contrary, he may not—

(a) use the firm name,

(b) represent himself as carrying on the business of the firm, or

(c) Solicit the custom of persons who were dealing with the firm before he ceased to be a partner.

(2) Agreement in restraint of trade. A partner may make an agreement with his partners that on ceasing to be a partner he will not carry on any business similar to that of the firm within a specified period or within specified local limits ; and, notwithstanding anything contained in section 27 of the Contract Act, 1872 (IX of 1872), such agreement shall be valid if the restrictions imposed are reasonable.

37. Right of outgoing partner in certain cases to share subsequent profits.— Where any member of a firm has died or otherwise ceased to be a partner, and the surviving or continuing partners carry on the business of the firm with the property of the firm without any final settlement of accounts as between them and the outgoing partner or his estate, then, in the absence of a contract to the contrary, the outgoing partner or his estate is entitled at the option of himself or his representatives to such share of the profits made since he ceased to be a partner as may be attributable to the use of his share of the property of the firm or to interest at the rate of six per cent. per annum on the amount of his share in the property of the firm :

Provided that where by contract between the partners an option is given to surviving or continuing partners to purchase the interest of a deceased or outgoing partner, and that option is duly exercised, the estate of the deceased partner, or the outgoing partner or his estate, as the case may be, is not entitled to any further or other share of profits; but if any partner assuming to act in exercise of the option does not in all material respects comply with the terms thereof, he is liable to account under the foregoing provisions of this section.

38. Revocation of continuing guarantee by change in firm.— A continuing guarantee given to a firm, or to a third party in respect of the transactions of a firm, is, in the absence of agreement to the contrary, revoked as to future transactions from the date of any change in the constitution of the firm.

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CHAPTER VI

DISSOLUTION OF A FIRM

39. Dissolution of a firm.— The dissolution of partnership between all the partners of a firm is called the "dissolution of the firm".

40. Dissolution by agreement.— A firm may be dissolved with the consent of all the partners or in accordance with a contract between the partners.

41. Compulsory dissolution.— A firm is dissolved

(a) by the adjudication of all the partners or of all the partners but one as insolvent, or

(b) by the happening of any event which makes it unlawful for the business of the firm to be carried on or for the partners to carry it on in partnership :

Provided that, where more than one separate adventure or undertaking is carried on by the firm, the illegality of one or more shall not of itself cause the dissolution of the firm in respect of its lawful adventures and undertakings.

42. Dissolution on the happening of certain contingencies.— Subject to contract between the partners a firm is dissolved

(a) if constituted for a fixed term, by the expiry of that term ;

(b) if constituted to carry out one or more adventures or undertakings, by the completion thereof ;

(c) by the death of a partner ; and

(d) by the adjudication of a partner as an insolvent.

43. Dissolution by notice of partnership at will. (1) Where the partnership is at will, the firm may be dissolved by any partner giving notice in writing to all the other partners of his intention to dissolve the firm.

(2) The firm is dissolved as from the date mentioned in the notice as the date of dissolution or, if no date is so mentioned, as from the date of the communication of the notice.

44. Dissolution by the Court.— At the suit of a partner, the Court may dissolve a firm on any of the following grounds, namely :

(a) that a partner has become of unsound mind, in which case the suit may be brought as well by the next friend of the partner who has become of unsound mind as by any other partner ;

(b) that a partner, other than the partner suing, has become in any way permanently incapable of performing his duties as partner ;

(c) that a partner, other than the partner suing, is guilty of conduct which is likely to affect prejudicially the carrying on of the business, regard being had to the nature of the business ;

(d) that a partner, other than the partner suing, wilfully or persistently commits breach of agreements relating to the management of the affairs of the firm or the conduct of its business, or otherwise so conducts himself in matters relating to the business that it is not reasonably practicable for the other partners to carry on the business in partnership with him ;

(e) that a partner, other than the partner suing, has in any way transferred the whole of his interest in the firm to a third party, or has allowed his share to be charged under the provisions of rule 49 of Order XXI of the First Schedule to the Code of Civil Procedure, 1908 (V of 1908), or has allowed it to be sold in the recovery of arrears of land-revenue or of any dues recoverable as arrears of land-revenue due by the partner ;

(f) that the business of the firm cannot be carried on save at a loss ; or

(g) on any other ground which renders it just and equitable that the firm should be dissolved.

45. Liability for acts of partners done after dissolution.— (1) Notwithstanding the dissolution of a firm, the partners continue to be liable as such to third parties for any act done by any of them which would have been an act of the firm if done before the dissolution, until public notice is given of the dissolution :

Provided that the estate of a partner who dies, or who is adjudicated an insolvent, or of a partner who, not having been known to the person dealing with the firm to be a partner, retires from the firm, is not liable under this section for acts done after the date on which he ceases to be a partner.

(2) Notices under sub-section (1) may be given by any partner.

46. Right of partners to have business wound up after dissolution.— On the dissolution of a firm every partner or his representative is entitled, as against all the other partners or their representatives, to have the property of the firm applied in payment of the debts and liabilities of the firm, and to have the surplus distributed among the partners or their representatives according to their rights.

47. Continuing authority of partners for purposes of winding up.— After the dissolution of a firm the authority of each partner to bind the firm, and the other mutual rights and obligations of the partners, continue notwithstanding the dissolution, so far as may be necessary to wind up the affairs of the firm and to complete transactions begun but unfinished at the time of the dissolution, but not otherwise :

Provided that the firm is in no case bound by the acts of a partner who has been adjudicated insolvent ; but this proviso does not affect the liability of any person who has after the adjudication represented himself or knowingly permitted himself to be represented as a partner of the insolvent.

48. Mode of settlement of accounts between partners.— In settling the accounts of a firm after dissolution, the following rules shall, subject to agreement by the partners, be observed:

(a) Losses, including deficiencies of capital, shall be paid first out of profits, next out of capital, and, lastly, if necessary, by the partners individually in the proportions in which they were entitled to share profits.

(b) The assets of the firm, including any sums contributed by the partners to make up deficiencies of capital, shall be applied in the following manner and order :—

(i) in paying the debts of the firm to third parties ;

(ii) in paying to each partner rateably what is due to him from the firm for advances as distinguished from capital ;

(iii) in paying to each partner rateably what is due to him on account of capital ; and

(iv) the residue, if any, shall be divided among the partners in the proportions in which they were entitled to share profits.

49. Payment of firm debts and of separate debts.—Where there are joint debts due from the firm, and also separate debts due from any partner, the property of the firm shall be applied in the first instance in payment of the debts of the firm, and, if there is any surplus, then the share of each partner shall be applied in payment of his separate debts or paid to him. The separate property of any partner shall be applied first in the payment of his separate debts, and the surplus (if any) in the payment of the debts of the firm.

50. Personal profits earned after dissolution.— Subject to contract between the partners, the pro- visions of clause (a) of section 16 shall apply to transactions by any surviving partner or by the representatives of a deceased partner, undertaken after the firm is dissolved on account of the death of a partner and before its affairs have been completely wound up :

Provided that where any partner or his representative has bought the goodwill of the firm, nothing in this section shall affect his right to use the firm name.

51. Return of premium on premature dissolution.— Where a partner has paid a premium on entering into partnership for a fixed term, and the firm is dissolved before the expiration of that term otherwise than by the death of a partner, he shall be entitled to repayment of the premium or of such part thereof as may be reasonable, regard being had to the terms upon which he became a partner and to the length of time during which he was a partner, unless-

(a) the dissolution is mainly due to his own misconduct, or

(b) the dissolution is in pursuance of an agreement containing no provision for the return of the premium or any part of it.

UNDER PROOF READING

52. Rights where partnership contract is rescinded for fraud or misrepresentation.—Where a contract creating partnership is rescinded on the ground of the fraud or misrepresentation of any of the parties thereto, the party entitled to rescind is, without prejudice to any other right, entitled

(a) to a lien on, or a right of retention of, the surplus or the assets of the firm remaining after the debts of the firm have been paid, for any sum paid by him for the purchase of a share in the firm and for any capital contributed by him ;

(b) to rank as a creditor of the firm in respect of any payment made by him towards the debts of the firm ; and

(c) to be indemnified by the partner or partners guilty of the fraud or misrepresentation against all the debts of the firm.

53. Right to restrain from use of firm name or firm property.—After a firm is dissolved, every partner or his representative may, in the absence of a contract between the partners to the contrary, restrain any other partner or his representative from carrying on a similar business in the firm name or from using any of the property of the firm for his own benefit, until the affairs of the firm have been completely wound up :

Provided that where any partner or his representative has bought the goodwill of the firm, nothing in this section shall affect his right to use the firm name.

54. Agreements in restraint of trade.—Partners may, upon or in anticipation of the dissolution of the firm, make an agreement that some or all of them will not carry on a business similar to that of the firm within a specified period or within specified local limits ; and notwithstanding anything contained in section 27 of the Contract Act, 1872 (IX of 1872), such agreement shall be valid if the restrictions imposed are reasonable.

55. Sale of good-will after dissolution.— (1) In settling the accounts of a firm after dissolution,the goodwill shall, subject to contract between the partners, be included in the assets, and it may be sold either separately or along with other property of the firm.

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(2) Rights of buyer and seller of goodwill.— Where the goodwill of a firm is sold after dissolution, a partner may carry on a business competing with that of the buyer and he may advertise such business, but, subject to agreement between him and the buyer, he may not-

(a) use the firm name,

(b) represent himself as carrying on the business of the firm, or

(c) solicit the custom of persons who were dealing with the firm before its dissolution.

(3) Agreements in restraint of trade.— Any partner may, upon the sale of the goodwill of a firm, make an agreement with the buyer that such partner will not carry on any business similar to that of the firm within a specified period or within specified local limits, and, notwithstanding anything contained in section 27 of the Contract Act, 1872 (IX of 1872), such agreement shall be valid if the restrictions imposed are reasonable.

UNDER PROOF READING

CHAPTER VII

REGISTRATION OF FIRMS

56. Power to exempt from application of this Chapter.—The [1][Provincial Government of any Province] may, by notification in the [2][official Gazette], direct that the provisions of this Chapter shall not apply to [3][that Province] or to any part thereof specified in the notification.

57. Appointment of Registrars.—(1) The [4][Provincial Government] may appoint Registrars of Firms for the purposes of this Act, and may define the areas within which they shall exercise their powers and perform their duties.

(2) Every Registrar shall be deemed to be a public servant of within the meaning of section 21 of the Pakistan Penal Code (XLX of 1860).

58. Application for registration.—(1) The registration of a firm may be effected at any time by sending by post or delivering to the Registrar of the area in which any place of business of the firm is situated or proposed to be situated, a statement in the prescribed form and accompanied by the prescribed fee, stating

(a) the firm name,

(b) the place or principal place of business of the firm,

(c) the names of any other places where the firm carries on business,

(d) the date when each partner joined the firm,

(e) the names in full and permanent addresses of the partners, and

(f) the duration of the firm.

The statement shall be signed by all the partners, or by their agents specially authorised in this behalf.

(2) Each person signing the statement shall also verify it in the manner prescribed.

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[1]Subs. by A. O., 1937, for "G. G. in C.".
[2]Subs. ibid., for "Gazette of India".
[3]Subs. ibid., for "any province".

UNDER PROOF READING

[4]Subs. ibid., for "L. G.".

[1][(3) A firm name shall not contain any of the following words, namely:—"Government" "Jinnah", "Quaid-i-Azam", or words expressing or implying the sanction, approval or patronage of the Federal Government or any Provincial Government or of the Quaid-i-Azam, except when the Provincial Government signifies its consent to the use of such words as part of the firm name by order in writing.]

(3A) A firm name shall not contain the name of the "United Nations" or its abbreviations through the use of its initial letters or of any subsidiary body set up by that body unless it has obtained the previous authorisation of the Secretary-General of the United Nations in writing.

(3B) A firm name shall not contain the name of the "World Health Organisation" or its abbreviations through the use of its initial letters unless it has obtained the previous authorisation of the Director-General in writing.

[2][(3C) A firm name shall not contain any word which may be declared by the Provincial Government, by notification in the official Gazette, to be undesirable :

Provided that firm which has as part of its name any word declared by the Provincial Government to be undesirable shall, within one month of such declaration, alter its name and send a statement to this effect to the Registrar.]

59. Registration.—When the Registrar is satisfied that the provisions of section 58 have been duly complied with, he shall record an entry of the statement in a register called the Register of Firms, and shall file the statement.

60. Recording of alteration in firm name and principal place of business.—(1) When analteration is made in the firm name or in the location of the principal place of business of a registered firm, a statement may be sent to the Registrar accompanied by the prescribed fee, specifying the alteration, and signed and verified in the manner required under section 58.

(2) When the Registrar is satisfied that the provisions of sub-section (1) have been duly complied with, he shall amend the entry relating to the firm in the Register of Firms in accordance with the statement, and shall file it along with the statement relating to the firm filed under section 59.

61. Noting of closing and opening of branches.—When a registered firm discontinues business at any place or begins to carry on business at any place, such place not being its principal place of business, any partner or agent of the firm may send intimation thereof to the Registrar, who shall make a note of such intimation in the entry relating to the firm in the Registerar of Firms, and shall file the intimation along with the statement relating to the firm filed under section 59.

62. Noting of changes in names and addresses of partners.—When any partner in a registered firm alters his name or permanent address, an intimation of the alteration may be sent by any partner or agent of the firm to the Registrar, who shall deal with it in the manner provided in section 61.

[1]Subs. by the Partnership (Amdt.) ordinance, 1981 (19 of 1981), s.2, for sub-section (3), which were previously amended by various enactments.
[2]New sub-section (3C) added ibid.

UNDER PROOF READING

63. Recording of changes in and dissolution of a firm.— (1) When a change occurs in theconstitution of a registered firm any incoming, continuing or outgoing partner, and when a registered firm is dissolved any person who was a partner immediately before the dissolution, or the agent of any such partner or person specially authorised in this behalf, may give notice to the Registrar of such change or dissolution, specifying the date thereof; and the Registrar shall make a record of the notice in the entry relating to the firm in the Register of Firms and shall file the notice along with the statement relating to the firm filed under section 59.

(2) Recording of withdrawal of a minor.— When a minor who has been admitted to the benefits of partnership in a firm attains majority and elects to become or not to become a partner, and the firm is then a registered firm, he, or his agent specially authorised in this behalf, may give notice to the Registrar that he has or has not become a partner, and the Registrar shall deal with the notice in the manner provided in sub-section (1).

64. Rectification of mistakes.—(1) The Registrar shall have power at all times to rectify any mistake in order to bring the entry in the Register of Firms relating to any firm into conformity with the documents relating to that firm filed under this Chapter.

(2) On application made by all the parties who have signed any document relating to a firm filed under this Chapter, the Registrar may rectify any mistake in such document or in the record or note thereof made in the Register of Firms.

65. Amendment of Register by order of court.—A court deciding any matter relating to a registered firm may direct that the Registrar shall make any amendment in the entry in the Register of Firms relating to such firm which is consequential upon its decision ; and the Registrar shall amend the entry accordingly.

66. Inspection of Register and filed documents.—(1) The Register of Firms shall be open to inspection by any person on payment of such fee as may be prescribed.

(2) All statements, notices and intimations filed under this Chapter shall be open to inspection, subject to such conditions and on payment of such fee as may be prescribed.

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67. Grant of copies.—The Registrar shall on application furnish to any person, on payment of such fee as may be prescribed, a copy, certified under his hand, of any entry or portion thereof in the Register of Firms.

68. Rules of evidence.—(1) Any statement, intimation or notice recorded or noted in the Register of Firms shall, as against any person by whom or on whose behalf such statement, intimation or notice was signed, be conclusive proof of any fact therein stated.

(2) A certified copy of an entry relating to a firm in the Register of Firms may be produced in proof of the fact of the registration of such firm, and of the contents of any statement, intimation or notice recorded or noted therein.

69. Effect of non-registration.—(1) No suit to enforce a right arising from a contract or conferred by this Act shall be instituted in any Court by or on behalf of any person suing as a partner in a firm against the firm or any person alleged to be or to have been a partner in the firm

unless the firm is registered and the person suing is or has been shown in the Register of Firms as a partner in the firm.

(2) No suit to enforce a right arising from a contract shall be instituted in any Court by or on behalf of a firm against any third party unless the firm is registered and the persons suing are or have been shown in the Register of Firms as partners in the firm.

(3) The provisions of sub-sections (1) and (2) shall apply also to a claim of set-off or other proceeding to enforce a right arising from a contract, but shall not affect

(a) the enforcement of any right to sue for the dissolution of a firm or for accounts of a dissolved firm, or any right or power to realise the property of a dissolved firm, or

(b) the powers of an official assignee, receiver or Court under the [1][Insolvency (Karachi Division [2]* * Act (III of 1909),] or the Provincial Insolvency Act, 1920 (V of 1920) to realise the property of an insolvent partner.

(4) This section shall not apply

(a) to firms or to partners in firms which have no place of business in [3][Pakistan], or whose places of business in [3][Pakistan] are situated in areas to which, by notification under [4][section 56] this Chapter does not apply, or

(b) to any suit or claim of set-off not exceeding one hundred rupees in value which, [5]* * * is not of a kind specified in the Second Schedule to the Provincial Small Cause Courts Act, 1887 (IX of 1887), or to any proceeding in execution or other proceeding incidental to or arising from any such suit or claim.

70. Penalty for furnishing false particulars.—Any person who signs any statement, amending statement, notice or intimation under this Chapter containing any particular which he knows to be false or does not believe to be true, or containing particulars which he knows to be incomplete or does not believe to be complete, shall be punishable with imprisonment which may extend to three months, or with fine or with both.

71. Power to make rules.—(1) The [6][Provincial Government] may make rules prescribing the fees which shall accompany documents sent to the Registrar of Firms, or which shall be payable for the inspection of documents in the custody of the Registrar of Firms, or for copies from the Register of Firms :

Provided that such fees shall not exceed the maximum fees specified in Schedule I [7][:].

[1] Subs. by A. O.,1964, Art. 2 and Sch., for "Insolvency (Dacca and the Federal Territory of Karachi) Act" which had been subs. by the Repealing and Amending Ordinance, 1961 (1 of 1961), s. 3 and 2nd Sch., for Insolvency (Capital of the Federation and Dacca) Act" (with effect from the 24th January, 1961.)

[2]The words "and Dacca", omitted by F.A.O., 1975, Art.2 and Sch.

[3] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

[4] Subs. by the Repealing and Amending Act, 1934 (24 of 1934), s. 2 and 1st Sch. for "section 55".

[5]The words "in the Presidency-towns, is not of a k ind specified in section 19 of the Presidency Small Cause Courts Act, 1882, or, outside the Presidency-towns" omitted by A. O., 1949.

[6] Subs. by A. O., 1937, for "G. G. in C.".

[7] Subs. by the Partnership (Amdt.) ordinance, 1981 (19 of 1981),s.3. for full-stop.

UNDER PROOF READING

[2][Provided further that the fees payable for any service desired on the same day on which an application for the same is made may be double the aforesaid maximum fees.]

(2) The [3][Provincial Government] may [4][also] make rules—

(a) prescribing the form of statement submitted under section 58, and of the verification thereof ;

(b) requiring statements, intimations and notices under sections 60, 61, 62 and 63 to be in prescribed form, and prescribing the form thereof ;

(c) prescribing the form of the Register of Firms, and the mode in which entries relating to firms are to be made therein, and the mode in which such entries are to be amended or notes made therein ;

(d) regulating the procedure of the Registrar when disputes arise ;

(e) regulating the filing of documents received by the Registrar ;

(f) prescribing conditions for the inspection of original documents ;

(g) regulating the grant of copies ;

(h) regulating the elimination of registers and documents ;

(i) providing for the maintenance and form of an index to the Register of Firms ; and

(j) generally, to carry out the purposes this Chapter.

(3) All rules made under this section shall be subject to the condition of previous publication.

CHAPTER VIII

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SUPPLEMENTAL

72. Mode of giving public notice.— A public notice under this Act is given

(a) where it relates to the retirement or expulsion of a partner from a registered firm, or to the dissolution of a registered firm, or to the election to become or not to become a partner in a registered firm by a person attaining majority who was admitted as a minor to the benefits of partnership, by notice to the Registrar of Firms under section 63, and by publication in the [4][official Gazette] and in at least one vernacular newspaper circulating in the district where the firm to which it relates has its place or principal place of business, and

[1]Proviso added ibid.
[2] Subs. by A. O., 1937, for "L.G.".
[3]Ins., *ibid*.
[4]Subs. *ibid* for "local official Gazette".

UNDER PROOF READING

(b) in any other case, by publication in the [1][official Gazette] and in at least one vernacular newspaper circulating in the district where the firm to which it relates has its place or principal place of business.

73. [Repeals.] Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Schedule.

74. Savings.— Nothing in this Act or any repeal effected thereby shall affect or be deemed to affect—

(a) any right, title, interest, obligation or liability already acquired, accrued or incurred before the commencement of this Act, or

(b) any legal proceeding or remedy in respect of any such right, title, interest, obligation or liability, or anything done or suffered before the commencement of this Act, or

(c) anything done or suffered before the commencement of this Act, or

(d) any enactment relating to partnership not expressly repealed by this Act, or

(e) any rule of insolvency relating to partnership, or

(f) any rule of law not inconsistent with this Act.

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[1]Subs. by A. O., 1937, for "local official Gazette".

UNDER PROOF READING

[1][SCHEDULE I

MAXIMUM FEES
[*See* sub-section (1) of section 71]

Document or act in respect of which the fee is payable	Maximum Fees
1	2
Statement under section 58	Rs. 50
Statement under section 60	20
Intimation under section 61..	20
Intimation under section 62	20
Notice under section 63..	20
Application under section 64..	20
Inspection of the Register of Firms under sub-section (1) of section 66..	5
Inspection of documents relating to a firm under sub-section (2) of section 66 or any other document in the custody of the Registrar of Firms	5
.. ..	
Copies from the Registrar of Firms	Rs. 2 for each 100 words or part thereof.]

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[1]Subs. by the Partnership (Amdt.) Ordinance, 1981 (19 of 1981),s.4, for Schedule I, which was previously amended by Ord. 12 of 1962,s.2, for the original Sch.I.

THE PASSPORTS ACT, 1974

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THE PASSPORTS ACT, 1974.

[1]ACT NO. XX OF 1974

[7*th* *March*, 1974]

An Act to regulate departure from and entry into Pakistan and visit to foreign countries of the citizen of Pakistan.

WHEREAS it is expedient to regulate departure from and entry into Pakistan and visit to foreign countries of citizens of Pakistan and to provide for matters ancillary thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This act may be called the Passports Act, 1974.

(2) It extends to the whole of Pakistan and also applies to all citizens of Pakistan, wherever they may be.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "passport" means a passport [1][including a diplomatic passport and an official passport] which is for the time being valid, and includes any such permit, or other travel document authorising the holder thereof to travel from Pakistan to any other country, issued by or under the authority of the Federal Government; .

(b) "Prescribed" means prescribed by rules made under this Act.

3. Prohibition of departure from Pakistan without passport, etc. No citizen of Pakistan shall—

(a) depart from Pakistan by any means whatever unless he is in possession of a passport, nor otherwise than from such port or place, by such route and in accordance with such conditions, as may be prescribed; or

(b) visit a foreign country unless his passport is valid for such country.

4. Punishment for contravention of sections 3, etc. —(1) A citizen of Pakistan who is of the age of twelve years or more shall be punishable with imprisonment for a term which may extend to one year, or with fine, or with both, if he—

(a) contravenes or attempts to contravene or abets the contravention of any of the provisions of section 3; or

(b) enters or attempts to enter Pakistan by any means whatever without being in possession of a passport or otherwise than at such port or place, or by such route, as may be prescribed.

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[1] For Statement of Objects and Reasons, *see* Gaz. of P., 1974, Ext., Pt. III, p. 181.
[2] Ins. by the Passports (Amdt.) Ordinance, 1978 (21 of 1978), s. 2.

(3) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898.), an offence punishable under subsection (1) or sub-section (2) shall be non- bailable.

(2) A person departing from or entering, or attempting to depart from or enter, Pakistan in whose custody or charge a person who has not attained the age of twelve years departs from or enters, or attempts to depart from or enter, Pakistan in contravention of section 3 or clause (b) of sub-section (1) shall, in addition to any penalty to which he may be otherwise liable, be liable to the penalty provided for in that sub-section.

5. Certain acts to be deemed contravention of section 3.—(1) Whoever gives any person who has contravened the provisions of section 3, any assistance with intent thereby to prevent, hinder or otherwise interfere with his arrest, trial or punishment for such contravention, shall be deemed to have abetted the offence of contravention of the provisions of that section.

(2) The owner, master or person in charge of any means of transport who causes or knowingly allows any person to depart from Pakistan in contravention of the provisions of section 3 by such means of transport shall be deemed to have contravened the Provision of that section and the means of transport shall, if the court convicting the owner, master or person in charge so directs, be forfeited to the Federal Government.

6. Penalties for certain offences relating to passport.—(1) A person shall be punishable with imprisonment which may-extend to three years, or with fine, or with both, if he—

(a) makes or makes use of any statement which he knows or believes to be false in any document for obtaining passport; or

(b) attests or verifies a statement which he knows or has reason to believe to be false in any document used for obtaining a passport; or

(c) wilfully conceals any fact which under the circumstances he ought to disclose for the purpose of obtaining a passport for himself or another person; or

(d) forges, alters or tampers with any passport or any document which he uses for obtaining a passport; or

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(e) uses a passport which has been forged, altered, or tampered with; or

(f) uses for obtaining a passport a document which has been forged, altered or tampered with; or

(g) is in wrongful possession of a passport not lawfully issued to him or allows his passport to be used “by another person; or

(h) traffics in passports or any documents required for obtaining a passport; or

(i) wilfully fails or neglects to return a passport issued to him, if he is required to do so or if an order cancelling, impounding or confiscating it is made [1][;or]

[1][(j) obtains more than one passport for himself either in the same or different names by concealing the fact of his already being in possession of a passport].

[1] Subs. and added by the Passports (Amdt.) Ordinance, 1978 (21 of 1978), s. 3.

Provided that a person guilty of an offence punishable under clause (h) shall be punished with rigorous imprisonment for a term which shall not be less than six months and with fine which shall not be less than one thousand rupees.

(2) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898), an offence punishable under clause (b) of sub-section (1) shall be a bailable offence.

7. Power of arrest, seizure, etc.—(1) Any police officer not below the rank of Sub-Inspector, and any officer of Customs empowered by a general or special order of the Federal Government in this behalf, may arrest without warrant any person who has contravened, or against whom a reasonable suspicion exists that he has contravened any provision of this Act.

(2) Any police officer or other person authorised in this behalf by the Federal Government may seize in any place any means of transport which he knows or has reason to believe to be the means of transport by which a person has departed from Pakistan in contravention of the provisions of section 3.

(3) Any means of transport seized under sub-section (2) shall be disposed of in accordance with the decision of the court before which the owner, master or person in charge thereof is prosecuted under sub-section (2) of section 5 for a contravention of section 3.

(4) Every officer making an arrest under this section shall, within a period of twenty- four hours of such arrest exclusive of the time necessary for the journey from the place of arrest to the court of the nearest Magistrate, take or send the person arrested before a Magistrate having jurisdiction in the case or before the officer incharge of the nearest police station; and thereupon the provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), applicable in respect of a person who, having been arrested without warrant, has been taken or sent before a Magistrate has been taken or sent before a Magistrate or an officer incharge of a police station shall apply to him.

8. Power to cancel, impound or confiscate passport.—(1) A passport issued by or on behalf of the Federal Government shall be the property of the Federal Government and may, by an order under the hand of a Secretary to the Government of Pakistan, [1][or an officer authorised by the Federal Government in this behalf] be required to be returned and shall also be liable to be cancelled, impounded or confiscated by a like order.

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(2) Subject to sub-section (3), before making an order under sub-section (1) in respect of the passport issued to any person, the Federal Government shall give such person notice in writing calling upon him to show cause why the order should not made:

[2][Provided that no such notice need be given in the case of an order impounding a Passport if it is necessary in the opinion of the Secretary or such other officer to take immediate action, but an opportunity to show cause against the making of the order shall be afforded to the person to whom the order relates, within two weeks from the making of the order.]

[1]Ins. by the passports (Amdt.) Ordinance, 1978 (21 of 1978), s. 4.
[2] Subs. by the Passports (Amdt.) Act, 1992 (15 of 1992), s. 2, for the original proviso.

(3) If the Federal Government has reason to believe that the person in respect of whose passport it is proposed to make an order under sub-section (1) is, or has been, engaged in subversive activities or in activities which are prejudicial to the interest of Pakistan or to Pakistan's relations with any foreign power, it shall not be necessary to give to such person the notice provided for in sub-section (2) or to afford him an opportunity of being heard.

(4) Any person in respect of whose passport an order under sub-section (1) has been made in the circumstances referred to in sub-Section (3) may, within thirty days of the date of the order, apply to the Federal Government for a review of the order; and the decision of the Federal Government in review shall be final.

[1][(5) Any expenditure incurred by the, Federal Government on the repatriation to Pakistan of a citizen of Pakistan who gets stranded or becomes a destitute while he is in a foreign country, or for any other reason, shall be recoverable as an arrear of land revenue.].

9. Burdon of proof. The burden of proving that a statement made in any document used for obtaining a passport is true shall lie on the person making the statement and the burden of proving that the owner, master or person in charge of any means of transport by which any person departs from Pakistan in contravention of the provisions of section 3 did not knowingly allow such person to so depart shall lie on such owner, master or person in charge.

10. Indemnity. No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Act or of any rules made thereunder.

11. Delegation of power. The Federal Government may, by notification in the official Gazette, direct that any of its powers or functions under this Act shall, in such circumstances and subject to such conditions, if any, as may be specified in the notification, be exercised or performed also—

(a) by any officer or authority subordinate to the Federal Government;

(b) by any Provincial Government or by any officer or authority subordinate to such Government.

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12. Power to exempt. The Federal Government may, by notification in the official Gazette, exempt any person or class of persons from all or any of the provisions of this Act or the rules made thereunder.

13. Power to make rules. —(1) The Federal Government may, by notification in the official Gazette, make rules[2] for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

[1]Added by Ord. 21 of 1978, s. 4.

[2] For the Passport Rules, 1974, *see* S.R.O. No. 986 (I)/74, dated the 18th July, 1974, *see* Gaz. of P., 1974, Ext., (Islamabad) Pt. II, pp. 14091414.

(a) the conditions to which a passport issued by or on behalf of the Federal Government shall be subject, including conditions as to the ports or places in Pakistan at or from which alone a person holding a passport shall depart from or enter Pakistan;

(b) the persons, other than the applicants for the issue of passports, by whom, and the manner in which, applications for the issue of passports may be submitted;

[1]* * * * * * *

(3) Rules made under sub-section (1) may provide that a contravention thereof shall be punishable with imprisonment for a term which may extend to six months, or with fine, or with both.

14. Act not to derogate from other laws. The provisions of this Act shall be in addition to, and not in derogation of, the provisions of the [2][Emigration Ordinance, 1979 (XVIII of 1979)] the Foreign Exchange Regulation Act, 1947 (VII of 1947), the Pakistan (Control of Entry) Act, 1952 (LV of 1952), and any other law relating to foreign exchange or entry into Pakistan.

15. *[Repeal.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch, 11*

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[1] Omitted by the Passports (Amdt.) Ordinance 1983 (34 of 1983). s. 2.
[2] Subs, by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II.

THE PATENTS ORDINANCE, 2000

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THE PATENTS ORDINANCE, 2000

ORDINANCE NO. LXI of 2000

[*2nd December, 2000*]

[1][An Ordinance to amend and consolidate the law relating to patents in order to give effect in Pakistan to the provisions of the International Convention on Trade Related Intellectual Property Rights, 1994, in accordance with its objectives and principles.

WHEREAS it is expedient to amend and consolidate the law relating to patents;]

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.-(1) This Ordinance may be called the Patents Ordinance, 2000.

(2) It extends to the whole of Pakistan.

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(3) It shall come into force at once except the provisions relating to examination, sealing, grant and post-grant matters of the patents relating to chemical products intended for use in agriculture and medicines, but excluding the grant of exclusive marketing rights therefore and mail box filings which shall come into force on and from the first day of January, 2005.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "assignee" includes the legal representative of deceased assignee and references to the assignee of any person includes references to the assignee of the legal representative or assignee of that person;

[1]Subs. by the Patents (Amdt.) Ordinance, 2002 (95 of 2002), s. 2, for "long title and preamble."

(b) "Controller" means the Controller of Patents appointed under section 3;

(c) "Convention application" means an application made in Pakistan within twelve months after the date of an application made in a Convention country, whether claiming single or multiple priorities from such application;

(d) "Convention country" means a member country of the World Trade Organization or a country declared as such under section 86;

[1][(e) "date of advertisement", wherever appearing in this Ordinance, shall be the date on which the patents' journal is published or uploaded on website of the Intellectual Property Organization of Pakistan or printed in hard form in relevant part of the official Gazette, whichever is earlier:]

(f) "date of filing", in relation to an application for a patent, means-

(i) in case of an application which is post-dated or ante-dated under this Ordinance, the date to which it is so post-dated or ante-dated; and

[2][(ii) the date on which it is filed at the Patent Office or its branch office;]

(g) "District Court" has the meaning assigned to that expression by the Code of Civil Procedure, 1908 (Act V of 1908);

(h) "exclusive licence" means a licence from a proprietor of, or an applicant of, a patent which confers on the licensee, or on the licensee and persons authorized by him, to the exclusion of all other persons, including the proprietor or applicant, any right in respect of the invention, to which the patent or application relates, and "exclusive licensee" and "non-exclusive licensee" shall be construed accordingly;

[3][(i) "invention" means any new and useful product or process, in any field of technology and includes any new and useful improvement of either of them;]

(j) "inventor" means the actual devisor of an invention, and joint inventor shall be construed accordingly;

(k) "legal representative" means a person who in law represents the estate of a deceased person;

[4][(ka) "mail box" means the mailbox facility provided under sub-section (9) of section 13;]

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[1]Subs by Act XXIV of 2016, s.2.
[2]Subs by the Patents (Amdt.) Ordinance, 2002 (95 of 2002), s. 3, for sub-clause (ii).
[3]Subs ibid., for clause (i).
[4]New clause (ka) ins. *ibid*.,

(l) "patent agent" means an advocate or a person for the time being registered under this Ordinance as a patent agent;

(m) "patentee" in relation to a patent, means the person or persons for the time being entered on the Register as the grantee or proprietor of the patent and includes any subsequent assignee or successor-in-interest of a patent recordal of whose name on the Register is pending with the Controller;

(n) "patent of addition" means a patent of addition granted in accordance with section 39;

(o) "Patent Office" means the Patent Office established, or deemed to have been established, under section 4;

[1][(p) "person" means any natural or juridical person and includes any association or body of individuals, whether incorporated or not;]

(q) "person interested" includes a person engaged in, or in promoting, research in the same field as that to which the invention relates;

(r) "prescribed" means prescribed by rules made under this Ordinance;

[2][(s) "process" means any art, process or method or manner of new manufacture of a product;]

[3][(t) "product" means any substance, article, apparatus or machine;]

(u) "published" means made available to the public whether in Pakistan or elsewhere and a document shall be taken to be published under any provision of this Ordinance, if it can be inspected as of right at any place in Pakistan by members of public, whether on payment or free of cost;

(v) "Register" means the Register of Patents maintained under section 54; and

(w) "rules" means rules made under this Ordinance.

CHAPTER II
ADMINISTRATION

3. Appointment of Controller and other officers.—(1) For the purposes of this Ordinance, the Federal Government shall, by notification in the official Gazette, appoint an officer who shall be called the Controller of Patents.

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[1]Subs. by the Patents (Amdt.) Ordinance, 2002 (95 of 2002), s. 3 for clause (p).
[2]Subs. ibid., for clause (s).
[3]Subs. ibid., for clause (t).

(2) The Federal Government shall appoint such other officers with such designations as it deems fit.

4. Patent Office.—(1) For the purposes of this Ordinance, there shall be established a Patent Office:

Provided that until such time the Patent Office is established, the Patent Office established under the Patents and Designs Act, 1911, (Act II of 1911) shall be the Patent office for the purposes of this Ordinance.

(2) The Patent office shall be under the immediate control of the Controller who shall act under the superintendence and direction of the Federal Government.

(3) The Patent Office shall be entrusted with all the functions relating to the procedure for the grant of patents and for the administration of granted patents as specified in this Ordinance and rules.

(4) There shall be a seal of the Patent Office and impression of the seal shall be judicially noticed.

5. Officers and employees incapable of an interest in a patent. Any officer or a person employed in the Patent Office shall be incapable during the period of his appointment and for one year thereafter of applying for a patent or of acquiring, directly or indirectly, except by inheritance or bequest, any patent issued or to be issued by the Patent Office.

6. Officers and employees not to divulge certain information or advise in certain matters. An officer or a person employed in the Patent Office shall not, except when required or authorized by this Ordinance or under a direction in writing of the Controller or by order of the Court:—

(a) divulge any information available to him by virtue of his office in respect of any application for a patent or a patent granted in Pakistan; or

(b) advise in a matter which is under consideration or is likely to come under consideration of the Patent Office in pursuance of this Ordinance.

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CHAPTER III
PATENTABILITY

7. Patentable inventions.—(1) Any invention is patentable, if it is new, involves an inventive step and is capable of industrial application.

(2) Subject to sub-section (3), the following shall not be regarded as invention within the meaning of sub-section (1), namely:—

(a) a discovery, scientific theory or mathematical method;

(b) a literary, dramatic, musical or artistic work or any other creation of purely aesthetic character whatsoever;

(c) a scheme, rule or method for performing a mental act, playing a game of doing business [1]*.

(d) the presentation of information [2][;and]

[3][(e) substances that exist in nature or if isolated therefrom.]

(3) The provisions of sub-section (2) shall prevent anything from being treated as an invention for the purposes of this Ordinance only to the extent that a patent or an application for a patent relates to that thing as such.

(4) A patent shall not be granted:

[4][(a) for invention the prevention of commercial exploitation of which would be necessary to protect the "*ordre public*" or morality, including to protect human, animal or plant life or health or to avoid serious prejudice to the environment, provided that such exclusion is not made merely because the exploitation is prohibited by any law for the time being in force;]

[5][(b) for plants and animals other than micro-organisms, and essentially biological processes for the production of plants or animals other than non-biological and microbiological processes;]

(c) for [6][diagnostic,] therapeutic and surgical methods for the treatment of humans or animals;

[7][(d) for a new or subsequent use of a known product or process; and

(e) for a mere change in physical appearance of a chemical product where the chemical formula or process of manufacture remains the same provided that this clause shall not apply to an invention fulfilling the criteria of patentability.]

[1]The word "and" omitted by the Patents (Amdt.) Ordinance 2002 (95 of 2002), s. 4.
[2]Subs.and added *ibid.*, for full stop.
[3]New clause (e) added *ibid*.,
[4]Subs. *ibid*; for clause (a).
[5]Subs. *Ibid*.
[6]Subs. *ibid.*, for "diagnostic".
[7]New clauses (d) and (e) added *ibid*.,

8. Novelty.-(1) An invention shall be considered to be new if it does not form part of the state of the art.

(2) The state of the art shall comprise—

(a) everything disclosed to the public anywhere in the world, by publication in tangible form or by oral disclosure, by use or in any other way, prior to the filing or, where appropriate, the priority date, of the application claiming the invention; [1][or]

(b) contents of the complete specification and priority documents published under section 21 of an application filed in Pakistan.

[2][(c) traditionally developed or existing knowledge available or in possession of a local or indigenous community.]

[3][(3) Notwithstanding the provisions of sub-section (2), disclosure of a patentable invention in respect of goods shall not constitute, 'state of the art' if an article is exhibited at any official or officially recognized international exhibition within twelve months preceding the date of filing of an application for grant of patent. If later on, the right of priority is invoked, then the period shall start from the date of introduction of the article into the exhibition. The Controller may require proof, with such documentary evidence as considered necessary, of the identity of the article exhibited and the date of its introduction into the exhibition.]

(4) In this section references to the inventor include references to any proprietor of the invention for the time being.

9. Inventive step. An invention shall be considered as involving an inventive step if it has not been obvious to a person, prior to the date of application for a patent, skilled in the art having regard to any matter which forms part of the state of art by virtue of [4]* * * section 8.

10. Industrial application. —[5][(1) An invention shall be considered to be capable of industrial application if it is capable of being manufactured or otherwise industrially used.].

[6]* * * * * * *

[1]Subs. by the Patent (Amdt.) Ordinance 2002 (95 of 2002), s.5 for "and".
[2]New clause (c) added *ibid*.,
[3]Subs. *Ibid* for sub-section (3).
[4]The certain words omitted *ibid*., s. 6.
[5]Subs. *ibid*., s. 7 for sub-section (1).
[6]Sub-section (2) omitted *ibid*.,

CHAPTER IV
APPLICATIONS

11. Persons entitled to make an application for patent.—(1) Any of the following persons, whether alone or jointly with any other person, may make an application for a patent, namely:—

(a) the true and the first inventors or inventors of the invention or his or, as the case may be, their assignee or successor in interest; and

(b) the legal representative of any deceased person who immediately before his death was entitled to make such application.

12. Right to patent for invention made by employee. The right to the patent for an invention made by an employee during the course of his employment in the area of activity of the employer shall, in the absence of contractual obligation to the contrary belong to the inventor unless the employer proves that the invention could not have been made without the use of employer's facilities, equipment and the like necessary for the invention:

Provided that an invention of exceptional economic value shall entitle the inventor to an equitable remuneration taking into account the nature of his duties, his salary and the benefits derived by the employer.

13. Application for patent.—(1) Every application for the patent shall be made in the prescribed form and shall be filed at the Patent Office in the prescribed manner and shall contain a declaration to the effect that the applicant is in possession of an invention of which he, or in the case of the joint application, at least one of the applicants, claims to be the true and the first inventor of or the legal representative or assignee of such inventor or, as the case may be, inventors, provided that where the inventor is not the applicant, he shall be entitled to be mentioned as such in the application and if he is not so mentioned the Controller may, upon an application made in the prescribed manner and after hearing any interested person, insert the name of such person as an inventor or co-inventor, as the case may be, if he is satisfied that he be named as an inventor of the invention for which the applicant desires, to obtain a patent.

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(2) Where applications for protection have been made in one or more Convention countries in respect of two or more invention which are cognate or of which one is modification of another, a single Convention application may, subject to the provisions of section 15, be made in respect of those inventions at any time within twelve months from the date of the earliest of the said applications for protection.

(3) Each application shall relate to one invention only [1]* * *.

(4) The applicant may, before the acceptance of the application, divide it into two or more applications, hereinafter referred to as divisional applications, provided that each divisional application shall not go beyond the disclosure in the first application.

[1]The certain words omitted by the Patents (Amdt.) Ordinance, 2002 (95 of 2002), s. 8.

(5) Each divisional application shall be entitled to the filing date and, where applicable, the priority date of the first application.

(6) The fact that a patent has been granted on an application that did not comply with the requirement of unity of invention shall not be a ground for the invalidation of the patent.

(7) The applicant may at anytime withdraw the application by making a request to the Controller [1][:]

[1][Provided that where the application has been withdrawn before the advertisement of its acceptance in the official Gazette or publication in the patents journal, the application and the specification, claims and drawings, if any, shall not be open to public inspection.]

[2][(8) An application for an invention relating to genetically modified organisms shall require clearance from the Federal Government and shall comply with such requirement as may be prescribed.

(9) An application for availing exclusive marketing rights for a patentable invention relating to pharmaceutical or agricultural chemical product shall be filed in the mailbox provided for this purpose by the Controller who may require the form and manner for submitting such application as may be prescribed] [1][.]

[1][* * *]

14. Complete and provisional application.—(1) Every application for a patent, other than a Convention application, shall be accompanied by either a complete specification or a provisional specification, and every Convention application shall be accompanied by a complete specification.

(2) Where an application for a patent is accompanied by a provisional specification, a complete specification shall be filed within twelve months from the date of filing of the application, and if the complete specification is not so filed the application shall be deemed to be abandoned.

(3) Where two or more applications in the name of the same applicant are accompanied by provisional specification in respect of invention which are cognate or of which one is a modification of another, and the Controller is of the opinion that the whole of such inventions or such as to constitute a single invention and properly be included in one patent, he may allow one complete specification to be filed in respect of all such provisional specifications.

(4) Where an application for a patent, not being a Convention application, is accompanied by a specification purporting to be a complete specification, the Controller may, if the applicant so requests at any time before the acceptance of the specification, direct that it shall be treated for the purposes of this Ordinance as a provisional specification, and proceed with the application accordingly.

[1]Subs, Added and Omitted by Act XXIV of 2016, s.3.
[2]New sub-sections (8) and (9) of s. 13 added by s. 8 of Ord.no XCV of 2002.

(5) Where a complete specification has been filed in pursuance of an application for a patent accompanied by a provisional specification or by a specification treated by virtue of a direction under sub-section (4) as a provisional specification the Controller may, if the applicant so requests at any time before the acceptance of the complete specification, cancel the provisional specification and post-date the application to the date of filing of the complete specification.

15. Contents of specification.—[1][(1) Every specification, whether complete or provisional, shall describe in the form and manner as may be prescribed.]

(2) Subject to any rules made in this behalf, drawings may, and shall if the Controller so requires, be supplied for the purposes of any specification, whether complete or provisional, and any drawings so supplied shall, unless the Controller otherwise directs, be deemed to form part of the specification, and reference in this Ordinance to a specification shall be construed accordingly.

[2][(2A) For a chemical product intended for use in medicine or agriculture, the specification shall be specific to one chemical product only describing the physical, chemical, pharmacological and pharmaceutical properties or, as the case may be, the properties related to its use in agriculture and its impact on environment.

(2B) Where a biological material is used, the specification shall disclose the place of origin and source of such biological material and shall also exhibit compliance with the relevant applicable rules on access, export and use of that material and where such a material is obtained from Pakistan for use outside Pakistan, the permission of the Federal Government shall be necessary as may be prescribed.]

(3) Every complete specification shall—

(a) fully and particularly describe the invention and the method by which it is to be performed;

(b) disclose the invention which is known to the applicant and for which he is entitled to claim protection; and

[3][(c) end with a claim or claims concisely defining the scope of the invention for which protection is claimed.]

(4) The claim or claims of a complete specification shall relate to a single invention, shall be clear and succinct and shall be fairly based on the matter disclosed in the specification.

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[1]Subs. by the Patents (Amdt.) Ordinance, 2002 (95 of 2002), s. 9, for sub-section (1).
[2]New sub-sections (2A) and (2B) ins. *Ibid* s.9.
[3]Subs. *ibid.*, for clause (c)

(5) Subject to the foregoing provisions of this section, a complete specification filed after a provisional specification, or filed with a Convention application, may include claims in respect of developments of, or additions to, the invention which was described in the provisional specification or, as the case may be, the invention in respect of which the application for protection was made in a Convention country, being developments or additions in respect of which the applicant would be entitled under the provisions of section 11 to make a separate application for a patent.

(6) Every complete specification shall be accompanied by an abstract for the purposes of giving technical information and the Controller shall determine whether the abstract fulfills its purpose and, if it does not, shall instruct the applicant to make modifications to the satisfaction of the Controller.

(7) The abstract shall merely serve the purpose of technical information, in particular, it shall not be taken into account for the purpose of interpreting the scope of protection.

[1][(8) Claim or claims in respect of a complete specification of a chemical product intended for use in agriculture or medicine shall be structurally defined and shall relate to a single chemical product only, excluding its derivates and salts, each of which, with a material or a noval improvement in its claim from the main product, shall be filed as a separate invention or where applicable, as a divisional application, Where structural description is not possible, as in the case of biological products, the "product by process" claim shall be made and protection shall be limited to the product obtained with the claimed process only:

Provided that a claim which is based on a mere admixture resulting only in aggregation of the properties of the component substances thereof, or a processing of producing such substance, shall not be allowed].

CHAPTER V
EXAMINATION OF APPLICATIONS

16. Examination of application.—(1) The Controller shall refer to an examiner every application in respect of which a complete specification has been filed, for making a report to the Controller after detail scrutiny of the application, specification, claims and drawing, if any, to the effect whether the invention is new and involves an inventive step, and to also determine whether other requirements of this Ordinance and rules have been complied with.

(2) The examiner shall make the report to the Controller as soon as is reasonably possible. [2][* * *]

(3) If the examiner reports that any of the requirements of this Ordinance and rules are not complied with, the Controller shall give the applicant an opportunity, or more than one opportunity, to comply with such requirements as may be mentioned in the said report and to amend the application, if necessary, within such time as may be prescribed, failing which the Controller may refuse to proceed with the application.

[1]New sub-section (8) added by the Patents (Amdt.) Ordinance, 2002 (95 of 2002) s.9.
[2]Omitted and shall be deemed always to have been so omitted by Act IX of 2010, s.2.

(4) If the Controller considers, at any time, before the acceptance of the application, that the invention claimed therein has been wholly or in part claimed in a specification published on or after the date which the patent applied for would bear, if granted appertaining to an application for grant of a patent which, if granted, will be prior date to the patent applied for, he may require that the applicant's specification be amended by the insertion of a reference to such other specification by way of notice to the public.

(5) The investigation required under this section shall not be held in any way to guarantee the validity of any patent, and no liability shall be incurred by the Federal Government or any officer by reason of, or in connection with, any such investigation or any proceeding consequent thereon.

[1]* * * * * * *

(6) Notwithstanding anything in the preceding sub-sections, all applications claiming protection for chemical products intended for use in medicine or agriculture filed after the first day of January, 1995, in accordance with Article 70 (8) and 70 (9) of the World Trade Organization Agreement on Trade Related Aspects of Intellectual Property Rights (TRIPs), shall be dealt with in accordance with sub-section (3) of section 1.

17. Reference to other patent.—(1) If, in consequence of the investigation under section 16, it appears to the Controller that an invention in respect of which application for a patent has been made cannot be performed without substantial risk of infringement of a claim of any other patent, he may direct that a reference to that other patent shall be inserted in the applicant's complete specification by way of notice to the public unless, within such time as may be prescribed, either—

(a) the applicant shows to the satisfaction of the Controller that there are reasonable grounds for contesting the validity of the said claim of the other patent; or

(b) the complete specification is amended to the satisfaction of the Controller.

(2) Where, after a reference to another patent has been inserted in a complete specification in pursuance of a direction under sub-section (1)—

(a) that other patent is revoked or otherwise ceases to be in force;

(b) the specification of that other patent is amended by the deletion of the relevant claim; or

(c) it is found, in proceedings before the court or the Controller, that the relevant claim of that other patent is invalid or is not infringed by any working of the applicant's invention,

[1]Omitted by Act IX of 2010, s.2.

the Controller may, on the application of the applicant, delete the reference to that other patent.

18. Substitution of applicants, etc.—(1) If the Controller is satisfied, on an application made in the prescribed manner at any time before a patent has been granted, that by virtue of any assignment or agreement in writing made by the applicant or one of the applicants for the patent, or by operation of law, the claimant would, if the patent were then granted, be entitled thereto or to the interest of the applicant therein, or to an undivided share of the patent or of that interest, the Controller may, subject to the provisions of this section, direct that the application shall proceed in the name of the claimant or in the names of the claimants and the applicant or the other joint applicant or applicants, as the case may require.

(2) No such direction under sub-section (1) shall be given by virtue of any assignment or agreement made by one of two or more joint applicants for a patent except with the consent of the other joint applicant or applicants.

(3) No such direction under sub-section (1) shall be given by virtue of any assignment or agreement for the assignment of the benefit of an invention unless—

(a) the invention is identified therein by reference to the number of the application for the patent;

(b) there is produced to the Controller an acknowledgement by the person by whom the assignment or agreement was made that the assignment or agreement relates to the invention in respect of which that application is made;

(c) the rights of the claimant in respect of the invention have been finally established by a decision of a court; or

(d) the Controller gives directions for enabling the application to proceed or for regulating the manner in which it should be proceeded with under sub-section (5).

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(4) Where one of two or more joint applicants for patent dies at any time before the patent has been granted, the Controller may, upon a request in that behalf made by the survivor or survivors, and with the consent of the legal representative of the deceased, direct that the application shall proceed in the name of the survivor or survivors alone.

(5) If any dispute arises between joint applicants for a patent whether or in what manner the application should be proceeded with, the Controller may, upon application made to him in the prescribed manner by any of the parties, and after giving to all parties concerned an opportunity of being heard, give such directions as he thinks fit for enabling the application to proceed in the name of one or more of the parties alone or for regulating the manner in which it should be proceeded with, or for both those purposes, as the case may require.

[1][**19.** * * *]

20. Power of Controller to require certain information and documents relating to foreign application.—(1) The applicant shall, when required by the Controller, furnish him with the date and number of any application for a patent filed by him abroad, hereinafter referred to as foreign application, relating to the same or essentially the same invention as that claimed in the application filed in Pakistan.

(2) The applicant shall, when required by the Controller, furnish him with the following documents relating to one of the foreign applications referred to in sub-section (1), namely:—

(i) a copy of any communication received by the applicant concerning the results of any search or examination carried out in respect of the foreign application;

(ii) a copy of the patent granted on the basis of the foreign application; and

(iii) a copy of any final decision rejecting the foreign application.

(3) The applicant shall, when required by the Controller, furnish him with a copy of any final decision invalidating the patent granted on the basis of foreign application referred to in sub-section (1).

21. Acceptance of complete specification. On the acceptance of a complete specification, the Controller shall give notice thereof to the applicant and shall advertise in the official Gazette [2][and publish in the patent's journal] the fact that specification has been accepted and thereupon the application and the specification, and the priority documents, if any, filed in pursuance thereof shall be open to public inspection.

[3]**[22. Effect of acceptance of complete Specification**. After the acceptance of an application and until the date of sealing a patent in respect thereof, or the expiration of the time for sealing, the applicant shall have the like privileges and rights as if a patent for the invention had been sealed on the date of the acceptance of the application:

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Provided that the applicant shall not be entitled to institute any proceedings for infringement until the patent has been sealed.]

CHAPTER VI
OPPOSITION TO GRANT OF PATENT

23. Opposition to the grant of patent.—(1) At any time within four months from the date of advertisement of the acceptance of a complete specification under this Ordinance, any person may give notice to the Controller of opposition to the grant of patent on any of the following grounds, namely:—

[1]Omitted by Act IX of 2010,s.3.
[2]Ins by Act XXIV of 2016, s.4.
[3]Subs. by the Patents (Amdt.) Ordinance, 2002 (95 of 2002), s. 10. for the original section (22).

(a) that the applicant for the patent obtained the invention or any part thereof from him or from the person of whom the opponent is the legal representative, assignee, agent or attorney;

(b) that the invention is not a patentable invention within the meaning of this Ordinance;

(c) that the specification does not disclose the invention in a manner clear and complete enough for it to be carried out by a person skilled in the art;

(d) that the claims are not clear or extend beyond the scope of the disclosures in the complete specification as originally filed; and

(e) that the complete specification describes or claims an invention other than that described in the provisional specification and that such other invention either forms the subject of an application made by the opponent for a patent which if granted would bear a date in the interval between the date of the application and the leaving of the complete specification, or has been made available to the public by publication in any document in that interval.

(2) Where a notice is given under sub-section (2), the Controller shall give notice of the opposition to the applicant, and shall, before deciding the case, give to the applicant and the opponent an opportunity of being heard.

24. Third party observations on patentability.—(1) At any time after the publication of the specification under section 21, any person may make observations in writing to the Controller on the novelty of the invention giving evidence in support of his observations and the Controller shall consider the observations in the light of the evidence made available to him before the grant of patent.

(2) The person who makes observations under sub-section (1) shall not become a party to the proceedings under this Ordinance before the Controller by reason only that he has made the observations, failing which the observations shall be rejected as if not filed at all.

CHAPTER VII
PROVISIONS FOR SECRECY OF CERTAIN INVENTIONS

25. Information prejudicial to defence of Pakistan or safety of public.—(1) Where an application for a patent in respect of an invention is filed in the patent Office and it appears to the Controller that the invention is one of the class notified to him by the Federal Government as being one the publication of which might be prejudicial to the defence of Pakistan, or if he himself thinks so, then he may give directions prohibiting or restricting the publication of the invention or its communication to any specified person or class of persons.

(2) If it appears to the Controller that the specification of any application so filed contains information the publication of which might be prejudicial to the safety of the public, he may give

directions prohibiting or restricting the publication of that information or its communication to any person until the end of a period not exceeding three months from the date of the acceptance.

(3) While directions are in force under this section, the application may proceed to the stage where it is in order for acceptance, but specification shall not be published.

(4) Where the Controller gives directions under this section with respect to any application, he shall give notice of the application and of the directions to the Federal Government and the following provisions shall then have effect, namely:—

(a) the Federal Government shall, on receipt of the notice, consider whether the publication of the invention or the publication or communication of the information in question would be prejudicial to the defence of Pakistan or the safety of the public;

(b) if the Federal Government determine under clause (a) that the publication of the specification or the publication or communication of that information would be prejudicial to the safety of the public, it shall given notice to the Controller who shall continue his directions under sub-section (2) until they are revoked under clause (e);

(c) if the Federal Government determine under clause (a) that the publication of the specification or the publication or communication of that information would be prejudicial to the defence of Pakistan or the safety of the public, it shall, unless a notice under clause (d) has previously been given to the Controller, reconsider that question during the period of nine months from the date of filing the application and at least once in every subsequent period of twelve months;

(d) if on consideration of an application at any time it appears to the Federal Government that the publication of the specification or the publication or communication of the information contained in it would not, or would no longer, be prejudicial to the defence of Pakistan or the safety of the public, it shall give notice to the Controller to that effect; and

(e) on receipt of a notice under clause (d), the Controller shall revoke the directions and may, subject to such conditions, if any, as he thinks fit, extend the time for doing any thing required or authorized to be done by or under this Ordinance in connection with the application, whether or not that time has previously expired.

(5) Where a complete specification filed in pursuance of an application for a patent for an invention in respect of which directions have been given under this section is accepted before the directions are revoked, then—

(a) if any use of the invention is made by or on behalf or to the order of the Federal Government, the provisions of section 58 shall apply in relation to that use as if the patent has been granted for the invention; and

(b) if it appears to the Federal Government that the applicant for the patent has suffered hardship by reason of the continuance in force of the directions, the

Federal Government may make such payment, if any, by way of compensation to the applicant as appears to the Federal Government to be reasonable having regard to the inventive merit and utility of the invention, the purpose for which it is designed and any other relevant circumstances.

(6) Where a patent is granted in pursuance of an application in respect of which directions have been given under this section, no renewal fees shall be payable in respect of any period during which those directions were in force.

26. Residents not to apply outside Pakistan without permission.—(1) No person resident in Pakistan shall, without written authority granted by the Controller, file or cause to be filed outside Pakistan an application for the grant of a patent for an invention unless—

(a) an application for patent for the same invention has been filed in the Patent Office not less than six weeks before the application outside Pakistan; and

(b) either no directions have been given under section 25 in relation to the application in Pakistan or all such directions have been revoked.

(2) The provisions of sub-section (1) shall not apply in Pakistan to an invention in respect of which an application for a patent has first been filed in a country outside Pakistan by a person resident outside Pakistan.

CHAPTER VIII

GRANT AND SEALING OF PATENT

27. Grant and sealing of Patent.—(1) Subject to the provisions of this Ordinance with respect to opposition and to any power of the Controller to refuse the grant, a patent sealed with the seal of the Patent Office shall, if the request is made within the time allowed under this section, be granted to the applicant or applicants within that time or as soon as may be thereafter, and the date on which the patent is sealed shall be entered in the Register.

(2) Subject to the provisions of this Ordinance with respect to patents of addition, a request under this section for the sealing of a patent shall be made not later than the expiration of six months from the date of the publication of the complete specification:

Provided that—

(a) where at the expiration of the said six months any proceedings in relation to the application for the patent is pending in any court or before the Controller, the request may be made within three months after the final determination of that proceedings; and

(b) where the applicant or one of the applicants has died before the expiration of the time within which under the provisions of this sub-section the request

could otherwise be made, the said request may be made at any time within twelve months after the date of the death or at such later time as the Controller may allow.

***Explanation*.**—Any proceedings shall be deemed to be pending so long as the time for any appeal therein has not expired, and any proceedings shall be deemed to be finally determined when the time for any appeal therein has expired without the appeal being brought.

(3) The period for making the request under sub-section (2) for the sealing of a patent may be extended by the Controller by six months if the application is made and the prescribed fee paid within the extended period.

28. Amendment of patent granted to a deceased person. Where, at any time after a patent has been sealed in pursuance of an application under this Ordinance, the Controller is satisfied that the person to whom the patent was granted had died, or, in the case of a body corporate, had ceased to exist, before the patent was sealed, he may amend the patent by substituting for the name of that person the name of the person to whom the patent ought to have been granted, and the patent shall have effect, and shall be deemed always to have had effect, accordingly.

29. Date of patent.—(1) Subject to the other provisions of this Ordinance, every patent shall be dated as of the filing date of the application and in case of a Convention application the date of such earliest application filed in the Convention country from which priority has been claimed.

(2) The date of every patent shall be entered in the Register.

30. Rights conferred by patent. —[1][(1) Subject to other provisions of this Ordinance, the holder of a valid patent in Pakistan shall have the following rights, namely:-

(a) Where the subject matter of patent is a product, the holder of valid patent may prevent third parties not having the owner's consent from the acts of making, using, offering for sale, selling, or importing for these purposes that product; and

(b) where the subject matter of a patent is a process, the holder of a valid patent may prevent third parties not having the owner's consent from the act of using the process, and from the act of using, offering for sale, selling, or importing for these purposes at least the product obtained directly by that process.]

[2][(2) The holder of a valid patent shall also have the right to assign, or transfer by succession, the patent and to conclude licensing contracts.]

(3) The owner of the patent shall, in addition to any other rights, remedies or actions available to him have the right, subject to sub-section (4) and section 59, to institute court proceedings against any person who infringes the patent by performing, without his agreement, any of the acts referred to in sub-section (2) or who performs acts which make it likely that infringement will occur.

[1]Subs. by the Patents (Amdt.) Ordinance, 2002 (95 of 2002) s. 11, for sub-section (1).
[2]Subs.*Ibid* s. 11, for sub-section (2).

[1][(4) Where a person has filed an application in the mailbox, in accordance with sub-section (9) of section 13, for protection of an invention relating to a pharmaceutical or agriculture chemical product, exclusive marketing rights shall be granted for a period of five years after obtaining marketing approved or until a product patent is granted or rejected whichever period is shorter, provided that, subsequent to the first January, 1995, a patent application has been filed and a patent granted for that product in any Convention country and marketing approval obtained in such country;]

[2][(4A) Where a person has made an invention in Pakistan in respect of a process of manufacture of any of the products referred to in sub-section (4) and has obtained a patent for the same and has filed an application in the mailbox for protection of the invention, and has been granted marketing approval thereof, then he shall have the exclusive marketing rights for that product for a period of five years after obtaining marketing approval or until a product patent is granted or rejected whichever period is shorter.]

(5) The rights under the patent shall not extend to—

[3][(a) acts in respect of articles which have been put on the market anywhere in the world by the owner of the patent or with his consent or by an authorized person or in any other legitimate manner such as compulsory licenses;]

(b) the use of articles on an aircraft, land vehicles or vessels of other countries which temporarily or accidentally enter the airspace, territory or waters of Pakistan;

(c) acts done only for experimental purposes relating to a patented invention;[4]*

(d) acts performed by any person who in good faith, before the filling or, where priority is claimed, the priority date of the application on which the patent is granted in Pakistan, was using the invention or was making effective and serious preparations for such use [5][;or]

[3][(f) acts done for teaching purposes in educational or research institutions.]

(6) The right of prior user referred to in clause (d) of subsection (5), may be transferred or devolve only together with the enterprise or business, or with that part of the enterprise or business, in which the use of preparations for use have been made.

31. Term of patent. The term of a patent under this Ordinance shall be twenty years from the filing date.

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[1]Subs. by the Patents (Amdt.) Ordinance, 2002 (95 of 2002), s. 11, for sub-section (4).
[2]New sub-section (4A) ins. ibid.,
[3]Subs.*Ibid* for clause (a).”
[4]The word “or” omitted ibid.,
[5]Subs. ibid., for full stop.
[6]New clause (f) inserted, ibid.

32. Grant of patents to be subjected to certain conditions.—(1) Notwithstanding anything in section 31, a patent shall cease to have effect on the expiration of a period for the payment of any renewal fee if that fee is not paid within the prescribed period or within the period as extended under this section.

(2) The period prescribed for the payment of any renewal fee shall be extended to such period not being more than six months if the request is made to the Controller and the renewal fee and the prescribed additional fee is paid before the expiration of the extended period.

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CHAPTER IX
MISCELLANEOUS PROVISIONS AS TO RIGHTS IN INVENTIONS

33. Priority date in case of invention obtained from other person.—(1) Where an application is made for a patent for an invention which has been claimed in a complete specification filed in pursuance of any other such application, then if—

(a) the Controller has refused to grant a patent in pursuance of that other application on the ground specified in clause (a) of sub-section (1) of section 23;

(b) a patent granted in pursuance of that other application has been revoked by the High Court under section 46 or by the Controller under section 47 on the ground specified in clause (a) of sub-section (1) of section 23; or

(c) the complete specification filed in pursuance of the said other application has been amended by the exclusion of the claim relating to the said invention in consequence of a finding by the Controller that the invention was obtained by the applicant or patentee from any other person,

the Controller may direct that the first-mentioned application and any specification filed in pursuance thereof shall be deemed, for the purposes of the provisions of this Ordinance relating to the priority date of claims of complete specification, to have been filed on the date on which the corresponding document was or was deemed to have been filed in the proceedings upon the said other application.

34. Grant of patent to two or more persons.—(1) Where a patent is granted to two or more persons, each of those persons shall, unless an agreement to the contrary is in force, be entitled to an equal undivided share in the patent.

(2) Subject to the provisions of this section and section 35, where two or more persons are registered as grantee or proprietor of a patent, then, unless an agreement to the contrary is in force, each of those persons shall be entitled, by himself or his agents, to exploit, use, exercise and sell the patented invention for his own benefit without accounting to the other person or persons.

(3) Subject to the provisions of this section and section 35 and to any agreement for the time being in force, where two or more persons are registered as grantee or proprietor of a patent, then, a licence under a patent shall not be granted, and a share in a patent shall not be assigned, by one of

such persons, except with the consent of the other person or persons.

(4) Where a patented article is sold by one of two or more persons registered as grantee or proprietor of the patent relating to that article, the purchaser and any person claiming through him shall be entitled to deal with it in the same manner as if the article had been sold by a sole patentee.

(5) Subject to the provisions of this section, the provisions of law applicable to the ownership and devolution of movable property generally shall apply in relation to patents, and nothing contained in sub-section (1) or sub-section (2) shall affect the mutual rights or obligations of trustees or of the legal representatives of a deceased person or their rights or obligations as such.

35. Power of Controller to give directions to co-owners.—(1) Where two or more persons are registered as grantee or proprietor of a patent, the Controller may, upon application made to him in the prescribed manner by any of those persons, give such directions in accordance with the application as to the sale or lease of the patent or any interest therein, the grant of licences under the patent, or the exercise of any right under section 39 in relation thereto, as he thinks fit.

(2) If any person registered as grantee or proprietor of the patent fails to execute any instrument or to do any other thing required for the carrying out of any direction given under this section within fourteen days after being requested in writing so to do by any of the other persons so registered, the Controller may, upon application made to him in the prescribed manner by any such other person, give directions empowering any person to execute that instrument or to do that thing in the name and on behalf of the person in default.

(3) Before giving directions in pursuance of an application under this section, the Controller shall give an opportunity of being heard—

(a) in the case of an application under sub-section (1), to the other person or persons registered as grantee or proprietor of the patent; and

(b) in the case of an application under sub-section (2), to the person in default.

(4) No direction shall be given under this section so as to affect the mutual rights or obligations of trustee or of the legal representatives of a deceased person, or their rights or obligations as such.

36. Power of Controller or Court to determine the matter in dispute between employer and employee. —(1) Where a dispute arises between an employer and a person who is or was at the material time his employee as to the rights of the parties in respect of an invention made by the employee either alone or jointly with other employees or in respect of any patent granted or to be granted in respect thereof, the Controller may, upon application made to him in the prescribed manner by either of the parties and after giving to each of them an opportunity of being heard, determine the matter in dispute, and may make such orders for giving effect to his decision as he considers expedient:

Provided that, if it appears to the Controller upon an application under this section that the matter in dispute involves questions which should be determined by the Court, he may decline to deal therewith.

(2) In proceedings before the Court between an employer and a person who is or was at the

material time his employee, or upon an application made to the Controller under sub-section (1), the Court or, as the case may be, the Controller may, if satisfied that both the parties are entitled to the benefit of an invention made by the employee, by order provide for the apportionment between them of the benefit of the invention, and of any patent granted or to be granted in respect thereof, in such manner as the Court or, as the case may be, the Controller considers just.

(3) A decision of the Controller under this section shall have the same effect as between the parties and persons claiming under them as a decision of the Court.

37. Avoidance of restrictive condition in contracts.—(1) Subject to the provisions of this section, any condition of a contract for the sale or lease of a patented article or of an article made by a patented process or for license to exploit a patented article or process, or relating to any such sale, lease or license, shall be void so far as it purports—

(a) to require the purchaser, lessee or licensee to acquire from the vendor, lessor or licensor, or his nominees, or prohibit him from acquiring from any specified person, or from acquiring except from the vendor, lessor or licensor, or his nominees, any article other than the patented article or an article made by the patented process; or

(b) to prohibit the purchaser, lessee or licensee from using articles, whether patented or not, which are not supplied by, or any patented process which does not belong to, the vendor, lessor or licensor, or his nominees, or to restrict the right of the purchaser, lessee or licensee to use any such article or process.

(2) In proceedings against any person for infringement of a patent, it shall be a defence to prove that at the time of the infringement there was in force a contract relating to the patent made by or with the consent of the plaintiff and containing a condition void by virtue of this section.

(3) A condition of a contract shall not be void by virtue of this section if—

(a) at the time of the making of the contract the vendor, lessor or licensor was willing to sell or lease the article, or grant a license to use or exploit the article or process, as the case may be, to the purchaser, lessee or licensee, on reasonable terms specified in the contract and without any such condition as is mentioned in subsection (1); and

(b) the purchaser, lessee or licensee is entitled under the contract to relieve himself of his liability to observe the condition upon giving to the other party three months notice in writing and subject to payment to him of a just compensation.

38. Determination of certain contracts. Any contract for the sale or lease of a patented article or for license to manufacture, exploit a patented article or process, or relating to any such sale, lease or license, whether made before or after the commencement of this Ordinance, may at any time after the patent or all the patents by which the article or process was protected at the time of the making of the contract has or have ceased to be in force, and notwithstanding anything to the contrary in the contract or in any other contract, be determined by either party on giving three months notice in writing to the other party.

CHAPTER X
PATENTS OF ADDITION

39. Patents of addition.—(1) Where an application is made for a patent in respect of any improvement in or modification of an invention, hereinafter referred to as the "main invention" and the applicant also applies or has applied for a patent for that invention or is the patentee in respect thereof, the Controller may, if the applicant so requests, grant the patent for the improvement or modification as a patent of addition.

(2) Where an invention, being an improvement in or modification of another invention, is the subject of an independent patent and the patentee in respect of that patent is also the patentee in respect of the patent for the main invention, the Controller may, if the patentee so requests, by order revoke the patent for the improvement of the modification and grant to the patentee a patent of addition in respect thereof, bearing the same date as the date of the patent so revoked.

(3) A patent shall not be granted as a patent of addition unless the date of filing of the complete specification was the same as or later than the date of filing of the complete specification in respect of the main invention.

(4) A patent of addition shall not be sealed before the sealing of the patent for the main invention, and if the period within which, but for this provision, a request for the sealing of a patent of addition could be made expires before the period within which a request for the sealing of the patent for the main invention may be so made, the request for the sealing of the patent of addition may be made at any time within the last-mentioned period.

40. Term of patents of addition.—(1) A patent of addition shall be granted for a term equal to that of the patent for the main invention, or so much thereof as is unexpired, and shall remain in force during that term or until the previous cesser of the patent for the main invention and no longer:

Provided that:

(a) if the term of the patent for the main invention is extended under the foregoing provisions of this Ordinance, the term of the patent of addition may also be extended accordingly; and

(b) if the patent for the main invention is revoked under this Ordinance, the court or, as the case may be, Controller may order that the patent of addition shall become an independent patent for the remainder of the term of the patent for the main invention, and thereupon the patent shall continue in force as an independent patent accordingly.

(2) No renewal fees shall be payable in respect of a patent of addition, but, if any such patent becomes an independent patent by virtue of an order under sub-section (1), the same fees shall thereafter be payable, upon the same dates, as if the patent had been originally granted as an independent patent.

41. Patent of addition not to be refused, etc. The grant of a patent of addition shall not be refused, and a patent granted as a patent of addition shall not be revoked or invalidated on the

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ground only that the invention claimed in the complete specification does not involve any inventive step having regard to any publication or use of–

(a) the main invention described in the complete specification relating thereto; or

(b) any improvement in or modification of the main invention described in the complete specification of a patent of addition to the patent for the main invention or of an application for such a patent of addition, and the validity of a patent of addition shall not be questioned on the ground that the invention ought to have been the subject of an independent patent.

CHAPTER XI
AMENDMENT OF SPECIFICATION

42. Amendment of specification with leave of Controller.—(1) Subject to the provisions of section 44, the Controller may, upon an application made under this section by an applicant for a patent or a patentee, allow the application for the patent or the complete specification to be amended subject to such conditions, if any, as the Controller thinks fit:

Provided that the Controller shall not allow a specification to be amended under this section upon an application made while any action before the Court for infringement of the patent or any proceeding before the court for the revocation of the patent is pending.

(2) Every application for leave to amend and application for a patent or a specification under this section shall state the nature of the proposed amendment and give full particulars of the reasons for which the application is made.

(3) Every application for leave to amend an application for a patent or a specification under this section made after the acceptance of the complete specification and the nature of the proposed amendment shall be advertised in the prescribed manner.

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(4) Within the prescribed period after the advertisement of an application under sub-section (3), any person may give notice to the Controller of opposition thereto, and where such a notice is given within the period aforesaid, the Controller shall give notice to the person by whom the application is made and shall give to that person and to the opponent an opportunity of being heard before he decides the case.

(5) This section shall not apply in relation to any amendment of a specification effected in proceedings in opposition to the grant of a patent or effected in pursuance of any provision of this Ordinance authorizing the Controller to direct a reference to another specification or patent to be inserted, or to refuse to grant a patent, or to revoke a patent, unless the specification is amended to his satisfaction.

43. Amendment of specification with leave of High Court.—(1) In any proceeding before the High Court for the revocation of a patent, the High Court may, subject to the provisions of section 44, by order allow the patentee to amend his complete specification in such manner, and subject to such terms as to costs, advertisements or otherwise, as the High Court may think fit, and if

in any such proceedings for revocation the High Court decides that the patent is invalid, the High Court may allow the specification to be amended under this section instead of revoking the patent.

(2) Where an application for an order under this section is made to the High Court the applicant shall give notice of the application to the Controller, and the Controller shall be entitled to appear and be heard, and shall appear if so directed by the High Court.

44. Supplementary provisions as to amendment of specification.—(1) No amendment of specification shall be allowed, except for the purpose of correcting an obvious mistake, the effect of which would be that the specification as amended would claim or describe matter not in substance disclosed in the specification before the amendment.

(2) Where, after the date of the publication of a complete specification, any amendment of the specification is allowed or approved by the Controller or the High Court under this Ordinance, the right of the patentee or applicant to make the amendment shall not be called in question except on the ground of fraud, and the amendment shall for all purposes be deemed to form part of the specification:

Provided that in construing the specification as amended reference may be made to the specification as originally published.

(3) Where, after the date of the publication of a complete specification, any amendment of the specification is allowed or approved under this section, the fact that the specification has been amended shall be advertised in the official Gazette [1][and published in the Patents' journal].

CHAPTER XII
RESTORATION OF LAPSED PATENTS

45. Restoration of lapsed patents.—(1) Where a patent has ceased to have effect by reason of a failure to pay any renewal fee within the prescribed period, an application for the restoration of the patent may be made to the Controller under this section within eighteen months from the date on which the patent ceased to have effect.

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(2) An application under this section may be made by the person she was the proprietor of the patent or by any other person who would have been entitled to the patent if it had not ceased to have effect, and where the patent was held by two or more persons jointly, the application may, with the leave of the Controller, be made by one or more of them without joining the others.

(3) If the Controller is satisfied that—

(a) the proprietor of the patent took reasonable care to see that any renewal fee was paid within the prescribed period or that the fee and any prescribed additional fee were paid within six months immediately following the end of that period; and

[1]Ins. by Act of XXIV of 2016,s.5.

(b) those fees were not so paid because of circumstances beyond his control,

the Controller shall by order restore the patent on payment of any unpaid renewal fee and any prescribed additional fee.

(4) An order under this section may be made subject to such conditions as the Controller thinks fit and if the proprietor of the patent does not comply with any condition of such an order, the Controller may revoke the order and give such directions consequential on the revocation as he thinks fit.

(5) Where an order is made under this section and, between the end of the period of six months beginning with the date when the patent concerned ceased to have effect and the date of the application under this section, any person has begun in good faith to use the patented invention has made effective and serious preparations to make use of the invention, he shall, after the order comes into force, have the right to make use of the invention and the said use shall not amount to an infringement of the patent concerned.

(6) Where a patented product is disposed of by any person to another in exercise of a right conferred by sub-section (5), that other and any other person claiming through him shall be entitled to deal with the product in the same way as if it had been disposed of by a sole registered proprietor.

CHAPTER XIII

REVOCATION AND SURRENDER OF PATENTS

46. Revocation of patent by High Court.—(1) Subject to the provisions of this Ordinance, a patent may, on the petition of any person interested or of the Federal Government or on a counter-claim in a suit for infringement of the patent, be revoked in part or in whole by the High Court on any one or more of the grounds upon which grant of patent may be refused.

(2) Without prejudice to the provisions contained in sub-section (1), a patent may be revoked by the High Court on the petition of the Federal Government, if the High Court is satisfied that the patentee has without reasonable cause failed to comply with the request of the Federal Government to make, use or exercise the patented invention for the services of the Government upon reasonable terms.

(3) A notice of any petition for revocation of a patent under this section shall be served on all persons appearing from the Register to be proprietor of that patent or to have shares or interests therein, and it shall not be necessary to serve a notice on any other person.

47. Revocation of patent by Controller.—(1) At any time within twelve months after the sealing of a patent, any person interested who did not oppose the grant of the patent may apply to the Controller for an order revoking the patent on any one or more of the grounds upon which the grant of the patent could have been opposed:

Provided that when an action for infringement, or proceedings for the revocation, of a patent are pending in any court, an application to the Controller under this section shall not be made except with the leave of the court.

(2) Where an application is made under this section, the Controller shall give notice to the patentee and shall give to the applicant and the patentee an opportunity of being heard before deciding the case.

(3) If, on an application under this section, the Controller is satisfied that any of the grounds specified in sub-section (1) are established, he may by order direct that the patent shall be revoked either unconditionally or unless within such time as may be specified in the order the complete specification is amended to his satisfaction:

Provided that the Controller shall not make an order for the unconditional revocation of a patent under this section unless the circumstances are such as would have justified him in refusing to grant the patent.

[1][**48.— Revocation of patent by the Federal Government.** Where the Federal Government is of the opinion that:—

(a) a patent or the made in which it is exercised is mischievous to the State or generally prejudicial to the public; or

(b) a patent has been obtained through concealment or misrepresentation in the application; or

(c) where the compulsory licence granted to prevent the abuse which might result from the exercise of the exclusive rights conferred by the patent, for example, failure to work or in relation to anti-competitive practices, has not been sufficient, it may, after giving the patentee an opportunity of being heard, make a declaration to that effect in the official Gazette, [2][and in the Patents' jounal] and thereupon the patent shall be deemed to have been revoked:

Provided that proceedings upon clause (c) and shall not begin before the expiration of two years from the grant of first compulsory licence.]

49. Revocation of surrendered patent by Controller.—(1) A patentee may, at any time by giving notice in the prescribed manner to the Controller, offer to surrender his patent.

(2) Where an offer under sub-section (1) is made, the Controller shall advertise the offer in the prescribed manner, and also give notice to every person other than patentee whose name appears in the Register as having an interest in the patent.

(3) Any person interested may, within the prescribed period after such advertisement, give notice to the Controller of opposition to the surrender, and where any such notice is given, the Controller shall give notice to the patentee.

(4) If the Controller is satisfied, after hearing the patentee and any opponent, if desirous of being heard, that the patent may properly be surrendered, he may accept the offer and, by order, revoke the patent.

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[1]Subs. by the Patents (Amdt.) Ordinance, 2002 (95 of 2002), s. 12, for the original section 48.
[2]Ins. by Act XXIV of 2016,s.6.

CHAPTER XIV

POWERS OF CONTROLLER

50. Controller to have certain powers of a civil court.—(l) Subject to any rules made in this behalf, the Controller in any proceedings before him under this Ordinance shall have the powers of a civil court while trying a suit under the Code of Civil Procedure, 1908 (Act V of 1908) in respect of the following matters, namely:—

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) requiring the discovery and production of any document;

(c) receiving evidence on affidavits;

(d) issuing commissions for the examination of witnesses or documents; and

(e) awarding costs.

51. Power of Controller to correct clerical errors.—(1) The Controller may, in accordance withthe provisions of this section, correct any clerical error in any patent or in any specification or other document filed in pursuance of such application or in any application for a patent or any clerical error in any matter which is entered in the Register.

(2) A correction may be made in pursuance of this section either upon a request in writing made by any person interested and accompanied by the prescribed fee, or without such a request.

(3) Where the Controller proposes to make any such correction as referred to in sub-section (1), otherwise than in pursuance of a request made under this section, he shall give notice of the proposal to the patentee or the applicant for the patent, as the case may be, and to any other person who appears to him to be concerned, and shall give them an opportunity of being heard before making the correction.

(4) Where a request is made under sub-section (2), for the correction of any clerical error in a patent or application for a patent or any document filed in pursuance of such an application, and it appears to the Controller that the correction would materially alter the meaning or scope of the document to which the request relates and ought not to be made without notice to persons affected thereby, he shall require notice of the nature of the proposed correction to be advertised in the prescribed manner.

(5) Within the prescribed time after any such advertisements as referred to in sub-section (4), any person interested may give notice to the Controller of opposition to the request, and, where such notice of opposition is given, the Controller shall give notice thereof to the person by whom the request was made, and shall give to him and to the opponent as opportunity of being heard before he decides the case.

52. Evidence before Controller. Subject to any rules made in this behalf, in any proceedings under this Ordinance before the Controller, evidence shall be given by affidavit in the absence of directions by the Controller to the contrary, but in any case in which the Controller thinks it right so to do he may take oral evidence in lieu of, or in addition to, evidence by affidavit, or may allow any party to be cross-examined on the contents of his affidavit.

53. Exercise of discretionary powers by Controller. Without prejudice to any provision of this Ordinance requiring the Controller to hear any party to the proceedings thereunder or to give any such party an opportunity of being heard, the Controller shall give to any applicant for a patent or for amendment of a specification, if within the prescribed time the applicant so requires, an opportunity of being heard before exercising adversely to the applicant any discretion vested in the Controller by or under this Ordinance.

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CHAPTER XV
REGISTER OF PATENTS

54. Register of Patents.—(1) There shall be kept at the Patent Office a Register of Patents, wherein shall be entered the names and addresses of grantees of patents, notifications of assignments and of transmissions of patents, of licenses under patents, and of amendments, extensions, and revocations of patents and particulars of such other matters affecting the validity or proprietorship of patents as may be prescribed.

(2) The Register of Patents kept under the Patents and Designs Act, 1911 (Act II of 1911) shall be incorporated in, and form part of, the Register to be kept under this Ordinance.

(3) No notice of any trust, whether express, implied or constructive, shall be entered in the Register, and the Controller shall not be affected by any such notice.

(4) Subject to the superintendence and direction of the Federal Government, the Register shall be kept under the control and management of the Controller.

55. Registration of assignments, transmissions, etc.—(1) Where any person becomes entitled by assignment, transmission or operation of law to a patent or to a share in a patent or becomes entitled as a mortgagee, licensee or otherwise to any other interest in a patent, he shall apply in writing in the prescribed manner to the Controller for the registration of his title or, as the case may be, of notice of his interest in the Register.

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(2) Without prejudice to the provisions of sub-section (1), an application for the registration of the title of any person becoming entitled by assignment to a patent or a share in a patent or becoming entitled by virtue of a mortgage, license or other instrument to any other interest in a patent may be made in the prescribed manner by the assignor, mortgagor, licensor or other party to that instrument, as the case may be.

(3) Where an application is made under this section for the registration of the title of any person, the Controller shall, upon proof of title to his satisfaction.

(a) where that person is entitled to a patent or a share in a patent, register him in the Register as proprietor or co-proprietor of the patent, and enter in the Register particulars of the instrument or event by which he derives title; or

(b) where that person is entitled to any other interest in patent, enter in the Register notice of his interest, with particulars of the instrument, if any, creating it.

(4) Subject to the provisions of this Ordinance relating to co-ownership of patents and subject

also to any rights vested in any other person of which notice is entered in the Register, the person or persons registered as grantee or proprietor of a patent shall have power to assign, grant licenses under, or otherwise deal with, the patent and to give effectual receipts for any consideration for any such assignment, license or dealing:

Provided that any equities in respect of the patent may be enforced in like manner as in respect of any other movable property.

56. Power of High Court regarding rectification of the Register.—(1) The High Court may, on the application of any person aggrieved:—

(a) by the absence or omission from the Register of any entry;

(b) by any entry made in the Register without sufficient cause;

(c) by any entry wrongly remaining on the Register; or

(d) by any error or defect in any entry in the Register, make such order for the making, variation or deletion, of any entry therein as it may think fit.

(2) In any proceeding under this section, the High Court may decide any question that may be necessary or expedient to decide in connection with the rectification of the Register.

(3) Notice of any application to the High Court under this section shall be given in the prescribed manner to the Controller who shall be entitled to appear and be heard on the application, and shall appear if so directed by the High Court.

(4) Any order of the High Court under this section rectifying the Register shall direct that notice of the rectification shall be served in the prescribed manner upon the Controller, who shall upon receipt of such notice rectify the Register accordingly.

57. Inspection of, and extracts from, the Register, etc.—(1) Subject to the provisions of this Ordinance and rules, the Register shall at all convenient times be open to inspection by the public, and certified copies, sealed with the seal of the Patent Office, of any entry in the Register shall be given to any person requiring them on payment of the prescribed fee.

(2) The Register shall be *prima facie* evidence of any matters required or authorized by or under this Ordinance to be entered therein.

(3) Except in the case of an application made under section 55, a document in respect of which no entry has been made in the Register under sub-section (3) of section 54 shall not be admitted in any Court as evidence of title of any person to a patent or share of or interest in the patent unless the Court otherwise directs.

CHAPTER XVI
COMPULSORY LICENCES, LICENCES OF RIGHT, EXPLOITING OF PATENTS AND REVOCATION

58. Exploitation by a Government agency or third person.—(1) Subject to sub-section (2), where—

(i) the public interest, in particular, national security, nutrition, health or the development of other vital sectors of the national economy so requires; or

(ii) the Federal Government has determined that the manner of exploitation, by the owner of the patent or his licensee, is anti-competitive, and the Federal Government is satisfied that the exploitation of the invention in accordance with this sub-section would remedy such practices [1][; or]

[2][(iii) the patent holder refuses to grant a licence to a third party on reasonable commercial terms and conditions; or

(iv) where patent has not been exploited in a manner which contributes to the promotion of technological innovation and to the transfer and dissemination of technology.]

the Federal Government may, even without the consent of the owner of the patent, decide that a Government agency or a third person designated by the Federal Government may exploit a patented invention.

(2) The Federal Government shall, before taking any decision under sub-section (2), give the ownerof the patent and any interested person an opportunity of being heard if he wishes to be heard.

(3) The exploitation of the patented invention shall be limited to the purpose for which it was authorized and shall be subject to the payment to the said owner of an adequate remuneration therefore, taking into account the economic value of the Federal Government authorizations, as determined in the said decision, and where a decision has been taken under sub-section (1), the need to correct anti-competitive practices.

(4) A request for the Federal Government authorization shall be accompanied by evidence that the owner of the patent has received, from the person seeking the authorization, a request for a contractual license, but that person has been unable to obtain such a license on reasonable commercial terms and conditions and within a reasonable time:

Provided that this sub-section shall not apply in cases of—

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(i) national emergency or other circumstantial urgency provided that in such cases the owner of the patent shall be informed of the decision of the Federal Government as soon as reasonably practicable;

(ii) public non-commercial use; and

(iii) anti-competitive practices determined as such by a judicial or administrative body in accordance with clause (ii) of sub-section (1).

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[1]Subs. by the Patents (Amdt.) Ordinance, 2002 (95 of 2002), s. 13, for "Comma".
[2]New sub-clauses (iii) and (iv) ins. ibid.,

(5) The exploitation of a patented invention in the field of semi-conductor technology shall only be authorized either for public non-commercial use or where a judicial or administrative body has determined that the manner of exploitation of the patented invention, by the owner of the patent or his licensee, is anti-competitive and if the Federal Government is satisfied that the issuance of the non- voluntary license would remedy such practices.

(6) [1][The authorization shall be considered on its individual merits and shall not prohibit.]

(i) the conclusion of license contracts by the owner of the patent;

(ii) the continued exercise, by the owner of the patent, of his rights under section 30; or

(iii) the issuance of a non-voluntary license under section 59.

(7) Where a third person has been designated by the Federal Government, the authorization may only be transferred with the enterprise or business of the person or with the part of the enterprise or business within which the patented invention is being exploited.

(8) Where the exploitation of the invention by the Government agency or third person designated by the Federal Government is authorized under clause (i) of sub-section (1), it shall be predominantly for the supply of the market in Pakistan.

(9) Upon request of the owner of the patent, or of the Government agency or of the third person authorised to exploit the patented invention, the Federal Government may, after hearing the parties, if either or both wish to be heard, vary the terms of the decision authorizing the exploitation of the patented invention to the extent that changed circumstances justify such variation.

(10) Upon the request of the owner of the patent, the Federal Government shall [2][subject to adequate protection of the legitimate interest of the persons so authorized,] be inserted; and shall terminatean authorization if it is satisfied, after hearing the parties, if either or both wish to be heard, that the circumstances which led to [3][the] decision have ceased to exist and are unlikely to recur or that the Government agency or third person designated by it has failed to comply with the terms of the decision.

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(11) Notwithstanding the provisions of sub-section (10), the Federal Government shall not terminate an authorization if it is satisfied that the need for adequate protection of the legitimate interests of the Government agency or third person designated by it justifies the maintenance of the decision.

(12) Any appeal shall lie to the High Court against the decisions of the Federal Government under sub-sections (1) to (9).

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[1]Subs. by the Patents (Amdt.) Ordinance, 2002 (95 of 2002), s. 13, for "the authorization shall both exclude."
[2]Ins.*Ibid* s. 13.
[3]Subs. *ibid*., for "his".

59. Powers of Controller in granting compulsory licenses.—[1][(1) On request, made to the Controller after the expiration of a period of four years from the date of filing of the patent application or three years from the date of the grant of the patent, whichever period expires last, the Controller may issue a non-voluntary licence to prevent the abuses which might result from the exercise of the rights conferred by the patent, for example, failure to work.]

(2) Notwithstanding the provisions of sub-section (1), a non-voluntary license shall not be issued if the owner of the patent satisfies the Controller that circumstances exist which justify the non-exploitation or insufficient exploitation of the patented invention in Pakistan.

(3) The decision issuing the non-voluntary license shall fix—

(i) the scope and function of the license;

(ii) the time limit within which the licensee must begin to exploit the patented invention; and

(iii) the amount of the adequate remuneration to be paid to the owner of the patent and the conditions of payment.

(4) The beneficiary of the non-voluntary license shall have the right to exploit the patented invention in Pakistan according to the terms set out in the decision issuing the license, shall commence the exploitation of the patented invention within the time limit fixed in the said decision and, thereafter, shall exploit the patented invention sufficiently.

(5) If the invention claimed in a patent, hereinafter referred to as "later patent", cannot be exploited in Pakistan without infringing a patent granted on the basis of an application benefiting from an earlier filing or, where appropriate, priority date, hereinafter referred to as "earlier patent", and provided that the invention claimed in the later patent involves an important technical advance of considerable economic importance in relation to the invention claimed in the earlier patent, the Controller, upon the request of the owner of the later patent, may issue a non-voluntary license to the extent necessary to avoid infringement of the earlier patent.

(6) Where a non-voluntary license is issued under sub-section [2][(5)] the Controller upon the request of the owner of the earlier patent shall issue a non-voluntary license in respect of the later patent.

(7) In the case of a request for the issuance of a non-voluntary license under sub-sections [3][(5)] and [3][(6)] sub-section [3][(3)] shall apply *mutatis mutandis* with the provision that no time limit needs to be fixed.

(8) In the case of a non-voluntary license issued under sub-section [4][(5)] the transfer may be made only with the later patent, or, in the case of a non-voluntary license issued under sub-section [4][(6)] only with the earlier patent.

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[1]Subs. by the Patents (Amdt.) Ordinance, 2002 (95 of 2002) s. 14, for sub-section (1).
[2]Subs. *Ibid*, for "the brackets and figure (4)".
[3]Subs. ibid., for the brackets and figures (3), (4) and (2).
[4]Subs. ibid., for the brackets and figures (3) and (4).

(9) The request for the issuance of a non-voluntary license shall be subject to payment of the prescribed fee.

(10) The provisions of sub-sections (2) to (10) of section 58 shall apply mutatis mutandis for issuance of a non-voluntary license under this section.

CHAPTER XVII
PROCEEDINGS FOR INFRINGEMENT OF PATENTS

60. Suit for infringement of a patent.—(1) A patentee may institute a suit in a District Court having jurisdiction to try the suit against any person who, during the continuance of a patent acquired by him under this Ordinance in respect of an invention, makes, sells or uses the invention without his license, or counterfeits it, or imitates it:

Provided that, where a counter-claim for revocation of the patent is made by the defendant, the suit, along with the counter-claim, shall be transferred to the High Court for decision.

(2) Every ground on which a patent may be revoked under the provisions of this Ordinance shall be available by way of defence to a suit for infringement.

61. Reliefs in suits for infringement.—[1][(1) In any suit for infringement the Court shall have the power,—

(a) to grant relief by way of damages, injunctions or accounts provided that, where permitted, effective provisional measure may also be ordered by the Court;

(b) to order, if the subject matter of a patent is a process for obtaining a product, the defendant to prove that the process to obtain an identical product is different from the patented process and that the identical product in question shall, in the absence of proof to the contrary, be deemed to have been obtained by the patented process provided that the product obtained by patented process is new if it has not been put into the market for more than one year before the date of the initiation of the judicial action by the patentee:

Provided that this provision shall apply subject to the prior proof by the plaintiff that the allegedly infringing product is identical to the product directly produced by the patented process:

Provided further that in the adduction of proof to the contrary, the legitimate interests of defendants in protecting their manufacturing and business secrets shall be taken into account.]

(2) In any suit for infringement-

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[1]Subs. by the Patents (Amdt.) Ordinance, 2002 (95 of 2002), s. 15, for sub section (1).

(a) the Court shall have the authority to order prompt and effective provisional measures—

(i) to prevent an infringement, and in particular, to prevent the entry into the channels of commerce of goods, including imported goods after custom clearance, and

(ii) to preserve relevant evidence in regard to the alleged infringement;

(b) the Court shall have the authority to order provisional measures, *inaudita altera parte* where appropriate, in particular, where any delay is likely to cause irreparable harm to the right holder, or where there is a demonstrable risk of evidence being destroyed;

(c) the Court shall have the authority to require the applicant to provide any reasonably available evidence to satisfy it with a sufficient degree of certainty that the applicant is the right holder and that the applicant's right is being infringed or that such infringement is imminent, and to order the applicant to provide a security or equivalent assurance sufficient to protect the defendant and to prevent abuse;

(d) where provisional measures have been adopted *inaudita altera parte*, the parties affected shall be given notice, without delay after the execution of the measures at the latest, and a review, including a right to be heard, shall take place upon request of the defendant with a view to deciding within a reasonable period after the notice of the measures, whether these measures shall be modified, revoked or confirmed;

(e) the Court may require the applicant to supply other information necessary for identification of the goods concerned;

(f) without prejudice to the provisions of clause (d), provisional measures taken on the basis of clauses (a) and (b) shall upon the request of the defendant, be revoked or otherwise cease to have affect if proceedings leading to a decision on the merit of the case are not initiated within a reasonable period not to exceed twenty working days or thirty-one calendar days, and

(g) where the provisional measures are revoked or where they lapse due to any act or omission by the applicant, or where it is subsequently found that there has been no infringement or threat of infringement, the Court shall have the authority to order the applicant, upon request of the defendant, to provide the defendant appropriate compensation for an injury caused by these measures.

62. Damages not to be awarded against defendant in certain cases. —(1) In proceedings for the infringement of a patent, damages shall not be awarded against a defendant who proves that at the date of the infringement he was not aware, and had not reasonable ground for supposing, that the patent existed, and a person shall not be deemed to have been aware or to have had reasonable grounds for supposing as aforesaid by reason only of the application to an article of the word "patent", "patented", or any word or words expressing or implying that a patent has been obtained

for the article, unless the number of the patent accompanied the word or words in question.

(2) Nothing in this section shall affect the power of the Court to grant an injunction in any proceedings for infringement of patent.

63. Relief for infringement of partially valid specification.—(1) If in any proceedings for infringement of a patent it is found that any claim of the specification, being a claim in respect of which infringement is alleged, is valid, but that any other claim is invalid, the Court may grant relief in respect of any valid claim which is infringed:

Provided that the Court shall not grant relief by way of damages or costs except in the circumstances mentioned in sub-section (2).

(2) Where the plaintiff proves that the invalid claim was framed in good faith and with reasonable skill and knowledge, the Court shall grant relief in respect of any valid claim which is infringed subject to the discretion of the Court as to costs and as to the date from which damages should be reckoned.

64. Proceedings for infringement by exclusive licensee. The holder of an exclusive license under a patent shall have the like right as the patentee to take proceedings in respect of any infringement of the patent committed after the date of the license, and in awarding damages or granting any other relief in any such proceedings the Court shall take into consideration any loss suffered or likely to be suffered by the exclusive licensee as such or, as the case may be, the profits earned by means of the infringement so far as it constitutes an infringement of the rights of the exclusive licensee as such.

65. Certificate of contested validity of specification.—(1) If in any proceedings before the Court the validity of any claim of a specification is contested, and that claim is found by the Court to be valid, the Court may certify that the validity of that claim was contested in those proceedings.

(2) Where any such certificates has been granted, then, if in any subsequent proceedings before the Court for infringement of the patent or for revocation of the patent, a final order or judgement is made or given in favour of the party relying on the validity of the patent, that party shall, unless the Court otherwise directs, be entitled to the full costs so far as they concern the claim in respect of which the certificate was granted:

Provided that this sub-section shall not apply to the costs of any appeal in any such proceedings as aforesaid.

66. Remedy for groundless threats of infringement proceedings.—(1) Where any person, whether entitled to or interested in a patent or an application for a patent or not, threatens any other person by circulars, advertisements or otherwise with proceedings for infringement of a patent, any person aggrieved thereby may bring suit against him for any such relief as is specified in sub-section (2).

(2) Unless in any suit under sub-section (1) the defendant proves that the acts in respect of which proceedings were threatened constitute or, if done, would constitute, an infringement of a patent or of rights arising from the publication of a complete specification in respect of a claim of the specification not shown by the plaintiff to be invalid, the plaintiff shall be entitled to the following reliefs, namely:—

(a) a declaration to the effect that the threats are unjustifiable;

(b) an injunction against the continuance of the threats; and

(c) such damages, if any, as he has sustained thereby.

(3) For the avoidance of doubt, it is hereby declared that a mere notice of the existence of a patent does not constitute a threat of proceedings within the meaning of sub-section (1).

67. Power of Court to make declaration as to non-infringement.—(1) A declaration that the use by any person of any process, or the making or use or sale by any person of any article, does not or would not constitute an infringement of a claim of a patent may be made by the Court in proceedings between that person and the patentee or the holder of an exclusive license under the patent, notwithstanding that no assertion to the contrary has been made by the patentee or licensee, if it is shown—

(a) that the plaintiff has applied in writing to the patentee or licensee for a written acknowledgement to the effect of the declaration claimed, and has furnished him with full particulars in writing of the process or article in question; and

(b) that the patentee or licensee has refused or neglected to give such an acknowledgement.

(2) The costs of all parties in proceedings for a declaration brought by virtue of this section shall, unless for special reasons the Court thinks fit to order otherwise, be paid by the plaintiff.

(3) The validity of a claim of the specification of a patent shall not be called in question in proceedings for a declaration brought by virtue of this section, and accordingly the making or refusal of such a declaration in the case of a patent shall not be deemed to imply that the patent is valid.

(4) Proceedings for a declaration may be brought by virtue of this section at any time after the date of the publication of the complete specification in pursuance of an application for a patent, and references in this section to the patentee shall be construed accordingly.

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68. Power of Court to appoint scientific advisers.—(1) In any suit for infringement or in any proceedings before a Court under this Ordinance, the Court may at any time, and whether or not an application has been made by any party for that purpose, appoint an independent scientific adviser to assist the Court or to inquire and report upon any such question of fact or of opinion, not involving a question of interpretation of law, as it may formulate for the purpose.

(2) The remuneration of the scientific adviser appointed under sub-section (1) shall be fixed by the Court and shall include the costs of making a report and a proper daily fee for any day on which the scientific adviser may be required to attend before the Court, and such remuneration shall be defrayed out of moneys provided by the Federal Government for the purpose.

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CHAPTER XVIII
APPEALS

69. Appeals.—(1) No appeal shall lie from any decision, order or direction made or issued under this Ordinance by the Federal Government, or from any act or order of the Controller for the purpose of giving effect to any such decisions, order or direction.

(2) The public authorities and officials shall be exempted from liability to appropriate remedial measures where actions are taken or intended in good faith in course of administration of this Ordinance.

(3) Subject to sub-section (1), an appeal shall lie to the High Court from any decision, order or direction of the Controller or, as the case may be, the Federal Government under any of the provisions of this Ordinance.

(4) Every appeal under this section shall be in writing and shall be made within three months from the date of the decision, order or direction of the Controller, as the case may be, of the Federal Government, or within such further time as the High Court may allow.

70. Procedure for hearing appeals.—(1) Every appeal before the High Court shall be by petition and shall be in such form and shall contain such particulars as may be provided by rules made by the High Court.

(2) Every appeal under this section shall be heard by a single Judge of the High Court:

Provided that any such Judge may, if he so thinks fit, refer the appeal at any stage of the proceedings to a larger Bench of the High Court.

(3) Every appeal under this section shall be heard as expeditiously as possible and endeavor shall be made to decide the appeal within a period of twelve months from the date on which it is filed.

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CHAPTER XIX
PENALTIES

71. Penalty for contravention of secrecy provisions relating to certain inventions. If any person fails to comply with any direction given under section 25 or makes or causes to be made an application for the grant of a patent in contravention of section 26, he shall be punishable with imprisonment for a term which may extend to two years, or with fine not exceeding twenty thousand rupees, or with both.

72. Penalty for false entry in any register, etc. If any person makes, or causes to be made, a false entry in any register kept under this Ordinance, or a writing falsely purporting to be a copy of an entry in such a register, or produces or tenders, or causes to be produced or tendered, in evidence any such writing knowing the entry or writing to be false, he shall be punishable with imprisonment for a term which may extend to two years, or with fine not exceeding twenty thousand rupees, or with both.

73. Penalty for false representation. If any person falsely represents that any article sold by him is patented in Pakistan or is the subject of an application for a patent in Pakistan, he shall be punishable with fine which may extend to five thousand rupees.

Explanation 1.—For the purposes of this section, a person shall be deemed to represent—

(a) that an article is patented in Pakistan if there is stamped, engraved or impressed on, or otherwise applied to, the article the word "patent" or "patented" or some other word expressing or implying that a patent for the article has been obtained in Pakistan; or

(b) that an article is the subject of an application for a patent in Pakistan, if there are stamped, engraved or impressed on, or otherwise applied to, the article the words "patent applied for", "patent pending", or some other words implying that an application for a patent for the article has been made in Pakistan.

Explanation 2.—The use of words "patent", "patented", "patent applied for", "pending" or other words expressing or implying that an article is patented or that a patent has been applied for shall be deemed to refer to a patent in force in Pakistan, or to a pending application for a patent in Pakistan, as the case may be, unless there is an accompanying indication that the patent has been obtained or applied for in any country outside Pakistan.

74. Penalty for wrongful use of Words "patent office". If any person uses on his place of business or any document issued by him or otherwise the words "patent office" or any other words which would reasonably lead to the belief that his place of business is, or is officially connected with, the patent Office, he shall be [1][punishable with imprisonment for a term which may extend to two years, and with fine which may extend to one million rupees].

75. Penalty for refusal or failure to supply information. —(1) If any person refuses or fails to furnish to the Controller any information or statement which he is required to furnish by or under this Ordinance, he shall be punishable with fine which may extend to [2][five thousand rupees].

(2) If any person, being required to furnish any such information as is referred to in sub-section (1), furnishes information or a statement which is false, and which he either knows or has reasons to believe to be false or does not believe to be true, he shall be punishable with fine which may extend to [3][fifty thousand rupees].

76. Penalty for contravention of section 20. If the applicant fails to file the statement required under section 20 or has furnished information which in any material particular is false to his knowledge or if he fails to comply with the Controller's request within the specified time, he shall be punishable with fine which may extend to [4][five thousand rupees].

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[1]Subs, by the Patents (Amdt.) Ordinance, 2002 (95 of 2002) s. 16 for certain words.
[2]Subs. ibid., s. 17 for "two thousand rupees".
[3]Subs.*ibid*, for "ten thousand rupees".
[4]Subs. Ibid., s.18,for "two thousand rupees".

77. Penalty for practice by non-registered patent agents. If any person contravenes the provisions of section 82, he shall be punishable with fine which may extend to [1][twenty five thousand rupees] in the case of a first offence and [2][one hundred thousand rupees] in the case of a second or subsequent offence.

[3][**78. Offences by companies etc.** Where the person guilty of an offence under this Ordinance is a company, corporation, firm or institution, every owner, director, and employee of the company, firm, institution, or corporation, having knowledge of the offence and consented to the commission of the offence shall be guilty of the offence].

CHAPTER XX
PATENT AGENTS

79. Register of patent agents. There shall be kept at the Patent Office a register of patent agents wherein shall be entered the names and addresses of all person qualified to practice before the Patent Office as patent agents.

80. Registration as patent agent. The Controller may, on an application made in the prescribed manner, register as a patent agent any person who is a citizen of Pakistan, has completed the age of twenty-one years, possesses the prescribed qualifications and has paid the prescribed fee.

81. Subscription and verification of certain documents by patent agents.—(1) Subject to sub-section (2) and rules, all applications and communications to the Controller under this Ordinance may be signed by a patent agent authorized in writing in this behalf by the person concerned.

(2) The following documents, namely,—

(i) applications for patents;

(ii) applications for the restoration of lapsed patents;

(iii) notices of opposition;

(iv) applications for leave to amend;

(v) applications for compulsory licences or for revocation; and

(vi) notices of surrender of patents,

shall be signed and verified in the prescribed manner by the person making such applications or giving such notices:

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[1]Subs. Ibid., s.19, for "five thousand rupees".
[2]Subs. Ibid., for "one thousand rupees".
[3]Subs. Ibid., s.20,for original section 78.

Provided that, if such person is absent from Pakistan, they may be signed and verified by a patent agent authorized by him in writing in that behalf.

82. Restrictions on practice as patent agent.— (1) No person, either alone or in partnership with any other person, shall practice or describe or hold himself out as a patent agent, or permit himself to be so described or held out, unless he is registered as a patent agent or, as the case may be, unless he and all his partners are so registered.

(2) No company or other body corporate shall practice or describe or hold itself out as a patent agent or permit itself to be so described or held out.

Explanation.—For the purposes of this section, practice as a patent agent includes any of the following acts, namely:—

(a) applying for or obtaining patents in Pakistan or elsewhere;

(b) preparing specifications or other documents for the purposes of this Ordinance or of the patent law of any other country; and

(c) giving advice, other than advice of a scientific or technical nature, as to the validity of patents or their infringement.

83. Removal from register of patent agents and restoration.—(1) The Federal Government may remove the name of any person from the register of patent agents when it is satisfied, after giving that person a reasonable opportunity of being heard and after such further inquiry, if any, as it thinks fit to make—

(i) that his name has been entered in the register of patent agents by error or on account of misrepresentation or suppression of material facts; or

(ii) that he has been convicted of any offence and sentenced to a term of imprisonment or has been guilty of misconduct in his professional capacity which in the opinion of the Federal Government renders him unfit to be kept in the register of patent agents.

(2) The Federal Government may, on application and on sufficient cause being shown restore to the register of patent agents the name of any person removed therefrom.

84. Power of controller to refuse to recognize as agent.—(1) Subject to any rules made in this behalf, the Controller may refuse to recognize as agent in respect of any business under this Ordinance—

(a) any person whose name has been removed from and not restored to, the register of patent agents;

(b) any person who has been convicted of an offence under section 77;

(c) any person, not being registered as patent agent, who in the opinion of the Controller is engaged wholly or mainly in acting as agent in applying for

patents in Pakistan or elsewhere in the name or for the benefit of the person by whom he is employed; or

(d) any company or firm, if any person whom the Controller could refuse to recognize as patent agent in respect of any business under this Ordinance, is a director or manager of the company or is a partner in the firm.

(2) The Controller shall refuse to recognize as agent in respect of any business under this Ordinance any person who neither resides nor has a place of business in Pakistan.

85. Saving in respect of other persons authorize to act as agents. Nothing in this Chapter shall be deemed to prohibit.

(a) the applicant for a patent or any person, not being a patent agent, who is duly authorized by the applicant from drafting any specification or appearing or acting before Controller; or

(b) an advocate, not being a patent agent, from taking part in any proceedings under this Ordinance otherwise than by way of drafting any specification.

CHAPTER XXI
INTERNATIONAL ARRANGEMENTS

86. Power of the Federal Government to declare a country as Convention country. —(1) With a view to the fulfillment of a treaty, convention or arrangement between Pakistan and any other country, the Federal Government may, by notification in the official Gazette, declare such country to be the Convention country for the purposes of this Ordinance, in addition to the members of the World Trade Organization.

(2) A declaration under sub-section (1) may be made for the purposes either for all or for some only of the provisions of this Ordinance, and a country in the case of which a declaration made for the purposes of some only of the provisions of the Ordinance is in force shall be deemed to be a Convention country for the purposes of those provisions only.

87. Supplementary provisions as to Convention application. For the purposes of this Ordinance, any matter shall be deemed to have been disclosed in an application for protection in a Convention country if it was claimed or disclosed, otherwise than by way of disclaimer or acknowledgement of prior art, in that application or in any document submitted by the applicant for protection in support of and at the same time as that application, but no account shall be taken of any disclosure effected by any such document unless a copy of the document is filed in the Patent Office with the Convention application in accordance with the provisions of section 88.

88. Documents to be filed with a Convention application.—(1) Where a Convention application is made under this Ordinance, the applicant shall furnish, in addition to the complete specifications, copies of the specifications or corresponding documents filed or deposited by the applicant in the patent office of the Convention country in which the relevant application was made, certified by the official chief or head of the patent office of the Convention country, or otherwise verified to the satisfaction of the Controller, along with the application or within three months

thereafter, or with in such further period as the Controller may on good cause allow.

(2) If any such specification or other document referred to in sub-section (1) is in a foreign language, a translation into English of the specification or document, verified by affidavit or otherwise to the satisfaction of the Controller, shall be annexed to the specification or document.

(3) For the purposes of this Ordinance, the date on which an application was made in a Convention country is such date as the Controller is satisfied, by certificate of the official chief or head of the patent office of the Convention country or otherwise, is the date on which the application was made in that Convention country.

CHAPTER XXII
MISCELLANEOUS

89. Fees.—(1) There shall be paid in respect of the grant of patents and applications therefor, and in respect of other matters in relation to patents under this Ordinance, such fees, to the Patent Office, as may be prescribed by the Federal Government.

(2) Any proceedings in respect of which a fee is payable under this Ordinance or the rules shall be of no effect unless the fee has been paid.

90. Restrictions upon publication of specifications, etc. Subject to the provisions of Chapter VII, an application for a patent, and any specification filed in pursuance thereof, shall not, except with the consent of the applicant, be published by the Controller or be open to public inspection at any time before the date of advertisement of acceptance of the application in the official Gazette [1][or in the Patents' jounal].

91. Reports of examiners to be confidential. The reports of examiners to the Controller under this Ordinance shall not be open to public inspection or be published by the Controller, and such reports shall not be liable to production or inspection in any legal proceedings unless the Court certifies that the production or inspection is desirable in the interests of justice, and ought to be allowed.

92. Publication of Patented Inventions. The Controller shall issue periodically a publication containing such information relating to patented inventions as the Federal Government may direct.

93. Power of Controller to call for information from patentees.—(1) The Controller may, at any time during the continuance of the patent, by notice in writing, require a patentee or a licensee, exclusive or otherwise, to furnish to him within two months from the date of such notice or within such further time as the Controller may allow, such information or such periodical statements as to the extent to which the patented invention has been commercially worked in Pakistan as may be specified in the notice.

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[1]Ins. by Act No. XXIV of 2016,s.7

(2) Without prejudice to the provisions of sub-section (1), every patentee and every licensee, whether exclusive or otherwise, shall furnish in such manner and form and at such intervals, not being less than six months, as may be prescribed, statement as to the extent to which the patented invention has been worked on a commercial scale in Pakistan.

(3) The Controller may publish the information received by him under sub-section (1) or sub-section (2) in such manner as may be prescribed.

94. Evidence of entries, documents, etc.—(1) A certificate purporting to be signed by the Controller as to any entry, matter or thing which he is authoritized by this Ordinance or any rule to make or do, shall be *prima facie* evidence of the entry having been made and of the contents thereof and of the matter or thing having been done or omitted to be done.

(2) A copy of any entry in any Register or of any document kept in the Patent Office or of any patent, or an extracts from any such Register or document, purporting to be certified by the Controller and sealed with the seal of the Patent Office shall be admitted in evidence in all courts, and in all proceedings, without further proof or production of the original.

(3) The Controller or any other officer of the Patent Office shall not, in any legal proceedings to which he is not a party, be compellable to produce the Register or any other document in his custody,the contents of which can be proved by the production of a certified copy issued under this Ordinance or to appear as a witness to prove the matters therein recorded unless by order of the Court made for special causes.

95. Declaration by infants, lunatics, etc.—(1) If any person is, by reason of minority, lunacy or other disability, incapable of making any statement or doing anything required or permitted by or under this Ordinance, the lawful guardian, committee or manager, if any, of the person subject to the disability, or if there be none, any person appointed by any Court having jurisdiction in respect of his property, may make such statement or a statement as nearly corresponding thereto as circumstances permit, and do such thing in the name and on behalf of the person subject to the disability.

(2) An appointment may be made by the Court for the purposes of this section upon the petition of any person active on behalf of the person subject to the disability or of any other person interest in the making of the statement or the doing of the thing.

96. Service of notice, etc., by post. Any notice required or authorized to be given by or under this Ordinance, and any application or other document so authorized or required to be made or filed, may be given, made or filed by post.

97. Security for cost. If any party by whom notice of any opposition is given under this Ordinance or by whom application is made to the Controller for the grant of a licence under a patent neither resides nor carries on business in Pakistan, the Controller may require him to give security for the costs of the proceedings, and in default of such security being given may treat the opposition or application abandoned.

98. Transmission of orders of High Court or Court to the Controller.—(1) Every order of the High Court on a petition for revocation, including an order granting certificate of validity of any claim, shall be transmitted by the High Court to the Controller who shall cause an entry thereof and reference thereto to be made in the Register.

(2) Where in any suit for infringement of a patent or in any suit under section 60 the validity of any claim or a specification is contested and that claim is found by the Court to be valid or not valid, as the case may be, the Court shall transmit a copy of its judgement and decree to the Controller who shall on receipt thereof cause an entry in relation to such proceedings to be made in the prescribed manner in a supplemental record.

(3) The provisions of sub-sections (1) and (2) shall also apply to the Court to which appeals are referred against decisions of the Court referred to in those sub-sections.

99. Transmission of copies of specifications, etc. and inspection thereof. Copies of all such specifications drawings and amendments left at the Patent Office as become open to public inspection under the provisions of the Ordinance shall be transmitted, as soon as may be, after the printed copies thereof are available, to such authorities as the Federal Government may appoint in this behalf, and shall be open to the inspection of any person at all reasonable times at places to be specified by those authorities with the approval of the Federal Government.

100. Information relating to patents. Any person making a request to the Controller in the prescribed manner for information relating to any such matter, as may be prescribed, as respects any patent specified in the request or as respects any application for a patent so specified shall be entitled, subject to the payment of the prescribed fee, to have information supplied to him accordingly.

101. Loss or destruction of patents. If a patent is lost or destroyed, or its non-production is accounted for to the satisfaction of the Controller, the Controller may at any time, on application made in the prescribed manner and on payment of the prescribed fee, cause a duplicate thereof to be sealed and delivered to the applicant.

[1][* * * * * * *]

103. Right of the Government to sell or use forfeited articles. Nothing in this Ordinance shall affect the power of the Government or of any person deriving title directly or indirectly from the Government to sell or use any articles forfeited under any law for the time being in force.

104. Power of High Court to make rules. The High Court may make rules consistent with this Ordinance as to the conduct and procedure in respect of all proceedings before it under this Ordinance.

105. Power of the Federal Government to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

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[1]Section 102 Omitted by the Patent (Amdt.) Ordinance, 2002 (95 of 2002), s.21.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(i) the form and manner in which any application for a patent, any specifications or drawings, and any other application or document may be filed in the Patent Office;

(ii) the time within which any act or thing may be done under this Ordinance, including the manner in which and the time within which any matter may be advertised under this Ordinance;

(iii) the fees which may be payable under this Ordinance and the manner of payment of such fees;

(iv) the matters in respect of which an examiner may make a report to the Controller;

(v) the form of request for sealing of patent;

(vi) the form and manner in which and the time within which any notice may be given under this Ordinance;

(vii) the provisions which may be inserted in an order for restoration of a patent for the protection of the person who may have availed themselves of the subject-matter of the patent after the patent had ceased;

(viii) the maintenance of the Register and the matters to be entered therein;

(ix) the time when and the manner in which the Register and any other document open to inspection may be inspected under this Ordinance;

(x) the qualifications of and the preparation of a role of scientific advisers for the purpose of section 68;

(xi) the manner in which any compensation for acquisition by the Government of an invention may be paid;

(xii) the manner in which the register of patent agents may be maintained, and matters connected with the practice and conduct of the patent agents; [1]*

(xiii) the regulation of the making, printing, publishing and selling of indexes to, and abridgements of, specifications and other documents in the Patent Office, and inspection of indexes and abridgements and other documents [2][;].

[3][(xiv) the manner to establish the regime for exhaustion of intellectual property rights;

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[1]The word "and" omitted by the Patents (Amdt.) Ordinance, 2002 (95 of 2002) s. 22.
[2]Subs. *ibid*., for the full stop.
[3]New clauses (xiv), (xv), (xvi), (xvii) and (xviii) added *ibid*.

(xv) the details in respect of inventions referred to in sub-section (4) of section 7;

(xvi) the manner in which an invention shall be disclosed including the best mode known for the execution of the invention, the forms and limits of allowable claims and, in the case of inventions relating to microorganisms, the requirement and the manner of submission of a culture for experimental purposes in relation to the scope of the claim and the procedure for grant of such patents;

(xvii) the procedure and the criteria for determining the remuneration for a compulsory licence and the terms and conditions for licensing agreements including, in particular, those which do not adversely affect competition or cause impediment to the research and development in the country or to bind the licensee to transfer the improvements made by him to the licensor or to force the licensee to acquire technologies or inputs not needed or desired by him; and

(xviii) the form of filing application and manner of grant of exclusive marketing rights].

(3) The power to make rules under this section shall be subject to the condition of the rules being made after previous publication.

106. Repeal and savings.−(1) The Patents and Designs Act, 1911 (Act II of 1911) is hereby repealed.

(2) Notwithstanding the repeal of the Patents and Designs Act, 1911 (Act II of 1911) the renewal fee in respect of a patent granted under that Act shall be as fixed thereunder.

(3) Save as otherwise provided in sub-section (2), the provisions of this Ordinance shall apply to any application for a patent pending on the commencement of this Ordinance and to any proceedings consequent thereon, and to any patent granted in pursuance thereof.

(4) Notwithstanding anything contained in this Ordinance, any suit for infringement of a patent, or any proceedings for revocation of a patent, pending in any Court on the commencement of this Ordinance, may be continued and disposed of under the Patents and Designs Act, 1911 (Act II of 1911)as if this Ordinance had not come into force, [1]* * *.

[2]**[107. Acts done in good faith**. No suit, prosecution, or any other legal proceedings shall lie against any government employee or any person exercising any powers or performing any functions under this Ordinance or the rules made thereunder for any act or thing which has been done in good faith.

108. Removal of difficulties. If any difficulty arises in giving effect to any of the provisions of this Ordinance, the Federal Government may, by notification in the official Gazette, make such provisions as it deems fit for removing that difficulty].

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[1]The certain words omitted by the Patents (Admt.) Ordinance, 2002 (95 of 2002), s.23.
[2]New sections 107 and 108 added *ibid*., s.24

THE PORT AUTHORITIES LANDS AND BUILDINGS (RECOVERY OF POSSESSION) ORDINANCE, 1962

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THE PORT AUTHORITIES LANDS AND BUILDINGS (RECOVERY OF POSSESSION) ORDINANCE, 1962

ORDINANCE NO. IX OF1962

[17th February, 1962]

An Ordinance to provide for the speedy recovery of possession of certain lands and buildings.

WHEREAS it is expedient to provide for the speedy recovery of possession from unauthorized occupants of lands or buildings belonging to Port Authorities within the limits of major ports, and for matters ancillary thereto;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, application and commencement.—(1) This Ordinance may be called the Port Authorities Lands and Buildings (Recovery of Possession) Ordinance, 1962.

(2) It applies to all major ports.

(3) It shall come into force at once.

2. Definition. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "allotment" means permission to occupy temporarily any premises either free of rent or on an agreed rental, without conferring any right or interest in respect thereof on the person to whom such permission has been granted;

(b) "Authorized Officer" means a Magistrate of the First Class appointed by the [1][Federal Government], by notification in the official Gazette, to exercise all or any of the powers of an Authorized Officer under this Ordinance;

(c) "land or building" means land or building, or part thereof, which vests in, or is in the possession or under the management or control of a Port Authority, and is used or held for purposes connected with the administration and working of the port;

(d) "lease" has the same meaning as in the Transfer of Property Act, 1882 (IV of 1882), and includes an allotment; and "lessee", which includes his heirs, assigns, legal representatives and all persons inducted by him into the demised land, shall be construed accordingly;

(e) "major port" means a port to which the Ports Act, 1908 (XV of 1908), for the time being extends;

(f) "port authority" means an authority vested by or under any law for the time being in force with the administration of a major port;

[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(g) "prescribed" means prescribed by rules made under this Ordinance ; and

(h) "unauthorized occupant" means a person who is in occupation of any land or building without the permission of the Port Authority, and includes:

(i) a person inducted into any land or building by the original lessee of such land or building ; and

(ii) a person who remains in occupation of any land or building after the determination of the lease in respect of such land or building.

3. Eviction of out-going lessees and unauthorized occupants from land.—(1) If, on the expiry, whether before or after the commencement of this Ordinance, of the period of any lease in respect of any land or building of which a Port Authority is the lessor, or on the determination of such lease on the ground of breach of any covenant or in pursuance of a condition in the lease imposing any obligation on the lessee to give up possession of the demised land or building in the event of such land or building being required for the purposes of a Port Authority, the lessee refused or failed, or refuses or fails, to vacate and deliver vacant possession of such land or building to the Port Authority, then, notwithstanding anything contained in any other law for the time being in force or in any contract, such Port Authority may, by notice in writing, require such lessee to vacate and deliver vacant possession of such land or building, and to remove structures, if any, erected or built thereon by him, within such time as may be specified in the notice.

(2) If the Port Authority is satisfied, after making such enquiry as it may think fit, that a person is an unauthorised occupant of any land or building, it may, by notice in writing, require such person to vacate such land or building, and deliver vacant possession thereof to it, and to remove structures, if any, erected or built thereon by him, within such time as may be specified in the notice.

(3) If any person to whom a notice is issued under sub-section (1) or sub-section (2)—

(a) fails to comply with the notice, the Port Authority shall make a complaint in writing to that effect to the Authorized Officer ; or

(b) vacates the land or building, but does not remove the structures thereon, the Port Authority may take possession of such land or building and demolish such structures.

4. Proceedings before Authorized Officer.—(1) Upon receipt of complaint under section 3, the Authorized Officer shall forthwith issue notice to the person against whom the complaint has been made calling upon him to show cause why he should not be evicted from the land or building occupied by him, and after giving such person an opportunity of being heard, and if necessary, after making such further enquiry as he may think fit, the Authorized Officer, shall, by an order in writing, either—

(a) permit such person to continue in occupation of the land or building, subject to such conditions as may be specified in the order ; or

(b) direct such person to vacate and deliver to the Port Authority vacant possession of the land or building, and to remove structures, if any, erected or built thereon by him, within the period specified in the order.

(2) If any person fails to comply with a direction under clause (b) of sub-section (1), the Authorized Officer may, notwithstanding anything contained in any other law for the time being in force, but subject to any order [1][on appeal] under section 5, enter upon the land or building to which the direction relates, and evict such person by such force as he may consider necessary, and demolish any or all of the said structures.

(3) No person shall be evicted under sub-section (2) between sunset and sunrise.

5. Appeal.—(1) Any person aggrieved by an order under sub-section (1) of section 4 may, within fifteen days from the date of such order, appeal, in such manner and on payment of such fee as may be prescribed, to the District Magistrate [2][or an Additional District Magistrate], who may, pending the disposal of such appeal, make such orders as he thinks fit.

(2) The decision of the District Magistrate [2][or an Additional District Magistrate] on an appeal under sub-section (1) shall be final and shall not be called in question in any court or by any authority [:][3]

[4][Provided that no decision on an appeal shall be taken unless both the parties thereto have been afforded an opportunity of being heard.]

6. Service of notice and order. A notice or an order under section 3 or section 4 shall be served in such manner as may be prescribed.

7. Recovery of cost of demolition of structures.—(1) The cost of demolition of structures under section 3 or section 4, thereafter in this section referred to as the cost, shall be payable to the Port Authority by the lessee or the unauthorized occupant evicted.

(2) If the cost is not paid on demand, the Authorized Officer may, on an application made in this behalf by the Port Authority, and after giving the lessee or the unauthorized occupant an opportunity of being heard, cause the materials of the structures demolished to be sold in auction in such manner as may be prescribed.

(3) If the proceeds of the sale under sub-section (2) are not sufficient to cover the cost, the balance shall be recoverable as arrears of land revenue and, if such proceeds exceed the cost, the excess shall be paid to the lessee or the unauthorized occupant.

8. Recovery of arrears of rent. If any rent payable in respect of any land or building has been in arrears on the day of recovery of possession of such land or building, the amount due on account of such arrears, with interest, if any, accrued thereon, shall be recoverable as arrears of land revenue.

9. Jurisdiction of courts barred. Save as provided by this Ordinance no court shall question anything done under this Ordinance by or at the instance of a Port Authority, or to grant an injunction, or to make any other order, in relation to any notice or complaint issued or made by a Port Authority under this Ordinance, or in relation to any proceedings before an Authorized Officer.

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[1] Subs. by the Port Authorities Lands and Buildings (Recovery of Possession) (Amdt.) Act, 1968 (6 of 1968), s. 2, for "of the District Magistrate".
[2] Ins. ibid,s.3.
[3] Subs. by the Port Authorities Lands and Buildings (Recovery of Possession) (Amdt.) Ordinance, 1984 (59 of 1984) s, 2, for the full-stop.
[4] Proviso added *ibid.*

10. Indemnity. No suit, prosecution or other legal proceeding shall lie against a Port Authority or any person in respect of anything which is in good faith done or intended to be done under this Ordinance.

11. Rules. A Port Authority may, with the previous approval in writing of the [1][Federal Government], make rules for carrying out the purposes of this Ordinance.

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[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government"

THE PORTS ACT, 1908

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THE PORTS ACT, 1908

[1]ACT No. XV OF 1908

[18thDecember, 1908]

An Act to consolidate the Enactments relating to Ports and Port-charges.

WHEREAS it is expedient to consolidate the enactments relating to ports and port charges;

It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Title and extent.—(1) This Act rimy be called the [2]* Ports Act, 1908.

(2) It shall extend, save as otherwise appears from its subject or context,—

(a) to the ports mentioned in the first schedule, and to such Parts of the navigable rivers and channels leading to such ports respectively as have been declared to be subject to Act XXII of 1855 (XII of 1875) (for the Regulation of Ports and Port-dues) or to the Indian Ports Act, 1875, or to the Indian Ports Act, 1889 (X of 1889);

(b) to the other ports or parts of navigable rivers or channels to which the [3][Government],in exercise of the power hereinafter conferred, extends this Act.

(3) But nothing in section 31 or section 32 shall apply to any Port, river or channel to which the section has not been specially extended by the [4][Government]

2. Savings.—Nothing in this Act shall—

(i) apply to any vessel belonging to, or in the service of, [5]* * * [6][, the [7][Federal Government], or a Provincial Government] [8]* * or to any vessel of war belonging to any Foreign [9]* * * State, or

(ii) deprive any person of any right of property or other private right, except as hereinafter expressly provided, or

[1] For Statement of Objects and Reasons see Gazette of India, 1908, Pt. V, p. 309; for. Report of Select Committee, see ibid., 1908, Pt V, p. 359; and for Proceedings in Council, see ibid(, 1908, Pt. VI, pp. 146, 154 and 182. It has been extended to the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953), as amended. The Act has been and shall be deemed to have been brought into force in Gwadur (with effect from the 8th September, 1958) by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.
[2] The word "Indian" omitted by A.O., 1949.
[3] Subs. by A.O., 1937, for "L. G".
[4] Subs. by A.O., 1937, for "L. G.".
[5] The words "His Majesty" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981) s.
[6] and Second Sch. 3 Ins. by A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March,1956).
[7] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[8] The words "or the Gazette of India" omitted by A.O., 1937.
[9] The words "Prince or" omitted by Ordinance 27 of 1981, s. 3 and Second Sch.

(iii) affect any law or rule relating to the customs or any order or direction lawfully made or given pursuant thereto.

3. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(1) "Magistrate" means a person exercising powers under the Code of Criminal Procedure, 1898 (V of 1898), not less than those of a Magistrate of the second class [1]* * *:

(2) "master", when used in relation to any vessel, means, subject to the provisions of any other enactment for the time being in force, any person (except a pilot or harbour-master) having for the time being the charge or control of the vessel:

(3) "pilot" means a person for the time being authorized by the [1][Government] to pilot vessels:

(4) "port" includes also any part of a river or channel in which this Act is for the time being in force:

(5) "port-officer" is synonymous with master-attendant:

(6) "ton" means a ton as determined or determinable by the rules for the time being in force for regulating the measurement of the net tonnage of [2][Pakistani] ships: and

(7) "vessel" includes anything made for the conveyance by water of human beings or of property:

[3][(8) "major port" means any port which the [4][Federal Government] may by notification in the official Gazette [5]declare, or may under any law for the time being in force have declared, to be a major port:

(9) "Government", as respects major ports, [6][the declaration and delimitation of such ports and the constitution and powers of port authorities therein] and, as respects other ports, for the purposes of making rules under clause (p) of section 6 (1) and of the appointment and control of port health-officers under section 17, means the [4][Federal Government,] and save as aforesaid, means the Provincial Government.]

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CHAPTER II

POWERS OF THE [7][GOVERNMENT]

4. Power to extend or withdraw the Act or certain portions thereof.— (1) [8]* * * The [7][Government] may, by notification in the [9][official Gazette],—

[1] The words "and includes, in the towns of Calcutta, Madras and Bombay, a Presidency Magistrate" omitted by A.O., 1949.
[2] Subs. by Ordinance 27 of 1981, s. 3 and Second Sch., for "British".
[3] Clauses (8) and (9), ins. by A.O., 1949. 2 Subs. by F.A.O., 1975 Art.
[4] and Table, for "Central Government".
[5] Declaration of the– (i) Ports of Calcutta, Bombay, Karachi, Aden, Rangoon and Madras to be the Major Ports, see Notifn. No. 1169, dated the 19th [F]ebruary, 1921, Gazete of India, 1921, Pt. p.275;
[6] Subs. by F.A.O., 1975, Art. 2 and Sch., for "for all purposes".
[7] Subs. by A.O., 1937, for "L .G.".
[8] The words "with the previous sanction of the G.G. in C." omitted by the Indian Ports (Amdt.) Act, 1916 (6 of 1916), s. 2.
[9] Subs. by A.O., 1937, for "local official Gazette".

(a) extend this Act to any port in which this Act is not in force or to any part of any navigable river or channel which leads to a port and in which this Act is not in force ;

(b) specially extend [1]the provisions of section 31 or section 32 to any port to which they have not been so extended;

(c) withdraw this Act or section 31 or section 32 from any port or any part thereof in which it is for the time being in force.

(2) A notification under clause (a) or clause (b) of sub-section (1) shall define the limits of the area to which it refers.

(3) Limits defined under sub-section (2) may include any piers, jetties, landing-places, wharves, quays, docks and other works made on behalf of the public for convenience of traffic, for safety of vessels, or for the improvement, maintenance or good government of the port and its approaches, whether within or without high-water-mark, and, subject to any rights of private property therein, any portion of the shore or bank within fifty yards of highwater mark.

(4) In sub-section (3) the expression "high-water-mark" means the highest point reached by ordinary spring tides at any season of the year.

5. Alteration of limits of ports.—(1) The [2][Government] may, [3] * * * subject to any rights of private property, alter the limits of any port in which this Act is in force.

(2) When the [2][Government] alters the limits of a port under sub-section (1), it shall declare or describe, by notification in the [4][official Gazette], and by such other means, if any, as it thinks fit, the precise extent of such limits.

6. Power to make port-rules.— (1) The [2][Government] may, in addition to any rules which it may make under any other enactment for the time being in force, make such rules, consistent with this Act, as it thinks necessary for any of the following purposes, namely :—

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(a) for regulating the time and hours at and during which, the speed at which, and the manner and conditions in and on which, vessels generally or vessels of any class defined in the rules, may enter, leave or be moved in any port subject to this Act;

(b) for regulating the berths, stations and anchorages to be occupied by vessels in any such port;

(c) for striking the yards and top masts, and for rigging-in the booms and yards, of vessels in any such port, and for swinging or taking-in davits, boats and other things projecting from such vessels;

[1] For such an extension, see foot-note 1 to section 31, infra.
[2] ubs. by A.O., 1937, for "L. G.".
[3] The words "with the previous sanction of the G.G. in C. and" omitted by the Indian Ports (Amdt.) Act, 1916 (6 of 1916), s. 3.
[4] Subs. by A.O., 1937, for "local official Gazette".

(d) for the removal or proper hanging or placing of anchors, spars and other things being in or attached to vessels in any such port;

(e) for regulating vessels whilst taking-in or discharging passengers, ballast or cargo, or any particular kind of cargo, in any such port, and the stations to be occupied by vessels whilst so engaged;

[1][(ee) for regulating the manner in which oil or water mixed with oil shall be discharged in any such port and for the disposal of the same;]

[2][(eee) for regulating the bunkering of vessels with liquid fuel in any such port and the description of barges, pipe lines or tank vehicles to be employed in such bunkering;]

(f) for keeping free passages of such width as may be deemed necessary within any such port, and along or near to the piers, jetties, landing-places, wharves, quays, docks, moorings and other works in or adjoining to the same, and for marking out the spaces so to be kept free;

(g) for regulating the anchoring, fastening, mooring and unmooring of vessels in any such port;

(h) for regulating the moving and warping of all vessels within any such port and the use of warps therein;

(i) for regulating the use of the mooring buoys, chains and other moorings in any such port;

(j) for fixing the rates to be paid for the use of such moorings when belonging to the [3][Government], or of any boat, hawser or other thing belonging to the 3 [Government] ;

[4][(jj) ” for regulating the use of piers, jetties, landing places, wharves, quays, warehouses and sheds when belonging to the [5][Government], and for fixing the rates to be paid for the use of the same;]

[1] Clause (see) ins. by the Indian Ports (Amdt.) Act, 1923 (39 of 1923), s. 2.
[2] Clause (see) ins. by the Indian Ports (Amdt.) Act, 1925 (9 of 1925), section 2.
[3] Subs. by A.O., 1961, Art. 2 (with effect from the 23rd March, 1956) for “Crown” which had been subs. by A.O., 1937, for “Govt..”.
[4] Clause (jj) ins. by the Indian Ports (Amdt.) Act, 1916 (6 of 19.16), section 4 (1).
[5] Subs. by A.O., 1961, Art. 2 (with effect from the 23rd March, 1956) for “Crown” which had been subs. by A.O., 1937, for “Govt..”.

[1](k) for licensing and regulating catamarans plying for hire, and flats and cargo, passenger and other boats plying, whether for hire or not, and whether regularly or only occasionally, in or partly within and partly without any such port [2][and for licensing and regulating the crews of any such vessels] and for determining the quantity of cargo or number of passengers [2][or of the crew] to be carried by any such vessels [2][and may by such rules provide for the fees payable in respect of any such license, and in the case of passenger vessels plying for hire, for the rates of hire to be charged and the conditions under which such vessels shall be compelled to ply for hire, and further for the conditions under which any license may be revoked];

(l) for regulating the use of fires and lights within any such port; .

(m) for enforcing and regulating the use of signals or signal lights by vessels by day or by night in any such port;

(n) for regulating the number of the crew which must be on board any vessel afloat within the limits of any such port;

(o) for regulating the employment of persons engaged in cleaning or painting vessels, or in working in the bilges, boilers or double bottoms of vessels in any such port;

[3][(p) [4]* * * for the prevention of danger arising to the public health by the introduction and the spread of any infectious or contagious disease from vessels arriving at, or being in, any such port, and for the prevention of the conveyance of infection or contagion by means of any vessel sailing from any such port, and in particular and without prejudice to the generality of this provision, for–

(i) the signals to be hoisted and the places of anchorage to be taken up by such vessels having any case, or suspected case, of any infectious or contagious disease on board, or arriving at such port from a port in which, or in the neighborhood of which, there is believed to be, or to have been at the time when the vessel left such port, any infectious or contagious disease;

(ii) the medical inspection of such vessels and of persons on board such vessels;

(iii) the questions to be answered and the information to be supplied by masters, pilots and other persons on board such vessels;

(iv) the detention of such vessels and of persons on board such vessels;

[1] The provisions of cl. (k) of section 6 (1) have been applied to the territory of Gwadur by West Pakistan Ordinance 36 of 1959 (with effect from the 16th June,1959).
[2] Ins. by the Indian Ports (Amdt.) Act, 1916 (6 of 1916), s. 4 (2).
[3] Subs. by the Indian Ports (Amdt.) Act, 1911 (4 of 1911), s. 2, for the original clause (p).
[4] The words "subject to the control of the G. G. in C." omitted by A.O., 1937.

(v) the duties to be performed in cases of any such disease by masters, pilots and other persons on board such vessels;

(vi) the removal to hospital or other place approved by the health-officer and the detention therein of any person from any such vessel who is suffering or suspected to be suffering from any such disease;

(vii) the cleansing, ventilation and disinfection of such vessels or any part thereof and of any articles therein likely to retain infection or contagion, and the destruction of rats or other vermin in such vessels; and

(viii) the disposal of the dead on such vessels; and]

(q) for securing the protection from heat of the officers and crew of vessels in any such port by requiring the owner or master of any such vessel—

(i) to provide curtains and double awnings for screening from the sun's rays such portions of the deck as are occupied by, or are situated immediately above, the quarters of the officers and crew;

(ii) to erect windsails so far as the existing portholes or apertures in the deck admit of their being used for ventilating the quarters of the officers and crew;

(iii) when the deck is made of iron and not wood-sheathed, to cover with wooden planks or other suitable non-conducting material such portions of the deck as are situated immediately above the quarters of the officers and crew;

(iv) when the quarters used by the crew and the galley are separated by an iron bulk-head only, to furnish a temporary screen of some suitable nonconducting material between such quarters and the galley.

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[1]* * * * * * *

(2) The power to make rules under sub-section (1) [2]* * * is subject to the condition of the rules being made after previous publication:

Provided that nothing in this sub-section shall be construed to affect the validity of any rule in force immediately before the commencement of the Indian Ports Act, 1889 (X of 1889), and continued by section 2, sub-section (2), of that Act.

(3) If any person disobeys any rule made under clause (p) of sub-section (1), he shall be punishable for every such offence with fine which may extend to [3][fifty thousand rupees].

[1] Sub-section (IA) as amended by the Indian Ports (Amdt.) Act, 1922 (15 of 1922), s. 2, A.O., 1937 and the Indian Ports (Amdt.) Act, 1931 (11 of 1931), s. 2, omitted by the Employment of Children Act, 1938 (26 of 1938), section 8.
[2] The words, brackets and figures "and sub-section (lA)", which were ins. by Act 15 of 1922, s. 2, have been omitted by Act 26 of 1938, s. 8.
[3] Subs. by the Ports (Amdt.) Ordinance, 1982 (4 of 1982), s. 2, for "one thousand rupees".

(4) If a master fails wholly or in part to do any act prescribed by any rule made under clause (p) of sub-section (1), the health officer shall cause such act to be done, and the reasonable expenses incurred in doing such act shall be recoverable by him from such master

CHAPTER III

PORT-OFFICIALS AND THEIR POWERS AND DUTIES

7. Appointment of conservator.— (1) The [1][Government] shall appoint some officer or body of persons to be conservator of every port subject to this Act.

(2) Subject to any direction by the [1][Government] to the contrary,—

(a) in ports where there is a port-officer, the port-officer shall be the conservator;

(b) in ports where there is no port-officer, but where there is a harbour-master, the harbour-master shall be the conservator.

(3) Where the harbour-master is not conservator, the harbour-master and his assistants shall be subordinate to, and subject to the control of, the conservator.

(4) The conservator shall be subject to the control of the [2][Government], or of any intermediate authority which [3][the Government] may appoint.

8. Power of conservator to give and enforce directions for certain specified purposes.— (1) The conservator of any port subject to this Act may, with respect to any vessel within the Port, give directions for carrying into effect any rule for the time being in force therein section 6.

(2) If any person wilfully and without lawful excuse refuses or neglect to obey any lawful direction of the conservator, after notice thereof has been given to him, he shall, for every such offence, be punishable with fine which may extend to one hundred rupees, and in the case of a continuing offence with a further fine which may extend to one hundred rupees for every day during which, after such notice as aforesaid, he is proved to have wilfully and without lawful excuse continued to disobey the direction.

(3) In case of such refusal or neglect, the conservator may do, or cause to be done, all acts necessary for the purpose of carrying the direction into execution, and may hire and employ proper persons for that purpose, and all reasonable expenses incurred in doing such acts shall be recoverable by him from the person so refusing or neglecting to obey the direction.

9. Power to cut warps and ropes. The conservator of any such port may, in case of urgent necessity, cut, or cause to be cut, any warp, rope, cable or hawser endangering the safety of any vessel in the port or at or near to the entrance thereof.

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[1] Subs. by A.O., 1937, for "L. G.",
[2] Subs. by A.O.. 1937, for "L.G.".
[3] Subs. ibid., for "that Government"

10. Removal of obstruction within limits of port.—(1) The conservator may remove, or cause to be removed, any timber, raft or other thing, floating or being in any part of any such port, which in his opinion obstructs or impedes the fee navigation thereof or the lawful use of any pier, jetty, landing-place, wharf, quay, dock, mooring or other work on any part of the shore or bank which has been declared to be within the limits of the port and is not private property.

(2) The owner of any such timber, raft or other thing shall be liable to pay the reasonable expenses of the removal thereof, and if such owner or any other person has without lawful excuse caused any such obstruction or impediment, or causes any public nuisance affecting or likely to affect such free navigation or lawful use, he shall also be punishable with fine which may extend to one hundred rupees.

(3) The conservator or any Magistrate having jurisdiction over the offence may cause any such nuisance to be abated.

11. Recovery of expenses of removal. If the owner of any such timber, raft or other thing, or the person who has caused any such obstruction, impediment or public nuisance as is mentioned in the last foregoing section, neglects to pay the reasonable expenses incurred in the removal thereof, within one week after demand, or within fourteen days after such removal has been notified in the [1][official Gazette] or in such other manner as the [2][Government] by general or special order directs, the conservator may cause such timber, raft or other thing, or the materials of any public nuisance so removed, or so much thereof as may be necessary, to be sold by public auction; and may retain all the expenses of such removal and sale out of the proceeds of the sale, and shall pay the surplus of such proceeds, or deliver so much of the thing or materials as may remain unsold, to the person entitled to receive the same;

and, if no such person appears, shall cause the same to be kept and deposited in such manner as the [2][Government] directs;

and may, if necessary, from time to time, realize the expenses of keeping the same, together with the expenses of sale, by a further sale of so much of the thing or materials as may remain unsold.

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12. Removal of lawful obstructions.— (1) If any obstruction or impediment to the navigation of any port subject to this Act has been lawfully made, or has become lawful by reason of the long continuance of such obstruction or impediment, or otherwise, the conservator shall report the same for the information of the [2][Government], and shall, with the sanction of [3][the Government], cause the same to be removed or altered, making reasonable compensation to the person suffering damage by such removal or alteration.

(2) Any dispute arising concerning such compensation shall be determined according to the law relating to like disputes in the case of land required for public purposes.

[1] Subs. by A.O., 1937, for "local official Gazette".
[2] Subs. ibid., for "L.G."
[2] Subs. ibid., for "L.G.". 3 Subs. ibid., for "that Government".

13. Fouling of Government moorings.—(1) If any vessel hooks or gets foul of any of the buoys or moorings laid down by or by the authority of the [1][Government] in any such port, the master of such vessel shall not, nor shall any other person, except in case of emergency, lift the buoy or mooring for the purpose of unhooking or getting clear from the same without the assistance of the conservator;

and the conservator, immediately on receiving notice of such accident, shall assist and superintend the clearing of such vessel;

and the master of such vessel shall, upon demand, pay such reasonable expenses as may be incurred in clearing the same.

(2) Any master or other person offending against the provisions of this section shall, for every such offence, be punishable with fine which may extend to one hundred rupees

14. Raising or removal of wreck impeding navigation within limits of port.— (1) If any vessel is wrecked, stranded or sunk in any such port so as to impede, or be likely to impede, the navigation there of, the conservator may cause the vessel to be raised, removed or destroyed.

(2) If any property recovered by a conservator acting under sub-section (1) is unclaimed or the person claiming it fails to pay the reasonable expenses incurred by the conservator under that sub-section and a further sum of twenty per cent. of the amount of such expenses, the conservator may sell the property by public auction, if the property is of a perishable nature, forthwith, and, if it is not of a perishable nature, at any time not less than six months after the recovery thereof.

(3) The expenses and further sum aforesaid shall be payable to the conservator out of the sale-proceeds of the property, and the balance shall be paid to the person entitled to the property recovered, or, if no such person appears and claims the balance, shall be held in deposit for payment, without interest, to any person thereafter establishing his right thereto: Provided that the person makes his claim within three years from the date of the sale.

15. Power to board vessels and enter buildings.— (1) The conservator or any of his assistants may, whenever he suspects that any offence against this Act has been, or is about to be, committed, or whenever it is necessary for him so to do in the performance of any duty imposed upon him by this Act,

and the person appointed under this Act to receive any port dues, fees or other charges, payable in respect of any vessel, may, whenever it is necessary for him so to do in the performance of any duty imposed upon him by this Act,

either alone or with any other person, board any vessel, or enter any building or place, within the limits of any port subject to this Act.

(2) If the master of the vessel, or any person in possession or occupation of the building or place, without lawful excuse, refuses to allow any such person as is mentioned in sub-section (1) to board or enter such vessel, building or place in the performance of any duty imposed upon him by this Act, he shall for every such offence be punishable with fine which may extend to two hundred rupees.

[1] Subs. by A.O.. 1937, for "L.G.".

16. Power to require crews to prevent or extinguish fire.— (1) For the purpose of preventing or extinguishing fire in any port subject to this Act, the conservator or port-officer may require the master of any vessel within the port to place at his disposal such number as he requires, not exceeding three-fourths, of the crew then under the orders of such master.

(2) Any master refusing or neglecting to comply with such requisition shall be punishable with fine which may extend to five hundred rupees, and any seaman then under his orders who, after being directed by the master to obey the orders of the conservator or port-officer for the purpose aforesaid, refuses to obey such orders, shall be punishable with fine which may extend to twenty-five rupees.

17. Appointment and powers of health officer.— (1) The [1][Government] may appoint at any port subject to this Act an officer to be called the health-officer.

(2) A health-officer shall, subject to the control of the [1][Government], have the following powers, within the limits of the port for which he is appointed, namely : —

(a) with respect to any vessel, the powers conferred on a shipping master by the [2][Merchant Shipping Act, 1923 (XXI of 1923), section 91],

(b) power to enter on board any vessel and medically examine all or any of the seamen or apprentices on board the vessel;

(c) power to require and enforce the production of the logbook and any other books, papers or documents which he thinks necessary for the purpose of enquiring into the health and medical condition of the persons on board the vessel;

(d) power to call before him and question for any such purpose all or any of those persons and to require true answers to any questions which he thinks fit to ask;

(e) power to require any person so questioned to make and subscribe a declaration of the truth of the statements made by him.

18. Indemnity of Government against act or default of port-official or pilot. The Government shall not be responsible for any act or default of any conservator, port-officer or harbor master, of any port subject to this Act, or of any deputy or assistant of any of the authorities aforesaid, or of any person acting under the control or direction of any such authority, deputy or assistant, or for any act or default of any pilot, or for any damage sustained by any vessel in consequence of any defect in any of the moorings, hawsers or other things belonging to the Government which may be used by the vessel:

Provide that nothing in this section shall protect [1][the Government] from a suit in respect of any act done by or under the express order or sanction of the Government.

[1] Subs. by A.O., 1937, for "L. G".
[2] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.
and Second Sch., for "Indian Merchant Shipping Act, 1859, section 71" which had been amended by Act 21 of 1923, s. 91.

CHAPTER IV

RULES FOR THE SAFETY OF SHIPPING AND THE CONSERVATION OF PORTS.

General Rules

19. Injuring buoys, beacons and moorings.— (1) No person shall, without lawful excuse, lift, injure, loosen or set adrift any buoy, beacon or mooring fixed or laid down by, or by the authority of, the [2][Government] in any port subject to this Act.

(2) If any person offends against the provisions of this section, he shall for every such offence be liable, in addition to the payment of the amount of damage done, to fine which may extend to two thousand rupees, or to imprisonment for a term which may extend to two years.

20. Wilfully loosening vessel from moorings. If any person wilfully and without lawful expense loosens or removes from her moorings any vessel within any such port without leave or authority from the owner or master of the vessel, he shall, for every such offence, be punishable with fine which may extend to two hundred rupees, or with imprisonment for a term which may extend to six months.

21. Improperly discharging ballast.— (1) No ballast or rubbish, and no other thing likely to form a bank or shoal or to be detrimental to navigation, shall, without lawful excuse, be cast or thrown into any such port or into or upon any place on shore from which the same is liable to be washed into any such port, either by ordinary or high tides, or by storms or land-floods [3][and no oil or water mixed with oil shall be discharged in or into [4][, or in any place from which the same is liable to be washed as aforesaid into,] any such port, to which any rules made under clause (ee) of sub-section (1) of section 6 apply, otherwise than in accordance with such rules].

(2) Any person who by himself or another so casts or throws any ballast or rubbish or any such other thing [3][or so discharges any oil or water mixed with oil], and the master of any vessel from which the same is so cast, [5][thrown or discharged], shall be punishable with fine which may extend to [6][fifty thousand] rupees, and shall pay any reasonable expenses which may be incurred in removing the same.

(3) If, after receiving notice from the conservator of the port to desist from so casting or throwing any ballast or rubbish or such other thing [1][or from so discharging any oil or water mixed with oil], any master continues so to cast, [5][throw or discharge the same], he shall [6][be punishable with a further fine which may extend to two thousand rupees for each day after the receipt of such notice and also be liable to simple imprisonment for a term which may extend to six months].

[1] The original words "the Secretary of State for India in Council" were first subs. by A.O., 1937 and then amended by A.O., 1961, Art. 2 (with effect from the 23rd March, 1956) to read as above.
[2] Subs. by A. O.,1937, for "L. G.".
[1] Ins. by the Indian Ports (Amdt.) Act, 1923 (39 of 1923), s, 3,
[2] Ins. by the Ports (Amdt.) Act, 1975 (28 of 1975), s, 2,
[3] Subs. by Act 39 of 1923, s, 3. for "or thrown",
[4] Subs. by Act 28 of 1975, s. 2, for "five hundred",
[5] Subs. by Act 39 of 1923, s. 3. for "or throw it",
[6] Subs. by Act 28 of 1975, s. 2, for "also be liable to simple imprisonment for a term which may extend to two months".

(4) Nothing in this section applies to any case in which the ballast or rubbish or such other thing is cast or thrown into, [1][or the oil or water mixed with oil is discharged in or into,] any such port with the consent in writing of the conservator, or within any limits within which such act may be authorized by the [2][Government].

22. Graving vessels within prohibited limits. If any person graves, breams or smokes and vessel in any such port contrary to the directions of the conservator, or at any time or within any limits at or within which such act is prohibited by the [2][Government], he and the master of the vessel shall for every such offence be punishable with fine which may extend to five hundred rupees each.

23. Boiling pitch on board vessel within prohibited limits. If any person boils or heats any pitch, tar, resin, dammer, turpentine, oil or other such combustible matter on board any vessel within any such port, or at any place within its limits where such act is prohibited by the [2][Government], or contrary to the directions of the conservator, he and the master of the vessel shall for every such offence be punishable with fine which may extend to two hundred rupees each.

24. Drawing spirits by unprotected artificial light. If any person, by an unprotected artificial light, draws off spirits on board any vessel, within any port subject to this Act, he and the master of the vessel shall for every such offence be punishable with fine which may extend to two hundred rupees each.

25. Warping.— (1) Every master of a vessel in any port subject to this Act shall, when required so to do by the conservator, permit warps or hawsers to be made fast to the vessel for the purpose of warping any other vessel in the port, and shall not allow any such warp or hawser to be let go until required so to do.

(2) A master offending against sub-section (1) shall be punish able for every such offence with fine which may extend to two hundred rupees.

26. Leaving out warp or hawser after sunset.— (1) A master of a vessel shall not, cause or suffer any warp or hawser attached to his vessel to be left out in any port subject to this Act after sunset in such a manner as to endanger the safety of any other vessel navigating in the port.

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(2) A master offending against sub-section (1) shall be punishable for every such offence with fine which may extend to two hundred rupees.

27. Discharge of fire-arms in port. If any person, without lawful excuse, discharges any firearm in any port subject to this Act, or on or from any pier, landing-place, wharf or quay thereof, except a gun loaded only with gunpowder for the purpose of making a signal of distress, or for such other purpose as may be allowed by the [3][Government], he shall for every such offence be punishable with fine which may extend to fifty rupees.

[1] Ins. by the Indian Ports (Amdt.) Act, 1923 (39 of 1923), s. 3.
[2] Subs.. by A.O..1987. for "L. G.".
[3] Subs. by A. O. 1937, for "L.G.".

28. Penalty on master omitting to take order to extinguish fire. If the master of any vessel in which fire takes place while lying in any such port wilfully omits to take order to extinguish the fire or obstructs the conservator or the port-officer, or any person acting under the authority of the conservator or port-officer, in extinguishing or attempting to extinguish the fire, he shall be punishable with imprisonment which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

29. Unauthorized person not to search for lost stories.— (1) No person, without the permission of the conservator, shall, in any port subject to this Act, creep or sweep for anchors, cables or other stores lost or supposed to lost therein. (2) If any person offends against the provisions of sub-section (1), he shall be punishable with fine which may extend to one hundred rupees.

30. Removing stones or injuring shores of port prohibited.— (1) No person without the permission of the conservator shall in any port subject to this Act remove or carry away any rock, stones, shingle, gravel, sand or soil or any artificial protection from any part of the bank or shore of the port ;

and no person shall sink, or bury in any part of such bank or shore, whether the same is public or private property, any mooring-post, anchor or any other thing, or do any other thing which is likely to injure or to be used so as to injure such bank or shore, except with the permission of the conservator, and with the aid or under the inspection of such person, if any, as the conservator may appoint to take part in or overlook the performance of such work.

(2) If any person offends against sub-section (1), he shall for every such offence be punishable with fine which may extend to one hundred rupees and shall pay any reasonable expenses which may be incurred in repairing any injury done by him to the bank or shore.

Special Rules

31. Moving of vessels without pilot or permission of harbor master.— (1) No vessel of the measurement of two hundred tons or upwards shall enter, leave or be moved in any port to which this section has been specially extended without having a pilot, harbourmaster or assistant of the port-officer or harbor master on board;

and no vessel of any measurement less than two hundred tons and exceeding one hundred tons shall enter leave or be moved in any such port without having a pilot, harbourmaster or assistant of the port-officer or harbor master on board, unless authority in writing so to do has been obtained from the conservator or some officer empowered by him to give such authority:

[1][Provided that the [2][Government] may, by notification in the [3][official Gazette], direct that in any port specified in such notification the provisions of this sub-section shall not apply to sailing vessels of any measurement not exceeding a measurement so specified.]

[1] Provisions; by the Indian Ports (Amdt.) Act, 1925 (36 of 1925), s. 2.
[2] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which had been subs. by A. O. 1937, for "G. G. in C.".
[3] Subs. by A.O., 1937, for "Gazette of India".

[1][(2) Notwithstanding anything in sub-section (1), the owner or master of a vessel which is by that sub-section required to have a pilot, harbor master or assistant of the port officer or harbor master on board, shall be answerable for any loss or damage caused by the vessel or by any fault of the navigation of the vessel, in the same manner as he would have been if he had not been so required by that sub-section:

Provided that the provisions of this sub-section shall not take effect till the first day of January 1918, or such earlier date as the [2][Federal Government] may notify in that behalf in the [3][official Gazette].]

[4][(3) If any vessel, except in case of urgent necessity, enters, leaves or is moved in the port contrary to the provisions of subsection (1), the master of the vessel shall for every such offence be punishable with fine which may extend to two hundred rupees, unless upon application to the proper officer the master was unable to procure a pilot, harbor master or assistant of the port-officer or harbor master to go on board the vessel.

[5]* * * * * * *

32. Provision of certain vessels with fire extinguishing apparatus.— (1) Every vessel exceeding the measurement of two hundred tons and lying in any port to which this section has been specially extended shall be provided with a proper force-pump and hose and appurtenances, for the purpose of extinguishing any fire which may occur on board.

(2) The master of such a vessel who, having been required by the conservator to comply with the provisions of sub-section (1), neglects or refuses, without lawful excuse, so to do for the space of seven days after such requisition, shall be punishable with fine which may extend to five hundred rupees.

CHAPTER V

PORT-DUES, FEES AND OTHER CHARGES

33. Levy of port-dues.— (1) [6][Subject to the provisions of sub-section (2),] in each of the ports mentioned in the first schedule such port-due, not exceeding the amount specified for the port in the third column of the schedule as the [7][Government] directs, shall be levied on vessels entering the port and described in the second column of the schedule, but not oftener than the time fixed for the port in the fourth column the schedule.

[8](2) The [7][Government] may, by notification in the [9][official Gazette], alter or

[1] Sub-section (2) ins. by the Indian Ports (Amdt.) Act, 1916 (6 of 1916), section 5 (i).
[2] Subs by F.A.O; 1975 Art. 2 and Table, for "Central Government" which had been subs. by A.O. 1937, for "G G. in C".
[3] Subs. by A.O 1937, for Gazette of India"
[4] Sub-section (2) re-numbered as (3) by s. 5 (iii), by the Indian Ports (Amdt.) Act, 1916 (6 of 1916).
[5] Sub-sections (4) and (5) as re-numbered by section 5, ibid. omitted by the Indian Ports (Amdt.) Act, 1925 (36 of 1925), s. 2(2).
[6] Ins. by Act 6 of 1916, s. 6 (i).
[7] Subs. by A.O., 1937. for "L. G.".
[8] Sub-section (2) ins. by Act 6 of 1916, s. 6(ii).
[9] Subs. by A.O..1937. for "local official Gazette".

Add [1]to any entry in the first schedule relating to ports [2][in [3][Pakistan] or, as the case may be, in the Province], and this power shall include the power to regroup any such ports.

[4]* * * * * * *

[5][(3)] Whenever the [6][Government] [7]* * * declares any other port to be subject to this Act, it may, [8]* * * by the same or any subsequent declaration, further declare, –

(a) in the terms of any of the entries in the second column of the first schedule, the vessels which are to be chargeable with port-dues on entering the port,

(b) the highest rates at which such dues may be levied in respect of vessels chargeable therewith, and

(c) the times at which such vessels are to be so chargeable.

[9]* * * * * * *

[10][(4) All port-dues now leviable in any port shall continue to be so leviable until it is otherwise declared in exercise of the powers conferred by this section.

[10][(5)] An order increasing or imposing port-dues under this section shall not take effect till the expiration of sixty days from the day on which the order was published in the [11][official Gazette].

34. Variation of port-dues by Government.The [6][Government] may, [12][after consulting the authority appointed under section 36,] exempt, [13][subject to such conditions,

if any, as it thinks fit to impose, any vessel or class of vessels] entering a port subject to this Act from payment of port dues and cancel the exemption, or may vary the rates at which portdues are to be levied in the port, in such manner as, having regard to the receipts and charges on account of the port, it thinks expedient, by reducing or raising the dues, or any of them [13][or may extend the periods for which any vessel or class of vessels entering a port shall be exempt from liability to pay port-dues]

Provided that the rates shall not in any case exceed the amount authorized to be taken by or under this Act.

35. Fees for pilotage and certain other services.— (1) Within any port subject to this Act, fees may be charged for pilotage, hauling, mooring, re-mooring, hooking, measuring and other services rendered to vessels, at such rates as the [14][Government] may direct.

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[1] For instance of such an addition, see Gaz. of P., 1950, Ext., p. 678.
[2] Subs. by A. O.,1937, for "within its own Province".
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "any Provinces" which had been subs. by A.O., 1949, for "British India".
[4] The proviso to sub-section (2), was omitted by A.O., 1937.
[5] The original sub-section (2), was re-numbered as sub-section (3) by the Indian Ports (Amdt.) Act, 1916 (6 of 1916), s. 6(iv).
[6] Subs. by A.O., 1937, for "L. G.".
[7] The words "with the previous sanction of the G. G. in C." omitted by Act 6 of 1916, s. 6 (ii).
[8] The words" with the like sanction" omitted, ibid.,
[9] The proviso to sub-section (3), which had been added ibid., was omitted by A. O. , 1937.
[10] The original sub-sections (3) and (4) were re-numbered (4) and (5), respectively by Act 6 of 1916, 9. 6(iv).
[11] Subs. by A.O., 1937, for "local official Gazette".
[12] Ins. by Act 6 of 1916, s. 7. 13 Subs. ibid., for "the vessels".
[13] Ins. by the Indian Ports (Amdt.) Act, 1916 (6 of 1916), s. 7.
[14] Subs. by A.O., 1937, for "L. G."

[1]* * * * * * *

(2) The fees now chargeable for such services shall continue to be chargeable unless and until they are altered in exercise of the power conferred by sub-section (1).

36. Receipt, expenditure and account of port-charges.— (1) The [2][Government] shall appoint some officer or body of persons at every port at which any dues, fees or other charges are authorized to be taken by or under this Act to receive the same and, subject to the control or the [2][Government], to expend the receipts on any of the objects authorized by this Act.

(2) Such officer or body shall keep for the port a distinct account, to be called the port fund account, showing, in such detail as the [2][Government] prescribes, the receipts and expenditure of the port, and shall publish annually as soon after the first day of [3][July] as may be practicable an abstract, in such form as [4][the Government] prescribes, of the account for the past financial year.

[5]* * * * * * *

(4) All money received under this Act at or on account of any port subject to this Act, excluding receipts on account of pilotage but inc1uding–

(a) fines,

(b) proceeds of waifs, and

(c) any balance of the proceeds of a sale under section 14 where no right to the balance has been established on a claim made within three years from the date of the sale,

shall be credited in the port fund account of the port

(5) All expenses incurred for the sake of any such port, excluding expenses on account of pilotage but including–

(a) the pay and allowances of all persons upon the establishment of the port,

(b) the cost of buoys, beacons, lights and all other works maintained chiefly for the benefit of vessels being in or entering or leaving the port or passing through the rivers or channels leading thereto,

(c) pensions, allowances and gratuities of persons who have been employed in the port under this or any other enactment relating to ports and port-dues, or such portion of those pensions, allowances and gratuities as the [6][Government] may by rule determine,

[1] The original proviso to this sub-section was omitted by Act 6 of 1916 s. 8, and the proviso ins. by the Bengal Pilot Service (Centralisation of Administration) Act, 1929 (11 of 1929), s. 3, was omitted by A.O., 1937.
[2] Subs. by A.O., 1937, for "L. G."
[3] Subs. by the Repealing and Amending Ordinance, 1965 (10 of 1965) s. 3 and 2nd Sch., for "April".
[4] Subs. by A.O., 1937, for "that Govt.".
[5] Sub-section (3) omitted by Act 6 of 1916, s. 9.
[6] Subs. by A.O., 1937, for "L. G.".

(d) with the previous sanction of the [1][Government], contributions towards the support of public hospitals or dispensaries suitable for the reception or relief of seamen or otherwise towards the provision of sanitary superintendence and medical aid for the shipping in the port and for seamen whether ashore or afloat belonging to vessels in the port, and

(e) with the like sanction, contributions towards sailors' homes, institutes, resthouses and coffee-houses and for other purposes connected with the health, recreation and temporal well-being of sailors,

shall be charged to the port fund account of the port.

(6) Subject to the provisions of any local law as to the disposal of any balance from time to time standing to the credit of a port fund account any such balance may be temporarily invested in such manner as the [1][Government] may direct.

37. Grouping of ports.— (1) The [2][Provincial Government] may direct that for the purposes of the last foregoing section any number of ports [3][in the Province not being major ports] shall be regarded as constituting a single port, and thereupon all moneys to be credited to the port fund account under sub-section (4) of that section shall form a common port fund account which shall be available for the payment of all expenses incurred for the sake of any of the ports.

[4]* * * * * * *

(2) Where ports are grouped by or under this Act, the following consequences ensue, namely:—

(a) the [1][Provincial Government], in the exercise of its control over expenditure debitable to the common port fund account of the group, may, [5]* * *, make rules with respect to the expenditure of the fund for the sake of the several ports of the group on the objects authorized by this Act, [6]* * *; and

(b) the [2][Provincial Government] may exercise its authority under section 34 as regards all the ports in the group collectively or as regards any of them separately

38. Receipts for port-charges. The person to whom any dues, fees or other charges authorized to be taken by or under this Act are paid shall grant to the person paying the same a proper voucher in writing under his hand, describing the name of his office, the port or place at which the dues, fees or other charges are paid, and the name, tonnage and other proper description of the vessel in respect of which the payment is made.

[1] Subs. by A.O., 1937, for "L. G.".
[2] Subs. by A.O., 1937, for "L. G.".
[3] Ins., ibid.
[4] The proviso to sub-section (1) omitted ibid.
[5] The words "subject to the control of the G.G. in C" omitted by A.O., 1937. The words "subject to the control" had been subs. for the words "with the previous sanction" by the Indian Ports (Amdt.) Act, 1916 (6 of 1916), s, 10.
[6] The words "and shall cause effect to be given to any directions which the G. G. in C. may deem it necessary to issue with respect to such expenditure" omitted by A. O. 1937.

39. Master to report arrival.— (1) Within twenty-four hours after the arrival within the limits of any port subject to this Act, of any vessel liable to the payment of port-dues under this Act, the master of the vessel shall report her arrival to the conservator of the port.

(2) A master failing without lawful excuse to make such report within the time aforesaid shall for every such offence be punishable with fine which may extend to one hundred rupees.

(3) Nothing in this section applies to tug-steamers, ferry steamers or river steamers plying to and from any of the ports subject to this Act [1]* * *

40. Conservator may in certain cases ascertain draught and charge expense to master. If any vessel liable to the payment of port-dues is in any such port without proper marks on the stem and stern posts thereof for denoting her draught, the conservator may cause the same to be ascertained by means of the operation of hooking, and the master of the vessel shall be liable to pay the expenses of the operation.

41. Ascertainment of tonnage of vessel liable to port-dues. In order to ascertain the tonnage of any vessel liable to pay port-dues the following rules shall be observed, namely:–

(1) (a) If the vessel is [2]* * * a vessel registered under the Registration of Ships Act, 1841 (X of 1841), or the Registration of Ships Act (1841) Amendment Act, 1850 (XI of 1850), or under any other law for the time being in force for the registration of vessels in [3][Pakistan], the conservator may require the owner or master of the vessel or any person having possession of her register to produce the register for inspection.

(b) If the owner or master or such person neglects or refuses to produce the register or otherwise to satisfy the conservator as to what is the true tonnage of the vessel in respect of which the port-dues are payable, he shall be punishable with fine which may extend to one hundred rupees, and the conservator may cause the vessel to be measured, and the tonnage thereof to be ascertained, according to the mode of measurement prescribed by the rules for the time being in force for regulating the measurement of British vessels, and in such case the owner or master of the vessel shall also be liable to pay the expenses of the measurement.

(2) If the vessel is not [4]* * * a vessel registered under the Registration of Ships Act, 1841 (X of 1841), or the Registration of Ships Act (1841) Amendment Act, 1850 (XI of 1850), or under any other law for the time being in force for the registration of vessels in [5][Pakistan], and the owner or master thereof fails to satisfy the conservator as to what is her true tonnage according to the mode of measurement prescribed by the rules for the time being in force for regulating the measurement of [6][Pakistan vessels], the conservator shall cause the vessel to be measured and the tonnage thereof to be ascertained, according to the mode aforesaid, and in such case the owner or master of the vessel shall be liable to pay the expenses of the measurement.

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[1] The words "or to ballam boats plying to and from the port of Chittagong" omitted by the Federal Laws (Rrevision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch.,

[2] The words or "a British registered vessel or" omitted ibid.

[3] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India"

[4] The words or "a British registered vessel or" omitted ibid.

[5] The words "or to ballam boats plying to and from the port of Chittagong" omitted by the Federal Laws (Rrevision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch.,

[6] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch., for" British vessels".

(3) If the vessel is a vessel of which the tonnage cannot be ascertained according to the mode of measurement mentioned in clauses (1) and (2), the tonnage of the vessel shall be determined by the conservator on such an estimate as may seem to him to be just.

42. Distraint and sale on refusal to pay port-charges. If the master of any vessel in respect of which any port dues, fees or other charges are payable under this Act, refuses or neglects to pay the same on demand, the authority appointed to receive such port-dues, fees or other charges may distrain or arrest the vessel, and the tackle, apparel and furniture belonging thereto or any part thereof, and detain the same until the amount due is paid; and in case any part of the port-dues, fees or other charges or of the costs of the distress or arrest or of the keeping of the vessel or other thing distrained or arrested, remains unpaid for the space of five days next after any such distress or arrest, may cause the vessel or other thing distrained or arrested to be sold and with the proceeds of such sale may satisfy the portdues, fees or other charges and the costs including the costs of sale remaining unpaid, and shall render the surplus, if any, to the master of the vessel upon demand.

43. No port-clearance to be granted until port charges are paid. The officer of [1][the Government] whose duty it is to grant a port-clearance for any vessel shall not grant such clearance–

(a) until her owner or master, or some other person, has paid or secured to the satisfaction of such officer the amount of all port-dues, fees and other charges, and of an fines, penalties and expenses to which the vessel or her owner or master is liable under this Act;

(b) until all expenses, which by the Merchant Shipping Act, 1894 (54 & 58 Vict., c. 60), section 207, are to be borne by her owner, incurred since her arrival in the port from which he seeks clearance, have been paid.

44. Port-charges payable in one port recoverable at any other port.— (1) If the master of any vessel in respect of which any such sum as is mentioned in the last foregoing section is payable causes her to leave any port without having paid the sum, the authority appointed to receive port-dues, fees and other charges at the port under this Act may require in writing the authority appointed to receive port-dues, fees and other charges under this Act at any other port in [2][Pakistan] to which she may proceed, or in which she may be, to levy the sum.

(2) The authority to whom the requisition is directed shall Proceed to levy such sum in the manner prescribed in section 42, and a certificate purporting to be made by the authority appointed to receive port-dues, fees and other charges at the port where such sum as is mentioned in the last foregoing, section became payable, stating the amount payable; shall be sufficient prima facie proof of such amount in any proceeding under section 42 and also (in case the amount payable is disputed) in any subsequent proceeding under section 59.

45. Penalty for evading payment of port-charges.— (1) If the master of a vessel evades the payment of any such sum as is mentioned in section 43, he shall be punishable with fine which may extend to five times the amount of the sum. (2) In any proceeding before a Magistrate on a prosecution under sub-section (1), any such certificate as is mentioned in section 44, sub-section

[1] The original word" Govt" was first subs. by A.O.., 1937 and then amended by A.O., 1961, Art. 2 (with effect from the 23rd March, 1956), to read as above.
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

(2), stating that the master has evaded such payment, shall be sufficient prima facie proof of the evasion, unless the master shows to the satisfaction of the Magistrate that the departure of the vessel without payment of the sum was caused by stress of weather, or that there was lawful or reasonable ground for such departure.

(3) Any Magistrate having jurisdiction under this Act in any port to which the vessel may proceed, or in which she may be found, shall be deemed to have jurisdiction in any proceeding under this section.

46. Port-due on vessels in ballast. A vessel entering any port subject to this Act [1]* * * in ballast and not carrying passengers shall be charged with a port-due at a rate to be determined by the [2][Government] and not exceeding three-fourths of the rate with which she would otherwise be chargeable.

47. Port-due on vessels not discharging or taking in cargo. When a vessel enters a port subject to this Act, but does not discharge or take in any cargo or passengers therein (with the exception of such unshipment and reshipment as may be necessary for purposes of repair), she shall be charged with a port-due at all rate to be determined by the [2][Government] and not exceeding half the rate with which she would otherwise be chargeable.

48. Port-due not to be chargeable in certain cases.— No port-due shall be chargeable in respect of—

(a) any pleasure-yacht, or

(b) any vessel which, having left any port, is compelled to re-enter it by stress of weather or in consequence of having sustained any damage, [3]*

[3]* * * * * * *

49. Power to impose hospital port-dues.— (1) The [4][Federal Government] may, by notification in, the [5][official Gazette], order that there shall be paid in respect of every vessel entering any port subject to this Act, within a reasonable distance of which there is a public hospital or dispensary suitable for the reception or relief seamen requiring medical aid, such further port-dues not exceeding one anna per ton as the [4][Federal Government] thinks fit.

(2) Such port-dues shall be called hospital port-dues, and the [4][Federal Government] shall, in making any order under sub-section (1), have regard to any contributions made under section 36, subsection (5), clause (d).

(3) An order imposing or increasing hospital port-dues shall not take effect till the expiration of sixty days from the day on which the order was published in the [5][official Gazette].

[1] The words and brackets "(other than a port in Burma)" omitted by A.O., 1937.
[2] Subs. ibid., for "L. G."
[3] The word "or" and cl. (c) omitted by A.O., 1949.
[4] Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government" which had been subs. by A.O., 1937, for "L. G.".
[5] Subs. by .A.O., 1937, for "local official Gazette"

(4) Whenever the [1][Federal Government] is satisfied that proper provision has been made by the owners or agents of any class of vessels for giving medical aid to the seamen employed on board such class of vessels, or that such provision is unnecessary in the case of any class of vessels, it may, by notification in the [2][official Gazette], exempt such class of vessels from any payment under this section.

50. Application and account of hospital port-dues— (1) Hospital port-dues shall be applied, as the [3][Federal Government] may direct, to the support of any such hospital or dispensary as aforesaid, or otherwise for providing sanitary superintendence and medical aid for the shipping in the port in which they are levied and for the seamen belonging to the vessels therein, whether such seamen are ashore or afloat.

(2) The [3][Federal Government] shall publish annually in the [2][official Gazette], as soon after the first day of April as may be, an account, for the past financial year, of the sums received as hospital port-dues at each port where such dues are payable, and of the expenditure charged against those receipts.

(3) Such account shall be published as a supplement to the abstract published under section 36, sub-section (2)

HOISTING SIGNALS

51. Master to hoist number of vessel.— (1) The master of every inward or outward bound vessel, on arriving within signal distance of any signal-station established [4]* * * within the limits of any part of a river or channel leading to a port subject to this Act, shall, on the requisition of the pilot in charge of the vessel, signify the name of the vessel by hoisting the number by which she is known, or by adopting such other means to this end as may be practicable and usual, and shall keep the signal flying until it is answered from the signal station.

CHAPTER VI

(2) If the master of a vessel arriving as aforesaid offends against sub-section (1), he shall be punishable for every such offence with fine which may extend to one thousand rupees.

52. Pilot to require master to hoist number.— (1) Every pilot in charge of a vessel shall require the number of the vessel to be duly signalled as provided by the last foregoing section.

(2) When, on such requisition from the pilot, the master refuses to hoist the number of a vessel, or to adopt such other means of making her name known as may be practicable and usual, the pilot may, on arrival at the first place of safe anchorage, anchor the vessel and refuse to proceed on his course until the requisition has been complied with.

53. Penalty on pilot disobeying provisions of this Chapter. Any pilot in charge of a vessel who disobeys, or abets disobedience to, any of the provisions of this Chapter, shall be punishable with fine which may extend to five hundred rupees for each instance of such disobedience or abetment, and, in addition, shall be liable to have his authority to act as a pilot withdrawn.

[1] Subs. by F. A.O., 1975, Art. 2 and Table, for "Central Government" which had been subs. by A.O., 1937, for "L. G.".
[2] Subs. by .A.O., 1937, for "local official Gazette"
[3] Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government" which had been subs. by A. O., 1937, for "L.G".
[4] The words "within the limits of the river Hooghly, or" omitted by A.O., 1949.

CHAPTER VII

PROVISIONS WITH RESPECT TO PENALTIES

54. Penalty for disobedience to rules and orders of the Government. If any person disobeys any rule or order which a [1][Government] has made in pursuance of this Act and for the punishment of disobedience to which express provision has not been made elsewhere in this Act, he shall be punishable for every such offence with fine which may extend to [2][fifty thousand] rupees.

55. Offences how triable, and penalties how recovered. All offences against this Act shall be triable by a Magistrate, and any Magistrate may, by warrant under his hand, cause the amount of any fine imposed upon the owner or master of any vessel, for any offence committed on board of the vessel or in the management thereof or otherwise in relation thereto, whereof the owner or master is convicted, to be levied by distress and sale of the vessel, and the tackle, apparel and furniture thereof, or so much thereof as is necessary.

56. Cost of conviction— (1) In case of any conviction under this Act, the convicting Magistrate may order the offender to pay the costs of the conviction in addition to any fine or expenses to which he may be liable.

(2) Such costs may be assessed by the Magistrate and may be recovered in the same manner as any fine under this Act.

57. Ascertainment and recovery of expenses and damages payable under this Act— (1) If any dispute arises as to the sum to be paid in any case as expenses or damages under this Act, it shall be determined by a Magistrate upon application made to him for that purpose by either of the disputing parties.

(2) Whenever any person is liable to pay any sum, not exceeding one thousand rupees, as expenses or damages under this Act, any Magistrate, upon application made to him by the authority to whom the sum is payable, may, in addition to or instead of any other means for enforcing payment, recover the sum as if it were a fine.

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58. Cost of distress. Whenever any fine, expenses or damages is or are levied under this Act by distress and sale, the cost of the distress and sale may be levied in addition to such fine, expenses or damages, and in the same manner.

59. Magistrate to determine the amount to be levied in case of dispute. If any dispute arises concerning the amount leviable by any distress or arrest under this Act or the costs payable under the last foregoing section, the person making the distress or using the arrest may detain the goods distrained or arrested, or the proceeds of the sale thereof, until the amount to be levied has been determined by a Magistrate, who, upon application made to him for that purpose, may determine the amount, and award such costs to be paid by either of the parties to the other of them as he thinks reasonable, and payment of such costs, if not paid on demand, shall be enforced as if they were a fine.

[1] Subs. by A. O., 1937, for "L.G."
[2] Subs. by the Ports (Amdt.) Act, 1975 (28 of 1975), s. 3, for "one hundred".

60. Jurisdiction over offences beyond local limits of jurisdiction (1) Any person offending against the provisions of this Act in any port subject to this Act shall be punishable by any Magistrate having jurisdiction over any district or place adjoining the port.

(2) Such Magistrate may exercise all the powers of a Magistrate under this Act, in the same manner and to the same extent as if the offence had been committed locally within the limits of his jurisdiction, notwithstanding that the offence may not have been committed locally within such limits, and, in case any such Magistrate exercises the jurisdiction hereby vested in him, the offence shall be deemed, for all purposes, to have been committed locally within the limits of his jurisdiction.

61. Conviction to be quashed on merits only.— (1) No conviction, order or judgment of any Magistrate under this Act shall be quashed for error of form or procedure, but only on the merits, and it shall not be necessary to state, on the face of the conviction, order or judgment, the evidence on which it proceeds.

(2) If no jurisdiction appears on the face of the conviction, order or judgment, but the depositions taken supply that defect, the conviction, order or judgment shall be aided by what so appears in the depositions.

CHAPTER VIII

SUPPLEMENTAL PROVISIONS

62. Hoisting unlawful colours in port.— (1) If any vessel belonging to any [1][citizens of Pakistan] [2]* * * or sailing under [3][Pakistan [2]* * colours], hoists, carries or wears, within the limits of any port subject to this Act, any flag, jack, pennant or colours, the use whereof on board such vessel has been prohibited by the Merchant Shipping Act, 1894 (57 & 58 Viet. c. 60), or any other Statute now or here-after to be in force, or by any proclamation made or to be made in pursuance of any such Statute, or by any of [4][the regulations] in force for the time being, the master of the vessel shall, for every such offence, be punishable with fine which may extend to fifty rupees.

(2) Such fine shall be in addition to any other penalty recoverable in respect of such an offence.

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(3) The conservator of the port, or any officer of [5][the Pakistan Navy], may enter on board any such vessel and seize and take away any flag, jack, pennant or colours so unlawfully hoisted, carried or worn on board the same.

63. Foreign deserters. Any Magistrate, upon an application being made to him by the Consul of any Foreign Power to which section 238 of the Merchant Shipping Act, 1894 (57 & 58 Viet. c. 60), has, by an Order in Council [6][or order], been, or shall hereafter be, declared to be applicable, or by the representative of such Consul, and upon complaint on oath of the desertion of any seaman, not being a slave, from any vessel of such Foreign Power, may, until a revocation of such order in Council

[1] Subs. by A. O., 1961, Art. 2 and Sch., for "of His Majesty's subjects" (with effect from the 23rd March, 1956) .
[2] The words "or any Commonwealth Citizen" and "or British" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3, and Second Sch.,
[3] Subs. by A. O., 1961, Art. 2 and Sch., for "British Colours" (with effect from the 23rd March,1956).
[4] Subs. ibid ., for "His Majesty's regulations" (with effect from the 23rd March,1956).
[5] The original words "His Majesty's Navy or Indian Marine Service" have successively been amended by A. O., 1937, A. O., 1949 and A. O., 1961 (with effect from the 23rd March, 1956), to read as above.
[6] Ins. by A. O., 1961, Art. 2 and Sch. (with effect from 23rd March, 1956)

[1][or order] has been publicly notified, issue his warrant for the apprehension of any such deserter, and, upon due proof of the desertion, may order him to be conveyed on board the vessel to which he belongs, or, at the instance of the Consul, to be detained in custody until the vessel is ready to sail, or, if the vessel has sailed, for a reasonable time not exceeding one month:

Provided that a deposit be first made of such sure as the Magistrate deems necessary for the subsistence of the deserter during the detention and that the detention of the deserter shall not be continued beyond twelve weeks.

64. Application of sections 10 and 21.— (1) The provisions of sections 10 and 21 shall be applicable to all ports heretofore or hereafter declared by the [2][Government] to be ports for the shipment and landing of goods but not otherwise subject to this Act, and may be enforced by any Magistrate to whose ordinary jurisdiction any such port is subject.

(2) Any penalties imposed by him, and any expenses incurred by his order, under the said provisions, shall be recoverable respectively in the manner provided in sections 55 and 57.

(3) In any of the said ports for the shipment and landing of goods the consent referred to in section 21, sub-section (4), may be given by the principal officer of customs at such port or by any other officer appointed in that behalf by the [3][Government].

65. Grant of sites for sailors' institutes.— Any local authority in which any immoveable property in or near a port is vested may, [4][with the previous sanction, in the case of a cantonment authority or the port authority of a major port, of the [3][Federal Government], and in other cases, of the Provincial Government], appropriate and either retain and apply, or transfer by way of gift or otherwise, the whole or any part of the property as a site for, or for use as, a sailors' home or other institution for the health, recreation and temporal well-being of sailors.

66. Exercise of powers of conservator by his assistants.— (1) All acts, orders or directions by this Act authorized to be done or given by any conservator may, subject to his control, be done or given by any harbour-master or any deputy or assistant of such conservator or harbour-master.

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(2) Any person authorised by this Act to do any act may call to his aid such assistance as may be necessary.

67. Service of written notice of directions. Any written notice of a direction given under this Act, left for the master of any vessel with any person employed on board thereof, or affixed on a conspicuous place on board of the vessel, shall, for the purposes of this Act, be deemed to have been given to the master thereof.

[1] Ins. by A.O., 1961, Art. 2 and Sch. (with effect from the 23rd March, 1956).
[2]Subs. by A. O., 1937, for "L.G."
[3]Subs. by A. O., 1937, for "L.G."
[4]Subs. ibid. for "with the previous sanction of the L.G."

68. Publication of orders of Government.— Every declaration, order and rule of a [1][Government] made in pursuance of this Act shall be published in the [2][official Gazette], and a copy thereof shall be kept in the office of the Conservator and at the custom-house, if any, of every port to which the declaration, order or rule relates, and shall there be open at all reasonable times to the inspection of any person without payment of any fee.

[3]**[68A. Authorities exercising jurisdiction in port to co-operate in manoeuvres for defence of port**. Every authority exercising any powers or jurisdiction in, or relating to, any port to which this Act for the time being applies shall, if so required by an officer authorised by general or special order of the [4][Federal Government] in this behalf, co-operate in such manner as such officer may direct, in carrying out any manoeuvres in connection with any scheme or preparations for the defence of the said port in time of war, and for this purpose shall, if so required, temporarily place at the disposal of such officer the services of any of its staff and the use of any of its vessels, property, equipment or other material:

Provided, firstly, that if any vessels are placed at the disposal of such officer in accordance with this section, the [5][Federal Government] shall, in respect of the period during which they are so at his disposal, bear the running expenses of such vessels, and be responsible for any damage thereto.

Explanation.—The expression "running expenses" in this proviso includes all outlay incurred in connection with the use of the vessels other than any charges for their hire, or for the wages of the officers and crews of such vessels:

Provided, secondly, that any officer making a requisition under this section shall exercise his powers in such a way as to cause as little disturbance to the ordinary business of the port as is compatible with the exigencies of the efficient carrying out of the manoeuvres:

Provided, thirdly, that no suit or other legal proceeding shall lie against any authority for any default occurring by reason only of compliance with a requisition under this section.

68B. Duties of the said authorities in an emergency. Whenever the [6][Federal Government] is of opinion that an emergency has arisen which renders it necessary that the duties imposed for the purposes specified in section 68A on the authorities therein mentioned, or other duties of a like nature, should be imposed on such authorities continuously during the existence of the emergency, [7][it] may, by general or special order, authorise any officer to require the said authorities to perform such duties until the [6]Federal Government] is of opinion that the emergency has passed, and the said authority shall comply accordingly, and the provisions of the said section shall apply subject to the following modification, namely:-

[1] Subs. by A. O., 1937, for "L.G."
[2] Subs. ibid. for "local official Gazette".
[3] Ss. 68A and 68B ins. by the Indian Ports (Amdt.) Act,1916 (6 of 1916), s.11.
[4] Subs. by F. A. O., 1975, Art. 2 and Table for "Central Government" which has been subs. by A. O., 1937, for "G. G. in C".
[5] Subs. ibid. for "Central Government" which has been subs. by A.O., 1937, for "G. of I".
[6] Subs by F. A.O., 1975, Art. 2 and Table, for "Central Government" which has been subs. by A. O., 1937 for "G. G. in C".
[7] Subs. by A. O.,1937 for "he".

The [3][Federal Government] shall pay any authority, on whom a requisition has been made, such compensation for any loss or damage attributable to such requisition, and for any services rendered or expenditure incurred in complying therewith as, in default of agreement, shall be decided to be just and reasonable, having regard to the circumstances of the case, by the arbitration of a person to be nominated in this behalf by the [1][Federal Government], and the decision of such person shall be final.]

69. [Repeal.] Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Schedule.

THE FIRST SCHEDULE

PORTS, VESSELS CHARGEABLE, RATE OF PORT-DUES AND FREQUENCY

OF PAYMENT,

(See sections 1 and 33)

PART 1 .-[*BENGAL*.] Omitted by A. O., 1949

PART II.- [*MADRAS PRESIDENCY*.] Omitted by A.O., 1949

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[3] Subs. by F. A. O., 1975, Art. 2 and Table for "Central Government" which has been subs. by A. O., 1937, for "G of I".

THE FIRST SCHEDULE. ____ contd.

[1][PART III. ___ KARACHI]

Name of Port.1	Vessels chargeable. 2	Rate of port dues. 3	Due how often chargeable in respect of same vessels. 4
[2]* *	* *	* *	* *
[3][Karachi	Sea-going vessels ten tons and upwards (except fishing boats). Tug-boats, ferryboats and riverboats, whether propelled by steam or other mechanical means.	Not exceeding [4][three rupees] per ton. Ditto	Once in [5][three months]. Once between the 1st January and the 30th June, and once between the 1st July and the 31st December, in each year.]
[6][Mohammad bin-qasim.	[7][Ocean-going vessels other than coastal vessels, country craft and fishing boats. Coastal vessels, country craft and fishing boats in excess of 200 tons. Coastal vessels, country craft and fishing boats exceeding 10 tons but not exceeding 200 tons. Tug steamers or river steamers not owned by the Port.	Not exceeding eighteen rupees and fifty paisa per ton. Not exceeding nine rupees and twenty five paisa per ton. Not exceeding three rupees per ton. Not exceeding three rupees per ton.	One each entry. One each entry. Once in the same month. Once between the 1st January and the 30th June and once between the 1st July and the 31st December, in each year.]
[8]* * *	* *	* *	*

[1] Subs. by A.O.,1949, for the heading "Part III-BOMBAY PRESIDENCY".
[2] The entries relating to Bombay Presidency, omitted ibid.
[3] Subs. by Notifn. No. S.R.O. 204, dated the 14th May, 1959, see Gaz. of P, 1959, Pt. I, p. 232, for the entries as amended by Notify. of the Govt. of Bombay in the Marine Department, No. 459, dated the 13th July, 1923.
[4] Subs.by S.R.O.25 (KE)/79, dated 26th April, 1979,see Gaz. of P. 1979 Ext. (K) Pt. II, p. 42, for "one rupee".
[5]Subs. ibid., for "the same month".
[6]Added by S.R.O. 39 (KE) /73, dated 5th September, 1973, see Gaz. of P., 1973, Ext. (K) Pt. II, p. 161.
[7]Subs. by S.R.O. 55 (KE)/81, dated 12th December, 1981, see Gaz. of P., 1981, Ext, (K) Pt. -IIp. 158, for columns 2,3 and 4 which were amended by S.R.O. 27 (KE)/74, dated 23rd March, 1974, see Gaz. of P.,1974, Ext., (K) Pt. II, p. 29 .
[8] The entries relating to Aden, omitted by A. O., 1937.

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THE FIRST SCHEDULE. _____ concld.

PART IV .-[BURMA]. Rep by A.O., 1937.

[1]Part V.-[East Pakistan.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Second Schedule.

THE SECOND SCHEDULE.-[ENACTMENTS REPEA LED.] Rep. by the Repealing Act, 1938 (I of 1938), s. 2 and Sch

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[1]This Part was previously amended by various enactments from time to time.

THE POWERS-OF-ATTORNEY ACT, 1882

CONTNETS

1. Short title, extent and commencement

2. Execution under power-of-attorney

3. Payment by attorney under power, without notice of death, etc., good

4. Deposit of original instruments creating powers-of-attorney

5. Power-of-attorney of married women

*6.

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*[Repealed]

THE POWERS-OF-ATTORNEY ACT, 1882

ACT NO. VII OF 1882

[24th *February,* 1882]

An Act to amend the law relating to Powers-of-Attorney

For the purpose of amending the law relating to Powers-of-Attorney; It is hereby enacted as follows:—

1. Short title, extent and commencement. —This Act may be called the Powers-of-Attorney Act, 1882.

[1][It extends to the whole of Pakistan ;] and it shall come into force on the first day of May 1882.

2. Execution under power-of-attorney.—The donee of a power-of-attorney may, if he thinks fit, execute or do any assurance, instrument or thing in and with his own name and signature, and his own seal, where sealing is required, by the authority of the donor of the power; and every assurance, instrument and thing so executed and done, shall be as effectual in law as if it had been executed or done by the donee of the power in the name, and with the signature and seal, of the donor thereof.

This section applies to powers-of-attorney created by instruments executed either before or after this Act comes into force.

3. Payment by attorney under power, without notice of death, etc., good.—Any person making or doing any payment or act in good faith, in pursuance of a power-of-attorney, shall not be liable in respect of the payment or act by reason that, before the payment or act, the donor of the power had died or become lunatic, of unsound mind, or bankrupt, or insolvent, or had revoked the power, if the fact of death, lunacy, unsoundness of mind, bankruptcy, insolvency or revocation was not, at the time of the payment or act, known to the person making or doing the same.

But this section shall not affect any right against the payee of any person interested in any money so paid; and that person shall have the like remedy against the payee as he would have had against the payer, if the payment had not been made by him.

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This section applies only to payments and acts made or done after this Act comes into force.

4. Deposit of original instruments creating powers-of-attorney.—(a) An instrument creating a power-of-attorney, its execution being verified by affidavit, statutory declaration or other sufficient evidence, may, with the affidavit or declaration, if any, be deposited in the High Court within the local limits of whose jurisdiction the instrument may be.

(b) A separate file of instruments so deposited shall be kept; and any person may search that file, and inspect every instrument so deposited; and a certified copy thereof shall be delivered out to him on request.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance No. XXI of 1960, s. 3 and 2nd Sch. *(with effect from the 14th October,* 1955).

(c) A copy of an instrument so deposited may be presented at the office and may be stamped or marked as a certified copy, and, when so stamped or marked, shall become and be a certified copy.

(d) A certified copy of an instrument so deposited shall, without further proof, be sufficient evidence of the contents of the instrument and of the deposit thereof in the High Court.

(e) The High Court may, from time to time, make rules for the purposes of this section, and prescribing, with the concurrence of the [1][Provincial Government], the fees to be taken under clauses (a), (b), and (c).

(f) [2][* * * * * * *]

(g) This section applies to instruments creating powers-of-attorney executed either before or after this Act comes into force.

5. Power-of-attorney of married women.—A married woman, whether a minor or not, shall, by virtue of this Act, have power, as if she were unmarried and of full age, by a non-testamentary instrument, to appoint an attorney on her behalf, for the purpose of executing any non-testamentary instrument or doing any other act which she might herself execute or do; and the provisions of this Act, relating to instruments creating powers-of-attorney, shall apply thereto.

[3][This section shall not apply to a Muslim married woman.]

6. [4][Repealed]

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Date: 13-06-2024

[1]Subs. by A.O., 1937.
[2]Rep. by the Lower Burma Courts Act No. VI of 1900, s. 48 and Sch. II.
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981 s. 3 and 2nd Sch.
[4]Rep. by the Amending Act No. XII of 1891.

THE PRICE CONTROL AND PREVENTION OF PROFITEERING AND HOARDING ACT, 1977

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Powers to make orders etc.
4. Delegation of powers
5. Effect of orders inconsistent with other enactments
6. Fixation of prices
6A. Appeal
7. Penalties
8. Attempts and abetments
9. Offences by corporations
10. False statements
11. Power to try offences summarily
12. Power to amend Schedule
13. Presumption as to order
14. Burden of proof in certain cases
15. Protection of action taken under the Act
16. *Repeal*

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THE PRICE CONTROL AND PREVENTION OF PROFITEERING AND HOARDING ACT, 1977

[1]ACT No. XXIX OF 1977

[*21st May, 1977*]

An Act to provide for price control and prevention of profiteering and hoarding.

WHEREAS it is expedient to provide for price control and prevention of profiteering and hoarding;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Price Control and Prevention of Profiteering and Hoarding Act, 1977.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Controller-General" means the Controller-General of Prices and Supplies appointed by the Federal Government, and includes any Deputy or Assistant Controller-General of Prices and Supplies so appointed, and any other officer authorised by the Federal Government to exercise all or any of the powers of the Controller-General under this Act;

(b) "dealer" means a person carrying on, whether in conjunction with any other business or not, the business of selling any essential commodity, whether wholesale or retail;

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(c) "essential commodity" means any of the commodities or classes of commodities mentioned in the Schedule;

(d) "importer" means a person importing into Pakistan, whether under an import licence granted by the Federal Government or otherwise, any essential commodity from outside Pakistan, but does not include a person importing any essential commodity as part of his personal baggage;

(e) "notified order" means an order notified in the official Gazette;

(f) "producer" means a person engaged in the manufacture or production of any essential commodity.

[1]For Statement of Objects and Reasons, see Gaz. of P., 1977, Ext. Pt. III, p. 3539.

3. Powers to make orders etc.—(1) The Federal Government, so far as it appears to it to be necessary or expedient for securing equitable distribution of an essential commodity and its availability at fair prices, may, by notified order, provide for regulating the prices, production, movement, transport, supply, distribution, disposal and sale of the essential commodity and for the price to be charged or paid for it at any stage of transaction therein.

(2) Without prejudice to the generality of the powers conferred by sub-section (1), an order made thereunder may provide—

(a) for controlling the prices at which any essential commodity may be bought or sold in any area;

(b) for regulating the production, treatment and keeping of any essential commodity;

(c) for regulating, by licences, permits or otherwise, the transport, movement and distribution between the Provinces of an essential commodity;

(d) for prohibiting the withholding of sale of an essential commodity ordinarily kept for sale; .

(e) for requiring any person holding stock in a Province of an essential commodity to sell in another province the whole or a specified part of the stock at such price, to such persons or class of persons and under such conditions as may be specified in the order;

(f) for fixing the maximum quantity of any essential commodity which may at any time be possessed by a producer or dealer;

(g) for collecting any information or statistics with a view to regulating or prohibiting any of the matters aforesaid;

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(h) for requiring persons engaged in any of the matters aforesaid in respect of any essential commodity to maintain and produce for inspection such books, accounts and records relating to their business, and to furnish such information relating thereto, as may be specified in the order;

(i) for requiring every importer, producer and dealer to mark the essential commodities with the sale prices and to exhibition his premises a price list of the essential commodities held by him for sale; and

(j) for any incidental and supplementary matters, including in particular the entering and search of premises, vehicles, vessels and aircraft, the seizure by a person authorised to make such search of any articles in respect of which such person has reason to believe that a contravention of the order has been, is being or is about to be committed, or any records connected therewith, the grant or issue of licences, permits or other documents and the charging of fees therefor.

4. Delegation of powers. The Federal Government may, by notified order, direct that any power conferred on it by or under this Act shall, in relation to such matters and subject to such conditions, if any, as may be specified in the direction, be exercisable also by—

(a) such officer or authority subordinate to the Federal Government; or

(b) such Provincial Government or such officer or authority subordinate to a Provincial Government, as may be specified in the direction.

5. Effect of orders inconsistent with other enactments. Any order made under section 3 shall have effect notwithstanding anything inconsistent therewith contained in any enactment other than this Act or any instrument having effect by virtue of any enactment other than this Act.

6. Fixation of prices.—(1) Subject to such general or special orders as may be made by the Federal Government under section 3, the Controller- General may, by notification in the official Gazette, fix specific maximum prices of essential commodities and different prices may be fixed for different localities or for different classes or categories of any essential commodities.

(2) No person shall sell or re-sell any essential commodity at a price higher than the maximum price so fixed.

[1][(2A) Every dealer, importer or producer of an essential commodity the maximum price of which is not for the time being fixed by a notification issued under sub-section (1) shall, if so required by the Controller-General by an order in writing or by a notified order, inform the Controller-General by notice in writing forwarded to him by registered post acknowledgement due of his intention to raise the price of the essential commodity and shall not raise the price.

(a) before the expiration of thirty days from the day on which the notice is received by the Controller-General ; or

(b) at any time thereafter, if, within the said period, the Controller-General communicates to him an objection to the price being raised.

(2B) A notice under sub-section (2A) shall specify the amount by which the price of the essential commodity is proposed to be raised and the reasons therefore and be accompanied by the latest annual audited accounts of the dealer, importer or producer.]

(3) Every dealer, importer, or producer shall supply to the Controller-General such information regarding the production, importation, purchase, stock, sale or distribution of any of the essential commodities as the Controller-General may, by an order in writing or by a notified order, require.

[2][**6A.Appeal**.—(1) Any producer, dealer or importer, if aggrieved by an order of a Controller General, may prefer an appeal within three working days of the order to an appellate committee comprising of federal secretary of the division to which business of industries stands allocated and two federal secretaries nominated by the Cabinet Division in case of the Federal Government and an appellate committee comprising of three provincial secretaries including secretary of the department to which business of industries stands allocated, constituted by chief secretary of the province concerned in case of a province or district thereof, as the case maybe.

[1]Subs. by the Price Control and Prevention of Profiteering and Hoarding (Amdt.) Ordinance, 1979 (64 of 1979), s. 2.
[2] Ins by the Price Control and Prevention of Profiteering and Hoarding (Amendment) Act, 2023, (Act No. LXIV of 2023), s.2.

(2) An appeal under sub-section (l) shall be decided by the concerned appellate committee within five working days after providing the appellant an opportunity of being heard.]

7. Penalties.—(1) Any person who contravenes any order made under section 3 or a notification issued, or order made, under section 6 shall be punishable with imprisonment for a term which may extend to three years and with fine which may extend to one lac rupees:,

Provided that, if a person convicted for an offence punishable under this sub-section is again convicted for such offence, the term of imprisonment awarded to him shall not be less than one year.

(2) If the order made under section 3 so provides, any Court trying any contravention of such order may direct that any property in respect of which the Court is satisfied that the order has been contravened shall be forfeited to the Federal Government.

8. Attempts and abetments. Any person who attempts to contravene, or abets a contravention of, any order made under section 3 shall be deemed to have contravened the order:

Provided that a person who buys an essential commodity for his personal consumption or use and not for sale shall not be deemed to have abetted the contravention of an order controlling the price at which the essential commodity may be sold.

9. Offences by corporations. If the person contravening an order made under section 3 is a company or other body corporate or a partnership or other body of individuals, every director, manager, secretary, member or other officer or agent thereof shall, unless he proves that the contravention took place without his knowledge or that he exercised all due diligence to prevent such contravention, be deemed to be guilty of such contravention.

10. False statements. If any person—

(i) when required by an order made under section 3 to make a statement or furnish any information makes any statement or furnishes any statement which is false in any material particular and which he knows or has reasonable cause to believe to be false, or does not believe to be true; or

(ii) makes any statement as aforesaid in any book, account, record, declaration, return or other document which he is required by any such order to maintain or furnish,

he shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

[1][**11. Power to try offences summarily.—**](1) Offences punishable under this Act shall be tried by a Special Magistrate appointed under section 14A of the Code of Criminal Procedure, 1898, in a summary manner as provided in sections 262 to 265 of the said Code.

Provided that sub-section (2) of section 262 shall not apply.

[1]Subs by Act III of 06, s. 14.

(2) If a Special Magistrate has reason to believe that any offence punishable under this Act has been committed by any person, he may enter the place or premises where the offence has been committed and try the offence on the spot.]

12. Power to amend Schedule. The Federal Government may, by notification in official Gazette, amend the Schedule so as to add to, or omit from it any commodity or class of commodities.

13. Presumption as to order.—(1) No order made by any authority other than a Court in exercise of any power conferred by or under this Act shall be called in question in any Court.

(2) Where an order purports to have been made and signed by an authority in exercise of any power conferred by or under this Act, a Court shall, within the meaning of the Evidence Act, 1872 (L of 1872) presume that such order was so made by that authority.

14. Burden of proof in certain cases. Where any person is prosecuted for contravening any order made under section 3 which prohibits him from doing an act or being in possession of a thing without lawful authority or without a permit, licence or other document, the burden of proving that he has such authority, permit, licence or other document shall be on him.

15. Protection of action taken under the Act.—(1) No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of any order made under section 3.

(2) No suit or other legal proceeding shall lie against the Government for any damage caused or likely to be caused by anything which is in good faith done or intended to be done in pursuance of any order made under section 3.

16. ***[Repeal.]*** *Omitted by the Federal laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.*

[1][SCHEDULE

(*See* Section 2 and section 12)

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PART- I

1. Edible oils, hydrogenated or otherwise;
2. Processed meat;
3. Tea;
4. Powdered milk;
5. Milk food for infants;
6. Aerated water;
7. Fruit juices and squashes;
8. Chemical fertilizers all sorts;

[1]Subs. by S.R.O No. 1065 (I)/2021, page No. 1263, dated 24th August, 2021

9. Cement;

10. Caustic soda;

11. Soda ash;

12. Bicycles, motor cycles, trucks, tractors, cars, light commercial vehicle (LCV), heavy commercial vehicle (HCV), sports utility vehicle (SUV), buses and trailors;

13. Face masks, oxygen cylinder, hand sanitizers;

14. Iron and steel; and

15. Tyres (all types).

PART-II

1. White sugar; and

2. Wheat

PART-III

1. Milk;

2. Salt;

3. Potatoes;

4. Onion;

5. Pulses all sorts;

6. Fish all sorts;

7. Beef;

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8. Mutton;

9. Eggs;

10. Gur;

11. Spices and vegetables;

12. Red chilies;

13. Charcoal;

14. Firewood;

15. Matches 40 and 50 sticks;

16. Coal;

17. Poultry feed;

18. Bricks;

19. Phutti (seed cotton);

20. Cotton (lint);

21. Cotton seed all sorts;

22. Wool, shoddy or raw;

23. Paddy (rice);

24. Ice;

25. Pesticides;

26. Meat on hoof;

27. Roti and naan (tandoori);

28. Fruits and vegetables;

29. Meda and suji;

30. Gram flour;

31. Bread (double roti);

32. Curd; and

33. Live poultry and poultry meat.]

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THE PRIVATE SECURITY COMPANIES ORDINANCE, 2001

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THE PRIVATE SECURITY COMPANIES ORDINANCE, 2001

ORDINANCE No. VI OF 2001

[*7th February, 2001*]

An ordinance to provide for regulation of private security companies in the Islamabad Capital Territory

WHEREAS it is expedient to provide for regulation, licensing and control of private security companies in the Islamabad Capital Territory and for matters connected therewith and ancillary thereto;

AND WHERAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999 and Provisional Constitution Order No.1 of 1999;

AND WHEREAS the President is Satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, read with the Provisional Constitution (Amendment) Order No.9 of1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Private Security Companies Ordinance, 2001.

(2) It extends to the whole of the Islamabad Capital Territory, Islamabad.

(3) It shall come into force at once.

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2. Definitions.— (1) In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "company" means a company incorporated under the Companies Ordinance,1984(XLVII of 1984);

(b) "Competent Authority" means the Chief Commissioner Islamabad Capital Administration;

(c) "licence" means a licence granted under this Ordinance for carrying on the business of a private security company by providing for consideration, security guards or security arrangements for the protection of persons or property or to prevent the theft or unlawful taking of property;

(d) "licensee" means the holder of a licence;

(e) "Licensing Officer" means the licencing officer appointed by the Chief Commissioner, Islamabad Capital Administration, and shall include an Assistant Licensing Officer;

(f) "private security company" means any company, registered under the Companies Ordinance, 1984(XLVII of 1984) carrying on, maintaining or engaged in the business of providing for consideration security guards or making other arrangements for the security of other persons and their property functioning under a valid licence issued by the competent authority;

(g) "prescribed" means prescribed by rules made under this Ordinance; and

(h) "security guard" includes any watchman or other person engaged by the licensee for the protection of persons or property or to prevent the theft or robbery at the protected places.

3. Ordinance not to apply to Civil and Armed Forces, etc.— (1) The provisions of this Ordinance shall not apply to—

(a) any member of Armed Forces, police or any civil armed force; and

(b) any inspector, guard, watchman, or other persons employed by an individual employer for inspection, protection, guarding of his residence or commercial or business premises or for the protection of persons or property of such employer who is not engaged in the business of private security company.

4. Private security companies' employees not to wear certain uniform.— The persons employed by the private security company shall not wear uniform akin to uniform of armed forces, police or any civil armed force and shall wear the uniform as may by prescribed.

5. Prohibition of maintenance of a company without a licence.— No person shall carry on the business of a private security company or maintain or provide security guards or security arrangements for consideration unless holds a licence for the purpose issued under this Ordinance.

6. Procedure for grant and renewal of licence, etc.— (1) Whoever desires to engage in the business of maintaining a private security company shall, after he has got such company registered under the Companies Ordinance 1984(XLVII of 1984), make an application for grant of a licence to the Licensing Officer and shall, with his application, furnish such information, attach documents and pay such fee in the form and manner as may be prescribed.

(2) On receipt of an application under sub-section (1), the Licensing Officer may after such verification and enquiry as he may deem necessary and subject to such condition including furnishing of security as may be prescribed, grant or refuse to grant the licence.

(3) A licence issued under sub-section (2) shall be—

(i) valid for such period as may be prescribed; and

(ii) renewable on an application made in the form and on payment of such fee as may be prescribed.

(4) A licence shall not granted if

(a) satisfactory evidence has not been produced of the good moral character of the officer of the company holding managerial or executive positions or any of its officers holding a managerial or an executive positions has been convicted of an offence involving fraud or moral turpitude;

(b) it is not in the public interest to do so;

(c) security-clearance is not provided as may be prescribed; or

(d) the private security company is not registered under the company Ordinance, 1984(XLVII of 1984);

Provided that the reasons for refusal to grant a licence shall be recorded in writing and shall be communicated to the applicant.

(5) The Licensing Officer may, at any time, under the directions of the Federal Government, vary or revoke any of the conditions of a licence or impose any additional conditions thereto.

(6) The Licensing Officer shall, before taking any action under sub-section (5), notify to the licensee his intention of the proposed action and provide him an opportunity to show cause against such action.

7. Appeal.— Any person aggrieved by any order made by the Licensing Officer under section 6 may, within thirty days, appeal against such order to the Secretary, Ministry of Interior, Government of Pakistan, whose decision shall be final

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8. Exhibition of licence.— Every licensee shall exhibit his licence or a certified copy thereof in a conspicuous place at his principal place of business and at every branch where the licensee carries on the business of private security company.

9. Penalties.— Any person who—

(a) carries on the business of private security company without a licence;

(b) fails to comply with the conditions of the licence;

(c) fails to exhibit the licence or certified copy thereof at a conspicuous place in the office or place of business of the private security company;

(d) not being the holder of a licence keeps, uses or exhibits any sign, writing, painting or other mark implying that he holds a licence to carry on the business of a private security company;

(e) being a licensee, or an applicant for grant of licence, knowingly makes a false or incorrect statement or omits to furnish any particular which he is required to furnish; and

(f) being a licensee, violates the relevant provisions of the Companies Ordinance,1984(XLVII of 1984).

Shall be punishable with imprisonment for a term which may extend to three years or with fine which may extend to two hundred thousand rupees, or with both, and in case of default in payment of fine, the offender shall be liable to imprisonment which may extend to one year.

10. Revocation of licence.— (1) The Licensing Officer may, by an order in writing, revoke a licence—

(a) if he is satisfied that the licensee

(i) has ceased to carry on the business for which he has obtained the licence or has applied for liquidation, winding up of the company or the company has been dissolved;

(ii) has obtained the licence by providing false information in contravention of the provision of this Ordinance;

(iii) has been convicted of any offence involving moral turpitude or, any of the officer of the licensee holding a managerial or executive position, partner, employee or security guard has been convicted of any offence involving fraud or moral turpitude;

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(iv) is contravening, or has contravened, any of the provisions of this Ordinance or the rules made thereunder; or

(b) if is found that the security guards employed by him do not posses the prescribed qualification or training;

(c) if the company fails to provide services to tis clients as per agreement signed by it or as per the prescribed procedure; and

(d) if it is considered necessary to do so in the public interest.

(2) The Licensing Officer shall, before revoking any licence under sub-section (1), give the licensee a notice to show cause in writing specifying a date, not less than thirty days from the date of the notice, on which the revocation shall take effect unless the licensee satisfies the Licensing Officer that the licence was not liable to be revoked.

(3) When the Licensing Officer revokes a licence under sub-section (1), he shall forthwith inform the licensee by notice in writing of such revocation specifying date thereof and the Registrar of Companies concerned.

(4) The person whose licence has been revoked may, within thirty days of the receipt of the notice referred to in sub-section (3), prefer appeal in writing against the revocation to the Secretary Ministry of Interior whose decision thereon shall be final.

11. Effect of revocation of licence, etc.— (1) Where an order of revocation becomes effective under section 10, the licensee shall cease to carry on the business of a private security company.

(2) Notwithstanding the revocation of licence, the enforcement of right or claim of any against the licensee or by the licensee of any right or claim against person arising out of, or concerning, any matter or thing done prior to the revocation of the licence shall not be affected.

12.Employment of staff by the licensee.— The licensee may, in the conduct of his business, employ as many persons as he may consider necessary to be security guards and members of staff and shall at all times during such employment be responsible for the good conduct of each and every person employed by him.

(2) The licensee shall not employ as a security guard any person who—

(a) has been convicted of any offence involving moral turpitude or dismissed from Government service on charges of misconduct; and

(b) is, in the opinion of the Licensing Officer, not a fit and proper person to be employed as security guard.

(3) Notwithstanding anything contained in sub-section (1), no person shall be employed by a licence as a security guard until he has submitted to the Licensing Officer a statement containing complete particular and other information of such person in the prescribed form and the Licensing Officer has conveyed his no objection in writing to the recruitment of such security guard by the licensee.

(4) Every licensee shall maintain a list of all the persons employed by him with their full particular and antecedents at the place of his business.

13. Possession or arms and ammunition by the licensee.— (1) A licensee may possess and keep arms, ammunition and other equipments which may be necessary for performance of the functions of the private security company in accordance with the law and rules applicable for possessing and keeping of arms and ammunition and shall use and retain such arms and ammunition and equipments in such manner as may be prescribed.

(2) A licence to retain any arms, ammunition and other equipments may be issued by the Islamabad Capital Administration on the recommendation of the Licensing Officer

14. Identification papers.— (1) Every security guard shall at all times carry proper identification papers issued by the licensee in such form and containing such particulars as may be prescribed and produce such papers for inspection when so required by the Licensing Officer or any police officer duly authorized in this behalf and shall surrender the identification papers to the licensee when he ceased to be such security guard with the licensee.

(2) Any person, other than security guard, or who has ceased to be a security guard, carrying identification papers of a security guard shall, in addition to any other punishment to which he may be liable under any other law for impersonation, be punishable with imprisonment for a term which may extend to one month and fine which may extend to thirty thousand rupees.

15. Power to inspect and search.— (1) Where the Licensing Officer is satisfied, upon receipt of any information or after such enquiry as he may think necessary, that there is sufficient reason to believe that any premises is used for carrying on business of a private security company by a person who is not the holder of a licence, he may, be warrant or writing under his hand, authorize any person named therein, or any police officer not below the rank of an Inspector, with such assistance and by such force as is necessary to enter for searching the premises and all persons found therein, to seize all documents and things reasonably supposed to have been used or intended to be used in connection with the business of a private security company which are found in such premises or on such persons.

(2) The powers of inspection and search of Licensing Officer specified in sub-section (1) and sub-section (1) of section 14 may also be exercised by the District Magistrate or the Superintendent of Police, Islamabad Capital Territory, Islamabad, either by himself in person or through a Police Officer authorized by him, in writing:

Provided that no female shall be searched except by a female Police Officer.

(3) The District Magistrate or Superintendent of Police, Islamabad Capital Territory, as the case may be, shall, without delay, inform, the Licensing Officer of the result of the inspection and search carried out under this Ordinance.

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(4) For the purposes of any enquiry, the Licensing Officer or any person authorized by him not below an officer of BPS-16 may, for furtherance or such enquiry—

(a) enter, inspect and examine by day or by night the place of business of every licensee; and

(b) require the production of records, account and documents kept b a licensee and to inspect, examine and obtain copies thereof.

(5) Any person who—

(a) refuses the Licensing Officer or any person authorized by him to enter or search any place;

(b) assaults, obstructs, hinders or delays him, or the person authorized by him, entry in execution of his duty under this Ordinance; or

(c) fails to comply any lawful demand of the Licensing Officer or the authorized person in execution of his duty under this Ordinance; or

(d) refuses or neglects to give any information which may reasonably be required of him and which has in his power to give,

Shall be punished with imprisonment for a term which may extend to one year, or fine which may extend two hundred thousand rupees, or with both.

16. Liability of directors officers, etc.— Where an offence under this Ordinance has been committed by the Company or any person who at the time of the commission of the offence was a director, secretary, manager, partner or an officer of the company or who was purporting to act in any such capacity, shall, unless he proves that the offence was committed without his consent or knowledge and that on learning he exercised due diligence to prevent the commission of the offence, be deemed to have abetted such offence.

17. Cognizance of offences.—Notwithstanding anything in the Code of Criminal Procedure, 1898(Act V of 1898)—

(a) an offence punishable under this Ordinance shall be triable by a Magistrate of the first class; and

(b) it shall be lawful for any Magistrate of the first class to pass any sentence authorised by this Ordinance.

18. Power to make rules.— (1) The Competent Authority may, with the approval of the Federal Government, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

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(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following, namely :—

(a) the information and documents to be furnished by an applicant for a licence;

(b) the taking and recording of photographs and fingerprints of the persons applying for licence and of every person employed by a licensee;

(c) the form of a licence and the identification papers to be issued to the security guards;

(d) the uniform, badge or emblem to be worm by the employees of licensee;

(e) relating the use of any arms, ammunition and equipment by a licensee; and his employees;

(f) regulating the activities of a licensee and the manner in which the business of a licensee shall be conducted;

(g) training for security guards; and

(h) matters incidental to the above.

19. Ordinance not to derogate from other laws.– The provisions of this Ordinance shall be in addition to, and not derogation of, any other law for the time being in force.

20. Licensees or their employees not exercise powers exercisable by a certain Government functionaries.– Nothing in this Ordinance shall be construed as conferring on a licensee or his employees any of the powers which by any law are conferred on or exercisable by a police officer or officers of customs, immigration, prisons, or any other public officer.

21. Private security company not to be private military organization.— The private security company shall not be construed as private military organization for the purposes of Private Military Organization (Abolition and Prohibition) Act, 1974(IV of 1974).

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THE PROTECTION OF PORTS (SPECIAL MEASURES) ACT, 1948

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THE PROTECTION OF PORTS (SPECIAL MEASURES) ACT, 1948

ACT NO. XVII OF 1948

[11th June, 1948]

An Act to provide for special measures to ensure the protection of ports.

WHEREAS it is necessary to provide for special measures to ensure the protection of ports ;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Protection of Ports (Special Measures) Act, 1948.

[1][(2) It may, at any time by notification in the official Gazette be extended by the Federal Government to any port in Pakistan.]

(3) It shall come into force at once.

2. Interpretation. In this Act, unless there is anything repugnant in the subject or context,—

(a) "port" means "major port" as defined in subsection (8) of section 3 of the Indian Ports Act, 1908 (XV of 1908) ;

(b) "protected area" means an area declared to be a protected area under the next succeeding section.

3. Protected area.—(1) If the [1][Federal Government] considers it necessary or expedient to regulate the entry of persons into a port, it may, by notified order, declare the port to be a protected area, and thereupon, for so long as the order is in force, such area shall be a protected area for the purposes of this Act.

(2) A notification under subsection (1) shall define the limits of the area to which it refers:

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Provided that the [1][Federal Government] may alter such limits from time to time by a notification issued in this behalf.

(3) Limits defined under subsection (2) may include any piers, jetties, landing places, wharves, quays, docks and other works made on behalf of the public for convenience of traffic, for safety of vessels, or for the improvement, maintenance or good government of the port and its approaches, whether within or without high watermark, and any portion of the shore or bank within any limits considered necessary by Government.

4. Rules for regulation of entry, etc.—(1) The [1][Federal Government] may, by notification in the official Gazette, make Rules for controlling or regulating the admission of persons to, and the conduct of persons in, and in the vicinity of, a protected area.

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[1]Subs. by Federal Adaptation Laws Order 1975 (P. O. No. IV of 1975), Art. 2 and Sch.

(2) In particular, and without prejudice to the generality of the foregoing power, the [1][Federal Government] may make Rules for any or all of the following purposes, namely:—

(a) for restricting the entry of persons into the protected area;

(b) for removing persons from the protected area;

(c) for dealing with persons loitering in suspicious circumstances in the vicinity of the protected area.

5. Delegation. Any order passed in pursuance of Rules made under section 4 may authorise an officer or officers specified in the order to issue directions for carrying out the purposes of this Act.

6. Penalties. Whoever contravenes any Rule made under this Act or an order passed in pursuance thereof shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

7. Procedure. No prosecution for any offence punishable under this Act shall be instituted except on a report in writing made by an officer authorised by the [1][Federal Government] in this behalf.

8. Bar of legal proceedings. No suit, prosecution or legal proceeding shall lie against any person for anything done or in good faith intended to be done under this Act.

9. Saving of other Laws. The provisions of this Act shall be in addition to and not in derogation of any other law for the time being in force regulating the admission of persons to, and the conduct of persons in, and in the vicinity of, a port.

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RGN Date: 05-07-2024

[1]Subs. by Federal Adaptation Laws Order 1975 (P. O. No. IV of 1975), Art. 2 and Table.

THE PROVINCIAL INDUSTRIAL DEVELOPMENT CORPORATION (WEST PAKISTAN) ORDINANCE, 1962

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THE PROVINCIAL INDUSTRIAL DEVELOPMENT CORPORATION (WEST PAKISTAN) ORDINANCE, 1962

[1]ORDINANCE NO. XXXVIII OF 1962

[4th *June*, 1962]

An Ordinance to establish an Industrial Development Corporation. [2]* * *

WHEREAS it is expedient to provide for the establishment of an Industrial Development Corporation for the purpose of promoting the economic and industrial development [2]* * *and for matters ancillary thereto;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:-

1. Short title, extent and commencement.—(1) This Ordinance may be called the [3][Pakistan Industrial Development Corporation Ordinance, 1962].

(2) It extends to the whole of [4][Pakistan].

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,-

(a) "Board" means the Board of Directors of the Corporation;

[5]* * * * * * *

(b) "Chairman" means the Chairman of the Corporation;

(c) "Corporation" means the [6][Pakistan Industrial Development Corporation] established under section 3;

[7]* * * * * * *

(d) "Director" means the Director of the Corporation;

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[1]This Ordinance has been amended in its application to the Province of West Pakistan by West Pakistan Ordinances and Act,
(i) W.P. Ord. No. 3 of 1963, s. 2 (*with effect from the 26th March, 1963*)
(ii) W.P. Ord. No. 14 of 1964, s. 2 (*with effect from the 8th September, 1964*), and
(iii) W.P. Ord. No. 29 of 1965 (*with effect from the 16th October, 1965*)
(iv) W.P. Act-No. 10 of 1967, s. 2 (*with effect from the 21st July, 1967*)

[2]The words "for West Pakistan" and "of West Pakistan" were omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3. and Sch., II.

[3]Subs. *ibid.*, for "Provincial Industrial Development Corporation (West Pakistan) Ordinance, 1962".

[4]Subs. by F.A.O., 1975, Art. 2 and Sch., for "West Pakistan".

[5]Clauses (aa) omitted by the Provincial Industrial Development Corporation (West Pakistan (Amdt.) Ordinance, 1965 (W.P. Ord. no. 29 of 1965), s. 2, which was previously amended by W.P. Ord. No. 3 of 1963, s. 2.)

[6]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981) s. 3 and sch. II for "Industrial Development Corporation of West Pakistan".

[7]Clause (cc) Omitted by the Provincial Industrial Development Corporation (West Pakistan) (Admt.) Ordinance 1965, (W.P. Ord. No. 29 of 1965) s. 2, which was previously amended by W.P. Ord. No. 3 of 1963, s. 2.)

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(e) "Government" means the [1][Federal Government];

(f) "Minerals" means all minerals excluding minerals necessary for the generation of nuclear energy and mineral oil and natural gas;

(g) "prescribed" means prescribed by rules or regulations;

(h) "regulations" means regulations made under this Ordinance;

(i) "rules" means rules made under this Ordinance [;][2]

[3]* * * * * * *

3. Establishment of the Corporation and its offices.— (1) As soon as may be after the commencement of this Ordinance, the Government shall establish a corporation to be called the [4][Pakistan] Industrial Development Corporation.

(2) The Corporation shall be a body corporate by the name of the [5][Pakistan Industrial Development Corporation] having perpetual succession and a common seal with power subject to the provisions of this Ordinance, to acquire and hold property, both movable and immovable, and shall by the said name sue and be sued.

(3) The Head Office of the Corporation shall be at Karachi but the Government may, by notification in the official Gazette, transfer it to such other place as may be specified in such notification.

(4) The Corporation shall establish Regional Offices at such places as the Government may direct.

4. Share Capital.— (1) The authorized share capital of the Corporation shall, in the first instance, be one crore of rupees divided into one hundred fully paid up shares of one lakh of rupees each, of which forty five shares will be issued in the first instance and the remaining shares may be issued from time to time by the Corporation with the previous sanction of the Government.

(2) Nothing in sub-section (1) shall prevent the Corporation from increasing its capital with the previous sanction of the Government.

5. Management.—(1) The [6][determination of questions of policy and the general direction of the affairs of the Corporation shall vest in the Board and the Board] may exercise all powers and do all acts and things which may be exercised or done by the Corporation in accordance with the provisions of this Ordinance.

(2) The Board in discharging its functions shall act on commercial considerations and shall be guided by such directions as the Government may give it from time to time.

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[1]Subs. by F.A.O., 1975, Art. 2 and sch., for "Provincial Government".
[2]Subs. by the Provincial Industrial Development Corporation (W.P. (Amdt.). Ordinance 1963 (W.P. ord. No. 3 of 1963) s. 2 for full-stop."
[3]Cls. (j) (k) (l) and (m) were added by W.P. Ord. No. 3 of 1963 s. 2, subsequently cls. (J) (K) and (M) have been omitted by the Provincial Industrial Development Corporation (W.P. (Amdt.) Ordinance, 1965 (29 of 1965) s. 2, to read as above.)
[4]The word (West omitted by Ord. 27 of 1981, s. 3, and Sch. II.)
[5]Subs. *ibid.*, for Industrial Development Corporation West Pakistan".
[6]Subs. by the Provisional Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1971 (26 of 1971), s. 2, for certain words.

(3) If the Board fails to obey any direction as aforesaid, the Government may remove the Directors including the Chairman, and, notwithstanding anything in section 6, appoint persons in their place to be Directors temporarily until fresh Directors are appointed under that section.

6. Appointment and term of office of Directors.—(1) The Board shall consist of such number of Directors, not less than three and not more than five, as may be appointed by the Government.

(2) Each Director shall—

(a) be a whole-time officer of the Corporation;

[1][*(b)* Subject to the provisions of sub-section (3), perform under the general supervision and control of the Chairman such duties as may be assigned to him by the Chairman;]

(c) divest himself of any directorship or other interest held by him in any other Corporation, company or concern other than public companies sponsored by the Corporation under sub-section (5) of section 15 before assuming office as Director;

(d) subject to the provisions of section 9, hold office for a term of three years and may be appointed thereafter for a further term or terms of such duration as the Government may, in appointing him thereto, determine; and

(e) receive such salary and allowances as the Government may determine:

Provided that the Government may, in exceptional circumstances where it considers it necessary to do so in the public interest, exempt, by a special order, any person, who has been appointed or is about to be appointed a Director, from the application of clause *(a)* and *(c)*.

(3) One of the Directors appointed under sub-section (1) shall be the Financial Director, who shall exercise such powers and discharge such duties as may be prescribed.

7. Chairman.—(1) The Government shall appoint one of the Directors to be the Chairman of the Board, who shall be the Chief Executive of the Corporation [2][and shall, subject to the provisions of sub-section (1) of section 5, exercise such powers as are exercisable by the Corporation under this Ordinance].

(2) Subject to his continuing to hold office as a Director, the Chairman shall hold office as Chairman for a term of three years and, subject as aforesaid, shall remain in office as Chairman thereafter until his successor in that office is appointed and may, subject as aforesaid, be appointed to hold that office for a further term or terms as the Government may, in appointing him thereto, determine.

8. Notwithstanding anything contained in sections 6 and 7, when the Board is first constituted, the Chairman and Directors, shall hold office for such term, not exceeding three years, as may be determined by the Government:

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[1]Subs. *ibid.* s. 3, for cl. (b.)
[2]Added by the Provisional Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1971 (26 of 1971), s. 4.)

Provided that such Chairman and Directors may be appointed to hold that office for a further term or terms as the Government may, in appointing him thereto, determine.

9. Disqualification of Directors.—(1) No person shall be or shall continue to be a Director who—

(a) is or at any time has been convicted of an offence involving moral turpitude; or

(b) is or at any time has been adjudicated insolvent; or

(c) is found a lunatic or becomes of unsound mind; or

(d) is or at any time has been disqualified for employment in, or dismissed from the service of Pakistan; or

(e) is a minor

(2) The Government may, by order in writing remove the Chairman or a Director if he—

(a) refuses or fails to discharge or becomes, in the opinion of the Government incapable of discharging his responsibilities under this Ordinance; or

(b) has, in the opinion of the Government, abused his position as Chairman or Director; or

(c) has knowingly acquired or continued to hold, without the permission in writing of the Government, directly or indirectly, or through a partner, any share or interest in any contract or employment with, by or on behalf of the Corporation, or in any property which, in his knowledge, is likely to benefit or has benefited as a result of the operations of the Corporation; or

(d) has absented himself from three consecutive meetings of the Board without the leave of the Government in the case of the Chairman, or of the Chairman in the case of a Director.

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(3) Notwithstanding anything contained in this Ordinance, the Chairman or a Director may, at any time before the expiry of his term, upon three months' notice, resign his office, or upon similar notice, be removed from office by the Government without assigning any reason.

10. Appointment of officers.—(1) The Corporation may, subject to such general or special orders as the Government may give it from time to time and subject to such rules as may be made in this behalf, appoint such officers, advisers and employees as it considers necessary for the efficient performance of its functions on such terms and conditions as it may see fit [1][and each such officer, adviser and employee shall, subject to the supervision and control of the Chairman, perform such functions as may be assigned to him by the Chairman].

(2) Notwithstanding anything contained, in sub-section (1), the Corporation shall, subject to the provisions of sub-sections (3) and (4), appoint such officers and advisers and employees of the [2][Federal Corporation] as may be transferred to it under the Industrial Corporations (Dissolution) Ordinance, 1962.

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[1]Added by the Provisional Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1971 (26 of 1971), s. 5.
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Corporation".)

(3) Subject to the provisions of the Industrial Corporations (Dissolution) Ordinance, 1962, and any direction received thereunder, the terms and conditions of employment of such officers, advisers and employees, as are referred to in sub-section (2), shall be such as may be determined by the Government;

Provided that the Government may direct that until the terms and conditions have been so determined by it or for such period as it may specify, any such person shall be employed by the Corporation on the same terms and conditions on which he was employed by the [1][Federal Corporation] concerned.

(4) Notwithstanding anything contained in the foregoing sub-sections the Government may direct the Corporation to dispense with the services of any such officers, advisers and employees as are referred to in sub-sections (2) and (3) and in that event the Corporation shall dispense with the services of such persons in the same manner and subject to the same conditions under which their services could be dispensed with by the [1][Federal Corporation] concerned.

Explanation.— In this section [1][Federal Corporation] has the same meaning as in the Industrial Corporations (Dissolution) Ordinance, 1962.

11. Declaration of fidelity and secrecy. Every Director, adviser, officer or other employee of the Corporation, before entering upon his duties, shall make such declaration of fidelity and secrecy as may be provided by regulations.

12. Meetings of the Board.—(1) The meetings of the Board shall be held at such times and at such places as may be prescribed by regulations:

Provided that at least one meeting shall be held in a month:

Provided further that until regulations are made in this behalf, such meetings shall be held at such times and at such places as may be determined by the Chairman.

(2) The quorum necessary for transacting business at a meeting of the Board shall be three, if the Board consists of five Directors and two if the number is less.

(3) Each Director, including the Chairman, shall have one vote but in the event of an equality of votes, the Chairman shall have a second or casting vote.

(4) The meetings of the Board shall be presided over by the Chairman, and, in his absence, by a Director authorized by him in this behalf, and in default of such authorization by a person elected for the purpose by the Directors present from among themselves.

(5) No act or proceeding of the Board shall be invalid merely on the ground of the existence of any vacancy in, or any defect in the constitution of, the Board.

(6) The minutes of every meeting, stating among other things, the names of the Directors present, shall be drawn up and recorded in a book to be kept for the purpose, and shall be signed by the person presiding at the meeting, and such book shall at all reasonable times and without charge be open to inspection by any Director.

13. Forwarding of statements, etc., to the Government.—(1) If the Government so directs in any case, the Chairman shall forward to it copies of all papers which were laid before the Board for consideration at a meeting.

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Corporation".

(2) The Government may require the Chairman to furnish it with—

(a) any return, statement, estimate, statistics or other information regarding any matter under the control of the Corporation; or

(b) a report on any such matter; or

(c) a copy of any document in the charge of the Chairman

(3) The Chairman shall comply with any such requisition under sub-section (2) without undue delay.

[1]**[13A. Power of Board to associate other persons.—(**1) The Board may associate with itself in such manner and for such period as it may deem fit any person whose assistance or advice it may desire in carrying out any of the provisions of this Ordinance.

(2) A person associated under sub-section (1) for any purpose shall have a right to take part in the discussion of the Board relating to that purpose, but shall not have a right to vote and shall not be deemed to be a Director for any other purpose.

(3) The Board may constitute such technical and advisory committees as may be necessary for the carrying out of the purposes of this Ordinance.]

[2]**[14. Delegation of Powers.** The Chairman, may, by general or special order in writing, direct that any of his powers under this Ordinance shall, in such circumstances and subject to such conditions, if any, as may be specified in the order, be exercisable also by any Director, officer or adviser of the Corporation so specified.]

15. Business which the Corporation shall transact.—(1) The Corporation shall take over and be responsible for such business, projects, undertakings and properties, powers, rights, duties and liabilities as may be transferred to it under the Industrial Corporations (Dissolution) Ordinance, 1962.

(2) The Corporation shall be responsible for-

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[3][*(a)* planning, promoting, organizing and implementing programmes for the establishment of industries listed in the Schedule and the exploitation of fisheries;]

(b) the exploration, exploitation and development of minerals and mines thereof; and

(c) the exploration, exploitation and development of any material which the [4][Federal Government] may entrust to it subject to such conditions as the [4][Federal Government] may specify.

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[1]Added by the Provisional Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1963 (W.P. Ord. 3 of 1963), s. 3.
[2]Subs. by the Provincial (Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1971 (26 of 1971), s. 6, for section 14.
[3]Subs. by the Provincial Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1965 (W.P. Ord. No. 29 of 1965), s. 3, for cl. (a), which was previously amended by W.P. Ord. No. 3 of 1963, s. 4, for the original cl. (a).
[4]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

Explanation.— In clause *(a)* "planning" includes studies, surveys, experiments and scientific and technical investigation.

(3) Notwithstanding anything contained in sub-sections (1) and (2), the Corporation shall perform such other duties and functions as the Government may, from time to time, assign to the Corporation.

(4) The Corporation shall, in order to carry out any functions under sub-section (1) or clause *(a)* or clause (b) of subsection (2) or sub-section (3),—

(a) submit, for the approval of the Government, proposals or schemes; and

(b) proceed to give effect to any proposal or scheme as approved by the Government.

(5) The Corporation may, and, where the Government so directs, shall, for the purpose of giving effect to any proposal or scheme approved by Government, sponsor limited company independent of each other or subsidiary companies incorporated under the Companies Act, 1913:

Provided that before sponsoring any such company, the Corporation shall obtain the approval of the Government to the company's capital structure.

(6) The Corporation shall, unless otherwise directed by the Government, act as Managing Agents for the aforesaid companies, and may, with the prior concurrence of the Government, relinquish the managing agency in favour of any person.

(7) Nothing contained in section 87A of the Companies Act, 1913 (VII of 1913), shall apply to the Corporation.

(8) The Corporation shall be represented on the Board of Directors of the aforesaid companies.

(9) The Corporation may issue the capital required for the aforesaid companies for public subscription and, if any portion thereof remains unsubscribed after the expiry of the closing date for public subscription, subscribe on behalf of the Government that portion.[:][1]

[2][Provided that the Corporation shall not subscribe to an extent which in the aggregate exceeds such limit as may be notified by Government form time to time].

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(10) The Corporation may underwrite the whole or any portion of the capital issued under sub-section (9).

(11) The Corporation shall, when it considers the time opportune, sell or transfer the shares subscribed for by it under sub-section (9) :

Provided that no such sale or transfer shall take place at a rate below the market quotation or below the par value of such shares without the previous sanction of the Government.

[3]* * * * * * *

[4][**15A**. [*Limit of accommodation.] Omitted by the Provincial Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance 1965 (XXIX of 1965), s. 4.*

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[1]Subs. by Provincial Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1965 (29 of 1965), s. 3, for full-stop.
[2]Proviso added *ibid.*
[3]Sub-section 12 omitted ibid., which was previously amended by W.P. Ord. No. 3 of 1963, s. 4.
[4]Section 15A to 15I ins. by the Provincial Industrial Development Corporation (W.P. Amdt.) Ordinance, 1963 (3 of 1963), s. 5.

15B. Security for loans or subscription. No [1]* * subscription shall be made unless it is adequately secured by pledge, mortgage, hypothecation or assignment of such property, movable or immovable, and of such value in proportion to the [1]* * subscription as may be notified by Government from time to time:

[2]* * * * * * *

15C. [*Limit of loans or guarantees.] Omitted by the Provincial Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1965 (XXIX of 1965), s. 6.*

15D. [Power to impose conditions.] Omitted by the Provincial Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1965 (XXIX of 1965), s. 6.

15E. Loans in foreign currency.—(1) The Corporation may, with the previous consent of the [3][Government] and on such terms and conditions as may be approved by the Government, borrow in foreign currency from the International Bank for Re-construction and Development or other moneys required for the development of industries referred in section 15 [4]* * *.

(2) All loans obtained in foreign currency shall be repayable either-

(a) in the currency in which they are obtained ; or

(b) in any other currency which is agreed upon by the loan-giving agency and the [3][Government] ; or

(c) in Pakistan currency at the rate of exchange prevailing on the date of re-payment.

15F. [*Power to demand immediate Payment of the entire sum.] Omitted by the Provincial Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1965 (XXIX of 1965), s. 8.*

15G. [*Certification of sums re-coverable.] Omitted by the Provincial Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1965 (XXIX of 1965), s. 8.*

15H. [*Recovery of dues form borrower or surety.] Omitted by the Provincial Industrial Development Corporation (West Pakistan) (Amdt.) Ordinance, 1965 (XXIX of 1965, s. 8.)*

15I. Act XVIII of 1891 to apply to the books of the Corporation. The Corporation shall be deemed to be a bank for the purpose of the "Bankers Books Evidence Act, 1891,]

16. Annual Budget Statement. The Corporation shall by such date in each year as may be prescribed, by rules, submit to the Government for approval a statement, to be called the Annual Budget Statement, in the prescribed form for every financial year showing the estimated receipts and expenditure and sums which are likely to be required from the Government during that financial year.

17. Custody and investment of Corporation Funds.—(1) All moneys at the credit of the Corporation shall be kept—

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[1]The words "loan or" omitted by Ord. 29 of 1965, s. 5.
[2]Proviso omitted *ibid.*
[3]Subs. by F.A.O., 1975, Art. 2 and Sch., for "Government and the Central Government".
[4]Certain words omitted by the Provincial Industrial Corporation (West Pakistan; (Amdt.) Ordinance, 1965 (29 of 1960), s. 7.

(a) in places where there is a Government treasury, or sub-treasury or a bank to which the Government treasury business has been made over, in such treasury, sub-treasury or bank; and

(b) in other places, with such banks as may be approved by the Government.

(2) Nothing in sub-section (1) shall be deemed to preclude the Corporation from investing any such moneys which are not required for immediate expenditure in any of the securities described in section 20 of the Trusts Act, 1882 (II of 1882), or placing them in fixed deposit with a bank approved by Government, or in such other manner as may be approved by the Government.

18. Maintenance of accounts. The Corporation shall maintain proper accounts and other relevant records and prepare annual statement of accounts, including the profit and loss account and balance-sheet, in accordance with such general directions as may be issued, and in such form as may be specified, by Government in consultation with [1]* * * the Auditor General.

19. Audit.— (1) The accounts of the Corporation shall be audited by auditors who shall be chartered accountants within the meaning of the Chartered Accountants Ordinance, 1961, and appointed with the approval of the Government by the Corporation on such remuneration as it may think fit, and such remuneration shall be paid by the Corporation.

(2) Notwithstanding the audit provided for in sub-section (1), the Auditor General shall audit or cause to be audited the accounts of the Corporation.

(3) The Auditor General shall also hold, or cause to be held, a test audit of the undertakings wholly owned by the Corporation and of the Companies of which the Corporation is the Managing Agents, and in the event of a text audit disclosing irregularities, the Auditor General may carry out, or cause to be carried out, such further audit as he considers necessary.

(4) The Corporation and every such undertaking and company as is referred to in sub-section (3) shall produce the accounts books and connected documents, at the place where they are normally expected to be available, and furnish such explanations and information as the Auditor General or any officer authorized by him in this behalf may require at the time of the audit.

(5) The Auditor General shall, in holding the audit, keep in view the provisions of sub-section (2) of section 5 and state in his report how far in his opinion these provisions have been complied with.

[2][(6) A statement of accounts of the Corporation and the report of the Audior-General on the said accounts, together with the report of the Auditor-General on account of the undertakings and the companies referred to in sub-section (3), shall be furnished to Government by the Corporation after the end of every financial year.]

20. Annual Report.— [3][(1)] The Corporation shall, as soon as possible, after the end of every financial year, submit an annual report to the Government on the conduct of its affairs for that year, and on its proposals for the next ensuing financial year.

[4][(2) The annual report referred to in sub-section (1) shall, as soon as possible, be laid by Government before the [5][National Assembly]

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[1]The Certain words omitted by F.A.O., 1975, Art. 2 and Sch.
[2]Sub-section (6) added by the Provincial Industrial Development Corporation (West Pakistan) (Amdt.) Act, 1967 (10 of 1967), s. 2.
[3]Re-numbered as sub-section (1) by the Provincial Development Corporation (West Pakistan) (Amdt.) Act-1967 (10 of 1967), s. 3.
[4]Sub-section (2) added ibid.
[5]Subs. by F.A.O., 1975, Art. 2 and Sch., for "Provincial Assembly of West Pakistan". and "Provincial Assembly,

21. Indemnity of Directors.—(1) Every Director shall be indemnified by the Corporation against all losses and expenses incurred by him in the discharge of his duties except such as are caused by his own wilful act or default.

(2) A Director shall not be personally responsible for the acts of any other Director or of any officer, adviser or employee of the Corporation for any loss or expense resulting to the Corporation by reason of the insufficiency or deficiency in value of or title to any property or security acquired or taken on behalf of the Corporation, or by the wrongful act of any person under a liability to the Corporation, or by anything done by him in good faith in the execution of the duties of his office.

[1][**21A**.—(1) The annual statement of accounts referred to in section 18, together with the audit report and test audit report of the Auditor-General on the accounts of the Corporation, undertakings and Companies referred to in section 19 shall be placed by Government before the [4][National Assembly] as soon as possible after they are received, and the [2][National Assembly] shall refer the same to its Committee on Public Accounts for scrutiny.

(2) The Committee on Public Accounts shall scrutinize and examine the reports referred to it under sub-section (1) in the same manner as, and shall in respect thereof perform the same functions and exercise the same powers as are required by it to be performed and exercised in respect of appropriation account of the Provincial Government and the report of the Comptroller and Auditor-General of Pakistan thereon.]

22. Public servants. The Chairman, Directors, officers adviser or employee of the Corporation shall, while acting or purporting to act in pursuance of the provisions of this Ordinance, or the rules or regulations made thereunder, be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

23. Power to make rules.— (1) The Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing powers, such rules may provide for—

(a) the relinquishment of managing agency in favour of any person;

(b) the manner of keeping accounts of the Corporation and the companies managed by it;

(c) the recruitment of officers, advisers and employees of the Corporations;

(d) the terms and conditions of service of the officers, advisers and employees of the Corporation, including the functions of the advisers;

(e) the borrowings by the Corporation;

(f) the purchase and sale of goods by the Corporations:

(g) the date by which, and the form in which, the annual budget statement shall be submitted in each year;

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[1]Subs. by F.A.O., 1975, Art. 2 and Sch., for "Provincial Assembly of West Pakistan". and "Provincial Assembly,
[2]Section 21A added by Act, 10 of 1967, s. 4.)

(h) the procedure for appropriation and re-appropriation of moneys at the credit of the Corporation;

(i) the form and manner in which and the authorities to whom returns, reports or statements shall be submitted; and

(j) such other matters relating to the administration of the affairs of the Corporation as the Government may think fit to regulate by rules.

24. Power to make regulations.—(1) The Board may, with the previous sanction of the Government, make regulations to provide for all matters, not provided for in the rules for which provision is necessary or expedient for carrying out the purposes of this Ordinance and the said rules.

(2) In particular and without prejudice to the generality of the foregoing powers, such regulations may provide for the-

(a) meetings of the Board;

(b) investment of the Corporation's funds; and

(c) sale or transfer of shares under sub-section (11) of section 15.

25. Power to amend the Schedule. The Government may, from time to time, by notification in, the official Gazette, amend the Schedule so as to include therein or exclude therefrom any industry or vary the description of any industry included therein.

26. Winding up of the Corporation. No provision of law relating to the winding up of companies and corporations shall apply to the Corporation and the Corporation shall not be wound up except by order of the Government and in such manner as it may direct.

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SCHEDULE

1. Jute.
2. Papers, Board and Newsprint.
3. Heavy Engineering including Iron and Steel but excluding Shipbuilding.
4. Shipbuilding.
5. Heavy Chemicals other than fertilizers.
6. Fertilizers.
7. Sugar.
8. Cement.
9. Textiles.
10. Chemicals, Pharmaceuticals and Dyestuffs.
11. Coal and Peat.
12. Exploitation of Marine Fisheries except fisheries outside territorial waters.
13. Industries based on forest products.
14. Cottage and Small Scale Industries.

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145274 Date: 11-11-2024

THE PUBLIC ACCOUNTANTS' DEFAULT ACT, 1850

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2. Amount and kind of security and with what sureties
3. "Public accountant" defined.
4. Prosecution of accountants and sureties
5. Enactments applied to proceedings by and against accountants
6. *[Validation of former rules.]* Rep. by the repealing Act, 1870 (XIV of 1870).

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[1][THE PUBLIC ACCOUNTANTS' DEFAULT ACT, 1850]

ACT No. XII OF 1850

[22nd March, 1850]

For avoiding loss by the default of Public Accountants

Preamble. For better avoidance of loss through the default of public accountants; It is enacted as follows:—

1. Public Accountants to give security. Every public accountant shall give security for the due discharge of the trusts of his office, and for the due account of all moneys which shall come into his possession or control, by reason of his office.

2. Amount and kind of security and with what sureties. In default of any act having special reference to the office of any public accountant, the security given shall be of such amount and kind, real or personal, or both, and with such sureties (regard being had to the nature of the office), as shall be required by any [2]rules made or to be made from time to time, by the authority by which each public accountant is appointed to his office, [3]* * * .

[4]**[3. "Public accountant" defined.** For the purposes of sections 1 and 2 of this Act, the expression "public accountant" means any person who as Official Assignee or Trustee, or as sarbarahkar, is entrusted with the receipt, custody or control of any moneys or securities for money, or the management of any lands belonging to any other person or persons; and for the purposes of sections 4 and 5 of this Act the expression shall also include any person who, by reason of any office held by him in the service of [5][Pakistan] is entrusted with the receipt, custody or control of any moneys or securities for money, or the management of any lands belonging to the [6][Government].]

4. Prosecution of accountants and sureties. The person or persons at the head of the office to which any public accountant belongs may proceed against any such public accountant and his sureties for any loss or defalcation in his accounts, as if the amount thereof were an arrear of land-revenue due to Government.

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[1]Short title given by the Short Titles Act, 1897 (14 of 1897).
This Act has been declared to be in force in all the Provinces and the Capital of the Federation, except the Scheduled Districts, by the Laws Local Extent Act, 1874 (15 of 1874), s. 3.
It has been declared by notification under s. 3(a) of the Scheduled Districts Act, 1874 (14 of 1874), to be in force in the following other Scheduled Districts, namely:—
The Districts of Thar and Parkar, and the Upper Sind Frontier—see Gazette of India, 1880, Pt. I, p. 672.
It bas been extended, by notification under s. 5 of the last-mentioned Act, to the Scheduled Districts of the Punjab (some of the Districts now form part of the N.W.F.P.), see Gazette of India, 1883, Pt. I, p. 505.
The Act has been applied to Baluchistan by the Baluchistan Laws Regulation, 1913 (II of 1913), s. 3, as amended by Regulation I of 1945.
It has been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and also applied in the Federated Areas of Baluchistan, see Gazette of India, 1937. Pt. I, p. 1499.
[2]For rules made by the Govt. of Bombay, see Sind Official Gazette, 1896, Pt. I, pp.198, 228,244,262 and 276.
[3]The words "subject to the approval of the Governor or G. in C. of the Presidency or place" rep. by A. O., 1937.
[4]Subs. *Ibid*., for the original section 3.
[5]Subs. by F. A. O., 1975, Art. 2 and Sch. for "the [State]". The words in crotchets were first subs. by A.O., 1949 and then amended by A.O., 1961, to read as above.
[6]Subs. by A. O., 1961, Art. 2, for "Crown" (with effect from the 23rd March, 1956).

[1]**5. Enactments applied to proceedings by and against accountants.** All Regulations and Acts now or hereafter to be in force for the recovery of arrears of land-revenue due to Government, and for recovery of damages by any person wrongfully proceeded against for any such arrear shall apply, with such changes in the forms of procedure as are necessary to make them applicable to the case, to the proceedings against and by such public accountant[2].

6. *[Validation of former rules.] Rep. by the Repealing Act, 1870 (XIV of 1870).*

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Date: 13-09-2024

[1]This section has been amended in its application to the Province of West Pakistan (except the Capital of the Federation) by West Pakistan Act 16 of 1957, s(3) and III Sch. (with effect from the 14th October, 1955).
[2]For the law relating to the recovery of revenue-arrears, see the Revenue Recovery Act, 1890 (1 of 1890).

THE PUBLIC DEBT ACT, 1944

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THE PUBLIC DEBT ACT, 1944

[1]ACT NO. XVIII OF 1944

[*22nd November, 1944*]

An Act to consolidate and amend the law relating to Government securities [2] * * and to the management [3]* * * of the public debt [4]* * **

WHEREAS it is expedient to consolidate and amend the law relating to Government securities [2]* * * and to the management [3]* * * of the public debt [4]* * *;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Public Debt [5]* * * Act, 1944.

[6][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date[7] as the [8][Federal Government] may, by notification in the official Gazette, appoint in this behalf.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context, —

(1) "the Bank" means [9][the State Bank of Pakistan].

[10][(1A) "Government", in relation to Government security, means the [8][Federal or Provincial Government by whom the security is created and issued;]

(2) "Government security" means—

(a) a security, created and issued, whether before or after the commencement of this Act, by [11][Government] for the purpose of raising a public loan, and having one of the following forms, namely:—

[1]For Statement of Objects and Reasons, *see* Gazette of India, Pt. V, dated the 31st July, 1943; and for Report of Select Committee, *see ibid*., 1944, Pt. V, p. 85.

The Act shall apply to Balochistan, *see* Notification No. 154-F, dated the 29th May, 1946, Gazette of India, 1946, Pt. I, p. 773.

The Act has been extended to the Leased Areas of Balochistan by the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950).

The Act and all rules, notifications, declarations and orders made under it and in force, immediately before the 28th November, 1952, have subject to certain modifications been extended to the State of Bahawalpur, *see* the Bahawalpur (Federal Laws) (Extension) Order, 1952 (G. G. O. 11 of 1952).

It has also been extended to-

(a) the Balochistan States Union, *see* the Balochistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953), as amended, and

(b) the Khairpur State, *see* the Khairpur (Federal Laws) (Extension) Order, 1953 (G: G. O. 5 of 1953), as amended.

The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.

The Act, rules, notifns. and orders made under it, have been applied to the Tribal Areas or to the parts of those areas to which they have not been already applied, *see* the Tribal Areas (Application of Acts) Regulation, 1965 of P., 1965, Ext., pp. 1016-1018.

[2]The original words "issued by the Central Govt." omitted by the Public Debt (Central Government) (Amdt.) Ordinance, 1961 (7 of 1961), s. 2.

[3]The original words "by the Reserve Bank of India" omitted *ibid*.

[4]The original words "of the Central Govt" omitted *ibid.*

[5]The original words and brackets "(Central Government)" omitted, *ibid*., s. 3.

[6]Subs by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for the original sub-section (2), as amended by A. O., 1949.

[7]The Act shall come into force from the 1st day of May, 1946, *see* Notification No. F-9(1) B/46, dated the 20th April 1946, Gazette of India, 1946, Pt. I, p. 575.

[8]Subs. by F. A.O., 1975, Art. 2 and Table.

[9]Subs. by the Pakistan (Adaption of Existing Pakistan Laws) (State Bank of Pakistan) Order, 1948 (G. G. O. 18 of 1948), for "the Reserve Bank of India ".

[10]Clause (1A) ins. by Ordinance 7 of 1961, s. 4.

[11]Subs. *ibid*., for "The Central Government".

(i) stock transferable by registration in the books of the Bank; or

(ii) a promissory note payable to order; or

(iii) a bearer bond payable to bearer; or

(iv) a form prescribed in this behalf [1][,] [2][or notified by Government from time to time;]

(b) any other security created and issued by [3][Government] in such form and for such of the purposes of this Act as may be prescribed;

(3) "prescribed" means prescribed by rules made under this Act;

(4) "promissory note" includes a treasury bill.

3. Transfer of Government securities.— (1) Subject to the provisions of section 5, a transfer of a Government security shall be made only in the manner prescribed for the making of transfers of securities of the class to which it belongs, and no transfer of a Government security [4][which, in the case of a security issued by the [5][Federal Government] is made after the thirtieth day of April, 1946, and in the case of a security issued by a Provincial Government, is made after the commencement of the Public Debt [5][Federal Government] (Amendment) Ordinance, 1961] shall be valid if—

(a) it does not purport to convey the full title to the security, or

(b) it is of such a nature as to affect the manner in which the security was expressed by the [3][Government] to be held.

(2) Nothing in this section shall affect any order made by the Bank under this Act, or any order made by a Court upon the Bank.

4. Transferor of Government securities not liable for amount thereof.— Notwithstanding anything contained in the Negotiable Instruments Act, 1881 (XXVI of 1881), a person shall not, by reason only of his having transferred a Government security, be liable to pay any money due either as Principal or as interest there under.

5. Holding of Government securities by holders of public offices.—(1) In the case of any public office to which [7][Government] may, by notification[8] in the official Gazette, declare this sub-section to apply, a Government security in the form of stock or of a promissory note may be held in the name of the office.

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[1]Sub. by the Public Debt (Amdt.) Act, 1963 (13 of 1963), s. 3, for the semi-colon (*with effect from the 2nd August, 1960*).
[2]Added *ibid*. (*with effect from the 2nd August, 1960*).
[3]Subs. by the Public Debt (Central Government) (Amdt.) Ordinance, 1961 (7 of 1961), s. 4, for the "Central Government".
[4]Subs. *ibid*., s. 5, for "made after the commencement of this Act".
[5]Subs. by F. A. O., 1975, Art. 2 and Table for "Central Government".
[6]Subs. by Ord. 7 of 1961, s. 5, "Central Government".
[7]Subs. by the Public Debt (Central Government) (Amdt.) Ordinance, 1961 (7 of 1961), s. 6, for the "Central Government".
[8]For notifin., *see* Ministry of Finance Notifin. No. D1383-B I/53, dated the Ist June, 1957, *see* Gaz., of P., 1957, Pt.I, pp. 242-245.

(2) When a Government security is so held, it shall be deemed to be transferred without any or further endorsement or transfer deed from each holder of the office to the succeeding holder of the office on and from the date on which the latter takes charge of the office.

(3) When the holder of the office transfers to a party not being his successor in office a Government security so held, the transfer shall be made by the signature of the holder of the office and the name of the office in the manner and subject to the conditions laid down in section 3.

(4) This section applies as well to an office of which there are two or more joint holders as to an office of which there is a single holder.

6. Notice of trust not receivable.—(1) No notice of any trust in respect of any Government security shall be receivable by [1][Government] nor shall [1][Government] be bound by any such notice even though expressly given, nor shall [1][Government] be regarded as a trustee in respect of any Government security.

(2) Without prejudice to the provisions of sub-section (1), the Bank may, as an act of grace and without any liability to the Bank or to [1][Government] record in its books such directions by the holder of stock for the payment of interest on, or of the maturity value of, or the transfer of, or such other matters relating to, the stock as the Bank thinks fit.

7. Persons whose title to a Government security of a deceased sole holder may be recognised by the Bank.—Subject to the provisions of section 9 the executors or administrators of a deceased sole holder of a Government security and the holder of a succession certificate issued under Part X of the Succession Act, 1925 (XXXIX of 1925), shall be the only persons who may be recognised by the Bank as having any title to the Government security:

Provided that nothing in this section shall bar the recognition by the Bank of the manager or the sole surviving male member of a Hindu undivided family governed by the Mitakshara Law as having a title to a Government security, when the security, appears to the Bank to stand in the name of a deceased member of the family and an application is made by such manager or sole surviving member for recognition of his title and is supported by a certificate signed by such authority and after such inquiry as may be prescribed to the effect that the deceased belonged to a Hindu undivided family governed by the Mitakshara Law, that the Government security formed part of the joint property of the family, and that the applicant is the managing or sole surviving male member of the family.

[2][* * * * * * *]

8. Right of survivors of joint holders of several payees.—Notwithstanding anything contained in section 45 of the Contract Act, 1872 (IX of 1872),—

(a) when a Government security is held by two or more persons jointly and either or any of them dies, the title to the security shall vest in the survivor or survivors of those persons, and

(b) when a Government security is payable to two or more persons severally and either or any of them dies, the security shall be payable to the survivor or survivors of those persons or to the representative of the deceased or to any of them:

[1]Subs. by the Public Debt (Central Government) (Amdt.) Ordinance, 1961 (7 of 1961), s. 6, for the "Central Government".
[2]*Explanation* rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and 2nd Sch.

Provided that nothing contained in this section shall affect any claim which any representative of a deceased person may have against the survivor or survivors under or in respect of any security to which this section applies.

Explanation.— For the purposes of this section a body in-corporate under the Companies Act, 1913 (VII of 1913), or the Co-operative Societies Act, 1912 (II of 1912), or any other enactment for the time being in of force whether within or without [1][Pakistan], relating to the incorporation of associations of individuals, shall be deemed to die when it is dissolved.

9. Summary procedure on death of holder of Government securities [2][* * *].— Notwithstanding anything contained in section 7, if within six months of the death of a person who was the holder of a Government security or securities the face value of which does not in the aggregate exceed five thousand rupees [3][or, in the case of Post Office Savings Certificates, twenty-five thousand rupees], probate of his will or letters of administration of his estate or a succession certificate issued under Part X of the Succession Act, X 1925 (XXXIX of 1925), is not produced to the Bank, or proof to the satisfaction of the Bank that proceedings have been instituted to obtain one of these is not furnished, the Bank may determine who is the person entitled to the security or securities, or to administer the estate of the deceased and may make an order vesting the security or securities in the person so determined.

10. Government securities not exceeding five thousand rupees face value belonging to minor or insane person.— When a Government security or securities belong to a minor or a person who is insane and incapable of managing his affairs and the face value of the security or securities does not in the aggregate exceed five thousand rupees, the Bank may make such order as it thinks fit for the vesting of such security or securities in such person as it considers represents the minor or insane person.

11. Issue of duplicate securities and of new securities on conversion, consolidation, sub-division or renewal.—(1) If the person entitled to a Government security [4][not being security in a form notified in pursuance of paragraph (iv) of sub-clause (*a*) of clause (2) of section 2,] applies to the Bank alleging that the security has been lost, stolen or destroyed, or has been defaced or mutilated, the Bank may, on proof to its satisfaction of the loss, theft, destruction, defacement or mutilation of the security, subject to such conditions and on payment of such fees as may be prescribed, order the issue of a duplicate security payable to the applicant.

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[5][(lA) If a Government security in any of the forms notified in pursuance of paragraph (iv) of sub clause (a) of clause (2) of section 2 has been defaced or mutilated, the holder thereof may, in such manner, and subject to such conditions and on payment of such fees, if any, as may be [6] notified by Government, apply for the issue of a duplicate security, or for the refund of its value [7][:]

[8][Provided that where such Government security is in the form of a Prize Bond, the holder thereof may apply only for the refund of its value.]

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

[2]The original words "not exceeding five thousand rupees face value" omitted by the Government Savings Bank and Securities Laws (Amdt.) Act, 1958(42 of 1958), s. 2 and Sch. (*with effect from the 1st March, 1960*).

[3] Ins. *ibid*.

[4]Ins. by the Public Debt (Amdt.) Act, 1963 (13 of 1963), s. 4 (*with effect from the 2nd August, 1960*).

[5]New sub-section (1A) ins. by the Public Debt. (Amdt.) Act, 1963 (13 of 1963), s. 4 (*with effect from the 2nd August, 1960*).

[6]For the Prize Bonds Refund Rules, 1963, *see* Gaz. of P., 1963, Ext. pp. 807-809.

[7]Subs. by the Public Debt (Amendment) Ordinance, 1979 (48 of 1979), s.2 for full-stop.

[8]Added *ibid*.

(2) If the person entitled to a Government security applies to the Bank to have the security converted into a security of another form, or into a security issued in connection with another loan or to have it consolidated with other like securities, or to have it subdivided, or to have it renewed, the Bank may, subject to such conditions and on payment of such fees as may be prescribed, cancel the security and order the issue of a new security or securities.

(3) The person to whom a duplicate security or a new security is issued under this section shall be deemed for the purposes of section 19 to have been recognised by the Bank as the holder of the security; and a duplicate security or new security so issued to any person shall be deemed to constitute a new contract between [1][Government] and such person and all persons deriving title thereafter through him.

12. Summary determination by the Bank of title to Government security in case of dispute.—(1) If the Bank is of opinion that a doubt exists as to the title to a Government security, it may proceed to determine the person who shall for the purposes of the Bank be deemed to be the person entitled thereto.

(2) The Bank shall give notice in writing to each claimant of whom it has knowledge, stating the names of all other claimants and the time when and the officer of the Bank by whom the determination of the Bank will be made.

(3) The Bank shall give notice in writing to each claimant of the result of the determination so made.

(4) On the expiry of six months from the issue of the notices referred to in sub-section (3), the Bank may make an order vesting in the person, found by the Bank to be entitled to the security, the security and any unpaid interest thereon.

13. Law applicable in regard to Government securities.— Notwithstanding that as a matter of convenience [1][Government] may have arranged for payments on a Government security to be made elsewhere than in [2][Pakistan], the rights of all person in relation to Government securities shall be determined in connection with all such questions as are dealt with by this Act by the law and in the Courts of [2][Pakistan].

14. Recording of evidence.— (1) For the purpose of making any order which it is empowered to make under this Act, the Bank may request a [3][Sessions Judge] [4]* * * to record or to have recorded the whole or any part of such evidence as any person whose evidence the Bank requires may produce. A [3][Sessions Judge] so requested may himself record, or may direct any Magistrate of the first class subordinate to him or any Magistrate of the second class subordinate to him and empowered in this behalf by general or special order of the [3][High Court] to record the evidence, and shall forward a copy thereof to the Bank.

(2) For the purpose of making a vesting order under this Act the Bank may direct one of its officers to record the evidence of any person whose evidence the Bank requires or may receive evidence upon affidavit.

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[1]Sub. by the Public Debt (Central Government) (Amdt.) Ordinance, 1961 (7 of 1961), s. 6, for "the Central Government".
[2]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".
[3]Subs. by Ord. 23 of 02, s. 2. [this shall come into force in ICT with effect from 15.07.2004 wide SRO 601 (I)/2004].
[4]Certain words omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd "Sch., which was previously amended by Act 26 of 1951, s. 4 and 3rd Sch.

(3) A Magistrate or an officer of the Bank acting in pursuance of this section may administer an oath to any witness examined by him.

15. Postponement of payments and registration of transfers pending the making of a vesting Order.— Where the Bank contemplates making an order under this Act to vest a Government security in any person, the Bank may suspend payment of interest on or the maturity value of the security or postpone the making of any order section 11 or the registration of any transfer of the security until the vesting order has been made.

16. Power of Bank to require bonds.—(1) Before making any order which is empowered to make under this Act, the Bank may require the person in whose favour the order is to be made to execute a bond with one or more sureties in such form as may be prescribed or to furnish security not exceeding twice the value of the subject-matter of the order, to be held at the disposal of the Bank, to pay to the Bank or any person to whom the Bank may assign the bond or security in furtherance of sub-section (2) the amount thereof.

(2) A Court before which a claim in respect of the subject-matter of any such order is established may order the bond or security to be assigned to the successful claimant who shall there-upon be entitled to enforce the bond or realise the security to the extent of such claim.

17. Publication of notices in official gazette.—Any notice required to be given by the Bank under this Act may be served by post, but every such notice shall also be published by the Bank in [1][the Gazette of Pakistan or the official Gazette of a Province, according as the notice relates to a security issued by the [2][Federal Government] or a Provincial Government], and on such publication shall be deemed to have been delivered to all persons for whom it is intended.

18. Scope of vesting order. An order made by the Bank under this Act may confer the full title to a Government security or may confer a title only to the accrued and accruing interest on the security pending a further order vesting the full title.

19. Legal effect of orders made by the Bank. No recognition by the Bank of a person as the holder of a Government security, and no order made by the Bank under this Act shall be called in question by any Court so far as such recognition or order affects the relations of [3][Government] or the Bank with the person recognised by the Bank as the holder of a Government security or with any person claiming an interest in such security; and any such recognition by the Bank of any person or any order by the Bank vesting a Government security in any person shall operate to confer on that person a title to the security subject only to a personal liability to the rightful owner of the security for money had and received on his account.

20. Stay of proceedings on order of Court. Where the Bank contemplates making with reference to any Government security any order which it is empowered to make under this Act, and before the order is made the Bank receives from a Court in [4][Pakistan] an order to stay the making of such order, the Bank shall either—

(a) hold the security together with any interest unpaid or accruing thereon until the further orders of the Court are received, or

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[1]Subs. by the Public Debt (Central Government) (Amdt.) Ordinance, 1961 (7 of 1961), s. 7, for "the official Gazette".
[2]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".
[3]Subs. *ibid*, ss. 8, 9 and 10, for Central Government".
[4]Subs. by the Central Laws (Statue Reforms) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

(b) apply to the Court to have the security transferred to the Official Trustees appointed for the Province in which such Court is situated, pending the disposal of the proceedings before the Court.

21. Cancellation by the Bank of vesting proceedings. Where the Bank contemplates making an order under this Act vesting a Government security in any person the Bank may, at any time before the order is made, cancel any proceedings already taken for that purpose and may, on such cancellation, proceed anew to the making of such order.

22. Discharge in respect of interest on Government securities. Save as otherwise expressly provided in the terms of a Government security, no person shall be entitled to claim interest on such security in respect of any period which has elapsed after the earliest date on which demand could have been made for the payment of the amount due on such security.

23. Discharge in respect of bearer bonds. [1][Government] shall be discharged from all liability on a bearer bond or on any interest coupon of such a bond on payment to the holder of such bond or coupon on presentation on or after the date when it becomes due of the amount expressed therein, unless before such payment an order of a Court in [2][Pakistan] has been served on [1][Government] restraining it from making payment.

24. Period of limitation of Government's liability in respect of interest. Where no shorter period of limitation is fixed by any law for the time being in force, the liability of [1][Government] in respect of any interest payment due on a Government security shall terminate on the expiry of six years from the date on which the amount due by way of interest became payable.

25. Inspection of documents. No person shall be entitled to inspect, or to receive information derived from any Government security in the possession or custody of [1][Government] or from any book, register, or other document kept or maintained by or on behalf of [1][Government] in relation to Government securities or any Government security, save in such circumstances and manner and subject to such conditions as may be prescribed.

26. The Bank and its officers to be deemed public officers. For the purposes of section 124 of the Evidence Act, 1872 (I of 1872), the provisions of Part IV of the Code of Civil Procedure, 1908 (V of 1908), relating to suits by or against public officers in their official capacity, and the provisions of rule 27 of Order V, and rule 52 of Order XXI of the said Code, the Bank and any officer of the Bank acting in his capacity as such shall be deemed to be a public officer.

27. Penalty.—(1) If any person, for the purpose of obtaining for himself or for any other person any title to a Government security, makes to any authority under this Act in any application made under this Act or in the course of any inquiry undertaken in pursuance of this Act any statement which is false and which he either knows to be false or does not believe to be true he shall be punishable with imprisonment for a term which may extend to six months, or with fine or with both.

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[1]Subs. by the public debit (Amdt.) Ordinance, 1961 (VII of 1961), ss. 8, 9 and 10, for "Central Government".

[2]Subs. by the Central Laws (Statue Reforms) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

(2) No Court shall take cognizance of any offence under sub-section (1) except on the complaint of the Bank.

28. Power to make rules.—(1) The [1][Government] may, subject to the condition of previous publication, by notification in the official Gazette, make rules[2] to carry out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power such rules may provide for all or any of the following matters, namely:—

(a) the forms in which Government securities may be issued;

(b) the form of the obligations referred to in clause (iv) of sub-clause (a) of clause (2) of section 2;

(c) [3][* * * * * * *]

(d) the manner in which different forms of Government securities may be transferred;

(e) the holding of Government securities in the form of stock by the holders of offices other than public offices, and the manner in which and the conditions subject to which Government securities so held may be transferred;

(f) the manner in which payment of interest in respect of Government securities is to be made and acknowledged;

(g) the conditions governing the grant of duplicate, renewed, converted, consolidated and sub-divided Government securities;

(h) the fees to be paid in respect of the issue of duplicate Government securities and of the renewal, conversion, consolidation and sub-division of Government securities ;

(i) the form in which receipt of a Government security delivered for discharge, renewal, conversion, consolidation or sub-division is to be acknowledged;

(j) the manner of attestation of documents relating to Government securities in the form of stock;

(k) the manner in which any document relating to a Government security or any endorsement on a promissory note issued by [4][Government] may, on the demand of a person who from any cause is unable to write, be executed on his behalf;

(n) the procedure to be followed in making vesting orders;

[1]Subs. by A.O. 1964, Art.2 & schedule for "Central Government"
[2]For the Prize Bonds Refund Rules, 1963, *see* Gaz. of P., 1963, Ext., pp. 807-809.
[3]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II, which was previously subs. by Act 26 of 1951, s. 4 and 3rd Sch.
[4]Subs. by the Public Debt (Central Government) (Amdt.) Ordinance, 1961 (7of 1961), ss. 8,9 and 10, for "the Central Government".

(o) the authority by whom the certificate referred to in the proviso to section 7 is to be granted and the manner of making the inquiry therein mentioned.

(3) A copy of all rules under this section shall be laid on the table of [1][the Central Legislature] [2][or, as the case may be, of the Provincial Legislature] as soon as may be after they are made.

29. Act X of 1920 not to apply to Government securities. The Securities Act, 1920 (X of 1920), shall cease to apply to Government securities to which this Act applies, and to all matters for which provision is made by this Act.

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[1]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., for "both the Chambers of the Indian Legislature".
[2]Ins. by A. O., 1964, Art, 2 and Sch.

THE PUBLIC INVESTMENTS (FINANCIAL SAFEGUARDS) ORDINANCE, 1960.

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THE PUBLIC INVESTMENTS (FINANCIAL SAFEGUARDS) ORDINANCE, 1960.

ORDINANCE No. XLVI OF 1960

[*2nd November, 1960*]

An Ordinance to provide for financial safeguards in respect of certain investments made out of public revenues.

WHEREAS it is expedient to provide for financial safeguards in respect of certain investments made out of public revenues;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance may be called the Public Investments (Financial Safeguards) Ordinance, 1960.

(2) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context, "appropriate Government" means—

(a) in relation to a corporation, institution or undertaking established with the aid of the revenues of the [1][Federation] but not with the aid of the revenues of a Province, the [2][Federal Government] ;

(b) in relation to a corporation, institution or undertaking established with the aid of the revenues of a Province but not with the aid of the revenues of the [1][Federation] or of [2][any other Province], the Provincial Government concerned; and

(c) in relation to a corporation, institution or undertaking established with the aid of the revenues of the [1][Federation] and those of one [2][more of] the Provinces, or with the aid of the revenues of [2][two or more of] Provinces but not with the aid of the revenues of the [1][Federation], the [3][Federal] or one of the [4]* Provincial Governments as may be agreed between the Governments concerned, and in default of such agreement,—

(i) the [5][Federal Government], where the revenues of the [1][Federation], are contributed, or where the revenues of the Provinces are contributed in equal shares, and

(ii) the Provincial Government holding the larger share, where the revenues of the [4]* Provinces are contributed in unequal shares without there being any contribution from the revenues of the [1][Federation].

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[1]Subs. by F.A.O., 1975 Art.2 and Table, for "Centre" which was previously subs. by A.O. 1964, Art.2 and Sch., for "Federation".
[2]Subs. ibid., for "Central Government".
[3]Subs. *ibid.* Art.2 and Table, for "Central".
[4]Omitted *ibid.* Art.2 and Sch.
[5]Subs. *ibid.* Art.2 and Table, for "Central Government".

3. Power to appropriate Government to prescribe procedures, etc., in certain cases.— (1) Where any corporation, institution or undertaking, whether incorporated in pursuance of a[1][Federal] or Provincial law or not so incorporated, has been established by Government with the aid of public revenues, the appropriate Government shall, notwithstanding anything in any law, or in any instrument, deed or other document relating to such corporation, institution or undertaking, have power—

(a) to prescribe financial procedures, including procedures for internal financial, control in respect of matters relating to the receipt and expenditure of moneys and sanctions thereto;

(b) to give general or special financial directions to such corporations, institutions and undertakings; and

(c) to depute such of its officer or officers to scrutinize their financial procedures and transactions as it may think necessary.

(2) Where any procedure is prescribed under clause (a) of sub-section (1), or any financial direction is given, or officer deputed, under clause (b) or clause (c) thereof, it shall be the duty of the Corporation, institution or undertaking concerned to comply with the procedure or direction, or, as the case may be, to receive the officer and afford him every convenient means of fulfilling the purpose of his deputation.

4. Power to appropriate Government to give directions in certain other cases. Where any corporation has been established otherwise than by Government, but Government, or any such-corporation, institution or undertaking as is referred to in section 3, has provided a portion of the capital or funds thereof, and is thereby entitled to appoint one or more Directors, the appropriate Government may, notwithstanding anything in the [2][Companies Ordinance, 1984(XLVII of 1984)] or in any other law, or in any instrument, deed or other document relating thereto, give the director or directors so appointed such general or special financial directions as it may think necessary, and it shall be the duty of every such director to comply with the directions so given.

5. Power to call for documents, etc. The appropriate Government may, in order to ensure proper compliance with the provisions of this Ordinance, call for any information, including any book, account, record or other document, from any such corporation, institution or undertaking as is referred to in section 3, or from any such director as is referred to in section 4.

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6. Penalties.—Whoever fails to discharge any duty imposed by or under this Ordinance, or to comply with any direction given or any rule or order made or issued thereunder, shall be punishable with simple imprisonment for a term which may extend to three months, or with fine which may extend to ten thousand rupees, or with both.

7. Offences by Corporations etc. If an offence punishable under this Ordinance is committed by a Corporation, institution or undertaking, every director, manager, secretary, agent or other officer or person concerned with the management thereof, shall, unless he proves that the offence was committed without his knowledge or consent, or that he exercised due diligence to prevent its commission, be deemed to be guilty of such offence.

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[1]Subs. by F.A.O., 1975 Art.2 and Table, for "Centre" which was previously sub. by A.O. 1964, Art.2 and Sch., for "Federation".
[2]Subs. by Act III of 06, s.5.

8. False information etc. Any person who,

(a) when required under this Ordinance to furnish any information, furnishes any information which is false in any material particular and which he knows or has reasonable cause to believe to be false, or does not believe to be true, or

(b) knowingly makes any false statement in any book, account, record or other document which he is required under this Ordinance to furnish,

shall be punishable with the same punishment as is provided in section 6.

9. Cognizance of offence.—No Court inferior to that of a Magistrate of the First Class shall take cognizance of any offence punishable under this Ordinance, and cognizance shall not be so taken save on a complaint made in writing by or under the authority of the appropriate Government.

[2]**[9A. Ordinance not to apply to certain bodies corporate, etc.—** Notwithstanding anything contained in this Ordinance a body corporate, company, institution, undertaking and establishment, specified in the Schedule to this Ordinance, upon privatization pursuant to the Privatization Commission Ordinance, 2000 (LII of 2000) shall not be deemed to be a body corporate, corporation, institution, undertaking or establishment established with the aid of public revenues of the Federation or the Federal Government for the purpose of this Ordinance.]

10. Power to make rules.—The [1][appropriate Government] may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

[2]**["THE SCHEDULE**
[*See* section 9A]

The Pakistan Telecommunication Company Limited.
The Pakistan Steel Mills Corporation."]

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[1]Subs. A.O., 1964, Art. 2 and Sch., for "Central Government".
[2]Ins. & added by Act.III of 06,s.5.

THE PUNJAB LAWS ACT, 1872

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9 to 20. [*Repealed*]

DECREES CONCERNING LAND

21. [*Repealed*]

INSOLVENCY

22 to 33.. [*Repealed*]

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MINORS AND THE COURT OF WARDS

34 to 38. [*Repealed*].

CRIMINAL JUDICATURE

39. [*Omitted*]

39A. Power to establish a system of village-watchmen and municipal watchmen, and to make rule.

39B. Obligation to assist watchman and headman.

Person obstructing watchman or headman may be arrested without warrant.

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44. [*Omitted*]

45. [*Omitted*]

46. [*Omitted*]

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47. Crossing of streams on buoys or skins.

48. Use of pasturage or natural product of Government land.

49. [*Repealed*]

50. Power to make rules as to matters mentioned in sections 43 to 48.

Existing rules

50A. Conditions of validity of rules hereafter made under this Act

50B. Penalties for beach of rules.

51. [*Omitted*]

52. [*Repealed*]

SCHEDULE I
ENACTMENTS DECLARED TO BE IN FORCE

SCHEDULE II
ENACTMENTS REPEALED

THE PAKISTAN CODE

THE PUNJAB LAWS ACT, 1872

Act No IV OF 1872

[28th March, 1872]

An Act for declaring which of certain rules, laws and regulations have the force of law in the Punjab and for other purposes.

Preamble. WHEREAS certain rules, laws and regulations, made heretofore for the Punjab, acquired the force of law under the provisions of section 25 of the [1]Indian Councils Act, 1861; and whereas it is expedient to declare which of the said rules, laws and regulations shall henceforth be in force in the Punjab, and to amend, consolidate or repeal others of the said rules, orders and regulations; It is hereby enacted as follows:—

1. Short title. This Act may be called the Punjab Laws Act, 1872.

2. Local extent. It extends to the [2]territories [3][comprised in the Punjab], but not so as to alter the effect of any regulations made for any parts of the said territories under the [1]Statute 33 Vict., cap. 3, section 1;

Commencement, and it shall come into force on the first day of June, 1872.

3. Enactments in force. The Regulations, Acts and Orders specified in the First Schedule hereto annexed are in force in [4][the Punjab] to the extent specified in the third column of the said Schedule.

4. *[Enactments repealed.] Rep. by the Second Repealing and Amending Act, 1914 (XVII of 1914), s. 3 and Sch. II.*

CIVIL JUDICATURE

[5][**5. Decisions in certain cases to be according to Native law.**—In questions regarding succession, special property of females betrothal, marriage, divorce, dower, adoption, guardianship, minority, bastardy, family relations, wills, legacies, gifts, partitions, or any religious usage or institution, the rule of decision shall be—

(a) [6][Where the parties are not Muslims, any custom] applicable to the parties concerned, which is not contrary to justice, equity or good conscience, and has not been by this or any other enactment altered or abolished, and has not been declared to be void by any competent authority;

(b) [7]* * *

[1]Rep. by the Government of India Act.
[2]Rep. in the territories now forming the N.W.F.P. by the N.W.F.P. Law and Justice Regulation, 1901 (7 of 1901), s. 5.
[3]The original words "now under the administration of the Lieutenant Governor of the Punjab" were first subs. by A. O., 1949, Sch. and then amended by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8, to read as above.
[4]Subs. by Act 26 of 1951, s. 8, for" West Punjab" which had been subs. by A.O., 1949, for" the Punjab".
[5]Subs. by the Punjab Laws (Amdt) Act, 1878 (12 of 1878), s. 1, for the original section 5. The provisions of this section have been rep. in so far as they are inconsistent with those of the Muslim Personal Law (Shariat) Application Act, 1937 (26 of 1937), *see ibid*., s. 6.
[6]Subs. by the Federal Laws, (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "Any custom".
[7]Certain words omitted *ibid*.

the Hindu law, in cases where the parties are Hindus, except in so far as such law has been altered or abolished by legislative enactment, or is opposed to the provisions of this Act, or has been modified by any such custom as is above referred to.]

6. Decisions in cases not specially provided for.—In cases not otherwise specially provided for, the Judges shall decide according to justice, equity and good conscience.

7. Local customs and mercantile usages when valid.—All local customs and mercantile usages shall be regarded as valid, unless they are contrary to justice, equity or good conscience, or have, before the passing of this Act, been declared to be void by any competent authority.

[1]* * * * *

[1]8, 8A, 8B and 8C. *[Regarding descent of Jaghirs] Rep. by the Punjab Jaghirs Act, 1941 (Punjab Act V of 1941), s. 13.*

PRE-EMPTION

9 to 20. Rep. by the Punjab Pre-emption Act, 1905 (Punjab Act II of 1905), s. 2 (I).

DECREES CONCERNING LAND

21. [Copy of decrees affecting land to be forwarded to Deputy Commissioner.] Rep. by the Punjab Land Revenue Act, 1887 (XVII of 1887).

INSOLVENCY

22 to 32. Rep. by the Provincial Insolvency Act, 1907 (III of 1907).

33. [Saving of previous insolvency Proceedings.] Rep. by the Amending Act, 1891 (XII of 1891).

MINORS AND THE COURT OF WARDS

34 to 38. Rep. by the Punjab Court of Wards Act, 1903 (Punjab Act II of 1903), s. 2 (I).

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CRIMINAL JUDICATURE

[2]**39.** [Pakistan Penal Code to apply to offences committed previous to 1st January, 1862. Saving of privileges conferred on certain Chiefs.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of1981), s. 3 and II[nd] Sch.

[3][39A. **Power to establish a system of village-watchmen and municipal watchmen, and to make rules.**—[4][The Provincial Government] may establish a system of village-watchmen or municipal watchmen in any part of the [5][Punjab], and in furtherance of this object may, from time to time, make rules to provide for the following matters:—

[1]The heading "Descent of Jaghirs" preceding Ss. 8, 8A, 8B and 8C which were subs. by the Punjab Descent of Jaghirs Act, 1900 (Punjab Act 4 of 1900), s. 2, for the original section 8, was subsequently repealed, together with the said sections, by the Punjab Jaghirs Act, 1941 (Punjab Act 5 of 1941), s. 13.

[2]This section was previously amended by A.O.,1937.

[3]Ss. 39A and 39B were subs. by the Punjab Laws (Amdt) Act, 1881 (24 of 1881), s. 2, for the ss. 39A and 39B which had been ins. by the Punjab Laws Amdt Act, 1875 (15 of 1875), s. 2.

[4]Subs. by A. O. 1937, for "The L.G.".

[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. for "territories under its administration" (with effect from the 14th October, 1955).

(a) the definition of the limits of watchmen's beats;

(b) the determination of the several grades of watchmen, and the number of each grade to be appointed to each beat;

(c) the appointment, suspension, dismissal and resignation of watchmen of each grade;

(d) the equipment and discipline of, and the control and supervision over, such watchmen;

(e) the conferring upon them, and the exercise by them, of any powers and the enjoyment by them of any protection or privilege, which may be exercised and enjoyed by a police-officer under any law for the time being in force;

(f) the performance by them of such duties relating to police, sanitation or statistics, or for the benefit of the village communities or municipalities within their respective beats, as [1][the Provincial Government] thinks fit;

(g) the exercise of authority over, and the rendering of aid to, such watchmen by headmen of the villages or members of the Municipal Committees of the towns comprised in their respective beats;

(h) the performance, by the headmen of villages comprised in the beat, of any watchman, of any of the duties of a village-watchman in aid of, or substitution for, such watchman;

(i) the exercise, by such village-headmen for the purposes referred to in clauses (g) and (h), or by members of Municipal Committees for the purposes referred to in clause (g) of this section, of any of the powers, and the enjoyment by such headmen or members of any privilege or protection, of a village-watchman, or a municipal watchman, as the case may be;

(j) the determination of the rate at which, and the mode in which, watchmen shall be paid, and, in the case of village watchmen, of the mode in which their pay, the expenses of their equipment, and other charges connected with the village-watchman-system shall be provided for, whether out of cesses or funds already leviable or available in the villages comprised in the beat, or by a special tax in money or kind to be imposed on any class of persons residing or owning property in, or resorting to, such villages, or partly in one of these ways and partly in the other;

(k) the collection with or without the aid of the village-headmen, and by any process available for the realisation of the land-revenue, of any tax imposed under clause (j) of this section, and the application of, and the mode of accounting for, the same; and generally for

[1]Subs. by A. O. 1937, for "The L.G.".

(l) the efficient working of the system of village-watchmen or municipal watchmen;

Provided—

first, that the rules to be made regarding the appointment of village-watchmen shall allow to the headmen of the villages comprised in the beat to which such a watchman is to be appointed a power of nomination, to be exercised in such a manner and subject to such reasonable conditions as may be prescribed by such rules:

secondly, that the rules to be made under clause (j) of the section with regard to village-watchmen shall include provisions for recording and securing due consideration of the views and opinions on the matters therein referred to of the headmen of the villages comprised in each beat.

39B. Obligation to assist watchman and headman.—Every person is bound to render to a village-watchman, or municipal watchman, or village-headman discharging the duties of a Police-officer under the rules made hereunder, all the assistance which he is bound to render to a Police-officer.

Person obstructing watchman or headman may be arrested without warrant.—Any person who obstructs such watchman or headman in the discharge of such duties may be arrested without warrant by a Police-officer or by any watchman or village-headman empowered in this behalf by [1][the Provincial Government].]

[2][**39C. Power to direct local taxation for payment of police enrolled under Act V of 1861.**—Whenever it seems to [1][the Provincial Government] expedient that the duties of watch-and-ward and other internal police-service of any town or village not comprised within the limits of a municipality or within the limits of a village-watchman's beat as defined under the power conferred by section 39A should be performed by Police-officers enrolled under [3]Act V of 1861, [1][the Provincial Government] may direct that the said service shall be so performed, and may also, [4]* * * direct that the charges for the time being fixed by such Government on account of such service shall be defrayed by taxes to be levied in such town or village.

39D. Notice of taxes proposed to be levied.—When [1][the Provincial Government] has, under section 39C, directed that taxes shall be levied in any town or village, the Deputy Commissioner may from time to time issue a public notice in such town or village explaining the nature of the taxes he proposes to levy.

Objections to taxation.—Any inhabitant of such town or village objecting to the taxation thus proposed may, within fifteen days from the publication of such notice, send his objection in writing to the Deputy Commissioner.

Procedure thereon.—After the expiry of fifteen days from the publication of the notice, the Deputy Commissioner may submit for the information of [1][the Provincial Government] a report of the proposal made by him. Such report shall contain specific mention of the objections (if any) urged to his proposal and his opinion on such objections.

No such tax shall be levied until it has, upon such report, been approved by [1][the Provincial Government].

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[1]Subs. by A.O., 1937, for "the L.G."

[2]Ss. 39C to 39G were ins. by the Punjab Laws Amdt. Act, 1875 (15 of 1875), s. 2.

[3]The Police Act.

[4]The words "subject to the control of the G.G. in C." rep. by A.O.,1937.

39E. Power to fix rates of tax.—When any such tax has been so approved by [1][the Provincial Government], the Deputy Commissioner may from time to time, subject to such rules consistent with this Act as [1][the Provincial Government] may from time to time prescribe, determine the rates at which it is to be levied.

39F. **Power to make rules for collection of taxes.**—[1][The Provincial Government] may from time to time make rules to provide for the collection of such taxes by any process available for the realisation of the land-revenue and to regulate the application and mode of accounting for the same.

39G. *[Validation clause.] Rep. by the Amending Act, 1891 (XII of 1891).]*

HONORARY POLICE-OFPICERS

40. Provincial Government may confer powers of Police-officer. [1][The Provincial Government] may, if it thinks fit, confer on any person any of the powers which may be exercised by a Police-officer under any Act for the time being in force, [2][and may withdraw any powers so conferred].

TRACK LAW

41. Trackers may call for assistance in carrying on tracks. When an offence is, has been, or may reasonably be supposed to have been committed, and the tracks of the persons who may reasonably be supposed to have committed such offence, or of any animal or other property reasonably supposed to be connected with such offence, are followed to a spot within the immediate vicinity of a village, the person following such tracks may call upon any headman or village-watchman in such village to assist in carrying on the tracks.

42. Penalty for withholding assistance or conniving at offence or escape; limit to fine. If such headman or watchman do not forthwith give such assistance, or if the inhabitants of such village do not afford full opportunity for search in their houses for the offenders, or, if from the circumstances of the case, there shall appear good reason to believe that the inhabitants of such village, or any of them were conniving at the offence or at the escape of the offenders, and such offenders cannot be traced beyond the village, the Magistrate of that District may, with the previous sanction of the Commissioner of the Division inflict a fine upon such village not exceeding five hundred rupees, except in the case of stolen property over five hundred rupees in value, in which case the fine shall not exceed the value of such property.

Appeal to High Court.—An appeal against all convictions under this section shall lie to the [3][High Court of West Pakistan].

Fine may be awarded to injured parties, and fee to tracker.—The Magistrate may direct that the fine imposed under this section or any part thereof shall be awarded to any persons injured by such offence in compensation for such injury; and, in the case of stolen property recovered through the agency of a tracker, may direct that such property be not restored to its owner until he has paid to such tracker such fee, not exceeding one-fourth part of the value of the stolen property, as the said Magistrate seems fit.

SLAUGHTER OF KINE

[1]Subs. by A.O., 1937, for "the L.G.".
[2]Ins. by the Punjab Laws (Amdt.) Act, 1878 (12 of 1878), s.5.
[3]The original words "Chief Court" were first subs. by A.O., 1949, and then amended by the Central Laws (Statute Reform) Ordinance, 1960, (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), to read as above.

43. Control of slaughter of kine and sale of beef.—The slaughter of kine and the sale of beef shall not take place except [1]* * * subject to rules to be from time to time, either generally or in any particular instance, prescribed by [2][the Provincial Government].

ARMED MEN AND FOREIGN VAGRANTS

44. *[3][Control of entry into towns of bands of armed men.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of1981), s. 3 and IInd Sch.*

45. *4[Powers of Magistrate of District as to foreign vagrants.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981) s. 3 and IInd Sch.*

46. *[4][Surveillance, etc., of band failing to comply with Magistrate's Order.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and IInd Sch.*

MISCELLANEOUS

47. Crossing of streams on buoys or skins.—No person shall cross any river or stream on a buoy or inflated skin, nor shall have in his possession or custody any buoy or skin for the purpose of being used in crossing any river or stream, except [5]* * * subject to rules to be from time to time either generally or in any particular instance, prescribed by [2][the Provincial Government].

48. Use of pasturage or natural product of Government land.—No person shall make use of the pasturage or other natural product of any land being the property of [6][the Government], except with the consent and subject to rules to be from time to time, either generally or in any particular instance, prescribed by [7][the government concerned].

49. [Growing, selling or keeping opium.] Rep. by the Opium Act, 1878 (I of 1878), s. 2 and Sch.

[8][**50. Power to make rules as to matters mentioned in sections 43 to 48.**—[2][The Provincial Government] may from time to time make rules as to the matters mentioned in [9][sections 43,47 and 48] inclusive.

THE PAKISTAN CODE

Existing rules.—All existing rules upon-such matters, which-might have-been made under this section had it been in force, shall be deemed to have been made hereunder.

50A. Conditions of validity of rules hereafter made under this Act.—[10][Rules made under this Act shall not be valid unless]:

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[1]The words "with the consent and" rep. by the Punjab Laws (Amdt.) Act, 1878 (12 of 1878), s. 6.
[2]Subs. by A.O., 1937, for "the L.G.".
[3]This section was previously amended by Act, 12 of 1878, s. 6 and A.O., 1937.
[4]This section was amended by A.O., 1937.
[5]The words "with the consent and" rep. by the Punjab Laws (Amdt.) Act, 1878 (12 of 1878), s. 6.
[6]The original words "the Government". were first subs. .by, A.O., 1937 and then amended by A.O.,1961, Art. 2 (with effect from the 23rd March, 1956), to read as above.
[7]The original words the L,G." were first subs. by A.O., 1937 and then amended by A.O., 1961, Art.2 and Sch.(with effect from the 23rd March, 1956), to read as above.
[8]Ss 50, 50A and 50B were subs. by the Punjab Laws Amdt. Act, 1875 (15 of 1875), s. 3, for the original s. 50.
[9]Subs. by "the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and. IInd Sch. for "sections 43 to.48" which had been subs. by the Amending Act, 1891 (12 of 1891), s. 2 and Sch. II, for "sections forty three to forty-nine".
[10]Subs. by A.O., 1937, for the words "[All] rules hereafter made by the L.G. under any power conferred by this Act shall be [subject to the control of the G.G. in C. and no such rules shall be valid] unless". The words in crotchets were subs. by the Decentralization Act, 1914 (4 of 1914), for the words "No" and" valid ", respectively.

(a) they are consistent with the laws for the time being in force in [1][the Punjab];

(b) they are published in the official Gazette;

[2]* * * * * * *

[3][**50B. Penalties for beach of rules.**—Whoever breaks any rule made by the Provincial Government under this Act shall be punished with imprisonment for a term which may extend to six months, or with fine which may extend to fifty rupees, or with both.]

51. *[Republication of rules and orders] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and IInd Sch.*

52. *[Recovery of advances made by Government.] Rep.by the Northern India Takkavi Act, 1879 (X of 1879).*

[4]SCHEDULE I

ENACTMENTS DECLARED TO BE IN FORCE

Explanation.— This schedule does not refer to any Act which is in its terms applicable to [5][the Punjab], or which has been extended to [5][the Punjab] by competent authority.

No. and year	Title	Extent to which the enactment is in force
[6]Reg. I of 1798	A Regulation to prevent Fraud and Injustice in Conditional Sales of Land under Deeds of bai-bil-wuffa, or other Deeds of the same nature.	The whole, except such parts as relate to interest.
[7]* * * * * * *		
Reg. XVII of 1806	A Regulation for extending to the province of Benares the Rates of Interest of future Loans and Provisions relative thereto, contained in Regulation XV, 1793; also for a general extension of the period fixed by Regulations I, 1798 and XXXIV, 1803, for the redemption of Mortgages and Conditional Sales of Land, under Deeds of bai-bil-wuffa Kutcubaleb, or other similar designation.	Sections 7 and 8.
Reg. III of 1818	A Regulation for the Confinement of State Prisoners.	The whole
Reg. XI of 1825	A Regulation for declaring the Rules to be observed in determining Claims to Lands gained by alluvion or by dereliction of a river or the sea.	The whole
[7]* * * * * * * *		

[1]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8, for "West Punjab" which had been subs. by A.O., 1949, Sch., for "the Punjab ".
[2]Cl. (c) of s. 5A rep. by Act 4 of 1914.
[3]Section 50 B as amended by Act 12 of 1878, s. 7, A.O., 1937, has been subs. by Ordinance 27 of 1981, s. 3 and IInd Sch.
[4]As so much of Act 4 of 1872 as related to Bengal Regulations 5 of 1817 and 20 of 1825 and Acts 40 of 1858 and 17 of 1861 was repealed by Acts 6 of 1878, 10 of 1882, 8 of 1890 and 12 of 1891, respectively, the references to those Regulations and Acts in the Schedule are omitted.
[5]Subs. by Act 26 of 1951, for "West Punjab" which had been subs. by A.O., 1949, Sch., for "the Punjab".
[6]So much of Act 4 of 1872 as relates to Bengal Regulations 1 of 1798 and 17 of 1806 will be repealed when the Transfer of Property Act, 1882 (4 of 1882), is extended to the Punjab, see Act 4 of 1882, ss.1,2 and Sch.
[7]So much of the first Schedule as relates to Bengal State Offences Regulation, 1804, (10 of 1804), was repealed by Act 4 of 1922.

No. and year	Title	Extent to which the enactment is in force.
. .	Rules for the conservancy of Forests and Jungles in the Hill Districts of the Punjab Territories, Sanctioned by the Governor General in Council in letter of the Secretary to the Government of India, No. 1789, 21st May, 1855.	The whole

SCHEDULE II

[Enactments Repealed]
Rep. by the Second Repealing and Amending Act, 1914 (XVII of 1914)

THE PAKISTAN CODE

Date: 16-09-2024

THE RAILWAY STORES (UNLAWFUL POSSESSION) ORDINANCE, 1944

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Unlawful possession of railway Stores

THE PAKISTAN CODE

THE RAILWAY STORES (UNLAWFUL POSSESSION) ORDINANCE, 1944.

ORDINANCE No. XIX OF 1944

[*13th May, 1944*]

An Ordinance to make special provision for the punishment of the offence of unlawful possession of railway stores.

WHEREAS an emergency has arisen which renders it necessary to make special provision for the punishment of the offence of unlawful possession of railway stores;

Now, THEREFORE, in exercise of the powers conferred by section 72 of the Government of India Act, as set out in the Ninth Schedule to the Government of India Act, 1935 (26 Geo. 5,c.2.), the Governor General is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Railway Stores (Unlawful Possession) Ordinance, 1944.

[1][(2) It extends to the whole of Pakistan.]

(3) It shall come into force at once.

2. Definitions. In this Ordinance [2]* * * "railway stores" includes any article used or intended to be used in the construction, operation or maintenance of a railway.

3. Unlawful possession of railway Stores. Whoever is found or is proved to have been in possession of any article of railway stores shall, if the Court sees reasonable grounds for believing such article to be or to have been the property of the administration of any [2]* railway, unless he proves that the article came into his possession lawfully, be punishable with imprisonment for a term which may extend to five years or with fine or with both.

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Date: 01-07-2024

[1]Subs. by the Central Laws (Statute Reform) Ordinance No XXI of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*).
[2]Omitted by A.O., 1961, Art.2 and Sch. (*with effect from the 23rd March, 1956*).

THE RAILWAYS (TRANSPORT OF GOODS) ACT, 1947

CONTENTS

1 Short title, extent, commencement and duration.

2 Interpretation.

3 Power to give directions in regard to the transport of goods by railways.

4 Directions to be complied with.

5 Protection of action taken.

6 Power to amend Schedule.

THE SCHEDULE
See section 3

THE RAILWAYS (TRANSPORT OF GOODS) ACT, 1947

[1]ACT No. XII OF 1947

[*17th March, 1947*]

An Act to confer for a limited period special powers for regulating the transport of goods on railways.

WHEREAS it is expedient to confer for a limited period special powers for regulating the transport of goods on railways; It is hereby enacted as follows:-

1. Short title, extent, commencement and duration.— (1) This Act may be called the Railways (Transport of Goods) Act, 1947.

(2) It extends to [2][the whole of Pakistan].

(3) It shall come into force on the 25th day of March 1947, and shall remain in force for [3][[4][thirty-one] years] only.

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[1]*For Statement of Objects and Reasons, see Gazette of India, 1947, Pt. V, p.16.*
This Act has been applied to Baluchistan with certain modification, see Gazette of India, 1947, Pt. I, p. 576.
It has been extended to—
(a) the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950); and
(b) the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953), as amended.
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.
This Act has been further amended in its application to the Province of West Pakistan by the West Pakistan Act 14 of 1963 (with effect from the 19th July, 1963); and also by the West Pakistan Ordinance 4 of 1965, s. 2 (with effect from the 18th March, 1965).
This Act has been amended on its application to the Province of W.P by W.P. Ordinance 4 of 1967.

[2]*Subs. by the Railways (Transport of Goods) Act, 1957 (9 of 1957), s. 2, for "all the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "the whole of British India".*

[3]*The original words "one year" have successively been amended by the Railways (Transport of Goods) (Amdt.) Act, 1948 (2 of 1948), the Railways (Transport of Goods) (Amdt.) Act, 1949 (2 of 1949), the Railways (Transport of Goods) (Revival and Continuance) Act, 1950 (34 of 1950), the Railways (Transport of Goods) (Continuance) Act, 1950 (81 of 1950), the Railways (Transport of Goods) (Continuance) Act, 1953 (21 of 1953), Act 9 of 1957, and the Railways (Transport of Goods) (Amdt.) Ordinance, 1960 (9 of 1960), to read as above.*

[4]*Subs. by the Railways (Transport of Goods) (Amdt.) Act, 1973 (46 of 1973),s.2 for "twenty-six", which was previously amended by various enactments.*

2. Interpretation. (1) In this Act,—

[1]* * * * * * *

(b) "grains and pulses" means *bajree*, barley, beans, black gram, *chowlee* seeds, *chuni*, dry cow-peas, *dhall*, gram parched gram, horse gram Indian corn *jowari*, *karamony*, *khesari*, *moong*, *mussoor*, *mutt*, oats, *oorid*, paddy, peas, *raggi, rajgeera*, rice (including beaten or pounded rice), common sago, sun-dried tapioca, toor and wheat;

(c) "railway administration" has the meaning assigned to it in the Railways Act, 1890 (IX of 1890).

(2) For the purposes of this Act the transport of goods shall be deemed to be sponsored only if such transport—

(a) is required on the written demand of, or

(b) is in accordance with any programme of transport drawn up in writing by, or

(c) is certified in this behalf on the consignment note relating to the goods by—

the [2][Federal Government], a Provincial Government [3]* * * or the Government of an [4][Acceding State], or any person authorised in writing in this behalf by any such Government as aforesaid [5]* * *.

3. Power to give directions in regard to the transport of goods by railways. The [6][Federal Government] or any person authorised in this behalf by the [6][Federal Government] by notification in the official Gazette may, by general or special order, direct any railway administration—

[7]**[(a)** to give, subject to such conditions or restrictions as the [6][FederalGovernment] or the person so authorised may impose, special facilities or preference—

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[1] *Clause (a) as amended by the Railways (Transport of Goods) (Amdt.) Act, 1957 (9 of 1957), omitted by A. O., 1964, Art. 2 and Sch.*

[2] *Subs. by the Railways (Transport of Goods) (Amdt.) Act, 1973 (46 of 1973),s.3, for "Central Government".*

[3] *The words "the Chief Commissioner" which were subs. by Act 9 of 1957, for "a Chief Commissioner" omitted by A. O., 1964, Art. 2 and Sch.*

[4] *Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., for "Indian State".*

[5] *The words "or by the Chief Commissioner", as amended by Act 9 of 1957, omitted by A. O.. 1964. Art. 2 and Sch.*

[6] *Subs. by Act 46 of 1973, s.3, for "Provincial Government" which had been subs. by A. O., 1964, Art. 2 and Sch., for "Central Government".*

[7] *Subs. by the Railways (Transport of Goods) (Amdt.) Act, 1949 (2 of 1949), s. 3, for the original clause (a).*

(i) for the transport of the goods specified in the second column of the Schedule, on compliance with the conditions, if any set out in the corresponding entry in the third column thereof, or

(ii) if the [1][Federal Government] or the person so authorized deems it necessary for reasons of urgent public interest, for the transport of any goods or classes of goods not so specified, or]

(b) to refuse to carry such goods or classes of goods as may be specified in the order, either absolutely or between places so specified.

4. Directions to be complied with. Notwithstanding anything to the contrary contained in the Railways Act, 1890 (IX of 1890), every railway administration shall be bound to comply with any direction given to it under section 3.

5. Protection of action taken. No suit or other legal proceedings shall lie against the [2][State] or any railway administration or any person for any damage caused or likely to be caused in consequence of any direction issued under section 3 or of the compliance of any railway administration therewith, nor shall any railway administration have any liability, whether under the Railways Act, 1890 (IX of 1890), or otherwise, by reason only of its compliance with any such direction.

6. Power to amend Schedule. The [1][Federal Government] may from time to time by notification in the official Gazette amend the Schedule so as to include therein goods of other descriptions or exclude therefrom goods of any description or vary in respect of any description of goods the conditions set out in the third column of the Schedule and thereupon the Schedule shall have effect as if it had been so enacted.

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[1]Subs. by the Railways (Transport of Goods) (Amendment) Act, 1973 (46 of 1973),s.4, for "Provincial Government", which was previously amended by A.O., 1964, Art.2 and Sch.for "Central Government".

[2]Subs. by the Railways (Transport of Goods) (Amdt.) Ordinance, 1960 (9 of 1960),s.3, for "Crown".

[1][THE SCHEDULE

(*See* section 3)

Sl. No. (1)	Description of goods (2)	Condition for special transport facilities or preference. (3)
1.	Stores (including medical stores) for relief in time of famine, rehabilitation of refugees, or other emergency.	When transport is sponsored.
2.	Arms, ammunitions, stores and equipment of Military and police, and stores and equipment of other Government Departments.	Do.
3.	Railway coal, materials, stores and equipment and coal for Port Trust.	*Nil.*
4.	Material and Stores of the Posts and Telegraphs Department.	*Nil.*
5.	Foods stuffs (tinned, canned, bottled, processed or packed), including fish, vegetables, condiments used in cooking and other perishables, all grains and pulses, wheat products and flour of other grains and pulses, ghee, butter, cooking fats, edible vegetable oils, salt (other than hide salt), sugar, gur, Jagree, and molasses.	*Nil.*
6.	Petroleum and all petroleum products, insecticides, water proofing compounds, explosives, arms and ammunitions.	When consigned by Oil Companies or dealers and importers of explosives, petroleum products, arms and ammunitions.

[1]*Subs. by the Railways (Transport of Goods) (Amdt.) Act, 1949 (2 of 1949),s.4,for the existing Schedule.*

Sl. No. (1)	Description of goods (2)	Condition for special transport facilities or preference. (3)
7.	Medical stores, hospital equipment, Pharmaceutical goods and chemicals.	*Nil.*
8.	Empty gunnies and other containers for food, petroleum and petroleum products, and other industrial products.	
9.	Fuels such as coal (other than Railway coal), coke, firewood and char-coal.	*Nil.*
10.	Cotton, silk, woollen piece goods, blankets, twist yarn and cotton waste.	*Nil.*
11.	Cattle food and cattle fodder, manners and seeds.	*Nil.*
12.	Live Stock	*Nil.*
13.	Plant, materials and stores for maintenance and construction of buildings and roads and for industrial and agricultural development projects including the "grow more food" campaign, water-works, irrigation, Hydro-electric and Sewage disposal schemes.	*Nil.*
14.	Plant, stores and raw materials for and finished products of the following:— A. **Factories:—** Ordnance, cement, fertilizers, jute pressing, match, non-ferrous and alloy, paper, chemical, cotton ginning and pressing, ice, bobbin, cigarettes, cigars and tobacco,	

Sl. No. (1)	Description of goods (2)	Condition for special transport facilities or preference. (3)
	glass and ceramic, paint and varnish, refractory, bricks, rubber, soap, starch, tanneries and leather boot and shoe, biscuits and confectionery, asbestos and asbestos cement, glue, jam, preserve and squash, mill board and straw board, aluminum, veneer and plywood, button, carpet, resin, machine and tools, hume pipe, opium and gas. ***b. Mills:—*** Rice and flour, sugar, textile, vegetable ghee and vegetable oil and bone. ***C. Other Industrial Works:—*** Iron and steel, collieries, distilleries, mineral oil production, electric and electric supply undertakings, printing presses (including security presses and mints), mining, breweries and potteries.	
15.	Raw materials such as cotton, silk, jute, wool, hides (including hide salts), pelts and skins, tea, coffee, timber, bamboos, tobacco, hair, hemp and lac.	*Nil.*
16.	Fruits (fresh and dry) including dates, coconuts ad ground nuts.	*Nil.*
17.	Air crafts, motor vehicles including tractors, motor cycles, cycles and their parts (including tyres and tubes).	*Nil.*
18.	Imported goods such as iron and steel, paper including newsprints,	*Nil.*

Sl. No. (1)	Description of goods (2)	Condition for special transport facilities or preference. (3)
	mica, and manganese, cigarettes and cigars, electrical appliances, equipments and fittings, including batteries and electrodes, kyanite, resin and rosins, pipe, books, stationery and school requirements and other consumer goods.	
19.	Aluminum, brass, copper, bronze, bell metal, zinc, antimony, lead and tin, nickel sheets, slabs, ingots, and finished products and scrap thereof.	*Nil.*
20.	Personal and household effects, furniture and motor cars of Government servants and senior business officials on transfer or retirement, and also household effects of others and records and stores of Government offices.	*Nil.*
21.	Wagons required for direct loading or unloading of ships in the port areas.	*Nil.*
22.	Other miscellaneous goods such as— 1. Betel nuts. 2. Bidi and bidi leaves. 3. Grinding stone and grinding wheels. 4. Shooks and staves. 5. Samai. 6. Soap stone. 7. Varagu. 8. Canes. 9. Crucibles. 10. Myrabolams. 11. [1][100 Chrome Ore].]	*Nil.*

[1] *Added by the Ministry of Communications Notification No.1301-T., dated the 28th June, 1948, see Gaz. of P., 1948., Pt.I, p.316.*

THE RECUSANT WITNESSES ACT, 1853

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26. Persons absconding, etc, to avoid service of summons, etc., liable for damages

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[1][THE RECUSANT WITNESSES ACT, 1853]

ACT No. XIX OF 1853

[2nd December, 1853]

An Act to amend the Law of Evidence in the Civil Courts of the East India Company in the Bengal Presidency.

1-18. [Repeals; who may be witnesses; manner of summoning witnesses; contents of summons; summons how served; person summoned to produce a document.] Rep. by Act X of 1861.

19. [Witness not a party to suit not bound to produce his own title-deeds.] Rep. by the Indian Evidence Act, 1872 (I of 1872).

20-25. [Privileged communications; punishment for non-compliance with summons.] Rep. by Act X of 1861.

26. Persons absconding, etc, to avoid service of summons, etc., liable for damages. Any person, whether a party to the suit or not, to whom a summons to attend and give evidence or produce a document shall be personally delivered, and who shall, without lawful excuse, neglect or refuse to obey such summons, or who shall be proved to have absconded or kept out of the way to avoid being served with such summons, and any person who, being in Court and upon being required by the Court to give evidence or produce a document in his possession, shall, without lawful excuse, refuse to give evidence or sign his deposition, or to produce a document in his possession,

shall [2]* * * be liable to the party at whose request the summons shall have been issued, or at whose instance he shall be required to give evidence, or produce the document, for all damages which he may sustain in consequence of such neglect, or refusal, or of such absconding, or keeping out of the way as aforesaid, to be recovered in a civil action.

27-39. [Property of person absconding liable for damages; costs and fines; appeal; postponement of trial; evidence to be taken down; evidence of females; power to require further evidence ; false evidence of parties punishable; deposition by parties not to be used in their own favour; no appeal against order for summons of witnesses.] Rep. by Act X of 1861.

40. [Documents referred to as a material proof to be filed with pleadings.] Rep. by Act X of 1855.

41-44. [Local extent; commencement.] Rep. by Act X of 1861.

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Date: 13-09-2024

[1]Short title given by the Amending Act, 1897 (5 of 1897), Sch. III.
[2]The words "in addition to any proceedings under this Act, "rep. by the Amending Act, 1891 (12 of 1891).

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THE REGISTRATION ACT, 1908

[1]ACT NO. XVI OF 1908

[18th December, 1908]

An Act to consolidate the enactments relating to the Registration of Documents.

WHEREAS it is expedient to consolidate the enactments relating to the registration of documents;

It is hereby enacted as follows:—

PART I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the [2]*Registration Act, 1908.

(2) It extends to [3][the whole of Pakistan], except such districts or tracts of country as the [4][Provincial Government] may[5]* * * exclude from its operation.

(3) It shall come into force on the first day of January, 1909.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(1) "addition" means the place of residence, and the profession, trade, rank and title, (if any) of a person described,[6] * * *and his father's name, or where he is usually described as the son of his mother, then his mother's name:

(2) "book" includes a portion of a book and also any number of sheets connected together with a view of forming a book or portion of a book:

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1908, Pt. V, p. 325, for Report of Select Committee, *see ibid*., 1908, Pt. V. p. 387; and for Proceeding in Council, *see ibid*.,1908, Pt. VI, pp. 148, 154 and 182.
This Act has been declared to be in force in Baluchistan by s. 3 of the British Baluchistan Laws Regulation, 1913, (2 of 1913).
It has been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499
It has been extended to the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953), as amended.
It has been extended to the Khairpur State by the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O. 5 of 1953), as amended.
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.
It has been amended in Sind by the Transfer of Property and the Indian Registration (Sind Amdt.) Act, 1939 (Sind 14 of 1939) and the Indian Registration (Amdt.) Act, 1946 (Sind 7 of 1946).
It has been amended in the Punjab by the Indian Registration (Punjab Amdt.) Act, 1941 (Punjab 8 of 1941).
It has also been applied to Phulera in the excluded Area of Upper Tanawal to the extent the Act is applicable in the N.-W.F.P., and has been extended to the Excluded Area of Upper Tanawal other than Phulera by the N.-W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950 and declared to be in force in that area with effect from the 1st June, 1951, *see* N.- W.F.P. Gazette Ext., dated the 1st June, 1951.
The Act, as in force in the North-West Frontier Province immediatly before the commencement of N.W.F.P. Regulation No. II of 1974, has been applied to the Provincially Administered Tribal Areas of Chitral, Dir, Kalam, Swat and Malakand Protected Area, by N.-W.F.P. Regulation No II of 1974, s.3.

[2]The word "Indian" Omitted by A.O,. 1949.

[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960) s. 3 and 2nd Sch. (*with effect from 14th October, 1955*), for "all the provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "the whole of British India".

[4]Subs. by A.O., 1937, for "L.G.".

[5]The words "with the previous sanction of the G.G. in C." omitted by the Devolution Act, 1920 (38 of 1920), s. 2 and First Sch.

[6]The words, comma and brackets "and, in the case of a native of [Pakistan] his caste (if any)" omitted by Ordinance 21 of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October,1955*). The word in crochet was subs. by A. O., 1949, for "India".

[1][(2a) "co-operative society" means a co-operative society registered under the Co-operative Societies Act, 1912 (II of 1912), or under any other law for the time being in force relating to the registration of co-operative societies :]

(3) "district" and "sub-district" respectively mean a district and sub-district formed under this Act:

(4) "District Court" includes the High Court in its ordinary original civil jurisdiction:

(5) "endorsement" and "endorsed" include and apply to an entry in writing by a registering officer on a rider or covering slip to any document tendered for registration under this Act:

[2][(6) "immoveable property" includes land, buildings, benefits to arise out of land and things attached to the earth, or permanently fastened to anything attached to the earth, hereditary allowances, rights to ways, lights, ferries and fisheries but does not Include—

(a) standing timber, growing crops or grass whether immediate severance thereof it intended or not;

(b) fruit upon and juice in trees whether in existence or to grow in future; and

(c) machinery embedded in or attached to the earth, when dealt with apart from the land:]

[3][(7) "lease" includes a counter-part, kabuliyat and an undertaking to cultivate or occupy:]

(8) "minor" means a person who, according to the personal law to which he is subject, has not attained majority:

[3][(9) "moveable property" means property of every description, except immoveable property:]

(10) "representative" includes the guardian of a minor and the committee or other legal curator of a lunatic or idiot.

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PART II

OF THE REGISTRATION-ESTABLISHMENT

3. Inspector-General of Registration. — (1) The [4][Provincial Government] shall appoint an officer to be the Inspector-General of Registration for the territories subject to such Government:

Provided that the [4][Provincial Government] may, instead of making such appointment, direct that all or any of the powers and duties hereinafter conferred and imposed upon the Inspector-General shall be exercised and performed by such office or officers, and within such local limits, as the [4][Provincial Government] appoints in this behalf.

[1]Clause (2a) ins. by the Registration Act (Amdt.) Ordinance, 1961 (32 of 1961), s. 2.
[2]Subs. by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 2, for the original clause.
[3]Subs. ibid.
[4]Subs. by A. O., 1937, for "L. G.".

(2) Any Inspector-General may hold simultaneously any other office [1][in the service of the State].

4. [*Branch Inspector-General of Sindh*.] *Rep. by A.O.,1937.*

5. Districts and sub-districts.—(1) For the purposes of this Act, the [2][Provincial Government] shall [3]form districts and sub-districts, and shall prescribe, and may alter, the limits of such districts and sub-districts.

(2) The district and sub-districts formed under this section, together with the limits thereof, and every alteration of such limits, shall be notified in the [4][official Gazette].

(3) Every such alteration shall take effect on such day after the date of the notification as is therein mentioned.

[5]**6. Registrars and Sub-Registrars.**— The [2][Provincial Government] may appoint such persons, whether public officers or not, as it thinks proper, to be Registrars of the several districts, and to be Sub-Registrars of the several sub-districts, formed as aforesaid, respectively.

[6]* * * * * * *

7. Offices of Registrars and Sub-Registrars.—[2](1) The [2][Provincial Government] shall establish in every district an office to be styled the office of the Registrar and in every sub-district an office or offices to be styled the office of the Sub-Registrar or the offices of the Joint Sub-Registrars.

(2) The [2][Provincial Government] may amalgamate with any office of a Registrar any office of a Sub-Registrar subordinate to such Registrar, and may authorize any Sub-Registrar whose office has been so amalgamated to exercise and perform, in addition to his own powers and duties, all or any of the powers and duties of the Registrar to whom he is subordinate:

Provided that no such authorization shall enable a Sub-Registrar to hear an appeal against an order passed by himself under this Act.

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8. Inspectors of Registration offices.—(1) The [2][Provincial Government] may also appoint officers, to be called Inspectors of Registration-offices, and may prescribe the duties of such officers[7].

(2) Every such Inspector shall be subordinate to the Inspector-General.

9. [*Military Cantonments may be declared sub-districts or districts.*] *Rep. by the Repealing and Amending Act, 1927(X o f 1927), s. 3 and Second Schedule*.

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[1]Subs. by A. O., 1961, Art. 2 and Sch. (*with effect from the 23rd March 1956*), for "under the Crown" which had been subs., by A. O., 1937, for "under Government".
[2]Subs. by A. O., 1937, for "L. G.".
[3]For Notifin. in respect of Sind, directing that the Province of Sind shall be divided into nine (9) Registration Districts, *see* Sind Govt. Gazette, 1954, Pt. I, p. 137.
For Notifin. of Registration Districts consisting of the sub-districts, *see* Sind Govt. Gazette, 1954, Pt. I, p. 513.
[4]Subs. by A. O., 1937, for "local official Gazette".
[5]S. 6 has been amended in its application to the Province of Sind by the Indian Registration (Amdt.) Act, 1946 (Sind Act 7 of 1946), s. 2.
[6]The proviso to s. 6, ins. by the Decentralization Act, 1914 (4 of 1914), s. 2 and Sch. Pt. I, omitted by A. O., 1937.
[7]The proviso to sub-section (1) of s. 8 ins. by the Indian Registration (Bombay Amdt.) Act, 1929 (Bom. 5 of 1929), s. 2, omitted by A.O., 1937.

10. Absence of Registrar or vacancy in his office.—(1) When any Registrar, [1]* * * is absent otherwise than on duty in his district, or when his office is temporarily vacant, any person whom the Inspector-General appoints in this behalf, or, in default of such appointment, the Judge of the District Court within the local limits of whose jurisdiction the Registrar's office is situate, shall be the Registrar during such absence or until the [2][Provincial Government] fills up the vacancy.

[3]* * * * * * *

11. Absence of Registrar on duty in his district.— When any Registrar is absent from his office on duty in his district, he may appoint any Sub-Registrar or other person in his district to perform, during such absence, all the duties of a Registrar except those mentioned in sections 68 and 72.

12. Absence of Sub-Registrar or vacancy in his office.— When any Sub-Registrar is absent, or when his office is temporarily vacant, any person whom the Registrar of the district appoints in this behalf shall be Sub-Registrar during such absence, or until [4][the vacancy is filled up].

13. Report to Provincial Government of appointments under sections 10, 11 and 12.—(1) [5]* * * All appointments made under section 10, section 11 or section 12 shall be reported to the [2][Provincial Government] by the Inspector-General.

(2) Such report shall be either special or general, as the [2][Provincial Government] directs.

[6]* * * * * * *

14. Establishment of registering officers.—

[6]* * * * * * *

(2) The [2][Provincial Government] may allow proper establishments for the several offices under this Act.

15. Seal of registering officers.— The several Registrars and Sub-Registrars shall use a seal bearing the following inscription in English and in such other language as the [2][Provincial Government] directs:— "The seal of the Registrar (or of the Sub-Registrar) of."

16. Register-books and fire-proof boxes.—(1) The [2][Provincial Government] shall provide for the office of every registering officer the books necessary for the purposes of this Act.

(2) The books so provided shall contain the forms from time to time prescribed by the Inspector-General with the sanction of the [2][Provincial Government], and the pages of such books shall be consecutively numbered in print, and the number of pages in each book shall be certified on the title-page by the officer by whom such books are issued.

(3) The [2][Provincial Government] shall supply the office of every Registrar with a fire-proof box, and shall in each district make suitable provision for the safe custody of the records connected with the registration of documents in such district.

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[1]The words "other than the Registrar of a district including a Presidency-town" omitted by A.O., 1949.
[2]Subs. by A. O.,1937, for "L. G.".
[3]Sub-section (2) omitted, by A.O.1949.
[4]Subs., by the Decentralization Act, 1914 (4 of 1914), s. 2 and Sch.,Pt. I, for "the L. G. fills up the vacancy".
[5]The words "All appointments made by the Inspector-General under section 6 and", ins. Ibid., were omitted by A. O..,1937.
[6]Sub-section (3) of s. 13 and sub-section (1) of s. 14 relating to the suspension, removal, dismissal and remuneration of persons appointed under the Act were omitted by A.O., 1937. These conditions of service are now regulated by rules under s. 241 (2) of the G. of I. Act, 1935.

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PART III

OF REGISTRABLE DOCUMENTS

17. Documents of which registration is compulsory.— (1) The following documents shall be registered, if the property to which they relate is situate in a district in which, and if they have been executed on or after the date on which, Act No. XVI of 1864, or the Indian Registration Act, 1866 (XX of 1866), or the Indian Registration Act, 1871 (VIII of 1871), or the Indian Registration Act, 1877 (III of 1877), or this Act came or comes into force, namely:—

(a) instruments of gift of immoveable property;

(b) other non-testamentary instruments which purport or operate to create, declare, assign, limit or extinguish, whether in present or in future, any right, title or interest, whether vested or contingent, of the value of one hundred rupees and upwards, to or in immoveable property;

[1][*Explanation.*— In the case of an assignment of a mortgage the consideration for the deed of assignment shall be deemed to be the value for registration;]

[1][*(ba)* an instrument which grants power to an attorney or which constitutes an agreement to create, declare, assign, limit or extinguish, by way of sale, any right, title or interest of the value of one hundred rupees and upward, to or in immovable property;]

(c) non-testamentary instruments [3][(other than the acknowledgment of a receipt or payment made in respect of any transaction to which an instrument registered under clause (o) relates)] which acknowledge the receipt or payment of any consideration on account of the creation, declaration, assignment, limitation or extinction of any such right, title or interest; and

(d) leases of immoveable property from year to year, or for any term exceeding one year, or reserving a yearly rent;

[4][*(e)* non-testamentary instruments transferring or assigning any decree or order of a Court or any award when such decree or order or award purports or operates to create, declare, assign, limit or extinguish, whether in present or in future, any right, title or interest, whether vested or contingent, of the value of one hundred rupees and upwards, to or in immoveable property:]

Provided that the [5][Provincial Government] may, by order published in the [6][official Gazette], exempt from the operation of this sub-section any leases executed in any district, or part of a district, the terms granted by which do not exceed five years and the annual rents reserved by which do not exceed fifty rupees.

(2) Nothing in clauses (b) and (c) of sub-section (1) applies to—

(i) any composition deed; or

(ii) any instrument relating to shares in a Joint Stock Company, notwithstanding that the assets of such Company consist in whole or in part of immoveable property; or

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[1]Explanation added by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 3.
[2]Ins. by the Registration (Amdt) Act, 2022 (XXXVIII of 2022), s.2.
[3]Ins.by the Registration (Amdt.) Ordinance, 1962 (45 of 1962) s.3.
[4]Clause (e) ins. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (21of 1929), s.10.
[5]Subs. by A. O., 1937, for "L. G.".
[6]Subs. ibid., for "local official Gazette".

(iii) any debenture issued by any such Company and not creating, declaring, assigning, limiting, or extinguishing any right, title or interest, to or in immoveable property except in so far as it entitles the holder to the security afforded by a registered instrument whereby the Company has mortgaged, conveyed or otherwise transferred the whole or part of its immoveable property or any interest therein to trustees upon trust for the benefit of the holders of such debentures; or

(iv) any endorsement upon or transfer of any debenture issued by any such Company; or

(v) any document not itself creating, declaring, assigning, limiting or extinguishing any right, title or interest of the value of one hundred rupees and upwards to or in immoveable property, but merely creating a right to obtain another document which will, when executed, create, declare, assign, limit or extinguish any such right, title or interest [1][except a document which grants power to an attorney or is an agreement to sell any right, title or interest of the said value in immovable property]; or

(vi) any decree or order of a Court [2][except a decree or order expressed to be made on a compromise and comprising immoveable property other than that which is the subject-matter of the suit or proceeding]; or

(vii) any grant of immoveable property by [3][the Government]; or

(viii) any instrument of partition made by a Revenue-officer; or

(ix) any order granting a loan or instrument of collateral security granted under [4]* * the Land Improvement Loans Act, 1883 (XIX of 1883); or

[5][*(x)* any order granting a loan under the [6][West Pakistan Agriculturist's Act, 1958 (W.P Act XVII of 1958)], the Agricultural Development Bank Ordinance, 1961(IV of 1961), or

under any other law for the time being in force relating to the advancement of loans for agricultural purposes, or any instrument under which a loan is granted by a co-operative society for any such purpose, or any instrument made for securing the repayment of a loan so granted; or]

(xi) any endorsement on a mortgage-deed acknowledging the payment of the whole or any part of the mortgage-money, and any other receipt for payment of money due under a mortgage [7]* * * ; or

(xii) any certificate of sale granted to the purchaser of any property sold by public auction by a Civil or Revenue-officer [8][; or]

[9][*(xiii)* any counter-part of a lease, where the lease corresponding thereto has itself been registered.]

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[1]Ins. by the Registration (Amdt) Act, 2022 (XXXVIII of 2022), s.2.
[2]Subs. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (21 of 1929), s. 10, for "and any award".
[3]The word "Government" was first subs. by A. O., 1937, and then amended by A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), to read as above.
[4]The words "the Land Improvement Act, 1871," omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch.
[5]Subs. by the Registration Act (Amdt.) Ordinance, 1961 (32 of 1961) s. 3, for the original clause.
[6]Subs. by Ordinance 27 of 1981, s.3 and Second Sch., for "Agriculturist's Loans Act, 1884".
[7]The words "when the receipt does not purport to extinguish the mortgage" omitted by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 3.
[8] Subs. ibid., for the full-stop.
[9]Clause (*xiii*) added, ibid.

[1][*Explanation*.— A document purporting or operating to effect a contract for the sale of immoveable property shall not be deemed to require or ever to have required registration by reason only of the fact that such document contains a recital of the payment of any earnest money or of the whole or any part of the purchase money.]

(3) Authorities to adopt a son, executed after the first day of January, 1872, and not conferred by a will, shall also be registered.

[2][18. **Documents of which registration is optional**. Any document not required to be registered under section 17 may also be registered under this Act.]

19. Documents in language not understood by registering officer. If any document duly presented for registration be in a language which the registering officer does not understand, and which is not commonly used in the district, he shall refuse to register the document, unless it be accompanied by a true translation into a language commonly used in the district and also by a true copy.

20. Documents containing interlineations, blanks, erasures or alterations.—(1) The registering officer may in his discretion refuse to accept for registration any document in which any interlineation, blank, erasure or alteration appears, unless the persons executing the document attest with their signatures or initials such interlineation, blank, erasure or alteration.

(2) If the registering officer registers any such document, he shall, at the time of registering the same, make a note in the register of such interlineation, blank, erasure or alteration.

21. Description of property and maps or plans.—(1) No non-testamentary document relating to immoveable property shall be accepted for registration unless it contains a description of such property sufficient to identify the same.

(2) Houses in towns shall be described as situate on the north or other side of the street or road (which should be specified) to which they front, and by their existing and former occupancies, and by their numbers if the houses in such street or road are numbered.

(3) Other houses and lands shall be described by their name, if any, and as being in the territorial division in which they are situate, and by their superficial contents, the roads and other properties on which they abut, and their existing occupancies, and also, whenever it is practicable, by reference to a Government map or survey.

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(4) No non-testamentary document containing a map or plan of any property comprised therein shall be accepted for registration unless it is accompanied by a true copy of the map or plan, or, in case such property is situate in several districts, by such number of true copies of the map or plan as are equal to the number of such districts.

22. Description of houses and land by reference to Government maps or surveys.—(1) Where it is, in the opinion of the [3][Provincial Government], practicable to describe houses, not being houses in towns, and lands by reference to a Government map or survey, the [3][Provincial Government] may, by rule made under this Act, require that such houses and lands as aforesaid shall, for the purposes of section 21, be so described.

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[1]Explanation ins. by the Indian Registration (Amdt.) Act, 1927, s. 2

[2]Subs. by Ordinance 45 of 1962, s. 4, for the original section 18, as amended by the Indian Registration (Sind Amdt.) Act, 1939 (Sind Act 14 of 1939), and the Indian Registration (Amdt.) Act, 1940 (33 of 1940), s. 2.

[3]Subs. by A. O., 1937, for "L. G.".

(2) Save as otherwise provided by any rule made under sub-section (1), failure to comply with the provisions of section 21, sub-section (2) or sub-section (3), shall not disentitle a document to be registered if the description of the property to which it relates is sufficient to identify that property.

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PART IV

OF THE TIME OF PRESENTATION

23. Time for presenting documents.— Subject to the provisions contained in sections 24, 25 and 26, no document other than a will shall be accepted for registration unless presented for that purpose to the proper officer within four months from the date of its execution:

Provided that a copy of a decree or order may be presented within four months from the day on which the decree or order was made, or, where it is appealable, within four months from the day on which it becomes final.

[1][**23A. Re-registration of certain documents**. Notwithstanding anything to the contrary contained in this Act, if in any case a document requiring registration has been accepted for registration by a Registrar or Sub-Registrar from a person not duly empowered to present the same, and has been registered, any person claiming under such document may, within four months from his first becoming aware that the registration of such document is invalid, present such document or cause the same to be presented, in accordance with the provisions of Part VI for re-registration in the office of the Registrar of the district in which the document was originally registered; and upon the Registrar being satisfied that the document was so accepted for registration from a person not duly empowered to present the same, he shall proceed to the re-registration of the document as if it had not been previously registered, and as if such presentation for re-registration was a presentation for registration made within the time allowed therefore under Part IV, and all the provisions of this Act, as to registration of documents, shall apply to such re-registration; and such document, if duly re-registered in accordance with the provisions of this section, shall be deemed to have been duly registered for all purposes from the date of its original registration :

Provided that, within three months from the twelfth day of September, 1917, any person claiming under a document to which this section applies may present the same or cause the same to be presented for re-registration in accordance with this section, whatever may have been the time when he first became aware that the registration of the document was invalid.]

24. Documents executed by several persons at different times.— Where there are several persons executing a document at different times, such document may be presented for registration and re-registration within four months from the date of each execution.

25. Provision where delay in presentation is unavoidable.—(1) If, owing to urgent necessity or unavoidable accident, any document executed, or copy of a decree or order made, in [2][Pakistan] is not presented for registration till after the expiration of the time hereinbefore prescribed in that behalf, the Registrar, in cases where the delay in presentation does not exceed four months, may direct that, on payment of a fine not exceeding ten times the amount of the proper registration-fee, such document shall be accepted for registration.

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[1]S. 23A ins. by the Indian Registration (Amdt.) Act, 1917 (15 of 1917), section 2.

[2]Subs. by the Central Laws (Statute Reforms) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of Federation' which had been subs. by A.O., 1949, for "British India",

(2) Any application for such direction may be lodged with a Sub-Registrar, who shall forthwith forward it to the Registrar to whom he is subordinate.

26. Documents executed out of the Pakistan, etc. — When a document purporting to have been executed by all or any of the parties out of [1][Pakistan] is not presented for registration till after the expiration of the time hereinbefore prescribed in that behalf, the registering officer, if satisfied—

(a) that the instrument was so executed, and

(b) that it has been presented for registration within four months after its arrival in [1][Pakistan],

may, on payment of the proper registration fee, accept such document for registration.

27. Wills may be presented or deposited at any time. — A will may at any time be presented for registration or deposited in manner hereinafter provided.

PART V

OF THE PLACE OF REGISTRATION

[2]28. Place for registering documents relating to land.—[3][(1)] Save as in this Part otherwise provided, every document mentioned in section 17, sub-section (1), clauses *(a)*, *(b)*, *(c)* [4][,(*d*) and *(e)*, section 17, sub-section (2), and section 18, in so for as such documents affects immoveable property] shall be presented for registration in the office of a Sub-Registrar within whose sub-district the whole or some portion of the property to which such document relates is situate.

[5][(2) Notwithstanding anything contained in sub-section (1),—

(a) after a document is registered, no party thereto shall be entitled to question the validity of its registration on the ground that the property which purported to give jurisdiction to the Sub-Registrar to register it either did not exist or was fictitious or insignificant or was not intended to be conveyed; and

(b) a document the registration of which is secured by the inclusion of a non-existent, fictitious or insignificant portion or item shall not in any manner affect the rights of a person who was not a party thereto and acquired rights in the property without notice of the transaction to which such document relates.]

29. Place for registering other documents.—(1) Every document [6][not being a document referred to in section 28 or a copy of a decree or order], may be presented for registration either in the office of the Sub-Registrar in whose sub-district the document was executed, or in the office of any other Sub-Registrar under the [7][Provincial Government] at which all the persons executing and claiming under the document desire the same to be registered.

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[1]Subs. by the Central Laws (Statute Reforms) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of Federation' which had been subs. by A.O., 1949, for "British India",

[2]This section has been amended in its application to the Province of Sind by the Transfer of Property and the Indian Registration (Sind Amdt.) Act, 1939 (Sind 14 of 1939).

[3]Renumbered by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 4.

[4]The original words "and (d) and section 18, clauses (a), (b) and (c)". have successively been amended by the Indian Registration (Amdt.) Act, 1940 (33 of 1940), s. 3 and Ordinance 45 of 1962, s. 5, to read as above.

[5]Sub-section (2) added by Ordinance 45 of 1962, s. 5.

[6]Subs. by the Repealing and Amending Act, 1940 (32 of 1940), s. 3 and Second Sch., for "other than a document referred to in section 28, and a copy of a decree or order".

[7]Subs. by A. O.1937, for "L.G.".

(2) A copy of a decree or order may be presented for registration in the office of the Sub-Registrar in whose sub-district the original decree or order was made, or, where the decree or order does not affect immoveable property, in the office of any other Sub-Registrar under the [1][Provincial Government] at which all the persons claiming under the decree or order desire the copy to be registered.

30. Registration by Registrars in certain cases.—(1) Any Registrar may in his discretion receive and register any document which might be registered by any Sub-Registrar subordinate to him.

[2][(2) Notwithstanding anything contained in section 28 any Registrar may receive and register any document without regard to the situation in any part of Pakistan of the property to which the document relates if he is satisfied that there is sufficient cause for doing so.]

31. Registration or acceptance for deposit at private residence.— [3][The presentation, registration or deposit of documents under this Act shall ordinarily] be made only at the office of the officer authorized to accept the same for registration or deposit:

Provided that such officer may on special cause being shown attend at the residence of any person desiring to present a document for registration or to deposit a will, and accept for registration or deposit such document or will.

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PART VI

OF PRESENTING DOCUMENTS FOR REGISTRATION

32. Persons to present documents for registration.— Except in the cases mentioned in [4]* * * section 89, every document to be registered under this Act, whether such registration be compulsory or optional, shall be presented [5]* * *,—

(a) by some person executing or claiming under the same, or, in the case of a copy of a decree or order, claiming under the decree or order, or

(b) by the representative or assign of such person, or

(c) by the agent of such person, representative or assign, duly authorized by power-of attorney executed and authenticated in manner hereinafter mentioned.

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[1]Subs. by A. O.1937, for "L.G.".
[2]Subs. by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 6, for the original sub-section (2) as amended by A.O., 1949, the Registration (Amdt.) Act, 1950 (69 of 1950), s.2. the Registration (Amdt). Act, 1957 (1 of 1958), s. 2 and the Central laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*)
[3]Subs. by Ordinance 45 of 1962, ss. 6 and 7, for "In Ordinary cases the registration or deposit of documents under this Act, shall".
[4]The words and figures "section 31 and" omitted ibid., s. 8.
[5]The words "at the proper registration-office" omitted, ibid.

33. Power-of attorney recognizable for purposes of section 32.—(1) For the purposes of section 32, the following powers-of-attorney shall alone be recognized, namely :—

(a) if the principal at the time of executing the power-of-attorney resides in any part of [1][Pakistan] in which this Act is for the time being in force, a power-of-attorney executed before and authenticated by the Registrar or Sub-Registrar within whose district or sub- district the principal resides;

(b) if the principal at the time aforesaid resides in any other part of [1][Pakistan], a power-of- attorney executed before and authenticated by any Magistrate;

(c) if the principal at the time aforesaid does not reside in [1][Pakistan] a power-of-attorney executed before and authenticated by a Notary Public, or any Court, Judge, Magistrate, [2][Pakistan] Consul or Vice-Consul or representative of [3]* * * the [4][Federal Government]:

Provided that the following persons shall not be required to attend at any registration-office or Court for the purpose of executing any such power-of-attorney as is mentioned in clauses *(a)* and *(b)* of this section, namely :—

(i) persons who by reason of bodily infirmity are unable without risk or serious inconvenience so to attend;

(ii) persons who are in jail under civil or criminal process; and

(iii) persons exempt by law from personal appearance in Court.

(2) In the case of every such person the Registrar or Sub-Registrar or Magistrate, as the case may be, if satisfied that the power-of-attorney has been voluntarily executed by the person purporting to be the principal, may attest the same without requiring his personal attendance at the office or Court aforesaid.

(3) To obtain evidence as to the voluntary nature of the execution, the Registrar or Sub-Registrar or Magistrate may either himself go to the house of the person purporting to be the principal, or to the jail in which he is confined, and examine him, or issue a commission for his examination.

(4) Any power-of-attorney mentioned in this section may be proved by the production of it without further proof when it purports on the face of it to have been executed before and authenticated by the person or Court hereinbefore mentioned in that behalf.

34. Enquiry before registration by registering officer.— (1) Subject to the provisions contained in this Part and in sections 41,43, 45, 69, 75, 77, 88, and 89, no document shall be registered under this Act, unless the persons executing such document, or their representatives, assigns or agents authorized as aforesaid, appear before the registering officer within the time allowed for presentation under sections 23, 24, 25 and 26:

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960. (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capita! of the Federation" which had been subs. by A O.,. 1949., for "British India".
[2]Subs. by A. O., 1961, Art. 2 and Sch. for "British" (*with effect from the 23rd March, 1956*.).
[3]The words "His Majesty or of" omitted ibid (*with effect from the 23rd March, 1956*).
[4]Subs. by F. A. O. 1975, Art. 2 and Table, for "Central Government". which was subs. by A.O., 1937, for "G. of 1".

Provided that, if owing to urgent necessity or unavoidable accident all such persons do not so appear, the Registrar, in cases where the delay in appearing does not exceed four months, may direct that on payment of a fine not exceeding ten times the amount of the proper registration fee, in addition to the fine, if any, payable under section 25, the document may be registered.

(2) Appearances under sub-section (1) may be simultaneous or at different times.

(3) The registering officer shall thereupon—

(a) enquire whether or not such document was executed by the persons by whom it purports to have been executed;

(b) satisfy himself as to the identity of the persons appearing before him and alleging that they have executed the document; and

(c) in the case of any person appearing as a representative, assign or agent, satisfy himself of the right of such person so to appear.

(4) Any application for a direction under the proviso to sub-section (1) may be lodged with a Sub- Registrar, who shall forthwith forward it to the Registrar to whom he is subordinate.

(5) Nothing in this section applies to copies of decrees or orders.

35. Procedure on admission and denial of execution respectively.— (1) (a) If all the persons executing the document appear personally before the registering officer and are personally known to him, or if he be otherwise satisfied that they are the persons they represent themselves to be, and if they all admit the execution of the document, or

(b) if in the case of any person appearing by a representative, assign or agent, such representative, assign or agent admits the execution, or

(c) if the person executing the document is dead, and his representative or assign appears before the registering officer and admits the execution,

the registering officer shall register the document as directed in sections 58 to 61, inclusive.

(2) The registering officer may, in order to satisfy himself that the persons appearing before him are the persons they represent themselves to be, or for any other purpose contemplated by this Act, examine any one present in his office.

(3) (a) If any person by whom the document purports to be executed denies its execution, or

(b) if any such person appears to the registering officer to be a minor, an idiot or a lunatic, or

(c) if any person by whom the document purports to be executed is dead, and his representative or assign denies its execution, the registering officer shall refuse to register the document as to the person so denying, appearing or dead:

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Provided that, where such officer is a Registrar, he shall follow the procedure prescribed in Part XII :

[1][Provided further that the [2][Provincial Government] may, by notification in the [3][official Gazette], declare that any Sub-Registrar named in the notification shall, in respect of documents the execution of which is denied, be deemed to be a Registrar for the purposes of this sub-section and of Part XII.]

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PART VII

OF ENFORCING THE APPEARANCE OF EXECUTANTS AND WITNESSES

36. Procedure where appearance of executant or witness is desired.— If any person presenting any document for registration or claiming under any document, which is capable of being so presented, desires the appearance of any person whose presence or testimony is necessary for the registration of such document, the registering officer may, in his discretion call upon such officer or Court as the [2][Provincial Government] directs in this behalf to issue a summons requiring him to appear at the registration office, either in person or by duly authorized agent, as in the summons may be mentioned, and at a time named therein.

37. Officer or Court to issue and cause service of summons.— The officer or Court, upon receipt of the peon's fee payable in such cases, shall issue the summons accordingly, and cause it to be served upon the person whose appearance is so required.

38. Persons exempt from appearance at registration office.—(1) (a) A person who by reason of bodily infirmity is unable without risk or serious inconvenience to appear at the registration-office, or

(b) a person in jail under civil or criminal process, or

(c) persons exempt by law from personal appearance in Court,

and who would but for the provision next hereinafter contained be required to appear in person at the registration-office, shall not be required so to appear.

(2) In the case of every such person the registering officer shall either himself go to the house of such person, or to the jail in which he is confined, and examine him or issue a commission for his examination.

39. Law as to summonses, commissions and witnesses.— The law in force for the time being as to summonses, commissions and compelling the attendance of witnesses, and for their remuneration in suits before Civil Courts, shall, save as aforesaid and *mutatis mutandis*, apply to any summons or commission issued and any person summoned to appear under the provisions of this Act.

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[1] Proviso ins. by the Indian Registration (Amdt.) Act, 1926 (13 of 1926), s.2.
[2] Subs. by A. O., 1937, for "L. G."
[3] Subs. ibid. for "local official Gazette".

PART VIII

OF PRESENTING WILLS AND AUTHORITIES TO ADOPT

40. Persons entitled to present wills and authorities to adopt.— (1) The testator, or after his death any person claiming as executor or otherwise under a will, may present it to any Registrar or Sub-Registrar for registration.

(2) The donor, or after his death the donee, of any authority to adopt, or the adoptive son, may present it to any Registrar or Sub-Registrar for registration.

41. Registration of wills and authorities to adopt.— (1) A will or an authority to adopt, presented for registration by the testator or donor, may be registered in the same manner as any other document.

(2) A will or authority to adopt presented for registration by any other person entitled to present it shall be registered if the registering officer is satisfied—

(a) that the will or authority was executed by the testator or donor, as the case may be;

(b) that the testator or donor is dead; and

(c) that the person presenting the will or authority is, under section 40, entitled to present the same.

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PART IX

[1][DEPOSIT AND DISPOSAL OF WILLS]

42. Deposit of wills.— [2][(1)] Any testator may, either personally or by duly authorized agent, deposit with any Registrar his will in a sealed cover superscribed with the name of the testator and that of his agent (if any) and with a statement of the nature of the document.

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[3][(2) The testator shall also endorse on the cover the name and address of the person to whom the original document shall be delivered after registration thereof, after his death.]

43. Procedure on deposit of wills.— On receiving such cover, the Registrar, if satisfied that the person presenting the same for deposit is the testator or his agent, shall transcribe in his Register-book No.5 the superscription aforesaid, and shall note in the same book and on the said cover the year, month, day and hour of such presentation and receipt, and the names of any persons who may testify to the identity of the testator or his agent, and any legible inscription which may be on the seal of the cover.

(2) The Registrar shall then place and retain the sealed cover in his fire-proof box.

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[1]Subs. by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 9, for "OF THE DEPOSIT OF WILLS".
[2]Re-numbered, *ibid*., s. 10.
[3]Sub-section (2) added *ibid*.

44. Withdrawal of sealed cover deposited under section 42.— If the testator who has deposited such cover wishes to withdraw it, he may apply, either personally or by duly authorized agent, to the Registrar who holds it in deposit, and such Registrar, if satisfied that the applicant is actually the testator or his agent, shall deliver the cover accordingly.

45. Proceedings on death of depositor.—(1) If, on the death of a testator who has deposited a sealed cover under section 42, application be made to the Registrar who holds it in deposit to open the same, and if the Registrar is satisfied that the testator is dead, he shall, in the applicant's presence, open the cover, and, at the applicant's expense, cause the contents thereof to be copied into his Book No.3 [1][and then deliver the deposited will to the nominee of the testator or his representative].

[2][(2) If, in respect of any will deposited, no steps are taken by the testator or other person under section 44 or sub-section (1) of this section, the Registrar shall follow the procedure hereinafter provided for the disposal of such will or sealed cover.]

46. Saving of certain enactments and powers of Courts.—(1) Nothing hereinbefore contained shall affect the provisions of section [3][294 of the Succession Act, 1925 (XXXIX of 1925)], [4]* * *or the power of any Court by order to compel the production of any wil1.

(2) When any such order is made, the Registrar shall, unless the will has been already copied under section 45, open the cover and cause the will to be copied into his Book No.3 and make a note on such copy that the original has been removed into Court in pursuance of the order aforesaid.

[5]**[46A.Destruction of wills.—**(1) Any will in deposit with a Registrar at the commencement of the Registration (Amendment) Ordinance, 1962, and any will thereafter deposited may be destroyed after following the procedure hereinafter provided, if the will is not registered before such destruction.

(2) Every registering officer shall on the first day of July in the year next after the commencement of the Registration (Amendment) Ordinance, 1962, and on the first day of July in every succeeding third year, send by post a notice to every depositor and his nominee, inquiring about the depositor's present address and shall enter on the cover and in his registers any new address supplied in response to such notice.

(3) If, as a result of such notice or in any other manner, the Registrar is satisfied that the testator has died, the Registrar shall, after making an entry in his books as to the death of the testator and the nature of the information on which he has acted, open the cover in the presence of a judicial officer (not below the rank of a Civil Judge or Munsif). He shall thereupon issue a notice to the executor, if any, and also to such other person or persons deriving any benefit under the will as the two officers may determine, informing them about the existence of the will and also that unless steps are taken within a period of six months therefrom for registration of the will the document shall be liable to be destroyed.

(4) Notwithstanding the expiry of the period specified in the notice, until the will is actually destroyed in accordance with the provisions of the destruction of Records Act, 1917 (V of 1917), the registration of the same can be effected, at the request of the person entitled thereto, on payment, of the proper charges.]

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[1]Added by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 11.
[2]Subs. *ibid,* for the original sub-section (2).
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981, (27 of 1981), s. 3 and Second Sch., for "259 of the Indian Succession Act, 1865".
[4]The words "of section 81 of the Probate and Administration Act, 1881," omitted *ibid.*, s.2 and Second Sch.
[5]Section 46A, ins. by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 12.

PART X

OF THE EFFECTS OF REGISTRATION AND NON-REGISTRATION

47. Time from which registered document operates.— A registered document shall operate from the time from which it would have commenced to operate if no registration thereof had been required or made, and not from the time of its registration.

48. Registered documents relating to property when to take effect against oral agreements. All non-testamentary documents duly registered under this Act, and relating to any property, whether moveable or immoveable shall take effect against any oral agreement or declaration relating to such property, unless where the agreement or declaration has been accompanied or followed by delivery of possession [1][and the same constitutes a valid transfer under any law for the time being in force:

Provided that a mortgage by deposit or title-deeds as defined in section 58 of the Transfer of Property Act, 1882 (IV of 1882), shall take effect against any mortgage-deed subsequently executed and registered which relates to the same property].

[2][**49. Effect of non-registration of documents required to be registered.**— No document required to be registered under this Act or under any earlier law providing for or relating to registration of documents shall—

(a) operate to create, declare, assign, limit or extinguish, whether in present or in future, any right, title or interest, whether vested or contingent, to or in immoveable property, or

(b) confer any power to adopt,

unless it has been registered.]

50. Certain registered documents relating to land to take effect against unregistered documents.— (1) Every document of the kinds mentioned in clauses (a), (b), (c) and (d) of section 17,.sub-section (1), [3][and every document registerable under section 18, in so far as such document affects immoveable property or acknowledges the receipt or payment of any consideration in respect of any transaction relating to immovable property], shall, if duly registered, take effect as regards the property comprised therein against every unregistered document relating to the same property, and not being a decree or order, whether such unregistered document be of the same nature as the registered document or not [4][:]

[5][Provided that the person in possess or of the property under an unregistered document prior in date, would be entitled to the rights under section 53A of the Transfer of Property Act, 1882 (IV of 1882) if the conditions of that section are fulfilled:

Provided further that the person in whose favour an unregistered document is executed shall be entitled to enforce the contract under the unregistered document in suit for specific performance against a person claiming under a subsequent registered document, subject to the provisions of clause (b) of section 27 of the Specific Relief Act, 1877 (I of 1877).]

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[1]Ins. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (21 of 1929), s. 10.
[2]Subs. by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 13, for the original section 49, as amended by Act 21 of 1929, s. 10.
[3]Subs. by Ordinance 45 of 1962, s. 14, for "and clauses (a) and (b) of section 18".
[4]Subs. *ibid.*, for the full-stop.
[5]Provisos added, *ibid.*

section 17. certain registered documents relating to land to take effect against unregistered

(2) Nothing in sub-section (1) applies to leases exempted under the proviso to sub-section (1) of section 17 or to any document mentioned in sub-section (2) of the same section, or to any registered document which had not priority under the law in force at the commencement of this Act.

Explanation.—In cases where Act No. XVI of 1864 or the Indian Registration Act, 1866 (XX of 1866), was in force in the place and at the time in and at which such unregistered document was executed, "unregistered" means not registered according to such Act, and, where the document is executed after the first day of July, 1871, not registered under the Indian Registration Act, 1871 (VIII of 1871), or the Indian Registration Act, 1877 (III of 1877), or this Act.

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PART XI

OF THE DUTIES AND POWERS OF REGISTERING OFFICERS

(A) As to the Register-books and Indexes

51. Register-books to be kept in the several offices.—(1) The following books shall be kept in the several offices hereinafter named, namely :—

A—In all registration offices—

Book 1, "Register of non-testamentary documents relating to immoveable property";

Book 2, "Record of reasons for refusal to register";

Book 3, "Register of wills and authorities to adopt";

and

Book 4, "Miscellaneous Register";

B—In the offices of Registrars—

Book 5, "Register of deposits of wills."

(2) In Book 1 shall be entered or filed all documents or memoranda registered under sections 17, 18 and 89 which relate to immoveable property, and are not wills.

(3) In Book 4 shall be entered all documents registered under [1]* * * section 18 which do not relate to immoveable property.

(4) Nothing in this section shall be deemed to require more than one set of books where the office of the Registrar has been amalgamated with the office of a Sub-Registrar.

[2][(5) If, in the opinion of the Registrar, any of the books mentioned in sub-section (1) is in danger of being destroyed or becoming illegible wholly or partially, the Registrar may, by a written order, direct such book or portion thereof as he thinks fit, to be recopied and authenticated in such manner as may be prescribed by rules, and the copy prepared and authenticated under such direction shall, for all purposes of this Act and of the Evidence Act, 1872 (I of 1872), be deemed to be the original book or portion and all references in this Act to the original book shall be deemed to be to the book or portion so recopied and authenticated.]

[1]The-words and brackets "c1auses of (d) and (f)" omitted by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s.15.
[2] Sub-section (5) added *ibid*.

52. Duties of registering officers when document presented.—(1) (a) The day, hour and place of presentation, and the signature of every person presenting a document for registration, shall be endorsed on every such document at the time of presenting it ;

(b) a receipt for such document shall be given by the registering officer to the person presenting the same; and

(c) subject to the provisions contained in section 62, every document admitted to registration shall without unnecessary delay be copied in the book appropriated therefor according to the order of its admission.

(2) All such books shall be authenticated at such intervals and in such manner as is from time to time prescribed by the Inspector-General.

53. Entries to be numbered consecutively.— All entries in each book shall be numbered in a consecutive series, which shall commence and terminate with the year, a fresh series being commenced at the beginning of each year.

54. Current indexes and entries therein.— In every office in which any of the books hereinbefore mentioned are kept, there shall be prepared current indexes of the contents of such books; and every entry in such indexes shall be made, so far as practicable, immediately after the registering officer has copied, or filed a memorandum of, the document to which it relates.

55. Indexes to be made by registering officers, and their contents.—(1) Four such indexes shall be made in all registration offices, and shall be named, respectively, Index No 1, Index No. II, Index No. III and Index No. IV.

(2) Index No. I shall contain the names and additions of all persons executing and of all persons claiming under every document entered or memorandum filed in Book No.1.

(3) Index No. II shall contain such particulars mentioned in section 21 relating to every such document and memorandum as the Inspector-General from time to time directs in that behalf.

(4) Index No. III shall contain the names and additions of all persons executing every will and authority entered in Book No.3, and of the executors and persons respectively appointed thereunder, and after the death of the testator or the donor (but not before) the names and additions of all persons claiming under the same.

(5) Index No. IV shall contain the names and additions of all persons executing and of all persons claiming under every document entered in Book No.4.

(6) Each Index shall contain such other particulars, and shall be prepared in such form, as the Inspector-General from time to time directs.

[1][(7) If, in the opinion of the Registrar, any of the indexes mentioned in sub-section (1) is in danger of being destroyed or becoming illegible wholly or partially, the Registrar may, by a written order, direct such index or portion thereof, as he thinks fit, to be recopied in such manner as may be prescribed by rules, and any copy so prepared shall, for the purposes of this Act and of the Evidence Act, 1872 (I of 1872), be deemed to be the original index or portion and all references in this Act to the original index or portion shall be deemed to be references to the index or portion prepared as aforesaid.]

[1]Sub-section (7) added by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 16.

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56. [*Copy of entries in Indexes Nos. I, II and III to be sent by Sub-Registrar to Registrar and filed.*] *Rep. by the Indian Registration (Amendment) Act,* 1929 *(XV of* 1929), *s.* 2.

57. Registering officers to allow inspection of certain books and indexes, and to given certified copies of entries.—(1) Subject to the previous payment of the fees payable in that behalf, the Books Nos. 1 and 2 and the Indexes relating to Book No.1 shall be at all times open to inspection by any person applying to inspect the same; and, subject to the provisions of section 62, copies of entries in such books shall be given to all persons applying for such copies.

(2) Subject to the same provisions, copies of entries in Book No.3 and in the Index relating thereto shall be given to the persons executing the documents to which such entries relate, or to their agents, and after the death of the executants (but not before) to any person applying for such copies.

(3) Subject to the same provisions, copies of entries in Book No.4 and in the Index relating thereto shall be given to any person executing or claiming under the documents to which such entries respectively refer, or to his agent or representative.

(4) The requisite search under this section for entries in Books Nos. 3 and 4 shall be made only by the registering officer.

(5)All copies given under this section shall be signed and sealed by the registering officer, and shall be admissible for the purpose of proving the contents of the original documents.

(*B*) *As to the Procedure on admitting to Registration*

58. Particulars to be endorsed on documents admitted to registration.—(1) On every document admitted to registration, other than a copy of a decree or order, or a copy sent to a registering officer under section 89, there shall be endorsed from time to time the following particulars, namely:—

(*a*) the signature and addition of every person admitting the execution of the document, and, if such execution has been admitted by the representative, assign or agent of any person, the signature and addition of such representative, assign or agent;

(*b*) the signature and addition of every person examined in reference to such document under any of the provisions of this Act; and

(*c*) any payment of money or delivery of goods made in the presence of the registering officer in reference to the execution of the document, and any admission of receipt of consideration, in whole or in part, made in his presence in reference to such execution.

(2) If any person admitting the execution of a document refuses to endorse the same, the registering officer shall nevertheless register it, but shall at the same time endorse a note of such refusal.

59. Endorsements to be dated and signed by registering officer.— The registering officer shall affix the date and his signature to all endorsements made under sections 52 and 58, relating to the same document and made in his presence on the same day.

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60. Certificate of registration.—(1) After such of the provisions of sections 34, 35, 58 and 59 as apply to any document presented for registration have been complied with, the registering officer shall endorse thereon a certificate containing the word "registered," together with the number and page of the book in which the document has been copied.

(2) Such certificate shall be signed, sealed and dated by the registering officer, and shall then be admissible for the purpose of proving that the document has been duly registered in manner provided by this Act, and that the facts mentioned in the endorsements referred to in section 59 have occurred as therein mentioned.

61. Endorsements and certificate to be copied and document returned.—(1) The endorsements and certificate referred to and mentioned in sections 59 and 60 shall thereupon be copied into the margin of the Register-book, and the copy of the map or plan (if any) mentioned in section 21 shall be filed in Book No.1.

(2) The registration of the document shall thereupon be deemed complete, and the document shall then be returned to the person who presented the same for registration, or to such other person (if any) as he has nominated in writing in that behalf on the receipt mentioned in section 52.

62. Procedure on presenting document in language unknown to registering officer.—(1) When a document is presented for registration under section 19, the translation shall be transcribed in the register of documents of the nature of the original, and, together with the copy referred to in section 19, shall be filed in the registration office.

(2) The endorsements and certificate respectively mentioned in sections 59 and 60 shall be made on the original, and, for the purpose of making the copies and memoranda required by sections 57, 64, 65 and 66, the translation shall be treated as if it were the original.

63. Power to administer oaths and record of substance of statements.—(1) Every registering officer may at his discretion administer an oath to any person examined by him under the provision of this Act.

(2) Every such officer may also at his discretion record a note of the substance of the statement made by each such person, and such statement shall be read over, or (if made in a language with which such person is not acquainted) interpreted to him in a language with which he is acquainted, and, if he admits the correctness of such note, it shall be signed by the registering officer.

(3) Every such note so signed shall be admissible for the purpose of proving that the statements therein recorded were made by the persons and under the circumstances therein stated.

(C) *Special Duties of Sub-Registrar*

64. Procedure where document relates to land in several sub-districts. Every Sub-Registrar on registering a non-testamentary document relating to immoveable property not wholly situate in his own sub-district shall make a memorandum thereof and of the endorsement and certificate (if any) thereon, and send the same to every other Sub-Registrar subordinate to the same Registrar as himself in whose sub-district any part of such property is situate, and such Sub-Registrar shall file the memorandum in his Book No.1.

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65. Procedure where document relates to land in several districts.—(1) Every Sub-Registrar on registering a non-testamentary document relating to immoveable property situate in more districts than one shall also forward a copy thereof and of the endorsement and certificate (if any) thereon, together with a copy of the map or plan (if any) mentioned in section 21, to the Registrar of every district in which any part of such property is situate other than the district in which his own sub- district is situate.

(2) The Registrar on receiving the same shall file in his Book No.1 the copy of the document and the copy of the map or plan (if any), and shall forward a memorandum of the document to each of the Sub-Registrar subordinate to him within whose sub-district any part of such property is situate: and every Sub- Registrar receiving such memorandum shall file it in his Book No. 1.

(D) *Special Duties of Registrar*

66. Procedure after registration of documents relating to land.—(1) On registering any non-testamentary document relating to immoveable property the Registrar shall forward a memorandum of such document to each Sub-Registrar subordinate to himself in whose sub-district any part of the property is situate.

(2) The Registrar shall also forward a copy of such document, together with a copy of the map or plan (if any) mentioned in section 21, to every other Registrar in whose district any part of such property is situate.

(3) Such Registrar on receiving any such copy shall file it in his Book No. 1, and shall also send a memorandum of the copy to each of the Sub-Registrars subordinate to him within whose sub-district any part of the property is situate.

(4) Every Sub-Registrar receiving any memorandum under this section shall file it in his Book No.1.

67. Procedure after registration under section 30, sub-section (2).— On any document being registered under section 30, sub-section (2), a copy of such document and of the endorsements and certificate thereon shall be forwarded to every Registrar within whose district any part of the property to which the instrument relates is situate, and the Registrar receiving such copy shall follow the procedure prescribed for him in section 66, sub-section (1).

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(E) Of the Controlling Powers of Registrars and Inspectors-General

68. Power of Registrar to superintend and control Sub-Registrars.—(1) Every Sub-Registrar shall perform the duties of his office under the superintendence and control of the Registrar in whose district the office of such Sub-Registrar is situate.

(2) Every Registrar shall have authority to issue (whether on complaint or otherwise) any order consistent with this Act which he considers necessary in respect of any act or omission of any Sub-Registrar subordinate to him or in respect of the rectification of any error regarding the book or the office in which any document has been registered.

69. Power of Inspector-General to superintend registration officers and make rules.—(1) The Inspector-General shall exercise a general superintendence over all the registration offices in the territories under the [1][Provincial Government], and shall have power from time to time to make rules[2] consistent with this Act—

(a) providing for the safe custody of books, papers and documents [3]* * *;

(b) declaring what languages shall be deemed to be commonly used in each district;

(c) declaring what territorial divisions shall be recognized under section 21 ;

(d) regulating the amount of fines imposed under sections 25 and 34, respectively;

(e) regulating the exercise of the discretion reposed in the registering officer by section 63 ;

(f) regulating the form in which registering officers are to make memoranda of documents;

(g) regulating the authentication by Registrars and Sub-Registrars of the books kept in their respective offices under section 51 ;

(h) declaring the particulars to be contained in Indexes Nos. I, II, III and IV, respectively;

(i) declaring the holidays that shall be observed in the registration-offices ; and

(j) generally, regulating the proceedings of the Registrars and Sub-Registrars.

(2) The rules so made shall be submitted to the [1][Provincial Government] for approval, and, after they have been approved, they shall be published in the official Gazette, and on publication shall have effect as if enacted in this Act.

70. Power of Inspector-General to remit fines.— The Inspector-General may also, in the exercise of his discretion, remit wholly or in part the difference between any fine levied under section 25 or section 34, and the amount of the proper registration fee.[4]

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[5][PART XI-A

OF THE COPYING OF DOCUMENTS BY MEANS OF PHOTOGRAPHY.

70-A. Application of this Part.— This Part shall apply to such areas only as are specified in a notification issued under section 70-D.

70-B. Definition. For the purposes of this Part "Photo Registrar", means a photo-Registrar appointed under this Part.

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[1]Subs. by A. O., 1937, for "L. G.".
[2]For rules under this section, see the different local R. and O.
[3]The words "and also for the destruction of such books, papers and documents as need no longer be kept" omitted by the Destruction of Records Act, 1917 (5 of 1917), s. 6 and Sch.
[4]For Part XIA: Of the Copying of Documents by means of Photography, ins. for Bombay Presidency, see the Indian Registration (Bombay Amendment) Act, 1930 (17 of 1930), s. 3. The proviso to s. 70B of that Part was omitted by A. O., 1937.
[5]New Part XIA ins. by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 17.

70-C. Appointment of Photo-Registrars.—The Provincial Government may appoint a Registrar or Sub-Registrar or any other person to be a Photo-Registrar for the performance of duties under this Part:

Provided that the Provincial Government may, subject to such restrictions and conditions as it thinks fit, delegate the power of appointing Photo-Registrars to the Inspector-General of Registration.

70-D. Documents may be photographed in areas notified by Government.—(1) The provincial Government may, by notification in the official Gazatte, direct that in any district or sub-district specified in the notification copies of documents admitted to registration under this Act shall be made by means of Photography.

(2) On the issue of such notification it shall be translated into [1] * * * Urdu, [1]* * * and shall be posted in a conspicuous place at the registration offices affected by the notification.

70-E. Application of Act to areas notified under section 70-D.—In any district or sub-district in respect of which a notification has been issued under section 70-D, the provisions of this Act shall, for the purposes of this Part, be subject to the following modifications, namely :—

(1) (a) Every document admitted to registration under section 35 or section 41 shall on every page—

(i) be signed in the presence of the registering officer by the person or any one of the persons presenting the document for registration; and

(ii) be carefully marked with an identification stamp and the serial number of the document.

(b) it shall then be transmitted by the registering officer, unless he is himself the Photo- Registrar, to the Photo-Registrar, and the registering officer or the Photo-Registrar, as the case may be, shall cause each side of each page of such document together with all stamps, endorsements, seals, signatures, thumb-impressions and certificates appearing thereon to be photographed without subtraction or alteration. He may for this purpose cut or untie, without breaking any seals, the thread or ribbon, if any, wherewith the pages of the document are sewn together, in order to separate the pages of the document, and, as soon as the document has been photographed, he shall, as far as practicable, exactly rebind the document as before, and, if he has cut the thread or ribbon shall seal it over the joint with his seal:

Provided that the party presenting the document for registration shall, if he so desires, be allowed to be present and watch the unbinding, rebinding and sealing of the document:

Provided further that if the party presenting the document so requests the document shall be returned to him unbound:

[1]The words "Bengali in the case of the Province of East Pakistan, and in" and "in the case of the Province of West Pakistan," omitted by F.A.O. 1975, Art. 2 ,and Sch.

Provided also that before or after transmission of the document to the Photo-Registrar the party presenting the document may require the registering officer to have it copied by hand under section 52, or if the document has been presented for registration under section 19 its translation copied under section 62 on payment of an additional copying fee.

(c) There shall then be prepared and preserved the negative and at least one Photographic print and to each such negative and print the Photo-Registrar shall fix his signature and seal in token of the exact correspondence of the copy to the original document, as admitted for registration:

Provided that when more than one such negative is recorded on one length of film and the Photo- Registrar has affixed his signature and seal at the end of such length of film certifying in the manner prescribed by rules made in this behalf, the exact correspondence of all copies on such length of film with the original documents, the Photo-Registrar shall be deemed to have affixed his signature and seal to each such negative on such length of film.

(d) One set of such prints arranged in the order of their serial numbers shall be made up into books and sewnor bound together. To each such book the Registrar or sub-Registrar shall prefix a certificate of the serial numbers it contains, and the books shall then be preserved in the records of the Sub-Registrar. The negatives shall be preserved in such suitable place as the Inspector-General may prescribe.

(2) All words and expressions used in the Act with reference to the making of copies of documents by hand or the entering or filing of documents or memoranda in books provided under section 16 shall, so far as may be necessary, be construed as referring to the making of such copies by means of photography or the entering or filing of documents or memoranda in books made up of copies prepared by means of photography.

(3) Where this Part applies the sections mentioned below shall be deemed to be modified as follows :—

(a) in section 19 the words “and also by a true copy” shall be omitted;

(*b*) sub-section (4) of section 21 shall be omitted;

(*c*) the words “according to the order of its admission” occurring in clause(c) of sub- section(1) of section 52 shall be omitted;

(*d*) section 53 shall be omitted;

(*e*) in sub-section (1) of section 60 the words “and page” shall be omitted;

(*f*) sub-section (1) of section 61 shall be omitted; and

(*g*) in sub-section (1) of section 62,—

(*i*) for the word “transcribed” the word “copied” shall be substituted; and

(*ii*) for the words and figures “copy referred to in section 19” the words “photograph of the original” shall be substituted.

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70-F. The Inspector-General may, with the previous approval of the Provincial Government, by notification in the official Gazette, make rules for the purposes of giving effect to the provisions of this Part.]

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PART XII

OF REFUSAL TO REGISTER

71. Reasons for refusal to register to be recorded.—(1) Every Sub-Registrar refusing to register a document, except on the ground that the property to which it relates is not situate within his sub-district, shall make an order of refusal and record his reasons for such order in his Book No.2, and endorse the words "registration refused" on the document; and, on application made by any person executing or claiming under the document, shall, without payment and unnecessary delay, give him a copy of the reasons so recorded.

(2) No registering officer shall accept for registration a document so endorsed unless and until, under the provisions here in after contained, the document is directed to be registered.

72. Appeal to Registrar from orders of Sub-Registrar refusing registration on ground other than denial of execution.— (1) Except where the refusal is made on the ground of denial of execution, an appeal shall lie against an order of a Sub-Registrar refusing to admit a document to registration (whether the registration of such document is compulsory or optional) to the Registrar to whom such Sub-Registrar is subordinate, if presented to such Registrar within thirty days from the date of the order; and the Registrar may reverse or alter such order.

(2) If the order of the Registrar directs the document to be registered and the document is duly presented for registration within thirty days after the making of such order, the Sub-Registrar shall obey the same, and thereupon shall, so far as may be practicable, follow the procedure prescribed in sections 58, 59 and 60; and such registration shall take effect as if the document had been registered when it was first duly presented for registration.

73. Application to Registrar where Sub-Registrar refuses to register on ground of denial of execution.— (1) When a sub-Registrar has refused to register a document on the ground that any person by whom it purports to be executed, or his representative or assign, denies its execution, any person claiming under such document, or his representative, assign or agent authorized as aforesaid, may, within thirty days after the making of the order of refusal, apply to the Registrar to whom such Sub- Registrar is subordinate in order to establish his right to have the document registered.

(2) Such application shall be in writing and shall be accompanied by a copy of the reasons recorded under section 71, and the statements in the application shall be verified by the applicant in manner required by law for the verification of plaints.

74. Procedure of Registrar on such application.— In such case, and also where such denial as aforesaid is made before a Registrar in respect of a document presented for registration to him, the Registrar shall, as soon as conveniently may be, enquire—

(a) whether the document has been executed;

(b) whether the requirements of the law for the time being in force have been complied with on the part of the applicant or person presenting the document for registration, as the case may be, so as to entitle the document to registration.

75. Order by Registrar to register and procedure thereon.—(1) If the Registrar finds that the document had been executed and that the said requirements have been complied with, he shall order the document to be registered.

(2) If the document is duly presented for registration within thirty days after the making of such order, the registering officer shall obey the same and thereupon shall, so far as may be practicable, follow the procedure prescribed in sections 58, 59 and 60.

(3) Such registration shall take effect as if the document had been registered when it was first duly presented for registration.

(4) The Registrar may, for the purpose of any enquiry under section 74, summon and enforce the attendance of witnesses, and compel them to give evidence, as if he were a Civil Court, and he may also direct by whom the whole or any part of the costs of any such enquiry shall be paid, and such costs shall be recoverable as if they had been awarded in a suit under the Code of Civil Procedure, 1908 (V of 1908).

76. Order of refusal by Registrar.—(1) Every Registrar refusing—

(*a*) to register a document except on the ground that the property to which it relates is not situate within his district or that the document ought to be registered in the office of a Sub-Registrar, or

(*b*) to direct the registration of a document under section 72 or section 75,

shall make an order of refusal and record the reasons for such order in his Book No.2, and, on application made by any person executing or claiming under the document, shall, without un-necessary delay, give him a copy of the reasons so recorded.

(2) No appeal lies from any order by a Registrar under this section or section 72.

77. Suit in case of order of refusal by Registrar.— (1) Where the Registrar refuses to order the document to be registered, under section 72 or section 76, any person claiming under such document, or his representative, assign or agent, may, within thirty days after the making of the order of refusal, institute in the Civil Court, within the local limits of whose original jurisdiction is situate the office in which the document is sought to be registered, a suit for a decree directing the document to be registered in such office if it be duly presented for registration within thirty days after the passing of such decree [:][1]

[2][Provided that failure to file a suit or the dismissal of a suit filed under this section shall not disentitle a party to any other remedy to which he may be entitled, on the basis of the unregistered document.]

(2) The provisions contained in sub-sections (2) and (3) of section 75 shall, *mutatis mutandis*, apply to all documents presented for registration in accordance with any such decree, and, notwithstanding anything contained in this Act, the document shall be receivable in evidence in such suit.

[1]Subs. by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 18, for full-stop.
[2]Proviso added ibid.

PART XIII

OF THE FEES FOR REGISTRATION, SEARCHES AND COPIES

78. Fees to be fixed by Provincial Government.— [1]* * * The [2][Provincial Government] shall prepare a [3]table of fees payable—

(a) for the registration of documents [4][not exceeding one percent of the value of property conveyed];

(b) for searching the registers;

(c) for making or granting copies of reasons, entries or documents, before, on or after registration;

and of extra or additional fees payable—

(d) for every registration under section 30;

(e) for the issue of commissions;

(f) for filing translations;

(g) for attending at private residences;

(h) for the safe custody and return of documents; and

(i) for such other matters as appear to the [2][Provincial Government] necessary to effect the purposes of this Act [:][5]

[5][Provided that the Federal Government may, by notification in the official Gazette, exempt from payment of fees, either in whole or in part, any instrument executed by or in favour of a banking company in the normal course of its banking business.

Explanation. For the purpose of this section, "banking company" shall have the same meaning as in the Banking Tribunals Ordinance, 1984.]

79. Publication of fees.— A table of the fees so payable shall be published in the official Gazette, and a copy thereof in English and the vernacular language of the district shall be exposed to public view in every registration office.

80. Fees payable on presentation.— All fees for the registration of documents under this Act shall be payable on the presentation of such documents.

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[1]The words "Subject to the control of the G.G in C." omitted by the Devolution Act, 1920 (38 of 1920), s. 2 and First Sch.
[2]Subs. by A. O., 1937, for "L. G.".
[3]For table of fees issued by the Provincial Governments, see local R. and O.
[4]Added by Act IV of 1999, s. 28.
[5]Subs. and added by the Financial Services (Amdt. of Laws) Ordinance, 1984 (57 of 1984), s. 2 and Sch.

PART XIV

OF PENALTIES

81. Penalty for incorrectly endorsing, copying, translating or registering documents with intent to injure.— Every registering officer appointed under this Act and every person employed in his office for the purposes of this Act, who, being charged with the endorsing, copying translating or registering of any document presented or deposited under its provisions, endorses, copies, translates or registers such document in a manner which he knows or believes to be incorrect, intending thereby to cause or knowing it to be likely that he may thereby cause, injury, as defined in the Pakistan Penal Code (XLV of 1860), to any person, shall be punishable with imprisonment for a term which may extend to seven years, or with fine, or with both.

82. Penalty for making false statements, delivering false copies or translation, false personation, and abetment. Whoever—

(a) intentionally makes any false statement, whether on oath or not, and whether it has been recorded or not, before any officer acting in execution of this Act, in any proceeding or enquiry under this Act; or

(b) intentionally delivers to a registering officer, in any proceeding under section 19 or section 21, a false copy or translation of a document or a false copy of a map or plan; or

(c) falsely personates another, and in such assumed character presents any document, or makes any admission or statement, or causes any summons or commission to be issued, or does any other act in any proceeding or enquiry under this Act; or

(d) abets anything made punishable by this Act;

shall be punishable with imprisonment for a term which may extend to seven years, or with fine or with both.

83. Registering officer may commence prosecutions.—(1) A prosecution for any offence under this Act coming to the knowledge of a registering officer in his official capacity may be commenced by or with the permission of the Inspector-General, [1]* * * the Registrar or the Sub-Registrar, in whose territories, district or sub-district, as the case may be, the offence has been committed.

(2) Offences punishable under this Act shall be triable by any Court or officer exercising powers not less than those of a Magistrate of the second class.

84. Registering officers to be deemed public servants.—(1) Every registering officer appointed under this Act shall be deemed to be a public servant within the meaning of the Pakistan Penal Code (XLV of 1860).

(2) Every person shall be legally bound to furnish information to such registering officer when required by him to do so.

(3) In section 228 of the Pakistan Penal Code (XLV of 1860), the words "judicial proceeding" shall be deemed to include any proceeding under this Act.

[1]The words "the Branch Inspector General of Sindh" omitted by A.O., 1937.

PART XV

MISCELLANEOUS

85. Destruction of unclaimed documents.—Documents (other than wills) remaining unclaimed in any registration office for a period exceeding two years may be destroyed.

86. Registering officer not liable for thing *bona fide* done or refused in his official capacity.— No registering, officer shall be liable to any suit claim or demand by reason of anything in good faith done or refused in his official capacity.

87. Nothing so done invalidated by defect in appointment or procedure.—[1][(1)] Nothing done in good faith pursuant to this Act or any Act hereby repealed, by any registering officer, shall be deemed invalid merely by reason of any defect in his appointment or procedure.

[2][(2) Any defect in or the want of authority of a person to present a document shall not by itself, render invalid the registration of the document or the transaction effected by it.]

88. Registration of documents executed by Government officers or certain public functionaries.—(1) Notwithstanding anything herein contained, it shall not be necessary for any officer of Government, [3]* * * or for any Official Trustee or Official Assignee, or for the [4]*, Receiver or Registrar of a High Court, to appear in person or by agent at any registration office in any proceeding connected with the registration of any instrument executed by him in his official capacity, or to sign as provided in section 58.

(2) Where any instrument is so executed, the registering officer to whom such instrument is presented for registration may, if he thinks fit, refer to any Secretary to Government or to such officer of Government, Administrator-General, Official Trustee, Official Assignee, [4]*, Receiver or Registrar, as the case may be, for information respecting the same, and, on being satisfied of the execution thereof, shall register the instrument.

89. Copies of certain orders, certificates and instruments to be sent to registering officers and filed.— (1)Every officer granting a loan under the Land Improvement Loans Act, 1883 (XIX of 1883), shall send a copy of his order to the registering officer within the local limits of whose jurisdiction the whole or any part of the land to be improved or of the land to be granted as collateral security, is situate, and such registering officer shall file the copy in his Book No.1.

(2) Every Court granting a certificate of sale of immoveable property under the Code of Civil Procedure, 1908 (V of 1908), shall send a copy of such certificate to the registering officer within the local limits of whose jurisdiction the whole or any part of the immoveable property comprised in such certificate is situate, and such officer shall file the copy in his Book No.1.

(3) [5][Every officer and every Co-operative Society granting any such loan as is referred to in clause (x) of sub-section (2) of section 17] shall send a copy of any instrument whereby immoveable property is mortgaged for the purpose of securing the repayment of the loan, and if any such property is mortgaged for the same purpose in the order granting the loan, a copy also of that order, to the registering officer within the local limits of whose jurisdiction the whole or any part of the property so mortgaged is situate, and such registering officer shall file the copy or copies, as the case may be, in his Book No. 1.

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[1]Renumbered by the Registration (Amdt.) Ordinance, 1962 (45 of 1962), s. 19.
[2]Sub-section (2) added *ibid*.
[3]The words "or for the Administrator-General of East Pakistan", omitted by Federal Laws (Revision and Declaration). Ordinance, 1981, s. 3 and Second Sch. which was amended by A.O., 1949 and A. O., 1961, Art. 2 and Sch.
[4]The word "Sheriff" omitted, by A. O., 1949.
[5]Subs. by the Registration Act (Amdt.) Ordinance, 1961 (32 of 1961), s. 4, for "Every officer granting a loan under the Agriculturists, Loans Act, 1884."

(4) Every Revenue-officer granting a certificate of sale to the purchaser of immoveable property sold by public auction shall send a copy of the certificate to the registering officer within the local limits of whose jurisdiction the whole or any part of the property comprised in the certificate is situate, and such officer shall file the copy in his Book No. 1.

Exemptions from Act

90. Exemption of certain documents executed by or in favour of Government.—(1) Nothing contained in this Act or in the Indian Registration Act, 1877 (III of 1877), or in the Indian Registration Act, 1871 (VIII of 1871), or in any Act thereby repealed, shall be deemed to require, or to have at any time required, the registration of any of the following documents or maps, namely :—

(*a*) documents issued, received or attested by any officer engaged in making a settlement or revision of settlement of land-revenue, and which form part of the records of such settlement; or

(*b*) documents and maps issued, received or authenticated by any officer engaged on behalf of Government in making or revising the survey of any land, and which form part of the record of such survey; or

(*c*) documents which, under any law for the time being in force, are filed periodically in any revenue-office by patwaris or other officers charged with the preparation of village- records ; or

(*d*) sanads, inam title-deeds and other documents purporting to be or to evidence grants or assignments by Government of land or of any interest in land; or

(*e*) notices given under section 74 or section 76 of the [1][Sind Land Revenue Code, 1879 (Sind Act V of 1879)], of relinquishment of occupancy by occupants, or of alienated land by holders of such land.

(2) All such documents and maps shall, for the purposes of sections 48 and 49, be deemed to have been and to be registered in accordance with the provisions of this Act.

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91.Inspection and copies of such documents.— Subject to such rules and the previous payment of such fees as the [2][Provincial Government] prescribes in this behalf, all documents and maps mentioned in section 90, clauses *(a), (b), (c)* and *(e),* and all registers of the documents mentioned in clause *(d),* shall be open to the inspection of any person applying to inspect the same, and, subject as aforesaid, copies of such documents shall be given to all persons applying for such copies.

92. [*Burmese registration rules confirmed.*] *Rep. by A. O.,* 1937.

93. [*Repeals.*] *Rep. by the Repealing Act,* 1938 (*I of* 1938), *s.* 2 *and Schedule.*

THE SCHEDULE.—[*REPEAL OF ENACTMENTS.*] *Rep. by the Repealing Act,* 1938 (*I of* 1938*), s.* 2 *and Schedule.*

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Second Sch., for "Bombay Land Revenue Code, 1879".
[2]Subs. by A. O., 1937, for "L. G.".

THE REGULATION OF MINES AND OIL-FIELDS AND MINERAL DEVELOPMENT (GOVERNMENT CONTROL) ACT, 1948.

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5. Power to exempt
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SCHEDULE.

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THE REGULATION OF MINES AND OIL-FIELDS AND MINERAL DEVELOPMENT (GOVERNMENT CONTROL) ACT, 1948.

[1]ACT NO. XXIV OF 1948

[8th January, 1949]

An Act to make provision for certain matters connected with the regulation of mines and oil-fields and mineral development.

WHEREAS it is expedient to make provision for certain matters connected with the regulation of mines and oil-fields and mineral development under [2][Government Control];

AND WHEREAS it appears to the [3][Federal Government] to be expedient in the public interest to make such provision to the extent hereinafter appearing; it is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Regulation of Mines and Oil-fields and Mineral Development [2][Government Control] Act, 1948.

[4][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date[3] as the [3][Federal Government] may, by notification in the official Gazette, appoint in this behalf.

[5]* * * * * * *

[6]**2. Power to make rules.** It is hereby declared to be expedient in the public interest that the [7][appropriate Government] shall have power to make rules[8] to provide for all or any of the following matters, namely:—

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[1] For Statement of Objects and Reasons, see Gaz. of P., 1948, Pt. V, p. 127.

The Act has been applied—

(i) to Baluchistan, see Gaz. of P., 1949, Pt. I, p. 408;

(ii) in the Federated Areas of Baluchistan, see ibid., Ext.,1950, p. 512;

(iii) to the excluded areas of West Pakistan, with effect from the 21st March, 1956 see Gazette of West Pakistan, 1956, Ext., p. 239; and

(iv) to the Special Areas of West Pakistan, with effect from the 22nd March, 1956, *see ibid*., p. 243.

It has been extended to-

(a) the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950);

(b) the Baluchistan States Union, see the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953);

(c) the Khairpur State, see the Khairpur (Federal Laws) (Extension) Order, 1953 (G. G. O. 5 of 1953); and

(d) the State of Bahawalpur, see the Bahawalpur (Extension of Federal Laws) Order, 1953 (G. G. O. 11 of 1953).

The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.

[2] Subs. by A.O., 1964, Art. 2 and Sch., for "Federal Control".

[3] Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government".

[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., for the original sub-section (2) (with effect from the 14th October, 1955).

[5]Section IA, which was ins. by the Regulation of Mines and Oil fields Mineral Development (Federal Control) (Amdt.) Ordinance, 1955: (31 of 1955), s. 2, has since been lapsed.

[6]The Amendment in section 2, by Ord. 31 of 1955, s. 3, has since been lapsed.

[7]Subs. by A. O., 1964, Art. 2 and Sch., for "Central Government".

[8]For the Pakistan Petroleum (Production) Rules, 1949, see Gaz. of P., 1949, Ext., pp. 501-552; for the Natural Gas Rules, 1960, *see ibid*., 1960 Ext., pp. 949-956; and for the Pakistan Mining Concession Rules, 1960, see ibid., pp. 1107-1166.

[9]The 1st June, 1949, see Gaz. Of P.1949, I.P.246.

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(1) the manner in which, and the authority to whom, application for the grant or renewal of an exploration or prospecting licence, a mining lease or other mining concession shall be made, and the prescribing of the fees to be paid on such application;

(2) the conditions in accordance with which the grant or renewal of an exploration or prospecting licence, a mining lease or other mining concession may be made, and the prescribing of forms for the execution or renewal of such licence, lease, and concession;

(3) the circumstances under which renewal of a licence, lease or concession as aforesaid may be refused, or any such licence, lease or concession whether granted or renewed may be revoked;

(4) the determination of the rates at which and the conditions subject to which royalties, rents and taxes shall be paid by licensees, lessees and grantees of mining concessions;

(5) the refinement of ores and mineral oils;

(6) the control of production, storage and distribution of minerals and mineral oils;

(7) the fixation of the prices at which minerals and mineral oils may be bought or sold; and

(8) any matter ancillary or incidental to the matters set out in the foregoing clauses of this section,

and the [1][appropriate Government] may, by notification in the official Gazette, make rules accordingly.

[2]**[3. Penalties etc.** Any rules made under section 2 may provide—

(a) that any powers and functions in relation to any of the matters referred to in that section may be exercised and performed, either generally or in specified cases, and in compliance with any general or special Instructions given by the [3][Federal Government] in that behalf, by an officer or authority specified in the rules; and

(b) that the breach of any of them shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.].

[4]**[3A. Production sharing agreement.**— (1) Notwithstanding anything contained in any other law or rules for the time being in force, the President may enter into an agreement with any company, whether incorporated in Pakistan or outside Pakistan, for the grant of a licence or lease to explore, prospect and mine petroleum on the basis of a Production Sharing Agreement and on such terms and conditions may be agreed upon between the Federal Government and the company.

[5]* * * * * * *

[5]**3B. Concessions to petroleum exploration companies.**— (1)Notwithstanding anything contained in any other law for the time being in force, every company, whether incorporated in Pakistan or outside Pakistan, to whom a licence or a lease to explore, prospect and mine petroleum is granted under this Act,

[1]Subs. by A. O., 1964, Art. 2 and Sch., for "Central Government".
[2]Subs. by the Regulation of Mines and Oil-fields and Mineral Development (Government Control) (Amdt.) Ordinance. 1971 (8 of 1971), s. 2.
[3]Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government".
[4]Ins. by the Regulation of Mines and Oil-fields and Mineral Development (Government Control) (Amdt.) Act. 1976 (83 of 1976), s. 2.
[5]The Original sub-section (2) omitted by the Finance Act. 1998 (3 of 1998), s. 2A.

not being a company such as is referred to in sub-section (1) of section 3A, shall be entitled to the concessions specified in the Schedule in addition to any concessions for the time being admissible to it under any other law or the rules made under this Act.

(2) The Federal Government may, by notification in the official Gazette, amend the Schedule so as to add any concessions thereto or to improve any concessions therein.].

4. Effect of rules etc., inconsistent with other enactments. Any rule made under this Act, and any order made under any such rule, shall have effect notwithstanding anything inconsistent therewith contained in any enactment or in any instrument having effect by virtue of an enactment other than this Act.

[1]* * * * * * *

5. Power to exempt. The [2][appropriate Government] may, by notified order, declare that any mineral or mineral oil or any class or description thereof shall be exempt from all or any of the provisions of the rules made under this Act, or that such provisions shall apply thereto with such modification or subject to such conditions as may be specified in the order.

[3]**[6. Definitions of appropriate Government.** In this Act, "appropriate Government" means, in relation to mines of nuclear substances, oil-fields and gas fields, and development of such substances, mineral oil and gas, the [4][Federal Government] and, in relation to the other mines and mineral development, the Provincial Government.]

[5][SCHEDULE

(See Section 3B)

1. Any provisions of the rules made under section 2, or of any amendment in the [6][Income-tax Ordinance, 1979 (XXXI of 1979)] hereinafter referred to as the [6][Ordinance] made after the effective date of an agreement for the grant of a licence or lease to explore, prospect or mine petroleum, which are inconsistent with the terms of the agreement, shall not apply to the extent of such inconsistency to a company which is a party to the agreement.

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2. [7][In case of onshore Pakistan, royalty shall be charged at a fixed rate of twelve and half per cent of well-head value and income tax on profits or gains derived from petroleum operations shall be at the rate of forty per cent of profits and gains as determined and assessed in accordance with the provisions of the Income Tax Ordinance, 1979 (XXXI of 1979), and rules contained in Part I of the Fifth Schedule to the said Ordinance.]

[8][The limit of the sum of payment to the Federal Government and taxes on income shall be fixed at the time of grant of the permit or licence in accordance with the Petroleum Policy of the Federal Government from the effective date of the permit or licence, as the case may be. Income from pipeline

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[1]Section 4A, which was ins. by the Regulation of Mines and Oil fields Mineral Development (Federal Control) (Amdt.) Ordinance, 1955 (31 of 1955), s. 4, has since been lapsed.
[2]Subs. by A. O., 1964, Art. 2 and Sch., for "Central Government".
[3]Section 6 added ibid.,
[4]Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government".
[5]Ins. by the Regulation of Mines and Oil-Fields and Mineral Development (Government-Control) (amdt.) Act, 1976 (83 of 1976), s. 3. r
[6]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981, (27 of 1981), s. 3 and 2nd Sch.
[7]Subs. by S.R.O. 698 (I)/2001, dt. 2-10-2001.
[8]Added by S.R.O. 254 (I)/95, dated 29thMarch 1995, see Gaz. of P., 1995, Ext. Pt. II. pp. 450___452.

operations, the sale of LPG, CNG and from refined products, where such refined products are produced from field due to their specific development needs (as approved by the Central Board of Revenue) shall be considered part of a licensee's or lessee's income under the said Schedule.];

[1][3. Before commencement of commercial production of petroleum, any expenditure incurred by an undertaking of a licencee or lessee covered by the same or separate agreement with the Federal Government on searching for or on discovering and testing a petroleum deposit or winning access thereto, allocable to a surrendered area of areas and to drilling of a dry hole, shall be deemed to be lost at the time of the surrender of the area or the completion of the dry hole, as the case may be, for the purpose of the Fifth Schedule to the Income Tax Ordinance, 1979. Such lost expenditure shall be allowed to be set off against the income of the undertaking of the licences or lessee covered by the same or separate agreement with the Federal Government or of other activities excluding income from dividends on fully consolidated basis in one of the two ways mentioned in sub-rules (2) and (3) of rule 2 of the said Schedule.]

4. In addition to the net profits, the amount charged in annual financial accounts on account of additional allowance admissible under rule 3 of the [2][Fifth Schedule to the Ordinance] and depreciation at such rate as may be agreed upon between the President and a licensee or lessee, which is a company incorporated outside Pakistan, including its assignee, shall be allowed to be remitted and retained abroad, provided that the aggregate amount of such additional allowance and depreciation does not exceed an agreed percentage of the investment in assets on which depreciation is charged.

[3][5. The value of petroleum for the purposes of royalty and income tax shall be calculated on the basis provided for in the rules read with terms of any agreement entered into between the Federal Government and licencee or, as the case may be, the lessee, including their assignees.]

6. The income derived by the licensee or lessee from the use of any surplus capacity of its pipeline by any other licensee or lessee shall be assessed on the same basis as its income from petroleum produced by it from its concession area.

7. A licensee or lessee which is a company incorporated outside Pakistan, including its assignee shall be allowed to export its share of petroleum after meeting such portion of the internal requirement of Pakistan as may be agreed upon.

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8. Sale proceeds of the share of petroleum exported by a licensee or lessee which is a company incorporated outside Pakistan, including its assignee, shall be allowed to be retained abroad and to be used freely by it, subject to the condition that it shall bring back such portion of these proceeds as is required to meet its obligations under the [3][licencee or, as the case may be,] lease.

[3][9. Concession available in respect of import duties, licence or authorization fees shall be as are specified in Notification Nos. S.R.O. 336 (I)/94, dated the 26th April, 1994, and S.R.O. 367 (I)/94, dated the 9th May, 1994 [4][and S.R.O. 400 (I)/97, dated the 31st May, 1997]. and as amended from time to time.

[4]* * * * * * *

[1]Subs. by S.R.O. 291 (I)/87 dated 14th Aril 1987, see Gaz. of P., 1987, Ext. Pt. II, p. 442.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch.,
[3]Subs. and Ins by S.R.O. 254 (I)/95, dated 29th March, 1995, see Gaz. of P., 1995, Ext., Pt. II, pp. 450-452.
[4]Ins & omitted by S.R.O. 86 (KE)/ 2000, dated 27th April, 2000.

[1][11. Foreign nationals employed by the Operator, its contractors or sub-contractors or consultants shall be allowed to import commissary goods free of customs-duty, *iqra* surcharge, other surcharges and sales tax to the extent of one thousand two hundred United States Dollars (US $ 1,200) per annum per employee or such greater amount as may be notified, from time to time, subject to the condition that the said goods shall not be sold or disposed of in Pakistan and no foreign exchange from Pakistan shall be incurred.

[1][12. Subject to declaration to the customs authorities at the port of entry for residence in Pakistan and on certification by a responsible representative of the Operator as to the entitlement of the employees, each of the expatriate employees of the operator, its contractors and sub-contractors shall be permitted to import used and *bona-fide* personal and household effects, excluding passenger vehicles and shall be exempted from all customs-duties, sales tax, *iqra* surcharge and taxes on imports, licence and authorization fees with respect to the importation of such personal and household effects:

Provided that such personal and household effects are imported for the use of the employee or a member of his family :

Provided further that such personal and household effects were acquired or were inpossession of the employee or members of his family before his or their arrival in Pakistan and are imported within six months after arrival in Pakistan of the employee or member of the employee's family, whichever is earlier, and all such effects may thereafter be exported by the individual who imported the same. Such personal and household effects shall, however, not be sold or disposed of or transferred in Pakistan, except with the prior permission of the Central Board of Revenue (CBR) and on payment of customs-duty and taxes at the rate and value operating on the date the goods were first imported into Pakistan less depreciation at the rate of ten per cent (10%) per annum or such higher rate as may be allowed by the Federal Government.]

13. Foreign nationals employed by a licensee or lessee or its contractor shall not be charged income-tax for a period of three years from the date of their arrival in Pakistan in accordance with, and subject to the provisions of, clauses [2][(7) and (8) of the Second Schedule to the Ordinance] as in force on the effective date of the agreement with the licensee or lessee.

[3][14. All forms of data pertaining to free acreage shall be available for inspection to a prospective licensee free of charge and such licensee may have the copies of such data for further examination on payment of reproduction costs and subject to such conditions as may be determined by the Federal Government.]

[4][15. Participation by the Federal Government or its hundred percentage owned holding company in exploration and production and other terms and conditions and incentives shall be as specified in the Petroleum Policy in vogue and as incorporated in any agreement with the Federal Government including production sharing agreement at the time the licensee is granted. The taxation of income of participating companies shall be governed by the provisions of Income Tax Ordinance 1979" (XXXI of 1979;]

[5][16. The Operator, its contractors and sub-contractors shall not be liable to pay any tax, levy, Octroi or charge imposed or levied on the transportation or movement of the machinery and equipment to and from the area or on any item imported in pursuant to a permit, licence or lease.]

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[1]Subs. and Ins by S.R.O. 254 (I)/95, dated 29th March, 1995, see Gaz. of P., 1995, Ext., Pt. II, pp. 450-452.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II.
[3]Subs. by S.R.O. 67 (KE)/ 92 dated 29th Feb. 1992, see G2. of P., 1992., Ext., Pt. II dated 12-4-92 p. 689.
[4]Subs. and added by S.R.O. 86 (KE)/2000, dated 27-4-2000.
[5]Subs. and added by S.R.O 254 I/95dt. 29-3-95, see Gaz., of P. 1995, Ext., pt., 450-452.

[1][17. The above concessions in respect of Offshore Pakistan shall remain valid for a period of five years with effect from the 1st January, 1998.]

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[1]Subs. and added by S.R.O. 86 (KE)/2000, dated 27-4-2000.

THE RELIGIOUS SOCIETIES ACT, 1880

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THE RELIGIOUS SOCIETIES ACT, 1880

[1]ACT No I OF 1880

[9*th* *January*, 1880]

An Act to confer certain powers on Religious Societies

Preamble. WHEREAS it is expedient to simplify the manner in which certain bodies of persons associated for the purpose of maintaining religious worship may hold property acquired for such purpose, and to provide for the dissolution of such bodies and the adjustment of their affairs and for the decision of certain questions relating to such bodies; It is hereby enacted as follows :—

1. Short title. This Act may be called the Religious Societies Act, 1880.

Local extent. It [1][* * *] shall extend to [2][the whole of Pakistan] but nothing herein contained shall apply to any Hindus, [3][Muslims] or Buddhists, or to any persons whom the [4][Provincial Government] may from time to time, by notification in the [5][Official Gazette], exclude from the operation of this Act.

2. Appointment of new trustee in cases not otherwise provided for. When any body of persons associated for the purpose of maintaining religious worship has acquired, or hereafter shall acquire, any property, and such property has been or hereafter shall be vested in trustees in trust for such body, and it becomes necessary to appoint a new trustee in the place of or in addition to any such trustee or any trustee appointed in the manner hereinafter prescribed, and no manner of appointing such new trustee is prescribed by any instrument by which such property was so vested or by which the trusts on which it is held have been declared, or such new trustee cannot for any reason be appointed in the manner so prescribed, such new trustee may be appointed in such manner as may be agreed upon by such body, or by a majority of not less than two-thirds of the members of such body actually present at the meeting at which the appointment is made.

3. Appointment under section 2 to be recorded in a memorandum under the hand of the chairman of the meeting. Every appointment of new trustees under section 2 shall be made to appear by some memorandum under the hand of the chairman for the time being of the meeting at which such appointment is made.

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Such memorandum shall be in the form set forth in the schedule hereto annexed, or as near thereto as circumstances allow, shall be executed and attested by two or more credible witnesses in the presence of such meeting, and shall be deemed to be a document of which the registration is required by the [6][Registration Act, 1908 (XVI of 1908)] section 17.

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1879, Pt. V, p.770; for Proceedings in Council, *see ibid*., 1879, Supplement, pp. 598, 745; and 174, *ibid*., 1880. Supplement, pp. 23 and 170.
This Act has been amended to the extent of Islamabad Capital Territory, see Ordinance No. 27 of 1981, s. 5 and 4th Sch.
[2]The words "shall come into force at once, and" rep. by the Repealing and Amending Act, 1914 (X of 1914).
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (w. e.f the 14th October, 1955).
[4]Subs. by Federal Adaptation Order, 1975, Art. 2 and Table, for "Muhammadans".
[5]Subs. by Adaptation Order, 1937, for the words "L. G" which had been subs. for the words "G.G. in C" by the Devolution Act, 1920 (38 of 1920), s. 2 and Sch I.
[6]Subs. by A.O., 1937, for the words "local official Gazette" which had been subs. for the words "Gazette of India" by Act 38 of 1920, s. 2 and Sch. I
[7]Subs. by Ordinance, XXVII of 1981, s. 5 and Sch. IV (only to the extent of Islamabad Capital Territory.)

4. Property to vest in new trustees without conveyance. When any new trustees have been appointed, whether in the manner prescribed by any such instrument as aforesaid or in the manner hereinbefore provided, the property subject to the trust shall forthwith, notwithstanding anything contained in any such instrument, become vested, without any conveyance or other assurance, in such new trustees and the old continuing trustees jointly, or, if there are no old continuing trustees, in such new trustees wholly, upon the same trusts, and with and subject to the same powers and provisions, as it was vested in the old trustees.

5. Saving of existing modes of appointment and conveyance. Nothing herein contained shall be deemed to invalidate any appointment of new trustees, or any conveyance of any property, which may hereafter be made as heretofore was by law required.

6. Provision for dissolution of Societies and adjustment of their affairs. Any number not less than three-fifths of the members of any such body as aforesaid may at a meeting convened for the purpose determine that such body shall be dissolved; and thereupon it shall be dissolved forthwith, or at the time then agreed upon; and all necessary steps shall be taken for the disposal and settlement of the property of such body, its claim and liabilities, according to the rules of such body applicable thereto, if any, and, if not, then as such body at such meeting may determine :

Provided that, in the event of any dispute arising among the members of such body, the adjustment of its affairs shall be referred to the principal Court of original civil jurisdiction of the district in which the chief building of such body is situate ; and the Court shall make such order in the matter as it deems fit.

7. Upon a dissolution no member to receive profit. If upon the dissolution of any such body there remains, after the satisfaction of all its debts and liabilities, any property whatsoever, the same shall not be paid to or distributed among the members of such body or any of them, but shall be given to some other body of persons associated for the purpose of maintaining religious worship or some other religious or charitable purpose to be determined by the votes of not less than three-fifths of the members present at a meeting convened in this behalf, or in default thereof by such Court as last aforesaid.

8. Saving of certain provisions of instruments. Nothing in sections 6 and 7 shall be deemed to affect any provision contained in any instrument for the dissolution of such body, or for the payment or distribution of such property.

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9. Questions may be submitted to High Court. When any question arises, either in connection with the matters hereinbefore referred to, or otherwise, as to whether any person is a member of any such body as aforesaid, or as to the validity of any appointment under this Act, any person interested in such question may apply by petition to the High Court for its opinion on such question. A copy of such petition shall be served upon, and the hearing thereof may be attended by, such other person interested in the question as the Court thinks fit.

Any opinion given by the Court on an application under this section shall be deemed to have the force of a declaratory decree[1].

The costs of every application under this section shall be in the discretion of the Court.

[1]As to effect of a declaratory decree, *see s.* 43 of the Specific Relief Act 1877 (I of 1877).

THE SCHEDULE

(See section 3)

Memorandum of the appointment of the new trustees of the *(describe the church, chapel or other building and property)* situate at a meeting duly convened and held for that purpose *(in the vestry of the said)* on the day of 18, *A. B.* of Chairman.

Names and descriptions of all the trustees on the constitution or last appointment of trustees, made the day of.

(here insert the same.)

Name and descriptions of all the trustees in whom the said *(chapel and property)* now become legally vested,

First. —Old continuing trustees :—

(here insert the same.)

Second. —New trustees now chosen and appointed :—

(here insert the same.)

Dated this day of 18.
Signed by the said A.B. as chairman of the said Meeting, at and in the presence of the the said meeting on the day and year aforesaid. in the presence of–

A.B.
Chairman of the said Meeting.

C.D.

E.F.

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Date: 16-09-2024

THE REVENUE RECOVERY ACT, 1890

CONTENTS

1. Title and extent.

2. Definitions.

3. Recovery of public demands by enforcement of process in other districts than those in which they become payable.

4. Remedy available to person denying liability to pay amount recovered under last foregoing section.

5. Recovery by Collectors of sums recoverable as arrears of revenue by other public officers or by local authorities.

6. Property liable to sale under this Act.

7. Saving of local laws relating to revenue.

8. Recovery in Pakistan of certain public demands arising beyond Pakistan.

9. *Recovery in Pakistan of land-revenues, etc., accruing in Burma,*

10. Duty of Collectors to remit moneys collected in certain cases.

11. Recovery in the Provinces of land-revenue, etc., accruing in an Acceding State.

THE SCHEDULE

CERTIFICATE

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THE REVENUE RECOVERY ACT, 1890

[1] ACT NO. I OF 1890

[14th February, 1890]

An Act to make better provision for recovering certain public demands

WHEREAS it is expedient to make better provision for recovering certain public demands; It is hereby enacted as follows:—

1. Title and extent.—(1) This Act may be called the Revenue Recovery Act, 1890.

[2] [(2) It extends to the whole of Pakistan].

2. Definitions. In this Act, unless there is something repugnant in the subject or context,—

[3] * * * * * * *

(2) "Collector" means the chief officer in charge of the land-revenue administration of a district: and

(3) "defaulter" means a person from whom an arrear of land-revenue, or a sum recoverable as an arrear of land-revenue, is due, and includes a person who is responsible as surety for the payment of any such arrear or sum.

3. Recovery of public demands by enforcement of process in other districts than those in which they become payable.—(1) Where an arrear of land-revenue, or a sum- recoverable as an arrear of land-revenue, is payable to a Collector by a defaulter being or having property in a district other than that in which the arrear accrued or the sum is payable, the Collector of may send to the collector of that other district a certificate in the form as nearly as may be of the schedule, stating—

(*a*) the name of the defaulter and such other particulars as may be necessary for his identification, and

(*b*) the amount payable by him and the account on which it is due.

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[1]For Statement of Objects and Reasons, see Gazette of India, 1887, Pt. V, p.128; for Report of the Select Committee, *see ibid*., 1890, Pt. V, p. 11; and for Proceedings in Council, *see ibid*., 1887, Pt, VI. pp. 66 and 67, and *ibid*., 1890, Pt. VI. pp. 7 and 12.

Extended to the State of Bahawalpur, *see* G. G. O. 2 of 1952, Art. 2. Extended to Khairpur State, subject to certain modification, *see* the Khairpur (Federal Laws) (Second Extension) Order, 1953 (G. G. O.14 of 1953).

It has also been extended to the Baluchistan States Union by G.G.O. 18 of 1953, in respect of proceedings under certain specified laws.

[2]The existing sub-section (2) as amended by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., the Burma Laws Act, 1898 (13 of 1898), s. 18 and Sch. V, the Repealing and Amending Act, 1914 (10 of 1914),s.3 and 2nd Sch. the G.G.O. 2 of 1947, Sch., has been subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955).*

[3]The original clause (1) omitted by A.O., 1949. Sch.

(2) The certificate shall be signed by the Collector making it [1][or by any officer to whom such Collector may, by order in writing, delegate this duty,] and, save as otherwise provided by this Act, shall be conclusive proof of the matters therein stated.

(3) The Collector of the other district shall, on receiving the certificate, proceed to recover the amount stated therein as if it were an arrear of land-revenue which had accrued in his own district.

4. Remedy available to person denying liability to pay amount recovered under last foregoing section.—(1) When proceedings are taken against a person under the last foregoing section for the recovery of an amount stated in a certificate, that person may, if he denies his liability to pay the amount or any part thereof and pays the same under protest made in writing at the time of payment and signed by him or his agent, institute a suit for the repayment of the amount or the part thereof so paid.

(2) A suit under-sub-section (1) must be instituted in a Civil Court having jurisdiction in the local area in which the office of the Collector who made the certificate is situate, and the suit shall be determined in accordance with the law in force at the place where the arrear accrued or the liability for the payment of the sum arose.

(3) In the suit the plaintiff may, notwithstanding anything in the last foregoing section, but subject to the law in force at the place aforesaid, give evidence with respect to any matter stated in the certificate.

[2][(4) This section shall apply if under this Act as in force as part of the law of India, or under any other similar Act forming part of the law of India, proceedings are taken against a person in India for the recovery of an amount stated in a certificate made by a Collector in Pakistan.]

5. Recovery by Collectors of sums recoverable as arrears of revenue by other public officers or by local authorities. Where any sum is recoverable as an arrear of land-revenue by any public officer other than a Collector or by any local authority, the Collector of the district in which the office of that officer or authority is situate shall, on the request of the officer or authority, proceed to recover the sum as if it were an arrear of land-revenue which has accrued in his own district, and may send a certificate of the amount to be recovered to the Collector of another district under the foregoing provisions of this Act, as if the sum were payable to himself.

6. Property liable to sale under this Act.—(1) When the Collector of a district receives a certificate under this Act, he may issue a proclamation prohibiting the transfer or charging of any immoveable property belonging to the defaulter in the district.

(2) The Collector may at any time, by order in writing, withdraw the proclamation, and it shall be deemed to be withdrawn when either the amount stated in the certificate has been recovered or the property has been sold for the recovery of that amount.

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[1]Ins. by the Decentralization Act, 1914 (4 of 1914), s. 2 and Sch., Pt. I.

[2]Sub-section (4) which was previously ins. by, A.O, 1937, has been subs. by Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and 2nd Sch.

(3) Any private alienation of the property or of any interest of the defaulter therein, whether by sale, gift, mortgage or otherwise, made after the issue of the proclamation and before the withdrawal thereof, shall be void as [1][against the [2][Government]] and any person who may purchase the property at a sale held for the recovery of the amount stated in the certificate.

(4) Subject to the foregoing provisions of this section, when proceedings are taken against any immoveable property under this Act for the recovery of an amount stated in a certificate the interests of the defaulter alone therein shall be so proceeded against, and no incumbrances created, grants made or contracts entered into by him in [3]good faith shall be rendered invalid by reason only of proceedings being taken against those interests.

(5) A proclamation under this section shall be made by beat of drum or other customary method and by the posting of a copy thereof on a conspicuous place in or near the property to which it relates.

7. Saving of local laws relating to revenue. Nothing in the foregoing sections shall be construed—

(a) to impair any security provided by, or affect the provisions of, any other enactment for the time being in force for the recovery of land-revenue or of sums recoverable as arrears of land-revenue, or

(b) to authorize the arrest of any person for the recovery of any tax, payable to the corporation, commissioner, committee, board, council or person having authority over a municipality under any enactment for the time being in force.

8. Recovery in Pakistan of certain public demands arising beyond Pakistan. When this Act has been applied to any local area which is under the administration of [4][the [5][Federal Government] [6]***] but which is not part of [7][[8] * * * Pakistan], an arrear of land- revenue accruing in that local area, or a sum recoverable as an arrear of land-revenue and payable to a Collector or other public officer or to a local authority in that local area, may be recovered under this Act in [7][[8]* * * Pakistan].

9. [*Recovery in Pakistan of land-revenues, etc., accruing in Burma,*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), *s.* 3 *and Sch. II.*

10. Duty of Collectors to remit moneys collected in certain cases. Where a Collector receives a certificate under this Act from a Collector [9][in the other Province] or a Collector in [10][India [11]* * he shall remit any sum recovered by him by virtue of that certificate to that Collector, after deducting his expenses in connection with the matter.]

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[1]Subs. by A.O., 1937, for "against the Govt.".
[2]Subs. by A. O., 1961, Art. 2, for "Crown" (with effect from the 23rd March, 1956).
[3]See definition in the General Clauses Act, 1897 (10 of 1897), s. 3(20).
[4]Subs. by A. O., 1937, for "the G. G. in, C.".
[5]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[6]The words "or the Crown Representative" omitted by G.G.O. 2 of 1947, Sch., Part IV.
[7]Subs. ibid., for "British India".
[8]The words "the Provinces of" have been omitted by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955).
[9]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October,* 1955) for "of another Province".
[10]Ins. by G. G. O. 2 of 1947, Sch., Pt. IV *(from 15th August, 1947).*
[11]The words "or Burma" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and 2nd Sch.

[4] **11**. [*Recovery in the Provinces of land-revenue, etc., accruing in an Acceding State.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), *s.* 3 *and Sch. II.*

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CERTIFICATE

[*See* section 3, sub-section (1)]

From

The Collector of

To

The Collector of

Dated the of 18 **.**

The sum of Rs. is payable on account of by, son of, resident of, who is believed (to be at) (to have property consisting of at) in your district.

Subject to the provisions of the Revenue Recovery Act, 1890, the said sum is recoverable by you as if it were an arrear of land revenue which had accrued in your own district, and you are hereby desired so to recover it and to remit it to my office at

A. B.,
Collector of

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Date: 05-09-2024

[4] Sec. 11 added by the Revenue Recovery (Amdt.) Act, 1950 (56 of 1950), s.2.

THE REVOCATION OF PRIVILEGES ACT, 1992

CONTENTS

1. Short title and commencement
2. Annulment of certain Bills

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THE REVOCATION OF PRIVILEGES ACT, 1992

ACT No. VIII of 1992

An Act to revoke and annual certain Bills passed by the National Assembly

WHEREAS it is expedient to revoke and annual the Bills passed by the National Assembly on the 3rd day of May, 1992;

AND WHEREAS the National Assembly unanimously by a Resolution on May, 7, 1992, resolved to withdraw the said Bills;

It is hereby enacted as follows :—

1. **Short title and commencement.**—(1) This Act may be called the Revocation of Privileges Act, 1992.

(2) It shall come into force at once and shall be deemed to have come into force on and from the 3rd day of May, 1992.

2. Annulment of certain Bills.— Notwithstanding anything contained in any other law or the rules for the time being in force, the President's Salary, Allowances and Privileges (Amendment) Bill, 1992, the Prime Minister's Salary, Allowances and Privileges (Amendment) Bill, 1992, the Federal Ministers and Ministers of State Salaries, Allowances and Privileges (Amendment) Bill, 1992, the Members of Parliament (Salaries and Allowances) (Amendment) Bill, 1992, the Chairman and Speaker (Salaries, Allowances and Privileges) (Amendment) Bill, 1992, and the Deputy Chairman and Deputy Speaker (Salaries, Allowances and Privileges) (Amendment) Bill, 1992, passed by the National Assembly of Pakistan on the 3rd day of May, 1992, resolved to be withdrawn by a unanimous Resolution of the National Assembly, whether transmitted to the President for his assent or not, or whether deemed to have become Acts of Parliament by afflux of time or not, are withdrawn, revoked and annulled and shall be deemed always to have been withdrawn, revoked and annulled and of no legal effect.

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THE SALE OF GOODS ACT, 1930

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THE SALE OF GOODS ACT, 1930

[1]ACT NO. III OF 1930

[15th March, 1930]

An Act to define and amend the law relating to the sale of goods

WHEREAS it is expedient to define and amend the law relating to the sale of goods ;

It is hereby enacted as follows:—

CHAPTER I
PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the [2][*]Sale of Goods Act, 1930.

[3][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on the first day of July, 1930.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(1) "buyer" means a person who buys or agrees to buy goods;

(2) "delivery" means voluntary transfer of possession from one person to another ;

(3) goods are said to be in a "deliverable state" when they are in such state that the buyer would under the contract be bound to take delivery of them ;

(4) "document of title to goods" includes a bill of lading, dock-warrant, warehouse keeper's certificate, wharfingers' certificate, railway receipt, warrant or order for the delivery of goods and any other document used in the ordinary course of business as proof of the possession or control of goods, or authorising or purporting to authorise, either by endorsement or by delivery, the possessor of the document to transfer or receive goods thereby represented ;

(5) "fault" means wrongful act or default ;

(6) "future goods" means goods to be manufactured or produced or acquired by the seller after the making of the contract of sale;

(7) "goods" means every kind of moveable property other than actionable claims and money ; and includes [4][electricity, water, gas,] stock and shares, growing crops, grass and things attached to or forming part of the land which are agreed to be served before sale or under the contract of sale;

---

[1]This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extend the Act is applicable in the N.-W. F.P., subject to certain modifications, and also extended to the Excluded Area of Upper Tanawal (N.-W. F. P.) other than Phulera with effect from such date and subject to such modifications as may be notified, see N.-W. F. P. (Upper Tanawal) (Excluded Area) Laws Regulations, 1950.
This Act also extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, G. G. O. III of 1950 ; and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.
[2]Repealed by the Federal Laws (Revision and Declaration) Act, 1951(Act No. XXVI OF 1951), s.3 and 2nd Sch.
[3]Subs. by Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI OF 1960), s.3 and 2nd Sch. (w. e. f. the 14th October, 1955).
[4]Ins. by Ordinance No. XLVII OF 1962, s. 2.

(8) a person is said to be "insolvent" who has ceased to pay his debts in the ordinary course of business, or cannot pay his debts as they become due, whether he has committed an act of insolvency or not ;

(9) "mercantile agent" means a mercantile agent having in the customary course of business as such agent authority either to sell goods, or to consign goods for the purposes of sale, or to buy goods, or to raise money on the security of goods ;

(10) "price" means the money consideration for a sale of goods ;

(11) "property" means the general property in goods, and not merely a special property ;

(12) "quality of goods" includes their state or condition ;

(13) "seller" means a person who sells or agrees to sell goods;

(14) "specific goods" means goods identified and agreed upon at the time a contract of sale is made ; and

(15) expressions used but not defined in this Act and defined in the Contract Act, 1872, (IX of 1872), have the meanings assigned to them in that Act.

3. Application of provisions of Act IX of 1872.—The unrepealed provisions of the Contract Act, 1872, save in so far as they are inconsistent with the express provisions of this Act, shall continue to apply to contracts for the sale of goods.

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CHAPTER II
FORMATION OF THE CONTRACT

Contract of Sale

4. Sale and agreement to sell.—(1) A contract of sale of goods is a contract whereby the seller transfers or agrees to transfer the property in goods to the buyer for a price. There may be a contract of sale between one part-owner and another.

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(2) A contract of sale may be absolute or conditional.

(3) Where under a contract of sale the property in the goods is transferred from the seller to the buyer, the contract is called a sale, but where the transfer of the property in the goods is to take place at a future time or subject to some condition thereafter to be fulfilled, the contract is called an agreement to sell.

(4) An agreement to sell becomes a sale when the time elapses or the conditions are fulfilled subject to which the property in the goods is to be transferred.

Formalities of the Contract

5. Contract of sale how made.—(1) A contract of sale is made by an offer to buy or sell goods for a price and the acceptance of such offer. The contract may provide for the immediate delivery of the goods or immediate payment of the price or both, or for the delivery or payment by instalments, or that the delivery or payment or both shall be postponed.

(2) Subject to the provisions of any law for the time being in force, a contract of sale may be made in writing or by word of mouth, or partly in writing and partly by word of mouth or may be implied from the conduct of the parties.

Subject-matter of Contract

6. Existing or future goods.—(1) The goods which form the subject of a contract of sale may be either existing goods, owned or possessed by the seller, or future goods.

(2) There may be a contract for the sale of goods the acquisition of which by the seller depends upon a contingency which may or may not happen.

(3) Where by a contract of sale the seller purports to effect a present sale of future goods, the contract operates as an agreement to sell the goods.

7. Goods perishing before making of contract.—Where there is a contract for the sale of specific goods, the contract is void if the goods without the knowledge of the seller have, at the time when the contract was made, perished or become so damaged as no longer to answer to their description in the contract.

8. Goods perishing before sale but after agreement to sell.—Where there is an agreement to sell specific goods, and subsequently the goods without any fault on the part of the seller or buyer perish or become so damaged as no longer to answer to their description in the agreement before the risk passes to the buyer, the agreement is thereby avoided.

The Price

9. Ascertainment of Price.—(1) The price in a contract of sale may be fixed by the contract or may be left to be fixed in manner thereby agreed or may be determined by the course of dealing between the parties.

(2) Where the price is not determined in accordance with the foregoing provisions, the buyer shall pay the seller a reasonable price. What is a reasonable price is a question of fact dependent on the circumstances of each particular case.

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10. Agreement to sell at valuation.—(1) Where there is an agreement to sell goods on the terms that the price is to be fixed by the valuation of a third party and such third party cannot or does not make such valuation, the agreement is thereby avoided :

Provided that, if the goods or any part thereof have been delivered to, and appropriated by, the buyer, he shall pay a reasonable price therefor.

(2) Where such third party is prevented from making the valuation by the fault of the seller or buyer, the party not in fault may maintain a suit for damages against the party in fault.

Conditions and Warranties

11. Stipulations as to time.—Unless a different intention appears from the terms of the contract, stipulations as to time of payment are not deemed to be of the essence of a contract of sale. Whether any other stipulation as to time is of the essence of the contract or not depends on the terms of the contract.

12. Condition and warranty.—(1) A stipulation in a contract of sale with reference to goods which are the subject thereof may be a condition or a warranty.

(2) A condition is a stipulation essential to the main purpose of the contract, the breach of which gives rise to a right to treat the contract as repudiated.

(3) A warranty is a stipulation collateral to the main purpose of the contract, the breach of which gives rise to a claim for damages but not to a right to reject the goods and treat the contract as repudiated.

(4) Whether a stipulation in a contract of sale is condition or a warranty depends in each case on the construction of the contract. A stipulation may be a condition, though called a warranty in the contract.

13. When condition to be treated as warranty.—(1) Where a contract of sale is subject to any condition to be fulfilled by the seller, the buyer may waive the condition or elect to treat the breach of the condition as a breach of warranty and not as a ground for treating the contract as repudiated.

(2) Where a contract of sale is not severable and the buyer has accepted the goods or part thereof, [1][* * *] the breach of any condition to be fulfilled by the seller can only be treated as a breach of warranty and not as a ground for rejecting the goods and treating the contract as repudiated, unless there is a term of the contract, express or implied, to that effect.

(3) Nothing in this section shall affect the case of any condition or warranty fulfilment of which is excused by law by reason of impossibility or otherwise.

14. Implied undertaking as to title, etc.—In a contract of sale, unless the circumstances of the contract are such as to show a different intention there is—

(a) an implied condition on the part of the seller that, in the case of a sale, he has a right to sell the goods and that, in the case of an agreement to sell, he will have a right to sell the goods at the time when the property is to pass ;

(b) an implied warranty that the buyer shall have and enjoy quiet possession of the goods ;

(c) an implied warranty that the goods shall be free from any charge or encumbrance in favour of any third party not declared or known to the buyer before or at the time when the contract is made.

THE PAKISTAN CODE

15. Sale by description.—Where there is a contract for the sale of goods by description, there is an implied condition that the goods shall correspond with the description ; and, if the sale is by sample as well as by description it is not sufficient that the bulk of the goods corresponds with the sample if the goods do not also correspond with the description.

16. Implied conditions as to quality or fitness.—Subject to the provisions of this Act and of any other law for the time being in force, there is no implied warranty or condition as to the quality or fitness or any particular purpose of goods supplied under a contract of sale, except as follows :—

(1) Where the buyer, expressly or by implication, makes known to the seller the particular purpose for which the goods are required, so as to show that the buyer relies on the seller's skill or judgment, and the goods are of a description which it is in the course of the seller's business to supply (whether he is the manufacturer of producer or not), there is an implied condition that the goods shall be reasonably fit for such purpose :

Provided that, in the case of a contract for the sale of a specified article under its patent or other trade name, there is no implied condition as to its fitness for any particular purpose.

[1]Omitted by Ordinance No. XLVII OF 1962, s.3.

(2) Where goods are bought by description from a seller who deals in goods of that description (whether he is the manufacturer or producer or not), there is an implied condition that the goods shall be of merchantable quality :

Provided that, if the buyer has examined the goods, there shall be no implied condition as regards defects which such examination ought to have revealed.

(3) An implied warranty or condition as to quality or fitness for a particular purpose may be annexed by the usage of trade.

(4) An express warranty or condition does not negative a warranty or condition implied by this Act unless inconsistent therewith.

[1]**[*16A. Seller to inform buyer of defect in goods sold.*—**Notwithstanding anything contained in section 16, and save where the parties have entered into an agreement to the contrary, the seller shall be under an obligation to inform the buyer of any defect in the goods sold at the time of the contract, except in a case where the defect is obviously known to the buyer.]

17. Sale by sample.—(1) A contract of sale is a contract for sale by sample where there is a term in the contract, express or implied, to that effect.

(2) In the case of a contract for sale by sample there is an implied condition—

(*a*) that the bulk shall correspond with the sample in quality ;

(*b*) that the buyer shall have a reasonable opportunity of comparing the bulk with the sample ;

(*c*) that the goods shall be free from any defect, rendering then, unmerchantable, which would not be apparent on reasonable examination of the sample.

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CHAPTER III

EFFECTS OF THE CONTRACT

THE PAKISTAN CODE

Transfer of Property as between Seller And Buyer

18. Goods must be ascertained.—Where there is a contract for the sale of unascertained goods, no property in the goods is transferred to the buyer unless and until the goods are ascertained.

19. Property passes when intended to pass.—(1) Where there is a contract for the sale of specific or ascertained -goods the property in them, is transferred to the buyer at such time as the parties to the contract intend it to be transferred.

(2) For the purpose of ascertaining the intention of the parties regard shall be had to the terms of the contract, the conduct of the parties and the circumstances of the case.

[1]Ins. by Act No XVIII OF 1994, s.2.

(3) Unless a different intention appears, the rules contained in sections 20 to 24 are rules for ascertaining intention of the time at which the property in the goods is to pass to the buyer.

20. Specific goods in a deliverable state.—Where there is an unconditional contract for the sale of specific goods in a deliverable state, the property in the goods passes to the buyer when the contract is made, and it is immaterial whether the time of payment of the price or the time of delivery of the goods, or both, is postponed.

21. Specific goods to be put into a deliverable state.—Where there is a contract for the sale of specific goods and the seller is bound to do something to the goods for the purpose of putting them into a deliverable state, the property does not pass until such thing is done and the buyer has notice thereof.

22. Specific goods in a deliverable state, when the seller has to do anything thereto in order to ascertain price.—Where there is a contract for the sale of specific goods in a deliverable state, but the seller is bound to weigh, measure, test or do some other act or thing with reference to the goods for the purpose of ascertaining the price, the property does not pass until such act or thing is done and the buyer has notice thereof.

23. Sale of unascertained goods and appropriation.—(1) Where there is a contract for the sale of unascertained or future goods by description and goods of that description and in a deliverable state are unconditionally appropriated to the contract, either by the seller with the assent of the buyer or by the buyer with the assent of the seller, the property in the goods thereupon passes to the buyer. Such assent may be express or implied, and may be given either before or after the appropriation is made.

(2) **Delivery to carrier.**—Where, in pursuance of the contract, the seller delivers the goods to the buyer or to a carrier or other bailee (whether named by the buyer or not) for the purpose of transmission to the buyer, and does not reserve the right of disposal, he is deemed to have unconditionally appropriated the goods to the contract.

24. Goods sent on approval or "on sale or return".—When goods are delivered to the buyer on approval or "on sale or return" or other similar terms, the property therein passes to the buyer—

(a) when he signifies his approval or acceptance to the seller or does any other act adopting the transaction ;

(b) if he does not signify his approval or acceptance to the seller but retains the goods without giving notice of rejection, then, if a time has been fixed for the return of the goods, on the expiration of such time, and, if no time has been fixed, on the expiration of a reasonable time.

25. Reservation of right of disposal.—(1) Where there is a contract for the sale of specific goods or where goods are subsequently appropriated to the contract, the seller may, by the terms of the contract or appropriation, reserve the right of disposal of the goods until certain conditions are fulfilled. In such case, notwithstanding the delivery of the goods to a buyer, or to a carrier or other bailee for the purpose of transmission to the buyer, the property in the goods does not pass to the buyer until the conditions imposed by the seller are fulfilled.

[1][(2) Where goods are shipped or are dispatched by railway and are by the bill of lading or by railway receipt deliverable to the order of the seller or his agent the seller is *prima facie* deemed to reserve the right of disposal.]

[1]Subs. by Ordinance No. XLVII OF 1962, s.4

(3) Where the seller of goods draws on the buyer for the price and transmits the bill of exchange and [1][bill of lading or railway receipt] to the buyer together, to secure acceptance or payment of the bill of exchange, the buyer is bound to return the [1][bill of lading or railway receipt] if he does not honour the bill of exchange and if he wrongfully retains the [1][bill of lading or railway receipt] the property in the goods does not pass to him.

26. Risk *prima facie* passes with property.—Unless otherwise agreed, the goods remain at the seller's risk until the property therein is transferred to the buyer, but when the property therein is transferred to the buyer, the goods are at the buyer's risk whether delivery has been made or not :

Provided that, where delivery has been delayed through the fault of either buyer or seller, the goods are at the risk of the party in fault as regards any loss which might not have occurred but for such fault :

Provided also that nothing in this section shall affect the duties or liabilities of either seller or buyer as a bailee of the goods of the other party.

Transfer of Title

27. Sale by person not the owner.—Subject to the provisions of this Act and of any other law for the time being in force, where goods are sold by a person who is not the owner thereof and who does not sell them under the authority or with the consent of the owner, the buyer acquires no better title to the goods than the seller had, unless the owner of the goods is by his conduct precluded from denying the seller's authority to sell :

Provided that, where a mercantile agent is, with the consent of the owner, in possession of the goods or of a document of title to the goods, any sale made by him, when acting in the ordinary course of business of a mercantile agent, shall be as valid as if he were expressly authorised by the owner of the goods to make the same; provided that buyer acts in good faith and has not at the time of the contract of sale notice that the seller has not authority to sell.

28. Sale by one of joint owners.—If one of several joint owners of goods has the sole possession of them by permission of the co-owners, the property in the goods in transferred to any person who buys them of such joint owner in good faith and has not at the time of the contract of sale notice that the seller has not authority to sell.

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29. Sale by person in possession under voidable contract.—When the seller of goods has obtained possession thereof under a contract voidable under section 19 or section 19A of the Contract Act, 1872 (IX of 1872), but the contract has not been rescinded at the time of the sale, the buyer acquires a good title to the goods, provided he buys them in good faith and without notice of the seller's defect of title.

30. Seller or buyer in possession after sale.—(1) Where a person, having sold goods, continues or is in possession of the goods or of the documents of title to the goods, the delivery or transfer by that person or by a mercantile agent acting for him, of the goods or documents of title under any sale, pledge or other disposition thereof to any person receiving the same in good faith and without notice of the previous sale shall have the same effect as if the person making the delivery or transfer were expressly authorised by the owner of the goods to make the same.

[1]Subs. by Ordinance No. XLVII OF 1962, s.4.

(2) Where a person, having bought or agreed to buy goods, obtains, with the consent of the seller, possession of the goods or the documents of title to the goods, the delivery or transfer by that person or by a mercantile agent acting for him, of the goods or documents of title under any sale, pledge or other disposition thereof to any person receiving the same in good faith and without notice of any lien or other right of the original seller in respect of the goods shall have effect as if such lien or right did not exist.

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CHAPTER IV

PERFORMANCE OF THE CONTRACT

31. Duties of seller and buyer.—It is the duty of the seller to deliver the goods and of the buyer to accept and pay for them, in accordance with the terms of the contract of sale.

32. Payment and delivery are concurrent conditions.—Unless otherwise agreed, delivery of the goods and payment of the price are concurrent conditions, that is to say, the seller shall be ready and willing to give possession of the goods to the buyer in exchange for the price, and the buyer shall be ready and willing to pay the price in exchange for possession of the goods.

33. Delivery.—Delivery of goods sold may be made by doing anything which the parties agree shall be treated as delivery or which has effect of putting the goods in the possession of the buyer or of any person authorised to hold them on his behalf.

34. Effect of part delivery.—A delivery of part of goods, to progress of the delivery of the whole, has the same effect, for the purpose of passing the property in such goods, as a delivery of the whole; but a delivery of part of the goods, with an intention of severing it from the whole, does not operate as a delivery of the remainder.

35. Buyer to apply for delivery.—Apart from any express contract, the seller of goods is not bound to deliver them until the buyer applies for delivery.

36. Rule as to delivery.—(1) Whether it is for the buyer to take possession of the goods or for the seller to send them to the buyer is a question depending in each case on the contract, express or implied, between the parties. Apart from any such contract, goods sold are to be delivered at the place at which they are at the time of the sale, and goods agreed to be sold are to be delivered at the place at which they are at the time of the agreement to sell, or if not then in existence, at the place at which they are manufactured or produced.

(2) Where under the contract of sale the seller is bound to send the goods to the buyer, but no time for sending them is fixed, the seller is bound to send them within a reasonable time.

(3) Where the goods at the time of sale are in the possession of third persons, there is no delivery by seller to buyer unless and until such third person acknowledges to the buyer that he holds the goods on his behalf :

Provided that nothing in this section shall affect the operation of the issue or transfer of any document of title to goods.

(4) Demand or tender of delivery may be treated as ineffectual unless made at a reasonable hour. What is a reasonable hour is a question of fact.

(5) Unless otherwise agreed, the expenses of and incidental to putting the goods into a deliverable state shall be borne by the seller.

37. Delivery of wrong quantity.—(1) Where the seller delivers to the buyer a quantity of goods less than he contracted to sell, the buyer may reject them, but if the buyer accepts the goods so delivered he shall pay for them at the contract rate.

(2) Where the seller delivers to the buyer a quantity of goods larger than he contracted to sell, the buyer may accept the goods included in the contract and reject the rest, or [1][, if the goods delivered are such that it is difficult or time consuming to separate the quantity contracted for,] he may reject the whole. If the buyer accepts the whole of the goods so delivered, he shall pay for them at the contract rate.

(3) Where the seller delivers to the buyer the goods he contracted to sell mixed with goods of a different description not included in the contract, the buyer may accept the goods which are in accordance with the contract and reject the rest, or may reject the whole.

(4) The provisions of this section are subject to any usage of trade, special agreement or course of dealing between the parties.

38. Installment deliveries.—(1) Unless otherwise agreed, the buyer of goods is not bound to accept delivery thereof by installments.

(2) Where there is a contract for the sale of goods to be delivered by stated instalments which are to be separately paid for, and the seller makes no delivery or defective delivery in respect of one or more instalments, or the buyer neglects or refuses to take delivery of or pay for one or more instalments, it is a question in each case depending on the terms of the contract and the circumstances of the case, whether the breach of contract is a repudiation of the whole contract, or whether it is a severable breach giving rise to a claim for compensation, but not to a right to treat the whole contract as repudiated.

39. Delivery to carrier or wharfinger.—(1) Where in pursuance of a contract of sale, the seller is authorised or required to send the goods to the buyer, delivery of the goods to a carrier, whether named by the buyer or not, for the purpose of transmission to the buyer, or delivery of the goods to a wharfinger for safe custody, is *prima facie* deemed to be a delivery of the goods to the buyer.

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(2) Unless otherwise authorised by the buyer, the seller shall make such contract with the carrier or wharfinger on behalf of the buyer as may be reasonable having regard to the nature of the goods and the other circumstances of the case. If the seller omits so to do, and the goods are lost or damaged in course of transit or whilst in the custody of the wharfinger, the buyer may decline to treat the delivery to the carrier or wharfinger as a delivery to himself, or may hold the seller responsible in damages.

(3) Unless otherwise agreed, where goods are sent by the seller to the buyer by a route involving sea transit, in circumstances in which it is unsual to insure, the seller shall give such notice to the buyer as may enable him to insure them during their sea transit, and if the seller fails so to do, the goods shall be deemed to be at his risk during such sea transit.

40. Risk where goods are delivered at distant place.—Where the seller of goods agrees to deliver them at his own risk at a place other than that where they are when sold, the buyer shall, nevertheless, unless otherwise agreed, take any risk of deterioration in the goods necessarily incident to the course of transit.

[1]Ins. by Act No. XVIII OF 1994, s. 3.

41. Buyer's right of examining the goods.—(1) Where goods are delivered to the buyer which he has not previously examined, he is not deemed to have accepted them unless and until he has had a reasonable opportunity of examining them for the purpose of ascertaining whether they are in conformity with the contract.

(2) Unless otherwise agreed, when the seller tenders delivery of goods to the buyer, he is bound, on request, to afford the buyer a reasonable opportunity of examining the goods for the purpose of ascertaining whether they are in conformity with the contract.

42. Acceptance.—The buyer is deemed to have accepted the goods when he intimates to the seller, that he has accepted them, or when the goods have been delivered to him and he does any act in relation to them which is inconsistent with the ownership of the seller, or when, after the lapse of a reasonable time, he retains the goods without intimating to the seller that he has rejected them.

43. Buyer not bound to return rejected goods.—Unless otherwise agreed, where goods are delivered to the buyer and he refuses to accept them, having the right so to do, he is not bound to return them to the seller, but it is sufficient if he intimates to the seller that he refuses to accept them.

44. Liability of buyer for neglecting or refusing delivery of goods.—When the seller is ready and willing to deliver the goods and requests the buyer to take delivery, and the buyer does not within a reasonable time after such request take delivery of the goods, he is liable to the seller for any loss occasioned by his neglect or refusal to take delivery, and also for a reasonable charge for the care and custody of the goods :

Provided that nothing in this section shall affect the rights of the seller where the neglect or refusal of the buyer to take delivery amounts to a repudiation of the contract.

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CHAPTER V

RIGHTS OF UNPAID SELLER AGAINST THE GOODS

45. "Unpaid seller" defined.—(1) The seller of goods is deemed to be an "unpaid seller" within the meaning of this Act—

(*a*) when the whole of the price has not been paid or tendered ;

(*b*) when a bill of exchange or other negotiable instrument has been received as conditional payment, and the condition on which it was received has not been fulfilled by reason of the dishonour of the instrument or otherwise.

(2) In this Chapter, the term "seller" includes any person who is in the position of a seller, as, for instance, and agent of the seller to whom the bill of lading has been indorsed, or a consignor or agent who has himself paid, or is directly responsible for, the price.

46. Unpaid seller's rights.—(1) Subject to the provisions of this Act and of any law for the time being in force, notwithstanding that the property in the goods may have passed to the buyer, the unpaid seller of goods, as such, has by implication of law—

(*a*) a lien on the goods for the price while he is in possession of them ;

(*b*) in case of the insolvency of the buyer a right of stopping the goods in transit after he has parted with the possession of them ;

(*c*) a right of re-sale as limited by this Act.

(2) Where the property in goods has not passed to the buyer, the unpaid seller has, in addition to his other remedies, a right of withholding delivery similar to and co-extensive with his rights of lien and stoppage in transit where the property has passed to the buyer.

Unpaid seller's Lien

47. Seller's lien.—(1) Subject to the provisions of this Act, the unpaid seller of goods who is in possession of them is entitled to retain possession of them until payment or tender of the price in the following cases, namely :—

(*a*) where the goods have been sold without any stipulation as to credit ;

(*b*) where the goods have been sold on credit, but the term of credit has expired ;

(*c*) where the buyer becomes insolvent.

(2) The seller may exercise his right of lien notwithstanding that he is in possession of the goods as agent or bailee for the buyer.

48. Part delivery.—Where an unpaid seller has made part delivery of the goods, he may exercise his right of lien on the remainder, unless such part delivery has been made under such circumstances as to show an agreement to waive the lien.

49. Termination of lien.—(1) The unpaid seller of goods loses his lien thereon—

(*a*) when he delivers the goods to a carrier or other bailee for the purpose of transmission to the buyer without reserving the right of disposal of the goods ;

(b) when the buyer or his agent lawfully obtains possession of the goods ;

(c) by waiver thereof.

(2) The unpaid seller of goods, having a lien thereon, does not lose his lien by reason only that he has obtained a decree for the price of the goods.

Stoppage in Transit

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50. Right of stoppage in transit.—Subject to the provisions of this Act, when the buyer of goods becomes insolvent, the unpaid seller who has parted with the possession of the goods has the right of stopping them in transit, that is to say, he may resume possession of the goods as long as they are in the course of transit, and may retain them until payment or tender of the price.

51. Duration of transit.—(1) Goods are deemed to be in course of transit from the time when they are delivered to a carrier or other bailee for the purpose of transmission to the buyer, until the buyer or his agent in that behalf takes delivery of them from such carrier or other bailee.

(2) If the buyer or his agent in that behalf obtains delivery of the goods before their arrival at the appointed destination, the transit is at an end.

(3) If, after the arrival of the goods at the appointed destination, the carrier or other bailee acknowledges to the buyer or his agent that he holds the goods on his behalf and continues in

possession of them as bailee for the buyer or his agent, the transit is at an end and it is immaterial that a further destination for the goods may have been indicated by the buyer.

(4) If the goods are rejected by the buyer and the carrier or other bailee continues in possession of them, the transit is not deemed to be at an end, even if the seller has refused to receive them back.

(5) When goods are delivered to a ship chartered by the buyer, it is a question depending on the circumstances of the particular case, whether they are in the possession of the master as a carrier or as agent of the buyer.

(6) Where the carrier or other bailee wrongfully refuses to deliver the goods to the buyer or his agent in that behalf, the transit is deemed to be at an end.

(7) Where part delivery of the goods has been made to the buyer or his agent in that behalf, the remainder of the goods may be stopped in transit, unless such part delivery has been given in such circumstances as to show an agreement to give up possession of the whole of the goods.

52. How stoppage in transit is effected.—(1) The unpaid seller may exercise his right of stoppage in transit either by taking actual possession of the goods, or by giving notice of his claim to the carrier or other bailee in whose possession the goods are. Such notice may be given either to the person in actual possession of the goods or to his principal. In the latter case the notice, to be effectual, shall be given at such time and in such circumstances that the principal, by the exercise of reasonable diligence, may communicate it to his servant or agent in time to prevent a delivery to the buyer.

(2) When notice of stoppage in transit is given by the seller to the carrier or other bailee in possession of the goods, he shall re-deliver the goods to, or according to the directions of, the seller. The expenses of such re-delivery shall be borne by the seller.

Transfer by Buyer and Seller

53. Effect of sub-sale or pledge by buyer.—(1) Subject to the provisions of this Act, the unpaid seller's right of lien or stoppage in transit is not affected by any sale or other disposition of the goods which the buyer may have made, unless the seller has assented thereto :

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Provided that where a document of title to goods has been issued or lawfully transferred to any person as buyer or owner of the goods, and that person transfers the document to a person who takes the document in good faith and for consideration, then, if such last mentioned transfer was by way of sale, the unpaid seller's right of lien or stoppage in transit is defeated, and, if such last mentioned transfer was by way of pledge or other disposition for value, the unpaid seller's right of lien or stoppage in transit can only be exercised subject to the rights of the transferee.

(2) Where the transfer is by way of pledge, the unpaid seller may require the pledge to have the amount secured by the pledge satisfied in the first instance, as far as possible, out of any other goods or securities of the buyer in the hands of the pledgee and available against the buyer.

54. Sale not generally rescinded by lien or stoppage in transit.—(1) Subject to the provisions of this section, a contract of sale is not rescinded by the mere exercise by an unpaid seller of his right of lien or stoppage in transit.

(2) Where the goods are of a perishable nature, or where the unpaid seller who has exercised his right of lien or stoppage in transit gives notice to the buyer of his intention to re-sell, the unpaid seller may, if the buyer does not within a reasonable time pay or tender the price, re-sell the goods

within a reasonable time and recover from the original buyer damages for any loss occasioned by his breach of contract, but the buyer shall not be entitled to any profit which may occur on the re-sale. If such notice is not given, the unpaid seller shall not be entitled to recover such damages and the buyer shall be entitled to the profit, if any, on the re-sale.

(3) Where an unpaid seller who has exercised his right of lien or stoppage in transit re-sells the goods, the buyer acquires a good title thereto as against the original buyer, notwithstanding that no notice of the re-sale has been given to the original buyer.

(4) Where the seller expressly reserves a right of re-sale in case the buyer should make default, and, on the buyer making default, re-sells the goods, the original contract of sale is thereby rescinded, but without prejudice to any claim which the seller may have for damages.

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CHAPTER VI

SUITS FOR BREACH OF THE CONTRACT

55. Suit for price.—(1) Where under a contract of sale the property in the goods has passed to the buyer and the buyer wrongfully neglects or refuses to pay for the goods according to the terms of the contract, the seller may sue him for the price of the goods.

(2) Where under a contract of sale the price is payable on a day certain irrespective of delivery and the buyer wrongfully neglects or refuses to pay such price, the seller may sue him for the price although the property in the goods has not passed and the goods have not been appropriated to the contract.

56. Damages for non acceptance.—Where the buyer wrongfully neglects or refuses to accept and pay for the goods, the seller may sue him for damages for non-acceptance.

57. Damages for non-delivery.—Where the seller wrongfully neglects of refuses to deliver the goods to the buyer, the buyer may sue the seller for damages for non-delivery.

58. Specific performance.—Subject to the provisions of Chapter II of the Specific Relief Act, 1877 (I of 1877), in any suit for breach of contract to deliver specific or ascertained goods, the Court may, if it thinks fit, on the application of the plaintiff, by its decree direct that the contract shall be performed specifically, without giving the defendant the option of retaining the goods on payment of damages. The decree may be unconditional, or upon such terms and conditions as to damages, payment of the price or otherwise, as the Court may deem just, and the application of the plaintiff may be made at any time before the decree.

59. **Remedy for breach of warranty.**—(1) Where there is a breach of warranty by the seller, or where the buyer elects or is compelled to treat any breach of a condition on the part of the seller as a breach of warranty, the buyer is not by reason only of such breach of Warranty entitled to reject the goods ; but he may—

(*a*) set up against the seller the breach of warranty in diminution or extinction of the price ; or

(*b*) sue the seller for damages for breach of warranty.

(2) The fact that a buyer has set up a breach of warranty in diminution of extinction of the price does not prevent him from suing for the same breach of warranty if he has suffered further damage.

60. Repudiation of contract before due date.—Where either party to a contract of sale repudiates the contract before the date of delivery, the other may either treat the contract as subsisting and wait till the date of delivery, or he may treat the contract as rescinded and sue for damages for the breach.

61. Interest by way of damages and special damages.—(1) Nothing in this Act shall affect the right of the seller or the buyer to recover interest or special damages in any case where by law interest or special damages may be recoverable, or to recover the money paid where the consideration for the payment of it has failed.

(2) In the absence of a contract to the contrary, the Court may award interest at such rate as it thinks fit on the amount of the price—

(*a*) to the seller in a suit by him for the amount of the price—from the date of the tender of the goods or from the date on which the price was payable ;

(b) to the buyer in a suit by him for the refund of the price in a case of a breach of the contract on the part of the seller—from the date on which the payment was made.

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CHAPTER VII
MISCELLANEOUS

62. Exclusion of implied terms and conditions.—Where any right, duty or liability would arise under a contract of sale by implication of law, it may be negatived or varied by express agreement or by the course of dealing between the parties, or by usage, if the usage is such as to bind both parties to the contract.

63. Reasonable time a question of fact.—Where in this Act any reference is made to a reasonable time, the question what is a reasonable time is a question of fact.

64. Auction sale.—In the case of a sale by auction.—

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(1) where goods are put up for sale in lots, each lot is *prima facie* deemed to be the subject of a separate contract of sale ;

(2) the sale is complete when the auctioneer announces its completion by the fall of the hammer or in other customary manner ; and, until such announcement is made, any bidder may retract his bid ;

(3) a right to bid may be reserved expressly by or on behalf of the seller and, where such right is expressly so reserved, but not otherwise, the seller or any one person on his behalf may, subject to the provisions hereinafter contained, bid at the auction ;

(4) where the sale is not notified to be subject to a right to bid on behalf of the seller, it shall not be lawful for the seller to bid himself or to employ and person to bid at such sale, or for the auctioneer knowingly to take any bid from the seller or any such person ; and any sale contravening this rule may be treated as fraudulent by the buyer ;

(5) the sale may be notified to be subject to a reserved or upset price ;

(6) if the seller makes use of pretended bidding to raise the price, the sale is voidable at the option of the buyer.

[1]**[64A. In contracts of sale amount of increased or decreased duty or tax to be added or deducted.**—In the event of any duty of customs or excise [2][or tax] on any goods being imposed, increased, decreased or remitted after the making of any contract for the sale of such goods without stipulation [2][as to the payment of duty or tax where the duty or tax] was not chargeable at the time of the making of the contract, or for the sale of such goods [2][duty-paid or tax-paid where duty or tax] was chargeable at that time,—

(*a*) if such imposition or increase so takes effect that [2][the duty or tax or increased duty or tax], as the case may be, or any part thereof, is paid, the seller may add so much to the contract price as will be equivalent to the amount paid [2][in respect of such duty or tax or increase of duty or tax], and he shall be entitled to be paid and to sue for and recover such addition, and

(*b*) if such decrease or remission so takes effect that the decreased duty [2][or tax] only or no duty [2][or tax], as the case may be, is paid, the buyer may deduct so much from the contract price as will be equivalent to the decrease of duty [2][or tax] or remitted duty [2][or tax], and he shall not be liable to pay, or be sued for or in respect of, such deduction.]

[2]**[*Explanation*.**—The word "tax" in this section means the tax payable under the Sales Tax Act, 1951 (III of 1951).]

65. [3]**[*Repealed*]**

66. Savings.—(1) Nothing in this Act or in any repeal effected thereby shall affect or be deemed to affect—

(a) any right, title, interest, obligation or liability already acquired, accrued or incurred before the commencement of this Act, or

(*b*) any legal proceedings or remedy in respect of any such right, title, interest, obligation or lability, or

(*c*) anything done or suffered before the commencement of this Act, or

(*d*) an enactment relating to the sale of goods which is not expressly repealed by this Act, or

(*e*) any rule of law not inconsistent with this Act.

(2) The rules of insolvency relating to contracts for the sale of goods shall continue to apply thereto, notwithstanding anything contained in this Act.

(3) The provisions of this Act relating to contracts of sale do not apply to any transaction in the form of a contract of sale which is intended to operate by way of mortgage, pledge, charge or other security.

———

Date: 20-08-2024

[1]Ins. by Act No. XLI OF 1940, s. 2.
[2]Ins. and Subs. by Act. No. V OF 1956, s.2.
[3]Repealed by the Repealing Act No. I of 1938, s. 2 and Schedule.

THE SARAIS ACT, 1867

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THE SARAIS ACT, 1867

[1]ACT No. XXII OF 1867

[*15th March*, 1867]

An Act for the regulation of public Sarais and Puraos.

Preamble. WHEREAS it is expedient to provide for the regulation of public Sarais and Puraos:

It is hereby enacted as follows:—

1. Interpretation-clause.— [*Repeal of Bengal Regulation XIV of* 1807, *section* 11, *clause 5.*] *Rep. by the Amending Act,* 1891 *(XII of* 1891).

2. "**Sarai".** In this Act, unless there be something repugnant in the subject or context,—

"sarai" means any building used for the shelter and accommodation of travellers, and includes, in any case in which only part of a building is used as a sarai, the part so used of such building. It also includes a purao so far as the provisions of this Act are applicable thereto.

"Keeper of a sarai". "keeper of a sarai" includes the owner and any person having or acting in the care or management thereof:

"**Magistrate of the District."**— [2]"Magistrate of the District" means the chief officer charged with the executive administration of a district in criminal matters whatever may be his designation:

[3]* * * * * * *

3. **Notice of this Act to be given to keepers of sarais.** Within six months after this Act shall come into operation, the Magistrate of the District in which any sarai to which this Act shall apply may be situate shall, and from time to time thereafter such Magistrate may, give to the keeper of every such sarai notice in writing of this Act, by leaving such notice for the keeper at the sarai; and shall by such notice require the keeper to register the sarai as by this Act provided.

Such notice may be in the form in the Schedule to this Act annexed or to the like effect.

4. Registers of sarais to be kept. The Magistrate of the District shall keep a register in which shall be entered by such Magistrate or such other person as he shall appoint in this behalf, the names and residences of the keepers of all sarais within his jurisdiction, and the situation of every such sarai.

No charge shall be made for making any such entry.

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1867, p.194 and for Proceedings in Council relating to the Bill, *see ibid.*, Supplement pp. 62, 72, 158, 225 and 232.
The Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications, and extended to the Excluded Area of Upper Tanawal (N..W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified. *see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
The Act has been applied to Baluchistan by the Baluchistan Laws Regulation. 1913 (II of 1913), s. 3.
It has been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gaz. of India, 1937, Pt. I, p. 1499.
[2]This reference should now be read as "District Magistrate", *see* para. 2 of section 3 of the Code of Criminal Procedure, 1898 (Act 5 of 1898).
[3]The words "Words in the singular include the plural, and *vice versa*", rep. by the Repealing and Amending Act, 1914 (10 of 1914), and the definition of "L.G." by A. O., 1937.

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5. Lodgers, etc.,not to be received in sarais until registered. After one month after the giving of such notice to register as by this Act provided, the keeper of any sarais or any other person shall not receive any lodger or allow any person, cattle, sheep, elephant, camel or other animal, or any vehicle, to halt or be placed in such sarais until the same and the name and residence of the keeper thereof shall have been registered as by this Act provided.

6. Magistrate may refuse to register keeper not producing certificate of character. The Magistrate of the District may, if he shall think fit, refuse to register as the keeper of a sarai a person who does not produce a certificate of character in such form and signed by such person as the [1][Provincial Government] shall from time to time direct.

7. Duties of keepers of sarais. The keeper of a sarai shall be bound—

(1) when any person in such sarai is ill of any infectious or contagious disease, or dies of such disease, to give immediate notice thereof to the nearest police-station:

(2) at all times when required by any Magistrate or any other person duly, authorized by the Magistrate of the District in this behalf, to give him free access to the sarai and allow him to inspect the same or any part thereof:

(3) to thoroughly cleanse the rooms and verandahs, and drains of the sarai, and the wells, tanks, or other sources from which water is obtained for the persons or animals using it, to the satisfaction of, and so often as shall be required by, the Magistrate of the District, or such person as he shall appoint in this behalf:

(4) to remove all noxious vegetation on or near the sarai, and all trees and branches of trees capable of affording to thieves means of entering or leaving the sarai:

(5) to keep the gates, walls, fences, roofs and drains of the sarai in repair:

(6) to provide such number of watchmen as may, in the opinion of the Magistrate of the District, subject to such rules as the [1][Provincial Government] may prescribe in this behalf, be necessary for the safety and protection of persons and animals or vehicles lodging in, halting at or placed in the sarai: and

(7) to exhibit a list of charges for the use of the sarai at such place and in such form and languages as the Magistrate of the District shall from time to time direct.

8. Power to order reports from keepers of sarais. The keeper of a sarai shall from time to time, if required so to do by an order of the Magistrate of the District served upon him, report, either orally or in writing as may be directed by the Magistrate to such Magistrate or to such person as the Magistrate shall appoint, every person who resorted to such sarai during the preceding day or night.

If written reports are required for any space of time exceeding a single day or night, schedules shall be furnished by the Magistrate of the District to the keeper.

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[1]Subs. by A. O., 1937. for. "L.G.".

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The keeper shall from time to time fill up the said schedules with the information so required, and transmit them to the said Magistrate, in such manner and at such intervals as may from time to time be ordered by him.

9. Power to shut up, secure, clear and clean deserted sarais. If any sarai by reason of abandonment or of disputed ownership shall remain untenanted, and thereby become a resort of idle and disorderly persons, or become in a filthy or unwholesome state, or be complained of by any two or more of the neighbours as a nuisance, the Magistrate of the District, after due enquiry, may cause notice in writing to be given to the owner or to the person claiming to be the owner, if he be known and resident within the district, and may also cause such notice to be put on some conspicuous part of the sarai, requiring the persons concerned therein, whoever they may be, to secure, enclose, clean or clear the same;

and if such requisition shall not be complied with within eight days, the Magistrate of the District may cause the necessary work to be executed, and all expenses thereby incurred shall be paid by the owner of the sarai, and shall be recoverable like penalties under this Act, or, in case of abandonment or disputed ownership of the sarai, by the sale of any material found therein.

10. Taking down of repairing ruinous saris. If a sarai or any part thereof be deemed by the Magistrate of the District to be in a ruinous state, or likely to fall, or in any way dangerous to the persons or animals lodging in or halting at the sarai, he shall give notice in writing to the keeper of the sarai requiring him forthwith to take down, repair or secure (as the case may be) the sarai or such part thereof as the case may require.

If the keeper do not begin to take down, repair or secure the sarai, or such part as aforesaid within three days after such notice, and complete such work with due diligence, the Magistrate shall cause all or so much of the sarai as he shall think necessary to be taken down, repaired or otherwise secured.

All the expenses so incurred by the Magistrate shall be paid by the keeper of the sarai, and shall be recoverable from him as hereinafter mentioned.

THE PAKISTAN CODE

11. Sale of materials of ruinous sarais. If any such sarai or any part thereof be taken down by virtue of the powers aforesaid, the Magistrate of the District may sell the materials thereof, or so much of the same as shall be taken down under the provisions of the last preceding section, and apply the proceeds of such sale in payment of the expenses incurred, and shall restore the over-plus (if any) arising from such sale to the owner of such sarai on demand, and may recover the deficiency (if any) as if the amount thereof were a penalty under this Act.

12. Penalty of any permitting sarais to be filthy or overgrown. Whoever, being the keeper of any sarai, suffers the same to be in a filthy and unwholesome state, or overgrown with vegetation, or after the expiration of two days from the time of his receiving notice in writing from the Magistrate of the District to cleanse or clear the same, or after he shall have been convicted of suffering the same to be in such a state or so overgrown as aforesaid, shall allow the same to continue in such state, or so overgrown, shall be liable to the penalties provided in section 14 of this Act:

Proviso. Provided that the Magistrate of the District may, in lieu of enforcing such daily penalty, enter on and cleanse or clear the said sarai, and the expense incurred by the Magistrate in

respect there of shall be paid to him by the keeper, and shall be recoverable as by this Act provided in the case of penalties.

13. Power for Provincial Government to make regulations. The [1][Provincial Government] may from time to time make regulations for the better attainment of the objects of this Act, provided that such rules be not inconsistent with this Act or with any other law for the time being in force, and may from time to time repeal, alter and add to the same.

All regulations made under this Act and all repeals thereof, and alterations and additions thereto, shall be published in the [2][official Gazette].

14. Penalty for infringing Act or regulations. If the keeper of a sarai offend against any of the provisoins of this Act or any of the regulations made in pursuance of this Act, he shall for every such offence be liable on conviction before any Magistrate to a penalty not exceeding twenty rupees, and to a further penalty not exceeding one rupee a day for every day during which the offence continues:

Provided always that this Act shall not exempt any person from any penalty or other liability to which he may be subject, irrespective of this Act.

All penalties imposed under this Act may be recovered in the same manner as fines may be recovered under [3]section 61 of the of Code of Criminal Procedure (Act V of 1898).

15. Conviction for third offence to disqualify persons from keeping sarais. Where a keeper of a sarai is convicted of a third offence under this Act, he shall not afterwards act as keeper of a sarai without the license in writing of the Magistrate of the District, who may either withhold such license or grant the same on such terms and conditions as he may think fit.

16. Nothing in Act to apply to certain sarai. No part of this Act, except section 8, shall apply to any sarai which may be under the direct management of the [1] [Provincial Government] or of any Municipal Committee.

THE PAKISTAN CODE

17. Power to Provincial Government to extend this Act. [*Extent of Act.*] *Omitted by A. O.,* 1949, *Sch.*

[4]*It shall be lawful for the [1][Provincial Government] by notification in the [2][official Gazette], to [5]extend this Act, *mutatis mutandis* to any [6][part of the territories under its Government] [7]* * *.

18. Short title. This Act may be called the Sarais Act, 1867.

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[1]Subs. by A.O., 1937, for "L. G.".
[2]Subs. *ibid.*, for "local official Gazette".
[3]*See* now sections 386, 387 and 389 of the Code of Criminal Procedure, 1898 (Act 5 of 1898).
[4]The word "But" omitted by A. O., 1949, Sch.
[5]It has been extended to the Punjab, *see* Notification No. 4499, dated 13th December, 1879, in Punjab Government Gazette, 1879, Pt. I, p. 727, but its application to that part of the Hazara District, known as Upper Tanawal, which then formed part of the Punjab, is barred by the Hazara (Upper Tanawal) Regulation, 1900 (2 of 1900).
It has been extended, *mutatis mutandis* to the whole of the Province of West Pakistan with effect from the 12th day of October, 1959, *see* West Pakistan Gazette, 1959, Pt. I, p. 797.
[6]Subs. by A.O., 1949, Sch., for "other part of British India, except the towns of Calcutta, Madras and Bombay".
[7]The words "and the Settlement of Prince of Wales Island, Singapore and Malacca" rep. by the Amending Act, 1891 (12 of 1891).

SCHEDULE

FORM OF NOTICE

Take notice that on the day of 1867, an Act called the Sarais Act, 1867 was passed, and that before the day of 18, you being keeper of a sarai [or purao] within [*here state that the district over which the jurisdiction of the Magistrtate giving the notice extends*], must have your sarai [or purao] registered and that the register is to be kept at [*here state where the register is to be kept*] and that, if you do not have your sarai [or purao] so registered, you will be liable to a penality not exceeding twenty rupees, and to a further penality not exceeding one rupee a day for every day during which the offence continues, and that on your applying to [*here give the name and address of the person to keep the register*] he will register your sarai [*or* purao] free of all charge to you.

Dated the day of 18.

_____

THE PAKISTAN CODE

Date: 13-09-2024

THE SECURITIES ACT, 1920

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THE SECURITIES ACT, 1920

[1]ACT NO. X OF 1920

[11th March, 1920]

An Act to consolidate and amend the law relating to Government securities.

WHEREAS it is expedient to consolidate and amend the law relating to Government securities; It is hereby enacted as follows:-

1. Short title, extent and commencement.—(1) This Act may be called the [2]* Securities Act, 1920;

[3][(2) It extends to the whole of Pakistan]; and

(3) It shall come into force on the first day of April, 1920.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,-

(*a*) "Government security" means promissory notes (including treasury bills), stock-certificates, bearer bonds and all other securities issued by the [4][Federal Government] or by any [5][Provincial Government] in respect of any loan contracted either be or after the passing of this Act, but does not include currency note; and

(*b*) "prescribed" means prescribed by rules made under this Act:

[6][(*c*) "the Government "or "Government" in relation to any loan or security, means the Government raising the loan or issuing the security.]

3. Notice of trust not receivable save as provided.— (1) Save as otherwise provided in or under this Act, no notice of any trust in respect of any Government security shall be receivable by the Government.

THE PAKISTAN CODE

[1]For Statement of Objects and Reasons, *see* Gazette of India, Extraordinary, dated the 29th October, 1919, p. 529; for Report of Select committee, *see* Gazette of India, 1920, Pt. V, p. 39; and for Proceedings in council, *see ibid*., 1920, Pt. VI, p. 734.
This Act does not apply to Government securities to which the Public Debt (Central Government) Act, 1944 (18 of 1944) applies, and to all matters for which provision is made by that Act, *see* s. 29 of the said Act.
It has been extended to the Leased Areas of Balochistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O 3 of 1950); and also applied in the Federated Areas of Balochistan, *see* Gazette of India, 1937, Pt. I, p. 1499.
It has been extended to:-
(*i*) the Balochistan States Union by the Balochistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O 4 of 1953), as amended;
(*ii*) Khairpur State, by the Khairpur (Federal Laws) (Extension) Order, 1953 (G.G.O. 5 of 1953), as amended.
The Act has been and shall be deemed to have been brought into force in Gwadur (with effect from the 8th September, 1958), by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960) s. 2.
[2]The word "Indian" omitted by A.O., 1949.
[3] Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for sub-section (2) as amended by A.O., 1949 and the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 8.
[4]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which was previously amended by A.O., 1937, for "G.G. in C.".
[5]Subs. by A.O., 1937, for "L.G.,"
[6]Clause (c) ins., *ibid.*

(2) The Government shall not be deemed to have received notice of any trust by reason only of the fact that it has recognised an endorsement on a Government security by an executor or administrator as such, nor shall it inquire into the terms of any will by which such executor or administrator may be bound, but, on being satisfied of the due appointment of such executor or administrator, it shall be entitled to treat him as the full owner of any Government security belonging to the estate of the person whom he represents.

4. Right of survivors of joint or several payees of Government securities.—(1) Notwithstanding anything in section 45 of the Contract Act, 1872 (IX of 1872),—

(*a*) when a Government security is payable to two or more persons jointly, and either or any of them dies, the security shall be payable to the survivor or survivors of those persons, and

(*b*) when a Government security is payable to two or more persons severally, and either or any of them dies, the security shall be payable to the survivor or survivors of those persons, or to the representative of the deceased, or to any of them.

(2) This section shall apply whether such death occurred or occurs before or after this Act comes into force.

(3) Nothing herein contained shall affect any claim which any representatives of a deceased person may have against the survivor or survivors under or in respect of any security to which sub-section (1) applies.

[1][(4) For the purposes of this section, a body incorporated under the Companies Act, 1913 (VII of 1913), or the Co-operative Societies Act, 1912 (II of 1912), or any other enactment for the time being in force whether within or without [2][Pakistan], relating to the incorporation of associations of individuals, shall be deemed to die when it is dissolved.]

5. Indorsements to be made on security itself. Notwithstanding anything in section 15 of the Negotiable Instruments Act, 1881 (XXVI of 1881), no indorsement of a Government promissory note shall be valid unless made by the signature of the holder inscribed on the back of the security itself.

THE PAKISTAN CODE

6. Holding of Government securities by holders of public offices.— (1) In the case of any public office to which the [3][Government] may, by [4]notification in the [5][official Gazette], declare [6]this sub-section to apply, a Government security may be made or indorsed payable to or to the order of the holder of the office by the name of the office.

(2) When a Government security is made or indorsed as aforesaid, it shall be deemed to be transferred without any or further indorsement from each holder of the office to the succeeding holder of the office on and from the date on which the latter takes charge of the office.

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[1]Sub-section (4) ins. by the Indian Securities (Amdt.) Act, 1928 (2 of 1928), s. 2.
[2]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".
[3]Subs. by A.O., 1937, for "G.G. in C.".
[4]For such notification in respect of, -
(i) N.W.F.P., *see* N.W.F.P Government Gazette, 1952, Pt. I, pp. 300-302;
(ii) Sind, see Sind Government Gazette, 1954, Pt. I. pp. 66-68.
[5]Subs. by A.O., 1937, for "Gazette of India".
[6]For offices to which this sub-sectionn has been applied, *see* Gen. R. & O.

(3) When the holder of the office indorses to a third party a Government security made or indorsed as aforesaid, he shall subscribe the indorsement with his name and the name of the office.

(4) A writing on a Government security now or heretofore standing in the name of the holder of a public office, whereby the security has been or was made or indorsed payable to or to the order of the holder of the office by the name of the office, shall not be deemed to be or to have been invalid by reason only of the security having been so made or indorsed.

(5) This section applies as well to an office of which there are two or more joint holders as to an office of which there is a single holder.

[1]*[7. Issue of securities to rulers of Acceding States or non Acceding States].—Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVll of 1981), s. 3 and Sch. II.*

8. **Indorser of Government security not liable for amount therof.** Notwithstanding anything in the Negotiable Instruments Act, 1881 (XXVI of 1881), a person shall not, by reason only of his having indorsed a Government security, be liable to pay any money due, either as principal or as interest, thereunder.

9. **Impression of signature on Government securities.**— (1) The signature of the person authorised to sign Government securities on behalf of the Government may be printed, engraved or lithographed, or impressed by such other mechanical process as the [2][Government] may direct, on the securities.

(2) A signature so printed, engraved, lithographed or otherwise impressed shall be as valid as if it had been inscribed in the proper handwriting of the person so authorised.

ISSUE OF DUPLICATE, RENEWED, CONVERTED, CONSOLIDATED OR SUB-DIVIDED SECURITIES.

10. Issue of duplicate securities.— (1) When a Government security is alleged to have been lost, [3][stolen] or destroyed either wholly or in part, and a person claims to be the person to whom but for the loss, [3][theft] or destruction it would be payable, he may, on application to the prescribed [4][authority], and on producing proof to [5][its] satisfaction of the loss, [3][theft] or destruction and of the justice of the claim and on payment of the prescribed fee, if any, obtain from [6][it] an order for—

(*a*) the payment of interest in respect of the security said to be lost, [3][stolen] or destroyed pending the issue of a duplicate security ; and

(*b*) the issue of a duplicate security payable to the applicant.

(2) An order shall not be passed under sub-section (1) until after the issue of the prescribed notification of the loss, [3][theft] or destruction.

(3) A list of the securities in respect of which an order is passed under sub-section (1) shall be published in the prescribed manner.

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[1]This section was previously amended by various enactments from time to time.
[2]Subs. by A.O., 1937, for "G.G. in C.".
[3]Ins. by the Indian Securities (Amdt.) Act, 1927 (21 of 1927), s. 2.
[4]Subs. by the Indian Securities (Amdt.) Act, 1937 (28 of 1937), s. 2, for "officer".
[5]Subs. *ibid.*, for "his".
[6]Subs. *ibid.*, for "him".

[1][(4) If at any time before the Government becomes discharged under the provisions of this Act from liability in respect of any security the whole of which is alleged to have been lost, stolen or destroyed, such security is found, any order passed in respect thereof under this section shall be cancelled.]

11. **Renewal of bearer bonds.** The holder of a bearer bond or other Government security payable to bearer may, on application to the prescribed [2][authority], on delivery of the bearer bond or other security and on payment of the prescribed fee, if any, obtain from such [2][authority] a renewed bearer bond or other security, as the case may be.

12. Renewal of promissory notes. Subject to the provisions of section 13, a person claiming to be entitled to a Government promissory note, may, on applying to the prescribed [2][authority], and on satisfying [3][it] of the justice of his claim and delivering the promissory note receipted in the prescribed manner, and paying the prescribed fee, if any, obtain from such [2][authority] a renewed promissory note payable to him:

Provided that, when application is made for the renewal of a Government promissory note which appears to the prescribed [2][authority] to stand in the name of a deceased member of a Hindu undivided family governed by the *Mitakshara* law, a renewed promissory note shall not be issued to the applicant unless he furnishes a certificate signed by such authority and after such inquiry as may be prescribed to the effect that the deceased belonged to a Hindu undivided family governed by the *Mitakshara* law, that the promissory note formed part of the joint property of the family, and that the applicant is the managing or sole surviving male member of the family.

[4]* * * * * * *

13. Renewal of promissory notes in case of dispute as to title.—(1) Where there is a dispute as to the title to a Government promissory note in respect of which an application for renewal has been made, the prescribed [2][authority] may-

(*a*) where any party to the dispute has obtained a final decision from a Court of competent jurisdiction declaring him to be entitled to such note, issue a renewed note in favour of such party, or

(*b*) refuse to renew the note until such a decision has been obtained, or

(*c*) after such inquiry as is hereinafter provided and consideration of the result thereof, declare by order in writing which of the parties is in [5][its] opinion entitled to such note and may, after the expiration of three months from the date of such declaration, issue a renewed note in favour of such party in accordance with the provisions of section 12, unless within that period [6][it] has received notice that proceedings have been instituted by any person in a Court of competent jurisdiction for the purpose of establishing a title to such note.

Explanation.-For the purposes of this sub-section the expression "final decision" means a decision which is not appealable or a decision which is appealable but against which no appeal has been filed within the period of limitation allowed by law.

[1]Ins. by the Indian Securities (Amdt.) Act, 1927 (21 of 1927), s. 2.
[2]Subs. by the Indian Securities (Amdt.) Act, 1937 (28 of 1937), ss. 3, 4 and 5, for "officer".
[3]Subs. *ibid.*, s.4, for "him".
[4] *Explanation* to s. 12 rep. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 3 and Sch. II.
[5] Subs. *ibid*., s. 5, for "his".
[6]Subs. *ibid*., for "he".

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(2) For the purpose of the inquiry referred to in sub-section (1), the prescribed [1][authority] may [2][direct one of its officers to] record, or may request the District Magistrate to record or to have recorded, the whole or any part of such evidence as the parties may produce. When such request has been made to the District Magistrate, such Magistrate may himself record or may direct any Magistrate of the first-class subordinate to him, or any Magistrate of the second-class subordinate to him and empowered by general or special order of the [3][Government] in this behalf, to record the evidence, and shall forward a copy thereof to the prescribed [1][authority].

Explanation.- For the purposes of this sub-section, the District Magistrate means the District Magistrate having jurisdiction in the place where interest on the promissory note is payable [4]* * *.

(3) [5][The officer of the prescribed authority] or any Magistrate acting under this section may, if he thinks fit, record evidence on oath.

14. Renewal of other securities. Government securities other than those mentioned in sections 11 and 12 may be renewed in such circumstances and in such manner as may be prescribed.

15. Issue of converted, etc., securities.—(1) The prescribed [1][authority] may, subject to such conditions as may be prescribed, on the application of a person claiming to be entitled to a Government security or securities, on being satisfied of the justice of the claim and on delivery of the security or securities receipted in the prescribed manner and on payment of the prescribed fee, if any, convert, consolidate or subdivide the security or securities, and issue to the applicant a new security or securities accordingly.

(2) The conversion, consolidation or sub-division referred to in sub-section (1) may be into a security or securities of the same or different classes or of the same or different loans.

16. Liability in respect of promissory note renewed, etc.—(1) When a renewed Government promissory note has been issued under section 12, or a new Government promissory note has been issued upon conversion, consolidation or subdivision under section 15, in favour of any person, the note so issued shall be deemed to constitute a new contract between the Government and such person and all persons deriving title thereafter through him.

(2) No such renewal, conversion, consolidation or sub-division shall affect the rights as against the Government of any other person to the security or securities so renewed, converted, consolidated or sub-divided.

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DISCHARGE

17. Immediate discharge in certain case. On payment by or on behalf of the Government to the holder of a bearer bond or other Government security payable to bearer of the amount expressed therein on or after the date when it becomes due, or on renewal of a bearer bond or other security payable to bearer under section 11, or on renewal of a Government promissory note under section 13, or on conversion, consolidation or sub-division of a bearer bond or other security payable to bearer under section 15, the Government shall be discharged in the same way and to the same extent as if such bearer bond, promissory note or other security were a promissory note payable to bearer:

[1]Subs. by the Indian Securities (Amdt.) Act, 1937 (28 of 1937), ss. 3, 4 and 5, for "officer".
[2]Subs. *ibid.*, for "himself".
[3]Subs. by A.O., 1937, for "L.G.".
[4]Certain words omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II, which were previously amended by various enactments.
[5]Subs. by Act, 28 of 1937, s. 5, for "The Prescribed officer".

Provided that, in the case of a Government promissory note renewed under section 13, nothing in this section shall be deemed to bar a claim against the Government in respect of such note by any person who had no notice of the proceedings under that section, or who derives title through any such person.

18. Discharge in other cases. Save as otherwise provided in this Act—

(i) on payment of the amount due on a Government security on or after the date on which payment becomes due, or

(ii) when a duplicate security has been issued under section 10, or

(iii) when a renewed security has been issued under section 12 or section 13, or a new security or securities has or have been issued upon conversion, consolidation or sub-division under section 15,

the Government shall be discharged from all liability in respect of the security or securities so paid or in place of which a duplicate, renewed, or new security or securities has or have been issued—

(a) in the case of payment-after the lapse of six years from the date on which payment was due ;

(b) in the case of a duplicate security-after the lapse of six years from the date of the publication under subsection (3) of section 10 of the list in which the security is first mentioned, or from the date of the last payment of interest on the original security, whichever date is later ;

(c) in the case of a renewed security or of a new security issued upon conversion, consolidation or sub-division after the lapse of six years from the date of the issue thereof.

[1]**[18A. Discharge in respect of interest.** Save as otherwise expressly provided in the terms of a Government security, no person shall be entitled to claim interest on any such security in respect of any period which has elapsed after the earliest date on which demand could have been made for the payment of the amount due on such security.]

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SUMMARY PROCEDURE IN CERTAIN CASES

19. Procedure on death of holder of securities [2]* * *.— (**1**) If within six months of the death of a person who was entitled to a Government security or securities (other than a security payable to bearer) the nominal or face value of which does not in the aggregate exceed five thousand rupees [3][or, in the case of Post Office Savings Certificates, twenty-five thousand rupees], probate of the will or letters of administration of the estate of such person or a certificate granted under the [4][Succession Act, 1925 (XXXIX of 1925)] is not produced to the prescribed [5][authority], such [5][authority] may, after inquiry in the manner provided in sub-sections (2) and (3) of section 13, determine who is the person entitled to the security or securities or to administer the estate of the deceased, and may-

[1]S. 18A ins. by the Indian Securities (Amdt.) Act, 1927 (21 of 1927), s. 3.
[2]The words "not exceeding an aggregate value of five thousand rupees" omitted by the Government Savings Bank and Securities Laws (Amdt.) Act, 1958 (42 of 1958), s. 2 and Sch. (with effect from the 1st March, 1960).
[3]Ins. *ibid*. (*with effect from the 1st March, 1960*).
[4]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II. For "Succession Certificate Act, 1889".
[5]Subs. by the Indian Securities (Amdt.) Act, 1937 (28 of 1937), s. 6, for "officer".

(*a*) in the case of any such security relating to a loan due for repayment, authorise payment of the amount due thereon to such person ; and

(*b*) in the case of any such security relating to a loan not due for repayment, authorise, in the case of a promissory not, the renewal of such promissory note in favour of such person, or, in the case of stock, the registration of the name of such person in substitution for the name of the deceased.

(2) Upon the payment or renewal of any promissory note in accordance with sub-section (1), the Government shall be discharged from all liability in respect of the note so paid or renewed ; and any substitution of names made in accordance with clause (*b*) of sub-section (1) shall, for the purposes of any claim against the Government, be deemed to have effected a valid transfer of the stock in respect of which it was made.

(3) Any creditor or claimant against the estate of the deceased may recover his debt or claim out of money paid to any person under sub-section (1) and remaining in his hands unadministered in the same manner and to the same extent as if the said person had obtained letters of administration of the state of the deceased, and nothing in this section shall affect any claim of an executor or administrator or other representative of the deceased against such person other than a claim to recover amounts lawfully paid by him in due course of administration of the estate of the deceased.

SECURITIES HELD BY MINORS AND LUNATICS

20. Payment in case of securities held by minors and lunatics. Where a Government security stands in the name of or is held by a minor or a person who is insane and incapable of managing his affairs, the interest accruing thereon, or the capital sum payable in respect thereof on the maturity or discharge of the loan, shall, where, in the case of interest payable, the nominal value of the security, or in other cases the sum payable, does not exceed five thousand rupees, be paid in such manner as may be prescribed, and on any payment being so made, the Government shall, notwithstanding any provision of any enactment to the contrary, be discharged from all liability in respect thereof.

INDEMNITY

21. Indemnity. Notwithstanding anything in section 10, 12, 13 or 15, the prescribed [1][authority] may in any case arising under any of those sections-

(i) Issue a duplicate or renewed security or convert, consolidate or sub divide a security or securities upon the applicant giving the prescribed indemnity against the claims of all persons claiming under the original security or under the security or securities so renewed ; converted, consolidated or sub-divided, as the case may be, or

(ii) refuse to issue a duplicate or renewed security or to convert consolidate or sub-divide a security or securities unless such indemnity is given.

INSPECTION OF REGISTERS, BOOKS AND DOCUMENTS

[1]Subs. by the Indian Securities (Amdt.) Act, 1937 (28 of 1937), s. 6, for "officer".

22. Inspection of documents. No person shall be entitled to inspect, or to receive information derived from, any Government security in the possession of the Government or from any book, register or other document kept or maintained by or on behalf of Government in relation to Government securities or any Government security, save in such circumstances and manner and subject to such conditions as may be prescribed.

PENALTY

23. Penalty.—(1) If any person, for the purpose of obtaining for himself or for any other person payment of interest or of the capital sum due in respect of any Government security, or the issue of a duplicate security, or the renewal, conversion, consolidation or sub-division of a Government security or securities, makes to any authority under this Act a statement which is false and which he either knows to be false or does not believe to be true, he shall be punishable with imprisonment for a term which may extend to six months, or with fine, or with both.

(2) No Court shall take cognizance of any offence under subsection (1) save on the complaint of the authority to whom the false statement was made.

RULES

24. Power to make rule.—(1) The [1][Government] may after previous publication make rules[2] to carry out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:-

(*a*) the manner in which payment of interest in respect of Government securities is to be made and acknowledged;

(*b*) the circumstances in which Government securities must be renewed before further payment of interest thereon can be claimed;

[3]* * * * * *

(*d*) the fees to be paid in respect of the issue of duplicate securities and of the renewal, conversion, consolidation and sub-division of Government securities ;

(*e*) the proof which is to be produced by persons applying for duplicate securities;

(*f*) the form and manner of publication of the notification mentioned in sub-section (2) of section 10 and the manner of publication of the list mentioned in subsection (3) of that section ;

(*g*) the [4][authority which] is to exercise all or any of the powers and to perform all or any of the duties referred to in sections 10, 11, 12, 13, 15, 19 and 21;

[1]Subs. by A.O., 1937, for "G.G. in C.".
[2]For such rules, *see* Gen. R. & O.
[3]Clause (c) omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II., which was previously amended by A.O., 1949, for "States in India".
[4]Subs. by the Indian Securities (Amdt.) Act, 1937 (28 of 1937), s. 7, for "officer who".

(*h*) the manner of making the inquiry mentioned in the proviso to section 12;

(*i*) the circumstances and the manner in which securities other than securities payable to bearer or promissory notes are to be renewed ;

(*j*) the form in which securities delivered for discharge, renewal, conversion, consolidation or sub-division are to be receipted ;

(*k*) the conditions subject to which securities may be converted, consolidated or sub-divided ;

(*l*) the person to whom and the manner in which payments are to be made in respect of Government securities standing in the name of, or held by, minors or persons who are insane and incapable of managing their affairs ;

(*m*) the taking of indemnities against adverse claims of third parties from persons who receive payment of interest or of the capital sum due in respect of Government securities, or who obtain duplicate, renewed, converted, consolidated or sub-divided securities ;

(*n*) the manner in which any document relating to Government securities or any indorsement on a Government promissory note may, on the demand of any person who from any cause is unable to write, be executed on his behalf ;

(*o*) enabling holders of Government stock to be described in the registers of such stock as trustees, and either as trustees of any particular trust or as trustees without qualification, and for the recognition of powers of attorney granted by holders of stock so described ;

(*p*) the holding of Government stock by the holders of offices other than public offices, and the manner in which and the conditions subject to which stock so held may be transferred ;

(*q*) the mode of attestation of documents relating to Government stock ;

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(*r*) generally, all matters connected with the grant of duplicate, renewed, converted, consolidated and sub-divided securities ; and

(*s*) the circumstances and the manner in which and the conditions subject to which inspection of securities, books, registers and other documents may be allowed or information therefrom may be given under section 22.

(3) Nothing in any rule made under clauses (*o*) and (*p*) shall, as between any trustees or as between any trustees and the beneficiaries under a trust, be deemed to authorise the trustees to act otherwise than in accordance with the rules of law applying to the trust and the terms of the instrument constituting the trust ; and neither the Government nor any person holding or acquiring any interest in any Government stock shall by reason only of any entry in any register maintained by or on behalf of the Government in relation to any Government stock or any stockholder, or of anything in any document relating to Government stock, be affected with notice of any trust or of the fiduciary character of any stockholder or of any fiduciary obligation attaching to the holding of any Government Stock.

(4) Rules made under this section shall be published in the [1][official Gazette], and shall thereupon have effect as if enacted in this Act.

25. [*Repeals.*] *Rep. by the Repealing Act, 1927* (*XII of 1927*), *s. 2 and Schedule*.

[2][**26. Provision as to Pakistan securities.** For the avoidance of doubt it is hereby declared that the rights of all persons in relation to [3][Pakistan] securities are to be determined, in connection with all such questions as are dealt with by this Act in relation to Government securities, by the law of [4][Pakistan].]

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Date: 11-09-2024

[1]Subs. by A.O., 1937, for "Gazette of India".
[2]Section 26 ins. *ibid.*
[3]Subs. by A.O., 1949, for "Indian".
[4]Subs. by the Central Laws (Statue Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India

THE SEED ACT, 1976

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THE SEED ACT, 1976

ACT No. XXIX OF 1976

[*11th May, 1976*]

An Act to provide for controlling and regulating the quality of seeds of various varieties of crops

WHEREAS it is expedient to provide for controlling and regulating the quality of seeds of various varieties of crops and for matters connected therewith;

AND WHEREAS the Provincial Assemblies of the Punjab, Sindh, the [1][Khyber Pakhtunkhwa] and Baluchistan have passed resolutions under Article 144 of the Constitution of the Islamic Republic of Pakistan to the effect that Parliament may by law-regulate and control the quality of seeds of various varieties of crops;

It is hereby enacted as follows:—

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the Seed Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context—,

[2][(i) "accredited laboratory" means any seed testing laboratory established in public sector or privatesector and accredited by an appropriate organization as may be prescribed;

(ii) **"**approved seed" means seed true to species as approved by the Federal Seed Certification andRegistration Department;]

[1][(iia) "Authority" means the National Seed Development and Regulatory Authority constituted under this Act;]

[2][(iii) "basic seed" means progeny of the pre-basic seed produced by any public sector or private sector organization and certified by the Federal Seed Certification and Registration Department;]

[1][(iiia) "Board" means the Board of Governors constituted under this Act;]

[2][(iv)] "certified seed" means seed certified by the Federal Seed Certification [2][and Registration Department;]

[1][(iva) "Chairperson" means the chairperson of the Authority;]

[2][(v) "enlisted variety" means a variety enlisted by the Federal Seed Certification and Registration Department under Section 22A;]

[2][(vi)] "Federal Seed Certification [1][Department] means the Federal Seed Certification [2][and Registration Department] established under section 5;

[2][[1][(vii) "Fund" means the National Seed Development and Regulatory Authority Fund, created under this Act;]

[1]Subs. and ins. by the Act No. XXXVI of 2024, ss. 2-3.
[2]Subs., renumbered, and ins. by Act No. VII of 2015, s. 2.

(viii) "genetically modified variety" means plant varieties which have been bred by genetic engineering involving molecular techniques that modify, recombine and transfer genes or segments of genetic material and includes recombinant deoxyribonucleic acid (DNA) techniques that transfer genes or segments of genetic material between genotype and also apply to plant varieties derived from a living modified organism;

(ix) "horticulture nursery" means any grounds or premises on which nursery plants are propagated, grown or procured for resale and held for sale throughout the year;]

[1][(x) "hybrid" means (1) the first generation offspring of a cross between two individuals (plants) differing in one or more genes; (2) the progeny of a cross between species of the same genus or of different genera;

[2][(xa) "Member" means a member of the Authority;]

(xi) "misbranded seed" means a seed if—

(i) it is a substitute for, or resembles in a manner likely to deceive, another plant variety or hybrid of seed under the name of which it is sold, and is not plainly and conspicuously labelled so as to indicate its true nature;

(ii) it is falsely stated to be the product of any place or country;

(iii) it is sold by a name which belongs to another kind or plant variety or hybrid of seed;

(iv) false claims are made for it upon the label or otherwise;

(v) when sold in a package which has been sealed or prepared by, or at the instance of, the person engaged in seed business and which bears his name or address, the contents of each package are not conspicuously and correctly stated on the outside thereof within the limits of variability prescribed under this Act;

(vi) the package containing it or the label on the package, bears any statement, design or device regarding the quality or the kind or plant variety or hybrid of seed contained therein, which is false or misleading in any material particular or if the package is otherwise deceptive with respect to its contents;

(vii) it is not registered in the manner required by or under this Act;

(viii) its label contains any reference to registration other than registration number;

(ix) its label does not contain a warning or caution which may be necessary and sufficient, if complied with, to protect human, animal and plant life and health or to avoid serious prejudice to the environment;

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[1]Ins. by Act No. VII of 2015, s. 2.
[2]Ins. by Act No. XXXVI of 2024, s. 3.

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(x) the package containing it or the label on the package bears the name of a fictitious individual or company as the dealer of the kind or plant variety or hybrid; or

(xi) it is not labeled in accordance with the requirements of this Act or the rules made thereunder;]

(xii) [1][* * * * * * *]

[2][(xiii)] "notified variety or species" means a variety or species which has been notified as such under section 10;

[2][((xiv) "person" means any natural or legal entity and includes an association of persons firm, partnership, society, group of persons, a public or private limited company, corporation, cooperative society or any other body corporate;]

[2][(xv)] "post-control" means a trial to check on varietal authenticity and purity of the certified seed;

[2][(xvi)] "pre-basic seed" means seed of high genetic purity produced by a plant breeder];

[2][(xvii)] "prescribed" means prescribed by rules [1][or regulations] ;

[1][(xviia) "President" means the president of the Board;]

[2][(xviii)] "Provincial Seed Council' means a Provincial Seed Council established under section 9;

[2][(xix)] "registered grower" means a person-or group of persons engaged in producing seed andregistered as such under this Act;

[2][(xx)] "registered variety" means a variety registered by the [1][Federal Seed Certification Departmentunder section 22A]

[1][(xxa) "regulations" means the regulations made under this Act;]

[2][(xxi)] "released variety" means a registered variety having agricultural value for growing in a Province and approved by the Provincial Seed Council;

[2][(xxii)] "rules" means rules made under this Act;

[2][(xxiii) "seed" means any of the branded reproductive or vegetative propagating material of the plants of field crops, vegetable crops, fruits, spices, medicinal herbs, flowers, shrubs, forest trees, other plant species and mushroom spawn used for sowing or planting the genera or species prescribed by the Federal Government;]

[2][(xxiv)] "Seed Analyst" means a Seed Analyst appointed under section 17;

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[1]Omitted and ins. by Act No. XXXVI of 2024, s. 3.
[2]Renumbered, ins. and subs. by Act No. VII of 2015, s. 2.

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[1][(xxv) "seed business" means any commercial operation of seed involving production, processing, conditioning, packaging, distribution, import and export of seeds;]

[1][(xxvi)] "Seed Certification Officer" means a Seed Certification Officer appointed under section 18;

[1][(xxvii) "seed dealer" means any person registered as seed dealer under this Act];

[1][(xxviii)] **"**Seed Inspector" means a Seed inspector appointed under section 19;

[1][(xxix)"seed processing" means the process by which seeds and planting materials are dried, threshed, shelled, ginned or delinted (in cotton), cleaned, graded or treated;]

[1][(xxx)] "species" means a group of plants representing a crop known by a common name, such as, wheat, paddy and cotton belonging to one species sub-species or forma;[1][*]

[1][(xxxi)"terminator technology" means genetic modification that includes gene or gene sequences which restrict germination of the seed produced by the plant variety or hybrid during the next subsequent year of planting;]

[1][(xxxii) **"**truthfully labeled seed" means seed of a [2][enlisted] variety or hybrid produced locally or imported and which conforms to standards as prescribed under the rules;]

[1][(xxxiii)] "variety" means a group of plants belonging to a species which for cropping purpose is considered as an individual unit and can be distinguished from other varieties of the same species [1][;and]

[1][(xxxiv) "variety evaluation committee" means the committee constituted for evaluation of candidate crop varieties in the country as may be prescribed.]

[2][**3. Establishment of the National Seed Development and Regulatory Authority.—**(1) There shall be constituted an authority, to be known as the National Seed Development and Regulatory Authority, for carrying out such purposes and functions as may be entrusted to it under this Act or by rules and regulations made thereunder.

(2) The Authority shall be a body corporate, having perpetual succession and a common seal, with power to purchase, procure, sell, exchange, hold, acquire, and dispose of property and interests therein, both movable and immovable, and may by its name sue or be sued.

[1]Ins., renumbered, omitted, subs. and added by Act No. VII of 2015, s. 2.
[2]Subs. by Act No. XXXVI of 2024, ss. 3-4.

(3) The head office of the Authority shall be at Islamabad, or at such other place or places, as the Federal Government may by notification in the official Gazette, defermine.]

[1][**3A. Appointment and term of office of the Chairperson and members.**—(1) Authority shall comprise a Chairperson and such other members as may be appointed by the Prime Minister, from amongst the persons possessing such qualifications and on terms and conditions as may be prescribed:

Provided that until rules are made in this regard, the Chairperson and members of the Authority shall be appointed on such terms and conditions as the Prime Minister may determine.

(2) The Chairperson of the Authority shall be an eminent professional of known integrity and having minimum experience of ten years in the field of agriculture.

(3) The term of the office of the Chairperson and Members shall be three years, extendable for a further period of two years.

(4) Any person ceasing to be the Chairperson or member by reason of the expiry of the term of his office, or by resignation, shall be eligible for re-appointment.

(5) The Chairperson or any member may, at any time, resign from his office of the Authority, provided that such resignation shall not take effect until duly accepted by the Prime Minister.

3B. Meeting of the Authority.—(1) The Authority shall meet at least once each month on such date, time and place as may be fixed by the Chairperson.

(2) The Chairperson and, in his absence, the most senior member of the Authority shall preside over meetings of the Authority.

(3) The quorum for a meeting of the Authority shall be the Chairperson and simple majority of the members.

3C. Constitution of committees, bodies, etc.—The Authority may, from time to time, constitute such committees, facilities and bodies, and coopt such experts and consultants, as may be deemed appropriate, to carry out works and functions envisioned under this Act:

Provided that all committees, facilities and bodies, constituted by the Authority, or as the case may be, established under this Act, except the Board, shall work under the supervision and control of the Authority, in accordance with this Act.

3D. Board of Governors.—(1) There shall be a Board, to be known as the Board of Governors, under this Act.

(2) The Board shall consist of the following members, namely:—

(a) Federal Minister of National Food Security and Research *President*

[1]Subs. by Act No. XXXVI of 2024, s. 5.

(b)	Chairperson of the Authority	*Member*
(c)	Secretary Ministry of National Food Security and Research, Government of Pakistan, or his representative not below the rank of Additional Secretary or equivalent.	*Member*
(d)	Secretary, Finance Division, Government of Pakistan, or his representative not below the rank of Additional Secretary or equivalent.	*Member*
(e)	Representatives of Provincial Agriculture departments, to be nominated by each Provincial Government	*Members*
(f)	Chairman Pakistan Agricultural Research Council	*Member*
(g)	one representative each to be nominated by the Seed Association of Pakistan, Croplife Pakistan Association, and Pakistan Hi-Tech Hybrid Seed Association	*Member*
(h)	Four experts one from each province, at least one of whom to be Vice-Chancellor of an Agriculture University, having relevant experience in the field of seed, to be nominated by the President, on recommendation of the Chairperson of the Authority from time to time.	*Members*
(i)	Four progressive farmers, one from each province, to be nominated by the President, on recommendation of the Chairperson of the Authority from time to time.	*Members*
(j)	such other members as may be appointed by the President, on the recommendations of the Chairperson of the Authority, from time to time.	

(3) In the absence of the Federal Minister of National Food Security and Research, any other member of Board, nominated by the President, shall preside over the meetings of the Board.

(4) The term of office of the members of the Board, other than *ex-officio* members, shall be three years, which may be extended for a further period of two years.

3E. Powers and functions of the Board.—(1) The Board shall be responsible for providing policy directions and general guidelines to the Authority, for effectively carrying out the purposes envisioned under this Act. In particular and without prejudice to the foregoing, the Board shall—

(a) monitor and review the functioning of the Authority;

(b) issue guidelines to the Authority, as per the applicable policy regime of the Federal Government;

(c) conduct audit as well as annual performance review of the Authority, or any of its officer but subject to Articles 169 and 170 of the Constitution in respect of maintenance and audit of accounts of the Authority;

(d) institute appropriate accountability and oversight mechanisms to ensure effective discharge of Authority's functions under this Act;

(e) approve budget of the Authority and ensure effective utilization thereof;

(f) advise and recommend to the Federal Government on policy issues as well as other matters pertaining to the seed sector;

(g) establish liaison between the respective governments as well as departments, bodies and instrumentalities thereof and the Authority; and

(h) carry out other functions ancillary thereto, or connected therewith, for the purposes of this Act.

(2) The Board may, from time to time, constitute such committees and entrust such powers and functions thereto as the Board may deem appropriate, in the manner as may be prescribed.

(3) The Board may, upon direction of the President, through a written order, subject to any restriction specified therein, delegate any of its powers or functions to any member or Chairperson of the Authority.]

[1][**4. Powers and functions of the Authority.**—(1) Subject to the provisions of this Act and the rules and regulations made thereunder, the Authority shall carry out, manage and supervise all works and functions envisioned under this Act. In particular and without prejudice to the generality of the foregoing, the Authority shall, *inter-alia*,—

(a) recommend, formulate and implement policy for effective administration, management, development and growth of the seed sector, in consultation with Federal as well as Provincial Governments, and instrumentalities thereof;

(b) develop and implement the requisite policy, legal, administrative, financial, regulatory or other frameworks for the effective performance of functions envisioned under this Act and institute appropriate control and accountability mechanisms for such purpose;

(c) supervise seed sector from end-to-end, including, *inter-alia*, registration, production, warehousing, storage, breeding, certification, marketing, supply, harvesting, post-harvesting, import, export and internal trading thereof, etc.;

(d) coordinate research and development activities or initiatives, in consultation with Federal as well as Provincial Governments and other research bodies and institutes;

(e) synergize and optimize the seed sector of Pakistan, at public as well as private level;

(f) supervise functions of, *inter-alia*, Federal Seed Certification and Registration Department, Plants Breeders' Rights Registry and variety evaluation committee, prescribed under this Act and applicable laws;

[1]Subs. by Act No. XXXVI of 2024, s. 6.

(g) exercise supervision over departments, committees and other such bodies constituted under this Act, in accordance with relevant law;

(h) execute contracts or other legal instruments, transact with governmental and non-governmental entities and enter into other legal and corporate arrangements, directly or indirectly, with foreign as well as local bodies to promote, attract and protect investment in the seed sector;

(i) proceed, in the manner as may be prescribed, against employees of the Authority involved in, *inter-alia*, corrupt practices, professional misconduct and in-efficiency;

(j) approve, implement and regulate the standards of qualities and varieties of seed;

(k) issue guidelines for administration of quality control, marketing, post-harvest management and storage modalities of seed;

(1) regulate and monitor inter-provincial trade and transportation of seed;

(m) advise the Federal Government on import and export of seed;

(n) recommend to the Federal and the Provincial Governments, as well as entities and offices thereof, on any supplementary and incidental issue pertaining to seed;

(o) take initiatives and policies with regards to agriculture sector, as relates to the usage and efficiency of seed;

(p) pass, directly and indirectly, for reasons to be recorded in writing, appropriate observations, or other orders, including imposition of penalty, blacklisting, against any person or body that violates the provisions of this Act, or illegally participates or interferes in the seed sector;

(q) create, sanction, merge, de-merge, or abolish posts and oversee the performance of its employees;

(r) hear and decide appeals, under this Act; and

(s) carry out all other works and functions connected therewith or ancillary thereto.

(2) The Authority may appoint, employ, remove and regulate such officers and other members of staff, or appoint such experts and consultants, from public as well as private sector, on initial recruitment, deputation, secondment, or otherwise as it may consider necessary for the performance of its functions under this Act, from time to time:

Provided that all employees of the Federal Seed Certification and Registration Department shall continue to be governed under the Civil Servants Act, 1973 (Act LXXI of 1973) or other service laws applicable to them.]

[1][**4A. Fund of the Authority.**—(1) There shall be a fund, to be known as the Authority Fund, vested in the Authority for the purposes of carrying out all powers and functions under this Act.

[1]Ins. by Act No. XXXVI of 2024, s. 7.

(2) The Authority Fund shall consist of, *inter-alia*,—

(a) grants made by the Federal Government;

(b) loans obtained by the Authority,

(c) monies, aid, grants, proceeds or sums received, or earned, by the Authority; and

(d) all other sums, including, *inter-alia*, fees, charges and levies recovered or received by the Authority.

(3) The Authority Fund shall be kept in one or more accounts maintained by the Authority, in local or foreign currency, and shall be operated, utilized and regulated in such manner as may be prescribed:

Provided that the account having foreign currency, if any, shall be operated with the prior approval of the Finance Division, Government of Pakistan.]

5. Establishment of Federal Seed Certification Agency.—As soon as may be after the commencement of this Act, the Federal Government shall establish a Federal Seed Certification [1][and Registration Department] for the performance of such functions as may be entrusted to it under this Act.

6. Functions of Federal Seed Certification [1][and Registration Department].—The Federal Seed Certification [1][and Registration Department] shall perform the following functions, namely:—

(a) controlling the quality of seeds;

(b) registering growers in such manner and subject to such conditions as may be prescribed;

(c) certification of seeds;

(d) field inspection of the crops of registered varieties and released varieties intended for sale as basic seed or certified seed;

(e) sampling and testing of seed lots intended for sale in order to ascertain their purity, viability, germination capacity and health status in the prescribed manner;

(f) issuing certificates in respect of seeds which meet the prescribed standards of particular categoryof seeds;

(g) carrying out post-control trials on pre-basic, basic and certified seeds;

(h) sampling and analysing seed lots delivered to the processing plants to establish a basis for thepurchase of such lots;

(i) arranging training courses for[1][persons engaged in the seed business;]

[1]Subs. by Act No. VII of 2015, ss. 3-6.

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(j) providing technical and specialist advice and assistance to the [1][Authority] in theperformance of its functions [2][; and]

[2][(k) conduct pre-registration checking of varieties of both public and private sectors submitted for the purpose of—

(i) determining agronomic value regarding regional suitability for registration as a plant variety or hybrid evaluated by variety evaluation committee;

(ii) providing definitive botanical description of plant varieties; and

(iii) providing information on genetic suitability and adaptability of varieties;

(l) register seed varieties after conducting pre-registration checking under clause (k);

(m) publish a list of registered plant varieties;

(n) perform such other functions as the [1][Authority] may entrust to it; and

(o) propose procedures for maintaining purity of the seed stock and conduct research in seed science and technology.]

7. [2][* * * * * * *]

8. [2][* * * * * * *]

9. Establishment of Provincial Seed Council.—As soon as may be after the commencement of this Act, each Provincial Government shall establish a Provincial Seed Council for the performance of such functions forthe purposes of this Act as may be entrusted to it by the Federal Government, in consultation with the Provincial Government.

10. Power to notify varieties or species of seed.—The [1][Authority] may, by notification in the official Gazette, specify:—

(a) the varieties or species of seed approved for production in a Province or any part thereof;

(b) the minimum limits of germination and purity standards to which such seed shall conform; and

(c) the mark and label to indicate that such seed conforms to the minimum limits of germination and purity standards and the particulars which such mark or label may contain.

11. Regulation of sale of seeds of [1][Plant] varieties and species.— [2][(1)]No person shall sell, offer for sale, or advertise or hold in stock for sale, or barter or otherwise supply, any seed of any notified variety or species unless,—

[1]Subs. by Act No. XXXVI of 2024, ss. 8-9.
[2]Subs., added, omitted and numbered by Act No. VII of 2015, ss. 6-7.

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(a) such seed is identifiable as to its variety or species;

(b) such seed conforms to the minimum limits of germination and purity standards as laid down under section 10;

(c) the container of such seed bears the mark and label containing correct particulars thereof in the prescribed manner; and

[1][(d) any other requirement as may be prescribed has been complied with.]

[1][(2) No person shall sell, advertise or hold in stock for sale, seed of any plant variety or hybrid banned or not approved by the Federal Government or a Provincial Government.]

12. Appointment of registered growers.—The Federal Seed Certification [1][and Registration Department] may, [2][on an application made in the prescribed manner or] on the recommendation of a Provincial Seed Council, register any farmer or grower as a registered grower to produce seed in the prescribed manner.

13. Grant of certificate by Federal Certification [1][and Registration Department].—(1) Any person intending to produce notified varieties or species of seed, or stock for sale, or offer for distribution or otherwise supply seed of a notified variety or species may, if he desires to have such seed certified or tested by the Federal Seed Certification [1][and Registration Department], apply to the said [1][and Registration Department] for the grant of a certificate for this purpose.

(2) Every application under sub-section (1) shall be in such form and be accompanied by such fee and contain such information as may be prescribed.

(3) On receipt of an application under sub-section (1), the Federal Certification [1][and Registration Department], may after such enquiry as it thinks fit and after satisfying itself that the seed to which the application relates conforms to the minimum prescribed standards, grant a certificate in such form and on such conditions as may be prescribed.

14. Period for which registration and certification shall be effective.—(1) The registration of a grower for producing seeds shall be effective for such period, not exceeding five years, as may be prescribed.

(2) The certification of the notified varieties and species of seeds shall be effective for such period as maybe prescribed.

15. Cancellation of certification.—If, at any time after certification under sub-section (3) of section 13, the Federal Seed Certification [1][and Registration Department] is satisfied, either on a reference made to it in this behalf or otherwise, that—

(i) the certificate granted by it has been obtained by misrepresentation or suppression of an essential fact; or

(ii) the holder of the certificate has, without reasonable cause, failed to comply with the conditions subject to, which the certificate has been granted or has contravened any of the provisions of this Act or the rules,

then, without prejudice to any other penalty to which the holder of the certificate may be liable under this Act, the Federal Seed Certification [1][and Registration Department] may, after giving the holder an opportunity of showing cause, cancel the certificate.

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[1]Subs. and added by Act No. VII of 2015, ss. 7-8.
[2]Ins. by Act No. XXXVI of 2024, s. 10.

16. Appeal.—(1) Any person aggrieved by a decision of the Federal Seed Certification [1][and Registration Department] under section 15 to cancel a certificate may, within thirty days from the date on which the decision to cancel the certificate is communicated to him and on payment of such fee as may be prescribed, prefer an appeal [2][before the Authority].

(2) On receipt of an appeal under sub-section (1), the [2][Authority] shall, after giving the appellant an opportunity of being heard, dispose of the appeal as expeditiously as possible.

(3) The order of the [2][Authority] under this section shall be final.

17. Seed Analyst.—The Federal Seed Certification [1][and Registration Department] may, by notification in the official Gazette, appoint any person to be a Seed Analyst to test the quality and purity of seed produced at the seed farms before it is given out for commercial cultivation.

18. Seed Certification Officer.—The Federal Seed Certification [1][and Registration Department] may, by notification in the official Gazette, appoint such person as it thinks fit to be a seed Certification Officer for such area as may be specified in the notification.

(2) A Seed Certification Officer shall perform the same functions as are assigned to a Seed Inspector and also supervise the work of the Seed Inspectors in the area for which he is appointed.

19. Seed Inspector.—The Federal Seed Certification [1][and Registration Department] may, by notification in the official Gazette, appoint such persons as it thinks fit to be seed Inspectors for such areas as may be specified in the notification.

20. Power of Seed Inspectors.—(1) A Seed Inspector may, within the area for which he is appointed, inspect and take samples of any seed in labeled containers purporting to contain seed of a notified variety or species of seed from any person producing, selling, delivering, stocking or distributing seed and send such samples for analysis to the nearest laboratory of the Federal Seed Certification [1][and Registration Department].

(2) The Seed Inspector may—

(a) enter and search at all times, with such assistance [1][of law enforcement agency or district administration] as he may consider necessary, any place in which he has reason to believe that an offence under this Act has been or is being committed and order in writing the person in possession of any seed in respect of which the offence has been or is being committed not to dispose of any stock of such seed for a specified period not exceeding thirty days or, unless the alleged offence is such that the defect may be removed by the possessors of seed, seize the stock of such seed;

(b) examine any record, register, document or other material, object found in any place mentioned in clause (a) and seize the same, if he has reason to believe that it may furnish evidence of the commission of any offence punishable under this Act; and

(c) exercise such powers as may be necessary for carrying out the purposes of this Act or any rule.

(3) [1][* * * * * * *]

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[1]Subs., ins and omitted by Act No. VII of 2015, ss. 8-9.
[2]Subs. by Act No. XXXVI of 2024, s. 11.

(4) The power conferred by this section includes power to break open any labeled container in which any seed of any notified variety or species may be kept and to break upon the door of any premises where any such seed may be kept for sale:

Provided that the power to break open the door shall be exercised only after the owner or any other person in occupation of the premise, if he is present therein, refuses to open the door on being called upon to do so.

(5) Where the Seed Inspector takes any action under sub-section (1), he shall, as far as possible, call not less than two persons of the locality to be present at the time when such action is taken and take their signature on a memorandum to be prepared in the prescribed form and manner.

(6) The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898) shall, so far as may be, apply to any search or seizure made under this section as they apply to any search or seizure madeunder the authority of a warrant issued under section 98 of the said Code.

21. Procedure to be followed by Seed Inspector.—(1) Whenever a Seed Inspector intendsto take a sample from the [1][seed of any crop] or species for analysis, he shall—

(a) give notice in writing of his intention to do so to the person from whom he intends to take sample; and

(b) except in special cases provided by rules, take three representative samples in the prescribed manner and mark and seal or fasten up each sample in such manner as its nature permits.

(2) When samples of any seed of any notified variety or species are taken under sub-section (1), the Seed Inspector shall—

(a) deliver one sample to the person from whom it has been taken;

(b) send, in the prescribed manner, another sample for analysis to the Seed Testing Laboratory of the area within which such sample has been taken; and

(c) retain the remaining sample in the prescribed manner for production in case any legal proceedings are taken.

(3) Where a Seed Inspector makes an order under clause (a) of sub-section (2) of section 20,

(a) he shall use all dispatch in ascertaining whether or not the seed contravenes any of the specifications laid down under section 10, and, if it is ascertained that the seed does not so contravene, forthwith revoke the order passed under the said clause or, as the case may be, take such action as may be necessary for the return of the stock of the seed seized thereunder;

(b) if the stock of the seed seized under that clause does not conform to the aforesaid specifications, he shall, as soon as may be, report the matter to a Magistrate and take his orders as to the custody thereof; and

[1]Subs. by Act No. VII of 2015, s. 10.

(c) without prejudice to the institution of any prosecution, if the alleged offence is such thatthe defect may be removed by the possessor of the seed, he shall, on being satisfied that thedefect has been so removed, forthwith revoke the order passed under the said clause.

(4) Where a Seed Inspector seizes any record, register, documents or any material object under clause (b) of sub-section (2) of section 20, he shall, as soon as may be, report the matter to a Magistrate and take his orders as to the custody thereof.

22. Report of Seed Testing Laboratory.—(1) The Seed Testing laboratory shall, as soon as maybe after the receipt of the sample under section 21, analyse the sample and deliver, in such form as may be prescribed, one copy of the report of the result of the analysis to the Seed Inspector and another copy thereof to the person from whom the sample has been taken.

(2) The production in any inquiry, trial or other proceedings under this Act of a report under the hand of a Seed Analyst in the form prescribed shall, until the contrary is proved, be sufficient to prove the facts stated therein.

(3) When any person is accused of an offence under this Act, the court may, if it considers necessary in the interest of justice and the accused deposits in the court a sum of money in accordance with the scale prescribed, summon as a witness the Seed Analyst who analysed the sample in respect of which such person is accused of having committed an offence, and, if such person is acquitted, any sum of money so deposited shall be refunded to him.

[1][**22A. Registration or enlisting of plant variety or hybrid.**—(1) An application for registration of plant variety or hybrid shall be made in such form and be accompanied by such fee and shall contain such information as may be prescribed.

(2) Subject to the provisions of section 22E, the Federal Seed Certification and Registration Department may register or enlist, or refuse to register or enlist, a plant variety or hybrid as may be prescribed.

(3) The plant varieties or hybrids imported for general cultivation would be registered or enlisted by Federal Seed Certification and Registration Department on the basis of the results of multi- location trials for at least two crop season within Pakistan as may be prescribed.

(4) If it any time after registration of a plant variety or hybrid, the Federal Seed Certification and Registration Department is satisfied, either on a reference made to it by any person or organization in this behalf or otherwise, that the registration or enlisting granted by it has been obtained by misrepresentation or suppression of essential factor conditions of registration has been changed, then Federal Seed Certification and Registration Department may cancel registration or enlisting of the plant variety or hybrid in such manner as may be prescribed.

(5) For the purposes of this Act, a register of all registered or enlisted plant varieties or hybrids to be called National Register of Seeds shall be kept by Federal Seed Certification and Registration Department wherein all specifications, as may be prescribed, shall be maintained.

(6) The Federal Seed Certification and Registration Department shall, within such intervals and insuch manner as it thinks appropriate, publish the national list of plant varieties or hybrids registered or enlisted during that interval.

[1]Ins. by Act No. VII of 2015, s. 11.

22B. Registration to do seed business.— [1][(1) Notwithstanding anything to the contrary contained in any other law for the time being in force, any person may make an application to the competent authority, on the form as may be prescribed, for registration of seed business in Pakistan.]

(2) The application form, under sub-section (1), shall accompany such fee as may be prescribed.

(3) The [1][Authority] after making such enquiry as may be prescribed, shall grant registration to the applicant specified under sub-section (1).

(4) Every registration granted under this Act shall remain valid for five years from the date of issue of the registration unless earlier suspended or cancelled.

(5) Every holder of the registration desirous to renew the registration shall, before the expiry of the registration period, make an application for renewal to the Director General, Federal Seed Certification and Registration Department together with such fee as may be prescribed.

(6) On receipt of application under sub-section (5) and a renewal prescribed, the Director General, Federal Seed Certification and Registration Department, may renew the registration for another period of five years.

(7) In case the application under sub-section (5) is made after the expiry of the registration, the registration may be renewed on payment of an additional fee of one thousand rupees for each month or part thereof, in addition to the fee for renewal of registration.

(8) The registration shall be deemed cancelled, if—

(a) the registration is not renewed within six months after the date of expiry of theregistration; or

(b) the holder of the registration fails to do business for at least three years; or

(c) the holder of the registration is found to be in violation of any provision of this Act.

22C. Registration of seed dealer.—(1) No person shall sell crop seeds at any place except under the terms and conditions of dealership license granted to him under this Act.

(2) Provisional dealership license will be granted for one year without pre-condition of prescribedtraining.

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(3) Any person having received prescribed training from the Federal Seed Certification and Registration Department may, for regular registration and grant of license under this Act, apply to Provincial Government on prescribed form accompanied by such fee as may be prescribed.

(4) The Provincial Government shall, after making such inquiry as may be necessary, grant registration to the applicant or otherwise decide the application within three months after its filing.

(5) Every licence issued under this Act shall unless earlier suspended or cancelled earlier, remain valid for three years from the date of its issue.

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[1]Subs. by Act No. XXXVI of 2024, s. 12

(6) Every holder of a licence desiring to renew the licence shall, before the expiry of licence, apply to the Provincial Government for renewal of the licence on payment of such fee as may be prescribed.

(7) On receipt of application and fee under sub-section (6), the Provincial Government, on the recommendation of the Regional Director, Federal Seed Certification and Registration Department, may renew the licence for another three years.

(8) Every seed dealer shall clearly display at his place of business the sale prices of different cropseeds held by him including the opening and closing stocks on a daily basis.

(9) The license of any seed dealer shall be liable to be cancelled if he is found to be in violation ofany provision of this Act.

22D. Registration of seed processing units.—(1) No person shall maintain a seed processing unit unless such unit is registered by the [1][Authority] under this Act.

(2) The [1][Authority] shall register seed processing unit if it meets the specifications prescribed in terms of infrastructure, equipment and qualified man power.

(3) Every application for registration shall be made in such form and manner and accompanied by such fee as may be prescribed.

(4) The [1][Authority] may, after making such inquiry and subject to such conditions as it thinks fit, grant a certificate for maintaining a seed processing unit in such form as may be prescribed.

(5) Every seed processing unit shall furnish periodic returns in such form and at such time as maybe prescribed.

(6) The registration shall be cancelled, if

(a) it has been obtained by misrepresentation as to a material particular relating to thespecification in terms of infrastructure, equipment and qualified man power; or

(b) the registration holder is found to be in violation of any provision of this Act or rules madethereunder.

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22E. Restrictions.— No person shall—

(a) conduct seed business in Pakistan unless such person is registered to do so under section22B, 22C or section 22D;

(b) import, sell, stock or exhibit for sale, barter or otherwise supply any seed of any variety or hybrid which is not registered or enlisted under this Act for cultivation in Pakistan; or

(c) import, sell, stock or exhibit for sale, barter or otherwise supply any seed of any variety orhybrid if misbranded.

[1]Subs. by Act No. XXXVI of 2024, s. 13.

22F. Establishment of seed testing laboratories.—The [1][Authority] may, by notification in the official Gazette, allow accredited seed laboratories in the public and private sectors to carryout analysis of seed of any kind or plant variety or hybrid under this Act in such manner as may be prescribed.

22G. Registration of genetically modified plant varieties. Notwithstanding anything contained in this Act, no registration of genetically modified plant variety or hybrid shall be made, ifthe application for registration does not accompany

(a) an affidavit from the applicant declaring that such variety does not contain any gene or gene sequence involving terminator technology;

(b) a certificate from the National Biosafety Committee established by the Federal Government to the effect that the traits of genetically modified variety or hybrid shall have no adverse effect on the environment, human, animal or plant life and health; and

(c) field data of two crop season trial in respect of Biosafety and performance as prescribed.

22H. Horticulture nurseries to be registered.—(1) No person shall conduct or carry on the business of horticulture nursery unless such nursery is registered with the Federal Seed Certification and RegistrationDepartment in consultation with Provincial Government.

(2) Every application for registration under sub-section (1) shall be made in such form and contain suchparticulars and shall be accompanied by such fee as may be prescribed.

22I. [1][* * * * * * *]

22J. Variety Evaluation Committee.—The [1][Authority] may, by notification in the official Gazette, constitute the Variety Evaluation Committee to evaluate candidate lines, cultivars and varieties of public and private sectors and imported seed material, for diseases and agronomic values of all fields and horticulture crops as prescribed [1][:]]

[1][Provided that the existing Variety Evaluation Committee shall continue to function, till it is reconstituted under this Act.]

[2][**23. Offences and penalty.—**Whoever—

(a) contravenes any provision or any rule under this Act; or

(b) imports, sells, holds in stocks or exhibits for sale or barter or otherwise supply any seed of any kind or plant variety or hybrid deemed to be misbranded; or

(c) imports, sells, holds in stocks or exhibits for sale or barter or otherwise supply any seed of any kind or plant variety or hybrid which is not a registered or enlisted plant variety or hybrid; or

(d) prevents a Seed Certification Officer or a Seed Inspector from taking a sample or inspecting seed under this Act; or

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[1]Subs. and omitted by Act No. XXXVI of 2024, ss. 13-15.
[2]Subs. by Act No. VII of 2015, s. 12.

[1][(e) prevent any person from exercising any power or perform any functions conferred on him by or under this Act or rules or regulations made thereunder;

shall be punishable,—

(i) with a minimum fine of five hundred thousand rupees, which may extend to two million rupees; and

(ii) imprisonment for a minimum term of three months for the first offence and up to a maximum of twenty four months for subsequent offences.]]

24. Power of court to order forfeiture.—If any person is convicted of an offence punishable under this Act in respect of any notified [1][or enlisted] variety or species of seed, the court convicting him shall further direct that the seed shall be forfeited to the [2][Authority].

[1][**24A. Appeal to the Authority.—**Any person aggrieved of an order passed by any department, committee or body constituted under this Act, other than the Authority, may within thirty days of the communication of the said order file an appeal before the Authority:

Provided that the Authority shall decide such appeal, after hearing all parties concerned, through a speaking order in the manner as may be prescribed.

24B. Seed Tribunals.—(1) The Federal Government may, by notification in the official gazette, constitute on or more Seed Tribunals, at such places and with such territorial limitations, as the Federal Government may determine, from time to time.

(2) A Tribunal shall comprise the following:—

(a) a Chairperson, from amongst such persons who is or has been a Judge of a High Court, to be appointed by the Federal Government;

(b) an advocate who is qualified to become a Judge of a High Court, to be appointed by the Federal Government; and

(c) a member having at least a master's degree in agriculture sciences and possessing extensive experience in the seed sector, to be appointed by the Federal Government.

(3) The Chairperson and the members shall be subject to such terms and conditions and shall be entitled to such remuneration and privileges, as the Federal Government may determine.

(4) The Chairperson and the members shall be appointed for a term of five years, who shall not be eligible for re-appointment.

(5) The Chairperson and the members may, at any time, resign from his office of the Tribunal, provided that such resignation shall not take effect until duly accepted by the Federal Government.

24C. Powers and functions of the Tribunals.—(1) The primary responsibility of the Tribunals shall be to hear and decide the appeals against orders passed by the Authority, in accordance with law.

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[1]Ins. by the Act No. VII of 2015, s. 13.
[2]Subs. and ins. by Act No. XXXVI of 2024, ss. 16-18.

(2) The Tribunal shall have all powers of, *inter-alia*, discovery, inspection, summoning, examination, and re-examination of witnesses, as well as power to issue warrants of arrest and impose such penalties as may be prescribed.

(3) Any person aggrieved of an order passed by the Authority, under section 24A or otherwise, within thirty days of the communication of the said order, may file an appeal before the Tribunal, in such manner and on payment of such fee, as may be prescribed.

(4) The Tribunal may, on appeal, after giving a reasonable opportunity of hearing to all parties concerned, confirm, set-aside, vary or modify the order appealed against:

Provided that the Tribunal shall decide such appeals, as expeditiously as possible, but not later than ninety days from the first date of hearing.

(5) An appeal to the Supreme Court of Pakistan shall only lie against an order or judgement of the Tribunal, if the Supreme Court grants leave to appeal, after being satisfied that the case involves a substantial question of law of public importance.]

25. Cognizance of offence etc.—(1) No court inferior to that of a Magistrate of the first class [1][, specifically designated by the respective Provincial Governments in that behalf,] shall try an offence punishable under this Act.

[1][(2) No court shall take cognizance of an offence punishable under this Act except upon a complaint in writing made by the Federal Seed Certification Department or a person authorized by the Authority in this behalf by an order in writing.]

[1][(3) The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898) shall apply, *mutatis mutandis*, in respect of cases under this Act.]

26. Presumption as to order.—Where an order purports to have been made and signed by an authority in exercise of any power conferred by or under this Act, a court shall presume within the meaning of the Evidence Act, 1872 (I of 1872) that such order was so made by that authority.

27. Indemnity.—No Suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Act or the rules.

[1][**28. Delegation of powers.—**The Authority may, by a written order, delegate any of its powers and functions to any member, officer, or employee of the Authority, or to any department or agency working under its control or supervision, subject to such restrictions, if any, as may be specified in that order, in the manner as may be prescribed.]

[1][**28A. Audit.**—(1) The Chairperson may appoint a reputable firm to carry out the annual performance audit of the Authority.

[1]Ins. and subs. by Act No. XXXVI of 2024, ss. 19-21.

(2) The Auditors appointed under sub-section (1) shall submit the audit report to the Chairperson and the Chairperson shall cause the same to be placed before the Board for approval.]

29. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for [1][,*inter-alia*,]—

(a) the functions of the Seed Testing Laboratory;

(b) the requirements which shall be complied with by the registered growers or a person carrying on the business of seed production, processing [1][,development, marketing,] or distribution ;

(c) the form of application for the grant of a certificate under section 13, the particulars it shall contain, the fees which shall accompany it, the form of the certificate and the conditions subject to which the certificate may be granted;

(d) the records to be maintained by a registered grower or a person carrying on the business referred to in such section (1) of section 13 and the particulars which such records shall contain;

(e) the form and manner in which, and the fee on payment of which, an appeal may be preferred under section 16 and the procedure to be followed by the appellate authority in disposing of the appeal;

(f) the qualifications and duties of a Seed Certification Officer;

(g) the qualifications and duties of a Seed Inspector;

(h) the manner in which samples may be taken by the Seed Inspector, the procedure for sending such samples to the Seed Testing Laboratory and the manner of analyzing such samples;

(i) the form of report of the result of the analysis under sub-section (1) of section 22 and thefees payable in respect thereof;

(j) the powers and functions of a Seed Analyst; and

(k) any other matter which is to be or may be prescribed.

[1][**30. Power to make regulations.—**(1) The Authority may, with the approval of the Board, make regulations, not inconsistent with the provisions of this Act and the rules made thereunder, for effectively carrying out the purposes envisioned under this Act.]

[1]Ins. by Act No. XXXVI of 2024, ss. 22-23.

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[1][**31. Savings.—**All acts done, obligations and liabilities incurred, rights and assets acquired, persons appointed or authorized, jurisdictions or powers conferred, money earned or expended, donations made or grants received, orders issued, and all other actions taken under the Seed (Amendment) Ordinance, 2024 (Ordinance II of 2024) and before the commencement of Seed (Amendment) Act, 2024 (XXXVI of 2024), shall, upon commencement thereof, be deemed to have been validly done, incurred, acquired, appointed, authorized, conferred, earned, expended, made, received, issued and taken under this Act.]

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Date: 06-02-2025

[1]Ins. by Act No. XXXVI of 2024, s. 24.

THE SETTLEMENT COMMISSIONERS (VALIDATION OF ORDERS) ACT, 1972

CONTENTS

1. Short title, extent and commencement
2. Validation
3. [Omitted]

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THE SETTLEMENT COMMISSIONERS (VALIDATION OF ORDERS) ACT, 1972

ACT NO. VI OF 1972

[7th September, 1972]

An Act to validate certain orders passed by Settlement Commissioners

WHEREAS it is necessary to provide for the validation of certain orders passed by certain Settlement Commissioners which have been declared or rendered invalid;

It is hereby enacted as follows:-

1. Short title, extent and commencement.—(1) This Act may be called the Settlement Commissioners (Validation of Orders) Act, 1972.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once and shall be deemed to have taken effect on the 26th day of March, 1958.

2. Validation. Notwithstanding anything contained in the Displaced Persons (Compensation and Rehabilitation) Act, 1958 (XXVIII of 1958), or in any decree or order of any court or other authority, any order purporting to be in exercise of the powers conferred by sub-section (1) of section 21 of the said Act made by a Settlement Commissioner to whom the powers of the Chief Settlement Commissioner under sub-section (2) of section 20 of the said Act had been delegated shall be deemed to have been validly made and shall have, and shall be deemed always to have had, effect accordingly.

3. [1]*[Omitted]*

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RGN Date:-22.04.2024

[1]*Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of 1981), s. 3 and Sch., II.*

THE SHORT TITLES ACT, 1973

CONTENTS

1. Short title and commencement

*2.

3. [Omitted]

THE SCHEDULE

THE PAKISTAN CODE

*As per the relevant Gazette Notification

THE SHORT TITLES ACT, 1973

Act No. XXI of 1973

An Act to assign short titles to certain Martial Law Regulations and Martial Law Orders

WHEREAS clause (3) of Article 280 of the Interim Constitution of the Islamic Republic of Pakistan, hereinafter referred to as the Interim Constitution, provides that each of the Martial Law Regulations and Martial Law Orders specified in the Seventh Schedule thereto shall be deemed to have become an Act of the appropriate Legislature;

AND WHEREAS it is expedient, for facility of reference, to assign short titles to the aforesaid Martial Law Regulations and Martial Law Orders and also some of the Martial Law Regulations mentioned in the First Schedule to the Interim Constitution;

And whereas the Proclamation of Emergency referred to in clause (8) of Article 139 of the Interim Constitution is in force;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the Short Titles Act, 1973.

(2) It shall come into force at once.

2. The laws specified in the first two columns of the Schedule to this Act, being laws specified in the First and the Seventh Schedules to the Interim Constitution, shall be cited and referred to by the short titles mentioned against each in the third column of the Schedule to this Act.

3. [1][Omitted]

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THE SCHEDULE

Existing title of M.L.R. or M.L.O.		Number of M.L.R. or M.L.O.	Short Titles
1		2	3
1.	Rawalpindi (Requisition of Property) Regulation, 1959.	-	The Rawalpindi (Requisition of Property) Regulation, 1959.
2.	Pakistan Capital Regulation.	-	The Pakistan Capital Regulation, 1960.

[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.

	1	2	3
3.	Scrutiny of Claims (Evacuee Property) Regulation.	-	The Scrutiny of Claims (Evacuee Property) Regulation, 1961.
4.	West Pakistan Border Area Regulation, 1959.	-	The West Pakistan Border Area Regulation, 1959.
5.	Income Tax (Correction of Returns and False Declaration) Regulation.	32	The Income Tax (Correction of Returns and False Declaration) Regulation, 1969.
6.	Improper Acquisition of Property.	37	The Improper Acquisition of Property Regulation, 1969.
7.	Removal from Service (Special Provisions) Regulation.	58	The Removal from Service (Special Provisions) Regulation, 1969.
8.	Punishment for assuming style of living beyond ostensible means.	59	The Living Beyond Ostensible Means (Punishment) Regulation, 1969.
9.	Recovery of illegal possession of Government Agricultural Land Regulation.	68	The Government Agricultural Land (Recovery of Illegal Possession) Regulation, 1969.
10.	Enemy Property Delivering of money due to an enemy etc. to the Custodian of Enemy Property.	70	The Enemy Property (Payment of money Due to Enemy) Regulation, 1970.
11.	Withdrawal of high denomination currency notes.	81	The Withdrawal of Currency Notes (High Denominations) Regulation, 1971.
12.	To improve the management of the Karachi Race Club Limited.	85	The Karachi Race Club Limited (Improvement of Management) Regulation, 1971.
13.	Recovery of Price of Evacuee Property and Public Dues Regulation.	87	The Price of Evacuee Property and Public Dues (Recovery) Regulation, 1971.
14.	Settlement of certain disputes between the residents of Peshawar District and the Tribal Areas of Khyber and Mohmand Agencies.	93	The Peshawar District and Tribal Areas (Settlement of Disputes) Regulation, 1971.

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	1	2	3
15.	Funds of the Pakistan Muslim League (Convention) and Awami League.	97	The Convention Muslim League and Awami League (Scrutiny of Funds) Regulation, 1971.
16.	The Foreign Exchange Repatriation Regulation, 1972.	104	The Foreign Exchange Repatriation Regulation, 1972.
17.	The Foreign Assets (Declaration) Regulation, 1972.	105	The Foreign Assets (Declaration) Regulation, 1972.
18.	Removal from Service (Special Provisions) Regulation, 1972.	114	The Removal from Civil Service (Special Provisions) Regulation, 1972.
19.	The Land Reforms Regulation, 1972.	115	The Land Reforms Regulation, 1972.
20.	Removal from Service (Review Petition) Regulation, 1972.	116	The Removal from Service (Review Petition) Regulation, 1972.
21.	The Land Reforms (Baluchistan Pat Feeder Canal) Regulation.	117	The Land Reforms (Baluchistan Pat Feeder Canal) Regulation, 1972.
22.	Taking Over Privately Managed Schools and Colleges.	118	The Privately Managed Schools and Colleges (Taking Over) Regulation, 1972.
23.	Revocation of Sale of Enemy Property Regulation, 1972.	119	The Enemy Property (Revocation of Sales) Regulation, 1972.
24.	The Devolution and Distribution of Property (Dir and Swat) Regulation.	122	The Dir and Swat (Devolution and Distribution of Property) Regulation, 1972.
25.	The Settlement of Immovable Property Disputes (Dir and Swat) Regulation.	123	The Dir and Swat (Settlement of Disputes of Immovable Property) Regulation, 1972.
26.	Revocation of sale or transfer of any property made after the 25th March, 1969, by a Corporation or institution and its vesting in the West Pakistan Industrial Development Corporation on such revocation.	124	The West Pakistan Industrial Development Corporation (Revocation of Sale or Transfer) Regulation, 1972.
27.	Protecting industries the management of which has been taken over under the Economic Reforms Order, 1972.	125	The Economic Reforms (Protection of Industries) Re-gulation, 1972.
28.	Martial Law Order 35 relating to the National Press Trust of Pakistan.	-	The National Press Trust (Suspension of Board of Trustees and Directors) Regulation, 1972.

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	1	2	3
29.	Zonal Martial Law Order No. 241 of 1972 of Zone C, made to further the effective operation of the West Pakistan Co-operative Societies and Co-operative Banks (Repayment of Loans) Ordinance, 1966 (*West Pakistan Ordinance No. XIV of 1966*).	-	The Co-operative Banks (Re-payment of Loans) (Punjab) Regulation, 1972.
30.	Zonal Martial Law Order No. 38 of 1971 of Zone D, as amended by Zonal Martial Law Orders No. 42 of 1971 and No. 48 of 1972 made to further the effective operation of the Co-operative Societies Act, 1925 (*Sind Act VII of 1925*).	-	The Co-operative Societies (Re-payment of Loans) (Sind) Regulation, 1972.

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THE SINDH INCUMBERED ESTATES ACT, 1896

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THE SINDH INCUMBERED ESTATES ACT, 1896

[1]Act No. XX OF 1896

[16th October, 1896]

An act to amend the law providing for the relief of jagirdars and zamindars in Sindh.

WHEREAS it is expedient to amend the law providing for the relief of jagirdars and zamindars in Sindh; It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Title and commencement.—(1) This Act may be called the Sindh incumbered Estate Act, 1896; and

(2) It shall come into force at once.

2. Definitions. In this Act—

(1) "Jagir land" includes also a share held hereditarily of the revenues of a Government village, but does not include *siri* or *mamul* or garden grants:

(2) "jagirdar" means a person who, or whoes ancestor, was found in possession of jagir land in Sindh on the seventeenth day of February, 1843, and to whom the said land, or a portion of the same, or other land in lieu thereof, has been continued by the [2]*Government, [3][as a jagir]:

(3) "zamindar" means a person holding lands in Sindh on the aggregate of which he or his ancestor has been assessed by the Government, on account of land- revenue for any one of the five revenue-years next before the [4][making of an application under section 3 by or in respect of or on behalf of such person] a sum not less than three hundred rupees; and a person holding lands in Sindh which, having been comprised in the jagir lands of a jagirdar and having ceased to be jagir lands, are as essed by the Government on account of land revenue at a sum not less than three hundred rupees per year, and, where a joint family or any other body of co - owners hold lands of either of those descriptions, each member of that family or body who would be entitled to demand a partition of the lands: and

(4) "Commissioner" means the Commissioner in Sindh.

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[1]For Statement of Objects and Reasons, *see* Gazette of India, 1896, Pt. V.p. 252; and for Proceedings in Council, *see ibid*., Pt. VI , pp. 236 and 243.

This Act has been and shall be deemed to have been extended to the whole of Pakistan by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. *(with effect from the 14th October, 1955).*

This Act has been amended in its application to the Province of Sind by the Sind Act, No. 17 of 1975, s. 3 and 2nd Sch.

[2]The word "British" omitted by A.O., 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956).*

[3]Subs. by the Sindh Incumbered Estates (Amdt.) Act, 1906 (2 of 1906), s.2(a), for "and to whom, or to whose ancestor, a sanad has been, or hereafter may be, granted confirming such continuance".

[4]Subs. by s. 2(b*), ibid*., for "commencement of this Act".

CHAPTER II
OF THE APPLICATION AND PRELIMINARY INQUIRY

3. Application for the benefit of this Act.—(1) At any time after the commencement of this Act, any jagirdar or zamindar or any person who would be sole heir or one of the heirs to such jagirdar or zamindar if he then died intestate, may apply in writing to the Commissioner, stating that such jagirdar or zamindar is subject to debts or liabilities, other than debts due, or liabilities incurred, [1][to the Government], or that his immoveable property is charged with debts or liabilities other, than as aforesaid, and requesting that the provisions of this Act be applied to his case.

(2) When any jagirdar, zamindar or other person entitled to make an application under this section is a minor, or of unsound mind, or an idiot, such application may be made on his behalf by the guardian or other legal curator of his person, or by the legally constituted administrator or manager of his estate.

4. Order to inquire.—(1) When any such application is made by or on behalf of a jagirdar or the person who would be his sole heir if he then died, the Commissioner shall direct an inquiry to be made by such officer, as he thinks fit, into the nature and amount of such debts and liabilities, and the sufficiency of the debtor's property, whether moveable or immoveable, to discharge the same.

(2) When such an application is made in any other case, it shall be in the discretion of the Commissioner, subject to any general rules which may from time to time be made by the [2][Provincial Government] in this behalf, either to reject such application, or to direct an inquiry to be made as aforesaid.

[3]**[5. Interim order of protection.—(**1)] When the Commissioner has directed an inquiry under section 4, he may, if he thinks fit, further direct that, until he dismisses the application or appoints an officer under section 7, sub-section (2), clause *(c)*,-

(a) all proceedings then pending in any Civil or Revenue Court or Office in [1][Pakistan], in respect of any of the debts and liabilities to which the debtor is subject, or which are charged on the whole or any part of his immoveable property, shall be stayed, and the operation of all processes, executions and attachments then in force for, or in respect of, such debts and liabilities shall be suspended; and

[1]The original words "to Govt." have successively been amended by A.O., 1937 and A.O., 1961, Art. 2 *(with effect from the 23rd March, 1956)* to read as above.
[2]Subs. by A. O., 1937, for "Governor of Bombay in Council".
[3]The original. s. 5 was re-numbered as sub-section (1) of that section by the Sindh Incumbered Estates (Amdt.) Act, 1906 (2 of 1906), s. 3.

(b) no fresh proceedings, processes, execution or attachments shall be instituted in, or issued by, any Civil Court or Revenue Court or Office in [1][Pakistan] in respect of such debts and liabilities.

[2][(2) Every direction given under sub-section (1) shall be deemed to afford protection to sureties of the debtor as well as to the debtor himself, unless in any case a surety has, by his bond, expressly accepted liability thereunder in the event of an 'order being made in respect of the debtor's property under section 7, sub-section (2), clause *(c)*.]

6. Verified statement to be submitted.—(1) When an inquiry has been directed under section 4, the applicant shall, within a period to be fixed by the Commissioner, submit to the officer appointed to make such inquiry a statement duly verified by the said applicant or by some other competent person in the manner required by law for the verification of plaints and containing, so far as may be practicable, such details as to the debts and liabilities, and as to the sufficiency of the debtor's property, whether moveable or immovable, to meet the same, as the Commissioner, or the said officer subject to his control, may require.

(2) If any such statement contains any averment which the person making the verification knows or believes to be false, or does not know or believe to be true, such person shall be deemed to have intentionally given false evidence within the meaning of the Pakistan Penal Code (XLV of 1860).

7. Report of inquiry and proceedings thereon.—(1) The officer so appointed, after making inquiry, shall submit a report of the proceedings to the Commissioner.

(2) On receipt of such report, the Commissioner may—

(a) direct a further inquiry; or

(b) dismiss the application; or,

(c) by order published in the [3][official Gazette], appoint an officer (hereinafter called the manager) to manage the moveable property of the debtor, and to arrange for the liquidation of his debts in manner hereinafter provided.

CHAPTER III
OF THE ORDER OF MANAGEMENT

8. Order of management.—(1) An order made under section 7, sub-section (2), clause (c) (hereinafter called "the order of management"), shall extend to all immoveable property, including any interest in joint immoveable property, of or to which the debtor is on the date of its publication possessed or entitled in his own right, or which he is entitled to redeem, or which may be acquired by or devolve on him during the continuance of the management, and to all debts and liabilities to which he is subject, or which are charged on the whole or any part of his immoveable property on the said date, and to the amount of any loan which may be received by the manager in the manner hereinafter provided.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October,* 1955), for "the Provinces and the Capital of the Federation", which had been subs. by A. 0.,1949, Arts. 3 (2) and 4, for "British India".
[2]Sub-section (2) ins. by the Sindh Incumbered Estates (Amdt.) 1906 (2 of 1906), s.3.
[3]Subs. by A.O., 1937, for "Sindh Official Gazette".

(2) The management shall be deemed to commence from the date on which the order is published.

9. Effect of order of management. On the publication of the order of management the following consequences shall ensue:—

(1) all proceedings then pending in any Civil Court or Revenue Court or Office in [1][Pakistan] in respect to the debts and liabilities mentioned in section 8 shall be stayed; and the operation of all processes, executions and attachments then in force for, or in respect of, such debts and liabilities shall be suspended;

(2) so long as the management continues, no fresh proceedings, processes, executions or attachments shall be instituted in or issued by any Civil Court or Revenue Court or Office in [1][Pakistan] in respect of such debts and liabilities;

[2][(2a) clauses (1) and (2) shall be deemed to afford protection to sureties of the debtor as well as to the debtor himself, unless in any case a surety has, by his bond, expressly accepted liability thereunder in the event of an order being made in respect of the debtor's property under section 7, sub-section (2), clause (c);]

(3) so long as the management continues, the debtor shall be incompetent-

(a) to enter into any contract involving him in pecuniary liability, or

(b) to mortgage, charge, lease or alienate the property under management or any part thereof, or

(c) to grant valid receipts for the rents and profits arising or accruing therefrom:

Provided that nothing contained in this clause shall be deemed to preclude the manager from letting, and the debtor from taking, the whole or any part of such property on such terms consistent with this Act as may be agreed upon between the parties;

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(4) so long as the management continues, no person other than the manager shall be competent to mortgage, charge, lease or alienate such property or any part thereof.

10. Powers of manager. The manager shall, during the management of the property, have all powers which the owner thereof might, as such, have legally exercised, and shall receive and recover all rents, [3][profits and other sums] due in respect of the property under management, and for the purpose of recovering such rents, [3][profits and other sums] shall have, in addition to any powers possessed by a jagirdar or zamindar, as the case may be, all the powers possessed by a Collector under the law for the time being in force for the recovery of land-revenue due to Government, [4][including the power conferred by section 176 of the Bombay Land -revenue Code, 1879 (Bom.V of 1879)]:

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955),. for " the Provides and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "British India".
[2]Clause (2a) ins. by the Sindh Incumbered Estates (Amdt.) Act, 1906 (2 of 1906), s.4.
[3]Subs. by the Sindh Incumbered Estates (Amdt.) Act, 1906 (2 of 1906), s. 5 (a), for "and profits".
[4]Ins. *ibid*., s.5 (b)

Provided that he shall not, before the liquidation-scheme hereinafter mentioned has been sanctioned, demise the property under management, or any part thereof, for any term exceeding two years, to take effect in possession.

11. Payments to be made by manager and order thereof.—(1) From the sums received or recovered under section 10, the manager shall pay-

first, the costs of the management, including the costs of necessary repairs;

secondly, the Government revenue and all debts and liabilities for the time being due or incurred [1][to the Government] in respect of the property under management;

thirdly, the rent (if any) due to the jagirdar or other superior holder in respect of the said property;

fourthly, such periodical allowances as the Commissioner may, from time to time, fix for the maintenance of the debtor and his family ;

fifthly, the cost of such improvements of the said property as he thinks necessary, and are approved by the Commissioner.

(2) The residue shall be retained by the manager for the liquidation, in manner hereinafter provided, of the debts and liabilities mentioned in section 8 other than those so due or incurred [1][to the Government], and also for the repayment, either before or after the liquidation of such debts and liabilities, of any loan received by the manager under this Act.

CHAPTER IV

PROOF OF DEBTS AND SCHEME FOR LIQUIDATION

12. Notice to claimants against debtors. On the publication of the order of management, the manager shall publish in the [2][official Gazette] a notice in English and Sindhi, calling upon all persons having claims against the debtor, or the property under management, to notify the same in writing to such manager within six months from the date of the publication, and shall also cause copies of such notice to be exhibited at the mukhtiarkar's kachahris in the district in which the said property lies, and at such other places as he thinks fit.

13. Claimants to present full particulars and documents.—(1) Every such claimant shall, along with his claim, present full particulars thereof.

(2) Every document on which the claimant founds his claim, or on which he relies in support thereof, shall be delivered to the manager along with the claim.

(3) If the document is an entry in any book, the claimant shall produce the book to the manager, together with a copy of the entry on which he relies. The manager shall mark the book for the purpose of identification and, after examining and comparing the copy with the original, shall return the book to the claimant.

(4) If any document in the possession or under the control of the claimant is not delivered or produced by him to the manager along with the claim, the manager may refuse to receive such document in evidence on the claimant's behalf at the investigation of the case.

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[1]The original words "to Government" have successively been amended by A. 0., 1937, and A. 0., 1961, Art. 2 *(with effect from the 23rd March,* 1956) to read as above.

[2]Subs. by A.O., 1937, for "Sindh official Gazette".

14. Claim not duly notified to be barred. Every such claim (other than claims [1][of the Government] not notified to the manager within the time and in the manner required by such notice shall, except as provided in section 19, clause *(d)*, be deemed for all purposes and on all occasions, whether during the continuance of the management or afterwards, to have been duly discharged:

Provided that, when proof is made to the manager that the claimant was unable to comply with the provisions of section 12, the manager may receive such claim within the further period of six months from the expiration of the original period of six months.

15. Determination of debts and liabilities. The manager shall inquire into the history and merits of every claim received under sections 12 and 14, and shall, in accordance with the rules to be made under this Act, determine the amount of the debts and liabilities (if any) justly due to the several claimants.

16. Power to rank debts and to fix interest. If such amount cannot be paid at once, the manager shall then proceed to rank such debts and liabilities according to the order in which they shall be paid, and to fix the interest (if any) to be paid thereon, respectively, from the date of the final decision thereon to the date of the payment and discharge thereof.

17. Liquidation scheme.-(1) When the total amount of the debts and liabilities (including those due and incurred [1][to the Government] has been finally determined, the manager shall prepare and submit to the Commissioner a schedule of such debts and liabilities, and a scheme (hereinafter called the liquidation-scheme) showing the mode in which it is proposed to pay and discharge the same, whether from the income of the property under management, or with the aid of funds raised under the powers hereinafter conferred, or partly in one of such ways and partly in the other.

(2) Every liquidation-scheme shall further provide for the continuance of the payments to be made by the manager under section 11, and for the rep ayment of the money (if any) which the manager proposes to borrow under this Act; and may provide for the improvement of the property under management either from the said income or with the aid of the funds raised as aforesaid, or partly in one of such ways and partly in the other.

18. Proceedings of Commissioner on submission of liquidation scheme. The Commissioner may—

(a) as often as he thinks fit send back such scheme to the manager for revision, and direct him to make such further inquiry as may be requisite for the proper preparation of the scheme, or

(b) sanction any liquidation-scheme or any revised liquidation-scheme submitted to him, either as it stands, or subject to such modifications as he may deem expedient.

[1]The original words "to Government" have successively been amended by A.O., 1937, and A.O., 1961, Art. 2 (*with effect from the 23rd March, 1956*), to read as above.

19. Power to relinquish management.—(1) At any time before he has sanctioned a liquidation scheme under section 18, the Commissioner may, by an order published in the [1][official Gazette], direct that on a date fixed by such order the management shall be relinquished.

(2) On the date so fixed—

(a) the management shall terminate;

(b) the owner of the property under management shall be restored to the possession thereof, subject to any leases granted under section 10 ;

(c) any residue of the rents and profits of the said property retained under section 11, sub-section (2), shall be paid to him; and

(d) the proceedings, processes, executions and attachments stayed and suspended under section 9, and the debts and liabilities barred by section 14, shall revive.

(3) In calculating the periods of limitation applicable to suits to recover and enforce debts and liabilities revived under this section, the time during which the management has continued shall be excluded.

CHAPTER V
OF THE PROCEEDINGS SUBSEQUENT TO SANCTION OF THE LIQUIDATION-SCHEME.

20. Effects of sanctioning scheme. When the Commissioner sanctions the liquidation-scheme, he shall notify the fact of such sanction at such places and in such manner as the [2][Provincial Government] may from time to time by rule direct; and thereupon-

(1) all proceedings, processes, executions and attachments stayed or suspended under section 9 shall be for ever barred, and

(2) every debt or liability due or owing to any person which was provable before the manager shall be extinguished; and such person shall be entitled to receive under the liquidation-scheme the amount (if any) finally awarded to him under Chapter IV in respect of such debt or liability.

21. Power to remove mortgagee in possession.—(1) If the property under management or any part thereof is in the possession of a mortgagee or conditional vendee, the manager, at any time after the liquidation-scheme has been sanctioned as aforesaid, may, by an order in writing, require such incumbrancer to deliver up possession of the same to him at the end of the then current revenue-year.

(2) if such incumbrancer refuses or neglects to obey such order, the manager may, without resorting to a Civil Court, enter upon the property and summarily evict therefrom the said incumbrancer and any other person obstructing or resisting on his behalf.

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[1]Subs. by A. 0., 1937, for "Sindh official Gazette"
[2]Subs. *ibid.*, for "L. G.".

(3) Nothing in this section shall be held to affect the right of any incumbrancer to receive, under the liquidation-scheme, the amount (if any) awarded to him under Chapter IV.

[1][**22. Power to inquire into consideration given for leases**.—(1)] If the property under management or any part thereof is in the possession of any person claiming to hold under a lease, 2* * * the manager, with the sanction of the Commissioner, may inquire into the sufficiency of the consideration for which the lease was granted, and if such consideration appears to him insufficient, may by written order, at any time after the liquidation-scheme bas been sanctioned as aforesaid, either set aside the lease, or require the person so in possession to pay such consideration for the said lease as the manager thinks fit ; and, in default of such payment, the lease shall be cancelled.

[3][(2) Whenever the manager sets aside or cancels a lease under sub-section (1), he shall, by written order, award to the lessee such compensation, if any, as may appear to the manager to be equitable in the circumstances; and, subject to the provisions of Chapter VI, no compensation in excess of the amount so awarded shall be recoverable by the lessee in a Civil Court or otherwise.

(3) Any compensation awarded by the manager under sub-section (2) shall be deemed to be a debt mentioned in section 8, and shall rank in priority to all other debts and liabilities other than debts or liabilities due or incurred [4][to the Government].

(4) If any lessee whose lease has been so set aside or cancelled refuses or neglects to give up possession when required to do so by the manager, the manager may, without resorting to a Civil Court, enter upon the property and summarily evict therefrom the said lessee and any other person obstructing or resisting on his behalf.]

23. Power to lease. Subject to the rules made under section 33, the manager, after the liquidation-scheme has been sanctioned as aforesaid, shall have power to demise all or any part of the property under management for any term of years not exceeding twenty years absolute, to take effect in possession, in consideration of the payment to him of any fine, or without fine, and reserving such rents, and under such conditions as may be agreed upon.

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[5]**24. Power to raise money by mortgage or sale.** At any time after the liquidation-scheme has been sanctioned as aforesaid, the manager, with the previous assent of the Commissioner, shall have power to raise any money which may be required for carrying out such scheme—

(a) by demising by way of mortgage the whole or any part of the property under management for a term not exceeding twenty years from the publication of the order of management; or

(b) by selling, by public auction or by private contract, and upon such terms as the manager thinks fit, such portion of the said property as may appear expedient; or

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[1]The original section 22 was re-numbered as section 22 (1) by the Sindh Incumbered Estates (Amdt.) Act, 1906 (2 of 1906), s. *6(a).*

[2]The words "dated within the three years immediately preceding the commencement of the management" were rep. *ibid.*, s. *6 (b).*

[3]Sub-sections (2), (3) and (4) ins. *ibid.*, s. *6(c).*

[4]*See page No. 8, Foot note No. 1*

[5]This section has been amended in its application to the Province of West Pakistan (except the Capital of the Federation) by West Pakistan Act 16 of 1957, s. 3 (3) and 3rd Sch. *(with effect from the 14th October,* 1955).

(c) by borrowing money at such rate of interest as appears reasonable to the [1][Provincial Government].

25. Separation of part of jagir lands subject to lapse. When jagir land under management is held on this condition, that on the happening of a certain event a share of the land shall lapse, but that it shall be in the discretion of the person then entitled as jagirdar to divide off and relinquish in respect of the lapse such part of the land, being a fair equivalent of that share, as he thinks fit, the manager may, if he deems it convenient for the better exercise of the powers conferred by sections 23 and 24, at any time, after such consultation with persons interested as he thinks necessary, allot by written order, for relinquishment on the happening of the event, such part of the land as he thinks fit ; and thereupon that part and no other shall, on the happening of the event, be relinquished.

26. Manager's receipt to be a discharge. The manager's receipt for any moneys, rents or profits raised or received by him under this Act shall discharge the person paying the same therefrom and from being concerned to see to the application thereof.

27. Termination of management.—(1) When the debts and liabilities mentioned in the liquidation-scheme and the amount of any loan received under section 24, clause (c), together with the interest (if any) due there on, have been paid and discharged, the manager shall publish in the [2][official Gazette] a notice fixing a date for the termination of the management.

(2) On the date so fixed the management shall terminate, and the owner shall be restored to the possession and enjoyment of the property under management, or of such part thereof as has not been sold by the manager under the power conferred by section 24, but subject to the leases and mortgages (if any) granted and made by the manager under the powers conferred by sections 10, 23 and 24.

28. Death of debtor during management. If the debtor dies after the publication of the order of management and before the management has been terminated in either of the modes hereinbefore provided,—

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(1) the management shall continue and proceed in all respects as if such debtor were still living ;

(2) any person succeeding to the whole or any portion of the property under management shall, while such management continues, be subject in respect of such property to the disabilities imposed by section 9, clause (3), sub-clauses *(b)* and *(c)* ; and

(3) no Civil Court or Revenue Court or Office in [3][Pakistan] shall, during the continuance of the management, issue any attachment or other process against any portion of the property under management for, or in respect of, any debt or liability incurred by any such person whether before or after his said succession.

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[1]Subs. by A. O., 1931, for "L. G.".
[2]Subs. *ibid.*, for "Sindh official Gazette".
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21of 1960), s. 3 and 2nd Sch. *(with effect from the 14th October*, 1955), for" the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3 (2) and 4, for "British India".

29. Mortgages, etc., made by restored jagirdar valid only for this life. When a jagirdar or zamindar has been restored under section 27, sub-section (2), to the possession of any property, no mortgage, charge, lease or alienation of such property, or of any part thereof, made or granted by such jagirdar or zamindar shall be valid as to any time beyond his natural life [1][unless made or granted with the previous sanction of the Commissioner], [2][or in the case of a loan granted under the Land Improvement Loans Act, 1883 (XIX of 1883), or the Agriculturists, Loans Act, 1884 (XII of 1884), with the previous sanction of the officer granting such loan].

30. Power to revise liquidation scheme. Notwithstanding anything contained in this Act, the Commissioner may, at any time after he has, whether before or after the commencement of this Act, sanctioned the liquidation scheme, revise and modify the same, but not so as to affect the right of any person to receive in full before the termination of the management the amount finally awarded to him under Chapter IV.

CHAPTER VI
OF APPEAL AND REVISION

31. Appeal.—(1) An appeal against any decision or order under sections 14, 15, 16 and 22, and imposing a fine or imprisonment in exercise of the powers conferred by section 37, shall lie to the Commissioner, if preferred within six weeks from the date of such decision or order.

(2) There shall be no appeal against the decision of the Commissioner on such appeal.

[3]**[32. Power to call for proceedings and pass order thereon**. The Provincial Government may, of its own motion or on the application of any person concerned, call for the proceedings in any case under this Act, and pass such order thereon consistent with the provisions of this Act as it thinks fit.]

CHAPTER VII
MISCELLANEOUS

33. Power to make rules.—(1) The Commissioner, with the previous sanction of the [4][Provincial Government], may, from time to time, make rules consistent with this Act-

(a) to regulate the security to be required from subordinate officers under this Act;

(b) to regulate the procedure in all cases under this Act;

(c) for the guidance of officers inquiring into and determining on claims under Chapter IV ; and in particular as to the allowance of interest (if any) on each of the principal debts and liabilities so determined, from the date on which it was incurred down to the date of the determination, and on the aggregate amount of such debts and liabilities, from the date of the determination down to the date of payment, and as to the order of paying debts and liabilities and repaying any loan received hereunder;

(d) for investing any moneys received or raised by the manager under this Act in any Government securities of [5][Pakistan], and for the sale of such securities; and

(e) generally to carry out the provisions of this Act.

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[1]Ins. by the Bombay Repealing and Amending Act, 1919 (Bom. 2 of 1919), s. 2 and Sch..1.

[2]Ins. by the Sindh Incumbered Estates (Amdt.) Act, 1929 (Bom. 11 of 1929), s. 2.

[3]Subs. by the Sind Incumbered Estates (Amdt.) Act, 1951 (Sind Act l7 of 1951), s. 2, for the original s. 32.
This section has been amended in its application to the Province of West Pakistan (except the Capital of the Federation), by the West Pakistan Act 16 of 1957, s. 3 (3) and 3rd Sch. *(with effect from the 14th October,* 1955).4

[4]Subs. by A. 0., 1937, for "Governor of Bombay in Council".

[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960) s. 3 and 2nd Sch. *(with effect from the 14th October,* 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3 (2) and 4, for "British India".

(2) Such rules shall be published in the [1][official Gazette], and shall thereupon have the force of law.

34. Power to appoint new manager. Whenever the Commissioner thinks fit, he may suspend or remove any manager, and may appoint any officer in the stead of any manager appointed under this Act; and thereupon the management then vested under this Act in the former manager shall become vested in the new manager, and the new manager shall have the same powers as if he had been originally appointed.

35. Managers to be public servants. Every manager appointed under this Act shall be deemed a public servant within the meaning of the Pakistan Penal Code (XLV of 1860).

36. Investigation to be deemed a judicial proceeding. Every investigation conducted by the manager with reference to any claim preferred before him under this Act, or to any matter connected with any such claim, shall be taken to be a judicial proceeding within the meaning of the Pakistan Penal Code (XLV of 1860).

37. Power to summon witnesses and compel production of documents. For the purposes of this Act, the manager [2][or any officer subordinate to him, not below the rank of a Mukhtiarkar,] may summon and enforce the attendance of witnesses and compel them to give evidence, and compel the production of documents, by the same means and, as far as possible in the same manner, as is provided in the case of a Civil Court by the [3]Code of Civil Procedure.

38. Bar of suits. No suit or other proceeding shall be maintained against Bar of suits. any person in respect of anything done by him *bona fide* pursuant to this Act.

39. Saving of jurisdiction of Courts in Sindh in respect of certain suits. Nothing in this Act precludes the Courts in Sindh having jurisdiction in suits relating to the succession to any immoveable property brought under the operation of this Act from entertaining and disposing of such suits; but to all such suits the manager of such property shall be made a party.

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Date: 05-09-2024

[1]Subs. by A. O., 1937, for "Sindh officia1 Gazette".
[2]Ins. by the Incumbered Estates and Court of Wards (Sind Arndt.) Act, 1947 (16 of 1947), s. 2.
[3]*See* now the Code of Civil Procedure, 1908 (5 of 1908).

THE SMALL CLAIMS AND MINOR OFFENCES COURTS ORDINANCE, 2002

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THE SMALL CLAIMS AND MINOR OFFENCES COURTS ORDINANCE, 2002

ORDINANCE NO. XXVI OF 2002

[*19th June, 2002*]

AN

ORDINANCE

to consolidate and enact the law relating to small claims and minor offences

WHEREAS it is expedient and necessary to consolidate and enact the law relating to small claims and minor offences and matters incidental thereto or connected therewith for providing inexpensive and expeditious disposal of such claims and offences;

AND WHEREAS, the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October 1999, and the Provisional Constitution Order No. 1 of 1999, read with Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf; the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Small Claims and Minor Offences Courts Ordinance, 2002.

(2) It extends to the whole of Pakistan.

*(3) It shall come into force on such date as the Federal Government may, by notification in the official Gazette, appoint in this behalf.

2. Definition.—(1) In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "amicable settlement" includes settlement through arbitration process, other than arbitration under the Arbitration Act, 1940 (X of 1940), mediation, conciliation or any other lawful means mutually agreed upon by the parties;

(b) "award" means findings of a Salis;

(c) "Court" means the Small Claims and Minor Offences Court established under section 4;

(d) "Government" means the Provincial Government;

(e) "prescribed" means prescribed by rules;

(f) "rules" means rules made under section 42;

(g) "Salis" means the person acting as conciliator, mediator or arbitrator.

(2) Any expression not specifically mentioned or defined in this Ordinance shall have the same meaning as defined in the Code of Civil Procedure, 1908 (Act V of 1908), and shall have effect accordingly.

*This Ordinance came into force on 15th July, 2004, vide S.R.O. 601 (I)/2004 dated 5th July, 2004.

3. Ordinance to override other laws.—The provisions of this Ordinance shall have effect notwithstanding anything contained in any other law for the time being in force.

4. Establishment of Courts.—(1) The Government, in consultation with the High Court, may establish one or more Small Claims and Minor Offences Courts in each district or at such other place or places as it may deem necessary.

(2) The Court shall be presided over by a Civil Judge-cum-Judicial Magistrate.

(3) The local limits of jurisdiction of the Court shall be such as the High Court may, by notification in the official Gazette, determine and define from time to time.

5. Jurisdiction.—(1) The Court shall have exclusive jurisdiction to:

(a) try all suits and claims arising therefrom, specified in Part I of the Schedule to this Ordinance, the subject matter of which does not exceed one hundred thousand rupees in value for the purposes of jurisdiction:

Provided that the High Court may, by notification in the Official Gazette, vary such value from time to time; and

(b) try offences specified in Part II of the Schedule to this Ordinance.

6. Procedure in civil trials.—Proceedings under this Ordinance relating to claims or suits shall be conducted in the manner hereinafter provided, namely

(i) Every claim or suit before the Court shall be instituted by presentation of a plaint duly verified on oath or solenm affirmation;

(ii) the plaint shall contain all material facts relating to the claim or dispute, a schedule giving the number of witnesses intended to be produced in support of the plaint, the names and addresses of witnesses and a brief summary of the facts to which they would depose;

(iii) where a plaintiff sues or relies upon a document in his possession or power, he shall produce it in the Court either in original or copy thereof alongwith the plaint;

(iv) where a plaintiff relies on any other document, not in his possession or power as evidence in support of his claim, he shall enter such document in a list to be appended to the plaint, giving reasons of relevancy to the claim in the plaint;

(v) the plaint shall be accompanied by as many copies thereof including the schedule and the lists of documents referred to in clause (4) as there are defendants in the suit, for service upon the defendants; and

(vi) the plaint shall be accompanied by one time process fee of twenty-five rupees.

7. Rejection of plaint.—(1) The plaint shall be rejected in the following cases

(a) where it does not disclose a cause of action;

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(b) where the relief claimed is under-valued, and the plaintiff, on being required by the Court to correct the valuation within a time to be fixed by the Court, fails to do so;

(c) where the relief claimed is properly valued, but the plaint is written upon paper insufficiently stamped, and the plaintiff, on being required by the Court to supply the requisite stamp paper within a time to be fixed by the Court, fails to do so;

(d) where the suit appears from the statement in the plaint to be barred by any law.

(2) Where a plaint is rejected, the Judge shall record an order to that effect with reasons for such order.

(3) The rejection of the plaint on any of the grounds herein before mentioned shall not of its own force preclude the plaintiff from presenting a fresh plaint in respect of the same cause of action.

8. Process fee.—The plaintiff shall, alongwith the plaint, pay one time process fee of twenty five rupees for service of summons upon the defendants and postal stamps of the value of registered post acknowledgement due and where the Court orders for substituted service, deposit the charges of such substituted service, within three days of making such order failing which the suit may be dismissed.

9. Summons.—(1) The Court shall within two days of the presentation of the plaint, send to the defendant summons for final determination of the suit, through process server and by registered post, acknowledgement due, together with the copies of the plaint, schedule of witnesses, documents or list of documents relied upon.

(2) Where in any suit the defendant cannot be found and has no agent empowered to accept service of the summons on his behalf, service may be made on any adult member of the family of the defendant who is residing with him.

(3) Every summons and its accompaniments under sub-section (1) shall be served within fifteen days.

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(4) Where the Court has reasons to believe that the defendant is avoiding service, or that for any other reason the summons cannot be served in the ordinary way, the Court shall order for service of summons by—

(a) affixing a copy of the summons at some conspicuous part of the house, if any, in which the defendant resides or is known to have last resided or carries or is known to have carried on business or personally works or is known to have worked for gain; or

(b) any electronic device of communication which may include telegram, phonogram, telex, fax and e-mail; or

(c) urgent mail service or public courier services; or

(d) beat of drum in the locality where the defendant resides; or

(e) publication in press; or

(f) any other manner or mode as it may deem fit:

Provided that the Court may order the use of all or any of the aforesaid manners and modes of service simultaneously.

(5) Substituted service by order of the Court shall be as effectual as if it had been made on the defendant personally.

(6) In case of substituted service, the Court shall fix such time for the appearance of the defendant, as the case may require, which shall not exceed fifteen days.

(7) The summons sent under sub-section (1) shall contain direction to the effect that the defendant on his appearance on the date fixed shall file his written statement as provided by subsection (1) of section 11.

10. Appearance through Advocate or recognized agent.—(1) No Advocate shall act for any person in the Court, unless he has been appointed for the purpose by such person in writing signed by such person or by his recognized agent or by some other person authorised by or under a power of attorney to make such appointment.

(2) Any appearance, application or action in or to the Court, required or authorised by law to be made or done by a party may, except where otherwise expressly provided by any law for the time being in force, be made or done by the party in person or by his recognised agent or by an Advocate on his behalf.

(3) Any process served on the recognised agent of a party or an advocate shall be as effectual as if the same has been served on the party in person, unless the Court otherwise directs.

(4) The provisions for the service of process on a party to a suit shall apply to the service of process on his recognised agent.

11. Written statement.—(1) The defendant shall on the date fixed, appear before the Court and file his written statement duly verified on oath or solemn affirmation and attach therewith a list of his witnesses as also a summary of the evidence that each witness is expected to give:

Provided that the Court may, on sufficient cause being shown, permit to file written statement which shall not exceed fifteen days.

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(2) Where a defendant relies upon a document in his possession or power, he shall produce it in original or a copy thereof in the Court alongwith the written statement.

(3) When the defendant relies on any other document, not in his possession or power, as evidence in support of his written statement, he shall enter such documents in a list to be appended to the written statement, giving reasons of relevancy to the defence in the written statement.

(4) Copy of the written statement together with schedule of witnesses, documents and list of documents relied upon shall be given to the plaintiff, his agent or advocate present in the Court.

(5) Where any party from whom a written statement is so required fails to present the same within the time fixed by the Court, the Court may pronounce judgment against him, or make such order in relation to the suit as it thinks fit.

12. Appearance of parties and effect of non-appearance, etc.—(1) Where on the day fixed for the defendant to file written statement, it is found that the summons have been served but the defendant has failed to file written statement without sufficient cause, the Court may proceed ex-parte and pass decree:

Provided that if the Court is satisfied that the defendant was prevented by any sufficient cause, it may set aside the decree subject to and upon such terms as to costs, payment into Court or otherwise as it deems fit:

Provided further that no order shall be made under this sub-section unless notice of the application has been served on the opposite party.

(2) Where the Court has adjourned hearing of the suit ex parte, and the defendant on or before such hearing, appears and assigns good cause for his previous non-appearance, the Court may, upon such terms as it directs as to costs or otherwise, hear him in answer to the suit as if he had appeared on the day fixed for appearance.

(3) Where neither party appears when the suit is called for hearing, the Court may make an order that the suit be dismissed.

(4) Where the defendant appears and the plaintiff does not appear when the suit is called for hearing, the Court shall make an order that the suit be dismissed unless the defendant admits the claim, or part thereof in which case the Court shall pass a decree against the defendant upon such admission, and where part only of the claim has been admitted, shall dismiss the suit to the extent of the part not admitted.

13. Final disposal of suit.—(1) Where it appears at the first hearing of the suit that the parties are not at variance on any question of law or fact or that the dispute is of trivial nature, the Court may, after recording brief statements of the parties or their counsels, dispose of the suit forthwith.

(2) If the suit is not disposed of under sub-section (1), the Court shall ascertain upon which smaterial propositions of fact or law, the parties are at variance, and shall proceed to dispose of the case in the manner provided hereafter.

14. Amicable settlement.—(1) Where at any stage of the proceedings, it appears to the Court either on application of any party or otherwise, that there exists a possibility of amicable settlement between the parties, the Court may, subject to consent of parties, through Salis or any other person, conciliate, arbitrate, mediate or resolve through any other means, the claim or offence, as the case may be:

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Provided that the Court shall not proceed for amicable settlement of offences which are non-compoundable or, for reasons to be recorded in writing, where it considers such settlement to be either against the public policy or interest of the State.

(2) If a settlement is reached between the parties to the claim or suit, a statement of compromise shall be prepared and the Court shall pass a decree accordingly.

(3) If a settlement is reached between the parties to the offence, the offence shall be deemed to have been compounded in terms of the compromise and the Court shall pass order accordingly.

15. List of persons for amicable settlement.—(1) The Chief Justice of High Court shall, in consultation with the District Judge, the President. Bar Association of the District or Sub-Division concerned, prepare a list of persons to act as Salis for effecting amicable settlement, which shall be maintained in the Court.

(2) The list of persons under sub-section (1) may include retired Judges and lawyers.

(3) The parties may also nominate Salis other than the persons in the list maintained by the Court, and the Court may refer the suit or complaint to such person.

16. Appearance of parties for settlement.—(1) On receipt of reference the Sails shall make efforts for amicable settlement of dispute or complaint and submit his report with the time fixed by the Court.

(2) The Salis shall call the parties through registered post, telegram, fax, telephone or any other appropriate mode to a venue and on a day and time specified by him.

(3) The parties shall appear in person or through their representatives before the Salis and shall state their claim or defence in writing, supply copies of their pleadings or complaint and all other necessary documents as required by the Salis.

17. Responsibilities of the Salis.—The Salis may—

(a) before proceeding in the matter, disclose to the Court any circumstance that may likely create an impression of a bias or which may prevent him from acting promptly, whereupon the Court shall direct the parties to nominate another Salis;

(b) facilitate negotiations between the parties and steer the direction of discussion with the aim of finding a mutually acceptable solution; and

(c) assist the parties in reaching an agreement.

18. Settlement of suit or complaint.—(1) If a settlement of a suit or complaint is reached between the parties, the Salis shall prepare a deed of settlement containing terms of such settlement, signed by the parties and submit it to the Court on the day fixed by the Court together with a certificate that the settlement between the parties was voluntary.

(2) The Salis shall make an award and submit it in the Court on or before the date fixed.

19. Objections on award.—(1) The Court shall, before passing a decree based on award, call objections of the parties to it within fifteen days of the receipt of award and settle such objections within fifteen days thereof.

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(2) No separate proceedings shall lie in any other Court to challenge the validity of the award on the plea of fraud misrepresentation on involuntary nature of the settlement of any other ground whatsoever.

(3) Where a person challenges the validity of the decree on the plea of fraud, misrepresentation or want of jurisdiction, he shall make an application to the Court within thirty days of passing the decree and no separate suit shall lie for it.

20. Payment of fees.—The Court shall determine the amount of fees, if any, to be paid by the party or parties to Salis, against a valid receipt.

21. Non-commencement of settlement proceedings.—If the parties fail to appear before the Salis or pay fees, as determined by the Court, the Salis may not proceed for settlement and inform the Court accordingly.

22. Failure of settlement.—If no settlement is reached between the parties, the Salis shall record the statement of the fact, signed by the parties and submit it to the Court on or before the date fixed.

23. Prohibition of appearing in proceedings or as witness.—The Salis conducting proceedings for amicable settlement shall not act in any capacity for any of the parties in connection with the matter in the suit or complaint in other proceedings nor shall he be called as a witness in such proceedings.

24. Prohibition of making record.—Any information, statement, document and anything disclosed to the Salis during settlement proceedings shall be kept as confidential and no document including any transcript, formal record or audio-visual recording shall be made of the proceedings, except with the approval of the Salis and consent of the parties.

25. Prohibition of using information.—No communication made in the settlement proceedings including information disclosed and views expressed shall be used in any other proceedings, whatsoever.

26. Commencement of trial in suit or claim.—If the dispute or claim is not referred for settlement or no settlement is reached under subsection (1) of section 14 within forty five days of the reference or such extended time as may be granted by the Court, on showing good cause the Court shall proceed to record evidence.

27. Evidence.—(1) In civil matters, the production of witnesses shall be the responsibility of the parties, except official witnesses whose appearance shall be determined by the Court in the interest of justice:

Provided that on the application of any party, the Court may also summon a witness.

(2) The evidence of the witness in attendance shall be taken orally in open Court by the Judge.

(3) The Court may—

(a) record a concise statement of evidence of a witness where no appeal lies; and

(b) record the evidence of a witness where an appeal lies in the case or the Court deems it necessary in the interest of justice, which shall be read over to the witness and signed by him.

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28. Power to order any point to be proved by affidavit.—(1) The Court may at any time for sufficient reason order that any particular fact or facts may be proved by affidavit, or that the affidavit of any witness may be read at the hearing on such conditions as the Court thinks reasonable:

Provided that where it appears to the Court that either party *bona fide* desires the production of a witness for cross-examination, and that such witness can be produced, an order shall not be made authorising the evidence of such witness to be given by affidavit.

29. Power to order attendance of deponent for cross-examination.—(1) Upon an application, evidence may be given by affidavit, but the Court may, at the instance of either party, order the attendance for cross-examination of the deponent.

(2) Such attendance shall be in Court, unless the deponent is exempted from personal appearance in Court, or the Court otherwise directs.

30. Matters to which affidavits shall be confined.—(1) An affidavit shall be confined to such facts as the deponent is able of his own knowledge to prove, except interlocutory applications, on which statement of his belief may be admitted, provided that the grounds thereof are stated.

(2) The costs of every affidavit which shall unnecessarily set forth matter of hearsay or argumentative nature, or copies of or extracts from documents, shall, unless the Court otherwise directs, be paid by the party filing the same.

31. Examination or re-examination of witness.—(1) The Court may, at any stage of the proceedings and under exceptional circumstances, call a witness for examination or re-examine a witness already examined, if so required for the ends of justice.

(2) The Court may refuse to summon a witness or enforce the summons already issued against the witness when in the opinion of the Court, the attendance of the witness cannot be procured without such delay, expense or inconvenience as in the circumstances would be unreasonable, or such application is moved in bad faith to protract the proceedings or to fill up any lacuna in the case of either party.

32. Conclusion of trial.—(1) The Court shall conclude the trial within sixty days by taking day-to-day hearing, unless prevented by good cause in which case, the case shall be disposed of within the next thirty days.

(2) On completion of evidence, the Court shall fix a date not exceeding seven days for hearing of arguments of parties.

(3) The Court shall, after the case has been heard, pronounce judgment in open Court within three days.

(4) The Court shall deliver to the parties, copies of judgment and decree on the day of pronouncement of judgment.

(5) Where a party is not present on the day for pronouncement of judgment, a copy of judgment and decree shall be sent to the party under registered post, acknowledgment due, which shall be conclusive proof of the knowledge of judgment.

33. Costs.—If in any suit or claim, the Court while pronouncing judgment comes to the conclusion that the claim or defence is false or vexatious, it may make an order for payment of costs as determined by the Court, not exceeding one-tenth of the value of subject matter of the suit.

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34. Procedure in criminal trial.—(1) In criminal proceedings, the Court shall follow the procedure prescribed in the Code of Criminal Procedure, 1898 (Act V of 1898), and Qanun-e-Shahadat, 1984 (President's Order No. 10 of 1984).

(2) The Court shall have and exercise the power of a Judicial Magistrate of the First Class under the Code of Criminal Procedure, 1898 (Act V of 1898).

35. Execution of decree.—(1) A decree passed by the Court shall be executed by the Court itself or by another Court upon transfer for reasons to be recorded by the Court passing the decree, and the transferee Court shall execute it as if the decree was passed by itself.

(2) All objections against execution of decree shall be determined by the Court executing the decree.

(3) The decree shall be executed as part of proceedings in the suit and no separate application shall lie for it.

(4) The Court shall continue the execution proceedings, except when stayed by the appellate Court.

(5) The cost in execution of decree shall be determined and paid as directed by the Court.

36. Inherent powers of Court.—Nothing in this Ordinance shall be deemed to limit or otherwise affect the inherent powers of the Court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of Court in respect of resolving disputes mentioned in Part I of the Schedule.

37. Power of the Court.—Subject to this Ordinance, the Court shall, for the purpose of any case under this Ordinance, have powers of a civil Court under the Code of Civil Procedure, 1908 (Act V of 1908), in respect of the matters, namely: —

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) compelling production or discovery of documents;

(c) local inspection; and

(d) issuing commission for examination of witnesses or documents.

38. Appeal in suit.—(1) An appeal shall lie to the Court of District Judge within thirty days of the passing of decree of final order by the Court.

(2) No appeal shall lie against the decree of the Court based on award, except on one or more of the following grounds, namely.—

(a) that the Salis has misconduct himself or the proceedings.

(b) that an award has been made after the issue of an order by the Court superseding the Salis or after the proceeding of award have become invalid by the order of the court; and

(c) That a decree based on award has been illegally procured.

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(3) No appeal shall lie from decree passed by the Court with consent of the parties.

(4) No second appeal shall lie against decree, judgment or order made under this ordinance

39. Appeal in criminal proceedings.—An appeal in criminal proceedings shall lie to the Court of Sessions within thirty days of conviction:

Provided that an appeal against acquittal shall lie in accordance with the procedure prescribed under the Code of Criminal Procedure, 1898 (Act V of 1898).

40. Amendment in the Schedule.—The High Court may amend the Schedule, from time to time, in the interest of justice.

41. Power to make rules.—The High Court may, from time to time, after previous publication, make rules regulating the procedure of the Court.

42. Repeal and savings.—(1) On coming into force of this Ordinance, the Provincial Small Cause Courts Act, 1887 (IX of 1887), shall stand repealed.

(2) The repeal under subsection (1) shall not—

(a) affect the previous operation of the law or any-thing duly done or suffered under the law;

(b) affect any right, privilege, obligation or liability acquired, accrued or incurred under the law;

(c) affect any penalty, forfeiture or punishment incurred in respect of any offence committed against the law;

(d) affect any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment;

and any such investigation, legal proceedings or remedy may be instituted, continued or enforced, and any such penalty, forfeiture or punishment may be imposed as if the law had not been repealed; and

(e) affect any proceedings pending before any Court instituted before the commencement of this Ordinance and all suits, applications and proceedings connected with those proceedings or arising therefrom shall continue to be heard and disposed of by the Court, including the appellate Court, where they are pending immediately before the commencement of this Ordinance as if the law had not been repealed.

Schedule

[See section 5]

PART I

1. Suit for recovery of money due on contract in writing, receipt or any other documents.

2. Claim for damages on account of contract in writing.

3. Suit for the specific performance or rescission of a contract in writing.

4. Suit for recovery of movable property or value thereof.

5. Suit for separate possession of joint immovable property through partition or otherwise.

6. Suit for compensation.

7. Suit for redemption of mortgage property.

8. Suit for enforcement of easement rights.

9. Suit for rendition of accounts of joint property.

10. Suit to restrain waste and remove nuisance.

11. Disputes under the Canal and Drainage Laws.

12. Mesne profits or property.

13. Suit for compensation for wrongful taking or damaging movable or immovable property.

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14. Suit for damages by cattle trespass.

15. Suit for damages and compensation arising out of traffic accidents.

16. Any other relief not falling under the Schedule but agreed to by the parties to be settled under this Ordinance.

Part II

All offences in the Pakistan Penal Code (Act XLV of 1860), punishable with imprisonment not exceeding three years or with fine or with both.

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RGN Date: 20-05-2024

THE SOCIETIES REGISTRATION ACT, 1860

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[1][THE SOCIETIES REGISTRATION ACT, 1860]

[2,3,4&5]Act No. XXI of 1860

[21st *May*, 1860]

An Act for the Registration of Literary, Scientific and Charitable Societies.

Preamble. WHEREAS it is expedient that provision should be made for improving the legal condition of societies established for the promotion of literature, science, or the fine arts, or for the diffusion of useful knowledge, [6][the diffusion of political education] or for charitable purposes; It is enacted as follows:—

1. Societies formed by memorandum of association and registration.—Any seven or more persons associated for any literary, scientific or charitable purpose, or for any such purpose as is described in section 20 of this Act, may, by subscribing their names to a memorandum of association and filing the same with the Registrar of Joint-stock Companies [7][* * *] from themselves into a society under this Act.

2. Memorandum of association.—The memorandum of association shall contain the following things (that is to say):—

the name of the society :

the objects of the society :

the names, addresses, and occupations of the governors, council, directors, committee or other governing body to whom, by the rules of the society, the management of its affairs is entrusted.

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[1]Short title given by the Short Title Act, 1897 (XIV of 1897).

[2]The Act (with exception of the first four sections) is based on the Literary and Scientific Institutions Act No. XVII & XVIII Vict., c 112, ss. 20 et seq.
It has been declared to be in force in all the Provinces and the Capital of the Federation, except the Scheduled Districts, by s. 3 of the Laws Local Extent Act No. XV of 1874.
It has been declared to be in force in Baluchistan by the British Baluchistan Laws Regulation No. II of 1913, s. 3.
It has been declared, by notification under s. 3(a) of the Scheduled Districts Act No. XIV of 1874, to be in force in the following Scheduled Districts, namely:—
The Districts of Hazara, Peshawar, Kohat, Bannu, Dera Ismail Khan and Dera Ghazi Khan. [*Portions of the Districts of Hazara, Bannu, Dera Ismail Khan and Dera Ghazi Khan and the Districts of Peshawar and Kohat now form the N.W.F.P., see Gazette of India., 1901, Pt. I, p. 857, and ibid.*, 1902, Pt. I, p. 575].
It has been extended, by notification under s. 5 of the last-mentioned Act, to the Scheduled District of Sind-*See* Gazette of India, 1880, Pt. I, p. 672.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified-*See* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has also been extended to the Leased Areas of Baluchistan by the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950); and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I., p. 1499.

[3]This Act has been amended in its application to the province of the Punjab. Vide Punjab Act No. IX of 1976 and Punjab Ord. No. XV of 1984.

[4]This Act has also been amended in its application to the province of N.W.F.P by N.W.F.P Act No. IV of 1976 and N.W.F.P Ordinance No. V of 1976.

[5]This Act has also been amended in its application in the province of Sind by Sind Ord. No. XLI of 1984.

[6]These words were added by the Societies Registration (Amendment) Act No. XXII of 1927.

[7]The words and figures "under Act XIX of 1857" rep. by the Repealing Act No. XVI of 1874. See now the Companies Act No.VII of 1913, s.288.
This Act has been amended to the extent of Islamabad Capital Territory, *see* Ord. No. XXVII of 1981, s. 5 and 4th Sch.
This Act has been amended in its application to the Province of Sind by the Sind Act No. V of 1976.
The Act has also been amended in its application to the Province of Baluchistan by Act No. XXVIII of 1976, s. 2 and Sch.

A copy of the rules and regulations of the society, certified to be a correct copy by not less than three of the members of the governing body, shall be filed with the memorandum of association.

3. Registration Fees.—Upon such memorandum and certified copy being filed, the registrar shall certify under his hand that the society is registered under this Act. There shall be paid to the registrar for every such registration a fee of fifty rupees, or such smaller fee as [1][the Provincial Government] may, from time to time, direct; and all fees so paid shall be accounted for to [1][the Provincial Government].

4. Annual list of managing body to be filed.—Once in every year, on or before the fourteenth day succeeding the day on which, according to the rules of the society, the annual general meeting of the society is held, or, if the rules do not provide for an annual general meeting, in the month of January, a list shall be filed with the Registrar of Joint-stock Companies of the names, addresses and occupations of the governors, council, directors, committee or other governing body then entrusted with the management of the affairs of the society.

5. Property of society how vested.—The property, moveable and immoveable, belonging to a society registered under this Act, if not vested in trustees, shall be deemed to be vested, for the time being, in the governing body of such society, and in all proceedings, civil and criminal, may be described as the property of the governing body of such society by their proper title.

6. Suits by and against societies.—Every society registered under this Act may sue or be sued in the name of the president, chairman, or principal secretary, or trustees, as shall be determined by the rules and regulations of the society, and, in default of such determination, in the name of such person as shall be appointed by the governing body for the occasion:

Provided that it shall be competent for any person having a claim or demand against the society, to sue the president or chairman, or principal secretary or the trustees thereof, if on application to the governing body some other officer or person be not nominated to be the defendant.

7. Suits not to abate.—No suit or proceeding in any Civil Court shall abate or discontinue by reason of the person by or against whom such suit or proceedings shall have been brought or continued, dying or ceasing to fill the character in the name whereof he shall have sued or been sued, but the same suit or proceedings shall be continued in the name of or against the successor of such person.

8. Enforcement of judgment against society.—If a judgment shall be recovered against the person or officer named on behalf of the society, such judgment shall not be put in force against the property, moveable or immoveable, or against the body of such person or officer, but against the property of the society.

The application for execution shall set forth the judgment, the fact of the party against whom it shall have been recovered having sued or having been sued, as the case may be, on behalf of the society only, and shall require to have the judgment enforced against the property of the society.

[1]Subs. by A.O., 1937.

9. Recovery of penalty accruing under bye-law.— Whenever by any bye-law duly made in accordance with the rules and regulations of the society, or, if the rules do not provide for the making of bye-laws, by any bye-law made at a general meeting of the members of the society convened for the purpose (for the making of which the concurrent votes of three-fifths of the members present at such meeting shall be necessary), any pecuniary penalty is imposed for the breach of any rule or bye-law of the society, such penalty, when accrued, may be recovered in any Court having jurisdiction where the defendant shall reside, or the society shall be situate, as the governing body thereof shall deem expedient.

10. Members liable to be sued as strangers.—Any member who may be in arrear of a subscription which, according to the rules of the society he is bound to pay, or who shall possess himself of or detain any property of the society in a manner or for a time contrary to such rules, or shall injure or destroy any property of the society, may be sued for such arrear or for the damage accruing from such detention, injury or destruction of property in the manner hereinbefore provided.

Recovery by successful defendant of costs adjudged. But if the defendant shall be successful in any suit or other proceeding brought against him at the instance of the society, and shall be adjudged to recover his costs, he may elect to proceed to recover the same from the officer in whose name the suit shall be brought, or from the society, and in the latter case shall have process against the property of the said society in the manner above described.

11. Members guilty of offences punishable as strangers.—Any member of the society who shall steal, purloin or embezzle any money or other property, or wilfully and maliciously destroy or injure any property of such society, or shall forge any deed, bond, security for money, receipt, or other instrument, whereby the funds of the society may be exposed to loss, shall be subject to the same prosecution, and, if convicted, shall be liable to be punished in like manner as any person not a member would be subject and liable to in respect of the like offence.

12. Societies enabled to alter, extend or abridge their purposes.—Whenever it shall appear to the governing body of any society registered under this Act, which has been established for any particular purpose or purposes, that it is advisable to alter, extend or abridge such purpose to or for other purposes within the meaning of this Act, or to amalgamate such society either wholly or partially with any other society, such governing body may submit the proposition to the members of the society in a written or printed report and may convene a special meeting for the consideration thereof according to the regulations of the society;

but no such proposition shall be carried into effect unless such report shall have been delivered or sent by post to every member of the society ten days previous to the special meeting convened by the governing body for the consideration thereof, nor unless such proposition shall have been agreed to by the votes of three-fifths of the members delivered in person or by proxy, and confirmed by the votes of three-fifths of the members present at a second special meeting convened by the governing body at an interval of one month after the former meeting.

13. Provision for dissolution of societies and adjustment of their affairs.—Any number not less than three-fifths of the members of any society may determine that it shall be dissolved, and thereupon it shall be dissolved forthwith, or at the time then agreed upon, and all necessary steps shall be taken for the disposal and settlement of the property of the society its claims and liabilities, according to the rules of the said society applicable thereto, if any, and if not, then as the governing body shall find expedient, provided that, in the event of any dispute arising among the said governing body or the members of the society, the adjustment of its affairs shall be referred to the principal

Court of original civil jurisdiction of the district in which the chief building of the society is situate; and the Court shall make such order in the matter as it shall deem requisite:

Assent required. Provided that no society shall be dissolved unless three-fifths of the members shall have expressed a wish for such dissolution by their votes delivered in person, or by proxy, at a general meeting convened for the purpose:

Government consent. Provided that [1][whenever any Government] is a member of, or a contributor to, or otherwise interested in, any society registered under this Act, such society shall not be dissolved [1][without the consent of the Government of the Province of registration].

14. Upon a dissolution no member to receive profit.—If upon the dissolution of any society registered under this Act there shall remain after the satisfaction of all its debts and liabilities any property whatsoever, the same shall not be paid to or distributed among the members of the said society or any of them, but shall be given to some other society, to be determined by the votes of not less than three-fifths of the members present personally or by proxy at the time of the dissolution, or, in default thereof, by such Court as aforesaid:

Clause not to apply to joint-stock companies. Provided, however, that this clause shall not apply to any society which shall have been founded or established by the contributions of shareholders in the nature of a Joint-stock Company.

15. Member defined.—For the purposes of this Act a member of a society shall be a person who, having been admitted therein according to the rules and regulations thereof, shall have paid a subscription or shall have signed the roll or list of members thereof, and shall not have resigned in accordance with such rules and regulations;

Disqualified members. but in all proceedings under this Act no person shall be entitled to vote or to be counted as a member whose subscription at the time shall have been in arrear for a period exceeding three months.

16. Governing body defined.—The governing body of the society shall be the governors, council, directors, committee, trustees or other body to whom by the rules and regulations of the society the management of its affairs is entrusted.

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17. Registration of societies formed before Act.—Any company or society established for a literary, scientific or charitable purpose, and registered under [2]Act [3][VII of 1913], or any such society established and constituted previously to the passing of this Act but not registered under the said [2]Act [3][VII of 1913], may at any time hereafter be registered as a society under this Act;

Assent required. subject to the proviso that no such company or society shall be registered under this Act unless an assent to its being so registered has been given by three-fifths of the members present personally, or by proxy, at some general meeting convened for that purpose by the governing body.

[1]Subs. by A. O., 1937.
[2]Rep. by the Indian Companies Act No. X of 1866, s. 219.
[3]Subs. by Ord. No. XXVII of 1981, s.5 and Sch., IV (only to the extent of Islamabad Capital Territory).

In the case of a company or society registered under [1]Act [2][VII of 1913], the directors shall be deemed to be such governing body.

In the case of a society not so registered, if no such body shall have been constituted on the establishment of the society, it shall be competent for the members thereof, upon due notice, to create for itself a governing body to act for the society thenceforth.

18. Such societies to file memorandum, etc., with Registrar of Joint-stock Companies.— In order to any such society as is mentioned in the last preceding section obtaining registry under this Act, it shall be sufficient that the governing body file with the Registrar of Joint stock Companies [3][* * *] a memorandum showing the name of the society, the objects of the society, and the names, addresses and occupations of the governing body, together with a copy of the rules and regulations of the society certified as provided in section 2, and a copy of the report of the proceedings of the general meeting at which the registration was resolved on.

19. Inspection of documents.—Any person may inspect all documents filed with the registrar under this Act on payment of a fee of one rupee for each inspection, and any person may require a copy or extract of any document or any part of any document, to be certified by the registrar, on payment of two annas for every hundred words of such copy or extract;

Certified copies. and such certified copy shall be *prima facie* evidence of the matters therein contained in all legal proceedings whatever.

20. To what societies Act applies.—The following societies may be registered under this Act:— Charitable societies, [4][* * *], societies established for the promotion of science, literature, or the fine arts, for instruction, the diffusion of useful knowledge, [5][the diffusion of political education], the foundation or maintenance of libraries or reading rooms for general use among the members or open to the public, or public museums and galleries of painting and other works of art, collections of natural history, mechanical and philosophical inventions, instruments, or designs.

[6][**21. Registration of Deeni Madaris.—**(1) Every Deeni Madrasa, by whatever name called, shall not operate without getting itself registered in the following manner, namely:—

(a) the Deeni Madrasa in existence before the commencement of the Societies Registration (Amendment) Act, 2024, (XXXVIII of 2024), if not already registered, [7][may] get itself registered under this Act within six months from commencement of the Societies Registration (Amendment) Act, 2024 (XXXVIII of 2024); [7][*]

(b) a Deeni Madrasa established after commencement of the Societies Registration (Amendment) Act, 2024, (XXXVIII of 2024), [7][may] get itself registered under this Act [7][or otherwise,] within one year of its establishment [7][; and]

[1]Rep. by the Indian Companies Act No. X of 1866, s. 219.
[2]Subs. by Ord. No. XXVII of 1981, s.5 and Sch., IV (only to the extent of Islamabad Capital Territory).
[3]Rep. by the Repealing Act No. XVI of 1874. See now the Companies Act, 1913 (VII of 1913), s.288.
[4]Omitted by A.O., 1949, Sch.
[5]Ins. by Act No. XXII of 1927.
[6]Added by Act No. XXXVIII of 2024, s. 2.
[7] Subs. omit and ins. by Act No. XXXI of 2025, s. 2.

Explanation.—A Deeni Madrasa having more than one campus shall need only one registration.

[1][(c) those Madaris and Wafaqs already registered or desirous to register themselves directly with Directorate General of Religious Education, Ministry of Federal Education and Professional Training, shall be reckoned to have been registered and shall be dealt with accordingly under the relevant dispensations.]

(2) Every Deeni Madrasa shall submit to the Registrar annual report of its educational activities.

(3) Every Deeni Madrasa shall cause to be carried out audit of its accounts by an auditor and submit a copy of its audit report to the Registrar.

(4) No Deeni Madrasa shall teach or publish any literature which promotes militancy or spreads sectarianism or religious hatred:

Provided that nothing contained herein shall bar the comparative study of various religions or schools of thought or the study of any other subject covered by the Holy Quran, Sunnah or the Islamic jurisprudence.

(5) Every Deeni Madrasa shall, subject to their resources, [1][accord priority to] include basic contemporary subjects in their curriculum according to a phased program.

(6) For registration of Deeni Madrasa under this Act [1][or otherwise], no Deeni Madrasa shall be required to register itself under any other law for the time being in force.

(7) Once registered under this Act [1][or otherwise], no Deeni Madrasa shall be required to be registered under any other law whatsoever for the time being enforce.

Explanation.—In this section *"Deeni Madrasa"* means a religious institution and includes a Jamia or Dar-ul-Uloom, called by any other name, established or operated primarily for the purposes of imparting religious education, which provides boarding and lodging facilities.]

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Date: 09-10-2025

[1]Ins. by Act No. XXXI of 2025, s. 2.

THE SOLDIERS (LITIGATION) ACT, 1925

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14A. [Omitted]

15. [Repeal]

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THE SOLDIERS (LITIGATION) ACT, 1925

[1]ACT No. IV or 1925

[26th February, 1925]

An Act to consolidate and amend the law to provide for the special protection in respect of civil and revenue litigation of [2]*soldiers serving under special conditions.

WHEREAS it is expedient to consolidate and amend the law to provide for the special protection in respect of civil and revenue litigation of [2]* soldiers serving under special conditions ; It is hereby enacted as follows :-

1. Short title, extent and commencement.—(1) This Act may be called the [2]*Soldiers (Litigation) Act, 1925.

[3][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on the first day of April, 1925.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Court" means a Civil or Revenue Court ;

[4][(aa) "Northern Areas" means Gilgit Agency including four Political Districts of Pun al, Ashkoman, Gupis and Yasin, Gilgit and Astore Sub-divisions, Chilas Sub-Agency Darel-Tangir Sub-Agency and the States of Hunza and Nagar, and Baltistan Agency comprising Skardu, Shigax, Khaplu Kharmong, Rondu and Gultari Valleys ;].

(b) "[5]* soldier" means any person subject to [6]* * * the Pakistan Army Act, 1952,] [7]* * * [6][or the Pakistan Air Force Act, 1953 (XXXIXVI of 1953).

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[1]For statement of Objects and Reasons, see Gazette of India, 1924, Pt. V, p. 119,; and for Report of Select Committee, sets ibid., 1925, Pt. V, p. 11.

This Act has been applied to-

(i) Tribal Areas beyond the western and northern boundaries of the N.W.F.P., in so far as the same may be applicable and subject to certain modification, see Gazette of India, 1940, Ext. p. 643;

(ii) the Baluchistan by Notfn. No. 18-F., dated the 24th January, 1938, see Gazette of India, 1938, Pt. 1. P. 111 : and

The Act has been extended to-

(a) the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950). and also applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499,

(b) the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O. 4 of 1953), as amended;

(c) the Khairpur State, see the Khairpur (Federal Laws) (Extension) Order, 1953 (G. G. O. 5.of 1953), as amended:

(d) the State of Bahawalpur, see the Bahawalpur (Extension of Federal Laws) Order, 1953 (G. G. O. 11 of 1953), as amended.

The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.

[2]The word "Indian" omitted by the Indian Soldiers (Litigation) (Amdt.) Act, 1950 (78 of 1950) s. 2.

[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for subsection (2) which had been subs. by Act 78 of 1950, s. 2, for the original sub-section.

[4]Ins. by the Soldiers (Litigation) (Amdt.) Ordinance, 1971 (19 of 1971), s. 2.

[5]The word "Indian" omitted by the Indian Soldiers (Litigation) (Amdt.) Act, 1950 (78 of 1950), s. 2.

[6]The words "The Indian Army Act 1911 or" omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II

[7]The words "or the Indian Air Force Act, 1932" omitted by Ord. 27 of 1981, s. 3 and Sch. II

[1][,or the Pakistan Navy Ordinance, 1961 (XXXV of 1961)].

(c) "prescribed" means prescribed by rules made under this Act ; and

(d) "proceeding" includes any suit, appeal or application.

3. Circumstances in which a solider shall be deemed to be serving under special conditions. For the purposes of this Act, [2][a soldier] shall be deemed to be or, as the case may be, to have been serving—

(a) under special conditions-when he is or has been serving under war conditions, or overseas, or at any place in [3]* * [4][Kashmir or the Northern Areas], or with any unit the headquarters of which are situated at any place in Chitral, Waziristan, the North-West Frontier [5]* or [6]* Baluchistan which is more than fifty miles distant by road from the nearest railway station ;

(b) under war conditions-when he is or has been, at any time during the continuance of any hostilities declared by the [7][Federal Government] by notification in the [8][official Gazette] to constitute a state of war for the purposes of this Act or at any time during a period of six months thereafter,-

(i) serving out of [9][Pakistan],

(ii) under orders to proceed on field service,

(iii) serving with any unit which is for the time being mobilised, or

(iv) serving under conditions which, in the opinion of the prescribed authority, preclude him from obtaining leave of absence to enable him to attend a Court as a party to any proceeding, or when he is or has been at any other time serving under conditions service under which has been declared by the [7][Federal Government] by notification in the [8][official Gazette] to be service under war conditions ; and

[10][(c) overseas—

(i) when he is or has been serving in any place outside Pakistan the journey between which and Pakistan is ordinarily undertaken wholly or in part by sea [11][or air] [.][12]

[13]* * * * * * *

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[1]Ins. ibid.
[2]Subs. by Act 78 of 1950, s. 5, for "an Indian soldier".
[3]The words "Iran, Afghanistan" omitted by the Ord. 27 of 1981, s. 3 and Sch. II.
[4]Subs by the Soldiers (Litigation) (Amdt.) Ordinance, 1971 (19 of 1971), s. 2, for "or Kashmir".
[5]The word "Province" omitted by Ordinance 21 of 1960, s. 3 and 2nd Sch. (with effect from the 14th October, 1955).
[6]The word "British" omitted by Act 78 of 1950.
[7]Subs. by F. A. O., 1975, Art 2 and Table, for "Central Government" which was previously amended by A. O., 1937, or "G. G. in C.".
[8]Subs. *ibid*., for "Gazette of India".
[9]Subs. by Act 78 of 1950, s. 5, for "India".
[10]Subs. by the Indian Soldiers (Litigation) (Amdt.) Act, 1950 (78 of 1950), for clause (c) as amended by A. O., 1937 and A. O., 1949.
[11]Added by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II.
[12]Subs. by F. A. O., 1975, Art. 2 and Table, for the fullstop.
[13]Sub-clause (II) omitted ibid.

[1][Explanation.—For the purposes of this section and with effect from the 3rd day of September, 1939, a soldier who is or has been a prisoner of war shall be deemed to be or to have been serving under war conditions.]

4. Particulars to be furnished in plaints applications or appeals to Court. If any person presenting any plaint, application or appeal to any Court has reason to believe that any adverse party is [2][a soldier] who is serving under special conditions, he shall state the fact in his plaint, application or appeal.

5. Power of Collector to intervene in case of un-represented soldier. If any Collector has reason to believe that any [3]* soldier, who ordinarily resides or has property in his district and who is a party to any proceeding pending before any Court, is unable to appear therein, the Collector may certify the facts in the prescribed manner to the Court.

6. Notice to be given in case of unrepresented solider.— [4][(1)] If a Collector has certified under section 5, or if the Court has reason to believe, that [5][a soldier], who is a party to any proceeding pending before it, is unable to appear therein, and if the soldier is not represented by any person duly authorised to appear, plead or act on his behalf, the Court shall suspend the proceeding and shall give notice thereof in the prescribed manner to the prescribed authority:

Provided that the Court may refrain from suspending the proceeding and issuing the notice if—

(a) the proceeding is a suit, appeal or application instituted or made by the soldier, alone or conjointly with others with the object of enforcing a right of pre-emption, or

(b) the interests of the soldier in the proceeding are, in the opinion of the Court, either identical with those of any other party to the proceeding and adequately represented by such other party or merely of a formal nature.

[6][(2) If it appears to the Court before which any proceeding is pending that [5][a soldier] though not a party to the proceeding is materially concerned in the outcome of the proceeding, and that his interests are likely to be prejudiced by his inability to attend, the Court may suspend the proceeding and shall give notice thereof in the prescribed manner to the prescribed authority.]

7. Postponement of proceedings. If, on receipt of a notice under section 6, the prescribed authority certifies in the prescribed manner to the Court in which the proceeding is pending that the soldier in respect of whom the notice was given is serving under special conditions, and that a postponement of the proceeding in respect of the soldier is necessary in the interests of justice, the Court shall thereupon postpone the proceeding in respect of the soldier for the prescribed period, or, if no period has been prescribed, for such period as it thinks fit.

8. Court may proceed when no certificate received. If, after issue of a notice under section 6, the prescribed authority either certifies that the soldier is not serving under special conditions or that such postponement is not necessary, or fails to certify, in the case of a soldier resident in the

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[1]Explanation added by the Indian Soldiers (Litigation (Amdt.) Ordinance, 1942 (64 of 1942), s. 2.
[2]Subs. by Act 78 of 1950, s. 9, for "an Indian soldier"
[3]The word "Indian" omitted, *ibid.*
[4]Re-numbered by the Indian Soldiers (Litigation) (Amdt.) Ordinance, 1942 (64 of 1942), s. 3.
[5]Subs. by the Indian Soldiers (Litigation) (Amdt.) Act, 1950 (78 of 1950), s. 9, for "an Indian soldier".
[6]Sub-section (2), added by Ordinance 64 of 1942, s. 3.

district in which the Court is situate, within two months or, in any other case, within three months from the date of the issue of the notice that such postponement is necessary, the Court may, if it thinks fit, continue the proceeding.

9. Postponement of proceedings against solider on leave. When any document purporting to be signed by the Commanding Officer of [1][a soldier] who is a party to any proceeding is produced by or on behalf of the soldier before the Court in which the proceeding is pending and is to the effect that the soldier—

(a) is on leave of absence for a period not exceeding two months, and is on the expiration of his leave to proceed on service under special conditions, or

(b) is on sick leave for a period not exceeding three months, and is on the expiration of his leave to rejoin his unit with a view to proceeding on service under special conditions, the proceeding in respect of such soldier may, in any case such as is referred to in the proviso to [2][sub-section (1) of section 6] and shall, in any other case, be postponed in the manner provided in section 7.

10. Power to set aside decrees and orders passed against a solider serving under war or special conditions.— (1) In any proceeding before a Court in which a decree or order has been passed against any [3]* soldier [4]* * * whilst he was serving under any special conditions, the soldier [5][or, if he is dead, his legal representative] may apply to the Court which passed the decree or order for an order to set aside the same, and, if the Court, after giving an opportunity to the opposite party of being heard, is satisfied that the interests of justice require that the decree or order should be set aside as against the soldier, the Court shall, subject to such conditions, if any, as it thinks fit to impose, make an order accordingly.

[6][(2) The period of limitation for an application under sub-section (1) shall be ninety days from the date of the decree or order, or, where the summons or notice was not duly served on the soldier in the proceeding in which the decree or order was passed, from the date on which the applicant had knowledge of the decree or order ; and the provisions of section 5 of the [3]* Limitation Act, 1908 (IX of 1908), shall apply to such applications.]

(3) When the decree or order in respect of which an application under sub-section (1) is made is of such a nature that it cannot be set aside as against the soldier only, it may be set aside as against all or any of the parties against whom it has been made.

(4) Where a Court sets aside a decree or order under this section, it shall appoint a day for proceeding with the suit, appeal or application, as the case may be.

[7][**11. Modification of law of limitation where solider or his legal representatives is a party.** [In computing the period of limitation prescribed by sub-section (2) of section 10 of this Act, the [8][Limitation Act], 1908 (IX of 1908), or any other law for the time being in force, for any suit,

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[1]Subs. by the Indian Soldiers (Litigation) (Amdt.) Act, 1950 (78 of 1950), s. 9, for "an Indian soldier".
[2]Subs. by the Indian Soldiers (Litigation) (Amdt.) Ordinance, 1942 (64 of 1942), s. 4, for "section 6".
[3]The word "Indian" omitted by Act 78 of 1950, s. 10.
[4]The words and figures "whilst he was serving under war condition or at any time after the 1st day of April, 1925" omitted by Ordinance 64 of 1942, s. 5 (a).
[5]Ins., *ibid*.
[6]Subs. *ibid.*, for sub-section (2).
[7]Subs. by the Indian Soldiers (Litigation) (Amdt.) Ordinance, 1942 (64 of 1942), s. 5, for s. 11.
[8]Subs. by the Indian Soldiers (Litigation) (Amdt.) Act, 1950 (78 of 1950), s. 11, for "Indian Limitation Act".

appeal or application to a Court, any party to which is or has been [1][a soldier], or is the legal representative of [1][a soldier], the period during which the solider has been serving under any special conditions, and, if the solider has died while so serving, the period from the date of his death to the date on which official intimation thereof was sent to his next-of-kin by the authorities in [2][Pakistan], shall be excluded:

Provided that this section shall not apply in the case of any suit, appeal or application instituted or made with the object of enforcing a right of pre-emption [3][[4][except where the said right accrues in such circumstances, and is in respect of agricultural land and village immoveable property situated in any such area,] as the [5][Federal Government] may, by notification in the official Gazette, specify in this behalf].

[6][**12. Power of Court to refer questions to prescribed authorities.** If any Court is in doubt whether, for the purposes of section 10 or section 11, [7][a soldier] is or was at any particular time serving under special conditions, or has died while so serving or as to the date of such death or as to the date on which official intimation of such death was sent to his next-of-kin by the authorities in [2][Pakistan], the Court may refer the point for the decision of the prescribed authority, and the certificate of that authority shall be conclusive evidence on the point.]

13. Rule making power. The [8][Federal Government] after consulting the High Court [9][concerned], may, by notification in the [10][official Gazette], make rules to provide for all or any of the following matters namely:—

(a) the manner and form in which any notice or certificate under this Act shall be given ;

(b) the period for which proceedings or any class of proceedings shall be postponed under section 7 ;

(c) the persons who shall be the prescribed authorities for the purposes of this Act ;

(d) any other matter which is to be or may be prescribed; and

(e) generally, any matters incidental to the purposes of this Act.

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14. Power to apply the provisions of the Act to other persons in the service of the State.— [11][(1)] [12][As respects the Provincial Public Services the Provincial Government, and in other cases, the [13][Federal Government] may, by notification in the [14][official Gazette],

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[1]Subs. by Indian Soldiers (Litigation) Amdt.) Act. 1950 (78 of 1950), s. 11.
[2]Subs. *ibid.*,, for "India".
[3]Added by the Indian Soldiers (Litigation) (Amdt.) Ordinance, 1944 (14 of 1944), s. 2.
[4]Subs. by the Indian Soldiers (Litigation) (Amdt.) Act, 1946 (18 of 1946), s. 2, for "except in such areas, and subject to such medications, if any,"
[5]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[6]Subs. by Ordinance 64 of 1942, s. 7, for section 12.
[7]Subs. by Act 78 of 1950, s. 12, for "an Indian soldier".
[8]Subs. by F. A. O., 1975, Art 2 and Table, for "Central Government" which was previously amended by A.O., 1937, or "L. G".
[9]Ins, by A. O. 1937.
[10]Subs. ibid., for "local official Gazette."
[11]Re-numbered by the Indian Soldiers (Litigation) (Amdt.) Ordinance, 1942, (64 of 1942), s. 8.
[12]Subs. by A. O., 1937, for "The G. G. in C.".
[13]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".
[14]Subs. by A. O., 1937 for "Gazette Notification".

direct that all or any of the provisions of this Act, shall apply[1] to any other class of persons in the service of [2][the State] specified in such notification in the same manner as they apply to [3]* soldiers.

[4][(2) Where, under this section, the Provincial Government has directed that all or any of the provisions of this Act shall apply to any class of persons in the service of [5][the State], the powers vested in the [6][Federal Government] by section 3 and section 13 shall be exercised in respect of that class of persons by the Provincial Government].

14A. [*Power to apply the provisions of the Act to members of State Forces.] Omitted by the, Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.*

15. [*Repeal of Acts IX of 1918 and XII of 1924.] Rep. by the Repealing Act, 1927 (XII of 1927), s. 2 and Sch.*

Date: 11-11-2024

[3]The Act was applied before partition to the following classes of persons :—

(a) Senior Officers of the Indian Territorial Force, by Defence Department Notification No. 251, dated the 24th February, 1940.

(b) Persons subject to the Indian Navy (Discipline) Act, 1934 (34 of 1934), and to persons of Indian domicile subject to the Naval Discipline Act (29 and 30 Viet, c. 109), in the same manner as they apply to Indian soldiers, see Gazette of India, 1945, Pt. 1, p. 141.

(c) Persons of Indian domicile who are subject to the Army Act and the Air Force Act, by War Department Notification No. 653, dated the 15th May, 1943.

(d) Persons who are subject to the Burma Act, by War Department Notification No. 970, dated the 12th June, 1943.

(e) Indian Commissioned Officers, Administrative Officers and personnel of the Civil Pioneer Force while on service in a War Area, by Labour Department Notification No. PF-41, dated the 13th April, 1943, as amended by Notification No. PF-41, dated the 25th February, 1944.

(f) Persons who, not being members of His Majesty's Forces are attached to or employed by the Royal Indian Navy, by War Department Notification No. 1296, dated the 25th September, 1943.

The provisions of this Act, as applied to the Tribal Areas beyond the western and northern boundaries of the N.W.F.P., shall apply to all classes of personnel in the service of His Majesty to which it is for the time being applicable in the Provinces, etc., by a notification issued by the Central Government, see Gazette of India, 1944, Pt. 1. p. 1421

All provisions of this Act have been applied to persons subject to Pakistan Navy Ordinance, 1961 (35 of 1961), and to persons who not being so subject are attached to, or employed by the Pakistan Navy, in the same manner as they apply to soldiers, see S.R.O. 556 (K)/65, dated the 23rd July, 1965, Gaz. of P., 1965, Pt. I, p. 517.

[2]Subs. by A. O., 1961, Art. 2 and Sch., for "His Majesty" (with effect from the 23rd March, 1956).

[3]The word "Indian" omitted by the Indian Soldiers (Litigation) (Amdt.) Act, 1950 (78 of 1950), s. 13.

[4]Sub-section (2) added by the Indian Soldiers (Litigation) (Amdt.) Ordinance, 1942 (64 of 1942).

[5]Subs. by A. O., 1961, Art. 2 and Sch., for "His Majesty" (with effect from the 23rd March, 1956).

[6]Subs. by F. A. O., 1975, Art. 2 and Table, for "Central Government".

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THE SPECIFIC RELIEF ACT, 1877

[1]Act No. I of 1877

[7th February, 1877]

An Act to define and amend the law relating to certain kinds of Specific Relief.

WHEREAS it is expedient to define and amend the law relating to certain kinds of specific relief obtainable in civil suits; It is hereby enacted as follows :—

PART I
Preliminary

1. Short title. This Act may be called the Specific Relief Act, 1877.

Local extent. [2][It extends to the whole of Pakistan.]

Commencement. And it shall come into force on the first day of May, 1877.

2. *[Repeal of enactments.] Rep. by the Amending Act, 1891 (XII of 1891).*

3. Interpretation-clause. In this Act, unless there be something repugnant in the subject or context,—

"obligation" includes every duty enforceable by law:

"trust" includes every species of express, implied, or constructive fiduciary ownership:

"trustee" includes every person holding, expressly, by implication, or constructively, a fiduciary character:

Illustrations

(a) Z bequeaths land to A, "not doubting that he will pay thereout an annuity of Rs. 1,000 to B for his life". A accepts the bequest. A is a trustee, within the meaning of this Act, for B, to the extent of the annuity.

[1]For the Statement of Objects and Reasons, *see* Gazette of India, 1875, Pt. V, P. 258 ; for the Report of the Select Committee, *see ibid*., 1876, Pt. V, p. 1445; for discussions in Council, *see ibid*., 1875, Supplement, pp. 981 and 1025 ; *ibid*., 1876, Supplement, p. 1284 and *ibid*., 1877, Supplement, p. 177.
It has been extended, by notification under s. 5 of the Scheduled Districts Act, 1874 (14 of 1874), to the following Scheduled Districts, namely:-
the Scheduled Districts of the
Punjab. . *See* Gazette of India, 1877, Pt. I, p. 562.
Sind . . Ditto, 1880, Pt. I, p. 676.
It has been applied to Phulera in the Excluded Area of Upper Tanawalto the extent the Act is applicable in the N.W.F.P., subject to certain modifications ; and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
S. 9 has been declared to be in force in Balochistan by the British Balochistan Laws Regulation, 1913 (2 of 1913), s. 3. (w.e.f. 18th August, 1913).
It has also been extended to the Leased Areas of Balochistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950) (*w.e.f.* 15th August, 1947) ; and applied in the Federated Areas of Balochistan, *see* Gazette of India, 15th August, 1937, Pt. I, p. 1499.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 960), s. 3 and 2nd Sch. (*w.e.f.* 14th October, 1955), for the original para, as amended by A. O., 1949, Arts. 3 (2) and 4. (*w.e.f.* 28th March, 1949).

(b) A is the legal, medical, or spiritual adviser of B. By availing himself of his situation as such adviser, A gains some pecuniary advantage which might otherwise have accrued to B. A is a trustee, for B, within the meaning of this Act, of such advantage.

(c) A, being B's banker, discloses for his own purpose the state of B's account. A is a trustee, within the meaning of this Act, for B, of the benefit gained by him by means of such disclosure.

(d) A, the mortgagee of certain leaseholds, renews the lease in his own name. A is a trustee, within the meaning of this Act, of the renewed lease, for those interested in the original lease.

(e) A, one of several partners, is employed to purchase goods for the firm. A, unknown to his co-partners, supplies them, at the market-price, with goods previously bought by himself when the price was lower, and thus makes a considerable profit. A is a trustee for his co- partners, within the meaning of this Act, of the profit so made.

(f) A, the manager of B's indigo-factory, becomes agent for C, a vendor of indigo-seed, and receives, without B's assent, commission on the seed purchased from C for the factory. A is a trustee, within the meaning of this Act, for B, of the commission so received.

(g) A buys certain land with notice that B has already contracted to buy it. A is a trustee, within the meaning of this Act, for B, of the land so bought.

(h) A buys land from B, having notice that C is in occupation of the land. A omits to make any inquiry as to the nature of C's interest therein. A is a trustee, within the meaning of this Act, for C, to the extent of that interest.

"settlement " means any instrument (other than a will or codicil as defined by the Indian Succession Act (X of 1865)[1]) whereby the destination or devolution of successive interests in moveable or immoveable property is disposed of or is agreed to be disposed of:

Words defined in Contract Act. and all words occurring in this Act, which are defined in the Contract Act, 1872 (IX of 1872), shall be deemed to have the meanings respectively assigned to them by that Act.

4. Savings. Except where it is herein otherwise expressly enacted, nothing in this Act shall be deemed—

(a) to give any right to relief in respect of any agreement which is not a contract;

(b) to deprive any person of any right to relief, other than specific performance, which he may have under any contract; or

[1]*See* now the Succession Act, 1925 (39 of 1925).

(c) to affect the operation of the Indian Registration Act[1] on documents.

5. Specific relief how given. Specific relief is given—

(a) by taking possession of certain property and delivering it to a claimant;

(b) by ordering a party to do the very act which he is under an obligation to do ;

(c) by preventing a party from doing that which he is under an obligation not to do ;

(d) by determining and declaring the rights of parties otherwise than by an award of compensation; or

(e) by appointing a receiver.

6. Preventive relief. Specific relief granted under clause (c) of section 5 is called preventive relief.

7. Relief not granted to enforce penal law. Specific relief cannot be granted for the mere purpose of enforcing a penal law.

PART II
Of Specific Relief

CHAPTER I
OF RECOVERING POSSESSION OF PROPERTY

(a) Possession of Immoveable Property

8. Recovery of specific immoveable property. A person entitled to the possession of specific immoveable property may recover it in the manner prescribed by the Code of Civil Procedure[2].

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[3]**9. Suit by person dispossessed of immoveable property.** If any person is dispossessed without his consent of immoveable property otherwise than in due course of law, he or any person claiming through him may, by suit [4]* * * recover possession thereof, notwithstanding any other title that may be set up in such suit.

[1]*See* now the Registration Act, 1908 (16 of 1908).
[2]*See* now the Code of Civil Procedure, 1908 (Act 5 of 1908).
[3]But see as to tenancies in the Punjab, the Punjab Tenancy Act, 1887 (16 of 1887), s. 51.
[4]The words "instituted within six months from the date of the dispossession" rep. by the Repealing and Amending Act, 1891 (12 of 1891) (*w.e.f.* 21st March, 1891).

Nothing in this section shall bar any person from suing to establish his title to such property and to recover possession thereof.

No suit under this section shall be brought against [1][the [2][Federal Government] or any Provincial Government].

No appeal shall lie from any order or decree passed in any suit instituted under this section, nor shall any review of any such order or decree be allowed.

(b) Possession of Moveble Property

10. Recovery of specific moveable property. A person entitled to the possession of specific moveable property may recover the same in the manner prescribed by the Code of Civil Procedure[3].

Explanation 1.— A trustee may sue under this section for the possession of property to the beneficial interest in which the person for whom he is trustee is entitled.

Explanation 2.— A special or temporary right to the present possession of property is sufficient to support a suit under this section.

Illustrations

(a) A bequeaths land to B for his life, with remainder to C. A dies. B enters on the land, but C, without B's consent, obtains possession of the title deeds. B may recover them from C.

(b) A pledges certain Jewels to B to secure a loan. B disposes of them before he is entitled to do so. A, without having paid or tendered the amount of the loan, sues B for possession of the jewels. The suit should be dismissed, as A is not entitled to their possession, whatever right he may have to secure their safe custody.

(c) A receives a letter addressed to him by B. B gets back the letter without A's consent. A has such a property therein as entitles him to recover it from B.

(d) A deposit books and papers for safe custody with B. B loses them and C finds them, but refuses to deliver them to B when demanded. B may recover them from C, subject to C's right, if any, under section 168 of the Contract Act, 1872 (IX of 1872).

(e) A, a warehouse-keeper, is charged with the delivery of certain goods to Z, which B takes out of A's possession. A may sue B for the goods.

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[1]The original words "the Government" were first subs. by A. O., 1937 (*w.e.f.* 1st April, 1937) and then amended by A. O., 1949 (*w.e.f.* 28th March, 1949) to read as above.

[2]Subs. by F. A. O., 1975, Art. 2, for "Central Government" (*w.e.f.* 28th July, 1975).

[3]See now the Code of Civil Procedure, 1908 (Act 5 of 1908).

11. Liability of person in possession, not as owner, to deliver to person entitled to immediate possession. Any person having the possession or control of a particular article of moveable property, of which he is not the owner, may be compelled specifically to deliver it to the person entitled to its immediate possession, in any of the following cases :—

(a) when the thing claimed is held by the defendant as the agent or trustee of the claimant;

(b) when compensation in money would not afford the claimant adequate relief for the loss of the thing claimed;

(c) when it would be extremely difficult to ascertain the actual damage caused by its loss;

(d) when the possession of the thing claimed has been wrongfully transferred from the claimant.

Illustrations

of clause (a)—

A, proceeding to Europe, leaves his furniture in charge of B as his agent during his absence. B, without A's authority, pledges the furniture to C, and C, knowing that B had no right to pledge the furniture, advertises it for sale. C may be compelled to deliver the furniture to A, for he holds it as A's trustee.

of clause (b)—

Z has got possession of an idol belonging to A's family, and of which A is the proper custodian. Z may be compelled to deliver the idol to A.

of clause (c)

A is entitled to a picture by a dead painter and a pair of rare China vases. B has possession of them. The articles are of too special a character to bear an ascertainable market-value. B may be compelled to deliver them to A.

CHAPTER II
OF THE SPECIFIC PERFORMANCE OF CONTRACTS

(a) Contracts which may be specifically enforced

12. Cases in which specific performance enforceable. Except as otherwise provided in this Chapter, the specific performance of any contract may in the discretion of the Court be enforced—

(a) when the act agreed to be done is in the performance, wholly or partly, of a trust;

(b) when [1][their] exists no standard for ascertaining the actual damage caused by non- performance of the act agreed to be done;

(c) when the act agreed to be done is such that pecuniary compensation for its non-performance would not afford adequate relief; or

(d) when it is probable that pecuniary compensation cannot be got for the non-performance of the act agreed to be done.

Explanation.— Unless and until the contrary is proved, the Court shall presume that the breach of a contract to transfer immoveable property cannot be adequately relieved by compensation in money, and that the breach of a contract to transfer moveable property can be thus relieved.

Illustrations

[2]* * * * * * *

of clause (b)—

A agrees to buy, and B agrees to sell, a picture by a dead painter and two rare China vases. A may compel B specifically to perform this contract, for there is no standard for ascertaining the actual damage which would be caused by its non-performance.

of clause (c)—

A contracts with B to sell him a house for Rs. 1,000. B is entitled to a decree directing A to convey the house to him, he paying the purchase-money.

In consideration of being released from certain obligations imposed on it by its act of Incorporation, a railway-company contract with Z to make an archway through their railway to connect lands of Z served by the railway, to construct a road between certain specified points, to pay a certain annual sum towards the maintenance of this road, and also to construct a siding and a wharf as specified in the contract. Z is entitled to have this contract specifically enforced, for his interest in its performance cannot be adequately compensated for by money: and the Court may appoint a proper person to superintend the construction of the archway, road, siding and wharf.

A contracts to sell, and B contracts to buy, a certain number of railway shares of a particular description. A refuses to complete the sale. B may compel A specifically to perform this agreement, for the shares are limited in number and not always to be had in the market, and their possession carries with it the status of a shareholder, which cannot otherwise be procured.

A contracts with B to paint a picture for B, who agrees to pay therefor Rs. 1,000. The picture is painted. B is entitled to have it delivered to him on payment or tender of the Rs. 1,000.

[1]*See*. should read "there".
[2]The first Illustration omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and 2nd Sch.

of clause (d)—

A transfers without endorsement, but for valuable consideration, a promissory note to B. A becomes insolvent, and C is appointed his assignee. B may compel C to endorse the note, for C has succeeded to A's liabilities, and a decree for pecuniary compensation for not endorsing the note would be fruitless.

13. Contract of which the subject has partially ceased to exist. Notwithstanding anything contained in section 56 of the Contract Act, a contract is not wholly impossible of performance because a portion of its subject matter, existing at its date, has ceased to exist at the time of the performance.

[1]* * * * * * * *

14. Specific performance of part of contract where part unperformed is small. Where a party to a contract is unable to perform the whole of his part of it, but the part which must be left unperformed bears only a small proportion to the whole in value, and admits of compensation in money, the Court may, at the suit of either party, direct the specific performance of so much of the contract as can be performed, and award compensation in money for the deficiency.

Illustrations

(a) A contracts to sell B a piece of lane consisting of 100 bighas. It turns out that 98 bighas of the land belong to A, and the two remaining bighas to a stranger, who refuses to part with them. The two bighas are not necessary for the use or enjoyment of the 98 bighas, nor so important for such use of enjoyment that the loss of them may not be made good in money. A may be directed at the suit of B to convey to B the 98 bighas and to make compensation to him for not conveying the two remaining bighas ; or B may be directed, at the suit of A, to pay to A, on receiving the conveyance and possession of the land, the stipulated purchase-money less a sum awarded as compensation for the deficiency.

(b) In a contract for the sale and purchase of a house and lands for two lakhs of rupees, it is agreed that part of the furniture should be taken at a valuation. The Court may direct specific performance of the contract notwithstanding the parties are unable to agree as to the valuation of the furniture, and may either have the furniture valued in the suit and include it in the decree for specific performance, or may confine its decree to the house.

15. Specific performance of part of contract where part unperformed is large. Where a party to a contract is unable to perform the whole of his part of it, and the part which must be left unperformed forms a considerable portion of the whole, or does not admit of compensation in money, he is not entitled to obtain a decree for specific performance. But the Court may, at the suit of the other party direct the party in default to perform specifically so much of his part of the contract as he can perform, provided that the plaintiff relinquishes all claim to further performance, and all right to compensation either for the deficiency, or for the loss or damage sustained by him through the default of the defendant.

[1]Omitted by Ord. No. XXII of 1983, s.2.

Illustrations

(a) A contracts to sell to B a piece of land consisting of 100 bighas. It turns out that 50 bighas of the land belong to A, and the other 50 bighas to a stranger, who refuses to part with them. A cannot obtain a decree against B for the specific performance of the contract; but if B is willing to pay the price agreed upon, and to take the 50 bighas which belong to A, waiving all right to compensation either for the deficiency or for loss sustained by him through A's neglect or default, B is entitled to a decree directing A to convey those 50 bighas to him on payment of the purchase-money.

(b) A contracts to sell to B an estate with a house and garden for a lakh of rupees. The garden is important for the enjoyment of the house. It turns out that A is unable to convey the garden. A cannot obtain a decree against B for the specific performance of the contract, but if B is willing to pay the price agreed upon, and to take the estate and house without the garden, waiving all right to compensation either for the deficiency or for loss sustained by him through A's neglect or default, B is entitled to a decree directing A to convey the house to him on payment of the purchase-money.

16. Specific performance of independent part of contract. When a part of a contract which, taken by itself, can and ought to be specifically performed, stands on a separate and independent footing from another part of the same contract which cannot or ought not to be specifically performed, the Court may direct specific performance of the former part.

17. Bar in other cases of specific performance of part of contract. The Court shall not direct the specific performance of a part of a contract except in cases coming under one or other of the three last preceding sections.

18. Purchaser's rights against vendor with imperfect title. Where a person contracts to sell or let certain property, having only an imperfect title thereto, the purchaser or lessee (except as otherwise provided by this Chapter) has the following rights:—

(a) if the vendor or lessor has subsequently to the sale or lease acquired any interest in the property, the purchaser or lessee may compel him to make good the contract out of such interest;

(b) where the concurrence of other persons is necessary to validate the title, and they are bound to convey at the vendor's or lessor's request, the purchaser or lessee may compel him to procure such concurrence;

(c) where the vendor professes to sell unincumbered property, but the property is mortgaged for an amount not exceeding the purchase-money, and the vendor has in fact only a right to redeem it, the purchaser may compel him to redeem the mortgage and to obtain a conveyance from the mortgagee;

(d) where the vendor or lessor sues for specific performance of the contract, and the suit is dismissed on the ground of his imperfect title, the defendant has a right to a return of his deposit (if any) with interest thereon, to his costs of the suit, and to a lien for such deposit, interest and costs on the interest of the vendor or lessor in the property agreed to be sold or let.

19. Power to award compensation in certain cases. Any person suing for the specific performance of a contract may also ask for compensation for its breach, either in addition to, or in substitution for, such performance.

If in any such suit the Court decides that specific performance ought not to be granted, but that there is a contract between the parties which has been broken by the defendant and that the plaintiff is entitled to compensation for that breach, it shall award him compensation accordingly.

If in any such suit the Court decides that specific performance ought to be granted, but that it is not sufficient to satisfy the justice of the case, and that some compensation for breach of the contract should also be made to the plaintiff, it shall award him such compensation accordingly.

Compensation awarded under this section may be assessed in such manner as the Court may direct.

Explanation.— The circumstance that the contract has become incapable of specific performance does not preclude the Court from exercising the jurisdiction conferred by this section.

Illustrations

of the second paragraph—

A contracts to sell a hundred maunds of rice to B. B brings a suit to compel A to perform the contract or to pay compensation. The Court is of opinion that A has made a valid contract and has broken it, without excuse, to the injury of B, but that specific performance is not the proper remedy. It shall award to B such compensation as it deems just.

of the third paragraph—

A contracts with B to sell him a house for Rs. 1,000, the price to be paid and the possession given on the 1st January 1877. A fails to perform his part of the contract, and B brings his suit for specific performance and compensation, which is decided in his favour on the 1st January, 1878. The decree may, besides ordering specific performance, award to B compensation for any loss which he has sustained by A's refusal.

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of the Explanation—

A, a purchaser, sues B, his vendor, for specific performance of a contract for the sale of a patent. Before the hearing of the suit the patent expires. The Court may award A compensation for the non- performance of the contract, and may, if necessary, amend the plaint for that purpose.

A sues for the specific performance of a resolution passed by the Directors of a public company, under which he was entitled to have a certain number of shares allotted to him, and for compensation for the non-performance of the resolution. All the shares had been allotted before the institution of the suit. The Court may, under this section, award A compensation for the non-performance.

20. Liquidation of damages not a bar to specific performance. A contract, otherwise proper to be specifically enforced, may be thus enforced, though a sum be named in it as the amount to be paid in case of its breach, and the party in default is willing to pay the same.

Illustration

A contracts to grant B an under-lease of property held by A under C, and that he will apply to C for a license necessary to the validity of the under-lease, and that, if the license is not procured, A will pay B Rs. 10,000. A refuses to apply for the license and offers to pay B the Rs. 10,000. B is nevertheless entitled to have the contract specifically enforced if C consents to give the license.

(b) Contracts which cannot be specifically enforced

21. Contracts not specifically enforceable. The following contracts cannot be specifically enforced:—

(a) a contract for the non-performance of which compensation in money is an adequate relief;

(b) a contract which runs into such minute or numerous details, or which is so dependent on the personal qualifications or volition of the parties, or otherwise from its nature is such, that the Court cannot enforce specific performance of its material terms;

(c) a contract the terms of which the Court cannot find with reasonable certainty;

(d) a contract which is in its nature revocable;

(e) a contract made by trustees either in excess of their powers or in breach of their trust;

(f) a contract made by or on behalf of a corporation or public company created for special purposes, or by the promoters of such company, which is in excess of its powers;

(g) a contract the performance of which involves the performance of a continuous duty extending over a longer period than three years from its date;

(h) a contract of which a material part of the subject-matter, supposed by both parties to exist, has, before it has been made, ceased to exist.

And, save as provided by the [1][Arbitration Act, 1940 (X of 1940)], no contract to refer [2][present or future differences] to arbitration shall be specifically enforced; [3]but if any person who has made such a contract [4][other than an arbitration agreement to which the provisions of the said Act apply] and has refused to perform it sues in respect of any subject which he has contracted to refer, the existence of such contract shall bar the suit.

[1]Subs. by the Arbitration Act,1940 (10 of 1940), s. 49 and IV Sch., (w.e.f. 1st July, 1940) for "Code of Civil Procedure, [and the Indian Arbitration Act, 1899,]". The words in brackets had been ins. by the Indian Arbitration Act, 1899 (9 of 1899), s. 21 (w.e.f. 1st July, 1899).
[2]Subs. by Act, 9 of 1899, s. 21 for "a controversy".
[3]The last thirty-seven words of s. 21, do not apply to any submission or arbitration to which the provisions of the Indian Arbitration Act, 1899 (9 of 1899), for the time being apply (*see* s. 3 of that Act), or to any agreement to refer to arbitration or to any award to which Sch. II of the Code of Civil Procedure, 1908, applies, *see* para. 22 of that Schedule.
[4]Ins. by Act 10 of 1940, s. 49 and IV Sch.

Illustrations

to (a)—

A contracts to sell, and B contracts to buy, a lakh of rupees in the four per cent. loan of the [1][Federal Government].

A contracts to sell, and B contracts to buy, 40 chests of indigo at Rs. 1,000 per chest:

In consideration of certain property having been transferred by A to B, B contracts to open a credit in A's favour to the extent of Rs. 10,000, and to honour A's drafts to that amount;

The above contracts cannot be specifically enforced, for in the first and second both A and B, and in the third A, would be reimbursed by compensation in money.

to (b)—

A contracts to render personal service to B:

A contracts to employ B on personal service:

A, an author, contracts with B, a publisher, to complete a litrary work:

B cannot enforce specific performance of these contracts.

A contracts to buy B's business at the amount of a valuation to be made by two valuers, one to be named by A and the other by B. A and B each name a valuer, but before the valuation is made, A instructs his valuer not to proceed:

By a charter-party entered into in [2][Chittagong] between A, the owner of a ship, and B, the charterer, it is agreed that the ship shall proceed to [3][Karachi] and there load a cargo of rice, and thence proceed to London, freight to be paid, one-third on arrival at [3][Karachi], and two-thirds on delivery of the cargo in London:

A lets land to B and B contracts to cultivate it in a particular manner for three years next after the date of the lease:

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A and B contract that, in consideration of annual advances to be made by A, B will for three years next after the date of the contract grow particular crops on the land in his possession and deliver them to A when cut and ready for delivery:

A contracts with B that, in consideration of Rs.1,000 to be paid to him by B, he will paint a picture for B :

A contracts with B to execute certain works which the Court cannot superintend: A contracts to supply B with all the goods of a certain class which B may require:

A contracts with B to take from B a lease of a certain house for a specified term, at a specified rent, "if the drawing-room is handsomely decorated," even if it is held to have so much certainty that compensation can be recovered for its breach:

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[1]Subs. by F.A.O., 1975, Art. 2, for "Central Government" (*w.e.f* . 28th July, 1975) which had been subs. by A. O.,1937, for "G. of I.".
[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., for "Calcutta" (*w.e.f.* 14th October, 1955).
[3]Subs. *ibid*., for "Rangoon" (w.e.f. 14th October, 1955).

A contracts to marry B :

The above contracts cannot be specifically enforced.

To (c)—

A, the owner of a refreshment-room, contracts, with B to give him accommodation there for the sale of his goods and to furnish him with the necessary appliances. A refuses, to perform his contract. The case is one for compensation and not for specific performance, the amount and the nature of the accommodation and appliances being undefined.

To (d)—

A and B contract to become partners in a certain business, the contract not specifying the duration of the proposed partnership. This contract cannot be specifically performed, for, if it were so performed, either A or B might at once dissolve the partnership.

to (e)—

A is a trustee of land with power to lease it for seven years. He enters into a contract with B to grant a lease of the land for seven years, with a covenant to renew the lease at the expiry of the term. This contract cannot be specifically enforced.

The Directors of a company have power to sell the concern with the sanction of a general meeting of the shareholders. They contract to sell it without any such sanction. This contract cannot be specifically enforced.

Two trustees, A and B, empowered to sell trust-property worth a lakh of rupees, contract to sell it to C for Rs. 30,000. The contract is so disadvantageous as to be a breach of trust. C cannot enforce its specific performance.

The promoters of a company for working mines contract that the company, when formed, shall purchase certain mineral property. They take no proper precautions to ascertain the value of such property— and in fact agree to pay an extravagant price therefor. They also stipulate that the vendors shall give them a bonus out of the purchase-money. This contract cannot be specifically enforced.

to (f)—

A company existing for the sole purpose of making and working a railway contract for the purchase of a piece of land for the purpose of erecting a cottonmill thereon. This contract cannot be specifically enforced.

to (g)—

A contracts to let for twenty-one years to B the right to use such part of a certain railway made by A as was upon B's land, and that B should have a right of running carriages over the whole line on certain terms, and might require A to supply the necessary engine-power, and that A should during the term keep the whole railway in good repair. Specific performance of this contract must be refused to B.

to (h)—

A contracts to pay an annuity to B for the lives of C and D. It turns out that, at the date of the contract, C, though supposed by A and B to be alive, was dead. The contract cannot be specifically performed.

(c) Of the Discretion of the Court

22. Discretion as to decreeing specific performance. The jurisdiction to decree specific performance is discretionary, and the Court is not bound to grant such relief merely because it is lawful to do so; but the discretion of the Court is not arbitrary but sound and reasonable, guided by judicial principles and capable of correction by a Court of appeal.

The following are cases in which the Court may properly exercise a discretion not to decree specific performance:—

I. Where the circumstances under which the contract is made are such as to give the plaintiff an unfair advantage over the defendant, though there may be no fraud or misrepresentation on the plaintiff's part.

Illustrations

(a) A, a tenant for life of certain property, assigns his interest therein to B. C contracts to buy, and B contracts to sell, that interest. Before the contract is completed, A receives a mortal injury from the effects of which he dies the day after the contract is executed. If B and C were equally ignorant or equally aware of the fact, B is entitled to specific performance of the contract. If B knew the fact, and C did not, specific performance of the contract should be refused to B.

(b) A contracts to sell to B the interest of C in certain stock-in-trade. It is stipulated that the sale shall stand good, even though it should turn out that C's interest is worth nothing. In fact, the value of C's interest depends on the result of certain partnership-accounts, on which he is heavily in debt to his partners. This indebtedness is known to A, but not to B. Specific performance of the contract should be refused to A.

(c) A contracts to sell, and B contracts to buy, certain land. To protect the land from floods, it is necessary for its owner to maintain an expensive embankment. B does not know of this circumstance, and A conceals it from him. Specific performance of the contract should be refused to A.

(d) A's property is put up to auction. B requests C, A's attorney, to bid for him. C does this inadvertently and in good faith. The persons present, seeing the vendor's attorney bidding, think that he is a mere puffer and cease to compete. The lot is knocked down to B at a low price. Specific performance of the contract should be refused to B.

II. Where the performance of the contract would involve some hardship on the defendant which he did not foresee, whereas its non-performance would involve no such hardship on the plaintiff.

Illustrations

[1]* * * * * * *

(f) A and B, trustees, join their beneficiary, C, in a contract to sell the trust-estate to D, and personally agree to exonerate the estate from heavy encumbrances to which it is subject. The purchase-money is not nearly enough to discharge those encumbrances, though, at the date of the contract, the vendors believed it to be sufficient. Specific performance of the contract should be refused to D.

(g) A, the owner of an estate, contracts to sell it to B, and stipulates that he, A, shall not be obliged to define its boundary. The estate really comprises a valuable property, not known to either to be part of it. Specific performance of the contract should be refused to B unless he waives his claim to the unknown property.

(h) A contracts with B to sell him certain land, and to make a road to it from a certain railway-station. It is found afterwards that A cannot make the road without exposing himself to litigation. Specific performance of the part of the contract relating to the road should be refused to B, even though it may be held that he is entitled to specific performance of the rest with compensation for loss of the road.

(i) A, a lessee of mines, contracts with B, his lessor, that at any time during the continuance of the lease B may give notice of his desire to take the machinery and plant used in and about the mines, and that he shall have the articles specified in his notice delivered to him at a valuation on the expiry of the lease. Such a contract might be most injurious to the lessee's business, and specific performance of it should be refused to B.

(j) A contracts to buy certain land from B. The contract is silent as to access to the land. No right of way to it can be shown to exist. Specific performance of the contract should be refused to B.

(k) A contracts with B to buy from B's manufactory and not elsewhere all the goods of a certain class used by A in his trade. The Court cannot compel B to supply the goods, but if he does not supply them, A may be ruined unless he is allowed to buy them elsewhere. Specific performance of the contract should be refused to B.

The following is a case in which the Court may properly exercise a discretion to decree specific performance:

III. Where the plaintiff has done substantial acts or suffered losses in consequence of a contract capable of specific performance.

[1]Omitted by Ord. XXII of 1983, s.3.

Illustration

A sells land to a railway-company, who contract to execute certain works for his convenience. The company take the land and use it for their railway. Specific performance of the contract to execute the works should be decreed in favour of A.

(d) For whom Contracts may be specifically enforced

23. Who may obtain specific performance. Except as otherwise provided by this Chapter, the specific performance of a contract may be obtained by—

(a) any party thereto;

(b) the representative in interest, or the principal, of any party thereto: provided that, where the learning, skill, solvency or any personal quality of such party is a material ingredient in the contract, or where the contract provides that his interest shall not be assigned, his representative in interest or his principal shall not be entitled to specific performance of the contract, unless where his part thereof has already been performed;

(c) where the contract is a settlement on marriage, or a compromise of doubtful rights between members of the same family, any person beneficially entitled there under;

(d) where the contract has been entered into by a tenant for life in due exercise of a power, the remainder man;

(e) a reversioner in possession, where the agreement is a covenant entered into with his predecessor in title and the reversioner is entitled to the benefit of such covenant;

(f) a reversioner in remainder, where the agreement is such a covenant, and the reversioner is entitled to the benefit thereof and will sustain material injury by reason of its breach;

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(g) when a public company has entered into a contract and subsequently becomes amalgamated with another public company, the new company which arises out of the amalgamation;

(h) when the promoters of a public company have, before its incorporation, entered into a contract for the purposes of the company, and such contract is warranted by the terms of the incorporation, the company.

(e) For whom Contracts cannot be specifically enforced.

24. Personal bars to the relief. Specific performance of a contract cannot be enforced in favour of a person—

(a) who could not recover compensation for its breach;

(b) who has become incapable of performing, or violates, any essential term of the contract that on his part remains to be performed;

(c) who has already chosen his remedy and obtained satisfaction for the alleged breach of contract; or

(d) who, previously to the contract, had notice that a settlement of the subject-matter thereof (though not founded on any valuable consideration) had been made and was then in force.

Illustrations

to clause *(a)*—

A, in the character of agent for B, enters into an agreement with C to buy C's house. A is in reality acting, not as agent for B, but on his own account. A cannot enforce specific performance of this contract.

to clause *(b)*

A contracts to sell B a house and to become tenant thereof for a term of fourteen years from the date of the sale at a specified yearly rent. A becomes insolvent. Neither he nor his assignee can enforce specific performance of the contract.

A contracts to sell B a house and garden in which there are ornamental trees, a material element in the value of the property as a residence. A, without B's consent, fells the trees. A cannot enforce specific performance of the contract.

A, holding land under a contract with B for a lease, commits waste, or treats the land in an unhusband like manner. A cannot enforce specific performance of the contract.

A contracts to let, and B contracts to take, an unfinished house, B contracting to finish the house and the lease to contain covenants on the part of A to keep the house in repair. B finishes the house in a very defective manner: he cannot enforce the contract specifically, though A and B may sue each other for compensation for breach of it.

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to clause *(c)*

A contracts to let, and B contracts to take, a house for a specified term at a specified rent. B refuses to perform the contract. A thereupon sues for, and obtains, compensation for the breach. A cannot obtain specific performance of the contract.

25. Contracts to sell property by one who has no title or who is a voluntary settler. A contract for the sale or letting of property, whether moveable or immoveable, cannot be specifically enforced in favour of a vendor or lessor–

(a) who, knowing himself not to have any title to the property, has contracted to sell or let the same;

(b) who, though he entered into the contract believing that he had a good title to the property, cannot, at the time fixed by the parties or by the Court for the completion of the sale or letting, give the purchaser or lessee a title free from

reasonable doubt;

(c) who, previous to entering into the contract, has made settlement (though not founded on any valuable consideration) of the subject-matter of the contract.

Illustrations

(a) A, without C's authority, contracts to sell to B an estate which A knows to belong to C. A cannot enforce specific performance of this contract, even though C is willing to confirm.

(b) A bequeaths his land to trustees declaring that they may sell it with the consent in writing of B. B gives a general prospective assent in writing to any sale which the trustees may make. The trustees then enter into a contract with C to sell him the land. C refuses to carry out the contract. The trustees cannot specifically enforce this contract, as in the absence of B's consent to the particular sale to C, the title which they can give C is, as the law stands, not free from reasonable doubt.

(c) A, being in possession of certain land, contracts to sell it to Z. On inquiry it turns out that A claims the land as heir of B, who left the country several years before, and is generally believed to be dead, but of whose death there is no sufficient proof. A cannot compel Z specifically to perform the contract.

(d) A, out of natural love and affection, makes a settlement of certain property on his brothers and their issue, and afterwards enters into a contract to sell the property to a stranger. A cannot enforce specific performance of this contract so as to override the settlement, and thus prejudice the interests of the persons claiming under it.

(f) For whom Contracts cannot be specifically enforced, except with a Variation

26. Non enforcement except with variation. Where a plaintiff seeks specific performance of a contract in writing, to which the defendant sets up a variation, the plaintiff cannot obtain the performance sought, except with the variation so set up, in the following cases (namely):—

(a) where by fraud or mistake of fact the contract of which performance is sought is in terms different from that which the defendant supposed it to be when he entered into it ;

(b) where by fraud, mistake of fact, or surprise the defendant entered into the contract under a reasonable misapprehension as to its effect as between himself and the plaintiff ;

(c) where the defendant, knowing the terms of the contract and understanding its effect, has entered into it relying upon some misrepresentation by the plaintiff, or upon some stipulation on the plaintiff's part, which adds to the contract, but which he refuses to fulfill ;

(d) where the object of the parties was to produce a certain legal result, which the contract as framed is not calculated to produce;

(e) where the parties have, subsequently to the execution of the contract, contracted to vary it.

Illustrations

(a) A, B and C sign a writing by which they purport to contract each to enter into a bond to D for Rs. 1,000. In a suit by D, to make A, B and C separately liable each to the extent of Rs. 1,000, they prove that the word "each" was inserted by mistake; that the intention was that they should give a joint bond for Rs. 1,000. D can obtain the performance sought only with the variation thus set up.

(b) A sues B to compel specific performance of a contract in writing to buy a dwelling-house. B proves that he assumed that the contract included an adjoining yard, and the contract was so framed as to leave it doubtful whether the yard was so included or not. The Court will refuse to enforce the contract, except with the variation set up by B.

(c) A contracts in writing to let to B a wharf, together with a strip of A's land delineated in a map. Before signing the contract, B proposed orally that he should be at liberty to substitute for the strip mentioned in the contract another strip of A's land of the same dimensions, and to this A expressly assented. B then signed the written contract. A cannot obtain specific performance of the written contract, except with the variation set up by B.

(d) A and B enter into negotiations for the purpose of securing land for B for his life, with remainder to his issue. They execute a contract, the terms of which are found to confer an absolute ownership on B. The contract so framed cannot be specifically enforced.

(e) A contracts in writing to let a house to B, for a certain term, at the rent of Rs. 100 per month, putting it first into tenantable repair. The house turns out to be not worth repairing, so, with B's consent, A pulls it down and erects a new house in its place: B contracting orally to pay rent at Rs. 120 per mensum. B then sues to enforce specific performance of the contract in writing. He cannot enforce it except with the variations made by the subsequent oral contract.

(g) Against whom contracts may be specifically enforced.

27. Relief against parties and persons claiming under them by subsequent title. Except as otherwise provided by this Chapter, specific performance of a contract may be enforced against—

(a) either party thereto;

(b) any other person claiming under him by a title arising subsequently to the contract, except a transferee for value who has paid his money in good faith and without notice of the original contract;

(c) any person claiming under a title which, though prior to the contract and known to the plaintiff, might have been displaced by the defendant;

(d) when a public company has entered into a contract and subsequently becomes

amalgamated with another public company, the new company which arises out of the amalgamation;

(e) when the promoters of a public company have, before its incorporation, entered into a contract, the company: provided that the company has ratified and adopted the contract and the contract is warranted by the terms of the incorporation.

Illustrations

to clause *(b)*—

A contracts to convey certain land to B by a particular day, A dies intestate before that day without having conveyed the land. B may compel A's heir or other representative in interest to perform the contract specifically.

A contracts to sell certain land to B for Rs. 5,000. A afterwards conveys the land for Rs. 6,000 to C, who has notice of the original contract. B may enforce specific performance of the contract as against C.

A contracts to sell land to B for Rs. 5,000. B takes possession of the land. Afterwards A sells it to C for Rs. 6,000. C makes no inquiry of B relating to his interest in the land. B's possession is sufficient to affect C with notice of his interest, and he may enforce specific performance of the contract against C.

A contracts, in consideration of Rs. 1,000, to bequeath certain of his lands to B. Immediately after the contract A dies intestate, and C takes out administration to his estate. B may enforce specific performance of the contract against C.

A contracts to sell certain land to B. Before the completion of the contract, A becomes a lunatic and C is appointed his committee. B may specifically enforce the contract against C.

to clause *(c)*—

A, the tenant for life of an estate, with remainder to B, in due exercise of a power conferred by the settlement under which he is tenant for life, contracts to sell the estate to C, who has notice of the settlement. Before the sale is completed, A dies. C may enforce specific performance of the contract against B.

A and B are joint tenants of land, his undivided moiety of which either may alien in his lifetime, but which, subject to that right, devolves on the survivor. A contracts to sell his moiety to C and dies. C may enforce specific performance of the contract against B.

[1]**[27A. Specific performance in case of part performance of contract to lease.** Subject to the provisions of this Chapter, where a contract to lease immoveable property is made in writing signed by the parties thereto or on their behalf, either party may, notwithstanding that the contract, though required to be registered, has not been registered, sue the other for specific performance of the contract if,—

[1]S. 27A ins. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (21 of 1929), s. 3 (*w.e.f.* 1st April, 1930).

(a) where specific performance is claimed by the lessor, he has delivered possession of the property to the lessee in part performance of the contract; and

(b) where specific performance is claimed by the lessee, he has, in part performance of the contract, taken possession of the property, or, being already in possession, continues in possession in part performance of the contract, and has done some act in furtherance of the contract:

Provided that nothing in this section shall affect the rights of a transferee for consideration who has no notice of the contract or of the part performance thereof.

This section applies to contracts to lease executed after the first day of April, 1930.]

(h) Against whom Contracts cannot be specifically enforced

28. What parties cannot be compelled to perform. Specific performance of a contract cannot be enforced against a party thereto in any of the following cases:—

(a) if the consideration to be received by him is so grossly inadequate, with reference to the state of things existing at the date of the contract, as to be either by itself or coupled with other circumstances evidence of fraud or of undue advantage taken by the plaintiff ;

(b) if his assent was obtained by the misrepresentation (whether willful or innocent), concealment, circumvention or unfair practices, of any party to whom performance would become due under the contract, or by any promise of such party which has not been substantially fulfilled;

(c) if his assent was given under the influence of mistake of fact, misapprehension or surprise: Provided that, when the contract provides for compensation in case of mistake, compensation may be made for a mistake within the scope of such provision, and the contract may be specifically enforced in other respects if proper to be so enforced.

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Illustrations

to clause *(c)*—

A, one of two executors, in the erroneous belief that he had the authority of his co-executor, enters into an agreement for the sale to B of his testator's property. B cannot insist on the sale being completed.

A directs an auctioneer to sell certain land. A afterwards revokes the auctioneer's authority as to 20 bighas of this land, but the auctioneer inadvertently sells the whole to B, who has not notice of the revocation. B cannot enforce specific performance of the agreement.

(i) The effect of dismissing a Suit for Specific Performance

29. Bar of suit for breach after dismissal. The dismissal of a suit for specific performance of a contract or part thereof shall bar the plaintiff's right to sue for compensation for the breach of such contract or part, as the case may be.

(j) Awards and Directions to execute Settlements

30. Application of preceding sections to awards and testamentary directions to execute settlements. The provisions of this Chapter as to contracts shall, *mutatis mutandis*, apply to awards and to directions in a will or codicil to execute a particular settlement.

CHAPTER III

OF THE RECTIFICATION OF INSTRUMENT

31. When instrument may be rectified. When, through fraud or a mutual mistake of the parties, a contract or other instrument in writing does not truly express their intention, either party, or his representative in interest, may institute a suit to have the instrument rectified; and if the Court find it clearly proved that there has been fraud or mistake in framing the instrument, and ascertain the real intention of the parties in executing the same, the Court may in its discretion rectify the instrument so as to express that intention, so far as this can be done without prejudice to rights acquired by third persons in good faith and for value.

Illustrations

(a) A, intending to sell to B his house and one of three godowns adjacent to it, executes a conveyance prepared by B, in which, through B's fraud, all three godowns are included. Of the two godowns which were fraudulently included, B gives one to C and lets the other to D for a rent, neither C nor D having any knowledge of the fraud. The conveyance may, as against B and C, be rectified so as to exclude from it the godown given to C; but it cannot be rectified so as to affect D's lease.

(b) By a marriage settlement, A, the father of B, the intended wife, covenants with C, the intended husband, to pay to C, his executors, administrators and assigns, during A's life, an annuity of Rs. 5,000. C dies insolvent and the official assignee claims the annuity from A. The Court, on finding it clearly proved that the parties always intended that this annuity should be paid as a provision for B and her children, may rectify the settlement and decree that the assignee has no right to any Part of the annuity.

32. Presumption as to intent of parties. For the purpose of rectifying a contract in writing, the Court must be satisfied that all the parties thereto intended to make an equitable and conscientious agreement.

33. Principles of rectification. In rectifying a written instrument, the Court may inquire what the instrument was intended to mean, and what were intended to be its legal consequences, and is not confined to the inquiry what the language of the instrument was intended to be.

34. Specific enforcement of rectified contract. A contract in writing may be first rectified and then, if the plaintiff has so prayed in his plaint and the Court thinks fit, specifically enforced.

Illustration

A contracts in writing to pay his attorney, B, a fixed sum in lieu of costs. The contract contains mistakes as to the name and rights of the client, which, if construed strictly, would exclude B from all rights under it. B is entitled, if the Court thinks fit, to have it rectified, and to an order for payment of the sum, as if at the time of its execution it had expressed the intention of the parties.

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CHAPTER IV

OF THE RESCISSION OF CONTRACTS

35. When rescission may be adjudged. Any person interested in a contract in writing [1]may sue to have it rescinded, and such rescission may be adjudged by the Court in any of the following cases, namely:—

(a) where the contract is voidable or terminable by the plaintiff ;

(b) where the contract is unlawful for causes not apparent on its face, and the defendant is more to blame than the plaintiff ;

(c) where a decree for specific performance of a contract of sale, or of a contract to take a lease, has been made, and the purchaser or lessee makes default in payment of the purchase-money or other sums which the Court has ordered him to pay.

When the purchaser or lessee is in possession of the subject-matter, and the Court finds that such possession is wrongful, the Court may also order him to pay to the vendor or lessor the rents and profits, if any, received by him as such possessor.

In the same case, the Court may, by order in the suit in which the decree has been made and not complied with, rescind the contract, either so far as regards the party in default, or altogether as the justice of the case may require.

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Illustrations

to *(a)*—

A sells a field to B. There is a right of way over the field of which A has direct personal knowledge, but which he conceals from B. B is entitled to have the contract rescinded.

to *(b)*—

A, an attorney, induces his client B, a Hindu widow, to transfer property to him, for the purpose of defrauding B's creditors. Here the parties are not equally in fault, and B is entitled to have the instrument of transfer rescinded.

[1]The words "in writing" are rep. wherever the Transfer of Property Act, 1882 (4 of 1882), is in force, *see* ss. 1 and 2 of that Act.

36. Rescission for mistake. Rescission of a contract in writing[1] cannot be adjudged for mere mistake, unless the party against whom it is adjudged can be restored to substantially the same position as if the contract had not been made.

37. Alternative prayer for rescission in suit for specific performance. A plaintiff instituting a suit for the specific performance of a contract in writing may pray in the alternative that, if the contract cannot be specifically enforced, it may be rescinded and delivered up to be cancelled; and the Court, if it refuses to enforce the contract specifically, may direct it to be rescinded and delivered up accordingly.

38. Court may require party rescinding to do equity. On adjudging the rescission of a contract, the Court may require the party to whom such relief is granted to make any compensation to the other which justice may require.

CHAPTER V

OF THE CANCELLATION OF INSTRUMENTS

39. When cancellation may be ordered. Any person against whom a written instrument is void or voidable, who has reasonable apprehension that such instrument, if left outstanding, may cause him serious injury, may sue to have it adjudged void or voidable; and the Court may, in its discretion, so adjudge it and order it to be delivered up and cancelled.

If the instrument has been registered under the Indian Registration Act[2], the Court shall also send a copy of its decree to the officer in whose office the instrument has been so registered; and such officer shall note on the copy of the instrument contained in his books the fact of its cancellation.

Illustrations

(a) A, the owner of a ship by fraudulently representing her to be seaworthy, induces B, an underwriter, to insure her. B may obtain the cancellation of the policy.

(b) A conveys land to B, who bequeaths it to C and dies. Thereupon D gets possession of the land and produces a forged instrument stating that the conveyance was made to B in trust for him. C may obtain the cancellation of the forged instrument.

(c) A, representing that the tenants on his land were all at will, sells it to B, and conveys it to him by an instrument, dated the 1st January 1877. Soon after that day, A fraudulently grants to C a lease of part of the lands, dated the 1st October, 1876, and procures the lease to be registered under the Indian Registration Act.[3] B may obtain the cancellation of this lease.

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[1]The words "in writing" are rep. wherever the Transfer of Property Act, 1882 (4 of 1882), is in force, *see* ss. 1 and 2 of that Act.
[2]*See* now the Registration Act, 1908 (16 of 1908).
[3]*See* now the Registration Act, 1908 (16 of 1908).

(d) A agrees to sell and deliver a ship to B, to be paid for by B's acceptances of four bills of exchange, for sums amounting to Rs, 30,000 to be drawn by A on B. The bills are drawn and accepted, but the ship is not delivered according to the agreement. A sues B on one of the bills, B may obtain the cancellation of all the bills.

40. What instruments may be partially cancelled. Where an instrument is evidence of different rights or different obligations, the Court may, in a proper case, cancel it in part and allow it to stand for the residue.

Illustration

A draws a bill on B, who endorses it to C, by whom it appears to be endorsed to D, who endorses it to E. C's endorsement is forged. C is entitled to have such endorsement cancelled, leaving the bill to stand in other respects.

41. Power to require party for whom instrument is cancelled to make compensation. On adjudging the cancellation of an instrument, the Court may require the party to whom such relief is granted to make any compensation to the other which justice may require.

CHAPTER VI

OF DECLARATORY DECREES

[1]**[42. Discretion of Court as to declaration of status or right**.— (1) Any person entitled to any character, or any right to any property, may institute a suit against any person denying, or interested to deny, his title to such character or right, and the Court may in its discretion make therein a declaration that he is so entitled and the plaintiff need not in such suit ask for any further relief:

Provided that no Court shall make any such declaration where the plaintiff, being able to seek further relief than a mere declaration of title, omits to do so.

(2) Notwithstanding anything contained in any other law for the time being in force, a suit filed under sub-section (1) shall be decided by the Court within six months and the appellate court shall decide the appeal not later than ninety days, as the case may be.]

43. Effect of declaration. A declaration made under this Chapter is binding only on the parties to the suit, persons claiming through them respectively, and, where any of the parties are trustees, on the persons for whom, if in existence at the date of the declaration, such parties would be trustees.

Illustration

A, a Hindu, in a suit to which B, his alleged wife, and her mother, are defendants, seeks a declaration that his marriage was duly solemnized and an order for the restitution of his conjugal rights. The Court makes the declaration and order. C, claiming that B is his wife, then sues A for the recovery of B. The declaration made in the former suit is not binding upon C.

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[1]Subs., by Act XXXIII of 2023, s.2.

CHAPTER VII

OF THE APPOINTMENT OF RECEIVERS

44. Appointment of receivers discretionary. The appointment of a receiver pending a suit is a matter resting in the discretion of the Court.

Reference to Code of Civil Procedure. The mode and effect of his appointment, and his rights, powers duties and liabilities, are regulated by the Code of Civil Procedure[1].

CHAPTER VIII. — [Of the Enforcement of Public Duties.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and IInd Sch.

PART III

Of Preventive Relief

CHAPTER IX

OF INJUNCTIONS GENERALLY

52. Preventive relief how granted. Preventive relief is granted at the discretion of the Court by injunction, temporary or perpetual.

53. Temporary injunctions. Temporary injunctions are such as are to continue until a specified time, or until the further order of the Court. They may be granted at any period of a suit, and are regulated by the [2][Code of Civil Procedure, 1908 (Act V of 1908).]

Perpetual Injunctions. A perpetual injunction can only be granted by the decree made at the hearing and upon the merits of the suit: the defendant is thereby perpetually enjoined from the assertion of a right, or from the commission of an act, which would be contrary to the rights of the plaintiff.

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CHAPTER X

OF PERPETUAL INJUNCTIONS

54. Perpetual injunctions when granted. Subject to the other provisions contained in, or referred to by, this Chapter, a perpetual injunction may be granted to prevent the breach of an obligation existing in favour of the applicant, whether expressly or by implication.

When such obligation arises from contract, the Court shall be guided by the rules and provisions contained in Chapter II of this Act.

When the defendant invades or threatens to invade the plaintiff's right to, or enjoyment of, property, the Court may grant a perpetual injunction in the following cases (namely):—

(a) where the defendant is trustee of the property for the plaintiff ;

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[1]*See* now the Code of Civil Procedure, 1908 (Act 5 of 1908).

[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "Code of Civil Procedure".

(b) where there exists no standard for ascertaining the actual damage caused, or likely to be caused, by the invasion;

(c) where the invasion is such that pecuniary compensation would not afford adequate relief;

(d) where it is probable that pecuniary compensation can not be got for the invasion;

(e) where the injunction is necessary to prevent a multiplicity of judicial proceedings.

Explanation.— For the purpose of this section a trademark is property .

Illustrations

(a) A lets certain lands to B and B contracts not to dig sand or gravel thereout. A may sue for an injunction to restrain B from digging in violation of his contract.

(b) A trustee threatens a breach of trust. His co-trustees, if any, should, and the beneficial owners may, sue for an injunction to prevent the breach.

(c) The directors of a public company are about to pay a dividend [1]out of capital or borrowed money. Any of the shareholders may sue for an injunction to restrain them.

(d) The directors of a fire and life-insurance company are about to engage in marine insurances. Any of the shareholders may sue for an injunction to restrain them.

(e) A, an executor, through misconduct or insolvency, is bringing the property of the deceased into danger. The Court may grant an injunction to restrain him from getting in the assets.

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(f) A, a trustee for B, is about to make an imprudent sale of a small part of the trust-property. B may sue for an injunction to restrain the sale, even though compensation in money would have afforded him adequate relief.

(g) A makes a settlement (not founded on marriage or other valuable consideration) of an estate on B and his children. A then contracts to sell the estate to C. B or any of his children may sue for an injunction to restrain the sale.

(h) In the course of A's employment as a vakil, certain papers belonging to his client, B, come into his possession. A threatens to make these papers public, or to communicate their contents to a stranger. B may sue for an injunction to restrain A from so doing.

[1]A Railway Company may, however, pay interest on its paid-up share capital out of capital, for a certain period and subject to certain restrictions and conditions: see the Indian Railway Companies Act, 1895 (10 of 1895), s.3.

(i) A is B's medical adviser. He demands money of B which B declines to pay. A then threatens to make known the effect of B's communications to him as a patient. This is contrary to A's duty, and B may sue for an injunction to restrain him from so doing.

(j) A, the owner of two adjoining houses, lets one to B and afterwards lets the other to C. A and C begin to make such alterations in the house let to C as will prevent the comfortable enjoyment of the house let to B. B may sue for an injunction to restrain them from so doing.

(k) A lets certain arable lands to B for purposes of husbandry, but without any express contract as to the mode of cultivation. Contrary to the mode of cultivation customary in the district, B threatens to sow the lands with seed injurious thereto and requiring many years to eradicate. A may sue for an injunction to restrain B from sowing the lands in contravention of his implied contract to use them in a husband like manner.

(l) A, B and C are partners, the partnership being determinable at will. A threatens to do an act tending to the destruction of the partnership-property. B and C may, without seeking a dissolution of the partnership, sue for an injunction to restrain A from doing the act.

(m) A, a Hindu widow in possession of her deceased husband's property, commits destruction of the property without any cause sufficient to justify her in so doing. The heir-expectant may sue for an injunction to restrain her.

(n) A, B and C are members of an undivided Hindu family. A cuts timber growing on the family-property, and threatens to destroy part of the family-house and to sell some of the family-utensils. B and C may sue for an injunction to restrain him.

(o) A, the owner of certain houses in [1][Karachi], becomes insolvent B buys them from the Official Assignee and enters into possession. A persists in trespassing on and damaging the houses, and B is thereby compelled, at considerable expense, to employ men to protect the possession. B may sue for an injunction to restrain further acts of trespass.

(p) The inhabitants of a village claim a right of way over A's land. In a suit against several of them, A obtains a declaratory decree that his land is subject to no such right. Afterwards each of the other villagers sues A for obstructing his alleged right of way over the land. A may sue for an injunction to restrain them.

(q) A, in an administration-suit to which a creditor, B, is not a party, obtains a decree for the administration of C's assets. B proceeds against C's estate for his debt. A may sue for an injunction to restrain B.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "Chittagong" which was subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., for "Calcutta" (w.e.f. 14th October, 1955).

(r) A and B are in possession of contiguous lands and of the mines underneath them[1]. A works his mine so as to extend under B's mine and threatens to remove certain pillars which help to support B's mine. B may sue for an injunction to restrain him from so doing.

(s) A rings bells or makes some other unnecessary noise so near a house as to interfere materially and unreasonably with the physical comfort of the occupier, B . B may sue for an injunction restraining A from making the noise.

(t) A pollutes the air with smoke so as to interfere materially with the physical comfort of B and C, who carry on business in a neighbouring house. B and C may sue for an injunction to restrain the pollution.

(u) A infringes B's patent. If the Court is satisfied that the patent is valid and has been infringed, B may obtain an injunction to restrain the infringement.

(v) A pirates B's copyright. B may obtain an injunction to restrain the piracy, unless the work of which copyright is claimed is libellous or obscene.

(w) A improperly uses the trademark of B. B may obtain an injunction to restrain the user, provided that B's use of the trademark is honest.

(x) A, a tradesman, holds out B as his partner against the wish and without the authority of B. B may sue for an injunction to restrain A from so doing.

(y) A, a very eminent man, writes letters on family-topics to B. After the death of A and B, C who is B's residuary legatee, proposes to make money by publishing A's letters. D, who is A's executor, has a prosperity in the letters, and may sue for an injunction to restrain C from publishing them.

(z) A carries on a manufactory and B is his assistant. In the course of his business, A imparts to B a secret process of value. B afterwards demands money of A, threatening, in case of refusal, to disclose the process to C, a rival manufacturer. A may sue for an injunction to restrain B from disclosing the process.

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55. Mandatory injunction. When, to prevent the breach of an obligation, it is necessary to compel the performance of certain acts which the Court is capable of enforcing, the Court may in its discretion grant an injunction to prevent the breach complained of, and also to compel performance of the requisite acts.

Illustrations

(a) A, by new buildings, obstructs lights to the access and use of which B has acquired a right under the [2][Limitation Act, 1908 (IX of 1908)] Part IV. B may obtain an injunction, not only to restrain A from going on with the buildings, but also to pull down so much of them as obstructs B's lights.

[1]As to the working of mines under land, the surface of which has been acquired by Government, see the Land Acquisition (Mines) Act, 1885 (18 of 1885).
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "Indian Limitation Act".

(b) A builds a house with eaves projecting over B's land. B may sue for an injunction to pull down so much of the eaves as so project.

(c) In the case put as illustration (i) to section 54, the Court may also order all written communications made by B, as patient, to A, as medical adviser, to be destroyed.

(d) In the case put as illustration (y) to section 54, the Court may also order A's letters to be destroyed.

(e) A threatens to publish statements concerning B which would be punishable under Chapter XXI of the Pakistan Penal Code (XLV of 1860). The Court may grant an injunction to restrain the publication, even though it may be shown not to be injurious to B's property.

(f) A, being B's medical adviser, threatens to publish B's written communications with him, showing that B has led an immoral life. B may obtain an injunction to restrain the publication.

(g) In the cases put as illustrations (v) and (w) to section 54 and in illustrations (e) and (f) to this section, the Court may also order the copies produced by piracy, and the trade-marks, statements and communications, therein respectively mentioned, to be given up or destroyed.

56. Injunction when refused. An injunction cannot be granted—

(a) to stay a judicial proceeding pending at the institution of the suit in which the injunction is sought, unless such restraint is necessary to prevent a multiplicity of proceedings;

(b) to stay proceedings in a Court not subordinate to that from which the injunction is sought;

(c) to restraint persons from applying to any legislative body;

(d) to interfere with the public duties of any department of [1][the [2][Federal Government], [3]* * * or any Provincial Government], or with the sovereign acts of a Foreign Government;

(e) to stay proceedings in any criminal matter;

(f) to prevent the breach of a contract the performance of which would not be specifically enforced;

(g) to prevent, on the ground of nuisance, an act of which it is not reasonably clear that it will be a nuisance;

[1]Subs. by A. O.,1937 for "the G. of I. or the L.G.". (w.e.f.1st April, 1937).
[2]Subs. by F. A. O., 1975, Art. 2, for "Central Government" (w.e.f. 28th July, 1975).
[3]The words "the Crown Representative" omitted by A. O., 1949, Sch., (w.e.f. 28th March, 1949).

(h) to prevent a continuing breach in which the applicant has acquiesced;

(i) when equally efficacious relief can certainly be obtained by any other usual mode of proceeding except in case of breach of trust;

(j) when the conduct of the applicant or his agents has been such as to disentitle him to the assistance of the Court;

(k) where the applicant has no personal interest in the matter.

Illustrations

(a) A seeks an injunction to restrain his partner, B, from receiving the partnership-debts and effects. It appears that A had improperly possessed himself of the books of the firm and refused B access to them. The Court will refuse the injunction.

(b) A manufactures and sells crucibles, designating them as "patent plum-bago crucibles," though, in fact, they have never been patented. B pirates the designation. A cannot obtain an injunction to restrain the piracy.

(c) A sells an article called "Mexican Balm," stating that it is compounded of divers rare essences, and has sovereign medicinal qualities. B commences to sell a similar article to which he gives a name and description such as to lead people into the belief that they are buying A's Mexican Balm. A sues B for an injunction to restrain the sale. B shows that A's Mexican Balm consists of nothing but scented hog's lard. A's use of his description is not an honest one and he cannot obtain an injunction.

57. Injunction to perform negative agreement. Notwithstanding section 56, clause (f), where a contract comprises an affirmative agreement to do a certain act, coupled with a negative agreement, express or implied, not to do a certain act, the circumstance that the Court is unable to compel specific performance of the affirmative agreement shall not preclude it from granting an injunction to perform the negative agreement: provided that the applicant has not failed to perform the contract so far as it is binding on him.

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Illustrations

(a) A contracts to sell to B for Rs.1,000 the good-will of a certain business unconnected with business-premises, and further agrees not to carry on that business in [1][Karachi]. B pays A the Rs. 1,000 but A carries on the business in [1][Karachi]. The Court cannot compel A to send his customers to B, but B may obtain an injunction restraining A from carrying on the business in [1][Karachi].

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981) s. 3 and 2nd Sch., for "Chittagong" which was subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., for "Calcutta" (w.e.f. 14th October, 1955).

(b) A contracts to sell to B the good-will of a business. A then sets up a similar business close by B's shop and solicits his old customers to deal with him. This is contrary to his implied contract, and B may obtain an injunction to restrain A from soliciting the customers, and from doing any act whereby their good-will may be withdrawn from B.

(c) A contracts with B to sing for twelve months at B's theatre and not to sing in public elsewhere. B cannot obtain specific performance of the contract to sing, but he is entitled to an injunction restraining A from singing at any other place of public entertainment.

(d) B contracts with A that he will serve him faithfully for twelve months as a clerk. A is not entitled to a decree for specific performance of the contract. But he is entitled to an injunction restraining B from serving a rival house as clerk.

(e) A contracts with B that, in consideration of Rs.l,000 to be paid to him by B on a day fixed, he will not set up a certain business within a specified distance. B fails to pay the money. A cannot be restrained from carrying on the business within the specified distance.

SCHEDULE.— *[Enactments Repealed] Rep. by the Repealing and Amending Act, 1891 (XII of 1891).*

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THE STAMP ACT, 1899

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THE STAMP ACT, 1899

[1]ACT NO. II OF 1899

[27th January, 1899]

An Act to consolidate and amend the law relating to Stamps

WHEREAS it is expedient to consolidate and amend the law relating to stamps; it is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the [2]* Stamp Act, 1899.

[3][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on the first day of July 1899.

2. Definitions. — In this Act, unless there is something repugnant in the subject or context, -

(1) "**Banker"** "banker" includes a bank and any person acting as a banker:

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[1] For Statement of Objects and Reasons, *see* Gazette of India, 1897, Pt. V,p.175; for Report of the Select Committee, *see ibid.*, 1898, pt. V,p, 231 ; and for Proceedings in Council, *see ibid.*, 1898, Pt. VI, pp. 10 and 278; and *ibid.*, 1899, Pt. VI, p. 5.

The Act has been amended in its application to:—

(1) Bombay, by the Bombay Finance Act, 1932 (Bom. 2 of 1932), as amended by Bombay Acts 1 of 1935 and 3 of 1936 ;

(2) the Punjab and the N.W.F.P., by the Indian Stamp (Punjab Amendment) Act, 1922 (Punjab 8 of 1922), the Indian Stamp (Punjab Amendment) Act, 1924 (Punjab 1 of 1924) and the Indian Stamp (N.W.F.P. Amendment) Act, 1948 (N.W.F.P. Act 15 of 1948) : *see* also the Punjab Stamp (Amendment) Act, 1935 (Punjab 1 of 1935), the Punjab Act 14 of 1948, s. 2 and Act 11 of 1949, s. 2. applying only to the Punjab;

(3) Sind, by the Indian Stamp (Sind Amendment) Act, 1938 (Sind 12 of 1938);

(4) Capital of the Federation, by the Finance Act, 1952 (4 of 1952) ; and

(5) the Province of West Pakistan (except the Capital of the Federation) by West Pakistan Act No. 16 of 1957,s. 3 (3)and3rd Sch.(*w.e.f. 14-10-55*).

It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications, and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, *see* N.W.F.P. (Upper Tanawal Excluded Area) Laws Regulation, 1950.

This Act and all rules, notifications, declarations and orders made under it which were in force immediately before the first day of April, 1952, have been extended to and brought into force in the State of Bahawalpur, *see* the Bahawalpur (Extension of Laws) Order, 1952 (G.G.O. 2 of 1952), Art. 2.

It has been extended to Khairpur State, *see* the Khairpur (Federal Laws) (Second Extension) Order, 1953 (G.G.O. 14 of 1953).

It has also been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950); and applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I, p. 1499.

It has also been extended to the Baluchistan States Union, *see* G.G.O. 18 of 1953.

This Act has been amended in its application to the Province of West Pakistan by W. Pak. Ord. 46 of 1959 (*with effect from the 15th August*, 1959).

It has also been amended in its application to the Province of Punjab by Punjab Act XXVI of 1973, s. 2.

The Act, as in force in the North-West Frontier Province immediately before the commencement of N.W.F.P., Regulation No II of 1974, has been applied to the Provincially Administered Tribal Areas of Chitral, Dir, Kalam, Swat and Malakand Protected Area, by N.W.F.P. Regulation No. II of 1974, s. 3.

It has also been amended in its application to the Province of Sind by Sind Act XV of 1975, s. 3.

This Act has been amended to the extent of Islamabad Capital Territory *see*, Ordinance No. XXVII of 1981, s. 5 and 4th Sch.

This Act has also been amended in its application to the Province of N.W.F.P. by (1) N.W.F.P. Act VII of 1977. (2) N.W.F.P. Ord. VII of 1976 (3) N.W.F.P. Ord. III of 1977. (4) N.W.F.P. Ord. XII of 1977. (5) N.W.F.P. Ord. XVII of 1981.

This Act has further been amended in its application to the Province of Baluchistan by Baluchistan Ord. XIV of 1983.

This Act has also been amended in its application to the Province of Punjab by Punjab Ord. 1 of 1984 and Ordinance XXXVII of 1984.

This Act has also been amended in its application to the Province of Sind by Ordinance No. XVI of 1981 and Sind XXX of 1984.

It has further been amended in its application to the Province of West Pakistan by W. Pak. Act No. II of 1964, s. 2 (w.e.f. to be notified later on).

[2] The word "Indian" omitted by A.O., 1949, Sch.

[3] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October*, 1955), for sub-section (2) as amended by the Repealing and Amending Act, 1914 (Act No. X of 1914), s. 3 and II Sch., A.O., 1949, Sch. and the Federal Laws (Revision and Declaration) Act, 1951 (Act No. XXVI of 1951), s. 8.

(2) "Bill of exchange". "bill of exchange" means a bill of exchange as defined by the Negotiable Instruments Act, 1881 (XXVI of 1881), and includes also hundi, and any other document entitling or purporting to entitle any person, whether named therein or not, to payment by any other person of, or to draw upon any other person for, any sum of money:

(3) "Bill of exchange payable on demand". "bill of exchange payable on demand" includes—

(*a*) an order for the payment of any sum of money by a bill of exchange or promissory note, or for the delivery of any bill of exchange or promissory note in satisfaction of any sum of money, or for the payment of any sum of money out of any particular fund which may or may not be available, or upon any condition or contingency which may or may not be performed or happen;

(*b*) an order for the payment of any sum of money weekly monthly or at any other stated periods; and

(*c*) a letter of credit, that is to say, any instrument by which one person authorises another to give credit to the person in whose favour it is drawn :

(4) "Bill of lading". "bill of lading" includes a "through bill of lading," but does not include a mate's receipt:

(5) Bond. " bond" includes—

(*a*) any instrument whereby a person obliges himself to pay money to another, on condition that the obligation shall be void if a specified act is performed, or is not performed, as the case may be ;

(*b*) any instrument attested by a witness and not payable to order or bearer, whereby a person obliges himself to pay money to another; and

(*c*) any instrument so attested, whereby a person obliges himself to deliver grain or other agricultural produce to another:

(6) "Chargeable." "chargeable" means, as applied to an instrument executed or first executed after the commencement of this Act, chargeable under this Act, and, is applied to any other instrument, chargeable under the law in force in [1][Pakistan] when such instrument was executed or, where several persons executed the instrument at different times, first executed:

(7) "Cheque". "cheque" means a bill of exchange drawn on a specified banker and not expressed to be payable otherwise than on demand:

[2][* * * * * * *]

(9) "Collector". "Collector"—

[3][(*a*) means the Collector of a district; and]

(*b*) includes a Deputy Commissioner and any officer whom [4][the Provincial Government] may, by notification in the official Gazette, appoint in this behalf:

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[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "British India".

[2] Cl. (8) defining "Chief Controlling Revenue-authority"., rep. by A.O., 1937 : *see* now definition in s. 3 (9a) of the General Clauses Act, 1897 (Act No. X of 1897).

[3] Subs. by A.O., 1949, Sch., for the original sub-clause (a).

[4] The Original words "the L.G." were first subs. by A.O., 1937, and then amended by A.O., 1964, Art. 2 and Sch. (*with effect from the 27th May*, 1964), to read as above.

(10) "Conveyance". "conveyance" includes a conveyance on sale and every instrument by which property, whether moveable or immoveable, is transferred *inter vivos* and which is not otherwise specifically provided for by Schedule I :

[1][(11) "Duly stamped" means affixation of an adhesive or impressed stamp or e-stamp of not less than the requisite amount and that the stamp has been legally affixed, used or electronically generated,]

[1][(11A) "e-stamp" means a paper printed or partially printed containing a bar code or having any of its unique identification code and such other information, as may be specified by the rules, to be generated and printed, on deposit of money equivalent to chargeable stamp duty in the account of the Government.]

(12) "executed and "execution". "executed" and "execution", used with reference to instruments, mean "signed" and "signature" :

[2][* * * * * * *]

[1][(13) "impressed stamp" includes—

(a) the label affixed and impressed by the proper officer;

(b) the stamp embossed or engraved on a stamp paper; and

(c) e-stamp];

(14) "Instrument". "instrument" includes every document by which any right or liability is, or purports to be, created, transferred, limited, extended, extinguished or recorded [1][and includes any instrument executed in electronic form.]

(15) "Instrument of partition". "instrument of partition" means any instrument whereby co-owners of any property divide or agree to divide such property in severalty, and includes also a final order for effecting a partition passed by any Revenue authority or any Civil Court and an award by an arbitrator directing a partition:

(16) "Lease". "lease" means a lease of immoveable property, and includes also—

(*a*) a patta;

(*b*) a kabuliyat or other undertaking in writing, not being a counter-part of a lease, to cultivate, occupy or pay or deliver rent for, immoveable property;

(*c*) any instrument by which tolls of any description are let;

(*d*) any writing on an application for a lease intended to signify that the application is granted;

[3][**(16A) "Marketable security".** "marketable security" means a security of such a description as to be capable of being sold in any stock market in [4][Pakistan] [5][* * * *:]

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[1]Subs. & Ins. by Finance Act, 2021 (Act No. VIII of 2021), s.2.
[2] Cl. (12A) defining "Collecting Government" ins. by A.O., 1937, and subsequently amended by A.O., 1961, Art. 2 and Sch., has been omitted by A.O., 1964, Art, 2 and Sch.
[3] CI. (16A) ins. by the Indian Stamp (Amdt.) Act, 1904 (Act No. XV of 1904), s. 2.
[4] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "British India".
[5] The words "or in the United Kingdom" have been omitted (only to the extent of Islamabad Capital Territory) by the Federal Laws (Revision and Declaration, Ordinance, 1981 (Ordinance No. XVII of 1981) s. 5 and Sch. IV.

(17) "Mortgage-deed". " mortgage-deed" includes every instrument whereby, for the purpose of securing money advanced, or to be advanced, by way of loan, or an existing or future debt, or the performance of an engagement, one person transfers, or creates, to or in favour of, another, a right over or in respect of specified property:

(18) "Paper". "paper" includes vellum, parchment or any other material on which an instrument may be written:

(19) "Policy of insurance". " policy of insurance" includes—

(*a*) any instrument by which one person, in consideration of a premium, engages to indemnify another against loss, damage or liability arising from an unknown or contingent event;

(*b*) a life-policy, and any policy insuring any person against accident or sickness, and any other personal insurance: [1][*]

[1][* * * * * * *]

(20) "Policy of sea-insurance" or "see-policy".— "policy of sea-insurance" or "sea-policy"—

(*a*) means any insurance made upon any ship or vessel (whether for marine or inland navigation), or upon the machinery, tackle or furniture of any ship or vessel, or upon any goods, merchandise or property of any description whatever on board of any ship or vessel, or upon the freight of, or any other interest which may be lawfully insured in, or relating to, any ship or vessel; and

(*b*) includes any insurance of goods, merchandise or property for any transit which includes, not only a sea risk within the meaning of clause (*a*), but also any other risk incidental to the transit insured from the commencement of the transit to the ultimate destination covered by the insurance:

Where any person, in consideration of any sum of money paid or to be paid for additional freight or otherwise, agrees to take upon himself any risk attending goods, merchandise or property of any description whatever while on board of any ship or vessel or engages to indemnify the owner of any such goods, merchandise or property from any risk, loss or damage, such agreement or engagement shall be deemed to be a contract for sea insurance :

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(21) "Power-of-attorney". "power-of-attorney" includes any instrument (not chargeable with a fee under the law relating to court fees for the time being in force) empowering a specified person to act for and in the name of the person executing it :

(22) "Promissory note". "promissory note" means a promissory note as defined by the Negotiable Instruments Act, 1881 (XXVI of 1881);
it also includes a note promising the payment of any sum of money out of any particular fund which may or may not be available, or upon any condition or contingency which may or may not be performed or happen:

(23) "Receipt". "receipt" includes any not, memorandum or writing—

(*a*) whereby any money, or any bill of exchange, cheque or promissory note is acknowledged to have been received, or

(*b*) whereby any other moveable property is acknowledged to have been received in satisfaction of a debt, or

[1] The word "and" and sub-clause (*c*) rep. by the Indian Stamp (Amdt.) Act, 1906 (Act No. V of 1906), s. 2.

(*c*) whereby any debt or demand, or any part of a debt or demand, is acknowledged to have been satisfied or discharged, or

(*d*) which signifies or imports any such acknowledgment, and whether the same is or is not signed with the name of any person: [1][*]

(24) "Settlement". "settlement" means any non-testamentary disposition, in writing, of moveable or immoveable property made—

(*a*) in consideration of marriage,

(*b*) for the purpose of distributing property of the settler among his family or those for whom he desires to provide, or for the purpose of providing for some person dependent on him, or

(*c*) for any religious or charitable purpose;

and includes an agreement in writing to make such a disposition [2][and, where any such disposition has not been made in writing, any instrument recording, whether by way of declaration of trust or otherwise, the terms of any such disposition] : [3][and

(25) "Soldier". "soldier" includes any person below the rank of non-commissioned officer who is enrolled under the Indian Army Act 1911(VIII of 1911) [4][or the Pakistan Army Act, 1952 (XXXIX of 1952)].] .

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CHAPTER II

STAMP-DUTIES

A.-Of the Liability of Instruments to Duty

3. Instruments chargeable with duty. — Subject to the provisions of this Act and the exemptions contained in Schedule I, the following instruments shall be chargeable with duty of the amount indicated in that schedule as the proper duty therefore respectively, that is to say–

(a) every instrument mentioned in that schedule which, not having been previously executed by any person, is executed in [5][Pakistan] on or after the first day of July, 1899 ;

(b) every bill of exchange [6][payable otherwise than on demand] [7]* or promissory note drawn or made out of [5][Pakistan] on or after that day and accepted or paid, or presented for acceptance or payment, or endorsed, transferred or otherwise negotiated, in [5][Pakistan] ; and

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[1] The word "and" rep. by the Repealing and Amending Act, 1928 (Act No. XVIII of 1928).
[2] Ins. by the Indian Stamp (Amendment) Act, 1904 (Act No. XV of 1904), s. 2.
[3] The word "and" and cl. (25), ins. by Act,1928 (Act No. XVIII of 1928, s. 2 and Sch. I.
[4] Added by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955).
[5] Subs. by the Central Laws (Statute Reform) Ordinance, 1960, (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3 (2) and 4, for "British India".
[6] Ins. by the Indian Finance Act, 1927 (Act No. V of 1927), s. 5.
[7] The word "cheque" rep., *ibid.*

(c) every instrument (other than a bill of exchange [1][*] or promissory note) mentioned in that schedule, which, not having been previously executed by any person, is executed out of [2][Pakistan] on or after that day, relates to any property situate, or to any matter or thing done or to be done, in [2][Pakistan] and is received in [2][Pakistan] :

Provided that no duty shall be chargeable in respect of—

(1) any instrument executed by, or on behalf of, or in favour of, the [3][Government] in cases where, but for this exemption, the [3][Government] would be liable to pay the duty chargeable in respect of such instrument;

(2) Any instrument for the sale, transfer or other disposition, either absolutely or by way of mortgage or otherwise, of any ship or vessel, or any part, interest, share or property of or in any ship or vessel registered under the Merchant Shipping Act, 1894, or under Act XIX of 1838[4], or the Registration of Ships Act, 1841 (57 & 58Vict.c. 60 X of 1841), as amended by subsequent Acts.

4. Several instruments used in single transaction of sale, mortgage or settlement.—(1) Where, in the case of any sale, mortgage or settlement, several instruments are employed for completing the transaction, the principal instrument only shall be chargeable with the duty prescribed in Schedule I, for the conveyance, mortgage or settlement, and each of the other instruments shall be chargeable with a duty of one rupee instead of the duty (if any) prescribed for it in that schedule.

(2) The parties may determine for themselves which of the instruments so employed shall, for the purposes of sub-section (1), be deemed to be the principal instrument:

Provided that the duty chargeable on the instrument so determined shall be the highest duty which would be chargeable in respect of any of the said instruments employed.

5. Instruments relating to several distinct matters.— Any instrument comprising or relating to several distinct matters shall be chargeable with the aggregate amount of the duties with which separate instruments, each comprising or relating to one of such matters, would be chargeable under this Act.

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6. Instruments coming within several descriptions in Schedule I.— Subject to the provisions of the last preceding section, an instrument so framed as to come within two or more of the descriptions in Schedule I, shall, where the duties chargeable thereunder are different, be chargeable only with the highest of such duties:

Provided that nothing in this Act contained shall render chargeable with duty exceeding one rupee a counterpart or duplicate of any instrument chargeable with duty and in respect of which the proper duty has been paid.

7. Policies of sea-insurance.— (1) No contract for sea-insurance (other than such insurance as is referred to in section 506 of the Merchant Shipping Act, 1894 (57 & 58Vict.c. 60) shall be valid unless the same is expressed in a sea- policy.

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[1] Repealed by the Indian Finance Act, 1927 (Act No. V of 1927), s. 5, The word "cheque".
[2] Subs. by the Central Laws (Statute Reform) Ordinance, 1960, (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October*, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3 (2) and 4, for "British India".
[3] Subs. by A.O., 1961, Art. 2 (*with effect from the 23rd March*, 1956), for "Crown".
[4] The Bombay Coasting Vessels Act. 1838.

(2) No sea-policy made for time shall be made for any time exceeding twelve months.

(3) No sea-policy shall be valid unless it specifies the particular risk or adventure, or the time, for which it is made, the names of the subscribers or under-writers, and the amount or amounts insured.

(4) Where any sea-insurance is made for or upon a voyage and also for time, or to extend to or cover any time beyond thirty days after the ship shall have arrived at her destination and been there moored at anchor, the policy shall be charged with duty as a policy for or upon a voyage, and also with duty as a policy for time.

8. Bonds, debentures or other securities, issued on loans under Act XI, 1879.— (1) Notwithstanding anything in this Act, any local authority raising a loan under the provisions of the [1][Local Authorities Loans Act, 1914 (IX of 1914)] or of any other law for the time being in force, by the issue of bonds, debentures or other securities, shall, in-respect of such loan, be chargeable with a duty of [2][one per centum] on the total amount of the bonds, debentures or other securities issued by it, and such bonds, debentures or other securities need not be stamped, and shall not be chargeable with any further duty on renewal, consolidation, sub-division or otherwise.

(2) The provisions of sub-section (1) exempting certain bonds, debentures or other securities from being stamped and from being chargeable with certain further duty shall apply to the bonds, debentures or other securities of all outstanding loans of the kind mentioned therein, and all such bonds, debentures or other securities shall be valid, whether the same are stamped or not:

[3][* * * * * * *]

(3) In the case of wilful neglect to pay the duty required by this section, the local authority shall be liable to forfeit to the Government a sum equal to ten per centum upon the amount of duty payable, and a like penalty for every month after the first month during which the neglect continues.

9. [4][The Provincial Government] may, by rule or order published in the [5][official Gazette],–

(a) **Power to reduce, remit or compound duties.** reduce or remit, whether prospectively or retrospectively, in the whole or any part of [6][the territories under its administration], the duties with which any instruments or any particular class of instruments, or any of the instruments belonging to such class, or any instruments when executed by or in favour of any particular class of persons, or by or in favour of any members of such class, are chargeable, and

(b) provide for the composition or consolidation of duties in the case of issues by any incorporated company or other body corporate of debentures, bonds or other marketable securities.

[1] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981) s. 5 and Sch. IV for "Local Authorities Loan Act, 1879". (Only to the extent of Islamabad Capital Territory).
[2] Subs. by the Indian Stamp (Amendment) Act, 1910 (Act No. VI of 1910), s. 2, for "eight annas per centum".
[3] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981) s. 5 and Sch. IV (Only to the extent of Islamabad Capital Territory).
[4] The original words "The G. G. in C." were first subs. by A.O., 1937, and then amended by A.O., 1964, Art. 2 and Sch., to read as above.
[5] Subs. by A. O., 1937, for "Gazette of India".
[6] Subs. *ibid.*, for "British India".

B.-Of Stamps and the mode of using them

10. Duties how to be paid.—(1) Except as otherwise expressly provided in this Act, all duties with which any instruments are chargeable shall be paid, and such payment shall be indicated on such instruments, by means of stamps [1][or e-stamps]—

(a) according to the provisions herein contained ; or

(b) when no such provision is applicable thereto-as the [2][Provincial Government] may by rule direct.

(2) The rules[3] made under sub-section (1) may, among other matters, regulate,—

(a) in the case of each kind of instrument-the description of stamps [1][or e-stamps] which may be used;

(b) in the case of instruments stamped with impressed stamps-the number of stamps which may be used ;

(c) in the case of bills of exchange or promissory notes written in any Oriental language— the size of the paper on which they are written.

11. Use of adhesive stamps.— The following instruments may be stamped with adhesive stamps, namely:—

(a) instruments chargeable with the duty of one anna [4][or half an anna], except parts of bills of exchange payable otherwise than on demand and drawn in sets ;

(b) bills of exchange,[5] * and promissory notes drawn or made out of [6][Pakistan];

[7](c) entry as an advocate, vakil or attorney on the roll of a High Court;

(d) notarial acts ; and

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(e) transfers by endorsement of shares in any incorporated company or other body corporate.

12. Cancellation of adhesive stamps.— (1) (a) Whoever affixes any adhesive stamp to any instrument chargeable with duty which has been executed by any person shall, when affixing such stamp, cancel the same so that it cannot he used again; and

(b) whoever executes any instrument on any paper bearing an adhesive stamp shall, at the time of execution, unless such stamp has been already cancelled in manner aforesaid, cancel the same so that it cannot be used again.

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[1]Ins. by the Finance Act,2021 (Act No. VIII of 2021), s.2.
[2]Subs. by A. O., 1964, Art. 2 and Sch., for "Collecting Government" which had been subs. by A. O., 1937, for "G. G. in C."
[3]*See* the Indian Stamp Rules, 1925.
[4]Ins. by the Indian Stamp (Amendment) Act, 1906 (Act No. V of 1906), s. 3.
[5]The word "cheques" rep. by the Indian Finance Act, 1927 (Act No. V of 1927), s. 5.
[6]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India".
[7]As to the enrolment of legal practitioners in the N.W.F.P., *see* the N.W.F.P. Law and Justice Regulation, 1901 (VII of 1901), s. 9.

(2) Any instrument bearing an adhesive stamp which has not been cancelled so that it cannot be used again, shall, so far as such stamp is concerned, be deemed to be unstamped.

(3) The person required by sub-section (1) to cancel an adhesive stamp may cancel it by writing on or across the stamp his name or initials or the name or initials of his firm with the true date of his so writing, or in any other effectual manner.

13. Instruments stamped with impressed stamps how to be written.— Every instrument written upon paper stamped with an impressed stamp shall be written in such manner that the stamp may appear on the face of the instrument and cannot be used for or applied to any other instrument.

14. Only one instrument to be on same stamp.—No second instrument chargeable with duty shall be written upon a piece of stamped paper upon which an instrument chargeable with duty has already been written:

Provided that nothing in this section shall prevent any endorsement which is duly stamped or is not chargeable with duty being made upon any instrument for the purpose of transferring any right created or evidenced thereby, or of acknowledging the receipt of any money or goods the payment or delivery of which is secured thereby. .

15. Instrument written contrary to section 13 or 14 deemed un-stamped.— Every instrument written in contravention of section 13 or section 14 shall be deemed to be un-stamped.

16. Denoting duty.—Where the duty with which an instrument is chargeable, or its exemption from duty, depends in any manner upon the duty actually paid in respect of another instrument, the payment of such last-mentioned duty shall, if application is made in writing to the Collector for that purpose, and on production of both the instruments, be denoted upon such first-mentioned instrument, by endorsement under the hand of the Collector or in such other manner. (if any) as the [1][Provincial Government] may by rule prescribe.

C.-Of the time of stamping Instruments

17. Instruments executed in Pakistan.— All instruments chargeable with duty and executed by any person in [2][Pakistan] shall be stamped before or at the time of execution.

18. Instruments other than bills and notes executed out of Pakistan.— (1) Every instrument chargeable with duty executed only out of [2][Pakistan], and not being a bill of exchange, [3]* or promissory note, may be stamped within three months after it has been first received in [2][Pakistan].

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(2) Where any such instrument cannot, with reference to the description of stamp prescribed therefor, be duly stamped by a private person, it may be taken within the said period of three months to the Collector, who shall stamp the same, in such manner as the [1][provincial Government] may by rule prescribe, with a stamp of such value as the person so taking such instrument may require and pay for.

19. Bills and notes drawn out of Pakistan. The first holder in [2][Pakistan] of any bill of exchange, [4][payable otherwise than on demand] [3]* or promissory note drawn or made out of [2][Pakistan] shall, before he presents the same for acceptance or payment, or endorses, transfers or otherwise negotiates the same in [2][Pakistan], affix thereto the proper stamp and cancel the same:

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[1] Subs. by A.O., 1964, Art. 2 and Sch., for "Collecting Government" which had been subs. by A.O., 1937, for "G. G. in C.".
[2] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "British India".
[3] The word "cheque" rep. by the Indian Finance Act, 1927 (Act No. V of 1927), s.5.
[4] Ins., *ibid*.

Provided that,—

(a) if, at the time any such bill of exchange, [1][*] or not comes into the hands of any holder thereof in [2][Pakistan], the proper adhesive stamp is affixed thereto and cancelled in manner prescribed by section 12 and such holder has no reason to believe that such stamp was affixed or cancelled otherwise than by the person and at the time required by this Act, such stamp shall far as relates to such holder, be deemed to have been duly affixed and cancelled.

(b) nothing contained in this proviso shall relieve any person from any penalty incurred by him for omitting to affix or cancel a stamp.

D.-Of Valuations for Duty

20. Conversion of amount expressed in foreign currencies.—(1) Where an instrument is chargeable with *ad valorem* duty in respect of any money expressed in any currency other than that of [2][Pakistan], such duty shall be calculated on the value of such money in the currency of [2][Pakistan] according to the current rate of exchange on the day of the date of the instrument.

[3][* * * * * * *]

21. Stock and marketable securities how to be valued.—Where an instrument is chargeable with *ad valorem* duty in respect of any stock or of any marketable or other security, such duty shall be caluc1ated on the value of such stock or security according to the average price or the value thereof on the day of' the date of the instrument.

22. Effect of statement of rate of exchange or average price.—Where an instrument contains a statement of current rate of exchange, or average price, as the case may require, and is stamped in accordance with such statement, it shall, so far as regards the subject-matter of such statement, be presumed, until the contrary is proved, to be duly stamped.

23. Instruments reserving interest.— Where interest is expressly made payable by the terms of an instrument, such instrument shall not be chargeable with duty higher than that with which it would have been chargeable had no mention of interest been made therein.

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[4][**23A. Certain instruments connected with mortgages of marketable securities to be chargeable as agreements.—**(1) Where an instrument (not being a promissory note or bill of exchange.)—

(*a*) is given upon the occasion of the deposit of any marketable security by way of security for money advanced or to be advanced by way of loan, or for an existing or future debt, or

[1] The word "cheque" rep. by the Indian Finance Act, 1927 (Act No. V of 1927), s.5.
[2] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "British India".
[3] Sub. Section 2 Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981) s. 5 and Sch. IV (Only to the extent of Islamabad Capital Territory).
[4] Ins. by the Indian Stamp (Amendment) Act, 1904 (Act No. XV of 1904), s. 3.

(*b*) makes redeemable or qualifies a duly stamped transfer, intended as a security, of any marketable security, it shall be chargeable with duty as if it were an agreement or memorandum of an agreement chargeable with duty under [1][Article No.5 (*c*)] of Schedule I.

(2) A release or discharge of any such instrument shall only be chargeable with the like duty.]

24. How transfer in consideration of debt, or subject to future payment, etc., to be charged.— Where any property is transferred to any person in consideration, wholly or in part, of any debt due to him, or subject either certainly or contingently to the payment or transfer of any money or stock, whether being or constituting a charge or incumbrance upon the property or not, such debt, money or stock is to be deemed the whole or part, as the case may be, of the consideration in respect whereof the transfer is chargeable with *ad valorem* duty:

Provided that nothing in this section shall apply to any such certificate of sale as is mentioned in Article No. 18 of Schedule I.

Explanation.— In the case of a sale of property subject to a mortgage or other incumbrance, any unpaid mortgage-money or money charged, together with the interest (if any) due on the same, shall be deemed to be part of the consideration for the sale:

Provided that, where property subject to a mortgage is transferred to the mortgagee, he shall be entitled to deduct from the duty payable on the transfer the amount of any duty already paid in respect of the mortgage.

Illustrations

(1) A owes B Rs.1,000. A sells a property to B, the consideration being Rs.500 and the release of the previous debt of Rs.1,000. Stamp-duty is payable on Rs.1,500.

(2) A sells a property to B for Rs.500 which is subject to a mortgage to C for Rs.1,000 and unpaid interest Rs.200. Stamp-duty is payable on Rs.1,700.

(3) A mortgages a house of the value of Rs.10,000 to B for Rs.5,000. B an afterwards buys the house from A. Stamp-duty is payable on Rs.10,000 less the amount of Stamp-duty already paid for the mortgage.

25. Valuation in case of annuity, etc.— Where an instrument is executed to secure the payment of an annuity or other sum payable periodically, or where the consideration for a conveyance is an annuity or other sum payable periodically, the amount secured by such instrument or the consideration for such conveyance, as the case may be, shall, for the purposes of this Act, be deemed to be,—

(a) where the sum is payable for a definite period so that the total amount to be paid can be previously ascertained-such total amount;

[1] Subs. by the Indian Stamp (Amdt.) Act, 1912 (Act No. I of 1912), s. 3, for "Article No.5 (*b*)".

(b) where the sum is payable in perpetuity or for an indefinite time not terminable with any life in being at the date of such instrument or conveyance the total amount which, according to the terms of such instrument or conveyance, will or may be payable during the period of twenty years calculated from the date on which the first payment becomes due; and

(c) where the sum is payable for an indefinite time terminable with any life in being at the date of such instrument or conveyance the maximum amount which will or may be payable as aforesaid during the period of twelve years calculated from the date on which the first payment becomes due.

26. Stamp where value of subject-matter is indeterminate.— Where the amount or value of the subject-matter of any instrument chargeable with *ad valorem* duty cannot be, or (in the case of an instrument executed before the commencement of this Act) could not have been, ascertained at the date of its execution or first execution, nothing shall be claimable under such instrument more than the highest amount or value for which, if stated in an instrument of the same description, the stamp actually used would, at the date of such execution, have been sufficient:

[1][Provided that, in the case of the lease of a mine in which royalty or a share of the produce is received as the rent or part of the rent, it shall be sufficient to have estimated such royalty or the value of such share, for the purpose of stamp-duty,—

(a) when the lease has been granted by or on behalf of [2][the Government], at such amount or value as the Collector may, having regard to all the circumstances of the case, have estimated as likely to be payable by way of royalty or share to [3][the Government] under the lease, or,

(b) when the lease has been granted by any other person, at twenty thousand rupees a year;

and the whole amount of such royalty or share, whatever it may be, shall be claimable under such lease :]

Provided also that, where proceedings have been taken in respect of an instrument under section 31 or 41, the amount certified by the Collector shall be deemed to be the stamp actually used at the date of execution.

27. Facts affecting duty to be set forth in instrument.— The consideration (if any) and all other facts and circumstances affecting the chargeability of any instrument with duty, or the amount of the duty with which it is chargeable, shall be fully and truly set forth therein.

[4][**27A Valuation of immovable property.**—(1) Where any instrument chargeable with ad valorem duty under Articles 23,31 or 33 of Schedule-I relates to an immovable property, the value of the immovable property shall be calculated according to the valuation table notified by the district collector in respect of immovable property situated in the locality.

(2) Where an instrument, mentioned in sub-section (1), relates to immovable property consisting of land and structure, it shall state the value of the land and structure separately and the value of the structure stated in the instrument shall, subject to the provisions of this Act, be accepted.

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[1] Subs. by the Indian Stamp (Amdt.) Act, 1904 (Act No. XV of 1904), s. 4, for the original proviso.
[2] The original words "the Secretary of State in Council" were first subs. by A.O., 1937 and then amended by A.O., 1961, Art. 2 (*with effect from the 23rd March,* 1956), to read as above.
[3] The original words "the said Secretary of State in Council" were first subs. by A.O., 1937 and then amended by A.O.,1961, Art. 2 (*with effect from 23rd March,* 1956), to read as above.
[4] Ins. by Finance Act, 2019 (Act No. V of 2019), s.2, (as is in force in the Islamabad Capital Territory).

(3) Where the value of immovable property stated in an instrument to which sub-section (1) applies is more than the value fixed according to the valuation table, the value declared in the instrument shall be accepted as value for the purposes of stamp duty.

(4) Where the value given in the valuation table notified under sub-section (1), when applied to any immovable property, appears to be excessive, the deputy commissioner or commissioner (revenue) or any other person notified by the Government for this purpose may, on application made to him by the aggrieved person, determine its correct value and for that purpose the provisions of sections 31 and 32 shall apply as nearly as possible.]

28. Direction as to duty in case of certain conveyances.—(1) Where any property has been contracted to be sold for one consideration for the whole, and is conveyed to the purchaser in separate parts by different instruments, the consideration shall be apportioned in such manner as the parties think fit, provided that a distinct consideration for each separate part is set-forth in the conveyance relating thereto, and such conveyance shall be chargeable with *ad valorem* duty in respect of such distinct consideration.

(2) Where property contracted to be purchased for one consideration for the whole, by two or more persons jointly, or by any person for himself and others, or wholly for others, is conveyed in parts by separate instruments to the persons by or for whom the same was purchased, for distinct parts of the consideration, the conveyance of each separate part shall be chargeable with *ad valorem* duty in respect of the distinct part of the consideration therein specified.

(3) Where a person, having contracted for the purchase of any property but not having obtained a conveyance thereof, contracts to sell the same to any other person and the property is in consequence conveyed immediately to the sub-purchaser, the conveyance shall be chargeable with *ad valorem* duty in respect of the consideration for the sale by the original purchaser to the sub-purchaser.

(4) Where a person, having contracted for the purchase of any property but not having obtained a conveyance thereof, contracts to sell the whole, or any part thereof to any other person or persons and the property is in consequence conveyed by the original seller to different persons in parts, the conveyance of each part sold to a sub-purchaser shall be chargeable with *ad valorem* duty in respect only of the consideration paid by such sub- purchaser, without regard to the amount or value of the original consideration; and the conveyance of the residue (if any) of such property to the original purchaser shall be chargeable with *ad valorem* duty in respect only of the excess of the original consideration over the aggregate of the considerations paid by the sub-purchasers:

Provided that the duty on such last-mentioned conveyance shall in no case be less than one rupee.

(5) Where a sub-purchaser takes an actual conveyance of the interest of the person immediately selling to him, which is chargeable with *ad valorem* duty in respect of the consideration paid by him and is duly stamped accordingly, any conveyance to be afterwards made to him of the same property by the original seller shall be chargeable with a duty equal to that which would be chargeable on a conveyance for the consideration obtained by such original seller, or, where such duty would exceed five rupees, with a duty of five rupees.

E.-Duty by whom payable

29. Duties by whom payable.— In the absence of an agreement to the contrary, the expense of providing the proper stamp shall be borne,—

(a) in the case of any instrument described in any of the following Articles of Schedule I, namely :—

No.2. (Administration Bond),

[1][No. 6. (Agreement relating to Deposit of Title-deeds, Pawn or Pledge),]

No. 13. (Bill of Exchange),

No. 15. (Bond),

No. 16. (Bottomry Bond),

No. 26. (Customs Bond),

No. 27. (Debenture),

No. 32. (Further Charge),

No. 34. (Indemnity-Bond),

No. 40. (Mortgage-Deed),

No. 49. (Promissory-Note),

No. 55. (Release),

No. 56. (Respondentia Bond),

No. 57. (Security Bond or Mortgage-Deed),

No. 58. (Settlement),

No. 62.(*a*). (Transfer of shares in an incorporated company or other body corporate),

No. 62 (*b*). (Transfer of Debentures, being marketable securities, whether the debenture is liable to duty or not, except debentures provided for by section 8).

No. 62 (*c*). (Transfer of any interest secured by a bond, mortgage-deed or policy of insurance),—

by the person drawing, making or executing such instrument:

[2][(b) in the case of a policy of insurance other than fire insurance-by the person effecting the insurance;

(bb) in the case of a policy fire-insurance—by the person issuing the policy;]

(c) in the case of a conveyance (including a re-conveyance of mortgaged property) by the, grantee: in the case of a lease or agreement to lease-by the lessee or intended lessee:

(d) in the case of a counterpart of a lease-by the lessor:

(e) in the case of an instrument of exchange —by the parties in equal shares:

(f) in the case of a certificate of sale —by the purchaser of the property to which such certificate relates: and,

[1] Subs. by the Indian Stamp (Amdt.) Act, 1904 (Act No. XV of 1904), s. 5, for "No.6. (Agreement to mortgage)".
[2] Subs. by the Indian Stamp (Amdt.) Act, 1906 (Act No. V of 1906), s. 4, for the original cl. (b).

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(g) in the case of an instrument of partition ─by the parties thereto in proportion to their respective shares in the whole property partitioned, or, when the partition is made in execution of an order passed by a Revenue authority or Civil Court or arbitrator, in such proportion as such authority, Court or arbitrator directs.

30. Obligation to give receipt in certain cases.— Any person receiving any money exceeding twenty rupees in amount, or any bill of exchange, cheque or promissory note for an amount exceeding twenty rupees, or receiving in satisfaction or part satisfaction of a debt any moveable property exceeding twenty rupees in value, shall, on demand by the person paying or delivering such money, bill, cheque, note or property, give a duly stamped receipt for the same.

[1][Any person receiving or taking credit for any premium or consideration for any renewal of any contract of fire-insurance, shall, within one month after receiving or taking credit for such premium or consideration, give a duly stamped receipt for the same:]

CHAPTER III

ADJUDICATION AS TO STAMPS

31. Adjudication as to proper stamp.—(1) When any instrument, whether executed or not and whether previously stamped or not, is brought to the Collector, and the person bringing it applies to have the opinion of that officer as to the duty (if any) with which it is chargeable, and pays a fee of such amount (not exceeding five rupees and not less than eight annas) as the Collector may in each case direct, the Collector shall determine the duty (if any) with which, in his judgement, the instrument is chargeable.

(2) For this purpose the Collector may require to be furnished with an abstract of the instrument, and also with such affidavit or other evidence as he may deem necessary to prove that all the facts and circumstances affecting the chargeability of the instrument with duty, or the amount of the duty with which it is chargeable, are fully and truly set forth therein, and may refuse to proceed upon any such application until such abstract and evidence have been furnished accordingly:

Provided that—

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(*a*) no evidence furnished in pursuance of this section shall be used against any person in any civil proceeding, except in an enquiry as to the duty with which the instrument to which it relates is chargeable; and

(*b*) every person by whom any such evidence is furnished shall, on payment of the full duty with which the instrument to which it relates is chargeable, be relieved from any penalty which he may have incurred under this Act by reason of the omission to state truly in such instrument any of the facts or circumstances aforesaid.

32. Certificate by Collector.— (1) When an instrument brought to the Collector under section 31, is, in his opinion, one of a description chargeable with duty, and—

(*a*) the Collector determines that it is already fully stamped, or

[1] Ins. by the Indian Stamp (Amdt.) Act, 1906 (Act No. V of 1906), s. 4, for the original cl. (b).

(*b*) the duty determined by the Collector under section 31, or such a sum as, with the duty already paid in respect of the instrument, is equal to the duty so determined, has been paid,[1]

the Collector shall certify by endorsement on such instrument that the full duty (stating the amount) with which it is chargeable has been paid.

(2) When such instrument is, in his opinion, not chargeable with duty, the Collector shall certify in manner aforesaid that such instrument is not so chargeable.

(3) Any instrument upon which an endorsement has been made under this section, shall be deemed to be duly stamped or not chargeable with duty, as the case may be; and, if chargeable with duty, shall be receivable in evidence or otherwise, and may be acted upon and registered as if it had been originally duly stamped:

Provided that nothing in this section shall authorise the Collector to endorse—

(*a*) any instrument executed or first executed in [2][Pakistan] and brought to him after the expiration of one month from the date of its execution or first execution, as the case may be ;

(*b*) any instrument executed or first executed out of [2][Pakistan] and brought to him after the expiration of three months after it has been first received in [2][Pakistan] ; or

(*c*) any instrument chargeable with the duty of one anna [3][or half an anna] or any bill of exchange or promissory note, when brought to him, after the drawing or execution thereof, on paper not duly stamped.

[4][**32A. Certificate of designated officer.**—An officer designated by the Government shall, by notification in the official Gazette, issue a certificate as to genuineness or otherwise of an e-stamp for the purpose of evidence in a legal proceedings.]

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CHAPTER IV

INSTRUMENTS NOT DULY STAMPED

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33. Examination and impounding of instruments.—(1) Every person having by law or consent of parties authority to receive evidence, and every person in charge of a public office, except an officer of police, before whom any instrument, chargeable in his opinion, with duty, is produced or comes in the performance of his functions, shall, if it appears to him that such instrument is not duly stamped, impound the same.

(2) For that purpose every such person shall examine every instrument so chargeable and so produced or coming before him in order to ascertain whether it is stamped with a stamp of the value and description required by the law in force in [2][Pakistan] when such instrument was executed or first executed:

[1] For refund of this duty in the case of certain instruments, *see* the Stamp (Specified Instruments) Act, 1924 (Act No. XIII of 1924), s. 3(4).
[2] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "British India".
[3] Ins. by the Indian Stamp (Amendment) Act, 1906 (Act No. V of 1906), s. 3.
[4] Ins. by the Finance Act,2021(Act No. VIII of 2021), s. 2.

Provided that—

(*a*) nothing herein contained shall be deemed to require any Magistrate or Judge of a Criminal Court to examine or impound, if he does not think fit so to do, any instrument coming before him in the course of any proceeding other than a proceeding under Chapter XII or Chapter XXXVI of the Code of Criminal Procedure, 1898 (V of 1898) ;

(*b*) in the case of a Judge of a High Court, the duty of examining and impounding any instrument under this section may be delegated to such officer as the Court appoints in this behalf.

(3) For the purposes of this section, in cases of doubt,—

(*a*) [1][the Provincial Government] may determine[2] what offices shall be deemed to be public offices; and

(*b*) [3][the Provincial Government] may determine who shall be deemed to be persons in charge of public offices.

34. Special provision as to unstamped receipts.— Where any receipt chargeable with a duty of one anna is tendered to or produced before any officer unstamped in the course of the audit of any public account, such officer may in his discretion, instead of impounding the instrument, require a duly stamped receipt to be substituted therefor.

35. Instruments not duly stamped in admissible is evidence, etc.— No instrument chargeable with duty shall be admitted in evidence for any purpose by any person having by law or consent of parties authority to receive evidence, or shall be acted upon registered or authenticated by any such person or by any public officer, unless such instrument is duly stamped:

Provided that—

[4](a) any such instrument not being an instrument chargeable with a duty of one anna [5][or half an anna] only, or a bill of exchange or promissory note, shall, subject to all just exceptions, be admitted in evidence on payment of the duty with which the same is chargeable, or, in the case of an instrument insufficiently stamped, of the amount required to make up such duty, together with a penalty of five rupees, or, when ten times the amount of the proper duty or deficient portion thereof exceeds five rupees, of a sum equal to ten times such duty or portion;

(b) where any person from whom a stamped receipt could have been demanded, has given an unstamped receipt and such receipt, if stamped, would be admissible in evidence against him, then such receipt shall be admitted in evidence against him on payment of a penalty of one rupee by the person tendering it ;

[1] The original words "the G. G. in C". were first subs. by A.O., 1937 and then amended by A.O., 1964, Art. 2 and Sch., to read as above.
[2] For the purposes of this section, the office of a returning officer appointed for the purposes of an election to legislative body constituted under the Government of India Act is not a public office, *see* Gazette of India, 1920, Pt. I, p. 2136.
[3] The original words "the L. G." were first subs. by A.O., 1937 and then amended by A.O., 1964, Art. 2 and Sch., to read as above.
[4] For modifications of this provision in respect of instruments to which the Stamp (Specified Instruments) Act, 1924 (Act No. XIII of 1924), applies, *see* s, 3 of that Act.
[5] Ins. by the Indian Stamp (Amdt.) Act. 1906 (Act No. V of 1906), s. 3.

(c) where a contract or agreement of any kind is effected by correspondence consisting of two or more letters and any one of the letters bears the proper stamp, the contract or agreement shall be deemed to be duly stamped;

(d) nothing herein contained shall prevent the admission of any instrument in evidence in any proceeding in a Criminal Court, other than a proceeding under Chapter XII or Chapter XXXVI of the Code of Criminal Procedure, 1898 (V of 1898);

(e) nothing herein contained shall prevent the admission of any instrument in any Court when such instrument has been executed by or on behalf of [1][the Government], or where it bears the certificate of the Collector as provided by section 32 or any other provision of this Act.

36. Admission of instrument where not to be questioned.—Where an instrument has been admitted in evidence, such admission shall not, except as provided in section 61, be called in question at any stage of the same suit or proceeding on the ground that the instrument has not been duly stamped.

37. Admission of improperly stamped instruments.—[2][The Provincial Government] may make rules providing that, where an instrument bears a stamp of sufficient amount but of improper description, it may, on payment of the duty with which the same is chargeable, be certified to be duly stamped, and any instrument so certified shall then be deemed to have been duly stamped as from the date of its execution.

38. Instruments impounded how dealt with.—(1) When the person impounding an instrument under section 33 has by law or consent of parties authority to receive evidence and admits such instrument in evidence upon payment of a penalty as provided by section 35 or of duty as provided by section 37, he shall send to the Collector an authenticated copy of such instrument, together with a certificate in writing, stating the amount of duty and penalty levied in respect thereof, and shall send such amount to the Collector, or to such person as he may appoint in this behalf.

(2) In every other case, the person so impounding an instrument shall send it in original to the Collector.

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39. Collector's power to refund penalty paid under section 38, sub-section (1).—(1) When a copy of an instrument is sent to the Collector under section 38, sub-section (1), he may, if he thinks fit, [3][* * *] refund any portion of the penalty in excess of five rupees which has been paid in respect of such instrument.

(2) When such instrument has been impounded only because it has been written in contravention of section 13 or section 14, the Collector may refund the whole penalty so paid.

[1] The original words "the Govt." were first subs. by A.O., 1937 and then amended by A.O., 1961, Art. 2 (*with effect from the 23rd March,* 1956), to read as above.
[2] The original words "the G. G. in C." were first subs. by A.O.,1937, and then amended by A.O., 1964, Art. 2 and Sch., to read as above.
[3] The words "upon application made to him in this behalf or, if no application is made, with the consent of the Chief Controlling Revenue authority" rep. by the Decentralization Act, 1914 (Act No IV of 1914), s., 2 and Sch., Pt. I.

[1]**40. Collector's power to stamp instruments impounded.—**(1) When the Collector impounds any instrument under section 33, or receives any instrument sent to him under section 38, sub-section (2), not being an instrument chargeable with a duty of one anna [2][or half an anna] only or a bill of exchange or promissory note, he shall adopt the following procedure:—

(*a*) if he is of opinion that such instrument is duly stamped, or is not chargeable with duty, he shall certify by endorsement thereon that it is duly stamped, or that it is not so chargeable, as the case may be :

(*b*) if he is of opinion that such instrument is chargeable with duty and is not duly stamped, he shall require the payment of the proper duty or the amount required to make up the same, together with a penalty of five rupees; or, if he thinks fit, [3][an amount not exceeding] ten times the amount of the proper duty or of the deficient portion thereof, whether such amount exceeds or falls short of five rupees:

Provided that, when such instrument has been impounded only because it has been written in contravention of section 13 or section 14, the Collector may, if he thinks fit, remit the whole penalty prescribed by this section.

(2) Every certificate under clause (*a*) of sub-section (1) shall, for the purposes of this Act, be conclusive evidence of the matters stated therein.

(3) Where an instrument has been sent to the Collector under section 38, sub-section (2), the Collector shall, when he has dealt with it as provided by this section, return it to the impounding officer.

[4][**41. Instruments unduly stamped by accident.—** If any instrument chargeable with duty and not duly stamped, not being an instrument chargeable with a duty of one anna [5][or half an anna] only or a bill of exchange or promissory note, is produced by any person of his own motion before the Collector within one year from the date of its execution or first execution, and such person brings to the notice of the Collector the fact that such instrument is not duly stamped and offers to pay to the Collector the amount of the proper duty, or the amount required to make up the same, and the Collector is satisfied that the omission to duly stamp such instrument has been occasioned by accident, mistake or urgent necessity, he may, instead of proceeding under sections 33 and 40, receive such amount and proceed as next hereinafter prescribed.

42. Endorsement of instruments on which duty has been paid under section 35, 40 or 41.—(1) When the duty and penalty (if any) leviable in respect of any instrument have been paid under section 35, section 40 or section 41, the person admitting such instrument in evidence or the Collector, as the case may be, shall certify by endorsement thereon that the proper duty or, as the case may be, the proper duty and penalty (stating the amount of each) have been levied in respect thereof, and the name and residence of the person paying them.

[1] For modifications of these provisions in respect of instruments to which the Stamp (Specified Instruments) Act, 1924 (Act No. XIII of 1924), applies, *see* s. 3 of that Act.
[2] Ins. by the Indian Stamp (Amendment) Act, 1906 (Act No. V of 1906), s. 3.
[3] Ins. by the Indian Stamp (Amendment) Act, 1904 (Act No. XV of 1904), s. 6.
[4] For modifications of these provisions in respect of instruments to which the Stamp (Specified Instruments) Act, 1924 (Act No. XIII of 1924), applies, *see* s. 3 of that Act.
[5] 1ns. by the Indian Stamp (Amdt.) Act, 1906 (Act No. V of 1906), s. 3.

(2) Every instrument so endorsed shall thereupon be admissible in evidence, and may be registered and acted upon and authenticated as if it had been duly stamped, and shall be delivered on his application in this behalf to the person from whose possession it came into the hands of the officer impounding it, or as such person may direct:

Provided that—

(*a*) no instrument which has been admitted in evidence upon payment of duty and a penalty under section 35, shall be so delivered before the expiration of one month from the date of such impounding, or if the Collector has certified that its further detention is necessary and has not cancelled such certificate;

(b) nothing in this section shall affect the[1][provisions of rule 9 of Order XIII of the First Schedule to the Code of Civil Procedure. 1908 (Act V of 1908)].

43. Prosecution for offence against Stamp-law.— The taking of proceedings or the payment of a penalty under this Chapter in respect of any instrument shall not bar the prosecution of any person who appears to have committed an offence against the Stamp-law in respect of such instrument:

Provided that no such prosecution shall be instituted in the case of any instrument in respect of which such a penalty has been paid, unless it appears to the Collector that the offence was committed with an intention of evading payment of the proper duty.

44. Persons paying duty or penalty may recover same in certain cases.—(1) When any duty or penalty has been paid under section 35, section 37, section 40 or section 41, by any person in respect of an instrument, and, by agreement or under the provisions of section 29 or any other enactment in force at the time such instrument was executed, some other person was bound to bear the expense of providing the proper stamp for such instrument, the first-mentioned person shall be entitled to recover from such other person the amount of the duty or penalty so paid.

(2) For the purpose of such recovery any certificate granted in respect of such instrument under this Act shall be conclusive evidence of the matters therein certified.

(3) Such amount may, if the Court thinks fit, be included in any order as to costs in any suit or proceeding to which such persons are parties and in which such instrument has been tendered in evidence. If the Court does not include the amount in such order, no further proceedings for the recovery of the amount shall be maintainable.

45. Power to Revenue authority to refund penalty or excess duty in certain cases.—(1) Where any penalty is paid under section 35 or section 40, the [2][Chief Revenue Authority] may, upon application in writing made within one year from the date of the payment, refund such penalty wholly or in part.

(2) Where, in the opinion of the [2][Chief Revenue Authority], stamp-duty in excess of that which is legally chargeable has been charged and paid under section 35 or section 40, such authority may, upon application in writing made within three months of the order charging the same, refund the excess.

[1] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981;, s. 5 and Sch. Sch. IV (Only to the extent of Islamabad Capital Territory;, for "Code of Civil Procedure, section 144, clause 3".

[2] Subs, by A.O., 1961, Art. 2 and Sch., for "Chief Controlling Revenue authority" (*with effect from the* 23rd *March*, 1956).
For definition, *see* the General Clauses Act, 1897 (Act No. X of 1897), s. 3 (9a). In the N.W.F.P., the reference to the Chief Controlling Revenue-authority should be construed as a reference to the Revenue Commissioner.- *See* the N.W.F.P. Law and Justice Regulation, 1901 (VII of 1901), s. 6 (1) (*d*).

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46. Non-liability for loss of instruments sent under section 38.—(1) If any instrument sent to the Collector under section 38, sub-section (2), is lost, destroyed or damaged during transmission, the person sending the same shall not be liable for such loss, destruction or damage.

(2) When any instrument is about to be so sent, the person from whose possession it came into the hands of the person impounding the same, may require a copy thereof to be made at the expense of such first-mentioned person and authenticated by the person impounding such instrument.

47. Power of payer to stamp bills and promissory notes received by him unstamped.— When any bill of exchange [1][or promissory note] chargeable with the duty of one anna is presented for payment unstamped, the person to whom it is so presented may affix thereto the necessary adhesive stamp, and, upon cancelling the same in manner hereinbefore provided, may pay the sum payable upon such bill [2][or note], and may charge the duty against the person who ought to have paid the same, or deduct it from the sum payable as aforesaid, and such bill [2][or note] shall, so far as respects the duty, be deemed good and valid:

Provided that nothing herein contained shall relieve any person from any penalty or proceeding to which he may be liable in relation to such bill [2][or note].

48. Recovery of duties and penalties.— All duties, penalties and other sums required to be paid under this Chapter may be recovered by the Collector by distress and sale of the moveable property of the person from whom the same are due, or by any other process for the time being in force for the recovery of arrears of land-revenue.

CHAPTER V

ALLOWANCES FOR STAMPS IN CERTAIN CASES

49. Allowances for spoiled stamps.— Subject to such rules as may be made by [3][the Provincial Government] as to the evidence to be required, or the enquiry to be made, the Collector may, on application made within the period prescribed in section 50, and if he is satisfied as to the facts, make allowance for impressed stamps spoiled in the cases hereinafter mentioned, namely :—

(a) the stamp on any paper inadvertently and undesignedly spoiled, obliterated or by error in writing or any other means rendered unfit for the purpose intended before any instrument written thereon is executed by any person:

(b) the stamp on any document which is written out wholly or in part, but which is not signed or executed by any party thereto:

(c) in the case of bills of exchange [4][payable otherwise than on demand] [5]* or promissory notes—

[1] Subs. by the Indian Finance Act, 1927 (Act No. V of 1927), s. 5, for "promissory note or cheque".
[2] Subs. *ibid.*, for "note or cheque".
[3] The original words "G. G. in C" have successively been amended by the Decentralization Act, 1914 (Act No. IV of 1914), s. 2 and Sch., Pt. I, A.O., 1937 and A.O., 1964, Art. 2 and Sch., to read as above.
[4] Ins. by the Indian Finance Act, 1927 (Act No. V of 1927), s. 5.
[5] The word "cheques" rep., *ibid.*

(1) the stamp on [1][any such bill of exchange] [2][* *] signed by or on behalf of the drawer which has not been accepted or made use of in any manner whatever or delivered out of his hands for any purpose other than by way of tender for acceptance: provided that the paper on which any such stamp is impressed does not bear any signature intended as or for the acceptance of any bill of exchange [2][* *] to be afterwards written thereon:

(2) the stamp on any promissory note signed by or on behalf of the maker which has not been made use of in any manner whatever or delivered out of his hands:

(3) the stamp used or intended to be used for [1][any such bill of exchange] [3][*] or promissory note signed by, or on behalf of, the drawer thereof, but which from any omission or error has been spoiled or rendered useless, although the same, being a bill of exchange [4]* *, may have been presented for acceptance or accepted or endorsed, or, being a promissory note, may have been delivered to the payee: provided that another completed and duly stamped bill of exchange [5]* or promissory note is produced identical in every particular, except in the correction of such omission or error as aforesaid, with the spoiled bill [5][*] or note:

(d) the stamp used for an instrument executed by any party thereto which—

(1) has been afterwards found to be absolutely void in law from the beginning:

(2) has been afterwards found unfit, by reason of any error or mistake therein, for the purpose originally intended:

(3) by reason of the death of any person by whom it is necessary that it should be executed, without having executed the same, or of the refusal of any such person to execute the same, cannot be completed so as to effect the intended transaction in the form proposed:

(4) for want of the execution thereof by some material party, and his inability or refusal to sign the same, is in fact incomplete and insufficient for the purpose for which it was intended:

(5) by reason of the refusal of any person to act under the same, or to advance any money intended to be thereby secured, or by the refusal or non-acceptance of any office thereby granted, totally fails of the intended purpose:

(6) becomes useless in consequence of the transaction intended to be thereby effected being effected by some other instrument between the same parties and bearing a stamp of not less value:

(7) is deficient in value and the transaction intended to be thereby effected has been effected by some other instrument between the same parties and bearing a stamp of not less value:

(8) is inadvertently and undesignedly spoiled, and in lieu whereof another instrument made between the same parties and for the same purpose is executed and duly stamped:

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[1] Subs. by the Indian Finance Act, 1927 (Act No. V of 1927), s. 5, for "any bill of exchange".
[2] The words "or cheque" rep., *ibid.*
[3] The word "cheque" rep., *ibid.*
[4] The words "or cheque" rep., *ibid.*
[5] The word "cheque" rep., *ibid.*

Provided that, in the case of an executed instrument, no legal proceeding has been commenced in which the instrument could or would have been given or offered in evidence and that the instrument is given up to be cancelled.

Explanation.—*The* certificate of the Collector under section 32 that the full duty with which an instrument is chargeable has been paid is an impressed stamp within the meaning of this section.

50. Application for relief under section 49 when to be made.— The application for relief under section 49 shall be made within the following periods, that is to say,—

(1) in the cases mentioned in clause (d) (5), within two months of the date of the instrument:

(2) in the case of a stamped paper on which no instrument has been executed by any of the parties thereto, within six months after the stamp has been spoiled:

(3) in the case of a stamped paper in which an instrument has been executed by any of the parties thereto, within six months after the date of the instrument, or, if it is not dated, within six months after the execution thereof by the person by whom it was first or alone executed:

Provided that,—

(a) when the spoiled instrument has been for sufficient reasons sent out of [1][Pakistan], the application may be made within six months after it has been received back in [1][Pakistan] :

(*b*) when, from unavoidable circumstances, any instrument for which another instrument has been substituted cannot be given up to be cancelled within the aforesaid period, the application may be made within six months after the date of execution of the substituted instrument.

51. Allowance in case of printed forms no longer required by Corporations.— The [2][Chief Revenue Authority] [3][or the Collector if empowered by the [2][Chief Revenue Authority] in this behalf] may, without limit of time, make allowance for stamped papers used for printed forms of instruments [4][by any banker or] by any incorporated company or other body corporate, if for any sufficient reason such forms have ceased to be required by the said [5][banker,] company or body corporate: provided that such authority is satisfied that the duty in respect of such stamped papers has been duly paid.

52. Allowance for misused stamps.—

(a) When any person has inadvertently used, for an instrument chargeable with duty, a stamp of a description other than that prescribed for such instrument by the rules made under this Act, or a stamp of greater value than was necessary, or has inadvertently used any stamp for an instrument not chargeable with any duty; or

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[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October,* 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, Arts. 3(2) and 4, for "British India".

[2] Subs, by A.O., 1961, Art. 2 and Sch., for "Chief Controlling Revenue authority" (*with effect from the* 23rd *March*, 1956).

For definition, *see* the General Clauses Act, 1897 (Act No. X of 1897), s. 3 (9a). In the N.W.F.P., the reference to the Chief Controlling Revenue-authority should be construed as a reference to the Revenue Commissioner.- *See* the N.W.F.P. Law and Justice Regulation, 1901 (VII of 1901), s. 6 (1) (*d*).

[3] Ins. by the Decentralization Act, 1914 (Act No. IV of 1914), s. 2 and Sch., Part I.

[4] Ins. by the Indian Stamp (Amendment) Act, 1906 (Act No. V of 1906), s. 6.

[5] Ins. by the Indian Stamp (Amdt.) Act, 1906 (Act No. V of 1906), s. 6.

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(b) when any stamp used for an instrument has been inadvertently rendered useless under section 15, owing to such instrument having been written in contravention of the provisions of section 13 ;

the Collector may, on application made within six months after the date of the instrument, or, if it is not dated, within six months after the execution thereof by the person by whom it was first or alone executed, and upon the instrument, if chargeable with duty, being re-stamped with the proper duty, cancel and allow as spoiled the stamp so misused or rendered useless.

53. Allowance for spoiled or misused stamps how to be made.— In any case in which allowance is made for spoiled or misused stamps, the Collector may give in lieu thereof—

(a) other stamps of the same description and value; or

(b) if required and he thinks fit, stamps of any other description to the same amount in value; or,

(c) at his discretion, the same value in money, deducting one anna for each rupee or fraction of a rupee.

54. Allowance for stamps not required for use.— When any person is possessed of a stamp or stamps which have not been spoiled or rendered unfit or useless for the purpose intended, but for which he has no immediate use, the Collector shall repay to such person the value of such stamp or stamps in money, deducting one anna for each rupee or portion of a rupee, upon such person delivering up the same to be cancelled, and proving to the Collector's satisfaction–

(a) that such stamp or stamps were purchased by such person with a *bona fide* intention to use them; and

(b) that he has paid the full price thereof; and

(c) that they were so purchased within the period of six months next preceding the date on which they were so delivered:

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Provided that, where the person is a licensed vendor of stamps, the Collector may, if he thinks fit, make the repayment of the sum actually paid by the vendor without any such deduction as aforesaid.

55. Allowance on renewal of certain debentures.— When any duly stamped debenture is renewed by the issue of a new debenture in the same terms, the Collector shall, upon application made within one month, repay to the person issuing such debenture, the value of the stamp on the original or new debenture, whichever shall be less:

Provided that the original debenture is produced before the collector and cancelled by him in such manner as the [1][Provincial Government] may direct.

[1] Subs. by A.O., 1937, for "G.G. in C.".

Explanation.—A debenture shall be deemed to be renewed in the same terms within the meaning of this section notwithstanding following changes :—

(a) the issue of two or more debentures in place of one original debenture, the total amount secured being the same;

(b) the issue of one debenture in place of two or more original debentures, the total amount secured being the same;

(c) the substitution of the name of the holder at the time of renewal for the name of the original holder; and

(d) the alteration of the rate of interest or the dates of payment thereof.

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CHAPTER VI

REFERENCE AND REVISION

56. Control of, and statement of case to, Chief Revenue Authority.— (1) The powers exercisable by a Collector under Chapter IV and Chapter V [1][and under clause (a) of the first proviso to section 26] shall in all cases be subject to the control of the [2][Chief Revenue Authority].

(2) If any Collector, acting under section 31, section 40 or section 41, feels doubt as to the amount of duty with which any instrument is chargeable, he may draw up a statement of the case, and refer it, with his own opinion thereon, for the decision of the [2][Chief Revenue Authority].

(3) Such authority shall consider the case and send a copy of its decision to the Collector, who shall proceed to assess and charge the duty (if any) in conformity with such decision.

57. Statement of case by Chief Revenue Authority to High Court.— [3][(1) The Chief Revenue Authority may state many case referred to it under section 56, sub-section (2), or otherwise coming to its notice and refer such case, with its own opinion thereon, to the High Court].

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(2) Every such case shall be decided by not less than three Judges of the High Court [4][* * *] to which it is referred, and in case of difference the opinion of the majority shall prevail.

58. Power of High Court to call for further particulars as to case stated.— If the High Court [4][* * *] is not satisfied that the statements contained in the case are sufficient to enable it to determine the questions raised thereby, the Court may refer the case back to the Revenue-authority by which it was stated, to make such additions thereto or alterations therein as the Court may direct in that behalf.

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[1] Ins. by the Indian Stamp (Amdt.) Act, 1904 (Act No. XV of 1904), s. 7.

[2] Subs, by A.O., 1961, Art. 2 and Sch., for "Chief Controlling Revenue authority" (*with effect from the* 23rd *March,* 1956).
For definition, *see* the General Clauses Act, 1897 (Act No. X of 1897), s. 3 (9a). In the N.W.F.P., the reference to the Chief Controlling Revenue-authority should be construed as a reference to the Revenue Commissioner.- *See* the N.W.F.P. Law and Justice Regulation, 1901 (VII of 1901), s. 6 (1) (*d*).

[3] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981;, s. 5 and Sch. IV (Only to the extent of Islamabad Capital Territory, for sub-section (1).

[4] The word "or Chief Court", as amended by A.O., 1937. A.O., 1949 and Act 26 of 1951, have been omitted by Ord. XXI of *1960,* s. 3 and 2nd Sch., (*with effect from the 14th October,* 1955).

59. Procedure in disposing of case stated.—(1) The High Court [1][* * *], upon the hearing of any such case, shall decide the questions raised thereby, and shall deliver its judgment thereon containing the grounds on which such decision is founded.

(2) The Court shall send to the Revenue-authority by which the case was stated a copy of such judgment under the seal of the Court and the signature of the Registrar; and the Revenue-authority shall, on receiving such copy, dispose of the case conformably to such judgment.

60. Statement of case by other Courts to High Court.— (1) If any Court, other than a Court mentioned in section 57, feels doubt as to the amount of duty to be paid in respect of any instrument under proviso (a) to section 35, the Judge may draw up a statement of the case and refer it, with his own opinion thereon, for the decision of the High Court [1][* * *] to which, if he were the [2][Chief Revenue Authority], he would, under section 57, refer the same.

(2) Such Court shall deal with the case as if it had been referred under section 57, and send a copy of its judgment under the seal of the Court and the signature of the Registrar to the [2][Chief Revenue Authority] and another like copy to the Judge making the reference, who shall, on receiving such copy, dispose of the case conformably to such judgment.

(3) References made under sub-section (1), when made by a Court subordinate to a District Court, shall be made through the District Court, and, when made by any subordinate Revenue Court, shall be made through the Court immediately superior.

61. Revision of certain decisions of Courts regarding the sufficiency of stamps.—(1) When any Court in the exercise of its civil or revenue jurisdiction or any Criminal Court in any proceeding under Chapter XII or Chapter XXXVI of the Code of Criminal Procedure, 1898 (V of 1898), makes any order admitting any instrument in evidence as duly stamped or as not requiring a stamp, or upon payment of duty and a penalty under section 35, the Court to which appeals lie from, or references are made by, such first mentioned Court may, of its own motion or on the application of the Collector, take such order into consideration.

(2) If such Court, after such consideration, is of opinion that such instrument should not have been admitted in evidence without the payment of duty and penalty under section 35, or without the payment of a higher duty and penalty than those paid, it may record a declaration to that effect, and determine the amount of duty with which such instrument is chargeable, and may require any person in whose possession or power such instrument then is, to produce the same, and may impound the same when produced.

(3) When any declaration has been recorded under sub-section (2), the Court recording the same shall send a copy thereof to the Collector, and, where the instrument to which it relates has been impounded or is otherwise in the possession of such Court, shall also send him such instrument.

(4) The Collector may thereupon, notwithstanding anything contained in the order admitting such instrument in evidence, or in any certificate granted under section 42, or in section 43, prosecute any person for any offence against the Stamp-law, which the Collector considers him to have committed in respect of such instrument:

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[1] The word "or Chief Court", as amended by A.O., 1937. A.O., 1949 and Act XXVI of 1951, have been omitted by Ord. XXI of *1960*, s. 3 and 2nd Sch., (*with effect from the 14th October,* 1955).

[2] Subs, by A.O., 1961, Art. 2 and Sch., for "Chief Controlling Revenue authority" (*with effect from the* 23rd *March,* 1956).
For definition, *see* the General Clauses Act, 1897 (Act No. X of 1897), s. 3 (9a). In the N.W.F.P., the reference to the Chief Controlling Revenue-authority should be construed as a reference to the Revenue Commissioner.- *See* the N.W.F.P. Law and Justice Regulation, 1901 (VII of 1901), s. 6 (1) (*d).*

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Provided that–

(*a*) no such prosecution shall be instituted where the amount (including duty and penalty) which, according to the determination of such Court, was payable in respect of the instrument under section 35, is paid to the Collector, unless he thinks that the offence was committed with an intention of evading payment of the proper duty;

(*b*) except for the purposes of such prosecution, no declaration made under this section shall affect the validity of any order admitting any instrument in evidence, or of any certificate granted under section 42.

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CHAPTER VII

CRIMINAL OFFENCES AND PROCEDURE

[1]**62. Penalty for executing, etc., instrument not duly stamped.—**(1) Any person—

(*a*) drawing, making, issuing, endorsing or transferring, or signing otherwise than as a witness, or presenting for acceptance or payment, or accepting, paying or receiving payment of, or in any manner negotiating, any bill of exchange [2][payable otherwise than on demand] [3]* or promissory note without the same being duly stamped; or

(*b*) executing or signing otherwise than as a witness any other instrument chargeable with duty without the same being duly stamped; or

(*c*) voting or attempting to vote under any proxy not duly stamped; shall for every such offence be punishable with fine which may extend to five hundred rupees:

Provided that, when any penalty has been paid in respect of any instrument under section 35, section 40 or section 61, the amount of such penalty shall be allowed in reduction of the fine (if any) subsequently imposed under this section in respect of the same instrument upon the person who paid such penalty.

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(2) If a share-warrant is issued without being duly stamped, the company issuing the same, and also every person who, at the time when it is issued, is the managing director or secretary or other principal officer of the company, shall be punishable with fine which may extend to five hundred rupees.

63. Penalty for failure to cancel adhesive stamp.— Any person required by section 12 to cancel an adhesive stamp, and failing to cancel such stamp in manner prescribed by that section, shall be punishable with fine which may extend to one hundred rupees.

[1]For modification of provisions in respect of instruments to which the Stamp (Specified Instruments) Act, 1924 (Act No. XIII of 1924), applies, *see* s. 3 of that Act.
[2] Ins. by the Indian Finance Act, 1927 (Act No. V of 1927), s. 5.
[3] The word "cheque" rep. *ibid.*

64. Penalty for omission to comply with provisions of section 27.— Any person who, with intent to defraud the Government,—

(a) executes any instrument in which all the facts and circumstances required by section 27 to be set forth in such instrument are not fully and truly set forth; or,

(b) being employed or concerned in or about the preparation of any instrument, neglects or omits fully and truly to set forth therein all such facts and circumstances ; or

(c) does any other act calculated to deprive the Government of any duty or penalty under this Act;

shall be punishable with fine which may extend to five thousand rupees.

65. Penalty for refusal to give receipt, and for devices to evade duty on receipts.— Any person who,—

(a) being required under section 30 to give a receipt, refuses or neglects to give the same; or,

(b) with intent to defraud the Government of any duty, upon a payment of money or delivery of property exceeding twenty rupees in amount or value, give a receipt for an amount or value not exceeding twenty rupees, or separates or divides the money or property paid or delivered;

shall be punishable with fine which may extend to one hundred rupees.

66. Penalty for not making out policy, or making one not duly stamped.— Any person who—

(a) receives, or takes credit for, any premium or consideration for any contract of insurance and does not, within one month after receiving, or taking credit for, such premium or consideration, make out and execute a duly stamped policy of such insurance; or

(b) makes, executes or delivers out any policy which is not duly stamped, or pays or allows in account, or agrees to pay or allow in account, any money upon, or in respect of, any such policy;

shall be punishable with fine which may extend to two hundred rupees.

67. Penalty for not drawing full number of bills or marine polices purporting to be in sets.— Any person drawing or executing a bill of exchange [1][payable otherwise than on demand] or a policy of marine insurance purporting to be drawn or executed in a set of two or more, and not at the same time drawing or executing on paper duly stamped the whole number of bills or policies of which such bill or policy purports the set to consist, shall be punishable with fine which may extend to one thousand rupees.

[1] Ins. by the Indian Finance Act, 1927 (Act No. V of 1927), s. 5.

68. Penalty for post-dating bills, and for other devices to defraud the revenue.— Any person who—

(a) with intent to defraud the Government of duty, draws, makes or issues any bill of exchange or promissory note bearing a date subsequent to that on which such bill or note is actually drawn or made; or

(b) knowing that such bill or note has been so postdated, endorses, transfers, presents for acceptance or payment, or accepts, pays or receives payment of, such bill or note, or in any manner negotiates the same; or

(c) with the like intent, practices or is concerned in any act, contrivance or device not specially provided for by this Act or any other law for the time being in force ;

shall be punishable with fine which may extend to one thousand rupees.

69. Penalty for breach of rule relating to sale of stamps and for unauthorised sale.—(a) Any person appointed to sell stamps who disobeys any rule made under section 74 ; and

(b) any person not so appointed who sells or offers for sale any stamp (other than a one-anna [1][or half an anna] adhesive stamp) ;

shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

70. Institution and conduct of prosecutions.— (1) No prosecution in respect of any offence punishable under this Act [2][* * *] shall be instituted without the sanction of the Collector or such other officer as [3][the [4][Provincial Government]] generally, or the Collector specially, authorises in that behalf.

(2) The [5][Chief Revenue Authority], or any officer generally or specially authorized by it in this behalf, may stay any such prosecution or compound any such offence.

(3) The amount of any such composition shall be recoverable in the manner provided by section 48.

71. Jurisdiction of Magistrates.— No Magistrate other than [6][* * *] a Magistrate whose powers are not less than those of a Magistrate of the second class, shall try any offence under this Act.

72. Place of trial.— Every such offence committed in respect of any instrument may be tried in any district [7][* * *] in which such instrument is found as well as in any district [7][* * *] in which such offence might be tried under the Code of Criminal Procedure for the time being in force.

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[1] Ins. by the Indian Stamp (Amdt.) Act, 1906 (Act No. V of 1906), s. 3.
[2] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981;, s. 5 and Sch. IV (Only to the extent of Islamabad Capital Territory).
[3] Subs. by A.O., 1937, for "the L. G.".
[4] Subs. by A.O., 1964, Art. 2 and Sch., for "collecting Government".
[5] Subs, by A.O., 1961, Art. 2 and Sch., for "Chief Controlling Revenue authority" (*with effect from the* 23rd *March,* 1956).
For definition, *see* the General Clauses Act, 1897 (Act No. X of 1897), s. 3 (9a). In the N.W.F.P., the reference to the Chief Controlling Revenue-authority should be construed as a reference to the Revenue Commissioner.- *See* the N.W.F.P. Law and Justice Regulation, 1901 (VII of 1901), s. 6 (1) (*d).*
[6] The words "a Presidency Magistrate or" omitted by A.O., 1949, Sch.
[7] The words "or presidency-town" rep. by the Federal Laws (Revision and Declaration) Act, 1951 (Act No. XXVI of 1951), s. 3 and II. Sch.

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CHAPTER VIII

SUPPLEMENTAL PROVISIONS

73. Books, etc., to be open to inspection.— Every public officer having in his custody any registers, books, records, papers, documents or proceedings, the inspection whereof may tend to secure any duty, or to prove or lead to the discovery of any fraud or omission in relation to any duty, shall at all reasonable times permit any person authorised in writing by the Collector to inspect for such purpose the registers, books, papers, documents and proceedings, and to take such notes and extracts as he may deem necessary, without fee or charge.

74. Power to make rules relating to sale of stamps.— The [1][Provincial Government] [2][* * *] may make [3]rules for regulating—

(a) the supply and sale of stamps and stamped papers,

(b) the persons by whom alone such sale is to be conducted, and

(c) the duties and remuneration of such persons:

Provided that such rules shall not restrict the sale of one anna [4][or half an anna] adhesive stamps.

75. Power to make rules generally to carry out Act.— The [5][Provincial Government] may make rules[6] to carry out generally the purposes of this Act, and may by such rules prescribe the fines, which shall in no case exceed five hundred rupees, to be incurred on breach thereof.

76. Publication of rules.—[7][(1) All rules made under this Act shall be published in the official Gazette.]

(2) All rules published as required by this section shall, upon such publication, have effect as if enacted by this Act.

[8][**76A. Delegation of certain powers.—** [9][The [10][Federal Government]] [11][* * *] and the Provincial Government, may by notification in the official Gazette] delegate—

(a) all or any of the powers conferred on it by sections 2 (9), 33 (3) *(b)*, 70 (1), 74 and 78 to the [12][Chief Revenue Authority] ; and

(b) all or any of the powers conferred on the [12][Chief Revenue Authority] by sections 45 (1) (2), 56 (I) and 70 (2) to such subordinate Revenue-authority as may be specified in the notification.]

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[1] Subs. by A.O., 1964, Art. 2 and Sch., for "collecting Government" which had been subs. by A.O., 1937, for "L. G."
[2] The words "subject to the control of the G.G. in C;" rep. by A. O. 1937.
[3] For such rules, *see* different local Rules and Orders.
[4] Ins. by the Indian Stamp (Amdt.) Act, 1906 (Act No. V of 1906)., s. 3.
[5] Subs. by A.O., 1964, Art. 2 and Sch., for "collecting Government" which had been subs. by A.O., 1937, for "G. G. in C.".
[6] *See* the Indian Stamp Rules, 1925.
For the Punjab Non-Judicial Stamps Refund, Renewal and Disposal Rules, 1954, *see* Gaz. of Punjab, 1954, Pt. I, p. 970.
[7] Subs. by A.O., 1937, for the original sub-section.
[8] S. 76A ins. by the Decentralization Act, 1914 (Act No. IV of 1914), s. 2 and Sch., Pt. I.
[9] Subs. by A.O., 1937, for "The L. G. may, by notification in the local official Gazette".
[10] Subs. by F.A.O., 1975, Art, 2 and Table, for "Central Government".
[11] The words and figures "subject to the provisions of section 124 (1) of the Government of India Act, 1935," omitted by A.O., 1961, Art. 2 and Sch. (*with effect from the 23rd March.* 1956).
[12] Subs, by A.O., 1961, Art. 2 and Sch., for "Chief Controlling Revenue authority" (*with effect from the* 23rd *March,* 1956).
For definition, *see* the General Clauses Act, 1897 (Act No. X of 1897), s. 3 (9a). In the N.W.F.P., the reference to the Chief Controlling Revenue-authority should be construed as a reference to the Revenue Commissioner.- *See* the N.W.F.P. Law and Justice Regulation, 1901 (VII of 1901), s. 6 (1) (*d*).

77. Saving as to court-fees.— Nothing in this Act contained shall be deemed to affect the duties chargeable under any enactment for the time being in force relating to court-fees.

78. Act to be translated and old cheaply.— Every [1][Provincial Government] shall make provision for the sale of translation of this Act in the principal vernacular languages of the territories administered by it at a price not exceeding four annas per copy.

79. [Repealed] *Rep. by the Repealing and Amending Act,* 1914 (*X of* 1914), s. 3 *and Sch. II.*

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[1] Subs. by A.O..1937, for "L. G.".

[1][**SCHEDULE 1**

STAMP-DUTY ON INSTRUMENTS

[See sections 3 and 27A]

Description of instruments **(1)**	**Proper stamp-duty** **(2)**
1. ACKNOWLEDGMENT of a debt exceeding twenty rupees in amount, or value, written or signed by, or on behalf of, a debtor in order to supply evidence of such debt in any book other than a banker's pass-book or on a separate piece of paper when such book or paper is left in the creditor's possession provided that such acknowledgement does not contain any promise to pay the debt or any stipulation to pay interest or to deliver any goods or other property:—	
(a) where such amount does not exceed two thousand rupees;	One Rupee
(b) where such amount exceeds two thousand rupees but does not exceed ten thousand rupees; and	Two Rupees
(c) where such amount exceeds ten thousand rupees.	Five Rupees
2. ADMINISTRATION BOND, including a bond given under sections 291, 375 and 376 of the Succession Act, 1925 (XXXIX of 1925), section 6 of the Government Savings Banks Act, 1873 (V of 1873)—	
(a) where the amount does not exceed Rs. 1,000;	The same duty as on a Bond (No. 15) for such amount.
(b) in any other case	One hundred Rupees
3. ADOPTION-DEED that is to say, any instrument (other than a will) recording an adoption or conferring or purporting to confer an authority to adopt.	One hundred Rupees
ADVOCATE, see ENTRY AS AN ADVOCATE (No. 30).	
4. AFFIDAVIT, including an affirmation or declaration in the case of persons by law allowed to affirm or declare instead of swearing, except affidavit or declaration in writing when made—	Fifty Rupees

[1]Subs. by the Finance Act, 2019 (Act No. V of 2019), s.2, (as is in force in the Islamabad Capital Territory).

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EXEMPTIONS:— Affidavit or declaration in writing when made—

(a) as a condition of enrolment under the Pakistan Army Act, 1952 (XXXIX of 1952), or the Pakistan Air Force Act, 1953 (VI of 1953) or the Pakistan Navy Ordinance, 1961 (XXXV of 1961);

(b) for the immediate purpose of being filed or used in any Court or before the officer of any Court; or

(c) for the sole purpose of enabling any person to receive any pension or charitable allowance.

5. AGREEMENT OR MEMORANDUM OF AN AGREEMENT—

(a) if relating to the sale of a bill of exchange;	Two Rupees.
(b) if relating to the sale of Government security;	One Rupee for every Rs. 10,000 or part thereof of the value of the security, subject to a maximum of One Hundred Rupees.
(c) if relating to the sale of a share in an incorporated company or other body corporate; and	One Rupee for every rupees 5,000 or part thereof of the value of the share.
(d) If not otherwise provided for.	Fifty Rupees

EXEMPTIONS:—Agreement or memorandum of an agreement—

(a) for or relating to the purchase of or sale of goods or merchandise exclusively, not being a note or memorandum chargeable under No.43;

(b) made in the form of tenders to the Federal Government for or relating to any loan.

AGREEMENT TO LEASE See LEASE (No.35).

6. AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE, that is to say, any instrument evidencing an agreement relating to—

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(1) the deposit of title-deeds or instruments constituting or being evidence of the title to any property whatever (other than marketable security), or	
(2) the pawn or pledge of movable property, where such deposit, pawn or pledge has been made by way of security for the re-payment of money advanced or to be advanced by way of loan or an existing or future debt—	
(a) if such loan or debt is repayable on demand or more than three months from the date of the instrument evidencing the agreement;	
(i) in the case of banking companies or other financial institutions, when the entire finance is not based on interest; and	One-fifth of one percent that is to say, 0.2% of the loan amount subject to a maximum of one hundred rupees.
(ii) in any other case	One-fifth of one percent that is to say, 0.2% of the loan amount; and
(b) if such loan or debt is repayable not more than three months from the date of such instrument;	
(i) in the case of banking companies or other financial institutions, when the entire finance is not based on interest; and	One-tenth of one percent that is to say 0.1% of the loan subject to a maximum of fifty thousand rupees.
(ii) in any other case	One-tenth of one percent that is to say 0.1% of the loan amount.
7. APPOINTMENT IN EXECUTION OF A POWER where made by any writing not being a will—	
(a) of trustees; and	Fifty Rupees.
(b) of property, movable or immovable	One hundred Rupees.
8. APPRAISEMENT OR VALUATION made otherwise than under an order of the Court in the course of a suit—	

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(a) where the amount does not exceed Rs. 1,000; and	The same duty as on a Bond (No. 15) for such amount.
(b) in any other case	One Hundred rupees.

EXEMPTIONS:—

(a) Appraisement or valuation made for the information of one party only, and not being in any manner obligatory between parties either by agreement or operation of law; and

(b) Appraisement, of crop for the purpose of ascertaining the amount to be given to a landlord as rent.

9. APPRENTICESHIP-DEED, including every writing relating to the service or tuition of any apprentice clerk or servant, placed with any master to learn any profession, trade or employment not being ARTICLES OF CLERKSHIP (No. 11). — One Hundred rupees.

EXEMPTIONS:— Instrument of apprenticeship executed by a Magistrate under the Apprenticeship Ordinance, 1962 (LVI of 1962), or by which a person is apprenticed by or at the charge of any public charity.

10. ARTICLES OF ASSOCIATION OF A COMPANY—

(a) Where the company has no share capital or the nominal share capital does not exceed Rs. 2,500.	Fifty rupees.
(b) where the nominal share capital exceeds Rs. 2,500 but does not exceed Rs. 1,00,000;	One hundred rupees.
(c) where the nominal share capital exceeds Rs. 1,00,000 but does not exceed Rs. 10,00,000; and	Two hundred rupees.
(d) Where the nominal share capital exceeds Rs. 10,00,000.	Five hundred rupees.

EXEMPTIONS:—Articles of any Association and not formed for profit and registered under section 42 of the Companies Act, 2017 (XIX of 2017).

See also

MEMORANDUM OF ASSOCIATION OF A COMPANY (No.39). — One Thousand rupees.

11. ARTICLES OF CLERKSHIP OR contract whereby any person first becomes bound to serve as a clerk in order to his admission as an attorney in any High Court.

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ASSIGNMENT, *See* **CONVEYANCE** (No.23), **TRANSFER** (No.62) and **TRANSFER OF LEASE** (No.63), as the case may be. **ATTORNEY**, *See* **ENTRY AS AN ATTORNEY** (No. 30), **AND POWER OF ATTORNEY** (No.48). **AUTHORITY TO ADOPT**. See **ADOPTION-DEED** (No. 3)	
11A AIR TICKETS issued by any Airline—	
(a) for domestic flights;	Twenty five rupees per ticket.
(b) for international flights	Two hundred and fifty rupees per ticket.
11B AUTHENTICATED DECLARATIONS that is to say declaration of newspaper, periodicals or printing presses authenticated by legally competent Authority.	Five thousand rupees per declaration
Explanation I. The duty shall be paid by a declarant.	
Explanation II. Declaration shall not be authenticated unless the duty is paid.	
12. AWARD, that is to say, any decision in writing by an arbitrator or umpire, not being an award directing a partition, on a reference made otherwise than by an order of the Court in the course of a suit.	Three percent of the amount or value of the property to which the award relates as set forth in such award.
13. BILL OF EXCHANGE as defined by section 2 (2) not being BOND, bank note or currency note—	
(a) where payable otherwise than on demand but not more than one year after date or sight—	
(i) if drawn singly; and	Two rupees for every one thousand rupees or part thereof of the amount of the Bill
(ii) if drawn in set of two or more, for each part of the set; and	One rupees for every one thousand rupees or part thereof of the amount of the Bill.
(b) where payable more than one year after date or sight.	
(i) If drawn singly;	Three rupees for every one thousand rupees or part thereof the amount of Bill.
(ii) If drawn in set of two for each part of the set; and	Two rupees for every one thousand rupees or part thereof the amount of Bill.

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(iii) If drawn in set of three for each part of the set;	One rupees for every one thousand rupees or part thereof the amount of Bill.
14. BILL OF LADING (including a through bill of lading). *Note*—If a bill of lading is drawn in parts, the proper stamps therefore must be borne by each one of the sets.	Ten rupee.
EXEMPTIONS:—	
(a) Bill of the lading when the goods therein described are received at a place within the limits of any port as defined under the Ports Act, 1908 (XV of 1908), and are to be delivered at another place within the limits of the same port; and	
(b) Bill of lading when executed out of Pakistan and relating to property to be delivered in Pakistan.	
15. BOND as defined by section 2 (5) not being a DEBENTURE (No.27) and not being otherwise provided for by this Act, or by the Court Fees Act, 1870 (VII of 1870)—	
(a) where the amount or value secured does not exceed five thousand rupees; and	Fifteen Rupees
(b) where it exceeds five thousand rupees for every additional amount of five hundred rupees or part thereof.	Fifteen Rupees
See **ADMINISTRATION BOND** (No.2), **BOTTOMRY BOND** (No.16), **CUSTOMS BOND** (No.26). **INDEMNITY BOND** (No.34), **RESPONDENTIA BOND** (No.56) **SECURITY BOND** (No.57).	
EXEMPTIONS:—Bond when executed by any person for the purpose of guaranteeing that the local income derived from private subscription to a Charitable dispensary or hospital or any other object of public utility shall not be less than a specified sum per mensum.	
16. BOTTOMRY BOND, that is to say, any instrument where by the master of a seagoing ship borrows money on the security of the ship to enable him to preserve the ship or prosecute her voyage.	The same duty as on a Bond (No.15) for the same amount.
17. CANCELLATION, instrument of (including any instrument by which any instrument previously executed is cancelled), if attested and not otherwise provided for.	Five hundred Rupees.
See also **RELEASE** (No.55), **REVOCATION OF SETTLEMENT** (No.58-B), **SURRENDER OF**	

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LEASE (No.61), **REVOCATION OF TRUST** (No.64-B).

18. CERTIFICATE OF SALE (in respect of each property put up as a separate lot and sold) granted to the purchaser of any property sold by public auction by a Civil or Revenue Court, or Collector or other Revenue Officer—	Four percent of the consideration equal to the amount of the purchase money.
19. CERTIFICATE OR OTHER DOCUMENT evidencing the right or title of the holder thereof or any other person, either to any shares, scrip or stock in or of any incorporated company or other body corporate, or to become proprietor of shares, scrip or stock in or of any such company or body. *See* also **LETTER OF ALLOTMENT OF SHARES** (No.36).	Fifty rupees.
20. CHARTER PARTY, that is to say, any instrument (except an agreement for the hire of a tug-steamer) whereby a vessel or some specified principal part thereof is let for the specified purposes of the charterer, whether it includes a penalty clause or not.	Fifty rupees.
21. **************************	One Hundred rupees.
22. COMPOSITION-DEED, that is to say, any instrument executed by a debtor whereby he conveys his property for the benefit of his creditors, or whereby payment of a composition or dividend on their debts is secured to the creditors, or whereby provision is made for the continuance of the debtor's business under the supervision of Inspector or under letters of licence for the benefit of his creditors.	
[1][**23.** On conveyance as defined under clause (10) of section 2 not being a transfer charged or exempted under Article 62, the stamp duty shall be levied at one percent of the value of the immovable property.]	
24. COPY OR EXTRACT certified to be a true copy or extract by or by order of any public officer and not chargeable under the law for the time being in force relating to court-fees—	

[1]Subs. by the Finance Act, 2025 (Act No. XIX of 2025), it extent to the Islamabad Capital Territory, s.2.

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(a) the original was not chargeable with duty or if the duty with which it was chargeable does not exceed four rupees; and	Five rupees.
(b) in any other case	Ten rupees.

EXEMPTION:—

(a) Copy of any paper which a public officer is expressly required by law to make or furnish for record in any public office or for any public purpose;

(b) Copy of, or extract from, any register relating to births, baptisms, aming, dedications, marriages (divorces), deaths or burials.

25. COUNTERPART OR DUPLICATE of any instrument chargeable with duty and in respect of which the proper duty has been paid—	
(a) if the duty with which the original instrument is chargeable does not exceed four rupees;	The same duty as is leviable on the original.
(b) in any other case	Ten rupees.

EXEMPTION:—

Counterpart of any lease granted to cultivator when such lease is exempted from duty.

26. CUSTOMS BOND—	
(a) where the amount does not exceed Rs. 1,000; and	The same duty as on a Bond (No.15) for such amount.
(b) in any other case	One Hundred rupees.
27. DEBENTURE OR PARTICIPATION TERM CERTIFICATE OR TERM FINANCE CERTIFICATE OR ANY OTHER INSTRUMENT OF REDEEMABLE CAPITAL OTHER THAN	One-twentieth of one percent that is to say 0.05% of the face value
A COMMERCIAL PAPER whether or not a mortgage debenture or Participant Term Certificate, or Term Finance Certificate or any other instrument of redeemable capital being a marketable security transferable or by endorsement or by separate instrument of transfer or by delivery**.**	Subject to a maximum of one million rupees

Explanation—The term "Debenture" includes any interest coupons attached thereto, but the amount of such coupons shall not be included in estimating the duty.

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EXEMPTION:—

A debenture issued by an incorporated company or other body corporate in terms of a registered mortgage-deed, duly stamped in respect of the full amount of debentures to be issued thereunder, whereby the company or body borrowing makes over, in whole or in part, their property to trustees for the benefit of the debenture, holders, provided that the debentures so issued are expressed to be issued in terms of the said mortgage-deed.

See also **BOND** (No.15), and **SECTIONS** 8 and 55.

DECLARATION OF ANY TRUST *See* **TRUST** (No.64).

27A DECREE, RULE OF A COURT OR AN ORDER OF A COURT based on mutual consent of parties in cases involving transfer on an immovable property including sale, exchange, gift or mortage, declaring or conferring a right in or title to an immovable property. ***Explanation:—*** Value in this Article, means value of property in accordance with the valuation table as notified by the Collector or where valuation table is not available the average sale price of a property of similar nature in the same revenue estate or locality in the preceding year as may be determined by Collector.	Four percent of the value of property.
28. DELIVERY-ORDER IN RESPECT OF GOODS, that is to say, any instrument entitling any person therein named, or his assigns or the holder thereof, to the delivery of any goods lying in any dock or port, or in any ware-house in which goods are stored or deposited on rent or hire, or upon any wharf such instrument being signed by or on behalf of the owner of such goods upon the sale or transfer of the property therein when such goods exceed in value twenty rupees.	Ten Rupees.

DEPOSIT OF TITLE-DEED. See **AGREEMENT** relating to **DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE** (No.6).

DISSOLUTION OF PARTNERSHIP. *See* **PARTNERSHIP** (No.46).

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29. DIVORCE—Instrument of, that is to say any instrument by which any person effects the dissolution of his marriage.	One Hundred rupees.
DOWER—Instrument of. *See* **SETTLEMENT** (No.58).	
DUPLICATE. *See* COUNTERPART (No.25).	
30. ENTRY AS AN ADVOCATE, OR ATTORNEY ON THE ROLL OF ANY HIGH COURT—under the Legal Practitioners and Bar Councils Act, 1973 (XXXV of 1973)—	
(a) in the case of an Advocate; and	One thousand five hundred rupees.
(b) in the case of an Attorney	Two thousand rupees.
31. EXCHANGE OF PROPERTY—Instrument of—	The same duty as is leviable on a Conveyance (No.23) for a consideration equal to the value of the property of greatest value as set forth in such instrument.
EXTRACT. *See* **COPY** (No.24)	
32. FURTHER CHARGE—Instrument of, that is to say, any instrument imposing a further charge on mortgaged property—	
(a) when the original mortgage is one of the description referred to in clause (*a*) of Article No.40 (that is, with possession); and	The same duty as on a Conveyance (No.23) for a consideration equal to the amount of the further charge secured by such instrument.
(b) when such mortgage is one of the description referred to in clause (*b*) of Article No.40 (that is, without possession)—	
(i) if at the time of execution of the instrument of further charge possession of the property is given or agreed to be given under such instrument; and	The same duty as on a Conveyance (No.23) for a consideration equal to the total amount of the charge (including the original mortgage and any further charge already made) less the duty already paid on such original mortgaged and further charge.

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(ii) If possession is not so given.	The same duty as on a Bond (No.15) for the amount of the further charge secured by such instrument.
33. GIFT—Instrument of, not being **SETTLEMENT**(No.58) **OR WILL OR TRANSFER** (No.62). **HIRING AGREEMENT** or **AGREEMENT FOR SERVICE**. *See* **AGREEMENT** (No.5).	The same duty as is leviable on a Conveyance (No.23) for a consideration equal to the value of the property as set-forth in such instrument.
34. INDEMNITY BOND. **INSPECTORSHIP-DEED**—*See* **COMPOSITION-DEED** (No. 22).**INSURANCE**— See **POLICY OF INSURANCE** (No. 47).	The same duty as on a Security Bond (No. 57) for the same amount.
35. LEASE, including an under-lease or sub-lease and any agreement to let or sub-let—	
(a) where by such lease the rent is fixed and no premium is paid or delivered—	
(i) where the lease purports to be for a term of less than one year;	Two percent of the whole amount payable or deliverable under such lease.
(ii) where the lease purports to be for a term of not less than one year but not more than three years;	Two percent of the amount or value of the average annual rent reserved.
(iii) where the lease purports to be for a term in excess of three years, but not more than twenty years;	Two percent of the consideration equal to the amount or value of the average annual rent reserved.
(iv) where the lease purports to be for a term in excess of twenty years or in perpetuity; and	Two percent of the consideration equal to the whole amount of rents which would be paid or delivered in respect of the first ten years of the lease.
(v) where the lease does not purport to be for any definite term.	Two percent of the consideration equal to the amount or value of

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		the average annual rent which would be paid or delivered for the first ten years, if the lease continued so long.
(b)	(i) where the lease is granted for money advanced and where no rent is reserved;	Two percent of the consideration equal to the amount of such advanced as set forth in the lease.
	(ii) where the lease is granted for a fine or premium and where no rent is reserved; and	Two percent of the consideration equal to the amount of such fine or premium as set forth in the lease.
(c)	(i) where the lease is granted for money advanced in addition to rent reserved; and	Two percent of the consideration equal to the amount of advance as set forth in the lease, in addition to the duty which would have been payable on such lease, if no advance had been paid or delivered; provided that, in any case when an agreement to lease is stamped with the ad valorem stamp required for a lease and a lease in pursuance of such agreement is subsequently executed, the duty on such lease shall not exceed four rupees.
	(ii) where the lease is granted for a fine or premium in addition to rent reserved	Two percent of the consideration equal to the amount of such fine or premium as set forth in lease in addition to the duty which would have been payable on such lease if no fine or premium has been paid or delivered: Provided

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	that, in any case when an agreement to lease is stamped with an ad valorem stamped required for a lease and a lease in pursuance of such agreement is subsequently executed, the duty on such lease shall not exceed one hundred rupees.
EXEMPTION:— Lease, executed in the case of a cultivator and for the purposes of cultivation (including a lease of trees for the production of food or drink) without the payment or delivery of any fine or premium when a definite term is expressed and such term does not exceed one year, or when the average annual rent reserved does not exceed one hundred rupees.	
36. LETTER OF ALLOTMENT OF SHARES in any company or proposed company or in respect of any loan to be raised by any company or proposed company. *See* also **CERTIFICATE OR OTHER DOCUMENT** (No.19).	Ten Rupees
37. LETTER OF CREDIT, that is to say, any instrument by which one person authorizes another to give credit to the person in whose favor it is drawn. **LETTER OF GUARANTEE**, *See* **AGREEMENT** (No.5).	
38. LETTER OF LICENCE, that is to say, any agreement between a debtor and his creditors, that the letter shall, for a specified time, suspend their claims and allow the debtor to carry on business at his own discretion.	Fifty Rupees
39. MEMORANDUM OF ASSOCIATION OF A COMPANY—	
(a) if accompanied by articles of association under section 35 of the Companies Act, 2017 (XIX of 2017);	One hundred Rupees
(b) If not so accompanied.	Two hundred Rupees.
EXEMPTION:—Memorandum of any association not formed for profit and registered under section 42 of the Companies Act, 2017 (XIX of 2017).	

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40. MORTGAGE-DEED not being an **AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE** (No.6), **BOTTOMRY BOND** (No.16), **MORTGAGE OF A CROP** (No.41),**RESPONDENTIA BOND** (No.56), **OR SECURITY BOND** (No.57)—

(a) when possession of the property or any part of the property comprised in such deed is given by the mortgagor or agreed to be given;	Three percent of the consideration equal to the amount secured by such deed.
(b) When possession is not given or agreed to be given as aforesaid.	Three percent of the amount secured by such deed.

Explanation.— A mortgagor who gives to the mortgagee a power of attorney to collect rents or a lease of the property mortgaged or part thereof, is deemed to give possession within the meaning of this article.

(c) when a collateral or auxiliary or additional or substituted security, or by way of further assurance for the above-mentioned purposes where the principal or primary security is duly stamped— for every sum secured not exceeding Rs. 1,000; and for every Rs. 1,000 or part thereof secured in excess of Rs. 1,000; and	Ten Rupees.
(d) (i) mortgage with banking companies that is to say simple or legal mortgage for banking companies or other financial institution when the entire finance is not based on interest; and	One fifth of one percent that is to say 0.2% of the loan amount subject to a maximum of one hundred rupees.
(ii) in any other case	One fifth of one percent that is to say 0.2% of the loan amount.

EXEMPTION:—

(1) Instruments, executed by persons taking advances under the Land Improvement Loans Act, 1883 (XIX of 1883), or the Agriculturists Loans Act, 1884 (XII of 1884) or by their sureties as security for the repayment of such advances.

(2) Letter of hypothecation accompanying a Bill of Exchange.

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41. MORTGAGE OF A CROP, **including** any instrument evidencing an agreement to secure the repayment of a loan made upon any mortgage of a crop, whether the crop is or is not in existence at the time of mortgage—	
(a) when the loan is repayable not more than three months from the date of the instrument, for every two hundred rupees or part thereof of the sum secured; and	One Rupee
(b) when the loan is repayable more than three months, but not more than eighteen months, from the date of the instrument, for every one hundred rupees or part thereof of the sum secured.	Two Rupees
42. NOTARIAL ACT, that is to say, any instrument, endorsement, note, attestation, certificate or entry not being a PROTEST (No.50) made or signed by a Notary Public in the execution of the duties of his office, or by any other person lawfully acting as a Notary Public. *See* also **PROTEST OF BILL OR NOTE** (No.50).	Ten Rupees
43. NOTE OR MEMORANDUM SENT BY a broker or agent to his principal intimating the purchase or sale on account of such principal—	
(a) of any goods exceeding in value twenty rupees;	Five Rupees
(b) of any stock or marketable security exceeding in value twenty rupees, not being a Government Security; and	Five rupees for every Rs. 5,000 or a part thereof of the value of the stock or security.
(c) of a Government security	One rupee for every 10,000 rupees or part thereof of the value of the security subject to a maximum of forty rupees.
44. NOTE OF PROTEST BY THE MASTER OF A SHIP. See also **PROTEST BY MASTER OF A SHIP** (No.51).	Five rupees.
ORDER FOR THE PAYMENT OF MONEY. *See* **BILL OF EXCHANGE** (No.13).	

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45. PARTITION—Instrument of [as defined by section 2(15)].

Explanation—The largest share remaining after the property is partitioned (or if there are two or more shares of equal value and not smaller than any of the other shares, than one of such equal shares) shall be deemed to be that from which other shares are separated:

Provided always that—

(a) when an instrument of partition containing an agreement to divide property in severalty is executed and a partition is effected in pursuance of such agreement, the duty chargeable upon the instrument affecting such partition shall be reduced by the amount of duty paid in respect of the first instrument but shall not be less than four rupees;

(b) where land is held on Revenue Settlement for a period not exceeding thirty years and paying the full assessment, the value for purpose of duty shall be calculated at not more than five times the annual revenue;

(c) where a final order for effecting a partition passed by any Revenue authority or any Civil Court, or an award by an arbitrator directing

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		a partition, is stamped with the stamp required for an instrument of partition in pursuance of such order or award is subsequently executed the duty on such instrument shall not exceed four Rupees.	
46.	**PARTNERSHIP**—		
	A—INSTRUMENT OF—		
	(a) where the capital of the partnership does not exceed Rs. 500.	Two hundred Rupees	
	(b) in any other case	One hundred Rupees	
	B—DISSOLUTION OF PAWN OR PLEDGE—*See* **AGREEMENT RELATING TO DEPOSIT OF TITLE-DEEDS, PAWN OR PLEDGE** (No. 6).	Half of the stamp duty payable on original.	
47.	**POLICY OF INSURANCE**—	**If drawn single**	**If drawn in duplicate for each part**
	A—*See* **INSURANCE** (see section 7)—		
	(1) For each voyage—		
	(i) where the premium of consideration does not exceed the rate of 1/8 per cent of the amount insured by the policy for every full sum of Rs. 5,000 and also any fractional parts thereof insured by the policy.	Three Rupees.	Three Rupees.
	(ii) in any other case, in respect of every full sum of Rs.2,000 and also any fractional part thereof insured by the policy.	Three Rupees.	Three Rupees.
	(2) For time—		
	in respect of every full sum of Rs.2,000 or part thereof insured by the policy—		
	(i) where the insurance shall be made for any time not exceeding six months;	Three Rupees.	Three Rupees.
	(ii) where the insurance shall be made for any time exceeding six months and not exceeding twelve months.	Five Rupees	Three Rupees.

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B—FIRE—INSURANCE AND OTHER CLASSES OF INSURANCE NOT ELSEWHERE INCLUDED IN THIS ARTICLE, COVERING GOODS, MERCHANDISE, PERSONAL EFFECTS, CROPS, AND OTHER PROPERTY AGAINST LOSS OR DAMAGE—	
(1) in respect of an original policy—	
(i) when the sum insured does not exceed Rs. 5,000;	Five Rupees.
(ii) in any other case and	Eight Rupees.
(2) in respect of each receipt for any payment of a premium on any renewal of an original policy.	One-half of the duty payable in respect of the original policy in addition to the amount, if any, chargeable under No. 53.
C—ACCIDENT AND SICKNESS INSURANCE—	Three Rupees
(a) Against railway accident, valid for a single journey only.	
EXEMPTION	
When issued to a passenger travelling by the intermediate or the third class in any railway.	Three Rupees: Provided that, in case of a policy of insurance against death by accident when the annual premium payable does not exceed Rs. 2.50 per Rs. 1,000 the duty on such instrument shall be one rupee for every Rs.1,000 or part thereof of the maximum amount which may become payable under it.
(b) In any other case for the maximum amount which may become payable in the case of any single accident or sickness where such amount does not exceed Rs. 2,000 and also where such amount exceeds Rs. 2,000, for every Rs. 2,000 or part thereof.	
D—INSURANCE BY WAY OF INDEMNITY—	Three rupees if drawn singly.
Against liability to pay damages on account of accidents to workmen employed by or under or against liability to pay compensation under Workmen's Compensation Act, 1923 (VIII of 1923), for every Rs. 100 or part thereof payable as premium.	

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	If drawn singly	If drawn in duplicate, for each part
E—LIFE INSURANCE OR OTHER INSURANCE NOT SPECIFICALLY PROVIDED FOR, except such a **RE-INSURANCE** as is described in Division of this article—		
(i) for every sum insured not exceeding Rs.250;	Three Rupees	Three Rupees
(ii) for every sum insured exceeding Rs.250 but not exceeding Rs.500;	Three Rupees	Three Rupees
(iii) for every sum insured exceeding Rs.500 but not exceeding Rs.1,000 and also for every Rs.1,000 or part thereof in excess of Rs.1,000.	Three Rupees	Three Rupees
EXEMPTIONS:—Policies of life insurance granted by the Director-General of Post Offices in accordance with rules for Postal Life Insurance issued under the authority of the Central Government.		
F—RE-INSURANCE BY AN INSURANCE COMPANY WHICH HAS GRANTED A POLICY OF THE NATURE SPECIFIED IN DIVISION A OR DIVISION B OF THIS ARTICLE WITH ANOTHER COMPANY BY WAY OF INDEMNITY OR GUARANTEE AGAINST THE PAYMENT ON THE ORIGINAL INSURANCE OF A CERTAIN PART OF THE SUM INSURED THEREBY.	One-half of the duty payable in respect of the original insurance but not less than three Rupees or more than eight Rupee.	
GENERAL EXEMPTIONS:-Letter of cover or engagement to issue a policy of insurance: Provided that, unless such letter or engagement bears the stamp prescribed by this Act for such policy nothing shall be claimable thereunder, nor shall it be available for any purpose except to compel the delivery of the policy therein mentioned.		
48. POWER-OF-ATTORNEY as defined by section 2(21) of Stamps Act, 1899 (II of 1899), not being a proxy (No.52)—		
(a) when executed for the sole purpose of procuring the registration of one or more documents in relation to a single transaction or for admitting execution of one or more such document;	Five Hundred Rupees	

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(b)	when authorizing one person or more to act in a single transaction other than the case mentioned in clause (a);	One thousand Rupees
(c)	when authorizing not more than five persons to act jointly and severally in more than one transaction or generally;	One thousand Rupees
(d)	when authorizing more than five but not more than ten persons to act jointly and severally in more than one transaction or generally; and	One thousand Rupees
(e)	when given for consideration and authorizing the attorney to sell any immovable property.	One thousand Rupees
(f)	in any other case	One thousand Rupees

Explanation 1—For the purposes of this Article more persons than one when belonging to the same firm shall be deemed to be one person.

Explanation 2—The term "Registration" includes every operation incidental to registration under the Registration Act, 1908 (XVI of 1908).

49.	**PROMISSORY** NOTE as defined by section 2(22) of Stamps Act, 1899 (II of 1899)—	
(a)	when payable on demand—	
(i)	when the amount or value does not exceed Rs. 250.000;	Thirty Rupees
(ii)	when the amount or value exceeds Rs. 250,000 but does not exceed Rs. 500,000;	Sixty Rupees
(iii)	in any other case	One hundred Rupees
(b)	When payable otherwise than on demand, including a commercial paper.	One-fiftieth of one percent that is to say 0.02% per annum of the amount payable subject to a maximum of Rs. 100,000
50.	**PROTEST OF BILL OR NOTE**, that is to say, any declaration in writing made by a Notary Public or other person lawfully acting as such, attesting the dishonor of a Bill of Exchange for promissory note.	Ten Rupees
51.	**PROTEST BY THE MASTER OF A SHIP,** that is to say, any declaration of the particulars of her voyage drawn up by him with a	Ten Rupees

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view to the adjustment of losses or the calculation of averages, and every declaration in writing made by him against the charterers or the consignees or not loading or unloading the ship, such declaration is attested or certified by a Notary Public or other person lawfully acting as such.

See also **NOTE OR PROTEST BY THE MASTER OF A SHIP (No.44).**

52. PROXY empowering any person to vote at any one election of the members of a district or local board or of a body of municipal commissioners, or at any one meeting of (a) members of an incorporated company or other body corporate whose stock or funds is or are divided into shares and transferable; (b) a local authority; or (c) proprietors, members or contribution to the funds of any institution. — Five Rupees

53. RECEIPTS as defined by section 2 (23) of Stamps Act, 1899 (II of 1899) for any money or other property the amount or value of which exceeds twenty rupees—

(a) where the amount or value does not exceed two thousand rupees; — One Rupee

(b) where the amount or value exceeds two thousand rupees but does not exceed ten thousand rupees; — Two Rupees.

(c) Where such amount exceeds ten thousand rupees. — Five Rupees

EXEMPTIONS:—Receipts—

(a) endorsed on or contained in any instrument duly stamped for any instrument exempted under the proviso to section 3 (instruments executed on behalf of the Government) or any cheque or bill of exchange, payable on demand acknowledging the receipt of the consideration money therein expressed, or the receipt of any principal-money, interest of annuity, or other periodical payment thereby secured;

(b) for any payment of money without consideration;

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(c) for any payment of rent by a cultivator on account of land assessed to Government revenue;

(d) for pay or allowances by non-commissioned or petty officers, soldiers, sailors or airmen of the armed forces of Pakistan/ Pakistan's military, naval or air forces, when serving in such capacity, or by mounted police constables;

(e) given by holders of family certificates in cases where the person from whose pay or allowances the sum comprised in the receipt has been assigned as a non-commissioned or petty officer, soldier, sailor or airman or any of the said forces and serving in such capacity;

(f) for pensions or allowances by persons receiving such pensions or allowances in respect of their services as such, non-commissioned or petty officers, soldiers, sailors or airmen, and not serving the State in any other capacity;

(g) given by a headman or lambardar for land-revenue or taxes collected by him;

(h) given for money or securities for money deposited in the hands of any banker to be accounted for:

Provided that the same is not expressed to be received of, or by the hands of, any other than the person to whom the same is to be accounted for:

Provided also that this exemption shall not extend to receipt or acknowledgment for any sum paid or deposited for, or upon a letter of allotment of a share, or in respect of a call upon any scrip or share of, or in, any incorporated company or other body corporate or such

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proposed or intended company or body or in respect of a debenture being a marketable security.

See also **POLICY OF INSURANCE** [No. 47-B (2)].

54. RE-CONVEYANCE OF MORTGAGE **PROPERTY—**

(a) if the consideration for which the property was mortgaged does not exceed Rs. 1,000; — Thirty Rupees

(b) in any other case — One hundred Rupees

55. RELEASE,

(a) that is to say, any instrument [not being such a release as is provided for by section 23A of Stamps Act, 1899 (II of 1899)] whereby a person renounces a claim upon another person or against any specified property— — One Thousand Rupees.

(b) in any other case — One Thousand Rupees.

56. RESPONDENTIA BOND, that is to say, any instrument securing a loan on the cargo laden or to be laden on board a ship and making repayment contingent on the arrival of the cargo at the port of destination. — The same duty as on a Bond (No.15) for the amount of the loan secured.

REVOCATION OF ARMY TRUST OR SETTLEMENT.

See **SETTLEMENT** (No.58), **TRUST** (No.64).

57. SECURITY BOND OR MORTGAGE DEED executed by way of security for the due execution of an office, or to account for money or other property received by virtue thereof or executed in favour of a Court for the due discharge of a contingent liability or executed by a surety to secure the due performance of a contract—

(a) when the amount secured does not exceed Rs. 1,000; — Thirty Rupees

(b) in any other case — One hundred Rupees

EXEMPTIONS:- Bond or other instrument, when executed—

(a) by any person for the purpose of guaranteeing that the local income derived from private subscription to a charitable dispensary or hospital or

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	any other object of public utility shall not be less than a specified sum per mensum;	
	(b) under No. 3-A of the rules made by the Provincial Government under section 70 of the Sind Irrigation Act, 1879;	
	(c) executed by persons taking advances under the Land Improvement, Loans Act, 1883 (XIX of 1883), or the Agriculturists Loans Act, 1884 (XII of 1884), or by their sureties as security for repayment of such advances;	
	(d) executed by servants of the State or their securities to secure the due execution of an office or the due accounting for money or other property received by virtue thereof.	
58.	**SETTLEMENT—**	
	A—Instrument of (including a deed of power)—	
	(i) where the settlement is made in favor of legal heirs in respect of agriculture land	Two percent of the value of the property.
	(ii) Where the settlement is made for a religious or charitable purpose:	Two percent of the sum equal to the amount or value of the property settled.
	(iii) in any other case	Two percent of the consideration equal to the amount or value of the property settled: Provided that, where an agreement to settle is stamped with the stamp required for an instrument of settlement, and an instrument of settlement in pursuance of such agreement is subsequently executed, the duty on such instrument shall not exceed four rupees:

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	Provided further that where an instrument of settlement contains any provision for the revocation of the settlement, the amount or value of the property settled shall, for the purposes of duty, be determined as if no such provisions were contained in the instrument.
EXEMPTIONS:—Deed of dower executed on the occasion of marriage between Muslims. B—Revocation of— See also TRUST (No.64)	Two percent of the consideration equal to the amount or value of the property concerned as set forth in the instrument of revocation.
59. SHARE WARRANTS to bearer issued **under** the Companies Act, 2017 (XIX of 2017).	One and a half times the duty payable on a Debenture [No.27] for a consideration equal to the nominal amount of the shares specified in the warrant.
EXEMPTIONS:- Share warrant when issued by a company in pursuance of the Companies Act, 2017 (XIX of 2017), to have effect only upon payment, as composition for that duty, to the Collector of Stamp revenue of— (a) one and a half per centum of the whole subscribed capital of the company; or (b) if any company which has paid the said duty or composition in full subsequently issues an addition to its subscribed capital—one and half per centum of the additional capital so issued.	
SCRIP—*See* **CERTIFICATE** (No.19).	
60. SHIPPING ORDER for or relating to the conveyance of goods on board of any vessel.	Five rupees

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61. SURRENDER OF LEASE—	
(a) when the duty with which the lease is chargeable does not exceed thirty rupees;	The duty with which lease is chargeable.
(b) in any other case	One hundred rupees
EXEMPTION:-	
Surrender of lease, when such lease exempted from duty.	
62. TRANSFER (whether with or without consideration)—	
(a) of shares in an incorporated company or other body corporate;	One-fourth of the duty payable on a Conveyance (No.23) for a consideration equal to the value of the share.
(b) of Debenture or Participation Term Certificate or Term Finance Certificate or any other instrument or redeemable capital (other than Commercial Paper), whether mortgaged or not, being a transferable security, whether liable to duty or not except as provided for by section 8	One tenth of one percent that is to say 0.1% of the face value of the instrument.
(c) of any interest secured by a bond, mortgage-deed or policy of insurance—	
(i) if the duty on such bond, mortgage-deed or policy does not exceed twenty rupees; and	The duty with which such bond, mortgage-deed or policy of insurance is chargeable.
(ii) in any other case	Fifty Rupees.
(d) of any property under the Administrator-General's Act, 1913, (III of 1913) section 31; and	Fifty Rupees.
(e) of any trust-property without consideration from one trustee to another trustee or from a trustee to a beneficiary.	Twenty Rupees or such smaller amount as may be chargeable under clauses (a) to (c) of this Article.
[1][(1)] **EXEMPTIONS:—**	
Transfers by endorsement—	
(a) of a bill of exchange, cheque or promissory note;	

[1]Numbered by the Finance Act, 2024 (Act No. X of 2024), s.2, (as is in force in the Islamabad Capital Territory).

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(b) of a bill of lading, delivery order, warrant for goods, or other mercantile document of title to goods;
(c) (c) of a policy of insurance;
(d) of securities of the Federal Government.

See also section 8—

[1][(2) Transfers which are converted under Conveyance described in Article 23 (1) (a).]

63. TRANSFER OF LEASE by way of assignment and not by way of under-lease.	The same duty as is leviable on Conveyance (No.23) for a consideration equal to the amount of the consideration for the transfer.
EXEMPTION:—Transfer of any lease exempt from duty.	
64. TRUST—	
A. **Declaration of** - of or concerning any property when made by any writing not being a WILL.	The same duty as on a Bond (No.15) for a sum equal to the amount or value of the property concerned as set forth in the instrument but not exceeding two hundred Rupees.
B. **REVOCATION OF** - of, or concerning any property when made by any instrument other than a WILL.	The same duty as on a Bond (No.15) for a sum equal to the amount of value of the property concerned as set forth in the instrument but not exceeding two hundred Rupees.
See also **SETTLEMENT** (No.58).	
VALUATION. *See* **APPRAISEMENT** (No.8).	
65. WARRANT FOR GOODS, that is to say, any instrument evidencing the title of any person therein named, or his assigns, or the holder thereof, to the property in any goods lying in or upon any dock, warehouse or wharf, such instrument being signed or certified by or on behalf of the person in whose custody such goods may be.]	Five Rupees".
Schedule II. — (Repealed by the amending Act, 1914 (Act No. X of 1914) s.3 and Schedule II.	

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Date: 07-07-2025

[1]Added by the Finance Act, 2024 (Act No. X of 2024), s.2 (as is in force in the Islamabad Capital Territory).

THE STANDARDS OF WEIGHT ACT, 1939

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1. Short title, extent and commencement
2. Unit for weight
3. Standard weights
4. Sets of standard weights
5. Rules
6. [Repeal]

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THE STANDARDS OF WEIGHT ACT, 1939

ACT No. IX OF 1939

[28th *March*, 1939]

An Act to establish standards of weight throughout [1][*Pakistan*]

WHEREAS it is expedient to establish standards of weight throughout [1][Pakistan] ;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Standards of Weight Act, 1939.

[1][(2) It extends to the whole of Pakistan.]

(3) It shall come into force on such date[2] as the [3][Federal Government] may, by notification in the official Gazette, appoint.

2. Unit for weight.—(1) The unit for weight shall be the standard grain, that is to say, that weight which when multiplied by 1799.84585 is the weight *in vacuo* of the iridio-platinum cylinder in the custody of the [4][Mint Master, Lahore], certified by the Standards Department of the British Board of Trade as having a weight of 1799.84585 grains *in vacuo*.

(2) The standard grain shall be the only unit from which all other standard weights shall be ascertained.

3. Standard weights.— (1) There shall be the following standard weights, namely :—

(a) the standard tola, being a weight of 180 standard grains;

(b) the standard seer, being a weight of 80 standard tolas or 14,400 standard grains;

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(c) the standard maund, being a weight of 40 standard seers;

(d) the standard pound, being a weight of 7,000 standard grains;

(e) the standard ounce, being one-sixteenth part of the weight of a standard pound;

(f) the standard hundredweight, being a weight of 112 standard pounds;

(g) the standard ton, being a weight of 2,240 standard pounds.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), s. 3 and 2nd Sch. (*w. e. f. fourteenth day of October, 1955).*
[2]The 1st July, 1942, *see* Notification No. 33-C (b)/37-A., dated the 13th June, 1942, Gazette of India, 1942, Pt. I, p. 1012.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (P.O. No. 4 of 1975), Art. 2 and Table.
[4]Subs. by the Adaptation of Central Acts and Ordinance Order, 1949 (Order No. 4 of 1949).

(2) No weight other than the weights set forth in sub-section (1) and integral multiples or sub-multiples of any such weight shall be used as a standard weight.

4. Sets of standard weights.—(1) The [1][Federal Government] shall cause to be prepared one set of such of the standard weights specified in sub-section (1) of section 3 or multiples or sub-multiples thereof as the [1][Federal Government] may consider expedient, and shall cause each weight of such set to be authenticated as having been ascertained from the standard grain, and shall deposit the set in such custody as the [1][Federal Government] may think fit.

(2) The [1][Federal Government] shall cause similar sets of weights, similarly authenticated, to be prepared, and shall supply one set to each Provincial Government.

(3) The [1][Federal Government] shall cause similar sets of weights, similarly authenticated, to be prepared and shall supply one set to the Government of any [2][Acceding State or non Acceding State] [3][* * *] which applies for it and pays the price fixed by the [1][Federal Government].

5. Rules.—(1) The [1][Federal Government] may, by notification in the official Gazette, make rules for carrying into effect the provisions of this Act.

(2) Without prejudice to the generality of the foregoing power, rules made under this section may regulate—

(a) the preparation of the sets of standard weights referred to in section 4 ;

(b) the custody of the set of such weights which is to be maintained by the [1][Federal Government] and the periodical verification and adjustment thereof ;

(c) the periodical verification and adjustment of the sets of standard weights supplied to Provincial and other Governments.

6. [4][Repeal.]

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Date: 31-07-2024

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Table.
[2]Subs. by the Adaptation of Central Acts and Ordinance Order, 1949 (Order No. 1 of 1949).
[3]Omitted by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), s. 3 and 2nd Sch.
[4]Rep. by the Repealing and Amending Act, 1942 (XXV of 1942), s. 2 and 1st Sch.

THE STATE IMMUNITY ORDINANCE, 1981

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THE STATE IMMUNITY ORDINANCE, 1981

ORDINANCE VI OF 1981

[*11th March, 1981*]

An Ordinance to amend and consolidate the law relating to the immunity of States from the jurisdiction of Courts.

WHEREAS it is expedient to amend and consolidate the law relating to the immunity of States from the jurisdiction of Courts;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 (C. M. L. A. Order No. 1 of 1977), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement.—(1) This Ordinance may be called the State Immunity Ordinance, 1981.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Interpretation.— In this Ordinance, "Court" includes any tribunal or body exercising judicial functions.

IMMUNITY FROM JURISDICTION

3. General immunity from jurisdiction.— (1) A State is immune from the jurisdiction of the Courts of Pakistan except as hereinafter provided.

(2) A Court shall give effect to the immunity conferred by sub-section (1) even if the State does not appear in the proceedings in question.

EXCEPTIONS FROM IMMUNITY

4. Submission to jurisdiction.—(1) A State is not immune as respects proceedings in respect of which it has submitted to jurisdiction.

(2) A State may submit to jurisdiction after the dispute giving rise to the proceedings has arisen or by a prior agreement; but a provision in any agreement that it is to be governed by the law of Pakistan shall not be deemed to be a submission.

Explanation.— In this sub-section and in sub-section (3) of section 14, "agreement" includes a treaty, convention or other international agreement.

(3) A State shall be deemed to have submitted —

(a) if it has instituted the proceedings; or

(b) subject to sub-section (4) it has intervened or taken any step in the proceedings.

(4) Clause (b) of sub-section (3) does not apply—

(a) to intervention or any step taken for the purpose only of-

(i) claiming immunity; or

(ii) asserting an interest in property in circumstances such that the State would have been entitled to immunity if the proceedings had been brought against it; or

(b) to any step taken by the State in ignorance of the facts entitling it to immunity if those facts could not reasonably have been ascertained and immunity is claimed as soon as reasonably practicable.

(5) A submission in respect of any proceedings extends to any appears but not to any counter claim unless it arises out of the same legal relationship or facts as the claim.

(6) The head of a State's diplomatic mission in Pakistan, or the person for the time being performing his functions, shall be deemed to have authority to submit on behalf of the State in respect of any proceedings; and any person who has entered into a contract on behalf of and with the authority of a State shall be deemed to have authority to submit on its behalf in respect of proceedings arising out of the contract.

5. Commercial transactions and contracts to be performed in Pakistan.— (1) A State is not immune as respects proceedings relating to—

(a) a commercial transaction entered into by the State; or

(b) an obligation of the State which by virtue of a contract, which may or may not be a commercial transaction, falls to be performed wholly or partly in Pakistan.

(2) Sub-section (1) does not apply to a contract of employment between a State and an individual or if the parties to the dispute are States or have otherwise agreed in writing; and clause (b) of that subsection does not apply if the contract, not being a commercial transaction, was made in the territory of the State concerned and the obligation in question is governed by its administrative law.

(3) In this section "commercial transaction" means—

(a) any contract for the supply of goods or services;

(b) any loan or other transaction for the provision of finance and any guarantee or indemnity in respect of any such transaction or of any other financial obligation; and

(c) any other transaction or activity, whether of a commercial, industrial financial, professional or other similar character, into which a State enters or in which it engages otherwise than in the exercise of its sovereign authority.

6. Contracts of employment.—(1) A State is not immune as respects proceedings relating to a contract of employment between a State and an individual where the contract was made, or the work is to be wholly or partly performed in Pakistan;

Explanation.— In this subsection, "proceedings relating to a contract of employment" includes proceedings between the parties to such a contract in respect of any statutory rights or duties to which they are entitled or subject as employer or employee.

(2) Subject to sub-sections (3) and (4), sub-section (1) does not apply if—

(a) at the time when the proceedings are brought the individual is a national of the State concerned; or

(b) at the time when the contract was made the individual was neither a citizen of Pakistan nor habitually resident in Pakistan; or

(c) the parties to the contract have otherwise agreed in writing.

(3) Where the work is for an office, agency or establishment maintained by the State in Pakistan for commercial purposes, clauses (a) and (b) of sub-section (2) do not exclude the application of sub-section (1) unless the individual was, at the time when the contract was made, habitually resident in that State.

(4) Clause (c) of sub-section (2) does not exclude the application of sub-section (1) where the law of Pakistan requires the proceedings to be brought before a Court in Pakistan.

7. Ownership, possession and use of property.—(1) A State is not immune as respects proceedings relating to—

(a) any interest of the State in, or its possession or use of, immovable property in Pakistan; or

(b) any obligation of the State arising out of its interest in, or its possession or use of, any such property.

(2) A State is not immune as respects proceedings relating to any interest of the State in movable or immovable property, being an interest arising by way of succession, gift or *bona vacantia*.

(3) The fact that a State has or claims an interest in any property shall not preclude any Court from exercising in respect of such property any Jurisdiction relating to the estates of deceased

persons or persons of unsound mind or to insolvency, the winding up of companies or the administration of trusts.

(4) A Court may entertain proceedings against a person other than a State notwithstanding that the proceedings relate to property—

(a) which is in the possession of a State; or

(b) in which a State claims an interest, if the State would not have been immune had the proceedings been brought against it or, in a case referred to in clause (b), if the claim is neither admitted nor supported by *prima facie* evidence.

8. Patents, trade marks, etc. A State is not immune as respects proceedings relating to—

(a) any patent, trade mark, design or plant breeders' rights belonging to State which are registered or protected in Pakistan or for which the state has applied in Pakistan;

(b) an alleged infringement by the State in Pakistan of any patent, trade mark, design, plant breeders' rights or copyrights ; or

(c) the right to use a trade or business name in Pakistan.

9. Membership of bodies corporate, etc.—(1) A State is not immune as respects proceedings relating to its membership of a body corporate, an unincorporated body or a partnership which—

(a) has members other than States; and

(b) is incorporated or constituted under the law of Pakistan or is controlled from, or has its principal place of business in, Pakistan, being proceedings arising between the State and the body or its other members or, as the case may be, between the State and the other partners.

(2) Sub-section (1) does not apply if provision to the contrary has been made by an agreement in writing between the parties to the dispute or by the constitution or other instrument establishing or regulating the body or partnership in question.

10. Arbitrations.—(1) Where a State has agreed in writing to submit a dispute which has arisen, or may arise, to arbitration, the State is not immune as respects proceedings in the courts of Pakistan which relate to the arbitration.

(2) Sub-section (1) has effect subject to the provisions of the arbitration agreement and does not apply to an arbitration agreement between States.

11. Ships used for commercial purposes.— (1) The succeeding provisions of this section apply to—

(a) Admiralty proceedings; and

(b) proceedings on any claim which could be made the subject of Admiralty proceedings.

(2) A State is not immune as respects—

(a) an action in rem against a ship belonging to it; or

(b) an action in personam for enforcing a claim in connection with such a ship;

if, at the time when the cause of action arose, the ship was in use or intended for use for commercial purposes.

(3) Where an action in rem is brought against a ship belonging to a State for enforcing a claim in connection with another ship belonging to that State, clause (a) of sub-section (2) does not apply as respects the first-mentioned ship unless, at the time when the cause of action relating to the other ship arose, both ships were in use or intended for use for commercial purposes.

(4) A State is not immune as respects,—

(a) an action in rem against a cargo belonging to that State if both the cargo and the ship carrying it were, at the time when the cause of action arose, in use or intended for use for commercial purposes; .or

(b) an action in personam for enforcing a claim in connection with such a cargo if the ship carrying it was then in use or intended for use as aforesaid.

(5) in the foregoing provisions references to a ship or cargo belonging to a State include references to a ship or cargo in its possession or control or in which it claims an interest; and, subject to sub-section (4), sub-section (2) applies to property other than a ship as it applies to a ship.

(6) Sections 5 and 6 do not apply to proceedings of the nature mentioned in sub-section (1) if the State in question is a party to the Brussels Convention and the claim relates to the operation of a ship owned or operated by that State, the carriage of cargo or passengers on any such ship or the carriage of cargo owned by that State on any other ship.

Explanation.— In this section, "Brussels Convention" means the International Convention for the Unification of Certain Rules Concerning the Immunity of State-owned Ships signed in Brussels on the tenth day of April 1926, and "ship" includes hovercraft.

12. Value added tax, customs-duties, etc. A State is not immune as respects proceedings relating to its liability for—

(a) value added tax, any duty of customs or excise or any agricultural levy; or

(b) rates in respect of premises occupied by it for commercial purposes.

PROCEDURE

13. Service of process and judgment in default of appearance.— (1) Any notice or other document required to be served for instituting proceedings against a State shall be served by being

transmitted through the Ministry of Foreign Affairs or Pakistan to the Ministry of Foreign Affairs of the State and service shall be deemed to have been effected when the notice or document is received at the latter Ministry.

(2) Any proceedings in Court shall not commence earlier than two months after the date on which the notice or document is received as aforesaid.

(3) A State which appears in proceedings cannot thereafter object that sub-section (1) has not been complied with as respects those proceedings.

(4) No judgment in default of appearance shall be given against a State except on proof that sub-section (1) has been complied with and that the time for the commencement of proceedings specified in sub-section (2) has elapsed.

(5) A copy of any judgment given against a State in default of' appearance shall be transmitted through the Ministry of Foreign Affairs of Pakistan to the Ministry of Foreign Affairs of the State and the time for applying to have the judgment set aside shall begin to run two months after the date on which the copy of the judgment is received at the latter Ministry.

(6) Sub-section (1) does not prevent the service of a notice or other document in any manner to which the State agreed and sub-sections (2) and (4) do dot apply where service is effected in any such manner.

(7) The preceding provisions of this section shall not be construed as applying to proceedings against the State by way of a counter-claim or to an action in rem.

14. Other procedural privileges.—(1) No penalty by way of committal to prison or fine shall be imposed in respect of any failure or refusal by or on behalf of a State to disclose or produce any document or information for the purposes of proceedings to which it is a party.

(2) Subject to sub-sections (3) and (4), —

(a) relief shall not be given against a State by way of injunction or order for specific performance or for the recovery of land or other property; and

(b) the property of a State, not being property which is for the time being in use or intended for use for commercial purposes, shall not be subject to any process for the enforcement of a judgment or arbitration award or, in an action in rem, for its arrest, detention or sale.

(3) Sub-section (2) does not prevent the giving of any relief or the issue of any process with the written consent of the State concerned ; and any such consent, which may be contained in a prior agreement, may be expressed so as to apply to a limited extent or generally:

Provided that a provision merely submitting to the jurisdiction of the courts shall not be deemed to be a consent for the purposes of this sub-section.

(4) The head of a State's diplomatic mission in Pakistan, or the person for the time being performing his functions, shall be deemed to have authority to give on behalf of the State any such consent as is mentioned in sub-section (3) and, for the purposes of clause (b) of sub-section (2), his

certificate that any property is not in use or intended for use by or on behalf of the State for commercial purposes shall be accepted as sufficient evidence of that fact unless the contrary is proved.

SUPPLEMENTARY PROVISIONS

15. States entitled to immunities and privileges.—(1) The immunities and privileges conferred by this Act apply to any foreign State; and references to State include references to—

(a) the sovereign or other head of that State in his public capacity;

(b) the government of that State; and

(c) any department of that government, but not to any entity, hereinafter referred to as a "separate entity", which is distinct from the executive organs of the government of the State and capable of suing or being sued.

(2) A separate entity is immune from the jurisdiction of the courts of Pakistan if, and only if—

(a) the proceedings relate to anything done by it in the exercise of sovereign authority; and

(b) the circumstances are such that a State would have been so immune.

(3) If a separate entity, not being a State's central bank or other monetary authority, submits to the jurisdiction in respect of proceedings in the case of which it is entitled to immunity by virtue of sub-section (2) of this section, the provisions of sub-sections (1) to (3) of section 14 shall apply to it in respect of those proceedings as if reference to a State were references to that entity.

(4) Property of a State's central bank or other monetary authority shall not be regarded for the purposes of sub-section (3) of section 14 as in use or intended for use for commercial purposes; and where any such bank or authority is a separate entity sub-sections (1) and (2) of that section shall apply to it as if references to a State were references to the bank or authority.

(5) Section 13 applies to proceedings against the constituent territories of a Federal State; and the Federal Government may, by notification in the official Gazette, provide for the other provisions of this Ordinance to apply by to any such constituent territory specified in the notification as they apply to a State.

(6) Where the provisions of this Ordinance do not apply to a constituent territory by virtue of a notification under sub-section (5), the provisions of sub-sections (2) and (3) shall apply to it as if it were a separate entity.

16. Restriction and extension of immunities and privileges.—(1) If it appears to the Federal Government that the immunities and privileges conferred by this Ordinance in relation to any State—

(a) exceed those accorded by the law of that State in relation to Pakistan; or

(b) are less than those required by any treaty, conventional or other international agreement to which that State and Pakistan are parties, the Federal Government may, by notification in the official Gazette, provide for restricting or, as the case may be, extending those immunities and privileges to such extent as it may deem fit.

17. Savings, etc.—(1) This Ordinance does not affect any immunity or privilege conferred by the Diplomatic and Consular Privileges Act, 1972 (1X of 1972); and—

(a) section 6 does not apply to proceedings concerning the employment of the members of a mission within the meaning of the Convention set out in the First Schedule to the said Act of 1972 or of the members of a consular post within the meaning of the Convention set out in the Second Schedule to that Act;

(b) sub-section (1) of section 7 does not apply to proceedings concerning a State's title to, or its possession of, property used for the purposes of a diplomatic mission.

(2) This Ordinance does not apply to—

(a) proceedings relating to anything done by or in relation to the armed forces of a State while present in Pakistan;

(b) criminal proceedings; or

(c) proceedings relating to taxation other than those mentioned in section 12.

18. Proof as to certain matters.—A certificate under the hand of a Secretary to the Government of Pakistan shall be conclusive evidence on any question—

(a) whether any country is a State for the purposes of this Ordinance, whether any territory is a constituent territory of a Federal State for those purposes or as to the person or persons to be regarded for those purposes as the head or Government of a State; or

(b) whether, and if so when, a document has been served or received as mentioned in sub-section (1) or sub-section (5) of section 13.

19. Repeal.— Sections 86 and 87 of the Code of Civil Procedure, 1908. (Act V of 1908) are hereby repealed.

THE SUCCESSION ACT 1925

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THE SUCCESSION ACT 1925

[1]ACT No. XXXIX OF 1925

[*30th September, 1925*]

An Act to consolidate the law applicable to intestate and testamentary succession in [2]*[Pakistan].*

WHEREAS it is expedient to consolidate the law applicable to intestate and testamentary succession in [2][Pakistan] it is hereby enacted as follows :—

PART I
Preliminary

1. Short title. This Act may be called the [3][*] Succession Act, 1925.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "administrator" means a person appointed by competent authority to administer the estate of a deceased person when there is no executor;

(b) "codicil" means an instrument made in relation to a will, and explaining, altering or adding to its dispositions, and shall be deemed to form part of the will;

[4][(bb) "District Judge" means the Judge of a principal Civil Court of original jurisdiction;]

(c) "executor" means a person to whom the execution of the last will of a deceased person is, by the testator's appointment, confided;

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[1]For Statement of Objects and Reasons, *see* Gaz. of India, 1923, Pt. V, p.401 ; and for Report of Joint Committee, *see ibid.*, 1925, Pt. V, p. 103.
The Act has been extended under the Scheduled Districts Act, 1874 (14 of 1874), to Baluchistan, *see* Gaz. of India, 1925, Pt. II-A, p. 358 ; and applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the (N.W.F.P.; and also extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, *see* N-W-.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has been extended to the Leased Areas of Baluchistan, *see* the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950): and also applied in the Federated Areas of Baluchistan, *see* Gazette of India, 1937, Pt. I. p.1499.
It has been extended to the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G.G.O. 4 of 1953), as amended.
It has been extended to the Khairpur State by the Khairpur (Federal Laws) (Extension) Order 1953 (G.G.O. 5 of 1953), as amended.
The Act has been extended and shall be deemed to have been so extended on the 14th October, 1955, to the whole of Pakistan by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch.
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September 1958 by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.
This Act has further been amended in its application to the Province of Baluchistan by Baluchistan Ord. 1 of 1979.
[2] Subs. by Ordinance 21 of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October of 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".
[3] The word "Indian" omitted by A.O., 1949.
[4] Clause (bb) ins. by the Indian Succession (Amdt.) Act, 1929 (18 of 1929), s. 2.

(d) [1]["Pakistan Christian" means a [2][citizen of] Pakistan] who is, or in good faith claims to be, of unmixed Asiatic descent and who professes any form of the Christian religion ;

(e) "minor" means any person subject to the Majority Act, 1875 (IX of 1875), who has not attained his majority within the meaning of that Act, and any other person who has not completed the age of eighteen years; and "minority" means the status of any such person;

(f) "probate" means the copy of a will certified under the seal of a Court of competent jurisdiction with a grant of administration to the estate of the testator;

(g) "Province" includes any division of [3][Pakistan] having a Court of the last resort; and

(h) "will" means the legal declaration of the intention of a testator with respect to his property which he desires to be carried into effect after his death.

3. Power of Provincial Government to exempt any race, sect or tribe in the Province from operation of Act.—(1) The [4][Provincial Government] may, by notification in the [5][Official Gazette], either retrospectively from the sixteenth day of March, 1865 , or prospectively, exempt from the operation of any of the following provisions of this Act, namely, sections 5 to 49, 58 to 191, 212, 213 and 215 to 369, the members of any race, sect or tribe in the Province, or of any part of such race, sect or tribe, to whom the [4][Provincial Government] considers it impossible or inexpedient to apply such provisions or any of them mentioned in the order.

(2) The [4][Provincial Government] may, by a like notification, revoke any such order, but not so that the revocation shall have retrospective effect.

(3) Persons exempted under this section or exempted from the operation of any of the provisions of the Indian Succession Act, 1865[6] (X of 1865), under section 332 of that Act are in this Act referred to as "exempted persons".

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PART II
Of Domicile

4. Application of Part. This Part shall not apply if the deceased was a Hindu, [7][Muslim], Buddhist, Sikh or Jaina.

5. Law regulating succession to deceased person's immoveable and moveable property respectively.—(1) Succession to the immoveable property in [3][Pakistan] of a person deceased shall be regulated by the law of [3][Pakistan], wherever such person may have had his domicile at the time of his death.

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[1] Subs. by A. O., 1949, for "Indian Christian," means a native of India'.
[2] Subs. by A.O., 1961, Art. 2 and Sch. For "British subject domiciled in", (*with effect from the 23rd March, 1956*).
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955),* for "the Provinces and the Capital of the Federation" which had been subs. A.O., 1949, for "British India."
[4] Subs. by A.O., 1937, for "L.G."
[5] Subs. *ibid.,* for "local official Gazette".
[6] Rep. by this Act.
[7]Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".

(2) Succession to the moveable property of a person deceased is regulated by the law of the country in which such person had his domicile at the time of his death.

Illustrations

(i) A, having his domicile in [1][Pakistan] dies in France, leaving moveable property in France, moveable property in England, and property, both moveable and immoveable, in [1][Pakistan]. The succession to the whole is regulated by the law of [1][Pakistan].

(ii) A, an Englishman, having his domicile in France, dies in [1][Pakistan], and leaves property, both moveable and immoveable, in [1][Pakistan.] The succession to the moveable property is regulated by the rules which govern, in France, the succession to the moveable property of an Englishman dying domiciled in France, and the succession to the immoveable property is regulated by the law of [1][Pakistan].

6. One domicile only affects succession to moveables. A person can have only one domicile for the purpose of the succession to his moveable property.

7. Domicile of origin of person of legitimate birth. The domicile of origin of every person of legitimate birth is in the country in which at the time of his birth his father was domiciled; or, if he is a posthumous child, in the country in which his father was domiciled at the time of the father's death.

Illustration

At the time of the birth of A, his father was domiciled in England. A's domicile of origin is in England, whatever may be the country in which he was born.

8. Domicile of origin of illegitimate child. The domicile of origin of an illegitimate child is in the country in which, at the time of his birth, his mother was domiciled.

9. Continuance of domicile of origin. The domicile of origin prevails until a new domicile has been acquired.

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10. Acquisition of new domicile. A man acquires a new domicile by taking up his fixed habitation in a country which is not that of his domicile of origin.

Explanation.— A man is not to be deemed to have taken up his fixed habitation in [1][Pakistan] merely by reason of his residing therein [2][the civil, military, naval or air force service of Pakistan] or in the exercise of any profession or calling.

Illustrations

(i) A, whose domicile of origin is in England, proceeds to [1][Pakistan], where he settles as a barrister or a merchant, intending to reside there during the remainder of his life. His domicile is now in [1][Pakistan].

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955)*, for "the Provinces and the Capital of the Federation" which had been subs. A.O., 1949, for "British India."

[2] The original words "His Majesty's civil, or military service" have successively been amended by the Repealing and Amending Act, 1927 (10 of 1927), the Amending Act, 1934 (35 of 1934) and A.O. 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956),* to read as above.

(ii) A, whose domicile is in England, goes to Austria, and enters the Austrian service, intending to remain in that service. A has acquired a domicile in Austria.

(iii) A, whose domicile of origin is in France, comes to reside in [1][Pakistan] under an engagement with the [2][Federal Government] for a certain number of years. It is his intention to return to France at the end of that period. He does not acquire a domicile in [1][Pakistan].

(iv) A, whose domicile is in England, goes to reside in [1][Pakistan] for the purpose of winding up the affairs of a partnership which has been dissolved, and with the intention of returning to England as soon as that purpose is accomplished. He does not by such residence acquire a domicile in [1][Pakistan], however long the residence may last.

(v) A, having gone to reside in [1][Pakistan] in the circumstances mentioned in the last preceding illustration, afterwards alters his intention, and takes up his fixed habitation in [1][Pakistan]. A has acquired a domicile in [1][Pakistan].

(vi) A, whose domicile is in the French Settlement of Chandernagore, is compelled by political events to take refuge in [3][Peshawar], and resides in [3][Peshawar] for many years in the hope of such political changes as may enable him to return with safety to Chandernagore. He does not by such residence acquire a domicile in [1][Pakistan].

(vii) A, having come to [3][Peshawar] in the circumstances stated in the last preceding illustration, continues to reside there after such political changes have occurred as would enable him to return with safety to Chandernagore, and he intends that his residence in [3][Peshawar] shall be permanent. A has acquired a domicile in [1][Pakistan].

11. Special mode of acquiring domicile in Pakistan. Any person may acquire a domicile in [1][Pakistan], by making and depositing in some office in [1][Pakistan], appointed in this behalf by the [4][Provincial Government], a declaration in writing under his hand of his desire to acquire such domicile; provided that he has been resident in [1][Pakistan] for one year immediately preceding the time of his making such declaration.

12. Domicile not acquired by residence as representative of foreign government, or as part of his family. A person who is appointed by the Government of one country to be its ambassador, consul or other representative in another country does not acquire a domicile in the latter country by reason only of residing there in pursuance of his appointment; nor does any other person acquire such domicile by reason only of residing with such first-mentioned person as part of his family, or as a servant.

13. Continuance of new domicile. A new domicile continues until the former domicile has been resumed or another has been acquired.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955),* for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

[2] Subs. by F.A.O., 1975, Art.2 and Table, for "Central Government" which was previously amended by A. O., 1937, for "G. of I.".

[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II, for "Dacca", which was previously amended by Act 26 of 1951, s. 4 and 3rd Sch., for "Calcutta".

[4]Subs. by A. O., 1937, for "L.G.

14. Minor's domicile. The domicile of a minor follows the domicile of the parent from whom he derived his domicile of origin.

Exception.— The domicile of a minor does not change with that of his parent, if the minor is married, or holds any office or employment in the service of [1][the state], or has set up, with the consent of the parent, in any distinct business.

15. Domicile acquired by woman on marriage. By marriage a woman acquires the domicile of her husband, if she had not the same domicile before.

16. Wife's domicile during marriage. A wife's domicile during her marriage follows the domicile of her husband.

Exception.— The wife's domicile no longer follows that of her husband if they are separated by the sentence of a competent Court, or if the husband is undergoing a sentence of transportation.

17. Minor's acquisition of new domicile. Save as hereinbefore otherwise provided in this Part, a person cannot, during minority, acquire a new domicile.

18. Lunatic's acquisition of new domicile. An insane person cannot acquire a new domicile in any other way than by his domicile following the domicile of another person.

19. Succession to moveable property in Pakistan, in absence of proof of domicile elsewhere. If a person dies leaving moveable property in [2][Pakistan], in the absence of proof of any domicile elsewhere, succession to the property is regulated by the law of [2][Pakistan].

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PART III
Marriage

20. Interests and powers not acquired nor lost by marriage.—(1) No person shall, by marriage, acquire any interest in the property of the person whom he or she marries or become incapable of doing any act in respect of his or her own property which he or she could have done if unmarried.

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(2) This section—

(*a*) shall not apply to any marriage contracted before the first day of January, 1866;

(*b*) shall not apply, and shall be deemed never to have applied, to any marriage one or both of the parties to which professed at the time of the marriage the Hindu, [3][Muslim], Buddhist, Sikh or Jaina religion.

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[1]Subs. by A.O., 1961, Art. 2 and Sch., for "His Majesty" (*with effect from the 23rd March, 1956).*

[2] Subs. by the Central Laws (Statute Reform) (Ordinance, 1960) (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. A. O., 1949, for "British India".

[3] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".

21. Effect of marriage between person domiciled and one not domiciled in Pakistan. If a person whose domicile is in [1][Pakistan] marries in [1][Pakistan] a person whose domicile is not in [1][Pakistan], neither party acquires by the marriage any rights in respect of any property of the other party not comprised in a settlement made previous to the marriage, which he or she would not acquire thereby if both were domiciled in [1][Pakistan] at the time of the marriage.

22. Settlement of minor's property in contemplation of marriage.—(1) The property of a minor may be settled in contemplation of marriage, provided the settlement is made by the minor with the approbation of the minor's father, or, if the father is dead or absent from [1][Pakistan], with the approbation of the High Court.

(2) Nothing in this section or in section 21 shall apply to any will made or intestacy occurring before the first day of January, 1866, or to intestate or testamentary succession to the property of any Hindu, [2][Muslim], Buddhist, Sikh or Jaina.

PART IV

Of Consanguinity

23. Application of Part. Nothing in this Part shall apply to any will made or intestacy occurring before the first day of January, 1866 , or to intestate or testamentary succession to the property of any Hindu, [2][Muslim], Buddhist, Sikh, Jaina or Parsi.

24. Kindred or consanguinity. Kindred or consanguinity is the connection or relation of persons descended from the same stock or common ancestor.

25. Lineal consanguinity.—(1) Lineal consanguinity is that which subsists between two persons, one of whom is descended in a direct line from the other, as between a man and his father, grandfather and great-grandfather, and so upwards in the direct ascending line ; or between a man and his son, grandson, great-grandson and so downwards in the direct descending line.

(2) Every generation constitutes a degree, either ascending or descending.

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(3) A person's father is related to him in the first degree, and so likewise is his son; his grandfather and grandson in the second degree; his great-grandfather and great- grandson in the third degree, and so on.

26. Collateral consanguinity.—(1) Collateral consanguinity is that which subsists between two persons who are descended from the same stock or ancestor, but neither of whom is descended in a direct line from the other.

(2) For the purpose of ascertaining in what degree of kindred any collateral relative stands to a person deceased, it is necessary to reckon upwards from the person deceased to the common stock and then downwards to the collateral relative, a degree being allowed for each person, both ascending and descending.

27. Persons held for purpose of succession to be similarly related to deceased. For the purpose of succession, there is no distinction—

[1] Subs. by the Central Laws (Statute Reform) (Ordinance, 1960) (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. A. O., 1949, for "British India".
[2]Sub. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".

(a) between those who are related to a person deceased through his father, and those who are related to him through his mother; or

(b) between those who are related to a person deceased by the full blood, and those who are related to him by the half blood; or

(c) between those who were actually born in the lifetime of a person deceased and those who at the date of his death were only conceived in the womb, but who have been subsequently born alive.

28. Mode of computing of degrees of kindred. Degrees of kindred are computed in the manner set forth in the table of kindred set out in Schedule I.

Illustrations

(i) The person whose relatives are to be reckoned, and his cousingerman, or first cousin, are, as shown in the table, related in the fourth degree; there being one degree of ascent to the father and another to the common ancestor, the grandfather; and from him one of descent to the uncle, and another to the cousin- german, making in all four degrees.

(ii) A grandson of the brother and a son of the uncle, i.e., a greatnephew and a cousin- german, are in equal degree being each four degrees removed.

(iii) A grandson of a cousin- german is in the same degree as the grandson of a great- uncle, for they are both in the sixth degree of kindred.

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PART V
Intestate Succession

CHAPTER I
PRELIMINARY

29. Application of Part.—(1) This Part shall not apply to any intestacy occurring before the first day of January, 1866, or to the property of any Hindu, [1][Muslim], Buddhist, Sikh or Jaina.

(2) Save as provided in sub-section (1) or by any other law for the time being in force, the provisions of this Part shall constitute the law of [2][Pakistan] in all cases of intestacy.

30. As to what property deceased considered to have died intestate. A person is deemed to die intestate in respect of all property of which he has not made a testamentary disposition which is capable of taking effect.

Illustrations

(i) A has left no will. He has died intestate in respect of the whole of his property.

(ii) A has left a will, whereby he has appointed B his executor; but the will contains no other provisions. A has died intestate in respect of the distribution of his property.

(iii) A has bequeathed his whole property for an illegal purpose. A has died intestate in respect of the distribution of his property.

[1]Sub. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".

[2] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955),* for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

(iv) A has bequeathed 1, 000 rupees to B and 1, 000 rupees to the eldest son of C, and has made no other bequest; and has died leaving the sum of 2, 000 rupees and no other property. C died before A without having ever had a son. A has died intestate in respect of the distribution of 1,000 rupees.

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CHAPTER II

RULES IN CASE OF INTESTATES OTHER THAN PARSIS

31. Chapter not to apply to Parsis. Nothing in this Chapter shall apply to Parsis.

32. Devolution of such property. The property of an intestate devolves upon the wife or husband, or upon those who are of the kindred of the deceased, in the order and according to the rules hereinafter contained in this Chapter.

Explanation.—A widow is not entitled to the provision hereby made for her if, by a valid contract made before her marriage, she has been excluded from her distributive share of her husband's estate.

33. Where intestate has left widow and lineal descendants, or widow and kindred only, or widow and no kindred. Where the intestate has left a widow—

(a) if he has also left any lineal descendants, one-third of his property shall belong to his widow, and the remaining two- thirds shall go to his lineal descendants, according to the rules hereinafter contained;

(b) [1][save as provided by section 33A,] if he has left no lineal descendant, but has left persons who are of kindred to him, one- half of his property shall belong to his widow, and the other half shall go to those who are kindred to him, in the order and according to the rules hereinafter contained;

(c) if he has left none who are of kindred to him, the whole of his property shall belong to his widow.

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[2]**[33A. Special provision where intestate has left widow and no lineal descendants.—**(1) Where the intestate has left a widow but no lineal descendants and the nett value of his property does not exceed five thousand rupees, the whole of his property shall belong to the widow.

(2) Where the nett value of the property exceeds the sum of five thousand rupees, the widow shall be entitled to five thousand rupees thereof and shall have a charge upon the whole of such property for such sum of five thousand rupees, with interest thereon from the date of the death of the intestate at 4 per cent per annum until payment.

(3) The provision for the widow made by this section shall be in addition and without prejudice to her interest and share in the residue of the estate of such intestate remaining after payment of the said sum of five thousand rupees with interest as aforesaid, and such residue shall be distributed in accordance with the provisions of section 33 as if it were the whole of such intestate' s property.

[1]Ins. by the Indian Succession (Amdt.) Act,1926, (40 of 1926), s. 2.
[2]S. 33A ins. by the Indian Succession (Amdt.) Act, 1926 (40 of 1926), s. 3.

(4) The nett value of the property shall be ascertained by deducting from the gross value thereof all debts, and all funeral and administration expenses of the intestate, and all other lawful liabilities and charges to which the property shall be subject.

(5) This section shall not apply—

(*a*) to the property of—

(i) any [1][Pakistan Christian],

(ii) any child or grandchild of any male person who is or was at the time of his death [2][a] [1][Pakistan Christian], or

(iii) any person professing the Hindu, Buddhist, Sikh or Jaina religion the succession to whose property is, under section 24 of the Special Marriage Act, 1872 (III of 1872), regulated by the provisions of this Act;

(*b*) unless the deceased dies intestate in respect of all his property.]

34. Where intestate has left no widow, and where he has left no kindred. Where the intestate has left no widow, his property shall go to his lineal descendants or to those who are of kindred to him, not being lineal descendants, according to the rules hereinafter contained ; and, if he has left none who are of kindred to him, it shall go to the 3[Government].

35. Rights of widower. A husband surviving his wife has the same rights in respect of her property, if she dies intestate, as a widow has in respect of her husband' s property, if he dies intestate.

Distribution where there are lineal descendants

36. Rules of distribution. The rules for the distribution of the intestate's property (after deducting the widow's share, if he has left a widow) amongst his lineal descendants shall be those contained in sections 37 to 40.

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37. Where intestate has left child or children only. Where the intestate has left surviving him a child or children, but no more remote lineal descendant through a deceased child, the property shall belong to his surviving child, if there is only one, or shall be equally divided among all his surviving children.

38. Where intestate has left no child, but grandchild or grandchildren. Where the intestate has not left surviving him any child, but has left a grandchild or grandchildren and no more remote descendant through a deceased grandchild, the property shall belong to his surviving grandchild if there is only one, or shall be equally divided among all his surviving grandchildren.

[1]Subs. by A. O., 1949, for "Indian Christian".
[2]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., for "an"
[3]Subs. by A. O., 1961, Art. 2, for "Crown" (with effect from the 23rd March, 1956).

Illustrations

(*i*) A has three children, and no more, John, Mary and Henry. They all die before the father, John leaving two children, Mary three and Henry four. Afterwards A dies intestate, leaving those nine grandchildren and no descendant of any deceased grandchild. Each of his grandchildren will have one- ninth.

(*ii*) But if Henry has died, leaving no child, then the whole is equally divided between the intestate's five grandchildren, the children of John and Mary.

39. Where intestate has left only great-grandchildren or remoter lineal descendants. In like manner the property shall go to the surviving lineal descendants who are nearest in degree to the intestate, where they are all in the degree of great- grandchildren to him, or are all in a more remote degree.

40. Where intestate leaves lineal descendants not all in same degree of kindred to him, and those through whom the more remote are descended are dead.—(1) If the intestate has left lineal descendants who do not all stand in the same degree of kindred to him, and the persons through whom the more remote are descended from him are dead, the property shall be divided into such a number of equal shares as may correspond with the number of the lineal descendants of the intestate who either stood in the nearest degree of kindred to him at his decease, or, having been of the like degree of kindred to him, died before him, leaving lineal descendants who survived him.

(2) One of such shares shall be allotted to each of the lineal descendants who stood in the nearest degree of kindred to the intestate at his decease; and one of such shares shall be allotted in respect of each of such deceased lineal descendants; and the share allotted in respect of each of such deceased lineal descendants shall belong to his surviving child or children or more remote lineal descendants, as the case may be; such surviving child or children or more remote lineal descendants always taking the share which his or their parent or parents would have been entitled to respectively if such parent or parents had survived the intestate.

Illustrations

(*i*) A had three children, John, Mary and Henry; John died, leaving four children, and Mary died, leaving one, and Henry alone survived the father. On the death of A, intestate, one-third is allotted to Henry, one-third to John's four children, and the remaining third to Mary's one child.

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(*ii*) A left no child, but left eight grandchildren, and two children of a deceased grandchild. The property is divided into nine parts, one of which is allotted to each grandchild, and the remaining one-ninth is equally divided between the two great- grandchildren.

(*iii*) A has three children, John, Mary and Henry ; John dies leaving four children; and one of John's children dies leaving two children. Mary dies leaving one child. A afterwards dies intestate. One-third of his property is allotted to Henry, one-third to Mary's child, and one-third is divided into four parts, one of which is allotted to each of John's three surviving children, and the remaining part is equally divided between John's two grandchildren.

(*iv*) A has two children, and no more, John and Mary. John dies before his father, leaving his wife pregnant. Then A dies leaving Mary surviving him, and in due time a child of John is born. A's property is to be equally divided between Mary and the posthumous child.

Distribution where there are no lineal descendants

41. Rules of distribution where intestate has left no lineal descendants. Where an intestate has left no lineal descendants, the rules for the distribution of his property (after deducting the widow's share, if he has left a widow) shall be those contained in sections 42 to 48.

42. Where intestate's father living. If the intestate's father is living, he shall succeed to the property.

43. Where intestate's father dead but his mother, brothers and sisters living. If the intestate's father is dead, but the intestate's mother is living and there are also brothers or sisters of the intestate living, and there is no child living of any deceased brother or sister, the mother and each living brother or sister shall succeed to the property in equal shares.

Illustration

A dies intestate, survived by his mother and two brothers of the full blood, John and Henry, and a sister Mary, who is the daughter of his mother but not of his father. The mother takes one-fourth, each brother takes one-fourth and Mary, the sister of half blood, takes one-fourth.

44. Where intestate's father dead and his mother, a brother or sister, and children of any deceased brother or sister, living. If the intestate's father is dead, but the intestate's mother is living, and if any brother or sister and the child or children of any brother or sister who may have died in the intestate's lifetime are also living then the mother and each living brother or sister, and the living child or children of each deceased brother or sister, shall be entitled to the property in equal shares, such children (if more than one) taking in equal shares only the shares which their respective parents would have taken if living at the intestate's death.

Illustration

A, the intestate, leaves his mother, his brothers John and Henry, and also one child of a deceased sister, Mary, and two children of George, a deceased brother of the half blood who was the son of his father but not of his mother. The mother takes one-fifth, John and Henry each takes one-fifth, the child of Mary takes one-fifth, and the two children of George divide the remaining one-fifth equally between them.

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45. Where intestate's father is dead and his mother and children of any deceased brother or sister living. If the intestate's father is dead, but the intestate's mother is living, and the brothers and sisters are all dead, but all or any of them have left children who survived the intestate, the mother and the child or children of each deceased brother or sister shall be entitled to the property in equal shares, such children (if more than one) taking in equal shares only the shares which their respective parents would have taken if living at the intestate's death.

Illustration

A, the intestate, leaves no brother or sister, but leaves his mother and one child of a deceased sister, Mary, and two children of a deceased brother, George. The mother takes one- third, the child of Mary takes one-third, and the children of George divide the remaining one-third equally between them.

46. Where intestate's father is dead, but his mother living and no sister, brother, nephew or niece. If the intestate's father is dead, but the intestate's mother is living, and there is neither brother, nor sister, nor child of any brother or sister of the intestate, the property shall belong to the mother.

47. Where intestate has left neither lineal descendant, nor father, nor mother. Where the intestate has left neither lineal descendant, nor father, nor mother, the property shall be divided equally between his brothers and sisters and the child or children of such of them as may have died before him, such children (if more than one) taking in equal shares only the shares which their respective parents would have taken if living at the intestate's death.

48. Where intestate has left neither lineal descendant, nor parent, nor brother, nor sister. Where the intestate has left neither lineal descendant, nor parent, nor brother, nor sister, his property shall be divided equally among those of his relatives who are in the nearest degree of kindred to him.

Illustrations

(*i*) A, the intestate, has left a grandfather, and a grandmother and no other relative standing in the same or a nearer degree of kindred to him: They, being in the second degree, will be entitled to the property in equal shares exclusive of any uncle or aunt of the intestate, uncles and aunts being only in the third degree.

(*ii*) A, the intestate, has left a great-grandfather, or a great-grandmother, and uncles and aunts, and no other relative standing in the same or a nearer degree of kindred to him. All of these being in the third degree will take equal shares.

(*iii*) A, the intestate, left a great-grandfather, an uncle and a nephew, but no relative standing in a nearer degree of kindred to him. All of these being in the third degree will take equal shares.

(*iv*) Ten children of one brother or sister of the intestate, and one child of another brother or sister of the intestate, constitute the class of relatives of the nearest degree of kindred to him. They will each take one- eleventh of the property.

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49. Children's advancements not brought into hotchpot. Where a distributive share in the property of a person who has died intestate is claimed by a child, or any descendant of a child, of such person, no money or other property which the intestate may, during his life, have paid, given or settled to, or for the advancement of, the child by whom or by whose descendant the claim is made shall be taken into account in estimating such distributive share.

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CHAPTER III

SPECIAL RULES FOR PARSI INTESTATES

[1][**50. General principles relating to intestate succession**. For the purpose of intestate succession among Parsis—

(*a*) there is no distinction between those who were actually born in the lifetime of a person deceased and those who at the date of his death were only conceived in the womb, but who have been subsequently born alive;

(*b*) a lineal descendant of an intestate who has died in the lifetime of the intestate without leaving a widow or widower or any lineal descendant or a widow of any lineal descendent shall not be taken into account in determining the manner in which the property of which the intestate has died intestate shall be divided; and

(c) where a widow of any relative of an intestate has married again in the lifetime of the intestate, she shall not be entitled to receive any share of the property of which the intestate has died intestate, and she shall be deemed not to be existing at the intestate's death.

51. Division of a male intestate's property among his widow, children and parents.—(1) Subject to the provisions of sub-section (2), the property of which a male Parsi dies intestate shall be divided—

(*a*) where he dies leaving a widow and children, among the widow and children, so that the share of each son and of the widow shall be double the share of each daughter, or

(*b*) where he dies leaving children but no widow, among the children, so that the share of each son shall be double the share of each daughter.

(2) Where a male Parsi dies leaving one or both parents in addition to children or a widow and children, the property of which he dies intestate shall be divided so that the father shall receive a share equal to half the share of a son and the mother shall receive a share equal to half the share of a daughter.

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52. Division of a female intestate's property among her widower and children. The property of which a female Parsi dies intestate shall be divided—

(*a*) where she dies leaving a widower and children among the widower and children so that the widower and each child receive equal shares, or

(*b*) where she dies leaving children but no widower, among the children in equal shares.

53. Division of share of predeceased child of intestate leaving lineal descendants. In all cases where a Parsi dies leaving any lineal descendant, if any child of such intestate has died in the lifetime of the intestate, the division of the share of the property of which the intestate has died intestate which such child would have taken if living at the intestate's death shall be in accordance with the following rules, namely:—

[1] Subs. by the Indian Succession (Amdt.) Act, 1939 (17 of 1939), s. 2, for sections 50 to 56 (both inclusive).

(*a*) If such deceased child was a son his widow and children shall take shares in accordance with the provisions of this Chapter as if he had died immediately after the intestate's death:

Provided that where such deceased son has left a widow or a widow of a lineal descendant but no lineal descendant, the residue of his share after such distribution has been made shall be divided in accordance with the provisions of this Chapter as property of which the intestate has died intestate, and in making the division of such residue the said deceased son of the intestate shall not be taken into account.

(*b*) If such deceased child was a daughter, her share shall be divided equally among her children.

(*c*) If any child of such deceased child has also died during the lifetime of the intestate, the share which he or she would have taken if living at the intestate's death shall be divided in like manner in accordance with clause (*a*) or clause (*b*) as the case may be.

(d) Where a remoter lineal descendant of the intestate has died during the lifetime of the intestate, the provisions of clause (*c*) shall apply *mutatis mutandis* to the division of any share to which he or she would have been entitled if living at the intestate's death by reason of the pre deceased of all the intestate's lineal descendants directly between him or her and the intestate.

54. Division of property where intestate leaves no lineal descendant but leaves a widow or widower or a widow of any lineal descendant. Where a Parsi dies without leaving any lineal descendant but leaving a widow or widower or a widow of a lineal descendant, the property of which the intestate dies intestate shall be divided in accordance with the following rules, namely:—

(*a*) If the intestate leaves a widow or widower but no widow of a lineal descendant, the widow or widower shall take half the said property.

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(*b*) If the intestate leaves a widow or widower and also a widow of any lineal descendant, his widow or her widower shall receive one-third of the said property, and the widow of any lineal descendant shall receive another one-third, or if there is more than one such widow, the last mentioned one-third shall be divided equally among them.

(*c*) If the intestate leaves no widow or widower but one widow of a lineal descendant, she shall receive one-third of the said property or, if the intestate leaves no widow or widower but more than one widow of a lineal descendant, two-thirds of the said property shall be divided among such widows in equal shares.

(*d*) The residue after the division specified in clause (*a*), (*b*) or (*c*) has been made shall be distributed among the relatives of the intestate in the order specified in Part I of Schedule II. The next-of-kin standing first in Part I of that Schedule shall be preferred to those standing second, the second to the third, and so on in succession, provided that the property shall be so distributed that each male

shall take double the shore of each female standing in the same degree of propinquity.

(*e*) If there are no relatives entitled to the residue under clause (*d*), the whole of the residue shall be distributed in proportion to the share specified among the persons entitled to receive shares under this section.

55. Division of property where intestate leaves neither lineal descendants nor a widow or widower nor a widow of any lineal descendant. When a Parsi dies leaving neither lineal descendants nor a widow or widower nor a widow of any lineal descendant, his or her next-of-kin, in the order set forth in Part II of Schedule II, shall be entitled to succeed to the whole of the property of which he or she dies intestate. The next- of- kin standing first in Part II of that Schedule shall be preferred to those standing second, the second to the third, and so on in succession, provided that the property shall be so distributed that each male shall take double the share of each female standing in the same degree of propinquity.

56. Division of property where there is no relative entitled to succeed under the other provisions of this Chapter. Where there is no relative entitled to succeed under the other provisions of this Chapter to the property of which a Parsi has died intestate, the said property shall be divided equally among those of the intestate's relatives who are in the nearest degree of kindred to him.]

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PART VI

Testamentary Succession

CHAPTER I

INTRODUCTORY

[1]**57. Application of certain provisions**. The provisions of this Part which are set out in Schedule III shall, subject to the restrictions and modifications specified therein, apply—

[2][* * * * * * *]

(*c*) to all wills and codicils made by any Hindu, Buddhist, Sikh or Jaina on or after the first day of January, 1927 , to which those provisions are not applied by clauses (a) and (b):

Provided that marriage shall not revoke any such will or codicil.

58. General application of Part.—(1) The provisions of this Part shall not apply to testamentary succession to the property of any [3][Muslim] nor, save as provided by section 57, to testamentary succession to the property of any Hindu, Buddhist, Sikh or Jaina ; nor shall they apply to any will made before the first day of January, 1866 .

(2) Save as provided in sub-section (1) or by any other law for the time being in force, the provisions of this Part shall constitute the law of [4][Pakistan] applicable to all cases of testamentary succession.

[1]The original s. 57 was re-numbered as sub-section (1) of that section, and a new sub-section (2) added by the Indian Succession (Amdt.) Act, 1926 (37 of 1926), s. (2) but subsequently sub-section (2) was omtted, and sub-section (1) was re-numbered as section 57, by the Indian Succession (Amdt.) Act, 1929 (18 of 1929), s. 3.

[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II.

[3] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan"

[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October 1955),* for "the Provinces and the Capital of the Federation" which had been subs. A.O., 1949, for "British India".

CHAPTER II
OF WILLS AND CONDICILS

59. Person capable of making wills. Every person of sound mind not being a minor may dispose of his property by will.

*Explanation **1.—*** A married woman may dispose by will of any property which she could alienate by her own act during her life.

*Explanation **2***.—Persons who are deaf or dumb or blind are not thereby incapacitated for making a will if they are able to know what they do by it.

*Explanation. **3***.— A person who is ordinarily insane may make a will during interval in which he is of sound mind.

*Explanation **4***.— No person can make a will while he is in such a state of mind, whether arising from intoxication or from illness or from any other cause, that he does not know what he is doing.

Illustrations

(*i*) A can perceive what is going on in his immediate neighbourhood, and can answer familiar questions, but has not a competent understanding as to the nature of his property, or the persons who are of kindred to him, or in whose favour it would be proper that he should make his will. A cannot make a valid will.

(*ii*) A executes an instrument purporting to be his will, but he does not understand the nature of the instrument, nor the effect of its provisions. This instrument is not a valid will.

(*iii*) A, being very feeble and debilitated, but capable of exercising a judgment as to the proper mode of disposing of his property, makes a will. This is a valid will.

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60. Testamentary guardian. A father, whatever his age may be, may by will appoint a guardian or guardians for his child during minority.

61. Will obtained by fraud, coercion or importunity. A will or any part of a will, the making of which has been caused by fraud or coercion, or by such importunity as takes away the free agency of the testator, is void.

Illustrations

(*i*) A falsely and knowingly represents to the testator that the testator's only child is dead, or that he has done some undutiful act and thereby induces the testator to make a will in his, A's, favour; such will has been obtained by fraud, and is invalid.

(*ii*) A, by fraud and deception, prevails upon the testator to bequeath a legacy to him. The bequest is void.

(*iii*) A, being a prisoner by lawful authority, makes his will. The will is not invalid by reason of the imprisonment.

(*iv*) A threatens to shoot B, or to burn his house or to cause him to be arrested on a criminal charge, unless he makes a bequest in favour of C. B, in consequence, makes a bequest in favour of C. The bequest is void, the making of it having been caused by coercion.

(*v*) A, being of sufficient intellect, if undisturbed by the influence of others, to make a will yet being so much under the control of B that he is not a free agent, makes a will, dictated by B. It appears that he would not have executed the will but for fear of B. The will is invalid.

(*vi*) A, being in so feeble a state of health as to be unable to resist importunity, is pressed by B to make a will of a certain purport and does so merely to purchase peace and in submission to B. The will is invalid.

(*vii*) A being in such a state of health as to be capable of exercising his own judgment and volition, B uses urgent intercession and persuasion with him to induce him to make a will of a certain purport. A, in consequence of the intercession and persuasion, but in the free exercise of his judgment and volition makes his will in the manner recommended by B. The will is not rendered invalid by the intercession and persuasion of B.

(*viii*) A, with a view to obtaining a legacy from B, pays him attention and flatters him and thereby produces in him a capricious partiality to A. B, in consequence of such attention and flattery, makes his will, by which he leaves a legacy to A. The bequest is not rendered invalid by the attention and flattery of A.

62. Will may be revoked or altered. A will is liable to be revoked or altered by the maker of it at any time when he is competent to dispose of his property by will.

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CHAPTER III

OF THE EXECUTION OF UNPRIVILEGED WILLS

63. Execution of unprivileged wills. Every testator, not being a soldier employed in an expedition or engaged in actual warfare, [1][or an airman so employed or engaged,] or a mariner at sea, shall execute his will according to the following rules:—

(*a*) The testator shall sign or shall affix his mark to the will, or it shall be signed by some other person in his presence and by his direction.

(*b*) The signature or mark of the testator, or the signature of the person signing for him, shall be so placed that it shall appear that it was intended thereby to give effect to the writing as a will.

[1]Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s. 2 and 1st Sch.

(*c*) The will shall be attested by two or more witnesses, each of whom has seen the testator sign or affix his mark to the will or has seen some other person sign the will, in the presence and by the direction of the testator, or has received from the testator a personal acknowledgment of his signature or mark, or of the signature of such other person ; and each of the witnesses shall sign the will in the presence of the testator, but it shall not be necessary that more than one witness be present at the same time, and no particular form of attestation shall be necessary.

64. Incorporation of papers by reference. If a testator, in a will or codicil duly attested, refers to any other document then actually written as expressing any part of his intentions, such document shall be deemed to form a part of the will or codicil in which it is referred to.

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CHAPTER IV
OF PRIVILEGED WILLS

65. Privileged wills. Any soldier being employed in an expedition or engaged in actual warfare, [1][or an airman so employed or engaged,] or any mariner being at sea, may, if he has completed the age of eighteen years, dispose of his property by a will made in the manner provided in section 66. Such wills are called privileged wills.

Illustrations

(*i*) A, a medical officer attached to a regiment, is actually employed in an expedition. He is a soldier actually employed in an expedition, and can make a privileged will.

(*ii*) A is at sea in a merchant- ship, of which he is the purser. He is a mariner, and, being at sea, can make a privileged will.

(*iii*) A, a soldier serving in the field against insurgents, is a soldier engaged in actual warfare, and as such can make a privileged will.

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(iv) A, a mariner of a ship, in the course of a voyage, is temporarily on shore while she is lying in harbour. He is, for the purposes of this section, a mariner at sea, and can make a privileged will.

(*v*) A, an admiral who commands a naval force, but who lives on shore, and only occasionally goes on board his ship, is not considered as at sea, and cannot make a privileged will.

(*vi*) A, a mariner serving on a military expedition, but not being at sea, is considered as a soldier, and can make a privileged will.

66. Mode of making, and rules for executing, privileged wills.— (1) Privileged wills may be in writing, or may be made by word of mouth.

[1]Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s. 2 and 1st Sch.

(2) The execution of privileged wills shall be governed by the following rules:—

(*a*) The will may be written wholly by the testator, with his own hand. In such case it need not be signed or attested.

(*b*) It may be written wholly or in part by another person, and signed by the testator. In such case it need not be attested.

(*c*) If the instrument purporting to be a will is written wholly or in part by another person and is not signed by the testator, it shall be deemed to be his will, if it is shown that it was written by the testator's directions or that he recognised it as his will.

(*d*) If it appears on the face of the instrument that the execution of it in the manner intended by the testator was not completed, the instrument shall not, by reason of that circumstance, be invalid, provided that his non-execution of it can be reasonably ascribed to some cause other than the abandonment of the testamentary intentions expressed in the instrument.

(*e*) If the soldier, [1][airman] or mariner has written instructions for the preparation of his will, but has died before it could be prepared and executed, such instructions shall be considered to constitute his will.

(*f*) If the soldier, [1][airman] or mariner has, in the presence of two witnesses, given verbal instructions for the preparation of his will, and they have been reduced into writing in his lifetime, but he has died before the instrument could be prepared and executed, such instructions shall be considered to constitute his will, although they may not have been reduced into writing in his presence, nor read over to him.

(*g*) The soldier, [1][airman] or mariner may make a will by word of mouth by declaring his intentions before two witnesses present at the same time.

(*h*) A will made by word of mouth shall be null at the expiration of one month after the testator, being still alive, has ceased to be entitled to make a privileged will.

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CHAPTER V
OF THE ATTESTATION, REVOCATION, ALTERATION AND REVIVAL OF WILLS.

67. Effect of gift to attesting witness. A will shall not be deemed to be insufficiently attested by reason of any benefit thereby given either by way of bequest or by way of appointment to any person attesting it, or to his or her wife or husband; but the bequest or appointment shall be void so far as concerns the person so attesting, or the wife or husband of such person, or any person claiming under either of them.

[1]Ins. by the Repealing and Amending Act, 1927 (10 of 1927), s. 2 and 1st Sch.

Explanation.— A legatee under a will does not lose his legacy by attesting a codicil which confirms the will.

68. Witness not disqualified by interest or by being executor. No person, by reason of interest in, or of his being an executor of, a will, shall be disqualified as a witness to prove the execution of the will or to prove the validity or invalidity thereof.

69. Revocation of will by testator's marriage. Every will shall be revoked by the marriage of the maker, except a will made in exercise of a power of appointment, when the property over which the power of appointment is exercised would not, in default of such appointment, pass to his or her executor or administrator, or to the person entitled in case of intestacy.

Explanation.— Where a man is invested with power to determine the disposition of property of which he is not the owner, he is said to have power to appoint such property.

70. Revocation of unprivileged will or codicil. No unprivileged will or codicil, nor any part thereof, shall be revoked otherwise than by marriage, or by another will or codicil, or by some writing declaring an intention to revoke the same and executed in the manner in which an unprivileged will is hereinbefore required to be executed, or by the burning, tearing or otherwise destroying the same by the testator or by some person in his presence and by his direction with the intention of revoking the same.

Illustrations

(i) A has made an unprivileged will. Afterwards, A makes another unprivileged will which purports to revoke the first. This is a revocation.

(ii) A has made an unprivileged will. Afterwards, A, being entitled to make a privileged will, makes a privileged will, which purports to revoke his unprivileged will. This is a revocation.

71. Effect of obliteration, interlineation or alteration in unprivileged will. No obliteration, interlineation or other alteration made in any unprivileged will after the execution thereof shall have any effect, except so far as the words or meaning of the will have been thereby rendered illegible or undiscernible, unless such alteration has been executed in like manner as hereinbefore is required for the execution of the will:

Provided that the will, as so altered, shall be deemed to be duly executed if the signature of the testator and the subscription of the witnesses is made in the margin or on some other part of the will opposite or near to such alteration, or at the foot or end of or opposite to a memorandum referring to such alteration, and written at the end or some other part of the will.

72. Revocation of privileged will or codicil. A privileged will or codicil may be revoked by the testator by an unprivileged will or codicil, or by any act expressing an intention to revoke it and accompanied by such formalities as would be sufficient to give validity to a privileged will, or by the burning, tearing or otherwise destroying the same by the testator, or by some person in his presence and by his direction, with the intention of revoking the same.

Explanation.—In order to the revocation of a privileged will or codicil by an act accompanied by such formalities as would be sufficient to give validity to a privileged will, it is not

necessary that the testator should at the time of doing that act be in a situation which entitles him to make a privileged will.

73. Revival of unprivileged will.—(1) No unprivileged will or codicil, nor any part thereof, which has been revoked in any manner, shall be revived otherwise than by the re-execution thereof, or by a codicil executed in manner hereinbefore required, and showing an intention to revive the same.

(2) When any will or codicil, which has been partly revoked and afterwards wholly revoked, is revived, such revival shall not extend to so much thereof as has been revoked before the revocation of the whole thereof, unless an intention to the contrary is shown by the will or codicil.

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CHAPTER VI
OF THE CONSTRUCTION OF WILLS

74. Wording of will. It is not necessary that any technical words or terms of art be used in a will, but only that the wording be such that the intentions of the testator can be known therefrom.

75. Inquiries to determine questions as to object or subject of will. For the purpose of determining questions as to what person or what property is denoted by any words used in a will, a Court shall inquire into every material fact relating to the persons who claim to be interested under such will, the property which is claimed as the subject of disposition, the circumstances of the testator and of his family, and into every fact a knowledge of which may conduce to the right application of the words which the testator has used.

Illustrations

(*i*) A, by his will, bequeaths 1, 000 rupees to his eldest son or to his youngest grandchild, or to his cousin, Mary. A Court may make inquiry in order to ascertain to what person the description in the will applies.

(*ii*) A, by his will, leaves to B "my estate called Black Acre". It may be necessary to take evidence in order to ascertain what is the subject-matter of the bequest; that is to say, what estate of the testator's is called Black Acre.

(*iii*) A, by his will, leaves to B "the estate which I purchased of C". It may be necessary to take evidence in order to ascertain what estate the testator purchased of C.

76. Misnomer or misdescription of object.—(1) Where the words used in a will to designate or describe a legatee or a class of legatees sufficiently show what is meant, an error in the name or description shall not prevent the legacy from taking effect.

(2) A mistake in the name of a legatee may be corrected by a description of him, and a mistake in the description of a legatee may be corrected by the name.

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Illustrations

(i) A bequeaths a legacy to "Thomas, the second son of my brother John". The testator has an only brother named John, who has no son named Thomas, but has a second son whose name is William. William will have the legacy.

(ii) A bequeaths a legacy "to Thomas, the second son of my brother John". The testator has an only brother, named John, whose first son is named Thomas and whose second son is named William. Thomas will have the legacy.

(iii) The testator bequeaths his property "to A and B, the legitimate children of C". C has no legitimate child, but has two illegitimate children, A and B. The bequest to A and B takes effect, although they are illegitimate.

(iv) The testator gives his residuary estate to be divided among "my seven children" and, proceeding to enumerate them, mentions six names only. This omission will not prevent the seventh child from taking a share with the others.

(v) The testator, having six grandchildren, makes a bequest to "my six grandchildren" and, proceeding to mention them by their Christian names, mentions one twice over omitting another altogether. The one whose name is not mentioned will take a share with the others.

(vi) The testator bequeaths "1, 000 rupees to each of the three children of A". At the date of the will A has four children. Each of these four children will, if he survives the testator, receive a legacy of 1, 000 rupees.

77. When words may be supplied. Where any word material to the full expression of the meaning has been omitted, it may be supplied by the context.

Illustration

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The testator gives a legacy of "five hundred" to his daughter A and a legacy of "five hundred rupees" to his daughter B. A will take a legacy of five hundred rupees.

78. Rejection of erroneous particulars in description of subject. If the thing which the testator intended to bequeath can be sufficiently identified from the description of it given in the will but some parts of the description do not apply, such parts of the description shall be rejected as erroneous, and the bequest shall take effect.

Illustrations

(*i*) A bequeaths to B "my marsh-lands lying in L and in the occupation of X". The testator had marsh-lands lying in L but had no marsh-lands in the occupation of X. The words "in the occupation of X" shall be rejected as erroneous, and the marsh-lands of the testator lying in L will pass by the bequest.

(*ii*) The testator bequeaths to A "my zamindari of Rampur". He had an estate at Rampur but it was a taluq and not a zamindari. The taluq passes by this bequest.

79. When part of description may not be rejected as erroneous. If a will mentions several circumstances as descriptive of the thing which the testator intends to bequeath, and there is any property of his in respect of which all those circumstances exist, the bequest shall be considered as limited to such property and it shall not be lawful to reject any part of the description as erroneous, because the testator had other property to which such part of the description does not apply.

Explanation.— In judging whether a case falls within the meaning of this section, any words which would be liable to rejection under section 78 shall be deemed to have been struck out of the will.

Illustrations

(*i*) A bequeaths to B "my marsh-lands lying in L and in the occupation of X". The testator had marsh- lands lying in L, some of which were in the occupation of X, and some not in the occupation of X. The bequest will be considered as limited to such of the testator's marsh-lands lying in L as were in the occupation of X.

(ii) A bequeaths to B "my marsh-lands lying in L and in the occupation of X, comprising 1, 000 bighas of lands". The testator had marsh-lands lying in L some of which were in the occupation of X and some not in the occupation of X. The measurement is wholly inapplicable to the marsh-lands of either class, or to the whole taken together. The measurement will be considered as struck out of the will, and such of the testator's marsh-lands lying in L as were in the occupation of X shall alone pass by the bequest.

80. Extrinsic evidence admissible in cases of patent ambiguity. Where the words of a will are unambiguous, but it is found by extrinsic evidence that they admit of applications, one only of which can have been intended by the testator, extrinsic evidence may be taken to show which of these applications was intended.

Illustrations

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(*i*) A man, having two cousins of the name of Mary, bequeaths a sum of money to "my cousin Mary". It appears that there are two persons, each answering the description in the will. That description, therefore, admits of two applications, only one of which can have been intended by the testator. Evidence is admissible to show which of the two applications was intended.

(*ii*) A, by his will, leaves to B "my estate called Sultanpur Khurd". It turns out that he had two estates called Sultanpur Khurd. Evidence is admissible to show which estate was intended.

81. Extrinsic evidence inadmissible in case of patent ambiguity or deficiency. Where there is an ambiguity or deficiency on the face of a will, no extrinsic evidence as to the intentions of the testator shall be admitted.

Illustrations

(i) A man has an aunt, Caroline, and a cousin, Mary, and has no aunt of the name of Mary. By his will he bequeaths 1, 000 rupees to "my aunt, Caroline" and 1, 000 rupees to "my cousin, Mary" and afterwards bequeaths 2, 000 rupees to "my before-mentioned aunt, Mary". There is no person to whom the description given in the will can apply, and evidence is not admissible to show who was meant by "my before-mentioned aunt, Mary". The bequest is therefore void for uncertainty under section 89.

(ii) A bequeaths 1,000 rupees to leaving a blank for the name of the legatee. Evidence is not admissible to show what name the testator intended to insert.

(iii) A bequeaths to B rupees, or "my estate of". Evidence is not admissible to show what sum or what estate the testator intended to insert.

82. Meaning of clause to be collected from entire will. The meaning of any clause in a will is to be collected from the entire instrument, and all its parts are to be construed with reference to each other.

Illustrations

(*i*) The testator gives to B a specific fund or property at the death of A, and by a subsequent clause gives the whole of his property to A. The effect of the several clauses taken together is to vest the specific fund or property in A for life, and after his decease in B; it appearing from the bequest to B that the testator meant to use in a restricted sense the words in which he describes what he gives to A.

(*ii*) Where a testator having an estate, one part of which is called Black Acre, bequeaths the whole of his estate to A, and in another part of his will bequeaths Black Acre to B, the latter bequest is to be read as an exception out of the first as if he had said "I give Black Acre to B, and all the rest of my estate to A".

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83. When words may be understood in restricted sense, and when in sense wider than usual. General words may be understood in a restricted sense where it may be collected from the will that the testator meant to use them in a restricted sense; and words may be understood in a wider sense than that which they usually bear, where it may be collected from the other words of the will that the testator meant to use them in such wider sense.

Illustrations

(*i*) A testator gives to A "my farm in the occupation of B", and to C "all my marsh-lands in L". Part of the farm in the occupation of B consists of marsh-lands in L, and the testator also has other marsh-lands in L. Thegeneral words, "all my marsh-lands in L," are restricted by the gift to A. A takes the whole of the farm in the occupation of B, including that portion of the farm which consists of marsh- lands in L.

(*ii*) The testator (a sailor on ship- board) bequeathed to his mother his gold ring, buttons and chest of clothes, and to his friend, A (a shipmate), his red box,

clasp-knife and all things not before bequeathed. The testator's share in a house does not pass to A under this bequest.

(*iii*) A, by his will, bequeathed to B all his household furniture, plate, linen, china, books, pictures and all other goods of whatever kind; and afterwards bequeathed to B a specified part of his property. Under the first bequest, B is entitled only to such articles of the testator's as are of the same nature with the articles therein enumerated.

84. Which of two possible constructions preferred. Where a clause is susceptible of two meanings according to one of which it has some effect, and according to the other of which it can have none, the former shall be preferred.

85. No part rejected, if can be it reasonably construed. No part of a will shall be rejected as destitute of meaning if it is possible to put a reasonable construction upon it.

86. Interpretation of words repeated in different parts of will. If the same words occur in different parts of the same will, they shall be taken to have been used everywhere in the same sense, unless a contrary intention appears.

87. Testator's intention to be effectuated, as far as, possible. The intention of the testator shall not be set aside because it cannot take effect to the full extent, but effect is to be given to it as far as possible.

Illustration

The testator by a will made on his death-bed bequeathed all his property to C D for life and after his decease to a certain hospital. The intention of the testator cannot take effect to its full extent, because the gift to the hospital is void under section 118, but it will take effect so far as regards the gift to C D.

88. The last of two inconsistent clauses prevails. Where two clauses of gifts in a will are irreconcileable, so that they cannot possibly stand together, the last shall prevail.

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Illustrations

(i) The testator by the first clause of his will leaves his estate of [1][Gujrat] "to A", and by the last clause of his will leaves it "to B and not to A". B will have it.

(ii) If a man, at the commencement of his will gives his house to A, and at the close of it directs that his house shall be sold and the proceeds invested for the benefit of B, the latter disposition will prevail.

89. Will or bequest void for uncertainty. A will or bequest not expressive of any definite intention is void for uncertainty.

[1]Subs. by the Federal Laws (Revision and Declaration), Ordinance, 1981 (27 of 1981), s. 3, and Sch., II, for "Rangpur". Which was previously amended by Ord. 21 of 1960, s. 3 and 2nd Sch., for "Ramnagar" (*w.e.f. 14th October, 1955*).

Illustration

If a testator says "I bequeath goods to A", or "I bequeath to A", or "I leave to A all the goods mentioned in the Schedule" and no Schedule is found, or "I bequeath 'money', 'wheat', 'oil'," or the like, without saying how much, this is void.

90. Words describing subject refer to property answering description at testator's death. The description contained in a will of property, the subject of gift, shall, unless a contrary intention appears by the will, be deemed to refer to and comprise the property answering that description at the death of the testator.

91. Power of appointment executed by general bequest. Unless a contrary intention appears by the will, a bequest of the estate of the testator shall be construed to include any property which he may have power to appoint by will to any object he may think proper, and shall operate as an execution of such power; and a bequest of property described in a general manner shall be construed to include any property to which such description may extend, which he may have power to appoint by will to any object he may think proper, and shall operate as an execution of such power.

92. Implied gift to objects of power in default of appointment. Where property is bequeathed to or for the benefit of certain objects as a specified person may appoint or for the benefit of certain objects in such proportions as a specified person may appoint, and the will does not provide for the event of no appointment being made; if the power given by the will is not exercised, the property belongs to all the objects of the power in equal shares.

Illustration

A, by his will, bequeaths a fund to his wife, for her life, and directs that at her death it shall be divided among his children in such proportions as she shall appoint. The widow dies without having made any appointment. The fund will be divided equally among the children.

93. Bequest to "heirs", etc., of particular person without qualifying terms. Where a bequest is made to the "heirs" or "right heirs" or "relations" or "nearest relations" or "family" or "kindred" or "nearest of kin" or "next-of-kin" of a particular person without any qualifying terms, and the class so designated forms the direct and independent object of the bequest, the property bequeathed shall be distributed as if it had belonged to such person and he had died intestate in respect of it, leaving assets for the payment of his debts independently of such property.

Illustrations

(i) A leaves his property "to my own nearest relations". The property goes to those who would be entitled to it if A had died intestate, leaving assets for the payment of his debts independently of such property.

(ii) A bequeaths 10, 000 rupees "to B for his life, and, after the death of B, to my own right heirs". The legacy after B's death belongs to those who would be entitled to it if it had formed part of A's unbequeathed property.

(iii) A leaves his property to B; but if B dies before him, to B's next-of-kin; B dies before A; the property devolves as if it had belonged to B, and he had died

intestate, leaving assets for the payment of his debts independently of such property.

(iv) A leaves 10, 000 rupees "to B for his life, and after his decease to the heirs of C". The legacy goes as if it had belonged to C, and he had died intestate, leaving assets for the payment of his debts independently of the legacy.

94. Bequest to "representatives", etc., of particular person. Where a bequest is made to the "representatives" or "legal representatives" or "personal representatives" or "executors or administrators" of a particular person, and the class so designated forms the direct and independent object of the bequest, the property bequeathed shall be distributed as if it had belonged to such person and he had died intestate in respect of it.

Illustration

A bequest is made to the "legal representatives" of A. A has died intestate and insolvent. B is his administrator. B is entitled to receive the legacy, and will apply it in the first place to the discharge of such part of A's debts as may remain unpaid: if there be any surplus B will pay it to those persons who at A's death would have been entitled to receive any property of A' s which might remain after payment of his debts, or to the representatives of such persons.

95. Bequest without words of limitation. Where property is bequeathed to any person, he is entitled to the whole interest of the testator therein, unless it appears from the will that only a restricted interest was intended for him.

96. Bequest in alternative. Where property is bequeathed to a person with a bequest in the alternative to another person or to a class of persons, then, if a contrary intention does not appear by the will, the legatee first named shall be entitled to the legacy if he is alive at the time when it takes effect; but if he is then dead, the person or class of persons named in the second branch of the alternative shall take the legacy.

Illustrations

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(*i*) A bequest is made to A or to B. A survives the testator. B takes nothing.

(*ii*) A bequest is made to A or to B. A dies after the date of the will, and before the testator. The legacy goes to B.

(*iii*) A bequest is made to A or to B. A is dead at the date of the will. The legacy goes to B.

(*iv*) Property is bequeathed to A or his heirs. A survives the testator. A takes the property absolutely.

(*v*) Property is bequeathed to A or his nearest of kin. A dies in the lifetime of the testator. Upon the death of the testator, the bequest to A's nearest of kin takes effect.

(*vi*) Property is bequeathed to A for life, and after his death to B or his heirs. A and B survive the testator. B dies in A's lifetime. Upon A's death the bequest to the heirs of B takes effect.

(*vii*) Property is bequeathed to A for life, and after his death to B or his heirs. B dies in the testator's lifetime. A survives the testator. Upon A's death the bequest to the heirs of B takes effect.

97. Effect of words describing a class added to bequest to person. Where property is bequeathed to a person, and words are added which describe a class of persons but do not denote them as direct objects of a distinct and independent gift, such person is entitled to the whole interest of the testator therein, unless a contrary intention appears by the will.

Illustrations

(*i*) A bequest is made—

A and his children,

to A and his children by his present wife,

to A and his heirs,

to A and the heirs of his body,

to A and the heirs male of his body,

to A and the heirs female of his body,

to A and his issue,

to A and his family,

to A and his descendants,

to A and his representatives,

to A and his personal representatives,

to A, his executors and administrators.

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In each of these cases, A takes the whole interest which the testator had in the property.

(*ii*) A bequest is made to A and his brothers. A and his brothers are jointly entitled to the legacy.

(*iii*) A bequest is made to A for life and after his death to his issue. At the death of A the property belongs in equal shares to all persons who then answer the description of issue of A.

98. Bequest to class of persons under general description only. Where a bequest is made to a class of persons under a general description only, no one to whom the words of the description are not in their ordinary sense applicable shall take the legacy.

99. Construction of terms. In a will—

(*a*) the word "children" applies only to lineal descendants in the first degree of the person whose "children" are spoken of;

(*b*) the word "grandchildren" applies only to lineal descendants in the second degree of the person whose "grandchildren" are spoken of;

(*c*) the words "nephews" and "nieces" apply only to children of brothers or sisters;

(*d*) the words "cousins", or "first cousins", or "cousins-german", apply only to children of brothers or of sisters of the father or mother of the person whose "cousins", or "first cousins", or "cousins-german", are spoken of;

(*e*) the words "first cousins once removed" apply only to children of cousins-german, or to cousins-german of a parent of the person whose "first cousins once removed" are spoken of;

(*f*) the words "second cousins" apply only to grandchildren of brothers or of sisters of the grandfather or grandmother of the person whose "second cousins" are spoken of;

(*g*) the words "issue" and "descendants" apply to all lineal descendants whatever of the person whose "issue" or "descendants" are spoken of;

(*h*) words expressive of collateral relationship apply alike to relatives of full and of half blood; and

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(*i*) all words expressive of relationship apply to a child in the womb who is afterwards born alive.

100. Words expressing relationship denote only legitimate relatives or failing such relatives reputed legitimate. In the absence of any intimation to the contrary in a will, the word "child", the word "son", the word "daughter", or any word which expresses relationship, is to be understood as denoting only a legitimate relative, or, where there is no such legitimate relative, a person who has acquired, at the date of the will, the reputation of being such relative.

Illustrations

(*i*) A having three children, B, C and D, of whom B and C are legitimate and D is illegitimate, leaves his property to be equally divided among "my children". The property belongs to B and C in equal shares, to the exclusion of D.

(*ii*) A, having a niece of illegitimate birth, who has acquired the reputation of being his niece, and having no legitimate niece, bequeaths a sum of money to his niece. The illegitimate niece is entitled to the legacy.

(*iii*) A, having in his will enumerated his children, and named as one of them B, who is illegitimate, leaves a legacy to "my said children". B will take a share in the legacy along with the legitimate children.

(*iv*) A leaves a legacy to "the children of B". B is dead and has left none but illegitimate children. All those who had at the date of the will acquired the reputation of being the children of B are objects of the gift.

(*v*) A bequeaths a legacy to "the children of B". B never had any legitimate child. C and D had, at the date of the will, acquired the reputation of being children of B. After the date of the will and before the death of the testator, E and F were born, and acquired the reputation of being children of B. Only C and D are objects of the bequest.

(*vi*) A makes a bequest in favour of his child by a certain woman, not his wife. B had acquired at the date of the will the reputation of being the child of A by the woman designated. B takes the legacy.

(*vii*) A makes a bequest in favour of his child to be born of a woman who never becomes his wife. The bequest is void.

(*viii*) A makes a bequest in favour of the child of which a certain woman, not married to him, is pregnant. The bequest is valid.

101. Rules of construction where will purports to make two bequests to same person. Where a will purports to make two bequests to the same person, and a question arises whether the testator intended to make the second bequest instead of or in addition to the first; if there is nothing in the will to show what he intended, the following rules shall have effect in determining the construction to be put upon the will:—

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(a) If the same specific thing is bequeathed twice to the same legatee in the same will or in the will and again in the codicil, he is entitled to receive that specific thing only.

(b) Where one and the same will or one and the same codicil purports to make, in two places, a bequest to the same person of the same quantity or amount of anything, he shall be entitled to one such legacy only.

(c) Where two legacies of unequal amount are given to the same person in the same will, or in the same codicil, the legatee is entitled to both.

(d) Where two legacies, whether equal or unequal in amount, are given to the same legatee, one by a will and the other by a codicil, or each by a different codicil, the legatee is entitled to both legacies.

Explanation.— In clauses (a) to (d) of this section, the word "will" does not include a codicil.

Illustrations

(i) A, having ten shares, and no more, in the Imperial Bank of India, made his will, which contains near its commencement the words "I bequeath my ten shares in the Imperial Bank of India to B". After other bequests, the will concludes with the words "and I bequeath my ten shares in the Imperial Bank of India to B". B is entitled simply to receive A's ten shares in the Imperial Bank of India.

(*ii*) A, having one diamond ring, which was given him by B, bequeaths to C the diamond ring which was given by B. A afterwards made a codicil to his will, and thereby, after giving other leagacies, he bequeathed to C the diamond ring which was given him by B. C can claim nothing except the diamond ring which was given to A by B.

(*iii*) A, by his will, bequeaths to B the sum of 5, 000 rupees and afterwards in the same will repeats the bequest in the same words. B is entitled to one legacy of 5, 000 rupees only.

(*iv*) A, by his will, bequeaths to B the sum of 5, 000 rupees and afterwards in the same will bequeaths to B the sum of 6, 000 rupees. B is entitled to receive 11, 000 rupees.

(*v*) A, by his will, bequeaths to B 5, 000 rupees and by a codicil to the will he bequeaths to him 5, 000 rupees. B is entitled to receive 10, 000 rupees.

(*vi*) A, by one codicil to his will, bequeaths to B 5,000 rupees and by another codicil bequeaths to him 6,000 rupees. B is entitled to receive 11,000 rupees.

(*vii*) A, by his will, bequeaths "500 rupees to B because she was my nurse", and in another part of the will bequeaths 500 rupees to B "because she went to England with my children". B is entitled to receive 1, 000 rupees.

(*viii*) A, by his will, bequeaths to B the sum of 5, 000 rupees and also, in another part of the will, an annuity of 400 rupees. B is entitled to both legacies.

(*ix*) A, by his will, bequeaths to B the sum of 5, 000 rupees and also bequeaths to him the sum of 5, 000 rupees if he shall attain the age of 18. B is entitled absolutely to one sum of 5, 000 rupees, and takes a contingent interest in another sum of 5, 000 rupees.

102. Constitution of residuary legatee. A residuary legatee may be constituted by any words that show an intention on the part of the testator that the person designated shall take the surplus or residue of his property.

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Illustrations

(i) A makes her will, consisting of several testamentary papers, in one of which are contained the following words:— "I think there will be something left, after all funeral expenses, etc., to give to B, now at school, towards equipping him to any profession he may hereafter be appointed to." B is constituted residuary legatee.

(ii) A makes his will, with the following passage at the end of it:- "I believe there will be found sufficient in my banker's hands to defray and discharge my debts, which I hereby, desire B to do, and keep the residue for her own use and pleasure." B is constituted the residuary legatee.

(iii) A bequeaths all his property to B, except certain stocks and funds, which he bequeaths to C. B is the residuary legatee.

103. Property to which residuary legatee entitled. Under a residuary bequest, the legatee is entitled to all property belonging to the testator at the time of his death, of which he has not made any other testamentary disposition which is capable of taking effect.

Illustration

A by his will bequeaths certain legacies, of which one is void under section 118, and another lapses by the death of the legatee. He bequeaths the residue of his property to B. After the date of his will A purchases a zamindari, which belongs to him at the time of his death. B is entitled to the two legacies and the zamindari as part of the residue.

104. Time of vesting legacy in general terms. If a legacy is given in general terms, without specifying the time when it is to be paid, the legatee has a vested interest in it from the day of the death of the testator, and, if he dies without having received it, it shall pass to his representatives.

105. In what case legacy lapses.—(1) If the legatee does not survive the testator, the legacy cannot take effect, but shall lapse and form part of the residue of the testator's property, unless it appears by the will that the testator intended that it should go to some other person.

(2) In order to entitle the representatives of the legatee to receive the legacy, it must be proved that he survived the testator.

Illustrations

(*i*) The testator bequeaths to B "500 rupees which B owes me". B dies before the testator; the legacy lapses.

(*ii*) A bequest is made to A and his children. A dies before the testator, or happens to be dead when the will is made. The legacy to A and his children lapses.

(*iii*) A legacy is given to A, and, in case of his dying before the testator, to B. A dies before the testator. The legacy goes to B.

(*iv*) A sum of money is bequeathed to A for life, and after his death to B. A dies in the lifetime of the testator; B survives the testator. The bequest to B takes effect.

(*v*) A sum of money is bequeathed to A on his completing his eighteenth year, and in case he should die before he completes his eighteenth year, to B. A completes his eighteenth year, and dies in the lifetime of the testator. The legacy to A lapses, and the bequest to B does not take effect.

(*vi*) The testator and the legatee perished in the same ship-wreck. There is no evidence to show which died first. The legacy lapses.

106. Legacy does not lapse if one of two joint legatees die before testator. If a legacy is given to two persons jointly, and one of them dies before the testator, the other legatee takes the whole.

Illustration

The legacy is simply to A and B. A dies before the testator. B takes the legacy.

107. Effect of words showing testator's intention to give distinct shares. If a legacy is given to legatees in words which show that the testator intended to give them distinct shares of it, then, if any legatee dies before the testator, so much of the legacy as was intended for him shall fall into the residue of the testator's property.

Illustration

A sum of money is bequeathed to A, B and C, to be equally divided among them. A dies before the testator. B and C will only take so much as they would have had if A had survived the testator.

108. When lapsed share goes as undisposed of. Where a share which lapses is a part of the general residue bequeathed by the will, that share shall go as undisposed of.

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Illustration

The testator bequeaths the residue of his estate to A, B and C, to be equally divided between them. A dies before the testator. His one- third of the residue goes as undisposed of.

109. When bequest to testator's child or lineal descendant does not lapse on his death in testator's lifetime. Where a bequest has been made to any child or other lineal descendant of the testator, and the legatee dies in the lifetime of the testator, but any lineal descendant of his survives the testator, the bequest shall not lapse, but shall take effect as if the death of the legatee had happened immediately after the death of the testator, unless a contrary intention appears by the will.

Illustration

A makes his will, by which he bequeaths a sum of money to his son, B, for his own absolute use and benefit. B dies before A, leaving a son, C, who survives A, and having made his will whereby he bequeaths all his property to his widow, D. The money goes to D.

110. Bequest to A for benefit of B does not lapse by A's death. Where a bequest is made to one person for the benefit of another, the legacy does not lapse by the death, in the testator's lifetime, of the person to whom the bequest is made.

111. Survivorship in case of bequest to described class. Where a bequest is made simply to a described class of persons, the thing bequeathed shall go only to such as are alive at the testator's death.

Exception.— If property is bequeathed to a class of persons described as standing in a particular degree of kindred to a specified individual, but their possession of it is deferred until a time later than the death of the testator by reason of a prior bequest or otherwise, the property shall at that time go to such of them as are then alive, and to the representatives of any of them who have died since the death of the testator.

Illustrations

(*i*) A bequeaths 1, 000 rupees to "the children of B" without saying when it is to be distributed among them. B had died previous to the date of the will, leaving three children, C, D and E. E died after the date of the will, but before the death of A. C and D survive A. The legacy will belong to C and D, to the exclusion of the representatives of E.

(*ii*) A lease for years of a house, was bequeathed to A for his life, and after his decease to the children of B. At the death of the testator, B had two children living, C and D, and he never had any other child. Afterwards, during the lifetime of A, C died, leaving E, his executor. D has survived A, D and E are jointly entitled to so much of the leasehold term as remains unexpired.

(*iii*) A sum of money was bequeathed to A for her life, and after her decease to the children of B. At the death of the testator, B had two children living, C and D, and, after that event, two children, E and F, were born to B. C and E died in the lifetime of A, C having made a will, E having made no will. A has died, leaving D and F surviving her. The legacy is to be divided into four equal parts, one of which is to be paid to the executor of C, one to D, one to the administrator of E and one to F.

(*iv*) A bequeaths one- third of his lands to B for his life, and after his decease to the sisters of B. At the death of the testator, B had two sisters living, C and D, and after that event another sister E was born. C died during the life of B, D and E have survived B. One-third of A's land belong to D, E and the representatives of C, in equal shares.

(*v*) A bequeaths 1, 000 rupees to B for life and after his death equally among the children of C. Up to the death of B, C had not had any child. The bequest after the death of B is void.

(*vi*) A bequeaths 1, 000 rupees to "all the children born or to be born" of B to be divided among them at the death of C. At the death of the testator, B has two children living, D and E. After the death of the testator, but in the lifetime of

C, two other children, F and G, are born to B. After the death of C, another child is born to B. The legacy belongs to D, E, F and G, to the exclusion of the after- born child of B.

(*vii*) A bequeaths a fund to the children of B, to be divided among them when the eldest shall attain majority. At the testator's death, B had one child living, named C. He afterwards had two other children, named D and E. E died, but C and D were living when C attained majority. The fund belongs to C, D and the representatives of E, to the exclusion of any child who may be born to B after C's attaining majority.

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CHAPTER VII
OF VOID BEQUETS

112. Bequest to person by particular description, who is not in existence at testator's death. Where a bequest is made to a person by a particular description, and there is no person in existence at the testator's death who answers the description, the bequest is void.

Exception.— If property is bequeathed to a person described as standing in a particular degree of kindred to a specified individual, but his possession of it is deferred until a time later than the death of the testator, by reason of a prior bequest or otherwise; and if a person answering the description is alive at the death of the testator, or comes into existence between that event and such later time, the property shall, at such later time, go to that person, or, if he is dead, to his representatives.

Illustrations

(*i*) A bequeaths 1, 000 rupees to the eldest son of B. At the death of the testator, B has no son. The bequest is void.

(*ii*) A bequeaths 1, 000 rupees to B for life, and after his death to the eldest son of C. At the death of the testator, C had no son. Afterwards, during the life of B, a son is born to C. Upon B's death the legacy goes to C's son.

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(*iii*) A bequeaths 1, 000 rupees to B for life, and after his death to the eldest son of C. At the death of the testator, C had no son. Afterwards, during the life of B, a son, named D, is born to C. D dies, then B dies. The legacy goes to the representative of D.

(*iv*) A bequeaths his estate of Green Acre to B for life, and at his decease, to the eldest son of C. Up to the death of B, C has had no son. The bequest to C's eldest son is void.

(*v*) A bequeaths 1, 000 rupees to the eldest son of C, to be paid to him after the death of B. At the death of the testator C has no son, but a son is afterwards born to him during the life of B and is alive at B's death. C's son is entitled to the 1, 000 rupees.

113. Bequest to person not in existence at testator's death subject to prior bequest. Where a bequest is made to a person not in existence at the time of the testator's death, subject to a prior bequest contained in the will, the later bequest shall be void, unless it comprises the whole of the remaining interest of the testator in the thing bequeathed.

Illustrations

(i) Property is bequeathed to A for his life, and after his death to his eldest son for life, and after the death of the latter to his eldest son. At the time of the testator's death, A has no son. Here the bequest to A's eldest son is a bequest to a person not in existence at the testator's death. It is not a bequest of the whole interest that remains to the testator. The bequest to A's eldest son for his life is void.

(*ii*) A fund is bequeathed to A for his life, and after his death to his daughters. A survives the testator. A has daughters some of whom were not in existence at the testator's death. The bequest to A's daughters comprises the whole interest that remains to the testator in the thing bequeathed. The bequest to A's daughters is valid.

(*iii*) A fund is bequeathed to A for his life, and after his death to his daughters, with a direction that, if any of them marries under the age of eighteen, her portion shall be settled so that it may belong to herself for life and may be divisible among her children after her death. A has no daughters living at the time of the testator's death, but has daughters born afterwards who survive him. Here the direction for a settlement has the effect in the case of each daughter who marries under eighteen of substituting for the absolute bequest to her a bequest to her merely for her life; that is to say, a bequest to a person not in existence at the time of the testator's death of something which is less than the whole interest that remains to the testator in the thing bequeathed. The direction to settle the fund is void.

(*iv*) A bequeaths a sum of money to B for life, and directs that upon the death of B the fund shall be settled upon his daughters, so that the portion of each daughter may belong to herself for life, and may be divided among her children after her death. B has no daughter living at the time of the testator's death. In this case the only bequest to the daughters of B is contained in the direction to settle the fund, and this direction amounts to a bequest to persons not yet born, of a life-interest in the fund, that is to say, of something which is less than the whole interest that remains to the testator in the thing bequeathed. The direction to settle the fund upon the daughters of B is void.

114. Rule against perpetuity. No bequest is valid whereby the vesting of the thing bequeathed may be delayed beyond the life-time of one or more persons living at the testator's death and the minority of some person who shall be in existence at the expiration of that period, and to whom, if he attains full age, the thing bequeathed is to belong.

Illustrations

(*i*) A fund is bequeathed to A for his life and after his death to B for his life I and after B's death to such of the sons of B as shall first attain the age of 25. A and B survive the testator. Here the son of B who shall first attain the age of 25 may be a son born after the death of the testator; such son may not attain 25 until more than 18 years have elapsed from the death of the longer liver of A

and B; and the vesting of the fund may thus be delayed beyond the lifetime of A and B and the minority of the sons of B. The bequest after B's death is void.

(*ii*) A fund is bequeathed to A for his life, and after his death to B for his life, and after B's death to such of B's sons as shall first attain the age of 25. B dies in the lifetime of the testator, leaving one or more sons. In this case the sons of B are persons living at the time of the testator's decease, and the time when either of them will attain 25 necessarily falls within his own lifetime. The bequest is valid.

(*iii*) A fund is bequeathed to A for his life, and after his death to B for his life, with a direction that after B's death it shall be divided amongst such of B's children as shall attain the age of 18, but that, if no child of B shall attain that age, the fund shall go to C. Here the time for the division of the fund must arrive at the latest at the expiration of 18 years from the death of B, a person living at the testator's decease. All the bequests are valid.

(*iv*) A fund is bequeathed to trustees for the benefit of the testator's daughters, with a direction that, if any of them marry under age, her share of the fund shall be settled so as to devolve after her death upon such of her children as shall attain the age of 18. Any daughter of the testator to whom the direction applies must be in existence at his decease, and any portion of the fund which may eventually be settled as directed must vest not later than 18 years from the death of the daughters whose share it was. All these provisions are valid.

115. Bequest to a class some of whom may come under rule in Section 113 and 114. If a bequest is made to a class of persons with regard to some of whom it is inoperative by reason of the provisions of section 113 or section 114, such bequest shall be [1][void in regard to those persons only, and not in regard to the whole class].

Illustrations

(*i*) A fund is bequeathed to A for life, and after his death to all his children who shall attain the age of 25. A survives the testator, and has some children living at the testator's death. Each child of A's living at the testator's death must attain the age of 25 (if at all) within the limits allowed for a bequest. But A may have children after the testator's decease, some of whom may not attain the age of 25 until more than 18 years have elapsed after the decease of A. The bequest to A's children, therefor, is inoperative as to any child born after the testator's death; [2][and in regard to those who do not attain the age of 25 within 18 years after A's death, but is operative in regard to the other children of A].

(*ii*) A fund is bequeathed to A for his life, and after his death to B, C, D and all other children of A who shall attain the age of 25. B, C, D are children of A living at the testator's decease. In all other respects the case is the same as that supposed in Illustration (*i*). [2][Although the mention of B, C and D does not prevent the bequest from being regarded as a bequest to a class, it is not wholly void. It is operative as regards any of the children B, C or D, who attains the age of 25 within 18 years after A's death].

[1] Subs. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (21 of 1929), s. 14, for "wholly void".
[2] Subs. *ibid.*, for certain original words.

[1][**116. Bequest to take effect on failure of prior bequest.** Where by reason of any of the rules contained in sections 113 and 114, any bequest in favour of a person or of a class of persons is void in regard to such person or the whole of such class, any bequest contained in the same will and intended to take effect after or upon failure of such prior bequest is also void.]

Illustrations

(*i*) A fund is bequeathed to A for his life, and after his death to such of his sons as shall first attain the age of 25, for his life, and after the decease of such son to B. A and B survive the testator. The bequest to B is intended to take effect after the bequest to such of the sons of A as shall first attain the age of 25, which bequest is void under section 114. The bequest to B is void.

(*ii*) A fund is bequeathed to A for his life, and after his death to such of his sons as shall first attain the age of 25, and, if no son of A shall attain that age, to B. A and B survive the testator. The bequest to B is intended to take effect upon failure of the bequest to such of A's sons as shall first attain the age of 25, which bequest is void under section 114. The bequest to B is void.

[2][**117. Effect of direction for accumulation.**—(1) Where the terms of a will direct that the income arising from any property shall be accumulated either wholly or in part during any period longer than a period of eighteen years from the death of the testator, such direction shall, save as hereinafter provided, be void to the extent to which the period during which the accumulation is directed exceeds the aforesaid period, and at the end of such period of eighteen years the property and the income thereof shall be disposed of as if the period during which the accumulation has been directed to be made had elapsed.

(2) This section shall not affect any direction for accumulation for the purpose of—

(*i*) the payment of the debts of the testator or any other person taking any interest under the will, or

(*ii*) the provision of portions for children or remoter issue of the testator or of any other person taking any interest under the will, or

(*iii*) the preservation or maintenance of any property bequeathed;
and such direction may be made accordingly.]

118. Bequest to religious or charitable uses. No man having a nephew or niece or any nearer relative shall have power to bequeath any property to religious or charitable uses, except by a will executed not less than twelve months before his death, and deposited within six months from its execution in some place provided by law for the safe custody of the wills of living persons.

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[1] Subs.by the Transfer of Property (Amdt.) Supplementary Act, 1929 (21 of 1929), s. 14, for the original section.
[2] Subs. by the Transfer of Property (Amdt.) Supplementary Act, 1929 (21 of 1929), s. 14.,for the original section and the *illustrations* thereto.

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Illustrations

A having a nephew makes a bequest by a will not executed and deposited as required—

for the relief of poor people;

for the maintenance of sick soldiers ;

for the erection or support of a hospital ;

the education and preferment of orphans ;

for the support of scholars;

for the erection or support of a school ;

for the building and repairs of a bridge ;

for the making of roads ;

for the erection or support of a church ;

for the repairs of a church ;

for the benefit of ministers of religion ;

for the formation or support of a public garden.

All these bequests are void.

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CHAPTER VIII

OF THE VESTING OF LEGACIES

119. Date of vesting of legacy when payment or possession postponed. Where by the terms of a bequest the legatee is not entitled to immediate possession of the thing bequeathed, a right to receive it at the proper time shall, unless a contrary intention appears by the will, become vested in the legatee on the testator's death, and shall pass to the legatee's representatives if he dies before that time and without having received the legacy, and in such cases the legacy is from the testator's death said to be vested in interest.

Explanation.— An intention that a legacy to any person shall not become vested in interest in him is not to be inferred merely from a provision whereby the payment or possession of the thing bequeathed is postponed, or whereby a prior interest therein is bequeathed to some other person, or whereby the income arising from the fund bequeathed is directed to be accumulated until the time of payment arrives, or from a provision that, if a particular event shall happen, the legacy shall go over to another person.

Illustrations

(*i*) A bequeaths to B 100 rupees, to be paid to him at the death of C. On A's death the legacy becomes vested in interest in B, and if he dies before C, his representatives are entitled to the legacy.

(*ii*) A bequeaths to B 100 rupees, to be paid to him upon his attaining the age of 18. On A's death the legacy becomes vested in interest in B.

(*iii*) A fund is bequeathed to A for life, and after his death to B. On the testator's death the legacy to B becomes vested in interest in B.
(*iv*) A fund is bequeathed to A until B attains the age of 18 and then to B. The legacy to B is vested in interest from the testator's death.

(*v*) A bequeaths the whole of his property to B upon trust to pay certain debts out of the income, and then to make over the fund to C. At A's death the gift to C becomes vested in interest in him.

(*vi*) A fund is bequeathed to A, B and C in equal shares to be paid to them on their attaining the age of 18, respectively, with a proviso that, if all of them die under the age of 18, the legacy shall devolve upon D. On the death of the testator, the shares vested in interest in A, B and C, subject to be divested in case A, B and C shall all die under 18, and, upon the death of any of them (except the last survivor) under the age of 18, his vested interest passes, so subject, to his representatives.

120. Date of vesting when legacy contingent upon specified uncertain event.—(1) A legacy bequeathed in case a specified uncertain event shall happen does not vest until that event happens.

(2) A legacy bequeathed in case a specified uncertain event shall not happen does not vest until the happening of that event becomes impossible.

(3) In either case, until the condition has been fulfilled, the interest of the legatee is called contingent.

Exception.— Where a fund is bequeathed to any person upon his attaining a particular age, and the will also gives to him absolutely the income to arise from the fund before he reaches that age, or directs the income, or so much of it as may be necessary, to be applied for his benefit, the bequest of the fund is not contingent.

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Illustrations

(*i*) A legacy is bequeathed to D in case A, B and C shall all die under the age of 18. D has a contingent interest in the legacy until A, B and C all die under 18, or one of them attains that age.

(*ii*) A sum of money is bequeathed to A "in case he shall attain the age of 18", or "when he shall attain the age of 18". A's interest in the legacy is contingent until the condition is fulfilled by his attaining that age.

(*iii*) An estate is bequeathed to A for life, and after his death to B if B shall then be living; but if B shall not be then living to C. A, B and C survive the testator. B and C each take a contingent interest in the estate until the event which is to vest it in one or in the other has happened.

(*iv*) An estate is bequeathed as in the case last supposed. B dies in the lifetime of A and C. Upon the death of B, C acquires a vested right to obtain possession of the estate upon A's death.

(*v*) A legacy is bequeathed to A when she shall attain the age of 18, or shall marry under that age with the consent of B, with a proviso that, if she neither attains 18 nor marries under that age with B's consent, the legacy shall go to C. A and C each take a contingent interest in the legacy. A attains the age of 18. A becomes absolutely entitled to the legacy although she may have married under 18 without the consent of B.

(*vi*) An estate is bequeathed to A until he shall marry and after that event to B. B's interest in the bequest is contingent until the condition is fulfilled by A's marrying.

(*vii*) An estate is bequeathed to A until he shall take advantage of any law for the relief of insolvent debtors, and after that event to B. B's interest in the bequest is contingent until A takes advantage of such a law.

(*viii*) An estate is bequeathed to A if he shall pay 500 rupees to B. A's interest in the bequest is contingent until he has paid 500 rupees to B.

(ix) A leaves his farm of Sultanpur Khurd to B, if B shall convey his own farm of Sultanpur Buzurg to C. B's interest in the bequest is contingent until he has conveyed the latter farm to C.

(*x*) A fund is bequeathed to A if B shall not marry C within five years after the testator's death. A's interest in the legacy is contingent until the condition is fulfilled by the expiration of the five years without B's having married C, or by the occurrence within that period of an event which makes the fulfilment of the condition impossible.

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(*xi*) A fund is bequeathed to A if B shall not make any provision for him by will. The legacy is contingent until B's death.

(*xii*) A bequeaths to B 500 rupees a year upon his attaining the age of 18, and directs that the interest, or a competent part thereof, shall be applied for his benefit until he reaches that age. The legacy is vested.

(*xiii*) A bequeaths to B 500 rupees when he shall attain the age of 18, and directs that a certain sum, out of another fund, shall be applied for his maintenance until he arrives at that age. The legacy is contingent.

121. Vesting of interest in bequest to such members of a class as shall have attained particular age. Where a bequest is made only to such members of a class as shall have attained a particular age, a person who has not attained that age cannot have a vested interest in the legacy.

Illustration

A fund is bequeathed to such of the children of A as shall attain the age of 18, with a direction that, while any child of A shall be under the age of 18, the income of the share, to which it

may be presumed he will be eventually entitled, shall be applied for his maintenance and education. No child of A who is under the age of 18 has a vested interest in the bequest.

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CHAPTER IX

OF ONEROUS BEQUESTS

122. Onerous bequests. Where a bequest imposes an obligation on the legatee, he can take nothing by it unless he accepts it fully.

Illustration

A, having shares in (X), a prosperous joint stock company and also shares in (Y), a joint stock company in difficulties, in respect of which shares heavy calls are expected to be made, bequeaths to B all his shares in joint stock companies; B refuses to accept the shares in (Y). He forfeits the shares in (X).

123. One of two separate and independent bequests to same person may be accepted, and other refused. Where a will contains two separate and independent bequests to the same person, the legatee is at liberty to accept one of them and refuse the other, although the former may be beneficial and the latter onerous.

Illustration

A, having a lease for a term of years of a house at a rent which he and his representatives are bound to pay during the term, and which is higher than the house can be let for, bequeaths to B the lease and a sum of money. B refuses to accept the lease. He will not by this refusal forfeit the money.

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CHAPTER X

OF CONTINGENT BEQUESTS

124. Bequest contingent upon specified uncertain event, no time being mentioned for its occurrence. Where a legacy is given if a specified uncertain event shall happen and no time is mentioned in the will for the occurrence of that event, the legacy cannot take effect, unless such event happens before the period when the fund bequeathed is payable or distributable.

Illustrations

(*i*) A legacy is bequeathed to A, and, in case of his death, to B. If A survives the testator, the legacy to B does not take effect.

(*ii*) A legacy is bequeathed to A, and, in case of his death without children, to B. If A survives the testator or dies in his lifetime leaving a child, the legacy to B does not take effect.

(*iii*) A legacy is bequeathed to A when and if he attains the age of 18, and, in case of his death, to B. A attains the age of 18. The legacy to B does not take effect.

(*iv*) A legacy is bequeathed to A for life, and, after his death to B, and, "in case of B's death without children", to C. The words "in case of B's death without children" are to be understood as meaning "in case B dies without children during the lifetime of A".

(*v*) A legacy is bequeathed to A for life, and, after his death to B, and, "in case of B's death", to C. The words "in case of B's death" are to be considered as meaning "in case B dies in the lifetime of A".

125. Bequest to such of certain persons as shall be surviving at some period not specified. Where a bequest is made to such of certain persons as shall be surviving at some period, but the exact period is not specified, the legacy shall go to such of them as are alive at the time of payment or distribution, unless a contrary intention appears by the will.

Illustrations

(*i*) Property is bequeathed to A and B to be equally divided between them, or to the survivor of them. If both A and B survive the testator, the legacy is equally divided between them. If A dies before the testator, and B survives the testator, it goes to B.

(*ii*) Property is bequeathed to A for life, and, after his death, to B and C, to be equally divided between them, or to the survivor of them. B dies during the life of A; C survives A. At A's death the legacy goes to C.

(*iii*) Property is bequeathed to A for life, and after his death to B and C, or the survivor, with a direction that, if B should not survive the testator, his children are to stand in his place. C dies during the life of the testator; B survives the testator, but dies in the lifetime of A. The legacy goes to the representative of B.

(*iv*) Property is bequeathed to A for life, and, after his death, to B and C, with a direction that, in case either of them dies in the lifetime of A, the whole shall go to the survivor. B dies in the lifetime of A. Afterwards C dies in the lifetime of A. The legacy goes to the representative of C.

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CHAPTER XI

OF CONDITIONAL BEQUESTS

126. Bequest upon impossible condition. A bequest upon an impossible condition is void.

Illustrations

(*i*) An estate is bequeathed to A on condition that he shall walk 100 miles in an hour. The bequest is void.

(*ii*) A bequeaths 500 rupees to B on condition that he shall marry A's daughter. A's daughter was dead at the date of the will. The bequest is void.

127. Bequest upon illegal or immoral condition. A bequest upon a condition, the fulfilment of which would be contrary to law or to morality, is void.

Illustrations

(*i*) A bequeaths 500 rupees to B on condition that he shall murder C. The bequest is void.

(*ii*) A bequeaths 5,000 rupees to his niece if she will desert her husband. The bequest is void.

128. Fulfilment of condition precedent to vesting of legacy. Where a will imposes a condition to be fulfilled before the legatee can take a vested interest in the thing bequeathed, the condition shall be considered to have been fulfilled if it has been substantially complied with.

Illustrations

(*i*) A legacy is bequeathed to A on condition that he shall marry with the consent of B, C, D and E. A marries with the written consent of B, C is present at the marriage. D sends a present to A previous to the marriage. E has been personally informed by A of his intentions, and has made no objection. A has fulfilled the condition.

(*ii*) A legacy is bequeathed to A on condition that he shall marry with the consent of B, C and D. D dies. A marries with the consent of B and C. A has fulfilled the condition.

(*iii*) A legacy is bequeathed to A on condition that he shall marry with the consent of B, C and D. A marries in the lifetime of B, C and D, with the consent of B and C only. A has not fulfilled the condition.

(*iv*) A legacy is bequeathed to A on condition that he shall marry with the consent of B, C and D. A obtains the unconditional assent of B, C and D to his marriage with E. Afterwards B, C and D capriciously retract their consent. A marries E. A has fulfilled the condition.

(*v*) A legacy is bequeathed to A on condition that he shall marry with the consent of B, C and D. A marries without the consent of B, C and D but obtains their consent after the marriage. A has not fulfilled the condition.

(*vi*) A makes his will whereby he bequeaths a sum of money to B if B shall marry with the consent of A's executors. B marries during the lifetime of A, and A afterwards expresses his approbation of the marriage. A dies. The bequest to B takes effect.

(*vii*) A legacy is bequeathed to A if he executes a certain document within a time specified in the will. The document is executed by A within a reasonable time, but not within the time specified in the will. A has not performed the condition, and is not entitled to receive the legacy.

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129. Bequest to A and on failure of prior bequest to B. Where there is a bequest to one person and a bequest of the same thing to another, if the prior bequest shall fail, the second bequest shall take effect upon the failure of the prior bequest although the failure may not have occurred in the manner contemplated by the testator.

Illustrations

(*i*) A bequeaths a sum of money to his own children surviving him, and, they all die under 18, to B. A dies without having sever had a child. The bequest to B takes effect.

(*ii*) A bequeaths a sum of money to B, on condition that he shall execute a certain document within three months after A's death, and, if he should neglect to do so, to C. B dies in the testator's life-time. The bequest to C takes effect.

130. When second bequest not to take effect on failure of first. Where the will shows an intention that the second bequest shall take effect only in the event of the first bequest failing in a particular manner, the second bequest shall not take effect, unless the prior bequest fails in that particular manner.

Illustration

A makes a bequest to his wife, but in case she should die in his lifetime, bequeaths to B that which he had bequeathed to her. A and his wife perish together, under circumstances which make it impossible to prove that she died before him; the bequest to B does not take effect.

131. Bequest over conditional upon happening or not happening of specified uncertain event.—(1) A bequest may be made to any person with the condition super- added that, in case a specified uncertain event shall happen, the thing bequeathed shall go to another person, or that in case a specified uncertain event shall not happen, the thing bequeathed shall go over to another person.

(2) In each case the ulterior bequest is subject to the rules contained in sections 120, 121, 122, 123, 124, 125, 126, 127, 129 and 130.

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Illustrations

(*i*) A sum of money is bequeathed to A, to be paid to him at the age of 18, and if he shall die before he attains that age, to B. A takes a vested interest in the legacy subject to be divested and to go to B in case A dies under 18.

(*ii*) An estate is bequeathed to A with a proviso that if A shall dispute the competency of the testator to make a will, the estate shall go to B. A disputes the competency of the testator to make a will. The estate goes to B.

(*iii*) A sum of money is bequeathed to A for life, and, after his death, to B; but if B shall then be dead, leaving a son, such son is to stand in the place of B. B takes a vested interest in the legacy, subject to be divested if he dies leaving a son in A's lifetime.

(*iv*) A sum of money is bequeathed to A and B, and if either should die during the life of C, then to the survivor living at the death of C. A and B die before C. The gift over cannot take effect, but the representative of A takes one-half of the money, and the representative of B takes the other half.

(*v*) A bequeaths to B the interest of a fund for life, and directs the fund to be divided at her death equally among her three children, or such of them as shall be living at her death. All the children of B die in B's lifetime. The bequest over cannot take effect, but the interests of the children pass to their representatives.

132. Condition must be strictly fulfilled. An ulterior bequest of the kind contemplated by section 131 cannot take effect, unless the condition is strictly fulfilled.

Illustrations

(*i*) A legacy is bequeathed to A, with a proviso that, if he marries without the consent of B, C and D, the legacy shall go to E. D dies. Even if A marries without the consent of B and C, the gift to E does not take effect.

(*ii*) A legacy is bequeathed to A, with a proviso that, if he marries without the consent of B, the legacy shall go to C. A marries with the consent of B. He afterwards becomes a widower and marries again without the consent of B. The bequest to C does not take effect.

(*iii*) A legacy is bequeathed to A, to be paid at 18, or marriage, with a proviso that, if A dies under 18 or marries without the consent of B, the legacy shall go to C. A marries under 18, without the consent of B. The bequest to C takes effect.

133. Original bequest not affected by invalidity of second. If the ulterior bequest be not valid the original bequest is not affected by it.

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Illustrations

(*i*) An estate is bequeathed to A for his life with condition super-added that, if he shall not on a given day walk 100 miles in an hour, the estate shall go to B. The condition being void, A retains his estate as if no condition had been inserted in the will.

(*ii*) An estate is bequeathed to A for her life and, if she do not desert her husband, to D. A is entitled to the estate during her life as if no condition had been inserted in the will.

(*iii*) An estate is bequeathed to A for life, and, if he marries, to the eldest son of B for life. B, at the date of the testator's death, had not had a son. The bequest over is void under section 105, and A is entitled to the estate during his life.

134. Bequest conditioned that it shall cease to have effect in case a specified uncertain event shall happen, or not happen. A bequest may be made with the condition superadded that it

shall cease to have effect in case a specified uncertain event shall happen, or in case a specified uncertain event shall not happen.

Illustrations

(*i*) An estate is bequeathed to A for his life, with a proviso that, in case he shall cut down a certain wood, the bequest shall cease to have any effect. A cuts down the wood. He loses his life- interest in the estate.

(*ii*) An estate is bequeathed to A, provided that, if he marries under the age of 25 without the consent of the executors named in the will, the estate shall cease to belong to him. A marries under 25 without the consent of the executors. The estate ceases to belong to him.

(*iii*) An estate is bequeathed to A, provided that, if he shall not go to England within three years after the testator's death, his interest in the estate shall cease. A does not go to England within the time prescribed. His interest in the estate ceases.

(*iv*) An estate is bequeathed to A, with a proviso that, if she becomes a nun, she shall cease to have any interest in the estate. A becomes a nun. She loses her interest under the will.

(*v*) A fund is bequeathed to A for life, and, after his death, to B, if B shall be then living, with a proviso that, if B shall become a nun, the bequest to her shall cease to have any effect. B becomes a nun in the lifetime of A. She thereby loses her contingent interest in the fund.

135. Such condition must not be invalid under section 120. In order that a condition that a bequest shall cease to have effect may be valid, it is necessary that the event to which it relates be one which could legally constitute the condition of a bequest as contemplated by section 120.

136. Result of legatee rendering impossible or indefinitely postponing act for which no time specified, and on non-performance of which subject matter to go over. Where a bequest is made with a condition superadded that, unless the legatee shall perform a certain act, the subject-matter of the bequest shall go to another person, or the bequest shall cease to have effect but no time is specified for the performance of the act; if the legatee takes any step which renders impossible or indefinitely postpones the performance of the act required, the legacy shall go as if the legatee had died without performing such act.

Illustrations

(*i*) A bequest is made to A, with a proviso that, unless he enters the Army, the legacy shall go over to B. A takes Holy Orders, and thereby renders it impossible that he should fulfil the condition. B is entitled to receive the legacy.

(*ii*) A bequest is made to A, with a proviso that it shall cease to have any effect if he does not marry B's daughter. A marries a stranger and thereby indefinitely postpones the fulfilment of the conditions. The bequest ceases to have effect.

137. Performance of condition, precedent or subsequent, within specified time. Further time in case of fraud. Where the will requires an act to be performed by the legatee within a specified time, either as a condition to be fulfilled before the legacy is enjoyed, or as a condition upon the non- fulfilment of which the subject- matter of the bequest is to go over to another person or the bequest is to cease to have effect, the act must be performed within the time specified, unless the performance of it be prevented by fraud, in which case such further time shall be allowed as shall be requisite to make up for the delay caused by such fraud.

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CHAPTER XII

OF BEQUESTS WITH DIRECTIONS AS TO APPLICATION OR ENJOYMENT

138. Direction that fund be employed in particular manner following absolute bequest of same to or for benefit of any person. Where a fund is bequeathed absolutely to or for the benefit of any person, but the will contains a direction that it shall be applied or enjoyed in a particular manner, the legatee shall be entitled to receive the fund as if the will had contained no such direction.

Illustration

A sum of money is bequeathed towards purchasing a country residence for A, or to purchase an annuity for A, or to place A in any business. A chooses to receive the legacy in money. He is entitled to do so.

139. Direction that mode of enjoyment of absolute bequest is to be restricted, to secure specified benefit for legatee. Where a testator absolutely bequeaths a fund, so as to sever it from his own estate but directs that the mode of enjoyment of it by the legatee shall be restricted so as to secure a specified benefit for the legatee; if that benefit cannot be obtained for the legatee, the fund belongs to him as if the will had contained no such direction.

Illustrations

(*i*) A bequeaths the residue of his property to be divided equally among his daughters, and directs that the shares of the daughters shall be settled upon themselves respectively for life and be paid to their children after their death. All the daughters die unmarried. The representatives of each daughter are entitled to her share of the residue.

(*ii*) A directs his trustees to raise a sum of money for his daughter, and he then directs that they shall invest the fund and pay the income arising from it to her life, and divide the principal among her children after her death. The daughter dies without having ever had a child. Her representatives are entitled to the fund.

140. Bequest of fund for certain purposes, some of which cannot be fulfilled. Where a testator does not absolutely bequeath a fund, so as to sever it from his own estate, but gives it for certain purposes, and part of those purposes cannot be fulfilled, the fund, or so much of it as has not been exhausted upon the objects contemplated by the will, remains a part of the estate of the testator.

Illustrations

(*i*) A directs that his trustees shall invest a sum of money in a particular way, and shall pay the interest to his son for life, and at his death shall divide the principal among his children. The son dies without having ever had a child. The fund, after the son’s death, belongs to the estate of the testator.

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(*ii*) A bequeaths the residue of his estate, to be divided equally among his daughters, with a direction that they are to have the interest only during their lives, and that at their decease the fund shall go to their children. The daughters have no children. The fund belongs to the estate of the testator.

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CHAPTER XIII

OF BEQUESTS TO AN EXECUTOR

141. Legatee named as executor cannot take unless he shows intention to act as executor. If a legacy is bequeathed to a person who is named an executor of the will, he shall not take the legacy, unless he proves the will or otherwise manifests an intention to act as executor.

Illustration

A legacy is given to A, who is named an executor. A orders the funeral according to the directions contained in the will, and dies a few days after the testator, without having proved the will. A has manifested an intention to act as executor.

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CHAPTER XIV

OF SPECIFIC LEGACIES

142. Specific legacy defined. Where a testator bequeaths to any person a specified part of his property, which is distinguished from all other parts of his property, the legacy is said to be specific.

Illustrations

(i) A bequeaths to B—

"the diamond ring presented to me by C":
"my gold chain":
"a certain bale of wool":
"a certain piece of cloth":
"all my household goods which shall be in or about my dwelling-house in M Street, in [1][Karachi], at time of my death":
"the sum of 1, 000 rupees in a certain chest":
"the debt which B owes me":
"all my bills, bonds and securities belonging to me lying in my lodgings in [1][Karachi]":
"all my furniture in my house in [1][Karachi]":
"all my goods on board a certain ship now lying in the river [2][Indus]":
"2, 000 rupees which I have in the hands of C":
"the money due to me on the bond of D":
"my mortgage on the [3][Rahimyar khan] factory":
"one- half of the money owing to me on my mortgage of [3][Rahimyarkhan] factory":
"1, 000 rupees, being part of a debt due to me from C":
"my capital stock of 1, 000, in East India Stock":
"my promissory notes of the [4][Federal Government] for 10, 000 rupees in their 4 percent loan":

[1] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II for "Calcutta".
[2] Subs. *ibid.,* for "Hughli".
[3]Subs. *ibid.,* for "Rampur".
[4]3Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government which was previously amended by A.O., 1937 for "G. of I.".

"all such sums of money as my executors may, after my death, receive in respect of the debt due to me from the insolvent firm of D and Company":
"all the wine which I may have in my cellar at the time of my death":
"such of my horses as B may select":
"all my shares in the [1][National Bank of Pakistan]":
"all my shares in the [1][National Bank of Pakistan] which I may possess at the time of my death":
"all the money which I have in the 5-1/2 per cent. loan of the [2][Federal Government]":
"all the Government securities I shall be entitled to at the time of my decease."

Each of these legacies is specific.

(*ii*) A, having Government promissory notes for 10,000 rupees, bequeaths to his executors "Government promissory notes for 10,000 rupees in trust to sell" for the benefit of B. The legacy is specific.

(*iii*) A having property at [3][Peshawar], and also in other places, bequeaths to B all his property at [3][Peshawar]. The legacy is specific.

(*iv*) A bequeaths to B—
his house in [4][Karachi]:
his zamindari of [5][Rahimyarkhan]:
his taluq of [6][Nawabshah]:
his lease of the indigo- factory of Salkya:
an annuity of 500 rupees out of the rents of his zamindari of W.

A directs his zamindari of X to be sold, and the proceeds to be invested for the benefit of B.

Each of these bequests is specific.

(*v*) A by his will charges his zamindari of Y with an annuity of 1, 000 rupees to C during his life, and subject to this charge he bequeaths the zamindari to D. Each of these bequests is specific.

(*vi*) A bequeaths a sum of money—
to buy a house in [4][Karachi] for B:
to buy an estate in zila [7][Peshawar] for B:
to buy a diamond ring for B;
to buy a horse for B:
to be invested in shares in the [8][National Bank of Pakistan] for B:
to be invested in Government securities for B.

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[1]Subs. by Ord. 27 of 1981, s. 3 and Sch., II for " Imperial Bank of India".
[2]Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government which was previously amended by A.O., 1937 for "G. of I.
[3]Subs. *ibid., for* "Benares"
[4]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Sch., II, for "Calcutta".
[5]Subs. *ibid.,* for "Rampur".
[6]Subs. *ibid.,* for "Ramnagar".
[7]Subs. *ibid.,* for "Faridpur".
[8]Subs. *ibid.,* for "Imperial Bank of India".

A bequeaths to B—

"a diamond ring":
"a horse":
"10, 000 rupees worth of Government securities":
"an annuity of 500 rupees":
"2, 000 rupees to be paid in cash":
"so much money as will produce 5, 000 rupees four per cent. Government securities."

These bequests are not specific.

(*vii*) A, having property in England and property in [1][Pakistan], bequeaths a legacy to B, and directs that it shall be paid out of the property which he may leave in [1][Pakistan]. He also bequeaths a legacy to C, and directs that it shall be paid out of property which he may leave in England. No one of these legacies is specific.

143. Bequest of certain sum where stocks, etc., in which invested are described. Where a certain sum is bequeathed, the legacy is not specific merely because the stock, funds or securities in which it is invested are described in the will.

Illustration

A bequeaths to B—

"10, 000 rupees of my funded property":
"10, 000 rupees of my property now invested in shares of the [2][National Bank of Pakistan]":
"10, 000 rupees, at present secured by mortgage of [3][Rahimyarkhan] factory."
No one of these legacies is specific.

144. Bequest of stock where testator had, at date of will, equal or greater amount of stock of same kind. Where a bequest is made in general terms of a certain amount of any kind of stock, the legacy is not specific merely because the testator was, at the date of his will, possessed of stock of the specified kind, to an equal or greater amount than the amount bequeathed.

Illustration

A bequeaths to B 5,000 rupees five per cent. Government securities. A had at the date of the will five per cent. Government securities for 5,000 rupees. The legacy is not specific.

145. Bequest of money where not payable until part of testator's property disposed of in certain way. A money legacy is not specific merely because the will directs its payment to be postponed until some part of the property of the testator has been reduced to a certain form, or remitted to a certain place.

Illustration

A bequeaths to B 10, 000 rupees and directs that this legacy shall be paid as soon as A's property in India shall be realised in England. The legacy is not specific.

146. When enumerated articles not deemed specifically bequeathed. Where a will contains a bequest of the residue of the testator's property along with an enumeration of some items of property not previously bequeathed, the articles enumerated shall not be deemed to be specifically bequeathed.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Sch., II, for "India".
[2] Subs. *ibid.*, for "East Indian Railway Company".
[3]Subs. *ibid.*, for "Rampur".

147. Retention, in form of specific bequest to several persons in succession. Where property is specifically bequeathed to two or more persons in succession, it shall be retained in the form in which the testator left it, although it may be of such a nature that its value is continually decreasing.

Illustrations

(*i*) A, having lease of a house for a term of years, fifteen of which were unexpired at the time of his death, has bequeathed the lease to B for his life, and after B's death to C. B is to enjoy the property as A left it, although, if B lives for fifteen years, C can take nothing under the bequest.

(*ii*) A, having an annuity during the life of B, bequeaths it to C, for his life, and, after C's death, to D. C is to enjoy the annuity as A left it, although, if B dies before D, D can take nothing under the bequest.

148. Sale and investment of proceeds of property bequeathed to two or more person in succession. Where property comprised in a bequest to two or more persons in succession is not specifically bequeathed, it shall, in the absence of any direction to the contrary, be sold, and the proceeds of the sale shall be invested in such securities as the High Court may by any general rule authorise or direct, and the fund thus constituted shall be enjoyed by the successive legatees according to the terms of the will.

Illustration

A, having a lease for a term of years, bequeaths all his property to B for life, and, after B's death, to C. The lease must be sold, the proceeds invested as stated in this section and the annual income arising from the fund is to be paid to B for life. At B's death the capital of the fund is to be paid to C.

149. Where deficiency of assets to pay legacies, specific legacy not to abate with general legacies. If there is a deficiency of assets to pay legacies, a specific legacy is not liable to abate with the general legacies.

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CHAPTER XV

OF DEMONSTRATIVE LEGACIES

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150. Demonstrative legacy defined. Where a testator bequeaths a certain sum of money, or a certain quantity of any other commodity, and refers to a particular fund or stock so as to constitute the same the primary fund or stock out of which payment is to be made, the legacy is said to be demonstrative.

Explanation.—The distinction between a specific legacy and a demonstrative legacy consists in this, that—

where specified property is given to the legatee, the legacy is specific;

where the legacy is directed to be paid out of specified property, it is demonstrative.

Illustrations

(*i*) A bequeaths to B, 1, 000 rupees, being part of a debt due to him from W. He also bequeaths to C 1, 000 rupees to be paid out of the debt due to him from W. The legacy to B is specific, the legacy to C is demonstrative.

(*ii*) A bequeaths to B—

"ten bushels of the corn which shall grow in my field of Green Acre":
"80 chests of the indigo which shall be made at my factory of [1][Rahimyarkhan]":

"10, 000 rupees out of my five per cent. promissory notes of the [2][Federal Government]":

an annuity of 500 rupees "from my funded property":
"1, 000 rupees out of the sum of 2, 000 rupees due to me by C":
an annuity, and directs it to be paid "out of the rents arising from my taluk of [3][Nawabshah]".

(*iii*) A bequeaths to B—

"10, 000 rupees out of my estate at [3][Nawabshah]," or charges it on his estate at [3][Nawabshah]:"

"10, 000 rupees, being my share of the capital embarked in a certain business",

Each of these bequests is demonstrative.

151. Order of payment when legacy directed to be paid out of fund the subject of specific legacy. Where a portion of a fund is specifically bequeathed and a legacy is directed to be paid out of the same fund, the portion specifically bequeathed shall first be paid to the legatee, and the demonstrative legacy shall be paid out of the residue of the fund and, so far as the residue shall be deficient, out of the general assets of the testator.

Illustration

A bequeaths to B 1, 000 rupees, being part of a debt due to him from W. He also bequeaths to C 1, 000 rupees to be paid out of the debt due to him from W. The debt due to A from W is only 1,500 rupees of these 1, 500 rupees, 1, 000 rupees belong to B, and 500 rupees are to be paid to C. C is also to receive 500 rupees out of the general assets of the testator.

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CHAPTER XVI

OF ADEMPTION OF LEGACIES

152. Ademption explained. If anything which has been specifically bequeathed does not belong to the testator at the time of his death, or has been converted into property of a different kind, the legacy is adeemed: that is, it cannot take effect, by reason of the subject- matter having been withdrawn from the operation of the will.

[1] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II for "Rampur".
[2] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which was previously amended by A.O., 1937, for "G. of I.".
[3] Subs. by Ord. 27 of 1981, s. 3 and Sch., II, for "Ramnagar".

Illustrations

(i) A bequeaths to B—

"the diamond ring presented to me by C":
"my gold chain":
"a certain bale of wool":
"a certain piece of cloth":
"all my household goods which shall be in or about my dwelling-house in M Street in [1][Sahiwal], at the time of my death" ;

A in his lifetime,—

sells or gives away the ring:
converts the chain into a cup:
converts the wool into cloth:
makes the cloth into a garment:
takes another house into which he removes all his goods.

Each of these legacies is adeemed.

(ii) A bequeaths to B—

"the sum of 1, 000 rupees, in a certain chest":
"all the horses in my stable".

At the death of A, no money is found in the chest, and no horses in the stable. The legacies are adeemed.

(iii) A bequeaths to B certain bales of goods. A takes the goods with him on a voyage. The ship and goods are lost at sea, and A is drowned. The legacy is adeemed.

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153. Non- ademption of demonstrative legacy. A demonstrative legacy is not adeemed by reason that the property on which it is charged by the will does not exist at the time of the death of the testator, or has been converted into property of a different kind, but it shall in such case be paid out of the general assets of the testator.

154. Ademption of specific bequest of right to receive something from third party. Where the thing specifically bequeathed is the right to receive something of value from a third party, and the testator himself receives it, the bequest is adeemed.

Illustrations

(i) A bequeaths to B—

"the debt which C owes me":
"2, 000 rupees which I have in the hands of D":
"the money due to me on the bond of E":

[1] Subs. by the Federal Laws (Revision and Declaration Ordinance, 1981 (27 of 1981), s. 3 and Sch., II, for "Dacca", which was previously amended by Ord. 21 of 1960, s. 3 and 2nd Sch., for "Calcutta", (*w.e.f. 14th Oct., 1955).*

"my mortgage on the [1][Rahimyarkhan] factory".

All these debts are extinguished in A's lifetime, some with and some without his consent. All the legacies are adeemed.

(*ii*) A bequeaths to B his interest in certain policies of his life assurance. A in his lifetime receives the amount of the policies. The legacy is adeemed.

155. Ademption *pro tanto* by testator's receipt of part of entire thing specifically bequeathed. The receipt by the testator of a part of an entire thing specifically bequeathed shall operate as an ademption of the legacy to the extent of the sum so received.

Illustration

A bequeaths to B "the debt due to me by C". The debt amounts to 10, 000 rupees. C pays to A 5,000 rupees the one-half of the debt. The legacy is revoked by ademption, so far as regards the 5,000 rupees received by A.

156. Ademption *pro tento* by testator's receipt of portion of entire fund of which portion has been specifically bequeathed. If a portion of an entire fund or stock is specifically bequeathed, the receipt by the testator of a portion of the fund or stock shall operate as an ademption only to the extent of the amount so received; and the residue of the fund or stock shall be applicable to the discharge of the specific legacy.

Illustration

A bequeaths to B one-half of the sum of 10,000 rupees due to him from W. A in his lifetime receives 6,000 rupees, part of the 10,000 rupees. The 4, 000 rupees which are due from W to A at the time of his death belong to B under the specific bequest.

157. Order of payment where portion of fund specifically bequeathed to one legatee, and legacy charged. on same fund to another, and, testator having received portion of that fund, remainder insufficient to pay both legacies. Where a portion of a fund is specifically bequeathed to one legatee, and a legacy charged on the same fund is bequeathed to another legatee, then, if the testator receives a portion of that fund, and the remainder of the fund is insufficient to pay both the specific and the demonstrative legacy, the specific legacy shall be paid first, and the residue (if any) of the fund shall be applied so far as it will extend in payment of the demonstrative legacy, and the rest of the demonstrative legacy shall be paid out of the general assets of the testator.

Illustration

A bequeaths to B 1,000 rupees, part of the debt of 2,000 rupees due to him from W. He also bequeaths to C 1,000 rupees to be paid out of the debt due to him from W. A afterwards receives [2][500] rupees, part of that debt, and dies leaving only 1,500 rupees due to him from W. Of these 1,500 rupees, 1,000 rupees belong to B, and 500 rupees are to be paid to C. C is also to receive 500 rupees out of the general assets of the testator.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3. and 2nd Sch., for "Rampur" (*with effect from the 24th October, 1955*).
[2] Subs. by the Repealing and Amending Act, 1927 (10 of 1927), s. 2 and 1st Sch., for "5000".

158. Ademption where stock, specifically bequeathed, does not exist at testator's death. Where stock which has been specifically bequeathed does not exist at the testator's death, the legacy is adeemed.

Illustration

A bequeaths to B—

"my capital stock of 1, 000 in East India Stock":

"my promissory notes of the [1][Federal Government] for 10, 000 rupees in their 4 per cent. loan".

A sells the stock and the notes. The legacies are adeemed.

159. Ademption *pro tanto* where stock, specifically bequeathed, exists in part only at testator's death. Where stock which has been specifically bequeathed exists only in part at the testator's death, the legacy is adeemed so far as regards that part of the stock which has ceased to exist.

Illustration

A bequeaths to B his 10,000 rupees in the 5-1/2 per cent. loan of the [1][Federal Government]. A sells one- half of his 10, 000 rupees in the loan in question. One- half of the legacy is adeemed.

160. Non-ademption of specific bequest of goods described as connected with certain place, by reason of removal. A specific bequest of goods under a description connecting them with a certain place is not adeemed by reason that they have been removed from such place from any temporary cause, or by fraud, or without the knowledge or sanction of the testator.

Illustrations

(*i*) A bequeaths to B "all my household goods which shall be in or about my dwelling- house in [2][Faisalabad] at the time of my death". The goods are removed from the house to save them from fire. A dies before they are brought back.

(*ii*) A bequeaths to B "all my household goods which shall be in or about my dwelling- house in [2][Faisalabad] at the time of my death". During A's absence upon a journey, the whole of the goods are removed from the house. A dies without having sanctioned their removal.

Neither of these legacies is adeemed.

161. When removal of thing bequeathed does not constitute ademption. The removal of the thing bequeathed from the place in which it is stated in the will to be situated does not constitute an ademption, where the place is only referred to in order to complete the description of what the testator meant to bequeath.

[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government " which was previously amended by A. O., 1937, for "G. of I.".
[2] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II for "Calcutta".

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Illustrations

(*i*) A bequeaths to B "all the bills, bonds and other securities for money belonging to me now lying in my lodgings in [1][Karachi]". At the time of his death these effects had been removed from his lodgings in [1][Karachi].

(*ii*) A bequeaths to B all his furniture then in his house in [1][Karachi]. The testator has a house at [1][Karachi] and another at [2][Quetta], in which he lives alternately, being possessed of one set of furniture only which he removes with himself to each house. At the time of his death the furniture is in the house at [2][Quetta].

(*iii*) A bequeaths to B all his goods on board a certain ship then lying in the river [3][Indus]. The goods are removed by A's directions to a warehouse, in which they remain at the time of A's death.

No one of these legacies is revoked by ademption.

162. When thing bequeathed is a valuable to be received by testator from third person; and testator himself, or his representative, receives it. Where the thing bequeathed is not the right to receive something of value from a third person, but the money or other commodity which may be received from third person by the testator himself or by his representatives, the receipt of such sum of money or other commodity by the testator shall not constitute an ademption; but if he mixes it up with the general mass of his property, the legacy is adeemed.

Illustration

A bequeaths to B whatever sum may be received from his claim on C. A receives the whole of his claim on C, and sets it apart from the general mass of his property. The legacy is not adeemed.

163. Change by operation of law of subject of specific bequest between date of will and testator's death. Where a thing specifically bequeathed undergoes a change between the date of the will and the testator's death, and the change takes place by operation of law, or in the course of execution of the provisions of any legal instrument under which the thing bequeathed was held, the legacy is not adeemed by reason of such change.

Illustrations

(i) A bequeaths to B "all the money which I have in the 5-1/2 per cent. loan of the [4][Federal Government]". The securities for the 5-1/2 per cent. loan are converted during A's lifetime into 5 per cent. stock.

(*ii*) A bequeaths to B the sum of 2, 000/. invested in Consols in the names of trustees for A. The sum of 2, 000/. is transferred by the trustees into A's own name.

(*iii*) A bequeaths to B the sum of 10, 000 rupees in promissory notes of the [4][Federal Government] which he has power under his marriage settlement to dispose of by will. Afterwards, in A's lifetime, the fund is converted into Consols by virtue of an authority contained in the settlement.

No one of these legacies has been adeemed.

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[1] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., for "Dacca", which was previously amended by Ord. 21 of 1960, s.3 and Sch.,for "Calcutta", (*w.e.f.* 14th Oct., 1955).
[2] Subs. by Ord. 27 of 1981, s. 3 and Sch., II , for "Chalna", which was previously amended by Ord. 21 of 1960, s. 3 and 2nd Sch., for "Chinsurah".
[3] Subs. by Ord. 27 of 1981, s. 3 and Sch., II for "Padma", which was previously amended by 21 of 1960, s. 3 and 2nd Sch., for "Hughli".
[4] Subs. by F.A.O., 1975 Art. 2 and Table, for "Central Government" which was previously amended by A. O., 1937, for "G. of I.".

164. Change of subject without testator's knowledge. Where a thing specifically bequeathed undergoes a change between the date of the will and the testator's death, and the change takes place without the knowledge or sanction of the testator, the legacy is not adeemed.

Illustration

A bequeaths to B "all my 3 per cent Consols". The Consols are, without A's knowledge, sold by his agent, and the proceeds converted into East India Stock. This legacy is not adeemed.

165. Stock specifically bequeathed lent to third party on condition that it be replaced. Where stock which has been specifically bequeathed is lent to a third party on condition that it shall be replaced, and it is replaced accordingly, the legacy is not adeemed.

166. Stock specifically bequeathed sold but replaced, and belonging to testator at his death. Where stock specifically bequeathed is sold, and an equal quantity of the same stock is afterwards purchased and belongs to the testator at his death, the legacy is not adeemed.

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CHAPTER XVII

OF THE PAYMENT OF LIABILITIES IN RESPECT OF THE SUBJECT OF A BEQUEST.

167. Non-liability of executor to exonerate specific legatees.—(1) Where property specifically bequeathed is subject at the death of the testator to any pledge, lien or incumbrance created by the testator himself or by any person under whom he claims, then, unless a contrary intention appears by the will, the legatee, if he accepts the bequest, shall accept it subject to such pledge or incumbrance, and shall (as between himself and the testator's estate) be liable to make good the amount of such pledge or incumbrance.

(2) A contrary intention shall not be inferred from any direction which the will may contain for the payment of the testator's debts generally.

Explanation.— A periodical payment in the nature of land- revenue or in the nature of rent is not such an incumbrance as is contemplated by this section.

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Illustrations

(*i*) A bequeaths to B the diamond ring given him by C. At A's death the ring is held in pawn by D, to whom it has been pledged by A. It is the duty of A's executors, if the state of the testator's assets will allow them, to allow B to redeem the ring.

(*ii*) A bequeaths to B a zamindari which at A's death is subject to a mortgage for 10,000 rupees; and the whole of the principal sum, together with interest to the amount of 1,000 rupees, is due at A's death. B, if he accepts the bequest, accepts it subject to this charge, and is liable, as between himself and A's estate, to pay the sum of 11,000 rupees thus due.

168. Completion of testator's title to things bequeathed to be at cost of his estate. Where anything is to be done to complete the testator's title to the thing bequeathed, it is to be done at the cost of the testator's estate.

Illustrations

(*i*) A, having contracted in general terms for the purchase of a piece of land at a certain price, bequeaths to B, and dies before he has paid the purchase-money. The purchase-money must be made good out of A's assets.

(*ii*) A, having contracted for the purchase of a piece of land for a certain sum of money, one- half of which is to be paid down and the other half secured by mortgage of the land, bequeaths it to B, and dies before he has paid or secured any part of the purchase- money. One- half of the purchase-money must be paid out of A's assets.

169. Exoneration of legatee's immoveable property for which land-revenue or rent payable periodically. Where there is a bequest of any interest in immovable property in respect of which payment in the nature of land-revenue or in the nature of rent has to be made periodically, the estate of the testator shall (as between such estate and the legatee) make good such payments or a proportion of them, as the case may be, up to the day of his death.

Illustration

A bequeaths to B a house, in respect of which 365 rupees are payable annually by way of rent. A pays his rent at the usual time, and dies 25 days after. A's estate will make good 25 rupees in respect of the rent.

170. Exoneration of specific legatee's stock in joint-stock company. In the absence of any direction in the will, where there is a specific bequest of stock in a joint-stock company, if any call or other payment is due from the testator at the time of his death in respect of the stock, such call or payment shall, as between the testators estate and the legatee, be borne by the estate; but, if any call or other payment becomes due in respect of such stock after the testator's death, the same shall, as between the testator's estate and the legatee, be borne by the legatee, if he accepts the bequest.

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Illustrations

(*i*) A bequeaths to B his shares in a certain railway. At A's death there was due from him the sum of 100 rupees in respect of each share, being the amount of a call which had been duly made, and the sum of five rupees in respect of each share, being the amount of interest which had accrued due in respect of the call. These payments must be borne by A's estate.

(*ii*) A has agreed to take 50 shares in an intended joint stock company, and has contracted to pay up 100 rupees in respect of each share, which sum must be paid before his title to the shares can be completed. A bequeaths these shares to B. The estate of A must make good the payments which were necessary to complete A's title.

(*iii*) A bequeaths to B his shares in a certain railway. B accepts the legacy. After A's death, a call is made in respect of the shares. B must pay the call.

(*iv*) A bequeaths to B his shares in a joint stock company. B accepts the bequest. Afterwards the affairs of the company are wound up, and each shareholder is called upon for contribution. The amount of the contribution must be borne by the legatee.

(*v*) A is the owner of ten shares in a railway company. At a meeting held during his lifetime a call is made of fifty rupees per share, payable by three instalments. A bequeaths his shares to B, and dies between the day fixed for the payment of the first and the day fixed for the payment of the second instalment, and without having paid the first instalment. A's estate must pay the first instalment, and B, if he accepts the legacy, must pay the remaining instalments.

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CHAPTER XVIII

OF BEQUESTS OF THINGS DESCRIBED IN GENERAL TERMS

171. Bequest of thing described in general terms. If there is a bequest of something described in general terms, the executor must purchase for the legatee what may reasonably be considered to answer the description.

Illustrations

(*i*) A bequeaths to B a pair of carriage-horses or a diamond ring. The executor must provide the legatee with such articles if the state of the assets will allow it.

(*ii*) A bequeaths to B "my pair of carriage-horses". A had no carriage-horses at the time of his death. The legacy fails.

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CHAPTER XIX

OF BEQUESTS OF THE INTEREST OR PRODUCE OF A FUND

172. Bequest of interest or produce of fund. Where the interest or produce of a fund is bequeathed to any person, and the will affords no indication of an intention that the enjoyment of the bequest should be of limited duration, the principal, as well as the interest, shall belong to the legatee.

Illustrations

(*i*) A bequeaths to B the interest of his 5 per cent. promissory notes of the [1][Federal Government]. There is no other clause in the will affecting those securities. B is entitled to A's 5 per cent. promissory notes of the [1][Federal Government].

(*ii*) A bequeaths the interest of his 5-1/2 per cent. promissory notes of the [1][Federal Government] to B for his life, and after his death to C. B is entitled to the interest of the notes during his life, and C is entitled to the notes upon B's death.

(*iii*) A bequeaths to B the rents of his lands at X. B is entitled to the lands.

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[1] Subs, by F.A.O., 1975, Art. 2 and Table, for "Central Government" which had been subs. by A. O., 1937, for "G. of I.".

CHAPTER XX

OF BEQUESTS OF ANNUITIES

173. Annuity created by will payable for life only unless contrary intention appears by will. Where an annuity is created by will, the legatee is entitled to receive it for his life only, unless a contrary intention appears by the will, notwithstanding that the annuity is directed to be paid out of the property generally, or that a sum of money is bequeathed to be invested in the purchase of it.

Illustrations

(*i*) A bequeaths to B 500 rupees a year. B is entitled during his life to receive the annual sum of 500 rupees.

(*ii*) A bequeaths to B the sum of 500 rupees monthly. B is entitled during his life to receive the sum of 500 rupees every month.

(*iii*) A bequeaths an annuity of 500 rupees to B for life, and on B's death to C. B is entitled to an annuity of 500 rupees during his life. C, if he survives B, is entitled to an annuity of 500 rupees from B's death until his own death.

174. Period of vesting where will directs that annuity be provided out of proceeds of property, or out of property generally, or where money bequeathed to be invested in purchase of annuity. Where the will directs that an annuity shall be provided for any person out of the proceeds of property, or out of property generally, or where money is bequeathed to be invested in the purchase of any annuity for any person, on the testator's death, the legacy vests in interest in the legatee, and he is entitled at his option to have an annuity purchased for him or to receive the money appropriated for that purpose by the will.

Illustrations

(*i*) A by his will directs that his executors shall, out of his property, purchase an annuity of 1, 000 rupees for B. B is entitled at his option to have an annuity of 1, 000 rupees for his life purchased for him or to receive such a sum as will be sufficient for the purchase of such an annuity.

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(*ii*) A bequeaths a fund to B for his life, and directs that after B's death, it shall be laid out in the purchase of an annuity for C. B and C survive the testator. C dies in B's lifetime. On B's death the fund belongs to the representative of C.

175. Abatement of annuity. Where an annuity is bequeathed, but the assets of the testator are not sufficient to pay all the legacies given by the will, the annuity shall abate in the same proportion as the other pecuniary legacies given by the will.

176. Where gift of annuity and residuary gift, whole annuity to be first satisfied. Where there is a gift of an annuity and a residuary gift, the whole of the annuity is to be satisfied before any part of the residue is paid to the residuary legatee, and, if necessary, the capital of the testator's estate shall be applied for that purpose.

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CHAPTER XXI

OF LEGACIES TO CREDITORS AND PORTIONERS

177. Creditor *prima facie* entitled to legacy as well as debt. Where a debtor bequeaths a legacy to his creditor, and it does not appear from the will that the legacy is meant as a satisfaction of the debt, the creditor shall be entitled to the legacy, as well as to the amount of the debt.

178. Child *prima facie* entitled to legacy as well as portion. Where a parent, who is under obligation by contract to provide a portion for a child, fails to do so, and afterwards bequeaths a legacy to the child, and does not intimate by his will that the legacy is meant as a satisfaction of the portion, the child shall be entitled to receive the legacy, as well as the portion.

Illustration

A, by articles entered into in contemplation of his marriage with B, covenanted that he would pay to each of the daughters of the intended marriage a portion of 20, 000 rupees on her marriage. This covenant having been broken, A bequeaths 20, 000 rupees to each of the married daughters of himself and B. The legatees are entitled to the benefit of this bequest in addition to their portions.

179. No ademption by subsequent provision for legatee. No bequest shall be wholly or partially adeemed by a subsequent provision made by settlement or otherwise for the legatee.

Illustrations

(*i*) A bequeaths 20, 000 rupees to his son B. He afterwards gives to B the sum of 20, 000 rupees. The legacy is not thereby adeemed.

(*ii*) A bequeaths 40, 000 rupees to B, his orphan niece whom he had brought up from her infancy. Afterwards, on the occasion of B's marriage, A settles upon her the sum of 30, 000 rupees. The legacy is not thereby diminished.

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CHAPTER XXII

OF ELECTION

180. Circumstances in which election takes place. Where a person, by his will, professes to dispose of something which he has no right to dispose of, the person to whom the thing belongs shall elect either to confirm such disposition or to dissent from it, and, in the latter case, he shall give up any benefits which may have been provided for him by the will.

181. Devolution of interest relinquished by owner. An interest relinquished in the circumstances stated in section 180 shall devolve as if it had not been disposed of by the will in favour of the legatee, subject, nevertheless, to the charge of making good to the disappointed legatee the amount or value of the gift attempted to be given to him by the will.

182. Testator's belief as to his ownership immaterial. The provisions of sections 180 and 181 apply whether the testator does or does not believe that which he professes to dispose of by his will to be his own.

Illustrations

(*i*) The farm of Sultanpur was the property of C. A bequeathed it to B, giving a legacy of 1,000 rupees to C. C has elected to retain his farm of Sultanpur, which is worth 800 rupees. C forfeits his legacy of 1, 000 rupees, of which 800 rupees goes to B, and the remaining 200 rupees falls into the residuary bequest, or devolves according to the rules of intestate succession, as the case may be.

(*ii*) A bequeaths an estate to B in case B's elder brother (who is married and has children) shall leave no issue living at his death. A also bequeaths to C a jewel, which belongs to B. B must elect to give up the jewel or to lose the estate.

(*iii*) A bequeaths to B 1,000 rupees, and to C an estate which will under a settlement, belong to B if his elder brother (who is married and has children) shall leave no issue living at his death. B must elect to give up the estate or to lose the legacy.

(*iv*) A, a person of the age of 18, domiciled in [1][Pakistan] but owning real property in England, to which C is heir at law, bequeaths a legacy to C and, subject thereto, devises and bequeaths to B "all my property whatsoever and wheresoever", and dies under 21. The real property in England does not pass by the will. C may claim his legacy without giving up the real property in England.

183. Bequest for man's benefit how regarded for purpose of election. A bequest for a person's benefit is, for the purpose of election, the same thing as a bequest made to himself.

Illustration

The farm of Sultanpur Khurd being the property of B, A bequeathed it to C: and bequeathed another farm called Sultanpur Buzurg to his own executors with a direction that it should be sold and the proceeds applied in payment of B's debts. B must elect whether he will abide by the will, or keep his farm of Sultanpur Khurd in opposition to it.

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184. Person deriving benefit indirectly not put to election. A person taking no benefit directly under a will, but deriving a benefit under it indirectly, is not put to his election.

Illustration

The lands of Sultanpur are settled upon C for life, and after his death upon D, his only child. A bequeaths the lands of Sultanpur to B, and 1, 000 rupees to C. C dies intestate shortly after the testator, and without having made any election. D takes out administration to C, and as administrator elects on behalf of C's estate to take under the will. In that capacity he receives the legacy of 1, 000 rupees and accounts to B for the rents of the lands of Sultanpur which accrued after the death of the testator and before the death of C. In his individual character he retains the lands of Sultanpur in opposition to the will.

[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

185. Person taking in individual capacity under will may in other character elect to take in opposition. A person who in his individual capacity takes a benefit under a will may, in another character, elect to take in opposition to the will.

Illustration

The estate of Sultanpur is settled upon A for life, and after his death, upon B. A leaves the estate of Sultanpur to D, and 2, 000 rupees to B, and 1, 000 rupees to C, who is B's only child. B dies intestate, shortly after the testator, without having made an election. C takes out administration to B, and as administrator elects to keep the estate of Sultanpur in opposition to the will, and to relinquish the legacy of 2, 000 rupees. C may do this, and yet claim his legacy of 1, 000 rupees under the will.

186. Exception to provisions of last six sections. Notwithstanding anything contained in sections 180 to 185, where a particular gift is expressed in the will to be in lieu of something belonging to the legatee, which is also in terms disposed of by the will, then, if the legatee claims that thing, he must relinquish the particular gift, but he is not bound to relinquish any other benefit given to him by the will.

Illustration

Under A's marriage-settlement his wife is entitled, if she survives him, to the enjoyment of the estate of Sultanpur during her life. A by his will bequeaths to his wife an annuity of 200 rupees during her life, in lieu of her interest in the estate of Sultanpur, which estate he bequeaths to his son. He also gives his wife a legacy of 1, 000 rupees. The widow elects to take what she is entitled to under the settlement. She is bound to relinquish the annuity but not the legacy of 1, 000 rupees.

187. When acceptance of benefit given by will constitutes election to take under will. Acceptance of a benefit given by a will constitutes an election by the legatee to take under the will, if he had knowledge of his right to elect and of those circumstances which would influence the judgment of a reasonable man in making an election, or if he waives inquiry into the circumstances.

Illustrations

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(*i*) A is owner of an estate called Sultanpur Khurd, and has a life interest in another estate called Sultanpur Buzurg to which upon his death his son B will be absolutely entitled. The will of A gives the estate of Sultanpur Khurd to B, and the estate of Sultanpur Buzurg to C. B, in ignorance of his own right to the estate of Sultanpur Buzurg, allows C to take possession of it, and enters into possession of the estate of Sultanpur Khurd. B has not confirmed the bequest of Sultanpur Buzurg to C.

(*ii*) B, the eldest son of A, is the possessor of an estate called Sultanpur. A bequeaths Sultanpur to C, and to B the residue of A's property. B having been informed by A's executors that the residue will amount to 5, 000 rupees, allows C to take possession of Sultanpur. He afterwards discovers that the residue does not amount to more than 500 rupees. B has not confirmed the bequest of the estate of Sultanpur to C.

188. Circumstances in which knowledge or waiver is presumed or inferred.—(1) Such knowledge or waiver of inquiry shall, in the absence of evidence to the contrary, be presumed if the

legatee has enjoyed for two years the benefits provided for him by the will without doing any act to express dissent.

(2) Such knowledge or waiver of inquiry may be inferred from any act of the legatee which renders it impossible to place the persons interested in the subject- matter of the bequest in the same condition as if such act had not been done.

Illustration

A bequeaths to B an estate to which C is entitled, and to C a coal mine. C takes possession of the mine and exhausts it. He has thereby confirmed the bequest of the estate to B.

189. When testator's representatives may call upon legatee to elect. If the legatee does not, within one year after the death of the testator, signify to the testator's representatives his intention to confirm or to dissent from the will, the representatives shall, upon the expiration of that period, require him to make his election; and, if he does not comply with such requisition within a reasonable time after he has received it, he shall be deemed to have elected to confirm the will.

190. Postponement of election in case of disability. In case of disability the election shall be postponed until the disability ceases, or until the election is made by some competent authority.

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CHAPTER XXIII
OF GIFTS IN CONTEMPLATION OF DEATH

191. Property transferable by gift made in contemplation of death.—(1) A man may dispose, by gift made in contemplation of death, of any moveable property which he could dispose of by will.

(2) A gift is said to be made in contemplation of death where a man, who is ill and expects to die shortly of his illness, delivers to another the possession of any moveable property to keep as a gift in case the donor shall die of that illness.

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(3) Such a gift may be resumed by the giver; and shall not take effect if he recovers from the illness during which it was made; nor if he survives the person to whom it was made.

Illustrations

(i) A, being ill, and in expectation of death, delivers to B, to be retained by him in case of A's death,—

a watch:
a bond granted by C to A:
a bank-note:
a promissory note of the [1][Federal Government] endorsed in blank:
a bill of exchange endorsed in blank:
certain mortgage-deeds.

A dies of the illness during which he delivered these articles.

B is entitled to—

[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which had been subs. by A.O., 1937, for "G. of I.".

the watch:
the debt secured by C's bond:
the bank- note:
the promissory note of the [1][Federal Government]:
the bill of exchange:
the money secured by the mortgage-deeds.

(*ii*) A, being ill, and in expectation of death, delivers to B the key of a trunk or the key of a warehouse in which goods of bulk belonging to A are deposited, with the intention of giving him the control over the contents of the trunk, or over the deposited goods, and desires him to keep them in case of A's death. A dies of the illness during which he delivered these articles. B is entitled to the trunk and its contents or to A's goods of bulk in the warehouse.

(*iii*) A, being ill, and in expectation of death, puts aside certain articles in separate parcels and marks upon the parcels respectively the names of B and C. The parcels are not delivered during the life of A. A dies of the illness during which he set aside the parcels. B and C are not entitled to the contents of the parcels.

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PART VII

Protection of Property of Deceased

192. Person claiming right by succession to property of deceased may apply for relief against wrongful possession.— (1) If any person dies leaving property, moveable or immoveable, any person claiming a right by succession thereto or to any portion thereof, may make application to the District Judge of the district where any part of the property is found or situate for relief, either after actual possession has been taken by another person, or when forcible means of seizing possession are apprehended.

(2) Any agent, relative or near friend, or the Court of Wards in cases within their cognizance, may, in the event of any minor, or any disqualified or absent person being entitled by succession to such property as aforesaid, make the like application for relief.

193. Inquiry made by Judge. The District Judge to whom such application is made shall, in the first place, examine the applicant on oath, and may make such further inquiry, if any, as he thinks necessary as to whether there is sufficient ground for believing that the party in possession or taking forcible means for seizing possession has no lawful title, and that the applicant, or the person on whose behalf he applies, is really entitled and is likely to be materially prejudiced if left to the ordinary remedy of a suit, and that the application is made *bona fide*.

194. Procedure.- If the District Judge is satisfied that there is sufficient ground for believing as aforesaid but not otherwise, he shall summon the party complained of, and give notice of vacant or disturbed possession by publication, and, after the expiration of a reasonable time, shall determine summarily the right to possession (subject to a suit as hereinafter provided) and shall deliver possession accordingly:

[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which had been subs. by A.O., 1937, for "G. of I.".

Provided that the Judge shall have the power to appoint an officer who shall take an inventory of effects, and seal or otherwise secure the same, upon being applied to for the purpose, without delay, whether he shall have concluded the inquiry necessary for summoning the party complained of or not.

195. Appointment of curator pending determination of proceeding. If it further appears upon such inquiry as aforesaid that danger is to be apprehended of the misappropriation or waste of the property before the summary proceeding can be determined, and that the delay in obtaining security from the party in possession or the insufficiency thereof is likely to expose the party out of possession to considerable risk, provided he is the lawful owner, the District Judge may appoint one or more curators whose authority shall continue according to the terms of his or their respective appointments, and in no case beyond the determination of the summary proceeding and the confirmation or delivery of possession in consequence thereof:

Provided that, in the case of land, the Judge may delegate to the Collector, or to any officer subordinate to the Collector, the powers of a curator:

Provided, further, that every appointment of a curator in respect of any property shall be duly published.

196. Powers conferrable on curator. The District Judge may authorise the curator to take possession of the property either generally, or until security is given by the party in possession, or until inventories of the property have been made, or for any other purpose necessary for securing the property from misappropriation or waste by the party in possession:

Provided that it shall be in the discretion of the Judge to allow the party in possession to continue in such possession on giving security or not, and any continuance in possession shall be subject to such orders as the Judge may issue touching inventories, or the securing of deeds or other effects.

197. Prohibition of exercise of certain powers by curators.— (1) Where a certificate has been granted under Part X (VII of 1889),[1][* * *] or a grant of probate or letters of administration has been made, a curator appointed under this Part shall not exercise any authority lawfully belonging to the holder of the certificate or to the executor or administrator.

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(2) **Payment of debts, etc., to curator.** All persons who have paid debts or rents to a curator authorised by a Court to receive them shall be indemnified, and the curator shall be responsible for the payment thereof to the person who has obtained the certificate probate or letters of administration, as the case may be.

198. Curator to give security and may receive remuneration.—(1) The District Judge shall take from the curator security for the faithful discharge of his trust, and for rendering satisfactory accounts of the same as hereinafter provided, and may authorise him to receive out of the property such remuneration, in no case exceeding five per centum on the moveable property and on the annual profits of the immoveable property, as the District Judge thinks reasonable.

(2) All surplus money realized by the curator shall be paid into Court, and invested in public securities for the benefit of the persons entitled thereto upon adjudication of the summary proceeding.

[1] The words "or under the Succession Certificate Act, 1889", omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II.

(3) Security shall be required from the curator with all reasonable despatch, and, where it is practicable, shall be taken generally to answer all cases for which the person may be afterwards appointed curator; but no delay in the taking of security shall prevent the Judge from immediately investing the curator with the powers of his office.

199. Report from Collector where estate includes revenue- paying land.— (1) Where the estate of the deceased person consists wholly or in part of land paying revenue to Government, in all matters regarding the propriety of summoning the party in possession, of appointing a curator, or of nominating individuals to that appointment, the District Judge shall demand a report from the Collector, and the Collector shall thereupon furnish the same:

Provided that in cases of urgency the Judge may proceed, in the first instance, without such report.

(2) The Judge shall not be obliged to act in conformity with any such report, but, in case of his acting otherwise than according to such report, he shall immediately forward a statement of his reasons to the High Court, and the High Court, if it is dissatisfied with such reasons, shall direct the Judge to proceed conformably to the report of the Collector.

200. Institution and defence of suits. The curator shall be subject to all orders of the District Judge regarding the institution or the defence of suits, and all suits may be instituted or defended in the name of the curator on behalf of the estate:

Provided that an express authority shall be requisite in the order of the curator's appointment or the collection of debts or rents; but such express authority shall enable the curator to give a full acquittance for any sums of money received by virtue thereof.

201. Allowances to apparent owners pending custody by curator. Pending the custody of the property by the curator, the District Judge may make such allowances to parties having a *prima facie* right thereto as upon a summary investigation of the rights and circumstances of the parties interested he considers necessary, and may, at his discretion, take security for the repayment thereof with interest, in the event of the party being found, upon the adjudication of the summary proceeding, not to be entitled thereto.

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202. Accounts to be filed by curator. The curator shall file monthly accounts in abstract, and shall, on the expiry of each period of three months, if his administration lasts so long, and, upon giving up the possession of the property, file a detailed account of his administration to the satisfaction of the District Judge.

203. Inspection of accounts and right of interested party to keep duplicate.—(1) The accounts of the curator shall be open to the inspection of all parties interested; and it shall be competent for any such interested party to appoint a separate person to keep a duplicate account of all receipts and payments by the curator.

(2) If it is found that the accounts of the curator are in arrear, or that they are erroneous or incomplete, or if the curator does not produce them whenever he is ordered to do so by the District Judge, he shall be punishable with fine not exceeding one thousand rupees for every such default.

204. Bar to appointment of second curator for same property. If the Judge of any district has appointed a curator, in respect of the whole of the property of a deceased person, such appointment shall preclude the Judge of any other district within the same Province from appointing any other curator, but the appointment of a curator in respect of a portion of the property of the deceased shall not preclude the appointment within the same Province of another curator in respect of the residue or any portion thereof:

Provided that no Judge shall appoint a curator or entertain a summary proceeding in respect of property which is the subject of a summary proceeding previously instituted under this Part before another Judge;

Provided, further, that if two or more curators are appointed by different Judges for several parts of an estate, the High Court may make such order as it thinks fit for the appointment of one curator of the whole property.

205. Limitation of time for application for curator. An application under this Part to the District Judge must be made within six months of the death of the proprietor whose property is claimed by right in succession.

206. Bar to enforcement of Part against public settlement or legal directions by deceased. Nothing in this Part shall be deemed to authorise the contravention of any public act of settlement or of any legal directions given by a deceased proprietor of any property for the possession of his property after his decease in the event of minority or otherwise, and, in every such case, as soon as the Judge having jurisdiction over the property of a deceased person is satisfied of the existence of such directions, he shall give effect thereto.

207. Court of Wards to be made curator in case of minors having property subject to its jurisdiction. Nothing in this Part shall be deemed to authorise any disturbance of the possession of a Court of Wards of any property; and in case a minor, or other disqualified person whose property is subject to the Court of Wards, is the party on whose behalf application is made under this Part, the District Judge, if he determines to summon the party in possession and to appoint a curator, shall invest the Court of Wards with the curatorship of the estate pending the proceeding without taking security as aforesaid; and if the minor or other disqualified person, upon the adjudication of the summary proceeding, appears to be entitled to the property, possession shall be delivered to the Court of Wards.

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208. Saving of right to bring suit. Nothing contained in this Part shall be any impediment to the bringing of a suit either by the party whose application may have been rejected before or after the summoning of the party in possession, or by the party who may have been evicted from the possession under this Part.

209. Effect of decision of summary proceeding. The decision of a District Judge in a summary proceeding under this part shall have no other effect than that of settling the actual possession; but for this purpose it shall be final, and shall not be subject to any appeal or review.

210. Appointment of public curators. The [1][Provincial Government] may appoint public curators for any district or number of districts; and the District Judge having jurisdiction shall nominate such public curators in all cases where the choice of a curator is left discretionary with him under this Part.

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[1] Subs. by A. O., 1937, for "L. G.".

PART VIII

Representative Title to Property of Deceased on Succession

211. Character and property of executor or administrator as such.— (1) The executor or administrator, as the case may be, of a deceased person is his legal representative for all purposes, and all the property of the deceased person vests in him as such.

(2) When the deceased was a Hindu, [1][Muslim] Buddhist, Sikh [2][Jaina, or Parsi], an exempted person, nothing herein contained shall vest in an executor or administrator any property of the deceased person which would otherwise have passed by survivorship to some other person.

212. Right to intestate's property.—(1) No right to any part of the property of a person who has died intestate can be established in any Court of Justice, unless letters of administration have first been granted by a Court of competent jurisdiction.

(2) This section shall not apply in the case of the intestacy of a Hindu, [1][Muslim], Buddhist, Sikh, Jaina [3][.Parsi] or [4][Pakistan Christian].

213. Right as executor or legatee when established.—(1) No right as executor or legatee can be established in any Court of Justice, unless a Court of competent jurisdiction in [5][Pakistan] has granted probate of the will under which the right is claimed, or has granted letters of administration with the will or with a copy of an authenticated copy of the will annexed.

[6][(2) Sub-section (1) shall not apply in the case of wills made by Muslims and Parsis, and shall only apply in the case of wills made by any Hindu, Buddhist, Sikh or Jaina where such wills are of the classes specified in clauses (a) and (b) of section 57.]

214. Proof of representative title a condition precedent to recovery through the Courts of debts from debtors of deceased persons.— (1) No Court shall—

(*a*) pass a decree against a debtor of a deceased person for payment of his debt to a person claiming on succession to be entitled to the effects of the deceased person or to any part thereof, or

(*b*) proceed, upon an application of a person claiming to be so entitled, to execute against such a debtor a decree or order for the payment of his debt,

except on the production, by the person so claiming, of—

(*i*) a probate or letters of administration evidencing the grant to him of administration to the estate of the deceased, or

(*ii*) a certificate granted under section 31 or section 32 of the Administrator General's Act, 1913 (III of 1913), and having the debt mentioned therein, or

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".
[2]Subs. by the Succession (Amdt.) Act, 1974 (12 of 1974|), s. 2., for "or Jaina".
[3] Ins. by the Succession (Amdt.) Act, 1974 (12 of 1974), s. 3.
[4]Subs. by A. O., 1949, for "Indian Christian".
[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".
[6] Subs. by the Succession (Amdt.) Ordinance, 1978 (35 of 1978), s. 2, for sub-section (2), which were previously amended by various enactments.

(*iii*) a succession certificate granted under Part X and having the debt specified therein, or

[1][* * * * * * *]

(*v*) a certificate granted under [2][Sind Regulation No. VIII of 1827] and, if granted after the first day of May, 1889, having the debt specified therein.

(2) The word "debt" in sub-section (1) includes any debt except rent, revenue or profits payable in respect of land used for agricultural purposes.

215. Effect on certificate of subsequent probate or letters of administration.—(1) A grant of probate or letters of administration in respect of an estate shall be deemed to supersede any certificate previously granted under Part X [3][Sind Regulation No. VIII of 1827], in respect of any debts or securities included in the estate.

(2) When at the time of the grant of the probate or letters any suit or other proceeding instituted by the holder of any such certificate regarding any such debt or security is pending, the person to whom the grant is made shall, on applying to the Court in which the suit or proceeding is pending, be entitled to take the place of the holder of the certificate in the suit or proceeding:

Provided that, when any certificate is superseded under this section, all payments made to the holder of such certificate in ignorance of such supersession shall be held good against claims under the probate or letters of administration.

216. Grantee of probate or administration alone to sue, etc., until same revoked. After any grant of probate or letters of administration, no other than the person to whom the same may have been granted shall have power to sue or prosecute any suit, or otherwise act as representative of the deceased, throughout the Province in which the same may have been granted, until such probate or letters of administration has or have been recalled or revoked.

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PART IX

Probate, Letters of Administration and Administration of Assets of Deceased.

217. Application of Part. Save as otherwise provided by this Act or by any other law for the time being in force, all grants of probate and letters of administration with the will annexed and the administration of the assets of the deceased in cases of intestate succession shall be made or carried out, as the case may be, in accordance with the provisions of this Part.

[1] Sub-clause (iv) omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981, (27 of 1981), s. 3 and Sch. II.
[2] Subs. *ibid.*, for " Bombay Regulation No. VIII of 1827".
[3] The words "or under the Succession Certificate Act, 1889", omitted *ibid.*,

CHAPTER I

OF GRANT OF PROBATE AND LETTERS OF ADMINISTRATION

218. To whom administration may be granted, where deceased is a Hindu, [1][Muslim], Buddhist/ Sikh, Jaina or exempted any person.—(1) If the deceased has died intestate and was a Hindu; [1][Muslim], Buddhist, Sikh or Jaina or an exempted person, administration of his estate may be granted to any person who, according to the rules for the distribution of the estate applicable in the case of such deceased, would be entitled to the whole or any part of such deceased's estate.

(2) When several such persons apply for such administration, it shall be in the discretion of the Court to grant it to any one or more of them.

(3) When no such person applies, it may be granted to a creditor of the deceased.

219. Where deceased is not a Hindu, [1][Muslim], Buddhist, Sikh, Jaina or exempted person. If the deceased has died intestate and was not a person belonging to any of the classes referred to in section 218, those who are connected with him, either by marriage or by consanguinity, are entitled to obtain letters of administration of his estate and effects in the order and according to the rules hereinafter stated, namely:—

(a) If the deceased has left a widow, administration shall be granted to the widow, unless the Court sees cause to exclude her, either on the ground of some personal disqualification, or because she has no interest in the estate of the deceased.

Illustrations

(*i*) The widow is a lunatic or has committed adultery or has been barred by her marriage settlement of all interest in her husband's estate. There is cause for excluding her from the administration.

(*ii*) The widow has married again since the decease of her husband. This is not good cause for her exclusion.

(b) If the Judge thinks proper, he may associate any person or persons with the widow in the administration who would be entitled solely to the administration if there were no widow.

(c) If there is no widow, or if the Court sees cause to exclude the widow, it shall commit the administration to the person or persons who would be beneficially entitled to the estate according to the rules for the distribution of an intestate's estate:

Provided that, when the mother of the deceased is one of the class of persons so entitled, she shall be solely entitled to administration.

(d) Those who stand in equal degree of kindred to the deceased are equally entitled to administration.

(e) The husband surviving his wife has the same right of administration of her estate as the widow has in respect of the estate of her husband.

[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".

(f) When there is no person connected with the deceased by marriage or consanguinity who is entitled to letters of administration and willing to act, they may be granted to a creditor.

(g) Where the deceased has left property in [1][Pakistan], letters of administration shall be granted according to the foregoing rules, notwithstanding that he had his domicile in a country in which the law relating to testate and intestate succession differs from the law of [1][Pakistan].

220. Effect of letters of administration. Letters of administration entitle the administrator to all rights belonging to the intestate as effectually as if the administration had been granted at the moment after his death.

221. Acts not validated by administration. Letters of administration do not render valid any intermediate acts of the administrator tending to the diminution or damage of the intestate's estate.

222. Probate only to appointed executor.—(1) Probate shall be granted only to an executor appointed by the will.

(2) The appointment may be expressed or by necessary implication.

Illustrations

(*i*) A wills that C be his executor if B will not. B is appointed executor by implication.

(*ii*) A gives a legacy to B and several legacies to other persons, among the rest to his daughter-in-law C, and adds "but should the within-named C be not living I do constitute and appoint B my whole and sole executrix." C is appointed executrix by implication.

(*iii*) A appoints several persons executors of his will and codicils and his nephew residuary legatee, and in another codicil are these words,— "I appoint my nephew my residuary legatee to discharge all lawful demands against my will and codicils signed of different dates." The nephew is appointed an executor by implication.

223. Persons to whom probate cannot be granted. Probate cannot be granted to any person who is a minor or is of unsound mind [2][nor to any association of individuals unless it is a company which satisfies the conditions prescribed by rules to be made by the [3][Provincial Government] in this behalf].

224. Grant of probate to several executors simultaneously or at different times. When several executors are appointed, probate may be granted to them all simultaneously or at different times.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960.), s. 3 and 2nd Sch., (*with effect from the 14th October, 1955*), for " the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

[2]Added by the Indian Succession (Amdt.) Act, 1931 (17 of 1931), s. 2. The words "nor, unless the deceased was a Hindu, Muhammadan, Buddhist, Sikh or Jaina or an exempted person, to a married woman without the consent of her husbnand" which originally occurred at the end of this section had been rep. by the Indian Succession (Amdt.) Act, 1927 (18 of 1927), s. 2.

[3]Subs. by A. O., 1937, for "G. G. in C.".

Illustration

A is an executor of B's will by express appointment and C an executor of it by implication. Probate may be granted to A and C at the same time or to A first and then to C, or to C first and then to A.

225. Separate probate of codicil discovered after grant of probate.— (1) If a codicil is discovered after the grant of probate, a separate probate of that codicil may be granted to the executor, if it in no way repeals the appointment of executors made by the will.

(2) If different executors are appointed by the codicil, the probate of the will shall be revoked, and a new probate granted of the will and the codicil together.

226. Accrual of representation to surviving executor. When probate has been granted to several executors, and one of them dies, the entire representation of the testator accrues to the surviving executor or executors.

227. Effect of probate. Probate of a will when granted establishes the will from the death of the testator, and renders valid all intermediate acts of the executor as such.

228. Administration, with copy annexed, of authenticated copy of will proved abroad. When a will has been proved and deposited in a Court of competent jurisdiction situated beyond the limits of the Province, whether within or beyond the limits of [1][Pakistan], and a properly authenticated copy of the will is produced, letters of administration may be granted with a copy of such copy annexed.

229. Grant of administration where executor has not renounced. When a person appointed an executor has not renounced the executorship, letters of administration shall not be granted to any other person until a citation has been issued, calling upon the executor to accept or renounce his executorship:

Provided that, when one or more of several executors have proved a will, the Court may, on the death of the survivor of those who have proved, grant letters of administration without citing those who have not proved.

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230. Form and effect of renunciation of executorship. The renunciation may be made orally in the presence of the Judge, or by a writing signed by the person renouncing, and when made shall preclude him from ever thereafter applying for probate of the will appointing him executor.

231. Procedure where executor renounces or fails to accept within time limited. If an executor renounces, or fails to accept an executorship within the time limited for the acceptance or refusal thereof, the will may be proved and letters of administration, with a copy of the will annexed, may be granted to the person who would be entitled to administration in case of intestacy.

232. Grant of administration to universal or residuary legatees. When—

(a) the deceased has made a will, but has not appointed an executor, or

(b) the deceased has appointed an executor who is legally incapable or refuses to act, or who has died before the testator or before he has proved the will, or

[1] Subs. by A. O., 1961, Art. 2 and Sch., for "His Majesty's dominions" (*with effect from the 23rd March, 1956*).

(c) the executor dies after having proved the will, but before he has administered all the estate of the deceased,

an universal or a residuary legatee may be admitted to prove the will, and letters of administration with the will annexed may be granted to him of the whole estate, or of so much thereof as may be unadministered.

233. Right to administration of representative of deceased residuary legatee. When a residuary legatee who has a beneficial interest survives the testator, but dies before the estate has been fully administered, his representative has the same right to administration with the will annexed as such residuary legatee.

234. Grant of administration where no executor nor residuary legatee nor representative of such legatee. When there is no executor and no residuary legatee or representative of a residuary legatee, or he declines or is incapable to act, or cannot be found, the person or persons who would be entitled to the administration of the estate of the deceased if he had died intestate, or any other legatee having a beneficial interest, or a creditor, may be admitted to prove the will, and letters of administration may be granted to him or them accordingly.

235. Citation before grant of administration to legatee other than universal or residuary. Letters of administration with the will annexed shall not be granted to any legatee other than an universal or a residuary legatee, until a citation has been issued and published in the manner hereinafter mentioned, calling on the next- of- kin to accept or refuse letters of administration.

236. To whom administration may not be granted. Letters of administration cannot be granted to any person who is a minor or is of unsound mind, [1][nor to any association of individuals unless it is a company which satisfies the conditions prescribed by rules to be made by the [2][Provincial Government] in this behalf].

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CHAPTER II

OF LIMITED GRANTS

Grants limited in duration

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237. Probate of copy or draft of lost will. When a will has been lost or mislaid since the testator's death, or has been destroyed by wrong or accident and not by any act of the testator, and a copy or the draft of the will has been preserved, probate may be granted of such copy or draft, limited until the original or a properly authenticated copy of it is produced.

238. Probate of contents of lost or destroyed will. When a will has been lost or destroyed and no copy has been made nor the draft preserved, probate may be granted of its contents if they can be established by evidence.

239. Probate of copy where original exists. When the will is in the possession of a person residing out of the Province in which application for probate is made, who has refused or neglected to deliver it up, but a copy has been transmitted to the executor, and it is necessary for the interests of the estate that probate should be granted without waiting for the arrival of the original, probate may be granted of the copy so transmitted, limited until the will or an authenticated copy of it is produced.

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[2]Added by the Indian Succession (Amdt.) Act, 1931 (17 of 1931), s. 2. The words "nor, unless the deceased was a Hindu, Muhammadan, Buddhist, Sikh or Jaina or an exempted person, to a married woman without the consent of her husbnand" which originally occurred at the end of this section had been rep. by the Indian Succession (Amdt.) Act, 1927 (18 of 1927), s. 2.

[2] Subs. by A.O., 1937, for "G. G. in C.".

240. Administration until will produced. Where no will of the deceased is forthcoming, but there is reason to believe that there is a will in existence, letters of administration may be granted, limited until the will or an authenticated copy of it is produced.

Grants for the use and benefit of others having right

241. Administration, with will annexed, to attorney of absent executor. When any executor is absent from the Province in which application is made, and there is no executor within the Province willing to act, letters of administration, with the will annexed, may be granted to the attorney or agent of the absent executor; for the use and benefit of his principal, limited until he shall obtain probate or letters of administration granted to himself.

242. Administration, with will annexed, to attorney of absent person who, if present, would be entitled to administer. When any person to whom, if present, letters of administration, with the will annexed, might be granted, is absent from the Province, letters of administration, with the will annexed, may be granted to his attorney or agent, limited as mentioned in section 241.

243. Administration to attorney of absent person entitled to administer in case of intestacy. When a person entitled to administration in case of intestacy is absent from the Province, and no person equally entitled is willing to act, letters of administration may be granted to the attorney or agent of the absent person, limited as mentioned in section 241.

244. Administration during minority of sole executor or residuary legatee. When a minor is sole executor or sole residuary legatee, letters of administration, with the will annexed, may be granted to the legal guardian of such minor or to such other person as the Court may think fit until the minor has attained his majority at which period, and not before, probate of the will shall be granted to him.

245. Administration during minority of several executors or residuary legatees. When there are two or more minor executors and no executor who has attained majority, or two or more residuary legatees and no residuary legatee who has attained majority, the grant shall be limited until one of them shall have attained his majority.

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246. Administration for use and benefit of lunatic or minor. If a sole executor or a sole universal or residuary legatee, or a person who would be solely entitled to the estate of the intestate according to the rule for the distribution of intestates' estates applicable in the case of the deceased, is a minor or lunatic, letters of administration, with or without the will annexed, as the case may be, shall be granted to the person to whom the care of his estate has been committed by competent authority, or, if there is no such person, to such other person as the Court may think fit to appoint, for the use and benefit of the minor or lunatic until he attains majority or becomes of sound mind, as the case may be.

247. Administration *pendente lite*. Pending any suit touching the validity of the will of a deceased person or for obtaining or revoking any probate or any grant of letters of administration, the Court may appoint an administrator of the estate of such deceased person, who shall have all the rights and powers of a general administrator, other than the right of distributing such estate, and every such administrator shall be subject to the immediate control of the Court and shall act under its direction.

Grants for special purposes

248. Probate limited to purpose specified in will. If an executor is appointed for any limited purpose specified in the will, the probate shall be limited to that purpose, and if he should appoint an attorney or agent to take administration on his behalf, the letters of administration, with the will annexed, shall be limited accordingly.

249. Administration, with will annexed, limited to particular purpose. If an executor appointed generally gives an authority to an attorney or agent to prove a will on his behalf, and the authority is limited to a particular purpose, the letters of administration, with the will annexed, shall be limited accordingly.

250. Administration limited to property in which person has beneficial interest. Where a person dies, leaving property of which he was the sole or surviving trustee, or in which he had no beneficial interest on his own account, and leaves no general representative, or one who is unable or unwilling to act as such, letters of administration, limited to such property, may be granted to the beneficiary, or to some other person on his behalf.

251. Administration limited to suit. When it is necessary that the representative of a person deceased be made a party to a pending suit, and the executor or person entitled to administration is unable or unwilling to act, letters of administration may be granted to the nominee of a party in such suit, limited for the purpose of representing the deceased in the said suit, or in any other cause or suit which may be commenced in the same or in any other Court between the parties, or any other parties, touching the matters at issue in the said cause or suit, and until a final decree shall be made therein and carried into complete execution.

252. Administration limited to purpose of becoming party to suit to be brought against administrator. If, at the expiration of twelve months from the date of any probate or letters of administration, the executor or administrator to whom the same has been granted is absent from the Province within which the Court which has granted the probate or letters of administration exercises jurisdiction, the Court may grant, to any person whom it may think fit, letters of administration limited to the purpose of becoming and being made a party to a suit to be brought against the executor or administrator, and carrying the decree which may be made therein into effect.

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253. Administration limited to collection and preservation of deceased's property. In any case in which it appears necessary for preserving the property of a deceased person, the Court within whose jurisdiction any of the property is situate may grant to any person, whom such Court may think fit, letters of administration limited to the collection and preservation of the property of the deceased and to the giving of discharges for debts due to his estate, subject to the directions of the Court.

254. Appointment as administrator, of person other than one who, in ordinary circumstances, would be entitled to administration.—(1) When a person has died intestate, or leaving a will of which there is no executor willing and competent to act or where the executor is, at the time of the death of such person, resident out of the Province, and it appears to the Court to be necessary or convenient to appoint some person to administer the estate or any part thereof, other than the person who, in ordinary circumstances, would be entitled to a grant of administration, the Court may, in its discretion, having regard to consanguinity, amount of interest, the safety of the estate and probability that it will be properly administered, appoint such person as it thinks fit to be administrator.

(2) In every such case letters of administration may be limited or not as the Court thinks fit.

Grants with exception

255. Probate or administration, with will annexed, subject to exception. Whenever the nature of the case requires that an exception be made, probate of a will, or letters of administration with the will annexed, shall be granted subject to such exception.

256. Administration with exception. Whenever the nature of the case requires that an exception be made, letters of administration shall be granted subject to such exception.

Grants of the rest

257. Probate or administration of rest. Whenever a grant with exception of probate, or of letters of administration with or without the will annexed, has been made, the person entitled to probate or administration of the remainder of the deceased's estate may take a grant of probate or letters of administration, as the case may be, of the rest of the deceased's estate.

Grant of effects unadministered

258. Grant of effects unadministered. If an executor to whom probate has been granted has died, leaving a part of the testator's estate unadministered, a new representative may be appointed for the purpose of administering such part of the estate.

259. Rules as to grants of effects unadministered. In granting letters of administration of an estate not fully administered, the Court shall be guided by the same rules as apply to original grants, and shall grant letters of administration to those persons only to whom original grants might have been made.

260. Administration when limited grant expired and still some part of estate unadministered. When a limited grant has expired by efflux of time, or the happening of the event or contingency on which it was limited, and there it still some part of the deceased's estate unadministered, letters of administration shall be granted to those persons to whom original grants might have been made.

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CHAPTER III

ALTERATION AND REVOCATION OF GRANTS

261. What errors may be rectified by Court. Errors in names and descriptions, or in setting forth the time and place of the deceased's death, or the purpose in a limited grant, may be rectified by the Court, and the grant of probate or letters of administration may be altered and amended accordingly.

262. Procedure where codicil discovered after grant of administration with will annexed. If, after the grant of letters of administration with the will annexed, a codicil is discovered, it may be added to the grant on due proof and identification, and the grant may be altered and amended accordingly.

263. Revocation or annulment for just cause. The grant of probate or letters of administration may be revoked or annulled for just cause.

Explanation.— Just cause shall be deemed to exist where—

(a) the proceedings to obtain the grant were defective in substance ; or

(b) the grant was obtained fraudulently by making a false suggestion, or by concealing from the Court something material to the case; or

(c) the grant was obtained by means of an untrue allegation of a fact essential in point of law to justify the grant, though such allegation was made in ignorance or inadvertently; or

(d) the grant has become useless and inoperative through circumstances; or

(e) the person to whom the grant was made has wilfully and without reasonable cause omitted to exhibit an inventory or account in accordance with the provisions of Chapter VII of this Part, or has exhibited under that Chapter an inventory or account which is untrue in a material respect.

Illustrations

(i) The Court by which the grant was made had no jurisdiction.

(ii) The grant was made without citing parties who ought to have been cited.

(iii) The will of which probate was obtained was forget or revoked.

(iv) A obtained letters of administration to the estate of B, as his widow, but it has since transpired that she was never married to him.

(v) A has taken administration to the (intestate) of B as if he had died intestate, but a will has since been discovered.

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(vi) Since probate was granted, a later will has been discovered.

(vii) Since probate was granted, a codicil has been discovered which revokes or adds to the appointment of executors under the will.

(viii) The person to whom probate was, or letters of administration were, granted has subsequently become of unsound mind.

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CHAPTER IV

OF THE PRACTICE IN GRANTING AND REVOKING PROBATES AND LETTERS OF ADMINISTRATION.

264. Jurisdiction of District Judge in granting and revoking probates, etc.—(1) The District Judge shall have jurisdiction in granting and revoking probates and letters of administration in all cases within his district.

(2) Except in cases to which section 57 applies, no Court [1][* * *], [2][* * *], shall, where the deceased is a Hindu, [3][Muslim], Buddhist, Sikh or Jaina or an exempted person, receive applications for probate or letters of administration until the [4][Provincial Government] has, by a notification in the [5][official Gazette], authorised it so to do.

265. Power to appoint delegate of District Judge to deal with non-contentious cases.—(1) The High Court may appoint such judicial officers within any district as it thinks fit to act for the District Judge as Delegates to grant probate and letters of administration in non-contentious cases, within such local limits as it may prescribe:

Provided that, in the case of High Courts not established by Royal Charter, such appointments shall not be without the previous sanction of the [4][Provincial Government].

(2) Persons so appointed shall be called "District Delegates".

266. District Judge's powers as to grant of probate and administration. The District Judge shall have the like powers and authority in relation to the granting of probate and letters of administration, and all matters connected therewith, as are by law vested in him in relation to any civil suit or proceeding pending in his Court.

267. District Judge may order person to produce testamentary papers.—(1) The District Judge may order any person to produce and bring into Court any paper or writing, being or purporting to be testamentary, which may be shown to be in the possession or under the control of such person.

(2) If it is not shown that any such paper or writing is in the possession or under the control of such person, but there is reason to believe that he has the knowledge of any such paper or writing, the Court may direct such person to attend for the purpose of being examined respecting the same.

(3) Such person shall be bound to answer truly such questions as may be put to him by the Court, and, if so ordered, to produce and bring in such paper or writing, and shall be subject to the like punishment under the Pakistan Penal Code (XLV of 1860), in case of default in not attending or in not answering such questions or not bringing in such paper or writing, as he would have been subject to in case he had been a party to a suit and had made such default.

(4) The costs of the proceeding shall be in the discretion of the Judge.

268. Proceedings of District Judge's Court in relation to probate and administration. The proceedings of the Court of the District Judge in relation to the granting of probate and letters of administration shall, save as hereinafter otherwise provided, be regulated, so far as the circumstances of the case permit, by the Code of Civil Procedure, 1908 (V of 1908) .

269. When and how District Judge to interfere for protection of property.—(1) Until probate is granted of the will of a deceased person, or an administrator of his estate is constituted, the District Judge, within whose jurisdiction any part of the property of the deceased person is situate, is

[1] The words "in any local area beyond the limits of the towns of Calcutta, Madras and Bombay", omitted by A. O., 1949.
[2] The words "and the province of Burma" omitted by A. O., 1937.
[3] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".
[4] Subs. *ibid.*, for "L. G.".
[5] Subs. *ibid.*, for "local official Gazette".

authorised and required to interfere for the protection of such property at the instance of any person claiming to be interested therein, and in all other cases where the Judge considers that the property incurs any risk of loss or damage; and for that purpose, if he thinks fit, to appoint an officer to take and keep possession of the property.

(2) This section shall not apply when the deceased is a Hindu, [1][Muslim], Buddhist, Sikh or Jaina or an exempted person, nor shall it apply to any part of the property of [2][a Pakistan Christian] who has died intestate.

270. When probate or administration may be granted by District Judge. Probate of the will or letters of administration to the estate of a deceased person may be granted by a District Judge under the seal of his Court, if it appears by a petition, verified as hereinafter provided, of the person applying for the same that the testator or intestate, as the case may be, at the time of his decease had a fixed place of abode, or any property, moveable or immoveable, within the jurisdiction of the Judge.

271. Disposal of application made to Judge of district in which deceased had no fixed abode. When the application is made to the Judge of a district in which the deceased had no fixed abode at the time of his death, it shall be in the discretion of the Judge to refuse the application, if in his judgment it could be disposed of more justly or conveniently in another district, or, where the application is for letters of administration, to grant them absolutely, or limited to the property within his own jurisdiction.

272. Probate and letters of administration may be granted by Delegate. Probate and letters of administration may, upon application for that purpose to any District Delegate, be granted by him in any case in which there is no contention, if it appears by petition, verified as hereinafter provided, that the testator or intestate, as the case may be, at the time of his death had a fixed place of abode within the jurisdiction of such Delegate.

273. Conclusiveness of probate or letters of administration. Probate or letters of administration shall have effect over all the property and estate, moveable or immoveable, of the deceased, throughout the Province in which the same is or are granted, and shall be conclusive as to the representative title against all debtors of the deceased, and all persons holding property which belongs to him, and shall afford full indemnity to all debtors, paying their debts and all persons delivering up such property to the person to whom such probate or letters of administration have been granted:

Provided that probates and letters of administration granted—

(a) by a High Court, or

(b) by a District Judge, where the deceased at the time of his death had a fixed place of abode situate within the jurisdiction of such Judge, and such Judge certifies that the value of the property and estate affected beyond the limits of the Province does not exceed ten thousand rupees,

[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan"

[2] The original words "an Indian Chiristian" have been amended by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch. and A. O., 1949, to read as above.

shall, unless otherwise directed by the grant, have like effect throughout [1][Pakistan]

[2][* * * * * * *]

[3] [The said proviso shall also apply in [4][Pakistan] after the separation of Pakistan from India to probates and letters of administration granted before the date of the separation, or on or after that date in proceedings pending at that date in any of the territories which on that date were comprised in India.]

274. Transmission to High Courts of certificate of grants under proviso to section 273.—(1) Where probate or letters of administration has or have been granted by a High Court or District Judge with the effect referred to in the proviso to section 273, the High Court or District Judge shall send a certificate thereof to the following Courts, namely:—

(*a*) when the grant has been made by a High Court, to each of the other High Courts;

(*b*) when the grant has been made by a District Judge, to the High Court to which such District Judge is subordinate and to each of the other High Courts.

(2) Every certificate referred to in sub- section (1) shall be made as nearly as circumstances admit in the form set forth in Schedule IV, and such certificate shall be filed by the High Court receiving the same.

(3) Where any portion of the assets has been stated by the petitioner, as hereinafter provided in sections 276 and 278, to be situate within the jurisdiction of a District Judge in another Province, the Court required to send the certificate referred to in sub- section (1) shall send a copy thereof to such District Judge, and such copy shall be filed by the District Judge receiving the same.

275. Conclusiveness of application for probate or administration if properly made and verified. The application for probate or letters of administration, if made and verified in the manner hereinafter provided, shall be conclusive for the purpose of authorising the grant of probate or administration; and no such grant shall be impeached by reason only that the testator or intestate had no fixed place of abode or no property within the district at the time of his death, unless by a proceeding to revoke the grant if obtained by a fraud upon the Court.

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276. Petition for probate.—(1) Application for probate or for letters of administration, with the will annexed, shall be made by a petition distinctly written in English or in the language in ordinary use in proceedings before the Court in which the application is made, with the will or, in the cases mentioned in sections 237, 238 and 239, a copy, draft, or statement of the contents thereof, annexed, and stating-

(*a*) the time of the testator's death,

(*b*) that the writing annexed is his last will and testament,

(*c*) that it was duly executed,

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[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces of Pakistan" which had been subs. by A. O., 1949, for "the whole of British India".

[2] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch. II. This paragraph was previously amended by various enactments.

[3] Added by A. O., 1949.

[4] Subs. by Ordinance 21 of 1960. s. 3 and 2nd Sch., for "the Provinces of Pakistan" (*with effect from the 14th October, 1955*).

(*d*) the amount of assets which are likely to come to the petitioner's hands, and

(*e*) when the application is for probate, that the petitioner is the executor named in the will.

(2) In addition to these particulars, the petition shall further state,—

(*a*) when the application is to the District Judge, that the deceased at the time of his death had a fixed place of abode, or had some property, situate within the jurisdiction of the Judge; and

(*b*) when the application is to a District Delegate, that the deceased at the time of his death had a fixed place of abode within the jurisdiction of such Delegate.

(3) Where the application is to the District Judge and any portion of the assets likely to come to the petitioner's hands is situate in another Province the petition shall further state the amount of such assets in each Province and the District Judges within whose jurisdiction such assets are situate.

277. In what cases translation of will to be annexed to petition. Verification of translation by person other than Court translator. In cases wherein the will, copy or draft, is written in any language other than English or than that in ordinary use in proceedings before the Court, there shall be a translation thereof annexed to the petition by a translator of the Court, if the language be one for which a translator is appointed; or, if the will, copy or draft, is in any other language, then by any person competent to translate the same, in which case such translation shall be verified by that person in the following manner, namely:—

"I (*A.B.*) do declare that I read and perfectly understand the language and character of the original, and that the above is a true and accurate translation thereof."

278. Petition for letters of administration.—(1) Application for letters of administration shall be made by petition distinctly written as aforesaid and stating-

(*a*) the time and place of the deceased's death;

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(*b*) the family or other relatives of the deceased, and their respective residences;

(*c*) the right in which the petitioner claims;

(*d*) the amount of assets which are likely to come to the petitioner's hands;

(*e*) when the application is to the District Judge, that the deceased at the time of his death had a fixed place of abode, or had some property, situate within the jurisdiction of the Judge; and

(*f*) when the application is to a District Delegate, that the deceased at the time of his death had a fixed place of abode within the jurisdiction of such Delegate.

(2) Where the application is to the District Judge and any portion of the assets likely to come to the petitioner's hands is situate in another Province, the petition shall further state the amount of such assets in each Province and the District Judges within whose jurisdiction such assets are situate.

279. Addition to statement in petition, etc., for probate or letters of administration in certain cases.—(1) Every person applying to any of the Courts mentioned in the proviso to section 273 for probate of a will or letters of administration of an estate intended to have effect throughout [1][Pakistan], shall state in his petition, in addition to the matters respectively required by section 276 and section 278, that to the best of his belief no application has been made to any other Court for a probate of the same will or for letters of administration of the same estate, intended to have such effect as last aforesaid,

or, where any such application has been made, the Court to which it was made, the person or persons by whom it was made and the proceedings (if any) had thereon.

(2) The Court to which any such application is made under the proviso to section 273 may, if it thinks fit, reject the same.

280. Petition for probate, etc., to be signed and verified. The petition for probate or letters of administration shall in all cases be subscribed by the petitioner and his pleader, if any, and shall be verified by the petitioner in the following manner, namely:—

"I (*A.B.*), the petitioner in the above petition, declare that what is stated therein is true to the best of my information and belief".

281. Verification of petition for probate by one witness to will. Where the application is for probate, the petition shall also be verified by at least one of the witnesses to the will (when procurable) in the manner or to the effect following, namely:—

"I (*C. D.*), one of the witnesses to the last will and testament of the testator mentioned in the above petition, declare that I was present and saw the said testator affix his signature (*or* mark) thereto (*or* that the said testator acknowledged the writing annexed to the above petition to be his last will and testament in my presence)."

282. Punishment for false averment in petition or declaration. If any petition or declaration which is hereby required to be verified contains any averment which the person making the verification knows or believes to be false, such person shall be deemed to have committed an offence under section 193 of the Pakistan Penal Code (XLV of 1860).

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283. Powers of District Judge.—(1) In all cases the District Judge or District Delegate may, if he thinks proper,—

(*a*) examine the petitioner in person, upon oath;

(*b*) require further evidence of the due execution of the will or the right of the petitioner to the letters of administration, as the case may be;

(*c*) issue citations calling upon all persons claiming to have any interest in the estate of the deceased to come and see the proceedings before the grant of probate or letters of administration.

[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O. 1949, for "British India".

(2) The citation shall be fixed up in some conspicuous part of the court-house, and also in the office of the Collector of the district and otherwise published or made known in such manner as the Judge or District Delegate issuing the same may direct.

(3) Where any portion of the assets has been stated by the petitioner to be situate within the jurisdiction of a District Judge in another Province, the District Judge issuing the same shall cause a copy of the citation to be sent to such other District Judge, who shall publish the same in the same manner as if it were a citation issued by himself, and shall certify such publication to the District Judge who issued the citation.

284. Caveats against grant of probate or administration.—(1) Caveats against the grant of probate or administration may be lodged with the District Judge or a District Delegate.

(2) Immediately on any caveat being lodged with any District Delegate, he shall send copy thereof to the District Judge.

(3) Immediately on a caveat being entered with the District Judge, a copy thereof shall be given to the District Delegate, if any, within whose jurisdiction it is alleged the deceased had a fixed place of abode at the time of his death, and to any other Judge or District Delegate to whom it may appear to the District Judge expedient to transmit the same.

(4). **Form of caveat.** The caveat shall be made as nearly as circumstances admit in the form set forth in Schedule V.

285. After entry of caveat, no proceeding taken on petition until after notice to caveator. No proceeding shall be taken on a petition for probate or letters of administration after a caveat against the grant thereof has been entered with the Judge or District Delegate to whom the application has been made or notice has been given of its entry with some other Delegate, until after such notice to the person by whom the same has been entered as the Court may think reasonable.

286. District Delegate when not to grant probate or administration. A District Delegate shall not grant probate or letters of administration in any case in which there is contention as to the grant, or in which it otherwise appears to him that probate or letters of administration ought not to be granted in his Court.

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Explanation.— "Contention" means the appearance of any one in person, or by his recognized agent, or by a pleader duly appointed to act on his behalf, to oppose the proceeding.

287. Power to transmit statement to District Judge in doubtful cases where no contention. In every case in which there is no contention, but it appears to the District Delegate doubtful whether the probate or letters of administration should or should not be granted, or when any question arises in relation to the grant, or application for the grant, of any probate or letters of administration, the District Delegate may, if he thinks proper, transmit a statement of the matter in question to the District Judge, who may direct the District Delegate to proceed in the matter of the application, according to such instructions as to the Judge may seem necessary, or may forbid any further proceeding by the District Delegate in relation to the matter of such application, leaving the party applying for the grant in question to make application to the Judge.

288. Procedure where there is contention or District Delegate thinks probate or letters of administration should be refused in his Court. In every case in which there is contention, or the District Delegate is of opinion that the probate or letters of administration should be refused in his Court, the petition, with any documents which may have been filed therewith, shall be returned to the person by whom the application was made, in order that the same may be presented to the District Judge, unless the District Delegate thinks it necessary, for the purposes of justice, to impound the same, which he is hereby authorised to do; and, in that case, the same shall be sent by him to the District Judge.

289. Grant of probate to be under seal of Court. When it appears to the District Judge or District Delegate that probate of a will should be granted, he shall grant the same under the seal of his Court in the form set forth in Schedule VI.

290. Grant of letters of administration to be under seal of Court. When it appears to the District Judge or District Delegate that letters of administration to the estate of a person deceased, with or without a copy of the will annexed, should be granted, he shall grant the same under the seal of his Court in the form set forth in Schedule VII.

291. Administration bond.—(1) Every person to whom any grant of letters of administration, other than a grant under section 241, is committed, shall give a bond to the District Judge with one or more surety or sureties, engaging for the due collection, getting in, and administering the estate of the deceased, which bond shall be in such form as the Judge may, by general or special order, direct.

(2) When the deceased was a Hindu, [1][Muslim], Buddhist, Sikh or Jaina or an exempted person—

(*a*) the exception made by sub- section (1) in respect of a grant under section 241 shall not operate.

(*b*) the District Judge may demand a like bond from any person to whom probate is granted.

292. Assignment of administration bond. The Court may, on application made by petition and on being satisfied that the engagement of any such bond has not been kept, and upon such terms as to security, or providing that the money received be paid into Court, or otherwise, as the Court may think fit, assign the same to some person, his executors or administrators, who shall thereupon be entitled to sue on the said bond in his or their own name or names as if the same had been originally given to him or them instead of to the Judge of the Court, and shall be entitled to recover thereon, as trustees for all person interested, the full amount recoverable in respect of any breach thereof.

293. Time for grant of probate and administration. No probate of a will shall be granted until after the expiration of seven clear days, and no letters of administration shall be granted until after the expiration of fourteen clear days from the day of the testator or intestate's death.

294. Filing of original wills of which probate or administration with will annexed granted.—(1) Every District Judge, or District Delegate, shall file and preserve all original wills, of which probate or letters of administration with the will annexed may be granted by him, among the records of his Court, until some public registry for wills is established.

(2) The [2][Provincial Government] shall make regulations for the preservation and inspection of the wills so filed.

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[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".
[2] Subs. by F.A. O., 1937, for "L. G.".

295. Procedure in contentious cases. In any case before the District Judge in which there is contention, the proceedings shall take, as nearly as may be, the form of a regular suit, according to the provisions of the Code of Civil Procedure, 1908 (V of 1908), in which the petitioner for probate or letters of administration, as the case may be, shall be the plaintiff, and the person who has appeared to oppose the grant shall be the defendant.

296. Surrender of revoked probate or letters of administration.—(1) When a grant of probate or letters of administration is revoked or annulled under this Act, the person to whom the grant was made shall forthwith deliver up the probate or letters to the Court which made the grant.

(2) If such person wilfully and without reasonable cause omits so to deliver up the probate or letters, he shall be punishable with fine which may extend to one thousand rupees, or with imprisonment for a term which may extend to three months, or with both.

297. Payment to executor or administrator before probate or administration revoked. When a grant of probate or letters of administration is revoked, all payments *bona fide* made to any executor or administrator under such grant before the revocation thereof shall, notwithstanding such revocation, be a legal discharge to the person making the same; and the executor or administrator who has acted under any such revoked grant may retain and reimburse himself in respect of any payments made by him which the person to whom probate or letters of administration may after wards be granted might have lawfully made.

298. Power to refuse letters of administration. Notwithstanding anything hereinbefore contained it shall, where the deceased was a [1][Muslim], Buddhist or exempted person, or a Hindu, Sikh or Jaina to whom section 57 does not apply, be in the discretion of the Court to make an order refusing, for reasons to be recorded by it in writing, to grant any application for letters of administration made under this Act.

299. Appeals from orders of District Judge. Every order made by a District Judge by virtue of the powers hereby conferred upon him shall be subject to appeal to the High Court in accordance with the provisions of the Code of Civil Procedure, 1908 (V of 1908), applicable to appeals.

300. Concurrent jurisdiction of High Court.— (1) The High Court shall have concurrent jurisdiction with the District Judge in the exercise of all the powers hereby conferred upon the District Judge.

(2) Except in cases to which section 57 applies, no High Court, in exercise of the concurrent jurisdiction hereby conferred over any local area [2][* * *], [3][* * *], shall, where the deceased is a Hindu, [1][Muslim], Buddhist, Sikh or Jaina or an exempted person, receive applications for probate or letters of administration until the [4][Provincial Government] has, by a notification in the [5][official Gazette], authorised it so to do.

301. Removal of executor or administrator and provision for successor. The High Court may on application made to it suspend remove or discharge any private executor or administrator and provide for the succession of another person to the office of any such executor or administrator who may cease to hold office, and the vesting in such successor of any property belonging to the estate.

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[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan"

[2]The words beyond the limits of the towns of Calcutta, Madras and Bombay" omitted by A. O., 1949.

[3]The words "and the province of Burma" omitted by A. O. 1937.

[4]Subs. *ibid.,* for " L. G."

[5]Subs. *ibid.,* for "local official Gazette".

302. Directions to executor or administrator. Where probate or letters of administration in respect of any estate has or have been granted under this Act, the High Court may on application made to it, give to the executor or administrator any general or special directions in regard to the estate or in regard to the administration thereof.

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CHAPTER V

OF EXECUTORS OF THEIR OWN WRONG

303. Executor of his own wrong. A person who intermeddles with the estate of the deceased, or does any other act which belongs to the office of executor, while there is no rightful executor or administrator in existence thereby makes himself an executor of his own wrong.

Exceptions.—(1) Intermeddling with the goods of the deceased for the purpose of preserving them or providing for his funeral or for the immediate necessities of his family or property, does not make an executor of his own wrong.

(2) Dealing in the ordinary course of business with goods of the deceased received from another does not make an executor of his own wrong.

Illustrations

(*i*) A uses or gives away or sells some of the goods of the deceased, or takes them to satisfy his own debt or legacy or receives payment of the debts of the deceased. He is an executor of his own wrong.

(*ii*) A, having been appointed agent by the deceased in his lifetime to collect his debts and sell his goods, continues to do so after he has become aware of his death. He is an executor of his own wrong in respect of acts done after he has become aware of the death of the deceased.

(*iii*) A sues as executor of the deceased, not being such. He is an executor of his own wrong.

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304. Liability of executor of his own wrong. When a person has so acted as to become an executor of his own wrong, he is answerable to the rightful executor or administrator, or to any creditor or legatee of the deceased, to the extent of the assets which may have come to his hands after deducting payments made to the rightful executor or administrator, and payments made in due course of administration.

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CHAPTER VI

OF THE POWERS OF AN EXECUTOR OR ADMINISTRATOR

305. In respect of causes of action surviving deceased and debts due at death. An executor or administrator has the same power to sue in respect of all causes of action that survive the deceased, and may exercise the same power for the recovery of debts as the deceased has when living.

306. Demands and rights of action of or against deceased survive to and against executor or administrator. All demands whatsoever and all rights to prosecute or defend any action or special proceeding existing in favour of or against a person at the time of his decease, survive to and against his executors or administrators; except causes of action for defamation, assault, as defined in the Pakistan Penal Code (XLV of 1860), or other personal injuries not causing the death of the party; and except also cases where, after the death of the party, the relief sought could not be enjoyed or granting it would be nugatory.

Illustrations

(*i*) A collision takes place on a railway in consequence of some neglect or default of an official, and a passenger is severely hurt, but not so as to cause death. He afterwards dies without having brought any action. The cause of action does not survive.

(*ii*) A sues for divorce. A dies. The cause of action does not survive to his representative.

307. Power of executor or administrator to dispose of property.—(1) Subject to the provisions of sub-section (2), an executor or administrator has power to dispose of the property of the deceased, vested in him under section 211, either wholly or in part, in such manner as he may think fit.

Illustrations

(*i*) The deceased has made a specific bequest of part of his property. The executor, not having assented to the bequest, sells the subject of it. The sale is valid.

(*ii*) The executor in the exercise of his discretion mortgages a part of the immoveable estate of the deceased. The mortgage is valid.

(2) If the deceased was Hindu, [1][Muslim], Buddhist, Sikh or Jaina or an exempted person, the general power conferred by sub-section (1) shall be subject to the following restrictions and conditions, namely:—

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(*i*) The power of an executor to dispose of immoveable property so vested in him is subject to any restriction which may be imposed in this behalf by the will appointing him, unless probate has been granted to him and the Court which granted the probate permits him by an order in writing, notwithstanding the restriction, to dispose of any immoveable property specified in the order in a manner permitted by the order.

(*ii*) An administrator may not, without the previous permission of the Court by which the letters of administration were granted,—

(a) mortgage, charge or transfer by sale, gift, exchange or otherwise any immoveable property for the time being vested in him under section 211, or

(b) lease any such property for a term exceeding five years.

[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".

(*iii*) A disposal of property by an executor or administrator in contravention of clause (*i*) or clause (*ii*), as the case may be, is voidable at the instance of any other person interested in the property.

(3) Before any probate or letters of administration is or are granted in such a case, there shall be endorsed thereon or annexed thereto a copy of sub- section (1) and clauses (*i*) and (*iii*) of sub-section (2) or of sub- section (1) and clauses (*ii*) and (*iii*) of sub- section (2), as the case may be.

(4) A probate or letters of administration shall not be rendered invalid by reason of the endorsement or annexure required by sub- section (3) not having been made thereon or attached thereto, nor shall the absence of such an endorsement or annexure authorise an executor or administrator to act otherwise than in accordance with the provisions of this section.

308. General powers of administration. An executor or administrator may, in addition to, and not in derogation of, any other powers of expenditure lawfully exercisable by him incur expenditure—

(a) on such acts as may be necessary for the proper care or management of any property belonging to any estate administered by him, and

(b) with the sanction of the High Court, on such religious, charitable and other objects, and on such improvements, as may be reasonable and proper in the case of such property.

309. Commission or agency charges. An executor or administrator shall not be entitled to receive or retain any commission or agency charges at a higher rate than that for the time being fixed in respect of the Administrator-General by or under the Administrator-General's Act, 1913 (III of 1913).

310. Purchase by executor or administrator of deceased's property. If any executor or administrator purchases, either directly or indirectly, any part of the property of the deceased, the sale is voidable at the instance of any other person interested in the property sold.

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311. Powers of several executors or administrators exercisable by one. When there are several executors or administrators, the powers of all may, in the absence of any direction to the contrary, be exercised by any one of them who has proved the will or taken out administration.

Illustrations

(i) One of several executors has power to release a debt due to the deceased.

(ii) One has power to surrender a lease.

(iii) One has power to sell the property of the deceased whether moveable or immoveable.

(iv) One has power to assent to a legacy.

(v) One has power to endorse a promissory note payable to the deceased.

(vi) The will appoints A, B, C and D to be executors, and directs that two of them shall be a quorum. No act can be done by a single executor.

312. Survival of powers on death of one of several executors or administrators. Upon the death of one or more of several executors or administrators, in the absence of any direction to the contrary in the will or grant of letters of administration, all the powers of the office become vested in the survivors or survivor.

313. Powers of administrator of effects unadministered. The administrator of effects unadministered has, with respect to such effects, the same powers as the original executor or administrator.

314. Powers of administrator during minority. An administrator during minority has all the powers of an ordinary administrator.

315. Powers of married executrix or administratrix. When a grant of probate or letters of administration has been made to a married woman, she has all the powers of an ordinary executor or administrator.

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CHAPTER VII

OF THE DUTIES OF AN EXECUTOR OR ADMINISTRATOR

316. As to deceased's funeral. It is the duty of an executor to provide funds for the performance of the necessary funeral ceremonies of the deceased in a manner suitable to his condition, if he has left property sufficient for the purpose.

317. Inventory and account.—(1) An executor or administrator shall, within six months from the grant of probate or letters of administration, or within such further time as the Court which granted the probate or letters may appoint, exhibit in that Court an inventory containing a full and true estimate of all the property in possession, and all the credits, and also all the debts owing by any person to which the executor or administrator is entitled in that character; and shall in like manner, within one year from the grant or within such further time as the said Court may appoint, exhibit an account of the estate, showing the assets which have come to his hands and the manner in which they have been applied or disposed of.

(2) The High Court may prescribe the form in which an inventory or account under this section is to be exhibited.

(3) If an executor or administrator, on being required by the Court to exhibit an inventory or account under this section, intentionally omits to comply with the requisition, he shall be deemed to have committed an offence under section 176 of the Pakistan Penal Code (XLV of 1860).

(4) The exhibition of an intentionally false inventory or account under this section shall be deemed to be an offence under section 193 of that Code.

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318. Inventory to include property in any part of Pakistan in certain cases. In all cases where a grant has been made of probate or letters of administration intended to have effect throughout [1][Pakistan], the executor or administrator shall include in the inventory of the effects of the deceased all his moveable and immoveable property situate in [2][Pakistan], and the value of such property situate in each province shall be separately stated in such inventory, and the probate or letters of administration shall be chargeable with a fee corresponding to the entire amount or value of the property affected thereby wheresoever situate within [2][Pakistan].

319. As to property of and debts owing to, deceased. The executor or administrator shall collect, with reasonable diligence, the property of the deceased and the debts that were due to him at the time of his death.

320. Expenses to be paid before all debts. Funeral expenses to a reasonable amount, according to the degree and quality of the deceased, and death-bed charges, including fees for medical attendance, and board and lodging for one month previous to his death, shall be paid before all debts.

321. Expenses to be paid next after such expenses. The expenses of obtaining probate or letters of administration, including the costs incurred for or in respect of any judicial proceedings that may be necessary for administering the estate, shall be paid next after the funeral expenses and death-bed charges.

322. Wages for certain services to be next paid and then other debts. Wages due for services rendered to the deceased within three months next preceding his death by any labourer, artizan or domestic servant shall next be paid, and then the other debts of the deceased according to their respective priorities (if any).

323. Save as aforesaid, all debts to be paid equally and rateably. Save as aforesaid, no creditor shall have a right of priority over another ; but the executor or administrator shall pay all such debts as he knows of, including his own, equally and rateably as far as the assets of the deceased will extend.

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324. Application of moveable property to payment of debts where domicile not in Pakistan.—(1) If the domicile of the deceased was not in [1][Pakistan], the application of his moveable property to the payment of his debts is to be regulated by the law of [1][Pakistan].

(2) No creditor who has received payment of a part of his debt by virtue of sub-section (1) shall be entitled to share in the proceeds of the immoveable estate of the deceased unless he brings such payment into account for the benefit of the other creditors.

(3) This section shall not apply where the deceased was a Hindu, [3][Muslim], Buddhist, Sikh or Jaina or an exempted person.

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[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*)for "the Provinces of Pakistan" which had been subs. by A. O., 1949, for "the whole of British India".

[2] Subs. by Ordinance 21 of 1960, s. 3 and 2nd Sch. (*with effect from the 14th October, 1955)*, for "the Provinces and the Capital of the Federation" which had been subs. A. O., 1949, for "British India".

[3] Subs. by F.A.O., 1975, Art 2 and Table for "Muhammadan".

Illustration

A dies, having his domicile in a country where instruments under seal have priority over instruments not under seal leaving moveable property to the value of 5, 000 rupees, and immoveable property to the value of 10, 000 rupees, debts on instruments under seal to the amount of 10, 000 rupees, and debts on instruments not under seal to the same amount. The creditors holding instruments under seal receive half of their debts out of the proceeds of the moveable estate. The proceeds of the immoveable estate are to be applied in payment of the debts on instruments not under seal until one- half of such debts has been discharged. This will leave 5, 000 rupees which are to be distributed rateably amongst all the creditors without distinction, in proportion to the amount which may remain due to them.

325. Debts to be paid before legacies. Debts of every description must be paid before any legacy.

326. Executor or administrator not bound to pay legacies without indemnity. If the estate of the deceased is subject to any contingent liabilities, an executor or administrator is not bound to pay any legacy without a sufficient indemnity to meet the liabilities whenever they may become due.

327. Abatement of general legacies. If the assets, after payment of debts, necessary expenses and specific legacies, are not sufficient to pay all the general legacies in full, the latter shall abate or be diminished in equal proportions, and, in the absence of any direction to the contrary in the will, the executor has no right to pay one legatee in preference to another, or to retain any money on account of a legacy to himself or to any person for whom he is a trustee.

328. Non- abatement of specific legacy when assets sufficient to pay debts. Where there is a specific legacy, and the assets are sufficient for the payment of debts and necessary expenses, the thing specified must be delivered to the legatee without any abatement.

329. Right under demonstrative legacy when assets sufficient to pay debts and necessary expenses. Where there is a demonstrative legacy, and the assets are sufficient for the payment of debts and necessary expenses, the legatee has a preferential claim for payment of his legacy out of the fund from which the legacy is directed to be paid until such fund is exhausted and if, after the fund is exhausted, part of the legacy still remains unpaid, he is entitled to rank for the remainder against the general assets as for a legacy of the amount of such unpaid remainder.

330. Rateable abatement of specific legacies. If the assets are not sufficient to answer the debts and the specific legacies, an abatement shall be made from the latter rateably in proportion to their respective amounts.

Illustration

A has bequeathed to B a diamond ring valued at 500 rupees, and to C a horse, valued at 1, 000 rupees. It is found necessary to sell all the effects of the testator; and his assets, after payment of debts, are only 1, 000 rupees. Of this sum rupees 333- 5- 4 are to be paid to B, and rupees 666- 10- 8 to C.

331. Legacies treated as general for purpose of abatement. For the purpose of abatement, a legacy for life, a sum appropriated by the will to produce an annuity, and the value of an annuity when no sum has been appropriated to produce it, shall be treated as general legacies.

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CHAPTER VIII

OF ASSENT TO A LEGACY BY EXECUTOR OR ADMINISTRATOR

332. Assent necessary to complete legatee's title. The assent of the executor or administrator is necessary to complete a legatee's title to his legacy.

Illustrations

(*i*) A by his will bequeaths to B his Government paper which is in deposit with the [1][National Bank of Pakistan].The Bank has no authority to deliver the securities, nor B a right to take possession of them, without the assent of the executor.

(*ii*) A by his will has bequeathed to C his house in [2][Quetta] in the tenancy of B. C is not entitled to receive the rents without the assent of the executor or administrator.

333. Effect of executor's assent to specific legacy.—(1) The assent of the executor or administrator to a specific bequest shall be sufficient to divest his interest as executor or administrator therein, and to transfer the subject of the bequest of the legatee, unless the nature or the circumstances of the property require that it shall be transferred in a particular way.

(2) This assent may be verbal, and it may be either express or implied from the conduct of the executor or administrator.

Illustrations

(i) A horse is bequeathed. The executor requests the legatee to dispose of it, or a third party proposes to purchase the horse from the executor, and he directs him to apply to the legatee. Assent to the legacy is implied.

(*ii*) The interest of a fund is directed by the will to be applied for the maintenance of the legatee during his minority. The executor commences so to apply it. This is an assent to the whole of the bequest.

(*iii*) A bequest is made of a fund to A and after him to B. The executor pays the interest of the fund to A. This is an implied assent to the bequest to B.

(*iv*) Executors die after paying all the debts of the testator, but before satisfaction of specific legacies. Assent to the legacies may be presumed.

(*v*) A person to whom a specific article has been bequeathed takes possession of it and retains it without any objection on the part of the executor. His assent may be presumed.

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[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., for "Imperial Bank of India" (*with effect from the 14th October, 1955*).

[2]Subs. by Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II for "Dacca" which was previously amended by Ord. 21 of 1960, s. 3 and 2nd Sch., for "Calcutta" (*with effect from the 14th October, 1955*)

334. Conditional assent. The assent of an executor or administrator to a legacy may be conditional, and if the condition is one which he has a right to enforce, and it is not performed, there is no assent.

Illustrations

(*i*) A bequeaths to B his lands of Sultanpur, which at the date of the will, and at the death of A, were subject to a mortgage for 10, 000 rupees. The executor assents to the bequest, on condition that B shall within a limited time pay the amount due on the mortgage at the testator's death. The amount is not paid. There is no assent.

(*ii*) The executor assents to a bequest on condition that the legatee shall pay him a sum of money. The payment is not made. The assent is nevertheless valid.

335. Assent of executor to his own legacy.—(1) When the executor or administrator is a legatee, his assent to his own legacy is necessary to complete his title to it, in the same way as it is required when the bequest is to another person, and his assent may, in like manner, be expressed or implied.

(2) Assent shall be implied if in his manner of administering the property he does any act which is referable to his character of legatee and is not referable to his character of executor or administrator.

Illustration

An executor takes the rent of a house or the interest of Government securities bequeathed to him, and applies it to his own use. This is assent.

336. Effect of executor's assent. The assent of the executor or administrator to a legacy gives effect to it from the death of the testator.

Illustrations

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(*i*) A legatee sells his legacy before it is assented to by the executor. The executor's subsequent assent operates for the benefit of the purchaser and completes his title to the legacy.

(*ii*) A bequeaths 1, 000 rupees to B with interest from his death. The executor does not assent to his legacy until the expiration of a year from A's death. B is entitled to interest from the death of A.

337. Executor when to deliver legacies. An executor or administrator is not bound to pay or deliver any legacy until the expiration of one year from the testator's death.

Illustration

A by his will directs his legacies to be paid within six months after his death. The executor is not bound to pay them before the expiration of a year.

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CHAPTER IX

OF THE PAYMENT AND APPORTIONMENT OF ANNUITIES

338. Commencement of annuity when no time fixed by will. Where an annuity is given by a will and no time is fixed for its commencement, it shall commence from the testator's death, and the first payment shall be made at the expiration of a year next after that event.

339. When annuity, to be paid quarterly or monthly, first falls due. Where there is a direction that the annuity shall be paid quarterly or monthly, the first payment shall be due at the end of the first quarter or first month, as the case may be, after the testator' s death; and shall, if the executor or administrator thinks fit, be paid when due, but the executor or administrator shall not be bound to pay it till the end of the year.

340. Dates of successive payments when first payment directed to be made within a given time or on day certain: death of annuitant before date of payment.—(1) Where there is a direction that the first payment of an annuity shall be made within one month or any other division of time from the death of the testator, or on a day certain, the successive payments are to be made on the anniversary of the earliest day on which the will authorises the first payment to be made.

(2) If the annuitant dies in the interval between the times of payment, an apportioned share of the annuity shall be paid to his representative.

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CHAPTER X

OF THE INVESTMENT OF FUNDS TO PROVIDE FOR LEGACIES

341. Investment of sum bequeathed where legacy, not specific, given for life. Where a legacy, not being a specific legacy, is given for life, the sum bequeathed shall at the end of the year be invested in such securities as the High Court may by any general rule authorise or direct, and the proceeds thereof shall be paid to the legatee as the same shall accrue due.

342. Investment of general legacy, to be paid at future time: disposal of intermediate interest.—(1) Where a general legacy is given to be paid at a future time, the executor or administrator shall invest a sum sufficient to meet it in securities of the kind mentioned in section 341.

(2) The intermediate interest shall form part of the residue of the testator's estate.

343. Procedure when no fund charged with, or appropriated to annuity. Where an annuity is given and no fund is charged with its payment or appropriated by the will to answer it, a Government annuity of the specified amount shall be purchased, or, if no such annuity can be obtained, then a sum sufficient to produce the annuity shall be invested for that purpose in securities of the kind mentioned in section 341.

344. Transfer to residuary legatee of contingent bequest. Where a bequest is contingent, the executor or administrator is not bound to invest the amount of the legacy, but may transfer the whole residue of the estate to the residuary legatee, if any, on his giving sufficient security for the payment of the legacy if it shall become due.

345. Investment of residue bequeathed for life without direction to invest in particular securities.—(1) Where the testator has bequeathed the residue of his estate to a person for life

without any direction to invest it in any particular securities, so much thereof as is not at the time of the testator's decease invested in securities of the kind mentioned in section 341 shall be converted into money and invested in such securities.

(2) This section shall not apply if the deceased was a Hindu, [1][Muslim], Buddhist, Sikh or Jaina or an exempted person.

346. Investment of residue bequeathed for life, with direction to invest in specified securities. When the testator has bequeathed the residue of his estate to a person for life with a direction that it shall be invested in certain specified securities, so much of the estate as is not at the time of his death invested in securities of the specified kind shall be converted into money and invested in such securities.

347. Time and manner of conversion and investment. Such conversion and investment as are contemplated by sections 345 and 346 shall be made at such times and in such manner as the executor or administrator thinks fit ; and, until such conversion and investment are completed, the person who would be for the time being entitled to the income of the fund when so invested shall receive interest at the rate of 4 per cent. per annum upon the market- value (to be computed as at the date of the testator's death) of such part of the fund as has not been so invested :

Provided that the rate of interest prior to completion of investment shall be six per cent per annum when the testator was a Hindu,[1][Muslim], Buddhist, Sikh or Jaina or an exempted person.

348. Procedure where minor entitled to immediate payment or possession of bequest, and no direction to pay to person on his behalf.—(1) Where, by the terms of a bequest, the legatee is entitled to the immediate payment or possession of the money or thing bequeathed, but is a minor, and there is no direction in the will to pay it to any person on his behalf, the executor or administrator shall pay or deliver the same into the Court of the District Judge, by whom or by whose District Delegate the probate was, or letters of administration with the will annexed were, granted, to the account of the legatee, unless the legatee is a ward of the Court of Wards.

(2) If the legatee is a ward of the Court of Wards, the legacy shall be paid to the Court of Wards to his account.

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(3) Such payment into the Court of the District Judge, or to the Court of Wards, as the case may be, shall be a sufficient discharge for the money so paid.

(4) Money when paid in under this section shall be invested in the purchase of Government securities, which, with the interest thereon, shall be transferred or paid to the person entitled thereto, or otherwise applied for his benefit, as the Judge or the Court of Wards, as the case may be, may direct.

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CHAPTER XI

OF THE PRODUCE AND INTEREST OF LEGACIES

349. Legatee's title to produce of specific legacy. The legatee of a specific legacy is entitled to the clear produce thereof, if any, from the testator' s death.

[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan".

Exception.— A specific bequest, contingent in its terms, does not comprise the produce of the legacy between the death of the testator and the vesting of the legacy. The clear produce of it forms part of the residue of the testator's estate.

Illustrations

(*i*) A bequeaths his flock of sheep to B. Between the death of A and delivery by his executor the sheep are shorn or some of the ewes produce lambs. The wool and lambs are the property of B.

(*ii*) A bequeaths his Government securities to B, but postpones the delivery of them till the death of C. The interest which falls due between the death of A and the death of C belongs to B, and must, unless he is a minor, be paid to him as it is received.

(*iii*) The testator bequeaths all his four per cent. Government promissory notes to A when he shall complete the age of 18. A, if he completes that age, is entitled to receive the notes, but the interest which accrues in respect of them between the testator's death and A's completing 18, form part of the residue.

350. Residuary legatee's title to produce of residuary fund. The legatee under a general residuary bequest is entitled to the produce of the residuary fund from the testator' s death.

Exception.— A general residuary bequest contingent in its terms does not comprise the income which may accrue upon the fund bequeathed between the death of the testator and the vesting of the legacy. Such income goes as undisposed of.

Illustrations

(*i*) The testator bequeaths the residue of his property to A, a minor, to be paid to him when he shall complete the age of 18. The income from the testator's death belongs to A.

(*ii*) The testator bequeaths the residue of his property to A when he shall complete the age of 18. A, if he completes that age, is entitled to receive the residue. The income which has accrued in respect of it since the testator's death goes as undisposed of.

351. Interest when no time fixed for payment of general legacy. Where no time has been fixed for the payment of a general legacy, interest beings to run from expiration of one year from the testator's death.

Exception.—(1) Where the legacy is bequeathed in satisfaction of a debt, interest runs from the death of the testator.

(2) Where the testator was a parent or a more remote ancestor of the legatee, or has put himself in the place of a parent of the legatee, the legacy shall bear interest from the death of the testator.

(3) Where a sum is bequeathed to a minor with a direction to pay for his maintenance out of it, interest is payable from the death of the testator.

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352. Interest when time fixed. Where a time has been fixed for the payment of a general legacy, interest begins to run from the time so fixed. The interest up to such time forms part of the residue of the testator's estate.

Exception.— Where the testator was a parent or a more remote ancestor of the legatee, or has put himself in the place of a parent of the legatee and the legatee is a minor, the legacy shall bear interest from the death of the testator, unless a specific sum is given by the will for maintenance, or unless the will contains a direction to the contrary.

353. Rate of interest. The rate of interest shall be four per cent. per annum in all cases except when the testator was a Hindu, [1][Muslim], Buddhist, Sikh or Jaina or an exempted person, in which case it shall be six per cent per annum.

354. No interest on arrears of annuity within first year after testator's death. No interest is payable on the arrears of an annuity within the first year from the death of the testator, although a period earlier than the expiration of that year may have been fixed by the will for making the first payment of the annuity.

355. Interest on sum to be invested to produce annuity. Where a sum of money is directed to be invested to produce an annuity, interest is payable on it from the death of the testator.

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CHAPTER XII

OF THE REFUNDING OF LEGACIES

356. Refund of legacy paid under Court's orders. When an executor or administrator has paid a legacy under the order of a Court, he is entitled to call upon the legatee to refund in the event of the assets proving insufficient to pay all the legacies.

357. No refund if paid voluntarily. When an executor or administrator has voluntarily paid a legacy, he cannot call upon a legatee to refund in the event of the assets proving insufficient to pay all the legacies.

358. Refund when legacy has become due on performance of condition within further time allowed under section 137. When the time prescribed by the will for the performance of a condition has elapsed, without the condition having been performed, and the executor or administrator has thereupon, without fraud, distributed the assets ; in such case, if further time has been allowed under section 137 for the performance of the condition, and the condition has been performed accordingly, the legacy cannot be claimed from the executor or administrator, but those to whom he has paid it are liable to refund the amount.

359. When each legatee compellable to refund in proportion. When the executor or administrator has paid away the assets in legacies, and he is afterwards obliged to discharge a debt of which he had no previous notice, he is entitled to call upon each legatee to refund in proportion.

360. Distribution of assets. Where an executor or administrator has given such notices as the High Court may, by any general rule, prescribe or, if no such rule has been made, as the High Court would give in an administration-suit, for creditors and others to send in to him their claims against the estate of the deceased, he shall, at the expiration of the time therein named for sending in claims, be at liberty to distribute the assets, or any part thereof, in discharge of such lawful claims as he knows of, and shall not be liable for the assets so distributed to any person of whose claim he shall not have had notice at the time of such distribution:

[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Muhammadan"

Provided that nothing herein contained shall prejudice the right of any creditor or claimant to follow the assets, or any part thereof, in the hands of the persons who may have received the same respectively.

361. Creditor may call upon legatee to refund. A creditor who has not received payment of his debt may call upon a legatee who has received payment of his legacy to refund, whether the assets of the testator's estate were or were not sufficient at the time of his death to pay both debts and legacies ; and whether the payment of the legacy by the executor or administrator was voluntary or not.

362. When legatee, not satisfied or compelled to refund under section 361, cannot oblige one paid in full to refund. If the assets were sufficient to satisfy all the legacies at the time of the testator's death, a legatee who has not received payment of his legacy, or who has been compelled to refund under section 361, cannot oblige one who has received payment in full to refund, whether the legacy were paid to him with or without suit, although the assets have subsequently become deficient by the wasting of the executor.

363. When unsatisfied legatee must first proceed against executor, if solvent. If the assets were not sufficient to satisfy all the legacies at the time of the testator's death, a legatee who has not received payment of his legacy must, before he can call on a satisfied legatee to refund, first proceed against the executor or administrator if he is solvent; but if the executor or administrator is insolvent or not liable to pay, the unsatisfied legatee can oblige each satisfied legatee to refund in proportion.

364. Limit to refunding of one legatee to another. The refunding of one legatee to another shall not exceed the sum by which the satisfied legacy ought to have been reduced if the estate had been properly administered.

Illustration

A has bequeathed 240 rupees to B, 480 rupees to C, and 720 rupees to D. The assets are only 1, 200 rupees and, if properly administered, would give 200 rupees to B, 400 rupees to C and 600 rupees to D. C and D have been paid their legacies in full, leaving nothing to B. B can oblige C to refund 80 rupees, and D to refund 120 rupees.

365. Refunding to be without interest. The refunding shall in all cases be without interest.

366. Residue after usual payments to be paid to residuary legatee. The surplus or residue of the deceased's property, after payment of debts and legacies, shall be paid to the residuary legatee when any has been appointed by the will.

367. Transfer of assets from Pakistan, to executor or administrator in country of domicile for distribution. Where a person not having his domicile in [1][Pakistan] has died leaving assets both in [1][Pakistan] and in the country in which he had his domicile at the time of his death, and there has been a grant of probate or letters of administration in [1][Pakistan] with respect to the assets there and a grant of administration in the country of domicile with respect to the assets in that country, the executor or administrator, as the case may be, in [1][Pakistan], after having given such notices as are mentioned in section 360, and after having discharged, at the expiration of the time therein named, such lawful claims as he knows of, may, instead of himself distributing any surplus or residue of the deceased' s property to persons residing out of [1][Pakistan] who are entitled thereto, transfer, with the consent of the executor or administrator, as the case may be, in the country of domicile, the surplus or residue to him for distribution to those persons.

[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October*), for "the Provinces and the Capital of the Federation" which had been subs. by A.O., 1949, for "British India".

CHAPTER XIII

OF THE LIABILITY OF AN EXECUTOR OR ADMINISTRATOR FOR DEVASTATION

368. Liability of executor or administrator for devastation. When an executor or administrator misapplies the estate of the deceased, or subjects it to loss or damage, he is liable to make good the loss or damage so occasioned.

Illustrations

(*i*) The executor pays out of the estate an unfounded claim. He is liable to make good the loss.

(*ii*) The deceased had a valuable lease renewable by notice which the executor neglects to give at the proper time. The executor is liable to make good the loss.

(*iii*) The deceased had a lease of less value than the rent payable for it, but terminable on notice at a particular time. The executor neglects to give the notice. He is liable to make good the loss.

369. Liability of executor or administrator for neglect to get any part of property. When an executor or administrator occasions a loss to the estate by neglecting to get in any part of the property of the deceased, he is liable to make good the amount.

Illustrations

(*i*) The executor absolutely releases a debt due to the deceased from a solvent person, or compounds with a debtor who is able to pay in full. The executor is liable to make good the amount.

(*ii*) The executor neglects to sue for a debt till the debtor is able to plead that the claim is barred by limitation and the debt is thereby lost to the estate. The executor is liable to make good the amount.

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PART X

Succession Certificates

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370. Restriction on grant of certificates under this Part.—(1) A succession certificate (hereinafter in this Part referred to as a certificate) shall not be granted under this Part with respect to any debt or security to which a right is required by section 212 or section 213 to be established by letters of administration or probate:

Provided that nothing contained in this section shall be deemed to prevent the grant of a certificate to any person claiming to be entitled to the effects of a deceased [1][Pakistan Christian], or to any part thereof, with respect to any debt or security, by reason that a right thereto can be established by letters of administration under this Act.

(2) For the purposes of this Part, "security" means—

(*a*) any promissory note, debenture, stock or other security of the [2][Federal Government] or of a [3][Provincial Government];

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[1] Subs. by A. O., 1949, for "Indian Christian".

[*]Section 212 and 2013 do not apply to muslims.,

[2] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which was previously amended by A. O., 1937, for "G. of I.".

[3]Subs. *ibid.,* for "L.G.".

(*b*) any bond, debenture, or annuity charged by Act of Parliament [1][of the United Kingdom] on the revenues of India;

(*c*) any stock or debenture of, or share in, a company or other incorporated institution;

(*d*) any debenture or other security for money issued by, or on behalf of, a local authority;

(*e*) any other security which the [2][Provincial Government] may, by notification in the [3][official Gazette], declare to be a security for the purposes of this Part.

371. Court having jurisdiction to grant certificate. The District Judge within whose jurisdiction the deceased ordinarily resided at the time of his death, or, if at that time the had no fixed place of residence, the District Judge, within whose jurisdiction any part of the property of the deceased may be found, may grant a certificate under this Part.

372. Application for certificate.—(1) Application for such a certificate shall be made to the District Judge by a petition signed and verified by or on behalf of the applicant in the manner prescribed by the Code of Civil Procedure, 1908 (V of 1908), for the signing and verification of a plaint by or on behalf of a plaintiff, and setting forth the following particulars, namely:—

(*a*) the time of the death of the deceased ;

(*b*) the ordinary residence of the deceased at the time of his death and, if such residence was not within the local limits of the jurisdiction of the Judge to whom the application is made, then the property of the deceased within those limits ;

(*c*) the family or other near relatives of the deceased and their respective residences ;

(*d*) the right in which the petitioner claims ;

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(*e*) the absence of any impediment under section 370 or under any other provision of this Act or any other enactment, to the grant of the certificate or to the validity thereof if it were granted; and

(*f*) the debts and securities in respect of which the certificate is applied for.

(2) If the petition contains any averment which the person verifying it knows or believes to be false, or does not believe to be true, that person shall be deemed to have committed an offence under section 198 of the Pakistan Penal Code (XLV of 1860).

[4][(3) Application for such a certificate may be made in respect of any debt or debts due to the deceased creditor or in respect of portions thereof.]

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[1]Ins. by A.O., 1961, Art. 2 and Sch. (*with effect from the 23rd March, 1956*).
[2]Subs. by A.O., 1937 for "G. G. in C.".
[3]Subs. *ibid*., for "Gazette of India".
[4]Sub-section (3) ins. by the Indian Succession (Amdt.) Act, 1928 (14 of 1928), s. 2.

373. Procedure on application.— (1) If the District Judge is satisfied that there is ground for entertaining the application, he shall fix a day for the hearing thereof and cause notice of the application and of the day fixed for the hearing—

(*a*) to be served on any person to whom, in the opinion of the Judge, special notice of the application should be given, and

(*b*) to be posted on some conspicuous part of the court- house and published in such other manner, if any, as the Judge, subject to any rules made by the High Court in this behalf, thinks fit,

and upon the day fixed, or as soon thereafter as may be practicable, shall proceed to decide in a summary manner the right to the certificate.

(2) When the Judge decides the right thereto to belong to the applicant, the Judge shall make an order for the grant of the certificate to him.

(3) If the Judge cannot decide the right to the certificate without determining questions of law or fact which seem to be too intricate and difficult for determination in a summary proceeding, he may nevertheless grant a certificate to the applicant if he appears to be the person having *prima facie* the best title thereto.

(4) When there are more applicants than one for a certificate, and it appears to the Judge that more than one of such applicants are interested in the estate of the deceased, the Judge may, in deciding to whom the certificate is to be granted, have regard to the extent of interest and the fitness in other respects of the applicants.

374. Contents of certificate. When the District Judge grants a certificate, he shall therein specify the debts and securities set forth in the application for the certificate, and may thereby empower the person to whom the certificate is granted—

(*a*) to receive interest or dividends on, or

(*b*) to negotiate or transfer, or

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(*c*) both to receive interest or dividends on, and to negotiate or transfer, the securities or any of them.

375. Requisition of security from grantee of certificate.—(1) The District Judge shall in any case in which he proposes to proceed under sub- section (3) or sub-section (4) of section 373, and may, in any other case, require, as a condition precedent to the granting of a certificate, that the person to whom he proposes to make the grant shall give to the Judge a bond with one or more surety or sureties, or other sufficient security, for rendering an account of debts and securities received by him and for indemnity of persons who may be entitled to the whole or any part of those debts and securities.

(2) The Judge may, on application made by petition and on cause shown to his satisfaction and upon such terms as to security or providing that the money received be paid into Court, or otherwise, as he thinks fit, assign the bond or other security to some proper person, and that person shall thereupon be entitled to sue thereon in his own name as if it had been originally given to him

instead of to the Judge of the Court, and to recover, as trustee for all persons interested, such amount as may be recoverable thereunder.

376. Extension of certificate.—(1) A District Judge may, on the application of the holder of a certificate under this Part, extend the certificate to any debt or security not originally specified therein, and every such extension shall have the same effect as if the debt or security to which the certificate is extended had been originally specified therein.

(2) Upon the extension of a certificate, powers with respect to the receiving of interest or dividends on, or the negotiation or transfer of, any security to which the certificate has been extended may be conferred, and a bond or further bond or other security for the purposes mentioned in section 375 may be required, in the same manner as upon the original grant of a certificate.

377. Forms of certificate and extended certificate. Certificates shall be granted and extensions of certificates shall be made, as nearly as circumstances admit, in the forms set forth in Schedule VIII.

378. Amendment of certificate in respect of powers as to securities. Where a District Judge has not conferred on the holder of a certificate any power with respect to a security specified in the certificate, or has only empowered him to receive interest or dividends on, or to negotiate or transfer, the security, the Judge may, on application made by petition and on cause shown to his satisfaction, amend the certificate by conferring any of the powers mentioned in section 374 or by substituting any one for any other of those powers.

379. Mode of collecting Court-fees on certificates.—(1) Every application for a certificate or for the extension of a certificate shall be accompanied by a deposit of a sum equal to the fee payable under the Court-fees Act, 1870, (VII of 1970), in respect of the certificate or extension applied for.

(2) If the application is allowed, the sum deposited by the applicant shall be expended, under the direction of the Judge, in the purchase of the stamp to be used for denoting the fee payable as aforesaid.

(3) Any sum received under sub-section (1) and not expended under sub-section (2) shall be refunded to the person who deposited it.

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380. Local extent of certificate. A certificate under this Part shall have effect throughout [1][Pakistan].

[2][* * * * * * *]

[3][[4][It] shall also apply in [5][Pakistan] after the separation of Pakistan from India to certificates granted before the date of the separation, or on or after that date in proceedings pending at that date in any of the territories which on that date were compromised in India.]

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[1] Subs., by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces of Pakistan" which had been subs. by A.O., 1949, for "the whole of British India".

[2] Omitted by the Federal Laws (Revision and Declaration) Ordinance 1981 (27 of 1981), s.3, Sch. II. This paragraph was previously amended by various enactments.

[3] Added by A.O., 1949.

[4] Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch. for "The said proviso".

[5] Subs. by Ordinance 21 of 1960, s. 3 and 2nd Sch. for "the Provinces of Pakistan" (*with effect from the 14th October, 1955*).

381. Effect of certificate. Subject to the provisions of this Part, the certificate of the District Judge shall, with respect to the debts and securities specified therein, be conclusive as against the persons owing such debts or liable on such securities, and shall, notwithstanding any contravention of section 370, or other defect, afford full indemnity to all such persons as regards all payments made, or dealings had, in good faith in respect of such debts or securities to or with the person to whom the certificate was granted.

382. Effect of certificate granted or extended by Pakistan representative in Foreign State. Where a certificate in the form, as nearly as circumstances admit, of Schedule VIII has been granted [1][* * *], to a resident within a Foreign State by the [2][Pakistan] representative accredited to that State, or where a certificate so granted has been extended in such form by [3][such [4][* *] representative], the certificate shall, when stamped in accordance with the provisions of the Court-fees Act, 1870 (VII of 1870), with respect to certificates under this Part, have the same effect in [5][Pakistan] as a certificate granted or extended under this Part.

383. Revocation of certificate. A certificate granted under this Part may be revoked for any of the following causes, namely:—

(*a*) that the proceedings to obtain the certificate were defective in substance;

(*b*) that the certificate was obtained fraudulently by the making of a false suggestion, or by the concealment from the Court of something material to the case;

(*c*) that the certificate was obtained by means of an untrue allegation of a fact essential in point of law to justify the grant thereof, though such allegation was made in ignorance or inadvertently;

(*d*) that the certificate has become useless and inoperative through circumstances;

(*e*) that a decree or order made by a competent Court in a suit or other proceeding with respect to effects comprising debts or securities specified in the certificate renders it proper that the certificate should be revoked.

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384. Appeal.—(1) Subject to the other provisions of this Part, an appeal shall lie to the High Court from an order of a District Judge granting, refusing or revoking a certificate under this Part, and the High Court may, if it thinks fit, by its order on the appeal, declare the person to whom the certificate should be granted and direct the District Judge, on application being made therefor, to grant it accordingly, in supersession of the certificate, if any, already granted.

(2) An appeal under sub-section (1) must be preferred within the time allowed for an appeal under the Code of Civil Procedure, 1908 (V of 1908).

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[1]Certain words omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II, which was previously ins. by A.O., 1949.
[2]Subs. *ibid.*, for "British".
[3]Subs. *ibid.*, for "such representative".
[4]The words "Judge or" omitted by Ord. 27 of 1981. s. 3 and Sch., II.
[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, for "British India".

(3) Subject to the provisions of sub-section (1) and to the provisions as to reference to and revision by the High Court and as to review of judgment of the Code of Civil Procedure, (V of 1908), 1908 ,as applied by section 141 of that Code, an order of a District Judge under this Part shall be final.

385. Effect on certificate of previous certificate, probate or letters of administration. Save as provided by this Act, a certificate granted thereunder in respect of any of the effects of a deceased person shall be invalid if there has been a previous grant of such a certificate or of probate or letters of administration in respect of the estate of the deceased person and if such previous grant is in force.

386. Validation of certain payments made in good faith to holder of invalid certificate. Where a certificate under this Part has been super-seded or is invalid by reason of the certificate having been revoked under section 383, or by reason of the grant of a certificate to a person named in an appellate order under section 384, or by reason of a certificate having been previously granted, or for any other cause, all payments made, or dealings had, as regards debts and securities specified in the superseded or invalid certificate to or with the holder of that certificate in ignorance of its supersession or invalidity, shall be held good against claims under any other certificate.

387. Effect of decisions under this Act, and liability of holder of certificate thereunder. No decision under this Part upon any question of right between any parties shall be held to bar the trial of the same question in any suit or in any other proceeding between the same parties, and nothing in this Part shall be construed to affect the liability of any person who may receive the whole or any part of any debt or security, or any interest or dividend on any security to account therefor to the person lawfully entitled thereto.

388. Investiture of inferior Courts with jurisdiction of District Court for purposes of this Act.—(1) The [1][Provincial Government] may, by notification in the [2][official Gazette], invest any Court inferior in grade to a District Judge with power to exercise the functions of a District Judge under this Part.

(2) Any inferior Court so invested shall, within the local limits of its jurisdiction, have concurrent jurisdiction with the District Judge in the exercise of all the powers conferred by this Part upon the District Judge, and the provisions of this Part relating to the District Judge shall apply to such an inferior Court as if it were a District Judge:

Provided that an appeal from any such order of an inferior Court as is mentioned in sub-section (1) of section 384 shall lie to the District Judge, and not to the High Court, and that the District Judge may, if he thinks fit, by his order on the appeal, make any such declaration and direction as that sub- section authorises the High Court to make by its order on an appeal from an order of a District Judge.

(3) An order of a District Judge on an appeal from an order of an inferior Court under the last foregoing sub- section shall, subject to the provisions as to reference to and revision by the High Court and as to review of judgment of the Code of Civil Procedure, 1908, (V of 1908) , as applied by section 141 of that Code, be final.

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[1] Subs. by A.O., 1937, for "L.G.".
[2] Subs. *ibid*., for "local official Gazette"

(4) The District Judge may withdraw any proceedings under this Part from an inferior Court, and may either himself dispose of them or transfer them to another such court established within the local limits of the jurisdiction of the District Judge and having authority to dispose of the proceedings.

(5) A notification under sub-section (1) may specify any inferior Court specially or any class of such Courts in any local area.

(6) Any Civil Court which for any of the purposes of any enactment is subordinate to, or subject to the control of, a District Judge shall, for the purposes of this section, be deemed to be a Court inferior in grade to a District Judge.

389. Surrender of superseded and invalid certificates.—(1) When a certificate under this Part has been superseded or is invalid from any of the causes mentioned in section 386, the holder thereof shall, on the requisition of the Court which granted it, deliver it up to that Court.

(2) If he wilfully and without reasonable cause omits so to deliver it up, he shall be punishable with fine which may extend to one thousand rupees, or with imprisonment for a term which may extend to three months or with both.

390. Provisions with respect to certificates under Bombay Regulation VIII of 1827. Notwithstanding anything in [1][Sind Regulation No. VIII of 1827], the provisions of section 370, sub-section (2), section 372, sub- section (1), clause (f), and sections 374, 375, 376, 377, 378, 379, 381, 383, 384, 387, 388 and 389 with respect to certificates under this Part and applications therefor, and of section 317 with respect to the exhibition of inventories and accounts by executors and administrators, shall, so far as they can be made applicable, apply, respectively, to certificates granted under that Regulation and applications made for certificates thereunder, after the 1st day of May, 1889 , and to the exhibition of inventories and accounts by the holders of such certificates so granted.

PART XI

Miscellaneous

391. Saving. Nothing in Part VIII, Part IX or Part X shall—

(i) validate any testamentary disposition which would otherwise have been invalid ;

(ii) invalidate any such disposition which would otherwise have been valid ;

(iii) deprive any person of any right of maintenance to which he would otherwise have been entitled ; or

(iv) affect the Administrator General's Act, 1913 (III of 1913).

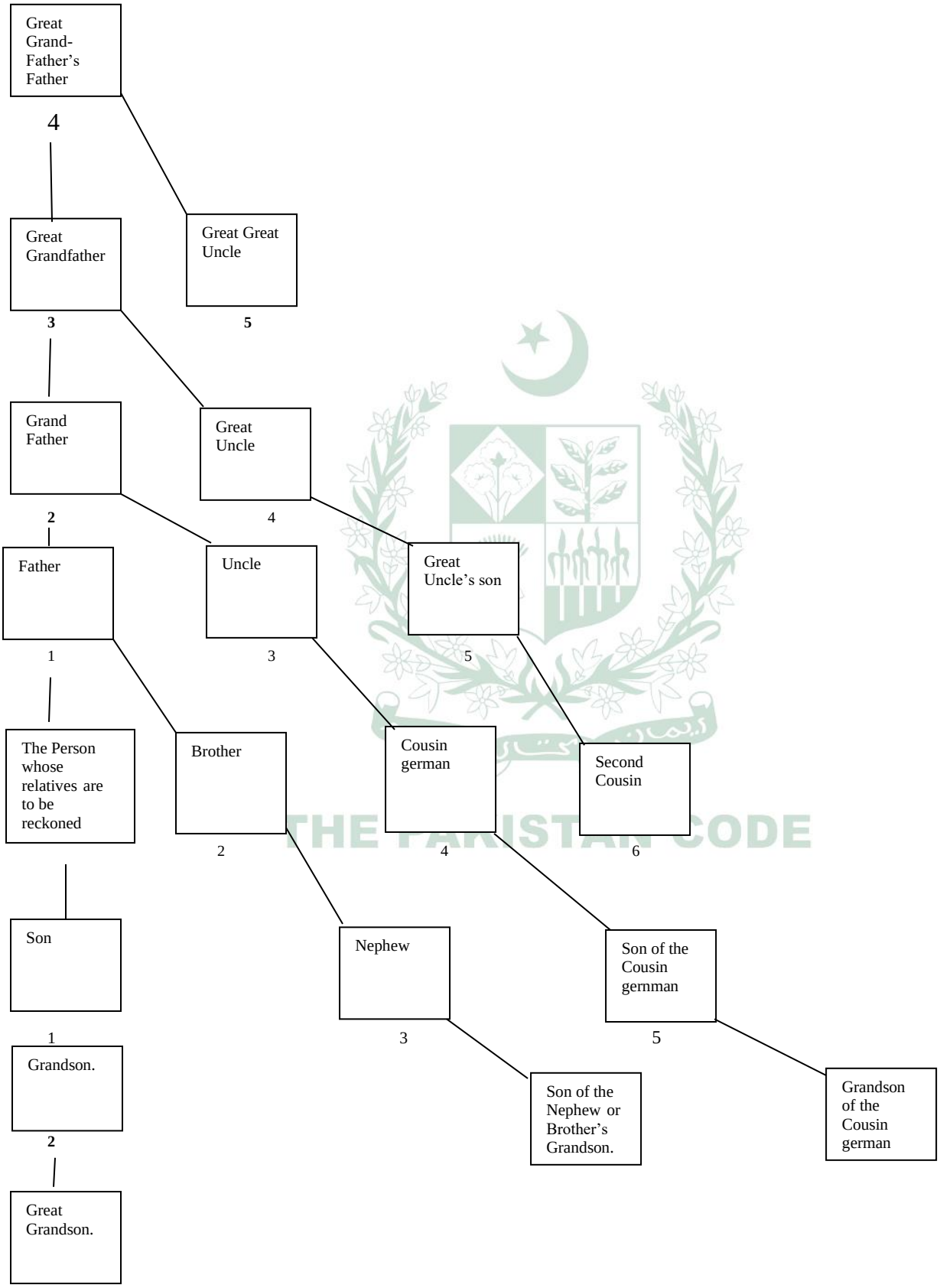
392. [*Repeals.*] *Rep. by the Repealing Act, 1927* (*XII of 1927), s. 2 and Sch.*

[1] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Sch., II, for "Bombay Regulation No. VIII of 1827".

SCHEDULE I

(*See section 28*)

TABLE OF CONSANGUINITY



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[1][SCHEDULE II

PART I

(See section 54)

(1) Father and mother.

(2) Brothers and sisters (other than uterine brothers and sisters) and lineal descendants of such of them as have predeceased the intestate.

(3) Paternal grandfather and paternal grandmother.

(4) Children of the paternal grandfather and the lineal descendants of such of them as have predeceased the intestate.

(5) Paternal grandfather's father and mother.

(6) Paternal grandfather's father's children and the lineal descendants of such of them as have predeceased the intestate.

———

PART II

(**See section 55**)

(1) Father and mother.

(2) Brothers and sisters (other than uterine brothers and sisters) and lineal descendants of such of them as shall have predeceased the intestate.

(3) Paternal grandfather and paternal grandmother.

(4) Children of the paternal grandfather and the lineal descendants of such of them as have predeceased the intestate.

(5) Paternal grandfather's father and mother.

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(6) Paternal grandfather's father's children and the lineal descendants of such of them as have predeceased the intestate.

(7) Uterine brothers and sisters and the lineal descendants of such of them as have predeceased the intestate.

(8) Maternal grandfather and maternal grandmother.

(9) Children of the maternal grandfather and the lineal descendants of such of them as have predeceased the intestate.

(10) Widows of brothers or half-brothers.

(11) Paternal grandfather's son's widow.

(12) Maternal grandfather's son's widow.

[1] Subs. by the Indian Succession (Amdt.) Act, 1939 (17 of 1939), s. 3, for the original Schedule II.

(13) Widowers of deceased lineal descendants of the intestate who have not married again before the death of the intestate.

(14) Maternal grandfather's father and mother.

(15) Children of the maternal grandfather's father and lineal descendants of such of them as have predeceased the intestate.

(16) Children of the paternal grandmother and the lineal descendants of such of them as have predeceased the intestate.

(17) Paternal grandmother's father and mother.

(18) Children of the paternal grandmother's father and the lineal descendants of such of them as have predeceased the intestate.]

SCHEDULE III

(See section 57)

PROVISIONS OF PART VI APPLICABLE TO CERTAIN WILLS AND CODICILS DESCRIBED IN SECTION 57.

Sections 59, 61, 62, 63, 64, 68, 70, 71, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, 95, 96, 98, 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, [1][117,] 119, 120, 121, 122, 123, 124, 125, 126, 127, 128, 129, 130, 131, 132, 133, 134, 135, 136, 137, 138, 139, 140, 141, 142, 143, 144, 145, 146, 147, 148, 149, 150, 151, 152, 153, 154, 155, 156, 157, 158, 159, 160, 161, 162, 163, 164, 165, 166, 167, 168, 169, 170, 171, 172, 173, 174, 175, 176, 177, 178, 179, 180, 181, 182, 183, 184, 185, 186, 187, 188, 189, and 190.

Restrictions and modifications in application of *foregoing sections.*

1. Nothing therein contained shall authorise a testator to bequeath property which he could not have alienated *inter vivos*, or to deprive any persons of any right of maintenance of which, but for the application of these sections, he could not deprive them by will.

2. Nothing therein contained shall authorise any Hindu, Buddhist, Sikh or Jaina, to create in property any interest which he could not have created before the first day of September, 1870.

3. Nothing therein contained shall affect any law of adoption or intestate succession.

4. In applying section 70 the words "than by marriage or" shall be omitted.

5. In applying any of the following sections, namely, sections seventy-five, seventy-six, one hundred and five, one hundred and nine, one hundred and eleven, one hundred and twelve, one hundred and thirteen, one hundred and fourteen, one hundred and fifteen, and one hundred and sixteen to such wills and codicils the words "son," "sons," "child," and "children" shall be deemed to include an adopted child; and the word "grand-children" shall be deemed to include the children, whether adopted or natural-born, of a child whether adopted or natural born ; and the expression "daughter-in-law" shall be deemed to include the wife of an adopted son.

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[1] Ins. by Transfer of Property (Amdt.) Supplementary Act, 1929 (21 of 1929), s. 14.

SCHEDULE IV

[See section 274 (2)]

FORM OF CERTIFICATE

I, A. B., Registrar (*or* as the case may be) of the High Court of Judicature at (*or* as the case may be) hereby certify that on the day of the High Court of Judicature at (*or* as the case may be) granted probate of the will (*or* letters of administration of the estate) of C. D., late of , deceased, to E. F. of and G. H. of , and that such probate (*or* letters) has (*or* have) effect over all the property of the deceased throughout [1][Pakistan].

———

SCHEDULE V

[See section 284 (4)]

FORM OF CAVEAT

Let nothing be done in the matter of the estate of A. B., late of , deceased, who died on the day of at without notice to C. D. of .

———

SCHEDULE VI

(*See* section 289)

FORM OF PROBATE

I, , Judge of the District of [*or* Delegate appointed for granting probate or letters of administration in (*here insert the limits of the Delegate's jurisdiction*)], hereby make known that on the day of in the year , the last will of , late of, a copy whereof is hereunto annexed, was proved and registered before me, and that administration of the property and credits of the said deceased, and in any way concerning his will was granted to the executor in the said will named, he having undertaken to administer the same, and to make a full and true inventory of the said property and credits and exhibit the same in this Court within six months from the date of this grant or within such further time as the Court may, from time to time, appoint, and also to render to this Court a true account of the said property and credits within one year from the same date, or within such further time as the Court may, from time to time, appoint.

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SCHEDULE VII

(See section 290)

FORM OF LETTERS OF ADMINISTRATION

I, , Judge *of* the District of [*or* Delegate appointed for granting probate or letters of administration in (*here insert the limits of the Delegate's jurisdiction*), hereby make known that on the day of letters of administration (with or without the will annexed, as the case may be), of the property and credits of late of , deceased, were granted to , the father (or as the case may be) of the deceased, he having undertaken to administer the same and to make a full and true inventory of the said property and credits and exhibit the same in this Court within six months from the date of this grant or within such further time as the Court may, from time to time, appoint, and also to render to this Court a true account of the said property and credits within one year from the same date, or within such further time as the Court may, from time to time, appoint.

[1] Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955*) for "the Provinces of Pakistan "which had been subs. by A. O., 1949, for "the whole of British India".

SCHEDULE VIII

(*See* section 377**)**

FORMS OF CERTIFICATE AND EXTENDED CERTIFICATE

In the Court of

To A.B.

Whereas you applied on the day of for a certificate under Part X of the Succession Act, 1925 in respect of the following debts and securities, namely:—

Debts

Serial No.	[1]Number of debtor.	Amount of debt, including interest, on date of application for certificate.	Description and date of instrument, if any, by which the debt is secured.

Securities

	DESCRIPTION			
Serial No.	Distinguishing number or letter of security.	Name, title or class of security.	Amount or par value of security.	Market-value of security on date of application for certificate.

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This certificate is accordingly granted to you and empowers you to collect those debts [*and*] [*to receive*] [*interest*] [*dividends*] [*on*] [*to negotiate*] [*to transfer*] [*those securities*].

Dated this day of *District Judge.*

[1] Sic. Should be "Name".

In the Court of

On the application of *A.B.* made to me on the day of ,I hereby extend this certificate to the following debts and securities, namely:—

Debts

Serial No.	Number of debtor.	Amount of debt, including interest, on date of application for extension.	Description and date of instrument, if any, by which the debt is secured.

Securities

	DESCRIPTION			
Serial No.	Distinguishing number or letter of security.	Name, title or class of security.	Amount or par value of security.	Market-value of security on date of application for extension.

This extension empowers *A.B.* to collect those debts [*and*] [*to receive*] [*interest*] [*dividends*] [*on*] [*to negotiate*] [*to transfer*] [*those securities*].

Dated this day of

District Judge.

———

SCHEDULE IX.

[*ENACTMENTS REPEALED*.]

Rep. by the Repealing Act,1927 (*XII of 1927*), *s. 2 and Sch.*

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Date: 11-11-2024

THE SUITS VALUATION ACT, 1887

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THE SUITS VALUATION ACT, 1887

[1, 2 and 3]ACT No. VII OF 1887

[*11th February*, 1887]

An Act to prescribe the mode of valuing certain suits for the purpose of determining the jurisdiction of Courts with respect thereto

WHEREAS it is expedient to prescribe the mode of valuing certain suits for the purpose of determining the jurisdiction of Courts with respect thereto; It is hereby enacted as follows:—

1. Title. This Act may be called the Suits Valuation Act, 1887.

PART I
SUITS RELATING TO LAND

2. Extent and commencement of Part I. This part shall extend to such local areas, and come into force therein on such dates, as the [4][Provincial Government], by notification in the [4][official Gazette], [5]directs.

3. Power for Provincial Government to make rules determining value of land for jurisdictional purposes.—(1) The [4][Provincial Government] may [4][* * *] make rules for determining the value of land for purposes of jurisdiction in the suits mentioned in the Court- fees Act, 1870, (VII of 1870) section 7, paragraphs v and vi, and paragraph x, clause (d).

(2) The rules may determine the value of any class of land, or of any interest in land, in the whole or any part of a local area and may prescribe different values for different places within the same local area.

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[1]This Act has been declared to be in force in Baluchistan by the British Baluchistan Laws Regulations No. II of 1913. It has also been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Orders, 1950 (G. G. O. 3 of 1950) ; and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.

[2]The Act has been amended in the Punjab by the Suits Valuation (Punjab Amdt.) Act No. I of 1938 and the Suits Valuation (Punjab Amdt.) Act No. 13 of 1942.

[3]The Act as in force in the North-West Frontier Province immediately before the commencement of N.W.F.P. Regulation No. II of 1974, has been applied to the Provincially Administered Tribal Areas of Chitral, Dir Kalam, Swat and Malakand Protected Area, by N.W.F.P. Regulation No. II of 1974, Art. 3.

[4]Subs. and repealed by A. O., 1937.

[5]Part I of the Act has, under s. 2, been declared to extend to the Punjab, and to come into force therein on the 1st day of March, 1889, see Gazette of India, 1889, Pt. I, p. 107.

[1]**4. Valuation of relief in certain suits relating to land not to exceed the value of the land.** Where a suit mentioned in the Court-fees Act, 1870, (VII of 1870) section 7, paragraph iv, or Schedule II, article 17, relates to land or an interest in land of which the value has been determined by rules under the last foregoing section, the amount at which for purposes of jurisdiction the relief sought in the suit is valued shall not exceed the value of the land or interest as determined by those rules.

5. Making and enforcement of rules.—(1) The [2][Provincial Government] shall, before making rules under section 3, consult the High Court with respect thereto.

(2) A rule under that section shall not take effect till the expiration of one month after the rule has been published in the [2][official Gazette].

6. [3][Omitted]

PART II
OTHER SUITS

7. Extent and commencement of Part II. This Part extends to [4][the whole of Pakistan], and shall come into force on the first day of July, 1887.

8. Court-fee value and jurisdictional value to be the same in certain suits. Where in suits other than those referred to in the Court-fees Act, 1870, (VII of 1870) section 7, paragraphs, v, vi and ix, and paragraph x, clause *(d)*, court-fees are payable *ad valorem* under the Court-fees Act, 1870, the value as determinable for the computation of court-fees and the value for purposes of jurisdiction shall be the same.

9. Determination of value of certain suits by High Court. When the subject-matter of suits of any class, other than suits mentioned in the Court-fees Act, 1870, (VII of 1870) section 7, paragraphs v and vi, and paragraph x, clause (d), is such that in the opinion of the High Court it does not admit of being satisfactorily valued, the High Court may, with the previous sanction of the [2][Provincial Government], direct that suits of that class shall, of for the purposes of the Court-fees Act, 1870, (VII of 1870) and of this Act and any other enactment for the time being in force, be treated as if their subject-matter were of such value as the High Court thinks fit to specify in this behalf.

10. [5][Repealed]

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[1]This section has been amended in its application to the Punjab by the Punjab Act No. I of 1938, s. 2.
[2]Subs. by A.O., 1937.
[3]Omitted by A.O. 1949, schedule.
[4]Subs. by Central Law (Statute Reform) Ordinance No. XXI of 1960, s. 3 and 2nd Sch. (with effect from the 14th October, 1955).
[5]Repealed by the Amending Act No. XII of 1891, S. 2 and Sch. I.

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PART III
SUPPLEMENTAL PROVISIONS

[1]**11. Procedure where objection is taken on appeal or revision that a suit or appeal was not properly valued for jurisdictional purposes**.—(1) Notwithstanding anything in section [2][99 of the Code of Civil Procedure, 1908 (Act V of 1908)], an objection that by reason of the overvaluation or under-valuation of a suit or appeal a Court of first instance or lower appellate Court which had not jurisdiction with respect to the suit or appeal exercised jurisdiction with respect thereto shall not be entertained by an appellate Court unless—

(a) the objection was taken in the Court of first instance at or before the hearing at which issues were first framed and recorded, or in the lower appellate Court in the memorandum of appeal to that Court, or

(b) the appellate Court is satisfied, for reasons to be recorded by it in writing, that the suit or appeal was over-valued or under-valued, and that the over-valuation or under-valuation thereof has prejudicially affected the disposal of the suit or appeal on its merits.

(2) If the objection was taken in the manner mentioned in clause *(a)* of sub-section (1), but the appellate Court is not satisfied as to both the matters mentioned in clause *(b)* of that sub- section and has before it the materials necessary for the determination of the other grounds of appeal to itself, it shall dispose of the appeal as if their had been no defect of jurisdiction in the Court of first instance or lower appellate Court.

(3) If the objection was taken in that manner and the appellate Court is satisfied as to both those matters and has not those materials before it, it shall proceed to deal with the appeal under the rules applicable to the Court with respect to the hearing of appeals; but if it remands the suit or appeal, or frames and refers issues for trial, or requires additional evidence to be taken, it shall direct its order to a Court competent to entertain the suit or appeal.

(4) The provisions of this section with respect to an appellate Court shall, so far as they can be made applicable, apply to a Court exercising revisional jurisdiction under section [2][115 of the Code of Civil Procedure, 1908 (Act V of 1908)] or other enactment for the time being in force.

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(5) This section extends to [3][the whole of Pakistan], and shall come into force on the first day of July, 1887.

12. Proceedings pending at commencement of Part I or Part II. Nothing in Part I or Part II shall be construed to affect the jurisdiction of any Court—

(a) with respect to any suit instituted before rules under Part I applicable to the valuation of the suit take effect, or Part II has come into force, as the case may be, or

(b) with respect to any appeal arising out of any such suit.

Date: 04-06-2024

[1]This section has been amended in the Punjab by Punjab Act No. XIII of 1942, s. 3.
[2]Subs. by Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 5, Sch. IV (only to the extent of Islamabad capital territory).
[3]Subs. by the Central Laws (Statute Reform) Ordinance No. XXI of 1960, s.3 and (with effect from the 14th October, 1955).

THE TERRITORIAL WATERS AND MARITIME ZONES ACT, 1976

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THE TERRITORIAL WATERS AND MARITIME ZONES ACT, 1976

[1]ACT No. LXXXII OF 1976

[31st December, 1976]

An Act to provide for the declaration of the territorial waters and maritime zones of Pakistan.

WHEREAS it is expedient to provide for the declaration of the territorial waters and maritime zones of Pakistan and for matters connected therewith ;

It is hereby enacted as follows:—

1. Short title and commencement.— This Act may be called the Territorial Waters and Maritime Zones Act, 1976.

(2) It shall come into force at once.

2. Territorial waters.— (1) The sovereignty of Pakistan extends and has always extended to the territorial waters of Pakistan, hereinafter referred to as the territorial waters, as well as to the air space over, and the bed and subsoil of, such waters.

(2) The limit of the territorial waters is twelve nautical miles beyond the land territory and internal waters of Pakistan measured from the baseline.

(3) The baseline from which such limit shall be measured and the waters on the landward side of which shall form part of the internal waters of Pakistan shall be specified by the Federal Government by notification in the official Gazette.

(4) Where a single island, rock or a composite group thereof constituting a part of the territory of Pakistan is situated off the main coast, the baseline referred to in sub-section (3) shall be drawn along the outer seaward limits of such island, rock of composite group.

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3. Use of territorial waters by foreign ships.— (1) Without prejudice to the provisions of any other law for the time being in force and subject to the provisions of sub-section (2) and sub-section (3), all foreign ships shall enjoy the right of innocent passage through the territorial waters.

Explanation.— For the purposes of this section, passage is innocent so long as it is not prejudicial to the peace, good order or security of Pakistan.

(2) Foreign warships, including submarines and other under water vehicles and Foreign Military Aircraft may enter or pass through the territorial waters and the air space over such waters with the prior permission of the Federal Government:

Provided that submarines and other under water vehicles shall navigate on the surface and show their flag while passing through such waters.

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[1]For Statement of objects and Reasons, *see* Gaz., of P., 1976, Ext, Pt., III, p. 1455.

Explanation.— For the purposes of this section, passage is innocent so long as it is not prejudicial to the peace, good order or security of Pakistan.

(3) Foreign super ankers, nuclear powered ships and ships carrying nuclear or other inherently dangerous or noxious substances or materials may enter or pass through the territorial waters after giving prior notice to the Federal Government.

(4) The Federal Government may, if satisfied that it is necessary so to do in the interest of the peace, good order or security of Pakistan or any part thereof, suspend, by notification in the official Gazette, subject to such exceptions and qualifications, if any, as may be specified in the notification, the entry of all or any class of foreign ships into such area of the territorial waters as may be specified in the notification.

4. Contiguous Zone.— (1) The Contiguous Zone of Pakistan, hereinafter referred to as the Contiguous Zone, is an area adjacent to and beyond the territorial waters and extending seawards to a line twenty-four nautical miles measured from the baseline declared under sub-section (3) of section 2.

(2) The Federal Government may exercise such powers and take such measures in or in respect of the Contiguous Zone as it may consider necessary to prevent and punish the contravention of, and an attempt to contravene, any law in force in Pakistan relating to

(a) the security of Pakistan ;

(b) immigration and sanitation ; and

(c) customs and other fiscal matters.

(3) The Federal Government may, by notification in the official Gazette,

(a) extend to the Contiguous Zone any law relating to any matter referred to in clause (a) or clause (b) or clause (c) of sub-section (2), for the time being in force in Pakistan or any part thereof, with such modifications, if any, as may be specified in the notification ; and

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(b) make such provisions as it may consider necessary for facilitating the enforcement of such law and any law so extended shall have effect as if the Contiguous Zone formed part of the territory of Pakistan.

5. Continental Shelf.— (1) The Continental Shelf of Pakistan, hereinafter referred to as the Continental Shelf, shall comprise the seabed and sub-soil of the submarine areas that extend beyond the limit of the territorial waters of Pakistan throughout the natural prolongation of the land territory of Pakistan to the outer edge of the continental margin or, where the outer edge of the continental margin does not extend up to a distance of two hundred nautical miles from the baseline declared under sub-section (3) of section 2, up to that distance.

(2) Pakistan has, and always had, full and exclusive sovereign rights in respect of its Continental Shelf including

[1][(a) exclusive sovereign rights for the purpose of exploring and exploiting minerals and other non-living resources of the bed and sub-soil together with living organisms belonging to the sedentary species;]

(b) exclusive rights and jurisdiction to authorize, regulate and control scientific research ;

(c) exclusive rights and jurisdiction for the construction, maintenance or operation of artificial islands, off-shore terminals installations and other structures and devices necessary for the exploration and exploitation of the resources of the Continental Shelf, for the convenience of shipping or for any other purpose ; and

(d) exclusive jurisdiction to preserve and protect the marine environment and to prevent and control marine pollution.

[2][*Explanation* .— For the purpose of this sub-section, the expression "living organisms" shall mean those organisms which, at the harvestable stage, are either immobile under the sea-bed or are unable to move except in constant physical contact with the sea-bed or the sub-soil.]

(3) No person, including a foreign Government shall, except under, and in accordance with the terms of, any agreement with the Federal Government of a licence or letter of authority granted by the Federal Government, explore the Continental Shelf or exploit its resources or carry out any search or excavation or conduct any research within the Continental Shelf or drill therein or construct, maintain or operate therein for any purpose whatsoever any artificial islands, off shore terminal, installation or other structure or device.

(4) The Federal Government may, by notification in the official Gazette,—

(a) declare any area of the Continental Shelf [3][* * *] to be a designated area ; and

(b) make such provisions as it may deem necessary with respect to all or any of the following matters, namely—

(i) the exploration, development, exploitation and protection of the resources of the Continental Shelf within such designated area ;

(ii) the safety and protection of artificial islands, off-shore terminals, installations and other structures and devices in such designated area ;

(iii) the protection of marine environment of such designated area ;

(iv) customs and other fiscal matters in relation to such designated area ; and

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[1]Subs. by the Territorial Waters and Maritime Zones Act, 1977 (5 of 1977), s. 2, for cl. (a).
[2]Explanation added, ibid.
[3]Omitted ibid.

(v) the regulation of entry into and passage through the designated area of foreign ships by the establishment of fairways, sealanes, traffic separation schemes or any other mode of ensuring freedom of navigation which is not prejudicial to the interests of Pakistan.

(5) The Federal Government may, by notification in the official Gazette,-

(a) extend to the whole or any part of the Continental Shelf any law for the time being in force in Pakistan or any part thereof, with such modifications, if any, as may be specified in the notification ; and

(b) make such provisions as it may consider necessary for facilitating the enforcement of such law ;

and any law so extended shall have effect as if the Continental Shelf or, as the case may be, the part thereof to which it has been extended formed part of the territory of Pakistan.

(6) Subject to any measures that may be necessary for protecting the interests of Pakistan, and without prejudice to the provisions of sub-section (2), the Federal Government may not impede the laying or maintenance of submarine cables or pipelines on the seabed of the Continental Shelf by foreign States:

Provided that the consent of the Federal Government shall be necessary for the delineation of the course for the laying of such cables or pipelines.

6. Exclusive Economic Zone.— (1) The Exclusive Economic Zone of Pakistan, hereinafter referred to as the Exclusive Economic Zone, is an area beyond and adjacent to the territorial waters the limit of which is two hundred nautical miles from the baseline declared under sub-section (3) of section 2.

(2) In the Exclusive Economic Zone, its bed and sub-soil and the superjacent waters, Pakistan has—

(a) exclusive sovereign rights for the purpose of exploration, development, exploitation, conservation and management of all resources, both living and non-living, as well as for producing energy from tides, winds, currents and the sun.

(b) exclusive rights and jurisdiction for the construction, maintenance or operation of artificial islands, offshore terminals, installations and other structures and devices necessary for the exploration and exploitation of the resources of the Zone or for the convenience of shipping or for any other purpose ;

(c) exclusive rights and jurisdiction to authorize, regulate and control scientific research;

(d) exclusive jurisdiction to preserve and protect the marine environment and to prevent and control marine pollution ; and

(e) such other rights as are recognized by international law.

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(3) No person, including a foreign Government, shall, except under, and in accordance with the terms of, any agreement, with the Federal Government or a licence or letter of authority granted by the Federal Government, explore or exploit any resources of the Exclusive Economic Zone or carry out any search or excavation or conduct any research within the Exclusive Economic zone or drill therein or construct, maintain or operate, therein for any purpose whatsoever any artificial island off-shore terminal, installation or other structure or device:

Provided that fishing in the Exclusive Economic Zone shall be regulated by the provisions of the Exclusive Fishery Zone (Regulation of Fishing) Act, 1975 (XXII of 1975).

(4) The Federal Government may, by notification in the official Gazette,—

(a) declare any area of the Exclusive Economic Zone to be a designated area ; and

(b) make such provisions as it may deem necessary with respect to all or any of the following matters, namely,

(i) the exploration, development, exploitation and protection of the resources of such designated area ;

(ii) other activities for the economic exploitation and exploration of such designated area, such as the production of energy from tides, winds, currents and the sun ;

(iii) the safety and protection of artificial islands, off-shore terminals, installations and other structures and devices in such designated area ;

(iv) the protection of marine environment of such designated area ;

(v) customs and other fiscal matters in relation to such designated area ; and

(vi) the regulation of entry into and passage through the designated area of foreign ships by the establishment of fairways, sealanes, traffic separation schemes or any other mode of ensuring freedom of navigation which is not prejudicial to the interest of Pakistan.

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(5) The Federal Government may, by notification in the official Gazette,—

(a) extend to the whole or any part of the Exclusive Economic Zone any law for the time being in force in Pakistan or any part thereof subject to such modifications as may be specified in the notification ; and

(b) make such provisions as it may consider necessary for facilitating the enforcement of such law, and any law so extended shall have effect as if the Exclusive Economic Zone or, as the case may be, the part thereof to which it has been extended formed part of the territory of Pakistan.

(6) The provisions of sub-section (6) of section 5 shall apply in relation to the laying or maintenance of submarine cables or pipelines on the seabed of the Exclusive Economic Zone as they apply in relation to the laying or maintenance of submarine cables or pipelines on the seabed of the Continental Shelf.

(7) In the Exclusive Economic Zone and the air space over the Zone, ships and aircraft of all States shall, subject to the exercise by Pakistan of its rights within the Zone, enjoy freedom of navigation and over-flight.

7. Historic waters.– (1) The Federal Government may, by notification in the official Gazette, specify the limits of such waters adjacent to its land territory as are the historic waters of Pakistan.

(2) The sovereignty of Pakistan extends, and has always extended, to the historic maters of Pakistan and to the seabed and subsoil underlying, and the air space over, such waters.

8. Maritime boundaries between Pakistan and States having coasts opposite or adjacent to those of Pakistan.– (1) Notwithstanding anything contained in any other provision of this Act,–

(a) the delimitation of the territorial waters between Pakistan and any other State whose coast is opposite or adjacent to that of Pakistan shall be determined by agreement between Pakistan and such state and pending such agreement and unless any other provisional arrangements are agreed to between them, the boundary with regard to the territorial waters between Pakistan and such State shall not extend beyond the line every point of which is equidistant from the baseline from which the breadth of the territorial waters of Pakistan and of such state is measured ; and

(b) the delimitation of the Contiguous Zone, the Continental Shelf, the Exclusive Economic Zone and other maritime zones between Pakistan and any other state whose coast is opposite or adjacent to that of Pakistan shall be effected by agreement in accordance with equitable principles and taking account of all the relevant circumstances, and pending such agreement or a settlement Pakistan and such state shall make provisional arrangements taking into account the said principles for delimitation of the Contiguous Zone, the Continental Shelf, the Exclusive Economic Zone and other maritime zones.

(2) Every agreement referred to in clauses (a) and (b) of sub-section (1) shall, as soon as may be after it is entered into, be published in the official Gazette.

9. Publication of charts. The Federal Government may cause the baseline referred to in sub- section (3) of section 2, the limits of the Territorial Waters, the Contiguous Zone, the Continental Shelf and the Exclusive Economic Zone and the maritime boundaries as settled by agreements referred to in section 8 to be published in charts.

10. Offences. Whoever contravenes any provision of this Act or of any rule or notification made or issued thereunder shall, without prejudice to any other action which may be taken against such person under any other provision of this or of any other law, be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

11. Offences by companies.– (1) Where an offence punishable under section 10 has been committed by a company, every person who, at the time the offence was committed, was in charge of, and was responsible to the company for, the conduct of the business of the company, as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment provided in this Act if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of such offence.

(2) Notwithstanding anything contained in sub-section (1), where an offence punishable under section 10 has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any neglect on the part of, any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation.— For the purpose of this section,—

(a) "company" means any body corporate and includes a firm or other association of individuals ; and

(b) "director", in relation to a firm, means a partner in the firm.

12. Place of trial. Any person committing an offence punishable under section 10 or under any of the laws extended under this Act may be tried for the offence in such place or places as the Federal Government may, by general or special order published in the official Gazette, direct in this behalf.

13. Previous sanction of the Federal Government for Prosecution. No prosecution shall be instituted against any person in respect of any offence punishable under section 10 or under any of the laws extended under this Act without the previous sanction of the Federal Government or such officer or authority as may be authorised by that Government by order in writing in this behalf.

14. Power to make rules.— (1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:

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(a) regulation of the conduct of any person in the Territorial Waters, the Contiguous Zone, the Continental Shelf, the Exclusive Economic Zone or any other maritime zone of Pakistan ;

(b) regulation of the exploration, development, exploitation, conservation and management of the resources of the Continental Shelf ;

(c) regulation of the exploration, development, exploitation, conservation and management of the resources of the Exclusive Economic Zone ;

(d) regulation of the construction, maintenance and operation of artificial islands, off-shore terminals, installations and other structures and devices referred to in section 5 and section 6 ;

(e) preservation and protection of the marine environment and prevention and control of marine pollution ;

(f) authorisation, regulation and control of the conduct of scientific research ;

(g) fees in relation to licences and letters of authority referred to in sub-section (3) of section 5 and sub-section (3) of section 6 or for any other purpose ; or

(h) any matter incidental to any of the matters specified in clauses (a) to (g).

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THE TRADE MARKS ORDINANCE, 2001

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THE TRADE MARKS ORDINANCE, 2001

ORDINANCE NO. XIX OF 2001

[13th April, 2001]

AN

ORDINANCE

to amend and consolidate the law relating to trade marks

WHEREAS it is expedient to amend and consolidate the law relating to trade marks and unfair competition and to provide for registration and better protection of trade marks and for the prevention of the use of fraudulent marks, and for matters ancillary thereto or connected therewith;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999 and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

CHAPTER I.– PRELIMINARY

1. Short title, extent and commencement.—(1) This Ordinance may be called the Trade Marks Ordinance, 2001.

(2) It extends to the whole of Pakistan.

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(3) This section and section 132 shall come into force at once and the remaining provisions of the Ordinance shall come into force on such date as the federal Government may by notification in the official Gazette, appoint in this behalf.

2. Definations.—In this Ordinance, unless there is anything repugnant in the subject or context,–

[1][(i) "Act" means the Intellectual Property Organization of Pakistan Act, 2012 (Act No. XXII of 2012);

(ia) "administrative division" means the division to which business of this Ordinance stands allocated;]

[1]Ins. by Act No. LVIII of 2023, s.2.

[1][(ib)] "advertising" means the making of representation in any form in connection with a trade, business or profession in order to promote the supply of goods or services;

(ii) "assignment" in relation to a trade mark, means an assignment in writing by act of the parties concerned;

(iii) "authorized user" means a person authorised to use a trade mark in relation to goods or services under the control of the owner of the trade mark and includes a licensee;

(iv) "certification mark" means a certification mark as defined in sub-section (1) of section 83;

(v) "collective mark" means a collective mark as defined in sub-section (1) of section 82;

(vi) "comparative advertisement" means an advertisement which explicitly or by implication identifies a competitor or goods or services offered by a competitor;

(vii) "Convention application" means an application as defined in sub-section (1) of section 25;

(viii) "Convention country" means a Convention country as defined in clause (b) of section 85;

[1][(ix) "Counterfeit trade mark goods" means any goods including packaging bearing without authorization a trade mark which is identical or deceptively similar to the trade mark validly registered in respect of such goods or which cannot be distinguished in its essential aspects from such a trade mark and infringes rights of the owner of the trade mark under this Ordinance;]

(x) "date of filing" means–

(a) in relation to an application for the registration of a trade mark, the day on which the application is filed pursuant to sub-section (1) of section 23; or

(b) in relation to a divisional application for the registration of trade mark, the day on which the initial application within the meaning of sub-section (1) of section 32 is filed; or

(c) in relation to an application to provide temporary protection during exhibition, the day referred to in sub-section (1) of section 26; or

(d) in relation to a Convention application, the day referred to in clause (a) of sub-section (2) of section 25:

[1]Renumbered and Subs. by Act No. LVIII of 2023, s.2.

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(xi) "date of registration", in relation to the registration of a trade mark in respect of particular goods or services, means the day from which the registration of the trade mark in respect of those goods or services is taken to have had effect under sub-section (3) of section 33;

(xii) "deceptively similar" in relation to a trade mark, means such near resemblance between it and another trade mark that it is likely to deceive or cause confusion;

(xiii) "dilution" means the lessening of the capacity of a well known trade mark to identify and distinguish the goods or services, regardless of the presence or absence of competition between owner of the well known trade mark or other parties, or likelihood of confusion or deception;

(xiv) [1][* * * * * * *]

(xv) "divisional application" means a divisional application as defined in sub-section (1) of section 32;

(xvi) "domain name" means the domain name as defined in sub-section (1) of section 84;

(xvii) "earlier trade mark" means an earlier trade mark as defined in subsection (1) of section 18;

(xviii) "false trade description" means—

(a) a trade description which is untrue or misleading in a material respect as regards the goods or services to which it is applied;

(b) any alteration of a trade description as regards the goods or services to which it is applied whether by way of addition, effacement or otherwise where that alteration makes the description untrue or misleading in a material respect;

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(c) any mark or arrangement or combination thereof when applied—

(i) to goods in such a manner as to be likely to lead persons to believe that the goods are the manufacture of merchandise of some person other than the person whose merchandise or manufacture they really are; or

(ii) in relation to services in such a manner as to be likely to lead persons to believe that the services are provided or rendered by some person other than the person whose service they really are;

(d) any false name or initials of a person applied to goods or services in such a manner as if such name or initials were a trade description in any case where the name or initials,—

[1]Omitted by Act No. LVIII of 2023, s.2.

(i) is or are not a trade mark or part of a trade mark;

(ii) is or are identical with or deceptively similar to the name or initials of a person carrying on business in connection with goods or services of the same description or both and who has not authorized the use of such name or initials; and

(iii) is or are either the name or initials of a fictitious person or of some person not bona fide carrying on business in connection with such goods or services; and the fact that a trade description is a trade mark or part of a trade mark shall not prevent such trade description being a false trade description within the meaning of this Ordinance; or

(e) to any false name, initials or description of a person used in relation to goods or services in a manner to suggest that the said person authenticates or guarantees the nature or fitness for the purpose of the goods or services;

[1][(xix) "geographical indication" shall have the same meaning as assigned thereto in the Geographical Indications (Registration and Protection) Act, 2020 (XVIII of 2020);]

(xx) "goods" means anything which is subject of trade, commerce or manufacture;

[1][(xxa) "IP Tribunal" means the Tribunal established under section 16 of the Act;

(xxb) "international application" means an application for the international registration of trademarks in accordance with Madrid Protocol;]

(xxi) "Journal" means the Trade Marks Journal published under the authority of the Registrar;

(xxii) "licensee" means a person using a registered trade mark by virtue of a transaction;

(xxiii) "limitations" with its grammatical variations, means any limitations of the exclusive right to the use of a trade mark given by the registration of a person as proprietor thereof, including limitations of that right as to mode of use, as to use in relation to goods or services to be sold or otherwise traded in within Pakistan, or as to use in relation to goods or services to be exported to any market outside Pakistan;

[1][(xxiiia) "Madrid Protocol" means the Protocol as defined in section 92B;]

(xxiv) "mark" includes, in particular, a device, brand, heading, label, ticket, name including personal name, signature, word, letter, numeral, figurative element, colour, sound or any combination thereof;

[1]Subs. and Ins. by Act No. LVIII of 2023, s.2.

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(xxv) "misleading advertising" means any advertising which in any way, including its presentation, deceives or is likely to deceive the persons to whom it is addressed or whom it reaches and which, by reason of its deceptive nature, is likely to affect their behaviour or which, for those reasons, injures or is likely to injure a competitor;

(xxvi) "name" includes any abbreviation of name;

(xxvii) "notify means to notify in the Journal;

[1][(xxviia) "Organization" means the Intellectual Property Organization of Pakistan established under section 3 of the Act;]

(xxviii) "opponent" in relation to the registration of a trade mark, means the person who has filed under sub-section (2) of section 28, a notice of opposition to the registration of the trade mark;

(xxix) "packaging" includes, in particular, any case, box, container, covering, folder, receptacle, vessel, casket, bottle, wrapper, band, reel, frame, capsule, cap, lid, stopper and cork;

(xxx) "Paris Convention" means the Paris Convention as defined in clause (a) of section 85;

(xxxi) "permitted use" in relation to a trade mark, means the use of the trade mark by an authorised user;

(xxxii) "predecessor in title" in relation to a person who claims to be the proprietor of a trade mark, means—

(a) if the trade mark was assigned or transmitted to one or more than one persons before it was assigned or transmitted to the first-mentioned person, that other person or any of those other persons; or

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(b) if sub-clause (a) does not apply, the person who assigned the trade mark, or from whom the trade mark was transmitted to the first-mentioned persons;

(xxxiii) "prescribed" means prescribed by rules made, in relation to proceedings before a High Court, by such High Court, and in other cases, made under this Ordinance;

(xxxiv) "proprietor", in relation to a registered trade mark, means the person who is for the time being entered in the Register as Proprietor of that trade mark;

[1]Ins. by Act No. LVIII of 2023, s.2.

(xxxv) "proprietor of earlier right", in relation to a trade mark, means a person entitled to prevent the use of a trade mark;

(xxxvi) "Register" means the Register to Trade Marks maintained under sub-section (1) of section 10;

(xxxvii) "Registrar" means the Registrar of Trade Marks appointed under section 7;

(xxxviii) "registered", with its grammatical variations, means registered under this Ordinance or the Trade Marks Act, 1940 (V of 1940);

(xxxix) "registered trade mark" means a trade mark which is actually on the Register;

(xl) "rules" means the rules made under this Ordinance;

(xli) "Schedule" means a Schedule to this Ordinance;

(xlii) "seized goods" means goods seized under section 56;

(xliii) "service" means service of any description which is made available to users or potential users and includes the provision for services in connection with business of any industrial or commercial nature, and without limitation, includes banking, retailing, communication including telecommunication, education, law, financing, insurance, chit funds, real estate, transport, storage, material treatment, processing, supply of goods including electrical or other energy, boarding, lodging, entertainment, amusement, construction, repair, conveying of news or information and advertising;

(xliv) "similar goods" includes goods which are of the same description;

(xlv) "similar services" included services which are of the same description;

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(xlvi) "trade description" means any description, statement or other indication, direct or indirect—

(a) as to the number, quantity, measure, gauge or weight of any goods; or

(b) as to the standard of quality of any goods or services according to classification commonly used or recognized in the trade; or

(c) as to-fitness for the purpose strength, performance or behaviour of any goods, being drugs or foods; or

(d) as to the place or country in which or the time at which any goods or services were made, produced or provided, as the case may be; or

(e) as to the name and address or other indication of the identity of the manufacturer or of the person providing the services or of the persons

for whom the goods are manufactured or services provided; or

(f) as to the mode of manufacture or producing any goods or providing services; or

(g) as to the material of which any goods are composed; or

(h) as to any goods being the subject of an existing patent, privilege or copyright, and includes—

(a) any description as to the use of any mark which according to the custom of the trade is commonly taken to be an indication of any of the above matters;

(b) any description as to any imported goods contained in any bill of entry or shipping bill; and

(c) any other description which is likely to be misunderstood or mistaken for all or any of the said matters;

(xlvii) "trade mark" means any mark capable of being represented graphically which is capable of distinguishing goods or services of one undertaking from those of other undertakings;

(xlviii) "Trade Marks Registry" means the Trade Marks Registry established under section 9;

(xlix) "trade names" means names used by a person to denote his trade or calling and includes

firms' and companies' names;

(l) "transmission" means transmission by operation of law, devolution on the personal representative of a deceased person and any other mode of transfer, not being assignment;

[1][(ii) "Tribunal" means the Registrar, as the case may be, the High Court or IP Tribunal before which the proceedings concerned are pending;]

(lii) "unfair competition" means an unfair competition as defined in section 67; and

(liii) "word" includes an abbreviation of a word.

3. Goods and services when associated, etc.— (1) For the purposes of this Ordinance—

[1]Subs. by Act No. LVIII of 2023, s.2.

(a) goods and services shall be associated with each other if it is likely that those goods might be sold or otherwise traded in and those services might be provided by the same business and so with descriptions of goods and descriptions of services;

(b) a trade mark shall be taken used on goods if the trade mark is used on any goods including second-hand goods, material or thing if it is woven in, impressed on, worked into, or affixed or annexed to, the goods, material or thing.

(c) a trade mark shall be taken used in relation to goods or services if the trade mark is used—

(i) on any covering, packaging, document, label, band, ticket, reel or thing in or with which the goods are, or are intended to be, dealt with or provided in the course of trade;

(ii) in a manner likely to lead persons to believe that it refers to, describes or designates the goods or services;

(iii) on a signboard or in an advertisement; or

(iv) in an invoice, list, catalogue, business letter, business paper, price list or other commercial document.

(2) Where the owner of the trade mark exercises quality control over goods or services—

(a) dealt with or provided in the course of trade by another person; and

(b) in relation to which the trade mark is used,

the other person shall be taken to use the trade mark in relation to the goods or services under the control of the owner.

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(3) Where another person deals with or provides, in the course of trade, goods or services in relation to which a trade mark is used and the owner of the trade mark exercises financial control over the other person's relevant trading activities, the other person shall be taken to use the trade mark in relation to the goods or services under the control of the owner.

4. Reference to use of a trade mark, etc.—In this Ordinance, unless the context otherwise requires, any reference—

(a) to use of a trade mark shall include reference to use of the trade mark in relation to goods, as well as, on goods;

(b) to use of a trade mark in relation to goods shall include reference to use of the trade mark on goods, or *vice versa*;

(c) to the Registrar shall be construed as including a reference to any officer when discharging the functions of the Registrar in pursuance of sub-section (2) of section 7; and

(d) to the Trade Marks Registry shall be construed as including a reference to any branch of the Trade Marks Registry.

5. Decision by tribunal regarding use of a trade mark.—(1) A tribunal may, having regard to the circumstances of a case, if it thinks fit, decide that a person has used a trade mark if it is established that the person has used the trade mark with additions or alterations that do not substantially affect the identity of the trade mark.

Explanation.—For removal of doubts, it is clarified that if a trade mark consists of any combination of any letter, word, name or numeral, any aural representation of the trade mark shall be, for the purposes of this Ordinance, a use of the trade mark.

(2) The application in Pakistan of a trade mark to goods or services to be exported from Pakistan and any other act done in Pakistan in relation to goods or services to be so exported which, if done in relation to goods or services to be sold or otherwise traded in within Pakistan would constitute use of a trade mark therein, shall be deemed to constitute use of the trade mark in relation to those goods or services for any purpose for which such use is material under this Ordinance or any other law for the time being in force.

(3) The use of a registered trade mark in relation to goods or services between which and the person using the mark any form of connection in the course of trade subsists shall not be deemed to be likely to cause deception or confusion on the ground only that the mark has been or is used in relation to goods or services between which and the person using the mark or any predecessor in his business different form of connection in the course of trade subsisted or subsists.

6. Application of other laws not barred.—The provisions of this Ordinance shall be in addition to, and not in derogation of any other law for the time being in force.

CHAPTER II.—REGISTRAR, TRADE MARKS REGISTRY AND REGISTRATION OF TRADE MARKS

[1][**7. Appointment of Registrar and other officers.**—(1) The Organization may, by notification in the official Gazette, appoint in the prescribed manner an officer as Registrar of Trade Marks.

(2) The Organization may appoint such other officers with such designations as it deem fit for performing under superintendence and direction of the Registrar, such functions of the Registrar under this Ordinance as he may, from time to time, authorise them to discharge.]

[1]Subs. by Act No. LVIII of 2023, s.3.

8. Power of Registrar to review, withdraw or transfer cases.—The Registrar may, by order in writing—

(a) review any function, matter, case or decision of any officer; or

(b) withdraw any function, matter or case from any officer or staff,

and deal with such function, matter or case himself either *de novo* or from the stage it was so withdrawn, or transfer the same to another officer or staff at any stage.

9. Trade Marks Registry and branches thereof.—(1) For the purposes of this Ordinance, there shall be established a Trade Marks Registry;

The Trade Marks Registry established under the Trade Marks Act,1940 (V of 1940), shall be the Trade Marks Registry for the purposes of this Ordinance.

(2) For the purpose of facilitating registration of trade marks, there may be established at such places, as [1][the IPO Policy Board] may think fit, branch offices of the Trade Marks Registry.

(3) There shall be a seal of the Trade Marks Registry.

10. Register of Trade Marks.—(1) For the purposes of this Ordinance, a record called the Register of Trade Marks shall be kept at the Trade Marks Registry wherein shall be entered particulars of all registered trade marks with the names, addresses and description of the proprietors, notifications of assignments and transmissions, the names, addresses and descriptions of licensees, disclaimers, conditions, limitations and such other matters relating to registered trade marks as may be prescribed, but there shall not be entered in the Register any notice of any trust express, implied or constructive, nor shall any such notice be receivable by the Registrar.

(2) Subject to the superintendence and direction of the [1][Organization], the Register shall be kept under the control and management of the Registrar.

(3) The Register may be kept in whole, or in part, by using a computer any *bona fide* record of a particular or other matter made by using a computer for the purposes of keeping the Register shall, for the purposes of this Ordinance, constitute an entry in the Register.

(4) There shall be kept at each branch office of the Trade Marks Registry, a copy of the Register and such of the other documents as the Registrar may, by notification in the Journal, direct;

Provided that if the Register in whole, or any part thereof, is kept by using a computer and access to a computer terminal from which a person in a branch office can read a screen, or obtain a printed copy of, the particulars or other matters recorded in the Register or that part of the Register, requirement under this sub-section of keeping a copy of the Register at that branch office shall be satisfied.

[1]Subs. by Act No. LVIII of 2023, ss. 4-5.

(5) The Register shall at all convenient times be open to the inspection of the public subject to such conditions and restrictions as may be prescribed.

(6) If the Register in whole, or any Part thereof, is kept by using a computer, the requirements of sub-section (5) shall be satisfied if a person who wants to inspect the Register or that part of the Register is given access to a computer terminal from which he can read a screen, or obtain a printed copy of the particulars or other matters recorded in the Register or that part of the Register.

[1][**10A. Validity of electronic documents.**—The electronic receipts and issuance of all the documents under this Ordinance shall be valid and accepted for the purposes of evidence.]

11. Evidence of entries in Register and things done by Registrar.—(1) A printed, written or computer generated copy of any entry in the Register, purporting to be certified by the Registrar and sealed with the seal of the Trade Marks Registry, shall be admitted in evidence in [1][the High Court or IP Tribunal] and in all proceedings is without further proof or production of the original.

(2) A certificate purporting to be issued under the hand of the Registrar as to any entry, matter or thing that he is authorised by this Ordinance or the rules to make or do shall be *prima facie* evidence of the entry having been made and of the contents thereof, or of the matter or thing having been done or not done.

12. Classification of goods and services.—(1) A trade mark may be registered in accordance with the provisions of this Ordinance in respect of—

(a) goods;

(b) services; or

(c) both goods and services,

comprised in the prescribed classification of goods or services in accordance with the international classification of goods and services.

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(2) Any question arising as to the class within which any goods or services fall shall be determined by the Registrar whose decision in the matter shall be final.

13. Publication of an alphabetical index of classification of goods and services.—(1) The Registrar may publish in the prescribed manner an alphabetical index of classification of goods and services.

(2) Where any goods or services are not specified in the alphabetical index of goods and services, published under sub-section (1), the classification of goods and services shall be determined by the Registrar in accordance with sub-section (2) of section 12.

[1]Ins. and subs. by Act No. LVIII of 2023, ss. 6-7

14. Absolute grounds for refusal of registration.—(1) The following shall not be registered, namely: —

(a) marks which do not satisfy the requirements of clause (xlvii) of section 2;

(b) trade marks which are devoid of any distinctive character;

(c) trade marks which consist exclusively of marks or indications which may serve, in trade, to designate the kind, quality, quantity, intended purpose, value, geographical origin, the time of production of goods or of rendering of services, or other characteristics of goods or services; and

(d) trade mark which consist exclusively of marks or indications which have become customary in the current language or in the *bone fide* and established practices of the trade;

Provided that a trade mark shall not be refused registration by virtue of clause (b), (c) or (d) if, before the date of application for registration, it has, in fact, acquired a distinctive character as a result of the use made of it or is a well known trade mark.

(2) A mark shall not be registered as a trade mark if it consists exclusively of—

(a) the shape which results from the nature of the goods themselves;

(b) the shape of goods which is necessary to obtain a technical result; or

(c) the shape of which gives substantial value to the goods.

(3) No trade mark on any part thereof in respect of any goods or services shall be registered which consists of, or contains, any scandalous design, or any matter the use of which would—

(a) by reasons of its being likely to deceive or to cause confusion or otherwise, be disentitled to protection in [1][the High Court].

(b) be likely to hurt the religious susceptibilities of any class of citizens of Pakistan, per se, or in terms of goods or services it is intended to be so registered; or

(c) be contrary to any law, for the time being in force, or morality.

(4) A trade mark shall not be registered if or to the extent that the application is made in bad faith.

[1]Subs. by Act No. LVIII of 2023, s.8.

15. Limitation as to colour.—(1) A trade mark may be limited wholly or in part to one or more specified colours, and any such limitation shall be taken into consideration by any tribunal having to decide on the distinctive character of the trade mark.

(2) So far as a trade mark is registered without limitation of colour it shall be deemed to be registered for all colours.

16. Use of names of chemical compounds barred.—(1) No word which is the commonly used and accepted name of any single chemical element or single chemical compound as distinguished from a mixture or which is declared by the World Health Organization and notified in the prescribed manner by the Registrar, from time to time, as an international non-proprietary name shall be registered as a trade mark in respect of a chemical substance or preparation, and any such registration shall, notwithstanding anything in section 44, be deemed for the purposes of section 98 to be an entry made in the Register without sufficient cause or an entry wrongly remaining on the Register, as the circumstances may require.

(2) This section shall not apply to a word which is used to denote only a brand or make of the element or compound as made by the proprietor or a license of the trade mark, as distinguished from the element or compound as made by others, and in association with a suitable name or description open to the public use.

17. Relative grounds for refusal of registration.—(1) A trade mark shall not be registered if it is identical with an earlier trade mark and the goods or services, for which the trade mark is applied for, are identical with the goods or services for which the earlier trade mark is registered.

(2) A trade mark shall not be registered because—

(a) it is identical with an earlier trade mark and is to be registered for goods or services similar to those for which the earlier trade mark is registered; or

(b) it is similar to an earlier trade mark and is to be registered for goods or services identical with or similar to those for which the earlier trade mark is registered,

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and there exists a likelihood of confusion on the part of the public which includes the likelihood of association with the earlier trade mark.

(3) A trade mark which—

(a) is identical with or similar to an earlier trade mark; and

(b) is to be registered for goods or services which are not similar to those for which the earlier trade mark is registered,

shall not be registered if, or to the extent that, the earlier trade mark has a reputation in Pakistan and the use of the later mark without due cause would take unfair advantage of, or be detrimental to, the distinctive character or the repute or the earlier trade mark.

(4) A trade mark shall not be registered if, or to the extent that, its use in Pakistan is liable to be prevented—

(a) by virtue of any law, in particular, the law of passing off, protecting an un-registered trade mark or other mark used in the course of trade; or

(b) by virtue of an earlier right other than those referred to in sub-section (1), (2) and (3) or clause (a) of this sub-section, in particular by virtue of the law of copyright design right or registered designs.

(5) Nothing in this section shall prevent the registration of a trade mark where the proprietor of the earlier trade mark or other earlier right consents to the registration.

(6) Where separate applications arc made by different persons to be registered as proprietors respectively of trade marks which are identical or nearly resemble each other, in respect of the same goods or description of goods, [1][or services or description of services] the Registrar, if thinks fit, may refuse to register any of them until their rights have been determined by the High Court [1][* * *].

18. Meaning of "earlier trade mark".—(1) In this Ordinance, "earlier trade mark" means—

(a) a registered trade mark or a Convention trade mark as per the Paris Convention which has a date of application for registration earlier than that of the trade mark in question, taking account, where appropriate, of the priorities claimed in respect of the trade marks;

(b) a trade mark filed under sub-section (1) of section 26; or

(c) a trade mark which, on the date of application for registration of the trade mark in question, or where appropriate, of the priority claimed in respect of the application was entitled to protection under the Paris Convention as a well known trade mark.

(2) References in this Ordinance to an earlier trade mark include a trade mark in respect of which an application for registration has been made and which, if registered, would be an earlier trade mark by virtue of clause (a) or (b) of sub-section (1), subject to its being so registered.

(3) A trade mark shall, within clause (a) or (b) of sub-section (1), whose registration expires continue to be taken into account in determining the registrability of a later mark for a period of one year after the expiry unless the Registrar is satisfied that there was no *bona fide* use of the mark during two years immediately preceding the expiry.

19. Raising of relative grounds in case of honest concurrent use.—(1) Where on application for the registration of a trade mark it appears to the Registrar that there is—

[1]Ins. and Omitted by Act No. LVIII of 2023, s.9.

(a) an earlier trade mark in relation to which the conditions set out in sub-section (1), (2) or (3) of section 17 obtain; or

(b) an earlier right in relation to which the condition set out in sub-section (4) of section 17 is satisfied.

but the applicant proves to the satisfaction of the Registrar that there has been honest concurrent use of the trade mark for which registration is sought, the Registrar shall not refuse the application by reason of the earlier trade mark or other right unless objection on that ground is raised in opposition proceedings by the proprietor of that earlier trade mark or other earlier right.

(2) For the purposes of this section, "honest concurrent use" means such use in Pakistan, by the applicant or with his consent, as would formerly have amounted to honest concurrent use for the purposes of sub-section (2) of section 10 of the Trade Marks Act, 1940 (V of 1940).

(3) Nothing in this section shall affect—

(a) the refusal of registration on the grounds mentioned in section 14; or

(b) the making of an application for a declaration of invalidity under sub-section (2) of section 80.

20. Registration of parts of trade marks and of trade marks as a series.—(1) Where the proprietor of a trade mark claims to be entitled to exclusive use of any part thereof separately, he may apply to register the whole and the part as separate trade marks.

(2) Each such separate trade mark shall satisfy all the conditions applying to, and have all the incidents of an independent trade mark.

(3) Where a person claiming to be the proprietor of several trade marks in respect of the same goods or services or description of goods or description of services which while resembling each other in the material particulars thereof are yet different in respect of—

(a) statements or representations as to the goods or services in relation to which the trade marks are respectively used or proposed to be used;

(b) statements or representations as to number, price, quality or names of places;

(c) other matter of a non-distinctive character which does not substantially affect the identity of the trade mark; or

(d) the colour or any part of the trade mark.

seeks to register those trade marks, they may be registered as a series in one registration.

21. Registration subject to disclaimer.—If a trade mark contains—

(a) any part not separately registered as a trade mark in the name of the proprietor;

(b) any part for the separate registration of which no application has been made; or

(c) any matter common to the trade, or otherwise of a non-distinctive character.

the tribunal, in deciding whether the trade mark shall be entered or shall remain on the Register, may require, as a condition of its being on the Register, that the proprietor shall either disclaim any right to the exclusive use of such part or of all or any portion of such matter, as the case may be, to the exclusive use of which the tribunal holds him not to be entitled, or make such other disclaimer as the tribunal may consider necessary for the purpose of defining the rights of the proprietor under the registration;

Provided that no disclaimer shall affect any rights of the proprietor of a trade mark except such as arise out of the registration of the trade mark in respect of which the disclaimer is made.

CHAPTER III.—PROCEDURE FOR AND DURATION OF REGISTRATION

22. Application for registration.—(1) An application for registration of a trade mark shall be made in writing to the Registrar in the prescribed manner.

(2) Without limiting the particulars that may be included in an application, the application shall contain—

(a) a request for registration of a trade mark;

(b) full name and address of the applicant;

(c) a statement of goods or services in relation to which it is sought to register the trade mark;

(d) international classification of goods or services;

(e) a representation of the trade mark; and

(f) full name, address and contact details of agent, in case the application, on behalf of the applicant, if made by his agent.

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(3) The application shall state that the trade mark is being used by the applicant, or with his consent, in relation to goods or services, or that he has a *bona fide* intention that it should be used.

(4) The Registrar may refuse to admit an application if it does not contain all the particulars required under sub-sections (2) and (3).

(5) The application shall be subject to the payment of the application fee as may be prescribed.

23. Date of filing.—(1) The date of filing of an application for registration of a trade mark shall be the date on which documents containing particulars specified in section 22 are furnished to the Registrar.

(2) References in this Ordinance to the date of application for registration shall be to the date of filing of the application.

24. Co-ownership of trade mark.—Where the relations between two or more persons interested in a trade mark are such that none of them is entitled to use the trade mark except—

(a) on behalf of both or all of them; or

(b) in relation to goods or services or both with which all of them are connected in the course of trade,

the persons may jointly apply for its registration under section 22.

(2) Where a trade mark is registered in the name of two or more persons jointly, each of them shall be entitled, subject to any agreement to the contrary, to an equal undivided share in the registered trade mark.

(3) The following provisions shall apply where two or more persons are co-proprietors of a registered trade mark, by virtue of sub-section (2) or otherwise.

(4) Subject to any agreement to the contrary, each co-proprietor shall be entitled, by himself or his agents, to do for his own benefit it and without the consent of or the need to account to the others, any act which would otherwise amount to an infringement of the registered trade mark.

(5) One co-proprietor may not, without the consent of the other or others,

(i) grant a licence to the use of the registered trade mark; or

(ii) assign or charge his share in the registered trade mark.

(6) Infringement proceedings may be brought by any co-proprietor but he may not, without the leave of the High Court or [1][IP Tribunal], proceed with the action unless the other, or each one of the others, is either joined as a plaintiff or added as a defendant.

(7) A co-proprietor who is thus arraigned as a defendant shall not be made liable for any costs in the action unless the takes part in the proceedings.

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(8) Nothing in sub-sections (6) and (7) shall affect the granting of interlocutory relief on the application of a single co-proprietor.

(9) Nothing in this section shall affect the mutual rights and obligations of trustees or personal representatives, or their rights and obligations as such.

[1]Subs. by Act No. LVIII of 2023, s.10.

25. Meaning of Convention application, and right to priority.—(1) A "Convention application" means an application duly made by a person for registration of a trade mark in one or more than one Convention country.

(2) If—

(a) a person has duly made a "Convention application"; and

(b) within six months from the date on which the Convention application or first of the Convention applications was made, that person or another person hereinafter referred to as the "successor in title" of whom that person is a predecessor in title applies to the Registrar in the prescribed manner for the registration of the same trade mark under this Ordinance in respect of some or all of the same goods or services or both in respect of which registration was sought in that convention country or those Convention countries,

that person or that person's successor in title may, when filing the application under this Ordinance, or within the prescribed period after filing the application under this Ordinance, but before the application is accepted, has a right to priority for the registration of the trade mark.

(3) If the application for registration under this Ordinance is made within the prescribed priority period mentioned in sub-section (2)—

(a) the relevant date for the purposes of establishing which rights take precedence shall be the date of filing of the first Convention application; and

(b) the registrability of the trade mark shall not be affected by any use of the mark in Pakistan in the period between that date and the date of the application under this Ordinance.

(4) Any filing which in a Convention country is equivalent to a regular national filing, under its domestic legislation or an international agreement, shall be treated as giving rise to the right of priority.

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Explanation. —For the purposes of this sub-section, a "regular national filing" means a filing which is adequate to establish the date on which the application was filed in that country, whatever may be the subsequent fate of the application.

(5) A subsequent application concerning the same subject as the first Convention application, filed in the same Convention country, shall be considered the first Convention application of which the date of filing is the starting date of the period of priority, if at the time of the subsequent application—

(a) the previous application has been withdrawn, abandoned or refused, without having been laid open to public inspection and without leaving any rights outstanding; and

(b) it has not yet served as a basis for claiming a right of priority.

(6) The previous application referred to in sub-section (5), may not thereafter serve as a basis for claiming a right of priority.

(7) The manner of claiming a right to priority on the basis of a Convention application shall be such as may be prescribed.

(8) A right to priority arising as a result of a Convention application may be assigned or otherwise transmitted, either with the application or independently.

(9) The reference in sub-section (2) to the applicants "successor in title" shall be construed accordingly.

26. Application to provide temporary protection during exhibition.—(1) The applicant for registration of a trade mark who has exhibited goods bearing the mark or has rendered services under the trade mark at an official or officially recognized exhibition and who applies for registration of that trade mark, within six months from the day on which the goods bearing the trade mark or the services rendered under the trade mark were first exhibited in the exhibition, shall, on his request, be deemed to have applied for registration of the trade mark on that day.

(2) Evidence of the exhibition of goods bearing the trade mark or services rendered under the trade mark must be given by a certificate issued by the competent authorities of the exhibition, stating the date on which the trade mark was first used in connection with goods or services included in the exhibition.

(3) The provision of this section shall not extend any other priority rights to the applicant in respect of the same trade mark.

(4) The grant of temporary protection in respect of goods or services during exhibition shall be subject to such conditions as may be prescribed.

27. Examination of application.—(1) The Registrar shall, as soon as practicable, examine whether an application for registration of a trade mark satisfies the requirements prescribed under this Ordinance.

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(2) For the purposes of sub-section (1), the Registrar shall carry out a search, to the extent as he considers necessary, of earlier trade marks.

(3) if it appears to the Registrar that the requirements for registration are not met, he shall inform the applicant and give him an opportunity, within such period as the Registrar may specify, to make representation or to amend the application.

(4) If the applicant fails to satisfy the Registrar that those requirements are met, or to amend the application so as to meet them, or fails to respond before the end of the specified period, the Registrar shall refuse to accept the application.

(5) If it appears to the Registrar that the requirements for registration are met, he shall accept the application absolutely or subject to such conditions or limitations, if any, as he may think fit.

(6) In the case of a refusal or conditional acceptance, the Registrar shall state in writing the grounds of his decision and the materials used by him in arriving thereat.

(7) If the tribunal is of opinion that it is fair and reasonable in all the circumstances of the case to do so, may at any time, whether before or after acceptance, correct any error in, or in connection with, the application or may permit the applicant to amend his application upon such terms as it may think fit:

Provided that no amendment or correction shall be permitted in the application which substantially affects the identity of the trade mark or extends the goods or services covered by the application:

Provided further that if the amendment or correction in the application is permitted after the application has been advertised, the amendment or correction shall also be published.

28. Publication, opposition proceedings and observations.—(1) When an application for registration of a trade mark has been accepted, whether absolutely or subject to conditions or limitations, the Registrar shall, as soon as may be after acceptance, cause the application as accepted, together with the conditions and limitations, if any, subject to which it has been accepted, to be advertised in the Journal, and for all legal purposes, advertisement of the trade mark in the Journal shall constitute sufficient notice of acceptance of the trade mark:

Provided that the Registrar may cause an application to be advertised before acceptance where it appears to him that it is expedient by reason of any exceptional circumstances so to do, and where an application has been so advertised the Registrar may, if he thinks fit, advertise it again when it has been accepted, but shall not be bound so to do:

Provided further that where an application is advertised by reason of any special circumstances under the above proviso, the Registrar shall simultaneously notify the exceptional circumstances which led him so to do.

(2) Any person may, within two months from the date of the advertisement or re-advertisement of an application for registration or within such further period not exceeding two months in the aggregate, as the Registrar, on application made to him in the prescribed manner and on payment of the prescribed fee, may allow, give notice to the Registrar of opposition to the registration.

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(3) The notice under sub-section (2), shall be given in writing in the prescribed manner, and shall include a statement of the grounds of opposition.

(4) The Registrar shall serve in the prescribed manner a copy of the notice on the applicant, and within one month from the receipt by the applicant of such copy of the notice of opposition, or within such further period not exceeding two months in the aggregate, as the Registrar, on application made to him in the prescribed manner and on payment of the prescribed fee, may allow, the applicant shall send to the Registrar in the prescribed manner a counter-statement of the grounds on which he relies for his application, and, if he does not do so he shall be deemed to have abandoned his application.

(5) If the applicant sends the counter-statement referred to in sub section (4), the Registrar shall serve in the prescribed manner a copy of the counter-statement on the opponent. If the opponent deems necessary, he may within one month from the receipt of such copy of the counter-statement, or within such further period not exceeding two months in the aggregate, as the Registrar, on

application made to him in the prescribed manner and on payment of the prescribed fee, may allow, send to the Registrar in the prescribed manner a rejoinder.

(6) If the opponent sends a rejoinder, the Registrar shall send in the prescribed manner a copy of the rejoinder to the applicant.

(7) Any evidence upon which the opponent and the applicant may rely shall be submitted in the prescribed manner and within the prescribed time to the Registrar, and the Registrar shall give an opportunity to them to be heard, if they so desire.

(8) The Registrar shall, unless the proceedings are discontinued or dismissed, after giving to the opponent and to the applicant an opportunity of being heard, decide whether, and subject to what conditions or limitations, if any, registration is to be permitted.

(9) If the Registrar is of opinion that it is fair and reasonable in all circumstances of the case to do so, he may, on request made in the prescribed manner, permit correction of any error in, or any amendment of, a notice of opposition, a counter-statement, or a rejoinder on such terms as he thinks just.

29. Grounds of opposition.—(1) The registration of a trade mark may be opposed on any of the grounds on which an application for the registration of a trade mark may be rejected under this Ordinance except the ground that the trade mark cannot be represented graphically.

(2) The registration of a trade mark may be opposed on the ground that the applicant does not intend—

(a) to use, or authorize the use of, the trade mark in Pakistan; or

(b) to assign the trade mark to a body corporate for use by the body corporate in Pakistan.

in relation to goods, services or both specified in the application.

(3) The registration of a trade mark may be opposed on any of the following grounds that:

(a) the applicant is not the proprietor of the trade mark;

(b) the application, or a document filed in support of the application, was amended contrary to the provisions of this Ordinance;

(c) the Registrar accepted the application for registration on the basis of evidence or representations that were false in material particulars; or

(d) the pre-acceptance advertisement of the application under exceptional circumstances is without sufficient cause or reason.

(4) The registration of trade mark in respect of particular goods or services may be opposed on the grounds that—

(a) it is substantially identical with, or deceptively similar to, a well known trade mark, or a trade mark that, before the priority date for the registration of the

first-mentioned trade mark in respect of those goods or services, had acquired a reputation in Pakistan; and

(b) because of the reputation of that other trade mark, the use of the first-mentioned trade mark would cause dilution or would be likely to deceive or cause confusion.

(5) The registration of a trade mark in respect of particular goods may be opposed on the ground that the trade mark contain or consists of a mark that is a geographical indication for goods originating in—

(a) a country, or in a region or locality in a country, other than the country in which the relevant goods originated; or

(b) a region or locality in the country in which the relevant goods originated other than the region or locality in which the relevant goods originated.

(6) The provision of clause (b) of sub-section (2) of section 17 shall remain in abeyance if the earlier trade mark application is under opposition.

30. Circumstances in which opposition may proceed in the name of a person other than the person who filed the notice of opposition.—If—

(a) after a person has given a notice of opposition, the right or interest on which the person relies while giving the notice of opposition becomes vested in another person: and

(b) the other person—

(i) notifies the Registrar in the prescribed manner that the right or interest is vested in him; and

(ii) does not withdraw the opposition,

the opposition may proceed as if the notice of opposition had been given in that other person's name.

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31. Withdrawal of application.—(1) The applicant may at any time withdraw his application or restrict the goods or services covered by the application.

(2) In case the application has been advertised, the withdrawal or restriction under sub-section (l) shall also be published.

32. Definition of divisional application.—(1) A divisional application means an other application by a person who has already made an application under section 22 for registration of a trade mark in respect of certain goods, services or both and made, in accordance with this section for—

(a) the registration of a part only of the trade mark in respect of any or all those goods, services or both; or

(b) the registration of the trade mark in respect of some only of the goods, services or both in respect of which registration is sought under the application made under section 22.

(2) A divisional application for registration of a trade mark or a part of a trade mark may be made only if the application under section 22 for registration of the trade mark is pending.

(3) A divisional application shall proceed as an application made under section 22:

Provided that a divisional application shall be taken to have been filed on the day on which the application under section 22 was filed.

33. Registration. —(1) Where an application has been accepted and—

(a) no notice of opposition has been given within the period referred to in sub-section (2) of section 28; or

(b) all opposition proceedings have been withdrawn or decided in favour of the applicant.

the Registrar shall, within such period as may be prescribed, register the trade mark, unless it appears to him having regard to matters coming to his notice since he accepted the application that it was accepted in error.

(2) A trade mark shall not be registered unless any fee prescribed for the registration is paid within the prescribed period. If the fee is not paid within the prescribed period, the application shall be deemed to have been [1][abandoned as per procedure prescribed under the rules].

(3) A trade mark when registered shall be registered as of the date of filing of the application for registration and that date shall be deemed for the purposes of this Ordinance to be the date of registration.

(4) On the registration of a trade mark the Registrar shall publish the registration in the prescribed manner and issue to the applicant a certificate in the prescribed form of registration, sealed with the seal of the Trade Marks Registry.

(5) Where registration of a trade mark is not completed within twelve months from the date of the application by reason of default on the part of the applicant, the Registrar may, after giving notice to the applicant in the prescribed manner, treat the application as abandoned unless it is completed within the time specified in that behalf in the notice.

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[1]Subs. by Act No. LVIII of 2023, s.11.

34. Duration and renewal of registration.—(1) A trade mark shall be registered for a period of ten years from the date of registration.

(2) The Registration may be renewed under section 35 for a further period of ten years.

35. Renewal of registration.—(1) The registration of a trade mark may be renewed at the request of the proprietor subject to payment of such renewal fee as may be prescribed.

(2) The Registrar shall inform the proprietor of a registered trade mark, before the expiry of the registration, of the date of expiry and the manner in which the registration may be renewed as may be prescribed.

(3) A request for renewal shall he made, along with the renewal fee, before the expiry of the registration as may be prescribed, failing which the request may be made and the renewal fee paid within such further period of not less than six months as may be prescribed in which case an additional renewal fee shall be paid within that period.

(4) Renewal shall take effect from the expiry of the previous registration.

(5) Except at the time of first renewal, the Registrar may require that request for renewal be accompanied with evidence of use of the trade mark in Pakistan.

(6) If the registration is not renewed in accordance with the provisions of this section, the Registrar shall remove the trade mark from the Register:

Provided that the Registrar may restore the registration of a trade mark which has been removed from the Register, subject to such conditions, if any, as may be prescribed.

(7) The renewal or restoration of the registration of a trade mark shall be published in the Journal.

36. Effect of removal from Register for failure to pay fee for renewal.—Where a trade mark has been removed from the Register, under this Ordinance, for failure to pay the fee for renewal, it shall nevertheless, for the purposes of any application for the registration of another trade mark during one year next after the date of the removal, be deemed to be a trade mark already on the Register, unless the tribunal is satisfied either—

(a) that there has been no *bona fide* use of the trade mark which has been removed during the two years immediately preceding its removal; or

(b) that no deception or confusion would be likely to arise from the use of the trade mark which is the subject of the application for registration by reason of any previous use of the trade mark which has been removed.

37. Alteration of registered trade mark.—(1) Subject to sub-section (2), a registered trade mark shall not be altered in the Register, during the period of registration or on renewal.

(2) The Registrar may, at the request of the proprietor, allow the alteration of a registered trade mark where the mark includes the proprietor's name or address and the alteration is limited to alteration of that name or address and does not substantially affect the identity of the mark.

(3) In case any alteration is made under sub-section (2), the Registrar shall publish such alteration and the objections by any person claiming to be affected by it, in such manner as may be prescribed.

38. Surrender of registered trade mark.—(1) A registered trade mark may be surrendered by the proprietor in respect of some or all of the goods or services for which it is registered.

(2) The Federal Government may by rules to published in the official Gazette, provide—

(a) as to manner and effect of a surrender; and

(b) for protecting the interests of other persons having a right in the registered trade mark.

CHAPTER IV.—REGISTRATION AND EFFECT THEREOF

39. Rights conferred by registration.—(1) A registered trade mark shall be a personal property.

(2) The proprietor of a registered trade mark shall have exclusive rights in the trade mark which are infringed by use of the trade mark in Pakistan without his consent.

(3) Without prejudice to the rights of the proprietor of a registered trade mark to obtain any relief under any other law for the time being in force, the proprietor shall also have the right to obtain relief under this Ordinance if the trade mark is infringed.

(4) References in this Ordinance to the infringement of a registered trade mark shall be to any such infringement of the rights of the proprietor.

(5) The rights of the proprietor shall have effect from the date of registration:

Provided that no infringement proceedings shall begin before the date on which the trade mark is in fact registered.

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(6) The rights conferred by registration of trade marks under this Ordinance shall extend to trade marks registered under the Trade Marks Act, 1940 (V of 1940).

40. Infringement of registered trade mark.— (1) A person shall infringe a registered trade mark if such person uses in the course of trade a mark which is identical with the trade mark in relation to goods or services which are identical with those for which it is registered.

(2) A person shall infringe a registered trade mark if such person uses in the course of trade a mark where because—

(a) the mark is identical with the trade mark and is used in relation to goods or services similar to the goods or services for which the trade mark is registered; or

(b) the mark is deceptively similar to the trade mark and is used in relation to goods or services identical with or similar to the goods or services for which the trade mark is registered,

there exists a likelihood of confusion on the part of public, which includes the likelihood of association with the trade mark.

(3) A person shall infringe a registered trade mark if the person uses in the course of trade a mark which is identical with, or deceptively similar to, the trade mark in relation to—

(a) goods of the same description as that of goods in respect of which the trade mark is registered;

(b) services that are closely related to goods in respect of which the trade mark is registered;

(c) services of the same description as that of services in respect of which the trade mark is registered; or

(d) goods that are closely related to services in respect of which the trade mark is registered.

(4) A person shall infringe a registered trade mark if the person uses in the course of trade a mark which—

(a) is identical with or deceptively similar to the trade mark; and

(b) is used in relation to goods or services which are not similar to those for which the trade mark is registered,

where the trade mark is a well known trade mark, or has a reputation in Pakistan, and the use of the mark, being without due cause, takes unfair advantage of, or is detrimental to, the distinctive character or the repute of the trade mark.

(5) A person shall infringe a registered trade mark if the person uses such registered trade mark as his trade name or part of his trade name.

(6) A person shall infringe a registered trade mark if the person uses such registered trade mark as his domain name or part of his domain name or obtains such domain name without the consent of the proprietor of the registered trade mark, with the intention of selling such domain name to another including the proprietor of the registered trade mark.

(7) A person who applies a registered trade mark to material intended to be used for labeling or packaging goods shall be treated as a party to any use of the material which infringes the registered trade mark if when he applied the mark he knew or had reason to believe that the application of the mark was not duly authorised by the proprietor or a licensee.

(8) In all legal proceedings, a person who sells or offers or exposes goods for sale, or puts them on the market or has in possession for sale or any purpose of trade or manufacture any goods bearing a mark which infringes a registered trade mark shall be treated as a party to infringement of a registered trade mark, unless he proves that—

(a) having taken all reasonable precautions, he had no reasons to suspect the genuineness of the mark; and

(b) on demand made by tribunal, he gave all the information in his power with respect to the persons from whom he obtained such goods; or

(c) he had, otherwise acted innocently.

41. Infringement of trade mark by breach of certain restrictions.—Subject to the provisions of section 42, if the proprietor of a registered trade mark or a licensee having power to do so, has caused to be displayed on goods the words "registered goods" in respect of which a trade mark is registered, or on their packaging, or on the container in which they are offered to the public, a notice prohibiting any of the following acts—

(a) apply the trade mark to registered goods or using the trade mark in physical relation to them, after the state, condition, get-up or packaging in which they were originally offered to the public has been altered;

(b) altering, or partially removing or obliterating, any representation of the trade mark applied to registered goods and used in physical relation to them;

(c) if the trade mark has been applied to registered goods, or used in physical relation to them, together with other matter indicating that the proprietor or the licensee has dealt with the goods, removing or obliterating, totally or in part, any representation of the trade mark without totally removing or obliterating the other matters;

(d) applying another trade mark to registered goods or using another trade mark in physical relation to them; or

(e) if the trade mark has been applied to registered goods, or used in physical relation to them, using on the goods, or on the packaging or container of the goods, any matter that is likely to injure the repute of the trade mark.

a person who does or authorizes someone to do any of the foregoing prohibiting acts shall be liable for infringement of the trade mark:

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Provided that the trade mark shall not be infringed if the owner of the goods acquired them in good faith and without being aware of the notice of prohibition, or became the owner of the goods by virtue of a title derived from a person who has so acquired them.

42. When a trade mark is not infringed.—(1) A person shall not infringe a registered trade mark when—

(a) the person uses in good faith—

(i) the person's name or the name of the person's place of business, so long as such use does not result in a likelihood of confusion or otherwise interfere with an existing trade mark or other property right; or

(ii) the name of the predecessor in business of the person or the name of the predecessor's place of business;

(b) the person uses a mark in good faith to indicate—

(i) the kind, quality, quantity, intended purpose, value, geographical origin, or some other characteristic, of goods or services; or

(ii) the time of production of goods or of the rendering of services;

(c) the person uses the trade mark in good faith to indicate the intended purpose of goods, in particular as accessories or spare parts, or services; or

(d) the person uses the trade mark for the purposes of comparative advertising.

(2) If the right to the use of a trade mark given under section 39 by registration is subject to any conditions or limitations entered on the Register, such right shall not be deemed to be infringed by the use of any such trade mark as aforesaid in any mode, in relation to goods to be sold or otherwise traded in or in relation to services provided by, in any place, or in relation to goods or services to be exported to any market, or in any other circumstances, to which, having regard to any such limitations the registration does not extend.

(3) Where registration of a trade mark is subject to a disclaimer, a person shall not infringe the trade mark by using disclaimed part of the trade mark.

43. Registration to be prima facie evidence of validity.—In all legal proceedings relating to a trade mark registered under this Ordinance or under the Trade Marks Act, 1940 (V of 1940), the fact that a person is registered as proprietor thereof shall be *prima facie* evidence of the validity of the original registration of the trade mark and of all subsequent assignments and transmissions thereof.

44. Registration to be conclusive as to validity after five years.—In all legal proceedings relating to a registered trade mark, the original registration of the trade mark shall, after the expiration of five years from the date of its original registration, be taken to be valid in all respects unless such registration was obtained by fraud, or unless the trade mark offends against the provisions of sub-section (3) of section 14.

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45. Saving for words used as name or description of an article or a substance.—The registration of a trade mark shall not be deemed to have become invalid by reason only of any use after the date of the registration of any word which the trade mark contains or of which it consists as the name or description of an article, substance or service:

Provided that if it is proved either—

(a) that there is a famous and established use of the said word as the name or description of the article, substance or service by a person or persons carrying on trade therein, not being use in relation to goods or services connected in the course of trade with the proprietor or a licensee of the trade mark or in the case of a certification trade mark in relation to goods or services certified by the proprietor; or

(b) that the article or substance has been manufactured under a patent in force at or granted after the commencement of this Ordinance, that a period of two

years or more after the cesser of the patent has clapsed and that the said word is the only practicable name or description of the article or substance,

the provisions of sub-section (2) shall apply.

(2) Where the facts mentioned in clause (a) or (b) of the proviso to sub-section (1) are proved with respect to any words, then—

(a) for the purposes of any proceedings under section 96, if the trade mark consists solely of such words, the registration of the trade mark, so far as regards registration in respect of the article or substance in question or of any goods of the same description, or of the service or of any services of the same description as the case may be, shall be deemed to be an entry wrongly remaining on the Register; or

(b) for the purposes of any other legal proceedings relating to the trade mark—

(i) if the trade mark consists solely of such words, all rights of the proprietor under this Ordinance or any other law for the time being in force to the use of the trade mark; or

(ii) if the trade mark contains such words and other matter, all such rights of the proprietor to the use of such words,

in relation to the article or substance or to any goods of the same description, or to the service or to any services of the same description, as the case may be, shall be deemed to have ceased on the date on which the use mentioned in clause (a) of the proviso to sub-section (1) first became famous and established or at the expiration of the period of two years mentioned in clause (b) of the said proviso.

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CHAPTER V.–INFRINGEMENT PROCEEDINGS

46. Action for infringement.—(1) Save as otherwise provided in this Ordinance, an infringement of a registered trade mark shall be actionable by the proprietor of the trade mark.

(2) In an action for infringement all such relief by way of damages, injunctions, accounts or otherwise shall be available to the proprietor of the trade mark as is available in respect of the infringement of any other property right.

(3) Nothing in this Ordinance shall be deemed to affect rights of action against any person for passing off goods as the goods of another person or services as services provided by another person, or the remedies in respect thereof.

47. Order for erasure of offending mark.—(1) Where a person is found to have infringed a registered trade mark, the High Court or [1][an IP Tribunal] may make an order requiring him—

(a) to cause the offending trade mark to be erased, removed or obliterated from any infringing goods, material or articles in his possession, custody or control; or

(b) to secure the destruction of the infringing goods, material or articles, if is not reasonably practicable for the offending trade mark to be erased, removed or obliterated.

(2) If an order under sub-section (1) is not complied with, or it appears to the High Court or [1][IP Tribunal] likely that such an order would not be complied with, the High Court or [1][an IP Tribunal] may order that infringing goods, material or articles be delivered to such person as the High Court or [1][an IP Tribunal] may direct for erasure, removal or obliteration of the mark, or for destruction, as the case may be.

48. Order for delivery up of infringing goods, material or articles.—(1) The proprietor of a registered trade mark may apply to the High Court or [1][an IP Tribunal] for an order for the delivery up to him, or such other person as the High Court or [1][an IP Tribunal] may direct, of any infringing goods, material or articles which a person has in his possession, custody or control in the course of a business.

(2) An application shall not be made after the expiry of the period specified in section 50, and no order shall be made unless the High Court or [1][an IP Tribunal] also makes, or it appears to the High Court or [1][an IP Tribunal] that there are grounds for making, an order under section 51.

(3) A person to whom any infringing goods, material or articles are delivered in pursuance of an order under this section shall, if an order under section 51 has not been made, retain them pending the making of an order, or the decision not to make an order, under that section.

[1]Subs. by Act No. LVIII of 2023, ss. 12-13.

(4) Nothing in this section shall affect any other power of the High Court or [1][an IP Tribunal].

49. Meaning of "infringing goods, material or articles".—(1) Subject to sub-section (2), goods shall be "infringing goods" in relation to a registered trade mark, if they or their packaging bear a mark identical or deceptively similar to that mark and—

(a) the application of the mark to the goods or their packaging was an infringement of the registered trade mark;

(b) the goads are proposed to be imported into Pakistan and the application of the mark in Pakistan to them or their packaging would be an infringement of the registered trade mark; or

(c) the mark has otherwise been used in relation to the goods in such a way as to infringe the registered trade mark.

(2) Nothing in sub-section (1) shall be construed as affecting the importation of goods which may be lawfully imported into Pakistan.

(3) Material shall be "infringing material" in relation to a registered trade mark, if it bears a mark identical or deceptively similar to that mark and either it is—

(a) used for labeling or packaging goods, as a business paper, or for advertising goods or services, in such a way as to infringe the registered trade mark; or

(b) intended to be so used and such use would infringe the registered trade mark.

(4) "Infringing articles" in relation to a registered trade mark, means such articles which—

(a) are specifically designed or adapted for making copies of a mark identical or similar to that mark; and

(b) a person has in his possession, custody or control, knowing or having reason to believe that they have been or are to be used to produce infringing goods or material.

50. Period after which remedy of delivery be not available.—(1) An application for an order under section 48 shall not be made after the expiry of three years from,

(a) in the case of infringing goods, the date on which the trade mark was applied to the goods or their packaging;

(b) in the case of infringing material, the date on which the trade mark was applied to the material; or

(c) in the case of infringing articles, the date on which they were made, except as provided in sub-section (2).

(2) If during the whole or part of the period specified in sub-section (1), the proprietor of the registered trade mark—

(a) is under a disability; or

(b) is prevented by fraud or concealment from discovering the facts entitling him to apply for an order,

an application may be made at any time before the expiry of three years from the date on which he ceased to be under a disability or, as the case may be, could with reasonable diligence have discovered those facts.

Explanation.—In this sub-section the expression "disability" shall have the same meaning as in the Limitation Act, 1908 (IX of 1908).

51. Order as to disposal of infringing goods, material or articles.—(1) Where infringing goods, material or articles have been delivered up in pursuance of an order under section 48, an application may be made to the High Court or [1][an IP Tribunal] —

(a) for an order that they be destroyed of forfeited to such person as the High Court or [1][an IP Tribunal] may think fit; or

(b) for a decision that no such order should be made.

(2) In considering what order, if any should be made, the High Court or [1][an IP Tribunal] shall consider whether other remedies available in an action for infringement of the registered trade mark would be adequate to compensate the proprietor and any licensee and protect their interests.

(3) Where there are more persons than one interested in the goods, materials or articles, the High Court or [1][an IP Tribunal] shall make such order as it thinks just.

(4) if the High Court or [1][an IP Tribunal] decides that no order should be made under this section; then the person, in whose possession, custody or control the goods, material or articles were before being delivered shall be entitled to their return.

52. Remedy for groundless threats of infringement proceedings.—(1) Where a person threatens to bring an action against another person on the ground that the other person has infringed—

(a) a registered trade mark; or

(b) a trade mark alleged by the person to be registered,

any person aggrieved by the threat may bring proceedings for relief against the person making the threat.

(2) The relief may be applied for any of the following, namely:—

(a) a declaration that the threats are unjustifiable;

(b) an injunction against the continuance of the threats; or

[1]Subs. by Act No. LVIII of 2023, s.14.

(c) damages in respect of any loss he has sustained by the threats.

(3) The plaintiff shall be entitled to any relief specified in sub-section (2) unless the defendant shows that the acts respect in respect of which proceedings were threatened constitute, or if done would constitute, an infringement of the registered trade mark concerned.

(4) If that is shown by the defendant, as provided under sub-section (3), the plaintiff shall be entitled to any relief specified in sub-section (2), if he shows that the registration of the trade marks is invalid or liable to be revoked in a relevant respect.

(5) The mere notification that a trade mark is registered, or that act application for registration has been made, shall not constitute a threat of proceedings for the purposes of this section.

(6) The provisions of this action shall not make a lawyer, advocate or attorney liable to an action for an act done in his professional capacity on behalf of a client.

CHAPTER VI.—IMPORTATION OF INFRINGING GOODS, MATERIAL OR ARTICLES

53. Infringement goods, material or articles may be treated as prohibited.—(1) The proprietor of the registered trade mark may give notice in writing to the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] that—

(a) he is the proprietor of the registered trade mark;

(b) at a time and place specified in the notice, goods which, in relation to that registered trade mark are infringing goods, material or articles, or bear false indications as to their source or the identity of their manufacturer are expected to arrive in Pakistan from outside Pakistan and that they are subject to the control of the customs authorities under the Customs Act, 1969 (IV of 1969); and

(c) he requests the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] to treat such goods as prohibited goods.

54. Notice for intervention by customs authorities.—When any notice to the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] is made under section 53, it shall be accompanied by an undertaking by the person sending the notice to indemnify the customs authorities concerned and to compensate any importer, consignee or owner of the goods for loss or damage resulting from the wrongful suspension of clearance of goods.

[1]Subs. by Act No. LVIII of 2023, ss. 15-16.

55. Furnishing of security or equivalent assurance to customs authority.—The [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] may require an applicant to provide a security or equivalent assurance sufficient to protect the importer, consignee or owner of the goods but such security or equivalent assurance shall not be such as to unreasonable deter recourse to these procedures.

56. Collector of Customs may seize goods bearing infringing trade mark.—If goods to which section 53 applies—

(a) bear on them a trade mark which, in the opinion of the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)], is identical with, or deceptively similar to the registered trade mark; and

(b) are goods in respect of which the trade mark is registered,

the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] shall seize the goods unless he is satisfied that there are no reasonable grounds of believing that the trade mark shall be infringed by the importation of the goods and the seized goods shall be kept in a secure place as directed by the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)].

57. Notice of seizure.—The [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] shall, as soon as practicable—

(a) give, either personally or by urgent post, to the importer, consignee or owner of the goods a notice of seizure in writing identifying the goods and stating that they have been seized under section 56; and

(b) give to the applicant a notice in writing—

(i) identifying the goods and stating that they have been seized under section 56;

(ii) giving the full name and address of the importer, consignee or owner of the goods and any information that the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] has and believes, on reasonable grounds, to be likely to help the applicant to identify the importer or the owner of the goods; and

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[1]Subs. by Act No. LVIII of 2023, ss. 17-19

(iii) stating that the goods shall be released to the importer, consignee or owner of the goods unless the applicant brings an action for infringement of the registered trade mark in respect of goods before [1][an IP Tribunal] having jurisdiction in the matter and gives the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] notice in writing of the action, within the period of ten working days after the applicant has been given the notice, or if the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] extends the period under sub-section (1) of section 60, within such extended period.

58. Forfeiture of goods.—If the importer, consignee or owner of any seized goods, at any time before the applicant starts an action for infringement of the trade mark in respect of goods, by notice in writing to the [1][Director General, TPR (Enforcement), Director, TPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)], gives consent to the goods being forfeited by the Collector of Customs, the goods shall be so forfeited by the [1][Director General, TPR (Enforcement), Director, TPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)].

59. Release of goods.—(1) The [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] shall release the seized goods to their designated importer, consignee or owner if, within the specified period, the applicant has not—

(a) brought an action for infringement of the registered trade mark in respect of the goods; and

(b) given to the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] notice in writing of the action.

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(2) The [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] shall also release the seized goods to their designated importer, consignee or owner if—

(a) before the end of the prescribed period, the applicant, by notice in writing to the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)], consented to the release of the goods; and

(b) at that time,

[1]Subs. by Act No. LVIII of 2023, ss. 19-21.

(i) the applicant has not brought an action for infringement of the registered trade mark in respect of the goods; or

(ii) the action brought by the applicant has been withdrawn.

(3) The [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] may release the seized goods to their designated importer, consignee or owner before the end of the specified period if—

(a) having regard to information that has come to his knowledge after the goods were seized, he is satisfied that there are no reasonable grounds of believing that the registered trade mark has been infringed by the importation of the goods; and

(b) the applicant has not so far brought an action for infringement of the registered trade mark in respect of the goods, or has not informed him of such an action.

60. Action for infringement against importation of infringing goods.—(1) The applicant may bring an action for infringement of a registered trade mark in respect of the seized goods and give a notice to the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)], subject to the provisions of clause (b), within ten working days specified in the notice given to the applicant in respect of the goods, under section 57 or if—

(i) the applicant has, before the expiry of the specified period, applied in writing to the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] for a extension of the specified period; and

(ii) the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)], being satisfied that in the circumstances of the case it is fair and reasonable to do so, has extended the specified period for a number of working days not exceeding ten days, within that period so extended by the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)].

(2) [1][an IP Tribunal] hearing the action—

(a) may, on the application of any person, allow that person to be joined as a defendant in the case; and

(b) shall allow the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)], or his duly authorised officer, to appear and be heard.

[1]Subs. by Act No. LVIII of 2023, ss. 21-22

(3) Subject to sub-section (4), in addition to any relief that [1][an IP Tribunal] may grant apart from the provisions of this section, the Court may—

(a) at any time, if it thinks it just, order that the seized goods be released to their designated owner subject to such conditions that the Court considers fit to impose; or

(b) order that the seized goods be forfeited.

(4) [1][An IP Tribunal] shall not make any order which may facilitate—

(a) re-exporting of the counterfeit trade mark goods;

(b) removing of the trade marks which have been affixed to the counterfeit trade mark goods without authorization; and

(c) local sale of such goods.

(5) if [1][an IP Tribunal] decides that the registered trade mark was not infringed by the importation of the goods and the designated importer, consignee or owner of the goods, satisfies the Court that he has suffered losses or damage because the goods were seized, the Court may order the applicant to pay the defendant compensation, in the amount determined by the Court, for any part of the loss or damage that is attributable to any period beginning on or after the day on which the action was brought.

(6) If, after three weeks from the day on which the action was brought, there is not in force at any time an order of a [1][an IP Tribunal] preventing the goods from being released, the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] shall release the goods to their designated importer, consignee or owner.

(7) If [1][an IP Tribunal] orders that the goods be released, the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] shall, subject to section 63, comply with the order.

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61. Action for infringement by licensee in relation to any seized goods.—If an exclusive licensee of a registered trade mark is an applicant in relation to any seized goods, the licensee may commence an action for the infringement of the registered trade mark in respect of the goods within the required period without first ascertaining whether the proprietor is willing to bring the action.

62. Disposal of forfeited goods.—(1) Subject to sub-section (2), any goods forfeited under the provisions of this Chapter shall be disposed of by the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] in the manner as if the goods were forfeited under the Customs Act, 1969 (IV of 1969).

[1]Subs. by Act No. LVIII of 2023, ss. 22-23

(2) The [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] shall not dispose of goods in a manner which may facilitate—

(a) re-exporting of the counterfeit trade mark goods;

(b) removing of the trade marks which have been affixed to the counterfeit trade mark goods without authorization; and

(c) local sale of such goods.

63. Power of the Collector of Customs to retain control of goods.—Notwithstanding anything contained in this Chapter, the [1][Director General, IPR (Enforcement), IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] shall not—

(a) release, or dispose of, any goods; or

(b) take any action in relation to the goods to given effect to any order of [an IP Tribunal] under section 60, and [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] shall apply to the District Court to request that the goods are required and he may be allowed to retain control of the goods under any law for the time being in force.

64. Insufficient security.—if security give under section 55 by the applicant who gave notice in respect of a registered trade mark under section 53 or section 61 is not sufficient to meet the expenses incurred by the Federal Government as a result of the action taken by the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] under this Chapter, because of the notice, the amount of the difference in the expenses and the amount of security—

(a) shall be a debt due by the applicant to the Federal Government; and

(b) shall be recovered by the Federal Government under section 202 of the Customs Act, 1969 (IV of 1969).

65. The Federal Government not be liable to loss, etc., suffered because of seizure.—The Federal Government shall not be liable to any loss, damage or delays suffered by a person—

(a) because the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] seized or failed to seize goods under this Chapter; or

(b) because of release of any seized goods.

[1]Subs. by Act No. LVIII of 2023, ss. 23-26.

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66. Power of the Collector of Customs to make regulations.—The [1][Director General, IPR (Enforcement)] may make regulations prescribing the form in which notices shall be made and requiring the person making the notices to furnish evidence as to the ownership and to comply with such other conditions as may be specified which may include the payment of a fee to cover the administrative costs.

CHAPTER VII.— UNFAIR COMPETITION AND COMPARATIVE ADVERTISEMENT

67. Definition of unfair competition and provisions relating thereto.—(1) An "unfair competition" means any act of competition contrary to honest business practices in industrial or commercial matters and, without prejudice to the generality of the foregoing, such acts may include—

(a) all acts of such nature as to create confusion by any means whatsoever with the establishment, goods, services or industrial or commercial activities of a competitor;

(b) false allegations in the course of trade of such a nature as to discredit the establishment, goods, services or industrial or commercial activities of a competitor;

(c) indications or allegations the use of which in the course of trade is liable to mislead the public as to the nature, manufacturing process, characteristics, constituents, quality or the suitability for their purpose of the goods or services;

(d) any act or practice, in the course of industrial or commercial matters that results in the disclosure, acquisition or use by others of information without the consent of the person lawfully in control of that information in a manner contrary to honest industrial or commercial practice so long as such information relates to sale or manufacture of goods or provision of services and—

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(i) is secret in the sense that it is not, as a body or in the precise configuration and assembly of its components, generally known among or readily accessible to persons within the circles that normally deal with the kind of information in question;

(ii) has commercial value because it is secret; and

(iii) has been subject to reasonable steps under circumstances, by the person lawfully in control of the information, to keep it secret;

[1]Subs. by Act No. LVIII of 2023, s.27.

(e) making of false or deceptive statements in the course of trade;

(f) misleading advertising; or

(g) fraudulently registering or applying for registration of a trade mark.

Explanation.—For the purposes of clause (d) "a manner contrary to honest industrial or commercial practice" shall mean, at least, practices such as breach of contract, breach of confidence and inducement to breach, and includes the acquisition of undisclosed information by third parties who knew, or were grossly negligent in failing to know, that such parties were involved in the acquisition.

(2) Any act of unfair competition shall be unlawful.

(3) An action against unfair competition may be brought before [1][an IP Tribunal] of competent jurisdiction.

68. Misleading and comparative advertisement.—(1) Comparative advertisement shall, as far as comparison is concerned, be lawful subject to the following conditions, namely:—

(a) it is not misleading according to clause (xxiv) of section 2, and sub-section (2);

(b) it compares goods or services meeting the same needs or intended for the same purpose;

(c) it objectively compares one or more material, relevant, verifiable and representative features of those goods and services, which may include price;

(d) it does not create confusion in the market place between the advertiser and a competitor or between the advertiser's trade marks, trade names, other distinguishing marks, goods or services and those of the competitor;

(e) it does not discredit or disparage the trade marks, trade names, other distinguishing marks, goods, services, activities or circumstances of a competitor;

(f) for products with designation of origin, it relates in each case to products with same designation;

(g) it does not take unfair advantage of the reputation of a trade mark, trade name or other distinguishing marks of a competitor or of the designation of origin of competing products; and

(h) it does not present goods or services as imitations or replicas of goods or services bearing a protected trade mark or trade name.

[1]Subs. by Act No. LVIII of 2023, s.28.

(2) In determining whether an advertising is misleading, the tribunal shall take account of all its features, and in particular of any information it contains concerning—

(a) the characteristics of goods or services, such as their availability, nature, execution, composition, method and date of manufacture or provision, fitness for purpose, uses, specification, geographical or commercial origin or the results to be expected from their use, or the results and material features of tests or checks carried out on the goods or services;

(b) the price or the manner in which the price is calculated, and the conditions on which the goods are supplied or the services provided; and

(c) the nature, attributes and rights of the advertiser, such as his identity and assets, his qualifications and ownership of industrial, commercial or intellectual property rights or his awards and distinctions.

(3) Any person having a legitimate interest in prohibiting misleading advertisement or regulating comparative advertising may institute legal action against such advertising before the tribunal.

(4) For all complaints made to the tribunal under sub-section (3), the tribunal shall take into account all the interests involved and in particular the public interest before it orders—

(a) publication of a corrective statement by the advertiser;

(b) cessation of misleading advertising or unpermitted comparative advertising; or

(c) if the misleading advertising or unpermitted comparative advertising has not yet been published but publication is imminent, the prohibition of such publication.

(5) This section shall not exclude voluntary control of misleading or comparative advertisement by self-regulatory bodies and recourse to such bodies by the persons if proceedings before such bodies are in addition to the tribunal proceedings referred to in sub-section (3).

CHAPTER VIII.—ASSIGNMENT AND TRANSMISSION

69. Assignment of registered trade mark.—(1) A registered trade mark shall be transmissible by assignment, testamentary disposition or operation of law in the same way as other personal or movable property.

(2) A registered trade mark shall also be transmissible either in connection with the goodwill of a business or independently.

(3) An assignment or other transmission of a registered trade mark tray be partial, that is, limited so as to apply—

(a) in relation to some but not all of the goods or services for which the trade mark is registered; or

(b) in relation to use of the trade mark in a particular manner or a particular locality.

(4) An assignment of a registered trade mark, or an assent relating to a registered trade mark shall not be effective unless it is in writing signed by, or on behalf of, the assignor or, as the case may be, a personal representative.

(5) The provisions of sub-section (4) shall apply to assignment by way of security as in relation to any other assignment.

(6) Assignment or other transmission of a registered trade mark shall be the subject of charge in the same way as other personal or movable property.

(7) Nothing in this Ordinance shall be construed as affecting the assignment or other transmission of an unregistered trade mark as part of the goodwill of a business.

70. Registration of transactions affecting registered trade mark.—(1) On application being made to the Registrar by—

(a) a person claiming to be entitled to an interest in, or under, a registered trade mark by virtue of a registerable transaction; or

(b) any other person claiming to be affected by such a transaction,

the prescribed particulars of the transaction shall be entered in the Register.

(2) The following shall be registerable transactions, namely:—

(a) an assignment of a registered trade mark or any right in it;

(b) the grant of a license under a registered trade mark;

(c) the granting of any security interest whether fixed of floating over a registered trade mark or any right in or under it;

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(d) the making by personal representatives of an assent in relation to a registered trade mark or any right in or under it; and

(e) an order of the High Court, [1][IP Tribunal] or other competent authority transferring a registered trade mark or any right in or under it.

(3) Until an application has been made for registration of the prescribed particulars of a registerable transaction—

[1]Subs. by Act No. LVIII of 2023, s.29.

(a) the transaction shall be ineffective as against a person acquiring a conflicting interest in, or under, the registered trade mark in ignorance of it; and

(b) a person claiming to be a licensee by virtue of the transaction shall not have the protection of section 69, 77 or 79.

(4) Provisions may be made by rules as to—

(a) the amendment of registered particulars relating to a licence so as to reflect any alteration of the terms of licence; and

(b) the removal of such particulars from the Register—

(i) where it appears from the registered particulars that the licence was granted for a fixed period and that period has expired; or

(ii) where no such period is indicated and, after such period as tray be prescribed, the Registrar has informed the parties of his intention to remove the particulars from the Register.

(5) Provision may also be made by rules as to the amendment or removal from the Register of particulars relating to a security interest on the application of, or with the consent of, the person entitled to the benefit of the interest.

71. Application for registration of trade mark as an object of property.—(1) The provisions of sub-section (1) of section 39, sub-sections (2) to (7) of section 24, section 69 and section 70 shall apply, with the necessary modifications, in relation to an application for the registration of a trade mark as in relation to a registered trade mark.

(2) In section 70 as it applies in relation to transaction affecting an application for the registration of a trade mark, the references to the entry of particulars in the Register, and to the making of an application to register particulars, shall be construed as references to the giving of notice to the Registrar of those particulars.

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CHAPTER IX.—USE OF TRADE MARKS AND LICENSEES

72. Proposed use of trade mark by company to be formed.—(1) No application for the registration of a trade mark in respect of any goods or services shall be refused, nor shall permission for such registration be withheld, on the ground only that it appears that the applicant does not use or propose to use the trademark, if the Registrar is satisfied that—

(a) a company is about to be formed and registered under the Companies Ordinance, 1984 (XLVII of 1984), or any modification thereof and that the applicant intends to assign the trade mark to that company with a view to the use thereof in relation to those goods or services by the company; or

(b) the applicant intends it to be used by way of permitted use.

(2) The provisions of section 73 shall have effect, in relation to a trade mark registered under this sub-section, as if for the references, in clause (a) of subsection (1) of that section to intention on the part of an applicant for registration that a trade mark should be used by him there were substituted a reference to intention on his part that it should be used by the company or the authorised user concerned.

(3) The tribunal may, in a case to which clause (a) of sub-section (1) applies, require the applicant to give security for the costs of any proceedings relating to any opposition or appeal, and in default of such security being duly given, may treat the application as abandoned.

(4) Where in a case to which clause (a) of sub-section (1) applies, a trade mark in respect of any goods or services is registered in the name of an applicant who relies on intention to assign the trade mark to a company, then unless within such period as may be prescribed or within such further period not exceeding six months as the Registrar may, on application being made to him in the prescribed manner, allow, the company has been registered as the proprietor of the trade mark in respect of those goods or services, the registration shall cease to have effect in respect thereof at the expiration of that period and the Registrar shall amend the Register accordingly.

73. Revocation of registration.—(1) The registration of a trade mark may be revoked on any of the following grounds, namely:—

(a) that within the period of five years following the date of completion of registration procedure it has not been put to *bona fide* use in Pakistan by the proprietor or by an authorised user thereof, in relation to the goods or services for which it is registered and there are no proper reasons for its non-use;

(b) that the *bona fide* use has been suspended for an uninterrupted period of five years and there are no proper reasons for its non-use;

(c) that in consequence of acts or inactivity of the proprietor. it has become the common name in the trade for a product or service for which it is registered; and

(d) that in consequence of the use made of it by the proprietor, or with his consent in relation to the goods or services for which it is registered, it is liable to mislead the public, particularly as to the nature, quality or geographical origin of those goods or services.

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(2) For the purpose of sub-section (1), use of trade mark shall include use in a form differing in elements which do not alter the distinctive character of the mark in the form in which it was registered.

(3) The registration of a trade mark shall not be revoked on the grounds specified in clause (a) or (b) of sub-section (1), if such use, as it referred to in those clauses, is commenced or resumed after the expiry of the five years' period and before the application for revocation is made:

Provided that any such commencement or resumption of use after the expiry of five years period but only three months before the application for revocation is made, shall only be regarded if the preparation for commencement or resumption began before the proprietor became aware that the application is made.

(4) An application for revocation may be made by an interested party to the Registrar, except that—

(a) if proceedings concerning the trade mark in question are pending in the High Court [1][* * *], the application shall be made to the High Court [1][* * *]; and

(b) in case the application is made to the Registrar, he may at any stage of the proceedings refer the application to the High Court [1][* * *].

(5) Where grounds for revocation exist in respect of only some of the goods or services for which the trade mark is registered, revocation shall relate to those goods or services only.

(6) Where the registration of a trade mark is revoked to any extent, the rights of the proprietor shall be deemed to have ceased to that extent as from—

(a) the date of the application for revocation; or

(b) if the Registrar, [1][or the High Court] is satisfied that the grounds for revocation existed at an earlier date, that date.

(7) Where the registration of a trade mark is revoked or declared invalid on the ground that the registration was secured in bad faith, the applicant shall be barred from applying for registration of the identical or similar trade mark for two years from the date of revocation or invalidation, whatever her the case may be.

74. Use of trade mark by a person other than the proprietor thereof.—(1) The permitted use of a trade mark shall be deemed to be use of the trade mark by the owner of the trade mark and shall be deemed not to be used of the trade mark by a person other than the owner for any purpose for which such use is material under this Ordinance or any other law for the time being in force.

(2) The tribunal while determining as to whom the benefit of use of a trade mark be passed, shall pass the benefit to none else, except to—

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(a) the proprietor of the trade mark, if the trade mark is registered; or

(b) the owner of the trade mark, if the trade mark is entitled to protection under the Paris Convention as a well known trade mark.

75. Licensing of registered trade mark.—(1) A license to use a registered trade mark may be general or limited.

(2) A limited licensee may, in particular, apply—

(a) in relation to some but not all of the goods or services for which the trade mark is registered; or

[1]Omitted and Subs. by Act No. LVIII of 2023, s.30.

(b) in relation to the use of the trade mark in a particular manner or a particular locality.

(3) A license shall not be effective unless it is in writing signed by or on behalf of the grantor.

(4) Unless the license provides otherwise, it shall be binding on a successor in title to the grantor's interest.

(5) Where the license so provides, a sub-license may be granted by the licensee; and references in this Ordinance to a license or licensee shall include a sub-license or sub-licensee.

76. Exclusive license defined.—(1) In this Ordinance, an "exclusive license" means a license, whether general or limited, authorizing the licensee to the exclusion of all other persons including the person, granting the license, to use a registered trade mark in the manner authorised by the license and the expression "exclusive licensee" shall be construed accordingly.

(2) An exclusive licensee shall have the same rights against a successor in title who is bound by the license as he has against the person granting the license.

77. General provisions as to the rights of licensees in case of infringement.—(1) Save as provided in section 61, a licensee shall be entitled, unless his licensee, or any licensee through which his interest is derived, provides otherwise, to call on the proprietor of the registered trade mark to take infringement proceedings in respect of any matter which affects his interests:

Provided that if the proprietor—

(a) refuses to do so; or

(b) fails to do so within two months after being called upon,

the licensee may bring the proceedings in his own name as if he were the proprietor.

(2) Where infringement proceedings are brought by a licensee under this section, the licensee may not, without the leave of the High Court or [1][an IP Tribunal], proceed with the action unless the proprietor is either joined as a plaintiff or added as a defendant;

Provided that this shill not affect the granting of interlocutory relief on an application by a licensee alone.

(3) A proprietor who is added as a defendant as provided in sub-section (2) shall not be made liable for any costs in the action unless he takes part in the proceedings.

(4) In infringement proceedings brought by the proprietor of a registered trade mark any loss suffered or likely to be suffered by licensees shall be taken into account and the High Court or [1][an IP Tribunal] may give such directions as it thinks fit as to the extent to which the plaintiff shall hold the proceeds of any pecuniary remedy on behalf of licensees.

[1]Subs. by Act No. LVIII of 2023, s.31.

(5) The provisions of this section shall apply in relation to an exclusive licensee if or to the extent that he has, under sub-section (1) of section 78, the rights and remedies of an assignee as if he were the proprietor of the registered trade mark.

78. Exclusive licensee having rights and remedies of assignee.—(1) An exclusive license may provide that the licensee shall have, to such extent as may be provided by the license, the same rights and remedies in respect of matters occurring after the grant of the license as if the license had been assignment. Where or to the extent that such provision is made, the licensee shall be entitled, subject to the provisions of the license and to the following provisions of this section, to bring infringement proceedings, against any person other than the proprietor, in his own name.

(2) Any such rights and remedies of an exclusive licensee shall be concurrent with those of the proprietor of the registered trade mark, and references to the proprietor of a registered trade mark in this Ordinance relating to infringement shall be construed accordingly.

(3) In an action brought by an exclusive licensee by virtue of this section, a defendant may avail himself of any defence which would have been available to him if the action had been brought by the proprietor of the registered trade mark.

(4) Where proceedings for infringement of a registered trade mark brought by the proprietor or an exclusive licensee relate wholly or partly to an infringement in respect of which they have concurrent rights of action, the proprietor or, as the case may be, exclusive licensee may not, without the leave of the High Court or [1][an IP Tribunal], proceed with the action unless the other is either joined as plaintiff or added as a defendant:

Provided that this shall not affect the granting of interlocutory relief on an application by a proprietor or exclusive licensee alone.

(5) A person who is added as a defendant as mentioned in sub-section (4) shall not be made liable for any costs in the action unless he takes part in the proceedings.

(6) Where an action for infringement of a registered trade mark is brought which relates wholly or partly to an infringement in respect of which the proprietor and an exclusive licensee have or had concurrent rights of action—

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(a) the High Court or [1][an IP Tribunal] shall in assessing damages take into account—

(i) the terms of the license; and

(ii) any pecuniary remedy already awarded or available to either of them in respect of the infringement;

[1]Subs. by Act No. LVIII of 2023, s.31-32

(b) no account of profits shall be directed if an award of damages has been made, or an account of profits has been directed, in favour of the other of them in respect of the infringement; and

(c) the High Court or [1][an IP Tribunal] shall if an account of profits is directed apportion the profits between them as it, subject to any agreement between them, considers just.

(7) The provisions of sub-section (6) shall apply whether or not the proprietor and the exclusive licensee are both parties to the action, the High Court or [1][an IP Tribunal] may give such directions as it thinks fit as to the extent to which the party to the proceedings shall hold the proceeds of any pecuniary remedy on behalf of the other.

(8) The proprietor of a registered trade mark shall inform any exclusive licensee who has a concurrent right of action before applying for an order under section 48, and the High Court or [1][an IP Tribunal] may, on the application of the licensee, make such order under that section as it thinks fit having regard to the license.

(9) The provision of sub-sections (4) to (8) shall have effect subject to any agreement to the contrary between the exclusive licensee and the proprietor.

79. Surrender of registered trade mark.—(1) A registered trade mark may be surrendered by the proprietor in respect of some, or all, of goods or services for which it is registered.

(2) Provisions may be made by rules,

(a) as to the manner and effect of a surrender; and

(b) for protecting the interests of other persons having right in the registered trade mark.

80. Grounds for invalidity of registration.—(1) The registration of a trade mark may be declared invalid on the ground that the trade mark was registered in breach of section 14 or any of the provisions thereof.

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(2) Where the trade mark was registered in breach of clause (b). (c) or (d) of sub-section (1) of section 14, it shall not be declared invalid if, in consequence of the use which has been made of it, it has after registration acquired a distinctive character in relation to the goods or services for which it is registered.

(3) The registration of a trade mark may be invalid on the ground that there is—

(a) an earlier trade mark in relation to which the conditions set out in subsection (1), (2) or (3) of section 17 obtain; or

(b) an earlier right in relation to which the condition set out in sub-section (4) of section 17 is satisfied,

[1]Subs. by Act No. LVIII of 2023, s.32.

unless the proprietor of that earlier trade mark or other earlier right has consented to the registration.

(4) An application for declaration of invalidity may be made by an interested party either to the Registrar or to the High Court [1][* * *], except that—

(a) if proceedings concerning the trade mark in question are pending in the High Court [1][* * *], the application shall be make to the High Court [1][* * *]; and

(b) in any other case, if the application has been made to the Registrar, he may at any stage of the proceedings refer the application to the High Court [1][* * *].

(5) [1][* * * * * * * *]

(6) Where the grounds of invalidity exist in respect of only some of the goods or services for which the trade mark is registered, the trade mark shall be declared invalid as regards those goods or services only.

(7) Where the registration of a trade mark has been declared invalid to any extent, the registration shall to that extent be deemed never to have been made provided that this shall not affect the transactions past and closed.

81. Effect of acquiescence.—(1) Where the owner of an earlier trade mark, or other earlier rights, has acquiesced for a continuous period of five years from the date of registration in the use of a registered trade mark in Pakistan, being aware of that use, there shall cease to be any entitlement on the basis of that earlier trade mark or other right—

(a) to apply for a declaration that the registration of the later trade mark is invalid; or

(b) to oppose the use of the later trade mark in relation to the goods or services in relation to which it has been so used,

unless the registration of the later trade mark was applied for or used in bad faith.

(2) Where sub-section (1) applies, the proprietor of the later trade mark shall not be entitled to oppose the use of the earlier trade mark or, as the case may be, the exploitation of the earlier right, notwithstanding that the earlier trade mark or right may or longer be invoked against his later trade mark.

82. Collective marks.—(1) A collective mark shall be a mark distinguishing the goods or services of members of the association which is the proprietor of the mark from those of other undertakings.

(2) The provisions of this Ordinance shall apply to collective marks subject to the provisions of the First Schedule.

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[1]Omitted by Act No. LVIII of 2023, s.33.

83. Certification marks.—(1) A certification mark shall be a mark indicating that the goods or services in connection with which it is used are certified by the proprietor of the mark in respect of origin, mode of manufacture of goods or performance of services, quality, accuracy or other characteristics.

(2) The provisions of this Ordinance shall apply to certification marks subject to the provision of the Second Schedule.

84. Domain names.—(1) A domain name shall be a mark which is a user friendly substitute for an Internet address.

(2) The provisions of this Ordinance shall apply to domain names subject to the provisions of the Third Schedule.

CHAPTER X.—THE PARIS CONVENTION

85. Meaning of "Paris Convention" and "Convention country".—In this Ordinance—

(a) "Paris Convention" means the Paris Convention for the Protection of Industrial Property of the 20th March, 1833, as revised or amended from time to time; and

(b) a "Convention country" means a country other than Pakistan which is a party to the Paris Convention.

86. Protection of well known trade mark.—(1) Reference in this Ordinance to a trade mark which is entitled to protection as well-known trade mark shall be to a mark which is so entitled under the Paris Convention and which is well-known in Pakistan as being the mark of a person who—

(a) is a national of a Convention country; or

(b) is domiciled in, or has a real and effective industrial or commercial establishment in, a Convention country, whether or not that person carries on business, or has any goodwill, in Pakistan and references to the proprietor of such a mark shall be construed accordingly.

(2) For the purposes of this Ordinance, the tribunal while determining whether a trade mark is well known, without having to require registration or actual use in the form of sales of goods or services under the trade mark in Pakistan, shall consider the following factors as relevant criteria for establishing the well known status of the trade mark, namely:—

(i) the amount of Pakistan or worldwide recognition of the trade mark;

(ii) the degree of inherent or acquired distinctiveness of the trade mark;

(iii) the Pakistan or worldwide duration of the use and advertising of the trade mark;

(iv) the Pakistan or worldwide commercial value attributed to the trade mark;

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(v) the Pakistan or worldwide geographical scope of the use and advertising of the trade mark;

(vi) the Pakistan or worldwide quality and image that the trade mark has acquired; and

(vii) the Pakistan or worldwide exclusivity of use and registration attained by the trade mark and the presence or absence of identical or deceptively similar third party trade marks validly registered or used in relation to identical or similar goods and services.

(3) The owner of a trade mark which is entitled to protection under the Paris Convention as a well-known trade mark shall be entitled to restrain by injunction the use in Pakistan of a trade mark which, or the essential part of which, is identical or deceptively similar to the well-known trade mark—

(a) in relation to identical or similar goods or services, where the use is likely to cause confusion; or

(b) where such use causes dilution of the distinctive quality of the well-known trade mark.

(4) Rights conferred under sub-section (3) shall be subject to the provisions of section 81 and nothing in the said sub-section shall affect the continuation of any *bona fide* use of a trade mark begun before the commencement of this Ordinance.

87. National emblems of Convention countries.—(1) A trade mark which consist of or contains the flag of a Convention country shall not be registered without the authorization of the competent authorities of that country, unless it appears to the Registrar that use of the flag in the manner proposed is permitted without such authorization.

(2) A trade mark which consist of, or contains, the armorial bearings or any other state emblem of a Convention country which is protected under the Paris Convention shall not be registered without the authorization of the competent authorities of that country.

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(3) A trade mark which consists of, or contains, official mark or hallmark adopted by a Convention country and indicating control and warranty shall not, where the mark or hallmark is protected under the Paris Convention, be registered in relation to goods or services of the same, or a similar kind, as those in relation to which it indicates control and warranty, without the authorization of competent authorities of the country concerned.

(4) The provisions of this section as to national flag and other state emblem, and official mark or hallmark, shall apply equally to anything which from a heraldic point of view imitates such flag or other emblem, mark or hallmark.

(5) Nothing in this section shall prevent the registration of a trade mark on the application of the national of a country who is authorized to make use of a state emblem, or official mark or hallmark, of that country, notwithstanding that it is similar to that of another country.

(6) Why by virtue of this section the authorization of competent authorities of a Convention

country is or would be required for the registration of a trade mark, those authorities shall be entitled to restrain by injunction any use of the mark in Pakistan without their authorization.

88. Emblems of certain international organizations.—(1) A trade mark which consists of or contains any such emblem, abbreviations or name which is protected under the Paris Convention shall not be registered without the authorization of the international organization concerned, unless it is appears to the Registrar that the use of the emblem, abbreviation or name in the manner proposed—

(a) is not such as to suggest to the public that a connection exists between the organization and the trade mark; or

(b) is not likely to mislead the public as to the extent of a connection between the user and the organization.

(2) The provisions of this section as to emblem of an international organization shall apply equally to anything which from a heraldic point of view imitates any such emblem.

(3) When under this section the authorization of an international organizations is, or would be, required for the registration of a trade mark, that organization shall be entitled to restrain by injunction any use of the mark in Pakistan without its authorization.

(4) Nothing in this section shall affect the rights of a person whose *bona fide* use of the trade mark in question began before the commencement of this Ordinance.

89. Notifications under Article 6ter of the Paris Convention.—(1) For the purposes of section 87, state emblem of a Convention country, other than the national flag, and official marks and hallmarks, shall be regarded as protected under the Paris Convention only if, or to the extent that—

(a) the country in question has notified Pakistan in accordance with Article 6*ter(3)* of the Paris Convention that it desires to protect that emblem, mark or hallmark;

(b) the notification remains in force; and

(c) Pakistan has not objected to it in accordance with Article *6ter*(4) of the Paris Convention or any such objection has been withdrawn.

(2) For the purposes of section 88, the emblems, abbreviations and names of an international organization shall be regarded as protected under the Paris Convention only if, or to the extent that—

(a) the organization in question has notified Pakistan in accordance with Article 6*ter*(3) of the Paris Convention that it desires to protect that emblem, abbreviation and name;

(b) the notification remains in force; and

(c) Pakistan has not objected to it in accordance with Article *6ter*(4) of the Paris Convention or any such objection has been withdrawn.

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(3) A notification under Article *6ter*(3) of the Paris Convention shall have effect only in relation to applications for registration made more than two months after the receipt of such notification.

(4) The Registrar shall keep and make available for public inspection by any person, at all reasonable hours and free of charge, a list of—

(a) the state emblems and official marks or hallmarks: and

(b) the emblems, abbreviations and names of international organizations,

Which are for the time being protected under the Paris Convention by virtue of notification under Article *6ter*(3) of the Paris Convention.

90. Acts of agent or representative.—(1) Where an application for registration of a trade mark is made by a person who is an importer, or an agent not being an agent under section 128, or a representative of a person who is the proprietor of the mark in a Convention country, then—

(a) if the proprietor opposes the application, registration shall be refused; or

(b) if the application, not being so opposed, is granted, the proprietor may—

(i) apply for the declaration of the invalidity of the registration; or

(ii) apply for the rectification of the Register so as to substitute his name as the proprietor of the registered trade mark.

(2) The proprietor may notwithstanding the rights conferred by this Ordinance, in relation to a registered trade mark, by injunction restrain any use of the trade mark in Pakistan which is not authorised by him.

(3) The provisions of sub-section (1) or (2) shall not apply if, or to extent that, the agent or representative justifies his action.

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(4) An application under clause (a) or (b) of sub-section (1) shall be made within three years of the proprietor becoming aware of the registration, and no injunction shall be granted under sub-section (2) in respect of a use in which the proprietor has acquiesced for a continuous period of three years or more.

91. Nature of goods or services to which a mark is to be applied.—For the purposes of registration of a trade mark under this Ordinance, the nature of goods or services to which a trade mark is to be applied shall in no case form an obstacle to the registration of the trade mark.

92. Trade name.—A trade name shall be protected without the obligation of filing or registration under this Ordinance whether it forms part of a trade mark or not.

[1][CHAPTER-XA.—

INTERNATIONAL REGISTRATION OF TRADE MARKS

92A. International registration under Madrid Protocol.—The provisions of this Chapter shall apply to international applications and international registrations under the Madrid Protocol.

92B. Definitions.—In this Chapter, unless the context otherwise requires, —

(i) "application", in relation to a contracting state or a contracting organization, means an application made by a person who is a citizen of, or is domiciled in, or has a real and effective industrial or commercial establishment in, that contracting state or a state which is a member of that contracting organization, as the case may be.

Explanation.—For the purposes of this clause, "real and effective industrial or commercial establishment" means and includes any establishment where some *bona fide* industrial or commercial activity takes place and need not necessarily be the principal place of business;

(ii) "basic application" means an application for the registration of a trade mark filed under section 22 and which is used as a basis for applying for an international registration;

(iii) "basic registration" means the registration of a trade mark under section 33 and which is used as a basis for applying for an international registration;

(iv) "common regulations" means the Common Regulations under the Madrid Agreement Concerning the International Registration of Marks and the Protocol Relating to that Agreement;

(v) "contracting organization" means a contracting party that is an inter-governmental organization;

(vi) "contracting party" means a contracting state or contracting organization party to the Madrid Protocol;

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(vii) "contracting state" means a country party to the Madrid Protocol;

(viii) "designation", with its grammatical variations, is a request for the extension of protection under Article 3ter(1) or (2) of the Madrid Protocol, as the case may be; it also means such extension as recorded in the International Register;

(ix) "designated contracting party" is a Contracting Party for which the extension of protection has been requested under Article 3ter(1) or (2) of the Madrid Protocol, as the case may be, or in respect of which such extension has been recorded in the international register;

(x) "international application" means an application for international registration or for extension of the protection resulting from an international registration to any contracting party made under the Madrid Protocol;

[1]Ins. by Act No. LVIII of 2023, s.34.

(xi) "international bureau" means the international bureau of the world intellectual property organization;

(xii) "international registration" means the registration of a trade mark in the register of the international bureau effected under the Madrid Protocol;

(xiii) "Madrid Agreement" means the Madrid Agreement Concerning the International Registration of Marks adopted at Madrid on the l4th day of April, 1891, as subsequently revised and amended;

(xiv) "Madrid Protocol" means the Protocol relating to the Madrid Agreement Concerning the International Registration of Marks adopted at Madrid on the 27th day of June, 1989, as amended from time to time; and

(xv) "office of origin" means the office through the intermediary of which the international application is filed in accordance with Article 2(2) of the Madrid Protocol.

92C. Trade Marks Registry to deal with international applications.—An international application shall be dealt with by the Trade Marks Registry or such branch offices of the Registry, as the Organization may specify.

92D. International application originating from Pakistan.—(1) Where an application for registration of a trade mark has been made under section 22 or a trade mark has been registered under section 33, the applicant or the registered proprietor may make an international application on the form prescribed by the Common Regulations for international registration of that trade mark.

(2) A person holding an international registration may make an international application on the form prescribed by the Common Regulations for extension of the protection resulting from such registration to any other contracting party.

(3) An international application under sub-section (1) or sub-section (2) shall designate the contracting parties where the protection resulting from the international registration is required.

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(4) The Registrar shall certify in the prescribed manner that the particulars appearing in the international application correspond to the particulars appearing, at the time of the certification, in the application under section 22 or the registration under section 33, and shall indicate the date and number of that application or the date and number of that registration as well as the date and number of the application from which that registration resulted, as the case may be, and shall within the prescribed period, forward the international application to the international bureau for registration, also indicating the date of the international application.

92G. Duration and renewal of international registration.—(1) The international registration of a trade mark at the international bureau shall be for a period of ten years and may be renewed for a period of ten years from the expiry of the preceding period.

(2) Subject to payment of a surcharge prescribed by the rules, a grace period of six months shall be allowed for renewal of the international registration.

92H. Transformation.—The date of filing of an application for the registration of a trade mark made to the Registrar in accordance with Article 9 quinquies of the Madrid Protocol shall be the date of the cancelled international registration and, if the international registration enjoyed the right of priority, the application shall enjoy the same priority.

92I. Extracts from the international register.—(1) Extracts from the international register issued by the international bureau shall be exempt from any legalization in Pakistan.

(2) In all legal proceedings relating to a trade mark in an international registration in which Pakistan is a designated contracting party, the fact that a person is recorded as proprietor thereof in the international register shall be *prima facie* evidence of the validity of the international registration of the trade mark and of all subsequent assignments and transmissions thereof.]

CHAPTER XI.—SPECIAL PROVISIONS FOR TEXTILE GOODS

93. Textile goods.—The [1][administrative division] shall prescribe classes of goods, in this Chapter referred to as textile goods, to the trade marks used in relation to which the provisions of this Chapter shall apply, and subject to the said provisions, the other provisions of this Ordinance shall apply to such trade marks as they apply to trade marks used in relation to other classes of goods.

94. Restrictions on registration of textile goods.—(1) In respect of textile goods, being piece goods—

(a) no mark consisting of a line heading alone shall be registerable as a trade mark;

(b) a line heading shall not be deemed to be adapted to distinguish; and

(c) the registration of a trade mark shall not give any exclusive right to the use of a line heading.

(2) In respect of any textile goods, the registration of letters or numerals, or any combination thereof, shall be subject to such conditions and restrictions as may be prescribed.

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[1]Subs. by Act No. LVIII of 2023, ss. 35.

95. Advisory Committees.—(1) The [1][administrative division] may, in such manner, as may be prescribed, constitute one or more Advisory Committees of persons well versed in the usages of the textile trade for the purposes of this Chapter.

(2) The Registrar shall consult any such Advisory Committee with respect to any circumstances peculiar to the textile trade arising on an application to register a trade mark in respect of textile goods.

(3) The place of meeting and the conduct of business of any such Advisory Committee shall be determined as may be prescribed.

CHAPTER XII.—RECTIFICATION AND CORRECTION OF THE REGISTER

96. Rectification or correction of Register.—(1) Any person having a sufficient interest may apply for the rectification of an error or omission in the Register:

Provided that an application for rectification may not be made in respect of a matter affecting the validity of the registration of a trade mark.

(2) An application for rectification may be made to the Registrar, except that—

(a) if proceedings concerning the trade mark in question are pending in the High Court or [1][an IP Tribunal], the application shall be made to the High Court or [1][an IP Tribunal]; and

(b) in case the application is made to the Registrar, he may at any stage of the proceedings refer the application to the High Court or [1][an IP Tribunal].

(3) Except where the Registrar or the High Court or [1][an IP Tribunal] directs otherwise, the effect of rectification of the Register shall be that the error or omission in question shall be deemed never to have been made.

(4) The Registrar may, on application made in such manner, as may be prescribed, by the proprietor of the registered trade mark, or a licensee, enter any change in his name or address as recorded in the Register.

97. Adoption of entries to new classification.—(1) The Registrar may, if he considers it necessary, implement any amended or substituted classification of goods or services for the purposes of the registration of trade marks as may be prescribed.

(2) The existing entries on the Register may be amended to record any new classification as may be prescribed.

[1]Subs. by Act No. LVIII of 2023, s.36-37.

(3) Any such power of amendment referred to in sub-sections (2) and (3), shall not be exercised so as to extend the rights conferred by the registration except where it appears to the Registrar that compliance with this requirement would involve undue complexity and that any extension would not be substantial and would not adversely affect the rights of any person.

(4) The Registrar may,—

(a) require the proprietor of a registered trade mark, within such time as may be prescribed, to file a proposal for amendment of the Register; and

(b) cancel or refuse to renew the registration of the trade mark in the event of his failing to do so.

(5) Any proposal, referred to in sub-section (4), shall be advertised and may be opposed in such manner as may be prescribed.

CHAPTER XIII.—OFFENCES, PENALTIES AND PROCEDURE

98. Meaning of applying a trade description.—(1) A person shall be deemed to apply a trade description to goods or services who—

(a) applies a trade description to the goods themselves or uses it in relation to goods or services;

(b) applies a trade description to any package in or with which the goods are sold, or exposed for sale, or had in possession for sale or for any purpose of trade or manufacture;

(c) places, encloses or annexes any goods which are sold or exposed for sale, or had in possession for sale or for any purpose of trade or manufacture in or with any package or other thing to which a trade description has been applied;

(d) uses a trade description in any manner reasonably likely to lead to the belief that the goods or services in connection with which it is used are designated or described by that trade description; or

(e) in relation to the goods or services uses a trade description in any sign, advertisement, invoice, catalogue, business letter, price list or other commercial documents, and goods are delivered or services are rendered to a person in pursuance of a request or order made by reference to the trade description as so used.

(2) A trade description shall be deemed to be applied to goods whether it is woven in, impressed on, otherwise worked into, or annexed or affixed to, the goods or to any packaging or other thing.

99. Penalty for applying false trade description, etc.—Any person who—

(a) applies any false trade description to goods or services; —

(b) applies to any goods to which an indication of the country or place in which they were made or produced or the name and address of manufacturer or person for whom the goods are manufactured is required to be applied under section 126, a false indication of such country, place, name or address;

(c) tampers with, alters or effaces an indication of origin which has been applied to any goods to which it is required to be applied under section 126; or

(d) causes any of the aforementioned things to be done,

shall, unless he proves that he acted without intent to defraud, be punished with imprisonment of either description for a term which shall not be less than three months but which may extend to two years, or with fine which shall not be less than fifty thousand rupees, or with both.

100. Enhanced penalty on second or subsequent convictions.—Whoever having already been convicted of an offence under section 99 is again convicted of any such offence shall be punished for the second and every subsequent offence with imprisonment of either description for a term which shall not be less than six months but which may extend to three years, or with fine which shall not be less than one hundred thousand rupees, or with both.

101. Penalty for falsification of entries in Register.—Any person who makes, or causes to be made, a false entry in the Register, or a writing falsely purporting to be a copy of an entry in the Register, or produces or tenders, or causes to be produced or tendered, in evidence any such writing, knowing the entry or writing to be false, he shall be punishable with imprisonment for a term which shall not be less than three months but which may extend to two years, or with fine which shall not be less than fifty thousand rupees, or with both.

102. Penalty for falsely representing a trade mark as registered.—(1) No person shall make any representation—

(a) with respect to a mark not being a registered trade mark, to the effect that it is a registered trade mark;

(b) with respect to a part of a registered trade mark not being a part separately registered as a trade mark, to the effect that it is separately registered as a trade mark;

(c) to the effect that a registered trade mark is registered in respect of any goods or services in respect of which it is not, in fact, registered; or

(d) to the effect that the registration of a trade mark gives an exclusive right to the use thereof in any circumstances in which, having regard to limitations entered on the Register, the registration does not, in fact, give that right.

(2) If any person contravenes any of the provisions of sub-section (1), he shall be punishable with imprisonment for a term which shall not be less than one month but which may extend to six months, or with fine which shall not be less then twenty thousand rupees, or with both.

(3) For the purposes of this section, the use in Pakistan in relation to a trade mark of the word "registered", or of any other expression referring whether expressly or impliedly to registration, shall be deemed to import a reference to registration in the Register, except—

(a) where that word or other expression is used in direct association with other words delineated in characters at least as large as those in which that word or other expression is delineated and indicating that the reference is to registration as a trade mark under the laws of a country other than Pakistan, being a country under the laws of which the registration referred to is, in fact, in force;

(b) where that other expression is of itself such as to indicate that the reference is to such registration as is mentioned in clause (a); or

(c) where that word is used in relation to a mark registered as a trade mark under the laws of a country other than Pakistan and in relation solely to goods or services to be exported to that country.

(4) The Registrar may, either *suo moto* or upon a complaint in writing made to him, call upon any person who is allegedly contravening any of the provisions of clauses (a) to (d) of sub-section (1) to show cause as to why action should not be taken against him:

Provided that power of the Registrar shall be limited to the imposition of fine as provided under sub-section (2) or, if pending, to refusal of application for registration of the trade mark, or if the trade mark is registered, to invalidation of the registration, or any combination thereof, as the case may be.

103. Restraint of use of Government Arms and State emblems.—If a person, without due authority, uses in connection with any trade, business, calling or profession—

(a) the flag of Pakistan in such manner as to be misleading;

(b) Government Arms or arms so closely resembling the same as to be calculated to deceive, in such manner as to be calculated to lead to the belief that he is duly authorised so to use the Government Arms;

(c) name, title and semblance of Quaid-i-Azam Mohammad Ali Jinnah or Allama Dr. Mohammad Iqbal or any variations thereof, or any device, emblem or title in such manner as to be calculated to lead to the belief that he is employed by, or supplies goods to, or is connected with, the Federal Government or any Provincial Government or any department of any such Government; or

(d) the emblem, the official seal and the name or any abbreviation of the name of the United Nations or any subsidiary body set upon by the United Nations or of the World Health Organization or of the World Intellectual Property Organization or of the World Trade Organization in such manner as is to be calculated to lead to the belief that he is duly authorized by the competent authorities of these organizations to use the emblem, seal or name,

he, may, at the suit of the Registrar or of any person who is authorized to use such Arms, device, emblem or title, be restrained by injunction from continuing so to use the same;

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Provided that noting in this section shall be construed as affecting the right, if any, of the proprietor of a trade mark containing such Arms, device, emblem or title to continue to use such trade mark.

104. Offences by companies.—(1) If the person committing an offence under this Ordinance is a company, the company as well as every person in charge of, and responsible to, the company for the conduct of its business at the time of the commission of the offence shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of such offence.

(2) Notwithstanding anything contained in sub-section (1), where an offence has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or that the commission of the offence is attributable to any neglect on the part of any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation.—For the purposes of this section—

(a) "company" means any body corporate and includes a partnership, firm or other association of individuals; and

(b) "director" in relation to a firm, means a partner in the firm.

105. Powers to award compensation for offences.—(1) In any prosecution under this Ordinance, the High Court or [1][an IP Tribunal] may, when passing a sentence of fine, direct that an amount not exceeding fifty per cent of the fine imposed by it but commensurate with the loss suffered by the party shall be paid as compensation to the person whose right has been infringed or to the heirs or legal representatives of such person.

(2) The payment of any compensation to any person under sub-section (1), shall be without prejudice to his right to any claim in a suit or other proceedings which may be instituted, or may be pending in the High Court or [1][an IP Tribunal], in relation to the same matter.

106. Punishment of abetment in Pakistan of acts done out of Pakistan.—If any person, being within Pakistan, abets the commission, without Pakistan of any act which, if committed in Pakistan, would, under this Ordinance, be an offence, he may be tried for such abetment in any place in Pakistan in which he may be found and be punished therefor with the punishment to which he would be liable if he had himself committed in that place the act which he abetted.

107. Penalty for improperly describing a place of business as connected with the Trade Marks Registry.—If any person uses his place of business, or on any document issued by him, or otherwise, words which would reasonably lead to the belief that his place of business is, or is officially connected with, the Trade Marks Registry, he shall be guilty of an offence punishable with imprisonment for a term which may extend to two years, or with fine, or with both.

[1]Subs. by Act No. LVIII of 2023, s. 38.

CHAPTER XIV.—MISCELLANEOUS AND GENERAL PROVISIONS

108. Power of Registrar to require use of forms.—(1) The Registrar may require the use of such forms as he may direct for any purpose relating to the registration of a trade mark or any other proceedings before him under this Ordinance.

(2) The forms and any directions of the Registrar with respect to their use shall be notified in the manner as may be prescribed.

109. Information about applications and registered trade marks.—(1) After publication of an application for registration of a trade mark the Registrar shall on request provide a person with such information and permit him to inspect such documents relating to the application, or to any registered trade mark resulting from it, as may be specified in the request, subject to such restrictions, as may be prescribed.

(2) Any request under sub-section (1) shall be made in the prescribed manner and be accompanied by the prescribed fee.

(3) Before publication of an application for registration of a trade mark, document or information constituting or relating to the application shall not be published by the Registrar or communicated by him to any person except—

(a) in such cases and to such extent as may be prescribed; or

(b) with the consent of the applicant,

but subject to the provisions of sub-section (4).

(4) Where a person has been informed that an application for registration of a trade mark has been made, and that the applicant will if the application is granted bring proceedings against him in respect of acts done after publication of the application, he may make a request under sub-section (1) notwithstanding that the application has not been published and that sub-section shall apply accordingly.

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110. Costs, security for costs and fine.—(1) Provisions may be made by rules empowering the Registrar, in any proceedings before him under this Ordinance—

(a) to award any party such costs as he may consider reasonable;

(b) to impose fine as he may consider reasonable; and

(c) to direct how and by whom costs or fines shall be paid.

(2) Any such order of the Registrar may be executable in the same way as a decree of a Civil Court.

(3) Provisions may be made by rules empowering the Registrar, in such cases as may be prescribed, to require a party to proceedings before him to give security for costs in relation to those proceedings or to proceedings on appeal and as to the consequences if security is not given.

111. Procedure before the Registrar.—(1) In all proceedings under this Ordinance before the Registrar—

(a) the Registrar shall have all the powers of a Civil Court for the purposes of receiving evidence, administering oaths, enforcing the attendance of witnesses, compelling the discovery and production of documents, issuing commissions for the examination of witnesses and granting a certificate of contested validity;

[1][(b) evidence, shall be given by affidavit.]

(2) The Registrar shall not exercise any powers vested in him by this Ordinance or the rules made thereunder adversely to any party duly appearing before him, if required in writing within the prescribed time so to do, without giving such party an opportunity of being heard.

112. Certificate of validity of contested registration.—If in any legal proceedings in which the validity of the registration of a trade mark comes into question and a decision is given in favour of the proprietor of the trade mark, the tribunal may grant a certificate to that effect, and if such a certificate is granted, then in any subsequent legal proceedings in which the said validity comes into question, the said proprietor on obtaining a final order or judgment in his favour shall, unless the said final order or judgment for sufficient reason directs otherwise, be entitled to his full costs, charges and expenses as between legal practitioner and client.

113. Registrar's appearance in proceedings involving the Register.—(1) In all proceedings before the Court involving application for—

(a) the revocation of the registration of a trade mark;

(b) a declaration of the invalidity of the registration of a trade mark; or

(c) the rectification of the Register

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the Registrar shall be entitled to appear and be heard and shall appear if so directed by the High Court.

(2) Unless otherwise directed by the High Court, the Registrar may instead of appearing submit to the High Court a statement in writing signed by him, giving particulars of—

[1]Subs. by Act No. LVIII of 2023, s.39.

(a) any proceedings before him in relation to the matter in issue;

(b) the grounds of any decision given by him affecting it;

(c) the practice of the Trade Marks Registry in like cases; or

(d) such matters relevant to the issues and within his knowledge as Registrar as he thinks fit.

and the statement shall be deemed to form part of the evidence in the proceedings.

(3) Anything which the Registrar is or may be authorized or require to do under this section may be done on his behalf by a duly authorized officer by him.

114. Appeal against the decision of the Registrar.—(1) Save as otherwise expressly provided in this Ordinance, an appeal shall lie, within the prescribed period, against any decision of the Registrar under this Ordinance or rules made thereunder to the High Court having jurisdiction:

Provided that if any suit or other proceedings concerning the trade make in question is pending before the High Court or [1][an IP Tribunal], the appeal shall lie to that High Court, as the case may be, to the High Court within whose jurisdiction that [1][IP Tribunal] is situated.

(2) In an appeal by an applicant for registration against a decision of the Registrar under section 21, 22 or 28, it shall not be open, save with the express permission of the High Court, to the Registrar or any party opposing the appeal to advance grounds other than those recorded in the said decision or advanced by the party in the proceedings before the Registrar, as the case may be, and where any such additional grounds are advanced, the applicant for registration may, on giving notice in the prescribed manner, withdraw his application without being liable to pay the costs of the Registrar or the parties opposing his application.

(3) Subject to the provisions of this Ordinance and of rules made thereunder, the provisions of the Code of Civil Procedure, 1908 (Act V of 1908), shall apply to appeal before the High Court or [1][an IP Tribunal] under this Ordinance.

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115. Procedure before the Federal Government.—In all proceedings under this Ordinance before the Federal Government, evidence shall be given by affidavit, provided that the Federal Government may, if it thinks fit, take oral evidence in lieu of, or in addition to, such evidence by affidavit, and shall for that purpose have all the powers of a Civil Court referred to in clause (a) of section 111.

[1]Subs. by Act No. LVIII of 2023, s.40.

116. Procedure in certain cases of option to apply to the High Court, a District Court or the Registrar.—Where under this Ordinance, an applicant has the option of making an application either to the High Court [1][IP Tribunal] or to the Registrar—

(a) if any suit or proceedings concerning the trade mark in question are pending before the High Court [1][IP Tribunal], the application shall be made to the High Court or, as the case may be, the [1][IP Tribunal]: and

(b) in any other case, if the application is made to the Registrar, he may at any stage of the proceedings refer the application to the High Court [1][IP Tribunal].

117. Suits for infringement to be instituted before [1][IP Tribunal].—No suit for the infringement of a trade mark or otherwise relating to any right in a trade mark shall be instituted in any Court [1][except an IP Tribunal] having jurisdiction to try the suit.

118. Costs of Registrar in proceedings before the High Court or [1][an IP Tribunal].—In all proceedings under this Ordinance before the High Court or [1][an IP Tribunal], the costs of the Registrar shall be in the discretion of the High Court or, as the case may be, the [1][IP Tribunal], but the Registrar shall not be ordered to pay the costs of any of the parties.

119. Burden of proving use of trade mark.—If in any civil proceedings under this Ordinance, if a question arises as to the use to which a registered trade mark has been put, it shall be for the proprietor to show what use has been made of it.

120. Certain persons to be public servants.—Every person appointed under this Ordinance shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code, 1860 (Act XLV of 1860).

121. Documents open to public inspection.—(1) Save as otherwise provided in this Ordinance—

(a) the Register and any document upon which any entry in the Register is based;

(b) every notice of opposition to the registration of a trade mark, application for rectification before the Registrar, counter-statement thereto, and any affidavit or documents filed by the parties in any proceedings before the Registrar;

(c) such other documents as the Registrar may, by notification in the Journal specify, shall subject to such conditions as may be prescribed, be open to public inspection at the Trade Marks Registry.

(2) Any person may, on an application to the Registrar and on payment of such fees as may be prescribed, obtain a certified copy of any entry in the Register or any document referred to in sub-section (1).

[1]Subs. by Act No. LVIII of 2023, ss. 41-43.

122. Death of a party to any proceedings under this Ordinance.—If a person who is a party to any proceedings under this Ordinance, not being any proceedings before the High Court or [1][an IP Tribunal], dies pending the proceedings, the Registrar may, on request, and on proof to his satisfaction of the transmission of the interest of the deceased person, substitute in the proceedings his successor in interest in his place, or if the Registrar is of opinion that the interest of the deceased person is sufficiently represented by the surviving parties, permit the proceedings to continue without the substitution of his successor in interest.

123. Extension of time.—(1) If the Registrar is satisfied, on application made to him in the prescribed manner and accompanied by the prescribed fee, that there is sufficient cause for extending the time for doing any act not being a time expressly provided in this Ordinance, whether the time so specified has expired or not, he may subject to such conditions as he may think fit to impose, extend the time and inform the parties accordingly.

(2) Nothing in sub-section (1) shall be deemed to require the Registrar to hear the parties before disposing of an application for extension of time and no appeal shall lie from any order of the Registrar under this section.

124. Registrar and other officers not compellable to produce Register, etc.—The Registrar or any officer of the Trade Marks Registry shall not, in any legal proceedings to which he is not a party, be compellable to produce the Register or any other document in his custody the contents of which can be proved by the production of a certified copy issued under this Ordinance or to appear as a witness to prove the matters therein recorded unless by order of the High Court or [1][an IP Tribunal] made for special case.

125. Power to require goods to show indication of origin.—(1) The Federal Government may, by notification in the official Gazette, require that goods of any description specified in the notification, which are made or produced beyond the limits of Pakistan and imported into Pakistan, or which are made or produced within the limits of Pakistan, shall from such date as may be appointed by the notification not being less than three months from its issue, have applied to them an indication of the country or place in which they were made or produced, and of the name and address of the manufacturer or the person for whom the goods were manufactured.

(2) The notification under sub-section (1) may specify the manner in which such indication shall be applied, that is to say whether to goods themselves or in any other manner and the times or occasions on which the presence of the indication shall be necessary, that is to say, whether on importation only, or also at the time of sale, whether by wholesale or retail or both.

(3) The provisions of section 23 of the General Clauses Act, 1897 (X of 1897), shall apply to the issue of a notification under sub-section (1), as they apply to the making of a rule or bye-law the making of which is subject to the condition of previous publication.

[1]Subs. by Act No. LVIII of 2023, ss. 44-45.

(4) A notification under sub-section (1), shall not apply to goods made or produced beyond the limits of Pakistan and imported into Pakistan, if in respect of those goods the [1][Director General, IPR (Enforcement), Director. IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)] is satisfied at the time of importation that they are intended for exportation whether after transhipment in or transit through Pakistan or otherwise.

126. Address for service.—(1) Every applicant or opponent in any proceedings under this Ordinance, who does not reside or carry on business within Pakistan, shall give an address for service in Pakistan and such address may be treated as the actual address of that person for all purposes connected with the proceedings in question.

(2) The address for service shall be deemed to be address of the applicant or the opponent and all documents in relation to the application or notice of opposition may be served by leaving them at or sending them by registered post to the address of service of the applicant or opponent, as the case may be.

[1][(3) An application filed under Madrid Protocol for international registration of marks shall be subject to such conditions as may be prescribed.]

127. Trade mark agents.—(1) Where by or under this Ordinance any act, other than the making of an affidavit, is required to be done by any person, the act may, subject to such conditions as may be prescribed, be done, in lieu of by that person himself, by duly authorised agent whose is registered with the Trade Marks Registry in the prescribed manner as a trade mark agent.

(2) The Federal Government may, by notification in the official Gazette, make rules for providing qualifications, registration and conduct of trade mark agents.

128. Fees.—(1) There shall be paid in respect of applications and registration and other matters under this Ordinance such fees as may be prescribed.

(2) Provisions may be made by rules for—

(a) the payment of a single fee in respect of two or more matters; and

(b) the circumstances if any in which a fee may be repaid or remitted.

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[1]Subs. and added by Act No. LVIII of 2023, s.46-47.

129. The Federal Government and a Provincial Government to be bound.—The provisions of this Ordinance shall be binding on the Federal Government and [1][Provincial Governments].

130. Power to make reciprocal arrangements with any other Government.—Without prejudice to the provisions of Articles 3 and 4 of the Agreement on Trade Related Aspects of Intellectual Property Rights. 1994, the Federal Government may, by notification in the official Gazette, enter into reciprocal arrangements with other Governments for the purpose of this Ordinance.

131. Power of the High Court to make rules.—The High Court may make rules consistent with the provisions of this Ordinance as to the conduct and procedure of all proceedings under this Ordinance before it.

132. Power of the Federal Government to make rules.—(1) The Federal Government may, subject to the condition of previous publication, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(i) the matters to be included in the Register under sub-section (1) of section 10;

(ii) conditions and restrictions subject to which the Register shall be open to the inspection of the public under sub-section (5) of section 10;

(iii) classification of goods and services in accordance with the international classification of goods and services under sub-section (1) of section 12;

(iv) publication of alphabetical index of classification of goods and services under sub-section (2) of section 12;

(v) the manner in which the Registrar may notify a word as an international non-proprietary name under section 16;

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(vi) the manner of making an application for registration of a trade mark under sub-section (1) of section 22;

(vii) the manner and period for making a Convention application under clause (b) of sub-section (2) of section 25;

(viii) the matters related to the manner of claiming a right to priority on the basis of a Convention application under sub-section (7) of section 25;

(ix) conditions for grant of temporary protection in respect of goods or services during exhibition under sub-section (4) of section 26;

[1]Subs. by Act No. LVIII of 2023, s. 48.

(x) the manner of giving notice to the Registrar under sub-section (2) of section 28 for opposing an application for registration advertised or re-advertised under sub-section (1) of section 28 and the fee payable for such application, making an application for extension of time under sub-section (2) of section 28 and the fee payable for such application;

(xi) the manner of serving a copy of the notice on the applicant, an application for extension of time under sub-section (4) of section 28 and the fee payable for such application, sending a counter-statement of the grounds and fee payable for such application;

(xii) the manner of serving a copy of the counter-statement on the opponent, an application for extension of time under sub-section (5) of section 28 and the fee payable for such application, sending a rejoinder to the Registrar;

(xiii) the manner of sending a copy of the rejoinder to the applicant under sub-section (6) of section 28;

(xiv) the manner of submitting any evidence under sub-section (7) of section 28 and time limit for submitting such evidence;

(xv) the manner of permitting correction of any error in, or any amendment of, a notice of opposition, a counter-statement, or a rejoinder under sub-section (9) of section 28;

(xvi) the manner of notifying the Registrar under sub-clause (i) of clause (b) of section 30;

(xvii) the time within which an application shall be registered under sub-section (1) of section 33;

(xviii) the fee payable and the time within which such fee is payable under sub-section (2) of section 33;

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(xix) the manner of publication of the registration and the form of certificate of registration under sub-section (4) of section 33;

(xx) the manner of giving notice under sub-section (5) of section 33;

(xxi) the manner of informing the proprietor of a registered trade mark of the date of expiry within which the registration may be renewed under sub-section (2) of section 35;

(xxii) the further period in which additional renewal fee shall be paid under sub-section (3) of section 35:

(xxiii) the manner and conditions for restoration of the registration which has been removed from the Register under sub-section (6) of section 35;

(xxiv) the matter related to the publication of alteration and the making of objections by any person claiming to be affected by it under sub-section (3) of section 37;

(xxv) the matters related to manner and effect of a surrender, and for protecting the interests of other persons having a right in the registered trade mark under sub-section (2) of section 38;

(xxvi) the time period within which the applicant, by notice in writing to the [1][Director General, IPR (Enforcement), Director, IPR (Enforcement) or Collector of Customs or any competent authority under the Custom Act, 1969 (IV of 1969)], consents to the release of the goods under clause (a) of sub-section (2) of section 59;

(xxvii) the particulars of the transaction which are to be entered in the Register under sub-sections (1) and (3) of section 70;

(xxviii) the matters specified in sub-sections (4) and (5) of section 70;

(xxix) the manner of making application and the fee payable for such application under sub-section (4) of section 72;

(xxx) the classes of goods under section 93;

(xxxi) the conditions and restrictions subject to which registration of letters or numerals, or any combination thereof in respect of textile goods may be allowed under sub-section (2) of section 94;

(xxxii) the manner of constituting one or more Advisory Committees under sub-section (1) of section 95, and matters related to the place of meeting and conduct of business of such Committees under sub-section (3) of that section;

(xxxiii) the manner of making an application under sub-section (4) of section 96;

(xxxiv) the matters relating to the empowering the Registrar to do such things as he considers necessary to implement any amended or substituted classification of goods or services for the purposes of the registration of trade marks under sub-section (1) of section 97;

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(xxxv) the time within which a proposal for amendment could be made under clause (a) of sub-section (4) of section 97;

(xxxvi) the manner of opposition under sub-section (5) of section 97;

(xxxvii) the manner of notification of the forms and any directions of the Registrar with respect to their use under sub-section (2) of section 108;

[1]Subs. by Act No. LVIII of 2023, s. 49.

(xxxviii) the restrictions imposed, manner of making application and fee payable under sub-section (1) of section 109;

(xxxix) the cases and extent to which application for registration of a trade mark, documents or information constituting or relating to the application may be published by the Registrar or communicated by him to any person under sub-section (3) of section 109;

(xl) the matters related to empowering the Registrar for the purposes of sub-section (1) of section 110;

(xli) the matters related to empowering the Registrar to require a party to proceedings before him to give security for costs, in relation to those proceedings or to proceedings on appeal, and as to the consequences if security is not given under sub-section (3) of section 110;

(xlii) the period within which an appeal from any decision of the Registrar under this Ordinance or rules made thereunder may lie to the High Court or [1][* * *] having jurisdiction under sub-section (1) of section 114;

(xliii) the manner of giving notice under sub-section (2) of section 114;

(xliv) the conditions under which documents listed in sub-section (1) of section 121 may be open to public inspection under the said sub-section;

(xlv) the fee payable for obtaining a certified copy under sub-section (2) of section 121;

(xlvi) the manner of making an application and the fee payable therefor under sub-section (1) of section 123;

(xlvii) the conditions under which any act other than the making of an affidavit may be done by duly authorized agent under sub-section (1) of section 127;

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(xlviii) the matters related to qualifications, registration and conduct of trade mark agents under sub-section (2) of section 127;

(xlix) the fees payable for making applications, registrations and other matters under sub-section (1) of section 128;

(l) the matters related to the payment of a single fee in respect of two or more matters and the circumstance, if any, in which a fee may be repaid or remitted under sub-section (2) of section 128;

(li) the making of further requirements with which the regulations may have to comply under sub-para (2) of para 5 of the First Schedule;

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[1]Omitted by Act No. LVIII of 2023, s. 49.

(lii) the making of further requirements with which the regulations may have to comply under sub-para (2) of para 6 of the Second Schedule;

(liii) the procedure for identification and classification of computer related services associated with Internet under sub-para (3) of para 2 of the Third Schedule;

(liv) the making of procedure for putting entries under sub-para (2) of para 2, and sub-para(2) of para 9 of the Fourth Schedule;

(lv) the manner of making application and the fee payable for such application under sub-para (2) of para 11 of the Fourth Schedule;

(lvi) the entry of additional information in the Register;

(lvii) the regulation of awarding of costs by the Registrar under this Ordinance;

(lviii) the matters related to establishment of branches of the Trade Marks Registry;

(lix) the manner in which, in proceedings under this Ordinance before the Registrar or the [1][Organization], application shall be made, notices given and matters advertised;

(lx) the matters related to times or periods required by this Ordinance to be advertised;

(lxi) and matters generally related to business of the Trade Marks Registry or its branches and for regulating all things by this Ordinance placed under the discretion of the Registrar or the [1][Organization]; and

(lxii) any other matter which is required to be, or may be prescribed.

133. Transitional.—The provisions of the Fourth Schedule shall have effect with respect to transitional matters, including the treatment of trade marks registered under the Trade Marks Act, 1940 (V of 1940), and applications for registration and other proceedings pending under that Act, on the commencement of this Ordinance.

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134. Repeal and savings.—(1) The Trade Marks Act, 1940 (V of 1940), is hereby repealed.

(2) The Trade Marks Registry and its branches existing at the commencement of this Ordinance shall be continued as if they had been established under this Ordinance.

(3) The Registrar, other officers and any other person appointed to the Trade Marks Registry established under the Trade Marks Act, 1940 (V of 1940), shall be deemed to have been appointed to the Trade Marks Registry established under this Ordinance.

[1]Subs. by Act No. LVIII of 2023, s. 49.

THE FIRST SCHEDULE

[See section 82(2)]

COLLECTIVE MARKS

1. General.—The provisions of this Ordinance shall apply to collective marks subject to the provisions contained in this Schedule.

2. Signs of which a collective mark may consist.—In relation to a collective mark the reference in clause (xlvii) of section 2 to distinguish goods or services of one undertaking form those of other undertakings shall be construed as a reference to distinguishing goods or services of members of the association which is the proprietor of the mark from those of other undertakings.

3. Indication of geographical origin.—(1) Notwithstanding the provisions of clause (c) of sub-section (1) of section 14, a collective mark may be registered which consist of marks or indications which may serve, in trade, to distinguish the geographical origin of the goods or services.

(2) The proprietor of such a mark shall not be entitled to prohibit the use of the marks or indications in accordance with the honest practices in industrial or commercial matters, in particular, by a person who is entitled to use a geographical name.

4. Collective mark not to be misleading as to character or significance.—(1) A collective mark shall not be registered if the public is liable to be mislead as regards the character or significance of the mark, in particular, if it is likely to be taken to be something other than a collective mark.

(2) The Registrar may accordingly require that a mark in respect of which application is made for registration include some indication that it is a collective mark.

(3) Notwithstanding the provisions of sub-section (7) of section 27 and application may be amended so as to comply with any such requirement.

5. Regulations governing use of collective mark.—(1) Any application for registration of a collective mark may be filed with the Registrar along with regulations governing the use of the mark.

(2) The regulations referred to in sub-para (1) shall specify the persons authorized to use the mark, the conditions of membership of the association and, where they exist, the conditions of the use of the mark, including any sanctions against misuse.

(3) Any further requirements with which the regulations referred to in sub-para (1) shall have to comply may be imposed as may be prescribed.

6. Approval of regulations by the Registrar.—(1) A collective mark shall not be registered unless the regulations governing the use of the mark—

(a) comply with the requirements of para (2) of para 5 and any further requirements as may be prescribed; and

(b) are not contrary to public policy or to accepted principles of morality.

(2) Before the end of the prescribed period after the date of the publication for registration of a collective mark, the applicant shall file the regulations with the Registrar and pay the prescribed fee failing which the application shall be deemed to have been withdrawn.

7. Procedure of acceptance or refusal of application.—(1) The Registrar shall consider whether the requirements specified in sub-para (1) of para 6 are duly met.

(2) If it appears to the Registrar that such requirements are not met, he shall inform the applicant and give him an opportunity, within such period as the Registrar may specify, to make representation or to file amended regulations.

(3) If the applicant fails to satisfy the Registrar that such requirements are met, or to file regulations amended so as to meet them, or fails to respond before the end of the specified period, the Registrar shall refuse the application.

(4) If it appears to the Registrar that such requirements, and the other requirements for registration, are met he shall accept the application and shall proceed in accordance with section 28.

8. Regulations to be published.—(1) The regulations governing the use of a collective mark shall be published and notice of opposition may be given, and observation may be made, relating to the matters specified in sub-para (1) of para 6.

(2) The provisions of sub-para (1) shall be in addition to any other grounds on which the application may be opposed or observations made.

9. Regulations to be open to inspection.—The regulations governing the use of a registered collective mark shall be open to public inspection in the same way as the Register.

10. Amendment of regulations.—(1) An amendment of the regulations governing the use of a registered collective mark shall not be effective unless and until the amended regulations are filed with the Registrar and accepted by him.

(2) Before accepting any amended regulations the Registrar may, in any case where it appears to him expedient to do so, cause them to be published.

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(3) If the Registrar does so, a notice of opposition may be given, and observations may be made, relating to the matters specified in sub-para (1) of para 6.

11. Infringement of rights of authorized user.—The following provisions shall apply in relation to an authorized user of a registered collective mark as in relation to a licensee of a trade mark, namely:—

(a) sub-section (7) of section 40;

(b) sub-section (2) of section 51; and

(c) section 53.

12. Infringement of a registered collective mark.—(1) The provisions of this para shall have effect as regards the rights of an authorized user in relation to infringement of registered collective mark.

(2) An authorized user shall be entitled, subject to any agreement to the contrary between him and the proprietor, to call on the proprietor to take infringement proceedings in respect of any matter which affect his interests.

(3) If the proprietor—

(a) refuses to do so; or

(b) fails to do so within two months after being called upon,

the authorized user may bring the proceedings in his own name as if he were the proprietor.

(4) Where infringement proceedings are brought under this para, the authorized user may not, without the leave of the High Court, proceed with the action unless the proprietor is either joined as a plaintiff or added as a defendant.

(5) The provisions of para (4) shall not affect the granting of interlocutory relief on an application by an authorised user alone.

(6) A proprietor who is added as a defendant as provided in sub-para (4) shall not be made liable for any costs in the action unless he takes part in the proceedings.

(7) In infringement proceedings brought by the proprietor of a registered collective mark, any loss suffered or likely to be suffered by authorised user shall be taken into account, and the High Court or [1][an IP Tribunal] may give such directions as it thinks fit as to the extent to which the plaintiff shall hold the proceeds of any pecuniary remedy on behalf of such users.

13. Additional grounds for revocation of registration.—Apart from the grounds of revocation provided for in section 73, the registration of a collective mark may be revoked on any of the following grounds, namely:—

(a) that the manner in which the mark has been used by the proprietor has caused it to become liable to mislead the public in the manner referred to in sub-para (1) of para 4;

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(b) that the proprietor has failed to observe, or to secure the observance of, the regulations governing the use of the mark: or

(c) that an amendment of the regulations governing the use of mark has been made so that such regulations—

[1]Subs. by Act No. LVIII of 2023, s. 50.

(i) no longer comply with the requirement of sub-para (2) of para 5, and any further conditions as may prescribed; or

(ii) are contrary to public policy or to accepted principles of morality.

14. Additional grounds for invalidity of registration.—Apart from the grounds of invalidity provided for in section 80, the registration of a collective mark may be declared invalid on the ground that the mark was registered in breach of the provisions of sub-para (1) of para 4, or sub-para (1) of para 6.

THE SECOND SCHEDULE

[See section 83(2)]

CERTIFICATION MARKS

1. General.—The provisions of this Ordinance shall apply to certification marks subject to the provisions contained in this Schedule.

2. Signs of which certification mark may consist.—In relation to a certification mark the reference in clause (xlvii) of section 2 to distinguish goods or services of one undertaking from those of other undertaking shall be construed as a reference to distinguishing goods or services which are certified from those which are not.

3. Indication of geographical origin.—(1) Notwithstanding the provisions of clause (c) of sub-section (1) of section 14, a certification mark may be registered which consist of signs or indications which may serve, in trade, to designate the geographical origin of the goods or services.

(2) The proprietor of such a mark shall not be entitled to prohibit the use of the signs or indications in accordance with honest practices in industrial or commercial matters, in particular, by a person who is entitled to use a geographical name.

4. Nature of proprietor's business.—A certification mark shall not be registered if the proprietor carries on a business involving the supply of goods or services of the kind certified.

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5. Certification mark not to be misleading as to character or significance.—(1) A certification mark shall not be registered if the public is liable to be misled as regards the character or significance of the mark, in particular, if it is likely to be taken to be something other than a certification mark.

(2) The Registrar may, accordingly, require that a mark in respect of which application has been made for registration include some indication that it is a certification mark.

(3) Notwithstanding the provisions of sub-section (7) of section 27, an application may be amended so as to comply with any such requirement.

6. Regulations governing use of certification mark.—(1) An application for registration of a certification mark may be filed with the Registrar along with regulations governing the use of the mark.

(2) The regulations referred to in sub-para (1) shall indicate who shall be authorized to use the certification mark, the characteristics by the mark, how the certifying body shall test those characteristics and supervise the use of the mark, the fee, if any, to be paid in connection with the operation of the mark and the procedures for resolving disputes.

(3) Any further requirements with which the regulations referred to in sub-para (1) shall have to comply may be imposed as may be prescribed.

7. Approval of regulations by the Registrar.—(1) A certification mark shall not be registered unless—

(a) the regulations governing the use of the mark—

(i) comply with the requirements of sub-para (2) of para 6, and any further requirements, as may be prescribed; and

(ii) are not contrary to public policy or to accepted principles of morality; and

(b) the applicant is competent to certify the goods or services for which the mark is to be registered.

(2). Before the end of the prescribed period after the date of the application for registration of a certification mark, the applicant shall file the regulations with the Registrar and pay the prescribed fee, failing which the application shall be deemed to be withdrawn.

8. Procedure for acceptance or refusal of application.—(1) The Registrar shall consider whether the requirements specified in sub-para (1) of para 7 are met.

(2) If it appears to the Registrar that such requirements are not met, he shall inform the applicant and give him an opportunity, within such period as the Registrar may specify, to make representation or to file amended regulations.

(3) If the applicant fails to satisfy the Registrar that such requirements are met, or to file regulation amended so as to meet them, or fails to respond before the end of the specified period, the Registrar shall refuse the application.

(4) If it appears to the Registrar that such requirements, and the other requirements for registration, are met, he shall accept the application and shall proceed in accordance with section 28.

9. Regulations to be published.—The regulations governing the use of a registered certification mark shall be published and notice of opposition may be given, and observations may be made, relating to the matters specified in sub-para (1) of para 7, in addition to any other grounds on which the application may be opposed or observations made.

10. Regulations to be open to inspection.—The regulations governing the use of a registered certification mark shall be open to be public inspection in the same way as the Register.

11. Amendment of regulations.—(1) An amendment of the regulations governing the use of a registered certification mark shall not be effective unless and until the amended regulations are filed with the Registrar and accepted by him.

(2) Before accepting any amended regulations the Registrar may, in any case where it appears to him expedient to do so, cause them to be published.

(3) If he does so, a notice of opposition may be given, and observations may be made, relating to the matters specified in sub-para (1) of para 7.

12. Consent to assignment of registered certification mark.—The assignment or other transmission of a registered certification mark shall not be effective without the consent of the Registrar.

13. Infringement of rights of authorised user.—The following provisions shall apply in relation to an authorised user of a registered certification mark as in relation to a licensee of a trade mark, namely:—

(a) sub-section (7) of section 40;

(b) sub-section (2) of section 51; and

(c) section 53.

14. The High Court or [1][an IP Tribunal] to take into account loss suffered by authorised users.—In infringement proceedings brought by the proprietor of the registered certification mark any loss suffered or likely to be suffered by authorised user shall be taken into account and the High Court or [1][the IP Tribunal] may give such directions as it thinks fit as to the extent to which the plaintiff shall hold the proceeds of any pecuniary remedy on behalf of such users.

15. Additional grounds for revocation of registration.—Apart from the grounds of revocation provided for in section 73, the registration of a certification mark may be revoked on any of the following grounds, namely:—

(a) that the proprietor has begun to carry on such a business as is specified in para 4;

(b) that the manner in which the mark has been used by the proprietor has caused it to become liable to mislead the public in the manner referred to in sub-para (1) of para 5;

(c) that the proprietor has failed to observe, or to secure the observance of, the regulations governing the use of the mark;

(d) that an amendment of the regulations has been made so that the regulations—

[1]Subs. by Act No. LVIII of 2023, s. 51.

(i) no longer comply with the requirements of sub-para (2) of para 6, and any further conditions as may be prescribed; or

(ii) are contrary to public policy or to accepted principles of morality; or

(e) that the proprietor is no longer competent to certify the goods or services for which the mark is registered.

16. Additional grounds for invalidity of registration.—Apart from the grounds of invalidity provided for in section 80, the registration of a certification mark may be declared invalid on the ground that the mark was registered in breach of the provisions of para 4, sub-para (1) of para 5 or sub-para (1) of para 7.

THIRD SCHEDULE

[See section 84(2)]

DOMAIN NAMES

1. General.—The provisions of this Ordinance shall apply to domain names subject to the provisions contained in this Schedule.

2. Requirements for registration.—(1) A domain name if used as a source identifier may be registered as a trade mark in respect of relevant goods or services.

(2) The applicant for registration of domain name shall show that he offers goods or services via Internet using the domain name. Such evidence shall be in the form of specimen showing use of the domain name as a source identifier.

Explanation.—For the purpose of this para, use of a domain name shall be taken as source identifier if it is used on Internet to distinguish goods or services of one undertaking from the other provided that use of a domain name as a mere directional reference, similar to use of a telephone number or business address shall not be taken as use of the domain name as a source identifier.

(3) Provisions may be made by rules for further identification and classification of computer related services associated with Internet.

3. Indication of geographical origin.—(1) Notwithstanding the provisions of clause (c) of sub-section (1) of section 14, a domain name may be registered which consist of marks or indications which may serve, in trade, to distinguishing the geographical origin of the goods or services.

(2) The proprietor of such a mark shall not be entitled to prohibit the use of the marks or indications in accordance with honest practices in industrial or commercial matters, in particular, by a person who is entitle to use a geographical name.

4. Domain name not to lie misleading as to character or significance.—(1) A domain name shall not be registered if the public is liable to be mislead as regards the character or significance of the mark, in particular, if it is likely to be taken to be something other than a domain name.

(2) The Registrar may, accordingly, require that a mark in respect of which application has been made for registration include some indication that it is a domain name.

(3) Notwithstanding the provisions of sub-section (7) of section 27, an application may be amended so as to comply with any such requirement.

5. Procedure for acceptance, opposition and registration.—The provisions of this Ordinance for acceptance, registration and opposition as they apply to trade marks shall also apply to the domain names.

6. Term of registration and renewal.—Notwithstanding the provisions of sections 32 and 33, a domain name shall be registered for a period of five years from the date of registration and may be renewed for further periods of like term, as long as, the domain name is in actual use on Internet.

7. Provisions of section 73 not to apply to domain names.—The provisions of section 73 shall not apply to domain names.

8. Rules.—Provisions may be made by rules for further identification and classification of computer related services associated with Internet.

THE FOURTH SCHEDULE

(See section 134)

TRANSITIONAL PROVISIONS

1. Introductory.—(1) In this Schedule, —

(a) "existing registered mark" means a trade mark or certification mark registered under the Trade. Marks Act, 1940 (V of 1940), immediately before the commencement of this Ordinance;

(b) "1940 Act" means the Trade Marks Act, 1940 (V of 1940); and

(c) "old law" means the 1940 Act and any law for the time being in force, applying to existing registered marks immediately before the commencement of this Ordinance.

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(2) For the purposes of this Schedule, —

(a) an application shall be treated as pending on the commencement of this Ordinance if it was made but not finally determined before such commencement; and

(b) the date on which it was made shall be taken to be the date of filing under the 1940 Act.

2. Existing registered trade mark.—(1) The existing registered marks shall be transferred, on the commencement of this Ordinance, to the Register, and shall have effect, subject to the provisions of this Schedule, as if registered under this Ordinance.

(2) The existing registered marks registered as a series under sub-section (3) of section 11 of the 1940 Act shall be similarly registered in the new Register.

(3) Provisions may be made by rules for putting such entries in the same form as is required for entries under this Ordinance.

(4) In any other case notes indicating that the existing registered marks are associated with other marks shall cease to have effect on the commencement of this Ordinance.

3. Disclaimer, limitations and conditions.—A disclaimer, limitation or condition entered on the register kept under the 1940 Act in relation to an existing registered mark immediately before the commencement of this Ordinance shall be transferred to the Register and have effect as if entered on the Register in pursuance of section 15.

4. Effect of Infringement.—(1) The provisions of sections 39 to 42 shall apply in relation to an existing registered mark as from the commencement of this Ordinance and the provisions of section 46 shall apply in relation to infringement of an existing registered mark committed after the commencement of this Ordinance, subject to sub-para (3).

(2) The old law shall continue to apply in relation to infringement committed before the commencement of this Ordinance.

(3) It shall not be an infringement of—

(a) an existing registered mark; or

(b) a registered trade mark of which the distinctive elements are the same or substantially, the same as those of an existing registered mark and which is registered for the same goods or services,

to continue after the commencement of this Ordinance any use which did not amount to infringement of the existing registered mark under the old law.

5. Infringing goods, material and articles.—The provisions of section 48 shall apply to infringing goods, material or articles trade before or after the commencement of this Ordinance.

6. Rights and remedies of licensee or authorised user.— (1) The provisions of section 75 shall apply to license granted before the commencement of this Ordinance, but only in relation to any infringement committed after such commencement.

(2) The provisions of para 14 of the Second Schedule shall apply only in relation to infringement committed after the commencement of this Ordinance.

7. Co-ownership of registered trade mark.—The provisions of section 24 shall apply as from the commencement of this Ordinance to an existing registered trade mark of which two or more persons were, immediately before such commencement, registered as joint proprietor;

Provided that so long as the relations between the joint proprietors remain such as are described in sub-section (2) of section 17 of the 1940 Act, there shall be taken to be an agreement to exclude the operation of sub-sections (2) and (3) of section 24.

8. Assignment of registered trade mark.— (1) The provisions of section 67 shall apply to transactions and events occurring after the commencement of this Ordinance in relation to an

existing registered trade mark, and the old law shall continue to apply in relation to transactions and events occurring before such commencement.

(2) The existing entries under section 35 of the 1940 Act shall be transferred on the commencement of this Ordinance to the Register, and shall have effect as if made under section 70.

(3) An application for registration under section 35 of the 1940 Act, which is pending before the Registrar on the commencement of this Ordinance shall be treated as an application for registration under section 70 and shall proceed accordingly:

Provided that the Registrar may require the applicant to amend his application so as to conform with the requirements of this Ordinance.

(4) An application for registration under section 35 of the 1940 Act, which has been determined by thy Registrar but not finally determined before the commencement of this Ordinance shall be dealt with under the old law, and the provisions of sub-para (2) shall apply in relation to any resulting entry in the Register.

(5) Whether before the commencement of this Ordinance, a person has become entitled by assignment or transmission to an existing registered trade mark but has not registered his title, any application for registration after such commencement shall be made under section 70.

(6) In case to which the provisions of sub-para (3) or (5) applies, the provisions of sub-section (2) of section 35 of the 1940 Act shall continue to apply, and the provisions of sub-section (3) of section 68 shall not apply, as regards the consequences of failing to register.

9. Licensing of registered trade mark.—(1) The provisions of section 73 and sub-section (2) of section 74 shall apply only in relation to licences granted after the commencement of this Ordinance, and the old law shall continue to apply in relation to licences granted to authorised users before the commencement of this Ordinance.

(2) The existing entries under section 39 of the 1940 Act shall be transferred on the commencement of this Ordinance to the Register, and shall have effect as if made under section 70.

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(3) Provisions may be made by rules for putting entries referred to in sub-para (2) in the same form as is requires for entries made under this Ordinance.

(4) An application for registration as a registered user which is pending before the Registrar on the commencement of this Ordinance shall be treated as an application for registration of a licence under sub-section (1) of section 70 and shall proceed accordingly:

Provided that the Registrar may require the applicant to amend his application so as to conform with the requirements of this Ordinance.

(5) An application for registration as a registered user which has been determined by the Registrar but not finally determined before the commencement of this Ordinance shall be dealt with under the old law, and the provisions of sub-para (2) shall apply in relation to any resulting entry in the Register.

(6) Any proceedings pending on the commencement of this Ordinance under section 42 of the 1940 Act shall be dealt with under the old law and any necessary alteration shall be made to the Register.

10. Pending applications for registration.—(1) An application for registration of a mark under the 1940 Act which is advertised under sub-section (1) of section 15, or the proviso to that sub-section of the 1940 Act, or an order has been made for its advertisement before the commencement of this Ordinance shall be dealt with under the old law, subject as provided in the following paras, and if registered, the mark shall be treated for the purpose of this Schedule as an existing registered trade mark.

(2) The provisions of section 12 of the 1940 Act shall be disregarded in dealing, after the commencement of this Ordinance, with an application for registration.

11. Conversion of pending application.—(1) In the case of pending application for registration which has not been advertised under sub-section (1) of section 15, or the proviso to that sub-section of the 1940 Act, neither an order has been made for such advertisement before the commencement of this Ordinance, the applicant may give notice to the Registrar claiming to have the registrability of the mark determined in accordance with the provisions of this Ordinance.

(2) The notice under sub-para (1) shall be in the prescribed form, be accompanied by the appropriate fee and be given no later than twelve months after the commencement of this Ordinance.

(3) The notice under sub-para (1), duly given shall be irrevocable and have the effect that the application shall be treated as if made immediately after the commencement of this Ordinance.

12. Trade marks registered according to old classification.—The Registrar may exercise his powers to secure that any existing registered trade marks which do not conform to the system of classification prescribed under section 12 are brought in conformity with that system.

13. Claim to priority from overseas application.—The provisions of section 25 shall apply to an application for registration under this Ordinance made after the commencement of this Ordinance notwithstanding that the Convention application was made before such commencement.

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14. Duration and renewal of registration.—(1) The provisions of subsection (1) of section 32 shall apply in relation to the registration of a mark in pursuance of an application made after the commencement of this Ordinance, and the old law shall apply in any other case.

(2) The provisions of sub-section (2) of section 32 and section 33 shall apply where the renewal falls due on or after the commencement of this Ordinance, and the old law shall continue to apply in any other case.

(3) In either case referred to in sub-para (2) or (3), it shall be immaterial when the fee is paid.

15. Pending application for alteration of registered trade mark.—An application under section 48 of the 1940 Act, which is pending on the commencement of this Ordinance shall be dealt with under the old law and any necessary alteration shall be made in the Register.

16. Revocation for non-use.— (1) An application under section 37 of the 1940 Act, which is pending on the commencement of this Ordinance shall be dealt with under the old law and any necessary alteration shall be made to the Register.

(2) An application made under clause (a) or (b) of sub-section (1) of section 73 may be made in relation to an existing registered mark at any time after the commencement of this Ordinance:

Provided that no such application for the revocation of the registration of an existing registered mark under section 38 of the 1940 Act may be made until more than five years after the commencement of this Ordinance.

17. Application for rectification.—(1) An application under section 46 of 47 of 1940 Act, which is pending on the commencement of this Act shall be dealt with under the old law and any necessary alteration shall be made to the Register.

(2) For the purpose of proceedings under section 80 as it applies in relation to an existing registered mark, the provisions of this Ordinance shall be deemed to have been in force at all material times:

Provided that no objection to the validity of the registration of an existing registered mark may be taken on the grounds specified if sub-section (3) of section 17 in conflict with earlier mark registered for different goods.

18. Regulations as to use of certification mark.—(1) Regulations governing the use of an existing registered certification mark deposited at the Trade Marks Registry under the 1940 Act shall be treated after the commencement of this Ordinance as if filed under para 6 of the Second Schedule.

(2) Any request for amendment of the regulations which was pending on the commencement of this Ordinance shall be dealt with the old law.

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THE TRADE ORGANIZATIONS ACT, 2013

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THE TRADE ORGANIZATIONS ACT, 2013

ACT No. II OF 2013

[20th *February*, 2013]

An Act to provide for the registration and regulation of trade organizations

WHEREAS it is expedient to ensure appropriate representation of all genders and business sectors at all levels in trade organizations and that they play significant role in developing policy framework for improving business environment and economic growth;

AND WHEREAS it is imperative to define the purpose, role, responsibilities and operational framework including code of corporate governance for trade organizations and for matters connected therewith and incidental thereto;

It is enacted as follows:—

CHAPTER-I

PRELIMINARY

1. Short title, extent, application and commencement.— (1) This Act may be called the Trade Organizations Act, 2013.

(2) It extends to the whole of Pakistan.

(3) It shall apply to trade organizations whose objects and business are not confined to one province.

(4) It shall come into force at once.

2. **Definitions**.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Administrator" means an Administrator appointed under this Act;

(b) "articles" mean the articles of association of a trade organisation;

(c) "district" means an administrative district notified by the Provincial Governments from time to time;

(d) "division" means an administrative division notified by the Provincial Government from time to time;

(e) "Executive Committee" means the Board of Directors, the Managing Committee or any other body, by whatever name called, of a registered trade organisation responsible for the management or conduct of the affairs of such trade organisation;

(f) "existing trade organisation" means an organisation licensed under the Trade Organisations Ordinance, 1961(XLV of 1961);

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(g) "licence" means a licence granted to a trade organisation under section 3;

(h) "member of the Executive Committee" includes a Director where the Executive Committee is a Board of Directors and the Chairman, Senior Vice Chairman, Vice Chairman, President, Senior Vice-President and Vice President of a trade organisation licensed under this Act;

(i) "member of a trade organisation" means a firm and includes a proprietorship, an association of persons, a partnership, a company or a multinational corporation, engaged in trade, industry or services and enrolled as a member of a trade organisation licensed under this Act;

(j) "memorandum" means the memorandum and the articles of association of a trade organisation;

(k) "office bearers" means President, Senior Vice President, Vice-President, Chairman, Senior Vice-Chairman and Vice Chairman of a trade organization;

(l) "Ordinance" means the Companies Ordinance, 1984 (XLVII of 1984);

(m) "prescribed" means prescribed by rules made under this Act;

(n) "register" means the Register of Companies required to be kept under section 147 of the Ordinance;.

(o) "registered trade organisation" means a trade organisation registered under the Ordinance;

[1][(p) "Regulator" means the Director General or any other officer not below basic pay scale 20 appointed by the division concerned to perform functions under this Act;]

(q) "repealed ordinance" means the Trade Organizations Ordinance 1961 (XLV of 1961);

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(r) "trade organisation" means an organization, which—

(i) is capable of being formed as a limited company within meaning of the Ordinance;

(ii) is formed or intended to be formed with the object of promoting any trade, industry or service or any combination thereof;

(iii) prohibits payment of any profits to its members; and

(iv) applies its income and profits for achieving its objects;

(s) "small traders and small business" means a member of trade organization

[1]Subs. by Act No. IV of 2025, s.2.

whose number of employees is less than twenty, annual business turnover ranges between two million rupees to twenty million rupees, all utility bills do not exceed one million rupees per annum and neither such small trader or small business is owned or controlled by a Provincial Government nor it carries on trade or business confined to only one Province; and

(t) "small industry" means a member of trade organization which is a manufacturing concern having an industry less than twenty employees, whose annual turnover ranges between two million rupees to twenty million rupees, utility bills do not exceed one million rupees per annum and is neither owned or controlled by a Provincial Government nor carries on trade or business confined to only one Province.

3. **Licensing and registration of trade organisations**.— (1) Notwithstanding anything contained in the Ordinance or in any other law for the time being in force relating to registration of societies, bodies or associations of persons, no trade organisation shall be registered under the Ordinance or such other law unless it holds a licence granted by the [1][Regulator] authorizing it to be so registered.

(2) No licence shall be granted for registration under the Ordinance to a trade organisation unless it is —

(a) a Federation of Chambers of Commerce and Industry, organized on all Pakistan basis, to represent Chambers and Associations referred to in clauses (b), (c), (d) and (f):

Provided that a licence for registration as a Federation of Chambers of Commerce and Industry shall not be granted to more than one trade organisation;

(b) a Chamber of Commerce and Industry organized to represent trade, industry and services in a district. Such a Chamber representing less than the prescribed number of persons shall not be granted licence. Where the number of persons desiring to form a Chamber is less than the prescribed number of persons, they may join a licensed Chamber of the adjoining district:

Provided that the [1][division to which business of this Act stands allocated] may, by notification in official Gazette, combine one or more districts for the purpose of grant of only one licence. In such a case the [1][division to which business of this Act stands allocated] may allow the districts so combined to form a Town Association under clause (e);

(c) a Women's Chamber of Commerce and Industry organized to represent the women entrepreneurs engaged in trade, industry or services in each administrative division but such a Chamber representing less than the prescribed number of women entrepreneurs shall not be granted licence and where the number of women entrepreneurs desiring to form a Chamber is less than the

[1]Subs. by Act No. IV of 2025, s.3.

prescribed number, they may join an adjoining Women's Chamber of Commerce and industry:

Provided that nothing contained in this clause shall debar a woman entrepreneur to become member of a Chamber in clause (b) if such woman entrepreneur otherwise fulfills the criteria of membership of the respective chamber:

Provided further that nothing contained in this clause shall debar the required number of women entrepreneurs to form district Women Chambers of Commerce if they otherwise fulfill the criteria of formation of a district chamber.

(d) an association with membership on all Pakistan basis organized to represent a specific trade, industry or service or any combination thereof:

Provided that a licence for registration as an all Pakistan association shall not be granted to more than two trade organisations in the same sector, one of which must be an organization representing small business, small traders or small industry:

Provided further that the question. whether a specific activity in trade, industry or service is an independent sector or only a sub-sector, shall be determined by the Government, whose decision in this respect shall be final;

(e) a Town Association, organized to represent trade, industry and services in a town, tehsil, taluka or a district where there is no chamber and such Town Association shall be affiliated with the Chamber of the concerned district:

Provided that when a town, tehsil or taluka is upgraded as a district or is granted licence under clause (b), the Town Association in that town, tehsil, taluka or district shall cease to exist with immediate effect; and

(f) a Chamber of Small Traders organized to represent small businesses, small traders and small industry, in each district, provided that they otherwise qualify to form a chamber under this Act.

(3) Notwithstanding the provisions of clause (b) and (d) of sub-section (2), where the membership of a chamber in a district attains the minimum prescribed number for grant of licence to a chamber under this Act, such persons shall be entitled to form and apply for grant of licence as a chamber.

(4) On grant of licence to a Chamber under sub-section (3), the firms and companies, which had obtained membership in the Chamber of an adjoining district, shall be deemed to have been de-registered from membership register of the adjoining Chamber.

(5) Application for grant of licence of a trade organisation shall be made to the [1][Regulator] in the prescribed application form.

[1]Subs. by Act No. IV of 2025, s.3.

(6) A trade organisation shall be granted licence on such terms and subject to such conditions as may be prescribed.

(7) Licence shall be granted to a trade organisation for a period of five years.

(8) A trade organisation holding a licence shall be registered under the Ordinance as a company with limited liability without the addition of the word "limited" to its name and on such registration shall enjoy all the privileges of a limited company and be subject to all its obligations except those of—

(a) using the word "limited" as any part of its name;

(b) publishing its name; and

(c) sending lists of members to the registrar.

(9) The Federal Government may, by notification in the official Gazette, grant exemption to any trade organisation from any provision of this Act and such exemption may be for such period and subject to such conditions as may be specified in the notification:

Provided that no such exemption shall be granted to a trade organisation unless the Federal Government is satisfied that it would be in the public interest to do so.

4. Revocation of licences of existing trade organisations.— (1) Except as hereinafter provided and notwithstanding anything in any other law for the time being in force and memorandum and articles of association of any trade organisation, any licence granted under section 3 of the repealed ordinance to an existing trade organisation shall stand revoked with effect from the 30th December, 2006 and such trade organisation shall be required to apply for grant of licence under this Act by the date notified by the Federal Government:

Provided that revocation of licence of a trade organisation shall not prevent its members from assuming office, subject to section 11, consequent upon elections under the repealed ordinance.

(2) The [1][Regulator] shall decide the application for grant of licence within such period of its filing as notified by the [1][Regulator].

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(3) An existing trade organisation which has applied for grant of licence within the time notified by the [1][Regulator] shall continue to function as a trade organisation until the [1][Regulator] decides its application for grant of licence and until the first elections are held according to rules made under this Act.

5. **Privileges and obligations of trade organisations.** —(1) A licensed and registered trade organisation shall be a body corporate with perpetual succession and a common seal and may sue and be sued in its own name and, subject to and for the purposes of this Act, may enter into contracts and may acquire, purchase, take, hold and enjoy movable and immovable property of every description and may convey, assign, surrender, yield up, charge, mortgage, demise, re-assign, transfer or otherwise dispose of or deal with, any movable or immovable property or any interest vested in it, upon such terms as it deems fit.

[1]Subs. by Act No. IV of 2025, s.4.

(2) The liability of members of a licensed and registered trade organisation shall be limited to their membership subscription.

(3) No trade organisation other than a licensed and registered trade organisation shall use in its name or title the word "Federation" or "Chamber" or "Association" except an existing trade organisation which has applied for grant of licence under this Act:

Provided that nothing in sub-section (3) shall apply to a company, association or body of persons formed for promoting art, science, religion, charity, sports, any profession other than trade, commerce, industry, service or any other subject which the Government may, by notification in the official Gazette specify in this behalf.

6. **Renewal of licence**. —(1) A licensed trade organisation shall require renewal of its licence every five years.

(2) Application for renewal of licence shall be made to the Regulator ninety days prior to the expiry of licence:

Provided that the Regulator, on sufficient cause being shown by an order in writing, may extend the period not exceeding thirty days.

(3) Annual accounts and performance of a trade organisation shall be audited by a firm of chartered accountants and the reports thereof shall be submitted to the Regulator alongwith the renewal application.

(4) The Regulator, on receipt of the application for renewal of licence, shall endeavour to decide it before the expiry of the licence.

7. **Cancellation of licence and exemption.—** (1) The licence granted to a trade organisation shall be cancelled by the [1][Regulator], where—

(a) a trade organisation fails to apply for renewal of the licence granted under section 3 of this Act within the prescribed or extended period allowed by the Regulator;

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(b) a trade organisation fails to apply for membership of the Federation of Pakistan Chambers of Commerce and Industry within one month of grant of licence;

(c) a trade organisation fails to get registration under the Ordinance;

(d) a trade organisation is found to be non-existent at the registered address or is non-operational;

(e) a trade organisation is not holding elections or operating according to the provisions of the memorandum within the prescribed period;

(f) a trade organisation is not complying with the orders and directions of the Federal Government or Regulator issued under this Act of the prescribed rules;

[1]Subs. by Act No. IV of 2025, s.5.

(g) a trade organisation is not discharging statutory obligations as a limited company incurred under the Ordinance;

(h) a trade organisation is not discharging statutory obligations under this Act or prescribed rules;

(i) a trade organisation fails to pay the penalties imposed under this Act within the prescribed period;

(j) the Federal Government cancels any exemption granted to a trade organisation, under sub-section (9) of section 3;

(k) the trade organisation is engaged in activities other than those for which it was established;

(l) the trade organisation has lost its representative character or its membership remains below the prescribed threshold over a period of two years; and

(m) the financial or performance audit report of a trade organisation states that—

(i) the income and profits of the trade organisation are spent for purposes other than those for which it was established;

(ii) the trade organisation does not remain financially viable.

(2) Where the [1][Regulator] intends to cancel the licence of a trade organisation, granted under section 3 of this Act, it shall issue a show cause notice to such trade organisation specifying the grounds for its intention to cancel the licence and provide adequate opportunity of being heard before deciding the matter.

(3) The [1][Regulator] shall notify, in the official Gazette, cancellation of licence of a trade organisation.

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(4) Where the licence is cancelled on any ground mentioned in clause (d), (e), (f), (g), (h), (i), (k), (l) and (m) of sub-section (1) members of the trade organisation concerned found responsible by the [1][Regulator] for the grounds of cancellation shall be debarred from sponsoring the proposal for grant of licence or *de novo* licence to a trade organisation or becoming member of or holding any office of any trade organisation for a period not exceeding three years.

(5) Where the licence of a trade organisation has been cancelled under sub-section (1) and a member or member of executive committee or employee of such trade organisation continues to impersonate as member, member of executive committee or employee of the trade organisation, such person shall be liable to penalties under section 24.

8. Cancellation of registration.—(1) Notwithstanding anything contained in the Ordinance or any other law for the time being in force,—

(a) the registration of a trade organisation under the Ordinance shall be deemed to

[1]Subs. by Act No. IV of 2025, s.5.

have been cancelled with immediate effect if the licence granted to such trade organisation has been cancelled by the [1][Regulator] under section 7;

(b) the registration of an existing trade organisation shall stand cancelled with immediate effect if such a trade organisation has failed to apply for grant of fresh licence within the time notified by the [1][Regulator];

(c) the registration of an existing trade organisation under the Ordinance shall stand cancelled on 1st July, 2008, unless it has been granted licence by the [1][Regulator] under section 3.

(2) The registrar shall strike off the register, and publish in the official gazette, the names of all such trade organisations whose registration has been cancelled under sub-section (1).

(3) All affairs of a trade organisation whose registration stands cancelled under sub-section (1) shall be wound up in a manner as determined by the Federal Government.

9. Grant of licence *de novo*. — (1) Where licence of a trade organisation is cancelled under section 7, the [1][Regulator] may consider grant of licence *de novo* after a period of one year from the date of cancellation or licence:

Provided that where the licence of a trade organisation was cancelled under clause (a) of sub-section (1) of section 7, the [1][Regulator] may consider the grant of licence *de novo* at an earlier date.

(2) The trade organisation seeking licence under sub-section (1) shall be required to make an application in such form and manner as may be prescribed.

10. Membership of trade organisations.— (1) Chambers and sector specific associations on all Pakistan basis, granted licence under this Act, shall apply for membership of the Federation of Pakistan Chambers of Commerce and Industry within thirty days of grant of licence under this Act.

(2) Upon an application by a trade organisation under sub-section (1), the Federation of Pakistan Chambers of Commerce and Industry shall enroll such trade organisation as its member within thirty days and where such an enrolment is not decided within thirty days, the matter shall be referred to the Regulator alongwith the reasons for not allowing enrolment and the Regulator shall decide the matter within thirty days.

(3) A chamber or an association which is a member of the Federation of Chambers of Commerce and Industry shall be eligible to vote in the election of office-bearers and committees of the Federation on completion of two years of grant of licence:

Provided that the existing trade organisations, on grant of licence under this Act, shall be deemed to be members of the Federation and shall be entitled to vote.

(4) Proprietorships, associations of persons, partnerships, companies or multinational corporations engaged in trade, industry or services shall be entitled to enrolment as members of chambers and associations on fulfillment of the prescribed conditions.

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[1]Subs. by Act No. IV of 2025, ss.6-7.

(5) Notwithstanding anything contained in any other law for the time being in force any person engaged in trade, industry or service, or any combination thereof, shall be entitled to be enrolled as a member of a registered trade organisation except where such person is otherwise disqualified for any of the reasons as may be prescribed.

(6) Where a person, qualified to be enrolled as a member of a trade organisation, is refused enrolment or the enrolment is unduly delayed, on a complaint by the aggrieved person, the Regulator may direct the trade organisation concerned to enroll such person as a member on fulfillment of the prescribed requirements.

(7) New members of the chambers and associations shall be eligible to vote on completion of two years of their enrolment and payment of all dues:

Provided that old members of the chambers and associations at the time of renewal of membership which has been discontinued due to non payment of subscription dues shall be eligible to vote on completion of one year of their re-enrolment and payment of all dues.

(8) Except for the membership and office-bearers provided under this Act or prescribed rules, there shall not be any other position by any nomenclature in a trade organisation.

11. Organisation and tenure of office-bearers and executive committee of trade organisations.— (1) Notwithstanding anything in any other law for the time being in force and memorandum and articles of association of any existing trade organisation the tenure of office-bearers of all trade organisations shall be [1][two years],—

(a) in the case of the Federation of Pakistan Chambers of Commerce and Industry from the 1st day of January [1][* * * * * * *];

(b) in the case of all other trade organisations, from the 1st day of October

[1][* * * * * * *].

[2][* * * * * * *]

(2) The organisational structure of trade organisations including composition and tenure of Executive Committees and the manner of their elections shall be such as prescribed.

12. Uniformity in structure and autonomy of trade organizations.— (1) The [3][division to which business of this Act stands allocated] shall propose to and obtain approval from the Standing Committee on Commerce in the National Assembly for a minimum, basic template of Memorandum for all trade organisations to be registered under this Act;

(2) The said template shall be in compliance with the Ordinance and shall ensure integrity, transparency and efficiency in maintaining the roll of voting members, election of office bearers, fiduciary responsibility and right of the individual members of the trade organization.

[1]Subs. and omitted by Act No. XXVII of 2022, s. 2.
[2]Omitted by Act No. XVIII of 2025, s.2.
[3]Subs. by Act No. IV of 2025, s.9.

(3) After approval, the [1][division to which business of this Act stands allocated] shall publish in the official Gazette the basic template of Memorandum for all trade organisations to be registered under this Act;

(4) Apart from adherence to the basic template, the registered trade organisations shall be autonomous to make changes in its Memorandum in compliance with the Ordinance.

13. The Regulator.— (1) The [1][division to which business of this Act stands allocated] may, by notification in the official Gazette, appoint or empower an officer to perform functions of Regulator of trade organisations under this Act.

(2) The [1][division to which business of this Act stands allocated] may appoint or empower such other officers with such designations as it deems fit for performing under the superintendence and direction of the Regulator, such functions of the Regulator, under this Act as he may, from time to time, authorise them to discharge.

(3) The Regulator may, by order in writing,—

(a) review any function, matter, case or decision of any officer; or

(b) withdraw any function, matter or case from any officer or staff and deal with such function, matter or case himself either *de novo* or from the stage it was so withdrawn, or transfer the same to another officer or staff at any stage.

14. Powers and functions of the Regulator.— (1) All acts and proceedings of a registered trade organisation shall be subject to control of the Federal Government and, subject to such control, the affairs of such trade organisation shall be managed and conducted in such manner as the Regulator may, from time to time, direct.

(2) the Regulator shall, for the purpose of this Act, have the same powers as are vested in a Civil Court under the Code of Civil Procedure, 1908 (Act V of 1908) in respect of the following matters, namely:—

(a) summoning and enforcing attendance of any person and examining him on oath;

(b) compelling production of documents;

(c) receiving evidence on affidavit; and

(d) issuing commission for examination of witnesses.

(3) Notwithstanding anything contained in any law for the time being in force or in the articles or memorandum of association of a registered trade organisation and without prejudice to the generality of the foregoing provisions, the Regulator shall exercise the powers to—

(a) conduct enquiries into the affairs of a trade organisation as may be necessary for the purposes of this Act;

[1]Subs. by Act No. IV of 2025, ss.9-10.

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(b) inspect, with or without prior notice, any office of such trade organisation including any of its branch or regional, circle, zonal or liaison office, or any record or document found therein;

(c) attend any meeting of the general body or the Executive Committee of such trade organisation or of any committee or other body set up or appointed to transact any business, or to conduct any affair of such trade organisation;

(d) watch and supervise, or cause to be watched and supervised, any election held by or for the purpose of electing persons to the Executive Committee or other body including a region, circle or zone of any such trade organisation;

(e) act as a final forum of appeals against the decisions of any person, committee or office-bearers of a trade organisation in matters relating to electoral process before the conduct of election; and

(f) annul the results of any election held by any trade organisation if he is satisfied—

(i) upon his own knowledge and after such investigation he may think fit to make; or

(ii) upon a report made by a person authorised by him to make investigation for the purpose; or

(iii) upon a complaint filed by an aggrieved person in this behalf within thirty days of the announcement of the results of such election, that the irregularities in the conduct of such election justify such annulment and, by order in writing, direct fresh election to be held within such period as may be specified in the order;

(g) give directions to persons or trade organisations in matters concerning this Act or any rules or directive made thereunder;

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(h) impose and collect penalties and fines under section 25; and

(i) such other powers as are provided by this Act.

15. Powers to enter and search the premises.— (1) The Regulator or any officer authorized in this behalf may, for the purpose of making any investigation, enter any premises, where the Regulator or such authorized officer, as the case may be, has reasons to believe that any article, books of account, computer hardware or software, data recording devices or other document relating to the subject matter of investigation may be found and may—

(a) search such premises and inspect any article, books of account, computer hardware or software, data recording devices or other document;

(b) take extracts or copies of such articles, books of account or any software data;

(c) impound or seal such books of account, computer hardware or software, data recording devices or other documents; and

(d) make inventory of such articles, books of account, computer hardware or software, data recording devices or other documents found in such premises.

(2) All searches made under sub-section (1) shall be carried out, *mutatis mutandis*, in accordance with provisions of the Code of Criminal Procedure, 1898 (Act V of 1898).

(3) Before taking any action under this section, the Regulator shall submit to the [1][secretary of the division to which business of this Act stands allocated] in writing the evidence and reasons for taking the said action.

16. Supersession of Executive Committee, office-bearers and appointment of Administrator.— (1) Where the [1][secretary of the division to which business of this Act stands allocated] is in receipt of the findings of an investigation by the Regulator, that the affairs of a registered trade organisation are not being properly managed and that the interests of trade, industry or service so require, it may, by order in writing, suspend or supersede the Executive Committee of such trade organisation for such period, not exceeding six months. as may be specified in the order:

Provided that no such order shall be made unless the Executive Committee, intended to be suspended or superseded, has been given a notice in writing of and afforded an opportunity to make a representation against, the intended supersession.

(2) Where—

(a) an Executive Committee is superseded under sub-section (1);

(b) in the opinion of the [1][secretary of the division to which business of this Act stands allocated], it is not possible for any reason to reconstitute the Executive Committee at the due time of such reconstitution; or

(c) the Executive Committee is debarred by an order of any court, from discharging its functions, the [1][secretary of the division to which business of this Act stands allocated] may appoint, for such period, not exceeding six months, an Administrator to take over functions of such Committee and to manage and conduct affairs of the trade organisation:

Provided that when the period of supersession is terminated or the Executive Committee is reconstituted or the order of the court is vacated before expiry of the period for which the Administrator shall have been appointed, the [1][secretary of the division to which business of this Act stands allocated] may direct the Administrator to relinquish the functions taken over by him in favour of the Executive Committee.

(3) Upon appointment of an Administrator under clause (a) or clause (b) of sub-section (2), the members of the Executive Committee shall be deemed to have vacated their respective offices.

17. Administrator to act under control of the Regulator.— (1)The Administrator shall manage and conduct affairs of the trade organisation under supervision and control of the Regulator

[1]Subs. by Act No. IV of 2025, ss.11-12.

and in accordance with the rules, if any, made in this behalf by the Federal Government and, until such rules are made, in accordance with such directions as the Regulator may, from time to time, give.

(2) The rules and directions referred to in sub-section (1) may provide for—

(a) the appointment of an Advisory Committee consisting of persons selected from members of the trade organisation to assist the Administrator in discharge of his functions;

(b) holding of elections for the purpose of reconstitution of the Executive Committee at any time considered appropriate before expiry of term of appointment of the Administrator;

(c) compliance with provisions of the Ordinance to the extent applicable to the trade organisation except those relating to laying of the income and expenditure account and reading of the auditor's report in general meeting;

(d) withholding, during the period of supersession of the Executive Committee, of the general meeting of the trade organisation other than the meeting to hold elections for reconstituting the Executive Committee;

(e) conduct of any business, during the period the general meeting remains withheld, which requires approval or assent of the members at a general meeting;

(f) the pay, allowances, remuneration and other privileges, of the Administrator and members of the advisory committee; and

(g) such other matters as are necessary for efficient management of affairs of the trade organisation.

(3) Any expenditure incurred in connection with management of a trade organisation by the Administrator, including pay, allowances and remuneration of the Administrator and members of the Advisory Committee, shall be met as expenses, and be a charge on the income, of the trade organisation:

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Provided that the [1][division to which business of this Act stands allocated] may allow remuneration, honorarium to and re-imbursement of actual expenses incurred by the Administrator in connection with performance of his functions to be met from the Trade Organisations Fund.

18. Restriction on suits against trade organisations.— Notwithstanding anything contained in any law for the time being in force or in the articles or memorandum of a registered trade organisation, no suit or other legal proceedings relating to affairs of a trade organisation shall be instituted or commenced in any court except High Court.

19. Compulsory membership of trade organisations.—(1) Notwithstanding anything contained in any other law for the time being in force or in the articles or memorandum of association of any trade organisation or other company or in any agreement or other instrument, the [1][division to which business of this Act stands allocated] may,—

[1]Subs. by Act No. IV of 2025, ss.13-14.

(a) subject to any rules made in this behalf, by order in writing, direct any firm, company or other concern engaged in any trade, commerce, industry or service to be a member of registered trade organisation specified in the order; or

(b) if it considers expedient in the interest of trade, commerce, industry, or service, by notification in the official Gazette, direct all such firms, companies or concerns or any class thereof engaged in trade, commerce, industry or service, as may be specified in the notification subject to exception if any, to be members of the registered trade organisation or organisations specified in this behalf in such notification.

(2) Upon the issue of an order or notification under sub-section (1), the registered trade organisation concerned shall admit as its member any firm, company or concern directed to be its member by such order or notification.

20. Restriction on membership.— (1) No person shall be a member of more than such number of trade organisations as the [1][division to which business of this Act stands allocated] may, by notification in the official Gazette, specify in this behalf.

(2) A person convicted for any offence under this Act shall not hold, or be eligible for holding, any office in a registered trade organisation unless a period of five years has elapsed.

21. Appeal.— (1) Any person or trade organisation aggrieved by any decision or order of the Administrator may, within fourteen days of communication of such decision or order, prefer appeal to the Regulator.

(2) Any person or trade organisation aggrieved by any decision or order of the Regulator may, within fourteen days of communication of such decision or order, prefer appeal to the [1][secretary of the division to which business of this Act stands allocated] whose decision, subject to sub-section (4), shall be final.

(3) On appeal under sub-section (1) the Regulator or, as the case may be, under sub-section (2) the [1][secretary of the division to which business of this Act stands allocated] may suspend the operation or execution of the decision or order appealed against until the disposal of such appeal.

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(4) Any person aggrieved by the final order or decision of the [1][secretary of the division to which business of this Act stands allocated], involving a question of law, may, within thirty days of such order or decision, prefer appeal to the High Court.

22. Delegation of powers.— (1) The [1][division to which business of this Act stands allocated] may, by notification in the official Gazette, direct that all or any of its powers under this Act shall, in relation to such matters or subject to such conditions as may be specified therein, also be exercisable by the Regulator.

(2) The Regulator may, by order in writing, authorise the Administrator or any other officer to exercise and perform any of his powers and functions under this Act.

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[1]Subs. by Act No. IV of 2025, ss.15-17.

23. Federal Government may carry out functions of the Regulator.— Notwithstanding anything contained in any other provision of this Act, the [1][division to which business of this Act stands allocated] may, by notification in the official Gazette, direct that powers and functions of the Regulator shall, under such circumstances or in such cases, as may be specified in the notification, be exercised and performed by the [1][division to which business of this Act stands allocated] and upon such notification reference to the Regulator in the relevant provisions of this Act shall be construed as reference to the [1][division to which business of this Act stands allocated] and such provisions shall have effect accordingly.

24. Power to levy fee etc.—The Federal Government may levy and charge prescribed processing fee for grant of licence or renewal of licence to a trade organisation and for examining performance reports, audited accounts and other documents submitted to the Federal Government or the Regulator.

25. Penalty.— Where a person contravenes any provision of this Act or any rule or order made or any direction or instruction given thereunder or obstructs any officer or person acting under or in pursuance of any such provision, rule, order, direction or instruction, shall be liable to penalty which may extend to one hundred thousand rupees.

26. Contravention by companies, etc.—Where a person contravening or failing to comply with, any provision of this Act or any rule, order or direction made or issued thereunder is a company or other body corporate, every managing director, director, manager, secretary or other officer or agent thereof shall, unless he proves that the offence was committed without his knowledge or that he exercised due diligence to prevent its commission, shall be liable to the penalty as provided for such contravention or failure.

27. Trade Organisations Fund.— (1) There shall be established a fund to be known as the Trade Organisations Fund which shall consist of —

(a) grants made by the Federal Government and the Provincial Governments;

(b) fees and penalties collected by the Regulator; and

(c) contributions from local and foreign donors or agencies.

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(2) The Federal Government shall make rules and regulations for utilizing and incurring expenditures from the Fund.

(3) For the purpose of maintaining the Fund the [1][Regulator] may open and maintain accounts at such scheduled banks as [1][he] may from time to time determine.

28. Presumption as to orders.— Where an order purports to have been made or signed by an authority or person in exercise of any power conferred by or under this Act, a court shall presume that such order was so made by that authority or person.

29. Mode of recovery.— Any sum imposed as penalty under this Act shall be recoverable as an arrear of land revenue.

30. Indemnity.— No suit, prosecution or other legal proceedings shall lie against any person

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[1]Subs. by Act No. IV of 2025, ss.18-19.

for anything which is, in good faith, done or intended to be done in pursuance of this Act or any rule or order made or any direction given thereunder.

31. Power to make rules.— The Federal Government may, by notification in the official Gazette, make rules for carrying out purposes of this Act.

32. Act to override other laws.— The provisions of this Act shall have effect notwithstanding anything to the contrary contained in any other law, for the time being in force.

33. Merger of trade organisations.— Notwithstanding anything contained in any other law for the time being in force or provisions contained in memorandum and articles of association of any trade organisation, the [1][division to which business of this Act stands allocated] may, by notification in official Gazette, direct any number of trade organisations to merge if each of' them is involved in the same or significantly similar trade, industry or services or any combination thereof:

Provided that if two or more trade organisations are involved in the same or significantly similar trade, industry or services or any combination thereof, their merger shall be determined by the [1][division to which business of this Act stands allocated] whose decision in this regard shall be final.

34. Transitional provisions.— (1) All existing trade organisations, before making application for grant of licence under this Act, shall alter their memorandum and articles of association or any existing arrangement and shall take such other actions as are necessary to bring the constitution, working and procedures of the existing trade organisations in conformity with provisions of this Act.

(2) Notwithstanding anything contained in this Act or any other law, for the time being in force, or provisions contained in the memorandum and articles of association of any trade organisation, in order to bring the composition of the Federation of Pakistan Chambers of Commerce and Industry, chambers and associations in conformity with the provisions of this Act, the [1][division to which business of this Act stands allocated] may, within six months of the commencement of this Act, pass any orders deemed appropriate for this purpose. Such orders may include, but not limited to, extension of the tenure of the office bearers and committees or supersession of Executive Committee or appointment of administrator or annulment of the elections of any trade organisation including the Federation of Pakistan Chambers of Commerce and Industry, held under the repealed ordinance or the order of the court. Simultaneously, with the passing of such order, the [1][division to which business of this Act stands allocated] shall issue schedule of election for the respective trade organisation.

35. Repeal and savings.— On commencement of this Act,—

(a) the Trade Organisations Ordinance, 1961 (XLV of 1961), in its application to trade organisations with objects and business not confined to one Province, shall stand repealed with effect from the 30th December, 2006; and

(b) save as otherwise expressly provided, nothing in this Act, or any repeal effected thereby, shall affect or deemed to affect anything done, action taken, investigation and proceedings commenced and orders, rules, regulations, appointment, documents or agreements made, directions given, proceedings taken and instruments executed or issued under or in pursuance of the repealed ordinance and any such thing, action, investigation, proceedings, orders, rules,

[1]Subs. by Act No. IV of 2025, ss.20-21.

regulations, appointments, deeds, documents, directions, proceedings shall, if in force at the commencement of this Act and not inconsistent with any of the provisions of this Act, continue to be in force and have effect as if it were respectively done, taken, commenced, made, directed, given, executed or issued under corresponding provision of this Act.

36. Validation of actions etc.— Anything done, actions taken, orders passed, instruments made, proceedings initiated, processes or communications issued, powers conferred, assumed, exercised by the Federal Government or Regulator on and after the 4th October, 2007 and before the commencement of this Act shall be deemed to have been validly done, made, issued, taken, initiated, conferred, assumed and exercised and the provisions of this Act shall have, and shall be deemed always to have had, effect accordingly.

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RGN Dated: 24-06-2025

THE TRANSFER OF EVACUEE DEPOSITS ACT, 1956

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THE TRANSFER OF EVACUEE DEPOSITS ACT, 1956

ACT NO. XLV OF 1956

[12th *November*, 1956]

An Act to provide, in pursuance of an Agreement with India, for the transfer to that country of certain deposits belonging to evacuees, the reception in Pakistan of similar deposits belonging to refugees and matters connected therewith.

WHEREAS, in pursuance of an Agreement with India, it is expedient to provide for the transfer to that country of certain deposits belonging to evacuees, the reception in Pakistan of similar deposits belonging to refugees and matters connected therewith ;

It is hereby enacted as follows :—

1. Short title, extent and commencement.— (1) This Act may be called the Transfer of Evacuee Deposits Act, 1956.

(2) It extends to [1][the whole of Pakistan] [2][* * *].

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Custodian" means the Custodian of Deposits appointed under section 3, and includes an Assistant Custodian of Deposits ;

(b) "deposit" means—

(i) any movable property in the custody or under the control of any Civil or Revenue court in respect of any proceedings before it ; or

(ii) any movable property under the superintendence or in the custody of a Court of Wards under any law for the time being in force, whether such movable property be in the actual custody of the Court of Wards, or in that of some other authority on its behalf ; or

(iii) any movable property in the custody or under the control of a Manager;

and includes any securities, insurance policies and negotiable instruments in the custody or under the control of any such Civil or Revenue court or under the superintendence or in the custody of such Court of Wards or in the custody or under the control of a Manager.

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Sch.
[2]Omitted by the Central Adaptation Order of Laws 1964 (P. O. No. 1 of 1964), Art. 2 and Sch.

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Explanation I.—"Securities" include shares, scrips, stocks, bonds, debentures, debenture stocks, or other marketable securities of a like nature in or of any body corporate and also Government securities.

Explanation II.—Where any deposit in the custody or under the control of any Civil or Revenue court or under the superintendence or in the custody of a Court of Wards or in the custody or under the control of the Manager has vested in the Custodian of Evacuee Property, such deposit shall, for the purposes of this Act, be deemed to be in the custody or under the control of such Civil or Revenue court or under the superintendence or in the custody of the Court of Wards or in the custody or under the control of the Manager as the case may be ;

(c) "refugee" means a person who, having been ordinarily resident in any place in the territories now comprising India, or in any area occupied by India, has, on account of the setting up of the Dominions of Pakistan and India, or on account of civil disturbances or the fear of such disturbances, taken refuge in Pakistan ;

(d) "evacuee" means any person who, on account of the setting up of the Dominions of Pakistan and India or on account of civil disturbances or the fear of such disturbances, has, on or after the first day of March, 1947, left any place to which this Act extends and who is now residing in any place forming part of India ;

(e) "Manager" means the manager of an encumbered estate appointed under any law for the time being in force relating to encumbered estates ;

(f) "transferable deposit" means a deposit in which an evacuee has any right or interest to the extent of that right or interest ;

(g) "prescribed" means prescribed by rules made under section 13.

3. Appointment of Custodian and Assistant Custodian of Deposits.—(1) The [1][Federal Government] may, by notification in the official Gazette, appoint a Custodian of Deposits and as many Assistant Custodians of deposits as may be necessary for the purpose of discharging the duties imposed upon the Custodian and Assistant Custodians by or under this Act.

(2) Subject to the provisions of this Act, the Custodian and Assistant Custodians of Deposits shall discharge the duties imposed on them by or under this Act under the general superintendence and control of the [1][Federal Government], and the [1][Federal Government] may, by general or special order, provide for the distribution and transfer of work among them.

(3) Subject to the provisions of this Act, the Assistant Custodians of Deposits shall discharge the duties imposed on them by or under this Act under the general superintendence and control of the Custodian.

4. Procedure for transfer of certain deposits.— (1) Where a Civil or Revenue court or a Court of Wards or a Manager is satisfied—

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Sch.

(a) in the case of a Civil or Revenue court other than a Civil court exercising jurisdiction under the Guardians and Wards Act, 1890 (VIII of 1890), or Manager that no party interested in a deposit is a Muslim ;

(b) in the case of a Civil court exercising jurisdiction under the Guardians and Wards Act, 1890 (VIII of 1890), that neither the guardian nor the minor interested in a deposit is a Muslim;

(c) in the case of a Court of Wards having under its superintendence or custody a deposit, that the ward is not a Muslim ;

the Civil or Revenue court or the Court of Wards or the Manager, as the case may be, shall, as soon as may be after the commencement of this Act, transfer the deposit, along with the records relating thereto, to such authorised officer or authority in India as the [1][Federal Government] may by general or special order specify in this behalf:

Provided that where in the opinion of the Civil or Revenue court or the Court of Wards or the Manager, as the case may be, any of the persons interested in a deposit is not an evacuee, the deposit shall not be transferred to India.

(2) Every Civil or Revenue court and every Court of Wards or Manager shall, as soon as may be, send to the Custodian in such form as may be prescribed, particulars of all deposits transferred to India under sub-section (1).

5. Procedure for transfer of certain other deposits.— (1) Where either on a request received in this behalf from any such officer or authority in India as may be specified in this behalf by the [1][Federal Government] by notification in the official Gazette, or on any other information available to him, the Custodian is of opinion that there is a transferable deposit to which the provisions of section 4 do not apply, he may send for the record relating thereto from any court or other authority and inspect the same.

(2) If, after making any such inspection as is referred to in sub-section (1) and after making such further inquiry into the matter as may be prescribed, the Custodian is satisfied that the deposit is a transferable deposit, he may, by order, direct that the deposit shall be transferred to such authorised officer or authority in India as the [1][Federal Government] may, by general or special order, specify in this behalf, and any court or other authority holding in its custody or under its control any such deposit shall comply with the direction.

(3) Notwithstanding anything contained in this section, where in respect of any deposit the extent of the right or interest of an evacuee in such deposit is not easily ascertainable or having regard to the nature of the deposit it is in the opinion of the Custodian not practicable to separate the right, or interest of the evacuee from the right or interest of other persons in such deposit, the Custodian shall not transfer any part of the deposit to India.

6. Transfer of records relating to transferable deposits.— (1) Where a transferable deposit is directed to be transferred to India under the provisions of section 5, the Custodian may send the record relating to the deposit, or if it is expedient so to do only a certified copy of such part of the record as in the opinion of the Custodian is material to the case, to the Government of India or to such officer or authority to whom or to which the deposit has been directed to be transferred.

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Sch.

(2) If a certified copy only is sent in pursuance of sub-section (1), the original record, together with a copy of the order of the Custodian under section 5 shall be returned to the court or other authority from which it was obtained.

7. Power of Court or Custodian to convert deposits into money before transmission to India. Where the transfer to India of any article which is or forms part of a transferable deposit is prohibited under any law for the time being in force, it shall be lawful for the Civil or Revenue court, or the Court of Wards or the Manager or the Custodian, as the case may be, to convert the article into money in such manner as may be prescribed, and upon such conversion the provisions of this Act shall apply to the proceeds thereof as they apply to transferable deposit.

8. Cessation of jurisdiction in respect of deposits transferred. Upon the transfer of any transferable deposit under section 4, or in pursuance of an order of the Custodian under section 5, all courts and authorities in Pakistan shall, save as otherwise provided in this Act, cease to have or exercise any jurisdiction in relation to the deposit so transferred in so far as it relates to the right or interest of any evacuee in the deposit.

9. Reception in Pakistan of deposits transferred from India.— (1) It shall be lawful for the Custodian to receive and hold in his custody any deposit transferred by any such officer or authority in India as may be specified by the [1][Federal Government] by general or special order as being a deposit belonging to any refugee.

(2) On receipt of any such deposit as is referred to in sub-section (1), the Custodian shall cause notice thereof to be given in such manner as may be prescribed to all persons who may appear to be interested in the deposit, and after giving a reasonable opportunity to such persons to be heard in the matter and after inspecting any such record relating to the deposit as may be transferred from India, dispose of the deposit in the manner following, that is to say,___

(a) if the claimant, where there is only one claiming and entitled to the deposit, or if all the claimants, where there are more than one, appear before the Custodian and there is no dispute as to the distribution of the deposit, the Custodian shall pay the deposit to that claimant, or, as the case may be, distribute the deposit among the claimants in the manner agreed to by them ;

(b) if all the claimants do not appear before the Custodian or if all such claimants appear but do not agree as to the person or persons entitled to the deposit or to the distribution of the deposit among them the Custodian shall forward the deposit and the records relating thereto to the principal Civil court of original jurisdiction within whose jurisdiction all or the largest number of claimants reside, or where the claimants residing within the jurisdictions of two or more of such courts are equal in number, to the court which in the opinion of the Custodian shall best serve the convenience of the claimants.

(3) The court to which a deposit and any record relating thereto are forwarded under sub-section (2), shall proceed to deal with the matter as if the deposit had been made in compliance with an order made by it in a proceeding before it and, after making such further inquiry into the matter as it may think fit, award the deposit to the person or distribute it among the persons who in its opinion is or are entitled thereto.

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Sch.

(4) Any party aggrieved by an order made by a court under sub-section (3) may appeal against the order if the value of the claim made in the appeal exceeds two thousand rupees as against an appealable decree or, where the value of the claim is less, apply for a revision as against in non-appealable decree ; and the provisions of the Code of Civil Procedure, 1908 (Act V of 1908), and of the Court Fees Act, 1870 (VII of 1870), shall apply accordingly to such appeal or application for revision.

(5) The disposal of any deposit in accordance with the provisions of this section shall discharge the Custodian from any liability to any person in respect of the deposit.

10. Powers of Custodian. The Custodian shall have all powers vested in a Civil court under the Code of Civil Procedure, 1908 (Act V of 1908), when trying a suit, in respect of the following matters, namely :—

(a) discovery and inspection ;

(b) enforcing the attendance of witnesses and requiring the deposit of their expenses ;

(c) compelling the production of documents ;

(d) examining witnesses on oath ;

(e) reception of evidence and affidavits ;

(f) issuing commissions for the examination of witnesses:

and may summon and examine *suo motu* any person whose evidence appears to him to be material ; and shall be deemed to be a Civil court within the meaning of sections 480 and 482 of the Code of Criminal Procedure, 1898 (Act V of 1898).

Explanation.— For the purpose of enforcing the attendance of witnesses, the local limits of the jurisdiction of the Custodian shall be the local limits for which he is appointed.

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11. Jurisdiction of Civil courts barred. No Civil court shall question the legality of any action taken or of any decision given by the Custodian in connection with the transfer of any transferable deposit or with the disposal of any deposit received from India as belonging to a refugee.

12. Protection of action taken in good faith. No suit, prosecution or other legal proceedings shall lie against the [1][Federal Government] or any Custodian or any other person in respect of anything which is in good faith done or intended to be done in pursuance of this Act or of any rule or order made thereunder.

13. Power to make rules.— (1) The [1][Federal Government] may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may—

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. 4 of 1975), Art. 2 and Sch.

(a) define the terms and conditions of service of Custodians and the local limits of their respective jurisdictions and provide for the distribution and transfer of work among or from them ;

(b) prescribe the manner in which deposits any records relating thereto may be transferred to India;

(c) prescribe the manner in which and inquiry under this Act may be held;

(d) prescribe the manner in which a transferable deposit may be converted into money under section 7;

(e) specify the persons to whom and the manner in which notices of any proceedings under this Act shall be given;

(f) prescribe the manner in which certified copies of any record may be prepared under this Act and the fees, if any, which may be levied in respect of such certified copies;

(g) prescribe the form in which any application may be made to the Custodian under this Act.

14. [1][* * * * * * *]

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Date: 03-02-2025

[1]Rep. by the Repealing and Amending Ordinance, 1965 (X of 1965), s. 2 and 1st Sch.

THE TRANSFER OF EVACUEE LAND (*KATCHI ABADI*) ACT, 1972

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THE TRANSFER OF EVACUEE LAND (*KATCHI ABADI*) ACT, 1972

[1]Act No. XIII of 1972

[17th September, 1972]

An Act to provide for transfer of certain evacuee land to the occupants thereof

WHEREAS it is expedient to provide for the transfer of certain evacuee land to the occupants thereof;

AND WHEREAS the Proclamation of Emergency referred to in clause (8) of Article 139 of the Interim Constitution of the Islamic Republic of Pakistan is in force;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Transfer of Evacuee Land (*Katchi Abadi*) Act, 1972.

(2) It extends to the whole of Pakistan.

(3) It shall come into force in the Province of the Punjab and the Capital of the Federation at once and in the other Provinces or parts thereof on such date[2] as the Federal Government may, by notification in the official Gazette, appoint in this behalf; and different dates may be appointed in respect of different Provinces or parts thereof.

2. Definitions.—(1) In this Act, unless there is anything repugnant in the subject or context,—

(a) "Acts" means the Displaced Persons (Compensation and Rehabilitation) Act, 1958 (XXVIII of 1958), and the Displaced Persons (Land Settlement) Act, 1958 (XLVII of 1958);

(b) "appointed day" means the fifteenth day of March, 1972;

(c) "Chief Settlement Commissioner" means the Chief Settlement Commissioner appointed by the Government under either or both the Acts;

(d) "evacuee land" means any land, plot or vacant site abandoned by an evacuee as defined in the Pakistan (Administration of Evacuee Property) Act, 1957 (XII of 1957); [3][including any land, plot or vacant site allotted, transferred or otherwise disposed of by the Chief Settlement Commissioner or any other authority under either of the Acts or any other law for the time being in force];

(e) "Government" means a Provincial Government; and

(f) "*Katchi Abadi*" means such inhabited area of evacuee land as is declared by the Chief Settlement Commissioner to be a *Katchi Abadi* for the purposes of this Act.

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[1] For Statement of Objects and Reasons, see Gaz. of P., 1972. Ext.. Pt. Ill,p. 413.

[2] The Act came into force in the Province of Sind on 20-1-1973, see Notifin., No. F. 13(13)/72, SLI, dated, 20-1-1973, Gaz. of P., 1973, Ext., Pt. Ill, p. 255 and in the Province of Balochistan and N.W.F.P., on 1-6-1973 *see* Notifin. No. F. 13(I3)/72-SLE, dated 31-5-1973, Gaz. of P., 1973, Ext., Pt. Ill, p. 1149'

[3]Added by the Transfer of Evacuee Land (*Katchi Abadi*) (Amdt.), Act, 1977 (3 of 1977), s. 2 (*w.e.f*. 18-9-1972).

(2) A declaration under clause (f), of sub-section (1) shall be published in the official Gazette within thirty days from the date on which it is made.

(3) Words and expressions used but not defined in this Act and defined in the Acts shall have the same meanings as assigned to them in the Acts.

3. Act to override other laws, etc. This Act shall have effect notwithstanding anything to the contrary contained in any other law or any decree, judgement or order of any court or other authority, or any agreement, contract or instrument.

4. Cancellation of allotments and transfers of evacuee land.—(1) All allotments and transfers of evacuee land in any *Katchi Abadi* shall stand cancelled as from the appointed day, and the allottees or transferees of such land shall be paid such compensation therefore as may be determined by Government.

(2) Nothing in sub-section (1) shall apply to such evacuee land as was occupied by its allottee or transferee on the appointed day and does not exceed his verified claim.

5. Conferment of proprietary rights on occupants of evacuee land.—(1) Any person, other than a person referred to in subsection (2) of section 4, who, on the appointed day, was in occupation of evacuee land in any *Katchi Abadi* and did not own any other plot, house or shop shall be granted proprietary rights in respect of such land not exceeding five marlas, on payment of such price as may be determined by the Chief Settlement Commissioner on the basis of the market price prevailing in the year 1947.

Explanation.—For the purpose of this sub-section, "shop" does not include a shop situated outside a *Katchi Abadi* to which no residential accommodation is attached.

(2) The price payable by any persons under sub-section (1) shall, at his option, be paid in a lump sum or in six half-yearly installments and shall form part of the compensation pool.

Explanation.— "Compensation pool" means—

(a) if the evacuee land the price of which is paid under subsection (1) is agricultural land, the compensation pool constituted under the Displaced Persons (Land Settlement) Act, 1958 (XLVII of 1958); and

(b) if such land is not agricultural land, the compensation pool constituted under the Displaced Persons (Compensation and Rehabilitation) Act, 1958 (XXVIII of 1958).

6. Resumption of land.—(1) Any evacuee land in a *Katchi Abadi* which is not transferred under section 5 shall be resumed by the Chief Settlement Commissioner to whom the occupant thereof shall give vacant possession of such land within the time stipulated by the Chief Settlement Commissioner.

(2) For the purpose of recovering possession of any land under sub-section (1), the Chief Settlement Commissioner may use or cause to be used such force as may be necessary.

7. Preparation of scheme. The Chief Settlement Commissioner may, with the approval of the Government, prepare a scheme for carrying out the purposes of this Act.

8. Penalty. Any person who resists or interferes with the enforcement of the provisions of this Act or any scheme or order made thereunder shall be punishable with rigorous imprisonment for a term which may extend to one year, or with fine, or with both.

9. Prosecution. No person shall be prosecuted for an offence under this Act without the prior approval in writing of the Chief Settlement Commissioner.

10. Bar of jurisdiction. No provision of this Act or any order made or scheme prepared thereunder or any action taken in pursuance thereof shall be called in question by or before any court.

11. Validation. Notwithstanding the repeal of Martial Law Order No. 251 made by the Martial Law Administrator, Zone 'C', any action taken scheme made, order passed and thing done in pursuance thereof shall be deemed respectively to have been taken, made, passed and done under this Act.

12. Delegation of power. Subject to the provisions of this Act and the rules made thereunder, the Chief Settlement Commissioner may, by notification in the official Gazette, delegate all or any of his powers under this Act or the rules made thereunder to a Settlement Commissioner or an Additional or a Deputy Settlement Commissioner, subject to such conditions, if any, as may be specified in the notification.

13. Power to make rules. Government may make rules for giving effect to the provisions of this Act.

[1]**14. Repeal.** The Transfer of Evacuee Land (*Katchi Abadi*) Ordinance, 1972 (XX of 1972), is hereby repealed.

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[1] This section has been omitted in its application to the extent of Islamabad Capital Territory by the Federal Laws (Revision and Declaration) Ordinance, 1981, (27 of 1981), s. 5 and IV Sch.,

THE TRANSFER OF PROPERTY ACT, 1882

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THE TRANSFER OF PROPERTY ACT, 1882

[1]ACT No. IV OF 1882

[*17th February, 1882*]

An Act to amend the law relating to the Transfer of Property by act of Parties.

Preamble. WHEREAS it is expedient to define and amend certain parts of the law relating to the transfer of property by act of parties; It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title.—This Act may be called the Transfer of Property Act, 1882.

Commencement. It shall come into force on the first day of July, 1882.

[2][* * * * * * *]

Extent. [3][[2][This] Act or any Part thereof may by notification in the official Gazette be extended to the whole or any part of [2][a Province] [4][by the Provincial Government]].

[5][And any [6][Provincial Government] may, [7][* * *] from time to time, by notification in the [6][official Gazette], exempt either retrospectively or prospectively, any part of the territories administered by such [5][Provincial Government] from all or any of the following provisions, namely:—

Sections 54, paragraphs 2 and 3, 59, 107 and 123.]

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[1]This Act has been extended with effect from 1st January, 1915, to the Province of Sindh, *see* Bom. R. & O.
Ss. 54, 107 and 123 have been extended from 6th May, 1935, to all Municipalities in the Punjab and all notified areas declared and notified under s. 241 of the Punjab Municipal Act, 1911, *see* Punjab Gazette Extraordinary, 1925, p. 27.
S. 54, paras, 2 and 3, and ss. 59, 107 and 123 extend to every cantonment in the Provinces, etc., *see* s. 287 of the Cantonments Act. 1924 (Act No. II of 1924). It has been rep. as to Crown Grants by the Crown Grants Act, 1895 (Act No. XV of 1895), and amended in Sind by Sind Act No. XIV of 1939, s.2.
This Act shall be deemed to have been amended in its application to the Province of Sind, *see* Sind Act No. XIV of 1939.
The Act has been extended, in respect of non-agricultural lands, to Baluchistan States Union and the Khairpur State by G.G.Os. 4 and 5 of 1953, as amended respectively.
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th Septemter, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (Ordinance No. XXXVII of 1960), s. 2.
The Act, as in force in the North-West Frontier Province immediately before the commencement of N.W.F.P. Regulation No. 2 of 1974, has been applied to the Provincially Administered Tribal Areas of Chitral, Dir, Kalam, Swat and Malakand protected Area, by N.W.F.P. Regulation, No. 2 of 1974, s. 3.
[2]Omitted and subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Sch.
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch.
[4]Subs. by A. O., 1964, Art. 2 and Sch.
[5]Subs. by Act No. III of 1885, s. 1.
[6]Subs. by A. O., 1937.
[7]Rep. by the Devolution Act, 1920 (Act No. XXXVIII of 1920), s. 2 and Sch. 1.

[1][Notwithstanding anything in the foregoing part of this section, sections 54, paragraphs 2 and 3, 59, 107 and 123 shall not extend or be extended to any district or tract of country for the time being excluded from the operation of the Registration Act, [2][1908(XVI of 1908)], under the power conferred by the first section of that Act or otherwise.]

2. Repeal of Acts. Saving of certain enactments, incidents, rights, liabilities, etc.—In the territories to which this Act extends for the time being the enactments specified in the schedule hereto annexed shall be repealed to the extent therein mentioned. But nothing herein contained shall be deemed to affect—

(a) the provisions of any enactment not hereby expressly repealed :

(b) any terms or incidents of any contract or constitution of property which are consistent with the provisions of this Act, and are allowed by the law for the time being in force:

(c) any right or liability arising out of a legal relation constituted before this Act comes into force, or any relief in respect of any such right or liability: or

(d) save as provided by section 57 and Chapter IV of this Act, any transfer by operation of law or by, or in execution of, a decree or order of a Court of competent jurisdiction:

and nothing in the second chapter of this Act shall be deemed to affect any rule of [3][*], [4][Muslim] [3][* *]law.

3. Interpretation clause.—In this Act, unless there is something repugnant in the subject or context,—

"immoveable property" does not include standing timber, growing crops or grass:

"instrument" means a non-testamentary instrument :

[5]["attested", in relation to an instrument, means [6][and shall be deemed always to have meant] attested by two or more witnesses each of whom has seen the executant sign or affix his mark to the instrument, or has seen some other person sign the instrument in the presence and by the direction of the executant, or has received from the executant a personal acknowledgement or his signature or mark, or of the signature of such other person, and each of whom has signed the instrument in the presence of the executant; but it shall not be necessary that more than one of such witnesses shall have been present at the same time, and no particular form of attestation shall be necessary:]

"registered" means registered in [7][a province] under the law for the time being in force regulating the registration of documents:

[1]Ins. by Act No. III of 1885; it is to be deemed to have been added from the date on which Act 4 of 1882 came into force.
[2]Subs. by Act No. XX of 1929, for 1877.
[3]Rep. by Act No. XX of 1929, s. 3.
[4]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Table.
[5]Ins. by Act No. XXVII of 1926, s. 2.
[6]Ins. by the Repealing and Amending Act, 1927 (Act No. X of 1927), s. 2 and Sch. 1.
[7]Subs. by A. O., 1949, Sch.

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"attached to the earth" means—

(a) rooted in the earth, as in the case of trees and shrubs ;

(b) imbedded in the earth, as in the case of walls or buildings ; or

(c) attached to what is so imbedded for the permanent beneficial enjoyment of that to which it is attached:

[1]["Actionable claim" means a claim to any debt, other than a debt secured by mortgage of immoveable property or by hypothecation or pledge of moveable property, or to any beneficial interest in moveable property not in the possession, either actual or constructive, of the claimant, which the Civil Courts recognize as affording grounds for relief, whether such debt or beneficial interest be existent, accruing, conditional or contingent:]

[2]["a person is said to have notice" of a fact when he actually knows that fact, or when, but for wilful abstention from an inquiry or search which he ought to have made, or gross negligence, he would have known it.

Explanation I.—Where any transaction relating to immoveable property is required by law to be and has been effected by a registered instrument, any person acquiring such property or any part of, or share or interest in, such property shall be deemed to have notice of such instrument as from the date of registration or, [3][where the property is not all situated in one sub-district, or where the registered instrument has been registered under sub-section (2) of section 30 of the Registration Act, 1908 (XVI of 1908), from the earliest date on which any memorandum of such registered instrument has been filed by any Sub-Registrar within whose sub-district any part of the property which is being acquired, or of the property wherein a share or interest is being acquired, is situated] :

Provided that—

(1) the instrument has been registered and its registration completed in the manner prescribed by the Registration Act, 1908(XVI of 1908), and the rules made thereunder,

(2) the instrument [3][or memorandum] has been duly entered or filed, as the case may be, in books kept under section 51 of that Act, and

(3) the particulars regarding the transaction to which the instrument relates have been correctly entered in the indexes kept under section 55 of that Act.

Explanation II.—Any person acquiring any immoveable property or any share or interest in any such property shall be deemed to have notice of the title, if any, of any person who is for the time being in actual possession thereof.

Explanation III.—A person shall be deemed to have had notice of any fact if his agent acquires notice thereof whilst acting on his behalf in the course of business to which that fact is material:

Provided that, if the agent fraudulently conceals the fact, the principal shall not be charged with notice thereof as against any person who was a party to or otherwise cognizant of the fraud.]

[1]Ins. by Act No. II of 1900, s. 2.
[2]Subs. by Act No. XX of 1929, s. 4.
[3]Ins. by Act No. V of 1930, s. 2.

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4. Enactments relating to contracts to be taken as part of Contract Act.— The chapters and sections of this Act which relate to contracts shall be taken as part of the Contract Act, 1872 (IX of 1872).

[1][And sections, 54 paragraphs 2 and 3, 59, 107 and 123 shall be read as supplemental to the Registration Act, [2][1908 (XVI of 1908)].]

CHAPTER II

OF TRANSFERS OF PROPERTY BY ACT OF PARTIES

(A) Transfer of Property, whether moveable or immoveable

5. "Transfer of property" defined.— In the following sections "transfer of property" means an act by which a living person conveys property, in present or in future, to one or more other living persons, or to himself,

[2][or to himself] and one or more other living persons; and "to transfer property" is to perform such act.

[2][In this section "living person" includes a company or association or body of individuals, whether incorporated or not, but nothing herein contained shall affect any law for the time being in force relating to transfer of property to or by companies, associations or bodies of individuals.]

6. What may be transferred.— Property of any kind may be transferred, except as otherwise provided by this Act or by any other law for the time being in force.

(a) The chance of an heir-apparent succeeding to an estate, the chance of a relation obtaining a legacy on the death of a kinsman, or any other mere possibility of a like nature, cannot be transferred.

(b) A mere right of re-entry for breach of a condition subsequent cannot be transferred to any one except the owner of the property affected thereby.

(c) An easement cannot be transferred apart from the dominant heritage.

(d) An interest in property restricted in its enjoyment to the owner personally cannot be transferred by him.

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[2][(dd) A right to future maintenance, in whatsoever manner arising, secured or determined, cannot be transferred.]

(e) A mere right to sue [3][* * *] cannot be transferred.

(f) A public office cannot be transferred, nor can the salary of a public officer, whether before or after it has become payable.

(g) Stipends allowed to military [4][, naval], [5][air-force] and civil pensioners of [6][the Government] and political pensions cannot be transferred.

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[1]Ins. by Act No. III of 1885, s. 3.
[2]Subs. and ins. by Act No. XX of 1929, ss. 5-7.
[3]Rep. by Act No. II of 1900, s. 3 (i).
[4]Ins. by Act No. XXXV of 1934, s. 2 and Sch.
[5]Ins. by the Repealing and Amending Act, 1927 (Act No. X of 1927), s. 2 and Sch. I.
[6]Subs. by the Central Laws (Adaptation) Order, 1961 (President's Order No. 1 of 1961), Art. 2. (*with effect from the 23rd March, 1956*).

(h) No transfer can be made (1) in so far as it is opposed to the nature of the interest affected thereby, or (2) [1][for an unlawful object or consideration within the meaning of section 23 of the contract Act, 1872 (IX of 1872),] or (3) to a person legally disqualified to be transferee.

[2][(i) Nothing in this section shall be deemed to authorize a tenant having an untransferable right of occupancy, the farmer of an estate in respect of which default has been made in paying revenue or the lessee of an estate under the management of a Court of Wards, to assign his interest as such tenant, farmer or lessee.]

7. Persons competent to transfer.—Every person competent to contract and entitled to transferable property, or authorized to dispose of transferable property not his own, is competent to transfer such property either wholly or in part, and either absolutely or conditionally, in the circumstances, to the extent and in the manner allowed and prescribed by any law for the time being in force.

8. Operation of transfer.—Unless a different intention is expressed or necessarily implied, a transfer of property passes forthwith to the transferee all the interest which the transferor is then capable of passing in the property, and in the legal incidents thereof.

Such incidents include, where the property is land, the easements annexed thereto, the rents and profits thereof accruing after the transfer, and all things attached to the earth;

and, where the property is machinery attached to the earth, the moveable parts thereof;

and, where the property is a house, the easements annexed thereto, the rent thereof accruing after the transfer, and the locks, keys, bars, doors, windows, and all other things provided for permanent use therewith;

and, where the property is a debt or other actionable claim, the securities therefor (except where they are also for other debts or claims not transferred to the transferee), but not arrears of interest accrued before the transfer;

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and, where the property is money or other property yielding income, the interest or income thereof accruing after the transfer takes effect.

9. Oral transfer.—A transfer of property may be made without writing in every case in which a writing is not expressly required by law.

10. Condition restraining alienation.—Where property is transferred subject to a condition or limitation absolutely restraining the transferee or any person claiming under him from parting with or disposing of his interest in the property, the condition or limitation is void, except in the case of a lease where the condition is for the benefit of the lessor or those claiming under him: Provided that property may be transferred to or for the benefit of a woman (not being a Hindu, [3][Muslim] or Buddhist), so that she shall not have power during her marriage to transfer or charge the same or her beneficial interest therein.

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[1]Subs. by Act No. II of 1900, s. 3 (ii).
[2]Ins. by Act No. III of 1885, s. 4.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Table.

11. Restriction repugnant to interest created.—Where, on a transfer of property, an interest therein is created absolutely in favour of any person, but the terms of the transfer direct that such interest shall be applied or enjoyed by him in a particular manner, he shall be entitled to receive and dispose of such interest as if there were no such direction.

[1][Where any such direction has been made in respect of one piece of immoveable property for the purpose of securing the beneficial enjoyment of another piece of such property, nothing in this section shall be deemed to affect any right which the transferor may have to enforce such direction or any remedy which he may have in respect of a breach thereof.]

12. Condition making interest determinable on insolvency or attempted alienation.— where property is transferred subject to a condition or limitation making any interest therein, reserved or given to or for the benefit of any person, to cease on his becoming insolvent or endeavouring to transfer or dispose of the same, such condition or limitation is void.

Nothing in this section applies to a condition in a lease for the benefit of the lessor or those claiming under him.

13. Transfer for benefit of unborn person.—Where, on a transfer of property, an interest therein is created for the benefit of a person not in existence at the date of the transfer, subject to a prior interest created by the same transfer, the interest created for the benefit of such person shall not take effect, unless it extends to the whole of the remaining interest of the transferor in the property.

Illustration

A transfers property of which he is the owner to B in trust for A and his intended wife successively for their lives, and, after the death of the survivor, for the eldest son of the intended marriage for life, and after his death for A's second son. The interest so created for the benefit of the eldest son does not take effect, because it does not extend to the whole of A's remaining interest in the property.

14. Rule against perpetuity.— No transfer of property can operate to create an interest which is to take effect after the life-time of one or more persons living at the date of such transfer, and the minority of some person who shall be in existence at the expiration of that period, and to whom, if he attains full age, the interest created is to belong.

15. Transfer to class some of whom come under sections 13 and 14.— If, on a transfer of property, an interest therein is created for the benefit of a class of persons with regard to some of whom such interest fails by reason of any of the rules contained in sections 13 and 14, such interest fails [1][in regard to those persons only and not in regard to the whole class].

[1][**16. Transfer to take effect on failure of prior interest.—** Where, by reason of any of the rules contained in sections 13 and 14, an interest created for the benefit of a person or of a class of persons fails in regard to such person or the whole of such class, any interest created in the same transaction and intended to take effect after or upon failure of such prior interest also fails.

17. Direction for accumulation.— (1) Where the terms of a transfer of property direct that the income arising from the property shall be accumulated either wholly or in part during a period longer than—

(a) the life of the transferor, or

(b) a period of eighteen years from the date of the transfer,

such direction shall, save as hereinafter provided, be void to the extent to which the period during which the accumulation is directed exceeds the longer of the aforesaid periods, and at the end of such last-mentioned period the property and the income thereof shall be disposed of as if the period during which the accumulation has been directed to be made had elapsed.

[1]Subs. by Act No. XX of 1929, ss. 8-10.

(2) This section shall not affect any direction for accumulation for the purpose of—

(i) the payment of the debts of the transferor or any other person taking any interest under the transfer, or

(ii) the provision of portions for children or remoter issue of the transferor or of any other person taking any interest under the transfer, or

(iii) the preservation or maintenance of the property transferred; and such direction may be made accordingly.

18. Transfer in perpetuity for benefit of public.— The restrictions in sections 14, 16 and 17 shall not apply in the case of a transfer of property for the benefit of the public in the advancement of religion, knowledge, commerce, health, safety, or any other object beneficial to mankind.]

19. Vested interest.—Where, on a transfer of property, an interest therein is created in favour of a person without specifying the time when it is to take effect, or in terms specifying that it is to take effect forthwith or on the happening of an event which must happen, such interest is vested, unless a contrary intention appears from the terms of the transfer.

A vested interest is not defeated by the death of the transferee before he obtains possession.

Explanation.— An intention that an interest shall not be vested is not to be inferred merely from a provision whereby the enjoyment thereof is postponed, or whereby a prior interest in the same property is given or reserved to some other person, or whereby income arising from the property is directed to be accumulated until the time of enjoyment arrives, or from a provision that if a particular event shall happen the interest shall pass to another person.

20. When unborn person acquires vested interest on transfer for his benefit.—Where, on a transfer of property, an interest therein is created for the benefit of a person not then living, he acquires upon his birth, unless a contrary intention appear from the terms of the transfer, a vested interest, although he may not be entitled to the enjoyment thereof immediately on his birth.

21. Contingent interest.—Where, on a transfer of property, an interest therein is created in favour of a person to take effect only on the happening of a specified uncertain event, or if a specified uncertain event shall not happen, such person thereby acquires a contingent interest in the property. Such interest becomes a vested interest, in the former case, on the happening of the event, in the latter, when the happening of the event becomes impossible.

*Exception***.**—Where, under a transfer of property, a person becomes entitled to an interest therein upon attaining a particular age, and the transferor also gives to him absolutely the income to arise from such interest before he reaches that age, or directs the income or so much thereof as may be necessary to be applied for his benefit, such interest is not contingent.

22. Transfer to members of a class who attain a particular age.—Where, on a transfer of property, an interest therein is created in favour of such members only of a class as shall attain a particular age, such interest does not vest in any member of the class who has not attained that age.

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23. Transfer contingent on happening of specified uncertain event.—Where, on a transfer of property, an interest therein is to accrue to a specified person if a specified uncertain event shall happen, and no time is mentioned for the occurrence of that event, the interest fails unless such event happens before, or at the same time as, the intermediate or precedent interest ceases to exist.

24. Transfer to such of certain persons as survive at some period not specified.—Where, on a transfer of property, an interest therein is to accrue to such of certain persons as shall be surviving at some period, but the exact period is not specified, the interest shall go to such of them as shall be alive when the intermediate or precedent interest ceases to exist, unless a contrary intention appears from the terms of the transfer.

Illustration

A transfers property to B for life, and after his death to C and D, equally to be divided between them, or to the survivor of them. C dies during the life of B. D survives B. At B's death the property passes to D.

25. Conditional transfer.—An interest created on a transfer of property and dependent upon a condition fails if the fulfilment of the condition is impossible, or is forbidden by law, or is of such a nature that, if permitted, it would defeat the provisions of any law, or is fraudulent, or involves or implies injury to the person or property of another, or the Court regards it as immoral or opposed to public policy.

Illustrations

(a) A lets a farm to B on condition that he shall walk a hundred miles in an hour. The lease is void.

(b) A gives Rs. 500 to B on condition that he shall marry A's daughter C. At the date of the transfer C was dead. The transfer is void.

(c) A transfers Rs. 500 to B on condition that she shall murder C. The transfer is void.

(d) A transfers Rs. 500 to his niece C if she will desert her husband. The transfer is void.

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26. Fulfilment of condition precedent.—Where the terms of a transfer of property impose a condition to be fulfilled before a person can take an interest in the property, the condition shall be deemed to have been fulfilled if it has been substantially complied with.

Illustrations

(a) A transfers Rs. 5,000 to B on condition that he shall marry with the consent of C, D and E. E dies. B marries with the consent of C and D. B is deemed to have fulfilled the condition.

(b) A transfers Rs. 5,000 to B on condition that he shall marry with the consent of C, D and E. B marries without the consent of C, D and E, but obtains their consent after the marriage. B has not fulfilled the condition.

27. Conditional transfer to one person coupled with transfer to another on failure of prior disposition.— Where, on a transfer of property, an interest therein is created in favour of one person, and by the same transaction an ulterior disposition of the same interest is made in favour of another, if the prior disposition under the transfer shall fail, the ulterior disposition shall take effect upon the failure of the prior disposition, although the failure may not have occurred in the manner contemplated by the transferor.

But, where the intention of the parties to the transaction is that the ulterior disposition shall take effect only in the event of the prior disposition failing in a particular manner, the ulterior disposition shall not take effect unless the prior disposition fails in that manner.

Illustrations

(a) A transfers Rs. 500 to B on condition that he shall execute a certain lease within three months after A's death, and, if he should neglect to do so, to C. B dies in A's life-time. The disposition in favour of C takes effect.

(b) A transfers property to his wife; but, in case she should die in his life-time, transfers to B that which he had transferred to her. A and his wife perish together, under circumstances which make it impossible to prove that she died before him. The disposition in favour of B does not take effect.

28. Ulterior transfer conditional on happening or not happening of specified event.— On a transfer of property an interest therein may be created to accrue to any person with the condition superadded that in case a specified uncertain event shall happen such interest shall pass to another person, or that in case a specified uncertain event shall not happen such interest shall pass to another person. In each case the dispositions are subject to the rules contained in sections 10, 12, 21, 22, 23, 24, 25 and 27.

29. Fulfilment of condition subsequent.—An ulterior disposition of the kind contemplated by the last preceding section cannot take effect unless the condition is strictly fulfilled.

Illustration

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A transfers Rs. 500 to B, to be paid to him on his attaining his majority or marrying, with a proviso that, if B dies a minor or marries without C's consent, the Rs. 500 shall go to D. B marries when only 17 years of age, without C's consent. The transfer to D takes effect.

30. Prior disposition not affected by invalidity of ulterior disposition.—If the ulterior disposition is not valid, the prior disposition is not affected by it.

Illustration

A transfers a farm to B for her life, and, if she do not desert her husband, to C. B is entitled to the farm during her life as if no condition had been inserted.

31. Condition that transfer shall cease to have effect in case specified uncertain event happens or does not happen.— Subject to the provisions of section 12, on a transfer of property an interest therein may be created with the condition superadded that it shall cease to exist in case a specified uncertain event shall happen, or in case a specified uncertain event shall not happen.

Illustrations

(a) A transfers a farm to B for his life, with a proviso that, in case B cuts down a certain wood, the transfer shall cease to have any effect. B cuts down the wood. He loses his life-interest in the farm.

(b) A transfers a farm to B, provided that, if B shall not go to England within three years after the date of the transfer, his interest in the farm shall cease. B does not go to England within the term prescribed. His interest in the farm ceases.

32. Such condition must not be invalid.— In order that a condition that an interest shall cease to exist may be valid, it is necessary that the event to which it relates be one which could legally constitute the condition of the creation of an interest.

33. Transfer conditional on performance of act, no time being specified for performance.— Where, on a transfer of property, an interest therein is created subject to a condition that the person taking it shall perform a certain act, but no time is specified for the performance of the act, the condition is broken when he renders impossible, permanently or for an indefinite period, the performance of the act.

34. Transfer conditional on performance of act, time being specified. —Where an act is to be performed by a person either as a condition to be fulfilled before an interest created on a transfer of property is enjoyed by him, or as a condition on the non-fulfilment of which the interest is to pass from him to another person, and a time is specified for the performance of the act, if such performance within the specified time is prevented by the fraud of a person who would be directly benefited by non-fulfilment of the condition, such further time shall as against him be allowed for performing the act as shall be requisite to make up for the delay caused by such fraud. But if no time is specified for the performance of the act, then, if its performance is by the fraud of a person interested in the non-fulfilment of the condition rendered impossible or indefinitely postponed, the condition shall as against him be deemed to have been fulfilled.

Election

35. Election when necessary.—Where a person professes to transfer property which he has no right to transfer, and as part of the same transaction confers any benefit on the owner of the property, such owner must elect either to confirm such transfer or to dissent from it; and in the latter case he shall relinquish the benefit so conferred, and the benefit so relinquished shall revert to the transferor or his representative as if it had not been disposed of,

Subject nevertheless,

where the transfer is gratuitous, and the transferor has, before the election, died or otherwise become incapable of making a fresh transfer,

and in all cases where the transfer is for consideration,

to the charge of making good to the disappointed transferee the amount or value of the property attempted to be transferred to him.

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Illustrations

The farm of [1][Ulipur] is the property of C and worth Rs. 800. A by an instrument of gift professes to transfer it to B, giving by the same instrument Rs. 1,000 to C. C elects to retain the farm. He forfeits the gift of Rs. 1,000.

In the same case, A dies before the election. His representative must out of the Rs. 1,000 pay Rs. 800 to B.

The rule in the first paragraph of this section applies whether the transferor does or does not believe that which he professes to transfer to be his own.

A person taking no benefit directly under a transaction, but deriving a benefit under it indirectly, need not elect.

A person who in his one capacity takes a benefit under the transaction may in another dissent therefrom.

Exception to the last preceding four rules.—Where a particular benefit is expressed to be conferred on the owner of the property which the transferor professes to transfer, and such benefit is expressed to be in lieu of that property, if such owner claim the property, he must relinquish the particular benefit, but he is not bound to relinquish any other benefit conferred upon him by the same transaction.

Acceptance of the benefit by the person on whom it is conferred constitutes an election by him to confirm the transfer, if he is aware of his duty to elect and of those circumstances which would influence the judgment of a reasonable man in making an election, or if he waives enquiry into the circumstances.

Such knowledge or waiver shall, in the absence of evidence to the contrary, be presumed, if the person on whom the benefit has been conferred has enjoyed it for two years without doing any act to express dissent.

Such knowledge or waiver may be inferred from any act of his which renders it impossible to place the persons interested in the property professed to be transferred in the same condition as if such act had not been done.

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Illustration

A transfers to B an estate to which C is entitled, and as part of the same transaction gives C a coal-mine. C takes possession of the mine and exhausts it. He has thereby confirmed the transfer of the estate to B.

If he does not within one year after the date of the transfer signify to the transferor or his representatives his intention to confirm or to dissent from the transfer, the transferor or his representatives may, upon the expiration of that period, require him to make his election; and, if he does not comply with such requisition within a reasonable time after he has received it, he shall be deemed to have elected to confirm the transfer.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1956*).

In case of disability, the election shall be postponed until the disability ceases, or until the election is made by some competent authority.

Apportionment

36. Apportionment of periodical payments on determination of interest of person entitled.— In the absence of a contract or local usage to the contrary, all rents, annuities, pensions, dividends and other periodical payments in the nature of income shall, upon the transfer of the interest of the person entitled to receive such payments, be deemed, as between the transferor and the transferee, to accrue due from day to day, and to be apportionable accordingly, but to be payable on the days appointed for the payment thereof.

37. Apportionment of benefit of obligation on severance.—When, in consequence of a transfer, property is divided and held in several shares, and thereupon the benefit of any obligation relating to the property as a whole passes from one to several owners of the property, the corresponding duty shall, in the absence of a contract to the contrary amongst the owners, be performed in favour of each of such owners in proportion to the value of his share in the property, provided that the duty can be served and that the severance does not substantially increase the burden of the obligation; but if the duty cannot be severed, or if the severance would substantially increase the burden of the obligation, the duty shall be performed for the benefit of such one of the several owners as they shall jointly designate for that purpose:

Provided that no person on whom the burden of the obligation lies shall be answerable for failure to discharge it in manner provided by this section, unless and until he has had reasonable notice of the severance.

Nothing in this section applies to leases for agricultural purposes unless and until the [1][Provincial Government] by notification in the official Gazette so directs.

Illustrations

(a) A sells to B, C and D a house situate in a village and leased to E at an annual rent of Rs. 30 and delivery of one fat sheep, B having provided half the purchase-money and C and D one-quarter each. E, having notice of this, must pay Rs. 15 to B, Rs. 7-1/2 to C, and Rs. 7-1/2 to D, and must deliver the sheep according to the joint direction of B, C and D.

(b) In the same case, each house in the village being bound to provide ten days' labour each year on a dyke to prevent inundation, E had agreed as a term of his lease to perform this work for A. B, C and D severally require E to perform the ten days' work due on account of the house of each. E is not bound to do more than ten days' work in all, according to such directions as B, C and D may join in giving.

(B)Transfer of Immoveable Property

38. Transfer by person authorized only under certain circumstances to transfer.— Where any person, authorized only under circumstances in their nature variable to dispose of immoveable property, transfers such property for consideration, alleging the existence of such circumstances, they

[1]Subs. by A.O., 1937.

shall, as between the transferee on the one part and the transferor and other persons (if any) affected by the transfer on the other part, be deemed to have existed, if the transferee, after using reasonable care to ascertain the existence of such circumstances, has acted in good faith.

Illustration

A, a Hindu widow, whose husband has left collateral heirs, alleging that the property held by her as such is insufficient for her maintenance, agrees, for purposes neither religious nor charitable, to sell a field, part of such property, to B. B satisfies himself by reasonable enquiry that the income of the property is insufficient for A's maintenance, and that the sale of the field is necessary, and, acting in good faith, buys the field from A. As between B on the one part and A and the collateral heirs on the other part, a necessit for the sale shall be deemed to have existed.

39. Transfer where third person is entitled to maintenance.—Where a third person has a right to receive maintenance, or a provision for advancement or marriage, from the profits of immoveable property, and such property is transferred [1][* * *], the right may be enforced against the transferee, if he has notice [1][thereof] or if the transfer is gratuitous; but not against a transferee for consideration and without notice of the right, nor against such property in his hands.

[1][* * * * * * *]

40. Burden of obligation imposing restriction on use of land, or of obligation annexed to ownership but not amounting to interest or easement.—Where, for the more beneficial enjoyment of his own immoveable property, a third person has, independently of any interest in the immoveable property of another or of any easement thereon, a right to restrain the enjoyment [1][in a particular manner of the latter property], or

Where a third person is entitled to the benefit of an obligation arising out of contract and annexed to the ownership of immoveable property, but not amounting to an interest therein or easement thereon,

such right or obligation may be enforced against a transferee with notice thereof or a gratuitous transferee of the property affected thereby, but not against a transferee for consideration and without notice of the right or obligation, nor against such property in his hands.

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Illustration

A contracts to sell [2][Ulipur] to B. While the contract is still in force he sells [2][Ulipur] to C, who has notice of the contract. B may enforce the contract against C to the same extent as against A.

41. Transfer by ostensible owner.—Where, with the consent, express or implied, of the persons interested in immoveable property, a person is the ostensible owner of such property and transfers the same for consideration, the transfer shall not be voidable on the ground that the transferor was not authorized to make it: provided that the transferee, after taking reasonable care to ascertain that the transferor had power to make the transfer, has acted in good faith.

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[1]Rep. and subs. by Act No. XX of 1929, ss. 11-12.

[2]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s.3 and 2nd Sch. (*with effect from the 14th October, 1956*).

42. Transfer by person having authority to revoke former transfer.—Where a person transfers any immoveable property reserving power to revoke the transfer, and subsequently transfers the property for consideration to another transferee, such transfer operates in favour of such transferee (subject to any condition attached to the exercise of the power) as a revocation of the former transfer to the extent of the power.

Illustration

A lets a house to B, and reserves power to revoke the lease if, in the opinion of a specified surveyor, B should make a use of it detrimental to its value. Afterwards A, thinking that such a use has been made, lets the house to C. This operates as a revocation of B's lease subject to the opinion of the surveyor as to B's use of the house having been detrimental to its value.

43. Transfer by unauthorized person who subsequently acquires interest in property transferred.—Where a person [1][fraudulently or] erroneously represents that he is authorized to transfer certain immoveable property and professes to transfer such property for consideration, such transfer shall, at the option of the transferee, operate on any interest which the transferor may acquire in such property at any time during which the contract of transfer subsists.

Nothing in this section shall impair the right of transferees in good faith for consideration without notice of the existence of the said option.

Illustration

A, a Hindu, who has separated from his father B, sells to C three fields, X, Y and Z, representing that A is authorized to transfer the same. Of these fields Z does not belong to A, it having been retained by B on the partition; but on B's dying A as heir obtains Z. C, not having rescinded the contract of sale, may require A to deliver Z to him.

44. Transfer by one co-owner.— Where one of two or more co-owners of immoveable property legally competent in that behalf transfers his share of such property or any interest therein, the transferee acquires, as to such share or interest, and so far as is necessary to give effect to the transfer, the transferor's right to joint possession or other common or part enjoyment of the property, and to enforce a partition of the same, but subject to the conditions and liabilities affecting, at the date of the transfer, the share or interest so transferred.

Where the transferee of a share of a dwelling-house belonging to an undivided family is not a member of the family, nothing in this section shall be deemed to entitle him to joint possession or other common or part enjoyment of the house.

45. Joint transfer for consideration.—Where immoveable property is transferred for consideration to two or more persons, and such consideration is paid out of a fund belonging to them in common, they are, in the absence of a contract to the contrary, respectively entitled to interests in such property identical, as nearly as may be, with the interests to which they were respectively entitled in the fund; and, where such consideration is paid out of separate funds belonging to them respectively, they are, in the absence of a contract to the contrary, respectively entitled to interest in such property in proportion to the shares of the consideration which they respectively advanced.

[1]Ins. by Act No. XX of 1929, s. 13.

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In the absence of evidence as to the interests in the fund to which they were respectively entitled, or as to the shares which they respectively advanced, such persons shall be presumed to be equally interested in the property.

46. Transfer for consideration by persons having distinct interests.—Where immoveable property is transferred for consideration by persons having distinct interests therein, the transferors are, in the absence of a contract to the contrary, entitled to share in the consideration equally, where their interest in the property were of equal value, and, where such interests were of unequal value, proportionately to the value of their respective interests.

Illustrations

(a) A, owning a moiety, and B and C each a quarter share, of mauza [1][Ulipur], exchange an eighth share of that mauza for a quarter share of mauza [1][Mithapukur]. There being no agreement to the contrary, A is entitled to an eighth share in [1][Mithapukur], and B and C each to a sixteenth share in that mauza.

(b) A, being entitled to a life-interest in mauza [1][Jalkothi] and B and C to the reversion, sell the mauza for Rs. 1,000. A's life-interest is ascertained to be worth Rs. 600, the reversion Rs. 400. A is entitled to receive Rs. 600 out of the purchase-money, B and C to receive Rs. 400.

47. Transfer by co-owner of share in common property.—Where several co-owners of immoveable property transfer a share therein without specifying that the transfer is to take effect on any particular share or shares of the transferors, the transfer, as among such transferors, takes effect on such shares equally where the shares were equal, and, where they were unequal, proportionately to the extent of such shares.

Illustration

A, the owner of an eight-anna share, and B and C, each the owner of a four-anna share, in mauza [1][Ulipur], transfer a two-anna share in the mauza to D, without specifying from which of their several shares the transfer is made. To give effect to the transfer one-anna share is taken from the share of A, and half an anna share from each of the shares of B and C.

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48. Priority of rights created by transfer.—Where a person purports to create by transfer at different times rights in or over the same immoveable property, and such rights cannot all exist or be exercised to their full extent together, each later created right shall, in the absence of a special contract or reservation binding the earlier transferees, be subject to the rights previously created.

49. Transferee's right under policy.—Where immoveable property is transferred for consideration, and such property or any part thereof is at the date of the transfer insured against loss or damage by fire, the transferee, in case of such loss or damage, may, in the absence of a contract to the contrary, require any money which the transferor actually receives under the policy, or so much thereof as may be necessary, to be applied in reinstating the property.

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[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), ss. 3-4 and 2nd Sch. (*with effect from the 14th October, 1956*).

50. Rent *bona-fide* paid to holder under defective title.—No person shall be chargeable with any rents or profits of any immoveable property, which he has in good faith paid or delivered to any person of whom he in good faith held such property, notwithstanding it may afterwards appear that the person to whom such payment or delivery was made had no right to receive such rents or profits.

Illustration

A lets a field to B at a rent of Rs. 50, and then transfers the field to C. B, having no notice of the transfer, in good faith pays the rent to A. B is not chargeable with the rent so paid.

51. Improvements made by *bona-fide* holders under defective titles.—When the transferee of immoveable property makes any improvement on the property, believing in good faith that he is absolutely entitled thereto, and he is subsequently evicted therefrom by any person having a better title, the transferee has a right to require the person causing the eviction either to have the value of the improvement estimated and paid or secured to the transferee, or to sell his interest in the property to the transferee at the then market value thereof, irrespective of the value of such improvement.

The amount to be paid or secured in respect of such improvement shall be the estimated value thereof at the time of the eviction.

When, under the circumstances aforesaid, the transferee has planted or sown on the property crops which are growing when he is evicted therefrom, he is entitled to such crops and to free ingress and egress to gather and carry them.

[1][**52. Transfer of property pending suit relating thereto.—**During the [2][pendency] in any Court having authority in [3][Pakistan], or established beyond the limits of [3][Pakistan] by [4][the [5][Federal Government] [6][* * *], of [7][any] suit or proceeding [7][which is not collusive and] in which any right to immoveable property is directly and specifically in question, the property cannot be transferred or otherwise dealt with by any party to the suit or proceeding so as to affect the rights of any other party thereto under any decree or order which may be made therein, except under the authority of the Court and on such terms as it may impose.

[7][*Explanation*.– For the purposes of this section, the pendency of a suit or proceeding shall be deemed to commence from the date of the presentation of the plaint or the institution of the proceeding in a Court of competent jurisdiction, and to continue until the suit or proceeding has been disposed of by a final decree or order and complete satisfaction or discharge of such decree or order has been obtained, or has become unobtainable by reason of the expiration of any period of limitation prescribed for the execution thereof by any law for the time being in force.]

[7][**53. Fradulent transfer.**– (1) Every transfer of immoveable property made with intent to

[1]Section 52 has been amended in Sindh by the Transfer of Property and the Indian Registration (Sindh Amdt.) Act, 1939 (XIV of 1939), s. 2.
[2]Subs. by Act No. XX of 1929, s.14.
[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1956*).
[4]Subs. by A.O., 1937.
[5]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Table.
[6]Omitted by A. O., 1949, Sch.
[7]Subs. and ins. by Act No. XX of 1929, s. 14.

defeat or delay the creditors of the transferor shall be voidable at the option of any creditor so defeated or delayed.

Nothing in this sub-section shall impair the rights of a transferee in good faith and for consideration.

Nothing in this sub-section shall affect any law for the time being in force relating to insolvency.

A suit instituted by a creditor (which term includes a decree-holder whether he has or has not applied for execution of his decree) to avoid a transfer on the ground that it has been made with intent to defeat or delay the creditors of the transferor, shall be instituted on behalf of, or for the benefit of, all the creditors.

(2) Every transfer of immoveable property made without consideration with intent to defraud a subsequent transferee shall be voidable at the option of such transferee.

For the purposes of this sub-section, no transfer made without consideration shall be deemed to have been made with intent to defraud by reason only that a subsequent transfer for consideration was made.]

[1][**53A. Part performance.—**Where any person contracts to transfer for consideration any immoveable property by writing signed by him or on his behalf from which the terms necessary to constitute the transfer can be ascertained with reasonable certainty,

and the transferee has, in part performance of the contract, taken possession of the property or any part thereof, or the transferee, being already in possession, continues in possession in part performance of the contract and has done some act in furtherance of the contract,

and the transferee has performed or is willing to perform his part of the contract,

then, notwithstanding that the contract, though required to be registered, has not been registered, or, where there is an instrument of transfer, that the transfer has not been completed in the manner prescribed therefor by the law for the time being in force, the transferor or any person claiming under him shall be debarred from enforcing against the transferee and persons claiming under him any right in respect of the property of which the transferee has taken or continued in possession, other than a right expressly provided by the terms of the contract:

Provided that nothing in this section shall affect the rights of a transferee for consideration who has no notice of the contract or of the part performance thereof.]

CHAPTER III

OF SALES OF IMMOVEABLE PROPERTY

54. "Sale" defined.—"Sale" is a transfer of ownership in exchange for a price paid or promised or part-paid and part-promised.

[1]Ins. by Act No. XX of 1929, s. 16.

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Sale how made. [1]Such transfer, in the case of tangible immoveable property of the value of one hundred rupees and upwards, or in the case of a reversion or other intangible thing, can be made only by a registered instrument.

[1]In the case of tangible immoveable property, of a value less than one hundred rupees, such transfer may be made either by a registered instrument or by delivery of the property.

Delivery of tangible immoveable property takes place when the seller places the buyer, or such person as he directs, in possession of the property.

Contract for sale. A contract for the sale of immoveable property is a contract that a sale of such property shall take place on terms settled between the parties.

It does not, of itself, create any interest in or charge on such property.

55. Rights and liabilities of buyer and seller.—In the absence of a contract to the contrary, the buyer and the seller of immoveable property respectively are subject to the liabilities, and have the rights, mentioned in the rules next following, or such of them as are applicable to the property sold:

(1) The seller is bound—

(a) to disclose to the buyer any material defect in the property [2][or in the seller's title thereto] of which the seller is, and the buyer is not, aware, and which the buyer could not with ordinary care discover;

(b) to produce to the buyer on his request for examination all documents of title relating to the property which are in the seller's possession or power;

(c) to answer to the best of his information all relevant questions put to him by the buyer in respect to the property or the title thereto;

(d) on payment or tender of the amount due in respect of the price, to execute a proper conveyance of the property when the buyer tenders it to him for execution at a proper time and place;

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(e) between the date of the contract of sale and the delivery of the property, to take as much care of the property and all documents of title relating thereto which are in his possession as an owner of ordinary prudence would take of such property and documents;

(f) to give, on being so required, the buyer, or such person as he directs, such possession of the property as its nature admits;

(g) to pay all public charges and rent accrued due in respect of the property up to the date of the sale, the interest on all incumbrances on such property due on such date, and, except where the property is sold subject to incumbrances, to discharge all incumbrances on the property then existing.

(2) The seller shall be deemed to contract with the buyer that the interest which the seller professes to transfer to the buyer subsists and that he has power to transfer the same:

[1]As to limitation to the territorial operation of paragraphs 2 and 3 of s. 54, *see* s. 1, *supra*. These paragraphs extend to every cantonment in the Provinces, etc., *see* s. 287 of the Cantonments Act, 1924 (Act No. II of 1924).
[2]Ins. by Act No. VI of 1929, s. 17.

Provided that, where the sale is made by a person in a fiduciary character, he shall be deemed to contract with the buyer that the seller has done no act whereby the property is incumbered or whereby he is hindered from transferring it.

The benefit of the contract mentioned in this rule shall be annexed to, and shall go with, the interest of the transferee as such, and may be enforced by every person in whom that interest is for the whole or any part thereof from time to time vested.

(3) Where the whole of the purchase-money has been paid to the seller, he is also bound to deliver to the buyer all documents of title relating to the property which are in the seller's possession or power:

Provided that, *(a)* where the seller retains any part of the property comprised in such documents, he is entitled to retain them all, and, *(b)* where the whole of such property is sold to different buyers, the buyer of the lot of greatest value is entitled to such documents. But in case *(a)* the seller, and in case *(b)* the buyer, of the lot of greatest value, is bound, upon every reasonable request by the buyer, or by any of the other buyers, as the case may be, and at the cost of the person making the request, to produce the said documents and furnish such true copies thereof or extracts therefrom as he may require; and in the mean time, the seller, or the buyer of the lot of greatest value, as the case may be, shall keep the said documents safe, uncancelled and undefaced, unless prevented from so doing by fire or other inevitable accident.

(4) The seller is entitled—

(a) to the rents and profits of the property till the ownership thereof passes to the buyer;

(b) where the ownership of the property has passed to the buyer before payment of the whole of the purchase-money, to a charge upon the property in the hands of the buyer [1][any transferee without consideration or any transferee with notice of the non-payment], for the amount of the purchase-money, or any part thereof remaining unpaid, and for interest on such amount or part [1][from the date on which possession has been delivered].

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(5) The buyer is bound—

(a) to disclose to the seller any fact as to the nature or extent of the seller's interest in the property of which the buyer is aware but of which he has reason to believe that the seller is not aware, and which materially increases the value of such interest;

(b) to pay or tender, at the time and place of completing the sale, the purchase-money to the seller or such person as he directs: Provided that, where the property is sold free from incumbrances, the buyer may retain out of the purchase-money the amount of any incumbrances on the property existing at the date of the sale, and shall pay the amount so retained to the persons entitled thereto;

[1]Ins. by Act No. XX of 1929, s. 17.

(c) where the ownership of the property has passed to the buyer, to bear any loss arising from the destruction, injury or decrease in value of the property not caused by the seller;

(d) where the ownership of the property has passed to the buyer, as between himself and the seller, to pay all public charges and rent which may become payable in respect of the property, the principal moneys due on any incumbrances subject to which the property is sold, and the interest thereon afterwards accruing due.

(6) The buyer is entitled—

(a) where the ownership of the property has passed to him, to the benefit of any improvement in, or increase in value of, the property, and to the rents and profits thereof;

(b) unless he has improperly declined to accept delivery of the property, to a charge on the property, as against the seller and all persons claiming under him, [1][* * *] to the extent of the seller's interest in the property for the amount of any purchase-money properly paid by the buyer in anticipation of the delivery and for interest on such amount; and, when he properly declines to accept the delivery, also for the earnest (if any) and for the costs (if any) awarded to him of a suit to compel specific performance of the contract or to obtain a decree for its rescission.

An omission to make such disclosures as are mentioned in this section, paragraph (1), clause *(a)*, and paragraph (5), clause *(a)*, is fraudulent.

[1][**56. Marshalling by subsequent purchaser.—**If the owner of two or more properties mortgages them to one person and then sells one or more of the properties to another person, the buyer is, in the absence of a contract to the contrary, entitled to have the mortgage-debt satisfied out of the property or properties not sold to him, so far as the same will extend, but not so as to prejudice the rights of the mortgagee or persons claiming under him or of any other person who has for consideration acquired an interest in any of the properties.]

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Discharge of Incumbrances on Sale

57. Provision by Court for incumbrance and sale freed therefrom.—(a)Where immoveable property subject to any incumbrance, whether immediately payable or not, is sold by the Court or in execution of a decree, or out of Court, the Court may, if it thinks fit, on the application of any party to the sale, direct or allow payment into Court,—

(1) in case of an annual or monthly sum charged on the property, or of a capital sum charged on a determinable interest in the property— of such amount as, when invested in securities of the [2][Federal Government], the Court considers will be sufficient, by means of the interest thereof, to keep down or otherwise provide for that charge, and

[1]Rep. and subs. by Act No. XX of 1929, ss. 17-18.
[2]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Table.

(2) in any other case of a capital sum charged on the property─ of the amount sufficient to meet the incumbrance and any interest due thereon.

But in either case there shall also be paid into Court such additional amount as the Court considers will be sufficient to meet the contingency of further costs, expenses and interest, and any other contingency, except depreciation of investments, not exceeding one-tenth part of the original amount to be paid in, unless the Court for special reasons (which it shall record) thinks fit to require a larger additional amount.

(b) Thereupon the Court may, if it thinks fit, and after notice to the incumbrancer, unless the Court, for reasons to be recorded in writing, thinks fit to dispense with such notice, declare the property to be freed from the incumbrance, and make any order for conveyance, or vesting order, proper for giving effect to the sale, and give directions for the retention and investment of the money in Court.

(c) After notice served on the persons interested in or entitled to the money or fund in Court, the Court may direct payment or transfer thereof to the persons entitled to receive or give a discharge for the same, and generally may give directions respecting the application or distribution of the capital or income thereof.

(d) An appeal shall lie from any declaration, order or direction under this section as if the same were a decree.

(e) In this section "Court" means (l) a High Court in the exercise of its ordinary or extraordinary original civil jurisdiction, (2) the Court of a District Judge within the local limits of whose jurisdiction the property or any part thereof is situate, (3) any other Court which the [1][Provincial Government] may, from time to time, by notification in the official Gazette, declare to be competent to exercise the jurisdiction conferred by this section.

CHAPTER IV

OF MORTGAGES OF IMMOVEABLE PROPERTY AND CHARGES

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58. "Mortgage," "mortgagor," mortgagee," "mortgage-money" and "mortgage-deed" defined.─ (a) A mortgage is the transfer of an interest in specific immoveable property for the purpose of securing the payment of money advanced or to be advanced by way of loan, an existing or future debt, or the performance of an engagement which may give rise to a pecuniary liability.

The transferor is called a mortgagor, the transferee a mortgagee ; the principal money and interest of which payment is secured for the time being are called the mortgage-money, and the instrument (if any) by which the transfer is effected is called a mortgage-deed.

[1]Subs. by A. O., 1937.

Simple Mortgage. (b) Where, without delivering possession of the mortgaged property, the mortgagor binds himself personally to pay the mortgage-money, and agrees, expressly or impliedly, that, in the event of his failing to pay according to his contract, the mortgagee shall have a right to cause the mortgaged property to be sold and the proceeds of sale to be applied, so far as may be necessary, in payment of the mortgage-money, the transaction is called a simple mortgage and the mortgagee a simple mortgagee.

Mortgage by conditional sale. (c) Where the mortgagor ostensibly sells the mortgaged property—

on condition that on default of payment of the mortgage-money on a certain date the sale shall become absolute, or

on condition that on such payment being made the sale shall become void, or

on condition that on such payment being made the buyer shall transfer the property to the seller,

the transaction is called a mortgage by conditional sale and the mortgagee a mortgagee by conditional sale:

[1][Provided that no such transaction shall be deemed to be a mortgage, unless the condition is embodied in the document which effects or purports to effect the sale;]

Usufructuary mortgage. (d) Where the mortgagor delivers possession [1][or expressly or by implication binds himself to deliver possession] of the mortgaged property to the mortgagee, and authorizes him to retain such possession until payment of the mortgage-money, and to receive the rents and profits accruing from the property [1][or any part of such rents and profits and to appropriate the same] in lieu of interest, or in payment of the mortgage-money, or partly in lieu of interest [1][or] partly in payment of the mortgage-money, the transaction is called an usufructuary mortgage and the mortgagee an usufructuary mortgagee.

English Mortgage. (e) Where the mortgagor binds himself to re-pay the mortgage-money, on a certain date, and transfers the mortgaged property absolutely to the mortgagee, but subject to a proviso that he will re-transfer it to the mortgagor upon payment of the mortgage-money as agreed, the transaction is called an English mortgage.

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Mortgage by deposit of title deeds. [1][(f) Where a person [2][* * *] delivers to a creditor or his agent documents of title to immoveable property, with intent to create a security thereon, the transaction is called a mortgage by deposit of title-deeds [2][:]

[2][Provided that, where a mortgage by deposit of title deeds is to be created in favour of a banking company as defined in the Banking Tribunals Ordinance, 1984 (LVIII of 1984), the same may also be created by an entry in the record of rights against the entry relating to such immovable property.]

Anomalous mortgage. (g) A mortgage which is not a simple mortgage, a mortgage by conditional sale, an usufructuary mortgage, an English mortgage or a mortgage by deposit of title-deeds within the meaning of this section is called an anomalous mortgage.]

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[1]Ins. and subs. by Act No. XX of 1929, s. 19.
[2]Omitted, subs. & added by the Finance Act, 1986 (Act No. 1 of 1986), s. 2.

***59. Mortgage when to be by assurance.**—Where the principal money secured is one hundred rupees or upwards, a mortgage [1][other than a mortgage by deposit of title-deeds] can be effected only by a registered instrument signed by the mortgagor and attested by at least two witnesses.

Where the principal money secured is less than one hundred rupees, a mortgage may be effected either by [2][a registered instrument] signed and attested as aforesaid, or (except in the case of a simple mortgage) by delivery of the property.

[1][* * * * * * *]

[1][**59A. References to mortgagors and mortgagees to include persons deriving title from them.**—Unless otherwise expressly provided, references in this Chapter to mortgagors and mortgagees shall be deemed to include references to persons deriving title from them respectively.]

Rights and Liabilities of Mortgagor

60. Right of mortgagor to redeem.—At any time after the principal money has become [1][due], the mortgagor has a right, on payment or tender, at a proper time and place, of the mortgage-money, to require the mortgagee *(a)* to deliver [1][to the mortgagor the mortgage-deed and all documents relating to the mortgaged property which are in the possession or power of the mortgagee], *(b)* where the mortgagee is in possession of the mortgaged property, to deliver possession thereof to the mortgagor, and *(c)* at the cost of the mortgagor either to re-transfer the mortgaged property to him or to such third person as he may direct, or to execute and (where the mortgage has been effected by a registered instrument) to have registered an acknowledgement in writing that any right in derogation of his interest transferred to the mortgagee has been extinguished:

Provided that the right conferred by this section has not been extinguished by the act of the parties or by [1][decree] of a Court.

The right conferred by this section is called a right to redeem and a suit to enforce it is called a suit for redemption.

Nothing in this section shall be deemed to render invalid any provision to the effect that, if the time fixed for payment of the principal money has been allowed to pass or no such time has been fixed, the mortgagee shall be entitled to reasonable notice before payment or tender of such money.

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Redemption of portion of mortgaged property. Nothing in this section shall entitle a person interested in a share only of the mortgaged property to redeem his own share only, on payment of a proportionate part of the amount remaining due on the mortgage, except [1][only] where a mortgagee, or, if there are more mortgagees than one, all such mortgagees, has or have acquired, in whole or in part, the share of a mortgagor.

[1][**60A. Obligation to transfer to third party instead of re-transference to Mortgagor.**—(1) Where a mortgagor is entitled to redemption, then, on the fulfilment of any conditions on the fulfilment of which he would be entitled to require a re-transfer, he may require the mortgagee, instead of re-transferring the property, to assign the mortgage-debt and transfer the mortgaged property to such

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*As to limitation to the territorial operation of s. 59, *see* s. 1, supra. Section 59 extends to every cantonment in the Provinces, etc.—*see* s. 287 of the Cantonments Act, 1924 (Act No. II of 1924).

[1]Ins., omitted and subs. by Act No. XX of 1929, ss. 20-23.

[2]Subs. by Act No. VI of 1904, s. 3.

third person as the mortgagor may direct; and the mortgagee shall be bound to assign and transfer accordingly.

(2) The rights conferred by this section belong to and may be enforced by the mortgagor or by any encumbrancer notwithstanding an intermediate encumbrance; but the requisition of any encumbrancer shall prevail over a requisition of the mortgagor and, as between encumbrancers, the requisition of a prior encumbrancer shall prevail over that of a subsequent encumbrancer.

(3) The provisions of this section do not apply in the case of a mortgagee who is or has been in possession.

60B. Right to inspection and production of documents.—A mortgagor, as long as his right of redemption subsists, shall be entitled at all reasonable times, at his request and at his own cost, and on payment of the mortgagee's costs and expenses in this behalf, to inspect and make copies or abstracts of, or extracts from, documents of title relating to the mortgaged property which are in the custody or power of the mortgagee.]

[1][**61. Right to redeem separately or simultaneously.—**A mortgagor who has executed two or more mortgages in favour of the same mortgagee shall, in the absence of a contract to the contrary, when the principal money of any two or more of the mortgages has become due, be entitled to redeem any one such mortgage separately, or any two or more of such mortgages together.]

62. Right of usufructuary mortgagor to recover possession.—In the case of a usufructuary mortgage, the mortgagor has a right to recover possession of the property [1][together with the mortgage-deed and all documents relating to the mortgaged property which are in the possession or power of the mortgage],—

(a) where the mortgagee is authorized to pay himself the mortgage-money from the rents and profits of the property,—when such money is paid;

(b) where the mortgagee is authorized to pay himself from such rents and profits [1][or any part thereof a part only of the mortgage-money]—when the term, if any, prescribed for the payment of the mortgage-money has expired and the mortgagor pays or tenders to the mortgagee [1][the mortgage-money or the balance thereof] or deposits it in Court as hereinafter provided.

63. Accession to mortgaged property.—Where mortgaged property in possession of the mortgagee has, during the continuance of the mortgage, received any accession, the mortgagor, upon redemption, shall, in the absence of a contract to the contrary, be entitled as against the mortgagee to such accession.

Accession acquired in virtue of transferred ownership. Where such accession has been acquired at the expense of the mortgagee, and is capable of separate possession or enjoyment without detriment to the principal property, the mortgagor desiring to take the accession must pay to the mortgagee the expense of acquiring it. If such separate possession or enjoyment is not possible, the

[1]Subs. and ins. by Act No. XX of 1929, ss. 24-25.

accession must be delivered with the property; the mortgagor being liable, in the case of an acquisition necessary to preserve the property from destruction, forfeiture or sale, or made with his assent, to pay the proper cost thereof, as an addition to the principal money, [1][with interest at the same rate as is payable on the principal, or, where no such rate is fixed, at the rate of nine per cent. per annum].

In the case last mentioned the profits, if any, arising from the accession shall be credited to the mortgagor.

Where the mortgage is usufructuary and the accession has been acquired at the expense of the mortgagee, the profits, if any, arising from the accession shall, in the absence of a contract to the contrary, be set off against interest, if any, payable on the money so expended.

[1][**63A. Improvements to mortgaged property.**— (1) Where mortgaged property in possession of the mortgagee has, during the continuance of the mortgage, been improved, the mortgagor, upon redemption, shall, in the absence of a contract to the contrary, be entitled to the improvement ; and the mortgagor shall not, save only in cases provided for in sub-section (2), be liable to pay the cost thereof.

(2) Where any such improvement was effected at the cost of the mortgagee and was necessary to preserve the property from destruction or deterioration or was necessary to prevent the security from becoming insufficient, or was made in compliance with the lawful order of any public servant or public authority, the mortgagor shall, in the absence of a contract to the contrary, be liable to pay the proper cost thereof as an addition to the principal money with interest at the same rate as is payable on the principal, or, where no such rate is fixed, at the rate of nine per cent. per annum, and the profits, if any, accruing by reason of the improvement shall be credited to the mortgagor.]

64. Renewal of mortgaged lease.—Where the mortgaged property is a lease [1][* * *], and the mortgagee obtains a renewal of the lease, the mortgagor, upon redemption, shall, in the absence of a contract by him to the contrary, have the benefit of the new lease.

65. Implied contracts by mortgagor.—In the absence of a contract to the contrary, the mortgagor shall be deemed to contract with the mortgagee—

(a) that the interest which the mortgagor professes to transfer to the mortgagee subsists, and that the mortgagor has power to transfer the same;

(b) that the mortgagor will defend, or if the mortgagee be in possession of the mortgaged property, enable him to defend, the mortgagor's title thereto;

(c) that the mortgagor will, so long as the mortgagee is not in possession of the mortgaged property, pay all public charges accruing due in respect of the property ;

(d) and, where the mortgaged property is a lease [1][* * *], that the rent payable under the lease, the conditions contained therein, and the contracts binding on the lessee have been paid, performed and observed down to the commencement of the mortgage; and that the mortgagor will, so long as the security exists and the mortgagee is not in possession of the mortgaged property, pay the rent reserved by the lease, or, if the lease be renewed, the renewed lease, perform the conditions contained therein and observe the contracts binding on the lessee,

[1]Subs., ins. and omitted by Act No. XX of 1929, ss. 26-29.

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and indemnify the mortgagee against all claims sustained by reason of the non-payment of the said rent or the non-performance or non-observance of the said conditions and contracts;

(e) and, where the mortgage is a second or subsequent incumbrance on the property, that the mortgagor will pay the interest from time to time accruing due on each prior incumbrance as and when it becomes due, and will at the proper time discharge the principal money due on such prior incumbrance.

[1][* * * * * * *]

The benefit of the contracts mentioned in this section shall be annexed to and shall go with the interest of the mortgagee as such, and may be enforced by every person in whom that interest is for the whole or any part thereof from time to time vested.

[1][**65A. Mortgagor's power to lease.**—(1) Subject to the provisions of sub-section (2), a mortgagor, while lawfully in possession of the mortgaged property, shall have power to make leases thereof which shall be binding on the mortgagee.

(2)*(a)* Every such lease shall be such as would be made in the ordinary course of management of the property concerned, and in accordance with any local law, custom or usage.

(b) Every such lease shall reserve the best rent that can reasonably be obtained, and no premium shall be paid or promised and no rent shall be payable in advance.

(c) No such lease shall contain a covenant for renewal.

(d) Every such lease shall take effect from a date not later than six months from the date on which it is made.

(e) In the case of a lease of buildings, whether leased with or without the land on which they stand, the duration of the lease shall in no case exceed three years, and the lease shall contain a covenant for payment of the rent and a condition of re-entry on the rent not being paid within a time therein specified.

(3) The provisions of sub-section (1) apply only if and as far as a contrary intention is not expressed in the mortgage-deed; and the provisions of sub-section (2) may be varied or extended by the mortgage-deed and, as so varied and extended, shall, as far as may be, operate in like manner and with all like incidents, effects and consequences, as if such variations or extensions were contained in that sub-section.]

66. Waste by mortgagor in possession.—A mortgagor in possession of the mortgaged property is not liable to the mortgagee for allowing the property to deteriorate ; but he must not commit any act which is destructive or permanently injurious thereto, if the security is insufficient or will be rendered insufficient by such act.

[1]Omitted., ins. and subs. by Act No. XX of 1929, ss. 29-30..

Explanation.— A security is insufficient within the meaning of this section unless the value of the mortgaged property exceeds by one-third, or, if consisting of buildings, exceeds by one-half, the amount for the time being due on the mortgage.

Rights and Liabilities of Mortgagee

67. Right to foreclosure or sale.—In the absence of a contract to the contrary, the mortgagee has at any time after the mortgage-money has become [1][due] to him, and before a decree has been made for the redemption of the mortgaged property, or the mortgage-money has been paid or deposited as hereinafter provided, a right to obtain from the Court [1][a decree] that the mortgagor shall be absolutely debarred of his right to redeem the property, or [1][a decree] that the property be sold.

A suit to obtain [1][a decree] that a mortgagor shall be absolutely debarred of his right to redeem the mortgaged property is called a suit for foreclosure.

Nothing in this section shall be deemed—

[1][(a) to authorise any mortgagee other than a mortgagee by conditional sale or a mortgagee under an anomalous mortgage by the terms of which he is entitled to foreclose, to institute a suit for foreclosure, or an usufructuary mortgagee as such or a mortgagee by conditional sale as such to institute a suit for sale; or]

(b) to authorize a mortgagor who holds the mortgagee's rights as his trustee or legal representative, and who may sue for a sale of the property, to institute a suit for foreclosure; or

(c) to authorize the mortgagee of a railway, canal or other work in the maintenance of which the public are interested, to institute a suit for foreclosure or sale; or

(d) to authorize a person interested in part only of the mortgage-money to institute a suit relating only to a corresponding part of the mortgaged property, unless the mortgagees have, with the consent of the mortgagor, severed their interests under the mortgage.

[1][**67A. Mortgagee when bound to bring one suit on several mortgages.—** A mortgagee who holds two or more mortgages executed by the same mortgagor in respect of each of which he has a right to obtain the same kind of decree under section 67, and who sues to obtain such decree on any one of the mortgages shall, in the absence of a contract to the contrary, be bound to sue on all the mortgages in respect of which the mortgage-money has become due.]

[1][**68. Right to sue for mortgage-money.**—(1) The mortgagee has a right to sue for the mortgage-money in the following cases and no others, namely:—

(a) where the mortgagor binds himself to repay the same;

(b) where, by any cause other than the wrongful act or default of the mortgagor or mortgagee, the mortgaged property is wholly or partially destroyed or the security is rendered insufficient within the meaning of section 66, and the mortgagee has given the mortgagor a reasonable opportunity of providing further security

[1]Subs. and ins. by Act No. XX of 1929, ss. 31-33.

enough to render the whole security sufficient, and the mortgagor has failed to do so ;

(c) where the mortgagee is deprived of the whole or part of his security by or in consequence of the wrongful act or default of the mortgagor;

(d) where, the mortgagee being entitled to possession of the mortgaged property, the mortgagor fails to deliver the same to him, or to secure the possession thereof to him without disturbance by the mortgagor or any person claiming under a title superior to that of the mortgagor:

Provided that, in the case referred to in clause *(a)*, a transferee from the mortgagor or from his legal representative shall not be liable to be sued for the mortgage-money.

(2) Where a suit is brought under clause *(a)* or clause *(b)* of sub-section (1), the Court may, at its discretion, stay the suit and all proceedings therein, notwithstanding any contract to the contrary, until the mortgagee has exhausted all his available remedies against the mortgaged property or what remains of it, unless the mortgagee abandons his security and, if necessary, re-transfers the mortgaged property.]

69. Power of sale when valid.—[1][(1)] [1][[2][* * *] [2][A] mortgagee, or any person acting on his behalf, shall, subject to the provisions of this section, have power to sell or concur in selling the mortgaged property, or any part thereof, in default of payment of the mortgage-money, without the intervention of the Court, in the following cases and in no others, namely :—]

(a) where the mortgage is an English mortgage, and neither the mortgagor nor the mortgagee is a Hindu, [3][Muslim] or Buddhist [4][or a member of any other race, sect, tribe or class from time to time specified in this behalf by [5][the Provincial Government], in the [5][official Gazette]];

[6][*(b)* where the mortgagee is the Federal Government or a Provincial Government or a banking company as defined in the Banking Tribunals Ordinance, 1984 (LVIII of 1984).]

(c) where [1][a power of sale without the intervention of the Court is expressly conferred on the mortgagee by the mortgage-deed and] the mortgaged property or any part thereof [1][was, on the date of the execution of the mortgage-deed], situate within the [7][town of] Karachi, [8][* * *]or in any other town [1][or area] which the [8][Provincial Government] may, by notification in the [8][official Gazette], specify in this behalf.

[1]Numbered, subs. and ins. by Act No. XX of 1929, s. 34.
[2]Omitted and subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and 2nd Sch.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Table.
[4]Ins. by Act No. III of 1885, s. 5.
[5]Subs. by A. O., 1937.
[6]Subs. by the Finance Act, 1986 (Act No. 1 of 1986), s. 2.
[7]Subs. by A. O., 1949, Sch.
[8]Rep. and subs. by A. O., 1937.

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[1][*] [1][(2)] [2][A power under sub-section (1) shall not] be exercised unless and until—

[1][*(a)*] notice in writing requiring payment of the principal money has been served on the mortgagor, or on one of several mortgagors, and default has been made in payment of the principal money, or of part thereof, for three months after such service; or

[1][*(b)*] some interest under the mortgage amounting at least to five hundred rupees is in arrear and unpaid for three months after becoming due [2][:]

[2][Provided that the power of a scheduled bank under clause (b) of sub-section (1) shall further be subject to such conditions as may be prescribed in this behalf by notification in the official Gazette by the [3][Federal Government] in consultation with the State Bank of Pakistan.]

[1][(3)] When a sale has been made in professed exercise of such a power, the title of the purchaser shall not be impeachable on the ground that no case had arisen to authorize the sale, or that due notice was not given, or that the power was otherwise improperly or irregularly exercised; but any person damnified by an unauthorized or improper or irregular exercise of the power shall have his remedy in damages against the person exercising the power.

[1][(4)] The money which is received by the mortgagee, arising from the sale, after discharge of prior incumbrances, if any, to which the sale is not made subject, or after payment into Court under section 57 of a sum to meet any prior incumbrance, shall, in the absence of a contract to the contrary, be held by him in trust to be applied by him, first, in payment of all costs, charges and expenses properly incurred by him as incident to the sale or any attempted sale; and, secondly, in discharge of the mortgage- money and costs and other money, if any, due under the mortgage; and the residue of the money so received shall be paid to the person entitled to the mortgaged property, or authorised to give receipts for the proceeds of the sale thereof.

[4][* * * * * * *]

[1][* * * * * * *]

[1][**69A. Appointment of receiver.**— (1) A mortgagee having the right to exercise a power of sale under section 69 shall, subject to the provisions of sub-section (2), be entitled to appoint, by writing signed by him or on his behalf, a receiver of the income of the mortgaged property or any part thereof.

(2) Any person who has been named in the mortgage-deed and is willing and able to act as receiver may be appointed by the mortgagee.

[1]Rep., numbered, lettered and ins. by Act No. XX of 1929, ss. 34-35.
[2]Subs. and added by Act No. V of 1966, s. 2.
[3]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Table.
[4]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and 2nd Sch.

If no person has been so named, or if all persons named are unable or unwilling to act, or are dead, the mortgagee may appoint any person to whose appointment the mortgagor agrees; failing such agreement, the mortgagee shall be entitled to apply to the Court for the appointment of a receiver, and any person appointed by the Court shall be deemed to have been duly appointed by the mortgagee.

A receiver may at any time be removed by writing signed by or on behalf of the mortgagee and the mortgagor, or by the Court on application made by either party and on due cause shown.

A vacancy in the office of receiver may be filled in accordance with the provisions of this sub-section.

(3) A receiver appointed under the powers conferred by this section shall be deemed to be the agent of the mortgagor; and the mortgagor shall be solely responsible for the receiver's acts or defaults, unless the mortgage-deed otherwise provides or unless such acts or defaults are due to the improper intervention of the mortgagee.

(4) The receiver shall have power to demand and recover all the income of which he is appointed receiver, by suit, execution or otherwise, in the name either of the mortgagor or of the mortgagee to the full extent of the interest which the mortgagor could dispose of, and to give valid receipts accordingly for the same, and to exercise any powers which may have been delegated to him by the mortgagee in accordance with the provisions of this section.

(5) A person paying money to the receiver shall not be concerned to inquire if the appointment of the receiver was valid or not.

(6) The receiver shall be entitled to retain out of any money received by him, for his remuneration, and in satisfaction of all costs, charges and expenses incurred by him as receiver, a commission at such rate not exceeding five per cent. on the gross amount of all money received as is specified in his appointment, and, if no rate is so specified, then at the rate of five per cent. on that gross amount, or at such other rate as the Court thinks fit to allow, on application made by him for that purpose.

(7) The receiver shall, if so directed in writing by the mortgagee, insure to the extent, if any, to which the mortgagee might have insured, and keep insured against loss or damage by fire, out of the money received by him, the mortgaged property or any part thereof being of an insurable nature.

(8) Subject to the provisions of this Act as to the application of insurance money, the receiver shall apply all money received by him as follows, namely:—

(i) in discharge of all rents, taxes, land revenue, rates and outgoings whatever affecting the mortgaged property;

(ii) in keeping down all annual sums or other payments, and the interest on all principal sums, having priority to the mortgage in right whereof he is receiver;

(iii) in payment of his commission, and of the premiums on fire, life or other insurances, if any, properly payable under the mortgage-deed or under this Act, and the cost of executing necessary or proper repairs directed in writing by the mortgagee;

(iv) in payment of the interest falling due under the mortgage;

(v) in or towards discharge of the principal money, if so directed in writing by the mortgagee;

and shall pay the residue, if any, of the money received by him to the person who, but for the possession of the receiver, would have been entitled to receive the income of which he is appointed receiver, or who is otherwise entitled to the mortgaged property.

(9) The provisions of sub-section (1) apply only if and as far as a contrary intention is not expressed in the mortgage-deed; and the provisions of sub-sections (3) to (8) inclusive may be varied or extended by the mortgage-deed, and, as so varied or extended, shall, as far as may be, operate in like manner and with all the like incidents, effects and consequences, as if such variations or extensions were contained in the said sub-sections.

(10) Application may be made, without the institution of a suit, to the Court for its opinion, advice or direction on any present question respecting the management or administration of the mortgaged property, other than questions of difficulty or importance not proper in the opinion of the Court for summary disposal. A copy of such application shall be served upon, and the hearing thereof may be attended by, such of the persons interested in the application as the Court may think fit.

The costs of every application under this sub-section shall be in the discretion of the Court.

(11) In this section, "the Court" means the Court which would have jurisdiction in a suit to enforce the mortgage.]

70. Accession to mortgaged property.—If, after the date of a mortgage, any accession is made to the mortgaged property, the mortgagee, in the absence of a contract to the contrary, shall, for the purposes of the security, be entitled to such accession.

Illustrations

(a) A mortgages to B a certain field bordering on a river. The field is increased by alluvion. For the purposes of his security, B is entitled to the increase.

(b) A mortgages a certain plot of building land to B and afterwards erects a house on the plot. For the purposes of his security B is entitled to the house as well as the plot.

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71. Renewal of mortgaged lease.—When the mortgaged property is a lease [1][* * *], and the mortgagor obtains a renewal of the lease, the mortgagee, in the absence of a contract to the contrary, shall, for the purposes of the security, be entitled to the new lease.

72. Rights of mortgagee in possession.—[1][A mortgagee] may spend such money as is necessary—

[1][* * * * * * *]

(b) for [1][the preservation of the mortgaged property] from destruction, forfeiture or sale;

[1]Rep. and subs. by Act No. XX of 1929, ss. 36-37.

(c) for supporting the mortgagor's title to the property ;

(d) for making his own title thereto good against the mortgagor ; and,

(e) when the mortgaged property is a renewable lease-hold, for the renewal of the lease;

and may, in the absence of a contract to the contrary, add such money to the principal money, at the rate of interest payable on the principal, and where no such rate is fixed, at the rate of nine per cent. per annum:

[1][Provided that the expenditure of money by the mortgagee under clause (b) or clause (c) shall not be deemed to be necessary unless the mortgagor has been called upon and has failed to take proper and timely steps to preserve the property or to support the title.]

Where the property is by its nature insurable, the mortgagee may also, in the absence of a contract to the contrary, insure and keep insured against loss or damage by fire the whole or any part of such property; and the premiums paid for any such insurance shall be [1][added to the principal money with interest at the same rate as is payable on the principal money or, where no such rate is fixed, at the rate of nine per cent. per annum]. But the amount of such insurance shall not exceed the amount specified in this behalf in the mortgage-deed or (if no such amount is therein specified) two- thirds of the amount that would be required in case of total destruction to reinstate the property insured.

Nothing in this section shall be deemed to authorize the mortgagee to insure when an insurance of the property is kept up by or on behalf of the mortgagor to the amount in which the mortgagee is hereby authorized to insure.

[1][**73. Right to proceeds of revenue sale or compensation on acquisition**.— (1) Where the mortgaged property or any part thereof or any interest therein is sold owing to failure to pay arrears of revenue or other charges of a public nature or rent due in respect of such property, and such failure did not arise from any default of the mortgagee, the mortgagee shall be entitled to claim payment of the mortgage-money, in whole or in part, out of any surplus of the sale proceeds remaining after payment of the arrears and of all charges and deductions directed by law.

(2) Where the mortgaged property or any part thereof or any interest therein is acquired under the Land Acquisition Act, 1894(I of 1894), or any other enactment for the time being in force providing for the compulsory acquisition of immoveable property, the mortgagee shall be entitled to claim payment of the mortgage-money, in whole or in part, out of the amount due to the mortgagor as compensation.

(3) Such claims shall prevail against all other claims except those of prior encumbrancers, and may be enforced notwithstanding that the principal money on the mortgage has not become due.]

74. [1][* * * * * * *]

75. [1][* * * * * * *]

[1]Ins., subs. and rep. by Act No. XX of 1929, ss. 37-39.

76. Liabilities of mortgagee in possession.—When, during the continuance of the mortgage, the mortgagee takes possession of the mortgaged property,—

(a) he must manage the property as a person of ordinary prudence would manage it if it were his own;

(b) he must use his best endeavours to collect the rents and profits thereof;

(c) he must, in the absence of a contract to the contrary, out of the income of the property, pay the Government revenue, all other charges of a public nature [1][and all rent] accruing due in respect thereof during such possession, and any arrears of rent in default of payment of which the property may be summarily sold;

(d) he must, in the absence of a contract to the contrary, make such necessary repairs of the property as he can pay for out of the rents and profits thereof after deducting from such rents and profits the payments mentioned in clause (c) and the interest on the principal money;

(e) he must not commit any act which is destructive or permanently injurious to the property;

(f) where he has insured the whole or any part of the property against loss or damage by fire, he must, in case of such loss or damage, apply any money which he actually receives under the policy or so much thereof as may be necessary, in reinstating the property, or, if the mortgagor so directs, in reduction or discharge of the mortgage-money;

(g) he must keep clear, full and accurate accounts of all sums received and spent by him as mortgagee, and, at any time during the continuance of the mortgage, give the mortgagor, at his request and cost, true copies of such accounts and of the vouchers by which they are supported ;

(h) his receipts from the mortgaged property, or, where such property is personally occupied by him, a fair occupation-rent in respect thereof, shall, after deducting the expenses [1][properly incurred for the management of the property and the collection of rents and profits and the other expenses] mentioned in clauses (c) and (d), and interest thereon, be debited against him in reduction of the amount (if any) from time to time due to him on account of interest [1][* * *] and, so far as such receipts exceed any interest due, in reduction or discharge of the mortgage-money; the surplus, if any, shall be paid to the mortgagor;

(i) When the mortgagor tenders, or deposits in manner hereinafter provided, the amount for the time being due on the mortgage, the mortgagee must, notwithstanding the provisions in the other clauses of this section, account for his [1][*] receipts from the mortgaged property from the date of the tender or from the earliest time when he could take such amount out of Court, as the case may be [1][and shall not be entitled to deduct any amount therefrom on account of any

[1]Ins. and rep. by Act No. XX of 1929, s. 40.

expenses incurred after such date or time in connection with the mortgaged property].

Loss occasioned by his default. If the mortgagee fail to perform any of the duties imposed upon him by this section, he may, when accounts are taken in pursuance of a decree made under this Chapter, be debited with the loss, if any, occasioned by such failure.

77. Receipts in lieu of interest.— Nothing in section 76, clauses (b), (d), (g) and (h), applies to cases where there is a contract between the mortgagee and the mortgagor that the receipts from the mortgaged property shall, so long as the mortgagee is in possession of the property, be taken in lieu of interest on the principal money, or in lieu of such interest and defined portions of the principal.

Priority

78. Postponement of prior mortgagee.—Where, through the fraud, misrepresentation or gross neglect of a prior mortgagee, another person has been induced to advance money on the security of the mortgaged property, the prior mortgagee shall be postponed to the subsequent mortgagee.

79. Mortgage to secure uncertain amount when maximum is expressed.— If a mortgage made to secure future advances, the performance of an engagement or the balance of a running account, expresses the maximum to be secured thereby, a subsequent mortgage of the same property shall, if made with notice of the prior mortgage, be postponed to the prior mortgage in respect of all advances or debits not exceeding the maximum though made or allowed with notice of the subsequent mortgage.

Illustration

A mortgages Sultanpur to his bankers, B & Co., to secure the balance of his account with them to the extent of Rs. 10,000. A then mortgages Sultanpur to C, to secure Rs. 10,000, C having notice of the mortgage to B & Co., and C gives notice to B & Co. of the second mortgage. At the date of the second mortgage, the balance due to B & Co. does not exceed Rs. 5,000. B & Co., subsequently advance to A sums making the balance of the account against him exceed the sum of Rs. 10,000. B & Co. are entitled, to the extent of Rs. 10,000, to priority over C.

80. [1][** * * * * *]

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Marshalling and Contribution

[1][**81. Marshalling securities.—** If the owner of two or more properties mortgages them to one person and then mortgages one or more of the properties to another person, the subsequent mortgagee is, in the absence of a contract to the contrary, entitled to have the prior mortgage-debt satisfied out of the property or properties not mortgaged to him, so far as the same will extend, but not so as to prejudice the rights of the prior mortgagee or of any other person who has for consideration acquired an interest in any of the properties.]

82. Contribution to mortgage-debt.— [1][Where property subject to a mortgage belongs to two or more persons having distinct and separate rights of ownership therein, the different shares in or parts of such property owned by such persons are, in the absence of a contract to the contrary, liable

[1]Rep. and subs. by Act No. XX of 1929, ss. 41-43.

to contribute rateably to the debt secured by the mortgage, and, for the purpose of determining the rate at which each such share or part shall contribute, the value thereof shall be deemed to be its value at the date of the mortgage after deduction of the amount of any other mortgage or charge to which it may have been subject on that date.]

Where, of two properties belonging to the same owner, one is mortgaged to secure one debt and then both are mortgaged to secure another debt, and the former debt is paid out of the former property, each property is, in the absence of a contract to the contrary, liable to contribute rateably to the latter debt after deducting the amount of the former debt from the value of the property out of which it has been paid.

Nothing in this section applies to a property liable under section 81 to the claim of the [1][subsequent] mortgagee.

Deposit in Court

83. Power to deposit in Court money due on mortgage.—At any time after the principal money [1][payable in respect of any mortgage has become due] and before a suit for redemption of the mortgaged property is barred, the mortgagor, or any other person entitled to institute such suit, may deposit, in any Court in which he might have instituted such suit, to the account of the mortgagee, the amount remaining due on the mortgage.

Right to money deposited by mortgagor. The Court shall thereupon cause written notice of the deposit to be served on the mortgagee, and the mortgagee may, on presenting a petition (verified in manner prescribed by law for the verification of plaints) stating the amount then due on the mortgage, and his willingness to accept the money so deposited in full discharge of such amount, and on depositing in the same Court the mortgage-deed [1][and all documents in his possession or power relating to the mortgaged property], apply for and receive the money, and the mortgage-deed [1][and all such other documents] so deposited shall be delivered to the mortgagor or such other person as aforesaid.

[1][Where the mortgagee is in possession of the mortgaged property, the Court shall, before paying to him the amount so deposited, direct him to deliver possession thereof to the mortgagor and at the cost of the mortgagor either to re-transfer the mortgaged property to the mortgagor or to such third person as the mortgagor may direct or to execute and (where the mortgage has been effected by a registered instrument) have registered an acknowledgement in writing that any right in derogation of the mortgagor's interest transferred to the mortgagee has been extinguished.]

84. Cessation of interest.—When mortgagor or such other person as aforesaid has tendered or deposited in Court under section 83 the amount remaining due on the mortgage, interest on the principal money shall cease from the date of the tender or [1][in the case of a deposit, where no previous tender of such amount has been made] as soon as the mortgagor or such other person as aforesaid has done all that has to be done by him to enable the mortgagee to take such amount out of Court, [1][and the notice required by section 83 has been served on the mortgagee:

Provided that, where the mortgagor has deposited such amount without having made a previous tender thereof and has subsequently withdrawn the same or any part thereof, interest on the principal money shall be payable from the date of such withdrawal].

[1]Subs. and ins. by Act No. XX of 1929, ss. 43-45.

Nothing in this section or in section 83 shall be deemed to deprive the mortgagee of his right to interest when there exists a contract that he shall be entitled to reasonable notice before payment or tender of the mortgage-money [1][and such notice has not been given before the making of the tender or deposit, as the case may be].

[2]Suits for Foreclosure, Sale or Redemption

85. [3][** * * * * *]

[2]Foreclosure and Sale

[86 to 90.] [3][* * * * * * *]

Redemption

[1][**91. Persons who may sue for redemption.**—Besides the mortgagor, any of the following persons may redeem, or institute a suit for redemption of, the mortgaged property, namely :—

(a) any person (other than the mortgagee of the interest sought to be redeemed) who has any interest in, or charge upon, the property mortgaged or in or upon the right to redeem the same;

(b) any surety for the payment of the mortgage-debt or any part thereof; or

(c) any creditor of the mortgagor who has in a suit for the administration of his estate obtained a decree for sale of the mortgaged property.]

[1][**92. Subrogation.**—Any of the persons referred to in section 91 (other than the mortgagor) and any co-mortgagor shall, on redeeming property subject to the mortgage, have, so far as regards redemption, foreclosure or sale of such property, the same rights as the mortgagee whose mortgage he redeems may have against the mortgagor or any other mortgagee.

The right conferred by this section is called the right of subrogation, and a person acquiring the same is said to be subrogated to the rights of the mortgagee whose mortgage he redeems.

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A person who has advanced to a mortgagor money with which the mortgage has been redeemed shall be subrogated to the rights of the mortgagee whose mortgage has been redeemed, if the mortgagor has by a registered instrument agreed that such persons shall be so subrogated.

Nothing in this section shall be deemed to confer a right of subrogation on any person unless the mortgage in respect of which the right is claimed has been redeemed in full.

93. Prohibition of tacking.—No mortgagee paying off a prior mortgage, whether with or without notice of an intermediate mortgage, shall thereby acquire any priority in respect of his original security; and, except in the case provided for by section 79, no mortgagee making a subsequent advance to the mortgagor, whether with or without notice of an intermediate mortgage, shall thereby acquire any priority in respect of his security for such subsequent advance.

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[1]Ins. and subs. by Act No. XX of 1929, ss. 45-47.
[2]For the repealed provisions, as re-enacted, *see* the Code of Civil Procedure, 1908 (Act No. V of 1908), Sch. I, Order XXXIV.
[3]Rep. by the Code of Civil Procedure, 1908 (Act No. V of 1908), s. 156 and Sch. V.

94. Rights of mesne mortgagee.—Where a property is mortgaged for successive debts to successive mortgagees, a mesne mortgagee has the same rights against mortgagees posterior to himself as he has against the mortgagor.]

[1][95. Right of redeeming co-mortgagor to expenses.—Where one of several mortgagors redeems the mortgaged property, he shall, in enforcing his right of subrogation under section 92 against his co- mortgagors, be entitled to add to the mortgage-money recoverable from them such proportion of the expenses properly incurred in such redemption as is attributable to their share in the property.

96. Mortgage by deposit of title-deeds.— The provisions hereinbefore contained which apply to a simple mortgage shall, so far as may be, apply to a mortgage by deposit of title-deeds.]

97. [2][* * * * * * *]

Anomalous Mortgages

98. Rights and liabilities of parties to anomalous mortgages.—In the case of [1][an anomalous mortgage] the rights and liabilities of the parties shall be determined by their contract as evidenced in the mortgage-deed, and, so far as such contract does not extend, by local usage.

99. [3][* * * * * * *]

Charges

100. Charges.—Where immoveable property of one person is by act of parties or operation of law made security for the payment of money to another, and the transaction does not amount to a mortgage, the latter person is said to have a charge on the property; and all the provisions hereinbefore contained [1][which apply to a simple mortgage shall, so far as may be, apply to such charge].

Nothing in this section applies to the charge of a trustee on the trust-property for expenses properly incurred in the execution of his trust, [1][and, save as otherwise expressly provided by any law for the time being in force, no charge shall be enforced against any property in the hands of a person to whom such property has been transferred for consideration and without notice of the charge].

[1][**101. No merger in case of subsequent encumbrance.**—Any mortgagee of, or person having a charge upon, immoveable property, or any transferee from such mortgagee or charge-holder, may purchase or otherwise acquire the rights in the property of the mortgagor or owner, as the case may be, without thereby causing the mortgage or charge to be merged as between himself and any subsequent mortgagee of, or person having a subsequent charge upon, the same property; and no such subsequent mortgagee or charge-holder shall be entitled to foreclose or sell such property without redeeming the prior mortgage or charge, or otherwise than subject thereto.]

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[1]Subs. and ins. by Act No. XX of 1929, ss. 48-51.
[2]Rep. by the Code of Civil Procedure, 1908 (Act No. V of 1908), s. 156 and Sch. V. For the repealed provisions as re-enacted, *see* the Code of Civil Procedure, 1908 (Act No. V of 1908), Sch. I, Order XXXIV, rules 12 and 13.
[3]Rep. by the Code of Civil Procedure, 1908 (Act No. V of 1908), s. 156 and Sch. V. For the repealed provisions as re-enacted, *see* Act V of 1908, Sch. I, Order XXXIV, rule 14.

Notice and Tender

102. Service or tender on or to agent.—Where the person on or to whom any notice or tender is to be served or made under this Chapter does not reside in the district in which the mortgaged property or some part thereof is situate, service or tender on or to an agent holding a general power-of-attorney from such person or otherwise duly authorized to accept such service or tender shall be deemed sufficient.

[1][Where no person or agent on whom such notice should be served can be found or is known] to the person required to serve the notice, the latter person may apply to any Court in which a suit might be brought for redemption of the mortgaged property, and such Court shall direct in what manner such notice shall be served, and any notice served in compliance with such direction shall be deemed sufficient:

[1][Provided that, in the case of a notice required by section 83, in the case of a deposit, the application shall be made to the Court in which the deposit has been made.]

[1][Where no person or agent to whom such tender should be made can be found or is known] to the person desiring to make the tender, the latter person may deposit [1][in any Court in which a suit might be brought for redemption of the mortgaged property] the amount sought to be tendered, and such deposit shall have the effect of a tender of such amount.

103. Notice, etc., to or by person incompetent to contract.—Where, under the provisions of this Chapter, a notice is to be served on or by, or a tender or deposit made or accepted or taken out of Court by, any person incompetent to contract, such notice may be served [1][on or by], or tender or deposit made, accepted or taken, by the legal curator of the property of such person; but where there is no such curator, and it is requisite or desirable in the interests of such person that a notice should be served or a tender or deposit made under the provisions of this Chapter, application may be made to any Court in which a suit might be brought for the redemption of the mortgage to appoint a guardian *ad litem* for the purpose of serving or receiving service of such notice, or making or accepting such tender, or making or taking out of Court such deposit, and for the performance of all consequential acts which could or ought to be done by such person if he were competent to contract; and the provisions of [1][Order XXXII in the First Schedule to the Code of Civil Procedure, 1908(V of 1908)] shall, so far as may be, apply to such application and to the parties thereto and to the guardian appointed thereunder.

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104. Power to make rules.—The High Court may, from time to time, make rules consistent with this Act for carrying out, in itself and in the Courts of Civil Judicature subject to its superintendence, the provisions contained in this Chapter.

CHAPTER V

OF LEASES OF IMMOVEABLE PROPERTY

105. Lease defined.— A lease of immoveable property is a transfer of a right to enjoy such property, made for a certain time, express or implied, or in perpetuity, in consideration of a price paid or promised, or of money, a share of crops, service or any other thing of value, to be rendered periodically or on specified occasions to the transferor by the transferee, who accepts the transfer on such terms.

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[1]Subs. and ins. by Act No. XX of 1929, ss. 52-53.

Lessor, lessee, premium and rent defined. The transferor is called the lessor, the transferee is called the lessee, the price is called the premium, and the money, share, service or other thing to be so rendered is called the rent.

106. Duration of certain leases in absence of written contract or local usage.— In the absence of a contract or local law or usage to the contrary, a lease of immoveable property for agricultural or manufacturing purposes shall be deemed to be a lease from year to year, terminable, on the part of either lessor or lessee, by six months' notice expiring with the end of a year of the tenancy; and a lease of immoveable property for any other purpose shall be deemed to be a lease from month to month, terminable, on the part of either lessor or lessee, by fifteen days' notice expiring with the end of a month of the tenancy.

Every notice under this section must be in writing signed by or on behalf of the person giving it, and [1][either be sent by post to the party who is intended to be bound by it or be tendered or delivered personally to such party], or to one of his family or servants at his residence, or (if such tender or delivery is not practicable) affixed to a conspicuous part of the property.

[2]**107. Leases how made.**—A lease of immoveable property from year to year, or for any term exceeding one year, or reserving a yearly rent, can be made only by a registered instrument.

[3][All other leases of immoveable property may be made either by a registered instrument or by oral agreement accompanied by delivery of possession.]

[1][Where a lease of immoveable property is made by a registered instrument, such instrument or, where there are more instruments than one, each such instrument shall be executed by both the lessor and the lessee:]

[3][Provided that the [4][Provincial Government] may, [4][* * *] from time to time, by notification in the [4][official Gazette], direct that leases of immoveable property, other than leases from year to year, or for any term exceeding one year, or reserving a yearly rent, or any class of such leases, may be made by unregistered instrument or by oral agreement without delivery of possession.]

108. Rights and liabilities of lessor and lessee.—In the absence of a contract or local usage to the contrary, the lessor and the lessee of immoveable property, as against one another, respectively, possess the rights and are subject to the liabilities mentioned in the rules next following, or such of them as are applicable to the property leased :—

[1]Subs. and ins. by Act No. XX of 1929, ss. 54-55.
[2]As to limitation to the territorial operation of s. 107, *see* s. 1, *supra*. S. 107 extends to every cantonment in the Provinces, etc., see s. 287 of the Cantonments Act, 1924 (Act No. II of 1924).
[3]Subs. and ins. by Act No. VI of 1904, ss. 5.
[4]Subs. and rep. by A. O., 1937.

(A) Rights and Liabilities of the Lessor

(a) The lessor is bound to disclose to the lessee any material defect in the property, with reference to its intended use, of which the former is and the latter is not aware, and which the latter could not with ordinary care discover:

(b) the lessor is bound on the lessee's request to put him in possession of the property:

(c) the lessor shall be deemed to contract with the lessee that, if the latter pays the rent reserved by the lease and performs the contracts binding on the lessee, he may hold the property during the time limited by the lease without interruption.

The benefit of such contract shall be annexed to and go with the lessee's interest as such, and may be enforced by every person in whom that interest is for the whole or any part thereof from time to time vested.

(B)Rights and Liabilities of the Lessee

(d) if during the continuance of the lease any accession is made to the property, such accession (subject to the law relating to alluvion for the time being in force) shall be deemed to be comprised in the lease:

(e) if by fire, tempest or flood, or violence of an army or of a mob or other irresistible force, any material part of the property be wholly destroyed or rendered substantially and permanently unfit for the purposes for which it was let, the lease shall, at the option of the lessee, be void:

Provided that, if the injury be occasioned by the wrongful act or default of the lessee, he shall not be entitled to avail himself of the benefit of this provision:

(f) if the lessor neglects to make, within a reasonable time after notice, any repairs which he is bound to make to the property, the lessee may make the same himself, and deduct the expense of such repairs with interest from the rent, or otherwise recover it from the lessor:

(g) if the lessor neglects to make any payment which he is bound to make, and which, if not made by him, is recoverable from the lessee or against the property, the lessee may make such payment himself, and deduct it with interest from the rent, or otherwise recover it from the lessor:

(h) the lessee may [1][even after the determination of the lease] remove, at any time [1][whilst he is in possession of the property leased but not afterwards] all things which he has attached to the earth: provided he leaves the property in the state in which he received it :

(i) when a lease of uncertain duration determines by any means except the fault of the lessee, he or his legal representative is entitled to all the crops planted or sown by the lessee and growing upon the property when the lease determines, and to free ingress and egress to gather and carry them:

[1]Ins. and subs. by Act No. XX of 1929, s. 56.

(j) the lessee may transfer absolutely or by way of mortgage or sub-lease the whole or any part of his interest in the property, and any transferee of such interest or part may again transfer it. The lessee shall not, by reason only of such transfer, cease to be subject to any of the liabilities attaching to the lease:

nothing in this clause shall be deemed to authorize a tenant having an un-transferable right of occupancy, the farmer of an estate in respect of which default has been made in paying revenue, or the lessee of an estate under the management of a Court of Wards, to assign his interest as such tenant, farmer or lessee:

(k) the lessee is bound to disclose to the lessor any fact as to the nature or extent of the interest which the lessee is about to take, of which the lessee is, and the lessor is not, aware, and which materially increases the value of such interest:

(l) the lessee is bound to pay or tender, at the proper time and place, the premium or rent to the lessor or his agent in this behalf:

(m) the lessee is bound to keep, and on the termination of the lease to restore, the property in as good condition as it was in at the time when he was put in possession, subject only to the changes caused by reasonable wear and tear or irresistible force, and to allow the lessor and his agents, at all reasonable times during the term, to enter upon the property and inspect the condition thereof and give or leave notice of any defect in such condition, and, when such defect has been caused by any act or default on the part of the lessee, his servants or agents, he is bound to make it good within three months after such notice has been given or left:

(n) if the lessee becomes aware of any proceeding to recover the property or any part thereof, or of any encroachment made upon, or any interference with, the lessor's rights concerning such property, he is bound to give, with reasonable diligence, notice thereof to the lessor:

(o) the lessee may use the property and its products (if any) as a person of ordinary prudence would use them if they were his own; but he must not use, or permit another to use, the property for a purpose other than that for which it was leased, or fell [1][or sell] timber, pull down or damage buildings [1][belonging to the lessor, or] work mines or quarries not open when the lease was granted, or commit any other act which is destructive or permanently injurious thereto:

(p) he must not, without the lessor's consent, erect on the property any permanent structure, except for agricultural purposes:

(q) on the determination of the lease, the lessee is bound to put the lessor into possession of the property.

109. Rights of lessor's transferee.—If the lessor transfers the property leased, or any part thereof, or any part of his interest therein, the transferee, in the absence of a contract to the contrary, shall possess all the rights, and, if the lessee so elects, be subject to all the liabilities of the lessor as to the property or part transferred so long as he is the owner of it; but the lessor shall not, by reason only of such transfer, cease to be subject to any of the liabilities imposed upon him by the lease, unless the lessee elects to treat the transferee as the person liable to him:

Provided that the transferee is not entitled to arrears of rent due before the transfer, and that, if

[1]Ins. by Act No. XX of 1929, s. 56.

the lessee, not having reason to believe that such transfer has been made, pays rent to the lessor, the lessee shall not be liable to pay such rent over again to the transferee.

The lessor, the transferee and the lessee may determine what proportion of the premium or rent reserved by the lease is payable in respect of the part so transferred, and, in case they disagree, such determination may be made by any Court having jurisdiction to entertain a suit for the possession of the property leased.

110. Exclusion of day on which term commences.—Where the time limited by a lease of immoveable property is expressed as commencing from a particular day, in computing that time such day shall be excluded. Where no day of commencement is named, the time so limited begins from the making of the lease.

Duration of lease for year. Where the time so limited is a year or a number of years, in the absence of an express agreement to the contrary, the lease shall last during the whole anniversary of the day from which such time commences.

Option to determine lease. Where the time so limited is expressed to be terminable before its expiration, and the lease omits to mention at whose option it is so terminable, the lessee, and not the lessor, shall have such option.

111. Determination of lease.— A lease of immoveable property determines—

(a) by efflux of the time limited thereby:

(b) where such time is limited conditionally on the happening of some event-by the happening of such event:

(c) where the interest of the lessor in the property terminates on, or his power to dispose of the same extends only to, the happening of any event-by the happening of such event:

(d) in case the interests of the lessee and the lessor in the whole of the property become vested at the same time in one person in the same right:

(e) by express surrender; that is to say, in case the lessee yields up his interest under the lease to the lessor, by mutual agreement between them:

(f) by implied surrender:

(g) by forfeiture; that is to say, (1) in case the lessee breaks an express condition which provides that on breach thereof the lessor may re-enter [1][* * *]; or (2) in case the lessee renounces his character as such by setting up a title in a third person or by claiming title in himself; [1][or (3) the lessee is adjudicated an insolvent and the lease provides that the lessor may re-enter on the happening of such event]; and in [1][any of these cases] the lessor or his transferee [1][gives notice in writing to the lessee of] his intention to determine the lease:

(h) on the expiration of a notice to determine the lease, or to quit, or of intention to quit, the property leased, duly given by one party to the other.

Illustration to clause (f)

A lessee accepts from his lessor a new lease of the property leased, to take effect during the continuance of the existing lease. This is an implied surrender of the former lease, and such lease determines thereupon.

[1]Rep., ins. and subs. by Act No. XX of 1929, s. 57.

112. Waiver of forfeiture.—A forfeiture under section 111, clause (g), is waived by acceptance of rent which has become due since the forfeiture, or by distress for such rent, or by any other act on the part of the lessor showing an intention to treat the lease as subsisting:

Provided that the lessor is aware that the forfeiture has been incurred:

Provided also that, where rent is accepted after the institution of a suit to eject the lessee on the ground of forfeiture, such acceptance is not a waiver.

113. Waiver of notice to quit.— A notice given under section 111, clause (h), is waived, with the express or implied consent of the person to whom it is given, by any act on the part of the person giving it showing an intention to treat the lease as subsisting.

Illustrations

(a) A, the lessor, gives B, the lessee, notice to quit the property leased. The notice expires. B tenders, and A accepts, rent which has become due in respect of the property since the expiration of the notice. The notice is waived.

(b) A, the lessor, gives B, the lessee, notice to quit the property leased. The notice expires, and B remains in possession. A gives to B as lessee a second notice to quit. The first notice is waived.

114. Relief against forfeiture for non-payment of rent.—Where a lease of immoveable property has determined by forfeiture for non-payment of rent, and the lessor sues to eject the lessee, if, at the hearing of the suit, the lessee pays or tenders to the lessor the rent in arrear, together with interest thereon and his full costs of the suit, or gives such security as the Court thinks sufficient for making such payment within fifteen days, the Court may, in lieu of making a decree for ejectment pass an order relieving the lessee against the forfeiture; and thereupon the lessee shall hold the property leased as if the forfeiture had not occurred.

[1][**114A. Relief against forfeiture in certain other cases.**—Where a lease of immoveable property has determined by forfeiture for a breach of an express condition which provides that on breach thereof the lessor may re-enter, no suit for ejectment shall lie unless and until the lessor has served on the lessee a notice in writing—

(a) specifying the particular breach complained of ; and

(b) if the breach is capable of remedy, requiring the lessee to remedy the breach;

and the lessee fails, within a reasonable time from the date of the service of the notice, to remedy the breach, if it is capable of remedy.

Nothing in this section shall apply to an express condition against the assigning, under-letting, parting with the possession, or disposing, of the property leased, or to an express condition relating to forfeiture in case of non-payment of rent.]

[1]Ins. by Act No. XX of 1929, s. 58.

115. Effect of surrender and forfeiture on under-leases.—The surrender, express or implied, of a lease of immoveable property does not prejudice an under-lease of the property or any part thereof previously granted by the lessee, on terms and conditions substantially the same (except as regards the amount of rent) as those of the original lease; but, unless the surrender is made for the purpose of obtaining a new lease, the rent payable by, and the contracts binding on, the under-lessee shall be respectively payable to and enforceable by the lessor.

The forfeiture of such a lease annuls all such under-leases except where such forfeiture has been procured by the lessor in fraud of the under-lessees, or relief against the forfeiture is granted under section 114.

116. Effect of holding over.—If a lessee or under-lessee of property remains in possession thereof after the determination of the lease granted to the lessee, and the lessor or his legal representative accepts rent from the lessee or under-lessee, or otherwise assents to his continuing in possession, the lease is, in the absence of an agreement to the contrary, renewed from year to year, or from month to month, according to the purpose for which the property is leased, as specified in section 106.

Illustrations

(a) A lets a house to B for five years. B underlets the house to C at a monthly rent of Rs. 100. The five years expire, but C continues in possession of the house and pays the rent to A. C's lease is renewed from month to month.

(b) A lets a farm to B for the life of C. C dies, but B continues in possession with A's assent. B's lease is renewed from year to year.

117. Exemption of leases for agricultural purposes.— None of the provisions of this Chapter apply to leases for agricultural purposes, except in so far as the [1][Provincial Government] [2][* * *] may, by notification published in the [1][official Gazette], declare all or any of such provisions to be so applicable [3][in the case of all or any of such leases], together with, or subject to, those of the local law, if any, for the time being in force.

Such notification shall not take effect until the expiry of six months from the date of its publication.

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CHAPTER VI

OF EXCHANGES

118. "Exchange" defined.—When two persons mutually transfer the ownership of one thing for the ownership of another, neither thing or both things being money only, the transaction is called an "exchange".

A transfer of property in completion of an exchange can be made only in manner provided for the transfer of such property by sale.

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[1]Subs. by A. O., 1937.
[2]Rep. by the Devolution Act, 1920 (Act No. XXXVIII of 1920), s. 2 and Sch. I.
[3]Ins. by Act No. VI of 1904, s. 6.

[1][**119. Right of party deprived of thing received in exchange.**— If any party to an exchange or any person claiming through or under such party is by reason of any defect in the title of the other party deprived of the thing or any part of the thing received by him in exchange, then, unless a contrary intention appears from the terms of the exchange, such other party is liable to him or any person claiming through or under him for loss caused thereby, or at the option of the person so deprived, for the return of the thing transferred, if still in the possession of such other party or his legal representative or a transferee from him without consideration.]

120. Rights and liabilities of parties.— Save as otherwise provided in this Chapter, each party has the rights and is subject to the liabilities of a seller as to that which he gives, and has the rights and is subject to the liabilities of a buyer as to that which he takes.

121. Exchange of money.—On an exchange of money, each party thereby warrants the genuineness of the money given by him.

CHAPTER VII

OF GIFTS

122. "Gift" defined.—"Gift" is the transfer of certain existing moveable or immoveable property made voluntarily and without consideration, by one person, called the donor, to another, called the donee, and accepted by or on behalf of the donee.

Acceptance when to be made. Such acceptance must be made during the lifetime of the donor and while he is still capable of giving.

If the donee dies before acceptance, the gift is void.

[2]**123. Transfer how effected.**— For the purpose of making a gift of immoveable property, the transfer must be effected by a registered instrument signed by or on behalf of the donor, and attested by at least two witnesses.

For the purpose of making a gift of moveable property, the transfer may be effected either by a registered instrument signed as aforesaid or by delivery.

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Such delivery may be made in the same way as goods sold may be delivered.

124. Gift of existing and future property.—A gift comprising both existing and future property is void as to the latter.

125. Gift to several of whom one does not accept.— A gift of a thing to two or more donees, of whom one does not accept it, is void as to the interest which he would have taken had he accepted.

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[1]Subs. by Act No. XX of 1929, s. 59.

[2]As to limitation to the territorial operation of s. 123, *see* s. 1, *supra*. S. 123 extends to every cantonment in the Provinces, etc.– *see* s. 287 of the Cantonments Act, 1924 (Act No. II of 1924).

126. When gift may be suspended or revoked.—The donor and donee may agree that on the happening of any specified event which does not depend on the will of the donor a gift shall be suspended or revoked; but a gift which the parties agree shall be revocable wholly or in part, at the mere will of the donor, is void wholly or in part, as the case may be.

A gift may also be revoked in any of the cases (save want or failure of consideration) in which, if it were a contract, it might be rescinded.

Save as aforesaid a gift cannot be revoked.

Nothing contained in this section shall be deemed to affect the rights of transferees for consideration without notice.

Illustrations

(a) A gives a field to B, reserving to himself, with B's assent, the right to take back the field in case B and his descendants die before A. B dies without descendants in A's lifetime. A may take back the field.

(b) A gives a lakh of rupees to B, reserving to himself, with B's assent, the right to take back at pleasure Rs. 10,000 out of the lakh. The gift holds good as to Rs. 90,000, but is void as to Rs. 10,000, which continue to belong to A.

127. Onerous gift.—Where a gift is in the form of a single transfer to the same person of several things of which one is, and the others are not, burden by an obligation, the donee can take nothing by the gift unless he accepts it fully.

Where a gift is in the form of two or more separate and independent transfers to the same person of several things, the donee is at liberty to accept one of them and refuse the others, although the former may be beneficial and the latter onerous.

Onerous gift to disqualified person. A donee not competent to contract and accepting property burdened by any obligation is not bound by his acceptance. But if, after becoming competent to contract and being aware of the obligation, he retains the property given, he becomes so bound.

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Illustrations

(a) A has shares in, X, a prosperous joint stock company, and also shares in Y, a joint stock company, in difficulties. Heavy calls are expected in respect of the shares in Y. A gives B all his shares in joint stock companies. B refuses to accept the shares in Y. He cannot take the shares in X.

(b) A having a lease for a term of years of a house at a rent which he and his representatives are bound to pay during the term, and which is more than the house can be let for, gives to B the lease, and also, as a separate and independent transaction, a sum of money. B refuses to accept the lease. He does not by this refusal forfeit the money.

128. Universal donee.—Subject to the provisions of section 127, where a gift consists of the donor's whole property, the donee is personally liable for all the debts due by [1][and liabilities of] the donor at the time of the gift to the extent of the property comprised therein.

129. Saving of donations *mortis casua* and Muslim law.—Nothing in this Chapter relates to gifts of moveable property made in contemplation of death, or shall be deemed to affect any rule of [2][Muslim] law [1][* * *].

[3][CHAPTER VIII

OF TRANSFERS OF ACTIONABLE CLAIMS

130. Transfer of actionable claim.—(1) The transfer of an actionable claim [1][whether with or without consideration] shall be effected only by the execution of an instrument in writing signed by the transferor or his duly authorized agent, [1][* * *] shall be complete and effectual upon the execution of such instrument, and thereupon all the rights and remedies of the transferor, whether by way of damages or otherwise, shall vest in the transferee, whether such notice of the transfer as is hereinafter provided be given or not:

Provided that every dealing with the debt or other actionable claim by the debtor or other person from or against whom the transferor would, but for such instrument of transfer as aforesaid, have been entitled to recover or enforce such debt or other actionable claim, shall (save where the debtor or other person is a party to the transfer or has received express notice thereof as hereinafter provided) be valid as against such transfer.

(2) The transferee of an actionable claim may, upon the execution of such instrument of transfer as aforesaid, sue or institute proceedings for the same in his own name without obtaining the transferor's consent to such suit or proceedings and without making him a party thereto.

Exception.—Nothing in this section applies to the transfer of a marine or fire policy of insurance [1][or affects the provisions of section 38 of the Insurance Act, 1938(IV of 1938)].

Illustrations

(i) A owes money to B, who transfers the debt to C. B then demands the debt from A, who, not having received notice of the transfer, as prescribed in section 131, pays B. The payment is valid, and C cannot sue A for the debt.

(ii) A effects a policy on his own life with an Insurance Company and assigns it to a Bank for securing the payment of an existing or future debt. If A dies, the Bank is entitled to receive the amount of the policy and to sue on it without the concurrence of A's executor, subject to the proviso in sub-section (1) of section 130 and to the provisions of section 132.

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[1]Ins. and rep. by Act No. XX of 1929, ss. 60-62.
[2]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Table.
[3]Subs. by Act No. II of 1900, s. 4.
[4]Added by the Insurance Act, 1938 (Act No. IV of 1938), s. 121.

I30A. [1][* * * * * * *]

131. Notice to be in writing, signed.—Every notice of transfer of an actionable claim shall be in writing, signed by the transferor or his agent duly authorised in this behalf, or, in case the transferor refuses to sign, by the transferee or his agent, and shall state the name and address of the transferee.

132. Liability of transferee of actionable claim. The transferee of an actionable claim shall take it subject to all the liabilities and equities to which the transferor was subject in respect thereof at the date of the transfer.

Illustrations

(i) A transfers to C a debt due to him by B, A being then indebted to B. C sues B for the debt due by B to A. In such suit B is entitled to set off the debt due by A to him; although C was unaware of it at the date of such transfer.

(ii) A executed a bond in favour of B under circumstances entitling the former to have it delivered up and cancelled. B assigns the bond to C for value and without notice of such circumstances. C cannot enforce the bond against A.

133. Warranty of solvency of debtor.— Where the transferor of a debt warrants the solvency of the debtor, the warranty, in the absence of a contract to the contrary, applies only to his solvency at the time of the transfer, and is limited, where the transfer is made for consideration, to the amount or value of such consideration.

134. Mortgaged debt.—Where a debt is transferred for the purpose of securing an existing or future debt, the debt so transferred, if received by the transferor or recovered by the transferee, is applicable, first, in payment of the costs of such recovery: secondly, in or towards satisfaction of the amount for the time being secured by the transfer; and the residue, if any, belongs to the transferor or other person entitled to receive the same.

[2][**135. Assignment of rights under policy of insurance against fire.**—Every assignee by endorsement or other writing, of a policy of insurance against fire, in whom the property in the subject insured shall be absolutely vested at the date of the assignment, shall have transferred and vested in him all rights of suit as if the contract contained in the policy had been made with himself.]

135A. [1]**[* * * * * * *]**

136. Incapacity of officers connected with Courts of Justice.—No Judge, legal practitioner or officer connected with any Court of Justice shall buy or traffic in, or stipulate for, or agree to receive any share of, or interest in, any actionable claim, and no Court of Justice shall enforce, at his instance, or at the instance of any person claiming by or through him, any actionable claims, so dealt with by him as aforesaid.

137. Saving of negotiable instruments, etc.—Nothing in the foregoing sections of this Chapter applies to stocks, shares or debentures, or to instruments which are for the time being, by law or custom, negotiable, or to any mercantile document of title to goods.

Explanation.— The expression "mercantile document of title to goods" includes a bill of lading, dock-warrant, warehouse-keeper's certificate, railway receipt, warrant or order for the delivery of goods, and any other document used in the ordinary course of business as proof of the possession or control of goods, or authorizing or purporting to authorize, either by endorsement or by delivery, the possessor of the document to transfer or receive goods thereby represented.]

———————

[1]Repealed by the Marine Insurance Act, 2018 (Act No. V of 2018), s. 92.
[2]Subs. by Act No. VI of 1944, s. 3.

THE SCHEDULE

Year and chapter	Subject	Extent of repeal
(a) STATUTES		
27 Hen. VIII, c.10	Uses	The whole.
13 Eliz., c.5	Fraudulent conveyances	The whole.
27 Eliz., c.4	Fraudulent conveyances	The whole.
4 Wm. and Mary, c.16	Clandestine mortgages	The whole.
(b) ACTS OF THE GOVERNOR GENERAL IN COUNCIL		
[1][* *]	[1][* *]	[1][* *]
[1][* *]	[1][* *]	[1][* *]
XI of 1855	Mesne profits and improvements.	Section 1; in the title, the words "to mesne profits and," and in the preamble "to limit the liability for mesne profits and".
XXVII of 1866	[2][*] Trustee Act	Section 31.
IV of 1872	Punjab Laws Act	So far as it relates to Bengal Regulations I of 1798 and XVII of 1806.
[2][* *]	[2][* *]	[2][* *]
[2][* *]	[2][* *]	[2][* *]
I of 1877	Specific Relief . .	In sections 35 and 36, the words "in writing".
	[3][* *]	

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Date: 21-01-2025

[1]Omitted by the Central Laws (Statute Reform) Ordinance, 1960 (Ordinance No. XXI of 1960), s. 3 and 2nd Sch. (*with effect from the 14th October, 1955).*

[2]Repealed by the Federal Laws (Revision and Declaration) Act, 1951 (Act No. XXVI of 1951), s. 3 and 2nd Sch.

[3]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and 2nd Sch.

THE TRAVEL AGENCIES ACT, 1976

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15. Delegation of powers
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THE TRAVEL AGENCIES ACT, 1976

ACT No. XXX OF 1976

[11th May, 1976]

An Act to provide for the development, regulation and control of the profession of travel agencies in Pakistan

WHEREAS it is necessary and expedient to provide for the development, regulation and control of the profession of travel agencies in Pakistan;

It is hereby enacted as follows :—

1. Short title, extent and commencement.- (1) This Act may be called the Travel Agencies Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) "Committee" means the Travel Agencies Regulatory Committee set up by the Federal Government under section 3;

(b) "licence" means a licence granted under this Act to any person to operate as a travel agency;

(c) "licenced guide" means a guide licensed under the law for the regulation and control of the profession of tourist guides;

(d) "prescribed" means prescribed under the rules;

(e) "rules" means rules made under this Act;

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(f) "travel agency" means a person, by whatever name called, who-

(i) makes, directly or indirectly, on commercial basis arrangements for the passage of the tourists, or use of transport, or transportation of their baggage or goods by sea, air, rail or road; or

(ii) makes arrangements for lodging, transport or other services relating to travel of persons within Pakistan or arranges entertainment, sight-seeing, excursion and guide services, whether the arrangements are made on the basis of comprehensive all inclusive rates or on the basis of separate charges for each service provided ; or

(iii) has been delegated general authority in respect of sales for the airlines or other carriers, either directly or through a sub-contract; and

(g) "tourist" means a person normally residing outside Pakistan who enters Pakistan and remains therein for not less than twenty-four hours and not more than six months in the course of any year for purposes such as touring, recreation, sports, health, study, religious pilgrimages or business, and includes a citizen of Pakistan who travels within Pakistan or proceeds abroad for any of the said purposes.

3. Committee.— (1) As soon as may be after the commencement of this Act, the Federal Government shall set up a committee to be known as the Travel Agencies Regulatory Committee consisting of a Chairman and such other members as the Federal Government may determine.

(2) The Chairman and other members of the Committee shall hold office during the pleasure of the Federal Government on such terms and conditions as the Federal Government may determine.

(3) The committee shall perform the following functions, namely:—

(a) advise the Federal Government in the implementation of the provisions of this Act and the rules ;

(b) approve the rates of service charges of travel agencies in respect of various services rendered by them to the tourists ;

(c) advise the Federal Government from time to time in respect of licence fees to be prescribed for various services rendered by the travel agencies ;

(d) assist the Federal Government in the preparation of a code of conduct for travel agencies ; and

(e) such other functions as are connected with the objects of this Act and as the Federal Government may entrust to it.

4. Licensing of travel agency.— (1) Any person operating or intending to organize and operate a travel agency shall apply to the Federal Government on the prescribed form for the grant of a licence.

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(2) Subject to sub-section (3), on receipt of an application under sub-section (1), the Federal Government may, on payment of the prescribed fee by the applicant, grant to the applicant a licence in the prescribed form.

(3) A licence shall not be granted to an applicant if—

(a) the applicant, or the manager or any partner or director of the applicant, has been convicted of an offence which, in the opinion of the Federal Government, involves moral turpitude;

(b) the applicant is a minor or insane person;

(c) the financial position of the applicant is, in the opinion of the Federal Government, such as would prevent the applicant from acting as a travel agency efficiently;

(d) the applicant has had no experience of travel arrangements required to operate the business of a travel agency and has not employed persons who have had such experience; or

(e) the applicant does not have an office of a prescribed minimum standard or does not engage experienced and trained employees or licensed guides or does not provide such transportation facilities as may be prescribed.

(4) The Federal Government shall maintain a register in which the names, addresses, nature, composition and the field of operation of all licenced travel agencies shall be entered.

(5) The licence shall, unless earlier cancelled or suspended under section 10 or section 11, remain valid for one year and may be renewed from year to year [1][or, at the option of the travel agency, for a period upto five years] in such manner, and on payment of such fee, as may be prescribed.

5. Exemption from application.— This Act shall not apply to—

(a) enterprises operated by the State;

(b) national carriers of Pakistan and foreign airlines, duly authorised to operate to, from or *via* Pakistan; or

(c) any agency, whether private or official, which is specifically entrusted by Government with the work relating to handling of Haj pilgrims or other pilgrims, within or without Pakistan, and who are subject to special regulations governing their field of activity.

6. Prohibition to act without license, etc.— Subject to section 5—

(1) no person shall hold himself out or act as a travel agency unless he holds a licence.

(2) no airline or other carrier shall delegate general authority in respect of sales, either directly or through a sub-contract, to a person who does not hold a licence.

7. Business guarantee fund.— (1) A licensed travel agency shall maintain in a scheduled bank a business guarantee fund of such minimum amount or furnish such bank guarantee, as may be prescribed.

(2) No amount shall be payable out of a business guarantee fund maintained by a licensed travel agency under sub-section (1) except to the order of the Federal Government.

(3) The Federal Government may, after making such inquiry as it may deem fit and after giving a travel agency an opportunity of showing cause against the order proposed to be made, order payment, out of the business guarantee fund of the travel agency, of any sum owed by the agency to a tourist, carrier, company or hotel or lodging house and not settled by it within thirty days from the date of its becoming due.

[1]Ins. by Act No. VIII of 1996, s. 2.

(4) A travel agency from whose business guarantee fund payment of any amount has been made under sub-section (3) shall, within a period of fifteen days of such payment, deposit the said amount into the business guarantee fund.

8. Service charges.— (1) The rates of service charges from the tourists shall be set out in a rate list drawn up by a licensed travel agency from time to time and approved by the Committee.

(2) A copy of the rate list referred to in sub-section (1) for the time being in force shall be posted at some conspicuous part of the office of the travel agency.

9. Alterations.– A licensed travel agency shall, on payment of the prescribed fee, have every change in its nature or composition or its field of operation entered in the register maintained under section 4, within fifteen days of the day on which such change occurs.

10. Discontinuance of business, etc.– In the case of discontinuance or transfer of business, dissolution, re-organisation or winding up of a licensed travel agency, the Federal Government shall be informed by the agency within thirty days of such discontinuance, transfer, dissolution, re-organization or winding up, and on receipt of the information, the Federal Government may either cancel the licence granted to the travel agency or, in the case of transfer of business or reorganization, grant a new licence to the transferee travel agency or to the travel agency as re-organized.

11. Suspension or cancellation of licence.– The Federal Government may, after affording a licensed travel agency an opportunity of showing cause against the action proposed to be taken against it, by order in writing, suspend the license of the travel agency for a period not exceeding six months or cancel its licence if the agency—

(a) violates the provisions of this Act or the rules or the terms and conditions of the licence or the prescribed code of conduct;

(b) suspends its business without intimation to, or permission of, the Federal Government and does not resume it within six months from the date of such suspension or within the time specified by the Federal Government;

(c) contravenes the provisions of sub-section (1) or sub-section (4) of section 7; or

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(d) becomes a person to whom a licence cannot be granted under sub-section (3) of section 4.

12. Complaints.– Any traveller having a complaint against any travel agency may approach the Committee which shall dispose of the same in the prescribed manner.

13. **Appeal and review.**— (1) A travel agency aggrieved by the decision or order of an officer or authority other than the Federal Government under this Act or the rules may prefer an appeal to the Federal Government within the prescribed time and in the prescribed manner; and the decision of the Federal Government in such appeal shall be final.

(2) The Federal Government may at any time of its own motion, or on the application of any travel agency aggrieved by any decision or order passed by the Federal Government under this Act or the rules within the prescribed time and in the prescribed manner, pass such order in relation thereto as it thinks fit:

Provided that no order against a travel agency shall be passed unless it has been given an opportunity of showing cause against it and of being heard.

14. Penalty.— (1) Any travel agency which contravenes or fails to comply with the provisions of this Act or the rules or violates the prescribed code of conduct shall, without prejudice to any other action that may be taken against it under this Act, be punishable with fine which may extend to twenty-five thousand rupees.

(2) No court shall take cognizance of an offence punishable under this Act except upon a complaint made in writing by or under the authority of the Federal Government.

15. Delegation of powers.– The Federal Government may, by notification in the official Gazette, direct that all or any of its powers under this Act shall, under such conditions, if any, as may be specified, be exercisable also—

(a) by any Officer or authority subordinate to the Federal Government, or

(b) by a Provincial Government or any Officer or authority subordinate to such Government.

16. Power to make rules.— (1) The Federal Government may, by notification in the official Gazette, make rules[1] for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the fees payable for the issue and renewal of a licence, depending on the nature of the services to be rendered by an applicant to tourists and the number of branch offices the applicant proposes to establish;

(b) the form in which an application for a licence is to be made;

(c) the form of the licence;

(d) the code of conduct;

(e) the conditions to which a licence shall be subject; and

(f) the manner in which, and the time within which, an appeal under this Act may be preferred.

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[1]For the Travel Agencies Rules, 1977, see S.R.O. No. 463(I)/77, dated 28-5-77, Gaz. of P., 1977, Ext., (Islamabad) Pt. II, pp. 879—891.

THE PAKISTAN CODE

RGN Dated: 17-03-2026

THE TRIBAL AREAS (RESTORATION OF JURISDICTION) ACT, 1964

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1. Short title and commencement
2. Restoration of jurisdiction of the Supreme Court and the High Court
3. Extension of limitation

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THE TRIBAL AREAS (RESTORATION OF JURISDICTION) ACT, 1964

ACT No. II OF 1964

[7th *April*, 1964]

An Act to restore the jurisdiction of the Supreme Court and the High Court in relation to the Tribal Areas of the Quetta Division

WHEREAS clause (5) of Article 223 of the Constitution provides that neither the Supreme Court nor a High Court shall, unless the Central Legislature by law otherwise provides, exercise any jurisdiction under the Constitution in relation to a Tribal Area;

AND WHEREAS before the commencement of the aforesaid clause the Supreme Court and the High Court of West Pakistan exercised certain jurisdiction in relation to the Tribal Areas of the Quetta Division;

AND WHEREAS it is expedient to restore that jurisdiction to the Supreme Court and the High Court;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the Tribal Areas (Restoration of Jurisdiction) Act, 1964.

(2) It shall come into force at once and shall be deemed to have taken effect on the tenth day of January, 1964.

2. Restoration of jurisdiction of the Supreme Court and the High Court.— The Supreme Court and the [1][High Court of Baluchistan] shall exercise in relation to the Tribal Areas of the Quetta Division the same jurisdiction as was exercisable by [2][Supreme Court or, as the case may be, the High Court of West Pakistan] in relation to those areas before the commencement of the Constitution (First Amendment) Act, 1963 (I of 1964).

3. Extension of limitation.—Notwithstanding anything contained in any other law for the time being in force, if a period of limitation had begun to run from before the commencement of the Constitution (First Amendment) Act), 1963(I of 1964), in respect of any matter concerning which the jurisdiction of the Supreme Court and the [1][High Court of Baluchistan] is created or restored by this Act then in computing such period of limitation the period between the tenth day of January, 1964, and the date of the coming into force of this Act shall be excluded:

Provided that no period of such limitation shall expire on a day earlier than the thirtieth day from such date.

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Date: - 21.03.2024

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch.
[2]Subs. by F.A.O., 1975 (P.O. No. 4 of 1975), Art. 2 and Sch.

THE TRUSTS ACT, 1882

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[Omitted.]

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[1]THE TRUSTS ACT, 1882

[2]ACT No. II OF 1882

[13th January, 1882]

An Act to define and amend the law relating to Private Trusts and Trustees.

WHEREAS it is expedient to define and amend the law relating to private trusts and trustees; it is hereby enacted as follows:–

CHAPTER I

PRELIMINARY

1. Short title, Commencement. This Act may be called the [3]* Trusts Act, 1882; and it shall come into force on the first day of March, 1882.

Local extent, Savings. [4][It extends to [5][the whole of Pakistan]. But nothing herein contained affects the rules of [6][Muslim] law as to *waqf*, or the mutual relations of the members of an undivided family as determined by any customary or personal law, or applies to public or private religious or charitable endowments, or to trusts to distribute prizes taken in war among the captors; and nothing in the second Chapter of this Act applies to trusts created before the said day.

2. *[Repeal of enactments.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch. II.*

3. Interpretation clause. "trust" A "trust" is an obligation annexed to the ownership of property, and arising out of a confidence reposed in and accepted by the owner, or declared and accepted by him, for the benefit of another, or of another and the owner:

"author of the trust": "trustee": "beneficiary": "trust property": "beneficial interest": instrument of trust": the person who reposes or declares the confidence is called the "author of the trust": the person who accepts the confidence is called the "trustee" : the person for whose benefit the confidence is accepted is called the "beneficiary" : the subject matter of the trust is called "trust-property" or "trust-money" : the "beneficial interest" or "interest" of the beneficiary is his right against the trustee as owner of the trust-property; and the instrument, if any, by which the trust is declared is called the "instrument of trust":

"breach of trust": a breach of any duty imposed on a trustee, as such, by any law for the time being in force, is called a "breach of trust":

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[1]The Trust Act, 1882 is repealed to the extent of I.C.T by Act NO. XXV of 2020,s.111.

[2]For Report of the Indian Law Commission on the Private Trusts Bill which they were instructed to consider among others, see Gazette of India, 1880, Supplement, p. 104, and for the Statement of Objects and Reasons, see Gazette of India, 1880, Pt. V, p. 476 ; for report of the Select Committee, *see ibid.,* Supplement, 1881, p. 766 ; for further Report of the Select Committee, see ibid., Supplement, 1882, p. 67 ; for Proceedings in Council, *see ibid*., Supplement, 1881, p. 687 ; and *ibid*., Supplement, 1882, p. 68.

This Act has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications; and also extended to the Excluded Area of Upper Tanawal (N. W.F.P.) other than PhuIera with effect from such date and subject to such modifications as may be notified-*see* N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.

[3] The word "Indian" omitted by A. O., 1949, Sch.

[4]Subs. *ibid.*, for the first sentence of this paragraph, as amended by A. O., 1937.

[5]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch., for "all the Provinces" (*with effect from the 14th October, 1955*).

[6]Subs. by F. A. 0., 1975, Art. 2 and Table, for "Muhammadan".

"registered": and in this Act, unless there be something repugnant in the subject or context, "registered" means registered under the law for the registration of documents for the time being in force:

"notice". a person is said to have "notice" of a fact either when he actually knows that fact, or when, but for wilful abstention from inquiry or gross negligence, he would have known it, or when information of the fact is given to or obtained by his agent, under the circumstances mentioned in the Contract Act, 1872, (IX of 1872) section 229;

Expressions defined in Act IX of 1872. and all expressions used herein and defined in the Contract Act, 1872 (IX of 1872), shall be deemed to have the meanings respectively attributed to them by that Act.

CHAPTER II

OF THE CREATION OF TRUSTS

4. Lawful purpose. A trust may be created for any lawful purpose. The purpose of a trust is lawful unless it is (a) forbidden by law, or (b) is of such a nature that, if permitted, it would defeat the provisions of any law, or (c) is fraudulent, or (d) involves or implies injury to the person or property of another, or (e) the Court regards it as immoral or opposed to public policy.

Every trust of which the purpose is unlawful is void. And where a trust is created for two purposes, of which one is lawful and the other unlawful, and the two purposes cannot be separated, the whole trust is void.

Explanation.—In this section the expression "law" includes, where the trust property is immoveable and situate in a foreign country, the law or such country.

Illustrations

(a) A conveys property to B in trust to apply the profits to the nurture of female foundlings to be trained up as prostitutes. The trust is void.

(b) A bequeaths property to B in trust to employ it in carrying on a smuggling business, and out of the profits thereof to support A's children. The trust is void.

(c) A, while in insolvent circumstances, transfers property to B in trust for A during his life, and after his death for B. A is declared an insolvent. The trust for A is invalid as against his creditor.

5. Trust of immoveable property. No trust in relation to immoveable property is valid unless declared by a non-testamentary instrument in writing signed by the author of the trust or the trustee and registered, or by the will of the author of the trust or of the trustee.

Trust of moveable property. No trust in relation to moveable property is valid unless declared as aforesaid, or unless the ownership of the property is transferred to the trustee.

These rules do not apply where they would operate so as to effectuate a fraud.

6. Creation of trust. Subject to the provisions of section 5, a trust is created when the author of the trust indicates with reasonable certainty by any words or acts (a) an intention on his part

to create thereby a trust, (b) the purpose of the trust, (c) the beneficiary, and (d) the trust- property, and (unless the trust is declared by will or the author of the trust is himself to be the trustee) transfers the trust- property to the trustee.

Illustrations

(a) A bequeaths certain property to B, "having the fullest confidence that he will dispose of it for the benefit of C". This creates a trust so far as regards A and C.

(b) A bequeaths certain property to B, "hoping he will continue it in the family". This does not create a trust, as the beneficiary is not indicated with reasonable certainty.

(c) A bequeaths certain property to B, requesting him to distribute it among such members of C's family as B should think most deserving. This does not create a trust, for the beneficiaries are not indicated with reasonable certainty.

(d) A bequeaths certain property to B, desiring him to divide the bulk of it among C's children. This does not create a trust, for the trust-property is not indicated with sufficient certainty.

(e) A bequeaths a shop and stock-in-trade to B, on condition that he pays A's debts and a legacy to C. This is a condition, not a trust for A's creditors and C.

7. Who may create trusts. A trust may be created

(a) by every person competent to contract[1], and

(b) with the permission of a principal Civil Court of original jurisdiction, by or on behalf of a minor ;

but subject in each case to the law for the time being in force as to the circumstances and extent in and to which the author of the trust may dispose of the trust property.

8. Subject of trust. The subject matter of a trust must be property transferable to the beneficiary.

It must not be merely beneficial interest under a subsisting trust.

9. Who may be beneficiary. Every person capable of holding property may be a beneficiary.

Disclaimer by beneficiary. A proposed beneficiary may renounce his interest under the trust by disclaimer addressed to the trustee, or by setting up, with notice of the trust, a claim inconsistent therewith.

10. Who may be trustee. Every person capable of holding property may be a trustee; but, where the trust involves the exercise of discretion, he cannot execute it unless he is competent to contract.

[1] See section 11 of the Contract Act, 1872 (9 of 1872).

No one bound to accept trust. No one is bound to accept a trust.

Acceptance of trust. A trust is accepted by any words or acts of the trustee indicating with reasonable certainty such acceptance.

Disclaimer of trust. Instead of accepting a trust, the intended trustee may, within a reasonable period, disclaim it, and such disclaimer shall prevent the trust-property from vesting in him.

A disclaimer by one of two or more co-trustees vests the trust-property in the other or others, and makes him or them sole trustee or trustees from the date of the creation of the trust.

Illustrations

(a) A bequeaths certain property to B and C, his executors, as trustees for D, B and C prove A's will. This is in itself an acceptance of the trust, and B and C hold the property in trust for D.

(b) A transfers certain property to B in trust to sell it and to pay out of the proceeds A's debts. B accepts the trust and sells the property. So far as regards B, a trust of the proceeds is created for A's creditors.

(c) A bequeaths a lakh of rupees to B upon certain trusts and appoints him his executor. B severs the lakh from the general assets and appropriates it to the specific purpose. This is an acceptance of the trust.

CHAPTER III

OF THE DUTIES AND LIABILITIES OF TRUSTEES

11. Trustee to execute trust. The trustee is bound to fulfil the purpose of the trust, and to obey the directions of the author of the trust given at the time of its creation, except as modified by the consent of all the beneficiaries being competent to contract.

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Where the beneficiary is incompetent to contract, his consent may, for the purposes of this section, be given by a principal Civil Court of original jurisdiction.

Nothing in this section shall be deemed to require a trustee to obey any direction when to do so would be impracticable, illegal or manifestly injurious to the beneficiaries.

Explanation.—Unless a contrary intention be expressed, the purpose of a trust for the payment of debts shall be deemed to be—

(a) to pay only the debts of the author of the trust existing and recoverable at the date of the instrument of trust, or, when such instrument is a will, at the date of his death, and

(b) in the ease of debts not bearing interest, to make such payment without interest.

Illustrations

(a) A, a trustee, is simply authorized to sell certain land by public auction. He cannot sell the land by private contract.

(b) A, a trustee of certain land for X, Y and Z, is authorized to sell the land to B for a specified sum. X, Y and Z, being competent to contract, consent that A may sell the land to C for a less sum. A may sell the land accordingly.

(c) A, a trustee for B and her children, is directed by the author of the trust to lend, on B's request, trust-property to B's husband, C, on the security of his bond. C becomes insolvent and B requests A to make the loan. A may refuse to make it.

12. Trustee to inform himself of state of trust-property. A trustee is bound to acquaint himself, as soon as possible, with the nature and circumstances of the trust-property; to obtain, where necessary, a transfer of the trust-property to himself; and (subject to the provisions of the instrument of trust) to get in trust-moneys invested on insufficient or hazardous security.

Illustrations

(a) The trust-property is a debt outstanding on personal security. The instrument of trust gives the trustee no discretionary power to leave the debt so outstanding. The trustee's duty is to recover the debt without unnecessary delay.

(b) The trust-property is money in the hands of one of two co-trustees. No discretionary power is given by the instrument of trust. The other co-trustee must not allow the former to retain the money for a longer period than the circumstances of the case required.

13. Trustee to protect title to trust-property. A trustee is bound to maintain and defend all such suits, and (subject to the provisions of the instrument of trust) to take such other steps as, regard being had to the nature and amount or value of the trust-property, may be reasonably requisite for the preservation of the trust-property and the assertion or protection of the title thereto.

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Illustration

The trust-property is immoveable property which has been given to the author of the trust by an unregistered instrument. Subject to the provisions of the [1]Indian Registration Act, 1877, (III of 1877), the trustee's duty is to cause the instrument to be registered.

14. Trustee not to set up title adverse to beneficiary. The trustee must not for himself or another set up or aid any title to the trust-property adverse to the interest of the beneficiary.

15. Care required from trustee. A trustee is bound to deal with the trust-property as carefully as a man of ordinary prudence would deal with such property if it were his own; and, in the absence of a contract to the contrary, a trustee so dealing is not responsible for the loss, destruction or deterioration of the trust-property.

[1]See now the Registration Act, 1908 (16 of 1908)

Illustrations

(a) A, living in [1][Lahore] is a trustee for B, living in [2][Karachi]. A remits trust-funds to B by bills drawn by a person of undoubted credit in favour of the trustee as such, and payable at [2][Karachi]. The bills are dishonoured. A is not bound to make good the loss.

(b) A, a trustee of leasehold property, directs the tenant to pay the rents on account of the trust to a banker, B, then in credit. The rents are accordingly paid to B, and A leaves the money with B only till wanted. Before the money is drawn out, B becomes insolvent. A, having had no reason to believe that B was in insolvent circumstances, is not bound to make good the loss.

(c) A, a trustee of two debts for B, releases one and compounds the other, in good faith, and reasonably believing that it is for B's interest to do so. A is not bound to make good any loss caused thereby to B.

(d) A, a trustee directed to sell the trust-property by auction, sells the same, but does not advertise the sale and otherwise fails in reasonable diligence in inviting competition. A is bound to make good the loss caused thereby to the beneficiary.

(e) A, a trustee for B, in execution of his trust, sells the trust-property, but from want of due diligence on his part fails to receive part of the purchase money. A is bound to make good the loss thereby caused to B.

(f) A, a trustee for B of a policy of insurance, has funds in hand for payment of the premiums. A neglects to pay the premiums, and the policy is consequently forfeited. A is bound to make good the loss to B.

(g) A bequeaths certain moneys to B and C as trustees, and authorizes them to continue trust- moneys upon the personal security of a certain firm in which A had himself invested them. A dies, and a change takes place in the firm. B and C must not permit the moneys to remain upon the personal security of the new firm.

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(h) A, a trustee for B, allows the trust to be executed solely by this co-trustee, C. C misapplies the trust-property. A is personally answerable for the loss resulting to B.

16. Conversion of perishable property. Where the trust is created for the benefit of several persons in succession, and the trust-property is of a wasting nature or a future or reversionary interest, the trustee is bound, unless an intention to the contrary may be inferred from the instrument of trust, to convert the property into property of a permanent and immediately profitable character.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "Chittagong", which was previously subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., for "Calcutta" (with effect from the 14th October, 1955).

[2]Subs. by Ord. 21 of 1960, s. 3 and 2nd Sch., for "Bombay" (with effect from the 14th October. 1955).

Illustrations

(a) A bequeaths to B all his property in trust for C during his life, and on his death for D and on D's death for E. A's property consists of three leasehold houses, and there is nothing in A's will to show that he intended the houses to be enjoyed in specie. B should sell the houses, and invest the proceeds in accordance with section 20.

(b) A bequeaths to B his three leasehold houses in [1][Quetta] and all the furniture therein in trust for C during his life, and on his death for D, and on D's death for E. Here an intention that the houses and furniture should be enjoyed in specie appears clearly, and B should not sell them.

17. Trustee to be impartial. Where there are more beneficiaries than one, the trustee is bound to be impartial, and must not execute the trust for the advantage of one at the expense of another.

Where the trustee has a discretionary power, nothing in this section shall be deemed to authorize the Court to control the exercise reasonably and in good faith of such discretion.

Illustration

A, a trustee for B, C and D, is empowered to choose between several specified modes of investing the trust-property. A in good faith chooses one of these modes. The Court will not interfere, although the result of the choice may be to vary the relative rights of B, C and D.

18. Trustee to prevent waste. Where the trust is created for the benefit of several persons in succession and one of them is in possession of the trust property, if he commits, or threatens to commit, any act which is destructive or permanently injurious thereto, the trustee is bound to take measures to prevent such act.

19. Accounts and information. A trustee is bound (a) to keep clear and accurate accounts of the trust-property, and (b), at all reasonable times, at the request of the beneficiary, to furnish him with full and accurate information as to the amount and state of the trust-property.

20. Investment of trust-money. Where the trust-property consists of money and cannot be applied immediately or at an early date to the purposes of the trust, the trustee is bound (subject to any direction contained in the instrument of trust) to invest the money on the following securities, and on no other :—

(a) in promissory notes, debentures, stock or other securities [2][of any [3][Provincial Government] or] of the [4][Federal Government], or of the United Kingdom of Great Britain and Ireland:

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and 2nd Sch., for "Chittagong", which was previously subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch., for "Calcutta" (with effect from the 14th October, 1955).

[2]Ins. by the Repealing and Amending Act, 1920 (31 of 1920), s. 2 and Sch. I.

[3]Subs. by A. O., 1937, for "Local Government".

[4]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government", which was previously subs. by A. O., 1937, for "Government of India", to read as above.

[1][Provided that securities, both the principal whereof and the interest whereon shall have been fully and unconditionally guaranteed by any such Government, shall be deemed, for the purposes of this clause, to be securities of such Government;]

(b) in bonds, debentures and annuities [2][charged or secured [3][before the 15th August, 1947] by the [4][parliament of the United Kingdom] on the revenues of India or of the [5][Governor-General in Council] or of any Province] :

[6][Provided that, after the fifteenth day of February, 1916, no money shall be invested in any such annuity being a terminable annuity unless a sinking fund has been established in connection with such annuity; but nothing in this proviso shall apply to investments made before the date aforesaid ;]

[6][(bb) in India three and a half per cent stock, India three per cent. stock, India two and a half percent. stock or any other capital stock which [16][was at any time] issued by the Secretary of State for India in Council under the authority of an Act of Parliament [7][of the United Kingdom] and charged on the revenues of India [8][or which [17][was] issued by the Secretary of State on behalf of the Governor- General in Council under the provisions of Part XIII of the Government of India Act, 1935(26 Geo. 5, ch.2.] ;]

(c) in stock or debentures of, or shares in, Railway or other Companies the interest whereon shall have been guaranteed by the Secretary of State for India in Council [6][or by the [9][Federal Government]] [10][or in debentures of the Bombay [11][Provincial] Co-operative Bank Limited, the interest whereon shall have been guaranteed, by the Secretary of State for India in Council] [8][or the Provincial Government of Bombay] :

[12][Provided that after the 31st day of March, 1949 no trustee shall invest the money in debentures of the Bombay Provincial Co-operative Bank Limited;]

[13][(d) in debentures or other securities for money issued, under the authority of any [14][Central Act or Act] of a Legislature established in [15][a Province] by or on behalf of any municipal body, port trust or city improvement trust in any Presidency-town, or in Rangoon Town, or by or on behalf of the trustees of the port of Karachi:]

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[1]Proviso ins. by the Indian Trusts (Amdt.) Act, 1934 (18 of 1934), s. 2.

[2]Subs. by A. O., 1937, for "charged by the Imperial Parliament on the revenues of India".

[3]Ins. by A. O., 1949, Sch.

[4]Subs. by A. O., 1961, Art, 2 and Sch., for "Imperial Parliament" (with effect from the 23rd March, 1956).

[5]Subs. by A. O., 1949, Sch., for "Federation".

[6]Ins. by the Indian Trusts (Amdt.) Act, 1916 (1 of 1916), s. 2.

[7]Ins. ibid. (with effect from the 23rd March, 1956).

[8]Ins. by A. O., 1937.

[9]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" which was previously subs. by A. O., 1937, for "Government of India", to read as above.

[10]Ins. by the Indian Trusts (Amdt.) Act., 1917 (21 of 1917), s. 2.

[11]Subs. by the Repealing and Amending Act, 1925, (37 of 1925), s. 2 and Sch. I. for "Central".

[12]Proviso ins. by A. O., 1949, Sch.

[13]Subs. by the Indian Trusts (Amdt.) Act, 1908 (3 of 1908), s. 2, for the original clause.

[14]Subs. by A. O., 1949, Sch., for "Act".

[15]Subs. ibid., for "British India".

[16]Subs. by A.O., 1961, Art.2 and Sch., for "may at any time have after be", (*with effect from the 23, March, 1956*)

[17]Subs. by *ibid.*, for "may be (*with effect from the 23, March, 1956*)

[1][Provided that after the 31st day of March, 1949 no trustee shall invest the money in any securities issued by or on behalf of a municipal body, port trust or city improvement trust in any Presidency-town, or in Rangoon Town ;]

(e) on a first mortgage of immoveable property situate in [2][a Province] : Provided that the property is not a leasehold for a term of years and that the value of the property exceeds by one-third, or, if consisting of buildings, exceeds by one-half, the mortgage-money; or

(f) on any other security expressly authorized by the instrument of trust, or by any rule which the High Court may from time to time prescribe in this behalf [;or][3]

[3][(g) in bonds, redeemable capital, debt securities or instruments issued by the Pakistan Water and Power Development Authority and in listed securities subject to the conditions as may be prescribed by the Government [;or][4]

[4][(h) in units issued by schemes established under the Asset Management Companies Rules, 1995.]

Provided that, where there is a person competent to contract and entitled in possession to receive the income of the trust-property for his life, or for any greater estate, no investment on any security mentioned or referred to in clauses (d), (e) and (f) shall be made without his consent in writing.

[5]**[20A. Power to purchase redeemable stock at a premium.**— (1)A trustee may invest in any of the securities mentioned or referred to in section 20, notwithstanding that the same may be redeemable and that the price exceeds the redemption value:

Provided that a trustee may not purchase at a price exceeding its redemption value any security mentioned or referred to in clauses (c) and (d) of section 20 which is liable to be redeemed within fifteen years of the date of purchase at par or at some other fixed rate, or purchase any such security as is mentioned or referred to in the said clauses which is liable to be redeemed at par or at some other fixed rate at a price exceeding fifteen per centum above par or such other fixed rate.

(2) A trustee may retain until redemption any redeemable stock, fund or security which may have been purchased in accordance with this section.]

21. Mortgage of land pledged to Government under Act XIX of 1883. Deposit in Government Savings Bank. Nothing in section 20 shall apply to investments made before this Act comes into force, or shall be deemed to preclude an investment on a mortgage of immoveable property already pledged as security for and advance under the [6][Land Improvement Loans Act, 1883], or, in case the trust-money does not exceed three thousand rupees, a deposit thereof in a Government Savings Bank.

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[1]Proviso ins. by A. O., 1949, Sch.
[2]Subs. by the Federal Laws (Revision and Declaration) Act, 1951 (26 of 1951), s. 4 and 3rd Sch., for "the Provinces and the Capital of the Federation" which were subs. by A.O., 1949, Arts. 3(2) and 4, for "British India".
[3]Subs. & added by Act. XII of 1994, s.2.
[4]Subs. & added by Finance Act 3 of 1998, s.2.
[5]S. 20A ins. by the Indian Trusts (Amdt.) Act, 1916 (1 of 1916), s. 3.
[6]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981, (2 of 1981), s.3 and 2nd Schedule., for "Local Improvement Act, 1871".

22. Sale by trustee directed to sell within specified time. Where a trustee, directed to sell within a specified time extends such time, the burden of proving, as between himself and the beneficiary, that the latter is not prejudiced by the extension lies upon the trustee, unless the extension has been authorized by a principal Civil Court of original jurisdiction.

Illustration

A bequeaths property to B, directing him with all convenient speed and within five years to sell it, and apply the proceeds for the benefit of C. In the exercise of reasonable discretion, B postpones the sale for six years. The sale is not thereby rendered invalid, but C, alleging that he has been injured by the postponement, institutes a suit against B to obtain compensation. In such suit the burden of proving that C has not been injured lies on B.

23. Liability for breach of trust. Where the trustee commits a breach of trust, he is liable to make good the loss which the trust-property or the beneficiary has thereby sustained, unless the beneficiary has by fraud induced the trustee to commit the breach, or the beneficiary, being competent to contract, has himself, without coercion or undue influence having been brought to bear on him, concurred in the breach, or subsequently acquiesced therein, with full knowledge of the facts of the case and of his rights as against the trustee.

A trustee committing a breach of trust is not liable to pay interest except in the following cases: -

(a) where he has actually received interest:

(b) where the breach consists in unreasonable delay in paying trust-money to the beneficiary:

(c) where the trustee ought to have received interest, but has not done so :

(d) where he may be fairly presumed to have received interest.

He is liable in case (a), to account for the interest actually received, and, in cases (b), (c) and (d), to account for simple in terest at the rate of six per cent. per annum, unless the Court otherwise directs.

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(e) where the breach consists in failure to invest trust- money and to accumulate the interest or dividends thereon, he is liable to account for compound interest (with half-yearly rests) at the same rate.

(f) where the breach consists in the employment of trust property or the proceeds thereof in trade or business, he is liable to account, at the option of the benefi ciary, either for compound interest (with half-yearly rests) at the same rate, or for the net profits made by such employment.

Illustrations

(a) A trustee improperly leaves trust-property outstanding, and it is consequently lost: he is liable to make good the property lost, but he is not liable to pay interest thereon.

(b) A bequeaths a house to B in trust to sell it and pay the proceeds to C. B neglects to sell the house for a great length of time, whereby the house is deteriorated and its market price falls. B is answerable to C for the loss.

(c) A trustee is guilty of unreasonable delay in investing trust-money in accordance with section 20, or in paying it to the beneficiary. The trustee is liable to pay interest thereon for the period of the delay.

(d) The duty of the trustee is to invest trust-money in any of the securities mentioned in section 20, clause (a), (b), (c) or (d). Instead of so doing, he retains the money in his hands. He is liable, at the option of the beneficiary, to be charged either with the amount of the principal money and interest, or with the amount of such securities as he might have purchased with the trurt-money when the investment should have been made, and the intermediate dividends and interest thereon.

(e) The instrument of trust directs the trustee to invest trust-money either in any such securities or on mortgage of Immoveable property. The trustee does neither. He is liable for the principal money and interest.

(f) The instrument of trust directs the trustee to invest trust-money in any of such securities and to accumulate the dividends thereon. The trustee disregards the direction. He is liable, at the option of the beneficiary, to be charged either with the amount of the principal money and compound interest, or with the amount of such securities as he might have purchased with the trust-money when the investment should have been made, together with the amount of the accumulation which would have arisen from a proper investment of the intermediate dividends.

(g) Trust-property is invested in one of the securities mentioned in section 20, clause (a), (b), (c) or (d). The trustee sells such security for same puropose not authorized by the terms of the instrument of trust. He is liable, at the option of the beneficiary, either to replace the security with the intermediate dividends and interest thereon, or to account for the proceeds of the sale with interest thereon.

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(h) The trust-property consists of land. The trustee sells the land to a purchaser for a consideration without notice of the trust. The trustee is liable, at the option of the beneficiary, to purchase other land of equal value to be settled upon the like trust, or to be charged with the proceeds of the sale with interest.

24. No set-off allowed to trustee. A trustee who is liable for a loss occasioned by a breach of trust in respect of one portion of the trust-property cannot set-off against his liability a gain which has accrued to another portion of the trust-property through another and distinct breach of trust.

25. Non-liability for predecessor's default. Where a trustee succeeds another, he is not, as such, liable for the acts or defaults of his predecessor.

26. Non-liability for co-trustee's default. Subject to the provisions of sections 13 and 15, one trustee is not, as such, liable for a breach of trust committed by his co-trustee:

Provided that, in the absence of an express declaration to the contrary in the instrument of trust,

a trustee is so liable—

(a) where he has delivered trust-property to his co-trustee without seeing to its proper application:

(b) where he allows his co-trustee to receive trust-property and fails to make due enquiry as to the co-trustee's dealings therewith or allows him to retain it longer than the circumstances of the case reasonably require:

(c) where he becomes aware of a breach of trust committed or intended by his co-trustee, and either actively conceals it or does not within a reasonable time take proper steps to protect the beneficiary's interest.

Joining in receipt for conformity. A co-trustee who joins in signing a receipt for trust-property and proves that he has not received the same is not answerable, by reason of such signature only, for loss or misapplication of the property by his co-trustee.

Illustration

A bequeaths certain property to B and C, and directs them to sell it and invest the proceeds for the benefit of D. B and C accordingly sell the property, and the purchase-money is received by B and retained in his hands. C pays no attention to the matter for two years, and then calls on B to make the investment. B is unable to do so, becomes insolvent, and the purchase-money is lost. C may be compelled to make good the amount.

27. Several liability of co-trustees. Where co-trustees jointly commit a breach of trust, or where one of them by his neglect enables the other to commit a breach of trust, each is liable to the beneficiary for the whole of the loss occasioned by such breach.

Contribution as between co-trustees. But as between the trustees themselves, if one be less guilty than another and has had to refund the loss, the former may compel the latter, or his legal representative to the extent of the assets he has received, to make good such loss; and, if all be equally guilty, anyone or more of the trustees who has had to refund the loss may compel the others to contribute.

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Nothing in this section shall be deemed to authorize a trustee who has been guilty of fraud to institute a suit to compel contribution.

28. Non-liability of trustee paying without notice of transfer by beneficiary. When any beneficiary's interest becomes vested in another person, and the trustee, not having notice of the vesting, pays or delivers trust-property to the person who would have been entitled thereto in the absence of such vesting, the trustee is not liable for the property so paid or delivered.

29. Liability of trustee where beneficiary's interest is forfeited to the Government. When the beneficiary's interest is forfeited or awarded by legal adjudication [1][to the Government], the trustee is bound to hold the trust-property to the extent of such interest for the benefit of such person in such manner as [2][the Provincial Government] may direct in this behalf.

[1]The words "to Government" have successively been amended by A.O., 1937 and A.O., 1961, Art. 2 (with effect from the 23rd March, 1956) to read as above.
[2]Subs. by A.O., 1937, for "the Government".

30. Indemnity of trustees. Subject to the provisions of the instrument of trust and of sections 23 and 26, trustees shall be respectively chargeable only for such moneys, stocks, funds and securities as they respectively actually receive and shall not be answerable the one for the other of them, nor for any banker, broker or other person in whose hands any trust-property may be placed, nor for the insufficiency or deficiency of any stocks, funds or securities, nor otherwise for involuntary losses.

CHAPTER IV

OF THE RIGHTS AND POWERS OF TRUSTEES

31. Right to title-deed. A trustee is entitled to have in his possession the instrument of trust and all the documents of title (if any) relating solely to the trust -property.

32. Right to reimbursement of expenses. Every trustee may reimburse himself, or pay or discharge out of the trust-property, all expenses properly incurred in or about the execution of the trust, or the realization, preservation or benefit of the trust-property, or the protection or support of the beneficiary.

If he pays such expenses out of his own pocket, he has a first charge upon the trust-property for such expenses and interest thereon; but such charge (unless the expenses have been incurred with the sanction of a principal Civil Court of original jurisdiction shall be enforced only by prohibiting any disposition of the trust-property without previous payment of such expenses and interest.

If the trust-property fail, the trustee is entitled to recover from the beneficiary personally on whose behalf he acted, and at whose request, expressed or implied, he made the payment, the amount of such expenses.

Right to be recouped for erroneous over-payment. Where a trustee has by mistake made an over-payment to the beneficiary, he may reimburse the trust-property out of the beneficiary's interest. If such interest fail, the trustee is entitled to recover from the beneficiary personally the amount of such over-payment.

33. Right to indemnity from gainer by breach of trust. A person other than a trustee who has gained an advantage from a breach of trust must indemnify the trustee to the extent of the amount actually received by such person under the breach; and where he is a beneficiary the trustee has a charge on his interest for such amount.

Nothing in this section shall be deemed to entitle a trustee to be indemnified who has, in committing the breach of trust, been guilty of fraud.

34. Right to apply to Court for opinion in management of trust-property. Any trustee may, without instituting a suit, apply by petition to a principal Civil Court of original jurisdiction for its opinion, advice or direction on any present questions respecting the management or administration of the trust-property other than questions of detail, difficulty or importance, not proper in the opinion of the Court for summary disposal.

A copy of such petition shall be served upon, and the hearing thereof may be attended by, such of the persons interested in the application as the Court thinks fit.

The trustee stating in good faith the facts in such petition and acting upon the opinion, advice or direction given by the Court shall be deemed, so far as regards his own responsibility, to have

discharged his duty as such trustee in the subject matter of the application.

The costs of every application under this section shall be in the discretion of the Court to which it is made.

35. Right to settlement of accounts. When the duties of a trustee, as such, are completed, he is entitled to have the accounts of his administration of the trust-property examined and settled; and, where nothing is due to the beneficiary under the trust, to an acknowledgment in writing to that effect.

36. General authority of trustee. In addition to the powers expressly conferred by this Act and by the instrument of trust, and subject to the restrictions, if any, contained in such instrument, and to the provisions of section 17, a trustee may do all acts which are reasonable and proper for the realization, protection or benefit of the trust-property, and for the protection or support of a beneficiary who is not competent to contract.

[1]* * * * * * *

Except with the permission of a principal Civil Court of original jurisdiction, no trustee shall lease trust-property for a term exceeding twenty-one years from the date of executing the lease, nor without reserving the best yearly rent that can be reasonably obtained.

37. Power to sell in lots, and either by public auction or private contract. Where the trustee is empowered to sell any trust-property, he may sell the same subject to prior charges or not, and either together or in lots, by public auction or private contract, and either at one time or at several times, unless the instrument of trust otherwise directs.

38. Power to sell under special conditions. The trustee making any such sale may insert such reasonable stipulations either as to title or evidence of title, or otherwise, in any conditions of sale or contract for sale, as he thinks fit; and may also buy in the property or any part thereof at any sale by auction, and rescind or vary any contract for sale, and

Power to buy in and re-sell. re-sell the property so bought in, or as to which the contract is so rescinded, without being responsible to the beneficiary for any loss occasioned thereby.

Time allowed for selling trust-property. Where a trustee is directed to sell trust-property or to invest trust-money in the purchase of property, he may exercise a rea sonable discretion as to the time of effecting the sale or purchase.

Illustrations

(a) A bequeaths property to B, directing him to sell it with all convenient speed and pay the proceeds to C. This does not render an immediate sale imperative.

(b) A bequeaths property to B, directing him to sell it at such time and in such manner as he shall think fit and invest the proceeds for the benefit of C. This does not authorize B, as between him and C, to postpone the sale to an indefinite period.

39. Power to convey. For the purpose of completing any such sale, the trustee shall have power to convey or otherwise dispose of the property sold in such manner as may be necessary.

[1]The second paragraph of this section was repealed by the Amending Act, 1891 (12 of 1891), s. 2 and Sch. I.

40. Power to vary investments. A trustee may, at his discretion, call in any trust-property invested in any security and invest the same on any of the securities mentioned or referred to in section 20, and from time to time vary any such investments for others of the same nature:

Provided that, where there is a person competent to contract and entitled at the time to receive the income of the trust-property for his life, or for any greater estate, no such change of investment shall be made without his consent in writing.

41. Power to apply property of minors, etc., for their maintenance, etc. Where any property is held by a trustee in trust for a minor, such trustee may, at his discretion, pay to the guardians (if any) of such minor, or otherwise apply for or towards his maintenance or education or advancement in life, or the reasonable expenses of his religious worship, marriage or funeral, the whole or any part of the income to which he may be entitled in respect of such property; and such trustee shall accumulate all the residue of such income by way of compound interest by investing the same and the resulting income thereof from time to time in any of the securities mentioned or referred to in section 20, for the benefit of the person who shall ultimately become entitled to the property from which such accumulations have arisen:

Provided that such trustee may, at any time, if he thinks fit, apply the whole or any part of such accumulations as if the same were part of the income arising in the then current year.

Where the income of the trust-property is insufficient for the minor's maintenance or education or advancement in life, or the reasonable expenses of his religious worship, marriage or funeral, the trustee may, with the permission of a principal Civil Court of original jurisdiction, but not otherwise, apply the whole or any part of such property for or towards such maintenance, education, advancement or expenses.

Nothing in this section shall be deemed to affect the provisions of any local law for the time being in force relating to the persons and property of minors.

42. Power to give receipts. Any trustees or trustee may give a receipt in writing for any money, securities or other moveable property payable, transferable or deliverable to them or him by reason, or in the exercise, of any trust or power; and, in the absence of fraud, such receipt shall discharge the person paying, transferring or delivering the same therefrom, and from seeing to the application thereof, or being accountable for any loss or misapplication thereof.

43. Power to compound, etc. Two or more trustees acting together may, if and as they think fit,

(a) accept any composition or any security for any debt or for any property claimed;

(b) allow any time for payment of any debt;

(c) compromise, compound, abandon, submit to arbitration or otherwise settle any debt, account, claim or thing whatever relating to the trust; and

(d) for any of those purposes, enter into, give, execute and do such agreements, instruments of composition or arrangement, releases and other things as to them seem expedient, without being responsible for any loss occasioned by any act or thing so done by them in good faith.

The powers conferred by this section on two or more trustees acting together may be exercised

by a sole acting trustee when by the instrument of trust, if any, a sole trustee is authorized to execute the trusts and powers thereof.

This section applies only if and as far as a contrary intention is not expressed in the instrument of trust, if any, and shall have effect subject to the terms of that instrument and to the provisions therein contained.

This section applies only to trusts created after this Act comes into force.

44. Power to several trustees of whom one disclaim or dies. When an authority to deal with the trust-property is given to several trustees and one of them disclaims or dies, the authority may be exercised by the continuing trustees, unless from the terms of the instrument of trust it is apparent that the authority is to be exercised by a number in excess of the number of the remaining trustees.

45. Suspension of trustee's powers by decree. Where a decree has been made in a suit for the execution of a trust, the trustee must not exercise any of his powers except in conformity with such decree, or with the sanction of the Court by which the decree has been made, or, where an appeal against the decree is pending, of the Appellate Court.

CHAPTER V

OF THE DISABILITIES OF TRUSTEES

46. Trustee cannot renounce after acceptance. A trustee who has accepted the trust cannot afterwards renounce it except (a) with the permission of a principal Civil Court of original jurisdiction, or (b) if the beneficiary is com petent to contract, with his consent, or (c) by virtue of a special power in the instrument of trust.

47. Trustee cannot delegate. A trustee cannot delegate his office or any of his duties either to a co-trustee or to a stranger, unless (a) the instrument of trust so provides, or (b) the delegation is in the regular course of business, or (c) the delegation is necessary, or (d) the beneficiary, being competent to contract, consents to the delegation.

Explanation. The appointment of an attorney or proxy to do an act merely ministerial and involving no independent discretion is not a delegation within the meaning of this section.

THE PAKISTAN CODE

Illustrations

(a) A bequeaths certain property to B and C on certain trusts to be executed by them or the survivor of them or the assigns of such survivor. B dies. C may bequeath the trust- property to D and E upon the trusts of A's will.

(b) A is a trustee of certain property with power to sell the same. A. may employ an auctioneer to effect the sale.

(c) A bequeaths to B fifty houses let at monthly rents in trust to collect the rents and pay them to C. B may employ a proper person to collect these rents.

48. Co-trustees cannot act singly. When there are more trustees than one, all must join in the execution of the trust, except where the instrument of trust otherwise provides.

49. Control of discretionary power. Where a discretionary power conferred on a trustee is not exercised reasonably and in good faith, such power may be controlled by a principal Civil Court

of original jurisdiction.

50. Trustee may not charge for services. In the absence of express directions to the contrary contained in the instrument of trust or of a contract to the contrary entered into with the beneficiary or the Court at the time of accepting the trust, a trustee has no right to remuneration for his trouble, skill and loss of time in executing the trust.

Nothing in this section applies to any Official Trustee, Administrator General Public Curator or person holding a certificate of administration.

51. Trustee may not use trust property for his own profit. A trustee may not use or deal with the trust-property for his own profit or for any other purpose unconnected with the trust.

52. Trustee for sale or this agent may not buy. No trustee whose duty it is to sell trust-property, and no agent employed by such trustee for the purpose of the sale, may, directly or indirectly, buy the same or any interest therein, on his own account or as agent for a third person.

53. Trustee may not buy beneficiary's interest without permission. No trustee, and no person who has recently ceased to be a trustee, may, without the permission of a principal Civil Court of original jurisdiction, buy or become mortgagee or lessee of the trust-property or any part thereof; and such permission shall not be given unless the proposed purchase, mortgage or lease is manifestly for the advantage of the beneficiary.

Trustee for purchase. And no trustee whose duty it is to buy or to obtain a mortgage or lease of particular property for the beneficiary may buy it, or any part thereof, or obtain a mortgage or lease of it, or any part thereof, for himself.

54. Co-trustees may not lend to one of themselves. A trustee or co-trustee whose duty it is to invest trust-money on mortgage or personal security must not invest it on mortgage by, or on the personal security of, himself or one of his co-trustees.

CHAPTER VI

OF THE RIGHTS AND LIABILITIES OF THE BENEFICIARY

THE PAKISTAN CODE

55. Rights to rents and profits. The beneficiary has, subject to the provisions of the instrument of trust, a right to the rents and profits of the trust property.

56. Right to specific execution. The beneficiary is entitled to have the intention of the author of the trust specifically executed to the extent of the beneficiary's interest;

Right to transfer of possession. and, where there is only one beneficiary and he is competent to contract, or where there are several beneficiaries and they are competent to contract and all of one mind, he or they may require the trustee to transfer the trust-property to him or them, or to such person as he or they may direct.

When property has been transferred or bequeathed for the benefit of a married woman, so that she shall not have power to deprive herself of her beneficial interest, nothing in the second clause of this section applies to such property during her marriage.

Illustrations

(a) Certain Government securities are given to trustees upon trust to accumulate the interest until A attains the age of 24, and then to transfer the gross amount to him. A on attaining majority may, as the person exclusively interested in the trust-property, require the trustees to transfer it immediately to him.

(b) A bequeaths Rs. 10,000 to trustees upon trust to purchase an annuity for B, who has attained his majority and is otherwise competent to contract. B may claim Rs. 10,000.

(c) A transfers certain property to B and directs him to sell or invest it for the benefit of C, who is competent to contract. C may elect to take the property in its original character.

57. Rights to inspect and take copies of instrument of trust, accounts, etc. The beneficiary has a right, as against the trustee and all persons claiming under him with notice of the trust, to inspect and take copies of the instrument of trust, the documents of title relating solely to the trust- property, the accounts of the trust-property and the vouchers (if any) by which they are supported, and the cases submitted and opinions taken by the trustee for his guidance in the discharge of his duty.

58. Right to transfer beneficial interest. The beneficiary, if competent to contract, may transfer his interest, but subject to the law for the time being in force as to the circumstances and extent in and to which he may dispose of such interest:

Provided that when property is transferred or bequeathed for the benefit of a married woman, so that she shall not have power to deprive herself of her beneficial interest, nothing in this section shall authorize her to transfer such interest during her marriage.

59. Right to sue for execution of trust. Where no trustees are appointed or all the trustees die, disclaim, or are discharged, or where for any other reason the execution of a trust by the trustee is or becomes impracticable, the beneficiary may institute a suit for the execution of the trust, and the trust shall, so far as may be possible, be executed by the Court until the appointment of a trustee or new trustee.

THE PAKISTAN CODE

60. Right to proper trustees. The beneficiary has a right (subject to the provisions of the instrument of trust) that the trust-property shall be properly protected and held and administered by proper persons and by a proper number of such persons.

Explanation I.—The following are not proper persons within the meaning of this section:—

A person domiciled abroad: an alien enemy: a person having an interest inconsistent with that of the beneficiary: a person in insolvent circumstances; and, unless the personal law of the beneficiary allows otherwise, a married woman and a minor.

Explanation II. When the administration of the trust involves the receipt and custody of money, the number of trustees should be two at least.

Illustrations

(a) A, one of several beneficiaries, proves that B, the trustee, has improperly disposed of part of the trust-property, or that the property is in danger from B's

being in insolvent circumstances, or that he is incapacitated from acting as trustee. A may obtain a receiver of the trust-property.

(b) A bequeaths certain jewels to B in trust for C. B dies during A's life-time; then A dies, C is entitled to have the property conveyed to a trustee for him.

(c) A conveys certain property to four trustees in trust for B. Three of the trustees die. B may institute a suit to have three new trustees appointed in the place of the deceased trustees.

(d) A conveys certain property to three trustees in trust for B. All the trustees disclaim. B may institute a suit to have three trustees appointed in place of the trustees so disclaiming.

(e) A, a trustee for B, refuses to act, or goes to reside permanently out of [1][Pakistan] or is declared an insolvent, or compounds with his creditors, or suffers a co-trustee to commit a breach of trust. B may institute a suit to have A removed and a new trustee appointed in his room.

61. Right to compel to any act of duty. The beneficiary has a right that his trustee shall be compelled to perform any particular act of his duty as such, and restrained from committing any contemplated or probable breach of trust.

Illustrations

(a) A contracts with B to pay him monthly Rs. 100 for the benefit of C. B writes and signs a letter declaring that he will hold in trust for C the money so to be paid. A fails to pay the money in accordance with his contract. C may compel B on a proper indemnity to allow C to sue on the contract in B's name.

(b) A is trustee of certain land, with a power to sell the same and pay the proceeds to B and C equally. A is about to make an improvident sale of the land. B may sue on behalf of himself and C for an injunction to restrain A from making the sale.

THE PAKISTAN CODE

62. Wrongful purchase by trustee. Where a trustee has wrongfully bought trust property, the beneficiary has a right to have the property declared subject to the trust or retransferred by the trustee, if it remains in his hands unsold, or, if it has been bought from him by any person with notice of the trust, by such person. But in such case the beneficiary must repay the purchase"'money paid by the trustee, with interest, and such other expenses (if any) as he has properly incurred in the preservation of the property; and the trustee or purchaser must (a) account for the net profits of the property, (b) be charged with an occupation"'rent, if he has been in actual possession of the property, and (c) allow the beneficiary to deduct a proportionate part of the purchase"'money if the property has been deteriorated by the acts or omissions of the trustee or purchaser.

Nothing in this section—

(a) impairs the rights of lessees and others who, before the institution of a suit to have the property declared subject to the trust or retransferred, have contracted in good faith with the trustee or purchaser; or

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces

and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3 (2) and 4, for "British India".

(b) entitles the beneficiary to have the property declared subject to the trust or retransferred where he, being competent to contract, has himself, without coercion or undue influence having been brought to bear on him, ratified the sale to the trustee with full knowledge of the facts of the case and of his rights as against the trustee.

63. Following trust-property into the hands of third persons; into that into which it has been converted. Where trust-property comes into the hands of a third person inconsistently with the trust, the beneficiary may require him to admit formally, or may institute a suit for a declaration, that the property is comprised in the trust.

Where the trustee has disposed of trust-property and the money or other property which he has received therefore can be traced in his hands, or the hands of his legal representative or legatee, the beneficiary has, in respect thereof, rights as merely as may be the same as his rights in respect of the original trust -property.

Illustrations

(a) A, a trustee for B of Rs. 10,000 wrongfully invests the Rs. 10,000 in the purchase of certain land. B is entitled to the land.

(b) A, a trustee, wrongfully purchases land in his own name, partly with his own money, partly with money subject to a trust for B. B is entitled to a charge on the land for the amount of the trust-money so misemployed.

64. Saving of rights of certain transferees. Nothing in section 63 entitles the beneficiary to any right in respect of property in the hands of—

(a) a transferee in good faith for consideration without having notice of the trust, either when the purchase-money was paid, or when the conveyance was executed, or

(b) a transferee for consideration from such a transferee.

A judgment-creditor of the trustee attaching and purchasing trust-property is not a transferee for consideration within the meaning of this section.

Nothing in section 63 applies to money, currency notes and negotiable instruments in the hands of a bona fide holder to whom they have passed in circulation, or shall be deemed to affect the Contract Act, 1872(IX of 1872), section 108, or the liability of a person to whom a debt or charge is transferred.

65. Acquisition by trustee of trust-property wrongfully converted. Where a trustee wrongfully sells or otherwise transfers trust"'property and afterwards himself becomes the owner of the property, the property again becomes subject to the trust, notwithstanding any want of notice on the part of intervening transferees in good faith for consideration.

66. Right in case of blended property. Where the trustee wrongfully mingles the trust-property with his own, the beneficiary is entitled to a charge on the whole fund for the amount due to him.

67. Wrongful employment by partner-trustee of trust-property for partnership

purposes. If a partner, being a trustee, wrongfully employs trust-property in the business, or on the account of the partnership, no other partner is liable therefore in his personal capacity to the beneficiaries, unless he had notice of the breach of trust.

The partners having such notice are jointly and severally liable for the breach of trust.

Illustrations

(a) A and B are partners. A dies, having bequeathed all his property to B in trust for Z and appointed B his sole executor. B, instead of winding up the affairs of the partnership, retains all the assets in the business. Z may compel him, as partner, to account for so much of the profits as are derived from A's share of the capital. B is also answerable to Z for the improper employment of A's assets.

(b) A, a trader, bequeaths his property to B in trust for C, appoints B his sole executor, and dies. B enters into partnership with X and Y in the same trade, and employs A's assets in the partnership business. B gives an indemnity to X and Y against the claims of C. Here X and Y are jointly liable with B to C as having knowingly become parties to the breach of trust committed by B.

68. Liability of beneficiary joining in breach of trust. Where one of several beneficiaries—

(a) joins in committing breach of trust, or

(b) knowingly obtains any advantage therefrom, without the consent of the other beneficiaries, or

(c) becomes aware of a breach of trust committed or intended to be committed, and either actually conceals it, or does not within a reasonable time take proper steps to protect the interests of the other beneficiaries, or

(d) has deceived the trustee and thereby induced him to commit a breach of trust,

the other beneficiaries are entitled to have all his beneficial interest impounded as against him and all who claim under him (otherwise than as transferees for consideration without notice of the breach) until the loss caused by the breach has been compensated.

When property has been transferred or bequeathed for the benefit of a married woman, so that she shall not have power to deprive herself of her beneficial interest, nothing in this section applies to such property during her marriage.

69. Rights and liabilities of beneficiary's transferee. Every person to whom a beneficiary transfers his interest has the rights, and is subject to the liabilities, of the beneficiary in respect of such interest at the date of the transfer.

CHAPTER VII

OF VACATING THE OFFICE OF TRUSTEE

70. Office how vacated. The office of a trustee is vacated by his death or by his discharge from his office.

71. Discharge of trustee. The trustee may be discharged from his office only as follows:—

(a) by the extinction of the trust;

(b) by the completion of his duties under the trust;

(c) by such means as may be prescribed by the instrument of trust;

(d) by appointment under this Act of a new trustee in his place;

(e) by consent of himself and the beneficiary, or, where there are more beneficiaries than one, all the beneficiaries being competent to contract; or

(f) by the Court to which a petition for his discharge is presented under this Act.

72. Petition to be discharge from trust. Notwithstanding the provisions of section 11, every trustee may apply by petition to a principal Civil Court of original jurisdiction to be discharged from his office; and, if the Court finds that there is sufficient reason for such discharge, it may discharge him accordingly, and direct his costs to be paid out of the trust property. But, where there is no such reason, the Court shall not discharge him, unless a proper person can be found to take his place.

73. Appointment of new trustees on death, etc. Whenever any person appointed a trustee disclaims, or any trustee, either original of substituted, dies, or is for a continuous period of six months absent from [1][Pakistan], or leaves [1][Pakistan] for the purpose of residing abroad, or is declared an insolvent, or desires to be discharged from the trust, or refuses or becomes, in the opinion of a principal Civil Court of original jurisdiction, unfit or personally incapable to act in the trust, or accepts an inconsistent trust, a new trustee may be appointed in his place by—

(a) the person nominated for that purpose by the instrument of trust (if any), or

(b) if there be no such person, or no such person able and willing to act, the author of the trust if he be alive and competent to contract, or the surviving or continuing trustees or trustee for the time being, or legal representative of the last surviving and continuing trustee, or (with the consent of the Court) the retiring trustees, if they all retire simultaneously, or (with the like consent) the last retiring trustee.

Every such appointment shall be by writing under the hand of the person making it.

On an appointment of a new trustee the number of trustees may be increased.

The Official Trustee may, with his consent and by the order of the Court, be appointed under this section, in any case in which only one trustee is to be appointed and such trustee is to be the sole trustee.

The provisions of this section relative to a trustee who is dead include the case of a person nominated trustee in a will but dying before the testator, and those relative to a continuing trustee include a refusing or retiring trustee if willing to act in the execution of the power.

[1]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which had been subs. by A. O., 1949, Arts. 3(2) and 4, for "British India".

74. Appointment by Court. Whenever any such vacancy or disqualification occurs and it is found impracticable to appoint a new trustee under section 73, the beneficiary may, without instituting a suit, apply by petition to a principal Civil Court of original jurisdiction for the appointment of a trustee or a new trustee, and the Court may appoint a trustee or a new trustee accordingly.

Rules for selecting new trustees. In appointing new trustees, the Court shall have regard (a) to the wishes of the author of the trust as expressed in or to be inferred from the instrument of trust; (b) to the wishes of the person, if any, empowered to appoint new trustees; (c) to the question whether the appointment will promote or impede the execution of the trust; and (d) where there are more beneficiaries than one, to the interests of all such beneficiaries.

75. Vesting of trust-property in new trustees. Whenever any new trustee is appointed under section 73 or section 74, all the trust"'property for the time being vested in the surviving or continuing trustees or trustee, or in the legal representative of any trustee, shall become vested in such new trustee, either solely or jointly with the surviving or continuing trustees or trustee, as the case may require.

Powers of new trustees. Every new trustee so appointed, and every trustee appointed by a Court, either before or after the passing of this Act, shall have the same powers, authorities and discretions, and shall in all respects act, as if he had been originally nominated a trustee by the author of the trust.

76. Survival of trusts. On the death or discharge of one of several co-trustees, the trust survives and the trust-property passes to the others, un less the instrument of trust expressly declares otherwise.

CHAPTER VIII

OF THE EXTINCTION OF TRUSTS

77. Trust how extinguished. A trust is extinguished—

(a) when its purpose is completely fulfilled; or

(b) when its purpose becomes unlawful; or

(c) when the fulfillment of its purpose becomes impossible by destruction of the trust- property or otherwise; or

(d) when the trust, being revocable, is expressly revoked.

78. Revocation of trust. A trust created by will may be revoked at the pleasure of the testator.

A trust otherwise created can be revoked only—

(a) where all the beneficiaries are competent to contract -by their consent;

(b) where the trust has been declared by a non-testamentary instrument or by word of mouth- in exercise of a power of revocation expressly reserved to the author of the trust; or

(c) where the trust is for the payment of the debts of the author of the trust, and has not been communicated to the creditors-at the pleasure of the author of the trust.

Illustration

A conveys property to B in trust to sell the same and pay out of the proceeds the claims of A's creditors. A reserves no power of revocation. If no communication has been made to the creditors, A may revoke the trust. But if the creditors are parties to the arrangement, the trust cannot be revoked without their consent.

79. Revocation not to defeat what trustees have duly done. No trust can be revoked by the author of the trust so as to defeat or prejudice what the trustees may have duly done in execution of the trust.

CHAPTER IX

OF CERTAIN OBLIGATIONS IN THE NATURE OF TRUSTS

80. Where obligation in nature of trust is created. An obligation in the nature of a trust is created in the following cases.

81. Where it does not appear that transferor intended to dispose of beneficial interests. Where the owner of property transfers or bequeaths and it cannot be inferred consistently with the attendant circumstances that he intended to dispose of the beneficial interest therein, the transferee or legatee must hold such property for the benefit of the owner or his legal representative.

Illustrations

(a) A conveys land to B without consideration and declares no trust of any part. It cannot, consistently with the circumstances under which the transfer is made, be inferred that A intended to transfer the beneficial interest in the land. B holds the land for the benefit of A.

(b) A conveys to B two fields, Y and Z, and declares a trust of Y, but says nothing about Z. It cannot, consistently with the circumstances under which the transfer is made, be inferred that A intended to transfer the beneficial interest in Z. B holds Z for the benefit of A.

(c) A transfers certain stock belonging to him into the joint names of himself and B. It cannot, consistently with the circumstances under which the transfer is made, be inferred that A intended to transfer the beneficial interest in the stock during his life. A and B hold the stock for the benefit of A during his life.

(d) A makes a gift of certain land to his wife B. She takes the beneficial interest in the land free from any trust in favour of A, for it may be inferred from the circumstances that the gift was for B's benefit.

82. Transfer to one for consideration paid by another. Where property is transferred to one person for a consideration paid or provided by another person, and it appears that such other person did not intend to pay or provide such consideration for the benefit of the transferee, the transferee must hold the property for the benefit of the person paying or providing the consideration.

[1][Nothing in this section shall affect the provisions of the Code of Civil Procedure, 1908(Act V of 1908)].

83. Trust incapable of execution or executed without exhausting trust-property. Where a trust is incapable of being executed, or where the trust is completely executed without exhausting the trust-property, the trustee, in the absence of a direction to the contrary, must hold the trust-property, or so much thereof as is unexhausted, for the benefit of the author of the trust or his legal representative.

Illustrations

(a) A conveys certain land to B-

"upon trust," and no trust is declared; or

"upon trust to be thereafter declared," and no such declaration is ever made; or

upon trusts that are too vague to be executed; or

upon trusts that become incapable of taking effect; or

"in trusts for C," and C renounces his interest under the trust. In each of these cases B holds the land for the benefit of A.

(b) A transfers Rs. 10,000 in the four per cents, to B, in trust to pay the interest annually accruing due to C for her life. A dies. Then C dies. B holds the fund for the benefit of A's legal representative.

(c) A conveys land to B upon trust to sell it and apply one moiety of the proceeds for certain charitable purposes, and the other for the maintenance of the worship of an idol. B sells the land, but the charitable purposes wholly fail, and the maintenance of the worship does not exhaust the second moiety of the proceeds. B holds the first moiety and the part unapplied of the second moiety for the benefit of A or his legal representative.

(d) A bequeaths Rs. 10,000 to B, to be laid out in buying land to be conveyed for purposes which either wholly or partially fail to take effect. B holds for the benefit of A's legal representative the undisposed of interest in the money or land if purchased.

84. Transfer for illegal purpose. Where the owner of property transfers it to another for an illegal purpose and such purpose is not carried into execu tion, or the transferor is not as guilty as the transferee, or the effect of permitting the transferee to retain the property might be to defeat the provisions of any law, the transferee must hold the property for the benefit of the transferor.

85. Bequest for illegal purpose. Where a testator bequeaths certain property upon trust and the purpose of the trust appears on the face of the will to be unlawful, or during the testator's life-time the legatee agrees with him to apply the property for an unlawful purpose, the legatee must hold the property for the benefit of the testator's legal re presentative.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and 2nd Sch., for the existing paragraph.

Bequest of which revocation is prevented by coercion. Where property is bequeathed and the revocation of the be quest is prevented by coercion, the legatee must hold the property for the benefit of the testator's legal representative.

86. Transfer pursuant to rescindable contract. Where property is transferred in pursuance of a contract which is liable to rescission or induced by fraud or mistake, the transferee must, on receiving notice to that effect, hold the pro perty for the benefit of the transferor, subject to repayment by the latter of the consideration actually paid.

87. Debtor becoming creditor's representative. Where a debtor becomes the executor or other legal representative of his creditor, he must hold the debt for the benefit of the persons interested therein.

88. Advantage gained by fiduciary. Where a trustee, executor, partner, agent, director of a company, legal adviser, or other person bound in a fiduciary character to protect the interests of another person, by availing himself of his character, gains for himself any pecuniary advantage, or where any person so bound enters into any dealings under circumstances in which his own interests are, or may be, adverse to those of such other person and thereby gains for himself a pecuniary advantage, he must hold for the benefit of such other person the advantage so gained.

Illustrations

(a) A, an executor, buys at an undervalue from B, a legatee, his claim under the will. B is ignorant of the value of the bequest. A must hold for the benefit of B the difference between the price and value.

(b) A, a trustee, uses the trust property for the purpose of his own business. A holds for the benefit of his beneficiary the profits arising from such user.

(c) A, a trustee, retires from his trust in consideration of his successor paying him a sum of money. A holds such money for the benefit of his beneficiary.

(d) A, a partner, buys land in his own name with funds belonging to the partnership. A holds such land for the benefit of the partnership.

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(e) A, a partner, employed on behalf of himself and his co-partners in negotiating the terms of a lease, calandestinely stipulates with the lesser for payment to himself of a lakh of rupees. A holds the lakh for the benefit of the partnership.

(f) A and B are partners. A dies. B, instead of winding up the affairs of the partnership, retains all the assets in the business. B must account to A's legal representative for the profits arising from A's share of the capital.

(g) A, an agent employed to obtain a lease for B, obtains the lease for himself. A holds the lease for the benefit of B.

(h) A, a guardian, buys up for himself incumbrances on his ward B's estate at an undervalue. A holds for the benefit of B the incumbrances so bought, and can only charge him with what he has actually paid.

89. Advantage gained by exercise of undue influence. Where, by the exercise of undue influence, any advantage is gained in derogation of the interests of another, the person gaining such

advantage without consideration, or with notice that such influence has been exercised, must hold the advantage for the benefit of the person whose interests have been so prejudiced.

90. Advantage gained by qualified owner. Where a tenant for life, co-owner, mortgagee or other qualified owner of any property, by availing himself of his position as such, gains an advantage in derogation of the rights of the other persons interested in the property, or where any such owner, as representing all persons interested in such property, gains any advantage, he must hold, for the benefit of all persons so interested, the advantage so gained, but subject to repayment by such persons of their due share of the expenses properly incurred, and to an indemnity by the same persons against liabilities properly contracted, in gaining such advantage.

Illustrations

(a) A, tenant for life of lease hold property, renews the lease in his own name and for his own benefit. A holds the renewed lease for the benefit of all those interested in the old lease.

(b) A village belongs to a Hindu family. A, one of its members, pays nazrana to Government and thereby procures his name to be entered as the inamdar of the village. A holds the village for the benefit of himself and the other members.

(c) A mortgages land to B, who enters into possession. B allows the Government revenue to fall into arrear with a view to the land being put up for sale and his becoming himself the purchaser of it. The land is accordingly sold to B. Subject to the repayment of the amount due on the mortgage and of his expenses properly incurred as mortgagee, B holds the land for the benefit of A.

91. Property acquired with notice of existing contract. Where a person acquires property with notice that another person has entered into an existing contract affecting that property, of which specific performance could be enforced, the former must hold the property for the benefit of the latter to the extent necessary to give effect to the contract.

92. Purchase by person contracting to buy property to be held on trust. Where a person contracts to buy property to be held on trust for certain beneficiaries and buys the property accordingly, he must hold the property for their benefit to the extent necessary to give effect to the contract.

93. Advantage secretly gained by one of several compounding creditors. Where creditors compound the debts due to them, and one of such creditors, by a secret arrangement with the debtor, gains an undue advantage over his co-creditors, he must hold for the benefit of such creditors the advantage so gained.

94. Constructive trusts in cases not expressly provided for. In any case not coming within the scope of any of the preceding sections, where there is no trust, but the person having possession of property has not the whole beneficial interest therein, he must hold the property for the benefit of the persons having such interest, or the residue thereof (as the case may be), to the extent necessary to satisfy their just demands.

Illustrations

(a) A, an executor, distributes the assets of his testator B to the legatees without having paid the whole of B's debts. The legatees hold for the benefit of B's

creditors, to the extent necessary to satisfy their just demands, the assets so distributed.

(b) A by mistake assumes the character of a trustee for B, and under colour of the trust receives certain money. B may compel him to account for such moneys.

(c) A makes a gift of a lakh of rupees to B, reserving to himself, with B's assent, power to revoke at pleasure the gift as to Rs. 10,000. The gift is void as to Rs. 10,000, and B holds that sum for the benefit of A.

95. Obligor's duties, liabilities and disabilities. The person holding property in accordance with any of the preceding sections of this Chapter must, so far as may be, perform the same duties, and is subject, so far as may be, to the same liabilities and disabilities, as if he were a trustee of the property for the person for whose benefit he holds it:

Provided that (a) where he rightfully cultivates the property of employs it in trade or business, he is entitled to reasonable remuneration for his trouble, skill and loss of time in such cultivation or employment; and (b) where he holds the property by virtue of a contract with a person for whose benefit he holds it, or with any one through whom such person claims, he may, without the permission of the Court, buy or become lessee or mortgagee of the property or any part thereof.

96. Saving of rights of *bona fide* purchares. Nothing contained in this Chapter shall impair the rights of transferees in good faith for consideration, or create an obligation in evasion of any law for the time being in force.

THE SCHEDULE. *Omitted by the Federal Laws (Revision and Decleration) ordinances ,1981 (XXVII of 1981), s.3 and Sch. II.*

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THE VALIDATION OF LAWS ACT, 1975

ACT No. LXIII OF 1975

[24th July, 1975]

An Act to validate certain President's Orders, Martial Law Regulations, Martial Law Orders and other laws.

WHEREAS clause (I) of Article 270 of the Constitution of the Islamic Republic of Pakistan provides that Parliament may by law validate all Proclamations, President's Orders, Martial Law Regulations, Martial Law Orders and other laws made between the twenty-fifth day of March, 1969, and the nineteenth day of December, 1971 ;

AND WHEREAS it is expedient to validate certain President's Orders, Martial Law Regulations, Martial Law Orders and other laws made asaforesaid ;

It is hereby enacted as follows :—

1. Short title and commencement.—(1) This Act may be called the Validation of Laws Act, 1975.

(2) It shall come into force at once.

2. Validation of laws.— The laws mentioned in the Schedule are hereby declared to have been validly made by competent authority.

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[*see* section 2]

Titles and Numbers of laws

I. PRESIDENT'S ORDERS

1. The Province of West Pakistan (Dissolution) Order, 1970 (P. O. No. 1 of 1970).

2. The High Courts (Establishment) Order, 1970 (P. O. No. 8 of 1970).

3. The High Court Judges (Leave, Pension and Privileges) Order, 1970 (P. O. No. 9 of 1970).

4. The Preparation of Electoral Rolls (Centrally Administered Tribal Areas) Order, 1970 (P. O. No. 13 of 1970).

5. The High Court Judges (Leave, Pension and Privileges) (Amendment) Order, 1970 (P. O. No. 15 of 1970).

6. The High Courts (Establishment) (Amendment) Order, 1970 (P. O. No. 16 of 1970).

7. The High Courts (Establishment) (Second Amendment) Order, 1970 (P. O. No. 17 of 1970).

8. The Judges (Compulsory Leave) Order, 1970 (P. O. No. 27 of 1970).

9. The Dissolution of West Pakistan Province (Rights, Properties, Assets and Liabilities) Order, 1971 (P. O. No. 2 of 1971).

10. The West Pakistan Statutory Corporations (Financing) Order, 1971 (P. O. No. 6 of 1971).

11. The West Pakistan Water and Power Development Authority (Financing) Order, 1971 (P. O. No. 7 of 1971).

12. The Pakistan Western Railway (Budgetary Arrangements and Investments) Order, 1971 (P. O. No. 8 of 1971).

13. The Distribution of Revenues Order, 1971 (P. O. No. 10 of 1971).

14. The Islamabad Capital Territory (Administration) Order, 1971 (P. O. No. 12 of 1971).

15. The Criminal Law Amendment (Special Court) Order, 1971 (P. O. No. 13 of 1971).

16. The West Pakistan Rangers (Reconstitution) Order, 1971 (P. O. No. 14 of 1971).

17. The Sitting of the Supreme Court Order, 1971 (P. O. No. 15 of 1971).

II. ORDINANCES

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1. The Improper Acquisition of Property (Special Committees) Ordinance, 1969 (IX of 1969).

2. The International Monetary Fund and Bank (Amendment) Ordinance, 1969 (X of 1969).

3. The State Bank of Pakistan (Amendment) Ordinance, 1969 (XI of 1969).

4. The Improper Acquisition of Property (Special Committees) (Amendment) Ordinance, 1969 (XII of 1969).

5. The British Statutes (Application to Pakistan) Repeal Ordinance, 1969 (XIII of 1969).

6. The Income-tax (Amendment) Ordinance, 1969 (XIV of 1969).

7. The Sales Tax (Amendment) Ordinance, 1969 (XV of 1969).

8. The Finance Ordinance, 1969 (XVI of 1969).

9. The Securities and Exchange Ordinance, 1969 (XVII of 1969).

10. The Improper Acquisition of Property (Special Committees) (Second Amendment) Ordinance, 1969 (XVIII of 1969).

11. The Defence Services (Inquiry) (Special Provisions) Ordinance, 1969 (XIX of 1969).

12. The Code of Criminal Procedure (Amendment) Ordinance, 1969 (XX of 1969).

13. The Pakistan Refugees Rehabilitation Finance Corporation (Amendment) Ordnance, 1969 (XXII of 1969).

14. The Industrial Relations Ordinance, 1969 (XXIII of 1969).

15. The Equity Participation Fund Ordinance, 1970 (I of 1970).

16. The Industrial Development Bank of Pakistan (Amendment) Ordinance, 1970 (II of 1970).

17. The State Bank of Pakistan (Amendment) Ordinance, 1970 (III of 1970).

18. The Monopolies and Restrictive Trade Practices (Control and Prevention) Ordinance, 1970 (V of 1970).

19. The Code of Civil Procedure (Amendment) Ordinance, 1970 (VI of 1970).

20. The Central Law Officers Ordinance, 1970 (VII of 1970).

21. The Imports and Exports (Control) (Amendment) Ordinance, 1970 (VIII of 1970).

22. The Chartered Accountants (Amendment) Ordinance, 1970 (IX of 1970).

23. The Wireless Telegraphy (Amendment) Ordinance, 1970 (X of 1970).

24. The Finance Ordinance, 1970 (XI of 1970).

25. The Companies Profits (Workers Participation) (Amendment) Ordinance, 1970 (XII of 1970).

26. The National and Provincial Assemblies (Elections) Ordinance, 1970 (XIII of 1970).

27. The National Bank of Pakistan (Amendment) Ordinance, 1970 (XIV of 1970).

28. The Sales Tax (Amendment) Ordinance, 1970 (XV of 1970).

29. The Census (Amendment) Ordinance, 1970 (XVI of 1970).

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30. The National and Provincial Assemblies (Elections) (Amendment) Ordinance, 1970 (XVII of 1970).

31. The National and Provincial Assemblies (Elections) (Second Amendment) Ordinance, 1970 (XVIII of 1970).

32. The Industrial Relations (Amendment) Ordinance, 1970 (XIX of 1970).

33. The Sugar Export Subsidy Fund Ordinance, 1970 (XX of 1970).

34. The National and Provincial Assemblies (Elections) (Third Amendment) Ordinance, 1970 (XXI of 1970).

35. The Pakistan National Service Ordinance, 1970 (XXII of 1970).

36. The National and Provincial Assemblies (Elections) (Fourth Amendment) Ordinance, 1970 (XXIII of 1970).

37. The Cotton (Amendment) Ordinance, 1970 (XXIV of 1970).

38. The Insurance (Amendment) Ordinance, 1970 (XXV of 1970).

39. The National and Provincial Assemblies (Elections) (Fifth Amendment) Ordinance, 1970 (XXVI of 1970).

40. The Tax Laws (Amendment) Ordinance, 1971 (I of 1971).

41. The Agricultural Pesticides Ordinance, 1971 (II of 1971).

42. The Oil and Gas Development Corporation (Amendment) Ordinance, 1971 (III of 1971).

43. The Trade Marks (Amendment) Ordinance, 1971 (IV of 1971).

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44. The Pakistan Tobacco Board (Amendment) Ordinance, 1971 (V of 1971).

45. The Commander-in-Chief (Delegation of Powers) Ordinance, 1971 (VI of 1971).

46. The Banking Companies (Amendment) Ordinance, 1971 (VII of 1971).

47. The Regulation of Mines and Oil-fields and Mineral Development (Government Control) (Amendment) Ordinance, 1971 (VIII of 1971).

48. The Asian Development Bank Ordinance, 1971 (IX of 1971).

49. The Price Equalization Surcharge (Validation) Ordinance, 1971 (X of 1971).

50. The Newsprint Control Ordinance, 1971 (XI of 1971).

51. The Investment Corporation of Pakistan (Amendment) Ordinance, 1971 (XII of 1971).

52. The Pakistan Army Act (Amendment) Ordinance, 1971 (XIII of 1971).

53. The Finance Ordinance, 1971 (XIV of 1971).

54. The Railway Surcharge (Pakistan Western Railway) Ordinance, 1971 (XV of 1971).

55. The Equity Participation Fund (Amendment) Ordinance, 1971 (XVI of 1971).

56. The Finance (Supplementary Provisions) Ordinance, 1971 (XVII of 1971).

57. The Decorations (Amendment) Ordinance, 1971 (XVIII of 1971).

58. The Soldiers (Litigation) (Amendment) Ordinance, 1971 (XIX of 1971).

59. The Industrial Development Bank of Pakistan (Amendment) Ordinance, 1971 (XX of 1971).

60. The Petroleum Products (Development Surcharge) (Amendment Ordinance, 1971 (XXII of 1971).

61. The State Bank of Pakistan (Amendment) Ordinance, 1971 (XXIII of 1971).

62. The Agricultural Development Bank (Amendment) Ordinance, 1971 (XXV of 1971).

63. The Provincial Industrial Development Corporation (West Pakistan) (Amendment) Ordinance, 1971 (XXVI of 1971).

64. The Quaid-i-Azam's Mazar (Protection and Maintenance) Ordinance, 1971 (XXVII of 1971).

65. The Malaria Eradication Board (Amendment) Ordinance, 1971 (XXVIII of 1971).

66. The National and Provincial Assemblies (Elections) (Amendment) Ordinance, 1971 (XXIX of 1971).

67. The Defence of Pakistan Ordinance, 1971 (XXX of 1971).

68. The Compulsory Service in the Armed Forces Ordinance, 1971 (XXXI of 1971).

69. The War Risks Insurance Ordinance, 1971 (XXXII of 1971).

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70. The Civil Aviation (Amendment) Ordinance, 1971 (XXXIV of 1971).

71. The Control of Employment (Amendment) Ordinance, 1971(XXXV of 1971).

72. The Workers' Welfare Fund Ordinance, 1971 (XXXVI of 1971).

III. MARTIAL LAW REGULATIONS

1. The Income-tax (Correction of Returns and False Declarations) Regulation, 1969 (ML R No. 32).

2. The Improper Acquisition of Property Regulation, 1969 (ML R No. 37).

3. The Income-tax (Correction of Returns and False Declarations) Amending Regulation (M. L. R. No. 47).

4. The Income-Tax (Correction of Returns and False Declarations) (Amendment) Regulation (ML R No. 48).

5. Martial Law Regulation No. 62 amending the Improper Acquisition of Property Regulation, 1969 (ML R No. 37).

6. The Government Agricultural Land (Recovery of Illegal Possession) Regulation, 1969 (ML R No. 68).

7. The Enemy Property (Payment of Money Due to Enemy) Regulation, 1970 (ML R No. 70).

8. The Withdrawal of Currency Notes (High Denominations) Regulation, 1971 (ML R No. 81).

9. The Peshawar District and Tribal Areas (Settlement of Disputes) Regulation, 1971 (ML R No. 93).

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10. The Convention Muslim League and Awami League (Scrutiny of Funds) Regulation, 1971 (ML R No. 97).

IV. REGULATIONS

1. The National Assembly (Elections) (Centrally Administered Tribal Areas) Regulation, 1970 (I of 1970).

2. The Centrally Administered Tribal Areas Development Corporation Regulation, 1970 (II of 1970).

3. The National Assembly (Elections) (Centrally Administered Tribal Areas) (Amendment) Regulation, 1970 (III of 1970).

V. WEST PAKISTAN ORDINANCES

1. The West Pakistan Tribunals of Inquiry Ordinance, 1969 (W. P. Ordinance No. II of 1969).

2. The West Pakistan Railway Servants Benevolent Fund Ordinance, 1969 (W. P. Ord. No. V of 1969).

3. The Whipping (West Pakistan Amendment) Ordinance, 1969 (W. P. Ord. No. VI of 1969).

4. The West Pakistan Finance Ordinance, 1969 (W. P. Ord. No. VII of 1969).

5. The West Pakistan Shops and Establishments Ordinance, 1969 (W. P. Ord. No. VIII of 1969).

6. The West Pakistan Railway Servants' Welfare Fund Ordinance, 1969 (W. P. Ord. No. XIV of 1969).

7. The West Pakistan Publication of Books (Regulation and Control) Ordinance, 1969 (W. P. Ord. No. XV of 1969).

8. The West Pakistan Duty on Excessive Wastage of Spirits in Distilleries (Validation) Ordinance, 1969 (W. P. Ord. No. XVIII of 1969).

9. The West Pakistan Minimum Wages for Unskilled Workers Ordinance, 1969 (W. P. Ord. No. XX of 1969).

10. The Municipal Administration (West Pakistan Amendment) Ordinance. 1969 (W. P.Ord. No. XXI of 1969).

11. The West Pakistan Board of Intermediate and Secondary Education (Quetta) Ordinance, 1969 (W. P. Ord. No. XXIV of 1969).

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12. The West Pakistan Civil Services (Appellate Tribunals) Ordinance, 1969 (W. P. Ord. No. XXVIII of 1969).

13. The North-West Frontier Province Tenancy (Validation and Extension of Period for Payment of Compensation) Ordinance, 1969 (W. P. Ord. No. XXX of 1969).

14. The Punjab Tenancy (Validation and Extension of Period for Payment of Compensation) Ordinance, 1969 (W. P. Ord. No. XXXI of 1969).

15. The Criminal Law (West Pakistan Amendment) Ordinance, 1969 (W. P. Ord. No. XXXIII of 1969).

16. The West Pakistan Urban Immovable Property (Validation of Valuation List and Tax) Ordinance, 1969 (W. P. Ord. No. XXXV of 1969).

17. The Colonization of Government Lands (Punjab) (West Pakistan Amendment) Ordinance, 1969 (W. P. Ord. XXXVI of 1969).

18. The West Pakistan Privy Purses (Charged Expenditure) Ordinance, 1969 (W. P. Ord. No. XLI of 1969).

19. The Canal and Drainage Act, 1873 (Extension to III Lora Canal of Bannu District) Ordinance, 1969 (W. P. Ord. No. XLIII of 1969).

20. The Notaries (West Pakistan Amendment) Ordinance, 1969 (W. P. Ord. No. XLV of 1969).

21. The Land Acquisition (West Pakistan Amendment) Ordinance, 1969 (W. P. Ord. No. XLIX of 1969).

22. The Canal and Drainage (West Pakistan Amendment) Ordinance, 1970 (W. P. Ord. No. I of 1970).

23. The Prevention of Corruption (West Pakistan Amendment) Ordinance, 1970 (W. P. Ord. No. II of 1970).

24. The West Pakistan Anti-Corruption Establishment (Amendment) Ordinance, 1970 (W. P. Ord. No. III of 1970).

25. The Canal and Drainage Act (West Pakistan Second Amendment) Ordinance, 1970 (W. P. Ord. No. IV of 1970).

26. The Railways (Transport of Goods) (West Pakistan Amendment) Ordinance, 1970 (W. P. Ord. No. V of 1970).

27. The West Pakistan Urban Rent Restriction (Amendment) Ordinance, 1970 (W. P. Ord. No. VI of 1970).

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28. The Pakistan Criminal Law (West Pakistan Amendment) Ordinance, 1970 (W. P. Ord. No. VII of 1970).

29. The Explosive Substances (West Pakistan Amendment) Ordinance,. 1970 (W. P. Ord. No. VIII of 1970).

30. The West Pakistan Motor Vehicles (Amendment) Ordinance, 1970 (W. P. Ord. No. IX of 1970).

31. The West Pakistan Land Revenue (Amendment) Ordinance, 1970 (W. P. Ord. No. X of 1970).

32. The Minimum Wages (West Pakistan Amendment) Ordinance, 1970 (W. P. Ord. No. XI of 1970).

33. The Agricultural Produce Markets (West Pakistan Amendment) Ordinance, 1970 (W. P. Ord. No. XII of 1970).

34. The West Pakistan Requisition of Stage Carriages (Temporary Powers) Ordinance, 1970 (W. P. Ord. No. XIII of 1970).

35. The West Pakistan Jamia Islamia (Bahawalpur) (Amendment) Ordinance, 1970 (W.P. Ord. No. XIV of 1970).

36. The West Pakistan Local Councils High Schools (Taking Over) Ordinance, 1970 (W.P. Ord. No. XV of 1970).

37. The West Pakistan Motor Vehicles (Amendment) Amending Ordinance, 1970 (W. P. Ord. No. XVI of 1970).

38. The West Pakistan Repealing Ordinance, 1970 (W. P. Ord. No XVIII of 1970).

39. The West Pakistan Hill Tract Improvement (Amendment) Dance, 1970 (W. P. Ord. No. XIX of 1970).

40. The West Pakistan Private Colleges (Management and Control) Ordinance, 1970 (W. P. Ord. No. XX of 1970).

41. The West Pakistan (Punjab) Finance Ordinance, 1970 (W. P. Ord. No. XXI of 1970).

42. The West Pakistan (Sind) Finance Ordinance, 1970 (W. P. Ord. No. XXII of 1970).

43. The West Pakistan (North-West Frontier Province) Finance Ordinance, 1970 (W. P. Ord. No XXIII of 1970).

44. The West Pakistan (Baluchistan) Finance Ordinance, 1970 (W. P. Ord. No. XXIV of 1970).

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45. The West Pakistan Motor Vehicles (Second Amendment) Ordinance, 1970 (W. P. Ord. No. XXV of 1970).

46. The West Pakistan Land Reforms Regulation (Amendment) Ordinance, 1970 (W. P. Ord. No. XXVI of 1970).

47. The West Pakistan Publication of Textbooks (Regulation and Control) Ordinance, 1970 (W. P. Ord. No. XXVII of 1970).

REGULATIONS

1. The Dir, Chitral and Swat (Administration) Regulation, 1969 (W. P. Reg. I of 1969).

2. The Amb (Administration) Regulation, 1969 (W. P. Reg. II 1969).

3. The Co-operative Societies Act, 1925 (Application to Tribal Areas of Peshawar, Dera Ismail Khan and Malakand Divisions) Regulation, 1970 (W. P. Reg. I of 1970).

VI. PUNJAB ORDINANCES

1. The West Pakistan Urban Immovable Property Tax (Punjab Amendment) Ordinance, 1970 (Punjab Ord. No. I of 1970).

2. The Punjab Social Services Board Ordinance, 1970 (Punjab Ord. No. II of 1970).

3. The West Pakistan Nursing Services (Punjab Amendment) Ordinance, 1970 (Punjab Ord. No. III of 1970).

4. The West Pakistan Motor Vehicles Taxation (Punjab Amendment) Ordinance, 1970 (Punjab Ord. No. V of 1970).

5. The Soil Reclamation (Punjab Amendment) Ordinance, 1970 (Punjab Ord. No. VI of 1970).

6. The Medical Colleges (Governing Bodies) (Punjab Repeal) Ordinance, 1970 (Punjab Ord. No. VII of 1970).

7. The West Pakistan Animals Slaughter Control (Punjab Amendment) Ordinance, 1970 (Punjab Ord. No. VIII of 1970).

8. The West Pakistan Motor Vehicles (Punjab Amendment) Ordinance, 1970 (Punjab Ord. No. IX of 1970).

9. The West Pakistan Private Colleges (Management and Control) (Punjab Amendment) Ordinance, 1970 (Punjab Ord. No. X of 1970).

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10. The West Pakistan Co-operative Board (Dissolution) (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. I of 1971).

11. The Thal (Increase in Value) (Validation of Levy of Tax) Ordinance, 1971 (Punjab Ord. No. II of 1971).

12. The West Pakistan Board of Technical Education (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. III of 1971).

13. The West Pakistan Consolidation of Holdings (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. IV of 1971).

14. The West Pakistan Text Book Board (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. V of 1971).

15. The West Pakistan Publication of Textbooks (Regulation and Control) (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. VI of 1971).

16. The West Pakistan Criminal Law (Amendment) Act (Transfer of Pending Cases) Ordinance, 1971 (Punjab Ord. No. VII of 1971).

17. The Punjab Taunsa Barrage Betterment Tax Ordinance, 1971 (Punjab Ord. No. VIII of 1971).

18. The Code of Criminal Procedure (Punjab Amendment) Ordinance, 1971 (Punjab Ord. IX of 1971).

19. The West Pakistan Employees' Social Security (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. X of 1971).

20. The Punjab Finance Ordinance, 1971 (Punjab Ord. No. XI of 1971).

21. The West Pakistan Entertainments Duty (Punjab Second Amendment) Ordinance, 1971 (Punjab Ord. No. XII of 1971).

22. The Punjab Fair Price Shops (Factories) Ordinance, 1971 (Punjab Ord. No. XIII of 1971).

23. The Greater Lahore Water Supply, Sewerage and Drainage (Amendment) Ordinance, 1971 (Punjab Ord. No. XIV of 1971).

24. The Thal Development (Validating) Ordinance, 1971 (Punjab Ord. No. XV of 1971).

25. The West Pakistan Waqf Properties (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No XVI of 1971).

26. The West Pakistan Agricultural University (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. XVII of 1971).

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27. The Canal and Drainage (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. XVIII of 1971).

28. The Punjab Cotton Control (Validation of Levy of Fees) Ordinance, 1971 (Punjab Ord. No. XIX of 1971).

29. The West Pakistan (Board of Intermediate and Secondary Education, Lahore) (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. XX of 1971).

30. The West Pakistan Board of Technical Education (Punjab Second Amendment) Ordinance, 1971 (Punjab Ord. No. XXI of 1971).

31. The West Pakistan Motor Vehicles (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. XXII of 1971).

32. The Child Marriage Restraint (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. XXIII of 1971).

33. The West Pakistan Family Courts (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. XXIV of 1971).

34. The Punjab Local Government Institution (Dissolution) (Extension of Limitation) Ordinance, 1971 (Punjab Ord. No. XXV of 1971).

35. The West Pakistan Employees' Social Security (Punjab Second Amendment) Ordinance, 1971 Punjab Ord. No. XXVI of 1971).

36. The West Pakistan Foodstuffs (Control) Punjab Amendment and Validation) Ordinance, 1971 (Punjab Ord. No. XXVII of 1971).

37. The West Pakistan Finance (Punjab Amendment) Ordinance, 1971 (Punjab Ord. No. XXVIII of 1971).

VII. SIND ORDINANCES

1. The West Pakistan Board of Revenue (Sind Amendment) Ordinance, 1970 (Sind Ord. No. I of 1970).

2. The West Pakistan Requisitioning of Immovable Property (Temporary Powers) (Sind Amendment) Ordinance, 1970 (Sind Ord. No. II of 1970).

3. The West Pakistan Horse-race Betting Tax (Sind Amendment) Ordinance, 1970 (Sind Ord. No. IV of 1970).

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4. The West Pakistan Motor Vehicles Taxation (Sind Amendment) Ordinance, 1970 (Sind Ord. No. V of 1970).

5. The Sind Abkari Act (Amendment) Ordinance, 1970 (Sind Ord. No. VIII of 1970).

6. The West Pakistan Tobacco Vend Act (Sind Amendment) Ordinance, 1970 (Sind Ord. No. IX of 1970).

7. The Sind Private Colleges (Management and Control) Ordinance, 1970 (Sind Ord. No. X of 1970).

8. The Sind Consumption of Intoxicants Restriction Act (Amendment) Ordinance, 1970 (Sind Ord. No. XI of 1970).

9. The Sind Textbook Board Ordinance, 1970 (Sind Ord. No. XII of 1970).

10. The Civil Courts (Sind Amendment) Ordinance, 1970 (Sind Ord. No. XIII of 1970).

11. The West Pakistan Finance Act (Sind Amendment) Ordinance, 1970 (Sind Ord. No. XV of 1970).

12. The Sind Board of Technical Education Ordinance, 1970 (Sind Ord. No. XVI of 1970).

13. The West Pakistan Criminal Law (Amendment) Act (Repeal) (Sind Amendment) Ordinance, 1971 (Sind Ord. No. III of 1971).

14. The West Pakistan Urban Immovable Property Tax Act (Sind Amendment) Ordinance, 1971 (Sind Ord. No. IV of 1971).

15. The Factories Act (Sind Amendment) Ordinance, 1971 (Sind Ord. No. V of 1971).

16. The Land Acquisition (West Pakistan Amendment) (Repeal) Ordinance, 1971 (Sind Ord. No. VI of 1971).

17. The Sind Finance Ordinance, 1971 (Sind Ord. No. VII of 1971).

18. The Boilers Act (Sind Amendment) Ordinance, 1971 (Sind Ord. No. VIII of 1971).

19. The West Pakistan Historical Mosques and Shrines Fund Cess (Sind Amendment) Ordinance, 1971 (Sind Ord. No. IX of 1971).

20. The West Pakistan Motor Vehicles (Sind Amendment) Ordinance, 1971 (Sind Ord. No. X of 1971).

21. The Sugar Factories Control Act (Sind Amendment) Ordinance, 1971 (Sind Ord. XI of 1971).

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22. The Sind (Town Committee, Bhirya Road) Validation of Octroi Tax Ordinance, 1971 (Sind Ord. No. XII of 1971).

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1. The West Pakistan Board of Revenue (North-West Frontier Province Amendment) Ordinance, 1970 (NWFP Ord. No. I of 1970).

2. The West Pakistan Employees' Social Security (North-West Frontier Province Amendment) Ordinance, 1970 (NWFP Ord. No. III of 1970).

3. The West Pakistan Motor Vehicles (North-West Frontier Province Amendment) Ordinance, 1970 (NWFP Ord. No. 1V of 1970).

4. The North-West Frontier Province Text Book Board Ordinance, 1971 (NWFP Ord. No. I of 1971).

5. The North-West Frontier Province Government Educational and Training Institutions Ordinance, 1971 (NWFP Ord. No. III of 1971).

6. The North-West Frontier Province Finance Ordinance, 1971 (NWFP Ord. No. IV of 1971).

7. The North West Frontier Province Cheshma Right Bank Canal Project (Control and Prevention of Speculation in Land) Ordinance, 1971 (NWFP Ord. No. V of 1971).

8. The Factories Act (North-West Frontier Province Amendment) Ordinance, 1971 (NWFP Ord. No. VI of 1971).

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IX. BALUCHISTAN ORDINANCES

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1. The University of Baluchistan Ordinance, 1970 (Baluchistan Ord. No. I of 1970).

2. The Baluchistan Civil Services (Appellate Tribunal) (Amendment) Ordinance, 1970 (Baluchistan Ord. No. II of 1970).

3. The Baluchistan Pat Feeder Area (Settlement of Land Disputes) Ordinance, 1970 (Baluchistan Ord. No. III of 1970).

4. The Baluchistan Pat Feeder Area (Settlement of Land Disputes) (Amendment) Ordinance, 1971 (Baluchistan Ord. No. I of 1971).

5. The West Pakistan Publication of Books (Regulation and Control) (Baluchistan Amendment) Ordinance, 1971 (Baluchistan Ord. No. II of 1971).

6. The Baluchistan Civil Services (Appellate Tribunal) (Amendment) Ordinance, 1971 (Baluchistan Ord. No. III of 1971).

7. The Criminal Law (Special Provisions) (Baluchistan Amendment) Ordinance, 1971 (Baluchistan Ord. No. IV of 1971).

8. The Criminal Law (Special Provisions) (Baluchistan Second Amendment) Ordinance, 1971 (Baluchistan Ord. No. V of 1971).

9. The Civil Procedure (Special Provisions) (Baluchistan Amendment) Ordinance, 1971 (Baluchistan Ord. No. VI of 1971).

10. The Baluchistan Pat Feeder Area (Settlement of Land Disputes) (Second Amendment) Ordinance, 1971 (Baluchistan Ord. No. VII of 1971).

11. The Baluchistan Finance Ordinance, 1971 (Baluchistan Ord. No. VIII of 1971).

12. The Baluchistan Sea Fisheries Ordinance, 1971 (Baluchistan Ord. No. IX of 1971).

13. The West Pakistan Motor Vehicles (Baluchistan Amendment) Ordinance, 1971 (Baluchistan Ord. No. X of 1971).

14. The University of Baluchistan (Amendment) Ordinance, 1971 (Baluchistan Ord. No. XI of 1971).

15. The West Pakistan Motor Vehicles (Baluchistan Second Amendment) Ordinance, 1971 (Baluchistan Ord. No. XII of 1971).

16. The Baluchistan Ministerial (English) Service Joint Cadre (Dissolution) Ordinance, 1971 (Baluchistan Ord. No. XIII of 1971).

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Date: 11-11-2024

THE VOLUNTARY SOCIAL WELFARE AGENCIES (REGISTRATION AND CONTROL) ORDINANCE, 1961

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THE VOLUNTARY SOCIAL WELFARE AGENCIES (REGISTRATION AND CONTROL) ORDINANCE, 1961

ORDINANCE NO. XLVI OF 1961

[2nd *December*, 1961]

An Ordinance to provide for the registration and control of voluntary social welfare agencies.

WHEREAS it is expedient to provide for the registration and control of voluntary social welfare agencies, and for matters ancillary thereto;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Voluntary Social Welfare Agencies (Registration and Control) Ordinance, 1961.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such date as the [1][Provincial Government] may, by notification in the official Gazette, appoint in this behalf.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "agency" means a voluntary social welfare agency, and includes any branch of such agency ;

(b) "governing body" means the council, committee, trustees or other body, by whatever name called, to whom, by the constitution of the agency, its executive functions and the management of its affairs are entrusted ;

(c) "prescribed" means prescribed by rules made under section 19 ;

(d) "register" means the register maintained under section 4, and "registered" shall mean registered under this Ordinance ;

(e) "Registration Authority" means [1][* * *] an officer authorized by the [1][Provincial Government], by notification in the Official Gazette, to exercise all or any of the powers of the Registration Authority under this Ordinance ;

(f) "voluntary social welfare agency" means an organization, association or undertaking established by persons of their own free will for the purpose of rendering welfare services in any one or more of the fields mentioned in the Schedule and depending for its resources on public subscriptions, donations or Government aid.

[1]Subs. and omitted by the Central Adaptation of Laws Order, 1964 (P. O. No. 1), Art. 2 and Sch.

3. Prohibition against establishing or continuing an agency without registration.—No agency shall be established or continued except in accordance with the provisions of this Ordinance.

4. Application for registration, etc.—(1) Any person intending to establish an agency, [1][* * *] shall, in the prescribed form, and on payment of the prescribed fee, make an application to the Registration Authority, accompanied by a copy of the constitution of the agency, and such other documents as may be prescribed.

(2) The Registration Authority may, on receipt of the application, make such enquiries as it considers necessary, and either grant the application, or, for reasons to be recorded in writing, reject it.

(3) If the Registration Authority grants the application, it shall issue, in the prescribed form, a certificate of registration to the applicant.

(4) The Registration Authority shall maintain a register, containing such particulars as may be prescribed, of all certificates issued under sub-section (3).

5. Establishment and continuance of agency.—(1) An agency [1][* * *] shall be established only after a certificate of registration has been issued under sub-section (3) of section 4.

[1][***** ***** ***** ***** ***** ***** ***]**

6. Appeal.— If the Registration Authority rejects an application for registration, the applicant may, within thirty days from the date of the order of the Registration Authority, prefer an appeal to the [2][Provincial Government], and the order passed by the [2][Provincial Government] shall be final and given effect to by the Registration Authority.

7. Conditions to be complied with by registered agencies.—(1) Every registered agency shall—

(*a*) maintain audited accounts in the manner laid down by the Registration Authority ;

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(*b*) at such time and in such manner as may be prescribed, submit its Annual Report and audited accounts to the Registration Authority and publish the same for general information ;

(*c*) pay all moneys received by it into a separate account kept in its name at such bank or banks as may be approved by the Registration Authority; and

(*d*) furnish to the Registration Authority such particulars with regard to accounts and other records as the Registration Authority may from time to time require.

(2) The Registration Authority, or any officer duly authorized by it in this behalf, may at all reasonable times inspect the books of account and other records of the agency, the securities, cash and other properties held by the agency, and all documents relating thereto.

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[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Act No. XXVII of 1981), s. 3 and Sch., II.
[2]Subs. by the Central Adaptation Laws Order, 1964 (P. O. No. 1), Art. 2 and Sch.

8. Amendment of the constitution of registered agency.—(1) No amendment of the constitution of a registered agency shall be valid unless it has been approved by the Registration Authority, for which purpose a copy of the amendment shall be forwarded to the Registration Authority.

(2) If the Registration Authority is satisfied that any amendment of the constitution is not contrary to any of the provisions of this Ordinance or the rules made thereunder, it may, if it thinks fit, approve the amendment.

(3) Where the Registration Authority approves an amendment of the constitution, it shall issue to the agency a copy of the amendment certified by it, which shall be conclusive evidence that the same is duly approved.

9. Suspension or dissolution of governing bodies of registered agencies.—(1) lf, after making such enquiries as it may think fit, the Registration Authority is satisfied that a registered agency has been responsible for any irregularity in respect of its funds or for any maladministration in the conduct of its affairs or has failed to comply with the provisions of this Ordinance or the rules made thereunder, it may, by order in writing, suspend the governing body.

(2) Where a governing body is suspended under sub-section (1), the Registration Authority shall appoint an administrator, or a caretaker body consisting of not more than five persons, who shall have all the authority and powers of the governing body under the constitution of the agency.

(3) Every order of suspension under sub-section (1) shall be placed by the Registration Authority before a Board, consisting of not more than five persons, constituted by the [1][Provincial Government] for the purpose, which shall have the power to make such order as to the re-instatement, or the dissolution and reconstitution, of the governing body, as it may think fit.

(4) The governing body against whom an order of dissolution and reconstitution is made under sub-section (3) may appeal to the [1][Provincial Government], within thirty days from the date of such order, and the decision of the [1][Provincial Government] shall be final and shall not be called in question in any Court.

10. Dissolution of registered agency.—(1) If at any time the Registration Authority has reason to believe that a registered agency is acting in contravention of its constitution, or contrary to any of the provisions of this Ordinance or the rules made thereunder, or in a manner prejudicial to the interests of the public, it may, after giving such opportunity to the agency of being heard as it thinks fit, make a report thereon to the [1][Provincial Government].

(2) The [1][Provincial Government], if satisfied after considering the report that it is necessary or proper to do so, may order that the agency shall stand dissolved on and from such date as may be specified in the order.

11. Voluntary dissolution of registered agency.—(1) No registered agency shall be dissolved by the governing body or members thereof.

(2) If it is proposed to dissolve any registered agency, not less than three-fifths of its members may apply to the [1][Provincial Government], in such manner as may be prescribed, for making order for the dissolution of such agency.

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[1] Subs. by the Central Adaptation Laws Order, 1964 (P. O. No. 1), Art. 2 and Sch.

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(3) The [1][Provincial Government], if satisfied after considering the application that it is proper to do so, may order that the agency shall stand dissolved on and from such date as may be specified in the order.

12. Consequences of dissolution.—(1) Where any agency is dissolved under this Ordinance, its registration thereunder shall stand cancelled on and from the date the order of dissolution takes effect, and the [1][Provincial Government] may—

(*a*) order any bank or other person who holds moneys, securities or other assets on behalf of the agency not to part with such moneys, securities and assets without the previous permission in writing of the [1][Provincial Government] ;

(*b*) appoint a competent person to wind up the affairs of the agency, with power to institute and defend suits and other legal proceedings on behalf of the agency, and to make such orders and take such action as may appear to him to be necessary for the purpose ; and

(*c*) order any moneys, securities and assets remaining after the satisfaction of all debts and liabilities of the agency to be paid or transferred to such other agency, having objects similar to the objects of the agency, as may be specified in the order.

(2) Orders made by the person appointed under clause (*b*) of sub-section (1) shall, on application, be enforceable by any Civil Court having local jurisdiction in the same manner as a decree of such Court.

13. Inspection of documents, etc.—Any person may, on payment of the prescribed fee, inspect at the office of the Registration Authority any document relating to a registered agency, or obtain a copy of or an extract from any such document.

14. Penalties and procedure.—(1) Any person who—

(*a*) contravenes any of the provisions of this Ordinance, or any rule or order made thereunder; or

(*b*) in any application for registration under this Ordinance, or in any report or statement submitted to the Registration Authority or published for general information thereunder, makes any false statement or false representation;

shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to two thousand rupees, or with both.

(2) Where the person committing an offence under this ordinance is a company, or other body corporate, or an association of person, every director, manager, secretary and other officer thereof shall, unless he proves that the offence was committed without his knowledge or consent, be deemed to be guilty of such offence.

[1] Subs. by the Central Adaptation Laws Order, 1964 (P. O. No. 1), Art. 2 and Sch.

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(3) No Court shall take cognizance of an offence under this Ordinance except upon complaint in writing made by the Registration Authority, or by an officer authorized by it in this behalf.

15. Indemnity.—No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Ordinance.

16. Power to amend Schedule.—The [1][Provincial Government] may by notification in the official Gazette, amend the Schedule so as to include therein or exclude therefrom any field of social welfare service.

17. Power to exempt.—The [1][Provincial Government] may, by notification in the official Gazette, exempt any agency or class of agencies from the operation of all or any of the provisions of this Ordinance.

18. Delegation of powers.—The [1][Provincial Government] may, by notification in the official Gazette, delegate all or any of its powers under this Ordinance, either generally, or in respect of such agency or class of agencies as may be specified in the notification, to any of its officers, [1][* * *].

19. Rules.—The [1][Provincial Government] may, by notification in the official Gazette, make rules for carrying into effect the provisions of this Ordinance.

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[1] Subs. and omitted by the Central Adaptation of Laws Order, 1964 (P. O. No. 1 of 1964), Art. 2 and Sch.

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[See Section 2 (f)]

(i) Child welfare.

(ii) Youth welfare.

(iii) Women's welfare.

(iv) Welfare of the physically and mentally handicapped.

(v) Family planning.

(vi) Recreational programmes intended to keep people away from anti-social activities.

(vii) Social education, that is, education of adults aimed at developing sense of civic responsibility.

(viii) Welfare and rehabilitation of released prisoners.

(ix) Welfare of juvenile delinquents.

(x) Welfare of the socially handicapped.

(xi) Welfare of the beggars and destitutes.

(xii) Welfare and rehabilitation of patients.

(xiii) Welfare of the aged and infirm.

(xiv) Training in social work.

(xv) Co-ordination of social welfare agencies.

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Dated: 25-02-2025